SUPPLEMENT NO. 47
VOLUMES I AND II
March 2026

MUNICIPAL CODE

City of

CINCINNATI, OHIO

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 0010-2026, effective January 14, 2026.

See the Zoning Code Table of Amendments and Table of Ordinances Modifying the 1979 Municipal Code — Volume II for further information.

Included in the Charter is:

Election of November 4, 2025.

See the Charter Comparative Table for further information.

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SUPPLEMENT NO. 46
VOLUMES I AND II
August 2025

MUNICIPAL CODE

City of

CINCINNATI, OHIO

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 0266-2025(Emer.), effective August 6, 2025.

See the Zoning Code Table of Amendments and Table of Ordinances Modifying the 1979 Municipal Code — Volume II for further information.

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SUPPLEMENT NO. 45
VOLUMES I AND II
March 2025

MUNICIPAL CODE

City of

CINCINNATI, OHIO

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 0416-2024, effective December 11, 2024.

See the Zoning Code Table of Amendments and Table of Ordinances Modifying the 1979 Municipal Code — Volume II for further information.

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SUPPLEMENT NO. 44
VOLUMES I AND II
August 2024

MUNICIPAL CODE

City of

CINCINNATI, OHIO

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 0248-2024(Emer.), effective June 12, 2024.

See the Zoning Code Table of Amendments and Table of Ordinances Modifying the 1979 Municipal Code — Volume II for further information.

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SUPPLEMENT NO. 43
VOLUMES I AND II
April 2024

MUNICIPAL CODE

City of

CINCINNATI, OHIO

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 0038-2024(Emer.), effective January 31, 2024.

See the Zoning Code Table of Amendments and Table of Ordinances Modifying the 1979 Municipal Code — Volume II for further information.

Included in the Charter is:

Ordinance No. 0291-2023(Emer.), effective November 7, 2023.

See the Charter Comparative Table for further information.

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SUPPLEMENT NO. 42
VOLUMES I AND II
September 2023

MUNICIPAL CODE

City of

CINCINNATI, OHIO

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 0715-2023(Emer.), effective May 24, 2023.

See the Zoning Code Table of Amendments and Table of Ordinances Modifying the 1979 Municipal Code — Volume II for further information.

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SUPPLEMENT NO. 41
VOLUMES I AND II
March 2023

MUNICIPAL CODE

City of

CINCINNATI, OHIO

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 0037-2023(Emer.), effective February 8, 2023.

See the Zoning Code Table of Amendments and Table of Ordinances Modifying the 1979 Municipal Code — Volume II for further information.

Included in the Charter is:

Ordinance No. 0264-2022(Emer.), effective November 8, 2022.

See the Charter Comparative Table for further information.

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SUPPLEMENT NO. 40
VOLUMES I AND II
September 2022

MUNICIPAL CODE

City of

CINCINNATI, OHIO

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 0232-2022(Emer.), adopted June 29, 2022.

See the Zoning Code Table of Amendments and Table of Ordinances Modifying the 1979 Municipal Code — Volume II for further information.

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SUPPLEMENT NO. 39
VOLUMES I AND II
February 2022

MUNICIPAL CODE

City of

CINCINNATI, OHIO

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 0012-2022, adopted January 26, 2022.

See the Zoning Code Table of Amendments and Table of Ordinances Modifying the 1979 Municipal Code — Volume II for further information.

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SUPPLEMENT NO. 38
VOLUMES I AND II
September 2021

MUNICIPAL CODE

City of

CINCINNATI, OHIO

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 0336-2021(Emer.), adopted August 4, 2021.

See the Zoning Code Table of Amendments and Table of Ordinances Modifying the 1979 Municipal Code — Volume II for further information.

Included in the Charter is:

Ordinance No. 046-2021(Emer.), adopted February 10, 2021.

See the Charter Comparative Table for further information.

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SUPPLEMENT NO. 37
VOLUMES I AND II
February 2021

MUNICIPAL CODE

City of

CINCINNATI, OHIO

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 0014-2021 (Emer.), adopted January 21, 2021.

See the Zoning Code Table of Amendments and Table of Ordinances Modifying the 1979 Municipal Code — Volume II for further information.

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SUPPLEMENT NO. 36
VOLUMES I AND II
September 2020

MUNICIPAL CODE

City of

CINCINNATI, OHIO

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 0254-2020(Emer.), adopted August 5, 2020.

See the Zoning Code Table of Amendments and Table of Ordinances Modifying the 1979 Municipal Code — Volume II for further information.

Included in the Charter is:

Ordinance No. 0296-2019, passed August 7, 2019, election of Nov. 5, 2019.

See the Charter Comparative Table for further information.

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SUPPLEMENT NO. 35
VOLUMES I AND II
February 2020

MUNICIPAL CODE

City of

CINCINNATI, OHIO

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance 0012-2020, effective January 15, 2020.

See the Zoning Code Table of Amendments and Table of Ordinances Modifying the 1979 Municipal Code — Volume II for further information.

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SUPPLEMENT NO. 34
VOLUMES I AND II
August 2019

MUNICIPAL CODE

City of

CINCINNATI, OHIO

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Amendment of July 10, 2019.

See the Zoning Code Table of Amendments and Table of Ordinances Modifying the 1979 Municipal Code — Volume II for further information.

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SUPPLEMENT NO. 33
VOLUMES I AND II
February 2019

MUNICIPAL CODE

City of

CINCINNATI, OHIO

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 0037-2019(Emer.), effective January 30, 2019.

See the Zoning Code Table of Amendments and Table of Ordinances Modifying the 1979 Municipal Code — Volume II for further information.

Included in the Charter is:

Ordinance No. 252-2018(Emer.), effective November 6, 2018.

See the Zoning Code Table of Amendments and Table of Ordinances Modifying the 1979 Municipal Code — Volume II for further information.

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SUPPLEMENT NO. 32
VOLUMES I AND II
August 2018

MUNICIPAL CODE

City of

CINCINNATI, OHIO

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 186-2018, effective July 27, 2018.

See the Zoning Code Table of Amendments and Table of Ordinances Modifying the 1979 Municipal Code — Volume II for further information.

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SUPPLEMENT NO. 31
VOLUMES I AND II
February 2018

MUNICIPAL CODE

City of

CINCINNATI, OHIO

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Amendment of Council Rules, effective January 2, 2018.

See the Zoning Code Table of Amendments and Table of Ordinances Modifying the 1979 Municipal Code — Volume II for further information.

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SUPPLEMENT NO. 30
VOLUMES I AND II
August 2017

MUNICIPAL CODE

City of

CINCINNATI, OHIO

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 185-2017, effective July 28, 2017.

See the Zoning Code Table of Amendments and Table of Ordinances Modifying the 1979 Municipal Code — Volume II for further information.

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SUPPLEMENT NO. 29
VOLUMES I AND II
February 2017

MUNICIPAL CODE

City of

CINCINNATI, OHIO

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 284-2016, enacted February 11, 2017.

See the Zoning Code Table of Amendments and Table of Ordinances Modifying the 1979 Municipal Code — Volume II for further information.

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SUPPLEMENT NO. 28
VOLUMES I AND II
August 2016

MUNICIPAL CODE

City of

CINCINNATI, OHIO

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Emergency Ordinance No. 156-2016, effective June 15, 2016.

See the Zoning Code Table of Amendments and Table of Ordinances Modifying the 1979 Municipal Code—Volume II for further information.

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SUPPLEMENT NO. 27
VOLUMES I AND II
February 2016

MUNICIPAL CODE

City of

CINCINNATI, OHIO

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Emergency Ordinance No. 022-2016, effective February 3, 2016.

See the Zoning Code Table of Amendments and Table of Ordinances Modifying the 1979 Municipal Code—Volume II for further information.

Included in the Charter is:

Emergency Ordinance No. 288, effective November 3, 2015.

See the Zoning Code Table of Amendments and Table of Ordinances Modifying the 1979 Municipal Code—Volume II for further information.

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SUPPLEMENT NO. 26
VOLUMES I AND II
August 2015

MUNICIPAL CODE

City of

CINCINNATI, OHIO

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Emergency Ordinance No. 244-2015, effective July 1, 2015.

See the Zoning Code Table of Amendments and Table of Ordinances Modifying the 1979 Municipal Code—Volume II for further information.

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SUPPLEMENT NO. 25
VOLUMES I AND II
February 2015

MUNICIPAL CODE

City of

CINCINNATI, OHIO

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 027-2015, effective March 4, 2015.

See the Zoning Code Table of Amendments and Table of Ordinances Modifying the 1979 Municipal Code—Volume II for further information.

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SUPPLEMENT NO. 24
VOLUMES I AND II
September 2014

MUNICIPAL CODE

City of

CINCINNATI, OHIO

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 243-2014, effective September 6, 2014.

See the Zoning Code Table of Amendments and Table of Ordinances Modifying the 1979 Municipal Code—Volume II for further information.

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SUPPLEMENT NO. 23
VOLUMES I AND II
February 2014

MUNICIPAL CODE

City of

CINCINNATI, OHIO

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 388-2013, adopted November 20, 2013.

See the Zoning Code Table of Amendments and Table of Ordinances Modifying the 1979 Municipal Code—Volume II for further information.

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SUPPLEMENT NO. 22
VOLUMES I AND II
August 2013

MUNICIPAL CODE

City of

CINCINNATI, OHIO

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Emergency Ordinance No. 211-2013, effective June 26, 2013.

See the Zoning Code Table of Amendments and Table of Ordinances Modifying the 1979 Municipal Code—Volume II for further information.

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SUPPLEMENT NO. 21
VOLUMES I AND II
March 2013

MUNICIPAL CODE

City of

CINCINNATI, OHIO

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 022-2013, effective March 1, 2013.

See the Zoning Code Table of Amendments and the Ordinance Modifying the 1979 Municipal Code—Volume II for further information.

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SUPPLEMENT NO. 20
VOLUMES I and II
August 2012

MUNICIPAL CODE

City of

CINCINNATI, OHIO

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 314-2012, effective September 1, 2012.

See the Zoning Code Table of Amendments and the Ordinance Modifying the 1979 Municipal Code—Volume II for further information.

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SUPPLEMENT NO. 19
VOLUMES I and II
February 2012

MUNICIPAL CODE

City of

CINCINNATI, OHIO

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 002-2012, effective February 5, 2012.

See the Ordinances Modifying the 1979 Municipal Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 18
VOLUMES I and II
August 2011

MUNICIPAL CODE

City of

CINCINNATI, OHIO

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Emergency Ordinance No. 247-2011, enacted June 29, 2011.

See the Ordinances Modifying the 1979 Municipal Code Comparative Table for further information.

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SUPPLEMENT NO. 17
VOLUMES I and II
February 2011

MUNICIPAL CODE

City of

CINCINNATI, OHIO

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance 459-2010, effective January 23, 2011.

See the Ordinances Modifying the 1979 Municipal Code Comparative Table for further information.

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SUPPLEMENT NO. 16
VOLUMES I and II
August 2010

MUNICIPAL CODE

City of

CINCINNATI, OHIO

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 289-2010, effective July 30, 2010.

See the Ordinances Modifying the 1979 Municipal Code Comparative Table for further information.

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SUPPLEMENT NO. 15
VOLUMES I and II
February 2010

MUNICIPAL CODE

City of

CINCINNATI, OHIO

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Emergency Ordinance No. 022-2010, enacted January 27, 2010.

See the Ordinances Modifying the 1979 Municipal Code Comparative Table for further information.

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SUPPLEMENT NO. 14
VOLUMES I and II
August 2009

MUNICIPAL CODE

City of

CINCINNATI, OHIO

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 0214-2009, effective July 24, 2009.

See the Ordinances Modifying the 1979 Municipal Code Comparative Table—volume II for further information.

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SUPPLEMENT NO. 13
VOLUMES I and II
February 2009

MUNICIPAL CODE

City of

CINCINNATI, OHIO

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 003-2009, effective February 14, 2009.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 12
VOLUMES I and II
August 2008

MUNICIPAL CODE

City of

CINCINNATI, OHIO

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 236-2008, effective July 25, 2008.

See the Ordinance Modifying the 1979 Municipal Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 11
VOLUMES I AND II
April 2008

MUNICIPAL CODE

City of

CINCINNATI, OHIO

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 0083-2008, effective April 12, 2008.

See the Ordinance Modifying The 1979 Municipal Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 10
VOLUMES I AND II
February 2008

MUNICIPAL CODE

City of

CINCINNATI, OHIO

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 0021-2008, effective February 15, 2008.

See the Ordinance Modifying The 1979 Municipal Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 9
VOLUMES I AND II
August 2007

MUNICIPAL CODE

City of

CINCINNATI, OHIO

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 0292-2007 effective September 1, 2007.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 8
VOLUMES I AND II
March 2007

MUNICIPAL CODE

City of

CINCINNATI, OHIO

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 0086-2007, effective February 28, 2007.

See the Ordinance Modifying The 1979 Municipal Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 7, REVISION
VOLUMES I AND II
October 2006

MUNICIPAL CODE

City of

CINCINNATI, OHIO

Looseleaf Supplement

This Supplement No. 7, Reeision, is printed to revise pages appearing in Supplement No. 7 and should be inserted as directed below.

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SUPPLEMENT NO. 7
VOLUMES I AND II
September 2006

MUNICIPAL CODE

City of

CINCINNATI, OHIO

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 171-2006, effective July 17, 2006.

See the Ordinance Modifying The 1979 Municipal Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 6
VOLUMES I AND II
April 2006

MUNICIPAL CODE

City of

CINCINNATI, OHIO

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 65-2006, effective April 14, 2006.

See the Ordinance Modifying The 1979 Municipal Code Comparative Table—Volume II for further information.

Included in the City Charter is:

Ordinance No. 317-2005, effective August 3, 2005, Election of November 9, 2005.

See the Ordinance Modifying The 1979 Municipal Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 5
VOLUMES I AND II
August 2005

MUNICIPAL CODE

City of

CINCINNATI, OHIO

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Emergency Ordinance No. 284-2005, effective July 28, 2005.

See the Ordinances Modifying The 1979 Municipal Code Comparative Table for further information.

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SUPPLEMENT NO. 4
VOLUMES I AND II
February 2005

MUNICIPAL CODE

City of

CINCINNATI, OHIO

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Emergency Ordinance No. 36-2005, effective January 26, 2005.

See the Ordinances Modifying The 1979 Municipal Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 3
VOLUMES I AND II
September 2004

MUNICIPAL CODE

City of

CINCINNATI, OHIO

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 267-2004, effective August 4, 2004.

See the Ordinances Modifying The 1979 Municipal Code Table—Volume II for further information.

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SUPPLEMENT NO. 2
VOLUMES I AND II
March 2004

MUNICIPAL CODE

City of

CINCINNATI, OHIO

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 15-2004, effective February 13, 2004.

See the Ordinances Modifying The 1979 Municipal Code Table—Volume II for further information.

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SUPPLEMENT NO. 1
VOLUMES I AND II
September 2003

MUNICIPAL CODE

City of

CINCINNATI, OHIO

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

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REPUBLICATION
VOLUMES I and II
January 2003

MUNICIPAL CODE

City of

CINCINNATI, OHIO

Looseleaf Supplement

This copy of the Cincinnati Municipal Code is issued as a "replacement" copy and contains all ordinances deemed advisable to be included through Ordinance No. 6-2003, effective February 7, 2003. See the Ordinances Modifying the 1979 Municipal Code Table for further information.

This copy replaces all existing copies of the Code, published in September, 1990. Future supplements will commence with Supplement No. 1.

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of the

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CINCINNATI, OHIO

Aftab Pureval
Mayor
Jan Michele Kearney
Vice Mayor

Victoria Parks, President Pro-Tem
Meeka Owens
Liz Keating
Scotty Johnson
Reggie Harris
Jeff Cramerding
Greg Landsman
Mark Jeffreys
City Council

Sheryl M.M. Long
City Manager

Emily Woerner
City Solicitor

Melissa Autry
Clerk of Council

PREFACE

This Code constitutes a republication of the general and permanent ordinances of the City of Cincinnati, Ohio.

Source materials used in the preparation of the Code were the 1945 Code, republished in 1990, as supplemented through Ordinance No. 41-2002, adopted February 13, 2002, and ordinances subsequently adopted by the City Council.

These volumes contain the charter of the city of Cincinnati, the administrative code, the zoning code, the regulations of the independent boards and commissions and the income tax regulations. Following each section is the history thereof. If the section was part of the 1956 recodification, reference is made to the corresponding section in the 1956 edition of the Code of Ordinances by the abbreviation C.O. Sections adopted between the 1956 Code and the 1972 recodification of the Cincinnati Municipal Code state the number of the section as adopted using the abbreviation Sec. with the enacting ordinance number. If the section was adopted subsequent to the 1972 recodification, reference is made to the Cincinnati Municipal Code section adopted using the abbreviation C.M.C. with the enacting ordinance number. The history also contains references to ordinances amending the section, other sections bearing upon the operation of the section, and occasional references to related statutes and cases which interpret, limit or affect the section. The code provisions were substantially renumbered in the 1972 recodification effective January 1, 1972 and therefore the history note of each section reflects whether the section was reordained with the same number or renumbered.

For convenience in locating corresponding sections in the Cincinnati Municipal Code and the 1956 Code of Ordinances, tables are included which set forth in numerical order the Code of Ordinance section numbers with parallel references to the Cincinnati Municipal Code and Cincinnati Municipal Code numbers with parallel references to the Code of Ordinances. A table of ordinances and their corresponding section numbers adopted after the publication of the 1956 edition of the Code is also included.

The text of Chapter 307, Classified Compensation Schedules, has been deleted from this publication of the code. The chapter numbers, divisions, and titles are retained and an official record of these sections is available in the office of clerk of council for public examination and reference. These sections relate specifically to city employees' compensation rates, and experience has shown that they are subject to frequent modification and supplementation. Accordingly it was determined to omit them because of their limited usefulness and frequent obsolescence.

Chapter and Section Numbering System

The chapter and section numbering system used in this Code is the same system used in many state and local government codes. Each section number consists of two parts separated by a dash. The figure before the dash refers to the chapter number, and the figure after the dash refers to the position of the section within the chapter. Under this system, each section is identified with its chapter, and at the same time new sections can be inserted in their proper place by using the decimal system for amendments.

Page Numbering System

The page numbering system used in this Code is a prefix system. The letters to the left of the colon are an abbreviation which represents a certain portion of the volume. The number to the right of the colon represents the number of the page in that portion. In the case of a chapter of the Code, the number to the left of the colon indicates the number of the chapter. In the case of an appendix to the Code, the letter immediately to the left of the colon indicates the letter of the appendix. The following are typical parts of codes of ordinances, which may or may not appear in this Code at this time, and their corresponding prefixes:

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Indices

The indices have been prepared with the greatest of care. Each particular item has been placed under several headings, some of which are couched in lay phraseology, others in legal terminology, and still others in language generally used by local government officials and employees. There are numerous cross references within the indices themselves which stand as guideposts to direct the user to the particular item in which the user is interested.

Looseleaf Supplements

A special feature of this publication is the looseleaf system of binding and supplemental servicing of the publication. With this

system, the publication will be kept up-to-date. Subsequent amendatory legislation will be properly edited, and the affected page or pages will be reprinted. These new pages will be distributed to holders of copies of the publication, with instructions for the manner of inserting the new pages and deleting the obsolete pages.

Keeping this publication up-to-date at all times will depend largely upon the holder of the publication. As revised pages are received, it will then become the responsibility of the holder to have the amendments inserted according to the attached instructions. It is strongly recommended by the publisher that all such amendments be inserted immediately upon receipt to avoid misplacing them and, in addition, that all deleted pages be saved and filed for historical reference purposes.

The City Bulletin, published by the clerk of council under the authority of council of the city of Cincinnati, sets forth the full text of all ordinances passed by the council. It is available at the office of the clerk or may be subscribed to on an annual basis.

Acknowledgments

This publication was under the direct supervision of Tassy Spinks, Editor, of Municode, Tallahassee, Florida. Credit is gratefully given to the other members of the publisher's staff for their sincere interest and able assistance throughout the project.

The publisher is most grateful to Maria Rodell, Assistant City Solicitor, and Amira Beer, Assistant to the City Solicitor, for their cooperation and assistance during the progress of the work on this publication. It is hoped that their efforts and those of the publisher have resulted in a Code of Ordinances which will make the active law of the city readily accessible to all citizens and which will be a valuable tool in the day-to-day administration of the city's affairs.

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ABBREVIATIONS USED IN THIS CODE

a.	amended, amended by
Adm.	Administrative Code
Art.	Article
C.F.P.C.	Cincinnati Fire Prevention Code
Chap.	Chapter
Chart.	Charter
C.M.C.	Cincinnati Municipal Code
C.O.	Code of Ordinances of the City of Cincinnati, 1956 edition
C.P.R.	City Planning Commission Regulations
C.O.B.B.C.	Cincinnati-Ohio Basic Building Code
C.S.R.	Civil Service Regulations
eff.	effective date
H.R.	Board of Health Regulations
I.T.R.	Income Tax Regulations
No.	Number
ORC	Ohio Revised Code
Ord.	Ordinance
P.R.	Park Board Regulations
r.	repealed, repealed by
R.C.	Rules of Council
Res.	Resolution
R.R.	Recreation Commission Regulations
Sec.	Section
Z.C.	Zoning Code

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The following listing is included in this Code as a ready guide for the user to determine whether the Code volume properly reflects the latest printing of each page.

In the first column all page numbers are listed in sequence. The second column reflects the latest printing of the pages as they should appear in an up-to-date volume. The letters "OC" indicate the pages have not been reprinted in the Supplement Service and appear as published for the original Code. When a page has been reprinted or printed in the Supplement Service, this column reflects the identification number or Supplement Number printed on the bottom of the page.

In addition to assisting existing holders of the Code, this list may be used in compiling an up-to-date copy from the original Code and subsequent Supplements.

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SUPPLEMENT HISTORY TABLE

The table below allows users of this Code to quickly and accurately determine what ordinances have been considered for codification in each supplement. Ordinances that are of a general and permanent nature are codified in the Code and are considered "Included." Ordinances that are not of a general and permanent nature, and ordinances affecting the Classified Compensation Schedules, are not codified in the Code and are considered "Omitted."

In addition, by adding to this table with each supplement, users of this Code of Ordinances will be able to gain a more complete picture of the Code's historical evolution.

Ord. No.	Date Adopted	Included/ Omitted
Supp. No. 17		
294-2010	8- 4-2010	Omitted
311-2010	8- 4-2010	Included
317-2010	8- 4-2010	Included
322-2010	8- 4-2010	Included
325-2010	8- 4-2010	Included
335-2010	9- 9-2010	Included
336-2010	9- 9-2010	Included
346-2010	9-29-2010	Included
353-2010	9-29-2010	Omitted
2010-07(Res.)	10- 1-2010	Included
359-2010	10-13-2010	Included
360-2010	10-13-2010	Included
363-2010	10-13-2010	Included
364-2010	10-13-2010	Included
367-2010	10-13-2010	Included
375-2010	10-20-2010	Omitted
411-2010	11-17-2010	Included
415-2010	11-24-2010	Included
416-2010	11-24-2010	Included
418-2010	11-24-2010	Included
453-2010	12-20-2010	Omitted
457-2010	12-23-2010	Included
459-2010	12-23-2010	Included
462-2010	12-30-2010	Included
463-2010	12-30-2010	Included
473-2010	12-30-2010	Omitted
CPC Rules	1- 7-2011	Included

Ord. No.	Date Adopted	Included/ Omitted
Supp. No. 18		
012-2011	2-26-2011	Included
042-2011	2-16-2011	Included
043-2011	2-16-2011	Included
044-2011	2-16-2011	Included
045-2011	2-16-2011	Included
046-2011	2-16-2011	Included
ZHE Rules	2-17-2011	Included
083-2011	3-16-2011	Included
078-2011	3-16-2011	Omitted
BOH Rules	2-22-2011	Included
BOH Rules	3-22-2011	Included
BOBA Rules	3- 3-2011	Included
053-2011	3- 2-2011	Included
054-2011	3- 2-2011	Included
081-2011	3-16-2011	Included
084-2011	3-16-2011	Included
085-2011	3-16-2011	Included
BOHA Rules	4-15-2011	Included
134-2011	5- 5-2011	Included
149-2011	5-11-2011	Included
175-2011	5-25-2011	Included
221-2011	7-22-2011	Included
247-2011	6-29-2011	Included
Supp. No. 19		
251-2011	8- 3-2011	Included
253-2011	8- 3-2011	Included
291-2011	9-14-2011	Included
HCB Rules	9-26-2011	Included
ZBA Rules	10-17-2011	Included
315-2011	10-19-2011	Included
328-2011	10-19-2011	Included
Amd. of BPC Rules	10-20-2011	Included
329-2011	10-26-2011	Included
343-2011	11-16-2011	Included
PC Rules	11-18-2011	Included
347-2011	11-16-2011	Included
349-2011	11-23-2011	Included
383-2011	12-14-2011	Included
384-2011	12-14-2011	Included
388-2011	12-14-2011	Included
390-2011	12-14-2011	Omitted
394-2011	12-14-2011	Included
395-2011	12-14-2011	Included
Amd. of BPC Rules	12-15-2011	Included
002-2012	1- 5-2012	Included

Ord. No.	Date Adopted	Included/ Omitted
Amd. of HCB Rules	1-23-2012	Included
Supp. No. 20		
252-2011(Emer.)	11- 8-2011	Included
283-2011(Emer.)	11- 8-2011	Included
028-2012	2-15-2012	Included
029-2012	2-15-2012	Included
030-2012	2-15-2012	Included
042-2012	2-29-2012	Included
053-2012	2-29-2012	Included
054-2012	2-29-2012	Included
055-2012	2-29-2012	Included
056-2012	2-29-2012	Included
057-2012	2-29-2012	Included
058-2012	2-29-2012	Included
059-2012	2-29-2012	Included
067-2012	3- 7-2012	Included
073-2012	3-14-2012	Omitted
080-2012(Emer.)	3-21-2012	Included
107-2012(Emer.)	4- 4-2012	Included
110-2012(Emer.)	4- 4-2012	Included
114-2012	4-18-2012	Included
124-2012	4-18-2012	Included
125-2012	4-18-2012	Included
131-2012	4-25-2012	Included
157-2012(Emer.)	5- 9-2012	Included
166-2012(Emer.)	5-16-2012	Included
169-2012(Emer.)	5-23-2012	Included
192-2012	6- 6-2012	Included
193-2012	6- 6-2012	Included
195-2012	6- 6-2012	Included
196-2012(Emer.)	6- 6-2012	Included
201-2012(Emer.)	6- 6-2012	Included
217-2012	6-20-2012	Included
218-2012(Emer.)	6-20-2012	Included
282-2012	6-26-2012	Included
285-2012	6-26-2012	Omitted
302-2012(Emer.)	8- 1-2012	Omitted
303-2012(Emer.)	8- 1-2012	Included
306-2012	8- 1-2012	Included
314-2012	8- 1-2012	Included
Supp. No. 21		
304-2012(Emer.)	8- 1-2012	Included
341-2012(Emer.)	9-19-2012	Included
Amd. of BPC Rules	9-20-2012	Included
349-2012(Emer.)	9-26-2012	Included
351-2012(Emer.)	9-26-2012	Included

Ord. No.	Date Adopted	Included/ Omitted
363-2012	10-11-2012	Included
364-2012	10-11-2012	Included
370-2012	10-17-2012	Included
378-2012(Emer.)	10-24-2012	Included
401-2012	10-24-2012	Included
Amd. of BOH Rules	12- 1-2012	Included
404-2012	11- 7-2012	Included
Amd. of BPC Rules	11-15-2012	Included
435-2012	11-15-2012	Included
449-2012	11-28-2012	Included
451-2012	12- 5-2012	Omitted
452-2012	12- 5-2012	Omitted
453-2012	12- 5-2012	Omitted
454-2012	12- 5-2012	Omitted
008-2013(Emer.)	1-16-2013	Included
020-2013	1-30-2013	Included
021-2013	1-30-2013	Included
022-2013	1-30-2013	Included
Supp. No. 22		
463-2012	12-14-2012	Included
475-2012(Emer.)	12-14-2012	Included
476-2012(Emer.)	12-14-2012	Included
486-2012(Emer.)	12-14-2012	Included
487-2012(Emer.)	12-14-2012	Included
489-2012	12-14-2012	Included
041-2013(Emer.)	2-20-2013	Included
045-2013(Emer.)	2-27-2013	Included
058-2013(Emer.)	3- 6-2013	Included
060-2013(Emer.)	3- 6-2013	Included
061-2013(Emer.)	3- 6-2013	Included
064-2013(Emer.)	3-22-2013	Included
075-2013	4-10-2013	Omitted
077-2013(Emer.)	4-10-2013	Included
082-2013(Emer.)	4-10-2013	Included
083-2013(Emer.)	4-10-2013	Included
085-2013	4-10-2013	Included
096-2013(Emer.)	4-17-2013	Included
99-2013	4-24-2013	Included
102-2013	5- 1-2013	Included
114-2013	5- 1-2013	Included
126-2013(Emer.)	5-15-2013	Included
142-2013(Emer.)	5-30-2013	Included
154-2013(Emer.)	5-30-2013	Included
155-2013(Emer.)	5-30-2013	Included
156-2013	5-30-2013	Omitted
157-2013(Emer.)	5-30-2013	Included

Ord. No.	Date Adopted	Included/ Omitted
158-2013(Emer.)	5-30-2013	Included
172-2013	6-12-2013	Included
193-2013(Emer.)	6-26-2013	Included
208-2013(Emer.)	6-26-2013	Included
211-2013(Emer.)	6-26-2013	Included
Supp. No. 23		
146-2013	5-30-2013	Included
Amd. of CSC Rules	7-25-2013	Included
212-2013(Emer.)	8- 7-2013	Included
259-2013	8- 7-2013	Included
235-2013	8- 7-2013	Included
Amd. of HCB Rules	8-13-2013	Included
264-2013	9-11-2013	Included
265-2013	9-11-2013	Omitted
266-2013	9-11-2013	Omitted
267-2013	9-11-2013	Omitted
270-2013	9-11-2013	Omitted
278-2013	9-11-2013	Included
281-2013	9-25-2013	Included
295-2013(Emer.)	9-25-2013	Included
296-2013(Emer.)	9-25-2013	Included
297-2013	9-25-2013	Included
Amd. of ZHE Rules	11- 1-2013	Included
388-2013	11-20-2013	Included
390-2013	11-20-2013	Omitted
Supp. No. 24		
Amd. of ZBA Rules	2-20-2014	Included
028-2014(Emer.)	3- 5-2014	Included
035-2014	3-12-2014	Included
042-2014(Emer.)	3-19-2014	Included
091-2014	5- 7-2014	Included
110-2014	5-29-2014	Included
114-2014(Emer.)	6- 4-2014	Included
131-2014(Emer.)	6- 4-2014	Included
Supp. No. 25		
243-2014	8- 6-2014	Included
252-2014	9- 4-2014	Included
254-2014(Emer.)	9- 4-2014	Included
267-2014(Emer.)	9-17-2014	Included
309-2014	11-29-2014	Included
2014-20(Res.)	11-28-2014	Included
311-2014	11- 5-2014	Included
2013-08(Res.)	12- 1-2013	Included
116-2014(Emer.)	7- 1-2014	Included
154-2014(Emer.)	6-11-2014	Included
341-2014(Emer.)	12- 3-2014	Omitted

Ord. No.	Date Adopted	Included/ Omitted
364-2014(Emer.)	12-17-2014	Included
0006-2015(Emer.)	1-14-2015	Included
016-2015	1-22-2015	Included
026-2015(Emer.)	2- 4-2015	Included
027-2015	2- 4-2015	Included
2014-19(Res.)	3- 1-2015	Included
Supp. No. 26		
044-2015(Emer.)	2-19-2015	Included
062-2015	3- 4-2015	Included
Amd. of HCB Rules	3-23-2015	Included
075-2015(Emer.)	3-25-2015	Included
086-2015	4- 8-2015	Included
141-2015(Emer.)	6- 3-2015	Included
167-2015(Emer.)	6-10-2015	Included
176-2015(Emer.)	6-17-2015	Included
183-2015(Emer.)	6-17-2015	Included
236-2015(Emer.)	6-24-2015	Included
238-2015(Emer.)	7- 1-2015	Included
242-2015	7-24-2015	Omitted
244-2015(Emer.)	7- 1-2015	Included
Supp. No. 27		
185-2015	6-17-2015	Included
255-2015(Emer.)	7- 1-2015	Included
287-2015(Emer.)	11- 3-2015	Included
288-2015(Emer.)	11- 3-2015	Included
307-2015	9-30-2015	Included
308-2015	9-30-2015	Included
342-2015	10-28-2015	Included
343-2015	11- 4-2015	Included
344-2015(Emer.)	11-12-2015	Included
354-2015(Emer.)	11-12-2015	Included
Amd. of BOH Rules	12- 1-2015	Included
363-2015(Emer.)	12- 2-2015	Included
373-2015	1- 9-2016	Included
376-2015(Emer.)	1- 1-2016	Included
397-2015(Emer.)	12-16-2015	Included
007-2016(Emer.)	1- 8-2016	Included
022-2016	2- 3-2016	Included
Supp. No. 28		
100-2015(Emer.)	4-29-2015	Included
065-2016(Emer.)	3-16-2016	Included
069-2016	3-23-2016	Included
071-2016	3-23-2016	Included
082-2016(Emer.)	4- 6-2016	Omitted
2016-02(Res.)	4-26-2016	Included
112-2016	5- 4-2016	Included

Ord. No.	Date Adopted	Included/ Omitted
091-2016	4-27-2016	Included
092-2016	4-27-2016	Included
093-2016	4-27-2016	Included
136-2016	6- 2-2016	Included
156-2016(Emer.)	6-15-2016	Included
Supp. No. 29		
271-2016	8- 3-2016	Included
275-2016	8- 3-2016	Included
282-2016(Emer.)	8- 3-2016	Included
306-2016	9-28-2016	Included
308-2016(Emer.)	9-28-2016	Included
321-2016(Emer.)	10-12-2016	Included
325-2016(Emer.)	10-12-2016	Included
327-2016	10-19-2016	Included
328-2016	10-19-2016	Included
329-2016(Emer.)	10-19-2016	Included
336-2016	10-26-2016	Included
343-2016	11- 2-2016	Included
344-2016(Emer.)	11- 2-2016	Included
357-2016(Emer.)	12- 7-2016	Included
376-2016	12- 7-2016	Included
380-2016	12- 7-2016	Included
384-2016	1-11-2017	Included
Supp. No. 30		
052-2017(Emer.)	3- 1-2017	Included
096-2017(Emer.)	5-17-2017	Included
Amd. of ZBA Rules	5-18-2017	Included
133-2017	6- 7-2017	Included
134-2017	6- 7-2017	Included
137-2017	6-14-2017	Included
152-2017(Emer.)	6-21-2017	Included
154-2017	6-21-2017	Included
185-2017	6-28-2017	Included
Supp. No. 31		
0186-2017	8- 9-2017	Included
0228-2017	8- 9-2017	Included
0249-2017(Emer.)	9-13-2017	Included
0258-2017	9-20-2017	Included
0260-2017	9-20-2017	Included
0281-2017	10- 4-2017	Included
304-2017(Emer.)	10-25-2017	Included
Amd. of BPC Rules	11-16-2017	Included
319-2017(Emer.)	12- 6-2017	Included
337-2017	12- 6-2017	Included
Amd. of BOBA Rules	12- 7-2017	Included
345-2017	12-20-2017	Included

Ord. No.	Date Adopted	Included/ Omitted
357-2017(Emer.)	12-20-2017	Included
372-2017	12-20-2017	Included
Amd. of Council Rules	1- 2-2018	Included
Supp. No. 32		
2017-01(Res.)	9-26-2017	Included
026-2018(Emer.)	2-22-2018	Included
019-2018	2-22-2018	Included
042-2018(Emer.)	3-14-2018	Included
055-2018(Emer.)	3-21-2018	Included
068-2018(Emer.)	4- 4-2018	Included
090-2018	5- 2-2018	Included
091-2018(Emer.)	5- 9-2018	Included
104-2018	5-16-2018	Included
127-2018	6- 6-2018	Included
131-2018	6- 6-2018	Included
147-2018	6-13-2018	Included
160-2018	6-20-2018	Included
163-2018(Emer.)	6-27-2018	Included
164-2018(Emer.)	6-27-2018	Included
165-2018(Emer.)	6-27-2018	Included
166-2018(Emer.)	6-27-2018	Included
167-2018(Emer.)	6-27-2018	Included
168-2018(Emer.)	6-27-2018	Included
186-2018	6-27-2018	Included
219-2018(Emer.)	6-27-2018	Included
223-2018(Emer.)	6-27-2018	Included
Supp. No. 33		
323-2018(Emer.)	10-10-2018	Included
343-2018(Emer.)	10-31-2018	Included
348-2018	10-31-2018	Included
226-2018(Emer.)	11- 6-2018	Included
227-2018(Emer.)	11- 6-2018	Omitted
228-2018(Emer.)	11- 6-2018	Included
229-2018(Emer.)	11- 6-2018	Included
230-2018(Emer.)	11- 6-2018	Included
252-2018(Emer.)	11- 6-2018	Included
363-2018(Emer.)	12-12-2018	Included
375-2018(Emer.)	12-12-2018	Included
0037-2019(Emer.)	1-30-2019	Included
Supp. No. 34		
0292-2018(Emer.)	9- 9-2018	Included
Amd. of ZBA Rules	1-17-2019	Included
0050-2019(Emer.)	2- 6-2019	Included
0052-2019	2-13-2019	Included
Amd. of BPC Rules	8-16-2018	Included
0076-2019	3- 6-2019	Omitted

Ord. No.	Date Adopted	Included/ Omitted
Amd. of Rules of Council	3- 1-2019	Included
0083-2019	3-13-2019	Included
0084-2019	3-13-2019	Omitted
0093-2019	3-20-2019	Included
0096-2019(Emer.)	3-27-2019	Omitted
0120-2019	4-17-2019	Included
0125-2019	4-24-2019	Included
0127-2019	4-24-2019	Included
0175-2019	6-12-2019	Included
0206-2019(Emer.)	6-19-2019	Included
0218-2019(Emer.)	6-19-2019	Included
0219-2019(Emer.)	6-19-2019	Included
0267-2019(Emer.)	6-26-2019	Included
0270-2019(Emer.)	6-26-2019	Omitted
0294-2019(Emer.)	6-26-2019	Omitted
0295-2019(Emer.)	6-26-2019	Included
0217-2019	6-19-2019	Included
0251-2019	6-26-2019	Included
Amd. of Rules of Council	7-10-2019	Included
Supp. No. 35		
0334-2017	12- 6-2017	Included
0315-2019	8- 7-2019	Omitted
0324-2019	8- 7-2019	Included
0337-2019	9-11-2019	Included
0351-2019	9-18-2019	Included
351-2019	10- 9-2019	Included
0359-2019	9-25-2019	Included
0378-2019	10- 2-2019	Included
0402-2019	10-30-2019	Included
0403-2019	10-30-2019	Included
0404-2019	10-30-2019	Included
0405-2019	10-30-2019	Included
0406-2019	10-30-2019	Included
0419-2019(Emer.)	11-14-2019	Included
0447-2019(Emer.)	11-14-2019	Omitted
0448-2019(Emer.)	11-14-2019	Omitted
0490-2019(Emer.)	12-11-2019	Included
0500-2019	12-11-2019	Omitted
0531-2019(Emer.)	12-18-2019	Omitted
4028-2019(Emer.)	11-14-2019	Included
0004-2020	1- 8-2020	Omitted
0007-2020(Emer.)	1- 8-2020	Included
0010-2020	1-15-2020	Included
0011-2020(Emer.)	1-15-2020	Included
0012-2020	1-15-2020	Included
0023-2020(Emer.)	1-29-2020	Omitted

Ord. No.	Date Adopted	Included/ Omitted
Supp. No. 36		
0296-2019(Emer.)	11- 5-2019	Included
0032-2020(Emer.)	2- 5-2020	Omitted
0033-2020(Emer.)	2- 5-2020	Omitted
0034-2020(Emer.)	2- 5-2020	Omitted
0061-2020(Emer.)	2-20-2020	Omitted
0063-2020(Emer.)	2-20-2020	Omitted
0064-2020(Emer.)	2-20-2020	Omitted
0079-2020	3-11-2020	Omitted
0096-2020(Emer.)	3-20-2020	Included
0098-2020(Emer.)	4- 1-2020	Included
0099-2020(Emer.)	4- 1-2020	Included
0100-2020(Emer.)	4- 1-2020	Included
0137-2020(Emer.)	4-29-2020	Included
0142-2020(Emer.)	5-13-2020	Included
0157-2020	5-28-2020	Included
0164-2020(Emer.)	5-28-2020	Included
0198-2020	6-24-2020	Included
0225-2020(Emer.)	6-24-2020	Included
0229-2020(Emer.)	6-24-2020	Omitted
Amd. of Rules of Council	3- 9-2020	Included
0254-2020(Emer.)	8- 5-2020	Included
Supp. No. 37		
292-1994(Emer.)	8- 3-1994	Included
0346-2019(Emer.)	9-18-2019	Included
0296-2020(Emer.)	9- 2-2020	Omitted
0297-2020(Emer.)	9- 2-2020	Omitted
0298-2020(Emer.)	9- 2-2020	Omitted
0300-2020	9-10-2020	Included
0358-2020(Emer.)	10-28-2020	Included
0380-2020(Emer.)	11-12-2020	Included
0409-2020	12-16-2020	Omitted
0013-2021	1-21-2021	Included
0014-2021(Emer.)	1-21-2021	Included
Supp. No. 38		
0033-2021	2- 3-2021	Included
0045-2021(Emer.)	2-10-2021	Included
0046-2021(Emer.)	2-10-2021	Included
0056-2021	2-18-2021	Included
0057-2021(Emer.)	2-18-2021	Included
0125-2021(Emer.)	4-21-2021	Omitted
0143-2021	4-16-2021	Included
0145-2021	4-28-2021	Included
0170-2021(Emer.)	5-19-2021	Included
0177-2021	5-19-2021	Included
0196-2021(Emer.)	5-26-2021	Included

Ord. No.	Date Adopted	Included/ Omitted
0197-2021	5-26-2021	Omitted
0199-2021	5-26-2021	Omitted
0200-2021	5-26-2021	Omitted
0226-2021(Emer.)	6- 2-2021	Omitted
0228-2021(Emer.)	6- 2-2021	Included
0248-2021	6-23-2021	Included
0263-2021(Emer.)	6-23-2021	Included
0296-2021	6-23-2021	Omitted
0297-2021	6-23-2021	Included
0298-2021(Emer.)	6-23-2021	Included
0335-2021(Emer.)	8- 4-2021	Included
0336-2021(Emer.)	8- 4-2021	Included
Supp. No. 39		
0347-2021(Failed)	9- 2-2021	Omitted
0339-2021	9- 2-2021	Included
0348-2021	9- 2-2021	Included
0353-2020(Emer.)	10-14-2020	Included
0366-2021(Emer.)	9-15-2021	Omitted
0367-2021	9-15-2021	Omitted
0377-2021(Emer.)	9-22-2021	Included
0378-2021	9-22-2021	Included
0379-2021(Failed)	10- 6-2021	Omitted
0405-2021(Emer.)	10-20-2021	Included
0413-2021(Emer.)	10-27-2021	Included
0415-2021	10-27-2021	Included
0416-2021(Emer.)	10-27-2021	Included
0418-2021(Emer.)	11-10-2021	Included
0419-2021	11-10-2021	Included
0429-2021	11-10-2021	Included
0455-2021(Emer.)	12- 8-2021	Included
0482-2021	12- 8-2021	Included
0484-2021	12- 8-2021	Included
0485-2021(Emer.)	12- 8-2021	Omitted
0490-2021(Emer.)	12-15-2021	Included
0012-2022	1-26-2022	Included
Supp. No. 40		
021-2021(Emer.)	4-14-2021	Included
0028-2022	2- 9-2022	Included
0055-2022(Emer.)	3- 2-2022	Included
0060-2022	3- 9-2022	Included
0061-2022(Emer.)	3- 9-2022	Included
0075-2022(Emer.)	3-23-2022	Omitted
0076-2022(Emer.)	3-23-2022	Omitted
0102-2022(Emer.)	4-27-2022	Included
0108-2022	4-27-2022	Included
0130-2022	5-25-2022	Included

Ord. No.	Date Adopted	Included/ Omitted
0131-2022	5-25-2022	Included
0138-2022(Emer.)	6- 2-2022	Included
0162-2022(Emer.)	6-15-2022	Included
0231-2022(Emer.)	6-29-2022	Omitted
0232-2022(Emer.)	6-29-2022	Included
Supp. No. 41		
Amd. of Rules of Council	6-16-2022	Included
0264-2022(Emer.)	11- 8-2022	Included
0283-2022	9-14-2022	Included
0301-2022	9-21-2022	Included
0318-2022(Emer.)	10-12-2022	Omitted
0320-2022	10-12-2022	Included
0330-2022(Emer.)	10-19-2022	Omitted
0338-2022	10-26-2022	Included
0343-2022	11- 2-2022	Included
2022-03(Res.)	10-25-2022	Included
0390-2022(Emer.)	12-14-2022	Omitted
0398-2022(Emer.)	12-21-2022	Omitted
0399-2022(Emer.)	12-21-2022	Omitted
0008-2023	1-11-2023	Included
0011-2023	1-11-2023	Included
0034-2023(Emer.)	2- 1-2023	Included
0037-2023(Emer.)	2- 8-2023	Included
0046-2023(Emer.)	2- 8-2023	Omitted
0047-2023(Emer.)	2- 8-2023	Omitted
Supp. No. 42		
2019-0723(Res.)	7-23-2019	Included
0387-2022(Emer.)	12-24-2022	Included
0060-2023(Emer.)	2-23-2023	Omitted
Amend. of CPC Rules	3- 3-2023	Included
0075-2023(Emer.)	3- 8-2023	Omitted
0076-2023(Emer.)	3- 8-2023	Included
0107-2023(Emer.)	3-24-2023	Included
0121-2023	4-12-2023	Included
0133-2023(Emer.)	4-19-2023	Omitted
0134-2023(Emer.)	4-19-2023	Omitted
0138-2023	4-19-2023	Included
0267-2023	6-26-2023	Included
0287-2023	8- 2-2023	Included
0289-2023	8- 2-2023	Included
0715-2023(Emer.)	5-24-2023	Included
Supp. No. 43		
0266-2023	6-26-2023	Included
0288-2023	8- 2-2023	Included
0291-2023(Emer.)	11- 7-2023	Included
0312-2023	9- 2-2023	Included

Ord. No./Res. No.	Date Adopted	Included/ Omitted
0314-2023	9- 2-2023	Omitted
0315-2023	9- 2-2023	Included
0318-2023	9-20-2023	Included
0328-2023(Emer.)	10- 4-2023	Omitted
0329-2023(Emer.)	10- 4-2023	Omitted
0330-2023	10- 4-2023	Included
0339-2023(Emer.)	10- 4-2023	Included
0376-2023	11-15-2023	Included
0389-2023	11-15-2023	Included
0391-2023	11-15-2023	Included
0408-2023(Emer.)	12- 6-2023	Included
0413-2023(Emer.)	12- 6-2023	Included
0414-2023	12- 6-2023	Included
0415-2023	12- 5-2023	Included
0416-2023(Emer.)	12- 6-2023	Included
0426-2023(Emer.)	12-13-2023	Included
0427-2023(Emer.)	12-13-2023	Included
0016-2024(Emer.)	1-10-2024	Included
0037-2024	1-31-2024	Included
0038-2024(Emer.)	1-31-2024	Included
Supp. No. 44		
0021-2024(Emer.)	1-24-2024	Included
0109-2024	3-27-2024	Included
0141-2024	5- 8-2024	Included
0153-2024	5-15-2024	Included
163-2024	5-15-2024	Included
0171-2024	5-22-2024	Included
2024-001(Res.)	5-28-2024	Included
0199-2024(Emer.)	6- 5-2024	Included
0201-2024(Emer.)	6- 5-2024	Omitted
0248-2024(Emer.)	6-12-2024	Included
0249-2024(Emer.)	6-12-2024	Omitted
0250-2024(Emer.)	6-12-2024	Omitted
0251-2024(Emer.)	6-12-2024	Omitted
Supp. No. 45		
0425-2023(Emer.)	12-13-2023	Included
0272-2024(Emer.)	8- 7-2024	Included
0275-2024(Emer.)	8- 7-2024	Included
0281-2024	9- 5-2024	Included
0282-2024	9- 5-2024	Included
0283-2024(Emer.)	9- 5-2024	Included
0299-2024	9-18-2024	Included
0300-2024	9-18-2024	Omitted
0301-2024	9-18-2024	Omitted
0302-2024	9-18-2024	Omitted
0317-2024(Emer.)	10- 2-2024	Included

Ord. No./Res. No.	Date Adopted	Included/ Omitted
0347-2024	10-30-2024	Included
0359-2024(Emer.)	10-30-2024	Included
0360-2024(Emer.)	10-30-2024	Included
0390-2024	11-20-2024	Included
0391-2024	11-20-2024	Included
0392-2024(Emer.)	11-20-2024	Included
0414-2024	12-11-2024	Omitted
0415-2024	12-11-2024	Omitted
0416-2024	12-11-2024	Included
0417-2024	12-11-2024	Omitted
0012-2025	1-23-2025	Omitted
0013-2025	1-23-2025	Omitted
0014-2025	1-23-2025	Omitted
Supp. No. 46		
0039-2025	2-26-2025	Included
0044-2025	3- 5-2025	Omitted
0045-2025	3- 5-2025	Omitted
0046-2025	3- 5-2025	Omitted
0047-2025	3- 5-2025	Omitted
0059-2025	3-19-2025	Included
0060-2025(Emer.)	3-19-2025	Omitted
0095-2025	4-16-2025	Included
0096-2025	4-16-2025	Included
0146-2025	5-29-2025	Omitted
0149-2025	5-29-2025	Omitted
0173-2025	6-11-2025	Included
0176-2025	6-11-2025	Included
0177-2025	6-11-2025	Omitted
0178-2025(Emer.)	6-11-2025	Included
0259-2025(Emer.)	8- 6-2025	Included
0265-2025(Emer.)	8- 6-2025	Included
0266-2025(Emer.)	8- 6-2025	Included
0267-2025(Emer.)	8- 6-2025	Omitted
Supp. No. 47		
0263-2025(Emer.)	8- 6-2025	Included
0264-2025(Emer.)	8- 6-2025	Included
0279-2025(Emer.)	9- 4-2025	Omitted
0280-2025(Emer.)	9- 4-2025	Omitted
0281-2025(Emer.)	9- 4-2025	Omitted
0289-2025	9-10-2025	Included
0335-2025	10-22-2025	Included
0356-2025(Emer.)	11-13-2025	Included
0411-2025(Emer.)	12-10-2025	Omitted
0412-2025(Emer.)	12-10-2025	Omitted
0001-2026	1-14-2026	Included
0010-2026	1-14-2026	Included

CHARTER
of the
CITY OF CINCINNATI

Article I.	Powers of the City
Article II.	Legislative Power
Article III.	Mayor
Article IV.	Executive and Administrative Service
Article V.	Civil Service
Article VI.	Institutions (Repealed)
Article VII.	Boards and Commissions
Article VIII.	Taxation and Finance
Article IX.	Nominations and Elections
Article X.	Miscellaneous (Repealed)
Article XI.	Fluoridation of Water
Article XII.	No Special Class Status May Be Granted Based Upon Sexual Orientation, Conduct or Relationships (Repealed)
Article XIII.	Campaign Finance
Article XIV.	Limitations on Use of Photo-Monitoring Devices to Detect Certain Traffic Law Violations
Article XV.	Prevention of the Transfer or Sale of Any Assets of the City of Cincinnati, or Any of Its Boards or Commissions, to Any Regional Water District, or Any Regional Water and Sewer District, Formed Pursuant to Ohio Revised Code Chapter 6119
Article XVI.	Against a Tax or Assessment on Trash Collection

HISTORICAL

Under the Constitution of the State of Ohio as it existed up to 1912, all legislation relating to cities was inclined to be "general legislation," that is, applied uniformly to all cities of the state. This was true of all cities which did not adopt a home rule charter.

However, on September 3, 1912, a constitutional amendment (Article 18, Section 3) was adopted, extending to municipalities the power to adopt charters with a greater amount of home rule provision than existed previous to that date. This authority, if taken advantage of and passed upon favorably by the citizens, would permit such cities as desired "to exercise all power of local self-government and to adopt and enforce within their limits such local police, sanitary and other similar regulations as would not conflict with general laws."

The history of the municipal government in Ohio has been a constant struggle between cities trying to obtain legislation suited to their respective needs, and the legislature trying to ward off the demand for special legislation which threatened to consume all its time.

Originally the legislature could enact special legislation for each separate city, but the demand for such legislation was so great that the constitution of 1851 provided that no such special laws should be further passed. The demand for special treatment for municipalities different from each other in every conceivable way was so insistent, however, that the constitutional provision was circumvented by classifying cities according to population so that each city was practically in a class by itself.

Again the legislature was overwhelmed by local legislation about which it was almost entirely ignorant. In 1902 the Supreme Court of Ohio declared this type of legislation to be unconstitutional and the legislature was obliged to frame a municipal code applying hard and fast rules to every city in the state. Finally the demand for treating cities according to their needs resulted in the passage of the 1912 amendment allowing each city to adopt a charter for itself.

The reader can see from this explanation that Cincinnati, or any other city under the old regulation, could only enact laws for its government through the state legislature. If the law were changed for Cincinnati, it would be changed for any other city, and in the case of a change by other municipalities, Cincinnati would be obliged to follow under the same new law.

Legislatures, chiefly composed of legislators from districts remote from municipalities who were not familiar with the various cities, would cause the passage of some of these regulations. Again the reader can see the fallacy of such procedure.

FIRST CHARTER 1802

The act to incorporate the town of Cincinnati was passed at the first session of the Second General Assembly at Chillicothe and approved by Governor Arthur St. Clair, January 1, 1802.

CHARTER 1815

The first charter under Act of 1802 was repealed by an act of January 10, 1815. This act, effective April 1, 1815, reincorporated the territory covered by the first act. The officers of the town were mayor, recorder and trustee.

CHARTER 1819
(First City Charter)

Cincinnati's life as a city began with its first charter in 1819, when by an act of the General Assembly it was vested with the power of a council, composed of president, recorder and nine trustees. This act was

passed February 5, 1819 and by virtue of an emergency act took effect March 1, the same year.

Several acts were passed during 1821 and 1824 wherein provisions for election of additional officers and division of cities were added to the charter.

CHARTER 1827

On January 26, 1827 the second act incorporating the city of Cincinnati as a city was passed repealing all other acts. This act took effect March 1, 1827. Some amendments were added to this chapter in 1829 to enlarge its scope.

CHARTER 1834

On March 1, 1834 there was passed "An Act to incorporate and establish the City of Cincinnati and for revising and repealing all laws and parts of laws heretofore enacted on that subject."

The act, superseding the charter of 1827, remained the fundamental law of the city until the adoption of the new state constitution in 1851.

STATE CONSTITUTION 1851

After the adoption of the state constitution in 1851, cities were governed by general laws which were modified by the state legislature almost every year.

CHARTER 1917

After the amendment to the state constitution of 1912, which provided ways and means of securing a charter for the various cities, an attempt was made to adopt a charter under these provisions in Cincinnati. This first attempt was unsuccessful, but on November 6, 1917 the voters of Cincinnati approved a new charter that was to provide home rule except in taxation matters.

1924 AMENDMENTS

The 1917 charter was amended in 1924 by the voters of Cincinnati, establishing the city manager form of government and the small council nominated by petition and elected at large by the proportional representation method of voting.

CHARTER 1926

The committee that wrote the 1924 amendment realized that the charter would have to be further amended to make it conform to the city manager form of government and to give our city real home rule. They therefore provided that a charter commission be appointed by council in July, 1926. Accordingly, council appointed three Cincinnatians as follows:

Robert Taft, formerly floor leader of the House of Representatives at Columbus, Ohio.

Robert Gorman, who had been Solicitor in a number of communities of Hamilton County and who had experience in interpreting municipal law.

Henry Bentley, president of the City Charter Committee, who assisted in writing the amendment passed by the people in 1924 and under whose leadership the amendment was adopted.

Howard Bevis, Professor of Law of the University of Cincinnati, who was appointed secretary of the commission.

The charter was drafted and three public hearings were held in accordance with law. Some minor changes were made in the original draft which was finally presented to the voters in November, 1926, adopted, and is the charter of the city of Cincinnati and the fundamental law of our municipality.

1947 AMENDMENT

The General Assembly of Ohio, on June 26, 1946, amended Section 4003-11 of the Ohio

Municipal Code empowering city council to increase the amount of taxes assessed and levied for the support of the municipal university from .55 of a mill to 1 mill.

In a resolution adopted by the board of directors of the University of Cincinnati on July 29, 1947, the board not only requested a.55 of a mill levy for university purposes for the fiscal year of 1948, but also requested council to effectuate the amended state law by submitting to the electorate at the November 4, 1947 general election, a charter amendment to provide for the additional.46 of a mill levy for university purposes.

The amendment (Section 3a of Article VIII) was approved by the electorate.

1949 AMENDMENTS

The city council in 1949 determined that the city charter should be reviewed and a study made, in order that consideration could be given by council to amendments or supplements which such a study might indicate were advisable and necessary, and to be submitted to the electorate at the November 8, 1949 general election.

To accomplish this purpose an ordinance was passed unanimously by council appointing a committee of three citizens of Cincinnati to make such a study. The members of this committee were:

B. Gates Dawes, Jr., insurance executive.

Robert P. Goldman, lawyer, associated with Paxton & Seasongood, Attorneys.

Stanley G. McKie, state senator of Ohio, and vice-president and secretary of Weil, Roth & Irving, municipal and corporation bond brokers.

The committee held appropriate hearings and submitted a report embodying a number of amendments. The report advised council that the committee had recommended only amendments which had the unanimous approval of its members.

After due consideration council determined to submit certain of the amendments and withhold submission of the balance.

The amendments were submitted at the November election and approved by the electorate:

Article II, Section 3 - Ordinances prescribing rates and charges by publicly-owned public utilities may not contain emergency clauses unless introduced at least three weeks before final vote is taken and public hearing held.

Article II, Sections 4 and 5 - Article III, Sections 1 and 2 - Beginning with the council elected at the November 6, 1950 election, the two-year term of office will commence on December 1st instead of January 1st.

Article IV, Section 6 - Article IV, Section 10 - The office of city auditor was replaced by a department of finance and the city manager authorized to appoint a director of finance, and other subordinates, including a city treasurer. Section 8 of Article IV was repealed which related to appointment of city auditor.

Article IX, Section 2 - Nominating petitions for council candidates may contain up to eight hundred signatures instead of seven hundred signatures, the minimum remaining at five hundred signatures.

Article IX, Section 10 - Amendment in subparagraph (i), pertaining to council candidates who have surplus votes, and providing a modified procedure for designating ballots taken for surplus.

1950 AMENDMENTS

The electorate, at the November 7, 1950 general election approved amendments in Article V, creating supplemental Sections 5 and 6, which establish the ranks for members

of the police force and fire force engaged in their respective fire protection and police services, and also pertain to eligibility for promotion, and promotional examination.

The electorate at the same election also approved amendment of Article V, Section 3 - Modification that "except as provided in this Charter," council shall have no power to modify state law relating to civil service and civil service commission.

These amendments were submitted pursuant to ordinance passed by the city council.

1953 AMENDMENTS

Article II, Section 4 - This amendment provided for increasing the compensation of council members from $5,000.00 to $8,000.00 per annum.

Article II, Section 4a - A supplementary section requiring councilmen-elect to file with council, or with clerk, a successor designation certificate before taking office, certifying the names of one or more of his fellow members to select his successor in case of his office becoming vacant due to any cause whatever.

1957 AMENDMENTS

Article IX, Section 5, Section 10 - Changed the method of electing members of city council by providing for the use of the 9 X system rather than the proportional representation system of voting.

Article VIII, Section 6a - A supplementary section providing that if council shall at any time levy a tax on earned income, such tax shall not exceed one percent without having obtained approval by the electors.

1960 AMENDMENT

Article VI, Section 3 - This amendment provided that, notwithstanding the provisions of Article VI, Section 2, city council may, by ordinance approved by resolution adopted by the board of directors of the University of Cincinnati, provide for transfer, for fixed or indefinite period of time, of control and direction of administrative and executive work of General Hospital from the city manager to the board of directors of the university. (Ordinance No. 107-1961, passed by city council April 5, 1961 effectuated such transfer.)

1962 AMENDMENT

Article VIII, Section 3b - This amendment authorized city council to levy an additional tax of one mill, over and above the amounts authorized by Sections 3 and 3a of Article VIII of the charter, for the purposes of the University of Cincinnati.

1964 AMENDMENTS

Article V, Section 7 - This amendment was submitted to the electors at the general election on November 3, 1964, by Ordinance No. 326-1964, passed by Cincinnati city council August 5, 1964, pursuant to petitions filed with council July 21, 1964, signed by more than 10% of the electors of the city of Cincinnati as required by law. The amendment provides for equal rates of pay for corresponding ranks in the fire and police forces of the city of Cincinnati.

Article IX, Section 10 - This amendment was submitted to the electors at the general election on November 3, 1964, by Ordinance No. 317-1964, passed by Cincinnati city council on August 5, 1964. The amendment provides that in the event council provides for mechanical or other devices for marking and sorting of ballots and tabulating the results for election of council such election shall be conducted in accordance with existing laws of the state of Ohio or laws thereafter in force relating to voting and tabulating equipment.

1967 AMENDMENT

Article VI, Section 6 - This amendment was submitted to the electors at the general

HISTORICAL

Article II, Section 7 of the charter required the adoption by majority vote of council of an administrative code providing for a complete plan of administrative organization of the city government within six months of the adoption of the charter which occurred on November 2, 1926. Thereafter, except as provided specifically in the charter, council was authorized to change, abolish, combine and rearrange the departments, divisions, and board of the city government as provided for in the administrative code so adopted; but any ordinance creating, combining, abolishing, or decreasing the powers of any department, division, or board requires the approval by vote of three-quarters of the members elected to council.

THE 1927 ADMINISTRATIVE CODE

The original administrative code contained nineteen articles and was adopted in 1927. It became Chapter 2 of Title II of the 1928 Code of Ordinances and did not include material covering boards, commissions and institutions of the city, which constituted Chapter 3 of Title II of the 1928 Code of Ordinances. Nor did it include supplementary administrative provisions, Chapter 4 of that title, which contained much material that eventually came to be placed within the administrative code.

THE 1930 ADMINISTRATIVE CODE

A revised administrative code was adopted in 1930, reorganizing the governmental structure by reducing the number of departments and constituting several previously existing departments as divisions of other new departments. It was to a great extent the foundation of the present administrative code and contained thirteen articles, the last of which "Declaratory" became inoperative when transition adjustments from the 1927 administrative code to the 1930 administrative code were completed.

The 1930 administrative code was separate and distinct from the code of ordinances and appears in the 1936 publication of the recodification of the ordinances on pages 37 through 56. From 1930 to March 5, 1969, the administrative code changed relatively slowly, and in most instances involved only one or two articles of the code being altered at any particular time.

Changes which have occurred since 1930 will be set forth below chronologically. Only changes having substantial effect upon the functions and operations of the city governmental structure are included.

1940 AND 1941

At the end of 1940 an ordinance amending the administrative code by ordaining Section 6 of Article II, pertaining to the city manager, brought a significant change in the structure of the city government. The city solicitor was designated to perform the duties of the city manager in the absence or disability of the city manager.

At the same time Section 8 of Article III, Department of Law, was ordained to provide for the appointment of a first assistant solicitor and a second assistant solicitor who would assume the duties of solicitor during his absence or disability. The chain of command, therefore, for the administrative service of the city ran from the city manager to the city solicitor and from him to the first assistant solicitor and then to the second assistant solicitor.

This same period brought a substantial change in Article IV, Department of Safety, when Sections 8 and 15 of that article dealing with the city's own police and fire pension systems were invalidated by the Ohio Supreme Court in the case of Cincinnati v. Gamble, 138 O.S. 220. The decision dealt a substantial blow to the home rule authority of municipalities by expanding control by the

state legislature over the operations, activities, administration, and functioning of municipal police departments. It was many years before the Supreme Court of Ohio took a more liberal view of the rights of municipalities to exercise discretion in regard to many aspects of police and fire administration.

In 1941 supervision of the city employees retirement system by the personnel officer was eliminated through the repeal of Article XI, Section 2 of the administrative code, and a new Article XV, Retirement System, was enacted. This article created a board of trustees to administer the system, provided that the trustees serve without compensation, provided for the organization of the board of trustees, and authorized it to make rules and regulations governing the administration of funds and the transaction of the board's business. The board was required to make annual fiscal reports to council and was required to designate a medical director to pass upon all medical examinations required by the system. The board was also required to designate an actuary to be its technical advisor. Provision was made for actuarial investigations in regard to mortality, service, and compensation service of members and beneficiaries of the retirement system and for evaluation of its assets and liabilities.

1946

In September, 1946, council amended Section 5 of Article XIV of the administrative code, Public Recreation Commission, and repealed existing Sections 5 and 6 of that article to change the position of director of public recreation to that of superintendent of recreation and to specifically authorize him to carry out the police decisions made by the public recreation commission, of which the superintendent was made the secretary and chief administrative officer. He was also given authority to sign contracts for the services of umpires, referees, special directors, musicians, instructors, accompanists, and others who perform special and occasional duties on behalf of the recreation commission. Generally, he was to manage the facilities operated by the commission and direct and oversee its programs and activities.

1950

In 1949 the charter of the city of Cincinnati was amended to provide for the creation by ordinance of council of a department of finance including the transfer to the director of finance of the duties of the city treasurer and city auditor. The creation of such a department, of course, reduced the positions of city treasurer and auditor to a level subordinate to the director of finance and made their duties dependent upon the administrative code rather than on the charter.

In 1950 council passed the ordinance to implement this charter provision. All sections of Article IX, formerly entitled City Treasurer, were repealed and an entire new chapter setting forth the powers and duties of the director of finance, the superintendent of accounts and audits, the city treasurer, and of the divisions under these individuals, was enacted. At the same time former Article XII, City Auditor, was repealed. These changes brought about a major revision of the governmental structure of the city of Cincinnati in relation to the handling of financial matters.

At the time of this change in the department of finance, Section 3 of Article I, General, and Section 3 of Article XV, Retirement System, were amended to delete references to the city treasurer and city auditor, and Ordinance No. 391-1950 was passed vesting in and imposing upon the director of finance all functions, powers and duties which were then devolved upon, vested in and imposed upon the city auditor.

1955

In December of 1955 there was established in the department of finance the income tax

ber 5, 1957; November 8, 1960; May 8, 1962; November 3, 1964; November 7, 1967; May 5, 1970; November 2, 1971; November 7, 1972; May 7, 1974; June 8, 1976; November 8, 1977; November 6, 1979; November 4, 1980; November 6, 1984; November 5, 1985; November 4, 1986; November 3, 1987; November 5, 1991; November 2, 1993; November 8, 1994; November 3, 1998; May 4, 1999; November 6, 2001; November 5, 2002; November 2, 2004; November 8, 2005; November 4, 2008; November 3, 2009; November 8, 2011; November 2, 2012; November 4, 2014; November 3, 2015; November 3, 2015; November 6, 2018; November 5, 2019; May 4, 2021.

The amendments to the charter adopted November 2, 1926 are listed below as to article, section and date of approval:

Article I		November 4, 2014
Article II	Section 3	November 8, 1949
		November 8, 1994
		November 7, 2023
	Section 4	November 8, 1949
		November 3, 1953
		June 8, 1976
		November 3, 2015
		November 6, 2018
	Section 4a	November 3, 1953
	Section 4b	November 3, 1987
		November 4, 1999
		November 8, 2005
		November 2, 2012
		May 4, 2021
	Section 4c	May 4, 2021
	Section 4d	May 4, 2021
	Section 4e	May 4, 2021
	Section 5	May 4, 1999
		November 2, 2012
		November 4, 2014
		November 3, 2015
		November 7, 2023
	Section 5a	May 4, 1999
		November 2, 2012
		November 3, 2015
		November 6, 2018
	Section 6	May 4, 1999
		November 4, 2014
	Section 7	November 4, 2014
		November 3, 1987
	Section 8	November 7, 2023
Article III	Section 1	November 8, 1949
		November 5, 1985
		November 3, 1987
		May 4, 1999
		November 3, 2015

	Section 2		November 8, 1949
			May 4, 1999
			November 8, 2022
	Section 3		May 4, 1999
			November 2, 2012
			November 3, 2015
			November 6, 2018
	Section 4		November 3, 1987
		Repealed	November 4, 2014
	Section 5		November 3, 1987
		Repealed	November 4, 2014
Article IV	Section 1		May 4, 1999
	Section 2		May 4, 1999
	Section 3		May 4, 1999
	Section 5a		November 4, 2014
			May 4, 2021
	Section 5b		May 4, 2021
	Section 6		November 8, 1949
			November 4, 2014
	Section 7	Repealed	November 4, 2014
	Section 8	Repealed	November 8, 1949
	Section 9		November 3, 2015
	Section 10		November 8, 1949
Article V	Section 1		June 8, 1976
			November 4, 2014
	Section 3		November 7, 1950
			November 8, 1977
			November 6, 2001
			November 3, 2015
			November 6, 2018
			November 4, 2025
	Section 4		November 3, 2015
	Section 5		November 7, 1950
			November 4, 1986
			November 6, 2001
			November 4, 2014
	Section 6		November 7, 1950
			November 4, 1986
			November 6, 2001
			November 4, 2014
	Section 7		November 3, 1964
		Repealed	November 4, 1980
Article VI	Section 3		November 8, 1960
	Section 6		November 7, 1967
	Section 7		June 8, 1976
		Repealed	November 4, 2014
Article VII	Section 1		November 5, 1991
	Section 2		November 5, 1985
			November 4, 2014

	Section 11		November 2, 1971
	Section 12	Repealed	November 4, 2014
Article VIII	Section 3a		November 4, 1947
	Section 3b		May 8, 1962
	Section 4		November 6, 1979
			November 3, 2015
	Section 6a		November 5, 1957
			May 5, 1970
			November 7, 1972
			November 6, 1979
	Section 6a		November 3, 1998
	Section 6b		November 3, 1998
	Section 6c		November 3, 1998
			November 5, 2019
Article IX	Section 1		November 5, 1985
			May 5, 1994
			May 4, 1999
			November 2, 2012
			November 7, 2023
	Section 1a		May 4, 1999
			November 3, 2015
	Section 2		November 8, 1949
			November 6, 1984
			November 5, 1991
			May 4, 1999
			November 7, 2023
	Section 2a		May 4, 1999
			November 2, 2012
			November 6, 2018
	Section 2b		May 4, 1999
			November 2, 2012
			November 3, 2015
			November 6, 2018
	Section 3		November 6, 1984
			May 4, 1999
	Section 3a		May 4, 1999
	Section 4		November 6, 1984
			May 4, 1999
			November 3, 2015
			November 7, 2023
	Section 5		September 30, 1957
			November 5, 1985
	Section 5a		November 5, 1985
			May 4, 1999
	Section 5b		May 4, 1999
	Section 6		November 5, 1985
			May 4, 1999
	Section 7		November 5, 1985
			May 4, 1999

	Section 8		November 5, 1985
			November 3, 1987
			May 4, 1999
	Section 9		November 5, 1985
	Section 10		November 8, 1949
			September 30, 1957
			November 3, 1964
			November 5, 1985
	Section 11		November 5, 1985
	Section 12		November 5, 1991
Article X			November 3, 1998
			May 4, 1999
		Repealed	November 4, 2014
Article X	Section 4		November 3, 1998
Article XI			May 7, 1974
Article XII			November 2, 1993
		Repealed	November 2, 2004
Article XIII	Section 1		November 6, 2001
			November 4, 2014
			November 6, 2018
			November 4, 2025
	Section 2		November 6, 2001
			November 8, 2011
			November 6, 2018
			November 4, 2025
	Section 3		November 6, 2001
			November 5, 2002
			November 4, 2014
	Section 4		November 6, 2001
			November 2, 2012
			November 4, 2014
			November 6, 2018
			November 4, 2025
	Section 5		November 6, 2001
		Repealed	November 4, 2014
	Section 6		November 6, 2001
	Section 7		November 6, 2001
			November 2, 2012
			November 6, 2018
Article XIV	Section 1		November 4, 2008
	Section 2s		November 4, 2008
	Section 3		November 4, 2008
Article XV	Section 1		November 3, 2009
Article XVI	Section 1		November 8, 2011
	Section 2		November 8, 2011

We, the people of the city of Cincinnati, Ohio, in order to secure home rule, do adopt the following as the charter of our city:

Article I.

POWERS OF THE CITY

The city shall have all powers of local self-government and home rule and all other powers possible for a city to have under the constitution of the state of Ohio. The city shall have all powers that now are or hereafter may be granted to municipalities by the laws of the state of Ohio. All such powers shall be exercised in the manner prescribed in this charter, or if not prescribed herein, in such manner as shall be provided by ordinance of the council.

The mayor, members of the council and all officers and employees holding office at the time an amendment to the charter takes effect shall continue in office without further appointment subject to the provisions of the charter.

In the event that any provision of this charter is found by a court of competent jurisdiction in a final decision to be unconstitutional or impermissibly in conflict with state or federal law, the remainder of this charter will remain in full force and effect.
(Amended by Emer. Ord. No. 254-2014, eff. Nov. 4, 2014; election of Nov. 4, 2014)

Article II.

LEGISLATIVE POWER

Section 1. All legislative powers of the city shall be vested, subject to the terms of this charter and of the constitution of the state of Ohio, in the council. The laws of the state of Ohio not inconsistent with this charter, except those declared inoperative by ordinance of the council, shall have the force and effect of ordinances of the city of Cincinnati; but in the event of conflict between any such law and any municipal ordinance or resolution the provisions of the ordinance or resolution shall prevail and control.

Section 2. All ordinances and resolutions in force at the time this charter takes effect, not inconsistent with its provisions, shall continue in force until amended or repealed by the council.

Section 3. Emergency ordinances must receive the vote of a majority of the members elected to the council, and the declaration of an emergency and the reasons for the necessity of declaring said ordinances to be emergency measures shall be set forth in one section of the ordinance, which section shall be passed only upon a separate affirmative vote of two-thirds of the members elected to the council. If the emergency section fails of passage, the clerk shall strike it from the ordinance, and the ordinance shall take effect at the earliest time allowed by law.

No ordinance prescribing rates and charges to be collected by or paid to any publicly owned public utility shall be passed as an emergency ordinance unless the ordinance is introduced in council at least three weeks before it is finally voted upon and a public hearing has been held by council thereon.
(Amended by Emer. Ord. No. 292-1994, eff. Nov. 8, 1994, election of Nov. 8, 1994; amended by Emer. Ord. No. 291-2023, eff. Nov. 7, 2023, election of Nov. 7, 2023)

Section 4. Subject to the terms of Article IX, Section 1 of this charter, a council of nine members shall be elected for a term of two years, commencing on the first Tuesday after January 1st next after their election

and shall serve until their successors are elected and qualified. Any member of council holding office as of the date of the regular municipal election held in November 2017 shall remain in office until the first Tuesday after January 1, 2018, in order to complete the term of city council which commenced as of December 1, 2013. Each member of council shall receive, subject to the provisions of Section 4a herein, annual compensation in an amount equal to three-fourths (¾) of the annual compensation payable to the county commissioners of Hamilton County, Ohio, as it existed on March 1, 2005. Such compensation shall be payable semi-monthly.
(Amended by Emer. Ord. No. 288-2015, eff. Nov. 3, 2015; election of Nov. 3, 2015; Emer. Ord. No. 226-2018, eff. Aug. 1, 2018; election of Nov. 6, 2018)

Section 4a. Council shall not receive any increase in compensation, which is from time to time adopted by the Ohio General Assembly for the county commissioners of Hamilton County, Ohio, and of which percentage increase council receives an amount equal to three-fourths (¾) of the percentage increase, unless such increase is individually ratified by a two-thirds (⅔) vote of the members of council. Any ratified pay increase shall become effective immediately after the investiture of the next duly-elected members of council, following the ratification of such increase by council, and may not be retroactive. Said increases shall not compound from year to year. If an increase is not ratified, the compensation payable to members of council will remain at its then existing level until such a time that council decides to take up the issue.

Section 4b. Before taking the oath of office each member-elect of council shall file with the council a successor designation certificate certifying the name of one or more fellow members of council to select a successor if his or her office as member of council becomes vacant for any reason.

Should a vacancy occur, the members of council certified by the former member are empowered to designate a successor within 60 days of the vacancy by a majority vote of their members or of those remaining thereof. The signed designation shall be filed with council within the 60-day period and shall be presented by council at its next regular meeting.

Should there be no valid and effective successor designation certificate for a vacant office, the council may fill the vacant office by a majority vote of the remaining members within 30 days of the vacancy. Should the certified members of council fail to designate a successor within 60 days of the vacancy, council may fill the vacant office by a majority vote of the remaining members within 30 days after the time allowed for the certified members' designation has expired. Should council fail to fill the vacancy within the time prescribed, the mayor shall appoint the successor without requiring the consent of council.

A person designated as a successor or named to fill the vacancy by action of council or the mayor shall, upon taking the oath of office, have the status of a member of council duly elected for the unexpired term.

Any member of council may amend his or her successor designation certificate by written communication to the clerk, which amendment shall be added by the clerk of council to the agenda for the next regular meeting of the council and shall be adopted, filed, and effective as of the start of business of the same meeting of council. No member of council may amend the member's successor designation certificate subsequent to an indictment of the member alleging a state or federal felony that relates to the member of

council's conduct in the performance of council duties. A member of council duly designated or named by council or the mayor to fill a vacancy shall file a successor designation certificate as in the case of originally elected members and his or her name may be certified by other members. If a successor designation certificate is filed by a member of council who is filling a council vacancy based on suspension or removal of the prior officeholder, the new successor designation certificate shall supersede prior certificates and control in the event of another vacancy in the office.
(Amended by Ord. No. 348-1987, eff. Oct. 1, 1987; election of Nov. 3, 1987; amended by Ord. No. 77-1999, eff. Dec. 1, 2001; election of May 4, 1999; amended by Ord. No. 100-2005, eff. March 16, 2005; election of Nov. 8, 2005; amended by Ord. No. 316-2005, eff. Aug. 3, 2005; election of Nov. 8, 2005; amended by Ord. No. 317-2005, eff. Aug. 3, 2005; election of Nov. 8, 2005; amended by Ord. No. 304-2012, eff. Aug. 1, 2012; election of Nov. 2, 2012; amended by Ord. No. 45-2021, eff. Feb. 10, 2021; election of May 4, 2021; amended by Ord. No. 46-2021, eff. Feb. 10, 2021; election of May 4, 2021)

Section 4c. Council may suspend a member of council upon the vote of seven members of council if a member of council is indicted for an alleged felony under state or federal law that relates to the member of council's conduct in the performance of council duties. Upon notice of such indictment or charge, the member of council shall immediately notify the clerk of council and the city solicitor. Upon notice of such indictment or charge, the clerk of council shall place a council suspension motion for suspension of a council member on the agenda for the next regular or special council meeting occurring no sooner than two business days later. The suspension motion shall not be subject to mayoral referral or committee consideration. The clerk shall provide notice that the suspension motion will be on the agenda to the member of council whose suspension is being considered, and that member shall have an opportunity to be heard prior to the member's suspension. The member of council who is the subject of the suspension motion shall not vote on the suspension motion.

A suspended member of council shall not exercise any of the rights, powers, or responsibilities of the holder of that office during the period of the suspension. A suspended member of council shall not represent council to the public, shall not vote on any matters considered by the council or a council committee, and shall not introduce legislation to be considered by the council or a council committee. A suspended member of council shall not participate in the meetings of council or council committees other than as a private citizen.

A suspension of a member of council is a temporary vacancy of that office. This vacancy shall be filled on an interim basis according to the last successor designation certificate filed with council prior to the indictment or charge that initiated the suspension. The interim council member shall possess all of the rights, powers, and responsibilities of the holder of that office during the period of the suspension. The suspension shall continue until the earlier of: (i) the reinstatement of the suspended member of council as provided in the following paragraph of this section 4c; (ii) the expiration of the elected term of office of the suspended member of council; or (iii) the removal of the suspended member of council from office according to section 4d or as otherwise provided by law.

A suspended member of council shall be reinstated at the next regularly scheduled or special meeting of council following the dismissal of or acquittal on the criminal charges that supported the suspension. A

suspended member of council shall not be reinstated following the expiration of his or her elected term of office. A suspended member of council shall continue to receive a salary until the suspended member of council either resigns or pleads guilty to or is found guilty of the crime with which the suspended member of council was charged, whichever occurs first. The city may file a civil action in the appropriate court to recover salary paid to that former member of council from the date of the suspension to the earlier of either the date the former member of council resigns or the date the former member of council pleads guilty to or is found guilty of the crime with which the former member of council was charged.
(Ordained by Ord. No. 45-2021, eff. Feb. 10, 2021; election of May 4, 2021; amended by Ord. No. 46-2021, eff. Feb. 10, 2021; election of May 4, 2021)

Section 4d. If a member of council, while on city council, is convicted of, or otherwise pleads guilty to, a felony under state or federal law that relates to the member of council's conduct in the performance of council duties the member shall immediately forfeit the member's position on council and is liable to pay back all compensation received from the city dating back to the date of suspension. Upon notice of such conviction, the member of council shall immediately notify the clerk of council and the city solicitor. Upon conviction, the member of council shall not participate in the meetings of council or council committees other than as a private citizen.

Upon notice of such conviction or plea, the clerk of council shall place a motion for removal of a council member on the agenda for the next council meeting occurring no sooner than two business days after the clerk receives notice of the conviction or plea. Council shall confirm the conviction or plea and remove the member of council by passing the removal motion by majority vote within ten business days following the member's conviction if the member has not resigned. The removal motion shall not be subject to mayoral referral or committee consideration. If council does not pass the removal motion within ten business days following notice of conviction or plea to the clerk of council, the member of council's removal shall be effective on the eleventh business day after notice of the conviction.

The removal of a member of council under this section shall not invalidate any legislative action of the member or of council prior to the removal of the member of council.
(Ordained by Ord. No. 45-2021, eff. Feb. 10, 2021; election of May 4, 2021; amended by Ord. No. 46-2021, eff. Feb. 10, 2021; election of May 4, 2021)

Section 4e. Within 60 days of taking the oath of office, each member of council shall complete, and shall submit certification of completion to the clerk of council, an approved course covering Ohio ethics law for local government officials and employees, which is approved by the Ohio Ethics Commission. Failure to submit a certification within 60 days will result in suspension of a member of council's legislative privileges until the certification is submitted to the clerk of council.

In the event a course approved by the Ohio Ethics Commission covering Ohio ethics law for local government officials and employees is not available within 60 days of a member of council taking the oath of office, the city solicitor may provide alternative and equivalent training in order to meet the 60-day deadline. A member of council shall strive to notify the city solicitor and the clerk of council within 30 days of taking the oath of office if a course approved by the Ohio Ethics Commission is not anticipated to be available within 60 days of taking the oath of office.

For the purposes of this section, legislative privileges means the right to attend or participate in council or council committee meetings as a council member, the right to vote on or propose actions or agenda items to council or council committee meetings, and the right to be counted for purposes of establishing quorum for council or council committee meetings.
(Ordained by Ord. No. 45-2021, eff. Feb. 10, 2021; election of May 4, 2021; amended by Ord. No. 46-2021, eff. Feb. 10, 2021; election of May 4, 2021)

Section 5. A majority of the members elected to the council shall be a quorum to do business, but a less number may adjourn from time to time. A member of council appointed to council in accordance with the terms of this charter shall possess all rights, privileges and duties of a member elected to this council. All legislation enacted by the council shall be by ordinance except where otherwise required by the constitution or laws of the state of Ohio. The council shall keep a journal of its meetings which shall be a public record. Members of council may cast their vote on any item via any method that publicly announces the vote, including by a roll call voice vote or electronic or mechanical method. At the desire of any member the vote of each member shall be entered upon the journal; and on the passage of legislation the vote of each member shall be entered upon the journal. No legislation shall be passed without the concurrence of a majority of the members elected to the council. The meetings of council and its committees shall be held in accordance with the requirements of the Ohio open meetings act, codified in Ohio revised code section 121.22 or its successors.

The first meeting of the council shall be held on the first Tuesday after January 1st at 11:00 o'clock a.m. following an election of members of council. All subsequent meetings shall be held pursuant to adjournment, or in accordance with a rule adopted by the council which may be amended at any time. Special meetings shall be held on the request of any two members or the mayor upon twenty-four hours notice to each member and the mayor and immediate notice to the news media that have requested notification.
(Amended by Ord. No. 77-1999, eff. Dec. 1, 2001; election of May 4, 1999; amended by Ord. No. 304-2012, eff. Aug. 1, 2012; election of Nov. 2, 2012; amended by Emer. Ord. No. 254-2014, eff. Nov. 4, 2014; election of Nov. 4, 2014; amended by Emer. Ord. No. 288-2015, eff. Nov. 3, 2015; election of Nov. 3, 2015; Emer. Ord. No. 228-2018, eff. Aug. 1, 2018, election of Nov. 6, 2018; amended by Emer. Ord. No. 291-2023, eff. Nov. 7, 2023, election of Nov. 7, 2023)

Section 5a. The council shall organize itself and conduct its business as it deems appropriate, including the formation of committees for the efficient conduct of the business of the council. At the first meeting on the first Tuesday after January 1st following a regular municipal election for the choice of members of council, the council shall select from among its members a president pro tem who shall preside at council meetings when both the mayor and vice-mayor are absent or disabled and during any period during which there is a vacancy in both the office of mayor and vice-mayor. The president pro tem shall serve a term of two years. When presiding at council, the president pro tem shall vote on legislative matters coming before the council and perform the ministerial duties relating to legislation passed, but shall not exercise the mayor's power of veto, appointment or removal. Each member of council may appoint assistants in the unclassified legislative service according to ordinance. The council shall appoint a clerk of council and such

other subordinate officers as may be required to perform the duties of the office. The clerk and others so appointed shall serve in the unclassified legislative service.
(Added by Ord. No. 77-1999, eff. Dec. 1, 2001; election of May 4, 1999; amended by Ord. No. 304-2012, eff. Aug. 1, 2012; election of Nov. 2, 2012; amended by Emer. Ord. No. 288-2015, eff. Nov. 3, 2015; election of Nov. 3, 2015; Emer. Ord. No. 226-2018, eff. Aug. 1, 2018; election of Nov. 6, 2018)

Section 6. Every ordinance shall be fully and distinctly read on three different days unless three-fourths of the members elected to the council dispense with the rule. No ordinance shall contain more than one subject which shall be clearly expressed in its title, and no ordinance shall be revived or amended unless the new ordinance contains the entire ordinance revived, or the section or sections amended, and the section or sections so amended shall be repealed. Council may adopt codification ordinances, codifying, revising and re-arranging the ordinances of the city or any portion thereof. The clerk of council shall make reasonable efforts to publish proposed legislation no less than twenty-four hours prior to its consideration by the council in a manner reasonably calculated to be widely accessible to the public and the media. The clerk of council shall also make available paper copies of such ordinances upon request.

Any legislation passed by the council shall be dated when passed. If the mayor approves the legislation, the mayor shall sign and date the legislation and it shall be effective according to its terms when signed by the mayor.

If the mayor does not approve the legislation, the mayor may veto the legislation and return it to the council within four days after passage with a notation of the veto on the legislation. The vetoed legislation shall be placed on the agenda of the council at its next regularly scheduled meeting. Legislation vetoed by the mayor and returned to the council may not be amended.

Upon motion passed by five members of the council, the council may reconsider the vetoed legislation. If six members of the council vote affirmatively to override the veto and enact the legislation, it becomes law notwithstanding the mayoral veto. It shall be effective according to its terms upon the affirmative vote and, if otherwise subject to referendum, the time for referendum on the legislation shall begin to run again from that date. Unless the council overrides the veto of the mayor at or before the second regularly scheduled meeting of the council following passage of the legislation, the legislation shall not take effect. Legislation enacted by the council over the veto of the mayor shall not be vetoed a second time. An ordinance placing on the ballot a charter amendment initiated by petition shall not be subject to a mayoral veto.

If the mayor neither approves nor vetoes the legislation, the legislation shall be effective according to its terms the fifth day following its passage. The effective date shall be noted on the original copy of the legislation by the clerk of council.

Legislation shall be made available to the public and the media by the clerk of council within three business days after its passage in a manner reasonably calculated to be widely accessible to the public and the media. The clerk of council shall also make available paper copies of such ordinances upon request. Publication of legislation relating to improvements or to assessments upon private property for such improvements shall be by newspaper publication. The advertisement shall contain simply a statement of the title, number and date of the ordinance and resolution, a concise description of the private property affected, a summary of the nature

of the improvements, the rate of any assessment levied or to be levied, and a reference to a copy of the said legislation, which shall be on file in the office of the clerk of council. (Amended by Ord. No. 77-1999, eff. Dec. 1, 2001; election of May 4, 1999; amended by Emer. Ord. No. 254-2014, eff. Nov. 4, 2014; election of Nov. 4, 2014)

Section 7. The existing departments, divisions and boards of the city government are continued unless changed by the provisions of this charter or by ordinance of the council. The council shall maintain an administrative code providing for a complete plan of administrative organization of the city government. Thereafter, except as established by the provisions of this charter, the council may change, abolish, combine and re-arrange the departments, divisions and boards of the city government provided for in said administrative code, but an ordinance creating, combining, abolishing or decreasing the powers of any department, division or board, shall require a vote of three-fourths of the members elected to the council, except the ordinance adopting an administrative code.
(Amended by Emer. Ord. No. 254-2014, eff. Nov. 4, 2014; election of Nov. 4, 2014)

Section 8. The initiative and referendum powers are reserved to the people of the city on all questions which the council is authorized to control by legislative action; such powers shall be exercised in the manner provided by this charter. Petitions for an initiated ordinance, referendum, or charter amendment shall comply with the requirements established in this charter.

A. **Petitions.**

1. **Petition Forms.**

Petitioners shall use the forms provided by the Ohio Secretary of State for an initiated ordinance, referendum, or charter amendment, unless this charter or an ordinance of council provides otherwise.

In addition, each petition for a proposal initiated by a citizen shall comply with the following as to form and with general laws of the state, unless otherwise provided by this charter or ordinance of council:

(a) A petition may be circulated in separate part-petitions but each part-petition shall be identical.

(b) Each part-petition shall be circulated and submitted as a single instrument.

(c) A petition may only contain one proposal, which shall not address multiple or unrelated subject matters or questions of law.

(d) The title of the proposal shall clearly and without argument describe the proposed ordinance, referendum, or charter amendment, and such title shall be placed on the top of each page of a part-petition, and the pages shall be numbered sequentially.

(e) A petition shall contain a full and correct copy of any proposed ordinance, referendum, or charter amendment, with no summary, argument, or other ancillary information regarding the proposal placed thereon, unless otherwise required by this charter or ordinance of council.

2. **Petition committee.**

The petition shall bear the names of at least five qualified electors of the city of Cincinnati, who shall represent the petitioners in all matters relating to such petitions and shall be known as the petition committee.

3. **Filing certified copy of petition with clerk of council.**

Whoever seeks to propose by petition an ordinance, referendum, or charter amendment shall file a certified copy of the petition with the clerk of council prior to circulating it.

4. **Duties upon filing of certified copy of petition.**

The clerk of council shall forward the certified copy of a petition within one business day to the solicitor and the mayor and members of council. The solicitor shall determine if the petition addresses a single subject and meets the requirements as to form provided by this charter and shall report the same to the clerk of council and the mayor and members of council as soon as practicable.

B. **Filing of signed petitions.**

1. **All signed petitions to be filed with clerk of council; deadlines.**

(a) All separate part-petitions providing for a proposed ordinance, referendum, or charter amendment shall be filed at the same time, as one instrument, with the clerk of council. No alterations, corrections, or additions may be made to a petition after it is filed with the clerk.

(b) Petitions for an initiated ordinance shall be filed with the clerk of council at least eighty days prior to an election at which the initiated ordinance is to be submitted to the voters.

If a petition committee wants to have the option provided under section 8.C.2 of this article to submit additional signatures if the election authority determines the petition does not have sufficient valid signatures, the petition committee must submit the signed petitions to the clerk of council at least 100 days prior to an election at which the initiated ordinance is to be submitted to the voters.

(c) Signed petitions for an initiated ordinance or charter amendment shall be filed within two years of filing a certified copy of the petition with the clerk of council; petitions for referendum shall be filed as otherwise provided for in this charter. If petitions are not filed in the time required by this charter, the petition originally filed with the clerk of council is no longer valid, and the petition process must begin again.

2. **Withdrawal, effect of withdrawal or insufficiency.**

No petition, or part thereof, presented to or filed with any office of the city of Cincinnati may be withdrawn from such public office. A petition shall be withdrawn from consideration by the city if the petition committee submits to the clerk of council a written notice of withdrawal, signed by a majority of the committee and duly notarized, prior to final action on the petition; and a petition shall be withdrawn from consideration by the electors if notice is submitted as required in this section prior to the forty-fifth day before the date of the election thereon.

C. **Duties upon filing of a signed petition.**

1. Within ten days after the filing of a signed petition, the clerk of council shall have copies of the petitions

made and shall forward the petitions to the elections authorities to validate the signatures on the petition and to the solicitor. In the case of a proposed charter amendment, the clerk of council shall forthwith forward the petitions to the elections authorities and the solicitor.

2. If the elections authority's report confirms a sufficient number of valid signatures on the petition, the clerk of council immediately shall forward the elections authority's report to the mayor, council, and the solicitor. If the elections authority's report confirms an insufficient number of valid signatures on the petition, the clerk of council immediately shall notify the mayor, council, solicitor, and the petition committee of the deficiency.

   If, as provided in section B.1.(b), the petition committee submitted the signed petitions to the clerk of council at least 100 days prior to an election at which the initiated ordinance is to be submitted to the voters, the petition committee shall have one additional ten-day period from the time of notification by the clerk of council to secure and file petitions containing additional signatures as one instrument. This period to collect additional signatures cannot extend beyond the deadline for the city to submit an ordinance to the elections authority to put the initiative on the ballot for the next election. The clerk of council immediately shall forward any additional petitions received to the elections authorities. The clerk of council shall immediately forward to the mayor, the council and the solicitor the elections authority's supplemental report regarding signature validation.

   If the elections authority's supplemental report confirms the petition has an insufficient number of valid signatures, the clerk of council also shall immediately notify the petition committee of the deficiency, the petition will be closed, and the petition effort must begin again.

3. **Validation of part-petitions, signatures.**

   Validation of signatures and part-petitions shall be as provided for in the general laws of the state, unless otherwise provided by this charter or ordinance of council. No part-petition which includes a purported elector's signature or circulator's signature affixed prior to the date of filing a certified copy of the petition with the clerk of council shall be deemed valid.

D. **Council action by ordinance.**

1. Council action on a petition for any proposed ordinance, referendum, or charter amendment shall be by ordinance. No city official or employee may consider the subject matter of a petition when determining its legal sufficiency, except as required to assure compliance with applicable provisions of this charter, general laws of the state, or ordinance of the council. Any petition and any signatures upon the part-petitions thereof found to be sufficient as provided herein shall be presumed to be sufficient in all respects unless it is proven otherwise at least 45 days before the election.

2. **Petitions not subject to veto, referendum.**

   Any ordinance placing an issue before voters or setting the date of an associated special election shall go into

effect and be in force from and after the date of passage. Such ordinance shall not be subject to the mayor's veto or be subject to referendum.

E. **Conflicting questions and issues.**

If two or more proposals are approved or adopted at the same election, and the solicitor finds that any provisions of two or more proposals are in conflict, the proposal receiving the highest number of votes shall prevail.

F. **PETITION-INITIATED ORDINANCE**

1. Any proposed ordinance may be submitted to the council by a petition signed by registered electors of the city equal to not less than ten per cent of the total vote cast for governor at the most recent general election for governor in the city. Any such proposed ordinance shall comply, in all respects, with the requirements of this charter and applicable rules of council regarding ordinances.

2. **Council action on initiated ordinances.**

The clerk of council shall notify the mayor, the council, and the solicitor of the election authorities' conclusion regarding the validity of the signatures on the petitions to enact an ordinance immediately upon receipt of the report from the election authorities. If the clerk of council notifies the mayor, the council, and the solicitor that the elections authorities determined the petition has a sufficient number of signatures, the council shall determine whether the petition is otherwise sufficient as authorized by this charter and general laws of the state. If the council finds the petition is otherwise sufficient, it shall take either of the following actions:

(a) vote to adopt the proposed ordinance without alteration; or

(b) pass an ordinance to provide for the submission of the proposed ordinance in its original form to a vote of the electors of the city in such time as to allow it to be on the ballot at the next regular municipal election scheduled not less than sixty nor more than 120 days after its passage. If no such election will be held within that period, the council shall, at its sole discretion, order and provide for the submission of such proposed ordinance to a vote of the electors of the city at either a special election within such period or at the next regular municipal election.

3. **Ballot language, initiated ordinance.**

In any ordinance placing a proposed ordinance on the ballot, the council shall prescribe a brief summary of the same, which shall be accurate, shall not be misleading, and shall be without material omission or argument. The summary so prescribed shall be placed upon the ballot.

4. **Effect of electoral vote on proposed ordinance.**

If such proposed ordinance is approved by a majority of the electors voting on it, it shall become an ordinance of the city at the time fixed therein, or upon the completion of the official canvass of the election, whichever is later.

G. **REFERENDUM**

1. **Referendum initiated by petition.**

   Any proposed referendum may be submitted to the council by a petition signed by registered electors of the city equal to not less than ten per cent of the total vote for governor at the most recent general election for governor in the city, and such petition shall be submitted within thirty days of final action by the council.

2. **Effect of referendum petition on subject ordinance.**

   If a petition for referendum is filed as provided in this charter regarding an ordinance that shall go into effect thirty days after final passage by the council, such ordinance shall not be operative until the steps indicated herein have been taken. Emergency ordinances shall not be subject to referendum.

3. **Council action on petition for referendum.**

   If the clerk of council notifies the mayor, the council, and the solicitor that the elections authorities determined the petition has a sufficient number of signatures, the council shall determine whether the petition is otherwise sufficient as authorized by this charter and general laws of the state. If the council finds the petition is otherwise sufficient, it shall take either of the following actions:

   (a) vote to repeal the subject ordinance; or

   (b) pass an ordinance to provide for the submission of the proposed referendum in its original form to a vote of the electors of the city in such time as to allow it to be on the ballot at the next regular municipal election scheduled not less than sixty nor more than 120 days after its passage. If no such election will be held within that period, the council shall, at its sole discretion, order and provide for the submission of such proposed ordinance to a vote of the electors of the city at either a special election within such period or at the next regular municipal election.

4. **Ballot language, referendum.**

   In any ordinance placing a referendum on the ballot, the council shall prescribe a brief summary of the referendum, which shall be accurate, shall not be misleading, and shall be without material omission or argument. The summary so prescribed shall be placed upon the ballot.

5. **Effect of electoral vote on referendum.**

   If such proposed referendum is approved by a majority of the electors voting thereon, the ordinance which was the subject of the referendum shall be repealed upon the completion of the official canvass of the election.

H. **CHARTER AMENDMENTS**

1. Proposed amendments to this charter may be submitted to the electors of the city by a two-thirds vote of the council and such submission shall be by ordinance. Proposed amendments to this charter shall be submitted by the council forthwith upon a petition signed by electors of the city equal to

not less than ten percent of the total vote cast at the last preceding regular municipal election.

2. **Council action on petition for proposed charter amendment.**

The clerk of council shall notify the mayor, the council, and the solicitor of the election authorities' conclusion regarding the validity of the signatures on the petitions to enact an ordinance for a charter amendment forthwith upon receipt of the report from the election authorities. After receiving notification from the clerk of council that there are sufficient valid signatures on the petition, the council shall forthwith provide by ordinance for the submission of such proposed charter amendment to a vote of the electors of the city.

3. **Placement of issue on the ballot.**

The ordinance shall order and provide for the submission of such proposed charter amendment to the electors at the next regular municipal election if one shall occur not less than sixty nor more than 120 days after its passage; otherwise, it shall provide for the submission of the question at a special election to be called and held within that time.

4. **Notice of charter amendment.**

The clerk of council shall provide notice of any proposed charter amendment as provided for by general laws of the state, unless otherwise provided by this charter or ordinance of council.

5. **Ballot language, generally.**

In any ordinance placing a proposed charter amendment on the ballot, the council shall prescribe a brief summary of the proposed amendment, which shall be accurate, shall not be misleading, and shall be without material omission or argument. The summary so prescribed shall be placed upon the ballot.

6. **Effect of approval at election.**

If such proposed amendment is approved by a majority of the electors voting thereon, it shall become a part of the charter at the time fixed in the proposed amendment, or upon completion of the official canvass of the election, whichever is later.

(Ordained by Emer. Ord. No. 291-2023, eff. Nov. 7, 2023, election of Nov. 7, 2023)

Article III.

MAYOR

Section 1. A mayor shall be elected for a term of four years, commencing on the first Tuesday after January 1st next after his or her election. Upon taking the oath of office, the mayor shall serve until a successor is duly elected and qualified. The individual holding the office of mayor as of the date of the regular municipal election held in November 2017 shall remain in office until the first Tuesday after January 1, 2018, in order to complete the mayoral term which commenced as of December 1, 2013. The mayor shall receive annual compensation in an amount equal to twice the compensation payable to a member of council as provided in Article II, Section 4. Such compensation shall be payable semimonthly.

(Amended by Ord. No. 418-1985, eff. Sept. 5, 1985; election of Nov. 5, 1985; a. Ord. No. 348-1987, eff. Oct. 1, 1987; election of Nov. 3, 1987; amended by Ord. No. 77-1999, eff. Dec. 1, 2001; election of May 4, 1999; amended by Emer. Ord. No. 288-2015, eff. Nov. 3, 2015; election of Nov. 3, 2015)

Section 2. The mayor shall preside over all meetings of the council but shall not have a vote on the council. The mayor may call a special meeting of the council. The mayor shall exercise the veto power as provided in Article II. The mayor shall appoint and may remove the vice-mayor and the chair of all committees of the council without the advice and consent of the council. The mayor shall assign all legislative matters to the appropriate committee for consideration except if a legislative matter is not assigned by the mayor by the fourth regularly scheduled meeting of council following the date the legislative matter was submitted to the clerk of council, then the clerk of council shall assign the legislative matter to an appropriate committee for placement on the agenda at the committee's next regularly scheduled meeting. Motions and non-legislative resolutions may be assigned by the mayor to the appropriate committee for consideration or motions and non-legislative resolutions may be immediately considered by the council if (1) the mayor places the motion or non-legislative resolution on the council calendar for immediate consideration or (2) upon the vote of two-thirds of the members of council in favor of immediate consideration of the motion or non-legislative resolution. The mayor may propose and introduce legislation for council consideration.

Each legislative matter assigned to a committee shall be placed by the committee chair on the agenda no later than the fourth regularly scheduled committee meeting after referral unless a legislative sponsor of the ordinance grants an extension of time to the clerk of council in writing. If a committee votes to recommend passage of a legislative matter, the mayor shall place it on the council calendar for passage no later than the fourth regularly scheduled council meeting after committee approval, unless a legislative sponsor grants an extension of time to the clerk of council in writing. For purposes of this paragraph, "legislative sponsor" means a member of council, the city manager, or the mayor, who introduced and submitted the legislative matter to the clerk of council.

The mayor shall be recognized as the official head and representative of the city for all purposes, except as provided otherwise in this charter.

The mayor shall appoint the city manager upon an affirmative vote of five members of the council following the mayor's recommendation for appointment. Prior to the vote, the mayor shall seek the advice of council, to include the opportunity for council to interview the candidates considered by the mayor. Should the council not approve the recommendation of the mayor, the mayor may submit another recommendation or institute a new search. The mayor, with the advice of council, shall have the authority to initiate and recommend to the council the removal of the city manager, provided that such removal shall require an affirmative vote of five members of the council. A temporary appointment to the position of city manager that may be required by reason of a vacancy in the office shall be submitted by the mayor to the council for its approval prior to the appointment.

The mayor shall deliver an annual address to the council and citizens of the city reporting on the state of the city and making recommendations for the establishment and achievement of future city goals.

The mayor shall transmit to the council the annual budget estimate prepared by the city manager. The transmittal shall occur within 15 days after receipt from the city manager and may include a letter commenting on the proposed budget.

The mayor shall perform such other duties as may be prescribed by this charter or as may be imposed by council, consistent with the office. The mayor shall be recognized as

the official head of the city for all ceremonial purposes, by the courts for the purpose of serving civil process, and by the governor for military purposes.

In time of public danger or emergency, the mayor may, with the consent of the council, take command of the police, maintain order and enforce the law.

The mayor shall appoint his or her assistants in the unclassified service and shall fix their salaries. Such assistants shall serve at the pleasure of the mayor and shall constitute the mayoral service. All other appointments to be made by the mayor shall be made with the advice and consent of the council except as otherwise provided in this charter.
(Amended by Ord. No. 77-1999, eff. Dec. 1, 2001; election of May 4, 1999; a. Emer. Ord. No. 264-2022, eff. Nov. 8, 2022, election of November 8, 2022)

Section 3. At the first meeting in January of the council after its election, the mayor shall select a vice-mayor from among the members of the council to serve for a term of two years, subject to removal by the mayor. The vice-mayor shall have the powers and perform the duties of the mayor during the mayor's absence or disability. When presiding at council, the vice-mayor shall vote on legislative matters coming before the council and perform the ministerial duties relating to legislation passed, but shall not exercise the mayor's power of veto, appointment or removal. No additional compensation shall attach to the office of vice-mayor.

In the event of the death, removal or resignation of the mayor, the vice-mayor shall succeed to the office of mayor in accordance with this section. The vice-mayor's vacancy on council shall be filled in accordance with Article II, Section 4b of this charter and a new vice-mayor shall be selected by the mayor from the members of the council.

Should the death, removal or resignation of the mayor occur prior to June 1 of the second calendar year following the regular municipal election for the choice of mayor, the vice-mayor shall hold the office of mayor until the first Tuesday after January 1st of the following year and until a successor is elected and qualified to fill the unexpired term. An election to fill the unexpired term of mayor will be held on the date of the regular municipal election held during the second calendar year following the regular municipal election for mayor. Nominations and election of the mayor to the unexpired term shall be governed by the provisions of Article IX of the charter for the election of the mayor.

Should the death, removal or resignation of the mayor occur on or after June 1 of the second calendar year following the regular municipal election for the choice of mayor, the vice-mayor shall succeed to the office of mayor for the remainder of the unexpired term of the mayor.
(Amended by Ord. No. 77-1999, eff. Dec. 1, 2001; election of May 4, 1999; amended by Ord. No. 304-2012, eff. Aug. 1, 2012; election of Nov. 2, 2012; amended by Emer. Ord. No. 288-2015, eff. Nov. 3, 2015; election of Nov. 3, 2015; Emer. Ord. No. 226-2018, eff. Aug. 1, 2018; election of Nov. 6, 2018)

Section 4. Repealed.

(Added by Ord. No. 848-1987, eff. Oct. 1, 1987; election of Nov. 3, 1987; repealed by Ord. No. Emer. Ord. No. 254-2014, eff. Nov. 4, 2014; election of Nov. 4, 2014)

Section 5. Repealed.

(Added by Ord. No. 348-1987, eff. Oct. 1, 1987; election of Nov. 3, 1987; repealed by Ord. No. Emer. Ord. No. 254-2014, eff. Nov. 4, 2014; election of Nov. 4, 2014)

Article IV.

EXECUTIVE AND ADMINISTRATIVE SERVICE

*City Manager**

Section 1. The mayor, as provided in Article III of this charter, shall appoint a city manager who shall be the chief executive and administrative officer of the city. The city manager shall be appointed solely on the basis of his or her executive and administrative qualifications and need not, when appointed, be a resident of the city or state. Neither the mayor nor a member of council shall be appointed as city manager. The city manager shall be appointed for an indefinite term, as hereinafter provided. The city manager shall be removable at any time at the pleasure of the mayor and the council as provided in Article III. If removed at any time after the city manager has served six months, he or she may demand written charges and the right to be heard thereon at a public meeting of the council prior to the date on which his or her final removal shall take effect, but pending and during such hearing, the mayor, subject to the approval of council, may suspend him or her from office. The action of the mayor and the council in suspending or removing the city manager shall be final, it being the intention of this charter to vest all authority and fix all responsibility for any such suspension or removal in the mayor and the council.

The council may authorize the designation of some other officer of the city to perform the duties of the city manager during the city manager's absence or disability. The city manager shall receive such compensation and related benefits as are determined by the council.
(Amended by Ord. No. 77-1999, eff. Dec. 1, 2001; election of May 4, 1999)

Section 2. The city manager shall report to the mayor and the council. Neither the mayor, the council nor any of its committees or members shall interfere in any way with the appointment or removal of any of the officers and employees in the administrative service. Except for the purpose of inquiry; the mayor, the council and its members shall deal with that part of the administrative service for which the city manager is responsible, solely through the city manager.
(Amended by Ord. No. 77-1999, eff. Dec. 1, 2001; election of May 4, 1999)

Section 3. It shall be the duty of the city manager to act as chief conservator of the peace within the city; to supervise the administration of the affairs of the city, except as otherwise specifically provided in this charter; to see that the ordinances of the city and the laws of the state are enforced; to make all appointments and removals in the administrative and executive service except as otherwise provided in this charter; to make such recommendation to the mayor and to the council concerning the affairs of the city as may to him or her seem desirable; to keep the mayor and the council advised of the financial condition and future needs of the city; to prepare and submit to the mayor the annual budget estimate for the mayor's review and comment prior to its submission to the council; to prepare and submit to the mayor and to the council such reports as may be required by each and to perform such other duties as may be prescribed by this charter or required of him or her by ordinance or resolution of the council.

The city manager shall have the powers conferred by law upon boards of control.

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Except as otherwise provided in this charter, all other executive and administrative powers conferred by the laws of the state upon any municipal official shall be exercised by the city manager or persons designated by him or her.
(Amended by Ord. No. 77-1999, eff. Dec. 1, 2001; election of May 4, 1999)

Section 4. The city manager, and such other officers of the city as may be designated by vote of the council, shall be entitled to seats in the council. None of said officials shall have a vote in the council but the city manager shall have the right to discuss any matter coming before the council and the other officers shall be entitled to discuss any matter before the council relating to their respective departments and offices.

*City Solicitor**

Section 5a. The city manager shall appoint a city solicitor. No person shall be eligible to the office who is not an attorney at law, duly admitted to practice in this state. The solicitor shall serve the mayor, council, officers and boards of the city as legal counsel and attorney, and shall represent the city in all proceedings in court. The solicitor shall act as prosecuting attorney in the municipal court. The solicitor shall perform all other duties now or hereafter imposed upon city solicitors by the laws of the state, unless otherwise provided by ordinance of the council, and such other duties as the council may impose upon the solicitor consistent with the office of city solicitor. The solicitor shall appoint his or her assistants and fix their salaries, but the maximum number of assistants and the total amounts of the assistants' salaries shall be fixed by council. The assistants shall hold their offices at the pleasure of the solicitor.
(Amended by Emer. Ord. No. 254-2014, eff. Nov. 4, 2014; election of Nov. 4, 2014; amended by Ord. No. 45-2021, eff. Feb. 10, 2021; election of May 4, 2021; amended by Ord. No. 46-2021, eff. Feb. 10, 2021; election of May 4, 2021)

Section 5b. If a complaint is filed pursuant to Ohio Revised Code Section 733.72 or its successor alleging that a member of council has been indicted for a felony or that a criminal complaint has been filed against a member for charges relating to official conduct, the city solicitor shall appoint a special prosecutor within ten business days of the Hamilton County probate judge's issuing a citation pursuant to the complaint. Council shall appropriate funds necessary to hire and pay the special prosecutor.
(Ordained by Ord. No. 45-2021, eff. Feb. 10, 2021; election of May 4, 2021; amended by Ord. No. 46-2021, eff. Feb. 10, 2021; election of May 4, 2021)

Director of Finance†

Section 6. The council shall have power by majority vote, to create a department of finance and to authorize the city manager to appoint a director of finance and such subordinates, including a city treasurer, from time to time, as the city manager sees fit. The council shall prescribe the qualifications and duties of the director of finance and may provide for the administrative organization of the department. The council may transfer to the director of finance or one or more of his or her subordinates any duties previously performed by the city treasurer or the city auditor, as well as any

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other powers that it may see fit. The council shall also have power to appoint, from time to time, an auditor or auditors to examine the records and accounts of the city or any of its officers, departments, boards or commissions and report the findings to the council. The director of finance shall be the chief fiscal officer of the city.
(Ordinance No. 301-1950, passed by the city council on September 6, 1950, abolished the existing offices of city auditor and city treasurer, established a department of finance, authorized appointment of a director of finance and subordinates.)
(Amended by Emer. Ord. No. 254-2014, eff. Nov. 4, 2014; election of Nov. 4, 2014)

*Director of Public Utilities**

Section 7. Repealed.

(Repealed by Ord. No. Emer. Ord. No. 254-2014, eff. Nov. 4, 2014; election of Nov. 4, 2014)

Superintendent of Water Works†

Section 9. The city manager shall appoint the superintendent of water works, who shall have charge of the administration of the Cincinnati water works. A sufficient charge shall be made for the supply of water, or any other public utility service operated by the city, to pay the expenses of such water works or other utility, the principal, interest, and retirement charges on bonds issued for such water works or other public utility, and for such improvements to said water works or other public utility as council may determine should be paid for without the issue of bonds. The city shall have the power to sell water outside of the city limits and outside of the state at such price as the council may determine. Revenue derived from the water works by the city shall be used for the purposes of said water works, and for no other purpose, and shall not be subject to transfer to any other fund.
(Amended by Emer. Ord. No. 288-2015, eff. Nov. 3, 2015; election of Nov. 3, 2015)

Removal of Officials‡

Section 10. The city solicitor, director of finance, director of public utilities, and superintendent of the water works shall be subject to removal by the city manager.

Article V.

CIVIL SERVICE

Section 1. The civil service commission shall consist of three members of recognized character and ability who shall serve for a term of six years. Two members shall be appointed by the mayor, with the advice and consent of the council, and one member shall be appointed by the board of education of the Cincinnati school district. The members serving as of November 4, 2014 shall continue in office until the expiration of their terms. Upon the subsequent expiration of the term of any member appointed by the board of education of the Cincinnati school district, a successor for that member shall be named by the board of education of the Cincinnati school district. Upon the subsequent expiration of the term of any member appointed by the mayor, a successor for that member shall be named

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by the mayor, with the advice and consent of counsel. In the event of a vacancy the unexpired term shall be filled by appointment by the authority herein authorized to appoint the successor.
(Amended by Emer. Ord. No. 254-2014, eff. Nov. 4, 2014; election of Nov. 4, 2014)

Section 2. The city manager shall appoint the secretary of the civil service commission, who shall act as the personnel officer of the city government, and must be a person experienced in personnel work. He shall also act as chief examiner and superintend the examinations subject to the direction of the commission. He shall appoint all of his subordinates.

Section 3. Except as provided in this charter, the council shall have no power to modify the provisions of the laws of the state of Ohio now or hereafter in effect relating to the civil service and civil service commissions. This shall include the provision of veteran preferences as defined and provided pursuant to Ohio Revised Code Chapter 124 or its successor. The civil service commission shall award to any soldier, sailor, marine, coast guardsman, member of the auxiliary corps as established by congress, member of the army nurse corps or navy nurse corps, or red cross nurse who has served in the army, navy, or hospital service of the United States and such military service as is designated by congress, who can provide satisfactory documentation at the time established by the city manager or the city manager's designee, which shall be no earlier than the day before an eligibility list is approved by the civil service commission, that such veteran has been honorably discharged therefrom, or transferred to the reserve with evidence of satisfactory service, an examination credit of five (5) points added to their passing score on entry level examinations for the classified service of the city of Cincinnati. An examination credit of ten (10) points shall be added to the passing score of "disabled veterans," as defined in the Ohio Revised Code. No fee or other assessment shall be charged to applicants for examinations for positions under the civil service.

The civil service commission shall award an examination credit of five (5) points in entry level examinations for the classified service in the city of Cincinnati fire or police departments to any individual who has successfully completed one of the following public safety internship programs:

(i) a fire or police program conducted at a public safety academy established by Cincinnati Public Schools in collaboration with the City of Cincinnati with a public safety curriculum approved by the city of Cincinnati administration and its fire and/or police administration;

(ii) the Cincinnati Police Understudy Program;

(iii) the Cincinnati Police Summer Cadet Program;

(iv) a minimum of two years in the Cincinnati Police Public Safety Cadet Program;

(v) the Cincinnati Fire Cadet Program; or

(vi) Cincinnati Fire Summer Cadet Program.

A person shall receive a maximum of ten (10) points on any entry level examination for positions under the civil service through a combination of military service examination credit and public safety internship credit.

The city civil service shall be divided into the classified service and the unclassified service. In addition to the positions that comprise the unclassified service under state civil service law, the unclassified service of

the city shall include department and division heads, deputies or assistants to department heads, and professional housing and economic development positions. All other positions shall be in the classified service. A person who on the date of enactment of this section holds a position in the classified civil service which becomes unclassified under this section shall be deemed to hold a position in the classified civil service until he or she vacates the position, after which time the position shall be filled as an unclassified position.
(Amended by Ord. No. 238-2001, eff. Nov. 6, 2001; election of Nov. 6, 2001; amended by Emer. Ord. No. 288-2015, eff. Nov. 3, 2015; election of Nov. 3, 2015; Emer. Ord. No. 230-2018, eff. Aug. 1, 2018; election of Nov. 6, 2018; Emer. Ord. No. 252-2018, eff. Aug. 1, 2018; election of Nov. 6, 2018; Emer. Ord. No. 263-2025, eff. Aug. 6, 2025; election of Nov. 4, 2025)

Section 4. No person in the administrative service shall directly or indirectly give, solicit or receive, or in any manner be concerned in giving, soliciting or receiving any assessment, subscription or contribution for any political party to be used in a city of Cincinnati municipal election, or in support of or in opposition to any candidate for election to the office of mayor or member of council of the city of Cincinnati. This section shall not be construed to limit any person's right as a citizen to express opinions or to cast a vote, nor shall it be construed to prohibit any person from active participation in political campaigns at any other level of government, including an individual's right to seek elective office. Any violation of this section shall operate to forfeit the office or position held by the person violating the same and shall render any such person ineligible to any municipal office or position for a period of one year.
(Amended by Emer. Ord. No. 288-2015, eff. Nov. 3, 2015; election of Nov. 3, 2015)

*Police Force**

Section 5. The members of the police force engaged in police services shall consist of the following ranks:

1. Chief
2. Executive Assistant Police Chief
3. Assistant Chief
4. Captain
5. Lieutenant
6. Sergeant
7. Police Officer
8. Police Recruit

The positions of police chief, executive assistant police chief and assistant police chief shall be in the unclassified civil service of the city and exempt from all competitive examination requirements. The city manager shall appoint the police chief, executive assistant police chief and assistant police chiefs to serve in said unclassified positions. The police chief, executive assistant police chief and assistant police chiefs shall be appointed solely on the basis of their executive and administrative qualifications in the field of law enforcement and need not, at the time of appointment, be residents of the city or state. The police chief may be removed at any time by the city manager. After the police chief has served six months, he or she shall be subject to removal only for cause including incompetency, inefficiency, dishonesty, insubordination, unsatisfactory performance, any other failure of good behavior, any other acts of misfeasance, malfeasance, or nonfeasance in office, or conviction of any felony. If removed for cause the police chief may demand written charges and the right to be heard thereon

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before the city manager. Pending the completion of such hearing the city manager may suspend the police chief from office. The incumbent officers in the police chief and assistant police chief positions as of November 6, 2001 shall remain in the classified civil service until their position becomes vacant after which time their positions shall be filled according to the terms of this section.

Within the ranks below that of assistant police chief, the council shall establish such special positions having special duties with preferential pay as the council deems necessary; but the existence of such special positions shall not establish eligibility for promotion to the next higher rank. No special positions established by council within the ranks below that of assistant police chief shall be filled without promotional examinations.
(Amended by Ord. No. 304-1986, eff. Sept. 4, 1986; election of Nov. 4, 1986; amended by Ord. No. 238-2001, eff. Nov. 6, 2001; election of Nov. 6, 2001; amended by Emer. Ord. No. 254-2014, eff. Nov. 4, 2014; election of Nov. 4, 2014)

*Fire Force**

Section 6. The members of the fire force engaged in fire protection services shall consist of the following ranks:

1. Chief
2. Assistant Chief
3. District Chief
4. Captain
5. Lieutenant
6. Fire Specialist
7. Fire Apparatus Operator
8. Fire Fighter
9. Fire Recruit

The positions of fire chief and assistant fire chief shall be in the unclassified civil service of the city and exempt from all competitive examination requirements. The city manager shall appoint the fire chief and the assistant fire chiefs to serve in said unclassified positions. The fire chief and assistant fire chiefs shall be appointed solely on the basis of their executive and administrative qualifications in the field of fire prevention and suppression and need not, at the time of appointment, be residents of the city or state. The fire chief may be removed at any time by the city manager. After the fire chief has served six months, he or she shall be subject to removal only for cause including incompetency, inefficiency, dishonesty, insubordination, unsatisfactory performance, any other failure of good behavior, any other acts of misfeasance, malfeasance, or nonfeasance in office, or conviction of any felony. If removed for cause the fire chief may demand written charges and the right to be heard thereon before the city manager. Pending the completion of such hearing the city manager may suspend the fire chief from office. The incumbent officers in the fire chief and assistant fire chief positions as of November 6, 2001 shall remain in the classified civil service until their position becomes vacant after which time the positions shall be filled according to the terms of this section.

Within the ranks below that of assistant chief, the council shall establish such special positions having special duties with preferential pay as the council deems necessary, but the existence of such special positions shall not establish eligibility for promotion to the next higher rank. No special position established by council within the ranks below that of assistant chief shall be filled without promotional examination.
(Amended by Ord. No. 304-1986, eff. Sept. 4, 1986; election of Nov. 4, 1986; amended by

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Ord. No. 238-2001, eff. Nov. 6, 2001; election of Nov. 6, 2001; amended by Emer. Ord. No. 254-2014, eff. Nov. 4, 2014; election of Nov. 4, 2014)

Section 7. Repealed.

(Repealed by Ord. No. 349-1980, eff. Sept. 4, 1980; election of Nov. 4, 1980)

Article VI.

INSTITUTIONS (REPEALED)

(Repealed by Emer. Ord. No. 254-2014, eff. Nov. 4, 2014; election of Nov. 4, 2014)

Article VII.

BOARDS AND COMMISSIONS

*Board of Park Commissioners**

Section 1. The board of park commissioners shall consist of five members. The members now serving shall continue in office until the expiration of their terms. On January 15, 1992, the mayor shall appoint one member to serve for a term ending January 1, 1998, and one member to serve for a term ending January 1, 2000. Thereafter as the term of each member expires the mayor shall appoint one member to serve for a term of six years until a successor is appointed and qualified, and shall fill all vacancies in the board for unexpired terms. The board shall appoint its employees. The board shall have the control and management of the parks and parkways of the city and may adopt and enforce regulations as to the proper use and protection of park property, and provide penalties for the violation of such regulations. Such regulations shall not take effect until copies thereof are filed with the city solicitor and with the clerk of council. Property under the control of the board shall not be transferred, or used for any but park purposes except with the consent of the board. The board shall have all other powers conferred upon boards of park commissioners by general law but council may modify such laws and may designate boulevards, streets and highways in the parks and parkways as part of the public street and road system of the city and give to the city manager supervision over the construction, repair and maintenance thereof. Such action shall be by ordinance which, unless it is approved by the board of park commissioners, shall require a vote of three-fourths of the members elected to the council.
(Amended by Ord. No. 322-1991, eff. Sept. 6, 1991, election of Nov. 5, 1991)

Planning Commission†

Section 2. The city planning commission shall consist of seven members. One member shall be the city manager or a person duly designated by the city manager who may at any time serve as alternate member for the city manager; one shall be a member of council selected by it; and five shall be electors of the city of Cincinnati appointed by the mayor.

As the term of each appointed member expires, the mayor shall appoint a successor for a term of five years. All vacancies in the commission for unexpired terms of appointed members shall be filled by the mayor.

Each member of the commission shall serve for the term of appointment and until

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a successor is appointed and qualified. All members of the commission shall serve as such without compensation.
(Amended by Ord. No. 419-1985, eff. Sept. 5, 1985; election of Nov. 5, 1985; amended by Emer. Ord. No. 254-2014, eff. Nov. 4, 2014; election of Nov. 4, 2014)

Section 3. The powers and duties of the commission shall be to make plans and maps of the whole or any portion of the city and of any land outside the city which, in the opinion of the commission, bears a relation to the planning of the city, and to make changes in additions to and extensions of such plans or maps when it deems same advisable. Such maps and plans shall show the commission's recommendations for the location and extent of streets, alleys, ways, viaducts, bridges, subways, parkways, parks, playgrounds and other public grounds and public improvements, of public buildings and other public properties, and of public utilities whether publicly or privately owned, for water, light, sanitation, transportation, communication, power and other purposes; and for the removal, relocation, widening, extension, narrowing, vacation, abandonment or change of use of any of the foregoing public places, works, buildings, or utilities. Such maps and plans may also include the division of the city into zones or districts, in accordance with the commission's recommendations for the limitation and regulation of the height, bulk (including percentage of lot occupancy and set-back building lines) and use of buildings and other structures and premises in such zones or districts.

Section 4. The commission shall have the power to control the marking of historical landmarks; to control, in the manner provided by ordinance of the council, the location of statuary and other works of art which are or may become the property of the city, and the removal or relocation of any such works belonging to the city.

Section 5. Whenever the commission shall have made a plan of the city or any portion thereof, no public building, street, boulevard, parkway, park, playground, canal, river front, harbor, dock, wharf, bridge, viaduct, tunnel and publicly or privately owned public utility, or part thereof, shall be constructed or authorized to be constructed in the city or said planned portion of the city until and unless the location thereof shall be approved by the commission; nor shall any street, avenue, parkway, boulevard or alley be opened for any purposes whatsoever without the approval of the commission; provided that in case of its failure to approve, the commission shall communicate its reason for failure to approve to the council, and the council by a vote of not less than two-thirds of its members shall have the power to overrule such failure to approve, and thereupon the council or the proper board, officer or person, as the case may be, shall have the power to act without such approval. The widening, narrowing, relocation, vacation, or change in the use of streets and other public ways, grounds and places, except change of grade, shall be subject to similar approval, and failure to approve may be similarly overruled by the council.

Section 6. No amendment of the zoning ordinance of the city or of the zone map shall be made, passed or enacted by the council until and unless such amendment shall be approved by the commission; provided that in case of its failure to approve, the commission shall communicate its reason for failure to approve to the council, and the council, by a vote of not less than two-thirds of its members, shall have the power to overrule such failure to approve and to make, adopt or enact the proposed amendment.

Section 7. The city planning commission shall be the platting commission of the city, and, as such, shall have the control of

platting and shall provide regulations governing the platting of all lands within the city or within three miles thereof, so as to secure a harmonious development and to provide for the coordination of streets with other streets and with the official city plan and to provide for open spaces for traffic, utilities, access of fire-fighting apparatus, recreation, light and air, and for the avoidance of congestion of population. Such regulations may include requirements as to the extent to which and the manner in which streets and other public ways shall be graded and improved, and to which water and sewer and other utility mains, piping or other facilities shall be installed, as a condition precedent to the approval of the plat. In lieu of the completion of such work previous to the approval of the plat, the commission may accept a contract secured by a bond in an amount and with surety satisfactory to the city manager, providing and securing to the municipality the actual construction and installation of such improvements and utilities within a period specified by the city manager and expressed in the contract and bond. The city solicitor is hereby granted the power to enforce such bonds by all appropriate, legal and equitable remedies. All such regulations shall be published as provided by law for the publication of ordinances, and before adoption a public hearing shall be held thereon, and before the same becomes effective a copy thereof shall be filed with the clerk of council. In addition to the powers expressly specified in this charter, the commission shall have all powers of control over plats and subdivision granted to city planning commissions by the statutes of Ohio.

Section 8. All plats of the subdivision of lands within the corporate limits of the city or within three miles thereof, and all instruments of dedication of lands for public use, shall be submitted to the commission and approved thereon in writing by it before they may be offered for record or accepted by the city. The approval of the commission shall not be deemed the city's acceptance of the dedication of any street, alley, way or other public ground shown on the plat or set forth in the instrument.

No street, alley, way, or other public ground shall be accepted by the city as a public street, way or ground, unless the plat and location thereof shall have been submitted to and approved by the commission; provided, however, that council may submit to the commission any ordinance proposing to accept the dedication of any such unapproved street, alley, way, or ground, and if approved by the commission, council shall have the power to accept the dedication thereof by a majority vote, or, if disapproved, by a vote of not less than two-thirds of its members.

Section 9. In addition to the powers herein enumerated, the commission shall have advisory powers upon all matters relating to the planning of the city and its development.

Section 10. No consent of the owner of property abutting on any public way or public grounds shall be required for the construction, extension, maintenance or operation of any street railway, provided the city planning commission approves the same.

*Board of Health**

Section 11. The board of health shall consist of nine members, who shall serve for a term of three years each. Not more than four of these members shall be professional providers of health services. The remaining members shall represent consumers of health

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services and citizens at large. No person shall be appointed as a member of the board for more than two consecutive full terms. For purposes of this provision, service for more than eighteen months shall be considered a full term. The members now serving shall continue in office until the appointment and qualification of a new board under the provisions of this section, at which time their present terms shall cease and determine.

Subsequent to the effective date of this section, the mayor shall appoint three of the members now serving to new terms of one year each, and the other two members to two-year terms. The mayor shall also appoint one additional person to a two-year term, and three additional persons to three-year terms. Thereafter, as the term of each member expires, the mayor shall appoint one person to serve for a term of three years and until his successor is appointed and qualified, and shall fill all vacancies on the board for unexpired terms.

The board of health shall appoint its employees. The board of health may adopt in the manner provided by state law orders, and regulations intended for the public health, the prevention or restriction of disease, the prevention, abatement and suppression of nuisances and the sanitary condition of all public markets and provide penalties for the violation thereof, but no such order or resolution shall take effect until copies thereof are filed with the city solicitor and with the clerk of council. The board of health shall have all other powers conferred upon boards of health by general laws, but the council may modify such laws by ordinance. Such ordinance, unless it is approved by the board of health, shall require a vote of three-fourths of the members elected to the council.

(This amendment became effective December 23, 1971 upon the amendment of Section 3709.05 of the Ohio Revised Code to permit municipalities to determine the composition and terms of office of boards of health.)

*Board of Trustees of Sinking Fund**

Section 12. Repealed.

(Repealed by Ord. No. Emer. Ord. No. 254-2014, eff. Nov. 4, 2014; election of Nov. 4, 2014)

Board of Rapid Transit Commissioners†

Section 13. Repealed.

(Repealed by Ord. No. Emer. Ord. No. 254-2014, eff. Nov. 4, 2014; election of Nov. 4, 2014)

Public Recreation Commission‡

Section 14. There shall be a public recreation commission consisting with one member of the board of education appointed by said board, one member of the board of park commissioners appointed by said board, and three citizens appointed by the mayor, to serve without compensation. The term of office of said members and the powers and duties of said commission shall be fixed by ordinance of the council, but all funds obtained from levies for recreational purposes, appropriated by other public bodies, or donated for such purposes to the city of Cincinnati or the public recreation commission, shall be expended by said commission.

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Article VIII.

TAXATION AND FINANCE

Section 1. The city shall have all powers of municipal home rule and taxation granted by Sections 5649-10, 5649-10a, 5649-10b of the General Code [Note], and all other provisions of law and of the constitution of Ohio now or hereafter in force.

Section 2. A complete budget system of municipal receipts and expenditures is hereby established in accord with Sections 1, 3, 4, 5, 6, 7, 8, 9 and 10 of the act passed April 17, 1925, 111 Ohio Laws 371. Council may make changes, amendments or modifications in said budget system to make it conform to amendments hereafter made in said budget law, and such other changes, amendments or modifications therein, not affecting the substance or completeness of said system as council shall have power to make under the laws and constitution of the state.

Section 3. The council shall annually levy a tax for current operating expenses on the real and personal property in the city for the purposes of the city of Cincinnati, its boards, departments and institutions. The rate of such tax shall not exceed six and sixty-five hundredths (6.65) mills on the dollar of assessed valuation. Out of said total maximum levy fifty-five hundredths (.55) of a mill may be levied only for the purposes of the University of Cincinnati, and at the request of the board of directors of the said university all or any part of said rate shall be levied. Out of said total maximum levy one-tenth (1/10) of a mill may be levied only for recreational purposes and at the request of the public recreation commission all or any part of said rate shall be levied.

Section 3a. In conformity with the law of the state of Ohio, beginning with the levy for the purposes of the year 1948, the council shall also have authority to levy annually an additional tax of forty-five hundredths (.45) of a mill upon the real and personal property of the city of Cincinnati over and above the amount authorized by Section 3 of Article VIII of the charter, for the purposes of the University of Cincinnati, and at the request of the board of directors of the said university all or any part of said rate shall be levied.

Section 3b. Beginning with the levy for the purposes of the year 1963, the council shall also have authority to levy annually an additional tax of one (1) mill upon the real and personal property of the city of Cincinnati, over and above the amounts authorized by Sections 3 and 3a of Article VIII of the charter, for the purposes of the University of Cincinnati, and at the request of the board of directors of said university all or any part of said rate shall be levied.

Section 4. The council shall annually levy outside of the limitations provided in this charter a sufficient sum to pay the principal, interest, and retirement charges on all bonds and notes of the city of Cincinnati, lawfully issued, rents due on perpetual leaseholds of the corporation not payable from a special fund, and the expenses incident to the management of the sinking fund, which entire levy shall be placed before and in preference to all other levies. Amounts certified under the laws of the state as necessary for such purposes shall not be subject to change by the council.
(Amended by Ord. No. 361-1979, eff. Sept. 6, 1979; election of Nov. 6, 1979; amended by Emer. Ord. No. 288-2015, eff. Nov. 3, 2015; election of Nov. 3, 2015)

Section 5. On or before the 15th day of September in any year the council may, by

resolution adopted by vote of two-thirds of all the members elected thereto, declare that the amount of money that may be raised by taxation under Section 3 hereof for the ensuing year together with all other funds available during the year will be insufficient to provide an adequate amount for the necessary requirements of the city, and that it is necessary to levy taxes in excess of said limitations (1) for the purpose of meeting the current expenses of the city, its boards, departments, and institutions, and (2) for any specified improvement or improvements having a life of five years or more, and may require the submission of the question of levying such additional tax to the electors of the city at the next November election. Such resolution shall specify the additional sum which it is necessary to levy, the purpose thereof and the number of years during which such increased rate may be levied which shall not exceed two years. Such resolution shall take effect upon its adoption and shall be certified within five days thereafter to the election authorities who shall place said question upon the ballot in the following form:

For the approval of an additional levy of taxes by the city of Cincinnati in the sum of $_____ to be used for the purpose of _____ and effective during the tax year _____.

Against the approval of an additional levy of taxes by the city of Cincinnati in the sum of $_____ to be used for the purpose of _____ and effective during the tax year _____.

The question covered by such resolution shall be submitted as a separate proposition, but may be printed on the same ballot with any other proposition other than the election of officers submitted at the same election. If a majority of those voting thereon vote for the approval of such additional levy, council shall immediately make such levy or such part thereof as it finds necessary, pursuant to such approval, and certify the same to the county auditor to be placed on the tax list and collected as other taxes.

Section 6a. The council shall have the power to levy such other taxes as may be lawful in accordance with the provisions of the constitution and laws of the state of Ohio.
(Amended by Ord. No. 302-1998, eff. Nov. 3, 1998; election of Nov. 3, 1998)

Section 6b. Notwithstanding the provisions of Section 6a, above, the council shall not impose a tax on the amounts paid for admissions, including, without limitation, a tax, whether stated as a percentage or otherwise, based upon any fee:

1. charged or paid for the right or privilege to enter into a place, or for the use of any facilities or grounds, whether publicly or privately owned; or
2. charged or paid as annual membership dues to any club or organization; or
3. charged or paid for admission by season ticket or subscription; or
4. charged or paid for tickets or admission to any sporting event or entertainment performance; or
5. charged or paid as a greens fee by golf courses, either under club or private ownership,

at a rate in excess of three percent (3%) of the amount of such charge without a vote of the electorate first amending this provision in the manner provided in Article XVIII, Sections 8, 9, and 14 of the constitution of the state of Ohio. For purposes of this Section 6b, the term "amounts paid for admission" shall not include any payment made for the use or possession, or the right

to the use or possession, of a room or group of rooms to be used for dwelling, lodging or sleeping purposes. Any ordinance, regulation, rule or policy enacted prior to the adoption of this amendment that violates or is otherwise inconsistent with the prohibition set forth in this Section 6b shall be null and void and of no force or effect.
(Amended by Ord. No. 302-1998, eff. Nov. 3, 1998; election of Nov. 3, 1998)

*Income Tax**

Section 6c. If the council shall at any time levy a tax on earned income, such tax may be at a uniform rate or at a graduated rate, with exemptions, and deductions to the extent such may be allowed by the constitution of the state of Ohio and laws enacted pursuant thereto. Such earned income tax shall not be at a rate in excess of one and fifty-five one-hundredths percent (1.55%) for current operating expenses and permanent improvement purposes plus fifteen-hundredths of one percent (.15%) for permanent improvement purposes only and three-tenths of one percent (.3%) for public transit purposes generally and without limitation and including both capital and current operating expenses for the remainder of the calendar year 1972 and thereafter without having obtained the approval of any tax in excess of that stated herein by the electors voting on the question at a general election or at a special or primary election.

In the event that at an election on or before November 3, 2020 the Southwest Ohio Regional Transit Authority passes a resolution, pursuant to Ohio Revised Code § 5739.023 or any successor section, to levy a sales and use tax to provide general revenues for the Southwest Ohio Regional Transit Authority and the electors of the county of Hamilton, state of Ohio approve the sales and use tax levy, so long as such levy or successor levies to it remain in effect the three-tenths of one percent (.3%) earned income tax levied for public transit purposes generally shall not be levied. If the sales and use tax levy is approved, the levy of the .3% earnings tax for public transit purposes generally shall be stopped as of the first day following the collection of the sales and use tax to provide general revenues for the Southwest Ohio Regional Transit Authority.
(Amended by Ord. No. 361-1979, eff. Sept. 6, 1979; election of Nov. 6, 1979; amended by Ord. No. 302-1998, eff. Nov. 3, 1998; election of Nov. 3, 1998; amended by Emer. Ord. No. 296-2019, passed August 7, 2019; election of Nov. 5, 2019)

Section 7. Within the limitations prescribed by law the council shall have power to issue bonds to pay for the construction of any improvement having a life of five years or more which the council under this charter or the constitution or laws of the state of Ohio has power to construct.

Section 8. No board, officer or department of the city shall borrow money or issue bonds or notes or submit to the electors any proposal therefor, under the provisions of any state law, city ordinance or otherwise, unless such action is approved by ordinance of the council, which shall have full discretion to approve or disapprove.

Article IX.

NOMINATIONS AND ELECTIONS

Section 1. All elections provided for by this charter, whether for the choice of officers or the submission of questions to the voters, shall be conducted by the election authori-

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ties prescribed by general laws; and the provisions of the general election laws of the state shall apply to all such elections except as provision is otherwise made by this charter. The provisions of the laws of the state pertaining to campaign financing, campaign contributions, and campaign expenditures shall apply to all such elections except as provision is otherwise made by ordinance of the council or this charter.

Commencing in November 2021, a regular municipal election for the choice of members of council shall be held every two years on the first Tuesday after the first Monday in November.

Commencing in November 2001, a regular municipal election for the choice of mayor shall be held every four years on the first Tuesday after the first Monday in November. A regular municipal election for the choice of mayor shall be held on the date of the regular municipal election held during the second calendar year following the mayor's election when necessary to fulfill the provisions of Article III, Section 3 of this charter. (Amended by Ord. No. 400-1985, eff. Aug. 7, 1985; election of Nov. 5, 1985; amended by Ord. No. 71-1994, eff. April 1, 1994; election of May 5, 1994; amended by Ord. No. 77-1999, eff. June 1, 2001; election of May 4, 1999; amended by Ord. No. 304-2012, eff. Aug. 1, 2012; election of Nov. 2, 2012; amended by Emer. Ord. No. 291-2023, eff. Nov. 7, 2023, election of Nov. 7, 2023)

Section 1a. Except as provided in Section 3 of Article III herein, candidates for mayor shall be determined at a nonpartisan primary election to be held on the first Tuesday after the first Monday in May immediately prior to the election, or if the State of Ohio primary will be held on an alternate date that year, to the date of the state primary. The candidates for the office of mayor shall be the two candidates from the primary election who receive the highest number of votes. In the event that no more than two persons file petitions for the office of mayor, then those persons shall be the candidates at the November election, and the primary election for the office of mayor shall not be held.

In the event of an election to fill the unexpired term of the office of mayor, the nonpartisan mayoral primary shall be held on the first Tuesday after the first Monday in August of the year of an election to fill the unexpired term of the office of mayor or, if the State of Ohio August election will be held on an alternate date that year, to the date of the state election scheduled to be held in August of that calendar year. The candidates for the unexpired term of office of mayor shall be the two candidates from the nonpartisan primary election who receive the highest number of votes. In the event that no more than two persons file petitions for the unexpired term of the office of mayor, then those persons shall be the candidates at the November election, and the primary election for the unexpired term of office of mayor shall not be held.
(Added by Ord. No. 77-1999, eff. June 1, 2001; election of May 4, 1999; amended by Emer. Ord. No. 287-2015, eff. Nov. 3, 2015; election of Nov. 3, 2015)

Section 2. Any person eligible to the office of member of the council or the office of mayor may be placed in nomination therefor only by a petition filed in such person's behalf with the election authorities and signed by not less than 500 nor more than 1000 electors. Signatures to nominating petitions need not be appended to one paper but to each separate paper there shall be attached a statement of the circulator thereof stating that each signature thereto was made in the circulator's presence and is the genuine signature of the person whose name it purports to be. Each signer of a

petition shall sign his or her name, address, and date of signing in ink or indelible pencil.

An elector may sign petitions for no more than one candidate for mayor and for no more council candidates than the number to be elected at any election. If an elector signs petitions for more than one candidate for mayor or for more than the number of other candidates to be elected, the elector's signature shall be declared valid on petitions in the order of filing.

An eligible person who has accepted a nomination for mayor as provided in Article IX, Section 4 shall not be eligible for election to the office of member of council that year. (Amended by Ord. No. 377-1984, eff. Sept. 6, 1984; election of Nov. 6, 1984; amended by Ord. No. 332-1991, eff. Oct. 4, 1991; election of Nov. 5, 1991; amended by Ord. No. 77-1999, eff. June 1, 2001; election of May 4, 1999; amended by Emer. Ord. No. 291-2023, eff. Nov. 7, 2023, election of Nov. 7, 2023)

Section 2a. Effective beginning with the municipal election of November 2021 and for each subsequent municipal election, notwithstanding any provision contained in Article II or in any other section of Article IX, no person shall hold the office of member of council for a period longer than four successive two-year terms of the council. For any person elected to council for the council term ending in January 2018 and who was thereafter elected to the council term ending in January 2022, such person may not hold office for a period longer than two four-year terms except that a member of council who was elected to council in November 2011 may be elected to no more than two consecutive four-year terms commencing on December 1, 2013. After conclusion of any period of service described in this section, any such person may not be appointed to or seek office for a subsequent council term unless that term is separated by four or more years from the member's immediately prior service. Terms shall be considered successive unless separated by a period of four or more years from the member's immediately prior service.

For the purposes of this term limit provision, any period of service during a term by a member of council elected to that council term shall constitute service for that entire council term, except that any period of service during a term by a member elected to fill a council term for less than a four-year term shall not constitute service for the council term ending in January 2022. For the purposes of this term limit provision, any period of service by a non-elected member of council during a council term shall not constitute service for that council term.
(Added by Ord. No. 77-1999, eff. June 1, 2001; election of May 4, 1999; amended by Ord. No. 304-2012, eff. Aug. 1, 2012; election of Nov. 2, 2012; Emer. Ord. No. 226-2018, eff. Aug. 1, 2018; election of Nov. 6, 2018)

Section 2b. No person shall hold the office of mayor for a period of longer than two successive terms of four years. Terms shall be considered successive unless separated by a period of four or more years. Only terms beginning on or after December 1, 2001, shall be considered in determining a person's eligibility to hold the office of mayor under this provision.

For the purposes of this term limit provision, any period of service during a term by a mayor elected for that full, four-year term shall constitute service for a four-year term. Any period of service during a term, by a mayor elected for less than that full, four-year term shall not constitute service for a four-year term. Any period of service by a non-elected mayor during a four-year term shall not constitute service for a four-year term.

For the council term ending in January 2022, should the death, removal or resignation of a member of council occur prior to June 1 of the second calendar year following the regular municipal election at which that member of council was elected to a four-year term, the person or persons designated on that member of council's successor designation certificate shall select a successor to hold office until the first Tuesday after January 1st of the third calendar year after the calendar year in which the member was elected and until a successor is elected and qualified to fill the unexpired term. An election to fill the unexpired term of that member of council will be held on the date of the regular municipal election held during the second calendar year following that member's election to council. Nomination and election of the successor member of council to the unexpired term shall be governed by the provisions of Article IX.

For the council term ending in January 2022, should the death, removal or resignation of a member of council occur on or after June 1 of the second calendar year following the regular municipal election at which that member of council was elected, the person or persons designated on that member of council's successor designation certificate shall select a successor to hold office for the remainder of the unexpired term of that member of council.

For municipal elections that occur on or after November 2021, if a member of council dies, resigns, or is removed, the person or persons designated on that member of council's successor designation certificate shall select a successor to hold office for the remainder of the unexpired term of that member of council.

(Added by Ord. No. 77-1999, eff. June 1, 2001; election of May 4, 1999; amended by Ord. No. 304-2012, eff. Aug. 1, 2012; election of Nov. 2, 2012; amended by Emer. Ord. No. 288-2015, eff. Nov. 3, 2015; election of Nov. 3, 2015; Emer. Ord. No. 226-2018, eff. Aug. 1, 2018; election of Nov. 6, 2018)

Section 3. The form of the nominating petition papers shall be substantially as follows for candidates for member of the council:

Candidate for Member of the Council
Petition of Candidate

We, the undersigned, here present _____ whose residence is _____ Cincinnati Ohio, as a candidate for the council to be voted for at the election to be held on the _____ day of November, _____; and we individually certify that we are qualified to vote for candidates for the council, and that we have signed no more than nine petitions nominating persons for members of the council.

Name	Street and Number	Date
_____	_____	_____
_____	_____	_____

Statement of Circulator

I, _____ [name of circulator of petition], declare under penalty of the election falsification laws of the state of Ohio that I am a qualified elector of the city of Cincinnati; that I reside at the address appearing below my signature; that this petition paper contains _____(number) signatures; that I witnessed the affixing of every signature; and that every signature is to the best of my knowledge and belief the signature of the person whose signature it purports to be.

Signed: _____

Address: _____

Date: _____

(Amended by Ord. No. 377-1984, eff. Sept. 6, 1984; election of Nov. 6, 1984; amended by Ord. No. 77-1999, eff. June 1, 2001; election of May 4, 1999)

Section 3a. The form of the nominating petition papers shall be substantially as follows for candidates for mayor:

Candidate for Mayor
Petition of Candidate

We, the undersigned, here present _____ whose residence is _____ Cincinnati Ohio, as a candidate for mayor to be voted for at the nonpartisan primary election to be held on the _____ day of September, _____, and at the election to be held on the _____ day of November; and we individually certify that we are qualified to vote for candidates for mayor, and that we have signed no other nominating petition for mayor.

Name	Street and Number	Date
_____	_____	_____
_____	_____	_____

Statement of Circulator

I, _____ [name of circulator of petition], declare under penalty of the election falsification laws of the state of Ohio that I am a qualified elector of the city of Cincinnati; that I reside at the address appearing below my signature; that this petition paper contains _____(number) signatures; that I witnessed the affixing of every signature; and that every signature is to the best of my knowledge and belief the signature of the person whose signature it purports to be.

Signed: _____

Address: _____

Date: _____

(Added by Ord. No. 77-1999, eff. June 1, 2001; election of May 4, 1999)

Section 4. Except as provided herein, all separate papers comprising a nominating petition for member of council or for mayor shall be assembled and filed with the election authorities as one instrument at least 75 days prior to any election at which candidates are to be determined or elected. In the event of an election to fill the unexpired term of the office of mayor, all separate papers comprising a nominating petition for the unexpired term of office of mayor shall be assembled and filed with the election authorities as one instrument at least 60 days prior to any primary election for such expired term of the office of mayor.

Within ten days after the certification of a nominating petition the election authorities shall notify the person named therein as a candidate whether the petition is found to satisfy all the prescribed conditions.

If the election authorities determine that a nominating petition has insufficient valid signatures more than 75 days prior to the election, the potential candidate may submit a supplemental nominating petition as one instrument on or before 75 days prior to any election at which candidates are to be determined or elected. If there is an election to fill the unexpired term of the office of mayor and the election authorities determine that a mayoral nominating petition has insufficient valid signatures more than fifty days prior to the election, the potential candidate may submit a supplemental nominating petition as one instrument at least fifty days prior to any primary election for such expired term of the office of mayor.

Any eligible person placed in nomination as herein provided shall have his or her name printed on the ballot if, within five days after such notification, such person files with the election authorities a written acceptance of the nomination.

(Amended by Ord. No. 377-1984, eff. Sept. 6, 1984; election of Nov. 6, 1984; amended by Ord. No. 77-1999, eff. June 1, 2001; election of May 4, 1999; amended by Emer. Ord. No. 287-2015, eff. Nov. 3, 2015; election of Nov.

3, 2015; amended by Emer. Ord. No. 291-2023, eff. Nov. 7, 2023, election of Nov. 7, 2023)

Section 5. Ballots used in electing members of the council and the mayor shall be without party mark or designation, and shall be marked by electors according to the instructions printed thereon under the heading "Directions to Voters," as specified in this section. Each elector shall be entitled to vote for one candidate for mayor and for as many candidates for the council, other than mayor, as are to be elected.

Section 5a. Except for the names of the candidates and date of the election, the ballots for election for the members of the council shall be in form substantially as follows:

Regular Municipal Election
Election For Members of the Council
November _____, _____
Direction to Voters

To vote for a candidate, place X in the rectangular space at the left of the name of such candidate.

Vote for NOT MORE THAN NINE candidates for the council. If you attempt to vote for more than nine candidates for member of the council your entire ballot will be invalid.

If you spoil this ballot, return it to the election officer in charge of ballots and obtain another ballot.

CANDIDATES FOR MEMBER OF THE COUNCIL

_____

_____

_____

_____

_____

_____

_____

_____

(Amended by Ord. No. 400-1985, eff. Aug. 7, 1985; election of Nov. 5, 1985; amended by Ord. No. 77-1999, eff. June 1, 2001; election of May 4, 1999)

Section 5b. Except for the names of the candidates and date of the election, the ballots for election for mayor shall be in form substantially as follows:

Primary or Regular Municipal Election
Mayoral Election
Direction to Voters

To vote for a candidate, place X in the rectangular space at the left of the name of such candidate.

Vote for ONE candidate for mayor. If you attempt to vote for more than one candidate for mayor, your entire ballot will be invalid.

If you spoil this ballot, return it to the election officer in charge of ballots and obtain another ballot.

CANDIDATES FOR MAYOR

_____

_____

(Added by Ord. No. 77-1999, eff. June 1, 2001; election of May 4, 1999)

Section 6. For all elections at which members of the council are to be elected, the names of all candidates for the council shall be arranged on the ballot in a group under the title of the office. For all elections at which candidates for mayor appear on the ballot, the names of all candidates for mayor shall be arranged on the ballot in a group under the title of the office. The names of all candidates in each group shall be rotated in

the manner provided by general election law to give each candidate's name reasonably equal position to the extent practical and appropriate to the voting procedure used.
(Amended by Ord. No. 400-1985, eff. Aug. 7, 1985; election of Nov. 5, 1985; amended by Ord. No. 77-1999, eff. June 1, 2001; election of May 4, 1999)

Section 7. Ballots cast for election of members of the council and mayor shall be counted and the results determined and certified by the election authorities in the manner provided by general election law for non-partisan ballots for municipalities.
(Amended by Ord. No. 400-1985, eff. Aug. 7, 1985; election of Nov. 5, 1985; amended by Ord. No. 77-1999, eff. June 21, 2001; election of May 4, 1999)

Section 8. The valid ballots cast shall be counted to determine the total number of votes cast for each candidate for member of council. Votes shall be counted for write-in candidates for members of the council who have complied with the general election law. The nine candidates receiving the highest number of votes cast shall be declared elected to the council.

Commencing with the September, 2001, non-partisan primary election, the valid ballots cast for candidates for mayor shall be counted to determine the total number of votes cast in said primary election. The two candidates receiving the highest number of votes shall be declared eligible for the regular municipal election for mayor in November and shall have their names printed on the ballot for mayor.

Commencing with the November, 2001, regular municipal election for mayor, the valid ballots cast shall be counted to determine the total number of votes cast for mayor. The candidate or eligible person receiving the highest number of votes cast for mayor shall be declared elected mayor.

If any two or more persons receive an equal and highest number of votes one of them shall be chosen as mayor according to the method prescribed by the general election laws of the state of Ohio for deciding tie votes.

Votes shall be counted for write-in candidates for mayor at the primary or regular municipal election who have complied with the general election law.
(Amended by Ord. No. 400-1985, eff. Aug. 7, 1985; election of Nov. 5, 1985; a. Ord. No. 348-1987, eff. Oct. 1, 1987; election of Nov. 3, 1987; amended by Ord. No. 77-1999, eff. June 1, 2001; election of May 4, 1999)

Section 9. All ballots, including those determined to be invalid under the election laws of Ohio, shall be set aside and preserved until 60 days after the election. Upon request of any candidate, the ballots will be preserved thereafter until any controversy arising thereon shall have been terminated.
(Amended by Ord. No. 400-1985, eff. Aug. 7, 1985; election of Nov. 5, 1985)

Section 10. At each municipal election any group of five or more candidates for election to the council may file a written application with the board of elections in the manner provided in the general election law for political parties, and be entitled to exercise as provided thereunder all rights and power relating to witnesses, challengers and inspectors of election at the polling places and at the central counting place granted under the general election law.
(Amended by Ord. No. 400-1985, eff. Aug. 7, 1985; election of Nov. 5, 1985)

Section 11. The council shall have power to provide for the use of mechanical, electronic or other devices for marking and sorting the ballots and tabulating the results and to modify the form of the ballot, the

directions to voters, and the details in respect to the method of counting, invalidating, and preserving ballots accordingly.

In the event that council does provide in any election for the use of mechanical, electronic or other devices for marking and sorting the ballots and tabulating the results, then such election shall be conducted in accordance with the laws of the state of Ohio, now or hereafter in force, relating to voting and tabulating equipment.
(Added by Ord. No. 400-1985, eff. Aug. 7, 1985; election of Nov. 5, 1985)

Section 12. If any provision of Article IX, Section 2, is amended, is held unconstitutional or in violation of state law, this shall not affect the validity, force or effect of any other provision of Article IX, Section 2.
(Added by Ord. No. 332-1991, eff. Oct. 4, 1991; election of Nov. 5, 1991)

Article X.

MISCELLANEOUS (REPEALED)

(Amended by Ord. No. 302-1998, eff. Nov. 3, 1998; election of Nov. 3, 1998; amended by Ord. 77-1999, eff. May 4, 1999; election of May 4, 1999; repealed by Emer. Ord. No. 254-2014, eff. Nov. 4, 2014; election of Nov. 4, 2014)

Article XI.

FLUORIDATION OF WATER*

Any ordinance enacted by the Council of the City of Cincinnati which provides for the fluoridation of water processed and distributed by the Cincinnati Water Works must first be approved by a majority of the electors voting on the question at a special or general election before said ordinance shall become effective, and any ordinance to fluoridate the water distributed by the Cincinnati Water Works that may have been enacted before this amendment is adopted shall cease to be effective until approved by a majority of the electors voting on the question at a special or general election.

*This heading does not constitute part of the text of the charter of the city of Cincinnati. It was added solely for convenience in identifying subject matter in the January, 1969 republication of the charter by the clerk of council.

Article XII.

NO SPECIAL CLASS STATUS MAY BE GRANTED BASED UPON SEXUAL ORIENTATION, CONDUCT OR RELATIONSHIPS (REPEALED)

(Added by Ord. No. 314-1993, effective August 25, 1993; election of November 2, 1993; repealed by Ord. No. 271-2004, eff. 8-4-2004; election of November 2, 2004)

Article XIII.

CAMPAIGN FINANCE

Section 1. Limits on Contributions

a. In the period from the day after the municipal election of any member of council through the next general election for any member of council, a person may contribute not more than $1,100 to any one candidate for council, except that a political action committee may contribute not more than $2,700, and a political party or legislative campaign fund may contribute not more than $10,500. Such amounts shall be subject to periodic adjustment pursuant to Section (4)(f)(2) herein.

b. In the period from the day after the municipal general election of a mayor through the next primary for the selection of candidates for mayor, if a primary is held, a

person may contribute not more than $1,100 to any one candidate for mayor, except that a political action committee may contribute not more than $2,700, and a political party or legislative campaign fund may contribute not more than $10,500. Such amounts shall be subject to periodic adjustment pursuant to Section (4)(f)(2) herein.

c. In the period from the day after the primary for the selection of candidates for mayor through the next municipal general election of a mayor, identical limitations as in subsection b apply to contributions to any one candidate for mayor in the regular or special election for mayor. If there is no mayoral primary, the contribution limits for mayoral candidates provided in this section shall apply to the period from the day after the municipal general election of a mayor through the next municipal general election of a mayor.

d. A candidate in a council or mayoral election may not solicit or accept a contribution proscribed by this section.

e. 1) The limit set forth in this section on contributions by a political action committee applies to the combined contributions of all the political action committees established, financed, maintained, or controlled by the same corporation, organization, labor union, continuing association, or other person, including a subsidiary, division, or department thereof.

2) A limit on contributions by a political party applies to the combined contributions of national, state, and local organizations of the same party.

f. 1) No partnership or other unincorporated business shall make a contribution or contributions solely in the name of the partnership or unincorporated business.

2) Any contribution made from the funds of a partnership or other unincorporated business shall allocate the contribution or a portion of the contribution to the person, owner, member, and/or partner making the contribution.

3) The contribution allocation shall be included in the $1,100 individual contribution limit for that person, owner, member, and/or partner.

g. The limitations in this section do not apply to:

1) (Repealed)

2) an unexpended permissible contribution raised in one period and carried over to the next, or

3) the personal contributions of a candidate or the candidate's spouse.

(Amended by Ord. No. 304-2012, eff. Aug. 1, 2012; election of Nov. 2, 2012; amended by Emer. Ord. No. 254-2014, eff. Nov. 4, 2014; election of Nov. 4, 2014; Emer. Ord. No. 229-2018, effective Aug. 1, 2018, election of Nov. 6, 2018; Emer. Ord. No. 264-2025, eff. Aug. 6, 2025, election of Nov. 4, 2025)

Section 2. Reporting of Contributions and Expenditures.

a. A candidate, political action committee, legislative campaign fund, or political party that made or received a contribution or expenditure supporting a candidate for city council or mayor shall file with the Commission a full, true, and itemized report of each contribution or expenditure in the manner and form required by the Commission, and in accordance with the deadlines

and reporting periods established for such reports under Section 3517.10 of the Ohio Revised Code, or any successor provision. Each report shall include the full name and address of each person from whom a contribution was received or to whom an expenditure was made, the date and value of each contribution or expenditure, and for any individual contributing more than $100 in the reporting period, the employer or, if self-employed, the occupation of the individual. The Commission may require additional information to be included in each report.

b. If a report to the Commission would be required pursuant to section a, but a candidate, political action committee, legislative campaign fund, or political party has received no contributions and made no expenditures since the period covered by its most recently filed statement, it shall instead file a statement with the Commission affirming that no activity occurred, in the manner and form required by the Commission, and by the same deadlines set forth in section a.

c. Reporting of independent expenditures:

1) Within 10 days of making independent expenditures totaling more than $1,000 in a period specified in section 1a, b, or c, the person making the expenditures shall file a report of the expenditures with the Commission in the manner and form required by the Commission. If a portion of the expenditures is made within 30 days of the election, the person shall file the report within 48 hours, and if made within 7 days of the election the person shall file the report within 24 hours.

2) If a person makes independent expenditures totaling more than $3,000 and accepts a contribution to the expenditures over $100, the person shall include in the report of the expenditures the name, residence address and employer or, if self-employed, the occupation of the contributor.

d. Penalties.

1) Contribution. When the Commission chooses to impose a penalty for making, soliciting, or accepting a contribution that exceeds the maximum permitted by this section, the penalty shall be a civil fine equal to three times the excess contribution.

2) Reporting. The penalty for failure to file a report required by this section is a civil fine for each day of violation a) in a council election, $100, and b) in a mayoral election, $200.

3) A penalty under subsection (2) does not apply if an addendum supplying the required information is filed within the time established in section 4d.

(Amended by Ord. No. 252-2011, effective Nov. 8, 2011, election of Nov. 8, 2011; Emer. Ord. No. 229-2018, effective Aug. 1, 2018, election of Nov. 6, 2018; Emer. Ord. No. 264-2025, eff. Aug. 6, 2025, election of Nov. 4, 2025)

Section 3. Prohibition on Public Financing of Campaigns

Notwithstanding anything in this Charter to the contrary, no monies of the City of Cincinnati or any of its Boards or Commissions, from any source whatsoever, or funds of any other entity disbursed by the City or any of its Boards or Commissions, may be disbursed to any candidate for any public office, campaign committee of any candidate for any public office, political action committee, or political party, or may be expended for the purpose of advocating the election or

defeat of any candidate for any public office, or for the passage or defeat of any ballot issue.
(Amended by Ord. No. 284-2002, effective 12-5-02; election of November 5, 2002; amended by Emer. Ord. No. 254-2014, eff. Nov. 4, 2014; election of Nov. 4, 2014)

Section 4. Cincinnati Elections Commission

a. The Commission shall administer and enforce this Article.

b. Membership.

1) Number. The Commission consists of at least five members to include a) one member affiliated with each political party with which one or more council members or the mayor is affiliated, and b) the minimum number of members not affiliated with a political party necessary to have five members or an uneven number, but not fewer than one.

2) Nomination and appointment.

a) Party-affiliated member: Within 7 days of the occurrence of a vacancy in a party-affiliated position on the Commission, the city shall send written notification of the existence of a vacancy to the local executive committee of the same political party. Within 30 days of the listed date of the written notification of the occurrence of a vacancy in a party-affiliated position on the Commission, the local executive committee of the same political party with which the former Commission member was affiliated shall submit to the mayor the names of three individuals affiliated with that party. Within 15 days of receiving the three names, the mayor shall appoint one of the nominees. If the party committee fails to submit a total of three names within the required time, the mayor shall appoint an individual affiliated with that party within 15 days.

b) Non-party affiliated member: Within 30 days of the occurrence of a vacancy in a non-party affiliated position on the Commission, the mayor shall appoint a person who has not been nominated by a political party during the current election cycle to fill the vacancy. The Commission may grant an extension if additional time is reasonably necessary to identify and appoint an eligible non-party affiliated candidate.

3) Terms.

a) Except as provided in subsections (d) and (f) a Commission member serves a four-year term, which shall begin on December 1 of the year in which the member is appointed unless the Commission member is appointed to fill an unexpired term.

c) If appointed to fill an unexpired term, a Commission member serves until the expiration of the predecessor's term.

d) The Commission members serving on November 6, 2018, shall continue in office until the expiration of their existing terms. Subject to subsection (e), such members are eligible to be appointed to serve additional terms on the Commission.

e) The members appointed to fill the expired terms of the members

serving on November 6, 2018 shall serve a term of four years plus whatever additional time is necessary for their terms to expire on November 30 of that year.

f) A Commission member may not serve more than two consecutive terms but any period in which the member filled an unexpired term less than 3 years in length shall not count toward the prohibition against serving two consecutive terms.

g) Commission members' terms shall be staggered so that no more than a simple majority of the terms expire in a single year. If additional members are appointed to the Commission pursuant to section 4(b) of this Article, the mayor shall have the discretion to appoint such members to an initial term of 3, 4, or 5 years so that the terms of no more than a simple majority of the members expire in a single year.

4) Qualifications and prohibitions. A Commission member must be a resident registered to vote in the city of Cincinnati but may not:

a) hold or be a candidate for public office;

b) be an officer of a political party;

c) be a legislative agent;

d) be in the unclassified service under Ohio civil service law or an individual or employee described in Ohio Revised Code section 4117.01(C)(1) through (12); and

e) as to a Cincinnati municipal election,

i) make or solicit a contribution supporting or opposing a candidate or ballot question or issue; or

ii) serve on a committee of a political party, political action committee, or contributing entity.

iii) Any Commission member who violates one of the prohibitions as to a Cincinnati municipal election shall have 30 days to cure the violation.

5) Organization and staff.

a) The Commission shall:

i) elect from its members a chairperson and a vice-chairperson, both of whom may not be affiliated with the same political party, to serve a four-year term. The chairperson may not have served more than one previous term as chairperson and may not be affiliated with the same political party as the immediately preceding chairperson;

ii) adopt rules of procedure;

iii) meet on the call of the chairperson or the written request of a majority of members; and

iv) act only with the concurrence of a majority of members.

b) The Commission may request the City Solicitor to assist it in carrying out its duties.

c. Duties of the Commission. The Commission shall adopt rules to administer and enforce this article including provisions for:

1) the filing of reports by electronic means, and other means it considers appropriate;

2) review and investigation of a) a report filed with it for compliance with this Article, and b) a sworn complaint based on personal knowledge alleging a violation of this Article;

3) making a preliminary determination that a report filed with it is complete and accurate, and does not indicate any overcontributions;

4) immediate notice to a person alleged to have violated this Article;

5) holding a hearing that meets due process requirements for the alleged violator within 30 days of receipt of the notice of the alleged violation; and

6) sending to the alleged violator and the complainant within 30 days of the end of the hearing a written decision on the alleged violation.

d. Addendum to the report.

1) If the Commission makes a preliminary determination that a report filed with it is incomplete, inaccurate, or contains an overcontribution, it shall conditionally accept the report and by certified mail notify the filer of its determination.

2) Within 7 days of receipt of the notice, the filer may submit an addendum that corrects the deficiency or indicates the refund or return of an overcontribution. The Commission may grant an extension to file the addendum. If the filer fails to submit an acceptable addendum, the Commission shall conduct further proceedings in accordance with subsection c.

e. Finding a violation. After finding a violation of this Article, the Commission may impose a civil fine or other penalty authorized by this Article. The Commission shall refer to the appropriate city agency collection of a civil fine the Commission imposes or recovery of excess payments to a candidate.

f. Additional powers and duties of the Commission.

1) The Commission may:

a) apply to council to issue and compel compliance with a subpoena ordering attendance of a witness or production of a document, and to administer oaths; or

b) render an advisory opinion. A person who reasonably relies on a Commission advisory opinion is not liable for a violation of this Article.

2) Every four years, the Commission shall adjust the contribution limits in section 1 by the same percentage as the periodic adjustments to the salaries of the mayor and a council member, rounded up to the nearest one hundred dollars.

3) Periodically, the Commission shall file timely reports on the operation of this Article, including one comprehensive report each election cycle within five months after an election.

(Amended by Ord. No. 304-2012, eff. Aug. 1, 2012; election of Nov. 2, 2012; amended by Emer. Ord. No. 254-2014, eff. Nov. 4, 2014; election of Nov. 4, 2014; Emer. Ord. No.

229-2018, eff. Aug. 1, 2018, election of Nov. 6, 2018; Emer. Ord. No. 264-2025, eff. Aug. 6, 2025, election of Nov. 4, 2025)

Section 5. Repealed
(Repealed by Emer. Ord. No. 254-2014, eff. Nov. 4, 2014; election of Nov. 4, 2014)

Section 6. Council and Article IX of the Charter of the City of Cincinnati

The council may not exercise a power under Article IX, Section 1, inconsistent with this Article.

Section 7. Definitions

a. In this Article

1) "commission" means the Cincinnati elections commission;

2) "candidate" includes a candidate's campaign committee;

3) "report" includes a statement or other document;

4) "mayoral election" includes a primary election for the selection of candidates for mayor;

5) "partnership or other unincorporated business" means the same as the definition of "partnership or other unincorporated business" in Section 3517.10(I)(6) of the Ohio Revised Code or any successor to Section 3517.10(I)(6);

6) "party-affiliated member" means a nominee for the commission who was nominated by a political party for a current vacancy on the commission;

7) "political party" means an organization (a) whose candidate received a number of votes equal to at least five percent of the number of persons voting for candidates for council in the last election for that office, or (b) is recognized as a political party for any purpose by a federal court;

8) "the period between successive elections of members of council" means the period beginning on the thirty-second day after the municipal general election of members of council and ending on the thirty-first day after the next municipal general election of members of council;

9) "person" as used in this Article means the same as the definition of "person" in Section 3517.01(C)(17)(a) of the Ohio Revised Code or any successor to Section 3517.01(C)(17)(a);

10) "special election" means an election to fill the unexpired term of mayor which is held on the date of the regular municipal election as indicated in Article III, Section 3;

11) "day" shall mean a calendar day, unless stated otherwise;

12) "legislative agent" means any individual, except a member of the council, the city manager, or a member of the staff of the council or the city manager, who is engaged during at least a portion of his or her time to promote, advocate, or oppose the passage, modification, or defeat of any legislation by direct communication with any member of the council or appointee of the council, the city manager, the director of any department listed in the charter or administrative code of the city, or any city employee who is required to file a financial disclosure statement under Article XXVI of the administrative code and whose official duties are to formulate policy and who exercises administrative or supervisory authority or who authorizes the expenditure

of city funds. "Legislative agent" does not include any person not engaged by an employer who has a direct interest in legislation if the person, acting under Section 3 of Article I, Ohio Constitution, assembles together with other persons to consult for their common good, instructs a public officer or employee who is listed in this chapter, or petitions that public officer or employee for the redress of grievances.

b. Unless otherwise defined in this Article, a word used in this Article has the same meaning as in Section 3517.01 of the Ohio Revised Code.

(Added by Ord. 258-2001, effective September 6, 2001; election of November 6, 2001; amended by Ord. No. 304-2012, eff. Aug. 1, 2012; election of Nov. 2, 2012; Emer. Ord. No. 229-2018, effective Aug. 1, 2018, election of Nov. 6, 2018)

Article XIV.

LIMITATIONS ON USE OF PHOTO-MONITORING DEVICES TO DETECT CERTAIN TRAFFIC LAW VIOLATIONS

Section 1. The city, including its various boards, agencies, and departments, shall not use any traffic law photo-monitoring device for the enforcement of a qualified traffic law violation, unless a law enforcement officer is present at the location of the device and personally issues the ticket to the alleged violator at the time and location of the violation.

(Added by Ord. No. 276-2008, § 1, effective November 4, 2008; election of November 4, 2008)

Section 2. Definitions.

As used in this Article XIV:

Section 2a. "Law enforcement officer" means any law enforcement officer employed by the city or any other political jurisdiction in Ohio, including the state. The city may from time to time and in its discretion, by ordinance or resolution, designate which city employees are "law enforcement officers" for purposes of this Article XIV.

Section 2b. "Qualified law traffic violation" means a violation of any of the following: (1) any state or local law relating to complying with a traffic control signal or a railroad crossing sign or signal; or (2) any state or local law limiting the speed of a motor vehicle.

Section 2c. "Ticket" means any traffic ticket, citation, summons, or other notice of liability (whether civil or criminal) issued in response to an alleged qualified traffic law violation detected by a traffic law photo-monitoring device.

Section 2d. "Traffic law photo-monitoring device" means an electronic system consisting of a photographic, video, or electronic camera and a means of sensing the presence of a motor vehicle that automatically produces photographs, videotape, or digital images of the vehicle, its license plate, or its operator.

(Added by Ord. No. 276-2008, § 1, effective November 4, 2008; election of November 4, 2008)

Section 3. Any ordinance enacted prior to the passage of this Article XIV that contravenes any of the foregoing is void. After the enactment of this Article XIV, the city shall not enact or enforce any ordinance that contravenes any of the foregoing. In the event that any provision of this Article XIV is found to be unconstitutional or impermissibly in conflict with state or federal law, only such provision found to be

unconstitutional or impermissible will be stricken, and the remainder of this Article XIV will remain in full force and effect.
(Added by Ord. No. 276-2008, § 1, effective November 4, 2008; election of November 4, 2008)

Article XV.

PREVENTION OF THE TRANSFER OR SALE OF ANY ASSETS OF THE CITY OF CINCINNATI, OR ANY OF ITS BOARDS OR COMMISSIONS, TO ANY REGIONAL WATER DISTRICT, OR ANY REGIONAL WATER AND SEWER DISTRICT, FORMED PURSUANT TO OHIO REVISED CODE CHAPTER 6119

The city of Cincinnati, and its various boards and commissions, may not transfer or sell any assets of the City of Cincinnati, or any of its boards or commissions, to any regional water district, or any regional water and sewer district, formed pursuant to Ohio Revised Code Chapter 6119 without first submitting the question of the approval of such transfer or sale of assets to a vote of the electorate of the city and receiving a majority affirmative vote for the same.
(Added by Ord. No. 238-2009, § 1, effective November 3, 2009; election of November 3, 2009)

Article XVI.

AGAINST A TAX OR ASSESSMENT ON TRASH COLLECTION

Section 1. The City, including its various Boards, agencies, and departments, shall not assess, levy, or collect any tax or general assessment on real properties, or against the owners or occupants thereof, for the collection, transportation or disposal of trash, garbage, waste, rubbish or refuse.
(Added by Emer. Ord. No. 283-2011, § 1, effective November 8, 2011; election of November 8, 2011)

Section 2. Nothing in this Article shall prevent the City, including its various Boards, agencies, departments and commissions, from doing any of the following: (i) collecting other taxes and otherwise permissible funds in the general fund and using those revenues, in part, for providing a service of the collection of trash, garbage, waste, rubbish, and refuse, (ii) imposing assessments on specific properties that have properly been determined to be a nuisance for the removal of trash, garbage, waste, rubbish, or refuse, (iii) imposing criminal or civil sanctions for littering, or (iv) renting dumpsters and other trash collection devices to commercial property owners and charging fees for such rental.
(Added by Emer. Ord. No. 283-2011, § 1, effective November 8, 2011; election of November 8, 2011)

Section 3. Any ordinance enacted prior to the passage of this Amendment that contravenes the foregoing is void. After the enactment of this Amendment, the City shall not enact or enforce any ordinance that contravenes the foregoing. In the event that any provision of this Article is found to be unconstitutional or impermissibly in conflict with state or federal law, only such provision found to be unconstitutional or impermissible will be stricken, and the remainder of this Article will remain in full force and effect.
(Added by Emer. Ord. No. 283-2011, § 1, effective November 8, 2011; election of November 8, 2011)

THE ADMINISTRATIVE CODE*

Article I. General

Sec. 1. Principal Appointive Officers.
Sec. 2. Designation to Perform Duties Where Office Title Discontinued.
Sec. 3. Administrative Organization of Departments.
Sec. 4. Department Personnel.
Sec. 5. Work Assignments.
Sec. 6. Administrative Reports.
Sec. 7. Departmental Rules and Regulations.
Sec. 8. Repealed.

Article II. City Manager

Sec. 1. City Manager to Appoint, Dismiss or Suspend Employees.
Sec. 2. Performing Duties of Office in Case of Vacancy, Disability, etc.
Sec. 3. Powers of Investigation; Consultants.
Sec. 4. Budget Duties.
Sec. 5. Contracts.
Sec. 6. Administrative Services.
Sec. 7. Office of the City Manager.
Sec. 8. Assistants to the City Manager.
Sec. 9. Office of Budget and Evaluation.
Sec. 11. Assistant and Acting City Manager.
Sec. 12. Appointment and Qualifications of Hearing Examiners.
Sec. 13. Repealed.
Sec. 14. Repealed.
Sec. 15. Internal Audit Division.
Sec. 16. Repealed.
Sec. 17. Repealed.
Sec. 18. Authority and Control of Real Property.
Sec. 19. Cincinnati Union Terminal.
Sec. 20. Repealed.
Sec. 21. Repealed.
Sec. 22. Retirement Division.
Sec. 23. Emergency Communications Center Division.
Sec. 24. Office of Opportunity.
Sec. 25. Expungement of Marijuana-Related Offenses.
Sec. 26. Tenant Information Website—City Website.

Article III. Department of Law

Sec. 1. City Solicitor; Assistants.
Sec. 2. Duties of City Solicitor.
Sec. 3. Compensation from Hamilton County.
Sec. 4. Records.
Sec. 5. Attendance at Council Meetings.
Sec. 6. Acceptance of Dedicated Streets.
Sec. 7. Acquisition and Appropriation of Real Property, Assessments.
Sec. 8. Acting City Solicitor.
Sec. 9. Real Property Inventory Management.
Sec. 10. Ethics and Good Government Counselor; Code Compliance and Administrative Hearings.

*Adopted and amended in accordance with Article II, Section 7 of the Charter.

Article IV. Departments of Police and Fire

Sec. 1. Department of Police.
Sec. 2. Chief of Police.
Sec. 2-A. Special Police Officers.
Sec. 2-B. School Crossing Guards.
Sec. 3. Private Police Officers.
Sec. 4. Police Training School.
Sec. 4-A. Duties with Respect to Racial Profiling.
Sec. 4-B. Repealed.
Sec. 5. Department of Fire.
Sec. 6. Fire Chief.
Sec. 7. Authority in Preventing Spread of Fire.
Sec. 8. Cincinnati Fire Prevention Board of Appeals.
Sec. 9. Fire Department Training School.
Sec. 10. Bomb Disposal Unit.
Sec. 11. Repealed.
Sec. 12. Repealed.
Sec. 13. Repealed.
Sec. 14. Repealed.

Article V. Department of Transportation and Engineering

Sec. 1. Director of Transportation and Engineering.
Sec. 2. Duties of the Director of Transportation and Engineering.

Article VI. Department of Public Services

Sec. 1. Director of Public Services.
Sec. 2. Duties of Director of Public Services.
Sec. 3. Repealed.
Sec. 4. Repealed.
Sec. 5. Repealed.

Article VII. Reserved

Article VIII. City Water Works

Sec. 1. Superintendent of Water Works.
Sec. 2. Supplying Water Outside City Limits.
Sec. 3. Division of Stormwater Management Utility.

Article IX. Department of Finance

Sec. 1. Department of Finance; Personnel.
Sec. 2. Director of Finance; Budgetary Duties.
Sec. 3. Director of Finance; General Duties.
Sec. 3-A. Assistant Director of Finance.
Sec. 4. Division of Accounts and Audits; Superintendent of Accounts and Audits.
Sec. 5. Superintendent of Accounts and Audits; Duties.
Sec. 6. Superintendent of Accounts and Audits; Financial Reports.
Sec. 7. Department and Divisional Accounts.
Sec. 8. Record of Value of Personal Property.
Sec. 9. Opening of Bids.
Sec. 10. Custody of Official Bonds, Contracts, etc.
Sec. 11. Division of Treasury; City Treasurer; Deputy Treasurers.
Sec. 12. City Treasurer; General Duties.

Sec. 13. Collection of Moneys Due City.
Sec. 14. Collection of Moneys by Departments or Divisions.
Sec. 15. Custody of Securities, Bonds and Other Negotiable Instruments.
Sec. 16. Licenses.
Sec. 17. Assessments, Charges, etc.; Notices, Collection.
Sec. 18. Absence, Disability, Vacancy.
Sec. 19. Income Tax Bureau.
Sec. 21. Repealed.
Sec. 22. Division of Risk Management; Risk Manager; Duties.
Sec. 23. Division of Purchasing; City Purchasing Agent; Duties.
Sec. 24. City Purchasing Agent; Duties.
Sec. 25. City Purchasing Agent: Combined Purchases; Authorization to Sign Contracts.
Sec. 26. Division of Budget and Evaluation.

Article XI. Personnel Officer

Sec. 1. Roster or City Employees.
Sec. 3. Personnel Administration.

Article XIV. Public Recreation Commission

Sec. 1. Member.
Sec. 2. Officers; Meetings.
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Article XV. Retirement System

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Sec. 4. Notice to the Governor and Sheriff.
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Article XIX. Department of Sewers

Sec. 1. Director of Sewers.
Sec. 2. Duties.
Sec. 3. Services of Other Departments.
Sec. 4. Authority to Deal with the Board of County Commissioners.
Sec. 5. Storm Sewers.
Sec. 6. Repealed.
Sec. 7. Repealed.

Article XX. Health Department

Sec. 1. Repealed.
Sec. 2. Medical Services.
Sec. 3. Severance.

Article XXI. Department of Buildings and Inspections

Sec. 1. Department of Buildings and Inspections.
Sec. 2. Duties of Director of Buildings and Inspections.
Sec. 3. Division of Permits and Inspections.
Sec. 4. Repealed.
Sec. 5. Division of Property Maintenance Code Enforcement.
Sec. 6. Appeals from the Chief Building Official.
Sec. 7. Board of Examiners of Plumbers.
Sec. 8. Examination of Plumbers.

Article XXII. Regional Computer Center

Sec. 1. Repealed.
Sec. 2. Repealed.

Article XXIII. Department of Economic Development

Sec. 1. Repealed.
Sec. 2. Repealed.

Article XXIV. Department of Community and Economic Development

Sec. 1. Department of Community and Economic Development.
Sec. 2. Duties of Director of Community and Economic Development.
Sec. 3. Repealed.

Article XXV. Department of City Planning and Engagement

Sec. 1. Department of City Planning and Engagement.
Sec. 2. Duties of the Director of the Department of City Planning and Engagement.
Sec. 3. Zoning Administrator.
Sec. 4. Urban Conservator.
Sec. 5. Repealed.
Sec. 6. Repealed.
Sec. 7. Repealed.
Sec. 8. Repealed.

Sec. 9. Repealed.
Sec. 10. Repealed.
Sec. 11. Repealed.

Article XXVI. Financial Disclosure Requirements

Sec. 1. When Financial Disclosure Statement Required.
Sec. 2. Definitions.
Sec. 3. Financial Disclosure Statement to Contain Certain Information.
Sec. 4. Statement to be Filed Annually.
Sec. 5. Administrative Regulations; Notice; Forms.
Sec. 6. Failure to Comply.

Article XXVII. Board of Park Commissioners

Sec. 1. Urban Forestry.
Sec. 2. Severance.

Article XXVIII. Citizen Complaint Authority

Sec. 1. Purpose.
Sec. 2. Staffing and Powers.
Sec. 2-A. The Board of Citizens.
Sec. 2-B. Executive Director.
Sec. 2-C. Investigators.
Sec. 3. CCA Investigation Process.
Sec. 3-A. Investigation Assignment.
Sec. 3-B. CPD and City Cooperation.
Sec. 3-C. Time Allowed for Investigation Completion/Submission of Reports.
Sec. 3-D. Board Hearing.
Sec. 3-E. Public Availability of Reports.
Sec. 3-F. Records.
Sec. 4. Prevention.
Sec. 5. Information Dissemination.
Sec. 6. Resources and Redundancy.

Article XXIX. Department of Economic Inclusion

Sec. 1. Director of Economic Inclusion.
Sec. 2. Duties of the Director of Economic Inclusion.

Article XXX. Administrative Boards

Sec. 1. Staffing of Administrative Boards.
Sec. 2. Membership of Administrative Boards.
Sec. 3. Rules and Procedures of the Administrative Boards.
Sec. 4. Historic Conservation Board.
Sec. 5. Board of Building Appeals.
Sec. 6. Zoning Board of Appeals.
Sec. 7. Board of Housing Appeals.

HISTORICAL

Article II, Section 7 of the charter required the adoption by majority vote of council of an administrative code providing for a complete plan of administrative organization of the city government within six months of the adoption of the charter which occurred on November 2, 1926. Thereafter, except as provided specifically in the charter, council was authorized to change, abolish, combine and rearrange the departments, divisions, and board of the city government as provided for in the administrative code so adopted; but any ordinance creating, combining, abolishing, or decreasing the powers of any department, division, or board requires the approval by vote of three-quarters of the members elected to council.

THE 1927 ADMINISTRATIVE CODE

The original administrative code contained nineteen articles and was adopted in 1927. It became Chapter 2 of Title II of the 1928 Code of Ordinances and did not include material covering boards, commissions and institutions of the city, which constituted Chapter 3 of Title II of the 1928 Code of Ordinances. Nor did it include supplementary administrative provisions, Chapter 4 of that title, which contained much material that eventually came to be placed within the administrative code.

THE 1930 ADMINISTRATIVE CODE

A revised administrative code was adopted in 1930, reorganizing the governmental structure by reducing the number of departments and constituting several previously existing departments as divisions of other new departments. It was to a great extent the foundation of the present administrative code and contained thirteen articles, the last of which "Declaratory" became inoperative when transition adjustments from the 1927 administrative code to the 1930 administrative code were completed.

The 1930 administrative code was separate and distinct from the code of ordinances and appears in the 1936 publication of the recodification of the ordinances on pages 37 through 56. From 1930 to March 5, 1969, the administrative code changed relatively slowly, and in most instances involved only one or two articles of the code being altered at any particular time.

Changes which have occurred since 1930 will be set forth below chronologically. Only changes having substantial effect upon the functions and operations of the city governmental structure are included.

1940 AND 1941

At the end of 1940 an ordinance amending the administrative code by ordaining Section 6 of Article II, pertaining to the city manager, brought a significant change in the structure of the city government. The city solicitor was designated to perform the duties of the city manager in the absence or disability of the city manager.

At the same time Section 8 of Article III, Department of Law, was ordained to provide for the appointment of a first assistant solicitor and a second assistant solicitor who would assume the duties of solicitor during his absence or disability. The chain of command, therefore, for the administrative service of the city ran from the city manager to the city solicitor and from him to the first assistant solicitor and then to the second assistant solicitor.

This same period brought a substantial change in Article IV, Department of Safety, when Sections 8 and 15 of that article dealing with the city's own police and fire pension systems were invalidated by the Ohio Supreme Court in the case of Cincinnati v. Gamble, 138 O.S. 220. The decision dealt a substantial blow to the home rule authority of municipalities by expanding control by the

state legislature over the operations, activities, administration, and functioning of municipal police departments. It was many years before the Supreme Court of Ohio took a more liberal view of the rights of municipalities to exercise discretion in regard to many aspects of police and fire administration.

In 1941 supervision of the city employees retirement system by the personnel officer was eliminated through the repeal of Article XI, Section 2 of the administrative code, and a new Article XV, Retirement System, was enacted. This article created a board of trustees to administer the system, provided that the trustees serve without compensation, provided for the organization of the board of trustees, and authorized it to make rules and regulations governing the administration of funds and the transaction of the board's business. The board was required to make annual fiscal reports to council and was required to designate a medical director to pass upon all medical examinations required by the system. The board was also required to designate an actuary to be its technical advisor. Provision was made for actuarial investigations in regard to mortality, service, and compensation service of members and beneficiaries of the retirement system and for evaluation of its assets and liabilities.

1946

In September, 1946, council amended Section 5 of Article XIV of the administrative code, Public Recreation Commission, and repealed existing Sections 5 and 6 of that article to change the position of director of public recreation to that of superintendent of recreation and to specifically authorize him to carry out the police decisions made by the public recreation commission, of which the superintendent was made the secretary and chief administrative officer. He was also given authority to sign contracts for the services of umpires, referees, special directors, musicians, instructors, accompanists, and others who perform special and occasional duties on behalf of the recreation commission. Generally, he was to manage the facilities operated by the commission and direct and oversee its programs and activities.

1950

In 1949 the charter of the city of Cincinnati was amended to provide for the creation by ordinance of council of a department of finance including the transfer to the director of finance of the duties of the city treasurer and city auditor. The creation of such a department, of course, reduced the positions of city treasurer and auditor to a level subordinate to the director of finance and made their duties dependent upon the administrative code rather than on the charter.

In 1950 council passed the ordinance to implement this charter provision. All sections of Article IX, formerly entitled City Treasurer, were repealed and an entire new chapter setting forth the powers and duties of the director of finance, the superintendent of accounts and audits, the city treasurer, and of the divisions under these individuals, was enacted. At the same time former Article XII, City Auditor, was repealed. These changes brought about a major revision of the governmental structure of the city of Cincinnati in relation to the handling of financial matters.

At the time of this change in the department of finance, Section 3 of Article I, General, and Section 3 of Article XV, Retirement System, were amended to delete references to the city treasurer and city auditor, and Ordinance No. 391-1950 was passed vesting in and imposing upon the director of finance all functions, powers and duties which were then devolved upon, vested in and imposed upon the city auditor.

1955

In December of 1955 there was established in the department of finance the income tax

bureau, headed by the tax commissioner. It was created for the administration and enforcement of city income taxes heretofore or hereafter levied.

1956

In addition to the transfer of traffic engineering from the safety department to the department of public utilities, as was authorized two years before, 1956 saw what was to be the beginning of a program of great impact upon the city of Cincinnati when council, in April of that year, created the department of urban renewal and established the duties of the director of that department by ordaining Article XVI, Sections 1 and 2 of the administrative code.

The 1956 reprinting of the code of ordinances contained the administrative code, with all changes up to January 1, 1957, on pages 21 through 40.

1957

The chain of command of the administrative services of the city altered again in 1957 to provide that in the absence of the city manager, the director of public works would be acting city manager. After the director of public works came the safety director, the director of finance, and the city solicitor, in that order. This amendment to Section 6 of Article II of the administrative code established the pattern of having several directors of city departments in line for the position of acting city manager in lieu of the city solicitor and the assistant solicitors.

Sections 1 and 3 of Article XV, Retirement System, were also modified in 1957 to increase the size of the board of trustees by two members, an additional trustee elected by the members of the system and a citizen appointed by the board. Concurring votes of five trustees were required by this amendment in order to constitute a decision of the board.

1961

Article V, City Hospital, was amended in 1961 to provide that effective January 1, 1962, the administrative activities of the hospital would be placed under the directors of the University of Cincinnati. Section 1 of Article V was repealed in this change, which was made in accordance with the 1960 amendment of Article VI, Section 3 of the charter, authorizing the transfer of control and direction of administrative and executive work of the general hospital from the city manager to the board of director by action of council.

1965

March, 1965, saw the creation of the division of convention and exposition center within the department of public works through ordaining of Section 3 of Article VI of the administrative code.

1967

In June of 1967 residency requirements for city employees were placed in the administrative code by the adoption of Article XVII. Section 1 thereof provided that city employee may reside throughout Hamilton county. Certain exceptions were placed upon this restriction, permitting employees residing outside of Hamilton County to remain at their present address, allowing employees assigned to duties outside of Hamilton county to live outside the county, and exempting from the residency requirement employees where there is a shortage of qualified applicants as determined by the civil service commission. The city manager, department heads, chief administrative officers of boards and commissions and employees in a position to effectively

recommend policy decisions were required, however, to reside within the corporate limits of the city of Cincinnati.

1968

The month of April brought three important changes to the administrative code. Section 6 of Article II, City Manager, again changed the order of assumption of the reins of city manager by providing that in the absence of the city manager the acting city manager shall be the city solicitor. In the absence of the solicitor, the director of public works, the director of safety, and the director of finance, succeeded to the position of acting city manager in that order.

Article XVIII, Public Danger or Emergency, was ordained to establish procedures to be used and authority to be exercised by the city manager, the mayor, or the vice-mayor, in time of public danger or emergency. This chapter implements the provisions of Section 1, Article III of the charter which provides that in time of public danger or emergency the mayor may with the consent of council take command of the police, maintain order and enforce the law. By this article, council defined public danger or emergency and authorized the mayor or in his absence the vice-mayor to assume control when the danger or emergency occurred. Procedures for the transfer of authority to the mayor were specified, along with the duties of the city manager up until the time the mayor assumes control. The article provided for a procedure for proclamation of emergency, obtaining assistance from county, state, and federal authorities and imposing emergency sanctions such as curfew, restriction on traffic in firearms and explosives, and restriction of the sale of gasoline, other flammable or combustible products and dangerous chemicals. It provided for the notification of the members of council of emergency conditions existing in the city and provided for the state of emergency to terminate not later than two weeks from the time of its proclamation unless extended by council. Council retained authority to terminate the state of emergency at any time.

Article XIX, Department of Sewers, was ordained to give full departmental status to what was formerly a division within the department of public works. The department of sewers was given charge of the design, construction, repair, maintenance and operation of all sewers and sewerage treatment facilities in the city of Cincinnati and was authorized to perform these services for the Metropolitan Sewer District in accordance with a contract executed by the city of Cincinnati and Hamilton county. The department of sewers undertook the operation of all city and county sewers and sewerage treatment facilities on May 1, 1968.

1969

On July 3, 1968, council approved a request from the mayor that a study be made of the organization of the city government. The Cincinnati Organization Study Committee was appointed and with the aid of professional consultants a review of the entire governmental structure was made and a report was submitted to council in February, 1969. The report included far-reaching recommendations which involved the city charter, state law, and the administrative code. After lengthy study and debate substantial parts of the recommendations were adopted.

Articles IX, Department of Finance, and XV, Retirement System, were amended to transfer the administrative staff of the city employees retirement system to the department of finance under the jurisdiction of the director, who also serves as secretary of the retirement system. This permitted them to be assigned duties in addition to those of administering the retirement funds; however, the system was still to be charged with

the actual cost of administration of its business. The ordinance was adopted in November to be effective January 1, 1970.

Article IV, Department of Safety, Article VI, Department of Public Works, Article VII, Department of Public Utilities, and Article IX, Department of Sewers were amended, and Article XX, Health Department, was adopted by council in early December, 1969, and became effective January 2, 1970. The ordinance reassigned numerous divisions and functions of the city administration to other departments. A multitude of sections of the administrative code were modified or repealed. The title of the ordinance, No. 420-1969, summarizes the extensive changes made; it reads as follows:

"An Ordinance No. 420-1969

Modifying the provisions of the Administrative Code to transfer (1) from the Department of Public Works (a) the Convention and Exposition Center to the Department of Public Utilities, (b) the Municipal Garage to the Department of Public Utilities, (c) Property Maintenance to the Department of Public Utilities and (d) Public Wharves, Docks and Landings to the Department of Public Utilities; (2) from the Department of Public Utilities (a) Traffic Engineering and Utility Maintenance to the Department of Public Works and (b) Public Vehicle Control to the Department of Safety; (3) from the Department of Safety (a) Building Regulation and Heating Inspection to the Department of Public Works, (b) Air Pollution Control to the Metropolitan Sewer District and (c) Inspection of Markets, Weights, and Measures to the Health Department; and to establish administration of public stadia in the Department of Public Utilities by amending the provisions of Section 2 of Article IV, Sections 2 and 3 of Article VI, and Section 2 of Article VII, and by ordaining supplementary Sections 4, 5, 6, 7, 8, 9, 10, 11, 12 and 13 of Article VI, Section 3 of Article VII, Section 6 of Article XIX and Section 1 of Article XX and by repealing existing Sections 2, 16, 17, 18, 19, 20, 21, 22, 28, 24, 25, 28, 28a, 29 and 30 of Article IV, Sections 2 and 3 of Article VI and Section 2 of Article VII."

1971

In June, 1971, council created the board of housing appeals by ordaining Section 14 of Article VI. This was done after a review of appellate procedure in housing code violation cases indicated that the existing board of building standards and appeals was not an adequate appellate medium in that area.

1972

The Cincinnati fire prevention board of appeals was created by ordaining Section 12 of Article IV in order to provide an appeal mechanism for decisions rendered under the provisions of the Cincinnati Fire Prevention Code.

1974

Article VI, Section 15, of the administrative code was ordained by council to create a board of engineering appeals to hear and rule upon appeals from orders of the director of public works pursuant to the provisions of Chapter 737 of the Cincinnati Municipal Code, Excavation, Grading or Filling of Land.

1975

Sections 4 and 6 of Article II and Section 20 of Article IX were amended while supplementary sections, 6, 7, 8, 9, 10 and 11 of Article II were ordained in order to reorganize the city manager's office. A deputy city manager and three assistant managers were provided for by these sections as was an administrative assistant. Preparation of the budget was assigned to a research, evaluation and budget officer under the reorganization plan. A regional computer center within the city manager's office was also established

as part of the change. The deputy city manager as well as the three assistant city managers were inserted in the order of succession as acting city manager in the manager's absence. This reorganization was implemented by passage of Ordinance No. 69-1975, and Ordinance No. 321-1975 amended the effective date of Ordinance No. 68-1975 to be June 29, 1975.

1976

A separate department of data processing services to be known as the regional computer center was established by the creation of Article XXII, Sections 1 and 2 by Ordinance No. 406-1976, data processing having formerly been a division under the office of the city manager.

Ordinance No. 470-1976 modified the administrative code to reorganize a portion of the planning and development functions of the department of urban development by creating a department of development, Article XXIII, and rearranging the duties of the directors of public works and buildings and inspections.

1977

It was determined by the council in 1977 that city employees would be more effective and available if they were required to be residents of the city of Cincinnati and therefore amended Article XVII to require that all persons appointed to the city service be residents of the city of Cincinnati at the time of their appointment and continue to maintain their primary place of residence within the city during their continued service with the city. This was accomplished by Ordinance No. 258-1977 and amended by Ordinance No. 358-1977 which provided that persons who had purchased real estate outside of the city but within Hamilton county could establish the address outside the city as their primary place of residence provided the residency was established by October of the following year. The residency requirement was again amended by Ordinance No. 483-1977 to provide that council might exempt from the requirements persons appointed to positions for which no qualified city residents applied, and especially valued employees upon a showing of undue hardship.

Once again Article II, Section 11 was amended to alter the line of succession in the event of disability or absence of the city manager. Ordinance No. 345-1977 provided that during the disability of the city manager the duties of the city manager would be performed first by the deputy city manager, then the city solicitor, the director of finance and the director of public works.

1978

A division of risk management under the department of finance was created with the ordaining of Article IX, Section 22 by Ordinance No. 205-1978. The risk manager was assigned the duties of protecting the city against financial consequences of loss and to create a system of internal procedures to provide constant reassessment of exposure to loss.

1979

Article IX, Department of Finance, was amended by Ordinance No. 71-1979 to create a separate deputy director of finance to perform the duties of the director in the case of absence or disability, such position formerly being capable of being filled only by the city treasurer.

In preparation for republication of the code, numerous minor changes were made in the text of various code sections by Ordinance Number 299-1979 in order to update language and remove obsolete provisions. The

two most significant alterations were the repeal of Article V, City Hospitals, and Article XVI, Department of Urban Development.

1980

Article II, Section 13 was adopted by Ordinance No. 10-1980 to create an Office of Municipal Investigation to provide for independent investigations of allegations of serious misconduct.

Amending Article XVII, Section 2 by Ordinance No. 187-1980 to provide that the city manager, department heads, deputy city manager, assistant to the city manager, fire chief and police chief must be city residents.

1981

Articles I, II, XXI, XXIII and XXIV were ordained by Ordinance No. 183-1981 to provide for two deputy city manager positions and to provide for the creation of the departments of economic development and neighborhood housing and conservation. Conflicting sections of Articles I, II, XIX, XXI and XXIII were repealed.

1982

Article II, Section 15 was ordained by Ordinance No. 50-1982 to create an internal audit division directly under the supervision of the city manager to examine and evaluate the efficiency of all city departments, boards and commissions.

New Article XXV was ordained by Ordinance No. 58-1982 to the department of city planning for the purpose of providing professional services to the planning commission on matters affecting the physical improvement and development of the city.

1985

Article XVII, Section 1 was amended by Ordinance No. 33-1985 to provide that city employees originally hired after January 1, 1985 must live within the city of Cincinnati and to provide that those employees originally hired prior to January 1, 1985 must live within Hamilton County.

1988

Article II, Section 17 was ordained by Ordinance No. 82-1988 to create a Division of Employee Safety, Risk Management and Employee Health Services under the direct control of the city manager to implement a city-wide safety and risk management program.

Article XV, Section 1 was amended by Ordinance No. 398-1988 to provide that the Board of Trustees of the Retirement System be increased to eleven members by the addition of the director of finance and one member selected by the Board from the retirees.

1989

New Article XXVI was ordained by Ordinance No. 370-1989 to require financial disclosure statements from policy level city employees.

1990

New Article XXVII was ordained by Ordinance No. 413-1990 to transfer urban forestry responsibilities, previously held by the director of public works, to the board of park commissioners.

FOREWORD

The first administrative code was adopted in 1927 and was completely revised in 1930. The 1930 administrative code with numerous amendments and supplementary articles constitute the administrative code published herein. Only articles and sections presently in effect are printed. The reader is referred to the preceding historical note and prior publications of the code of ordinances for information and text of the administrative code as it existed heretofore. Footnotes and annotations cover only changes occurring after January 1, 1957.

ARTICLE I. GENERAL

Sec. 1. Principal Appointive Officers.

The city manager, the assistant city managers, the city solicitor and the police chief shall be the principal appointive executive officers as contemplated by Sections 124.11 and 733.68 of the Ohio Revised Code.
(Repealed and reordained by Ord. No. 183-1981, eff. June 12, 1981; a. Ord. No. 103-2003, § 1, eff. April 9, 2003; Emer. Ord. No. 0006-2015, § 1, eff. Jan. 14, 2015)

Sec. 2. Designation to Perform Duties Where Office Title Discontinued.

Whenever in the ordinances of the city of Cincinnati it is provided that anything shall be done by an officer therein designated by a title which no longer exists as used therein, the duty or authority to do such thing shall rest upon such officer as may be designated by ordinance or by order of the city manager as the successor in such duty or authority of the officer originally referred to.

Sec. 3. Administrative Organization of Departments.

The director or chief administrative officer of each department, with the approval of the city manager, shall have the authority to organize such department into divisions or other appropriate units and may assign work to such units as may be necessary and convenient for the proper conduct of the work of the department. Divisions or administrative units established by ordinance, however, may not be abolished except by ordinance; powers and duties conferred by ordinance upon any department, division or administrative unit may not be assigned or transferred elsewhere except by ordinance.

The city manager may assign powers and duties to departments in addition to those assigned by ordinance.
(Amended by Ord. No. 299-1979, eff. Aug. 4, 1979; repealed and reordained by Ord. No. 183-1981, eff. June 12, 1981)

Sec. 4. Department Personnel.

The city manager shall determine the number of officers or employees for each department, division or other administrative unit for which the city manager is responsible, except as otherwise provided by the charter.

In all other cases where the number of officers or employees in any department, division or administrative unit is not fixed by ordinance, the board, commission or officer in charge thereof shall from time to time determine such number.

The number of employees and officers so determined shall not require a greater expenditure for salaries than is authorized for such purpose by council.
(Amended by Ord. No. 299-1979, eff. Aug. 4, 1979; repealed and reordained by Ord. No. 183-1981, eff. June 12, 1981)

Sec. 5. Work Assignments.

The city manager may direct any department to perform work for any other department.

The city manager may assign any employee of the city to any department or office requiring services appropriate to the civil service classification of the employee so assigned.

The director or chief administrative officer of each department may assign any employee of such department to any work or position therein appropriate to the civil service classification of such employee.
(Repealed and reordained by Ord. No. 183-1981, eff. June 12, 1981)

Sec. 6. Administrative Reports.

It shall be the duty of the director of each department and the head of each other office responsible to the city manager to report to the city manager or appropriate assistant city manager information concerning the department or office and its work as the department head or officer may deem pertinent and as the city manager or assistant city managers may require.

It shall be the duty of the city manager to prepare and present to the council an annual report of the affairs of the city and such other reports as the council may require or the city manager may deem advisable.
(Amended by Ord. No. 299-1979, eff. Aug. 4, 1979; repealed and reordained by Ord. No. 183-1981, eff. June 12, 1981; a. Ord. No. 103-2003, § 1, eff. April 9, 2003)

Sec. 7. Departmental Rules and Regulations.

The city manager may prescribe rules and regulations for the general conduct of the administration subject to the authority of the city manager. The director of each department and the administrative officer of each other office subject to the authority of the city manager may prescribe rules and regulations for the proper conduct of the department or office, but such rules or regulations shall not go into effect unless approved by the city manager. The city manager may at any time revoke, suspend or amend any such rule or regulation by whomever prescribed.
(Amended by Ord. No. 299-1979, eff. Aug. 4, 1979; repealed and reordained by Ord. No. 183-1981, eff. June 12, 1981)

Sec. 8. Repealed.

(Repealed by Ord. No. 183-1981, eff. June 12, 1981)

ARTICLE II. CITY MANAGER

Sec. 1. City Manager to Appoint, Dismiss or Suspend Employees.

a) The city manager, except as otherwise provided in the charter and in this Article, shall appoint and may dismiss, suspend, and discipline all officers and employees in the administrative service under the control of the city manager.

b) No employment agreement between the City and any City employee shall provide for monetary severance in the case of termination except as previously approved by Council.
(Amended by Ord. No. 299-1979, eff. Aug. 4, 1979; a. Ord. No. 0052-2019, §§ 1, 2, eff. March 15, 2019)

Sec. 2. Performing Duties of Office in Case of Vacancy, Disability, etc.

Whenever any office or position in the administrative service under the control of the city manager is vacant, or whenever the incumbent of any such office or position is unable to perform the duties thereof by reason of absence or disability, the city manager, except as otherwise provided by

ordinance, may designate some other officer or employee to perform the duties thereof in an acting capacity.
(Amended by Ord. No. 299-1979, eff. Aug. 4, 1979)

Sec. 3. Powers of Investigation; Consultants.

The city manager shall have the power to investigate and to examine or inquire into the affairs or operation of any department, division, office, or employee; and may designate any officer or person to perform such functions on behalf of the city manager. When so authorized by council, the city manager shall have power to employ consultants and professional counsel to aid in such investigations, examinations, or inquiries.
(Amended by Ord. No. 299-1979, eff. Aug. 4, 1979)

Sec. 4. Budget Duties.

It shall be the duty of the city manager, through the finance department and its division of budget and evaluation, to assemble estimates of the financial needs and resources of the city for each ensuing year, and to prepare a program of activities within the financial power of the city, embodying in it a budget document with proper supporting schedules and analyses.
(Amended by Ord. No. 68-1975, eff. July 1, 1975; a. Ord. No. 68-1996, eff. Apr. 5, 1996; a. Ord. No. 331-1998, eff. Sept. 2, 1998)

Sec. 5. Contracts.

The city manager shall be responsible for the execution of all contracts for the departments and offices under the control of the city manager. The city manager shall administer all necessary contract compliance procedures of the City, relating to federal and state prevailing wage laws (as currently codified in the Davis Bacon Act 40 U.S.C. §276a, and ORC Chapter 4115: Wages And Hours on Public Works); Equal Employment Opportunity Program (Ordained by Ord. No. 331-1999); Small Business Enterprise Program (Ordained by Ord. No. 335-1999); Living Wage Program (Ordained by Ord. No. 362-2002). In instances where the city manager is not required by ordinance to sign or execute a contract, form or document, but does so under the general executive and administrative powers conferred upon the city manager by law, such signing or execution of the contracts, forms or documents may, in the discretion of the city manager, be delegated to such city officials, or agent of the city, as is designated by administrative regulation. In instances where the city manager is required by ordinance to sign or execute a contract, form or document, the city manager may delegate the signature or execution to an assistant city manager.

Execution of contracts processed by the city purchasing agent of the division of purchasing of the department of finance may, in the discretion of the city manager, be delegated to the purchasing agent after submission of the board of control recommendation by the purchasing agent in its approval by the city manager. The city manager may also delegate to the purchasing agent the duty and authority of signing contracts for combined purchases under § 25 of Article IX of the Administrative Code.
(Amended by Ord. No. 6-1973, eff. Feb. 9, 1973; a. Ord. No. 414-1976, eff. Sept. 9, 1976; a. Ord. No. 299-1979, eff. Aug. 4, 1979; a. Ord. No. 468-1986, eff. Jan. 29, 1987; a. Ord. No. 436-1991, eff. Nov. 25, 1991; a. Ord. No. 159-1995, eff. June 2, 1995; a. Ord. No. 103-2003, § 2, eff. April 9, 2003; a. Emer. Ord. No. 174-2006, § 5, eff. June 14, 2006; a. Emer. Ord. No. 204-2008, § 1, eff. June 11, 2008)

Sec. 6. Administrative Services.

The city manager shall assign the following administrative services, formerly under the direction of the director of safety, to appropriate administrative offices.

(a) Repealed;

(b) the administration of ordinances relating to the licensing and control of off-street parking facilities not owned by the City of Cincinnati;

(c) the management, control, and preservation of all public burying grounds and cemeteries belonging to the city;

(d) the licensing and supervision of all hand peddlers and itinerant vendors not otherwise licensed under ordinances;

(e) the management and administration of the city's radio systems and all radio systems maintenance;

(f) the general supervision and direction of offices established in the former department of safety by ordinance.

(Ordained by Ord. No. 68-1975, eff. July 1, 1975; repealed and reordained by Ord. No. 183-1981, eff. June 12, 1981; a. Ord. No. 212-1985, eff. May 24, 1985; r. Ord. No. 280-1982, eff. July 3, 1992; reordained by Ord. No. 418-2001, eff. Jan. 18, 2002; a. Ord. No. 176-2025, § 3, eff. June 11, 2025)

Sec. 7. Office of the City Manager.

The office of the city manager, for administrative purposes, shall be analogous to a department. Offices established under the office of the city manager and reporting directly to the city manager or to an assistant city manager shall be analogous to divisions within such department. General references to divisions in the administrative code and municipal code shall include offices under the city manager, and references to division heads shall include the chief administrative officers of such offices unless otherwise specifically provided.

The city manager may administratively establish offices within the office of city manager to perform any administrative duty or responsibility except those duties and responsibilities specifically assigned elsewhere by ordinance.

(Ordained by Ord. No. 68-1975, eff. July 1, 1975; repealed and reordained by Ord. No. 183-1981, eff. June 12, 1981; a. Ord. No. 103-2003, § 2, eff. April 9, 2003; Emer. Ord. No. 044-2015, § 4, eff. July 1, 2015; a. Emer. Ord. No. 0170-2021, §§ 1, 2, eff. May 19, 2021)

Sec. 8. Assistants to the City Manager.

The city manager shall appoint one or more assistants to the city manager who shall perform such duties as may be requested by the city manager in order to facilitate the operation of the office of the city manager.

(Ordained by Ord. No. 68-1975, eff. July 1, 1975; a. Emer. Ord. No. 0170-2021, §§ 1, 2, eff. May 19, 2021)

Sec. 9. Office of Budget and Evaluation.

There is hereby established within the office of the city manager an office of budget and evaluation to be administered by a budget and evaluation officer appointed by and under the supervision of the city manager.

The budget officer shall supervise the office of research, evaluation and budget, serve as budget officer of the city, assist the city manager in the preparation and submission of the annual budget estimate to council, conduct the assigned research studies and analysis, coordinate and analyze data generated by the administration, evaluate selected

projects and activities and perform such other duties as may be requested by the city manager.
(Ordained by Ord. No. 69-1975, eff. July 1, 1975; repealed and reordained by Ord. No. 183-1981, eff. June 12, 1981; a. Ord. No. 68-1996, eff. Apr. 5, 1996)

Sec. 11. Assistant and Acting City Manager.

The city manager shall appoint one or more assistant city managers. The city manager shall maintain discretion on all assignments to assistant city managers and shall make such assignments to ensure adequate resources are committed to the following functions:

1. *Public Services and Enterprise Operations* - Leadership, oversight, and coordination of city operations focused on delivering public services to city residents and of enterprise operations.
2. *Budget, Finance, and Development* - Leadership, oversight, and coordination of city finance, budgeting, and development functions.
3. *Constituent Affairs and Council Services* - Leadership, oversight, and coordination of intake, processing, and resolution of constituent inquiries regarding city operations and requests or inquiries from members of council.

The assistant city managers shall perform such other duties of the office as may be assigned at any time by the city manager.

The city manager shall designate one or more assistant city managers to perform the duties and exercise the authority of the city manager when the city manager is absent, disabled, or otherwise unavailable to serve. In the event that the city manager is absent, disabled, or otherwise unavailable to serve, then such designated assistant city manager shall be fully authorized to act on behalf of the city manager and to perform all duties of the office as needed.

Should the city manager and the designated assistant city manager be absent, disabled, or otherwise unavailable to serve, the duties and authority of the office of city manager shall be performed and exercised by another assistant city manager or a department director designated in accordance with a line of succession which the city manager shall file in writing with the clerk of council. Such designation may be amended at any time by the city manager.

The performance of the duties and exercise of the authority of the office of city manager shall also be in accord with this section during a vacancy in the office unless otherwise provided by the city council.

For purposes of this section, and without limiting the general meaning of the term, "disabled" shall include vacancy in office.
(Ordained by Ord. No. 68-1975, eff. July 1, 1975; a. Ord. No. 321-1975, eff. June 29, 1975; a. Ord. No. 345-1977, eff. Sept. 8, 1977; a. Ord. No. 299-1979, eff. Aug. 4, 1979; repealed and reordained by Ord. No. 183-1981, eff. June 12, 1981; a. Ord. No. 280-1992, eff. July 3, 1992; a. Ord. 285-2002, eff. 9-5-2002)

Formerly Art. II, Sec. 6; a. Ord. No. 420-1957, eff. Nov. 29, 1957; a. Ord. No. 1956-1968, eff. Apr. 10, 1968; a. Ord. No. 87-1973, eff. Feb. 28, 1973; r. Ord. No. 68-1975, eff. July 1, 1975; a. Ord. No. 103-2003, § 2, eff. April 9, 2003; a. Emer. Ord. No. 0170-2021, §§ 1, 2, eff. May 19, 2021)

Sec. 12. Appointment and Qualifications of Hearing Examiners.

The city manager shall appoint one or more hearing examiners to perform the duties as provided in the administrative code, the

zoning and municipal codes, any ordinance and administrative regulation of the city of Cincinnati. A hearing examiner may be a classified or unclassified employee of the city or be specially appointed on such terms and conditions as determined by the city manager. The city manager shall designate a chief hearing examiner who shall assign cases or other duties to the hearing examiners according to their expertise in the field of regulation germane to the case. A person appointed hearing examiner shall serve in that capacity at the pleasure of the city manager. A hearing examiner shall be appointed solely with regard to his or her qualifications for the duties of the office, and shall have such training or experience as will qualify the hearing examiner to conduct administrative or quasi-judicial hearings involving discretionary review hearings and administrative decisions and findings. In addition, the hearing examiner shall have expertise and experience in the field of regulation in which the hearing examiner is to exercise authority. The city manager may seek the advice of the directors of any of the administrative departments, including the city solicitor, in identifying and recommending candidates for a hearing examiner appointment; provided, however, that nothing contained herein shall be construed to mean that such advice shall be binding on the city manager or shall be read to limit the discretion of the city manager in the appointment of a hearing examiner. The city manager may assign a hearing examiner to be managed by one of the administrative departments for administrative purposes; provided, however, that the hearing examiner shall serve in that capacity at the pleasure of the city manager. The position of zoning hearing examiner shall be housed in the office of administrative hearings which is managed by the department of law in accordance with Article III, Sec. 10 of the Administrative Code; provided, however, that the zoning hearing examiner shall serve in that capacity at the pleasure of the city manager.

(Ordained as Art. II, Sections 12(a) and 12(b) by Ord. No. 358-1976, eff. July 21, 1976; a. Ord. No. 292-1978, eff. July 6, 1979; renumbered to Art. II, Sections 12-A and 12-B and amended by Ord. No. 299-1979, eff. Aug. 4, 1979; recombined into and renumbered as Section 12 by Ord. No. 112-1992, eff. April 17, 1992; a. Ord. No. 054-2012, § 2, eff. March 29, 2012)

Editor's note—Sections 12-C through 12-M, ordained as Art. II, Sections 12(c) through 12(m) by Ord. No. 358-1976, eff. July 21, 1976; a. Ord. No. 292-1978, eff. July 6, 1978; renumbered to Art. II, Section 12-C through 12-M and amended by Ord. No. 299-1979, eff. Aug. 4, 1979; repealed by Ord. No. 112-1992, eff. April 17, 1992.

Sec. 13. Repealed.

(Ordained by Ord. No. 10-1980, eff. Jan. 9, 1980; repealed and reordained by Ord. No. 180-1981, eff. May 13, 1981; repealed and reordained by Ord. No. 1980-1982, eff. May 26, 1982; repealed and reordained by Ord. No. 457-1983, eff. Sept. 21, 1983; repealed and reordained by Ord. No. 101-1984, eff. Mar. 30, 1984; repealed and reordained by Ord. No. 451-1994, eff. Jan. 20, 1995; repealed and reordained by Ord. No. 221-1997, eff. Aug. 4, 1997; r. Emer. Ord. No. 0413-2021, § 2, eff. October 27, 2021)

Sec. 14. Repealed.

(Ordained by Ord. No. 189-1980, eff. June 7, 1980; repealed and reordained by Ord. No. 32-1984, eff. Feb. 18, 1984; a. Ord. No. 021-2013, § 1, eff. March 1, 2013; r. Emer. Ord. No. 044-2015, § 5, eff. July 1, 2015)

Sec. 15. Internal Audit Division.

There is hereby established within the office of the city manager an internal audit division to be administered by an internal audit manager appointed by, and under the supervision of, the city manager. The internal audit division shall have such assistance

and employees as are necessary to perform its responsibilities. The independent internal auditor shall be appointed by the city manager but shall report his or her findings directly and simultaneously to an internal audit committee and the city manager.

Internal Audit Manager. The internal audit manager shall supervise the internal audit division and conduct operational audits, within generally accepted government auditing standards, to examine and evaluate the effectiveness and efficiency of management controls, including but not limited to financial controls, in all city departments, independent boards and commissions, and organizations under contract with the city to perform quasi-governmental functions. The internal audit manager shall make recommendations to assist all members of management in strengthening management controls, including but not limited to financial controls, and shall provide all completed reports and audits directly and simultaneously to the internal audit committee and the city manager. The internal audit manager shall establish follow-up procedures to ascertain that appropriate action is taken on operational audit recommendations. The internal audit manager shall prepare a proposed and detailed yearly budget of what he or she deems necessary to adequately perform the duties of the internal audit division. Such budget shall be provided directly to council for consideration as part of the budget and budget update. The internal audit division shall identify and recommend to appropriate units of management relevant opportunities to reduce cost, improve performance, and increase productivity of personnel and assets. City department heads are encouraged to use the resources of the internal audit division.

In carrying out its duties, the internal audit division is authorized to have access to all city functions, records, property and personnel relevant to the performance of operational audits.

The internal audit manager shall coordinate operational audit efforts with appropriate city, state, and federal officials to achieve desired audit coverage without duplication.

Internal Audit Committee. Council shall appoint one member of each political party represented on Council to serve on the committee. A majority of the internal audit committee shall be independent of the City of Cincinnati's management and administration. The mayor shall nominate independent members in such number that is equal to the number of political parties represented on council plus one. These nominations shall be subject to the approval of council. The city manager shall appoint a member of the city administration to act as an ex officio member of the committee. The committee shall select a chairperson from its membership and promulgate rules for its own operation. Under the supervision of the city manager, the internal audit manager shall prepare an annual internal audit plan to be followed by the internal audit manager and the internal audit division, which shall be presented to the internal audit committee. The internal audit committee shall review the annual audit plan, and at its discretion, shall approve or modify the plan. Any such modification shall be done in consultation with the city manager. The internal audit work plan shall serve as a means to enhance the performance of city departments, and city departments are encouraged to utilize the resources of the internal audit division.

Neither the city manager nor any member of the city administration shall interfere with any audit conducted by the internal

audit division or substantially amend or edit any report or conclusion issued by the internal audit manager or division.
(Ordained by Ord. No. 50-1982, eff. Feb. 18, 1982; a. Ord. No. 99-2004, eff. April 23, 2004)

Sec. 16. Repealed.
(Ordained by Ord. No. 221-1997, eff. Aug. 4, 1997; r. Ord. No. 103-2003, eff. April 9, 2003)

Sec. 17. Repealed.
(Ordained by Ord. No. 278-1991, eff. August 2, 1991; a. Ord. No. 243-1993, eff. July 30-1993; r. Ord. No. 397-2002, eff. Jan. 17, 2003; r. Ord. No. 103-2003, eff. April 9, 2003)

Sec. 18. Authority and Control of Real Property.

The city manager shall have control and authority over all real property owned, leased or controlled by the City of Cincinnati except such real property under the control of boards and commissions as provided by the Cincinnati charter, municipal or administrative codes, and shall assign, direct or transfer control and management of such real property between and among the various departments and divisions at his discretion. Any department director, division head, other officer, board or commission may, at any time, with the permission of the city manager, and, if so required, the assent of the proper board or commission, transfer such real property under their control and management to another department, division, board or commission.
(Ordained by Ord. No. 415-1988, eff. Nov. 11, 1988)

Sec. 19. Cincinnati Union Terminal.

The city manager may serve as the official representative of the city on any governing body of an organization which safeguards, controls, operates and maintains the Cincinnati Union Terminal. The city manager may serve on such board in his official capacity without additional compensation.
(Ordained by Ord. No. 436-1991, eff. Nov. 25, 1991)

Sec. 20. Repealed.
(Ordained by Ord. No. 011-199, eff. Feb. 22, 1999; r. Ord. No. 103-2003, eff. April 9, 2003)

Sec. 21. Repealed.
(Ordained by Ord. No. 216, 2003, eff. June 25, 2003; Emer. Ord. No. 388-2011, § 1, eff. Dec. 14, 2011; r. Emer. Ord. No. 157-2013, § 1, eff. May 30, 2013)

Sec. 22. Retirement Division.

There is hereby established within the office of the city manager a retirement division to be administered by a pension fund manager who shall oversee the benefits administration, investment management, and member services of the division, and shall direct, control and supervise all officers and employees within the retirement division. The pension fund manager shall be appointed by and under the supervision of the city manager.
(Ordained by Emer. Ord. No. 154-2013, § 1, eff. May 30, 2013)

Sec. 23. Emergency Communications Center Division.

There is hereby established within the office of the city manager an emergency communications center division to be administered by a director who shall direct, control, and supervise all officers and employees within the emergency communications center division and shall be responsible for managing the consolidated emergency communications functions of the police and

fire departments, including overall administration of incoming service calls managed by the emergency communications center. The emergency communications center director shall be appointed by and under the supervision of the city manager.
(Ordained by Emer. Ord. No. 378-2019, § 1, eff. Oct. 2, 2019)

Sec. 24. Office of Opportunity.

There is established within the office of the city manager an office of opportunity to be administered by a chief opportunity officer appointed by and under the supervision of the city manager. The office shall have such assistants and staff as may be authorized by the city manager.

The chief opportunity officer shall supervise the office of opportunity and perform such other duties as may be requested by the city manager.
(Ordained by Emer. Ord. No. 397-2015, § 2, eff. Dec. 16, 2015; repealed and reordained by Emer. Ord. No. 178-2025, §§ 1, 2, eff. June 11, 2025)

Sec. 25. Expungement of Marijuana-Related Offenses.

(A) For a period of three fiscal years beginning with Fiscal Year 2021, the council shall annually appropriate an amount determined by the city manager to be sufficient to fund expungement representation services for individuals who have been charged by the City of Cincinnati and convicted of nonviolent marijuana-related offenses involving 100 grams or less of marijuana who may be eligible to have their record sealed under Ohio Revised Code § 2953.32. The appropriation shall include the funding of one new FTE position to manage the expungement effort. Council may not reduce the overall budget to offset or account for the addition of this new FTE.

(B) The city shall engage third party organizations to represent individuals who have been charged by the City of Cincinnati and convicted of nonviolent marijuana-related offenses involving 100 grams or less of marijuana in proceedings to have their record sealed under Ohio Revised Code § 2953.32. The city manager shall administer these contracts, including monitoring the work done by contractors.

(C) The city manager shall be responsible for identifying individuals who were charged by the City of Cincinnati and convicted of nonviolent marijuana-related offenses involving 100 grams or less of marijuana who may be eligible to have their record sealed under Ohio Revised Code § 2953.32. The city manager shall notify such individuals of their potential eligibility and of the availability of city funded-expungement representation. The city manager may delegate these responsibilities to the appropriate city department.

(D) The city manager shall provide a report to the council on the number of eligible individuals identified and the number of expungements funded after one year, and every two years thereafter.
(Ordained by Ord. No. 0351-2019, § 1, eff. Oct. 18, 2019)

Sec. 26. Tenant Information Webpage—City Website.

(a) Subject to the availability of necessary appropriations, the city manager is authorized to take all necessary steps to initiate the creation of a residential tenant information webpage on the city's website that includes information regarding (1) residential tenants' rights and responsibilities pursuant to Cincinnati Municipal Code Chapter 871, Ohio Revised Code Chapter 5321, and relevant federal laws applying to residential tenants; and (2) local resources and referral information for tenants, includ-

ing information regarding any and all eviction relief services offered by the City of Cincinnati.

(b) Subject to the availability of necessary appropriations, the city manager is authorized to take all necessary steps to ensure that this tenant information webpage allows visitors to download the information provided in a format readily accessible to the public.
(Ordained by Ord. No. 402-2019, § 1, eff. October 30, 2019)

ARTICLE III. DEPARTMENT OF LAW

Sec. 1. City Solicitor; Assistants.

The department of law shall consist of the city solicitor, and of assistant solicitors and other subordinates appointed by the city solicitor.
(Amended by Ord. No. 299-1979, eff. Aug. 4, 1979)

Sec. 2. Duties of City Solicitor.

The city solicitor shall be the legal advisor of the city government and of all of its agencies, and shall represent the city as attorney and counsel in all proceedings in which the city is a party before any court or any governmental commission having judicial power, and as such attorney may settle or compromise claims or suits at law or in equity to which the city may be party, either by judgment entry or otherwise.

Sec. 3. Compensation from Hamilton County.

The city solicitor and assistant solicitors acting as prosecuting attorneys in the criminal division of the Hamilton county municipal court are hereby authorized to accept, in addition to their salaries paid by the city, such compensation as by virtue of law may be payable to them by the county of Hamilton.
(Amended by Ord. No. 299-1979, eff. Aug. 4, 1979)

Sec. 4. Records.

The city solicitor shall maintain a docket of all cases and administrative proceedings in which the city is a party in any of the courts or governmental agencies. A record of each such case or proceeding containing the name, case number and brief description of the action shall be maintained for a period of two years after the termination of the city's involvement in the case or proceeding.

The city solicitor shall permanently retain copies of all formal written opinions furnished by the solicitor and copies of informal written opinions which serve as significant administrative or historical reference material. The docket and the opinions so retained shall be the property of the city and the city solicitor shall, upon vacation of the office, deliver them to the successor in office. Any other written informal opinions shall be maintained for a period of 10 years from the date of issuance and may be disposed of after review by the city solicitor.
(Amended by Ord. No. 299-1979; a. Ord. No. 416-1984, eff. Oct. 12, 1984)

Sec. 5. Attendance at Council Meetings.

The city solicitor or in the absence of the solicitor an assistant city solicitor shall attend all meetings of the council, and upon invitation shall attend any meeting of any council committee.
(Amended by Ord. No. 299-1979, eff. Aug. 4, 1979)

Sec. 6. Acceptance of Dedicated Streets.

It shall be the duty of the solicitor, acting upon the request of council or any of its

committees or the city manager, to examine the records of the different county officers, and to prepare ordinances accepting, on the part of the city, such streets, alleys and other public places which may have been or which are about to be dedicated to the public, and which said council, committee, or city manager may recommend, in order that the control of the same may be under the direction of council.

Sec. 7. Acquisition and Appropriation of Real Property, Assessments.

The city solicitor shall have charge of all services auxiliary to council and the clerk of council in connection with the performance of their duties in the acquisition of real property and interests thereon, in the appropriating of real property to public use, and in the levying of assessments. The notice server employed by the solicitor shall be authorized to serve all notices required by law to be personally served. Where the law requires service of notice to be made by a particular officer, the notice server making the service shall be authorized to act as deputy or assistant to such officer.
(Amended by Ord. No. 299-1979, eff. Aug. 4, 1979; a. Ord. No. 12-1988, eff. Feb. 20, 1988)

Sec. 8. Acting City Solicitor.

The city solicitor shall designate two of the assistant solicitors as first assistant and second assistant solicitor, respectively. During the absence or disability of the city solicitor, or in case of a vacancy in the office, the first assistant solicitor shall perform the duties of the city solicitor. In case of the absence or disability of both the city solicitor and the first assistant solicitors or in case of a vacancy in the office of city solicitor combined with the absence or disability of the first assistant solicitor, the second assistant solicitor shall perform the duties of the city solicitor.

Sec. 9. Real Property Inventory Management.

The city solicitor shall compile and maintain the city's record of all real property owned by the city, which record shall include such files, deeds, leases, licenses, easements, listings, pictures, plats or other documents as are necessary to adequately describe and identify the real property, together with an estimate of the fair market value thereof. The city solicitor shall have charge of the management, sale and lease of such real property except that real property under the jurisdiction and control of another city agency as provided elsewhere in the Cincinnati municipal code or the administrative code. In addition, the city solicitor shall perform such other real property management or record-keeping duties as are imposed from time to time by council or the city manager. (Ordained by Ord. No. 12-1988, eff. Feb. 20, 1988; a. Ord. No. 415-1988, eff. Nov. 18, 1988)

Sec. 10. Ethics and Good Government Counselor; Code Compliance and Administrative Hearings.

(a) There shall be an ethics and good government counselor that has the following responsibilities within the city solicitor's office:

(1) *Ethics.*

(A) Serve as a dedicated point of contact for any questions from city officials and city employees pertaining to ethics and conflict-of-interest laws.

(B) Act as a liaison to the Ohio Ethics Commission to assist city officials and city employees in

obtaining ethics advice and advisory opinions on matters of state ethics law.

(C) Provide ethics and conflict-of-interest training and related educational resources for city elected officials, city employees, and city boards and commissions. Training materials should be made available online in coordination with the city's human resources department.

(D) Receive and investigate all complaints from elected officials, city staff, and the public alleging violations of ethics and conflict-of-interest laws, including referral of matters to appropriate city departments or to third-party authorities as necessary.

(E) Complete such other responsibilities as assigned by the city solicitor, including, but not limited to, drafting of ethics opinions, proactive identification of potential conflicts, and investigations as necessary to provide legal advice on ethics violations and conflicts of interest.

(2) *Campaign Finance and Reporting.*

(A) Assist the Cincinnati Elections Commission with ensuring compliance with Article XIII of the charter, including notifying candidates regarding failure to file any required reports or errors with reports.

(B) Assist the Cincinnati Elections Commission in its review of campaign finance reports for compliance with Article XIII of the charter, chapter 117 of the Cincinnati municipal code, the rules adopted by the Cincinnati Elections Commission, and any other related city laws, rules, or regulations related to campaign finance and reporting requirements.

(C) Investigate and present information to the Cincinnati Elections Commission about candidate compliance with city campaign finance and reporting requirements.

(D) Communicate and coordinate as needed with the Hamilton County Board of Elections regarding state of Ohio campaign filings and reporting requirements required to be observed by mayoral and council candidates.

(E) Complete such other responsibilities as assigned by the city solicitor.

(3) *Fraud, Waste, and Abuse.*

(A) Receive and investigate all complaints from elected officials, city staff, and the public alleging fraud, waste, and abuse in city government, including referral of matters to appropriate city departments or third-party authorities as necessary.

(4) *City Codes of Conduct.*

(A) If the ethics and good government counselor receives a complaint alleging that an elected official has violated a city code of conduct, the ethics and good government counselor shall report the complaint to the relevant council committee, which report shall include basic factual information gathered using standardized protocols established by the ethics and good government counselor in

consultation with the solicitor and city administration. A written response from the elected official named in the complaint shall be included in the report at the option of such official.

(B) After review of a complaint under this section, council may request additional fact-finding by the ethics and good government counselor. Upon such request, the ethics and good government counselor shall investigate further and report additional, detailed factual findings to council.

(b) The ethics and good government counselor shall be an attorney appointed and supervised by the city solicitor under Article IV, Section 5 of the charter.

(c) The city solicitor may hire such consultants or investigators as are necessary to fulfill the responsibilities provided in this section.

(d) Nothing in this Chapter shall require the ethics and good government officer to take action that would interfere in an ongoing, lawful investigation.

(e) Code Compliance and Administrative Hearings.

(1) The city solicitor shall designate a member of the solicitor's office to be responsible for oversight of:

(A) the office of administrative hearings, the parking violations bureau, and the conduct of the code compliance and administrative hearing process on civil offenses as set forth in Title XV of the Cincinnati Municipal Code.

(B) the administration of the enforcement procedures for civil offenses and appeals of parking violations, as set forth by ordinance and such other administrative hearings, alternative dispute resolution, or other municipal investigations as may be directed by the city manager or by ordinance.

(Ordained by Ord. No. 103-2003, § 2, eff. April 9, 2003; a. Emer. Ord. No. 0413-2021, §§ 1, 2, eff. October 27, 2021)

ARTICLE IV. DEPARTMENTS OF POLICE AND FIRE

Sec. 1. Department of Police.

There is hereby established a department of police. The police department shall consist of a chief of police and such assistants, officers and employees as may be authorized by or pursuant to ordinance.
(Repealed and reordained by Ord. No. 418-2001, eff. Jan. 18, 2002)

Sec. 2. Chief of Police.

The chief of police shall be the director and commanding officer of the police department and, subject to the approval of the city manager, shall have control of the assignment and stationing of the members of the police department and the direction of the police work of the city. The office of the chief of police shall be subject to the control, direction and supervision of the city manager.
(Amended by Ord. No. 420-1969, eff. Jan. 2, 1970; a. Ord. No. 126-1971, eff. May 7, 1971; a. Ord. No. 299-1979, eff. Aug. 4, 1979; a. Ord. No. 7-1986, eff. Jan. 2, 1986; a. Ord. No. 290, eff. Sept. 4, 1997; repealed and reordained by Ord. No. 418-2001, eff. Jan. 18, 2002; Emer. Ord. No. 065-2016, § 2, eff. March 16, 2016; a. Emer. Ord. No. 378-2019, § 2, eff. Oct. 2, 2019)

Sec. 2-A. Special Police Officers.

Any city employee whose duties require the exercise of police power within the scope of his or her employment may be commissioned a special police officer by the chief of police with the approval of the city manager. In the performance of official duties such employee shall have the powers of a police officer in arresting persons for offenses against the laws and ordinances.
(Ordained by Ord. No. 418-2001, eff. Jan. 18, 2002)

Sec. 2-B. School Crossing Guards.

(a) The city manager and the board of education of the city school district of the city of Cincinnati ("board of education") shall each independently have the power to appoint, as school crossing guards, persons to protect children going to and from school during such hours as the city manager may designate.

(b) The board of education shall timely communicate the names of school crossing guards it appoints to the city manager.

(c) All school crossing guards duly appointed pursuant to this section, shall have the power while on duty at the locations to which they are assigned, to order or direct traffic to stop at a crosswalk for the purpose of facilitating persons to safely cross a street, and failure to obey a school crossing guard exercising this power shall be a traffic violation under Section 502-17 of Title V, "Traffic Code," of the Cincinnati Municipal Code.

(d) While directing traffic such school crossing guards shall wear such distinctive caps or other equipment to indicate their authority as may be determined by the city manager, such distinctive caps or other equipment being the same whether a school crossing guard is appointed by the city manager or the board of education.
(Ordained by Ord. No. 418-2001, eff. Jan. 18, 2002; a. Ord. No. 0037-2019, eff. Jan. 30, 2019)

Sec. 3. Private Police Officers.

Private police officers performing special duties for the benefit of, and at the expense of, private persons or corporations may be commissioned by the chief of police with the approval of the city manager upon a showing by such private persons or corporations of the necessity therefor. Such commissions shall be conferred only upon persons of good moral character and shall run for a period of one year. The commissions shall be renewable for additional periods of one year each after like consideration. Such private police officers shall be subject to the orders of the chief of police and to the rules and regulations prescribed by the chief. They shall give bond in the amount of $1,000 and shall have the powers of police officers in arresting and citing persons for offenses against the laws and ordinances. The police chief, upon making his determination that the issuance of a private police commission is necessary, may limit the powers to arrest and issue citations granted by the commission to those powers which are deemed necessary to perform the function for which the commission is issued. No person who has been dismissed from the regular police force shall be commissioned as a private police officer within a period of three years after such dismissal. The commission of a private police officer shall be subject to revocation by the chief of police at any time.
(Amended by Ord. No. 299-1979, eff. Aug. 4, 1979; repealed and reordained by Ord. No. 418-2001, eff. Jan. 18, 2002)

Sec. 4. Police Training School.

A police training school shall be maintained in which all recruits shall be instructed for a

period of at least 60 days in the various branches of police technique, acquainting them with the regulations of the police force and instructing them in the laws and ordinances which they are called upon to enforce as well as in the manner of their enforcement. Courses shall be provided in matters of police administration, supervision, criminal investigation and identification, preparation of records and reports, the psychology of criminals and such other subjects as are necessary for the performance of police duties.
(Repealed and reordained by Ord. No. 418-2001, eff. Jan. 18, 2002)

Sec. 4-A. Duties with Respect to Racial Profiling.

(a) Racial profiling shall mean the detention, interdiction or other disparate treatment of an individual using the racial or ethnic status of such individual as a factor, other than in the case of a physical description.

No member of the police force shall engage in racial profiling. The detention of an individual based on any noncriminal factor or combination of noncriminal factors is inconsistent with this subsection. Except for purposes of a suspect physical description, race or ethnicity of an individual shall not be a factor in determining the existence of probable cause to take into custody or to arrest an individual or constitute a reasonable and articulable suspicion that an offense has been or is being committed so as to otherwise justify the detention of an individual or the investigatory stop of a motor vehicle.

Any member of the police force who engages in racial profiling shall be subject to disciplinary action, in accordance with applicable civil service law, up to and including dismissal.

(b) Commencing on April 8, 2001, the Police Department shall, using the form developed and promulgated pursuant to subsection (c) hereof, record and retain the following information for all motor vehicle stops: (1) the number of vehicle occupants; (2) characteristics of race, color, ethnicity, gender and age of such persons, provided the identification of such characteristics shall be based on the observation and perception of the police officer responsible for reporting the stop and the information shall not be required to be provided by the person stopped; (3) the nature of the stop; (4) the location of the stop; (5) if an arrest was made, the misdemeanor or crime charged; (6) if a search was conducted, whether the individual consented to the search, the probable cause for the search, whether the individual's property was searched, and the duration of the search; (7) whether any contraband was discovered in the course of the search and the type of any contraband discovered; and (8) any additional information that the Chief of Police deems appropriate.

(c) The Chief of Police, with the assistance of any other persons deemed appropriate, shall develop and promulgate a form, in both printed and electronic format, to be used by police officers when making a traffic stop to record information pursuant to subsection (b) hereof.

(d) The City of Cincinnati shall develop an RFP to contract with a university or agency to provide an independent analysis of the information collected pursuant to subsection (b) and oversee the quality of the data collection process. In evaluating the proposals received, the following criteria shall be included for consideration: (1) degree of objectivity; (2) degree of community input; (3) cost; (4) thoroughness of analysis; and (5) experience. The service contract shall provide for a preliminary analysis of the information collected during the first six months of the contract within thirty days.

(e) The City Manager shall pursue such funding as may be available to support the implementation of this ordinance from available public, non-profit, and private sources.

(Amended by Ord. No. 299-1979, eff. Aug. 4, 1979; r. Ord. No. 418-2001, eff. Jan. 18, 2002; reordained by Ord. No. 249-2002, eff. June 26, 2002)

Sec. 4-B. Repealed.

(Amended by Ord. No. 342-1957, eff. Sept. 11, 1957; a. Ord. No. 2-1958, eff. Feb. 1, 1958; r. Ord. No. 418-2001, eff. Jan. 18, 2002)

Sec. 5. Department of Fire.

There is hereby established a department of fire. The fire department shall consist of a fire chief and such assistants, officers and employees as may be authorized by or pursuant to ordinance.
(Amended by Ord. No. 299-1979, eff. Aug. 4, 1979; repealed and reordained by Ord. No. 356-1983, eff. Oct. 1, 1983; repealed and reordained by Ord. No. 551-1983, eff. Nov. 23, 1983; repealed and reordained by Ord. No. 418-2001, eff. Jan. 18, 2002)

Sec. 6. Fire Chief.

The fire chief shall be the director and commanding officer of the fire department, and, subject to the approval of the city manager, shall have control of the assigning and stationing of the members of the fire department and the direction of the work thereof. The office of the fire chief shall be subject to the control, direction and supervision of the city manager.

The fire chief shall work closely with the director of the emergency communications center, the police chief and designated representatives of the police and fire departments to ensure efficient operation of the emergency communications center on behalf of the police and fire departments and the Cincinnati community. The director of the emergency communications center and the fire chief shall maintain collaborative managerial oversight of dispatch services within their specific areas of service.
(Repealed and reordained by Ord. No. 418-2001, eff. Jan. 18, 2002; Emer. Ord. No. 065-2016, § 4, eff. March 16, 2016; a. Emer. Ord. No. 378-2019, § 3, eff. Oct. 2, 2019)

Sec. 7. Authority in Preventing Spread of Fire.

The fire chief or any person in command at any fire shall have authority to order the removal of fences, lumber, or other combustibles, and the pulling down of any house, building, or other structure, when, in the opinion of such person, the public safety shall require it.
(Amended by Ord. No. 088-2001, eff. Mar. 28, 2001; repealed and reordained by Ord. No. 418-2001, eff. Jan. 18, 2002)

Sec. 8. Cincinnati Fire Prevention Board of Appeals.

There shall be a Cincinnati fire prevention board of appeals whose duty it shall be to hear and rule upon appeals taken from any notice, order or other decision, any one of which was issued in writing by the fire chief. The board shall be composed of five members: one shall be actively engaged in the field of fire insurance, one shall be a consulting engineer engaged in the design or supervision of mechanical installations, one shall be a mechanical contractor, and two shall be representatives of the public at large.

The members shall be appointed by the city manager for original terms of one, two, three, four and five years, respectively, and

thereafter for terms of five years each. Members may be removable by the city manager at any time.
(Added by Ord. No. 418-2001, eff. Jan. 18, 2002)

Sec. 9. Fire Department Training School.

A training school shall be maintained for the instruction of all recruits and members of the fire department in the various branches of their work, acquainting them with the regulations, laws, and ordinances affecting their official duty and familiarizing them with fire force practices, methods, and the use of equipment.
(Repealed and reordained by Ord. No. 418-2001, eff. Jan. 18, 2002)

Sec. 10. Bomb Disposal Unit.

There is hereby established within the Cincinnati fire department a bomb disposal unit for the purpose of detecting, defusing, removing and disposing of bombs and explosive devices.
(Repealed and reordained by Ord. No. 418-2001, eff. Jan. 18, 2002)

Sec. 11. Repealed.

(Amended by Ord. No. 299-1979, eff. Aug. 4, 1979; r. Ord. No. 418-2001, eff. Jan. 18, 2002)

Sec. 12. Repealed.

(Ordained by Ord. No. 478-1972, eff. Nov. 17, 1972; r. Ord. No. 418-2001, eff. Jan. 18, 2002)

Sec. 13. Repealed.

(Repealed by Ord. No. 418-2001, eff. Jan. 18, 2002)

Sec. 14. Repealed.

(Ordained by Ord. No. 480-1983, eff. Oct. 5, 1983; r. Ord. No. 418-2001, eff. Jan. 18, 2002)

ARTICLE V. DEPARTMENT OF TRANSPORTATION AND ENGINEERING

Sec. 1. Director of Transportation and Engineering.

There is hereby established a department of transportation and engineering to be administered by a director of transportation and engineering, appointed by and subject to the control and supervision of the city manager.
(Ordained by Ord. No. 369-1999, eff. Oct. 22, 1999)

Sec. 2. Duties of the Director of Transportation and Engineering.

The director of transportation and engineering shall have management responsibility for the city's multi-modal transportation system, integrating highway, rail, air, transit, water, bicycle, pedestrian, and utility networks. The director shall supervise the administration of the municipal airports. The director shall have responsibility for inspection, planning, regulatory affairs, right-of-way management and regulatory functions, coordination, design, construction, rehabilitation and maintenance coordination of the public transportation infrastructure, including streets, boulevards, alleys, viaducts, sidewalks, curbing, street crossings, grade separations, bikeways, stairways, second-level pedestrian walkways and other public ways and transportation structures belonging to the city. The director will be responsible for the installation, operation, and maintenance of street lighting

circuits, traffic signals, pedestrian signals, school flashers, hazard signals, intelligent transportation systems infrastructure, and all associated equipment, including overhead signs and vehicle/pedestrian detection systems. The director will also be responsible for enforcement of the municipal code provisions regarding private utility poles, lines, and facilities for electricity and telecommunications, located within the public right-of-way.

The director of transportation and engineering shall have responsibility for the provision of engineering, surveying, urban design, architecture, design and construction management services to be provided to other departments and agencies of the city.

The director shall maintain a complete set of records and maps showing all pertinent information as to the services and properties set forth herein in the charge of the department and shall perform such other duties as may be imposed by the city manager.

Unless otherwise directed by the city manager, duties required by statute or ordinance to be performed by the city engineer, shall be performed by the city engineer in the department of transportation and engineering.

Any provisions of the Cincinnati Municipal Code that refer to the department of public works or the director of public works shall be read to mean the department of transportation and engineering or the director of the department of transportation and engineering, so far as they are consistent with the duties set forth in this article and in accordance with the direction of the city manager.
(Ordained by Ord. No. 369-1999, eff. Oct. 22, 1999; a. Ord. No. 201-2001, eff. June 27, 2001; Emer. Ord. No. 0346-2019, §§ 1, 2, eff. Sept. 18, 2019)

ARTICLE VI. DEPARTMENT OF PUBLIC SERVICES*

Sec. 1. Director of Public Services.

There is hereby established a department of public services, to be administered by a director of public services subject to the supervision and control of the city manager. The department of public services shall include other subordinate officers and employees appointed to serve under the direction and supervision of the director.
(Amended by Ord. No. 369-1999, eff. Oct. 22, 1999; Emer. Ord. No. 044-2015, § 17, eff. March 16, 2015)

Sec. 2. Duties of Director of Public Services.

The director of public services shall have the duty and responsibility for the following areas of jurisdiction: repair, maintenance, and cleaning of all streets, boulevards, alleys, viaducts, sidewalks, curbing, street crossings, grade separations, and other public ways and highways belonging to the city; second-level walkway capital improvements; installation, operation, and maintenance of regulatory signs, pavement markings, and hazard markings; collection and disposal of city wastes; maintenance of a complete set of records and maps showing all pertinent information as to the public services and properties set forth herein in the charge of the department; and shall perform other duties as may be imposed by the city manager or by ordinance of the council.

Any provisions of the Cincinnati Municipal Code that refer to the department of public works or the director of public works shall be read to mean the department of public services or the director of the department of public services, so far as they are consistent

*__Editor's note—__Ord. No. 044-2015, § 17, effective March 16, 2015, changed the title of Art. VI from "Director of Public Works" to "Department of Public Services."

with the duties set forth in this article and in accordance with the direction of the city manager.
(Amended by Ord. No. 420-1969, eff. Jan. 2, 1970; a. Ord. No. 296-1973, eff. July 27, 1973; a. Ord. No. 470-1976, eff. Oct. 17, 1976; a. Ord. No. 336-1978, eff. Sept. 1, 1978; a. Ord. No. 299-1979, eff. Aug. 4, 1979; a. Ord. No. 351-1985, eff. Aug. 2, 1985; a. Ord. No. 413-1990, eff. Oct 3, 1990; a. Ord. No. 507-1991, eff. Jan. 17, 1992; a. Ord. No. 450-1994, eff. Jan. 20, 1995; a. Ord. No. 212-1996, eff. July 3, 1996; a. Ord. No. 369-1999, eff. Oct. 22, 1999; Emer. Ord. No. 044-2015, § 17, eff. March 16, 2015; Emer. Ord. No. 0346-2019, §§ 3, 4, eff. Sept. 18, 2019; a. Emer. Ord. No. 0358-2020, §§ 3, 4, eff. Oct. 28, 2020)

Sec. 3. Repealed.

(Ordained as Art. VI, Sec. 15 by Ord. No. 447-1974, eff. Oct. 30, 1974; repealed and reordained by Ord. No. 128-1975, eff. Mar. 26, 1975; renumbered to Art. VI, Sec. 3 and amended by Ord. No. 299-1979, eff. Aug. 4, 1979; r. Ord. No. 578-1979, eff. Dec. 19, 1979)

Sec. 4. Repealed.

(Ordained by Ord. No. 330-1984, eff. Aug. 31, 1984; r. Ord. No. 452-1994, eff. Jan. 20, 1994)

Sec. 5. Repealed.

(Ordained as Sec. 4 by Ord. No. 351-1985, eff. Aug. 2, 1985; renumbered as Sec. 5 per Sec. 101-19; repealed and reordained under Article XXVII, Sec. 1 by Ord. No. 413-1990, eff. Oct. 3, 1990)

ARTICLE VII. RESERVED*

(Ordained by Ord. No. 212-1996, eff. July 3, 1996; r. Emer. Ord. No. 174-2006, eff. June 14, 2006)

*__Editor's note—__Emergency Ord. No. 174-2006, § 7, effective June 14, 2006, repealed art. VII in its entirety. Formerly, said article pertained to the Department of General Services as ordained by Ord. No. 212-1996, eff. July 3, 1996; as amended.

ARTICLE VIII. CITY WATER WORKS

Sec. 1. Superintendent of Water Works.

The city manager shall appoint a superintendent of water works as provided by charter.

Sec. 2. Supplying Water Outside City Limits.

No contract for supplying surplus water to other political subdivisions outside the city of Cincinnati shall be entered into except pursuant to an authorization thereof by ordinance or resolution of the council.

Sec. 3. Division of Stormwater Management Utility.

There shall be a division of stormwater management utility, within Greater Cincinnati Water Works, which shall be responsible for developing and implementing stormwater management plans and solely managing facilities, stormwater systems and stormwater sewers. This division shall charge a storm drainage service charge based on individual contribution of runoff to the system, benefits enjoyed and service received. The division of stormwater management utility shall be administered by the deputy director of stormwater management utility under the direction and supervision of the director of greater Cincinnati water works.
(Ordained by Emer. Ord. No. 156-2016, § 1, eff. June 15, 2016; a. Emer. Ord. No. 360-2024, § 1, eff. Oct. 30, 2024)

ARTICLE IX. DEPARTMENT OF FINANCE

Sec. 1. Department of Finance; Personnel.

There shall be and there is hereby created a department of finance. The city manager

is hereby authorized and directed to appoint a director of finance who shall be the principal officer of the department of finance, and such other officers and employees as may be required therein.

Sec. 2. Director of Finance; Budgetary Duties.

The director of finance shall secure all information, make all estimates, and prepare all reports, forms, and documents, which the city manager or the council may require in respect of tax budgets and appropriation ordinances.

The director of finance shall serve as budget officer of the city and assist the city manager in the preparation and submission of the annual budget estimate to council, conduct the assigned research studies and analyses, coordinate and analyze data generated by the administration, and evaluate selected projects and activities.
(Amended by Ord. No. 331-1998, eff. Sept. 2, 1998)

Sec. 3. Director of Finance; General Duties.

The director of finance shall perform all the duties imposed upon the director by the charter and ordinances of the City of Cincinnati, and such other duties as may be imposed upon city auditors by the laws of Ohio, not inconsistent with the charter and ordinances of the City of Cincinnati. The duties of the director shall be deemed to include those imposed by ordinance upon any officer or division within the department of finance, and such duties shall be performed through such officer or division. The director shall direct, control, and supervise all offices and divisions within the department of finance, and all officers and employees therein and shall be the chief fiscal officer of the city.
(Amended by Ord. No. 299-1979, eff. Aug. 4, 1979)

Sec. 3-A. Assistant Director of Finance.

The city manager shall appoint an assistant director of finance, who shall perform such duties as are delegated or assigned by the director of finance, and who shall perform the duties of the director of finance during such director's absence or disability, or in case of a vacancy in the office of director of finance. The assistant director of finance shall serve at the pleasure of the city manager.
(Ordained by Ord. No. 71-1979, eff. March. 30, 1979; a. Ord. No. 331-1998, eff. Sept. 2, 1998)

Sec. 4. Division of Accounts and Audits; Superintendent of Accounts and Audits.

There is hereby created a division of accounts and audits within the department of finance. The city manager shall appoint a superintendent of accounts and audits who shall be the principal officer in such division.
(Amended by Ord. No. 71-1979, eff. Mar. 30, 1979)

Sec. 5. Superintendent of Accounts and Audits; Duties.

The superintendent of accounts and audits shall maintain fund accounts, revenue and receipt accounts, appropriation accounts, control accounts, and disbursement accounts of the City of Cincinnati, and such other accounts as the director of finance shall require. The superintendent shall prepare all reports and statements concerning such accounts maintained, and all documents derived from such accounts, as may be required by the laws of Ohio, by the charter or ordinances of the City of Cincinnati, by resolution of the council, or by order of the city manager or the director of finance. The superintendent shall audit the accounts of other officers, employees, offices, depart-

ments, boards or commissions of the city as may be required by ordinance, by the city manager, or by the director of finance.
(Amended by Ord. No. 299-1979, eff. Aug. 4, 1979)

Sec. 6. Superintendent of Accounts and Audits; Financial Reports.

Not less frequently than once each month the superintendent of accounts and audits shall transmit to the director of finance a summary statement showing the financial position of the city and of each of its funds, in respect of cash, of appropriations made, expended, and encumbered during the year, and of such other items as the director of finance shall prescribe. The director of finance shall transmit copies of any such report to the city manager and to the council, and shall transmit to each operating department, office, board, or commission a copy of the part of such report which concerns its appropriations, expenditures, and encumbrances.
(Amended by Ord. No. 299-1979, eff. Aug. 4, 1979)

Sec. 7. Department and Divisional Accounts.

The director of finance, with the approval of the city manager, shall authorize accounts to be maintained by any officer, office, department, board or commission of the City of Cincinnati, shall prescribe the forms and detail in which such accounts shall be maintained, and may require the same to be maintained. Such accounts may be for the purpose of determining the costs of work and services, by units or otherwise, or for other purposes. Every such authorization, prescription, and requirement hereafter issued shall be in writing and may be revoked, altered, revised, modified, or amended in writing and not otherwise.

The director of finance shall at all times maintain copies of such authorizations, prescriptions, and requirements as may from time to time be in effect conveniently arranged and indexed. Accounts being maintained at the time this section takes effect shall be deemed to be authorized, prescribed, and required to be maintained in the same form and detail as before, for such period as may be fixed therefor by order of the director of finance.
(Amended by Ord. No. 45-1970, eff. Feb. 18, 1970; at Ord. No. 299-1979, eff. Aug. 4, 1979)

Sec. 8. Record of Value of Personal Property.

The superintendent of accounts and audits shall maintain a record with estimates of value of all personal property owned by the city as has a useful life of one year or more.
(Amended by Ord. No. 12-1988, eff. Feb. 20, 1988)

Sec. 9. Opening of Bids.

When bids are required to be filed for the letting of contracts by the city it shall be the duty of the superintendent of accounts and audits to attend and assist, or to designate another officer or employee of the division of accounts and audits who shall attend and assist the opening of such bids and inspect them. Without derogation from the generality of this section, it shall be deemed to comprehend proposals from banks to be designated as city depositories.

Sec. 10. Custody of Official Bonds, Contracts, etc.

The superintendent of accounts and audits shall be charged with the custody of official bonds of city officers and employees (except the bond for the superintendent of accounts and audits, which shall be in the custody of

Sec. 21. Repealed.
(Ordained by Ord. No. 416-1969, eff. Jan. 1, 1970; r. Ord. No. 325-2010, § 3, eff. Sept. 4, 2010)

Sec. 22. Division of Risk Management; Risk Manager; Duties.

There is hereby created a division of risk management within the department of finance. The city management shall appoint a risk manager who shall be the principal officer in such division. The city manager may appoint in the employment classifications established by ordinance such other persons necessary to carry out the work assigned to said division.

The risk manager shall have the following duties:

(a) To protect the city government against the financial consequences of loss;

(b) To preserve the assets and public service capabilities of the city government from loss or destruction;

(c) To minimize the total long term costs of all activities related to the identification, prevention and control of losses and their consequences to the city government;

(d) To create a system of internal procedures to provided constant reassessment of fluctuating exposure to loss, loss bearing capacity, and available financial resources, including insurance;

(e) To administer an employee health service clinic which shall provide occupational medical services to city employees, develop occupational medical programs, conduct pre-placement and periodic physical examinations of city employees and consult with city administration on occupational health issues;

(f) To administer the various city health insurance and dental insurance plans, and any other life, health or disability insurance plans and/or any flexible benefit plans adopted by the city;

(g) To administer the city worker's compensation insurance program.

In addition, the risk manager shall perform all duties assigned by ordinance of council, by the city manager or by the director of finance.
(Ordained by Ord. No. 243-1993, eff. July 30, 1993)

Sec. 23. Division of Purchasing; City Purchasing Agent; Duties.

There is hereby established a division of purchasing within the department of finance. The city manager shall appoint a city purchasing agent who shall be the principal officer in such division and may appoint in the employment classifications established by ordinance such other persons necessary to carry out the work assigned to said division.
(Ordained by Ord. No. 159-1995, eff. June 2, 1995)

Sec. 24. City Purchasing Agent; Duties.

Except as otherwise permitted under the Cincinnati Municipal Code, the city purchasing agent shall be responsible for the purchase of all supplies, materials, equipment and nonprofessional services required by the various departments, boards, commissions and offices of the city, and with the supervision and inspection of the same. Through consultation with departments, officers, boards and commissions, the city purchasing agent shall prepare standard specifications for the supplies, materials, equipment and nonprofessional services needed.

The city purchasing agent shall, with the approval of the city manager and director of

finance, promulgate rules and regulations for the implementation of the procurement practices of the city to assure fair and reasonable application of the competitive bidding processes and to protect the public interest.

The city purchasing agent shall administer the disposal of the personal property of the city no longer needed for public use on the direction of the director of finance in consultation with the department, office, board or commission controlling such property.

The city purchasing agent shall have charge of such storerooms and storehouses of the city as may be established for supplies and materials purchased by the city and not delivered directly to the various departments, offices, boards and commissions. The city purchasing agent shall be informed of and maintain records as to the sources of supply for all classes of purchases, trends of prices and other materials pertinent to the functions of the city purchasing division.

The city purchasing agent shall, when authorized by the city manager and director of finance, execute contracts processed by the purchasing division on behalf of the city manager or the various departments, boards and commissions of the city.

The city purchasing agent shall perform all the duties assigned by ordinances of council, by the city manager and by the director of finance.
(Ordained by Ord. No. 159-1995, eff. June 2, 1995; a. Emer. Ord. No. 174-2006, § 6, eff. June 14, 2006; a. Emer. Ord. No. 262-2007, § 3, eff. June 27, 2007; a. Emer. Ord. No. 204-2008, § 3, eff. June 11, 2008)

Sec. 25. City Purchasing Agent: Combined Purchases; Authorization to Sign Contracts.

When requests for materials, equipment, supplies or services by independent boards or commissions of the city can be handled more efficiently, the city purchasing agent may combine such requests with similar requests by departments under the jurisdiction of the city manager for the purpose of purchasing the items requested by a single contract. The city manager, or the city purchasing agent when authorized by the city manager, shall execute such contract on behalf of all of the branches of the government of the city.
(Ordained by Ord. No. 159-1995, eff. June 2, 1995)

Sec. 26. Division of Budget and Evaluation.

There is hereby established a division of budget and evaluation within the department of finance. The city manager shall appoint a budget and evaluation manager who shall be the principal officer in such division and may appoint in the employment classifications established by ordinance such other persons necessary to carry out the work assigned to such division.

The budget and evaluation manager shall supervise the division of budget and evaluation under the supervision of the director of finance and shall assist the director of finance in the preparation and submission of the annual budget estimate to council, conduct the assigned research studies and analyses, coordinate and analyze data generated by the administration, evaluate selected projects and activities and perform such other duties as may be requested by the director of finance or the city manager.
(Ordained by Ord. No. 331-1998, eff. Sept. 2, 1998)

ARTICLE XI. PERSONNEL OFFICER

Sec. 1. Roster or City Employees.

The personnel officer shall maintain a roster of all persons in the employment of

the city showing in reference to each such person's name, address, date of appointment to or employment in such service, salary or compensation, the title of the position or office held, and, in case of removal or resignation the date thereof.
(Amended by Ord. No. 299-1979, eff. Aug. 4, 1979)

Sec. 3. Personnel Administration.

The personnel officer shall keep appropriate record of the personnel conditions in the city service and shall on the request of the city manager or of the civil service commission, or upon the personnel officer's own initiative, investigate problems relating to the personnel administration of the city.
(Amended by Ord. No. 299-1979, eff. Aug. 4, 1979)

ARTICLE XIV. PUBLIC RECREATION COMMISSION

Sec. 1. Member.

Members of the public recreation commission shall have the qualifications of electors of the City of Cincinnati, and shall as the existing terms expire be appointed for terms of five years; but whenever a member representing the board of education or the board of park commissioners shall cease to be a member of said board, the person's membership on the public recreation commission shall likewise cease, and the respective board shall appoint a successor for the unexpired term.
(Amended by Ord. No. 299-1979, eff. Aug. 4, 1979)

Sec. 2. Officers; Meetings.

The public recreation commission shall organize each year by electing a president and vice president. The commission shall hold regular meetings at least once a month, and shall establish rules and regulations for its government and for the performance of its duties.
(Emer. Ord. 291-2011, § 1, eff. Sept. 14, 2011)

Sec. 3. Powers.

The public recreation commission shall have power and authority to equip, operate, supervise, and maintain all existing public playgrounds, athletic fields, swimming pools, golf courses, tennis courts, baseball diamonds, indoor recreation centers, municipal camps, and other recreational facilities on or in any public grounds or buildings, either within or without the City of Cincinnati, owned by the city; or on or in any public grounds or buildings hereafter acquired, which the city may from time to time authorize, offer, designate, or set apart for such use; and it shall further have power, with the consent of the board of education of the city school district of the City of Cincinnati, to organize and conduct play and recreational activities on grounds and in buildings under the control of said board of education, provided that nothing in this section shall be construed to abridge the powers of said board of education to refuse the use of any of its grounds or buildings; and it shall have power and authority to equip, operate, supervise and maintain such privately owned lands or buildings whose use for public recreational purposes may be temporarily granted by the owners.

Sec. 4. Concession Privileges; Admission Fees.

The public recreation commission shall have the power and authority to grant concession privileges at the various grounds and other places under the control of said commission, where games, entertainments, and recreational affairs are held and charge a fee therefor, and to charge a nominal fee for

admission to such activities as it may deem desirable and in furtherance of recreational affairs.
(Amended by Ord. No. 304-1976, eff. July 30, 1976)

Sec. 5. Director of Recreation.

The public recreation commission shall appoint a director of recreation and such supervisors, instructors, clerks and other employees as shall be provided for by ordinance. The director of recreation shall be the secretary and chief administrative officer of the commission and shall be responsible to the commission for the direction and development of the recreational and other activities under its jurisdiction. The director shall have authority to contract for the services of umpires, referees, special directors and instructors, musicians, accompanists, and other persons to perform special and occasional duties. The director shall arrange for the use and maintenance of playgrounds, athletic fields, assembly halls or other quarters needed for community or recreational work; direct the preparation of programs of activities, including festivals, pageants, tournaments and contests; oversee the organization of clubs, teams, leagues and other groups; devise publicity for recreational programs; approve payrolls, vouchers, requisitions and contracts of the commission; assign workers to particular recreational duties; confer and negotiate with park and school board officials relative to the coordination of recreational work; prepare reports and make recommendations to the commission relative to the recreational program; administer cultural activities including the city's allocation for the arts; and perform such other related duties as may be assigned by ordinance.
(Amended by Ord. No. 299-1979, eff. Aug. 4, 1979; Ord. No. 490-1981, eff. Dec. 25, 1981; a. Ord. No. 216-2003, eff. June 25, 2003)

Sec. 6. Severance.

No employment agreement shall provide for monetary severance in the case of termination of any employee appointed by the Cincinnati Recreation Commission except as previously approved by Council.
(Ordained by Ord. No. 0052-2019, § 3, eff. March 15, 2019)

ARTICLE XV. RETIREMENT SYSTEM

Sec. 1. Board of Trustees.

a) The general administration and responsibility for the proper operation of the retirement system shall be vested in a board of trustees. The board of trustees shall consist of nine members:

i. Four members with qualifications specified in subsection (b) shall be appointed by the Mayor with the advice and consent of Council.

ii. Two members, who shall be employee members of the system, shall be elected by deferred members and active members, as defined in Sections 203-1-D and 203-1-A2, who are not currently receiving a retirement benefit.

iii. Three members, who shall be retired members of the system, shall be elected by persons who are receiving retirement allowances, optional benefits, or survivor benefits from the system.

b) At least two of the members who are appointed to the board pursuant to Article XV, Section 1(a)(i) shall have the following qualifications:

i. Baccalaureate degree from an accredited college or university in finance, economics, business, or other field of study involving financial management; or

ii. A minimum of ten years of experience in pension administration, pension actuarial practice, institutional investment management, employee benefits/investment law, banking, asset/liability management for an insurance company, or university or college professor with a focus on fiduciary or trust fund law or quantitative background in financial theory or actuarial math.

iii. The appointed member shall not have any business, personal, or family interests related to the city or the retirement system that would constitute a conflict of interest, or that would create the appearance of a conflict of interest, with the duties of a trustee. Being a member of the Cincinnati Retirement System or a beneficiary of the Cincinnati Retirement System shall not constitute a conflict of interest.

iv. Residency shall not be considered as a qualification for any appointed member.

v. A current or former elected city official appointed as a member of the board pursuant to this section does not have to meet the requirements of subsection b)i and b)ii of this section. No more than two current or former elected city officials appointed as members of the board pursuant to this section shall be eligible to simultaneously serve as members of the board.

c) Board members shall have terms of the following lengths:

i. Mayoral appointees: Members who are appointed to the board pursuant to Article XV, Section 1(a)(i) may have a term of any length of time not exceeding four years.

ii. Elected members: Members who are elected to the board pursuant to Article XV, Section 1(a)(ii) or (iii) shall serve a term of four years.

d) Term limits: No board member may serve consecutive terms consisting of more than twelve years. Appointment to an unexpired term shall be counted against the term limitation except that an interim term of no more than 300 days as provided under Article XV, Section (1)(f) shall not be counted against the term limitation under this subsection. A board member shall not be eligible for appointment or election to a subsequent term if serving the full subsequent term will cause the board member to exceed the twelve-year limitation.

e) Effect of break in service: Re-election or re-appointment to the board after a break in service of less than four years shall be treated as a consecutive term and will be counted against the term limitation under Article XV, Section (1)(d). A board member who reaches the term limit in Article XV, Section 1(d) becomes eligible to serve on the board again four years after the board member left the board. If elected or appointed after the four-year break in service, a new term limit of no more than twelve consecutive years shall apply.

f) Each board member shall hold office from the first date of the term until the end of the term for which the member was appointed or elected. Any member shall continue in office after the expiration date of the member's term until the member's successor takes office or until a period of 180 days has elapsed, whichever occurs first. The election process shall begin at least 120 days prior to the end of an active board member's term.

i. Appointed members: A vacancy on the board shall be filled in the same manner as the original appointment.

If a vacancy occurs in the middle of a term, the member appointed to fill the vacancy shall serve the remainder of the vacated term.

ii. Elected members: If a vacancy occurs in the position of a board member and the remaining portion of the member's unexpired term is 300 days or less no election shall be held to fill the unexpired term. If a vacancy occurs in the position of a board member and the remaining portion of the member's unexpired term is more than 300 days, an election shall be held to fill the unexpired term.

iii. If a vacancy occurs in the position of a board member elected pursuant to Article XV, Section 1(a)(ii) the remaining active member shall select an active member of the system as an interim replacement to serve until the term ends or until an active member is elected to fill the vacancy.

iv. If a vacancy occurs in the position of a board member elected pursuant to Article XV, Section 1(a)(iii) the remaining retiree members shall select a retiree member of the system as an interim replacement to serve until the term ends or until a retiree member is elected to fill the vacancy.

g) An entity authorized to appoint or elect a member under subsection a) shall remove its appointee or representative from the board for any act of misconduct involving the trustee's duties, including breach of fiduciary duty and failure to properly discharge the duties of the trustee, to the extent permitted by state law.

h) The board shall meet regularly and shall convene other meetings at the request of the chairperson or a majority of the members. A member who fails to attend at least two-thirds of the regular and special meetings of the board during any two-year period forfeits membership on the board.

i) The board shall report to council at least annually on the following issues:

i. Success at meeting the investment and funding objectives.

ii. Investment performance and attribution.

iii. Compliance with conflict of interest and ethics policies.

iv. Compliance with benefit delivery policies.

v. Results of external and internal audit findings and follow-up efforts.

vi. Board member attendance, travel, and educational efforts.

j) The board shall vote to disqualify any candidate from seeking election to the board or any member from remaining as a board trustee for any of the following reasons:

i. Finding of dishonesty in any civil proceeding or disciplinary decision.

ii. Conviction of a felony for an act committed while the candidate or member was an adult.

iii. Failure to comply with election requirements established by the board.

(Amended by Ord. No. 31-1957, eff. Mar. 1, 1957; a. Ord. No. 406-1957, eff. Oct. 23, 1957; a. Ord. No. 472-1957, eff. Dec. 11, 1957; a. Ord. No. 360-1967, eff. Oct. 13, 1967; a. Ord. No. 114-1976, eff. Mar. 24, 1976; a. Ord. No. 415-1976, eff. Sept. 9, 1976; a. Ord. No. 299-1979, eff. Aug. 4, 1979; a. Ord. No. 398-1988, eff. Nov. 4, 1988; a. Ord. No. 481-1991, eff. Dec. 27, 1991; Emer. Ord. No. 0366-2007, § 1, eff. Oct. 10, 2007; Emer. Ord. No. 311-2010, § 1, eff. Aug. 4, 2010; Emer. Ord. No. 335-2010, § 1, eff. Sept. 9, 2010; a. Ord. No. 027-2015, § 1, eff. March 4, 2015; Emer. Ord. No.

354-2015, § 1, eff. Nov. 12, 2015; Emer. Ord. No. 0014-2021, §§ 1, 2, eff. Jan. 21, 2021; a. Ord. No. 0095-2025, § 1, eff. April 16, 2025)

Sec. 2. Compensation; Oath of Office.

The appointed trustees shall be compensated for their service to the board in an amount to be determined by Council. Each trustee shall take an oath of office at the next regular or special meeting of the board.
(Amended by Ord. No. 299-1979, eff. Aug. 4, 1979; Emer. Ord. No. 335-2010, § 3, eff. Sept. 9, 2010)

Sec. 3. Organization of Board.

The board shall elect from its membership a chair and vice-chair. The executive director of the retirement system shall be secretary, ex officio, of the board, but shall not vote on items considered by the board. At least six board members shall be present for the board to meet. The concurring votes of five board members shall be necessary for any decision by the board.
(Amended by Ord. No. 31-1957, off. Mar. 1, 1957; a. Ord. No. 46-1989, eff. Feb. 1, 1989; Emer. Ord. No. 335-2010, § 5, eff. Sept. 9, 2010; Emer. Ord. No. 0014-2021, §§ 1, 2, eff. Jan. 21, 2021)

Sec. 4. Rules and Regulations.

The board shall adopt rules and regulations for the administration of the funds of the retirement system and for the transaction of its business.

Sec. 5. Record of Proceedings; Financial Reports.

The board shall keep a record of its proceedings, which shall be open to public inspection. It shall report to council annually showing the fiscal transactions of the retirement system for the calendar year, the amounts of accumulated cash and securities and the last balance sheet showing the financial condition by means of an actuarial valuation of assets and liabilities.

Sec. 6. Medical Director.

The board shall designate a medical director, who shall be a physician not eligible to participate in the retirement system. The medical director shall arrange for and pass upon all medical examinations required under the provisions of the ordinances, shall investigate all essential statements and certificates by or on behalf of a member in connection with any application for disability retirement, and shall report in writing to the board his conclusions and recommendations upon all referred matters.
(Amended by Ord. No. 299-1979, eff. Aug. 4, 1979)

Sec. 7. Actuary.

The board shall approve an actuary who shall be its technical adviser on matters regarding the operation of the retirement system and shall perform such other duties as are required in connection therewith. The retention of the actuary shall follow the city's established procurement process. The board shall keep in convenient form such data as shall be necessary for actuarial valuation of the retirement system and for checking the experience of the retirement system.
(Amended by Ord. No. 546-1983, eff. Dec. 23, 1983; Emer. Ord. No. 0014-2021, §§ 1, 2, eff. Jan. 21, 2021)

Sec. 8. Special Services.

The board may employ such special actuarial, medical and other service as shall be required.

Sec. 9. Actuarial Investigations.

At least once in each five-year period, the board shall cause an actuarial investigation

to be made into the mortality, service, and compensation experience of the members and beneficiaries of the retirement system, and shall make a valuation of its assets and liabilities. Taking into account the results of such investigation and valuation, the board shall:

(a) Adopt such mortality service and other tables as it shall consider necessary; and

(b) Cause an actuarial valuation to be made of the assets and liabilities of the retirement system at least once every two years.

(Amended by Ord. No. 546-1983, eff. Dec. 23, 1983; Emer. Ord. No. 0014-2021, §§ 1, 2, eff. Jan. 21, 2021)

Sec. 10. Administrative Services.

The City Solicitor shall serve the board as legal counsel and attorney, and shall represent the board in all proceedings in court. The operating budget for the administration of the system shall be paid for by the funds of the system.

The City shall carry a Public Entity Fiduciary Liability Policy that covers claims made by employees alleging financial loss due to mismanagement of funds to protect against the potential liability of the trustees, the employer, and fiduciaries and professional administrators with respect to error and omissions in the administration of employee benefit programs.

(Ordained by Ord. No. 416-1969, eff. Jan. 1, 1970; Emer. Ord. No. 335-2010, § 7, eff. Sept. 9, 2010)

Sec. 11. Retirement Division.

There is hereby established a retirement division to be administered by a division manager, entitled "pension fund manager," appointed by and subject to the control of and supervision of the city manager.

(Ordained by Ord. No. 325-2010, § 1, eff. Sept. 4, 2010; Emer. Ord. No. 154-2013, § 2, eff. May 30, 2013)

Sec. 12. Duties of the Pension Fund Manager.

The pension fund manager shall be the secretary of the board of trustees. The pension fund manager shall oversee the benefits administration, investment management, and member services of the division, and shall direct, control and supervise all officers and employees within the division of retirement.

(Ordained by Ord. No. 325-2010, § 1, eff. Sept. 4, 2010; Emer. Ord. No. 154-2013, § 2, eff. May 30, 2013)

ARTICLE XVII. RESIDENCY OF CITY EMPLOYEES

(REPEALED)

(Ordained by Ord. No. 200-1967, eff. June 16, 1967; a. Ord. No. 258-1977, eff. June 29, 1977; a. Ord. No. 358-1977, eff. Sept. 21, 1977; a. Ord. No. 483-1977, eff. Dec. 14, 1977; a. Ord. No. 299-1979, eff. Aug. 4, 1979; a. Ord. No. 187-1980, eff. May 7, 1980; a. Ord. No. 418-1980, eff. Oct. 8, 1980; a. Ord. No. 182-1981, eff. May 13, 1981; a. Ord. No. 51-1982, eff. Feb. 24, 1982; a. Ord. No. 203-1984, eff. May 16, 1984; a. Ord. No. 33-1985, eff. Feb. 23, 1985; r. Ord. No. 408-1992, eff. Sept. 16, 1992)

ARTICLE XVIII. PUBLIC DANGER OR EMERGENCY

Sec. 1. Purpose.

The purpose of this article shall be to better define and authorize actions and

procedures to be taken by the city manager, the mayor, and other officers of the city of Cincinnati in time of public danger or emergency. Nothing herein shall be interpreted as limiting the authority of the mayor or city manager to take any appropriate action in time of public danger or emergency which such officer is authorized to take under any other provision of the Cincinnati Municipal Code, the city charter, the statutes or constitution of the state of Ohio, or the laws and constitution of the United States of America.
(Ordained by Ord. No. 172-1968, eff. Apr. 17, 1968; a. Ord. No. 299-1979, eff. Aug. 4, 1979)

Sec. 2. Definitions.

(a) "Public danger or emergency" shall mean:

(1) A riot, as defined in any degree by the Ohio Revised Code, any civil disturbance, disorder, or other occurrence that constitutes a clear and present danger to the health, safety and property of the citizens of the city of Cincinnati, or substantially impairs the functioning of the city government and its ability to protect the lives and property of the people; or

(2) Any natural disaster or man-made calamity, or clear and present danger thereof, including but not limited to flood, conflagration, cyclone, tornado, earthquake, or explosion within the corporate limits of the city of Cincinnati resulting in the death or injury of persons or the destruction of property to such an extent that extraordinary measures must be taken to protect the public peace, health, safety, or welfare.

(b) "Absence" shall include incapacity of the mayor, vice-mayor, or city manager or inability to make immediate contact with the mayor, vice-mayor, or city manager.
(Ordained by Ord. No. 172-1968, eff. Apr. 17, 1968)

Sec. 3. Duties of the City Manager.

In time of public danger or emergency until the mayor, or in the absence of the mayor the vice-mayor, assumes the duties of commanding the police, maintaining order and enforcing the law under Article III, Section 1 of the charter, the city manager shall perform such duties and shall immediately proceed to take all action necessary to preserve and protect the public peace and the lives, persons and property within the city of Cincinnati that are endangered or potentially endangered by the factors constituting such public danger or emergency.

The city manager shall establish and put into effect procedures whereby circumstances or events which constitute a public danger or emergency or which are likely to be productive of a public danger or emergency shall be immediately reported to the city manager by members of the departments under the authority and control of the city manager. Upon receipt of any information of circumstances or events which may constitute an actual or potential public danger or emergency, the city manager shall immediately convey such information to the mayor, or in the absence of the mayor, to the vice-mayor, and thereafter shall convey such information to all other members of council as soon as is practicable. The city manager shall establish procedures to be used in the manager's absence for so notifying the mayor, the vice-mayor and the members of city council and shall continue effort to contact the mayor or vice-mayor in accordance with the provisions of this article while proceeding to act in their absence.

The city manager shall establish procedures for taking positive action through all the appropriate departments of the city under the city manager's jurisdiction to control and suppress riots and to protect the public peace and the lives, persons, and property within the city of Cincinnati in times of emergency and shall keep the mayor informed in detail as to these plans and preparations. The city manager shall consult with the mayor in regard to the formulation of such plans and preparations for the purpose of providing a course of action that can be pursued effectively and expeditiously by the city under the direction of the city manager or mayor. The city manager and the mayor shall keep the vice-mayor informed of all plans and procedures for dealing with public dangers or emergency, in preparation for the possibility of the vice-mayor assuming such duties in the absence of the mayor. In the absence of the mayor and the vice-mayor, the city manager shall be authorized to proceed to take any action deemed necessary under the provisions of this article and to exercise their powers as set forth herein.
(Ordained by Ord. No. 172-1968, eff. Apr. 17, 1968; a. Ord. No. 299-1979, eff. Aug. 4, 1979)

Sec. 4. Notice to the Governor and Sheriff.

It shall also be the duty of the city manager and the mayor to convey to the governor of the state of Ohio information which may come to them concerning existing or potential public danger or emergency in the city of Cincinnati which might require assistance from the militia, national guard, or other state forces. It shall also be the duty of the city manager and the mayor to convey to the sheriff of Hamilton county any information which relates to the sheriff's duty to preserve the peace throughout the county, when such breach of peace or potential breach of peace is related to a public danger or emergency as defined in this article. The city manager or mayor may seek and obtain military assistance from the governor of the state of Ohio or from the federal government and law enforcement assistance from the sheriff whenever such assistance is necessary to support the actions of the police division.
(Ordained by Ord. No. 172-1968, eff. Apr. 17, 1968; a. Ord. No. 299-1979, eff. Aug. 4, 1979)

Sec. 5. Proclamation of Emergency.

When the mayor, or in the absence of mayor the vice-mayor, or in the absence of both the mayor and the vice-mayor, the city manager determines that a public danger or emergency as defined in this article exists, the mayor shall forthwith proclaim in writing the existence of the same and the time of its inception and shall issue proclamation thereof to the public through the news media and such other means of dissemination as deemed advisable.

Prior to issuance of the proclamation as provided for above, and prior to assuming command of police, as provided for in Section 6 of this article, the mayor, or in his absence the vice-mayor, shall, to the extent that time and the availability of the persons listed herein permit, confer and consult with the safety director, police chief, fire chief, members of council and other persons conversant with the circumstances that then exist.
(Ordained by Ord. No. 172-1968, eff. Apr. 17, 1968; a. Ord. No. 299-1979, eff. Aug. 4, 1979)

Sec. 6. Mayor May Assume Command.

In time of public danger or emergency, as defined and proclaimed above, the mayor, or in the absence of the mayor the vice-mayor, is hereby authorized and given the consent of council to take command of the police, maintain order, and enforce the law under

the provisions of Article III, Section 1 of the charter of the city of Cincinnati and to do all things necessary or advisable in regard thereto. The mayor may exercise any power or authority granted to mayors, administrative heads of cities or police chiefs by the laws of the state of Ohio.
(Ordained by Ord. No. 172-1968, eff. Apr. 17, 1968; a. Ord. No. 299-1979, eff. Aug. 4, 1979)

Sec. 7. Emergency Orders.

The city manager, or the person assuming command as provided in Article XVIII, Section 6, may, as deemed by the person in command advisable in the interest of the public peace, health, safety or welfare and in regard to the specific area or areas of the city imperiled by the public danger or emergency or the city as a whole, make and enforce orders to do any or all of the following:

(a) Prohibit or limit the number of persons who may gather or congregate, or prescribe conditions under which such persons may gather or congregate, upon the public highways or public sidewalks or any outdoor place, or in any theater, restaurant, place of public assembly or commercial establishment to which the public has access.

(b) Restrict or prohibit movement within, above, or beneath the area or areas which, in the judgment of the person in command, are imperiled by the public danger or emergency.

(c) Suspend operations at municipal airports.

(d) Establish a curfew during such hours of the day or night as deemed advisable and prohibit persons from being out of doors during such curfew.

(e) Prohibit or restrict the retail sale, distribution, or giving away of gasoline or other liquid flammable or combustible products in any container other than the gasoline tank properly affixed to a motor vehicle.

(f) Order the closing of gasoline stations and other establishments engaged in the retail sale, distribution or dispensing or giving away of liquid flammable or combustible products.

(g) Prohibit or restrict the sale, distribution, dispensing or giving away of any firearms or ammunition of any character whatsoever.

(h) Order the closing of any and all establishments or portions thereof engaged in the sale, distribution, dispensing or giving away of firearms and/or ammunition.

(i) Prohibit or restrict the carrying or possession on the public streets or public sidewalks or in any public park or square or any other public place a weapon or any object intended to be used as a weapon including but not limited to firearms, bows and arrows, air rifles, sling shots, knives, razors, broken bottles, fire bombs, missiles of any kind, clubs, blackjacks, billies, chains or similar items.

(j) Prohibit or restrict the retail sale, distribution, dispensing, or giving away of acids, caustics, or any chemicals or other substances capable of being used singly or in combination to cause injury or damage to persons or property.

(Ordained by Ord. No. 172-1968, eff. Apr. 17, 1968; a. Ord. No. 299-1979, eff. Aug. 4, 1979)

Sec. 8. Additional Assistance for Police and Fire Divisions.

The city manager is authorized to contract with other governmental agencies and firms

and corporations providing security or fire services for the furnishing of additional police and fire protection during times of public danger or emergency. Such agreements may be reciprocal in nature.
(Ordained by Ord. No. 172-1968, eff. Apr. 17, 1968)

Sec. 9. Duration of Emergency.

The public danger or emergency proclaimed in accordance with above procedures shall exist until the officer declaring such emergency shall determine that the event or occurrences constituting the public danger or emergency no longer exists, provided that such duration shall not extend beyond sixty days from the time of its proclamation unless extended by action of city council, and further provided that city council may, at any time it determines that the public danger or emergency no longer exists, declare it to be at an end.
(Ordained by Ord. No. 172-1968, eff. Apr. 17, 1968; a. Emer. Ord. No. 0096-2020, §§ 1, 2, eff. Mar. 20, 2020)

Sec. 10. Authorization of City Departments to Act.

The various departments, divisions of the city of Cincinnati and the personnel thereof are hereby authorized to exercise whatever powers and authority are necessary in order to carry out the orders of the mayor, the vice-mayor, or the city manager issued in time of public danger or emergency as set forth in this article.
(Ordained by Ord. No. 172-1968, eff. Apr. 17, 1968)

Sec. 11. Criminal Offenses in Time of Public Danger or Emergency.

No person, in time of public danger or emergency, shall knowingly fail to obey any lawful order of the city manager, the mayor, or the vice-mayor issued under the authority of this article.

No person, in time of public danger or emergency, shall knowingly fail to obey the lawful order of any police officer, militiaman, fireman, member of the National Guard or other authorized person acting under orders or authority issued under the provisions of this article.

No person, in time of public danger or emergency, shall knowingly interfere with any person lawfully acting under authority granted by this article or under any lawful order issued under the provisions of this article.

No person shall knowingly in any way interfere with any police officer, militiaman, fireman, member of the National Guard or any other authorized person who in time of public danger or emergency is engaged in the protection and preservation of life, person, property, or the public peace.

Whoever violates any provision of this section is guilty of failure to obey a lawful order, a misdemeanor of the fourth degree as defined in the Cincinnati Municipal Code, Title IX, Chapter 902, Section 902-5.

Nothing in this section shall be interpreted as preventing prosecution of a person under any other ordinance of the city of Cincinnati or law of the state of Ohio.
(Ordained by Ord. No. 172-1968, eff. Apr. 17, 1968; a. Emer. Ord. No. 490-2021, §§ 1, 2, eff. Dec. 15, 2021)

Sec. 12. Unconstitutionality, Severability.

Should any section of this article or any part of any section be declared to be unconstitutional or invalid, such decision shall not affect the validity of other sections or any part thereof not so declared

unconstitutional or invalid, and the remainder of this article shall remain in full force and effect as though the portion declared unconstitutional or invalid did not exist.
(Ordained by Ord. No. 172-1968, eff. Apr. 17, 1968)

Sec. 13. Disaster Relief and Disaster Assistance.

Whenever the United States of America, the state of Ohio, or Hamilton County has declared the City of Cincinnati or any part of the City a disaster area, the city manager may apply for and accept disaster assistance from the United States of America and the state of Ohio. The city manager may provide emergency relief to persons suffering loss or injury from the disaster, make emergency purchases of materials and services needed for emergency relief, and may waive fees for city permits or services provided during the disaster or to restore damages caused by the disaster. The city manager may take the actions authorized by this section even if a time of public danger or emergency has not been declared pursuant to this Article.
(Ordained by Ord. No. 68-1997, eff. Mar. 7, 1997)

ARTICLE XIX. DEPARTMENT OF SEWERS

Sec. 1. Director of Sewers.

There is hereby established a department of sewers to be administered by a director of sewers, subject to the supervision and control of the city manager.

The department of sewers shall consist of a director and such supporting officers and employees as shall be appointed or assigned to serve under the direction and supervision of the director.
(Ordained by Ord. No. 147-1968, eff. May 1, 1968; a. Ord. No. 299-1979, eff. Aug. 4, 1979)

Sec. 2. Duties.

The director of sewers shall have charge of the design, construction, repair, maintenance and operation of all sewers and sewerage treatment facilities of the city of Cincinnati and shall perform management functions for the county sewer district assumed by the city of Cincinnati by contract between city of Cincinnati and the board of commissioners of Hamilton county. As of May 1, 1968, the function of the sewer design section of the engineering division of the public works and the sewer maintenance section of the highway maintenance division shall be transferred to the department of sewers. All facilities related to sanitary sewers, including field and office equipment and personnel, insofar as possible, in the aforementioned section, shall be transferred to the new department, without cost to the new department.
(Ordained by Ord. No. 147-1968, eff. May 1, 1968)

Sec. 3. Services of Other Departments.

The department of sewers may avail itself of the services and facilities of other city departments necessary for the discharge of its responsibility under the agreement between the city of Cincinnati and the board of commissioners of Hamilton county. Services of such departments as the department of public works, department of finance, department of personnel, department of law, etc., which are used by the department of sewers in carrying out its duties under the aforesaid contract shall be paid for by the department of sewers at cost plus established overhead.
(Ordained by Ord. No. 147-1968, eff. May 1, 1968)

Sec. 4. Authority to Deal with the Board of County Commissioners.

In the administration of the management function for the county sewer district, the

department of sewers and the city manager may deal directly with the board of county commissioners.
(Ordained by Ord. No. 147-1968, eff. May 1, 1968)

Sec. 5. Storm Sewers.

The department of sewers, when acting in regard to the design, construction, operation and maintenance of storm sewer facilities in the city of Cincinnati, shall keep separate records and accounts of all costs and expenditures related thereto and shall not use or permit the use of any revenue arising from the operation of the Hamilton county sewer district to be wed therefor in the city of Cincinnati, except as is provided under the terms of the agreement between the city of Cincinnati and board of commissioners of Hamilton county.
(Ordained by Ord. No. 147-1968, eff. May 1, 1968

Sec. 6. Repealed.

(Ordained by Ord. No. 420-1969, eff. Jan. 2, 1970; a. Ord. No. 538-1972, eff. Nov. 29, 1972; a. Ord. No. 299-1979, eff. Aug. 4, 1979; r. Ord. No. 183-1981, eff. June 12, 1981)

Sec. 7. Repealed.
(Ordained by Ord. No. 452-1994, eff. Jan. 20, 1995; r. Emer. Ord. No. 156-2016, § 2, eff. June 15, 2016)

ARTICLE XX. HEALTH DEPARTMENT

Sec. 1. Repealed.

(Ordained by Ord. No. 420-1969, eff. Jan. 2, 1970; repealed by Ord. No. 453-1994, eff. Jan. 20, 1995)

Sec. 2. Medical Services.

In addition to the powers and duties granted to the board of health by the charter and the laws of the state of Ohio relating to the providing of health and medical services to the public, the board of health may, within the limits of its physical and financial ability to do so, provide medical and health care to all persons in the City of Cincinnati in need of such services and nursing, therapeutic and supportive care to maintain all ill or infirm persons in need of such services in their place of residence, other than a hospital or nursing home.

The board of health may set reasonable fees for any such services which shall not exceed the cost thereof but in doing so the board shall:

(a) Establish such schedule of fees by regulation duly adopted and published;

(b) Provide for charging fees in accordance with the ability to pay of the patients or persons responsible for payment of the bills of the patient;

(c) Provide for the giving of receipts for payments made.

The board may by regulation duly adopted and published establish criteria for eligibility of persons to receive services mentioned hereinabove, taking into consideration the ability of the board to provide such services, the need for such services, and the availability of services from other sources.

The Home Care Fund No. 353 shall receive fees for nursing and therapeutic and supportive services rendered to persons in their places of residence. Money paid for medical services rendered by the board of health at clinics and places other than the residence of the patients shall be deposited in the general fund and special funds established for the purpose of receiving such money.

The board shall attempt whenever possible to collect payment from third party sources including, but not limited to, Medicaid, Medicare, private insurers, and private firms, agencies and institutions for examinations and medical services rendered.
(Ordained by Ord. No. 256-1972, eff. July 14, 1972; a. Ord. No. 233-1975, eff. May 14, 1975)

Sec. 3. Severance.

No employment agreement shall provide for monetary severance in the case of termination of any employee appointed by the Cincinnati Board of Health except as previously approved by Council.
(Ordained by Ord. No. 0052-2019, § 4, eff. March 15, 2019)

ARTICLE XXI. DEPARTMENT OF BUILDINGS AND INSPECTIONS

Sec. 1. Department of Buildings and Inspections.

There is hereby established a department of buildings and inspections to be administered by a director of buildings and inspections, appointed by and subject to the control and supervision of the city manager.
(Ordained by Ord. No. 296-1973, eff. July 27, 1973; a. Ord. No. 420-1973, eff. Oct. 12, 1973; a. Ord. No. 299-1979, eff. Aug. 4, 1979; a. Ord. No. 291-1985, eff. July 19, 1985; r. Emer. Ord. No. 0472-2007, § 1, eff. Dec. 19, 2007; reordained by Emer. Ord. No. 044-2015, § 9, eff. July 1, 2015)

Sec. 2. Duties of Director of Buildings and Inspections.

The director of the department of buildings and inspections shall be certified by the board of building standards for the state of Ohio as a building official for residential and non-residential purposes, or shall be certified to serve as an interim building official. The director shall also be a registered professional engineer or registered architect in the state of Ohio, or be eligible for registration. The director of the department of buildings and inspections shall be the chief building official for the city for the purposes of administering and adjudicating orders under the Cincinnati building code, under revised code chapters 3781 and 3791, and the rules made under them, including the Ohio building code and the residential code of Ohio, and under all other related building and housing codes.

Permits and Inspections.

The director of buildings and inspections shall oversee the administration and enforcement of all building, housing, and related codes and ordinances under the jurisdiction of the permits and inspections deputy as they relate to the construction and erection of new structures, the renovation of existing structures, the construction and erection of alterations and additions to existing structures, and other alterations and improvements to real property; oversee the building permitting and building inspections functions of the city; serve as the floodplain administrator and oversee the administration and enforcement of floodplain laws and regulations; and perform other duties assigned by the city manager or by ordinance of the council.

Property Maintenance Code Enforcement.

The director of buildings and inspections shall oversee the administration and enforcement of the property maintenance-related provisions of the housing, building, and related codes and ordinances under the jurisdiction of the property maintenance deputy as they relate to the maintenance of existing structures and existing uses of land; oversee the administration and enforcement of the city's weed, high grass, and litter

regulations contained in Municipal Code Chapters 714, "Littering," and 731, "High Grass"; and perform other duties assigned by the city manager or by ordinance of the council.

The director of building and inspections and those designated inspectors and employees, when enforcing the provisions of ordinances or laws within the scope of their duties related to enforcement of the city's weed, high grass, and litter regulations, shall be vested with the powers of police officers of the city.
(Ordained by Ord. No. 296-1973, eff. July 27, 1973; a. Ord. No. 420-1973, eff. Oct. 12, 1973; a. Ord. No. 299-1979, eff. Aug. 4, 1979; a. Ord. No. 475-1991, eff. Dec. 20, 1991; r. Emer. Ord. No. 0472-2007, § 1, eff. Dec. 19, 2007; reordained by Emer. Ord. No. 044-2015, § 9, eff. July 1, 2015; a. Emer. Ord. No. 0358-2020, §§ 1, 2, eff. Oct. 28, 2020; a. Emer. Ord. No. 336-2021, §§ 1, 4, eff. Aug. 4, 2021)

Sec. 3. Division of Permits and Inspections.

The director of the department of buildings and inspections shall establish a division of permits and inspections, to be administered by a permits and inspections deputy subject to the supervision and control of the director of the department of buildings and inspections. The division may also contain other subordinate officers and employees appointed to serve under the direction and supervision of the permits and inspections deputy. The permits and inspections deputy, and those designated officers and employees, when enforcing the provisions of ordinances or laws within the scope of their duties, shall be vested with the powers of police officers of the city.

Permits and Inspections Deputy:

The permits and inspections deputy shall be certified by the board of building standards for the state of Ohio as a building official for residential and non-residential purposes, or shall be certified to serve as an interim building official. It shall be the duty of the permits and inspections deputy to perform building permitting and building inspection functions of the city; administer and enforce all building and housing code regulations as they relate to the construction and erection of new structures, the renovation of existing structures, the construction and erection of alterations and additions to existing structures, and other alterations and improvements to real property; and perform other duties assigned by the director, the city manager, or by ordinance of the council. The permits and inspections deputy shall serve as the chief building official for the city, within the scope of the foregoing duties, in the event of a conflict of interest or the unavailability of the director of buildings and inspections.
(Ordained by Emer. Ord. No. 044-2015, § 9, eff. July 1, 2015; a. Emer. Ord. No. 336-2021, §§ 1, 4, eff. Aug. 4, 2021)

Sec. 4. Repealed.
(Ordained by Ord. No. 296-1973, eff. July 27, 1973; a. Ord. No. 420-1973, eff. Oct. 12, 1973; a. Ord. No. 299-1979, eff. Aug. 4, 1979; r. Emer. Ord. No. 0472-2007, § 1, eff. Dec. 19, 2007; reordained by Emer. Ord. No. 044-2015, § 9, eff. July 1, 2015; r. Emer. Ord. No. 336-2021, §§ 1, 4, eff. Aug. 4, 2021)

Sec. 5. Division of Property Maintenance Code Enforcement.

The director of buildings and inspections shall establish a division of property maintenance code enforcement, to be administered by a property maintenance deputy, who shall be subject to the supervision and control of the director of buildings and inspections. The division of property maintenance code enforcement shall consist of the property maintenance deputy and

other inspectors and employees appointed or assigned to serve under the direction and supervision of the property maintenance deputy. The property maintenance deputy, and those designated inspectors and employees, when enforcing the provisions of ordinances or laws within the scope of their duties, shall be vested with the powers of police officers of the city.

Property Maintenance Deputy:

The property maintenance deputy shall be certified by the board of building standards for the state of Ohio as a building official for residential and non-residential purposes, or shall be certified to serve as an interim building official. It shall be the duty of the property maintenance deputy to administer and enforce all property maintenance and related provisions of the housing, building, and other codes and ordinances under his or her jurisdiction as they relate to the maintenance of existing structures and existing uses of land; exercise the authority to vacate buildings; condemn unsafe buildings; conduct summary abatement and demolition of public nuisance buildings, and perform related activities; issue permits relating to property maintenance orders; order serious safety hazards corrected on existing buildings and structures; and perform other duties assigned by the director, the city manager, or by ordinance of the council. The property maintenance deputy shall serve as the chief building official for the city, within the scope of the foregoing duties, in the event of a conflict of interest or the unavailability of the director of buildings and inspections.
(Ordained by Ord. No. 296-1973, eff. July 27, 1973; a. Ord. No. 420-1973, eff. Oct. 12, 1973; r. Emer. Ord. No. 0472-2007, § 1, eff. Dec. 19, 2007; reordained by Emer. Ord. No. 044-2015, § 9, eff. July 1, 2015; a. Emer. Ord. No. 336-2021, §§ 1, 4, eff. Aug. 4, 2021)

Sec. 6. Appeals from the Chief Building Official.

The chief building official shall determine all questions arising under his or her jurisdiction related to the building code and other laws and ordinances that he or she is charged with enforcing. Except in cases for which special boards of appeals have been provided, appeals may be taken from the decision of the chief building official to the board of building appeals. Where, in the judgment of the chief building official, immediate action is required, as in the case of insecure and unsafe buildings, the chief building official is authorized to take immediate action without waiting for the determination of any appeal.
(Ordained by Ord. No. 296-1973, eff. July 27, 1973; a. Ord. No. 420-1973, eff. Oct. 12, 1973; a. Ord. No. 299-1979, eff. Aug. 4, 1979; a. Ord. No. 428-1983, eff. Oct. 8, 1983; r. Emer. Ord. No. 0472-2007, § 1, eff. Dec. 19, 2007; reordained by Emer. Ord. No. 044-2015, § 9, eff. July 1, 2015)

Sec. 7. Board of Examiners of Plumbers.

All applicants for journeyman plumber licenses shall be examined by the board of examiners of plumbers, consisting of the chief building official or his or her designee, an engineer appointed by the director of sewers, and five other members appointed by the city manager of whom two shall be consulting engineers engaged in design or supervision of plumbing installations, two shall be master plumbers, and one a journeyman plumber. The members appointed by the city manager shall serve five-year terms, so arranged that one term shall expire each year. Members may be removable by the city manager at any time. A person designated by the city manager shall serve as secretary of the board and keep its records, books, and papers.
(Ordained by Ord. No. 296-1973, eff. July 27, 1973; a. Ord. No. 420-1973. eff. Oct. 12,

1973; a. Ord. No. 57-1976, eff. Feb. 11, 1976; a. Ord. No. 299-1979, eff. Aug. 4, 1979; a. Ord. No. 428-1983, eff. Oct. 8, 1983; a. Ord. No. 355-1996, eff. Nov. 6, 1996; r. Emer. Ord. No. 0472-2007, § 1, eff. Dec. 19, 2007; reordained by Emer. Ord. No. 044-2015, § 9, eff. July 1, 2015)

Sec. 8. Examination of Plumbers.

Applicants for journeyman plumber licenses shall be examined as to their practical knowledge of plumbing and their mechanical competency in performing plumbing work and as to their knowledge of ordinances of the city regulating plumbing.
(Ordained by Ord. No. 296-1973, eff. July 27, 1973; a. Ord. No. 420-1973, eff. Oct. 12, 1973; a. Ord. No. 299-1979, eff. Aug. 4, 1979; r. Emer. Ord. No. 0472-2007, § 1, eff. Dec. 19, 2007; reordained by Emer. Ord. No. 044-2015, § 9, eff. July 1, 2015)

Sec. 9. Repealed.
(Ordained by Ord. No. 296-1973, eff. July 27, 1973; a. Ord. No. 420-1973, eff. Oct. 12, 1973; a. Ord. No. 229-1979, eff. Aug. 4, 1979; a. Ord. No. 109-1992, eff. April 17, 1992; a. Ord. No. 24-1996, eff. Feb. 23, 1996; r. Emer. Ord. No. 0472-2007, § 1, eff. Dec. 19, 2007)

Sec. 10. Repealed.

(Ordained as Sec. 13 by Ord. No. 296-1973, eff. July 27, 1973; a. Ord. No. 420-1973, eff. Oct. 12, 1973, a. Ord. No. 496-1975, eff. Oct. 15, 1975; renumbered to Sec. 10 by Ord. No. 425-1983, eff. Oct. 8, 1983; r. Ord. No. 355-1996, eff. Nov. 6, 1996)

Sec. 11. Repealed.

(Ordained by Ord. No. 296-1973, eff. July 27, 1973; a. Ord. No. 420-1973, eff. Oct. 12, 1973; r. Ord. No. 428-83, eff. Oct. 8, 1983.)

Sec. 12. Repealed.

(Ordained by Ord. No. 296-1973, eff. July 27, 1973; a. Ord. No. 420-1973, eff. Oct. 12, 1973; a. Ord. No. 299-1979, eff. Aug. 4, 1979; r. Ord. No. 428-1983, eff. Oct. 8, 1983)

Sec. 13. Repealed.

(Ordained by Ord. No. 296-1973, eff. July 27, 1973; a. Ord. No. 420-1973, eff. Oct. 12. 1973; a. Ord. No. 496-1976, eff. Oct. 15, 1975; r. Ord. No. 425-1983, eff. Oct. 8, 1983)

Sec. 14. Repealed.

(Ordained by Ord. No. 312-1979, eff. July 5, 1979; r. Ord. No. 428-1983, eff. Oct. 8, 1983)

ARTICLE XXII. REGIONAL COMPUTER CENTER

Sec. 1. Repealed.

(Ordained by Ord. No. 406-1976, eff. Sept. 9, 1976; r. Ord. No. 212-1996, eff. July 3, 1996)

Sec. 2. Repealed.

(Ordained by Ord. No. 406-1976, eff. Sept. 9, 1976; a. Ord. No. 299-1979, eff. Aug. 4, 1979; r. Ord. No. 212-1996, eff. July 3, 1996)

ARTICLE XXIII. DEPARTMENT OF ECONOMIC DEVELOPMENT

Sec. 1. Repealed.

(Ordained by Ord. No. 470-1976, eff. Oct. 17, 1976; repealed and reordained by Ord. No. 183-1981, eff. June 12, 1981; r. Ord. No. 419-2001, eff. Feb. 1, 2002)

Sec. 2. Repealed.

(Ordained by Ord. No. 470-1976, eff. Oct. 17, 1976; repealed and reordained by Ord. No. 183-1981, eff. June 12, 1981; r. Ord. No. 419-2001, eff. Feb. 1, 2002)

ARTICLE XXIV. DEPARTMENT OF COMMUNITY AND ECONOMIC DEVELOPMENT*

Sec. 1. Department of Community and Economic Development.

There is hereby established a department of community and economic development to be administered by a director of community and economic development, appointed by and subject to the control and supervision of the city manager.
(Ordained by Ord. No. 183-1981, eff. June 12, 1981; a. Ord. No. 165-1995, eff. June 2, 1995; repealed and reordained by Ord. No. 419-2001, eff. Feb. 1, 2002; a. Ord. No. 34-2002, eff. Feb. 6, 2002; a. Ord. No. 84-2003, 4-2-2003; Emer. Ord. No. 0471-2007, § 1, eff. Dec. 19, 2007; Emer. Ord. No. 157-2013, § 2, eff. May 30, 2013; Emer. Ord. No. 044-2015, § 6, eff. July 1, 2015)

Sec. 2. Duties of Director of Community and Economic Development.

The director of community and economic development shall serve as an advocate for economic development and related programs and projects within the City of Cincinnati under the supervision of the city manager.

The director of community and economic development shall be responsible for: expediting and facilitating economic development projects on behalf of the city; shall manage all requests for city funding or passthrough funding targeted at economic development projects; shall be the primary point of contact with the city for developers, development authorities, and development corporations when promoting economic development projects in the city; shall coordinate with other entities on job attraction and expansion activities; shall coordinate the planning of economic development projects in the city; shall be responsible for the development and redevelopment of industrial corridors and commercial corridor revitalization within the city; shall be responsible for job retention activities; shall have primary responsibility for advising the city manager on economic development projects involving the use of eminent domain; shall administer and enforce commercial development in neighborhood business districts and related commercial loan programs; shall administer small business services; and shall perform such other duties as may be assigned by the city manager or by ordinance of council.

The director of community and economic development shall administer neighborhood development services for the citizens and the businesses of the City of Cincinnati and its neighborhoods.

The director of community and economic development shall administer and enforce all housing assistance and development programs and related housing and development loan programs, neighborhood assistance and liaison activities, and neighborhood support programs.

The director of community and economic development shall administer the funding of community development programs and perform such other duties as may be assigned by the city manager or by ordinance of council.
(Ordained by Ord. No. 183-1981, eff. June 12, 1981; a. Ord. No. 351-1985, eff. Aug. 2, 1985; a. Ord. No. 165-1995, eff. June 2, 1995; repealed and reordained by Ord. No.

*__Editor's note—__Emer. Ord. No. 044-2015, § 6, eff. July 1, 2015, changed the title of Art. XXIV from "Department of Trade and Development" to "Department of Community and Economic Development."

419-2001, eff. Feb. 1, 2002; a. Ord. No. 34-2002, eff. Feb. 6, 2002; a. Ord. No. 84-2003, 4-2-2003; Ord. No. 216, 2003, eff. June 25, 2003; a. Emer. Ord. No. 262-2007, § 1, eff. June 27, 2007; a. Emer. Ord. No. 0471-2007, § 1, eff. Dec. 19, 2007; Emer. Ord. No. 388-2011, § 3, eff. Dec. 14, 2011; Emer. Ord. No. 157-2013, § 2, eff. May 30, 2013; Emer. Ord. No. 044-2015, § 7, eff. July 1, 2015; a. Ord. No. 0177-2021, §§ 1, 2, eff. May 19, 2021)

Sec. 3. Repealed.

(Emer. Ord. No. 0471-2007, § 1, eff. Dec. 19, 2007; Emer. Ord. No. 157-2013, § 2, eff. May 30, 2013; r. Emer. Ord. No. 044-2015, § 8, eff. July 1, 2015)

ARTICLE XXV. DEPARTMENT OF CITY PLANNING AND ENGAGEMENT*

Sec. 1. Department of City Planning and Engagement.

There is hereby established a department of city planning and engagement to be administered by a director of the department of city planning and engagement, who shall be appointed by and subject to the supervision and control of the city manager. The city planning commission shall advise the city manager on the appointment and removal of the director of the department of city planning. The department of city planning and engagement shall consist of the director of the department of city planning and engagement and other supporting officers and employees appointed or assigned to serve under the direction and supervision of the director.

(Emer. Ord. No. 0470-2007, § 1, eff. Dec. 19, 2007; a. Ord. No. 020-2010, § 1, eff. Feb. 27, 2010; Emer. Ord. No. 044-2015, § 10, eff. July 1, 2015; Emer. Ord. No. 196-2021, §§ 1, 2, eff. May 26, 2021)

Sec. 2. Duties of the Director of the Department of City Planning and Engagement.

The director of the department of city planning and engagement shall direct the urban planning function of the city of Cincinnati; advise the council and the city manager on matters affecting the physical improvement and development of the city; provide professional services and guidance to the city planning commission as necessary to assist it in the performance of all duties and responsibilities conferred upon it by the charter; develop the city's comprehensive plan, neighborhood plans, and other plans, and oversee their implementation; develop and recommend amendments to the city's official zoning map, zoning regulations, and other land use regulations; oversee the administration and enforcement of all zoning regulations under the jurisdiction of the zoning administrator; oversee the protection and preservation of the city's historic assets and historic districts, and the administration and enforcement of the city's historic preservation regulations; serve as the city's liaison to community councils, citizens, and businesses on all city planning and land use related matters; and perform other duties assigned by the city manager or by ordinance of council. The director shall submit to the city planning commission for review an annual department work program, which shall guide the work of the department and the commission for the year ahead within the budget recommended by the commission and approved by the council.

(Emer. Ord. No. 0470-2007, § 1, eff. Dec. 19, 2007; a. Ord. No. 020-2010, § 1, eff. Feb. 27,

*__Editor's note—__Emergency Ord. No. 0470-2007, eff. Dec. 19, 2007, reordained art. XXV in its entirety to read as herein set out. Ord. No. 020-2010, § 1, effective Feb. 27, 2010, changed the title of the department of city planning to the department of city planning and buildings. Subsequent Emergency Ord. No. 044-2015, § 10, eff. July 1, 2015, changed the title of Art. XXV from "Department of City Planning and Buildings" to "Department of City Planning."

2010; Emer. Ord. No. 044-2015, § 11, eff. July 1, 2015; Emer. Ord. No. 196-2021, §§ 1, 2, eff. May 26, 2021; a. Emer. Ord. No. 336-2021, §§ 2, 4, eff. Aug. 4, 2021)

Sec. 3. Zoning Administrator.

There shall be an office of zoning administration within the department of city planning and engagement to be administered by a zoning administrator, subject to the supervision and control of the director of the department of city planning and engagement. The office may also contain other subordinate officers and employees appointed to serve under the direction and supervision of the zoning administrator. The zoning administrator and those designated officers and employees, when enforcing the provisions of ordinances or laws within the scope of their duties, shall be vested with the powers of police officers of the city.

The zoning administrator shall be an experienced city planner, architect, design professional, attorney licensed in the state of Ohio, or a person with intimate knowledge of, and experience in, the administration and enforcement of zoning codes. It shall be the duty of the zoning administrator to review and approve applications for building permits and other appropriate applications to determine their compliance with the city's zoning regulations; administer and enforce the city's zoning regulations; oversee and manage the office of the urban conservator and other officers and employees of the office of the zoning administrator charged with administration and enforcement of zoning regulations; and perform all other duties assigned by the director, the city manager, or by ordinance of the council.
(Emer. Ord. No. 0470-2007, § 1, eff. Dec. 19, 2007; a. Ord. No. 020-2010, § 1, eff. Feb. 27, 2010; r. Emer. Ord. No. 044-2015, § 12, eff. July 1, 2015; reordained by Emer. Ord. No. 336-2021, § 3, eff. Aug. 4, 2021)

Sec. 4. Urban Conservator.

There shall be an office of historic preservation within the department of city planning and engagement to be administered by an urban conservator, subject to the supervision and control of the director of city planning and engagement and the zoning administrator. The office of historic preservation shall include an urban conservator and other subordinate employees appointed by the director to serve under the direction and control of the urban conservator.

The urban conservator shall meet the secretary of the interior's professional qualification standards for preservation professionals under 36 C.F.R. Part 61 or any successor provision. It shall be the duty of the urban conservator to administer the city's historic preservation regulations; maintain and administer the city's historic inventory and conservation guidelines; review and consider the appropriateness of alterations and demolitions of the city's historic assets and properties located within historic districts; conduct environmental reviews to determine impacts on historic assets and historic districts as required by state and federal funding programs; serve as the city's internal and external liaison on all historic preservation matters; advise the historic conservation board on matters that come before it; serve as an advocate for the protection and preservation of the city's historic assets and historic districts; and perform other duties assigned by the city manager, director, zoning administrator, or by ordinance of the council.
(Emer. Ord. No. 0470-2007, § 1, eff. Dec. 19, 2007; a. Ord. No. 020-2010, § 1, eff. Feb. 27, 2010; r. Emer. Ord. No. 044-2015, § 13, eff. July 1, 2015; reordained by Emer. Ord. No. 336-2021, § 3, eff. Aug. 4, 2021)

Sec. 5. Repealed.
(Emer. Ord. No. 0470-2007, § 1, eff. Dec. 19, 2007; a. Ord. No. 020-2010, § 1, eff. Feb. 27, 2010; r. Emer. Ord. No. 044-2015, § 13, eff. July 1, 2015)

Sec. 6. Repealed.
(Emer. Ord. No. 0470-2007, § 1, eff. Dec. 19, 2007; r. Emer. Ord. No. 044-2015, § 13, eff. July 1, 2015)

Sec. 7. Repealed.
(Emer. Ord. No. 0470-2007, § 1, eff. Dec. 19, 2007; r. Emer. Ord. No. 044-2015, § 13, eff. July 1, 2015)

Sec. 8. Repealed.
(Emer. Ord. No. 0470-2007, § 1, eff. Dec. 19, 2007; a. Ord. No. 054-2011, § 1, eff. April 2, 2011; r. Emer. Ord. No. 044-2015, § 14, eff. July 1, 2015)

Sec. 9. Repealed.
(Emer. Ord. No. 0470-2007, § 1, eff. Dec. 19, 2007; r. Emer. Ord. No. 044-2015, § 13, eff. July 1, 2015)

Sec. 10. Repealed.
(Emer. Ord. No. 0470-2007, § 1, eff. Dec. 19, 2007; a. Ord. No. 020-2010, § 1, eff. Feb. 27, 2010; r. Ord. No. 054-2012, § 1, eff. March 29, 2012)

Sec. 11. Repealed.
(Emer. Ord. No. 0470-2007, § 1, eff. Dec. 19, 2007; a. Ord. No. 432-2008, § 1, eff. Jan. 17, 2009; a. Ord. No. 053-2011, § 1, eff. April 2, 2011; a. Ord. No. 022-2013, § 1, eff. March 1, 2013; r. Emer. Ord. No. 044-2015, § 15, eff. July 1, 2015)

ARTICLE XXVI. FINANCIAL DISCLOSURE REQUIREMENTS

Sec. 1. When Financial Disclosure Statement Required.

Public officials or employees of the City of Cincinnati as defined in Sec. 2 of this Article, whose positions involve a substantial and material exercise of administrative discretion in the formulation of public policy, expenditure of public funds, enforcement of laws and rules of the state or city, or the execution of other public trusts shall file an annual financial disclosure statement with the appropriate authority.
(Ordained by Ord. No. 370-1989, eff. Sept. 20, 1989)

Sec. 2. Definitions.

The term "public officials or employees" for purposes of this Article means any employee of any city appointing authority, including those of independent boards and commissions, at the division head or equivalent level and above, the mayor, and members of council.

The term "public official or employee" shall not include those persons who are members of advisory boards nor those persons who are appointed as members of independent boards and commissions.
(Ordained by Ord. No. 370-1989, eff. Sept. 20, 1989; Amended by Emer. Ord. No. 0057-2020, §§ 1, 2, eff. Feb. 18, 2021)

Sec. 3. Financial Disclosure Statement to Contain Certain Information.

The financial disclosure statement required by Sec. 1 of this Article shall contain the following information for the preceding calendar year:

(a) The name of the public official or employee and the names of each member of his or her immediate family;

(b) The names under which the public official, employee or immediate family members do business;

(c) The names of any persons or organizations other than the city by whom the public official or city employee is also employed;

(d) A list of each source, other than the city from which the public official, employee, spouse or any dependent child received gross income of more than $5,000.00. Sources of income reportable for Ohio or federal income tax purposes shall be included whether or not such income is derived from outside employment, business operations or investment. The amount of such income beyond the $5,000.00 threshold shall not be required to be disclosed. For each source of income listed a brief description of the source shall be required. If the source of income is a business or profession it must be identified with a brief description but information identifying individual accounts or customers is not required. Attorneys, doctors or psychologists shall list each outside practice without disclosing the names of their clients or patients;

(e) A list of each corporation, trust, business trust, partnership or association transacting business in Cincinnati, Ohio in which the public official, employee, spouse or dependent child had an ownership interest of 5 percent or more or in which any of said persons holds an office or has a fiduciary relationship. This subsection does not require disclosure of information concerning deposits or withdrawable share accounts in banks, savings and loans, credit unions or other similar financial institutions; and

(f) A list of any fee simple, leasehold or any other beneficial interest in real estate other than a personal, primary residence, located in the city that is held by the public official, employee, spouse or dependent child. The list shall identify the type of each of said interests held and the address or other description or the real property.

(g) A list of all financial transactions between members of council or between members of council and the mayor for any single transaction totaling $75.00 or more or an aggregate of multiple transactions totaling $75.00 or more for gifts, loans, or services rendered. The list shall identify the member of council for each transaction with its purpose and amount.

(Ordained by Ord. No. 370-1989, eff. Sept. 20, 1989; Amended by Emer. Ord. No. 0057-2020, §§ 1, 2, eff. Feb. 18, 2021)

Sec. 4. Statement to be Filed Annually.

The financial disclosure statement required by Sec. 1 of this Article shall be filed annually by April 15 for the preceding calendar year. Employees below the department head level shall file with the employee's department head. Employees at the department head level and above, the city manager, the mayor, and members of council shall file with the clerk of council. The mayor and members of council shall file a duplicate of the financial disclosure statement required by and on the date specified by state law. In addition, the mayor and members of council shall file a separate form that complies with the requirements of Section 3(g) of this Article to the extent that information is not on the form required by state law, which additional form shall be available from the clerk of council. Such filing by the mayor and members of council shall constitute compliance with the requirements of this Article. Financial disclosure statements shall remain on file for a period of two years and may thereafter be destroyed. Filing date

extensions of up to 60 days for good cause shown may be obtained upon written request to the clerk of council or department head with whom the statement is required to be filed.
(Ordained by Ord. No. 370-1989, eff. Sept. 20, 1989; Amended by Emer. Ord. No. 0057-2020, §§ 1, 2, eff. Feb. 18, 2021)

Sec. 5. Administrative Regulations; Notice; Forms.

The city manager is authorized and directed to adopt administrative regulations necessary for the implementation of this Article. Such regulations shall establish a complete list of each employee or public official position for which a disclosure statement is required and shall prescribe the disclosure statement form to be used by the public officials and employees subject to this Article. The city manager shall determine which public officials and employees are subject to the disclosure requirements of this Article and such determination shall be final. Ninety days prior to the filing deadline, the city manager or the city official designated by the city manager shall annually notify in writing each subject public official or employee of the disclosure requirements of this Article and shall supply each such person with the necessary form provided that members of council shall use the financial disclosure statement form required by state law.
(Ordained by Ord. No. 370-1989, eff. Sept. 20, 1989)

Sec. 6. Failure to Comply.

The failure to comply with the filing requirements of this Article by a city employee shall be cause for disciplinary action by the appointing authority up to and including dismissal. The deliberate falsification of or the deliberate omission of required information from the financial disclosure statement shall be grounds for criminal prosecution under the Ohio Revised Code.
(Ordained by Ord. No. 370-1989, eff. Sept. 20, 1989)

ARTICLE XXVII. BOARD OF PARK COMMISSIONERS

Sec. 1. Urban Forestry.

In addition to the powers and duties granted to the board of park commissioners by the charter of the city of Cincinnati and the laws of the state of Ohio, there is hereby conferred upon the board of park commissioners the power and duty of urban forestry and the board of park commissioners shall plan, regulate, enforce, control the planting, protection, maintenance, removal, and replanting of public trees of the city and utilize wood and forest products produced in the course of operations.
(Ordained by Ord. No. 413-1990, eff. Oct. 3, 1990)

Sec. 2. Severance.

No employment agreement shall provide for monetary severance in the case of termination of any employee appointed by the Cincinnati Board of Park Commissioners except as previously approved by Council.
(Ordained by Ord. No. 0052-2019, § 5, eff. March 15, 2019)

ARTICLE XXVIII. CITIZEN COMPLAINT AUTHORITY

Sec. 1. Purpose.

The new Citizen Complaint Authority (CCA) will replace the Citizen Police Review Panel (CPRP) and the police investigations functions of OMI. The CCA's mission will be to investigate serious interventions by police officers, including but not limited to shots

fired, deaths in custody and major uses of force, and to review and resolve all citizen complaints in a fair and efficient manner. It is essential that the CCA uniformly be perceived as fair and impartial, and not a vehicle for any individuals or groups to promote their own agendas. It is also essential that the CCA be encouraged to act independently consistent with its duties.
(Ordained by Ord. No. 149-2002, eff. May 15, 2002)

Sec. 2. Staffing and Powers.

CCA will have three components: (1) a board of seven citizens appointed by the mayor and approved by city council, (2) a full-time executive director with appropriate support staff, and (3) a team of professional investigators.
(Ordained by Ord. No. 149-2002, eff. May 15, 2002)

Sec. 2-A. The Board of Citizens.

The board will include a diverse array of seven individuals, from a cross-section of the Cincinnati community, who have the requisite education and experience to impartially review evidence and render judgments on alleged officer misconduct. The mayor will accept nominations from the City's fifty-two community councils, business, civic, social service and other agencies and organizations. The mayor also will accept applications from individual City residents. The members will serve for a maximum of two terms of two years each, except that three of the initial appointees will be appointed for one year. Those three shall be limited to a single second term of two years in order to ensure that the board has staggered terms. In the event of the resignation, removal, death, or incapacitation of a member of the panel, any replacement member shall serve the remainder of that term.

1. Applicants for a position on the board shall execute a signed release authorizing a thorough background check, including a criminal check. No person may serve on the board who has been convicted of a felony, assault on a police officer, or any crime of dishonesty. The results of the background check for any person appointed to the board shall be a matter of public record and shall be retained for five years.

2. The board shall select a chairperson from among its members, who shall serve for a term of one year.

3. The board and the executive director, in consultation with the city manager, shall develop Standards of Professional Conduct and a comprehensive training program for board appointees. Said standards shall be approved by the city manager. Before assuming office and prior to beginning their duties, each member of the board shall be required to complete a basic course of training, including courses at the Cincinnati Police Academy, instruction in constitutional and criminal protections, and ride-alongs with members of the CPD assigned to patrolling the City, in order to fully and adequately inform each board member of the training and duties of Cincinnati police officers. Each appointee must promise to abide by the Standards and satisfactorily complete the training as a condition of appointment and prior to service on any cases. The mayor, after consultation with the other board members, may remove an individual from the board for cause, including failure to strictly abide by (including action inconsistent with) the Standards or failure to properly discharge the duties of the office. The

mayor shall seek to act in a manner consistent with the recommendations of the other board members.

4. The CCA will not commence operations until each member of the board has satisfactorily completed the training program and promised to abide by the Standards. Until that time, OMI and the Citizens Police Review Panel shall continue in their current roles. Thereafter, new appointees to the board shall be afforded up to a maximum of ninety (90) days to complete training and promise to abide by the Standards. The CCA shall assume jurisdiction over all of the police cases pending before OMI and the CPRP at the time of the transfer. There shall be no break in civilian review as a result of this transition.
5. The board and executive director shall develop the specific procedures necessary for the CCA to carry out its mission, including the procedure to convene hearings on cases, procedures for investigations, procedures for coordination of work with CPD, and other operating procedures. Consistent with the City Charter, any procedures affecting the administrative service shall be approved by the city manager.
6. Board members shall be compensated at the rate of $100 per meeting. The chairperson shall be compensated at the rate of $125 per meeting.
7. The city solicitor shall provide legal counsel on a routine basis to the CCA. The city solicitor shall designate an assistant city solicitor for the CCA who shall maintain independence from and not be involved with any other legal work involving the CPD or individual police officers. If the board determines on an individual case that it requires outside counsel, it shall notify the city solicitor. The solicitor will respond to and cooperate fully with the board to employ counsel whenever the solicitor determines in the exercise of her professional discretion that there is the need for such outside counsel. If the city solicitor determines that there is no need for outside counsel she shall explain her determination to the city manager, who shall relay it to the board.

(Ordained by Ord. No. 149-2002, eff. May 15, 2002)

Sec. 2-B. Executive Director.

The city manager shall appoint the CCA's executive director, who shall be an unclassified employee of the City. The city manager shall consult with the board and seek the board's recommendations, provided, however, that the final selection of the executive director shall be made by the city manager. The executive director shall serve as an unclassified employee and may be discharged by the city manager after consultation with the board. This provision shall not relieve the city manager of the duty to respect the need of the executive director to act independently, consistent with the duties of the executive director. The executive director will be accountable for the efficient operations of the CCA, and for the achievement of the desired outcomes set forth above.

The executive director shall have professional experience in the investigation of allegations of police misconduct, and he/she should be perceived as fair and impartial. To this end, the city manager and other city officials, including elected officials, shall be prohibited from interfering with individual investigations.

The executive director shall be responsible for day-to-day operations of the CCA, including (i) recommendations for hiring of profes-

sional and support staff, (ii) preparation, submission and adherence to a budget, (iii) conduct and timely completion of investigations, (iv) reporting to the City on the CCA's work, and (v) maintaining an effective working relationship with the CPD and other branches of government. Within the resources allocated by city council, the executive director shall ensure that the CCA's human and other resources are sufficient to ensure timely completion of investigations and maintenance of complete and accurate records.

As a condition of employment, all police officers and city employees are required to provide truthful and accurate information to the CCA. In addition to the foregoing, when a key witness other than a city employee refuses to cooperate in an investigation, the executive director may recommend to the board that a subpoena be issued to compel such testimony, and the board shall have the authority to request such a subpoena from city council. Subpoenas for the attendance of persons shall be secured only through city council. The board shall have the authority to issue subpoenas for documents, photographs, audio tapes, electronic files and tangible things, subject to approval by the board's legal counsel.
(Ordained by Ord. No. 149-2002, eff. May 15, 2002)

Sec. 2-C. Investigators.

The City's Office of Municipal Investigations currently has four full-time investigators assigned to police cases. The CCA shall have a minimum of five professional investigators and one support person to achieve timely completion of all investigations. Each investigator shall have prior professional experience in investigations, and may be a former police or other law enforcement officer from outside the City.
(Ordained by Ord. No. 149-2002, eff. May 15, 2002)

Sec. 3. CCA Investigation Process.

Each citizen complaint, excluding matters involving criminal investigations, will be directed to the CCA regardless of where it initially is filed, and the executive director, in consultation with the board, shall establish criteria to determine whether specific complaints are suitable for CCA investigation or referral to the CPD's Citizen Complaint Resolution Process (CCRP). At a minimum, the CCA shall open its own investigation upon (i) receipt of a complaint of serious misconduct, or (ii) knowledge by the executive director of allegations of serious police intervention[1]. The CCA will immediately provide the CPD with detailed information regarding the complaint, including the time and location of the underlying events and the name(s) of the officer(s) involved.
(Ordained by Ord. No. 149-2002, eff. May 15, 2002)

Sec. 3-A. Investigation Assignment.

Where a complaint is to be investigated by the CCA, it will be assigned to an investigator within 48 business hours of receipt. The CPD shall notify the CCA executive director immediately upon the occurrence of a serious police intervention and the executive director shall immediately dispatch an investigator(s) to the scene. The CPD shall not interfere with the ability of the CCA investigator to monitor the work of the CPD at the scene and to monitor all interviews conducted by CPD. CCA investigators shall not physically enter the crime scene or delay or impede a criminal investigation.

The chief of police will retain the discretion to initiate a parallel CPD investigation of any complaint under investigation by the CCA. In addition, the CPD will investigate all complaints initiated within the department (i.e., where the complainant is a police employee).
(Ordained by Ord. No. 149-2002, eff. May 15, 2002)

Sec. 3-B. CPD and City Cooperation.

Police officers and other city employees will be required to submit to administrative questions consistent with existing constitutional and statutory law. See, e.g., CMC §13(f); §20(f)(5). The executive director of CCA shall have reasonable access to city records, documents and employees, including employee personnel records and departmental investigation files and reports consistent with Ohio public record laws. CCA investigations shall be conducted consistent with professional standards.

The chief of police and the executive director will develop written procedures that will assure the timely exchange of information and the efficient coordination of CCA and CPD investigations.
(Ordained by Ord. No. 149-2002, eff. May 15, 2002)

Sec. 3-C. Time Allowed for Investigation Completion/Submission of Reports.

The CCA will complete its investigations within 90 days of its receipt of the complaint from a complaining citizen, provided, however, that the executive director may extend an investigation upon consultation with the board. The time required to complete investigations will be a performance accountability measure.

Upon completion of a CCA investigation, the executive director will forward the investigative report to the board. That report shall include any positive information about the officer that may be relevant. Similarly, where a complaint is referred to the CCRP, the CPD will report the results of that process to the CCA, and the executive director will submit those reports to the board. Each CCA report shall include proposed findings and recommendations. The executive director shall recommend each report either for a Board hearing or summary disposition. The complainant and respondent officer(s) also will be provided the investigative report, and each may challenge the report and/or appeal the executive director's recommendation to the board.
(Ordained by Ord. No. 149-2002, eff. May 15, 2002)

Sec. 3-D. Board Hearing.

If the board conducts a review hearing, its purpose shall be to confirm the completeness of the CCA investigation and approve or disapprove the executive director's report (findings and recommendations). The board's review hearing will not be an adversarial proceeding and should not be used to reinvestigate the matter. The board may receive witness testimony including that of the complainant and/or police officer(s). Interviews of city employees or other witnesses shall be conducted only in closed inquiry sessions unless the witness requests otherwise. Such sessions shall not be open to the public and shall include only CCA Board members, and any necessary staff or support personnel. A written record shall be kept of any statements, testimony, or other evidence obtained in such sessions. Any city employee directed to answer questions in an inquiry session shall be advised that the statements and answers given can be used only for administrative purposes relating to city employment and cannot be used in any criminal proceedings involving that employee. Such advice shall be consistent with the constitutional principles identified in Garrity v. New Jersey. The employee shall be further advised that a failure to answer truthfully and completely can subject the employee to disciplinary action including termination. Any employee directed to appear before the CCA for such an inquiry session may bring a legal representative or other support person of choice. Any police officer or complainant, who is directly involved in

the circumstances under review, may also attend such sessions and may bring a legal representative or support person, who shall be strictly limited to consultation and such persons may not otherwise participate in the inquiry proceedings.

Following a hearing, the board may either approve or disapprove the executive director's findings and recommendations. Where the findings and recommendations are approved, they shall be submitted to the police chief and city manager. If they are disapproved, the board shall state its reasons and may direct that further investigation be pursued. The board may issue its own findings and recommendations, and submit them along with the executive director's original report to the police chief and city manager. In all cases, the city manager and police chief will refrain from making a final decision on discipline until after receipt of the CCA report. The city manager shall agree, disagree or agree in part with any findings and recommendations of either the board or the executive director, and she shall inform the executive director and the board in writing of any reasons for agreeing in part or disagreeing with said findings and recommendations. It shall be the executive director's responsibility to inform the officer(s)involved in the complaint and the complainant when a final decision has been reached on a complaint.
(Ordained by Ord. No. 149-2002, eff. May 15, 2002)

Sec. 3-E. Public Availability of Reports.

Reports prepared by the CCA, the CPD or the city manager pursuant to this process shall be publicly available to the extent provided by Ohio law.
(Ordained by Ord. No. 149-2002, eff. May 15, 2002)

Sec. 3-F. Records.

The CCA and CPD will create a shared electronic database that will track all citizen complaints, including the manner in which they were addressed (e.g., CCA investigation or CCRP) and their dispositions. Subject to restrictions which may exist in any applicable collective bargaining agreements, this database also will capture data sufficient for the CCA and the CPD to identify officers involved in repeat allegations, citizens making repeat allegations and circumstances giving rise to citizen complaints. This data will be integrated into, or regularly shared with, an electronic information management system to be developed by the CPD. Procedures will be adopted to secure information which is not subject to release under Ohio law.

In addition to the foregoing, the CCA shall maintain its files for each investigation for a period of five years or such shorter period as may be provided in any applicable collective bargaining agreement. Where feasible, those files shall include tape-recorded interviews of officers, complainants and witnesses. These data will be made available for the accountability system.
(Ordained by Ord. No. 149-2002, eff. May 15, 2002)

Sec. 4. Prevention.

There are two methods used for reducing citizen complaints: (i) thorough investigation of officers charged with misconduct, and (ii) examination of complaint patterns to identify at-risk officers, citizens and circumstances. The former represents the traditional method of complaint prevention. The latter method involves an examination both of circumstances that lead to complaints and opportunities to alter those circumstances. It is a problem-solving approach that may prove effective in Cincinnati.

The CCA will examine complaint patterns that might provide opportunities for the CPD and community to reduce complaints. At a minimum, the CCA will look for three types of patterns: (i) repeat officers, (ii) repeat citizen complainants, and (iii) repeat complaint circumstances. Following the identification of such patterns, the CCA and the CPD jointly will undertake a problem-solving project to determine the reason(s) for the pattern and whether there are opportunities to eliminate or reduce root causes. Where feasible, this project should involve both affected officers and the community.
(Ordained by Ord. No. 149-2002, eff. May 15, 2002)

Sec. 5. Information Dissemination.

The CCA will develop a clear and direct information brochure to inform citizens how they can access the CCA and how the CCA operates. The City will make this brochure available to all citizens, including at public libraries and other public facilities.

The executive director will be responsible for working with the CPD and community to develop and implement an information plan that ensures officers and citizens fully understand the investigation, mediation, restoration, and prevention processes outlined above, and that the CCA's achievements are clearly articulated to the public and the CPD.

The CCA shall issue annual reports summarizing its activities for the previous year including a review of significant cases and recommendations. Such reports shall be issued to city council and the city manager, and made available to the public.
(Ordained by Ord. No. 149-2002, eff. May 15, 2002)

Sec. 6. Resources and Redundancy.

The city council will allocate resources sufficient for the CCA and CPD to accomplish the foregoing.

The CPRP and police investigation functions of OMI will be eliminated, and associated resources will be allocated to the CCA.

ACCOUNTABILITY MEASUREMENTS

Was the CCA established on a timely basis?

Was the CCA fully staffed and resourced?

Was an effective Memorandum of Understanding developed establishing a co-operative working relationship between the CPD and the CCA?

How many complaints were handled and what were the categories of those complaints?

What was the time to disposition of the complaints?

What were the outcomes of the complaints?

Was a mediation process established?

Was a restorative justice process established and evaluated?

Were basic goals/objectives/outcomes achieved?
(Ordained by Ord. No. 149-2002, eff. May 15, 2002)

ARTICLE XXIX. DEPARTMENT OF ECONOMIC INCLUSION

Sec. 1. Director of Economic Inclusion.

There is hereby established a department of economic inclusion to be administered by a director of economic inclusion, appointed by and subject to the control and supervision of the city manager.
(Ordained by Emer. Ord. No. 026-2015, § 4, eff. Feb. 9, 2015)

Sec. 2. Duties of the Director of Economic Inclusion.

The department of economic inclusion, under the leadership of the director of economic inclusion, shall take appropriate actions to identify local business suppliers who can provide needed services at a cost savings to the city and assist such local business owners in obtaining access to full participation in the city's contracting processes.

The director of economic inclusion shall have primary responsibility for the monitoring and oversight of all of the City of Cincinnati's contracting requirements and processes contained within the Cincinnati Municipal Code or city ordinances or otherwise imposed upon the City of Cincinnati under state or federal law, or upon the direction of the city manager pursuant to the policies established by city council. The director of economic inclusion shall carry out all duties previously assigned to the position of contract compliance officer, including monitoring of the city's prevailing wage responsibilities under federal and state law. All responsibilities of the office of contract compliance are hereby transferred in their entirety to the newly created department of economic inclusion.
(Ordained by Emer. Ord. No. 026-2015, § 4, eff. Feb. 9, 2015)

ARTICLE XXX. ADMINISTRATIVE BOARDS

Sec. 1. Staffing of Administrative Boards.

The administrative boards enumerated in this article are established for the purpose of hearing appeals from certain decisions and orders of the city's administrative officials. The city manager shall have the authority to take all appropriate actions to locate the boards under the administrative oversight of the city solicitor, who shall provide all necessary staffing to the boards for performance of administrative and procedural functions, including the establishment of rules and procedures; receipt and processing of applications and related materials; handling of all board correspondence; issuance of notices; compilation of data and information necessary for consideration of cases; maintaining the minutes of meetings; serving as administrative and legal staff to the boards at their meetings; preparation of decisions, orders, and resolutions adopted by the boards; and other appropriate actions within the jurisdiction of the boards.
(Ordained by Emer. Ord. No. 044-2015, § 16, eff. July 1, 2015)

Sec. 2. Membership of Administrative Boards.

The following provisions govern the terms of membership of the administrative boards established under this article, unless otherwise provided by state law or this code. All members shall be appointed by the city manager and confirmed by the council. Members shall be appointed for a specific term of years, and no member may serve more than two consecutive terms. Members shall be residents of the city and shall take an oath of office administered by the city solicitor or his or her designee at the beginning of each term. Members shall serve without compensation.

Each member shall hold office from the date of appointment until the end of the term for which the member is appointed, provided that members shall continue in office subsequent to the expiration date of their term until their successor takes office. Members may be appointed to fill a vacancy occurring before the expiration of a member's

term, and any member so appointed shall hold office for the remainder of the unexpired term.

Members shall be removed by the city manager for misfeasance or malfeasance, including either of the following reasons: (i) failure to attend at least 75 percent of the regularly scheduled meetings in a calendar year; or (ii) upon a determination by the city manager, in consultation with the city solicitor, that, pursuant to the ethics requirements of the Ohio revised code, a member failed to disclose the existence of a conflict of interest and/or participated in consideration of a matter before the board which constituted a conflict of interest for that member.
(Ordained by Emer. Ord. No. 044-2015, § 16, eff. July 1, 2015)

Sec. 3. Rules and Procedures of the Administrative Boards.

Each board established under this article shall have the authority to adopt rules and procedures governing its conduct and meetings, provided that the rules and procedures so adopted may not conflict with state law or this code. The rules and procedures shall be reviewed by the board in conjunction with the city solicitor's office from time to time. Each board shall select a chair and a vice chair in accordance with its rules and procedures.
(Ordained by Emer. Ord. No. 044-2015, § 16, eff. July 1, 2015)

Sec. 4. Historic Conservation Board.

There is hereby established a historic conservation board. The board shall have the duties and powers imposed by ordinance and this code. The board shall advise the city planning commission and the council on the designation of the city's historic assets and historic districts, and the acquisition or disposition by the city of historic easements or other interests in historically significant buildings; shall recommend guidelines concerning the conservation of the city's historic assets and historic districts, which guidelines shall suggest what alterations and demolitions, including new construction, may be appropriate for historic assets and historic districts; shall consider applications for certificates of appropriateness when required by ordinance; shall suggest ways by which historic assets and historic districts can be redeveloped in a manner that is compatible with new development; shall suggest desirable public and private improvements to historic assets and historic districts; and shall establish and direct the administration of a program for the acquisition of such easements and interests and for the continued compliance with the terms of the easement agreements.

The historic conservation board shall consist of seven members as follows:

(i) One professional historic preservationist;

(ii) One professional historian;

(iii) Two architects registered in the State of Ohio, or one architect registered in the State of Ohio and one urban design professional;

(iv) One attorney licensed in the State of Ohio;

(v) One person engaged in the real estate, development or construction industry; and

(vi) One economist, accounting or financial professional.

Members shall serve for three-year terms.
(Ordained by Emer. Ord. No. 044-2015, § 16, eff. July 1, 2015)

Sec. 5. Board of Building Appeals.

There is hereby established a board of building appeals. The board shall have the

duties and powers imposed by ordinance and this code. The board shall hear appeals from decisions and adjudications by the chief building official arising under the Cincinnati building code, under revised code chapter 3781, revised code chapter 3791, and the rules made under them, including the Ohio building code and the residential code of Ohio, and under all other related building and housing codes, except in cases for which special boards of appeals have been provided to hear appeals of those decisions and adjudications.

The board of building appeals shall consist of five members as follows:

(a) One attorney, admitted to the Ohio bar;

(b) One architect, registered in Ohio;

(c) One structural engineer, registered in Ohio;

(d) One mechanical engineer, registered in Ohio; and

(e) One person representing organized labor, knowledgeable in the construction and equipment of buildings and structures.

Members shall be appointed for five-year terms. The attorney, architect, structural engineer, and mechanical engineer members shall have recognized ability, broad training, and experience in problems and practice incidental to the construction and equipment of buildings and structures. Members shall continue in office subsequent to the expiration date of their term until their successor takes office or until sixty days have elapsed, whichever occurs first.

The city manager may appoint up to five alternates to the regular members of the board of building appeals for terms of five years each. An alternate member shall take the place of an absent or disqualified regular member at any meeting of the board of building appeals. An alternate member shall meet the same appointment criteria as a regular member, and shall only be designated to sit in the place of the similarly appointed regular member, i.e. the alternate architect filling in for the regular member architect. When attending a meeting on behalf of an absent or disqualified member, the alternate member may vote on any matter on which the absent or disqualified member is authorized to vote, shall be counted for purposes of quorum, and shall have all of the rights and obligations of a regular member.
(Ordained by Emer. Ord. No. 044-2015, § 16, eff. July 1, 2015)

Sec. 6. Zoning Board of Appeals.

There is hereby established a zoning board of appeals. The board shall have the duties and powers imposed by ordinance and this code. The board shall hear appeals from decisions and adjudications under the city's zoning regulations made by the zoning administrator, the property maintenance deputy, and other persons or administrative bodies authorized to administer and enforce the city's zoning regulations.

The zoning board of appeals shall consist of seven members as follows:

(a) One citizen member of the city planning commission on a revolving basis to be determined by the chair of the city planning commission;

(b) One person engaged in the real estate, development, or construction industry;

(c) One urban design professional or city planner;

(d) One architect registered in the State of Ohio;

(e) One attorney licensed in the State of Ohio; and

(f) Two persons active in a community organization which is recognized by the council as a representative of a Cincinnati neighborhood.

Members shall be appointed for three-year terms, provided that the city planning commission member shall be appointed by the chair of the city planning commission on a revolving basis.

The city manager may appoint up to six alternates to the non-city planning commission members of the board for terms of three years each. An alternate member shall take the place of an absent or disqualified regular member at any meeting of the board according to procedures prescribed by the board. An alternate member shall meet the same appointment criteria as a regular member and shall only be designated to act in place of a similarly appointed regular member, i.e., the alternate architect filling in for the regular member architect. When attending a meeting on behalf of an absent or disqualified member, the alternate member may vote on any matter on which the absent or disqualified member is authorized to vote, shall be counted for purposes of quorum and shall have all of the rights and duties of a regular member.
(Ordained by Emer. Ord. No. 044-2015, § 16, eff. July 1, 2015)

Sec. 7. Board of Housing Appeals.

There is hereby established a board of housing appeals. The board shall have the duties and powers imposed by ordinance and this code. The board shall hear appeals taken from notices of violation, decisions, and orders by the property maintenance deputy pursuant to his or her enforcement of the property maintenance related provisions of the building and housing codes, including decisions and orders related to vacant building maintenance licenses, provided that appeals from orders and adjudications arising under his or her enforcement of revised code chapter 3781, revised code chapter 3791, and the rules made under them, including the Ohio building code and the residential code of Ohio, shall be taken to the board of building appeals. The members of the board shall also serve as members of the community reinvestment area housing council pursuant to revised code 3735.69 and shall have the powers and duties imposed on the community reinvestment area housing council by the revised code.

The board of housing appeals shall consist of seven members as follows:

(a) two persons appointed by the mayor;

(b) two persons appointed by the council;

(c) one person appointed by the city planning commission; and.

(d) two persons appointed by the foregoing members, which persons shall be residents of the city of Cincinnati.

Each member must hold at least one of the following qualifications:

(a) be an attorney, licensed in the state of Ohio and in good standing to practice law;

(b) be a community council president or community council board member; or

(c) be knowledgeable in matters relating to real estate, the rehabilitation of buildings, redevelopment financing, or property management.

Members shall be appointed for three-year terms.

The board's rules and procedures shall provide that the fire department, police department, and property management code enforcement division of the department of buildings and inspections be notified of all

hearings and, as necessary, be requested to give testimony to assist the board in evaluating matters of public safety.
(Ordained by Emer. Ord. No. 044-2015, § 16, eff. July 1, 2015)

TITLE I

COUNCIL AND CORPORATION MISCELLANY

Chapter 100

MAYOR

Sec. 100-1. Qualifications of the Mayor.
Sec. 100-03. Travel Expenses for the Mayor.
Sec. 100-05. Mayoral Service.
Sec. 100-07. Mayor's Assistants.
Sec. 100-09. Employee Benefits of Mayor's Employees.
Sec. 100-11. Mayor's Office Expenses.
Sec. 100-13. Code of Conduct.

Sec. 100-1. Qualifications of the Mayor.

The mayor shall be an elector of the city and shall not hold any other public office except that of notary public or member of the state militia. The mayor shall not be interested in any contract with the city and shall not hold employment with the city.

A person serving as mayor who ceases to possess any of the above qualifications or removes from the city shall forthwith forfeit the office of mayor.

An officer, director, stockholder, employee, or owner of any interest in a financial institution or public depository receiving inactive, interim, or active deposits pursuant to the Uniform Depository Act of the Ohio Revised Code shall not be deemed to hold public office or be interested, either directly or indirectly, as a result of such relationship, in the deposit of such inactive, interim, or active deposits of public moneys for the purpose of any law prohibiting an elected official of the City of Cincinnati from holding other office or being interested in any contract of the city of Cincinnati.

The mayor shall not be deemed to hold other public office when appointed or designated by council or selected by a governmental or quasi-governmental body to represent the city on the board or commission of any governmental or quasi-governmental body, including, but not limited to, the OKI, District 13 Council of Governments on Law Enforcement, the Port Authority, the Transit Authority, Hamilton County Mental Health and Recovery Services, and Hamilton County Developmental Disabilities Services. The mayor shall not be deemed to hold public office when appointed a director of the Federal Home Loan Bank, nor considered as having an interest, directly or indirectly, in the purchase or sale by the city or the Federal Home Loan Bank System of securities issued by the Federal Home Loan Bank System or the city.
(Ordained by Emer. Ord. No. 487-2012, § 1, eff. Jan. 14, 2013; a. Ord. No. 287-23, § 1, eff. August 2, 2023)

Sec. 100-03. Travel Expenses for the Mayor.

Annually there may be appropriated by council, as part of the mayor's budget, a sum to a travel expense code to be used for travel related to the conduct of city business.

The mayor may elect to receive, as part of the annual travel expense, a monthly allowance for an automobile.
(Ordained by Emer. Ord. No. 487-2012, § 1, eff. Jan. 14, 2013)

Sec. 100-05. Mayoral Service.

The mayoral service shall consist of employees in the city service primarily engaged in duties for or at the request of the mayor. The mayoral service shall include assistants to the mayor appointed to positions in the unclassified city service to perform clerical, research or related duties, and such other employees as the mayor may designate to perform duties related to the functioning of the mayor's office. For all purposes of state and local law, employees in the mayoral service shall be treated in the same manner as employees of the legislative service.
(Ordained by Emer. Ord. No. 487-2012, § 1, eff. Jan. 14, 2013)

Sec. 100-07. Mayor's Assistants.

The mayor shall have the power of appointment for assistants in unclassified positions in the mayoral service. An employee so appointed shall serve during such the mayor's term at the pleasure of the mayor. Should the mayor vacate office before the expiration of a mayoral term, the mayor's successor

may extend the appointment of the mayor's appointees for a term not to extend beyond the successor's term in office.

The mayor shall fix the duties and salaries of his or her appointees; however, the total amount of all appointees' salaries shall be fixed by council.
(Ordained by Emer. Ord. No. 487-2012, § 1, eff. Jan. 14, 2013; a. Emer. Ord. No. 0061-2022, §§ 1, 2, eff. March 9, 2022)

Sec. 100-09. Employee Benefits of Mayor's Employees.

In addition to salary, employees serving in the mayoral service shall be entitled to receive fringe benefits equivalent to employees of the city in the administrative service in Division 0 of Chapter 307 of the Cincinnati Municipal Code.
(Ordained by Emer. Ord. No. 487-2012, § 1, eff. Jan. 14, 2013)

Sec. 100-11. Mayor's Office Expenses.

Each year council shall appropriate funds for expenses necessary for the performance by the mayor of official duties relating to the conduct of the government or business of the city.

The appropriation for the mayor shall set forth separately the amount appropriated for personal services, and nonpersonal services and other expenses.

An appropriation shall be made for the mayor's office which shall reflect the individual employee benefit costs attributable to the mayor's office.

In the event the mayor chooses to be reimbursed for expenses incurred in obtaining the services of secretarial, clerical or research assistants instead of appointing persons to the unclassified service or chooses to use a portion of the nonpersonal appropriation for personal services, the mayor shall notify the department of finance which shall make arrangements for the transfer of amounts from the personal or nonpersonal appropriations into the proper accounts. Reimbursement to the mayor for actual expenses incurred in the performance of official duties shall be limited to the amount appropriated for nonpersonal services for the mayor's office.

Postal expenses incurred for public purposes are considered reimbursable expenses for the purpose of this section. A mayor who is running for reelection, however, shall not make use any such postal expenses for mass mailings within 75 days of a mayoral election.

"Mass mailings" for the purpose of this section shall mean the mailing of letters, reports, or other literature relating to one particular issue or topic, or to more than one issue or topic in the same letter, report, or other literature, whether or not for public purposes, to more than 100 different individuals, groups, or organizations.

The mayor, when claiming reimbursable expenses, shall submit a voucher in support of the claim in a form satisfactory to the director of finance.

The department of finance shall audit expenditures made under this section annually to assure that all expenditures are for public purposes only.

Resources of the mayor's office shall not be used to support or oppose either the placement of an initiative or referendum issue on the ballot or the passage of the ballot issue. This provision does not prohibit research on the subject matter of a ballot issue, endorsement of a position on the issue, the creation of informational materials or similar efforts by the mayor or his or her staff provided that such efforts do not directly advocate for or against placement on the ballot or passage of the ballot issue.

Such use of mayoral office resources shall be subject to audit by the finance director and any use or expenditure of mayoral resources so determined to be in violation of this provision shall be reimbursed.
(Ordained by Emer. Ord. No. 487-2012, § 1, eff. Jan. 14, 2013)

Sec. 100-13. Code of Conduct.

(a) The mayor shall adopt a code of conduct within 45 days after being sworn in as mayor. The code of conduct will govern the mayor's actions while in office as well as those of the mayoral staff and, at a minimum, will contain the following provisions:

(1) Recognition of the charter role of the mayor, council, and city manager, particularly in development projects and incentives;

(2) Recognition of the obligation of elected officials and staff to not attempt to privately interfere with quasi-judicial proceedings of boards and commissions or the zoning hearing examiner;

(3) Cultivating a culture of reporting of conflicts of interest and unethical conduct and a commitment to avoid retaliating against those who report suspected conflicts or unethical conduct;

(4) Commitment to understanding and following the applicable ethics and conflict of interest laws;

(5) Commitment to attend training at least annually on Ohio ethics laws and other state and local laws pertinent to the role of the mayor;

(6) Commitment to never use city resources or personnel for political activity;

(7) Recognition of the limitations on the mayor's ability to negotiate economic development deals without the involvement and approval of the city manager; and

(8) Articulation of rules to maintain a level playing field for private parties dealing with the city, to deter inappropriate behavior, to reinforce proper behavior, and to maintain public confidence in city government.

The code of conduct may address other issues that the mayor chooses to include.

(b) The mayor shall transmit the code of conduct to the clerk of council within the timeframe established in subsection (a) to be placed on the next council agenda as an informational item. Council shall not have the ability to edit, approve, or disapprove the mayor's code of conduct. Council shall file the code of conduct when it appears on council's agenda.

(c) The mayor and all mayoral staff shall sign the code of conduct and submit the signed version to the clerk's office within forty-five days of becoming mayor, whether by election or appointment, or being hired by the mayor.

(d) The mayor's code of conduct shall remain in effect for the duration of the mayor's term and thereafter until subsequently amended or superseded by a new code of conduct in accordance with this section.

(e) Enforcement of the code of conduct required by this chapter shall be by censure, approved a majority vote of councilmembers. Upon approval by a majority of council, the censure shall be filed with the clerk of council.
(Ordained by Emer. Ord. No. 0405-2021, § 1, eff. October 20, 2021)

Chapter 101

COUNCIL

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Sec. 101-1. Qualifications of Members of Council.

Each member of council shall be an elector of the city and shall not hold any other public office except that of notary public or member of the state militia. A member of council shall not be interested in any contract with the city and shall not hold employment with the city.

A member who ceases to possess any of the above qualifications or removes from the city shall forthwith forfeit the office of council member.

An officer, director, stockholder, employee, or owner of any interest in a financial institution or public depository receiving inactive, interim, or active deposits pursuant to the Uniform Depository Act of the Ohio Revised Code shall not be deemed to hold public office or be interested, either directly or indirectly, as a result of such relationship, in the deposit of such inactive, interim, or active deposits of public moneys for the purpose of any law prohibiting a member of council from holding other office or being interested in any contract of the city of Cincinnati.

A member of council shall not be deemed to hold other public office when appointed by the mayor or designated by council or selected by a governmental or quasi-governmental body to represent the city on the board or commission of any governmental or quasi-governmental body, including, but not limited to, the OKI, District 13 Council of Governments on Law Enforcement, the Port Authority, the Transit Authority, Hamilton County Mental Health and Recovery Services, and Hamilton County Disabilities Services. A member of council shall not be deemed to hold public office when appointed a director of the Federal Home Loan Bank, nor considered as having an interest, directly or indirectly, in the purchase or sale by the city or the Federal Home Loan Bank System of securities issued by the Federal Home Loan Bank System or the city.

(C.O. 101-1; a. Ord. No. 36-1970, eff. Feb. 11, 1970; reordained as C.M.C. 101-1, eff. Jan. 1, 1972; a. Ord. No. 249-1979, eff. July 13, 1979; a. Ord. No. 287-23, § 1, eff. August 2, 2023)

Ordinance No. 36-1970 declared Section 731.02 of the Ohio Revised Code inoperative in the City of Cincinnati.

Sec. 101-3. Meetings.

The regular meetings of council shall be held in the council chamber, commencing at 2:00 p.m. on Wednesday of each week, except during the months of July and August when Council shall meet on the first Wednesday of the month at 2:00 p.m. Whenever a regular meeting falls in a week in which a legal holiday occurs on a Monday, Tuesday, or Wednesday, the regular meeting shall be held on Thursday at 2:00 p.m. Council may, on motion, adopt a different day or hour for an upcoming regular weekly meeting. The citizens' forum for public comment shall begin 30 minutes prior to the scheduled start of every regular meeting of Council and will last for up to 30 minutes. A quorum must be present for the citizens' forum to begin.

The information regarding the day and time of regular meetings of Council shall be posted on the City of Cincinnati website.

(C.O. 101-2; renumbered to C.M.C. 101-3, eff. Jan. 1, 1972; a. Emer. Ord. No. 419-2019, §§ 1, 2, eff. Nov. 14, 2019; a. Emer. Ord. No. 0098-2020, §§ 1, 2, eff. April 1, 2020)

Sec. 101-5. Clerk and Employees.

Council shall appoint a clerk of council, a deputy clerk of council and such other subordinate officers as shall be necessary in the performance of the duties of the clerk's

office. In case of the absence or disability of the clerk, the deputy clerk shall act as clerk.
(C.O. 101-3; renumbered to C.M.C. 101-5, eff. Jan. 1, 1972)

Sec. 101-7. Duties of Clerk.

The clerk shall make and keep proper records of proceedings of council, authenticate resolutions and ordinances, have charge of records of council, receive and submit to council all communications and other documents filed for consideration by council, prepare plats and other documents for submission to council and its committees, cause publication to be made in accordance with law of all resolutions, ordinances, notices, and other matters requiring publication, cause personal service to be made where such service is required, be ex-officio editor of any newspaper published under the authority of council, and perform all other duties properly attaching to the office of the clerk by the provisions of the city charter, the Revised Code of Ohio, or the ordinances of the city.
(C.O. 101-4; renumbered to C.M.C. 101-7, eff. Jan. 1, 1972; a. Ord. No. 249-1979, eff. July 13, 1979)

Sec. 101-9. Calendar.

It shall be the duty of the clerk of council to cause to be printed upon a calendar enough of the subject matter of all petitions, communications, original motions, orders, ordinances and resolutions and reports of committees and other documents to inform the members of the purport thereof.
(C.O. 101-5; renumbered to C.M.C. 101-9, eff. Jan. 1, 1972)

Sec. 101-11. Distribution of Calendar.

On the morning of each regular meeting day the clerk shall deliver to the various offices in the city hall a copy of the calendar, and shall place a copy upon the desk of each member before the opening of the meeting.
(C.O. 101-6; renumbered to C.M.C. 101-11, eff. Jan. 1, 1972; a. Ord. No. 249-1979, eff. July 13, 1979)

Sec. 101-13. Filing Petitions, etc., Documents Filed for Presentation to Council.

All petitions, communications, original motions, orders, ordinances, resolutions, reports of committees and other documents to be presented to council shall be filed with the clerk before 11 a.m. of the business day preceding the day of each regular meeting. Council may consider any matter not timely filed upon motion duly made and adopted by an affirmative vote of two-thirds of all the members elected to council.
(C.O. 101-7; renumbered to C.M.C. 101-13, eff. Jan. 1, 1972; a. Ord. No. 249-1979, eff. July 13, 1979)

Sec. 101-15. Franchise Ordinance, Copies.

Every ordinance introduced for the purpose of granting a right of franchise to any individual, company or corporation shall be accompanied by at least 100 printed copies thereof, with lines numbered and in the usual form ordered by the clerk, which printing shall be at the expense of the individual, company or corporation asking for the franchise.
(C.O. 101-8; renumbered to C.M.C. 101-15, eff. Jan. 1, 1972)

Sec. 101-17. Approval of Code Changes by City Solicitor.

Every ordinance that amends or supplements the Cincinnati Municipal Code shall be submitted to the city solicitor before being passed by council. If any provision of the Cincinnati Municipal Code as amended

or supplemented conflicts with any other existing section of the code, the solicitor shall prepare and insert in the proposed ordinance a clause repealing the section in conflict.
(C.O. 101-9; renumbered to C.M.C. 101-17, eff. Jan. 1, 1972; a. Ord. No. 249-1979, eff. July 13, 1979; a. Ord. No. 287-23, § 1, eff. August 2, 2023)

Sec. 101-19. Numbering Code Sections.

Whenever an ordinance of a general and permanent nature is passed without sectional numbering, or if the numbering used does not conform to the Cincinnati Municipal Code, it shall be the duty of the clerk of council to designate in the left-hand margin of the authenticated copy of such ordinance, official code section numbers. The designated official numbers shall be indicated in any publication of such ordinance.
(C.O. 101-10; renumbered to C.M.C. 101-19, eff. Jan. 1, 1972; a. Ord. No. 249-1979, eff. July 13, 1979)

Sec. 101-21. Official Newspaper for Resolution Publication.

Every resolution requiring publication shall be published once within 15 days after its passage in a newspaper of general circulation in the city of Cincinnati, or in a newspaper regularly published under the authority of the council of the city of Cincinnati.
(C.O. 101-11; renumbered to C.M.C. 101-21, eff. Jan. 1, 1972)

Sec. 101-23. Certified Copies of Ordinances.

Upon request, the clerk of council shall furnish under the seal of the office of the clerk of council a certified copy of any ordinance, resolution or other proceeding of council, or of any section or sections of the Cincinnati Municipal Code.

For each certified copy the clerk shall charge a fee of $4.50. No charge shall be made for certified copies furnished to other city departments for official use.
(C.O. 101-12; a. Ord. No. 265-1962, eff. Aug. 4, 1962; a. Ord. No. 90-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 101-23, eff. Jan. 1, 1972; a. Ord. No. 321-1975, eff. Sept. 1, 1975; a. Ord. No. 249-1979, eff. July 13, 1979; a. Ord. No. 282-1979, eff. Sept. 1, 1979)

Sec. 101-25. Amended Code Sections, Index to.

The clerk of council shall prepare and maintain such books, records, systems and index as may be necessary to enable officers and employees of the city and other interested persons to readily find any or all ordinance sections amendatory, of, or supplemental to, this code. The clerk of council shall further certify to the office of the city solicitor each week copies of all amendatory and supplementary sections passed by council.
(C.O. 101-14; renumbered to C.M.C. 101-25, eff. Jan. 1, 1972)

Sec. 101-27. References to Cincinnati Municipal Code.

In all ordinances, resolutions and proceedings relating to, or referring to, ordinance provisions included in this code of ordinances, or amendments or supplements thereof, the term "Cincinnati Municipal Code," or the abbreviation "CMC" with the respective section, chapter, or title number, shall be a sufficient designation for such reference.
(C.O. 101-15; renumbered to C.M.C. 101-27, eff. Jan. 1, 1972; a. Ord. No. 249-1979, eff. July 13, 1979; a. Ord. No. 287-23, § 1, eff. August 2, 2023)

Sec. 101-29. Repealed.
(Sec. 101-16; ordained by Ord. No. 14-1968, eff. Jan. 10, 1968; a. Ord. No. 443-1971, eff.

Dec. 8, 1971; renumbered to C.M.C. 101-29, eff. Jan. 1, 1972; a. Ord. No. 533-1973, eff. Dec. 12, 1973; a. Ord. No. 101-1976, eff. Mar. 24, 1976, a. Ord. No. 249-1979, eff. July 13, 1979; a. Ord. No. 337-1979, eff. Aug. 1, 1979; a. Ord. No. 554-1985, eff. Jan. 10, 1986; r. Ord. No. 289-1990, eff. Aug. 6, 1990)

Sec. 101-31. Repealed.

(Sec. 101-17; ordained by Ord. No. 333-1970, eff. Oct. 28, 1970; renumbered to C.M.C. 101-31, eff. Jan. 1, 1972; r. Ord. No. 289-1990, eff. Aug. 6, 1990)

Sec. 101-33. Travel Expenses for Council.

Annually there may be appropriated, as part of the budget, for all members of council a sum to a travel expense code to be used only for travel related to the conduct of city business.

Each trip authorization shall be approved in advance of the trip by the finance committee of council as evidenced by the approving signature of the chairman or vice-chairman of the finance committee. Upon completion of travel, each member of council shall submit a voucher for the actual expenses of the travel for approval to the finance committee as evidenced by the approving signature of the chairman or vice-chairman of the finance committee.

Generally, the forms, procedures, and supporting documentation related to the expenses of travel shall be in accord with those used by city employees traveling on city business.

Where necessary, a voucher for an advance of funds for travel may be submitted to the finance committee as an attachment to the advance request for permission to travel.

(C.M.C. 101-33; ordained by Ord. No. 563-1973, eff. Dec. 28, 1973; a. Ord. No. 249-1979, eff. July 13, 1979; Emer. Ord. No. 487-2012, § 2, eff. Jan. 14, 2013)

Sec. 101-35. Legislative Service.

The legislative service shall consist of employees in the city service primarily engaged in legislative duties for or at the request of the council or a council member. It shall include the clerk of council, such other subordinate officers as shall be necessary in the performance of the duties of the clerk's office, assistants to the council appointed to positions in the unclassified city service to perform clerical, research or related legislative duties, and such other employees as council may designate by ordinance to perform duties related to council's legislative function.

(C.M.C. 101-35; ordained by Ord. No. 289-1990, eff. Aug. 6, 1990)

Sec. 101-37. Council Assistants.

Each member of council shall have the power of appointment for three full-time and three part-time unclassified positions in the legislative service of the council. An employee so appointed shall serve during such council member's term at the pleasure of the council member. Should a member of council vacate office before the expiration of a council term, the council may extend the appointment of the council member's appointees for a term not to extend beyond the assumption of office by the council member's successor in office.

A council member shall fix the duties and salaries of his or her appointees; however, the total amount of all appointees' salaries shall be fixed by council.

(C.M.C. 101-37; ordained by Ord. No. 289-1990, eff. Aug. 6, 1990; Am. Ord. No. 101-1999 eff. March 24, 1999; Emer. Ord. No. 487-2012, § 2, eff. Jan. 14, 2013)

Sec. 101-39. Employee Benefits of Legislative Employees.

In addition to salary, employees serving in the legislative service shall be entitled to

receive fringe benefits equivalent to employees of the city in the administrative service in Division 0 of Chapter 307 of the Cincinnati Municipal Code.
(Sec. 101-17; ordained by Ord. No. 333-1970, eff. Oct. 28, 1970; renumbered to C.M.C. 101-31, eff. Jan. 1, 1972; renumbered to C.M.C. 101-39, eff. Aug. 6, 1990)

Sec. 101-41. Council Office Expenses.

Each year council shall appropriate funds for expenses necessary for the performance by the council of official legislative duties relating to the conduct of the government or business of the city.

The appropriation for council members shall set forth separately the amount for each council member's office and, within each, the amount appropriated for personal services, and nonpersonal services and other expenses. Each of the nine council member's offices shall receive an equal amount in each category.

An additional appropriation shall be made for each of the nine council members' offices which shall reflect the individual employee benefit costs attributable to each legislative office of the City of Cincinnati.

In the event a council member chooses to be reimbursed for expenses incurred in obtaining the services of secretarial, clerical or research assistants instead of appointing persons to the unclassified service or chooses to use a portion of the nonpersonal appropriation for personal services, the council member shall notify the department of finance which shall make arrangements for the transfer of amounts from the personal or nonpersonal appropriations into the proper accounts. Reimbursement to the council member for actual expenses incurred in the performance of official duties shall be limited to the amount appropriated for nonpersonal services for each office.

Postal expenses incurred for public purposes are considered reimbursable expenses for the purpose of this section. No council member who is running for reelection, however, shall make mass mailings within 75 days of a council election.

"Mass mailings" for the purpose of this section shall mean the mailing of letters, reports, or other literature relating to one particular issue or topic, or to more than one issue or topic in the same letter, report, or other literature, whether or not for public purposes, to more than 100 different individuals, groups, or organizations.

Each member of council claiming reimbursable expenses shall submit a voucher in support of the claim in a form satisfactory to the director of finance, such vouchers to be approved for payment by the finance committee of council.

The department of finance shall audit expenditures made under this section annually to assure that all expenditures are for public purposes only.

Council office resources shall not be used to support or oppose either the placement of an initiative or referendum issue on the ballot or the passage of the ballot issue. This provision does not prohibit research on the subject matter of a ballot issue, endorsement of a position on the issue, the creation of informational materials or similar efforts by individual members of council provided that such efforts do not directly advocate for or against placement on the ballot or passage of the ballot issue. Such use of council office resources shall be subject to audit by the finance director and any use or expenditure of council resources so determined to be in violation of this provision shall be reimbursed.
(Sec. 101-16; ordained by Ord. No. 14-1968, eff. Jan. 10, 1968; a. Ord. No. 443-1971, eff. Dec. 8, 1971; renumbered to C.M.C. 101-29,

eff. Jan. 1, 1972; a. Ord. No. 533-1973, eff. Dec. 12, 1973; a. Ord. No. 101-1976, eff. Mar. 24, 1976, a. Ord. No. 249-1979, eff. July 13, 1979; a. Ord. No. 337-1979, eff. Aug. 1, 1979; a. Ord. No. 554-1985, eff. Jan. 10, 1986; renumbered to C.M.C. 101-41, eff. Aug. 6, 1990; a. Ord. No. 340-1998, eff. Sept. 16, 1998; a. Ord. No. 404-2012, § 1, eff. Dec. 7, 2012; Emer. Ord. No. 487-2012, § 2, eff. Jan. 14, 2013)

Sec. 101-43. Public hearing prior to imposition of new fees or charges.

(a) Not less than ten days before the adoption by city council of any ordinance imposing new fees or charges on the citizens of Cincinnati, council or a committee of the council designated by council shall hold a public hearing on the subject matter of the proposed ordinance. Notice of the time and place of the public hearing and the text of the proposed ordinance shall be published in the city bulletin for two consecutive weeks within the thirty day period immediately preceding the public hearing. The council, after having conducted or reviewed the substance of the public hearing, may adopt the proposed ordinance in whole or in part, or may decline to adopt the proposed ordinance.

(b) This section shall not be construed to require a public hearing prior to modifying any fees or charges in effect on the effective date of this section, or fees or charges that the city manager has been authorized by ordinance to fix or modify.

(c) This section shall not be construed to require a public hearing prior to the imposition or modification of a schedule of civil or criminal fines or penalties assessed against citizens for the violation of any provision of the Cincinnati Municipal Code.

(d) In the event that any ordinance is modified by operation of law or is declared to be unconstitutional, the modification of the provisions of the ordinance to conform to the requirements of law or judicial decision shall not be subject to the public hearing requirement set forth herein.
(Ordained by Ord. No. 255-2003, eff. Sept. 5, 2003)

Sec. 101-45. Code of Conduct.

(a) Council shall adopt a code of conduct within 45 days after being sworn in as members of council by enacting an ordinance adopting the code of conduct. The code of conduct will govern each individual member of council's actions while in office, as well as those of council staff and, at a minimum, will contain the following provisions:

(1) Recognition of the charter roles of the mayor, council, and city manager, particularly in development projects and incentives;

(2) Recognition of the obligation of elected officials and staff to not attempt to privately interfere with quasi-judicial proceedings of boards and commissions or the zoning hearing examiner;

(3) Commitment to directing inquiries from private parties related to financial assistance or land use approvals to the city manager's office;

(4) Commitment to understanding and following the applicable ethics and conflict of interest laws;

(5) Commitment to attend training at least annually on Ohio ethics laws and other state and local laws pertinent to the role of council;

(6) Cultivating a culture of reporting of conflicts of interest and unethical conduct and committing to avoid

retaliating against those who report suspected conflicts or unethical conduct;

(7) Commitment to never use city resources or personnel for political activity; and

(8) Articulation of rules to maintain a level playing field for private parties dealing with the city, to deter inappropriate behavior, to reinforce proper behavior, and to maintain public confidence in city government.

The code of conduct may address other issues that council chooses to include.

(b) Council and all council staff shall sign the code of conduct and submit the signed version to the clerk's office within 45 days of becoming a member of city council, whether by election or appointment, or being hired by a member of city council.

(c) Council's code of conduct shall remain in effect for the duration of the council term and thereafter until subsequently amended or superseded by a new code of conduct in accordance with this section.

(d) Enforcement of the code of conduct required by this chapter shall be by censure, approved a majority vote of the remaining councilmembers. Upon approval by a majority of council, the censure shall be filed with the clerk of council.

(Ordained by Emer. Ord. No. 0405-2021, § 2, eff. October 20, 2021)

Chapter 102

CITY PUBLICATIONS, ADVERTISEMENTS AND DOCUMENTS

Sec. 102-1. City Bulletin.
Sec. 102-3. Clerk of Council to Edit Bulletin.
Sec. 102-5. Advertising for Printing Bids.
Sec. 102-7. Contents of Bulletin.
Sec. 102-9. Subscription Price.
Sec. 102-11. Appropriations for Bulletin.
Sec. 102-13. Advertising in Other Newspapers.
Sec. 102-15. Special Advertising for Public Contracts.
Sec. 102-17. Civil Service Advertising.
Sec. 102-19. City Publications, Distribution.
Sec. 102-21. Products and Services of the Metropolitan Topographic Survey.
Sec. 102-23. City Publications, Official Documents, Distribution Rates.
Sec. 102-25. Engineering Documents and Diazo Prints.
Sec. 102-27. Repealed.

Sec. 102-1. City Bulletin.

The City Bulletin shall be the official newspaper of the city of Cincinnati and shall be regularly published once each week.
(C.O. 102-1; reordained as C.M.C. 102-1, eff. Jan. 1, 1972)

Sec. 102-3. Clerk of Council to Edit Bulletin.

It shall be the duty of the clerk of council to edit, manage, publish and distribute the City Bulletin. The size, form, typography, make-up, number of copies to be printed, publication date, method of distribution and similar details relating to the publication of said newspaper shall be determined by the clerk of council.
(C.O. 102-2; renumbered to C.M.C. 102-3, eff. Jan. 1, 1972)

Sec. 102-5. Advertising for Printing Bids.

On or about July 1 of every third year the purchasing agent shall advertise for one week for sealed bids for the printing of the City Bulletin during the next three ensuing years; and for the printing separately of copies of ordinances and resolutions passed. The purchasing agent shall open the bids in public at the time specified in the advertisement and is authorized to make a contract with the lowest and best responsible bidder. Any and all bids may be rejected and readvertisement made for bids.
(C.O. 102-3; renumbered to C.M.C. 102-5, eff. Jan. 1, 1972; a. Ord. No. 249-1979, eff. July 13, 1979; a. Ord. No. 186-1985, eff. May 17, 1985)

Sec. 102-7. Contents of Bulletin.

The City Bulletin shall contain all ordinances and resolutions which are passed by council; all resolutions adopted by the various boards and commissions of the city; all notices, announcements and advertisements required by law or ordinance to be published and which can be legally published in the City Bulletin; official reports of the proceedings of council; information concerning the official actions of all departments, boards and commissions of the city; proposals for bids for public contracts and such other matters as council may authorize.
(C.O. 102-4; renumbered to C.M.C. 102-7, eff. Jan. 1, 1972)

Sec. 102-9. Subscription Price.

The subscription price by mail of the City Bulletin shall be $75.00 per year for first class mail. Copies shall be available at the clerk of council's office in city hall and such other places as the clerk of council may determine.
(C.O. 102-5; renumbered to C.M.C. 102-9, eff. Jan. 1, 1972; a. Ord. No. 198-1972, eff. June 2, 1972; a. Ord. No. 327-1975, eff. Sept. 1, 1975; a. Ord. No. 282-1979, eff. Sept. 1, 1979; a. Ord. No. 137-1983, eff. Apr. 29, 1983; a. Ord. No. 240-1983, eff. July 1, 1983; a. Ord. No. 478-1988, eff. Jan. 6, 1989; a. Ord. No. 0060-2007, § 1, eff. March 14, 2007; a. Ord. No. 074-2010, § 1, eff. April 24, 2010)

Sec. 102-11. Appropriations for Bulletin.

The expense of publishing, editing and distributing the City Bulletin shall be paid from the appropriations from the general fund for the clerk of council, 050 x 0200 x 7231, city newspaper, upon warrant duly drawn by the clerk of council.
(C.O. 102-6; renumbered to C.M.C. 102-11, eff. Jan. 1, 1972)

Sec. 102-13. Advertising in Other Newspapers.

Whenever in the opinion of the city manager an emergency shall exist requiring publication of a notice, announcement or advertisement on a date earlier than the date of

publication of the City Bulletin the city manager shall be authorized to make such publication in a local newspaper other than the City Bulletin.

In addition to the regular advertising required by law or ordinance in connection with the public sale of city property, real or personal, or in connection with the taking of bids for the purchase of supplies for the city, it shall be within the discretion of the city manager to determine when additional advertising is required and to so advertise in any or all local newspapers, either in classified or display style. The cost of such additional advertising shall be paid in each case from the funds chargeable with the expense of the advertising required by law.

Nothing herein shall be construed to dispense with publication in the City Bulletin.
(C.O. 102-7; renumbered to C.M.C. 102-13, eff. Jan. 1, 1972; a. Ord. No. 249-1979, eff. July 13, 1979)

Sec. 102-15. Special Advertising for Public Contracts.

The city manager shall be authorized to expend a reasonable sum for advertising whenever, in connection with the taking of bids for the construction of any public improvement, the city manager shall consider it in the public interest to advertise for such bids in one or more technical or trade journals published within or without the city of Cincinnati. The cost of such special advertising shall be paid in each case from the fund chargeable with the expense of the public advertising required by law for the particular improvement.
(C.O. 102-8; renumbered to C.M.C. 102-15, eff. Jan. 1, 1972; a. Ord. No. 249-1979, eff. July 13, 1979)

Sec. 102-17. Civil Service Advertising.

The civil service commission is authorized to publish notices of the holding of examinations and similar announcements in any or all local newspapers, trade papers, magazines and other publications. The advertising may be run either in classified or display style, and may be published any reasonable number of times.
(C.O. 102-9; renumbered to C.M.C. 102-17, eff. Jan. 1, 1972)

Sec. 102-19. City Publications, Distribution.

The city manager or the person designated by the city manager is authorized to distribute free of charge to the departments and offices of the city, county, state and federal government and to the public library of Cincinnati and the University of Cincinnati such reasonable number of copies of city publications and supplements thereto as they may require. The copies distributed to such departments and offices shall be marked substantially as follows:

Not for Private Use
Authorized Public Copy For

_____

(Name of Department of Office)
Provided Free of Charge by the
City of Cincinnati

The city manager or the person designated by the city manager is authorized to distribute free of charge to the municipal reference library such reasonable number of copies of city publications and supplements thereto as may be required for the purpose of exchange with other reference libraries, municipalities and technical organizations. Such copies shall be marked substantially as follows:

Authorized Reference Library
Exchange Copy Provided Free of
Charge by the City of Cincinnati

The city manager or the person designated by the city manager or the board or commission publishing or distributing a publication

is authorized to establish a rate for sale or resale of any city, state or federal publication, or amendment to, portion of, or supplement to any of the above listed or other city publications kept and made available to the public. Such rate may be based on actual cost and administrative costs associated with such sale.

(C.M.C. 102-19, ordained by Ord. No. 249-1979, eff. July 13, 1979; a. Ord. No. 282-1979, eff. Sept. 1, 1979; a. Ord. No. 366-1979, eff. Sept. 6, 1979; a. Ord. No. 41-1981, eff. Mar. 4, 1981; a. Ord. No. 221-1982, eff. July 9, 1982; a. Ord. No. 139-1985, eff. Apr. 19, 1985; a. Ord. No. 306-1985, eff. July 26, 1985)

Analogous to C.M.C. 109-20, ordained by Ord. No. 191-1973, eff. May 2, 1973; a. Ord. No. 327-1975, eff. Sept. 1, 1975; r. Ord. No. 249-1979, eff. July 13, 1979.

C.M.C. 109-21, ordained as Sec. 106-21 by Ord. No. 94-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 109-21, eff. Jan. 1, 1972; a. Ord. No. 53-1972, eff. Feb. 24, 1972; a. Ord. No. 14-1973, eff. Jan. 17, 1973; a. Ord. No. 122-1973, eff. Mar. 21, 1973; a. Ord. No. 29-1975, eff. Jan. 15, 1975; r. Ord. No. 249-1979, eff. July 13, 1979. Preceding uncodified ordinances dealing with the same subject matter were Ord. Nos. 4-1956, 230-1959, 231-1959 and 62-1963.

C.M.C. 109-22, ordained by Ord. No. 5-1971, eff. Jan. 6, 1971, as uncodified ordinance; reordained as C.M.C. 109-22, eff. Jan. 1, 1972; r. Ord. No. 249-1979, eff. July 13, 1979.

C.M.C. 109-23, ordained as Section 106-23 by Ord. No. 95-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 109-23, eff. Jan. 1, 1972; r. Ord. No. 249-1979, eff. July 13, 1979. Preceding ordinances dealing with the same subject matter were Ord. Nos. 271-1957 and 339-1961.

C.M.C. 109-24, ordained as Sec. 106-24 by Ord. No. 353-1971, eff. Nov. 5, 1971; renumbered to C.M.C. 109-24, eff. Jan. 1, 1972; a. Ord. No. 24-1972, eff. Jan. 26, 1962; a. Ord. No. 327-1975, eff. Sept. 1, 1975; r. Ord. No. 249-1979, eff. July 13, 1979.

Sec. 102-21. Products and Services of the Metropolitan Topographic Survey.

The city manager, or a person designated by the city manager, is hereby authorized to charge for the products and services of the Metropolitan Topographic Survey in accordance with the following scale:

(a) Black and white print of film processing, $3.50 per print.

(b) Service charge for loan of film positive, $3 per positive.

(c) Service charge for establishing or removing and resetting any permanent city of Cincinnati monument, either geodetic or right-of-way, $1,275.

(d) 9" x 9" contact print, uncontrolled photography, $5 per print.

(e) Photomaps and other products, including contact prints from consultant files, cost plus 18 per cent for handling.

(f) Service charge for film positives and other products lost or damaged after borrowing, cost plus 18 per cent.

(g) Engineering cost for precise traverse or level crew, $500 per eight-hour working day, with a minimum charge of $500.

(h) Engineering cost for office computations and drafting is $21 per hour.

(Sec. 106-25; ordained by Ord. No. 93-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 109-25, eff. Jan. 1, 1975; a. Ord. No. 327-1975, eff. Sept. 1, 1975; renumbered to C.M.C. 102-21 by Ord. No. 249-1979, eff. July 13, 1979; a. Ord. No. 282-1979, eff. Sept. 1, 1979; a. Ord. No. 220-1982, eff. July 9, 1982)

This section was first codified by Ord. No. 93-1969. The preceding ordinance dealing with the same subject matter was Ord. No. 560-1953.

Sec. 102-23. City Publications, Official Documents, Distribution Rates.

The city manager or the person designated by the city manager is hereby authorized to adopt a schedule of fees and promulgate rules for the furnishing, sale, reproduction, amendment to, portion of, or supplement to any city publication available to the public including any official document or city publication for which a rate has not been codified.

(Sec. 106-29; ordained by Ord. No. 92-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 109-

29, eff. Jan. 1, 1972; a. Ord. No. 327-1976, eff. Sept. 1, 1975; renumbered to C.M.C. 102-23 and amended by Ord. No. 249-1979, eff. July 13, 1979; a. Ord. No. 282-1979, eff. Sept. 1, 1979; a. Ord. No. 360-1982, eff. Oct. 9, 1982)

This section was first codified by Ord. No. 92- 969. Preceding ordinances dealing with the same subject matter were Ord. Nos. 98-1954 and 268-1962.

Sec. 102-25. Engineering Documents and Diazo Prints.

The city manager or the person designated by the city manager shall have the power to authorize the reproduction of and the disbursement for sale of diazo prints and engineering documents which have been prepared by or are in the possession of city departments.

The fee for diazo prints shall be 15 cents per square foot subject to a minimum charge of $3.

Photocopies of engineering documents maximum size 81/2" x 14", $1 per each page or copy.

Mailing or delivery charges shall be assessed in addition to the minimum fee and the above referenced charges.
(C.O. 106-3; a. Ord. No. 90-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 109-5, eff. Jan. 1, 1972; a. Ord. No. 327-1975, eff. Sept. 1, 1975; renumbered to C.M.C. 102-26 and amended by Ord. No. 249-1979, eff. July 13, 1979; a. Ord. No. 282-1979, eff. Sept. 1, 1979; a. Ord. No. 219-1982, eff. July 9, 1982)

Sec. 102-27. Repealed.

(Ordained by Ord. No. 520-1984, eff. Jan. 4, 1985; r. Ord. No. 98-1985, eff. Mar. 25, 1985)

Chapter 103

REFERENDUM MEASURES

Sec. 103-1. Notice of Referendum.
Sec. 103-3. Argument for Petitioners.
Sec. 103-5. Argument for City.
Sec. 103-7. Length of Arguments.

Sec. 103-1. Notice of Referendum.

Not less than 12 days prior to any election at which one or more ordinances or other measures are to be submitted to the voters for their approval or disapproval in pursuance of initiative or referendum petitions, the clerk of council shall have published in a newspaper of general circulation in the city of Cincinnati a notice containing the title and text of each such measure, together with any argument or explanation filed as provided by Section 103-3 and 103-5 herein. The cost of publication shall be paid on voucher of the clerk of council.
(C.O. 103-1; reordained as C.M.C. 103-1, eff. Jan. 1, 1972; a. Ord. No. 249-1979, eff. July 13, 1979)

Sec. 103-3. Argument for Petitioners.

The committee designated to represent the petitioners on any initiative or referendum petition may file with the clerk of council, not later than 40 days before the election date, an argument or explanation in support of the proposed initiated measure or against the referred measure.
(C.O. 103-2; renumbered to C.M.C. 103-3, eff. Jan. 1, 1972; a. Ord. No. 249-1979, eff. July 13, 1979)

Sec. 103-5. Argument for City.

The mayor may designate a committee of three persons, one or more of whom may be members of council, to prepare an argument or explanation against any proposed initiated measure, or in favor of any referred measure. Any argument or explanation prepared by such committee shall be filed with the clerk of council not later than 30 days before the election date.
(C.O. 103-3; a. Ord. No. 319-1960, eff. Sept. 14, 1960; renumbered to C.M.C. 103-5, eff. Jan. 1, 1972; a. Ord. No. 249-1979, eff. July 13, 1979)

Sec. 103-7. Length of Arguments.

Any argument or explanation filed by petitioners, not exceeding 300 words in length, shall be published without cost to the petitioners. If the copy submitted shall be in excess of 300 words, any extra expense occasioned thereby shall be paid in advance by the petitioners. Where excess copy is published on behalf of the petitioners, the argument or explanation filed by the committee appointed by the mayor shall not exceed in length that filed for the petitioners. Otherwise, said argument or explanation shall not exceed 300 words.
(C.O. 103-4; a. Ord. No. 319-1960, eff. Sept. 14, 1960; renumbered to C.M.C. 103-7, eff. Jan. 1, 1972; a. Ord. No. 249-1979, eff. July 13, 1979)

Chapter 104

CORPORATE SEAL, BOUNDARIES, STANDARDS

Sec. 104-1. Corporate Seal.
Sec. 104-1-A. Use of Corporate Seal on Councilmember Communications.
Sec. 104-2. Reproduction of the Corporate Seal.
Sec. 104-3. Official City Flag.
Sec. 104-5. Boundaries of the City.
Sec. 104-7. Annexation Records.
Sec. 104-9. Ward Boundaries.
Sec. 104-11. Datum Line—Base of Levels.
Sec. 104-13. Official Elevations—Permanent Bench Marks.
Sec. 104-19. Official City Tour.
Sec. 104-21. Official City Flower.
Sec. 104-23. Official Names.

Sec. 104-1. Corporate Seal.

The municipal corporation of Cincinnati, in Hamilton county, shall have a seal which shall consist of a center disc, within a circle. The outer circle shall contain the words "City of Cincinnati" above the disc and the word "Ohio" beneath the disc. At a point immediately above the center of the disc, there shall appear the numerals "1788," surmounted by the scales of justice and the words "Juncta Juvant." Below the numerals shall be a representation of a winged rod entwined by two serpents crossed by a sword. The proportional dimensions of the seal shall be according to the official design on file in the council chamber of the city of Cincinnati.
(C.O. 104-1; reordained as C.M.C. 104-1, eff. Jan. 1, 1972; a. Ord. No. 391-1979, eff. Sept. 12, 1979; a. Ord. No. 1-1983, eff. Jan. 3, 1983)

Sec. 104-1-A. Use of Corporate Seal on Councilmember Communications.

The corporate seal of the city of Cincinnati shall be used by members for council for communications, documents and other written instruments only for official city business and only on such communications, documents and other written instruments as are paid for at taxpayer expense as the same is provided by the appropriation of funds for expenses necessary for the performance by the member of council of official duties relating to the conduct of government or business of the city under the provisions of § 101-41 of this code.
(C.O. 104-1-A; ordained by Ord. No. 183-1995, eff. June 16, 1995)

Sec. 104-2. Reproduction of the Corporate Seal.

The design of the corporate seal of the city of Cincinnati shall not be reproduced, except as required by any provision of the Ohio Constitution, the Revised Code or the Cincinnati Municipal Code, unless permission to do so is first obtained from the city manager. The city manager may authorize reproduction of the design of the corporate seal when the purpose is to:

(a) Permit publication of a reproduction of the corporate seal of the city of Cincinnati;

(b) Aid educational or historical programs;

(c) Promote the economic or cultural development of the city in a manner deemed appropriate by the city manager.

No person shall use or permit to be used any reproductions or facsimile of the corporate seal or a counterfeit or nonofficial version of the corporate seal for any purpose not authorized by the city manager.

Whoever violates this section shall be guilty of unlawful reproduction of the corporate seal, a misdemeanor of the fourth degree.
(Ordained by Ord. No. 421-1983, eff. Oct. 8, 1983)

Sec. 104-3. Official City Flag.

The flag of Cincinnati shall be rectangular in shape. It shall have a white groundwork. In the center shall be a red letter "C". Extending horizontally from either side of the letter "C" shall be three wavy parallel lines of navy blue. Within the letter "C" shall be the seal of the city of Cincinnati in blue. Extending upward from a point at the top of the letter "C" and spaced equally from its center line shall be a cluster of five buckeye leaves in red. The proportional dimensions of the flag and of its various parts shall be according to the official design thereof on file in the council chamber of the city of Cincinnati.
(C.O. 104-2; renumbered to C.M.C. 104-3, eff. Jan. 1, 1972)

Sec. 104-5. Boundaries of the City.

The city engineer shall annually, on or about January 1, prepare and certify to the clerk of council two copies of an accurate description of the boundaries of the city.

When no boundary changes were made during the reporting year, a letter of explanation shall be submitted in lieu of a boundary description.

Such copies or letter shall be kept on file in the office of the clerk of council for the use of the public.
(C.O. 104-3; renumbered to C.M.C. 104-5, eff. Jan. 1, 1972; a. Ord. No. 355-1977, eff. Oct. 14, 1977)

Sec. 104-7. Annexation Records.

In addition to the copies of the description of city boundaries required by Section 104-5, the clerk of council shall keep on file for use by the public certified copies of all final ordinances effectuating the annexation of incorporated or unincorporated areas to the city, adopted by council subsequent to the preparation of the current description of city boundaries on file.
(C.O. 104-4; renumbered to C.M.C. 104-7, eff. Jan. 1, 1972; a. Ord. No. 249-1979, eff. July 13, 1979)

Sec. 104-9. Ward Boundaries.

The clerk of council shall keep on file for use by the public two certified copies of the currently effective ordinance dividing the city into wards. The title numbers and dates of passage of any annexation ordinances adding territory to any of the wards or creating new wards shall be noted on such copies.
(C.O. 104-5; renumbered to C.M.C. 104-9, eff. Jan. 1, 1972; a. Ord. No. 249-1979, eff. July 13, 1979)

Sec. 104-11. Datum Line—Base of Levels.

The datum of zero (0.000) plane for all engineering works under the direction and control of the city of Cincinnati is hereby established as mean sea level, as determined by the observation of the Coast and Geodetic Survey, and all grades or elevations hereafter established by the city of Cincinnati shall refer to this datum.
(C.O. 104-6; renumbered to C.M.C. 104-11, eff. Jan. 1, 1972)

Sec. 104-13. Official Elevations—Permanent Bench Marks.

The permanent bench mark system of the city of Cincinnati shall consist of 7 bench marks established by the U.S. Coast and Geodetic Survey prior to 1912, the 123 bench marks established by the Topographic Survey of 1912 and the 191 bench marks established by the Bench Mark Survey of 1933. The elevation of these 321 permanent bench marks, as checked or established by the Bench Mark Survey of 1933, are authorized for use on all engineering works in the city of Cincinnati.
(C.O. 104-7; renumbered to C.M.C. 104-13, eff. Jan. 1, 1972)

Sec. 104-19. Official City Tour.

The official scenic tour of Cincinnati, to be known as the Queen City Tour, shall be along the following route:

Beginning at Fountain Square; thence east of E. Fifth Street to Broadway; thence north (left) on Broadway to Seventh Street; thence east (right) over the Seventh Street Viaduct to Gilbert Avenue; thence northeastwardly (straight ahead) on Gilbert Avenue to Eden Park Drive; thence southeastwardly (right) and southwardly on Eden Park Drive, Museum Drive and Ida Street to Celestial Street; thence returning northwardly on Ida Street

and Museum Drive to Eden Park Drive; thence northwardly (right) on Eden Park Drive and Victory Parkway to Dana Avenue; thence east (right) on Dana Avenue to Vista Avenue; thence south (right) on Vista Avenue to Madison Road; thence east (left) on Madison Road to Observatory Avenue; thence east (right) on Observatory Avenue to Ault Park; thence through the Park to Principio Avenue; thence west (right) on Principio Avenue to Herschel Avenue; thence south (left) on Herschel Avenue to Linwood Avenue; thence westwardly (right) on Linwood Avenue to Tweed Avenue; thence south (left) on Tweed Avenue to Kroger Avenue; thence west (right) on Kroger Avenue to Stanley Avenue; thence southwardly (left) on Stanley Avenue, Vineyard Place and Tusculum Avenue to Alms Park; thence through the Park and return to Tusculum Avenue; thence northwardly (right) on Tusculum Avenue, Vineyard Place and Stanley Avenue to Grandin Road; thence west (left) on Grandin Road to Edwards Road; thence south (left) on Edwards Road to Grandin Road; thence northwardly (right) on Grandin Road to Madison Road; thence southwestwardly (left) on Madison Road and Victory Parkway to Wm. H. Taft Road; thence west (right) on Wm. H. Taft Road to Highland Avenue; thence south (left) on Highland Avenue to McGregor Avenue; thence west (right) on McGregor Avenue to Auburn Avenue; thence north (right) on Auburn Avenue to Wm. H. Taft Road; thence west (left) on Wm. H. Taft Road to Jefferson Avenue; thence north (right) on Jefferson Avenue, Take "To Vine", turning left to W. St. Clair Avenue; thence east (right) on W. St. Clair Avenue and Melish Avenue to Burnet Avenue; thence north (left) on Burnet Avenue to Erkenbrecher Avenue; thence west (left) on Erkenbrecher Avenue to Vine Street; thence northwardly (right) on Vine Street to Woolper Avenue; thence west (left) on Woolper Avenue to Clifton Avenue; thence south (left) on Clifton Avenue to McAlpin Avenue; thence west (right) on McAlpin Avenue to Middleton Avenue; thence north (right) on Middleton Avenue to Lafayette Avenue; thence west (left) on Lafayette Avenue to Mt. Storm Park; thence through the Park east (back) on Lafayette Avenue to Clifton Avenue; thence south (right) on Clifton Avenue to McMillan Street; thence west (right) on McMillan Street to Fairview Park entrance; thence southwardly (left) and eastwardly through the Park to Ravine Street; thence south (right) on Ravine Street to McMicken Avenue; thence east (left) on McMicken Avenue to Mohawk Place; thence south (right) on Mohawk Place and Linn Street to Lincoln Park Drive; thence west (right) on Lincoln Park Drive to the Cincinnati Union Terminal; thence east (back) on Lincoln Park Drive to Freeman Avenue; thence south (right) on Freeman Avenue to W. Eighth Street; thence west (right) on W. Eighth Street and Glenway Avenue to Grand Avenue; thence south (left) on Grand Avenue to Price Avenue; thence east (left) on Price Avenue to Matson Place; thence south (right) on Matson Place to W. Eighth Street; thence west (right) on W. Eighth Street to Elberon Avenue; thence south (left) on Elberon Avenue to Mt. Echo Park; thence through the Park and back to Elberon Avenue; thence southwardly and eastwardly (right) on Elberon Avenue, Waldvogel Memorial Viaduct and W. Sixth Street to the intersection of W. Fifth Street and Central Avenue; thence east (straight ahead) on W. Fifth Street to Fountain Square, the place of beginning.

(Ordained by Ord. No. 61-1969, eff. Mar. 14, 1969; 119 uncodified ordinance; reordained as C.M.C. 104-19, eff. Jan. 1, 1972)

Sec. 104-21. Official City Flower.

The official city flower shall be the geranium.

(Enacted by Resolution of Apr. 19, 1961; reordained as C.M.C. 104-21, eff. Jan. 1, 1972)

Sec. 104-23. Official Names.

No official name may be given to any municipal site or building unless the name has been approved by council. Appropriate departments, boards or commissions may recommend to the council for approval names for municipal sites and buildings under their jurisdiction.

(C.M.C. 104-23; ordained by Ord. No. 115-1974, eff. April 26, 1974)

Chapter 105

MUNICIPAL REFERENCE LIBRARY
REPEALED

Sec. 105-1. Purpose.
(C.O. 105-1; reordained as C.M.C. 105-1, eff. Jan. 1, 1972; a. Ord. No. 413-1976, eff. Sept. 9, 1976; r. eff. July 8, 2004)

Sec. 105-3. Special Studies.
(C.O. 105-2; renumbered to C.M.C. 105-3, eff. Jan. 1, 1972; r. eff. July 8, 2004)

Sec. 105-5. Exchange of Municipal Publications.
(C.O. 105-3; renumbered to C.M.C. 105-5, eff. Jan. 1, 1972; a. Ord. No. 249-1979, eff. July 13, 1979; r. eff. July 8, 2004)

Chapter 106

BIDS, CONTRACTS, PURCHASES, SALES AND LEASES (REPEALED)*

*__Editor's note—__Repealed by Ord. No. 426-1992, eff. Oct. 23, 1992.

Chapter 107

(RECODIFIED)*

*__Editor's note—__The material originally located in this chapter has been recodified and moved to Chapter 331.

Chapter 108

ADMINISTRATIVE SERVICES

Sec. 108-1. Polygraph Equipment.
Sec. 108-3. Radio Transmission Service.
Sec. 108-5. Direct Alarm Terminations to the City of Cincinnati Police Division.
Sec. 108-7. Visa References.
Sec. 108-9. Press Passes.
Sec. 108-11. Fingerprinting.
Sec. 108-13. Parking Rates in Municipal Off-Street and On-Street Parking Facilities.
Sec. 108-15. Comfort Station Concessions.

Sec. 108-1. Polygraph Equipment.

The city manager or the person so designated by the city manager is hereby authorized to promulgate rules and adopt a schedule of fees for the use of polygraph equipment.
(Sec. 106-27; ordained by Ord. No. 96-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 109-27, eff. Jan. 1, 1972; a. Ord. No. 327-1975, eff. Sept. 1, 1975; renumbered to C.M.C. 108-1 and a. Ord. No. 249-1979, eff. July 13, 1979; a. Ord. No. 282-1979, eff. Sept. 1, 1979; a. Ord. No. 362-1982, eff. Oct. 9, 1982)

This section was first codified by Ord. No. 96-1969. Preceding ordinances dealing with the same subject matter were Ord. Nos. 191-1946 and 267-1962.

Sec. 108-3. Radio Transmission Service.

The city manager is hereby authorized to receive and transmit by radio, messages for local governmental bodies of this or other counties and states.

A charge of $2 is hereby established for each message transmitted.
(Sec. 106-31; ordained by Ord. No. 91-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 109-31 eff. Jan. 1, 1975; a. Ord. No. 327-1975, eff. Sept. 1, 1975; renumbered to C.M.C. 108-3 and a. Ord. No. 249-1979, eff. July 13, 1971); a. Ord. No. 282-1979, eff. Sept. 1, 1979)

This section was first codified by Ord. No. 91-1969. Preceding ordinances dealing with the same subject matter were Ord. Nos. 321-1941 and 269-1962.

Sec. 108-5. Direct Alarm Terminations to the City of Cincinnati Police Division.

The city manager or the person designated by the city manager is hereby authorized to promulgate rules and adopt a schedule of fees for the use and maintenance of city communications systems and city property by business establishments requesting direct installation of security alarm systems to the Cincinnati police division. The regulations shall relate to eligibility of establishments for obtaining such service, nature and type of alarm receiving equipment to be connected to the city facilities, the number of such connections to be permitted, and the procedures to be followed in regard to installation, maintenance, use of and application for such installations. The regulations and fee schedule shall be based upon but not limited to consideration of space and personnel requirements, cost to the city, and the practical and efficient operation of the system, in the best interest of law enforcement and the city. The fee schedule shall include but is not limited to charges for connections, service fee and a false alarm fee.
(Sec. 106-35; ordained by Ord. No. 124-1970, eff. Apr. 29, 1970; renumbered to C.M.C. 109-33, eff. Jan. 1, 1972; a. Ord. No. 327-1975, eff. Sept. 1, 1975; renumbered to C.M.C. 108-5 and amended Ord. No. 249-1979, eff. July 13, 1979; a. Ord. No. 282-1979, eff. Sept. 1, 1979; a. Ord. No. 192-1982, eff. June 25, 1982)

Sec. 108-7. Visa References.

The chief of police of the Cincinnati police division or the person designated by the chief of police is hereby authorized to furnish written character references and to set the fee for references issued to persons for use in application for visas and passports to foreign countries.
(C.O. 737-12; a. Ord. No. 90-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 109-35, eff. Jan. 1, 1972; a. Ord. No. 327-1975; eff. Sept. 1, 1975; renumbered to C.M.C. 108-7 and amended Ord. No. 249-1979, eff. July 13, 1979; a. Ord. No. 282-1979, eff. Sept. 1, 1979; a. Ord. No. 193-1982, eff. June 25, 1982)

Sec. 108-9. Press Passes.

The director of safety or the person designated by the director of safety is hereby authorized to issue press passes to members

of the news media and to adopt regulations for the use of and to set the fee for press passes.

Sec. 108-11. Fingerprinting.

The city manager or the person designated by the city manager is hereby authorized to set the fee and promulgate rules for rendering fingerprinting services and the chief of the Cincinnati police division is hereby authorized to provide fingerprinting services to individuals for private purposes.

(C.M.C. 109-39; ordained by Ord. No. 121-1977, eff. Apr. 6, 1977; renumbered to C.M.C. 108-11 and a. Ord. No. 249-1979, eff. July 13, 1979; a. Ord. No. 552-1982, eff. Jan. 28, 1983)

Sec. 108-13. Parking Rates in Municipal Off-Street and On-Street Parking Facilities.

The city manager is hereby authorized to fix, amend, revise, and collect charges and fees for parking in all city-owned off-street and on-street parking facilities including parking meters.

(Sec. 108-13; ordained by Ord. No. 207-1959, eff. July 17, 1959; renumbered to C.M.C. 109-9, eff. Jan. 1, 1972; renumbered to C.M.C. 108-13 by Ord. No. 249-1979, off. July 13, 1979; a. Ord. No. 143-2004, eff. May 27, 2004)

Sec. 108-15. Comfort Station Concessions.

The city manager is hereby authorized and directed to execute agreements for concessions for the operation of the public comfort stations of the city for a period not in excess of five years, and under such conditions as may be prescribed by the city manager; the award to be made to the highest and best bidder therefor according to law.

(C.O. 106-6; renumbered to C.M.C. 109-7, eff. Jan. 1, 1972; renumbered to C.M.C. 108-15 by Ord. No. 249-1979, eff. July 13, 1979)

Chapter 109

MISCELLANEOUS

Sec. 109-1. Oath of Office.
Sec. 109-3. Use of Vote Tabulating Machines in City Elections.

Sec. 109-1. Oath of Office.

All executive and administrative officers, all heads of departments and all members of boards and commissions shall, before entering upon the discharge of their respective duties, take an oath or affirmation faithfully to perform the same.
(C.O. 106-1; renumbered to C.M.C. 109-1, eff. Jan. 1, 1972)

Sec. 109-3. Use of Vote Tabulating Machines in City Elections.

Vote tabulating machines for sorting of ballots and tabulating the results thereof, may be used in municipal elections and such elections shall be conducted in accordance with the laws of the state of Ohio, now or hereafter in force, relating to voting and tabulating equipment and the rotation of the names of candidates on ballots to be used thereunder.
(Sec. 106-15; ordained by Ord. No. 363-1965, eff. Sept. 1, 1966; renumbered to C.M.C. 109-11, eff. Jan. 1, 1972; renumbered to C.M.C. 109-3 by Ord. No. 249-1979, eff. July 13, 1979)

Chapter 110

CLAIMS AGAINST CITY

Sec. 110-1. Claims Against City Employees in Their Individual Capacities.
Sec. 110-3. Personal Injury, Death and Property Damage Claims Against City.
Sec. 110-5. Personal Injury, Death and Property Damage Claims Against City by Persons Aiding Law Enforcement or Crime Prevention.

Sec. 110-1. Claims Against City Employees in Their Individual Capacities.

The city solicitor, upon approval by the city manager, may authorize the proper officers to pay compensatory damage claims arising out of a civil action, or threat of civil action, or settlements arising therefrom. The council shall authorize the payment of any judgment, expenses, costs and attorney fees which are assessed, after a trial before a judge or jury, against any city employee, officer, agent, member of any city board, commission, or member of council when such claim resulted from activities which were done in:

(a) Good faith, and

(b) In the reasonable belief that such activities were in the best interest of the city and in furtherance of the official practices and policies of the city, and

(c) Within the scope of authority of the person so acting, and

(d) Within the course of employment of the person so acting, and

(e) Were not willful, malicious or wanton.

Nothing in this section shall be construed as waiving the city's defense of governmental function or governmental immunity in any action brought against the city or its employees, officers, agents, members of any city board or commission, or members of council for damages.
(C.M.C. 109-12; ordained by Ord. No. 413-1973, eff. Oct. 12, 1973; a. Ord. No. 267-1976, eff. June 23, 1976; renumbered to C.M.C. 110-1 by Ord. No. 249-1979, eff. July 13, 1979)

Sec. 110-3. Personal Injury, Death and Property Damage Claims Against City.

The proper officers are hereby authorized to pay damage claims to the extent of current or future out-of-pocket expenses, based on personal injury, death or property damage caused by the negligence of city employees carrying out governmental functions in those cases where, in the opinion of the city solicitor, the city would be liable except for its defense of governmental immunity.

Nothing in this section shall be construed as waiving the city's defense of governmental function or governmental immunity in any action brought against the city for damages based upon personal injury, death or property damage caused by the negligence of a city employee, officer, or agent.
(Ordained by Ord. No. 143-1960, eff. May 13, 1960, as uncodified ordinance; reordained as C.M.C. 109-13, eff. Jan. 1, 1972; renumbered to C.M.C. 110-3 by Ord. No. 249-1979, eff. July 13, 1979)

Sec. 110-5. Personal Injury, Death and Property Damage Claims Against City by Persons Aiding Law Enforcement or Crime Prevention.

The director of finance is hereby authorized to draw his warrant upon the city treasurer based on claims to the extent of current and future out-of-pocket expenses for personal injury, death or property damage received by persons, other than peace officers, while attempting to apprehend a person or persons suspected of committing a crime, or while attempting to prevent the commission of a crime, preserve the peace or prevent public disturbances.

Such payment shall be a matter of grace and not of right, shall not exceed $10,000 and shall not be made except upon the recommendation of the city solicitor and the director of safety, and approval of the city manager.

Before payment is made, the claimant must execute and deliver an assignment to the city of Cincinnati in a form approved by the city

solicitor agreeing to reimburse the amount of the payment to the city of Cincinnati to the extent of any sum of money obtained by the claimant arising out of the incident entitling the claimant to said payment. Such sum of money may arise from a judgment, settlement or otherwise against anyone legally responsible for the damage.

(Ordained by Ord. No. 439-1966, eff. Dec. 30, 1966 as uncodified ordinance; reordained as C.M.C. 109-14, eff. Jan. 1, 1972; renumbered to C.M.C. 110-5 and a. Ord. No. 249-1979, eff. July 13, 1979)

Chapter 111

COUNCIL HEARINGS AND APPEALS

Sec. 111-1. Hearings on Zoning Regulations.
Sec. 111-3. Appeals to Council.
Sec. 111-5. Notice and Hearings on Notwithstanding Ordinances.

Sec. 111-1. Hearings on Zoning Regulations.

A committee of council shall hold a public hearing on a proposed ordinance to amend the zoning code or the building zone map before reporting its recommendation to council. The clerk of council shall fix the time and place for the hearing. The clerk shall publish notice of the public hearing in the City Bulletin or in another newspaper of general circulation in the city. Council may pass an ordinance to establish an interim development control district without prior public hearing or notice. Except in the case of an extension of an Interim Development Control Overlay District, the clerk shall keep available for public inspection at least 14 days in advance of the hearing a copy of the proposed ordinance and all maps, plans, and reports relating to the ordinance received from the city planning commission. The clerk shall also mail notice of the public hearing on an ordinance to amend the building zone map to a community council representing the area to be rezoned. The clerk shall mail notice of the public hearing on an ordinance to amend the zoning code to all community councils.

If the ordinance is to amend the building zone map by rezoning ten or fewer parcels the clerk shall mail notice to the owners of property within, contiguous to, or directly across a public street from the area being rezoned. The owners and their mailing addresses shall be determined from the current tax list of the county auditor.

Except in the case of an extension of an Interim Development Control Overlay District, the clerk, when required to give notice, shall cause the advertisement to appear and send the notice by first class mail at least 14 days in advance of the hearing. The failure to notify by mail a person, other than an owner of property, required to be mailed notice shall not invalidate an ordinance.

In the case of an extension of an Interim Development Control Overlay District, the clerk, when required to give notice, shall cause the advertisement to appear and send the notice by first class mail at least 7 days in advance of the hearing. The failure to notify by mail a person, other than an owner of property, required to be mailed notice shall not invalidate an ordinance. The clerk shall keep available for public inspection at least 7 days in advance of the hearing a copy of the proposed ordinance and all maps, plans, and reports relating to the ordinance received from the city planning commission.

A community council shall mean an organization participating in the neighborhood support program or included on a list of community councils approved by the city council and filed with the clerk. The area of representation of a community council shall be shown on a map approved by the city council and filed with the clerk. City council may approve a map showing an area as being represented by more than one community council.

Section 713.12 of the Ohio Revised Code is hereby declared inoperative in the City of Cincinnati.

(Sec. 106-17; ordained by Ord. No. 4-1969, off. Feb. 1, 1969; renumbered to C.M.C. 109-15, eff. Jan. 1, 1972; a. Ord. No. 508-1974, eff. Dec. 18, 1974; renumbered to C.M.C. 111-1 and a. Ord. No. 249-1979, eff. July 13, 1979; a. Ord. No. 234-1993, eff. July 23, 1993; Emer. Ord. No. 36-2005, eff. Jan. 26, 2005)

Cross reference—Zoning code of the City of Cincinnati, tit. XIV.

Sec. 111-3. Appeals to Council.

This section shall provide for the conduct of appeals taken to the council pursuant to applicable ordinance. An appeal shall be taken by filing a written notice of appeal with the city board, commission or the official that conducted the hearing within 30 days of the

date of mailing of the decision being appealed. The appellant shall serve a copy of the notice of appeal with the clerk of council and all persons who expressed a position in writing or testified in opposition at the hearing and serve the clerk of council with a copy of the notice of appeal and with a list of all persons served with the notice. Within 21 days of the filing of the notice of appeal, the appellant shall cause a complete record of the decision being appealed to be filed with the clerk of council. The appellant shall bear the cost of the preparation of the transcript.

On receipt of the record, the clerk shall place the appeal on the next regular agenda of the council. Council shall refer the appeal to a committee of council which shall consider the appeal no later than the third regularly scheduled committee meeting after reference. The committee shall in its consideration of the appeal be confined to the record as filed unless it appears on the face of the record or by affidavit filed by the appellant that:

(a) The record does not contain a report of all evidence admitted or proffered by the appellant.

(b) The testimony adduced was not given under oath.

(c) The appellant was not permitted to appear and to be heard in person or by counsel in opposition to the order appealed from:

(1) To present the position, arguments and contentions of the appellant;

(2) To offer and examine witnesses and present evidence in support thereof;

(3) To cross-examine witnesses purporting to refute the position, arguments and contentions of the appellant;

(4) To offer evidence to refute evidence and testimony offered in opposition to the position, arguments and contentions of the appellant; or

(5) To proffer any such evidence into the record, if the admission thereof was denied by the officer or body appealed from.

The committee may remand a matter to the board, commission or official that conducted the hearing below in order to cure any such deficiency or enter such other order as justice may require. Otherwise, the committee shall not receive any additional testimony or evidence. The appellant and any person who expressed a position in writing or testified in opposition below shall have an opportunity personally or through counsel to present arguments based on the evidence in the transcript. No other person shall have any right to be heard. Upon consideration of the evidence in the record and the arguments presented, the committee shall recommend to the council that the decision below be affirmed, modified, or reversed, in whole or in part, in accordance with all applicable laws, ordinances and regulations. Whereupon Council shall adopt such order as is just, no later than the second regularly scheduled meeting of council following the committee recommendation.

(C.M.C. 109-16; ordained by Ord. No. 299-1978, eff. July 6, 1978; renumbered to C.M.C. 111-3 and a. Ord. No. 249-1979, eff. July 13, 1979; a. Ord. No. 287-1988, eff. Aug. 3, 1988; a. Ord. No. 111-1992, eff. April 17, 1992; a. Ord. No. 361-1994, eff. Oct. 28, 1994)

Sec. 111-5. Notice and Hearings on Notwithstanding Ordinances.

The property owner shall file a written application with the Director of City Planning outlining the need for relief from existing legislative and administrative proce-

dures. The application shall include the address of the subject property, the name and address of the property owner, the proposed use of the property, a copy of the building zone map showing the subject property, and a statement outlining all of the practical difficulties created by following existing legislative and administrative procedures. The director shall immediately forward a copy of the application to the clerk of council and shall prepare a report on the application, which shall be submitted to the clerk of council prior to the scheduled public hearing. The failure to receive a staff report prior to the public hearing shall not prohibit the committee from proceeding with the scheduled public hearing and shall not invalidate an ordinance.

A committee of council shall hold a public hearing on a proposed notwithstanding ordinance relative to the zoning code or the building zone map before reporting its recommendation to council. The clerk of council shall fix the time and place for the hearing. The clerk shall publish notice of the public hearing in the City Bulletin or in another newspaper of general circulation in the city at least 14 days in advance of the hearing. The clerk shall keep a copy of the application available for public inspection at least 14 days in advance of the hearing.

The clerk shall also mail notice of the public hearing to a community council representing the location of the application and to all owners of property located within a 400-foot radius of the subject property at least 14 days prior to the hearing. The owners and their mailing addresses shall be determined from the current tax list of the county auditor. The failure to notify by mail an owner of property or a community council shall not invalidate an ordinance.

A community council shall mean an organization participating in the neighborhood support program or included on a list of community councils approved by the city council and filed with the clerk. The area of representation of a community council shall be shown on a map approved by the city council and filed with the clerk. City council may approve a map showing an area as being represented by more than one community council.

The committee of council shall consider the following when making a recommendation to council:

Whether the proposed application will not have an adverse effect on the character of the area or the public health, safety and welfare;

Whether the proposed application is consistent with the purposes of this code and the zoning district where the subject property is located including but not limited to:

(a) Providing a guide for the physical development of the city.

(b) Preserving the character and quality of residential neighborhoods.

(c) Fostering convenient, harmonious and workable relationships among land uses.

(d) Achieving the arrangement of land uses described in the comprehensive plan for the development of the city as may have been adopted by council.

(e) Promoting the economic stability of existing land uses and protecting them from intrusions by inharmonious or harmful land uses.

(f) Providing opportunities for economic development and new housing for all segments of the community.

(g) Creating pedestrian-friendly environments to reduce reliance on the automobile for travel.

(h) Preventing excessive population densities and overcrowding of land or buildings.

(i) Ensuring the provision of adequate open space for light, air and fire safety.

(j) Ensuring that development is compatible with the environment, particularly on the hillsides and along the riverfront.

(k) Promoting the conservation, protection, restoration and enhancement of the historic resources of the city.

(l) Lessening congestion in the public streets by providing for off-street parking and loading areas for commercial vehicles.

(m) Providing effective signage that is compatible with the surrounding urban environment.

(n) Setting standards by which a nonconforming use may continue to function and to provide for the adaptive reuse of nonconforming buildings.

The committee's recommendation to council may include conditions or limitations on the use of the subject property and the length of time for continuation of the use of the subject property.

(Ordained by Ord. No. 381-2007, eff. Nov. 24, 2007; Emer. Ord. No. 141-2015, § 85, eff. July 1, 2015)

Chapter 112

LOBBYIST REGISTRATION

Sec. 112-1. Definitions.
Sec. 112-1-A. Actively Advocate.
Sec. 112-1-C. Clerk.
Sec. 112-1-C2. Client.
Sec. 112-1-C3. Compensation.
Sec. 112-1-E. Engage; Engagement.
Sec. 112-1-F. Financial Transaction.
Sec. 112-1-L. Legislation.
Sec. 112-1-L1. Lobbyist.
Sec. 112-1-P. Person.
Sec. 112-1-R. Regulated Official.
Sec. 112-1-S. Staff.
Sec. 112-3. Prohibitions.
Sec. 112-5. Registration of Engagement and Updates.
Sec. 112-7. Reporting of Financial Transactions.
Sec. 112-9. Repealed.
Sec. 112-11. Exceptions.
Sec. 112-13. Contingent Fees Prohibited.
Sec. 112-15. Duties of the Clerk Regarding Lobbyists.
Sec. 112-17. Action on Referrals for Investigation.
Sec. 112-99. Penalty.

Sec. 112-1. Definitions.

For purposes of this chapter, the words and phrases defined in the sections hereunder shall have the meanings therein respectively ascribed to them unless a different meaning is clearly indicated by the context.
(Ordained by Ord. No. 151-1997, eff. June 20, 1997)

Sec. 112-1-A. Actively Advocate.

"Actively advocate" means to promote, advocate, or oppose the passage, modification, or defeat of any legislation by direct communication with any regulated official or staff member. "Actively advocate" does not include the action of any person who has a direct interest in legislation and who, acting under section 3 of article I of the Ohio constitution, assembles together with others to consult for their common good, instruct a regulated official or staff member, or petition a regulated official or staff member for the redress of grievances, unless that person is engaged by a client for that purpose.
(Ordained by Ord. No. 151-1997, eff. June 20, 1997; a. Ord. No. 299-2024, § 2, eff. January 1, 2025)

Sec. 112-1-C. Clerk.

"Clerk" means the clerk of council.
(Ordained by Ord. No. 299-2024, § 1, eff. January 1, 2025)

Sec. 112-1-C2. Client.

"Client" means any person who, directly or indirectly, engages a lobbyist to actively advocate.
(Ordained by Ord. No. 299-2024, § 1, eff. January 1, 2025)

Sec. 112-1-C3. Compensation.

"Compensation" means a salary, gift, payment, benefit, subscription, loan, advance, reimbursement, or deposit of money or anything of value; or a contract, promise, or agreement, whether or not legally enforceable, to provide a salary, gift, payment, benefit, subscription, loan, advance, reimbursement, or deposit of money or anything of value.
(Ordained by Ord. No. 151-1997, eff. June 20, 1997; a. Ord. No. 299-2024, § 2, eff. January 1, 2025)

Editor's note—Ord. No. 299-2024, § 2, effective, January 1, 2025, renumbered § 112-1-C as § 112-1-C3.

Sec. 112-1-E. Engage; Engagement.

"Engage" means to make any arrangement, and "engagement" means any such arrangement, where a client employs or retains a lobbyist for compensation to actively advocate.
(Ordained by Ord. No. 151-1997, eff. June 20, 1997; a. Ord. No. 299-2024, § 2, eff. January 1, 2025)

Editor's note—Ord. No. 299-2024, §§ 2, 3, effective January 1, 2025, repealed § 112-1-E and renumbered § 112-1-E1 as § 112-1-E. Former § 112-1-E pertained to the definition of employer and derived from Ord. No. 151-1997, effective June 20, 1997.

Sec. 112-1-F. Financial Transaction.

(a) "Financial transaction" means a transaction or activity that is conducted or undertaken for profit and arises from the joint ownership, or the ownership or part ownership in common, of any real or personal property or any commercial or business enterprise, of whatever form or nature, between the following:

(1) A lobbyist or client; and

(2) Any regulated official or staff member.

(b) For purposes of this section, if the lobbyist or client is an individual, "lobbyist" and "client" mean the individual, the individual's spouse, and the individual's dependent children. If the lobbyist or client is an entity, such as a limited liability

company, corporation, partnership, trust, or unincorporated association, "lobbyist" and "client" mean the following:

(1) the entity itself;

(2) the owners, members, or partners of such entity and their spouses and dependent children, provided that such owner, member, or partner owns or controls twenty percent or more of the entity; and

(3) the directors and principal officers of such entity and their spouses.

(c) "Financial transaction" does not include any transaction or activity described in this section if it is available to the general public on the same terms, or if it is an offer or sale of securities to any person listed in this chapter that is governed by regulation D, 17 C.F.R. 2301.501 to 2301.508, adopted under the authority of the "Securities Act of 1933," 48 Stat. 74, 15 U.S.C.A. and following, or that is governed by a comparable provision under state law.
(Ordained by Ord. No. 151-1997, eff. June 20, 1997; a. Ord. No. 299-2024, § 2, eff. January 1, 2025)

Sec. 112-1-L. Legislation.

"Legislation" means ordinances, resolutions, amendments, nominations, and any other matter pending before council.
(Ordained by Ord. No. 151-1997, eff. June 20, 1997; a. Ord. No. 299-2024, § 2, eff. January 1, 2025)

Sec. 112-1-L1. Lobbyist.

"Lobbyist" means any person who is engaged by a client to actively advocate.
(Ordained by Ord. No. 151-1997, eff. June 20, 1997; a. Ord. No. 299-2024, § 2, eff. January 1, 2025)

Sec. 112-1-P. Person.

"Person" means any individual, business, company, partnership, trust, estate, business trust, association, corporation, or other legally recognized entity; any labor organization or manufacturer association; any department, commission, board, college, university, chapter, institution, bureau, or other instrumentality of the state; or any county, township, municipal corporation, school district, or other political subdivision of the state.
(Ordained by Ord. No. 151-1997, eff. June 20, 1997; a. Ord. No. 299-2024, § 2, eff. January 1, 2025)

Sec. 112-1-R. Regulated Official.

"Regulated official" means the mayor, members of council, the city manager, assistant city managers, the director of any department created under the charter or administrative code of the city, and any person appointed by the mayor and council to any of the city's independent boards, commissions, or advisory bodies.
(Ordained by Ord. No. 299-2024, § 2, eff. January 1, 2025)

Sec. 112-1-S. Staff.

"Staff" means those hired by the mayor and members of council to work in their offices and city employees who are required to file a financial disclosure statement under article XXVI of the administrative code.
(Ordained by Ord. No. 151-1997, eff. June 20, 1997; a. Ord. No. 299-2024, § 2, eff. January 1, 2025)

Sec. 112-3. Prohibitions.

(a) No lobbyist shall knowingly fail to register an engagement as required by section 112-5.

(b) No lobbyist shall knowingly fail to provide information as required by sections 112-5 or 112-7.

(c) No lobbyist shall knowingly provide false information in response to the requirements of sections 112-5 or 112-7.

(d) No person shall knowingly cause a lobbyist to violate subsections (a), (b), or (c) of this section.
(Ordained by Ord. No. 151-1997, eff. June 20, 1997; a. Ord. No. 299-2024, § 2, eff. January 1, 2025)

Sec. 112-5. Registration of Engagement and Updates.

(a) Each lobbyist, within ten business days following a client's engagement of the lobbyist, shall register the engagement with the clerk using the process and forms provided by the clerk and shall provide the following information:

(1) The name, business address, phone number, email address, and occupation of the lobbyist;

(2) The name, business address, phone number, email address, and principal business of the client on whose behalf the lobbyist is actively advocating, except that, for the purposes of this section, where a trade association or other charitable or fraternal organization that is exempt from federal income taxation under subsection 501(c) of the federal Internal Revenue Code is the client, the statement need not list the names and addresses of each member of the association or organization, so long as the association or organization itself is listed;

(3) A description of the type of legislation to which the engagement relates; and

(4) Other information as determined by the clerk.

(b) Each lobbyist shall update all registered engagements that have not been terminated, including those that have expired, not later than the last business day of January and July of each year, each update covering the period ending the last day of the previous December and June, respectively. Lobbyists shall provide such updates using the process and forms provided by the clerk. Each such update shall do the following:

(1) Confirm the continuing existence of the engagement described in the initial registration;

(2) Confirm the accuracy of the information provided in the initial registration;

(3) Identify the specific legislation regarding which the lobbyist actively advocated under the engagement during the previous six-month reporting period;

(4) Identify any additional types of legislation to which the engagement is anticipated to relate within the next six-month reporting period, if the engagement has not expired or been terminated;

(5) Provide the details of any financial transactions required to be reported by section 112-7; and

(6) Provide other information as determined by the clerk.

(c) Within 28 calendar days after the termination of an engagement, the lobbyist shall update the registration to reflect such termination and shall include in such update any information required to be provided in an update under subsection (b) of this section, for the period up to and including the date on which the engagement was terminated.

(d) Except as otherwise provided in this chapter, the clerk shall charge a registration fee for a lobbyist's initial registration of an engagement. No fee shall be charged for updating or terminating a registration. The clerk shall determine and adjust the amount of the fee annually based on the estimated operational cost of administering the lobbyist registration program, and the fee determined by the clerk shall be effective upon approval by the city manager. The clerk shall post the fee on the city's website. The clerk shall not charge a fee to an officer or employee of a state agency or city department who actively advocates in such person's fiduciary capacity as a representative of that state agency or city department. As used in this section, "state agency" does not include a state institution of higher education as defined in O.R.C. Section 3345.011.

(e) A lobbyist's engagement is registered as required by this chapter when the lobbyist receives notice from the clerk confirming the registration. The registration shall be valid from the date such registration confirmation is received until the last business day of each odd-numbered year, at which time it shall expire unless earlier terminated pursuant to subsection (c) of this section.

(f) The clerk shall review each registration and update required by this section to determine whether the registration or update contains the information required by this section, except that the clerk shall not be required to review information reported regarding financial transactions or contact or attempt to contact lobbyists regarding the reporting of financial transactions.

(1) If the clerk determines that the registration or update does not contain the required information, the clerk shall make a reasonable attempt to contact the lobbyist using the contact information provided in the deficient registration or update, to notify the lobbyist of the deficiency.

(2) The clerk shall have no responsibility to inform lobbyists of their duties under this chapter, but if the clerk determines that a lobbyist has failed to register or provide an update as required by this chapter, the clerk shall make a reasonable attempt to contact the lobbyist using whatever information is available to notify the lobbyist of the failure to register or update a registration.

(g) Within 21 calendar days of the clerk's attempt to notify a lobbyist of a deficient registration or failure to register or update a registration, such lobbyist shall properly register or update the registration so that it contains the information required by this section. If any lobbyist whom the clerk has made a reasonable attempt to contact under this chapter fails to properly register or update a registration within the required time, the clerk shall refer such person to the ethics and good government counselor in the department of law, who shall take appropriate action as authorized or required by section 112-17. If the clerk refers a person to the ethics and good government counselor, the clerk shall also notify the city manager and each member of council in writing of the referral.

(h) The clerk shall provide any information received regarding unreported or improperly reported financial transactions to the ethics and good government counselor, who shall take appropriate action pursuant to section 112-17.

(Ordained by Ord. No. 151-1997, eff. June 20, 1997; a. Ord. No. 299-2024, § 2, eff. January 1, 2025)

Cross reference—Penalty, § 112-99.

Sec. 112-7. Reporting of Financial Transactions.

(a) Concurrent with each update to a registration required by section 112-5(b) and (c), lobbyists shall report all financial transactions occurring during the period the update covers using the process and forms provided by the clerk. Lobbyists shall provide the following information:

(1) The name of the lobbyist, client, or other person involved in the financial transaction;

(2) The name of the regulated official or staff member for whose benefit the transaction was entered into;

(3) The purpose and nature of the transaction;

(4) The actual or anticipated value of the transaction;

(5) The date the transaction was made or entered into; and

(6) Other information as determined by the clerk.

(b) The clerk shall require lobbyists to certify with each update that they have inquired of their clients and all relevant persons whose financial transactions are potentially reportable regarding an engagement whether any financial transactions have occurred during the reporting period and that the lobbyist has reported all such information, including information the lobbyist reports on the lobbyist's own behalf, truthfully and accurately.
(Ordained by Ord. No. 151-1997, eff. June 20, 1997; a. Ord. No. 299-2024, § 2, eff. January 1, 2025)

Sec. 112-9. Repealed.
(Ordained by Ord. No. 151-1997, eff. June 20, 1997; r. Ord. No. 299-2024, § 2, eff. January 1, 2025)

Sec. 112-11. Exceptions.

(a) Sections 112-5 and 112-7 do not apply to persons who actively advocate solely through any of the following:

(1) Appearances before meetings of the committees of council or the full council, or appearances before public hearings of the committees of council; or

(2) Statements or articles published through publicly accessible media, whether print, broadcast, or online, and whether directly or through intermediaries.

(b) Sections 112-1 to 112-17 do not apply to professional services provided in drafting ordinances or resolutions, preparing arguments thereon, or in advising clients and rendering opinions as to the construction and effect of proposed or pending legislation, if the services are not otherwise connected with actions to actively advocate.

(c) Nothing in sections 112-1 to 112-17 prohibits any elected official from soliciting or accepting, or requires reporting of, a contribution from or expenditure by any person, provided that such contribution or expenditure is otherwise subject to disclosure under applicable city law, including the charter.
(Ordained by Ord. No. 151-1997, eff. June 20, 1997; a. Ord. No. 299-2024, § 2, eff. January 1, 2025)

Sec. 112-13. Contingent Fees Prohibited.

No person shall engage any person to actively advocate in exchange for compensation that is contingent in any way upon the passage, modification, or defeat of any legislation. No person shall accept any engagement to actively advocate in exchange for

compensation that is contingent in any way upon the passage, modification, or defeat of any legislation.
(Ordained by Ord. No. 151-1997, eff. June 20, 1997)

Cross reference—Penalty, § 112-99.

Sec. 112-15. Duties of the Clerk Regarding Lobbyists.

The clerk shall establish processes and forms for the collection and maintenance of the registrations and updates required by this chapter. The clerk may promulgate and revise rules and regulations to achieve the purposes of this chapter, which shall become effective when approved by the city manager and posted on the city's website. The registrations and updates required by this chapter, including reporting of financial transactions, are public records, and the clerk shall digitize the information submitted so that it is readily accessible to the public. The clerk shall notify every person submitting any information required by this chapter of the following: "ANY PERSON WHO KNOWINGLY FILES A FALSE STATEMENT IS GUILTY OF FALSIFICATION UNDER SECTION 2921.13 OF THE REVISED CODE, WHICH IS A MISDEMEANOR OF THE FIRST DEGREE."
(Ordained by Ord. No. 151-1997, eff. June 20, 1997; a. Ord. No. 299-2024, § 2, eff. January 1, 2025)

Sec. 112-17. Action on Referrals for Investigation.

The ethics and good government counselor shall investigate a referral received from the clerk regarding noncompliance with this chapter or with O.R.C. Section 2921.13. The ethics and good government counselor shall report the factual findings of any such investigation to the involved parties, the city manager, and the clerk, who shall make such reports publicly available. The ethics and good government counselor shall report factual findings regarding criminal conduct to the appropriate authorities.
(Ordained by Ord. No. 151-1997, eff. June 20, 1997; a. Ord. No. 299-2024, § 2, eff. January 1, 2025)

Sec. 112-99. Penalty.

Whoever violates section 112-5(a), (b), (c), or (d) is guilty of a misdemeanor of the fourth degree.
(Ordained by Ord. No. 151-1997, eff. June 20, 1997; a. Ord. No. 299-2024, § 2, eff. January 1, 2025)

Chapter 113

HEARING EXAMINERS*

Sec. 113-1. General Duties.
Sec. 113-3. Freedom from Improper Influence.
Sec. 113-5. Ex Parte Communications Prohibited.
Sec. 113-7. Public Hearings.
Sec. 113-9. Notice of Hearing.
Sec. 113-11. Hearing Procedures.
Sec. 113-13. Decision.
Sec. 113-15. Reconsideration.
Sec. 113-17. Appeals.

*__Cross reference—__Code compliance and hearings, tit. XV.

Sec. 113-1. General Duties.

Hearing examiners shall review and examine all information, conduct public hearings, prepare records thereof, enter findings, conclusions, and orders in cases assigned to the examiner for decision or review, in accordance with the procedures set forth in this chapter and with all other applicable laws, ordinances and regulations.
(Ordained by Ord. No. 113-1992, eff. April 17, 1992)

Sec. 113-3. Freedom From Improper Influence.

No member of council, member of the city administration, party to any proceedings before a hearing examiner, or any other person shall interfere with, attempt to interfere with, or improperly influence or attempt to improperly influence a hearing examiner in the performance of the duties of office.

An examiner shall not conduct or participate in any hearing or decision in which the examiner or any of the following persons has a direct or substantial financial interest: a spouse, brother, sister, child, parent, or in-law of the examiner, or business firm or organization in which the examiner has a substantial interest. The examiner shall promptly report to the city manager any attempt at interference or improper influence or any actual or potential conflict prior to such hearing.

Wherever it may be shown to the satisfaction of the appropriate appellate authority that an examiner was subjected to improper influence, interference or interest, such improper influence, interference or interest shall be grounds for vacating any decision made by the examiner in such proceedings.
(Ordained by Ord. No. 113-1992, eff. April 17, 1992)

Sec. 113-5. Ex Parte Communications Prohibited.

No party or other person participating in any proceeding before a hearing examiner shall communicate by any means with the examiner regarding that proceeding other than at a public hearing, or at a pre-hearing conference at which all interested persons have been given notice or by mail with copies sent to all other parties and interested persons. This provision shall not prohibit communication between an examiner and any member of the administration assigned to assist or give legal counsel to the examiner in the pending proceeding.
(Ordained by Ord. No. 113-1992, eff. April 17, 1992)

Sec. 113-7. Public Hearings.

The hearing examiner shall conduct a public hearing on all applications and appeals whenever so authorized or directed by applicable ordinance. When the respective filing requirements of the applicable ordinances, rules, and regulations have been met, a date shall be assigned by the examiner for public hearing. The hearing shall be held within 30 days after the filing of the application with the examiner, unless otherwise provided in the applicable ordinance or the delay is agreed to by all parties to the proceeding or is necessary in the interest of justice. The examiner may conduct such prehearing conferences as the examiner shall deem necessary or desirable upon notice to all interested persons.
(Ordained by Ord. No. 113-1992, eff. April 17, 1992)

Sec. 113-9. Notice of Hearing.

When any case or appeal has been set for public hearing, the hearing examiner shall cause notice of such public hearing to be advertised in the City Bulletin at least 14 days prior to the hearing and mailed to all

interested parties, including abutting property owners and appropriate community organizations at least 14 days prior to such hearing. If the applicant or appellant is the owner or occupant of the subject property or the agent of the owner the applicant or appellant shall post notice of the hearing on the subject property. The hearing examiner shall adopt rules regarding the size, contents, locations, and length of time that signs giving notice of any hearing shall be posted. Written comments, findings, and recommendations from interested parties may be filed with the hearing examiner at least three days prior to the scheduled hearing. The examiner shall furnish copies thereof to the applicant without charge and to any other interested party at the cost of reproduction.
(Ordained by Ord. No. 113-1992, eff. April 17, 1992)

Sec. 113-11. Hearing Procedures.

The hearing examiner shall adopt and promulgate rules and regulations for the conduct of hearings under this chapter subject to written approval by the city manager. The right of cross-examination of witnesses shall be afforded only to counsel for the parties of record and the city.
(Ordained by Ord. No. 113-1992, eff. April 17, 1992)

Sec. 113-13. Decision.

Within 10 days from the close of the hearing the hearing examiner shall render a decision on the case or appeal. The examiner shall also make and enter findings of fact from the record and conclusions of law in support of the decision. The findings and conclusions shall set forth and demonstrate the manner in which the decision is consistent with applicable laws, ordinances and regulations and the interests of justice.

The examiner shall send a copy of the decision and findings by certified mail to the applicant and deliver copies to interested city officials. Copies of the decision and findings shall be transmitted by regular mail to appropriate community organizations and to all other interested persons who had requested a copy of the written decision. The decision of the examiner shall be final, subject to reconsideration as provided below and to appeal as provided by ordinance or law.
(Ordained by Ord. No. 113-1992, eff. April 17, 1992)

Sec. 113-15. Reconsideration.

Any person or any officer, board or commission of the municipality affected by a decision of a hearing examiner who expressed a position prior to the public hearing may request reconsideration of that decision by the examiner. The request shall be filed in writing with the examiner within seven days of the date of mailing of the original decision and set forth with particularity the alleged errors. The party requesting reconsideration shall serve copies of the request upon all other parties of record. Within 30 days of receipt of the request for reconsideration and after review of the record and consideration of such additional evidence as the examiner may in his discretion admit, the examiner shall affirm, modify or reverse the earlier decision. No decision shall be subject to reconsideration more than once.
(Ordained by Ord. No. 113-1992, eff. April 17, 1992)

Sec. 113-17. Appeals.

A decision made pursuant to § 113-13 shall be final, subject only to appeal as specifically provided by ordinance to a city board or by law to a court of competent jurisdiction.
(Ordained by Ord. No. 113-1992, eff. April 17, 1992)

Chapter 115

CAMPAIGN FINANCE—EXPENDITURES (REPEALED)*

*__Editor's note—__Repealed by Ord. No. 450-1998, eff. Jan 15, 1999.

Chapter 117

CAMPAIGN FINANCE—DISCLOSURE

Sec. 117-1. Definitions.
Sec. 117-3. Reporting Requirements when Campaign has no Activity; Publication of Campaign Reports.
Sec. 117-5. Repealed.
Sec. 117-6. Contribution Limits Apply to Conversion of Campaign Committees.
Sec. 117-99. Repealed.

Sec. 117-1. Definitions.

For the purposes of this chapter, the words and phrases defined herein shall have the meanings ascribed to them in Title 35, Elections, of the Ohio Revised Code, unless another meaning is ascribed to them in this chapter.
(Ordained by Ord. No. 074-2001, eff. Mar. 14, 2001)

Sec. 117-3. Reporting Requirements when Campaign has no Activity; Publication of Campaign Reports.

If a campaign committee otherwise required to file any statement under the provisions of Article XIII of the charter has no contributions that it has received and no expenditures that it has made since the last date reflected in the last previously filed statement, if any, no statement shall be required; however, the campaign committee shall file a statement to that effect with the Cincinnati Elections Commission.

The Cincinnati Elections Commission shall make available online to the public through the internet, the contribution and expenditure information in all statements, all addenda, amendments, or other corrections made to statements required by Article XIII, Section 2(a) of the charter to be filed with the Cincinnati Elections Commission. The Commission may remove the information from the internet after a reasonable period of time.
(Ordained by Ord. No. 074-2001, eff. Mar. 14, 2001; a. Ord. No. 85-2003, eff. April 2, 2003; a. Ord. No. 370-2012, § 1, eff. Nov. 17, 2012)

Sec. 117-5. Repealed.
(Ordained by Ord. No. 074-2001, eff. Mar. 14, 2001; a. Ord. No. 85-2003, eff. April 2, 2003; r. Ord. No. 370-2012, § 1, eff. Nov. 17, 2012)

Sec. 117-6. Contribution Limits Apply to Conversion of Campaign Committees.

(a) *Definitions.*

"*Conversion*" means the act of formally changing the designation of the office for which a candidate is running, by changing the designation of "office sought" on the Designation of Treasurer Form (Form 30-D) of a candidate campaign committee.

Unless otherwise defined in this chapter, a word used in this section has the same meaning as in Section 3517.01 of the Ohio Revised Code.

(b) *Basic Prohibition.* Political contributions raised for a county, state or federal candidate campaign, which is then converted into a city council or mayoral campaign, or contributions raised for a city council campaign which is converted to a mayoral campaign, must comply with the limits on contributions as established in Article XIII of the charter of the city of Cincinnati. The burden shall be on the candidate to show that funds raised have been in accordance with the city's contribution limits, and that contributions in excess of the city's contribution limits have been disposed of in accordance with this section and any rules promulgated by the Cincinnati Election Commission.

If a county, state or federal candidate campaign is converted to a city council or mayoral campaign, or if a city council campaign is converted to a mayoral campaign, the aggregate contribution of funds from each contributing individual or entity to the committee for the entire period since the end of the last general election period for the office under which the committee is, or has been, collecting contributions, up to the submission of a nominating petition for city council or mayor, plus any additional contributions made by the same contributing individual or entity after the campaign is converted to a city

council or mayoral campaign, cannot exceed the limits established by Article XIII of the charter of Cincinnati.

(c) *Disposal of Surplus Funds.* If an aggregate contribution from an individual contributor or contributing entity surpasses the limits established by Article XIII during the entire period since the end of the last general election period for the office under which the committee is, or has been, collecting contributions, up to the submission of a nominating petition for city council or mayor, then the surplus amount contributed must be disposed of in accordance with O.R.C. § 3517.109(C). A candidate or campaign committee required to dispose of surplus funds pursuant to this ordinance shall file a report with the Cincinnati Election Commission as described in Article XIII of the charter and in accordance with rules and regulations promulgated by the Cincinnati Election Commission.

(d) *Rules and Regulations.* In accordance with Article XIII, Section 4 of the charter of the city of Cincinnati and Municipal Code Section 117-5, the Cincinnati Election Commission shall promulgate rules and regulations regarding the applicability of contribution limits for candidates from all previous election periods.

(e) *Penalties.* The penalties for a violation of this section shall be the same as those prescribed under Article XIII, Section 2(d) of the charter of the city of Cincinnati.

(f) *Severability.* If a court of competent jurisdiction declares a provision of this section invalid, the remainder of the section remains in effect.

(Ordained by Emer. Ord. No. 125-2005, eff. April 6, 2005; a. Ord. No. 370-2012, § 1, eff. Nov. 17, 2012)

Sec. 117-99. Repealed.

(Ordained by Ord. No. 074-2001, eff. Mar. 14, 2001; a. Ord. No. 85-2003, eff. April 2, 2003; r. Ord. No. 370-2012, § 1, eff. Nov. 17, 2012)

Chapter 119

PROHIBITION ON THE SOLICITATION OR ACCEPTANCE OF CAMPAIGN CONTRIBUTIONS FROM PERSONS WITH A FINANCIAL INTEREST IN CITY BUSINESS

Sec. 119-1. Definitions.
Sec. 119-1-A. Applicant.
Sec. 119-1-C1. Campaign.
Sec. 119-1-C2. City Business.
Sec. 119-1-C3. City Business List.
Sec. 119-1-F. Financially Interested Person.
Sec. 119-1-L. Legislative Review.
Sec. 119-1-S. Solicit.
Sec. 119-1-T. Temporary Prohibition List.
Sec. 119-3. Prohibition on Solicitation or Acceptance of Campaign Contributions.
Sec. 119-5. Manner of Disposal of Prohibited Contributions.
Sec. 119-7. Reporting of Financially Interested Persons.
Sec. 119-9. Enforcement.
Sec. 119-11. Start of Implementation; Appropriations.
Sec. 119-99. Penalties.

Sec. 119-1. Definitions.

For purposes of this chapter, the words and phrases shall have the meanings ascribed to them in Title 35, Elections, of the Ohio Revised Code, unless another meaning is ascribed to them in this chapter.
(Ordained by Ord. No. 0415-2021, § 1, eff. October 27, 2021)

Sec. 119-1-A. Applicant.

"Applicant" means a person or entity who requests or applies for city business.
(Ordained by Ord. No. 0415-2021, § 1, eff. October 27, 2021)

Sec. 119-1-C1. Campaign.

"Campaign" means the mayor, each member of council, and their agents, including their campaign committees and associated political action committees.
(Ordained by Ord. No. 0415-2021, § 1, eff. October 27, 2021)

Sec. 119-1-C2. City Business.

"City business" means requests or applications for the following items requiring approval by council:

(a) development incentives, including loans and tax incentives, with an estimated potential value of $100,000 or more per year;

(b) sales of city property with an estimated fair market value of $200,000 or more;

(c) easements with an estimated fair market value of $25,000 or more; or

(d) zoning changes.

(Ordained by Ord. No. 0415-2021, § 1, eff. October 27, 2021; a. Ord. No. 0011-2023, §§ 1, 4, eff. January 11, 2023)

Sec. 119-1-C3. City Business List.

"City business list" means the list or data set published online by the administration for the convenience of campaigns and the public specifying the names of financially interested persons for all city business without regard to whether such business is under legislative review by council. Financially interested persons shall be added to the city business list at the time an applicant applies for city business, and they shall be removed from the city business list six months after the conclusion of legislative review.
(Ordained by Ord. No. 0415-2021, § 1, eff. October 27, 2021)

Sec. 119-1-F. Financially Interested Person.

"Financially interested person" means a person who has a financial interest in city business as defined by this chapter.

(a) If the applicant for city business is an individual, it means the applicant and the applicant's spouse and dependent children.

(b) If the applicant for city business is an entity, such as a limited liability company, corporation, partnership, trust, or unincorporated association, it means

(1) the entity itself;

(2) the owners, members, or partners of such entity and their spouses and dependent children, provided that such owner, member, or partner owns or controls twenty percent or more of the entity; and

(3) the directors and principal officers of such entity and their spouses.

(Ordained by Ord. No. 0415-2021, § 1, eff. October 27, 2021)

Sec. 119-1-L. Legislative Review.

"Legislative review" shall mean the period commencing on the day any ordinance authorizing approval of the city business is filed with the clerk of council and continuing until final legislative action regarding the ordinance is complete, such as by a final vote or veto.
(Ordained by Ord. No. 0415-2021, § 1, eff. October 27, 2021)

Sec. 119-1-S. Solicit.

"Solicit" means to ask for, request, seek, or try to obtain something of value from another, whether directly or indirectly. For the purposes of this chapter, it does not include mass communications or speeches, so long as such communications or speeches are to fifty or more people.
(Ordained by Ord. No. 0415-2021, § 1, eff. October 27, 2021)

Sec. 119-1-T. Temporary Prohibition List.

"Temporary prohibition list" means the list or data set published online by the city administration identifying known financially interested persons associated with any ordinance currently under legislative review.
(Ordained by Ord. No. 0415-2021, § 1, eff. October 27, 2021)

Sec. 119-3. Prohibition on Solicitation or Acceptance of Campaign Contributions.

(a) *Prohibition on acceptance of contributions from entities on temporary prohibition list*. Campaigns are prohibited from accepting a campaign contribution from a person on the temporary prohibition list. For purposes of this section, a campaign contribution has not been accepted if it is disposed of in accordance with the requirements of section 119-5 no later than 30 calendar days from the day on which the contribution was received, excluding the day on which it was received.

(b) *Discovery of improper contributions from persons not on temporary prohibition list*. Campaigns are prohibited from accepting a campaign contribution from a person during the time the person qualified for the temporary prohibition list even if, due to omission or applicant error, the person was not on the temporary prohibition list at the time of contribution.

For purposes of this section, a campaign contribution has not been accepted if either of the following occurs:

(1) It is disposed of in accordance with the requirements of section 119-5(b); or

(2) It is disposed of in accordance with the requirements of section 119-5 no later than 30 calendar days from the earlier of

(A) the day the campaign discovers acceptance of the contribution was prohibited or

(B) the day the administration notifies the campaign that the contribution was improper despite the contributor not appearing on the temporary prohibition list.

(c) *Solicitation.* Campaigns are prohibited from soliciting a campaign contribution from a person appearing on the temporary prohibition list at the time of the solicitation.
(Ordained by Ord. No. 0415-2021, § 1, eff. October 27, 2021)

Sec. 119-5. Manner of Disposal of Prohibited Contributions.

A campaign shall take the following action to dispose of prohibited campaign contributions:

(a) Attempt to return or refund the contribution to the financially interested person.

(b) If the financially interested person does not accept the refund or return, or if the contributor does not respond to the campaign, then the campaign shall dispose of the prohibited contribution by donating an amount equal to the contribution to a corporation that is exempt from federal income taxation under subsection 501(a) and described in subsection 501(c) of the Internal Revenue Code.

The campaign shall report all campaign contributions required to be disposed of under this section in its next campaign finance report that is required by Article XIII, Section 2.a of the charter.
(Ordained by Ord. No. 0415-2021, § 1, eff. October 27, 2021)

Sec. 119-7. Reporting of Financially Interested Persons.

(a) Upon application for city business, an applicant must furnish accurate, truthful, and complete information to the city administration, in a form required by the city administration, identifying the financially interested persons associated with the application or request for city business. Applicants shall promptly update such information if it changes, including during the legislative review period.

(b) The city administration shall make available to the public an online list of financially interested persons through publication of the city business list and the temporary prohibition list on the city's website. The temporary prohibition list shall be updated at least weekly in accordance with section 119-3(c).

(c) The city manager is authorized to establish procedures, rules, and regulations to implement the requirements of this section.
(Ordained by Ord. No. 0415-2021, § 1, eff. October 27, 2021)

Sec. 119-9. Enforcement.

(a) The Cincinnati elections commission shall receive and investigate any complaints alleging violations of this chapter and may refer such complaints to the ethics and good government counselor in the city solicitor's office for investigation.

(b) Upon finding a violation of Section 119-3(a) or 119-3(b), the Cincinnati elections commission is authorized to impose a civil fine upon prior notice to the campaign and an opportunity to be heard regarding the violation. The commission shall refer such civil fines to the appropriate city agency for collection. Upon finding a violation of Section 119-3(c), the Cincinnati elections commission shall file a communication with the clerk of council setting forth the findings of the investigation.
(Ordained by Ord. No. 0415-2021, § 1, eff. October 27, 2021)

Sec. 119-11. Start of Implementation; Appropriations.

The requirements and prohibitions of this chapter shall not take effect until council appropriates funding for the purpose of establishing the administrative staffing and enforcement needs imposed by this chapter. After such appropriation, and upon setting up the administrative processes necessary to implement this chapter, the city manager is authorized to establish the starting date for enforcement of the prohibitions established in this chapter, which date shall be no sooner than 30 days after the city manager promulgates the procedures and rules authorized under section 119-7(c). A copy of the procedures and rules shall be provided to council upon promulgation and, again, at such time as the rules may be amended.
(Ordained by Ord. No. 0415-2021, § 1, eff. October 27, 2021)

Sec. 119-99. Penalties.

Violation of section 119-3(a), 119-3(b), or 119-7(a) is a Class C-1 civil offense.
(Ordained by Ord. No. 0415-2021, § 1, eff. October 27, 2021)

Chapter 121

OPEN MEETINGS*

Sec. 121-1. Definitions.
Sec. 121-1-H. Hearing.
Sec. 121-1-M. Meeting.
Sec. 121-1-P. Public Body.
Sec. 121-3. Remote Open Meetings Allowed.
Sec. 121-5. Effect of Remote Attendance.
Sec. 121-7. Use of Executive Session by the Board of the Cincinnati Retirement System.

*__Editor's note—__Emer. Ord. No. 298-2021, § 1, effective June 23, 2021, renamed ch. 121 from "Remote Public Meetings" to "Open Meetings."

Sec. 121-1. Definitions.

For purposes of this chapter, the words and phrases defined in this chapter shall have the meanings ascribed to them unless a different meaning is clearly indicated by the context.
(Ordained by Emer. Ord. No. 298-2021, § 1, eff. June 23, 2021)

Sec. 121-1-H. Hearing.

"Hearing" means an administrative hearing or other hearing at which a person may present written or oral testimony on a matter before a public body.
(Ordained by Emer. Ord. No. 298-2021, § 1, eff. June 23, 2021)

Sec. 121-1-M. Meeting.

"Meeting" has the same meaning as ascribed in O.R.C. § 121.22.
(Ordained by Emer. Ord. No. 298-2021, § 1, eff. June 23, 2021)

Sec. 121-1-P. Public Body.

"Public body" has the same meaning as ascribed in O.R.C. § 121.22, and includes those boards, commissions, and institutions created by the city's charter or by ordinance, except that it does not include the council or any of its committees or subcommittees.
(Ordained by Emer. Ord. No. 298-2021, § 1, eff. June 23, 2021)

Sec. 121-3. Remote Open Meetings Allowed.

Members of the city's public bodies may hold and attend meetings and may conduct and attend hearings by means of teleconference, video conference, or any other similar technology.
(Ordained by Emer. Ord. No. 298-2021, § 1, eff. June 23, 2021)

Sec. 121-5. Effect of Remote Attendance.

During any open meeting or hearing of a public body at which members of the public body appear remotely by means of teleconference, video conference, or any other similar technology, all of the following shall apply:

(a) Any resolution, rule, determination, vote, or formal action of any kind shall have the same effect as if it had occurred during an open meeting or hearing of the public body held pursuant to O.R.C. § 121.22.

(b) Members of a public body who attend meetings or hearings by means of teleconference, video conference, or any other similar technology shall be considered present as if in person at the meeting or hearing, shall be permitted to vote, and shall be counted for purposes of determining whether a quorum is present at the meeting or hearing.

(c) Public bodies shall provide notification of meetings and hearings held under this section to the public, to the media that have requested notification of a meeting, and to the parties required to be notified of a hearing, at least twenty-four hours in advance of the meeting or hearing by reasonable methods by which any person may determine the time, location, and the manner by which the meeting or hearing will be conducted, except in the event of an emergency requiring immediate official action. In the event of an emergency, the public body shall immediately notify the news media that have requested notification or the parties required to be notified of a hearing of the time, place, and purpose of the meeting or hearing.

(d) The public body shall provide the public access to a meeting held under this section, and to any hearing held under this section that the public would otherwise be entitled to attend, commensurate with the method in which the meeting or hearing is being conducted, including, but not limited to, live-streaming by means of the internet, local radio, television, cable, or public access channels, call in information for a teleconference, or by means of any other similar technology. The public body shall ensure that the public can observe and hear the discussions and deliberations of all the members of the public body, whether the member is participating in person or electronically.

(e) When members of a public body conduct a hearing by means of teleconference, video conference, or any other similar technology, the public body must establish a means through the use of equipment that is widely available to the general public to converse with witnesses and to receive documentary testimony and physical evidence.

(Ordained by Emer. Ord. No. 298-2021, § 1, eff. June 23, 2021)

Sec. 121-7. Use of Executive Session by the Board of the Cincinnati Retirement System.

During any open meeting of the Board of the Cincinnati Retirement System, the Board may adjourn into executive session for the purpose of discussing the following information related to an individual who is a member, former member, contributor, or beneficiary of the retirement system:

(a) Address, telephone number, email address, social security number, and date of birth;

(b) Record of contributions;

(c) Statements of previous service and other information on an individual gathered for the operation of the retirement system;

(d) The amount of a monthly allowance, pension, or benefit paid to the individual; and

(e) Medical records and other information, including, but not limited to, personal financial information, that is gathered or maintained by the retirement system to determine eligibility for benefits.

(Ordained by Emer. Ord. No. 0138-2022, § 2, eff. June 2, 2022)

TITLE II

BOARDS, COMMISSIONS, INSTITUTIONS*

Chapter 201

PUBLIC AND EDUCATIONAL ACCESS ADVISORY BOARD

Sec. 201-1. Public and Educational Access Advisory Board Established.
Sec. 201-3. Responsibilities of the Public and Educational Access Advisory Board.
Sec. 201-5. Appointment of Members.
Sec. 201-7. Compensation; Conflict of Interest.
Sec. 201-9. Procedures.

*__Cross references—__Citizens committee on youth, neighborhood youth corps., § 306-51; valet parking board, § 414-7; Cincinnati fire prevention board of appeals, § 1201-53; zoning board of appeals, § 1403-100-Z.

Sec. 201-1. Public and Educational Access Advisory Board Established.

There shall be established an advisory board to be known as the Public and Educational Access Advisory Board.
(Ord. No. 163-1997, eff. May 29, 1997)

Sec. 201-3. Responsibilities of the Public and Educational Access Advisory Board.

The Board shall be responsible for the following areas of concern:

(a) Serve as advisory board to council on all matters relating to the provision of public and educational access services and facilities generally, and in particular on services and facilities provided to the city by its independent contractor for the provision of public and educational access services and facilities.

(b) Review and recommend policies and procedures for the optimum benefit and use of public and educational access capabilities.

(c) Review and recommend the public and educational access biennial budget submitted by the city's access provider and all proposed budget amendments.

(d) Assist in the promotion of public and educational access services and facilities.

(e) Participate in the monitoring and evaluation of services and facilities provided for public and educational access under the provision of the city's contract for the provision of such services, as the same may be amended from time to time.

(f) Review and recommend channel allocations for public and educational access.

(g) Review, evaluate and make recommendations on any proposals for interconnection of the city's public and educational access channels with those of other areas.

(h) Participate in the review, evaluation and any recommendations made in the process of extending the parameters for the provision of public and educational access.

(i) Perform such other functions as may be requested by council or the city administration in consultation with the board, including providing advice on objectives to be attained in light of continuing evaluation of the potential uses of public and educational access services and facilities.

(Ord. No. 163-1997, eff. May 29, 1997)

Sec. 201-5. Appointment of Members.

The public and educational access advisory board shall consist of five members, appointed by the mayor, with the advice and consent of council. The members of the board shall be residents of the city and shall be representative of both the interests of public and educational access. Three members shall be professionals in the field of video/television, including persons possessing expertise in such fields as television station operations, video production, and advertising and public relations relating to such fields. Two members shall be representatives of the interests of non-profit institutions and educational institutions.

Prior to the first meeting of the board, the mayor shall designate all five members to serve two-year terms. At the expiration of the initial or any subsequent two-year terms, the mayor shall appoint five additional members to serve two-year terms and shall fill all vacancies on the board for unexpired terms. No member shall be appointed as a member

of the board for more than four consecutive two-year terms, without at least a one-year period intervening between terms.
(Ord. No. 163-1997, eff. May 29, 1997)

Sec. 201-7. Compensation; Conflict of Interest.

The members of the public and educational access advisory board shall serve without compensation and shall be subject to all state and local laws pertaining to conflicts of interest and ethics.
(Ord. No. 163-1997, eff. May 29, 1997)

Sec. 201-9. Procedures.

The public and educational access advisory board shall adopt by-laws governing its procedures for all matters coming before it and shall determine the manner and method of selecting its chairperson and any other officers it deems necessary.
(Ord. No. 163-1997, eff. May 29, 1997)

Chapter 202

PUBLIC RECREATION COMMISSION

Sec. 202-1. Medals; Trophies.
Sec. 202-3. Use of Playgrounds.
Sec. 202-5. Violation of Regulations of the Public Recreation Commission.

Sec. 202-1. Medals; Trophies.

The public recreation commission may expend from its appropriations, moneys for trophies, medals, emblems, or certificates of merit in connection with amateur athletic contests conducted under its supervision; provided that the total amount expended for such purposes shall not exceed the sum of $2,000 in any one calendar year.
(C.O. 202-1; reordained as C.M.C. 202-1, eff. Jan. 1, 1972)

Sec. 202-3. Use of Playgrounds.

The public recreation commission may permit the use of its playgrounds for games, carnivals, fetes, or other similar activities held solely to raise money for purposes which promote the public health, safety and welfare.
(C.O. 202-2; renumbered to C.M.C. 202-3, eff. Jan. 1, 1972)

Sec. 202-5. Violation of Regulations of the Public Recreation Commission.

No person shall violate any regulation of the public recreation commission.

The public recreation commission may adopt and enforce regulations governing the use and protection of recreation property. Such regulations shall be published in the same manner as ordinances of the city of Cincinnati but shall not take effect until certified copies thereof are filed with the clerk of council.

Whoever violates this section is guilty of violating regulations of the public recreation commission, a minor misdemeanor.
(C.M.C. 202-5; ordained by Ord. No. 523-1973, eff. Jan. 1, 1974)

Analogous to Sec. 901-P14; ordained by Ord. No. 316-1961, eff. Sept. 13, 1961; a. Ord. No. 93-1962, eff. Mar. 28, 1962; reordained as C.M.C. 901-P14, eff. Jan. 1, 1972; r. Ord. No. 523-1973, eff. Jan. 1, 1974.

Chapter 203

EMPLOYEES' RETIREMENT SYSTEM*

Sec. 203-0. Legislative Finding.
Sec. 203-1. Definitions.
Sec. 203-1-A. Accumulated Contributions.
Sec. 203-1-A1. Annuity.
Sec. 203-1-A2. Active Member.
Sec. 203-1-A3. Average Highest Compensation.
Sec. 203-1-A4. Actuarial Definitions.
Sec. 203-1-B. Beneficiary.
Sec. 203-1-B1. Board.
Sec. 203-1-C. City.
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Sec. 203-1-C2. Creditable Service.
Sec. 203-1-C3. Current Employees Class.
Sec. 203-1-C4. Collaborative Settlement Agreement.
Sec. 203-1-C5. Collaborative Settlement Agreement Effective Date.
Sec. 203-1-D. Deferred Vested Member.
Sec. 203-1-D2. Disability Retiree.
Sec. 203-1-E. Employee.
Sec. 203-1-E1. Employer.
Sec. 203-1-I. IRC.
Sec. 203-1-I1. Inactive Member.
Sec. 203-1-L. Limitation Year.
Sec. 203-1-M. Medical Director.
Sec. 203-1-M1. Member.
Sec. 203-1-M2. Repealed.
Sec. 203-1-M3. Membership Service.
Sec. 203-1-O. Optionee.
Sec. 203-1-P. Pension.
Sec. 203-1-P1. Repealed.
Sec. 203-1-P2. Noncontributing Prior Service.
Sec. 203-1-P3. Prior State Retirement System Compensation.
Sec. 203-1-P4. Plan Year.
Sec. 203-1-P5. Pensioner.
Sec. 203-1-R. Regular Interest.
Sec. 203-1-R1. Retirement.
Sec. 203-1-R2. Repealed.
Sec. 203-1-R3. Retirement System.
Sec. 203-1-R4. Retirant.
Sec. 203-1-R5. Retiree.
Sec. 203-1-R6. Retirees Class.
Sec. 203-1-R7. Retirement Effective Date.
Sec. 203-1-S. Service.
Sec. 203-1-S1. State Retirement System.
Sec. 203-1-S2. State Retirement System Service Credit.
Sec. 203-1-S3. Out of State and Federal Service Credit.
Sec. 203-1-S4. Unpaid Authorized Leave of Absence Service Credit.
Sec. 203-1-S5. Service Retirement Allowance.
Sec. 203-1-S6. Survivor.
Sec. 203-3. Membership.
Sec. 203-5. CETA and New Careers Program.
Sec. 203-6. Service Purchase Administrative Provisions.

*__Cross references—__Financial, personnel, procurement and real property procurements, tit. III; See also Article XV, Administrative Code.

Sec. 203-7. Members Not to Belong to the Ohio Police and Fire Pension Fund.
Sec. 203-7-A. Purchase of Prior Service Credit from Eligible Systems.
Sec. 203-7-B. Purchase of Out of State or Federal Service Credit.
Sec. 203-7-C. Purchase of Unpaid Authorized Leave of Absence Service Credit.
Sec. 203-8. State Retirement System Service Credit Transfer.
Sec. 203-9. University Board, Other Pension Systems.
Sec. 203-11. Termination of Membership.
Sec. 203-12. Benefit Claims.
Sec. 203-13. Data as to New Members and Retirants.
Sec. 203-15. Repealed.
Sec. 203-17. Repealed.
Sec. 203-19. Service Creditable.
Sec. 203-21. Repealed.
Sec. 203-23. Contract Service Credit.
Sec. 203-25. Year of Service.
Sec. 203-27. Creditable Military Service.
Sec. 203-27A. USERRA Compliance.
Sec. 203-28. Military Service Credit Prior to Membership.
Sec. 203-29. Purchase of Prior Withdrawn Retirement System Service.
Sec. 203-31. Academic Leaves.
Sec. 203-32. Repealed.
Sec. 203-33. Service Retirement Allowance; Vesting.
Sec. 203-34. Repealed.
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Sec. 203-39. Repealed.
Sec. 203-41. Disability Retirement Allowance.
Sec. 203-42. Health Care Benefits.
Sec. 203-43. Health Care Benefits For Membership Dates Prior to January 9, 1997 and Retirement Effective Dates After January 1, 2016.
Sec. 203-44. Health Care Benefits For Membership Dates On and After January 9, 1997.
Sec. 203-45. Death Benefit Prior to Retirement.
Sec. 203-47. Retirement Death Benefit.
Sec. 203-48. Health Care Benefits for Eligible Dependent Family Members.
Sec. 203-49. Survivor Benefits.
Sec. 203-50. Retirement Allowance Increases for Members Retiring Prior to January 1, 1981.
Sec. 203-51. Unclaimed Benefits.
Sec. 203-52. Retirement Allowance Increase for Members Retiring from the City of Cincinnati or Hamilton County, Prior to January 1, 1983.
Sec. 203-53. Reduction of Disability Retirement Allowance.
Sec. 203-55. Reexamination of Disability Retirees; Restoration to Service.
Sec. 203-56. Cost-of-Living Adjustments.
Sec. 203-57. Return of Accumulated Contributions and Payments.
Sec. 203-59. Rights of Members Transferring to Other Public Employment.
Sec. 203-61. Repealed.
Sec. 203-63. Optional Allowances.
Sec. 203-65. Management of Fund and Duties of Trustees.
Sec. 203-66. Prohibited Transactions.
Sec. 203-69. Custodians of Funds.
Sec. 203-71. Available Cash.
Sec. 203-73. Payroll Deductions.
Sec. 203-75. Status of Deductions.
Sec. 203-81. Repealed.
Sec. 203-83. Normal and Accrued Liability Contributions.
Sec. 203-85. Calculation of Normal Contributions.
Sec. 203-91. Accrued Liability Contribution Rate.

Sec. 203-93. Total Employer Contribution Payable to the Fund.
Sec. 203-95. Repealed.
Sec. 203-101. Appropriations.
Sec. 203-103. Benefit Recipients Rights Exempt From Assignment, Execution and Taxes.
Sec. 203-105. Correction of Errors.
Sec. 203-107. Benefits Under Other City Systems Excluded.
Sec. 203-111. Loans to Members.
Sec. 203-113. Loan Insurance.
Sec. 203-115. Optional Coverage for City Manager.
Sec. 203-117. Eligible Rollover Distributions.
Sec. 203-119. Minimum Distribution Requirements of IRC Section 401(a)(9).
Sec. 203-121. Funding of Medical Benefits.
Sec. 203-122. Establishment of 115 Trust for Funding of Healthcare Benefits.
Sec. 203-123. IRC Section 415 Limitations on Benefits.
Sec. 203-125. Total Retirement Benefits Arrangement.
Sec. 203-127. Actuarial Assumptions.
Sec. 203-129. IRC Termination Requirements.
Sec. 203-131. IRC Tax-Qualification.
Sec. 203-133. Retirement System Administration.
Sec. 203-135. Effect of Forfeiture of Benefits.
Sec. 203-137. Employment of Retirant.
Sec. 203-999. Penalty for Fraudulent Practice.

Sec. 203-0. Legislative Finding.

The Council established a Retirement System for employees of the City of Cincinnati by the passage of Ordinance No. 412-1931 on June 22, 1931, and the Retirement System became operational on August 1, 1931. This system was established as a defined benefit plan and provides for retirement benefits, including survivor benefits, based on age, years of service and wages. The system has been continuously maintained since its establishment, and has been modified from time to time in order to define and modify, as appropriate, benefits provided to its Members. The system is overseen by a Board of Trustees, which operates under the provisions of Article XV of the Adm. Code of the City. The trustees administer the system and invest its assets. Trustee duties are to be performed solely in the interests of the Members and their Optionees and Beneficiaries, for the exclusive purpose of providing benefits to Members and their Optionees and Beneficiaries and defraying the reasonable expenses of administering the system. Such duties are to be performed with the care, skill, prudence and diligence more particularly described in this Chapter. The system is recognized by the State of Ohio. The system is a qualified benefit plan under the laws and regulations set forth in the U.S. Internal Revenue Code.

There are some Members of the system who are current or former employees of the University of Cincinnati and University Hospital, which institutions were formerly, in whole or in part, under the jurisdiction of the City. There are also some Members of the system who are current or former employees of Hamilton County, which employee functions were transferred from the jurisdiction of the City of Cincinnati to Hamilton County over the years. There are specific Ohio Revised Code provisions that recognize the Membership of these non-City employees in the Cincinnati Retirement System.

On May 7, 2015, a Collaborative Settlement Agreement was entered in the case of Sunyak, et al. v. City of Cincinnati, et al. (the City of Cincinnati Pension Litigation), Case: 1:11-cv-00445-MRB, in the United States District Court, Southern District of Ohio, Western Division. To the extent that there is any conflict between the provisions of Chapter 203 and the terms of the Collaborative Settlement Agreement or any subsequent court orders in the City of Cincinnati Pension Litigation, the terms of the Collaborative Settlement Agreement and any subsequent Pension Litigation court orders shall govern.

(Ordained by Ord. No. 264-2000, eff. June 28, 2000; Emer. Ord. No. 083-2013, § 2, eff. April 10, 2013; a. Ord. No. 336-2016, § 1, eff. Nov. 26, 2016; a. Emer. Ord. No. 275-2024, § 1, eff. August 7, 2024)

Sec. 203-1. Definitions.

For the purposes of the sections governing the administration of the Retirement System, the words and phrases defined in the sections hereunder shall have the meanings therein respectively ascribed to them, unless a different meaning is plainly required by the context. For purposes of internal consistency, definitions have been added as needed in the section corresponding to the first letter of the defined term, but not necessarily in alphabetical order. For purposes of clarity and comprehension, the sections of this chapter modified by passage of an ordinance on October 26, 2016 shall contain defined terms designated by initial capital letters. Defined terms in all other sections of this chapter are not indicated by initial capital letters.

(C.O. 203-1; reordained as C.M.C. 203-1, eff. Jan. 1, 1972; a. Ord. No. 545-1983, eff. Dec. 23, 1983; a. Ord. No. 336-2016, § 1, eff. Nov. 26, 2016)

Sec. 203-1-A. Accumulated Contributions.

"Accumulated Contributions" shall mean the sum of the following amounts, together with Regular Interest thereon as provided in Section 203-1-R:

(a) All the amounts deducted from the compensation of a Member and credited to the Member's individual account;

(b) Any amounts paid by a Member pursuant to Section 203-7 to purchase Creditable Service for a period of prior service in the police and fire division;

(c) Any amounts paid by a Member pursuant to Section 203-7-A to purchase Creditable Service for a period of prior non-contributing service;

(d) Any State Retirement System Member contributions transferred to this Retirement System pursuant to the election of a Member and a transfer agreement entered into pursuant to Section 203-8, including any interest thereon transferred by the State Retirement System;

(e) [Repealed.]

(f) Any amount paid by a Member pursuant to Section 203-23 to purchase Creditable Service for a period of prior service when he or she was on a contract basis, including any interest thereon paid by the Member;

(g) Any amount paid by a Member pursuant to Sections 203-27-A or 203-28 to purchase Creditable Service for a period of military service, including any interest thereon paid by the Member;

(h) Any amount paid by a Member pursuant to Section 203-29 to purchase Creditable Service for a period of prior service, including any interest thereon paid by the Member;

(i) Any amount paid by a Member pursuant to Section 203-31 to purchase Creditable Service for a period of academic leave, including any interest thereon paid by the Member;

(j) Any amount paid by a Member pursuant to Section 203-7-B to purchase Out of State or Federal Service Credit; and

(k) Any amount paid by a Member pursuant to Section 203-7-C to purchase Unpaid Authorized Leave of Absence Service Credit.

(C.O. 203-a1; renumbered to C.M.C. 203-1-A, eff. Jan. 1, 1972; a. Ord. No. 300-1979, eff. Aug. 4, 1979; a. Ord. No. 545-1983, eff. Dec. 23, 1983; a. Ord. No. 352-2001, eff. Oct. 31, 2001; Emer. Ord. No. 379-2008, eff. Nov. 19, 2008; Emer. Ord. 290-2009, § 3, eff. Oct. 28, 2009; a. Ord. No. 336-2016, § 1, eff. Nov. 26, 2016)

Sec. 203-1-A1. Annuity.

"Annuity" shall mean payments for life derived from the accumulated contributions of a member. All annuities shall be paid in equal monthly installments.

(C.O. 203-a2; renumbered to C.M.C. 203-1-A1; eff. Jan. 1, 1972; a. Ord. No. 545-1983, eff. Dec. 23, 1983)

Sec. 203-1-A2. Active Member.

"Active Member" shall mean any Employee who is a Member of the Retirement System. (Ordained by Ord. No. 336-2016, § 2, eff. Nov. 26, 2016)

Sec. 203-1-A3. Average Highest Compensation.

(a) For Members who are entitled to a Service Retirement Allowance under the provisions of Section 203-33, "Average High-

est Compensation" shall mean the average annual compensation or salary paid to a Member during the Member's most highly compensated period of the designated number of consecutive years of service, or if the Member has had less than such number of consecutive years of service, then the average annual compensation, pay or salary paid to the Member during the total years of the Member's service. Severance payments shall not be included in the calculation of a Member's Average Highest Compensation.

(i) For Members in Groups A, B, C and D as defined in Section 203-1-M1, with respect to benefits earned at any time, the designated number of consecutive years of service applicable for purposes of determining the Average Highest Compensation shall be three.

(ii) For Members in Group E as defined in Section 203-1-M1, with respect to benefits earned on or before December 31, 2013, the designated number of consecutive years of service applicable for purposes of determining the Average Highest Compensation shall be three, and with respect to benefits earned on or after January 1, 2014, the designated number of consecutive years of service applicable for purposes of determining the Average Highest Compensation shall be five.

(iii) For Members in Group F as defined in Section 203-1-M1, with respect to benefits earned on or before June 30, 2011, the designated number of consecutive years of service applicable for purposes of determining the Average Highest Compensation shall be three, and with respect to benefits earned on or after July 1, 2011, the designated number of consecutive years of service applicable for purposes of determining the Average Highest Compensation shall be five.

(iv) For Members in Group G as defined in Section 203-1-M1, with respect to benefits earned on or after January 1, 2010, the designated number of consecutive years of service applicable for purposes of determining the Average Highest Compensation shall be five.

(b) Except as provided in subsection (c) below, in computing the Average Highest Compensation for Members, overtime pay, payments for compensatory time, and lump sum terminal leave pay for any Employees shall not be included, and no deductions shall be made from such earnings as contributions to the retirement fund. Longevity, sick-leave buy back, shift differential, and special assignment payments shall be included, and deductions shall be made from such earnings as contributions to the retirement fund.

(c) In computing the "Average Highest Compensation" for Members who are entitled to a Service Retirement Allowance under the provisions of Section 203-33(d), the overtime pay of any Employee, payments for compensatory time not in excess of 80 hours, except as otherwise provided in an applicable collective bargaining agreement, lump sum terminal leave, longevity, sick-leave buy back, shift differential, and special assignment for such Employees shall be included as further specified in the remainder of this section below, and deductions shall be made from such earnings as contributions to the retirement fund.

For Members who are entitled to a Service Retirement Allowance under the provisions of Section 203-33(d), the Average Highest Compensation shall include that portion of their lump sum terminal leave pay which

could be accumulated in their final years of active service used for purposes of determining the Average Highest Compensation, with the exception that the amount of the lump sum payment for unused sick leave to be included in the final average salary shall not exceed an amount equal to compensation at the hourly rate last earned by a Member for 312 hours. The normal Employee contribution shall be based upon and deducted from the pensionable portion of the lump sum payment.

For Members who are entitled to a Service Retirement Allowance under the provisions of Section 203-33(d) who are in Group E, with respect to compensation earned on or before December 31, 2013, the provisions of subsection (c) herein shall apply. For such Members, with respect to compensation earned on or after January 1, 2014, the provisions of subsection (b) herein shall apply.

For Members who are entitled to a Service Retirement Allowance under the provisions of Section 203-33(d) who are in Group F, with respect to compensation earned on or before June 30, 2011, the provisions of subsection (c) herein shall apply. For such Members, with respect to compensation earned on or after July 1, 2011, the provisions of subsection (b) herein shall apply.

The provisions of this section (c) shall not apply to Employees hired before July 12, 1998 who have elected, either affirmatively or by default, to receive a Service Retirement Allowance that does not include such payments.

(d) For Members who retired prior to January 1, 1976, "Average Highest Compensation" shall mean the amount determined in accordance with the definition of "Average Highest Compensation," which was in effect and applicable to the Member on the date of the Member's retirement.

(e) The compensation limitations of this subsection (e) shall apply to Members who did not become a Member in this Retirement System prior to January 1, 1996. For such Members, when calculating the Member's most highly compensated consecutive years of service, the compensation or salary taken into account for a year of service which is included in such calculation shall not exceed the IRC Section 401(a)(17)(B) limit that is in effect for the calendar year in which the applicable year of service begins. The IRC Section 401(a)(17)(B) limit is $150,000, as adjusted for increases in the cost of living for years beginning after January 1, 1994.

(f) In computing the "Average Highest Compensation" any lump sum payments made to or on behalf of a Member for court ordered vacation accumulation settlement compensation arising out of O.R.C. Section 9.44 vacation rate accrual shall not be included beyond the maximum vacation accumulation authorized by personnel policy or union contract. The term "court ordered vacation accumulation settlement compensation" shall mean any vacation accrual resulting from a court order to compensate Members for O.R.C. Section 9.44 vacation accrual rate accumulation not previously granted.

(g) When the salary of an Employee within a particular class is temporarily reduced so as to address critical funding issues, including, but not limited to, Holiday Pay Savings, affected Employees may also elect to continue contributions on the basis of the rate of pay before the salary reduction was implemented with the amount of the additional payment calculated to include both the Employee's portion of the contribution and the City's portion of the contribution to the Retirement System. Said additional contributions

to the Retirement System shall either be completed as an increased contribution each biweekly pay period during the period of temporary salary reduction or the Employee may elect to make a one-time lump sum payment prior to Retirement. If the temporary salary reduction was in effect prior to the institution of this Section, then the Employee may make a lump sum "catch-up" payment to cover the pay periods prior the institution of the biweekly contributions and then make biweekly contributions for the remainder of their time prior to Retirement.

In such cases, the Average Highest Compensation shall be figured as though the Employee had continued at the former rate of pay. Provided, however, that if by reason of amendment of the compensation schedules, the annual compensation earnable by the Employee in the former position would have been reduced, the Average Highest Compensation shall be figured on the basis of such reduced compensation and the contributions reduced accordingly.

(h) If the Member does not have the applicable number of years of continuous service with the City at the time of his or her Retirement or other termination of service with the City, the Average Highest Compensation of any such Member shall be determined under the foregoing provisions of this Section, based on both (i) his years of service and compensation with the employers under this chapter, and (ii) his years of State Retirement System Service Credit and Prior State Retirement System Compensation. Prior State Retirement System Compensation shall be taken into account for purposes of determining the Member's Average Highest Compensation under this Retirement System only to the extent that such compensation otherwise would be considered compensation under the foregoing provisions of this Section.

(i) If a Member is subject to the provisions of paragraph (h) because he does not have the applicable number of years of continuous service at the time of his or her Retirement or other termination of service with the City, the Member or, in the event of the death of a Member, his Optionee or Beneficiary shall provide to the Board evidence of the Member's Prior State Retirement System Compensation. Evidence of the Member's Prior State Retirement System Compensation shall include evidence of the amount thereof that would be considered compensation under the forgoing provisions of this Section. A decision of the Board as to whether evidence provided by a Member, Optionee or Beneficiary is sufficient to determine the amount of his Prior State Retirement System Compensation shall be final.

(C.O. 203-a4; a. Ord. No. 455-1957, eff. Jan. 1, 1958; a. Ord. No. 6-1961, eff. Feb. 4, 1961; renumbered to C.M.C. 203-1-A3, eff. Jan. 1, 1972; a. Ord. No. 6-1975, eff. Jan. 1, 1975; a. Ord. No. 63-1976, eff. Jan. 1, 1976; a. Ord. No. 300-1979, eff. Aug. 4, 1979; Ord. No. 545-1983, eff. Dec. 13, 1983; a. Ord. No. 540-1990, eff. Dec. 19, 1990; a. Ord. No. 452-1992, eff. Oct. 14, 1992; a. Ord. No. 77-1998, eff. April 3, 1998; a. Ord. No. 130-1999, eff. May 14, 1999; a. Ord. No. 264-2000, eff. June 28, 2000; a. Ord. No. 352-2001, eff. Oct. 31, 2001; a. Ord. No. 78-2002, eff. March 20, 2002; Emer. Ord. No. 291-2009, § 4, eff. Oct. 28, 2009; a. Ord. No. 359-2009, § 1, eff. Dec. 25, 2009; Emer. Ord. No. 191-2010, § 1, eff. June 3, 2010; a. Ord. No. 084-2011, § 2, eff. April 16, 2011; Emer. Ord. No. 083-2013, § 2, eff. April 10, 2013; a. Ord. No. 336-2016, § 1, eff. Nov. 26, 2016; a. Emer. Ord. No. 343-2018, § 1, eff. Oct. 31, 2018)

Note—For effect on members who retired prior to Jan. 1, 1958, see Ord. No. 62-1959, eff. Apr. 17, 1959.

Sec. 203-1-A4. Actuarial Definitions.

The terms Entry Age Normal Actuarial Cost Method, Normal Cost and Unfunded

Actuarial Accrued Liability shall have the meanings as defined in the Actuarial Standard of Practice No. 4, Measuring Pension Obligations published by the Actuarial Standards Board, October 1993, including modifications.
(Ordained by Ord. No. 130-1999, eff. May 14, 1999; a. Ord. No. 264-2000, eff. June 28, 2000)

Sec. 203-1-B. Beneficiary.

"Beneficiary" shall mean any person designated by a Member, in writing and filed with the Board for the purpose of distributing benefits payable under Sections 203-45, 203-47, and 203-63(b) and (f) of this Chapter.
(C.O. 203-61; renumbered to C.M.C. 203-1-B, eff. Jan. 1, 1972; a. Ord. No. 545-1983, eff. Dec. 23, 1983; a. Ord. No. 336-2016, § 1, eff. Nov. 26, 2016)

Sec. 203-1-B1. Board.

"Board" shall mean the board of trustees of the retirement system provided in Article XV, Section 1, of the administrative code.
(C.O. 203-62; renumbered to C.M.C. 203-1-B1, eff. Jan. 1, 1972; a. Ord. No. 545-1983, eff. Dec. 23, 1983)

Sec. 203-1-C. City.

"City" shall mean the city of Cincinnati, state of Ohio.
(C.O. 203-c1; renumbered to C.M.C. 203-1-C, eff. Jan. 1, 1972; a. Ord. No. 545-1983, eff. Dec. 23, 1983)

Sec. 203-1-C1. Council.

"Council" shall mean the council of the city of Cincinnati.
(C.O. 203-c1; renumbered to C.M.C. 203-1-C1, eff. Jan. 1, 1972; a. Ord. No. 545-1983, eff. Dec. 23, 1983)

Sec. 203-1-C2. Creditable Service.

"Creditable Service" shall mean the sum of a Member's:

(a) Membership Service,

(b) [Repealed.]

(c) State Retirement System Credit purchased under Section 203-8,

(d) Out of State or Federal Service Credit purchased under Section 203-7-B,

(e) Unpaid Authorized Leave of Absence Service Credit purchased under Section 203-7-C, and

(f) Prior Service Credit from Eligible System purchased under Section 203-7-A.

(C.O. 203-3; renumbered to C.M.C. 203-1-C2, eff. Jan. 1, 1982; a. Ord. No. 545-1983. eff. Dec. 23, 1983; a. Ord. No. 352-2001, eff. Oct. 31, 2001; Emer. Ord. No. 379-2008, eff. Nov. 19, 2008; Emer. Ord. 290-2009, § 4, eff. Oct. 28, 2009; a. Ord. No. 336-2016, § 1, eff. Nov. 26, 2016)

Sec. 203-1-C3. Current Employees Class.

"Current Employees Class" shall mean all persons who (a) participated in the CRS with at least five (5) years of Creditable Service on July 1, 2011 and (b) were actively employed or otherwise qualified for benefits on July 1, 2011, and (c) are Members of Group C, Group D, Group E, or Group F, as defined under Section 203-1-M1(b), (c), (d), and (e). In addition, the dependents and/or surviving beneficiaries of any Current Employees Class Member who is entitled to retirement benefits subject to the Collaborative Settlement Agreement shall be included in the Current Employees Class.
(Ordained by Ord. No. 336-2016, § 2, eff. Nov. 26, 2016)

Sec. 203-1-C4. Collaborative Settlement Agreement.

"Collaborative Settlement Agreement" shall mean the Collaborative Settlement Agreement entered into on May 7, 2015 in Sunyak, et al., v. City of Cincinnati, et al. (the City of Cincinnati Pension Litigation), Case: 1:11-cv-00445-MRB in the United States District Court, Southern District of Ohio, Western Division.
(Ordained by Ord. No. 336-2016, § 2, eff. Nov. 26, 2016)

Sec. 203-1-C5. Collaborative Settlement Agreement Effective Date.

"Collaborative Settlement Agreement Effective Date" shall mean the day after which all of the following events have occurred: (1) the Collaborative Settlement Agreement is fully executed by all the Parties; (2) the court enters the preliminary approval order; and (3) the court enters the order granting final approval.
(Ordained by Ord. No. 336-2016, § 2, eff. Nov. 26, 2016)

Sec. 203-1-D. Deferred Vested Member.

"Deferred Vested Member" shall mean a Member who (i) is not an Active Member, (ii) has contributions on deposit with the Retirement System; (iii) is vested, and (iv) is not currently eligible for a Service Retirement Allowance.
(Ordained by Ord. No. 336-2016, § 2, eff. Nov. 26, 2016)

Sec. 203-1-D2. Disability Retiree.

"Disability Retiree" shall mean a Member receiving a disability retirement allowance under Section 203-41.
(Ordained by Ord. No. 336-2016, § 2, eff. Nov. 26, 2016)

Sec. 203-1-E. Employee.

"Employee" shall mean any officer, servant or employee of the City, not elected, but shall not include officers and employees who receive no salary.

Subject to the provisions of Section 203-23, "Employee" shall not include:

(1) Any person who is employed by a temporary help service or other independent contractor and performs services under the direction of any agent or employee of the City;

(2) Any person who is employed on a contractual basis by the City or any of its independent boards, commissions or any other employing agency that participates in the Retirement System; and

(3) Any person who is employed under a personal service contract by the City or any of its independent boards, commissions or any other employing agencies that participate in the Retirement System.

Eligibility for Creditable Service as an "Employee" shall be determined exclusively by the provisions of this chapter regardless of any eligibility for or determination of civil service status.

In all cases of doubt, the Board shall decide who is a Member within the meaning of the ordinance sections governing the Retirement System. Any such determination by the Board shall be final and conclusive.

The Board may also permit any Member who transferred to county employment under the terms of a City/county agreement to continue participation in the City Retirement System as if such person were a City Employee as long as the person continues to receive a regular salary from the county for service. Transfers or promotions to other county employment after the initial entry

into county service under the terms of the City/county agreement will not affect an Employee's eligibility to remain in the City Retirement System as long as there is no break in service and the Employee receives an exemption from participation in the Public Employees' Retirement System.
(C.O. 203-E1; renumbered to C.M.C. 203-E-1, eff. Jan. 1, 1972; a. Ord. No. 319-74, eff. July 1, 1974; a. Ord. No. 53-1977, eff. Feb. 24, 1977; a. Ord. No. 300-1979, eff. Aug. 4, 1979; a. Ord. No. 326-1983, eff. Aug. 6, 1983; a. Ord. No. 545-1983, eff. Dec. 23, 1983; a. Ord. No. 406-1988, eff. Oct. 12, 1988; a. Ord. No. 246-1991, eff. July 1, 1991; a. Ord. No. 336-2016, § 1, eff. Nov. 26, 2016)

Sec. 203-1-E1. Employer.

"Employer" shall mean the employer of an Active Member described in Section 203-1-A2.
(Ordained by Ord. No. 545-1983, eff. Dec. 23, 1983; a. Ord. No. 336-2016, § 1, eff. Nov. 26, 2016)

Sec. 203-1-I. IRC.

"IRC" means the Federal Internal Revenue Code of 1986, as amended from time to time. Reference to a section of the IRC includes all regulations that are issued by the United States Department of the Treasury, revenue rulings of the Internal Revenue Service, and decisions of any court of competent jurisdiction that are lawful and pertinent to the interpretation, application or effectiveness of such section with respect to the status of the Retirement System as a tax-qualified plan under IRC Section 401(a).
(Ordained by Ord. No. 264-2000, eff. June 28, 2000)

Sec. 203-1-I1. Inactive Member.

"Inactive Member" shall mean a Member who has contributions on deposit with the Retirement System but is not an Employee and is not vested.
(Ordained by Ord. No. 336-2016, § 2, eff. Nov. 26, 2016)

Sec. 203-1-L. Limitation Year.

"Limitation Year" shall mean the calendar year for Internal Revenue Code Chapter 415 purposes.
(Ordained by Emer. Ord. No. 291-2009, § 1, eff. Oct. 28, 2009; Emer. Ord. No. 083-2013, § 2, eff. April 10, 2013)

Sec. 203-1-M. Medical Director.

"Medical director" shall mean the physician provided for in Article XV, Section 6, of the administrative code.
(C.O. 203-m1; renumbered to C.M.C. 203-1-M, eff. Jan. 1, 1972; a. Ord. No. 545-1983, eff. Dec. 23, 1983)

Sec. 203-1-M1. Member.

"Member" shall mean any person enrolled in the membership of the Retirement System as provided in Section 203-3. Membership in the Retirement System is terminated by the death of the Member or by the withdrawal of the Member's Accumulated Contributions as provided in Section 203-11. Except for Inactive Members and Members who were Deferred Vested Members on July 1, 2011, effective on and after July 1, 2011, Members shall be designated a Member in one of the following groups. For purposes of determining the group in which a Member is placed, years of service will include only service earned through June 30, 2011, or service credited pursuant to a service purchase through June 25, 2011.

(a) "Groups A and B" shall mean any Member who has retired under the Plan prior to July 1, 2011;

(b) "Group C" shall mean any Member who, as of June 30, 2011, was an Active Member or a Deferred Vested Member and has either (i) completed at least thirty (30) years of service, or (ii) reached age sixty (60) and completed at least five (5) years of service, regardless of the Member's Retirement date;

(c) "Group D" shall mean any Member who, as of June 30, 2011, was either:

(i) An Active Member and who, during the period beginning on July 1, 2011 and ending on December 31, 2013, both:

(A) Retired, and

(B) Either

(I) Completed at least thirty (30) years of service, or

(II) Reached age sixty (60) and completed at least five (5) years of service; or

(ii) A Deferred Vested Member and who, regardless of the Member's Retirement date, during the period beginning on July 1, 2011 and ending on December 31, 2013, either:

(A) Completed at least thirty (30) years of service, or

(B) Reached age sixty (60) and completed at least five (5) years of service.

(d) "Group E" shall mean any Member who, as of June 30, 2011, was an Active Member and who:

(i) During the period beginning on July 1, 2011 and ending on December 31, 2013, either:

(A) Completed at least thirty (30) years of service, or

(B) Reached age sixty (60) and completed at least five (5) years of service; and

(ii) Retired after January 1, 2014.

(e) "Group F" shall mean any Member whose most recent membership enrollment date was prior to January 1, 2010, and who is not in Groups A through E.

(f) "Group G" shall mean any Member whose most recent membership enrollment date is on or after January 1, 2010, or a Retiree of the Cincinnati Retirement System who is receiving a Service Retirement Allowance and is re-employed on or after April 1, 2013 pursuant to Section 203-137.

(C.O. 203-m2; renumbered to C.M.C. 203-1-M1, eff. Jan. 1, 1972; a. Ord. No. 545-1983. eff. Dec. 23, 1983; a. Ord. No. 084-2011, § 3, eff. April 16, 2011; Emer. Ord. No. 083-2013, § 2, eff. April 10, 2013; a. Ord. No. 336-2016, § 1, eff. Nov. 26, 2016; a. Emer. Ord. No. 343-2018, § 1, eff. Oct. 31, 2018)

Sec. 203-1-M2. Repealed.

(C.O. 203-m4; ordained by Ord. No. 16-1959, eff. Jan. 28 1959; renumbered to C.M.C. 203-1-M2, eff. Jan. 1, 1972; a. Ord. No. 545-1983, eff. Dec. 23, 1983; r. Ord. No. 336-2016, § 3, eff. Nov. 26, 2016)

Sec. 203-1-M3. Membership Service.

"Membership Service" shall mean service as an Employee since last becoming a Member and such other service rendered subsequent to August 1, 1931, for which credit is allowed under the provisions of this chapter. Membership Service shall include purchased Contract Service as provided for in Section 203-23, Creditable Military Service purchased under Section 203-27, USERRA service established under Section 203-27A, Military Service Credit Prior to Membership purchased under Section 203-28, and purchase of Prior

Withdrawn Retirement System Service as provided for in Section 203-29. Membership Service shall not include any purchase of Prior Service Credit from Eligible System under Section 203-7-A, any Out of State or Federal Service Credit purchased under Section 203-7-B, any Unpaid Authorized Leave of Absence Service Credit purchased under Section 203-7-C, or State Retirement System Service Credit obtained under Section 203-8.
(C.O. 203-m3; renumbered to C.M.C. 203-1-M3, eff. Jan. 1, 1972; a. Ord. No. 545-1983, eff. Dec. 23, 1983; a. Ord. No. 352-2001, eff. Oct. 31, 2001; Emer. Ord. No. 379-2008, eff. Nov. 19, 2008; Emer. Ord. 290-2009, § 5, eff. Oct. 28, 2009; a. Ord. No. 336-2016, § 1, eff. Nov. 26, 2016; a. Emer. Ord. No. 343-2018, § 1, eff. Oct. 31, 2018)

Sec. 203-1-O. Optionee.

"Optionee" shall mean a person designated, in writing and filed with the Board, by the Member at the time of the Member's Retirement, to receive a reduced allowance under Section 203-63.
(Ordained by Ord. No. 336-2016, § 2, eff. Nov. 26, 2016)

Sec. 203-1-P. Pension.

"Pension" shall mean payments for life derived from the money provided by the employer. All pensions shall be paid in equal monthly installments.
(C.O. 203-p1; renumbered to C.M.C. 203-1-P, eff. Jan. 1, 1972; a. Ord. No. 545-1983, eff. Dec. 23, 1983)

Sec. 203-1-P1. Repealed.
(C.O. 203-p3; renumbered to C.M.C. 203-1-P2, eff. Jan. 1, 1972; a. Ord. No. 545-1983, eff. Dec. 23, 1983; r. Emer. Ord. No. 083-2013, § 2, eff. April 10, 2013)

Sec. 203-1-P2. Noncontributing Prior Service.

"Noncontributing prior service" shall mean service rendered by an employee during which service such employee was exempted from membership in the retirement system. Such service includes but is not limited to service in a part-time or temporary capacity prior to July 1, 1991.
(C.O. 203-1-p2; ordained by Ord. No. 445-1997, eff. Dec. 17, 1997; a. Emer. Ord. No. 343-2018, § 1, eff. Oct. 31, 2018)

Sec. 203-1-P3. Prior State Retirement System Compensation.

A member's Prior State Retirement System Compensation shall be compensation the member earned with his employers under the State Retirement System that is taken into account for purposes of determining his average highest compensation, as provided in Section 203-1-A3.
(Ordained by Ord. No. 352-2001, eff. Oct. 31, 2001)

Sec. 203-1-P4. Plan Year.

"Plan Year" shall mean the calendar year.
(Ordained by Emer. Ord. No. 291-2009, § 2, eff. Oct. 28, 2009)

Sec. 203-1-P5. Pensioner.

"Pensioner" shall mean a person receiving an allowance under this Chapter.
(Ordained by Ord. No. 336-2016, § 2, eff. Nov. 26, 2016)

Sec. 203-1-R. Regular Interest.

"Regular interest" shall mean:

(a) Interest at 4 percent per annum compounded annually for contributions accumulated prior to January 1, 1958; and at 3½ percent per annum compounded annually for periods from and after January 1, 1958, to Janu-

ary 1, 1964; and at 3½ percent per annum compounded annually for periods from January 1, 1964, to January 1, 1968; and at 4 percent per annum compounded annually for periods from and after January 1, 1968, when such accumulated contributions are applied to the payment of annuities.

(b) In all other cases, interest at 4 percent per annum compounded annually for periods prior to January 1, 1942, and at 2 percent per annum compounded annually for periods from and after January 1, 1942.

(C.O. 203-r1; a. Ord. No. 455-1957, eff. Jan. 1, 1958; a. Ord. No. 98-1964, eff. Jan. 1, 1964; a. Ord. No. 33-1968, eff. Jan. 24, 1968; renumbered to C.M.C. 203-1-r, eff. Jan. 1, 1972; a. Ord. No. 545-1983, eff. Dec. 23, 1983)

Note—For effect on members who retired prior to Jan. 1, 1958, see Ord. No. 62-1959, eff. Apr. 17, 1959.

Sec. 203-1-R1. Retirement.

"Retirement" shall mean the separation from service of an Active Member who is eligible for the receipt of a Service Retirement Allowance on or before their last day of employment service, and has applied for and submitted all required documentation to the Cincinnati Retirement System.

(C.O. 203-r2; renumbered to C.M.C. 203-1-R1, eff. Jan. 1, 1972; a. Ord. No. 545-1983, eff. Dec. 23, 1983; a. Ord. No. 336-2016, § 1, eff. Nov. 26, 2016; a. Emer. Ord. No. 343-2018, § 1, eff. Oct. 31, 2018)

Sec. 203-1-R2. Repealed.

(C.O. 203-r3; renumbered to C.M.C. 203-1-R2, eff. Jan. 1, 1972; a. Ord. No. 545-1983, eff. Dec. 23, 1983; r. Ord. No. 084-2011, § 22, eff. April 16, 2011)

Sec. 203-1-R3. Retirement System.

"Retirement system" shall mean the retirement system for employees of the city of Cincinnati as provided for by Article XV of the administrative code.

(C.O. 203-r4; renumbered to C.M.C. 203-1-R3, eff. Jan. 1, 1972; a. Ord. No. 545-1983, eff. Dec. 23, 1983)

Sec. 203-1-R4. Retirant.

"Retirant" shall mean a person who was formerly employed by the City and who is receiving a Service Retirement Allowance under this Chapter for a period of time that exceeds the re-employment qualification period and subsequently becomes an Active Member of the Retirement System. "Retirant" does not include any person who is receiving a disability retirement allowance as provided under Section 203-41.

(Ordained by Emer. Ord. No. 083-2013, § 2, eff. April 10, 2013; a. Ord. No. 336-2016, § 1, eff. Nov. 26, 2016)

Sec. 203-1-R5. Retiree.

"Retiree" shall mean a person who was formerly employed by the City and who is receiving a Service Retirement Allowance under this Chapter. "Retiree" does not include any person who is receiving a disability retirement allowance as provided under Section 203-41.

(Ordained by Ord. No. 336-2016, § 2, eff. Nov. 26, 2016)

Sec. 203-1-R6. Retirees Class.

"Retirees Class" shall mean all persons who (a) were formerly employed by the City of Cincinnati, the University of Cincinnati, the University Hospital f/k/a General Hospital and Hamilton County, (b) retired on or before July 1, 2011, and (c) have received retirement benefits under the Retirement

System, and their dependents and/or their surviving beneficiaries who are entitled to those benefits pursuant to this Chapter.
(Ordained by Ord. No. 336-2016, § 2, eff. Nov. 26, 2016)

Sec. 203-1-R7. Retirement Effective Date.

"Retirement Effective Date" shall mean the first day of the month after the all of following have occurred:

(a) the Member has become eligible for the receipt of a Service Retirement Allowance,

(b) the Member has applied for receipt of a Service Retirement Allowance as provided under this Chapter, and

(c) the Member has separated from active employment service.

A Retirement Effective Date shall always be on the first of a month.
(Ordained by Ord. No. 336-2016, § 2, eff. Nov. 26, 2016)

Sec. 203-1-S. Service.

"Service" shall mean service as an employee as described in Section 203-1-E and paid for by the city and military service for which the city has made pension and annuity contributions on behalf of the employee.
(C.O. 203-s1; renumbered to C.M.C. 203-1-S, eff. Jan. 1, 1972; a. Ord. 545-1983, eff. Dec. 23, 1983; Emer. Ord. No. 083-2013, § 2, eff. April 10, 2013)

Sec. 203-1-S1. State Retirement System.

"State Retirement System" shall include the following Ohio retirement systems:

(i) The Public Employees Retirement System ("PERS"),

(ii) The State Teachers Retirement System ("STRS"),

(iii) The School Employees Retirement System ("SERS"),

(iv) The Police and Fire Pension Fund ("PFPF"), and

(v) The Highway Patrol Retirement System ("HPRS").

(Ordained by Ord. No. 352-2001, eff. Oct. 31, 2001)

Sec. 203-1-S2. State Retirement System Service Credit.

"State Retirement System Service Credit" means the amount of creditable service that a member becomes entitled to under this Retirement System pursuant to one or more transfers of service credit from a State Retirement System, as provided in Section 203-8.
(Ordained by Ord. No. 352-2001, eff. Oct. 31, 2001)

Sec. 203-1-S3. Out of State and Federal Service Credit.

"Out of State and Federal Service Credit" means the total amount of creditable service that a member becomes entitled to by purchasing such creditable service under this Retirement System pursuant Section 203-7-B.
(Ordained by Emer. Ord. No. 379-2008, eff. Nov. 19, 2008)

Sec. 203-1-S4. Unpaid Authorized Leave of Absence Service Credit.

"Unpaid Authorized Leave of Absence Service Credit" means the total amount of creditable service that a member becomes entitled to by purchasing such creditable service under this Retirement System pursuant to Section 203-7-C.
(Ordained by Emer. Ord. 290-2009, § 1, eff. Oct. 28, 2009)

Sec. 203-1-S5. Service Retirement Allowance.

"Service Retirement Allowance" shall mean the sum of the annuity and the pension.
(Ordained by Ord. No. 084-2011, § 1, eff. April 16, 2011; a. Ord. No. 336-2016, § 1, eff. Nov. 26, 2016)

Sec. 203-1-S6. Survivor.

"Survivor" shall mean a person receiving survivor benefits under Section 203-49.
(Ordained by Ord. No. 336-2016, § 2, eff. Nov. 26, 2016)

Sec. 203-3. Membership.

Effective July 1, 1991, all Employees and all persons who shall hereafter become Employees of the City shall be enrolled as Members of the Retirement System except the following:

(a) Active and retired Members of the Police and Fireman's Disability and Pension Fund of Ohio.

(b) [Repealed.]

(c) Members of the faculties, teaching staffs, research staffs, and administrative staff of the University of Cincinnati appointed to positions covered by the Teachers Insurance and Annuity Association Social Security Plan.

(d) [Repealed.]

(e) Persons becoming Employees after June 1, 1961, who are employed in any of the following employment classifications: bricklayer, carpenter, carpenter foreman, cement finisher, electrician, electrician foreman, painter, painter foreman, plasterer, plumber, sign painter, steamfitter and pipefitter, tinsmith, or composition roofer.

(f) Persons hired as Police Recruits who are not currently enrolled as a Member of the Retirement System prior to their date of hire.

(g) Current contributing members of the School Employees Retirement System (SERS) or the State Teachers Retirement System (STRS) who are hired by the City on a seasonal, temporary, or part-time basis.

(C.O. 203-2; a. Ord. No. 202-1961, eff. July 14, 1961; a. Ord. No. 468-1961, eff. Dec. 28, 1961; renumbered to C.M.C. 203-3, eff. Jan. 1, 1972; a. Ord. No. 300-1979, eff. Aug. 4, 1979; a. Ord. No. 545-1983, eff. Dec. 23, 1983; a. Ord. No. 246-1991, eff. July 1, 1991; Emer. Ord. No. 083-2013, § 2, eff. April 10, 2013; a. Ord. No. 336-2016, § 1, eff. Nov. 26, 2016)

Sec. 203-5. CETA and New Careers Program.

Individuals who are hired for training under the New Careers Program and whose full salaries are reimbursed by the Community Action Commission shall be ineligible for membership in the city retirement system during any period of time they are participating in the New Careers Program.

Individuals who are hired after June 30, 1979, as participants in any program authorized, undertaken or financed pursuant to the Comprehensive Employment and Training Act shall be ineligible for membership in the city retirement system during any period of time they are participating in such program.
(C.O. 203-2A; ordained by Ord. No. 458-1967, eff. Jan. 12, 1968; renumbered to CMC 203-5, eff. Jan. 1, 1972; a. Ord. No. 69-1981, eff. Feb. 25, 1981; a. Ord. No. 545-83, eff. Dec. 23, 1983)

Sec. 203-6. Service Purchase Administrative Provisions.

(a) For purposes of service purchased under Sections 203-7, 203-7-A, 203-7-B, 203-7-C, 203-8, 203-23, 203-27A, 203-28, and

203-29, service shall be credited as it is purchased and in accordance with the Service Retirement Allowance under Section 203-33 that applies to the Member at the time the service is purchased, and in accordance with any applicable transfer agreements. The purchase of service, when combined with any other creditable service of the Member for the same calendar year as the purchased service, shall not result in the Member receiving more than one year of service credit per calendar year. If the Member is permitted to pay on an installment basis and fails to complete the payments within five years or becomes unable to complete the payments due to non-payment, termination, death, or disability, the system shall only credit the Member with the service which is funded as of the date of non-payment, termination, death, or disability. An individual must be an Active Member to purchase service.

(b) Effective on and after July 1, 2011, Members who purchase service under Sections 203-7, 203-7-A, 203-7-B, 203-7-C, 203-8, 203-23, 203-27A, 203-28 and 203-29 shall be credited with service in the following manner:

(i) For Members in Group C, service purchased prior to the date of Retirement shall be credited toward the Service Retirement Allowance formula under subsections (c) or (e) of Section 203-33, as determined pursuant to subsections (b) and (d) of Section 203-33.

(ii) For Members in Group D, service purchased prior to the date of Retirement shall be credited toward the Service Retirement Allowance formula under subsections (c) or (e) of Section 203-33, as determined pursuant to subsections (b) and (d) of Section 203-33.

(iii) For Members in Group E, service purchased:

(A) On or before December 31, 2013 and prior to the date of Retirement, shall be credited toward the Service Retirement Allowance formula under subsections (c) or (e) of Section 203-33, as determined pursuant to subsections (b) and (d) of Section 203-33;

(B) On or after January 1, 2014 and prior to the date of Retirement, shall be credited toward the Service Retirement Allowance formula under Section 203-33(h)(iii).

(iv) For Members in Group F, service purchased:

(A) On or before June 30, 2011 and prior to the date of Retirement, shall be credited toward the Service Retirement Allowance formula under subsections (c) or (e) of Section 203-33, as determined pursuant to subsections (b) and (d) of Section 203-33;

(B) On or after July 1, 2011 and prior to the date of Retirement, shall be credited toward the Service Retirement Allowance formula under 203-33(h)(iv).

(v) For Members in Group G, service credited prior to the date of Retirement shall be credited toward the Service Retirement Allowance formula under Section 203-33(h)(v).

(Ordained by Ord. No. 084-2011, § 1, eff. April 16, 2011; a. Ord. No. 336-2016, § 1, eff. Nov. 26, 2016; Emer. Ord. No. 357-2017, § 2, eff. Dec. 20, 2017; a. Emer. Ord. No. 343-2018, § 1, eff. Oct. 31, 2018)

Sec. 203-7. Members Not To Belong to the Ohio Police and Fire Pension Fund.

(a) A member of the police or fire division who becomes a City Employee in a position covered by this Retirement System shall not become a Member of this system if such Employee continues to be a member of the Police and Fire Pension Fund ("PFPF") and the City and the Employee are required to make contributions to PFPF based upon the employment with the City. If the City and the Employee are not required to make contributions to PFPF based upon employment with the City, the Employee shall become a Member of this Retirement System.

(b) If an Employee described in paragraph (a) becomes a Member of this Retirement System, the Employee may be permitted to purchase additional Creditable Service for such period of service in the police and fire division pursuant to Section 203-8. If the Employee is not permitted to purchase Creditable Service under Section 203-8, the Employee shall be permitted to purchase additional Creditable Service for such period of service in accordance with the provisions of Section 203-7-B.

(C.O. 203-3; a. Ord. No. 22-1965, eff. Feb. 19, 1965; a. Ord. No. 90-1966, eff. Mar. 2, 1966; a. Ord. No. 157-1967, eff. Apr. 26, 1967, renumbered to C.M.C. 203-7, eff. Jan. 1, 1972; a. Ord. No. 300-1979, eff. Aug. 4, 1979; a. Ord. No. 545-1983, eff. Dec. 23, 1983; a. Ord. No. 352-2001, eff. Oct. 31, 2001; a. Ord. No. 336-2016, § 1, eff. Nov. 26, 2016; Emer. Ord. No. 357-2017, § 2, eff. Dec. 20, 2017)

Sec. 203-7-A. Purchase of Prior Service Credit From Eligible Systems.

(a) A Member of PERS who becomes an Employee of an employer in a position covered by this Retirement System shall not become a Member of this system if while employed in such position, the employer and the Employee are required to make contributions to PERS based upon the employment with the employer.

If the employer and the Employee are not required to make contributions to PERS based upon the employment with the employer, the Employee shall become a Member of this Retirement System. In addition, pursuant to Section 203-8, the Employee shall be allowed, at the Employee's option, to obtain credit for credited service the Member has in PERS.

(b) An Active Member of the Retirement System who has non-contributing prior service shall be allowed, at the Employee's option, to obtain Creditable Service for the time served as a City Employee, as defined in Section 203-1-E, by depositing in this system an amount equal to 100 percent of the amount determined by the actuary chosen by the Retirement System, to be necessary to fund the pension payable on account of the Member's period of service purchased under this section.

Any Employee desiring to exercise the option to purchase Creditable Service for non-contributing prior service shall make application to the Board of trustees of the Retirement System, which application shall be accompanied by a non-refundable $250 application fee for the cost of the actuarial study required by subsection (b) hereof and the costs of staff time required for the retrieval of payroll records. If the Employee purchases credit the $250 fee shall be applied toward the cost of such purchase.

At the time of application, an Employee shall provide payroll records or other proof of prior non-contributing service for periods prior to December 31, 1982 for which City records are not available, in a form and manner acceptable to the Board. The deci-

sion of the Board as to whether or not such payroll records provide proper verification of prior non-contributing service shall be final. City payroll records shall be used for all calculations pertaining to prior service which occurred on or after January 1, 1983.

Applications under this subsection (b) may be filed by all persons who were Employees, as defined in Section 203-1-E of this Chapter, on or after July 3, 1996. Applications for purchase of service credit under this subsection (b) shall be made on or before November 1, 1998 or within thirty-six (36) months of the date of becoming a Member of the Retirement System, whichever is later.

(c) The minimum number of years of service required under the provisions of Section 203-42, 203-43 and Section 203-44 for health care benefits cannot be supplied by the purchase of credit under the provisions of this section; however, credit purchased under the provisions of this Section will be applied to years of City service in excess of the required minimum number of years of service in order to determine the percentage of premiums to be paid by the Retirement System on behalf of a retired Member.
(C.O. 203-7-A; ordained by Ord. No. 445-1997, eff. Dec. 17, 1997; a. Ord. No. 352-2001, eff. Oct. 31, 2001; a. Ord. No. 336-2016, § 1, eff. Nov. 26, 2016)

Sec. 203-7-B. Purchase of Out of State or Federal Service Credit.

(a) An Active Member of the Retirement System shall be permitted to obtain Creditable Service under this Retirement System if (i) the Member has "Eligible Out of State Service" or "Eligible Federal Service" (as defined below), and (ii) the Member satisfies all of the requirements of subsection (b) below. The amount of such Creditable Service and the purposes for which it shall be used under this Retirement System are described in subsection (c) below.

(b) A Member meets the requirements of this subsection if all of the following requirements are met:

(i) The Member is an Employee, as defined in Section 203-1-E of this Chapter, after the effective date of this Section.

(ii) The Member shall have been a Member for at least 18 consecutive months at the time that the Member either makes payment or begins making payments for the Creditable Service.

(iii) The Member is an Employee at the time of payment for the Creditable Service.

(iv) The purchase of service, when combined with any other creditable service of the Member for the same calendar year as the purchased service, shall not result in the Member receiving more than one year of service credit per calendar year.

(c) In order to become entitled to additional Creditable Service under this Section, the Member shall deposit in this system an amount equal to 100 percent of the amount determined by the actuary chosen by the Retirement System, to be necessary to fund the additional Service Retirement Allowance and all other benefits that shall be payable under the Retirement System on account of the Member's purchase of Creditable Service under this section. Payment by the Member may be made in any combination of the following methods:

(i) [Repealed.]

(ii) Payroll deduction by the Member pursuant to a pick-up plan that meets the requirements of IRC Section 414(h)(2).

(iii) The Member making a rollover contribution (including a direct rollover) to the Retirement System from an "Eligible Retirement Plan," as defined in Section 203-117.

(iv) A trustee-to-trustee transfer from a 403(b) plan or an eligible governmental deferred compensation 457(b) plan.

(v) Any other direct payment in cash to the Retirement System.

Any Employee desiring to exercise the option to purchase Creditable Service under this Section shall make application to the Board, which application shall be accompanied by a non-refundable $250 application fee for the cost of the actuarial study required to determine the cost. If the Employee purchases Creditable Service, the $250 fee shall be applied toward the cost of such purchase.

At the time of application, an Employee shall provide payroll records or other proof of "Eligible Out of State Service" or "Eligible Federal Service," in a form and manner acceptable to the Board.

For this purpose, a rollover contribution shall be a contribution to this Retirement System that, in accordance with IRC Sections 402(c), 403(a)(4), 403(b)(8), 408(d)(3) or 457(e)(16) and procedures established by the Board, a Member makes by delivering, or causing to be delivered to the Retirement System, assets in cash which constitute such rollover contribution.

(d) The minimum number of years of service required under the provisions of Section 203-42, 203-43 and Section 203-44 for health care benefits cannot be supplied by the purchase of credit under the provisions of this Section; however, credit purchased under the provisions of this Section will be included when determining the percentage of premiums to be paid by the Retirement System on behalf of a Retired Member.

(e) The total amount of Creditable Service purchased under this Section shall not exceed the lesser of five years or the Member's total number of years of Eligible Out of State Service and Eligible Federal Service.

(f) For purposes of this Section:

(i) "Eligible Out of State Service" shall include membership service in a defined benefit plan earned as a common law employee of a state other than Ohio (another state), a political subdivision of another state, an agency or instrumentality of another state, or the District of Columbia, that is not concurrent with full-time City service, and provided that such employment shall not be used in the calculation of any retirement benefit currently being paid or payable in the future to the Member under any other retirement program except social security.

(ii) "Eligible Federal Service" shall include membership service in a defined benefit plan earned as a common law employee of the United States and its possessions and territories, or an agency or instrumentality of the United States, that is not concurrent with full-time City service, and provided that such employment shall not be used in the calculation of any retirement benefit currently being paid or payable in the future to the Member under any other retirement program except social security. At the time the Creditable Service is

purchased, the Member shall certify this requirement to the Board on a form furnished by the Board.

(g) At the time that "Out of State" or "Federal Service Credit" is purchased under this Section, the Member shall certify to the Board, on a form furnished by the Board, that the prior employment, or service as an elected official, will not be used in the calculation of any retirement benefit currently being paid or payable in the future to the Member under any other retirement program except social security. In accordance with Section 203-133, the Board shall otherwise have full authority to administer the terms of this Section. All decisions of the Board made in regard to the administration of this Section shall be final, including without limitation (i) determinations of the Board in regard to the question of whether or not records supplied by a Member provide proper verification of "Eligible Out of State Service" or "Eligible Federal Service," and (ii) determinations of whether other service constitutes "Eligible Out of State Service" or "Eligible Federal Service".
(Ordained by Emer. Ord. No. 379-2008, eff. Nov. 19, 2008; Emer. Ord. 290-2009, § 6, eff. Oct. 28, 2009; a. Ord. No. 336-2016, § 1, eff. Nov. 26, 2016; a. Emer. Ord. No. 343-2018, § 1, eff. Oct. 31, 2018)

Sec. 203-7-C. Purchase of Unpaid Authorized Leave of Absence Service Credit.

(a) An Active Member of the Retirement System shall be permitted to obtain up to one (1) year Creditable Service under this Retirement System if the Member satisfies all of the requirements of subsection (b) below. The purposes for which the service credit shall be used under this Retirement System are described in subsection (c) below.

(b) A Member meets the requirements of this subsection if all of the following requirements are met:

(i) The Member has had at least 160 hours of continuous, non-contributing unpaid authorized leave of absence from full-time City service for any reason except for leaves due to corrective action from the disciplinary process.

(ii) The Member is an Employee, as defined in Section 203-1-E of this Chapter, on or after October 28, 2009.

(iii) The Member shall have returned to work as an employee and maintained employment for at least 18 consecutive months at the time that the Member applies to purchase the service.

(iv) The purchase of the service complies with Section 203-6.

(c) In order to become entitled to additional Creditable Service under this section, the Member shall deposit in this system an amount equal to 100 percent of the amount determined by the actuary chosen by the Retirement System, to be necessary to fund the additional Service Retirement Allowance and all other benefits that shall be payable under the Retirement System on account of the Member's purchase of Creditable Service under this Section. Payment by the Member may be made in any combination of the following methods:

(i) [Repealed.]

(ii) Payroll deduction by the Member pursuant to a pick-up plan that meets the requirements of IRC Section 414(h)(2).

(iii) A trustee-to-trustee transfer from a 403(b) plan or an eligible governmental deferred compensation 457(b) plan.

(iv) The Member making a rollover contribution (including a direct rollover) to the Retirement System from an "Eligible Retirement Plan," as defined in Section 203-117.

(v) Any other direct payment in cash to the Retirement System.

Any Employee desiring to exercise the option to purchase Creditable Service under this Section shall make application to the Board, which application shall be accompanied by a non-refundable $250 application fee for the cost of the actuarial study required to determine the cost. If the Employee purchases Creditable Service, the $250 fee shall be applied toward the cost of such purchase.

At the time of application, a Member shall provide a letter from his or her employing agency stating all of the following: (i) the Member was on an unpaid authorized leave of absence unrelated to corrective action from the disciplinary process; (ii) the inclusive dates of the unpaid authorized leave of absence; and (iii) the Employee's rate of pay and monthly gross income at the time of the unpaid authorized leave of absence in a form and manner acceptable to the Board.

For this purpose, a rollover contribution shall be a contribution to this Retirement System that, in accordance with IRC Sections 402(c), 403(a)(4), 403(b)(8), 408(d)(3) or 457(e)(16) and procedures established by the Board, a Member makes by delivering, or causing to be delivered to the Retirement System, assets in cash which constitute such rollover contribution.

(d) The maximum amount of Creditable Service an Employee may purchase due to an unpaid authorized leave of absence is one (1) year, and the minimum amount of Creditable Service an Employee may purchase is 160 work hours. An Employee may purchase all or part of the Creditable Service for which the Employee is eligible provided the Employee purchases at least 160 work hours of Creditable Service.

(e) The minimum number of years of service required under the provisions of Section 203-42, 203-43 and Section 203-44 for health care benefits cannot be supplied by the purchase of credit under the provisions of this Section; however, credit purchased under the provisions of this Section will be applied to years of City service in excess of the minimum number of 20 years of service in order to determine the percentage of premiums to be paid by the Retirement System on behalf of a Retiree.

(f) At the time a Member purchases unpaid authorized leave of absence service credit, the Member shall certify to the Board, on a form furnished by the Board, that the unpaid authorized leave of absence service will not be used in the calculation of any retirement benefit currently being paid or payable in the future to the Member under any other retirement program except social security. In accordance with Section 203-133, the Board shall otherwise have full authority to administer the terms of this Section. All decisions of the Board made in regard to the administration of this Section shall be final, including without limitation (i) determinations of the Board in regard to the question of whether or not information supplied by a Member provides proper verification of "Unpaid Authorized Leave of Absence Service," and (ii) determinations of whether a leave of absence constitutes "Unpaid Authorized Leave of Absence Service."
(Ordained by Emer. Ord. 290-2009, § 2, eff. Oct. 28, 2009; a. Ord. No. 336-2016, § 1, eff. Nov. 26, 2016; a. Emer. Ord. No. 343-2018, § 1, eff. Oct. 31, 2018)

Sec. 203-8. State Retirement System Service Credit Transfer.

Subject to approval by the city council, the Board may enter into one or more transfer

agreements with the State Retirement Systems to permit Members of the Retirement System to elect to either (i) obtain State Retirement System Service Credit under this Retirement System that is attributable to a transfer of all or part of the Member's service credit under a State Retirement System, or (ii) obtain additional service credit under a State Retirement System that is attributable to a transfer of all or part of the Member's creditable service under this Retirement System.

Any transfers between this Retirement System and a State Retirement System shall be done in accordance with the terms of the applicable transfer agreement. Any such transfer agreement between the Board and a State Retirement System shall comply with applicable state law. No transfer agreement shall become effective until the City council has approved it. Likewise, no amendment of a transfer agreement or action by the Board terminating such agreement shall become effective until the City council has approved it. Notwithstanding the foregoing, any transfer agreement may have retroactive effect to the extent provided in the agreement, provided that the agreement is approved by City council.

The service retirement allowance or other benefits that a Member is to be provided with respect to the transfer of a Member's State Retirement System Service Credit to the Retirement System shall be determined solely in accordance with the provision of this Retirement System, as amended from time to time; and no transfer agreement with any State Retirement System may grant any additional benefits to a Member. Nor may a transfer agreement with a State Retirement System restrict or limit the power of the legislative authority of the city to amend the provisions of this Retirement System at any time and in any manner that is otherwise permitted by law. Any transfer agreement with a State Retirement System shall permit the agreement to be terminated, subject only to reasonable notice or other reasonable restrictions on such right of termination as may be part of the transfer agreement.

If a Member elects to obtain additional service credit under a State Retirement System that is attributable to creditable service under this Retirement System, the Member's creditable service and accumulated contributions under this Retirement System shall be reduced in an amount determined by the Board; and if the Member continues to retain any creditable service and accumulated contributions under this Retirement System, such Member's remaining entitlement to a service retirement allowance or other benefits shall be determined solely in accordance with the provisions of this Retirement System.

All amounts that are paid to the Retirement System pursuant to a transfer agreement shall be held as part of the Retirement System trust fund that has been established hereunder. The Board shall not be required to separately invest any such amounts or to separately account for any such amounts, except to the extent that separate accounting is required hereunder to properly account for the accumulated contributions of a Member.

If the Board is required to transfer funds and service credit to a State Retirement System, such transfers shall be made directly from the Retirement System fund to the State Retirement System; and the Board shall reduce the accumulated contributions and service credit of a Member in accordance with the terms of the applicable transfer agreement.

Once a transfer agreement has become effective, in accordance with Section 203-133, the Board shall have the power to

administer such agreement. To the extent not inconsistent with the provisions of this Retirement System and the terms of a transfer agreement, in the administration of a transfer agreement, the Board may address the following points:

(a) the Members who are entitled to elect a transfer of service credit,

(b) the amount of State Retirement System Credit to be credited to a Member who elects to transfer service credit from a State Retirement System,

(c) the amount of creditable service that a Member may transfer to a State Retirement System,

(d) a Member's payment method relating to any such transfers, and

(e) a requirement that a Member complete a transfer application form and acknowledgment of the effect of the transfer.

Notwithstanding the foregoing, no Member or former member who has an outstanding loan shall be permitted to transfer service credit to a State Retirement System under this Section unless and until such loan is repaid in full, with interest.
(Ordained by Ord. No. 352-2001, eff. Oct. 31, 2001; a. Ord. No. 084-2011, § 4, eff. April 16, 2011; Emer. Ord. No. 357-2017, § 2, eff. Dec. 20, 2017)

Sec. 203-9. University Board, Other Pension Systems.

If any member of the facilities, research and teaching staffs of the University of Cincinnati becomes a member of the retirement system, the board of directors of said university shall not contribute on behalf of any such employee to any other pension, retirement or annuity system.
(C.O. 203-4; renumbered to C.M.C. 203-9, eff. Jan. 1, 1972; a. Ord. No. 545-1983, eff. Dec. 23, 1983)

Sec. 203-11. Termination of Membership.

Membership in the Retirement System shall terminate as follows:

(a) On the death of the Member;

(b) [Repealed.]

(c) [Repealed.]

(d) If a Member withdraws his or her Accumulated Contributions after leaving City employment.

(C.O. 203-5; a. Ord. No. 73-1963; eff. Mar. 22, 1963; renumbered to C.M.C. 203-11, eff. Jan. 1, 1972; a. Ord. No. 465-1975, eff. Oct. 1, 1975; a. Ord. No. 300-1979, eff. Aug. 4, 1979; a. Ord. No. 545-1983, eff. Dec. 23, 1983; a. Ord. No. 084-2011, § 5, eff. April 16, 2011; Emer. Ord. No. 083-2013, § 2, eff. April 10, 2013; a. Ord. No. 336-2016, § 1, eff. Nov. 26, 2016)

Sec. 203-12. Benefit Claims.

Benefit(s) payable under this Chapter shall not be paid without proper documentation or application submitted by the Member, Beneficiary, or survivor as may be required. No benefits shall be paid retroactively.
(Ordained by Emer. Ord. No. 343-2018, § 1, eff. Oct. 31, 2018)

Sec. 203-13. Data as to New Members and Retirants.

Whenever an Employee is appointed, the appointing authority shall furnish to the Board a statement showing the name, title, compensation, duties and date of birth of such Employee, and such other information as the Board shall require. At the request of the Board, a Retirant shall provide any documentation required to establish eligibility to become a Retirant.
(C.O. 203-6; renumbered to C.M.C. 203-13, eff. Jan. 1, 1972; a. ord. No. 545-1983, eff.

Dec. 23, 1983; Emer. Ord. No. 083-2013, § 2, eff. April 10, 2013; a. Ord. No. 336-2016, § 1, eff. Nov. 26, 2016)

Sec. 203-15. Repealed.

(C.O. 203-8; renumbered to C.M.C. 203-15, eff. Jan. 1, 1972; a. Ord. No. 545-1983, eff. Dec. 23, 1983; r. Emer. Ord. No. 083-2013, § 2, eff. April 10, 2013)

Sec. 203-17. Repealed.

(C.O. 203-11; renumbered to C.M.C. 203-17, eff. Jan. 1, 1972; a. Ord. No. 300-1979, eff. Aug. 4, 1979; a. Ord. No. 545-1983, eff. Dec. 23, 1983; r. Emer. Ord. No. 083-2013, § 2, eff. April 10, 2013)

Sec. 203-19. Service Creditable.

Service creditable at retirement, on which the Service Retirement Allowance of a Member shall be based, shall consist of Creditable Service. The Board shall not credit as service for any period of more than one month's duration during which the Employee was absent without pay. The Board shall have power to add to the service creditable to any Member the service in a similar capacity rendered for the government of territory annexed to the City.

(C.O. 203-12; renumbered to C.M.C. 203-19, eff. Jan. 1, 1972; a. Ord. No. 300-1979, eff. Aug. 4, 1979; a. Ord. No. 545-1983, eff. Dec. 23, 1983; a. Ord. No. 084-2011, § 6, eff. April 16, 2011; a. Ord. No. 336-2016, § 1, eff. Nov. 26, 2016)

Sec. 203-21. Repealed.

(C.O. 203-13; a. Ord. No. 188-1958, eff. June 17, 1958; a. Ord. No. 30-1959, eff. Mar. 13, 1959; a. Ord. No. 399-1959, eff. Jan. 8, 1960; a. Ord. No. 98-1964, eff. Jan. 1, 1964; a. Ord. No. 33-1968, eff. Jan. 24, 1968; renumbered to C.M.C. 203-21, eff. Jan. 1, 1972; a. Ord. No. 43-1977, eff. Feb. 16, 1977; a. Ord. No. 300-1979, eff. Aug. 4, 1979; a. Ord. No. 69-1981, eff. Feb. 25, 1981; r. Ord. No. 336-2016, § 3, eff. Nov. 26, 2016)

Sec. 203-23. Contract Service Credit.

A member who was employed as a regular permanent employee, then for the convenience of the city employed in relatively the same capacity on a contract basis and then reemployed as a regular permanent employee, may receive credit for such period of contract service, if service including such contract service is continuous, upon payment into the fund prior to January 1, 1953, of a sum of money equal to the contributions that would have been made had the employee been a member during such period of contract service, plus interest at 3½ percent per annum compounded annually for periods from and after January 1, 1958, to January 1, 1964; and at 3¾ percent per annum compounded annually for periods from January 1, 1964, to January 1, 1968; and at 4 percent per annum compounded annually for periods from and after January 1, 1968, from the time such contributions would have been paid to the retirement system, had such person been a member from August 1, 1931, to the date of actual payment. For the purpose of determining such payment, the member shall be considered to have received during the period of contract service the same rate of pay received as a regular permanent employee immediately prior to employment on a contract basis, and the present rate of contribution shall be applied thereto. The board shall, in all cases, determine whether the member was employed on a contract basis for the convenience of the city; and such determination of the board shall be final.

(C.O. 203-13a; a. Ord. No. 188-1958, eff. June 27, 1958; a. Ord. No. 30-1959, eff. Mar. 13, 1959; a. Ord. No. 399-1959, eff. Jan. 8, 1960; a. Ord. No. 98-1964, eff. Jan. 1, 1964; 8. Ord. No. 33-1968, eff. Jan. 24, 1968;

renumbered to C.M.C. 203-23, eff. Jan. 1, 1972; a. Ord. No. 300-1979, eff. Aug. 4, 1979; a. Ord. No. 545-1983, eff. Dec. 23. 1983)

Sec. 203-25. Year of Service.

The board shall fix and determine, by appropriate rules and regulations, how much service in any year is equivalent to a year of service; but in no case shall more than one year of service be creditable for all service in one calendar year.
(C.O. 203-14; renumbered to C.M.C. 203-25, eff. Jan. 1, 1972; a. Ord. No. 545-1983, eff. Dec. 23, 1983)

Sec. 203-27. Creditable Military Service.

The Board may, during a period of national war emergency, by resolution declare an "emergency period" of indefinite duration to be terminated by resolution of the Board. Any Member entering the active military service of the United States during such an emergency period and returning to the City service within a reasonable time after honorable termination of such service shall be entitled to have the period of military service credited as City employment service and treated as prior service credit for the purpose of determining the Service Retirement Allowance, subject to the following:

(a) City service, military service and return to City service; must be continuous, with no interval of other regular employment.

(b) Accumulated Contributions must have been left standing in full to the Member's credit during the entire period, if withdrawn, the Accumulated Contributions must have been redeposited in full in accordance with the provisions of Section 203-29 of the Cincinnati Municipal Code.

The Board shall be authorized to adopt rules as to what shall constitute a "reasonable time after honorable termination of military service" in certain types of cases or to adjudge each case on its own facts.

Nothing in this section shall be construed to entitle a Member to the payment of pension or other benefits during the period of military service or during the period between military service and return to City service.
(C.O. 203-15; renumbered to C.M.C. 203-27, eff. Jan. 1, 1972; a. Ord. No. 300-1979, eff. Aug. 4, 1979; a. Ord. No. 545-1983, eff. Dec. 23, 1983; a. Ord. No. 336-2016, § 1, eff. Nov. 26, 2016)

Sec. 203-27A. USERRA Compliance.

The provisions of this section shall apply if a Member is absent from employment because of service in the "uniformed services" and is reemployed pursuant to the provisions of Chapter 43 of Title 38 of the United States Code (the Uniformed Services Employment and Reemployment Rights Act "USERRA").

(a) If the Member is not entitled to have the period of absence treated as City employment service pursuant to Section 203-27, the period of uniformed service shall be considered service as an Employee (as defined in Sections 203-1-E and 203-1-S) for all purposes of this chapter, other than the purposes described in paragraph (b) below.

(b) If the Member is not entitled to have the period of absence treated as City employment service pursuant to Section 203-27, for purposes of determining the amount of a Member's Service Retirement Allowance under Section 203-33, or the amount of disability retirement allowance of a Member

under Section 203-41, to the extent that the Member satisfies the contribution requirements of this paragraph (b), the Member shall be entitled to Membership Service and Creditable Service, respectively, for the period of absence. To obtain such Membership Service and Creditable Service, the Member must contribute to the Retirement System an amount equal to the payroll deductions that the Member would have been required to make pursuant to Section 203-73, determined as if the Member had been continuously employed during his or her absence and had received compensation at a rate of pay determined in a manner consistent with IRC Section 414(u)(7). Payment by the Member must be made within a period of time which begins on the date of the Member's reemployment and ends on the earlier of (i) five years, or (ii) three times the period of absence. If the Member pays less than the full amount of Member contributions required for the period of absence, the Board shall provide partial Membership Service and partial Creditable Service for such purposes, based on the amounts paid, beginning with the original date of absence. Payments may be made by payroll deduction if approved by the Board.

(c) If the reemployed Member has previously withdrawn his or her Accumulated Contributions, the Member shall be entitled to Membership Service for his or her employment prior to the uniformed services absence if repayment is made in accordance with Section 203-29.

(d) If a Member is entitled to Membership Service for all or part of a period of uniformed service absence pursuant to paragraph (b) above, for purposes of determining the Member's Average Highest Compensation under Section 203-1-A3, the Member shall be deemed to have earned compensation at the rate described above in paragraph (b) for any period of absence for which the Member pays the Employee contributions required under paragraph (b). If a Member is entitled to Membership Service for all or part of a period of uniformed service absence pursuant to Section 203-27, for purposes of determining the Member's Average Highest Compensation under Section 203-1-A3, the Member shall be deemed to have earned compensation at the rate described above in paragraph (b) for any period of absence which is determined to be Membership Service under Section 203-27.

(e) Irrespective of whether, or to what extent, a Member is entitled to Membership Service and Creditable Service for a period of uniformed services absence, under Section 203-1-A3, for purposes of determining the Member's most highly compensated period of three consecutive years of service, if a Member does not have deemed compensation attributable to a period of uniformed services absence (because the Member has not made payment of all of the required Member contributions as is provided above in paragraph (b)), that period of military absence shall be disregarded. Thus, a Member's periods of Membership Service (or deemed Membership Service) preceding the Member's date of reemployment shall be deemed to be consecutive periods of service for purposes of Section 203-1-A3.

(f) Effective December 12, 1994, notwithstanding any other provision of this Chapter, the Retirement System law, contributions, benefits and service credit with respect to qualified military service are governed by IRC Section 414(u) and the Uniformed Services Employment and Reemployment Rights Act of 1994.

(g) Effective with respect to deaths occurring on or after January 1, 2007, while a Member is performing qualified military service (as defined in chapter 43 of title 38, United States Code), to the extent required by IRC Section 401(a)(37), survivors of a Member of the Retirement System are entitled to any additional benefits that the system would provide if the Member had resumed employment and then died, such as accelerated vesting or survivor benefits that are contingent on the Member's death while employed.

(h) Beginning January 1, 2009, to the extent required by IRC Sections 3401(h) and 414(u)(2), an individual receiving differential wage payments (while the individual is performing qualified military service (as defined in chapter 43 of title 38, United State Code)) from an employer shall be treated as employed by that employer and the differential wage payment shall be treated as earned compensation, but contributions attributable to such differential wage payments shall not be made unless and until the Member returns to active employment and makes up the missed contributions. This provision shall be applied to all similarly situated individuals in a reasonably equivalent manner.

(Ordained by Ord. No. 264-2000, eff. June 28, 2000; Emer. Ord. No. 291-2009, § 5, eff. Oct. 28, 2009; a. Ord. No. 084-2011, § 7, eff. April 16, 2011; a. Ord. No. 336-2016, § 1, eff. Nov. 26, 2016)

Sec. 203-28. Military Service Credit Prior to Membership.

(a) An Active Member who has been honorably discharged from the Armed Forces of the United States prior to their employment with the City may purchase up to 3 years of military service credit which shall be considered as the equivalent of City service for each year of active duty service.

(b) For each year of service purchased, for military service performed prior to January 1, 1978, the Member shall pay to the Retirement System for credit to such Member's accumulated account an amount determined by multiplying the 6 percent rate of contribution by the annual compensation for full-time employment during the first year of Membership in the Retirement System following termination of military service.

(c) For each year of service purchased, for military service performed on or after January 1, 1978, the Member shall pay to the Retirement System for credit to such Member's accumulated account an amount determined by multiplying the applicable Member contribution rate in effect for the period of military service by the annual compensation for full-time employment during the first year of membership in the Retirement System following termination of military service. To this amount shall be added an amount equal to compound interest at 4 percent per annum from the date active military service terminated to date of payment.

(d) An Active Member whose Membership date is prior to January 1, 2010 who had active military service prior to employment may purchase such service, and any such purchased service will be included for

purposes of determining whether a Member has obtained five years of Creditable Service prior to July 1, 2011, and is entitled to the appropriate vesting for such service. The number of years purchased shall not exceed three years. A service purchase under this section is subject to existing service purchase procedures and policies.

(e) A Member of the Retirement System is ineligible to purchase service credit under this section for any year of military service used in the calculation of any retirement benefit currently being paid to the Member or payable in the future under any other retirement program except military retirement or social security. At the time the credit is purchased the Member shall certify on a form furnished by the Board that such Member does and will conform to this requirement. Any benefit paid under this section to which the Member is not entitled shall be recovered by any recovery procedures available under this chapter.

(f) The Board shall promulgate rules and regulations consistent with the provisions of this chapter for the granting of retirement service credit for military service.
(C.M.C. 203-28; ordained by Ord. No. 25-1975, eff. Jan. 1, 1975; a. Ord. No. 474-1977, eff. Jan. 1, 1978; a. Ord. No. 300-1979, eff. Aug. 4, 1979; a. Ord. No. 545-1983, eff. Dec. 23, 1983; Emer. Ord. No. 083-2013, § 2, eff. April 10, 2013; a. Ord. No. 336-2016, § 1, eff. Nov. 26, 2016; a. Emer. Ord. No. 343-2018, § 1, eff. Oct. 31, 2018)

Sec. 203-29. Purchase of Prior Withdrawn Retirement System Service.

Any Member who has left or leaves the City service for any reason, and withdrew or withdraws Accumulated Contributions, and who reenters the City service and becomes a Member shall be entitled to Membership Service for the former period of Membership when the Member shall have completed eighteen months of service subsequent to the Member's most recent membership enrollment date and pays into the fund the amount described in paragraph (a) or (b) below, as applicable. Service shall be credited as it is purchased and in accordance with the Service Retirement Allowance under Section 203-33 that applies to the Member at the time the service is purchased. The purchase of prior withdrawn Retirement System service does not retroactively establish the membership enrollment date; rather, the Member's most recent membership enrollment date shall continue to apply for all purposes under this Chapter.

(a) The provisions of this paragraph (a) shall apply if there is a service credit transfer agreement in effect with one or more of the State Retirement Systems under Section 203-8. If so, the Member shall pay:

(i) For each year of service to be repurchased, an amount equal to the Member contributions previously paid by the Member and refunded to the Member for such year of service; plus

(ii) Interest calculated separately for each year of service dating from the year in which the service was originally earned.

Unless otherwise specified by the Board, interest shall be calculated at the actuarial assumption rate of the Retirement System for the year in which the service credit was originally earned. The interest shall be compounded annually.

(b) The provisions of this paragraph (b) shall apply if there is no service credit transfer agreement in effect

with one or more of the State Retirement Systems under Section 203-8. If so, the Member shall pay:

(i) A sum equal to the amount of Accumulated Contributions withdrawn at the termination of the former period of service;

(ii) Interest at 4 percent per annum compounded annually thereon from date of withdrawal until date of payment; and

(iii) An amount equal to 50 percent of the amount determined by the actuary to be necessary to be paid to fund the pension payable on account of the Member's former period of service.

Notwithstanding the foregoing, the provisions of paragraph (b) shall apply to an Employee who returned to membership status prior to February 19, 1965, and any such person need not pay the amount specified under clause (iii) of paragraph (b).

If said Member had a prior service certificate, and if at Retirement, membership subsequent to the date of reentry amounts to 10 years or more, the prior service certificate shall be reinstated upon proper application being made to the Board. (C.O. 203-16; a. Ord. No. 188-1958, eff. June 27, 1958; a. Ord. No. 30-1959, eff. Mar. 13, 1959; a. Ord. No. 399-1959, eff. Jan. 8, 1960; a. Ord. No. 13-1961, eff. Feb. 10, 1961; a. Ord. No. 98-1964, eff. Jan. 1, 1964; a. Ord. No. 22-1965, eff. Feb. 19, 1965; a. Ord. No. 33-1968, eff. Jan. 24, 1968; a. Ord. No. 273-1968, eff. July 12, 1968; renumbered to C.M.C. 203-29, eff. Jan. 1, 1972; a. Ord. No. 300-1979, eff. Aug. 4, 1979; a. Ord. No. 545-1983, eff. Dec. 23, 1983; a. Ord. No. 352-2001, eff. Oct. 31, 2001; a. Ord. No. 084-2011, § 8, eff. April 16, 2011; Emer. Ord. No. 083-2013, § 2, eff. April 10, 2013; a. Ord. No. 336-2016, § 1, eff. Nov. 26, 2016)

Sec. 203-31. Academic Leaves.

A member granted an academic leave by the University of Cincinnati may continue as an active contributing member of the retirement system for the period of the academic leave by making regular membership contributions to the retirement system if the University of Cincinnati pays to the retirement system during the period of academic leave, at the same time and in the same manner, the contributions it would have made had the member remained on the university payroll.

A member on academic leave may make contributions to the retirement system in the same amounts and at the same time the contributions would have been made had the member remained on the payroll of the University of Cincinnati, or may make contributions in a lump sum not later than 30 days after return from academic leave, in which event interest at 3½ percent per annum compounded annually for periods from and after January 1, 1958, to January 1, 1964; and a 3¾ percent per annum compounded annually for periods from January 1, 1964, to January 1, 1968; and at 4 percent per annum compounded annually for periods from and after January 1, 1968, shall be paid in addition to the principal amount of the contributions.

A member on academic leave retaining contributing membership in the retirement system shall be considered a member in service during such period and shall be entitled to all benefits of the retirement system on the basis of pay that would have been received if employment at the university had been uninterrupted.

(Sec. 203-16a; ordained by Ord. No. 190-1958, eff. June 27, 1958; a. Ord. No. 30-1959, eff. Mar. 13, 1959; a. Ord. No. 399-1959, eff. Jan. 8, 1960; a. Ord. No. 98-1964, eff. Jan. 1, 1964; a. Ord. No. 33-1968, eff. Jan. 24, 1968; renumbered to C.M.C. 203-31, eff. Jan. 1, 1972; Ord. No. 300-1979, eff. Aug. 4, 1979; a. Ord. No. 545-1983, eff. Dec. 23, 1983)

Sec. 203-32. Repealed.

(Ordained by Ord. No. 130-1999, eff. May 14, 1999; r. Ord. No. 264-2000, eff. June 28, 2000)

Sec. 203-33. Service Retirement Allowance; Vesting.

(a) A Member may be entitled to a Service Retirement Allowance, as provided herein, after satisfying the applicable requirements set forth below:

(i) For a Member in Group C, after reaching age 60 with 5 years of Creditable Service or with 30 years of Creditable Service regardless of age;

(ii) For a Member in Group D, after reaching age 60 with 5 years of Creditable Service or with 30 years of Creditable Service regardless of age;

(iii) For a Member in Group E, after reaching age 60 with 5 years of Creditable Service or with 30 years of Creditable Service regardless of age;

(iv) For a Member in Group F, after reaching age 60 with 5 years of Creditable Service or with 30 years of Creditable Service regardless of age;

(v) For a Member in Group G, after reaching age 62 with 30 years of Creditable Service or age 67 with 5 years of Creditable Service.

A Member having completed 5 years of Creditable Service on or after January 1, 1989, or in the case of a Member who serves at the pleasure of the appointing authority, after completion of 5 years of Creditable Service on or after January 1, 1989, shall be entitled upon reaching the requisite age specified by this section to a Service Retire-

ment Allowance; provided, however, that the entire Accumulated Contributions of the Member remain to the Member's credit in the Retirement System.

(b) The Service Retirement Allowance described in subsection (c) shall apply for:

(i) Persons hired on or after July 12, 1998,

(ii) Persons who:

(A) Were hired prior to July 12, 1998,

(B) Retire after May 1, 1999, and

(C) In accordance with Ordinance Number 130-1999, elected by October 1, 1999 to be provided benefits under the formula described in subsection (c),

(iii) Persons who:

(A) In accordance with Ordinance Number 130-1999, elected by October 1, 1999 to be provided benefits under the formula described in subsection (e), and

(B) Pursuant to the provision of paragraph (d) below, cease to be entitled to benefits under that paragraph.

(c) The Service Retirement Allowance described in this subsection (c) shall consist of:

(i) An annuity which shall be the actuarial equivalent of the Accumulated Contributions of the Member at the time of Retirement or in the case of a Member who left employment after 5 years of service, at the time of reaching age 60;

(ii) A pension which together with the annuity, shall be equal to the sum of:

(A) 2.50 percent of the Average Highest Compensation multiplied by the total of the number of years of Membership Service plus service purchased under Sections 203-7-A, 203-7-B and 203-7-C; and

(B) For each year of a Member's State Retirement System Service Credit, the lesser of 2.50 percent or Member's State Retirement System Benefit Percentage for that year (as defined in paragraph (n) below), multiplied by his or her Average Highest Compensation.

(d) The Service Retirement Allowance described in subsection (e) shall apply for persons who became a Member prior to July 12, 1998, retire after May 1, 1999, and, in accordance with Ordinance Number 130-1999, have elected to be provided benefits under the formula described below. If a Member has satisfied the foregoing requirements, the Member shall nevertheless cease to have the provision of subsection (e) apply to determine his or her Service Retirement Allowance; and shall instead have the provisions of subsection (c) applied to determine the amount of his or her Service Retirement Allowance, if any of the following applies to the Member:

(i) The Member ceases to be a Member prior to retirement and withdraws all of the Member's Accumulated Contributions;

(ii) The Member elects to transfer all of the Member's Accumulated Contributions to a State Retirement System, as provided in Section 203-8 or otherwise;

(iii) The Member ceases to be an Active Member prior to retirement and does not have five or more years of Creditable Service at the time he or she ceases to be an Active Member; or

(iv) The Member elects (or has ever elected) under the provisions of paragraph (l) below, to have the provisions of subsection (c) above apply.

(e) The Service Retirement Allowance described in this subsection (e) shall consist of:

(i) An annuity which shall be the actuarial equivalent of the Accumulated Contributions of the Member at the time of retirement, or in the case of a Member who retired after 5 years, at the time of reaching age 60;

(ii) A pension which together with the annuity, shall be equal to the sum of:

(A) 2.22 percent of the Average Highest Compensation multiplied by the total of the number of years of Membership Service plus service purchased under Sections 203-7-A, 203-7-B and 203-7-C; and

(B) For each year of a Member's State Retirement System Service Credit, the lesser of 2.22 percent or Member's State Retirement System Benefit Percentage for that year (as defined in paragraph (n) below), multiplied by his or her Average Highest Compensation.

(f) The Service Retirement Allowance described in subsection (g) shall apply for persons who were hired on or after January 1, 2010.

(g) The Service Retirement Allowance described in this subsection (g) shall consist of:

(i) An annuity which shall be the actuarial equivalent of the Accumulated Contributions of the Member at the time of retirement, or in the case of a Member who retired after 5 years, at the time of reaching age 67;

(ii) A pension which together with the annuity, shall be equal to the sum of:

(A) 2.2 percent of the Average Highest Compensation multiplied by the total of the number of years of Membership Service plus service purchased under Sections 203-7-A, 203-7-B and 203-7-C; and

(B) For each year of a Member's State Retirement System Service Credit, the lesser of 2.2 percent or Member's State Retirement System Benefit Percentage for that year (as defined in paragraph (n) below), multiplied by his or her Average Highest Compensation.

(h) Effective July 1, 2011, for retirements occurring on or after that date, all benefits shall be calculated as specified in this subsection (h).

(i) For Members of Group C, benefits shall be calculated pursuant to subsections (c) or (e) above, as determined pursuant to subsections (b) and (d) above.

(ii) For Members of Group D, benefits shall be calculated pursuant to subsections (c) or (e) above, as determined pursuant to subsections (b) and (d) above.

(iii) For Members of Group E, benefits shall be calculated as follows:

(A) The Member's applicable multiplier as determined by Sections (b) or (d) above, for the greater of 1) the Member's Membership Service as of January 1, 2014, plus service

purchased under Sections 203-7-A, 203-7-B and 203-7-C, prior to January 1, 2014; or 2) all of the Member's years of Membership Service plus service purchased under Sections 203-7-A, 203-7-B and 203-7-C up to a maximum of 20 years; multiplied by the Member's Average Highest Compensation; and

(B) 2.2 percent of the Average Highest Compensation multiplied by all other years of Membership Service, including service purchased under Section 203-7-A, 203-7-B, and 203-7-C not included in (A) above; and

(C) For each year of a Member's State Retirement System Service Credit, as provided for in Section 203-8, the lesser of the applicable percentage under subsection (A) or (B) above or the Member's State Retirement System Benefit Percentage for that year (as defined as provided for in paragraph (n) below), multiplied by his Average Highest Compensation.

(iv) For Members of Group F, benefits shall be calculated as follows:

(A) The Member's applicable multiplier as determined by Sections (b) or (d) above, for the greater of 1) the Member's Membership Service as of July 1, 2011, plus service purchased under Sections 203-7-A, 203-7-B and 203-7-C, prior to January 1, 2014; or 2) all of the Member's years of Membership Service plus service purchased under Sections 203-7-A, 203-7-B and 203-7-C up to a maximum of 20 years; multiplied by the Member's Average Highest Compensation; and

(B) 2.2 percent of the Average Highest Compensation multiplied by all other years of Membership Service, including service purchased under Section 203-7-A, 203-7-B, and 203-7-C not included in (A) above; and

(C) For each year of a Member's State Retirement System Service Credit, as provided for in Section 203-8, the lesser of the applicable percentage under subsections (A) or (B) above or the Member's State Retirement System Benefit Percentage for that year (as defined in paragraph (n) below), multiplied by his or her Average Highest Compensation.

(v) For Members of Group G, with respect to benefits earned on or after January 1, 2010, the Service Retirement Allowance shall equal the sum of:

(A) 2.2 percent of the Average Highest Compensation multiplied by the number of years of Membership Service plus service purchased under Section 203-7-A, 203-7-B, and 203-7-C, up to and including 30 total years; plus 2.0 percent of the Average Highest Compensation multiplied by the number of years of Membership Service plus service purchased under Section 203-7-A, 203-7-B, and 203-7-C, in excess of 30 total years; and

(B) For each year of a Member's State Retirement System Service Credit, the lesser of the applicable percentage under subsection (A)

or Member's State Retirement System Benefit Percentage for that year (as defined in paragraph (n) below), multiplied by his or her Average Highest Compensation.

(i) The Service Retirement Allowance for persons who retired prior to January 1, 1978, shall consist of the amount determined in accordance with the calculation formula in effect and applicable to the Member at the time of the Member's Retirement.

(j) The eligibility for and calculation of the Service Retirement Allowance for persons who were in Groups A and B and who were Deferred Vested Members on July 1, 2011, shall consist of the amount determined in accordance with the calculation formula in effect and applicable to the Member at the time of the Member's Retirement.

(k) In no event shall the Service Retirement Allowance provided herein be greater than 90% of the Average Highest Compensation for those Members retiring after April 1, 1993. Average Highest Compensation, for those retiring on or after April 14, 1999, shall be calculated or recalculated in accordance with the provisions of Section 203-1-A3 contained herein, notwithstanding the provisions of Section 203-1-A3 contained in Ordinance No. 264-2000.

(l) In no event shall the Service Retirement Allowance provided herein, exceed the limit established by Section 415 of the "Internal Revenue Code of 1986," 100 Stat. 2085, 26 USCA 15, as amended.

(m) [Repealed.]

(n) For purposes of this Section, a Member's State Retirement System Benefit Percentage shall be the percentage multiplier that was in effect under the terms of the State Retirement System to determine the pension or other retirement allowance of the Member under that system for each separate year of service credit that is being transferred to this Retirement System.

The Member's State Retirement System Benefit Percentage shall be determined using the percentage multiplier that was in effect for the calculation of the Member's pension or other retirement allowance on the last date that Member was in the employment of an employer covered by the relevant State Retirement System. Accordingly, and not by way of limitation, increases in the benefit multiplier of a State Retirement System shall not be taken into account for purposes of determining a Member's State Retirement System Benefit Percentage if such increases became effective after the date that the Member ceased to be employed by an employer under the relevant State Retirement System.

By way of example, a Member's State Retirement System Benefit Percentage can be currently located in the following Sections of the Ohio Revised Code:

(a) PERS - Section 145.33(A)(5)(b).

(b) STRS - Section 3307.58(B)(2)(a)(i).

(c) SERS - Section 3309.36(B)(1)(b).

(d) PFPF - Section 742.37(C).

(e) HPRS - Section 5505.17.

If a Member previously terminated employment with an employer under a State Retirement System, the Member's State Retirement System Benefit Percentage shall be determined based on the similar provisions of the State Retirement System as in effect upon the Member's previous termination of employment.

(C.O. 203-17; a. Ord. No. 455-1957, eff. Jan. 1, 1958; a. Ord. No. 436-1960, eff. Jan. 28, 1961; a. Ord. No. 473-1961, eff. Jan. 1, 1962; a. Ord. No. 245-1962, eff. July 27, 1962; a. Ord. No. 359-1963, eff. Nov. 22, 1963; a. Ord. No. 294-1964, eff. Jan. 1,

1965; a. Ord. No. 16-1966, eff. Feb. 18, 1966; a. Ord. No. 33-1968, eff. Jan. 24, 1968; a. Ord. No. 5-1969, eff. Jan. 2, 1969; renumbered to C.M.C. 203-33, eff. Jan. 1, 1972; a. Ord. No. 116-1972, eff. Mar. 1, 1972; a. Ord. No. 92-1973, eff. Mar. 6, 1973; a. Ord. No. 162-1977, eff. June 3, 1977; a. Ord. No. 474-1977, eff. Jan. 1, 1978; a. Ord. No. 300-1979, eff. Aug. 4, 1979; a. Ord. No. 545-1983, eff. Dec. 23, 1983; a. Ord. No. 487-1988, eff. Jan. 3, 1989; a. Ord. No. 540-1990, eff. Dec. 19, 1990; a. Ord. No. 510-1992, eff. Dec. 16, 1992; a. Ord. No. 77-1998, eff. April 3, 1998; a. Ord. No. 130-1999, eff. May 14, 1999; a. Ord. No. 264-2000, eff. June 28, 2000; a. Ord. No. 352-2001, eff. Oct. 31, 2001; a. Ord. No. 78-2002, eff. March 20, 2002; Emer. Ord. No. 379-2008, eff. Nov. 19, 2008; Emer. Ord. 290-2009, § 6, eff. Oct. 28, 2009; a. Ord. No. 359-2009, § 2, eff. Dec. 25, 2009; a. Ord. No. 084-2011, § 9, eff. April 16, 2011; Emer. Ord. No. 083-2013, § 2, eff. April 10, 2013; a. Ord. No. 336-2016, § 1, eff. Nov. 26, 2016)

Note—For effect on members who retire prior to Jan. 1, 1958, see Ord. No. 62-1959, eff. Apr. 17, 1959.

Sec. 203-34. Repealed.

(Ordained by Ord. No. 130-1999, eff. May 14, 1999; r. Ord. No. 264-2000, eff. June 28, 2000)

Sec. 203-35. Early Service Retirement Allowance.

(a) Any Member whose most recent membership enrollment date is before January 1, 2010 and who has attained age 55 and has 25 or more but less than 30 years of Creditable Service may retire from active service on a Service Retirement Allowance which shall be the actuarial equivalent, at the Member's age at the actual date of Retirement, of the Service Retirement Allowance which would have been payable under Section 203-33 had the Member attained the age of 60 on said date.

(b) Any Member whose most recent membership enrollment date is on or after January 1, 2010, and who has attained age 57 and has 15 years of Creditable Service may retire from active service on an early Service Retirement Allowance which shall be the actuarial equivalent, at the Member's age at the actual date of Retirement, of the Service Retirement Allowance which would have been payable under Section 203-33 had the Member attained eligibility on said date for a Service Retirement Allowance pursuant to the provisions of Section 203-33 applicable to that Member.

(c) A Member who is eligible for benefits under this Section and who terminates employment without immediate commencement of a benefit under this section shall no longer be eligible for a benefit under this Section.

In no event shall the Service Retirement Allowance provided herein, exceed the limit established by Section 415 of the "Internal Revenue Code of 1986," 100 Stat. 2085, 26 U.S.C.A. 415, as amended.

(C.O. 203-17a; a. Ord. No. 455-1957, eff. Jan. 1, 1958; a. Ord. No. 436-1960, eff. Jan. 28, 1961; renumbered to C.M.C. 203-35, eff. Jan. 1, 1972; a. Ord. No. 300-1979, eff. Aug. 4, 1979; a. Ord. No. 545-1983, eff. Dec. 23, 1983; a. Ord. No. 540-1990, eff. Dec. 19, 1990; a. Ord. No. 352-2001, eff. Oct. 31, 2001; a. Ord. No. 359-2009, § 3, eff. Dec. 25, 2009; a. Ord. No. 084-2011, § 10, eff. April 16, 2011; a. Ord. No. 336-2016, § 1, eff. Nov. 26, 2016)

Note—For effect on members who retire prior to Jan. 1, 1958, see Ord. No. 62-1959, eff. Apr. 17, 1959.

Sec. 203-37. Repealed.

(Sec. 203-17c; ordained by Ord. No. 15-1961, eff. Feb. 1, 1961; a. Ord. No. 51-1967, eff. Feb. 1, 1967; renumbered to C.M.C. 203-37, eff. Jan. 1, 1972; a. Ord. No. 545-1983, eff. Dec. 23, 1983; r. Emer. Ord. No. 083-2013, § 2, eff. April 10, 2013)

Sec. 203-38. Repealed.
(Ordained by Ord. No. 70-1980, eff. Feb. 27, 1980; a. Ord. No. 545-83, eff. Dec. 23, 1983; r. Emer. Ord. No. 083-2013, § 2, eff. April 10, 2013)

Sec. 203-39. Repealed.
(Sec. 203-17D; ordained by Ord. No. 18-1968, eff. Feb. 16, 1968; a. Ord. No. 33-1968, eff. Jan. 24, 1968; a. Ord. No. 40-1970, eff. Jan. 1, 1971; a. Ord. No. 82-1971, eff. Jan. 1, 1972; renumbered to C.M.C. 203-39, eff. Jan. 1, 1972; a. Ord. No. 6-1975, eff. Jan. 1, 1975; a. Ord. No. 545-1983, eff. Dec. 23, 1983; a. Ord. No. 33-1987, eff. Feb. 27, 1987; a. Ord. No. 540-1990, eff. Dec. 19, 1990; r. Ord. No. 084-2011, § 22, eff. April 16, 2011)

Sec. 203-41. Disability Retirement Allowance.

No Active Member with fewer than five years of Creditable Service with the Retirement System shall be eligible for disability benefits pursuant to this Section. Any Active Member having completed 5 years of Creditable Service with the Retirement System on or after April 1, 2013, who is disabled by reason of an accidental or non-accidental cause may be retired by the Board upon the application of the Member or the head of his department not less than 30 and no more than 180 days next following the date of filing such application, on a disability retirement allowance, provided the medical director after a medical examination of such Member shall certify that such Member is mentally or physically incapacitated for the further performance of duty, and such incapacity is likely to be permanent, and such Member should be retired; provided further, where the findings of the medical director are disputed, the Board may employ not more than two additional competent disinterested physicians to make a physical examination of such applicant and report their medical findings to the Board. In all disputed cases the decision of the Board shall be final.

Pursuant to the rules adopted by the Board, the Board may waive the requirement that a Member be an Active Member, provided that it can be proved that the disability existed before the Member's contributing service was terminated.

The death of a Member who has applied for retirement due to disability prior to final determination by the Board under this section shall not affect the right of the applicant to a disability retirement, and the Board shall proceed to act upon the application for disability retirement as though the individual were still alive and shall take subsequent action following that determination as though the individual had died immediately after having been granted disability retirement.

(a) Upon retirement for disability on or after January 1, 1978, a Member shall receive a Service Retirement Allowance if the Member has attained the age of 60, or at any age with 30 years of Creditable Service; otherwise the Member shall receive a disability retirement allowance which shall consist of:

(i) An annuity which shall be the actuarial equivalent of Accumulated Contributions at the time of Retirement; and

(ii) A pension which together with the annuity shall provide a total disability retirement allowance equal to 90 percent of the Average Highest Compensation by the number of years of Creditable Service; provided that, if the total disability retirement allowance so obtained does not exceed one-quarter of the Average Highest Compensation, the

formula shall be 90 percent of the sum obtained by multiplying 2.20 percent of the Average Highest Compensation by the number of years which would be creditable if service continued to age 60; but the total retirement allowance in such case shall in no event exceed one-fourth of the Average Highest Compensation.

(iii) In no event shall the disability retirement allowance provided for herein be less than $90 per month in the case of Employees having 25 years of service, or an amount per month equal to the sum of $3.60 multiplied by the number of full years of Creditable Service in the case of Employees having less than 26 years of Creditable Service.

(iv) In no event shall the disability retirement allowance provided for herein, exceed the limit established by Section 415 of the "Internal Revenue Code of 1986," 100 Stat. 2085, 26 U.S.C.A. 415, as amended.

(b) Persons who retired on disability retirement prior to January 1, 1978, shall receive a disability retirement allowance which shall consist of the amount determined in accordance with the calculation formula in effect at the time of the Member's disability retirement.

(c) A Retirant who is earning service credit as an Employee, and who is concurrently receiving a Service Retirement Allowance from the Retirement System, is not eligible to apply for a disability retirement benefit pursuant to this Section.

(C.O. 203-18; a. Ord. No. 189-1958, eff. June 27, 1958; a. Ord. No. 283-1959, eff. Oct. 2, 1959; a. Ord. No. 315-1960, eff. Oct. 8. 1960; a. Ord. No. 16-1966, eff. Feb. 18, 1966; a. Ord. No. 33-1968, eff. Jan. 24, 1968; a. Ord. No. 120-1968, eff. Apr. 19, 1968; a. Ord. No. 72-1969, eff. Mar. 21, 1969; a. Ord. No. 116-1972, eff. Mar. 1, 1972; a. Ord. No. 468-1973, eff. Oct. 17, 1973; a. Ord. No. 539-1973, eff. Dec. 12, 1973; a. Ord. No. 25-1974, eff. Jan. 16, 1974; a. Ord. No. 474-1977, eff. Jan. 1, 1978; a. Ord. No. 300-1979, eff. Aug. 4, 1979; a. Ord. No. 545-1983, eff. Dec. 23, 1983; a. Ord. No. 540-1990, eff. Dec. 19, 1990; Emer. Ord. No. 379-2008, eff. Nov. 19, 2008; Emer. Ord. No. 083-2013, § 2, eff. April 10, 2013; a. Ord. No. 336-2016, § 1, eff. Nov. 26, 2016)

Sec. 203-42. Health Care Benefits.

(a) In addition to other benefits provided in this chapter, the Retiree health care benefits described in this Section shall be provided to the following persons:

(i) A Member who retired on or before July 1, 2011 and whose eligibility for health care benefits was determined on their Retirement Effective Date according to the provisions of this chapter in effect on such date, or

(ii) A Member of Group C who retires on or after August 1, 2011 with 15 years of Membership Service, or

(iii) A Member of Group D, E, or F whose most recent membership enrollment date is before January 9, 1997 and who retired on or after August 1, 2011 and on or before January 1, 2016 with 15 years of Membership Service, or

(iv) Persons receiving the benefits of a retirement optional allowance under Section 203-63 and who are eligible for benefits under Section 203-48 of this chapter, provided that the

Member satisfied the health care eligibility requirements of paragraph (i), (ii) or (iii) above at the time the Member retired, or

(v) A surviving spouse, eligible dependent child, or orphan, receiving survivor benefits as provided in Section 203-49 of this chapter on or before January 1, 2016.

(b) The benefits to be provided under this Section are:

(i) Medical and prescription drug coverage similar to coverage in effect for eligible Pensioners on January 1, 2014, and Retiree premium contributions are not to exceed 5% of the full funding rate for each tier of coverage:

(A) For in-network benefits:

(I) An annual deductible of $300 per person and $600 per family;

(II) A maximum annual medical out-of-pocket expense of $1,500 per person and $3,000 per family; and

(III) Prescription co-pays: $10 for generic; $20 for brand name; $30 for non-formulary; with no out-of-pocket limit.

(B) For out-of-network benefits:

(I) An annual deductible of $600 per person and $1,200 per family;

(II) A maximum annual medical out-of-pocket expense of $3000 per person and $6,000 per family; and

(III) Limited out-of-network coverage for prescription drugs.

(ii) Dental and vision insurance coverage which shall be purchased and fully paid for by the Retirees, their surviving spouse, or their eligible dependents or orphans, as provided in Section 203-48 of this chapter.

(c) Members who retired before September 1, 2007, and their surviving spouse as provided in Section 203-48 of this chapter, who met the requirements of former Section 203-43(d), subsections (i), (ii), (iii), or (iv) as in effect prior to July 1, 2011, and who as of January 1, 2012, and annually thereafter, meet the requirements of subsection (i) below are entitled to the benefits described in subsection (ii) below.

(i) Pensioners must establish that their annual household income is less than $30,000 by annually submitting to the Retirement System a copy of their federal income tax return or any other or additional documentation the Retirement System requires to determine annually whether the Pensioner's household income is less than $30,000. For purposes of this Section, "household income" shall mean the total income of the Pensioner, including the income of the Pensioner's spouse if married, after adding back the nontaxable portion of interest, dividends, pensions, annuities, IRA distributions, and social security benefits. Business or investment losses are not included in "household income" and may not be used to reduce the amount of "household income" for purposes of this Section. Pensioners must submit a copy of their federal income tax return (and that of their spouse, if applicable) for the prior year to the Retirement System no later than the date determined by the Retirement System each year, or any other or additional documentation the Retirement System requires. Failure to

submit the required documentation shall result in the Pensioner becoming permanently ineligible for the benefits described in (c)(ii) of this Section. The Pensioner will be eligible for coverage as described in (b) of this Section.

(ii) Pensioners who meet the requirements of subsection (i) above shall receive medical and prescription drug coverage with no premium cost with the following benefits:

(A) For in-network benefits:

(I) An annual deductible of $0;

(II) A maximum annual medical out-of-pocket expense of $500 per person and $1,000 per family;

(III) A maximum annual prescription drug out-of-pocket expense of $500 per person; and

(IV) Prescription drug tiers: $5 for generic; $15 for brand name; $30 for non-formulary.

(B) For out-of-network benefits:

(I) An annual deductible of $0;

(II) A maximum annual medical out-of-pocket expense of $1000 per person and $2,000 per family; and

(III) Limited out-of-network coverage for prescription drugs.

Pensioners who meet the requirements of subsection (i) above shall be provided dental and vision coverage to be purchased and fully paid for by the Retiree, their surviving spouse, or their eligible dependents.

(d) Any person eligible to receive healthcare coverage under this Chapter who is eligible for coverage under Medicare shall apply for Medicare coverage and provide documentation to the Retirement System that is acceptable to the Retirement System that confirms either acceptance or denial for such coverage. To the extent allowable under applicable federal law, coverage under this Section for any person who is eligible to be covered under Medicare shall be secondary to coverage of such person under Medicare. The benefit payable under this Section shall be reduced by the greater of: (a) the amount actually paid by Medicare Part A and Part B; or (b) the amount Medicare would pay if the person were enrolled in Medicare Part A and Part B. A person is considered eligible for Medicare for these purposes during any period such person has coverage under Medicare Part A or Part B or, while otherwise qualifying for coverage under Medicare Part A (premium free) or Part B, does not have such coverage under Medicare Part A or Part B solely because such person has refused, discontinued, or failed to make any necessary application or applicable payment for Medicare Part A or Part B coverage.

(e) The director of retirement shall adopt rules and procedures necessary to implement this Section.

(Ordained by Ord. No. 336-2016, § 2, eff. Nov. 26, 2016; a. Ord. No. 0318-2023, § 1, eff. Sept. 20, 2023)

Sec. 203-43. Health Care Benefits For Membership Dates Prior to January 9, 1997 and Retirement Effective Dates After January 1, 2016.

(a) In addition to other benefits provided in this chapter, the Retiree health care benefits described in this Section shall be provided to the following persons:

(i) A Qualified Member (as defined in paragraph (c) below) who retires after January 1, 2016 who is at least 60 years of age with a minimum of 20 years of Membership Service and who

is not otherwise eligible for health care benefits under Section 203-42, or

(ii) A Qualified Member (as defined in paragraph (c) below) who retires with 30 or more years of Creditable Service consisting of a minimum of 20 years of Membership Service and who is not otherwise entitled to benefits under Section 203-42, or

(iii) Persons receiving the benefits of a retirement optional allowance under Section 203-63 of this chapter, and who are eligible for benefits under Section 203-48 of this chapter, provided that the Member satisfied the requirements of either paragraph (i) or paragraph (ii) above at the time the Member retired and who is not otherwise entitled to benefits under Section 203-42, or

(iv) Each surviving spouse, and each eligible dependent child or orphan of a deceased Active Member who would have been eligible for benefits under this Section, who is receiving survivor benefits as provided in Section 203-49 of this Chapter, provided that:

(A) the deceased Active Member's most recent membership enrollment date is before January 9, 1997 and the survivor benefit commenced on or after February 1, 2016 and the deceased Active Member is not otherwise entitled to benefits under Section 203-42; and

(B) a surviving spouse may only obtain coverage if the surviving spouse possessed a valid marriage certificate or other proof of marriage recognized by the State of Ohio, dated prior to the date of the Active Member's death. However, if the deceased Active Member dies on or after January 1, 2019, the surviving spouse is eligible for coverage only if the spouse was not legally separated from the deceased Active Member at the time of the deceased Active Member's death.

(v) Qualified Members who are not covered by the provisions of the Collaborative Settlement Agreement and who retire on or after February 1, 2016 and on or before January 1, 2017 and who have at least 15 years of Membership Service.

(b) The benefits to be provided under this Section are:

(i) Medical and prescription drug coverage similar to the most favorable plan available to active Employees, excluding Police, Fire, and Building & Trade unions, and Member premium contributions are not to exceed 10% of the full funding rate for each tier of coverage; and

(ii) Dental and vision insurance coverage which shall be purchased and fully paid for by the Retirees, their surviving spouse, or their eligible dependents or orphans as provided in Section 203-48 of this chapter.

(iii) Any person eligible to receive healthcare coverage under this Chapter who is eligible for coverage under Medicare shall apply for Medicare coverage and provide documentation to the Retirement System that is acceptable to the Retirement System that confirms either acceptance or denial for such coverage. To the extent allowable under applicable federal law, coverage under this Section for any person who is eligible to be covered under

Medicare shall be secondary to coverage of such Member under Medicare. The benefit payable under this Section shall be reduced by the greater of: (a) the amount actually paid by Medicare Part A and Part B; or (b) the amount Medicare would pay if the Member were enrolled in Medicare Part A and/or Part B. A Member is considered eligible for Medicare for these purposes during any period such Member has coverage under Medicare Part A or Part B or, while otherwise qualifying for coverage under Medicare Part A (premium free) or Part B, does not have such coverage under Medicare Part A or Part B solely because such Member has refused, discontinued, or failed to make any necessary application or applicable payment for Medicare Part A or Part B coverage.

(c) For purposes of this Section, a Qualified Member is a Member who was an Active Member before January 9, 1997. The following rules shall apply for purposes of determining whether a Member was an Active Member before January 9, 1997:

(i) If the Member terminates Membership due to a withdrawal of Accumulated Contributions (as provided in Section 203-11(d)) or a transfer of service credit and Accumulated Contributions to a State Retirement System (as provided in Sections 203-8 and 203-7-A), the Member shall not be considered to have been an Active Member for any period attributable to the withdrawn or transferred contributions, irrespective of whether the Member is subsequently granted credit for such period of service pursuant to Section 203-29, Section 203-8 or any similar provisions of this Retirement System.

(ii) A Member shall not be considered to have been an Active Member for any period of Creditable Service of a Member that is attributable to State Retirement System Service Credit, Out of State and Federal Service Credit, or Unpaid Authorized Leave of Absence Service Credit.

(iii) If a Member ceases (or ceased) to be an Employee, the Member shall not be considered to have been an Active Member for any period of employment that precedes the date the Member ceases (or ceased) to be an Employee, unless the Member does not withdraw all or any part of his Accumulated Contributions.

(iv) Notwithstanding the foregoing, if a Member is granted service credit for a period of military absence pursuant to Sections 203-27 or 203-27A, to the extent required by federal law, the Member shall be considered to have been an Active Member during the period of military absence.

(d) Any Inactive Member who is rehired on or after January 1, 2016 shall not be eligible for benefits under this Section.

(e) The director of retirement shall adopt rules and procedures necessary to implement this Section.

(Sec. 203-19; ordained by Ord. No. 442-1960; eff. Jan 1, 1961; a. Ord. No. 473-1961, eff. Jan 1, 1962; a. Ord. No. 67-1966, eff. Mar. 18, 1966; a. Ord. No. 24-1971, eff. Jan. 27, 1971; a. Ord. No. 187-1971, eff. July 3, 1971; a. Ord. No. 334-1971, eff. Sept. 22, 1971; renumbered to C.M.C. 203-43, eff. Jan. 1, 1972; a Ord. No. 545-1983, eff. Dec. 23, 1983; a. Ord. No. 487-1988, eff. Jan. 3, 1989; a. Ord. No. 284-2000, eff. 8-2-00; a. Ord. No. 352-2001, eff. Oct. 31, 2001; Emer. Ord. No. 0020-2007, § 1, eff. Jan. 1, 2007; Emer. Ord. No. 379-2008, eff. Nov. 19, 2008;

Emer. Ord. 290-2009, § 7, eff. Oct. 28, 2009; a. Ord. No. 360-2009, § 1, eff. Dec. 25, 2009; a. Ord. No. 085-2011, § 1, eff. April 16, 2011; a. Ord. No. 336-2016, § 1, eff. Nov. 26, 2016; a. Emer. Ord. No. 343-2018, § 1, eff. Oct. 31, 2018; a. Ord. No. 318-2023, § 1, eff. Oct. 20, 2023)

Sec. 203-44. Health Care Benefits For Membership Dates On and After January 9, 1997.

(a) In addition to other benefits provided in this chapter, the Retiree health care benefits described in this Section shall be provided to the following persons:

(i) A Member whose most recent membership enrollment date is on or after January 9, 1997 and on or before December 31, 2015, and who:

(A) Retired on or after August 1, 2011 and on or before January 1, 2016 with 15 years of Membership Service and who is not entitled to benefits under Section 203-42 or 203-43, or

(B) Retires on or after February 1, 2016 and who is at least 60 years of age with a minimum of 20 years of Membership Service and who is not otherwise eligible for health care benefits under Section 203-42 or Section 203-43, or

(C) Retires on or after February 1, 2016 with 30 or more years of Creditable Service consisting of a minimum of 20 years of Membership Service and who is not otherwise entitled to benefits under Section 203-42 or Section 203-43.

(ii) Persons receiving the benefits of a retirement optional allowance under Section 203-63 of this Chapter, and who are eligible for benefits under Section 203-48 of this Chapter, provided that the Member satisfied the requirements of paragraph (i) above at the time the Member retired and who is not otherwise entitled to benefits under Section 203-42 or Section 203-43.

(iii) Members whose most recent membership enrollment date is on or after January 9, 1997 and who are not covered by the provisions of the Collaborative Settlement Agreement and who retire on or after February 1, 2016 and on or before January 1, 2017 and who have at least 15 years of Membership Service.

(iv) Each surviving spouse, and each eligible dependent child or orphan of a deceased Active Member who would have been eligible for benefits under this section, who is receiving survivor benefits as provided in Section 203-49 of this Chapter, provided that:

(A) the deceased Active Member's most recent membership enrollment date is on or after January 9, 1997 and on or before December 31, 2015; and

(B) a surviving spouse may only obtain benefits if the surviving spouse possessed a valid marriage certificate or other proof of marriage recognized by the State of Ohio, dated prior to the date of the Active Member's death. However, if the deceased Active Member dies on or after January 1, 2019, the surviving spouse is eligible for coverage only if the spouse was not legally separated from the deceased Active Member at the time of the deceased Active Member's death.

Accordingly, the provisions of Section 203-33 of this Chapter, which provide for Service Retirement Allowances after vesting, shall not entitle Members who are so vested to health care benefits under the provisions of this Section unless such Members also qualify for health care benefits under the provisions of this Section.

(b) The benefits to be provided under this Section are:

(i) Medical and prescription drug coverage similar to the most favorable plan available to active Employees, excluding Police, Fire, and Building & Trade unions; and subject to Member premium contributions described in (c) below; and

(ii) Dental and vision insurance coverage shall be purchased and fully paid for by the Retiree, their surviving spouse, and their eligible dependents or orphans.

(iii) Any person eligible to receive healthcare coverage under this Chapter who is eligible for coverage under Medicare shall apply for Medicare coverage and provide documentation to the Retirement System that is acceptable to the Retirement System that confirms either acceptance or denial for such coverage. To the extent allowable under applicable federal law, coverage under this Section for any person who is eligible to be covered under Medicare shall be secondary to coverage of such person under Medicare. The benefit payable under this Section shall be reduced by the greater of: (a) the amount actually paid by Medicare Part A and Part B; or (b) the amount Medicare would pay if the person were enrolled in Medicare Part A and/or Part B. A person is considered eligible for Medicare for these purposes during any period such person has coverage under Medicare Part A or Part B or, while otherwise qualifying for coverage under Medicare Part A or Part B, does not have such coverage under Medicare Part A (premium free) or Part B solely because such person has refused, discontinued, or failed to make any necessary application or applicable payment for Medicare Part A or Part B coverage.

(c) Except for dental and vision insurance coverage, the percentage of the full funding rates, or premiums, for medical and prescription drug coverage to be paid by the Retirement System on behalf of persons entitled to benefits under this Section shall be based on a formula consisting of the sum of (i) the number of the Member's full years of Creditable Service, and (ii) the Member's age at the earlier of the Member's Retirement date or the date that the Member ceased to be an Active Member, with each such full year of Membership Service and each such year of age at Retirement date counting as one point each. Years of age at Retirement shall mean years of age at the birthday immediately preceding the earlier of the Member's Retirement date or the date that the Member ceased to be an Active Member. The number of full years of Creditable Service and the years of age at Retirement date shall be added together and shall result in the payment of medical and prescription drug coverage in the following percentage amounts:

90% of full cost or full premiums for 85 points

80% of full cost or full premiums for 80 to 84 points

60% of full cost or full premiums for 70 to 79 points

40% of full cost or full premiums for 60 to 69 points

If a Member's total points are less than 60, the Member is only eligible for individual medical and prescription drug coverage. The Retirement System will pay 25% of the premium for individual medical and prescription drug coverage. No spouse or family coverage is available.

A Member's years of Creditable Service shall be used for the purpose of determining the points of a Member under this subsection (c), but will not include years of Creditable Service credited under a previous Service Retirement Allowance provided under this Chapter.

(d) If a Member leaves the City service prior to Retirement and is entitled to a deferred Service Retirement Allowance and such Member is entitled to benefits under this Section, no benefits shall be provided to the Member until the Member reaches the later of their normal retirement date, or their Medicare eligibility age.

(e) Any Inactive Member who is rehired on or after January 1, 2016 shall not be eligible for benefits under this Section.

(f) The director of retirement shall adopt rules and procedures necessary to implement this Section.

(Ord. No. 1-1997, eff. Jan. 8, 1997; a. Ord. No. 284-2000; eff. 8-2-00; a. Ord. No. 352-2001, eff. Oct. 31, 2001; Emer. Ord. No. 0020-2007, § 2, eff. Jan. 1, 2007; Emer. Ord. No. 379-2008, eff. Nov. 19, 2008; Emer. Ord. 290-2009, § 8, eff. Oct. 28, 2009; a. Ord. No. 360-2009, § 2, eff. Dec. 25, 2009; a. Ord. No. 085-2011, § 2, eff. April 16, 2011; Emer. Ord. No. 083-2013, § 2, eff. April 10, 2013; a. Ord. No. 336-2016, § 1, eff. Nov. 26, 2016; a. Emer. Ord. No. 343-2018, § 1, eff. Oct. 31, 2018; a. Ord. No. 318-2023, § 1, eff. Oct. 20, 2023; a. Emer. Ord. No. 275-2024, § 1, eff. August 7, 2024)

Sec. 203-45. Death Benefit Prior to Retirement.

Upon receipt of proper proof by the Board of the death of an Active Member, an Inactive Member, or a Deferred Vested Member, a death benefit shall be paid to a person that the Member shall have nominated by written designation duly executed in accordance with the provisions of this Section and filed with the Board.

(a) The designation of the Beneficiary shall be limited to the following:
  (i) A person or persons,
  (ii) A trust,
  (iii) The Member's estate; or
  (iv) Other legal entity

(b) If there is no such designation, the death benefit shall be paid to:
  (i) The surviving spouse; or
  (ii) If there is no surviving spouse then to any surviving children in equal shares; or
  (iii) If there is no surviving spouse or surviving children, to any surviving parents in equal shares; or
  (iv) If there is no surviving spouse, surviving children or surviving parents, then to the Member's estate.

(c) Primary beneficiaries shall have 180 days to claim a benefit under this Section. If a primary beneficiary does not make a claim within 180 days, then that primary beneficiary forfeits all rights to a benefit under this Section. In the event that no primary beneficiaries make a claim, the beneficiaries next in order of preference shall become entitled to the benefit and shall have 90 additional days to claim the benefit under this section. If there are multiple

beneficiaries in a given category, the benefit shall be divided equally among the eligible beneficiaries who make a claim within the applicable time period. Failure to make a claim within the required time period shall result in total forfeiture of this benefit for that beneficiary.

(d) The death benefit shall consist of the return of the deceased Member's Accumulated Contributions, or in the event the sole, primary designated Beneficiary is the deceased Member's spouse, such spouse may elect between this benefit and the benefits available under Section 203-63(b) if eligible.

No person finally adjudged guilty either as a principal or an aider, abettor or procurer of the aggravated murder (ORC 2903.01), the murder (ORC 2903.02), or the voluntary manslaughter (ORC 2903.03) of a Member shall be eligible to receive the benefits payable pursuant to the provisions of this section by reason of the Member's death. For the purpose of this section, such person shall be considered as having predeceased the Member killed.

(C.O. 203-20; a. Ord. No. 315-1960, eff. Oct. 8, 1960; a. Ord. No. 442-1960, eff. Jan. 1, 1961; a. Ord. No. 168-1962, eff. June 8, 1962; a. Ord. No. 272-1966, eff. Aug. 6, 1966; a. Ord. No. 204-1967, eff. June 16, 1967, a. Ord. No. 528-1968, eff. Jan. 17, 1969; renumbered to C.M.C. 203-45, eff. Jan. 1, 1972, a. Ord. No. 502-1973, eff. Dec. 14, 1973; a. Ord. No. 300-1979, eff. Aug. 4, 1979; a. Ord. No. 545-1983, eff. Dec. 23, 1983; a. Ord. No. 116-1997, eff. May 23, 1997; a. Ord. No. 084-2011, § 11, eff. April 16, 2011; a. Ord. No. 336-2016, § 1, eff. Nov. 26, 2016; Emer. Ord. No. 357-2017, § 2, eff. Dec. 20, 2017; Emer. Ord. No. 343-2018, § 1, eff. Oct. 31, 2018)

Editor's note—Emer. Ord. No. 343-2018, § 1, effective October 31, 2018, renamed § 203-45 from "death benefit in service" to "death benefit prior to retirement".

Sec. 203-47. Retirement Death Benefit.

Upon receipt of proper proof by the Board of the death of a Member who has retired, a death benefit shall be paid to a person that the Member shall have nominated by written designation duly executed in accordance with the provisions of this Section and filed with the Board.

(a) Designation of the Beneficiary shall be limited to the following:

(i) A person or persons,

(ii) A trust,

(iii) The Member's estate; or

(iv) Other legal entity

(b) If there is no such designation, the death benefit shall be paid to:

(i) The surviving spouse; or

(ii) If there is no surviving spouse, then to any surviving children in equal shares; or

(iii) If there is no surviving spouse or surviving children, to any surviving parents in equal shares; or

(iv) If there is no surviving spouse, surviving child or children or surviving parents, then to the Member's estate.

(c) Primary beneficiaries shall have 180 days to claim a benefit under this Section. If a primary beneficiary does not make a claim within 180 days, then that primary beneficiary forfeits all rights to a benefit under this Section. In the event that no primary beneficiaries make a claim, the beneficiaries next in order of preference shall become entitled to the benefit and shall have 90 additional days to claim the benefit under this section. If there are multiple beneficiaries in a given category, the benefit shall be divided equally among

the eligible beneficiaries who make a claim within the applicable time period. Failure to make a claim within the required time period shall result in total forfeiture of this benefit for that beneficiary.

(d) The retirement death benefit shall consist of:

(i) A lump sum death benefit of $5,000 for all Members in Groups A and B. Members in Groups C, D, E, F and G shall not receive a lump sum death benefit. Provided, the designated Beneficiaries of the Members of the Retirees Class shall be paid a lump sum death benefit in the amount of $5,000.

(ii) In the case of a Member who did not select Option 1, Option 2, Option 3 or Option 4 pursuant to Section 203-63:

(A) such Member's Accumulated Contributions at date of Retirement, minus

(B) all amounts paid by reason of said Member's Retirement.

No person finally adjudged guilty either as a principal or an aider, abettor or procurer of the aggravated murder (ORC 2903.01), the murder (ORC 2903.02), or the voluntary manslaughter (ORC 2903.03) of a Member shall be eligible to receive the benefits payable pursuant to the provisions of this section by reason of the Member's death. For the purpose of this section, such person shall be considered as having predeceased the Member killed.

(C.O. 203-20a; ordained by Ord. No. 455-1957, eff. Jan. 1, 1958; a. Ord. No. 226-1960, eff. July 22, 1960; a. Ord. No. 472-1962, eff. Jan. 11, 1963; a. Ord. No. 16-1966, eff. Feb. 18, 1966; a. Ord. No. 272-1966, eff. Aug. 6. 1966; a. Ord. No. 204-1967, eff. June 16, 1967; a. Ord. No. 528-1968, eff. Jan. 18, 1969; a. Ord. No. 19-1969, eff. Jan. 1, 1969; a. Ord. No. 28-1969, eff. Jan. 18, 1969; renumbered to C.M.C. 203-47, eff. Jan. 1, 1972; a. Ord. No. 502-1973, eff. Dec. 14, 1973; a. Ord. No. 42-1975, eff. Jan. 29, 1975; a. Ord. No. 300-1979, eff. Aug. 4, 1979; a. Ord. No. 545-1983, eff. Dec. 23, 1983; a. Ord. No. 310-1986, eff. Oct. 4, 1986; a. Ord. No. 116-1997, eff. May 23, 1997; a. Ord. No. 388-1998, eff. Nov. 20, 1998; a. Ord. No. 254-1999 eff. June 16, 1999; a. Ord. No. 352-2001, eff. Oct. 31, 2001; a. Ord. No. 084-2011, § 12, eff. April 16, 2011; a. Ord. No. 336-2016, § 1, eff. Nov. 26, 2016; Emer. Ord. No. 357-2017, § 2, eff. Dec. 20, 2017; a. Emer. Ord. No. 343-2018, § 1, eff. Oct. 31, 2018)

Note—For effect on members who retired prior to Jan. 1, 1981, see § 203-50.

Sec. 203-48. Health Care Benefits for Eligible Dependent Family Members.

Notwithstanding any other provisions of this chapter, health care benefits provided by the Retirement System for eligible dependent family members of Retirees or deceased Active Members shall be limited to the following:

(a) Eligibility for Health Care:

(i) If a Retiree or deceased Active Member is eligible to receive health care benefits pursuant to this Chapter, only the following dependents as defined by and in accordance with the Ohio Administrative Code 145-4-09, "Definition of Eligible Dependent for Health Care Coverage," or Internal Revenue Code Section 152 (a)(1), "Qualifying Child," may be enrolled for health insurance purposes:

(A) A Retiree's spouse possessing a valid marriage

certificate or other proof of marriage as recognized by the State of Ohio, dated prior to the effective date of retirement, and beginning January 1, 2019 who is not legally separated from the Retiree; or

(B) A surviving spouse of a deceased Retiree who is receiving benefits under Section 203-63, and who possessed a valid marriage certificate or other proof of marriage recognized by the State of Ohio, dated prior to the effective date of retirement. However, if the deceased Retiree dies on or after January 1, 2019, the spouse is eligible for coverage only if the spouse was not legally separated from the deceased Retiree at the time of the deceased Retiree's death; or

(C) A surviving spouse of a deceased Active Member who is receiving benefits under Section 203-49, and who possessed a valid marriage certificate or other proof of marriage recognized by the State of Ohio, dated prior to the date of death. However, if the deceased Active Member dies on or after January 1, 2019, the spouse is eligible for coverage only if the spouse was not legally separated from the deceased Active Member at the time of the deceased Active Member's death; or

(D) A Retiree's or a deceased Active Member's biological children who were born or children who were legally adopted by the Retiree prior to the effective date of retirement, or in the case of a deceased Active Member, prior to the date of death.

(ii) A Retiree's child who has never entered into a marriage recognized by the State of Ohio is eligible for coverage if the child is either under the age of 19, or is a student attending an accredited school on a fulltime basis for at least 7 months of the calendar year and who has not attained the age of 24.

(iii) Coverage shall be extended if the Retiree's child is permanently and totally disabled in accordance with Social Security Disability Definition, 42 U.S.C. 416i(1), prior to the limiting age specified in Section (a)(ii) herein. For purposes of this Section, the term "disability" means the inability to engage in any substantial gainful activity by reason of any medically determinable physical or mental impairment, which can be expected to result in death or has lasted or can be expected to last for a continuous period of not less than 12 months. Evidence of the incapacity shall be required to be provided to the Retirement System's Medical Director for review and recommendation regarding whether the child is permanently and totally disabled, and the Medical Director's recommendation shall be subject to approval by the Board. Appeals from the Board's

determination will be governed by rules adopted by the director of retirement.

(iv) Any person eligible to receive healthcare coverage under this Chapter who is eligible for coverage under Medicare shall apply for Medicare coverage and provide documentation to the Retirement System that is acceptable to the Retirement System and confirms either acceptance or denial for such coverage. To the extent allowable under applicable federal law, coverage under this Section for any person who is eligible to be covered under Medicare shall be secondary to coverage of such person under Medicare. The benefit payable under this Section shall be reduced by the greater of: (a) the amount actually paid by Medicare Part A and Part B; or (b) the amount Medicare would pay if the person were enrolled in Medicare Part A and/or Part B. A person is considered eligible for Medicare for these purposes during any period such person has coverage under Medicare Part A or Part B or, while otherwise qualifying for coverage under Medicare Part A or Part B, does not have such coverage under Medicare Part A (premium free) or Part B solely because such person has refused, discontinued, or failed to make any necessary application or applicable payment for Medicare Part A or Part B coverage.

(b) Eligibility to Purchase Health Care at 100% of Premium Cost:

(i) The ability to enroll a spouse, minor child, or minor grandchild for Health Care benefits shall be closed to spouses when the date of marriage is after the date of the Retiree's retirement, to children born or adopted after the Retiree's date of Retirement and to minor grandchildren after December 31, 2017, unless subsection (ii) below applies.

(ii) Otherwise eligible spouses and dependents who were married to, born of, or adopted by the Retiree after the Retiree's date of Retirement, and one minor grandchild born to an unmarried, un-emancipated minor child of the Retiree that the Retiree is permitted to claim as a dependent on the Retiree's federal tax return in accordance with Section 152 of the Internal Revenue Code, will be entitled to remain enrolled in coverage as long as they meet all other eligibility requirements, were enrolled in Retiree Health Care coverage on January 1, 2018 and provided that there is no break in coverage. Once a break in coverage occurs, spouses, dependents and minor grandchildren will be subject to all the eligibility requirements of Chapter 203, including this Section, and will be ineligible for re-enrollment unless they meet all the eligibility requirements of Chapter 203.

(c) If an individual receives a monthly benefit as an Optionee of a deceased Retiree of the Retirement System, he or she may enroll the biological children who were born of the Retiree or any eligible children who were legally adopted by the Retiree prior to the effective date of the Retiree's

Retirement, provided that all such individuals meet the criteria listed in Sections (a)(i),(ii), (iii), or (iv) herein.

(d) If a Retiree has not selected a pension payment option that includes an Optionee, health care benefits provided by the Retirement System for the Retiree's dependent spouse and eligible biological or legally adopted dependent child/ren terminates following the death of the Retiree.

(e) For the purposes of this chapter, it is the responsibility of the Retiree, Optionee, or survivor to notify the Retirement System in writing, within 60 days of the date that any spouse or dependent child fails to meet eligibility requirements. Failure to provide such notice to the Retirement System may result in overpaid health care claims for which the Retiree, Optionee, or survivor shall be responsible in addition to penalties imposed in Section (f) herein.

(f) The Board maintains the right to conduct compliance-related audits of spouse and dependent eligibility and to impose penalties for non-compliance. Penalties for non-compliance shall include suspension of health care coverage of any person eligible for coverage under this chapter for a period of 3 years and a requirement that such individuals repay all improperly paid prescription drug claims. After the three-year suspension period, the eligible individual's health insurance may only be reinstated upon full repayment of the amount of the improperly paid prescription drug claims. The eligible individual is responsible for making payment arrangements to repay the amounts owed. If the eligible individual has been found legally incompetent by a court, the Board, at its sole discretion, may elect to modify the penalty imposed by this Section.

(g) The director of retirement shall adopt rules and procedures necessary to implement this Section.

(Ordained by Ord. No. 0193-2009, § 1, eff. July 24, 2009; a. Ord. No. 073-2010, § 1, eff. April 24, 2010; a. Ord. No. 175-2010, § 1, eff. May 19, 2010; a. Ord. No. 336-2016, § 1, eff. Nov. 26, 2016; Emer. Ord. No. 357-2017, § 2, eff. Dec. 20, 2017; a. Emer. Ord. No. 343-2018, § 1, eff. Oct. 31, 2018; a. Ord. No. 318-2023, § 1, eff. Oct. 20, 2023)

Editor's note—Section 3 of Ord. No. 175-2010, effective May 19, 2010, amended Section 2 of Ord. No. 193-2009, effective July 24, 2009, to specify that implementation of the provisions of this section by the Cincinnati Retirement System shall take place on January 1, 2011.

Sec. 203-49. Survivor Benefits.

In the event of the death of an Active Member, including a Member on leave of absence without pay for a period of not more than one year, who was a contributing Member of the Retirement System for at least 18 months prior to death and by reason of whose death no benefit is payable pursuant to Section 203-63(b), there shall be paid to, or on behalf of, such survivors who qualify under the provisions of this section the amounts hereinafter indicated, which amounts shall be in addition to the ordinary death benefit payable pursuant to Section 203-45.

(a) (1) If an Active Member dies on or before August 31, 2024 and is survived by a spouse, such spouse shall receive a payment of $157.50 per month for life or until remarriage. Such payment shall begin on the first day of the month next following the last day for which final compensation is paid for the services of

the deceased Active Member if survivor benefits are payable pursuant to subsection (b)(1) hereof and shall continue to be paid as long as such spouse remains unmarried and survivor benefits are payable pursuant to subsection (b)(1) hereof. Effective the first of the month next following the 62nd birthday of such spouse, if the deceased Active Member had less than 15 years of Creditable Service, or effective the first of the month next following the 50th birthday of such spouse, if the deceased Active Member had 15 years of Creditable Service or more, such payment shall be paid irrespective of any benefits payable pursuant to subsection (b)(1) hereof. If no benefits are payable pursuant to subsection (b)(1) hereof, such spouse shall begin to receive the payment effective on the first day of the month following the 62nd birthday of such spouse, if the deceased Active Member had less than 15 years of Creditable Service, or effective the first of the month next following the 50th birthday of such spouse, if the deceased Active Member had 15 years of Creditable Service or more.

(2) If an Active Member dies on or after September 1, 2024, and the Active Member is survived by a spouse, and the Active Member has no natural or adopted minor children, including natural children of the Active Member conceived prior to the Active Member's death, such surviving spouse shall receive a one-time lump sum payment equal to two-thirds of the deceased Active Member's current annual rate of pay as reflected in the city's payroll system.

(3) If an Active Member dies on or after September 1, 2024, and at the time of the Active Member's death the Active Member is survived by a spouse and the Active Member's natural or adopted minor child or children, including natural children of an Active Member conceived prior to the Active Member's death, the Active Member's surviving spouse and minor children shall receive a one-time lump sum payment equal to two-thirds of the deceased Active Member's current annual rate of pay as reflected in the city's payroll system to be divided equally among the surviving spouse and eligible surviving children. In the event the eligible surviving children are not the natural or adopted children of the surviving spouse, payment shall be made to the parent or guardian of such child or children.

(b) (1) If an Active Member dies on or before August 31, 2024 and is survived by a spouse and an Active Member's natural or adopted minor child or children, including natural children of an Active Member conceived prior to the Active Member's death, there shall be paid during the life of the surviving spouse to the surviving spouse or to the guardian of such child or children in the event such child or children are not in the custody of the surviving spouse the amount of

$157.50 per month for one eligible child for as long as only one child meets the eligibility requirements hereinafter set forth or the amount of $270 per month for two or more eligible children, for as long as two or more children meet the eligibility requirements hereinafter set forth.

(2) If an Active Member dies on or before August 31, 2024 and is not survived by a spouse or if the spouse dies or remarries during the dependency of the Active Member's minor child or children, there shall be paid to the parent or guardian of such child or children the amount of $157.50 per month for one eligible child for as long as only one child meets the eligibility requirements hereinafter set forth, the amount of $315 per month for two eligible children for as long as two children meet the eligibility requirements hereinafter set forth, or the amount of $427.50 per month for three or more eligible children for as long as three or more children meet the eligibility requirements hereinafter set forth.

For the purpose of computing benefits pursuant to subsection (b) for the death of an Active Member on or before August 31, 2024, a natural child of a deceased Active Member shall be considered eligible from the first of the month next following the child's birth or the death of the deceased Active Member, whichever is the latter date, until such child reaches 18 years of age or marries, whichever occurs first. In the case of a legally adopted child of the deceased Active Member, such child, in addition to the eligibility requirements hereinbefore fixed for a natural child of the deceased Active Member, must in order to be eligible to be considered for the computation of benefits pursuant to this subsection (b) have received at least one-half of the child's support from the deceased Active Member during the 12 months immediately prior to the death of the deceased Active Member.

(3) If an Active Member dies on or after September 1, 2024, and at the time of the Active Member's death, the Active Member is survived by an Active Member's natural or adopted minor child or children, including natural children of an Active Member conceived prior to the Active Member's death, and the Active Member is not survived by a spouse, a one-time lump sum payment equal to two-thirds of the deceased Active Member's current annual rate of pay as reflected in the city's payroll system shall be divided equally among the eligible surviving children, which shall be payable to the parent or guardian of such child or children.

(c) If, at the time of an Active Member's death or within 120 days following the Active Member's death, a guardian has been appointed for an adult surviving child by reason of the probate court adjudging such child to be mentally or physically incompetent, there shall be paid survivor benefits in the amount of $157.50 per month

to the guardian for the use and benefit of such child during the period of incompetency, notwithstanding the fact that such child is over eighteen years of age.

(d) If an Active Member dies on or before August 31, 2024 and is survived by a dependent father or mother, or both, who received more than one-half of their support from the deceased Active Member during the 12 months immediately prior to the death of the Active Member and this fact is established to the satisfaction of the Board within one year after the death of the Active Member, the dependent father or mother, or both, shall receive a payment in an amount fixed by the Board which shall not be less than $112.50 nor more than $157.50 per month each. If the benefits payable pursuant to this paragraph (d) together with the benefits payable pursuant to the preceding paragraphs of this section exceed the limitations fixed by paragraph (h), the benefits payable pursuant to this paragraph (d) shall be reduced to meet the requirements of paragraph (h). If an Active Member dies on or after September, 1, 2024, no benefit for a dependent parent is available under this section.

(e) Should any payments be made pursuant to this section to any person in excess of the payments due said person under the terms of this section, said overpayment shall be deducted from benefits thereafter payable to such person and no further benefits shall be payable to such person until such overpayment is fully recovered. Nothing herein shall be construed to in any way limit the right of the Retirement System to recover overpayments in any other manner provided by law.

(f) Effective January 1, 1999, the monthly benefit amounts detailed in sections (a), (b) and (c) herein shall be adjusted for the increase in average hourly earnings that has occurred between June 1987 and June 1998 as measured by the U.S. Bureau of Labor Statistics. Effective January 1, 2000, and every January thereafter, monthly benefits will be adjusted based on the increase in average hourly earnings occurring during the immediately preceding July through June period as measured by the U.S. Bureau of Labor Statistics, not to exceed three (3) percent per year.

(g) For the purpose of this section the following terms shall have the meanings indicated:

(i) "Surviving spouse," shall mean the person legally married to the deceased Active Member on the day of such Active Member's death as evidenced by an undissolved ceremonial marriage and who has, in the opinion of the Board, either lived with the deceased Active Member as spouse immediately prior to the Active Member's death or has taken care of the children of the Active Member for at least one year immediately prior to the Active Member's death.

(ii) "Child" shall mean a natural child, including natural children of an Active Member conceived prior to the Active Member's death, or a legally adopted child.

(h) In no event shall more than $427.50 per month as adjusted according to

the terms of subsection (f) hereof, be paid pursuant to this section by reason of the death of an Active Member.

(i) No person finally adjudged guilty either as a principal or an aider, abettor, or procurer of the aggravated murder (ORC 2903.01), the murder (ORC 2903.02), or the voluntary manslaughter (ORC 2903.03) of an Active Member shall be eligible to receive the benefits payable pursuant to the provisions of this section by reason of the Active Member's death. For the purpose of this section, such person shall be considered as having predeceased the Active Member killed.

(C.O. 203-21; ordained by Ord. No. 442-1960*, eff. Jan. 1, 1961; a. Ord. No. 473-1961, eff. Jan. 1., 1962; a. Ord. No. 169-1962, eff. June 8, 1962; a. Ord. No. 341-1962, eff. Oct. 19, 1962; a. Ord. No. 35-1965, eff. Feb. 26, 1965; a. Ord. No. 29-1967, eff. Feb. 24, 1967; a. Ord. No. 36-1968, eff. Mar. 1, 1968; a. Ord. No. 207-1970, eff. July 31, 1970; renumbered to C.M.C. 203-49, eff. Jan. 1, 1972; a. Ord. No. 136-1973, eff. Mar. 1, 1973; a. Ord. No. 502-1973, eff. Dec. 14, 1973; a. Ord. No. 311-1975, eff. June 18, 1975; a. Ord. No. 437-1975, eff. Sept. 10, 1975; a. Ord. No. 300-1979, eff. Aug. 4, 1979; a. Ord. No. 160-1981, eff. Apr. 29, 1981; a. Ord. No. 545-1983, eff. Dec. 23, 1983; a. Ord. No. 224-1988, eff. July 29, 1988, operative Sept. 1, 1988; a. Ord. No. 389-1998, eff. Nov. 20, 1998; a. Ord. No. 352-2001, eff. Oct. 31, 2001; a. Ord. No. 336-2016, § 1, eff. Nov. 26, 2016; a. Emer. Ord. No. 272-2024, § 1, eff. August 7, 2024)

*Section 5 of Ord. No. 442-1960 states:

Notwithstanding any other provisions of this ordinance, members of the retirement system who are employed in the employment classifications, commonly called building crafts, shall not be eligible for any of the benefits provided for in Section 203-21 of the Code of Ordinances as ordained herein.

The council finds as a basis for this exception, and the exception in Ord. No. 437-1960, passed December 29, 1960, that because of the distinctive and unique terms of employment of these employees over twenty years or more, they should not receive these cash value benefits.

Sec. 203-50. Retirement Allowance Increases for Members Retiring Prior to January 1, 1981.

Every retirement allowance payable pursuant to Sections 203-33, 203-35, and 203-41 of the Cincinnati Municipal Code by reason of the retirement of a member prior to January 1, 1981, and every optional allowance paid to a beneficiary under Section 203-63 by reason of the retirement of a member prior to January 1, 1981, shall be increased in accordance with the following:

(a) Allowances paid to persons who retired during 1980 shall be increased 2½ percent;

(b) Allowances paid to persons who retired during 1979 shall be increased 5 percent;

(c) Allowances paid to person who retired during 1978 shall be increased 7½ percent;

(d) Allowances paid to persons who retired during 1977 shall be increased 10 percent;

(e) Allowances paid to persons who retired during 1976 shall be increased 12½ percent;

(f) Allowances paid to persons who retired during 1975 shall be increased 15 percent;

(g) Allowances paid to persons who retired during 1974 shall be increased 17½ percent;

(h) Allowances paid to persons who retired during 1973 shall be increased 20 percent;

(i) Allowances paid to persons who retired during 1972 shall be increased 22½ percent;

(j) Allowances paid to persons who retired prior to January 1, 1972 shall be increased 25 percent.

(Ordained by Ord. No. 310-1986, eff. Oct. 4, 1986)

Sec. 203-51. Unclaimed Benefits.

All unclaimed amounts payable under the provisions of the retirement system sections shall remain part of the funds of the retirement system.

(C.O. 203-23; renumbered to C.M.C. 203-51, eff. Jan. 1, 1972; a. Ord. No. 545-1983 eff. Dec. 23, 1983)

Sec. 203-52. Retirement Allowance Increase for Members Retiring from the City of Cincinnati or Hamilton County, Prior to January 1, 1983.

Every retirement allowable payable pursuant to §§ 203-33, 203-35, and 203-41 of the Cincinnati Municipal Code by reason of the retirement of a member from the City of Cincinnati or Hamilton County prior to January 1, 1983, and every optional allowance paid to a beneficiary under § 203-63 by reason of the retirement of a member from the City of Cincinnati or Hamilton County prior to January 1, 1983, shall be increased in accordance with the following:

(a) Allowances paid to persons who retired during 1982 shall be increased 2 percent;

(b) Allowances paid to persons who retired during 1981 shall be increased 4 percent;

(c) Allowances paid to persons who retired during 1980 shall be increased 6 percent;

(d) Allowances paid to persons who retired during 1979 shall be increased 8 percent;

(e) Allowances paid to persons who retired during 1978 shall be increased 10 percent;

(f) Allowances paid to persons who retired during 1977 shall be increased 12 percent;

(g) Allowances paid to persons who retired during 1976 shall be increased 14 percent;

(h) Allowances paid to persons who retired during 1975 shall be increased 16 percent;

(i) Allowances paid to persons who retired during 1974 shall be increased 18 percent;

(j) Allowances paid to persons who retired during 1973 shall be increased 20 percent;

(k) Allowances paid to persons who retired during 1972 shall be increased 22 percent;

(l) Allowances paid to persons who retired prior to January 1, 1972 shall be increased 24 percent.

(C.O. 204-52; ordained by Ord. No. 215-1995, eff. June 21, 1995; a. Ord. No. 397-1997, eff. Nov. 13, 1997)

Sec. 203-53. Reduction of Disability Retirement Allowance.

Each Disability Retiree shall report annually to the Board, on forms to be furnished by the Board, all the compensation for personal services earned by the Disability Retiree during the preceding year; provided, however, that all Employee Members retired for disability under the provisions of Section 203-41 of the Cincinnati Municipal Code shall not be required to report annual outside compensation for personal services earned

while on a disability retirement allowance after the attainment of their normal age and/or service retirement eligibility date.

In the event that a Disability Retiree's annual financial report indicates that compensation earned for personal services during the preceding year plus the disability retirement allowance exceeded the compensation that would have been received from the City during that period if the Disability Retiree had been employed by the City in the same employment classification held at the time of the disability retirement, the Board shall reduce the Disability Retiree's retirement allowance during the following year, or, if necessary, years, by the amount that compensation for personal service plus the retirement allowance exceeded the compensation that would have been received from the City if the Disability Retiree had been employed by the City in the same employment classification held at the time of retirement.

If the Disability Retiree fails to file with the Board the report required herein, the Board shall suspend the Disability Retiree's retirement allowance until such time as the report is filed.

If a Disability Retiree makes any false statement concerning the compensation received for personal services in reports required to be filed by this section, the Board may revoke the Disability Retiree's retirement allowance. If a Disability Retiree's retirement allowance is revoked, the unpaid balance of the Member's Accumulated Contributions shall be paid to the Disability Retiree in a lump sum.

A Disability Retiree restored to active service at a compensation less than the prevailing compensation for the employment classification held by such Disability Retiree at the time of Retirement shall continue to receive the disability allowance, subject to the limitations of this section; and the Disability Retiree shall not again become a Member of the Retirement System.

(C.O. 203-24; ordained by Ord. No. 166-1962, eff. June 8, 1962; a. Ord. No. 483-1967, eff. Jan. 19, 1968; renumbered to C.M.C. 203-53, eff. Jan. 1, 1972; a. Ord. No. 300-1979, eff. Aug. 4, 1979; a. Ord. No. 545-1983, eff. Dec. 23, 1983; a. Ord. No. 336-2016, § 1, eff. Nov. 26, 2016)

Analogous to C.O. 203-24; r. Ord. No. 315-1960, eff. Oct. 8, 1960.

Sec. 203-55. Reexamination of Disability Retirees; Restoration to Service.

Once each year after the retirement of a Member on a retirement allowance for disability, the Board may, and upon such Disability Retiree's application shall, require any Disability Retiree who has not yet attained their normal age and/or service retirement eligibility date to undergo a medical examination; provided, however, that if such Disability Retiree resides outside the limits of greater Cincinnati, the Board may designate a competent physician to examine such Disability Retiree. Should any Disability Retiree who has not yet attained their normal age and/or service retirement eligibility date refuse to submit to at least one medical examination in any such year by the medical director or physician designated by the Board, the Disability Retiree's allowance may be discontinued until withdrawal of such refusal; and should the refusal continue for one year, all such Disability Retiree's rights in and to a pension may be revoked by the Board.

Should the medical director or such competent physician designated by the Board recommend to the Board that a Disability Retiree is able to engage in a gainful occupation, and should the Board concur with the

recommendation, then such Disability Retiree's disability retirement allowance shall cease.

Should a Disability Retiree be rehired subsequent to the termination of their disability retirement allowance, the Disability Retiree shall again become a Member of the Retirement System. Any prior service credit used to compute the prior disability retirement allowance shall be restored, and, in addition, upon subsequent Retirement the Member shall be credited with all service as a Member.

(C.O. 203-25; ordained by Ord. No. 166-1962, eff. June 8, 1962; renumbered to C.M.C. 203-55, eff. Jan. 1, 1972; a. Ord. No. 474-1977, eff. Jan. 1, 1978; a. Ord. No. 300-1979, eff. Aug. 4, 1979; a. Ord. No. 545-1983, eff. Dec. 23, 1983; Emer. Ord. No. 083-2013, § 2, eff. April 10, 2013; a. Ord. No. 336-2016, § 1, eff. Nov. 26, 2016)

Analogous to C.O. 203-25; r. Ord. No. 315-1960, eff. Oct. 8, 1960.

Sec. 203-56. Cost-of-Living Adjustments.

(a) Through December 31, 2015, all Retirees in Groups A, B and C and the Optionees thereof entitled to benefits pursuant to Section 203-63, shall receive an annual cost-of-living adjustment to their benefit amount which adjustment shall be three (3) percent per year compounded annually. For Retirees and Optionees who begin receiving benefits on or after January 1, 1998, the cost-of-living adjustment will commence one year after the initial receipt of benefits.

(b) Through December 31, 2015, all Retirees in Groups D, E, F and G and the Optionees thereof entitled to benefits pursuant to Section 203-63, shall receive an annual cost-of-living adjustment to their benefit amount which adjustment shall be indexed to the CPI-U but shall not exceed two (2) percent per year. The annual cost-of-living adjustment shall not compound annually. This cost-of-living adjustment will commence one year after the initial receipt of benefits.

(c) Effective January 1, 2016, the annual cost of living adjustment for current and future Retirees and Optionees in the Current Employees Class and the Retirees Class, except as provided in this Section, will be a three (3) percent fixed simple adjustment.

(i) For those Members who retired prior to July 1, 1987, the cost of living adjustment calculation under this subsection (c) will be effective on January 1, 2016. For those Members who retired on or after July 1, 1987, the cost of living adjustment calculation under this subsection (c) will commence on their retirement anniversary date.

(ii) For purposes of calculating the simple cost of living adjustment in this subsection (c) for Members of the Retirees Class, the basis amount upon which the adjustment will be calculated will be the gross monthly pension amount on January 1, 2016, including all previously granted cost of living adjustments. For Members of Groups C, D, E, F and G, the basis amount upon which the cost of living adjustment will be calculated will be the gross monthly benefit as of their Retirement Effective Date.

(iii) Effective January 1, 2016, no member of the Retirees Class shall be entitled to a simple cost of living adjustment for a period of three (3) years unless the Member is entitled to the cost of living poverty exception. The suspension period shall commence upon January 1, 2016, or the anniversary date of the individual Member's Retirement, whichever date is later. In 2018, members of the Retirees

Class shall receive a one-time payment calculated at three (3) percent of their base pension annuity benefit (but in any event, no greater than $1,000). This payment will be made on the Retiree Class Member's retirement anniversary date.

(iv) Members of Groups C, D, E, F and G shall be subject to a three-year cost of living adjustment delay period during which he or she will not receive a cost of living adjustment. For those members of the Current Employees Class who retired after July 1, 2011 and on or prior to January 1, 2016, the three-year cost of living adjustment delay period begins on their next retirement anniversary date or on January 1, 2016, whichever is later. Members in Groups C, D, E, F, and G who are not members of the Current Employees Class, will be subject to a three (3) year cost of living adjustment delay period beginning on January 1, 2017 or on the first anniversary of their Retirement Effective Date, whichever is later.

(v) Each Current Employees Class Member who is a Member of Group C shall receive a one-time payment pursuant to the following schedule, to be paid no later than 90 days after the Effective Date of the Collaborative Settlement Agreement or within 90 days following the Member's Retirement, if later:

(A) Retired after July 1, 2011 through December 31, 2011: $125

(B) Retired on or after January 1, 2012 through December 31, 2012: $250

(C) Retired on or after January 1, 2013 through December 31, 2013: $375

(D) Retired on or after January 1, 2014 through December 31, 2014: $500

(E) Retired on or after January 1, 2015: $625

(vi) Any Member of the Retirees Class or the Current Employees Class (or their Optionee or Beneficiary entitled to continuing Retirement System benefits) who retired (or retires) with at least five years of Creditable Service and whose household income is below 150% of the U.S. Department of Health and Human Service's updated annual poverty guideline pursuant to 42 U.S.C. § 9902(2) will receive an annual cost-of-living adjustment to their benefit amount which adjustment shall be three (3) percent per year compounded annually, without being subject to any cost of living adjustment delay or suspension. If for that year and any subsequent year their household income (as defined in Cincinnati Municipal Code § 203-42) exceeds 150 percent of the federal poverty guidelines, such Retirees will receive an annual cost of living adjustment which shall be a three (3) percent fixed simple adjustment, after appropriate notice has been provided to the qualifying Retirees and Optionees. In order to be eligible under this Section, the Retiree must provide satisfactory documentation of their household income to the Board in a timely manner. Failure to provide satisfactory documentation in a timely manner may result in a waiver of any retroactive claims for the application of the compound cost of living adjustment provided for under this Section.

(d) The total retirement allowance including the adjustments payable herein shall not exceed the limit established by Section

415 of the "Internal Revenue Code of 1986," 100 Stat. 2085, 26 U.S.C.A. 415, as amended. (Ord. No. 389-1998, eff. Nov. 20, 1998; a. Ord. No. 084-2011, § 13, eff. April 16, 2011; a. Ord. No. 336-2016, § 1, eff. Nov. 26, 2016)

Sec. 203-57. Return of Accumulated Contributions and Payments.

Should a Member cease to be an Employee except by death or Retirement under the provisions of this chapter, the Member may request a return of his or her Accumulated Contributions by written request acceptable to and filed with the Board. In such case, the Member shall be paid:

(a) Such Member's Accumulated Contributions, plus

(b) The amount, if any, paid by such Member in accordance with Sections 203-7, 203-7-A, 203-7-B, 203-8, 203-23, 203-27A, 203-28, and 203-29, but only to the extent credited to the Accumulated Contributions of the Member at the time of payment.

The withdrawal of Accumulated Contributions by a Member terminates his or her Membership in the Retirement System.
(C.O. 203-27; a. Ord. No. 186-1971., eff. July 3, 1971; renumbered to C.M.C. 203-57, eff. Jan. 1, 1972; a. Ord. No. 42-1975, eff. Jan. 29, 1975; a. Ord. No. 300-1979, eff. Aug. 4, 1979; a. Ord. No. 545-1983, eff. Dec. 23, 1983; a. Ord. No. 352-2001, eff. Oct. 31, 2001; a. Ord. No. 336-2016, § 1, eff. Nov. 26, 2016)

Sec. 203-59. Rights of Members Transferring to Other Public Employment.

The provisions of this Section shall not apply if there is an agreement with PERS under Section 203-8 to permit a member or former member to transfer service credit to PERS.

If this Section should apply, when a member transfers to the employment of the state or any of its political subdivisions and pays into PERS pursuant to Section 145.44 of the Ohio Revised Code the amount, with interest, the member would have paid through regular salary deductions had the member participated in PERS since the commencement of city employment, or since January 1, 1935, if city employment commenced before that date, the board shall pay to PERS on behalf of the member, the member's funded actuarial reserve as of the date of withdrawal from the city retirement system, or the amount the city is required to pay by the last sentence of Section 145.44, Ohio Revised Code, whichever is the lesser amount, but only if the member pays to PERS, through the board, the difference, if any, between the amount the board will have contributed to PERS on the member's behalf pursuant to this Section, and the amount that must be paid by the city to PERS pursuant to Section 145.44 of the Ohio Revised Code to provide for the payment of the "full liability" referred to in Section 145.44 of the Ohio Revised Code.

No payment shall be made by the board to the state retirement system pursuant to this section unless application therefor is made by the member concerned within one year from the date the member leaves the city service or prior to January 1, 1957, whichever is the later.
(C.O. 203-28; a. Ord. No. 283-1961, eff. Oct. 7, 1961; renumbered to C.M.C. 203-59, eff. Jan. 1, 1972; a. Ord. No. 300-1979, eff. Aug. 4, 1979; a. Ord. No. 545-1983, eff. Dec. 23, 1983; a. Ord. No. 352-2001, eff. Oct. 31, 2001)

Sec. 203-61. Repealed.
(C.O. 203-28a; ordained by Ord. No. 468-1961, eff. Dec. 28, 1961; renumbered to

C.M.C. 203-61, eff. Jan. 1, 1972; a. Ord. No. 300-1979, eff. Aug. 4, 1979; a. Ord. No. 545-1983, eff. Dec. 23, 1983; r. Emer. Ord. No. 343-2018, § 1, eff. Oct. 31, 2018)

Sec. 203-63. Optional Allowances.

(a) Any Member may elect to receive the Service Retirement Allowance in the form of an allowance payable through life, or may elect to receive the actuarial equivalent, at the time of Retirement, of such allowances in any one of the four following ways:

Option 1. A reduced allowance for life and upon death, such reduced allowance to an Optionee for life.

Option 2. A reduced allowance and upon death, one-half of such reduced allowance to an Optionee for life.

Option 3. A reduced allowance to the Member during the period the Member and the Member's Optionee are both alive, and upon the death of either of them, two-thirds of such reduced allowance to the survivor for life.

Option 4. A reduced allowance to the Member during the period the Member and the Member's Optionee are both alive and upon the death of either of them, 80 percent of such reduced allowance to the survivor for life.

(b) A surviving spouse who was designated as the sole primary Beneficiary of a Member who either dies in service while eligible for Retirement or dies in service with twenty or more years of Creditable Service, and the surviving spouse of a Deferred Vested Member whose Service Retirement Allowance payments had not begun as of the date of the Member's death, may elect to receive either:

(i) The death benefits, if any, provided by Section 203-45, or

(ii) A reduced allowance for the life of the surviving spouse only, calculated under Option 1.

(c) The optional allowance to the surviving spouse of a Member who dies in service while eligible for Retirement shall become effective as of the first day of the month following the date of the Member's death.

(d) The optional allowance to the surviving spouse of a Member who is not eligible for Retirement and dies in service with twenty or more years of Creditable Service, shall become effective as follows:

(i) If the deceased Member was an Active Member on or after January 1, 2002, payments shall begin as of the first day of the month following the earliest date on which normal Service Retirement Allowance payments to the Member would have become effective had the Member lived and continued to be employed in service as an Employee.

(e) The optional allowance to the surviving spouse of a Deferred Vested Member who dies shall become effective on the date on which Service Retirement Allowance payments to the Member would have become effective had the Member lived.

(f) In the event that by reason of the death of any Member who selected an option under this section and the death of the Optionee, the payments made to the Member and the Optionee in the aggregate do not equal the amount of contributions standing to the Member's credit at the time of Retirement, there shall be paid to a Beneficiary, in accordance with Section 203-47, the amount of the contributions less the aggregate of the following amounts:

(i) All Service Retirement Allowance payments to the Member and to the Optionee, and

(ii) Any payments made by reason of the Member's death pursuant to any other applicable Section of this Chapter.

If the Member has failed to designate a Beneficiary, then payment shall be made to the person(s) and in the manner specified in Sections 203-47(b) and 203-47(c).

(g) In the event of any overpayment made to a Member, Optionee or Beneficiary, such overpayment shall be deducted from the next allowance payment or payments payable to the Member, Optionee or Beneficiary in such manner as to recover such overpayment as quickly as possible.

(h) Any Member who has elected an option under this section may change such election at any time prior to Retirement. No election of options shall be changed after Retirement, except that any Retiree who has elected to receive an option shall have the right to cancel that option in the event that such Retiree has become divorced, legally separated, obtained a dissolution of marriage or annulment from the Optionee and has provided the Board with a signed release from the Member's Optionee waiving all rights to the option or a certified copy of a court order stating that the Optionee is not entitled to any portion of the benefit. Upon application for cancellation of the option and filing with the Board a certified copy of the decree of divorce, dissolution, annulment or written separation agreement or a written waiver of all rights by the Optionee, the Board shall order the option previously elected to be cancelled, and the Retiree shall receive retirement benefits thereafter in the amount to which the Retiree would be entitled if an option had not been elected.
(C.O. 203-29; a. Ord. No. 455-1957, eff. Jan. 1, 1958; a. Ord. No. 227-1960, eff. June 22, 1960; a. Ord. No. 167-1962, eff. June 8, 1962; a. Ord. No. 472-1962, eff. Jan. 11, 1963; a. Ord. No. 16-1966, eff. Feb. 18, 1966; a. Ord. No. 176-1968, eff. May 17, 1968; a. Ord. No. 125-1970, eff. May 29, 1970; a. Ord. No. 460-1971, eff. Dec. 22, 1971; renumbered to C.M.C. 203-63 in 1971, eff. Jan. 1, 1972; a. Ord. No. 65-1977, eff. Mar. 9, 1977; a. Ord. No. 300-1979, eff. Aug. 4, 1979; a. Ord. No. 545-1983, eff. Dec. 23, 1983; a. Ord. No. 50-1985, eff. Mar. 8, 1985; a. Ord. No. 485-1985, eff. Nov. 8, 1985; a. Ord. No. 404-1997, eff. Dec. 17, 1997; Emer. Ord. No. 318-2002, § 1, eff. Oct. 2, 2002; a. Ord. No. 336-2016, § 1, eff. Nov. 26, 2016; Emer. Ord. No. 357-2017, § 2, eff. Dec. 20, 2017)

Sec. 203-65. Management of Fund and Duties of Trustees.

The Board shall be the trustee of the fund created by this Chapter and shall have full power to invest and reinvest the moneys and other assets of such fund subject to the terms, conditions, limitations and restrictions set forth in this section and Section 203-66. An investment committee consisting of members of the Board shall be appointed by the chairperson of the Board.

The Board and other fiduciaries shall discharge their duties with respect to the funds solely in the interest of the Members and their Optionees and Beneficiaries; and for the exclusive purpose of providing benefits to Members, and their Optionees and Beneficiaries and defraying reasonable expenses of administering the Retirement System. The foregoing shall not prohibit a return of City or Member contributions made under a mistake of fact or law, to the extent permitted under IRC Section 401(a)(2).

In addition to the foregoing, as trustee of the fund, the Board and its members shall perform all of their duties with respect to the Retirement System in accordance with standards described in Section 5809.02 of the Ohio Revised Code, as amended from time to time. As set forth in Section 5809.02

of the Ohio Revised Code, the Board and its members shall abide by the following standards of care:

(a) The Board shall invest and manage the fund assets as a prudent investor would, by considering the purposes, terms, distribution requirements, and other circumstances of the Retirement System. In satisfying this requirement, the Board shall exercise reasonable care, skill and caution.

(b) The Board shall make a reasonable effort to verify facts relevant to the investment and management of fund assets.

(c) The Board's investment and management decisions (including investment management delegation) shall not be evaluated in isolation, but in the context of the fund portfolio as a whole and as part of an overall investment strategy having risk and return objectives reasonably suited to the Retirement System.

(d) Among circumstances that the Board shall consider in investing and managing fund assets are the following as are relevant to the Retirement System and its Members:

(1) The general economic conditions;

(2) The possible effect of inflation or deflation;

(3) The expected tax consequences of investment decisions or strategies;

(4) The role that each investment or course of action plays within the overall fund portfolio, which may include financial assets, interests in closely held enterprises, tangible and intangible personal property, and real property;

(5) The expected total return from income and appreciation of capital;

(6) Other resources of the Members;

(7) Needs for liquidity, regularity of income, and preservation or appreciation of capital;

(8) An asset's special relationship or special value, if any, to the purposes of the Retirement System.

(f) The Board may enter into a bank custody or master trustee relationship, hold securities in nominee name, authorize the lending of securities for the purpose of earning additional income, and authorize the writing of options on owned securities. To facilitate investment of the funds, the Board may establish a partnership, trust, limited liability company, corporation, including a corporation exempt from taxation under 26 U.S.C. §§ 1 et seq., as amended, or any other legal entity authorized to transact business in this state.

(g) The Board may employ competent outside investment manager(s) and may delegate to such investment manager(s) its power to invest and reinvest as provided herein. The Board may require from investment manager(s) appropriate information to ensure the disinterested character of its recommendations and to ensure disinterested advice on the continued holdings of securities recommended. If investment manager(s) have been hired by the Board in accordance with the provisions of this section, no member of the Board shall be liable for acts or omissions of such investment manager(s), or be under any obligation to invest or otherwise

manage any asset of the Retirement System which is subject to the management of such investment manager(s). The Board shall exercise reasonable care, skill and caution in doing all of the following:

(1) Selecting an investment manager;

(2) Establishing the scope and terms of the delegation consistent with the purposes and terms of the Retirement System and the fund; and

(3) Periodically reviewing the actions in order to monitor the investment manager's performance with the terms of the delegation.

(h) The Board shall, in the process of selecting an investment manager, consider qualified Cincinnati investment managers, provided, however, that while consideration shall be given to such qualified Cincinnati investment managers, the Board must continue to act as a prudent investor in its selection of an investment manager. The Board shall also make public, on an annual basis, the list of investment managers used by the Cincinnati Retirement System during that period.

An investment manager shall be deemed a "qualified Cincinnati investment manager" if the investment manager possesses each of the following:

(1) A material investment manager business presence in Cincinnati, Ohio;

(2) Past and/or future firm commitment or involvement in the Cincinnati, Ohio community, prior to and/or throughout the period in which the investment manager shall manage the fund assets;

(3) Compliance with the Cincinnati Retirement System Statement of Investment Policy approved by the Cincinnati Retirement System Board of Trustees, including the Investment Manager Selection Policy; and

(4) The investment manager has a minimum of Two Billion Dollars and 00/100 ($2,000,000,000) in assets under its management at the time it submits its request to present a proposal to the Board to manage the fund assets. This section does not apply to Alternative Investment as determined by the Cincinnati Retirement System Board of Trustees.

(i) The Board shall have authority to impose upon the investment manager, pursuant to the contract with such manager, a standard of care that exceeds the standard of care imposed upon a fiduciary under applicable law. An investment manager appointed by the Board shall exercise reasonable care to comply with the terms of its investment management contract. The foregoing provisions of this section providing for the delegation of investment functions are intended to implement the provisions of Section 1339.59 of the Ohio Revised Code in the context of the Retirement System, and shall be construed in a manner that is consistent with the requirements of such section.

(j) Nothing herein or in Section 203-66 shall be construed as in any way limiting the authority of the Board to make loans to Members pursuant to Section 203-11 of this code.

(C.O. 203-32; a. Ord. No. 211-1961, eff. July 21, 1961; a. Ord. No. 238-1963, eff. July 26,

1963; Ord. No. 178-1968, eff. Apr. 17, 1968; a. Ord. No. 31-1969, eff. Jan. 22, 1969; a. Ord. No. 380-1970, eff. Dec. 2, 1970; renumbered to C.M.C. 203-65, eff. Jan. 1, 1972; a. Ord. No. 487-1973, eff. Oct. 31, 1973; a. Ord. No. 233-1980, eff. June 29, 1980; a. Ord. No. 433-1982, eff. Nov. 19, 1982; a. Ord. No. 206-1983, eff. May 11, 1983; a. Ord. No. 545-1983, eff. Dec. 23, 1983; a. Ord. No. 360-1986, eff. Oct. 24, 1986; a. Ord. No. 386-1993, eff. 11-26-93; a. Ord. No. 302-1999, eff. June 30, 1999; a. Ord. No. 159-2000, eff. May 10, 2000; a. Ord. No. 388-2004, eff. Jan. 7, 2005; a. Ord. No. 336-2016, § 1, eff. Nov. 26, 2016)

Sec. 203-66. Prohibited Transactions.

(a) Except as set forth in division (b) below, the board shall not perform any of the following actions to a party in interest:

(1) Lend any part of its income or corpus, without the receipt of adequate security and a reasonable rate of interest;

(2) Pay any compensation, in excess of a reasonable allowance for salaries or other compensation for personal services actually rendered;

(3) Make any part of its services available on a preferential basis;

(4) Make any substantial purchase of securities or any other property, for more than adequate consideration in money or money's worth;

(5) Sell any substantial part of its securities or other property, for less than an adequate consideration in money or money's worth; or

(6) Engage in any other transaction which results in a substantial diversion of its income or corpus.

(b) For purposes of subsection (a)(1) above, a bond, debenture, note, or certificate or other evidence of indebtedness (hereinafter in this section referred to as "obligation") of the city shall not be treated as a loan made without the receipt of adequate security if:

(1) Such obligation is acquired:

(A) On the market, either at the price of the obligation prevailing on a national securities exchange which is registered with the Securities and Exchange Commission; or if the obligation is not traded on such a national securities exchange, at a price not less favorable to the trust than the offering price for the obligation as established by current bid and asked prices quoted by persons independent of the issuer;

(B) From an underwriter, at a price not in excess of the public offering price for the obligation as set forth in a prospectus or offering circular filed with the Securities and Exchange Commission; and at which a substantial portion of the same issue is acquired by person independent of the issuer; or

(C) Directly from the issuer, at a price not less favorable to the trust than the price paid currently for a substantial portion of the same issue by persons independent of the issuer;

(2) Immediately following acquisition of the obligation:

(A) Not more than 25% of the aggregate amount of obligations issued in such issue and

outstanding at the time of acquisition is held by the trust; and

(B) At least 50% of the aggregate amount referred to in subsection (a) is held by persons independent of the issuer; and

(3) Immediately following acquisition of the obligation, not more than 25% of the assets of the trust is invested in obligations of persons described in division (d).

(c) Except as otherwise provided herein, the board shall not purchase or sell any securities from, to or through any party in interest. The board shall not hire an investment manager who is a party in interest.

(d) For purposes of this section, the term "party in interest" shall include the following:

(1) The City of Cincinnati;

(2) A member of the board;

(3) An elected or appointed official, an officer who is appointed with the consent of the council of the city of Cincinnati, or any department or division head;

(4) A relative of a person described in subsections (2) or (3);

(5) A corporation, partnership or other legal entity that is controlled by the city of Cincinnati;

(6) A corporation, partnership or other legal entity in which a person described in subsections (2), (3), or (4) has a stock, capital or profits interest of three percent or more.

(e) For purposes of this section, the term "relative" shall include a spouse, lineal ascendants, lineal descendants and spouses of lineal descendants.

(f) The foregoing restrictions of divisions (a) and (b) are intended to comply with the requirements of Federal Internal Revenue Code, 26 U.S.C. § 503(b) and (e), and shall be construed and interpreted accordingly.
(Ordained by Ord. No. 159-2000, eff. May 10, 2000)

Sec. 203-69. Custodians of Funds.

The city treasurer shall be the custodian of the retirement system regular bank account. All payments from said account shall be made by the treasurer only upon vouchers signed by the secretary of the board or persons designated by the secretary.

The board may designate a master trustee/custodian and delegate to said custodian the authority to make payments from custodial accounts for investment purposes, receive funds derived from investment sales, dividends, and interest, and perform such other services related to investment transactions and custody as specified in the master custody agreement.
(C.O. 203-34; renumbered to C.M.C. 203-69, eff. Jan. 1, 1972; a. Ord. No. 300-1979, eff. Aug. 4, 1979; a. Ord. No. 545-1983, eff. Dec. 23, 1983; a. Ord. No. 457-1984, eff. Nov. 9, 1984; a. Ord. No. 263-1988, eff. Aug, 6, 1988)

Sec. 203-71. Available Cash.

Cash may be kept on deposit for the purpose of meeting disbursements for pensions, annuities and other payments.
(C.O. 203-35; renumbered to C.M.C. 203-71, eff. Jan. 1, 1972; a. Ord. No. 206-1983, eff. May 11, 1983, a. Ord. No. 545-1983, eff. Dec. 23, 1983)

Sec. 203-73. Payroll Deductions.

The Board shall certify to the proper authority or officer responsible for making up the payroll the names of all Members

listed on such payroll, and the proper authority or officer responsible for making up the payroll, prior to January 1, 2010, shall cause to be deducted from the salary of each Member on each and every payroll for each and every payroll period 7 percent of the pensionable compensation of each Member for such period. As of the first full pay period of 2010, the proper authority or officer responsible for making up the payroll shall cause to be deducted from the salary of each Member on each and every payroll for each and every payroll period 7.5 percent of the pensionable compensation of each Member for such period. As of the first full pay period of 2011, the proper authority or officer responsible for making up the payroll shall cause to be deducted from the salary of each Member on each and every payroll for each and every payroll period 8.0 percent of the pensionable compensation of each Member for such period. As of the first full pay period of 2012, the proper authority or officer responsible for making up the payroll shall cause to be deducted from the salary of each Member on each and every payroll for each and every payroll period 8.5 percent of the pensionable compensation of each Member for such period. As of the first full pay period of 2013, the proper authority or officer responsible for making up the payroll shall cause to be deducted from the salary of each Member on each and every payroll for each and every payroll period 9.0 percent of the pensionable compensation of each Member for such period. Provided, for Current Employees Class Members the payroll deduction under this Section shall not exceed 9.0 percent of the pensionable compensation of each Member for each and every payroll period during the term of the Consent Decree entered in Sunyak, et al., v. City of Cincinnati, et al. (the City of Cincinnati Pension Litigation), Case: 1:11-cv-00445-MRB in the United States District Court, Southern District of Ohio, Western Division.

(C.O. 203-39; a. Ord. No. 455-1957, eff. Jan. 1, 1958; renumbered to C.M.C. 203-77, eff. Jan. 1, 1972; a. Ord. No. 474-1977, eff. Jan. 1, 1978; a. Ord. No. 545-1983, eff. Dec. 23, 1983; a. Ord. No. 359-2009, § 4, eff. Dec. 25, 2009; a. Ord. No. 336-2016, § 1, eff. Nov. 26, 2016)

Note—For effect on members who retired prior to Jan. 1, 1958, see Ord. No. 62-1959, eff. Apr. 17, 1959.

Sec. 203-75. Status of Deductions.

The deductions provided for herein shall be made notwithstanding that the minimum compensation provided for by law for any member shall be reduced thereby. Every member shall be deemed to consent and agree to the deductions made and provided for herein and shall receipt for the member's full salary or compensation, and payment of salary or compensation less such deductions shall be a full and complete discharge and acquittance of all claims and demands whatsoever for the services rendered by such person during the period covered by such payment except as to the benefits provided under this chapter. The proper authority or officer responsible for making up the payroll shall certify to the board on each and every payroll the amounts to be deducted, and each of said amounts shall be deducted by the city treasurer, and when deducted shall be credited, together with regular interest thereon, to the individual account of the member from whose compensation said deduction was made.

(C.O. 203-40; renumbered to C.M.C. 203-79, eff. Jan. 1, 1972; a. Ord. No. 300-1979, eff. Aug. 4, 1979; a. Ord. No. 545-1983, eff. Dec. 23, 1983)

Sec. 203-81. Repealed.

(C.O. 203-41; a. Ord. No. 455-1957, eff. Jan. 1, 1958; a. Ord. No. 442-1960, eff. Jan. 1, 1961; a. Ord. No. 98-1964, eff. Jan. 1, 1964; a. Ord. No. 469-1965, eff. Dec. 24, 1965; a. Ord. No. 33-1968, eff. Jan. 24, 1968; renumbered to C.M.C. 203-81, eff. Jan. 1, 1972; a. Ord. No. 300-1979, eff. Aug. 4,

1979; a. Ord. No. 545-1983, eff. Dec. 23, 1983; r. Ord. No. 336-2016, § 3, eff. Nov. 26, 2016)

Sec. 203-83. Normal and Accrued Liability Contributions.

On account of each member who is an employee there shall be paid each year into the fund by the employer of each member, a certain percentage of the earnable compensation of each member to be known as the "normal contribution," and an additional percentage of the member's earnable compensation to be known as the "accrued liability contribution." The rates percentum of such contributions shall be fixed on the basis of the liabilities of the retirement system as shown by actuarial valuation.
(C.O. 203-44; renumbered to C.M.C. 203-87, eff. Jan. 1, 1972; a. Ord. No. 545-1983, eff. Dec. 23, 1983)

Sec. 203-85. Calculation of Normal Contributions.

On the basis of regular interest and of such mortality and other tables as shall be adopted by the board, the board shall determine the normal contribution. The normal contribution rate shall equal the percentum determined by dividing: (a) the Normal Cost plus all administrative costs of the system, by (b) the expected total annual compensation reflected in determining plan benefits of all members for the next calendar year. The Normal Cost shall be determined under the Entry Age Normal Actuarial Cost Method. The normal rate of contribution shall be determined after each valuation
(C.O. 203-45; renumbered C.M.C. 203-89, eff. Jan. 1, 1972; a. Ord. No. 300-1979, eff. Aug. 4, 1979; a. Ord. No. 545-1983, eff. Dec. 23, 1983; a. Ord. No. 264-2000, eff. June 28, 2000)

Sec. 203-91. Accrued Liability Contribution Rate.

The Board shall determine the accrued liability contribution rate based on the calculation made by the actuary dated December 31, 1999 and shall determine such rate on each subsequent anniversary thereof (the "valuation date"). The rate shall be expressed as a percentum of the estimated total annual compensation reflected in determining plan benefits of all members for the next calendar year.

If the Unfunded Actuarial Accrued Liability as of the valuation date is less than zero, all Prior Year Amortization Bases shall be considered fully amortized and the accrued liability contribution rate shall be equal to 15-year amortization of the Unfunded Actuarial Accrued Liability on the basis of regular interest divided by the estimated total annual compensation reflected in determining plan benefits of all members for the next calendar year.

If the Unfunded Actuarial Accrued Liability as of the valuation date is greater than zero, but as of the previous valuation date was less than zero, the Current Year Amortization Base shall equal the Unfunded Actuarial Accrued Liability. The accrued liability contribution rate shall be equal to 15-year amortization of the Current Year Amortization Base on the basis of regular interest divided by the estimated total annual compensation reflected in determining plan benefits of all members for the next calendar year. In subsequent years the Current Year Amortization Base shall be referred to as a Prior Year Amortization Base.

If the Unfunded Actuarial Accrued Liability as of the valuation date is greater than zero, and was also greater than zero as of the previous valuation date, the Current Year Amortization Base shall equal the Unfunded Actuarial Accrued Liability less the

unamortized portion of all Prior Year Amortization Bases. The accrued liability contribution rate shall be equal to 15-year amortization of the Current Year Amortization Base and all Prior Year Amortization Bases that have not been fully amortized on the basis of regular interest divided by the estimated total annual compensation reflected in determining plan benefits of all members for the next calendar year.
(C.O. 203-46; a. Ord. No. 455-1957, eff. Jan. 1, 1958; renumbered to C.M.C. 203-91, eff. Jan. 1, 1972; a. Ord. No. 545-1983, eff. Dec. 23, 1983; a. Ord. No. 264-2000, eff. June 28, 2000)

Note—For effect on members who retired prior to Jan. 1, 1958, see Ord. No. 62-1959, eff. Apr. 17, 1959.

Sec. 203-93. Total Employer Contribution Payable to the Fund.

(a) The total Employer contribution payable in each year to the fund shall be not less than the sum of the rates percentum known as the normal contribution rate and the accrued liability contribution rate of the second previous year multiplied by the total annual compensation reflected in determining plan benefits of all Members for the calendar year. The Board shall specify the procedures and schedule for employer billings and collection of the amounts payable.

(b) Notwithstanding anything in the Cincinnati Municipal Code to the contrary, the total Employer contribution payable in each year to the fund shall not be less than 16.25% of the annual amount of pensionable salaries for full-time Employees who are Members of the Retirement System for the duration of the Consent Decree entered in Sunyak, et al., v. City of Cincinnati, et al. (the City of Cincinnati Pension Litigation), Case: 1:11-cv-00445-MRB in the United States District Court, Southern District of Ohio, Western Division (30 years).

(c) The City, with input and recommendations from the Board, shall establish a funding policy for health care in accordance with the provisions of the Collaborative Settlement Agreement.
(C.O. 203-47; a. Ord. No. 98-1964, eff. Jan. 1, 1964; a. Ord. No. 16-1966, eff. Feb. 18, 1966; renumbered to C.M.C. 203-93, eff. Jan. 1, 1972; a. Ord. No. 545-1983, eff. Dec. 23, 1983; a. Ord. No. 264-2000, eff. June 28, 2000; a. Ord. No. 336-2016, § 1, eff. Nov. 26, 2016)

Sec. 203-95. Repealed.

(C.O. 203-48; renumbered to C.M.C. 203-95, eff. Jan. 1, 1972; a. Ord. No. 545-1983, eff. Dec. 23, 1983; r. Ord. No. 264-2000, eff. June 28, 2000)

Sec. 203-101. Appropriations.

The board shall certify the amount of the employer contribution necessary to pay the retirement system the amounts payable by the city as enumerated in this chapter according to legal budget procedure.
(C.O. 203-53; a. Ord. No. 98-1964,, off. Jan. 1, 1964; a. Ord. No. 16-1966, eff. Feb. 18, 1966; renumbered to C.M.C. 203-101, eff. Jan. 1, 1983; a. Ord. No. 545-1983, eff. Dec. 23, 1983)

Sec. 203-103. Benefit Recipients Rights Exempt From Assignment, Execution and Taxes.

The right of a person to a pension, an annuity or a retirement allowance, to the return of contributions, the pension, annuity or retirement allowance itself, any option benefit or death benefit, any other right accrued or accruing to any person under the provisions of this chapter (collectively referred to herein as a "benefit") and the moneys in the fund created by this chapter, shall be exempt from any state tax except that tax imposed by O.R.C. Section 5747.02, and any

county, municipal or other local tax except taxes imposed pursuant to O.R.C. Sections 5748.02 or 5748.08. Except as provided in O.R.C. Sections 145.57, 3111.23 and 3113.21, the right of a person to a benefit and the moneys in the trust funds created by this chapter shall not be subject to execution, garnishment, attachment, the operation of bankruptcy or insolvency law, or any other process of law whatsoever; and except as provided in O.R.C. Sections 145.57, 3111.23 and 3113.21, shall be unassignable.
(C.O. 203-59; renumbered C.M.C. 203-105, eff. Jan. 1, 1972; a. Ord. No. 545-1983, eff. Dec. 23, 1983; a. Ord. No. 264-2000, eff. June 28, 2000; a. Ord. No. 336-2016, § 1, eff. Nov. 26, 2016)

Sec. 203-105. Correction of Errors.

Should any change or error in the records result in any eligible person receiving from the Retirement System more or less than they would have been entitled to receive had the records been correct, the Board shall correct such error, and, as far as practicable, shall adjust the payments in such a manner that the actuarial equivalent of the benefit to which such eligible person was correctly entitled shall be paid.
(C.O. 203-61; renumbered to C.M.C. 203-107, eff. Jan. 1, 1972; Ord. No. 300-1979, eff. Aug. 4, 1979: a. Ord. No. 545-1983. eff. Dec. 23, 1983; a. Ord. No. 336-2016, § 1, eff. Nov. 26, 2016)

Sec. 203-107. Benefits Under Other City Systems Excluded.

No other provision of law or ordinance which provides wholly or partly at the expense of the city for pensions or retirement benefits for employees of the city, their widows or other dependents, shall apply to members or beneficiaries of the retirement system established in accordance with provisions of this chapter or to their widows or other dependents.
(C.O. 203-62; renumbered to C.M.C. 203-109, eff. Jan. 1, 1972; a. Ord. No. 545-1983, eff. Dec. 23, 1983)

Sec. 203-111. Loans to Members.

On and after July 1, 1967 and until September 28, 2010, loans may be made to any member who has had at least three years of service as a member. Effective September 29, 2010, no new retirement loan applications will be accepted or approved by the Cincinnati Retirement System.

The aggregate amount of loans outstanding to any member shall never exceed the lesser of the following amounts:

(a) 50 percent of the amount of the member's accumulated contributions.

(b) An amount which, together with interest thereon, can be repaid prior to the member's 65th birthday by deduction from the member's compensation at the rate of 20 percent of the compensation.

(c) $50,000, reduced by the highest outstanding balance of loans made to the member under this retirement system during the one year period preceding the date of the loan.

The interest rate on loans shall be a per annum rate to be set by the board from time to time, which rate shall cover the loan insurance established under Section 203-113. The principal amount, together with the interest, shall be repaid to the retirement system in equal installments payable at least quarterly over a repayment period that does not exceed:

(1) For a loan which is used to acquire a dwelling unit which,

within a reasonable period of time, is to be used as the principal residence of the member, the repayment period may not exceed 15 years; and

(2) For all other loans, five years.

Loan repayments shall be made by deduction from the compensation of the member at the same time and in the same manner the member's contributions to the retirement system are deducted. Such installments shall be at least equal to 5 percent of the member's compensation, and not in excess of 20 percent.

Notwithstanding any other law affecting the salary or compensation of any person or persons to whom this chapter applies or shall apply, the additional deductions required to repay the loan shall be made.

If said member has a retirement loan outstanding at the time of leaving service, the loan shall be paid in full prior to reaching age 65, or within one year of leaving city service, whichever comes first. If loan repayment is not made as stipulated herein, the following options exist:

(i) the member can have the balance of contributions refunded directly as specified in Section 203-57;

(ii) the member can have the balance of contributions rolled over into another qualifying plan, including the Public Employees Retirement System as specified in Section 203-59;

(iii) a member hired before January 1, 2010 having at least 25 years of service and being at least age 55, can take a reduced retirement as specified in Section 203-35(a); a member hired on or after January 1, 2010 having at least 25 years of service and being at least age 60 can take a reduced retirement as specified in Section 203-35(b).

Application for retirement shall be made before the member leaves the service or within one year thereafter, except application may be made after said one year with the approval of the board of trustees.

No member or former member who has an outstanding loan shall be permitted to transfer service credit to a State Retirement System under Section 203-8 unless and until such loan is repaid in full, with interest.

The board of trustees of the retirement system shall promulgate rules and regulations consistent with the provisions of this chapter governing the making of loans to members; and if the principal amount of a loan will exceed $7,500.00 and the member is married at the time of the loan, the loan will not be made unless the spouse of the member provides a written consent to the loan, on a form or forms provided by the board of trustees for such purpose.
(C.O. 203-63; a. Ord. No. 86-1958, eff. Apr. 18, 1958; a. Ord. No. 14-1961, eff. Feb. 10, 1961; a. Ord. No. 205-1967, eff. June 16, 1967; renumbered to C.M.C. 203-111, eff. Jan. 1, 1972; a. Ord. No. 52-1976, eff. Feb. 11, 1976; a. Ord. No. 300-1979, eff. Aug. 4, 1979; a. Ord. No. 545-1983, eff. Dec. 23, 1983; a. Ord. No. 341-1995, eff. Nov. 17, 1995; a. Ord. No. 264-2000, eff. June 28, 2000; a. Ord. No. 352-2001, eff. Oct. 31, 2001; a. Emer. Ord. No. 346-2010, eff. Sept. 29, 2010; a. Ord. No. 084-2011, § 14, eff. April 16, 2011)

Sec. 203-113. Loan Insurance.

In case of the death of a member who executes a loan on or after July 1, 1967, any unpaid balance of a loan at the time any

benefit becomes payable shall be deducted from the benefit otherwise payable, provided, however, that:

(a) If a benefit is payable by reason of the death of the member after the 30th and before the 60th day after making a loan, 25 percent of the amount of the loan outstanding not in excess of $2,000 shall not be deducted from the benefit.

(b) If a benefit is payable by reason of the death of a member on or after the 60th but before the 90th day after the making of a loan, 50 percent of the loan outstanding not in excess of $2,000 shall not be deducted from the benefit.

(c) If a benefit is payable by reason of the death of a member on or after the 90th day after the making of a loan, no part of the loan outstanding not in excess of $2,000 shall be deducted from the benefit.

For the purposes of this section, the term "benefit" shall include the return of accumulated contributions.

Effective January 1, 1978, for purposes of this section, the term "member" shall be defined to include both active and retired members of the Cincinnati Retirement System.
(C.O. 203-64; ordained by Ord. No. 205-1967, eff. June 16, 1967; renumbered to C.M.C. 203-113, eff. Jan. 1, 1972; a. Ord. No. 96-1978, eff. Mar. 15, 1978; a. Ord. No. 545-1983, eff. Dec. 23, 1983; a. Ord. No. 341-1995, eff. Nov. 17, 1995)

Sec. 203-115. Optional Coverage for City Manager.

The city manager may elect to become a member of the retirement system and receive coverage under the provisions of this chapter or elect to become a member of the public employee retirement system. Election of coverage shall be made by the city manager in writing directed to the board at the beginning of the city manager's term. The city manager shall state in such writing that the election is made with the knowledge of the various benefits. provided by each system.
(C.O. 203-115; ordained by Ord. No. 333-1974, eff. Aug. 7, 1974; a. Ord. No. 300-1979, eff. Aug. 4, 1979; a. Ord. No. 545-1983, eff. Dec. 23, 1983)

Sec. 203-117. Eligible Rollover Distributions.

For purposes of compliance with IRC Section 401(a)(31), this section applies notwithstanding any contrary provision or retirement law that would otherwise limit a distributee's election to make a rollover. A distributee may elect, at the time and in the manner prescribed by the board, to have any portion of an eligible rollover distribution paid directly to an eligible retirement plan specified by the distributee in a direct rollover.

(a) "Eligible rollover distribution" means any distribution of all or any portion of the balance to the credit of the distributee, as further described below:

(i) an eligible rollover distribution does not include the following:

(A) any distribution that is one of a series of substantially equal periodic payments (not less frequently than annually) made for the life (or the life expectancy) of the distributee or the joint lives (or joint life expectancies) of the distributee and the distributee's designated beneficiary, or for a specified period of ten years or more; or

(B) any distribution to the extent such distribution is required under IRC Section 401(a)(9); or

(C) the portion of any distribution that is not includible in gross income; or

(D) any other distribution that is reasonably expected to total less than $200 during the year.

(ii) Effective January 1, 2002, a portion of a distribution will not fail to be an eligible rollover distribution merely because the portion consists of after-tax employee contributions that are not includible in gross income. However, such portion may be transferred only as follows

(A) to an individual retirement account or annuity described in IRC Section 408(a) or (b) or to a qualified defined contribution plan described in IRC Section 401(a);

(B) on or after January 1, 2007, to a qualified defined benefit plan described in IRC Section 401(a) or to an annuity contract described in IRC Section 403(b), that agrees to separately account for amounts so transferred (and earnings thereon), including separately accounting for the portion of the distribution that is includible in gross income and the portion of the distribution that is not so includible; or

(C) on or after January 1, 2008, to a Roth IRA described in IRC Section 408A.

(iii) Effective January 1, 2002, the definition of eligible rollover distribution also includes a distribution to a surviving spouse.

(b) "Eligible retirement plan" means any of the following that accepts the distributee's eligible rollover distribution:

(i) an individual retirement account described in IRC Section 408(a),

(ii) an individual retirement annuity described in IRC Section 408(b),

(iii) an annuity plan described in IRC Section 403(a),

(iv) a qualified trust described in IRC Section 401(a),

(v) effective January 1, 2002, an annuity contract described in IRC Section 403(b),

(vi) effective January 1, 2002, a plan eligible under IRC Section 457(b) that is maintained by a state, political subdivision of a state, or any agency or instrumentality of a state or a political subdivision of a state that agrees to separately account for amounts transferred into that plan from the retirement system, or

(vii) effective January 1, 2008, a Roth IRA described in IRC Section 408A.

(c) "Distributee" means an employee or former employee. "Distributee" also includes the employee's or former employee's surviving spouse. Effective January 1, 2007, a distributee further includes a nonspouse beneficiary who is a designated beneficiary as defined by IRC Section 401(a)(9)(E). However, a nonspouse beneficiary may rollover the distribu-

tion only to an individual retirement account or individual retirement annuity established for the purpose of receiving the distribution, and the account or annuity will be treated as an "inherited" individual retirement account or annuity.

(d) "Direct rollover" means a payment by the plan to the eligible retirement plan specified by the distributee.

(Ordained by Ord. No. 264-2000, eff. June 28, 2000; Emer. Ord. No. 379-2008, eff. Nov. 19, 2008; Emer. Ord. No. 291-2009, § 6, eff. Oct. 28, 2009)

Sec. 203-119. Minimum Distribution Requirements of IRC Section 401(a)(9).

(a) It is intended that the provisions of the Retirement System comply with a good faith interpretation of the requirements of IRC Section 401(a)(9) as applicable to a governmental plan within the meaning of IRC Section 414(d). Accordingly, the Board shall apply the provisions of this section in any manner that the Board deems necessary or desirable to assure compliance with such requirements.

(b) Payment of the retirement allowance of each Member must begin by the Member's Required Beginning Date and, except as provided below, will be made in non-increasing monthly amounts either (a) for the life of the Member or for the joint lives of the Member and the Member's Optionee or Beneficiary, or (b) for the life of the Member with a stated period certain not to exceed the life expectancy of the Member or the joint life expectancy of the Member and the Member's Optionee or Beneficiary. Notwithstanding the foregoing, lump sum payments of Accumulated Contributions may be made to Members and increases in the retirement allowances of Members may be made as provided in Section 203-56. Any stated period certain for the payment of a retirement allowance hereunder may not be lengthened after the commencement date of the retirement allowance.

Optional forms of retirement allowances provided under Section 203-63 are subject to the minimum incidental benefit payment restrictions of IRC Section 401(a)(9)(G). Accordingly, if a retired Member elects an optional form of payment under Section 203-63 and names a Beneficiary or Optionee other than the spouse of the Member, the Board shall limit the percentage of the Member's retirement allowance that may be paid to the Beneficiary or Optionee to the extent required to assure compliance with such requirements.

If a Member dies on or after his or her required beginning date, payments to the Beneficiary or Optionee of the Member shall continue to be made over the life or life expectancy of the Beneficiary or Optionee at a rate that is at least as rapid as that in effect before the Member's death.

For purposes of this section the "Required Beginning Date" of a Member is the first day of April of the calendar year following the calendar year in which the Member attains age 70½ or retires, whichever is later.

For the requirements of this section, life expectancies will be calculated as of the commencement date of the retirement allowance by use of the expected return multiples in Tables V and VI of IRS Regulation 1.72-9, and will not be recalculated thereafter.

(c) If a Member dies before his or her required beginning date, any lump sum death benefits payable under this Retirement System shall be paid by December 31 of the calendar year containing the fifth anniversary of the Member's death; and any annuity benefits payable on account of the Member's death shall be paid in accordance with this division (c).

If an annuity benefit is payable to a Beneficiary or Optionee other than the Member's spouse, the annuity shall be paid over the life of the Beneficiary or Optionee or over a period certain not to be greater than the life expectancy of the Beneficiary or Optionee, and shall commence on or before December 31 of the calendar year immediately following the calendar year in which the Member died.

If an annuity benefit is payable to the Member's surviving spouse, the annuity shall be paid over the life of the spouse or over a period certain not greater than the life expectancy of the spouse, and shall commence by the later of (1) December 31 of the calendar year immediately following the calendar year in which the Member died, and (2) December 31 of the calendar year in which the Member would have attained age 70½.

(d) Payments made under an annuity contract purchased by the Retirement System to provide any retirement allowance or other benefit will also comply with the requirements of this section and IRC Section 401(a)(9).

(Ordained by Ord. No. 264-2000, eff. June 28, 2000; Emer. Ord. No. 291-2009, § 7, eff. Oct. 28, 2009; a. Ord. No. 084-2011, § 15, eff. April 16, 2011; a. Ord. No. 336-2016, § 1, eff. Nov. 26, 2016)

Sec. 203-121. Funding of Medical Benefits.

(a) The Board shall establish a "Qualified Medical Benefits Account" within the fund of the Retirement System for the purpose of funding the payment of Qualified Medical Benefits.

Effective as of December 31, 1997, funding for the Qualified Medical Benefits Account shall be in an amount equal to 30.4% of the assets of the trust fund for the Retirement System. Thereafter, the Board shall credit to the Qualified Medical Benefits Account all or a portion of the employer contribution that is payable to the Fund for such year pursuant to Sections 203-85 and 203-93; provided, however, that the amount credited to the Qualified Medical Benefits Account after December 31, 1997 shall not exceed an amount which will cause the aggregate amount of the employer contributions to the Retirement System since January 1, 1998 for the purposes of providing Qualified Medical Benefits and "Chargeable Death Benefits" to exceed 25% of the sum of the "Section 401(h) Contribution Bases" for all calendar years beginning on or after January 1, 1998.

The Section 401(h) Contribution Basis attributable to any calendar year beginning on or after January 1, 1998 shall equal the sum of (i) the employer contributions for such year for the purpose of funding service retirement allowances and disability allowances (other than for past service credits), (ii) the employer contributions for such year for the purpose of funding "Chargeable Death Benefits," and (iii) the employer contributions for such year for the purpose of funding of Qualified Medical Benefits.

"Chargeable Death Benefits" shall include any benefit under the Retirement System that is payable with respect to a member or retired member as a result of such member's death, to the extent that such payment would exceed the amount of the reserve needed to provide for the service retirement allowance of the member or retired member existing at his or her death.

Assets credited to the Qualified Medical Benefits Account may, but need not, be invested in a segregated fund within the fund of the Retirement System. If the assets of the Qualified Medical Benefits Account are not so segregated, the Account shall participate on a reasonable basis in the income, gains and losses of the fund (or of

any portion of such fund to which the Qualified Medical Benefits Account may be assigned by the Board).

Except to the extent applicable law requires otherwise, in no event shall any amounts credited to the Qualified Medical Benefits Account revert to the City, or be diverted to purposes other than the payment of Qualified Medical Benefits (which term may be amended from time to time to include any medical expenses permitted to be paid under the terms of Section 401(h) of the IRC) and any necessary or appropriate expenses attributable to the payment of Qualified Medical Benefits and the maintenance of the Qualified Medical Benefits Account, prior to the satisfaction of all liabilities of the Retirement System for such Qualified Medical Benefits. Any amounts credited to the Qualified Medical Benefits Account following the satisfaction of all such liabilities shall be returned to the City (except to the extent applicable law requires otherwise).

(b) As referred to in this Section:

(i) An "Eligible Person" is a retired member, widow, eligible dependent child, or orphan or other individual who, pursuant to Section 203-43 or Section 203-44: (A) is eligible for hospital, surgical and medical benefits, (B) has enrolled to be covered under one of the medical benefit programs made available to such persons, and (C) if required, is making the monthly retiree contributions required for such coverage (either for that person alone or for that person and any eligible dependent for whom he or she has elected such coverage).

(ii) The "Qualified Medical Benefits" of an Eligible Person at any time shall be the benefits for which, pursuant to Section 203-43 or Section 203-44, the Eligible Person and his or her dependents (if any) are eligible at any time, and for which he or she has paid all required monthly retiree contributions specified for such coverage.

(iii) The "Qualified Coverage" of an Eligible Person shall be the medical benefit programs that are made available to such person pursuant to Section 203-43 or Section 203-44 (as amended from time to time).

(iv) A "Premium Payment Program" is a medical benefit arrangement maintained through an insurance contract, health maintenance organization, or similar prepaid arrangement. The term Premium Payment Program shall not include the reimbursement of an Eligible Person's "Part B Premium" under Medicare.

(v) A "Direct Cost Program" is a medical benefit arrangement that is either fully self-insured by the Retirement System and/or the City or partially self-insured by the Retirement System and/or the City with individual and/or aggregate stop loss insurance coverage.

(c) Subject to the terms and limitations of this Section and Sections 203-43 and 203-44, the Retirement System shall provide the Qualified Medical Benefits of each Eligible Person as follows:

(i) If the Qualified Coverage of the Eligible Person is under a Premium Payment Program, the Retirement System shall provide the Qualified Medical Benefits solely by paying the relevant Base Rate monthly premium for the Qualified Coverage (in excess of the required retiree contributions) to the provider of the Qualified Coverage.

(ii) If the Qualified Coverage of the Eligible Person is under a Direct Cost Program, the Retirement System shall provide the Qualified Medical Benefits by paying for the cost of such benefits from the fund of the Retirement System, either directly to the health care provider or through a provider of administrative services.

No member or Eligible Person has an individual interest in the qualified Medical Benefits Account and, therefore, there are no individual interests that may be forfeited and applied to reduce City employer contributions.

(d) Monthly contributions required of an Eligible Person under a "Premium Payment Program" may be paid by the Eligible Person directly to the insurance company, health maintenance organization or other provider of the Qualified Medical Benefits; provided that the Board may instead direct that such contributions be paid directly to the Retirement System (or deducted from the payment of a service retirement allowance or other benefit payable to the Eligible Person under the Retirement System) and credited to the Qualified Medical Benefits Account provided for in this Section. A monthly contribution required of an Eligible Person under a Direct Cost Program shall be paid to the Retirement System (or deducted from the payment of a service retirement allowance or other benefit payable to the Eligible Person under the Retirement System) and credited to the Qualified Medical Benefits Account provided for in this Section.

(e) No member, retired member, Eligible Person or other person shall have any individual right or interest in the assets of the Qualified Medical Benefits Account, and such persons shall be entitled to Qualified Medical Benefits only to the extent provided by the terms and conditions of this Section, Sections 203-43 and 203-44, and the medical benefit program by which such person is covered. Payments by the Retirement System of premiums under Premium Payment Programs and costs under Direct Cost Programs (all such payments being hereinafter referred to as "Qualified Medical Benefits Payments") shall be subject in all respects to the following terms and restrictions:

(i) All Qualified Medical Benefits Payments shall be made exclusively from the balance credited to the Qualified Medical Benefits Account. If the balance credited to the Qualified Medical Benefits Account is inadequate at any time to provide all of the Qualified Medical Benefits Payments due and payable, the Board shall pay, on such equitable and non-discriminatory basis as the Board shall determine in its sole discretion, such portion of the Qualified Medical Benefits payments as may be provided from the available balance of the Qualified Medical Benefits Account.

(ii) The Retirement System shall pay or otherwise provide Qualified Medical Benefits Payments only to the extent that such payment or provision is neither prohibited by, nor otherwise in violation of, law (including, without limitation, the requirements of Sections 401(a) and 401(h) of the IRC which are applicable to the Federal tax qualification of the Retirement System).

(iii) The Qualified Medical Benefits provided under the medical benefit programs are subject to reduction, increase, modification or elimination in whole or in part by amendment of such programs by any insurance company, health maintenance organization or other provider of benefits. Such Qualified Medical

Benefits and the level of Qualified Medical Benefits payments payable by the Retirement System are also subject to reduction, increase, modification or elimination by the City. In the event of elimination of all Qualified Medical Benefits, the balance credited to the Qualified Medical Benefits Account on the date thereof shall be applied, to the extent sufficient, to provide all premiums due to such date under premium payment programs and any Qualified Medical Benefits payable under direct cost programs for which Eligible Persons (and their eligible dependents) have incurred expenses prior to such date, subject nevertheless to the terms of clauses (i) and (ii) above.

(iv) An Eligible Person (and his or her eligible dependents) shall cease to have Qualified Medical Benefits and Qualified Coverage at the start of any period for which he or she fails to make the contributions required for such coverage. All required contributions are subject to increase (or reduction) at any time by action of the City.

(Ordained by Ord. No. 144-2001, eff. May 9, 2001; Emer. Ord. No. 0020-2007, § 3, eff. Jan. 1, 2007; a. Ord. No. 085-2011, § 3, eff. April 16, 2011)

Sec. 203-122. Establishment of 115 Trust for Funding of Healthcare Benefits.

The Board and the City shall establish a separate trust, pursuant to IRC Section 115, for the purpose of funding healthcare benefits provided under this Chapter. The Board and the City shall adopt a trust agreement establishing the applicable terms for the 115 Trust. Except as provided by the Collaborative Settlement Agreement, healthcare benefits provided by this Chapter are subject to reduction, increase, modification or elimination by the City.

(Ordained by Ord. No. 336-2016, § 2, eff. Nov. 26, 2016)

Sec. 203-123. IRC Section 415 Limitations on Benefits.

(a) Notwithstanding any other provisions of the retirement system to the contrary, the member contributions paid to and retirement benefits paid from the plan shall be limited to such extent as may be necessary to conform to the requirements of IRC Section 415 for a qualified governmental pension plan.

(b) *Participation in Other Qualified Plans: Aggregation of Limits.*

(i) The 415(b) limit with respect to any member who at any time has been a member in any other defined benefit plan as defined in IRC Section 414(j) maintained by the member's employer in this plan shall apply as if the total benefits payable under all such defined benefit plans in which the member has been a member were payable from one (1) plan.

(ii) The 415(c) limit with respect to any member who at any time has been a member in any other defined contribution plan as defined in IRC Section 414(i) maintained by the member's employer in this plan shall apply as if the total annual additions under all such defined contribution plans in which the member has been a member were payable from one (1) plan.

(c) *Basic 415(b) Limitation.*

(i) Before January 1, 1995, a member may not receive an annual benefit that exceeds the limits specified in IRC Section 415(b), subject to the applicable adjustments in that sec-

tion. On and after January 1, 1995, a member may not receive an annual benefit that exceeds the dollar amount specified in IRC Section 415(b)(1)(A), subject to the applicable adjustments in IRC Section 415(b) and subject to any additional limits that may be specified in the retirement system. In no event shall a member's benefit payable under the plan in any limitation year be greater than the limit applicable at the annuity starting date, as increased in subsequent years pursuant to IRC Section 415(d) and the regulations thereunder.

(ii) For purposes of IRC Section 415(b), the "annual benefit" means a benefit payable annually in the form of a straight life annuity (with no ancillary benefits) without regard to the benefit attributable to after-tax employee contributions (except pursuant to IRC Section 415(n)) and to rollover contributions (as defined in IRC Section 415(b)(2)(A)). The "benefit attributable" shall be determined in accordance with Treasury Regulations.

(d) *Adjustments to Basic 415(b) Limitation for Form of Benefit.* If the benefit under the plan is other than the form specified in subsection (c)(2), then the benefit shall be adjusted so that it is the equivalent of the annual benefit, using factors prescribed in Treasury Regulations.

(i) If the form of benefit without regard to the automatic benefit increase feature is not a straight life annuity or a qualified joint and survivor annuity, then the preceding sentence is applied by either reducing the IRC Section 415(b) limit applicable at the annuity starting date or adjusting the form of benefit to an actuarially equivalent amount [determined using the assumptions specified in Treasury Regulation section 1.415(b)-1(c)(2)(ii)] that takes into account the additional benefits under the form of benefit as follows:

(ii) For a benefit paid in a form to which IRC Section 417(e)(3) does not apply [a monthly benefit], the actuarially equivalent straight life annuity benefit that is the greater of (or the reduced Limit applicable at the annuity starting date which is the "lesser of" when adjusted in accordance with the following assumptions):

(A) The annual amount of the straight life annuity (if any) payable to the member under the plan commencing at the same annuity starting date as the form of benefit to the member, or

(B) The annual amount of the straight life annuity commencing at the same annuity starting date that has the same actuarial present value as the form of benefit payable to the member, computed using a 5% interest assumption (or the applicable statutory interest assumption) and (i) for years prior to January 1, 2009, the applicable mortality tables described in Treasury Regulation section 1.417(e)-1(d)(2) (Revenue Ruling 2001-62 or any subsequent Revenue Ruling modifying the applicable provisions of Revenue Ruling 2001-62), and (ii) for years after December 31, 2008, the applicable mortality tables described in IRC Section 417(e)(3)(B) (Notice 2008-85 or any subsequent Internal Revenue Service guidance implementing IRC Section 417(e)(3)(B)); or

(iii) For a benefit paid in a form to which IRC Section 417(e)(3) applies [a lump sum benefit], the actuarially equivalent straight life annuity benefit that is the greatest of (or the reduced section 415(b) of the Internal Revenue Code limit applicable at the annuity starting date which is the "least of" when adjusted in accordance with the following assumptions:

(A) The annual amount of the straight life annuity commencing at the annuity starting date that has the same actuarial present value as the particular form of benefit payable, computed using the interest rate and mortality table, or tabular factor, specified in the plan for actuarial experience;

(B) The annual amount of the straight life annuity commencing at the annuity starting date that has the same actuarial present value as the particular form of benefit payable, computed using a 5.5 percent interest assumption (or the applicable statutory interest assumption) and (i) for years prior to January 1, 2009, the applicable mortality table for the distribution under Treasury Regulation section 1.417(e)-1(d)(2) (the mortality table specified in Revenue Ruling 2001-62 or any subsequent Revenue Ruling modifying the applicable provisions of Revenue Ruling 2001-62), and (ii) for years after December 31, 2008, the applicable mortality tables described in IRC Section 417(e)(3)(B) (Notice 2008-85 or any subsequent IRS guidance implementing IRC Section 417(e)(3)(B)); or

(C) The annual amount of the straight life annuity commencing at the annuity starting date that has the same actuarial present value as the particular form of benefit payable (computed using the applicable interest rate for the distribution under Treasury Regulation section 1.417(e)-1(d)(3) (the 30-year Treasury rate (prior to January 1 2007, using the rate in effect for the month prior to retirement, and on and after January 1, 2007, using the rate the in effect for the first day of the plan year with a one-year stabilization period)) and (i) for years prior to January 1, 2009, the applicable mortality rate for the distribution under Treasury Regulation section 1.417(e)-1(d)(2) (the mortality table specified in Revenue Ruling 2001-62 or any subsequent Revenue Ruling modifying the applicable provisions of Revenue Ruling 2001-62), and (ii) for years after December 31, 2008, the applicable mortality tables described in IRC Section 417(e)(3)(B) (Notice 2008-85 or any subsequent IRS guidance implementing IRC Section 417(e)(3)(B)), divided by 1.05.

(e) *Benefits Not Taken into Account for 415(b) Limitation.* For purposes of this section, the following benefits shall not be taken into account in applying these limits:

(i) Any ancillary benefit which is not directly related to retirement income benefits;

(ii) That portion of any joint and survivor annuity that constitutes a qualified joint and survivor annuity;

(iii) Any other benefit not required under IRC Section 415(b)(2) and Treasury Regulations thereunder to be taken into account for purposes of the limitation of IRC Section 415(b)(1).

(f) *Other Adjustments in 415(b) Limitation.*

(i) In the event the member's retirement benefits become payable before age sixty-two (62), the limit prescribed by this section shall be reduced in accordance with Treasury Regulations pursuant to the provisions of IRC Section 415(b), so that such limit (as so reduced) equals an annual straight life benefit (when such retirement income benefit begins) which is equivalent to a one hundred sixty thousand dollar ($160,000) (as adjusted) annual benefit beginning at age sixty-two (62).

(ii) The reductions provided for in (1) above shall not be applicable to pre-retirement disability benefits or pre-retirement death benefits.

(g) *Less than Ten (10) Years of Service Adjustment for 415(b) Limitations.* The maximum retirement benefits payable to any member who has completed less than ten (10) years of service shall be the amount determined under subsection (c) multiplied by a fraction, the numerator of which is the number of the member's years of service and the denominator of which is ten (10). The reduction provided by this subsection cannot reduce the maximum benefit below 10%. The reduction provided for in this subsection shall not be applicable to pre-retirement disability benefits or pre-retirement death benefits.

(h) *Ten Thousand Dollar ($10,000) Limit.* Notwithstanding the foregoing, the retirement benefit payable with respect to a member shall be deemed not to exceed the 415 limit if the benefits payable, with respect to such member under this plan and under all other qualified defined benefit pension plans to which the member's employer contributes, do not exceed ten thousand dollars ($10,000) for the applicable limitation year and for any prior limitation year and the employer has not any time maintained a qualified defined contribution plan in which the member participated.

(i) *Effect of COLA without a Lump Sum Component on 415(b) Testing.* Effective on and after January 1, 2009, for purposes of applying the limits under IRC Section 415(b) (the "Limit") to a member with no lump sum benefit, the following will apply:

(i) a member's applicable Limit will be applied to the member's annual benefit in the member's first limitation year without regard to any cost of living adjustments under the retirement system;

(ii) to the extent that the member's annual benefit equals or exceeds the Limit, the member will no longer be eligible for cost of living increases until such time as the benefit plus the accumulated increases are less than the Limit; and

(iii) thereafter, in any subsequent limitation year, a member's annual benefit, including any cost of living increases under the retirement system, shall be tested under the then applicable benefit Limit including any adjustment to the IRC Section 415(b)(1)(A) dollar limit under IRC Section 415(d), and the regulations thereunder.

(j) *Effect of COLA with a Lump Sum Component on 415(b) Testing.* On and after January 1, 2009, with respect to a member who receives a portion of the member's annual benefit in a lump sum, a member's applicable Limit will be applied taking into

consideration cost of living increases as required by IRC Section 415(b) and applicable Treasury Regulations.

(k) *Section 415(c) limitations on contributions and other additions.* After-tax member contributions or other annual additions with respect to a member may not exceed the lesser of $40,000 (as adjusted pursuant to IRC Section 415(d)) or 100% of the member's compensation.

(i) Annual additions are defined to mean the sum (for any year) of employer contributions to a defined contribution plan, member contributions, and forfeitures credited to a member's individual account. Member contributions are determined without regard to rollover contributions and to picked-up employee contributions that are paid to a defined benefit plan.

(ii) For purposes of applying IRC Section 415(c) and for no other purpose, the definition of compensation where applicable will be compensation actually paid or made available during a limitation year, except as noted below and as permitted by Treasury Regulation section 1.415(c)-2, or successor regulation; provided, however, that member contributions picked up under IRC Section 414(h) shall not be treated as compensation.

(iii) Compensation will be defined as wages within the meaning of IRC Section 3401(a) and all other payments of compensation to an employee by an employer for which the employer is required to furnish the employee a written statement under IRC Sections 6041(d), 6051(a)(3) and 6052 and will be determined without regard to any rules under IRC Section 3401(a) that limit the remuneration included in wages based on the nature or location of the employment or the services performed (such as the exception for agricultural labor in IRC Section 3401(a)(2)).

(A) However, for limitation years beginning after December 31, 1997, compensation will also include amounts that would otherwise be included in compensation but for an election under IRC Sections 125(a), 402(e)(3), 402(h)(1)(B), 402(k), or 457(b). For limitation years beginning after December 31, 2000, compensation shall also include any elective amounts that are not includible in the gross income of the member by reason of IRC Section 132(f)(4).

(B) For limitation years beginning on and after January 1, 2009, compensation for the limitation year shall also include compensation paid by the later of 2½ months after a member's severance from employment or the end of the limitation year that includes the date of the member's severance from employment if:

(I) the payment is regular compensation for services during the member's regular working hours, or compensation for services outside the member's regular working hours (such as overtime or shift differential), commissions, bonuses or other similar payments, and, absent a severance from employment, the payments would have been paid to the member while the member continued in employment with the employer; or

(II) the payment is for unused accrued bona fide sick, vacation or other leave that the member would have been able to use if employment had continued; or

(III) payments pursuant to a nonqualified unfunded deferred compensation plan, but only if the payments would have been paid to the member at the same time if the member had continued employment with the employer and only to the extent that the payment is includible in the member's gross income.

Any payments not described in paragraph (B) above are not considered compensation if paid after severance from employment, even if they are paid within 2½ months following severance from employment, except for payments to the individual who does not currently perform services for the employer by reason of qualified military service (within the meaning of IRC Section 414(u)(1)) to the extent these payments do not exceed the amounts the individual would have received if the individual had continued to perform services for the employer rather than entering qualified military service.

An employee who is in qualified military service (within the meaning of IRC Section 414(u)(1)) shall be treated as receiving compensation from the employer during such period of qualified military service equal to (i) the compensation the employee would have received during such period if the employee were not in qualified military service, determined based on the rate of pay the employee would have received from the employer but for the absence during the period of qualified military service, or (ii) if the compensation the employee would have received during such period was not reasonably certain, the employee's average compensation from the employer during the twelve month period immediately preceding the qualified military service (or, if shorter, the period of employment immediately preceding the qualified military service).

(C) Back pay, within the meaning of Treasury Regulation section 1.415(c)-2(g)(8), shall be treated as compensation for the limitation year to which the back pay relates to the extent the back pay represents wages and compensation that would otherwise be included under this definition.

(iv) For limitation years beginning on or after January 1, 2009, a member's compensation for purposes of subsection (k) shall not exceed the annual limit under IRC Section 401(a)(17).

(l) *Service Purchases under Section 415(n).* Effective for permissive service credit contributions made in limitation years beginning after December 31, 1997, if a member makes one or more contributions to purchase permissive service credit under the plan, then the requirements of IRC Section 415(n) will be treated as met only if:

(i) the requirements of IRC Section 415(b) are met, determined by treating the accrued benefit derived from all such

contributions as an annual benefit for purposes of IRC Section 415(b), or

(ii) the requirements of IRC Section 415(c) are met, determined by treating all such contributions as annual additions for purposes of IRC Section 415(c).

(iii) For purposes of applying this section, the system will not fail to meet the reduced limit under IRC Section 415(b)(2)(C) solely by reason of this subparagraph and will not fail to meet the percentage limitation under IRC Section 415(c)(1)(B) solely by reason of this section.

(iv) For purposes of this section the term "permissive service credit" means service credit—

(A) recognized by the system for purposes of calculating a member's benefit under the system,

(B) which such member has not received under the system, and

(C) which such member may receive only by making a voluntary additional contribution, in an amount determined under the system, which does not exceed the amount necessary to fund the benefit attributable to such service credit.

Effective for permissive service credit contributions made in limitation years beginning after December 31, 1997, such term may include service credit for periods for which there is no performance of service, and, notwithstanding clause (B), may include service credited in order to provide an increased benefit for service credit which a member is receiving under the system.

(v) The system will fail to meet the requirements of this section if—

(A) more than five years of nonqualified service credit are taken into account for purposes of this subparagraph, or

(B) any nonqualified service credit is taken into account under this paragraph before the member has at least five years of participation under the system.

(vi) For purposes of paragraph (5), effective for permissive service credit contributions made in limitation years beginning after December 31, 1997, the term "nonqualified service credit" means permissive service credit other than that allowed with respect to—

(A) service (including parental, medical, sabbatical, and similar leave) as an employee of the Government of the United States, any State or political subdivision thereof, or any agency or instrumentality of any of the foregoing (other than military service or service for credit which was obtained as a result of a repayment described in IRC Section 415(k)(3)),

(B) service (including parental, medical, sabbatical, and similar leave) as an employee (other than as an employee described in clause (A)) of an education organization described in IRC Section 170(b)(1)(A)(ii) which is a public, private, or sectarian school which provides elementary or secondary education (through grade 12), or a comparable level of education, as determined under the applicable law of the jurisdiction in which the service was performed,

(C) service as an employee of an association of employees who are described in clause (A), or

(D) military service (other than qualified military service under IRC Section 414(u)) recognized by the system.

In the case of service described in clause (A), (B), or (C), such service will be nonqualified service if recognition of such service would cause a member to receive a retirement benefit for the same service under more than one plan.

(vii) In the case of a trustee-to-trustee transfer after December 31, 2001, to which IRC Section 403(b)(13)(A) or IRC Section 457(e)(17)(A) applies (without regard to whether the transfer is made between plans maintained by the same employer)—

(A) the limitations of paragraph (5) will not apply in determining whether the transfer is for the purchase of permissive service credit, and

(B) the distribution rules applicable under federal law to the system will apply to such amounts and any benefits attributable to such amounts.

(viii) For an eligible member, the limitation of IRC Section 415(c)(1) shall not be applied to reduce the amount of permissive service credit which may be purchased to an amount less than the amount which was allowed to be purchased under the terms of a Plan as in effect on August 5, 1997. For purposes of this paragraph an eligible member is an individual who first became a member in the system before January 1, 1998.

(m) *Modification of Contributions for 415(c) and 415(n) Purposes.* Notwithstanding any other provision of law to the contrary, the system may modify a request by a member to make a contribution to the system if the amount of the contribution would exceed the limits provided in IRC Section 415 by using the following methods:

(i) If the law requires a lump sum payment for the purchase of service credit, the system may establish a periodic payment plan for the member to avoid a contribution in excess of the limits under IRC Section 415(c) or 415(n).

(ii) If payment pursuant to subparagraph (1) will not avoid a contribution in excess of the limits imposed by IRC Section 415(c) or 415(n), the system may either reduce the member's contribution to an amount within the limits of those sections or refuse the member's contribution.

(n) *Repayments of Cashouts.* Any repayment of contributions (including interest thereon) to the plan with respect to an amount previously refunded upon a forfeiture of service credit under the plan or another governmental plan maintained by the retirement system shall not be taken into account for purposes of IRC Section 415, in accordance with applicable Treasury Regulations.

(o) *Reduction of Benefits Priority.* Reduction of benefits and/or contributions to all plans, where required, shall be accomplished by first reducing the member's benefit under any defined benefit plans in which the member participated, such reduction to be made first with respect to the plan in which the member most recently accrued benefits and thereafter in such priority as shall be determined by the plan and the plan administrator of such other plans, and next, by reducing or allocating excess forfeitures for defined contribution plans in which the

member participated, such reduction to be made first with respect to the plan in which the member most recently accrued benefits and thereafter in such priority as shall be established by the plan and the plan administrator for such other plans provided, however, that necessary reductions may be made in a different manner and priority pursuant to the agreement of the plan and the plan administrator of all other plans covering such member.
(Ordained by Ord. No. 264-2000, eff. June 28, 2000; Emer. Ord. No. 291-2009, § 8, eff. Oct. 28, 2009)

Sec. 203-125. Total Retirement Benefits Arrangement.

(a) As used in this section:

(i) "Total benefits" shall mean the total Service Retirement Allowance or disability retirement allowance benefit that is payable to a Restricted Retired Member in accordance with the provisions of this section.

(ii) "Restricted Retired Member" shall mean a retired Member whose Service Retirement Allowance or disability retirement allowance must be limited to comply with the requirements of IRC Section 415, as provided in Section 203-123.

(b) This section establishes the City of Cincinnati Total Retirement Benefits Arrangement (referred to herein as the "Arrangement"). The Arrangement is intended to be an arrangement described in IRC Section 415(m)(3). The sole purpose of the Arrangement is to provide total benefits to Restricted Retired Members under an arrangement that meets the requirements of IRC Section 415(m)(3).

(c) The Board shall administer the Arrangement. The Board may utilize its employees and property and the employees of and property of the City in the administration of the Arrangement, without charge to the funds of the Arrangement. The Board shall have all of the powers that are granted to the Board under Chapter 203 and other pertinent provisions of the Cincinnati Municipal Code.

(d) Total benefits shall be payable to a Restricted Retired Member for the calendar year in which this Arrangement is adopted and for each subsequent calendar year. Payments of total benefits shall be made at times determined by the Board; provided, however, that all total benefit payments attributable to any calendar year shall be paid by not later than the end of the such calendar year.

The amount of a Restricted Retired Member's total benefits that are payable for a calendar year shall be equal to the difference between (i) the Service Retirement Allowance or disability retirement allowance of the Restricted Retired Member that would be payable under the Retirement System during such calendar year, without considering the application of IRC Section 415, as provided in Section 203-123, and (ii) the Service Retirement Allowance or disability retirement allowance of the Restricted Retired Member that is actually payable to the Restricted Retired Member during such calendar year after it has been reduced to comply with the requirements of IRC Section 415, as provided in Section 203-123.

(e) The City shall provide funds to the Board to the extent required to provide for the payment of the total benefits under the Arrangement. The Board shall hold all such contributions from the City in a trust known as the total benefits arrangement trust fund. The total benefit arrangement trust fund is separate from the trust fund otherwise maintained by the Board for the Retirement System. The total benefits arrangement trust fund shall be a grantor trust of which the

City is grantor. The sole source of funding for payments of total benefits shall be the assets of the total benefits arrangement trust fund. No other funds held by the Board shall be used for such purposes. Funds held in total benefits arrangement trust fund must be used solely for purposes of paying total benefits under the Arrangement; provided, however, that any such funds held in such trust shall continue to be subject to the claims of the general creditors of the City.

Assets held in the total benefits arrangement trust fund shall be held, managed, and invested by the Board in accordance with the provisions of Sections 203-65 and 203-66.

The City shall provide funds to the Board for the purpose of funding the Arrangement in such amounts as the City shall, in its sole discretion, from time to time deem appropriate; provided, however, that at the beginning of each calendar year, the Board shall estimate the total amount of total benefits to be paid during the calendar year, the amount of funds held in the total benefits arrangement trust fund that can be used for purposes of paying total benefits, and advise the City of its estimate of any additional City contributions which will be required to provide for the payment of total benefits during such calendar year. From time to time during each calendar year, the Board may revise its estimate and notify the City of its revisions thereto.
(Ordained by Ord. No. 264-2000, eff. June 28, 2000; a. Ord. No. 084-2011, § 16, eff. April 16, 2011; a. Ord. No. 336-2016, § 1, eff. Nov. 26, 2016)

Sec. 203-127. Actuarial Assumptions.

Except as otherwise provided under the terms of this Section or the terms of the Retirement System, for purposes of making a determination of actuarial equivalence during a particular calendar year, such determination shall be made using the applicable interest rate and mortality table specified in Section 417(e)(3)(A) of the Code for the month of October preceding such calendar year. For purposes of determining amounts payable under optional forms of payment described in Section 203-63, the amounts payable to the retired Member and Optionee or Pensioner shall be determined in accordance with actuarial tables selected by the Board; provided, however, that the amounts payable to an Optionee, Pensioner or Beneficiary shall nevertheless be subject to restriction, as the Board deems necessary to comply with the requirements of IRC Section 401(a)(9). The foregoing provisions shall not apply for purposes of determining funding requirements of the Retirement System and related employer contribution requirements.
(Ordained by Ord. No. 264-2000, eff. June 28, 2000; a. Ord. No. 336-2016, § 1, eff. Nov. 26, 2016)

Sec. 203-129. IRC Termination Requirements.

A member will be fully vested in a retirement benefit upon attainment of the retirement system's age and service requirements for a normal retirement benefit. In the event of a termination of the retirement system or the complete discontinuance of contributions to the retirement system, each member shall have a vested right to a service retirement allowance, to the extent that the funds of the retirement system are available to provide for such service retirement allowances. The foregoing provisions of this section are intended to comply with the requirements of Section 401(a)(7) of the IRC, as in effect on September 1, 1974, and shall be construed and administered accordingly. In addition, the foregoing provisions of this section are intended to supplement any right to benefits that a member otherwise

may have under applicable law. Accordingly, no member shall have a vested or otherwise nonforfeitable right to a service retirement allowance that is less than the member otherwise is entitled to under applicable law.
(Ordained by Ord. No. 264-2000, eff. June 28, 2000; Emer. Ord. No. 291-2009, § 9, eff. Oct. 28, 2009; a. Ord. No. 084-2011, § 17, eff. April 16, 2011)

Sec. 203-131. IRC Tax-Qualification.

The retirement system (other than the provisions of Section 203-125) is intended to constitute a qualified defined benefit plan under Sections 401(a) and 414(d) of the IRC or such other provision of the IRC as applicable and applicable Treasury regulations and other guidance. The board shall administer and construe the terms of the retirement system accordingly.
(Ordained by Ord. No. 264-2000, eff. June 28, 2000; Emer. Ord. No. 291-2009, § 10, eff. Oct. 28, 2009)

Sec. 203-133. Retirement System Administration.

The board shall exercise all authority for the administration and operation of the retirement system except to the extent any such authority is delegated to others as provided herein. Specifically, but without limiting the general scope of its authority, the board may establish rules and procedures for the administration of the retirement system (including, without limitation, forms and procedures for applying for benefits and electing forms of payment). The board shall have the right to construe and interpret the terms of the retirement system (including any such terms as are unclear or ambiguous), and to resolve any questions or disputes arising in the administration and operation of the retirement system. The board shall exercise its authority to construe and interpret the terms of the retirement system, and to resolve questions and disputes, so as to preserve the status of the retirement system as a qualified plan under Section 401(a) of the IRC. The board is empowered to direct the payment of the expenses of administering the retirement system from the assets of the trust fund, subject to the provisions of Sections 203-65 and 203-66, and other applicable law.
(Ordained by Ord. No. 264-2000, eff. June 28, 2000)

Sec. 203-135. Effect of Forfeiture of Benefits.

In conformity with Section 401(a)(8) of the Internal Revenue Code, any forfeitures of benefits by members or former members of the retirement system will not be used to increase the benefits of any member. However, such forfeitures may be used to reduce employer contributions.
(Ordained by Emer. Ord. No. 291-2009, § 3, eff. Oct. 28, 2009)

Sec. 203-137. Employment of Retirant.

(a) For the purposes of this Section, the words and phrases defined in the subsections below shall have the meanings therein respectively ascribed to them, without limiting the generalities of the words, unless a different meaning is clearly indicated by the context.

i. "Re-employment Qualification Period" shall mean a period of three hundred sixty-five (365) consecutive days during which a person who was formerly employed by the City of Cincinnati has received a Service Retirement Allowance under this Chapter. The following shall be excluded from the calculation of the Re-employment Qualification Period:

A. Time during which a person performs services under the direc-

tion of any agent or Employee of the City of Cincinnati or any of its independent boards, commissions or any other employing agency that participates in the Retirement System through a temporary help service or another independent contractor;

B. Time during which a person performs services on a contractual basis for the City of Cincinnati or any of its independent boards, commissions or any other employing agency that participates in the Retirement System; and

C. Time during which a person performs services pursuant to a personal service contract with the City of Cincinnati or any of its independent boards, commissions or any other employing agencies that participate in the Retirement System.

ii. "Re-employment" or "re-employed" shall mean a Retirant's position as a City Employee which occurs while the Retirant continues to receive a Service Retirement Allowance under this Chapter.

(b) A Retirant is eligible for re-employment by the City of Cincinnati as a public Employee and to become an Active Member of the Retirement System.

(c) During re-employment, the City of Cincinnati shall make payroll deductions toward a Retirant's pension contribution in accordance with Section 203-73. In addition, the City of Cincinnati shall provide an Employer contribution to the Retirement System in accordance with Section 203-83 for each Retirant.

(d) A Retirant who is re-employed by the City is a Member of the Retirement System with all the rights, privileges, and obligations of Membership except as provided in this section. A Retirant may, if eligible, receive healthcare benefits provided by the City of Cincinnati to Employees during any period of re-employment. A Retirant who is re-employed is not entitled to the following benefits:

i. Survivor benefits provided pursuant to Section 203-49;

ii. Disability benefits provided pursuant to Section 203-41 or Section 203-55; or

iii. Any healthcare benefits provided under Sections 203-42, 203-43 or 203-44 during any period of re-employment.

(e) Any period of re-employment shall not constitute Creditable Service pursuant to Sections 203-42 or 203-43. A re-employed Retirant who is subject to Section 203-44 may not combine any Creditable Service earned prior to the Retirant's re-employment with any period of re-employment to qualify for or to calculate benefits under Section 203-44.

(f) A Retirant who is re-employed by the City of Cincinnati may become eligible, in accordance with Section 203-33(a)(v), to receive an additional Service Retirement Allowance. Any additional Service Retirement Allowance is a retirement allowance separate from and in addition to the Service Retirement Allowance a Retirant is currently receiving during any period of re-employment. A Retirant's prior employment shall not be included in the calculation of the Retirant's additional Service Retirement Allowance. Re-employment shall not alter the calculation of the Service Retirement Allowance a Retirant is currently receiving.

(g) The Board may adopt rules to carry out this section.
(Ordained by Emer. Ord. No. 083-2013, § 2, eff. April 10, 2013; a. Ord. No. 336-2016, § 1, eff. Nov. 26, 2016)

Sec. 203-999. Penalty for Fraudulent Practice.

No person shall, with intent to deceive, make any statement or reports required under the sections of this chapter which are untrue, nor shall any person falsify or permit to be falsified any record or records of the retirement system.

Whoever violates any provision of this section shall be fined not more than $100 or imprisoned not more than three months, or both.
(C.O. 203-60; renumbered to C.M.C. 203-999, eff. Jan. 1, 1972; a. Ord. No. 545-1983, eff. Dec. 23, 1983)

Chapter 204

GENERAL HOSPITAL

Sec. 204-1. Transfer of (Control and Direction of) General Hospital to the University of Cincinnati.
Sec. 204-3. Transfer of Control and Lease of Real Property.
Sec. 204-5. Transfer of Control of General Hospital Assets.
Sec. 204-7. Hamilton County Participation.
Sec. 204-9. Revenue.
Sec. 204-11. Responsibility of the Trustee.
Sec. 204-13. Financial Statement.
Sec. 204-15. Admission Policy.
Sec. 204-17. Indemnification and Protection.
Sec. 204-19. Termination.

Sec. 204-1. Transfer of (Control and Direction of) General Hospital to the University of Cincinnati.

Pursuant to Article VI, Sections 3 and 7(d) of the charter, control and direction of the administrative and executive work of the General Hospital, which was transferred by Ordinance No. 107-1961, from the city manager to the board of directors of the University of Cincinnati shall be transferred to the board of trustees of the University of Cincinnati hereinafter referred to as the "trustees", subject to the terms and conditions of this chapter. The trustees are authorized to exercise, with respect to the operation of General Hospital, the same powers and authority and to fulfill the duties which the trustees exercise or fulfill with respect to other functions of the university; subject, however, to such restrictions and limitations as are contained in this chapter. The city manager is authorized to enter into a lease of the real property occupied by Cincinnati General Hospital, to the board of trustees of the University of Cincinnati, a state university. The trustees shall indicate their agreement to the terms and conditions of this chapter by appropriate resolution, after which time this chapter shall be the "operating agreement".

(C.M.C. 204-1; ordained by Ord. No. 273-1978, eff. July 3, 1978)

Analogous to Sec. 705-1; ordained by Ord. No. 107-1961, eff. Jan. 1, 1962; a. Ord. No. 378-1966, eff. Jan. 1, 1967; reordained as C.M.C. 705-1, eff. Jan. 1, 1972; a. Ord. No. 10-1973, eff. Jan. 17, 1973; r. Ord. No. 273-1978, eff July 3, 1978.

Sec. 204-3. Transfer of Control and Lease of Real Property.

The real property more commonly referred to as Cincinnati General Hospital, as described in a lease dated August 1, 1978, between the city of Cincinnati and the trustees hereby is transferred from the control of the city manager to the trustees subject to the terms of this chapter and of said lease. Title to the real property shall remain in the city of Cincinnati.

(C.M.C. 204-3; ordained by Ord. No. 273-1978, eff. July 3, 1978)

Analogous to Sec. 705-1; ordained by Ord. No. 107-1961, eff. Jan. 1, 1962; a. Ord. No. 378-1966, eff. Jan. 1, 1967; reordained as C.M.C. 705-1, eff. Jan. 1, 1972; a. Ord. No. 10-1973, eff. Jan. 17, 1973; r. Ord. No. 273-1978, eff. July 3, 1978.

Sec. 204-5. Transfer of Control of General Hospital Assets.

Subject to the terms of this chapter all of the General Hospital assets are transferred from the control of the city manager to the trustees. The term "General Hospital assets" as used herein shall include all assets and property of every kind and description including but not limited to all vehicles and equipment located in the General Hospital buildings, and all cash inventory accounts receivable, bond funds and rights under contracts held by or for the use or benefit of the General Hospital or in connection with the conduct of the hospital.

(C.M.C. 204-5; ordained by Ord. No. 273-1978, eff. July 3, 1978)

Analogous to Sec. 705-1; ordained by Ord. No. 107-1961, eff. Jan. 1, 1962; a. Ord. No. 378-1966, eff. Jan. 1, 1967; reordained as C.M.C. 75-1, eff. Jan. 1, 1972; a. Ord. No. 10-1973, eff. Jan. 17, 1973; r. Ord. No. 273-1978, eff. July 3, 1978.

Sec. 204-7. Hamilton County Participation.

The city of Cincinnati hereby accepts the proceeds of the existing county-wide tax levy for General Hospital purposes along with any subsequent replacement levies or funds. The trustees are authorized to accept and receive such money directly from the commissioners of Hamilton County, which moneys shall be used only for hospital purposes.

(C.M.C. 204-7; ordained by Ord. No. 273-1978, eff. July 3, 1978)

Analogous to Sec. 705-3; ordained by Ord. No. 378-1966, eff. Jan. 1, 1967; a. Ord. No. 17-1967, eff. Feb. 17, 1967;

reordained as C.M.C. 705-3, eff. Jan. 1, 1972; a. Ord. No. 10-1973, eff. Jan. 17, 1973; r. Ord. No. 273-1978, eff. July 3, 1978.

Sec. 204-9. Revenue.

Payments received for services rendered by the trustees under the terms of the operating agreement shall be used only for hospital purposes.
(C.M.C. 204-9; ordained by Ord. No. 273-1978, eff. July 3, 1978)

Analogous to Sec. 705-5; ordained by Ord. No. 107-1961, eff. Jan. 1, 1962; a. Ord. No. 378-1966, eff. Jan. 1, 1967; reordained as C.M.C. 705-5, eff. Jan. 1, 1972; a. Ord. No. 10-1973, eff. Jan. 17, 1973; r. Ord. No. 273-1978, eff. July 3, 1978.

Sec. 204-11. Responsibility of the Trustee.

The trustees are charged with evaluating the financial status of patients. The trustees shall do all things necessary, proper and desirable to secure payment from all patients and all third-party payors, including the Hamilton County Welfare Department, or any successor agency hereafter performing the poor relief functions now performed by the Hamilton County Welfare Department, for hospital services furnished at General Hospital to persons who are now or hereafter may be eligible for poor relief in the form of hospital services.
(C.M.C. 204-11; ordained by Ord. No. 273-1978, eff. July 3, 1978)

Analogous to Sec. 705-11; ordained by Ord. No. 107-1961, eff. Jan. 1, 1962; a. Ord. No. 378-1966, eff. Jan. 1, 1967; reordained as C.M.C. 705-11, eff. Jan. 1, 1972; a. Ord. No. 10-1973, eff. Jan. 17, 1973; r. Ord. No. 273-1978, eff. July 3, 1978.

Sec. 204-13. Financial Statement.

The trustees agree to submit to the council annually, financial statements covering the operation of the General Hospital for that year compared to the previous year, along with a statement of estimated operating expenses for the coming year.
(C.M.C. 204-13; ordained by Ord. No. 273-1978, eff. July 3, 1978)

Analogous to Sec. 705-13; ordained by Ord. No. 107-1961, eff. Jan. 1, 1962; a. Ord. No. 378-1966, eff. Jan. 1, 1967; reordained as C.M.C. 705-13, eff. Jan. 1, 1972; a. Ord. No. 10-1973, eff. Jan. 17, 1973; r. Ord. No. 273-1978, eff. July 3, 1978.

Sec. 204-15. Admission Policy.

The admission policy shall be established and from time to time modified by the trustees. Admission to the hospital shall be without regard to race, creed, color or national origin, and if the lessee fails faithfully and efficiently to so administer, maintain and operate the hospital facilities, the city manager may, after an opportunity of the trustees to be heard on written charges, terminate the agreement. The trustees shall provide care to all residents of Hamilton County including the indigent and medically indigent citizens thereof, to the extent that the trustees are reimbursed for the cost thereof by the proceeds of the Hamilton county tax levy then in effect. The trustees shall, in addition, provide care for those who have been incarcerated in municipal or county institutions, provided however, that the council and/or the commissioners of Hamilton County shall provide both the cost of such care and the cost of sufficient security personnel to guard such persons.

Except in emergencies, no person not a resident of Hamilton County shall be admitted to General Hospital unless payment for the service to be rendered is secured or otherwise provided for under federal or state law, or by contract with an agency of the federal government or the state of Ohio, or with one of its political subdivisions or with a non-profit hospital service corporation, or other third-party payors or the patient, or as a "study case" for the advancement of medical

knowledge. Whenever a non-resident of Hamilton county is admitted, charges for the services rendered shall be made upon such terms and conditions as may be established by the trustees.

(C.M.C. 204-15; ordained by Ord. No. 273-1978, eff. July 3, 1978)

Analogous to C.M.C. 705-17; ordained by Ord. No. 10-1973, eff. Jan. 17, 1973; r. Ord. No. 273-1978, eff. July 3, 1978; and to Adm. Code Art. V, Sec. 2; a. Ord. No. 379-1966, eff. Jan. 1, 1967; r. Ord. No. 299-1979, eff. Aug. 4, 1979; and to Adm. Code Art. V, Sec. 3; a. Ord. No. 441-1967, eff. Dec. 20, 1967; a. Ord. No. 379-1966, eff. Jan. 1, 1967; r. Ord. No. 299-1979, eff. Aug. 4, 1979.

Sec. 204-17. Indemnification and Protection.

The trustees shall protect, defend, indemnify and save the city of Cincinnati, its agents and employees, harmless from and against any and all loss, cost, expense, or damage with respect to any claim, liability, demand, controversy, action or cause of action, at law, equity, or administrative proceedings arising from any and all acts or omissions of the trustees, its agents, employees, licensees or invitees including but not limited to acts of malpractice, except to the extent that such loss, cost, expense or damage is related to any control of the premises retained by the city of Cincinnati under the terms of this agreement or the lease referred to in Section 204-3.

(C.M.C. 204-17; ordained by Ord. No. 273-1978, eff. July 3, 1978)

Sec. 204-19. Termination.

The city of Cincinnati shall have the right to review the operating agreement at such times as it deems appropriate. If, as a result of such review, the city finds that the trustees have adopted a policy or practice of denying care to the indigent and medically indigent citizens of Hamilton County in situations where the trustees would be required, pursuant to the provisions of Section 204-15 to provide such care, then the city of Cincinnati may, at its option, (1) institute appropriate legal action to compel performance of such obligation or (2) serve upon the trustees a notice of the city's intent to terminate this operating agreement. Upon receipt of such notice, the trustees may, at their option, (1) cure, to the satisfaction of the city, within 60 days from the receipt of such notice, such alleged failure or (2) submit the of the city of Cincinnati and a statement of the trustees' position to binding arbitration in accordance with the rules and procedures of the American Arbitration Association. If the finding of such arbitration proceeding is to the effect that no such practice or policy has been carried on by the trustees, this operating agreement shall continue to be in full force and effect. If the finding of such arbitration proceeding is that such a policy and procedure has been effectuated by the trustees, then this operating agreement shall terminate 60 days after notice of said finding is given to the city of Cincinnati and to the trustees unless the arbitrators make recommendations, which if mutually acceptable by the city of Cincinnati and the trustees, shall be incorporated into the agreement by amendment.

(C.M.C. 204-19; ordained by Ord. No. 273-1978, eff. July 3, 1978)

Chapter 205

TRUSTEES OF THE CINCINNATI SOUTHERN RAILWAY

Sec. 205-1. Appointment of the Trustees of the Cincinnati Southern Railway.
Sec. 205-3. Removal of Trustees.
Sec. 205-5. Compensation.
Sec. 205-7. Repealed.

Sec. 205-1. Appointment of the Trustees of the Cincinnati Southern Railway.

The mayor with the approval of the council shall appoint five persons to be members of the board of trustees of the Cincinnati Southern Railway each of whom shall be residents of the city of Cincinnati and who shall tale office on the effective date of House Bill No. 69. At the first meeting of the board, the members shall draw lots to determine which member shall initially serve for a term of five years, four years, three years, two years, and one year. Thereafter, as the term of each member expires, the mayor hall appoint with the approval of council one member to serve for a term of five years and until the successor is appointed and qualified. The mayor with approval of council shall fill all vacancies on the board for unexpired terms. The board of trustees shall be successor to the board now in existence and shall continue to have and exercise all power and authority vested in the existing board not expressly terminated by virtue of the repeal of Sections 15094, 15098, and 15129 of the General Code Appendix. At no time shall there be more than three members of the same political party serving on the board. Each trustee shall enter into bond to the city conditioned on the faithful discharge of the trustee's duties in such sum as the director of finance may direct, with one or more sufficient sureties to be approved by the director of finance. The bond so taken shall be deposited with the director of finance.

(C.M.C. 205-1; ordained by Ord. No. 290-1977, eff. July 7, 1977; a. Ord. No. 300-1979, eff. Aug. 4, 1979)

Note—The General Assembly of the state of Ohio, passed on April 4, 1977, House Bill No. 69 repealing Sections 15094, 15098 and 15129 of the General Code Appendix which sections provided for the appointment, removal, bonding, and compensation of the Trustees of the Cincinnati Southern Railway and authorizing a city that has built a railroad pursuant to the Act of May 4, 1869, to provide by legislation for the continuance of a board of trustees as a successor to the board in existence on the effective date of House Bill No. 69, July 25, 1977.

Sec. 205-3. Removal of Trustees.

In addition to any other remedy provided by law whenever the city solicitor shall have reason to believe that any one of the trustees has failed in the faithful performance of his or her trust, it shall be the solicitor's duty to apply to council by petition, praying that such trustee be removed, and another appointed in such trustee's place. If the city solicitor fails to file a petition for removal after request of any holder of the bonds issued by the trustees or by a taxpayer of the municipal corporation, such bondholder or taxpayer may file a petition with the council in the name of the bondholder on behalf of the holders of such bonds or in the name of the taxpayer on behalf of the taxpayers for like relief. Council shall hear the matter and render its decision by majority vote.

(C.M.C. 205-3; ordained by Ord. No. 290-1977, eff. July 7, 1977; a. Ord. No. 300-1979, eff. Aug. 4, 1979)

Sec. 205-5. Compensation.

The members of the board of trustees of the Cincinnati Southern Railway shall receive such compensation as may be determined by the board for performance of the duties of the office including, but not limited to, service to the board in inventorying, maintaining and protecting the trust and its assets and in the carrying out or enforcement of the rights and obligations of the lease of the Cincinnati Southern Railway made and entered into the eleventh day of October, 1881, as extended, modified and supplemented. Compensation shall be at such rates as may be fixed by the board, which for 1988 shall not exceed a maximum of $95 per hour. Thereafter, the maximum hourly rate shall be annually adjusted for changes in the consumer price index.

Provided, however, the total compensation to the trustees in any calendar year shall not exceed one-fourth the expense payment re-

ceived by the trustees pursuant to paragraph 5 of the supplementary agreement entered into as of January 1, 1987 between the trustees of the Cincinnati Southern Railway and the Cincinnati, New Orleans and Texas Pacific Railway Company.
(C.M.C. 205-5; ordained by Ord. No. 290-1977, eff. July 7, 1977; a. Ord. No. 172-1989, eff. May 3, 1989)

Sec. 205-7. Repealed.

(C.M.C. 205-7; ordained by Ord. No. 524-1987, eff. Dec. 16, 1987; r. Ord. No. 172-1989, eff. May 3, 1989)

Chapter 206

CITY RECORDS COMMISSION

Sec. 206-1. City Records Commission.
Sec. 206-3. Duties of the City Records Commission.
Sec. 206-5. Rules of the City Records Commission.
Sec. 206-7. Definition of Records.
Sec. 206-9. Definition of Record Disposal List.
Sec. 206-11. Record Disposal Lists.
Sec. 206-13. Disposal of Records.
Sec. 206-15. Disposal of Publications by Departments, Boards or Commissions.
Sec. 206-17. Preservation and Disposal of Published Material.
Sec. 206-19. Micro-Photographic Copies.
Sec. 206-21. Storage of Records.

Sec. 206-1. City Records Commission.

There shall be a city records commission consisting of the city manager or the city manager's designee as chairperson, the director of finance or the director's designee, the city solicitor or the solicitor's designee and the clerk of council or the clerk's designee.

The commission shall appoint a secretary, who may or may not be a member of the commission, and who shall serve at the pleasure of the commission. It shall be the duty of the secretary to record the official actions of the commission and send notification of the actions as required.

The commission shall meet at least once every six months and upon the call of the chairperson.
(C.M.C. 206-1; ordained by Ord. No. 12-1979, eff. Feb. 9, 1979)

Note—ORC 149.39 was declared inoperative by Ord. No. 12-1979.

Sec. 206-3. Duties of the City Records Commission.

The duties of the city records commission shall be to provide rules for retention and disposal of records of the city, to review record disposal lists submitted by city departments, boards and commissions, and to determine those records which shall not be retained by the city.
(C.M.C. 206-3; ordained by Ord. No. 12-1979, eff. Feb. 9, 1979)

Sec. 206-5. Rules of the City Records Commission.

The rules of the city records commission shall provide for disposal of records only after approval by the commission and shall prohibit the destruction of original copies of ordinances, official records recording the official acts of council or any board, commission or officer having legislative or quasi-legislative functions and documents having historical value; provided however that documents having historical value may be transferred to the Ohio Historical Society for its disposal or retention in accordance with law.

(C.M.C. 206-5; ordained by Ord. No. 12-1979, eff. Feb. 9, 1979)

Sec. 206-7. Definition of Records.

For the purpose of this section, records shall mean any document, device or item, regardless of physical form or characteristic, created or received by or coming under the jurisdiction of any department, board or commission of the city which serves to document the organization, functions, policies, decisions, procedures, operations or other activities of the city or of its departments, boards or commissions.
(C.M.C. 206-7; ordained by Ord. No. 12-1979, eff. Feb. 9, 1979)

Sec. 206-9. Definition of Record Disposal List.

For the purpose of this chapter record disposal list shall include the following defined terms:

(a) Schedule of record retention and disposal - a list of records currently being produced or still active for which continuing disposal is necessary.

(b) One-time record disposal list - a list of particular records covering specified dates which are not contained on a schedule of record retention and disposal.

(C.M.C. 206-9; ordained by Ord. No. 12-1979, eff. Feb. 9, 1979)

Sec. 206-11. Record Disposal Lists.

Record disposal lists containing sufficient information to identify the records for disposal may be submitted by any department, board or commission to the city records commission. The lists may contain records which

have been microfilmed or records which no longer have administrative, legal or fiscal value to the city or its citizens, or records which will have no value after the scheduled disposal date.
(C.M.C. 206-11; ordained by Ord. No. 12-1979, eff. Feb. 9, 1979)

Sec. 206-13. Disposal of Records.

When records contained on a schedule of record retention and disposal have been approved for disposal by the city records commission the commission shall notify the state auditor and the Ohio Historical Society of the records so approved.

If the auditor disapproves of the scheduled disposal of records and so informs the commission the schedule shall be revised in accordance with the auditor's requirements. The Ohio Historical Society shall be given 60 days from notification to select for its custody or disposal any of the records approved for scheduled disposal by the commission and the schedule shall be revised to reflect such disposition of the selected records to the Society.

Records appearing on a schedule which has been submitted to and approved by the commission, the state auditor and the Ohio Historical Society for continuing disposal may be disposed of or destroyed in accordance with the rules of the commission and the instructions on the schedule without further submission for approval.

Records appearing on a one-time disposal list may be disposed of in accordance with the rules set forth by the commission only after receiving approval of the commission, the auditor and the Ohio Historical Society.
(C.M.C. 206-13; ordained by Ord. No. 12-1979, eff. Feb. 9, 1979)

Sec. 206-15. Disposal of Publications by Departments, Boards or Commissions.

On or about the first day of June of each year the departments, divisions, boards and commissions of the city shall deliver to the municipal reference library all publications in their custody which are not required for further use by them.
(C.M.C. 206-15; ordained by Ord. No. 12-1979, eff. Feb. 9, 1979)

Sec. 206-17. Preservation and Disposal of Published Material.

All books, magazines, pamphlets, documents and other published material acquired by the municipal reference library shall be preserved in the library so long as there shall continue to be a reasonable likelihood of their further usefulness. When material retained by the library is no longer of any practical use the librarian may dispose of such publications in accordance with an approved record disposal list pursuant to the rules set forth by the commission.
(C.M.C. 206-17; ordained by Ord. No. 12-1979, eff. Feb. 9, 1979)

Sec. 206-19. Micro-Photographic Copies.

The head of any department, division, board or commission or any employee or officer of the city charged with the duty or authorized or required by law to record, preserve, keep, maintain or file any city records or to make or furnish copies of any city records may, with the approval of the city records commission, make copies of the same by micro-photographic process. The city manager shall make provisions for the preserving, safekeeping, using, examining, exhibiting, projecting, and enlarging of such micro-photographic copies.

Any record which has been microfilmed and the microphotograph certified as a correct copy by the officer charged with the preservation of such record may be included on a record disposal list and disposed of pursuant to the rules set forth by the commission.
(C.M.C. 206-19; ordained by Ord. No. 12-1979, eff. Feb. 9, 1979)

Analogous to C.O. 106-2; renumbered to C.M.C. 109-3, eff. Jan. 1, 1972; r. Ord. No. 12-1979, eff. Feb. 9, 1979.

Sec. 206-21. Storage of Records.

The city manager, upon the request of council, the independent boards or commissions, or the director of any department, shall provide space for the storage of records of the city of Cincinnati dealing with closed matters selected for retention.

(C.M.C. 206-21; ordained by Ord. No. 12-1979, eff. Feb. 9, 1979)

Analogous to C.O. 106-2; renumbered to C.M.C. 109-3, eff. Jan. 1, 1972; r. Ord. No. 12-1979, eff. Feb. 9, 1979.

Chapter 207

CINCINNATI COMMUNITY DEVELOPMENT ADVISORY BOARD

Sec. 207-1. Establishment.
Sec. 207-3. Membership.
Sec. 207-5. Composition of Board.
Sec. 207-7. Duties and Responsibilities.

Sec. 207-1. Establishment.

The Cincinnati Community Development Advisory Board shall have all the duties and responsibilities conferred by this chapter.
(C.M.C. 207-1; ordained by Ord. No. 464-1991, eff. Nov. 20, 1991; a. Ord. No. 0015-2007, § 2, eff. Feb. 18, 2007)

Sec. 207-3. Membership.

The mayor, with the advice and consent of council, shall appoint the members of the Cincinnati community development advisory board. The mayor, with the advice and consent of council shall annually designate a chairperson for the board, from the members of the board.
(C.M.C. 207-3; ordained by Ord. No. 464-1991, eff. Nov. 20, 1991)

Sec. 207-5. Composition of Board.

The Cincinnati Community Development Advisory Board shall consist of 17 voting members of whom 13 shall be of diverse community leadership/representation and four shall be city officials.

The board shall include a balanced representation from the following groups as specified below:

(a) Neighborhood residents and community council members;

(b) Institutions which lend money for housing, builders and developers of rental and nonrental housing and real estate brokers;

(c) Small business groups, neighborhood businesses, city-wide manufacturing and industrial organizations;

(d) Persons with professional knowledge of local housing needs and/or fair housing needs.

Board Entity	*# on Board (17)*
Community Council/Neighborhood Leadership	3 members
Human Services	1 member
Trades/Labor	1 member
Low Income Advocate	1 member
Housing Authority	1 member
Small Business Advocate	1 member
Real Estate Community	1 member
Developer	1 member
Lenders	1 member
Corporate Community	1 member
Community Development Corporation (CDC)	1 member
City of Cincinnati Representatives	4 members

Vacancies on the board shall be filled by appointment. Board members filling unexpired terms created by such vacancies shall serve the unexpired term of the successor member's predecessor.

Notwithstanding the above, no person who is a member of the community development advisory board when this ordinance is enacted shall lose his/her membership.

Notwithstanding the provisions contained herein, the community development advisory board may, at one time, have no more than four members who receive or who are affiliated with organizations which receive funds from the Community Development

Block Grant Program, the HOME Investment Partnerships Program, the Emergency Shelter Grant Program, Housing Opportunities for Persons with AIDS, or their successor programs. Any member who is receiving, requesting, or who is associated with an organization receiving or requesting such funding shall not participate in any community development advisory vote to provide or deny funding which may affect him personally or any organization with which he is affiliated.

For purposes of this chapter "affiliated" means employees, officers, members of the governing body and members with fiduciary responsibilities within an agency, organization or for-profit entity.

(C.M.C. 207-5; ordained by Ord. No. 464-1991, eff. Nov. 20, 1991; a. Ord. No. 1-1992, eff. Jan. 8, 1992; a. Ord. No. 275-1995, eff. Sept. 1, 1995; a. Ord. No. 293-2006, § 1, eff. Nov. 11, 2006)

Sec. 207-7. Duties and Responsibilities.

The Cincinnati Community Development Advisory Board shall advise and assist the city manager in planning the allocation of federal resources for community development, economic development, and human services in the city.

(C.M.C. 207-7; ordained by Ord. No. 464-1991, eff. Nov. 20, 1991; a. Ord. No. 275-1995, eff. Sept. 1, 1995; a. Ord. No. 0015-2007, § 4, eff. Feb. 18, 2007)

Chapter 208

BOXING AND WRESTLING COMMISSION (REPEALED)*

*__Editor's note—__Repealed by Ord. No. 359-1997, eff. Nov. 14, 1997.

Chapter 209

HOUSING ADVISORY BOARD

Sec. 209-1. Establishment.
Sec. 209-3. Membership.
Sec. 209-5. Composition of Board.
Sec. 209-7. Duties and Responsibilities.

Sec. 209-1. Establishment.

The Cincinnati Housing Advisory Board is established as a housing advisory board pursuant to Ohio Revised Code Section 176.01. The board shall have all the duties and responsibilities set forth in the Ohio Revised Code and such other duties and responsibilities as conferred by this chapter.
(Ordained by Ord. No. 0015-2007, § 1, eff. Feb. 18, 2007)

Sec. 209-3. Membership.

The mayor, with the advice and consent of council, shall appoint the members of the Cincinnati Housing Advisory Board. The mayor, with the advice and consent of council, shall annually designate a chairperson for the board, from the members of the board.
(Ordained by Ord. No. 0015-2007, § 1, eff. Feb. 18, 2007)

Sec. 209-5. Composition of Board.

The Cincinnati Housing Advisory Board shall consist of at least eleven and up to sixteen voting members, which shall be of diverse community leadership/representation.

The board shall include a balanced representation from each of the following groups located within the city as specified below and in accordance with Ohio Revised Code Section 176.01:

(a) Institutions that lend money for housing;

(b) Nonprofit builders and developers of housing;

(c) For-profit builders and developers of housing;

(d) For-profit builders and developers of rental housing;

(e) Real estate brokers licensed under Ohio Revised Code Chapter 4735;

(f) Other persons with professional knowledge regarding local housing needs and fair housing issues within the city;

(g) Residents of areas of the city served by the board that could receive housing assistance from the city;

(h) Any metropolitan housing authority operating within the city;

(i) The elected officials of the city;

(j) Such other groups or individuals that the appointing authority determines are necessary to provide balanced advice on housing plans and programs.

(Ordained by Ord. No. 0015-2007, § 1, eff. Feb. 18, 2007; a. Emer. Ord. No. 0055-2022, §§ 1, 2, eff. March 2, 2022; a. Emer. Ord. No. 339-2023, §§ 1, 2, eff. Oct. 4, 2023)

Sec. 209-7. Duties and Responsibilities.

The Cincinnati Housing Advisory Board shall perform all the duties and responsibilities of a housing advisory board as set forth in the Ohio Revised Code, including, without limitation, (i) establishing the affordable housing policy priorities of the City of Cincinnati, and (ii) to advise the city manager on the allocation of federal, state and local resources for affordable housing development, including, without limitation, the City's Affordable Housing Trust Fund and related capital improvement program project accounts.
(Ordained by Ord. No. 0015-2007, § 1, eff. Feb. 18, 2007; a. Emer. Ord. No. 021-2021, eff. April 14, 2021)

TITLE III

FINANCIAL, PERSONNEL, PROCUREMENT AND REAL PROPERTY PROCEDURES*

Chapter 301

PUBLIC MONEYS

Sec. 301-1.	Budget System Established.
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Sec. 301-5.	Depositories.
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Sec. 301-21.	Dishonored Checks.
Sec. 301-23.	Petty Cash, Change Funds and Advances.

*__Cross reference—__Employees' retirement system, ch. 203.

Sec. 301-1. Budget System Established.

A complete budget system of municipal receipts and expenditures is established in accord with Sections 115.08, 117.18, 117.19 and Sections 5705.28 to 5705.47, inclusive, of the Ohio Revised Code.
(C.O. 301-1; reordained as C.M.C. 301-1, eff. Jan. 1, 1972)

Note—A resolution adopted May 31, 1956, provides for review of budget by all committees of city council.

Sec. 301-3. Committee on Reinvestment.

The committee on reinvestment is hereby established to evaluate the lending performance of each bank, savings and loan, or other financial institution desiring to compete for depository contracts or awards or agreements for the investment of municipal funds pursuant to Section 301-11, paragraphs (f), (g) or (h). The committee shall consist of nine members all of whom shall be residents of the city. The mayor with the advice and consent of council shall appoint six members to represent the interest of Cincinnati neighborhoods, and three members from the business community with financial management expertise, who shall not be employees of banks, savings and loans, or other financial institutions competing for city deposits. The mayor with the advice and consent of council shall annually designate a member to serve as chairperson of the committee.

Each committee member shall serve a term of three (3) years, unless a shorter term is necessary to provide for staggered terms. Committee members may be appointed for shorter term periods so as to maintain a committee on which no more than one-third (⅓) of the members have terms expiring in the same year. Terms shall also be staggered such that none of the three (3) members representing the business community have terms expiring in the same year.

As the term of each member so appointed expires, the mayor with the advice and consent of council shall appoint a successor for a term of three years. All of the vacancies in the committee for unexpired terms shall be filled by the mayor with the advice and consent of council. All members shall continue to serve as committee members until their replacement is appointed and confirmed. No member may serve more than two consecutive three-year terms.

The committee's duties shall include reviewing information submitted by the competing lenders, evaluating each lender's performance in granting residential and commercial loans, and making a public record on each lender's performance to be placed in the lender's federal Community Reinvestment Act public comment file. The committee shall submit a report annually to council detailing the information submitted by each lender and recommending to council those institutions whose performance best reflects the city's goals of encouraging lending within the community.

To the extent allowed by federal and state law, any lender desiring to become or to remain a municipal depository or to receive an award or enter into an agreement pursuant to Section 301-11, paragraph (f), (g) or (h), must submit to the committee on reinvestment, on a form prescribed by it, the following information, including data on the race, sex, and statistical neighborhood area of all applicants:

(1) Residential lending information: The number of applications for home mortgage loans and home improvement loans formally submitted and considered, and the total number and dollar amount of loans made during the preceding year within Hamilton County.

(2) Commercial lending information: The number of applicants for commercial

loans formally submitted and considered, and the total number and dollar amount of loans made during the preceding year within Hamilton County.

(3) A statement by an authorized officer of the lender documenting new initiatives and investments in commercial and housing development by the lender during the preceding year.

In evaluating each lender's performance, the committee shall also consider the following criteria:

(1) The lender's current activity in low- and moderate-income neighborhoods, including location of branch offices, the availability of bank personnel to service low-income loans, and the effect of any branch office closings during the preceding year.

(2) New initiatives undertaken by the lender during the preceding year in areas such as commercial lending and low-income housing.

(3) The lender's compliance with the requirements of the Community Reinvestment Act, including its duty to educate the public regarding the CRA requirements.

The reporting requirements imposed by this section shall not apply to the deposit of funds which support the Linked Deposit Loan Program. The Director of Finance, or his designee, is authorized to establish alternative reporting requirements which demonstrate the financial institution's commitment to minority lending.
(C.O. 301-3; reordained as C.M.C. 301-3, eff. Jan. 1, 1972, r. Ord. No. 22-1983, eff. Feb. 19, 1983; ordained by Ord. No. 303-1988, eff. Sept. 21, 1988; a. Ord. No. 20-1991, eff. Jan. 16, 1991; a. Ord. No. 435-1997, eff. Jan. 16, 1998; a. Ord. No. 357-1999, eff. Sept. 9, 1999; a. Ord. No. 284-2005, eff. July 28, 2005)

Sec. 301-5. Depositories.

Except as otherwise authorized by this code, all public monies coming into the hands of the City Treasurer shall be deposited in banks, savings and loans, or other qualified financial institutions in the manner provided under the "Uniform Depository Act," Chapter 135, Ohio Revised Code and as amended. Provided, however, that the special payroll account and other accounts representing a portion of the active monies of the city may be deposited in one or more banks, savings and loans, or other qualified financial institutions in accordance with the terms and provisions of a resolution requesting depository bids for periods not to exceed five years and a subsequent ordinance awarding depository contracts.

To the extent the Uniform Depository Act is in conflict with the resolution requesting depository bids and the ordinance awarding bids, Chapter 135, Ohio Revised Code is hereby declared inoperative.
(C.O. 301-9; renumbered to C.M.C. 301-5, eff. Jan. 1, 1972; a. Ord. No. 236-1973, eff. May 31, 1973: a. Ord. No. 363-1988. eff. Sept. 21, 1988; a. Ord. No. 397-1996, eff. Jan. 17, 1997)

Sec. 301-7. Securities; Withdrawal.

Whenever withdrawals of all or a portion of the public moneys deposited in depositories are made, the city treasurer shall have the authority to surrender securities which have been pledged as collateral for the deposit, in such amount and to such extent that the remaining amount of money, if any, left on deposit in amply secured to the extent required by the state Uniform Depository Act. Provided, however, that collateral securities shall only be surrendered upon withdrawal of $5,000 or any multiple thereof. The city treasurer shall have the further authority to permit the substitution of collateral so

long as such security to be substituted is of the kind permitted by the Uniform Depository Act.

If the securities deposited with the city treasurer are such as to require endorsement to pass title, they shall be endorsed over to "The City of Cincinnati" and shall be delivered to the city treasurer with an agreement which shall provide that they are pledged as collateral security, that the legal title to them shall be in the city, and that in case of any failure on the part of the depository to do all things required by its contract and the Uniform Depository Act of Ohio to be done, the treasurer shall have the right to sell said securities in the manner provided in said act, and out of the proceeds therefrom to make the city whole in every respect for the loss occasioned by the default of the depository. The securities shall be safely kept by the treasurer and the earnings thereof shall be turned over to the bank pledging them so long as the bank is not in default as aforesaid.
(C.O. 301-10; renumbered to C.M.C. 301-7, eff. Jan. 1, 1972)

Sec. 301-9. Responsibility for Public Moneys.

If at any time for any cause whatever any money is not on deposit in a depository as provided in the state "Uniform Depository Act" or permitted to be retained by said act or otherwise authorized to be invested by law, such money shall be deemed to be in the custody of the treasurer who shall be responsible therefor. The city treasurer may authorize any bank to have custody of city treasury investments provided that the city treasurer shall obtain a receipt from that bank or its local correspondent bank.
(C.O. 301-12; renumbered to C.M.C. 301-9, eff. Jan. 1, 1972; a. Ord. No. 236-1973, eff. May 31, 1973)

Sec. 301-11. Investment Authority; Eligible Investments.

(a) The Director of Finance or the Director's designee may invest the monies in the treasury of the City of Cincinnati as provided in section 301-11(b) herein. Whenever it is necessary to convert any investments to cash, the Director of Finance or his designee may sell such investments at the current market price.

Ohio Revised Code Sections 731.56, 731.57, 731.58, and 731.59 are hereby declared inoperative in the City of Cincinnati.

(b) Whenever there are monies in the treasury of the City of Cincinnati which will not be required to be used for a period which would justify investment thereof, such monies may, in lieu of being deposited in a bank, savings and loan, or other qualified financial institution pursuant to Section 301-5 of the Cincinnati Municipal Code, be invested in:

(1) United States Treasury Bills, Notes, Bonds, or any other obligation or security issued by the United States Treasury, or any other obligation guaranteed as to principal and interest by the United States.

Nothing in the classification of eligible obligations set forth in this section or in the classifications of eligible obligations set forth in divisions (b)(2) through (9) of this section shall be construed to authorize any investment in stripped principal or interest obligations of such eligible obligations.

(2) Bonds, notes, debentures, or any other obligations or securities issued by any federal government agency or instrumentality, including:

Federal National Mortgage Association

Federal Home Loan Bank

Federal Farm Credit Bank

Federal Home Loan Mortgage Corporation

Government National Mortgage Association

Student Loan Marketing Association

All federal agency securities shall be direct issuances of federal government agencies or instrumentalities.

(3) Time certificates of deposit of eligible institutions as provided in section 135.08 of the Ohio Revised Code, the payment of the principal and accrued interest thereon for which eligible securities are pledged and deposited with the City Treasurer or qualified trustee.

Eligible securities and qualified trustee for the purposes of this section shall have the same meaning as eligible securities and qualified trustee for the purposes of section 135.18 of the Ohio Revised Code. All securities pledged as collateral must also be acceptable to the Director of Finance or his designee. Up to $25,000,000 of time certificates of deposit may be invested as linked-deposits at less than market rates of return as negotiated by the Director of Finance or his designee.

(4) Bonds and other obligations of this state;

(5) No-load money market mutual funds consisting exclusively of obligations described in division (1) or (2) of this section and repurchase agreements secured by such obligations, provided that investments in securities described in this division are made only through eligible institutions mentioned in section 135.03 of the Revised Code.

(6) The Ohio subdivision's fund as provided in section 135.45 of the Ohio Revised Code.

(7) Written Repurchase Agreements in accordance with the provisions of Section 135.14(E) of the Ohio Revised Code.

(8) Bonds and other obligations of this city.

(9) Bonds of any municipal corporation, village, county, township or other political subdivision of the State of Ohio as to which there is no default of principal, interest or coupons.

(10) Commercial paper notes issued by an entity that is defined in division (D) of section 1705.01 of the Ohio Revised Code and that has assets exceeding $500,000,000, to which notes all of the following apply:

(i) The notes are rated at the time of purchase in the highest classification established by at least two nationally recognized standard rating services.

(ii) The aggregate value of the notes does not exceed 10% of the aggregate value of the outstanding commercial paper of the issuing corporation.

(iii) The notes mature not later than 270 days after purchase.

(c) Nothing in the classifications of eligible investments set forth in divisions (b)(1) through (10) shall be construed to authorize any investment in a derivative pursuant to Section 135.14(c) of the Ohio Revised Code.

(d) Any investment made pursuant to this section must mature within five years from the date of settlement, unless the investment is matched to a specific obligation or debt of this city.

(C.O. 301-14; a. Ord. No. 123-1966, eff. May 6, 1966; renumbered to C.M.C. 301-11, eff.

Jan. 1, 1972; a. Ord. No. 236-1973, eff. May 31, 1973; a. Ord. No. 18-1981, eff. Jan. 14, 1981; a. Ord. No. 363-1988, eff. Sept. 21, 1988; a. Ord. No. 474-1990, eff. Nov. 21, 1990; a. Ord. No. 397-1996, eff. Jan. 17, 1997; Ord. No. 306-2016, § 1, eff. Oct. 28, 2016)

Sec. 301-13. Repealed.

(C.M.C. 301-13; ordained by Ord. No. 421-1978, eff. Oct. 11, 1978; a. Ord. No. 337-1979, eff. Aug. 1, 1979; r. Ord. No. 397-1996, § 2, 1-17-1997)

Sec. 301-15. Distribution of Gains and Losses of Treasury Investment Accounts.

Premiums and discounts on treasury investment purchases shall be credited to or charged against interest and amortized over the period from purchase to the date of maturity of the security. Gains and losses in the sale of treasury investment securities shall be credited to or paid from interest.

Effective January 1, 1991, net interest realized by the treasury investment account shall be distributed quarterly as follows:

Interest earnings on water works funds, stormwater management funds, self-insurance funds, metropolitan sewer district funds, certain capital project funds as approved by the director of finance, the municipal golf activities fund, the parking facilities fund, the Lunken Airport fund, all federal grant funds received in advance per the uniform guidance in 2 CFR 200.305, and the following individual funds:

151 Bond Retirement

165 Elsinor

213 Workers Compensation

318 Sawyer Point

319 Contributions for Recreation Purposes

320 Center Hill-Crosley Field Trust

321 Kroger Trust

323 Recreation Special Activities

326 Park Donation and Special Activity

329 Cincinnati Riverfront Park Fund

330 Park Lodge/Pavilion Deposits

332 Krohn Conservatory

336 Telecommunications Services

366 Federal Asset Forfeiture

367 Criminal Activity Forfeiture—Federal

373 IRS Forfeiture

403 Yeatman's Cove Park Trust

430 Parks Private Endowment

444 Armleder Projects Fund

449 Cincinnati Area Geographic Information System

478 Justice Assistance Grant

630 Cable Access

706 W.M. Ampt Endowment Fund

707 Grosbeck Endowment Fund

708 Schmidlapp Park Music Fund

711 Risk Management

752 Permanent Improvement—Parks

754 Working Capital Reserve

and any other fund, the interest on which by the terms of any trust, will, agreement, trust indenture, law or regulation, must be credited to such fund, shall be paid to each of such respective funds; the balance of the interest earned on securities held by the treasury investment account shall be paid to the general fund.

(Sec. 301-16; ordained by Ord. No. 141-1958, eff. June 6, 1958; a. Ord. No. 465-1969, eff. Dec. 31, 1969; renumbered to C.M.C. 301-15, eff. Jan. 1, 1972; a. Ord. No. 164-1973, eff. May 11, 1973; a. Ord. No. 282-1985, eff. July 19, 1985; a. Ord. No. 186-1989, eff. May 10, 1989; a. Ord. No.

292-1992, eff. Aug. 17, 1992; a. Ord. No. 156-1993, eff. June 4, 1993; a. Ord. No. 356, eff. Nov. 5, 1993; a. Ord. No. 435, eff. Jan. 7, 1994; a. Ord. No. 208-1994, eff. July 8, 1994; a. Ord. No. 400-1994, eff. Dec. 2, 1994; a. Ord. No. 436-1994, eff. Jan. 6, 1995; a. Ord. No. 180-2008, § 3, eff. June 29, 2008; Emer. Ord. No. 259-2009, § 1, eff. Sept. 10, 2009; Emer. Ord. No. 375-2018, § 1, eff. Dec. 12, 2018; a. Emer. Ord. No. 317-2024, § 1, eff. Oct. 2, 2024)

Sec. 301-17. Monthly Statement to Director of Finance.

On the first business day of each month the city council a full detailed statement showing the deposits, withdrawals, and balances in the various depositories as shown by the treasurer's books.
(C.O. 301-18; renumbered to C.M.C. 301-17, eff. Jan. 1, 1972)

Sec. 301-19. Use of Collection Agencies, Etc.

The city manager is hereby authorized to enter into contracts, from time to time, with persons, firms, or corporations for the collection of moneys due the city. Such contracts may provide for the collection by the contractor of certain specified claims or may provide for the collection by the contractor of all or a part of the collections of the city or any department thereof during the period of the contract. No such contract shall be for a period of more than five years and each such contract shall be terminable by either party upon 30 days notice in writing. Any such contract may provide, with respect to the collection of debts owing by persons residing outside Hamilton county, that the contractor may, with the approval of the city solicitor, employ an attorney or attorneys at law to file suit against any such debtor or take any other legal action necessary to collect said claims. In such cases the city solicitor may advance to the contractor the estimated court costs.

Such contracts shall contain such other terms and provisions as may, in the opinion of the city solicitor, be necessary to protect the interests of the city.

Payment to be made by the city to the contractor shall be a percentage of the amount collected for the city by the contractor, but said contracts may provide for a minimum payment to the contractor per claim with respect to claims where the amount recovered does not on the basis of the stipulated percentage entitle the contractor to an amount equal to or more than the minimum charge.

The contracts authorized herein may be entered into without formal competitive bidding as required by statute but the city manager shall cause all steps to be taken to obtain maximum competition and the best possible contract for the city. The low minimum charge or the low percentage charge bid shall not be controlling, but the city manager shall award each contract to the person making the lowest and best proposal after giving due regard to each bidder's organization, qualifications and ability to collect claims.
(Sec. 301-19; ordained by Ord. No. 108-1959, eff. May 15, 1959; reordained as C.M.C. 301-19, eff. Jan. 1, 1972)

Sec. 301-20. Delinquencies in Accounts Receivable and Loans Receivable: Policy.

The council declares that it is city policy to collect by all lawful means, all financial obligations due and owing the city, including the enforcement of this policy through the denial to any individual, corporation, partnership, limited liability company or association, of any contract, payment, authorization,

license, permit or loan proceeds in instances in which such individual, corporation, partnership, limited liability company or association is delinquent in the payment of any financial obligation to the city, any of its departments, boards or commissions. This policy will be implemented and enforced in accordance with the provisions of Section 301-20-A.
(Ord. 366-1996, eff. Dec. 20, 1996)

Sec. 301-20-A. Rules and Regulations for Delinquencies in Accounts Receivable and Loans Receivable.

Within one hundred and eighty days (180) of the effective date of Section 301-20, the city manager shall formulate rules and regulations required for the implementation of the policy contained in Section 301-20. Such rules and regulations will provide for payments over time, emergency authorizations, licensing and permitting, and such other matters as will provide for the proper implementation of the policy.

The rules and regulations shall be submitted to the council for approval and, when approved by the council, shall constitute official city procedure for the implementation of the policy set forth in Section 301-20, which policy shall become operative on the effective date of the approval of the council.
(Ord. 366-1996, eff. Dec. 20, 1996)

Sec. 301-21. Dishonored Checks.

When any person, firm or corporation shall give or cause to be given, to any city official or agency, a negotiable instrument in payment of any obligation of such person, firm or corporation due the city, which instrument is subsequently dishonored by the party or institution upon whom drawn, a sum to be determined by the director of finance based on the costs to the city of processing and collecting on such dishonored instrument, shall be added to the original obligation, said fee to include interest and penalties as provided by ordinance or regulation for overdue obligations.

Assessment of this charge shall not relieve a maker of a dishonored instrument of criminal or civil liability otherwise provided by law.
(C.M.C. 301-21; ordained by Ord. No. 435-1975, eff. Oct. 10, 1975; a. Ord. No. 473-1983, eff. Nov. 4, 1983)

Sec. 301-23. Petty Cash, Change Funds and Advances.

The director of finance is authorized to establish petty cash funds, change funds and provide advances as deemed necessary by him. Such funds are to be used for approved city purposes and reported on by all city departments, boards and commissions as required by the director of finance.
(Ordained by Ord. No. 5-1980, eff. Jan. 9, 1980)

Chapter 302

SPECIAL ASSESSMENTS

Sec. 302-1. Treasurer to Keep Assessment Records.
Sec. 302-3. Notice to Property Owners.
Sec. 302-5. Apportionment of Assessment.
Sec. 302-7. Apportionment of Special Assessments in Proportion to Benefits.
Sec. 302-9. Duties of Appraisers.
Sec. 302-11. Use of Appraisers for Special Assessments to be Spread in Proportion to the Front Foot or Tax Value.

Sec. 302-1. Treasurer to Keep Assessment Records.

The city treasurer shall carefully preserve and record in suitable books, all assessments for improving, grading, paving streets, lanes, alleys, wharves, marketspaces or commons. (C.O. 302-1; reordained as C.M.C. 302-1, eff. Jan. 1, 1972)

Sec. 302-3. Notice to Property Owners.

The city treasurer shall, so far as possible, cause the place of residence to be ascertained of every owner whose property is charged with special assessments of any kind, as soon as the treasurer's office shall receive notice thereof, and the place of residence of any successor in title, and shall note the same on the assessment record of the treasurer's office. Not less than 20 days before the expiration of the period within which the entire amount of the assessment may be paid, the treasurer shall cause a notice by postal card to be mailed to the owner or recognized agent at the expense of the city, directed to the place of residence, designating thereon the property assessed and for what purpose assessed, the amount of the assessment, the date when due, and the place where payable. (C.O. 302-2; renumbered to C.M.C. 302-3, eff. Jan. 1, 1972; a. Ord. No. 337-1979, eff. Aug. 1, 1979)

Sec. 302-5. Apportionment of Assessment.

Whenever a portion or portions of a tract or parcel of real estate is conveyed to another owner or other owners, or all or part of such tract or parcel is subdivided into lots and said tract or parcel bears unpaid special assessments, such assessments may be apportioned over such newly created parcels or lots and the residue, if any, of such tracts or parcels, in the following manner:

(a) The auditor of Hamilton county is authorized, after certification to the auditor for collection of special assessments levied by the foot front method, to apportion such assessments by the same method.

(b) The clerk of council is authorized, after the certification to the auditor of Hamilton county of special assessments levied by any method other than the foot front method, to apportion such assessments upon request of the auditor of Hamilton county or upon the filing with the clerk of an application signed by the owner of such tract and, in the case of conveyance, also signed by the grantee, and containing the following:

(1) The tax duplicate description of the tract so assessed.

(2) The title of the improvement for which the assessment was levied.

(3) A listing of the dates when payable and amounts of all unpaid installments of the assessment.

(4) The dimensions and location of the newly created parcel or parcels and of the residue, if any, of the tract so assessed.

(5) A proposed apportionment of the assessment which will be acceptable to the applicant or applicants and which shall be reasonable in its relation to the value or use of the parcels involved.

(6) An agreement binding the applicant or applicants not to contest the proposed apportionment should it be approved by the clerk.

If the request for apportionment is made by the auditor of Hamilton county, the clerk shall cause an apportionment to be made and shall certify copies of it to the city treasurer and to

the auditor, who are thereupon authorized to amend their records accordingly.

If the request for apportionment is made by the filing of an application as above provided, the clerk shall cause the application to be examined as to its form and as to the reasonableness of the proposed apportionment in its relation to the value and use of the parcels involved.

Should the examination disclose that the application is proper in form and that the proposed apportionment is reasonable, the clerk shall approve it and shall certify copies thereof to the city treasurer and to the auditor of Hamilton county, who are thereupon authorized to amend their records accordingly.

Should the examination disclose that the application is improper in form, the clerk shall so inform the applicant or applicants, who may amend it or file a new application.

Should the examination disclose that the proposed apportionment is unreasonable in its relation to the value and use of the parcels involved, the clerk shall cause a suggested reasonable apportionment to be prepared which shall be transmitted by the clerk, with the rejected application, to the applicant or applicants, who may thereupon file a new application.

(c) Upon the filing of an application during the period provided for the payment of an assessment in cash and before its certification to the auditor of Hamilton county for collection in installments, the clerk of council shall proceed as above provided in the case of an application filed after such certification, except that the auditor need not be provided with a copy of the approved application.

(d) No apportionment shall be made of any assessment the collection of which has been deferred until application is made to use the improvement for which the assessment was levied, except under the following conditions. Should apportionment of such an assessment be desired at the time application is made to use the improvement, the clerk of council is authorized, provided the owner or owners of the property involved request the clerk to so proceed and consent thereto in writing, to cause the assessment on the entire tract, including interest at the same rate and for the same period provided for assessments not so deferred in the ordinance levying such deferred assessment, to be certified to the auditor of Hamilton county for collection in the same number of successive annual installments as provided for in the ordinance. The first of the installments shall be payable, if possible, with the collection of the general taxes due in December of the year in which the certification is made, otherwise of the next succeeding year. Upon the filing with the clerk of such written request and consent, executed copies of which shall be certified to the city treasurer and to the auditor of Hamilton county, the assessment may be apportioned in the manner hereinabove provided.

Unless waived therein, such written request and consent shall provide that certification of the assessment to the auditor of Hamilton county for collection shall be made upon the expiration of 30 days from the date of filing, during which time the apportionment

may be made and the entire portion of the assessment allocated to any of the newly created parcels, or to the residue of the tract, may be paid to the city treasurer in cash and without the addition of interest as above provided for payment in installments.

(C.O. 302-3; renumbered to C.M.C. 302-5, eff. Jan. 1, 1972; a. Ord. No. 337-1979, eff. Aug. 1, 1979)

Sec. 302-7. Apportionment of Special Assessments in Proportion to Benefits.

The city manager is authorized to contract for the professional real estate appraisal services for the purpose of spreading special assessments on property proposed to be assessed in proportion to benefits for public improvements.

The services of from one to three persons experienced in real estate appraisals shall be used in determining the spread of special assessments on property to be assessed for each public improvement for which it is proposed to levy special assessments in proportion to benefits. The number of persons engaged and the fees to be paid for such services shall be determined by the city manager in accordance with the size and complexity of the project. The city manager may employ such services either at the time of the spread of the assessment or at the time that the permanent improvement report is being considered by council, or both.

(Sec. 302-4; ordained by Ord. No. 141-1962, eff. Apr. 25, 1962; a. Ord. No. 52-1967, eff. Feb. 8, 1967; renumbered to C.M.C. 302-7, eff. Jan. 1, 1972)

Sec. 302-9. Duties of Appraisers.

Specific duties of the appraiser or appraisers appointed in accordance with Section 302-7 to spread special assessments in proportion to benefits shall be detailed in the contract, but shall consist of at least the following:

(a) The determination of the amount to be assessed against each parcel of property;

(b) A written report to council of the public improvement for which the assessment is to be levied on the property proposed to be assessed, and the average value or values of the various types of property affected with and without the improvement;

(c) Oral reports to, and field trips with, the appropriate committees of council if requested;

(d) Testimony in court in connection with such special assessments, if requested by the city.

(Sec. 302-5; ordained by Ord. No. 141-1962, eff. Apr. 25, 1962; a. Ord. No. 52-1967, eff. Feb. 8, 1967; renumbered to C.M.C. 302-9, eff. Jan. 1, 1972)

Sec. 302-11. Use of Appraisers for Special Assessments to be Spread in Proportion to the Front Foot or Tax Value.

If ordered by council, or a committee of council, or deemed advisable by the city manager, expert appraisal services may be employed in:

(a) Determining the benefits from a public improvement for which special assessments are proposed to be levied in proportion to the front footage of tax value; or,

(b) When necessary to determine the value of property in order to comply with statutory value limitations as to assessments.

(Sec. 302-6; ordained by Ord. No. 141-1962, eff. Apr. 25, 1962; a. Ord. No. 52-1967, eff. Feb. 8, 1967; renumbered to C.M.C. 302-11, eff. Jan. 1, 1972)

Chapter 303

MUNICIPAL BONDS

Sec. 303. General.
Sec. 303-1. Authentication of Municipal Obligations.
Sec. 303-3. Procedure for Sale of Bonds.
Sec. 303-5. Public Sale.
Sec. 303-7. Time and Place of Opening Bids.
Sec. 303-9. When Interest is Payable.
Sec. 303-11. Destruction of Bonds and Coupons Redeemed or Exchanged.
Sec. 303-13. Registered Bonds in Lieu of Coupon Bonds.
Sec. 303-14. Fees for Conversion of Bonds.
Sec. 303-15. Splitting of Bonds or Notes.
Sec. 303-17. Authentication of Bonds or Notes Issued in Exchange for Other Bonds or Notes.
Sec. 303-19. Records of Registered Bonds.
Sec. 303-21. Transfer of Registered Bonds.
Sec. 303-23. Sale and Reinvestment of Securities.
Sec. 303-25. Rules and Regulations.
Sec. 303-27. Bond Retirement Fund.

Sec. 303. General.

All bonds of the city of Cincinnati hereafter issued, and the proceedings in reference thereto, shall be in accordance with this chapter, unless otherwise provided in the Revised Code of Ohio or specifically provided in the particular ordinance for the issue and sale of any bonds.
(C.O. 303; reordained as C.M.C. 303, eff. Jan. 1, 1972)

Sec. 303-1. Authentication of Municipal Obligations.

All bonds, notes and certificates of indebtedness issued by the city of Cincinnati shall have affixed thereto the facsimile signature of the mayor, the vice-mayor or the president protem of council and the facsimile seal of the city of Cincinnati, and shall be signed by the director of finance, or in the absence or disability of the director of finance or vacancy in said office, the superintendent of accounts and audits, as acting director of finance.

In case any officer who has signed any bonds, notes or other certificates of indebtedness issued by the city, or caused a facsimile signature to be affixed thereto, shall cease to be such an officer before the bonds, notes or certificates of indebtedness so signed shall have been actually delivered, such bonds, notes or certificates of indebtedness, nevertheless, may be issued and delivered as though the person who had signed such bonds, notes or certificates of indebtedness, or caused a facsimile signature to be affixed thereto, had not ceased to be such an officer. Also, any bonds, notes or certificates of indebtedness may be executed on behalf of the city, as provided in this section, by an officer who at the actual date of execution of such bonds, notes or certificates of indebtedness such person shall not have been such a proper officer of the city.
(C.O. 303-1; a. Ord. No. 382-1957, eff. Oct. 2, 1957; reordained as C.M.C. 303-1, eff. Jan. 1, 1972; a. Ord. No. 337-1979, eff. Aug. 1, 1979)

Sec. 303-3. Procedure for Sale of Bonds.

The principal and interest of bonds shall be payable by a paying agent as directed by the city treasurer. Interest on all bonds shall be payable semi-annually. All bonds shall be numbered and shall bear a reference upon their face to the act of the General Assembly and to this chapter and such other references and recitations as are usual or required by law.

All bonds shall be first offered by the director of finance at par and accrued interest to the officer or officers in charge of the bond retirement fund. If the officer or officers in charge of the bond retirement fund refuse to take any or all such bonds the director of finance may offer such bonds to the treasury investment board and the board of trustees of the retirement system of the city of Cincinnati.

If one or more of said boards takes all or any part of any issue of bonds, one or more manuscript bonds may be issued for the bonds so taken, the number to be at the option of the purchaser, with the principal and interest thereon to be payable at the office of the treasurer of the city.
(C.O. 303-2; a. Ord. No. 275-1963, eff. Aug. 7, 1963; a. Ord. No. 356-1967, eff. Oct. 13, 1967; a. Ord. No. 45-1970, eff. Feb. 18, 1970; renumbered to C.M.C. 303-3, eff. Jan. 1, 1972)

Sec. 303-5. Public Sale.

Bonds not sold at private sale pursuant to Section 303-3, herein, shall be advertised for sale and sold by the finance director at public sale, as provided by law.
(C.O. 303-3; renumbered to C.M.C. 303-5, eff. Jan. 1, 1972; a. Ord. No. 337-1979, eff. Aug. 1, 1979)

Sec. 303-7. Time and Place of Opening Bids.

The office of the director of finance in the city hall is designated as a place of sale and delivery of all bonds. All proposals for bonds shall be sealed proposals, and shall be received up to 11:00 a.m. of the day the sale is to take place, and shall be immediately thereafter opened in the office of the director of finance.

Each bid shall be accompanied by a certified check on a solvent bank payable to the order of the director of finance, for 3 percent of the first $100,000 of the bonds bid for and for 1 percent of all bonds in excess of $100,000 bid for, as a guarantee of good faith on the part of the bidder, and that if the bonds are awarded to the bidder he will take and pay for same.

(C.O. 303-4; renumbered to C.M.C. 303-7, eff. Jan. 1, 1972; a. Ord. No. 337-1979, eff. Aug. 1, 1979; a. Ord. No. 133-1984, eff. March 28, 1984)

Sec. 303-9. When Interest is Payable.

The interest on bonds shall be payable semi-annually on the first day of any month of each year until the principal sum is paid; provided, however, unless provision is made in the ordinance authorizing the issuance of bonds for the payment of advance interest out of the proceeds of the sale of said bonds, the first payment of interest shall be deferred until the interest payment date next following receipt of taxes levied by the bond ordinance, but in no event for more than one year from the date of the bonds.

(Sec. 303-1a; ordained by Ord. No. 110-1962, eff. Apr. 11, 1962; a. Ord. No. 356-1967, eff. Oct. 13, 1967; renumbered to C.M.C. 303-9, eff. Jan. 1, 1972)

Sec. 303-11. Destruction of Bonds and Coupons Redeemed or Exchanged.

All bonds and coupons of the city of Cincinnati which have been fully paid, and all bonds with coupons attached exchanged for registered bonds, and all registered bonds exchanged for other registered bonds, shall be destroyed by the city treasurer at such time as the treasurer may deem advisable, in the presence of not less than three witnesses, who shall, at the time, sign a certificate containing a description of the bonds and coupons so destroyed, and such certificate shall be preserved in such manner as the city treasurer shall prescribe.

(C.O. 303-12; a. Ord. No. 45-1970, eff. Feb. 18, 1970; renumbered to C.M.C. 303-11, eff. Jan. 1, 1972; a. Ord. No. 337-1979, eff. Aug. 1, 1979)

Sec. 303-13. Registered Bonds in Lieu of Coupon Bonds.

The issue of registered bonds in lieu of coupon bonds and the issue of coupon bonds in lieu of registered bonds heretofore or hereafter issued by the city of Cincinnati, or by any village which has been or may be annexed to the city, shall be made by the city treasurer upon surrender of the bonds and coupons or the registered bonds thereof so to be exchanged to such bank in the city of Cincinnati as the city treasurer shall select as the fiscal agent and designated depository.

Bonds shall be registered as to principal and interest only.

(C.O. 303-13; a. Ord. No. 356-1967, eff. Oct. 13, 1967; a. Ord. No. 45-1970, eff. Feb. 18, 1970; reordained as C.M.C. 303-13, eff. Jan. 1, 1972; a. Ord. No. 142-1972, eff. Apr. 12, 1972)

Sec. 303-14. Fees for Conversion of Bonds.

The city treasurer shall charge and the registered owner shall pay the entire cost of engraving and printing of the coupon bonds, and also mailing, insurance and any other

incidental expenses, plus a service fee of $25 for each issue converted from registered form into bearer or coupon form.
(C.M.C. 303-14; ordained by Ord. No. 142-1972, eff. Apr. 12, 1972; a. Ord. No. 88-1989, eff. Mar. 1, 1989)

Sec. 303-15. Splitting of Bonds or Notes.

Upon demand of the owner or holder of any note or bond and upon the presentation and cancellation of such note or bond, and all unmatured interest coupons, two or more notes or bonds, as the case may be, may be issued in lieu of the note or bond so surrendered and cancelled. Substitute bonds or notes so issued shall bear the same rate and dates of payment of interest as the original bond or note, shall be payable at the same time and place as the original bond or note, shall be dated as of the date of original issuance, and shall not in aggregate principal amount exceed the principal amount of the bond or note for which they are substituted. Such substitute bonds and notes shall recite on their face the bond or note in lieu of which they have been issued. No bond or note issued pursuant to this section shall be in a denomination of less than $1,000. As a condition precedent of the issuance of substitute bonds or notes, the owner of the original bond or note requesting the exchange shall pay to the city the full cost of issuing such substitute bonds or notes as determined by the director of finance.
(Sec. 303-13a; ordained by Ord. No. 323-1962, eff. Sept. 12, 1962; a. Ord. No. 356-1967, eff. Oct. 13, 1967; renumbered to C.M.C. 303-15, eff. Jan. 1, 1972)

Sec. 303-17. Authentication of Bonds or Notes Issued in Exchange for Other Bonds or Notes.

Registered bonds issued pursuant to Section 303-13 shall be signed by the mayor and the city treasurer, and shall be attested by the director of finance, and shall have affixed thereto the seal of the city of Cincinnati.

Notes and coupon bonds issued pursuant to Section 303-15 shall be executed manually by the mayor and the director of finance and have affixed thereto the seal of the city of Cincinnati or shall be executed as provided in Section 303-1.
(C.O. 303-14; a. Ord. No. 323-1962, eff. Sept. 12, 1962; a. Ord. No. 45-1970, eff. Feb. 18, 1970; renumbered to C.M.C. 303-17, eff. Jan. 1, 1972)

Sec. 303-19. Records of Registered Bonds.

The city treasurer shall keep books in which shall be entered the date, number, series, denomination and payee of such registered bonds. The interest thereon when due shall be paid by check of the said city treasurer to the order of the payee thereof, as shown by the said register.
(C.O. 303-15; a. Ord. No. 45-1970, eff. Feb. 18, 1970; renumbered to C.M.C. 303-19, eff. Jan. 1, 1972)

Sec. 303-21. Transfer of Registered Bonds.

Registered bonds may be transferred in the office of the city treasurer upon the books of record of registration upon surrender and cancellation of such bonds when properly signed for transfer by the payee thereof or the duly authorized attorney or representative of the payee, and new registered bonds shall be issued in lieu thereof not exceeding in amount the registered bond or bonds offered in exchange, in such denominations as the holder of such bond or bonds may elect, but in no case in smaller denominations than those of the original coupon bonds represented.
(C.O. 303-16; a. Ord. No. 45-1970, eff. Feb. 18, 1970; renumbered to C.M.C. 303-21, eff. Jan. 1, 1972; a. Ord. No. 337-1979, eff. Aug. 1, 1979)

Sec. 303-23. Sale and Reinvestment of Securities.

The city treasurer is hereby authorized to sell, at not less than current market value and accrued interest, any securities in which the treasurer has heretofore invested funds and use the proceeds of such sale to purchase securities. The maturities of the obligations to be so purchased shall be so timed as to most closely provide the funds necessary to meet future obligations.
(C.O. 303-18; a. Ord. No. 45-1970, eff. Feb. 18, 1970; renumbered to C.M.C. 303-23, eff. Jan. 1, 1972; a. Ord. No. 337-1979, eff. Aug. 1, 1979; a. Ord. No. 88-1989, eff. Mar. 1, 1989)

Sec. 303-25. Rules and Regulations.

The city treasurer is hereby authorized to enact rules and regulations carrying into effect the provisions of this chapter.
(C.O. 303-21; a. Ord. No. 45-1970, eff. Feb. 18, 1970; renumbered to C.M.C. 303-25, eff. Jan. 1, 1972)

Sec. 303-27. Bond Retirement Fund.

Moneys in the bond retirement fund may be invested in accordance with § 301-11 of this code.
(C.M.C. 303-27; ordained by Ord. No. 88-1989, eff. Mar. 1, 1989)

Chapter 304

SURETY BONDS

Sec. 304-1. Contractor's Bond.
Sec. 304-3. Replacement of Bond.
Sec. 304-5. Sureties for City Indemnified.

Sec. 304-1. Contractor's Bond.

(a) Except as provided in this section, every personal and surety bond, policy of insurance, and security, which law or ordinance may require any person, firm, or corporation to furnish to the city of Cincinnati as a condition of:

(1) the issuance, renewal, or reinstatement of a license or permit; or

(2) the exercise of a privilege; or

(3) as security for (i) the performance of a contract with the city or (ii) the compliance with any law, ordinance, or administrative requirement for the deposit of public moneys of the city,

shall be approved as to sufficiency by the officer designated for that purpose or by the director of finance before such bond, policy, or security is accepted.

(b) The city solicitor is not required to approve as to form and legality any personal or surety bond, policy of insurance, or security prior to its acceptance by the city, notwithstanding any such requirement within the municipal code or any provision of the Ohio Revised Code.
(C.O. 304-1; reordained as C.M.C. 304-1, eff. Jan. 1, 1972; a. Ord. No. 309-2014, § 41, eff. Nov. 29, 2014; a. Ord. No. 0127-2019, §§ 7, 8, eff. May 24, 2019; a. Ord. No. 281-2024, § 1, eff. Sept. 5, 2024)

Sec. 304-3. Replacement of Bond.

If any such bond, policy or security be cancelled, lapse or become inadequate during the term thereof, the officer who accepted the same shall require such person, firm or corporation to replace the same with another, fully complying with the requirements of law and ordinance. In default of such replacement, any license, permit, privilege or right conditioned upon the furnishing of such bond, policy or security shall be deemed revoked. Notice of such default and revocation shall be promptly communicated in writing to the city manager and the director of finance.
(C.O. 304-2; renumbered to C.M.C. 304-3, eff. Jan. 1, 1972)

Sec. 304-5. Sureties for City Indemnified.

The city of Cincinnati in its corporate capacity, in consideration of the matters and things herein to be done and performed as hereinafter specified, hereby promises and agrees to indemnify and save harmless any and all persons who may become sureties as bondsmen on behalf of said city from any and all liability, including all costs and expenses growing out of, or pertaining to, any suit at law or in equity in which such person or persons appear as bondsmen on behalf of said city in any of said courts.
(C.O. 304-3; renumbered to C.M.C. 304-5, eff. Jan. 1, 1972)

Chapter 305

OFFICIAL BONDS*

Sec. 305-1. General.
Sec. 305-3. City Manager.
Sec. 305-5. City Solicitor.
Sec. 305-7. Director of Finance.
Sec. 305-9. City Treasurer.
Sec. 305-11. Income Tax Commissioner.
Sec. 305-21. Additional Positions Bonded.
Sec. 305-23. Contract for Official Bonds.
Sec. 305-25. Approval of Bonds.
Sec. 305-27. Liability of Sureties.
Sec. 305-29. Cost of Premiums Paid by City.

*__Editor's note—__By Ordinance 432-1964, existing Chapter 305 of the Code of Ordinances, comprised of Sections 305 through 305-201, was repealed, eliminating the listing in the code of hundreds of employees who were bonded. The same ordinance, effective Nov. 27, 1964, authorized the city manager to require bonding of these employees in amounts deemed sufficient by the city manager.

Sec. 305-1. General.

The officers holding the positions designated by Sections 305-3 to 305-19, inclusive, of this chapter shall be bonded in the amounts specified in said sections. Those officers and employees holding positions designated by the city manager, as provided for in Section 305-21, shall be bonded in amounts determined by the city manager.
(C.M.C. 305-1; ordained by Ord. No. 30-1972, eff. Feb. 2, 1972)

Analogous to Sec. 305; ordained by Ord. No. 432-1964, eff. Nov. 27, 1964; renumbered to C.M.C. 305-1, eff. Jan. 1, 1972; r. Ord. No. 30-1972, eff. Feb. 2, 1972.

Sec. 305-3. City Manager.

Bond for the city manager shall be $100,000.
(C.M.C. 305-3; ordained by Ord. No. 30-1972, eff. Feb. 2, 1972)

Analogous to Sec. 305-1; ordained by Ord. No. 432-1964, eff. Nov. 27, 1964; a. Ord. No. 23-1966, eff. Feb. 19, 1966; renumbered to C.M.C. 305-3, eff. Jan. 1, 1972; r. Ord. No. 30-1972, eff. Feb. 2, 1972.

Sec. 305-5. City Solicitor.

Bond for the city solicitor shall be $100,000.
(C.M.C. 305-5; ordained by Ord. No. 30-1972, eff. Feb. 2, 1972)

Analogous to Sec. 305-3; ordained by Ord. No. 432-1964, eff. Nov. 27, 1964; a. Ord. No. 23-1965, eff. Feb. 19, 1965; renumbered to C.M.C. 305-5, eff. Jan. 1, 1972; r. Ord. No. 30-1972, eff. Feb. 2, 1972.

Sec. 305-7. Director of Finance.

Bond for the director of finance shall be $100,000.
(C.M.C. 305-7; ordained by Ord. No. 30-1972, eff. Feb. 2, 1972)

Analogous to Sec. 305-6; ordained by Ord. No. 432-1964, eff. Nov. 27, 1964; a. Ord. No. 23-1965, eff. Feb. 19, 1965; renumbered to C.M.C. 305-7, eff. Jan. 1, 1972; r. Ord. No. 30-1972, eff. Feb. 2, 1972.

Sec. 305-9. City Treasurer.

Bond for the city treasurer shall be $500,000.
(C.M.C. 305-9; ordained by Ord. No. 30-1972, eff. Feb. 2, 1972)

Analogous to Sec. 305-7; ordained by Ord. No. 432-1964, eff. Nov. 27, 1964; renumbered to C.M.C. 305-9, eff. Jan. 1, 1972; r. Ord. No. 30-1972, eff. Feb. 2, 1972.

Sec. 305-11. Income Tax Commissioner.

Bond for the income tax commissioner shall be $100,000.
(C.M.C. 305-11; ordained by Ord. No. 30-1972, eff. Feb. 2, 1972)

Sec. 305-21. Additional Positions Bonded.

Whenever, in the opinion of the city manager by reason of the scope and nature of the responsibilities of the position, bonding is considered desirable in order to protect the interests of the city, the city manager shall require that officers and employees other than those enumerated in Sections 305-1 to 305-19 be bonded in an amount determined sufficient by the city manager, based upon the evaluation of the amount of money or negotiable paper for which the position is responsible.

A schedule of the positions and the amount of bond required for each, as determined by the city manager, shall be maintained in the city manager's office.
(C.M.C. 305-21; ordained by Ord. No. 30-1972, eff. Feb. 2, 1972; a. Ord. No. 337-1979, eff. Aug. 1, 1979)

Analogous to Sec. 305-9; ordained by Ord. No. 432-1964, eff. Nov. 27, 1964; renumbered to C.M.C. 305-21, eff. Jan. 1, 1972; r. Ord. No. 30-1972, eff. Feb. 2, 1972.

Sec. 305-23. Contract for Official Bonds.

The city manager shall be authorized to enter into a contract or contracts with any lawfully authorized surety company or companies to provide official bonds for officers and employees required by law or ordinance to furnish such bonds. For the purpose of such contract or contracts the city manager may divide the officers and employees into advantageous groupings. The city manager shall prepare rules to govern the letting of contracts and the method of determining the lowest bid. Any such contract shall be entered into only with the lowest and best

bidder or bidders after advertisement according to law. The term of any contracts shall be for a period of not to exceed three years. In the event that, in the opinion of the city manager, two or more bid proposals shall be equally entitled to be considered the lowest and best bid, the city manager shall be authorized to award the contracts by lot to any one of such lowest and best bidders, or to divide the contract by lot or otherwise in such manner as the city manager considers advisable among such of them as shall consent to the arrangement.
(C.M.C. 305-23; ordained by Ord. No. 30-1972, eff. Feb. 2, 1972; a. Ord. No. 337-1979, eff. Aug. 1, 1979)

Analogous to C.O. 304-6; renumbered to C.M.C. 304-7, eff. Jan. 1, 1972; r. Ord. No. 30-1972, eff. Feb. 2, 1972.

Sec. 305-25. Approval of Bonds.

The bond of the city manager shall be approved by the council. The bond of the director of finance shall be approved by the council. The bonds of other officers and employees of the city shall be approved by the director of finance, except where other provision is made by law or ordinance. The bond of the city solicitor shall be approved as to form by the council. The bonds of all other officers and employees shall be approved as to form by the city solicitor, except where other provision is made by law or ordinance.
(C.M.C. 305-25; ordained by Ord. No. 30-1972, eff. Feb. 2, 1972)

Analogous to C.O. 304-8; a. Ord. No. 356-1967, eff. Oct. 13, 1967; renumbered to C.M.C. 304-9, eff. Jan. 1, 1972; r. Ord. No. 30-1972, eff. Feb. 2, 1972.

Sec. 305-27. Liability of Sureties.

The official bonds for officers or employees shall not subject the sureties to liability for loss or damage arising from the negligent use of a motor vehicle. Except as otherwise provided and to the extent practicable, the surety on the official bond of any officer or employee shall be bound for all the acts of such officer or employee performed or purporting to be performed as an officer or employee of the city of Cincinnati, whether or not the particular act shall be within the scope of authorized employment.

Provided, however, should it be determined impractical to obtain official bonds providing for the broad coverage aforesaid, the city manager may obtain in lieu thereof honesty bond coverage and faithful performance bond coverage. Provided further, in the event the faithful performance bond coverage is not available for persons in specified positions in the city service, the city manager may obtain honesty bond coverage alone for officers and employees in such positions.
(C.M.C. 305-27; ordained by Ord. No. 30-1972, eff. Feb. 2, 1972; a. Ord. No. 337-1979, eff. Aug. 1, 1979)

Analogous to C.O. 304-10; renumbered to C.M.C. 304-11, eff. Jan. 1, 1972; r. Ord. No. 30-1972, eff. Feb. 2, 1972.

Sec. 305-29. Cost of Premiums Paid by City.

The reasonable compensation payable to lawfully authorized surety companies as premiums on the official bonds of city officers and employees shall be paid by the city.
(C.M.C. 305-29; ordained by Ord. No. 30-1972, eff. Feb. 2, 1972)

Analogous to C.O. 304-12; renumbered to C.M.C. 304-13, eff. Jan. 1, 1972; r. Ord. No. 30-1972, eff. Feb. 2, 1972.

Chapter 306

GENERAL COMPENSATION PROVISIONS

Sec. 306-1. The Compensation Plan.
Sec. 306-3. Pay Periods.
Sec. 306-5. Outside Compensation, Deductions, Maintenance, etc.
Sec. 306-7. Special Salary Provisions.
Sec. 306-9. Efficiency Standards.
Sec. 306-11. Salary Increases.
Sec. 306-13. Salary adjustment due to Reclassifications, Demotions, Transfers, and Promotions.
Sec. 306-15. Department Setup—Within Appropriation.
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Sec. 306-45. Repealed.
Sec. 306-46. Repealed.
Sec. 306-47. Credit Union Deductions.
Sec. 306-48. Cincinnati Park Foundation, Inc.
Sec. 306-49. New Careers Program Trainee Pay Rates.
Sec. 306-50. Charitable Solicitation Campaigns.
Sec. 306-51. Citizens Committee on Youth, Neighborhood Youth Corps.
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Sec. 306-61. Specific Policy for Building Crafts.
Sec. 306-63. Deductions for Wage Assignments to Public Agencies.
Sec. 306-64. Pre-Paid Legal Services, Inc.
Sec. 306-65. Compensation of City Manager.
Sec. 306-66. Greater Cincinnati Police Historical Museum.
Sec. 306-67. Cincinnati Fire Museum.
Sec. 306-68. Voluntary Donations to City of Cincinnati Cost Savings Days Program.
Sec. 306-69. The Shield, Inc.
Sec. 306-70. Voluntary Donations to Greater Cincinnati Water Works' Help Eliminate Lead Pipes ("HELP") Program.
Sec. 306-71. STABLE Accounts.

Sec. 306-1. The Compensation Plan.

All offices and positions in the city service the salaries of which are subject to be fixed by council shall be designated and compensated in accordance with the schedules set forth in Chapter 307, Classified Compensation Schedules, which shall comprise the compensation plan for the city service.

The amounts set opposite the title of each class of employment shall indicate the scale of pay for the particular employment in question, figured on a full time basis unless otherwise specified. Where a classification is designated "part time," the salary shall be understood to represent the total compensation for the performance of the duties of the position in question, and no regulation relating to the usual working hours in the city service shall apply to any such case. In classifications for which full time salaries are prescribed, the appointing authority may, with the approval of the civil service commission, appoint persons for less than full time work, in which case the compensation shall be proportioned to the working time.
(C.O. 306-1; reordained as C.M.C. 306-1, eff. Jan. 1, 1972)

Sec. 306-3. Pay Periods.

The payroll periods for full time employees shall be either weekly or bi-weekly as designated by the city manager. In cases of intermittent employment and in other special cases, special arrangements as to the time of payment may be made with the approval of the appointing authority and the director of finance. Whenever the city shall terminate the employment of any officer or employee, immediate payment of any balance due such officer or employee may be made with the approval of the head of the respective department and the director of finance.
(C.O. 306-2; renumbered to C.M.C. 306-3, eff. Jan. 1, 1972)

Sec. 306-5. Outside Compensation, Deductions, Maintenance, etc.

The rates of pay prescribed shall be understood to represent the total remuneration for the work involved under a given classification title. No officer or employee shall accept other compensation for such employment except as authorized by ordinance. Where a part of the salary of an officer or employee is paid by any other taxing body, the amount so paid shall be deducted from the amount prescribed in the schedule, or moneys paid by other such authorities may be deposited in the general fund, in which case the city shall pay the full amount prescribed in the schedule.

Where board, lodging, maintenance or other privilege is furnished to any officer or employee, or to an officer or employee and family, the civil service commission shall determine the cash value of such privilege and charge the employee with such cash value, the same to be deducted from the fixed salary. Where any such personal maintenance service is furnished at city institutions to any employee of another public authority cooperating in the work of such institution, the employee shall pay to the city treasurer the amount so fixed by the civil service commission.
(C.O. 306-3; a. Ord. No. 339-1965, eff. Aug. 4, 1965; renumbered to C.M.C. 306-5, eff. Jan. 1, 1972)

Sec. 306-7. Special Salary Provisions.

(a) Where the salary heretofore paid an employee is in excess of the maximum rate herein provided, such salary shall continue in effect as long as such employee continues to serve the city in the same capacity and to render satisfactory service.

(b) Officers and employees entering the service of the city generally shall begin at the minimum rate for the classification to

which they are being appointed, except as provided in policies or rules adopted pursuant to subsection (c).

(c) Where both hourly and annual rates are prescribed in the compensation schedule for a class, the appointing authority shall determine which rate shall prevail.

(d) The personnel officer shall prepare policies or rules approved by the city manager pertaining to salaries for new employees, including rules that authorize a starting salary at rates higher than the minimum rate prescribed and salary adjustments for existing employees due to promotion or other employment actions.

(C.O. 306-4; renumbered to C.M.C. 306-7, eff. Jan. 1, 1972; a. Ord. No. 337-1979, eff. Aug. 1, 1979; a. Emer. Ord. No. 0076-2023, §§ 1, 2, eff. March 8, 2023)

Sec. 306-9. Efficiency Standards.

The city manager shall from time to time make investigations for the purpose of ascertaining the duties imposed by law, ordinance or practice upon each officer and employee included in the classified salary schedule of the city of Cincinnati, the manner in which such duties are performed, the cost thereof, and such other facts as will assist in determining the efficiency of such officers and employees, based upon similarity of duties and salaries, and in standardizing employment in each class.

The city manager shall prescribe factors or quantities to be used in marking the relative efficiency of each officer or employee in the several classes; and shall fix standards of efficiency to be maintained by each officer and employee.

(C.O. 306-5; renumbered to C.M.C. 306-9, eff. Jan. 1, 1972)

Sec. 306-11. Salary Increases.

(a) Increases. Any officer or employee may advance successively to the higher rates of compensation only after demonstrating that such person has attained and maintained prescribed standards of efficiency and is deserving of an increase because of meritorious service as determined by the expectations of the appropriate appointing authority based on completed performance evaluations that comply with human resources policies and procedures. All increases shall be made upon recommendation of the appointing authority, but such recommendations shall be made in accordance with policies or rules prepared by the personnel officer and approved by the city manager setting forth criteria to be met in order to qualify for an advancement to a higher rate of pay in the compensation schedule.

The personnel officer shall review every proposed compensation advancement for (1) employees appointed by the city manager and (2) employees appointed by the various independent boards and commissions of the city and shall approve all recommendations for compensation increases that are in conformance with the criteria set forth in the rules and regulations. No increase in compensation shall be granted without such approval.

All salary adjustments shall be effective at the beginning of a pay period.

(b) Penalty for Low Efficiency. Any employee who has two successive low service ratings shall automatically be referred by the department or division head to the appointing authority for appropriate action under the existing laws and policies or rules prepared by the personnel officer and approved by the city manager.

(C.O. 306-6; a. Ord. No. 417-1971, eff. Nov. 24, 1971; renumbered to C.M.C. 306-11, eff. Jan. 1, 1972; a. Ord. No. 520-1973, eff. Nov. 28, 1973; a. Ord. No. 333-1976, eff. July 8, 1976; a. Ord. No. 337-1979, eff. Aug. 1, 1979; a. Emer. Ord. No. 0076-2023, §§ 1, 2, eff. March 8, 2023)

Sec. 306-13. Salary adjustment due to Reclassifications, Demotions, Transfers, and Promotions.

(a) Reclassification and Transfer. When the work of an employee is better suited to a different classification than the employee's current classification, the employee may be reclassified in accordance with applicable civil service rules or policy. If necessary under the polices or rules prepared by the personnel officer and approved by the city manager, such reclassification also will require the recommendation of the appointing authority and the approval of the civil service commission. The employee's compensation in the new classification shall be fixed at the same rate as in the employee's former classification if the new classification contains such a rate. If the new classification does not contain such a rate, the employee's compensation shall be fixed at the rate in the new classification next higher than the previous compensation received by the employee.

(b) Demotion. When an employee is placed into a classification with a lower salary schedule due to voluntary or involuntary demotion, the employee's compensation will be set at the next-lower step or rate of compensation in the new classification.

(c) Promotion. When an employee is promoted from one classification to a higher classification, the employee's compensation shall be fixed according to the policies or rules prepared by the personnel officer and approved by the city manager.

(d) For the purposes of this section, the civil service secretary shall determine whether the change from one class to another is a reclassification, demotion, promotion, or transfer based on the civil service commission rules. If the civil service commission rules do not specify whether a particular change in class is a reclassification, demotion, promotion, or transfer, the civil service commission shall make that determination.
(C.O. 306-7; renumbered to C.M.C. 306-13, eff. Jan. 1, 1972; a. Ord. No. 337-1979, eff. Aug. 1, 1979; a. Emer. Ord. No. 0076-2023, §§ 1, 2, eff. March 8, 2023)

Sec. 306-15. Department Setup—Within Appropriation.

Each department shall, with the approval of the appointing authority, employ such officers and employees as shall be necessary for the conduct of the work of the department, provided that the total setup of salaries and wages of such department shall not be in excess of the total amount appropriated for such purpose.
(C.O. 306-8; renumbered to C.M.C. 306-15, eff. Jan. 1, 1972)

Sec. 306-17. Special Assignments.

Whenever the appointing authority finds it necessary in the interest of efficient administration to assign an employee a responsibility beyond that of the employee's classification, the appointing authority may designate the employee to receive a special assignment premium in addition to regular compensation, but such designations shall be made in accordance with rules and regulations prepared by the personnel officer and approved by the city manager setting forth criteria to be met in order to qualify for a special assignment premium.

The personnel officer shall review every proposed special assignment premium for (1) employees appointed by the city manager and (2) employees appointed by the various independent boards and commissions of the city, and shall approve all designations for special assignment premiums that are in conformance with the criteria set forth in

the rules and regulations. No special assignment premiums shall be granted without such approval.

The amount of such premium pay shall be determined by an evaluation of the additional responsibility assigned and shall be designated as follows:

Special Assignment 1 - $.135 an hour ($5.40 a week)

Special Assignment 2 - $.164 an hour ($6.56 a week)

Special Assignment 3 - $.22 an hour ($8.80 a week)

Special Assignment 4 - $.305 an hour ($12.20 a week)

Special Assignment 5 - $.39 an hour ($15.60 a week)

Special Assignment 6 - $.475 an hour ($19.00 a week)

Special Assignment 7 - (Building craftsmen assigned as Leadmen) - $.104 an hour ($4.16 a week)

Special Assignment 8 - (Painters assigned to painting building exteriors 40 feet in height or over, tanks under 40 feet in height, or bridges under 60 feet in height) - Permanent employee - $.132 an hour ($5.28 a week).

Special Assignment 9 - (Painters assigned to painting building exteriors 40 feet in height or over, tanks under 40 feet in height, or bridges under 60 feet in height) - Seasonal employee - $.15 an hour.

Special Assignment 10 - (Spray Painter) - Permanent employee - $.377 an hour ($15.08 a week).

Special Assignment 11 - (Spray Painter) - Seasonal employee - $.40 an hour.

Special Assignment 12 - (Painters assigned to painting tanks over 40 feet in height, or bridges 60 feet in height or more or employees assigned to sandblasting) - Permanent employee - $.572 an hour ($22.88 a week).

Special Assignment 13 - (Painters assigned to painting tanks over 40 feet in height, or bridges 60 feet in height or more or employees or employees assigned to sandblasting) - Seasonal employee - $.65 an hour.

Special Assignment 14 - (Civil Engineering Survey Crew, underground surveying in sewers) - $3.00 an hour ($120.00 a week).

Special Assignment 15 - (Code enforcement - Litter Control Meetings)- $0.50 an hour ($20 a week).

Special Assignment 16 - (Employees assigned to GCWW crews who are assigned responsibilities beyond that of their classification while working on lead service line replacement.) $3.15 an hour ($126 a week).

Any such designation shall be temporary and terminable at the discretion of the appointing authority.

(C.O. 306-10; a. Ord. No. 175-1957, eff. Apr. 24, 1957; a. Ord. No. 450-1958, eff. Jan. 4, 1959; a. Ord. No. 446-1959, eff. Jan. 3, 1960; a. Ord. No. 461-1961, eff. Dec. 31, 1961; a. Ord. No. 338-1962, eff. Sept. 30, 1962; a. Ord. No. 250-1963, eff. June 30, 1963; a. Ord. No. 38-1964, eff. Feb. 2, 1964; a. Ord. No. 338-1965, eff. Aug. 1, 1965; a. Ord. No. 20-1969, eff. Jan. 1, 1969; a. Ord. No. 22-1970, eff. Jan. 4, 1970; renumbered to C.M.C. 306-17, eff. Jan. 1, 1972; a. Ord. No. 80-1971, eff. Feb. 28, 1971; a. Ord. No. 433-1975, eff. Sept. 10, 1975; a. Ord. No. 169-1978, eff. Apr. 16, 1978; a. Ord. No. 227-1978, eff. June 7, 1978; a. Ord. No. 4-1979, eff. Dec. 24, 1978; a. Ord. No. 337-1979, eff. Aug. 1, 1979; a. Ord. No. 267-2019(Emer.), §§ 1, 2, eff. June 26, 2019)

Sec. 306-19. Emergency Employee.

Whenever the appointing authority finds it necessary, in the interest of efficient administration, to hire a new employee in an established employment classification for a period of 30 days or less, the appointing authority is authorized to pay such employee on an hourly rate of compensation, such hourly rate to be equivalent to one-fortieth of the beginning weekly rate of the classification to which the employee has been appointed.

An employee appointed on this hourly rate basis shall be paid only for hours actually worked, and, if such work includes overtime, the employer shall be compensated for such overtime as the department head may prescribe in accordance with Section 308-7, herein.
(Sec. 306-11; ordained by Ord. No. 462-1961, eff. Jan. 27, 1962; renumbered to C.M.C. 306-19, eff. Jan. 1, 1972; a. Ord. No. 337-1979, eff. Aug. 1, 1979)

Sec. 306-21. Reimbursement for Legal Expenses.

The city manager, upon recommendation of the city solicitor and the appropriate department head, and the board of park commissioners, board of health, city planning commission and public recreation commission, upon recommendation of the city solicitor, may reimburse an employee prosecuted in the municipal court (criminal division) upon a private warrant based on actions of the employee, judged by the city manager, board or commission to be in the proper performance of official duties, for expenses incurred in obtaining legal counsel, but only in those cases which, in the opinion of the city manager, board or commission, reasonably required the employment of defense counsel and in such cases, only to the extent of the reasonable value of the legal services rendered as certified by the city solicitor.
(Sec. 306-12; ordained by Ord. No. 437-1962, eff. Dec. 15, 1962; renumbered to C.M.C. 306-21, eff. Jan. 1, 1972; a. Ord. No. 143-1972, eff. May 12, 1972)

Sec. 306-23. Shift Differential.

Except as herein provided, any employee assigned to work a tour of duty which ends between 6:00 p.m. and 12:00 p.m. inclusive shall receive a shift differential of $0.20 per hour in addition to regular pay.

Any employee assigned to work a tour of duty which ends after 12:00 p.m. (midnight) and before 10:00 a.m. shall receive a shift differential of $0.35 per hour in addition to regular pay.

This section shall not apply to sworn personnel in the fire division except for those sworn personnel assigned to a 40 hours per week schedule who shall receive shift differential.

This section shall also not apply to the classifications of airport service supervisor, city hall cleaning supervisor, and lodge caretaker.
(Sec. 306-13; ordained by Ord. No. 339-1965, eff. Aug 4, 1965; a. Ord. No. 8-1967, eff. Jan. 1, 1967; a. Ord. No. 19-1969, eff. Jan. 1, 1969: a. Ord. No. 24-1969, eff. Jan. 1, 1969; a. Ord. No. 19-1970, eff. Jan. 4, 1970; a. Ord. No. 38-1970, eff. Feb. 8. 1970; a. Ord. No. 431-1970, eff. Dec. 30, 1970; a. Ord. No. 81-1971, eff. Feb. 28, 1971; a. Ord. No. 265-1971, eff. July 4, 1971; renumbered to C.M.C. 306-23, eff. Jan. 1, 1972; a Ord. No. 269-1976, eff. June 23, 1976; a. Ord. No. 85-1977, eff. Mar. 23, 1977; a. Ord. No. 337-1979, eff. Aug. 1, 1979; a. Ord. No. 417-81, eff. Sept. 30, 1981; a. Ord. No. 417-1981, eff. Sept. 30, 1981; a. Ord. No. 476-1981. eff. Nov. 18, 1981)

Editor's note—Section 3 of Ord. No. 417-1981 specified that the provisions of § would be effective on Aug. 30, 1981.

Sec. 306-25. Sub-Classifications.

Whenever the duties of a particular position are sufficiently different to require different qualifications and separate recruitment, the civil service commission may, at its discretion, establish sub-classifications.
(Sec. 306-14; ordained by Ord. No. 339-1965, eff. Aug. 4, 1965; renumbered to C.M.C. 306-25, eff. Jan. 1, 1972)

Sec. 306-27. Special Allowance for Physicians.

A police physician or fire physician who is furnished a city car, shall furnish the gasoline and oil. Public health physicians assigned to make emergency calls shall receive $7 a call on Saturdays and holidays, and $10 a call on Sundays.
(Sec. 306-15; ordained by Ord. No. 339-1965, eff. Aug. 4, 1965; a. Ord. No. 529-1965, eff. Jan. 2, 1966; renumbered to C.M.C. 306-27, eff. Jan. 1, 1972; a. Ord. No. 337-1979, eff. Aug. 1, 1979)

Sec. 306-29. Special Allowance for Public Works Construction Inspectors.

A public works construction inspector who is required to furnish his or her own car, shall be paid $2 per week in lieu of mileage allowance in addition to regular compensation.
(Sec. 306-16; ordained by Ord. No. 7-1967, eff. Jan. 1, 1967; renumbered to C.M.C. 306-29, eff. Jan. 1, 1972; a. Ord. No. 337-1979, eff. Aug. 1, 1979)

Sec. 306-31. Reimbursement for Use of Private Vehicles on Official City Business.

Any employee of the city of Cincinnati may be reimbursed for the use of a private vehicle on official city business upon approval of the department head.

Reimbursement shall be made for mileage at a rate established by the finance director to reflect average operating and maintenance expenses. No payment for any single month shall exceed such maximum limits as may be established by the director of finance. The director of finance shall advise council of any proposed change in rates or maximum limits before such change shall go into effect.

Any employee claiming reimbursement on a mileage basis shall submit a voucher for the mileage claimed and a complete list of trips made and distances traveled, according to regulations established by the director of finance. The finance director is authorized to require any additional necessary information and to adopt additional regulations for the use of private and city vehicles on official city business.
(C.O. 106-4; a. Ord. No. 363-1958, eff. Oct. 15, 1958; a. Ord. No. 87-1967, eff. Mar. 8, 1967; a. Ord. No. 4-1968, eff. Jan. 4, 1968; a. Ord. No. 315-1969, eff. Sept. 4, 1969; a. Ord. No. 17-1970, eff. Jan. 4, 1970; renumbered to C.M.C. 306-31, eff. Jan. 1, 1972; a. Ord. No. 93-1973, eff. Mar. 7, 1973; a. Ord. No. 144-1974, eff. Apr. 10, 1974; a. Ord. No. 34-1977, eff. Feb. 9, 1977; a. Ord. No. 75-1977, eff. Mar. 16, 1977; a. Ord. No. 86-1977, eff. Mar. 23, 1977; a. Ord. No. 207-1977, eff. Mar. 25, 1977; a. Ord. No. 337-1979, eff. Aug. 1, 1979)

Sec. 306-32. Monthly Transportation Plans.

Notwithstanding the limitations provided by Section 306-31, when a city employee's responsibilities require that the employee be available for service without regard for normal operating schedules:

(a) The city manager may authorize payment of a reasonable monthly allowance to any administrative official or

other designated employee for the use of the employee's private vehicle in the performance of city duties;

(b) The city manager or the person designated to act by the city manager may authorize employees to use a city vehicle on a 24-hour basis in accordance with regulations issued by the city manager:

(1) Provided the employee pays to the city a reasonable monthly allowance as fixed by the director of finance for the use of the vehicle on routine trips to and from work; or

(2) Free of charge if the vehicle is used or likely to be used to respond to emergencies for the city.

(C.M.C. 306-32; ordained by Ord. No. 207-1977, eff. May 25, 1977; a. Ord. No. 337-1979, eff. Aug. 1, 1979; a. Ord. No. 230-1980, eff. May 21, 1980)

Sec. 306-33. Police Petty Expenditures; Vouchers.

The director of finance is authorized and directed to draw his warrants for the reimbursement of such public officers and members of the police department who are assigned by the chief of police to the duties of collecting evidence of gambling, liquor violations and similar criminal offenses for necessary expenses incurred by them in the proper performance of such duty in purchasing such articles as cigars, cigarettes, soft drinks, candy and similar things.

The vouchers for payment as authorized herein shall be accompanied by itemized lists presented by the officers or members of the department making such expenditures, containing a statement of the amount spent, places where spent, and any other information that may be required by the chief of police. Said lists shall be approved by the chief of police before payment is made.
(C.O. 106-5; renumbered to C.M.C. 306-33, eff. Jan. 1, 1972)

Sec. 306-34. Telephone Reimbursement to Fire Chief and Assistants.

The city manager, upon recommendation of the director of safety, is authorized to reimburse the fire chief and five assistant fire chiefs at the rate per month in effect by order of the Public Utilities Commission of Ohio for service classified as one party flat rate residence telephone service which the officers will provide in their homes.
(Ordained by Ord. No. 362-1957, eff. Oct. 18, 1957 as uncodified ordinance; a. Ord. No. 146-1962, eff. May 25, 1962; a. Ord. No. 318-1970, eff. Nov. 13, 1970; reordained as C.M.C. 306-34, eff. Jan. 1, 1972; a. Ord. No. 337-1979, eff. Aug. 1, 1979)

Sec. 306-35. Telephone Reimbursement to Police.

The city manager, upon recommendation of the director of safety, is authorized to reimburse certain police officers at the rate per month in effect by order of the Public Utilities Commission of Ohio for service classified as one party flat rate residence telephone service which the officers will provide in their own homes.
(Ordained by Ord. No. 19-1954, eff. Feb. 26, 1954 as uncodified ordinance; a. Ord. No. 318-1970, eff. Nov. 13, 1970; reordained as C.M.C. 306-35, eff. Jan. 1, 1972; a. Ord. No. 337-1979, eff. Aug. 1, 1979)

Sec. 306-37. Health Care Benefits.

(a) The city manager may enter into agreements pursuant to negotiations or competitive bidding for the purpose of providing health care benefits coverage for periods not to exceed five years.

(b) Health care benefits shall be provided for employees upon the date of hire for employees in the employment classifications under Divisions 0, 5, 7, 8, and 9 of Chapter 307 of the Cincinnati Municipal Code, and upon completion of six months' calendar service for employees under Divisions 1 and 2 of Chapter 307 of the Municipal Code, as follows:

(1) For active full-time and three-quarter-time city employees represented under a collective bargaining agreement with the city: As provided by such agreement.

(2) For active full-time and three-quarter-time city employees in the employment classification under Divisions 0, 5, 7, 8, and 9 of Chapter 307 of the Cincinnati Municipal Code: Hospitalization, surgical, medical, dental and vision coverage as determined by the city manager.

(3) For active retired employees of the city retirement system, surviving spouses, dependent children and orphans receiving survivor's benefits: Hospitalization, surgical and medical coverage pursuant to Section 203-43 of the Cincinnati Municipal Code.

(4) For members of city council and the mayor: Hospitalization, surgical and medical coverage: At the election of the member or mayor, provided that the cost of the coverage in excess of that permitted by the charter shall be paid by the member of council or mayor.

(c) Hospitalization, surgical and medical coverage may be provided through a health maintenance organization at the election of any person eligible for such coverage provided that any difference in cost shall be paid by the person receiving such benefits.

(d) The director of finance is authorized to deduct from the salary or wages of any city employee, member of council, and mayor such amount as may be authorized by such employee, member of council, or mayor in order to enable the director to pay the remaining or entire cost of such coverage in accordance with paragraph (b) above.

(e) For purpose of this section, "cost of coverage" shall mean the cost of claims, administrative services and insurance premiums. The director of finance shall annually determine the cost of coverage per employee, council member, or mayor for purposes of computing payroll deductions.

(f) The city manager may authorize the extension of temporary health care benefits not inconsistent with the provisions of this section for part-time employees if in the judgment of the city manager such coverage is desirable and necessary for the efficient administration of services.

(Sec. 306-37; ordained by Ord. No. 331-1967, eff. Sept. 7, 1967; a. Ord. No. 79-1971, eff. Mar. 10, 1971; renumbered to C.M.C. 306-37, eff. Jan. 1, 1972; a. Ord. No. 103-1972, eff. Jan 1, 1972; a. Ord. No. 243-1972, eff. July 7, 1972; a. Ord. No. 278-1974, eff. June 19, 1974; a. Ord. No. 337-1979, eff. Aug. 1, 1979; a. Ord. No. 502-1980, eff. Dec. 17, 1980; a. Ord. No. 92-1983, eff. Mar. 9, 1983; a. Ord. No. 30-1985, eff. Jan. 16, 1985; a. Ord. No. 290-1990, eff. July 5, 1990; a. Ord. No. 341-1992, passed Aug. 5, 1992; a. Ord. No. 434-1998, eff. Dec. 2, 1998; a. Ord. No. 472-1999, eff. Dec. 8, 1999; Emer. Ord. No. 486-2012, § 1, eff. Jan. 1, 2013)

Sec. 306-38. Life Insurance Benefit.

A term life insurance benefit in the amount of $50,000 shall be provided for all permanent

Division 0, 5, 7, 8 and 9 employees in active city service who have attained six calendar month's service.
(Ordained by Ord. No. 434-1998, eff. Dec. 2, 1998)

Sec. 306-39. Police and Fire Death Benefit.

(a) Upon receipt of the proof of death of an active sworn employee of the Cincinnati Fire Division or retired member of the Police and Firemen's Disability and Pension Fund, including retired members from both the police division and fire division, whose death occurred subsequent to January 1, 1961, there shall be paid to the surviving spouse of such deceased member a death benefit of $1,000. If there is no surviving spouse, then the death benefit shall be paid to the estate of such deceased member.

(b) Upon receipt of the proof of death of an active sworn employee of the Cincinnati police division or park police whose death occurred subsequent to December 23, 1978, there shall be paid to the surviving spouse of such deceased member a death benefit of $10,000. If there is no surviving spouse, then the death benefit shall be paid to the estate of such deceased member.
(Ordained by Ord. No. 52-1961, eff. Feb. 1, 1961 as uncodified ordinance; reordained as C.M.C. 306-39, eff. Jan. 1, 1972; a. Ord. No. 271-1976, eff. June 23, 1976; a. Ord. No. 94-1979, eff. Mar. 21, 1979)

Sec. 306-40. Emblems of Office—Police and Fire Officers Killed in the Line of Duty.

The badge and service revolver of a member of the Cincinnati police division killed in the line of duty or active military duty shall be given, upon request, to the surviving spouse or if there is no surviving spouse, then to the personal representative of the estate of such police officer.

The badge and badge number of any police officer who is killed in the line of duty or active military duty shall be retired from use by the Cincinnati police division.

The badge and fire helmet of a member of the Cincinnati fire division killed in the line of duty or active military duty shall be given, upon request, to the surviving spouse or if there is no surviving spouse, then to the personal representative of the estate of such fire fighter.

The badge and badge number of any fire fighter who is killed in the line of duty or active military duty shall be retired from use by the Cincinnati fire division.
(Ordained by Ord. No. 367-1980, eff. Oct. 10, 1980; a. Ord. No. 094-2010, § 1, eff. April 24, 2010)

Sec. 306-41. Payment of Sick Leave and Terminal Pay Upon Death.

The director of finance is hereby authorized and directed to draw his warrant on the city treasurer, upon the death of an employee, for the payment of accumulated sick leave and terminal pay in a lump sum under regulations established pursuant to Section 308-13.
(Ordained by Ord. No. 45-1963, eff. Mar. 1, 1963 as uncodified ordinance; reordained as C.M.C. 306-41, eff. Jan. 1, 1972)

Sec. 306-42. Deferred Compensation Matching Payment.

For employees in Divisions 0, 5, 7, 8 and 9 who participate in either the International City Manager's Association (ICMA) Retirement Corporation's Deferred Compensation Plan or the State of Ohio Deferred Compensation Plan, the City will match on a one-for-one basis, up to a maximum amount per

year as authorized by the city manager, the employee's contribution to the deferred compensation plan.
(Ordained by Ord. No. 434-1998, eff. Dec. 2, 1998)

Sec. 306-43. Union Dues Deduction.

The director of finance is hereby authorized to deduct from the salary or wages of any city employee who belongs to a labor union dues of such labor union as the city employee voluntarily subscribes to in a written authorization filed with the director of finance requesting such deduction.

(a) The director of finance shall promulgate rules and regulations of the administration of this voluntary check-off of wages including, but not limiting it to, the preparation of necessary forms and the times for filing of the authorization for the deductions, or the time for the filing of the cancellation of a deduction.

(b) The director of finance is hereby further authorized to draw a warrant on the city treasurer in favor of the labor union designated for all the amounts deducted under the authority granted in this section.

(c) Each labor union shall pay for the membership dues deducted from the salary of city employees who are members thereof and have authorized such deduction the sum of $2.50 a month if less than 100 of its members have authorized deductions, $5 a month if more than 99 but less than 500 of its members have authorized deductions, $10 a month if more than 499 but less than 1,000 of its members have authorized deductions, $15 a month if 1,000 or more of its members have authorized deductions and $10 a month for each additional 1,000 members having authorized deductions. Provided that no payment for membership dues deduction shall be required of the Fraternal Order of Police, Queen City Lodge No. 69 or the American Federation of State, County, and Municipal Employees, Ohio Council No. 8.

(Ordained by Ord. No. 255-1957, eff. July 26, 1957 as uncodified ordinance; a. Ord. No. 445-1959, eff. Jan. 29, 1959; a. Ord. No. 438-1960, eff. Jan. 28, 1961 reordained as C.M.C. 306-43, eff. Jan. 1, 1972; a. Ord. No. 270-1976, eff. June 23, 1976; a. Ord. No. 104-1979, eff. Mar. 28, 1979)

Sec. 306-44. Repealed.

(Ordained by Ord. No. 25-1987, eff. Jan. 22, 1987; repealed by Ord. No. 376-1998, eff. Oct. 21, 1998)

Sec. 306-45. Repealed.

(Ordained by Ord. No. 465-1954, eff. Sept. 26, 1954 as uncodified ordinance; reordained as C.M.C. 306-45, eff. Jan. 1, 1972; repealed by Ord. No. 376-1998, eff. Oct. 21, 1998)

Sec. 306-46. Repealed.

(Ordained by Ord. No. 69-1986, eff. Mar. 22, 1986; repealed by Ord. No. 376-1998, eff. Oct. 21, 1998)

Sec. 306-47. Credit Union Deductions.

The director of finance is hereby authorized to deduct from the salary or wages of any city employee such amount transmitted to a federal credit union as the city employee voluntarily requests to be withheld in a written authorization filed with the director of finance requesting such deduction.

The director of finance shall promulgate rules and regulations for the administration of the voluntary deduction from wages, including but not limited to the preparation of

necessary forms, the time for filing the authorization for deduction, the time for filing the cancellation of deduction, and the handling of deductions for the purpose of buying United States government savings bonds.

The director of finance is further authorized to draw a warrant on the city treasurer in favor of such credit union as is named by city employees in their payroll deduction authorizations for the amounts deducted under the authority granted in this section.

Each participating federal credit union shall assume responsibility for the purchase of United States government savings bonds by any employee desiring to purchase such bonds through payroll deductions. No federal credit union will be eligible for participation in payroll deduction which has not agreed to assume such responsibility at the request of any city employee, whether or not the employee is a member of the credit union.
(Ordained by Ord. No. 145-1965, eff. May 7, 1965 as uncodified ordinance; reordained as C.M.C. 306-47, eff. Jan. 1, 1972)

Sec. 306-48. Cincinnati Park Foundation, Inc.

The director of finance is hereby authorized to deduct from the salary or wages of any city employee such amounts as may be authorized and agreed to by such employee as a contribution to the Cincinnati Park Foundation, Inc.

The form of authorization and consent for deduction from salaries or wages of employees who desire to contribute to the Cincinnati Park Foundation, Inc. shall be approved by the director of finance.

The director of finance is further authorized to draw a warrant on the city treasurer in favor of the Cincinnati Park Foundation, Inc. in amounts equal to the total deductions made in accordance with this section.
(Ordained by Ord. No. 167-1996, eff. May 30, 1996)

Sec. 306-49. New Careers Program Trainee Pay Rates.

Whenever the appointing authority has appointed individuals to participate in the New Careers Program and the city is being reimbursed by the Community Action Commission for their full salaries, or whenever the city provides comparable training at its own expense, the appointing authority shall set the pay for such individuals between a minimum of $1.40 per hour and a maximum of $2 per hour based upon the position for which the person is training, previous earning capacity and the length of the training program.
(Sec. 306-18; ordained by Ord. No. 457-1967, eff. Jan. 12, 1968; a. Ord. No. 63-1968, eff. Feb. 14, 1968; renumbered to C.M.C. 306-49, eff. Jan. 1, 1972)

Sec. 306-50. Charitable Solicitation Campaigns.

(a) *Legislative Findings—Government Interests.* This legislation is enacted to authorize the creation of an employee charitable solicitations program that is reasonably related to the following governmental interests:

(1) To accommodate and assist city employees' preference for and tradition of funding charitable service providers through a payroll deduction process;

(2) To promote the provision of basic health and human welfare services to those most in need by funding methods that are a legitimate alternative to the use of government funds;

(3) To minimize workplace disruption and distractions associated with charitable solicitations of city employees;

(4) To promote the accountability of organizations eligible to participate in the program for the legitimate, effective, and efficient provision of charitable services and to facilitate the ability of the city to monitor and manage the program efficiently;

(5) To concentrate the limited funds generated by the program on those charitable organizations that directly serve basic human needs to maximize the effective use and impact of such funding;

(6) To concentrate the expenditure of such funding by eligible charitable organizations in the Cincinnati area to retain the maximum impact derived from such expenditures and to ensure that such expenditures are made in the general area where city employees live and work; and

(7) To provide specific, fair, non-discriminatory eligibility guidelines for charities seeking to solicit city employees and to provide clear administrative guidelines for the effective and efficient management of the program.

(b) *Legislative Findings—General.* It is hereby found and determined that city employees desire an opportunity to contribute, by payroll deduction, to human health and welfare service organizations that primarily serve Cincinnati and Hamilton County to provide direct benefits to human beings that the city may not otherwise be able to provide and that the Supreme Court of the United States, in the case Cornelius v. NAACP (1985), determined that a governmental employer wishing to permit solicitation of its employees for charitable causes must provide reasonable eligibility guidelines for charitable organizations seeking contributions from its employees.

It is further found that the city administration has developed guidelines for the charitable solicitation of city employees that permit employee solicitation by charitable organizations in a fair and non-discriminatory manner which minimize distractions and interruptions to the workplace and promote the manageability of the program by measures that include a requirement of a minimum level of employee giving for those organizations that seek to participate and require accountability for fund raising and expenditures by the charitable organizations that participate in the city's program.

It is further found that it is in the city's interest to permit charitable giving from city employees to those organizations that provide substantial health and human welfare services primarily within the city of Cincinnati and Hamilton County which will reduce the cost to taxpayers for the provision of such services and will permit employees to see their donations going to charities they care about and see the results of their giving, concentrate limited financial resources to promote more effective charitable services, enhance the city's ability to monitor such services, and to maximize the local economic impact of expenditures associated with such services.

It is further found that it is reasonable to exempt those charitable organizations that have previously participated in the payroll deduction plan because of their reasonable expectation of continued participation and those charitable organizations that exist to assist or promote city or joint city/county government departments or agencies because of the direct benefit to the citizens of Cincinnati and Hamilton County.

It is further found and determined that adoption of a policy and procedure for the management of charitable solicitation of city employees constitutes a public purpose.

(c) *Legislative Finding—Health and Human Welfare Services.* It is further found that the limitation of eligibility to those charities that provide health and human welfare services is reasonably related to the government interests identified in this legislation.

(d) *Definition—Health and Human Welfare Services Organization.* As used herein and in the administrative policies and procedures authorized hereby, a health and human welfare service organization is defined as a charitable organization that provides:

(1) services that directly benefit human beings in need; and

(2) services that consist of care, research or education to meet human health, social adjustment, or rehabilitation needs; relief for victims of natural disasters and other catastrophes; assistance, including personal legal advocacy, to those who are impoverished and in need of food, shelter, clothing and other basic human welfare services; safety, foster and protective services for children and adults; assistance for home management and maintenance; transportation, referral and counseling, and adoption services; and assistance for the elderly.

(e) *Charitable Campaigns.* The city manager is authorized to implement and operate charitable solicitations campaigns for city employees in accord with the terms of this section. The city manager shall promulgate policies and procedures for the effective and efficient operation of the program and such modifications as may be required, consistent with and reasonably related to the governmental interests identified herein.

The director of finance shall deduct from the salary or wages of any city employee such amounts as may be authorized and agreed to by such employee as contributions to eligible participants in charitable solicitations campaigns, as chosen or designated by the charitable solicitations steering committee in accordance with the policies and procedures for charitable solicitation campaigns of employees, a copy of which is on file in the office of the director of finance.

The form of authorization and consent for charitable deductions from salaries or wages of city employees who desire to contribute to eligible participants in the charitable solicitations campaigns shall be subject to the approval of the director of finance.

The director of finance shall draw a warrant on the city treasurer in favor of eligible participants in charitable solicitations campaigns in amounts equal to the total deductions from the salaries or wages of city employees made in accordance with the provisions of this section.
(Ordained by Ord. No. 376-1998, eff. Oct. 21, 1998)

Sec. 306-51. Citizens Committee on Youth, Neighborhood Youth Corps.

The city manager is authorized to enter into an agreement with the Citizens Committee on Youth providing for services to be rendered by the enrollees of the Neighborhood Youth Corps Work Training Program to the City of Cincinnati, its agencies, boards and commissions, upon such terms as council shall, in each case, approve.

(a) Personnel employed by the Citizens Committee on Youth in the Neighborhood Youth Corps Work Training Program and providing services to agencies of the City of Cincinnati, shall not be construed as an employee in the classified or unclassified services of the City of Cincinnati, and furthermore, no benefits, rights, or seniority credits shall accrue from enrollment in said program to the enrolled in case of subsequent appointment by the City of Cincinnati in its classified or unclassified services. For the purpose of handling funds of the Citizens Committee on Youth, there is hereby established the Federal Youth Training Fund, Account No. 53-21.

(b) The city manager, the board of park commissioners, and the recreation commission are hereby authorized to furnish to the Citizens Committee on Youth, certain facilities owned by the City of Cincinnati, including but not limited to hand tools, fixtures and equipment, and the services of certain city employees, as the same may be available, as determined by the city manager, the board of park commissioners and the recreation commission. Such facilities and equipment and supportive services of said employees, shall be furnished on a cost basis, and credited as a non-cash contribution and supportive service from the City of Cincinnati to the Furtherance of the Neighborhood Youth Corps Work Training Program carried on by the Citizen Committee on Youth in the Cincinnati area, as approved and funded by the Office of Economic Opportunity.

(c) The director of finance of the City of Cincinnati is authorized to act as disbursing agent for the Citizens Committee on Youth in the accomplishment of Neighborhood Youth Corps Work Training Program as such program relates to service provided to the City of Cincinnati by enrollees of said program.

(d) It is the intent of city council that facilities and services which the city manager, the board of park commissioners and the recreation commission are hereby authorized to furnish to the Citizens Committee on Youth be such facilities and services as fully qualify as a non-federal contribution to the Neighborhood Youth Corps Work Training Program as provided for in Public Law No. 88-452, and that the value of such facilities and services shall constitute the City of Cincinnati's contribution to the program as provided for in Public Law No. 88-452.

(Ordained by Ord. No. 213-1965, eff. May 26, 1965 as uncodified ordinance; a. Ord. No. 304-1965, eff. July 8, 1965; reordained as C.M.C. 306-51, eff. Jan. 1, 1972)

Cross reference—Boards, commissions, institutions, tit. II.

Sec. 306-53. Repealed.

(Ordained by Ord. No. 498-1954, eff. Dec. 17, 1954 as uncodified ordinance; a. Ord. No. 371-1958, eff. Nov. 21, 1958; a. Ord. No. 404-1964, eff. Nov. 13, 1964; a. Ord. No. 119-1967, eff. Apr. 28, 1967; a. Ord. No. 300-1971, eff. Oct. 1, 1971; reordained as C.M.C. 306-53, eff. Jan. 1, 1972; a. Ord. No. 34-1979, eff. Jan. 24, 1979; a. Ord. No. 41-1989, eff. Feb 1, 1989; r. Ord. No. 145-1990, eff. Apr. 25, 1990)

Sec. 306-61. Specific Policy for Building Crafts.

It shall be the policy, in regard to the building craft employees to freeze wages until June 1, 1983, and then to reduce the base wage to 65 percent of the union contracted wage, and such rate shall be adjusted to the biweekly rate. Beginning June 1, 1983, city building craft employees shall be paid 50 percent of contracted union increases until such 65 percent base wage rate is attained.

The term "building craft employees" shall mean employees whose salaries are set forth in Division 3, Chapter 307 of the Cincinnati Municipal Code.

(Adopted by Resolution, eff. Oct. 15, 1941; reaffirmed by Resolution of May 12, 1954; ordained as C.M.C. 306-61, eff. Jan. 1, 1972; a. Ord. No. 56-1973, eff. Mar. 1, 1973; a. Ord. No. 91-1983, eff. Mar. 9, 1983)

Sec. 306-63. Deductions for Wage Assignments to Public Agencies.

The director of finance is hereby authorized to deduct from the salary or wages of any city employees such amounts as may be authorized by court order or agreed to by such employees as an assignment of wages to any public agency together with an amount equal to one percent of such amounts as a charge for the service.

The director of finance is hereby further authorized to draw a warrant on the city treasurer in favor of the public agency designated in such order or assignment for the amounts deducted pursuant to such order or assignment.

(C.M.C. 306-63; ordained by Ord. No. 369-1976, eff. Sept. 3, 1976)

Sec. 306-64. Pre-Paid Legal Services, Inc.

The director of finance is hereby authorized to deduct from the salary or wages of any city employee such amounts as may be authorized and agreed to by such employee as a payment to Pre-Paid Legal Services, Inc.

The form of authorization and consent for deduction from salaries or wages of such employees shall be approved by the director of finance.

The director of finance is further authorized to draw a warrant on the city treasurer in favor of Pre-Paid Legal Services, Inc. in amounts equal to the total deductions made in accordance with this section.
(Ordained by Emer. Ord. No. 314-2004, eff. 9-22-04)

Sec. 306-65. Compensation of City Manager.

The compensation of the city manager shall be set by council. The annual salary shall be set by ordinance of council. The city manager shall receive all benefits provided to Division 5 executive employees with the following additional benefits or exceptions.

(a) *Transportation:* The city will provide an automobile for use on city business including all operating and maintenance costs;

(b) *Vacation:* The city manager shall be credited upon appointment with a balance of 160 hours of vacation and shall accrue vacation credit at the rate of 6.5 hours per pay period (approximately 21 days per year);

(c) *Sick Leave:* The city manager shall be credited upon appointment with a balance of 480 hours of sick leave. Additional sick leave shall not accrue until the beginning of the third year of employment at which time it will accrue at the rate of 2 hours per week. The initial 480 hours shall not be used to compute sick leave buyback until such time as the benefit would normally accrue to a Division 5 executive employee based upon pay periods worked and sick leave used;

(d) *Health Care Benefits:* The city manager shall receive health care benefits which are the same or equal to those provided for Division 5 executive employees hired after January 1, 1985. They shall become effective immediately upon appointment;

(e) *Performance Review:* At least one performance and salary review shall be conducted six months after appointment and annually thereafter;

(f) *Retirement:* The city manager shall be enrolled as a member of the City Retirement System or the Ohio Public Employees Retirement System subject to applicable state laws and regulations;

(g) *Moving Expenses:* The city shall pay actual and incidental expenses, including storage costs and insurance charges, for moving the city manager, his family and personal property from the San Francisco Bay Area to Cincinnati;

(h) *Transition Expenses:* The city shall pay actual transportation costs for trips to Cincinnati and interim living expenses associated with relocation, not to exceed a total sum of $6,000;

(i) *Termination Benefits:* In the event the city manager's employment is terminated other than for cause while he remains willing and able to discharge his duties as city manager, then, in that event, city shall pay a lump sum in cash of $70,000. For purposes of this benefit "termination" shall include involuntary resignation. For the six-month period following such termination, he shall provide consulting services as required for any transitional matters or litigation arising or pending during his term. Any associated expenses for

such consulting services shall be paid by city. No obligation to pay this benefit shall arise if he voluntarily resigns or if the termination is for cause which shall include:

(1) Willful and repeated neglect to perform the duties of city manager;

(2) Conviction of any employment related criminal act;

(3) Willful conduct, other than criminal, constituting a substantial violation of applicable standards of ethics; and

(4) Conviction of any felony.

(Ordained by Ord. No. 75-1986, eff. Feb. 26, 1986; a. Ord. No. 340-1990, eff. Sept. 16, 1990)

Sec. 306-66. Greater Cincinnati Police Historical Museum.

The director of finance is hereby authorized to deduct from the salary or wages of any city employee such amounts as may be authorized and agreed to by such employee as a payment to the Greater Cincinnati Police Museum.

The form of authorization and consent for deduction from salaries or wages of such employees shall be approved by the director of finance.

The director of finance is further authorized to draw a warrant on the city treasurer in favor of Greater Cincinnati Police Museum in amounts equal to the total deductions made in accordance with this section.

(Ordained by Emer. Ord. No. 240-2006, § 1, eff. Aug. 2, 2006)

Sec. 306-67. Cincinnati Fire Museum.

The director of finance is hereby authorized to deduct from the salary or wages of any city employee such amounts as may be authorized and agreed to by such employee as a payment to the Cincinnati Fire Museum.

The form of authorization and consent for deduction from salaries or wages of such employee shall be approved by the director of finance.

The director of finance is further authorized to draw a warrant upon the city treasurer in favor of the Cincinnati Fire Museum in amounts equal to the total deductions made in accordance with this section.

(Ordained by Emer. Ord. No. 374-2008, § 1, eff. Nov. 5, 2008)

Sec. 306-68. Voluntary Donations to City of Cincinnati Cost Savings Days Program.

The director of finance is hereby authorized to deduct from the salary of wages of any city employee such amounts as may be authorized and agreed to by the official or employee as a voluntary payment to the City of Cincinnati Cost Savings Days program.

The form of authorization and consent for deduction from salaries or wages of such employee shall be approved by the director of finance.

The director of finance is further authorized to transfer such funds upon receipt into the City of Cincinnati General Fund in amounts equal to the total deductions made in accordance with this section.

(Ordained by Emer. Ord. No. 241-2009, eff. 9-2-2009)

Sec. 306-69. The Shield, Inc.

The director of finance is hereby authorized to deduct from the salary or wages of any city employee such amounts as may be authorized and agreed to by such employee as a payment to The Shield, Inc.

The form of authorization and consent for deduction from salaries or wages of such employee shall be approved by the director of finance.

The director of finance is further authorized to draw a warrant upon the city treasurer in favor of The Shield, Inc. in amounts equal to the total deductions made in accordance with this section.
(Ordained by Ord. No. 133-2017, § 1, eff. July 7, 2017)

Sec. 306-70. Voluntary Donations to Greater Cincinnati Water Works' Help Eliminate Lead Pipes ("HELP") Program.

(a) The director of finance is hereby authorized to deduct from the salary or wages of any city employee such amounts as may be authorized and agreed to by such employee as a donation to the Greater Cincinnati Water Works' Help Eliminate Lead Pipes ("HELP") Program to assist low-income residential property owners with the cost of replacement of private lead service lines.

(b) The form of authorization and consent for deduction from salaries or wages of such employee shall be approved by the director of finance.

(c) The director of finance is further authorized to draw a warrant upon the city treasurer in favor of the Greater Cincinnati Water Works' HELP Program in amounts equal to the total deductions made in accordance with this section.
(Ordained by Emer. Ord. No. 304-2017, § 1, eff. Oct. 25, 2017)

Sec. 306-71. STABLE Accounts.

(a) The director of finance is hereby authorized to deduct from the salary or wages of any city employee such amounts as may be authorized and agreed to by such employee as a payment to a designated STABLE account, which funds can be used to pay for qualified disability expenses such as education, housing, transportation, healthcare, assistive technology, basic living expenses, and other qualifying disability expenses, as authorized pursuant to state law.

(b) The form of authorization and consent for deduction from salaries or wages of such employee shall be approved by the director of finance in coordination with the Office of the Ohio Treasurer.

(c) The director of finance is further authorized to draw a warrant upon the city treasurer in favor of STABLE accounts in amounts equal to the total deductions made in accordance with this section, in coordination with the Office of the Ohio Treasurer.
(Ordained by Emer. Ord. No. 4028-2019, § 1, eff. Nov. 14, 2019)

Chapter 307

CLASSIFIED COMPENSATION SCHEDULES*

*All changes affecting Chapter 307 are kept in a card index file in the office of the clerk of council and are available for public inspection at any time during office hours.

Chapter 308

EMPLOYMENT REGULATIONS

Sec. 308-1. Weekly Rate Employees; Fractional Compensation Payable.
Sec. 308-3. Fire Force; Platoon System.
Sec. 308-5. Work Hours for Police.
Sec. 308-7. Overtime.
Sec. 308-9. Holidays for City Employees.
Sec. 308-11. Layoffs.
Sec. 308-13. Rules and Regulations, Leaves of Absence, Sick Leave, Grievances, Temporary Transfers, and Other Matters Related to Employment.
Sec. 308-15. Leaves of Absence; Military Service.
Sec. 308-17. Sick Leave.
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Sec. 308-23. Fair Employment Practices.
Sec. 308-25. Advances for Dental, Hospital and Medical Expenses.
Sec. 308-27. Special Inspection Expenses.
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Sec. 308-35. Employee Parking Permits.
Sec. 308-36. Repealed.
Sec. 308-37. Temporary Disability of Employees; Compensation.
Sec. 308-41. Personal Equipment for Police and Fire Recruits.
Sec. 308-43. Damage to Police Officers', Firefighters' and Park Police Officers' Equipment; Reimbursement Under Certain Circumstances.
Sec. 308-45. Uniform Allowances for Members of the Police and Fire.
Sec. 308-47. Service Requirement Allowance.
Sec. 308-49. Accessory and Surveillance Allowance for Police.
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Sec. 308-53. Repealed.
Sec. 308-55. Personal Equipment and Uniforms for Uniformed Water Works Employees.
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Sec. 308-59. Uniform Allowances for Nurses.
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Sec. 308-67. Reserved.
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Sec. 308-69. Uniforms for Downtown Facilities Cleaning Personnel.
Sec. 308-75. Tuition Reimbursement.
Sec. 308-77. Employee Awards System.
Sec. 308-79. Protected Employee Actions.
Sec. 308-83. Residency Requirements.
[Sec. 308-85. Extended Benefits Subsequent to Military Leave.]
Sec. 308-87. Repealed.

Sec. 308-1. Weekly Rate Employees; Fractional Compensation Payable.

When a bi-weekly rate officer or employee other than a member of the uniformed ranks of the fire division is absent on leave without pay or is laid off, suspended, or otherwise separated from the service during part of a pay period, or is a new appointee who begins work after the pay period has started, the pay for such pay period shall be determined by dividing the weekly rate by 40 hours and multiplying the result by the number of hours the officer or employee is in a pay status in that pay period.

Any member of the uniformed ranks of the fire division who loses pay for any of the above reasons shall have deducted from salary three-sevenths of the weekly rate for each 24-hour tour of duty missed during that pay period.

When an employee is to be paid for overtime work in accordance with Section 308-7, pay rates for overtime shall be computed on the same basis as stated above for fractional compensation.
(C.O. 308-16; renumbered to C.M.C. 308-1, eff. Jan. 1, 1972; a. Ord. No. 337-1979, eff. Aug. 1, 1979)

Sec. 308-3. Fire Force; Platoon System.

The fire chief shall divide the uniform fire force into platoons, and assign such platoons to a duty schedule, consistent with the Comprehensive Fire Protection Plan implemented by the council. No member of the uniform fire force shall be kept on duty for longer periods of time than those for which such member is scheduled, except in cases of emergencies declared by the fire chief.
(C.O. 308-3; a. Ord. No. 109-1975, eff. Mar. 12, 1975; reordained as C.M.C. 308-3, eff. Jan. 1, 1972; a. Ord. No. 337-1979, eff. Aug. 1, 1979)

Sec. 308-5. Work Hours for Police.

There shall be placed in full force and effect a 40-hour work week for the police division, police detention matrons and park police commencing April 1, 1956.
(Adopted by Resolution of November 2, 1965; reordained as C.M.C. 308-5, eff. Jan. 1, 1972)

Sec. 308-7. Overtime.

Overtime for employees shall be determined according to the Personnel Policies and Procedures of the City and any applicable Administrative Rules and Regulations adopted by the City Manager.

In cases of conflict with the City's Personnel Policy or Administrative regulations, overtime for employees represented by bargaining units recognized by the City and covered by labor agreements shall be determined according to the provisions of the applicable labor agreement.
(C.O. 308-9; a. Ord. No. 297-1966, eff. Sept. 2, 1966; a. Ord. No. 339-1966, eff. Oct. 14, 1966; a. Ord. No. 110-1967, eff. Apr. 21, 1967; a. Ord. No. 19-1969, eff. Jan. 1, 1969; renumbered to C.M.C. 308-7, eff. Jan. 1, 1972; a. Ord. No. 91-1973, eff. Mar. 1, 1973; a. Ord. No. 337-1979, eff. Aug. 1, 1979; repealed and reordained by Ord. No. 291-1996, eff. Oct. 18, 1996)

Sec. 308-9. Holidays for City Employees.

(a) By city employees not sworn members of the police division, fire division, or Division 1 employees presently covered by a collective bargaining agreement between the City of Cincinnati and A.F.S.C.M.E., nor any other city employees covered by the terms of a collective agreement with the City of Cincinnati:

(1) New Year's Day, January 1;

(2) Martin Luther King Day, the third Monday in January;

(3) President's Day, the third Monday in February;

(4) Memorial Day, the last Monday in May;

(5) Juneteenth, June 19;

(6) Independence Day, July 4;

(7) Labor Day, the first Monday in September;

(8) Veteran's Day, November 11;

(9) Thanksgiving Day, the fourth Thursday in November;

(10) The Friday after the fourth Thursday in November; and

(11) Christmas Day, December 25.

And, subject to the discretion of the City Manager, any day appointed and recommended by the Governor of the State of Ohio or the President of the United States.

(b) By sworn members of the police division covered by a Labor-Management Agreement between the City of Cincinnati and the Fraternal Order of Police, Queen City Lodge No. 69, holidays are to be observed as prescribed by the pertinent terms of said agreement.

(c) By sworn members of the fire division covered by a Labor-Management Agreement between the City of Cincinnati and the Cincinnati Fire Fighter's Union Local No. 48, holidays are to be observed as prescribed by the pertinent terms of said agreement.

(d) By non-uniformed Division 1 employees covered by a Labor-Management Agreement between the City of Cincinnati and A.F.S.C.M.E., holidays are to be observed as prescribed by the pertinent terms of said agreement. By any other city employees covered by the terms of a Labor-Management Agreement with the City of Cincinnati, holidays are to be observed as prescribed by the pertinent terms of said agreement.

(e) When January 1, July 4, November 11 or December 25 falls on a Sunday, then the following Monday shall be observed as the official holiday. When any of these holidays falls on Saturday, then the preceding Friday shall be observed as the official holiday.

(f) Whole holidays shall extend from 12:01 a.m. to 12:00 midnight, and half holidays shall extend from 12:01 p.m. to 12:00 midnight.

(g) Subject to approval by the city manager, the personnel director shall make rules as necessary to provide equitable holiday observance for part-time or temporary employees, employees who work irregular shifts and employees not in pay status during the entire calendar year.

(C.O. 308-10; a. Ord. No. 503-1957, eff. Dec. 26, 1957; a. Ord. No. 19-1969, eff. Jan. 1, 1969; a. Ord. No. 39-1970, eff. Feb. 8, 1971; a. Ord. No. 38-1971, eff. Feb. 3, 1971; renumbered to C.M.C. 308-9 in 1971 recodification of the code, eff. Jan. 1. 1972 a. Ord. No. 18-1974, eff. Feb. 15, 1974; a. Ord. No. 436-1974, eff. Oct. 9, 1974; a. Ord. No. 10-1976, eff. Jan. 14, 1976; a. Ord. No. 146-1976, eff. April 14, 1976; a. Ord. No. 160-1979, eff. Apr. 25, 1979; a. Ord. No. 64-1984, eff. Mar. 9, 1984; a. Ord. No. 153-1984, eff. May 4, 1984; a. Ord. No. 278-1994, eff. Aug. 8, 1994; a. Ord. No. 0029-2007, § 1, eff. Feb. 24, 2007; a. Emer Ord. No. 162-2022, §§ 1, 2, eff. June 15, 2022)

Sec. 308-11. Layoffs.

Any officer or employee may be laid off at any time by the appointing authority upon recommendation of the head of the department, division or bureau in which the officer or employee is employed:

(a) When, in the opinion of the appointing authority, the funds appropriated

for the particular department, division or bureau are insufficient for its work; or

(b) When the work of the particular department, division or bureau is insufficient to justify the continuance of the employment of the persons at that time engaged in any activity or function connected therewith.

The appointing authority shall be the sole judge of the insufficiency of work or funds.
(C.O. 308-11; reordained as C.M.C. 308-11, eff. Jan. 1, 1972; a. Ord. No. 337-1979, eff. Aug. 1, 1979)

Sec. 308-13. Rules and Regulations, Leaves of Absence, Sick Leave, Grievances, Temporary Transfers, and Other Matters Related to Employment.

The personnel officer shall, subject to the approval of the city manager, prepare rules and regulations relating to attendance control, hours of work, lunch hours, sick leave with pay, accumulated sick leave terminal pay, pay while on jury duty, call back pay, leave of absence, vacation allowance, overtime work, grievance procedures, temporary transfers and other matters having to do with attendance of employees, including those employed on an hourly or daily wage base. Further, the personnel officer shall, subject to the approval of the city manager, prepare rules and regulations relating to the use of accumulated sick leave credit for vacation time and shall, as conditions require, recommend to city council the amending or supplementing of the ordinances applicable thereto.
(C.O. 308-14; a. Ord. No. 503-1957, eff. Dec. 26, 1957; a. Ord. No. 90-1973, eff. March 7, 1973; renumbered to C.M.C. 308-13, eff. Jan. 1, 1972; a. Ord. No. 337-1979, eff. Aug. 1, 1979)

Sec. 308-15. Leaves of Absence; Military Service.

All city employees who are members of the Ohio National Guard, the Ohio State Guard, the Ohio State Naval Militia, or members of other reserve components of the armed forces of the United States, shall be entitled to leave of absence from their respective duties for such time as they are in the military service on field training or active duty as follows: a city employee whose standard work week consists of 40 hours shall receive up to 240 hours of military leave during any one calendar year; a city employee whose standard work week consists of 48 hours shall receive up to 288 hours of military leave per any one calendar year. For employees who work some combination of 40- and 48- hour standard work weeks during one calendar year, the amount of military leave shall be prorated for the duration of each type of standard work week actually worked by the employee during that year. The additional hours provided to 48-hour employees is based on their longer standard work weeks which tend to exhaust their military leave benefit more rapidly than employees with standard 40-hour work weeks.

Under special circumstances, an employee may request an increase in the number of hours provided under this section per calendar year, which shall be submitted by the employee at least ten business days prior to the need for additional paid military leave. Such an increase may be granted at the discretion of the city manager upon proof of special need generated by the employee's military service obligations during the relevant calendar year. Any request for an increase in paid military leave shall be made in writing by the employee to the city manager and the employee's department head, using the appropriate form supplied by the department of human resources plus

documentation from the employee's military commander establishing the special need for additional paid military leave during the relevant calendar year. The decision by the city manager shall be made within ten business days of receipt of the appropriate form and documentation. If the decision is not made within ten business days, the employee shall receive additional paid military leave as needed until such decision is made, up to an additional 80 hours. Supplemental information may be requested of the employee if needed to ascertain the extent of the employee's military service obligations.

If a city employee's military pay during such a period of leave of absence is less than city pay would have been for such a period, the employee shall be paid by the city the difference between the city pay and military pay for such period. In determining an employee's military pay for the purpose of this section, allowances for travel, food or housing shall not be considered, but any other pay or allowances of whatever nature, including longevity pay, shall be considered. (C.O. 308-18; renumbered to C.M.C. 308-15, eff. Jan. 1, 1972; a. Ord. No. 328-2002, eff. Nov. 8, 2002)

Sec. 308-17. Sick Leave.

Each full-time permanent employee, except members of the fire force on platoon duty, shall be entitled to two hours of sick leave credit for each week of service.

Members of the fire force on platoon duty serving a 48-hour work week shall be entitled to two and four-tenths hours of sick leave credit for each week of service.

An employee transferring directly from another Ohio public agency to the city service may be credited with whatever unused sick leave earned in said public agency.

Sick leave may be used, upon approval of the responsible administrative officer, for absence caused by personal illness or injury, exposure to contagious disease which results in quarantine by the board of health, or illness or death in the employee's immediate family.

The personnel officer, with the approval of the city manager, is hereby authorized to make and promulgate rules regulating the crediting and use of sick leave.
(Sec. 308-29; ordained by Ord. No. 148-1967, eff. May 1, 1967; a. Ord. No. 18-1970, eff. Jan. 4, 1970; renumbered to C.M.C. 308-17; eff. Jan. 1, 1972; a. Ord. No. 7-1975, eff. Jan. 1, 1975; a. Ord. No. 61-1975, eff. Feb. 12, 1975; a. Ord. No. 109-1975, eff. Mar. 12, 1975)

Sec. 308-19. Longevity Pay.

All permanent full-time city employees (75 percent work time or more) in Divisions 0, 5, 7, 8 and 9 hired before January 1, 1985, shall be paid compensation for length of continuous service in the employment of the city of Cincinnati as follows:

(a) After completion of 8 years of continuous service, the sum of $275.00 per year.

(b) After completion of 14 years of continuous service, the sum of $325.00 per year.

(c) After completion of 20 years of continuous service, the sum of $375.00 per year.

Said compensation for length of service shall be included in salary and shall be paid on or about the first day of December of each year beginning on or before December 31 a term of service set forth in items (a), (b) and (c) above.

In case of an employee's death, retirement or resignation with proper notice prior to

the final day of December in a particular year, the employee shall be paid longevity pay for such year on a prorated basis for the number of months on the payroll during such year.
(Sec. 308-30; ordained by Ord. No. 8-1969, eff. Feb. 7, 1969; a. Ord. No. 434-1970, eff. Dec. 30, 1970; a. Ord. No. 239-1971, eff. June 30, 1971; a. Ord. No. 94-1973, eff. Mar. 7, 1973; renumbered to C.M.C. 308-19, eff. Jan. 1, 1972; a. Ord. No. 11-1974, eff. Jan. 8, 1974; a. Ord. No. 389-1974, eff. Oct. 11, 1974; a. Ord. No. 75-1975, eff. Feb. 20, 1975; a. Ord. No. 334-1976; eff. July 8, 1976; a. Ord. No. 73-1981, eff. Feb. 25, 1981; a. Ord. No. 239-1984, eff. June 13, 1984; a. Ord. No. 29-1985, eff. Jan. 16, 1985; a. Ord. No. 292-1990; a. Ord. No. 411-1990, eff. Oct 3, 1990)

Sec. 308-21. Repealed.
(Sec. 308-28; ordained by Ord. No. 461-1963, eff. Jan. 25, 1963; renumbered to C.M.C. 308-21, eff. Jan. 1, 1972; a. Ord. No. 337-1979, eff. Aug. 1, 1979; a. Ord. No. 150-1985, eff. Mar. 27, 1985; r. Emer. Ord. No. 359-2019, eff. Sept. 25, 2019)

Sec. 308-23. Fair Employment Practices.

In the appointment, promotion or grading of employees, and in recommendations for increases or reductions in compensation, there shall be no discrimination for or against any person because of race, color, creed or national origin. A violation of this section by any officer charged with the duty of appointing, promoting or grading any employee or employees, or making recommendations as to employment or compensation, shall be considered a failure of good behavior, justifying dismissal from city employment.
(C.O. 308-19; renumbered to C.M.C. 308-23, eff. Jan. 1, 1972)

Sec. 308-25. Advances for Dental, Hospital and Medical Expenses.

Advances may be made to city employees to defray dental, hospital and medical expenses incurred as a result of injuries sustained in the course of their city employment. No advance shall exceed the amount of the

award which, in the opinion of the city manager, will be made by the industrial commission of Ohio on account of the injury which is the basis for the advance. Such advance shall be made only if the injury is one compensable under the workmen's compensation law, and only after the employee has made an assignment to the city of Cincinnati in the amount of the advance to be made by the city of any award payable by the industrial commission of Ohio to such employee on account of such injury.

Said advances shall be repaid not later than two years from the date made.

The director of finance is authorized to draw his warrant on the city treasurer for said advance upon receipt of a request for such an advance approved by the city manager.
(C.O. 308-4a; renumbered to C.M.C. 308-25, eff. Jan. 1, 1972)

Sec. 308-27. Special Inspection Expenses.

Whenever, in connection with the carrying out of, or preparation for, a project involving new or unusual constructional or operational practices, or new or unusual equipment, the city manager, or other appointing authority, shall be of the opinion that it would be to the advantage of the city to have the department or division head in charge of the city project, or one or more of his subordinate officers, inspect similar projects in construction or operation at other places, the appointing authority shall be authorized to provide for the necessary expenses of any such officer or officers and for the preparation of a suitable report as to the project or projects inspected; provided that the sum to be expended for any such purposes shall not be in excess of appropriated funds available therefor.
(C.O. 308-20; renumbered to C.M.C. 308-27, eff. Jan. 1, 1972; a. Ord. No. 337-1979, eff. Aug. 1, 1979)

Sec. 308-29. Special Instruction.

Whenever the efficient working of a division of the city service will be thereby promoted, the city manager or other appointing authority shall be authorized to provide for the special instruction of one or more of the officers or employees of such division in improved methods of administration or procedure, either at a special training school or by attendance at a professional or technical conference; provided that the sums to be expended for any such purposes shall not be in excess of appropriated funds available therefor.
(C.O. 308-21; renumbered to C.M.C. 308-29, eff. Jan. 1, 1972; a. Ord. No. 337-1979, eff. Aug. 1, 1979)

Sec. 308-35. Employee Parking Permits.

The city manager may designate city parking facilities for use by employees of the city, authorize the issuance of employee parking permits for parking in designated facilities and set employee parking permit fees.

Employee parking permits shall be issued by the city treasurer to employees authorized to park in designated facilities upon payment in advance of the permit fee.

The city manager or person designated by the city manager may adopt and promulgate rules and regulations for the administration of city employee parking facilities.
(Sec. 308-28; ordained by Ord. No. 461-1963, eff. Jan. 25, 1963; renumbered to C.M.C. 308-21, eff. Jan. 1, 1972; a. Ord. No. 337-1979, eff. Aug. 1, 1979; a. Ord. No. 100-1981, eff. Mar. 18, 1981)

Sec. 308-36. Repealed.

(Ordained by Ord. No. 442-1981, eff. Nov. 14, 1981; a. Ord. No. 491-1981, eff. Dec. 25, 1981; Ord. No. 235-1984, eff. July 6, 1984)

Sec. 308-37. Temporary Disability of Employees; Compensation.

A permanent employee of the city of Cincinnati who is not a sworn member of the police or fire division and who becomes disabled in the performance of duty shall be entitled to salary in full for the whole or such part of the period of such disability, not exceeding one year. The period may be extended for not to exceed one additional year by the city manager if the employee is a bed patient in a hospital. Except in the case of continuous hospitalization, no payments shall be made for disability arising after 18 months from the date of injury. The city manager or one designated by the city manager shall review each case and extension every three months to determine whether the employee shall be continued on the payroll. As a condition precedent to receiving the benefits provided for in this section the employee shall assign to the city that portion of the employee's cause of action against any third party or parties responsible for the disability in the amount of the payments made by the city pursuant to this section.

A permanent employee injured on the job will be sent to the city physician for examination. In the event that there is a disagreement between the city physician and the employee's personal physician, the two shall agree to the selection of a third physician. The third physician shall make an examination of the employee and a recommendation as to the issues in dispute. Cost for such examination by this third physician shall be borne equally by the city and the employee. The decision of the third physician shall be final and binding upon both parties.

A sworn employee in the police or fire division of the city of Cincinnati who becomes disabled in the performance of duty shall on recommendation of the division head, with the approval of the department head and the city manager, be entitled to salary in full for the whole or such part of the period of such disability, not exceeding one year, as shall be thus approved. This period may be extended for not to exceed one additional year by the city manager if the employee is a bed patient in the hospital. The city manager or one designated by the city manager shall review each case and extension every three months to determine whether the employee shall be continued on the payroll. As a condition precedent to receiving the benefits provided for in this section the employee shall assign to the city that portion of the employee's cause of action against any third party or parties responsible for the disability in the amount of the payments made by the city pursuant to this section.

(Sec. 308-50; ordained by Ord. No. 21-1970, eff. Jan. 4, 1970; renumbered to C.M.C. 308-37, eff. Jan. 1, 1972; a. Ord. No. 487-1974, eff. Dec. 20, 1974; a. Ord. No. 272-1976, eff. June 23, 1976; a. Ord. No. 413-1976, eff. Sept. 9, 1976; a. Ord. No. 337-1979, eff. Aug. 1, 1979)

Sec. 308-41. Personal Equipment for Police and Fire Recruits.

Every police recruit and fire recruit appointed on or after October 1, 1941, shall receive from the city, without cost, the first official uniforms, summer and winter, or allowance in cash substantially the equivalent of the cost thereof. Such police recruits and fire recruits shall further receive from the city, without cost to themselves, their original personal official equipment. Upon leaving the city service all such official equipment, including the first official uniforms, shall be returned to the city. All necessary rules and regulations governing police and fire force uniforms and equipment shall be made respectively by the chiefs of the police force and fire force, subject to approval by the director of safety.

The purchasing agent shall, upon notice from the respective chiefs of the police force

and fire force of the anticipated formation of new recruit classes, obtain information as to prices for police or fire force uniforms from qualified manufacturers and dealers equipped to provide the same, and shall furnish such information to the respective chiefs of the police force and fire force. On the basis of such prices, the purchasing agent shall, with the approval of the city manager, determine the cash allowance to be made to newly appointed police recruits and fire recruits for uniforms, which allowances shall be paid at or about the time that payment for any such uniform becomes due.
(C.O. 308-2; renumbered to C.M.C. 308-41, eff. Jan. 1, 1972)

Sec. 308-43. Damage to Police Officers', Firefighters' and Park Police Officers' Equipment; Reimbursement Under Certain Circumstances.

Whenever the uniform, including civilian clothing when the assigned duties require the wearing thereof, or other official equipment of a police officer, including personal equipment which is authorized to be used in the performance of his duties, is damaged as a result of the activity of such officer in the pursuit or capture of a person suspected of crime, while actually engaged in the protection of any person from imminent personal injury or death, or while actually engaged in the protection of property from damage; or whenever like equipment of a firefighter is damaged while on duty at a fire or going to or returning from the scene of a fire, the city manager, or person designated by the city manager, shall be authorized to reimburse such police officer or firefighter to the extent of the loss suffered in any sum not in excess of $150.

Whenever the uniform, including civilian clothing when the assigned duties require the wearing thereof, or other official equipment of a park police officer, including personal equipment which is authorized to be used in the performance of his duties, is damaged as a result of the activity of such officer in the pursuit or capture of a person suspected of a crime, while actually engaged in the protection of any person from imminent personal injury or death, or while actually engaged in the protection of property from damage, the director of parks shall be authorized to reimburse such park police officer to the extent of the loss suffered in any sum not in excess of $150.
(C.O. 308-4; renumbered to C.M.C. 308-43, eff. Jan. 1, 1972; a. Ord. No. 522-1976 eff. Nov. 17, 1976; a. Ord. No. 179-1977, eff. May 10, 1977; a. Ord. No. 342-1986, eff. Oct. 10, 1986)

Sec. 308-45. Uniform Allowances for Members of the Police and Fire.

Uniformed members of the fire force shall be entitled to compensation for normal maintenance and replacement of uniforms as provided in the labor-management agreement by and between the City of Cincinnati and the Cincinnati Fire Fighters Union Local 48. This allowance shall be in addition to any compensation paid for initial uniforms or as reimbursement for uniforms damaged in line of duty. The allowance will be construed as including full reimbursement for the cost of laundering firehouse linens borne by fire force members stationed at firehouses.

The allowance shall be paid in semiannual installments for six-month periods ending March 31 and September 30 of each year. No allowance shall accrue for the first one year of service.

The full amount will be paid to any member or security officer who is required to be in full uniform at all times while on duty and during the entire six-month period for which the allowance is paid. The division head

concerned is hereby authorized and directed to approve an appropriate pro rata amount of the full allowance in the case of any member or security officer who does not meet the above conditions for such reasons as having been assigned temporarily out of uniform, being in a non-pay status part of the period, serving only part of the period since completing the first full year of service, or for any other situation which, in the judgment of the division head, would tend to reduce the rate of depreciation and maintenance below normal.

Any member or security officer who has not been required to be in full uniform for a period of one year or longer and is returned to duty requiring a full uniform, will be entitled to reimbursement for the cost of providing additional uniforms specified by the division head or authorized inspector up to an amount of not more than $150. If the period is two years or longer, the maximum reimbursement will be $300.

Uniformed members of the police division of the department of safety, and the park police shall be provided initial uniforms and replacements of items thereto from time to time as determined by rules and regulations formulated by the director of safety and approved by the city manager; provided, however, the annual expenditures for such initial uniforms and replacements of items, thereto, shall not exceed the amount appropriated by council for that purpose.
(C.O. 308-4b; a. Ord. No. 443-1959, eff. Jan. 29, 1960; a. Ord. No. 123-1960, eff. Apr. 29, 1960; renumbered to C.M.C. 308-45, eff. Jan. 1, 1972; a. Ord. No. 105-1972, eff. Mar. 22, 1972; a. Ord. No. 9-1974, eff. Jan. 9, 1974; a. Ord. No. 452-1974, eff. Oct. 30, 1974; a. Ord. No. 76-1975, eff. Feb. 28, 1975; a. Ord. No. 124-1976, eff. Apr. 7, 1976; a. Ord. No. 84-1977, eff. Mar. 23, 1977; a. Ord. No. 105-1979, eff. Mar. 28, 1979; a. Ord. No. 337-1979, eff. Aug. 1, 1979; a. Ord. No. 101-1982, eff. Mar. 24, 1982; a. Emer. Ord. No. 174-2006, § 3, eff. June 14, 2006)

Sec. 308-47. Service Requirement Allowance.

Members of the fire force shall be entitled to compensation for night equipment and use of a personal automobile for authorized fire division duties at a rate of $400 per year.

Members of the police force and park police shall be entitled to compensation for leather goods, parking expenses for court appearances and use of a gun during off-duty hours at a rate of $400 per year.

The above allowances shall be in addition to any compensation paid for uniform maintenance.

In cases of death, retirement, dismissal or resignation the employee shall be paid for the number of months worked on a pro rata basis.

Payment shall be made by separate check annually on or about December 1.
(Sec. 308-4c; ordained by Ord. No. 20-1970, eff. Jan. 4, 1970; a. Ord. No. 433-1970, eff. Dec. 30, 1970; renumbered to C.M.C. 308-47, eff. Jan. 1, 1972; a. Ord. No. 15-1973, eff. Jan. 17, 1973; a. Ord. No. 10-1974, eff. Feb. 8, 1974; a. Ord. No. 77-1975, eff. Feb. 20, 1975)

Sec. 308-49. Accessory and Surveillance Allowance for Police.

Personnel in the police force assigned to duty requiring them to wear civilian clothing and all policewomen shall be paid an allowance for accessories in the amount of $135 to be paid by separate check on or about January 30 of each year.

No person shall be eligible to receive said allowance unless he or she has been assigned to duty requiring him or her to wear civilian

clothing for a cumulative period in excess of six months during the preceding calendar year.
(Sec. 308-4d; ordained by Ord. No. 432-1970, eff. Dec. 30, 1970; renumbered to C.M.C. 308-49, eff. Jan. 1, 1972; a. Ord. No. 8-1974, eff. Jan. 9, 1974; a. Ord. No. 89-1974, eff. April 12, 1974; a. Ord. No. 77-1975, eff. Feb. 20, 1976; a. Ord. No. 306-1977, eff. Aug. 3, 1977)

Sec. 308-51. Repealed.

(C.O. 308-5; a. Ord. No. 528-1965, eff. Jan. 28, 1966; renumbered to C.M.C. 308-51, eff. Jan. 1, 1972; r. Ord. No. 101-1982, eff. Mar. 24, 1982)

Sec. 308-53. Repealed.

(C.O. 308-6; renumbered to C.M.C. 308-53, eff. Jan. 1, 1972; r. Ord. No. 101-1982, eff. Mar. 24, 1982)

Sec. 308-55. Personal Equipment and Uniforms for Uniformed Water Works Employees.

All water meter readers, water customer service representatives and water works valve operators, who are required to wear uniforms, shall receive from the city, without cost, the first official uniform and their original personal official equipment. Upon leaving the city service, all such official equipment other than uniforms shall be returned to the city.

In addition to the above, the city manager is hereby authorized to reimburse water meter readers, water customer service representatives and water works valve operators, who are required to wear uniforms, for the purchase of replacement uniforms in an amount of not more than $150.00 per annum for the second and all successive years of employment. Provided, however, that:

(a) The suppliers of the uniform and the uniform itself be approved by the director of water works;

(b) The employee must furnish a receipt evidencing payment for the uniform purchased; and

(c) The director of water works shall be authorized to develop policy guidelines and procedures to implement this section.

(Sec. 308-13; ordained by Ord. No. 66-1969, e. Feb. 16, 1966; renumbered to C.M.C. 308-55, eff. Jan. 1, 1972; a. Ord. No. 509-1973, eff. Nov. 21, 1973; a. Ord. No. 506-1982, eff. Dec. 8, 1982; a. Ord. 72-1991, eff. Apr. 5, 1991)

Sec. 308-57. Personal Equipment and Uniforms for Meter Enforcement Officers and Inspectors.

All meter enforcement officers and inspectors who are required to wear uniforms shall receive from the city, without cost, the first official uniform and their original personal official equipment. Upon leaving the city service, all such official equipment other than uniforms shall be returned to the city.

In addition to the above, the city manager is hereby authorized to reimburse meter enforcement officers and inspectors who are required to wear uniforms for the purchase of replacement uniforms in an amount of not more than $100 per year for the second and all successive years of employment, provided, however, that:

(a) The suppliers of the uniform and the uniform itself be approved by the director of public utilities; and

(b) The employee must furnish a receipt evidencing payment for the uniform purchases.

(Sec. 308-15; ordained by Ord. No. 233-1966, eff. June 29, 1966; renumbered to C.M.C. 308-57, eff. Jan. 1, 1972; a. Ord. No. 528-1974, eff. Dec. 18, 1974)

Sec. 308-59. Uniform Allowances for Nurses.

Beginning January 1, 1986, and in each January thereafter, persons employed by the board of health in the classifications of public health nurse 1, 2 and 3, licensed practical nurse, district supervisor of public health nursing, supervisor of public health clinic nursing, and home health aide who have worked during the previous calendar year shall be paid an allowance for uniforms by separate check on or about January 30 in the following amounts:

(a) For nurses assigned to work 40 hours each week; $150.

(b) In the case of nurses not assigned full-time work, an amount to be determined by multiplying $150 by a fraction, the numerator of which is the number of hours of work each week to which the nurse is assigned and the denominator of which is 40.

(Sec. 308-59; ordained by Ord. No. 98-1971, eff. Apr. 23, 1971; a. Ord. No. 158-1971, eff. June 4, 1971; reordained as C.M.C. 308-59, eff. Jan. 1, 1972; a. Ord. No. 413-1986, eff. Dec. 13, 1986; a. Ord. No. 15-1987, eff. Jan. 15, 1987)

Sec. 308-61. Uniforms for Stadium Maintenance Personnel.

Each employee of the City of Cincinnati assigned on a full time basis to the performance of maintenance work at the Cincinnati Riverfront Stadium shall be issued annually two sets of work uniforms. Such uniforms shall bear distinctive designs or markings to readily identify the wearer as a city employee assigned to the stadium maintenance staff. To the extent possible, the new uniforms will be issued each year prior to the beginning of the baseball season.

Uniforms issued under this section shall be cleaned and maintained by the employee to whom they are issued at the employee's expense. In the event of termination of employment, employees to whom uniforms have been issued shall return such uniforms to the city.

(C.M.C. 308-61; ordained by Ord. No. 201-1973, eff. June 8, 1973; a. Ord. No. 337-1979, eff. Aug. 1, 1979)

Sec. 308-63. Uniforms and Special Wearing Apparel for Employees of the Public Recreation Commission.

All employees of the public recreation commission who are required to wear uniforms or special wearing apparel necessary in the performance of their duties shall receive from the city without cost the uniforms and special wearing apparel necessary for the performance of their duties. Upon leaving the service of the public recreation commission all such uniforms and special wearing apparel shall be returned to the city.

(C.M.C. 308-63; ordained by Ord. No. 198-1973, eff. May 9, 1973)

Sec. 308-65. Uniforms for Air Pollution Control Inspectors.

All air pollution control inspectors who are required to wear uniforms or special wearing apparel necessary in the performance of their duties shall receive from the city without cost said necessary uniforms by the employee to whom they are issued at the employee's expense. The city shall replace uniform or other apparel items as needed. Upon leaving the service of the division of air pollution control all uniforms and special wearing apparel shall be returned to the city.

(C.M.C. 308-65; ordained by Ord. No. 388-1973, eff. Sept. 6, 1973; a. Ord. No. 335-1976, eff. July 8, 1976; a. Ord. No. 337-1979, eff. Aug. 1, 1979)

Sec. 308-67. Reserved.

(C.M.C. 308-07; ordained by Ord. No. 78-1974, eff. April 5, 1974; a. Ord. No. 337-1979, eff. Aug. 1, 1979; r. Emer. Ord. No. 174-2006, eff. June 14, 2006)

Sec. 308-68. Reimbursement for Promotional Expenses.

The expenses of the city manager representing personal membership dues in private clubs, associations and organizations and other expenditures related to the conduct of city business are hereby deemed to be for a public purpose and reimbursable. Payment of such dues and expenses or reimbursement for such payment shall be made from the funds annually appropriated.

The expenses of the deputy city manager and city department directors representing expenditures related to the conduct of city business are also hereby deemed to be for public purpose and reimbursable. Payment of such expenses or reimbursements for such payment shall be made from the funds annually appropriated. Expenditures must be used in accordance with written procedures approved by the city manager.

(Ordained by Ord. No. 67-1980, eff. Feb. 27, 1980)

Sec. 308-69. Uniforms for Downtown Facilities Cleaning Personnel.

Each employee of the City of Cincinnati assigned on a full-time basis to the downtown facilities cleaning crew shall be issued sets of work uniforms as follows: Five sets on the employee's assignment or reassignment to the crew and two sets annually thereafter. Such uniforms shall bear distinctive designs or markings to readily identify the wearer as a city employee assigned to the downtown facilities cleaning crew.

Uniforms issued under this section shall be cleaned and maintained by the employee to whom they are issued at the employee s expense. Uniforms may be replaced as necessary due to normal wear and tear. In the event of termination of employment or reassignment out of the crew, employees to whom such uniforms have been issued shall return them to the city.

(Ordained by Ord. No. 405-1980, eff. Oct. 1, 1980)

Sec. 308-75. Tuition Reimbursement.

Employees may receive reimbursement for tuition in accordance with the provisions of this section and supplemental rules and regulations not in conflict therewith issued by the personnel officer with the approval of the manager.

(a) Education courses and programs related to the work of an eligible employee may be partially or fully reimbursed by the employee's department or agency upon successful completion of such courses in accordance with the following conditions and provisions:

(1) The recipient must be a permanent, full-time employee. The employee must have completed his or her probationary period prior to starting date of course.

(2) The education or training must be obtained by attendance at an approved and accredited college, university, secondary school, technical institute, business institute, or other education institute or school. In order to be eligible the school must be approved by the city personnel officer, and the employee must be able to attend without interfering with his or her normal work schedule. Correspondence courses are not eligible for reimbursement.

(3) The agency or department can reimburse up to a maximum of 50 percent of the employee's tuition cost for six credit hours per academic session. An employee will be eligible for 100% tuition reimbursement for achieving a grade of A in an approved course, 80% tuition reimbursement for achieving a grade of B in an approved course, and 60% tuition reimbursement for achieving a grade of C in an approved course. In courses that are graded on a pass/fail basis, 80% tuition reimbursement will be granted for a passing grade, 0% reimbursement for a failing grade.

Courses which will be approved are those which the department head and the city personnel officer determine are: (1) those courses directly related to the employee's present job, (2) those courses related to a reasonable promotional opportunity for the employee, or (3) elective and/or required courses in a degree program which is directly related to the employee's job or a reasonable promotional opportunity.

(4) A request for reimbursement must be filed in advance of course registration using the appropriate form. After departmental/divisional approval is obtained and within 30 days of completion of the academic session, the employee requesting reimbursement must submit a receipt of tuition payment and a grade report to the department showing that he or she has successfully completed the course or program.

The department will then forward the receipt, the grade report and a claim voucher to the accounts and audits division for reimbursement action. Accounts and audits will then issue a check to the employee.

Departments should request funds for tuition reimbursement per the instruction of the budget and evaluation office each year during the preparation of their annual budgets.

(b) A reasonable promotional opportunity is considered any position in the city service for which a present employee could eventually take a promotional or open exam and which has a higher pay scale than present job.

In the event of a question arising as to the appropriateness of a course, or as to the reasonableness of a promotional opportunity, the city personnel officer shall be the deciding authority.

In the case of a full-time employee who is also a full-time student paying a flat rate, the amount to be reimbursed will be determined by dividing the number of hours taken into the tuition or instructional fee (not including any general or special fees) to get the employee's cost per credit hour which will be reimbursed according to the percentages detailed in section (a)(3) above, based on the grades of the employee in his/her highest grade in six qualifying credit hours per academic session.

Except for financial assistance received because of service in the armed forces, those employees who are receiving other financial aid will be reimbursed based on their actual tuition expense.

(C.M.C. 308-75; ordained by Ord. No. 90-1974, eff. Mar. 13, 1974; a. Ord. 157-84, eff. April 11, 1984; a. Ord. No. 434-1998, eff. Dec. 2, 1998)

Sec. 308-77. Employee Awards System.

The city manager is authorized to institute an employee awards system designed to encourage all city employees to submit suggestions that will reduce the costs, or improve the quality of municipal services, in accordance with the provisions of this section, and shall promulgate supplemental rules and regulations for the implementation of the awards program.

(a) All city employees shall be eligible to submit suggestions and receive awards if such suggestions are not within the scope of their assigned duties and responsibilities. For suggestions that fall within an employee's normal duties and responsibilities, awards may be granted if such suggestions are significant and beyond normal performance expectations. The rules and regulations shall provide the criteria for determining the eligibility for award consideration of both the suggestion and the responsible employee.

(b) The rules and regulations shall provide reasonable standards for determining the amount, not to exceed $1,000, of any award that may be given for a suggestion. All suggestions become the property of the city of Cincinnati when submitted, and their use by the city shall not form a basis of a claim against the city of Cincinnati.

(c) The rules and regulations shall further provide for the review of each suggestion and the subsequent recommendation to the city manager of the amount of the award, if any, to be given. The decision of the city manager as to the amount of any award is final and not appealable. Nothing herein shall require the city manager to confer such award in any year.

(Ordained by Ord. No. 122-1986, eff. May 9, 1986)

Sec. 308-79. Protected Employee Actions.

(a) No employer shall discharge, suspend, demote or take any other adverse employment action in retaliation against an employee who discloses to any governmental agency an activity, policy or practice of the employer that the employee has reasonable cause to believe is in violation of law or in violation of a rule or regulation enacted pursuant to law.

(b) No employer shall discharge, suspend, demote or take any other adverse employment action in retaliation against an employee who provides information to or testifies before any governmental agency conducting an investigation, hearing or inquiry into any violation of law by the employer or any violation by the employer of a rule or regulation enacted pursuant to law.

(c) As used in this section, the term "governmental agency" means:

(1) The United States Congress, the Ohio General Assembly, the council of the city of Cincinnati, any elected governmental body and any member or employee thereof;

(2) Any federal or state judiciary and any member or employee thereof or any grand jury;

(3) Any federal, state or local regulatory, administrative, investigative or public agency or authority or any instrumentality thereof;

(4) Any federal, state or local law enforcement agency and any member or employee thereof;

(5) Any federal, state or local department of an executive branch of government; and

(6) Any division, board, bureau, office, committee or commission of any of the governmental agencies described above.

(d) The provisions of this section may be enforced by an appropriate proceeding in equity in the Court of Common Pleas.

(e) In addition to the available civil remedies, any violation of this section shall be a misdemeanor of the first degree.
(Ordained by Ord. No. 468-1987, eff. Dec. 12, 1987)

Sec. 308-83. Residency requirements.

(a) Except as otherwise provided herein, all employees appointed to positions in the city service may reside any place they desire.

(b) The following senior executive officers and certain employees who are emergency responders shall be subject to additional residency conditions as follows:

i) In order to ensure adequate response times to emergencies or disasters, all sworn members of the Police and Fire Departments are designated as emergency responders and shall be required to reside within Hamilton, Butler, Warren, or Clermont counties, within the State of Ohio.

ii) Senior executive officers who hold the titles of city manager, assistant city manager, city solicitor and police chief shall be required to reside in the city of Cincinnati while holding such fiduciary positions. This requirement is in accordance with city council's determination that city residency is an essential component of such officers' ability to perform their unique employment responsibilities within the city of Cincinnati municipal government.

(c) Administrative regulation number 44 governs the implementation of this code provision and the employee residency requirements implemented pursuant to state law.

(d) The city manager is authorized to update administrative regulation number 44 for the implementation of the provisions of section (a). The regulation shall provide that, other than the exceptions described in section (b) of this section, or as may otherwise be negotiated through a collective bargaining agreement, all employees appointed to positions in city service may reside any place they desire.

(e) Administrative regulation number 44 shall continue to govern the implementation of provision (b)(i) which provides for the designation of certain employees or employee classifications as emergency responders. The regulations shall provide that the city manager may grant a transitional period of not more than 180 days following appointment within which an employee who is designated as an emergency responder must establish residency within Hamilton, Butler, Warren, or Clermont counties, within the State of Ohio, as required by this section.

(f) Administrative regulation number 44 shall continue to govern the implementation of provision (b)(ii) which provides for a city residency requirement for all officers who hold the titles of city manager, assistant city manager, city solicitor and police chief within the executive and administrative service of the city of Cincinnati. The regulation shall provide that the city manager may grant a transitional period of not more than 180 days following appointment within which an employee must establish city of Cincinnati residency, as required by this section.

(g) The city manager is authorized to adopt administrative regulations providing that any city officer who holds the titles of city manager, assistant city manager, or director or any city employee shall be required to deposit any city vehicle assigned to him or her at a safe location within the city limits of the city of Cincinnati at the end of each business day and may not assume control of the vehicle

until the next business day, unless specifically authorized by the city manager or his or her designee to take the vehicle outside of the city limits.

(h) The city manager is further authorized to adopt administrative regulations, to the extent permitted by law, providing for employment incentives for any city employees who maintain or adopt city residency, and shall be authorized to submit any related legislative matters for council consideration.

(i) Nothing herein shall be deemed to relieve an employee from any statutory or collective bargaining agreement obligation to become a resident of the city, county, or state forthwith.

(j) Nothing herein shall be deemed to relieve a principal appointive officer as defined in Article I, Section 1, of the Administrative Code from any obligation to become a resident of Cincinnati forthwith in accordance with this section.
(Ordained by Ord. No. 408-1992, eff. Sept. 16, 1992; a. Ord. No. 62-1994, eff. Feb. 24, 1994; Emer. Ord. No. 005-2010, § 1, eff. Jan. 13, 2010; Emer. Ord. No. 239-2010, § 3, eff. June 23, 2010; Emer. Ord. No. 158-2013, § 1, eff. May 30, 2013; Emer. Ord. No. 0006-2015, § 2, eff. Jan. 14, 2015)

[Sec. 308-85. Extended Benefits Subsequent to Military Leave.]

(a) *Legislative finding.* Council declares that it is in the public interest and the policy of the city to support United States peace keeping missions or other related active military service throughout the world, and thereby in the public interest to provide for adequate healthcare benefits for families of city employees whose reserve units or selected members thereof are called to active duty.

The City of Cincinnati shall pay to city employees who are called to active duty in the military service of the United States pursuant to the activation of their military reserve units or selected members thereof by presidential or congressional order, the benefits and net pay they would have received had the employees not been activated for service.

The proper officers are authorized to pay any city employee called to active duty pursuant to the activation of their military reserve units or selected members thereof by presidential or congressional order what that said employee would have received had he or she remained in city employment at the grade he/she had when activated less their gross military pay (excluding allowance for travel, food, and housing). An employee shall be required to provide the city with documentation establishing his or her rate of military pay in order to receive such compensation. The proper officers are further authorized to pay said employees any other benefit, including but not limited to retirement, sick and vacation benefits the employees would have been entitled to had they not been activated. The proper officers are further authorized to implement procedures to establish an employee's right to receive such extended military leave benefits.
(Ordained by Ord. No. 329-2002, eff. Nov. 8, 2002)

Sec. 308-87. Repealed.
(Ordained by Emer. Ord. No. 0117-2008, § 1, eff. April 9, 2008; r. Emer. Ord. No. 082-2103, § 1, eff. April 10, 2013)

Chapter 309

ADMISSIONS TAXES

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Sec. 309-1. Definitions.

For the purpose of this chapter the words and phrases as defined in the sections hereunder shall have the meanings therein respectively ascribed to them unless a different meaning is clearly indicated by the context.
(C.O. 309; renumbered to C.M.C. 309-1, eff. Jan. 1, 1972)

Sec. 309-1-A. Admission.

"Admission" means:

(a) Any charge paid for the right or privilege to enter into any temporary or permanent place or event, to use any facilities or grounds, or to participate in any tour or itinerant form of amusement within the city of Cincinnati;

(b) Any charge paid for tickets, licenses, permits, season tickets, subscriptions, dues, fees, or memberships providing for the right or privilege to enter into any permanent or temporary place or event, to use any facilities or grounds, or to participate in any tour or itinerant form of amusement within the city of Cincinnati, whether paid yearly, monthly, weekly, or at any other interval;

(c) Any charge paid in the form of membership dues to any club or organization maintaining a golf course within the city of Cincinnati and greens fees paid to golf courses within the city of Cincinnati, under either club or private ownership; or

(d) Any charge paid for the right or privilege to enter into any performance or entertainment at any place within the city of Cincinnati, including where the charge for admission is in the form of a service charge, cover charge, or similar charge in any form.

(C.O. 309; renumbered to C.M.C. 309-1-A, eff. Jan. 1, 1972; a. Emer. Ord. No. 0206-2019, eff. July 1, 2019; a. Emer. Ord. No. 0021-2024, § 2, eff. April 1, 2024)

Sec. 309-1-A1. Repealed.
(C.O. 309; renumbered to C.M.C. 309-1-A1, eff. Jan. 1, 1972; a. Ord. 199-1992, eff. June 5, 1992; r. Emer. Ord. No. 0206-2019, eff. July 1, 2019)

Sec. 309-1-M. Marketplace Facilitator.

"Marketplace facilitator" means a person who owns, operates, or controls a physical or electronic marketplace or other service, including a brokerage service, that facilitates the purchase of admission from a seller or reseller in exchange for a fee or compensation, including by offering services, whether or not contracted through others, to connect sellers or resellers of admission with purchasers or payors, or to process, collect, facilitate, or transmit payments related to the purchase of admission, including through an online portal or online services, computer or mobile applications, or other similar electronic means.
(Ordained by Ord. No. 0021-2024, § 1, eff. April 1, 2024)

Sec. 309-1-P. Pay; Payment.

"Pay" means to provide compensation or value in exchange for admission, including without limitation in the form of money or other compensation provided by barter or other agreement, and "payment" means the amount of such compensation or value. If a charge for admission is paid in a form other than money, the amount of the payment subject to the tax imposed by this chapter shall be the fair market value of the admission in money.
(Ordained by Emer. Ord. No. 0021-2024, § 1, eff. April 1, 2024)

Sec. 309-1-P1. Person.

"Person" means any individual, firm, corporation, company, business, partnership, association, municipality, political subdivision of the state, or other legally recognized entity.
(C.O. 309; renumbered to C.M.C. 309-1-P, eff. Jan. 1, 1972; renumbered to C.M.C. 309-1-P1 and amended by Emer. Ord. No. 0021-2024, § 2, eff. April 1, 2024)

Sec. 309-1-P2. Place.

"Place" means, without limitation, indoor and outdoor theaters, dance halls, ball rooms, amphitheaters, auditoriums, stadiums, movie theaters, athletic pavilions, fields, grounds, parks, centers, arenas, clubs, cabarets, bars, saloons, event spaces and venues, conservatories, convention centers, festivals, carnivals, circuses, sideshows, fairs, amusement parks, arcades, escape rooms, and all other similar locations, whether public or private and whether permanent or temporary, located within the city of Cincinnati, including any locations the treasurer may hereafter designate in rules and regulations adopted pursuant to this chapter.
(Ordained by Emer. Ord. No. 0021-2024, § 1, eff. Jan. 24, 2023)

Sec. 309-1-R. Reseller; Resold; Resale.

"Reseller" means a person who charges admission by offering for purchase or transfer to another person an admission that previously has been purchased or transferred, whether or not payment was made for the previous purchase or transfer of the admission. Such admissions are "resold" or purchased at "resale."
(Ordained by Emer. Ord. No. 0021-2024, § 1, eff. April 1, 2024)

Sec. 309-1-S. Seller; Sold; Sale.

"Seller" means a person who charges admission by offering for purchase or transfer to another person an admission that has not previously been purchased or transferred, whether or not payment is made or to be made for the purchase or transfer of the admission. Such admissions are "sold" or purchased through a "sale."
(Ordained by Emer. Ord. No. 0021-2024, § 1, eff. April 1, 2024)

Sec. 309-1-T. Treasurer.

"Treasurer" means the treasurer of the city of Cincinnati.
(C.O. 309; renumbered to C.M.C. 309-1-T, eff. Jan. 1, 1972; a. Emer. Ord. No. 0021-2024, § 2, eff. April 1, 2024)

Sec. 309-1-V. Vendor.

"Vendor" means a person receiving, facilitating, or transmitting payment for admission taxable under this chapter who, as trustee for the city of Cincinnati, returns and pays to the treasurer, on behalf of the purchaser or payor, the tax on admission imposed by this chapter. Vendors include but are not limited to sellers, resellers, distributors, promoters, or other persons who sell or resell admission to a purchaser or payor, and marketplace facilitators, brokers, or other persons who facilitate transactions between sellers or resellers of admission and purchasers or payors, whether in person, telephonically, or through electronic means. A vendor is liable to pay the tax imposed by this chapter if the vendor received, facilitated, or transmitted payment for admission taxed by this chapter, regardless of how the vendor characterizes collection of the tax from the purchaser or payor of admission.
(Ordained by Emer. Ord. No. 0021-2024, § 1, eff. April 1, 2024)

Sec. 309-3. Rate of Tax.

(a) For the purpose of providing revenue to defray a portion of current expenses and other expenditures of the city of Cincinnati,

there is hereby levied a tax of three percent on the amounts paid for admission, including the amounts paid for resale of admission. The amounts taxed as provided in this section shall include all amounts paid in relation to an admission, including service or transaction charges or fees paid in connection with the admission, but shall exclude amounts paid for other taxes in respect to any admission.

(b) If admission is in the form of a fixed minimum service charge that includes provision of food, beverages, or similar amenities, the tax shall be computed upon one-third of such fixed minimum service charge.

(c) The above taxes are to be paid by the purchaser or payor, collected by the vendor as trustee for the city of Cincinnati, and returned and paid by the vendor in the manner and subject to the interest provided by section 309-9.

(d) Marketplace facilitators shall collect and remit to the treasurer any tax due under this chapter on admission that is sold or resold by or through, or using services provided by or through, the marketplace facilitator's physical or electronic marketplace or any transactional, payment processing, or similar service offered thereby. Marketplace facilitators shall collect and remit such tax according to the requirements of section 309-9 on behalf of sellers and resellers using the marketplace facilitator's services, regardless of whether such sellers or resellers are licensed.

(e) Vendors are liable for payment of the admissions tax required to be collected and remitted, regardless of whether such tax has in fact been collected from the purchaser or payor of admission.

(f) In the case of resale of admission, the amount taxed as admission shall be reduced by the amount paid for such admission by the reseller, exclusive of any tax, provided that such amount is verifiable to the satisfaction of the treasurer.

(C.O. 309-1; renumbered to C.M.C. 309-3, eff. Jan. 1, 1972; a. Ord. No. 388-1976, eff. Oct. 1, 1976; a. Ord. 199-1992, eff. June 5, 1992; a. Emer. Ord. No. 0206-2019, eff. July 1, 2019; a. Emer. Ord. No. 0021-2024, § 2, eff. April 1, 2024)

Sec. 309-5. Admission Exempt From Tax; Application for Exemption; Exemption Certificate.

(a) Except as prohibited in subsections (b) and (c) of this section, no tax shall be levied under this chapter on the following:

(1) During the period December 31, 1959, to August 31, 2019, the first $1.05 of any admission.

(2) Admissions, all the proceeds of which inure exclusively to the benefit of the following persons, provided that the treasurer has determined prior to the initial sale of such admissions that all the proceeds thereof inure exclusively to the benefit of the person and that no part of the person's net earnings, if applicable, inures to the benefit of any private stockholder or individual:

(A) Organizations determined by the federal internal revenue service to be tax-exempt under section 501(c)(3) of the Internal Revenue Code of 1986, as amended;

(B) Persons in the military or naval forces of the United States, or of national guard organizations, including reserve officers' associations or organizations, posts, or organizations of war veterans, or auxiliary units or societies of any such posts or organizations, if such associations, organiza-

tions, posts, units, or societies are organized in the state of Ohio;

(C) Employees or employee organizations of any state of Ohio municipal corporation or the dependents or heirs of such members; or

(D) A county agricultural society organized under chapter 1711 of the Ohio Revised Code.

(3) Admissions, all the proceeds of which inure exclusively to the benefit of organizations that meet the requirements of section 501(c)(3) of the Internal Revenue Code of 1986, as amended, but which are exempted from the requirement to apply for tax-exempt status under section 501(c)(3), if no part of their net earnings inure to the benefit of any private stockholder or individual.

(4) Admissions, all the proceeds of which inure exclusively to the benefit of a public or private educational institution serving students through the twelfth grade; or

(5) Admissions, all the proceeds of which inure exclusively to the benefit the United States government, the state of Ohio, its departments and institutions, and the political subdivisions thereof, including the city of Cincinnati, when acting in their governmental capacities and performing governmental functions and activities, or any entity exempted by the Ohio Revised Code.

(b) Notwithstanding any other provision of this section, no exemption from the tax levied by this chapter shall be provided:

(1) If the admission is purchased from a reseller;

(2) If the treasurer determines that any portion of the revenue or proceeds resulting from the purchase of admission is or could be divided or shared with any person not identified in subsection (a) of this section;

(3) If the city provides direct or indirect monetary support for operating expenses to the applicant in connection with the admission or during the fiscal year in which the event related to such admission occurs;

(4) If the admission relates to any athletic game, contest, or exhibition, except as required by law;

(5) If a person other than the applicant exercises effective control over, takes business risk regarding, or directs the expenditure of the proceeds of admission or any portion thereof;

(6) If the applicant has not obtained a certificate of exemption from the treasurer, or been excused from doing so pursuant to this section or rules and regulations adopted by the treasurer, prior to the commencement of the sale of admission;

(7) If the person fails to provide supporting documentation as determined necessary by the treasurer to support the person's application for an exemption; or

(8) If the treasurer has revoked or suspended a certificate of exemption related to a place.

(c) The tax levied by this chapter shall be due for any admission that does not strictly comply with the requirements of this section, including admission purchased subject to an exemption certificate that is later revoked, admission purchased prior to the issuance of a certificate of exemption, or

admission purchased after a certificate of exemption has been or could have been revoked.

(d) Every person seeking an exemption from the admission tax shall apply to the treasurer for an exemption certificate, except those persons identified in subsections (a)(3) through (5) of this section. Each application shall be made upon a form prescribed, prepared, and furnished by the treasurer and shall set forth:

(1) The name under which the applicant intends to sell admission;

(2) The place or places to which admission shall be sold;

(3) The reason the admission should be exempted from the tax; and

(4) Such other information as the treasurer may require.

(e) The applicant shall provide with the application all documentation that the treasurer may require to verify the applicability of the exemption. The application for an exemption shall be signed and verified by oath or affirmation by the person charging admission.

(f) The treasurer is authorized to issue an exemption certificate upon satisfaction that the admission identified in the application is exempt under this section, provided that the applicant is otherwise in compliance with the provisions of this chapter and the rules and regulations the treasurer adopts pursuant to this chapter. An exemption certificate issued pursuant to this section shall be valid only for the person in whose name it is issued and shall not be assignable. The exemption shall apply only to admission specified in the application. Every exemption certificate shall expire on the last date of admission specified therein, shall not be renewable, and shall in no case be valid for admission sold or occurring more than one year after the date of issuance. The treasurer may place additional conditions upon the applicant as the treasurer deems necessary to ensure compliance with the requirements of this section.

(g) If the treasurer grants an exemption pursuant to this section, the holder of the exemption certificate is excused from applying for the license required by section 309-13 for the exempt admissions only. The exemption certificate shall be considered the equivalent of the license required by that section, and the authorized person shall comply with the provisions of that section regarding use and display of a license, substituting the exemption certificate for the license.

(h) The treasurer may revoke an exemption certificate for cause, including the applicant's submission of false information, a change in the applicant's circumstances, error in issuing the certificate, or the certificate holder's failure to comply with any conditions under which the exemption was authorized, the provisions of this chapter, or rules or regulations the treasurer has adopted pursuant to this chapter. Whenever the treasurer suspends or revokes an exemption certificate, the treasurer or the treasurer's designee shall notify the holder promptly in writing, and the holder shall promptly surrender the exemption certificate and any copies to the treasurer.

(C.O. 309-2; a. Ord. No. 469-1958, eff. Dec. 31, 1958; a. Ord. No. 432-1967, eff. Nov. 22, 1967; renumbered to C.M.C. 309-5, eff. Jan. 1, 1972; a. Ord. No. 125-1972, eff. Mar. 29, 1972; a. Ord. No. 359-1974, eff. Aug. 7, 1974; a. Ord. No. 184-1976, eff. Mar. 5, 1976; a. Ord. No. 327-1979, eff. Aug. 1, 1979; a. Emer. Ord. No. 0206-2019, eff. July 1, 2019; a. Emer. Ord. No. 0021-2024, § 2, eff. April 1, 2024)

Sec. 309-7. Price to be Marked on Ticket or Displayed.

(a) If admission is by physical ticket, the price of admission, inclusive of any service or transactional charge or fee and any state or city tax, shall be marked conspicuously and indelibly on that part of the ticket which is to be taken up by the management of the place at admission, together with the name of the vendor if the admission was purchased other than at a ticket office of the place.

(b) If admission is by electronic ticket, the price of admission, inclusive of any service or transactional charge or fee and any state or city tax, shall be displayed on the face of the electronic ticket and recorded on the management of the place's record of the admission, together with the name of the vendor from which it was purchased if the admission was purchased other than from management of the place.

(c) If admission is not done by ticket, the price of admission shall be conspicuously and visibly posted at the entrance to the place or the point of purchase.
(C.O. 309-3; a. Ord. No. 469-1958, eff. Dec. 31, 1958; renumbered to C.M.C. 309-7, eff. Jan. 1, 1972; a. Emer. Ord. No. 0206-2019, eff. July 1, 2019; a. Emer. Ord. No. 0021-2024, § 2, eff. April 1, 2024)

Cross reference—Penalty, § 309-99-A.

Sec. 309-9. Monthly and Annual Reports; Contents; Payments of Tax.

(a) Every vendor shall, on or before the twentieth day of each calendar month, make a return to the treasurer in such form as the treasurer may prescribe showing the number of admissions issued, disposed of, or collected by, through, or for the vendor, or using the vendor's services, during the preceding calendar month, the amount of tax hereby imposed on the same, and such other facts and information as the treasurer may require. The person making the return shall certify that it is complete, true, and accurate.

(b) Every vendor shall, each year on or before April 15, make a return to the treasurer in such form as the treasurer may prescribe showing the number of admissions issued, disposed of, or collected by, through, or for the vendor, or using the vendor's services, during the preceding calendar year, the amount of tax hereby imposed on the same, and such other facts and information as the treasurer may require The person making the return shall certify that it is complete, true, and accurate.

(c) All such returns shall be held confidential by the treasurer and auditor and shall not be available for inspection unless ordered by a court of competent jurisdiction, except that the treasurer may furnish copies to the federal Internal Revenue Service, Ohio tax commissioner, city tax commissioner, and to the city manager or person designated by the city manager.

(d) Every vendor shall, at the time of making a return, pay to the treasurer the amount of taxes shown thereby to be due. Such payments shall be paid into the city treasury.

(e) If the tax imposed by this chapter is not paid when due, there shall be added as a part of the tax interest at the rate of one percent per month from the time when the tax became due until paid.
(C.O. 309-4; renumbered to C.M.C. 309-9, eff. Jan. 1, 1972; a. Ord. No. 388-1976, eff. Oct. 1, 1976; a. Ord. No. 337-1979, eff. Aug. 1, 1979; a. Ord. No. 70-1981, eff. Feb. 25, 1981; a. Emer. Ord. No. 0206-2019, eff. July 1, 2019; a. Emer. Ord. No. 0021-2024, § 2, eff. April 1, 2024)

Sec. 309-11. Administration of Chapter; Adoption of Rules and Regulations; Records; Bond.

(a) The treasurer shall adopt such uniform rules and regulations, consistent with this chapter, as may be deemed necessary to carry out the provisions of this chapter, including but not limited to those governing the method of making returns and payments, licensing vendors, determining exemptions, and issuing assessments. Such rules and regulations shall be effective upon the city manager's approval and posting on the city's website.

(b) Every person selling admission, regardless of whether an exemption has been granted pursuant to section 309-05 and whether sales take place through a marketplace facilitator, shall keep a record of each admission, including at a minimum the number, type, place, and date of each admission and the amounts charged, paid, waived, or forgone for such admission, together with any service or transactional fees or similar charges, and the amount of any state or city taxes paid on such admission. Every marketplace facilitator, reseller, or similar broker of admission shall keep a record of each admission purchased from, by, through, or using its services, including at a minimum the charges paid for such admission and the number, type, date, and place of each admission, together with any related service or transactional fees or similar charges, and the amount of any state or city taxes paid on such admission.

(c) Such records and other documents shall be open at any time during business hours to the inspection of the treasurer or the treasurer's designee. Copies of such records or documents shall be provided to the treasurer or the treasurer's designee, at the treasurer's office or a place designated by the treasurer, promptly in response to a written request. Such records shall be preserved for a period of not less than three years after the vendor is required to submit the annual return required by section 309-9(b) to the city, unless the treasurer shall in writing consent to their destruction within that period or in writing require that they be kept longer.

(d) The treasurer may require any vendor to file with the treasurer a bond, with security to the approval of the finance director of the city, and in such amount as the treasurer may fix, conditioned for the collection and payment, or the payment, of any such taxes due or which may become due from such person. Such bond, when approved by the treasurer, shall be deposited in the treasurer's office.

(e) The treasurer may permit any person making a refund to a payor or purchaser of any payment upon which a tax is collected under this chapter also to repay the amount of the tax collected on such payment and provide for the crediting of the amount so repaid against amounts included in subsequent returns.

(C.O. 309-5; renumbered to C.M.C. 309-11, eff. Jan. 1, 1972; a. Ord. No. 337-1979, eff. Aug. 1, 1979; a. Emer. Ord. No. 0206-2019, eff. July 1, 2019; a. Emer. Ord. No. 0021-2024, § 2, eff. April 1, 2024)

Sec. 309-13. License Required; Application; Contents; Fee; Issuance; Restrictions; Renewal; Suspension or Revocation; Liability of Owner of Premises and Marketplace Facilitators.

(a) Except as provided in section 309-5, no person shall sell, resell, or facilitate the sale or resale of admission to any place within the city of Cincinnati without a license as required by this section.

(b) Every vendor shall apply for a license.

(1) Every person intending to sell admission to any place within the city of Cincinnati shall apply to the treasurer for an annual or temporary license, or an exemption certificate under section 309-5. Every such application shall be made upon a form prescribed, prepared, and furnished by the treasurer. Every application shall set forth the name under which the applicant intends to sell admission, the location of the place to which admission shall be sold, and such other information as the treasurer may require. If the applicant intends to sell admission to more than one place within the city, the applicant shall state the location of each place. If the applicant intends to sell admission to a temporary place, the applicant shall state the date and length of time for which admission shall be required for entry into such temporary place, together with the name and address of the owner, lessee, or custodian of the premises upon which such temporary place shall be located. The application shall be signed and verified by oath or affirmation by the person selling admission. At the time of making such application, the applicant shall pay to the treasurer a fee of $50.00 for each license and furnish a bond pursuant to section 309-11, if required.

(2) Every person intending to resell, or facilitate the sale or resale of, admission to any place in the city of Cincinnati shall apply to the treasurer for an annual or temporary license. Every application shall state the name under which the applicant intends to resell, or facilitate the sale or resale of, admission, the intended scope of the applicant's activities, and such other information as the treasurer shall require. The application shall be signed and verified by oath or affirmation by the person reselling, or facilitating the sale or resale of, admission. At the time of making such application, the applicant shall pay to the treasurer a fee of $50.00 for each license and furnish a bond pursuant to section 309-11, if required.

(c) Upon the treasurer's approval of an application, the applicant's payment of any license fee, and provision of a bond pursuant to section 309-11, if required, the treasurer is authorized to grant and issue to each applicant an annual or temporary license for charging admission at each place set forth in the application, or an annual or temporary license for the resale, or facilitation of the sale or resale, of admission as set forth in the application, unless such license is withheld for cause.

(d) A license granted pursuant to this section shall be valid only for the person in whose name it is issued and shall not be assignable. A license for the sale of admission shall be valid only for charging admission to the place or places, or for the activities, designated therein. A license for the resale, or facilitation of the sale or resale, of admission shall be valid only for the activities specified therein.

(e) All licenses issued pursuant to section 309-13(b)(1) and exemption certificates granted pursuant to section 309-5 shall be conspicuously displayed at the place or places described therein during the period of ticket sales and until admission as described therein is no longer permitted.

(f) All annual licenses shall be for a period beginning on the date they are issued through the following December 31, and all temporary licenses shall be for the period specified

therein, unless the licensee surrenders a license sooner or the treasurer suspends or revokes a license for cause. Annual licenses may be renewed upon application made to the treasurer, the payment of a renewal fee of $50.00 for each license, and the furnishing of a bond pursuant to section 309-11, if required. Licenses for temporary places may not be renewed.

(g) The treasurer may decline to issue, suspend, or revoke a license whenever the holder thereof has failed to comply with any of the provisions of this chapter or any rules or regulations the treasurer has adopted pursuant to this chapter. Upon suspension or revocation of a license, the treasurer shall notify the licensee in writing of the reason for the decision and the licensee shall immediately surrender all licenses or duplicates thereof to the treasurer and immediately cease to engage in the activities identified in the license.

(h) A person may appeal the treasurer's denial, suspension, or revocation of a license authorized by this chapter only by filing an appeal with the city manager or the city manager's designee within thirty days of issuance of the treasurer's notice of such suspension or revocation, stating all the facts and arguments supporting the appeal. If an appeal is received, the city manager or the city manager's designee shall fix a time and place for hearing such appeal and shall notify the appellant thereof in writing not less than ten business days prior to the hearing. The treasurer's determination and assessment shall be presumed correct, and the burden shall be on the appellant to prove otherwise. The city manager or the city manager's designee shall have the authority to amend, vacate, or affirm the treasurer's decision in conformity with the intent and purpose of this chapter. The findings of the city manager or the city manager's designee shall be final and conclusive, and the appellant shall be notified thereof in writing.

(i) No owner, lessee, or custodian of premises upon which a temporary or permanent place is located shall lease or permit the same to be used by a person charging admission, unless the person both holds a current license or exemption certificate duly issued by the treasurer for the use of such premises for the location, purpose, and date range specified therein and has filed and paid the monthly or annual returns and taxes levied by this chapter. Any owner, lessee, or custodian who leases or permits the use of such premises in violation of the foregoing requirement shall be liable for the amount of taxes levied by this chapter for admission sold in connection with entry into the place or places located upon such premises, and such taxes shall be a lien upon such premises.

(C.O. 309-6; a. Ord. No. 90-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 309-13; eff. Jan. 1, 1975; a. Ord. No. 327-1975, eff. Sept. 1, 1975; a. Ord. No. 282-1979, eff. Sept. 1, 1979; Emer. Ord. 463-2010, § 5, eff. Dec. 30, 2010; a. Emer. Ord. No. 0206-2019, eff. July 1, 2019; a. Emer. Ord. No. 0021-2024, § 2, eff. April 1, 2024)

Cross reference—Penalty, § 309-99.

Sec. 309-15. Repealed.

(C.O. 309-7; renumbered to C.M.C. 309-15, eff. Jan. 1, 1972; r. Emer. Ord. No. 0021-2024, § 3, eff. April 1, 2024)

Sec. 309-17. Taxes Made a Lien.

(a) The taxes imposed by this chapter shall be a lien upon all of the property of any person required to collect and pay or to pay the same. If such person shall sell out or quit business, such person shall be required to make out the return and pay such taxes as are due, as provided for under this chapter, within thirty days after the date of sale of such business, or retirement therefrom, and the successor in business shall be required to withhold a sufficient amount of the

purchase money to cover the amount of said unpaid taxes, together with interest, if any, until such time as the former owner shall produce a receipt from the treasurer showing that the taxes have been paid or a certificate that no taxes are due.

(b) If the purchaser of a business shall fail to withhold purchase money as provided above, and the taxes due are unpaid after the thirty-day period allowed, the purchaser shall be liable for the payment of the unpaid taxes on account of the operation of the business by the former owner, together with interest, as provided by this chapter.

(c) The lien for unpaid taxes herein imposed shall not become effective until such time as the treasurer shall certify to the county auditor of Hamilton county the amount of taxes delinquent, and such certification is placed on record by the county recorder of said county in a book maintained for that purpose.
(C.O. 309-8; renumbered to C.M.C. 309-17, eff. Jan. 1, 1972; a. Ord. No. 337-1979, eff. Aug. 1, 1979; a. Emer. Ord. No. 0021-2024, § 2, eff. April 1, 2024)

Sec. 309-19. Additional Assessment; Notice.

If a vendor has made a return and paid the tax shown by the return to be due, but the treasurer determines that additional tax is due, the treasurer may make an additional assessment of the tax due from the vendor based upon the facts contained in the return or otherwise acquired by the city. The treasurer shall notify the vendor in writing of the additional assessment together with notice of the date by which the vendor must pay the assessed tax or file an application for reassessment pursuant to section 309-27.
(C.O. 309-9; renumbered to C.M.C. 309-19, eff. Jan. 1, 1972; a. Ord. No. 337-1979, eff. Aug. 1, 1979; a. Emer. Ord. No. 0021-2024, § 2, eff. April 1, 2024)

Sec. 309-21. Estimated Assessment; Penalty; Notice.

If a vendor fails to file a return required by this chapter, or having tendered a return fails to pay the amount of taxes shown to be due, the treasurer shall make an estimated assessment of the probable amount of the taxes payable by the delinquent vendor based upon the facts contained in the return or otherwise acquired by the city, to which shall be added a penalty of ten percent of the amount assessed. The treasurer shall notify the vendor in writing of the estimated assessment and penalty together with notice of the date by which the vendor must pay the assessed tax or may file an application for reassessment pursuant to section 309-27. The treasurer may waive or reduce the ten percent penalty upon concluding that the failure to pay the amount of taxes due was the result of mistake or inadvertence.
(C.O. 309-10; renumbered to C.M.C. 309-21, eff. Jan. 1, 1972; a. Emer. Ord. No. 0021-2024, § 2, eff. April 1, 2024)

Sec. 309-23. Estimated Assessment When Access to Records Is Refused; Penalty; Notice.

If a vendor refuses the treasurer or the treasurer's designee access to records as required by section 309-11(c), the treasurer may make an estimated assessment of the probable amount of the additional tax due from the vendor, to which shall be added a penalty of fifteen percent of the amount assessed. The treasurer shall notify the vendor in writing of the estimated additional assessment and penalty together with notice of the date by which the vendor must pay the assessed tax or file an application for reassessment pursuant to section 309-27.
(C.O. 309-11; renumbered to C.M.C. 309-23, eff. Jan. 1, 1972; a. Emer. Ord. No. 0021-2024, § 2, eff. April 1, 2024)

Sec. 309-25. When Taxes by Assessment and Penalties Are Due and Payable.

All taxes and penalties imposed by the treasurer pursuant to sections 309-19, 309-21, or 309-23 shall be due and payable fourteen calendar days after the treasurer has notified the vendor in writing of the assessment and penalty, unless the vendor timely files an application for reassessment, in which case all taxes and penalties resulting from the assessment shall be due and payable at the time required by section 309-27.

(C.O. 309-12; renumbered to C.M.C. 309-25, eff. Jan. 1, 1972; a. Emer. Ord. No. 0021-2024, § 2, eff. April 1, 2024)

Sec. 309-27. Application for Reassessment; Hearing; Notice.

A vendor who has received notice of an assessment or penalty imposed pursuant to sections 309-19, 309-21, or 309-23 may file an application for reassessment with the treasurer. Such application shall be filed within fourteen calendar days after the treasurer has notified the vendor of the assessment and penalty, provided, however, that the treasurer may extend the time to file the application for good cause. The application shall contain all the argument and reasons why such assessment or penalty should be reversed, vacated, or modified. Within 28 calendar days of the filing of such application for reassessment, the treasurer shall affirm, reverse, vacate, or modify the same and shall promptly notify the applicant of the decision in writing. Such determination shall be final, and all taxes and penalties resulting from the assessment, estimated assessment, or estimated additional assessment shall become payable fourteen calendar days after the treasurer has notified the applicant of the treasurer's decision.

(C.O. 309-13; renumbered to C.M.C. 309-27, eff. Jan. 1, 1972; a. Emer. Ord. No. 0021-2024, § 2, eff. April 1, 2024)

Sec. 309-29. Notices Authorized To Be Mailed or Delivered Electronically.

Any notice authorized or required under the provisions of this chapter may be given by mailing the same to a person in a post-paid envelope addressed to such person at the address provided in the last filed return or, if no return has been filed, then to such address as may be obtainable. Such notice may, either in addition to or in the alternative, be given to a person electronically by mailing the same to a person at the electronic mail address provided in the last filed return or, if no return has been filed, then to such electronic mail address as may be obtainable. The mailing of such notice, whether by U.S. mail or by electronic mail, shall be prima facie evidence of the receipt of the same by the person to whom addressed. Any period of time which is determined according to the provisions of this chapter by the giving of notice shall commence to run from the date of mailing such notice, inclusive of such date.

(C.O. 309-14; renumbered to C.M.C. 309-29, eff. Jan. 1, 1972; a. Ord. No. 337-1979, eff. Aug. 1, 1979; a. Emer. Ord. No. 0021-2024, § 2, eff. April 1, 2024)

Sec. 309-31. Refunds; Application; Hearing; Notice.

(a) Upon the treasurer's initiative or upon application made as provided in this section, the treasurer shall refund the amount of any taxes the treasurer determines to have been erroneously collected, if the treasurer determines both that the tax was collected or paid in error and that the same can and will be duly refunded to the payors, purchasers, or other persons from whom it was collected.

(b) A person who has paid a tax to the treasurer or that person's executors, administrators, successors, or assigns may

apply to the treasurer, on behalf of and for the benefit of a person or persons from whom it was collected, for a refund of any tax erroneously collected and paid. Such application shall be made in writing within one year of the person's payment of such tax and shall contain all the argument and reasons why such tax should be refunded. The treasurer shall set a time and place for the applicant to be heard and shall notify the applicant of the same in writing. Within 28 calendar days from the date of such hearing, the treasurer shall determine whether a refund is due and shall promptly notify the applicant of the decision in writing. The treasurer shall pay a refund, if any, to the applicant within 28 calendar days of the issuance of the decision.

(c) Notwithstanding the foregoing, no refund shall be made of a tax or penalty paid pursuant to a determination of the treasurer as provided for in sections 309-19 through 309-27, inclusive, except pursuant to the process provided in those sections or upon the city's receipt of an unappealable judgment from a court of competent jurisdiction stating that the tax or penalty has been collected in error.

(C.O. 309-15; renumbered to C.M.C. 309-31, eff. Jan. 1, 1972; a. Ord. No. 337-1979, eff. Aug. 1, 1979; a. Emer. Ord. No. 0206-2019, eff. July 1, 2019; a. Emer. Ord. No. 0021-2024, § 2, eff. April 1, 2024)

Sec. 309-33. Moneys Received; Where Credited.

The moneys received under the provisions of this chapter shall be credited to the general fund of the city.

(C.O. 309-17; renumbered to C.M.C. 309-33, eff. Jan. 1, 1972)

Sec. 309-99. Penalties.

(a) No person shall sell or resell, or facilitate the sale or resale of, admission without holding a valid license or exemption certificate as required by the provisions of this chapter.

(b) No person charged by any section of this chapter with the duty of collecting or paying the taxes imposed by this chapter shall willfully fail or refuse to do any of the following as required by the provisions of this chapter:

(1) charge and collect such taxes;

(2) remit such taxes to the treasurer;

(3) make true and accurate returns to the treasurer;

(4) submit true and accurate information to the treasurer when applying for a license or exemption pursuant to this chapter;

(5) permit the treasurer or the treasurer's designee to examine the books and other records of admission; or

(6) maintain and keep for three years, or such lesser or greater time as may be permitted or required by the treasurer, such records of admissions as the treasurer may require.

(c) No holder of a license issued under the provisions of this chapter shall use or display a license or exemption certificate that the treasurer has suspended or revoked.

(d) Whoever violates any provision of this section shall be guilty of a misdemeanor of the first degree, and shall be fined not more than $500, or imprisoned not more than 60 days, or both.

(C.O. 309-16; a. Ord. No. 414-1970, eff. Dec. 23, 1970; renumbered to C.M.C. 309-99, eff. Jan. 1, 1972; a. Ord. No. 337-1979, eff. Aug. 1, 1979; a. Emer. Ord. No. 0206-2019, eff. July 1, 2019; a. Emer. Ord. No. 0021-2024, § 2, eff. April 1, 2024)

Sec. 309-99-A. Repealed.

(C.O. 309-3; a. Ord. No. 469-1958, eff. Dec. 31, 1958; renumbered to C.M.C. 309-99-A,

eff. Jan. 1, 1972; a. Ord. No. 337-1979, eff. Aug. 1, 1979; r. Emer. Ord. No. 0206-2019, eff. July 1, 2019)

Chapter 311

CITY OF CINCINNATI INCOME TAX*

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*__Editor's note—__Ord. No. 363-2015, §§ 1 and 2, adopted Dec. 2, 2015, and effective Jan. 1, 2016, repealed ch. 311 in its entirety and enacted a new chapter as set out herein. The former ch. 311, §§ 311-1—311-99, pertained to similar subject matter and derived from Ord. No. 385-2004, § 1, eff. Dec. 8, 2004, and Emer. Ord. No. 193-2013, § 1, eff. June 26, 2013.

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Sec. 311-1. Authority to levy tax; effective periods.

(a) The tax on income and the withholding tax established by this Chapter 311 are authorized by Article XVIII, Section 3 of the Ohio Constitution. The tax on income and the withholding tax established by this chapter are deemed to be levied in accordance with, and to be consistent with, the provisions and limitations of Ohio Revised Code Chapter 718. This chapter is deemed to incorporate the provisions of Ohio Revised Code Chapter 718, with permitted elections as provided herein.

(b) The tax is an annual tax levied on the municipal taxable income of every person residing in or earning or receiving income in the City of Cincinnati. The City of Cincinnati shall tax income at a uniform rate as provided in Section 311-3 of this chapter.

(c) The tax imposed by Section 311-3(a) of this chapter shall be levied, collected and paid with respect to all taxable income that is subject to the tax and that is earned or received on or after April 1, 1973.

(d) The tax imposed by Section 311-3(b) of this chapter shall be levied, collected and paid with respect to all taxable income that is subject to the tax and that is earned or received after July 1, 1988, except as provided in Section 311-5 of this chapter.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-3. Purposes; Imposition of Tax; Tax Rates.

(a) To provide funds for the purposes of general municipal operations, maintenance, new equipment, extension and enlargement of municipal services and facilities and capital improvements of the City of Cincinnati, including the pledging and payment of tax revenues for the principal and interest on bonds and notes issued to finance permanent improvements, and to provide public transit purposes generally and without limitation and including both capital and current operating expenses, there shall be, and is hereby, levied an annual tax, at the rate of 1.7 percent (1.7%) per annum upon municipal taxable income as defined in Section 311-9-M2 of this chapter, subject to the provisions of Section 311-107 of this chapter. For tax years beginning prior to January 1, 2016, the tax imposed by this section on the net profits of an electric company, combined company or telephone company shall be subject to, and shall accord with, Ohio Revised Code Chapter 5745.

(b) To provide funds for current operating expenses and permanent improvement purposes, including both direct and indirect cost (including the pledging and payment of tax revenues for the principal and interest on bonds and notes to finance permanent improvements) related to the construction, operation, equipment, maintenance and repair of the infrastructure of the city, including, but not limited to, streets, roads, thoroughfares, avenues, expressways, parkways, sidewalks, plazas, parks, recreation areas, grounds, ways, bridges, viaducts, tunnels, walls, structures, buildings, fixtures, traffic signals, street lighting and marking, landscaping, signage, telecommunications and information systems, there shall be, and is hereby levied on and after July 1, 1988, an annual tax at the rate of 0.1 percent (0.1%) per annum, in addition to any other tax imposed by Chapter 311 pursuant to authority granted in the charter of the city, and subject to provisions of Section 311-5 and 311-107 herein, upon those categories of income specified in Section 311-9-M2, as amended.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016; a. Ord. No. 0008-2023, §§ 1, 2, eff. January 11, 2023)

Sec. 311-5. Effective Period of Infrastructure Levy.

(a) The tax imposed by Section 311-3(b) of this chapter shall terminate and shall not be levied on or after July 1 of any year subsequent to 1992 in which the Municipality's Annual Financial Reports show that:

(i) For any calendar year subsequent to 1989 less than ninety percent (90%) of the lesser of:

(1) The base amount for such year; or

(2) The amount appropriated in such year for infrastructure purposes specified in Section 311-3(b) from all city funds except Metropolitan Sewer District Fund No. 701, Water Works Fund No. 101, Parking Systems Facilities Fund No. 102, Riverfront Stadium Fund No. 106, Stormwater Management Fund No. 107, Convention-Exposition Center Fund No. 103, and Lunken Airport Fund No. 104 (which seven (7) funds may be jointly referred to herein as the "Enumerated Funds") was expended for such infrastructure purposes by the end of the second (2^{nd}) calendar year following the subject calendar year;

(ii) In 1990, 1991, 1992, 1993 and 1994 the amount appropriated in any calendar year for infrastructure purposes in Section 311-3(b) from all city funds except the Enumerated Funds was less than the base amount for such calendar year; or

(iii) In any calendar year subsequent to 1994 both of the following conditions occur:

(1) In such calendar year the total amount appropriated for infrastructure purposes specified in Section 311-3(b) from all Municipal funds except the Enumerated Funds was less than the base amount for such calendar year; and

(2) In such year and the two (2) preceding calendar years the total amount appropriated for infrastructure purposes specified in Section 311-3(b) from all Municipal funds except the Enumerated Funds was less than an amount which is the result of multiplying the total amount of all appropriations in such three-year period for any purposes from all city funds except the Enumerated Funds times the 1994 Ratio. The "1994 Ratio" as used herein means the ratio of the base amount for 1994 to the amount of all appropriations in 1994 for any purposes from all Municipal funds except the Enumerated Funds.

(b) As used in this section, the "base amount" shall be determined by application of the Annual Calculation set forth in Section 311-5(b)(i) or as otherwise specifically stated below:

(i) Annual Calculation: The base amount for each year shall be the lesser of the following two calculated amounts:

(1) The base amount for the previous year adjusted upward or downward by an amount obtained by multiplying such previous year's base amount by the percentage change in the Implicit Price Deflator for Gross Domestic Product in the second (2^{nd}) calendar year preceding the calendar year for which the base amount is being calculated, as

compared with the third (3rd) calendar year preceding such year (for example, in calculating the base amount for 1991, the multiplier shall be the percentage change from 1988 to 1989); or

(2) The base amount for the previous year adjusted upward or downward by an amount obtained by multiplying such previous year's base amount by the preceding change in the General Fund revenues of the Municipality in the second (2nd) calendar year preceding the year for which the base amount is being calculated, as compared with the third (3rd) calendar year preceding such year.

The Implicit Price Deflator for Gross Domestic Product is determined by the U.S. Department of Commerce, Bureau of Economic Analysis and is reported in the publication ECONOMIC INDICATORS prepared for the Joint Economic Committee by the Council of Economic Advisors.

(ii) For the year 1990, the base amount shall be $42 million.

(iii) For the years 1991, 1992 and 1993 the base amount shall be calculated as set forth in the Annual Calculation specified in Section 311-5(b)(i).

(iv) For the year 1994, the base amount shall be calculated as follows: The base amount for 1987 shall be $42 million. Solely for the purposes of determining the base amount for 1994, a recalculated base amount shall be calculated for 1988, 1989, 1990, 1991, 1992, and 1993 by applying the Annual Calculation specified in Section 311-5(b)(i) above to the recalculated base amounts commencing with the 1987 base amount. For the year 1994 the base amount shall be determined by applying the Annual Calculation specified in Section 311-5(b)(i) above to the base amount for the previous year.

(v) For the year 1995 and thereafter, the base amount for each year shall be determined by applying the Annual Calculation specified in Section 311-5(b)(i) above to the base amount for the previous year.

(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-7. Allocation of Funds.

(a) The revenues collected under the provisions of Section 311-3(a) shall be deposited in, and allocated to, the "Undistributed Income Tax Fund." Each year council shall appropriate from the Undistributed Income Tax Fund the amount of money it determines necessary for current operating expenses and permanent improvements allocable to said fund; except that not less than 0.15 percent (0.15%) shall be used as required by the charter for the financing of permanent improvements, including the pledging of such tax revenue for payment of principal and interest on bonds and notes issued by the Municipality to finance permanent improvements.

(b) The revenues collected pursuant to the imposition of tax in Section 311-3(b) shall be deposited into the "Undistributed Income Tax Fund" and shall thereafter be allocated to the "Income Tax—Infrastructure Fund." Each year, council shall appropriate from said funds the amount of money it determines necessary for current operating expenses and permanent improvements allocable to said fund in accordance with the purposes set forth in Section 311-3(b).

(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016; a. Ord. No. 0008-2023, §§ 1, 2, eff. January 11, 2023)

Sec. 311-9. Definitions.

For purposes of this chapter, the words and phrases defined in the sections hereunder shall have the meanings herein respectively ascribed to them unless the context clearly indicates or requires a different meaning. Any term used in this chapter that is not otherwise defined in this chapter has the same meaning as when used in a comparable context in laws of the United States relating to federal income taxation or in Title LVII of the Ohio Revised Code, unless a different meaning is clearly required. If a term used in this chapter that is not otherwise defined in this chapter is used in a comparable context in both the laws of the United States relating to federal income tax and in Title LVII of the Ohio Revised Code and the use is not consistent, then the use of the term in the laws of the United States relating to federal income tax shall control over the use of the term in Title LVII of the Ohio Revised Code.

The singular shall include the plural, and the masculine shall include the feminine and the neuter.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-A1. Adjusted Federal Taxable Income.

"Adjusted federal taxable income," for a person required to file as a C corporation, or for a person that has elected to be taxed as a C corporation under division (d)(ii) of Section 311-9-N2, means a C corporation's federal taxable income (or loss) before net operating losses and special deductions under the Internal Revenue Code, adjusted as follows:

(a) Deduct intangible income to the extent included in federal taxable income. The deduction shall be allowed regardless of whether the intangible income relates to assets used in a trade or business or assets held for the production of income;

(b) Add an amount equal to five percent (5%) of intangible income deducted under Section 311-9-A1(a), but exclude that portion of intangible income directly related to the sale, exchange, or other disposition of property described in section 1221 of the Internal Revenue Code;

(c) Add any losses allowed as a deduction in the computation of federal taxable income if the losses directly relate to the sale, exchange, or other disposition of an asset described in section 1221 or 1231 of the Internal Revenue Code;

(d) (i) Except as provided in subsection (d)(ii) of Section 311-9-A1, deduct income and gain included in federal taxable income to the extent the income and gain directly relate to the sale, exchange, or other disposition of an asset described in section 1221 or 1231 of the Internal Revenue Code;

(ii) Subsection (d)(i) of Section 311-9-A1 does not apply to the extent the income or gain is income or gain described in section 1245 or 1250 of the Internal Revenue Code;

(e) Add taxes on or measured by net income allowed as a deduction in the computation of federal taxable income;

(f) Deduct exempt income to the extent not otherwise deducted or excluded in computing adjusted federal taxable income.

(g) In the case of a real estate investment trust and regulated investment company, add all amounts with respect

to dividends to, distributions to, or amounts set aside for or credited to the benefit of investors and allowed as a deduction in the computation of federal taxable income;

(h) For tax years beginning on or after January 1, 2016, deduct, to the extent not otherwise deducted or excluded in computing federal taxable income, any income derived from a transfer agreement or from the enterprise transferred under that agreement under section 4313.02 of the Ohio Revised Code;

(i) For tax years beginning on or after January 1, 2018, deduct net operating loss as provided in Section 311-21 of this chapter;

(j) For tax years beginning on or after January 1, 2016, deduct any net profit of a pass-through entity owned directly or indirectly by the taxpayer and included in the taxpayer's federal taxable income unless an affiliated group of corporations includes that net profit in the group's federal taxable income in accordance with subsection (d)(iii)(3)(B) of Section 311-59 of this chapter;

(k) For tax years beginning on or after January 1, 2016, add any loss incurred by a pass-through entity owned directly or indirectly by the taxpayer and included in the taxpayer's federal taxable income unless an affiliated group of corporations includes that loss in the group's federal taxable income in accordance with subsection (d)(iii)(3)(B) of Section 311-59 of this chapter;

(l) If the taxpayer is not a C corporation and is not an individual, and for tax years beginning on or after January 1, 2016 is neither a disregarded entity that has made the election described in Section 311-9-T6 nor a publicly traded partnership that has made the election described in subsection (d)(ii) of Section 311-9-N2, the taxpayer shall compute adjusted federal taxable income as if the taxpayer were a C corporation, except:

(i) Guaranteed payments and other similar amounts paid or accrued to a partner, former partner, member or former member, and for tax years beginning on or after January 1, 2016 a shareholder or former shareholder, shall not be allowed as a deductible expense unless, for tax years beginning on or after January 1, 2016, such payments are in consideration for the use of capital and treated as payment of interest under Section 469 of the Internal Revenue Code or United States treasury regulations; and

(ii) (1) For tax years beginning before January 1, 2016, amounts paid or accrued to a qualified self-employed retirement plan with respect to an owner or owner-employee of the taxpayer, amounts paid or accrued to or for health insurance for an owner or owner-employee and amounts paid or accrued to or for life insurance for an owner or owner-employee shall not be allowed as a deduction;

(2) For tax years beginning on or after January 1, 2016, amounts paid or accrued to a qualified self-employed retirement plan with respect

to a partner, former partner, shareholder, former shareholder, member or former member of the taxpayer, amounts paid or accrued to or for health insurance for a partner, former partner, shareholder, former shareholder, member or former member, and amounts paid or accrued to or for life insurance for a partner, former partner, shareholder, former shareholder, member or former member shall not be allowed as a deduction.

Nothing herein shall be construed as allowing the taxpayer to add or deduct any amount more than once or shall be construed as allowing any taxpayer to deduct any amount paid to or accrued for purposes of federal self-employment tax.

This definition does not apply to any taxpayer required to file a return under Ohio Revised code section 5745.03 or to the net profit from a sole proprietorship.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016; a. Ord. No. 019-2018, § 1, eff. March 22, 2018)

Sec. 311-9-A2. Assessment.

For tax years beginning on or after January 1, 2016, "assessment" means any of the following:

(a) A written finding by the tax commissioner that a person has underpaid municipal income tax, or owes penalty and interest, or any combination of tax, penalty, or interest, to the municipal corporation;

(b) A full or partial denial of a refund request issued under Section 311-71(c)(i) of this chapter;

(c) The tax commissioner's denial of a taxpayer's request for use of an alternative apportionment method, issued under Section 311-17(b)(ii) of this chapter; or

(d) The tax commissioner's requirement for a taxpayer to use an alternative apportionment method, issued under Section 311-17(b)(iii) of this chapter.

An assessment shall commence the person's time limitation for making an appeal to the local board of review pursuant to Section 311-97 of this chapter, and shall have "ASSESSMENT" written in all capital letters at the top of such finding.

"Assessment" does not include notice(s) denying a request for refund issued under Section 311-71(c)(ii) of this chapter, a billing statement notifying a taxpayer of current or past-due balances owed to the municipal corporation, the tax commissioner's request for additional information, a notification to the taxpayer of mathematical errors, or the tax commissioner's other written correspondence to a person or taxpayer that does not meet the criteria prescribed by this section.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-A3. Audit.

"Audit" means the examination of a person, or the inspection of the books, records, memoranda, or accounts of a person, ordered to appear before the tax commissioner, for the purpose of determining liability for a municipal income tax. "Audit" includes those examinations and inspections conducted as set forth in more detail in Section 311-79 of this chapter.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-B1. Board of Review.

"Board of Review" means the board created by and constituted as provided in Section 311-97 of this chapter.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-B2. Business.

"Business" means an enterprise, activity, profession, or undertaking of any nature conducted for profit or ordinarily conducted for profit, whether by an individual, pass-through entity, corporation or any other entity, including but not limited to the renting or leasing of property, whether real, personal or mixed. "Business" conducted within the Municipality includes the direct or indirect ownership of an interest in a pass-through entity that conducts business within the Municipality.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-C1. Calendar Quarter.

"Calendar quarter" means the three-month period ending on the last day of March, June, September, or December.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-C2. Capital Asset; Capital Gain or Loss.

"Capital asset" has the meaning as specifically defined by Section 1221 of the Internal Revenue Code, and a "capital gain or loss" means the gain or loss from the sale or exchange of a capital asset.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-C3. Casino Operator; Casino Facility.

"Casino operator" and "casino facility" have the same meanings as defined in Section 6(C)(9) of Article XV, Ohio Constitution, and section 3772.01 of the Ohio Revised Code.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-C4. Certified Mail; Express Mail; United States Mail; Postal Service.

"Certified mail," "express mail," "United States mail," "postal service," and similar terms include any delivery service authorized pursuant to Ohio Revised Code section 5703.056.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-C5. Chapter.

"Chapter" means Chapter 311 of the Cincinnati Municipal Code.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-C6. Corporation.

"Corporation" means a corporation, joint stock association or an S corporation organized under the laws of the United States, the State of Ohio, or any other state, territory or foreign country or dependency. The term "corporation" also includes an entity treated as a corporation for federal income tax purposes, including, but not limited to, publicly traded partnerships, regulated investment companies, real estate investment trusts and partnerships and limited liability companies that elect to be treated as corporations for federal income tax purposes. The term "corporation" also includes a "combined company," an "electric company," and a "telephone company," all as is defined in Ohio Revised Code section 5727.01. Finally, the term "corporation" does

not include a limited liability company that is treated as a partnership for federal income tax purposes.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-D1. Disregarded Entity.

"Disregarded entity" means a single member limited liability company, a qualifying subchapter S subsidiary, or another entity if the company, subsidiary, or entity is a disregarded entity for federal income tax purposes.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-D2. Domicile.

"Domicile" means a principal residence that the taxpayer intends to use for an indefinite time and to which whenever he or she is absent he or she intends to return. A taxpayer has only one domicile even though he or she may have more than one residence.

(a) An individual is presumed to be domiciled in the Municipality for all or part of a taxable year if the individual was domiciled in the Municipality on the last day of the immediately preceding taxable year or if the tax commissioner reasonably concludes that the individual is domiciled in the Municipality for all or part of the taxable year.

(b) An individual may rebut the presumption of domicile described in subsection (b) of this section if the individual establishes by a preponderance of the evidence that the individual was not domiciled in the Municipality for all or part of the taxable year.

(c) For the purpose of determining whether an individual is domiciled in the Municipality for all or part of a taxable year, the factors that may be considered are those set forth in Ohio Revised Code section 718.012.

(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-E1. Employee.

"Employee" means one who works for qualifying wages in the services of an employer.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-E2. Employer.

"Employer" means either of the following:

(a) An individual, corporation, pass-through entity, governmental body, unit or agency, or any other entity, whether or not organized for profit, who or that employs one or more persons on a qualifying wages basis; or

(b) An individual, pass-through entity, corporation or any other entity who or that promotes, books or contracts for individuals or groups to perform or entertain at their place of business, or rents facilities for the purpose of providing such entertainment.

Solely with respect to persons engaged to provide domestic service at a private residence, for tax years beginning prior to January 1, 2016, the term "employer" does not include any person who employs domestic help for such person's private residence.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-E3. Exempt Income.

"Exempt income" means those sources of income not subject to taxation as specifically set forth in Section 311-15 of this chapter. Any other source of income, benefits, or

other forms of compensation not specifically delineated in Section 311-15 shall be a taxable source of income.

Any item of income that is exempt income of a pass-through entity under Section 311-15 of this chapter is exempt income of each owner of the pass-through entity to the extent of that owner's distributive or proportionate share of that item of the entity's income.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-F1. Fiscal Year.

"Fiscal year" means an accounting period of twelve (12) months or less ending on any day other than December 31.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-F2. Form 2106.

"Form 2106" means Internal Revenue Service Form 2106 filed by a taxpayer pursuant to the Internal Revenue Code.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-G1. Generic Form.

"Generic form" means an electronic or paper form designed for reporting taxes withheld by an employer, agent of an employer, or other payer, for reporting estimated municipal income taxes and annual municipal income tax liability, or for filing a refund claim and that is not prescribed by the Municipality for the reporting of municipal income tax but that comports with the requirements of Ohio Revised Code section 718.05 and this chapter.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-G2. Gross Receipts.

"Gross receipts" means the total income of taxpayers from whatever source derived.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-I1. Income.

"Income" means the following:

(a) For residents, all income, salaries, qualifying wages, commissions, and other compensation from whatever source earned or received by the resident, including the resident's distributive share of the net profit of pass-through entities owned directly or indirectly by the resident, regardless of where such business is conducted, and any net profit of the resident, except as provided in subsection (d) of Section 311-9-N2 and except as provided in Section 311-15. For the purposes of this subsection (a):

(i) Any net operating loss of the resident incurred in the taxable year and the resident's distributive share of any net operating loss generated in the same taxable year and attributable to the resident's ownership interest in a pass-through entity shall be allowed as a deduction, for that taxable year and the following five taxable years, against any other net profit of the resident or the resident's distributive share of any net profit attributable to the resident's ownership interest in a pass-through entity until fully utilized, subject to subsection (a)(iii) of this section. The resident's distributive share of the net profit of each pass-through entity owned directly or indirectly by the resident shall be calculated without regard to

any net operating loss that is carried forward by that entity from a prior taxable year and applied to reduce the entity's net profit for the current taxable year.

(ii) Subsection (a)(i) of this section does not apply with respect to any net profit or net operating loss attributable to an ownership interest in an S corporation.

(iii) Any amount of a net operating loss used to reduce a taxpayer's net profit for a taxable year shall reduce the amount of net operating loss that may be carried forward to any subsequent year for use by that taxpayer. In no event shall the cumulative deductions for all taxable years with respect to a taxpayer's net operating loss exceed the original amount of that net operating loss available to that taxpayer.

(b) For nonresidents:

(i) For tax years beginning prior to January 1, 2016:

(1) All qualifying wages earned or received by the nonresident for work done, services performed or rendered in the Municipality, including any net profits earned or received from the operation or conduct of business in the Municipality;

(2) "Income" includes a nonresident owner's distributive share of the net profits of a pass-through entity earned from business conducted in the Municipality, whether or not such pass-through entity has an office or place of business in the Municipality; and

(3) Where a nonresident is employed at a place of business in the Municipality, the qualifying wages of such nonresident for the performance of employee services will be treated as earned outside the municipality only for those services which of necessity, as distinguished from convenience, obligate such nonresident to duties outside the municipality in the service of the nonresident's employer;

(ii) For tax years beginning on or after January 1, 2016, all income, salaries, qualifying wages, commissions, and other compensation from whatever source earned or received by the nonresident for work done, services performed or rendered, or activities conducted in the Municipality, including any net profit of the nonresident, but excluding the nonresident's distributive share of the net profit or loss of only pass-through entities owned directly or indirectly by the nonresident;

(iii) Net profits from a business or profession conducted both within and without the boundaries of the Municipality shall be apportioned as set forth in Section 311-17 of this chapter.

(c) For tax years beginning prior to January 1, 2016, a corporation's net profit derived from business conducted in the Municipality, regardless of

whether such corporation has an office or place of business in the Municipality; and, for tax years beginning on or after January 1, 2016, the net profit of any taxpayer that is not an individual.

(d) All lottery, sweepstakes, gambling and sports winnings, winnings from games of chance, and prizes and awards of residents regardless of where derived, and those derived by nonresidents from activities within the Municipality. If the taxpayer is a professional gambler for federal income tax purposes, the taxpayer may deduct related wagering losses and expenses to the extent authorized under the Internal Revenue Code and claimed against such winnings. Credit for tax withheld or paid to another municipal corporation on such winnings paid to the municipal corporation where winnings occur is limited to the credit as specified in Sections 311-31 and 311-51 of this chapter.

(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-I2. Intangible Income.

"Intangible income" means income of any of the following types as specified in Ohio Revised Code section 718.01(A)(5): income yield, interest, capital gains, dividends, or other income arising from the ownership, sale, exchange, or other disposition of intangible property including, but not limited to, investments, deposits, money, or credits as those terms are defined in Chapter 5701 of the Ohio Revised Code, and patents, copyrights, trademarks, trade names, investments in real estate investment trusts, investments in regulated investment companies, and appreciation on deferred compensation. "Intangible income" does not include prizes, awards, or other income associated with any lottery winnings, gambling winnings, or other similar games of chance.

(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-I3. Internal Revenue Code.

"Internal Revenue Code" means the Internal Revenue Code of 1986, 100 Stat 2085, 26 U.S.C. 1, as amended.

(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-J. Joint Economic Development District.

"Joint Economic Development District" means districts created under the Ohio Revised Code sections 715.70, 715.71, or 715.72 as amended, and includes Joint Economic Zones created under Ohio Revised Code section 715.691, as amended.

(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-L1. Limited Liability Company.

"Limited liability company" means a limited liability company formed under Chapter 1705 of the Ohio Revised Code or under the laws of another state.

(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-L2. Lottery Sports Gaming.

"Lottery sports gaming" has the same meaning as in Section 3770.23 of the Ohio Revised Code or a successor statute or section.

(Ordained by Ord. No. 338-2022, § 1, eff. Oct. 26, 2022)

Sec. 311-9-M1. Municipal Corporation.

"Municipal corporation" means, in general terms, a status conferred upon a local govern-

ment unit, by state law giving the unit certain autonomous operating authority such as the power of taxation, power of eminent domain, police power and regulatory power, and includes a joint economic development district or joint economic development zone that levies an income tax under section 718.691 or 715.74 of the Ohio Revised Code. (Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-M2. Municipal Taxable Income.

"Municipal taxable income" means the following:

(a) (i) For a person other than an individual, income apportioned or situsedto the Municipality under Section 311-17 of this chapter, as applicable, reduced by any pre-2017 net operating loss carryforward available to the person for the Municipality;

(ii) For an individual who is a resident of the Municipality, income reduced by exempt income to the extent otherwise included in income, then reduced as provided in subsection (b) of this section, and further reduced by any pre-2017 net operating loss carryforward available to the individual for the Municipality;

(iii) For an individual who is a nonresident of the Municipality, income reduced by exempt income to the extent otherwise included in income and then, as applicable, apportioned or situsedto the Municipality under Section 311-17 of this chapter, then reduced as provided in subsection (b) of this section, and further reduced by any pre-2017 net operating loss carryforward available to the individual for the Municipality.

(b) In computing the municipal taxable income of a taxpayer who is an individual, an employee who receives qualifying wages and who pays business expenses without reimbursement from his or her employer shall be entitled to a deduction, as provided in subsections (a)(ii) and (a)(iii) of this section, as follows:

(i) For tax years beginning prior to January 1, 2016, to the same extent allowed for federal income tax purposes, or which would otherwise be allowed if the taxpayer had not used the standard deduction when filing his or her federal income tax return, but only to the extent that such expenses are considered ordinary, necessary and reasonable and are incurred in earning the specific qualifying wages. In no case shall the total of such deductions exceed the taxpayer's qualifying wages received from his or her employer;

(ii) For tax years beginning on or after January 1, 2016, to the same extent reported on the individual's form 2106 and deducted for federal income tax purposes for the tax year, subject to the limitation imposed by Section 67 of the Internal Revenue Code. A resident taxpayer may deduct all such expenses allowed for federal income tax purposes. A nonresident taxpayer may deduct such expenses only to the extent the expenses are related

to the taxpayer's performance of personal services in the Municipality.

(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016; a. Ord. No. 019-2018, § 1, eff. March 22, 2018)

Sec. 311-9-M3. Municipality.

"Municipality" means the City of Cincinnati, Ohio.

(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-N1. Net Operating Loss.

(a) "Net operating loss" means a loss incurred by a person in the operation of a trade or business. "Net operating loss" does not include unutilized losses resulting from basis limitations, at-risk limitations, or passive activity loss limitations.

(b) "Net operating loss" for a taxpayer other than an individual means adjusted federal taxable income, to the extent the application of section 311-9-A1 results in a number less than zero.

(c) "Net operating loss" for a taxpayer who is an individual means the individual's net loss required to be reported on Internal Revenue Service schedule C, schedule E, or schedule F.

(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-N2. Net Profit.

(a) "Net profit" for a taxpayer other than an individual means adjusted federal taxable income.

(b) "Net profit" for a taxpayer who is an individual means the individual's net profit required to be reported on Internal Revenue Service schedule C, schedule E, or schedule F reduced by any net operating loss carried forward. For the purposes of this subsection (b) of this section, the net operating loss carried forward shall be calculated and deducted as provided in section 311-21 of this chapter. As set forth in subsection 311-21(c), pre-2017 net operating losses carried forward shall be calculated and deducted against net profit subsequent to apportionment for tax years beginning prior to January 1, 2018, and net operating losses incurred in tax years beginning on or after January 1, 2017 that are carried forward shall be calculated and deducted prior to apportionment for tax years beginning on or after January 1, 2018.

(c) For tax years beginning on or after January 1, 2016, and notwithstanding subsection (a) of this section, net profit of a disregarded entity shall not be taxable as against that disregarded entity, but shall instead be included in the net profit of the owner of the disregarded entity.

(d) (i) For tax years beginning on or after January 1, 2016, and notwithstanding any other provision of this chapter, the net profit of a publicly traded partnership that makes the election described in subsection (d)(ii) of this section shall be taxed as if the partnership were a C corporation, and shall not be treated as the net profit or income of any owner of the partnership.

(ii) A publicly traded partnership that is treated as a partnership for federal income tax purposes and that is subject to tax on its net profits in one or more municipal corporations in this state may elect to be treated as a C corporation for municipal income tax purposes. The publicly traded partnership shall make the election on the annual municipal tax return in every municipal corporation in which the partnership is subject to taxation on its net profits. The election is binding for a five-year period

beginning with the first (1st) taxable year of the initial election, and for each subsequent five-year period unless the taxpayer elects to discontinue filing municipal income tax returns as a C corporation under subdivision (d)(iii) of this section.

(iii) An election to discontinue filing as a C corporation must be made in the first (1st) year following the last year of a five-year election period in effect under subsection (d)(ii) of this section. The election to discontinue filing as a C corporation is binding for a five-year period beginning with the first (1st) taxable year of the election and continues to be binding for each subsequent five-year period unless the taxpayer elects to discontinue filing municipal income tax returns as a partnership. An election to discontinue filing as a partnership must be made in the first (1st) year following the last year of a five-year election period.

(iv) Each resident individual owner of a publicly traded partnership not electing to file municipal income tax returns as a C corporation shall be required to file a return with the Municipality and report such owner's partnership distribution of net profit on that return.

(e) In determining "net profit," no deduction shall be allowed for any amount paid or accrued in respect of federal self-employment tax.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-N3. Nonqualified Deferred Compensation Plan.

"Nonqualified deferred compensation plan" means a compensation plan described in section 3121(v)(2)(C) of the Internal Revenue Code.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-N4. Nonresident.

"Nonresident" means any individual domiciled outside the Municipality.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-N5. Nonresident Owner.

"Nonresident owner" means an individual domiciled outside the Municipality who has a direct or indirect ownership interest in a pass-through entity that conducts business in the Municipality, and a corporation that has a direct or indirect ownership interest in a pass-through entity that conducts business in the Municipality.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-O1. Ohio Business Gateway.

"Ohio Business Gateway" means the online computer network system, initially created by the Ohio Department of Administrative Services under Ohio Revised Code section 125.30, that allows persons to electronically file business reply forms with Ohio agencies, and includes any successor electronic filing and payment system.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-O2. Organization.

"Organization" means a corporation for profit or not for profit, a pass-through entity, estate, trust, or other commercial or legal entity. "Organization" does not include an

entity organized as or by a governmental agency for the execution of a government program.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-O3. Other Payer.

"Other payer" means any person, other than an individual's employer or the employer's agent, that pays an individual any amount included in the federal gross income of the individual for federal income tax purposes. "Other payer" includes casino operators and video lottery terminal sales agents.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-O4. Owner.

"Owner" means an individual, partner, member, corporation, or any other person having an ownership interest in a pass-through entity.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-P1. Pass-through Entity.

"Pass-through entity" means a partnership not treated as an association taxable as a C corporation for federal income tax purposes, a limited liability company not treated as an association taxable as a C corporation for federal income tax purposes, or any other class of entity the income or profits of which are given pass-through treatment for federal income tax purposes. For tax years beginning before January 1, 2016, "pass-through entity" does not include an S corporation. For tax years beginning on or after January 1, 2016, a "pass-through entity" does not include an S corporation, trust, estate, grantor of a grantor trust, or disregarded entity.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-P2. Pension.

"Pension" means any amount paid to an employee or former employee that is reported to the recipient on an IRS form 1099-R, or successor form. "Pension" also means any amount paid to an employee or former employee pursuant to a retirement benefit plan, regardless of whether the plan satisfies the qualifications described under section 401(a) of the Internal Revenue Code, including amounts that are taxable under the "Federal Insurance Contributions Act," Chapter 21 of the Internal Revenue Code, excluding employee contributions and elective deferrals, and regardless of whether such amounts are paid in the same taxable year in which the amounts are included in the employee's wages, as defined by Section 3121(a) of the Internal Revenue Code.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016; a. Emer. Ord. No. 0011-2020, §§ 2, 3, eff. Jan. 15, 2020)

Sec. 311-9-P3. Person.

"Person" includes individuals, pass-through entities, firms, companies, joint stock companies, business trusts, estates, trusts, partnerships, limited liability partnerships, limited liability companies, associations, C corporations, S corporations, governmental entities, and any other entity. Whenever used in this chapter in any provision prescribing and imposing a penalty, "person," as applied to a pass-through entity, shall mean the owner thereof, and as applied to a corporation, the officers thereof.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-P4. Place of Business.

"Place of business" means any bona fide office (other than a statutory office), factory, warehouse or other space that is occupied and used by the taxpayer in carrying on any

business activity, individually or through one or more of the taxpayer's employees, regularly in attendance.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-P5. Postal Service.

"Postal service" means the United States postal service, or private delivery service delivering documents and packages within an agreed upon delivery schedule, or any other carrier service delivering the item.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-P6. Postmark Date; Date of Postmark.

"Postmark date," "date of postmark," and similar terms include the date recorded and marked by a delivery service and recorded electronically to a database kept in the regular course if its business and marked on the cover in which the payment or document is enclosed indicating the date on which the payment or document was given to the delivery service for delivery.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-P7. Pre-2017 Net Operating Loss Carryforward.

"Pre-2017 net operating loss carryforward" means any net operating loss incurred in a taxable year beginning before January 1, 2017, to the extent such loss was permitted, by ordinance adopted by the Municipality before January 1, 2016, to be carried forward and utilized to offset income or net profit generated in the Municipality in future taxable years.

For the purpose of calculating municipal taxable income, any pre-2017 net operating loss carryforward may be carried forward to any taxable year, including taxable years beginning in 2017 or thereafter, as provided in Section 311-21(c) of this chapter.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-P8. Principal Place of Business.

"Principal place of business" means, in the case of an employer having headquarters activities at a place of business within a taxing municipality, the place of business at which the headquarters is situated. In the case of any employer not having its headquarters activities at a place of business within the Municipality, the term means the largest place of business located in the Municipality.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-P9. Publicly Traded Partnership.

"Publicly traded partnership" means any partnership, an interest in which is regularly traded on an established securities market. A "publicly traded partnership" may have any number of partners.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-Q. Qualifying Wages.

"Qualifying wages" means wages, as defined in section 3121(a) of the Internal Revenue Code, without regard to any wage limitations, including any amount attributable to a nonqualified deferred compensation plan or program described in section 3121(v)(2)(C) of the Internal Revenue Code and included in wages, adjusted as follows:

(a) Deduct the following amounts:

(i) Any amount included in wages if the amount constitutes compensation attributable to a

plan or program described in section 125 of the Internal Revenue Code;

(ii) Any amount included in wages if the amount constitutes payment on account of a disability related to sickness or an accident paid by a party unrelated to the employer, agent of an employer, or other payer;

(iii) Any amount included in wages if the amount arises from the sale, exchange, or other disposition of a stock option, the exercise of a stock option, or the sale, exchange, or other disposition of stock purchased under a stock option; and

(iv) Any amount included in wages that is exempt income.

(b) Add the following amounts:

(i) Any amount not included in wages solely because the employee was employed by the employer before April 1, 1986;

(ii) Any amount not included in wages if the amount is an amount described in section 401(k), 403(b), or 457 of the Internal Revenue Code. Subsection (b)(ii) of this section applies only to employee contributions and employee deferrals;

(iii) Any amount that is supplemental unemployment compensation benefits described in section 3402(o)(2) of the Internal Revenue Code and not included in wages;

(iv) Any amount received that is treated as self-employment income for federal tax purposes in accordance with section 1402(a)(8) of the Internal Revenue Code; and

(v) Any amount not included in wages if all of the following apply:

(1) For the taxable year the amount is employee compensation that is earned outside of the United States and that either is included in the taxpayer's gross income for federal income tax purposes or would have been included in the taxpayer's gross income for such purposes if the taxpayer did not elect to exclude the income under section 911 of the Internal Revenue Code;

(2) For no preceding taxable year did the amount constitute wages as defined in section 3121(a) of the Internal Revenue Code;

(3) For no succeeding taxable year will the amount constitute wages; and

(4) For any taxable year the amount has not otherwise been added to wages pursuant to either subsection (b) of this section or section 718.03 of the Ohio Revised Code, as that section applied to tax years prior to January 1, 2016.

(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-R1. Related Entity.

"Related entity" means any of the following:

(a) An individual stockholder, or a member of the stockholder's family

enumerated in section 318 of the Internal Revenue Code, if the stockholder and the members of the stockholder's family own directly, indirectly, beneficially, or constructively, in the aggregate, at least fifty percent (50%) of the value of the taxpayer's outstanding stock;

(b) A stockholder, or a stockholder's partnership, estate, trust, or corporation, if the stockholder and the stockholder's partnerships, estates, trusts, or corporations own directly, indirectly, beneficially, or constructively, in the aggregate, at least fifty percent (50%) of the value of the taxpayer's outstanding stock;

(c) A corporation, or a party related to the corporation in a manner that would require an attribution of stock from the corporation to the party or from the party to the corporation under subsection (d) of this section, provided the taxpayer owns directly, indirectly, beneficially, or constructively, at least fifty percent (50%) of the value of the corporation's outstanding stock;

(d) The attribution rules described in section 318 of the Internal Revenue Code apply for the purpose of determining whether the ownership requirements in subsections (a) to (c) of this section have been met.

(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-R2. Related Member.

"Related member" means a person that, with respect to the taxpayer during all or any portion of the taxable year, is either a related entity, a component member as defined in section 1563(b) of the Internal Revenue Code, or a person to or from whom there is attribution of stock ownership in accordance with section 1563(e) of the Internal Revenue Code except, for purposes of determining whether a person is a related member under this division, "twenty percent" (20%) shall be substituted for "5 percent" (5%) wherever "5 percent" (5%) appears in section 1563(e) of the Internal Revenue Code.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-R3. Resident.

"Resident" means an individual who is domiciled in the Municipality as determined under Section 311-9-D2 of this chapter.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-R4. Resident Owner.

"Resident owner" means an individual domiciled in the Municipality who has an ownership interest in a pass-through entity.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-R5. Rules and Regulations.

"Rules and Regulations" means the rules and regulations as promulgated under this chapter.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-R6. Retirement Benefit Plan.

"Retirement benefit plan" means an arrangement whereby an entity provides benefits to individuals either on or after their termination of service because of retirement or disability. "Retirement benefit plan" does not include wage continuation payments, severance payments, or payments made for accrued personal or vacation time.
(Ordained by Emer. Ord. No. 0011-2020, § 1, eff. Jan. 15, 2020)

Sec. 311-9-S1. S Corporation.

"S corporation" means a corporation that has made an election under subchapter S of Chapter 1 of Subtitle A of the Internal Revenue Code for its taxable year.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-S2. Schedule C.

"Schedule C" means Internal Revenue Service schedule C (form 1040) filed by a taxpayer with his federal income tax return.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-S3. Schedule E.

"Schedule E" means Internal Revenue Service schedule E (form 1040) filed by a taxpayer with his federal income tax return.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-S4. Schedule F.

"Schedule F" means Internal Revenue Service schedule F (form 1040) filed by a taxpayer with his federal income tax return.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-S5. Single Member Limited Liability Company.

"Single member limited liability company" means a limited liability company that has one direct member.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-S6. Small Employer.

"Small employer" means any employer that had total revenue of less than five hundred thousand dollars ($500,000) during the preceding taxable year. For purposes of this division, "total revenue" means receipts of any type or kind, including, but not limited to, sales receipts; payments; rents; profits; gains, dividends, and other investment income; commissions; premiums; money; property; grants; contributions; donations; gifts; program service revenue; patient service revenue; premiums; fees, including premium fees and service fees; tuition payments; unrelated business revenue; reimbursements; any type of payment from a governmental unit, including grants and other allocations; and any other similar receipts reported for federal income tax purposes or under generally accepted accounting principles. "Small employer" does not include the federal government; any state government, including any state agency or instrumentality; any political subsection; or any entity treated as a government for financial accounting and reporting purposes.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-S7. Sports Gaming.

"Sports gaming" has the same meaning as in Section 3775.01 of the Ohio Revised Code or a successor statute or section.
(Ordained by Ord. No. 338-2022, § 1, eff. Oct. 26, 2022)

Sec. 311-9-S8. Sports Gaming Facility.

"Sports gaming facility" has the same meaning as in Section 3775.01 of the Ohio Revised Code or a successor statute or section.
(Ordained by Ord. No. 338-2022, § 1, eff. Oct. 26, 2022)

Sec. 311-9-T1. Tax Administrator.

"Tax administrator" has the same meaning as Ohio Revised Code section 718.01(U).
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-T2. Tax Commissioner.

"Tax commissioner" means the person appointed to administer the City of Cincinnati's Municipal Income Tax Ordinance and to direct the operation of the City of Cincinnati's Municipal Income Tax Division or the person executing the duties of the tax commissioner.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-T3. Tax Return Preparer.

"Tax return preparer" means any individual other than a taxpayer who is described in section 7701(a)(36) of the Internal Revenue Code and 26 C.F.R. 301.7701-15 and is authorized by a taxpayer to complete or file an income tax return, report, or other document for or on behalf of the taxpayer.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-T4. Tax Year; Taxable Year.

"Tax year" or "taxable year" means the corresponding tax reporting period as prescribed for the taxpayer under the Internal Revenue Code and used by the taxpayer for federal income tax purposes.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-T5. Taxing Municipality.

"Taxing municipality" means a municipality levying a tax on income earned by nonresidents working within such municipality or on income earned by its residents.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-T6. Taxpayer.

(a) "Taxpayer" means a person, whether an individual, pass-through entity or corporation, subject to a tax levied on income by a municipal corporation in accordance with this chapter. "Taxpayer" does not include a grantor trust or, except as provided in subsection (b) of this section, a disregarded entity, but "taxpayer" does include any person who owns the disregarded entity.

(b) A single member limited liability company that is a disregarded entity for federal tax purposes may be a separate taxpayer from its single member in all Ohio municipal corporations in which it either filed as a separate taxpayer or did not file for its taxable year ending in 2003, if all of the conditions of Ohio Revised Code section 718.01(L)(2) are met.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-T7. Taxpayers' Rights and Responsibilities.

"Taxpayers' rights and responsibilities" means the rights provided to taxpayers in sections 718.11, 718.12, 718.19, 718.23, 718.36, 718.37, 718.38, 5717.011, and 5717.03 of the Ohio Revised Code and any corresponding ordinances of the Municipality, and the responsibilities of taxpayers to file, report, withhold, remit, and pay municipal income tax and otherwise comply with Chapter 718 of the Ohio Revised Code and resolutions, ordinances, and rules adopted by a municipal corporation for the imposition and administration of a municipal income tax.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-T8. Trade or Business Asset.

"Trade or business asset" means personal property used in a trade or business of a character that is subject to the allowance for depreciation as provided in Section 167 of the Internal Revenue Code, and real property used in a trade or business.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-T9. Type B Sports Gaming Proprietor.

"Type B sports gaming proprietor" has the same meaning as in Section 3775.01 of the Ohio Revised Code or a successor statute or section.
(Ordained by Ord. No. 338-2022, § 1, eff. Oct. 26, 2022)

Sec. 311-9-V1. Video Lottery Terminal.

"Video lottery terminal" has the same meaning as in section 3770.21 of the Ohio Revised Code.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-9-V2. Video Lottery Terminal Sales Agent.

"Video lottery terminal sales agent" means a lottery sales agent licensed under Chapter 3770 of the Ohio Revised Code to conduct video lottery terminals on behalf of the state pursuant to section 3770.21 of the Ohio Revised Code.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-11. Determining Municipal Taxable Income for Individuals.

(a) "Municipal Taxable Income" for a resident of the Municipality is calculated as follows: "Income" reduced by "Exempt Income" to the extent such exempt income is otherwise included in income, reduced by allowable employee business expense deduction as found in subsection (b) of Section 311-9-M2 of this chapter, further reduced by any "Pre-2017 Net Operating Loss Carryforward." Notwithstanding any other provision of this chapter, the income of members and employees of the Ohio General Assembly and certain judges is subject to tax by the Municipality only as permitted by Ohio Revised Code section 718.50.

(b) "Municipal Taxable Income" for a nonresident of the Municipality is calculated as follows: "Income" reduced by "Exempt Income" to the extent such exempt income is otherwise included in income, as applicable, apportioned or situsted to the Municipality as provided in Section 311-17 of this chapter, reduced by allowable employee business expense deduction as found in subsection (b) of Section 311-9-M2 of this chapter, further reduced by any "Pre-2017 Net Operating Loss Carryforward."

(c) Relevant terms are defined in the definition sections of this chapter with further clarification as follows:

(i) "Net profit" is included in "income," and is defined in Section 311-9-N2 of this chapter. The net operating loss carryforward shall be calculated and deducted as provided in Section 311-21.

(1) Treatment of net profits received by an individual taxpayer from rental real estate is provided in Section 311-17(e).

(2) "Net profit" for a nonresident individual includes any net profit of the nonresident, but excludes the distributive share of net profit or loss of only pass-through entities owned directly or indirectly by the nonresident.

(ii) Allowable employee business expense deduction is described in subsection (b) of Section 311-9-M2 of this chapter, and is subject to the limitations provided in that section. For a nonresident of the Municipality, the deduction is limited to the extent the

expenses are related to the performance of personal services by the nonresident in the Municipality.

(iii) "Apportioned or situsedto the Municipality as provided in Section 311-17 of this Chapter" includes the apportionment of net profit income attributable to work done or services performed in the Municipality.

(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-13. Determining Municipal Taxable Income for Taxpayers Who are Not Individuals.

(a) "Municipal Taxable Income" for a taxpayer who is not an individual is calculated as follows: "Income" reduced by "Exempt Income" to the extent otherwise included in income, multiplied by apportionment, further reduced by any "Pre-2017 Net Operating Loss Carryforward."

(b) Relevant terms are defined in the definition sections of this chapter with further clarification as follows:

(i) "Income" for a taxpayer that is not an individual means the "net profit" of the taxpayer.

(ii) "Apportionment" means the apportionment as determined by Section 311-17 of this Chapter.

(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-15. Exception to the Tax; Exempt Income.

The tax provided for herein shall not be levied upon the following "exempt income":

(a) Proceeds from welfare benefits, unemployment compensation, pensions, social security benefits, railroad retirement benefits, and retirement benefit payments as defined by the Internal Revenue Service, except to the extent that such amounts are included in the definition of qualifying wages provided in this chapter. As used herein, "unemployment compensation" does not include supplemental unemployment compensation described in section 3402(o)(2) of the Internal Revenue Code;

(b) Proceeds of sickness, accident, or liability insurance policies, payments from annuities, and similar payments made to an employee or to the beneficiary of an employee under a retirement program or plan, disability payments received from private industry or local, state, or federal governments or from charitable, religious or educational organizations; compensation for personal injury and like reimbursements, excluding compensation paid for loss of profits and salaries or wages or awards for punitive damages;

(c) Dues, contributions and similar payments received by charitable, religious, educational, or literary organizations, or labor unions, trade or professional associations, lodges and similar organizations;

(d) Gains from involuntary conversions, interest on federal obligations, items of income subject to a tax levied by the state and that a municipal corporation is specifically prohibited by law from taxing, and income of a decedent's estate during the period of administration except such income derived from the operation of a trade or business;

(e) Alimony and child support received;

(f) Compensation for damage to property from insurance proceeds or otherwise;

(g) Intangible income;

(h) The military pay or allowances of members of the Armed Forces of the United States or members of their reserve components, including the national guard of any state;

(i) The income of any religious, charitable, scientific, literary, educational, fraternal or other institutions to the extent such income is derived from tax-exempt real estate, tax-exempt tangible or intangible property, or tax-exempt activities, but income from non-exempt real estate, tangible or intangible personal property, or business activities of a type ordinarily conducted for profit by taxpayers operating for profit shall be taxable. In the event taxable income is generated from real or personal property ownership or an income producing business located both within and without the corporate limits of the Municipality, income shall be apportioned to the Municipality under the method provided in Section 311-17;

(j) If exempt for federal income tax purposes, fellowship and scholarship grants are excluded from municipal income tax;

(k) The rental value of a home furnished to a minister of the gospel as part of his or her compensation, or the rental allowance paid to a minister of the gospel as part of his or her compensation, to the extent used to rent or provide a home pursuant to section 107 of the Internal Revenue Code;

(l) Compensation paid under sections 3501.28 or 3501.36 of the Ohio Revised Code to a person serving as a precinct election official, to the extent that such compensation does not exceed $1,000 for the taxable year. Such compensation in excess of $1,000 for the taxable year may be subject to municipal taxation, but the payer of such compensation is not required to withhold any municipal income tax from that compensation;

(m) For tax years prior to January 1, 2016, compensation paid to an employee of a transit authority, regional transit authority, or a regional transit commission created under Chapter 306 of the Ohio Revised Code for operating a transit bus or other motor vehicle for the authority or commission in or through the Municipality, unless the bus or vehicle is operated on a regularly scheduled route, the operator is subject to municipal income tax by reason of residence or domicile in the Municipality, or the headquarters of the authority or commission is located within the Municipality;

(n) Compensation paid to a nonresident individual for personal services performed by the individual in the Municipality on twelve or fewer days in a calendar year for years prior to January 1, 2016 and twenty or fewer days in a calendar year for years beginning on or after January 1, 2016, except as permitted by Section 311-27 of this chapter. For purposes of this subsection (n), "compensation" means any form of remuneration paid to an employee for personal services;

(o) Income of a public utility when that public utility is subject to the tax levied under sections 5727.24 or 5727.30 of the Ohio Revised Code. This provision does not apply for purposes of Chapter 5745 of the Ohio Revised Code;

(p) Employee compensation that is not qualifying wages as defined in Section 311-9-Q of this chapter;

(q) Compensation paid to a person employed within the boundaries of a United States air force base under the jurisdiction of the United States air force that is used for the housing of members of the United States air force and is a center for air force operations, unless the person is a resident of the Municipality;

(r) An S corporation shareholder's distributive share of net profits of the S corporation, other than any part of the distributive share of net profits that represents wages as defined in section 3121(a) of the Internal Revenue Code or net earnings from self-employment as defined in section 1402(a) of the Internal Revenue Code;

(s) Any compensation arising from the grant, sale, exchange, or other disposition of a stock option, the exercise of a stock option, or the sale, exchange, or other disposition of stock purchased under a stock option;

(t) (i) For tax years beginning on or after January 1, 2016, except as provided in divisions (ii), (iii), and (iv) of this subsection, qualifying wages described in subsection (b)(i) or (e) of Section 311-27 of this chapter to the extent the qualifying wages are not subject to withholding for municipal income tax under either of those divisions;

(ii) The exemption provided in division (i) of this subsection does not apply to employees who resided in the Municipality at the time the employee earned the qualifying wages;

(iii) The exemption provided in division (i) of this subsection does not apply to qualifying wages that an employer elects to withhold under subsection (d)(ii) of Section 311-27 of this chapter;

(iv) The exemption provided in division (i) of this subsection does not apply to qualifying wages if both of the following conditions apply:

(1) For qualifying wages described in subsection (b)(i) of Section 311-27 of this chapter, the employee's employer withholds and remits tax on the qualifying wages to the municipal corporation in which the employee's principal place of work is situated, or, for qualifying wages described in subsection (e) of Section 311-27 of this chapter, the employee's employer withholds and remits tax on the qualifying wages to the municipal corporation in which the employer's fixed location is located; and

(2) The employee receives a refund of the tax described in subsection (t)(iv)(1) of this section on the basis of the employee not performing services in that municipal corporation;

(u) Compensation paid to a person for personal services performed for a political subdivision on property owned by the political subdivision, regardless of whether the compensation is received by an employee of the subdivision or another person performing services for the subdivision under

a contract with the subdivision, if the property on which services are performed is annexed to a municipal corporation pursuant to Ohio Revised Code section 709.023 on or after March 27, 2013, unless the person is subject to such taxation because of residence. If the compensation is subject to taxation because of residence, municipal income tax shall be payable only to the municipal corporation of residence; and

(v) Income the taxation of which is prohibited by the constitution or laws of the United States.

(w) For tax years beginning on or after January 1, 2024, the income of individuals under 18 years of age.

(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016; a. Ord. No. 408-2023, § 1, eff. Dec. 6, 2023)

Sec. 311-17. Net Profit; Income Subject to Net Profit Tax; Alternative Apportionment.

This section applies to any taxpayer engaged in a business or profession in the Municipality unless the taxpayer is an individual who resides in the Municipality or the taxpayer is an electric company, combined company, or telephone company that is subject to and required to file reports under Chapter 5745 of the Ohio Revised Code.

(a) Except as otherwise provided in subsections (b) and (h), net profit from a business or profession conducted both within and without the boundaries of the Municipality shall be considered as having a taxable situs in the Municipality for purposes of municipal income taxation in the same proportion as the average ratio of the following:

(i) The average original cost of the real property and tangible personal property owned or used by the taxpayer in the business or profession in the Municipality during the taxable period to the average original cost of all of the real and tangible personal property owned or used by the taxpayer in the business or profession during the same period, wherever situated.

As used in the preceding paragraph, real property or tangible personal property shall include property rented or leased by the taxpayer and the value of such property shall be determined by multiplying the annual rental thereon by eight (8);

(ii) Wages, salaries, and other compensation paid during the taxable period to individuals employed in the business or profession for services performed in the Municipality to wages, salaries, and other compensation paid during the same period to individuals employed in the business or profession, wherever the individual's services are performed, excluding compensation from which taxes are not required to be withheld under Section 311-27 of this chapter.

As used in the preceding paragraph, persons employed shall not be construed to mean any subcontractor or independent contractor;

(iii) Total gross receipts of the business or profession from sales and rentals made and services performed during the taxable period in the Municipality to total gross receipts of the business or

profession during the same period from sales, rentals, and services, wherever made or performed.

(b) (i) If the apportionment factors described in subsection (a) of this section do not fairly represent the extent of a taxpayer's business activity in the Municipality, the taxpayer may request, or the tax commissioner may require, that the taxpayer use, with respect to all or any portion of the income of the taxpayer, an alternative apportionment method. For tax years beginning on or after January 1, 2016, only those alternative apportionment methods set forth in Ohio Revised Code section 718.02(B) may be used. For tax years beginning on or after January 1, 2023, additional apportionment methods set forth in subsection (h) may be used pursuant to Ohio Revised Code section 718.021.

(ii) A taxpayer request to use an alternative apportionment method shall be in writing.

(1) For tax years beginning before January 1, 2016, the request must be made before the end of the tax year and must state the specific grounds on which the request for permission to use an alternative method is based. Once a taxpayer has filed under an alternative method, the taxpayer must continue to so file until given permission to change by the tax commissioner.

(2) For tax years beginning on or after January 1, 2016, the request shall accompany a tax return, timely filed appeal of an assessment, or timely filed amended tax return. The taxpayer may use the requested alternative method unless the tax commissioner denies the request in an assessment issued within the period prescribed by subsection (a) of Section 311.99 of this chapter. Nothing in this subdivision (2) nullifies or otherwise affects any alternative apportionment arrangement approved by the tax commissioner or otherwise agreed upon by both the tax commissioner and taxpayer prior to January 1, 2016.

(iii) For tax years beginning on or after January 1, 2016, the tax commissioner may require a taxpayer to use an alternative apportionment method as described in subsection (b)(i) of this section only by issuing an assessment to the taxpayer within the period prescribed by subsection (a) of Section 311.99 of this Chapter.

(iv) Nothing in subsection (b) of this section nullifies or otherwise affects any alternative apportionment arrangement approved by the tax commissioner or otherwise agreed upon by both the tax commissioner and taxpayer before January 1, 2016.

(c) For tax years beginning on or after January 1, 2016 and as used in subsection (a)(ii) of this section, "wages, salaries, and other compensation"

includes only wages, salaries, or other compensation paid to an employee for services performed at any of the locations set forth in Ohio Revised Code section 718.02(C).

(d) For the purposes of subsection (a)(iii) of this section, and except as provided in subsection (h) of this section, receipts from sales and rentals made and services performed shall be sitused to a municipal corporation as follows:

(i) Gross receipts from the sale of tangible personal property shall be sitused to the municipal corporation only if, regardless of where title passes, the property meets either of the following criteria:

(1) The property is shipped to or delivered within the Municipality from a stock of goods located within the Municipality; or

(2) The property is delivered within the Municipality from a location outside the Municipality, provided the taxpayer is regularly engaged through its own employees in the solicitation or promotion of sales within the Municipality and the sales result from such solicitation or promotion.

(ii) Gross receipts from the sale of services shall be sitused to the Municipality to the extent that such services are performed in the Municipality.

(iii) To the extent included in income, gross receipts from the sale of real property located in the Municipality shall be sitused to the Municipality.

(iv) To the extent included in income, gross receipts from rents and royalties from real property located in the Municipality shall be sitused to the Municipality.

(v) Gross receipts from rents and royalties from tangible personal property shall be sitused to the municipal corporation based upon the extent to which the tangible personal property is used in the municipal corporation.

(e) The net profit received by an individual taxpayer from the rental of real estate owned directly by the individual or by a disregarded entity owned by the individual shall be subject to tax only by the municipal corporation in which the property generating the net profit is located and the municipal corporation in which the individual taxpayer that receives the net profit resides. Taxpayers shall use separate accounting for the purpose of calculating net profit sitused under this subsection to the Municipality for property located within the Municipality.

(f) (i) Except as provided in subsection (f)(ii) of this section, commissions received by a real estate agent or broker relating to the sale, purchase, or lease of real estate shall be sitused to the municipal corporation in which the real estate is located. Net profit reported by the real estate agent or broker shall be allocated to the Municipality based upon the ratio of the commissions the agent or broker received from the sale, purchase, or lease of real estate located in the Municipality to the commissions

received from the sale, purchase, or lease of real estate everywhere in the taxable year.

(ii) An individual who is a resident of the Municipality shall report the individual's net profit from all real estate activity on the individual's annual tax return for that Municipality. The individual may claim a credit for taxes the individual paid on such net profit to another municipal corporation to the extent that such credit is allowed under Section 311-47 of this chapter.

(g) When calculating the ratios described in subsection (a) of this section for the purposes of that subsection or subsection (b) of this section, the owner of a disregarded entity shall include in the owner's ratios the property, payroll, and gross receipts of such disregarded entity.

(h) As used in this subsection:

(i) "Qualifying remote employee or owner" means an individual who is an employee of a taxpayer or who is a partner or member holding an ownership interest in a taxpayer that is treated as a partnership for federal income tax purposes, provided that the individual meets both of the following criteria:

(1) The taxpayer has assigned the individual to a qualifying reporting location.

(2) The individual is permitted or required to perform services for the taxpayer at a qualifying remote work location.

(ii) "Qualifying remote work location" means a permanent or temporary location at which an employee or owner chooses or is required to perform services for the taxpayer, other than a reporting location of the taxpayer or any other location owned or controlled by a customer or client of the taxpayer. "Qualifying remote work location" may include the residence of an employee or owner and may be located outside of a municipal corporation that imposes an income tax in accordance with this chapter. An employee or owner may have more than one qualifying remote work location during a taxable year.

(iii) "Reporting location" means either of the following:

(1) A permanent or temporary place of doing business, such as an office, warehouse, storefront, construction site, or similar location, that is owned or controlled directly or indirectly by the taxpayer;

(2) Any location in this state owned or controlled by a customer or client of the taxpayer, provided that the taxpayer is required to withhold taxes under Section 311-23 of this Chapter on qualifying wages paid to an employee for the performance of personal services at that location.

(iv) "Qualifying reporting location" means one of the following:

(1) The reporting location in this state at which an employee or owner performs services

for the taxpayer on a regular or periodic basis during the taxable year;

(2) If no reporting location exists in this state for an employee or owner under division (iv)(1) of this subsection, the reporting location in this state at which the employee's or owner's supervisor regularly or periodically reports during the taxable year;

(3) If no reporting location exists in this state for an employee or owner under division (iv)(1) or (2) of this subsection, the location that the taxpayer otherwise assigns as the employee's or owner's qualifying reporting location, provided the assignment is made in good faith and is recorded and maintained in the taxpayer's business records. A taxpayer may change the qualifying reporting location designated for an employee or owner under division (iv)(3) at any time.

(v) For tax years beginning on or after January 1, 2023, a taxpayer may elect to apply the provisions of this subsection to the apportionment of its net profit from a business or profession. For taxpayers that make this election, the provisions of subsections (a) and (b) of this section apply to such apportionment except as otherwise provided in this subsection.

A taxpayer shall make the election allowed under this subsection in writing on or with the taxpayer's net profit return or, if applicable, a timely filed amended net profit return or a timely filed appeal of an assessment. The election applies to the taxable year for which that return or appeal is filed and for all subsequent taxable years, until the taxpayer revokes the election.

The taxpayer shall make the initial election with the tax administrator of each municipal corporation with which, after applying the apportionment provisions authorized in this subsection, the taxpayer is required to file a net profit tax return for that taxable year. A taxpayer shall not be required to notify the tax administrator of a municipal corporation in which a qualifying remote employee's or owner's qualifying remote work location is located, unless the taxpayer is otherwise required to file a net profit return with that municipal corporation due to business operations that are unrelated to the employee's or owner's activity at the qualifying remote work location.

After the taxpayer makes the initial election, the election applies to every municipal corporation in which the taxpayer conducts business. The taxpayer shall not be required to file a net profit return with a municipal corporation solely because a qualifying remote employee's or owner's qualifying remote work location is located in such municipal corporation.

Nothing in this subsection prohibits a taxpayer from making a new election under this subsection after properly revoking a prior election.

(vi) For the purpose of calculating the ratios described in subsection (a) of this section, all of the following apply to a taxpayer that has made the election described in subsection (h)(v):

(1) For the purpose of subsection (a)(i) of this section, the average original cost of any tangible personal property used by a qualifying remote employee or owner at that individual's qualifying remote work location shall be situsedto that individual's qualifying reporting location.

(2) For the purpose of subsection (a)(ii) of this section, any wages, salaries, and other compensation paid during the taxable period to a qualifying remote employee or owner for services performed at that individual's qualifying remote work location shall be situsedto that individual's qualifying reporting location.

(3) For the purpose of subsection (a)(iii) of this section, and notwithstanding subsection (d) of this section, any gross receipts of the business or profession from services performed during the taxable period by a qualifying remote employee or owner for services performed at that individual's qualifying remote work location shall be situsedto that individual's qualifying reporting location.

(vii) Nothing in this subsection prevents a taxpayer from requesting, or a tax administrator from requiring, that the taxpayer use, with respect to all or a portion of the income of the taxpayer, an alternative apportionment method as described in subsection (b) of this section. However, a tax administrator shall not require an alternative apportionment method in such a manner that it would require a taxpayer to file a net profit return with a municipal corporation solely because a qualifying remote employee's or owner's qualifying remote work location is located in that municipal corporation.

(viii) Except as otherwise provided in this subsection, nothing in this subsection is intended to affect the withholding of taxes on qualifying wages pursuant to sections 311-23 and 311-27 of this Chapter.

(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016; a. Ord. No. 019-2018, § 1, eff. March 22, 2018; a. Ord. No. 408-2023, § 1, eff. Dec. 6, 2023)

Sec. 311-19. Stock Option Adjustment.

If, in computing the taxpayer's adjusted federal taxable income, the taxpayer deducted any amount with respect to a stock option granted to an employee, and if the employee is not required to include in the employee's income any such amount or a portion thereof because it is exempted from taxation under

subsection (p) of Section 311-15 and subsection (a)(iii) of Section 311-9-Q of this chapter or a corresponding section of another municipal income tax code, the taxpayer shall add the amount that is exempt from taxation to the taxpayer's net profit that was apportioned to the Municipality. In no case shall a taxpayer be required to add to its net profit that was apportioned to the Municipality any amount other than the amount upon which the employee would be required to pay tax were the amount related to the stock option not exempted from taxation.

This subsection applies solely for the purpose of making an adjustment to the amount of a taxpayer's net profit that was apportioned to the Municipality under Section 311-17 of this chapter.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-21. Net Operating Loss (NOL).

(a) Except as limited by subsections (b), (h) and (j) of this Section 311-21, any net operating loss incurred by a taxpayer in a taxable year beginning on or after January 1, 2017 shall be deducted from net profit that is reduced by exempt income to the extent necessary to reduce municipal taxable income to zero, with any remaining unused portion of the net operating loss carried forward to not more than five (5) consecutive taxable years following the taxable year in which the loss was incurred, but in no case for more years than necessary for the deduction to be fully utilized.

(b) No portion of a net operating loss shall be carried back against net profits of any prior year, and no portion of a net operating loss may offset qualifying wages.

(c) A pre-2017 net operating loss sustained shall be apportioned to the Municipality in the same manner as provided in Section 311-17 of this chapter for apportioning net profits to the Municipality. A net operating loss sustained in any taxable year beginning prior to January 1, 2017 that is apportioned to the Municipality may be applied against the net profit of succeeding tax years that is apportioned to the Municipality, until exhausted, but in no event for more than five (5) taxable years immediately following the year in which the loss occurred.

(d) The distributive share of the net profit of each pass-through entity owned directly or indirectly by the taxpayer shall be calculated without regard to any net operating loss that is carried forward by that entity from a prior taxable year and applied to reduce the entity's net profit for the current year.

(e) The tax commissioner shall provide by rules and regulations the manner in which such net operating loss carry forward shall be determined.

(f) The net operating loss of a taxpayer that loses its legal identity, by any means such as merger or consolidation, shall not be allowed as a carry forward loss deduction to the surviving or new taxpayer.

(g) If a taxpayer who is an individual is engaged in two (2) or more taxable business activities to be included in the same return, the net loss apportioned to the Municipality of one unincorporated business activity may offset the profits apportioned to the Municipality of another unincorporated taxable business for purposes of arriving at the overall net profits of the taxpayer that are subject to municipal income tax.

(h) For taxable years beginning in 2018, 2019, 2020, 2021, or 2022, a taxpayer may not deduct more than fifty percent (50%) of the amount of the post-2017 deduction otherwise allowed by subsection (a) of this section.

(i) For taxable years beginning in 2023 or thereafter, a person may deduct, for purposes of an income tax levied by a municipal corporation that levies an income tax before January 1, 2016, the full amount allowed by subsection (a) of this section without regard to the limitation of subsection (h) of this section.

(j) Any pre-2017 net operating loss carry forward deduction must be utilized before a taxpayer may deduct any amount pursuant to subsection (a) of this section.

(k) Nothing in subsection (h) of this section precludes a taxpayer from carrying forward, for the period otherwise permitted under subsection (a) or subsection (c) of this section, any amount of net operating loss that was not fully utilized.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016; a. Ord. No. 019-2018, § 1, eff. March 22, 2018; a. Ord. No. 408-2023, § 1, eff. Dec. 6, 2023)

Sec. 311-23. Collection at Source; Withholding from Qualifying Wages.

(a) (i) Each employer, agent of an employer, or other payer located within, or doing business within, the Municipality who employs one or more persons on a qualifying wages basis shall withhold from each employee an amount equal to 1.8 percent (1.8%) of the qualifying wages earned by the employee in the Municipality, except for qualifying wages for which withholding is not required under Section 311-27 of this chapter or under subsections (a)(iii) or (d) of this section. An employer, agent of an employer, or other payer shall deduct and withhold the tax from qualifying wages on the date that the employer, agent, or other payer directly, indirectly, or constructively pays the qualifying wages to, or credits the qualifying wages to the benefit of, the employee.

(1) An employer is required to deduct and withhold municipal income tax on tips and gratuities received by the employer's employees and constituting qualifying wages only to the extent that the tips and gratuities are paid by the customer to the employer for subsequent remittance to the employee, or if the customer pays the tip or gratuity by credit card, debit card, or other electronic means.

(2) For tax years beginning prior to January 1, 2016, no person is required to deduct and withhold municipal income tax on the qualifying wages or other taxable income paid domestic servants employed exclusively in or about such person's residence. However, such domestic servants shall be responsible for filing municipal income tax returns and paying municipal income tax due on their qualifying wages.

(ii) In addition to withholding the amounts required under subsection (a)(i) of this section, an employer, agent of an employer, or other payer may also deduct and withhold municipal income taxes at the request of an employee who is a resident of the Municipality. The tax commissioner shall consider any tax withheld by an employer at the request of an employee when such tax is not otherwise required to be withheld by this chapter to be tax required to be withheld and remitted for the purposes of this section.

(iii) An employer, agent of an employer, or other payer is not required to withhold municipal income tax with respect to an individual's disqualifying disposition of an incentive stock option if, at the time of the disqualifying disposition, the individual is not an employee of either the corporation with respect to whose stock the option has been issued or of such corporation's successor entity.

(b) An employer, agent of an employer, or other payer shall make a return and remit to the tax commissioner the greater of the income taxes deducted and withheld or the income taxes required to be deducted and withheld by the employer, agent, or other payer, along with any report required by the tax commissioner to accompany such payment, according to the following schedule:

(i) Any employer, agent of an employer, or other payer not required under subsections (b)(ii) or (b)(iii) of this section to make monthly or semimonthly payments of municipal income taxes required to be deducted and withheld shall make quarterly payments not later than the last day of the month following the end of each calendar quarter ending prior to January 1, 2016 and not later than the last day of the month following the end of each calendar quarter beginning on or after January 1, 2016.

(ii) (1) Taxes required to be deducted and withheld during any calendar year ending prior to January 1, 2016 shall be remitted monthly to the tax commissioner if the total taxes deducted and withheld or required to be deducted and withheld in the preceding calendar year were more than $3,600.00 or if the total amount of taxes deducted and withheld or required to be deducted and withheld on behalf of the Municipality in any month of the preceding calendar quarter exceeded $300 per month.

(2) Taxes required to be deducted and withheld during any calendar year beginning on or after January 1, 2016 shall be remitted monthly to the tax commissioner if the total taxes deducted and withheld or required to be deducted and withheld in the preceding calendar year were more than $2,399.00 or if the total amount of taxes deducted and withheld or required to be deducted and withheld on behalf of the Municipality in any month of the preceding calendar quarter exceeded $200 per month.

(3) Payment under subsection (b)(ii) of this section shall be made so that the payment is received by

the tax commissioner not later than fifteen (15) days after the last day of each month.

(iii) Beginning January 1, 2016, taxes required to be deducted and withheld shall be remitted semimonthly to the tax commissioner if the total taxes deducted and withheld or required to be deducted on behalf of the Municipality in the preceding calendar year were more than $11,999.00, or if the total amount of taxes deducted and withheld or required to be deducted and withheld on behalf of the Municipality in any month of the preceding calendar year exceeded $1,000. The payment under subsection (b)(iii) of this section shall be made so that the payment is received by the tax commissioner not later than one of the following:

(1) If the taxes were deducted and withheld or required to be deducted and withheld during the first fifteen (15) days of a month, the third (3^{rd}) banking day after the fifteenth (15^{th}) day of that month; or

(2) If the taxes were deducted and withheld or required to be deducted and withheld after the fifteenth (15^{th}) day of a month and before the first (1^{st}) day of the immediately following month, the third (3^{rd}) banking day after the last day of that month.

(iv) An employer, agent of an employer or other payer that is required by 26 USC 6302 and 26 CFR 31.6302-1, or any other federal statutes or regulations, to make payments electronically for the purpose of paying federal taxes withheld on payments to employees shall make payment by electronic funds transfer to the tax commissioner of all taxes deducted and withheld on behalf of the employee for remittance to the Municipality. The payment of tax by electronic funds transfer under this subsection does not affect an employer's, an agent's, or another payer's obligation to file any return as required under this Section 311-23. Once the threshold for remitting payment electronically for federal purposes has been met, any accrued municipal income tax withheld from employee qualifying wages earned within the Municipality shall be remitted to the Municipality at the same time that the federal tax withholding payment is due.

(v) The tax commissioner shall adopt rules governing the remittance of withheld municipal income taxes by electronic funds transfer as required by this chapter. The tax commissioner may grant an exemption to an employer from the duty to make payment by electronic funds transfer upon application for such exemption by the employer and the employer's demonstration to the tax commissioner that the requirement to make payment by electronic funds transfer will impose a hardship upon the employer. The tax commissioner may implement means of acknowledging, upon request of a taxpayer, receipt of electronic tax remittances. The person requesting acknowledgement shall pay the cost of acknowledging receipt of electronic remittances.

(vi) An employer, agent of an employer, or other payer shall make and file a return showing the amount of municipal income taxes withheld by the employer, agent, or other payer from the qualifying wages of each

employee and remitted to the tax commissioner on a form or forms prescribed by or acceptable to the tax commissioner and subject to the rules and regulations prescribed therefore by the tax commissioner. An employer may report the amount of municipal income tax withheld from qualifying wages paid on or after January 1, 2007, and may remit such amounts, by using the Ohio business gateway. A return filed by an employer, agent, or other payer under this division shall be accepted by the Municipality as the return required of an employee whose sole income subject to the tax under this chapter is the qualifying wages reported by the employee's employer, agent of an employer, or other payer.

(c) (i) An employee is not relieved from liability for municipal income tax by the failure of the employer, agent of an employer, or other payer to withhold the tax as required under this Section 311-23 or by the employer's, agent's, or other payer's exemption from the requirement to withhold the tax.

(ii) The failure of an employer, agent of an employer, or other payer to remit to the Municipality the municipal income tax withheld relieves the employee from liability for that tax unless the employee colluded with the employer, agent, or other payer in connection with the failure to remit the tax withheld.

(d) Compensation deferred before June 26, 2003, is not subject to any municipal corporation income tax or municipal income tax withholding requirement to the extent the deferred compensation does not constitute qualifying wages at the time the deferred compensation is paid or distributed.

(e) Each employer, agent of an employer, or other payer required to withhold taxes is liable for the payment of that amount required to be withheld, whether or not such taxes have been withheld, and such amount shall be deemed to be held in trust for the Municipality until such time as the withheld amount is remitted to the tax commissioner.

(f) All officers, members, managers, employees, trustees of the employer, agents of an employer, or other payers with control or direct supervision of or charged with the responsibility for withholding the tax or filing the reports and making payments as required by this section, shall be jointly and severally personally liable for a failure to file a report or pay the tax due as required by this section. For tax years beginning prior to January 1, 2016, such person shall also be jointly and severally personally liable for any related interest and penalties and are also liable under the provisions of Section 311-999. The dissolution of an employer, agent of an employer, or other payer does not discharge an officer's or employee's liability for a failure of the employer, agent of an employer, or other payer to file returns or pay any tax due.

(g) A failure to file any return under this section may result in interest and civil penalties pursuant to Section 311-73 and Section 311-75 of this chapter.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016; a. Ord. No. 019-2018, § 1, eff. March 22, 2018; a. Ord. No. 0008-2023, §§ 1, 2, eff. January 11, 2023)

Sec. 311-25. Qualifying Wages Withholding Return; List of Employees.

(a) (i) On or before the last day of February of each year, an employer shall file a withholding tax reconciliation return with the tax commissioner

showing the sum total of all qualifying wages paid to all employees, the portion of which, if any, was not subject to withholding along with an explanation for the same, and the portion of which was subject to withholding, together with the amount of such withholdings remitted.

(ii) Such return shall include information concerning each employee from whom the municipal income tax was withheld, or should have been withheld, during the preceding calendar year, showing the name, address, zip code and social security number of each such employee, the total amount of qualifying wages paid during the year and the amount of municipal income tax withheld. If the total tax withheld from any employee included tax withheld and remitted to another municipal corporation, the name of each such municipal corporation and the amount of same shall be separately shown on the return of information to the Municipality concerning each employee. Any other information required for federal income tax reporting purposes on Internal Revenue Service form W-2 or its equivalent form with respect to such employee, and other information as may be required by the tax commissioner, also shall be included in the return.

(iii) Employers who are required to submit IRS Form W-2 information electronically for federal tax purposes shall submit the information required by the Municipality in electronic format. Except as otherwise provided in this paragraph, the submission of required information in an electronic format does not affect an employer's obligation to file the returns as required under this section.

(b) The tax commissioner shall adopt rules governing the submission of the information required by this section. The tax commissioner may grant an exemption to an employer from the duty to submit the required information electronically upon application for such exemption by the employer and the employer's demonstration to the tax commissioner that the requirement to submit such information will impose a substantial hardship upon the employer.

(c) In addition to the wage reporting requirements of this section, any business required by the Internal Revenue Service to report on Form 1099-MISC payments to individuals not treated as employees for services performed shall also report such payments to the tax commissioner when the services were performed in the Municipality. The information may be submitted on a listing that shall include the individual's name, address, social security number (or federal identification number), and the amount of the payments made. Federal form(s) 1099 may be submitted in lieu of such listing. The information shall be filed annually on or before the last day of February following the end of the calendar year in which such payments are made.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-27. Collection at Source; Occasional Entrant.

(a) The following terms, as used in this section, shall have the meaning set forth herein:

(i) "Employer" includes any person who:

(1) Employs or contracts for the services of any professional entertainer(s) or professional athlete(s) to be performed in the Municipality or any person who, acting as a promoter, booking agent or employer, engages the

services of or arranges the appearance of any professional entertainer(s) or professional athlete(s) in the Municipality and who makes any payment arising from said appearance in the Municipality; or

(2) Rents facilities located in the Municipality that are made available to any professional entertainer(s) or professional athlete(s) for use in performing services in the Municipality and who makes any payment arising from said use of facilities to the professional entertainer(s) or professional athlete(s) for services performed in the Municipality; and

(3) Includes a person that is a related member to or of an employer.

(ii) "Professional athlete" means an athlete who performs services in a professional athletic event for wages or other remuneration.

(iii) "Professional entertainer" means a person who performs services in the professional performing arts for wages or other remuneration on a per-event basis.

(iv) "Public figure" means a person of prominence who performs services at discrete events, such as speeches, public appearances, or similar events, for wages or other remuneration on a per-event basis.

(v) "Fixed location" means a permanent place of doing business in this state, such as an office, warehouse, storefront, or similar location owned or controlled by an employer.

(vi) "Worksite location" means a construction site or other temporary worksite in this state at which the employer provides services for more than twenty (20) days during the calendar year. "Worksite location" does not include the home of an employee.

(vii) "Principal place of work" means the fixed location to which an employee is required to report for employment duties on a regular and ordinary basis. If the employee is not required to report for employment duties on a regular and ordinary basis to a fixed location, "principal place of work" means the worksite location in this state to which the employee is required to report for employment duties on a regular and ordinary basis. If the employee is not required to report for employment duties on a regular and ordinary basis to a fixed location or worksite location, "principal place of work" means the location in this state at which the employee spends the greatest number of days in a calendar year performing services for or on behalf of the employee's employer.

If there is not a single municipal corporation in which the employee spent the "greatest number of days in a calendar year" performing services for or on behalf of the employer, but instead there are two (2) or more municipal corporations in which the employee spent an identical number of days that is greater than the number of days the employee spent in any other municipal corporation, the employer shall allocate any of the employee's qualifying wages subject to subsection (b)(i)(2) of this section among those two (2) or more municipal corporations. The allocation shall be made using any fair and reasonable method, including, but not limited to, an equal allocation among such municipal corporations or an alloca-

tion based upon the time spent or sales made by the employee in each such municipal corporation. A municipal corporation to which qualifying wages are allocated under this division shall be the employee's "principal place of work" with respect to those qualifying wages for the purposes of this section.

For the purposes of this division, the location at which an employee spends a particular day shall be deemed in accordance with subsection (b)(ii) of this section, except that "location" shall be substituted for "municipal corporation" wherever "municipal corporation" appears in that division.

(b) (i) Subject to subsections (c), (e), (f), and (g) of this section, an employer is not required to withhold municipal income tax on qualifying wages paid to an employee for the performance of personal services in the Municipality if the employee performed such services in the municipal corporation on twenty (20) or fewer days in a calendar year beginning on or after January 1, 2016, or on twelve (12) or few days in a calendar year for years ending prior to January 1, 2016, unless one of the following conditions applies:

(1) For tax years ending before January 1, 2016, the individual is an employee of another person, the principal place of business of the individual's employer is located in another municipal corporation in Ohio that imposes a tax applying to compensation paid to the individual for services performed on those days, and the individual is not liable to that other municipal corporation for tax on the compensation paid for such services; or

(2) For tax years beginning on or after January 1, 2016, the employee's principal place of work is located in the Municipality; or

(3) For tax years beginning on or after January 1, 2016, the employee performed services at one or more presumed worksite locations in the Municipality. "Presumed worksite location" shall have the same meaning as set forth in Ohio Revised Code section 718.011; or

(4) The employee is a resident of the Municipality and has requested that the employer withhold tax from the employee's qualifying wages as provided in Section 311-23 of this chapter; or

(5) The employee is a professional entertainer, professional athlete, or public figure, and the qualifying wages are paid for the performance of services in the employee's capacity as a professional athlete, professional entertainer, or public figure within the Municipality.

(ii) For the purposes of subsection (b)(i) of this section, an employee shall be considered to have spent a day performing services in the Municipality only if the employee spent more time performing services for or on behalf of the employer in the Municipality than in any other municipal corporation on that day. For the purposes of determining the amount of time an employee spent in a particular location, the time spent performing one or more of the follow-

ing activities shall be considered to have been spent at the employee's principal place of work:

(1) Traveling to the location at which the employee will first perform services for the employer for the day;

(2) Traveling from a location at which the employee was performing services for the employer to any other location;

(3) Traveling from any location to another location in order to pick up or load, for the purpose of transportation or delivery, property that has been purchased, sold, assembled, fabricated, repaired, refurbished, processed, remanufactured, or improved by the employee's employer;

(4) Transporting or delivering property described in subsection (b)(ii)(3) of this section, provided that, upon delivery of the property, the employee does not temporarily or permanently affix the property to real estate owned, used, or controlled by a person other than the employee's employer; or

(5) Traveling from the location at which the employee makes the employee's final delivery or pick-up for the day to either the employee's principal place of work or a location at which the employee will not perform services for the employer.

(c) If the principal place of work of an employee is located in a municipal corporation that imposes an income tax in accordance with this chapter, the exception from withholding requirements described in subsection (b)(i) of this section shall apply only if, with respect to the employee's qualifying wages described in that division, the employer withholds and remits tax on such qualifying wages to the municipal corporation in which the employee's principal place of work is located.

(d) (i) Except as provided in subsection (d)(ii) of this section, if, during a calendar year, the number of days an employee spends performing personal services in the Municipality exceeds the threshold described in subsection (b)(i) of this section, the employer shall withhold and remit tax to the Municipality for any subsequent days in that calendar year on which the employer pays qualifying wages to the employee for personal services performed in the Municipality.

(ii) An employer required to begin withholding tax under subsection (d)(i) of this section may elect to withhold tax on behalf of the Municipality during the initial threshold period described in subsection (b)(i) of this section for days on which the employer paid qualifying wages to the employee for personal services performed in that municipal corporation.

(iii) If an employer makes the election described in subsection (d)(ii) of this section, the taxes withheld and paid by such an employer during that initial threshold period to the municipal corporation in which the employee's principal place of work is located are refundable to the employee.

(e) Beginning January 1, 2016 and thereafter, without regard to the number of days in a calendar year on which an employee performs personal services in the Municipality, an employer shall withhold municipal income tax on all of the employee's qualify-

ing wages for a taxable year and remit that tax only to the Municipality if the employer's fixed location is located in the Municipality and the employer qualifies as a small employer as defined in Section 311-9-S6 of this chapter. To determine whether an employer qualifies as a small employer for a taxable year, the tax commissioner may require the employer to provide the tax commissioner with the employer's federal income tax return for the preceding taxable year.

(f) Subsections (b)(i) and (d) of this section shall not apply to the extent that the tax commissioner and an employer enter into an agreement regarding the manner in which the employer shall comply with the requirements of Section 311-23 of this chapter.

(g) Withholding on the qualifying wages of a person performing personal services at a petroleum refinery located in the Municipality shall be consistent with Ohio Revised Code section 718.011(G).
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-29. Collection at Source; Pass-through Entity.

For tax years beginning prior to January 1, 2016, and except as otherwise provided in this Section 311-29, a pass-through entity that conducts business within the Municipality must withhold municipal income tax at the rate specified in Section 311-3 on each owner's distributive share of the pass-through entity's net profits attributable to the Municipality and remit such tax to the tax commissioner by the applicable dates provided in Section 311-37. A pass-through entity subject to this section shall use the form prescribed by the tax commissioner to return and remit municipal income tax withheld. Such pass-through entity shall be required to file a return and remit any withheld municipal income tax that remains outstanding as of the date specified in Section 311-41. A pass-through entity subject to this section that fails to collect or remit municipal income tax as provided herein shall be liable for the tax that it should have withheld or remitted and shall be subject to the interest and penalty provisions of Sections 311-73, 311-75 and 311-999. The resident and nonresident owners shall receive a credit against their municipal income tax liabilities in the amount of the tax so withheld by the pass-through entity on their respective distributive shares of the pass-through entity's net profit. All claims for refund of municipal income tax withheld by a pass-through entity pursuant to this section must be made by the owner within the period set forth in Section 311-71.

A pass-through entity is not required to withhold and remit municipal income tax to the extent that its owners both file municipal income tax returns and declarations as provided in Sections 311-51 and 311-37, respectively, that report their distributive shares of the pass-through entity's net profits attributable to the Municipality; and pay municipal income tax thereon to the Municipality.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-31. Collection at Source; Casino, VLT, and Sports Gaming Proprietors.

(a) For tax years beginning on or after January 1, 2016, a casino facility or a casino operator, as defined in section 311-9-C3 of this chapter, or a lottery sales agent conducting video lottery terminal sales on behalf of the state shall withhold and remit municipal income tax with respect to amounts other than qualifying wages as provided in Section 718.031 of the Ohio Revised Code.

(b) For tax years beginning on or after January 1, 2023, a type B sports gaming proprietor offering sports gaming at a sports gaming facility, or a video lottery terminal sales agent conducting lottery sports gaming offered in a video lottery terminal facility, shall withhold and remit municipal income tax with respect to amounts other than qualifying wages as provided in Section 718.031 of the Ohio Revised Code. "Type B sports gaming proprietor," "sports gaming," "sports gaming facility," "video lottery terminal sales agent," "lottery sports gaming," and "video lottery terminal," are as defined in Section 311-9 of this chapter.

(c) Amounts deducted and withheld on behalf of the Municipality shall be allowed as a credit against payment of the tax imposed by the Municipality and shall be treated as taxes paid for purposes of Section 311-33 of this chapter for the person for whom the amount is deducted and withheld.

(d) The tax commissioner shall prescribe the forms of the receipts and returns required under this section.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016; a. Ord. No. 338-2022, §§ 2, 3, eff. Oct. 26, 2022)

Sec. 311-33. Declarations of Estimated Tax Required; Time for Filing.

(a) As used in this section:

(i) "Estimated taxes" means the amount that the taxpayer reasonably estimates to be the taxpayer's tax liability for a municipal corporation's income tax for the current taxable year.

(ii) "Tax liability" means the total taxes due to a municipal corporation for the taxable year, after allowing any credit to which the taxpayer is entitled, and after applying any estimated tax payment, withholding payment, or credit from another taxable year.

(b) (i) Every person who anticipates any taxable income which is not subject to Section 311-23 hereof, or who engages in any business or activity, shall file a declaration of estimated income or the estimated profit or loss from such business activity on a form prescribed by the tax commissioner or a generic form, together with the estimated municipal income tax due thereon, if any. For tax years beginning on or after January 1, 2016, a declaration shall only be required for the current taxable year if the amount payable as estimated taxes is at least $200.

(ii) Notwithstanding subsection (b)(i) above, if a person's income is wholly from qualifying wages from which the tax will be withheld and remitted to the Municipality in accordance with Section 311-23 and/or the distributive share of net profit from which the tax will be withheld and remitted to the Municipality in accordance with Section 311-29, such person need not file a declaration.

(iii) For tax years beginning on or after January 1, 2016:

(1) Taxes withheld from qualifying wages shall be considered as paid to the Municipality in equal amounts on each payment date or, if the taxpayer establishes the dates on which all amounts were actually withheld, on the dates on which the amounts were actually withheld.

(2) An overpayment of tax applied as a credit to a subsequent taxable year is deemed to be paid on

the date of the postmark stamped on the cover in which the payment is mailed or, if the payment is made by electronic funds transfer, the date the payment is submitted. As used in this division, "date of the postmark" means, in the event there is more than one date on the cover, the earliest date imprinted on the cover by the postal service.

(3) A taxpayer having a taxable year of less than twelve (12) months shall make a declaration under rules prescribed by the tax commissioner.

(4) Taxes withheld by a casino operator or by a lottery sales agent under section 718.031 of the Ohio Revised Code are deemed to be paid to the municipal corporation for which the taxes were withheld on the date the taxes are withheld from the taxpayer's winnings.

(iv) Taxpayers filing joint returns shall file joint declarations of estimated taxes.

(v) The declaration of estimated taxes shall be filed as follows:

(1) For tax years ending before January 1, 2106, on or before April 15 of each year or on or before the fifteenth (15^{th}) day of the fourth (4^{th}) month following the date the taxpayer first becomes subject to municipal income tax;

(2) For tax years beginning on or after January 1, 2016, on or before the date prescribed for the filing of municipal income tax returns under subsection (a) of Section 311-51 of this chapter or on or before the fifteenth (15^{th}) day of the fourth (4^{th}) month of the first (1^{st}) taxable year after the taxpayer becomes subject to tax for the first time;

(3) Taxpayers reporting on a fiscal year basis shall file a declaration on or before the fifteenth (15^{th}) day of the fourth (4^{th}) month after the beginning of each fiscal year or period.

(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-35. Methods for Estimating Taxes.

A taxpayer shall have the option of determining its estimated municipal income tax on either of the following methods:

(a) By basing the estimate on the preceding full year's municipal income tax liability, or by annualizing such tax liability if the preceding tax year was not for a full 12-month period. In such case, if each installment is timely paid when due on that basis, no interest or penalty shall apply for any under estimate of municipal income tax for the tax year, regardless of the actual municipal income tax liability for such year, except in the case where the annual return required by Section 311-51 and the payment required with that return by subsection (b) of Section 311-51 have not been submitted by the due dates for such annual return and the payment of municipal income tax due.

(b) (i) For tax years prior to 2005, by basing the estimate on the taxable income earned or received during the three-month period preceding the due date for the declaration described in Section 311-33, annualized for the remainder of the tax year, and

updating this estimate by amendment as necessary each succeeding three-month period so that at least seventy percent (70%) of the annual municipal income tax liability to be ultimately determined shall have been paid by estimate within one month following the close of the tax year, through timely quarterly installments. Failure to have made timely quarterly payments totaling at least seventy percent (70%) of the ultimate municipal income tax liability by estimate in the fashion so described shall subject the taxpayer to interest and penalties as set forth in Sections 311-73 and 311-75 on the portion of estimated municipal income tax due and not seventy percent (70%) paid by the installment due date.

(ii) For tax years beginning in 2005 and thereafter, by basing the estimate on the taxable income earned or received during the three-month period preceding the due date for the declaration described in Section 311-33, annualized for the remainder of the tax year, and updating this estimate by amendment as necessary each succeeding three-month period so that at least ninety percent (90%) of the annual municipal income tax liability to be ultimately determined shall have been paid by estimate within one month following the close of the tax year, through timely quarterly installments. Failure to have made timely quarterly payments totaling at least ninety percent (90%) of the ultimate municipal income tax liability by estimate in the fashion so described shall subject the taxpayer to interest and penalties as set forth in Sections 311-73 and 311-75 on the portion of estimated municipal income tax due and not ninety percent (90%) paid by the installment due date.

(c) Except as otherwise provided in this Section 311-35, the interest and penalty provisions of Sections 311-73 and 311-75 apply to the late payment, nonpayment or underpayment of estimated municipal income tax. However, the interest and penalty provisions of Sections 311-73 and 311-75 shall not apply where either:

(i) The taxpayer is a resident but was not domiciled in the Municipality on January 1 of the taxable year for which estimated payments of municipal income tax have been made; or

(ii) The taxpayer has remitted on a timely basis an amount of estimated municipal income tax at least equal to one hundred percent (100%) of the taxpayer's municipal income tax liability for the preceding taxable year, provided that the return for the preceding taxable year reflected a 12-month period and the taxpayer filed with the Municipality a municipal income tax return for the preceding taxable year.

(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-37. Payment with Declaration.

(a) For tax years prior to 2005, the required portion of the tax liability for the taxable year that shall be paid through estimated taxes made payable to the Municipality or

tax commissioner, including the application of tax refunds to estimated taxes and withholding on or before the applicable payment date, shall be as follows:

(i) Taxpayers who are individuals are required to submit a declaration of the estimated income tax to be paid the Municipality accompanied by a payment of at least seventeen and one-half percent (17.5%) of the estimated annual tax, less credit for taxes withheld or paid to another municipality or Joint Economic Development District. At least a similar amount shall be paid on or before the last day of the seventh (7^{th}), tenth (10^{th}), and thirteenth (13^{th}) months after the beginning of the tax year.

(ii) For taxpayers that are not individuals, such declaration of estimated income tax to be paid the Municipality shall be accompanied by a payment of at least seventeen and one-half percent (17.5%) of the estimated annual tax. At least a similar amount shall be paid on or before the fifteenth (15^{th}) day of the sixth (6^{th}), ninth (9^{th}) and twelfth (12^{th}) months after the beginning of the taxable year.

(b) For tax years beginning on or after January 1, 2005 and continuing through December 31, 2015, the required portion of the tax liability for the taxable year that shall be paid through estimated taxes made payable to the Municipality or tax commissioner, including the application of tax refunds to estimated taxes and withholding on or before the applicable payment date, shall be as follows:

(i) Taxpayers who are individuals are required to submit a declaration of the estimated income tax to be paid the Municipality accompanied by a payment of at least twenty-two and one-half percent (22.5%) of the estimated annual tax, less credit for taxes withheld or paid to another municipal corporation or Joint Economic Development District. At least a similar amount shall be paid on or before the last day of the seventh (7^{th}), tenth (10^{th}), and thirteenth (13^{th}) months after the beginning of the tax year.

(ii) For Taxpayers that are not individuals, such declaration of estimated income tax to be paid the Municipality shall be accompanied by a payment of at least twenty-two and one-half percent (22.5%) of the estimated annual tax. At least a similar amount shall be paid on or before the fifteenth (15^{th}) day of the sixth (6^{th}), ninth (9^{th}) and twelfth (12^{th}) months after the beginning of the taxable year.

(c) For tax years beginning on or after January 1, 2016, the required portion of the tax liability for the taxable year that shall be paid through estimated taxes made payable to the Municipality or tax commissioner, including the application of tax refunds to estimated taxes and withholding on or before the applicable payment date, shall be as follows:

(i) Taxpayers who are individuals are required to submit a declaration of the estimated income tax to be paid the Municipality accompanied by a payment of at least twenty-two and one-half percent (22.5%) of the estimated annual tax, less credit for taxes withheld or paid to another municipal corporation or Joint Economic Development District, with the declaration of income tax, and at least a similar amount shall be paid on or before the fifteenth (15^{th}) day

of the sixth (6th), ninth (9th) and thirteenth (13th) months after the beginning of the taxable year.

(ii) For Taxpayers that are not individuals, such declaration of estimated income tax to be paid the Municipality shall be accompanied by a payment of at least twenty-two and one-half percent (22.5%) of the estimated annual tax, less credit for taxes withheld or paid to another municipal corporation or Joint Economic Development District, with the declaration of income tax, and at least a similar amount shall be paid on or before the fifteenth (15th) day of the sixth (6th), ninth (9th) and twelfth (12th) months after the beginning of the taxable year.

The mere submission of a declaration estimating a municipal income tax liability shall not constitute a filing of the required declaration unless accompanied by the required payment.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016; a. Ord. No. 019-2018, § 1, eff. March 22, 2018)

Sec. 311-39. Amended Declarations.

(a) An amended declaration is required whenever the taxpayer's estimated tax liability changes during the taxable year. A change in estimated tax liability may either increase or decrease the estimated tax liability for the taxable year.

(b) When an amended declaration is filed, the unpaid balance of municipal income tax shown due thereon shall be paid in equal installments on or before the remaining payment dates set forth in Section 311-37 of this chapter, and the amended declaration must be filed on the next applicable due date.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-41. Annual Return Required.

On or before the fifteenth (15th) day of the fourth (4th) month of the calendar or fiscal year following that for which the declaration or amended declaration was filed, an annual municipal income tax return shall be filed and any balance of municipal income tax which may be due shall be paid with the return in accordance with the provisions of Section 311-51 of this chapter. A failure to file an annual municipal income return may result in interest and civil and/or criminal penalties pursuant to Sections 311-73, 311-75, and 311-999 of this chapter.

(a) For taxpayers who are individuals, or who are not individuals and are reporting and filing on a calendar year basis, the annual tax return is due on the same date as the filing of the federal tax return, unless extended pursuant to division (G) of section 5747.08 of the Revised Code.

(b) For taxpayers who are not individuals, and are reporting and filing on a fiscal year basis or any period other than a calendar year, the annual return is due on the fifteenth (15th) day of the fourth (4th) month following the end of the taxable year or period.

The filing of a declaration does not relieve the taxpayer of the necessity of filing an annual return, even if there is no change in the declared tax liability. An annual return must be filed to obtain a refund of any overpayment of more than five dollars ($5) for tax years beginning prior to January 1, 2016 or a refund of any overpayment of more than ten dollars ($10) for tax years beginning on or after January 1, 2016.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-43. Underpayment of Estimated Taxes.

(a) In the case of any underpayment of any portion of a tax liability, penalty and interest may be imposed pursuant to Sections 311-73 and 311-75 of this chapter upon the amount of underpayment for the period of underpayment, unless the underpayment is due to reasonable cause as described in subsection (b) of this section. The period of the underpayment shall run from the day the estimated payment was required to be made to the date on which the payment is made. For purposes of this section, a payment of estimated taxes on or before any payment date shall be considered a payment of any previous underpayment only to the extent the payment of estimated taxes exceeds the amount of the payment presently required to be paid to avoid any penalty.

(b) An underpayment of any portion of tax liability determined under subsection (a) of this section shall be due to reasonable cause and the penalty imposed by this section shall not be added to the taxes for the taxable year if any of the following apply:

(i) The amount of estimated taxes that were paid equals at least ninety percent (90%) of the tax liability for the current taxable year, determined by annualizing the income received during the year up to the end of the month immediately preceding the month in which the payment is due;

(ii) The amount of estimated taxes that were paid equals at least one hundred percent (100%) of the tax liability shown on the return of the taxpayer for the preceding taxable year, provided that the immediately preceding taxable year reflected a period of twelve (12) months and the taxpayer filed a return with the municipal corporation under Section 311-51 of this chapter for that year; or

(iii) The taxpayer is an individual who resides in the Municipality but was not domiciled there on the first (1^{st}) day of January of the calendar year that includes the first (1^{st}) day of the taxable year.

(c) Failure to remit estimated taxes may also be subject to criminal penalties as provided in Section 311-999 of this chapter.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-45. Tax Credit for Job Creation or Retention in Ohio.

The Municipality, by Ordinance, may grant a refundable or nonrefundable credit against its tax on income to a taxpayer for the purpose of fostering job creation or job retention in the Municipality. If a credit is granted under this section, it shall be measured for the job creation credit as a percentage of the new income tax revenue the Municipality derives from new employees of the taxpayer or, in the case of job retention credits, as a percentage of the income tax revenue the Municipality derives from the retained employees of the taxpayer. Any such credit shall be for a term not exceeding fifteen (15) years. Before the Municipality passes an ordinance granting a credit, the Municipality and the taxpayer shall enter into an agreement specifying all the conditions of the credit.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-47. Credit for Tax Paid to Another Municipality/Joint Economic Development District.

(a) *Residents.*

(i) When a resident is subject to and has paid, or has acknowledged liability for, a municipal income tax in another

taxing municipality or Joint Economic Development Zone or District on the same income taxable under this chapter, regardless of whether such other taxing municipality or Joint Economic Development Zone or District allows credit to its nonresidents, such resident may claim a credit against the tax imposed by this chapter in an amount equal to the lesser of the amount of such tax paid to such other taxing municipality or Joint Economic Development Zone or District, or the municipal income tax imposed by this chapter on such income. In no case shall the credit exceed the tax assessed under this chapter on the resident's taxable income that is also subject to tax in another taxing municipality or Joint Economic Development Zone or District.

(ii) A resident owner of a pass-through entity that does not conduct business in the Municipality and that has paid, or has acknowledged liability for, an income tax in another taxing municipality or Joint Economic Development Zone or District may claim a credit equal to the lesser of the following amounts:

(1) The resident owner's proportionate share of the amount, if any, of income tax paid by the pass-through entity to another taxing municipality or Joint Economic Development Zone or District in the State; or

(2) The resident owner's proportionate share of the amount of municipal income tax that would be imposed on the pass-through entity if the pass-through entity conducted business in the Municipality.

In no case shall the credit authorized by this Section 311-47(ii) exceed the municipal income tax assessed by the Municipality under this chapter on the taxable income that is also subject to tax in another taxing municipality or Joint Economic Development Zone or District.

(iii) Where applicable, the credits provided by Ohio Revised Code sections 718.021 and 718.121 shall be available to residents, and the credit provided by Section 311-29 shall be available to resident owners.

(b) *Nonresidents.* Except as provided in Ohio Revised Code sections 718.021 and 718.121 and Section 311-29, when a nonresident is subject to the tax imposed by this chapter and is also subject to tax on the same income in the municipal corporation in which the nonresident resides, such nonresident shall not be allowed any credit against or claim of refund for municipal income tax paid to the other municipality, and the Municipality will not acknowledge or allow any claim for refund of any portion of the municipal income tax so levied.

(c) *Claim for Credit.* The credits provided for in this Section 311-47 shall be claimed in a timely return or form acceptable to, and filed with, the tax commissioner. In the event a taxpayer fails, neglects or refuses to file such timely return or form, the taxpayer shall be liable for such interest and penalties, both civil and criminal, as are prescribed in this chapter.

(d) No credit shall be given to any taxpayer for any school district income tax.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016; a. Ord. No. 019-2018, § 1, eff. March 22, 2018)

Sec. 311-49. Credit for Tax Beyond Statute for Obtaining Refund.

(a) Income tax that has been deposited or paid to the Municipality, but should have been deposited or paid to another municipal corporation, is allowable by the Municipality as a refund, but is subject to the three-year limitation on refunds as provided in Section 311-71 of this chapter.

(b) Income tax that should have been deposited or paid to the Municipality, but was deposited or paid to another municipal corporation, shall be subject to collection and recovery by the Municipality. To the extent a refund of such tax or withholding is barred by the limitation on refunds as provided in Section 311-71, the Municipality will allow a non-refundable credit equal to the tax or withholding paid to the other municipality against the municipal income tax the Municipality claims is due. If the Municipality's tax rate is higher, the tax representing the net difference of the tax rates is also subject to collection by the Municipality, along with any penalty and interest accruing during the period of nonpayment.

(c) No carryforward of credit will be permitted when the overpayment is beyond the three-year limitation for refunding of same as provided in Section 311-71 of this chapter.

(d) Nothing in this section requires the Municipality to allow credit for tax paid to another municipal corporation if the Municipality has reduced credit for tax paid to another municipal corporation. Section 311-47 of this chapter regarding any limitation on credit shall prevail.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-51. Returns Must Be Filed; Time of Filing; Payment with Return.

(a) (i) Except as otherwise provided in this chapter, each individual taxpayer who engages in business or other activity in the Municipality, or whose taxable income is subject to the tax imposed by this chapter, shall, whether or not a tax be due thereon, make and file a return with the tax commissioner on or before April 15 of each year following the close of the calendar year. Each annual net profit income tax return required to be filed under this section by a taxpayer that is not an individual shall be completed and filed on or before the fifteenth (15^{th}) day of the fourth (4^{th}) month following the end of the taxpayer's fiscal year or period. A failure to file an annual municipal income return and to remit the taxes due therewith, made payable to the Municipality or the tax commissioner, may result in interest and civil penalties pursuant to Sections 311-73 and 311-75 of this chapter.

(ii) The tax commissioner shall accept on behalf of all nonresident and resident individual taxpayers a return filed by an employer, agent of an employer, or other payer located in the Municipality under subsection (b)(vi) of Section 311-23 of this chapter when the nonresident or resident individual taxpayer's sole income subject to the tax is the qualifying wages reported by the employer, agent of an employer, or other payer, and no additional tax is due to the Municipality.

(iii) For tax years beginning prior to January 1, 2016, the tax commissioner is hereby authorized to provide by regulation that the municipal income

withholding tax return described in Section 311-29 of a pass-through entity that conducts business in the Municipality, showing the amount of municipal income tax withheld and remitted to the tax commissioner by said pass-through entity in respect of an owner's distributive share of the pass-through entity's net profit attributable to the Municipality, shall be accepted as the municipal income tax return required of such owner whose sole income subject to tax under this chapter is such distributive share. Where an owner has as his sole sources of income subject to tax under this chapter both qualifying wages described in this section and the distributive share of net profit described in this section, the tax commissioner is hereby authorized to accept as the municipal income tax return required of such owner the returns described in this section of the employer and the pass-through entity.

(b) The taxpayer making a municipal income tax return shall, at the time of filing thereof, pay to the tax commissioner the amounts of taxes shown as due thereon; provided, however, that where any portion of the tax so due shall have been deducted at the source, pursuant to the provisions of Sections 311-23 through 311-31, or where any portion of said tax shall have been paid by the taxpayer, pursuant to the provisions of Sections 311-33 through 311-37, or where an income tax, creditable against municipal income tax pursuant to Section 311-47, has been paid to another municipality or Joint Economic Development Zone or District, credit for the amount so paid shall be deducted from the amount of municipal income tax shown to be due and only the balance, if any, shall be due and payable at the time of filing said return. As provided in Ohio Revised Code section 718.051, for taxable years beginning on or after January 1, 2005, a business the net profits of which are subject to tax under this chapter may pay its municipal income tax by using the Ohio Business Gateway.

(i) For taxable years beginning on or after January 1, 2016, the taxpayer shall not be required to remit tax with respect to net profits if the amount due is ten dollars ($10) or less.

(ii) Any taxpayer not required to remit tax to the Municipality for a taxable year pursuant to subsection (b)(i) of this section shall file with the Municipality an annual net profit return under subsection (a) of this section.

(c) If an individual is deceased, any return or notice required of that individual shall be completed and filed by that decedent's executor, administrator, or other person charged with the property of that decedent.

(d) If an individual is unable to complete and file a return or notice required by the Municipality in accordance with this chapter, the return or notice required of that individual shall be completed and filed by the individual's duly authorized agent, guardian, conservator, fiduciary, or other person charged with the care of the person or property of that individual. Such person charged with the care of the person or property of that individual shall provide, with the filing of the return, appropriate documentation to support that they are authorized to file a return or notice on behalf of the taxpayer. This notice shall include any legally binding authorizations, and contact information including name, address, and phone number of the duly authorized agent, guardian, conservator, fiduciary, or other person.

(e) Returns or notices required of an estate or a trust shall be completed and filed by the fiduciary of the estate or trust. Such fiduciary shall provide, with the filing of the return, appropriate documentation to support that they are authorized to file a return or notice on behalf of the taxpayer. This notice shall include any legally binding authorizations, and contact information including name, address, and phone number of the fiduciary.

(f) Spouses may file either separate returns or a joint return for municipal income tax purposes, even though one of the spouses has neither taxable income nor deductions included on the municipal income tax return, regardless of whether their federal and state returns were filed separately or jointly. If a joint municipal income tax return is made, the tax shall be computed on the aggregate taxable income and the liability with respect to the tax shall be joint and several.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-53. Exception to Filing Requirement; Affidavit.

(a) As used in this section, "worksite location" has the same meaning as in Section 311-27 of this chapter.

(b) A person may notify the tax commissioner that the person does not expect to be a taxpayer with respect to the Municipality for a taxable year if both of the following conditions apply:

(i) The person was required to file a tax return with the Municipality for the immediately preceding taxable year because the person performed services at a worksite location within the Municipality, and the person has filed all appropriate and required returns and remitted all applicable income tax and withholding payments as provided by this chapter; and

(ii) The person no longer provides services in the Municipality, and does not expect to be subject to the Municipality's income tax for the taxable year.

(c) The person shall provide the notice in a signed affidavit that briefly explains the person's circumstances, including the location of the previous worksite location and the last date on which the person performed services or made any sales within the Municipality. The affidavit also shall include the following statement: "The affiant has no plans to perform any services within the City of Cincinnati, make any sales in the City of Cincinnati, or otherwise become subject to the tax levied by the City of Cincinnati during the taxable year. If the affiant does become subject to the tax levied by the municipal corporation for the taxable year, the affiant agrees to be considered a taxpayer and to properly register as a taxpayer with the City of Cincinnati, if such a registration is required by the City of Cincinnati's resolutions, ordinances, or rules." The person shall sign the affidavit under penalty of perjury.

(d) The tax commissioner is not required to accept an affidavit from a taxpayer who has not complied with the provisions of this chapter.

(e) If a person submits an affidavit described in subsection (c) of this section, the tax commissioner shall not require the person to file any tax return for the taxable year unless the tax commissioner possesses information that conflicts with the affidavit or if the circumstances described in the affidavit change, or the taxpayer has engaged in activity which results in work being performed, services provided, sales made, or other activity that results in municipal taxable income reportable to the Municipality in the taxable year. It shall be the responsibility of the taxpayer to comply with the

provisions of this chapter relating to the reporting and filing of municipal taxable income on an annual municipal income tax return, even if an affidavit has been filed with the tax commissioner for the taxable year. Nothing in this Section 311-53 prohibits the tax commissioner from performing an audit of the person.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-55. Extension of Time for Filing.

(a) (i) For tax years beginning prior to January 1, 2016, a request for extension for filing the municipal income tax return shall be filed no later than the original due date for filing such return, as set forth in Section 311-51 of this chapter. The extended due date of the municipal income tax return shall be the last day of the month following the month to which the due date of the federal income tax return has been extended. The taxpayer shall make the request by filing either a copy of the taxpayer's request for a federal filing extension or a written request with the tax commissioner.

(ii) (1) For tax years beginning on or after January 1, 2016, any taxpayer that has duly requested an automatic six-month extension for filing the taxpayer's federal income tax return shall automatically receive an extension for the filing of a municipal income tax return. The extended due date of the municipal income tax return shall be the fifteenth day of the tenth month after the last day of the taxable year to which the return relates. For tax years ending after December 31, 2022, the extended due date of municipal income tax return for a taxpayer that is not an individual shall be the fifteenth day of the eleventh month after the last day of the taxable year to which the return relates.

(2) Any taxpayer that qualifies for an automatic federal extension for a period other than six months for filing the taxpayer's federal income tax return shall automatically receive an extension for the filing of a municipal income tax return. The extended due date of the municipal income tax return shall be the same as that of the extended federal income tax return.

(3) A taxpayer that has not requested or received a six-month extension for filing the taxpayer's federal income tax return may request that the tax commissioner grant the taxpayer a six-month extension of the date for filing the taxpayer's municipal income tax return. If the request is received by the tax commissioner on or before the date the municipal income tax return is due, the tax commissioner shall grant the taxpayer's requested extension.

(b) Notwithstanding subsections (a)(i) and (a)(ii) above, on and after January 1, 2005, any taxpayer that is subject to municipal income tax on the taxpayer's net profit and that has received an extension to file the federal income tax return for the same tax year shall not be required to notify the Municipality of the federal extension and shall not be required to file the municipal income tax return for such tax year until the last day of the month to which the due date

for filing the federal income tax return has been extended; provided that, on or before the due date specified in Section 311-51 for filing the municipal income tax return, the taxpayer notifies the Ohio tax commissioner of the federal extension through the Ohio business gateway.

(c) The Municipality may deny a taxpayer's request for extension if the taxpayer fails to timely file a request, including the failure to file a copy of the federal extension request, if applicable.

(d) An extension of time to file under this chapter is not an extension of the time to pay any tax due unless the tax commissioner grants an extension of that date; hence, interest may apply to any unpaid tax during the period of the extension at the rate set forth in Sections 311-73 and 311-75. No penalty shall be assessed in those cases where the return is filed and the final tax paid within the extension period, provided all other filing and payment requirements have been fulfilled. However, if upon further examination, it becomes evident that declaration, filing or payment requirements have not been fulfilled, penalty and interest may be assessed in full in the same manner as though no extension for the filing of the municipal income tax return had been granted.

(e) If the State Tax Commissioner extends for all taxpayers the date for filing state income tax returns under division (G) of section 5747.08 of the Ohio Revised Code, a taxpayer shall automatically receive an extension for the filing of a municipal income tax return. The extended due date of the municipal income tax return shall be the same as the extended due date of the state income tax return.

(f) In the event the United States of America, the State of Ohio, Hamilton County or the Municipality has declared any part of the Municipality a disaster area, the tax commissioner may extend the time for filing of the annual return for a period not to exceed six (6) months for persons who have suffered injury or loss from the disaster. The city manager or city manager's designee shall establish guidelines for determining eligibility for and implementation of such extension. In the event an extension is granted, both penalty and interest shall be waived during the time of the extension.

(g) If a taxpayer receives an extension for the filing of a municipal income tax return under subsections (a) or (e) of this section, the tax administrator shall not make any inquiry or send any notice to the taxpayer with regard to the return on or before the date the taxpayer files the return or on or before the extended due date to file the return, whichever occurs first.

If a tax administrator violates subsection (g) of this section, the municipal corporation shall reimburse the taxpayer for any reasonable costs incurred to respond to such inquiry or notice, up to $150.

Subsection (g) of this section does not apply to an extension received under subsection (a) of this section if the tax administrator has actual knowledge that the taxpayer failed to file for a federal extension as required to receive the extension under subsections (a)(ii)(1) and (a)(ii)(2) of this section or failed to file for an extension under subsection (a)(ii)(3) of this section.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016; a. Ord. No. 408-2023, § 1, eff. Dec. 6, 2023)

Sec. 311-57. Return and Payment of Tax; Individuals Serving in Combat Zone.

(a) Each member of the national guard of any state and each member of a reserve component of the armed forces of the United

States called to active duty pursuant to an executive order issued by the President of the United States or an act of the Congress of the United States, and each civilian serving as support personnel in a combat zone or contingency operation in support of the armed forces, may apply to the tax commissioner of the Municipality for both an extension of time for filing of the return and an extension of time for payment of taxes required by the Municipality in accordance with this chapter during the period of the member's or civilian's duty service and for one hundred eighty (180) days thereafter. The application shall be filed on or before the one hundred eightieth (180^{th}) day after the member's or civilian's duty terminates. An applicant shall provide such evidence as the tax commissioner considers necessary to demonstrate eligibility for the extension. The contract for installment payments, if any; the date(s) by which returns, reports, other tax documents or payments must be made; and the applicability of penalties or interest on any unpaid taxes shall be as provided in Section 718.052 of the Ohio Revised Code and the rules and regulations promulgated under this chapter.

(b) A qualifying taxpayer who is eligible for an extension under the Internal Revenue Code shall receive both an extension of time in which to file any return, report, or other tax document and an extension of time in which to make any payment of taxes required by the Municipality in accordance with Section 718.052 of the Ohio Revised Code and the rules and regulations promulgated under this chapter.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-59. Consolidated Return.

(a) As used in this section:

(i) "Affiliated group of corporations" means an affiliated group as defined in section 1504 of the Internal Revenue Code, except that, if such a group includes at least one incumbent local exchange carrier that is primarily engaged in the business of provid-

ing local exchange telephone service in this state, the affiliated group shall not include any incumbent local exchange carrier that would otherwise be included in the group.

(ii) "Consolidated federal income tax return" means a consolidated return filed for federal income tax purposes pursuant to section 1501 of the Internal Revenue Code.

(iii) "Consolidated federal taxable income" means the consolidated taxable income of an affiliated group of corporations, as computed for the purposes of filing a consolidated federal income tax return, before consideration of net operating losses or special deductions. "Consolidated federal taxable income" does not include income or loss of an incumbent local exchange carrier that is excluded from the affiliated group under subsection (a)(i) of this section.

(iv) "Incumbent local exchange carrier" has the same meaning as in section 4927.01 of the Revised Code.

(v) "Local exchange telephone service" has the same meaning as in section 5727.01 of the Revised Code.

(b) A taxpayer that is a member of an affiliated group of corporations may elect to file a consolidated municipal income tax return for a taxable year if the affiliated group of corporations filed a consolidated federal income tax return with respect to that taxable year and if one of the following applies:

(i) For tax years beginning prior to January 1, 2016, all of the members of the affiliated group of corporations are subject to the municipal income tax in that taxable year; or

(ii) For tax years beginning on or after January 1, 2016, at least one member of the affiliated group of corporations is subject to the municipal income tax in that taxable year.

(c) For tax years beginning prior to January 1, 2016:

(i) An affiliated group of corporations subject to the tax imposed by this chapter that properly files a consolidated return in accordance with subsection (b)(i) of this section must file a consolidated return that includes those corporations in the group that are subject to municipal income tax for each succeeding taxable year in which the group files a consolidated return for federal income tax purposes unless, on or before the due date (taking into account extensions of time properly granted) of the return for a taxable year, the affiliated group obtains the permission of the tax commissioner to cease filing a consolidated return for that year;

(ii) A consolidated return shall include information to disclose the net profit or loss of each corporate member of the group before consolidation;

(iii) Profits and losses are combined after the schedules are separately applied to each respective corporation in the affiliated group;

(iv) Losses incurred by a corporation prior to the period of the consolidation year may be carried forward to the period of consolidation and applied against the allocated profit or loss of the same corporation, but such loss may not be used to reduce the income of other corporate members of the consolidated filing;

(v) If the tax commissioner finds net profits are not properly allocated to

the Municipality for any reason, the filing of separate returns or other adjustments may be required by the tax commissioner as may be necessary to produce a fair and proper allocation;

(vi) In the case of a corporation that carried on transactions with its stockholders or with other corporations related by stock ownership, interlocking directorates or some other method, or in case any person operates a division, branch, factory, office, laboratory or activity within the Municipality constituting only a portion of its total business, the tax commissioner shall require such additional information as the tax commissioner deems necessary to ascertain whether net profits are properly allocated to the Municipality. If the tax commissioner finds the net profits are not properly allocated to the Municipality by reason of transactions with stockholders or with other corporations related by stock ownership, interlocking directorates or transactions with a division, branch, factory, office, laboratory or activity, or by some other method, the tax commissioner shall make such adjustments to, and allocation of, net profits to fairly and reasonably reflect the proper allocation of net profits to the Municipality.

(d) For tax years beginning on or after January 1, 2016:

(i) An election made pursuant to subsection (b)(ii) of this section is binding for a five-year period beginning with the first (1st) taxable year of the initial election unless a change in the reporting method is required under federal law;

(1) The election continues to be binding for each subsequent five-year period unless the taxpayer elects to discontinue filing consolidated municipal income tax returns under subsection (d)(i)(2) of this section or the taxpayer receives permission from the tax commissioner. The tax commissioner shall approve such a request for good cause shown;

(2) An election to discontinue filing consolidated municipal income tax returns under this section must be made in the first (1st) year following the last year of a five-year consolidated municipal income tax return election period in effect under subsection (d)(i)(1) of this section. The election to discontinue filing a consolidated municipal income tax return is binding for a five-year period beginning with the first (1st) taxable year of the election;

(ii) A taxpayer that is a member of an affiliated group of corporations that filed a consolidated federal income tax purposes pursuant to Section 1501 of the Internal Revenue Code return for a taxable year shall file a consolidated municipal income tax return for that taxable year if the tax commissioner determines, by a preponderance of the evidence, that intercompany transactions have not been conducted at arm's length and that there has been a distortive shifting of income or expenses with regard to allocation of net profits to the Municipality. A taxpayer that is required to file a consolidated municipal income tax return for a taxable year shall file a consolidated municipal income tax return in all subsequent taxable years unless the

taxpayer requests and receives written permission from the tax commissioner to file a separate return or a taxpayer has experienced a change in circumstances;

(iii) (1) Except as otherwise provided in subsections (d)(iii)(2), (3), and (4) of this section, corporations that file a consolidated municipal income tax return shall compute adjusted federal taxable income, as defined in Section 311-9-A1 of this chapter, by substituting "consolidated federal taxable income" for "federal taxable income" wherever "federal taxable income" appears in that division and by substituting "an affiliated group of corporation's" for "a C corporation's" wherever "a C corporation's" appears in that division;

(2) No corporation filing a consolidated municipal income tax return shall make any adjustment otherwise required under Section 311-9-A1 of this chapter to the extent that the item of income or deduction otherwise subject to the adjustment has been eliminated or consolidated in the computation of consolidated federal taxable income;

(3) If the net profit or loss of a pass-through entity having at least eighty percent (80%) of the value of its ownership interest owned or controlled, directly or indirectly, by an affiliated group of corporations is included in that affiliated group's consolidated federal taxable income for a taxable year, the corporation filing a consolidated municipal income tax return shall do one of the following with respect to that pass-through entity's net profit or loss for that taxable year:

(A) Exclude the pass-through entity's net profit or loss from the consolidated federal taxable income of the affiliated group and, for the purpose of making the computations required in Section 311-13 of this chapter, exclude the property, payroll, and gross receipts of the pass-through entity in the computation of the affiliated group's net profit situsedto a municipal corporation. If the entity's net profit or loss is so excluded, the entity shall be subject to taxation as a separate taxpayer on the basis of the entity's net profits that would otherwise be included in the consolidated federal taxable income of the affiliated group;

(B) Include the pass-through entity's net profit or loss in the consolidated federal taxable income of the affiliated group and, for the purpose of making the computations required in Section 311-13 of this chapter, include the property, payroll, and gross receipts of the pass-through entity in the computation of the affiliated group's net profit situsedto a municipal corporation. If the entity's net profit or loss is so included, the entity shall

not be subject to taxation as a separate taxpayer on the basis of the entity's net profits that are included in the consolidated federal taxable income of the affiliated group;

(4) If the net profit or loss of a pass-through entity having less than eighty percent (80%) of the value of its ownership interest owned or controlled, directly or indirectly, by an affiliated group of corporations is included in that affiliated group's consolidated federal taxable income for a taxable year, all of the following shall apply:

(A) The corporation filing the consolidated municipal income tax return shall exclude the pass-through entity's net profit or loss from the consolidated federal taxable income of the affiliated group and, for the purposes of making the computations required in Section 311-13 of this chapter, exclude the property, payroll, and gross receipts of the pass-through entity in the computation of the affiliated group's net profit situsedto a municipal corporation; and

(B) The pass-through entity shall be subject to municipal income taxation as a separate taxpayer in accordance with this chapter on the basis of the entity's net profits that would otherwise be included in the consolidated federal taxable income of the affiliated group;

(iv) A taxpayer shall prepare a consolidated municipal income tax return in the same manner as is required under the United States Department of Treasury regulations that prescribe procedures for the preparation of the consolidated federal income tax return required to be filed by the common parent of the affiliated group of which the taxpayer is a member.

(e) An election made under subsections (b)(i), (b)(ii) or (d)(i)(2) of this Section 311-59 is binding on all members of the affiliated group of corporations subject to a municipal income tax.

(f) Corporations filing a consolidated municipal income tax return shall make the computations required under Section 311-13 of this chapter by substituting "consolidated federal taxable income attributable to" for "net profit from" wherever "net profit from" appears in that section and by substituting "affiliated group of corporations" for "taxpayer" wherever "taxpayer" appears in that section.

(g) Each corporation filing a consolidated municipal income tax return is jointly and severally liable for any tax, interest, penalties, fines, charges, or other amounts imposed by a municipal corporation in accordance with this chapter on the corporation, an affiliated group of which the corporation is a member for any portion of the taxable year, or any one or more members of such an affiliated group.

(h) Corporations and their affiliates that made an election or entered into an agreement with a municipal corporation before January 1, 2016, to file a consolidated or combined tax return with such municipal

corporation may continue to file consolidated or combined tax returns in accordance with such election or agreement for taxable years beginning on and after January 1, 2016.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-61. Determination of Timely Filing and Payment.

This section shall not apply to payments required to be made under subsections (b)(ii) or (b)(iii) of Section 311-23 of this chapter.

(a) If any report, claim, statement, or other document required to be filed, or any payment required to be made, within a prescribed period or on or before a prescribed date under this chapter is delivered after that period to the tax commissioner or other municipal official with which the report, claim, statement, or other document is required to be filed, or to which the payment is required to be made, the date of the postmark stamped on the cover in which the report, claim, statement, or other document, or payment is mailed shall be deemed to be the date of delivery or the date of payment. "The date of postmark" means, in the event there is more than one date on the cover, the earliest date imprinted on the cover by the postal service.

(b) If a payment under this chapter is made by electronic funds transfer, the payment shall be considered to be made on the date of the timestamp assigned by the first electronic system receiving that payment , except that, when a payment made by electronic funds transfer is delayed due to circumstances not under the control of the taxpayer, the payment is considered to be made when the taxpayer submitted the payment. For purposes of this section, "submitted the payment" means the date which the taxpayer has designated for the delivery of payment, which may or may not be the same date as the date the payment was initiated by the taxpayer.

(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016; a. Ord. No. 019-2018, § 1, eff. March 22, 2018)

Sec. 311-63. Forms for Filing; Documents Required.

(a) The municipal income tax return shall be filed with the tax commissioner on a form or forms available to the public through the Internet or furnished by or obtainable upon request from the tax commissioner or on a generic form, if the generic form contains all information required by ordinances, resolutions, or rules adopted by the Municipality or the tax commissioner to be submitted with the prescribed municipal income tax return and if the taxpayer or return preparer filing the generic form otherwise complies with the requirements of this chapter governing the filing of returns, reports or documents. Such required information includes: taxpayer identification number; specification of municipal income tax year involved; and if a federal form is used, a statement that indicates the municipal income tax purpose for which the federal form is intended as a substitute, such as power of attorney, extension of time in which to file, and the like. The municipal income tax return shall set forth:

(i) The aggregate amounts of qualifying wages and other taxable income earned or received during the preceding year and subject to municipal income tax, and gross income from any business, less allowable expenses incurred in the acquisition of such

gross income, earned during the preceding year and subject to said tax;

(ii) The amount of the tax imposed by this chapter on such taxable income; and

(iii) Such other pertinent statements, information returns, copies of federal or state tax returns or schedules, or other information as the tax commissioner may require, including a statement that the figures used in the municipal income tax return are the figures used in the return for federal income tax, adjusted to set forth only such income as is taxable under the provisions of this chapter.

(b) Each return required to be filed under this section shall be verified by a declaration under penalty of perjury and shall contain the signature of the taxpayer or the taxpayer's duly authorized agent and of the person who prepared the return for the taxpayer. A facsimile of any required signature shall be accepted in lieu of a manual signature.

(c) Each returned required to be filed under this section shall include all supporting documents identified in the rules and regulations promulgated under this chapter and as set forth in section 718.05 of the Ohio Revised Code or which will enable the tax commissioner to verify credits, income, losses, or other pertinent factors on the return. After a taxpayer files a tax return, the tax commissioner shall request, and the taxpayer shall provide, any information, statements, or documents required by the Municipality to determine and verify the taxpayer's municipal income tax liability.

(d) An incomplete return shall be considered not filed, and the taxpayer shall be subject to late fees and penalties unless a complete return is filed by the date such return is due.

(e) If the tax commissioner considers it necessary in order to ensure the payment of the tax imposed by the Municipality in accordance with this chapter, the tax commissioner may require taxpayers to file returns and make payments otherwise than as provided in this section, including taxpayers not otherwise required to file annual returns.

(f) With respect to taxpayers to whom Section 311-59 of this chapter applies, to the extent that any provision in this division conflicts with any provision in Section 311-59 of this chapter, the provision in Section 311-59 shall prevail.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-65. Requiring Identifying Information.

(a) The tax commissioner may require any person filing a tax document with the tax commissioner to provide identifying information, which may include the person's social security number, federal employer identification number, or other identification number requested by the tax commissioner. A person required by the tax commissioner to provide identifying information that has experienced any change with respect to that information shall notify the tax commissioner of the change before, or upon, filing the next tax document requiring the identifying information.

(b) (i) If the tax commissioner makes a request for identifying information and the tax commissioner does not receive valid identifying information within thirty (30) days of making the request, the tax commissioner may impose a penalty upon the person to whom the request was directed pursuant to Sections 311-73 and 311-75 of

this chapter, in addition to any applicable penalty described in Section 311-999 of this chapter.

(ii) If a person required by the tax commissioner to provide identifying information does not notify the tax commissioner of a change with respect to that information as required under subsection (a) of this section within thirty (30) days after filing the next tax document requiring such identifying information, the tax commissioner may impose a penalty pursuant to Sections 311-73 and 311-75 of this chapter.

(iii) The penalties provided for under subsections (b)(i) and (ii) of this section may be billed and imposed in the same manner as the tax or fee with respect to which the identifying information is sought and are in addition to any applicable criminal penalties described in Section 311-999 of this chapter for a violation of Section 311-91 of this chapter and any other penalties that may be imposed by the tax commissioner by law.

(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-67. Use of Ohio Business Gateway; Types of Filings Authorized.

(a) Any taxpayer subject to municipal income taxation with respect to the taxpayer's net profit from a business or profession may file any municipal income tax return or, estimated municipal income tax return, or extension for filing a municipal income tax return, and may make payment of amounts shown to be due on such returns, by using the Ohio Business Gateway.

(b) Any employer, agent of an employer, or other payer may report the amount of municipal income tax withheld from qualifying wages, and may make remittance of such amounts, by using the Ohio Business Gateway.

(c) Nothing in this section affects the due dates for filing employer withholding tax returns or deposit of any required tax.

(d) The use of the Ohio Business Gateway by municipal corporations, taxpayers, or other persons does not affect the legal rights of municipalities or taxpayers as otherwise permitted by law. The State of Ohio shall not be a party to the administration of municipal income taxes or to an appeal of a municipal income tax matter, except as otherwise specifically provided by law.

(e) Nothing in this section shall be construed as limiting or removing the authority of any municipal corporation to administer, audit, and enforce the provisions of its municipal income tax.

(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-69. Amended Returns; Effect of Federal or State Tax Determination.

(a) (i) A taxpayer shall file an amended return with the tax commissioner in such form as the tax commissioner requires if any of the facts, figures, computations, or attachments required in the taxpayer's annual return to determine the tax due levied by the Municipality in accordance with this chapter must be altered.

(ii) (1) For tax years beginning prior to January 1, 2016, within three (3) months after the final determination of any federal tax liability affecting the taxpayer's municipal income tax liability, such taxpayer shall make and file an amended municipal income tax return showing taxable

income subject to the municipal income tax based upon such final determination of federal tax liability, and such taxpayer shall pay any additional municipal income tax shown due thereon or make a claim for refund of any overpayment.

(2) For tax years beginning on or after January 1, 2016, within sixty (60) days after the final determination of any federal or state tax liability affecting the taxpayer's municipal income tax liability, such taxpayer shall make and file an amended municipal income tax return showing taxable income subject to the municipal income tax based upon such final determination of federal or state tax liability, and such taxpayer shall pay any additional municipal income tax shown due thereon or make a claim for refund of any overpayment, unless the tax or overpayment is ten dollars ($10) or less.

(iii) If a taxpayer intends to file an amended consolidated municipal income tax return, or to amend its type of return from a separate return to a consolidated return, based on the taxpayer's consolidated federal income tax return, the taxpayer shall notify the tax commissioner before filing the amended return.

(b) (i) In the case of an underpayment, the amended return shall be accompanied by payment of any combined additional tax due together with any penalty and interest thereon. If, for tax years beginning before January 1, 2016 the combined tax shown to be due is five dollars ($5) or less, or for tax years beginning on or after January 1, 2016 the combined tax shown to be due is ten dollars ($10) or less, such amount need not accompany the amended return. Except as provided under subsection (b)(ii) of this section, the amended return shall not reopen those facts, figures, computations, or attachments from a previously filed return that are not affected, either directly or indirectly, by the adjustment to the taxpayer's federal or state income tax return unless the applicable statute of limitations for civil actions or prosecutions under Section 311-99 or subsection (h) of Section 311-999, respectively, has not expired for a previously filed return.

(ii) The additional tax to be paid shall not exceed the amount of tax that would be due if all facts, figures, computations, and attachments were reopened.

(c) (i) In the case of an overpayment resulting from adjustments to the taxpayer's federal or state income tax return, a request for refund may be filed under this division within the period prescribed by Section 311-69 of this chapter for filing the amended return even if it is filed beyond the period prescribed in subsection (e) of section 311-99 if it otherwise conforms to the requirements of that subsection. If, for tax years beginning before January 1, 2016, the amount of the refund is five dollars ($5) or less, or for tax years beginning on or after January 1, 2016 the amount of the refund is ten dollars ($10) or less, no refund need be paid by the Municipality to the taxpayer. Except as set forth in subsection (c)(ii) of this section, a request filed under this subsection shall claim refund of

overpayments resulting from alterations to only those facts, figures, computations, or attachments required in the taxpayer's annual return that are affected, either directly or indirectly, by the adjustment to the taxpayer's federal or state income tax return unless it is also filed within the time prescribed in Section 311-71 of this chapter. Except as set forth in subsection (c)(ii) of this section, the request shall not reopen those facts, figures, computations, or attachments that are not affected, either directly or indirectly, by the adjustment to the taxpayer's federal or state income tax return.

(ii) The amount to be refunded shall not exceed the amount of refund that would be due if all facts, figures, computations, and attachments were reopened.

(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-71. Overpayments; Refunds.

(a) (i) A taxpayer who has overpaid the amount of tax to which the Municipality is entitled under the provisions of this chapter may have such overpayment applied against any subsequent liability hereunder. In such case, the overpayment is considered to be an estimated tax payment made as of the date of the postmark, as defined in Section 311-33(b)(iii)(2) of this chapter, stamped on the cover in which the payment is mailed or, if the payment is made by electronic funds transfer, the date the payment is submitted.

(ii) Alternatively, upon receipt of a request for a refund, the tax commissioner, in accordance with this section, shall refund to employers, agents of employers, other payers, or taxpayers, the taxpayer's assigns, or legal representative with respect to any income or withholding tax levied by the Municipality, overpayments or amounts paid erroneously if the refund requested is more than five dollars ($5) for tax years beginning prior to January 1, 2016 or more than ten dollars ($10) for tax years beginning on or after January 1, 2016.

(b) (i) Except as otherwise provided in this chapter, municipal income taxes erroneously paid shall not be refunded unless a claim for refund is made within the later of three (3) years from the date on which such payment was made or the municipal income tax return was due; or

(1) For tax years beginning prior to January 1, 2016, three (3) months after final determination of the taxpayer's federal income tax liability; or

(2) For tax years beginning on or after January 1, 2016, within sixty (60) days after the final determination of any federal or state tax liability affecting the taxpayer's municipal tax liability;

(ii) Any documentation that substantiates the taxpayer's claim for a refund must be included with the return filing. Failure to remit all documentation, including schedules, other municipal income tax returns, or other supporting documentation necessary to verify credits, income, losses or other pertinent factors on the return will cause delay in processing, and/or disallowance of undocumented credits or losses.

(iii) A request for a refund that is received after the last day for filing specified in subsection (b)(i) of this section

shall be considered to have been filed in a timely manner if any of the following situations exist:

(1) The request is delivered by the postal service, and the earliest postal service postmark on the cover in which the request is enclosed is not later than the last day for filing the request;

(2) The request is delivered by the postal service, the only postmark on the cover in which the request is enclosed was affixed by a private postal meter, the date of that postmark is not later than the last day for filing the request, and the request is received within seven (7) days of such last day; or

(3) The request is delivered by the postal service, no postmark date was affixed to the cover in which the request is enclosed or the date of the postmark so affixed is not legible, and the request is received within seven (7) days of the last day for making the request.

(c) (i) On filing of the refund request, the tax commissioner shall determine the amount of refund due and request certify such amount to the treasurer of the Municipality for payment. Except as provided in subsection (c)(ii) of this section, the tax commissioner shall issue an assessment to any taxpayer whose request for refund is fully or partially denied. The assessment shall state the amount of the refund that was denied, the reasons for the denial, and instructions for appealing the assessment.

(ii) If the tax commissioner denies in whole or in part a refund request included within the taxpayer's originally filed annual income tax return, the tax commissioner shall notify the taxpayer, in writing, of the amount of the refund that was denied, the reasons for the denial, and instructions for requesting an assessment that may be appealed under Section 311-97 of this chapter.

(d) Interest shall be allowed and paid on any overpayment by a taxpayer of any municipal income tax obligation from the date of the overpayment until the date of the refund of the overpayment, except that if any overpayment is refunded within ninety (90) days after the final filing date of the annual return or ninety (90) days after the completed return is filed, whichever is later, no interest shall be allowed on the refund. For the purpose of computing the payment of interest on amounts overpaid, no amount of tax for any taxable year shall be considered to have been paid before the date on which the return on which the tax is reported is due, without regard to any extension of time for filing that return. Interest shall be paid at the interest rates described in Sections 311-73 and 311-75 of this chapter.

(e) As used in this section, "withholding tax" has the same meaning as in Section 311-75 of this chapter.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-73. Interest, Fees, Charges and Civil Penalties for Tax Years Beginning Prior to January 1, 2016.

(a) All taxes imposed and all monies withheld or required to be withheld by employers under the provisions of this chapter and remaining unpaid after they become due shall bear simple interest at the rate prescribed annually by the tax commissioner of the State of Ohio in accordance

with the formula set forth in Section 5703.47 of the Ohio Revised Code. The interest rate(s) charged shall be the interest rate(s) in effect at the time(s) the delinquent taxes were due.

(b) In addition to interest as provided in subsection (a) hereof, penalties based on the unpaid municipal income tax are hereby imposed as follows:

(i) For failure to pay taxes due, other than taxes withheld: One and one-half percent (1.5%) per month or fraction thereof that the amount remains past due.

(ii) For failure to remit taxes withheld from employees pursuant to Section 311-23 and owners of pass-through entities pursuant to Section 311-29: Five percent (5%) per month or fraction thereof that the amount remains past due.

(iii) For failure to make and file a return with the tax commissioner pursuant to Sections 311-23, 311-41, 311-51, or 311-99: Fifty dollars ($50) per return.

(c) In addition to interest as provided in subsection (a) hereof and penalties as provided in subsection (b) hereof, a penalty of one-half percent (0.5%) of the municipal income tax required to be withheld and remitted by an employer may be imposed on employers who are required to remit payment of withholding taxes electronically and who fail to do so.

(d) *Exceptions.* A penalty shall not be assessed on an additional tax assessment made by the tax commissioner when the municipal income tax return has been filed in good faith and the tax paid thereon within the time prescribed by the tax commissioner; and provided further that in the absence of fraud, neither penalty nor interest shall be assessed on any additional tax assessment resulting from a federal audit providing an amended municipal income tax return is filed and the additional tax is paid within three (3) months after the final determination of the federal tax liability.

(e) Upon recommendation of the tax commissioner, the director of finance may abate penalty or interest, or both, under uniform guidelines adopted by the board of review. (Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-75. Interest, Fees, Charges and Civil Penalties for Tax Years Beginning on or After January 1, 2016.

(a) As used in this section:

(i) "Applicable law" means this chapter and the ordinances, codes, directives, instructions, rules and regulations adopted by the Municipality regarding municipal income tax.

(ii) "Federal short-term rate" means the rate of the average market yield on outstanding marketable obligations of the United States with remaining periods to maturity of three (3) years or less, as determined under section 1274 of the Internal Revenue Code, for July of the current year.

(iii) "Income tax," "estimated income tax," and "withholding tax" mean any income tax, estimated income tax, and withholding tax imposed by the Municipality pursuant to applicable law, including at any time before January 1, 2016.

(iv) "Interest rate as described in subsection (a) of this section" means the federal short-term rate, rounded to the nearest whole number percent, plus five percent (5%). The rate shall apply for the calendar year next following the July of the year in which

the federal short-term rate is determined in accordance with subsection (a)(ii) of this section.

(v) "Return" includes any tax return, report, reconciliation, schedule, and other document required to be filed with the tax commissioner by a taxpayer, employer, any agent of the employer, or any other payer pursuant to applicable law, including at any time before January 1, 2016.

(vi) "Unpaid estimated income tax" means estimated income tax due but not paid by the date the tax is required to be paid under applicable law.

(vii) "Unpaid income tax" means income tax due but not paid by the date the income tax is required to be paid under applicable law.

(viii) "Unpaid withholding tax" means withholding tax due but not paid by the date the withholding tax is required to be paid under applicable law.

(ix) "Withholding tax" includes amounts an employer, any agent of an employer, or any other payer did not withhold in whole or in part from an employee's qualifying wages, but that, under applicable law, the employer, agent, or other payer is required to withhold from an employee's qualifying wages.

(b) (i) This section shall apply to the following:

(1) Any return required to be filed under applicable law for taxable years beginning on or after January 1, 2016; and

(2) Income tax, estimated income tax, and withholding tax required to be paid or remitted to the Municipality on or after January 1, 2016 for taxable years beginning on or after January 1, 2016.

(ii) This section does not apply to returns required to be filed or payments required to be made before January 1, 2016, regardless of the filing or payment date. Returns required to be filed or payments required to be made before January 1, 2016, but filed or paid after that date shall be subject to the provisions of Section 311-73 of this chapter.

(c) A taxpayer, employer, any agent of the employer, and any other payer who fails for any reason, in whole or in part, to make timely and full payment or remittance of income tax, estimated income tax, or withholding tax due to the Municipality or to file timely with the Municipality any return required to be filed shall be liable for interest and penalties as set forth in this section.

(i) Interest shall be imposed at the rate defined as "interest rate as described in subsection (a) of this section," per annum, on all unpaid income tax, unpaid estimated income tax, and unpaid withholding tax. This imposition of interest shall be assessed per month, or fraction of a month.

(ii) With respect to unpaid income tax and unpaid estimated income tax, a penalty equal to fifteen percent of the amount not timely paid shall be imposed.

(iii) With respect to any unpaid withholding tax, a penalty not exceeding fifty percent of the amount not timely paid shall be imposed.

(iv) For tax years ending on or before December 31, 2022, with respect to returns other than estimated income tax returns, the Municipality may impose a penalty of $25 for each failure to timely file each return,

regardless of the liability shown thereon for each month, or any fraction thereof, during which the return remains unfiled regardless of the liability shown thereon.

(v) For tax years ending after December 31, 2022, with respect to returns other than estimated income tax returns, the Municipality may impose a penalty not exceeding $25 for each failure to timely file each return, regardless of the liability shown thereon, except that the Municipality shall abate or refund the penalty assessed on a taxpayer's first failure to timely file a return after the taxpayer files that return.

(d) With respect to income taxes, estimated income taxes, withholding taxes, and returns, the Municipality shall not do either of the following:

(i) Impose, seek to collect, or collect any penalty, amount of interest, charges or additional fees not described in this section; or

(ii) Refund or credit any penalty, amount of interest, charges, or additional fees that were properly imposed or collected before January 1, 2016.

(e) The tax commissioner may, in the tax commissioner's sole discretion, abate or partially abate penalties or interest imposed under this section when the tax commissioner deems such abatement or partial abatement to be appropriate. Such abatement or partial abatement shall be properly documented and maintained on the record of the taxpayer who received benefit of such abatement or partial abatement.

(f) The Municipality's post-judgment collection costs and fees, including attorney's fees, are imposed on and shall be collectible from the taxpayer, employer, any agent of the employer, or any other payer.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016; a. Ord. No. 019-2018, § 1, eff. March 22, 2018; a. Ord. No. 408-2023, § 1, eff. Dec. 6, 2023)

Sec. 311-77. Rounding.

A person may round to the nearest whole dollar all amounts the person is required to enter on any return, report, voucher, or other document required under this chapter. Any fractional part of a dollar that equals or exceeds fifty cents shall be rounded to the next whole dollar, and any fractional part of a dollar that is less than fifty cents ($0.50) shall be dropped, rounding down to the nearest whole dollar. If a person chooses to round amounts entered on a document, the person shall round all amounts entered on the document.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-79. Audit.

(a) At or before the commencement of an audit, as defined in Section 311-9-A3 of this chapter, the tax commissioner shall provide to the taxpayer a written description of the roles of the tax commissioner and of the taxpayer during an audit and a statement of the taxpayer's rights, including any right to obtain a refund of an overpayment of tax. At or before the commencement of an audit, the tax commissioner shall inform the taxpayer when the audit is considered to have commenced.

(b) Except in cases involving suspected criminal activity, the tax commissioner shall conduct an audit of a taxpayer during regular business hours and after providing reasonable notice to the taxpayer. A taxpayer who

is unable to comply with a proposed time for an audit on the grounds that the proposed time would cause inconvenience or hardship must offer reasonable alternative dates for the audit.

(c) At all stages of an audit by the tax commissioner, a taxpayer is entitled to be assisted or represented by an attorney, accountant, bookkeeper, or other tax practitioner, and the taxpayer may designate, on a form prescribed by the tax commissioner, such a person to assist or represent the taxpayer in the conduct of any proceedings resulting from actions by the tax commissioner. If a taxpayer has not submitted such a form, the tax commissioner may accept other evidence, as the tax commissioner considers appropriate, that a person is the authorized representative of a taxpayer.

A taxpayer may refuse to answer any questions asked by the person conducting an audit until the taxpayer has an opportunity to consult with the taxpayer's attorney, accountant, bookkeeper, or other tax practitioner. This division does not authorize the practice of law by a person who is not an attorney.

(d) A taxpayer may record, electronically or otherwise, the audit examination.

(e) The failure of the tax commissioner to comply with a provision of this section shall neither excuse a taxpayer from payment of any taxes owed by the taxpayer nor cure any procedural defect in a taxpayer's case.

(g) If the tax commissioner fails to substantially comply with the provisions of this section, the tax commissioner, upon application by the taxpayer, shall excuse the taxpayer from penalties and interest arising from the audit.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-81. Duty of Taxpayer to Retain Records.

Every taxpayer shall retain all records necessary to compute municipal income tax liability for the following periods unless the tax commissioner, in writing, consents to their destruction within that period, or by order requires that they be kept longer:

(a) For tax years beginning before January 1, 2016, for a period of three (3) years from the date the annual municipal income tax return is filed, or the municipal income taxes required to be withheld are paid; or

(b) For tax years beginning on or after January 1, 2016, for a period of six (6) years following the end of the taxable year to which the records or documents relate.

(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-83. Compromise of Claim and Payment Over Time.

(a) As used in this section, "claim" means a claim for an amount payable to the Municipality that arises pursuant to the municipal income tax imposed in accordance with this chapter.

(b) For municipal income tax liability associated with any tax year beginning prior to January 1, 2016, subject to the consent of the local board of review or pursuant to regulation approved by the city manager, the tax commissioner shall have the power to compromise any liability imposed by this chapter. Rules and regulations adopted by the tax commissioner and approved by the city manager prior to the effective date of any amendment of this chapter shall remain in full force and effect, unless modified in the manner set forth in this section, to the extent that such rules and regulations do not conflict with this chapter, as amended.

(c) For municipal income tax liability associated with any tax year beginning on or after January 1, 2016, the tax commissioner may do either of the following if such action is in the best interests of the Municipality:

(i) Compromise a claim; or

(ii) Extend for a reasonable period the time for payment of a claim by agreeing to accept monthly or other periodic payments, upon such terms and conditions as the tax commissioner may require.

(d) The tax commissioner's rejection of a compromise or payment-over-time agreement proposed by a person with respect to a claim shall not be appealable.

(e) A compromise or payment-over-time agreement with respect to a claim shall be binding upon and shall inure to the benefit of only the parties to the compromise or agreement, and shall not extinguish or otherwise affect the liability of any other person.

(f) (i) A compromise or payment-over-time agreement with respect to a claim shall be void if the taxpayer defaults under the compromise or agreement or if the compromise or agreement was obtained by fraud or by misrepresentation of a material fact. Any amount that was due before the compromise or agreement and that is unpaid shall remain due, and any penalties or interest that would have accrued in the absence of the compromise or agreement shall continue to accrue and be due.

(ii) The tax commissioner shall have sole discretion to determine whether or not penalty, interest, charges or applicable fees will be assessed through the duration of any compromise or payment-over-time agreement.

(g) The tax commissioner may require that the taxpayer provide detailed financial documentation and information, in order to determine whether or not a payment-over-time agreement will be authorized. The taxpayer's failure to provide the necessary and required information by the tax commissioner shall preclude consideration of a payment-over-time agreement.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-85. Duties of Tax Commissioner; Collection; Enforcement; Tax Determination.

(a) It shall be the duty of the tax commissioner to collect and receive the tax imposed by this chapter in the manner prescribed herein, and to keep an accurate record thereof, and to report all monies received.

(b) It shall be the duty of the tax commissioner to enforce payment of income taxes owing the Municipality, to keep accurate records, for a minimum of five (5) years, showing the amount due from each taxpayer required to file a declaration or make any return, including a return of taxes withheld, and to show the dates and amounts of payments thereof. As provided in Ohio Revised Code section 718.01(A)(1), nothing in Ohio Revised Code chapter 718 shall be construed as limiting or removing the ability of the Municipality to administer, audit and enforce the provisions of this chapter.

(c) The tax commissioner is hereby charged with the enforcement of the provisions of this chapter, and is hereby empowered, subject to the approval of the city manager, to adopt and promulgate and to enforce rules and regulations authorized or required by this chapter relating to any matter or thing pertaining to the collection and payments of taxes and the administration and enforcement of the provisions of this chapter, including provisions for the re-examination and correction of returns.

(d) Not less than ten (10) days before the approval by the city manager of any rule or regulation recommended for adoption and promulgation by the tax commissioner, a public hearing shall be held by the city manager or one designated by the city manager. Notice of the time and place of the public hearing and the text of the proposed rule or regulation shall be published in the City Bulletin for two (2) consecutive weeks

within the thirty-day period immediately preceding the public hearing. The city manager, after having conducted or reviewed the substance of the public hearing, shall approve, disapprove or modify the proposed rule or regulation. The rule or regulation shall be promulgated by publication in the City Bulletin within thirty (30) days after its approval by the city manager.

(e) In any case where a taxpayer has failed to file a return or has filed a return that does not show the proper amount of municipal income tax due, the tax commissioner may determine the amount of tax appearing to be due the Municipality from the taxpayer and issue an assessment to such taxpayer, as provided in Section 311-95, showing the amount of tax so determined, together with interest and penalties thereon, if any.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-87. Investigative Powers of Tax Commissioner; Right to Examine.

(a) The tax commissioner, or any authorized agent or employee of the tax commissioner, is authorized to examine the books, papers, records and federal and state income tax returns of any employer, taxpayer, or any other person subject to, or that the tax commissioner believes is subject to, the provisions of this chapter, for the purpose of verifying the accuracy of any return made, or, if no return was filed, to ascertain the tax or withholdings due under this chapter. Every such employer, supposed employer, taxpayer, supposed taxpayer, or other person subject to this section, is hereby directed and required to furnish, upon written request of the tax commissioner or duly authorized agent or employee thereof, the opportunity for making such examinations and investigations as are hereby authorized at a reasonable time and place designated in the request.

(b) The records and other documents of any taxpayer, employer, or other person that is subject to, or that the tax commissioner believes is subject to, the provisions of this chapter shall be open to the tax commissioner's inspection during business hours and shall be preserved for a period of six (6) years following the end of the taxable year to which the records or documents relate, unless the tax commissioner, in writing, consents to their destruction within that period, or by order requires that they be kept longer. The tax commissioner may require any person, by notice served on that person, to keep such records as the tax commissioner determines necessary to show whether or not that person is liable, and the extent of such liability, for the income tax levied by the Municipality or for the withholding of such tax.

(c) The tax commissioner is hereby authorized to order any person that the tax commissioner reasonably believes has knowledge of the facts, whether as a party or witness, to appear at the office of the tax commissioner to examine such person, under oath, concerning any income which was or should have been returned for municipal income taxation, or withheld, or any transaction tending to affect such income, and for this purpose may compel any such person to attend a hearing or examination and to produce any books, papers, records and federal and state income tax returns in such person's possession or control. The person may be assisted or represented by an attorney, accountant, bookkeeper, or other tax practitioner at any such hearing or examination. This division does not authorize the practice of law by a person who is not an attorney.

(d) No person issued written notice by the tax commissioner compelling attendance at a hearing or examination or the produc-

tion of books, papers, records, or federal and state income tax returns under this section shall fail to comply.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-89. Administrative Powers of the Tax Commissioner.

The tax commissioner has the authority to perform all duties and functions necessary and appropriate to implement the provisions of this chapter, including without limitation:

(a) Exercise all powers of an inquisitorial nature as provided by law, including, in addition to the powers set forth in Section 311-87 of this chapter, to issue orders or subpoenas for the production of books, accounts, papers, records, documents, and testimony, to take depositions, to apply to a court for attachment proceedings as for contempt, to approve vouchers for the fees of officers and witnesses, and to administer oaths; provided that the powers set forth in this subsection (a) shall be exercised by the tax commissioner only in connection with the performance of the tax commissioner's duties under this chapter;

(b) Appoint agents and prescribe their powers and duties;

(c) Confer and meet with officers of other municipal corporations and states and officers of the United States on any matters pertaining to their respective official duties as provided by law;

(d) Exercise the authority provided by law, including orders from bankruptcy courts, relative to remitting or refunding taxes, including penalties and interest thereon, illegally or erroneously imposed or collected, or for any other reason overpaid;

(e) Make all tax findings, determinations, computations, assessments and orders the tax commissioner is by law authorized and required to make and, pursuant to time limitations provided by law, on the tax commissioner's own motion, review, redetermine, or correct any tax findings, determinations, computations, assessments or orders the tax commissioner has made, but the tax commissioner shall not review, redetermine, or correct any tax finding, determination, computation, assessment or order which the tax commissioner has made for which an appeal has been filed with the local board of review or other appropriate tribunal, unless such appeal or application is withdrawn by the appellant or applicant, is dismissed, or is otherwise final;

(f) Destroy any or all returns or other tax documents in the manner authorized by law;

(g) Enter into an agreement with a taxpayer to simplify the withholding obligations described in Section 311-23 of this chapter; and

(h) Exercise the authority provided by law to take any action necessary to fulfill the responsibilities and duties of the tax commissioner under this chapter.

(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-91. Fraud.

No person shall knowingly make, present, aid, or assist in the preparation or presentation of a false or fraudulent report, return, schedule, statement, claim, or document

authorized or required by municipal corporation ordinance or state law to be filed with the tax commissioner, or knowingly procure, counsel, or advise the preparation or presentation of such report, return, schedule, statement, claim, or document, or knowingly change, alter, or amend, or knowingly procure, counsel or advise such change, alteration, or amendment of the records upon which such report, return, schedule, statement, claim, or document is based with intent to defraud the Municipality or the tax commissioner.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-93. Opinion of the Tax Commissioner.

(a) An "opinion of the tax commissioner" means an opinion issued under this section with respect to prospective municipal income tax liability. It does not include ordinary correspondence of the tax commissioner.

(b) A taxpayer may submit a written request for an opinion of the tax commissioner as to whether or how certain income, source of income, or a certain activity or transaction will be taxed. The written response of the tax commissioner shall be an "opinion of the tax commissioner" and shall bind the tax commissioner, in accordance with subsections (c) and (g) of this section, provided all of the following conditions are satisfied:

(i) The taxpayer's request fully and accurately describes the specific facts or circumstances relevant to a determination of the taxability of the income, source of income, activity, or transaction, and, if an activity or transaction, all parties involved in the activity or transaction are clearly identified by name, location, or other pertinent facts;

(ii) The request relates to a tax imposed by the Municipality in accordance with this chapter; and

(iii) The tax commissioner's response is signed by the tax commissioner and designated as an "opinion of the tax commissioner."

(c) An opinion of the tax commissioner shall remain in effect and shall protect the taxpayer for whom the opinion was prepared and who reasonably relies on it from liability for any taxes, penalty, or interest otherwise chargeable on the activity or transaction specifically held by the tax commissioner's opinion to be taxable in a particular manner or not to be subject to taxation for any taxable years that may be specified in the opinion, or until the earliest of the following dates:

(i) The effective date of a written revocation by the tax commissioner sent to the taxpayer by certified mail, return receipt requested. The effective date of the revocation shall be the taxpayer's date of receipt or one year after the issuance of the opinion, whichever is later;

(ii) The effective date of any amendment or enactment of a relevant section of the Ohio Revised Code, uncodified state law, or the Municipality's income tax ordinance that would substantially change the analysis and conclusion of the opinion of the tax commissioner;

(iii) The date on which a court issues an opinion establishing or changing relevant case law with respect to the Ohio Revised Code, uncodified state law, or the Municipality's income tax ordinance;

(iv) If the opinion of the tax commissioner was based on the interpretation of federal law, the effective date of any change in the relevant federal

statutes or regulations, or the date on which a court issues an opinion establishing or changing relevant case law with respect to federal statutes or regulations;

(v) The effective date of any change in the taxpayer's material facts or circumstances; or

(vi) The effective date of the expiration of the opinion, if specified in the opinion.

(d) (i) A taxpayer is not relieved of tax liability for any activity or transaction related to a request for an opinion that contained any misrepresentation or omission of one or more material facts.

(ii) If the taxpayer knowingly has misrepresented the pertinent facts or omitted material facts with intent to defraud the Municipality in order to obtain a more favorable opinion, the taxpayer may be in violation of Section 311-91 of this chapter.

(e) If the tax commissioner provides written advice under this section, the opinion shall include a statement that:

(i) The tax consequences stated in the opinion may be subject to change for any of the reasons stated in subsection (c) of this section; and

(ii) It is the duty of the taxpayer to be aware of such changes.

(f) The tax commissioner may refuse to offer an opinion on any request received under this section.

(g) An opinion of the tax commissioner binds the tax commissioner only with respect to the taxpayer for whom the opinion was prepared and does not bind the tax administrator of any other municipal corporation.

(h) The tax commissioner shall make available the text of all opinions issued under this section, except those opinions prepared for a taxpayer who has requested that the text of the opinion remain confidential. In no event shall the text of an opinion be made available until the tax commissioner has removed all information that identifies the taxpayer and any other parties involved in the activity or transaction.

(i) An opinion of the tax commissioner issued under this section or a refusal to offer an opinion under subsection (f) of this section may not be appealed.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-95. Assessment; Appeal Based on Presumption of Delivery.

(a) (i) The tax commissioner shall serve an assessment either by personal service, by certified mail, or by a delivery service authorized under section 5703.056 of the Ohio Revised Code.

(ii) The tax commissioner may deliver the assessment through alternative means as provided in this section, including, but not limited to, delivery by secure electronic mail. Such alternative delivery method must be authorized by the person subject to the assessment.

(iii) Once service of the assessment has been made by the tax commissioner or the tax commissioner's designee, the person to whom the assessment is directed may protest the ruling of that assessment by filing an appeal with the local board of review within sixty (60) days after the receipt of service. The delivery of an assessment of the tax commissioner as prescribed in Section 718.18 of the

Revised Code is prima facie evidence that delivery is complete and that the assessment is served.

(b) (i) A person may challenge the presumption of delivery and service as set forth in Ohio Revised Code section 718.18.

(ii) If a person elects to appeal an assessment on the basis described in subsection (b)(i) of this section, and if that assessment is subject to collection and is not otherwise appealable, the person must do so within sixty (60) days after the initial contact by the tax commissioner or other municipal official, or the designee of either, with the person. Nothing in this subsection prevents the tax commissioner or other official from entering into a compromise with the person if the person does not actually file such an appeal with the local board of review.

(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-97. Local Board of Review; Appeal.

(a) (i) A local board of review shall be maintained to hear appeals as provided in Ohio Revised Code Chapter 718.

(ii) The local board of review shall consist of three (3) members. Two (2) members shall be appointed by city council and may not be employees, elected officials, or contractors with the Municipality at any time during their term or in the five (5) years immediately preceding the date of appointment. One member shall be appointed by the city manager. This member may be an employee of the Municipality, but may not be the director of finance or equivalent officer, or the tax commissioner or other similar official, or an employee directly involved in municipal tax matters, or any direct subordinate thereof.

(iii) The term for members of the local board of review appointed by the city council shall be two (2) years. There is no limit on the number of terms that a member may serve should the member be reappointed by city council. The board member appointed by the city manager shall serve at the discretion of the city manager.

(iv) Members of the board of tax review appointed by city council may be removed by city council as set forth in Section 718.11(A)(4) of the Revised Code.

(v) A member of the board who, for any reason, ceases to meet the qualifications for the position prescribed by this section shall resign immediately by operation of law.

(vi) A vacancy in an unexpired term shall be filled in the same manner as the original appointment within sixty (60) days of when the vacancy was created. Any member appointed to fill a vacancy occurring prior to the expiration of the term for which the member's predecessor was appointed shall hold office for the remainder of such term. No vacancy on the board shall impair the power and authority of the remaining members to exercise all the powers of the board.

(vii) If a member is temporarily unable to serve on the board due to a conflict of interest, illness, absence, or similar reason, city council or the city manager, whichever appointed the member, shall appoint another individual to temporarily serve on the board in the member's place. This appointment shall be subject to

the same requirements and limitations as are applicable to the appointment of the member temporarily unable to serve.

(viii) No member of the board shall receive compensation, fee, or reimbursement of expenses for service on the board.

(ix) A member of the board shall not be appointed to or serve on another such municipal board simultaneously.

(b) A majority of the members of the board of shall constitute a quorum. The board shall adopt its own written procedural rules and shall keep a record of its transactions. Such records are not public records available for inspection under section 149.43 of the Ohio Revised Code and shall be maintained in a secure location under the control of the tax commissioner. No member of the board may remove such documentation, copies of returns or reports, final determinations, or working papers from the hearing. Hearings requested by a taxpayer before the local board of review created pursuant to this section are not meetings of a public body subject to section 121.22 of the Ohio Revised Code. Only parties to the case may be present during the hearing.

(c) Whenever the tax commissioner issues an assessment, the tax commissioner shall notify the taxpayer in writing at the same time of the taxpayer's right to appeal the assessment, the manner in which the taxpayer may appeal the assessment, and the address to which the appeal should be directed, and to whom the appeal should be directed.

(d) Any person who has been issued an assessment may appeal the assessment to the local board of review by filing a request with the board. The request shall be in writing, shall state with particularity why the assessment should be deemed incorrect or unlawful, and shall be filed within sixty (60) days after the taxpayer receives the assessment.

(e) The local board of review shall schedule a hearing to be held within sixty (60) days after receiving an appeal of an assessment under subsection (c) of this section, unless the taxpayer requests additional time to prepare or waives a hearing. If the taxpayer does not waive the hearing, the taxpayer may appear before the board and/or may be represented by an attorney at law, certified public accountant, or other representative as provided by law. The board may allow a hearing to be continued as jointly agreed to by the parties. In such a case, the hearing must be completed within one hundred twenty (120) days after the first (1st) day of the hearing unless the parties agree otherwise.

(f) The board may affirm, reverse, or modify the tax commissioner's assessment or any part of that assessment. The board shall issue a final decision on the appeal within ninety (90) days after the board's final hearing on the appeal, and send a copy of its final decision by ordinary mail to all of the parties to the appeal within fifteen (15) days after issuing the decision. The taxpayer or the tax commissioner may appeal the board's decision as provided in section 5717.011 of the Ohio Revised Code.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-99. Civil Limitations Periods; Collection of Unpaid Taxes.

(a) All taxes imposed by this chapter shall be collectible, together with any interest and penalties thereon, by a civil action at law. All additional assessments shall be made and all civil actions to recover municipal income taxes and penalties and interest on municipal income taxes shall be brought

within three (3) years after the tax was due or the return was filed, whichever is later; or

(i) Within six (6) years in the case of any of the following:

(1) A municipal income tax return that omits gross income in excess of twenty-five percent (25%) of that required to be reported;

(2) Filing a false or fraudulent municipal income tax return with intent to evade the tax; or

(3) Failure to file a municipal income tax return; or

(ii) For tax years beginning on or after January 1, 2016, within one (1) year after the conclusion of the qualifying deferral period, if any.

(b) As used in this section, "qualifying deferral period" means a period of time beginning and ending as follows:

(i) Beginning on the date a person who is aggrieved by an assessment files with the local board of review the request described in Section 311-97 of this chapter. That date shall not be affected by any subsequent decision, finding, or holding by any administrative body or court that the local board of review with which the aggrieved person filed the request did not have jurisdiction to affirm, reverse, or modify the assessment or any part of that assessment; and

(ii) Ending the later of the sixtieth (60^{th}) day after the date on which the final determination of the local board of review becomes final or, if any party appeals from the determination of the local board of review, the sixtieth (60^{th}) day after the date on which the final determination of the local board of review is either ultimately affirmed in whole or in part or ultimately reversed and no further appeal is available or taken.

(c) In those cases in which the Commissioner of Internal Revenue and the taxpayer have executed a waiver of the federal statute of limitations, the period within which an additional assessment may be made by the tax commissioner shall be extended one (1) year from the time of the final determination of the federal tax liability.

(d) The time limit described in subsection (a) of this section may be extended at any time if both the tax commissioner and the employer, agent of the employer, other payer, or taxpayer consent in writing to the extension. Any extension shall also extend for the same period of time the time limit described in subsection (e) of this section.

(e) A claim for a refund of municipal income taxes shall be brought within the time limitation provided in Section 311-71 of this chapter.

(f) (i) Notwithstanding the fact that an appeal is pending, the petitioner may pay all or a portion of the assessment that is the subject of the appeal. The acceptance of a payment by the Municipality does not prejudice any claim for refund upon final determination of the appeal.

(ii) If upon final determination of the appeal an error in the assessment is corrected by the tax commissioner, there shall be issued to the appellant or to the appellant's assigns or legal representative a refund in the amount of the overpayment as provided by Section 311-71 of this chapter, with interest on that amount as provided by subsection (d) of Section 311-71.

(g) No civil action to recover municipal income tax or related penalties or interest shall be brought during either of the following time periods:

(i) The period during which a taxpayer has a right to appeal the imposition of that tax or interest or those penalties; or

(ii) The period during which an appeal related to the imposition of that tax or interest or those penalties is pending.

(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-101. Confidentiality.

(a) Any information gained as a result of returns, investigations, hearings, or verifications required or authorized by Chapter 718 of the Ohio Revised Code or by the charter or ordinance of the Municipality is confidential, and no person shall access or disclose such information except in accordance with a proper judicial order or in connection with the performance of that person's official duties or the official business of the Municipality as authorized by Chapter 718 of the Ohio Revised Code or the charter or ordinance authorizing the levy. The tax commissioner or a designee thereof may furnish copies of returns filed or otherwise received under this chapter and other related tax information to the Internal Revenue Service, the State Tax Commissioner, and tax administrators of other municipal corporations.

(b) This section does not prohibit the Municipality from publishing or disclosing statistics in a form that does not disclose information with respect to particular taxpayers.

(c) In addition to the penalties provided by Section 311-999, any employee of the Municipality who violates the provisions of this section relative to the disclosure of confidential information shall be guilty of an offense punishable by immediate dismissal, and any member of the local board of review who violates the provisions of this section shall be subject to removal from the local board of review.

(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-103. Adoption of Rules.

(a) Pursuant to Section 718.30 of the Revised Code, the Municipality, pursuant to this Chapter, grants authority to the tax commissioner, subject to the approval of the city manager, to adopt and promulgate rules and regulations authorized or required by this chapter relating to any matter or thing pertaining to the collection and payment of taxes and the administration and enforcement of the provisions of this chapter, including provisions for the re-examination and correction of returns.

(b) Not less than ten days before the approval by the city manager of any rule or regulation recommended for adoption and promulgation by the tax commissioner, a public hearing shall be held by the city manager or one designated by the city manager. Notice of the time and place of the public hearing and the text of the proposed rule or regulation shall be published in the Municipal Bulletin for two consecutive weeks within the thirty-day period immediately preceding the public hearing. The city manager, after having conducted or reviewed the substance of the public hearing, shall approve, disapprove or modify the proposed rule or regulation. The rule or regulation shall be promulgated by publication in the City Bulletin within thirty days after its approval by the city manager.

(c) All rules adopted under this section shall be published and posted on the internet

(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-105. Collection After Termination of Chapter.

(a) This chapter shall continue in full force and effect insofar as the levy of taxes is concerned until repealed, and insofar as the collection of taxes levied hereunder and actions and proceedings for collecting any tax so levied or enforcing any provisions of this chapter are concerned, it shall continue in full force and effect until all of the taxes levied in the aforesaid period are fully paid and any and all suits and prosecutions for the collection of taxes or for the punishment of violations of this chapter have been fully terminated, subject to the limitations contained in Section 311-99 and subsection (h) of Section 311-999.

(b) Annual returns due for all or any part of the last effective year of this chapter shall be due on the date provided in Section 311-51 as though the same were continuing.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-107. Savings Clause.

This chapter shall not apply to any person or to any property as to whom or which it is beyond the power of council to impose the tax herein provided for. If any sentence, clause, section, or part of this chapter, or any tax against or exception granted any person or form of income specified herein is found to be unconstitutional or illegal or invalid, such unconstitutionality, illegality, or invalidity shall affect only such clause, sentence, section, or part of this chapter and shall not affect or impair any of the remaining provisions, sentences, clauses, sections or other parts of this chapter. It is hereby declared to be the intention of Council of the City of Cincinnati that this chapter would have been adopted had such unconstitutional, illegal, or invalid sentence, clause, section, or part thereof not been included therein.

This chapter 311, as ordained by Ordinance 363-2015 adopted by City Council on December 2, 2015, and as applied to tax years beginning prior to January 1, 2016, is intended to and shall be construed as including, for the information and convenience of taxpayers and tax professionals, a restatement of the provisions of Chapter 311 in effect prior to the adoption of Ordinance 363-2015. As to such tax years beginning prior to January 1, 2016, to the extent any conflict exists between Chapter 311, as ordained by Ordinance 363-2015, and the preceding version of Chapter 311 in effect during the tax year in question, the provisions of Chapter 311 as it existed in the tax year in question shall control.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-109. Public Hearings on Modifications to This Chapter.

Not less than seven (7) days before the adoption by the city council of any ordinance adopting, amending or repealing any provision of this chapter, a public hearing shall be held by the council or a committee of the council designated by the council. Notice of the time and place of the public hearing and the text of the proposed modification to this chapter shall be published in the City Bulletin for two (2) consecutive weeks within the thirty-day period immediately preceding the public hearing. The council, after having conducted or reviewed the substance of the public hearing, may adopt, amend or repeal any provision of this chapter.

In the event that any provision of this chapter is modified by operation of law or is declared to be unconstitutional, the modification of the provisions of this chapter to conform to the requirements of law or judicial

decision shall not be subject to the public hearing requirement set forth in this section.
(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Sec. 311-180. Filing Net Profit Taxes; Election to be Subject to Provisions of Sections 311-180 to 311-195.

(A) A taxpayer may elect to be subject to Sections 311-180 to 311-195 of this Chapter 311 of the Cincinnati Municipal Code in lieu of the provisions set forth in the remainder of this chapter. Notwithstanding any other provision of this chapter, upon the taxpayer's election, both of the following shall apply:

(1) The state tax commissioner shall serve as the sole administrator of the municipal net profit tax for which the taxpayer as defined in Section 311-181(C) of this chapter is liable for the term of the election;

(2) The state tax commissioner shall administer the tax pursuant to Sections 718.80 to 718.95 of the Revised Code, Sections 311-180 to 311-195 of this Chapter 311 of the Cincinnati Municipal Code, and any applicable provision of Chapter 5703 of the Revised Code.

(B) (1) A taxpayer shall make the initial election on or before the first day of the third month after the beginning of the taxpayer's taxable year by notifying the tax commissioner and the City, on a form prescribed by the tax commissioner.

(2) (a) The election, once made by the taxpayer, applies to the taxable year in which the election is made and to each subsequent taxable year until the taxpayer notifies the tax commissioner and the City of its termination of the election.

(b) A notification of termination shall be made, on a form prescribed by the tax commissioner, on or before the first day of the third month of any taxable year.

(c) Upon a timely and valid termination of the election, the taxpayer is no longer subject to Sections 311-180 to 311-195 of this chapter, and is instead subject to the provisions set forth in the remainder of this chapter.

(C) The tax commissioner shall enforce and administer Sections 311-180 to 311-195 of this chapter. In addition to any other powers conferred upon the tax commissioner by law, the tax commissioner may:

(1) Prescribe all forms necessary to administer those sections;

(2) Adopt such rules as the tax commissioner finds necessary to carry out those sections;

(3) Appoint and employ such personnel as are necessary to carry out the duties imposed upon the tax commissioner by those sections.

(D) The tax commissioner shall not be considered a tax administrator, as that term is defined in Section 718.01 of the Revised Code and Section 311-9-T1 of this Chapter 311 of the Cincinnati Municipal Code.
(Ordained by Ord. No. 019-2018, § 3, eff. March 22, 2018)

Sec. 311-181. Definitions Applicable to Sections 311-180 to 311-195.

If a term used in Sections 311-180 to 311-195 of this chapter that is not otherwise defined in this chapter is used in a comparable

context in both the laws of the United States relating to federal income tax and in Title LVII of the Revised Code and the use is not consistent, then the use of the term in the laws of the United States relating to federal income tax shall have control over the use of the term in Title LVII of the Revised Code, unless the term is defined in Chapter 5703 of the Revised Code, in which case the definition in that chapter shall control. Any reference in this chapter to the Internal Revenue Code includes other laws of the United States related to federal income taxes. If a term is defined in both this section and any of the other definition sections in this chapter, found in Sections 311-9 and following, the definition in this section shall control for all uses of that term in Sections 311-180 to 311-195 of this chapter.

As used in Sections 311-180 to 311-195 of this chapter only:

(A) "Municipal taxable income" means income apportioned or situsedto the municipal corporation under Section 311-182 of this chapter, as applicable, reduced by any pre-2017 net operating loss carryforward available to the person for the municipal corporation.

(B) "Adjusted federal taxable income," for a person required to file as a C corporation, or for a person that has elected to be taxed as a C corporation as described in division (D)(5) of Section 718.01 of the Revised Code and in Section 311-9-A1 of the Cincinnati Municipal Code, means a C corporation's federal taxable income before net operating losses and special deductions as determined under the Internal Revenue Code, adjusted as follows:

(1) Deduct intangible income to the extent included in federal taxable income. The deduction shall be allowed regardless of whether the intangible income relates to assets used in a trade or business or assets held for the production of income.

(2) Add an amount equal to five percent of intangible income deducted under subsection (B)(1) of this section, but excluding that portion of intangible income directly related to the sale, exchange, or other disposition of property described in Section 1221 of the Internal Revenue Code.

(3) Add any losses allowed as a deduction in the computation of federal taxable income if the losses directly relate to the sale, exchange, or other disposition of an asset described in Section 1221 or 1231 of the Internal Revenue Code.

(4) (a) Except as provided in subsection (B)(4)(b) of this section, deduct income and gain included in federal taxable income to the extent the income and gain directly relate to the sale, exchange, or other disposition of an asset described in Section 1221 or 1231 of the Internal Revenue Code.

(b) Subsection (B)(4)(a) of this section does not apply to the extent the income or gain is income or gain described in Section 1245 or 1250 of the Internal Revenue Code.

(5) Add taxes on or measured by net income allowed as a deduction in the computation of federal taxable income.

(6) In the case of a real estate investment trust or regulated investment company, add all amounts with respect to dividends to, distributions to, or amounts set aside for or credited to the benefit of investors and allowed as a deduction in the computation of federal taxable income.

(7) Deduct, to the extent not otherwise deducted or excluded in computing federal taxable income, any income derived from a transfer agreement or from the enterprise transferred under that agreement under Section 4313.02 of the Revised Code.

(8) Deduct exempt income to the extent not otherwise deducted or excluded in computing adjusted federal taxable income.

(9) Deduct any net profit of a pass-through entity owned directly or indirectly by the taxpayer and included in the taxpayer's federal taxable income unless an affiliated group of corporations includes that net profit in the group's federal taxable income in accordance with subsection (E)(3)(b) of Section 311-186 of this chapter.

(10) Add any loss incurred by a pass-through entity owned directly or indirectly by the taxpayer and included in the taxpayer's federal taxable income unless an affiliated group of corporations includes that loss in the group's federal taxable income in accordance with subsection (E)(3)(b) of Section 311-186 of this chapter.

If the taxpayer is not a C corporation, is not a disregarded entity that has made the election described in subsection (b) of Section 311-9-T6 of this chapter, and is not a publicly traded partnership that has made the election described in subsection (d) of Section 311-9-N2 of this chapter, the taxpayer shall compute adjusted federal taxable income under this section as if the taxpayer were a C corporation, except guaranteed payments and other similar amounts paid or accrued to a partner, former partner, shareholder, former shareholder, member, or former member shall not be allowed as a deductible expense unless such payments are in consideration for the use of capital and treated as payment of interest under Section 469 of the Internal Revenue Code or United States treasury regulations. Amounts paid or accrued to a qualified self-employed retirement plan with respect to a partner, former partner, shareholder, former shareholder, member, or former member of the taxpayer, amounts paid or accrued to or for health insurance for a partner, former partner, shareholder, former shareholder, member, or former member, and amounts paid or accrued to or for life insurance for a partner, former partner, shareholder, former shareholder, member, or former member shall not be allowed as a deduction.

Nothing in subsection (B) of this section shall be construed as allowing the taxpayer to add or deduct any amount more than once or shall be construed as allowing any taxpayer to deduct any amount paid to or accrued for purposes of federal self-employment tax.

(C) "Taxpayer" has the same meaning as in Section 311-9-T6 of this chapter,

except that "taxpayer" does not include natural persons or entities subject to the tax imposed under Chapter 5745 of the Revised Code. "Taxpayer" may include receivers, assignees, or trustees in bankruptcy when such persons are required to assume the role of a taxpayer.

(D) "Tax return" or "return" means the notifications and reports required to be filed pursuant to Sections 311-180 to 311-195 of this chapter for the purpose of reporting municipal income taxes, and includes declarations of estimated tax.

(E) "Taxable year" means the calendar year or the taxpayer's fiscal year ending during the calendar year, or fractional part thereof, upon which the calculation of the taxpayer's adjusted federal taxable income is based pursuant to this chapter. If a taxpayer's taxable year is changed for federal income tax purposes, the taxable year for purposes of Sections 311-180 to 311-195 of this chapter is changed accordingly but may consist of an aggregation of more than one taxable year for federal income tax purposes. The tax commissioner may prescribe by rule an appropriate period as the taxable year for a taxpayer that has had a change of its taxable year for federal income tax purposes, for a taxpayer that has two or more short taxable years for federal income tax purposes as the result of a change of ownership, or for a new taxpayer that would otherwise have no taxable year.

(F) "Assessment" means a notice of underpayment or nonpayment of a tax issued pursuant to Section 311-190 of this chapter.

(G) "Tax commissioner" or "commissioner" refers to the state tax commissioner rather than the municipal tax commissioner, and provisions relating to actions of the City's income tax division will refer to the "City," the "municipal tax commissioner," or the "tax administrator," as appropriate.

(Ordained by Ord. No. 019-2018, § 3, eff. March 22, 2018)

Sec. 311-182. Applicability, Taxable Situs, and Apportionment For Taxpayers Electing To Be Subject to Sections 311-180 to 311-195.

This section applies to any taxpayer that is engaged in a business or profession in the City and that has made the election under Section 311-180 of this chapter.

(A) Except as otherwise provided in subsection (B) of this section, net profit from a business or profession conducted both within and without the boundaries of the City shall be considered as having a taxable situs in the City for purposes of municipal income taxation in the same proportion as the average ratio of the following:

(1) The average original cost of the real property and tangible personal property owned or used by the taxpayer in the business or profession in the City during the taxable period to the average original cost of all of the real and tangible personal property owned or used by the taxpayer in the business or profession during the same period, wherever situated. As used in this subsection (A)(1), "tangible personal property" or "real property" shall include property rented or leased by the

taxpayer and the value of such property shall be determined by multiplying the annual rental thereon by eight;

(2) Wages, salaries, and other compensation paid during the taxable period to individuals employed in the business or profession for services performed in the City to wages, salaries, and other compensation paid during the same period to individuals employed in the business or profession, wherever the individual's services are performed, excluding compensation from which taxes are not required to be withheld under Section 311-27 of this chapter;

(3) Total gross receipts of the business or profession from sales and rentals made and services performed during the taxable period in the City to total gross receipts of the business or profession during the same period from sales, rentals, and services, wherever made or performed.

(B) (1) If the apportionment factors described in subsection (A) of this section do not fairly represent the extent of a taxpayer's business activity in the City, the taxpayer may request, or the tax commissioner may require, that the taxpayer use, with respect to all or any portion of the income of the taxpayer, an alternative apportionment method involving one or more of the following:

(a) Separate accounting;

(b) The exclusion of one or more of the factors;

(c) The inclusion of one or more additional factors that would provide for a more fair apportionment of the income of the taxpayer to the municipal corporation;

(d) A modification of one or more of the factors.

(2) A taxpayer request to use an alternative apportionment method shall be in writing and shall accompany a tax return, timely filed appeal of an assessment, or timely filed amended tax return. The taxpayer may use the requested alternative method unless the tax commissioner denies the request in an assessment issued within the period prescribed by subsection (A) of Section 311-190 of this chapter.

(3) The tax commissioner may require a taxpayer to use an alternative apportionment method as described in subsection (B)(1) of this section only by issuing an assessment to the taxpayer within the period prescribed by subsection (A) of Section 311-190 of this chapter.

(C) As used in subsection (A)(2) of this section, "wages, salaries, and other compensation" includes only wages, salaries, or other compensation paid to an employee for services performed at any of the following locations:

(1) A location that is owned, controlled, or used by, rented to, or under the possession of one of the following:

(a) The employer;

(b) A vendor, customer, client, or patient of the employer,

or a related member of such a vendor, customer, client, or patient;

(c) A vendor, customer, client, or patient of a person described in subsection (C)(1)(b) of this section, or a related member of such a vendor, customer, client, or patient.

(2) Any location at which a trial, appeal, hearing, investigation, inquiry, review, court-martial, or similar administrative, judicial, or legislative matter or proceeding is being conducted, provided that the compensation is paid for services performed for, or on behalf of, the employer or that the employee's presence at the location directly or indirectly benefits the employer;

(3) Any other location, if the tax commissioner determines that the employer directed the employee to perform the services at the other location in lieu of a location described in subsection (C)(1) or (2) of this section solely in order to avoid or reduce the employer's municipal income tax liability. If the tax commissioner makes such a determination, the employer may dispute the determination by establishing, by a preponderance of the evidence, that the tax commissioner's determination was unreasonable.

(D) For the purposes of subsection (A)(3) of this section, receipts from sales and rentals made and services performed shall be sitused to the City as follows:

(1) Gross receipts from the sale of tangible personal property shall be sitused to the City only if, regardless of where title passes, the property meets either of the following criteria:

(a) The property is shipped to or delivered within the City from a stock of goods located within the City.

(b) The property is delivered within the City from a location outside the City, provided the taxpayer is regularly engaged through its own employees in the solicitation or promotion of sales within the City and the sales result from such solicitation or promotion.

(2) Gross receipts from the sale of services shall be sitused to the City to the extent that such services are performed in the City.

(3) To the extent included in income, gross receipts from the sale of real property located in the City shall be sitused to the City.

(4) To the extent included in income, gross receipts from rents and royalties from real property located in the City shall be sitused to the City.

(5) Gross receipts from rents and royalties from tangible personal property shall be sitused to the City based upon the extent to which the tangible personal property is used in the City.

(E) Commissions received by a real estate agent or broker relating to the sale, purchase, or lease of real estate shall be sitused to the City in which the real estate is located. Net profit reported by the real estate agent or

broker shall be allocated to the City based upon the ratio of the commissions the agent or broker received from the sale, purchase, or lease of real estate located in the City to the commissions received from the sale, purchase, or lease of real estate everywhere in the taxable year.

(F) If, in computing a taxpayer's adjusted federal taxable income, the taxpayer deducted any amount with respect to a stock option granted to an employee, and if the employee is not required to include in the employee's income any such amount or a portion thereof because it is exempted from taxation under subsection (p) of Section 311-15 and subsection (a)(iii) of Section 311-9-Q of this chapter by the City or substantially similar provision of this chapter of another municipal corporation, the taxpayer shall add the amount that is exempt from taxation to the taxpayer's net profit that was apportioned to the City. In no case shall a taxpayer be required to add to its net profit that was apportioned to the City any amount other than the amount upon which the employee would be required to pay tax were the amount related to the stock option not exempted from taxation. This subsection (F) applies solely for the purpose of making an adjustment to the amount of a taxpayer's net profit that was apportioned to the City under this section.

(G) When calculating the ratios described in subsection (A) of this section for the purposes of that subsection or subsection (B) of this section, the owner of a disregarded entity shall include in the owner's ratios the property, payroll, and gross receipts of such disregarded entity.

(Ordained by Ord. No. 019-2018, § 3, eff. March 22, 2018)

Sec. 311-184. Information Provided to Tax Administrators Pursuant to Sections 311-180 to 311-195; Confidentiality.

(A) Any information gained as a result of returns, investigations, hearings, or verifications required or authorized by Sections 311-180 to 311-195 of this chapter is confidential, and no person shall disclose such information, except for official purposes, in accordance with a proper judicial order, or as provided in Section 4123.271 or Section 5703.21 of the Revised Code. The tax commissioner may furnish the internal revenue service with copies of returns filed. This section does not prohibit the publication of statistics in a form which does not disclose information with respect to particular taxpayers.

(B) In May and November of each year, the tax commissioner shall provide the City tax administrator with the following information for every taxpayer that filed tax returns with the commissioner under Sections 311-180 to 311-195 of this chapter and that had municipal taxable income apportionable to the City under this chapter for any prior year:

(1) The taxpayer's name, address, and federal employer identification number;

(2) The taxpayer's apportionment ratio for, and amount of municipal taxable income apportionable to, the City pursuant to Section 311-182 of this chapter;

(3) The amount of any pre-2017 net operating loss carryforward utilized by the taxpayer;

(4) Whether the taxpayer requested that any overpayment be carried forward to a future taxable year;

(5) The amount of any credit claimed under Section 718.94 of the Revised Code.

(C) Not later than thirty days after each distribution made to municipal corporations under Section 718.83 of the Revised Code, the tax commissioner shall provide to the City a report stating the name and federal identification number of every taxpayer that made estimated payments that are attributable to the City and the amount of each such taxpayer's estimated payment.

(D) The information described under subsections (B) and (C) of this section shall be provided to the individual or individuals designated by the City tax administrator under Section 718.83 of the Revised Code.

(E) (1) The tax commissioner may adopt rules that further govern the terms and conditions under which tax returns filed with the commissioner under this chapter, and any other information gained in the performance of the commissioner's duties prescribed by this chapter, shall be available for inspection by properly authorized officers, employees, or agents of the municipal corporations to which the taxpayer's net profit is apportioned under section 718.82 of the Revised Code.

(2) As used in this subsection (E), "properly authorized officer, employee, or agent" means an officer, employee, or agent of a municipal corporation who is authorized by charter or ordinance of the municipal corporation to view or possess information referred to in section 718.13 of the Revised Code.

(F) (1) If, upon receiving the information described in division (B) of section 718.91 of the Revised Code or subsection (B) or (C) of this section, a municipal corporation discovers that it has additional information in its possession that could result in a change to a taxpayer's tax liability, the municipal corporation may refer the taxpayer to the tax commissioner for an audit. Such referral shall be made on a form prescribed by the commissioner and shall include any information that forms the basis for the referral.

(2) Upon receipt of a referral under subsection (F)(1) of this section, the commissioner shall review the referral and may conduct an audit of the taxpayer that is the subject of the referral based on the information in the referral and any other relevant information available to the commissioner.

(3) Nothing in subsection (F) of this section shall be construed as forming the sole basis upon which the commissioner may conduct an audit of a taxpayer.

(4) Nothing in this chapter shall prohibit a municipal corporation from filing a writ of mandamus if the municipal corporation believes that the commissioner has violated the commissioner's fiduciary duty as the administrator of the tax levied by the municipal corporation.

(Ordained by Ord. No. 019-2018, § 3, eff. March 22, 2018)

Sec. 311-185-1. Filing of Annual Return, Remittance, and Disposition of Funds For Taxpayers Electing To Be Subject to Sections 311-180 to 311-195.

(A) (1) For each taxable year, every taxpayer shall file an annual return. Such return, along with the amount of tax shown to be due on the return

less the amount paid for the taxable year under Section 311-188 of this chapter, shall be submitted to the tax commissioner, on a form and in the manner prescribed by the commissioner, on or before the fifteenth day of the fourth month following the end of the taxpayer's taxable year.

(2) If a taxpayer has multiple taxable years ending within one calendar year, the taxpayer shall aggregate the facts and figures necessary to compute the tax due under this chapter, in accordance with Sections 311-181, 311-182, and, if applicable, 311-186 of this chapter onto its annual return.

(3) The remittance shall be made payable to the treasurer of state and in the form prescribed by the tax commissioner. If the amount payable with the tax return is ten dollars or less, no remittance is required.

(B) Omitted.

(C) (1) Each return required to be filed under this section shall contain the signature of the taxpayer or the taxpayer's duly authorized agent and of the person who prepared the return for the taxpayer, and shall include the taxpayer's identification number. Each return shall be verified by a declaration under penalty of perjury.

(2) (a) The tax commissioner may require a taxpayer to include, with each annual tax return, amended return, or request for refund filed with the commissioner under Sections 311-180 to 311-195 of this chapter, copies of any relevant documents or other information.

(b) A taxpayer that files an annual tax return electronically through the Ohio business gateway or in another manner as prescribed by the tax commissioner shall either submit the documents required under this subsection (B) electronically as prescribed at the time of filing or, if electronic submission is not available, mail the documents to the tax commissioner. The department of taxation shall publish a method of electronically submitting the documents required under this subsection on or before January 1, 2019.

(3) After a taxpayer files a tax return, the tax commissioner may request, and the taxpayer shall provide, any information, statements, or documents required to determine and verify the taxpayer's municipal income tax.

(D) (1) (a) Any taxpayer that has duly requested an automatic extension for filing the taxpayer's federal income tax return shall automatically receive an extension for the filing of a tax return with the commissioner under this section. The extended due date of the return shall be the fifteenth day of the tenth month after the last day of the taxable year to which the return relates.

(b) A taxpayer that has not requested or received a six-month extension for filing the taxpayer's federal income tax return may request that the commissioner grant the taxpayer a six-month extension of the date for filing the taxpayer's municipal income tax return. If the commissioner receives the request on or before the date the municipal income

tax return is due, the commissioner shall grant the taxpayer's extension request.

(c) An extension of time to file under subsection (D)(1) of this section is not an extension of the time to pay any tax due unless the tax commissioner grants an extension of that date.

(2) If the commissioner considers it necessary in order to ensure payment of a tax imposed in accordance with Section 311-1 of this chapter, the commissioner may require taxpayers to file returns and make payments otherwise than as provided in this section, including taxpayers not otherwise required to file annual returns.

(E) Each return required to be filed in accordance with this section shall include a box that the taxpayer may check to authorize another person, including a tax return preparer who prepared the return, to communicate with the tax commissioner about matters pertaining to the return. The return or instructions accompanying the return shall indicate that by checking the box the taxpayer authorizes the commissioner to contact the preparer or other person concerning questions that arise during the examination or other review of the return and authorizes the preparer or other person only to provide the commissioner with information that is missing from the return, to contact the commissioner for information about the examination or other review of the return or the status of the taxpayer's refund or payments, and to respond to notices about mathematical errors, offsets, or return preparation that the taxpayer has received from the commissioner and has shown to the preparer or other person.

(F) When income tax returns or other documents require the signature of a tax return preparer, the tax commissioner shall accept a facsimile or electronic version of such a signature in lieu of a manual signature. (Ordained by Ord. No. 019-2018, § 3, eff. March 22, 2018)

Sec. 311-185-2. Electronic Filing For Taxpayers Electing To Be Subject to Sections 311-180 to 311-195.

(A) All taxpayers that have made the election allowed under Section 311-180 of this chapter shall file any tax return or extension for filing a tax return, and shall make payment of amounts shown to be due on such returns, electronically, either through the Ohio business gateway or in another manner as prescribed by the tax commissioner.

(B) A taxpayer may apply to the commissioner, on a form prescribed by the commissioner, to be excused from the requirement to file returns and make payments electronically. For good cause shown, the commissioner may excuse the applicant from the requirement and permit the applicant to file the returns or make the payments by nonelectronic means.

(C) The tax commissioner may adopt rules establishing the following:

(1) The format of documents to be used by taxpayers to file returns and make payments by electronic means;

(2) The information taxpayers must submit when filing tax returns by electronic means.

(Ordained by Ord. No. 019-2018, § 3, eff. March 22, 2018)

Sec. 311-186. Consolidated Returns For Taxpayers Electing To Be Subject to Sections 311-180 to 311-195.

(A) As used in this section:

(1) "Affiliated group of corporations" means an affiliated group as defined in Section 1504 of the Internal Revenue Code, except that, if such a group includes at least one incumbent local exchange carrier that is primarily engaged in the business of providing local exchange telephone service in this state, the affiliated group shall not include any incumbent local exchange carrier that would otherwise be included in the group.

(2) "Consolidated federal income tax return" means a consolidated return filed for federal income tax purposes pursuant to Section 1501 of the Internal Revenue Code.

(3) "Consolidated federal taxable income" means the consolidated taxable income of an affiliated group of corporations, as computed for the purposes of filing a consolidated federal income tax return, before consideration of net operating losses or special deductions. "Consolidated federal taxable income" does not include income or loss of an incumbent local exchange carrier that is excluded from the affiliated group under subsection (A)(1) of this section.

(4) "Incumbent local exchange carrier" has the same meaning as in Section 4927.01 of the Revised Code.

(5) "Local exchange telephone service" has the same meaning as in Section 5727.01 of the Revised Code.

(B) (1) A taxpayer that is a member of an affiliated group of corporations may elect to file a consolidated tax return for a taxable year if at least one member of the affiliated group of corporations is subject to municipal income tax in that taxable year and if the affiliated group of corporations filed a consolidated federal income tax return with respect to that taxable year. The election is binding for a five-year period beginning with the first taxable year of the initial election unless a change in the reporting method is required under federal law. The election continues to be binding for each subsequent five-year period unless the taxpayer elects to discontinue filing consolidated tax returns under subsection (B)(2) of this section or a taxpayer receives permission from the tax commissioner. The tax commissioner shall approve such a request for good cause shown.

(2) An election to discontinue filing consolidated tax returns under this section must be made on or before the fifteenth day of the fourth month of the year following the last year of a five-year consolidated tax return election period in effect under subsection (B)(1) of this section. The election to discontinue filing a consolidated tax return is binding for a five-year period beginning with the first taxable year of the election.

(3) An election made under subsection (B)(1) or (2) of this section is binding on all members of the affiliated group of corporations subject to a municipal income tax.

(4) When a taxpayer makes the election allowed under Section 311-180 of this chapter, a valid election made by the taxpayer under subsection (B)(1) or (2) of Section 311-67 of this chapter is

binding upon the tax commissioner for the remainder of the five-year period.

(5) When an election made under Section 311-180 of this chapter is terminated, a valid election made under this section is binding upon the tax administrator for the remainder of the five-year period.

(C) A taxpayer that is a member of an affiliated group of corporations that filed a consolidated federal income tax return for a taxable year shall file a consolidated tax return for that taxable year if the tax commissioner determines, by a preponderance of the evidence, that intercompany transactions have not been conducted at arm's length and that there has been a distortive shifting of income or expenses with regard to allocation of net profits to a municipal corporation. A taxpayer that is required to file a consolidated tax return for a taxable year shall file a consolidated tax return for all subsequent taxable years unless the taxpayer requests and receives written permission from the commissioner to file a separate return or a taxpayer has experienced a change in circumstances.

(D) A taxpayer shall prepare a consolidated tax return in the same manner as is required under the United States department of treasury regulations that prescribe procedures for the preparation of the consolidated federal income tax return required to be filed by the common parent of the affiliated group of which the taxpayer is a member.

(E) (1) Except as otherwise provided in subsections (E)(2), (3), and (4) of this section, corporations that file a consolidated tax return shall compute adjusted federal taxable income, as defined in Section 311-181 of this chapter, by substituting "consolidated federal taxable income" for "federal taxable income" wherever "federal taxable income" appears in that section and by substituting "an affiliated group of corporations" for "a C corporation" wherever "a C corporation" appears in that section.

(2) No corporation filing a consolidated tax return shall make any adjustment otherwise required under subsection (B) of Section 311-181 of this chapter to the extent that the item of income or deduction otherwise subject to the adjustment has been eliminated or consolidated in the computation of consolidated federal taxable income.

(3) If the net profit or loss of a pass-through entity having at least eighty percent of the value of its ownership interest owned or controlled, directly or indirectly, by an affiliated group of corporations is included in that affiliated group's consolidated federal taxable income for a taxable year, the corporation filing a consolidated tax return shall do one of the following with respect to that pass-through entity's net profit or loss for that taxable year:

(a) Exclude the pass-through entity's net profit or loss from the consolidated federal taxable income of the affiliated group and, for the purpose of making the computations required in Section 311-182 of this chapter, exclude the property, payroll, and gross receipts of the pass-through entity in the computation of the affiliated group's net profit situsted to a municipal corporation. If the entity's net profit or loss is so excluded, the entity shall be subject to taxation as a separate taxpayer on the basis

of the entity's net profits that would otherwise be included in the consolidated federal taxable income of the affiliated group.

(b) Include the pass-through entity's net profit or loss in the consolidated federal taxable income of the affiliated group and, for the purpose of making the computations required in Section 311-182 of this chapter, include the property, payroll, and gross receipts of the pass-through entity in the computation of the affiliated group's net profit situsued to a municipal corporation. If the entity's net profit or loss is so included, the entity shall not be subject to taxation as a separate taxpayer on the basis of the entity's net profits that are included in the consolidated federal taxable income of the affiliated group.

(4) If the net profit or loss of a pass-through entity having less than eighty percent of the value of its ownership interest owned or controlled, directly or indirectly, by an affiliated group of corporations is included in that affiliated group's consolidated federal taxable income for a taxable year, all of the following shall apply:

(a) The corporation filing the consolidated tax return shall exclude the pass-through entity's net profit or loss from the consolidated federal taxable income of the affiliated group and, for the purposes of making the computations required in Section 311-182 of this chapter, exclude the property, payroll, and gross receipts of the pass-through entity in the computation of the affiliated group's net profit situsued to a municipal corporation;

(b) The pass-through entity shall be subject to municipal income taxation as a separate taxpayer in accordance with Sections 311-180 to 311-195 of this chapter on the basis of the entity's net profits that would otherwise be included in the consolidated federal taxable income of the affiliated group.

(F) Corporations filing a consolidated tax return shall make the computations required under Section 311-182 of this chapter by substituting "consolidated federal taxable income attributable to" for "net profit from" wherever "net profit from" appears in that section and by substituting "affiliated group of corporations" for "taxpayer" wherever "taxpayer" appears in that section.

(G) Each corporation filing a consolidated tax return is jointly and severally liable for any tax, interest, penalties, fines, charges, or other amounts applicable under Section 311-180 to 311-195 of this chapter or Chapter 5703 of the Revised Code to the corporation, an affiliated group of which the corporation is a member for any portion of the taxable year, or any one or more members of such an affiliated group.
(Ordained by Ord. No. 019-2018, § 3, eff. March 22, 2018)

Sec. 311-187. Failure to Pay Tax Required Under Sections 311-180 to 311-195.

If a taxpayer that has made the election allowed under 311-180 of this chapter fails to pay any tax as required under Sections 311-180 to 311-195 of this chapter, or any portion of that tax, on or before the date prescribed for its payment, interest shall be

assessed, collected, and paid, in the same manner as the tax, upon such unpaid amount at the rate per annum prescribed by Section 5703.47 of the Revised Code from the date prescribed for its payment until it is paid or until the date an assessment is issued under Section 311-190 of this chapter, whichever occurs first.
(Ordained by Ord. No. 019-2018, § 3, eff. March 22, 2018)

Sec. 311-188. Declaration of Estimated Taxes for Tax Liability Under Sections 311-180 to 311-195.

(A) As used in this section:

(1) "Combined tax liability" means the total amount of a taxpayer's income tax liabilities to all municipal corporations in this state for a taxable year.

(2) "Estimated taxes" means the amount that the taxpayer reasonably estimates to be the taxpayer's combined tax liability for the current taxable year.

(B) (1) Except as provided in subsection (B)(4) of this section, every taxpayer shall make a declaration of estimated taxes for the current taxable year, on the form prescribed by the tax commissioner, if the amount payable as estimated taxes is at least two hundred dollars.

(2) Except as provided in subsection (B)(4) of this section, a taxpayer having a taxable year of less than twelve months shall make a declaration under rules prescribed by the commissioner.

(3) The declaration of estimated taxes shall be filed on or before the fifteenth day of the fourth month after the beginning of the taxable year or on or before the fifteenth day of the fourth month after the taxpayer becomes subject to tax for the first time.

(4) The tax commissioner may waive the requirement for filing a declaration of estimated taxes for any class of taxpayers after finding that the waiver is reasonable and proper in view of administrative costs and other factors.

(C) Each taxpayer shall file the declaration of estimated taxes with, and remit estimated taxes to, the tax commissioner at the times and in the amounts prescribed in subsection (C)(1) of this section. Remitted taxes shall be made payable to the treasurer of state.

(1) The required portion of the combined tax liability for the taxable year that shall be paid through estimated taxes shall be as follows:

(a) On or before the fifteenth day of the fourth month after the beginning of the taxable year, twenty-two and one-half percent of the combined tax liability for the taxable year;

(b) On or before the fifteenth day of the sixth month after the beginning of the taxable year, forty-five percent of the combined tax liability for the taxable year;

(c) On or before the fifteenth day of the ninth month after the beginning of the taxable year, sixty-seven and one-half percent of the combined tax liability for the taxable year;

(d) On or before the fifteenth day of the twelfth month of the taxable year, ninety percent of the combined tax liability for the taxable year.

(2) If the taxpayer determines that its declaration of estimated taxes will not accurately reflect the taxpayer's tax liability for the taxable year, the taxpayer shall increase or decrease, as appropriate, its subsequent payments in equal installments to result in a more accurate payment of estimated taxes.

(3) (a) Each taxpayer shall report on the declaration of estimated taxes the portion of the remittance that the taxpayer estimates that it owes to each municipal corporation for the taxable year.

(b) Upon receiving a payment of estimated taxes under this section, the commissioner shall immediately forward the payment to the treasurer of state. The treasurer shall credit the payment in the same manner as in division (B) of Section 718.85 of the Revised Code.

(D) (1) In the case of any underpayment of estimated taxes, there shall be added to the taxes an amount determined at the rate per annum prescribed by Section 5703.47 of the Revised Code upon the amount of underpayment for the period of underpayment, unless the underpayment is due to reasonable cause as described in subsection (E) of this section. The amount of the underpayment shall be determined as follows:

(a) For the first payment of estimated taxes each year, twenty-two and one-half percent of the combined tax liability, less the amount of taxes paid by the date prescribed for that payment;

(b) For the second payment of estimated taxes each year, forty-five percent of the combined tax liability, less the amount of taxes paid by the date prescribed for that payment;

(c) For the third payment of estimated taxes each year, sixty-seven and one-half percent of the combined tax liability, less the amount of taxes paid by the date prescribed for that payment;

(d) For the fourth payment of estimated taxes each year, ninety percent of the combined tax liability, less the amount of taxes paid by the date prescribed for that payment.

(2) The period of the underpayment shall run from the day the estimated payment was required to be made to the date on which the payment is made. For purposes of this section, a payment of estimated taxes on or before any payment date shall be considered a payment of any previous underpayment only to the extent the payment of estimated taxes exceeds the amount of the payment presently due.

(3) All amounts collected under this section shall be considered as taxes collected under Sections 311-180 to 311-195 of this chapter of the Cincinnati Municipal Code and shall be credited and distributed to municipal corporations in accordance with Section 718.83 of the Revised Code.

(E) An underpayment of any portion of a combined tax liability shall be due to reasonable cause and the penalty imposed by this section shall not be added to the taxes for the taxable year if any of the following apply:

(1) The amount of estimated taxes that were paid equals at least ninety

percent of the combined tax liability for the current taxable year, determined by annualizing the income received during the year up to the end of the month immediately preceding the month in which the payment is due.

(2) The amount of estimated taxes that were paid equals at least one hundred percent of the tax liability shown on the return of the taxpayer for the preceding taxable year, provided that the immediately preceding taxable year reflected a period of twelve months and the taxpayer filed a municipal income tax return for that year.

(Ordained by Ord. No. 019-2018, § 3, eff. March 22, 2018)

Sec. 311-189. Additional Penalties for Violations of Sections 311-180 to 311-95.

(A) In addition to any other penalty imposed by Sections 311-180 to 311-195 of this chapter or by Chapter 5703 of the Revised Code, the following penalties shall apply:

(1) If a taxpayer required to file a tax return under Sections 311-180 to 311-195 of this chapter fails to make and file the return within the time prescribed, including any extensions of time granted by the tax commissioner, the commissioner may impose a penalty not exceeding twenty-five dollars per month or fraction of a month, for each month or fraction of a month elapsing between the due date, including extensions of the due date, and the date on which the return is filed. The aggregate penalty, per instance, under this subsection (A)(1) shall not exceed one hundred fifty dollars.

(2) If a person required to file a tax return electronically under Sections 311-180 to 311-195 of this chapter fails to do so, the commissioner may impose a penalty not to exceed the following:

(a) For each of the first two failures, five percent of the amount required to be reported on the return;

(b) For the third and any subsequent failure, ten percent of the amount required to be reported on the return.

(3) If a taxpayer that has made the election allowed under Section 311-180 of this chapter fails to timely pay an amount of tax required to be paid under this chapter, the commissioner may impose a penalty equal to fifteen percent of the amount not timely paid.

(4) If a taxpayer files what purports to be a tax return required by Sections 311-180 to 311-195 of this chapter that does not contain information upon which the substantial correctness of the return may be judged or contains information that on its face indicates that the return is substantially incorrect, and the filing of the return in that manner is due to a position that is frivolous or a desire that is apparent from the return to delay or impede the administration of Sections 311-180 to 311-195 of this chapter, a penalty of up to five hundred dollars may be imposed.

(5) If a taxpayer makes a fraudulent attempt to evade the reporting or payment of the tax required to be shown on any return required under Sections 311-180 to 311-195 of this chapter, a penalty may be imposed

not exceeding the greater of one thousand dollars or one hundred percent of the tax required to be shown on the return.

(6) If any person makes a false or fraudulent claim for a refund under Section 311-191 of this chapter, a penalty may be imposed not exceeding the greater of one thousand dollars or one hundred percent of the claim. Any penalty imposed under this subsection (A)(6), any refund issued on the claim, and interest on any refund from the date of the refund, may be assessed under Section 311-190 of this chapter without regard to any time limitation for the assessment imposed by subsection (A) of that section.

(B) For purposes of this section, the tax required to be shown on a tax return shall be reduced by the amount of any part of the tax paid on or before the date, including any extensions of the date, prescribed for filing the return.

(C) Each penalty imposed under this section shall be in addition to any other penalty imposed under this section. All or part of any penalty imposed under this section may be abated by the tax commissioner. The commissioner may adopt rules governing the imposition and abatement of such penalties.

(D) All amounts collected under this section shall be considered as taxes collected under Sections 311-180 to 311-195 of this chapter and shall be credited and distributed to municipal corporations in the same proportion as the underlying tax liability is required to be distributed to such municipal corporations under Section 718.83 of the Revised Code.
(Ordained by Ord. No. 019-2018, § 3, eff. March 22, 2018)

Sec. 311-190. Assessments Against Taxpayers Required to File a Return Under Sections 311-180 to 311-195.

(A) If any taxpayer required to file a return under Sections 311-180 to 311-195 of this chapter fails to file the return within the time prescribed, files an incorrect return, or fails to remit the full amount of the tax due for the period covered by the return, the tax commissioner may make an assessment against the taxpayer for any deficiency for the period for which the return or tax is due, based upon any information in the commissioner's possession. The tax commissioner shall not make or issue an assessment against a taxpayer more than three years after the later of the date the return subject to assessment was required to be filed or the date the return was filed. Such time limit may be extended if both the taxpayer and the commissioner consent in writing to the extension. Any such extension shall extend the three-year time limit in Section 311-191 of this chapter for the same period of time. There shall be no bar or limit to an assessment against a taxpayer that fails to file a return subject to assessment as required by Sections 311-180 to 311-195 of this chapter, or that files a fraudulent return. The commissioner shall give the taxpayer assessed written notice of the assessment as provided in Section 5703.37 of the Revised Code. With the notice, the commissioner shall provide instructions on how to petition for reassessment and request a hearing on the petition.

(B) Unless the taxpayer assessed files with the tax commissioner within sixty days after service of the notice of assessment, either personally or by certified mail, a written petition for reassessment signed by the authorized agent of the taxpayer assessed having knowledge of the facts, the assessment becomes final, and the amount of the

assessment is due and payable from the taxpayer to the treasurer of state. The petition shall indicate the taxpayer's objections, but additional objections may be raised in writing if received by the commissioner prior to the date shown on the final determination. If the petition has been properly filed, the commissioner shall proceed under Section 5703.60 of the Revised Code.

(C) After an assessment becomes final, if any portion of the assessment remains unpaid, including accrued interest, a certified copy of the tax commissioner's entry making the assessment final may be filed in the office of the clerk of the court of common pleas in the county in which the taxpayer has an office or place of business in this state, the county in which the taxpayer's statutory agent is located, or Franklin county. Immediately upon the filing of the entry, the clerk shall enter a judgment against the taxpayer assessed in the amount shown on the entry. The judgment may be filed by the clerk in a loose-leaf book entitled "special judgments for municipal income taxes," and shall have the same effect as other judgments. Execution shall issue upon the judgment upon the request of the tax commissioner, and all laws applicable to sales on execution shall apply to sales made under the judgment. If the assessment is not paid in its entirety within sixty days after the day the assessment was issued, the portion of the assessment consisting of tax due shall bear interest at the rate per annum prescribed by Section 5703.47 of the Revised Code from the day the commissioner issues the assessment until the assessment is paid or until it is certified to the attorney general for collection under Section 131.02 of the Revised Code, whichever comes first. If the unpaid portion of the assessment is certified to the attorney general for collection, the entire unpaid portion of the assessment shall bear interest at the rate per annum prescribed by Section 5703.47 of the Revised Code from the date of certification until the date it is paid in its entirety. Interest shall be paid in the same manner as the tax and may be collected by issuing an assessment under this section.

(D) All money collected under this section shall be credited to the municipal income tax fund and distributed to the municipal corporation to which the money is owed based on the assessment issued under this section.

(E) If the tax commissioner believes that collection of the tax will be jeopardized unless proceedings to collect or secure collection of the tax are instituted without delay, the commissioner may issue a jeopardy assessment against the taxpayer liable for the tax. Immediately upon the issuance of the jeopardy assessment, the commissioner shall file an entry with the clerk of the court of common pleas in the manner prescribed by subsection (C) of this section. Notice of the jeopardy assessment shall be served on the taxpayer assessed or the taxpayer's legal representative in the manner provided in Section 5703.37 of the Revised Code within five days of the filing of the entry with the clerk. The total amount assessed is immediately due and payable, unless the taxpayer assessed files a petition for reassessment in accordance with subsection (B) of this section and provides security in a form satisfactory to the commissioner and in an amount sufficient to satisfy the unpaid balance of the assessment. Full or partial payment of the assessment does not prejudice the commissioner's consideration of the petition for reassessment.

(F) Notwithstanding the fact that a petition for reassessment is pending, the taxpayer may pay all or a portion of the assessment that is the subject of the petition. The acceptance of a payment by the treasurer of state does not prejudice any claim for refund upon final determination of the petition. If

upon final determination of the petition an error in the assessment is corrected by the tax commissioner, upon petition so filed or pursuant to a decision of the board of tax appeals or any court to which the determination or decision has been appealed, so that the amount due from the taxpayer under the corrected assessment is less than the portion paid, there shall be issued to the taxpayer, its assigns, or legal representative a refund in the amount of the overpayment as provided by Section 311-191 of this chapter, with interest on that amount as provided by that section.
(Ordained by Ord. No. 019-2018, § 3, eff. March 22, 2018)

Sec. 311-191. Refund Applications For Payments Made Pursuant to Sections 311-180 to 311-195.

(A) An application to refund to a taxpayer the amount of taxes paid on any illegal, erroneous, or excessive payment of tax under Sections 311-180 to 311-195 of this chapter, including assessments, shall be filed with the tax commissioner within three years after the date of the illegal, erroneous, or excessive payment of the tax, or within any additional period allowed by subsection (A) of Section 311-190 of this chapter. The application shall be filed in the form prescribed by the tax commissioner.

(B) (1) On the filing of a refund application, the tax commissioner shall determine the amount of refund to which the applicant is entitled. The amount determined shall be based on the amount overpaid per return or assessment. If the amount is greater than ten dollars and not less than that claimed, the commissioner shall certify that amount to the director of budget and management and the treasurer of state for payment from the tax refund fund created in Section 5703.052 of the Revised Code. If the amount is greater than ten dollars but less than that claimed, the commissioner shall proceed in accordance with Section 5703.70 of the Revised Code.

(2) Upon issuance of a refund under this section, the commissioner shall notify each municipal corporation of the amount refunded to the taxpayer attributable to that municipal corporation, which shall be deducted from the municipal corporation's next distribution under Section 718.83 of the Revised Code.

(C) Any portion of a refund determined under subsection (B) of this section that is not issued within ninety days after such determination shall bear interest at the rate per annum prescribed by Section 5703.47 of the Revised Code from the ninety-first day after such determination until the day the refund is paid or credited. On an illegal or erroneous assessment, interest shall be paid at that rate from the date of payment on the illegal or erroneous assessment until the day the refund is paid or credited.
(Ordained by Ord. No. 019-2018, § 3, eff. March 22, 2018)

Sec. 311-192. Amended Returns For Taxpayers Electing To Be Subject to Sections 311-180 to 311-195.

(A) If any of the facts, figures, computations, or attachments required in an annual return filed by a taxpayer that has made the election allowed under Section 311-180 of this chapter and used to determine the tax due under Sections 311-180 to 311-195 of this chapter must be altered as the result of an adjustment to the taxpayer's federal income tax return, whether initiated by the taxpayer or the internal revenue service,

and such alteration affects the taxpayer's tax liability under those sections, the taxpayer shall file an amended return with the tax commissioner in such form as the commissioner requires. The amended return shall be filed not later than sixty days after the adjustment is agreed upon or finally determined for federal income tax purposes or after any federal income tax deficiency or refund, or the abatement or credit resulting therefrom, has been assessed or paid, whichever occurs first. If a taxpayer intends to file an amended consolidated municipal income tax return, or to amend its type of return from a separate return to a consolidated return, based on the taxpayer's consolidated federal income tax return, the taxpayer shall notify the commissioner before filing the amended return.

(B) In the case of an underpayment, the amended return shall be accompanied by payment of any combined additional tax due together with any penalty and interest thereon. An amended return required by this section is a return subject to assessment under Section 311-190 of this chapter for the purpose of assessing any additional tax due under this section, together with any applicable penalty and interest. The amended return shall not reopen those facts, figures, computations, or attachments from a previously filed return no longer subject to assessment that are not affected, either directly or indirectly, by the adjustment to the taxpayer's federal tax return.

(C) In the case of an overpayment, an application for refund may be filed under this subsection within the sixty-day period prescribed for filing the amended return, even if that period extends beyond the period prescribed in Section 311-191 of this chapter, if the application otherwise conforms to the requirements of that section. An application filed under this subsection shall claim refund of overpayments resulting from alterations to only those facts, figures, computations, or attachments required in the taxpayer's annual return that are affected, either directly or indirectly, by the adjustment to the taxpayer's federal income tax return unless it is also filed within the time prescribed in Section 311-191 of this chapter. The application shall not reopen those facts, figures, computations, or attachments that are not affected, either directly or indirectly, by the adjustment to the taxpayer's federal income tax return.

(Ordained by Ord. No. 019-2018, § 3, eff. March 22, 2018)

Sec. 311-193. Examination of Records and Other Documents and Persons of Any Taxpayer Electing To Be Subject to Sections 311-180 to 311-195.

(A) The tax commissioner, or any authorized agent or employee thereof, may examine the books, papers, records, and federal and state income tax returns of any taxpayer or other person that is subject to Sections 311-180 to 311-195 of this chapter for the purpose of verifying the accuracy of any return made or, if no return was filed, to ascertain the tax due as required under those sections. Upon written request by the commissioner or a duly authorized agent or employee thereof, every taxpayer or other person subject to this section is required to furnish the opportunity for the commissioner, authorized agent, or employee to investigate and examine such books, papers, records, and federal and state income tax returns at a reasonable time and place designated in the request.

(B) The records and other documents of any taxpayer or other person that is subject to Sections 311-180 to 311-195 of this chapter shall be open to the tax commissioner's inspection during business hours and shall

be preserved for a period of six years following the end of the taxable year to which the records or documents relate, unless the commissioner, in writing, consents to their destruction within that period, or by order requires that they be kept longer. The commissioner may require any person, by notice served on that person, to keep such records as the commissioner determines necessary to show whether or not that person is liable, and the extent of such liability, for the income tax levied by a municipal corporation.

(C) The tax commissioner may examine under oath any person that the commissioner reasonably believes has knowledge concerning any income that was or would have been returned for taxation or any transaction tending to affect such income. The commissioner may, for this purpose, compel any such person to attend a hearing or examination and to produce any books, papers, records, and federal income tax returns in such person's possession or control. The person may be assisted or represented by an attorney, accountant, bookkeeper, or other tax practitioner at any such hearing or examination. This subsection does not authorize the practice of law by a person who is not an attorney.

(D) No person issued written notice by the tax commissioner compelling attendance at a hearing or examination or the production of books, papers, records, or federal income tax returns under this section shall fail to comply.

(Ordained by Ord. No. 019-2018, § 3, eff. March 22, 2018)

Sec. 311-194. Credits Available to Taxpayers Electing To Be Subject to Sections 311-180 to 311-195.

(A) A credit, granted by resolution or ordinance of the City pursuant to Section 311-45 of this chapter, shall be available to a taxpayer that has made the election allowed under Section 311-180 of this chapter, against the municipal corporation's tax on income. A municipal corporation shall submit the following information to the tax commissioner on or before the later of January 31, 2018, or the thirty-first day of January of the first year in which the taxpayer is eligible to receive the credit:

(1) A copy of the agreement entered into by the City and taxpayer under Section 311-45 of this chapter;

(2) A copy of the ordinance or resolution authorizing the agreement entered into between the City and the taxpayer.

(B) (1) Each taxpayer that claims a credit shall submit, with the taxpayer's tax return, documentation issued by the City granting the credit that confirms the eligibility of the taxpayer for the credit, the amount of the credit for which the taxpayer is eligible, and the tax year to which the credit is to be applied.

(2) Such documentation shall be provided in the form prescribed by the tax commissioner.

(3) Nothing in this section shall be construed to authorize the tax commissioner to enter into an agreement with a taxpayer to grant a credit, to determine if a taxpayer meets the conditions of a tax credit agreement entered into by the City and taxpayer under Section 311-45 of this chapter, or to modify the terms or conditions of any such existing agreement.

(Ordained by Ord. No. 019-2018, § 3, eff. March 22, 2018)

Sec. 311-195. Reckless Violations of Section 311-184 and Penalties.

(A) Except as provided in subsection (B) of this section, whoever recklessly violates subsection (A) of Section 311-184 of this

chapter shall be guilty of a misdemeanor of the first degree and shall be subject to a fine of not more than one thousand dollars or imprisonment for a term of up to six months, or both.

(B) Each instance of access or disclosure in violation of subsection (A) of Section 311-184 of this chapter constitutes a separate offense.

(C) These specific penalties shall not be construed to prevent the City from prosecuting any and all other offenses that may apply.
(Ordained by Ord. No. 019-2018, § 3, eff. March 22, 2018)

Sec. 311-999. Violations; Criminal Penalties.

(a) Whoever violates any provision of this chapter shall be guilty of a misdemeanor of the first (1^{st}) degree on a first (1^{st}) offense and may be assessed such penalties, including fines and/or imprisonment, as the same are set forth in sections 2929.21 and 2929.31 of the Ohio Revised Code, whichever may be applicable. By way of illustration and not limitation, no person shall:

(1) Fail, neglect or refuse to make any return or declaration required by this chapter; or

(2) Knowingly make an incomplete, false or fraudulent return; or

(3) Willfully fail, neglect or refuse to pay the tax, penalties or interest imposed by this chapter; or

(4) Fail, neglect or refuse to withhold or remit municipal income tax from such person's employees; or

(5) Refuse to permit the tax commissioner or any duly authorized agent or employee to examine the books, records, papers and federal and state income tax returns of such person or such person's employer, or any documentation relating to the income or net profits of a taxpayer; or

(6) Fail to appear before the tax commissioner and to produce the books, records, papers or federal and state income tax returns of such person or person's employer, or any documentation relating to the income or net profits of a taxpayer, upon order or subpoena of the tax commissioner; or

(7) Refuse to disclose to the tax commissioner any information with respect to the income or net profits of such person or, in the case of a person responsible for maintaining information relating to his or her employers' income or net profits, such person's employer; or

(8) Fail to comply with the provisions of this chapter or any order or subpoena of the tax commissioner; or

(9) To avoid imposition or collection of municipal income tax, willfully give to an employer or prospective employer false information as to his or her true name, correct social security number and residence address, or willfully fail to promptly notify an employer or a prospective employer of any change in residence address and date thereof; or

(10) Fail, as an employer, agent of an employer, or other payer, to maintain proper records of employees residence addresses, total qualifying wages paid and municipal tax withheld, or to knowingly give the tax commissioner false information; or

(11) Willfully fail, neglect, or refuse to make any payment on the estimated tax for any year or part of any tax year; or

(12) Fail, as president or treasurer of a corporation, to cause the tax withheld from the qualifying wages of the employees of such corporation pursuant to this chapter to be paid to the Municipality in accordance with the provisions of Section 311-23; or

(13) Attempt to do anything whatever to avoid the payment of the whole or any part of the tax, penalties or interest imposed by this chapter.

(b) Any person who discloses information received from the Internal Revenue Service in violation of Internal Revenue Code Sec. 7213(a), 7213A, or 7431 shall be guilty of a felony of the fifth (5^{th}) degree and shall be subject to a fine of not more than five thousand dollars ($5,000) plus the costs of prosecution, or imprisonment for a term not exceeding five (5) years, or both. In addition, the violation is punishable by dismissal from office or discharge from employment, or both.

[(c) Reserved.]

(d) Each instance of access or disclosure in violation of division (a) of Section 311-101 of this chapter constitutes a separate offense.

(e) For purposes of this section, any violation that does not specify a culpable mental state or intent, shall be one of strict liability and no culpable mental state or intent shall be required for a person to be guilty of that violation.

(f) For purposes of this section, the term "person" shall, in addition to the meaning prescribed in Section 311-9-P3 of this chapter, include in the case of an association, pass-through entity, corporation or unincorporated business entity not having any resident owner or officer within the Municipality, any employee or agent of such association, pass-through entity, corporation or unincorporated business entity who has control or supervision over or is charged with the responsibility of filing the municipal income tax returns and making the payments of the municipal income tax as required by this chapter.

(g) The failure of any employer, taxpayer or person to receive or procure a municipal income tax return, declaration or other required form shall not excuse such person from making any information return, return or declaration, from filing such form, or from paying the municipal income tax.

(h) Prosecutions for an offense made punishable under this section or any other provision of this chapter shall be commenced within three (3) years after the commission of the offense, provided that in the case of fraud, failure to file a return, or the omission of 25 percent (25%) or more of income required to be reported, prosecutions may be commenced within six (6) years after commission of the offense.

(i) Pursuant to Sections 801-5, 801-11 and 801-25 of the Cincinnati Municipal Code, the issuing authority of any license or permit may deny issuance of any original license or permit, prohibit subsequent assignment of any license, or revoke any existing license or permit for failure to comply with the provisions of this chapter.

(Ordained by Emer. Ord. No. 363-2015, § 2, eff. Jan. 1, 2016)

Chapter 312

TRANSIENT OCCUPANCY TAX

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Sec. 312-1. Definitions.

For the purpose of this chapter the words and phrases defined in the sections hereunder shall have the meanings therein respectively ascribed to them, unless a different meaning is clearly indicated by the context.
(Sec. 312-1; ordained by Ord. No. 89-1969, eff. Apr. 1, 1969; reordained as C.M.C. 312-1, eff. Jan. 1, 1972)

Sec. 312-1-H. Hotel.

"Hotel" shall mean every establishment kept, used, maintained, advertised or held out to the public to be a place where sleeping accommodations are offered for a consideration to guests, in which five or more rooms are used for the accommodation of such guests, whether such rooms are in one or several structures.
(Sec. 312-1; ordained by Ord. No. 89-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 312-1-H, eff. Jan. 1, 1972)

Sec. 312-1-O. Occupancy.

"Occupancy" shall mean the use or possession, or the right to the use or possession, of any room or rooms or space or portion thereof, in any hotel for dwelling, lodging or sleeping purposes. The use or possession, or right to use or possess, any room or any suite of connecting rooms as office space, banquet or private dining rooms, or exhibit, sample or display space shall not be considered occupancy within the meaning of this definition unless the person exercising occupancy uses or possesses, or has the right to use or possess, all or any portion of such room or suite of rooms for dwelling, lodging or sleeping purposes.
(Sec. 312-1; ordained by Ord. No. 89-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 312-1-O, eff. Jan. 1, 1972)

Sec. 312-1-O1. Operator.

"Operator" shall mean the person who is proprietor of the hotel, whether in the capacity of owner, lessee, mortgagee in possession, licensee, or any other capacity. Where the operator performs his or her functions through a managing agent of any type or character other than an employee, the managing agent shall be deemed an operator for the purposes of this chapter and shall have the same duties and liabilities as the principal. Compliance with the provisions of this chapter by either the principal or the managing agent shall, however, be considered to be compliance by both.
(Sec. 312-1; ordained by Ord. No. 89-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 312-1-O1, eff. Jan. 1, 1972)

Sec. 312-1-P. Person.

"Person" shall mean any individual, firm, partnership, joint venture, association, social club, fraternal organization, joint stock company, corporation, estate, trust, business trust, receiver, trustee, syndicate, or any other group or combination acting as a unit.
(Sec. 312-1; ordained by Ord. No. 89-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 312-1-P, eff. Jan. 1, 1972)

Sec. 312-1-R. Rent.

"Rent" shall mean the consideration received for occupancy valued in money, whether received in money or otherwise, including all receipts, cash, credits, and property or services of any kind or nature, and also any amount for which the occupant is liable for the occupancy without any deduction therefrom whatsoever.
(Sec. 312-1; ordained by Ord. No. 89-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 312-1-R, eff. Jan. 1, 1972)

Sec. 312-1-T. Transient Guest.

"Transient guest" shall mean persons occupying a room or rooms for sleeping accommodations for less than 30 consecutive days.
(Sec. 312-1; ordained by Ord. No. 89-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 312-1-T, eff. Jan. 1, 1972)

Sec. 312-1-T1. Treasurer.

"Treasurer" shall mean the city treasurer of the city of Cincinnati.
(Sec. 312-1; ordained by Ord. No. 89-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 312-1-T1, eff. Jan. 1, 1972)

Sec. 312-3. Rate of Tax.

There is hereby levied a tax of three percent on all rents received by a hotel for lodging furnished to transient guests, which rate shall remain in effect until November 30, 2002. From and after December 1, 2002, the rate shall be four percent. Such tax constitutes a debt owed by the transient guest to the city which is extinguished only by payment to the operator as trustee for the city, or to the city. The transient guest shall pay the tax to the operator of the hotel at the time the rent is paid. If the rent is paid in installments, a proportionate share of the tax shall be paid with each installment. The unpaid tax shall be due upon the transient guest's ceasing to occupy space in the hotel. If for any reason the tax due is not paid to the operator of the hotel, the treasurer may require that such tax shall be paid directly to the treasurer.
(Sec. 312-2; ordained by Ord. No. 89-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 312-3, eff. Jan. 1, 1972; a. Ord. No. 120-1980, eff. Apr. 1, 1980; a. Ord. No. 266-1999, eff. July 16, 1999; a. Ord. No. 482-1999, eff. Dec. 12, 1999; a Ord. No. 41-2002, eff. Feb. 13, 2002; a. Ord. No. 311-2002, eff. Sept. 30, 2002)

Sec. 312-5. Exemptions.

No tax shall be imposed under this chapter:

(a) Upon rents not within the taxing power of the city under the constitution or laws of Ohio or the United States;

(b) Upon rents paid by the state of Ohio or any of its political subdivisions;

(c) Upon rents of 2 dollars a day or less.

No exemption claimed under paragraphs (a), or (b), of this section shall be granted except upon a claim therefor made at the time rent is collected and under penalty of perjury upon a form prescribed by the treasurer. All claims of exemption under paragraph (c) of this section shall be made in the manner prescribed by the treasurer.
(Sec. 312-3; ordained by Ord. No. 89-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 312-5, eff. Jan. 1, 1972)

Sec. 312-7. Tax to be Separately Stated and Charged.

The tax to be collected shall be stated and charged separately from the rent and shown separately on any record thereof, at the time when the occupancy is arranged or contracted and charged for, and upon every evidence of occupancy or any bill or statement or charge made for said occupancy issued or delivered by the operator, and the tax shall be paid by the occupant to the operator as trustee for and on account of the city, and the operator shall be liable for the collection thereof and for the tax.

No operator of a hotel shall advertise or state in any manner, whether directly or indirectly, that the tax or any part thereof will be assumed or absorbed by the operator, or that it will not be added to the rent, or that, if added, any part will be refunded except in the manner hereinafter provided.
(Sec. 312-4; ordained by Ord. No. 89-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 312-7, eff. Jan. 1, 1972)

Sec. 312-9. Registration.

Within 30 days after the effective date of this chapter, or within 30 days after commencing business, whichever is later, each operator of any hotel renting lodging to transient guests shall register said hotel with the trea-

surer and obtain from him a "transient occupancy registration certificate" to be at all times posted in a conspicuous place on the premises. Said certificate shall, among other things, state the following:

(a) The name of the operator;

(b) The address of the hotel;

(c) The date upon which the certificate was issued;

(d) "This transient occupancy registration certificate signifies that the person named on the face hereof has fulfilled the requirements of the transient occupancy tax ordinance by registering with the treasurer for the purpose of collecting from transient guests the transient occupancy tax and remitting said tax to the treasurer. This certificate does not constitute a permit."

(Sec. 312-5; ordained by Ord. No. 89-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 312-9; eff. Jan. 1, 1972)

Sec. 312-11. Reporting and Remitting.

Each operator shall, on or before the last day of the month following the close of each calendar quarter, or at the close of any shorter reporting period which may be established by the treasurer, make a return to the treasurer, on forms provided, of the total rents charged and received and the amount of tax collected for transient occupancies. All claims for exemption from tax filed by occupants with the operator during the reporting period shall be filed with the report. At the time the return is filed, the full amount of the tax collected shall be remitted to the treasurer. The treasurer may establish shorter reporting periods for any certificate holder if determined necessary in order to insure collection of the tax and may require further information in the return if such information is pertinent to the collection of the tax. Returns and payments are due immediately upon cessation of business for any reason. All taxes collected by operators pursuant to this chapter shall be held in trust for the account of the city until payment thereof is made to the treasurer. All returns and payments submitted by each operator shall be treated as confidential by the treasurer and shall not be released except upon order of a court of competent jurisdiction or to an officer or agent of the United States, the state of Ohio, the county of Hamilton, or the city of Cincinnati for official use only.

(Sec. 312-6; ordained by Ord. No. 89-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 312-11, eff. Jan. 1, 1972; a. Ord. No. 337-1979, eff. Aug. 1, 1979)

Sec. 312-13. Penalties and Interest.

(a) *Delinquency.* Any operator who fails to remit any tax imposed by this chapter within the time required shall pay a penalty equal to 10 percent of the amount of the tax, in addition to the tax.

(b) *Fraud.* If the treasurer determines that the non-payment of any remittance due under this ordinance is due to fraud, a penalty equal to 25 percent of the amount of the tax shall be added thereto in addition to the penalties stated in paragraph (a) of this section.

(c) *Interest.* In addition to the previous penalties imposed, any operator who fails to remit any tax imposed by this chapter shall pay interest at the rate of 1 percent per month, or fraction thereof, on the amount of the tax, exclusive of penalties, from the date on which the remittance first became delinquent until paid.

(d) *Penalties During Pendency of Hearing or Appeal.* No penalty provided under the terms of this chapter shall be imposed during the pendency of any hearing provided for in Section 312-15 of this chapter nor during the

pendency of any appeal to the city manager provided for in Section 312-17 of this chapter.

(e) *Abatement of Interest and Penalty.* In cases where a return has been filed in good faith and an assessment has been paid within the time prescribed by the treasurer, the treasurer may abate any charge of penalty or interest or both.

(Sec. 312-7; ordained by Ord. No. 89-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 312-13, eff. Jan. 1, 1972; a. by Ord. No. 60-1974, eff. Mar. 15, 1974)

Sec. 312-15. Failure to Collect and Report Tax, Determination of Tax by City Treasurer.

If any operator shall fail or refuse to collect said tax and to make, within the time provided in this chapter, any report and remittance of said tax or any portion thereof required by this chapter, the treasurer shall proceed in such manner deemed best to obtain facts and information on which to base the estimate of the tax due. Upon procuring facts and information upon which to base the assessment of any tax imposed by this chapter and payable by any operator who has failed or refused to collect the same and to make such report and remittance, the treasurer shall proceed to determine and assess against such operator the tax, interest and penalties provided for by this chapter. In case such determination is made, the treasurer shall give a notice of the amount so assessed by serving it personally or by depositing it in the United States mail, postage prepaid, addressed to the operator so assessed at his last known place of address. Such operator may within 10 days after the serving or mailing of such notice make application in writing to the treasurer for a hearing on the amount assessed. If application by the operator for a hearing is not made within the time prescribed, the tax, interest and penalties, if any, determined by the treasurer shall become final and conclusive and immediately due and payable. If such application is made, the treasurer shall give not less than five days written notice in the manner prescribed herein to the operator to show cause at a time and place fixed in said notice why said amount specified therein should not be fixed for such tax, interest and penalties. At such hearing, the operator may appear and offer evidence why such specified tax, interest and penalties should not be so fixed. After such hearing, the treasurer shall determine the proper tax to be remitted and shall thereafter give written notice to the person in the manner prescribed herein of such determination and the amount of such tax, interest and penalties. The amount determined to be due shall be payable after 15 days unless an appeal is taken as provided in Section 312-17.

(Sec. 312-8; ordained by Ord. No. 89-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 312-15, eff. Jan. 1, 1972; a. Ord. No. 337-1979, eff. Aug. 1, 1979)

Sec. 312-17. Appeal.

Any operator aggrieved by any decision of the treasurer with respect to the amount of such tax, interest and penalties, if any, may appeal to the city manager by filing a notice of appeal with the city manager within 15 days of the serving or mailing of the determination of tax due. The city manager or designee of the city manager shall fix a time and place for hearing such appeal, and shall give notice in writing to such operator at his last known place of address. The findings of the city manager or designee shall be final and conclusive and shall be served upon the appellant in the manner prescribed above for service of notice of hearing. Any amount found to be due shall be immediately due and payable upon the service of notice.

(Sec. 312-9; ordained by Ord. No. 89-1969, eff. Apr. 1, 1969; renumbered to 312-17, eff.

Jan. 1, 1972; a. Ord. No. 487-1974, eff. Dec. 20, 1974; a. Ord. No. 337-1979, eff. Aug. 1, 1979)

Sec. 312-19. Records.

It shall be the duty of every operator liable for the collection and payment to the city of any tax imposed by this ordinance to keep and preserve, for a period of three years, all records as may be necessary to determine the amount of such tax as such operator may have been liable for the collection of and payment to the city, which records the treasurer shall have the right to inspect at all reasonable times.
(Sec. 312-10; ordained by Ord. No. 89-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 312-19, eff. Jan. 1, 1972; a. Ord. No. 337-1979, eff. Aug. 1, 1979)

Sec. 312-21. Refunds.

(a) Whenever the amount of any tax, interest, or penalty has been overpaid or paid more than once or has been erroneously or illegally collected or received by the city under this chapter, it may be refunded as provided in paragraphs (b) and (c) of this section provided a claim in writing therefor, stating under penalty of perjury the specific grounds upon which the claim is founded, is filed with the treasurer within three years of the date of payment. The claim shall be on forms furnished by the treasurer.

(b) An operator may claim a refund or take as credit against taxes collected and remitted the amount overpaid, paid more than once or erroneously or illegally collected or received when it is established in a manner prescribed by the treasurer that the person from whom the tax has been collected was not a transient guest; provided, however, that neither a refund nor a credit shall be allowed unless the amount of the tax so collected has either been refunded to the transient guest or credited to rent subsequently payable by the transient to the operator.

(c) A transient guest may obtain a refund of taxes overpaid or paid more than once or erroneously or illegally collected or received by the city by filing of a claim in the manner provided in paragraph (a) of this section, but only when the tax was paid by the transient guest directly to the treasurer, or when the transient guest having paid the tax to the operator, establishes to the satisfaction of the treasurer that the transient guest has been unable to obtain a refund from the operator who collected the tax.

(d) No refund shall be paid under the provisions of this section unless the claimant establishes a right thereto by written records showing entitlement thereto.
(Sec. 312-11; ordained by Ord. No. 89-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 312-21, eff. Jan. 1, 1972)

Sec. 312-23. Actions to Collect.

Any tax required to be paid by a transient guest under the provisions of this chapter shall be deemed a debt owed by the transient guest to the city. Any such tax collected by an operator which has not been paid to the city shall be deemed a debt owed by the operator to the city. Any person owing money to the city under the provisions of this chapter shall be liable to an action brought in the name of the city of Cincinnati for the recovery of such amount.
(Sec. 312-12; ordained by Ord. No. 89-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 312-23, eff. Jan. 1, 1972)

Sec. 312-25. Moneys Received; Where Credited.

The moneys received under the provisions of this chapter shall be credited to the Convention Center Fund in amounts as directed by the Council.
(Sec. 312-15; ordained by Ord. No. 89-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 312-25, eff. Jan. 1, 1972; a. Ord. No. 37-1996, eff. Mar. 1, 1996; a. Emer. Ord. No. 174-2006, § 4, eff. June 14, 2006)

Sec. 312-27. Separability.

If any section, subsection, subdivision, paragraph, sentence, clause or phrase of this chapter or any part thereof is for any reason held to be unconstitutional, such decision shall not affect the validity of the remaining portions of this chapter or any part thereof. The city council hereby declares that it would have passed each section, subsection, subdivision, paragraph, sentence, clause or phrase thereof, irrespective of the fact that any one or more sections, subsections, subdivisions, paragraphs, sentences, clauses or phrases be declared unconstitutional.
(Sec. 312-14; ordained by Ord. No. 89-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 312-27, eff. Jan. 1, 1972)

Sec. 312-99. Violations; Misdemeanor; Penalties.

No person shall violate any provision of this chapter.

No operator or other person shall fail or refuse to register as required in this chapter or furnish any return required to be made, or fail to refuse to furnish a supplemental return or other data required by the treasurer, or render a false or fraudulent return or claim.

No person required by this chapter to make, render, sign, or verify any report or claim shall make a false or fraudulent report or claim with the intent to defeat or evade the determination of any amount due.

Whoever violates any of the provisions set forth above is guilty of a misdemeanor and shall be fined not more than $500 or imprisoned for a period of not more than six months, or both fined and imprisoned.
(Sec. 312-13; ordained by Ord. No. 89-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 312-99, eff. Jan. 1, 1972)

Chapter 313

OUTDOOR ADVERTISING SIGN EXCISE TAX

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Sec. 313-99. Violations; Misdemeanor; Penalties.

Sec. 313-1. Definitions.

For the purpose of this chapter the words and phrases defined in this section shall have the meanings respectively ascribed to them, unless a different meaning is clearly indicated by the context. Unless given a different meaning herein, all terms defined in Chapter 895 of the Cincinnati Municipal Code shall have the meanings as defined in that chapter.
(Ordained by Emer. Ord. No. 167-2018, § 1, eff. July 1, 2018)

Sec. 313-1-A. Advertiser.

"Advertiser" means any person who pays an advertising host for the installation, placement, or maintenance of, or for a license or other legal right to install, place, or maintain, an advertisement, message, or other content on an outdoor advertising sign.
(Ordained by Emer. Ord. No. 167-2018, § 1, eff. July 1, 2018)

Sec. 313-1-A1. Advertising Host.

"Advertising Host" means any person who owns or controls an outdoor advertising sign, including the person's agent, affiliate, employee, or other representative who acts on the person's behalf or in the interests of the person with regard to an outdoor advertising sign in the city of Cincinnati.
(Ordained by Emer. Ord. No. 167-2018, § 1, eff. July 1, 2018)

Sec. 313-1-D. Daily Interest Rate.

"Daily interest rate" means the annual interest rate specified in section 313-31(b) divided by 360 and rounded to the nearest millionth.
(Ordained by Emer. Ord. No. 167-2018, § 1, eff. July 1, 2018)

Sec. 313-1-G. Gross Receipts.

"Gross receipts" means the total consideration paid, delivered, or promised to be paid by an advertiser to an advertising host for the installation, placement, or maintenance of, or license or other legal right to install, place, or maintain, an advertisement, message, or other content on an outdoor advertising sign.
(Ordained by Emer. Ord. No. 167-2018, § 1, eff. July 1, 2018)

Sec. 313-1-O. Outdoor Advertising Sign.

"Outdoor Advertising Sign" shall mean an outdoor advertising sign as that term is defined in Cincinnati Municipal Code section 895-1-O, "Outdoor Advertising Sign."
(Ordained by Emer. Ord. No. 167-2018, § 1, eff. July 1, 2018; a. Emer. Ord. No. 0380-2020, §§ 1, 2, eff. Nov. 12, 2020)

Sec. 313-1-P. Person.

"Person" means any natural person, partnership, joint venture, joint stock company, corporation, estate, trust, business trust, receiver, administrator, executor, assignee, trustee in bankruptcy, firm, company, association, club, syndicate, society, municipal corporation, the state of Ohio, political subdivision of the state of Ohio, the United States, instrumentality of the United States, or any group or combination acting as a unit, whether mutual, cooperative, fraternal, nonprofit or otherwise.
(Ordained by Emer. Ord. No. 167-2018, § 1, eff. July 1, 2018)

Sec. 313-1-R. Responsible party.

"Responsible party" means any person who is jointly and severally liable with the advertising host for the payment of any tax, interest, or penalties, or the performance of any duty imposed by this chapter.
(Ordained by Emer. Ord. No. 167-2018, § 1, eff. July 1, 2018)

Sec. 313-1-T1. Tax.

"Tax" means the outdoor advertising sign excise tax imposed under section 313-3.
(Ordained by Emer. Ord. No. 167-2018, § 1, eff. July 1, 2018)

Sec. 313-1-T2. Treasurer.

"Treasurer" shall mean the city treasurer of the city of Cincinnati.
(Ordained by Emer. Ord. No. 167-2018, § 1, eff. July 1, 2018)

Sec. 313-3. Outdoor Advertising Sign Tax.

(a) There is hereby levied an excise tax on the privilege of installing, placing, and maintaining outdoor advertising signs in the city of Cincinnati. The tax shall equal the greater of seven percent of the gross receipts generated by or attributable to any outdoor advertising sign located in the city of Cincinnati or the annual minimum amount specified in subsection (b). The tax constitutes a debt owed by the advertising host who owns or controls an outdoor advertising sign, which debt is extinguished only by payment of the tax to the city.

(b) An annual minimum tax is hereby imposed on the privilege of installing, placing, and maintaining outdoor advertising signs in the city of Cincinnati. The annual minimum tax shall be calculated at the following rates per square foot of sign face area of each outdoor advertising sign located in the city of Cincinnati:

(i) $10 per square foot of sign face area for electronic outdoor advertising signs located within 660 feet of the nearest edge of interstate and primary highway system rights-of-way and visible from the main traveled way;

(ii) $5 per square foot of sign face area for non-electronic outdoor advertising signs located within 660 feet of the nearest edge of interstate and primary highway system rights-of-way and visible from the main traveled way; and

(iii) $2 per square foot of sign face area for all other outdoor advertising signs.
(Ordained by Emer. Ord. No. 167-2018, § 1, eff. July 1, 2018)

Sec. 313-5. Exemptions.

(a) The tax shall not apply to the installation, placement, or maintenance of the following outdoor advertising signs:

(i) Those signs that are not offered or made available by an advertising host for use by an advertiser in exchange for rent or other consideration within the applicable tax year, and for which signs the advertising host does not receive, or accrue the right to receive, rent or other consideration from an advertiser in exchange for the use of the sign within the same tax year;

(ii) Those signs exempt from outdoor advertising sign regulations pursuant to Cincinnati Municipal Code section 895-2, "Applicability"; or

(iii) Those signs not exceeding 36 square feet in total sign face area.

(b) No exemption claimed under paragraph (a)(i) of this section shall be granted except upon a claim made, under penalty of perjury, at the time a return is filed pursuant to section 313-11.
(Ordained by Emer. Ord. No. 167-2018, § 1, eff. July 1, 2018; a. Emer. Ord. No. 0380-2020, §§ 1, 2, eff. Nov. 12, 2020)

Sec. 313-7. Repealed.
(Ordained by Emer. Ord. No. 167-2018, § 1, eff. July 1, 2018; r. by Emer. Ord. No. 0380-2020, § 3, eff. Nov. 12, 2020)

Sec. 313-9. Registration.

In addition to the permitting requirements contained in Cincinnati Municipal Code chapter 895, "Outdoor Advertising Signs," each advertising host shall register all outdoor advertising signs under its ownership or control with the treasurer within 30 days after the effective date of this chapter, and each advertising host shall have an ongoing duty to register with the treasurer those outdoor advertising signs that come under its ownership or control within 30 days of assuming ownership or control of an existing outdoor advertising sign or within 30 days of being issued a construction permit for a new outdoor advertising sign, as the case may be.
(Ordained by Emer. Ord. No. 167-2018, § 1, eff. July 1, 2018)

Sec. 313-11. Reporting and Remitting.

(a) Each advertising host shall report the annual minimum tax payment, gross receipts, and total amounts of tax due for those outdoor advertising signs under its ownership or control in the city of Cincinnati upon return forms furnished by the treasurer and in the manner herein provided.

(b) On or before the 15th day of each quarter in a calendar year, each advertising host shall submit a return and remit one quarter of the annual minimum tax imposed under section 313-3(b) to the treasurer for the quarter preceding the month in which the return is made, which return shall report the amount of tax due from the advertising host for the foregoing quarter and other information that the treasurer may require to ensure accurate calculation and collection of the tax.

(c) On or before the 30th day of each April, each advertising host shall submit a return and remit the tax imposed under section 313-3(a) to the treasurer for the calendar year preceding the year in which the return is made, which return shall report the gross receipts received for transactions during the year for which the return is made, the amount of quarterly payments made pursuant to subsection (b), the amount of tax due from the advertising host for that year, and other information that the treasurer may require to ensure accurate calculation and collection of the tax.

(d) At the time a return is filed, the advertising host shall remit to the treasurer the taxes shown as due on the return for the period for which the return is made.

(e) An advertising host shall file a return and remit all accrued tax immediately upon cessation of business for any reason.

(f) All tax owed by advertising hosts pursuant to this chapter shall be held in trust for the account of the city until payment thereof is made to the treasurer.

(g) It shall be the duty of every advertising host liable for the payment to the city of the tax imposed by this chapter to keep and preserve, for a period of six years, all records as may be necessary to determine the amount of the tax for which the advertising host may have been liable to the city.
(Ordained by Emer. Ord. No. 167-2018, § 1, eff. July 1, 2018)

Sec. 313-13. Responsible Parties.

(a) Where an advertising host performs its functions through an agent of any type or character other than an employee, the agent shall also be deemed an advertising host for purposes of this chapter and shall have the same duties and liabilities as its principal. Where the agent collects or receives gross receipts on behalf of its principal, the principal shall be jointly responsible for reporting and remitting the tax to the city. Compliance

with the provisions of this chapter by either the principal or the agent shall be compliance by both.

(b) Joint and Several Liabilities for Tax, Interest, and Penalties.

(i) The advertising host shall be liable for the payment of all taxes imposed under this chapter, including interest and penalties thereon.

(ii) Any fiscal officer of an advertising host who willfully fails to file required returns or make tax payments when due to the treasurer shall be jointly and severally liable with the advertising host for all taxes due under this chapter, including interest and penalties thereon. This personal liability of the fiscal officer shall survive the merger, acquisition, liquidation, bankruptcy, or dissolution of the advertising host.

(iii) Any person who owns or controls an outdoor advertising sign who knowingly permits its outdoor advertising sign to be used by an advertising host in the ordinary course of the advertising host's business shall be jointly and severally liable with the advertising host for all taxes due under this chapter, including interest and penalties thereon. Any amounts due hereunder shall be reduced to a lien on the outdoor advertising sign.

(Ordained by Emer. Ord. No. 167-2018, § 1, eff. July 1, 2018)

Sec. 313-15. Treasurer's Authority.

(a) The treasurer is empowered to adopt, promulgate, and enforce rules and regulations relating to any matter pertaining to the administration and enforcement of the provisions of this chapter, including, but not limited to, provisions relating to transactions and record keeping. Rules and regulations shall be effective upon publication in the City Bulletin or at a later date specified by the treasurer.

(b) The treasurer is empowered to hear requests for rulings on the application of the provisions of this chapter and the rules and regulations promulgated hereunder and to render a decision on the same. The rulings will be at the discretion of the treasurer and binding only with respect to the party requesting the ruling. Any entity may request a ruling upon application and payment of an administrative fee to be prescribed by the treasurer.

(c) The treasurer is empowered to conduct investigations relating to any matter pertaining to the administration and enforcement of the provisions of this chapter.

(d) The treasurer is empowered to compel the production of books, papers, records and other information and the attendance of all persons before him or her, whether as parties or witnesses, whenever he or she believes such persons have knowledge pertinent to any inquiry of any tax paid, charged, collected or received or required to have been charged, collected or received. The treasurer is empowered to examine any person appearing before him or her under oath, concerning any transaction which was or should have been reported for any purpose under this chapter or any activity or occurrence tending to affect the tax levied under this chapter. All costs of production shall be borne by the respondent.

(e) Access to Records.

(i) An advertising host or suspected advertising host shall provide the treasurer or his or her designated agent access to all records and evidence at all reasonable times and shall provide verification or authentication of the same, as the treasurer may require.

(ii) An advertising host or suspected advertising host is required to provide to the treasurer or his or her designated agent the means, facilities and opportunity to conduct any examination or investigation upon reasonable notice.

(iii) The treasurer and his or her designated agent are authorized to examine the books, bank statements, deposit slips, third-party statements, papers, and other records of any advertising host or suspected advertising host in order to verify the accuracy of any return made, or, if no return has been made, to determine compliance with this chapter and any tax due hereunder.

(f) No authority granted to the treasurer by any other provision of this chapter shall be limited by virtue of not being included in this section.

(g) Upon good cause, the treasurer may waive penalties otherwise owing under this chapter for an advertising host or advertiser's failure to pay amounts due.
(Ordained by Emer. Ord. No. 167-2018, § 1, eff. July 1, 2018)

Sec. 313-17. Assessment of Tax.

(a) The treasurer shall determine and assess all deficiencies of tax, interest, and penalties due from any advertising host or responsible party charged with liability for such amounts under this chapter.

(b) The treasurer may use all available information in determining an assessment. Information derived from a limited period of time or volume may be used to estimate data for a larger period of time or volume. The information used in estimations may be derived from sources relating to the advertising host being assessed or one or more other advertising hosts. The lack of admissibility under any applicable rules of evidence shall not bar such use of information in the determination of an assessment.

(c) The treasurer shall serve notice on the person being assessed, communicating his or her determination and assessment and shall include a demand for all taxes, interest, and penalties that are due and unpaid. The assessment by the treasurer shall become final upon the expiration of 30 days from the date notice is mailed to the person, unless prior thereto the person files a protest in accordance with subsection (a) of section 310-23.

(d) The treasurer may concurrently assess any persons who have, by reason of an act or omission or by operation of law, become liable for the payment of any taxes, interest, or penalties which were not originally incurred by that person. The amount of recovery from such persons shall be limited to the total deficiency due.

(e) Penalties and interest shall accrue from the date the taxes assessed should have been paid in accordance with this chapter. A protest or appeal of the treasurer's assessment shall not toll the application and accrual of penalties and interest.
(Ordained by Emer. Ord. No. 167-2018, § 1, eff. July 1, 2018)

Sec. 313-19. Enforcement.

(a) Upon an assessment becoming final and after the expiration of time for all proper appeals, the city solicitor shall, by request of the treasurer on behalf of the city, bring or cause to be brought an action to enforce the payment of the assessment in any court of competent jurisdiction against any party liable for payment.

(b) All final assessments no longer subject to appeal shall be collectible as any other debts owed to the city.

(c) Revocation of License.

(i) Upon an assessment becoming final and after the expiration of time for all proper appeals, the treasurer may, at his or her discretion, revoke any license granted under the Cincinnati Municipal Code to an advertising host responsible for payment of such assessment upon seven days' notice to the license holder.

(ii) Licenses subject to revocation shall include outdoor advertising sign permits granted under chapter 895 of the Cincinnati Municipal Code.

(d) A final assessment no longer subject to appeal may be reduced to a lien on all real or personal property of the taxpayer or other responsible party.

(e) Any credit, refund, or other money due to be paid by the city or any division thereof to a person who is liable for the payment of a final assessment shall be offset by such liability and paid to the treasurer in satisfaction of the same.

(f) Enforcement Not Limited.

(i) No authority granted to the treasurer or any other officer of the city by any other provision of the Cincinnati Municipal Code shall be limited by virtue of not being included in this section.

(ii) Remedies available to the treasurer for the enforcement of this chapter shall not be limited by virtue of not being included in this section.

(iii) The exercise of one form of remedy by the treasurer shall not preclude the concurrent or successive use of another remedy.

(Ordained by Emer. Ord. No. 167-2018, § 1, eff. July 1, 2018)

Sec. 313-21. Refund of Tax.

(a) An advertising host or responsible party claiming a refund must file a claim with the treasurer on forms provided by the treasurer for that purpose. No refund shall be allowed for any amount paid by any advertising host or responsible party unless the person bore the burden of the amount and did not shift the burden to another person.

(b) A claimant may file a claim for refund for any amount of tax, interest or penalty paid by the claimant in relation to any reporting period ending within the previous three years from the date of filing a claim, provided such amount was paid through a mistake of fact or an error of law other than an error resulting from the tax, any of its provisions, or its application, being declared invalid or unconstitutional.

(c) A claim for refund shall be stated by reporting period and include amended returns for each such period along with an explanation supporting the amended position and amount claimed for refund.

(d) Where a claim for refund is properly filed, the treasurer shall examine the same and determine the amount of refund due, if any. Before issuing a determination, the treasurer may request additional information or conduct any investigation necessary in ascertaining the validity of the claim. After a determination has been made, the treasurer shall issue a notice of determination, granting a full or partial refund, or denying the claim. The determination by the treasurer shall become final upon the expiration of 30 days from the date notice is mailed to the claimant, unless prior thereto the claimant files a protest in accordance with subsection (a) of section 313-23.

(e) Any refund granted under this section shall be without interest and offset by any other indebtedness of the claimant to the city.
(Ordained by Emer. Ord. No. 167-2018, § 1, eff. July 1, 2018)

Sec. 313-23. Appeals.

(a) Protest and Hearing.

(i) A person served with a notice of deficiency or determination may file a written protest with the treasurer and request a hearing on the same. Upon receipt of a protest made within 30 days of mailing a notice of deficiency or determination to the petitioner, the treasurer shall fix the time and place for a hearing and shall notify the petitioner thereof, giving notice to the petitioner of not less than seven days. The treasurer shall hear evidence and testimony presented by the petitioner and may amend, vacate, or affirm the original decision.

(ii) At any hearing held as provided under this section, the determination and assessment by the treasurer shall be prima facie correct and the burden shall be on the petitioner to prove otherwise.

(iii) The treasurer may prescribe rules and regulations governing the form and procedure for protests and hearings.

(iv) The decision of the treasurer shall become final upon the expiration of 30 days from the date notice is mailed to the petitioner, unless prior thereto the petitioner files an appeal to the board in accordance with subsection (b).

(b) Review by Board.

(i) Any decision of the treasurer rendered under subsection (a) of this section may be appealed by timely filing an appeal to the board of tax review in the same manner as other appeals to the board. The board shall have authority to amend, vacate, or affirm any such decision appealed from, in conformity with the intent and purpose of this chapter.

(ii) Decisions of the board shall become final upon being placed in the mail to the petitioner.

(Ordained by Emer. Ord. No. 167-2018, § 1, eff. July 1, 2018)

Sec. 313-25. Statute of Limitations.

(a) Assessment of Tax.

(i) Except as otherwise provided in this section, an assessment shall be issued within three years from the date the return was due or the date the return was filed, whichever is later.

(ii) Where an advertising host underreports more than 25 percent of the total tax due, an assessment shall be issued within six years from the date the return was due or the date the return was filed, whichever is later.

(iii) No limitation in the time for assessment of taxes and associated interest and penalties shall apply in the case of a false or fraudulent return.

(b) Offenses.

(i) Except as provided in subsection (b)(ii), prosecutions for an offense made punishable under this chapter shall be commenced within three years after commission of the offense.

(ii) Prosecutions for an offense made punishable under this chapter relating to the willful failure to pay any

tax due or file a required return or attempt to evade the application of the tax shall be commenced within six years after the commission of the offense.

(c) Any action or suit for collection of taxes assessed shall be commenced within 10 years from the date of assessment.

(d) The time allowed for any action against a person liable for the payment of any tax, interest, or penalty other than the taxpayer shall be the same as in the case such action was being taken against the taxpayer.
(Ordained by Emer. Ord. No. 167-2018, § 1, eff. July 1, 2018)

Sec. 313-27. Confidential Information.

(a) Except as otherwise provided in this section, information provided to the treasurer by an advertising host or revealed in the course of an investigation or private hearing shall be confidential to the extent permitted under Ohio law and no person shall disclose such information except in compliance with a proper judicial order from a court of competent jurisdiction, or in the connection with the performance of that person's official duties or the official business of the city as authorized under the Cincinnati Municipal Code.

(b) The treasurer may furnish any information obtained under this chapter to the Internal Revenue Service, to the state tax treasurer, and to the city tax commissioner upon request.

(c) The treasurer may disclose any information to any responsible party charged with liability under section 310-13 for the purpose of monitoring and discharging their obligations there under, including, but not limited to, providing a notice of deficiency issued to a taxpayer.

(d) The treasurer may disclose information in the course of any public proceeding or action to collect taxes assessed by the treasurer.
(Ordained by Emer. Ord. No. 167-2018, § 1, eff. July 1, 2018)

Sec. 313-29. Penalties.

(a) Failure to File.

(i) A penalty of five percent of the tax owed for the relevant reporting period shall be assessed for each month, or portion thereof, that the return is not filed after becoming due, up to a maximum penalty of 25 percent of the tax owed for that reporting period.

(ii) The tax owed for the relevant reporting period shall be the amount of tax that should have been reported without deduction of any payments for the period that were received in advance of filing.

(b) A penalty of one percent of the amount of tax remaining unpaid after becoming due shall be assessed for each month, or portion thereof, that such tax is not paid in full.

(c) Any penalty assessed by this section shall be first applied on the first day the return or tax becomes past due and on every first day on the following months thereafter under the terms of such penalty.

(d) Penalty amounts due pursuant to this section shall not be compounded by adding any such penalty to the balance of unpaid tax due.

(e) Penalties assessed under this section shall not apply to the portion of the unpaid balance comprised of accumulated interest assessed under this chapter.
(Ordained by Emer. Ord. No. 167-2018, § 1, eff. July 1, 2018)

Sec. 313-31. Interest.

(a) Any unpaid balance due, including all tax, penalties, and accumulated interest, shall accrue interest on a daily basis until paid in full.

(b) The annual rate of interest shall be five percent.

(c) Interest shall be assessed daily by multiplying the unpaid balance due by the daily interest rate. Interest shall be compounded daily by adding the daily interest calculated to the unpaid balance due as accumulated interest.

(d) Interest assessed pursuant to this section is in addition to any other penalty amount imposed under this chapter.
(Ordained by Emer. Ord. No. 167-2018, § 1, eff. July 1, 2018)

Sec. 313-33. Severability.

If any section, subsection, subdivision, paragraph, sentence, clause or phrase of this chapter or any part thereof is for any reason held to be unconstitutional, such decision shall not affect the validity of the remaining portions of this chapter or any part thereof. The city council hereby declares that it would have passed each section, subsection, subdivision, paragraph, sentence, clause or phrase thereof, irrespective of the fact that any one or more sections, subsections, subdivisions, paragraphs, sentences, clauses or phrases be declared unconstitutional.
(Ordained by Emer. Ord. No. 167-2018, § 1, eff. July 1, 2018)

Sec. 313-99. Violations; Misdemeanor; Penalties.

(a) No person shall violate any provision of this chapter.

(b) No advertising host or other person shall fail or refuse to register with the treasurer or to furnish any return required to be made, fail or refuse to furnish a supplemental return or other data required by the treasurer, or render a false or fraudulent return or claim.

(c) No person required by this chapter to make, render, sign, or verify any report or claim shall make a false or fraudulent report or claim with the intent to defeat or evade the determination of any amount due.

(d) Failure to comply with the provisions of this chapter shall constitute a Class C1 civil offense as defined by section 1501-8(a) of the Cincinnati Municipal Code.

(e) In the alternative to paragraph (d) of this section, whoever violates any of the provisions set forth above is guilty of a first degree misdemeanor and shall be fined not more than $500, imprisoned for a period of not more than six months, or both.
(Ordained by Emer. Ord. No. 167-2018, § 1, eff. July 1, 2018)

Chapter 314

MUNICIPAL MOTOR VEHICLE LICENSE TAX*

Sec. 314-1. Levy of Annual Tax.
Sec. 314-3. Use of Tax Levy Proceeds.
Sec. 314-5. Payment of the Tax.
Sec. 314-7. Reductions and Exemptions of the Tax.

*__Cross reference—__Traffic code, tit. V.

Sec. 314-1. Levy of Annual Tax.

(a) There is hereby levied an annual permissive motor vehicle license tax upon the operation of motor vehicles upon the public roads or highways of the city of Cincinnati. Such tax shall be at the rate of $5.00 per motor vehicle on all motor vehicles the district of registration of which, as defined in section 4503.10 of the Revised Code, is in the city of Cincinnati. The tax shall be in addition to the taxes at the rates specified in Sections 4503.04 and 4503.16 of the Revised Code, and any other taxes levied under this Chapter 314. The tax is levied under the authority of Section 4504.172 of the Revised Code.

(b) There is hereby levied an annual permissive motor vehicle license tax upon the operation of motor vehicles upon the public roads or highways of the city of Cincinnati. A tax levied under this section is in addition to the tax levied in section (a) above, any other tax levied under Chapter 314, the tax levied by sections 4503.02 and 4503.07 of the Revised Code, and any other tax levied under Ohio Revised Code Chapter 4504. Such tax shall be at the rate of $5.00 per motor vehicle on all motor vehicles the district of registration of which, as defined in section 4503.10 of the Revised Code, is in the city of Cincinnati. The rate of the tax is in addition to the taxes at the rates specified in Sections 4503.04 and 4503.042 of the Ohio Revised Code. The tax is levied under the authority of Section 4504.173 of the Revised Code.

(c) As used in this chapter the term "motor vehicles" means any and all vehicles included within the definition of motor vehicle in Sections 4501.01 and 4505.01 of the Revised Code and includes motorized bicycles.
(Ordained by Ord. No. 164-1988, eff. June 17, 1988; a. Ord. No. 0217-2019, eff. July 19, 2019)

Sec. 314-3. Use of Tax Levy Proceeds.

(a) The proceeds of the tax levied pursuant to Section 314-1(a) are for the purpose of paying the costs and expenses of enforcing and administering the tax and for planning, constructing, reconstructing, improving, maintaining and repairing public roads, highways and streets; maintaining and repairing bridges and viaducts; paying the city's portion of the costs and expenses of cooperating with the department of transportation in the planning, improvement and construction of state highways; paying the city's portion of the compensation, damages, cost, and expenses of planning, constructing, reconstructing, improving, maintaining, and repairing roads and streets; paying any costs apportioned to the city under Section 4907.47 of the Revised Code; paying debt service charges on notes or bonds of the city issued for such purposes; purchasing, erecting, and maintaining street and traffic signs and markers; purchasing, erecting, and maintaining traffic lights and signals; provided that any use of such tax proceeds shall be in accord with the purposes set for in Section 4504.04, 4504.06, 4504.17, 4504.171 or 4504.172 of the Revised Code. The tax levied under Section 314-1(a) shall be effective January 1, 1989, and continue in effect until repealed by ordinance.

(b) The proceeds of the tax levied pursuant to Section 314-1(b) are for the same purposes as set forth in paragraph (a) of this section, as well as for supplementing revenue already available for those purposes. The tax levied under Section 314-1(b) shall be effective January 1, 2020, and continue in effect until repealed by ordinance.
(Ordained by Ord. No. 164-1988, eff. June 17, 1988; a. Ord. No. 0217-2019, eff. July 19, 2019)

Sec. 314-5. Payment of the Tax.

The taxes imposed by this chapter shall be paid to the Registrar of Motor Vehicles of

the State of Ohio or to a deputy registrar at the time application for registration of a motor vehicle is made as provided in Section 4503.10 of the Revised Codes.
(Ordained by Ord. No. 164-1988, eff. June 17, 1988; a. Ord. No. 0217-2019, eff. July 19, 2019)

Sec. 314-7. Reductions and Exemptions of the Tax.

The taxes imposed by this chapter shall be subject to reductions in the manner provided in Section 4503.11 of the Revised Code. The tax imposed by Section 314-1(a) shall be subject to the exemptions provided in Sections 4503.16, 4503.17, 4503.171, 4503.41 and 4503.43 of the Revised Code. The tax imposed by Section 314-1(b) shall be subject to the exemptions provided in Sections 4503.16, 4503.17, 4503.172, 4503.173, 4503.18, 4503.41, 4503.43, 4503.46, and 4503.571 of the Ohio Revised Code.
(Ordained by Ord. No. 164-1988, eff. June 17, 1988; a. Ord. No. 0217-2019, eff. July 19, 2019)

Chapter 315

SHORT TERM RENTAL EXCISE TAX

Sec. 315-1. Definitions.
Sec. 315-1-H. Hosting Platform.
Sec. 315-1-O. Operator.
Sec. 315-1-P. Person.
Sec. 315-1-R. Rent.
Sec. 315-1-S. Short Term Rental.
Sec. 315-1-T1. Transient Guest.
Sec. 315-1-T2. Treasurer.
Sec. 315-3. Rate of Tax.
Sec. 315-5. Exemptions.
Sec. 315-7. Records Showing Rent and Excise Tax.
Sec. 315-9. Registration.
Sec. 315-11. Reporting and Remitting.
Sec. 315-13. Treasurer's Authority.
Sec. 315-15. Failure to Collect and Report Tax, Determination of Tax by City Treasurer.
Sec. 315-17. Penalties and Interest.
Sec. 315-19. Appeal.
Sec. 315-21. Records.
Sec. 315-23. Refunds.
Sec. 315-25. Actions to Collect.
Sec. 315-27. Use of Revenue.
Sec. 315-29. Severability.
Sec. 315-99. Violations; Misdemeanor; Penalties.

Sec. 315-1. Definitions.

For the purpose of this chapter the words and phrases defined in this section shall have the meanings respectively ascribed to them, unless a different meaning is clearly indicated by the context.
(Ordained by Ord. No. 0125-2019, eff. July 1, 2019)

Sec. 315-1-H. Hosting Platform.

"Hosting Platform" means a person or entity that provides a means through which short term rentals are offered, listed, advertised, solicited, or otherwise held out for rent.
(Ordained by Ord. No. 0125-2019, eff. July 1, 2019)

Sec. 315-1-O. Operator.

"Operator" means any person who offers a short term rental or holds a short term rental out to the public for rental by placing advertisements or solicitations with a hosting platform.
(Ordained by Ord. No. 0125-2019, eff. July 1, 2019)

Sec. 315-1-P. Person.

"Person" shall mean any individual, firm, partnership, joint venture, association, social club, fraternal organization, joint stock company, corporation, estate, trust, business trust, receiver, trustee, syndicate, or any other group or combination acting as a unit.
(Ordained by Ord. No. 0125-2019, eff. July 1, 2019)

Sec. 315-1-R. Rent.

"Rent" shall mean the consideration received for occupancy valued in money, whether received in money or otherwise, including all receipts, cash, credits, and property or services of any kind or nature, and also any amount for which the occupant is liable for the occupancy without any deduction therefrom whatsoever.
(Ordained by Ord. No. 0125-2019, eff. July 1, 2019)

Sec. 315-1-S. Short Term Rental.

"Short Term Rental" means:

(a) Any residential dwelling unit or part thereof;

(b) Offered or held out to the public for rent on a hosting website, web or mobile application, or other online platform through which short term rentals are listed, advertised, solicited, or otherwise held out for rent;

(c) For a duration of occupancy of less than thirty consecutive days.

(Ordained by Ord. No. 0125-2019, eff. July 1, 2019)

Sec. 315-1-T1. Transient Guest.

"Transient guest" shall mean a person or persons who enters into a contractual arrangement with the operator of a short term rental whereby the person or persons pays rent to the operator, or to a person designated by the operator to receive rent, in exchange for occupancy of the short term rental.
(Ordained by Ord. No. 0125-2019, eff. July 1, 2019)

Sec. 315-1-T2. Treasurer.

"Treasurer" shall mean the city treasurer of the city of Cincinnati.
(Ordained by Ord. No. 0125-2019, eff. July 1, 2019)

Sec. 315-3. Rate of Tax.

(a) There is hereby levied an excise tax on the operation of short term rentals subject to registration pursuant to Chapter 856 of

the Cincinnati Municipal Code. The tax shall equal seven percent of the gross revenues generated from the operation of a short term rental located in the city. Such tax constitutes a debt owed by the operator of the short term rental to the city, which is extinguished only by payment of the tax to the city.

(b) Operators of short term rentals shall pay, or shall cause any hosting platform on which their short term rental is rented to pay on their behalf, the short term rental excise tax established in this chapter.

(c) In lieu of requiring compliance with subsection (b) hereof, the treasurer of the city of Cincinnati may enter into an agreement with a hosting platform to establish a process for the hosting platform to collect and pay the applicable taxes imposed upon operators, solely for transactions consummated between operators and transient guests through the hosting platform.

(d) This chapter shall have prospective application such that revenues paid by a transient guest for the occupancy of a short term rental pursuant to the terms of an agreement executed or in effect prior to the effective date of this chapter shall not be considered in calculating an operator's tax liability.
(Ordained by Ord. No. 0125-2019, eff. July 1, 2019)

Sec. 315-5. Exemptions.

(a) The treasurer may grant an exemption from the tax imposed under this chapter upon a demonstration that the transaction giving rise to tax liability is not within the taxing power of the city under the constitution or laws of the State of Ohio or the United States.

(b) No exemption claimed under subsection (a) hereof shall be granted except upon a claim therefor made upon the occurrence of the transaction giving rise to tax liability and under penalty of perjury upon a form prescribed by the treasurer.
(Ordained by Ord. No. 0125-2019, eff. July 1, 2019)

Sec. 315-7. Records Showing Rent and Excise Tax.

The tax to be collected shall be accounted for as an excise tax on the gross revenues from operation of the short term rental at the rate established in Section 315-3 of this chapter. The operator of a short term rental shall be responsible for keeping records showing the gross revenues received in connection with the operation of the short term rental, so that the rate of tax can be properly accounted for, as detailed in Section 315-11 of this chapter. Each operator, or alternatively, each hosting platform that an operator causes to collect and pay the excise tax on its behalf, shall hold in trust for account of the city a portion of the gross revenues received from the operation of a short term rental as is sufficient to discharge the tax liability established under Section 315-3 of this chapter until payment thereof is made to the treasurer.
(Ordained by Ord. No. 0125-2019, eff. July 1, 2019)

Sec. 315-9. Registration.

(a) Operator of short term rental. Prior to commencing business, each operator of a short term rental shall register with the city as required under Cincinnati Municipal Code Section 856-5.

(b) Hosting platform. Prior to commencing business, each hosting platform facilitating the renting of short term rentals in the city shall register with the treasurer, providing any information requested by the treasurer that is necessary to establish a

system of payment of the tax established in this chapter from the hosting platform to the city.
(Ordained by Ord. No. 0125-2019, eff. July 1, 2019)

Sec. 315-11. Reporting and Remitting.

(a) Each hosting platform shall, on or before the last day of the month following the close of each calendar quarter, or at the close of any shorter reporting period which may be established by the treasurer, make a return to the treasurer, on forms provided, of the gross revenues received and the amount of tax due for the operation of all of the short term rentals in the city rented through the hosting platform for that calendar quarter or shorter reporting period if applicable.

(b) If the treasurer of the city of Cincinnati enters into an agreement with a hosting platform pursuant to Section 315-3(c) of this chapter, such agreement may govern the process for reporting and remitting of tax due for the operation of short term rentals rented through that hosting platform.

(c) At the time the return is filed, the full amount of the tax held in trust on behalf of the operators shall be remitted to the treasurer, if it has not previously been remitted.

(d) The treasurer may establish shorter reporting periods for an operator if determined necessary in order to ensure collection of the tax and may require further information in the return if such information is pertinent to the collection of the tax.

(e) Returns and payments are due no less than ninety days following cessation of a short term rental's operation for any reason.

(f) All returns and payments submitted by a hosting platform shall be treated as confidential by the treasurer and shall not be released except upon order of a court of competent jurisdiction or to an officer or agent of the United States, the state of Ohio, the county of Hamilton, or the city of Cincinnati for official use only.
(Ordained by Ord. No. 0125-2019, eff. July 1, 2019)

Sec. 315-13. Treasurer's Authority.

(a) The treasurer is empowered to adopt, promulgate, and enforce rules and regulations relating to any matter pertaining to the administration and enforcement of the provisions of this chapter, including, but not limited to, provisions relating to transactions and record keeping. Rules and regulations shall be effective upon publication in the City Bulletin or at a later date specified by the treasurer.

(b) The treasurer is empowered to issue rulings on the application of the provisions of this chapter and the rules and regulations promulgated hereunder upon request from an operator or hosting platform. The rulings shall be at the discretion of the treasurer and binding only with respect to the person requesting the ruling. The treasurer may condition the consideration of a request for a ruling upon payment of an administrative fee to offset the administrative costs associated with consideration of the request.

(c) The treasurer is empowered to conduct investigations relating to any matter pertaining to the administration and enforcement of the provisions of this chapter.

(d) The treasurer is empowered to subpoena the production of books, papers, records, and other information and the attendance of all persons before him or her, whether as parties or witnesses, whenever he or she believes such persons have knowledge pertinent to any inquiry of any tax paid, charged, collected, or received or required to have been charged, collected, or received. The treasurer is empowered to

subpoena the appearance of any person appearing before him or her under oath, concerning any transaction which was or should have been reported for any purpose under this chapter or any activity or occurrence tending to affect the tax levied under this chapter. All costs of production shall be borne by the respondent.

(e) Each subpoena issued pursuant to subsection (d) hereof shall indicate that any person receiving the subpoena may exercise his, her, or its right to have the subpoena reviewed by a court of competent jurisdiction before complying with the subpoena.

(f) No authority granted to the treasurer by any other provision of this chapter shall be limited by virtue of not being included in this section.

(g) Upon good cause, the treasurer may waive penalties otherwise owing under this chapter for an operator's failure to pay amounts due.
(Ordained by Ord. No. 0125-2019, eff. July 1, 2019)

Sec. 315-15. Failure to Collect and Report Tax, Determination of Tax by City Treasurer.

(a) If an operator fails to directly pay or cause a hosting platform to collect or withhold the tax prescribed by this chapter or to make within the time provided any report and remittance of the tax or any portion thereof, the treasurer shall proceed in such manner deemed best to obtain facts and information on which to base the estimate of the tax due. Upon procuring facts and information upon which to base the assessment of any tax imposed by this chapter and payable by, or on behalf of, an operator, the operator who has failed or refused to collect the same or to make a report and remittance, the treasurer shall proceed to determine and assess against the operator the tax, interest, and penalties provided for by this chapter. The treasurer shall give a notice of the amounts assessed by serving it personally on the operator or by depositing it in the United States mail, postage prepaid, and addressed to the operator at its last known place of address.

(b) An operator may within ten days after the serving or mailing of notice of amounts due make application in writing to the treasurer for a hearing on the amount assessed. If the operator does not apply for a hearing within the time prescribed, the amounts assessed by the treasurer shall become final and conclusive and immediately due and payable. If an application for a hearing is made, the treasurer shall give not less than five days' written notice in the manner prescribed herein to the operator to show cause at a time and place fixed in said notice why the amount assessed should not be fixed. At the hearing, the operator may appear and offer evidence why the amount assessed should not be so fixed. After the hearing, the treasurer shall determine the proper amount to be assessed and shall give written notice of the decision to the operator in the manner prescribed herein. The amount assessed shall be payable after fifteen days unless an appeal is taken as provided in Section 315-19 of this chapter.
(Ordained by Ord. No. 0125-2019, eff. July 1, 2019)

Sec. 315-17. Penalties and Interest.

(a) *Delinquency.* Any operator who fails to remit any tax imposed by this chapter or cause a hosting platform to collect and remit such tax in the manner required and within the time required shall pay a penalty equal to ten percent of the amount of the tax, in addition to the tax.

(b) *Fraud.* If the treasurer determines that the non-payment of any remittance due under this ordinance is due to fraud, a

penalty equal to twenty-five percent of the amount of the tax shall be added thereto in addition to the penalties stated in subsection (a) hereof.

(c) *Interest.* In addition to the previous penalties imposed, any operator or hosting platform who fails to remit any tax imposed by this chapter in the manner required shall pay interest at the rate of one percent per month, or fraction thereof, on the amount of the tax, exclusive of penalties, from the date on which the remittance first became delinquent until paid.

(d) *Penalties During Pendency of Hearing or Appeal.* No penalty provided under the terms of this chapter shall be imposed during the pendency of any hearing provided for in Section 315-15 of this chapter nor during the pendency of any appeal to the city manager provided for in Section 315-19 of this chapter.

(e) *Abatement of Interest and Penalty.* In cases where a return has been filed in good faith and an assessment has been paid within the time prescribed by the treasurer, the treasurer may abate any charge of penalty or interest or both.
(Ordained by Ord. No. 0125-2019, eff. July 1, 2019)

Sec. 315-19. Appeal.

Any operator or hosting platform aggrieved by a decision of the treasurer assessing liability for taxes, interest, or penalties accruing under this chapter may appeal to the city manager by filing a notice of appeal with the city manager within fifteen days of the serving or mailing of the determination of tax due. The city manager or his or her designee shall fix a time and place for hearing such appeal and shall give notice in writing to the person at his, her, or its last known place of address. The findings of the city manager or his or her designee shall be final and conclusive and shall be served upon the appellant in the manner prescribed above for service of notice of hearing. Any amount found to be due shall be immediately due and payable upon the service of notice.
(Ordained by Ord. No. 0125-2019, eff. July 1, 2019)

Sec. 315-21. Records.

It shall be the duty of every person liable for the collection and payment to the city of the tax imposed by this ordinance to keep and preserve, for a period of three years, all records as may be necessary to determine the amount of tax for which the person may be liable, which records the treasurer shall have the right to inspect at all reasonable times.
(Ordained by Ord. No. 0125-2019, eff. July 1, 2019)

Sec. 315-23. Refunds.

(a) Whenever the amount of any tax, interest, or penalty has been overpaid or paid more than once or has been erroneously or illegally collected or received by the city under this chapter, it may be refunded as provided in subsection (b) hereof provided a claim in writing therefor, stating under penalty of perjury the specific grounds upon which the claim is founded, is filed with the treasurer within three years of the date of payment. The claim shall be on forms furnished by the treasurer.

(b) No refund shall be paid under the provisions of this section unless the claimant establishes a right thereto by written records showing entitlement thereto.
(Ordained by Ord. No. 0125-2019, eff. July 1, 2019)

Sec. 315-25. Actions to Collect.

Any person owing money to the city under the provisions of this chapter shall be liable to an action brought in the name of the city for the recovery of such amount.
(Ordained by Ord. No. 0125-2019, eff. July 1, 2019)

Sec. 315-27. Use of Revenue.

All revenue from the short term rental excise tax levied pursuant to this chapter shall be deposited into Fund 050 for General Fund operating activities. The short term rental excise tax revenue estimated to be collected in the following fiscal year shall establish the minimum amount appropriated in the annual budget for the following fiscal year to capital improvement projects for the preservation and development of affordable housing in the city of Cincinnati.
(Ordained by Ord. No. 0125-2019, eff. July 1, 2019; a. Emer. Ord. No. 0206-2019, eff. July 1, 2019)

Sec. 315-29. Severability.

If any section, subsection, subdivision, paragraph, sentence, clause, or phrase of this chapter or any part thereof is for any reason held to be unconstitutional, such decision shall not affect the validity of the remaining portions of this chapter or any part thereof. The city council hereby declares that it would have passed each section, subsection, subdivision, paragraph, sentence, clause, or phrase thereof, irrespective of the fact that any one or more sections, subsections, subdivisions, paragraphs, sentences, clauses, or phrases be declared unconstitutional.
(Ordained by Ord. No. 0125-2019, eff. July 1, 2019)

Sec. 315-99. Violations; Misdemeanor; Penalties.

(a) No person shall violate any provision of this chapter.

(b) No person shall fail or refuse to register as required in this chapter or to furnish any return required to be made, fail to refuse to furnish a supplemental return or other data required by the treasurer, or render a false or fraudulent return or claim.

(c) No person required by this chapter to make, render, sign, or verify any report or claim shall make a false or fraudulent report or claim with the intent to defeat or evade the determination of any amount due.

(d) Failure to comply with the provisions of this chapter shall constitute a Class C1 civil offense as defined by Section 1501-8(a) of the Cincinnati Municipal Code.

(e) In the alternative to subsection (d) hereof, whoever violates any of the provisions set forth above is guilty of a first degree misdemeanor and shall be fined not more than $500, imprisoned for a period of not more than six months, or both.
(Ordained by Ord. No. 0125-2019, eff. July 1, 2019)

Chapter 317

LIVING WAGE

Sec. 317. Legislative Intent and Purpose.
Sec. 317-1. Definitions.
Sec. 317-1-C. Contractor.
Sec. 317-1-C2. Covered Employee.
Sec. 317-1-C3. Covered Employer.
Sec. 317-1-H. Health Benefits or Employee Health Benefits.
Sec. 317-1-L. Living Wage.
Sec. 317-1-P. Person.
Sec. 317-1-P1. Professional Services Contract.
Sec. 317-1-S. Service Contract.
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Sec. 317. Legislative Intent and Purpose.

It is the purpose of this chapter:

(1) To increase the quality and reliability of services procured for the city or provided to city inhabitants by contractors or vendors, by promoting higher productivity and retention of employees working on city contracts;

(2) To use city spending to encourage the development of jobs paying wages above the poverty level;

(3) To use city spending and procurement of services to require covered employers that provide services to the city to pay their employees a "living wage" - a wage sufficient to meet their employees basic subsistence needs;

(4) To raise the income of low-income working people and their families employed by covered employers on city contracts;

(5) To permit exemptions from the provisions of this chapter in certain limited circumstances; and

(6) To provide incentives for covered employers to provide health insurance to their employees.

(Ordained by Ord. No. 362-2002, eff. Dec. 26, 2002)

Sec. 317-1. Definitions.

For the purpose of this chapter, the words and phrases defined in the sections hereunder shall have the meanings respectively ascribed to them, unless a different meaning is clearly indicated by the context.
(Ordained by Ord. No. 362-2002, eff. Dec. 26, 2002)

Sec. 317-1-C. Contractor.

"Contractor" means any person that enters into a service contract with the city in an amount equal to or greater than $20,000.00.
(Ordained by Ord. No. 362-2002, eff. Dec. 26, 2002)

Sec. 317-1-C2. Covered Employee.

"Covered employee" means a full-time, part-time or seasonal city employee or any person who is employed on a full-time, part-time or seasonal basis as a service employee of a contractor or subcontractor under the authority of one or more service contracts with the city and who expends any of his or her time thereon, including but not limited to: restaurant, food service or banquet employees; janitorial employees; security guards; parking attendants; gardeners; waste management employees; and clerical employees, provided however, that persons who are employed pursuant to federal or state laws relating to prevailing wages shall be exempt from this chapter.

Specifically, a "covered employee" is the persons or persons employed by a "covered employer" to perform the specific services which are covered or funded by the contract with the city.
(Ordained by Ord. No. 362-2002, eff. Dec. 26, 2002; a. Ord. No. 091-2016, § 1, eff. July 1, 2016)

Sec. 317-1-C3. Covered Employer.

"Covered employer" means a contractor or subcontractor that has not been granted an exemption from this chapter. "Covered employer" shall further mean any entity that receives 25% or more of its annual funding from the City of Cincinnati.
(Ordained by Ord. No. 362-2002, eff. Dec. 26, 2002; a. Ord. No. 091-2016, § 1, eff. July 1, 2016)

Sec. 317-1-H. Health Benefits or Employee Health Benefits.

"Health benefits" means providing health care benefits for employees (or employees and their dependents) at employer cost or making an employer contribution toward the purchase of such health care benefits for employees, provided that the employer cost or contribution for a "family" plan equals no less than $1.50 an hour for the average work week of such employee.
(Ordained by Ord. No. 362-2002, eff. Dec. 26, 2002; a. Ord. No. 74-2003, eff. April 25, 2003)

Sec. 317-1-L. Living Wage.

"Living wage" means a wage equal to the level established in Section 317-3 of this chapter.
(Ordained by Ord. No. 362-2002, eff. Dec. 26, 2002)

Sec. 317-1-P. Person.

"Person" means any individual, partnership, corporation, association or other entity which may contract with the city for the provision of services.
(Ordained by Ord. No. 362-2002, eff. Dec. 26, 2002)

Sec. 317-1-P1. Professional Services Contract.

Professional services contracts are contracts for personal services which involve extended analysis, expression of opinion, exercise of discretion and independent judgment in their performance, and an advanced specialized knowledge, expertise, or training customarily acquired by either a prolonged course of study or equivalent experience in a field. The performance of professional services under a professional services contract may require a license, official certification, or authorization by a state or national organization or body.
(Ordained by Emer. Ord. No. 107-2012, § 1, eff. April 4, 2012)

Sec. 317-1-S. Service Contract.

"Service contract" means a contract let to a contractor by the city for the furnishing of services to or for the city that involves an expenditure equal to or greater than $20,000.00 (except contracts where services are incidental to the delivery of products, equipment or commodities).

Grants or other types of financial assistance provided to persons contractually or through various city development programs which do not involve the furnishing of services to or for the city are not considered "service contracts" for the purpose of this chapter. Similarly, grants or other types of financial assistance provided to charitable or social service agencies contractually or through various city programs are not considered "service contracts" for the purpose of this chapter.

Professional services contracts are not considered "service contracts" for the purpose of this chapter.
(Ordained by Ord. No. 362-2002, eff. Dec. 26, 2002; Emer. Ord. No. 107-2012, § 2, eff. April 4, 2012)

Sec. 317-1-S1. Subcontractor.

"Subcontractor" means any person who enters into a contract with a contractor to assist the contractor in performing a service contract.
(Ordained by Ord. No. 362-2002, eff. Dec. 26, 2002)

Sec. 317-3. Living Wages Required.

(a) The city and every covered employer shall pay its covered employees no less than a living wage, as determined in this section and as hereafter adjusted in accordance with subsection (b) hereof:

(1) $15.00 per hour for full-time city employees or full-time employees of covered employers;

(2) $10.10 per hour for seasonal or part-time city employees;

(3) $11.73 per hour for part-time or seasonal employees of a covered employer that provides employee health care to its part-time and seasonal employees; and

(4) $13.23 per hour for part-time or seasonal employees of a covered employer that does not provide employee health care to its part-time and seasonal employees.

For purposes of this subsection (a) regarding city employees, "full-time," "part-time," and "seasonal" city employees shall be determined based on the city of Cincinnati's designation of such individuals for city of Cincinnati employment purposes.

For purposes of this subsection (a) regarding employees of covered employers, "full-time employees" means those permanent employees who work 1500 or more hours on an annual basis on a single city contract, and "part-time employees" means those permanent employees who work fewer than 1500 hours on an annual basis on a single city contract, and "seasonal employees" means any employees of a covered employer whose services are required only during certain parts of the year, such a position being intermittent in nature, but any such employee designated as seasonal who works 1500 hours or more in any calendar year on a single city contract shall be deemed a full-time employee for purposes of this section for all hours worked on such single city contract.

No position that otherwise would have been filled with a full-time employee shall be filled with one or more part-time employees in an effort to reduce the living wage rate required by this subsection (a).

In order to qualify to pay the living wage rate for covered employers providing employee health care to their part-time and seasonal employees under subsection (a) hereof, a covered employer shall furnish proof of said health care coverage and payment therefor to the city manager or the manager's designee. For full-time employees of covered employers as defined in this subsection (a), the living wage is $15.00 per hour, regardless of whether the employer provides health care benefits.

(b) The amount of the living wages established in this section shall be adjusted upward no later than April 30, 2017 and by April 30 of each year thereafter by a percentage equal to the percentage increase, if any, in the level of the annual average Consumer Price Index as published by the Bureau of Labor Statistics, U.S. Department of Labor for the immediately preceding calendar year over the annual average for the prior year. For each living wage level, the applicable percentage amount shall be converted to a monetary amount by multiplying the most recent living wage under this section for that level by said percentage, rounding upward to the next cent, and adding that amount of cents to the most recent living wage established herein for that level. Prior to April 1 of each calendar year, the city shall notify any covered employer of this adjustment by posting an announcement in the City Bulletin and/or by written letter in the case of a covered employer that has provided an address of record to the city.
(Ordained by Ord. No. 362-2002, eff. Dec. 26, 2002; a. Ord. No. 091-2016, § 3, eff. July 1, 2016)

Sec. 317-5. Duration of Requirements.

A covered employer shall be required to comply with this chapter for the term on their contract with the city.
(Ordained by Ord. No. 362-2002, eff. Dec. 26, 2002)

Sec. 317-7. Waivers.

Council reserves the right to waive the requirements of this chapter upon a finding and determination that waiver is in the best interests of the city. When an emergency has been declared by the mayor, council or the city manager, (for example, when there is an emergency due to natural disasters and there is a need for immediate services), waivers shall be granted without the need for consideration by council when services to be contracted are necessary because of the emergency.

To permit an effective and reasonable contracting process by the city by enabling prospective bidders and responders to know whether workers on the contract will be covered employees for purpose of this chapter, city departments may request that council waive the requirements of this chapter for a contract prior to bids for contracts or requests for proposals or qualifications being released for response. If council waives the requirements of this chapter in advance of bids for contracts or requests for proposals or qualifications being released for response, the waiver will be effective for all contracts entered into by the city as a result of the bid or request for proposals or qualifications and will be effective for the duration of such contract(s).

Waivers from the chapter will be granted only where the balance of competing interests weighs clearly in favor of granting the waiver. If waivers are to be granted, partial waivers are favored over blanket waivers. Except when a waiver is granted in advance of bids for contracts or requests for proposals or qualifications being released for response for the duration of a contract as provided in the preceding paragraph, any waiver shall be granted for no more than one year.
(Ordained by Ord. No. 362-2002, eff. Dec. 26, 2002; a. Ord. No. 74-2003, eff. April 25, 2003; Emer. Ord. No. 107-2012, § 2, eff. April 4, 2012)

Sec. 317-9. Exemptions.

(a) An employee who is a trainee in a job training program which meets city job training standards as outlined in regulations promulgated by the city manager pursuant to this chapter, shall be exempt for the period of training.

(b) An employee who is employed by a nonprofit corporation for after school or summer employment or as a trainee for a period not longer than 90 days and any participant in the city of Cincinnati 2016 summer youth employment programs shall be exempt.
(Ordained by Ord. No. 362-2002, eff. Dec. 26, 2002; a. Ord. No. 091-2016, § 4, eff. July 1, 2016)

Sec. 317-11. Contract or Agreement Language.

All "Requests for Proposals" or "Requests for Qualifications," as defined in sections 321-1-R3 and 321-1-R4, respectively, of the Cincinnati Municipal Code, and all city contracts subject to this chapter shall contain the following two paragraphs or substantially equivalent language:

(a) This contract is subject to the Living Wage provisions of the Cincinnati Municipal Code. The provisions require that, unless specific exemptions apply or a waiver is granted, all employers (as defined) under service contracts shall provide payment of a

minimum wage to employees (as defined) of $15.00 per hour for full-time employees (as defined); and $11.73 per hour for part-time and seasonal employees (as defined) for whom the employer provides health benefits; and $13.23 per hour for part-time and seasonal employees for whom the employer does not provide health benefits. Such rate shall be adjusted annually pursuant to the terms of the Municipal Code.

(b) Under the Living Wage provisions, the City shall have the authority, under appropriate circumstances, to terminate this contract and to seek other remedies.

(Ordained by Ord. No. 362-2002, eff. Dec. 26, 2002; a. Ord. No. 091-2016, § 5, eff. July 1, 2016)

Sec. 317-13. Obligations of Contractors.

(a) All proposed contractors subject to the provisions of this chapter shall submit a completed declaration of compliance form, signed by an authorized representative, along with each proposal. The completed declaration of compliance form shall be made a part of the executed contract.

(b) Contractors shall require their subcontractors to comply with the provisions of this chapter. Language indicating the subcontractor's agreement to comply shall be included in the contract between the contractor and subcontractor. A copy of such subcontracts or other such agreements shall be submitted to the city.

(c) Contractors and subcontractors shall give written notification to each current and new employee, at time of hire, of his or her rights to receive the benefits under the provisions of this chapter. A copy of such notification shall be retained by contractors and subcontractors which may be subject to audits and/or other forms of monitoring. The notification must include the following:

Minimum Compensation. The living wage rate of $15.00 per hour for full-time employees of covered employers; and $11.73 per hour for part-time and seasonal employees of a covered employer that provides employee health benefits to its part-time and seasonal employees; and $13.23 per hour for part-time and seasonal employees of a covered employer that does not provide employee health benefits to its part-time and seasonal employees shall be adjusted annually. The living wage shall be upwardly adjusted each year no later than April 30th in proportion to the increase, if any, in the annual average level of the Consumer Price Index as published by the Bureau of Labor Statistics, U.S. Department of Labor for the immediately preceding calendar year over the annual average for the prior calendar year.

Health Benefits. Proof of the provision of such benefits to part-time or seasonal employees of covered employers shall be noted on the declaration of compliance form and submitted to the city along with the contractor's bid proposal.

(Ordained by Ord. No. 362-2002, eff. Dec. 26, 2002; a. Ord. No. 74-2003, eff. April 25, 2003; a. Ord. No. 091-2016, § 6, eff. July 1, 2016)

Sec. 317-15. Retaliation or Discrimination.

Covered employers shall not discharge, reduce the compensation of or otherwise discriminate against any employee for making a complaint to the city, participating in any of its proceedings, using any civil remedies to enforce his or her rights, or otherwise asserting his or her rights under this chapter. (Ordained by Ord. No. 362-2002, eff. Dec. 26, 2002)

Sec. 317-17. Monitoring, Investigation and Compliance.

The provisions of this chapter will augment the city's normal and customary procedure for administering its contracts. The city shall administer the requirements of this chapter as follows:

(a) The city manager shall develop rules and regulations to review contract documents to insure that relevant language and information are included in city RFP's, agreements and other relevant documents.

(b) The city manager shall develop rules and regulations for the monitoring of the operations of the covered employers to insure compliance including the review, investigation and resolution of specific concerns or complaints about the employment practices of a contractor or subcontractor relative to this chapter. In such cases, the city will attempt to resolve the problem within 30 days.

(c) Where a violation of any provision of this chapter has been determined, the contractor or subcontractor will be given a written notice by the city per the rules and regulations promulgated by the city manager. Should the violation continue and/or no resolution is imminent, the city shall pursue all available legal remedies, including but not limited to any or all of the following penalties and relief:

1. Suspension and/or termination of the contract or subcontract for cause;
2. Payback of any or all of the contract awarded by the city;
3. Deem the contractor or subcontractor ineligible for future city contracts and/or financial assistance until all penalties and restitution have been paid in full.

(Ordained by Ord. No. 362-2002, eff. Dec. 26, 2002; a. Ord. No. 74-2003, eff. April 25, 2003)

Sec. 317-19. Employee Complaint Process.

An employee who alleges a violation of any provision of this chapter may report such acts to the city and, at the employee's discretion, exhaust available employer internal remedies. The complaint to the city shall be handled as follows:

(a) The employee shall submit to the city a completed complaint form and copies of all documents supporting the allegation.

(b) The city shall notify the agency and the employer of the complaint and seek resolution within five days from receipt of the complaint form. If resolution is not accomplished, the city shall initiate an investigation and seek legal remedies, if appropriate.

(c) An employee claiming retaliation (such as termination, reduction in wages or benefits or adverse changes in working conditions) for alleging noncompliance with this chapter may report the alleged retaliation in the same manner as the initial complaint.

(d) The complainant's or witness' identity will not be divulged to the employer without the individual employee's written consent.

(Ordained by Ord. No. 362-2002, eff. Dec. 26, 2002)

Sec. 317-21. Contract Review Process and City Reporting and Record Keeping.

The city manager shall develop an administrative procedure and appeal process for determining compliance with this chapter.

(a) Regarding the appeal process, it shall be available to every bidder/proposer who has been deemed noncompliant with this chapter, or who disputes the determination of applicability of this chapter to its business operation which will be involved in the proposed contract. A contract shall not be executed until there is resolution of the relevant appeal.

(b) Appeals shall be filed with the city manager within seven calendar days of the date of the notice of the city's written determination of noncompliance and reasons therefor, or written determination of the applicability of this chapter.

(c) The city manager shall maintain records pertaining to all complaints, hearings, determinations and findings, and shall submit a regular report on compliance with this chapter no less than annually to the city council. Special reports and recommendations on significant issues of interest to the council will be submitted as deemed appropriate.

(d) Covered employers who fail to submit documents, declarations or information required to demonstrate compliance with this chapter shall be deemed non-responsive and subject to disqualification.

(Ordained by Ord. No. 362-2002, eff. Dec. 26, 2002)

Sec. 317-23. Collective Bargaining Agreement.

All of the provisions of this chapter, or any part hereof, may be waived in a bona fide collective bargaining agreement, but only if the waiver is explicitly set forth in such agreement in clear and unambiguous terms.
(Ordained by Ord. No. 362-2002, eff. Dec. 26, 2002)

Sec. 317-25. Application to New Contracts.

The provisions of this chapter shall apply to:

(a) Bids, requests for proposals, and the contracts subsequently entered into after the effective date of the ordinance codified in this chapter;

(b) Renewals and/or amendments to contracts entered into after the effective date of the ordinance codified in this chapter which by themselves meet the financial threshold requirement of this chapter.

(Ordained by Ord. No. 362-2002, eff. Dec. 26, 2002; a. Ord. No. 74-2003, eff. April 25, 2003)

Sec. 317-27. Effective Date.

This chapter shall become effective on February 1, 2003, and shall apply to contracts dated on or after such date.
(Ordained by Ord. No. 362-2002, eff. Dec. 26, 2002)

Chapter 318

LOCAL HIRING REQUIREMENTS (REPEALED)*

*__Editor's note—__Repealed by Emer. Ord. No. 055-2018, § 5, eff. March 21, 2108.

Chapter 319

PROMPT PAYMENT SYSTEM

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Sec. 319. Legislative Intent and Policy.

It is the policy of the city to make timely payment to contractors, as defined herein, of amounts which are due and owing under contracts, purchase orders, and leases entered into by the city, and to authorize and mandate the payment of interest on such amounts due and owing to contractors when such payments are unduly delayed by the city through no fault of the contractor, except where unforeseen circumstances or legal impediments beyond the control of either the city or the contractor prevent such timely payment. This chapter shall apply to all contracts as defined herein, unless prohibited by law, by the source of city funding, or as otherwise provided herein.
(Ordained by Ord. No. 297-2002, eff. Sept. 18, 2002)

Sec. 319-1. Definitions.

For the purpose of this chapter, the words and phrases defined in the sections hereunder shall have the meanings respectively ascribed to them, unless a different meaning is clearly indicated by the context.
(Ordained by Ord. No. 297-2002, eff. Sept. 18, 2002)

Sec. 319-1-A. Account Payable.

"Account payable" means a liability incurred by the city pursuant to a contract, evidenced in a demand upon the city and legally due and payable by the director of finance.
(Ordained by Ord. No. 297-2002, eff. Sept. 18, 2002)

Sec. 319-1-A2. Division or Department.

"Division or department" is any administrative division, board or commission of the city.
(Ordained by Ord. No. 297-2002, eff. Sept. 18, 2002)

Sec. 319-1-C. Complete and Responsive Invoice.

"Complete and responsive invoice" means an invoice that:

(a) Complies with any and all applicable requirements of the city's Charter, ordinances, regulations, executive orders or fiscal rules (including, but not limited to the prevailing wage ordinance), or any other applicable city, state or federal law;

(b) Reflects the goods and/or services provided by the contractor to the agency or department scheduled to receive them;

(c) Reflects goods and/or services that comply with contract or project specifications and are satisfactory;

(d) Reflects goods and/or services that have successfully met requirements for any extended testing, setup, assembly and/or acceptance period;

(e) Clearly states an invoice date, a unique invoice number and, if applicable, any city generated purchase order or contract number related to the transaction for which the invoice is being generated;

(f) Reflects prices on the invoice that are reasonable or just and in accordance with the order or bid;

(g) Is submitted by a contractor that has provided to the director of finance or designee an accurate taxpayer identification number and all other information necessary to identify the recipient of the city payment to the U S Internal Revenue Service or other taxing authority;

(h) Is submitted in substantial compliance with the city's billing or invoicing instructions, including but not lim-

ited to instruction as to provision or delivery of the invoice to the proper city official or agency;

(i) Reflects that, if applicable, the contractor has complied with all pertinent requirements of and/or special conditions and other terms or conditions of the contract at issue;

(j) Is otherwise complete and free of errors;

(k) Reflects that no unresolved disputes exist between the contractor and the city with respect to the subject matter of the invoice.

(Ordained by Ord. No. 297-2002, eff. Sept. 18, 2002)

Sec. 319-1-C2. Contract.

"Contract" shall mean a formally executed, written contract or lease, or purchase order or other lawfully incurred contractual purchase obligation, prepared and undertaken in compliance with standard city procurement procedures, evidencing a lawfully incurred contractual obligation to which the city is a party and incurs financial obligations to the other party or parties.
(Ordained by Ord. No. 297-2002, eff. Sept. 18, 2002)

Sec. 319-1-C3. Contractor.

"Contractor" means a contractor, consultant, vendor or lessor under a city contract.
(Ordained by Ord. No. 297-2002, eff. Sept. 18, 2002)

Sec. 319-1-D. Day.

"Day" means calendar day, except city holidays.
(Ordained by Ord. No. 297-2002, eff. Sept. 18, 2002)

Sec. 319-1-D1. Discount.

"Discount" means a contractor authorized reduction of an account payable for early payment of a demand.
(Ordained by Ord. No. 297-2002, eff. Sept. 18, 2002)

Sec. 319-1-D2. Due Date.

"Due date" means the day a payment made by the city pursuant to a complete and responsive invoice is scheduled to be paid without assessment of interest. Such date may be calculated using contract payment terms specified in the invoice or as soon thereafter as may be practicable, as set out in Section 319-5 below.
(Ordained by Ord. No. 297-2002, eff. Sept. 18, 2002)

Sec. 319-1-E. Expending Authority.

"Expending authority" means the official of the city division or department having authority by ordinance to expend monies with respect to a particular invoice, or such person's designee.
(Ordained by Ord. No. 297-2002, eff. Sept. 18, 2002)

Sec. 319-1-I. Interest Accrual Date.

"Interest accrual date" is the date upon which the city begins to incur an obligation to pay interest on an unpaid complete and responsive invoice previously received by the city. The interest accrual date shall be the later of thirty (30) days after the date on which the city division or department responsible for ordering the goods or services receives a complete and responsive invoice as evidenced by the city's time-stamped imprint, or the date to which the interest accrual date applicable to such invoice is adjusted as set out herein.
(Ordained by Ord. No. 297-2002, eff. Sept. 18, 2002)

Sec. 319-1-I2. Invoice Date.

"Invoice date" is the date of receipt by the city of the contractor's complete and responsive invoice.
(Ordained by Ord. No. 297-2002, eff. Sept. 18, 2002)

Sec. 319-1-P. Payment.

"Payment" means:

(a) The city treasurer places a city check or other commercial payment instrument into the U S Mail, postage prepaid,

(b) A city check or other commercial payment instrument is available for pick-up at the request of the contractor or the expending authority, or

(c) Funds are transferred electronically from the city to the contractor.

(Ordained by Ord. No. 297-2002, eff. Sept. 18, 2002)

Sec. 319-1-P2. Prompt Payment Dispute Arbiter.

"Prompt payment dispute arbiter" is the individual designated to settle disputes. Such arbiter shall be appointed by the city manager or designee with the advice and consent of the finance director.
(Ordained by Ord. No. 297-2002, eff. Sept. 18, 2002)

Sec. 319-1-P3. Prompt Payment.

"Prompt payment" means issuance of a city check or other commercial payment instrument by the city treasurer in payment of an account payable on the basis described below in Section 319-5(a).
(Ordained by Ord. No. 297-2002, eff. Sept. 18, 2002)

Sec. 319-1-S. Subcontractor.

"Subcontractor" means subcontractors, subconsultants and suppliers of all tiers under contractors as defined herein.
(Ordained by Ord. No. 297-2002, eff. Sept. 18, 2002)

Sec. 319-3. Exclusions from Coverage of Chapter.

The following categories of payments are excluded from coverage by this chapter and shall not bear interest as set out herein:

(a) Pre-payments;

(b) Employee reimbursements;

(c) Refunds;

(d) Retainage prior to final payment;

(e) Payments for which the contractor voluntarily agrees to waive interest;

(f) Contracts in which employees are paid through the regular city payroll process;

(g) Settlement agreements entered into by the law department;

(h) Non-contractual assistance payments including but not limited to earned income credits;

(i) Workers' compensation employee and provider compensation claims;

(j) Payments to contractors drawn down directly from non-city accounts;

(k) Other claims or litigation against the city and/or its employees cognizable in any court, arbitration, or administrative proceeding;

(l) Lease-purchase agreements, loans or agreements similar in concept and execution, that require periodic standardized payments by the city;

(m) Contractual payments for which the contractor has willfully refused to follow billing or invoice submittal instructions duly provided by the City.;

(n) Payments to utility companies for ongoing utility service used by the City;

(o) Incomplete and/or non-responsive invoices.

(Ordained by Ord. No. 297-2002, eff. Sept. 18, 2002)

Sec. 319-5. Process for Prompt Payment of Invoices and for Payment of Accrued Interest.

(a) This section shall apply to and govern the process for prompt payment and for payment of accrued interest on a complete and responsive invoice as set out in Section 319-13 below. Interest in the amount provided at Section 319-13, up to a maximum of 10% of the total contract amount, shall be assessed and paid with respect to an account payable commencing on the later of thirty (30) days after the invoice date or the date to which the interest accrual date is adjusted as set out herein unless an unresolved dispute between the city and the contractor is pending.

(b) Upon receipt of a complete and responsive invoice the city shall endeavor to issue payment within thirty days or, as provided in the terms or conditions of the contract, provided that, if it is not practicable to do so in the city's sole discretion, payment shall be rendered as soon thereafter as is practicable.

(1) In addition, the city may extend or shorten the due date if the terms of the contract at issue are more advantageous to the city than the terms of this chapter. The expending authority shall specifically request such treatment for a particular payment.

(2) The city shall also take any and all discounts offered by a contractor, to which the city is lawfully entitled, if such terms are more advantageous to the city than the terms of this chapter.

(3) Partial payments shall be made upon partial deliveries, partial contract completion, or passage of a portion of a lease term, to the extent that may be authorized in the terms or conditions of the contract at issue.

(c) Interest shall accrue and be paid on an unpaid complete and responsive invoice beginning on the thirtieth (30th) day after the invoice date unless the interest accrual date has been extended beyond such thirtieth (30th) day by being adjusted as described in Section 319-7, "Adjustments to interest accrual date."

(d) If any payment to a contractor on an invoice is delayed beyond the interest accrual date the city shall pay interest to the contractor on such unpaid payment as provided herein from such interest accrual date, as the same may be adjusted, until the date that payment is rendered by the city, up to a maximum of 10% of the total contract amount. (Ordained by Ord. No. 297-2002, eff. Sept. 18, 2002)

Sec. 319-7. Adjustments to Interest Accrual Date.

(a) If an invoice is not complete and responsive, the interest accrual date shall be adjusted to reflect the delay between the invoice date and the point in time when the invoice is rendered complete and responsive as determined by the expending authority or the finance department.

(b) If an invoice is not complete and responsive the expending authority or the finance department shall notify the contractor in writing or by documented phone call, facsimile transmission, or e-mail within fifteen (15) days after the invoice date. The contractor shall in that event be required, at its option, to demonstrate in writing or by documented phone call, facsimile transmission, or

e-mail, to the expending authority that the originally submitted invoice has become complete and responsive, or to resubmit a new complete and responsive invoice, unless the contractor disputes the city's characterization of the original invoice as not complete and responsive, in which case the dispute shall be resolved as set out in Section 319-11(a).

(c) If the contractor is not notified within the time specified above, the interest accrual date will be adjusted as follows:

the thirty (30) day period for payment shall run from the original invoice date to the city's notification date at which time it shall be tolled until such time as a new invoice is received or accepted by the city after which the period for payment shall recommence until the date of payment.

(d) The interest accrual date for rendering of interest to the contractor shall be extended and adjusted in the following cases:

(1) When the invoice is not complete and responsive, the interest accrual date shall be extended by the number of days elapsed between the original invoice date and the date that the contractor, based on its election of remedies:

(i) Demonstrates to the expending authority that the invoice has become complete and responsive, or

(ii) Resubmits the complete and responsive invoice to the expending authority.

(Ordained by Ord. No. 297-2002, eff. Sept. 18, 2002)

Sec. 319-9. Subcontractors.

This section shall apply to and govern the payment process for all subcontractors:

(a) Except as otherwise provided in Sections 1311.25 through 1311.32 of the Ohio Revised Code, or any successor statute, contractors that engage subcontractors to perform part of the work on a contract with the city shall pay subcontractors for satisfactory work in a timely fashion. A payment is timely if it is mailed, delivered or transferred to the subcontractor no later than ten (10) days after the contractor's receipt of any payment from the city.

(b) If a subcontractor is not paid in a timely fashion, the contractor shall pay interest on the balance due from the eleventh (11th) day after the contractor's receipt of any payment from the city, at the rate specified herein, unless a bona fide dispute exists between the contractor and such subcontractor.

(c) Subcontractors receiving payment as described herein shall pay their subcontractors, and be liable for interest on late payments, in the same manner as contractors are required to pay subcontractors in this section.

(d) All contractors shall promptly render payment to all subcontractors on a contract. Each contractor shall provide with each invoice to the city on each contract, beginning with the second invoice, proof of payment to subcontractors, in form and content approved by the director of finance, evidencing that all subcontractors have been duly paid out of the proceeds of the contractor's payments from the city under the contract, unless a bona fide dispute, documented in writing exists between the contractor and the unpaid sub-contractor.

(e) Notwithstanding the payment procedure otherwise set out in Section 319-7, or the provisions of any definition contained in this chapter, the process-

ing of final pay requests on construction, reconstruction and remodeling projects shall be as follows:

(1) Time elapsed awaiting receipt by the city of a final release from a contractor with respect to a final payment, time elapsed in publication for and holding of final settlement pursuant to Sections 1311.25 through 1311.32 of the Ohio Revised Code or successor statute or time elapsed in the expending authority's or director of finance's seeking of legal advice or guidance from the department of law shall not count in the calculation of the interest accrual date as set out herein. Receipt by the expending authority of a final payment request invoice with all other conditions precedent required by the definition of complete and responsive invoice satisfied and an invoice date stated will commence the interest accrual date for a final payment based on the invoice date. With the exception of those steps set out in subsection (2) hereof, and except as provided in Section 319-19, all steps necessary to process a final payment, subsequent to the receipt by the expending authority of the complete and responsive invoice for such final payment, shall count as part of the interest accrual date calculation.

(2) With respect to the tolling of the interest accrual date calculation for such final payment the time elapsed in publishing for and holding final settlement pursuant to Sections 1311.25 through 1311.32 of the Ohio Revised Code or successor statute, the time elapsed from the tender by the city to the contractor of a final release on the final payment until the return of such release to the expending authority, and the time elapsed in the expending authority's or director of finance's seeking of legal advice or guidance from the department of law shall not count in the calculation of the interest accrual date as set out herein.

(Ordained by Ord. No. 297-2002, eff. Sept. 18, 2002)

Sec. 319-11. Errors and Disputes.

(a) *Contractor disputes.*

(1) Disputes arising between contractors and the city as a result of official, design professional, or consultant disapproval of invoices shall be resolved in accordance with the contract documents or with the dispute resolution mechanisms in place for the particular assigned contracting agency. Otherwise, disputes arising between contractors and the city as a result of the expending authority and/or department of finance disapproval of invoices shall be resolved through the procedure set out in the contract bid documents. Disputes arising between contractors and the city as a result of the director of finance's disapproval of invoices shall be resolved through procedures established by the director of finance. Disputes pertaining to prevailing wages shall be resolved pursuant to state or federal law. Disputes between or among contractors and subcontractors arising out of the provisions of this chapter shall be resolved through a private right of action, provided that, such private right of action is not intended to grant and

shall not grant subcontractor third-party beneficiary status in any contract between the city and a contractor. The city shall have no authority or obligation to adjudicate, enforce, determine, or otherwise participate in disputes between or among contractors or subcontractors arising out of the provisions of this chapter.

(b) *Internal disputes.* Disputes regarding the allocation of interest and/or the amount assessed may be referred to the prompt payment arbiter.
(Ordained by Ord. No. 297-2002, eff. Sept. 18, 2002)

Sec. 319-13. Interest Assessment.

(a) Interest shall be assessed and paid with respect to an account payable commencing on the later of thirty (30) days after the invoice date or the date to which the interest accrual date is adjusted as set out herein, unless an unresolved dispute between the city and the contractor is pending.

(b) The director of finance is authorized to calculate interest due, charge the applicable appropriation, and interest to the contractor at the time payment is made on the principal of any account payable.

(c) Any interest paid by the city pursuant to this chapter shall be paid at the interest rate for the calendar year, (i.e., rate per annum), which is established by the tax commissioner of the Ohio department of taxation pursuant to section 5703.47 of the Ohio Revised Code. The city shall apply the interest rate for the calendar year which includes the month for which the interest charge accrued. If the calculated interest on a single invoice is less than ten dollars ($10.00), such interest shall not be payable by the city.

(d) Funds for the payment of interest under this section shall be allocated and encumbered from the expending authority's budget.

(e) When federal, state or private grant regulations or statutes prevent the city from charging the federal, state or private funds with interest assessment, the city shall identify an alternative source to assess interest on late payments.
(Ordained by Ord. No. 297-2002, eff. Sept. 18, 2002)

Sec. 319-15. Reporting.

(a) The director of finance or designee and the budget director shall jointly report to the mayor and the city council, detailing the record of late payments and interest payments made by each department or agency pursuant to this chapter during the preceding year. This report shall be made semi-annually and shall include:

(1) The number and total dollar amount of late payments and interest payments by each department and agency, and city-wide:

(2) The percentages that the dollar amount of late payments and interest payments represent of the total dollars spent on contracting for all goods and services of whatever kind by each department and agency, and city-wide,

Any department or agency affected by subsection (a) above shall submit recommendations for specific actions to reduce the incidence of late payments

(b) The director of finance will make interest assessments and discount reduction amounts available to each department or agency on a monthly basis.

(c) The director of finance will make an annual presentation to city council regarding the previous year's interest assessments and discount reductions. Any department or agency

affected by subsection (a) above shall be available to present or submit written justification upon request from city council.
(Ordained by Ord. No. 297-2002, eff. Sept. 18, 2002)

Sec. 319-17. Rules and Regulations; Internal Guidelines.

(a) Rules and regulations and internal guidelines may be promulgated to effectuate the purposes of this chapter as follows:

(1) The managers or directors of city agencies and departments may promulgate rules and regulations to effectuate the purposes of this chapter pertaining to contracts administered by, through or from their respective agency or department.

(2) The director of finance may promulgate rules and regulations to effectuate the purposes of this chapter pertaining to prevailing wages and/or payment to contractors.

(3) All such rules and regulations shall be consistent and harmonious. Nothing contained in this chapter shall preclude the city solicitor from taking appropriate legal action as deemed necessary.

(b) Any city agency may develop its own internal processes and guidelines for the purposes of prompt payment, so long as such processes and guidelines are consistent with this chapter and any such promulgated rules and regulations.
(Ordained by Ord. No. 297-2002, eff. Sept. 18, 2002)

Sec. 319-19. Miscellaneous.

(a) Nothing contained in this chapter shall preclude the city from retaining without payment of interest, project funds to cover project retainage as mandated by law and/or general or special conditions of construction, as applicable, by Sections 1311.25 through 1311.32 of The Ohio Revised Code, or by other terms or conditions of the contract at issue, or to cover claims filed pursuant to Sections 1311.25 through 1311.32 of The Ohio Revised Code by subcontractors or suppliers on a construction, reconstruction or remodeling project. Nothing contained in this chapter shall preclude the city from offsetting against a contractor, without payment of interest, amounts under a contract for payment of duly assessed liquidated damages by the city pursuant to general or special conditions or other terms or conditions of a construction, reconstruction or remodeling contract, or for other offsets against a contractor by the city based upon breach or default of a contract by such contractor.

(b) Notwithstanding anything otherwise contained in this chapter, neither the city nor any contractor or subcontractor shall have any obligation to pay interest when:

(1) Payment by the city of a progress payment is subject to and contingent upon appropriation or payment by the city of funds and reimbursement of such funds from the state or federal government, which reimbursement has not occurred on or before the interest accrual date,

(2) The amount requested under an invoice is subject to a dispute by the city upon which the city has prevailed against the contractor, and the city has otherwise not delayed payment beyond the interest accrual date,

(3) The city, pursuant to a dispute with a contractor, has set off and retained funds which would otherwise be payable to the contractor,

(4) The terms of the contract or subcontract, as applicable, specify other times

and methods of payment or methods of resolving disputes or interest owed on delinquent payments,

(5) There is a bona fide dispute between a contractor and a subcontractor or between subcontractors concerning the supplies, materials or equipment delivered or the services performed which causes the payment to be late,

(6) Funds which would be payable to a contractor are subject to a writ of garnishment or other lawful claim, lien or levy; or

(7) The city has been ordered by a court of competent jurisdiction not to pay funds to a contractor.

(Ordained by Ord. No. 297-2002, eff. Sept. 18, 2002)

Sec. 319-21. Effective Date.

This Chapter shall become effective on January 1, 2003, and shall apply to contracts dated on or after such date.

(Ordained by Ord. No. 297-2002, eff. Sept. 18, 2002)

Chapter 320

COMPLIANCE GUIDELINES FOR CONSTRUCTION CONTRACTS ISSUED BY WATER WORKS AND THE DEPARTMENT OF SEWERS*

Sec. 320-1. Definitions.
Sec. 320-1-A. Apprenticeable Occupation.
Sec. 320-1-A1. Apprenticeship Program.
Sec. 320-1-B. Bid.
Sec. 320-1-B1. Bidder.
Sec. 320-1-C. City.
Sec. 320-1-C1. Construction Contract.
Sec. 320-1-C2. Contractor.
Sec. 320-1-D. Director.
Sec. 320-1-M. Repealed.
Sec. 320-1-P. Project.
Sec. 320-1-P1. Project Labor Agreements.
Sec. 320-1-P2. Primary Apprenticeable Occupation.
Sec. 320-1-P3. Participate.
Sec. 320-1-R. Registration Entity.
Sec. 320-1-S. Specialized Construction.
Sec. 320-1-S1. Subcontractor.
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Sec. 320-3. Factors in Determination of Lowest and Best Bidder; Breach by Contractor.
Sec. 320-5. Apprenticeship Requirements.
Sec. 320-7. Pre-Apprenticeship Training Fund.
Sec. 320-9. Monitoring and Reporting.
Sec. 320-11. Violation and Penalty.
Sec. 320-13. Severability.

*__Editor's note—__Ord. No. 114-2013, § 1, effective June 1, 2013, changed the title of Ch. 320 from "Compliance Guidelines for Construction Contracts Issued by the Department of Sewers" to "Compliance Guidelines for Construction Contracts Issued by Water Works and the Department of Sewers."

Sec. 320-1. Definitions.

For the purpose of this chapter, the words and phrases defined in the sections hereunder shall have the meanings respectively ascribed to them, unless a different meaning is clearly indicated by the context.
(Ordained by Ord. No. 282-2012, § 1, eff. July 26, 2012)

Sec. 320-1-A. Apprenticeable Occupation.

"Apprenticeable Occupation" means one which:

(a) Is customarily learned in a practical way through a structured, systematic program of supervised training on the job;

(b) Involves manual, mechanical, and/or technical skills applicable in like occupations throughout an industry;

(c) Requires two thousand or more hours of work experience to learn;

(d) Requires related instruction to supplement the on-the-job experience training;

(e) Is clearly identified and commonly recognized or accepted throughout an industry; and

(f) Is recognized by the registration entity and/or the US office of apprenticeship as meeting the foregoing five criteria.

(Ordained by Ord. No. 282-2012, § 1, eff. July 26, 2012; a. Ord. No. 114-2013, § 1, eff. June 1, 2013)

Sec. 320-1-A1. Apprenticeship Program.

"Apprenticeship program" means a program that (1) is registered by the Ohio Apprenticeship Council and/or the United States Federal Department of Labor, or its successor organization; (2) that combines on-the-job training and related technical instruction, according to the specifications established by Title 29 of the Code of Federal Regulations (CFR), parts 29 and 30, and further established in Ohio under division 5101:11 of the Ohio Administrative Code; and (3) that has graduated apprentices annually in the primary apprenticeable occupation on the project, as defined in Section 320-1-P2, for at least the previous five (5) years.
(Ordained by Ord. No. 114-2013, § 3, eff. June 1, 2013)

Sec. 320-1-B. Bid.

"Bid" shall mean an offer made by a bidder in response to an "Invitation to Bid" for a construction contract.
(Ordained by Ord. No. 282-2012, § 1, eff. July 26, 2012)

Sec. 320-1-B1. Bidder.

"Bidder" shall mean an individual, partnership, corporation or other entity that responds to the city's "Invitation to Bid" for a construction contract.
(Ordained by Ord. No. 282-2012, § 1, eff. July 26, 2012; a. Ord. No. 114-2013, § 1, eff. June 1, 2013)

Sec. 320-1-C. City.

"City" means the City of Cincinnati, Ohio.
(Ordained by Ord. No. 282-2012, § 1, eff. July 26, 2012; Emer. Ord. No. 055-2018, § 3, eff. March 21, 2018)

Sec. 320-1-C1. Construction Contract.

"Construction Contract" means any agreement whereby the city or its departments is committed to expend or does expend funds or other resources, or federal grant opportunities, in an amount of $400,000 or more, as determined at the time the contract is executed, for the erection, rehabilitation, improvement, alteration, conversion, extension, demolition or repair of improvements

to sewers and sewerage treatment facilities, or to facilities used by the water works in the provision of water service, or to facilities used by the stormwater utility division for the management of stormwater and includes the supervision, inspection, and other on-site functions incidental to construction, but does not include professional services. "Construction Contract" does not include (1) contracts where an invitation to bid is released prior to the effective date of this law; (2) contracts where an invitation to bid is issued by the city on behalf of one of its departments other than water works, the department of sewers, or the stormwater management utility division; (3) contracts where application of any of the requirements of this chapter is prohibited by or in conflict with federal or state law or the terms of federal or state grants applicable to the contract; (4) contracts exclusively for the purchase of materials and/or equipment; (5) any contracts that are part of Project Labor Agreements in existence on the effective date of this law; or (6) contracts exclusively for the procurement of a specialized construction, as defined in Section 320-1-S.
(Ordained by Ord. No. 282-2012, § 1, eff. July 26, 2012; a. Ord. No. 114-2013, § 1, eff. June 1, 2013; Emer. Ord. No. 055-2018, § 3, eff. March 21, 2018)

Sec. 320-1-C2. Contractor.

"Contractor" means any person or company that has entered into a Construction Contract with the City.
(Ordained by Ord. No. 282-2012, § 1, eff. July 26, 2012; a. Ord. No. 114-2013, § 1, eff. June 1, 2013)

Sec. 320-1-D. Director.

"Director" means the director of Economic Inclusion.
(Ordained by Ord. No. 282-2012, § 1, eff. July 26, 2012; a. Ord. No. 114-2013, § 1, eff. June 1, 2013; Emer. Ord. No. 055-2018, § 3, eff. March 21, 2018)

Sec. 320-1-M. Repealed.
(Ordained by Ord. No. 282-2012, § 1, eff. July 26, 2012; r. Emer. Ord. No. 055-2018, § 2, eff. March 21, 2108.

Sec. 320-1-P. Project.

"Project" means a project in which work is being performed under a Construction Contract as defined in Section 320-1-C1.
(Ordained by Ord. No. 282-2012, § 1, eff. July 26, 2012)

Sec. 320-1-P1. Project Labor Agreements.

"Project Labor Agreements" shall mean a pre-hire collective bargaining agreement with one or more labor organizations that establishes the terms and conditions of employment for a specific construction project.
(Ordained by Ord. No. 282-2012, § 1, eff. July 26, 2012)

Sec. 320-1-P2. Primary Apprenticeable Occupation.

"Primary Apprenticeable Occupation" shall mean the apprenticeable occupation that comprises the largest number of hours on the project, as determined by the number of construction hours expected to be performed in that apprenticeable occupation at the time the construction contract is executed.
(Ordained by Ord. No. 114-2013, § 3, eff. June 1, 2013)

Sec. 320-1-P3. Participate.

"Participate" as used in Section 320-5 shall include entering into a written contract or agreement with an organization or business that is registered with or certified by the Ohio State Apprenticeship Council or its successor as providing an apprenticeship

program in the primary apprenticeable occupation that extends for the duration of the project.
(Ordained by Emer. Ord. No. 055-2018, § 1, eff. March 21, 2018)

Sec. 320-1-R. Registration Entity.

"Registration Entity" shall mean the Ohio State Apprenticeship Council or the United States Department of Labor.
(Ordained by Ord. No. 114-2013, § 3, eff. June 1, 2013)

Sec. 320-1-S. Specialized Construction.

"Specialized Construction" shall mean a construction method or material that requires a highly technical expertise which can be provided only by a limited pool of specialized contractors for a capital project that comprises 4% or less of the capital expenditures from the previous fiscal year or capital program budget year of the applicable city department of sewers, water works, or stormwater management utility capital program.
(Ordained by Ord. No. 114-2013, § 3, eff. June 1, 2013; Emer. Ord. No. 055-2018, § 3, eff. March 21, 2018)

Sec. 320-1-S1. Subcontractor.

"Subcontractor" means any person or company that performs through a secondary contract some or all of the obligations of the contractor.
(Ordained by Ord. No. 282-2012, § 1, eff. July 26, 2012)

Sec. 320-1-W. Worker.

"Worker" shall be defined in the same manner as "Employee" in Section 4101:9-4-02(K) of the Ohio Administrative Code regarding prevailing wage, including any amendments thereto.
(Ordained by Emer. Ord. No. 223-2018, § 1, eff. June 27, 2018)

Sec. 320-3. Factors in Determination of Lowest and Best Bidder; Breach by Contractor.

Where not otherwise prohibited by or in conflict with federal, state, or local law or the terms of federal or state grants, every construction contract that goes out to bid after the effective date of this law shall require the bidder to make the following certifications or disclose the following specified information within ten (10) days after the bid opening. Failure of a bidder to affirmatively certify any one of the following criteria or to provide any of the requested information or documentation, as determined by the city, may constitute evidence of the bid to not be lowest and best. Failure of a contractor to comply with any of its certifications during contract performance, shall constitute a material breach and may subject the contractor to all remedies available to the city at law, including, but not limited to, disqualification of the bidder from bidding on current or future contracts, suspension of payments to the contractor under the construction contract, and termination of the construction contract for cause. In the determination of whether a bidder is lowest and best, the factors below shall be considered in addition to any other factors permitted to be considered pursuant to CMC Section 321-37. The requirements of this section are intended to be additional to the requirements under CMC Chapter 321 and nothing in this section shall be construed to waive or take the place of the requirements and procedures set forth in CMC Chapter 321.

(a) The bidder shall disclose any and all violations by the bidder and any allegations of violation made against the bidder regarding the prevailing wage law or any other state or federal labor law, including but not limited to, child labor violations, failure to pay wages, or unemployment insur-

ance tax delinquencies or unfair labor practices within the past five (5) years.

(b) The bidder shall certify whether it will employ supervisory personnel on the project who are qualified to supervise those employees who report to them. The bidder shall also certify whether its supervisory personnel on the project have any license or licenses required by law.

(c) The bidder shall provide a list of every occasion on which it has been debarred by any state or federal public entity. For purposes of this paragraph, "debarred" means exclusion from performing local, state or federal construction contracts.

(d) The bidder shall certify whether it requires any individual or subcontractor performing any work under the construction contract to have completed at least ten (10) hours of the required Occupational Safety and Health Administration (OSHA)-compliant safety program, and will provide evidence of such upon request. The bidder with its bid shall identify all citations issued to it by OSHA within the previous three (3) years. Bidders shall also provide an explanation of the disposition of the citations, including if they were withdrawn. The bidder shall provide the terms of all settlements or the bidder shall provide the outcome of all adjudications.

(e) Each bidder and subcontractor shall certify whether it meets one of the following:

(1) It is in compliance with Ohio's Drug-Free Workplace requirements, pursuant to Ohio Administrative Code § 4123-17-53; or

(2) It provides a drug-free workplace by sponsoring and implementing a program approved by the Ohio Bureau of Workers' Compensation; or

(3) It provides a drug-free workplace by sponsoring and implementing or participating in a program which provides for drug testing and its personnel working under the construction contract are subject to the program.

Each bidder and subcontractor shall provide a copy of its substance abuse policy or evidence thereof upon request.

(f) Any bidder or subcontractor that has an affirmative action plan shall certify that it operates under an affirmative action plan. The contractor shall disclose any and all violations within the previous five (5) years pertaining to unlawful intimidation or discrimination against any employee by reasons of race, creed, color, disability, sex or national origin and/or violations of any employee's civil or labor rights or equal employment opportunities.

(g) The bidder shall certify whether it has all necessary licenses required by the applicable state law and regulation to perform on the project. If any such work shall be performed by a subcontractor who has such license or licenses, the bidder shall provide a similar certification for that subcontractor.

(h) The bidder shall provide a list of any final judgments that have not been satisfied at the time the bid was submitted, including the outstanding amount, the total award, and the basis for the award. In addition, the

bidder shall identify all contracts on which the bidder has been terminated prior to completion of the work covered by the contract.

(i) Each bidder shall certify whether for any prime construction contract, it agrees not to subcontract more than seventy-five per cent (75%) of the bid amount for the construction contract. The bidder shall identify all work that it will subcontract.

(j) Unless otherwise agreed to in a collective bargaining agreement, the bidder shall certify whether it provides, or contributes to, a health care plan for those employees working on the project and shall provide a copy of the health plan upon request. The contributions toward a health care plan must be part of the employee's regular compensation, and not merely part of the employee's compensation during the period of time for which the employee is performing work on the project. The certification required by this subsection shall not apply to a bidder or contractor that has gross revenues of $2,000,000.00 or less in any of the three (3) preceding tax years, as demonstrated by the bidder's or contractor's tax returns.

(k) Unless otherwise agreed to in a collective bargaining agreement, the bidder shall certify whether it contributes to an employee pension or retirement program, including, but not limited to, a 401K, a defined benefit plan, or similar plan, for its field employees working on the project and shall provide a copy of the plan upon request. The contributions toward a pension or retirement program must be a part of the employee's regular compensation, and not merely part of the employee's compensation during the period of time for which the employee is performing work on the project. The certification requested by this subsection shall not apply to a bidder or contractor that has gross revenues of $2,000,000.00 or less in any of the three (3) preceding tax years, as demonstrated by the bidder's or contractor's tax returns.

(l) The bidder shall provide its Experience Modification Rating.

(m) The bidder shall disclose any criminal convictions or criminal indictments involving the bidder, its officers, directors, owners and/or managerial employees within the past five (5) years.

(n) The bidder shall disclose any litigation (including copies of pleadings) in which the bidder has been named as a defendant or third party defendant in an action involving a claim for personal injury or wrongful death arising from performance of work in which it has been engaged within the previous five (5) years.

(o) The bidder shall disclose and provide a description of any projects within the previous five (5) years for which the bidder was not awarded a contract by a public entity, the reasons given by the public entity, together with an explanation thereof.

(p) The bidder shall provide a copy of all documents that evidence that it maintains or participates in an apprenticeship program as required by Section 320-5.

(Ordained by Ord. No. 282-2012, § 1, eff. July 26, 2012; a. Ord. No. 114-2013, § 1, eff. June 1, 2013; Emer. Ord. No. 055-2018, § 3, eff. March 21, 2018)

Sec. 320-5. Apprenticeship Requirements.

Where not otherwise prohibited by or in conflict with federal, state or local law or the terms of federal or state grants applicable to the construction contract, each bidder shall certify that:

(a) For the duration of the project, the bidder will maintain or participate in an apprenticeship program for the primary apprenticeable occupation on the project; and

(b) For the duration of the project, the bidder's subcontractor(s) who perform work in the primary apprenticeable occupation for the project will maintain or participate in an apprenticeship program for that primary apprenticeable occupation

(c) Subsection (b) shall not apply to a subcontractor whose subcontract is less than $350,000.00, including labor and materials, at the time the subcontract is executed and that is any of the following:

(1) A small business enterprise or a small or emerging local business enterprise certified by the city as set forth in CMC Chapter 323; or

(2) A minority business enterprise or women business enterprise certified by the city as set forth in CMC Chapter 324.

Prior to the city's executing a construction contract, the director shall require the bidder to produce documentation relating to the requirements of subsection (a) above. Such documentation shall include the following information regarding the apprenticeship program the bidder plans to maintain or participate in during the project: the occupation code, apprentice identification number, and indenture date for at least one apprentice that has graduated from the apprenticeship program for each of the past five (5) years. Such documentation shall be in a form as provided by the applicable registration entity. The bidder shall supply the same documentation described above for the bidder's subcontractor(s) under subsection (b) of this section, as soon as practicable after the bidder has identified the subcontractor(s) for the project and prior to the subcontractor(s) beginning work on the project. If the bidder requests an exemption for a subcontractor under subsection (c), the bidder must supply documentation that shows that the value of the executed subcontract with that subcontractor is under $350,000.00 and that the subcontractor is a small business enterprise or a small or emerging local business enterprise certified by the city as set forth in CMC Chapter 323 or a minority business enterprise or women business enterprise certified by the city as set forth in CMC Chapter 324. If requested, the bidder shall also provide documentation supporting the bidder's determination of the primary apprenticeable occupation.

A construction contract shall not be executed with a bidder who fails to make the certifications and/or provide the documentation required by this section. Failure of a contractor to comply with the requirements of this section during the performance of the construction contract shall constitute a material breach and may subject the contractor to all remedies available to the city at law, including, but not limited to, disqualification of the contractor from bidding on current or future contracts, suspension of payments to the contractor under the construction contract, and termination of the construction contract for cause.

(Ordained by Ord. No. 282-2012, § 1, eff. July 26, 2012; a. Ord. No. 114-2013, § 1, eff. June 1, 2013; Emer. Ord. No. 055-2018, § 3, eff. March 21, 2018)

Sec. 320-7. Pre-Apprenticeship Training Fund.

Contractors shall pay $.08 per hour per worker for the purpose of funding qualified pre-apprenticeship programs that will create a pipeline of opportunities from recruitment to placement to retention. This payment shall go into Water Works Fund 101 where the project is managed by water works. Failure of a contractor to make the payment required under this section shall constitute a material breach and may subject the contractor to all remedies available to the city at law, including, but not limited to, disqualification of the contractor from bidding on current or future contracts, suspension of payments to the contractor under the construction contract, and termination for cause. The payments required under this section shall not be taken from the fringe benefits of the contractor's employees. Notwithstanding any requirement to the contrary in CMC Chapter 321, any pre-apprenticeship program that receives funding through this section shall be selected through the competitive proposals process applicable to services contracts described in CMC Section 321-51.

To be designated as a qualified pre-apprenticeship training program, the program will:

(a) Provide health and safety training that has received OSHA 10, CPR and First Aid certification;

(b) Have a least five (5) defined partnerships with apprenticeship programs;

(c) Ensure that a majority of its trainees are women, people of color, residents of low-income communities, ex-offenders, and/or veterans;

(d) Offer mentoring, follow-up monitoring and case management support to ensure retention of participants in the program; and

(e) Demonstrate that it graduates and places trainees from low-income or minority communities in construction careers; and

(f) Provide documentation demonstrating that it has been recognized as a pre-apprenticeship training program by a registration entity; and

(g) Have articulated credits through a community college or four-year program and show proof of such through an articulation agreement.

This Section 320-7 shall be effective beginning July 1, 2018.
(Ordained by Ord. No. 282-2012, § 1, eff. July 26, 2012; a. Ord. No. 114-2013, § 1, eff. June 1, 2013; Emer. Ord. No. 055-2018, § 3, eff. March 21, 2018)

Sec. 320-9. Monitoring and Reporting.

(a) The director or his designee shall monitor the use of apprentices on all projects.

(b) The contractor shall prepare and submit accurate and timely worker utilization forms and reports to the city. Time reports shall be submitted with each payment application. The reports shall identify the name, address, work classification, whether the worker is an apprentice, and the hours worked of all employees utilized by the contractor and subcontractor on the project.

(c) The contractor shall maintain all personnel records relating to the requirements of this chapter for a period of at least three (3) years after final completion of the work. This retention period may be extended in writing by the director or his designee based upon audit irregularities.
(Ordained by Ord. No. 282-2012, § 1, eff. July 26, 2012)

Sec. 320-11. Violation and Penalty.

(a) No contractor or bidder shall knowingly falsify any required reports, statements or payroll certifications. Any contractor who knowingly falsifies reports, statements, the certification of payroll, or any certification, documentation, and data requested under the provisions of this chapter is guilty of a misdemeanor of the first degree and is liable for the civil fine specified in Section 1501-99 for a Class E1 Civil Offense. If a contractor is convicted under this division, that contractor shall be barred from contracting with the city on any construction project subject to this chapter for a period of five (5) years.

(b) The imposition of any penalty or fine under this section shall not preclude the city from exercising any other rights or remedies to which it is entitled.
(Ordained by Ord. No. 282-2012, § 1, eff. July 26, 2012; Emer. Ord. No. 055-2018, § 3, eff. March 21, 2018)

Sec. 320-13. Severability.

Each section and each part of each section of this chapter is declared to be an independent section or part of a section, and notwithstanding any other evidence of legislative intent, it is declared to be the controlling legislative intent that if any section or part of a section or any provision thereof, or the application thereof to any person or circumstances, is held to be invalid, the remaining sections or parts of sections and the application of such provision to any other person or circumstances, other than those as to which it is held invalid, shall not be affected thereby. It is further declared to be the legislative intent that the other provisions of this Code would have been adopted independently of such section or parts of a section which are held to be invalid.
(Ordained by Ord. No. 282-2012, § 1, eff. July 26, 2012)

Chapter 321

PROCUREMENT AND DISPOSAL OF SUPPLIES, SERVICES AND CONSTRUCTION*

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Sec. 321-1. Definition.

For the purpose of this chapter, the words and phrases defined in the sections hereunder shall have the meanings therein respectively ascribed to them, unless a different meaning is clearly indicated by the context.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992)

Sec. 321-1-A. Advertisement.

"Advertisement" shall mean the notification of an invitation to bid or request for proposal by publication in a newspaper of general circulation in the city or a newspaper regularly published under the authority of the council or publication via a web-based procurement system as authorized by Section 321-4.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; Emer. Ord. No. 126-2013, § 1, eff. May 15, 2013)

Sec. 321-1-A1. Announcement.

"Announcement" shall mean the notification of an invitation for bids or request for proposal or qualifications by any means of communication approved by the city purchasing agent, and shall include e-mail or an equivalent form of communication.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; a. Ord. No. 177-2008, §§ 1, 2, eff. June 29, 2008; Emer. Ord. No. 376-2015, § 2, eff. Jan. 1, 2016)

Sec. 321-1-A2. Award.

"Award" shall mean the written notice of acceptance of a bid or proposal by the city purchasing agent, board or commission, or his/her/its designee. The written notice may be a separate document or the contract itself prepared by the city purchasing agent or designee. The city may cancel an award at any time before the execution of the contract without any liability against the city.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; Emer. Ord. No. 376-2015, § 2, eff. Jan. 1, 2016)

Sec. 321-1-B. Best Interest of the City.

"Best interest of the city" shall mean any decision made by the city manager or city purchasing agent or their designee that the officer concerned believes a specific bid may be of benefit to the efficiency or effectiveness of the operation of the city. This is a matter of discretion and the decision of the officer concerned is final.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992)

Sec. 321-1-B1. Bid.

"Bid" shall mean an offer in response to an "Invitation to Bid" to provide or dispose of supplies, service or construction.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; a. Emer. Ord. No. 177-2008, § 4, eff. June 29, 2008)

Sec. 321-1-B2. Bidder.

"Bidder" shall mean the individual, partnership, corporation or other entity responding to the city's "Invitation for Bid."
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992)

Sec. 321-1-C. City Purchasing Agent/ Chief Procurement Officer.

"City purchasing agent and "chief procurement officer" shall mean the person designated by the city manager as the chief procurement officer of the city to whom procurement authority has been delegated by the city manager or assigned by ordinance. The titles "city purchasing agent" and "chief procurement officer" may be used interchangeably and shall refer to the same position in the city.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; Emer. Ord. No. 376-2015, § 2, eff. Jan. 1, 2016)

Sec. 321-1-C1. Competitive.

"Competitive" shall mean the procedure established by ordinance or the city purchasing agent through which the city solicits and receives bids or proposals to furnish supplies, services, or construction, which procedure is designed to place bidders and offerors on equal terms with respect to advertising, opening, acceptance and evaluation.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992)

Sec. 321-1-C2. Concession.

"Concession" shall mean a contract between the city, its boards or commissions, and a bidder or offeror, whereby the city, its boards or commissions receive revenue from a bidder or offeror to use public property for the sale or disposal of a product or service.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992)

Sec. 321-1-C3. Construction.

"Construction" shall mean any construction, reconstruction, improvement, enlargement, alteration, repair, painting, decorating, wrecking or demolition, of any public improvement where the total overall project cost is fairly estimated to exceed the prevailing wage threshold set by Federal or Ohio statutes and the work will be performed by other than full-time employees who have completed their probationary periods in the classified service of a public authority.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; Emer. Ord. No. 376-2015, § 2, eff. Jan. 1, 2016)

Sec. 321-1-C4. Contract.

"Contract" shall mean all written agreements of the city of Cincinnati, its boards or commissions, prepared and signed by the city purchasing agent or a board or commission for the procurement or disposal of supplies, service or construction. City contracts include, but are not limited to:

(a) Contracts.

(b) Agreements.

(c) Purchase orders.

(d) Annual orders.

(e) No certifications.

(f) Disposal contracts.

(g) Requirement contracts.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; a. Emer. Ord. No. 177-2008, § 4, eff. June 29, 2008; Emer. Ord. No. 376-2015, § 2, eff. Jan. 1, 2016)

Sec. 321-1-C5. Contract Alteration, Modification, Change Order.

"Contract alteration," "modification" or "change order" shall mean any written alteration in specifications, delivery point, rate of delivery, period of performance, service, quantity or other provisions of any contract.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992)

Sec. 321-1-C6. Contractor.

"Contractor" shall mean any person having a contract with the city.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992)

Sec. 321-1-D. Debar.

"Debar" shall mean the removal of a specific contractor from awards for a specific commodity or all awards.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992)

Sec. 321-1-D1. Development.

"Development" means a project, or multiple projects, involving the remodeling or construction of real property by an entity other than the city, the completion of which is required by the city pursuant to an agreement. Notwithstanding the foregoing, The Banks Project in the Central Business District shall not constitute a development for the purposes of Section 321-118.
(Ordained by Ord. No. 093-2016, § 1, eff. July 1, 2016)

Sec. 321-1-D2. Development Agreement.

"Development agreement" means any agreement the city has with any person or other entity involving a development where the aggregate construction or remodeling cost of the development and any public infrastructure improvements constructed or remodeled in connection therewith equals or exceeds $5,000,000, and where, for the purpose of building public infrastructure in connection with a development or providing subsidies or incentives to a development, the city provides one or more incentives or benefits, the aggregate net present value of which, at the time of the execution of such agreement, is anticipated by the city to equal or exceed $3,000,000 over the expected term of the agreement, including, but not necessarily limited to, the following:

(a) Earnings tax credits;

(b) Direct grants or payments, or forgivable loans, of city funds, including without limitation the following, but excluding any portion of a loan of city funds that is non-forgivable:

(1) Funds consisting of service payments in lieu of taxes in connection with tax increment financing pursuant to Ohio Revised Code section 5709.40, Ohio Revised Code chapter 725, and other comparable tax increment financing arrangements as may be authorized by the State of Ohio from time to time; provided that funds consisting of service payments in lieu of taxes in connection with tax increment financing pursuant to Ohio Revised Code chapter 1728 or Ohio Revised Code sections 5709.40(B) or 5709.41 shall not count towards the $3,000,000 threshold;

(2) Funds consisting of the proceeds of debt obligations issued by the city; provided that if (i) such debt is to be repaid and secured solely by service payments in lieu of taxes in connection with tax increment financing pursuant to Ohio Revised Code chapter 1728 or Ohio Revised Code sections 5709.40(B) or 5709.41, (ii) the city has not pledged any property other than such service payments in lieu of taxes as collateral for such debt or as a source of repayment for such debt, and (iii) the city has not provided a guaranty or any other type of credit enhancement with respect to such debt, then funds consisting of the proceeds of such debt shall not count towards the $3,000,000 threshold; and

(3) Funds which constitute reimbursement or payment for the construction, by the person or other entity with whom the city has entered into such agreement, of public infrastructure improvements benefiting such person or other entity's development, unless such funds are otherwise subject to the exclusions described in this clause (b);

(c) The conveyance of real property, including buildings or other facilities, at no cost or below market cost;

(d) The issuance of debt obligations by the city and the use of the proceeds of the same for a development or for public infrastructure improvements benefiting a development, whether or not the city anticipates that a person or other entity other than the city will service such debt obligations, unless such debt obligations meet the criteria set forth in the proviso to clause (b)(2) of this definition; and

(e) The use of city funds for the construction by the city of public infrastructure improvements benefiting a development; provided that service payments in lieu of taxes in connection with tax increment financing pursuant to Ohio Revised Code chapter 1728 or Ohio Revised Code sections 5709.40(B) or 5709.41 shall not constitute city funds for the purpose of this clause (e).

Neither (i) real property tax abatements provided by the city pursuant to Ohio Revised Code section 3735.65 et seq. nor (ii) the value of statutory service payments in lieu of taxes not imposed by the city, with respect to exemptions granted under Ohio Revised Code sections 5709.40, 5709.41, or chapter 1728, shall count towards the $3,000,000 threshold.
(Ordained by Ord. No. 093-2016, § 1, eff. July 1, 2016)

Sec. 321-1-E. Electronic.

"Electronic" means related to technology having electric, digital, magnetic, wireless, optical, electromagnetic, or similar capabilities.
(Ordained by Emer. Ord. No. 177-2008, § 1, eff. June 29, 2008)

Sec. 321-1-E1. Electronic Agent.

"Electronic agent" means a computer program or an electronic or other automated means used independently to initiate an action or respond to electronic records or performances in whole or in part, without review or action by an individual.
(Ordained by Emer. Ord. No. 177-2008, § 1, eff. June 29, 2008)

Sec. 321-1-E2. Electronic Bid.

"Electronic bid" means a record communicated, received, or stored by electronic, magnetic, optical, or similar means for storage in an information system or transmission from one information system to another. "Electronic bid" includes a record that is communicated, received, or stored by electronic data interchange, electronic mail, facsimile, telex, or similar methods of communication.
(Ordained by Emer. Ord. No. 177-2008, § 1, eff. June 29, 2008)

Sec. 321-1-E3. Electronic Record.

"Electronic record" means a record created, generated, sent, communicated, received, or stored by electronic means.
(Ordained by Emer. Ord. No. 177-2008, § 1, eff. June 29, 2008)

Sec. 321-1-E4. Electronic Signature.

"Electronic signature" means an electronic sound, symbol, or process attached to or logically associated with a record and executed or adopted by a person with the intent to sign the record. It is any signature submitted electronically via the internet, facsimile or any other method deemed appropriate by the city purchasing agent.
(Ordained by Emer. Ord. No. 177-2008, § 1, eff. June 29, 2008)

Sec. 321-1-E5. Environmentally Preferable.

"Environmentally Preferable" shall mean supplies, services or construction that have a lesser or reduced effect on human health and the environment when compared with competing supplies, services or construction, including, but not limited to bio-based, environmentally preferred, energy efficient, water efficient, or recycled contents, that serve the same purpose. This comparison may consider raw materials acquisition, production, manufacturing, packaging, distribution, reuse, operation, maintenance, or disposal of the supply, service or construction.
(Ordained by Ord. No. 141-1994, eff. 6-3-94; a. Emer. Ord. No. 177-2008, § 4, eff. June 29, 2008)

Sec. 321-1-E6. Emerging Local Business Enterprise; ELBE.

"Emerging local business enterprise" or "ELBE" shall have the same meaning as provided in Section 323-1-E1 of the Cincinnati Municipal Code.
(Ordained by Emer. Ord. No. 376-2015, § 1, eff. Jan. 1, 2016)

Sec. 321-1-I. Invitation to Bid.

"Invitation to bid" shall mean the solicitation by the city purchasing agent or designee for quoted prices, and in some cases, specifications, on supplies, services and construction.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; a. Emer. Ord. No. 177-2008, § 4, eff. June 29, 2008)

Sec. 321-1-L. Repealed.
(Ordained by Ord. No. 124-2012, § 1, eff. May 18, 2012; r. Emer. Ord. No. 376-2015, §§ 2, 3, eff. Jan. 1, 2016)

Sec. 321-1-L1. Repealed.
(Ordained by Ord. No. 124-2012, § 1, eff. May 18, 2012; r. Emer. Ord. No. 376-2015, §§ 2, 3, eff. Jan. 1, 2016)

Sec. 321-1-M. May.

"May" denotes the permissive.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992)

Sec. 321-1-M1. Minority Business Enterprise; MBE.

"Minority business enterprise" or "MBE" shall have the same meaning as provided in Section 324-1-M of the Cincinnati Municipal Code.
(Ordained by Emer. Ord. No. 376-2015, § 1, eff. Jan. 1, 2016)

Sec. 321-1-O. Offeror.

"Offeror" shall mean the individual, partnership, corporation, or other entity responding to the city's "Request for Proposals."
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992)

Sec. 321-1-P. Professional Services.

"Professional services" shall mean personal services that:

(a) Are provided by a person with an active license, credential, or certification as an accountant, architect, attorney at law, physician, professional engineer, surveyor, or appraiser issued by the appropriate body in the respective field who is providing services in their capacity as such and which involve extended analysis, expression of opinion, exercise of discretion and independent judgment in their performance; or

(b) Are consulting services that involve an advanced, specialized knowledge,

expertise, or training customarily acquired by either a prolonged course of study or equivalent experience in fields identified by the city manager by administrative regulation.

(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; a. Ord. No. 307-2015, § 1, eff. Jan. 1, 2016; a. Ord. No. 141-2024, §§ 1, 2, eff. July 1, 2024)

Sec. 321-1-P1. Proposal.

"Proposal" shall mean an offer in response to a "Request for Proposal."

(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992)

Sec. 321-1-P2. Place of Business.

"Place of business" shall mean a bona fide office, factory, warehouse, or other space that is occupied and used by the business in carrying on its business activity, through either the business's owner(s) and/or through one or more employees, who are regularly in attendance at the place of business. "Place of business" shall not mean a location occasionally rented or used by the business for business functions, such as office meetings or teleconferences, or a "virtual" office. The address for the place of business should be identical as the address used for the business with the city's income tax division.

(Ordained by Ord. No. 124-2012, § 1, eff. May 18, 2012)

Sec. 321-1-P3. Principal.

"Principal" shall mean any of the following: a partner in or owner of a business, a person who has the authority to act on behalf of or bind a business, or a person who has the authority to authorize others to act on behalf of or bind a business.

(Ordained by Emer. Ord. No. 376-2015, § 1, eff. Jan. 1, 2016)

Sec. 321-1-Q. Quote.

"Quote" shall mean the response the city receives to a request for quote.

(Ordained by Ord. No. 193-2012, § 1, eff. July 6, 2012)

Sec. 321-1-R. Record.

"Record" means information that is inscribed on a tangible medium or that is stored in an electronic or other medium and is retrievable in perceivable form.

(Ordained by Emer. Ord. No. 177-2008, § 1, eff. June 29, 2008; renumbered by Ord. No. 193-2012, § 2, eff. July 6, 2012)

Sec. 321-1-R1. Recycled.

"Recycled" shall mean the series of activities, including collection, separation, and processing, by which products or other materials are recovered from the solid waste stream for use in the form of raw materials in the manufacture of new products other than fuel for producing heat or power by combustion.

Definitions of recycling terms used in this chapter are:

(a) "Recovered Materials" shall mean waste materials and by products which have been recovered or diverted from solid waste.

(b) "Preconsumer Materials" shall mean recovered materials which were production finished materials, products or byproducts which did not reach the consumer for whose use they were intended, and have been diverted from solid wastes for the purposes of collection, recycling and disposition.

(c) "Postconsumer Materials" shall mean recovered materials which were generated by a business or consumer, have served their intended end uses, and

have been separated or diverted from solid wastes for the purposes of collection, recycling and disposition.

(d) "Recycled Content Product" shall mean a product made from preconsumer or postconsumer recovered materials whose portion as a percentage of the weight or volume of the product meets or exceeds the minimum content percentage established by the city purchasing agent.

(Ordained by Ord. No. 141-1994, eff. June 3, 1994)

Sec. 321-1-R2. Request for Information.

"Request for Information" shall mean the document that states the specific information sought by a city department to enable it to clearly define the scope of services for which it will contract.

(Ordained by Ord. No. 193-2012, § 1, eff. July 6, 2012)

Sec. 321-1-R3. Request for Proposal.

"Request for Proposal" shall mean the document that states the supply, service or construction to be acquired; selection criteria; and if pertinent other matters, such as time schedules.

(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; renumbered by Ord. No. 193-2012, § 2, eff. July 6, 2012)

Sec. 321-1-R4. Request for Qualifications.

"Request for Qualifications" shall mean the document that states the goods or services required by a city department in order to identify individuals or businesses who are qualified offerors, as defined in this chapter, in specific disciplines which that department expects to utilize during a specific time period.

(Ordained by Ord. No. 193-2012, § 1, eff. July 6, 2012)

Sec. 321-1-R5. Request for Quote.

"Request for Quote" shall mean the solicitation by the city purchasing agent or designee for quoted prices from a limited number of individuals or businesses without public advertisement of the solicitation.

(Ordained by Ord. No. 193-2012, § 1, eff. July 6, 2012)

Sec. 321-1-R6. Request for Services.

"Request for Services" shall mean requests for information, requests for proposals, and requests for qualifications as defined in this chapter.

(Ordained by Ord. No. 193-2012, § 1, eff. July 6, 2012)

Sec. 321-1-S. Service.

"Service" shall mean the furnishing of labor, time, or effort by a contractor, not involving the delivery of a specific end product other than reports which are merely incidental to the required performance. The term shall not include employment agreements, collective bargaining agreements, or professional services.

(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; a. Ord. No. 141-2024, §§ 1, 2, eff. July 1, 2024)

Sec. 321-1-S1. Shall.

"Shall" denotes the imperative.

(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992)

Sec. 321-1-S2. Supplies.

"Supplies" shall mean all property, including, but not limited to, equipment, materials, and pharmaceuticals, and printing.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992)

Sec. 321-1-S3. Small Local Business Enterprise; SLBE.

"Small local business enterprise" or "SLBE" shall have the same meaning as provided in Section 323-1-S4 of the Cincinnati Municipal Code.
(Ordained by Emer. Ord. No. 376-2015, § 1, eff. Jan. 1, 2016)

Sec. 321-1-T. Taxpayer in Good Standing.

"Taxpayer in good standing" shall mean an individual or business that has filed all required returns and made all required income and payroll tax payments to the city of Cincinnati income tax division, or its successor, for the most recent quarter preceding the date of the invitation to bid or request for proposal or qualifications to which the business is responding. "Taxpayer in good standing" includes individuals or businesses that are current on any payment plan agreement they have reached with the city income tax division for payment of delinquent or outstanding taxes. "Taxpayer in good standing" does not include the following:

(a) Any individual or business that is delinquent in paying his or her or its income or payroll tax obligation, or

(b) Any business that has an owner or principal with an ownership interest in the business of 20% or more where that owner or principal is delinquent in paying his or her or its income or payroll tax obligation.

(Ordained by Ord. No. 124-2012, § 1, eff. May 18, 2012; Emer. Ord. No. 376-2015, § 2, eff. Jan. 1, 2016)

Sec. 321-1-W. Women Business Enterprise; WBE.

"Women business enterprise" or "WBE" shall have the same meaning as provided in Section 324-1-W1 of the Cincinnati Municipal Code.
(Ordained by Emer. Ord. No. 376-2015, § 1, eff. Jan. 1, 2016)

Sec. 321-3. Authority of the City Purchasing Agent.

The city purchasing agent shall perform the duties and responsibilities assigned the position in the municipal code and directed by the city manager.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992)

Sec. 321-4. Central Procurement.

The city purchasing agent shall establish and maintain a web-based procurement system that can include, but is not limited to, vendor registration, bid advertisement, announcements, awards, computations, reverse auctions and other procurement applications that will assist vendors in the bidding of equipment, construction, supplies, and professional and non-professional services.

The city manager, or his designee, is hereby authorized to promulgate rules and adopt a schedule of fees for the use of the web-based procurement system by business establishments who register and do business with the City of Cincinnati.
(Ordained by Ord. No. 0292-2007, eff. Sept. 1, 2007)

Sec. 321-5. Procurement and Disposal Procedure Manual.

The city purchasing agent shall promulgate and review annually a procurement and disposal manual that complies with the requirements of this chapter and any other

provisions of the municipal code that affect the city's procurement processes and policies. The manual shall include a provision that e-mail notice will be the rule; however, for those vendors without access to e-mail, notice will be sent by other means as well.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; a. Ord. No. 437-2002, eff. Jan. 17, 2003; a. Ord. No. 347-2009, § 1, eff. Dec. 18, 2009; Emer. Ord. No. 376-2015, § 2, eff. Jan. 1, 2016)

Sec. 321-6. Rules and Regulations.

The city manager or the city purchasing agent as the city manager's designee may issue and enforce such rules and regulations necessary to carry out this chapter.
(Ordained by Emer. Ord. No. 376-2015, § 1, eff. Jan. 1, 2016)

Sec. 321-7. Procurement Statutes Declared Inoperative.

Ohio Revised Code Sections 9.31, 9.331, 9.332, 9.333, 9.334, 153.12, 153.13, 153.14, 153.44, 153.49, 153.50, 153.501, 153.502, 153.51, 153.52, 153.53, 153.54, 153.57, 153.571, 153.63, 153.66, 153.67, 153.68, 153.69, 153.691, 153.70, 153.71, 153.81, 721.03, 721.15, 733.21, 733.22, 735.01, 735.02, 735.03, 735.05, 735.051, 735.06, 735.07, 735.074, 735.09, 3375.41, 4115.31, 4115.32, 4115.33, 4115.34, 4115.35 and 5555.66 are declared inoperative with respect to contracts of the City of Cincinnati.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; a. Emer. Ord. No. 387-2022, §§ 1, 2, eff. Dec. 14, 2022; a. Ord. No. 330-2023, § 1, eff. Oct. 4, 2023)

Sec. 321-9. Reserved.

Sec. 321-11. Procurement; $15,000 or Less.

The city purchasing agent may make any contract and purchase supplies, services or construction for any work of the city involving an expenditure of not more than $15,000.00 by award after announcement without advertising, contract and bonding procedures in accordance with small purchase procedures promulgated by the city purchasing agent. Procurement requirements shall not be artificially divided so as to fall within the authority contained in this section.

For purchases of $15,000.00 or less, notice and award must be given to a certified SBE, ELBE, or SLBE listed for that particular commodity code, unless the city purchasing agent determines one of the following:

(a) Such award would be impractical;

(b) Such award would not be in the best interest of the city based on price.

In such cases, competitive bidding shall be conducted pursuant to policies promulgated by the city purchasing agent.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; a. Ord. No. 437-2002, eff. Jan. 17, 2003; a. Ord. No. 0014-2007, § 1, eff. Feb. 18, 2007; Emer. Ord. No. 376-2015, § 2, eff. Jan. 1, 2016; a. Ord. No. 259-2025, §§ 1, 2, eff. Aug. 6, 2025)

Sec. 321-13. Procurement; Supplies, Services and Construction in Excess of $15,000.00 but not Greater Than $50,000.00.

The following shall apply to contracts for supplies, services, or construction involving an expenditure in excess of $15,000.00 but not in excess of $50,000.00:

(a) The city purchasing agent may award and enter into such contracts without additional approval by the city manager or board or commission on whose behalf the procurement is made.

(b) Such contracts shall be competitively procured by request for quotes or

ITB. The city purchasing agent may waive the requirement for bid or performance surety.

(c) Certified SBEs, SLBEs, and ELBEs registered as vendors with the city in the commodity class applicable to the procurement will receive notice of the procurement through the city's online procurement system.

(d) The contract must be awarded to a certified SBE, SLBE, or ELBE listed in the commodity code, unless one of the following occurs:

(1) The contract is awarded pursuant to subsection (e) below;

(2) There are no certified SBEs, SLBEs, or ELBEs in the commodity code;

(3) No certified SBE, SLBEs, or ELBEs in the commodity code provide a quote;

(4) The city purchasing agent determines in writing that it is impractical or not in the best interest of the city to award the contract to the certified SBE, SLBE, or ELBE based on price; or

(5) The city purchasing agent rejects all quotes from certified SBEs, SLBEs or ELBEs.

If one of the circumstances listed in subsections (2) through (5) above exists, then three quotes should be obtained from businesses in the commodity code that are not certified SBEs, SLBEs or ELBEs or are not SBEs, SLBEs, or ELBEs, and competitive bidding shall be conducted pursuant to policies promulgated by the city purchasing agent.

(e) (1) If a quote process is utilized, at least two but not more than three quotes must first be obtained from certified SBEs, SLBEs, or ELBEs listed in the commodity code.

(2) If there is only one certified SBE, SLBE, or ELBE in the commodity code or only one certified SBE, SLBE, or ELBE in the commodity responds to the city's request for quote, then two additional quotes must be obtained from businesses in the commodity code that are not certified SBEs, SLBEs, or ELBEs.

(3) If the quote from a business that is not a certified SBE, SLBE, or ELBE is the lowest and best quote of the three received by the city, the certified SBE, SLBE, or ELBE will be awarded the contract if it agrees to match the lowest and best quote. If the certified SBE, SLBE, or ELBE does not agree to match the lowest and best quote within three business days after the city purchasing agent offers that business the opportunity to match the lowest and best quote, then the contract will be given to the business that submitted the lowest and best quote, regardless of certification status.

(f) The city purchasing agent may establish a contract award rotation process for SBEs, SLBEs, and ELBEs certified in specific commodity codes to make contract award opportunities equitably available to such businesses.

(g) Surety.

(1) The city purchasing agent will have discretion regarding bonding requirements for both bid

and performance surety, including without limitation, the amount of such bonds.

(2) The city purchasing agent shall establish a commodity and a threshold exemption for surety and bond requirements.

This section shall not apply to bids, requests for proposals, or requests for qualifications or other procurement processes identified to be a part of the city's sheltered market program as provided in CMC Section 323-19. The purchasing agent shall be responsible for awarding and executing all contracts awarded through the sheltered market program.

(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; a. Ord. No. 110-1994, eff. May 6, 1994; a. Ord. No. 437-2002, eff. Jan. 17, 2003; a. Emer. Ord. No. 177-2008, § 4, eff. June 29, 2008; a. Ord. No. 347-2009, § 2, eff. Dec. 18, 2009; a. Ord. No. 193-2012, § 2, eff. July 6, 2012; Emer. Ord. No. 376-2015, § 2, eff. Jan. 1, 2016; a. Ord. No. 141-2024, §§ 1, 2, eff. July 1, 2024; a. Emer. Ord. No. 259-2025, §§ 1, 2, eff. Aug. 6, 2025)

Sec. 321-15. Procurement; Supplies, Services and Construction in Excess of $50,000.00 but not Greater Than $250,000.00.

The following shall apply to contracts for supplies, services, or construction involving an expenditure in excess of $50,000.00 but not in excess of $250,000.00:

(a) The city purchasing agent may award and enter into such contract without additional approval by the city manager or board or commission on whose behalf the procurement is made.

(b) The city manager or the city purchasing agent shall invite competitive bidding by advertisement.

(c) The city manager or the city purchasing agent may waive the requirement for bid or performance surety except as otherwise provided herein. Performance surety for construction contracts in excess of $50,000.00 shall not be waived.

(d) Registered and certified SBEs, SLBEs, and ELBEs in the commodity class will receive notice via e-mail, and every effort should be made to award the contract to a certified SBE, SLBE, or ELBE.

This section shall not apply to bids, requests for proposals, or requests for qualifications or other procurement processes identified to be a part of the city's sheltered market program as provided in CMC Section 323-19. The purchasing agent shall be responsible for awarding and executing all contracts awarded through the sheltered market program.

(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; a. Ord. No. 110-1994, eff. 5-6-94; a. Ord. No. 437-2002, eff. Jan. 17, 2003; a. Emer. Ord. No. 177-2008, § 4, eff. June 29, 2008; a. Ord. No. 347-2009, § 3, eff. Dec. 18, 2009; a. Ord. No. 124-2012, § 2, eff. May 18, 2012; Emer. Ord. No. 376-2015, § 2, eff. Jan. 1, 2016; a. Ord. No. 141-2024, §§ 1, 2, eff. July 1, 2024)

Sec. 321-17. Procurement; Supplies, Services and Construction in Excess of $250,000.00.

The following shall apply to contracts for supplies, services, or construction involving an expenditure in excess of $250,000.00:

(a) The city purchasing agent may make any contract to purchase supplies, services, or construction with additional approval of the city manager, or the board or commission on whose behalf the contract is made.

(b) In the case of any contract for the procurement of supplies or services involving an expenditure in excess of $250,000.00 within a 12-month period, the city purchasing agent shall invite competitive bidding by advertising and may waive the bid or performance surety, if deemed by the city purchasing agent to be in the best interest of the city.

(c) In the case of any contract for construction involving an expenditure in excess of $250,000.00 for the length of the contract, the city purchasing agent shall invite competitive bidding by advertising, may waive the posting of bid surety if deemed by the city purchasing agent to be in the best interest of the city, and shall require performance surety of 100 percent of the contract amount.

(d) The city purchasing agent shall use the following procedure for contracts covered by this section:

(1) Each week a listing of such items to be procured shall be advertised on the web-based procurement system maintained by the city purchasing agent indicating the item, reference number, and solicitation closing date.

(2) The notice also shall indicate the following for each item:

(A) Time of solicitation closing, including date and time; and

(B) That performance surety may be required for supplies and service contracts and shall be required for all construction contracts in excess of $50,000.00.

(e) For the procurement of supplies, services, and construction in excess of $250,000.00, registered and certified SBEs, SLBEs, and ELBEs in the commodity class will receive notice through the online procurement system.

(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; a. Ord. No. 110-1994, eff. May 6, 1994; a. Ord. No. 437-2002, eff. Jan. 17, 2003; a. Emer. Ord. No. 177-2008, § 4, eff. June 29, 2008; a. Ord. No. 347-2009, § 4, eff. Dec. 18, 2009; Emer. Ord. No. 126-2013, § 1, eff. May 15, 2013; Emer. Ord. No. 376-2015, § 2, eff. Jan. 1, 2016; a. Ord. No. 141-2024, §§ 1, 2, eff. July 1, 2024)

Sec. 321-19. Procurement; Professional Services.

Professional services contracts shall be the responsibility of the city manager or appropriate board or commission with contracting authority. Any department, board, or commission may contract for such services without competitive procedures and without requiring a performance surety, subject to any limitations that may be established by the city manager through administrative regulation.

(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; a. Ord. No. 141-2024, §§ 1, 2, eff. July 1, 2024)

Sec. 321-21. Bid; Competitive.

Competitive bidding shall be used to procure all supplies, services, and construction in excess of $5,000 except as provided in Section 321-19, Procurement; Professional Services; Section 321-51, Proposal; Competitive; Section 321-85, Contract; Sole Source; Section 321-86, Contract; Single Available Source; 321-87, Contract; Direct Award; Section 321-89, Contract; Emergency Procurement; or other similar provisions of this chapter.

(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; a. Ord. No. 193-2012, § 2, eff. July 6, 2012; Emer. Ord. No. 376-2015, § 2, eff. Jan. 1, 2016)

Sec. 321-22. Bid; Specifications.

(a) Specifications are any description of the physical or functional characteristics or of the nature of supplies, services or construction.

(b) Environmentally Preferable Specifications. All city departments, boards and commissions shall specify environmentally preferable supplies, services or construction when appropriate.

All city departments, boards and commissions shall conduct a review of supplies, services or construction specifications to determine whether the specifications either require the use of products manufactured from virgin materials or exclude the use of recycled products, reusable products, or products designed to be recycled. In the event that such specifications do exclude the use of recycled products or require the use of virgin materials, then such exclusions or requirements may be eliminated unless the department, board or commission can demonstrate to the satisfaction of the city purchasing agent that the recycled products would not achieve a necessary requirement or performance standard.

All city departments, boards and commissions shall recommend changes to the city purchasing agent to ensure that performance standards for particular supplies, services or construction can be met and that the specifications are not overly stringent, and to recommend changes to ensure that the specifications will incorporate a requirement for the use of recycled materials, reusable products, and products designed to be recycled to the maximum extent possible, subject to an alternative showing that either the performance of the product will be jeopardized or that the product will negatively impact health, safety, or operational efficiency.

The city purchasing agent may request the bidder to affirmatively demonstrate that recycled material will not jeopardize the performance of the product and will not negatively impact health, safety, or operational efficiency.

(c) Sheltered Market Contracts. For purposes of the sheltered market program described in CMC Section 323-19, a bid, RFP, or RFQ may specify that a portion or particular scope of work of a contract will be part of the city's sheltered market program and will be awarded to a certified SLBE or ELBE. If that occurs, the contract/scope of work to be performed by the certified SLBE or ELBE will be assigned to the contractor awarded the larger contract.
(Ordained by Ord. No. 141-1994, eff. June 3, 1994; Emer. Ord. No. 376-2015, § 2, eff. Jan. 1, 2016)

Sec. 321-23. Bid; Form of Invitation to Bids.

The city purchasing agent shall state the time and place the city will receive bids. All bidders shall use the form approved by the city purchasing, and a bid shall not be considered unless such form is used without change, alteration, or addition by the bidder. Bidders may be permitted by the city purchasing agent to bid upon all work and materials to be furnished or upon any part of the work or materials.

Copies of any plans, details, bills of materials or specifications shall be open to public inspection at all business hours between the day of the notice and the day for opening the bids, at the office of purchasing where the bids are received, or such other place as may be designated in such notice.

Any bid or performance surety requirements shall be stated in the invitation to bid.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; a. Emer. Ord. No. 177-2008, § 4, eff. June 29, 2008; Emer. Ord. No. 376-2015, § 2, eff. Jan. 1, 2016)

Sec. 321-24. Bid; Electronic Bids and Signatures.

(a) The city purchasing agent, or his or her designee, is authorized to determine when a bid is suitable for electronic submission. If the bid is determined to be suitable for electronic submission, the following statement shall be inserted into the bid: "This bid is designated as an electronic bid."

(b) A bid, record, or signature in electronic form is valid and legally enforceable. A contract that uses an electronic record in its formation is valid and legally enforceable.

If a law requires a record to be in writing, an electronic record satisfies the law. If a law requires a signature, an electronic signature satisfies the law.

(c) The city purchasing agent shall promulgate the rules and regulations for electronic signatures and electronic bids.
(Ordained by Emer. Ord. No. 177-2008, § 1, eff. June 29, 2008)

Sec. 321-25. Repealed.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; r. Emer. Ord. No. 376-2015, §§ 2, 3, eff. Jan. 1, 2016)

Sec. 321-27. Bid; Correction, Withdrawal or Cancellation of an Invitation for Bid.

The city purchasing agent is authorized to make written corrections to invitation for bids. The city purchasing agent may withdraw or cancel at any time any invitation for bid, if the city purchasing agent deems such action is in the best interest of the city.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992)

Sec. 321-29. Bid; Time Extension for Bid Opening.

The time, date and place of bid openings may be extended to a later time or date by the city purchasing agent, provided that written or oral notice of a change of time, date or place is given.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992)

Sec. 321-31. Bids; Opening of Bids.

(a) Bids invited by the city purchasing agent by advertisement if the bid is expected to be in excess of $250,000 shall be accepted via the web-based procurement system at the time and date specified in the invitation for bid. Results shall be publicly posted in accordance with procedures promulgated by the city purchasing agent.

(b) Bids invited by the city purchasing agent by announcement or by advertisement if the bid is expected to be in excess of $50,000 but not greater than $250,000 shall be received and recorded by the city purchasing agent or a designee. No public posting of bids is required.

(c) All bids received by the city purchasing agent shall be subject to disclosure in response to a public records request pursuant to the requirements and limitations of Ohio Revised Code Sections 9.28, 149.43, and any successor laws.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; a. Ord. No. 357-1994, eff. 10-28-94; Emer. Ord. No. 126-2013, § 1, eff. May 15, 2013; a. Ord. No. 141-2024, §§ 1, 2, eff. July 1, 2024)

Sec. 321-33. Bid; Waiver of Defects.

In awarding a contract, the city purchasing agent may waive any variation from the bid requirements or defect in a bid which does not materially affect the competitive

nature of the bid, is not in violation of any ordinance, statute or law and does not prejudice the right of the public.

A variance or defect does not materially affect the bid if the terms of the bid are clear and unambiguous, the bid contains all essential elements of the contract, if the amount or competitive nature of the bid is not affected and if the bidder has not received an unfair advantage from having seen the competitor's bid documents.

In considering any waiver, the city purchasing agent shall attempt to secure the best work or materials at the lowest price practicable and shall make such determination in a manner as to fairly and reasonably accomplish such purpose with sole reference to the public interest.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992)

Sec. 321-35. Bid; Clarification.

The city purchasing agent may request clarification of a bid or any part thereof. Clarification shall mean the communication between the city and the bidder regarding the bid. Such communication shall not change the bid, the competitive nature of all bids or violate any ordinance, statute or law and shall not prejudice the right of the public.

In considering any clarification the city purchasing agent shall attempt to procure the best supply, service or construction at the lowest practicable price and shall make such clarifications in such a manner as to fairly and reasonably accomplish such purpose with the sole reference to the public interest.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992)

Sec. 321-37. Bid; Award to Lowest and Best.

(a) Selection of Lowest and Best in Award of City Contracts: Except where otherwise provided by ordinance, the city purchasing agent shall award a contract to the lowest and best bidder.

(b) Environmentally Preferable Comparison Bids: In invitations to bid designated by the city purchasing agent as an environmentally preferable comparison bid, the city purchasing agent, in determining the lowest and best bid, shall deem as favorable the fact that the bidding company offers supplies that contain recycled material, and shall select such bidder as the lowest and best bidder if its bid does not exceed by more than five percent to a maximum of $25,000.00 any other lowest and otherwise qualified non-recycled bidder.

In such circumstances where more than one bidder offers supplies with recycled material that do not exceed by more than five percent to a maximum of $25,000.00 any other lowest and otherwise qualified non-recycled bidder, the city purchasing agent may consider all information otherwise relevant to determining which bid is lowest and best.

The decision of the city purchasing agent or designee, including whether the environmentally preferable product satisfies the bid requirements, shall be final in the determination of the award.

(c) SLBE or ELBE Preferable Comparison Bids: In compliance with CMC Section 323-13, the city purchasing agent, in determining the lowest and best bid, may award a contract valued between $250,000 and $1,000,000 to a certified SLBE or a contract valued between $50,000 and $100,000 to a certified ELBE that submits a bid that is no more than ten percent greater than the lowest and otherwise best bid unless:

(1) The award to the certified SLBE or ELBE would result in a total contract cost that is, on an annual basis, $25,000.00 or more higher than the lowest and otherwise best bid; or

(2) The award to the certified SLBE or ELBE would cause the total contract cost to exceed the city's budgeted funding for the contract.

(d) MBE or WBE Preferable Comparison Bids: In compliance with CMC Section 324-33, the city purchasing agent, in determining the lowest and best bid, may award a prime contract for non-professional services or supplies to a certified MBE or WBE that submits a bid that is no more than five percent greater than the lowest and otherwise best bid unless either of the following applies:

(1) The award to the certified MBE or WBE would result in a total contract cost that is, on an annual basis, $25,000.00 or more higher than the lowest and otherwise best bid; or

(2) The award to the certified MBE or WBE would cause the total contract cost to exceed the city's budgeted funding for the contract.

(e) Factors to be Considered: Other factors that the city purchasing agent may consider in determining the lowest and best bid include, but are not limited to:

(1) Information concerning the bidder's performance on prior and current contracts with the city;

(2) Information concerning the bidder's current, past and proposed payment of prevailing wages;

(3) Information concerning compliance with CMC Section 324-17(a)(2) or the "Subcontracting Outreach Program" rules and regulations issued by the city manager pursuant to CMC Section 323-37; or

(4) Information concerning compliance with the contract participation goals and the subcontractor utilization program provided in CMC Sections 323-11, 323-17, 324-15 and 324-19.

(f) In the event that the selection of the lowest and best bidder is based primarily upon factors 3 or 4 above, the contract award may be made subject to the following limitation: the bid may not exceed an otherwise qualified bid by ten percent or $25,000.00, whichever is lower.

Total Preference Percentages Permissible: The total accumulation of all preference percentages from all preference programs now in existence or hereafter established shall not exceed fifteen percent to a maximum of $75,000.00.

(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; a. Ord. No. 11-1994, eff. 2-11-94; a. Ord. No. 141-1994, eff. 6-3-94; a. Ord. No. 398-2003, eff. 11-26-03; a. Emer. Ord. No. 177-2008, § 4, eff. June 29, 2008; Emer. Ord. No. 376-2015, § 2, eff. Jan. 1, 2016)

Sec. 321-38. Repealed.

(Ordained by Ord. No. 124-2012, § 1, eff. May 18, 2012; r. Emer. Ord. No. 376-2015, §§ 2, 3, eff. Jan. 1, 2016)

Sec. 321-39. Bid; Award on Equal Bids.

Whenever bids shall be received for supplies, services or construction and two or more bids shall, in the opinion of the city purchasing agent, be equally entitled to be considered the lowest and best bids, the city purchasing agent shall be authorized to award such contract by lot to any one of such lowest or best bidders, or, if the number of such lowest and best bidders is not in excess of three, to divide the award and contract as the city purchasing agent deems best among them or among such of them as shall consent to such apportionment.

This section does not apply to situations that arise as a result of the application of Section 321-13(e). A matching bid submitted by a certified SBE, SLBE, or ELBE pursuant to Section 321-13(e) does not create

a situation where two or more bids are both the lowest and best bid for purposes of this section.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; a. Ord. No. 124-2012, § 2, eff. May 18, 2012; Emer. Ord. No. 376-2015, § 2, eff. Jan. 1, 2016)

Sec. 321-41. Bid; Waiver of Bidding and Contracting Requirements Where No Acceptable Bid is Made.

The city purchasing agent is authorized to waive all legal bidding and/or contracting requirements when a situation exists because of various supply allotment programs, volatile market conditions, shortages, and similar situations which causes vendors to refuse to submit acceptable bids based on all the city's legal bidding and contracting requirements; provided, however, before waiving such requirements the city purchasing agent shall have first endeavored to secure competitive bids based on all applicable city bidding and contracting requirements, but when no acceptable bid is subsequently received due to one or more of the above causes, the city purchasing agent is then authorized to make award of a contract to the determined lowest and best bid of all non-acceptable bids submitted, or to negotiate a contract where no bids are received.

The city purchasing agent shall report to city council semiannually on all applications of this authorization during the interim period.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; Emer. Ord. No. 152-2017, § 25, eff. July 1, 2017)

Sec. 321-43. Bid; Rejection of Bids.

The city purchasing agent, city manager or any other duly authorized contracting officer may reject any bid for any reason or all bids for no reason if acceptance of the lowest and best bid is not in the best interests of the city. Where there is reason to believe there is collusion or combination among bidders, the bids of those involved shall be rejected.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992)

Sec. 321-45. Repealed.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; a. Ord. No. 440-2002, eff. Jan. 17, 2003; a. Emer. Ord. No. 177-2008, § 4, eff. June 29, 2008; r. Emer. Ord. No. 376-2015, §§ 2, 3, eff. Jan. 1, 2016)

Sec. 321-47. Bid; Default.

In case any successful bidder shall fail to execute a proper contract according to law within ten calendar days from receipt of notice of acceptance of the bid, or, if deemed appropriate by the city manager, within five business days, which notice may be by tender of the contract for signature and bonding or by direct notification, or shall otherwise default as to the bid, the bidder shall be chargeable with any and all damages and losses suffered by the city of Cincinnati on account of the default, and the amount of the damages shall be fixed by the city manager.

No person or company that shall have defaulted as to any bid with the city of Cincinnati shall be permitted to bid for any business with the city of Cincinnati until the amount of the damages accruing to the city by reason of such default shall have been fully accounted for, and in no event shall any such defaulting person or company be permitted to bid within the period of two years from the date of the default, except with the written permission of the city manager.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; a. Ord. No. 0165-2007, § 1, eff. June 2, 2007)

Sec. 321-49. Bid; Withdrawal of Bid Made in Error.

A bidder for a contract with the city may request the withdrawal of a bid not requiring bid surety from consideration. The city purchasing agent may allow the withdrawal if the price bid was substantially lower than the other bids, providing the bid was submitted in good faith and the reason for the price bid being substantially lower was a clerical mistake as opposed to a judgment mistake, and was actually due to an unintentional and substantial arithmetic error or an unintentional omission of a substantial quantity of work, labor, or material made directly in the compilation of the bid. The request to withdraw such bid shall be made in writing to the city purchasing agent within four business days from the bid opening procedure.

No bid may be withdrawn under this section when the result would be the awarding of the contract on another bid of the same bidder.

No bidder who is permitted to withdraw a bid shall benefit, directly or indirectly, from the performance of the contract for which the withdrawn bid was submitted, without the approval of the city purchasing agent. Without such approval, the contractor to whom the contract was awarded and the withdrawing bidder are jointly liable to the city in an amount equal to any compensation paid to or for the benefit of the withdrawing bidder, in addition to any criminal penalties.

If a bid is withdrawn under authority of this section, the city purchasing agent may award the contract to the next lowest bidder or reject all bids.

In the event the city purchasing agent denies the request for withdrawal and the bidder refuses to perform, the city purchasing agent may reject all bids or award to the next lowest bidder and the bidder shall be in default.

(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; a. Emer. Ord. No. 177-2008, § 4, eff. June 29, 2008)

Sec. 321-51. Proposal; Competitive.

Competitive proposals may be used to procure supplies, services, professional services, and construction when the city purchasing agent determines that the use of competitive bidding is either not practical or not advantageous to the city. All possible steps shall be taken to ensure competition in the competitive proposal process.

The city purchasing agent shall promulgate procedures for the competitive proposal process.

(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; a. Ord. No. 193-2012, § 2, eff. July 6, 2012; Emer. Ord. No. 376-2015, § 2, eff. Jan. 1, 2016)

Sec. 321-52. Proposal; Specifications.

(a) Specifications are any description of the physical or functional characteristics or of the nature of supplies, services or constructions.

(b) All city departments, boards and commissions shall specify environmentally preferable supplies, services or construction when appropriate.

All city departments, boards and commissions shall conduct a review of supplies, services or construction specifications to determine whether the specifications either require the use of products manufactured from virgin materials or exclude the use of environmentally preferable or recycled content products, reusable products, or products designed to be recycled.

In the event that such specifications do exclude the use of recycled products or require the use of virgin materials, then such exclusions or requirements may be eliminated unless the department, board or commission can demonstrate to the satisfaction of the city purchasing agent that the recycled products would not achieve a necessary requirement or performance standard.

All city departments, boards and commissions shall recommend changes to the city purchasing agent to ensure that performance standards for particular supplies, services or construction can be met and that the specifications are not overly stringent, and to recommend changes to ensure that the specifications will incorporate a requirement for the use of recycled materials, reusable products, and products designed to be recycled to the maximum extent possible, subject to an alternative showing that either the performance of the product will be jeopardized or that the product will negatively impact health, safety, or operational efficiency.

The city purchasing agent may request the offeror to affirmatively demonstrate that recycled material will not jeopardize the performance of the product and will not negatively impact health, safety, or operational efficiency.
(Ordained by Ord. No. 141-1994, eff. June 3, 1994)

Sec. 321-53. Proposal; Form of Request For Proposal.

All requests for proposals shall state the time, date and place where proposals will be received. A request for proposal shall state the city requirements and evaluation factors to be applied in awarding the contract. All plans, specifications, details or bills of material shall be open for inspection during business hours defined in the request for proposal. Any performance surety requirements shall be stated in the request for proposal.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992)

Sec. 321-55. Reserved.

Sec. 321-57. Proposal; Correction, Withdrawal or Cancellation of a Request for Proposal.

The city purchasing agent or designee is authorized to make corrections to requests for proposals. The city purchasing agent or designee may withdraw or cancel at any time any request for proposals, if the city purchasing agent or designee deems such action is in the best interest of the city.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992)

Sec. 321-59. Proposal; Time Extension for Proposal Opening.

The time, date and place of proposal openings may be extended to a later time or date by the city purchasing agent or designee provided that written or oral notice of a change of time, date or place shall be given to all persons who have received or requested a request for proposal. After the time and date for proposal opening has passed no new offeror may submit a proposal.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992)

Sec. 321-61. Proposal; Public Records.

All proposals received by the city purchasing agent shall be subject to disclosure in response to a public records request pursuant to the requirements and limitations of Ohio Revised Code Sections 9.28, 149.43, and any successor laws.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; Emer. Ord. No. 126-2013, § 1, eff. May 15, 2013; a. Ord. No. 141-2024, §§ 1, 2, eff. July 1, 2024)

Sec. 321-63. Proposal; Discussion With Offerors and Revisions to Proposals.

Discussions may be conducted with any or all offerors for the purposes of clarification to assure a full understanding of, and responsiveness to, the request for proposal requirements. Such offerors shall be accorded fair and equitable treatment with respect to any opportunity for discussion. Revisions may be permitted after submissions and prior to award for purpose of obtaining the most advantageous proposals.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992)

Sec. 321-65. Proposal; Award to Most Advantageous.

(a) Award shall be made to the offeror whose proposal is determined, in writing by the city manager, city purchasing agent, board or commission to be the most advantageous to the city taking into consideration price and evaluation factors set forth in the request for proposals. The contract file shall contain the basis on which the award is made.

(b) In request for proposals designated by the city purchasing agent as an environmentally preferable comparison request, the city purchasing agent may consider the following factors, listed in descending order of preference, in evaluating competitive proposals as the most advantageous to the city:

(1) The highest percentage of post-consumer material content.

(2) The highest percentage of pre-consumer material content.

In addition, the following factors may be considered in determining the most advantageous proposal.

(3) The ability of the product and package to be reused or recycled.

(4) The volume and toxicity of waste and by-products that a given product generates in its manufacture, use and disposal.

(5) The highest level of energy and water efficiency.

(c) Preference Points for SLBE/ELBEs.

(1) A certified SLBE may be given up to ten additional preference points in the evaluation of its response to an RFP or RFQ for architecture and engineering or other professional services for contracts valued between $100,000.00 and $250,000.00, and a certified ELBE may be given up to ten additional preference points in the evaluation of its response to an RFP or RFQ for architecture and engineering or other professional services for contracts valued between $50,000.00 and $100,000.00.

(2) For certified SLBE joint ventures, preference points shall be prorated based upon a clearly defined portion of the work to be performed by the SLBE with its own forces, equal to its share in the ownership, risks, performance, management and control of the joint venture.

(d) Preference Points for MBEs or WBEs.

(1) A certified MBE or WBE that submits a response to an RFP or RFQ for a professional services contract may be awarded up to ten evaluation preference points.

(2) Preference points for joint ventures that include certified MBE or WBE participants must be allocated on a pro rata basis in the same proportion to which a clearly defined portion of the work to be performed by the MBE

or WBE with its own forces and equal to its share in the ownership, risks, performance, management and control of the joint venture bears to the total work to be performed under the contract.

(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; a. Ord. No. 141-1994, eff. 6-3-94; a. Emer. Ord. No. 177-2008, § 4, eff. June 29, 2008; Emer. Ord. No. 376-2015, § 2, eff. Jan. 1, 2016)

Sec. 321-67. Proposal; Rejection.

The city may reject any or all proposals or any item within a proposal for any reason, or reject all proposals for no reason as deemed by the city purchasing agent or designee to be in the best interest of the city.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992)

Sec. 321-69. Repealed.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; a. Ord. No. 440-2002, eff. Jan. 17, 2003; a. Emer. Ord. No. 177-2008, § 4, eff. June 29, 2008; r. Emer. Ord. No. 376-2015, §§ 2, 3, eff. Jan. 1, 2016)

Sec. 321-71. Reserved.

Sec. 321-73. Right to Request Information.

The city manager, city purchasing agent, board or commission may request information needed to determine the lowest and best bid or the most advantageous proposal. Such information may include, but is not limited to financial ability, resources, skills, capability, business integrity, past performance, equal employment opportunity and related programs.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992)

Sec. 321-75. Right to Audit Records.

The city shall be entitled to audit the books and records of a contractor or any subcontractor under any contract or subcontract to the extent that such books and records relate to the performance of such contract or subcontract. Such books and records shall be maintained by the contractor for a period of one year from the date of final payment under the prime contract and by the subcontractor for a period of one year from the date of final payment under the subcontract, unless a shorter period is authorized in writing.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992)

Sec. 321-77. Reserved.

Sec. 321-79. Reserved.

Sec. 321-81. Contracts; Types.

Subject to the limitations of this section, any type of contract which will promote the best interests of the city may be used, except the use of a cost-plus-a-percentage-of-cost contract is prohibited. A cost-reimbursement contract may be used only when a determination is made in writing by the city purchasing agent that such contract is likely to be less costly to the city than any other type or that it is impracticable to obtain the supplies, services, or construction required except under such a contract.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; Emer. Ord. No. 376-2015, § 2, eff. Jan. 1, 2016)

Sec. 321-83. Contract; Multi-Term.

Unless otherwise provided by law, a contract for supplies or services may be entered into for any period of time deemed to be in the best interests of the city. The term of the contract and conditions of renewal, if any, shall be included in the solicitation,

and funds shall be available for the first period at the time of contracting. Payment and performance obligations for succeeding periods shall be subject to the availability and appropriation of funds.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; Emer. Ord. No. 376-2015, § 2, eff. Jan. 1, 2016)

Sec. 321-85. Contract; Sole Source.

The city purchasing agent may award a contract for supplies, services or construction without competition upon making a determination in writing that there is only one source for the required supply, service or construction. A requirement for a particular supply, service or construction does not justify a sole source procurement if there is more than one potential bidder or offeror.

The determination of a sole source procurement shall be made in writing and shall include the basis therefor and the duration of its effectiveness. In cases of reasonable doubt, competition shall be solicited.

The city purchasing agent may conduct negotiations, as appropriate, for price, delivery and terms.

The city purchasing agent shall maintain a record of sole source procurements including the contractor's name, the amount and type of each contract, a listing of the supplies, services, or construction procured under each contract and the identification number of the contract.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; Emer. Ord. No. 376-2015, § 2, eff. Jan. 1, 2016)

Sec. 321-86. Contract; Single Available Source.

(a) The city purchasing agent may award a contract for supplies, services, or construction without competition upon making a determination that, although there is more than one potential source for a particular supply, service, or construction project, it is in the best interest of the city to award a contract to a specific contractor based on the particular contractor's ability to provide the supply, service or construction given the contractor's ownership or control of data or patent rights, copyrights, exclusive distribution agreements, warranties, trade secrets, or other similar interests applicable to the required supplies, services, or construction. By way of example only, and not by limitation, single available source procurement may be appropriate to maintain warranty coverage on equipment through a specific service or parts provider, to obtain replacement parts or additional units from an exclusive or limited distributor, or to obtain software or services compatible with or related to proprietary software.

(b) Equipment. The city purchasing agent may determine that single available source procurement is justified for specific makes and models of equipment, parts, or supplies if all of the following requirements are met:

(1) The specific equipment, parts, or supplies are being procured for standardization purposes, and that standardization of the equipment, parts, or supplies is in the best interests of the city;

(2) The equipment, parts, or supplies will be used to meet a requirement for replacement parts or additional units that are compatible with existing city equipment;

(3) The existing equipment for which the parts or additional units are being procured was obtained by the city through the use of competitive procurement procedures, or was obtained through a separately justified and approved waiver of competitive procurement; and

(4) No identical or compatible equipment, parts, or supplies are available from a source that will reasonably be able to supply the required equipment, parts or supplies within the necessary time and from a reasonable geographic distance from the city.

(c) The city purchasing agent shall promulgate rules and procedures covering single available source procurements. The city purchasing agent shall maintain a record of single available sole source procurements including the contractor's name, the amount and type of each contract, a listing of the supplies, services, or construction procured under each contract, and the identification number of the contract.
(Ordained by Emer. Ord. No. 376-2015, § 1, eff. Jan. 1, 2016)

Sec. 321-87. Contract; Direct Award.

A contract may be awarded for supplies, services or construction without competition when the city purchasing agent determines in writing that the contractor is the only suitable or acceptable contractor to provide the supplies, services or construction and that it is in the best interest of the city to award the contract to that contractor. A direct award may be an appropriate procedure to procure supplies, equipment, or services for trial use or testing.

The determination of direct award procurement shall be made in writing by the city purchasing agent and shall include the basis therefor and the duration of its effectiveness. In cases of reasonable doubt, competition shall be solicited. Any request to the city purchasing agent that a procurement be restricted to one contractor shall be accompanied by an explanation as to why no other will be suitable or acceptable to meet the need. The city purchasing agent may conduct negotiations, as appropriate, for price, delivery and terms.

The city purchasing agent shall maintain a record of direct award procurements in excess of $5,000, including the contractor's name, the amount and type of each contract, a listing of the supplies, services, or construction procured under each contract and the identification number of the contract.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; Emer. Ord. No. 376-2015, § 2, eff. Jan. 1, 2016)

Sec. 321-89. Contract; Emergency Procurement.

(a) *Emergency.* Notwithstanding any other provision of this chapter, when there exists a threat to public health, welfare or safety under emergency conditions defined in procedures promulgated by the city purchasing agent requiring the immediate procurement of services, supplies, materials, construction, demolition or equipment, the city manager, upon recommendation of the city purchasing agent and the head of the department involved, may waive any advertising, contract, and surety requirements prescribed by statute or ordinance and the pre-award requirements of the equal employment opportunity program of the city of Cincinnati prescribed by ordinance and authorize the purchase, by purchase order, of the needed services, supplies, materials, construction, demolition or equipment from the lowest and best bidder as disclosed by competitive bids which may be either oral or written. A record of all emergency purchases of supplies, services and construction in excess of $100,000 shall be reported to city council semi-annually. Furthermore, the city purchasing agent may authorize emergency purchases of $100,000 and less without

additional approval of the city manager being required to approve the nature of the emergency.

When normal procurement requirements are waived, all possible steps shall be taken to secure maximum competition in the procurement of the needed supplies, services, or construction; and any warranted follow-up in regard to the equal employment opportunity program shall be made.

A written determination of the basis for the emergency and for the selection of a particular contractor shall be included in the contract file and in the recommendation to the city manager or board or commission on purchases in excess of $100,000.

(b) *Imminent Danger.* Notwithstanding any other provision of this chapter, when there exists a disaster, or an imminent threat or danger to public health, welfare or safety requiring the direct action of a director or the commissioner of health, such director or commissioner of health may waive any advertising, formal contract, and surety requirements prescribed by statute or ordinance and the pre-award requirements of the equal employment opportunity program of the city of Cincinnati prescribed by ordinance and authorize the purchase of the needed services, supplies, materials, construction, demolition or equipment from the best bidder as disclosed by informal competitive bids which may be oral or written. If the cost is expected to exceed $100,000, the director or the commissioner of health shall obtain the verbal approval of the city manager or the deputy city manager, or if the cost is expected to be $100,000 or less, obtain the verbal approval of the city purchasing agent or the city purchasing agent's designee. The city purchasing agent may promulgate procedures for such emergency purchases involving imminent danger. A record of all imminent danger emergency purchases shall be reported to city council semi-annually.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992)

Sec. 321-91. Contract; Alcoholic Beverages.

Whenever required by state law or regulations of the department of liquor control, the city manager and the independent boards and commissions are authorized to adopt a modified procedure for making payments to suppliers of beer and other alcoholic beverages at city facilities by depositing in advance with all parties having contracts to supply such beverages an amount of money not in excess of the reasonable value of purchases of beverages anticipated to be made within a 30-day period.

Upon delivery of beverages to city locations the supplier shall deduct from the deposit the value under the contract of the beverages delivered and shall so notify the city. The city manager or the independent board or commission having the contract to receive such beverages may then advance an additional amount to the supplier to replace the amount deducted from the deposit.

If at the end of the contract period the contract is not renewed, and there is money still on deposit with the supplier, such money shall be returned by the supplier to the city after deduction of all sums due for beverages delivered.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992)

Sec. 321-93. Contract; Concessions.

The city manager, boards and commissions, upon the determination of the city purchasing agent, are hereby authorized to make or enter into concession contracts.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992)

Sec. 321-95. Repealed.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; r. Emer. Ord. No. 376-2015, §§ 2, 3, eff. Jan. 1, 2016)

Sec. 321-97. Contracts; Joint and Cooperative Purchasing Options.

(a) The city purchasing agent may procure supplies, services, equipment, or materials through any of the following methods:

(1) By participating in contracts procured or awarded by any department, division, agency, or political subdivision of the state, including without limitation, contracts awarded by the Ohio department of administrative services.

(2) By participating in contracts for services, materials, equipment, or supplies in a joint purchasing program operated by or through a state or national association of political subdivisions if the city is eligible for membership.

(3) By participating in contract offerings from other government entities that are available to a political subdivision including, but not limited to, contract offerings from the general services administration.

(b) The city hereby authorizes the city manager or the city purchasing agent in the name of the city, without advertising and bidding, to participate in such contracts described in subsection (a) above. When the city manager or city purchasing agent finds it in the best interest of the city to participate in such contracts, the following shall apply:

(1) The city will be bound by such terms and conditions as the contracts prescribe;

(2) The city will directly pay the vendor under such contracts; and

(3) Performance surety may be waived by the city purchasing agent.

(c) The city purchasing agent may permit one or more other political subdivisions to participate in contracts into which the city has entered for the acquisition of equipment, materials, supplies, or services, and may charge such participating political subdivisions a reasonable fee to cover any additional costs incurred as a result of their participation.

(d) The city purchasing agent is authorized to do all the things necessary to carry out the provisions of this section.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; Emer. Ord. No. 376-2015, § 2, eff. Jan. 1, 2016; a. Ord. No. 141-2024, §§ 1, 2, eff. July 1, 2024)

Sec. 321-98. Repealed.
(Ordained by Emer. Ord. No. 177-2008, § 3, eff. June 29, 2008; r. Emer. Ord. No. 376-2015, §§ 2, 3, eff. Jan. 1, 2016)

Sec. 321-99. Contract; United States Surplus Property.

The city purchasing agent is hereby authorized to purchase United States government surplus property in amounts in excess of $5,000 without following the competitive bid procedures Such surplus property may be purchased directly from the United States government or any of its agencies or through the Ohio Valley Civil Defense Authority.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992)

Sec. 321-101. Repealed.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; r. Emer. Ord. No. 376-2015, §§ 2, 3, eff. Jan. 1, 2016)

Sec. 321-103. Contract; Nullification of Competitive Purchase Procedures by Federal Authority.

Whenever federal statutes or regulations render it impossible for the city to honor

contracts entered into by the normal bidding procedures or to obtain new contracts for the normal bidding procedures of the city and whenever such federal statutes or regulations do provide a possible way for the city to obtain whatever goods or services it needs, the city purchasing agent is authorized to obtain by negotiated purchase such goods or services as may be required, upon such terms and conditions as the city purchasing agent deems they can best be obtained.

Funds certified to contracts which because of federal statutes or regulations cannot be honored to supply goods or services to the City of Cincinnati may be re-certified by the director of finance to any negotiated purchases authorized above.

Whenever it appears to the city purchasing agent that it is not possible to obtain through such negotiated purchases, goods or services in quantities necessary to satisfy the demands of all the departments and divisions under the city manager and of the independent boards and commissions of the city, the city purchasing agent shall allocate such goods and services as can be obtained to the departments and divisions under the city manager and the independent boards and commissions on a fair and equitable basis; in determining what is fair and equitable distribution, the city purchasing agent shall consider the needs and past usage of the departments, divisions, independent boards and commissions involved, the purpose for which such goods or services shall be applied, and its effect upon the public health and safety.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; a. Emer. Ord. No. 177-2008, § 4, eff. June 29, 2008)

Sec. 321-105. Contracts; Ohio Industries for the Handicapped-OIH.

The city purchasing agent, pursuant to Section 4115.34 of the Ohio Revised Code, is authorized to purchase from the Ohio Industries for the Handicapped-OIH products or services in an amount not in excess of $50,000 without additional approval of the city manager or the board or commission in whose behalf the purchase is made without competitive bidding and other procurement procedures otherwise required for supplies and services offered by nonprofits which are part of the Ohio Industries for the Handicapped, Inc., when, in the judgment of the city purchasing agent, such purchases are advantageous to the city in price, value and availability.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992)

Sec. 321-107. Contract; OPI Correctional Industries.

The city purchasing agent, pursuant to Section 5147.07 of the Ohio Revised Code, is authorized to make procurements from the OPI Correctional Industries of supplies or services in an amount not in excess of $50,000 without additional approval of the city manager or the board or commission in whose behalf the procurement is made without competitive bidding and other procurement procedures otherwise required in order to buy from OPI when, in the judgment of the city purchasing agent, such purchases are advantageous to the city in price, value and availability.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992)

Sec. 321-109. Contract; Annual Report.

Annually, the city purchasing agent will report to city council the types and dollar amounts of recycled products contracts used by all city departments, boards and commissions in the previous year. Additional information regarding recycled material may also be included in the annual report.
(Ordained by Ord. No. 141-1994, eff. June 3, 1994)

Sec. 321-111. Construction; Labor and Materials.

Bids or proposals for city projects for construction, erection, repair or alteration of a public building or improvement which involve both work to be done and materials to be furnished shall require separate and distinct bids or proposals for labor and for materials. Failure to separately state the price in the bid for labor and for materials may result in disqualification of the bid or proposal.

The city purchasing agent may choose to not require separate bids or proposals for labor and for materials where the total overall cost of a project for construction, erection, repair or alteration of a public building or improvement is fairly estimated to not exceed the prevailing wage threshold set by Federal or Ohio statutes.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; Emer. Ord. No. 376-2015, § 2, eff. Jan. 1, 2016)

Sec. 321-113. Construction; Separate Trade.

(a) Each trade craft on city projects for construction, demolition, erection, repair or alteration of a public building or improvement shall be invited to bid or requested to respond separately for each trade craft whose work on the project is estimated to be in excess of $10,000.

(b) Contracts shall be awarded separately to the lowest and best bidder for each trade craft unless the separate bids do not cover all the work and materials required or the bids for the whole or two or more kinds of work or materials are lower than the separate bids in the aggregate.

Proposals for such city projects shall be requested separately for each trade craft in accordance with this section but awarded to the most advantageous offeror or offerors.

(c) Bids and proposals for city projects that are not comprised of more than one trade craft that each exceed $10,000 may be invited or requested either in lump sum or separately by trade crafts at the discretion of the city purchasing agent, subject to requirements for separation of labor and materials in such bids or proposals.

(d) "Trade craft" shall mean any of the following:

(1) General construction,

(2) Electrical equipment,

(3) Plumbing and gas fitting,

(4) Steam and hot water heating and air conditioning and ventilating apparatus, and steam power plant, or

(5) Elevator work.

(e) The city purchasing agent may assign any trade craft bid or proposal to a general contractor. "Assigned contract" shall mean a bid or proposal from a trade craft that has been assigned to a general contractor's contract.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; Emer. Ord. No. 376-2015, § 2, eff. Jan. 1, 2016)

Sec. 321-115. Construction; Prevailing Wage.

All state of Ohio provisions of law and ordinance relating to prevailing wage rates applicable to contracts for construction of public improvements shall apply. Federal prevailing wages and its regulations shall take precedent and shall apply to those public improvements that require the application of federal regulations.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992)

Sec. 321-117. Construction; Wrecking or Demolition Contracts; Prevailing Wage Rates.

All provisions of law or ordinance as to the prevailing wage rates applicable to contracts for the construction of public improvements shall apply to contracts for the wrecking or demolition of existing buildings or other structures on public property in connection with the sale and removal of such property.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992)

Sec. 321-118. Applicability of Prevailing Wage Rates to City Development Agreements.

(a) Every development agreement must, as a condition of disbursement of city funds or the receipt of any other incentive or benefit, include a provision that:

(1) Requires the payment of the wage rates set forth pursuant to Ohio's Prevailing Wage Law, Ohio Revised Code sections 4115.03 to 4115.16, with respect to every component of the development, whether public or private, and whether or not such wage rates would otherwise be required to be paid pursuant to Ohio's Prevailing Wage Law;

(2) Provides that violations of Ohio's Prevailing Wage Law on a development, or violations of the provision that must be included in development agreements pursuant to clause (a)(1) of this section, that remain unresolved or uncured after the city provides notice thereof and a reasonable opportunity to resolve and cure the same shall result in the forfeiture of all benefits, incentives, and subsidies provided under the development agreement, whether said benefits, incentives, and subsidies have been previously disbursed or provided or have yet to be disbursed or provided; provided that (i) forfeiture of benefits, incentives or subsidies under this provision shall only apply with respect to the portion of the benefits, incentives, or subsidies that the development agreement does not obligate the developer to repay or reimburse, such as in the case of public infrastructure improvements benefiting a development constructed by the city but paid for by the developer, and (ii) if the city has provided non-monetary benefits, incentives or subsidies, such as the construction of public infrastructure improvements, prior to the date of forfeiture, then the development agreement shall stipulate that, in lieu of the forfeiture of such non-monetary benefits, incentives or subsidies, the forfeiting party shall remit funds to the city in an amount equal to the total value of any such non-monetary benefits, incentives, or subsidies;

(3) Authorizes the city to review and audit project records of the developer and requires the developer to cause any construction contractors or subcontractors to likewise agree to permit the city's review and audit of project records as may be needed to ensure compliance with this section and Ohio's Prevailing Wage Law; and

(4) Grants the city the authority to take such actions, request such documentation, conduct such investigations, and make such determinations with respect to the compliance with or enforcement of this section as may be taken, requested, conducted or made by the Director of the Ohio Depart-

ment of Commerce with respect to the compliance with or enforcement of the provisions of Ohio's Prevailing Wage Law.

(b) The department of community and economic development will determine the wage rates that must be paid pursuant to the provisions described in clause (a)(1) on an individual development basis, premised on its review of the scope of the development and any public improvements undertaken in connection therewith. Each development agreement must include and identify the applicable residential or commercial prevailing wage rates that apply to each component of the work undertaken as a part of the development, regardless of whether such component consists of private improvements. Notwithstanding anything to the contrary in this clause (b), the department of community and economic development will apply (i) commercial rates to a residential component of a development if such residential component is five stories or greater and (ii) residential rates to a residential component of a development if such residential component is below five stories. Without limitation or modification of any obligations the city or the department of community and economic development may be subject to under applicable state and federal law, this clause (b) shall apply only with respect to development agreements, as defined in this Chapter 321, and shall not operate to require the city or the department of community and economic development to determine the applicability of Ohio's Prevailing Wage Law or any other prevailing wage laws or regulations to any agreements or contracts other than development agreements, as defined in this Chapter 321.

(c) The city manager or his or her designee may issue any rules or regulations necessary to implement and administer this section.

(d) The department of economic inclusion will assist the department of community and economic development in fulfilling its obligations under clause (a) of this section by providing information on the applicable prevailing wage rates with respect to each development agreement. For all developments which are subject to development agreements, the department of community and economic development is responsible for monitoring compliance with and enforcing the requirements of this section and Ohio's Prevailing Wage Law. In furtherance of this clause (d), the department of community and economic development, with the cooperation and assistance of the department of economic inclusion, shall prepare and submit to the city manager an annual report summarizing the compliance of all developments subject to this section.

(e) This Section 321-118 shall be construed as being in addition to, and not in limitation of, the requirements of Ohio's Prevailing Wage Law.

(Ordained by Ord. No. 093-2016, § 1, eff. July 1, 2016)

Sec. 321-119. Repealed.

(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; a. Ord. No. 193-2012, § 2, eff. July 6, 2012; r. Emer. Ord. No. 376-2015, §§ 2, 3, eff. Jan. 1, 2016)

Sec. 321-121. Construction; Payments on Public Improvement Contracts.

Partial payments may be made to contractors constructing public improvements as the work progresses. Said payments shall be made not more frequently than monthly, except when the rate of work and amounts involved are so large that it is deemed advisable by the proper city official to make more frequent payments, estimates and payments may be made twice a month. Said

payments shall be based upon estimates, approved by the proper city officer, of the amount of work done, including both labor and materials incorporated in the work since the last partial payment, if any. Payments may also be made for equipment and materials purchased by the contractor for the improvement and stored on the site or in some other place approved by the proper city officer, but the cost of any equipment or materials so paid for shall not be included in any subsequent partial payment, such payments shall be based on the supplier's invoice price to the contractor.

Partial payments to the contractor for labor performed and materials and equipment incorporated into the work under a unit or lump sum contract, shall be made at the rate of not less than 92 percent of the estimates prepared by the contractor and approved by the proper city official. All labor performed and materials and equipment incorporated into the work after the job is 50 percent completed shall be paid for at the rate of 100 percent of the estimate formulated by the contractor and approved by the proper city officer. After completion of the work and acceptance thereof by the city, the full payment due the contractor, less the amount of partial payments made, if any, shall be paid. If the improvement is not accepted in toto and unqualifiedly, there may be retained from the final payment an amount sufficient to guarantee, in the opinion of the proper city officer, the completion of any work undone or the satisfaction of any work or equipment which has not been unqualifiedly accepted.

Payment to the contractor may be withheld by the city in part or whole for violations of or failure of the contractor to comply with the terms and conditions of the contract.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992)

Sec. 321-123. Construction; Mechanics Lien.

Applicable provisions of law and ordinances regarding the application of mechanics liens to the construction of public improvements shall apply to all construction, wrecking and demolition of buildings or other improvements on public property.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992)

Sec. 321-125. Construction; Contractor's Affidavits.

The prime or general contractor on any construction contract for the city shall submit as a condition for payment an affidavit stating that all previous payments due have been made to subcontractors and that current payments due for work done will be made within 15 days after receipt of payment from the city.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992)

Sec. 321-127. Reserved.

Sec. 321-129. Surety; Ohio.

Surety provided by a bond shall be executed by a company licensed to do business in the state of Ohio or approved by the superintendent of insurance to execute such a surety in this state.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992)

Sec. 321-131. Surety; Bid, Proposal and Performance Surety; Waiver.

(a) Bid, proposal, and performance surety may be required in an amount deemed necessary by the city purchasing agent or his or her designee. The city purchasing agent shall establish a commodity and a threshold exemption for bid, proposal, and performance surety.

(b) When the city manager or city purchasing agent has been granted the authority by this chapter to waive requirements for bid, proposal, or performance surety on any city contract, such waiver may be exercised only upon a finding by such official that the waiver will encourage competition and will not impair the city's ability to secure execution or performance of the contract.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; a. Ord. No. 440-2002, eff. Jan. 17, 2003; a. Emer. Ord. No. 177-2008, § 4, eff. June 29, 2008; Emer. Ord. No. 376-2015, § 2, eff. Jan. 1, 2016)

Sec. 321-133. Surety; Bid.

(a) A bid shall be accompanied by a sufficient bond, certified check, or letter of credit, to ensure that if the bid is accepted a contract will be entered into and its performance properly secured unless such requirement has been waived by the city purchasing agent.

(b) A letter of credit submitted as bid surety shall:

(1) Be a writing addressed to the city purchasing agent of the city;

(2) Conspicuously state that it is a letter of credit or be conspicuously so titled;

(3) Be issued by a commercial bank and be an irrevocable, unconditional, sight letter by its terms;

(4) Be signed by one authorized by the bank, with attached documentation of authority to sign on behalf of the bank;

(5) Provide for payment of the amount demanded, to the limit of the letter of credit, by the bank to the city purchasing agent of the city of Cincinnati upon presentation of a written certificate by the city purchasing agent of the city of Cincinnati that the contractor has failed to execute a contract with the city of Cincinnati in accordance with its bid provided said certificate is accompanied by a draft;

(6) The letter of credit shall remain in effect from the acceptance of bidder's bid until the bidder executes a contract with the city of Cincinnati in accordance with the bid; and

(7) A bidder providing a bid surety to the city of Cincinnati shall use the form provided by the city purchasing agent.

(c) The city purchasing agent may require a bid bond, rather than a letter of credit, cashier's check or certified check, when in the opinion of the city purchasing agent, such requirement is in the best interests of the City of Cincinnati.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; a. Emer. Ord. No. 177-2008, § 4, eff. June 29, 2008; Emer. Ord. No. 376-2015, § 2, eff. Jan. 1, 2016)

Sec. 321-135. Surety; Securing Performance of Contract.

(a) The city purchasing agent contracting for the city or any independent board or commission thereof is authorized to set reasonable amounts for performance surety in taking bids and contracting. The city purchasing agent shall require performance surety in the amount of 100 percent of the contract for construction in excess of $50,000.00 or demolition contracts for any amount. The city purchasing agent may require performance surety in the amount of 100 percent of contract for supplies and services. Statutory requirements in regard to the amount of performance surety required for said contracts are hereby declared inoperative in the City of Cincinnati.

(b) A contractor shall, when required to provide performance surety, at the time the contractor enters into a contract with the

city of Cincinnati, file with the city purchasing agent a bond, cashier's check, certified check or letter of credit for the amount of the contract or for such lesser amount as the city purchasing agent may determine.

(c) Any contractor, surety, or bank issuing a letter of credit, who submits a bond, cashier's check, certified check, or letter of credit to secure the performance of a contract with the city of Cincinnati shall submit such security subject to the following terms and conditions:

(1) The security shall indemnify the city of Cincinnati against all damages suffered by the failure of the contractor to perform the contract according to its provisions and in accordance with the plans, details, specifications, and bills of material therefor and shall agree and assent to pay all lawful claims of subcontractors, materialmen, and laborers for labor performed or material furnished in carrying forward, performing or completing the contract, and shall agree and assent that this understanding shall be for the benefit of any subcontractor, materialmen, or laborer having a just claim as well as the city of Cincinnati.

(2) The security posted pursuant to this section for the construction, erection, repair or alteration of a public building or improvement shall remain in effect during the project and for a period of one year following the acceptance of the final statement of costs by the city manager; and

(3) The security posted pursuant to this section for contracts other than for the construction, erection, repair or alteration of a public building or improvement shall remain in effect for such period of time as the city purchasing agent may determine.

(d) A bidder, offeror, contractor or surety providing a performance or bid surety to the city of Cincinnati shall use the form provided by the city purchasing agent.

(e) In addition to the foregoing requirements, a letter of credit shall:

(1) Be a writing addressed to the city purchasing agent of the city of Cincinnati;

(2) Conspicuously state that it is a letter of credit or be conspicuously so entitled;

(3) Be issued by a commercial bank and be an irrevocable, unconditional, sight letter by its terms;

(4) Be signed by one authorized by the bank, with attached documentation of authority to sign on behalf of the bank; and

(5) Provide for payment of the amount demanded, to the limit of the letter of credit, by the bank to the city purchasing agent of the city of Cincinnati upon presentation of a written certificate by the city purchasing agent of the city of Cincinnati that the contractor is in default of any term or condition of the contract, provided said certificate is accompanied by a draft.

(f) The city purchasing agent may require a performance bond, rather than a letter of credit, cashier's check or certified check, when it is deemed by the city purchasing agent that such requirement is in the best interests of the city of Cincinnati.

(g) The city purchasing agent has the discretionary authority to accept a documentary letter of credit as substitute

for posted security when it is deemed by the city purchasing agent that it is in the best interests of the city of Cincinnati.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; Emer. Ord. No. 376-2015, § 2, eff. Jan. 1, 2016)

Sec. 321-137. Repealed.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; a. Ord. No. 110-1994, eff. 5-6-94; a. Ord. No. 440-2002, eff. Jan. 17, 2003; a. Emer. Ord. No. 177-2008, § 4, eff. June 29, 2008; a. Ord. No. 347-2009, § 5, eff. Dec. 18, 2009; r. Emer. Ord. No. 376-2015, §§ 2, 3, eff. Jan. 1, 2016)

Sec. 321-139. Surety; Forms.

The surety required pursuant to this Chapter 321 of the Cincinnati Municipal Code shall be in substantially the following forms, and recovery of any claimant thereunder shall be subject to Chapter 321 of the Cincinnati Municipal Code, as amended, to the same extent as if the provisions of such sections were fully incorporated in such surety form:

(a) *Form of Bid Surety.*

"KNOW ALL MEN BY THESE PRESENTS, that we, the undersigned _____ as principal and _____ as sureties, are hereby held and firmly bound unto _____ as obligee in the penal sum of the dollar amount of the bid submitted by the principal to the obligee on _____ to undertake the project known as _____. The penal sum referred to herein shall be the dollar amount of the principal's bid to the obligee, incorporating any additive or deductive alternate proposals made by the principal on the date referred to above to the obligee, which are accepted by the obligee. In no case shall the penal sum exceed the sum of $ _____ dollars. (If the foregoing blank is not filled in, the penal sum will be the full amount of the principal's bid, including alternates. Alternatively, if the blank is filled in, the amount stated must not be less than the full amount of the bid including alternates, in dollars and cents. A percentage is not acceptable.) For the payment of the penal sum well and truly to be made, we hereby jointly and severally bind ourselves, our heirs, executors, administrators, successors, and assigns.

Signed this ____ day of _____, 19____.

THE CONDITION OF THE ABOVE OBLIGATION IS SUCH, that, whereas the above named principal has submitted a bid for _____.

Now, therefore, if the obligee accepts the bid of the principal and the principal fails to enter into a proper contract in accordance with the bid, plans, details, specifications, and bills of material; and in the event the principal pays to the obligee the difference not to exceed ten per cent of the penalty hereof between the amount specified in the bid and such larger amount for which the obligee may in good faith contract with the next lowest bidder to perform the work covered by the bid; or in the event the obligee does not award the contract to the next lowest bidder and resubmits the project for bidding, the principal pays to the obligee the difference not to exceed ten per cent of the penalty hereof between the amount specified in the bid, or the costs, in connection with the resubmission, of printing new contract docu-

ments, required advertising, and printing and mailing notices to prospective bidders, whichever is less, then this obligation shall be null and void, otherwise to remain in full force and effect; if the obligee accepts the bid of the principal and the principal within ten days after the awarding of the contract enters into a proper contract in accordance with the bid, plans, details, specifications, and bills of material, which said contract is made a part of this bond the same as though set forth herein;

Now, also, if the said _____ shall well and faithfully do and perform the things agreed by _____ to be done and performed according to the terms of said contract; and shall pay all lawful claims of subcontractors, materialmen, and laborers, for labor performed and materials furnished in the carrying forward, performing, or completing of said contract; we agreeing and assenting that this undertaking shall be for the benefit of any materialman or laborer having a just claim, as well as for the obligee herein; then this obligation shall be void; otherwise the same shall remain in full force and effect; it being expressly understood and agreed that the liability of the surety for any and all claims hereunder shall in no event exceed the penal amount of this obligation as herein stated.

The said surety hereby stipulates and agrees that no modifications, omissions, or additions, in or to the terms of the said contract or in or to the plans or specifications therefor shall in any wise affect the obligations of said surety on its bond."

(See Section 153.571 ORC, Form of bid guaranty bond.)

(b) *Form of Performance Surety.*

"KNOW ALL MEN BY THESE PRESENTS, that we, the undersigned _____ as principal and _____ as sureties, are hereby held and firmly bound unto _____ in the penal sum of _____ dollars, for the payment of which well and truly to be made, we hereby jointly and severally bind ourselves, our heirs, executors, administrators, successors, and assigns.

Signed this ____ day of _____, 19____.

THE CONDITION OF THE ABOVE OBLIGATION IS SUCH, that whereas the above named principal did on the _____ day of _____, 19____ enter into a contract with _____, which said contract is made a art of this bond the same as though set forth herein;

Now, if the said _____ shall well and faithfully do and perform the things agreed by _____ to be done according to the terms of said contract; and shall pay all lawful claims of subcontractors, materialmen, and laborers, for labor performed and materials furnished in carrying forward, performing, or completing of said contract; we agreeing and assenting that this undertaking shall be for the benefit of any materialman or laborer having a just claim, as well as for the obligee herein; then this obligation shall be void; otherwise the same shall remain in full force and effect; it being expressly understood and agreed that the liability of the surety for any

and all claims hereunder shall in no event exceed the penal amount of this obligation as herein stated.

The said surety hereby stipulates and agrees that no modifications, omissions, or additions, in or to the terms of the said contract or in or to the plans or specifications therefor shall in any wise affect the obligations of said surety on its bond."

(See Section 153.57 ORC, Form of performance bond.)

(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992)

Sec. 321-141. Disposal and Sale of Personal Property Under $20,000.

Personal property of the city of Cincinnati, which is determined by the city manager or city purchasing agent or board or commission having supervision or management thereof, or any of their designees, to no longer be needed for municipal purposes, the estimated value of each item of which is less than $20,000.00, and which shall include unclaimed or forfeited property in the possession of the police department, may be sold, traded, auctioned, donated, destroyed, transferred, or disposed of on an "as is" basis by the city purchasing agent, the police chief or his designee:

(a) By sale by bid to the highest and best bidder. The city purchasing agent has the right to reject any and all bids.

(b) By auction sale, including either traditional auction or online internet auction.

(c) By donating such items to an appropriate charitable organization operating within the city or serving the citizens of the city or other governmental body.

(d) By destruction upon the determination of the city manager that the personal property (weapons, ammunition, drugs, and drug paraphernalia only) needs to be destroyed rather than sold or donated for public safety reasons.

(e) By trade for goods or services of like value when such trade of personal property is determined by the city purchasing agent to be in the best interest of the city.

(f) By disposal or refuse collection where the personal property has minimal value.

(g) By trade-in for credit at the time of purchase of new replacement property.

(h) By sale to a retired police officer of the officer's service weapon and leather goods at the fair market value or in accord with any applicable collective bargaining provisions. Leather goods mean any or all of the officer's gunbelt, ammunition case, chemical mace holder, handcuff case, and PR-24 holder. The fair market values of the service revolver and leather goods shall be determined by the police chief and records of ownership and transfer of service weapons and leather goods sold shall be maintained by the police department.

(i) The city manager or a designee may establish terms for and transfer the ownership of any police dog or police horse deemed no longer fit or otherwise suitable for duty. Such transfer of ownership may be for humanitarian reasons or upon such other terms as may be established by the city manager or a designee. Any transfer of ownership pursuant to this paragraph shall be to the Cincinnati police officer who acted as the

canine handler during the dog's active service, a Cincinnati police officer on the mounted patrol to whom the horse was assigned during active duty, or any other suitable person determined to be capable of providing for the continued maintenance and welfare of the animal. Such transfer of ownership shall be contingent upon the execution of a release approved by the city solicitor's office.

(j) By sale to a retired city employee at fair market value pursuant to terms established and approved by the city manager.

(k) By agreement signed by the city manager.

This section applies to all items that may have economic value to the city, such as office or other paper, ink cartridges, or other items that may be sold to a business or person for the benefit of the city.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; a. Ord. No. 169-1995, eff. June 2, 1995; a. Ord. No. 181-1998, eff. June 5, 1998; a. Ord. No. 397-2003, eff. Dec. 25, 2003; a. Ord. No. 177-2004, eff. June 18, 2004; a. Emer. Ord. No. 177-2008, § 4, eff. June 29, 2008; Emer. Ord. No. 376-2015, § 2, eff. Jan. 1, 2016)

Sec. 321-143. Disposal and Sale of Personal Property in Excess of $20,000.

Personal property of the city of Cincinnati which is determined by the city manager, city purchasing agent, or board or commission having supervision or management thereof, or any of their designees, to no longer be needed for municipal purposes, and which has an estimated individual item value in excess of $20,000, may be sold to the highest and best bidder on an "as is" basis by the city purchasing agent by the following procedures:

(a) If the estimated value is in excess of $20,000 but not in excess of $100,000, formal advertising is not required for the sale.

A listing of items to be sold which are estimated to be in excess of $20,000 but not in excess of $100,000 shall be advertised in The City Bulletin under the heading "Notice - Bids Wanted" and in any other paper or online publication or auction site determined to be appropriate by the city purchasing agent.

All advertisements shall indicate the following for each item:

(1) The item, any reference number, and other relevant descriptive information;

(2) That bids will be received until 3:00 p.m. (local time) on the date specified and in the manner specified by the city purchasing agent; and

(3) That copies of the inquiry are available at the office of the city purchasing agent.

The city manager or the city purchasing agent may at any time require formal advertisement or bid surety on any sale of $100,000 or less, when such procedure is deemed desirable to protect the best interests of the city.

(b) If the estimated value is in excess of $100,000, the property shall be sold pursuant to the following process:

(1) By sealed bids or bids or offers similarly submitted so that

prospective purchasers cannot determine the bid or offer of another purchaser.

(2) By online or public auction when the city purchasing agent with approval of the city manager determines that method will serve the best interests of the city.

(3) Advertised under the formal advertising and contract procedures.

Bid surety shall be required on such bids unless the city purchasing agent determines such surety is not necessary to protect the best interests of the city. The city purchasing agent may make a written contract with the highest and best bidder after formal advertisement.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; Emer. Ord. No. 376-2015, § 2, eff. Jan. 1, 2016)

Sec. 321-145. Alterations, Modifications and Change Orders.

Contracts entered into by the city purchasing agent shall be between the city and the bidder or offeror.

When determined by the city purchasing agent or a person designated by the city purchasing agent it becomes necessary, in the performance of a contract, to make alterations or modifications in the contract, such alterations or modifications shall only be made upon the order of the city purchasing agent or a person designated by the city purchasing agent, but such order shall be of no effect until the price to be paid for the alteration or modification of the contract has been agreed upon in writing and signed by the city purchasing agent or a person designated by the city purchasing agent and the contractor. Whenever such a change is executed, it shall be considered as being a part of the original contract, and the surety executed shall be held to include and cover it.

No contractor may recover anything for work or material because of any such alteration or modification unless the contract is made in such manner, nor shall contractors be allowed to recover for such work and material, or either, more than the agreed price.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; a. Emer. Ord. No. 177-2008, § 4, eff. June 29, 2008)

Sec. 321-147. Assignments.

"Assignment" shall mean a transfer of any rights, obligations, responsibilities or payments by a bidder, offeror or contractor in a bid, proposal or contract of the city to another individual, partnership, corporation or other entity.

Any assignment of a bid, proposal or contract of the city shall be ineffective unless the city purchasing agent consents to such assignment.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992)

Sec. 321-149. Reserved.

Sec. 321-151. Default; Duty When Contractor Fails to Prosecute the Work.

When the work under any contract made by the city is neglected by the contractor or such work is not prosecuted with the diligence and force specified or intended in the contract, the city purchasing agent or contracting authority may make requisition upon the contractor for such additional specific force or materials to be brought into the work under such contract or to remove improper

materials from the grounds as in their judgment the contract and its faithful fulfillment requires.

Not less than five days' notice in writing of such action shall be served upon the contractor or agent in charge of the work. If the contractor fails to comply with such requisition within 15 days, the city purchasing agent or contracting authority may employ upon the work the additional force, or supply the special materials or such part of either as deemed proper, and may remove improper materials from the grounds.

Separate estimates of all additional force or materials employed or supplied shall be certified by the city purchasing agent or contracting authority and shall be paid by the director of finance. The amount so paid shall be charged against the contractor and be deducted from the next or subsequent estimate. The amount or any part thereof not so paid may be recovered by action from the contractor and contractor's sureties.
(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992)

Sec. 321-153. Default; Debarment.

(a) No person, company, vendor, bidder, contractor, subcontractor on a contract or bid, or principal or owner of a company, vendor, bidder, contractor, or subcontractor on a contract or bid that defaults on any bid, proposal or contract with the city of Cincinnati shall be permitted to submit a bid or proposal for any business or participate on any contract in any capacity with the city of Cincinnati until the amount of the damages accruing to the city by reason of such default shall have been fully paid. No such defaulting person, company, vendor, bidder, contractor, subcontractor on a contract or bid, or principal or owner of a company, vendor, bidder, contractor, or subcontractor on a contract or bid shall be permitted to submit a bid or proposal within the period of two years from the date of the default, except with the prior written permission of the city manager.

(b) A person, company, vendor, bidder, contractor, subcontractor on a contract or bid, or principal or owner of a company, vendor, bidder, contractor, or subcontractor on a contract or bid that provides false information regarding its SBE, SLBE, ELBE, MBE, or WBE status shall be in default and subject to the penalty provided in this section.

(c) A person, company, vendor, bidder, contractor, subcontractor on a contract or bid, or principal or owner of a company, vendor, bidder, contractor, or subcontractor on a contract or bid shall be in default and subject to the penalty provided in this section for any of the following:

(1) Failure to cooperate in the city's monitoring of contract performance by refusing to provide information or documents required by a contract;

(2) Failure to respond adequately to complaints by city representatives regarding performance or other issues;

(3) Accumulation of repeated documented complaints regarding performance of a contract;

(4) Failure to be a taxpayer in good standing as defined in this chapter;

(5) Failure to pay any financial obligation to the city or any of its departments, boards, or commissions;

(6) Failure to pay prevailing wage as required by state or federal law or comply with similar laws, including without limitation the Davis Bacon and Related Acts and the Contract Work Hours and Safety Standards Act; or

(7) Commission of wage theft or payroll fraud as defined in chapter 326 of the Cincinnati Municipal Code.

(d) A person, company, vendor, bidder, contractor, subcontractor on a contract or bid, or principal or owner of a company, vendor, bidder, contractor, or subcontractor on a contract or bid that has been debarred by any federal, state, or local governmental agency shall be debarred from participating in city contracts. A person, company, vendor, bidder, contractor, subcontractor on a contract or bid, or principal or owner of a company, vendor, bidder, contractor, or subcontractor on a contract or bid who is awarded a city contract while debarred by any federal, state, or local government agency or becomes debarred by any federal, state, or local government agency while working on a city contract will be considered in default of the city contract and subject to the penalty provided in this section.

(e) The city purchasing agent shall provide written notice by certified mail to any person or business who is debarred pursuant to this section. The notice shall state the following:

(1) The effective dates of the debarment; and

(2) That any aggrieved party shall have fourteen days to submit written information to the city purchasing agent regarding why the debarred person or business should not be debarred.

The purchasing agent shall have fourteen days following the receipt of written materials challenging the debarment to issue a written decision regarding the debarment and mail the decision by certified mail to the person who challenged the debarment. The purchasing agent's decision shall be final.

(f) The city purchasing agent shall maintain a list of persons, companies, vendors, bidders, contractors, subcontractors on a contract or bid, or principals or owners of a company, vendor, bidder, contractor, or subcontractor on a contract or bid found by the city purchasing agent to be in default and subject to the penalty provided in this section. This list will be made publicly available.

(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; a. Ord. No. 124-2012, § 2, eff. May 18, 2012; Emer. Ord. No. 376-2015, § 2, eff. Jan. 1, 2016; a. Ord. No. 022-2016, § 2, eff. March 3, 2016)

Sec. 321-155. Default; Payment Withheld.

Payment to the contractor may be withheld by the city in part or whole for violations of or failure of the contractor to comply with the terms and conditions of the contract.

(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992)

Sec. 321-157. Repealed.

(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; r. Ord. No. 331-1999, eff. 8-4-99)

Sec. 321-159. Non-Discrimination in Purchasing and Contracting.

Those awarded contracts by the city or subcontracts to a city contract shall comply with Chapters 323 and 324 of the Cincinnati Municipal Code and all other applicable chapters and all rules or regulations adopted to fulfill the requirements of those chapters.

(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; r. Ord. No. 110-1994, eff. 5-6-94; reordained by Ord. No. 439-2002, eff. Jan. 17, 2003; Emer. Ord. No. 376-2015, § 2, eff. Jan. 1, 2016)

Sec. 321-161. Repealed.

(Ordained by Ord. No. 426-1992, eff. Oct. 23, 1992; r. Emer. Ord. No. 376-2015, §§ 2, 3, eff. Jan. 1, 2016)

Sec. 321-163. Invalid Terms and Conditions.

(a) Except as otherwise required or permitted by state or federal law, a contract entered into by the city for the procurement of supplies, services, professional services, or construction as defined in Section 321-1 shall not include any of the following:

(1) A provision that requires the city to indemnify or hold harmless another person;

(2) A provision that requires the city to agree to limit the liability for any direct loss to the city for bodily injury, death, or damage to property of the city caused by the negligence, intentional or willful misconduct, fraudulent act, recklessness, or other tortious conduct of a person or a person's employees or agents, or a provision that would otherwise impose an indemnification obligation on the city;

(3) A provision that requires the city to be bound by a term or condition that is unknown to the city at the time of signing a contract or that may be unilaterally changed by the other party;

(4) A provision that is not specifically negotiated with the city or that is electronically accepted by a city employee without authority to accept the contract on behalf of the city;

(5) A provision that provides for a person other than the city solicitor to serve as legal counsel for the city without the approval of the solicitor;

(6) A provision that is inconsistent with the city's public records obligations under sections 149.351 or 149.43 of the Ohio Revised Code;

(7) A provision for automatic renewal such that city funds are or would be obligated in subsequent fiscal years without a subsequent appropriation by city council and certification by the director of finance;

(8) A provision that would require the payment of interest or a penalty inconsistent with Chapter 319 of the Cincinnati Municipal Code; or

(9) A provision whereby the seller agrees to provide financing to the city for the transaction without authorization by city council.

(b) If a contract contains a term or condition described in division (a) of this section, the term or condition is void ab initio, and the contract containing that term or condition otherwise shall be enforceable as if it did not contain such term or condition.

(c) A contract that contains a term or condition described in division (a) of this section shall be governed by and construed in accordance with Ohio law notwithstanding any term or condition to the contrary in the contract.

(d) This section does not apply to a contract awarded

(1) as a sole source pursuant to Chapter 321-85;

(2) as a single available source pursuant to Chapter 321-86;

(3) as an emergency purchase pursuant to Chapter 321-89; and

(4) as a joint or cooperative purchase pursuant to Chapter 321-97.

(e) This section does not apply to a contract in effect before the effective date of this section or to the renewal or extension of a contract in effect before the effective date of this section.

(Ordained by Ord. No. 138-2023, § 1, eff. April 19, 2023)

Chapter 323

SMALL BUSINESS ENTERPRISE AND LOCAL BUSINESS ENTERPRISE PROGRAMS*

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Sec. 323-1-B. Bid.
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Sec. 323-1-B2. Brokerage.
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Sec. 323-1-C2. Commercially Useful Function.
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***Editor's note—**Ord. No. 307-2015, §§ 3 and 4, adopted Sept. 30, 2015, and effective Jan. 1, 2016, repealed ch. 323 in its entirety and enacted a new chapter as set out herein. The former ch. 323, §§ 323-1—323-99, pertained to the small business enterprise program and derived from Ord. No. 335-1999, eff. Aug. 4, 1999; Ord. No. 435-2002, eff. Jan. 17, 2003; Ord. No. 436-2002, eff. Jan. 17, 2003; Ord. No. 107-2003, §§ 1, 2, eff. May 15, 2003; Ord. No. 0214-2009, §§ 1—3, eff. July 24, 2009; Emer. Ord. No. 175-2011, § 1, eff. May 25, 2011; Ord. No. 192-2012, § 1, eff. July 6, 2012; and Ord. No. 264-2013, §§ 1, 2, eff. Oct. 11, 2013.

Cross reference—Minority and women business enterprise program, ch. 324.

Sec. 323-29. SBE, SLBE and ELBE Resource Information.
Sec. 323-31. SBE, SLBE and ELBE Directory.
Sec. 323-33. SBE, SLBE and ELBE Assistance to Provide an Equitable Opportunity to Compete for Contracts and Subcontracts.
Sec. 323-35. Contractor and Subcontractor Assistance to Support Compliance with Applicable SBE, SLBE and ELBE Requirements.
Sec. 323-37. Subcontracting Outreach Program.
Sec. 323-99. Penalties.

Sec. 323-1. Definitions.

For the purpose of this chapter, the words and phrases defined in the sections hereunder shall have the meanings therein respectively ascribed to them, unless a different meaning is clearly indicated by the context.
(Ordained by Ord. No. 307-2015, § 4, eff. Jan. 1, 2016)

Sec. 323-1-A. Affiliation.

"Affiliation" or "affiliated" shall mean the relationship between or among businesses where one business controls or has the ability or power to control another or when one or more parties control or have the ability or power to control both businesses. Control may arise through an ownership interest or management of both businesses or other relationships or interactions between or among the businesses or parties.
(Ordained by Ord. No. 307-2015, § 4, eff. Jan. 1, 2016)

Sec. 323-1-B. Bid.

"Bid" shall have the same meaning as provided in Section 321-1-B1 of the Cincinnati Municipal Code.
(Ordained by Ord. No. 307-2015, § 4, eff. Jan. 1, 2016)

Sec. 323-1-B1. Board.

"Board" shall mean the Contract Compliance Advisory Board.
(Ordained by Ord. No. 307-2015, § 4, eff. Jan. 1, 2016)

Sec. 323-1-B2. Brokerage.

"Brokerage" or "Broker" shall mean a person or firm which contracts with third parties on behalf of the broker's principal or a specialist who represents buyers of goods, without taking possession or ownership of these goods, or an agent employed to make bargains and contracts for compensation. A broker acts as middleman in transactions between a buyer and a seller, generally receiving a commission or fee for work performed. An independent manufacturer's representative or a distributor is not a broker.
(Ordained by Ord. No. 307-2015, § 4, eff. Jan. 1, 2016)

Sec. 323-1-C. Certification.

"Certification" or "Recertification" shall mean the designation provided to an SBE, SLBE or ELBE that meets the qualification criteria set forth in this chapter and in the rules and regulations promulgated under the authority of this chapter for participation in the SBE, SLBE or ELBE programs in the appropriate construction, professional services, or supplies and non-professional services category for which the contract is being awarded and formally approved by the director or the director's designee as having met such criteria. Certification or recertification relate to qualifications regarding ownership and control of the business, not the quality of the service or product offered.
(Ordained by Ord. No. 307-2015, § 4, eff. Jan. 1, 2016)

Sec. 323-1-C1. City Purchasing Agent.

"City purchasing agent" shall have the same meaning as provided in Section 321-1-C of the Cincinnati Municipal Code.
(Ordained by Ord. No. 307-2015, § 4, eff. Jan. 1, 2016)

Sec. 323-1-C2. Commercially Useful Function.

(a) "Commercially useful function" shall mean that the business is directly responsible for providing the supplies or services to the city as required by the solicitation or request for quotes, bids or proposals. An SBE, SLBE or ELBE is considered to perform a commercially useful function when it is responsible for the execution of a distinct

element of the work of a contract and carries out its responsibilities by actually performing, managing and supervising the work involved, taking into consideration the amount of work subcontracted, industry practices, and other factors determined by the director to be relevant. A business which stocks sufficient quantities of supplies in direct inventory, held for sale or resale, to cover anticipated future demands for the supplies provides a "commercially useful function."

(b) SBEs, SLBEs or ELBEs that engage in the business of providing brokerage shall not be deemed to perform a "commercially useful function" unless the brokerage services are those required and sought by the city. An SBE, SLBE or ELBE does not perform a "commercially useful function" if its role is limited to that of an extra participant in a transaction, contract, or project through which funds are passed in order to obtain the appearance of meaningful and useful SBE, SLBE or ELBE participation, when no such role is performed in similar transactions in which SBE, SLBE or ELBE firms do not participate.
(Ordained by Ord. No. 307-2015, § 4, eff. Jan. 1, 2016)

Sec. 323-1-C3. Contract.

"Contract" shall mean a contract in excess of $5,000.00, except types of contracts listed by the city purchasing agent as exempt and approved by the city manager, for:

(a) Construction;

(b) Supplies;

(c) Services; or

(d) Professional Services.
(Ordained by Ord. No. 307-2015, § 4, eff. Jan. 1, 2016)

Sec. 323-1-C4. Construction.

"Construction" shall mean any construction, reconstruction, improvement, enlargement, alteration, repair, painting, decorating, wrecking or demolition of any public improvement.
(Ordained by Ord. No. 307-2015, § 4, eff. Jan. 1, 2016)

Sec. 323-1-D. Department.

"Department" shall mean the department of economic inclusion.
(Ordained by Ord. No. 307-2015, § 4, eff. Jan. 1, 2016)

Sec. 323-1-D1. Director.

"Director" shall mean the director of the department of economic inclusion or his or her designee.
(Ordained by Ord. No. 307-2015, § 4, eff. Jan. 1, 2016)

Sec. 323-1-D2. Dominant.

"Dominant" shall mean the exercise by a business of a controlling or major influence on the industry in which it operates.
(Ordained by Ord. No. 307-2015, § 4, eff. Jan. 1, 2016)

Sec. 323-1-E. Economic Inclusion Initiatives.

"Economic inclusion initiatives" shall mean those procurement tools designed to enhance contracting opportunities for SLBEs or ELBEs, including bid incentives, price preferences, sheltered market programs, preference points in proposal evaluations, and bonding and insurance waivers.
(Ordained by Ord. No. 307-2015, § 4, eff. Jan. 1, 2016)

Sec. 323-1-E1. Emerging Local Business Enterprise; ELBE.

"Emerging local business enterprise" or "ELBE" shall mean a firm that:

(a) Is an independently-owned and operated for-profit business that is not a broker, is not a subsidiary of another business, and is not dominant in its field of operation;

(b) Performs a commercially useful function;

(c) Has had no more than five full-time employees at any one time during its existence;

(d) Has owners who are actively involved in day-to-day management and control of the business;

(e) Has annual gross receipts, averaged over the life of the business, of not more than $250,000.00;

(f) Has either a principal place of business or significant employee presence in the city of Cincinnati;

(g) Has been in existence for less than five years; and

(h) Has not received, in the year immediately preceding the certification application, more than $250,000.00 in city payments under contracts awarded through an open and competitive bidding process, awarded through the sheltered market program, or awarded directly through a non-competitive process.

(Ordained by Ord. No. 307-2015, § 4, eff. Jan. 1, 2016)

Sec. 323-1-I. Independent Ownership and Control.

"Independent ownership and control" or "independently owned and controlled" applies both to individual SBEs, SLBEs and ELBEs and to SBEs and SLBEs engaged in a joint venture with other businesses. For an individual SBE, SLBE or ELBE, "independent ownership and control" shall mean the degree to which owners of the SBE, SLBE or ELBE participate in and are capable of participating in the decisions affecting day-to-day operations of the business, by considering the ability of the owners of the SBE, SLBE or ELBE to function and carry out daily business activities without relying upon others who are not owners or employees of the SBE, SLBE or ELBE, such as consultants, advisers, accountants, or owners' relatives. In determining the ability of the owners of the SBE, SLBE or ELBE to operate the business, the department may consider the owners' work experience, including experience in the primary industry in which the firm is seeking SBE, SLBE or ELBE certification, specialized training, education, and any other factors the director deems relevant.

For SBEs involved in a joint venture with a non-SBE as permitted by this chapter, "independent ownership and control" shall be determined by considering the participation of the owners of the SBE in the decisions affecting day-to-day operations of the joint venture, the ability of the owners of the SBE to function and carry out those daily business activities assigned to the SBE by agreement of the parties to the joint venture without assistance from the non-SBE business. "Independent ownership and control" also may be determined by considering the proportionate interest of the owners of the SBE in the capital, assets, profits and losses of the joint venture.

In determining whether a joint venture is independently owned and controlled by the owners of the SBE, the director may use discretion in weighing the foregoing factors, as well as any other factor, which, in the director's opinion, affects independent ownership and control.

Sec. 323-1-I1. Invitation to Bid.

"Invitation to bid" shall have the same meaning as provided in Section 321-1-I of the Cincinnati Municipal Code.
(Ordained by Ord. No. 307-2015, § 4, eff. Jan. 1, 2016)

Sec. 323-1-J. Joint Venture.

"Joint venture" shall mean a combination of two or more persons, firms or corporations who, without any partnership or corporate designation, join to carry out a single business project or undertaking which is limited in scope and duration.
(Ordained by Ord. No. 307-2015, § 4, eff. Jan. 1, 2016)

Sec. 323-1-L. Local business Enterprise; LBE.

"Local business enterprise" or "LBE" shall mean a firm having a principal place of business or a significant employee presence in the city of Cincinnati.
(Ordained by Ord. No. 307-2015, § 4, eff. Jan. 1, 2016)

Sec. 323-1-P. Points.

"Points" shall mean the quantitative assignment of value for specific response evaluation criteria in the contractor selection process initiated by a request for proposal.
(Ordained by Ord. No. 307-2015, § 4, eff. Jan. 1, 2016)

Sec. 323-1-P1. Principal Place of Business.

"Principal place of business" shall mean a location at which a business maintains a headquarters or physical office and from which it coordinates and generates no less than fifty percent of its overall gross revenues.
(Ordained by Ord. No. 307-2015, § 4, eff. Jan. 1, 2016)

Sec. 323-1-P2. Professional Services.

"Professional services" shall mean professional services as defined in Section 321-1-P of the Cincinnati Municipal Code.
(Ordained by Ord. No. 307-2015, § 4, eff. Jan. 1, 2016)

Sec. 323-1-R. Regulations; Rules.

"Regulations" or "Rules" shall mean the regulations promulgated by the city manager pursuant to Section 323-5, "Rules and Regulations," of this chapter.
(Ordained by Ord. No. 307-2015, § 4, eff. Jan. 1, 2016)

Sec. 323-1-R1. Request for Proposal; RFP.

"Request for proposal" or "RFP" shall have the same meaning as provided in Section 321-1-R3 of the Cincinnati Municipal Code.
(Ordained by Ord. No. 307-2015, § 4, eff. Jan. 1, 2016)

Sec. 323-1-R2. Request for Qualifications.

"Request for qualifications" or "RFQ" shall have the same meaning as provided in Section 321-1-R4 of the Cincinnati Municipal Code.
(Ordained by Ord. No. 307-2015, § 4, eff. Jan. 1, 2016)

Sec. 323-1-S. Services.

"Services" shall have the same meaning as provided in Section 321-1-S of the Cincinnati Municipal Code.
(Ordained by Ord. No. 307-2015, § 4, eff. Jan. 1, 2016)

Sec. 323-1-S1. Sheltered Market.

"Sheltered market" shall mean a city contract or procurement that is reserved for competition among eligible SLBEs or ELBEs.
(Ordained by Ord. No. 307-2015, § 4, eff. Jan. 1, 2016)

Sec. 323-1-S2. Significant Employee Presence.

"Significant employee presence" shall mean twenty-five percent or more of a firm's total number of full- and part-time employees are domiciled within the geographic limits of the city of Cincinnati.
(Ordained by Ord. No. 307-2015, § 4, eff. Jan. 1, 2016)

Sec. 323-1-S3. Small Business Enterprise; SBE.

"Small business enterprise" or "SBE" shall mean a firm for which the gross revenue or number of employees averaged over the past three years, inclusive of any affiliates as defined by 13 C.F.R. Sec. 121.103, does not exceed the size standards as defined pursuant to 15 U.S.C. Section 632 and 13 C.F.R. Section 121.101, et seq. and for which the personal net worth of each owner does not exceed $750,000.00. An SBE also must meet all of the following:

(a) Such business shall have been in existence at least one year prior to application for participation in the SBE program;

(b) Such business shall have maintained fixed offices located within the geographic boundaries of Hamilton County for at least one year prior to application for certification as an SBE;

(c) Such business must perform a commercially useful function;

(d) Such business has been certified by the city;

(e) The personal net worth of each owner of such business cannot exceed $750,000.00 at the time of initial certification or recertification, or at any time during the certification period. If an owner is married, the aggregate net worth of the owner and his or her spouse may not exceed $750,000.00. Net worth shall be determined as follows:

(1) Contingent liabilities, transfers to immediate family members within two years of the application for SBE certification or recertification, and the value of retirement accounts not subject to a significant withdrawal tax penalty are included in the calculation of net worth; but

(2) Equity in the owner's primary residence, the value of the owner's ownership interest in the business applying for SBE certification or recertification, and the value of retirement accounts subject to a significant withdrawal tax penalty are not included in the calculation of net worth.

(f) Each individual upon whom eligibility is based and his or her spouse must file a separate, detailed personal financial statement;

(g) All owners of such business must be United States citizens;

(h) Such business or joint venture must meet the definition of independent ownership and control; and

(i) Franchisees and brokers are not eligible to be certified as SBEs.

(Ordained by Ord. No. 307-2015, § 4, eff. Jan. 1, 2016)

Sec. 323-1-S4. Small Local Business Enterprise; SLBE.

"Small local business enterprise" or "SLBE" shall mean a firm that:

(a) Is an independently-owned and operated for-profit business that is not a

broker, is not a subsidiary of another business, and is not dominant in its field of operation;

(b) Performs a commercially useful function;

(c) Has had no more than thirty-five full-time employees at any one time during the last three years;

(d) Has owners who are actively involved in day-to-day management and control of the business;

(e) Has annual gross receipts, averaged over the past three fiscal years, of not more than $1,000,000.00;

(f) Has either a principal place of business or significant employee presence within the geographic limits of the city of Cincinnati;

(g) Has been established for at least one year or the owners have at least three years of relevant experience prior to forming or joining the business; and

(h) Has not received, in the year immediately preceding the initial certification application, more than $500,000.00 in city payments under contracts awarded through an open and competitive bidding process, awarded through the sheltered market program, or awarded directly through a non-competitive process.

(Ordained by Ord. No. 307-2015, § 4, eff. Jan. 1, 2016)

Sec. 323-1-S5. Supplies.

"Supplies" shall mean supplies as defined in Section 321-1-S2 of the Cincinnati Municipal Code.

(Ordained by Ord. No. 307-2015, § 4, eff. Jan. 1, 2016)

Sec. 323-1-S6. Suspension.

"Suspension" shall mean the temporary stoppage, for a finite period of time, of the beneficial participation of an SLBE or ELBE in the economic inclusion initiatives available to SLBEs and ELBEs under this chapter due to the receipt by the SLBE or ELBE of cumulative city contract payments in that fiscal year in excess of the amounts specified in subsection (f)(1) of Section 323-9 of this chapter.

(Ordained by Ord. No. 307-2015, § 4, eff. Jan. 1, 2016)

Sec. 323-3. Purpose; Scope and Limitations.

The purpose of the SBE, SLBE and ELBE programs of the city is to promote the economic welfare of the people of the city of Cincinnati, to mitigate the effects of discrimination against SBEs, SLBEs and ELBEs, and to promote full and equal business opportunity for all persons doing business with the city of Cincinnati, through race- and gender-neutral means, by assisting SBEs, SLBEs and ELBEs to actively participate in the city's procurement process and by working to eliminate SBE, SLBE and ELBE discrimination in public markets.

It is also the intent and purpose of the SLBE and ELBE components of the program to encourage the use of small local business enterprises and emerging local business enterprises in order to directly benefit the local economy of the city of Cincinnati, support local job creation, and further the city's commitment to be neither an active nor passive participant in private sector marketplace discrimination.

The SBE, SLBE and ELBE programs may be applied by the director, in consultation with the city purchasing agent, on a contract-by-contract basis to the maximum extent permissible under federal and state law.

(Ordained by Ord. No. 307-2015, § 4, eff. Jan. 1, 2016)

Sec. 323-5. Rules and Regulations.

The city manager shall issue and enforce rules and regulations to carry out the meaning and purpose of the SBE, SLBE and ELBE programs and the subcontractor outreach program authorized by this chapter. (Ordained by Ord. No. 307-2015, § 4, eff. Jan. 1, 2016)

Sec. 323-7. SBE Certification.

(a) *Requirements.* To be eligible for certification as an SBE, each applicant must meet the definition of an SBE in Section 323-1-S3.

(b) *Certification Process.*

(1) A business seeking certification as an SBE must:

(A) Submit an application to the department on the prescribed form, affirming under penalty of perjury that the business qualifies as a city of Cincinnati SBE, as that term is defined in Section 323-1-S3; and

(B) If requested by the department, the applicant must provide any and all materials and information necessary to demonstrate active participation in the control, operation, and management of the business.

(2) The department will review and evaluate applications, and may reject an application based on one or more of the following: the applicant does not meet the requirements of the definition of an SBE, the application is not satisfactorily completed, the application contains false information, or the applicant has not provided materials or information requested by the director.

(3) The director will make a certification determination within 90 days after the date the city receives a satisfactorily completed application from the applicant. If certification is denied, the director will notify the applicant in writing and specify the reason(s) for the denial. Unless the applicant is successful in a timely appeal of the denial of certification, the applicant may not reapply to be certified as an SBE for a period of one year from the date of the notice of denial.

(4) Firms certified as an SBE by other government agencies will be required to be certified under this chapter regardless of previous certification.

(c) *Period of Certification.* The certification is valid for a two-year period beginning on the date the city certifies the applicant as an SBE.

(d) *Recertification.* Upon expiration of the two-year certification period, a business that desires recertification must return a completed recertification form as provided by the director and comply with the requirements of subsections (b)(1)(A) and (b)(1)(B) of this section.

(e) *Revocation of Certification.*

(1) The director shall revoke the certification of a business if it is determined that the business was certified in error, the business no longer meets the definition of an SBE, or the business fails to provide requested information in connection with a certification review conducted by the department.

(2) The director shall permanently revoke the certification of a business if it is determined that the certification was fraudulently obtained or that the business allows its certified SBE status

to be fraudulently used to obtain the benefits of SBE certification for a firm that is not a certified SBE or for the benefit of the owners of a firm that is not a certified SBE. In addition to certification revocation, any participant in the fraudulent use of certified SBE status for the benefit of another person or entity that is not a certified SBE shall be guilty of a misdemeanor of the first degree, punishable by imprisonment for up to six months and/or a fine of up to $1,000.00.

(3) Prior to taking formal action, the department shall provide the business with written notice of the proposed revocation. The department staff shall then prepare a recommendation regarding the proposed revocation for review by the director, who shall make a recommendation regarding revocation to the city manager for decision. The decision of the city manager or the city manager's designee is final.

(f) *Certification Reviews.* The department will conduct random certification reviews of certified businesses by auditing them to verify that the information submitted by a business is accurate, and that the business remains eligible during the certification period. Certification reviews may be conducted for any business for which the city determines a certification review is warranted. Businesses subject to certification reviews must provide the department with any information requested to verify the certification eligibility of the business within seven days of the request. Audits may include one or all of the following as reasonably necessary to ensure that all eligibility standards are satisfied:

(1) Business owner interviews;

(2) Employee and/or subcontractor interviews;

(3) Record and document review; or

(4) Job site inspection.

(g) *Joint Ventures.* On a contract-by-contract basis, an SBE may apply for certification of a joint venture with another SBE or, for contracts in excess of $1,000,000.00, an SBE may apply for certification of a joint venture with a non-SBE. The certification of such a joint venture will be limited to the duration of the contract for which certification as a joint venture was requested and shall terminate upon completion of the city contract for which the joint venture was formed.

(Ordained by Ord. No. 307-2015, § 4, eff. Jan. 1, 2016)

Sec. 323-9. SLBE or ELBE Certification.

(a) *Requirements.* To be eligible for certification as an SLBE, each applicant must meet the definition of an SLBE in Section 323-1-S4 of this chapter. To be eligible for certification as an ELBE, each applicant must meet the definition of an ELBE in Section 323-1-E1 of this chapter.

(b) *Ineligible Firms.*

(1) A firm is ineligible for certification as an SLBE if:

(A) It is owned by another entity that does not meet the definition of an SLBE as defined in Section 323-1-S4 of this chapter; or

(B) Any of its principals or owners are also the principals or owners of another entity that does not meet the definition of an SLBE as defined in Section 323-1-S4 of this chapter.

(2) A firm is ineligible for certification as an ELBE if:

(A) It is owned by another entity that does not meet the definition of an ELBE as defined in Section 323-1-E1 of this chapter; or

(B) Any of its principals or owners are also the principals or owners of another entity that does not meet the definition of an ELBE as defined in Section 323-1-E1 of this chapter.

(3) A firm that has graduated from the SLBE or ELBE program under Section 323-9(j) of this chapter is no longer eligible for certification or recertification under that same program, even if it otherwise meets the definition of the particular type of local business enterprise (SLBE or ELBE) from which it has graduated.

(c) *Certification Process.*

(1) A business seeking certification as an SLBE or ELBE must:

(A) Submit an application to the department on the prescribed form, affirming under penalty of perjury that the business qualifies either as a city of Cincinnati SLBE, as that term is defined in Section 323-1-S4 of this chapter, or as a city of Cincinnati ELBE, as that term is defined in Section 323-1-E1 of this chapter, and is not ineligible under Section 323-9(b) of this chapter;

(B) Provide any and all supporting materials and information required by the director; and

(C) Attend an SLBE/ELBE orientation provided by the department to become familiar with the policies and procedures of doing business within the city. An applicant with prior experience doing business with the city may be exempted by the director from attending the orientation.

(2) The department will review and evaluate applications and may reject an application based on one or more of the following:

(A) The applicant does not meet the requirements of the definition of the type of local business enterprise (SLBE or ELBE) for which it has applied for certification or is ineligible for certification as provided in Section 323-9(b) of this chapter;

(B) The application is not satisfactorily completed;

(C) The application contains false information; or

(D) The applicant has not provided materials or information requested by the director.

(3) The director will make a certification determination within 90 days after the date the city receives a satisfactorily completed application from the applicant. If certification is denied, the director will notify the applicant in writing and specify the reason(s) for the denial. Unless the applicant is successful in a timely appeal of the denial of certification, the applicant may not reapply for the same type of certification (SLBE or ELBE) for a period of one year from the date of the notice of denial.

(4) Firms certified by the city as an SLBE may also be eligible for certification as an SBE.

(5) Firms denied certification as an ELBE on the basis that they do not meet the

criteria of an ELBE as defined in Section 323-1-E1 of this chapter may submit an application for certification as an SLBE or SBE.

(6) An applicant for SLBE or ELBE certification or recertification that, during the certification or recertification process or during any certification review process, makes any deceptive or fraudulent statement or omission, or otherwise intentionally misrepresents any fact that may be considered in making a certification determination, in addition to any other penalties provided therefore, may be denied certification or recertification by the director for a period not to exceed three years.

(d) *Period of Certification.* The certification is valid for a two-year period beginning on the date the city certified the applicant as an SLBE or ELBE.

(e) *Recertification.* Upon expiration of the two-year certification period, a business that desires recertification must return a completed recertification form as provided by the city and comply with the requirements of subsections (c)(1)(A) through (C) of this section.

(f) *Suspension of Certification.*

(1) *Temporary Suspension from the SLBE Program.*

(A) The director shall suspend a certified SLBE from further participation in SLBE economic inclusion initiatives for the remainder of the fiscal year once the SLBE receives, as a prime contractor or subcontractor on city-funded contracts, payments in that fiscal year totaling at least $500,000.00.

(B) An SLBE suspended under subsection (f)(1)(A) of this section may be eligible to continue to participate in the SBE program for the remainder of that fiscal year.

(2) *Temporary Suspension from the ELBE Program.*

(A) The director shall suspend a certified ELBE from further participation in ELBE economic inclusion initiatives for the remainder of the fiscal year once the ELBE receives, as a prime contractor or subcontractor on city-funded contracts, payments in that fiscal year totaling at least $250,000.00.

(B) An ELBE suspended under subsection (f)(2)(A) of this section may be eligible to continue to participate in the economic inclusion initiatives as an SLBE for the remainder of that fiscal year.

(g) *Revocation of Certification.*

(1) The director shall revoke the certification of a business if it is determined that the business was certified in error, the business no longer meets the definition of the type of local business enterprise (SLBE or ELBE) for which it had been certified, or the business fails to provide requested information in connection with a certification review conducted by the department.

(2) The director shall permanently revoke the certification of a business if it is determined that the certification was fraudulently obtained or that the firm allows its certified SLBE or ELBE status to be fraudulently used to obtain economic inclusion initiative benefits for a firm that is not a certified SLBE or ELBE or for the benefit of the owners of a firm that is

not a certified SLBE or ELBE. In addition to certification revocation, any participant in the fraudulent use of certified SLBE or ELBE status for the benefit of another person or entity that is not a certified SLBE or ELBE shall be guilty of a misdemeanor of the first degree, punishable by imprisonment for up to six months and/or a fine of up to $1,000.00.

(3) Prior to taking formal action, the department shall provide the business with written notice of the proposed revocation. The department staff shall then prepare a recommendation regarding the proposed revocation for review by the director who shall make a recommendation regarding revocation to the city manager for decision. The decision of the city manager or the city manager's designee is final.

(h) *Certification Reviews.* The department will conduct random certification reviews of certified businesses by auditing them to verify that the information submitted by a business is accurate and that the business remains eligible after certification has been granted. Certification reviews may be conducted for any business for which the director determines a certification review is warranted. Businesses subject to certification reviews must provide the director with any information requested to verify the certification eligibility of the business. Audits may include one or all of the following as reasonably necessary to ensure that all eligibility standards are satisfied:

(1) Business owner interviews;

(2) Employee and/or subcontractor interviews;

(3) Record and document review; or

(4) Job site inspection.

(i) *Joint Ventures.*

(1) SLBEs may apply for certification of a joint venture only with other certified SLBEs on a contract-by-contract basis;

(2) The specific responsibilities of each participating SLBE in the joint venture must be set forth in writing and submitted with the certification application;

(3) Certified SLBE joint ventures are not subject to the size limitations imposed by Section 323-1-S4 of this chapter;

(4) For purposes of Section 323-1-S4(h) of this chapter, payments made by the city to a certified SLBE joint venture shall be credited to each participating SLBE in the same proportion as each participating SLBE's contribution to the total contract performance;

(5) The certification of an SLBE joint venture will be limited to the duration of the contract for which certification as a joint venture was requested and shall terminate upon completion of the city contract for which the joint venture was formed.

(j) *Graduation from SLBE or ELBE Program.*

(1) An SLBE firm must be permanently graduated from the SLBE program after either of the following has occurred:

(A) It has received a cumulative total of $2,500,000.00 of city-funded prime contract and/or subcontract payments in at least five separate contracts since its initial certification as an SLBE firm; or

(B) Its three most recent fiscal year average annual gross revenues

exceed the size standards as defined by subsection (e) of Section 323-1-S4 of this chapter.

(2) An ELBE firm must be permanently graduated from the ELBE program after either of the following has occurred:

(A) It has received a cumulative total of $500,000.00 of city-funded prime contract and/or subcontract payments in at least five separate contracts since its initial certification as an ELBE firm; or

(B) Its annual gross revenues, averaged over the life of the firm, exceed $250,000.00.

(Ordained by Ord. No. 307-2015, § 4, eff. Jan. 1, 2016)

Sec. 323-11. SBE Program Goals.

(a) The city of Cincinnati's aspirational annual goal for SBE participation shall be 30% of the city's total dollars spent for construction, 15% of the city's total dollars spent for supplies/services, and 15% of the city's total dollars spent for professional services. The SBE participation rates will be monitored, tracked internally, and reported quarterly and annually to city council.

(b) SBE participation is counted as follows:

(1) Once a firm has been certified as an SBE as provided in Section 323-7 of this chapter, the total dollar value of the contract awarded to the SBE is counted toward the SBE participation rate.

(2) If the prime contractor is an SBE, it shall be entitled to count the dollar value of the work performed by its own labor force toward satisfaction of the SBE participation rate.

(3) The city of Cincinnati or a contractor may count toward its SBE rate a portion of the total dollar value of a contract with an eligible joint venture equal to the percentage of the ownership and contract performance of the SBE partner in the joint venture.

(4) The city of Cincinnati or a contractor may count toward its SBE rate only expenditures to SBEs that perform a commercially useful function in the work of a contract as defined in Section 323-1-C2 of this chapter. To determine whether an SBE is performing a commercially useful function, the city of Cincinnati shall evaluate the amount of work subcontracted, industry practices, and other relevant factors.

(5) Consistent with normal industry practices, an SBE may enter into subcontracts. If an SBE prime contractor subcontracts a significantly greater portion of the work of the contract than would be expected on the basis of normal industry practices, the SBE shall be presumed not to be performing a commercially useful function under the contract. In such circumstance, the SBE shall not be permitted to count toward the SBE participation goals for the contract the amounts paid to the SBE prime contractor. The SBE may present evidence to rebut this presumption to the director.

(Ordained by Ord. No. 307-2015, § 4, eff. Jan. 1, 2016)

Sec. 323-13. SLBE/ELBE Bid Preferences.

(a) The city may award a contract for construction, professional services, non-professional services, or supplies, as qualified in subsection (b) of this section, to an

SLBE or ELBE that submits, in response to an invitation to bid, a bid that is no more than ten percent greater than the lowest and otherwise best bid unless:

(1) The award to the SLBE or ELBE would result in a total contract cost that is, on an annual basis, $25,000.00 or more higher than the lowest and otherwise best bid; or

(2) The award to the SLBE or ELBE would cause the total contract cost to exceed the city's budgeted funding for the contract.

(b) Subsection (a) of this section may be applied to SLBE bids on contracts valued between $250,000.00 and $1,000,000.00 and to ELBE bids on contracts valued between $50,000.00 and $100,000.00.
(Ordained by Ord. No. 307-2015, § 4, eff. Jan. 1, 2016)

Sec. 323-15. SLBE/ELBE Response Evaluation Preferences.

(a) An SLBE or ELBE may be given up to ten additional preference points in the evaluation of its response to an RFP or RFQ for architecture and engineering or other professional services, as qualified by subsection (b) of this section.

(b) Subsection (a) of this section may be applied to SLBE responses for contracts valued between $100,000.00 and $250,000.00 and to ELBE responses for contracts valued between $50,000.00 and $100,000.00.

(c) For SLBE joint ventures, preference points shall be prorated based upon a clearly defined portion of the work to be performed by the SLBE with its own forces, equal to its share in the ownership, risks, performance, management and control of the joint venture.
(Ordained by Ord. No. 307-2015, § 4, eff. Jan. 1, 2016)

Sec. 323-17. Mandatory Subcontracting to SLBEs/ELBEs.

(a) The director may, on a contract-by-contract basis, require that a predetermined percentage of a specific contract, up to 30%, be subcontracted to certified SLBEs or ELBEs.

(b) Each bidder must include with its bid a subcontractor utilization plan (Form 2003) in which the bidder commits to utilize certified SLBEs or ELBEs in a percentage that equals or exceeds the applicable contract goals unless it submits a request for waiver as set forth in subsection (c) of this section. Any bid that does not include either a completed Form 2003 or a request for waiver shall be deemed non-responsive.

(1) Each bidder is responsible for verifying that all SLBEs and ELBEs to be used as subcontractors have been certified by the department.

(2) If the prime contractor is a certified SLBE, it shall be entitled to count the dollar value of the work performed by its own labor force toward satisfaction of the mandatory SLBE subcontracting percentage for the contract.

(3) An SLBE prime contractor may not subcontract more than twenty-five percent of the total contract value to a non-SLBE.

(c) A bidder may submit with its bid a request for a full or partial waiver by the director of the mandatory subcontracting percentage for good cause by submitting evidence of SLBE or ELBE unavailability along with adequate documentation of good faith efforts, as defined in the program rules and regulations, to obtain SLBE or ELBE participation in the form required by the director. If the bidder requests a partial waiver, it shall also be required to submit a

completed subcontractor utilization plan (Form 2003) as provided in subsection (b) of this section.

(1) Requests for waiver will be evaluated by the director on a case-by-case basis; and

(2) The determination of whether a waiver will be granted shall be based on the availability of certified SLBEs or ELBEs who can provide a commercially useful function under the circumstances.

(d) In the absence of a waiver, the failure of a contractor to maintain the SLBE or ELBE participation percentage established for the contract shall be grounds for termination of the contract in addition to any other remedies available under the terms of the contract or under the law.

(e) It shall be a material breach of contract if a contractor fails to notify the director and fails to obtain prior written approval from the director of any of the following:

(1) Reduction in SLBE or ELBE subcontractor participation;

(2) Termination of an SLBE or ELBE subcontract; or

(3) Substitution of a new SLBE or ELBE for an SLBE or ELBE listed on the subcontractor utilization plan (Form 2003).

(Ordained by Ord. No. 307-2015, § 4, eff. Jan. 1, 2016)

Sec. 323-19. SLBE/ELBE Sheltered Market Program.

The city shall implement and maintain a sheltered market program to identify a portion of its procurements and contracts for bidding or response exclusively by SLBEs and ELBEs. Sheltered market procurements shall be contracts that SLBEs and ELBEs are fully capable of performing at the customary and usual market rate.

(a) The director, in consultation with the purchasing agent and the contracting agency, may select certain contracts which have a value of $250,000.00 or less for award to an SLBE, or a joint venture with SLBEs, through the sheltered market program.

(b) The director, in consultation with the purchasing agent and the contracting agency, may select certain contracts which have a value of fifty thousand dollars $50,000.00 or less for award to an ELBE through the sheltered market program.

(c) The director, in consultation with the purchasing agent and the contracting agency, must consider the following factors when determining whether a particular contract is eligible for the sheltered market program:

(1) Whether there are at least three certified SLBEs or ELBEs that are available to participate in the sheltered market program for the selected contract and that have the capacity to perform the contract;

(2) The degree of underutilization of SLBEs and ELBEs in such contracts in the specific industry category during the immediately prior twelve months; and

(3) The extent to which the city's SLBE and ELBE prime contractor utilization goals, as set annually by the director in consultation with the purchasing agent, are being met.

(d) If, in the case of an invitation to bid, there is no response to a bid solicita-

tion or the apparent low bid is determined by the purchasing agent to be fiscally unacceptable, then the contract shall be removed from the sheltered market program.

(e) If, in the case of an RFP or RFQ, there is no satisfactory responsive proposal, then the contract shall be removed from the sheltered market program.

(Ordained by Ord. No. 307-2015, § 4, eff. Jan. 1, 2016)

Sec. 323-21. Sanctions.

The director shall apply penalties against certified SBEs, SLBEs and ELBEs for violations of the provisions of this chapter or of the rules and regulations promulgated under the authority of this chapter, and shall apply penalties against any non-SBE, non-SLBE or non-ELBE firms which request or assist SBEs, SLBEs or ELBEs in misleading the city about ownership and control of a business purporting to be an SBE, SLBE or ELBE, or otherwise participate in such conduct. The nature and extent of penalties applied shall be reviewable on appeal to the contract compliance advisory board, which acts as an advisor to the city manager. Penalties applied against firms under this section or under Section 323-99 of this chapter shall be considered in making future decisions about contract awards to such firms. Penalties for a violation of this chapter or the rules and regulations under the authority of this chapter shall be as set forth in Section 323-99.

(Ordained by Ord. No. 307-2015, § 4, eff. Jan. 1, 2016)

Sec. 323-23. Appeal.

(a) *Noncompliance and Denial of Certification.* Upon a determination of noncompliance with the requirements of this chapter or a denial of certification or recertification as an SBE, SLBE or ELBE by the director, the director shall notify the affected party in writing by certified mail at the address provided by the applicant on the application, setting forth the reasons for the determination of noncompliance or denial of certification or recertification.

(b) *Time for Filing Notice of Appeal.* Any applicant who has been denied certification or recertification as an SBE, SLBE or ELBE, or any person or entity against whom a determination of noncompliance with the requirements of this chapter has been found by the director may appeal the determination of noncompliance or denial of certification or recertification by filing a written notice of appeal with the director within fourteen days of the date of mailing the notice of the determination of noncompliance or denial of certification or recertification. In the event such a notice of determination that has been sent by certified mail is returned as refused or unclaimed, the director shall send the notice via regular U.S. mail, postage pre-paid, and, provided the notice sent by regular mail is not returned as undeliverable within ten days, the notice shall be presumed to have been delivered and a request for reconsideration of an adverse determination must be filed with the director in writing within ten days.

(c) *Contract Compliance Advisory Board.* The city manager shall structure a contract compliance advisory board composed of five members, including representatives of the city, labor, SBEs, and citizens, all of whom shall be appointed by the city manager. The board shall make recommendations to the city manager for the disposition of appeals. Board members shall serve for a period of two years.

(d) *Notice of Hearing Date and Hearing.*

(1) Within three working days of receipt of a written notice of appeal, the

director shall forward the notice to the contract compliance advisory board.

(2) The board shall set a hearing date not more than twenty-eight days from the date of receipt of the notice of appeal forwarded by the director. The board shall cause notice of the hearing to be served upon all parties, by certified mail. Such notice shall set forth the adverse determination by the director from which the appeal was taken and the errors identified by the applicant or other aggrieved party, and shall also state the date, time, and place of the hearing. In the event such a notice of determination that has been sent by certified mail is returned as refused or unclaimed, the director shall send the notice via regular U.S. mail, postage pre-paid, and, provided the notice sent by regular mail is not returned as undeliverable within ten days, the notice shall be presumed to have been delivered.

(3) All parties shall be provided a fair and impartial hearing but shall not be permitted to introduce any new evidence not previously submitted.

(e) *Decision.* Within seven days of the conclusion of the hearing, the board shall make a written recommendation to the city manager or the city manager's designee on the disposition of the appeal, which recommendation shall be to affirm, modify, or reverse the determination of noncompliance or the denial of certification or recertification by the director, and shall state the reason(s) for such recommendation. The board shall advise whether the determination of noncompliance was in accordance with the law. If the city manager finds for the party denied certification or recertification by the director, the business shall be certified or recertified as an SBE, SLBE or ELBE and added to the appropriate certification list maintained by the department. If the city manager finds for the party for whom the director had made a determination of noncompliance with this chapter and the rules and regulations issued thereunder, the business shall be found in compliance with the requirements of this chapter and permitted to submit a bid or proposal in response to the city's solicitation if the submission deadline has not yet passed, and to continue to participate in the economic inclusion initiatives available for the firm's particular certification (SBE, SLBE, or ELBE). The decision of the city manager or the city manager's designee shall be final, subject to the right of further appeal as may be provided by law.

(f) *Notice of Decision.* The city manager shall issue written notice of the decision on the appeal to all parties within ten days after receiving the recommendation of the board. The notice of the decision shall be sent to all parties by certified mail and shall set forth the reasons for the decision.
(Ordained by Ord. No. 307-2015, § 4, eff. Jan. 1, 2016)

Sec. 323-25. Duties of the Department of Economic Inclusion.

The department shall have the following functions and duties associated with the programs set forth in this chapter:

(a) The department shall act as a resource for small business information;

(b) Information dissemination and communication with SBEs, SLBEs and ELBEs are integral parts of the city of Cincinnati's SBE, SLBE and ELBE programs. As a part of its outreach program, the department will solicit input from representatives of SBEs, SLBEs, ELBEs, trade associations,

and community organizations. The department shall hold quarterly outreach events for SBEs, SLBEs, ELBEs, and owners of small businesses eligible to participate in the SBE, SLBE or ELBE programs; publish a biannual newsletter on small business matters; and produce video programming geared toward small businesses. In cooperation with the city of Cincinnati's purchasing division and other appropriate city departments, the department shall publicly inform SBEs, SLBEs, ELBEs, and owners of eligible small businesses of the city of Cincinnati's procurement forecast in a timely manner to allow such parties to make appropriate planning decisions;

(c) The department will assist SBEs, SLBEs and ELBEs in overcoming barriers to program participation by including referrals to other agencies offering established, comprehensive, and continuous programs to assist small businesses. Businesses requiring management and technical assistance will be identified through a questionnaire, the department's prior experience with these businesses, and requests by businesses for assistance;

(d) The department shall maintain for a period of three years records and reports submitted by contractors in accordance with the provisions of this chapter;

(e) The department, in conjunction with other city agencies, will monitor SBE, SLBE and ELBE participation levels on projects throughout the duration of a contract;

(f) The department shall investigate alleged violations of this chapter and the SBE, SLBE and ELBE program rules and regulations, and the director shall issue written determinations of the results of such investigations, stating the reasons for the determination and any penalty imposed pursuant to this chapter;

(g) The department will determine whether a bidder or offeror made good faith efforts, as defined in the SBE, SLBE and ELBE program rules and regulations, to include SBEs, SLBEs or ELBEs as required by the director in its bid or proposal and its work on the contract subject to this chapter;

(h) Upon request by a potential bidder on city contracts, the department will provide information regarding SBEs, SLBEs and/or ELBEs, which shall include names and contact information;

(i) The department will notify the appropriate city departments of the director's determination that a contractor has not complied with this chapter or the SBE, SLBE and ELBE program rules and regulations and the result of any appeal from that determination;

(j) The department will provide ongoing monitoring and oversight functions to determine successful bidders' continuing compliance with this chapter and the SBE, SLBE and ELBE program rules and regulations and their utilization of SBEs, SLBEs and ELBEs.

(Ordained by Ord. No. 307-2015, § 4, eff. Jan. 1, 2016)

Sec. 323-27. City Maintained Records and Reports.

(a) The effectiveness of this program will be measured by a review of data indicating prime and subcontract awards to SBEs,

SLBEs, and ELBEs. Program effectiveness measurements will also include efforts by the city to provide prime contracting opportunities for SBEs, SLBEs, and ELBEs. At the end of each contract, the department will prepare a report on the utilization of firms in the SBE, SLBE, and ELBE programs. Data in this report will include information on the gross income size of the firms participating on each contract. Each project manager and the procurement staff will continuously maintain, and compile monthly, information relating to the departments' use of SBEs, SLBEs, and ELBEs, including information regarding subcontractors and efforts toward SBE program participation.

(b) At the end of a contract, the director shall require a contractor to report to the department the identity of each SBE, SLBE, and ELBE to whom the contractor has awarded a subcontract for the purchase of services, professional services, supplies, materials, and equipment.

(c) The director shall prepare quarterly a consolidated report based on a compilation and analysis of the reports submitted by each project manager and the procurement staff, information provided by the finance department, and the reports submitted by prime contractors. This record-keeping system will identify and assess SBE, SLBE, and ELBE contract awards, prime contractors' progress in achieving SBE, SLBE and ELBE subcontract participation, and other SBE, SLBE and ELBE development and contracting efforts. Specifically, the department in conjunction with all city agencies will maintain records showing:

(1) Awards to SBEs, SLBEs and ELBEs including names of contractors and subcontractors, nature of the work and services performed, and the percentage of SBE, SLBE and ELBE participation per contract. The city of Cincinnati will obtain regular reports from prime contractors on their progress in meeting contractual SBE, SLBE and ELBE commitments;

(2) Specific efforts to identify and award contracts to SBEs, SLBEs and ELBEs;

(3) Copies of direct mailings to SBEs, SLBEs and ELBEs;

(4) Pre-bid conference information as it relates to the SBE, SLBE and ELBE programs;

(5) Requests for assistance from the SBEs, SLBEs and ELBEs interested in bidding or proposing on city of Cincinnati contracts and subcontracts;

(6) Workshops, seminars and training programs conducted for SBEs, SLBEs and ELBEs;

(7) Efforts to assist SBEs, SLBEs and ELBEs in acquiring bonding and insurance; and

(8) Contracts for which a full or partial waiver of SLBE or ELBE participation was granted pursuant to Section 323-17 of this chapter.

(d) The director will submit quarterly SBE, SLBE and ELBE development reports to city council. These reports shall include:

(1) The number of contracts awarded to SBEs, SLBEs and ELBEs;

(2) A description of the general categories of contracts awarded to SBEs, SLBEs and ELBEs;

(3) The dollar value of contracts awarded to SBEs, SLBEs and ELBEs; and

(4) (A) The percentage of the dollar value of all contracts awarded to SBEs, SLBEs and ELBEs during the preceding year;

(B) The actual dollar amount paid to SBE, SLBE, ELBE and all other vendors as prime or subcontractors; and

(C) The percentage of dollar amount paid to SBEs, SLBEs and ELBEs compared to the total.

The city of Cincinnati does not discriminate against any company or group of companies in its contracting and procurement activities on the basis of race, color, age, religion, sex, national origin, disability, or veteran status. The SBE, SLBE and ELBE opportunity does not propose any numeric goals determined by the rate of program participation by minorities or women but will require this information at the end of city contracts. The program is designed to include all segments of the region's business community by increasing the competitiveness and profitability of all small businesses as defined within this program.
(Ordained by Ord. No. 307-2015, § 4, eff. Jan. 1, 2016; a. Ord. No. 287-23, § 1, eff. August 2, 2023)

Sec. 323-29. SBE, SLBE and ELBE Resource Information.

The department and purchasing division will make the following available:

(a) Procedures outlining specific steps on how to bid;

(b) Prerequisites for bidding on contracts;

(c) Information on how plans and specifications can be obtained;

(d) Names of persons to contact concerning questions on bid documents;

(e) Names of relevant procurement staff and office hours;

(f) Types of supplies and services purchased; and

(g) Explanations of standard contract implementation procedures and requirements, concerning such matters as timely performance of work, contract changes, and payment schedules.

(Ordained by Ord. No. 307-2015, § 4, eff. Jan. 1, 2016)

Sec. 323-31. SBE, SLBE and ELBE Directory.

The department and purchasing division will create an SBE, SLBE and ELBE directory that lists SBEs, SLBEs and ELBEs, categorized by types of firms, to facilitate identifying businesses with capabilities relevant to a particular specification. Each business listing will contain the business name, contact person, address, phone number, legal structure of the business, and details concerning the company's business specialty(ies). The directory will be continuously updated and maintained electronically. In compiling this directory, the city of Cincinnati will identify and certify as many SBEs, SLBEs and ELBEs as possible that have the potential of doing business with the city of Cincinnati. The city of Cincinnati will maintain and have available updated SBE, SLBE and ELBE directories and source list(s) for each bid/proposal solicitation to facilitate identifying SBEs, SLBEs and ELBEs with capabilities relevant to general contracting requirements and to particular solicitations. The city of Cincinnati will make the directory and source list(s) available to bidders and offerors in their efforts to meet the SBE, SLBE and ELBE commitments.
(Ordained by Ord. No. 307-2015, § 4, eff. Jan. 1, 2016)

Sec. 323-33. SBE, SLBE and ELBE Assistance to Provide an Equitable Opportunity to Compete for Contracts and Subcontracts.

Specific affirmative procedures to be utilized by the department staff and procure-

ment staff to encourage maximum practicable opportunities for SBE, SLBE and ELBE participation include the following:

(a) Review individual solicitations to ensure that insurance and bonding provisions are not excessive; assist SBEs, SLBEs and ELBEs in obtaining insurance and surety bonds where necessary in the performance of contracts, including, but not limited to doing the following: package contracts so that dollar amounts do not require bonding; encourage prime contractors to waive bonding or assist SBE, SLBE and ELBE subcontractors in obtaining bonding; and encourage staged bonding where feasible, when bonding is carried over from one project stage to the next;

(b) Encourage the formation of joint ventures among SBEs and SLBEs and between SBEs, SLBEs and firms which provide opportunity for the SBE or SLBE to gain experience. The department staff will assist prime contractors in identifying interested SBEs, SLBEs and ELBEs for subcontracts and joint ventures; provide information on the city of Cincinnati's organization and contractual needs; and offer instructions on bid specifications, procurement policy, procedures, and general bidding requirements;

(c) Provide, in conjunction with the city purchasing division, specifications and requests for proposals to the SBE, SLBE and ELBE community in a timely manner to allow them adequate time to develop responsible and responsive bids, quotations, and proposals. In instances where the cost of obtaining specifications or requests for proposal is prohibitive, copies of the material will be made available at no charge to SBE, SLBE and ELBE development agencies;

(d) Establish, in conjunction with the city finance department and affected city departments, prorated payment and delivery schedules where feasible, to minimize cash flow problems faced by small businesses. The department will provide guidance to SBE, SLBE and ELBE contractors regarding maintenance of a positive cash flow so current obligations can be met;

(e) Wherever feasible, use the least complicated bid forms appropriate for each procurement solicitation;

(f) Hold pre-bid/proposal conferences to explain SBE, SLBE and/or ELBE commitments and to answer questions about forms that must be submitted with a bid or proposal;

(g) Permit bidders/offerors to review and evaluate successful bid/proposal documents of prior similar procurement(s) and, upon request, use debriefing sessions to explain why certain bids were unsuccessful;

(h) Provide projected procurement information and contracting schedules through the City Bulletin and other outreach efforts;

(i) Conduct internal information workshops to inform and acquaint the city of Cincinnati staff with the goals and objectives of the city of Cincinnati's SBE, SLBE and ELBE plans, and to sensitize them to the problems faced by SBEs, SLBEs and ELBEs;

(j) Maintain records showing specific efforts to identify and award contracts to SBEs, SLBEs and ELBEs and establish a monitoring system to

ensure that all contractors, subcontractors, consultants, and vendors comply with contract specifications related to SBE, SLBE and ELBE utilization;

(k) Inform SBEs, SLBEs and ELBEs of bid notices and specifications related to their capability by placing bid notices in the City Bulletin, major local newspapers, and other periodicals. Bid notices will also be sent to local trade associations, technical assistance agencies, economic development groups, and SBEs, SLBEs and ELBEs with capabilities relevant to the bid notice as identified by the city of Cincinnati's SBE, SLBE and ELBE data banks. Bid specifications will be made available to SBE, SLBE and ELBE contractor associations and technical assistance agencies. Lists of potential firms bidding as primes also will be available to SBEs, SLBEs and ELBEs;

(l) Provide coordination and referral to existing business development organizations;

(m) Provide workshops and training sessions on identified SBE, SLBE and ELBE problem areas, i.e., pricing and estimating, joint venture formation, accounting principles, marketing, etc.; and

(n) Disseminate information on the city of Cincinnati's SBE, SLBE and ELBE programs through written materials, seminars, workshops, and specialized assistance to individual firms.

(Ordained by Ord. No. 307-2015, § 4, eff. Jan. 1, 2016)

Sec. 323-35. Contractor and Subcontractor Assistance to Support Compliance with Applicable SBE, SLBE and ELBE Requirements.

The department and purchasing department staffs are available to assist contractors and subcontractors in implementing these programs. As a standard procedure, such assistance includes, as appropriate, the following:

(a) Clear identification of the city of Cincinnati's SBE, SLBE and ELBE provisions in all the city of Cincinnati's solicitations;

(b) Pre-bid/proposal conference to explain the city of Cincinnati's SBE, SLBE and ELBE programs;

(c) Identification of certified SBEs, SLBEs and ELBEs per the city of Cincinnati solicitation; and

(d) Monitor, in conjunction with other city departments, SBE, SLBE and ELBE participation levels on projects throughout the duration of a contract.

(Ordained by Ord. No. 307-2015, § 4, eff. Jan. 1, 2016)

Sec. 323-37. Subcontracting Outreach Program.

The department shall administer a subcontracting outreach program to make subcontracting opportunities available to a broad base of qualified city-certified SBE, SLBE and ELBE subcontractors.

(Ordained by Ord. No. 307-2015, § 4, eff. Jan. 1, 2016)

Sec. 323-99. Penalties.

The provisions of this section shall be incorporated into city contracts. The contractor shall agree that a breach of the provisions of this chapter or the contract terms

regarding SBE, SLBE and/or ELBE participation in the contract shall subject the contractor to any or all of the following penalties:

(a) Withholding all or part of future payments under the contract until it is determined that the contractor is in compliance;

(b) Refusing further bids or proposals as provided in Section 321-153 of the Cincinnati Municipal Code;

(c) Suspending the contractor for a minimum of two years from new awards to do business with the city; and

(d) Permanently debarring the contractor from doing business with the city.

For good cause shown, the director may grant a stay of the penalty pending appeal; however, in no case shall the stay impede the city's contracting authority.
(Ordained by Ord. No. 307-2015, § 4, eff. Jan. 1, 2016)

Chapter 324

MINORITY AND WOMEN BUSINESS ENTERPRISE PROGRAM*

Sec. 324-1. Definitions.
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Sec. 324-1-A1. African American.
Sec. 324-1-A2. Asian American.
Sec. 324-1-B. Bid.
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***Editor's note—**Ord. No. 312-2023, §§ 1, 2, adopted September 13, 2023, repealed ch. 324, §§ 324-1—324-49 and 324-99 and enacted a new ch. 324 as set out herein. Former ch. 324 pertained to similar subject matter and derived from Ord. No. 308-2015, § 1, effective January 1, 2016; Ord. No. 271-2016, § 2, effective September 3, 2016; Emer. Ord. No. 357-2016, § 1, effective December 7, 2016; Emer. Ord. No. 152-2017, § 25, effective July 1, 2017; Ord. No. 0198-2020, § 1, effective June 24, 2020; Ord. No. 0013-2021, §§ 1, 2, effective Jan. 21, 2021; rd. No. 429-2021, §§ 1, 2, effective November 10, 2021; and Emer. Ord. No. 107-2023, § 1, effective March 24, 2023.

Cross reference—Small business enterprise and local business enterprise programs, ch. 323.

Sec. 324-11. MBE and WBE Certification.
Sec. 324-13. Annual Participation Goals for the MBE/WBE Program.
Sec. 324-15. MBE and WBE Participation Goals.
Sec. 324-17. Contracting Agency Duties; Unbundling Contracts.
Sec. 324-19. Subcontractor Utilization.
Sec. 324-21. City Agency Pre-Solicitation Goal Waiver or Reduction Requests.
Sec. 324-22. Vendor Good Faith Efforts to Meet Goals.
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Sec. 324-27. Counting MBE and WBE Participation.
Sec. 324-29. Prime Contractor Capacity-Building Initiatives Authorized.
Sec. 324-31. Preference Points for Professional Services Prime Contracts.
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Sec. 324-37. Duties of the Department of Economic Inclusion.
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Sec. 324-47. Enforcement.
Sec. 324-49. Economic Inclusion Advocacy and Accountability Board.
Sec. 324-99. Penalties.

Sec. 324-1. Definitions.

For the purpose of this chapter, the words and phrases defined in the sections hereunder shall have the meanings therein respectively ascribed to them, unless a different meaning is clearly indicated by the context.
(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-1-A. Affiliation; Affiliate.

"Affiliation" and "affiliate" shall have the same meaning as provided in section 323-1-A of the Cincinnati Municipal Code or its successor.
(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-1-A1. African American.

"African American" means a U.S. citizen or lawfully admitted permanent resident whose ancestry originates from any of the black racial groups of Africa.
(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-1-A2. Asian American.

"Asian American" means a U.S. citizen or lawfully admitted permanent resident whose ancestry originates from the Far East, Southeast Asia, the Indian subcontinent, or the Pacific Islands.
(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-1-B. Bid.

"Bid" shall have the same meaning as provided in section 321-1-B1 of the Cincinnati Municipal Code or its successor.
(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-1-B1. Board.

"Board" shall mean the Certification Appeals Board.
(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-1-C. Certification.

"Certification" or "recertification" shall mean a minority business enterprise ("MBE") or women business enterprise ("WBE") that meets the qualification criteria set forth in this chapter and in the rules and regulations promulgated under the authority of this chapter for participation in the MBE or WBE programs in the appropriate construction, professional services, other services, or supplies category for which the contract is being awarded and is formally approved by the director or the director's designee as having met such criteria. Certification or recertification relates to qualifications regarding ownership and control of the business and not the quality of the service or product offered.
(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-1-C1. Cincinnati Market Area.

"Cincinnati market area," as determined by the disparity study report dated February 2023, includes all of Hamilton County, Ohio and is the area in which firms must have an operating office in order to be considered for certification as an MBE or WBE.
(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-1-C2. City Purchasing Agent.

"City purchasing agent" shall have the same meaning as provided in section 321-1-C of the Cincinnati Municipal Code or its successor.
(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-1-C3. Commercially Useful Function.

"Commercially useful function" shall have the same meaning as provided in section 323-1-C2 of the Cincinnati Municipal Code, or its successor, except that the phrase "MBE or WBE" shall be substituted for the phrase "SBE, SLBE or ELBE" wherever those terms appear in the definition.
(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-1-C4. Compliance.

"Compliance" shall mean a determination by the director that a utilization plan for MBE and WBE participation in a particular contract complies with this chapter, that the contractor has managed the contract as provided in the MBE/WBE utilization plan, and that the contractor or prospective contractor has otherwise complied with this chapter.
(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-1-C5. Construction.

"Construction" shall have the same meaning as provided in section 323-1-C4 of the Cincinnati Municipal Code or its successor.
(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-1-C6. Contract.

"Contract" shall mean a contract in excess of $50,000, except contracts listed by the city purchasing agent as exempt and approved by the city manager, for:

(a) Construction;

(b) Professional Services;

(c) Services; or

(d) Supplies.

(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-1-C7. Contract Participation Goals.

"Contract participation goals" shall mean the actual commitment made by an awarded vendor to utilize MBE and WBE firms in the performance of the work, as determined by the director upon review and verification of the information on the subcontractor utilization plan submitted with the awarded vendor's bid or response to an RFP or RFQ. The contract participation goals shall be incorporated into the awarded vendor's contract.
(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-1-C8. Contracting Agency.

"Contracting agency" shall mean the City agency, department, independent board, or authorized representative that issues an invitation to bid, RFP, or RFQ.
(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-1-C9. Contractor.

"Contractor" shall mean an individual, joint venture, or legal entity with a written agreement to provide goods or services to the city.
(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-1-C10. Control.

"Control," as it relates to the control of a business by owners who are members of a minority group or women, means that such minority or women owners:

(a) Possess and actively and continuously exercise the legal authority and power to direct or cause the direction of the management and policies of the business and to make day-to-day

and long-term decisions for the business on matters of management, policy, and operations;

(b) Are not subject to any formal or informal restrictions that limit the discretion customarily within the purview of a business owner; and

(c) Are not restricted, whether by agreement, by-laws, resolutions, or other arrangements, from making business decisions without the cooperation or vote of any owner who is not a minority or a woman.

(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-1-D. Department.

"Department" shall mean the department of economic inclusion.

(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-1-D1. Director.

"Director" shall mean the director of the department of economic inclusion or the director's designee.

(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-1-D2. Disparity Study.

"Disparity study" means the study undertaken by Griffin & Strong, P.C. that statistically analyzed the City of Cincinnati prime contracts and subcontracts during the period January 1, 2016 through December 31, 2020 to evaluate the use of willing and able minority- and women-owned business enterprises and that is reflected in a final report dated February 2023.

(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-1-G. Good Faith Efforts.

"Good faith efforts" means the documented efforts of bidders, respondents, and contractors, as applicable, proactively to take all reasonably necessary steps to achieve the MBE and WBE solicitation goals or the MBE and WBE contract participation goals, as applicable. In determining whether a bidder, respondent, or contractor made good faith efforts to achieve the applicable MBE and WBE solicitation goals or MBE and WBE contract participation goals, the director shall consider:

(a) Evidence of timely attempts and follow-ups, using all reasonable and available means, to solicit all MBE and WBE firms certified by the city to provide goods or services under the applicable commodity codes for which subcontracting opportunities exist;

(b) Evidence of the unbundling of work into economically feasible components or units to facilitate MBE and WBE participation and solicitation of the work in its unbundled form;

(c) Evidence that interested MBE and WBE firms were provided adequate and timely information about the plans, specifications, and requirements of the contract to enable them to submit thorough bids or proposals in response to solicitations;

(d) Evidence of good faith negotiations with interested MBE and WBE firms;

(e) Evidence that the rejection of any MBE and WBE firms as being unqualified was based on both a thorough investigation of their capabilities and capacity to perform the work and an objective analysis; and

(f) Evidence of efforts to assist MBE and WBE firms in obtaining bonding, lines

of credit, or insurance as required by the contractor where those requirements create an obstacle to MBE and WBE participation.

Acceptable types of documentation of good faith efforts shall be identified in the rules and regulations for this chapter.
(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-1-H. Hispanic American.

"Hispanic American" means a U.S. citizen or lawfully admitted permanent resident whose ancestry originates from Mexico, Puerto Rico, Cuba, the Dominican Republic, Central America, South America, Spain, Portugal, or other Spanish or Portuguese culture, regardless of race.
(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-1-I. Independent Operating Business.

"Independent operating business" shall mean a business where ownership is direct, independent, and by individuals only. Businesses that are owned by other businesses that do not qualify under the MBE or WBE eligibility requirements shall not be eligible for certification unless the following conditions are met:

(a) The minority or women owners own and control the business through a parent company that is a holding company, established for tax, capitalization, or other purposes consistent with industry practice, and the minority or women owners of the parent/holding company control the subsidiary through the parent/holding company; and

(b) The cumulative ownership by the minority or women owners in the parent/holding company is at least 51 percent.

(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-1-I1. Invitation to Bid; ITB.

"Invitation to bid" or "ITB" shall have the same meaning as provided in section 321-1-I of the Cincinnati Municipal Code or its successor.
(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-1-J. Joint Venture.

"Joint venture" shall have the same meaning as provided in section 323-1-J of the Cincinnati Municipal Code or its successor.
(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-1-M. Minority Business Enterprise; MBE.

"Minority business enterprise" or "MBE" shall mean a business that meets each of the following criteria:

(a) Is an independent operating business;

(b) Is a sole proprietorship that is independently owned and controlled by an individual who is a minority group member; a joint venture that is at least 51 percent independently owned and controlled by minority group members; or a partnership, limited liability company, or corporation that is at least 51 percent independently owned and controlled by minority group members;

(c) The minority group member owners have interest in capital and earnings

commensurate with the minority group members' percentage of ownership;

(d) Has been in operation for at least twelve months before applying for certification;

(e) Has been at least 51 percent minority-owned for at least twelve months before applying for certification;

(f) Has an operating office located in the Cincinnati market area; and

(g) Performs a commercially useful function.

(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-1-M1. Minority Group Member.

"Minority group member" shall mean a member of the following groups for which the disparity study found a statistically significant underutilization for the following types of contracts:

(a) For construction: African Americans and Hispanic Americans;

(b) For professional services, including architecture and engineering: African Americans and Hispanic Americans; and

(c) For other services: African Americans, Asian Americans, and Hispanic Americans.

(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-1-N. Native American.

"Native American" shall mean a U.S. citizen or lawfully admitted permanent resident whose ancestry originates from the original people of North America and who maintains cultural identification through tribal affiliation.

(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-1-O. Operating Office.

"Operating office" shall mean either a principal place of business or significant employee presence within the geographic limits of Hamilton County, Ohio. For purposes of this definition, "significant employee presence" shall mean 25 percent or more of a firm's total number of full- and part-time employees are domiciled within the geographic limits of Hamilton County, Ohio.

(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-1-P. Points.

"Points" shall mean the quantitative assignment of value for specific response evaluation criteria in the contractor selection process initiated by a request for proposal.

(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-1-P1. Prime Contractor.

"Prime contractor" shall mean the vendor or contractor to which a purchase order or contract is issued by the city for purposes of providing construction, professional services, other services, or supplies to the city.

(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-1-P2. Professional Services.

"Professional services" shall mean professional services as defined in section 321-1-P of the Cincinnati Municipal Code or its successor and shall include architectural and engineering services.

(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-1-R. Regulations; Rules.

"Regulations" or "rules" shall mean the regulations promulgated by the city manager pursuant to section 324-9 of this chapter.

(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-1-R1. Request for Proposal; RFP.

"Request for proposal" or "RFP" shall have the same meaning as provided in section 321-1-R3 of the Cincinnati Municipal Code or its successor.
(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-1-R2. Request for Qualifications; RFQ.

"Request for qualifications" or "RFQ" shall have the same meaning as provided in section 321-1-R4 of the Cincinnati Municipal Code or its successor.
(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-1-S. Services.

"Services" shall mean service as defined in section 321-1-S of the Cincinnati Municipal Code or its successor.
(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-1-S1. Solicitation Goals.

"Solicitation goals" shall mean the MBE and WBE participation goals established by the director in accordance with sections 324-15(a) and 324-15(b) of this chapter for advertisement as part of the specifications of an ITB, RFP, or RFQ covered by this chapter.
(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-1-S2. Subcontractor.

"Subcontractor" shall mean any vendor or contractor that is providing goods or services to a prime contractor in furtherance of the prime contractor's performance under a purchase order or contract with the city.
(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-1-S3. Subcontractor Utilization Plan.

"Subcontractor utilization plan" shall mean a document submitted by a bidder with its bid or by a respondent to an RFP or RFQ with its response, on a form required by the director, in which the bidder or respondent commits to utilize specifically identified city-certified MBEs and/or WBEs in a percentage that equals or exceeds the applicable MBE and/or WBE solicitation goals for the contract, except as otherwise noted in this chapter.
(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-1-S4. Supplier.

"Supplier" shall mean a business that furnishes needed items to a contractor and either is involved in the manufacture or distribution of the supplies or materials or otherwise warehouses and ships the supplies or materials.
(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-1-S5. Supplies.

"Supplies" shall mean supplies as defined in section 321-1-S2 of the Cincinnati Municipal Code or its successor.
(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-1-W. Women.

"Women" and "woman" shall mean non-minority U.S. citizens or lawfully admitted permanent residents whose assigned gender at birth is female and those persons whose public-facing gender identity, as defined in section 914-1-G1 of the Cincinnati Municipal Code, is female and for whom the disparity study found a statistically significant under-

utilization for the following types of contracts: construction, professional services, other services, and supplies.
(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-1-W1. Women Business Enterprise; WBE.

"Women business enterprise" or "WBE" shall mean a business that meets each of the following criteria:

(a) Is an independent operating business;

(b) Is a sole proprietorship that is independently owned and controlled by a woman; a joint venture which is at least 51 percent independently owned and controlled by women; or a partnership, limited liability company, or corporation that is at least 51 percent independently owned and controlled by women;

(c) The women owners have interest in capital and earnings commensurate with the women's percentage of ownership;

(d) Has been in operation for at least twelve months before applying for certification;

(e) Has been at least 51 percent women-owned for at least twelve months before applying for certification;

(f) Has an operating office located in the Cincinnati market area; and

(g) Performs a commercially useful function.

(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-3. Rules of Construction.

(a) The provisions of this chapter are to be liberally construed in order to accomplish its policies and purposes.

(b) "Must" and "shall" are mandatory terms used to express a requirement or to impose a duty.

(c) "Must not," "may not," and "no" are mandatory negative terms used to establish a prohibition.

(d) All provisions of this chapter are severable. If a court determines that a word, phrase, clause, sentence, paragraph, subsection, section, or other provision is invalid or that the application of any part of the same to any person or circumstances is invalid, the remaining provisions and the application of those provisions to other persons or circumstances shall remain in full force and effect to the maximum extent practicable.

(e) Unless otherwise specified, the first day of a designated period of time is not to be counted. The last day of a period of time is to be counted unless it is a Saturday, Sunday, or legal holiday observed by the city of Cincinnati.
(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-5. Legislative Findings, Policy, and Purpose.

(a) The council of the city of Cincinnati finds, based on the disparity study, that:

(1) There is evidence of disparities in the city's utilization of MBEs and WBEs in city purchasing and contracting;

(2) There is evidence of the existence in the Cincinnati market area of discriminatory practices and attitudes that impede the full and fair participation of MBEs and/or WBEs as prime contractors in city contracts for construction, professional services, other services, and supplies;

(3) There is evidence of discrimination in the city's contracting process by prime contractors against MBEs and WBEs

resulting in the underutilization of MBEs and WBEs as subcontractors in contracts awarded by the city of Cincinnati;

(4) It is in the best interest of the city to adopt measures to eliminate barriers that prohibit full and fair participation of MBEs and WBEs in city contracts;

(5) Race- and gender-neutral remedies alone will not adequately remedy existing disparities in city contracting, as evidenced by the fact that the city has had a race- and gender-neutral program for small business enterprises since 1999 and the disparity study found that MBEs and WBEs continue to be underutilized; and

(6) Race- and gender-conscious remedies also are necessary to provide opportunities for full and fair participation of MBEs and WBEs in city contracts.

(b) It is the policy of the city of Cincinnati to promote equal business opportunity in the city's contracting process by ensuring full and equitable participation by MBEs and WBEs in the provision of construction, professional services, other services, and supplies to the city on a contractual basis. This policy is intended to further the city's compelling interest in stimulating economic development through the support and empowerment of all segments of the local business community.

(c) The purpose of the MBE and WBE program is to provide a necessary race- and gender-conscious tool for the city to use, along with its race- and gender-neutral programs, to ensure that all segments of its local business community have a reasonable and significant opportunity to participate in city contracts. The program shall be regularly evaluated using accumulated availability and utilization data to determine whether specific program provisions may require modification, expansion, or curtailment during the effective period of this chapter.
(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-7. Scope and Effective Period of Chapter.

(a) This chapter applies to all contracts for construction, professional services, other services, and supplies valued in excess of $50,000 for which a contractor provides such goods or services to the city.

(b) This chapter shall remain in effect through October 1, 2028 and shall expire automatically on October 2, 2028 unless, prior to that time, the council of the city of Cincinnati, after authorizing an appropriate study to be undertaken and conducting public hearings, finds that statistically significant disparity continues to exist and extends the effective period of this chapter for up to an additional five years.
(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-9. Rules and Regulations.

The city manager shall issue and enforce rules and regulations to carry out the meaning and purpose of the MBE and WBE program authorized by this chapter.
(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-11. MBE and WBE Certification.

(a) *Requirements.* To be eligible for certification as an MBE, each applicant must meet the definition of an MBE in section 324-1-M of this chapter. To be eligible for certification as a WBE, each applicant must meet the definition of a WBE in section 324-1-W1 of this chapter.

(b) *Certification Process.*

(1) A business seeking certification as an MBE or WBE must:

(A) Submit an application to the department on the prescribed form, affirming under penalty of perjury that the business qualifies as a city of Cincinnati MBE or WBE as those terms are defined in section 324-1-M or section 324-1-W1 of this chapter, respectively; and

(B) If requested by the department, provide any and all materials and information necessary to demonstrate active participation in the control, operation, and management of the business.

(2) The department will review and evaluate applications and may reject an application based on one or more of the following:

(A) The applicant does not meet the requirements of the definition of an MBE or WBE, as applicable;

(B) The application is not complete;

(C) The application contains false information; or

(D) The applicant has not provided materials or information requested by the director.

(3) The director will make a certification determination within ninety days after the date the city receives a satisfactorily completed application from the applicant. If certification is denied, the director will notify the applicant in writing and specify the reason(s) for the denial.

(4) Firms certified as an MBE or WBE by other public or private agencies must also be certified under this chapter regardless of other certification. The city manager may provide by rules and regulations for an expedited or summary process for certification by the city if the business has a current MBE or WBE certification from agencies specifically identified in those rules and regulations and shall provide for such expedited or summary process for certification as may be required by state or federal law.

(c) *Period of Certification.* The certification is valid for a two-year period beginning on the date the city certifies the applicant as an MBE or WBE.

(d) *Recertification.* Prior to expiration of the two-year certification period, a business that desires recertification must return a completed recertification form as provided by the city and comply with the requirements of subsections (b)(1)(A) and (b)(1)(B) of this section.

(e) *Revocation of Certification.*

(1) The director shall revoke the certification of a business if it is determined that the business was certified in error; the business no longer meets the definition of an MBE or WBE, as applicable; or the business fails to provide requested information in connection with a certification review conducted by the department.

(2) The director shall permanently revoke the certification of a business if it is determined that the certification was fraudulently obtained or that the firm allows its certified MBE or WBE status to be fraudulently used to obtain economic benefits for a firm that is not a city-certified MBE or WBE or for the owners of a firm that is not a city-certified MBE or WBE.

(3) The director shall provide the MBE or WBE with written notice of the revocation of certification, subject to the right to request reconsideration and to request a hearing as provided in section 324-35 of this chapter.

(4) In addition to certification revocation, any participant in the fraudulent use of city-certified MBE or WBE status for the benefit of another person or entity that is not a city-certified MBE or WBE shall be guilty of a first degree misdemeanor, punishable by imprisonment for up to six months and/or a fine of up to $1,000.

(f) *Certification Reviews.* The department will conduct random certification reviews of certified businesses by auditing them to verify that the information submitted by a business is accurate and that the business remains eligible after certification has been granted. Certification reviews may be conducted for any business for which the city determines a certification review is warranted. Businesses subject to certification reviews must provide the department with any information requested to verify the certification eligibility of the business within seven days of the department's request. Audits may include one or more of the following as reasonably necessary to ensure that all eligibility standards are satisfied:

(1) Business owner interviews;

(2) Employee and/or subcontractor interviews;

(3) Interviews with bidders, contractors, vendors, or suppliers involved in a joint venture or contractual relationship with the MBE or WBE;

(4) Interviews with any other person who may have knowledge or relevant information relating to a business enterprise's eligibility for certification as an MBE or WBE;

(5) Record and document review; or

(6) Job site inspection.

(g) *Joint Ventures.*

(1) On a contract-by-contract basis, a city-certified MBE or WBE may apply for certification of a joint venture with another MBE or WBE or with a non-MBE or non-WBE firm.

(2) The MBE or WBE joint venture participant must be certified by the city in the area of work to be undertaken as a participant in the joint venture.

(3) A holding company cannot be an MBE or WBE participant in a joint venture.

(4) The MBE or WBE participant in the joint venture must not be an affiliate of the non-MBE or non-WBE firm.

(5) The joint venture must have a business structure set forth in a signed written agreement that clearly and specifically defines the participation of each party in the contribution of property, capital, efforts, skills, and knowledge.

(6) The city-certified MBE or WBE participant in the joint venture must have an interest in the control, management, risks, and operation of the joint venture commensurate with the MBE's or WBE's percentage of participation in the joint venture, and the profit or loss of the joint venture should be distributed between the participants in proportion to their respective interests in the joint venture.

(7) The city-certified MBE or WBE that is a participant in the joint venture must be responsible for a distinct, clearly defined portion of the work to be performed with its own forces,

equal to its share in the ownership, control, and management of the joint venture.

(8) The certification of a joint venture will be limited to the duration of the contract for which certification as a joint venture was requested and shall terminate upon the earlier of completion of the city contract for which the joint venture was formed or the expiration without renewal or the revocation of certification of the MBE or WBE participant.

(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-13. Annual Participation Goals for the MBE/WBE Program.

(a) By July 30 of each year, the director, in consultation with the city purchasing agent, shall review and establish the participation goals for MBEs and WBEs in city contracts.

(b) The purpose of the annual review is to aid the city in its evaluation of the effectiveness of the MBE and WBE program and to identify areas in which the program may need to be modified in order to meet the stated purpose of the program.

(c) The annual participation goals are not and may not be treated as mandatory quotas.

(d) By July 30 of each year, the director shall review MBE and WBE participation on all contracts and procurements covered by this chapter to determine the city's progress toward meeting the annual goals, and the director shall report the findings to the city manager.

(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-15. MBE and WBE Participation Goals.

(a) (1) Except as provided in section (a)(2) below, the director, in consultation with the city purchasing agent and/or the contracting agency, must establish appropriate goals for MBE and/or WBE participation on each specific solicitation for a contract covered by this chapter or determine that a contract is not appropriate for the MBE/WBE program.

(2) The director may establish standard solicitation goals for MBE and WBE participation to be used for solicitations of specifically identified construction, professional services, or other services the city solicits regularly and repetitively and that also involve the same components of work in substantially the same proportion to the overall value of the contract.

(A) The director, in consultation with the city purchasing agent, shall consider the following in determining which, if any, repetitive construction, professional services, or other services contracts are appropriate for standard solicitation goals:

(i) The historical volume and frequency of the solicitations for those services;

(ii) The consistency in availability of city-certified MBEs and WBEs to perform the various components of the work; and

(iii) The consistency of MBE and WBE participation historically achieved under city contracts for those services.

(B) The standard solicitation goals will apply to all solicitations for those identified construction, professional services, or other services until the goals are reassessed by the director. The director shall reassess the standard

solicitation goals, including the continued appropriateness for establishing standard solicitation goals for those services, at least quarterly.

(b) The director must consider each of the following elements in determining the appropriateness of including a contract solicitation in the MBE and WBE program and setting the solicitation goals:

(1) The availability in the particular industry classification and industry of the MBEs and WBEs that are qualified and willing to provide goods, expertise, and services required by the contract;

(2) The level of utilization of MBEs and WBEs in past contracts awarded by the city;

(3) The contract specifications;

(4) The extent of any adverse impact on non-MBEs and non-WBEs; and

(5) Any other factor deemed by the director to be relevant to the determination.

(c) Once established, the MBE and WBE solicitation goals must be clearly published as part of the contract specifications in the invitation to bid or in the RFP or RFQ.

(d) The MBE and WBE participation goals specified in the awarded vendor's contract shall be the contract participation goals determined by the director and as defined in section 324-1-C7 of this chapter. The MBE and WBE contract participation goals may be greater than, equal to, or, only in accordance with section 324-22(b)(2)(B) of this chapter, less than the MBE and WBE solicitation goals. The MBE and WBE contract participation goals shall apply to the initial contract amount, to any alternates, and to all subsequent amendments, supplements, extra work orders, change orders, or other modifications that, either individually or in the aggregate, increase the dollar value of the contract by ten percent or more. (Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-17. Contracting Agency Duties; Unbundling Contracts.

(a) Every contracting agency must ensure that invitations to bid, RFPs, or RFQs originating with the contracting agency comply with this chapter.

(1) All invitations to bid, RFPs, or RFQs must include a requirement that, if an MBE or WBE solicitation goal is applicable, the bidder or respondent must:

(A) Make good faith efforts before the opening of bids or deadline for the submission of proposals to meet the applicable contract participation goal; and

(B) Keep records of its good faith efforts adequate to permit a determination of compliance with this chapter.

(2) Each contract must require the contractor during the term of the contract to:

(A) Fulfill the MBE and WBE contract participation goals and the subcontracting commitments specified in the subcontractor utilization plan submitted with the bid or response;

(B) Continue to make good faith efforts to utilize certified MBEs and WBEs in the performance of the contract;

(C) Maintain records reasonably necessary for monitoring compliance with this chapter;

(D) Make payments to its subcontractors in accordance with section 319-9 of the Cincinnati Municipal Code or its successor; and

(E) Submit copies of signed agreements with MBEs or WBEs before a notice to proceed is issued or the contractor otherwise begins providing services under the contract.

(b) The head of each contracting agency, or the head's designee, shall be primarily responsible for achieving the goals of the MBE/WBE program and shall, on a continuing basis, review all aspects of the contracting agency's operations to assure that the purposes of the MBE/WBE program are being served.

(c) All contracting opportunities must be evaluated to determine whether the total requirements of a contract may be unbundled or divided into smaller contracts to provide reasonable opportunities for participation by MBEs and/or WBEs.
(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-19. Subcontractor Utilization.

(a) In addition to any other applicable requirements, invitations to bid, RFPs, and RFQs must include a requirement that the bidder or respondent include in its bid or response one of the following:

(1) A certified MBE/WBE subcontractor utilization plan in which the bidder or respondent commits to utilize city-certified MBEs and/or WBEs in a percentage that equals or exceeds the applicable solicitation goals; or

(2) If a bidder or respondent is unable to meet the solicitation goals, a subcontractor utilization plan that reflects the highest MBE and WBE participation the bidder or respondent was able to achieve and documentation of its good faith efforts to meet the advertised solicitation goals.

(b) The subcontractor utilization plan must include the following information:

(1) The name of each certified MBE or WBE to which the bidder or respondent intends to award a subcontract;

(2) Whether the subcontractor is a city-certified MBE or WBE;

(3) The dollar value of each subcontract;

(4) The scope of work to be performed under that subcontract; and

(5) Any other information the director requires in order to determine whether the city-certified MBE or WBE will be performing a commercially useful function or whether the contract participation goals have been satisfied.

(c) (1) Bids are non-responsive if they do not include a certified MBE/WBE subcontractor utilization plan that meets or exceeds the solicitation goals or a subcontractor utilization plan that reflects the highest MBE and WBE participation the bidder or respondent was able to achieve and documentation of its good faith efforts to meet the solicitation goals in compliance with section 324-22(a) of this chapter prior to bid opening.

(2) Responses to RFPs or RFQs that do not include a certified MBE/WBE subcontractor utilization plan that meets or exceeds the solicitation goals or a subcontractor utilization plan that reflects the highest MBE and WBE participation the bidder or respondent was able to achieve and documentation of its good faith efforts to meet the solicitation goals in compli-

ance with section 324-22(a) of this chapter prior to the deadline for submission of responses may be considered only as provided in section 324-22(b) of this chapter.

(3) The director may allow bidders and respondents to submit corrections to subcontractor utilization plans that do not meet the solicitation goals due solely to the following errors in the subcontractor utilization plan, and those bids or responses shall be deemed responsive provided the bidder or respondent corrects only these errors and returns the subcontractor utilization plan to the director within two business days following the director's notification of the error:

(A) Obvious mathematical errors;

(B) Typographical errors in a subcontractor's city certification type (MBE or WBE); or

(C) Errors in either firm names or firm FEIN numbers where those two pieces of information are not associated with the same firms.

No other modifications, changes, or corrections to the subcontractor utilization plan or other documentation submitted with the responses are permitted.

(d) Each bidder or RFP or RFQ respondent is responsible for verifying that all MBEs and WBEs it identifies as MBE or WBE subcontractors on its subcontractor utilization plan have been certified by the director before bid opening or the deadline for submission of responses.

(e) During the term of the contract, any failure to comply with the MBE or WBE contract participation goals or to utilize the MBE and WBE firms as specified in the subcontractor utilization plan submitted with the bid or response is a material breach of the contract unless the director has approved a waiver or reduction of contract participation goals and/or a request for substitution of MBE and/or WBE firms as set forth in section 324-23 of this chapter.
(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-21. City Agency Pre-Solicitation Goal Waiver or Reduction Requests.

(a) A contracting agency may make a written request to the director for a waiver or reduction of the MBE and/or WBE solicitation goals established by the director before bids are solicited or RFPs or RFQs are published.

(b) The director may grant the waiver or reduction if the director determines that either:

(1) The reasonable and necessary requirements of the contract make subcontracting or other participation of businesses other than the bidder or respondent infeasible; or

(2) There are not at least two qualified and certified MBEs or WBEs in the Cincinnati market area capable of providing the goods or services, despite feasible attempts to locate them.

(c) If the director denies a request to waive or reduce an MBE or WBE solicitation goal, the contracting agency may appeal that denial to the city manager.
(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-22. Vendor Good Faith Efforts to Meet Goals.

(a) A bidder or respondent that is unable to meet the established MBE and/or WBE solicitation goals must submit at the time of bid opening or at or before the deadline for submission of responses to an RFP or RFQ a

subcontractor utilization plan that reflects the highest MBE and WBE participation the bidder was able to achieve and documentation of its good faith efforts to meet the advertised goals.

(b) The director will review submitted documentation of good faith efforts only in the event no bid or response that is determined by the city purchasing agent to be lowest and best or most advantageous and therefore eligible for award meets the MBE or WBE contract participation goals.

(1) For RFPs and RFQs for which no respondent met the goals, the city purchasing agent may allow all respondents an additional three business days after notice to submit documentation of good faith efforts each made prior to the deadline for submission of responses to the RFP or RFQ. Respondents that fail to submit such documentation of good faith efforts within that period shall be nonresponsive and ineligible for award.

(2) The director shall evaluate each bidder's and respondent's documentation of their good faith efforts considering the factors in section 324-1-G of this chapter, and the director shall report the results of that evaluation and the maximum MBE and WBE participation achieved by each bidder and respondent to the city purchasing agent.

(A) A contract shall not be awarded to a bidder or respondent whose documentation does not demonstrate good faith efforts to meet the solicitation goals as determined by the director.

(B) If no other bidder or respondent met the solicitation goals, the city purchasing agent may award a contract to a bidder or respondent for which the director made a determination that the bidder or respondent demonstrated good faith efforts to meet the goals.

(i) For an invitation to bid, the contract participation goals shall be those the director determined to be the maximum commitment achieved by the awarded bidder on its subcontractor approval plan.

(ii) For an RFP or RFQ, the contract participation goals shall be the higher of the goals the director determined to be the maximum commitment achieved by the awarded respondent on its subcontractor approval plan or the goals negotiated with the awarded vendor by the city purchasing agent in consultation with the director.

(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-23. Requests for Post-Award Waivers or Reductions of Contract Participation Goals; Substitution of MBEs or WBEs.

(a) After award of a contract, if the contractor is unable to meet the established MBE and/or WBE contract participation goal(s) through the use of the MBEs and WBEs specified by the contractor in the subcontractor utilization plan submitted with its bid or response, the contractor must seek a substitute certified MBE or WBE to fulfill its commitment.

(1) Any proposed substitution of a city-certified MBE listed on the contractor's

subcontractor utilization plan with another city-certified MBE or proposed substitution of a city-certified WBE listed on the contractor's subcontractor utilization plan with another city-certified WBE shall require the written approval of the director.

(2) If a contractor has established the basis for a substitution to the satisfaction of the director, the contractor may seek the assistance of the director in obtaining a new applicable certified MBE or WBE as a substitute.

(b) If, after making good faith efforts, the contractor is unable to find a qualified, city-certified MBE or WBE substitute, as applicable, that is capable of performing the work on the contract, the contractor must request a post-award waiver from the director, which, if granted, will permit the contractor to substitute another MBE or WBE that is not certified by the city or a non-MBE or non-WBE for the city-certified firm.

(c) A request for approval of an MBE or WBE substitute or a post-award waiver must meet all of the following criteria:

(1) Be in writing;

(2) Document the reasons for the contractor's inability to meet its original MBE or WBE subcontractor utilization commitment with an MBE or WBE listed on the contractor's MBE/WBE subcontractor utilization plan; and

(3) Document either the name and qualifications of the proposed substitute certified MBE or WBE or the good faith efforts made to find a substitute qualified and certified MBE or WBE.

(d) The director's decision to permit or deny a proposed substitution or waiver, and the basis of any denial, shall be communicated to the contractor, the MBE or WBE originally listed on the subcontractor utilization plan, and any proposed substitute MBE or WBE in writing.
(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-25. Chapter Inapplicable to Sole Source, Emergency Acquisitions, Cooperative/ State Procurements, and Direct Awards.

Unless the city manager or city purchasing agent determines that application of the provisions of this chapter to a particular contract is practical and in the best interest of the city, the provisions of this chapter do not apply to a particular contract if the city purchasing agent determines:

(a) There is only a single or sole source for the needed goods or services as provided in section 321-85, section 321-86, or any related or successor sections of the Cincinnati Municipal Code;

(c) It is in the best interest of the city to use a direct award as provided in section 321-87 of the Cincinnati Municipal Code or its successor;

(d) It is in the best interest of the city to procure compatible equipment accessories or replacement parts, to use the original manufacturer for supplies, to procure public utility services, or to procure supplies for trial use or testing without competition as provided in chapter 321 of the Cincinnati Municipal Code;

(d) The city purchasing agent makes a written determination that an emergency procurement is appropriate as provided in section 321-89 of the Cincinnati Municipal Code or its successor;

(e) It is in the best interest of the city to procure goods or services through a cooperative contract or state contract as provided in section 321-97 of the Cincinnati Municipal Code or its successor; or

(f) The city purchasing agent and, as applicable, the city manager, determine it is in the best interest of the city to award a professional services contract without competition in accordance with city administrative regulations.

(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-27. Counting MBE and WBE Participation.

A bidder, a respondent to an RFP or RFQ, or a contractor may only be credited with MBE or WBE participation as follows:

(a) Only city-certified MBEs and WBEs may be counted toward solicitation goals and only as follows:

(1) A certified MBE or WBE that submits a bid or proposal as a prime contractor may count 100 percent of the dollar value of the work it intends to perform with its own forces toward the applicable MBE or WBE solicitation goal.

(2) Only businesses that were certified by the director as an MBE or WBE prior to bid opening or the deadline for submission of a response to an RFP or RFQ and were certified at that time to perform the work described in the subcontractor utilization plan submitted with the bid or response may be counted toward the applicable solicitation goal.

(3) Only that portion of the work to be performed by a joint venture that is equal to the percentage of the certified MBE or WBE participant's ownership, control, and identified contract performance may be counted toward the applicable MBE or WBE solicitation goal.

(4) The entire value of the identified utilization of a certified WBE manufacturer or a certified WBE supplier that also manufactures the goods supplied may be counted toward the WBE solicitation goal.

(5) Twenty-five percent of the value of the identified utilization of a certified WBE supplier that is a wholesaler warehousing the goods supplied may be counted toward the WBE solicitation goal.

(6) The fees or commissions charged by a certified MBE or WBE insurance company or travel agent may be counted toward the applicable solicitation goal, provided the fee is reasonable and not excessive as compared with fees or commissions customarily allowed for similar services.

(7) No planned utilization of a certified MBE or WBE that intends to subcontract more than ten percent of the dollar amount of the services to be performed under a subcontract with the bidder or with a respondent to an RFP or RFQ may be counted toward the applicable MBE or WBE solicitation goal. An MBE's or a WBE's necessary expenditures for the purchase of materials, equipment, or sup-

plies that are incidental to the performance of its services shall not be counted toward this ten percent limitation.

(8) A certified MBE or WBE may not be counted toward the applicable MBE or WBE solicitation goal if the prime contractor has a financial interest in, has an interest in the ownership or control of, or is significantly involved in the operation of the certified MBE or WBE.

(b) Only city-certified MBEs and WBEs may be counted toward contract participation goals and only as follows:

(1) A certified MBE or WBE awarded a contract as a prime contractor may count 100 percent of the dollar value of the work it actually performs with its own forces toward the applicable MBE or WBE contract participation goal.

(2) Only payments to certified MBEs or WBEs that perform a commercially useful function in the performance of work for which they are certified may be counted toward the applicable contract participation goal.

(A) To determine whether a certified MBE or WBE is performing a commercially useful function, the director must evaluate:

(i) The amount of work subcontracted;

(ii) Industry practices;

(iii) Whether the amount the MBE or WBE is to be paid under the contract is commensurate with the work it actually performs and with the MBE or WBE credit claimed for its performance of the work; and

(iv) Any other factors deemed by the director to be relevant to the determination.

(B) If the director initially determines that an MBE or WBE is not performing a commercially useful function, the director shall give written notice to the MBE or WBE, and the MBE or WBE may provide written documentation to the director within seven days that evidences it is or will be performing a commercially useful function for work it has been certified by the city to perform.

(C) The decision of the director after submission of such additional evidence by the MBE or WBE, or seven days after written notice of the initial determination if no additional evidence is submitted, shall be final and conclusive.

(3) Only that portion of the payment to a joint venture that is equal to the percentage of ownership, control, and contract performance of the certified MBE or WBE participant in the joint venture may be counted toward the applicable MBE or WBE contract participation goal.

(4) The entire expenditure with a certified WBE manufacturer or

a certified WBE supplier that also manufactures the goods supplied may be counted toward the WBE contract participation goal.

(5) Twenty-five percent of the payment to a certified WBE supplier that is a wholesaler warehousing the goods supplied may be counted toward the WBE contract participation goal.

(6) The fees or commissions charged by a certified MBE or WBE insurance company or travel agent may be counted toward the applicable contract participation goal, provided the fee is reasonable and not excessive as compared with fees or commissions customarily allowed for similar services.

(7) No payments made to a certified MBE or WBE that subcontracts more than ten percent of the dollar amount of the services to be performed under a subcontract with the prime contractor may be counted toward the applicable MBE or WBE contract participation goal. An MBE's or a WBE's expenditures for the purchase of materials, equipment, or supplies that are incidental to the performance of its services under its subcontract shall not be counted toward this ten percent subcontracting limitation.

(8) A certified MBE or WBE may not be counted toward the applicable MBE or WBE contract participation goal if the prime contractor has a financial interest in, has an interest in the ownership or control of, or is significantly involved in the operation of the certified MBE or WBE.

(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-29. Prime Contractor Capacity-Building Initiatives Authorized.

To promote the award of city contracts to city-certified MBEs or WBEs in an effort to remedy identified disparities in city prime contracts historically awarded to MBEs or WBEs, preference points may be awarded as provided in section 324-31 of this chapter to a response submitted by a city-certified MBE or WBE to an RFP or RFQ for professional services, and price preferences may be applied as provided in section 324-33 of this chapter to a bid submitted by a city-certified MBE or WBE for supplies and other services prime contracts.

(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-31. Preference Points for Professional Services Prime Contracts.

(a) A city-certified MBE or WBE that submits a response to an RFP or RFQ for a professional services contract may be awarded up to ten evaluation preference points.

(b) Preference points for joint ventures that include city-certified MBE or WBE participants must be allocated on a pro rata basis in the same proportion to which a clearly defined portion of the work to be performed by the MBE or WBE with its own forces and equal to its share in the ownership, risks, performance, management, and control of the joint venture bears to the total work to be performed under the contract.

(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-33. Price Preferences for Other Services and Supplies Prime Contracts.

The city may award a prime contract for other services or supplies to a city-certified MBE or WBE that submits a bid that is no more than five percent greater than the lowest and otherwise best bid unless either of the following applies:

(a) The award to the MBE or WBE would result in a total contract cost that is, on an annual basis, $25,000 or more higher than the lowest and otherwise best bid; or

(b) The award to the MBE or WBE would cause the total contract cost to exceed the city's budgeted funding for the contract.

(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-35. Request for Reconsideration and Appeal of Denial of Certification.

(a) *Noncompliance and Denial of Certification.* Upon a denial by the director of an application for certification or recertification as an MBE or WBE under this chapter, the director shall notify the affected party in writing by certified mail at the address provided by the applicant on the application, setting forth the reasons for the denial of certification or recertification.

(b) *Request for Reconsideration.*

(1) Any applicant denied certification or recertification as an MBE or WBE or whose certification has been revoked may request the director to reconsider the denial or revocation by filing a written request for reconsideration with the director within fourteen days of the date the notice of denial or revocation decision is mailed, which request shall state with specificity the factual grounds supporting certification.

(A) In the event such notice sent by certified mail is returned as refused or unclaimed, the director shall send the notice via regular U.S. mail, postage prepaid. Provided the notice sent by regular U.S. mail is not returned as undeliverable within ten days, the notice shall be presumed to have been delivered, and a written request for reconsideration must be filed with the director within ten days of the date the notice was mailed.

(B) The request for reconsideration may be accompanied by any supporting documents the applicant believes supports approval of the application or supports continued certification.

(2) Within thirty days of receipt of a request for reconsideration, the director must review the request and all relevant documents submitted in support thereof and render a written decision that states with specificity the reasons for the decision. The decision on reconsideration shall be sent by certified mail to the address provided by the applicant on the application.

(3) If, upon reconsideration, the director affirms the denial of certification or recertification or affirms the revocation of certification, the applicant may request a hearing before the certification appeals board by filing a written notice of appeal with the director within fourteen days of the date the notice of decision on reconsideration is mailed. In the event such notice sent by certified mail is

returned as refused or unclaimed, the director shall send the notice via regular U.S. mail, postage pre-paid. Provided the notice sent by regular U.S. mail is not returned as undeliverable within ten days, the notice shall be presumed to have been delivered and a written request for hearing must be filed with the director within ten days of the date the notice was mailed.

(c) *Certification Appeals Board.* The city manager shall establish a certification appeals board for the purpose of reviewing and either affirming or overruling the director's disposition of an application for certification or recertification as an MBE or WBE or the director's revocation of MBE or WBE certification. The board shall be comprised of five members, one of whom shall be appointed by the mayor and four of whom shall be appointed by the city manager. The members must be knowledgeable about the city's procurement laws, rules and regulations, and procedures, including this chapter, and shall serve for a period of two years. A chairperson shall be elected by the members of the board. Included on the board shall be:

(1) At least one member with demonstrated experience in the field of finance and accounting;

(2) At least one member with demonstrated experience in the field of construction;

(3) At least one member with demonstrated experience with MBE and WBE matters; and

(4) At least one member with demonstrated legal experience with business associations and business structures.

(d) *Notice of Hearing Date and Hearing.*

(1) Within three business days of receipt of a written notice of appeal, the director shall forward the notice to the certification appeals board.

(2) The board shall set a hearing date not more than 28 days from the date of receipt of the notice of appeal forwarded by the director. The board shall cause notice of the hearing to be served upon all parties by certified mail. Such notice shall set forth the adverse determination by the director from which the appeal was taken and the errors identified by the applicant. The notice also shall state the date, time, and place of the hearing. If the certified mail notice is returned as refused or unclaimed, the notice of hearing shall be mailed by regular U.S. mail, postage prepaid, and will be deemed to have been received if it is not returned as undeliverable within ten days of mailing.

(3) All parties shall be provided a fair and impartial hearing and shall be allowed to produce any evidence that supports and substantiates the information submitted with the application for certification or recertification or the decision made by the director.

(e) *Decision.* Within seven days of the conclusion of the hearing, the board shall render its decision, which shall be to affirm, modify, or reverse the denial of certification or recertification or the revocation of certification by the director, and shall state the reason(s) for such decision. The board shall decide whether the director's determination was in accordance with the law. If the board finds for the applicant, the business shall be certified or recertified as an MBE or WBE and added to the appropriate certification list maintained by the department. The decision of the board shall be final, subject to the right of further appeal as may be provided by law.

(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-37. Duties of the Department of Economic Inclusion.

The department or, as applicable, the director shall have the following functions and duties associated with the programs set forth in this chapter:

(a) Review and make determinations on applications for certification of MBEs and WBEs;

(b) Maintain a directory of MBEs and WBEs certified under this chapter;

(c) Provide information and needed assistance to MBEs and WBEs;

(d) Investigate alleged violations of this chapter and, when appropriate, make written recommendations to the city manager for remedial action;

(e) Develop and distribute all forms, applications, and documents necessary to comply with this chapter;

(f) Maintain statistics on and regularly review the progress toward achieving the annual goals for the utilization of MBEs and WBEs;

(g) Monitor contractors throughout the duration of their contracts to ensure that all efforts are made to comply with this chapter; and

(h) Certify compliance with this chapter before contracts are submitted to the city manager for execution.

(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-39. City Maintained Records and Reports.

(a) The effectiveness of this program will be measured by a review of data indicating prime and subcontract awards to city-certified MBEs and WBEs. Program effectiveness measurements also will include efforts by the city's contracting agencies to provide prime contracting opportunities for city-certified MBEs and WBEs. At the end of each contract, after receipt of the information required by subsection (b) of this section, the department will prepare a report on the utilization of firms in the MBE and WBE program. Data in this report will include information on the gross income size of the firms participating on each contract, the race and gender of each contractor and subcontractor performing work under the contract, and the total payments made to each contractor and subcontractor performing work under the contract.

(b) At the end of a contract, the director shall require the prime contractor to report to the department the identity of each city-certified MBE and/or WBE to which the contractor awarded a subcontract for the purchase of construction services, professional services, other services, and supplies and the total payments made to each city-certified MBE and/or WBE.

(c) The director shall prepare a quarterly consolidated report based on a compilation and analysis of the reports submitted by each project manager and procurement officer, information provided by the finance department, and the reports submitted by prime contractors. This record-keeping system will identify and assess MBE and WBE contract awards, prime contractors' progress in achieving MBE and WBE subcontract participation, and other MBE and WBE development and contracting efforts. Specifically, the department in conjunction with all city contracting agencies, will maintain records showing:

(1) Awards to MBEs and WBEs, including names of contractors and subcontractors, nature of the work and services performed, and the percentage of MBE and WBE participation per contract. The department will obtain regular reports from

prime contractors on their progress in meeting contractual MBE and WBE commitments;

(2) Specific efforts to identify and award contracts to MBEs and WBEs;

(3) Copies of direct mailings to MBEs and WBEs;

(4) Pre-bid conference information;

(5) Requests for assistance from the MBEs and WBEs interested in bidding or proposing on city contracts and subcontracts;

(6) Workshops, seminars, and training programs conducted for MBEs and WBEs;

(7) Efforts to assist MBEs and WBEs in acquiring bonding and insurance; and

(8) Contracts for which a waiver of MBE or WBE participation has been obtained.

(d) The director will prepare quarterly MBE and WBE development reports for submission to council. These reports shall be disaggregated by minority group as defined in Section 324-1-M1 of this chapter and shall include:

(1) The number of contracts awarded to MBEs and WBEs;

(2) A description of the general categories of contracts awarded to MBEs and WBEs;

(3) The dollar value of contracts awarded to MBEs and WBEs;

(4) The percentage of the dollar value of all contracts awarded to MBEs and WBEs during the preceding year;

(5) The actual dollar amount paid to MBE, WBE and non-M/WBE vendors as prime or subcontractors; and

(6) The percentage of the dollar amount paid to MBEs and WBEs compared to the total amount paid under the contracts.

(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-41. MBE and WBE Resource Information.

The department and purchasing division will make the following available to MBEs and WBEs upon request:

(a) Procedures outlining specific steps on how to bid;

(b) Prerequisites for bidding on contracts;

(c) Information on how plans and specifications can be obtained;

(d) Names of persons to contact concerning questions on bid documents;

(e) Names of procurement officers and office hours;

(f) Types of supplies and services purchased by the city; and

(g) Explanations of standard contract implementation procedures and requirements concerning such matters as timely performance of work, contract changes, and payment schedules.

(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-43. MBE and WBE Directory.

The department will create a city-certified MBE and WBE directory that lists city-certified MBEs and WBEs categorized by certification type and the work for which the firms are certified to perform to facilitate identifying businesses with capabilities relevant to a particular specification. Each business listing will contain the business name, contact person, address, phone number, legal structure of the business, and details

concerning the company's business specialty(ies). The directory will be continuously updated and maintained electronically. In compiling this directory, the city will identify and attempt to certify as many MBEs and WBEs as possible that have the potential of doing business with the city. The city will maintain and have available an updated MBE and WBE Directory for each bid/proposal solicitation to facilitate identifying city-certified MBEs and WBEs with capabilities relevant to general contracting requirements and to particular solicitations. The city will make the directory available to bidders and respondents in their efforts to meet the MBE and WBE commitments under this chapter.
(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-45. MBE and WBE Assistance to Provide an Equitable Opportunity to Compete for Contracts and Subcontracts.

The department and the procurement staff may utilize any of the same specific affirmative procedures set forth in section 323-33 of the Cincinnati Municipal Code or its successor for SBEs, SLBEs, and ELBEs to encourage maximum practicable opportunities for MBE and WBE participation in city contracts.
(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-47. Enforcement.

(a) During the term of a contract subject to this chapter, the department must monitor continued compliance with the chapter, and the director may require contractors, bidders, respondents, MBEs, WBEs, and contracting agencies to submit any reports, documents, or other information reasonably necessary to determine compliance with this chapter.

(b) If the director finds cause to believe that a contractor or subcontractor has failed to comply with any requirement of this chapter or with any contract provision relating to utilization of MBEs or WBEs, the director shall notify the contracting agency and the contractor of the noncompliance and shall attempt to resolve the noncompliance by agreement.

(1) If the noncompliance cannot be resolved, the director and the contracting agency must submit written findings and recommendations to the city manager.

(2) The city manager may impose penalties for noncompliance as provided in section 324-99 of this chapter.

(c) If the director finds that a contracting agency has failed to comply with a provision of this chapter, the director shall send the contracting agency written findings that specify the nature of the noncompliance and attempt to resolve the noncompliance through conciliation. If the noncompliance cannot be resolved, the director must submit written findings and recommendations for further action to the city manager.
(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-49. Economic Inclusion Advocacy and Accountability Board.

(a) *Mission, duties of Board*.

(1) The mission of the economic inclusion advocacy and accountability board shall be to promote economic inclusion, serve as a public advocate for the department, assist the department in fulfilling the recommendations of the economic inclusion advisory council and measure the

impact of the economic inclusion programs and initiatives within the city of Cincinnati.

(2) The economic inclusion advocacy and accountability board shall have the following functions and duties associated with economic inclusion and the programs set forth in this chapter:

(A) Recommending policies to implement the city's economic inclusion programs and services;

(B) Recommending strategies to implement recommendations of the economic inclusion advisory council or its successor advisory group;

(C) Measuring the community impact of the city's and the department's economic inclusion programs and initiatives;

(D) Preparing and distributing to the community an annual report on the city's inclusion efforts; and

(E) Ensuring that minority- and women-owned business inclusion programs and initiatives continue in the future.

(b) *Board members; appointment.* The economic inclusion advocacy and accountability board shall consist of up to twenty-five members appointed by the mayor of the city of Cincinnati with the approval of city council. The following organizations each may recommend three members to the mayor: Urban League of Greater Southwestern Ohio, African American Chamber of Commerce, Hispanic Chamber of Commerce, and Asian Chamber of Commerce. The members shall be diverse in terms of race, ethnicity, gender, and age, shall have knowledge of minority-owned or women-owned business growth and development issues, and shall be residents of Hamilton County, Ohio.

(c) The director shall be an ex-officio board member and shall not count as one of the 25 appointed board members required in paragraph (b) of this section.

(d) *Term.* In the economic inclusion advocacy and accountability board's first year, up to eight members of the board shall be appointed for a term of one year, up to eight members shall be appointed for a term of two years, and up to nine members shall be appointed for a term of three years. Upon the expiration of the initial term of each member, each member's appointment may be renewed for two additional three-year terms. The terms of the board members shall be staggered so that each year, up to eight or nine members will be eligible for either renewal of their terms or replacement by a new board member.

(e) *Frequency of meetings.* The economic inclusion advocacy and accountability board shall meet on a quarterly basis, or more frequently as needed.

(f) *By-laws.* The economic inclusion advocacy and accountability board is authorized to pass by-laws or other regulations governing the board as long as such by-laws or regulations do not conflict with any provision of this section 324-49.

(g) *Committees*. The economic inclusion advocacy and accountability board, through its bylaws, shall establish a structure of standing committees with specific areas of responsibility for accomplishing its mission and duties.

(h) *Severability*. The provisions of this section 324-49 are severable from the other provisions in this chapter. If any other provision is held invalid, this section 324-49 shall not be made invalid as well.

(i) *Board to exist indefinitely*. The expiration of the provisions of this chapter shall not apply to the provisions of this section

324-49. This section 324-49 shall remain in effect indefinitely. It is the intent of this ordinance to create an economic inclusion advocacy and accountability board that shall continue in existence regardless of the status of the other provisions of this chapter.
(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Sec. 324-99. Penalties.

(a) *Administrative Penalties.* A contractor, potential contractor, MBE, or WBE that fails to comply with any provision of this chapter is subject to any or all of the following administrative penalties:

(1) Suspension of contract until noncompliance is resolved;

(2) Withholding of funds;

(3) Rescission of contract based on material breach;

(4) Refusal to accept a bid or a response to an RFP or RFQ;

(5) Debarment from providing goods or services to the city for a period not to exceed two years; and

(6) Payment of liquidated damages.

(b) *Prohibited conduct.* No person shall do any of the following:

(1) Fraudulently obtain, retain, attempt to obtain or retain, or aid another person or entity in fraudulently obtaining, retaining, or attempting to obtain or retain certification as an MBE or WBE under this chapter;

(2) In any matter administered under this chapter, falsify, conceal or cover up, by a trick, scheme, or device, a material fact or make any false writing or document knowing it contains any false, fictitious, or fraudulent statement or entry;

(3) Willfully obstruct, impede, or attempt to obstruct or impede an authorized official or employee who is investigating the qualifications of a business enterprise that has requested certification as an MBE or WBE under this chapter;

(4) Fraudulently obtain, attempt to obtain, or aid another in fraudulently obtaining or attempting to obtain public money to which the person is not entitled under this chapter; or

(5) Make a false statement to any person or entity that another person or entity is not certified under this chapter.

(c) Any person who violates any provision of subsection (b) of this section is guilty of a first-degree misdemeanor and on first conviction is subject to imprisonment for not more than six months, to a fine of not more than $1,000, or to both imprisonment and fine.
(Ordained by Ord. No. 312-2023, § 2, eff. October 1, 2023)

Chapter 325

EQUAL EMPLOYMENT OPPORTUNITY PROGRAM*

Sec. 325-1. Scope.
Sec. 325-3. Rules and Regulations.
Sec. 325-5. Duties of the Department of Economic Inclusion.
Sec. 325-7. Requirements for Execution of City Contracts.
Sec. 325-9. Equal Employment Opportunity Clause.
Sec. 325-11. Notice to and Requirements of Bidders and Offerors.
Sec. 325-13. Enforcement and Appeal.
Sec. 325-99. Penalties for Noncompliance.

*__Editor's note—__Ord. No. 235-2013, § 1, effective Sept. 7, 2013, changed the title of Ch. 325 from "Equal Employment Opportunity Program (Non-Construction Workforce)" to "Equal Employment Opportunity Program."

Sec. 325-1. Scope.

Except where otherwise indicated, or where prohibited by federal, state, or local law or the terms of federal or state grants, this Chapter 325 Equal Employment Opportunity Program of the Cincinnati Municipal Code shall apply to all non-construction contracts entered into by the City, its boards or commissions, in which the City expends more than $5,000.00. Any reference to "city" in this chapter includes the city's boards and commissions.
(Ord. No. 331-1999, eff. Aug. 4, 1999; Ord. No. 235-2013, § 3, eff. Sept. 7, 2013)

Sec. 325-3. Rules and Regulations.

The city manager shall issue and enforce rules and regulations for the equal employment opportunity program authorized by this chapter.
(Ord. No. 331-1999, eff. Aug. 4, 1999)

Sec. 325-5. Duties of the Department of Economic Inclusion.

The department of economic inclusion shall have the following functions and duties:

(a) Administration and enforcement of the equal employment opportunity program set forth in this chapter.

(b) Establishment of procedures to effectuate the equal employment opportunity program set forth in this chapter.

(c) Determination in writing, with reasons thereof, whether potential contractors are in compliance with the equal employment opportunity program set forth in this chapter before the award of any bid or proposal or the execution of any city contract.

(d) Approval of affirmative action programs submitted by potential contractors.

(e) Investigation of alleged violations of this chapter and the issuance of written determinations following such investigations, stating the reason thereof.

(f) Maintenance of statistical data showing the demographic characteristics of the available pool of labor skills on which the city relies for determinations of compliance by contractors with this chapter.

(g) Provision of all necessary forms, applications, documents and papers necessary to comply with this chapter.

(h) Determination of whether a potential contractor has met the requirements of this chapter. If bids are submitted, this determination must be made within 15 days by the director of economic inclusion.

(i) Review cases where a contractor fails to implement previously made affirmative action agreements to determine whether there should be further efforts or alternative approaches, including but not limited to, contacts with industry, related labor unions, and requests for the assistance of any pertinent federal agency for further negotiations.

(j) Determination of whether any penalty set forth in § 325-99 Penalties for Noncompliance is appropriate.

(k) Notification to an affected party by certified mail of a determination of noncompliance with this chapter and that the party has the right to appeal such determination of noncompliance with this chapter. Such request for an appeal shall be sent by the affected party to the director of economic inclusion within seven days of receipt of the notice of noncompliance.

(Ord. No. 331-1999, eff. Aug. 4, 1999; Emer.

Ord. No. 026-2015, § 5, eff. Feb. 9, 2015)

Editor's note—Sections 7 and 8 of Ord. No. 026-2015, effective Feb. 9, 2015, state the following:

7. In all sections of the Cincinnati Municipal Code and all City ordinances, any reference to the Contract Compliance Officer shall mean the Director of Economic Inclusion and any reference to the Office of Contract Compliance shall mean the Department of Economic Inclusion.
8. In addition to the duties expressly listed in Section 325-5 of the Cincinnati Municipal Code, as described in Administrative Code Art. XXIX, § 2, all duties currently assigned to the position of Contract Compliance Officer are hereby transferred in their entirety to the newly created Director of Economic Inclusion, including monitoring of the City's prevailing wage responsibilities under federal and state law, and all responsibilities of the Office of Contract Compliance are hereby transferred in their entirety to the newly created Department of Economic Inclusion.

Sec. 325-7. Requirements for Execution of City Contracts.

No contract shall be executed on behalf of the city or its boards and commissions unless at least one of the following requirements is met:

(a) Reflection of labor pool demographics with a workforce of 15 or more employees. The contractor has demonstrated that the contractor's local workforce, if consisting of 15 or more employees, reflects the demographic characteristics of the available pool of labor skills normally utilized by the contractor, according to the Office of Federal Contract Compliance Programs (OFCCP) guidelines, as amended, for the Metropolitan Statistical Area (MSA) in which the contractor's workforce is based. If a contractor has a Cincinnati MSA workforce of 15 or more employees, the contractor shall meet this requirement if the contractor's Cincinnati MSA workforce reflects the demographic characteristics of the Cincinnati MSA.

(b) The contractor has demonstrated good faith efforts to comply with the contractual requirement of this chapter. Such good faith is to be demonstrated by an existing Affirmative Action Program, including but not limited to training programs, advertising, recruitment efforts, goals, and timetables; to be approved by the contract compliance officer. An Affirmative Action Program shall be approved if it is pursuant to an order of a federal court with jurisdiction over the contractor's employment practices or if it meets the standard of the EEOC and OFCCP guidelines, as amended, provided that certification by the EEOC or OFCCP shall be accepted as fulfillment of this subsection only when issued within 30 days of the submission of the contractor's program to the city.

(c) The contract has been determined to be an emergency procurement pursuant to Sec. 321-65 C.M.C., or to be available only through a sole source pursuant to § 321-89 C.M.C.

(d) The contractor has fourteen or less employees.

(Ord. No. 331-1999, eff. Aug. 4, 1999)

Sec. 325-9. Equal Employment Opportunity Clause.

(a) For purposes of this section 325-9, "contract" shall mean all written agreements between the city and another party, whereby the city expends or receives funds in excess of $5,000 to:

(1) Employ such party for the construction of any public improvements; or

(2) Purchase services; or

(3) Lease any real or personal property to or from such other party.

"Contract" does not include written agreements between the city and another party whereby:

(1) Real or personal property is purchased by or from the city;

(2) The city agrees to provide services to another party;

(3) The city contracts with another governmental agency; or

(4) The city enters a contract for commodities, such as utility services.

(b) For purposes of this section, "contractor" shall mean a party that enters into a contract or lease with the city or performs any work under such contract.

(c) "Gender identity" shall mean the gender-related identity, appearance, or mannerisms or other gender-related characteristics of an individual, with or without regard to the individual's designated sex at birth.

(d) Except where prohibited by federal, state, or local law or the terms of federal or state grants, the Equal Employment Opportunity (EEO) clause is required to be included or incorporated by reference in all city contracts, and shall read as follows:

"This Contract is subject to the City of Cincinnati's Equal Employment Opportunity Program contained in Chapter 325 of the Cincinnati Municipal Code. During the term of this Contract, the Contractor agrees as follows:

(a) The Contractor shall not discriminate against any employee, or applicant for employment, because of race, religion, color, sex, sexual orientation, gender identity, or national origin. As used here, the words 'shall not discriminate' applies without limitation to the following:

(1) Recruitment, whether by advertising or other means;

(2) Compensation, whether in the form of rates of pay, or other forms of compensation;

(3) Selection for training, including apprenticeship;

(4) Promotion; upgrading; demotion; downgrading; transfer; laying off; and termination.

(b) The Contractor agrees to and shall post in conspicuous places, available to employees and applicants for employment, notices to be provided by the contracting officers setting forth the provisions of the EEO clause.

(c) The Contractor shall, in all solicitations or advertisements for employees, placed by or on behalf of the contractor, state that qualified applicants will receive consideration for employment without regard to race, religion, color, sex, sexual orientation, gender identity, or national origin.

(d) The Contractor shall furnish all information and reports required by the contract compliance officer pursuant to this chapter, and shall permit access to the books, records, and accounts of the Contractor during normal business hours by the contract compliance officer for the purpose of investigation so as to ascertain compliance with the program.

(e) The Contractor shall take such action with respect to any subcontractor as the city may direct as a means of enforcing the provisions herein, including penalties and sanctions for noncompliance; provided, however, that in the event the contractor becomes involved in or is threatened with litigation as a result of such direction by the city, the city may enter into such litigation as is necessary to protect the interest of the city and to effectuate the Equal Employment Opportunity Program of the city; and, in the case of contracts receiving federal assistance, the contractor or the city may request the United States to enter into such litigation to protect the interests of the United States.

(f) The Contractor shall file compliance reports at reasonable times and intervals with the city in the form and to the extent prescribed by the contract compliance officer. Compliance reports filed shall contain information as to employment practices, policies, programs, and statistics of the contractor.

(g) The Contractor shall include the provisions of this equal employment opportunity clause in every subcontract, sublease, or purchase order so that such provisions will be binding upon each subcontractor, sublessee, or vendor.

(h) A finding, as hereinafter provided, that a refusal by the Contractor to comply with any portion of this Equal Employment Opportunity Program, may subject the offending party to any or all of the following penalties:

(1) Refusal of all future bids or proposals for any contract with the city or its boards or commissions until such time as the Contractor demonstrates that there has been established and there shall be carried out all of the provisions of the program as provided in this chapter;

(2) Cancellation of the contract;

(3) In a case in which there is substantial or a material violation of the compliance procedures herein set forth or as may be provided for by the contract, appropriate proceedings may be brought to enforce those provisions, including the enjoining, within applicable law, of contractors, subcontractors or other organizations, individuals or groups who prevent or seek to prevent directly or indirectly compliance with the policy as herein provided."

(The terms "Contract" and "Contractor" in this EEO clause may be replaced with similar terms used in a contract and the paragraphs may be lettered or numbered similar to those in a contract.)
(Ord. No. 331-1999, eff. Aug. 4, 1999; Ord. No. 235-2013, § 5, eff. Sept. 7, 2013)

Cross reference—Penalty, § 325-99.

Sec. 325-11. Notice to and Requirements of Bidders and Offerors.

(a) The city shall include, as a part of any contract specifications published for the use of prospective bidders and offerors, a notice that all bidders or offerors will be required to comply with this chapter.

(b) Each bidder or offeror shall submit any information required by this chapter in duplicate to the contract compliance officer. Each bidder or offeror shall file, as part of the documents of such contract, employment information in such form as may be required by the contract compliance officer and shall ensure that each subcontractor also files such information.
(Ord. No. 331-1999, eff. Aug. 4, 1999)

Sec. 325-13. Enforcement and Appeal.

(a) If there is substantial or material violation of the compliance procedure set forth in this chapter or as may be provided for by the contract, appropriate proceedings may be brought by the city to enforce those provisions, including the enjoining, within applicable law, of contractors, subcontractors or other organizations, individuals or groups who prevent or seek to prevent, directly or indirectly, compliance with the policy provided in this chapter.

(b) If the contract compliance officer determines that the contractor has violated or has failed to comply with the equal employment opportunity requirements of the contract, after affording such contractor a reasonable time to correct such situation and where negotiations have been of no avail, such officer shall make a finding of noncompliance and shall transmit the findings and recommendations thereon to the city manager or the city manager's designee and to the contract compliance advisory board, which shall hold a hearing thereon if requested by the contractor.
(Ord. No. 331-1999, eff. Aug. 4, 1999)

Sec. 325-99. Penalties for Noncompliance.

The refusal or failure by a contractor to comply with any provision of this chapter may subject the offending party to any or all of the following penalties:

(a) Cancellation of the contract.

(b) Refusal of all future bids for any contract with the city or any of its boards or commissions until such time as the contractor or subcontractor demonstrates that there has been established and there shall be carried out all of the provisions of the program as provided in this chapter.

(Ord. No. 331-1999, eff. Aug. 4, 1999)

Chapter 326

WAGE ENFORCEMENT

Sec. 326-1. Legislative Intent and Purpose.
Sec. 326-2. Definitions.
Sec. 326-2-A1. Adverse Determination.
Sec. 326-2-A2. Agreement.
Sec. 326-2-C1. Contractor.
Sec. 326-2-C2. Complaint.
Sec. 326-2-D. Development Site.
Sec. 326-2-P1. Payroll Fraud.
Sec. 326-2-P2. Person.
Sec. 326-2-S. Subcontractor.
Sec. 326-2-W. Wage Theft.
Sec. 326-3. Reporting Wage Theft and Payroll Fraud.
Sec. 326-4. Contractor and Subcontractor Reporting.
Sec. 326-5. Contract or Agreement Provisions.
Sec. 326-7. Wage Theft Monitoring, Investigation and Compliance.
Sec. 326-9. Application to New Contracts.
Sec. 326-11. Severability.

Sec. 326-1. Legislative Intent and Purpose.

It is the purpose of this chapter to assure that city incentives support development that complies with local, state and federal wage and payroll laws, thereby ensuring that workers receive proper compensation for their work. Where there are violations of those local, state and federal wage and payroll laws on city-supported developments, this chapter obligates any parties involved in the development who know about the violations to report them. This chapter also communicates to parties receiving incentives from the city that if they or their contractors or subcontractors violate wage or payroll laws, the city intends to recoup its investment to the extent allowed under the laws and regulations governing those city-sponsored incentives.
(Ordained by Ord. No. 022-2016, § 1, eff. March 3, 2016; Emer. Ord. No. 0096-2017, § 1, eff. May 17, 2017)

Sec. 326-2. Definitions.

For the purpose of this chapter, the words and phrases defined in the sections hereunder shall have the meanings respectively ascribed to them, unless a different meaning is clearly indicated by the context.
(Ordained by Ord. No. 022-2016, § 1, eff. March 3, 2016)

Sec. 326-2-A1. Adverse Determination.

"Adverse determination" means a determination that a person, or any contractor or subcontractor working under an agreement or on a development site, has committed wage theft or payroll fraud. Such a determination includes an administrative merit determination, arbitration award or decision, or civil judgment, including any determination made in or through an administrative hearing, any governmental body, or any industry-specific regulatory or investigative body.
(Ordained by Ord. No. 022-2016, § 1, eff. March 3, 2016; Emer. Ord. No. 0096-2017, § 1, eff. May 17, 2017)

Sec. 326-2-A2. Agreement.

"Agreement" means any contract relating to construction or real estate development whereby the city provides an incentive or benefit that is projected to exceed $25,000, including but not limited to the following:

(a) Community Reinvestment Area tax abatements;

(b) Job creation tax credits;

(c) Any commercial loan;

(d) Any conveyance of land for less than fair market value;

(e) Tax increment financing; or

(f) Grants.

The City's construction, expansion or modification of a public infrastructure improvement benefiting a project shall not be included in calculating the total value of an economic incentive or benefit for purposes of this definition, but contracts in which the city provides compensation in excess of $25,000 for the construction of public improvements are expressly included in this definition, notwithstanding whether such compensation involves the fair market value purchase of construction services and would not otherwise qualify as an incentive or benefit. For the purposes of this chapter, such compensation shall be deemed a benefit.
(Ordained by Ord. No. 022-2016, § 1, eff. March 3, 2016; Emer. Ord. No. 0096-2017, § 1, eff. May 17, 2017)

Sec. 326-2-C1. Contractor.

"Contractor" means the individual, partnership, corporation, association or other entity

that is leading the construction or provision of goods or services on a development site on behalf of the person.
(Ordained by Ord. No. 022-2016, § 1, eff. March 3, 2016)

Sec. 326-2-C2. Complaint.

"Complaint" shall mean a report made to the city or any governmental agency having relevant jurisdiction that a person, or any contractor or subcontractor working under an agreement or on a development site, has committed wage theft or payroll fraud. A complaint may be such a report submitted to the U.S. Department of Labor, the Ohio Department of Commerce, or another body with authority to investigate and adjudicate such reports, which comes to the attention of the city. If a report is made directly to the city and not to another agency, it must include the following information in order to be considered a complaint:

(a) The name of the person, or the contractor or subcontractor working under an agreement or on a development site, alleged to have committed the wage theft or payroll fraud;

(b) The project during which or the agreement under which that person, or the contractor or subcontractor working under an agreement or on a development site, is alleged to have committed the wage theft or payroll fraud;

(c) A description of the wage theft or payroll fraud suspected to have been committed;

(d) The name of the complainant; and

(e) The name of at least one witness or victim of the wage theft or payroll fraud, which person may be the complainant.

(Ordained by Ord. No. 022-2016, § 1, eff. March 3, 2016; Emer. Ord. No. 0096-2017, § 1, eff. May 17, 2017)

Sec. 326-2-D. Development Site.

"Development site" means the property that is the subject of an agreement or on which a contractual undertaking is to be performed.
(Ordained by Ord. No. 022-2016, § 1, eff. March 3, 2016)

Sec. 326-2-P1. Payroll Fraud.

"Payroll fraud" shall mean any of the following:

(a) Concealing an entity's true tax or other financial liability to a government agency from government licensing, regulatory, or taxing agencies through tax evasion or fraud;

(b) Misclassification of employees;

(c) The unreported or underreported payment of wages;

(d) Paying a business transaction in cash without keeping appropriate records of reporting and withholding; or

(e) Committing a violation of local, state or federal wage or payroll laws by any other means.

(Ordained by Ord. No. 022-2016, § 1, eff. March 3, 2016; Emer. Ord. No. 0096-2017, § 1, eff. May 17, 2017)

Sec. 326-2-P2. Person.

"Person" means any individual, partnership, corporation, firm, trust, association or other entity that enters into an agreement with the city, together with any entity that is the parent of, has a direct or indirect majority ownership interest in, or has direct or indirect management and control of, the signatory to an agreement. For purposes of this chapter, the city may look beyond the signatory to the agreement to the real party in interest or common owner when determining whether a person has prior adverse determinations of wage theft or payroll fraud

and when imposing sanctions or pursuing remedies for an adverse determination against the signatory to the agreement.
(Ordained by Ord. No. 022-2016, § 1, eff. March 3, 2016; Emer. Ord. No. 0096-2017, § 1, eff. May 17, 2017)

Sec. 326-2-S. Subcontractor.

"Subcontractor" means any entity that enters into a contract with a contractor to perform work on the development site or work pursuant to, related to, or in furtherance of an agreement.
(Ordained by Ord. No. 022-2016, § 1, eff. March 3, 2016; Emer. Ord. No. 0096-2017, § 1, eff. May 17, 2017)

Sec. 326-2-W. Wage Theft.

"Wage theft" means a violation of the Ohio Prompt Pay Statute, O.R.C. 4113.15; the Ohio Minimum Fair Wage Standards Act, O.R.C. Chapter 4111; Ohio's Minimum Wage Constitutional Amendment, Section 34a of Article II of the Ohio Constitution; O.R.C. Chapters 4109 or 4115; O.R.C. Sections 4113.17, 4113.18, 4113.52, or 4113.61; any federal statute or regulation comparable to the aforementioned Ohio statutes; any statute or regulation of another state that may apply to a particular agreement; or the city's living wage requirements in Cincinnati Municipal Code Chapter 317; or any successor to any of these laws or regulations.
(Ordained by Ord. No. 022-2016, § 1, eff. March 3, 2016)

Sec. 326-3. Reporting Wage Theft and Payroll Fraud.

(a) Any person entering into an agreement shall include provisions in solicitations and contracts regarding a development site that require all employers to provide that person with a sworn statement as to whether there has been any adverse determination against the employer within the preceding 3-year period for wage theft or payroll fraud.

(b) Any person entering into an agreement shall require that any contractor or subcontractor performing work or proposing to perform work on a development site provide a sworn statement whether there has been an adverse determination rendered against that contractor or subcontractor in the preceding 3-year period for wage theft or payroll fraud.

(c) Any person entering an agreement shall include provisions in solicitations and contracts regarding the development site that require all contactors, subcontractors and employers to provide that person with an updated sworn statement within 30 days of any adverse determination rendered or complaint made against the employer for any wage theft or payroll fraud.

(d) Any person who has entered an agreement with the city, the term of which is not expired, shall report to the city in a sworn statement any complaint of wage theft or payroll fraud against the person or any of its contractor or subcontractors.

(e) All such sworn statements shall be submitted to the city within 30 days of receipt by the person who entered into the agreement.
(Ordained by Ord. No. 022-2016, § 1, eff. March 3, 2016; Emer. Ord. No. 0096-2017, § 1, eff. May 17, 2017)

Sec. 326-4. Contractor and Subcontractor Reporting.

(a) Before any contractor may begin work under an agreement or on a development site, each person entering into an agreement after the effective date of this ordinance shall submit to the city manager or his or her designee for approval a subcontractor utilization report, on a form prescribed by

the city manager, identifying each contractor the person intends to utilize to perform work under the agreement or on the development site.

(b) Before any subcontractor may begin work under an agreement or on a development site, each person entering into an agreement after the effective date of this ordinance shall collect from each contractor or subcontractor that will be subcontracting any work, and shall submit to the city manager or his or her designee for approval, a subcontractor utilization report, on a form prescribed by the city manager, identifying each subcontractor the person intends to utilize to perform work under the agreement or on the development site.
(Ordained by Emer. Ord. No. 0096-2017, § 2, eff. May 17, 2017)

Sec. 326-5. Contract or Agreement Provisions.

All agreements subject to this chapter shall contain all of the following provisions, or substantially similar language:

(a) This contract is or may be subject to the Wage Enforcement provisions of the Cincinnati Municipal Code. These provisions require that any Person who has an Agreement with the city or with a Contractor or Subcontractor of that Person shall report all Complaints or Adverse Determinations of Wage Theft and Payroll Fraud (as each of those terms is defined in Chapter 326 of the Cincinnati Municipal Code) against the Person, Contractor or Subcontractors to the Department of Economic Inclusion within 30 days of notification of the Complaint or Adverse Determination.

(b) If this contract is subject to the Wage Enforcement provisions of Chapter 326 of the Cincinnati Municipal Code, the Person entering into this contract is required to include provisions in solicitations and contracts regarding a Development Site that all employers, Contractors or Subcontractors performing or proposing to perform work on a Development Site provide an initial sworn and notarized "Affidavit Regarding Wage Theft and Payroll Fraud" on a form prescribed by the city manager or his or her designee and, within 30 days of an Adverse Determination or Complaint of Wage Theft or Payroll Fraud, shall provide an "Amended Affidavit Regarding Wage Theft and Payroll Fraud" on a form prescribed by the city manager or his or her designee.

(c) If this contract is subject to the Wage Enforcement provisions of Chapter 326 of the Cincinnati Municipal Code, the Person entering into this contract is required to authorize, and does hereby specifically authorize, any local, state or federal agency, court, administrative body or other entity investigating a complaint of Wage Theft or Payroll Fraud against the Person (collectively "investigative bodies") to release to the City's Department of Economic Inclusion any and all evidence, findings, complaints and determinations associated with the allegations of Wage Theft or Payroll Fraud upon the City's request and further authorizes such investigative bodies to keep the City advised regarding the status of the investigation and ultimate determination. If the investigative bodies require the Person to provide additional authorization on a prescribed form or in another manner, the Person shall be required to provide such additional authorization within 14 days of a request by the City.

(d) If this Agreement is subject to the Wage Enforcement provisions of Chapter 326 of the Cincinnati Municipal Code, the Person entering into this Agreement shall include in its contracts with all contractors language that requires the contractors to provide the authorizations set forth in subsection (c) above and that further requires each contractor to include in its contracts with subcontractors those same obligations for each subcontractor and each lower tier subcontractor.

(e) If this Agreement is subject to the Wage Enforcement provisions of Chapter 326 of the Cincinnati Municipal Code, the Person entering into this Agreement shall post a conspicuous notice on the Development Site throughout the entire period work is being performed pursuant to the Agreement indicating that the work being performed is subject to Cincinnati Municipal Code Chapter 326, Wage Enforcement, as administered by the City of Cincinnati Department of Economic Inclusion. Such notice shall include contact information for the Department of Economic Inclusion as provided by the department.

(f) Under the Wage Enforcement provisions, the city shall have the authority, under appropriate circumstances, to terminate this contract or to reduce the incentives or subsidies to be provided under this contract and to seek other remedies, including debarment.

(Ordained by Ord. No. 022-2016, § 1, eff. March 3, 2016; Emer. Ord. No. 0096-2017, § 1, eff. May 17, 2017)

Sec. 326-7. Wage Theft Monitoring, Investigation and Compliance.

(a) The city manager shall develop rules and regulations for the following:

(1) Review of agreements to ensure that language required by this chapter is included;

(2) Monitoring of agreements to ensure compliance with this chapter, including reviewing complaints, referring complaints to an appropriate agency for investigation, and monitoring the outcome of complaints, for any complaints about the practices of any person, contractor or subcontractor relating to the provisions of this chapter; and

(3) Recommendations for the pursuit of remedies or imposition of sanctions in the event of an adverse determination.

(b) Whenever the city becomes aware of any complaint against a person or the person's contractor or subcontractor for wage theft or payroll fraud with respect to any work done on a development site:

(1) The city manager or his or her designee shall report the complaint to the appropriate state or federal agency responsible for investigation and enforcement of a particular type of violation;

(2) The city manager or his or her designee may investigate wage theft or payroll fraud complaints and take appropriate action;

(3) The city will provide a written notice to the person stating that, if an adverse determination is rendered against the person or the person's contractor or subcontractor, the city will pursue any available legal,

contractual, or equitable remedies, which may include without limitation any or all of the penalties listed in subsections (c) and (d) of this section. The notice also will state that the person, contractor or subcontractor may provide the city with information showing that the adverse determination is under review, contested, or appealed; and

(4) The city will attempt to take action as described in subsection (b)(1) of this section and, if appropriate, to initiate an investigation as described in subsection (b)(2) of this section, within 30 days of the city's receipt of the complaint.

(c) Whenever any adverse determination is rendered against a person or the person's contractor for wage theft or payroll fraud with respect to any work done on a development site, or, if the adverse determination is appealed, then whenever the final decision on appeal confirms the adverse determination, the city will pursue any available legal, contractual or equitable remedies, which may include without limitation any or all of the following remedies whether or not provided for in the agreement:

(1) Termination of the agreement with the person or unilateral reduction of the incentive or benefit to be provided under the agreement by up to 100% of the yet to be paid or provided incentive or benefit;

(2) Deeming the person or the person's contractor ineligible for future agreements or other contracts with the city until all wage theft and payroll fraud penalties have been paid in full;

(3) Debarment of the person or the person's contractor from future agreements or other contracts with the city; and

(4) Informing the relevant city departments of the adverse determination, including but not limited to the tax commissioner, the department of finance, and the city prosecutor, in order to determine if further action is necessary.

(d) Whenever any adverse determination is rendered against a person's subcontractor, if there is no resolution of the wage theft violation or payroll fraud satisfactory to the city within 30 days of the city's receipt of notification of the adverse determination or final decision of an appeal, the city will pursue any available legal, contractual or equitable remedies, which may include without limitation the following remedies whether or not provided for in the agreement:

(1) Termination of the agreement with the person or unilateral reduction of the incentive or benefit to be provided under the agreement by up to 100% of the yet to be paid or provided incentive or benefit;

(2) Deeming the person, the person's contractor, and/or the subcontractor ineligible for future agreements or other contracts with the city until all wage theft and payroll fraud penalties have been paid in full;

(3) Debarment of the person, the person's contractor, and/or the subcontractor from future agreements or other contracts with the city; and

(4) Informing the relevant city departments, including but not limited to the tax commissioner, the department of finance, or the city prosecutor, in order to determine if further action is necessary or available.

(e) Any remedies available to the city under this section are in addition to, and not in replacement of, any remedies available to

the city under an agreement or otherwise. The pursuit of any remedy or remedies by the city shall not exclude the city's pursuit of any other remedy or remedies.

(f) The Department of Economic Inclusion shall be the department with primary responsibility for investigation, recordkeeping, and enforcement of this chapter.
(Ordained by Ord. No. 022-2016, § 1, eff. March 3, 2016; Emer. Ord. No. 0096-2017, § 1, eff. May 17, 2017)

Sec. 326-9. Application to New Contracts.

The provisions of this chapter shall apply to the following:

(a) Agreements entered into after the effective date of the ordinance codified in this chapter;

(b) Renewals and/or amendments to agreements entered into after the effective date of the ordinance codified in this chapter which renewal or amendment alone meets the financial threshold requirement of this chapter.

(Ordained by Ord. No. 022-2016, § 1, eff. March 3, 2016)

Sec. 326-11. Severability.

Each section and each part of each section of this chapter is declared to be an independent section or part of a section, and notwithstanding any other evidence of legislative intent, it is declared to be the controlling legislative intent that if any section or part of a section or any provision thereof, or the application thereof to any person or circumstances, is held to be invalid, the remaining sections or parts of sections and the application of such provision to any other person or circumstances, other than those as to which it is held invalid, shall not be affected thereby. It is further declared to be the legislative intent that the other provisions of this Code would have been adopted independently of such section or parts of a section which are held to be invalid.
(Ordained by Ord. No. 022-2016, § 1, eff. March 3, 2016)

Chapter 331

SALE OR LEASE OF CITY-OWNED REAL PROPERTY - APPROVAL AS TO FORM AND RECORDING OF CONVEYANCE DOCUMENTS*

Sec. 331-1.	General Provisions.
Sec. 331-3.	Sale or Lease by Competitive Bidding.
Sec. 331-4.	Public Auction.
Sec. 331-5.	Sale or Lease Without Competitive Bidding.
Sec. 331-6.	Review Committee.
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Sec. 331-9.	Sale, Lease, or Use of City-Owned Real Property Without Council Approval.
Sec. 331-11.	Repealed.
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Sec. 331-15.	Regulations and Delegation.
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Sec. 331-21.	Deed to City; Approval as to Form.
Sec. 331-23.	Recording Unendorsed Deed; Record; Penalty.

*__Editor's note—__Sections 107-1, 107-3, 107-5, 107-7, 107-9, 107-11, 107-13, 107-15, 107-17, 107-19, 107-21 and 107-23 renumbered and relocated to Chapter 331 by Ord. No. 426-1992, eff. Oct. 23, 1992.

Sec. 331-1. General Provisions.

Except as otherwise provided, real property, or any interest therein, belonging to the city may only be sold, leased or otherwise encumbered pursuant to an ordinance, passed by council, authorizing such sale, lease or encumbrance, after a finding by the city manager that it is no longer needed for municipal purposes or, in those cases in which real estate is offered only for lease for a term, that it will not be needed for municipal purposes during the term or, in those cases where a proposed sale is for an interest of less than fee simple, that the sale shall not be adverse to those interests in the real property retained by the city.

Sales or leases of real property under the jurisdiction and control of any board or commission of the city shall, prior to the submission of the aforementioned ordinance, be approved by the board or commission by appropriate resolution.

Any contract, deed, lease, right of entry or other conveyance instrument shall be executed on behalf of the city of Cincinnati by the city manager.

The ordinance authorizing the sale, lease or encumbrance of any real property by competitive bid or otherwise shall set forth the terms of the proposed sale, lease or encumbrance, including, where appropriate, any limiting conditions, interests to be retained by the city, initial and subsequent lease terms, reversionary rights, and forfeiture provisions. The ordinance shall, in addition to the above, set forth the estimate of such fair market or fair lease value, together with an explanation of the method by which the same was determined. In the event that it is proposed that consideration for the sale or lease be at less than such fair market or fair lease value, the ordinance shall also contain a justification demonstrating that the city will receive equivalent economic benefits equal to or exceeding the fair market or fair rental value or equivalent noneconomic benefits and/or a combination of such equivalencies.
(Ordained by Ord. No. 14-1988, eff. Feb. 20, 1988; a. Ord. No. 414-1988, eff. Nov. 18, 1988; renumbered by Ord. 426-1992, eff. Oct. 23, 1992)

Sec. 331-3. Sale or Lease by Competitive Bidding.

The sale, lease or encumbrance of real estate pursuant to this chapter shall, except as otherwise provided by this chapter, be by competitive bid.

Bidding shall be conducted by the city manager in conformance with the terms of the ordinance. Such terms, in addition to those set forth in Section 331-1, above, shall include, as appropriate, the method of taking bids, the minimum bid amount, references to available additional information, the method of advertising for bids and other pertinent information.

The city manager shall in all cases reserve the right to reject all bids in the event that he determines that no bids submitted are acceptable.

Real property which has been offered for sale by bid at least one time for which no bids acceptable to the city manager have been received may at the discretion of the city manager be offered for sale at a public auction pursuant to Section 331-4 below.
(Ordained by Ord. No. 14-1988, eff. Feb. 20, 1988; renumbered by Ord. 426-1992, eff. Oct. 23, 1992; a. Ord. No. 55-1994, eff. 3-18-94)

Sec. 331-4. Public Auction.

Public auctions of eligible real property may be held from time to time at the direction of the city manager. The minimum bid for the first time a parcel of real property is

offered for sale at auction shall be no less than 50% of its fair market value as determined by appraisal.

Real property which is not sold at auction may be offered for sale at a later auction without further action of council. The requirement of a minimum bid for real property which has received no acceptable bids at a prior auction may be waived by the city manager. If more than one bid acceptable to the city manager is received for a parcel of real property, the parcel shall be sold to the highest bidder. The city manager shall in all cases reserve the right to reject any and all bids in the event that he determines that no bids submitted are acceptable.

Real property eligible for sale under the provisions of this section is no longer needed for any municipal purpose.
(Ordained by Ord. No. 55-1994, eff. 3-18-94)

Sec. 331-5. Sale or Lease Without Competitive Bidding.

Council may authorize the sale, lease or encumbrance of city-owned real property without competitive bidding in those cases in which it determines that it is in the best interests of the city. In these cases, the fact that competitive bidding is being eliminated and the reasons why the public interest requires it shall be stated in the authorizing ordinance; and such sales, leases or encumbrances shall be upon such terms and conditions set forth in the said ordinance.
(Ordained by Ord. No. 14-1988, eff. Feb. 20, 1988; renumbered by Ord. 426-1992, eff. Oct. 23, 1992)

Sec. 331-6. Review Committee.

The city manager shall establish a committee to review surplus city-owned real property to determine the best method to dispose of said real property.

If, in the opinion of the committee, the administrative costs to sell a parcel of real property by an ordinance authorized bid sale are likely to exceed the price which would be received from such bid sale, and the city solicitor, with the concurrence of the city manager, has determined that the retention and maintenance of such property is a financial or other burden to the city, that parcel may be offered for sale to abutting owners at its fair market value as determined by appraisal. If there is more than one abutting owner, the property shall be offered for sale to all abutting owners. If more than one abutting owner submits a bid equal to or greater than the fair market value of the parcel, the parcel shall be sold to the highest bidder amongst the abutting owners. If none of the abutting owners submits a bid equal to or greater than the fair market value of the parcel, the parcel may be offered for sale at auction.

If the fair market value of a parcel of surplus real property as determined by appraisal is $500 or less, and the city solicitor, with the concurrence of the city manager, has determined that the retention and maintenance of such property is a financial or other burden to the city, that parcel may be sold at auction. If, in the opinion of the committee, a parcel of surplus real property which has a fair market value of $500 or less could be effectively used only by a party owning the abutting property, and the city solicitor with the concurrence of the city manager has determined that the retention and maintenance of such property is a financial or other burden to the city, that parcel may be sold to an abutting owner for a negotiated sale price which may be less than its fair market value as determined by appraisal. If there is more than one abutting owner, the property shall be offered for sale to all abutting owners, and, if more than one abutting owner submits a bid, sold to the highest bidder amongst the abutting owners.

The city manager shall in all cases reserve the right to reject any and all bids in the event that the city manager determines that no bids submitted are acceptable.

Real property eligible for sale under the provisions of this section is no longer needed for any municipal purpose.
(Ordained by Ord. No. 55-1994, eff. 3-18-94)

Sec. 331-7. Acquisition and Reconveyance of Real Property.

Council may, by ordinance, approve the acquisition of real property owned by the United States of America, the State of Ohio, any subdivision or agency of the United States or the State of Ohio, or any quasi-governmental agency and authorize its resale or lease, without competitive bid, to third parties where such resale or lease will promote the redevelopment, rehabilitation or more economically efficient use of the said real property. The said ordinance shall, in addition to the requirements hereinbefore set forth, recite all pertinent facts associated with the transaction and demonstrate that the transaction shall promote the redevelopment, rehabilitation or more economically efficient use of the said real property.
(Ordained by Ord. No. 14-1988, eff. Feb. 20, 1988; renumbered by Ord. 426-1992, eff. Oct. 23, 1992)

Sec. 331-9. Sale, Lease, or Use of City-Owned Real Property Without Council Approval.

(a) The city manager is authorized, without the approval of Council, to do the following:

(1) Grant a lease of, or right of entry upon, any city-owned real property for a term of one year or less;

(2) Grant an easement on, over, under, or across city-owned real property that has a fair market value as determined by appraisal of less than $25,000; and

(3) Sell nonproductive land acquired by the city under the Cincinnati Land Reutilization Program ("CLRP"), as established by ordinance No. 265-1996, provided that the sale meets all of the following:

(A) such sale complies with the city's CLRP procedures;

(B) such sale complies with Ohio Revised Code chapter 5722 (Land Reutilization Program); and

(C) the fair market value of the nonproductive land does not exceed $25,000.

(b) The city manager may take the action authorized by section 331-9(a) provided all of the following occur:

(1) The city manager finds that the interest conveyed will not be adverse to the city's retained interest in the subject city-owned property and will not unreasonably interfere with the city's use of the property for municipal purposes; and

(2) The city board or commission with jurisdiction and control of the subject city-owned real property, if any, approves the conveyance; and

(3) The grantee pays the appraised fair market value of the interest conveyed; and

(4) The proceeds from the transaction are first deposited into Property Management Fund 209 to pay the fees for services provided by the City's Real Estate Services Division and then the proceeds in excess thereof are deposited in Miscellaneous Permanent Improvement Fund 757

or, if the affected property is held in a restricted fund, the applicable restricted fund.

(c) Notwithstanding the provisions of Section 331-5, "Sale or Lease Without Competitive Bidding," the city manager is authorized to grant the interests described in subsection (a) without competitive bidding if the city manager determines that the conveyance is in the best interest of the city.

(d) The city manager or the city manager's designee is authorized to adopt written rules and regulations as are necessary and proper to carry out the provisions of this section.
(Ordained by Ord. No. 14-1988, eff. Feb. 20, 1988; renumbered by Ord. 426-1992, eff. Oct. 23, 1992; a. Emer. Ord. No. 077-2013, § 1, eff. April 10, 2013; a. Ord. No. 0011-2023, §§ 2, 4, eff. January 11, 2023)

Sec. 331-11. Repealed.
(Ordained by Ord. No. 14-1988, eff. Feb. 20, 1988; a. Ord. No. 80-1992, eff. March 27, 1992; renumbered by Ord. 426-1992, eff. Oct. 23, 1992; r. Ord. No. 363-2009, § 5, eff. Jan. 16, 2010)

Sec. 331-12. Special Events, Liquor Control.

The City Manager may execute, on behalf of the city, Ohio Department of Liquor Control forms enabling promoters of special events to provide alcoholic beverages on city owned real property.
(Ord. No. 96-1997, eff. May 9, 1997)

Sec. 331-13. Real Property Located Within an Urban Renewal Area.

Real property acquired for or located within an urban renewal project area may be disposed of in accordance with the provisions of Chapter 725 of the Cincinnati Municipal Code.
(Ordained by Ord. No. 14-1988, eff. Feb. 20, 1988; renumbered by Ord. 426-1992, eff. Oct. 23, 1992)

Sec. 331-15. Regulations and Delegation.

The city manager shall promulgate those rules and regulations needed to carry into effect this chapter. The city manager may delegate to subordinates the execution of any conveyance, lease, license, contract or other document authorized by this chapter except that the execution of deeds, easements or leases with a term to exceed one year shall only be delegated to an assistant city manager.
(Ordained by Ord. No. 14-1988, eff. Feb. 20, 1988; renumbered by Ord. 426-1992, eff. Oct. 23, 1992; a. Ord. No. 100-2003, eff. April 9, 2003)

Sec. 331-17. Deed From City; Approval as to Form.

All deeds, leases, affidavits, privilege licenses and other documents authorized by this section shall be approved as to form by the solicitor prior to their execution in behalf of the city.
(Ordained by Ord. No. 14-1988, eff. Feb. 20, 1988; renumbered by Ord. 426-1992, eff. Oct. 23, 1992)

Sec. 331-19. Deed to City; Acceptance To Be Noted.

Whenever any conveyance of real estate or an interest therein to the City of Cincinnati shall be accepted by council or by any municipal board authorized to accept such conveyance, such acceptance shall be noted on the document of conveyance over the

signature of the clerk of council or the corresponding officer of such municipal board. (Ordained by Ord. No. 14-1988, eff. Feb. 20, 1988; renumbered by Ord. 426-1992, eff. Oct. 23, 1992)

Sec. 331-21. Deed to City; Approval as to Form.

Every deed, lease or other document purporting to convey an interest in real estate to or from the City of Cincinnati shall be noted as approved as to form over the signature of the city solicitor or an assistant solicitor before being filed for transfer or record. Whenever a deed, lease or other document conveying real estate or an interest therein to the city shall not require acceptance by council or any municipal board, the solicitor or assistant solicitor shall note such fact on the document of conveyance in addition to approving the same as to form.
(Ordained by Ord. No. 14-1988, eff. Feb. 20, 1988; renumbered by Ord. 426-1992, eff. Oct. 23, 1992)

Sec. 331-23. Recording Unendorsed Deed; Record; Penalty.

No person shall present for transfer or record any deed, lease or other document conveying an interest in real estate to or from the City of Cincinnati, unless the same shall be endorsed in accordance with the provisions of Sections 331-1 and 331-3.

Whoever violates this section shall be fined not more than $50.
(Ordained by Ord. No. 14-1988, eff. Feb. 20, 1988; renumbered by Ord. 426-1992, eff. Oct. 23, 1992)

TITLE IV

PUBLIC UTILITIES*

Chapter 401

WATER WORKS

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*__Cross references—__General regulations, tit. VII; environmental code, tit. X; Cincinnati building code, tit. XI; zoning code of the City of Cincinnati, tit. XIV; sewers, ch. 719; stormwater management code, ch. 720; permits for adjustments to city fixtures on utility poles, § 724-1 et seq.

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DIVISION A. GENERAL

Sec. 401-1. General Regulation.

The Cincinnati water works shall be governed by Chapter 401 and any other applicable ordinances, together with explanatory rules and regulations promulgated by the superintendent with the approval of the city manager.
(C.O. 401-1; a. Ord. No. 374-1967, eff. Oct. 27, 1967; unordained as C.M.C. 401-1, eff. Jan. 1, 1972)

Sec. 401-2. Definitions.

For the purpose of this chapter the words and phrases defined in the sections hereunder shall have the meanings therein respectively ascribed to them, unless a different meaning is clearly indicated by the context.
(C.O. 401-2; a. Ord. No. 374-1967, eff. Oct. 27, 1967; unordained a C.M.C. 401-2, eff. Jan. 1, 1972)

Sec. 401-2-D. Director.

"Director" shall mean the superintendent of water works as created by Article IV, Section 9 of the charter of the city of Cincinnati. The director may also be designated as "superintendent" in this chapter.
(Ordained by Ord. No. 7-1982, eff. Feb. 5, 1982)

Sec. 401-2-D1. Department.

"Department" shall mean the Greater Cincinnati Water Works.
(Ordained by Ord. No. 185-2017, § 1, eff. July 28, 2017)

Sec. 401-2-L. Lead Service Line.

A "Lead Service Line" means a Service Line in which the wetted surfaces of the pipes are not Lead-Free.
(Ordained by Ord. No. 185-2017, § 1, eff. July 28, 2017)

Sec. 401-2-L1. Lead-Free.

"Lead-Free" shall have the same meaning as defined in Ohio Revised Code § 6109.10, which currently defines lead-free as being made of not more than a weighted average of twenty-five-hundredths percent lead.
(Ordained by Ord. No. 185-2017, § 1, eff. July 28, 2017)

Sec. 401-2-R. Rules and Regulations.

"Rules and Regulations" shall mean the rules and regulations promulgated by the Director with the approval of the City Manager for the purpose of implementing Chapter 401 of the Cincinnati Municipal Code, as well as the requirements in the Department's Standard Drawings.
(Ordained by Ord. No. 185-2017, § 1, eff. July 28, 2017)

Sec. 401-2-S. Superintendent.

"Superintendent" shall mean the superintendent of water works as created by Article IV, Section 9 of the charter of the city of Cincinnati. The superintendent may also be designated as "director" in this chapter.
(C.O. 401-2; a. Ord. No. 374-1967, eff. Oct. 27, 1967; renumbered to C.M.C. 401-2-S, eff. Jan. 1, 1972; a. Ord. No. 7-1982, eff. Feb. 5, 1982)

Sec. 401-2-S1. Service Branch.

"Service Branch" shall mean the pipe from the Service Connection to the water meter.
(Ordained by Ord. No. 185-2017, § 1, eff. July 28, 2017)

Sec. 401-2-S2. Service Connection.

"Service Connection" shall mean the location and connecting equipment where a Service Branch is physically connected to a water main.
(Ordained by Ord. No. 185-2017, § 1, eff. July 28, 2017)

Sec. 401-2-S3. Service Line.

"Service Line" shall have the same meaning as "Service Branch" as defined in this chapter, except when the water meter is outside of the building or structure being served by the Service Branch, in which case the service line shall be defined to also include the pipe from the water meter to the first shutoff valve within the building or structure.
(Ordained by Ord. No. 185-2017, § 1, eff. July 28, 2017)

Sec. 401-2-U. Utility; Water Works; Department.

"Utility," "water works," and "department," as used in this chapter, shall mean the Cincinnati water works, also known as the department of water works of the city of Cincinnati or greater Cincinnati water works.
(C.O. 401-2; a. Ord. No. 374-1967, eff. Oct. 27, 1967; renumbered to C.M.C. 401-2-U, eff. Jan. 1, 1972; a. Ord. No. 123-2002, eff. May 16, 2002)

Sec. 401-2-W. Water Service.

"Water service" shall mean the readiness to supply or actual supplying of water to premises in which a water service connection has been installed.
(C.O. 401-2; a. Ord. No. 374-1967, eff. Oct. 27, 1967; renumbered to C.M.C. 401-2-W, eff. Jan. 1, 1972)

Sec. 401-2-W1. Water Service Connection.

"Water service connection" shall mean the physical connection of a service branch with a water main.
(C.O. 401-2; a. Ord. No. 374-1967, eff. Oct. 27, 1967; renumbered to C.M.C. 401-2-W1, eff. Jan. 1, 1972)

Sec. 401-3. Committing Nuisance on Water Works Grounds.

No person shall swim in any of the reservoirs set apart for use of the water works or throw objects into or recover objects from any such reservoirs, or deposit filth, or trespass, or commit a nuisance of any kind in such reservoirs or upon grounds set apart for the use of the water works.
(C.O. 401-3; a. Ord. No. 148-1961, eff. June 2, 1961; a. Ord. No. 374-1967, eff. Oct. 27, 1967; reordained as C.M.C. 401-3, eff. Jan. 1, 1972)
Cross reference—Penalty, § 401-999-A.

Sec. 401-4. Hunting and Fishing on Water Works Grounds Prohibited.

No person shall hunt or shoot, or otherwise kill, any bird or animal on any of the grounds or reservoirs of the water works, or fish in any of the reservoirs, or mutilate, or in any way injure, any tree or shrub upon such grounds or upon any property set apart for the use of the water works, or in any way injure any property on such grounds or reservoirs. This shall not apply to extermination of harmful animals, trees or shrubs by utility forces or authorized contractors.
(C.O. 401-4; a. Ord. No. 374-1967, eff. Oct. 27, 1967; reordained as C.M.C. 401-4, eff. Jan. 1, 1972)
Cross reference—Penalty, § 401-999-A.

Sec. 401-6. Wasting Water.

No person shall leave open any hydrant or faucet connected with the city water works so as to allow water to flow from the same when such water is not being used.
(C.O. 401-6; a. Ord. No. 374-1967, eff. Oct. 27, 1967; reordained as C.M.C. 401-6, eff. Jan. 1, 1972)
Cross reference—Penalty, § 401-999-A.

Sec. 401-7. Fixed Pressure Not Guaranteed.

The department does not guarantee consumers full volume, fixed pressure or an effective, continuous supply of water, such matters being subject to the varying conditions which may affect the operation and maintenance of the mains, services, pumping stations, reservoirs and other parts of the water works system.
(C.O. 401-7; reordained as C.M.C. 401-7, eff. Jan. 1, 1972)

Sec. 401-8. Inspections.

Authorized employees of the department shall have the right, at any reasonable time, to enter the premises for the purpose of inspecting any water service branch or fire protection service and any or all piping or equipment connected thereto.
(Sec. 401-8; ordained by Ord. No. 374-1967, eff. Oct. 27, 1967; reordained as C.M.C. 401-8, eff. Jan. 1, 1972)

Sec. 401-10. Adherence to Ordinances, Rules and Regulations Requisite to Continued Service.

The superintendent shall be authorized to discontinue service for failure to comply with any portion of Chapter 401 of the Cincinnati Municipal Code or the rules and regulations authorized thereunder.
(Sec. 401-10; ordained by Ord. No. 314-1960, eff. Oct. 8, 1960; reordained as C.M.C. 401-10; eff. Jan. 1, 1972)

DIVISION B. WATER MAIN INSTALLATIONS

Sec. 401-11. New Water Main Extensions, General.

Except as specifically provided by ordinance, all construction of water main extensions and water tap service in streets and ways not already supplied with water shall be in accordance with one of the plans set forth in Sections 401-12 to 401-16, inclusive.
(C.O. 401-11; reordained as C.M.C. 401-11, eff. Jan. 1, 1972)

Sec. 401-12. Plan 1, Payment of Entire Cost in Advance.

Any one or more property owners may request the superintendent to determine the feasibility and the estimated cost of the construction of a proposed water main extension to serve their premises. If the superintendent approves the proposed extension and determines the estimated construction cost, such property owners may deposit with the depart-

ment a sum equal to such estimated cost and the superintendent shall thereupon proceed with the construction. Any surplus in the deposit amount over and above the construction cost shall be refunded to the owner or owners or their agent. Should the construction cost exceed the deposit amount, the owner or owners shall pay this excess amount and no water taps shall be installed or water service rendered from the extension until the cost is paid in full.
(C.O. 401-12; reordained as C.M.C. 401-12, eff. Jan. 1, 1972)

Sec. 401-13. Plan 2, Construction by Owner.

The superintendent may permit the owner or owners of property to be served to arrange for the laying of water main extensions by private contract. In such cases, the plan for the water main must be approved by the superintendent and the political subdivisions and planning commissions having jurisdiction. Before starting a project the contractor shall furnish a bond as a guarantee for each project or section thereof and obtain all required street opening permits.

All material used must have been inspected by a water works representative. All work shall be done in accordance with water works specifications. Charges for inspection of material and construction shall be established by the superintendent and paid by the contractor.
(C.O. 401-13; a. Ord. No. 374-1967, eff. Oct. 27, 1967; reordained C.M.C. 401-13, eff. Jan. 1, 1972)

Sec. 401-14. Plan 3, Construction by Owner With Water Works Participation.

When the development of a subdivision requires the owner to lay water mains in existing dedicated streets or highways, the water works will participate in the cost by supplying materials not to exceed those stipulated here below.

The superintendent will determine the abutting front footage, not owned by the developer, but likely to be developed in the future and which can be assessed.

When the new main is to be 8-inch, the water works will furnish:

(a) Half as many lineal feet of water main as the amount above determined;

(b) All of the valves to be installed in the existing street except those the developer would be required to install if there had been a main in the existing street in front of his property; and

(c) When the property to be served is a corner lot or the new main must pass a corner lot, or lots, to reach the property to be served, the water works will furnish enough lineal feet of pipe, in no case to exceed 150 feet, to reach from the existing or proposed main on one street past the second side of the corner lot, or lots, to the back property line thereof, and any valves required to make the connection at the intersection of the mains.

When the water works directs the owner to install a new 12- or 16-inch main under the provisions of Section 401-18 in any political subdivision, the water works will furnish, in cash, the amount required for participation by the Hamilton County contract. The water works will also furnish, as determined by the superintendent, either pipe and valves or cash of the same monetary value as would have been furnished had the main been 8-inch.

Plan 3 is subject to all the requirements of Plan 2 unless specifically excepted in this section.

When a main is installed by Plan 3, charges shall be assessed against owners other than

the participating developer at an amount per lineal abutting foot of their property fixed by the superintendent as the average cost per lineal foot of laying 8-inch water mains in the city of Cincinnati during the preceding calendar year.

When a water main has been constructed in accordance with Plan 3, water tap connections to such extension shall be permitted only to serve premises for which the front foot charge was collected at the time of filing the petition, provided that the owners of other property may be permitted to make connections upon payment of sums respectively equal to the price per lineal foot fixed by the superintendent plus 10 percent, times the front footage of the abutting premises owned by them.

Where service is granted from a water main by virtue of an easement as provided in Section 401-32, or by an ownership of a small frontage serving a larger tract, the Plan 3 or Plan 4 assessment shall be not less than 50 feet for parcels or lots comprising not more than one-half acre, not less than 75 feet for areas between one-half and one acre, not less than 100 feet for areas between one and two acres, and not less than 150 feet for areas between two and three acres. For areas in excess of three acres the superintendent shall be authorized to promulgate an assessment based upon benefits to be derived. If such bill is not paid within 90 days after the date of rendition, an additional charge of 10 percent thereof shall be added thereto. No connecting tap shall be permitted to be made in any such extension, whether located in or outside the city, until the owner of the property requesting the tap shall have paid the charges specified herein or obligated himself to do so.
(C.O. 401-14; a. Ord. No. 287-1957, eff. Aug. 2, 1957; a. Ord. No. 517-1964, eff. Jan. 15, 1965; a. Ord. No. 374-1967, eff. Oct. 27, 1967; reordained as C.M.C. 401-14, eff. Jan. 1, 1972; a. Ord. No. 409-1972, eff. Oct. 7, 1972; a. Ord. No. 17-1986, eff. Jan. 8, 1986)

Sec. 401-15. Plan 4, Construction Without Petition.

Whenever the director determines it is in the best interests of the water distribution system to construct a water main extension, either within the city or outside of the city, in instances where in the director's opinion an owner or developer cannot be required to construct the extension the director is authorized, with the approval of the city manager, to construct such extension without the filing of any petition therefor or the making of any advance payment or deposit. After the completion of any such extension, the director shall cause each premises abutting the street or road in which such extension is laid to be charged a deferred tap-in charge in an amount equal to that which it would have been charged under Plan 3, Section 401-14, except premises not likely to be subdivided and already served from a different water main. Owners of abutting premises for which a Section 401-32 water main agreement has been executed shall be required to pay their portion of the cost of construction. Owners of abutting premises may be permitted to make connections to Plan 4 water mains upon payment of the deferred tap-in charge, if any, in the manner provided under Plan 3, Section 401-14.
(C.O. 401-15; a. Ord. No. 287-1957, eff. Aug. 2, 1957; a. Ord. No. 221-1959, eff. July 24, 1959; a. Ord. No. 514-1964, eff. Jan. 15, 1965; a. Ord. No. 374-1967, eff. Oct. 27, 1967; reordained as C.M.C. 401-15, eff. Jan. 1, 1972; a. Ord. No. 255-1990, eff. June 20, 1990.)

Sec. 401-16. Plan 5, Assessment in Accordance with Revised Code.

The owners of property to be served by a proposed water main extension may petition for the construction of such extension and the

assessment of the cost thereof in accordance with the provisions of the Revised Code of Ohio.
(C.O. 401-16; reordained as C.M.C. 401-16, eff. Jan. 1, 1972)

Sec. 401-17. Property Owners Not to be Relieved from Payment.

No construction of water main extensions shall be proceeded with by the superintendent under Section 401-14 until the advance payments or deposits required by such section have been paid in full to the water department. If in any case, by reason of inadvertence or oversight, construction shall have been made without compliance with advance payment requirements, such inadvertence or oversight shall not relieve the benefited property owner from the obligation to pay the amount due. In such cases, no water tap connection shall be made or water service rendered unless and until the required payments or deposits are made.
(C.O. 401-17; reordained as C.M.C. 401-17, eff. Jan. 1, 1972)

Sec. 401-18. Size of Mains.

The size of the mains to be used in the construction of extensions as provided for in Sections 401-11 to 401-16, inclusive, shall in every case be determined by the superintendent.

When a developer or owner is installing a distribution main under any one of the above numbered plans, the superintendent may direct that the size be increased to 12-inch or 16-inch, if such would improve the system. The water works, in these cases, will pay a portion of the cost of installation as follows:

(a) Should a 12-inch water main be required, the water works' portion of the cost will be 40 percent of the reasonable and proper cost, as determined by the superintendent.

(b) Should a 16-inch water main be required, the water works' portion of the cost will be 51 percent of the reasonable and proper cost, as determined by the superintendent.

(C.O. 401-18; a. Ord. No. 17-1964, eff. Feb. 14, 1964; reordained as C.M.C. 401-18, eff. Jan. 1, 1972)

Sec. 401-19. Mains in Private Property or Easements.

No water main extension shall be constructed in private property or easements except:

(a) When the planning commission or such other appropriate authority having jurisdiction approves plans for the construction of garden apartments, condominiums, and/or planned unit developments with access to the houses by means other than a dedicated street, a water main may be laid and maintained in an easement provided it first meets the requirements of the director.

(b) Where the planning commission or such other appropriate public authority having jurisdiction has approved plans for a shopping center, a water main may be laid and maintained in an easement provided that it first meets the requirements of the director.

(c) Where the planning commission or such other appropriate public authority having jurisdiction has approved plans for a residential subdivision with small frontages serving panhandle lots, a water main may be laid and maintained in an easement provided it first meets the requirements of the director.

As used herein, the term "panhandle lot" shall mean a lot which utilizes a strip of ground, not a building site, to provide access to or legal frontage on a public street.

In addition to such other requirements as may be imposed or promulgated by the director from time to time by rule or regulation of the water works regarding water mains in panhandle lots, the minimum number of lots to be served, and the length and location of the water main shall be reviewed and determined by the director.

Installation under these exceptions must comply with all the regulations of Plan 2, Construction by Owner, Section 401-13.
(C.O. 401-19; a. Ord. No. 221-1959, eff. July 24, 1959; reordained as C.M.C. 401-19, eff. Jan. 1, 1972; a. Ord. No. 255-1983, eff. June 8, 1983)

Sec. 401-20. Mains in Unimproved Streets.

No water main extension shall be laid in any unimproved street, whose profile is such that in case of the improvement of the street, it would be necessary to relay the main to conform to the established grade.
(C.O. 401-20; reordained as C.M.C. 401-20, eff. Jan. 1, 1972)

Sec. 401-21. Use of Plan 3 Prohibited Where Territory Not Capable of Development.

No water main extension shall be constructed under the provisions of Plan 3 where, owing to the topography of territory abutting the street, or to other conditions, further property development along such street is precluded or is unlikely.
(C.O. 401-21; reordained as C.M.C. 401-21, eff. Jan. 1, 1972)

Sec. 401-22. Record of Outstanding Charges to be Filed with the County Auditor.

The superintendent shall maintain a record of all charges outstanding against premises abutting streets improved with water main extensions in accordance with Plan 3 or Plan 4. Such record shall be suitably indexed as to streets and parts of streets, and shall at all times be available for public inspection. With the consent of the county auditor of Hamilton county, a duplicate copy of such record shall be kept on file in the office of the county auditor for the convenience of title examiners and prospective purchasers of real estate. As charges are paid or as new charges are imposed, the necessary notations shall be made in the record by way of amendment or supplement. Such notations by way of amendment or supplement shall be copied into the county auditor's duplicate record at intervals of not more than 30 days. The record shall at all times be accompanied by a statement from the superintendent indicating the date to which the record has been carried.
(C.O. 401-22; reordained as C.M.C. 401-22, eff. Jan. 1, 1972)

Sec. 401-23. Cases of Inadvertence or Oversight.

In the case of water main extensions completed on or after January 1, 1928, in accordance with rules and regulations of the department heretofore in effect, paralleling the provision of Plan 3 as provided for by Section 401-14, where, by inadvertence or oversight, water tap connections have been made to a building without the previous collection of the amounts chargeable in accordance with said plan, the superintendent shall bill the owner of such premises for the amounts due and payable. If the amount of such charges shall not be paid at or before the next regular water payment date occurring not less than 30 days after the date of such billing, the water supply for such premises shall be shut off as in the case of unpaid water bills and shall not be turned on again until the amount of such bill shall be paid or provided for. In the case of amounts in excess of $25, the superintendent shall be authorized, on application of the property owner, to allow pay-

ment to be made in not more than four quarterly payments, no payment, however, except the final one, to be less than $10.
(C.O. 401-23; reordained as C.M.C. 401-23, eff. Jan. 1, 1972)

Sec. 401-24. Owner Requested Replacement of Existing Water Mains.

When one or more owners propose redevelopment of properties along existing water mains located in public rights-of-way or easements, such owner or owners may request that the director evaluate the sufficiency and capacity of the existing water mains to provide adequate water service to the proposed redevelopment as described in plans provided to the department. If the director determines that an existing water main of 6" or less in diameter cannot meet the requirements for the redevelopment based on review of current requirements, including, without limitation, Chapter 401, the rules and regulations, and applicable building code and fire protection standards, the director may authorize the main to be replaced in accordance with rules and regulations promulgated by the director to implement this section, which may specify allocation of the replacement cost and performance between the department and the owner.
(Ordained by Emer. Ord. No. 254-2020, § 1, eff. August 5, 2020)

DIVISION C. SERVICE BRANCHES

Sec. 401-31. Application for Water Service Connection.

Application for water service branches and water meter service may be made by any property owner or by his authorized agent, or by any certified person as defined in Section 401-41. Application for the service branch and the meter service must be made concurrently except as in (a), (b), and (c) below.

(a) When it is necessary to install a water service branch to vacant property in order to precede the paving of a highway, the owner, the owner's agent, the political subdivision paving the street, or its agent, may make application for a water service branch only.

(b) Where water service branches are to be installed to lots within a subdivision, prior to paving the proposed streets, or to lots within a proposed approved subdivision fronting on an existing street or roadway, applications may be made for service branches only, by the owner, the owner's agent or the contractor.

(c) Where a water service branch is to provide fire protection service only, the application for such service branch must be made by a certified person.

By making application for water service branches, or by using or permitting the use of such branches, the owner and any other person using the service branch agree to be bound by all the provisions of this chapter and all lawful rules and regulations of the department.
(C.O. 401-31; a. Ord. No. 180-1960, eff. June 17, 1960; reordained as C.M.C. 401-31, eff. Jan. 1, 1972; a. Ord. No. 12-178, eff. Feb. 10, 1978)

Sec. 401-32. Property Served Must Abut Roadway.

It is the obligation of the owner desiring service to install distribution mains across all of the owner's abutting frontage and, if necessary, to extend a distribution main to that frontage from an existing main.

No service branch shall be installed to serve any premises unless the premises abuts a street or road in which a distribution main has been installed. And no service branch shall be installed to serve any premises if distribution mains have not been installed across all frontage of the premises abutting streets or roads, unless the owner of such premises has paid the owner's portion of the cost, as determined by the director, of extending a distribution main across the entire abutting frontage of the premises. Provided, however, if the owner executes the agreement required and described below, and:

(a) If the premises to be served abuts no street or road, then the director may permit the premises to be served by a service branch laid in a permanent easement satisfactory to the director permitting installation and maintenance of the branch, running from the premises to a street or road in which a distribution main has been installed; or

(b) If the premises to be served abuts a street or road in which distribution mains have been installed across part of but not the entire frontage of the premises, and, in the opinion of the director, it is not then feasible, or not in the best interests of the water distribution system, to extend water mains across the remaining abutting frontage of such premises, then the director may permit the premises to be served by a service branch from the main in the abutting frontage; or

(c) If the premises to be served abuts a street or road in which distribution mains have not been installed across any frontage of the premises, and, in the opinion of the director, it is not then feasible, or not in the best interests of the water distribution system, to extend distribution mains across any part of the frontage of the premises, then the director may permit the premises to be served by a service branch laid in a permanent easement satisfactory to the director, permitting installation and maintenance of the branch, running from the premises to a street or road in which a distribution main has been installed.

In each instance provided in (a), (b) and (c) above, the owner of the premises shall execute an agreement on behalf of himself, his or her heirs, successors and assigns, in the form prescribed by the director, which shall be recorded at the expense of the owner in the recorder's office of Hamilton county, and which shall provide:

(1) That the owner shall within a reasonable time (no greater than 90 days) following written request of the director, construct a distribution main in all streets or roads upon which the premises abuts at the date of the agreement (or thereafter abuts, if there is no then existing abutting frontage), or pay his or her portion of the cost of such construction, as determined by the director, or, if sufficient in the view of the director, upon request of the proper governmental authority join in a petition for construction of such water main on an assessment basis; and that if such petition is requested but construction does not result therefrom in a reasonable period of time (no greater than 180 days), then the director may require the owner to construct or pay for the construction of the required distribution mains;

(2) That a failure of the owner of the premises to observe the terms of the agreement shall be grounds for the termination of water service; and

(3) That in any instance where the owner is permitted service by a service branch laid in a permanent easement, if at some future time a distribution main is installed across abutting frontage of the premises, the owner shall at the owner's expense relocate the water meter and service branch to that abutting frontage in a manner approved by the director, within 90 days of notice by the director.

As used in this section, "frontage" includes all frontage of a premises abutting any street or road, including a limited-access highway; an easement for ingress and egress or for utilities does not constitute "frontage" on a street or road.

(C.O. 401-32 a. Ord. No. 98-1958, eff. Apr. 25, 1958; a. Ord. No. 180-1960, eff. June 17, 1980; reordained C.M.C. 401-32, eff. Jan. 1, 1972; repealed and reenacted by Ord. No. 8-1982, eff. Feb. 5, 1982)

Sec. 401-33. Installation of Service Branch.

When a service branch is installed, the tap connection to the water main and so much of the branch as is within the highway to its property line shall be installed in accordance with (a) and (b) below:

(a) The department shall install a service branch, except under (b) hereof, and the service branch shall remain the property of the department.

(b) It shall be the obligation of every developer or subdivider whose development includes the extension of the Cincinnati Water Works System to provide a separate water branch for every lot or facility abutting proposed streets or rights-of-way within the development, which water service branch shall be installed from the water main to the right-of-way or property line and shall become the property of the department upon acceptance.

Any such developer or subdivider shall be responsible for the proper installation, altering or repairing of such service branches in accordance with the ordinances of the City of Cincinnati and the rules and regulations of the superintendent of water works, and shall furnish a bond indemnifying the City of Cincinnati for any loss it might sustain through the fault of the developer, the developer's agents or contractors, or for the failure of the developer, the developer's agents or contractors, to properly install, alter, repair, or connect such water service branches, or for failure to perform any other act in accordance with the ordinances of the City of Cincinnati and the rules and regulations of the superintendent of water works. The bond shall be in a form prescribed by the city solicitor and shall be signed by the developer and a corporate surety authorized to do business in the State of Ohio.

The bond shall be set in an amount to be determined by the Director of the Greater Cincinnati Water Works ("Director") or his or her designee. Such determination shall be based on costs for construction and materials related to water service branch installation, alteration or repair, and other factors that may be determined relevant by the Director. The determination of the amount of the bond will be left to the discretion of the Director and will be final.

No water service branch shall be used for water supply purposes without a water meter. Branches intended for fire protection purposes shall be subject to Division K of this chapter and any rules and regulations conformable thereto as may be promulgated by the superintendent.

(C.O. 401-33; a. Ord. No. 374-1967, eff. Oct. 27, 1967; reordained as C.M.C. 401-33, eff. Jan. 1, 1972; a. Ord. No. 14-1974, eff. Jan. 9, 1974; Ord. No. 352-2005, eff. Oct. 20, 2005)

Sec. 401-34. Building Permits Not to be Approved Unless City Water is Available.

No permit for the erection of a building intended for human occupancy shall be approved by the building commissioner until the water works has certified the availability of city water, or the commissioner of health has approved some other source.

(C.O. 401-34; a. Ord. No. 180-1960, eff. June 17, 1960; reordained as C.M.C. 401-34, eff. Jan. 1, 1972)

Sec. 401-35. Requirements of Service Branches and Meters.

The superintendent shall establish minimum requirements for service branches

and meters. Applications for water service must include full information as to the size, occupancy and commercial or manufacturing processes to be served, except in the case of branches to vacant property preceding highway improvements.
(C.O. 401-35; a. Ord. No. 180-1960, eff. June 17, 1960; reordained as C.M.C. 401-35, eff. Jan. 1, 1972)

Sec. 401-36. Water Branches Not to be Laid in Sewer Trenches.

No water service branch shall at any time be laid in the same trench with a sewer connection. In extreme cases, shelving will be permitted, in which cases, the shelf shall be 18 inches wide and the water service pipe so staked as to prevent its slipping into the sewer trench.
(C.O. 401-36; reordained as C.M.C. 401-36, eff. Jan. 1, 1972)

Sec. 401-37. Interconnected Service Branches.

When city water is supplied through two or more interconnecting service branches, each branch shall be separately metered and each branch shall be equipped with a check valve which is installed to prevent the water from flowing back into the city mains. If the interconnected services are for fire protection only, each branch shall be equipped with a separate detector check assembly. If a fire protection service is interconnected with a branch supplying domestic or commercial water, each service shall be fully metered and equipped with an approved check valve.

Where an area is also supplied with water obtained from a source other than that provided by the Cincinnati Water Works, the two supplies may not be interconnected unless the method of connection has been approved by the Cincinnati Water Works and the Ohio State Environmental Protection Agency.
(C.O. 401-37; a. Ord. No. 374-1967, eff. Oct. 27, 1967; reordained as C.M.C. 401-37, eff. Jan. 1, 1972)

Sec. 401-38. Replacement and Repair of Service Branches.

Where a service branch is installed, the department shall repair and maintain it or replace it with a branch of the same size, without charge, from the main to and including:

(a) The valve, where the valve is not beneath the street paving or the street curb.

(b) To a point behind the curb or beyond the edge of the street paving where the valve is in the paving.

(c) To a point on the private property side of a retaining wall where such retaining wall has been installed by a public entity as part of a highway improvement.

A property owner desiring a service branch of a size different from the existing branch shall make application and pay for it in the same manner as for any other new water service connection.
(C.O. 401-38; a. Ord. No. 374-1967, eff. Oct. 27, 1967; a. Ord. No. 177-1969, eff. June 6, 1969; reordained as C.M.C. 401-38, eff. Jan. 1, 1972)

Sec. 401-39. Maintenance of Service Branch by Property Owner.

That the portion of a water branch from points described in (a), (b), and (c) of Section 401-38 into the premises served, shall be maintained in proper condition by the owner. Failure to repair a leak or leaks in the time allotted on notice shall be sufficient cause to justify the department in discontinuing the

service. When service has been discontinued for failure to repair leaks, it will not be restored until the department has been notified and is satisfied, after inspection, that repairs have been properly completed. In the case of a Lead Service Line as defined in this chapter, the owner shall comply with the requirements of 401-130 and shall temporarily repair and then permanently replace leaking or damaged Lead Service Lines.
(C.O. 401-39; a. Ord. No. 374-1967, eff. Oct. 27, 1967; a. Ord. No. 177-1969, eff. June 6, 1969; reordained as C.M.C. 401-39, eff. Jan. 1, 1972; a. Ord. No. 185-2017, § 2, eff. July 28, 2017)

Sec. 401-40. Disconnection of Service Branch by Department.

The department is authorized to disconnect a service branch from the water main and remove the water meter:

(a) Upon application by the owner or authorized agent when use of the service branch is no longer required;

(b) When a water bill is delinquent and records indicate that the service branch has been unused for at least one year;

(c) When after shut-off of water service by the department for non-payment of a water bill or other authorized reason, the water service is recommenced by private action without authorization from the department, for the benefit of the property served;

(d) When a fire protection service branch has no piping or equipment connected thereto which could make its use possible, and has been unused for at least one year;

(e) When conditions render impractical any future use of an existing unused service branch;

(f) When a non-copper service branch installed before 1928 has never been used; or

(g) When the director determines that disconnection is otherwise necessary physically to protect the water system or prevent theft or unauthorized use of water.

Disconnections in the instances specified in paragraphs (b) through (g), above, shall only be made after giving the owner at least seven days advance written notice, and if the property is known to be occupied by other than the owner and owner's family, after posting notice conspicuously upon the property of the department's intent to disconnect, at least seven days in advance of disconnection.

Cost of disconnection shall be charged to the owner, in accordance with department rules and regulations, only in the instance specified in paragraph (c), above, or when disconnection is otherwise necessary to prevent theft or unauthorized use of water.

Water service may be re-established for a service branch disconnected or ordered to be disconnected only upon conformance with all regulations and specifications for new service, including modifications to the branch if necessary, and including payment of charges for a new branch. Provided, that for a service branch ordered to be disconnected but not yet physically disconnected, otherwise conforming to all regulations and specifications, the service branch may be re-established upon payment of one-half of the charge for a new branch.
(C.M.C. 401-40; ordained by Ord. No. 268-1991, eff. July 26, 1991)

DIVISION D. CONNECTIONS, PLUMBERS' REGULATIONS

Sec. 401-41. Only Certified Persons to Install Service Branch from Property Line to and Including Meter.

No person other than a person holding a current certificate of competency issued by the superintendent of water works as hereinafter provided or a person in the employ or working under the supervision of such a certified person shall install, alter, repair, or make any connection with any water service branch or water supply pipe, or operate any curb cock or install any water meter.

Any person desiring a certificate of competency shall apply therefor to the superintendent of water works on a form furnished by the superintendent, and shall be examined by the superintendent of water works, or a designated representative, to determine whether such person is competent to:

(a) Install the service branch from the property line to and including the water meter, or

(b) Install fire protective systems from the property line to and including all necessary appurtenances.

Persons may qualify in either, or both, of these categories.

Part of such examination for (a) above must include the holding of a master plumber's license for any political subdivision in which the applicant desires to do business, if such political subdivision requires a license for such work.

If upon examination the person is determined to be competent, a certificate of competency shall, upon furnishing the bond hereinafter required, be issued in the name of the superintendent, which certificate shall be good until revoked or voluntarily surrendered.

Before any certificate of competency is issued to any person pursuant to this section such person shall furnish to the superintendent of water works a bond in the penal sum of $1,000 indemnifying the city of Cincinnati for any loss it might sustain through the fault of the person to be certified, or such person, agent or employee in installing or repairing any water service branch or meter. The bond shall be in a form prescribed by the city solicitor and shall be signed by the applicant and a corporate surety authorized to do business in the state of Ohio.

Nothing contained in this section shall be construed to authorize any person to whom a certificate of competency is issued to perform any other plumbing work in any part of Hamilton county, including the city of Cincinnati, without first complying with the governmental regulations, if any, in effect in such part of the county.

A certificate of competency issued to any person pursuant to this section may be revoked if such person or any of such person's employees or agents violates any of the provisions of this chapter, any provision of the rules and regulations of the superintendent of water works, or fails to repair or restore, or pay for the repair or restoration of any damage done to or defective work done on the Cincinnati water works system by such person, or such person's agents or employees in the carrying out of any work for which a certificate of competency is required. Where a certificate of competency has been revoked, a new one shall not be re-issued for 90 days, and, if the cause for revocation included the failure of the certified person to correct or repair any damages

to or defective work on the system, a new certificate shall not be issued until such damages or defective work is repaired.
(C.O. 401-41; a. Ord. No. 180-1960, eff. June 17, 1960; reordained as C.M.C. 401-41, eff. Jan. 1, 1972)

Cross reference—Penalty, § 401-999.

Sec. 401-42. Unauthorized Water Connection Prohibited.

No person other than an employee or other authorized agent of the department shall open any street, lane, alley or other public place for water supply purposes, tap any pipe, or make attachments to any water pipe under the control of the Cincinnati water works.

No person shall obtain water from a fire hydrant except:

(a) Public employees doing so for purposes specifically provided in this code, and

(b) Persons having obtained a permit for temporary use as specified in Section 401-61 of this code.

(C.O. 401-42; a. Ord. No. 180-1960, eff. June 17, 1960; a. Ord. No. 374-1967, eff. Oct. 27, 1967; reordained as C.M.C. 401-42, eff. Jan. 1, 1972)

Cross reference—Penalty, § 401-999.

Sec. 401-43. Buildings to Have Separate Meters.

No person shall connect water into more than one building from one meter, except where such installation is determined to be for a single purpose in the best interests of the system, and where such exceptions are clearly defined in the rules promulgated by the superintendent.
(Sec. 401-43; ordained by Ord. No. 180-1960, eff. June 17, 1960; a. Ord. No. 374-1967, eff. Oct. 27, 1967; reordained as C.M.C. 401-43, eff. Jan. 1, 1972)

Analogous to C.O. 401-44; r. Ord. No. 180-1960, eff. June 17, 1960.

Cross reference—Penalty, § 401-999.

Sec. 401-44. Connecting Unused Pipes or Altering Existing Pipes.

No plumber or other person shall make any attachments to an old pipe or other fixture which has been shut off by the rules of the water works, or which is out of use, without having first obtained a permit to do so, nor shall any plumber or other person make any alteration in any way of the conduit pipes or other fixtures attached to the water works, so as to conduct water into adjoining premises, without a written permit to do so signed by the proper officer of the water works.
(Sec. 401-44; ordained by Ord. No. 180-1960, eff. June 17, 1960; reordained as C.M.C. 401-44, eff. Jan. 1, 1972)

Analogous to C.O. 401-45; r. Ord. No. 180-1960, eff. June 17, 1960.

Cross reference—Penalty, § 401-999.

DIVISION E. METERS

Sec. 401-51. Meters Required.

All water service branches shall be metered.
(C.O. 401-51; a. Ord. No. 374-1967, eff. Oct. 27, 1967; reordained as C.M.C. 401-51, eff. Jan. 1, 1972)

Sec. 401-52. Number of Meters.

The supply of water from the service connection may be measured by one or more meters. When more than one meter is used, they shall be set in an area not under the control of any tenant or owner and accessible to the water works at all times. The service charge for each meter shall be based on the size of each meter, as provided for in this chapter, except that in all cases, the meter or meters must satisfy the minimum requirements for service branches and meters, as provided for by Section 401-35, herein,

and each separate service shall be subject to the same rules and regulations as a service where one branch serves a single meter.
(C.O. 401-52; a. Ord. No. 353-1960, eff. Nov. 11, 1960; a. Ord. No. 515-1964, eff. Jan. 15, 1965; reordained as C.M.C. 401-52, eff. Jan. 1, 1972; a. Ord. No. 303-1996, eff. Oct. 25, 1996)

Sec. 401-53. Application for Meter.

When it is necessary to install a meter or meters on an existing service branch which has never been metered, the application must be made by a certified person. All meters shall remain the property of the department. After a meter has been installed and placed in service, it shall be fully maintained in proper condition by the department without charge, except that in the case of damage by freezing, hot water, or other neglect, a charge as determined by the superintendent shall be made.
(C.O. 401-53; a. Ord. No. 353-1960, eff. Nov. 11, 1960; reordained as C.M.C. 401-53, eff. Jan. 1, 1972)

Sec. 401-54. Setting of Meters.

Meters shall be installed on water service branches as soon as practical after installation of the branch, and in every case prior to the final inspection required by the building code having jurisdiction. Meters shall be properly set in accordance with the specifications of the superintendent in a convenient location readily accessible for reading and maintenance and shall be properly protected from damage.
(C.O. 401-54; a. Ord. No. 119-1967, eff. Apr. 12, 1967; reordained as C.M.C. 401-54, eff. Jan. 1, 1972)

Sec. 401-55. Distance from Highway.

Where meters are authorized to be set outside, the meters shall be set as close to the property line as practical in a frost-proof pit or box of approved type. The water works shall determine whether the location is appropriate.
(C.O. 401-55; a. Ord. No. 374-1967, eff. Oct. 27, 1967; reordained as C.M.C. 401-55, eff. Jan. 1, 1972; a. Ord. No. 20-1992, eff. Feb. 14, 1992)

Sec. 401-56. Unlawful Removal of Meter.

No person except an authorized water works employee shall remove a water meter without the permission of the superintendent. Where a meter is found to have been unlawfully removed, the water shall be shut off forthwith and proper charges made for estimated amount of water used. The water shall not be turned on again until the meter is reinstalled or a payment equal to the cost of the meter, testing, and installation is paid to the Cincinnati water works.
(C.O. 401-57; a. Ord. No. 374-1967, eff. Oct. 27, 1967; renumbered to C.M.C. 401-56, eff. Jan. 1, 1972)

Cross reference—Penalty, § 401-999.

Sec. 401-57. Department to Have Access to Meter.

Authorized employees of the department shall have the right, at any reasonable time, to enter any premises where a meter is installed, for the purpose of reading, examining or testing the same on the premises, or for the purpose of removing the same from the premises for examination, testing, repair or replacement.
(C.O. 401-58; renumbered to C.M.C. 401-57, eff. Jan. 1, 1972)

Sec. 401-58. Inspection of Meters.

The superintendent shall be authorized to fix reasonable charges for the removal, testing and reinstallation of water meters upon application of consumers.
(C.O. 401-59; renumbered to C.M.C. 401-58, eff. Jan. 1, 1972)

Sec. 401-59. Installation of Electronic Meter Reading Systems on Existing Services.

The superintendent shall, at the request of any consumer and upon payment by such a consumer of the prescribed charge, install an Electronic Meter Reading System (includes the water meter, Meter Interface Unit (MIU), transmitter, wiring, telephone connections, direct reading remote unit, and touchpad) which will permit the reading of the consumer's water meter without entering the building in which the meter is located. The location of the Electronic Meter Reading System shall be subject to the approval of the superintendent in order to insure safe and reasonable access for verification of readings or maintenance purpose.
(Sec. 401-60; ordained by Ord. No. 204-1967, eff. June 21, 1957; renumbered to C.M.C. 401-59, eff. Jan. 1, 1972; a. Ord. No. 20-1992, eff. Feb. 14, 1992; a. Ord. No. 303-1996, eff. Oct. 25, 1996)

Sec. 401-60. Charges.

The superintendent is hereby authorized to fix reasonable charges, subject to approval of the city manager, for pipe, cocks, meters, metering devices, fittings, remote meter registers and appurtenances to be furnished for water service installations and to establish standard specifications therefor.
(Sec. 401-60a; ordained by Ord. No. 204-1957, eff. June 21, 1957; renumbered to C.M.C. 401-60, eff. Jan. 1, 1972)

DIVISION F. WATER FOR TEMPORARY USES

Sec. 401-61. Water for Temporary Use.

Where water is required for temporary use on premises not supplied, or insufficiently supplied, with metered water, application shall be made to the water works for a special permit to use water from a fire hydrant or other available source. All arrangements for such use require the approval of an authorized officer of the water works. The director is authorized to require temporary meters for such use, and to establish charges for such temporary meters and charges for permits issued for temporary use. Such charges shall be published periodically.
(C.O. 401-61; reordained as C.M.C. 401-61, eff. Jan. 1, 1972; a. Ord. No. 63-1989, eff. Feb. 15, 1989)

Sec. 401-62. Use of Water Without a Permit.

It shall be prima facie unlawful to use, or be connected to use, water from a fire hydrant or other available source unless a properly authorized temporary use permit is securely attached to the connection in a conspicuous place near the point of connection. This shall not apply to service branches for new construction.

No person shall remove, obliterate, deface or obscure a temporary use permit, except the permittee at the completion of use; nor shall any person place a permit upon a connection for which said permit was not issued.

Each day's violation of any part of this section shall constitute a separate offense under Section 401-999.

The superintendent shall be authorized to remove and confiscate any unlawful hose, connection or permit found attached to a fire hydrant or other available source of water. When such is done, or when water is used without a permit, the superintendent shall

be authorized to double the charges provided by Section 401-63 and the violator shall be required to pay them.
(Section 401-61a; ordained by Ord. No. 148-1961, eff. June 2, 1961; a. Ord. No. 374-1967, eff. Oct. 27, 1967; renumbered to C.M.C. 401-62, eff. Jan. 1, 1972)
Cross reference—Penalty, § 401-999.

Sec. 401-63. Charge for Unmetered Water.

Unmetered water shall be paid for on the basis of meter rates, according to the estimated amount used or to be used. The superintendent of water works shall be authorized to provide by rule for the method of fixing charges in the case of particular types of unmetered uses.
(C.O. 401-62; renumbered to C.M.C. 401-63, eff. Jan. 1, 1972)

Sec. 401-65. Special Meters.

In the case of a large construction project, the superintendent shall be authorized to require the use of a special meter to register water consumed. The meter will in such cases be furnished by the department without charge; provided that the permittee shall be chargeable for the cost of repairs in case the meter shall be damaged, and for the cost of the meter itself if it is not returned promptly after discontinuance of its use.
(C.O. 401-63; renumbered to C.M.C. 401-65, eff. Jan. 1, 1972)

Sec. 401-67. Cisterns on Streets Having Water Mains.

No permit shall be issued to fill any cistern from a fire hydrant or a private water service branch when such cistern is located on premises which abut a street containing a water main available for service connections.
(C.O. 401-67; reordained as C.M.C. 401-67, eff. Jan. 1, 1972)

Sec. 401-69. Resale of Water Prohibited.

No person shall sell, or otherwise furnish to another, water obtained from the Cincinnati water works, except persons specifically permitted to do so by an authorized officer in accordance with the rules and regulations of the department.
(C.O. 401-68; a. Ord. No. 148-1961, eff. June 2, 1961; renumbered to C.M.C. 401-69, eff. Jan. 1, 1972)
Cross reference—Penalty, § 401-999.

DIVISION G. APPLICATIONS FOR WATER SERVICE

Sec. 401-71. Service Contract To Be Made by Owner.

Inasmuch as water service is a substantial and valuable benefit to land, a written water service contract for any water service, which for the purposes of this section includes fire protection service, shall be entered into by the owner of any real estate upon original establishment of an account or promptly upon obtaining title to the real estate or upon transfer of an existing account to a different account holder or customer. Failure to sign and return the contract to the Cincinnati water works within 30 calendar days thereafter may be cause for refusal or termination of water service to the premises.

If service has been terminated under the provisions of this section, a reconnection charge must be paid prior to restoration of water service. Service can then only be restored by an authorized employee of the Cincinnati water works after the written service contract has been duly filed at the department office. The Cincinnati water works shall not be responsible for any inaccuracy in the water service contract due to wrongful information given, or errors in receiving such information by telephone.

The account holder for each water supply service shall be the owner. For each water supply service, the owner shall state the name and address to which statements of account shall be mailed for payment. The party to whom the statements are mailed shall be known as the "customer."
(C.O. 401-71; a. Ord. No. 374-1967, eff. Oct. 27, 1967; reordained as C.M.C. 401-71, eff. Jan. 1, 1972; a. Ord. No. 452-1988, eff. Nov. 16, 1988)

Sec. 401-73. Customer to be Free of Indebtedness for Services Billed by the Department.

No application for water service shall be allowed and no water shall be supplied to any applicant, customer or consumer, where it is apparent that the applicant, customer or consumer is indebted for services, materials, damages, fines, penalties or other charges billed by the department, whether such services were performed and delivered by the Water Works or through any other city of Cincinnati department with jurisdiction and for whom the Water Works provides billing and collection services. This section shall apply whether the indebtedness for services, materials, damages, fines, penalties or other charges was incurred at the premises served or at any other premises billed by the Water Works within or without the city limits.
(C.O. 401-73; reordained as C.M.C. 401-73, eff. Jan. 1, 1972; a. Ord. No. 372-1996, eff. Nov. 20, 1996)

DIVISION H. WATER RATES*

Sec. 401-75. Water Rates.

The director of water works shall fix the charges for water used by consumers within the city of Cincinnati, for consumers in Hamilton county outside the Cincinnati city limits, and for consumers in Butler, Clermont, and Warren counties, at rates sufficient to pay the expenses of the water works in accordance with Article IV, Section 9, of the City Charter.

The director shall also fix the charges for water supplied to political subdivisions at master meters for redistribution by them through their own water mains, and for standby water service to political subdivisions.

The water rates shall not be in force until approved by ordinance of council.
(C.O. 401-81; a. Ord. No. 263-1966, eff. Jan. 1, 1968; renumbered to C.M.C. 401-75, eff. Jan. 1, 1982; a. Ord. No. 159-1983, eff. May 20, 1983; a. Ord. No. 417-2001, eff. Jan. 18, 2002)

*__Editor's note—__Section 5 of Ord. No. 475-2012 provided that the rates established by this ordinance shall apply to billed charges effective January 1, 2013. Charges will be prorated on the basis of the number of calendar days from the effective date. Monthly billed charges payable after 30 calendar days and quarterly billed charges payable after 91 calendar days following the effective date shall be calculated entirely at the amended rates.

Sec. 401-76. Service Charges.

Each water supply service shall be subject to a service charge. The service charge shall be based on the size of the water meter.

This section shall apply to each water meter used, but shall not apply to water supply services subject to Section 401-81 or Section 401-82.

For the availability of water service, the service charge applicable to accounts inside the City of Cincinnati for each year from 2022 through 2026 shall be as follows:

Meter Size (inches)	2021	2022	2023	2024	2025	2026
⅝	6.54	6.79	7.16	7.56	7.98	8.42
¾	7.82	8.11	8.56	9.04	9.54	10.07
1	9.64	10.00	10.56	11.14	11.76	12.41
1½	24.33	25.24	26.64	28.12	29.68	31.33
2	31.03	32.19	33.98	35.87	37.86	39.96
3	68.03	70.58	74.50	78.63	83.00	87.60
4	130.32	135.21	142.71	150.63	158.99	167.82
6	261.24	271.04	286.08	301.96	318.71	336.40
8	381.46	395.76	417.73	440.91	465.38	491.21
10	533.73	553.74	584.48	616.92	651.16	687.29
12	638.22	662.15	698.90	737.69	778.63	821.85

The service charges in the above table shall be effective from January 1 through December 31 of each of the above listed years.

The service charges for accounts outside of the City of Cincinnati shall be established pursuant to Section 401-75.

(Sec. 401-81a; ordained by Ord. No. 263-1966, eff. Jan. 1, 1968; a. Ord. No. 111-1969, eff. Mar. 19, 1969; a. Ord. No. 165-1969, eff. May 31, 1969; renumbered to C.M.C. 401-76, eff. Jan. 1, 1972; a. Ord. No. 397-1974, eff. Oct. 18, 1974; a. Ord. No. 206-1978, eff. July 1, 1978; a. Ord. No. 215-1984, eff. June 30, 1984; a. Ord. No. 46-1985, eff. Mar. 8, 1985; a. Ord. No. 277-1987, eff. July 1, 1987; a. Ord. No. 508-1987, eff. Jan. 1, 1988; a. Ord. No. 439-1988, eff. Dec. 9, 1988; a. Ord. No. 435-1989, eff. Jan. 1, 1990; a. Ord. No. 485-1990, eff. Jan. 1, 1991; a. Ord. No. 495-1991, eff. Jan. 1, 1992; a. Ord. No. 518-1992, eff. Jan. 1, 1993; a. Ord. No. 418-1993, eff. 12-24-93; repealed and reordained by Ord. No. 406-1995, eff. Dec. 20, 1995; a. Ord. No. 422-1997, eff. Dec. 17, 1997; a. Ord. No. 428-2000, eff. Dec. 13, 2000; a. Ord. No. 417-2001, eff. Jan. 18, 2002; a. Ord. No. 387-2002, eff. Jan. 17, 2003; a. Ord. No. 440-2003, eff. Dec. 17, 2003; a. Ord. No. 406-2004, eff. Jan. 14, 2005; a. Ord. No. 390-2006, eff. Jan. 20, 2007; Emer. Ord. No. 0069-2008, § 1, eff. Feb. 27, 2008; a. Ord. No. 446-2008, § 1, eff. Jan. 17, 2009; a. Ord. No. 057-2010, § 1, eff. April 3, 2010; Emer. Ord. No. 384-2011, § 1, eff. Dec. 14, 2011; Emer. Ord. No. 475-2012, § 1, eff. Jan. 1, 2013; Ord. No. 146-2013, § 1, eff. Jan. 1, 2014; Emer. Ord. No. 154-2014, § 1, eff. June 11, 2014; Emer. Ord. No. 176-2015, § 1, eff. June 17, 2015; Emer. Ord. No. 321-2016, § 1, eff. Oct. 12, 2016; a. Ord. No. 154-2017, § 1, eff. July 21, 2017; a. Emer. Ord. No. 219-2018, § 1, eff. June 27, 2018; a. Ord. No. 248-2021, § 1, eff. June 23, 2021)

Sec. 401-77. Water Commodity Charges.

For water used, the water commodity charge rates per 100 cubic feet (CCF) used shall be as follows:

	2021	2022	2023	2024	2025	2026
First 20 CCF/month	3.00	3.11	3.29	3.47	3.66	3.86
Next 580 CCF/month	2.52	2.61	2.76	2.91	3.07	3.25
Over 600 CCF/month	2.25	2.33	2.46	2.60	2.75	2.90

The water commodity charges in the above table shall be effective from January 1 through December 31 of each of the above listed years.

The water commodity charges for accounts outside of the City of Cincinnati shall be established pursuant to Section 401-75.

Effective January 1, 2012, for water used through a temporary meter as set forth in Section 401-61 of the Municipal Code, the water commodity charge rate per 100 cubic feet (CCF) used shall be 150% of the water commodity charge listed in the table above for the first 20 CCF per month.

(Sec. 401-81b; ordained by Ord. No. 263-1966, eff. Jan. 1, 1968; a. Ord. No. 111-1969, eff. Mar. 19, 1969; renumbered to C.M.C. 401-77, eff. Jan. 1, 1972; a. Ord. No. 284-1974, eff. July 19, 1974; a. Ord. No. 397-1974, eff. Oct. 18, 1974; a. Ord. No. 206-1978, eff. July 1, 1978; a. Ord. No. 215-1984, eff. June 30, 1984; a. Ord. No. 46-1985, eff. Mar. 8, 1985; a. Ord. No. 277-1987, eff. July 1, 1987; a. Ord. No. 508-1987, eff. Jan. 1, 1988; a. Ord. No. 439-1988, eff. Dec. 9, 1988; a. Ord. No. 435-1989, eff. Jan. 1, 1990; a. Ord. No. ; a. Ord. No. 495-1991, eff. Jan 1, 1992; a. Ord. No. 518-1992, eff. Jan. 1, 1993; a. Ord. No. 418-1993, eff. 12-24-93; repealed and reordained by Ord. No. 406-1995, eff. Dec. 20, 1995; a. Ord. No. 422-1997, eff. Dec. 17, 1997; a. Ord. No. 428-2000, eff. Dec. 13, 2000; a. Ord. No. 417-2001, eff. Jan. 18, 2002; a. Ord. No. 387-2002, eff. Jan. 17, 2003; a. Ord. No. 440-2003, eff. Dec. 17, 2003; a. Ord. No. 406-2004, eff. Jan. 14, 2005; a. Ord. No. 390-2006, eff. Jan. 20, 2007; Emer. Ord. No. 0069-2008, § 2, eff. Feb. 27, 2008; a. Ord. No. 446-2008, § 2, eff. Jan. 17, 2009; a. Ord. No. 057-2010, § 2, eff. April 3, 2010; Emer. Ord. No. 384-2011, § 2, eff. Dec. 14, 2011; Emer. Ord. No. 475-2012, § 2, eff. Jan. 1, 2013; Ord. No. 146-2013, § 2, eff. Jan. 1, 2014; Emer. Ord. No. 154-2014, § 2, eff. June 11, 2014; Emer. Ord. No. 176-2015, § 2, eff. June 17, 2015; Emer. Ord. No. 321-2016, § 2, eff. Oct. 12, 2016; a. Ord. No. 154-2017, § 2, eff. July 21, 2017; a. Emer. Ord. No. 219-2018, § 2, eff. June 27, 2018; a. Ord. No. 248-2021, § 2, eff. June 23, 2021)

Sec. 401-78. Charges for Fire Protection Services.

Each fire protection service serving private premises shall be subject to a service charge based on the size of the service branch at the water main. This section shall not apply to fire protection services subject to Sections 401-82 and 401-83.

The fire protection service charge rates per month and per quarter shall be as follows:

Branch Size (inches)	2021	2022	2023	2024	2025	2026
2" & Under	18.58	19.28	20.35	21.48	22.67	23.93
3"	23.84	24.73	26.11	27.56	29.09	30.70
4"	28.20	29.26	30.88	32.60	34.40	36.31
6"	65.08	67.52	71.27	75.22	79.40	83.80
8"	91.90	95.35	100.64	106.22	112.12	118.34
10"	110.89	115.05	121.43	128.17	135.29	142.80

The fire protection service charges in the above table shall be effective from January 1 through December 31 of each of the above listed years.

The fire protection service charges for accounts outside of the City of Cincinnati shall be established pursuant to Section 401-75.

(Sec. 401-81c; ordained by Ord. No. 263-1966, eff. Jan. 1, 1968; a. Ord. No. 111-1969, eff. Mar. 19, 1969; renumbered to C.M.C. 401-78, eff. Jan. 1, 1972; a. Ord. No. 397-1974, eff. Oct. 18, 1974; a. Ord. No. 541-1980, eff. Jan. 24, 1981; a. Ord. No. 15-1983, eff. Jan. 18, 1983; a. Ord. No. 277-1987, eff. July 1, 1987; a. Ord. No. 508-1987, eff. Jan. 1, 1988; a. Ord. No. 439-1988, eff. Dec. 9, 1988; a. Ord. No. 435-1989, eff. Jan. 1, 1990; a. Ord. No. ; a. Ord. No. 495-1991, eff. Jan. 1, 1992; a. Ord. No. 518-1992, eff. Jan. 1, 1993; a. Ord. No. 418-1993, eff. 12-24-93; a. Ord. No. 422-1997, eff. Dec. 17, 1997; a. Ord. No. 417-2001, eff. Jan. 18, 2002; a. Ord. No. 387-2002, eff. Jan. 17, 2003; a. Ord. No. 440-2003, eff. Dec. 17, 2003; a. Ord. No. 406-2004, eff. Jan. 14, 2005; a. Ord. No. 390-2006, eff. Jan. 20, 2007; Emer. Ord. No. 0069-2008, § 3, eff. Feb. 27, 2008; a. Ord. No. 446-2008, § 3, eff. Jan. 17, 2009; a. Ord. No. 057-2010, § 3, eff. April 3, 2010; Emer. Ord. No. 384-2011, § 3, eff. Dec. 14, 2011; Emer. Ord. No. 475-2012, § 3, eff. Jan. 1, 2013; Ord. No. 146-2013, § 3, eff. Jan. 1, 2014; Emer. Ord. No. 154-2014, § 3, eff. June 11, 2014; Emer. Ord. No. 176-2015, § 3, eff. June 17, 2015; Emer. Ord. No. 321-2016, § 3, eff. Oct. 12, 2016; a. Ord. No. 154-2017, § 3, eff. July 21, 2017; a. Emer. Ord. No. 219-2018, § 3, eff. June 27, 2018; a. Ord. No. 248-2021, § 3, eff. June 23, 2021)

Sec. 401-79. Welfare Institutions.

Welfare institutions defined in Section 401-85 and subsections thereto which have both applied for welfare rates and received water service on or before July 2, 1983, shall pay a service charge and shall pay for water supplied at the commodity rate prescribed herein as set forth in Section 401-76. All such institutions taking service thereafter shall not be entitled to special rates under this section.

The commodity rate per 100 cubic feet of water supplied shall be established as follows:

For the period January 1, 2002 through June 30, 2002 the rate will be fixed at $0.76 per Ccf used. After June 30, 2002, the rate will be set at 80% of the 3rd block inside City rate set to the closest 1 cent.

The water rates for Welfare Institutions shall not be in force until approved by ordinance of council.

(Sec. 401-81d; ordained by Ord. No. 263-1966, eff. Jan. 1, 1968; renumbered to C.M.C. 401-79, eff. Jan. 1, 1972; a. Ord. No. 206-1978, eff. July 1, 1978; a. Ord. No. 236-1983, eff. July 1, 1983; a. Ord. No. 46-1985, eff. Mar. 8, 1985; a. Ord. No. 277-1987, eff. July 1, 1987; repealed and reordained by Ord. No. 303-1996, eff. Oct. 25, 1996; a. Ord. No. 417-2001, eff. Jan. 18, 2002)

Analogous to C.O. 401-82b; a. Ord. No. 265-1966, eff. Jan. 1, 1967; r. Ord. No. 263-1966, eff. Jan. 1, 1968; and C.O. 401-84b; a. Ord. No. 264-1966, eff. Jan. 1, 1967; r. Ord. No. 263-1966, eff. Jan. 1, 1968.

Sec. 401-80. Repealed.

(Sec. 401-81e; ordained by Ord. No. 263-1966, eff. Jan. 1, 1968; renumbered to C.M.C. 401-80, eff. Jan. 1, 1972; a. Ord. No. 206-1978, eff. July 1, 1978; Ord. No. 159-1983, eff. May 20, 1983)

Analogous to Sec. 401-84e; ordained by Ord. No. 475-1961, eff. Jan. 27, 1962; r. Ord. No. 263-1966, eff. Jan. 1, 1968.

Sec. 401-81. Charges to Political Subdivisions.

The water commodity charge rates per hundred cubic feet for water used by politi-

cal subdivisions, other than those whose contracts with the City of Cincinnati specify rates, shall be as follows:

	2021	2022	2023	2024	2025	2026
Winter	3.15	3.27	3.45	3.64	3.84	4.06
Summer	3.75	3.89	4.11	4.33	4.58	4.83

The charges to political subdivisions in the above table shall be effective from January 1 through December 31 of each of the above listed years. The Winter rate shall apply during the months of January—April and November—December of the listed year. The Summer rate shall apply during the months of May—October of the listed year.

There shall be no service charges for water used under this section.

(Sec. 401-81f; ordained by Ord. No. 263-1966, eff. Jan. 1, 1968; a. Ord. No. 111-1969, eff. Mar. 19, 1969; renumbered to C.M.C. 401-81, eff. Jan. 1, 1972; a. Ord. No. 397-1974, eff. Oct. 18, 1974; a. Ord. No. 206-1978, eff. July 1, 1978; a. Ord. No. 541-1980, eff. Jan. 24, 1981; a. Ord. No. 15-1983, eff. Jan. 18, 1983; a. Ord. No. 46-1985, eff. Mar. 8, 1985; a. Ord. No. 277-1987, eff. July 1, 1987; a. Ord. No. 508-1987, eff. Jan. 1, 1988; a. Ord. No. 439-1988, eff. Dec. 9, 1988; a. Ord. No. 435-1989, eff. Jan. 1, 1990; a. Ord. No. 495-1991, eff. Jan. 1, 1992; a. Ord. No. 518-1992, eff. Jan. 1, 1993; a. Ord. No. 418-1993, eff. 12-24-93; repealed and reordained by Ord. No. 406-1995, eff. Dec. 20, 1995; a. Ord. No. 422-1997, eff. Dec. 17, 1997; a. Ord. No. 417-2001, eff. Jan. 18, 2002; a. Ord. No. 387-2002, eff. Jan. 17, 2003; a. Ord. No. 440-2003, eff. Dec. 17, 2003; a. Ord. No. 406-2004, eff. Jan. 14, 2005; a. Ord. No. 390-2006, eff. Jan. 20, 2007; a. Ord. No. 446-2008, § 4, eff. Jan. 17, 2009; a. Ord. No. 057-2010, § 4, eff. April 3, 2010; Emer. Ord. No. 384-2011, § 4, eff. Dec. 14, 2011; Emer. Ord. No. 475-2012, § 4, eff. Jan. 1, 2013; Ord. No. 146-2013, § 4, eff. Jan. 1, 2014; Emer. Ord. No. 154-2014, § 4, eff. June 11, 2014; Emer. Ord. No. 176-2015, § 4, eff. June 17, 2015; Emer. Ord. No. 321-2016, § 4, eff. Oct. 12, 2016; a. Ord. No. 154-2017, § 4, eff. July 21, 2017; a. Ord. No. 248-2021, § 4, eff. June 23, 2021; a. Ord. No. 484-2021, § 1, eff. Dec. 8, 2021)

Sec. 401-82. Exemptions from Charges.

If no water is consumed in a billing period then no water supply services shall be billed for the following:

(a) Unused service branches installed for vacant unimproved property in connection with highway improvements, which have not been extended beyond the curb stop.

(b) New service branches installed for new construction, prior to the installation and inspection of the water meter, or prior to being used for the purpose intended, or prior to the occupancy of the premises served, whichever occurs first. Billing shall be at the rates specified in Sections 401-76 and 401-77 upon the first regular billing after one of the above conditions is met.

(C.O. 401-82; a. Ord. No. 263-1966, eff. Jan. 1, 1968; reordained as C.M.C. 401-82, eff. Jan. 1, 1972; a. Ord. No. 399-1976, eff. Oct. 1, 1976; repealed and reordained by Ord. No. 406-1995, eff. Dec. 20, 1995; repealed and reordained by Ord. No. 372-1996, eff. Nov. 20, 1996)

Sec. 401-83. Exemptions From Charges for Fire Protection Services.

Fire protection services supplying educational institutions as defined in Section 401-85-E and charitable institutions as defined as in Section 401-85-C shall not be billed, and no charge shall be made to these institutions for fire protection services, provided that these institutions have applied

for, and received, the approval of the city manager or director of water works for the welfare institution water rate as provided for by Section 401-85 prior to July 2, 1983.
(Sec. 401-82a; ordained by Ord. No. 263-1966, eff. Jan. 1, 1968; renumbered to C.M.C. 401-83, eff. Jan. 1, 1972; a. Ord. No. 159-1983, eff. May 20, 1983; a. Ord. No. 236-1983, eff. July 1, 1983)

Sec. 401-84. Customer Assistance Program.

(a) A property owner who meets all of the following qualifications may apply for the Customer Assistance Program which provides a discount described in 401-84(b) for their primary residence only:

1. Aged 65 years and older or disabled veteran receiving compensation for service-connected injuries;

2. Own and occupy the residence for which they are applying for the discounted rate. Property owned by a corporation, limited liability company, partnership or other legal entity does not qualify; and

3. Has a total income, including the income of their spouse, not exceeding the threshold for the Ohio Homestead Exemption set in R.C. 353.152A)(1)(b)(iii) as annually adjusted by the Ohio tax commissioner.

(b) The Customer Assistance Program discount shall be 25 percent off the qualified owner's service and commodity charges as set forth in Sections 401-76 and 401-77 of this chapter.

(c) The Director shall promulgate rules and processes for application and documentation required for the Customer Assistance Program.

(d) A denial of an application for the Customer Assistance Program is subject to appeal to the city's office of administrative hearings by filing a written notice of appeal within thirty days of the date of the notice of the denial.
(Ordained by Ord. No. 173-2025, § 1, eff. June 11, 2025)

Sec. 401-85. Welfare Institutions Defined.

For water rate purposes, the term "welfare institutions" shall include only the classes defined in the sections hereunder and every such class shall be subject to the restrictions set forth in the definition. The term shall under no circumstances include an institution operated for profit or an institution organized directly for the benefit of its supporting members. Applications for classification as welfare institutions shall be filed with the city manager or superintendent of water works. Upon approval of the application, a copy shall be kept on file with the superintendent with a notation of such approval and the authorization of the use of welfare institution rates. The city manager or the superintendent of water works shall from time to time reexamine the right of any such institution to continue to be classified as a welfare institution.

Where a welfare institution operates a commercial business in connection with its work, it shall not be entitled to welfare rates unless the water supplied to such business is separately metered and paid for at regular rates.
(C.O. 401-85; a. Ord. No. 263-1966, eff. Jan. 1, 1968; reordained as C.M.C. 401-85, eff. Jan. 1, 1972; a. Ord. No. 413-1976, eff. Sept. 9, 1976)

Sec. 401-85-C. Charitable Institution.

"Charitable institution" shall mean an institution, essentially eleemosynary, caring

for orphaned, defective, or delinquent children, or for the ill, aged, or infirm, not substantially supported by revenues derived from its inmates.
(C.O. 401-85d; renumbered to C.M.C. 401-85-C, eff. Jan. 1, 1972)

Sec. 401-85-E. Educational.

"Educational" shall mean a public school district, parochial school, institution of university or senior college rank, school of art or music, or any other educational institution where the same is operated primarily for education.
(C.O. 401-85b; renumbered to C.M.C. 401-86-E, eff. Jan. 1, 1972)

Sec. 401-85-G. Repealed.

(C.O. 401-85a; a. Ord. No. 475-1961, eff. Jan. 27, 1962; a. Ord. No. 263-1966, eff. Jan. 1, 1968; renumbered to C.M.C. 401-86-G, eff. Jan. 1, 1972; r. Ord. No. 159-1983, eff. May 20, 1983)

Sec. 401-85-H. Repealed.

(C.O. 401-85c; renumbered to C.M.C. 401-85-H, eff. Jan. 1, 1972; r. Ord. No. 159-1983, eff. May 20, 1983)

Sec. 401-85-S. Semi-Charitable Institution.

"Semi-charitable institution" shall mean an institution definitely recognized as rendering important welfare service in the community, supported partly by endowments and contributions and partly by fees collected from those served by it.
(C.O. 401-85e; renumbered to C.M.C. 401-85-S, eff. Jan. 1, 1972)

Sec. 401-86. Boundary Line Consumers.

Where real estate premises supplied with city water are located partly within and partly without City of Cincinnati corporation limits, the applicable water rates shall be determined as follows:

(a) Commercial, industrial and institutional users shall pay the rate applicable to the place where the water is used. Where the consumption or use is partly within and partly without the city, the city service and the outside service shall be separately metered and separately paid for.

(b) Residential users shall pay the rate applicable to the political subdivision in which the residence is taxed on Hamilton County real property tax duplicate.

(C.O. 401-86; a. Ord. No. 385-1966, eff. Oct. 9, 1966; reordained as C.M.C. 401-86, eff. Jan. 1, 1972)

Sec. 401-87. Unified Service Areas.

Where real estate premises constituting a unified service area are supplied with water through two or more meters, upon application of the owner or his authorized agent, the director shall provide for the consolidation of the consumption readings at the several meters.
(C.O. 401-87; reordained as C.M.C. 401-87, eff. Jan. 1, 1972; a. Ord. No. 15-1983, eff. Jan. 18, 1983; a. Ord. No. 46-1985, eff. Mar. 8, 1985; a. Ord. No. 277-1987, eff. July 1, 1987; repealed and reordained by Ord. No. 406-1995, eff. Dec. 20, 1995)

Sec. 401-88. Municipal Purposes.

No charge of any kind shall be made for water service furnished for municipal purposes to the city of Cincinnati or to any of its municipal institutions including the Cincinnati Zoo, Music Hall, the Cincinnati Art Museum, the Cincinnati Museum Center, Playhouse in the Park and other non-profit arts and cultural institutions located within city-owned facilities. This provision shall

not apply to city of Cincinnati golf courses which shall be charged at regular city rates, nor to concessionaires or other private persons using city property for commercial uses or other non-municipal purposes.

Such water service as is provided herein is subject to periodic inspection and monitoring by the Cincinnati Water Works Department to assure that there shall be a reasonable usage of water; and in the event the Cincinnati Water Works believes there is an unreasonable usage of water, the director of water works shall notify the city manager, who may impose a charge for excessive use.

(C.O. 401-88; reordained as C.M.C. 401-88, eff. Jan. 1, 1972; a. Ord. No. 59-1980, eff. Feb. 2, 1980; a. Ord. No. 159-1983, eff. May 20, 1983; a. Ord. No. 0184-2009, § 1, eff. July 17, 2009)

Sec. 401-89. Fire Hydrant Repair and Replacement Charges.

Each water supply service within the City of Cincinnati shall be subject to a fire hydrant repair and replacement charge, which shall be based on the size of the water meter.

The monthly fire hydrant repair and replacement charges shall be as follows:

Meter Size (inches)	2021	2022	2023	2024	2025	2026
⅝	0.65	0.67	0.71	0.75	0.79	0.84
¾	0.98	1.02	1.07	1.13	1.20	1.26
1	1.43	1.48	1.57	1.65	1.74	1.84
1½	2.74	2.84	3.00	3.17	3.34	3.53
2	4.04	4.19	4.42	4.67	4.93	5.20
3	9.79	10.16	10.72	11.32	11.94	12.61
4	16.31	16.92	17.86	18.85	19.90	21.00
6	32.63	33.85	35.73	37.72	39.81	42.02
8	48.93	50.76	53.58	56.56	59.70	63.01
10	65.24	67.69	71.44	75.41	79.59	84.01
12	75.03	77.84	82.16	86.72	91.54	96.62

The fire hydrant repair and replacement charges in the above table shall be effective from January 1 through December 31 of each of the above listed years.

(Ordained by Ord. No. 406-1995, eff. Dec. 20, 1995; a. Ord. No. 422-1997, eff. Dec. 17, 1997; a. Ord. No. 428-2000, eff. Dec. 13, 2000; a. Ord. No. 248-2021, § 5, eff. June 23, 2021)

DIVISION I. PAYMENT OF BILLS

Sec. 401-90. Contract Services Authorized to be Provided by Water Works.

(a) The director may enter into agreements with other political subdivisions or public agencies to provide customer service, billing and payment collection activities for the provision of public services. Such services may include, but not be limited to, sanitary sewerage service, stormwater drainage and collection service, solid waste collection and yard waste collection. Charges for such services may be issued on a unified utility statement.

(b) The director may enter into agreements with public water agencies and other water agencies, that directly or indirectly receive water from the City of Cincinnati, to provide water quality analysis and lab services. There shall be a charge, as determined by the director. The director shall periodically review the costs and adjust the charge if necessary.

(c) The director may enter into agreements with public water agencies and other water agencies, that directly or indirectly receive water from the City of Cincinnati, to provide fire hydrant repair and replacement services and electrical and mechanical maintenance services. There shall be a charge, as determined by the director. The director shall periodically review the costs and adjust the charge if necessary.

(d) The director may enter into agreements with public or private entities that directly or indirectly receive water from the City of Cincinnati to operate and maintain internal water treatment and distributions systems, and/or to provide related services such as water quality sampling, monitoring, analyzing and reporting.

(1) The director shall determine the charge for these services, which shall be sufficient to cover all costs of providing the services. During the term of these agreements, no funds other than the revenues received as payment for these services shall be used to pay for the services provided.

(2) Any agreement authorized by this subsection shall require any public or private entity with which the city contracts to name the city as an additional insured party on the entity's insurance policy to cover any claims or actions, including liability claims, involving personal injuries or death, associated with the water system.

(3) Any agreement authorized by this subsection shall require any private entity to indemnify, defend and save the city, its agents and employees, harmless from and against any and all losses, damages, settlements, costs, charges, professional fees, or other expense or liabilities of every kind and character arising out of or relating to the water system, except for willful misconduct on the party of the City or its agents and employees.

(Ordained by Ord. No. 372-1996, eff. Nov. 20, 1996; a. Ord. No. 387-2002, eff. Jan. 17, 2003; a. Ord. No. 0364-2007, § 1, eff. 11-10-2007; a. Ord. No. 102-2013, § 1, eff. June 1, 2013)

Sec. 401-91. Unlawful Taking of Water.

No person, firm, corporation or political subdivision shall take water from any connection to the water supply system of the Cincinnati Water Works unless a proper water service connection is installed according to law and water bills are paid, except as otherwise provided for temporary use or municipal use of water.

(C.O. 401-91; a. Ord. No. 374-1967, eff. Oct. 27, 1967; reordained as C.M.C. 401-91, eff. Jan. 1, 1972)

Sec. 401-92. Payment Requirements.

Charges shall be payable monthly or quarterly as determined by the director. Payment shall be made on or before the payment dates specified on the bill. In cases of temporary hardship or circumstances beyond the control of the property owner, the director or authorized representative may grant an extension of time for payment, not to extend beyond the end of the next billing period, or may enter into a written agreement with the property owner, the property owner's authorized agent, representative or tenant as provided under Section 401-93-A(e), for extended term payments.

Partial payment may be accepted but charges shall be paid in full by the payment dates specified on the bill or by the expiration date of any extension granted. Failure to pay the balance due, inclusive of all

charges billed by the department, shall result in termination of water service and/or other penalties.
(C.O. 401-92; reordained as C.M.C. 401-92, eff. Jan. 1, 1972; a. Ord. No. 127-1987, eff. May 1, 1987; repealed and reordained by Ord. No. 372-1996, eff. Nov. 20, 1996)

Sec. 401-93. Service Charge for Nonpayment.

Bills shall be due and payable when mailed. If a bill is not paid by the earliest payment date specified on the bill, a service charge shall be assessed. The amount of the service charge shall be determined by the director based on earnings lost on overdue amounts and the cost of delinquent account services.

At the time a delinquent account service charge is due, or as soon thereafter as is practical, a final notice for all indebtedness on the account shall be mailed to the name and mailing address in which the account is carried.

A delinquent account service charge shall be canceled or waived when the charge was the result of a Cincinnati Water Works error, or may be cancelled or waived when the cost of collection exceeds the amount of the service charge.
(C.O. 401-93; a. Ord. No. 99-1958, eff. Apr. 25, 1958; reordained as C.M.C. 401-93, eff. Jan. 1, 1972; a. Ord. No. 231-1975, eff. June 13, 1975; a. Ord. No. 127-1987, eff. May 1, 1987)

Sec. 401-93-A. Involuntary Disconnection.

(a) The Cincinnati Water Works shall provide at least seven calendar days prior written notice of service disconnection to a customer in default for failure to make payment or for violation of any sections herein, whether or not such customer be a landlord, owner, or others.

(b) At least seven calendar days prior to disconnection of water service to any user(s) not responsible for the payment of charges for services billed, a notice of the intent to disconnect water service shall be posted or affixed upon the premises in a conspicuous location and/or personally served upon the user(s), owner or agent. Such notice shall include the rights and obligations as set forth in paragraphs (d) and (e) of this section.

(c) When account records show the premises is a single-family residence and the billing has been directed to such premises, it shall not be necessary to post a notice of disconnection upon the premises or otherwise serve a notice of disconnection.

(d) Any person or entity responsible for the payment of charges for services billed who causes the disconnection of water service by failure to pay the charges for past service or through any other violation of applicable law, the provisions of this chapter and Cincinnati Water Works rules and regulations, or who willingly causes the water service to be disconnected, except while repairs are in progress or during temporary emergencies, shall be liable for compensatory damages to all other persons or entities denied the benefits of water service so disconnected.

(e) If a tenant makes arrangements to the satisfaction of the Cincinnati Water Works for the arrearage of the customer who is in default in order to avoid disconnection of water service for nonpayment, or to cause reconnection of service so disconnected, the tenant shall have the right to deduct the amount of such payment(s) from any future payment of rent.

(f) When a notice of disconnection is posted at the premises or personally served upon the owner, user(s) or agent as a result of nonpayment of charges for services billed or failure to comply with the provisions of this

chapter and Cincinnati Water Works rules and regulations, there shall be a charge, determined by the director, to the customer responsible for payment of the statement. The director shall periodically review the costs and adjust the charge if necessary. This charge is in addition to the delinquent charge specified in Section 401-93.

(g) When a water service disconnection trip is made to a premises as a result of nonpayment of charges for services billed or failure to comply with the provisions of this chapter and Cincinnati Water Works rules and regulations, there shall be a charge, determined by the director, to the customer responsible for the payment of the statement. The director shall periodically review the costs and adjust the charge if necessary. This charge shall be in addition to the delinquent charge specified in Section 401-93.

(C.M.C. 401-93-A; ordained by Ord. No. 573-1972, eff. Jan. 19, 1973; a. Ord. No. 288-1975, eff. July 4, 1975; a. Ord. No. 48-1984, eff. Feb. 24, 1984; repealed and reordained by Ord. No. 372-1996, eff. Nov. 20, 1996)

Sec. 401-93-B. Reconnection of Water Service Charge.

(a) When water service has been terminated as a result of nonpayment of a water bill or failure to comply with the Cincinnati water works rules and regulations, there shall be a service charge levied against the account of the customer for the reconnection of water service. The amount of the service charge shall be based on the cost of providing the service, and shall be set by the director of water works with the approval of the city manager.

(b) No service charge shall be levied against an account for the reconnection of water service when water service is being restored and/or reconnected to a customer not responsible for the termination of the service.

(Ordained by Ord. No. 82-1985, eff. Mar. 23, 1985)

Sec. 401-94. Assessing Charges.

The superintendent shall assess and collect proper charges for water, material supplied and work done. Any owner of real estate premises installing or maintaining water service connections shall be considered as accepting the provisions of all lawful rules and regulations of the department and as agreeing, in particular, to be liable for all water and service charges for such premises, whether the accounts for such premises are carried in the name of such owner or in the name of tenants or other persons.

(C.O. 401-94; reordained as C.M.C. 401-94, eff. Jan. 1, 1972)

Sec. 401-95. Owner's Responsibility.

The maintenance of water service connections being a substantial and valuable benefit to land, any owner of real estate premises maintaining such water service connections shall assume responsibility for the total of all water charges levied against the premises during such ownership in the same manner as the person who actually incurred the charges. This assumption of responsibility shall be a necessary condition to the continuance of water services to the premises and the failure to pay such charges when billed in accordance with the provisions of this division of the Cincinnati Municipal Code shall constitute grounds for the superintendent to refuse water service to the premises.

(Sec. 401-95; ordained by Ord. No. 374-1967, eff. Oct. 27, 1967; reordained as C.M.C. 401-95, eff. Jan. 1, 1972; a. Ord. No. 204-1975, eff. May 30, 1975)

Sec. 401-96. Adjustment of Charges for Leaks.

No reduction in water charges shall be made for leaks except for those water charges resulting from leaks which meet the criteria of the leak adjustment program as set forth by the director and approved by the city manager.
(C.O. 401-96; a. Ord. No. 374-1967, eff. Oct. 27, 1967; reordained as C.M.C. 401-96, eff. Jan. 1, 1972; a. Ord. No. 0012-2022, §§ 1, 2, eff. Jan. 26, 2022)

Sec. 401-97. Bad Checks, Service Charge.

Whoever shall tender in payment of any bill or bills issued by the Cincinnati water works a check or other commercial paper which fails to clear through the banks and is returned to the water works shall be assessed a service charge, the amount to be determined by the director of water works, based on the costs to the city of processing and collecting on such dishonored instrument, for each time such check or instrument is returned. This charge shall be chargeable against the premises served, if the maker of the check or instrument maintains water service connections, in the same manner as charges for water. Assessment of this service charge shall not relieve a maker of any criminal or civil liability provided by law.
(Sec. 401-97; ordained by Ord. No. 374-1967, eff. Oct. 27, 1967; reordained as C.M.C. 401-97, eff. Jan. 1, 1972; a. Ord. No. 435-1975, eff. Oct. 10, 1975; a. Ord. No. 474-1983, eff. Nov. 4, 1983)

Sec. 401-98. Bankruptcy.

Where premises in arrears for payment of water bills become subject to a bankruptcy or insolvency court, the superintendent may permit the supply of water to such premises to be continued or restored without previous payment of the water bill accrued under the bankrupt or insolvent owner.
(C.O. 401-98; reordained as C.M.C. 401-98, eff. Jan. 1, 1972)

Sec. 401-101. Bills for Material or Service.

Charges for water main installations, service branches, meters, temporary use of water, fire protection services, work done, material furnished, other service by utility forces or damages to utility property shall be payable as stated on bills or invoices rendered. If not paid as stated thereon, the charges shall be chargeable against the customers' premises or any premises for which the charges are made, as in the case of charges for water.
(C.O. 401-101; a. Ord. No. 374-1967, eff. Oct. 27, 1967; reordained as C.M.C. 401-101, eff. Jan. 1, 1972)

Sec. 401-102. Additional Charges for Services.

For services including, but not limited to, return trips necessitated by failure of the customer to provide reasonable access, or by failure to comply with Cincinnati Water Works rules and regulations, there shall be a charge, determined by the director, to the customer responsible for the payment of the statement. The director shall periodically review the costs and adjust the charge if necessary.
(Ordained by Ord. No. 372-1996, eff. Nov. 20, 1996)

Sec. 401-103. Failure to Receive Bills.

All bills shall be mailed to the premises served or other address known to the utility. Any property owner or the owner's authorized agent may list a mailing address with the utility for use in mailing bills.

Failure to request such listing or to receive any bill, invoice or notice does not relieve the property owner from responsibility for payment as required. Duplicate bills may be obtained upon application.
(C.O. 401-103; a. Ord. No. 374-1967, eff. Oct. 27, 1967; reordained as C.M.C. 401-103, eff. Jan. 1, 1972)

Sec. 401-106. Collection of Water Bills by Division of City Treasury.

There is hereby established a charge per water bill collected by the division of city treasury for the water works department through the facilities of the division of city treasury maintained at city hall for the receipt of cash payments of water bills. The amount of the charge is to be negotiated by the division of city treasury and the water works department, with final authority resting with the city manager, and is to be based on the actual costs to the treasury division of its collection activity.
(Sec. 401-106; ordained by Ord. No. 118-1959, eff. May 22, 1959; reordained as C.M.C. 401-106, eff. Jan. 1, 1972; a. Ord. No. 475-1983, eff. Nov. 4, 1983)

DIVISION J. FIRE HYDRANTS

Sec. 401-111. Fire Hydrant Leads.

The leads for public fire hydrants will be considered part of the water distribution mains. When new mains are laid, the necessary leads will be installed concurrently with the main and paid for in the same manner. Where a new fire hydrant is required on an existing main or an existing fire hydrant must be relocated for new development, or to accommodate the abutting owner, the owner of such abutting property must pay the cost of the new or altered hydrant lead.
(C.O. 401-111; a. Ord. No. 38-1962, eff. Mar. 9, 1962; reordained as C.M.C. 401-111, eff. Jan. 1, 1972)

Sec. 401-112. Fire Hydrants Within the City Limits.

Within the city limits, the water works will provide all necessary public fire hydrants in dedicated streets.
(Sec. 401-112; ordained by Ord. No. 38-1972, eff. Mar. 9, 1962; reordained as C.M.C. 401-112, eff. Jan. 1, 1972; a. Ord. No. 454-1994, eff. Jan. 20, 1995; a. Ord. No. 303-1996, eff. Oct. 25, 1996)

Sec. 401-113. Fire Hydrants Outside City Limits.

Fire hydrants installed outside city limits shall be furnished and maintained by the political subdivision which has contracted for water in that area unless otherwise provided for by contract. The material used and the installation shall conform to standard Cincinnati specifications and shall be subject to inspection and approval by the superintendent.
(C.O. 401-113; a. Ord. No. 38-1962, eff. Mar. 9, 1962; reordained as C.M.C. 401-113, eff. Jan. 1, 1972; a. Ord. No. 303-1996, eff. Oct. 25, 1996)

DIVISION K. FIRE PROTECTION SERVICE

Sec. 401-117. Fire Protection Services for Private Premises.

A quarterly or monthly charge shall be made for each fire service branch serving private premises based on the size of the branch at the main, as provided for by Section 401-78.

A fire service branch from the main shall not be used for other than fire fighting purposes, except when a dual service has been approved by the superintendent.

Where a fire service branch has outlets such as fire hydrants or hose outlets, and

was installed prior to the regulations requiring detector check meters, the superintendent shall seal each outlet. The seal shall not be broken except when necessary for fire fighting.

It shall be the responsibility of the owners of the property served, or their agents, to obtain permission from the superintendent in advance of using water from a fire protection service for any purpose, including fire drills and pressure testing of a fire protection system. The superintendent, upon granting permission to use water from a fire protection service, shall arrange to have an inspector visit the premises for the purpose of resealing outlets, reading detector check meter, and estimating the amount of water used, to be billed by the department.

The superintendent may order a fire service branch metered and converted to a domestic account to be billed at the monthly or quarterly rates for general consumers provided for by Sections 401-76 and 401-77 for any of the following reasons:

(a) Use of water for other than fire fighting purposes. Flushing of debris, clean up or flushing of spillage, watering of dumps and other dry areas shall not be considered as fire fighting purposes.

(b) Failure to repair a leak or leaks on the fire service branch or fire protection system.

(c) Use of water to control or extinguish self-made fires.

(d) Unauthorized breaking of a seal or seals on outlets of a fire protection system.

(e) Registration on a detector check meter indicating unauthorized use of water.

(C.O. 401-117; a. Ord. No. 38-1962, eff. Mar. 9, 1962; a. Ord. No. 16-1964, eff. Feb. 15, 1964; a. Ord. No. 263-1966, eff. Jan. 1, 1968; reordained as C.M.C. 401-117, eff. Jan. 1, 1972; a. Ord. No. 303-1996, eff. Oct. 25, 1996)

Cross reference—Penalty, § 401-999.

Sec. 401-118. Combination of Services.

The director of the water works may authorize the installation of a common line to be used to carry water for all purposes where the water works is able to provide metering devices which will satisfy the demands for both fire protection and domestic, commercial or industrial requirements.

Where such installation is made, the charges for combined water sewage service, and fire protection, shall be the same as for water supply service alone.

(Sec. 401-118; ordained by Ord. No. 290-1965, eff. Aug. 7, 1965; reordained as C.M.C. 401-118, eff. Jan. 1, 1972; a. Ord. 313-1991, eff. Aug. 7, 1991)

DIVISION L. CROSS-CONNECTION CONTROL AND WATER QUALITY PROTECTION

Sec. 401-125. Backflow Protection.

If, in the judgment of the water works superintendent, the integrity of the public water system is, or can be, endangered by backflow from an actual or a potential cross-connection within the plumbing system of a water consumer, the superintendent may order the installation of an approved backflow prevention method or device consisting of either an air-gap, double sanitary check valve assembly, vacuum breaker, reduced pressure principle backflow preventer or any combination thereof at the water service connection to the premises.

The water consumer shall install the designated device or method at the consumer's own expense, and failure, refusal or inability to install the device or method

immediately shall constitute a ground for discontinuing water service to the premises until such device or method has been installed and approved by the superintendent.

The use of the approved backflow preventer at the water service connection does not in any way affect or eliminate the need for individual fixture devices or air-gaps as required by the Ohio Building Code.

All necessary permits shall be obtained from the political subdivision having jurisdiction.

(Sec. 401-125; ordained by Ord. No. 321-1971; eff. Oct. 9, 1971; reordained as C.M.C. 401-125, eff. Jan. 1, 1972)

Sec. 401-126. Notification, Payment of Fees for Containment and Isolation Backflow Preventers; Consequences of Failure.

The Cincinnati Water Works shall issue notices to the customer or the owner, the agent or the person in charge of the premises wherein a containment or isolation backflow device is located of the need to perform an annual containment and/or isolation device backflow test. The Cincinnati Water Works may charge a fee for said notice. Failure to have the containment or isolation backflow test done, or failure to provide results to the Cincinnati Water Works will result in the immediate termination of water service. The failure to pay the required fees or charge may result in the Cincinnati Water Works terminating water service. The termination of water service for failure to pay required fees or charges shall comport with those sections of this chapter and Cincinnati Water Works rules and regulations regarding termination of service for non-payment of a billing statement.

(Sec. 401-126; ordained by Ord. No. 431-1993, eff. Jan. 7, 1994; repealed and reordained by Ord. No. 372-1996, eff. Nov. 20, 1996)

DIVISION M. LEAD SERVICE LINE REPLACEMENT PROGRAM*

Sec. 401-127. Legislative Findings Related to Lead Service Lines.

(a) City Council of the City of Cincinnati hereby determines that the public health and safety is endangered by the ingestion of drinking water that contains lead.

(b) The use of a Lead Service Line to deliver drinking water from a water main to a residence, business, school, or other building or structure, increases the risk of lead content in the water.

(c) The continued use of Lead Service Lines for an indefinite period of time, without a systematic plan for replacing those lead lines, should therefore be considered a threat to the health and safety of the residents, occupants, and visitors to the City.

(d) Repair or replacement of only part of a Lead Service Line, leaving some but not all of the Lead Service Line in service, poses a higher risk of releasing lead into the drinking water on the property being served than when the whole existing Lead Service Line is left undisturbed, and this risk should be reduced to the extent practically possible.

(e) City Council finds that the complete replacement of Lead Service Lines is essential to protect the public safety and health. Council has determined to adopt a sanitary regulation, as authorized under Ohio Revised Code § 729.06, to eliminate the public health risk caused by the use of Lead Service Lines.

(f) Council also finds that the public, particularly tenants, should have the right to know before signing a lease whether the

*__Note—__See editor's note at Division N.

residence, business, or other location which the tenant intends to rent is served by a Lead Service Line.
(Ordained by Ord. No. 185-2017, § 4, eff. July 28, 2017)

Sec. 401-128. Lead Service Lines Prohibited.

(a) The Director shall not approve the installation of any new service line or the replacement of any existing service line with pipe that is not Lead-Free.

(b) Existing Lead Service Lines shall be prohibited as of the effective date of this ordinance.

(c) There shall be a grace period for owners of property containing Lead Service Lines before any enforcement action is taken. The Department will not take action until the owner is provided written notice of the need to replace the Lead Service Line with a minimum of thirty days to take corrective action.

(d) All Lead Service Lines shall be replaced with Lead-Free pipe that complies with the Rules and Regulations.
(Ordained by Ord. No. 185-2017, § 4, eff. July 28, 2017)

Sec. 401-129. Lead Service Line Replacement Responsibilities of Owner and Department.

(a) The Department shall be responsible for replacement of the portion of a Lead Service Line between the service connection and the private property line, which shall be referred to herein as the "public" portion of a Lead Service Line.

(b) The property owner shall be responsible for the cost of replacement of the portion of a Lead Service Line on the private property, which shall be referred to herein as the "private" portion of a Lead Service Line.

(c) The division of responsibilities between the Department and a property owner in this section shall apply only to replacement of Lead Service Lines. Repair and replacement of service branches in all other circumstances shall be governed by Sections 401-38 and 401-39 of this chapter.
(Ordained by Ord. No. 185-2017, § 4, eff. July 28, 2017)

Sec. 401-130. Repair of Private Lead Service Lines.

(a) An owner who has a leaking private Lead Service Line shall:

(1) Cause a certified person to temporarily repair the leaking private Lead Service Line within the time for repair provided in the notice from the Department; and

(2) Cause the private Lead Service Line to be replaced with a new Lead-Free Service Line or allow the Department to replace the private Lead Service Line, in accordance with this chapter, within the time for replacement provided in the notice from the Department.

(b) All materials and work shall be in compliance with this chapter and with any applicable Rules and Regulations of the Department or other applicable requirements in the Cincinnati Municipal Code.
(Ordained by Ord. No. 185-2017, § 4, eff. July 28, 2017)

Sec. 401-131. Disturbance of Private Lead Service Lines.

(a) When an owner causes disturbance to the private Lead Service Line or the meter setting, including, without limitation, through renovation, demolition and rebuild, or other construction work, the owner shall:

(1) Cause a certified person to replace the private Lead Service Line with a

new Lead-Free Service Line within the time provided in a written notice from the Department; and

(2) Contact the Department so that: (i) replacement of the private Lead Service Line can be inspected to ensure that it conforms to the Department's Rules and Regulations, and (ii) if the public Service Line is lead, the Department may coordinate replacement of the public Lead Service Line in conjunction with the owner's replacement of the private Lead Service Line.

(b) All materials and work shall be in compliance with this chapter and with any applicable Rules and Regulations of the Department or other applicable requirements in the Cincinnati Municipal Code.
(Ordained by Ord. No. 185-2017, § 4, eff. July 28, 2017)

Sec. 401-132. Authorizing Lead Service Line Replacement Program.

(a) The Department is authorized to expend funds for the costs of replacing Lead Service Lines through the systematic program authorized under this chapter.

(b) As a part of the Lead Service Line replacement program, the Department is authorized to replace private Lead Service Lines in the City in order to reduce the risk of releasing lead into drinking water.

(c) When the Department replaces a private Lead Service Line as part of the Lead Service Line replacement program, the property owner's cost responsibility will be communicated to the property owner prior to the work and will be made clear in the Department's contract for the work.

(d) The replacement program may include replacement of Lead Service Lines in conjunction with water main replacement, targeted neighborhood replacement of Lead Service Lines without water main replacement, or replacement of individual Lead Service Lines.

(e) The Department shall have discretion to prioritize replacement of Lead Service Lines based on public health risk and economic considerations, including the ability to prioritize replacement of Lead Service Lines that provide water to any school, child care provider, or other business or activity frequented by children.
(Ordained by Ord. No. 185-2017, § 4, eff. July 28, 2017)

Sec. 401-133. Procedure for Requiring Private Lead Service Line Replacement.

(a) When the Department intends to replace a Lead Service Line as part of the Lead Service Line replacement program, the Department shall serve written notice upon the owner of the parcel(s) of real property in which the Lead Service Line is situated advising that the private Lead Service Lines must be replaced.

(1) The written notice shall be served in the same manner as a service of summons in civil cases: by certified mail addressed to the owner's last known address or tax mailing address, or as otherwise provided in Ohio Revised Code § 729.06.

(2) The notice shall provide the owner no less than thirty days from the date of service to cause the private Lead Service Line to be replaced by a certified person as defined in Section 401-127 of this chapter.

(3) The notice shall state that if the private Lead Service Line is not replaced within the allotted time in

the notice, the Department may: (i) complete the work; (ii) bill the construction costs of the work to the owner; and (iii) certify any amounts unpaid as assessments against the property as provided in this chapter.

(b) Upon receiving notice as specified in this section, an owner may request verification by the Department of whether a service line is in fact a Lead Service Line and/or may request verification of the cost calculation of the Lead Service Line. The notice shall include a website and phone number by which an owner may contact the Department to verify either of these issues of fact.

(c) If the owner chooses to replace the private portion of the Lead Service Line prior to the allotted time in the Department's notice, the owner shall:

(1) Do so at his or her own expense; and

(2) Ensure that the replacement is performed by a certified person as defined in Section 401-41, "Only Certified Persons to Install Service Branch from Property Line to and Including Meter," and in accordance with Section 401-134, "Inspection and Certification of Lead Service Line Replacement," and all other applicable requirements of this chapter and the Department's Rules and Regulations.

(d) If the private Lead Service Line replacement has not been completed by the end of the allotted time indicated in the Department's notice as defined in this section, the Department is authorized to complete the work.
(Ordained by Ord. No. 185-2017, § 4, eff. July 28, 2017; Emer. Ord. No. 319-2017, § 1, eff. Dec. 6, 2017)

Sec. 401-134. Inspection and Certification of Lead Service Line Replacement.

(a) When the property owner causes a Lead Service Line to be replaced, the owner and the certified person performing the replacement shall be responsible to ensure each of the following:

(1) The work is performed by a certified person as defined in Section 401-41, "Only Certified Persons to Install Service Branch from Property Line to and Including Meter";

(2) The replacement service line replaces the entire private portion of the prior service line with Lead-Free pipe;

(3) The Department is informed of timing of the work and provided access for inspection of the replacement service line; and

(4) The work and the replacement service line comply with all of the Department's technical and functional specifications and requirements in the Rules and Regulations.

(b) The new service line shall not be used and water service shall not be restored until a departmental inspector inspects and approves it.
(Ordained by Ord. No. 185-2017, § 4, eff. July 28, 2017)

Sec. 401-135. Assessment to Recover Cost of Lead Service Line Replacement.

(a) When the Department has incurred costs for replacement of the private Lead Service Line, the Department shall send a final bill to the owner of the property served by the replaced service line.

(b) The bill shall clearly state the following:

(1) The amount owed to the Department for the cost of replacing the private Lead Service Line;

(2) The owner's options to pay the bill or have any unpaid amount assessed to the real property tax bill semi-annually over either five or ten years;

(3) Department contact information for payment and verification of amount; and

(4) Procedures for appealing the amount of the bill.

(c) Prior to the date indicated on the bill, the owner may: (i) pay the amount owed directly to the Department, in part or in full, and/or (ii) notify the Department if the owner desires unpaid amounts to be assessed to the property over five years or ten years.

(d) Any unpaid amount shall be assessed against the property. If the owner does not select the number of years of the assessment term on the form provided by the Department, the assessment shall occur over ten years.

(e) If the owner disputes the amount owed, he or she should contact the Department no later than twenty-one days after the date of the bill specified in paragraph (b) of this section to verify that the amount is correct. The Department shall respond with a written decision to such a request for verification of the amount owed.

(f) If the owner does not agree with the Department's decision specified in paragraph (e), the owner has the right to appeal the amount demanded before a neutral decision-maker at the Office of Administrative Hearings ("OAH"). The owner must file such appeal by filing a written notice of appeal with OAH within ten days of receiving the Department's decision as specified in paragraph (e) of this section.

(g) Following determination of the final amount owed, either after the owner does not timely appeal the billed amount or after OAH has issued a decision on the owner's appeal, the Department shall certify any unpaid balance of such amount in an affidavit to the City Treasurer. The affidavit shall include the following information:

(1) the unpaid balance;

(2) the tax years over which the amount shall be collected;

(3) the amounts to be assessed each in semi-annual assessment;

(4) the date(s) the costs were incurred;

(5) the address and parcel number(s) of the property served by the replaced service line; and

(6) the name of the property owner of record at the time the costs were incurred.

(h) The City Manager shall thereafter submit an ordinance for Council approval with the amount(s) owed by owners to the Department for the cost of Lead Service Line replacement, and Council shall approve the assessment of such costs against the relevant properties in accordance with the Department's affidavit.

(i) After approval of the assessment by ordinance, the Clerk of Council shall certify the assessment to the Hamilton County Auditor stating the amounts and number of years of payment to be placed as a charge on the tax list and duplicate of the relevant property. The costs shall be a lien upon such real estate from and after the date the costs were incurred and collected as other taxes

and returned to the City of Cincinnati in accordance with Ohio Revised Code §§ 729.06, 727.30, 727.301, 727.33, and 727.331.

(j) All proceeds from assessments pursuant to this section and the Lead Service Line replacement program under this chapter shall be placed into the appropriate departmental account for the private Lead Service Line replacement program to repay the cost of the private Lead Service Line replacements.

(Ordained by Ord. No. 185-2017, § 4, eff. July 28, 2017; Emer. Ord. No. 319-2017, § 1, eff. Dec. 6, 2017)

DIVISION N. PENALTIES*

Sec. 401-999. Penalties.

Whoever violates any provision of this chapter for which another penalty is not specifically provided shall be fined not more than $200.

(C.O. 401-9; renumbered to C.M.C. 401-999, eff. Jan. 1, 1972)

Sec. 401-999-A. Violation of Section 401-3, 401-4, or 401-6.

Whoever violates any provision of Section 401-3, 401-4, or 401-6 shall be fined not more than $50.

Punishment under this section shall not relieve an offender of civil liability for any damage caused by the offender's unlawful acts.

(C.O. 401-5; a. Ord. No. 374-1967, eff. Oct. 27, 1967; renumbered to C.M.C. 401-999-A, eff. Jan. 1, 1972)

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*__Editor's note—__Ord. No. 185-2017, § 5, eff. July 28, 2017, redesignated former Division M as Division N, as set out herein.

Chapter 402

AIRPORT

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Sec. 402-99-A. Violation of Section 402-2, 402-3, 402-4, 402-5 or 402-82.
Sec. 402-99-B. Violation of Section 402-81.

Sec. 402-1. Definition.

For the purpose of this chapter the words and phrases defined in the actions hereunder shall have the meanings therein respectively ascribed to them, unless a different meaning ia clearly indicated by the context.
(Sec. 402-1; ordained by Ord. No. 423-1963, eff. Dec. 11, 1963; a. Ord. No. 217-1967, eff. June 23, 1967; reordained as C.M.C. 402-1, eff. Jan. 1, 1972)

Sec. 402-1-A. Aircraft Vendor.

"Aircraft vendor" shall mean any person engaged in selling aircraft to customers in the ordinary course of business.
(Sec. 401-1K; ordained by Ord. No. 423-1963, eff. Dec. 11, 1963; a. Ord. No. 217-1967, eff. June 23, 1967; renumbered to C.M.C. 402-1A, eff. Jan. 1, 1972)

Sec. 402-1-B. Based Aircraft.

"Based aircraft" shall mean aircraft registered at the office of the director and using Blue Ash Airport or Lunken Airport as a base, and where provision has been made for storage of aircraft at either airport.
(Sec. 402-1i; ordained by Ord. No. 423-1963, eff. Dec. 11, 1963; a. Ord. No. 217-1967, eff. June 23, 1967 renumbered to C.M.C. 402-1-B, eff. Jan. 1, 1972; a. Ord. No. 47-1976, eff. Feb. 4. 1976)

Sec. 402-1-B1. Blue Ash Airport.

"Blue Ash Airport" shall mean the municipal airport owned and operated by the city of Cincinnati, located in the city of Blue Ash, Ohio.
(Sec. 402-1b; ordained by Ord. No. 423-1963, eff. Dec. 11, 1963; a. Ord. No. 217-1967, eff. June 23, 1967; renumbered to C.M.C. 402-1-B1, eff. Jan. 1, 1972)

Sec. 402-1-C. City.

"City" shall mean the city of Cincinnati.
(Sec. 402-1c; ordained by Ord. No. 423-1963, eff. Dec. 11, 1963; a. Ord. No. 217-1967, eff. June 23, 1967; renumbered to C.M.C. 402-1-C, eff. Jan. 1, 1972)

Sec. 402-1-D. Director.

"Director" shall mean the director of public utilities or a person designated by the director.
(Sec. 402-1d; ordained by Ord. No. 423-1963, eff. Dec. 11, 1963; a. Ord. No. 217-1967, eff. June 23, 1967; renumbered to C.M.C. 402-1-D, eff. Jan. 1, 1972; a. Ord. No. 47-1976, eff. Feb. 4, 1976)

Sec. 402-1-L. Lease or Rent Charges.

"Lease or rent charges" shall mean any payment for use or occupation made by a person who is not an equal owner of the property.
(Sec. 402-1j; ordained by Ord. No. 423-1963, eff. Dec. 11, 1963; a. Ord. No. 217-1967, eff. June 23, 1967; renumbered to C.M.C. 402-1-L, eff. Jan. 1, 1972)

Sec. 402-1-L1. Lunken Airport.

"Lunken Airport" shall mean the municipal airport located between Beechmont Avenue and Kellogg Avenue in the city of Cincinnati.
(C.O. 402-1; a. Ord. No. 423-1963, eff. Dec. 11, 1963; a. Ord. No. 217-1967, eff. June 23, 1967; renumbered to C.M.C. 402-1-11, eff. Jan. 1, 1972)

Sec. 402-1-P. Parking.

"Parking" shall mean aircraft not in operation, standing without tie-down.
(Sec. 402-1g; ordained by Ord. No. 423-1963, eff. Dec. 11, 1963; a. Ord. No. 217-1967, eff. June 23, 1967; renumbered to C.M.C. 402-1-P, eff. Jan. 1, 1972)

Sec. 402-1-P1. Person.

"Person" shall mean any individual, partnership, association, fiduciary, company, firm, corporation, or any other group of individuals.
(Sec. 402-1f; ordained by Ord. No. 423-1963, eff. Dec. 11, 1963; a. Ord. No. 217-1967, eff. June 23, 1967; renumbered to C.M.C. 402-1-P1, eff. Jan. 1, 1972)

Sec. 402-1-S. Superintendent.

"Superintendent" shall mean the superintendent of Lunken Airport.
(Sec. 402-1e; ordained by Ord. No. 423-1963, eff. Dec. 11, 1963; a. Ord. No. 217-1967, eff. June 23, 1967; renumbered to C.M.C. 402-1-S, eff. Jan. 1, 1972)

Sec. 402-1-T. Tie-down.

"Tie-down" shall mean aircraft secured to fixed anchor in ground by means of ropes or other devices.
(Sec. 402-1h; ordained by Ord. No. 423-1963, eff. Dec. 11, 1963; a. Ord. No. 217-1967, eff. June 23, 1967; renumbered to C.M.C. 402-1-T, eff. Jan. 1, 1972)

Sec. 402-2. Licensed Aircraft and Aviators.

Only aircraft and aviators licensed by the Federal Aviation Agency of the United States shall be permitted to operate over or within the jurisdiction of the city of Cincinnati; provided, however, that this restriction shall not apply to aircraft and aviators of the federal government, or of the territory or possession thereof, or of any state, or of a political subdivision thereof, or to aircraft licensed by a foreign country, with which the United States has a reciprocal agreement covering the operation of such licensed aircraft and aviators.
(C.O. 402-2; a. Ord. No. 217-1967, eff. June 23, 1967; reordained as C.M.C. 402-2, eff. Jan. 1, 1972)

Cross reference—Penalty, § 402-99-A.

Sec. 402-3. Air Traffic Rules.

No aircraft shall be operated over or within the jurisdiction of the city of Cincinnati in violation of the air traffic rules which have been or may hereafter be established by the Federal Aviation Agency of the United States and the ordinances of the city of Cincinnati.
(C.O. 402-3; a. Ord. No. 217-1967, eff. June 23, 1967; reordained as C.M.C. 402-3, eff. Jan. 1, 1972)

Cross reference—Penalty, § 402-99-A.

Sec. 402-4. Minimum Altitudes.

Except when necessary for takeoff or landing, no person may operate an aircraft below the following altitudes:

(a) *Anywhere.* An altitude allowing, if a power unit fails, an emergency landing without undue hazard to persons or property on the surface.

(b) *Over Congested Areas.* Over any congested area of the city of Cincinnati, or over any open air assembly of persons, an altitude of 1,000 feet above the highest obstacle within a horizontal radius of 2,000 feet of the aircraft.

(c) *Over Other Than Congested Areas.* An altitude of 500 feet above the surface, except over open water or sparsely populated areas. In that case, the aircraft may not be operated closer than 500 feet to any person, vessel, vehicle, or structure.

(d) *Helicopters.* Helicopters may be operated at less than the minimums prescribed in paragraphs (b) or (c) of this section if the operation is conducted without hazard to persons or property on the surface. In addition, each person operating a helicopter shall comply with the routes or altitudes specifically prescribed for helicopters by the administrator of the Federal Aviation Authority.

(C.O. 402-4; a. Ord. No. 411-1970, eff. Dec. 23, 1970; reordained as C.M.C. 402-4, eff. Jan. 1, 1972)

Cross reference—Penalty, § 402-99-A.

Sec. 402-5. Airport or Landing Field Permits.

No airport or landing field shall be established, maintained, or operated within the limits of the city of Cincinnati, unless a permit is first secured from the city manager.
(C.O. 402-5; a. Ord. No. 217-1967, eff. June 23, 1967; reordained as C.M.C. 402-4, eff. Jan. 1, 1972)

Cross reference—Penalty, § 402-99-A.

Sec. 402-7. Applicability of Federal Air Regulations.

No person shall navigate any aircraft over, land upon, or fly any aircraft from, or service, maintain or repair any aircraft on Lunken Airport, or conduct any aircraft operations on or from Lunken Airport otherwise than in conformance with the requirements of the Federal Air Regulations as established under the Federal Aviation Act of 1958.
(C.O. 402-7; a. Ord. No. 217-1967, eff. June 23, 1967; reordained as C.M.C. 402-7, eff. Jan. 1, 1972)

Cross reference—Penalty, § 902-5.

Sec. 402-8. Federal Aviation Act of 1958.

The Federal Aviation Act of 1958, Public Law 85-726 as passed by the 85th Congress, S-3880 on August 23, 1958, and as amended, is hereby adopted by reference and made a part of these rules.
(C.O. 402-8; a. Ord. No. 217-1967, eff. June 23, 1967; reordained as C.M.C. 402-1972, eff. Jan. 1, 1972)

Sec. 402-9. Lunken Airport Use Permits.

No person shall use Lunken Airport as a base or terminal for the carrying on of commercial aviation, or the carrying of passengers, freight, express or mail or for student flying, communications or other commercial or private purpose or transportation, without first securing a permit from the city of Cincinnati and paying the fees and charges prescribed for such privileges, the use of said airport, its facilities and for services rendered, as hereinafter provided.
(C.O. 402-9; a. Ord. No. 217-1967, eff. June 23, 1967; reordained as C.M.C. 402-9, eff. Jan. 1, 1972)

Cross reference—Penalty, § 902-5.

Sec. 402-10. Sales at Lunken Airport.

No person shall engage in the sale of refreshments or any other commodity or service within the confines of Lunken Airport without previously having secured a permit from the city of Cincinnati and having paid or made satisfactory arrangements to pay such fees or other sums of money as the city of Cincinnati may determine for such privileges.
(C.O. 402-10; a. Ord. No. 217-1967, eff. June 23, 1967; reordained as C.M.C. 402-10, eff. Jan. 1, 1972)

Cross reference—Penalty, § 902-5.

Sec. 402-13. Accident Reports.

Witnesses of, and participators in, accidents on,or near Lunken Airport shall report to the administration office as soon after accidents as possible, leaving their names and addresses and rendering such reports as may be required.
(C.O. 402-13; a. Ord. No. 217-1967, eff. June 23, 1967; reordained as C.M.C. 402-13, eff. Jan. 1, 1972)

Sec. 402-17. Repair of Aircraft and Engines.

All repairs to aircraft and engines shall be made in the spaces designated for this purpose, and not on the area reserved for landing and taking off.
(C.O. 402-17; reordained as C.M.C. 402-17, eff. Jan. 1, 1972)

Cross reference—Penalty, § 902-5.

Sec. 402-18. Disposal of Aircraft Wreckage.

The aircraft owner, the pilot or agent of the owner shall be responsible for the prompt disposal of wrecked aircraft and the parts thereof, to avoid all interference with airport operations, unless directed to delay such action pending investigation of the accident.
(C.O. 402-18; a. Ord. No. 217-1967, eff. June 23, 1967; reordained as C.M.C. 402-18, eff. Jan. 1, 1972)

Sec. 402-19. Airport Signs.

No signs of any sort or description shall be erected on Lunken Airport, or be placed on any building, without the approval of the director.
(C.O. 402-19; a. Ord. No. 217-1967, eff. June 23, 1967; reordained as C.M.C. 4021, eff. Jan. 1, 1972; a. Ord. No. 47-1976, eff. Feb. 4, 1976)
Cross reference—Penalty, § 902-5.

Sec. 402-20. Loud Speaker Permit.

Permit for the installation of loud speakers shall be obtained from the director and such permit may be cancelled at any time by order of the city manager.
(C.O. 402-20; a. Ord. No. 217-1967, eff. June 23, 1967; reordained as C.M.C. 402-20, eff. Jan. 1, 1972; a. Ord. No. 47-1976, eff. Feb. 4, 1976)

Sec. 402-21. Handling of Public.

The director shall at all times have authority to take such action as may be necessary in the handling, conduct and management of the public in attendance at Lunken Airport.
(C.O. 402-21; a. Ord. No. 217-1967, eff. June 23, 1967; reordained as C.M.C. 402-21, eff. Jan. 1, 1972; a. Ord. No. 47-1976, eff. Feb. 4, 1976)

Sec. 402-22. Permit Fees.

No person shall operate or permit to be operated any of the following services for revenue at Lunken Airport or Blue Ash Airport without obtaining a permit to do so and having paid fees as provided in this section.

For the sale of aircraft and as aircraft vendor, the annual permit fee shall be $300.

For flight instruction services, the annual permit fee shall be $100; plus an annual permit fee of $50 for each additional authorized instructor permit issued to the instruction service. The number of instructors employed shall not at any time exceed the number of instructor permit held by the instruction service.

A permit for one or more of the following services may be issued at the annual permit fee of $100; sale of fuel or oil, charter service, rental of aircraft, maintenance services, radio sales or services, rental of space, and sale of parts or supplies.

If a permit is issued after June 30 of any year, the fee therefor shall be one-half the applicable annual fee.

A permit may be issued for operation of scheduled air routes at Lunken Airport or Blue Ash Airport where the carrier has entered into a contract with the city of Cincinnati for the use of the field.

Any person desiring to obtain a permit under this section shall make application for such permit on forms supplied by the director. The applicant shall set forth the following information and facts stated under oath or affirmation:

(a) Name and address of applicant. If applicant is a firm, state the firm name and address and the name and address of each member of the firm. If the applicant is a corporation, state the date and state of incorporation, the name and addresses of the president, secretary, and business manager.

(b) Any information relative to operating above services, which information is deemed necessary by the director for the purpose of determining that a permit should be issued or refused.

All matters pertaining to the application for permit shall be investigated by the director. Upon approval of the application by the director and by the city manager, the permit shall be issued upon payment of proper fee.

All permit issued under this section shall expire on December 31 of each year. The holders of permits shall have the right to renew the same from year to year by making application for renewal on or before the first of December. Permits may be revoked by order of the city manager at any time for violation of any ordinances or regulations governing aircraft and aviators in the use of Lunken Airport and Blue Ash Airport.
(C.O. 402-22; a. Ord. No. 423-1963, eff. Dec. 11, 1963; a. Ord. No. 217-1967, eff. June 23, 1967; reordained as C.M.C. 402-22, eff. Jan. 1, 1972; a. Ord. No. 47-1976, eff. Feb. 4, 1976)

Cross reference—Penalty, § 902-5.

Sec. 402-23. Operating and Fuel Fees.

Any person having a permit issued on or after January 1, 1989, under Section 402-22 shall pay as an operating fee to the City of Cincinnati the sum of one percent of gross revenue received from operations, excepting such revenue as may be derived from the carrying of United States mail, passengers or cargo on scheduled air routes, the sale of airplanes, the sale of gasoline, and excepting revenue received for storage of aircraft in city-owned hangars. Where an operator provides more than one type of service, licensed under Section 402-22, the minimum operating fee shall be $500.00 per year. No refund of permit fees shall be made to any operator.

Every operator shall submit to the director a sworn statement from a certified public accountant showing the gross revenue for the six-month periods, January to June, inclusive, and July to December, inclusive. If the statement is not sworn to by a certified public accountant, the city shall have authority to conduct, at the operator's expense, an audit of the operator's records relating to gross revenue. Such statements shall be submitted and payment made no later than 45 days after the end of each period. If an operator fails to present a sworn statement and payment within 45 days after the end of each period, the city shall have authority to conduct an audit, at the operator's expense, of the operator's records relating to gross revenue.

As a measure of the use of the airport, every person, firm or corporation receiving or storing gasoline or jet engine fuel at Lunken Airport or Blue Ash Airport shall furnish to the director accurate monthly statements of all gasoline and jet engine fuel received. Such persons shall also provide accurate monthly statements of such gasoline and jet engine fuel sold or used. Such statements shall be submitted to the director on or before the 10th day of each month. At the time that the statement is submitted to the director, such persons shall pay the fee of 12 cents per gallon on gasoline or jet engine fuel sold or used except for gasoline or jet engine fuel purchased from fuel retailers holding a permit from the city.

However, in recognition of the broad scope of aeronautical services provided to the general public at the airports by retailers to the public of fuel under permit of the city (fixed base operators), which services are critical to the vitality of the airports and are required by the city as a condition of a fuel sale permit, such operators shall be permitted to retain a minimum of six cents and up to a maximum of eight cents per gallon of the fee imposed above on gasoline or jet engine fuel that they sell or use; and provided, however, the above fee shall not be applicable to gasoline and jet

engine fuel sold to any air carrier operating under a certificate of public convenience and necessity issued under the Federal Aviation Act of 1958, as amended, when such carrier shall have entered into a contract with the City of Cincinnati for the use of Lunken Airport or Blue Ash Airport. The amount of this retainer shall be reviewed and adjusted annually, if necessary, by the director of Transportation and Engineering based upon the city's need for efficient delivery of fuel services at the airport. The city shall give at least 30 days advanced notice to fixed base operators holding retail fuel permits of any adjustment in the amount of the retainer. The city shall have the right at any time to audit the fuel record of anyone dispensing fuel in order to determine the accuracy of the monthly statements. During such audits, the city may initially examine the fuel records for at least the three years immediately preceding the date of the audit. If the initial examination of the fuel records indicates a need for more extensive examination, the city may examine the fuel records for a period preceding the date of the audit it deems necessary for resolution of the problems it discovers.

For late payment of any operating fee or fuel fee, there shall be a penalty of ten percent of the fee.

Every wholesale supplier of gasoline or jet engine fuel to any tenant at the airports not possessing a retail fuel permit from the city shall furnish on or before the 10th day of each month copies of all receipts for deliveries of fuel to airport tenants, showing amount delivered, or alternatively a report of all fuel delivered, showing amount delivered to each tenant; this reporting shall be a condition of the privilege of doing business on the airports. Records shall be retained for three years.

(C.O. 402-23; a. Ord. No. 423-1963, eff. Dec. 11, 1963; a. Ord. No. 238-1964, eff. July 1, 1964; a. Ord. No. 300-1964, eff. July 1, 1964; a. Ord. No. 217-1967, eff. June 23, 1967; a. Ord. No. 220-1970, eff. July 31, 1970; reordained as C.M.C. 402-23, eff. Jan. 1, 1972; a. Ord. No. 47-1976, eff. Feb. 4, 1976; a. Ord. No. 180-1977, eff. June 10, 1977; a. Ord. No. 358-1979, eff. Sept. 6, 1979; a. Ord. No. 241-1980, eff. July 4, 1980; a. Ord. No. 356-1982, eff. Oct. 9, 1982; a. Ord. No. 385-1988, eff. Oct. 28, 1988; a. Ord. No. 173-199, eff. June 4, 1999; a. Emer. Ord. No. 99-2008, § 1, eff. March 26, 2008)

Sec. 402-24. Lunken Airport Use Fees.

Any person operating a scheduled or non-scheduled commercial flight using Lunken Airport shall pay to the city of Cincinnati a fee based on the licensed standard gross weight of the aircraft, as follows:

LANDING FEES

Gross Takeoff Weight	*Piston*	*Turbo Prop*	*Jet*
Multi-Engine to 5,999	$ 4.55	N/A	N/A
6,000 to 7,999	5.20	$ 5.85	N/A
8,000 to 9,999	5.85	6.50	N/A
10,000 to 11,999	6.50	7.15	N/A
12,000 to 14,999	7.80	8.45	$10.40
15,000 to 17,999	8.45	9.10	11.70
18,000 to 25,999	9.10	9.75	13.00
26,000 to 33,999	9.75	10.40	14.30
34,000 to 41,999	10.40	11.05	15.60
42,000 to 49,999	14.30	17.55	20.80
50,000 to 65,999	20.80	24.05	26.00
66,000 to 74,999	27.30	30.55	33.80
75,000 and over	33.80	37.05	39.00

(a) *Use for Landing:* Fees shall be paid for using Lunken Airport for the first landing of each aircraft in any one calendar day. Such fees shall be collected by either the city or by persons authorized by the director. When collections are made by authorized persons, such persons shall keep accurate records of such collections subject to audit by the city and such persons shall make monthly reports of collections and shall pay 70 percent of total

collections to the city; reports and payments shall be made on or before the 10th day of the next subsequent month. When collections are made by the city, fees may be billed on the first of each month for the operations of the previous month and shall be due and payable within 10 days. Fees shall not be applicable to scheduled air carriers operating under certificates of convenience and necessity, issued under the Federal Aviation Act of 1958, as amended, and under a contract with the City of Cincinnati for the use of the

field. Likewise, fees shall not be applicable to aircraft based at Lunken Airport nor to governmental aircraft.

An operation will be considered commercial when either revenue passengers or cargo, or both are loaded or discharged at Lunken Airport.

(b) *Parking Aircraft:* Fees shall be paid for each use of non-leased areas for parking of aircraft. Such fees shall be collected by the city or by persons authorized by the director. When collections are made by authorized persons, such persons shall keep accurate records of such collections subject to audit by the city and such persons shall make monthly reports of collections and shall pay 70 percent of total collections to the city; reports and payments must be made on or before the 10th day of the next subsequent month. When collections are made by the city, fees may be billed on the first of each month for the operations of the previous month and shall be due and payable within 10 days. Fees shall not be applicable to based aircraft for which provision has been made with the director for a monthly rate; fee shall not be applicable to governmental aircraft.

(c) *Aircraft Parking Areas and Fees* are as follows:

Parking Area "A" is adjacent to the administration building consisting of the area shown as Parking Area "A" on the plat approved by and on file with the director.

The following fees shall apply to aircraft parked over night during the 10-hour period from 10 p.m. till 8 a.m. and shall apply for each subsequent 10-hour overnight period.

PARKING FEES

Gross Takeoff Weight	*Piston*	*Turbo Prop*	*Jet*
Multi Engine to 5,999	$ 6.50	N/A	N/A
6,000 to 7,999	6.50	N/A	N/A
8,000 to 9,999	6.50	$ 6.80	N/A
10,000 to 11,999	6.50	6.80	N/A
12,000 to 14,999	7.15	7.45	$ 7.80
15,000 to 17,999	7.80	8.10	8.45
18,000 to 25,999	7.80	8.45	9.10
26,000 to 33,999	8.10	9.75	10.40
34,000 to 41,999	8.10	9.75	10.40
42,000 to 49,999	10.40	11.15	11.70
50,000 to 65,999	11.70	12.35	13.00
66,000 to 74,999	13.00	13.65	14.30
75,000 and over	15.60	16.25	16.90
All Single Engine Aircraft	6.50	6.50	6.50

Parking Area "B" consists of all other non-leased land areas at Lunken Airport. The following fees shall apply to aircraft parked overnight during the 10-hour period from 10 p.m. to 8 a.m. and shall apply for each subsequent 10-hour overnight period:

Weight of Aircraft	*Fees*
Up to 12,499 lbs	$ 4.00
12,500 to 34,999 lbs.	6.00
35,000 to 55,000 lbs.	8.00
Over 55,000 lbs.	10.00

(d) *Mooring Fees for Lighter-than-Air Airship Operations:* Any person mooring a lighter-than-air airship at Lunken Airport shall pay to the City of Cincinnati a mooring fee of $50.00 per 24-hour period or any part thereof per airship moored.

(e) *Tie-down Fees:* Any person conducting a service of tying down aircraft may be permitted by the city to use a defined area of non-leased land for conducting said tie-down service.

Any person conducting a service of tying down aircraft on non-leased land shall pay to the city $5 per aircraft per night up to a maximum of $55 per aircraft per month.

Each person operating such tie-down service on non-leased land shall keep accurate records subject to audit by the city and such persons shall make monthly reports of collections and make payments on or before the 10th day of every month for the operations of the preceding month.
(C.O. 402-24; a. Ord. No. 50-1957, eff. Mar. 8, 1957; a. Ord. No. 109-1957, eff. Apr. 12, 1957; a. Ord. No. 470-1958, eff. Dec. 31, 1958; a. Ord. No. 151-1959, eff. May 13, 1959; a. Ord. No. 423-1963, eff. Dec. 11, 1963; a. Ord. No. 300-1964, eff. July 1, 1964; a. Ord. No. 217-1967, eff. June 23, 1967; a. Ord. No. 326-1968, eff. Aug. 2, 1968; a. Ord. No. 247-1969, eff. July 25, 1969; a. Ord. No. 220-1970, eff. July 31, 1970; reordained as C.M.C. 402-24, eff. Jan. 1, 1972; a. Ord. No. 47-1976, eff. Feb. 4, 1976; a. Ord. No. 173-199, eff. June 4, 1999)

Sec. 402-25. Rental or Lease of Real Estate at Airports.

The city manager is hereby authorized to enter into contracts for lease or for rental of land areas and building spaces at Lunken and Blue Ash Airports.

Leases for land areas with hangars set forth in this section may be entered into by the city manager with any person occupying such land area and having operated a permitted service for at least one year; leases may be made without competitive bidding for a lease term not to exceed 5 years, at rental terms no less than the minimum rental rates set forth herein. In the event contracts are not entered into at the minimum rental rates set forth herein, the lease or rental of land areas with hangars shall be by competitive bid.

Any person desiring to rent land area or building space shall apply to the director for a permit. The holder of an annual permit shall have the right to renew the permit by making application for renewal no later than 30 days prior to expiration of a permit. Permits and renewals thereof shall be subject to the approval of both the director and the city manager and shall conform with all laws and ordinances of the city of Cincinnati now in force and effect or hereafter enacted. The holder of any permit shall obtain the approval of the director prior to making any changes in the premises which require a permit from the Department of Buildings and Inspections.

A rental permit may be revoked by order of the city manager at any time for violation of any ordinance concerning Lunken or Blue Ash Airports and permits to use restaurant and refreshment space may be revoked for violation of any city ordinance or board of health regulation relating to such uses. Payments of rent shall be made monthly in advance except as specifically provided for in this section or in a lease agreement. Minimum monthly rentals are as follows:

(a) *Lunken Airport Land Areas with Hangars:* Land areas with hangars are listed below by lease area number, which number pertains to a specific area and to facilities as set forth on a plat approved by and on file with the director.

Area	*Minimum Rental*
Lease Area 29 with Hangar No. 1, per month	$1,350.00
Lease Area 28 with Hangar No. 2, per month	1,700.00
Lease Area 27 with Hangar No. 3, per month	1,350.00
Lease Area 24 with Hangar No. 6, per month	600.00
Lease Area 23 with Hangar No. 7, per month	750.00
Building Spaces	
Terminal Building:	
First Floor	

Area	*Minimum Rental*
Lobby Space, per sq. ft. per year	8.00
Office Space, per sq. ft. per year	7.50
Terminal Building:	
Second Floor	
All Space, per sq. ft. per year	7.00
Terminal Building Air Carrier Operations:	
Office and Counter Space per sq. ft. per year	15.00

Provided, however, that the space on the second floor of the south wing of the terminal building may be rented for the sum of 30 cents per square foot per year to any non-profit aviation organization whose membership is open to aviators using Lunken Airport and whose principal purpose includes the development of aviation and the promotion of knowledge and skill in the art of flying.

The aforesaid minimum rental rates for lease or rental of space in the terminal building do not include power, gas or water services.

(b) *Lunken Airport Terminal Building - First Floor.*

Restaurant and Refreshment Space: The minimum rental rate shall be $9.00 per square foot per year, plus $2.50 per square foot per year for the appurtenant basement space, payable monthly in advance, plus the monthly payment of a minimum of 4.75 percent of the gross income received during each month from the operation of the restaurant and refreshment business in such space which income exceeds the monthly charge for the occupancy based on the above annual square foot rates. The occupant under such permits shall submit to the director a sworn statement not later than the 10th day of each month showing the gross income during the preceding month and at the same time shall pay the portion of the percentage of income stipulated above, if any, indicated by such statement to have accrued. The rates specified for rental of restaurant and refreshment spaces do not include power, gas, water or light.

(c) *Blue Ash Airport Land Areas with Hangars:*

Area	*Minimum Rental*
Lease Area BA-1 with hangar, offices & ramp	$3,750.00

The operative date of the fees and rentals contained herein shall be January 1, 1964. (C.O. 402-25; n. Ord. No. 260-1960, eff. Aug. 6, 1960; a. Ord. No. 423-1963, eff. Dec. 11, 1963; a. Ord. No. 217-1967, eff. June 23, 1967; reordained as C.M.C. 402-25, eff. Jan. 1, 1972; a. Ord. No. 173-199, eff. June 4, 1999)

Sec. 402-27. Provisions for Renters.

In consideration of the payment of the rentals specified in this chapter, the city of Cincinnati agrees or requires that:

(a) Lunken Airport shall be open to render service 24 hours a day.

(b) The airport will be lighted for night flying in accordance with the standards established by the Federal Aviation Act of 1958.

(c) Each major hangar and shop building shall be provided by the tenant with a first-aid kit which shall contain sterile dressings and other first-aid supplies which are appropriate for the type of activity in and around the hangar or building.

(d) The air traffic-control tower will be kept informed of the condition of the runways and landing areas, and any runway temporarily unsafe for use will be properly marked as required by the federal air regulations.

(e) Any person operating to, from or upon Lunken Airport and desiring to install gasoline tanks and pumps at Lunken Airport for the storage and handling of gasoline and oil, shall first obtain a permit from the director, which permit shall be approved by both the director of public utilities and the city manager, and which shall also state the exact location of such tanks and pumps, and shall specify the type of pumps for which the permit is issued.

(f) The occupant of a hangar or building shall be responsible for the care of the grounds, and the aprons immediately adjoining such hangar or building.

(C.O. 402-27; a. Ord. No. 217-1967, eff. June 23, 1967; reordained as C.M.C. 402-27, eff. Jan. 1, 1972; a. Ord. No. 47-1976, eff. Feb. 4, 1976)

Sec. 402-38. Suspending Flying Operations.

The director shall have the authority to suspend flying operations on or from the airport when, in the opinion of the director, the condition of the landing area might make such operations unsafe.

(C.O. 402-38; a. Ord. No. 217-1967, eff. June 23, 1967; reordained as C.M.C. 402-38, eff. Jan. 1, 1972; a. Ord. No. 47-1976, eff. Feb. 4, 1976)

Sec. 402-41. Taxiing Into or Out of Hangars.

No airplanes shall be taxied into or out of hangars.

(C.O. 402-41; reordained as C.M.C. 402-41, eff. Jan. 1, 1972)

Cross reference—Penalty, § 902-5.

Sec. 402-42. Use or Possession of Liquor.

No person shall take any aircraft from, or land any aircraft at the landing area or enter same within a hangar, while under the influence of, or using, or having personal possession of intoxicating liquor.

(C.O. 402-42; reordained as C.M.C. 402-42, eff. Jan. 1, 1972)

Cross reference—Penalty, § 902-5.

Sec. 402-43. Dropping From Airplanes.

Nothing shall be dropped from any aircraft over the limits of Lunken Airport, or the city of Cincinnati, with the exception being made in case of parachute jumps or aerial banners towed by aircraft for which advance arrangements have been made with the director.

A certificate of waiver or authorization from the Federal Aviation Agency shall be presented for inspection to the director at such time as the request for parachute jumps or aerial banner tow is submitted.

(C.O. 402-43; a. Ord. No. 402-1964, eff. Oct. 7, 1964; a. Ord. No. 217-1967, eff. June 23, 1967; reordained as C.M.C. 402-43, eff. Jan. 1, 1972; a. Ord. No. 47-1976, eff. Feb. 4, 1976)

Cross reference—Penalty, § 902-5.

Sec. 402-44. Flying Aircraft for Unlawful Purposes.

Aircraft of any kind flying in or out of Lunken Airport and used for any unlawful purposes whatever shall be subject to confiscation, and its occupants held for authorities.

(C.O. 402-44; a. Ord. No. 217-1967, eff. June 23, 1967; reordained as C.M.C. 402-44, eff. Jan. 1, 1972)

Sec. 402-46. Licensed Pilot or Competent Mechanic in Cockpit.

No aircraft engine shall be started or run unless a licensed pilot or competent mechanic is in the cockpit attending the controls.
(C.O. 402-46; reordained as C.M.C. 402-46, eff. Jan. 1, 1972)

Cross reference—Penalty, § 902-5.

Sec. 402-47. Aircraft Engines Not to be Run in Hangars.

So far as practicable, no aircraft engines shall be run in hangars.
(C.O. 402-47; reordained as C.M.C. 402-47, eff. Jan. 1, 1972)

Cross reference—Penalty, § 902-5.

Sec. 402-48. Aircraft Not to be Fueled While Engine Running.

No aircraft shall be fueled while the engine is running.
(C.O. 402-48; reordained as C.M.C. 402-48, eff. Jan. 1, 1972)

Cross reference—Penalty, § 902-5.

Sec. 402-49. Challenging and Signals Before Starting.

In starting an aircraft engine, the customary procedure shall be used by the person operating the starting device and the person at the engine controls. All challenges and signals between the former and the latter shall be clearly understood and so indicated by repetition before action is taken by either.
(C.O. 402-49; reordained as C.M.C. 402-49, eff. Jan. 1, 1972)

Sec. 402-50. Starting and Warming Up Aircraft.

Aircraft shall be started and warmed up only in the places designated for such purposes by the airport authorities. At no time shall engines be tuned up in such position that hangars, shops, or other buildings, or any group of people in the observation area, shall be in the path of the propeller stream.
(C.O. 402-50; reordained as C.M.C. 402-50, eff. Jan. 1, 1972)

Sec. 402-53. Duties of Instructors to Students.

All persons instructing student pilots in flying on the airport shall fully acquaint such students with the rules and regulations in effect on the airport, and shall be responsible for the conduct of the students while under their instructions.
(C.O. 402-53; a. Ord. No. 217-1967, eff. June 23, 1967; reordained as C.M.C. 402-53, eff. Jan. 1, 1972)

Sec. 402-56. Unhoused Aircraft.

All unhoused aircraft shall be parked in the space designated for this purpose and shall be firmly secured to the ground by ropes and stakes or otherwise when left unattended or during weather conditions which indicate the necessity therefor. Owners of such aircraft shall be held responsible for any damage resulting from failure properly to comply with this rule.
(C.O. 402-56; reordained as C.M.C. 402-56, eff. Jan. 1, 1972)

Sec. 402-58. Only Authorized Persons to Enter Upon the Flying Field.

No person, except a pilot or mechanic attached to Lunken Airport or employed by the owner of a plane or an operator on such airport, or an owner of such a plane or such an operator, or duly authorized officers or officials charged with the duty of enforcing local, state, or federal laws or regulations, shall enter upon the flying field unless such person is to participate in a flight. A person participating in a flight shall not enter the field until the plane in which such person is to fly has come to a full stop and the pilot

thereof has signaled readiness. Such person shall, upon alighting from the plane, leave the field area by the shortest possible route. All walking to or from and around aircraft shall be done with proper caution expedient to the safety of such persons and to prevent damage to the aircraft.

No person shall walk on or across any runway unless proper clearance has been obtained from the control tower or the runway has been closed.
(C.O. 402-58; a. Ord. No. 217-1967, eff. June 23, 1967; reordained as C.M.C. 402-58, eff. Jan. 1, 1972)

Cross reference—Penalty, § 902-5.

Sec. 402-60. Vehicles Not to Enter Upon Flying Field.

Parking spaces and drives are provided, and automobiles and other vehicles shall stay within these limits, with the exception of vehicles regularly employed in the service of Lunken Airport. Permission to drive on the ramp must be secured from the administration office. Aircraft shall have the right of way over all other vehicles at all times.

No vehicle shall be driven on or across any runway unless proper clearance has been obtained from the control tower or the runway has been closed.

All taxicabs and autos-for-hire serving patrons to and from aircraft at Lunken Airport are not to enter the fenced-in area within which airplanes operate.
(C.O. 402-60; a. Ord. No. 217-1967, eff. June 23, 1967; reordained as C.M.C. 402-60, eff. Jan. 1, 1972; a. Ord. No. 47-1976, eff. Feb. 4, 1976)

Sec. 402-61. Precautions Against Fire and Injury.

All persons using in any way the airport areas or the facilities of the airport shall exercise due care to guard against fire and injury to persons or property.
(C.O. 402-61; a. Ord. No. 217-1967, eff. June 23, 1967; reordained as C.M.C. 402-61, eff. Jan. 1, 1972)

Sec. 402-63. Rules Governing Fueling.

No airplane shall be fueled or drained while the engine is running, or while in hangar or other enclosed space. Fueling shall be through a metal-lined hose with continuous metallic contact established between the discharge nozzle, metal lining of hose, and main fuel tank or ground lines, and, in the case of fuel trucks, between main fuel tank or fuel lines and the ground. Metallic contact shall be established between the discharge nozzle and the airplane fuel tank before filling is started and maintained throughout the entire filling operation. When a chamois funnel strainer is used, it shall be placed in the airplane fuel tank and a ground connection provided to connect the discharge nozzle with the funnel.
(C.O. 402-6; reordained as C.M.C. 402-63, eff. Jan. 1, 1972)

Cross reference—Penalty, § 902-5.

Sec. 402-64. Heating of Oil.

The heating of oil shall be restricted to steam, hot water, hot air, or approved electric heaters.
(C.O. 402-64; reordained as C.M.C. 402-64, eff. Jan. 1, 1972)

Sec. 402-65. Cleaning of Airplane Parts.

The cleaning of motor parts or other parts of the airplane shall preferably be with noninflammable liquids. If volatile inflammable liquids are employed for this purpose, cleaning operations shall be carried on in the open

air or in a separate room located in the repair shop section and separated therefrom by fire-resistive partitions, and complying with the requirements of the American Insurance Association.
(C.O. 402-65; reordained as C.M.C. 402-65, eff. Jan. 1, 1972)

Sec. 402-67. Doping.

The process of "doping," except minor patching, shall preferably be carried on in a separate, detached, incombustible building, which may also include the paint shop. Where a separate building is not feasible, the process may be carried on in a room located in the repair shop section of the hangar. Such building or room shall be constructed in accordance with the requirements of the American Insurance Association and shall be protected with either a system of automatic sprinklers or a system employing a fire-retardant chemical or gas, which system shall meet the requirements of said association.
(C.O. 402-67; reordained as C.M.C. 402-67, eff. Jan. 1, 1972)

Cross reference—Penalty, § 902-5.

Sec. 402-68. Motor Vehicles Not to Enter Hangars Without Permit.

No automobiles, motor trucks, or tractors shall enter hangars without permission from the director except in connection with operations on the airport, and hangar entrances shall be kept clear at all times.
(C.O. 402-68; a. Ord. No. 217-1967, eff. June 23, 1967; reordained as C.M.C. 402-68, eff. Jan. 1, 1972; a. Ord. No. 47-1976, eff. Feb. 4, 1976)

Cross reference—Penalty, § 902-5.

Sec. 402-70. Receptacles for Oily Waste and Rags.

Suitable metal receptacles with self-closing covers shall be provided for the storage of oily waste, rags, and other rubbish. The contents of these receptacles shall be removed daily.
(C.O. 402-70; reordained as C.M.C. 402-70, eff. Jan. 1, 1972)

Sec. 402-71. Empty Oil Containers to be Removed.

All empty oil, paint, and varnish cans, bottles, or other containers shall be removed from the premises and not allowed to remain on floor or wall stringers.
(C.O. 402-71; reordained as C.M.C. 402-71, eff. Jan. 1, 1972)

Sec. 402-72. Clothes Lockers.

All clothes lockers shall be constructed of metal or other suitable fire-resistive material.
(C.O. 402-72; reordained as C.M.C. 402-72, eff. Jan. 1, 1972)

Sec. 402-73. No Litter to be Stored in Hangars.

No rubbish, paper, or litter of any kind, shall be permitted to be stored in or about hangars.
(C.O. 402-73; reordained as C.M.C. 402-73, eff. Jan. 1, 1972)

Cross reference—Penalty, § 902-5.

Sec. 402-74. Inflammable Liquids Not to be Stored in Hangars.

Gasoline, kerosene, ethyl, ether, or other inflammable liquids, including those used in connection with the process of "doping," shall not be stored in hangars. The storage of such liquids shall be in compliance with the regulations of the American Insurance Association for the construction and installation of containers for inflammable liquids. Lubricating oils may be kept within hangars when

stored in containers and provided with draw-off devices, both approved for this purpose by said board.
(C.O. 402-74; reordained as C.M.C. 402-74, eff. Jan. 1, 1972)
Cross reference—Penalty, § 902-5.

Sec. 402-75. Compressed Inflammable Gases Not to be Stored in Hangars.

No cylinders or flasks of compressed inflammable gases shall be stored in hangars.
(C.O. 402-75; reordained as C.M.C. 402-75, eff. Jan. 1, 1972)
Cross reference—Penalty, § 902-5.

Sec. 402-76. Heating Equipment at Airport.

All heating equipment and fuel-burning appliances installed on the airport shall be in accordance with the requirements of the American Insurance Association.
(C.O. 402-76; a. Ord. No. 217-1967, eff. June 23, 1967; reordained as C.M.C. 402-76, eff. Jan. 1, 1972)

Sec. 402-77. First-Aid Fire Appliances.

All buildings on Lunken Airport shall be provided with first-aid fire appliances, as required by the American Insurance Association.
(C.O. 402-77; a. Ord. No. 217-1967, eff. June 23, 1967; reordained as C.M.C. 402-77, eff. Jan. 1, 1972)

Sec. 402-78. Director to Make Additional Rules.

The director shall make such rules and regulations in addition to those herein provided as shall be required in any emergency or as the public convenience and necessity shall demand.
(C.O. 402-78; a. Ord. No. 217-1967, eff. June 23, 1967; reordained as C.M.C. 402-78, eff. Jan. 1, 1972; a. Ord. No. 47-1976, eff. Feb. 4, 1976)

Sec. 402-80. Ejection of Operators Failing to Comply with Rules.

Any person operating or handling any aircraft in violation of these rules, or refusing to comply therewith, may be promptly removed or ejected from the airport by or under the authority of the city manager, and, upon the order of the city manager, may be deprived of further use of the airport and its facilities for such length of time as may be required to insure the safeguarding of the same and the public and its interests therein.
(C.O. 402-80; a. Ord. No. 217-1967, eff. June 23, 1967; reordained as C.M.C. 402-80, eff. Jan. 1, 1972)

Sec. 402-81. Failure to Obey Lawful Orders of Officer in Charge.

No person shall fail to obey any order of the director or any officer charged with the enforcement of the laws issued in pursuance of this chapter, or in pursuance of any order published by the city manager.
(C.O. 402-81; a. Ord. No. 217-1967, eff. June 23, 1967; reordained as C.M.C. 402-81, eff. Jan. 1, 1972; a. Ord. No. 47-1976, eff. Feb. 4, 1976)
Cross reference—Penalty, § 402-99-B.

Sec. 402-82. Unsafe Operations of Aircraft.

No person shall operate an aircraft at any altitude over the land or water in the air space over the city of Cincinnati, or upon land or water within the limits and authority of the city of Cincinnati, in a careless or reckless manner that endangers any person or property, or with willful or wanton disregard for the rights or safety of others.
(Sec. 402-82; ordained by Ord. No. 412-1970, eff. Dec. 23, 1970; reordained as C.M.C. 402-82, eff. Jan. 1, 1972)
Cross reference—Penalty, § 402-99-A.

Sec. 402-99. Penalties.

Violations of the provisions of this chapter shall be punishable as set forth in the sections hereunder and other applicable penalty sections of this code.
(C.M.C. 402-99, eff. Jan. 1, 1972)

Sec. 402-99-A. Violation of Section 402-2, 402-3, 402-4, 402-5 or 402-82.

Whoever violates any provision of Section 402-2, 402-3, 402-4, 402-5 or 402-82 shall be fined not more than $100 or imprisoned not more than 10 days, or both.
(C.O. 402-6; a. Ord. No. 412-1970, eff. Dec. 23, 1970; renumbered to C.M.C. 402-99-A, eff. Jan. 1, 1972)

Sec. 402-99-B. Violation of Section 402-81.

Whoever violates any provision of Section 402-81 shall be fined not more than $500, or imprisoned not more than 30 days, or both.
(C.O. 402-81; renumbered to C.M.C. 402-99-B, eff. Jan. 1, 1972)

Chapter 403

GAS*

Sec. 403-1. Pressure and Heat Quality Test.
Sec. 403-3. Inspection of Gas Meters.
Sec. 403-5. Disposition of Fees; Refund.
Sec. 403-7. Permitted Variation from Standard.
Sec. 403-8. Involuntary Shutoff.
Sec. 403-99. Penalties.

*__Cross reference—__Cincinnati building code, tit. XI.

Sec. 403-1. Pressure and Heat Quality Test.

It shall be the duty of the director of public utilities to test the pressure and heat-unit quality of the natural gas, and illuminating value of the artificial gas furnished by the Cincinnati Gas and Electric Company, or its successors, or any other company, to consumers thereof in the city of Cincinnati, as often as the director determines it is necessary, or as may be required by the city manager. The results of any and all such tests shall be reported to the city manager and shall be entered upon a record kept in the office of the city manager, which shall be open at all times to public inspection.
(C.O. 403-1; reordained as C.M.C. 403-1, eff. Jan. 1, 1972)

Sec. 403-3. Inspection of Gas Meters.

Upon written application of any consumer of gas within the city of Cincinnati made to the director of public utilities and accompanied by a fee of $5, the director shall inspect and determine the correctness of any gas meter designated in such application and the fact of such re-inspection shall be stamped on the meter.
(C.O. 403-2; a. Ord. No. 116-1966, eff. Apr. 29, 1966; renumbered to C.M.C. 403-3, eff. Jan. 1, 1972)

Sec. 403-5. Disposition of Fees; Refund.

Each gas meter inspection fee deposited with the director of public utilities, shall be held until the result of the test has been reported to the director. If the meter examined is found to be correct, the fee shall be paid into the city treasury. If the meter is found to be incorrect, the fee shall be refunded to the applicant and the company shall furnish a new meter without charge to the consumer. If, for the purpose of inspection, it shall be necessary to remove and disconnect a meter, the company owning the meter shall provide the consumer with another meter for use during the time required for the inspection.
(C.O. 403-3; renumbered to C.M.C. 403-5, eff. Jan. 1, 1972)

Sec. 403-7. Permitted Variation from Standard.

Any gas meter shall be deemed correct for the purposes of this chapter if, upon inspection or test, it shall appear that it does not vary more than 2 percent from the standard prescribed by the Bureau of Standards of the U.S. Department of Commerce.
(C.O. 403-4; renumbered to C.M.C. 403-7, eff. Jan. 1, 1972)

Sec. 403-8. Involuntary Shutoff.

(a) No public utility company shall discontinue gas service for nonpayment of gas bill or bills without giving the customer in default, whether or not such customer be a landlord, owner or others, at least seven calendar days prior written notice; such notice shall contain a written warning to such customer advising that it is such customer's duty to warn an occupant of each household unit affected by such termination. Any notice required by this section shall include the notice identified in paragraph (f) of this section.

(b) Within 24 hours after receipt of such notice from the public utility company, such customer in default shall cause to be delivered to an occupant of each household unit affected by such termination, by physical delivery or by mailing, a notice that such gas service will be terminated and the indicated date of such termination, or by posting such notice in the common hallways on each floor of said dwelling.

(c) For purposes of this section, "household unit" is defined as one room, or a suite of two or more rooms, with sanitary facilities in

a dwelling, designed for or used by a family for living and sleeping purposes, with or without cooking facilities. For purposes of this section, "family" is defined as an individual, or any number of individuals who live together in a single household unit.

(d) Any such customer responsible for the payment of charges for gas service, who causes the discontinuance of that service by failure to pay the charges for past service, or who willfully causes services to be disconnected, except while repairs are in progress or during temporary emergencies, shall be liable for compensatory damages to any tenant who is denied benefits of gas service so disconnected.

(e) If the customer in default is a landlord responsible for payment of gas charges for tenant, the tenant may ensure continuation of gas service by paying the full amount of the customer's current bill. The tenant shall have the right to deduct the amount of such payment from any future payment of rent.

(f) Written notice to customers prior to termination of gas service for reason of nonpayment shall contain the following notice:

IF YOU ARE A LANDLORD, PLEASE NOTE

If the company is aware that you have tenants living in the premises affected by this final notice on your account, the company will notify these tenants that they may assure continued service by payment of your current bill. Depending on local law, these tenants may deduct amounts paid toward your bill from their rent payment, and you may be liable for civil remedies or criminal penalties if you fail to notify tenants of impending loss of service.
(C.M.C. 403-8; ordained by Ord. No. 573-1972, eff. Jan. 19, 1973; a. Ord. No. 74-1979, eff. Mar. 2, 1979; a. Ord. No. 184-1979, eff. May 9, 1979; a. Ord. No. 205-1981, eff. May 28, 1981)

Sec. 403-99. Penalties.

Any person or company who violates any provision of this chapter, or refuses to make such alterations and repairs in their present or future constructions as may be demanded in conformity with the provisions of this chapter, shall for a first offense be fined not more than $500, and for a second or subsequent offense shall be fined not more than $500, or be imprisoned for not more than 60 days, or both.

Any violation shall also operate, ipso facto, as a revocation of all permits, rights and franchises granted to the company or person held guilty of such violation or refusal.
(Ordained by Ord. No. 205-1981, eff. May 28, 1981)

Chapter 404

ELECTRICITY*

Sec. 404. Electric Power Regulation.
Sec. 404-1. Inspection of Electric Meters.
Sec. 404-2. Disposition of Fees.
Sec. 404-3. Variation from Standard.
Sec. 404-4. Franchise Period for Use of Streets.
Sec. 404-5. Interference with Telegraph and Telephone Wires.
Sec. 404-8. Restrictions on Occupying Main Streets.
Sec. 404-9. Compliance with Safety Codes.
Sec. 404-10. Marking and Painting of Poles.
Sec. 404-11. Right of Other Companies to Use Poles.
Sec. 404-13. Location of Pole to be Approved.
Sec. 404-14. Special Permit where Poles Impractical.
Sec. 404-15. Maximum Price of Current to be Specified.
Sec. 404-29. Height of Street Light Luminaries.
Sec. 404-33. Removal or Unused Wires and Equipment.
Sec. 404-34. Outdoor Wiring Inspections.
Sec. 404-35. Lineman Identification.
Sec. 404-37. Most Modern Protective Devices to be Used.
Sec. 404-38. Underground Conduits or Conductors to be Installed.
Sec. 404-40. Deposit of Poles on Street.
Sec. 404-41. Poles Prohibited in Conduit Areas.
Sec. 404-42. National Electric Code.
Sec. 404-43. Bond.
Sec. 404-44. Deposit for Street Restoration.
Sec. 404-46. Enforcement Authorization.
Sec. 404-50. Involuntary Shutoff.
Sec. 404-99. Penalties.

*__Cross reference—__Cincinnati building code, tit. XI.

Sec. 404. Electric Power Regulation.

Whenever permission is granted to any person, company, or corporation to engage in the business of distribution of electrical energy, the conduct of such business shall be subject to the provisions of this chapter.
(C.O. 404; a. Ord. No. 127-1966, eff. May 6, 1966; reordained as C.M.C. 404, eff. Jan. 1, 1972)

Sec. 404-1. Inspection of Electric Meters.

Upon written application of any consumer of electric current within the city of Cincinnati made to the director of public utilities and accompanied by the proper fee, the director shall inspect and determine the correctness of any meter designated in such application and such re-inspection shall be noted on the meter. The fee required to be deposited for such inspection shall be as follows, according to ampere capacity:

(a) Two hundred amperes and less, $5.

(b) Over two hundred amperes, $7.50.
(C.O. 404-1; a. Ord. No. 127-1966, eff. May 6, 1966; reordained as C.M.C. 404-1, eff. Jan. 1, 1972)

Sec. 404-2. Disposition of Fees.

Each fee deposited for re-inspection shall be held by the director of public utilities until the result of the inspection has been reported to the director. If the meter examined is found to be correct, the deposit fee shall be paid into the city treasury. If the meter is found to be incorrect, the fee shall be refunded, and the company shall furnish a new meter without charge. If it shall be necessary for the purpose of inspection to remove and disconnect a meter, the company owning the same shall supply the consumer with another meter for use during the time required for the inspection.
(C.O. 404-2; reordained as C.M.C. 404-2, eff, Jan. 1, 1972)

Sec. 404-3. Variation from Standard.

Any electric meter shall be deemed correct for the purposes of this chapter, if, upon inspection or test, it shall appear that it does not vary more than 5 percent from the standard approved by the Bureau of Standards of the U.S. Department of Commerce.
(C.O. 404-3; reordained as C.M.C. 404-3, eff. Jan. 1, 1972)

Sec. 404-4. Franchise Period for Use of Streets.

The grant to occupy the streets, lanes, and public grounds of the city of Cincinnati for the purpose of erecting and maintaining poles, masts, towers, brackets, and supports, with the necessary wires thereon, shall be for such period of time as council shall determine at the date of the passage of any special ordinance.
(C.O. 404-4; reordained as C.M.C. 404-4, eff. Jan. 1, 1972)

Sec. 404-5. Interference with Telegraph and Telephone Wires.

No grant shall be made to thus occupy the side of any street, lane, alley, or public place, whereon poles, masts, towers, brackets or supports have already been erected for the maintenance of telegraph or telephone wires, unless both sides of such street, alley, lane or public place are already so occupied, or upon any other street, lane, alley or public grounds in such manner as to interfere with, obstruct, or inconvenience any person in his or her right to the free use of such streets, lanes, alleys, or public grounds.
(C.O. 404-5; reordained as C.M.C. 404-5, eff. Jan. 1, 1972)

Cross reference—Streets and sidewalks, use regulations, ch. 723.

Sec. 404-8. Restrictions on Occupying Main Streets.

It shall not be permissible to occupy any main street with such poles, masts, towers

brackets, or supports where it is practicable to penetrate any district or supply the occupants of any one square by erecting and maintaining such supports in the alleyways of such city, or when such occupation shall obstruct such alleyways, except by acquiring the right to occupy such portions of private property abutting thereon as may be necessary for the maintenance of such posts, masts, towers, and supports in such manner as may be determined by the director of public works.
(C.O. 404-8; reordained as C.M.C. 404-8, eff. Jan. 1. 1972; a. Ord. No. 335-1978, eff. Sept. 1, 1978)

Sec. 404-9. Compliance with Safety Codes.

All poles, towers, fixtures, conductors, devices, and transformers installed on public ways shall be constructed in accordance with applicable sections of the National Electrical Safety Code, the National Electrical Code of the National Fire Protection Association and in addition to other requirements of this code of ordinances.
(C.O. 404-9; a. Ord. No. 127-1966, eff. May 6, 1966; reordained as C.M.C. 404-9, eff. Jan. 1, 1972)

Sec. 404-10. Marking and Painting of Poles.

All poles now standing or hereafter erected for the support of electric light or power wires shall be identified by a suitable tag approved by the director of public works. Steel poles used for distribution purposes and mounting of street lighting equipment shall be painted the color and at such intervals as specified by the director of public works.1
(C.O. 404-10; a. Ord. No. 127-1966, eff. May 6, 1966; reordained as C.M.C. 404-10, eff. Jan. 1, 1972; a. Ord. No. 335-1978, eff. Sept. 1, 1978)

Sec. 404-11. Right of Other Companies to Use Poles.

The person, company, or corporation erecting any such lines of poles, masts, towers, or supports shall, upon the payment to them of a fair proportion of the original cost of erection of the portion to be so occupied and possessed, and a monthly rental equivalent to a fair proportion of the cost of erection and maintenance of the portion to be so occupied and possessed, permit any other person, company or corporation to occupy and possess equal rights and privileges thereon, if such poles have not already a full complement of wires as determined by the director of public works.
(C.O. 404-11; reordained as C.M.C. 404-11, eff. Jan. 1, 1972; a. Ord. No. 335-1978, eff. Sept. 1, 10781

Sec. 404-13. Location of Pole to be Approved.

The exact location and erection of all poles, masts, towers, or supports proposed to be erected by any persons, company or corporation shall be subject to the approval of the director of public works, who shall have the right to order and enforce a change of location of any poles, masts, towers, or supports. The occupation of any new streets hereafter opened shall be upon a plan to be submitted by such persons, company or corporation and approved by the director of public works.
(C.O. 404-13; reordained as C.M.C. 404-13, eff. Jan. 1, 1972; a. Ord. No. 335-1978, eff. Sept. 1, 1978)

Sec. 404-14. Special Permit Where Poles Impractical.

Whenever it shall become necessary to string wires or electrical conductors to any point not on the main line, and where it is impractical to erect and maintain the posts, masts, towers, or supports required herein, it shall be done only upon special permission,

upon a plan approved by the director of public works, which plan and approval shall be filed with the application.
(C.O. 404-14; reordained as C.M.C. 404-14, eff. Jan. 1, 1972; a. Ord. No. 335-1978, eff. Sept. 1, 1978)

Sec. 404-15. Maximum Price of Current to be Specified.

Any ordinance granting authority to any person, company or corporation to go into operation under the provisions hereof, shall distinctly specify and indicate the maximum price at which electricity is to be applied to public and private consumers for either lighting or power purposes.
(C.O. 404-15; reordained as C.M.C. 404-15, eff. Jan. 1, 1972)

Sec. 404-29. Height of Street Light Luminaries.

The minimum mounting in height for luminaries shall be 9 feet above sidewalk areas and 16 feet above roadways.
(C.O. 404-29; a. Ord. No. 127-1966, eff. May 6, 1966; reordained as C.M.C. 404-29, eff. Jan. 1, 1972)

Sec. 404-33. Removal Or Unused Wires and Equipment.

Distribution wires and poles and other appurtenant structures no longer in use, and for which there is no immediate prospect of future use, shall be removed.
(C.O. 404-33; a. Ord. No. 127-1966, eff. May 6, 1966; reordained as C.M.C. 404-33, eff. Jan. 1, 1972)

Sec. 404-34. Outdoor Wiring Inspections.

The director of public works may at any time inspect new construction of facilities erected for the distribution of electric power and may require alterations in such construction in the interest of safety or general welfare.
(C.O. 404-34; a. Ord. No. 127-1966, eff. May 6, 1968; reordained as C.M.C. 404-34, eff. Jan. 1, 1972; a. Ord. No; 336-1978, eff. Sept. 1, 1978)

Sec. 404-35. Lineman Identification.

Every lineman must have a photograph identification issued by the company by whom the lineman is employed, showing employment classification and employee number, and, in case of fire, this identification shall serve as a pass to admit the lineman within fire lines.
(C.O. 404-35; a. Ord. No. 127-1966, eff. May 6, 1966; reordained as C.M.C. 404-35, eff. Jan. 1, 1972)

Sec. 404-37. Most Modern Protective Devices to be Used.

Any and all persons, companies, or corporations operating under this chapter shall be required to adopt the most modern and approved devices for the protection of users of electric light against injury to persons or property, which may result from the construction, maintenance, or operation of their plant, and shall hold the city harmless from any liability for damage done to person or property.
(C.O. 404-37; reordained as C.M.C. 404-37, eff. Jan. 1, 1972)

Sec. 404-38. Underground Conduits or Conductors to be Installed.

Any person, company or corporation shall, whenever directed to do so by the director of public works, install wires through underground conduits or install conductors underground in a manner approved by the director of public works and shall hold the city harm-

less in the matter of any claims for damages or injuries on account of being required to so carry wires or conductors underground.
(C.O. 404-38; a. Ord. No. 127-1966, eff. May 6, 1966; reordained as C.M.C. 404-38, eff. Jan. 1, 1972; a. Ord. No. 336-1978, eff. Sept. 1, 1978)

Cross reference—Penalty, § 404-99.

Sec. 404-40. Deposit of Poles on Street.

Poles must not be deposited on the streets more than two days previous to their erection.
(C.O. 404-40; reordained as C.M.C. 40440, eff. Jan. 1, 1972)

Cross reference—Penalty, § 404-99.

Sec. 404-41. Poles Prohibited in Conduit Areas.

No person, company or corporation engaged in the business of supplying electricity for light, heat or power purposes, under the provisions of this chapter, shall erect a carrying pole within that portion of the city where subways or conduits have been constructed, unless such pole is required for the purpose of distributing wires from such subway or conduit to the consumer. Such pole shall be located in an alley, if practicable.
(C.O. 404-41; reordained as C.M.C. 404-41, eff. Jan. 1, 1972)

Cross reference—Penalty, § 404-99.

Sec. 404-42. National Electric Code.

All interior wiring shall comply with and conform to the rules and requirements of the current issue of the National Electric Code adopted by the American Insurance Association and used by the Ohio Inspection Bureau.
(C.O. 404-42; reordained as C.M.C. 404-42, eff. Jan. 1, 1972)

Sec. 404-43. Bond.

Any person, company or corporation desiring to engage in the business of lighting by electricity under the provisions of this chapter shall, as a condition precedent to the consideration of such application, execute a good and sufficient bond in the sum of $60,000, conditioned to carry out and faithfully execute all the provisions contained in this chapter, and also conditioned to save the city harmless from any liability accruing through injury to life or property in the construction, maintenance and operation of such business. The bond shall be approved by the city solicitor as to form and by the city manager as to sufficiency.
(C.O. 404-43; reordained as C.M.C. 404-43, eff. Jan. 1, 1972

Sec. 404-44. Deposit for Street Restoration.

Any person, company or corporation desiring to operate under the provisions of this chapter shall first deposit with the city treasurer a sum sufficient in the judgment of the city manager to defray the cost of restoring the pavements removed to their former condition.
(C.O. 404-44; reordained as C.M.C. 404-44, eff. Jan. 1, 1972)

Sec. 404-46. Enforcement Authorization.

In case of a persistent and continuous violation of the requirement of this chapter, and in cases of dangerous necessity, the city manager is authorized to instruct the police or the director of public works to cut out lights or to cut out the current in the locality concerned, and to enforce the discontinuance of all rights until the provisions of this chapter are complied with.
(C.O. 404-46; reordained as C.M.C. 404-46, eff. Jan. 1, 1972; a. Ord. No. 335-1978, eff. Sept. 1, 1978)

Sec. 404-50. Involuntary Shutoff.

(a) No public utility company shall discontinue electric service for nonpayment of electric bill or bills without giving the customer

in default, whether or not such customer be a landlord, owner or others, at least seven calendar days prior written notice; such notice shall contain a written warning to such customer advising that it is such customer's duty to warn an occupant of each household unit affected by such termination. Any notice required by this section shall include paragraph (f) of this section.

(b) Within 24 hours after receipt of such notice from the public utility company, such customer in default shall cause to be delivered to an occupant of each household unit affected by such termination, by physical delivery or by mailing, a notice that such electric service will be terminated and the indicated date of such termination, or by posting such notice in the common hallways on each floor of said dwelling.

(c) For purposes of this section, "household unit" is defined as one room, or a suite of two or more rooms, with sanitary facilities in a dwelling, designed for or used by a family for living and sleeping purposes, with or without cooking facilities. For purposes of this section, "family" is defined as an individual, or any number of individuals who live together in a single household unit.

(d) Any such customer responsible for the payment of charges for electric service, who causes the discontinuance of that service by failure or refusal to pay the charges for past service, or who willfully causes service to be disconnected, except while repairs are in progress or during temporary emergencies, shall be liable for compensatory damages to any tenant who is denied benefits of electric service so disconnected.

(e) If the customer in default is a landlord responsible for payment of electric service, the tenant may ensure continuation of electric service by paying the full amount of the customer's current bill. The tenant shall have the right to deduct the amount of such payment from any future payment of rent.

(f) Written notice to customers prior to termination of electric service for reason of nonpayment shall contain the following notice:

IF YOU ARE A LANDLORD, PLEASE NOTE

If the company is aware that you have tenants living in the premises affected by this final notice on your account, the company will notify these tenants that they may assure continued service by payment of your current bill. Depending on local law, these tenants may deduct amounts paid toward your bill from their rent payment, and you may be liable for civil remedies or criminal penalties if you fail to notify tenants of impending loss of service.
(C.M.C. 404-50; ordained by Ord. No. 573-1972, eff. Jan. 19, 1973; a. Ord. No. 75-1979, eff. Mar. 2, 1979; a. Ord. No. 185-1979, eff. May 9, 1979; a. Ord. No. 204-1981, eff. May 28, 1981)

Sec. 404-99. Penalties.

Any person or company who violates any provision of this chapter, or refuses to make such alterations and repairs in their present or future constructions as may be demanded in conformity with the provisions of this chapter, shall for a first offense be fined not more than $500, and for a second or subsequent offense shall be fined not more than $500, or be imprisoned for not more than 60 days, or both.

Any violation shall also operate, ipso facto, as a revocation of all permits, rights, and franchises granted to the company or person held guilty of such violation or refusal.
(C.O. 404-45; a. Ord. No. 414-1970, eff. Dec. 23, 1970; renumbered to C.M.C. 404-99, eff.

Jan. 1, 1972; a. Ord. No. 75-1979, eff. Mar. 2, 1979; a. Ord. No. 185-1979, eff. May 9, 1979)

Chapter 405

TELEGRAPH AND TELEPHONE

Sec. 405. General.
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Sec. 405-22. Registration of Public Pay Telephones.
Sec. 405-23. Public Nuisance, Removal of Public Pay Telephones.
Sec. 405-24. Appeal from Order Requiring Removal or Modification of a Public Pay Telephone.
Sec. 405-25. Underground Wiring.
Sec. 405-99. Penalty.

Sec. 405. General.

The operation of any telephone, telegraph, burglar alarm, fire alarm, district messenger or signaling system business shall be subject to the provisions of this chapter.
(C.O. 405; reordained as C.M.C. 405, eff. Jan. 1, 1972)

Sec. 405-1. Franchise Period.

A grant to occupy the streets, lanes, and public grounds of the city of Cincinnati for the purpose of erecting and maintaining poles, wires, fixtures, brackets, and supports for the necessary wires thereon shall be for such period of time as council shall determine at the date of the passage of any special ordinance.
(C.O. 405-1; reordained as C.M.C. 405-1, eff. Jan. 1, 1972)

Sec. 405-3. Permits for Holes.

No excavation or hole shall be made in any street, alley, or public place for the purpose of erecting poles or fixtures for supporting telephone, telegraph, messenger-call, burglar-alarm or signaling wires without first obtaining a permit from the director of public works.
(C.O. 405-2; renumbered to C.M.C. 405-3, eff. Jan. 1, 1972; a. Ord. No. 335-1978, eff. Sept. 1, 1978)
Cross reference—Penalty, § 902-5.

Sec. 405-5. Inspection of Fixtures.

No pole or fixture shall be erected in any street, alley or public place until the location and erection have been approved by the director of public works.
(C.O. 405-3; renumbered to C.M.C. 405-5, eff. Jan. 1, 1972; a. Ord. No. 335-1978, eff. Sept. 1, 1978)
Cross reference—Penalty, § 902-5.

Sec. 405-7. Uniform Height of Poles and Wires.

Poles shall be of uniform height, and wires shall be kept at a uniform height along the street and in connections to buildings.
(C.O. 405-8; renumbered to C.M.C. 405-7, eff. Jan. 1, 1972)

Sec. 405-9. Unnecessary Poles and Fixtures.

No poles or fixtures shall be erected or permitted to remain on streets or housetops except such as are absolutely necessary for the maintenance of the wires.
(C.O. 405-12; renumbered to C.M.C. 405-9, eff. Jan. 1, 1972)
Cross reference—Penalty, § 902-5.

Sec. 405-11. Removal of Disused Building Wires.

All wires running to buildings are to be removed at the time of their disuse as far as the first pole or fixture to which they are attached.
(C.O. 405-14; renumbered to C.M.C. 405-11, eff. Jan. 1, 1972)
Cross reference—Penalty, § 902-5.

Sec. 405-13. Removal of Disused Poles, Fixtures, Wires, etc.

All dead or disused poles, wires and fixtures must be removed from streets or housetops within 15 days after they are dead or abandoned, except where it is positively known that they are to be used again within 90 days.
(C.O. 405-15; renumbered to C.M.C. 405-13, eff. Jan. 1, 1972)
Cross reference—Penalty, § 902-5.

Sec. 405-15. Removal of Guy Wires.

All guy or stay-wires must be removed the same as dead wires when they become unnecessary for the maintenance of the lines.

Under no circumstances are wires with loose ends to be left hanging from any pole, fixture, building, or other object.
(C.O. 405-17; renumbered to C.M.C. 405-15, eff. Jan. 1, 1972)

Cross reference—Penalty, § 902-5.

Sec. 405-17. Report to Director as to Alterations and Extensions.

Any person, company, or firm making any alterations, additions, or extensions to poles, wires, or fixtures shall file quarterly with the director of public works a statement and plan showing the nature and location of such alterations, additions or extensions.
(C.O. 405-18; renumbered to C.M.C. 405-17, eff. Jan. 1, 1972; a. Ord. No. 335-1978, eff. Sept. 1, 1978)

Cross reference—Penalty, § 902-5.

Sec. 405-19. Complete Maps to be Filed with Director.

Complete plans and maps of each and every route, showing all wires, poles, polelines, and fixtures used for fire and burglar alarm, messenger-call, and signaling purposes, shall be filed with the director of public works by the person or company operating such route, and no change shall be made in such wires, poles or fixtures without a permit therefor from the director of public works as set forth in Section 405-3.
(C.O. 405-19; reordained as C.M.C. 405-19, eff. Jan. 1, 1972; a. Ord. No. 335-1978, eff. Sept. 1, 1978)

Sec. 405-21. Communications Systems, Installation and Operation.

Any person, firm or corporation engaged in telephone, telegraph, burglar alarm, district messenger or signaling system business shall comply with and conform to the rules and requirements of the current issue of the National Electric Code and the National Electric Safety Code, as they exist at the time of passage of the ordinance.
(Sec. 405-21; ordained by Ord. No. 392-1966, eff. Nov. 25, 1966; reordained as C.M.C. 405-21; eff. Jan. 1, 1972)

Cross reference—Penalty, § 902-5.

Sec. 405-22. Registration of Public Pay Telephones.

DEFINITIONS. As used in Sections 405-22, 405-23, 405-24, and 405-25 of the Cincinnati Municipal Code the following phrases have the following meanings:

"Public Pay Telephone" means any self-service, coin-operated or credit card-operated telephone within the city of Cincinnati which is available for the use by the general public, whether on publicly owned or private property, is located outside, is free standing, attached to a wall, or on a pedestal, or is outside and in a booth or sheltered by a kiosk.

(a) No person shall install or operate a public pay telephone unless said phone is properly permitted by the city of Cincinnati. The owner of the telephone shall obtain a permit authorizing the installation and continued use of the phone from the director of public works. Business operators, property owners maintaining a public pay telephone, phone vendors, and recognized community groups may communicate to the department of safety any use or abuse of a public pay telephone which may constitute a nuisance as defined herein. Upon notification, the department of safety shall take appropriate action to abate the nuisance.

1. With the passage of this ordinance all existing legally installed public pay telephones shall require a permit which shall be issued by the director of public

works. The cost incurred for the issuance of these permits shall be absorbed by the City. The City shall issue one permit to each owner based on a list of existing, legally installed pay phones provided to the City. Should the list contain a phone not legally installed, the owner shall be charged three times the initial permit fee in effect when the discrepancy is discovered. The owner of any public pay telephone installed after the passage of this ordinance shall pay the fees as required herein.

The permits issued pursuant to this section shall have no expiration; they are, however, subject to removal pursuant to section 405-23.

2. Prior to issuing a public pay telephone permit, the director of public works shall cause notice of the application to be sent to the affected recognized community council. The director shall provide the community council thirty (30) days to express its views on the application.

3. The initial permit fee for public pay telephones shall be $125.00.

Subsequent to January 1, 1996, the city manager may adjust initial permit fees based upon costs. The applicant must obtain a street opening permit if the phone, or its appurtenances, cut or drill into the public right-of-way. Notwithstanding anything else in this chapter there will be no telephone permit fee for a public pay telephone installed at the request of the City of Cincinnati. If more than forty-five (45) days elapse between the time of the filing of an application and the decision of the City to grant or deny the application, then the City shall waive the permit fee. The forty-five (45) day requirement shall be stayed if a recognized community group or neighborhood business association files an appeal pursuant to Section 405-24.

4. All permit fees received pursuant to Section 405-22 of the Cincinnati Municipal Code shall be deposited into the general fund.

(b) To obtain a permit for a public pay telephone, the owner of the telephone shall submit a registration form to the director of public works containing the following information:

(1) The name, address, and telephone number of the owner;

(2) The name, address, and telephone number of an individual on whom the city may serve any order required by Chapter 405 of the Cincinnati Municipal Code.

(3) The location of each public pay telephone and the dimensions of any outdoor telephone enclosure for which the registration is being made;

(4) A description of the services provided to users of the public pay telephone, including any special telephone service features;

(5) A certification that the proposed public pay telephone or telephones will be in compliance with all relevant Ohio Public Utility Commission regulations.

(c) One registration form may be submitted to include any number of public pay telephones and shall be signed by the owner.

(d) The owner shall promptly notify the director of public works, in writing, of any change in the information required by division (b) of this section.

(e) Upon receipt of the information filed pursuant to division (b) of this section, with the concurrence of the safety director who shall consider potential nuisance and criminal activity, and payment of the required fee to the director of public works, the director shall provide written verification to the owner that the public pay telephones identified on the form have been registered with the city.

(Ordained by Ord. No. 274-1995, eff. Sept. 1, 1995)

Sec. 405-23. Public Nuisance, Removal of Public Pay Telephones.

(a) Upon request of any member of council, recognized neighborhood community council, neighborhood business association, or upon receipt of a citizen complaint concerning any public pay telephone, the director of safety, or the director's designee, shall conduct an investigation to determine whether the installation, maintenance, or use of the public pay telephone constitutes a public nuisance.

Upon a determination by the director of safety that a particular public pay telephone, which has been registered pursuant to Section 405-22, constitutes a public nuisance, the director shall order that the telephone be either removed or that special service features be installed to abate the nuisance. Upon a determination by the safety director that a public pay telephone is a nuisance, the safety director shall immediately notify the director of public works.

(b) A particular public pay telephone shall constitute a public nuisance when the director of safety, or the director's designee, determines that one or more of the following conditions exist:

(1) The public pay telephone has been used in the commission of illegal or criminal activity.

(2) The existence of the public pay telephone has resulted in the congregation of persons who have made loud noises or other disturbances which have disrupted persons residing near the telephone, or disrupted business enterprises located near the telephone, or have interfered with ingress to or egress from a building or parking lot.

(3) The existence of the public pay telephone has resulted in the congregation of persons who have interfered with pedestrian or vehicular traffic in the public right-of-way near the telephone.

(4) Usage of the public pay telephone between the hours of 11:00 P.M. and 8:00 A.M. is significantly and repeatedly above normal usage for similarly situated public pay telephones during the same hours so as to indicate that the telephone is being used in the commission of illegal or criminal activity. Pursuant to this subsection the owner or operator of any public pay telephone shall keep and provide the safety director with the hourly usage of any public pay telephone upon request.

(5) The public pay telephone has been used to abuse the 911 system.

(6) The owner of the public pay telephone has failed to keep the phone and its appurtenances clean, free of graffiti, and in good repair.

(c) Upon a determination by the safety director that a public pay telephone is a nuisance and should be removed, the director of public works shall immediately notify the permit holder of the telephone in writing by certified mail to the address listed on the permit. Subject to Section 405-24, the owner shall remove the public pay telephone within five (5) working days of the notice from the director of public works to remove the telephone issued pursuant to division (a) of Section 405-22, and shall restore the property as ordered by the director of public works.

(d) Subject to Section 405-24, the owner shall limit the phone service to outgoing calls only and/or install any other special telephone service features within five (5) working days of the notice from the director of public works to install such special telephone services. Should the special telephone service feature which the director orders to be placed on the public pay telephone require the approval of the Ohio Public Utility Commission, then the owner will immediately apply to the commission for said approval.

(e) Subject to Section 405-24, if the total number of public pay telephones in an area must be reduced in order to abate a public nuisance declared by the director of safety pursuant to division (a) of this section, the determination as to the order in which an outdoor public pay telephone or telephones must be removed shall be based upon the total period of time that a telephone has been registered with the city pursuant to Section 405-22, with the telephone with the shortest registration period being removed first.

(f) Any public pay telephone which is not removed within five (5) working days of an order to remove the telephone, or any public pay telephone which is not serviced within five (5) working days of an order to install special services, pursuant to this section, shall be subject to immediate removal by the city at the owner's expense. The owner shall reimburse the city for the cost of removing and storing the telephone before the telephone may be reclaimed by the owner. Such costs shall also include the cost of removing any installation ancillary to the public pay telephone and the cost of restoring the property as ordered by the director of public works.

(g) If the safety director determines, over the objection of a recognized community council or neighborhood business association that a public pay telephone may be installed, needs a modification, or may remain in place the director of public works shall immediately notify the recognized community group or neighborhood business association of the decision of the safety director.

(h) The city manager is authorized to establish additional regulations regarding the placement of outdoor public pay telephones and additional criteria for the safety director's use in determining when a public telephone constitutes a nuisance.
(Ordained by Ord. No. 274-1995, eff. Sept. 1, 1995)

Sec. 405-24. Appeal From Order Requiring Removal or Modification of a Public Pay Telephone.

(a) The owner of a public pay telephone, any recognized community council, or neighborhood business association may appeal any order issued by the safety director pursuant to Section 405-23 to the city solicitor within five (5) working days after issuance of the director of public works' order.

The solicitor, or the solicitor's designee, shall commence to hear the merits of an appeal within thirty (30) days of the filing of an appeal. The solicitor, or the solicitor's designee, shall render a decision within ten (10) days of the date of the hearing, which decision may affirm, disaffirm, or grant ex-

ceptions from the order. If the solicitor, or the solicitor's designee, affirms a determination of the safety director, the owner shall have three (3) working days to remove or make the service changes to the public pay telephone in question. If the owner fails to correct the violations within that time, the public pay telephone may be removed by the director of public works at the owner's cost. Such costs shall include the cost of removing and storing the telephone, the cost of removing any installation ancillary to the telephone, and the cost of restoring the property to its original condition.

(b) Nothing in this chapter shall be read so as to limit the authority of the Ohio Public Utilities Commission to regulate public pay telephones within the city of Cincinnati.
(Ordained by Ord. No. 274-1995, eff. Sept. 1, 1995)

Sec. 405-25. Underground Wiring.

All public pay telephones on public property shall be served solely by underground electrical conduits. Notwithstanding the aforesaid, a public pay telephone attached to a building and overhanging the right-of-way may, with the concurrence of the director of public works, be served by wiring through a wall. Any person installing a public pay telephone on public property, served by underground electrical conduits must maintain a certificate of full participatory membership to the Ohio Utilities Protection Service, including any documentation relevant to the member's notification area as requested by the director of public works.
(Ordained by Ord. No. 274-1995, eff. Sept. 1, 1995)

Sec. 405-99. Penalty.

Whoever violates Sections 405-22, 405-23, 405-24, and 405-25 shall, on the first offense, be guilty of a minor misdemeanor. If the offender has been previously convicted of violating any section in this chapter then, upon the subsequent conviction, offender shall be guilty of a fourth degree misdemeanor.
(Ordained by Ord. No. 274-1995, eff. Sept. 1, 1995)

Chapter 406

MOTOR BUSES*

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*__Cross reference—__Traffic code, tit. V.

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Sec. 406. General.

The operation of motor buses in the city of Cincinnati by a motor transportation company having a franchise contract with the city shall be governed by the terms and conditions of the franchise ordinance and any amendment thereof or supplement thereto. The operation of other motor transportation companies shall be governed by the provisions of this chapter. All motor transportation companies shall be subject to the regulatory sections of this chapter having to do with vehicle requirements, safe operation and the convenience and comfort of passengers.
(C.O. 406; reordained as C.M.C. 406, eff. Jan. 1, 1972)

Sec. 406-1. Definitions.

For the purpose of this chapter the words and phrases defined in the sections hereunder shall have the meanings therein respectively ascribed to them, unless a different meaning is clearly indicated by the context.
(C.O. 406-1a; renumbered to C.M.C. 406-1, eff. Jan. 1, 1972)

Sec. 406-1-D. Director.

"Director" shall mean the director of public utilities.
(C.O. 406-1c; renumbered to C.M.C. 406-1-D, eff. Jan. 1, 1972)

Sec. 406-1-D1. Division of Air Pollution Control.

"Division of air pollution control" shall mean the division of air pollution control of the department of sewers.
(Sec. 406-1-D1; ordained by Ord. No. 302-1971, eff. Oct. 1, 1971; reordained as C.M.C. 406-1-D1, eff. Jan. 1, 1972)

Cross reference—Environmental code, tit. X.

Sec. 406-1-F. Fixed Termini.

"Fixed termini" shall mean the points between which any motor transportation company usually or ordinarily operates or manages any motor-propelled vehicle.
(C.O. 406-1b; renumbered to C.M.C. 406-1-F, eff. Jan. 1, 1972)

Sec. 406-1-M. Motor Transportation Company.

"Motor transportation company" shall mean every person, corporation, company, firm, co-partnership, voluntary association or joint stock company, their lessees, trustees, receivers or trustees, appointed by any court whatsoever, owning, controlling, operating or maintaining any motor-propelled vehicle not usually operated on or over rails, used in the business of transportation of persons as a common carrier, for compensation, over any public highway in the city of Cincinnati; provided, however, that the term "motor transportation company" shall not include any person or persons, firm or firms, co-partnership or voluntary association, joint stock corporations, company or corporation wherever organized or incorporated, insofar as they own, control, operate or manage motor vehicles used exclusively for the transportation of property, taxicabs, automobiles kept for hire, hotel buses, school buses, sight-seeing buses, funeral cars, public coaches, driverless autos and buses owned and used exclusively in the promotion of city and suburban home development, or in so far as they own, control, operate or manage motor-propelled vehicles, the major use of which is for the private business of the owners, and the use of which for hire is casual or disassociated from such business.
(C.O. 406-1a; renumbered to C.M.C. 406-1-M, eff. Jan. 1, 1972)

Sec. 406-1-P. Public Bus; Motor Bus.

"Public bus" or "motor bus" shall mean a motor-propelled vehicle used and operated by a motor transportation company as herein defined.
(C.O. 406-1a; renumbered to C.M.C. 406-1-P, eff. Jan. 1, 1972)

Sec. 406-1-R. Regular Route.

"Regular route" shall mean the portion of the public highways over which any motor transportation company usually or ordinarily operates or manages any motor-propelled vehicle.
(C.O. 406-1b; renumbered to C.M.C. 406-1-R, eff. Jan. 1, 1972)

Sec. 406-3. Authority to Operate.

No motor transportation company may operate over the streets of the city of Cincinnati unless it has first obtained a certificate of convenience and necessity from the public utilities commission of Ohio, or a certificate of authority from the city of Cincinnati for each route.
(C.O. 406-2; renumbered to C.M.C. 406-3, eff. Jan. 1, 1972)

Cross reference—Penalty, § 406-999.

Sec. 406-5. Certificate of Authority.

No motor transportation company whose motor vehicles are operated exclusively within the territorial limits of the city of Cincinnati, or within such limits and the territorial limits of municipal corporations immediately contiguous to said city of Cincinnati, may operate such motor transportation company without first having obtained a certificate of authority to do so, and having paid fees as provided by this chapter. A separate certificate of authority shall be obtained for each separate and distinct route operated by a motor transportation company.
(C.O. 406-3; renumbered to C.M.C. 406-5, eff. Jan. 1, 1972)

Cross reference—Penalty, § 406-99.

Sec. 406-7. Local Passengers on State-Licensed Routes.

No motor transportation company, as such is defined in Section 4901.01 of the Ohio Revised Code, all or a part of whose motor vehicles operate within the city of Cincinnati by virtue of certificate declaring that public convenience and necessity require such operation, issued by the public utilities commission of Ohio, by virtue of Section 4921.10 of the Ohio Revised Code, may carry passengers whose complete ride is wholly within such territorial limits and the territorial limits of municipal corporations immediately contiguous to said city of Cincinnati, unless such motor transportation company first obtains from the director a permit to do so, and in addition, the consent of the council. A separate permit and consent of council shall be obtained for each separate and distinct route operated by a motor transportation company.
(C.O. 406-5; renumbered to C.M.C. 406-7, eff. Jan. 1, 1972)

Cross reference—Penalty, § 406-999.

Sec. 406-9. Interurban Company with Local Lines.

Every motor transportation company as defined by Section 4901.01 of the Ohio Revised Code which operates one or more of its vehicles on trips entirely within the territorial limits of the city of Cincinnati, or within such limits and the territorial limits of municipal corporations immediately contiguous to the city of Cincinnati, in addition to other vehicles or trips that operate on the same route and then continue beyond said corporate limits under authority of a certificate of public convenience and necessity issued by the public utilities commission of Ohio, shall obtain a certificate of authority, and shall pay

fees as provided herein, for those certain vehicles or trips that operate solely within said municipal corporation limits.
(C.O. 406-6; renumbered to C.M.C. 406-9, eff. Jan. 1, 1972)

Cross reference—Penalty, § 406-999.

Sec. 406-11. Application for Certificate of Authority.

Application for certificate of authority or permit, under this chapter, by any motor transportation company, shall be made in writing to the director, setting forth upon oath the following:

(a) A statement showing the principal office or place of business of the applicant.

(b) A statement giving full information concerning the physical property used or to be used by the applicant.

(c) The make and name of the manufacturer of the motor buses to be used.

(d) The state vehicle license numbers of such motor buses.

(e) The factory number of such motor buses and the year of their manufacture.

(f) The name of the owner or owners of such motor buses and a copy of any mortgage, conditional sale contract, or agreement, relating to such motor buses.

(g) The seating capacity of such motor buses.

(h) A complete statement of the proposed routes over which the applicant desires to operate.

(i) The proposed time schedule or schedules or timecards of the applicant.

(j) The proposed tariff showing the passenger rates to be charged between the several points.

(k) A suitable sketch map showing the route over which the applicant desires to operate.

(l) Copy of partnership agreement, if more than one person interested and not incorporated, or, if a corporation, the names of the officers of said corporation.

(m) The capital stock of applicant, if it is a corporation.

(C.O. 406-8; renumbered to C.M.C. 406-11, eff. Jan. 1, 1972)

Sec. 406-13. Certificate; Terms and Conditions.

The director shall consider the application and grant or refuse it in whole or in part. If the application, or any amendment thereof, is granted, the director shall make an order specifying the terms and conditions under which the certificate of authority or permit will be granted and the fees to be collected by the treasurer, and thereupon shall notify the city treasurer, who shall collect fees as certified by the director.
(C.O. 406-9; renumbered to C.M.C. 406-13, eff. Jan. 1, 1972)

Sec. 406-15. Refusal of Certificate.

Upon the refusal of the director to grant an application in whole or in part, the applicant shall be notified of such action by the director, by registered letter addressed to the address of the applicant as shown in the application; and in case of failure to grant the application in whole or in part, the applicant shall have the right to amend, modify or alter the application, by filing with the director an amendment thereof, which amendment shall be considered by the director in the same manner as provided in the case of an original application.
(C.O. 406-10; renumbered to C.M.C. 406-15, eff. Jan. 1, 1972)

Sec. 406-17. Certificate to Issue Only After Investigation.

Certificates of authority under Sections 406-5, 406-9, 406-13 and 406-15, and permits under Sections 406-7, 406-13 and 406-15 shall be granted only after the director has investigated the conditions and has made a finding that the public convenience and necessity require the operation applied for.
(C.O. 406-11; renumbered to C.M.C. 406-17, eff. Jan. 1, 1972)

Sec. 406-19. Operating Schedules and Fees.

The director shall approve for the period from the date of beginning of operation of route, until the first day of April, or October, next succeeding, the schedules of each motor transportation company operating buses wholly within the city of Cincinnati, or wholly within the city of Cincinnati and municipalities immediately contiguous thereto, and shall determine therefrom the total bus hours of operation of such company within the city of Cincinnati for such period, a bus hour being one hour's operation for one bus.

Thereafter, on or before the first day of April or October, the director shall approve for the succeeding six months the schedules of such companies and determine therefrom the total bus hours of operation within the city of Cincinnati of each of said companies for each such 6-month period. The fee payable by each such company shall be at the rate of 8 cents for each bus hour operation. Such fees shall be credited to the public service fund and shall be in addition to all state license fees on motor vehicles.
(C.O. 406-13; a. Ord. No. 265-1962, eff. Aug. 4, 1962; a. Ord. No. 90-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 406-19, eff. Jan. 1, 1972)

Sec. 406-21. Change in Schedules.

Whenever in the course of the period for which the fees have been paid by any company the operating schedules shall be changed so as to increase the bus hours of operation for the period, such company shall forthwith pay the extra amount payable in accordance with Section 406-19. In case of a change of schedule involving a reduction in bus hours, allowance shall be made for such reduction by way of a credit on the fees for the succeeding 6-month period. No fee shall in any event be refunded in cash except by ordinance.
(C.O. 406-14; renumbered to C.M.C. 406-21, eff. Jan. 1, 1972)

Sec. 406-23. Annual Fee Option.

In lieu of the fees provided for in Sections 406-19 and 406-21, any motor transportation company operating buses seating 24 passengers or less shall have the option of paying semi-annually on the first days of April and October annual fees as follows:

(a) For each motor-propelled vehicle seating 7 passengers or less, $40.

(b) For each motor-propelled vehicle seating more than 7 but not more than 12 passengers, $90.

(c) For each motor-propelled vehicle seating more than 12 but not more than 18 passengers, $140.

(d) For each motor-propelled vehicle seating more than 18 but not more than 24 passengers, $180.

(C.O. 406-15; renumbered to C.M.C. 406-23, eff. Jan. 1, 1972)

Sec. 406-25. Temporary Permit.

In case of emergency or unusual temporary demand for transportation, the director may issue temporary permits for the day or period. No fee shall be charged for such permits.
(C.O. 406-16; renumbered to C.M.C. 406-25, eff. Jan. 1, 1972)

Sec. 406-27. Revocation of Certificate.

If the director finds that any motor transportation company is not giving reasonable service to the patrons along its route, the company may be given by the director 60 days' notice to place in operation additional transportation facilities. At the conclusion of the 60 days, if the company has not done as directed, and has not, in the opinion of the director, furnished patrons along its route reasonable service, then the certificate of authority or permit granted such motor transportation company may be revoked by the director.
(C.O. 406-17; renumbered to C.M.C. 406-27, eff. Jan. 1, 1972)

Sec. 406-29. Bond or Insurance.

No certificate shall be issued to any motor transportation company to operate, and it shall be unlawful for any motor transportation company to operate motor buses, or for The Cincinnati Transit Company to operate motor buses, until it shall have filed with the city treasurer a personal bond, with at least two securities approved by the city treasurer, corporate surety bond, or policy of insurance in a solvent, responsible company authorized to do business in the state of Ohio, approved by the city treasurer, in such sum or sums as set out herein, which bond, bonds, policy or policies of insurance shall insure the motor transportation company or The Cincinnati Transit Company against loss sustained by reason of the death of or injury to persons, and the loss or damage to property resulting from the negligence of such company; and such bond, bonds, policy or policies shall further provide that 10 days' notice in writing shall be given to the city treasurer of the intention to cancel such bond, bonds, policy or policies. Provided that if the city treasurer finds that any motor transportation company or The Cincinnati Transit Company has an excess of assets over liabilities of $1,000,000 or more, no sureties on a bond filed under the provisions of this chapter shall be required.

If such bond, bonds, policy, or policies are canceled during the term thereof, or in the event they should lapse for any reason, the city treasurer shall require such company to replace such bond, bonds, policy or policies with another fully complying with the requirements of this chapter, and in default thereof the certificate shall be deemed revoked. The personal bond, or surety bond or bonds, or policies of insurance, form of which is set out in Section 406-31, shall cover each motor vehicle used or to be used by such company, in the sum of $6,000, for any recovery for personal injuries by one person, and not less than $12,000 for all persons receiving personal injuries by reason of one act of negligence, on all passenger-carrying motor vehicles of 7 passenger seating capacity or less; not less than $18,000 on motor vehicles of 8 to 12 passenger seating capacity, inclusive; but not less than $24,000 on motor vehicles of 13 to 18 passenger seating capacity, inclusive; not less than $30,000 on motor vehicles of 19 to 24 passenger seating capacity, inclusive; not less than $36,000 on motor vehicles of over 24 passenger seating capacity, and in addition thereto the sum of $1,000 for damage to property of any person other than the insured.
(C.O. 406-20; renumbered to C.M.C. 406-29, eff. Jan. 1, 1972)

Sec. 406-31. Form of Bond or Policy.

The form of personal bond, surety bond, or policy or policies of insurance shall be substantially as follows:

Know all men by these presents:

That we, _____ of the city of Cincinnati, state of Ohio, as principal, and _____ a corporation organized and existing under and by virtue of the laws of

_____, and authorized to transact business in the state of Ohio, under the laws thereof, as surety, are held and firmly bound unto the city of Cincinnati, in the just and full sum of lawful money of the United States of America, upon each and every vehicle operated by the principal herein, in the amounts as set out in the schedule below, for the payment of which well and truly to be made, do hereby bind ourselves, our heirs, executors, administrators, successors, and assigns, severally by these presents:

Signed, sealed and dated this _____ day of _____ 19____.

This bond is written in pursuance of, and is to be construed in accordance with the ordinances of the city of Cincinnati; is to be filed with the treasurer of the city of Cincinnati for the benefit of persons who sustain damage or injury from the negligent operation of any and all motor vehicles operated by the motor transportation company (principal herein), under and by virtue of its license issued by the treasurer of the city of Cincinnati.

On each motor vehicle used for the transportation of persons, having a seating capacity of seven passengers or less:

Six thousand dollars for any recovery for personal injury by one person; and

Twelve thousand dollars for all persons receiving personal injury by reason of one act of negligence; and

One thousand dollars damage to property of any person other than the assured.

On each motor vehicle used for the transportation of persons having a seating capacity of 8 to 12 passengers, inclusive:

Six thousand dollars for any recovery for personal injury by one person; and

Eighteen thousand dollars for all persons receiving personal injury by reason of one act of negligence; and

One thousand dollars for damage to property of any person other than the assured.

On each motor vehicle used for the transportation of persons, having a seating capacity of 13 to 18 passengers, inclusive:

Six thousand dollars for any recovery for personal injury by one person; and

Twenty-four thousand dollars for all persons receiving personal injury by reason of one act of negligence; and

One thousand dollars for damage to property of any person other than the assured.

On each motor vehicle used for the transportation of persons, having a seating capacity of 19 to 24 passengers, inclusive:

Six thousand dollars for any recovery for personal injury by one person; and

Thirty thousand dollars for all passengers receiving personal injury by reason of one act of negligence; and

One thousand dollars for damage to property of any person other than the assured.

On each motor vehicle used for the transportation of persons, having a seating capacity of more than 24 passengers:

Six thousand dollars for any recovery for personal injury by reason of one act of negligence; and

Thirty-six thousand dollars for all persons receiving personal injury by reason of one act of negligence; and

One thousand dollars for damage to property of any person other than the assured.

Now, therefore, the condition of this obligation is such that if the principal, in accordance with the ordinances of the city of Cincinnati, shall pay all damages for personal injuries which may be sustained by any person, or any damage to property of any person other than the assured, by reason of any act of negligence on the part of the

principal, its agents or employees, in the operation of motor-propelled vehicles in transporting persons for compensation under the ordinances of the city of Cincinnati, then this obligation shall be void; otherwise to remain in full force and effect.

This bond may be cancelled by the surety at any time by filing written notice with the treasurer of the city of Cincinnati, stating when the cancellation shall be effective, but in no case shall such cancellation notice be effective within 10 days after the receipt of such notice by the treasurer of the city of Cincinnati.

_____
Principal

_____
Surety

(C.O. 406-21; renumbered to C.M.C. 406-31, eff. Jan. 1, 1972)

Sec. 406-33. Duties of Director.

It shall be the duty of the director to study the transportation problem in the city, to receive and investigate all complaints, and to make recommendations to council from time to time looking toward the betterment of transportation conditions.
(C.O. 406-23; renumbered to C.M.C. 406-33, eff. Jan. 1, 1972)

Sec. 406-35. Powers Over Local Lines.

The director of public utilities is vested with power and authority to supervise and regulate all motor transportation companies certificated or permitted under this chapter, prescribe a system of accounting, have access to all books and records of accounting, regulate the service and safety of operation, prescribe safety and operating regulations, and to supervise and regulate motor buses in all matters affecting relations between such motor transportation companies and the public. The director shall fix the termini for each motor transportation company certificated or permitted under this chapter, and shall also fix and determine the regular route for such company.
(C.O. 406-24; renumbered to C.M.C. 406-35, eff. Jan. 1, 1972)

Sec. 406-37. Powers Over Interurban Lines.

The director is vested with power and authority to supervise and regulate within the city of Cincinnati all motor buses operating therein by virtue of a certificate declaring that public convenience and necessity require such operation, issued by the public utilities commission of Ohio, by virtue of Section 4921.10 of the Ohio Revised Code, regulate the service and safety of operation; prescribe safety and operating regulations, and to supervise and regulate such motor buses in all matters affecting the regulations between motor transportation companies and the public. The director shall fix the route of such motor transportation companies within the limits of the city of Cincinnati. All rules and regulations prescribed and routes fixed by the director shall be subject to the continuing power of the director or council to amend, modify or supplement the terms and conditions thereof.
(C.O. 406-25; renumbered to C.M.C. 406-37, eff. Jan. 1, 1972)

Sec. 406-39. Routing of Interurban Lines.

No motor transportation company shall operate in the city of Cincinnati on any route other than the route fixed by the director by virtue of the preceding section, except in case of emergency due to an act of God or unavoidable casualty, or the route becoming temporarily impassable; and no motor transportation company shall neglect or refuse to comply with any and all regulations with respect to

the operation of such motor buses as may be established from time to time by the director.
(C.O. 406-26; renumbered to C.M.C. 406-39, eff. Jan. 1, 1972)

Cross reference—Penalty, § 406-999.

Sec. 406-41. Routing of Certified Lines.

No motor transportation company authorized under this chapter shall operate any motor bus or buses in the city of Cincinnati on any route other than the route provided for in the certificate of authority or permit, or fail or refuse to operate such motor bus or buses over the whole of the route, in the manner and at the time specified in the certificate of authority, or permit, or in other schedules approved by the director, except in cases of emergency due to an act of God or unavoidable casualty, or the route becoming temporarily impassable; and no person or corporation shall neglect or refuse to comply with any and all regulations with respect to the operation of motor buses as may be established from time to time by the director.
(C.O. 406-27; renumbered to C.M.C. 406-41, eff. Jan. 1, 1972)

Cross reference—Penalty, § 406-999.

Sec. 406-43. Time Schedules.

The director shall approve the time schedules of motor transportation companies and all changes and amendments in schedules and all superseding schedules before they are placed in effect. Failure of a motor transportation company to operate over the route set forth in the certificate of authority or to reasonably maintain such schedules, shall be cause for the revocation of the certificate of authority or permit.
(C.O. 406-29; renumbered to C. M.C. 406-43, eff. Jan. 1, 1972)

Sec. 406-45. Bus Terminals.

The city manager is hereby authorized to designate and establish, and is given the continuing power to designate and establish, upon Government Square, and on Court Street between Walnut and Main Streets, at or near railroad depots, interurban railway stations, public landings and other places of the city, public stands or portions of the public streets, alleys or public places within which it shall be lawful to leave standing such number of vehicles operated by motor transportation companies as the city manager in establishing such stands shall designate; and further that such stands shall not be occupied at any time by any other class of public vehicles or any private vehicle. Parking of more than one motor bus operating on any one motor bus line at the same time at any bus terminal is prohibited.

The city manager is hereby authorized to fix a time during which motor buses operated by virtue of a certificate of public convenience and necessity issued by the public utilities commission of Ohio may park, and how long motor buses certificated or permitted under this chapter operated by the Cincinnati Transit Company by virtue of authority granted under Ordinance No. 321-1940, or amendments or supplement thereof, may park.
(C.O. 406-30; renumbered to C.M.C. 406-45, eff. Jan. 1, 1972)

Sec. 406-47. Appeal from the Director's Decision.

The refusal or failure of the director to grant a certificate of authority or permit under this chapter, and any act, order, rule, regulation or decision of the director under any sections of this chapter shall be subject to appeal to council by the motor transportation company to which the order relates; provided that such appeal is filed with the clerk of council within five days after the promulgation of such act, order, rule, regulation or decision.

Pending such appeal, the act, order, rule, regulation or decision of the director com-

plained of, shall be suspended and the council shall determine the question so appealed, not later than 30 days after the filing of such appeal. In case of the failure of council to determine the appeal within 30 days from the time of the filing thereof, the action of the director shall go into full force and effect.
(C.O. 406-32; renumbered to C.M.C. 406-47, eff. Jan. 1, 1972)

Sec. 406-49. Vehicle Requirements.

Vehicles operated by all motor transportation companies shall:

(a) Be kept and maintained in a safe and sanitary condition.

(b) Be equipped with one outside rearview mirror on both the left and right sides of the motor bus, windshield wiper, and partition, rail or other guard to keep passengers from standing to the left of driver.

(c) Be equipped with a set of skid chains, which shall be applied to the rear wheels when necessary, except for dual-wheel buses.

(d) Be equipped with an electric signal system for the use of passengers, to be used for the purpose of indicating a stop.

(e) Be equipped with an exit door at the side and rear end thereof, or shall have a door on each side thereof, free and clear of any steering apparatus, or other obstruction. Such exit doors shall open outwardly toward the natural means of egress, and shall always be unlockable from within. But in case of left driver motor vehicles equipped with cross seats and unobstructed exit doors from each compartment on the right side, the seats will not be considered an obstruction, provided there is one exit door on left side in back of the driver's seat.

(f) Be equipped with lights within the vehicle, so arranged as to light up the interior thereof, except that portion occupied by the driver, which lights shall be lit from dusk to dawn while the bus is in regular scheduled service on its route and at terminals.

(g) Be properly heated in the winter time by means of a suitable and safe heating system.

(h) Not carry or display any advertisement of any kind on the outside thereof, except such as may be approved by the director of public utilities, upon application therefor.

(i) Have on the rear thereof an automatically operated light signal indicating when the motor bus is about to stop.

(C.O. 406-34; renumbered to C.M.C. 406-49, eff. Jan. 1, 1972; a. Ord. No. 331-1973, eff. Aug. 4, 1973)

Sec. 406-51. Unsafe Vehicles.

When the director or a subordinate has found any motor bus to be unfit or unsafe for the carrying of passengers, the operator thereof shall be notified forthwith, and such motor bus shall not be operated until it has been made fit and safe for the carrying of passengers. The director and such subordinates shall have free and ready access to all motor buses.
(C.O. 406-35; renumbered to C.M.C. 406-51, eff. Jan. 1, 1972)

Cross reference—Penalty, § 406-999.

Sec. 406-53. Numbers and Signs.

Every motor vehicle operated by a motor transportation company under certificate or permit shall have printed on the rear and on the front or both sides a serial bus number. The height of these numbers shall be at least

three inches, and they shall be of such color as will contrast distinctly with the color of the body of the vehicle.

In addition, every motor vehicle operated by a motor transportation company under certificate or permit shall carry on the front thereof a block or train number, indicating the position of the vehicle in the established schedule of the route on which it is running.

In addition, every motor vehicle operated by a motor transportation company shall carry on the front thereof a sign indicating its route or destination.
(C.O. 406-37; renumbered to C.M.C. 406-53, eff. Jan. 1, 1972)

Sec. 406-55. Lists of Vehicles.

Every motor transportation company shall keep and maintain on file in the office of the director of public utilities a list or record of all vehicles that it possesses, owns, rents, or leases, and which are operated on routes granted a certificate of authority or permit by the city of Cincinnati. Such lists or records shall contain the make, model, year, factory number, bus number, seating capacity and state vehicle license number of each vehicle. Such company shall notify the director of each change of title possession, construction, or state license number of each vehicle within three days after the change.
(C.O. 406-39; renumbered to C.M.C. 406-55, eff. Jan. 1, 1972)

Sec. 406-57. Seating and Carrying Capacity.

The seating capacity of motor buses shall be determined by allowing one passenger to each unit of 16 inches of effective seating space. The limit carrying capacity of motor buses shall in the case of single-deck buses be twice the seating capacity, and in the case of double-deck buses be the seating capacity plus one-half the seating capacity of the lower deck.

It shall be unlawful for any motor transportation company or any bus operator or conductor to carry, or permit to be carried, on any motor bus, passengers in excess of the limit carrying capacity of such motor bus, as herein determined, or to permit any passengers to stand on the upper deck, stairway, or rear platform of any double-deck bus.
(C.O. 406-40; renumbered to C.M.C. 406-57, eff. Jan. 1, 1972)

Cross reference—Penalty, § 406-999.

Sec. 406-61. Qualification of Drivers.

No person shall drive, nor shall any motor transportation company permit any person to drive a vehicle of a transportation company unless such driver has complied with all the provisions of Chapter 408 of the Cincinnati Municipal Code, and all amendments and supplements thereto, and has obtained a driver's license, and such license is in force and effect.
(C.O. 406-42; renumbered to C.M.C. 406-61, eff. Jan. 1, 1972)

Cross reference—Penalty, § 406-999.

Sec. 406-63. Operation.

All motor buses shall be operated in conformance with the ordinances of the city of Cincinnati. No driver shall permit or allow passengers or employees to stand or ride on the running board, dash board, platform, fender or any outside portion of a motor bus. No driver or operator of a motor bus shall engage in any unnecessary conversation with passengers while such motor bus is in motion. No driver or operator of a motor bus shall permit any passenger to stand in such a position that the driver's vision forward, or to the right front or left, is blocked. The driver

or operator of a motor bus shall keep the doors thereof closed at all times while the bus is in motion.
(C.O. 406-43; renumbered to C.M.C. 406-63, eff. Jan. 1, 1972)

Cross reference—Penalty, § 406-999.

Sec. 406-65. Operator to Slow Down at Dangerous Places.

Upon approaching any bridge, viaduct or sharp curve, subway, deep descent, or other dangerous place, or in traversing such bridge or other dangerous place, the driver or operator of a motor bus shall slow down and have the vehicle under complete control.
(C.O. 406-44; renumbered to C.M.C. 406-65, eff. Jan. 1, 1972)

Cross reference—Penalty, § 406-999.

Sec. 406-67. Full Stop at Railroad Crossings.

The driver of a motor bus shall bring such motor bus to a full and complete stop before crossing the track or tracks of any steam railroad, or any electric interurban railroad; such stop to be made not more than 75 feet from the nearest rail of the crossing, and at points where the clearest view of the approaching trains or locomotives or cars can be had. After making stops hereby required, the driver or operator of the motor bus shall carefully look in each direction for approaching trains or locomotive cars, and, if no train or locomotive or cars can be seen or heard approaching, shall then cross the said track or tracks with the transmission of the bus in not higher than second gear, in case of progressive or selective-type transmissions, or low gear in case of planetary transmissions.
(C.O. 406-45; renumbered to C.M.C. 406-67, eff. Jan. 1, 1972)

Cross reference—Penalty, § 406-999.

Sec. 406-69. Starting Bus After Stop.

No driver of any motor bus shall start the bus until passengers leaving the vehicle have safely alighted and passengers entering the vehicle have safely boarded.
(C.O. 406-46; renumbered to C.M.C. 406-69, eff. Jan. 1, 1972)

Cross reference—Penalty, § 406-999.

Sec. 406-71. Operator Not to Smoke.

No driver of a vehicle operated by a motor transportation company shall smoke any cigar, cigarette, tobacco, or other substance in such vehicle while driving the vehicle.
(C.O. 406-47; renumbered to C.M.C. 406-71, eff. Jan. 1, 1972)

Cross reference—Penalty, § 406-999.

Sec. 406-72. Use of Sound Receivers or Reproducers Prohibited.

No person shall use any radio receiver, television receiver, record player, tape player or other device for the reception or reproduction of sound within any motor bus. However, this prohibition shall not apply to the use of any such device in such a way that the sound received or reproduced is audible only through earphones or an earplug worn by the user; and this prohibition shall not apply to the use of any radio receiver installed or carried for the purpose of voice communication by and with the driver of a motor bus, other employee of the motor transportation company or a law enforcement officer.
(Ordained by Ord. No. 20-1980, eff. Feb. 16, 1980)

Sec. 406-73. Smoking by Passengers.

No person shall expectorate in a motor bus and no person shall smoke in a motor bus.
(C.O. 406-48; a. Ord. No. 28-1961, eff. Feb. 17, 1961; renumbered to C.M.C. 406-73; eff. Jan. 1, 1972)

Cross reference—Penalty, § 406-999-A.

Sec. 406-74. Consumption of Food and Beverages Prohibited.

No person shall consume any food, confectionery or drink on a motor bus.
(C.M.C. 406-74; ordained by Ord. No. 229-1976, eff. May 25, 1976)

Sec. 406-75. Sale of Bus Transfers.

No person shall, either as principal or agent, purchase, sell or barter any transfer ticket, check or coupon which was issued under or in compliance with any ordinance or agreement between the city of Cincinnati and any person, persons or corporation authorized to run and operate a motor bus system within the city of Cincinnati and which under any such ordinance or agreement entitled the person to whom said transfer ticket, coupon or check was issued, to ride upon a motor bus operated within the city of Cincinnati, or give away any such transfer ticket, check or coupon to any person other than the person to or for whom it was issued.
(C.O. 406-49; a. Ord. No. 47-1971, eff. Feb. 10, 1971; renumbered to C.M.C. 406-75, eff. Jan. 1, 1972)

Cross reference—Penalty, § 406-999-B.

Sec. 406-77. Unlawful Use of Transfers.

No person shall utter, or present, in payment of fare, upon any motor bus operated in the city of Cincinnati under any ordinance or agreement with the said city of Cincinnati respecting the operation of said buses and the issue of transfers thereon, any transfer ticket, check or coupon not issued to or for the person so uttering the same or presenting it in payment of fare.
(C.O. 406-50; a. Ord. No. 47-1971, eff. Feb. 10, 1971; renumbered to C.M.C. 406-77, eff. Jan. 1, 1972)

Cross reference—Penalty, § 406-999-B.

Sec. 406-79. No Vested Rights Conferred.

The city of Cincinnati reserves for cause, the right to alter, amend or repeal any ordinance granting or giving consent to a certificate of authority or permit, and reserves the right to alter, amend, change or modify the certificate of authority or permit granted under this chapter or of any ordinance supplementary or amendatory thereof, to use any route or routes on the public highways of the city of Cincinnati, and also reserves the right to revoke for cause, any certificate of authority or permit granted by virtue of this chapter or any ordinance, to any motor transportation company, and all special privileges obtained of the character set out herein shall immediately cease and terminate upon the altering, amending, or repealing of any ordinance or ordinances, or of any sections of this chapter under which such certificate of authority, permit or privilege may have been obtained or exercised, or upon the altering, modifying, extending, shortening or changing of any route or routes used by motor transportation companies, or upon the revocation of any certificate of authority, or permit, insofar as such right or rights are affected by this action.
(C.O. 406-51; renumbered to C.M.C. 406-79, eff. Jan. 1, 1972)

Sec. 406-81. Throttle Delay Control Device.

Motor buses with two-stroke cycle diesel engines and automatic transmissions shall be equipped with a properly functioning throttle delay control device set in accordance with the manufacturer's specifications.
(Sec. 406-81; ordained by Ord. No. 302-1971, eff. Oct. 1, 1971; reordained as C.M.C. 406-81, eff. Jan. 1, 1972)

Sec. 406-83. Transmission Governor.

The shift speed setting of transmission governors shall be checked every 6,000 miles and reset as required in accordance with the manufacturer's specifications.
(Sec. 406-83; ordained by Ord. No. 302-1971, eff. Oct. 1, 1971; reordained as C.M.C. 406-81, eff. Jan. 1, 1972)

Sec. 406-85. Fuel Injectors and Spray Tips.

Every diesel engine shall be equipped with injectors having a sac volume at or below the lowest sac volume available from the manufacturer of that engine. Every diesel engine shall be equipped with injector spray tips having a sac volume at or below the lowest sac volume available from the manufacturer of that engine. At the time of every injector replacement, injectors and injector spray tips having a sac volume at or below the lowest available from the manufacturer of the engine shall be installed.
(Sec. 406-85; ordained by Ord. No. 302-1971, eff. Oct. 1, 1971; reordained as C.M.C. 406-85, eff. Jan. 1, 1972)

Sec. 406-87. Stall Test.

Each automatic transmission diesel motor bus shall undergo a stall test every 6,000 miles. If the stall speed (in R.P.M.'s) is outside the range accepted as satisfactory by the manufacturer, or if visible smoke is emitted, this condition must be rectified before the motor bus is returned to service
(Sec. 406-87; ordained by Ord. No. 302-1971, eff. Oct. 1, 1971; reordained as C.M.C. 406-87, eff. Jan. 1, 1972)

Sec. 406-89. Fuel Storage Tank Filter.

All diesel fuel used by motor transportation companies shall be pumped from a fuel storage tank equipped with a disposable element filter in the dispenser hose.
(Sec. 406-89; ordained by Ord. No. 302-1971, eff. Oct. 1, 1971; reordained as C.M.C. 406-89, eff. Jan. 1, 1972)

Sec. 406-91. Fuel Storage Tank Settling Time.

No diesel fuel shall be pumped from any storage tank into a motor bus of a motor transportation company until a period of at least one hour has elapsed after delivery of fuel to that tank.
(Sec. 406-91; ordained by Ord. No. 302-1971, eff. Oct. 1, 1971; reordained as C.M.C. 406-91, eff. Jan. 1, 1972)

Sec. 406-93. Fuel Storage Tank Maintenance.

All fuel storage tanks owned or operated by motor transportation companies used for fueling motor buses operating subject to these regulations shall be emptied of water and sludge at least every 14 days.
(Sec. 406-93; ordained by Ord. No. 302-1971, eff. Oct. 1, 1971; reordained as C.M.C. 406-93, eff. Jan. 1, 1972)

Sec. 406-95. Diesel Fuel Specifications.

Fuel used in motor buses with diesel engines shall be Diesel No. 1, and shall meet the following minimum standards:

Cetane Rating	45	Min.
Pour Point, °F	0	Max.
Flash Point, °F	120	Min.
Carbon Residue (10% Bottom)%	.05	Max.
Water and Sediment	trace	Max.
Volatility		
Initial Boiling Point, °F	325	Min.
90% Condensed, °F	500	Max.
End Point, °F	550	Max.
Viscosity, SU at 100 °F, secs	34.4	Max.
Sulphur, %	0.20	Max.
Corrosion (Copper-3 hrs. at 212°F)	1A	Max.
Ash Content, %	0.01	Max.
Alkali or Mineral Acids	Neutral	
Odor	Non-offensive	

(Sec. 406-95; ordained by Ord. No. 302-1971, eff. Oct. 1, 1971; reordained as C.M.C. 406-95, eff. Jan. 1, 1972)

Sec. 406-97. Diesel Fuel Test.

Each motor transportation company shall maintain on file with the division of air pollution control an up-to-date independent laboratory test of its current diesel fuel which

shall indicate at least those characteristics specified in Section 406-95. Such laboratory tests shall be filed at least once every 12 months, and additionally whenever a new fuel type or supplier is employed.
(Sec. 406-97; ordained by Ord. No. 302-1971, eff. Oct. 1, 1971; reordained as C.M.C. 406-97, eff. Jan. 1, 1972)

Sec. 406-99. Diesel Fuel Test On Request.

Upon request from the division of air pollution control a motor transportation company must file with the division within seven days an up-to-date independent laboratory test of its current diesel fuel.
(Sec. 406-99; ordained by Ord. No. 302-1971, eff. Oct. 1, 1971; reordained as C.M.C. 406-99, eff. Jan. 1, 1972)

Sec. 406-101. Exhaust Gases.

Every motor bus shall be constructed and maintained so as to prevent the entering of exhaust gases or engine fumes into the passenger compartment. The motor and appurtenances thereof shall be operated in such a manner and maintained in such a condition as to minimize the quantity of obnoxious or harmful elements present in the engine fumes. The exhaust system shall discharge to the atmosphere at or within 15 inches forward of the rear-most part of the bus. This also applies to the exhaust of the air-conditioning equipment. Vertical exhaust pipes are prohibited where exhaust fumes are more than three feet above the street level.
(Sec. 406-101; ordained by Ord. No. 302-1971, eff. Oct. 1, 1971; reordained as C.M.C. 406-101, eff. Jan. 1, 1972)

Sec. 406-103. Daily Examination.

Every motor bus operated shall be visually examined for smoke upon its return to the garage. Any motor bus emitting excessive smoke shall be removed from service until that condition has been remedied. Each motor transportation company shall maintain a daily listing of motor bus number of those motor buses cited as emitting excess smoke.
(Sec. 406-103; ordained by Ord. No. 302-1971, eff. Oct. 1, 1971; reordained as C.M.C. 406-103, eff. Jan. 1, 1972)

Sec. 406-105. Exhaust Emission Control Inspection and Maintenance Records.

Each motor transportation company shall keep an up-to-date record of exhaust emission control inspection and maintenance operations performed for every motor bus in the fleet as required by Section 406-109, showing the date and total miles at which each inspection and maintenance operation was performed. These records shall be maintained for the entire service life of each motor bus, and made available, on request, to the division of air pollution control.
(Sec. 406-105; ordained by Ord. No. 302-1971, eff. Oct. 1, 1971; reordained as C.M.C. 406-105, eff. Jan. 1, 1972)

Sec. 406-107. Obligation to Advise Division of Air Pollution Control.

Every motor transportation company shall maintain on file with the division of air pollution control an up-to-date description of all periodic inspection and maintenance operations setting forth the intervals (miles, hours, days) at which equipment inspections and maintenance operations are performed, and how records thereof are maintained. Should any change be made in the intervals at which such equipment inspections and maintenance operations are performed or in the manner in which such records are to be maintained, the division shall be notified immediately. Every motor transportation company shall establish maintenance and inspection procedures and schedules for the reduction of exhaust emissions including, but not

limited to, inspection and maintenance performed on: air intake screens, air intake ducts, air cleaners, air box pressure, fuel storage tank, fuel storage tank filter, primary fuel filter, secondary fuel filter, fuel injectors, fuel injector spray tips, injector rack, pistons, piston rings and cylinder liners.
(Sec. 406-107; ordained by Ord. No. 302-1971, eff. Oct. 1, 1971; reordained as C.M.C. 406-107, eff. Jan. 1, 1972)

Sec. 406-109. Passenger-Driver Training Program.

All motor transportation companies, either singly or collectively, shall establish comprehensive driver training programs, the objectives of which shall be to thoroughly train drivers in the operation of the motor buses to be driven, acquaint drivers with their responsibilities and duties, improve the drivers' compliance with all applicable rules, regulations and laws, thereby showing said drivers the importance of and inculcating in them a desire to observe the fundamental precepts and practices of safe driving. Such driver training programs shall include education in the importance of minimizing exhaust emissions and emphasize what practices operators must avoid in order to prevent unnecessary emissions.
(Sec. 406-109; ordained by Ord. No. 302-1971, eff. Oct. 1, 1971; reordained as C.M.C. 406-109, eff. Jan. 1, 1972)

Sec. 406-999. Penalties.

Any person, partnership, firm, association, joint stock company or corporation, or officer, agent or employee thereof who violates or fails to comply with any provision of this chapter for which another penalty is not specifically provided, or who fails to obey, observe, or comply with any order, decision, rule or regulation, direction or requirement, or any part thereof, lawfully made by the director or an authorized subordinate officer in pursuance of the provisions of this chapter, and any person who procures, aids, or abets any person, firm, association, partnership or corporation, in failure to obey, observe, or comply with any such order, decision, demand or regulation, or any part or provision thereof, shall be fined in any sum not more than $500.
(C.O. 406-52; renumbered to C.M.C. 406-999, eff. Jan. 1, 1972)

Sec. 406-999-A. Violation of Section 406-72, 406-73 or 406-74.

Whoever violates any provision of Section 406-72, 406-73 or 406-74 is guilty of a minor misdemeanor; provided, however, that if the offender persists in such violation after reasonable warning or request to desist by the driver of the motor bus, other identifiable representative of the motor transportation company, or a law enforcement officer, then the offender is guilty of a misdemeanor of the fourth degree.
(C.O. 406-48; a. Ord. No. 28-1961, eff. Feb. 17, 1961; renumbered to C.M.C. 406-999-A, eff. Jan. 1, 1972; a. Ord. No. 229-1976, eff. June 25, 1976; a. Ord. No. 20-1980, eff. Feb. 16, 1980)

Sec. 406-999-B. Violation of Section 406-75 or 406-77.

Whoever violates any provision of Section 406-75 or 406-77 shall be fined not more than $25 for each offense.
(C.O. 406-53; a. Ord. No. 414-1970, eff. Dec. 23, 1970; renumbered to C.M.C. 406-999-B, eff. Jan. 1, 1972)

Chapter 407

PUBLIC VEHICLES (REPEALED)*

*__Editor's note—__Repealed by Ord. No. 176-2025, § 1, eff. June 11, 2025.

Chapter 408

DRIVERS' LICENSES FOR PUBLIC VEHICLES (REPEALED)*

*__Editor's note—__Repealed by Ord. No. 176-2025, § 1, eff. June 11, 2025.

Chapter 409

INTERSTATE COMMERCE CONTRACT CARRIAGE

Sec. 409-1. Permit.
Sec. 409-3. Transfer of Permit.
Sec. 409-5. Revocation.
Sec. 409-7. Revocation Procedure.
Sec. 409-9. Penalties.

Sec. 409-1. Permit.

Notwithstanding the requirements of Chapters 407 and 408 of the Cincinnati Municipal Code the city treasurer, upon recommendation of the director of safety, may issue public vehicle permits for the continuing contract carriage of persons engaged in interstate commerce where the designated point of departure or termination of such transportation services is within the city limits of the city of Cincinnati upon application by a person who shall meet the following requirements:

(a) Hold a regularly issued taxicab license of another jurisdiction; and

(b) Provide evidence of a contract with a person engaged in interstate commerce for the continuing contract carriage of persons engaged in interstate commerce where the designated point of departure or termination of such transportation services is within the city limits of the city of Cincinnati; and

(c) Comply with the liability or bond requirements of Sections 407-27, 407-29, and 407-33; and

(d) Obtain a Cincinnati safety lane inspection pursuant to the provisions of Section 504-2 of the Cincinnati Municipal Code for all vehicles used for such service; and

(e) Provide exterior marking (by magnetic sign or otherwise) indicating the vehicle permit number, its expiration date and that the vehicle is a contract carrier and not for hire by the general public; and

(f) Pay an annual permit fee of $20 per permit. A permit is required for each vehicle utilized for these purposes; and

(g) Allow no other than a holder of a valid driver's license to operate any vehicle utilized for these purposes.

(C.M.C. 409-1; ordained by Ord. No. 360-1974, eff. Aug. 7, 1974)

Sec. 409-3. Transfer of Permit.

In the event the owner of a vehicle for which a permit has been issued pursuant to this chapter shall cease to own the vehicle, or in the event that such vehicle shall become unsuitable for operation, or the owner shall desire to substitute another vehicle, an affidavit to such effect shall be filed with the director of safety and the director shall thereupon notify the city treasurer, who shall transfer the permit to any other vehicle, provided such vehicle is approved by the director and complies with the requirements of Section 409-1.

(C.M.C. 409-3; ordained by Ord. No. 360-1974, eff. Aug. 7, 1974)

Sec. 409-5. Revocation.

Any permit approved by this chapter may be revoked, suspended, or refused by the director of safety for any of the following causes:

(a) Misrepresentation or false statement made in obtaining a permit; or

(b) Violation or failure to comply with any provision of this chapter; or

(c) Misconduct or unlawful acts which under the circumstances the director deems sufficient to find the applicant or permittee to be of an undesirable character for operation of a public vehicle.

(C.M.C. 409-5; ordained by Ord. No. 360-1974, eff. Aug. 7, 1974)

Sec. 409-7. Revocation Procedure.

No permit shall be suspended or revoked without a hearing or opportunity to be heard

before the director of safety. When one or more of the items set forth in Section 409-3 above has been sustained, the director shall notify the city treasurer of such finding and the city treasurer shall thereupon suspend or revoke the permit in accordance with the decision of the director. The decision of the director shall be final.
(C.M.C. 409-7; ordained by Ord. No. 360-1974, eff. Aug. 7, 1974)

Sec. 409-9. Penalties.

Any person who violates any provisions of this chapter may be fined not more than $100.
(C.M.C. 409-9; ordained by Ord. No. 360-1974, eff. Aug. 7, 1974)

Chapter 410

RAILROADS

Sec. 410-1. Unauthorized Tracks Unlawful.
Sec. 410-3. Unauthorized Operation.
Sec. 410-5. Officer or Employee Guilty.
Sec. 410-7. Remedies Cumulative.
Sec. 410-13. Local Switching Defined.
Sec. 410-17. Fire and Police Vehicles at Obstructed Streets.
Sec. 410-19. Repair of Crossing.
Sec. 410-21. Railroad Assumes Liability.
Sec. 410-23. Supervision by City.
Sec. 410-25. Barricades and Watchmen.
Sec. 410-29. Time Limit on Repairs.
Sec. 410-31. Street Repair in Right-of-Way.
Sec. 410-33. Speed on or Across Streets.
Sec. 410-37. Gates to be Erected Within Sixty Days.
Sec. 410-41. Operation of Safety Gates, Obstruction of Streets by Railroads.
Sec. 410-43. Watchmen Required.
Sec. 410-99. Penalties.
Sec. 410-99-A. Violation of Section 410-1, 410-3, or 410-5.
Sec. 410-99-C. Violation of Section 410-17.
Sec. 410-99-D. Violation of Section 410-19 to 410-31, inclusive.
Sec. 410-99-E. Violation of Section 410-41.

Sec. 410-1. Unauthorized Tracks Unlawful.

No railroad tracks shall be laid or maintained on, over or across any street, alley or other public ground within the city, without lawful authority therefor. The maintenance of any such railroad tracks without lawful authority therefor on, over or across any public street, alley or public ground is declared to be a public nuisance.
(C.O. 410-1; reordained as C.M.C. 410-1, eff. Jan. 1, 1972)

Cross reference—Penalty, § 410-99-A.

Sec. 410-3. Unauthorized Operation.

No person or persons, firm or corporation shall operate a car or cars, locomotive or locomotives, train or trains, or other equipment, on or along railroad tracks on, over or across any public street or public highway in or of the city of Cincinnati without the lawful authority for such operation.
(C.O. 410-2; renumbered to C.M.C. 410-3, eff. Jan. 1, 1972)

Cross reference—Penalty, § 410-99-A.

Sec. 410-5. Officer or Employee Guilty.

If under the direction or authority of any officer or employee of any corporation, any provision of Section 410-1 or 410-3 shall be violated by the corporation, such officer or employee shall be deemed guilty of violation of provisions thereof, and no officer or employee of any corporation shall authorize or direct the maintenance of tracks or operation of cars, trains, locomotives and other equipment contrary to such provisions.
(C.O. 410-3; renumbered to C.M.C. 410-5, eff. Jan. 1, 1972)

Cross reference—Penalty, § 410-99-A.

Sec. 410-7. Remedies Cumulative.

Nothing contained in Sections 410-1 to 410-5, inclusive, shall be considered as a repeal or modification of any other provisions of law or ordinance for the prevention or abatement of unlawful use of streets by railroad tracks, trains and other equipment. Remedies provided in those sections shall be in addition to all other remedies provided by law and ordinance.
(C.O. 410-5; renumbered to C.M.C. 410-7, eff. Jan. 1, 1972)

Sec. 410-13. Local Switching Defined.

Local switching shall consist of delivering cars to private sidetracks, placing them thereon and removing them therefrom.
(C.O. 410-11; renumbered to C.M.C. 410-13, eff. Jan. 1, 1972)

Sec. 410-17. Fire and Police Vehicles at Obstructed Streets.

Whenever any railroad company, agent or employee shall be in the process of switching cars across any city street, and vehicles of the police or fire departments shall approach along such street to answer a call of fire or other emergency, such railroad company, its agents or employees, shall immediately cause the street to be cleared of the railroad cars by opening up a cut or otherwise.
(C.O. 410-14; renumbered to C.M.C. 410-17, eff. Jan. 1, 1972)

Cross reference—Penalty, § 410-99-C.

Sec. 410-19. Repair of Crossing.

No repairs of any kind shall be made by railroads operating within the limits of the city of Cincinnati by way of crossings over any avenue, street or alley, without first securing the permission of the city manager. The request for making such repairs must state the character of the improvement to be made and the time when the work is to be commenced.
(C.O. 410-17; renumbered to C.M.C. 410-19, eff. Jan. 1, 1972)

Cross reference—Penalty, § 410-99-D.

Sec. 410-21. Railroad Assumes Liability.

Any railroad company to which permission under Section 410-19 is granted shall assume all risk and liability for damages by reason of such repairs and improvements, and shall hold the city of Cincinnati harmless from any and all damages that may accrue therefrom.
(C.O. 410-18; renumbered to C.M.C. 410-21, eff. Jan. 1, 1972)

Sec. 410-23. Supervision by City.

The city manager shall have the right to delegate a representative of the city to supervise the work of repair or improvement as set forth in Section 410-19 if the said city manager shall deem it necessary, and all cost and expense of such supervision shall be borne by the railroad company making the request for permission.
(C.O. 410-19; renumbered to C.M.C. 410-23, eff. Jan. 1, 1972)

Sec. 410-25. Barricades and Watchmen.

Any railroad company making such repairs or improvements must keep proper barricades and watchmen while the repairs or improvements are being made, and must protect the crossings with red lights at night in case the crossings are left open and unfinished in the night; the lights to be so placed as to be hidden from engine men's or train men's view and still to be seen by the public so as to indicate the obstructions to pedestrian and vehicular travel.
(C.O. 410-20; renumbered to C.M.C. 410-25, eff. Jan. 1, 1972)

Cross reference—Penalty, § 410-99-D.

Sec. 410-29. Time Limit on Repairs.

At no time must any avenue, street or alley be opened for its full width beyond a period of four hours.
(C.O. 410-22; renumbered to C.M.C. 410-29, eff. Jan. 1, 1972)

Cross reference—Penalty, § 410-99-D.

Sec. 410-31. Street Repair in Right-of-Way.

Wherever the right-of-way lines of a railroad company cross a city street, alley or other public place at grade, it shall be the duty of such company to keep the roadway and sidewalk area within such right-of-way lines, constantly in proper repair and free from nuisance. In the case of tracks laid longitudinally within a street, the responsibility of the company for repair and maintenance free from nuisance, shall be for the area between the outside ends of the ties, including the space between tracks where there are two or more tracks.

In the case of spur tracks permitted in city streets to furnish direct track service to business and industrial plants, the responsibility for roadway and sidewalk repair and maintenance shall be as provided for in any special ordinance governing the granting of the permission, but in any event the railroad company shall keep in repair and maintain free from nuisance the entire street area between the outside ends of the ties.

When the city is obliged, for any reason, to make any repairs or improvement in a street or sidewalk, for which the railroad company is by this section made responsible, the cost thereof shall be charged against the company. Except in situations of hazard, requiring immediate attention, the city manager shall, when repairs or improvements are necessary, notify the local managing agent of the railroad company in writing, to make the same, and in such written notice shall fix the time limit within which the work shall be completed. If the work is not completed within the time fixed or an approved extension thereof, the city manager shall be authorized to complete the same and charge the city's cost against the company. Before any repairs are made by the railroad company to the tracks and paving of the city's streets or alleys, details of construction, type of paving

to be used and any proposed change of grade shall be approved by the city manager. All work shall be done under supervision of the city manager.

Nothing in this section shall be construed to waive any right of the city to include any trackage area within a city street or alley in a street improvement project, and to assess against the abutting railway property its proper share of the cost of the improvement.
(C.O. 410-23; renumbered to C.M.C. 410-31, eff. Jan 1, 1972)

Cross reference—Penalty, § 410-99-D.

Sec. 410-33. Speed on or Across Streets.

No directing officer or operator of any locomotive, railroad car or railroad train shall operate the same across any street or alley, at grade, at a speed greater or less than is reasonable or proper, having due regard to the dangers of such grade crossing, and the necessities of pedestrian and vehicular traffic using the same. A speed in excess of 30 miles per hour across a street or alley at grade, where the same is not protected by properly operating safety gates, or flasher signals, shall be prima facie evidence of a violation of this section.
(C.O. 410-26; a. Ord. No. 127-1959, eff. May 29, 1959; renumbered to C.M.C. 410-33, eff. Jan. 1972)

Cross reference—Penalty, § 410-99.

Sec. 410-37. Gates to be Erected Within Sixty Days.

All gates hereafter to be erected at crossings to be designated by ordinance shall be erected within 60 days after the adoption of such ordinance, and upon a failure to so erect any such gates within the time prescribed, the city manager, at the expense of such company, shall cause the gates to be erected.
(C.O. 410-29; renumbered to C.M.C. 410-37, eff. Jan. 1, 1972)

Sec. 410-41. Operation of Safety Gates, Obstruction of Streets by Railroads.

The operation of safety gates as required by provisions of this chapter shall be, in every case, in charge of a competent person employed by the railroad company. Gates shall be closed while any locomotive or car occupies the crossing. It shall be unlawful to cause a railroad locomotive or car to cross a protected intersection unless the safety gates are closed and the watchman is stationed and present. No railroad company and no officer in charge of the operation of any railroad company shall permit a street intersection to be blocked by a locomotive or cars, or both, for more than five minutes continuously, unless the blockage or obstruction is caused by circumstances wholly beyond the control of the railroad company and officer in charge.
(C.O. 410-31; renumbered to C.M.C. 410-41, eff. Jan. 1, 1972; a. Ord. No. 115-1987, eff. Apr. 17, 1987)

Cross reference—Penalty, § 410-99-E.

Sec. 410-43. Watchmen Required.

Any railroad company whose tracks intersect Winton Road or Mitchell Avenue shall station and keep a watchman at all times at each such intersection. No railroad corporation, and no officer, agent, superintendent, train master, transportation master, employee or servant of any such company, shall fail to comply with the provisions of this section.

Each day's failure to maintain a watchman at any of the intersections herein designated, shall be deemed a separate offense.
(C.O. 410-34; renumbered to C.M.C. 410-43, eff. Jan. 1, 1972)

Cross reference—Penalty, § 410-99.

Sec. 410-99. Penalties.

Any railroad corporation violating any provision of this chapter for which no other

penalty is prescribed, and any officer or employee of any railroad corporation, or any other person operating or authorizing the operation of, or causing the operation of any locomotive in violation of any provision of this chapter for which no other penalty is prescribed, shall be fined not more than $25. Each day's operation shall be considered a separate offense.
(C.O. 410-36; renumbered to C.M.C. 410-99, eff. Jan. 1, 1972)

Sec. 410-99-A. Violation of Section 410-1, 410-3, or 410-5.

Whoever violates any provision of Section 410-1, 410-3, or 410-5 shall be fined not more than $100 and each day's continuance of maintenance of tracks or of operation of cars, trains, locomotives or other equipment in violation of said sections shall be considered a separate violation.
(C.O. 410-4; a. Ord. No. 414-1970, eff. Dec. 23, 1970; renumbered to C.M.C. 410-99-A, eff. Jan. 1, 1972)

Sec. 410-99-C. Violation of Section 410-17.

Any railroad company violating Section 410-17 shall be fined not more than $500.
(C.O. 410-14; renumbered to C.M.C. 410-99-C, eff. Jan. 1, 1972)

Sec. 410-99-D. Violation of Section 410-19 to 410-31, inclusive.

Any officer, employee or other agent of a railroad corporation who violates any provision of Sections 410-19 to 410-31, inclusive, shall be fined $50.
(C.O. 410-24; renumbered to C.M.C. 410-99-D, eff. Jan. 1, 1972)

Sec. 410-99-E. Violation of Section 410-41.

Any railroad company, and any officer, agent, employee, or servant thereof, who fails to comply with, or who violates any provision of Section 410-41, shall be fined not more than $1,000 or imprisoned not more than 30 days, or both; and in case the tracks of the same company cross at more than one intersection, each such crossing in violation hereof shall be deemed a separate offense.
(C.O. 410-32; renumbered to C.M.C. 410-99-E, eff. Jan. 1, 1972; a. Ord. No. 309-1995, eff. Sept. 20, 1995)

Chapter 411

WHARVES AND PUBLIC LANDING

Sec. 411-1. Definitions.
Sec. 411-1-P. Public Landing.
Sec. 411-1-R. River Termini of Streets.
Sec. 411-3. Purpose and Use of Public Landing.
Sec. 411-5. Wharfmaster, Duties.
Sec. 411-7. Special Powers Assigned to Wharfmaster.
Sec. 411-9. Wharfage Fees—Mooring Locations.
Sec. 411-11. Control of Public Landing.
Sec. 411-13. Damage to Facilities or Obstructing the Landing.
Sec. 411-15. Removal of Sunken Boats.
Sec. 411-17. Unclaimed Craft.
Sec. 411-19. Parking on the Public Landing.
Sec. 411-21. Signs.
Sec. 411-23. Removal of Trash and Debris.
Sec. 411-25. Specific Contracts for Public Landing Uses.
Sec. 411-27. Securing Watercraft.
Sec. 411-99. Penalties.
Sec. 411-99-A. Violation of Section 411-7.
Sec. 411-99-B. Violation of Section 411-13 or 411-23.

Sec. 411-1. Definitions.

For the purpose of this chapter the words and phrases defined in the sections hereunder shall have the meanings therein respectively ascribed to them, unless a different meaning is clearly indicated by the context.
(C.O. 411-1; reordained as C.M.C. 411-1, eff. Jan. 1, 1972)

Sec. 411-1-P. Public Landing.

"Public landing" shall mean that portion of the riverfront extending from the east line of the Suspension Bridge to the west line of the Central Bridge between the Ohio River and Riverside Drive or the first public thoroughfare north of the Ohio River; and the shoreline between the west line of the Central Bridge and the west line of the L & N Bridge together with necessary appurtenances for mooring river craft and parking areas designated to serve the public landing.
(Sec. 411-1; ordained by Ord. No. 41-1969, eff. Feb. 28, 1969; renumbered to C.M.C. 411-1-P, eff. Jan. 1, 1972)

Analogous to C.O. 411-1; r. Ord. No. 41-1969, eff. Feb. 28, 1969.

Sec. 411-1-R. River Termini of Streets.

"River termini of streets" shall mean the shoreline between platted street lines, whether presently used for street purposes or not, of streets ending at the low water mark of the Ohio River in the city of Cincinnati.
(Sec. 411-1; ordained by Ord. No. 41-1969, eff. Feb. 28, 1969; renumbered to C.M.C. 411-1-R, eff. Jan. 1, 1972)

Analogous to C.O. 411-1; r. Ord. No. 41-1969, eff. Feb. 28, 1969.

Sec. 411-3. Purpose and Use of Public Landing.

The public recreation commission through the superintendent of public recreation commission shall maintain the public landing for the specified purpose of encouraging the use of the city of Cincinnati as a port-of-call on the Ohio River. In the operation of the public landing, the superintendent shall provide for transient licensed public carriers and excursion boats and shall provide accommodations to facilitate use of the landing for the loading and discharge of passengers. In addition, the public recreation commission may grant concessions for the use of the public landing for other purposes which provide a public service such as floating restaurants, museums, and showboats, provided the uses for concessions in the opinion of the public recreation commission do not unduly hinder the other uses of the public landing. The users of the public landing shall cooperate with the wharfmaster in making it possible for the infrequent use of the landing for the shipping and receiving of unusual cargo across the landing.
(Sec. 411-3; ordained by Ord. No. 41-1969, eff. Feb. 28, 1969; renumbered as C.M.C. 411-3, eff. Jan. 1, 1972; a. Ord. No. 181-1973, eff. Apr. 25, 1973)

Sec. 411-5. Wharfmaster, Duties.

The title of wharfmaster will be with the public recreation commission working under the superintendent of the public recreation commission. It shall be the duty of the wharfmaster to keep a record of all vessels using the public landing and the various river termini of streets which end at the low water mark in the city of Cincinnati, the names of the vessels and their respective captains and the amount of tonnage and wharfage fees chargeable against each vessel. The wharfmaster shall also make out and collect the bills for wharfage fees and pay over all collections to the city treasurer each month.
(C.O. 411-4; a. Ord. No. 11-1970, eff. Jan. 7, 1970; renumbered to C.M.C. 411-5, eff. Jan. 1, 1972; a. Ord. No. 181-1973, eff. Apr. 25, 1973)

Sec. 411-7. Special Powers Assigned to Wharfmaster.

The wharfmaster shall have special power to designate the mooring point of any and all watercraft at the public landing or any of the river termini of the streets hereinafter mentioned in this chapter, and may also, for the convenience of all vessels moored to the public landing or river termini and for the necessary use of the special route provided for oversized loads by Section 723-43, cause a vessel once placed to be changed to another location, or order off and cause to be removed all skiffs, canoes, rafts, etc., to make room for the convenient landing of any boat or barge, or other watercraft, subject to pay wharfage as herein provided. In cases of vessels moored under contracts with the recreation commission the wharfmaster shall exercise discretion and not require movement unless under emergency conditions. In order to effectually carry out the provisions of this chapter, and prevent and suppress all riots, disturbances and disorderly conduct at the river, the wharfmaster and subordinate officers are hereby vested with the powers and authority of police officers.

No person shall resist or in any way aid or abet in resisting the wharfmaster or a subordinate officer while in the discharge of any of the duties of office, nor shall any person fail to comply with a lawful order of the wharfmaster or a subordinate officer.

Failure to comply with a lawful order of the wharfmaster shall constitute a separate offense for each day that such failure continues.

(Sec. 411-5; ordained by Ord. No. 41-1969, eff. Feb. 28, 1969; renumbered to C.M.C. 411-7, eff. Jan. 1, 1972; a. Ord. No. 181-1973, eff. Apr. 25, 1973)

Analogous to C.O. 411-6; r. Ord. No. 41-1969, eff. Feb. 28, 1969.

Cross reference—Penalty, § 411-99-A.

Sec. 411-9. Wharfage Fees—Mooring Locations.

(a) Except as to publicly owned watercraft, boats renting space from wharfboats, and vessels moored under the terms of a contract with the city, each and every vessel or wharfboat moored directly or indirectly to the public landing or in front thereof shall pay a charge per lineal foot per day according to the schedule of rates established for various types of watercraft and uses. Such rates shall be applicable to the portion of the waterfront occupied by the vessel or wharfboat and necessary for the proper mooring thereof. The wharfmaster may approve mooring plans which provide for lines to extend along the landing outside of the assigned mooring space provided such lines do not hinder vehicular movement. The superintendent of recreation shall recommend to the recreation commission a schedule of rates to be charged for the use of the public landing.

(b) In addition to the charge per lineal foot, the wharfmaster shall charge for the use of facilities such as electricity, water, and any other accommodations available according to the schedule of rates established by the recreation commission, which shall be not less than the cost to the city of supplying such accommodations.

(c) The superintendent shall recommend to the recreation commission a schedule of rates to be charged for each and every vessel or wharfboat moored directly or indirectly to the river termini streets. Vessels using the river termini streets under specific contracts with the recreation commission will not be subject to the rate schedule if other rates are specified in the contract.

(d) The superintendent with the approval of the recreation commission may contract for use of specific portions of the public landing and/or termini of streets for periods up to five years at rates and terms in keeping with

the nature of the use thereof. Where the peculiar location on the public landing is advantageous to the conduct of commercial enterprises offering a public service or accommodation not involving river transportation such as floating restaurants, showboats, museums, or other similar enterprises the contract may provide for the city to be paid a percentage of the gross income in addition to any other charge. Such contracts may be renewable according to the terms of the contract.

(Sec. 411-7; ordained by Ord. No. 41-1969, eff. Feb. 28, 1969; renumbered to C.M.C. 411-9, eff. Jan. 1, 1972; a. Ord. No. 181-1973, eff. Apr. 25, 1973)

Analogous to C.O. 411-9; r. Ord. No. 41-1969, eff. Feb. 28, 1969.

Sec. 411-11. Control of Public Landing.

In exercising control of the activities on the public landing the wharfmaster shall at all times be authorized to restrict the use of the landing when in the judgment of the wharfmaster the mooring or other use of the public landing is not in the general public interest because of such circumstances as high water, fire or explosion hazard, objectionable odors, or the mooring of vessels not providing a public accommodation for periods in excess of 24 hours. All vessels using the public landing or the river termini of streets must be prepared for the eventuality of the hazards normal to the river such as ice, driftwood, flood waters, and swift current. At any time that the streets are closed due to high water or other emergency conditions, vessels or wharfboats must be prepared to be self-sufficient in coping with the natural hazards of river conditions.

(Sec. 411-9; ordained by Ord. No. 41-1969, eff. Feb. 28, 1969; renumbered to C.M.C. 411-11, eff. Jan. 1, 1972)

Sec. 411-13. Damage to Facilities or Obstructing the Landing.

No person shall hereafter break or damage any part of the pavement or other facilities at or on the public landing, by suffering their boat or raft, or any boat or raft in their care or charge, to get aground at or upon such pavement; nor shall any person break or damage any such pavement or other facilities; nor shall any person or persons who may be receiving or discharging into or from any boat at such public landing put or place any such cargo upon such landing or pavement and suffer the same to remain there so as to discommode others an unnecessary length of time; nor shall any person refuse or neglect to remove such cargo or other material upon such landing or pavement upon the request or order of the wharfmaster or any of the wharfmaster's subordinates; nor shall any person hereafter land or draw out any driftwood, log or timber upon any such pavement or public landing without permission from the wharfmaster or other proper officer; nor shall any person after being notified by the wharfmaster or other proper officer to remove such driftwood, log or timber suffer or permit it to remain on such pavement or public landing.

(Sec. 411-11; ordained by Ord. No. 41-1969, eff. Feb. 28, 1969; renumbered to C.M.C. 411-13, eff. Jan. 1, 1972)

Cross reference—Penalty, § 411-99-B.

Sec. 411-15. Removal of Sunken Boats.

When a wharfboat or watercraft which has been sunk or stranded on or in front of the public landing is not raised and removed within 15 days from the time of the stranding or sinking, provided that if the sinking or stranding occurs at a time when the river is not in pool stage the 15 days will not commence until the river first falls to pool stage, a charge of $50 per day may be imposed for each day thereafter until the same shall be removed.

(Sec. 411-13; ordained by Ord. No. 41-1969, eff. Feb. 28, 1969; renumbered to C.M.C. 411-15, eff. Jan. 1, 1972)

Analogous to C.O. 411-25; r. Ord. No. 41-1969, eff. Feb. 28, 1969.

Sec. 411-17. Unclaimed Craft.

Whenever any lumber, raft, boat or other watercraft shall be left at the public landing or any of the street termini herein provided, for which no owner appears, the wharfmaster or the wharfmaster's subordinates shall place a written notice on any such property as aforesaid, requiring the owner or owners to remove the same within 24 hours, and if no owner shall appear the officer shall give notice thereof to the superintendent of the recreation commission, who shall direct the sale or removal of such property as may be deemed expedient.
(Sec. 411-15; ordained by Ord. No. 41-1969, eff. Feb. 28, 1969; renumbered to C.M.C. 411-17, eff. Jan. 1, 1972; a. Ord. No. 181-1973, eff. Apr. 25, 1973)

Analogous to C.O. 411-20; r. Ord. No. 41-1969, eff. Feb. 28, 1969.

Sec. 411-19. Parking on the Public Landing.

The superintendent of the public recreation commission shall establish controls as necessary to regulate parking on the public landing including but not limited to lease of space, parking meters, assignment of space, and any regulations necessary to control the parking of automotive vehicles, trailers, and boats on the landing.
(Sec. 411-17; ordained by Ord. No. 41-1969, eff. Feb. 28, 1969; renumbered to C.M.C. 411-19, eff. Jan. 1, 1972; a. Ord. No. 181-1973, eff. Apr. 25, 1973)

Sec. 411-21. Signs.

Advertising, trademark, and identification signs on vessels or wharfboats moored at the public landing shall conform to the appropriate zone applicable to the public landing area. Any sign, regardless of nature, displayed on the public landing must have the written approval of the wharfmaster and such approval shall be subject to revocation.
(Sec. 411-19; ordained by Ord. No. 41-1969, eff. Feb. 28, 1969; renumbered to C.M.C. 411-21, eff. Jan. 1, 1972)

Sec. 411-23. Removal of Trash and Debris.

No owner, operator or agent or employee of an owner or operator of a vessel or wharfboat moored at the public landing shall utilize the landing for accumulation of trash or the storage of material of any nature whatsoever without specific authorization of the wharfmaster. The owner, operator or person in charge of a vessel or wharfboat moored at the public landing shall provide closed containers for the accommodation of trash and further shall arrange for the frequent removal of it.

The owner, operator or person in charge of a vessel or wharfboat moored to the public landing shall regularly cause the removal of trash and debris within an area of 50 feet from the water's edge of that portion of the landing assigned to the vessel or wharfboat, except for general clean-up after flood waters recede which will be accomplished by regular forces of the city.
(Sec. 411-21; ordained by Ord. No. 41-1969, eff. Feb. 28, 1969; renumbered to C.M.C. 411-23, eff. Jan. 1, 1972)

Cross reference—Littering, ch. 714.
Cross reference—Penalty, § 411-99-B.

Sec. 411-25. Specific Contracts for Public Landing Uses.

Wherever contracts approved by council as provided for in Sec. 411-9(d) conflict with provisions of this chapter the terms of the contracts are to supersede the general provisions of this chapter.
(Sec. 411-22; ordained by Ord. No. 41-1969, eff. Feb. 28, 1969; renumbered to C.M.C. 411-25, eff. Jan. 1, 1972)

Sec. 411-27. Securing Watercraft.

No person shall moor, tie up or otherwise secure to land a boat or any other watercraft in the central riverfront area, as defined in Section 739-1, in violation of a sign posted under the direction of the director of recreation.

The term "watercraft" as used in this section shall mean any object floating on the Ohio River without regard to whether the object is capable of being steered.

Any violation of this section shall be deemed to be a minor misdemeanor for the first offense and for a second or subsequent offense a misdemeanor of the fourth degree.
(Ordained by Ord. No. 233-1983, eff. May 25, 1983)

Sec. 411-99. Penalties.

Violations of the provisions of this chapter shall be punishable as set forth in the sections hereunder and other applicable penalty sections of this code.
(C.M.C. 411-99, eff. Jan. 1, 1972)

Sec. 411-99-A. Violation of Section 411-7.

Whoever violates any provision of Section 411-7 shall be fined not more than five hundred dollars ($500.00).
(Sec. 411-5; ordained by Ord. No. 41-1969, eff. Feb. 28, 1969; renumbered to C.M.C. 411-99-A, eff. Jan. 1, 1972)

Analogous to C.O. 411-6; r. Ord. No. 41-1969, eff. Feb. 28, 1969.

Sec. 411-99-B. Violation of Section 411-13 or 411-23.

Whoever violates any provision of Section 411-13 or 411-23 shall be fined not more than fifty dollars ($50.00).
(Sec. 411-11; ordained by Ord. No. 41-1969, eff. Feb. 28, 1969; Sec. 411-21; ordained by Ord. No. 41-1969, eff. Feb. 28, 1969; renumbered to C.M.C. 411-99-B, eff. Jan. 1, 1972)

Analogous to C.O. 411-23; r. Ord. No. 41-1969, eff. Feb. 28, 1969.

Chapter 413

PARKING GARAGES AND PARKING LOTS

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Sec. 413-1. Definitions.

For the purpose of this chapter the words and phrases defined in the sections hereunder shall have the meanings therein respectively ascribed to them unless a different meaning is clearly indicated by the context.
(Sec. 413-1; ordained by Ord. No. 297-1962, eff. Aug. 1, 1962; reordained as C.M.C. 413-1, eff. Jan. 1, 1972)

Analogous to C.O. 413-1; r. Ord. No. 297-1962, eff. Aug. 1, 1962.

Sec. 413-1-A. Attendant.

"Attendant" shall mean any person engaged in rendering any service for patrons of a licensed parking garage or licensed parking lot.
(Sec. 413-1i; ordained by Ord. No. 297-1962, eff. Aug. 1, 1962; renumbered to C.M.C. 413-1-A, eff. Jan. 1, 1972)

Sec. 413-1-C. City.

"City" shall mean the city of Cincinnati.
(Sec. 413-1a; ordained by Ord. No. 297-1962, eff. Aug. 1, 1962; renumbered to C.M.C. 413-1-C, eff. Jan. 1, 1972)

Sec. 413-1-D. Director.

"Director" shall mean the person designated by the city manager to administer this chapter and program.
(Sec. 413-1b; ordained by Ord. No. 297-1962, eff. Aug. 1, 1962; renumbered to C.M.C. 413-1-D, eff. Jan. 1, 1972; a. Ord. No. 203-1980, eff. June 7, 1980; Emer. Ord. No. 061-2013, § 28, eff. March 14, 2013; Emer. Ord. No. 248-2024, § 1, eff. June 12, 2024)

Analogous to C.O. 413-1a; r. Ord. No. 297-1962, eff. Aug. 1, 1962.

Sec. 413-1-L. Licensee.

"Licensee" shall mean any person licensed as an owner, lessee or operator of a parking garage or parking lot.
(Sec. 413-1h; ordained by Ord. No. 297-1962, eff. Aug. 1, 1962; renumbered to C.M.C. 413-1-L, eff. Jan. 1, 1972)

Sec. 413-1-O. Operator.

"Operator" shall mean any person conducting or operating a parking garage or parking lot.
(Sec. 413-1f; ordained by Ord. No. 297-1962, eff. Aug. 1, 1962; renumbered to C.M.C. 413-1-0, eff. Jan. 1, 1972)

Analogous to C.O. 413-1d; r. Ord. No. 297-1962, eff. Aug. 1, 1962.

Sec. 413-1-P. Parking Garage.

"Parking garage" shall mean a privately owned building or part thereof containing at least 1,500 square feet of parking area open for use of the public for parking of vehicles on an hourly, daily, weekly, monthly or seasonal basis upon payment of compensation therefor.
(Sec. 413-1c; ordained by Ord. No. 297-1962, eff. Aug. 1, 1962; renumbered to C.M.C. 413-1-P, eff. Jan. 1, 1972)

Analogous to C.O. 413-1b; r. Ord. No. 297-1962, eff. Aug. 1, 1962.

Sec. 413-1-P1. Parking Lot.

"Parking lot" shall mean a privately owned area other than a parking garage, containing at least 1,500 square feet of parking area, open for use of the public for parking of vehicles on an hourly, daily, weekly, monthly, or seasonal basis upon payment of compensation therefor.
(Sec. 413-1d; ordained by Ord. No. 297-1962, eff. Aug. 1, 1962; renumbered to C.M.C. 413-1-P1, eff. Jan. 1, 1972)

Analogous to C.O. 413-1c; r. Ord. No. 297-1962, eff. Aug. 1, 1962.

Sec. 413-1-P2. Person.

"Person" shall mean any individual, partnership, association, fiduciary, company, firm or corporation.
(Sec. 413-1e; ordained by Ord. No. 297-1962, eff. Aug. 1, 1962; renumbered to C.M.C. 413-1-P2, eff. Jan. 1, 1972)

Sec. 413-1-T. Transfer Station.

"Transfer station" shall mean a parking garage or parking lot which is attended at all times and which is used under regulations herein for parking vehicles removed at closing time from another parking garage or parking lot.

(Sec. 413-1g; ordained by Ord. No. 297-1962, eff. Aug. 1, 1962; renumbered to C.M.C. 413-1-T, eff. Jan. 1, 1972)

Analogous to C.O. 413-1e; r. Ord. No. 297-1962, eff. Aug. 1, 1962.

Sec. 413-3. Garages and Lots to be Licensed.

No person shall operate a parking garage or parking lot without first having obtained a proper license in accordance with the provisions of this chapter.

(Sec. 413-3; ordained by Ord. No. 297-1962, eff. Aug. 1, 1962; reordained as C.M.C. 413-3, eff. Jan. 1, 1972)

Analogous to C.O. 413-2; r. Ord. No. 297-1962, eff. Aug. 1, 1962.

Cross reference—Penalty, § 413-99.

Sec. 413-5. Application for License.

Application for a license shall be made on forms supplied by the director. The applicant shall set forth the following information and facts stated under oath or affirmation:

(a) The name of applicant, and location of the parking garage or parking lot.

(b) If a firm, the firm name, the name and address of each member of the firm, and the location of the principal office or place of business.

(c) If a corporation, the date and state of incorporation, the names of the president, secretary, and the business manager or superintendent thereof, and the addresses of such persons.

(d) The type of parking garage or parking lot to be operated by applicant.

(e) Name and address of a local representative who has the duty, responsibility, and authority to operate, maintain, and manage a parking lot or parking garage. The local representative shall be available for contact during all operating hours and located no greater than fifty miles from the parking lot or garage.

(f) Owner of the real estate property on which parking garage or parking lot is located.

(g) A scaled drawing or sketch of the premises used in operation of the parking garage or parking lot showing dimensions of business area, location of entrances and exits, abutting city streets or alleys, parking area surface, number of parking spaces, number and siting of required bicycle parking spaces, barrier enclosures, driveway dimensions, any other information required for determination of compliance with the city ordinances pertaining to use of property and operation of the business.

(h) A statement of days and hours of operation.

(i) A statement of the range of parking rates charged by the operator.

(j) A statement of good standing from the city's income tax division.

(k) A zoning verification letter that the parking lot or garage is a permitted use in compliance with city zoning laws.

(l) The amount of gross fees or consideration charged for paid parking in the parking garage or parking lot during the prior calendar year.

(m) Any information relative to operation of a parking garage or parking lot which is deemed necessary by the director for the purposes of determining that a license should be issued or refused.

(Sec. 413-5; ordained by Ord. No. 297-1962, eff. Aug. 1, 1962; reordained as C.M.C. 413-5, eff. Jan. 1, 1972; a. Ord. No. 065-2010, § 2, eff. April 17, 2010; Emer. Ord. No. 248-2024, § 1, eff. June 12, 2024)

Analogous to C.O. 413-3; r. Ord. No. 297-1962, eff. Aug. 1, 1962.

Sec. 413-7. Separate License.

A separate license shall be required for each parking garage or parking lot.

(Sec. 413-7; ordained by Ord. No. 297-1962, eff. Aug. 1, 1962; reordained as C.M.C. 413-7, eff. Jan. 1, 1972)

Analogous to C.O. 413-5; r. Ord. No. 297-1962, eff. Aug. 1, 1962.

Cross reference—Penalty, § 413-99.

Sec. 413-9. License Fees.

The city manager is hereby authorized to establish license and application fees to offset the costs and expenses incurred or estimated to be incurred by the city for the licensing program provided for in this chapter. A schedule of the fees shall be available on the city's website. All fees shall be paid prior to the issuance of a license or renewal.

(Sec. 413-9; ordained by Ord. No. 297-1962, eff. Aug. 1, 1962; a. Ord. No. 90-1969, eff. Apr. 1, 1969; reordained as C.M.C. 413-9, eff. Jan. 1, 1972; a. Ord. No. 327-1975, eff. Sept. 1, 1975; a. Ord. No. 282-1979, eff. Sept. 1, 1979; Emer. Ord. 463-2010, § 15, eff. Dec. 30, 2010; Emer. Ord. No. 248-2024, § 1, eff. June 12, 2024)

Analogous to C.O. 413-7; r. Ord. No. 297-1962, eff. Aug. 1, 1962.

Sec. 413-11. Issuance of License.

All matters pertaining to the application for a license shall be investigated by the director, who shall approve the issuance of the license if the parking garage or parking lot and the proposed operation thereof comply with all applicable ordinances of the city. Upon approval of an application, the director shall issue a license to the applicant upon payment of the proper license fee.

(Sec. 413-11; ordained by Ord. No. 297-1962, eff. Aug. 1, 1962; reordained as C.M.C. 413-11, eff. Jan. 1, 1972; Emer. Ord. No. 248-2024, § 1, eff. June 12, 2024)

Analogous to C.O. 413-6; r. Ord. No. 297-1962, eff. Aug. 1, 1962.

Sec. 413-13. Renewal of License.

All licenses issued as provided in this chapter shall expire on the date provided for on the license or if no date is provided, then the license shall expire 12 months from the issue date.

Application for renewal shall be made to the director on forms to be supplied by the director.

In the event of refusal to renew a license, the proceedings as to revocation, suspension or refusal of license shall apply and appeal shall be the same as in cases where an original application is denied.

(Sec. 413-13; ordained by Ord. No. 297-1962, eff. Aug. 1, 1962; reordained as C.M.C. 413-13, eff. Jan. 1, 1972; Emer. Ord. No. 248-2024, § 1, eff. June 12, 2024)

Sec. 413-15. Changes After Issue of License.

If, after issuance or renewal of a license, any change is made to the information provided in Section 413-5(a)—(m), written notice shall be given within 10 days by licensee to the director for insertion in the records.

Prior written approval of the director is required for any change made in entrance and exit areas, expansion of parking area, or

any changes which affect public usage of parking area or the abutting streets and highways.
(Sec. 413-15; ordained by Ord. No. 297-1962, eff. Aug. 1, 1962; reordained as C.M.C. 413-15, eff. Jan. 1, 1972; Emer. Ord. No. 248-2024, § 1, eff. June 12, 2024)

Analogous to C.O. 413-8; r. Ord. No. 297-1962, eff. Aug. 1, 1962.

Sec. 413-16. Bicycle Parking.

A. *Purpose.* The requirements for bicycle parking are established for the purpose of ensuring secure, weather-protected facilities to accommodate short and long-term bicycle parking and to encourage the use of bicycles for travel as an alternative to the use of motorized vehicles.

B. *Applicability.* Bicycle parking facilities shall be provided in every new parking garage, and for every expansion of an existing parking garage when the expansion includes the provision of sixty (60) or more additional motor vehicle parking spaces.

C. *Duties of Garage Owners.* Whether a garage is public or private, the owner of the garage shall be responsible for fulfilling the requirements of this Section.

D. *Time of Compliance.* Required bicycle parking spaces shall be provided prior to the issuance of a new license or the renewal of an existing license if an expansion requiring the addition of bicycle parking has been completed.

E. *Number of Bicycle Parking Spaces.* Bicycle parking spaces shall be provided at a rate of one (1) bicycle parking space for every twenty (20) motor vehicle parking spaces provided. In the case of a garage providing bicycle parking spaces based on an expansion, the number of bicycle parking spaces required shall be calculated based on the number of additional motor vehicle spaces created by the expansion.

1. *Maximum.* No parking garage shall be required to provide more than twenty-four (24) bicycle parking spaces.

2. *Fractional Spaces.* When the units of measurement determining the number of required parking spaces result in requirement of a fractional space, any fraction up to and including one-half is rounded down to the nearest whole number and fractions of over one-half are rounded up to the next whole number.

F. *Location of Bicycle Parking Spaces.*

1. Bicycle parking shall be located no lower than the first complete, contiguous parking level below grade, and no higher than the first complete, contiguous parking level above grade. There shall be no stairs on the access route to bicycle parking areas.

2. Bicycle parking spaces shall be located inside the garage in an area that is protected from inclement weather.

3. Bicycle parking spaces shall be equipped with one of the following: a bicycle locker; a securely anchored floor, wall, or ceiling rack; or a similar system for securing the bicycle.

4. Bicycle parking shall be located in a highly visible area to minimize theft and vandalism.

5. Bicycle parking spaces shall be separated from motor vehicle parking spaces and lanes of traffic by a physical barrier (such as a curb or bollard).

6. An aisle or other space at least 5 feet wide shall be provided behind all required bicycle parking to allow room for bicycle maneuvering.

G. *Standards for Bicycle Racks.* Where required bicycle parking is provided by racks, the racks must meet the following standards:

1. The bicycle frame and one wheel can be locked to the rack with a high security, U-shaped shackle lock and cable lock if both wheels are left on the bicycle. Bicycle racks that support the wheel but not the frame of the bike may not be used to fulfill a bicycle parking requirement.
2. A bicycle six feet long can be securely held with its frame supported so that the bicycle cannot be pushed or fall in a manner that will damage the wheels or components.
3. The rack must be securely anchored.

The Department of Transportation and Engineering maintains a handbook of racks and siting guidelines that meet the standards of this Section.

H. *Size of Bicycle Parking Spaces.* An area of at least two feet in width by six feet in length shall be provided for each bicycle space. However, the area for each bicycle space may be reduced upon application to the Superintendent of Parking to certify that the proposed layout adequately accommodates the specified number of bicycles.

I. *Duration of Bicycle Parking.* Garages offering automobile parking on an hourly basis shall offer bicycle parking on the same basis. Garages offering automobile parking on a weekly or longer basis shall provide bicycle parking on the same basis.

J. *Fees for Bicycle Parking.* This Section shall not interfere with the rights of garage owners to charge rent or other fees for bicycle parking.

K. *Enforcement.* Section 413-16 shall be enforced by the Superintendent of Parking. Upon complaint, the Superintendent of Parking shall investigate. If the Superintendent of Parking concludes that a violation exists, he or she shall provide written notice to the garage owner of the violation and allowing 30 days to cure the violation. The written notice shall state the grounds for the Superintendent of Parking's conclusion that a violation exists and shall afford the garage owner opportunity to appeal such determination in writing to the Superintendent of Parking.

1. Where a violation of this Section occurs, if such violation has not been cured within the allotted 30 day period, the Superintendent of Parking shall add the name and address of such garage and the name of the garage owner to a list of garages currently in violation of this Section. Upon request, the Parking Superintendent shall provide a copy of this list to members of the public.
2. Violation of this Section is cause for revocation, suspension or refusal to issue or renew a license, in accordance with Section 413-43.

L. *Ingress and Egress.* Bicyclists may be required to walk their bicycles inside the garage.

M. *Notice of Bicycle Parking.* A sign shall be provided at each point of bicycle entry to the parking garage, mounted with its center between four and six feet above the ground, directly visible and unobstructed from the street. The entry sign shall match exactly the designated sign on file with the Department of Transportation & Engineering.

N. *Patron Access Requirements.* A parking facility must allow bicycle parkers access to bicycle parking spaces to the same extent the facility allows automobile parkers access

to automobile parking spaces. If a parking facility offers automobile parking exclusively to employees or patrons of a certain business, or to residents of a particular dwelling, the facility can similarly limit bicycle parking to such employees, patrons or residents. (Ordained by Ord. No. 065-2010, § 1, eff. April 17, 2010)

Sec. 413-17. Walls or Fences Surrounding Parking Lot.

Any person operating a parking lot business adjacent to sidewalk or streets shall keep the parking area enclosed with an approved fence, wall, curbing, wheelblock, or other barrier along streets and sidewalks upon which parking places adjoin so that motor vehicles cannot be removed from such place except at the regular established entrances and exits.

The fence, wall, curbing, wheelblock, or barrier shall be constructed in accordance with applicable city ordinances and shall be placed so as to prevent any part of the parked car from overhanging the property line of the lot and to protect adjoining buildings from damage.

Each licensee shall keep the sidewalks surrounding the parking place free from dirt, ice, sleet, snow and debris.
(Sec. 413-17; ordained by Ord. No. 297-1962, eff. Aug. 1, 1962; reordained as C.M.C. 413-17, eff. Jan. 1, 1972)

Cross reference—Penalty, § 413-99.

Sec. 413-19. Posting of Signs.

Each parking garage or parking lot shall post in a prominent location at each entrance, signs of a permanent nature and clearly legible at all times, with all lettering a minimum of five inches high. Signs shall comply with city of Cincinnati ordinances and regulations of the director. The director may approve a sign location other than at the entrance. Signs shall bear the following information:

(a) The trade name of the business, and the full name and address and telephone number of the operator.

(b) The hours and days of operation and whether there are different rates on certain days or times of the day.

(c) A schedule of rates and charges by the hour and the day in effect for the parking of cars and bicycles. No customer shall be charged any rate different from the rate posted at the time customer entered the parking garage or parking lot. If more than one rate is charged for the parking of a motor vehicle, the letters and figures designating each such rate shall be of the same size. Any outdoor parking lot which has the rates and charges posted on a sign, shall post the sign not less than eight feet above the sidewalk level, and such sign shall not bear any advertising or other matter than the substance required by this chapter.

(d) The number of the license issued under the provisions of this chapter for the particular parking garage or parking lot.

(e) In the case of a parking lot, if the operator provides a transfer station for cars left during the unattended hours, the sign shall designate the name and address and telephone number of the transfer station.

(f) Each parking garage and parking lot shall post an international parking symbol in a prominent location at each entrance.

An official city of Cincinnati sign indicating an approved licensed parking garage or

parking lot may be furnished by the director, and when furnished shall be posted at or near the aforesaid information sign.
(Sec. 413-19; ordained by Ord. No. 297-1962, eff. Aug. 1, 1962; reordained as C.M.C. 413-19, eff. Jan. 1, 1972; a. Ord. No. 221-1995, eff. June 25, 1995; a. Ord. No. 065-2010, § 4, eff. April 17, 2010)

Analogous to C.O. 413-11; r. Ord. No. 297-1962, eff. Aug. 1, 1962.

Sec. 413-21. Parking Payment Tickets.

When a vehicle is brought into a parking garage or parking lot for hourly or daily parking, the person in control or possession of the vehicle shall be furnished with a parking payment ticket which shall contain the name and address of the parking garage, or parking lot, and the date and time when the vehicle entered. If payment is due and collected upon entry to the lot, then the duration of stay and the amount paid shall be included on the parking payment ticket or receipt. Further, if the parking garage or lot requires that the receipt or other documentation be left on the car dashboard as evidence of payment, signage stating this requirement shall be clearly visible at the location of payment and other conspicuous places so that the parking public is informed of the requirement.

Where a vehicle is stored for a period of more than 24 hours, a written receipt or memorandum shall be given to the person storing the vehicle stating this parking arrangement and showing the name and address of the parking garage, parking lot or transfer station.
(Sec. 413-21; ordained by Ord. No. 297-1962, eff. Aug. 1, 1962; reordained as C.M.C. 413-21, eff. Jan. 1, 1972; Emer. Ord. No. 248-2024, § 1, eff. June 12, 2024)

Analogous to C.O. 413-12; r. Ord. No. 297-1962, eff. Aug. 1, 1962.

Sec. 413-23. Removal of Vehicles, Unauthorized Use.

No licensee shall make or permit any use for any purpose whatsoever of a vehicle left in licensee's custody unless such use shall have first been expressly authorized in writing by the owner or person in possession or control of such vehicle.

No licensee shall transfer or cause to be moved or transferred any parked vehicle through or upon the city streets or alleys, except for transferring a vehicle from one space to another space at the same location, or at closing time moving the vehicle to an authorized transfer station or picking up or delivering a vehicle to the owner thereof.
(Sec. 413-23; ordained by Ord. No. 297-1962, eff. Aug. 1, 1962; reordained as C.M.C. 413-23, eff. Jan. 1, 1972)

Analogous to C.O. 413-13; r. Ord. No. 297-1962, eff. Aug. 1, 1962.

Cross reference—Penalty, § 413-99.

Sec. 413-25. Sidewalk or Street Parking.

No licensee shall park, permit or cause to be parked a vehicle of any patron upon a public street, alley or sidewalk; or to permit or cause a patron's vehicle to encroach upon any street, alley or sidewalk except as otherwise provided in Section 508-1-A of the Cincinnati Municipal Code.
(Sec. 413-25; ordained by Ord. No. 297-1962, eff. Aug. 1, 1962; reordained as C.M.C. 413-25, eff. Jan. 1, 1972; a. Ord. No. 380-2016, § 2, eff. Jan. 7, 2017)

Cross references—Penalty, § 413-99; streets and sidewalks, use regulations, ch. 723.

Sec. 413-27. Protection Against Theft or Conversion.

Every parking garage or parking lot shall be operated and managed so as to afford protection from theft or conversion of vehicles parked. Whenever an operator is unable to

immediately deliver a car to a patron, such fact shall be immediately reported to the director.
(Sec. 413-27; ordained by Ord. No. 297-1962, eff. Aug. 1, 1962; reordained as C.M.C. 413-27, eff. Jan. 1, 1972; a. Ord. No. 203-1980, eff. June 7, 1980; Emer. Ord. No. 061-2013, § 29, eff. March 14, 2013)

Analogous to C.O. 413-16; r. Ord. No. 297-1962, eff. Aug. 1, 1962.

Cross reference—Penalty, § 413-99.

Sec. 413-28. Reports as to Vehicles Stored More Than Seventy-two Hours.

Whenever on any Monday, at 12 a.m. (noon), there shall be in the care of the owner of any parking lot or public garage business, one or more vehicles which have been left continuously on the said parking lot or public garage premises for more than 72 hours, such owner shall, before 6 p.m. of such Monday, file with the director a report setting forth the state license registration number of each such motor vehicle and any other information which the director shall require. No vehicle shall be reported more than once on any consecutive stay.
(C.O. 737-8; renumbered to C.M.C. 413-28, eff. Jan. 1, 1972; Emer. Ord. No. 061-2013, § 30, eff. March 14, 2013)

Sec. 413-29. Sanitary Conditions.

The operator of a parking garage or parking lot shall keep the premises thereof in a safe, sanitary condition, free of any nuisance.
(Sec. 413-29; ordained by Ord. No. 297-1962, eff. Aug. 1, 1962; reordained as C.M.C. 413-29, eff. Jan. 1, 1972)

Analogous to C.O. 413-15; r. Ord. No. 297-1962, eff. Aug. 1, 1962.

Sec. 413-31. Inspections.

The director or an authorized representative is authorized to make periodic inspections of parking garage and parking lots for the purpose of carrying out the provisions of this chapter, and for gathering factual data as to number of vehicles parked and the total vehicles parked in any parking garage or parking lot.
(Sec. 413-31; ordained by Ord. No. 297-1962, eff. Aug. 1, 1962; reordained as C.M.C. 413-31, eff. Jan. 1, 1972; Emer. Ord. No. 248-2024, § 1, eff. June 12, 2024)

Cross reference—Stormwater management code, § 720 et seq.

Sec. 413-33. Liability Insurance.

No license to operate a parking garage or parking lot shall be issued or renewed by the city, unless and until the applicant shall supply the city with proof of a policy or policies of liability insurance issued by a responsible insurance company at or above the limits established by the director. No person shall operate any parking garage or parking lot or permit such to be operated unless such liability insurance is maintained for as long as the licensee operates a parking garage or parking lot. The director is authorized to establish minimum insurance limits required to be carried by licensees to protect against claims for damages and injury, including theft from automobiles coverage. The director shall publish the minimum insurance limits on the city's website 30 days before they become effective.
(Sec. 413-33; ordained by Ord. No. 297-1962, eff. Aug. 1, 1962; reordained as C.M.C. 413-33, eff. Jan. 1, 1972; Emer. Ord. No. 248-2024, § 1, eff. June 12, 2024)

Sec. 413-35. Repealed.

(Sec. 413-35; ordained by Ord. No. 297-1962, eff. Aug. 1, 1962; a. Ord. No. 332-1963, eff. Oct. 2, 1963; reordained as C.M.C. 413-35, eff. Jan. 1, 1962; r. Emer. Ord. No. 248-2024, § 2, 6-12-2024)

Sec. 413-37. Bond in Lieu of Insurance.

In lieu of any policy or policies of insurance required by Section 413-33, applicant

may furnish a bond executed by a surety company authorized to do business in the state of Ohio, approved as to form by the city solicitor, holding and binding the principal and sureties to the same liability, and subject to the same conditions as in the case of policies of insurance provided for herein.

It shall further be permissible for the applicant to furnish insurance for personal injuries, including death, and an indemnity bond or bonds as to the property damage, or vice versa.
(Sec. 413-37; ordained by Ord. No. 297-1962, eff. Aug. 1, 1962; reordained as C.M.C. 413-37, eff. Jan. 1, 1972; Emer. Ord. No. 248-2024, § 1, eff. June 12, 2024)

Sec. 413-39. Notice of Insurance or Bond Termination.

Every such policy or certificate of insurance or bond shall contain a clause obligating the insurer or surety to give to the city treasurer at least 10 days' written notice before the cancellation, expiration, lapse or other termination of such insurance, or the expiration, withdrawal of the surety therefrom or other termination of such bond; and the license, granted shall be suspended upon the termination of the insurance or bond, or upon the termination of the liability of the insurer or surety thereon in accordance with such notice, unless and until a new policy or certificate of liability insurance or a new indemnity bond, approved as hereinbefore provided, shall be substituted therefor.

Failure to give the notice required shall operate to continue the liability of the insurer or surety for the benefit of persons injured or damaged, and the policy shall continue in full force and effect.
(Sec. 413-39; ordained by Ord. No. 297-1962, eff. Aug. 1, 1962; reordained as C.M.C. 413-39, eff. Jan. 1, 1962)

Sec. 413-41. Rules and Regulations.

The director is hereby authorized and directed to establish necessary rules and regulations consistent with the provisions of this chapter.
(Sec. 413-41; ordained by Ord. No. 297-1962, eff. Aug. 1, 1962; reordained as C.M.C. 413-39, eff. Jan. 1, 1972)

Sec. 413-43. Revocation, Suspension or Refusal to Issue or Renew License.

Any license provided for in this chapter may be revoked, suspended or refused by the director for any of the following causes:

(a) Misrepresentation or false statement made in obtaining a license.

(b) Any violation of any applicable provisions of the Cincinnati Municipal Code.

(c) Failure to comply with any lawful order of any officer of the city having jurisdiction.

(d) Any fraudulent or dishonest use of a license.

(Sec. 413-43; ordained by Ord. No. 297-1962, eff. Aug. 1, 1962; reordained as C.M.C. 413-43, eff. Jan. 1, 1972)

Analogous to C.O. 413-18, r. Ord. No. 297-1962, eff. Aug. 1, 1962.

Sec. 413-45. Revocation or Suspension Procedure.

No license provided for in this chapter shall be suspended or revoked without a hearing or opportunity to be heard before the director. When the charges as to one or more of the items set forth in Section 413-43 have been sustained, the director shall suspend or revoke the license in accordance with the decision of the director.
(Sec. 413-45; ordained by Ord. No. 297-1962, eff. Aug. 1, 1962; reordained as C.M.C. 413-45, eff. Jan. 1, 1972; Emer. Ord. No. 248-2024, § 1, eff. June 12, 2024)

Sec. 413-47. Appeal.

When the director shall have refused, suspended or revoked a license provided for in this chapter, the applicant or licensee may appeal within 10 days after such refusal, suspension or revocation, by filing with the director and city manager a written notice of appeal. The city manager or person designated by the city manager, upon hearing such appeal, may either affirm, modify, or set aside the findings of the director.

(Sec. 413-47; ordained by Ord. No. 297-1962, eff. Aug. 1, 1962; reordained as C.M.C. 413-47, eff. Jan. 1, 1972; a. Ord. No. 487-1974, eff. Dec. 20, 1974)

Analogous to C.O. 413-19; r. Ord. No. 297-1962, eff. Aug. 1, 1972.

Sec. 413-99. Penalties.

Except where a penalty for a violation of a provision of this chapter is otherwise provided, a person who violates any provision of this chapter commits a Class E1 Civil Offense as defined by Cincinnati Municipal Code Section 1501-14, and is liable for the civil fine specified in Section 1501-99 for a Class E1 Civil Offense. Each day's violation of any section shall constitute a separate offense.

(Sec. 413-49; ordained by Ord. No. 297-1962, eff. Aug. 1, 1962; renumbered to C.M.C. 413-99, eff. Jan. 1, 1972; Emer. Ord. No. 248-2024, § 1, eff. June 12, 2024)

Analogous to C.O. 413-17; r. Ord. No. 297-1962, eff. Aug. 1, 1962.

Sec. 413-99-A. Repealed.

(C.O. 737-8; renumbered to C.M.C. 413-99-A, eff. Jan. 1, 1972; r. Emer. Ord. No. 248-2024, § 2, eff. June 12, 2024)

Chapter 414

VALET PARKING*

Sec. 414-1. Definitions.
Sec. 414-1-B. Valet Parking Business.
Sec. 414-1-C. City Right-of-Way.
Sec. 414-1-I. Sponsoring Business.
Sec. 414-1-V. Valet Parking Zone.
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Sec. 414-5. Criteria to be Used.
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Sec. 414-19. Exclusive Operation Within the Valet Zone.
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Sec. 414-21. Rules and Regulations.
Sec. 414-23. Premises Parking.
Sec. 414-25. Appeals.
Sec. 414-99. Penalties.

*__Cross reference—__Business regulations, tit. VIII.

Sec. 414-1. Definitions.

For the purpose of this chapter the words and phrases defined in this chapter shall have the meanings respectively ascribed to them unless the context clearly indicates or requires a different meaning.
(Ordained by Ord. No. 150-1999, eff. May 28, 1999)

Sec. 414-1-B. Valet Parking Business.

"Valet Parking Business" means a corporation, partnership or proprietor who takes temporary control of a vehicle of customer of a business establishment to park, store or retrieve said vehicle and, which service is incidental to the business.
(Ordained by Ord. No. 150-1999, eff. May 28, 1999)

Sec. 414-1-C. City Right-of-Way.

"City right-of-way" shall mean those streets and ways, including the sidewalk areas, dedicated, either by statute, ordinance, or common law to the use of the public and controlled or maintained by the city.
(Ordained by Ord. No. 150-1999, eff. May 28, 1999)

Sec. 414-1-I. Sponsoring Business.

"Sponsoring Business" shall mean a property owner, or a lessee with the written permission of the property owner, that desires to sponsor a Valet Parking Business to provide valet services that will provide a direct benefit to its patrons as well as to the general public, at a proposed valet zone located on the same side of the street and within 100 feet of the entrance to such property.
(Ordained by Ord. No. 236-2008, § 1, eff. July 25, 2008)

Sec. 414-1-V. Valet Parking Zone.

"Valet Parking Zone" shall mean an area within the city of Cincinnati, determined by the city traffic engineer, which should be served by one valet parking business.
(Ordained by Ord. No. 150-1999, eff. May 28, 1999)

Sec. 414-3. Creation of Valet Parking Zones.

The city traffic engineer is authorized to establish valet parking zones and to determine the effective hours and days of said zones.
(Ordained by Ord. No. 150-1999, eff. May 28, 1999)

Sec. 414-5. Criteria to be Used.

In determining whether to establish a valet parking zone the traffic engineer shall consider:

(a) Whether more than one valet parking business wishes to provide valet parking in the same area at the same time of day.

(b) The availability of sites suitable for the dropping off and picking up of vehicles.

(c) The proximity and availability of non-valet parking spaces in the immediate area to be served.

(d) The wants of the majority of business owners, whose customers use valet parking, in the area to be served.

(e) The practicality of having more than one valet parking business in the area.

(Ordained by Ord. No. 150-1999, eff. May 28, 1999)

Sec. 414-7. Valet Parking Board.

There is hereby created a Valet Parking Board consisting of the Director of Community and Economic Development, the traffic

engineer, the Chief of Police, or their designees. The solicitor's office shall provide legal support to the Valet Parking Board as necessary. In addition the Valet Parking Board may have a non-voting representative of the businesses in the zone which will use the valet parking. The business representative shall be selected by a vote of the business owners using valet parking within the zone. The three voting members of the Board are authorized to draft rules regarding the method of selecting the non-voting member and the length of his term.

The traffic engineer may establish a valet parking zone based upon an independent determination of a need, or at the request of an interested business pursuant to 414-3 herein. In the case where the traffic engineer independently determines a need for the establishment of a valet zone, the valet parking board shall advertise at least once, in the City Bulletin, seeking valet parking businesses to operate in the valet parking zone. Subsequently the board shall consider all interested businesses and select one valet provider for the newly created valet parking zone. However, in the case where the traffic engineer is approached by a valet parking business requesting the creation of a valet parking zone which that business intends to service, the Valet Parking Board need not go through the advertising process outlined above. In making its decision as to which business to select to operate a newly established valet parking zone, the board shall consider:

(a) The wants of the businesses whose customers use valet parking, the affected neighborhood and business associations, and any affected citizen.

(b) The level of valet parking services to be provided.

(c) The proximity of the garage or lot proposed to be used by the provider.

(d) The amounts to be charged for valet parking.

(e) Any other relevant factors.

(Ordained by Ord. No. 150-1999, eff. May 28, 1999; a. Ord. No. 0100-2007, §§ 1, 2, eff. April 14, 2007; a. Ord. No. 236-2008, § 1, eff. July 25, 2008; Emer. Ord. No. 238-2015, § 1, eff. July 1, 2015)

Sec. 414-8. Sponsorship.

Every Valet Parking Business must have a Sponsoring Business supporting its operation within a specific valet zone. The Sponsoring Business must indicate its willingness to act as a sponsor by signing the valet parking operation permit application in the appropriate location or by submitting a letter of support at the same time that the application is filed. If no sponsor is indicated on the application, the application shall be rejected. Whether the Sponsoring Business falls within the definition, purpose, and intent of this chapter is up to the discretion of the Valet Parking Board, as individual situations may vary due to the nature of the public right of way and surrounding neighborhood.

A Sponsoring Business may withdraw its support of a Valet Parking Business at any time. Should a Sponsoring Business withdraw its support, or go out of business, the Valet Parking Business must give immediate notice to the Valet Parking Board and shall have thirty (30) days to submit a letter of support from a different Sponsoring Business. If there is no other Sponsoring Business available or interested in sponsoring the Valet Parking Business, its valet license shall be revoked for the specified valet zone.

(Ordained by Ord. No. 236-2008, § 1, eff. July 25, 2008)

Sec. 414-9. City may Issue Permit to Valet Parking Business.

Upon the recommendation of the valet parking board the city manager, or the

manager's designee, may issue a valet parking permit to a valet parking business enabling the provider to be the exclusive provider, or the temporary provider, of valet parking services in a valet zone. The permit may limit the hours and days for the provision of exclusive service, and may call for payment to the city for the exclusive right. In addition, the permit shall require the valet parking business to pay the parking meters during the hours of operation. The permit may contain additional provisions which, in the opinion of the city manager, or the manager's designee, are in the best interest of the city.

(Ordained by Ord. No. 150-1999, eff. May 28, 1999; a. Ord. No. 236-2008, § 1, eff. July 25, 2008; Emer. Ord. No. 058-2013, § 1, eff. March 6, 2013)

Sec. 414-11. Minimum Requirements of a Valet Parking Business.

Every valet parking business operating pursuant to a permit as provided by Section 414-9 shall:

(a) Use employees, and not independent contractors, to park and secure vehicles.

Every valet parking business operating pursuant to a permit as provided by Section 414-9 shall:

(a) Use employees, and not independent contractors, to park and secure vehicles.

(b) Employ only drivers with valid licenses, age 18 or over, to transport and park vehicles.

(c) Procure a police record check for each employee who operates or secures a vehicle of another.

(d) Not entrust the vehicle of another to an employee convicted of a felony, an offense involving moral turpitude, or theft.

(e) Not entrust the vehicle of another to an employee who is addicted to alcohol or drugs.

(f) Not have a vehicle parked on the street for a period in excess of fifteen (15) minutes, or valet park or relocate the vehicle to either another legal space not designated by the valet parking business in its license, or any prohibited on-street parking space.

(g) Not have a vehicle parked on the sidewalk.

(h) Not discourage, or otherwise permit its employees from discouraging, the use of otherwise legal parking spaces as a means to reserve the space or area for valet use or operations.

(i) Not allow or permit its employees to accept keys or take possession of a vehicle while the vehicle is in a moving lane of traffic.

(j) Only operate its valet business during the times and at the locations specified in its contract.

(k) Provide proof of, and keep in effect, a minimum of $1,000,000 liability insurance per occurrence, $1,000,000 property damage per occurrence, and $1,000,000 garage keepers' liability per occurrence. Such policy shall name the City of Cincinnati as an additional insured. No such policy shall be subject to cancellation except upon ten days notice to the Valet Parking Board.

(l) Place or cause his agent to place on the dashboard of each patron vehicle a sign or placard of a size no smaller than four by five inches in such a manner so as to be conspicuously vis-

ible through the windshield of the patron vehicle. The sign or placard shall clearly state: "This Vehicle Parked By [Valet Parking Business]."

(m) During the hours parking meters are in operation, pay any and all charges at such parking meters that the valet business is authorized to use pursuant to its valet parking permit, regardless of whether valet business has parked a car at such meter.

(Ordained by Ord. No. 150-1999, eff. May 28, 1999; a. Ord. No. 169-2006, § 1, eff. July 7, 2006; a. Ord. No. 0100-2007, § 3, eff. April 14, 2007; a. Ord. No. 236-2008, § 1, eff. July 25, 2008; Emer. Ord. No. 058-2013, § 1, eff. March 6, 2013)

Sec. 414-13. Revocation or Modification of Permit; Annual Review and Renewal.

The valet parking board may revoke or modify any permit granted pursuant to Section 414-9 for any of the following causes:

(a) Misrepresentation or false statement made in obtaining the permit.

(b) Any material breach of the permit.

(c) Failure to comply with any lawful order of any city department.

(d) Any misconduct or unlawful act which, under the circumstances, the valet parking board deems sufficient to find that the franchisee is of undesirable character.

(e) Any series of violation of this chapter, or of the rules and regulations promulgated hereunder, the accumulation of which results in a finding by the valet parking board that the permittee is irresponsible or unreliable.

(f) The withdrawal of sponsorship or the going out of business of the Sponsoring Business.

Each valet permit issued shall be for a one-year term, commencing on January 1st each year. Applications for the renewal of a valet parking operator permit shall be made to the Valet Board not less than sixty (60) days prior to the expiration of the permit to be renewed.

In addition, the valet parking board may conduct an annual review of each operator of a valet parking zone. Such a review may take into consideration any factors which the valet parking board deems relevant, including but not limited to citizen and business complaints and concerns, opinions from the police precinct in which the valet parking zone is located, any alleged misconduct, or any violations of this chapter. Upon completion of the review, and based upon the facts presented, the valet parking board may, at its sole discretion, choose to either renew or cancel the permit to operate in a specified valet parking zone.

(Ordained by Ord. No. 150-1999, eff. May 28, 1999; a. Ord. No. 0100-2007, §§ 5, 6, eff. April 14, 2007; a. Ord. No. 236-2008, § 1, eff. July 25, 2008)

Sec. 414-15. Valet Parking Locations.

The Traffic Engineer is authorized to establish locations within a valet parking zone for the exclusive provision of valet services by a Valet Parking Business who received a permit pursuant to Section 414-9. The Traffic Engineer is authorized to abolish any valet parking location if, in his opinion, the use of said location creates a traffic safety problem or public inconvenience.

(Ordained by Ord. No. 150-1999, eff. May 28, 1999; a. Ord. No. 236-2008, § 1, eff. July 25, 2008)

Sec. 414-16. Temporary Valet Service.

A Valet Parking Business may apply for a one-time temporary valet permit to serve a temporary valet zone for a special event or under special circumstances. This chapter of municipal code is applicable to temporary valet service just as it is applicable to other valet services.
(Ordained by Ord. No. 236-2008, § 1, eff. July 25, 2008)

Sec. 414-17. Valet Parking Signs.

The Valet Parking Business may only display one sidewalk sandwich board in accordance with the terms of Cincinnati Municipal Code section 723-12.
(Ordained by Ord. No. 150-1999, eff. May 28, 1999; a. Ord. No. 236-2008, § 1, eff. July 25, 2008)

Sec. 414-19. Exclusive Operation Within the Valet Zone.

No person, other than the one operating pursuant to a permit issued pursuant to Section 414-9, shall offer valet parking services within a valet parking zone during the effective hours. No business within a valet parking zone shall suffer any valet parking business to operate a valet parking service, other than the business operating pursuant to a permit issued pursuant to Section 414-9, for said business during the restricted hours.
(Ordained by Ord. No. 150-1999, eff. May 28, 1999; a. Ord. No. 236-2008, § 1, eff. July 25, 2008)

Sec. 414-20. Valet Zone Open to the Public.

Each valet zone established under this chapter shall be for public use and shall not be reserved for any particular business establishment or any particular private user. Each Valet Parking Business receiving a permit under this Chapter acknowledges that the provision of valet services are being offered as a benefit to the general public.
(Ordained by Ord. No. 236-2008, § 1, eff. July 25, 2008)

Sec. 414-21. Rules and Regulations.

The Valet Parking Board is hereby authorized to establish additional rules and regulations governing the actions of both the businesses, and the employees of the businesses, which are in contract with the City pursuant to Section 414-9. Said rules and regulations may not be inconsistent with the provisions of this chapter.
(Ordained by Ord. No. 150-1999, eff. May 28, 1999; a. Ord. No. 236-2008, § 1, eff. July 25, 2008)

Sec. 414-23. Premises Parking.

This chapter does not apply to any business providing patron parking entirely and solely on its business premises. However all off premises valet service are subject to this chapter.
(Ordained by Ord. No. 150-1999, eff. May 28, 1999)

Sec. 414-25. Appeals.

Any Valet Parking Business, or an affected business owner or resident, aggrieved by any decision of the Valet Parking Board with respect to the issuance or denial of a valet license, may appeal to the city manager by filing a notice of appeal with the city manager within 15 days after such issuance or denial. The city manager, or a person designated by the city manager, may affirm, modify, or set aside the findings of the Valet Parking Board. The findings of the city manager or designee shall be final and conclusive. Whether to conduct a public hearing on the appeal, or whether to determine the merits of the appeal based on the record presented, is within the sole discretion of the city manager.
(Ordained by Ord. No. 0100-2007, § 7, eff. 4-14-07)

Sec. 414-99. Penalties.

Whoever violates any provision of this chapter is subject to a civil fine pursuant to Section 1501-7 of the Cincinnati Municipal Code. If an offender has been previously fined for a violation of this Chapter pursuant to Section 1501-7, the second offense is a misdemeanor of the fourth degree.
(Ordained by Ord. No. 150-1999, eff. May 28, 1999)

Chapter 415

VIDEO SERVICE AUTHORIZATION

Sec. 415-1. Title.
Sec. 415-2. Definitions.
Sec. 415-3. VSP Fee.
Sec. 415-4. VSP Fee Notice Provision.
Sec. 415-5. VSP Public Access Payment.
Sec. 415-6. VSP Access Provision.
Sec. 415-7. Access Programming Requirements.
Sec. 415-8. Fee Payment Requirements.
Sec. 415-9. Peg Origination Points.
Sec. 415-10. Notice Requirement.
Sec. 415-11. Application to Incumbent Cable Providers.
Sec. 415-99. Penalty.

Sec. 415-1. Title.

This Chapter shall be known as "Video Service Authorizations."
(Ordained by Emer. Ord. No. 0450-2007, § 1, eff. Dec. 19, 2007)

Sec. 415-2. Definitions.

For the purpose of this Chapter, the following terms, phrases, words and their derivations shall have the meanings given herein. When not inconsistent with the context, words used in the present tense include the future, words in the plural number include the singular number, words in the singular number include the plural number, and the use of any gender shall be applicable to all genders whenever the sense requires. The words "shall" and "will" are mandatory and the word "may" is permissive. Words not defined shall be given their common and ordinary meaning.

Incumbent Cable Provider. Any person who, on the effective date of this section, is the holder of a cable franchise agreement with the city as granted pursuant to requirements of 47 U.S.C 541.

PEG. Activities or actions performed for the benefit of public, educational and government video programming by the city or any other community or educational access programming entity or affiliate.

Public Access Payment or *PAP*. The fee required to be paid to the city by a VSP in accordance with the requirements of § 415-5.

Video Service. The service defined in R.C. Section 1332.21(J).

Video Service Authorization or *VSA*. The authorization granted to a video service provider in accordance with the requirements of R.C. Sections 1332.21 to 1332.34 et seq.

Video Service Provider Fee or *VSP Fee*. The fee paid by a VSP in accordance with the requirements of R.C Section 1332.32.

Video Service Provider or *VSP*. A person, firm, or corporation granted a video service authorization under R.C. Sections 1332.21 to 1332.34 et seq.
(Ordained by Emer. Ord. No. 0450-2007, § 1, eff. Dec. 19, 2007)

Sec. 415-3. VSP Fee.

In accordance with the requirements of R.C. Section 1332.32, all VSPs providing video service in the city pursuant to a VSA obtained from the Director of the Ohio Department of Commerce shall pay a VSP fee in the amount of five percent of gross revenues received from providing video service in the city, which gross revenue base shall include advertising revenues as defined by R.C. Section 1332.32(B)(2)(g). The VSP fee shall be paid quarterly, not later than 60 days after the end of each calendar quarter.
(Ordained by Emer. Ord. No. 0450-2007, § 1, eff. Dec. 19, 2007)

Sec. 415-4. VSP Fee Notice Provision.

Upon receipt of notice from a VSP that it will begin providing video service in the city pursuant to a state-issued video service authorization, the city manager or his designee is authorized and directed to provide such VSP with notice of the VSP fee as determined by this council in section 415-3 which notice shall be delivered in a manner that provides for proof of timely delivery.
(Ordained by Emer. Ord. No. 0450-2007, § 1, eff. Dec. 19, 2007)

Sec. 415-5. VSP Public Access Payment.

Upon receipt of notice from a VSP that it will begin providing video service in the city pursuant to a VSA, the city manager or his designee is authorized and directed to provide such VSP with notice that the VSP shall be required to pay to the city, until at least June 17, 2011, an additional fee of $0.96 per month per city subscriber, paid on a quar-

terly basis, which fee shall be known as the public access payment or PAP and shall benefit public access and educational access in the city, and be equal, on a per subscriber basis, to the fee currently paid the incumbent cable provider with the most recent such obligation, which notice shall be delivered in a manner that provides for proof of timely delivery.

Sec. 415-6. VSP Access Provision.

Upon receipt of notice from a VSP that it will begin providing video service in the city pursuant to a VSA, the city manager or his designee is authorized and directed to provide such VSP with notice that the VSP shall be required to provide the same number of PEG channels in the city under the same service tier conditions and subject to the same channel reclamation conditions as may be proscribed by R.C. Section 1332.30(A)(1)(a), (b) for the incumbent cable provider with the most recent obligation in the city, which notice shall be delivered in a manner that provides for proof of timely delivery and shall state the appropriate number of PEG channels and service tiers required to be provided by the VSP within the city within 120 days after delivery of such notice.
(Ordained by Emer. Ord. No. 0450-2007, § 1, eff. Dec. 19, 2007)

Sec. 415-7. Access Programming Requirements.

In accordance with the requirements of R.C. Section 1332.30(A)(1)(a) when more than three PEG access channels are provided to the city by an incumbent cable provider or VSP, such additional channel shall be programmed by the city with at least 40 hours of non-character generated content per week with at least 60 percent of the programming being non-repeat and locally produced. For the purposes of this section "non-repeat and locally produced" shall mean, the first three playbacks of programming produced or provided by any local resident, any community or educational access programming entity or affiliate, or any local public or private agency that provides services to residents of the greater Cincinnati metro area, or any transmission of a meeting or proceeding of any local, state, or federal governmental entity.
(Ordained by Emer. Ord. No. 0450-2007, § 1, eff. Dec. 19, 2007)

Sec. 415-8. Fee Payment Requirements.

Any VSP fee or PAP payments required to be paid to the city by a VSP shall be made quarterly and be remitted directly to the city via a negotiable instrument made payable to the City of Cincinnati and delivered to The City of Cincinnati - Office of the Cable Communications, Room 28, 801 Plum Street, Cincinnati, Ohio 45202, not later than 60 days after the end of a calendar quarter.
(Ordained by Emer. Ord. No. 0450-2007, § 1, eff. Dec. 19, 2007)

Sec. 415-9. Peg Origination Points.

The PEG programming origination points for the city for the delivery of VSP access services and PEG programming are currently and unless and until the city shall designate otherwise, will remain located at 801 Plum Street, Cincinnati, Ohio 45202 and 1100 Race Street Cincinnati, Ohio 45202.
(Ordained by Emer. Ord. No. 0450-2007, § 1, eff. Dec. 19, 2007)

Sec. 415-10. Notice Requirement.

Any notice to the city that is required of a VSP in accordance with R.C. Sections 1332.21 through 1332.34 shall be provided in written form to the city manager either by certified mail, express mail or upon personal delivery, all evidenced by a return receipt.
(Ordained by Emer. Ord. No. 0450-2007, § 1, eff. Dec. 19, 2007)

Sec. 415-11. Application To Incumbent Cable Providers.

Nothing in this section shall apply to incumbent cable providers until they are granted a video service authorization in accordance with R.C. 1332.21—1331.34 et seq.
(Ordained by Emer. Ord. No. 0450-2007, § 1, eff. Dec. 19, 2007)

Sec. 415-99. Penalty.

Whoever violates any of the provisions of this chapter is guilty of a misdemeanor of the third degree and shall be fined not more than $500.00 or imprisoned not more than 60 days, or both. A separate offense shall be deemed committed each day during or on which a violation occurs or continues.
(Ordained by Emer. Ord. No. 0450-2007, § 1, eff. Dec. 19, 2007)

TITLE V

TRAFFIC CODE*

Chapter 500

INTRODUCTION

Sec. 500. Introduction.

*__Cross references—__Municipal motor vehicle license tax, ch. 314; motor buses, ch. 406; public vehicles, ch. 407; transporting downed animals prohibited, § 701-3; removal of abandoned automobiles and automobile wreckage, § 729-65.

Sec. 500. Introduction.

Title V of the Cincinnati Municipal Code shall be known as the "Cincinnati Traffic Code," or as the "traffic code."
(C.O. 500; reordained as C.M.C. 500, eff. Jan. 1, 1972)

Chapter 501

DEFINITIONS

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Sec. 501-1-T6. Train of Vehicles.
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Sec. 501-1-T8. Truck Tractor.
Sec. 501-1-U. Urban District.
Sec. 501-1-V. Vehicle.
Sec. 501-1-V1. Violate.

Sec. 501-1. Definitions.

For the purposes of the traffic code, the words and phrases defined in the sections hereunder shall have the meanings therein respectively ascribed to them unless a different meaning is clearly indicated by the context.
(C.O. 501; renumbered to C.M.C. 501-1, eff. Jan. 1, 1972)

State law reference—ORC 4511.01.

Sec. 501-1-A. Agricultural Tractor.

"Agricultural tractor" shall mean every self-propelling vehicle designed or used for drawing other vehicles or wheeled machinery but having no provision for carrying loads independently of such other vehicles, and used principally for agricultural purposes.
(C.O. 501-a1; renumbered to C.M.C. 501-1-A, eff. Jan. 1, 1972)

Sec. 501-1-A1. Alley.

"Alley" shall mean a narrow street or highway intended to provide access to the rear or side of lots or buildings and not intended for through vehicular traffic, and including any street or highway that has been declared an "alley" by legislative authority.
(C.O. 501-a2; renumbered to C.M.C. 501-1-A1, eff. Jan. 1, 1972; a. Ord. No. 76-1976, eff. Feb. 25, 1976)

Sec. 501-1-A2. Arterial Street.

"Arterial street" shall mean any United States or state numbered route, controlled access highway, or other major radial or circumferential street or highway designated by the city manager as part of a major arterial system of streets or highways.
(C.M.C. 501-1-A2; ordained by Ord. No. 76-1976. eff. Feb. 25, 1976)

Sec. 501-1-A3. Automated Traffic Enforcement System.

"Automated traffic enforcement system" shall mean any photographic equipment linked to a violation detection system that synchronizes the taking of a photograph with the occurrence of a traffic signal violation or moving infraction in accordance with § 502-19.2.
(Ordained by Ord. No. 261-2004, eff. 9-3-04)

Sec. 501-1-B. Bicycle.

"Bicycle" shall mean every device, other than a tricycle designed solely for use as a play vehicle by a child, propelled solely by human power upon which any person may ride having either two tandem wheels, or one wheel in front and two wheels in the rear, any of which is more than 14 inches in diameter.
(C.O. 501-61; renumbered to C.M.C. 501-1-B, eff. Jan. 1, 1972; a. Ord. No. 224-1972, eff. May 24, 1972; a. Ord. No. 286-1974, eff. July 18, 1974; a. Ord. No. 76-1976, eff. Feb. 25, 1976; a. Ord. No. 445-1976, eff. Sept. 29, 1976; a. Ord. No. 606-1983, eff. Dec. 21, 1983)

Sec. 501-1-B1. Bus.

"Bus" shall mean every motor vehicle designed for carrying more than nine passengers and used for the transportation of persons; and every motor vehicle, auto-for-hire or funeral car, other than a taxicab, designed and used for the transportation of persons for compensation.
(C.O. 501-b2; renumbered to C.M.C. 501-1-B1., eff. Jan. 1, 1972)

Sec. 501-1-B2. Business District.

"Business district" shall mean the territory fronting upon a street or highway, including the street or highway between successive intersections where 50 percent or

more of the frontage between such successive intersections is occupied by buildings in use for business, or where 50 percent or more of the frontage for a distance of 300 feet or more is occupied by buildings in use for business and the character of such territory is indicated by official traffic-control devices.
(C.O. 501-b3; renumbered to C.M.C. 501-1-B2, eff. Jan. 1, 1972)

Sec. 501-1-B3. Bicycle/Pedestrian Way.

"Bicycle/Pedestrian Way" shall mean that portion of a street between the curbline or the lateral lines of a roadway, and adjacent property lines, including that portion of elevated roadways serving to connect such portions of a street, as designated by the city manager and identified by appropriate signs or marks, intended for the joint use of bicycles and pedestrians.
(Ordained by Ord. No. 29-1995, eff. Feb. 21, 1995)

Sec. 501-1-C. Center Line.

"Center line" shall mean the line of the center of a roadway when not marked; otherwise the yellow line indicating the boundary between portions of a highway devoted to traffic in opposite directions.
(C.O. 501-c1; renumbered to C.M.C. 501-1-C, eff. Jan. 1, 1972)

Sec. 501-1-C2. Congested District.

"Congested district" shall mean the area bounded on the north by the north property line of Twelfth Street, on the east by the east property line of Broadway, on the south by the Ohio River and on the west by the west property line of Central Avenue.
(C.O. 501-c3; a. Ord. No. 113-1970, eff. May 15, 1970; renumbered to C.M.C. 501-1-C2, eff. Jan. 1, 1972)

Sec. 501-1-C3. Crosswalk.

"Crosswalk" shall mean:

(a) That part of a roadway at intersections ordinarily included within the real or projected prolongation of property lines and curb lines or, in the absence of curbs, the edges of the traversable roadway.

(b) Any portion of a roadway, at an intersection or elsewhere, distinctly indicated for pedestrian crossing by lines or other markings on the surface.

(c) If the city engineer or city traffic engineer authorizes curb ramps which are outside the crosswalk established by subsection (a) but within fifteen feet of the crosswalk, the crosswalk shall be extended to encompass the pathway between two opposite curb ramps.

Notwithstanding the foregoing provisions there shall not be a crosswalk where the city manager or person designated by the city manager has placed signs indicating no crossing.
(C.O. 501-c4; a. Ord. No. 150-1960, eff. May 20, 1960; renumbered to C.M.C. 501-1-C3, eff. Jan. 1, 1972; a. Ord. No. 412-1978, eff. Nov. 3, 1978; a. Ord. No. 236, 2003, eff. July 24, 2003)

Sec. 501-1-C4. Curb.

"Curb" shall mean a raised edging of stone, concrete, or the like, defining the limits of a roadway.
(C.O. 501-c5; renumbered to C.M.C. 501-1-C4, eff. Jan. 1, 1972)

Sec. 501-1-C5. Controlled-Access Highway.

"Controlled-access highway" shall mean every street or highway in respect to which owners or occupants of abutting lands and

other persons have no legal right or access to or from the same except at such points only and in such manner as may be determined.
(C.O. 501-c5; renumbered to C.M.C. 501-1-C5, eff. Jan. 1, 1972)

Sec. 501-1-C6. Curb Ramp.

"Curb Ramp" shall mean a slant ramp which cuts through a curb sloping from a sidewalk to a street, consisting of a stable, firm and slip resistant surface, and is designed to enable a wheelchair to traverse from the sidewalk to the street.
(Ordained by Ord. No. 236, 2003, eff. July 24, 2003)

Sec. 501-1-D. Director of Highways.

"Director of highways" shall mean the director of highways of the state of Ohio.
(C.O. 501-d1; renumbered to C.M.C. 501-1-D, eff. Jan. 1, 1972)

Sec. 501-1-D1. Driver or Operator.

"Driver" or "operator" shall mean every person who drives or is in actual physical control of a vehicle.
(C.O. 501-d2; a. Ord. No. 47-1971, eff. Feb. 10, 1971; renumbered to C.M.C. 501-1-D1, eff. Jan. 1, 1972)

Sec. 501-1-E. Explosives.

"Explosives" shall mean any chemical compound or mechanical mixture that is intended for the purpose of producing an explosion, that contains any oxidizing or combustible units or other ingredients in such proportions, quantities or packings that an ignition by fire, by friction, by concussion, by percussion or by detonator of any part of the compound or mixture may cause such a sudden generation of highly heated gases that the resultant gaseous pressures are capable of producing destructive effects on contiguous objects, or of destroying life or limb. The term shall also include any chemical element, chemical compound, or mechanical mixture which in itself or when subjected to heat or when combined with any natural element would produce any liquid, gas, dust particles or radiation that would destroy or injure life or property.

For the purpose of the traffic code, manufactured articles shall not be held to be explosives when the individual units contain explosives in such limited quantities, of such nature, or in such packing that it is impossible to procure a simultaneous or destructive explosion of such units, to the of life, limb, or property by fire, by friction, by concussion, by percussion, or by detonator, such as fixed ammunition for small arms, firecrackers, and safety fuse matches.
(C.O. 501-e1; renumbered to C.M.C. 501-1-E, eff. Jan. 1, 1972)

Sec. 501-1-E1. Expressways.

"Expressway" shall mean a divided arterial highway for through traffic with full or partial control of access with an excess of 50 percent of all crossroads separated in grade.
(Sec. 501-e2; ordained by Ord. No. 130-1960, eff. May 6, 1960; renumbered to C.M.C. 501-1-E1, eff. Jan. 1, 1972)

Sec. 501-1-E2. Emergency Vehicle.

"Emergency vehicle" shall mean emergency vehicles of municipal or county departments or public utility corporations when identified as such as required by law, the director of highway safety, or local authorities and motor vehicles when commandeered by a police officer.
(Sec. 501-e3; ordained by Ord. No. 109-1968, eff. Mar. 13, 1968; renumbered to C.M.C. 501-1-E2, eff. Jan. 1, 1972; a. Ord. No. 381-1976, eff. Aug. 4, 1976)

Sec. 501-1-E3. e-Scooter.

"e-Scooter" shall mean a low-speed micro-mobility device and shall additionally mean any motorized scooter consisting of a footboard mounted on two wheels, with a long steering handle, propelled by electric motor or another type of motor such that the rider of an e-scooter is able to keep both feet on the vehicle's footboard while riding. An "e-scooter" is different from a non-motorized "scooter," which term is defined in Section 501-1-S9 of this chapter.
(Ordained by Ord. No. 0292-2018, § 1, eff. Sept. 9, 2018; amended by Emer. Ord. No. 228-2021, §§ 1, 2, eff. June 2, 2021)

Sec. 501-1-F. Flammable Liquid.

"Flammable liquid" shall mean any liquid which would have a flash point of 70° Fahrenheit, or less, as determined by a tagliabue or equivalent closed cup test device.
(C.O. 501-f1; renumbered to C.M.C. 501-1-F, eff. Jan. 1, 1972)

Sec. 501-1-F1. Freeways.

"Freeway" shall mean a divided multi-lane highway for through traffic with all crossroads separated in grade and with full control of access.
(Sec. 501-f2; ordained by Ord. No. 130-1960, eff. May 6, 1960; renumbered to C.M.C. 501-1-F1, eff. Jan. 1, 1972)

Sec. 501-1-G. Gross Weight.

"Gross weight" shall mean the weight of a vehicle plus the weight of any load thereon.
(C.O. 501-g1; renumbered to C.M.C. 501-1-G, eff. Jan. 1, 1972)

Sec. 501-1-H1. House Vehicle.

"House vehicle" shall mean any vehicle, with or without motive power, designed or equipped for human habitation, including but not limited to vehicles known as mobile homes, campers, truck campers, trailer homes or house trailers.
(C.M.C. 501-1-H1; ordained by Ord. No. 516-1973, eff. Dec. 21, 1973)

Sec. 501-1-H2. Holidays.

"Holiday," when used in connection with any traffic-control device, shall mean any of the following holidays:

New Year's Day, January 1.

Martin Luther King, Jr. Day, the third Monday in January.

Memorial Day, the last Monday in May.

Independence Day, July 4.

Labor Day, the first Monday in September.

Thanksgiving Day, the fourth Thursday in November.

Christmas Day, December 25.
(Ordained by Ord. No. 225-1981, eff. June 10, 1981; a. Ord. No. 145-1983, eff. Apr. 6, 1983; a. Ord. No. 455-1987, eff. Nov. 27, 1987)

Sec. 501-1-I. Intersection.

"Intersection" shall mean the area bounded by the lateral lines, real or projected, of two or more public streets or highways which meet or cross another at grade.

Where a highway includes two roadways 30 feet or more apart, then every crossing of each roadway of such divided highway shall be regarded as a separate intersection. If an intersecting highway also includes two roadways 30 feet or more apart, then every crossing of two roadways of such highways shall be regarded as a separate intersection.

The junction of an alley with a street or highway shall not constitute an intersection.
(C.O. 501-i2; a. Ord. No. 443-1957, eff. Dec. 20, 1957; a. Ord. No. 151-1960, eff. May 20,

1960; renumbered to C.M.C. 501-1-I, Jan. 1, 1972; a. Ord. No. 224-1972, eff. May 24, 1972; a. Ord. No. 76-1976, eff. Feb. 25, 1976)

Sec. 501-1-J. Repealed.
(Ordained by Ord. No. 54-2003, eff. 4-4-03; r. Ord. No. 128-2003, eff. 4-30-03)

Sec. 501-1-L. Laned Highway.

"Laned highway" shall mean a highway the roadway of which is divided into two or more clearly marked lanes for vehicular traffic.
(C.O. 501-11; renumbered to C.M.C. 501-1-L, eff. Jan. 1, 1972)

Sec. 501-1-L2. Low Speed Micromobility Device.

"Low-speed micromobility device" shall have the same meaning as that term has in Ohio Revised Code Section 4511.01(WWW).
(Ordained by Emer. Ord. No. 228-2021, § 3, eff. June 2, 2021)

Sec. 501-1-M. Motorcycle.

"Motorcycle" shall mean every motor vehicle, other than a motorized bicycle as defined in Section 501-1-M or a tractor, having a saddle for the use of the operator and designed to travel on not more than three wheels in contact with the ground, including but not limited to motor vehicles known as "motor driven cycle," "motor scooter," or "motorcycle," without regard to weight or brake horsepower.
(C.O. 501-m1; renumbered to C.M.C. 501-1-M, eff. Jan. 1, 1972; a. Ord. No. 224-1972, eff. May 24, 1972; a. Ord. No. 286-1974, eff. July 19, 1974; a. Ord. No. 0292-2018, §§ 2, 3, eff. Sept. 9, 2018)

Sec. 501-1-M1. Motor Vehicle.

"Motor vehicle" shall mean every vehicle propelled or drawn by power other than muscular power, except road rollers, traction engines, power shovels, power cranes and other equipment used in construction work and not designed for or employed in general highway transportation, hole-digging machinery, well-drilling machinery, ditch-digging machinery, farm machinery, threshing machinery, hay-baling machinery, and agricultural tractors and machinery used in the production of horticultural, floricultural, agricultural and vegetable products.
(C.O. 501-m2; a. Ord. No. 47-1971, eff. Feb. 10, 1971; renumbered to C.M.C. 501-1-M1, eff. Jan. 1, 1972)

Sec. 501-1-M2. Motorized Bicycle.

"Motorized bicycle" means any vehicle having either two tandem wheels or one wheel on front and two wheels in the rear, that is capable of being pedaled and is equipped with a helper motor of not more than 50 cubic centimeters piston displacement which produces no more than one brake horsepower and is capable of propelling the vehicle at a speed of no greater than 20 miles per hour on a level surface.
(Ordained by Ord. No. 446-1983, eff. Oct. 21, 1983)

Sec. 501-1-O. Owner.

"Owner" shall mean a person who holds the legal title of a vehicle or in the event a vehicle is the subject of an agreement for the conditional sale or lease thereof, with the right of purchase upon performance of the conditions stated in the agreement and with an immediate right of possession vested in the conditional vendee or lessee, or in the event a mortgager of a vehicle is entitled to possession, then such conditional vendee or lessee or mortgagor shall be deemed the owner for the purposes of this code.
(C.O. 501-o1; renumbered to C.M.C. 501-1-0, eff. Jan. 1, 1972)

State law reference—ORC 4501.01 (P).

Sec. 501-1-P. Parking.

"Parking" shall mean the standing of a vehicle whether occupied or unoccupied within a highway or public safety zone. The term shall not apply to the temporary stopping of a vehicle for the purpose of and while actually engaged in loading and unloading passengers, or of a truck for the purpose of and while actually engaged in loading and unloading merchandise.
(C.O. 501-p1; a. Ord. No. 47-1971, eff. Feb. 10, 1971; renumbered to C.M.C. 501-1-P, eff. Jan. 1, 1972)

Sec. 501-1-P1. Pedestrian.

"Pedestrian" shall mean any natural person afoot.
(C.O. 501-p2; renumbered to C.M.C. 501-1-P1, eff. Jan. 1, 1972)

Sec. 501-1-P2. Person.

"Person" shall mean every natural person, firm, co-partnership, association or corporation.
(C.O. 501-p3; renumbered to C.M.C. 501-1-P2, eff. Jan. 1, 1972)

Sec. 501-1-P3. Pole Trailer.

"Pole trailer" shall mean every trailer or semi-trailer attached to the towing vehicle by means of a reach, or pole, or by being boomed or otherwise secured to the towing vehicle, and ordinarily used for transporting long or irregular shaped loads such as poles, pipes, or structural members capable, generally, of sustaining themselves as beams between the supporting connections.
(C.O. 501-p4; renumbered to C.M.C. 501-1-P3, eff. Jan. 1, 1972)

Sec. 501-1-P4. Police Officer.

"Police officer" shall mean every officer authorized to direct or regulate traffic or to make arrests for violations of traffic regulations.
(C.O. 501-p5; renumbered to C.M.C. 501-1-P4, eff. Jan. 1, 1972)

Sec. 501-1-P5. Private Road or Driveway.

"Private road" or "driveway" shall mean every way or place in private ownership and used for vehicular travel by the owner and those having express or implied permission from the owner but not by other persons.
(C.O. 501-p6; renumbered to C.M.C. 501-1-P5, eff. Jan. 1, 1972)

Sec. 501-1-P6. Public Safety Vehicle.

"Public safety vehicle" shall mean ambulances, motor vehicles used by public law enforcement officers or other persons sworn to enforce the criminal and traffic laws of the state or city of Cincinnati, and the vehicles used by fire departments, including motor vehicles when used by volunteer firemen responding to emergency calls in the fire department service when identified as required by the director of highway safety.
(Sec. 501-p7; ordained by Ord. No. 109-1968, eff. Mar. 13, 1968; renumbered to C.M.C. 501-1-P6, eff. Jan. 1, 1972)

Sec. 501-1-P7. Public Safety Zones.

"Public safety zones" shall mean the areas surrounding public buildings, and private buildings whether on "street or highways," or, "private roads or driveways," as defined in this section, which are deemed necessary by local authorities for effective operation of fire lanes necessary for fire equipment and other "public safety vehicles" as defined in this section.
(C.M.C. 501-1-P7; ordained by Ord. No. 471-1975, eff. Oct. 31, 1976)

Sec. 501-1-P8. Photographic Equipment.

"Photographic Equipment" shall mean a system that may include, but is not limited to, devices which link a camera, computer, and traffic signal, alone or in combination with other devices, to detect vehicles which have violated the traffic signal and to photograph the motor vehicle, its occupants, or other objects. Such a system may also include, but is not limited to, devices that combine a Doppler radar instrument, camera, and computer, alone or in combination with other devices, to measure the speed of a motor vehicle or other object and to photograph the motor vehicle, its occupants, or other objects. The results of photographic equipment means the images, speed measurement, and any other data or information produced by the automated traffic enforcement system.
(Ordained by Ord. No. 261-2004, eff. 9-3-04)

Sec. 501-1-P9. Repealed.
(Ordained by Emer. Ord. No. 058-2013, § 3, eff. March 6, 2013; r. Ord. No. 185-2015, § 1, eff. July 17, 2015)

Sec. 501-1-P10. Public Transit.

"Public Transit" or "Transit" means a publicly-owned or publicly-operated mass transit system providing mass transit in the City of Cincinnati, including public transit by bus, paratransit vehicle, streetcar, or passenger rail.
(Ordained by Ord. No. 110-2014, § 1, eff. June 29, 2014)

Sec. 501-1-P11. Person in Control.

A "person in control" shall mean the owner of the freehold estate of the premises; a mortgagee or vendee in possession; a receiver; an executor; a trustee; and any person, public or private entity, lessee or holder of a lesser estate in the premises, and/or its duly authorized agent(s).
(Emer. Ord. No. 232-2022, § 1, eff. June 19, 2022)

Sec. 501-1-R. Railroad.

"Railroad" shall mean a carrier of persons or property operating upon rails placed principally on a private right of way.
(C.O. 501-r1; renumbered to C.M.C. 501-1-R, eff. Jan. 1, 1972)

Sec. 501-1-R1. Railroad Sign or Signal.

"Railroad sign" or "signal" shall mean any sign, signs or device erected by authority of a public body or official by a railroad and intended to give notice of the presence railroad tracks or the approach of a railroad train.
(C.O. 501-r2; renumbered to C.M.C. 501-1-R1, eff. Jan. 1, 1972)

Sec. 501-1-R2. Railroad Train.

"Railroad train" shall mean a steam engine, electric or other motor, with or without cars coupled thereto, operated by a railroad company.
(C.O. 501-r3; renumbered to C.M.C, 501-1-R2, eff. Jan. 1, 1972)

Sec. 501-1-R3. Residence District.

"Residence district" shall mean the territory, not comprising a business district, fronting on a street or highway, including the street or highway, where, for a distance of 300 feet or more, the frontage is improved with residences, or residences and buildings in use for business.
(C.O. 501-r4; renumbered to C.M.C. 501-1-R3, eff. Jan. 1, 1972)

Sec. 501-1-R4. Right-of-Way.

"Right of way" shall mean the right of a vehicle or pedestrian to proceed uninterruptedly in a lawful manner in the direction in which the vehicle or pedestrian is moving, in preference to another vehicle or pedestrian approaching from a different direction into the vehicle's or pedestrian's path.
(C.O. 501-r6; a. Ord. No. 443-1957, eff. Dec. 20, 1957; a. Ord. No. 47-1971, eff. Feb. 10, 1971; renumbered to C.M.C. 501-1-R4, eff. Jan. 1, 1972)

Sec. 501-1-R5. Roadway.

"Roadway" shall mean that portion of a highway improved, designed, or ordinarily used for vehicular travel, exclusive of the berm or shoulder. In the event a highway includes two or more separate roadways the term "roadway" as used herein shall refer to any such roadway separately but not to all such roadways collectively.
(C.O. 501-r6; renumbered to C.M.C. 501-1-R5, eff. Jan. 1, 1972)

Sec. 501-1-S. Safety Zone.

"Safety zone" shall mean the area or space officially set apart within a roadway for the exclusive use of pedestrians or for the parking of vehicles, and protected, marked or indicated by adequate signs as to be plainly visible at all times.
(C.O. 501-s1; a. Ord. No. 443-1957, eff. Dec. 20, 1957; renumbered to C.M.C. 501-1-S, eff. Jan. 1, 1972; a. Ord. No. 525-1987, eff. Dec. 16, 1987)

Sec. 501-1-S1. Semi-Trailer.

"Semi-trailer" shall mean every vehicle designed or used for carting property with another and separate motor vehicle, so that in operation a part of its own weight or that of its load, or both, rests upon and is carried by another vehicle, including house vehicles.
(C.O. 501-s2; renumbered to C.M.C. 501-1-S1, eff. Jan. 1, 1972; a. Ord. No. 516-1973, eff. Dec. 21, 1973)

Sec. 501-1-S2. Sidewalk.

"Sidewalk" shall mean that portion of a street between the curbline, or the lateral lines of a roadway, and the adjacent property lines intended for the use of pedestrians and all elevated public walkway systems and concourses in both public right of way and private easements, and all vertical means of access and egress including, but not limited to, stairways, escalators and elevators.
(C.O. 501-s3, renumbered to C.M.C. 501-1-S2, eff. Jan. 1, 1972; a. Ord. No. 57-1975, eff. Feb. 5, 1975)

Sec. 501-1-S3. Street or Highway.

"Street" or "highway" shall mean the entire width between the boundary lines of every way open to the use of the public as a thoroughfare for purposes of vehicular travel, including the traveled portion of roadways in city parks, recreation grounds or in other areas owned or operated by the city.
(C.O. 501-s4; renumbered to C.M.C. 501-1-S3, eff. Jan. 1, 1972)

Sec. 501-1-S4. State Route.

"State route" shall mean a state or U. S. route marked as such with official signs.
(C.O. 501-s5; renumbered to C.M.C. 501-1-S4, eff. Jan. 1, 1972)

Sec. 501-1-S5. Stop.

"Stop" shall mean a complete cessation from movement.
(C.O. 501-s5; renumbered to C.M.C. 501-1-S5, eff. Jan. 1, 1972)

Sec. 501-1-S6. Stop, Stopping or Standing.

"Stop, stopping or standing" shall mean the stopping or standing of a vehicle, whether occupied or not, except when necessary to avoid conflict with other traffic or in compliance with the directions of a police officer or traffic-control device.
(C.O. 501-s7; a. Ord. No. 47-1971, eff. Feb. 10, 1971; renumbered to C.M.C. 501-1-S6, eff. Jan. 1, 1972)

Sec. 501-1-S7. Stop Intersection.

"Stop intersection" shall mean any intersection at one or more entrances of which stop signs are erected.
(C.M.C. 501-1-S7; ordained by Ord. No. 224-1972, eff. May 24, 1972)

Sec. 501-1-S8. Streetcar Obstruction Zone.

"Streetcar obstruction zone" means the physical corridor used by streetcar vehicles during movement along the streetcar track (including a safety buffer), measuring five feet six inches (5'6") outward in both directions from the center of the track slab (11' wide in total), as depicted in Figure 501-1-S8, except that if the city has officially striped a parking lane along the edge of the streetcar obstruction zone, then the streetcar obstruction zone extends to the stripe's curbside edge.

Sec. 501-1-S9. Scooter.

"Scooter" shall mean a vehicle typically ridden for purposes of recreation, consisting of a footboard mounted on two wheels, with a long steering handle, propelled solely by human power, specifically by resting one foot on the footboard and pushing the other foot against the ground. A "scooter" is different from a motorized "e-scooter," which term is defined in Section 501-1-E3 of this chapter.
(Ordained by Ord. No. 0292-2018, § 1, eff. Sept. 9, 2018)

Sec. 501-1-S10. Shared active transportation.

"Shared Active Transportation" means a network or system of small vehicles or other transportation devices, placed in the public right-of-way and for rent in short time increments, which network provides increased mobility options over short distances in urban areas. For purposes of this section, such vehicles or devices could include bicycles, e-scooters, or any other small, wheeled vehicles designed specifically for shared use and deployed by shared active transportation companies.
(Ordained by Ord. No. 0292-2018, § 1, eff. Sept. 9, 2018)

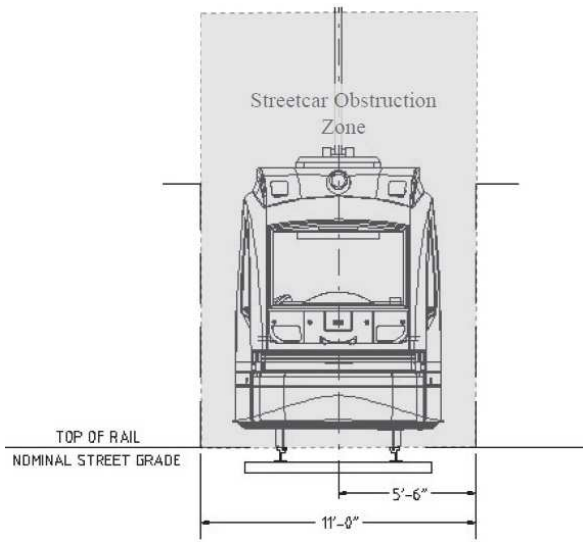

Figure 501-1-S8.
Streetcar Obstruction Zone

(Ordained by Ord. No. 071-2016, § 1, eff. April 23, 2016)

Sec. 501-1-T. Through Highway.

"Through highway" shall mean every highway or portion thereof on which vehicular traffic is given preferential right of way in accordance with Section 506-34 of the traffic code.
(C.O. 501-t1; renumbered to C.M.C. 501-1-T, eff. Jan. 1, 1972; a. Ord. No. 224-1972, eff. May 24, 1972)

Sec. 501-1-T1. Throughway.

"Throughway" shall mean a through highway whose entire roadway is reserved for through traffic and on which parking is prohibited.
(Sec. 501-t9; ordained by Ord. No. 403-1963, eff. Nov. 20, 1963; renumbered to C.M.C. 501-1-T1, eff. Jan. 1, 1972)
State law reference—ORC 4511.01 (YY)

Sec. 501-1-T2. Traffic.

"Traffic" shall mean pedestrians, ridden or herded animals, vehicles and other devices, either singly or together, while using any highway for purposes of travel.
(C.O. 501-t3; a. Ord. No. 47-1971, eff. Feb. 10, 1971; renumbered to C.M.C. 501-1-T2, eff. Jan. 1, 1972)

Sec. 501-1-T3. Traffic-Control Devices.

"Traffic-control devices" shall mean all signs, signals, markings, channelization, parking meters, and devices not inconsistent with the traffic code placed or erected by authority of a public body or official having jurisdiction, for the purpose of regulating, warning, or guiding traffic, including signs denoting names of streets and highways.
(C.O. 501-t4; renumbered to C.M.C. 501-1-T3, eff. Jan. 1, 1972)

Sec. 501-1-T4. Traffic-Control Signal.

"Traffic-control signal" shall mean any device, whether manually, electrically, or mechanically operated, by which traffic is alternately directed to stop, to proceed, to change direction or not to change direction, or to proceed with more than ordinary caution.
(C.O. 501-t5; renumbered to C.M.C. 501-1-T4, eff. Jan. 1, 1972)

Sec. 501-1-T5. Trailer.

"Trailer" shall mean every vehicle designed or used for carrying persons or property wholly on its own structure and for being drawn by a motor vehicle, and means and includes a house vehicle or any such vehicle when formed by or operated as a combination of a "semi-trailer" and a vehicle of the dolly type such as that commonly known as a "trailer dolly."
(C.O. 501-t6; renumbered to C.M.C. 501-1-T5, eff. Jan. 1, 1972; a. Ord. No. 516-1973, eff. Dec. 21, 1973)

Sec. 501-1-T6. Train of Vehicles.

"Train of vehicles" shall mean a combination of two or more vehicles coupled together in tandem.
(C.O. 501-t7; renumbered to C.M.C. 501-1-T6, eff. Jan. 1, 1972)

Sec. 501-1-T7. Truck.

"Truck" shall mean every motor vehicle bearing a truck license plate issued by the state of Ohio or any other state, or a house vehicle.
(C.O. 501-t8; renumbered to C.M.C. 501-1-T7, eff. Jan. 1, 1972; a. Ord. No. 516-1973, eff. Dec. 21, 1973; a. Ord. No. 173-1974, eff. May 31, 1974; a. Ord. No. 76-1976, eff. Feb. 25, 1976; a. Ord. No. 446-1976, eff. Sept. 29, 1976)

Sec. 501-1-T8. Truck Tractor.

"Truck tractor" shall mean every motor vehicle having motive power designed and used for drawing other vehicles and not so

constructed as to carry any load thereon, or designed or used for drawing other vehicles while carrying a portion of such other vehicle or vehicles, or the load thereon, or both, including a passenger vehicle while towing a trailer, semi-trailer, or house vehicle.
(C.M.C. 501-1-T8; ordained by Ord. No. 516-1973, eff. Dec. 21, 1973)

Sec. 501-1-U. Urban District.

"Urban district" shall mean the territory contiguous to and including any street which is built up with structures devoted to business, industry or dwelling houses situated at intervals of less than 100 feet for a distance of one-quarter of a mile or more, and the character of such territory is indicated by official traffic-control devices.
(C.O. 501-u1; renumbered to C.M.C. 501-1-U, eff. Jan. 1, 1972)

Sec. 501-1-V. Vehicle.

"Vehicle" shall mean every device, in, upon or by which any person or property is or may be transported or drawn upon a highway, except devices moved by power collected from overhead electric trolley wires, or used exclusively upon stationary rails or tracks, and except devices other than bicycles moved by human power.
(C.O. 501-v1; a. Ord. No. 443-1957, eff. Dec. 20, 1957; renumbered to C.M.C. 501-1-V, eff. Jan. 1, 1972)

Sec. 501-1-V1. Violate.

"Violate" shall mean to do anything declared to be unlawful, or otherwise forbidden, or to fail or neglect or refuse to do anything declared to be a duty or otherwise enjoined to be done.
(C.O. 501-v2; renumbered to C.M.C. 501-1-V1, eff. Jan. 1, 1972)

State law reference—ORC 4511.01.

Chapter 502

GENERAL PROVISIONS

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Sec. 502-1. Scope.

The provisions of the traffic code are intended to apply to all traffic and to all operators not specifically excepted, and nothing in the traffic code shall be construed to exempt from its provisions and penalties either:

(a) Operators of vehicles owned or used in the service of the United States or of the state of Ohio or any subdivision thereof; or

(b) Persons propelling pushcarts.

Every person riding, driving or leading an animal or animals upon a roadway shall be subject to the provisions of the traffic code applicable to the driver of a vehicle, except those provisions which by their nature can have no application.

All provisions relative to the operating, parking, standing or movement of vehicles, or animals, and to the movement of pedestrians, apply upon all the highways of the city of Cincinnati, except as specifically limited.
(C.O. 502-1; reordained as C.M.C. 502-1, eff. Jan. 1, 1972)

State law reference—See ORC 4511.05.

Sec. 502-2. Emergency and Public Safety Vehicles, Regulation of.

The provisions of the traffic code regulating the movement, parking, and standing of vehicles shall not apply to an authorized emergency vehicle or public safety vehicle while the operator thereof is operating such vehicle in an emergency in the performance of official duties; provided, however, that the operator of such emergency vehicle or public safety vehicle, when driving against traffic on a one-way street, driving on the wrong side of the road, or otherwise disregarding a driving regulation, shall have the vehicle under full control.

The prima facie speed limitations set forth in Section 506-8 shall not apply to emergency vehicles or public safety vehicles when responding to emergency calls and the drivers thereof sound audible signals by bell, siren, or exhaust whistle. This provision shall not relieve the driver of an emergency vehicle or public safety vehicle from the duty to drive with due regard for the safety of all persons using the street or highway.

The driver of any emergency vehicle or public safety vehicle, when responding to an emergency call, upon approaching a red or stop signal or any stop sign, shall slow down as necessary for safety to traffic, but may proceed cautiously past such red or stop signal or sign with due regard for the safety of all persons using the street or highway.
(C.O. 502-2; renumbered to C.M.C. 502-2, eff. Jan. 1, 1972; a. Ord. No. 68-1973, eff. Mar. 16, 1973)

Cross reference—Penalty, §§ 512-1, 512-7.
State law reference—See ORC 4511.03, 4511.24.

Sec. 502-3. Parking Prohibitions During Street Sweeping Operations.

The director of the department of public services or a person designated by the director is hereby authorized to temporarily prohibit parking on a street or on a particular side or portion of a street, when it is necessary to do so because of street sweeping operations.

When the director or his designee has determined that such a prohibition is necessary, he shall erect and maintain appropriate signs plainly indicating the affected side or portion of the street, as well as the effective dates and times that the prohibition is in effect. No person shall park or stop a vehicle in violation of a sign so erected.

The director of the department of public services or his designee shall have the authority to act as a parking enforcement officer for purposes of Chapter 515 of the Cincinnati Municipal Code for a violation of

this section. Any citation issued per this section shall be in compliance with Section 515-10.
(Ordained by Ord. No. 102-2004, eff. 3-31-2004)

Sec. 502-6. Construction on Highway, Vehicles Engaged in.

Except for such requirements as the city manager or person designated by the city manager may prescribe or as ordered by a police officer, the provisions of the traffic code shall not apply to persons, teams, motor vehicles, and other equipment while actually engaged in work upon the surface of a highway within an area designated by traffic-control devices, but shall apply to such persons and vehicles when traveling to or from such work.
(C.O. 502-6; reordained as C.M.C. 502-6, eff. Jan. 1, 1972; a. Ord. No. 412-1978, eff. Nov. 3, 1978)

State law reference—See ORC 4511.04.

Sec. 502-8. Direction of Traffic.

Police officers and members of the fire force are authorized in the event that a fire or other emergency condition or the safeguarding or expediting of traffic so require, to direct traffic otherwise than as the traffic code specifically provides. The direction of traffic may be by word or audible signal, by gesture or visible signal, or by any combination thereof.
(C.O. 502-8; reordained as C.M.C. 502-8, eff. Jan. 1, 1972)

Sec. 502-9. Police Officer's Signals.

No person shall fail or refuse to comply with any lawful order or direction of any police officer invested by law with authority to direct, control or regulate traffic.
(C.O. 502-9; a. Ord. No. 109-1968, eff. Mar. 13, 1968; reordained as C.M.C. 502-9, eff. Jan. 1, 1972; a. Ord. No. 59-1990, eff. Feb. 22, 1990)

Cross reference—Penalty, §§ 512-1, 512-7.
State law reference—See ORC 4511.02.

Sec. 502-10. Traffic-Control Devices, Authorization.

It shall be the duty of the city manager or person designated by the city manager to place and maintain traffic-control devices required by the traffic code. The city manager is authorized to place and maintain such other traffic-control devices as determined to be necessary for the proper control of traffic.
(C.O. 502-10; reordained as C.M.C. 502-10, eff. Jan. 1, 1972; a. Ord. No. 412-1978, eff. Nov. 3, 1978)

State law reference—See ORC 4511.07, 4511.11.

Sec. 502-11. Safety Zones, Authorization.

The city manager or person designated by the city manager is empowered to establish safety zones of such kind and character and at such places as determined necessary for the protection of pedestrians.
(C.O. 502-11; reordained as C.M.C. 502-11, eff. Jan. 1, 1972; a. Ord. No. 412-1978, eff. Nov. 3, 1978)

State law reference—See ORC 737.022(F).

Sec. 502-12. Turning Markers, Authorization.

Where traffic conditions are such as to require it, the city manager or person designated by the city manager is authorized to place turning markers within or at the entrance to an intersection, and such markers may, at intersections where unusual traffic

conditions prevail, direct movements to be made otherwise than as provided in Sections 506-80 to 506-87, inclusive. All operators of vehicles shall be governed by such markers.
(C.O. 502-12; reordained as C.M.C. 502-12, eff. Jan. 1, 1972; a. Ord. No. 412-1978, eff. Nov. 3, 1978)
Cross reference—Penalty, §§ 512-1, 512-7.
State law reference—See ORC 4511.36

Sec. 502-16. Crosswalks, Authorization.

The city manager or person designated by the city manager is authorized to establish crosswalks at such places as determined necessary, and shall designate them by appropriate marks or signs.
(C.O. 502-16; reordained as C.M.C. 502-16, eff. Jan. 1, 1972; a. Ord. No. 412-1978, eff. Nov. 4, 1978)
State law reference—See ORC 737.022(F).

Sec. 502-17. School Crossing Guard's Signals.

No person shall fail or refuse to comply with any order or direction to stop given by a school crossing guard, as defined and appointed in Article IV, Section 2-B of the Administrative Code, for the purpose of facilitate the safe crossing of any person or persons at a crosswalk in the location to which the school crossing guard is assigned, when such school crossing guard has been duly appointed in accordance with Article IV, Section 2-B of the Administrative Code.
(Ordained by Ord. No. 0037-2019, eff. Jan. 30, 2019)

Sec. 502-19. Disobeying Traffic-Control Devices and Signals.

(a) Unless otherwise instructed by a police officer at the location of a traffic-control device, no pedestrian shall disobey the instruction of any traffic-control device placed in accordance with the provisions of the traffic code.

(b) It shall be unlawful for the driver of any vehicle to disobey the instruction of any traffic-control device, unless otherwise instructed by a police officer at the location of the traffic-control device

(c) At intersections controlled by traffic-control signals, vehicular traffic facing a steady red traffic-control signal shall stop before entering the intersection and shall remain stopped until directed to proceed by a steady green traffic-control signal.

(d) When both traffic-control signals and stop signs are erected at an intersection, traffic shall be governed by the traffic-control signal while it is in operation.
(C.O. 502-19; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. 502-19, eff. Jan. 1, 1972; a. Ord. No. 261-2004, eff. Sept. 3, 2004)
Cross reference—Penalty, §§ 512-1, 512-7.
State law reference—See ORC 4511.12.

Sec. 502-19.1. Automated Traffic Enforcement System.

(a) General.

(1) The City of Cincinnati hereby adopts an automated traffic enforcement system for the purpose of using photographic equipment to record visual images of vehicles entering intersections in violation of § 502-19(c) and/or operating a vehicle in excess of the limits set forth in § 506-8 and using said images as the basis for issuing tickets to the owners of such vehicles within thirty (30) days of the infraction.

(2) The Department of Transportation and Engineering and the Cincinnati Police Department shall be responsible for implementing the automated traffic enforcement system for both traffic signal and speed enforcement. These departments are hereby

empowered to designate the intersections and streets to be monitored by automated traffic enforcement systems; to install, operate and maintain automated traffic enforcement systems at such designated locations; and to take any and all other measures necessary for the implementation of the system. The Police Department shall maintain a list, available to the public, of locations so monitored.

(3) The Police Department is further empowered to contract with governmental or nongovernmental entities for services necessary for the implementation of this system. Such contracts shall be subject to the provisions of Chapter 321 of this code. No entity with whom the Police Department contracts shall be paid in a manner dependent upon the number of tickets issued under this Section.

(4) The intersections chosen for automated traffic enforcement under this section must display a yellow traffic-control signal for a time that complies with the Ohio Department of Transportation's Manual of Uniform Traffic Control Devices.

(5) The street locations chosen for automated traffic enforcement under this section must display a speed limit sign in compliance with the Ohio Department of Transportation's Manual of Uniform Traffic Control Devices §§ 2B.11 and 2B.15 and the Ohio Revised Code § 4511.21.

(b) Notice Requirements.

(1) For at least fourteen (14) consecutive days prior to the installation of an automated traffic enforcement system at an intersection or street location, the Police Department or its designee must publish notice in a local newspaper of general circulation that the intersection or street location will be subject to automated traffic enforcement. Said notice must specify the date on which automated traffic enforcement will begin.

(2) Prior to the date on which automated traffic enforcement begins at an intersection or street location, the Police Department or its designee shall erect a sign in a conspicuous location that provides notice that an automated traffic enforcement system is being used to monitor traffic.

(3) For the first thirty (30) days that an automated traffic enforcement system is in operation at a given intersection or street location, no tickets may be issued on the basis of the images produced by that system. Warnings may be issued during that thirty-day period.

(c) Offense.

(1) An officer employed by the Cincinnati Police Department shall examine the image recorded by the automated traffic enforcement system to determine whether an infraction of § 502-19(c) or § 506-8 has occurred. If the image recorded by the automated traffic enforcement system shows an infraction of § 502-19(c) or § 506-8, contains a notation of the date and time of the alleged violation, and shows the letter and numbers on the vehicle's license plate, as well as the state in which the license plate was issued, the officer may use any lawful means to identify the vehicle's owner.

(2) The fact that a person is registered as the owner of a vehicle with the vehicle registration office of the state that issued the license plate displayed

on the vehicle shall be prima facie evidence that said person was operating the vehicle at the time of an infraction recorded by an automated traffic enforcement system.

(3) Within thirty (30) days of the infraction and upon identification of the registered owner of the vehicle, an officer may issue and send by first-class United States mail a ticket charging the owner with an infraction of § 502-19(c). Said ticket must state the

date on which the ticket was issued; the date, time and location of the infraction; the time in which a response must be made; and the manner in which the ticket may be appealed. In addition, a copy of the image(s) that served as a basis for the ticket must accompany the ticket.

(4) A person who receives such a ticket shall be required to respond to it by paying the penalty as directed on the ticket within twenty-one (21) days of its issue date, or by submitting proof of his non-liability as set forth in subsection (c)(5) within twenty-one (21) days of its issue date, or by submitting, to the address listed on the ticket, requests a hearing as set forth in subsection (d) within twenty-one (21) days of its issue date.

(5) Notwithstanding subsection (b)(2), the owner of the vehicle shall not be liable for a penalty under this section if:

(i) At the time of the infraction, the vehicle was in the custody of someone other than its owner pursuant to a written lease or rental agreement and the owner submits, to the address listed on the ticket, either a copy of the lease or rental agreement along with the name and address of the lessee or renter.

(ii) At the time of the infraction, the vehicle or the license plate depicted in the image which served as the basis for the ticket was stolen and the owner submits, to the address listed on the ticket, a copy of the police report stating the vehicle or license plate had been reported stolen at the time.

(6) Nothing in subsection (c)(5) shall be construed as limiting the liability of an operator of a vehicle for any violation of § 502-19(c) or § 506-8.

(d) Appeal.

(1) A person who received a ticket pursuant to this Section may appeal the ticket by making a written request for a hearing to the address listed on the ticket. Said request shall be accompanied by a monetary deposit in an amount equal to the amount of the civil penalty stated on the ticket.

(2) Within ten (10) days of the receipt of the request for a hearing and the monetary deposit referred to in subsection (d)(1), a hearing shall be held by a hearing officer appointed by the Cincinnati Police Department or its designee. The hearing officer shall determine whether a preponderance of evidence establishes that a violation occurred and that the person who received the ticket is liable for the penalty set forth in subsection (e).

(3) A certified copy of the ticket alleging a violation of § 502-19(c) or § 506-8, along with a copy of the image that served as a basis for the ticket, shall be prima facie evidence of the facts contained therein and shall be admissible in a proceeding alleging a violation under this ordinance.

(4) In considering whether the person is liable, the hearing officer may consider any of the following as an affirmative defense of a violation:

(i) That the ticket was issued and sent by first-class mail more than thirty (30) days after the date of the infraction recorded by the automated traffic enforcement system.

(ii) That the driver of the vehicle passed through the intersection or had increased speed in order to yield the right of way to an emergency vehicle, in accordance

with Ohio Revised Code § 4511.45, or to a funeral procession, in accordance with Ohio Revised Code § 4511.451.

(iii) That either the vehicle or license plate depicted on the image which served as the basis for the ticket was stolen before the violation occurred and was not in possession of the owner at the time of the violation, if the owner submits proof that a police report about the stolen vehicle or license plate was filed prior to, or within forty-eight (48) hours after, the violation.

(iv) That this section is unenforceable because the automated traffic enforcement system was not operating properly, or the automated traffic enforcement system was not in a proper position, or that the image that served as the basis for the ticket is not legible enough to show the letters and numbers or the state that issued the license plate on the vehicle.

(v) That the driver of the vehicle entered the intersection as part of a funeral procession or at the direction of a police officer.

(vi) Substantial and convincing evidence that the owner or person named in the ticket was not operating the vehicle at the time of the violation. To satisfy the evidentiary burden under this subsection, the owner or person named in the ticket shall provide the hearing officer with substantial and convincing evidence of the identity of the person who was operating the vehicle at the time of the violation, including, at a minimum, the operator's name and current address.

(5) The hearing officer shall notify the Police Chief or the Police Chief's designee, as well as the person named on the ticket, of the decision within three (3) days of the hearing. In addition, should the hearing officer conclude that a preponderance of evidence demonstrates that someone other than the person named in the ticket was operating the vehicle at the time of the violation, the hearing officer shall forward to the Cincinnati Police Department all evidence provided to him as to the operator's identity.

(6) Within five (5) business days of receiving the evidence referred to in subsection (c)(5), the Cincinnati Police Department or its designee may issue a ticket to the person whom the evidence indicates was operating the vehicle at the time of the violation.

(e) Penalties.

(1) Unless the operator of a vehicle which is in violation of § 502-19(c) received a citation from a police officer at the time the violation occurred, the operator shall be subject to a civil penalty of $100.00 if the vehicle is recorded by an automated traffic enforcement system.

(2) Unless the operator of a vehicle that is in violation of § 506-8 received a citation from a police officer at the time of the violation occurred, the operator shall be subject to a civil penalty of $100.00 if the vehicle is recorded by an automated traffic enforcement system.

(3) A violation for which a civil penalty is imposed under this Section shall not be considered a moving violation for

the purpose of assessing points under Ohio Revised Code § 4507.021 and shall not be reported to the Bureau of Motor Vehicles of any state.

(4) The failure to respond to a ticket in a timely fashion as set forth in subsection (b)(4) shall constitute a waiver of the right to contest liability for the violation under subsection (c). Said failure shall result in an additional penalty of $100.00.

(5) If the penalties set forth in this subsection remain unpaid for more than thirty (30) days after the date on which the ticket was issued, the penalties shall be collected, together with any interest and penalties thereon, by civil suit or other appropriate means of collection.

(Ordained by Ord. No. 261-2004, eff. Sept. 3, 2004)

Sec. 502-20. Obstructed or Defaced Signs.

No provision of the traffic code requiring signs shall be enforceable against an alleged violator if, at the time and place of the alleged violation, the sign required is not in proper position and sufficiently clear to be recognized by an ordinarily observant person. The provisions of any section which does not state that signs are required shall be effective without them.

(C.O. 502-20; reordained as C.M.C. 502-20, eff. Jan. 1, 1972)

State law reference—See ORC 4511.12.

Sec. 502-21. Defacing Traffic-Control Devices.

No person shall without lawful authority attempt to, or wilfully alter, deface, injure, knock down or remove any traffic-control device or any railroad sign or signal or an inscription, shield or insignia thereon, or any part thereof, including but not limited to the sticking, pasting, or other application of any material thereon and including the driving upon or over any freshly painted center line, lane line, letter, number or symbol on the surface of a roadway while the paint is in an undried condition and is marked by flags, markers, signs or other devices intended to protect it.

(C.O. 502-21; reordained as C.M.C. 502-21, eff. Jan. 1, 1972; a. Ord. No. 224-1972, eff. May 24, 1972)

Cross reference—Penalty, § 512-1.

State law reference—See ORC 4511.17.

Sec. 502-22. Unofficial Traffic Signs.

No person shall place, maintain, or display upon or in view of any highway any unauthorized sign, signal, marking, or device which purports to be or is an imitation or resembles a traffic-control device or railroad sign or signal, or which attempts to direct the movement of traffic, or which hides from view or interferes with the effectiveness of any traffic-control device or any railroad sign or signal, and no person shall place or maintain nor shall any public authority permit upon any highway any traffic sign or signal bearing thereon any commercial advertising. This shall not be deemed to prohibit the erection upon private property adjacent to highways of signs giving useful directional information and of a type that cannot be mistaken for traffic-control devices.

Every such prohibited sign, signal, marking or device is hereby declared to be a public nuisance and the city manager or person designated by the city manager is empowered to remove the same or cause it to be removed.

(C.O. 502-22; reordained as C.M.C. 502-22, eff. Jan. 1, 1972; a. Ord. No. 412-1978, eff. Nov. 4, 1978)

Cross reference—Penalty, §§ 512-1, 512-7.

Sec. 502-24. Regulation of Traffic by City Manager in Connection with Street Construction.

Whenever, because of the construction, repair, reconstruction or resurfacing of a street

or because of the laying of underground installations in a street, the city manager or person designated by the city manager determines it to be necessary, the street or streets adjacent thereto may be closed to vehicular traffic, the normal movement of vehicular traffic of the street or streets adjacent thereto may be temporarily altered by making them one-way streets, or truck traffic may be temporarily re-routed over parkways. Whenever a street is closed or the normal movement of traffic over a street is altered by the city manager pursuant to this section, the city manager shall cause appropriate traffic signs to be erected indicating that the street is closed or the normal movement of traffic has been altered.
(C.O. 502-24; reordained as C.M.C. 502-24, eff. Jan. 1, 1972; a. Ord. No. 412-1978, eff. Nov. 4, 1978)

Sec. 502-25. Snow Emergency.

When snow, sleet, freezing rain or other weather conditions cause or appear likely to cause, in the judgment of the city manager or person designated by the city manager, slippery or hazardous conditions which might lead to serious congestion or hazard, the city manager or person designated by the city manager may declare a snow emergency and shall also declare the termination of such snow emergency as soon as conditions permit.

"Snow emergency routes" are hereby defined as through streets, or portions of through streets, designated by official signs on one or both sides thereof, installed by order of the city manager or person designated by the city manager.

The city manager or person designated by the city manager is authorized and directed to designate such streets as snow emergency routes which for the safety or convenience of the public and the accommodation of traffic should be kept open and clear in times of snow emergency.

Motor vehicles parked on snow emergency routes after the declaration of a snow emergency may be removed to a safe place by the Cincinnati Police Division in order to facilitate the snow removal process.

The owner of any motor vehicle so removed during the first three hours of a snow emergency shall not be subject to citation or payment of charges incurred by the city of Cincinnati in removing the motor vehicle from the snow emergency route notwithstanding the provisions of Sections 508-4 and 513-1 of the Cincinnati Municipal Code.

The owner of any motor vehicle parked on a snow emergency route for a period in excess of the first three hours after the declaration of the snow emergency shall be subject to citation and payment of the impounding fees set forth in Section 513-7 of the Cincinnati Municipal Code.
(Sec. 502-25; ordained by Ord. No. 80-1965, eff. Mar. 27, 1965; reordained as C.M.C. 502-25, eff. Jan. 1, 1972; a. Ord. No. 412-1978, eff. Nov. 4, 1978; a. Ord. No. 12-1981, eff. Jan. 7, 1981)

Chapter 503

VEHICULAR CONSTRUCTION AND EQUIPMENT

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Sec. 503-1. Lights, General.

Every vehicle upon a highway open to traffic during the time from one hour after sunset to one hour before sunrise, and at any other time when there is not sufficient natural light to render discernible persons, vehicles and substantial objects on the highway at a distance of 500 feet ahead shall display lighted lamps and illuminating devices as hereinafter respectively required for different classes of vehicles, subject to exceptions with respect to parked vehicles as hereinafter stated.

(a) Every motor vehicle, semi-trailer, pole trailer or any other vehicle which is being drawn at the end of a train of vehicles shall be equipped with at least one tail lamp mounted on the rear which, when lighted as hereinbefore required, shall emit a red light visible from a distance of 500 feet to the rear, provided that in the case of a train of vehicles only the tail lamp on the rearmost vehicle need be visible from the distance specified.

(b) Either a tail lamp or a separate lamp shall be so constructed and placed as to illuminate with a white light the rear registration plate, when such registration plate is required, and render it legible from a distance of 50 feet to the rear. Any tail lamp or tail lamps, together with any separate lamp for illuminating the rear registration plate, shall be so wired as to be lighted whenever the head lamps or auxiliary driving lamps are lighted, except where separate lighting systems are provided for trailers for the purpose of illuminating such registration plate.

(c) All vehicles, including animal-drawn vehicles and including those referred to in paragraph (c) of Section 503-29 not hereinbefore specifically required to be equipped with lamps, shall at the time and under the circumstances specified in this section display at least one lighted lamp or lantern exhibiting a white light visible from a distance of approximately 500 feet to the front of such vehicle and with a lamp or lantern exhibiting a red light visible from a distance of approximately 500 feet to the rear.

(d) Every motor vehicle, other than a motorcycle, shall be equipped with at least two head lamps with at least one near each side of the front of the motor vehicle, which head lamp shall comply with the requirements and limitations set forth in the traffic code.

(e) Every motorcycle shall be equipped with at least one and not more than two head lamps which shall comply with the requirements and limitations of the traffic code.

(f) At all times mentioned in this section at least two lighted headlights with uncolored and untinted bulbs, lenses and internal reflectors shall be displayed, one near each side of the front of every motor vehicle except when such vehicle is parked subject to the regulations governing lights on parked vehicles. Cowl lights and accessory lights are not headlights for the purpose of this section.

(g) All buses, trucks, commercial tractors, trailers, semitrailers and pole trailers respectively, when operated upon any highway, shall be equipped with such clearance and marker lights, reflectors and stop lights as the director of highways may authorize and prescribe, and such equipment so required shall be lighted at all times mentioned in this section, except that clearance and side marker lamps need not be lighted on any such vehicle

when operated within a municipality where there is sufficient light to reveal any person or substantial object on the highway at a distance of 500 feet.

Such equipment shall be in addition to all other lamps specifically required by the traffic code.

Vehicles operated under the public utilities commission of Ohio shall not be subject to the requirements of the regulations provided for by this section.

Whenever a requirement is hereinafter declared as to the distance from which certain lamps and devices shall render objects visible or within which such lamps or devices shall be visible, such distance shall be measured upon a straight, level, unlighted highway under normal atmospheric conditions unless a different condition is expressly stated.

Whenever a requirement is hereinafter declared as to the mounted height of lamps or devices, it shall mean from the center of such lamp or device to the level ground upon which the vehicle stands.

(C.O. 503-1; a. Ord. No. 110-1968, eff. Apr. 12, 1968; reordained as C.M.C. 503-1, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-4, 512-7.

State law reference—See ORC 4513.03, 4513.04, 4513.05, 4513.07, 4513.11, 4513.14.

Sec. 503-2. Lights Permissible on Slow Vehicles.

Any motor vehicle may be operated under the conditions specified in Section 503-1 when equipped with two lighted lamps upon the front thereof capable of revealing persons and substantial objects 75 feet ahead in lieu of lamps required in Section 503-1(f), provided, however, that it shall not be operated at a speed in excess of 20 miles per hour.

(C.O. 503-2; reordained as C.M.C. 503-2, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-1, 512-7.

State law reference—See ORC 4513.16.

Sec. 503-3. Repealed.

(C.O. 503-3; reordained as C.M.C. 503-3, eff. Jan. 1, 1972; repealed by Ord. No. 36-1997, eff. March 6, 1997)

Sec. 503-4. Repealed.

(C.O. 503-4; reordained as C.M.C. 503-4, eff. Jan. 1, 1972; repealed by Ord. No. 36-1997, eff. March 6, 1997)

Sec. 503-5. Parking Lights.

Except in case of an emergency, whenever a vehicle is parked or stopped upon a roadway open to traffic or shoulder adjacent thereto, whether attended or unattended during the times mentioned in Section 503-1, such vehicle shall be equipped with one or more lamps which shall exhibit a white light on the roadway side visible from a distance of 500 feet to the front of such vehicle, and a red light visible from a distance of 500 feet to the rear. However, no lights need be displayed upon any such vehicle when stopped or parked where there is sufficient light to reveal any person or substantial object within a distance of 500 feet upon such highway.

Any lighted head lamps upon a parked vehicle shall be depressed or dimmed. This section shall not affect the requirements of Section 503-9.

(C.O. 503-5; reordained as C.M.C. 503-5, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-4, 512-7.

State law reference—See ORC 4513.10.

Sec. 503-6. Peddler Vehicle Lighting.

Motor vehicles operated within the city of Cincinnati by or at the direction of any person licensed as a peddler pursuant to Chapter 839 and stopped upon any highway or street for the purpose of demonstrating, selling or offering for sale or barter any goods, wares, merchandise, food, confection or drink shall be equipped with and display one or

more flashing amber lights clearly visible for a distance of 500 feet to the front and rear of said vehicle.

Whoever violates any provision of this section shall be fined not more than $101 or have his or her peddler's license and eligibility therefor revoked for a maximum period of one year from the date of conviction, or both. If the operator of said vehicle is a person other than the licensed peddler conducting the demonstrations, sales, barters or offers thereof both persons may be convicted of simultaneous violations.
(Ordained by Ord. No. 115-1984, eff. Mar. 14, 1984)

Sec. 503-7. Auxiliary Lights.

Any motor vehicle may be equipped with not to exceed one spot lamp and every lighted spot lamp shall be so aimed and used upon approaching another vehicle that no part of the high-intensity portion of the beam will be directed to the left of the prolongation of the extreme left side of the vehicle nor more than 100 feet ahead of the vehicle.

Any motor vehicle may be equipped with not to exceed three auxiliary driving lamps, mounted on the front of the vehicle, of a type prescribed by the director of highways.

Any motor vehicle may be equipped with side cowl or fender lamps which shall emit a white or amber light without glare.

Any motor vehicle may be equipped with lamps on each side thereof which shall emit a white or amber light without glare.

Any motor vehicle may be equipped with back-up lamps either separately or in combination with another lamp; except that no such back-up lamps shall be continuously lighted when the motor vehicle is in forward motion.

Except a person operating a public safety vehicle, as defined in Section 501-1-P6 of this code, or a school bus, no person shall operate or move any vehicle or equipment upon any public street or highway which has a flashing red or a flashing combination red and white light or an oscillating or rotating red light or a combination red and white oscillating or rotating light. This paragraph shall not prohibit the use of warning lights required by law or the simultaneous flashing of turn signals on disabled vehicles.

Flashing lights are prohibited on motor vehicles, except as a means for indicating a right or left turn, or in the presence of a vehicular traffic hazard requiring unusual care in approaching, or overtaking or passing. This paragraph shall not apply to the use of a flashing, oscillating, or rotating amber light on emergency vehicles, road service vehicles servicing or towing a disabled vehicle, traffic line stripers, snow plows, state highway survey vehicles, funeral escort vehicles, and similar equipment operated by state or local authorities nor to vehicles permitted by law to have a flashing red light.
(C.O. 503-7; a. Ord. No. 109-1968, eff. Mar. 13, 1968; reordained as C.M.C. 503-7, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-4, 512-7.
State law reference—See ORC 4513.12, 4513.13, 4513.17.

Sec. 503-9. Deflection of Rays.

Whenever a motor vehicle is being operated on a roadway or shoulder adjacent thereto during the times specified in Section 503-1, the driver shall use a distribution of light or composite beam directed high enough and of sufficient intensity to reveal persons, vehicles and substantial objects at a safe distance in advance of the vehicle, subject to the following requirements and limitations:

Whenever the driver of a vehicle approaches an oncoming vehicle, such driver shall use a distribution of light or composite beam so aimed that the glaring rays are not projected into the eyes of the oncoming driver.

Every new motor vehicle registered in this state which has multiple-beam road-lighting equipment shall be equipped with a beam indicator, which shall be lighted whenever the uppermost distribution of light from the head lamps is in use, and shall not otherwise be lighted. The indicator shall be so designed and located that when lighted it will be readily visible without glare to the driver of the vehicle so equipped.
(C.O. 503-9; reordained as C.M.C. 503-9, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-4, 512-7.
State law reference—See ORC 4513.15.

Sec. 503-10. Regulation of Light from Auxiliary Lamps.

Whenever a motor vehicle equipped with head lamps as herein required is also equipped with any auxiliary lamps or a spot lamp or any other lamp on the front thereof projecting a beam of an intensity greater than 300 candle power, not more than a total of five of any such lamps on the front of a vehicle shall be lighted at any one time when upon a highway.

Any lighted lamp or illuminating device upon a motor vehicle other than head lamps, spot lamps, signal lamps or auxiliary driving lamps which projects a beam of light of an intensity greater than 300 candle power shall be so directed that no part of the beam will strike the level of the roadway on which the vehicle stands at a distance of more than 75 feet from the vehicle.
(C.O. 503-10; reordained as C.M.C. 503-10, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-1, 512-7.
State law reference—See ORC 4513.17.

Sec. 503-11. Lamps to be Properly Focused.

No person shall use upon any motor vehicle, trailer, or semi-trailer any lamps mentioned in the traffic code, unless said lamps are equipped, mounted and adjusted as to focus and aim in accordance with regulations which may be prescribed by the director of highways.
(C.O. 503-11; reordained as C.M.C. 503-11, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-1, 512-7.
State law reference—See ORC 4513.19.

Sec. 503-13. Repealed.

(C.O. 503-14a; a. Ord. No. 253-1968, eff. Aug. 1, 1958; renumbered to C.M.C. 503-13, eff. Jan. 1, 1972; a. Ord. No. 269-1972, eff. June 14, 1972; a. Ord. No. 2-1980, eff. Jan. 3, 1980; repealed by Ord. No. 36-1997, eff. March 6, 1997)

Sec. 503-14. Repealed.

(C.O. 503-14; a. Ord. No. 335-1960, eff. Oct. 21, 1960; reordained as C.M.C. 503-14, eff. Jan. 1, 1972; repealed by Ord. No. 36-1997, eff. March 6, 1997)

Sec. 503-15. Repealed.

(C.O. 503-15; a. Ord. No. 109-1968, eff. Mar. 13, 1968; reordained as C.M.C. 503-15, eff. Jan. 1, 1972; repealed by Ord. No. 36-1997, eff. March 6, 1997)

Sec. 503-16. Repealed.

(C.O. 503-16; a. Ord. No. 403-1963, eff. Nov. 20, 1963; a. Ord. No. 48-1970, eff. Feb. 18, 1970; reordained as C.M.C. 503-16, eff. Jan. 1, 1972; repealed by Ord. No. 36-1997, eff. March 6, 1997)

Sec. 503-17. Repealed.

(C.O. 503-17; a. Ord. No. 48-1970, eff. Feb. 18, 1970; reordained as C.M.C. 503-17, eff. Jan. 1, 1972; repealed by Ord. No. 36-1997, eff. March 6, 1997)

Sec. 503-18. Repealed.

(C.O. 503-18; reordained as C.M.C. 503-18, eff. Jan. 1, 1972; repealed by Ord. No. 36-1997, eff. March 6, 1997)

Sec. 503-18-A. Repealed.

(Sec. 503-18a; ordained by Ord. No. 53-1957, eff. Mar. 8, 1957; renumbered to C.M.C. 503-18-A, eff. Jan. 1, 1972; a. Ord. No. 418-1978, eff. Nov. 4, 1978; repealed by Ord. No. 36-1997, eff. March 6, 1997)

Sec. 503-19. Repealed.

(C.O. 503-19; reordained as C.M.C. 503-19, eff. Jan. 1, 1972; repealed by Ord. No. 36-1997, eff. March 6, 1997)

Sec. 503-20. Repealed.

(C.O. 503-20; reordained as C.M.C. 503-20, eff. Jan. 1, 1972; repealed by Ord. No. 36-1997, eff. March 6, 1997)

Sec. 503-21. Repealed.

(C.O. 503-21; a. Ord. No. 282-1968, eff. July 12, 1968; reordained as C.M.C. 503-21, eff. Jan. 1, 1972; repealed by Ord. No. 36-1997, eff. March 6, 1997)

Sec. 503-23. Repealed.

(C.O. 503-23; a. Ord. No. 403-1963, eff. Nov. 20, 1963; reordained as C.M.C. 503-23, eff. Jan. 1, 1972; ; repealed by Ord. No. 36-1997, eff. March 6, 1997)

Sec. 503-25. Repealed.

(C.O. 503-25; reordained as C.M.C. 503-25, eff. Jan. 1, 1972, a. Ord. No. 418-1978, eff. Nov. 4, 1978; repealed by Ord. No. 36-1997, eff. March 6, 1997)

Sec. 503-26. Repealed.

(C.O. 503-26; reordained as C.M.C. 503-26, eff. Jan. 1, 1972; a. Ord. No. 418-1978, eff. Nov. 4, 1978; repealed by Ord. No. 36-1997, eff. March 6, 1997)

Sec. 503-27. Repealed.

(C.O. 503-27; a. Ord. No. 353-1957, eff. Oct. 11, 1957; a. Ord. No. 265-1962, eff. Aug. 4, 1962; a. Ord. No. 109-1968, eff. Mar. 13, 1968; a. Ord. No. 90-1969, eff. Apr. 1, 1969; reordained as C.M.C. 503-27, eff. Jan. 1, 1972; a. Ord. No. 408-1972, eff. Oct. 7, 1972; a. Ord. No. 327-1975, eff. Sept. 1, 1975; a. Ord. No. 282-1979, eff. Sept. 1, 1979; a. Ord. No. 218-1982, eff. July 9, 1982; repealed by Ord. No. 36-1997, eff. March 6, 1997)

Sec. 503-29. Roadworthiness.

(a) No person shall drive or move or cause or knowingly permit to be driven or moved on any highway, any vehicle or combination of vehicles which is in such unsafe condition as to endanger any person.

(b) Nothing contained in the traffic code shall be construed to prohibit the use of additional parts and accessories on any vehicles not inconsistent with the traffic code.

(c) The provisions of the traffic code with respect to equipment on vehicles shall not apply to implements of husbandry, road machinery, road rollers, or agricultural tractors except as herein made applicable.

(C.O. 503-29; reordained as C.M.C. 503-29, eff. Jan. 1, 1972; a. Ord. No. 47-1971, eff. Feb. 10, 1972)

Cross reference—Penalty, §§ 512-1, 512-7.

State law reference—See ORC 4513.02.

Sec. 503-31. Repealed.

(C.O. 503-31; reordained to C.M.C. 503-31, eff. Jan. 1, 1972; repealed by Ord. No. 36-1997, eff. March 6, 1997)

Sec. 503-32. Solid Tires.

Every solid tire, as defined in Section 4501.01 of the Ohio Revised Code, on a vehicle, shall have rubber or other resilient material on its entire traction surface at least one inch thick above the edge of the flange of the entire periphery.
(C.O. 503-32; reordained as C.M.C. 503-32, eff. Jan. 1, 1972)

State law reference—See ORC 4513.25.

Sec. 503-34. Brakes.

(a) *Brake equipment required:*

(1) Every motor vehicle, other than a motorcycle, when operated upon a highway shall be equipped with brakes adequate to control the movement of and to stop and hold such motor vehicle, under the conditions described in paragraph (b) of this section, including two separate means of applying the brakes, each of which means shall be effective to apply the brakes to at least two wheels. If these two separate means of applying the brakes are connected in any way, then on such motor vehicles manufactured or assembled after January 1, 1942, they shall be so constructed that failure of any one part of the operating mechanism shall not leave the motor vehicle without brakes on at least two wheels.

(2) Every motorcycle, and bicycle with motor attached, when operated upon a highway, shall be equipped with at least one adequate brake, which may be operated by hand or foot.

(3) Every trailer or semi-trailer, except a pole trailer, of a gross weight of 2,000 pounds or more, manufactured or assembled on or after January 1, 1942, when operated upon the highway of this state, shall be equipped with brakes adequate to control the movement of and to stop and to hold such vehicle and so designed as to be applied by the driver of the towing motor vehicle from its cab, and the brakes shall be so designed and connected that in case of a breakaway of the towed vehicle, the brakes shall be automatically applied.

(4) In any combination of motor-drawn trailers or semitrailers equipped with brakes, means shall be provided for applying the rearmost brakes, in approximate synchronism with the brakes of the towing vehicle and developing the required braking effort on the rearmost wheels at the fastest rate; or means shall be provided for applying breaking effort first on the rearmost brakes; or both of the above means capable of being used alternatively may be employed.

(5) One of the means of brake operation shall consist of a positive connection from the operating lever to the brake shoes or bands and this brake shall be capable of holding the vehicle or combination of vehicles stationary under any condition of loading on any up or down grade upon which it is operated.

(6) The brake shoes operating within or upon the drums on the wheels of any motor vehicle may be used for both service and parking operation.

(b) *Performance ability of brakes.* Every motor vehicle or combination of motor-drawn vehicles shall be capable at all times and under all conditions of loading, of being stopped on a dry, smooth, level road free from loose material, upon application of the service (foot) brake, within the distances specified below, or shall be capable of being decelerated at a sustained rate corresponding to these distances:

	Feet to stop from 20 miles per hour
Vehicles or combinations of vehicles having brakes on all wheels	30
Vehicles or combinations of vehicles not having brakes on all wheels	40

(c) *Maintenance.* All brakes shall be maintained in good working order and shall be so adjusted as to operate as equally as practicable and in no case shall they vary more than 25 percent with respect to the wheels on opposite sides of the vehicle.
(C.O. 503-34; a. Ord. No. 403-1963, eff. Nov. 20, 1963; a. Ord. No. 47-1971; eff. Feb. 10, 1971; reordained as C.M.C. 503-34, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-4, 512-7.
State law reference—See ORC 4513.20.

Sec. 503-38. Muffler.

Every motor vehicle and motorcycle with an internal combustion engine shall at all times be equipped with a muffler which is in good working order and in constant operation to prevent excessive or unusual noise, and no person shall use a muffler cutout, bypass or similar device upon a motor vehicle on a street or highway. Every motorcycle muffler shall be equipped with baffle plates.
(C.O. 508-38; 8. Ord. No. 109-1968, eff. Mar. 13, 1968; reordained as C.M.C. 503-38, eff. Jan. 1, 1972)

Penalty, §§ 512-4, 512-23, 512-7.
State law reference—See ORC 4513.22.

Sec. 503-39. Horns and Bells.

Every motor vehicle when operated upon a highway shall be equipped with a horn in good working order and capable of emitting sound audible under normal conditions from a distance of not less than 200 feet.

No motor vehicle shall be equipped with nor shall any person use upon a vehicle any siren, whistle, or bell except as otherwise permitted in this paragraph. It is permissible but not required that any vehicle be equipped with a theft alarm signal device which is so arranged that it cannot be used as an ordinary warning signal. Every emergency vehicle shall be equipped with a siren, whistle, or bell, capable of emitting sound audible under normal conditions from a distance of not less than 500 feet and of a type approved by the director, but such equipment shall not be used except when such vehicle is operated in response to an emergency call or in the immediate pursuit of an actual or suspected violator of the law, in which said latter events the driver of such vehicle shall sound such equipment when necessary to warn pedestrians and other drivers of the approach thereof.
(C.O. 503-39; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. 503-39, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-4, 512-23, 512-7.
State law reference—See ORC 4513.21.

Sec. 503-40. Bells on Bicycles.

No person shall ride a bicycle unless it is equipped with a bell or other device capable of giving an audible signal, except that no bicycle shall be equipped with nor shall any person use upon a bicycle any siren or whistle.
(C.O. 503-40; reordained as C.M.C. 503-40, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-23, 512-7.
State law reference—See ORC 4511.56.

Sec. 503-41. Rear Vision Mirror.

Every motor vehicle and motorcycle shall be equipped with a mirror so located as to reflect to the operator a view of the highway to the rear of such vehicle or motorcycle. Operators of vehicles and motorcycles shall have a clear and unobstructed view to the front and to both sides of their vehicles or

motorcycles, and shall have a clear view to the rear of their vehicles or motorcycles by mirror.
(C.O. 503-41; a. Ord. No. 109-1968, eff. Mar. 13, 1968; reordained as C.M.C. 503-41, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-4, 512-7, 512-23.
State law reference—See ORC 4513.23.

Sec. 503-42. Repealed.

(Sec. 503-44a; ordained by Ord. No. 275-1957, eff. Aug. 2, 1957; a. Ord. No. 22-1964, eff. Feb. 14, 1964; a. Ord. No. 109-1968, eff. Mar. 13, 1968; renumbered to C.M.C. 503-42 in 1971 recodification of the code, eff. Jan. 1, 1972; a. Ord. No. 501-1974, eff. Dec. 11, 1974; r. Ord. No. 489-1981, eff. Dec. 25, 1981)

Sec. 503-43. Excessive Operation of an Engine Used to Power Private Passenger Automobiles, Motor Buses and Trucks While Stationary.

No person shall operate or permit the operation of the internal combustion engine of a private passenger vehicle, motor bus or truck for more than three consecutive minutes while the vehicle is stationary at a terminal or on a public highway or on a private or public parking lot or other outdoor location, except under the following conditions:

(a) When the outdoor temperature goes below 32° Fahrenheit.

(b) When the operation is necessary in the maintenance or repair of the engine, or in the safe operation of the vehicle.

(c) When the operation of the engine is necessary to power a loading, unloading or processing device.

(Sec. 503-44b; ordained by Ord. No. 275-1957, eff. Aug. 2, 1957; a. Ord. No. 451-1969, eff. Dec. 31, 1969; renumbered to C.M.C. 503-43, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-1, 512-7.

Sec. 503-44. Emission of Smoke or Flame.

No person shall own, operate, allow or cause to be operated, or have in one's possession any motor vehicle equipped with a device for emitting flame or smoke or which while stationary or moving emits from any source any flame or smoke or which permits oil or any other fluid or chemical to flow into or upon the muffler or exhaust pipe of such vehicle or which in any other way emits smoke or flame, other than the ordinary gases emitted by the exhaust of an internal-combustion engine under normal operation.
(C.O. 503-44; reordained as C.M.C. 503-44, eff. Jan. 1, 1972; a. Ord. No. 489-1981, eff. Dec. 25, 1981)

Cross reference—Penalty, § 512-2.
State law reference—See ORC 4513.22.

Sec. 503-45. Police or Fire Radio Communication.

No person, firm or corporation shall receive or assist in receiving any police or fire communication by wire or radio, installed in a motor vehicle, place of business, or home for personal gain or for the gain of another.
(C.O. 503-45; reordained as C.M.C. 503-45, eff. Jan. 1, 1972; a. Ord. No. 497-1976, eff. Nov. 26, 1976)

Cross references—Penalty, §§ 512-1, 512-7; Cincinnati fire prevention code, tit. XII.

Sec. 503-49. Funeral Vehicles.

No person shall operate any vehicle as a part of a funeral procession without having the headlights of such vehicle lighted and without displaying a purple and white pennant in such a manner as to be clearly visible to traffic approaching from any direction.

Except public safety vehicles proceeding in accordance with Section 506-45 of the traffic code or when directed otherwise by a police officer, pedestrians and operators of all vehicles shall yield the right of way to each

vehicle which is a part of a funeral procession. Whenever the lead vehicle of a funeral procession lawfully enters an intersection the remainder of the vehicles in such procession may continue to follow such lead vehicle through the intersection notwithstanding any traffic control devices or right of way provisions of the traffic code, providing the operator of each vehicle exercises due care to avoid colliding with any other vehicle or pedestrian upon the roadway.
(C.O. 503-49; reordained as C.M.C. 503-49, eff. Jan. 1, 1972; a. Ord. No. 224-1971, eff. May 24, 1972)

Cross reference—Penalty, §§ 512-23, 512-7.

Sec. 503-51. License Plates.

No person shall operate any vehicle upon which license plates are required to be displayed by law, unless the license plates legally registered and issued for such vehicle are displayed thereon, securely fastened in a vertical position right side up, and not covered, obscured, or concealed by any part or accessory of such vehicle or by any other substance.
(C.O. 503-51; reordained as C.M.C. 503-51, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-4, 512-7, 512-23.

Sec. 503-52. Unauthorized License Plates.

No person who is the operator of any vehicle upon which license plates are required to be displayed by law shall fail to display on the rear of such motor vehicle the distinctive number and registration mark, including any required validation sticker, required by law.

No person shall operate upon the streets of the city any vehicle upon which are displayed any license numbers for any period of time which has expired or any license plates issued in another state for which the period of reciprocal agreement with the state of issue has expired.

No person shall operate upon the streets of the city any vehicle upon which are displayed any license numbers not legally registered and issued for such vehicle, or upon which are displayed any license numbers that were issued on an application for registration that contained any false statement by the applicant.
(C.O. 503-52; reordained as C.M.C. 503-52, eff. Jan. 1, 1972; a. 598-1979, eff. Jan. 27, 19801; a. 423-1992, eff. Sept. 16, 1992; a. Ord. No. 390-2024, § 1, eff. Nov. 20, 2024)

Cross reference—Penalty, §§ 512-4, 512-7.

Sec. 503-54. Windshield Wiper.

The windshield on every motor vehicle shall be equipped with a device for cleaning rain, snow, or other moisture from the windshield, which device shall be maintained in good working order and so constructed as to be controlled or operated by the operator of the vehicle.
(C.O. 503-54; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. 503-54, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-4, 512-7.
State law reference—See ORC 4513.24.

Sec. 503-55. Blurred Windshield.

No person shall operate or have upon any highway any vehicle in which the operator's view through the windshield or any window is obstructed due to the glass being dirty, cracked, blurred or otherwise non-transparent.
(C.O. 503-55; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. 503-55, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-4, 512-7.
State law reference—See ORC 4513.24.

Sec. 503-56. Signs on Windshields and Windows Prohibited.

No person shall drive any motor vehicle, other than a bus, with any sign, poster, or other non-transparent material upon the front windshield, side wings, side or rear windows of such vehicle other than a certificate or other paper required to be so displayed by law, except that there may be in the lower righthand corner of the windshield a sign or poster not to exceed four inches in height by six inches in width, nor shall any glass be replaced with an opaque or nontransparent substance.
(C.O. 503-56; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. 503-56, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-1, 512-7.
State law reference—See ORC 4513.24.

Sec. 503-57. Television Sets Prohibited in View of Driver.

No person shall operate or have upon the highway any motor vehicle if such motor vehicle is equipped or provided with a television set so placed that it can be operated, used or observed by the driver of such motor vehicle.
(C.O. 503-57; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. 503-57, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-1, 512-7.

Sec. 503-58. Repealed.

(C.O. 503-58; reordained as C.M.C. 503-58, eff. Jan. 1, 1972; repealed by Ord. No. 36-1997, eff. March 6, 1997)

Sec. 503-59. Directional Signals.

No person shall sell any motor vehicle in the city which has been manufactured or assembled on or after January 1, 1954 unless such vehicle is equipped with electrical or mechanical directional signals.

"Directional signals" means an electrical or mechanical signal device capable of clearly indicating an intention to turn either to the right or to the left, and which shall be visible from both the front and the rear.
(C.O. 503-59; reordained as C.M.C. 503-59, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-1, 512-7.
State law reference—See ORC 4513.26.1.

Sec. 503-60. Seat Belts.

No person shall sell any motor vehicle in the city which has been manufactured or assembled on or after January 1, 1966 unless such vehicle is equipped with seat belts in the front seat.
(Sec. 503-60, ordained by Ord. No. 29-1966, eff. Feb. 25, 1966; reordained as C.M.C. 503-60, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-1, 512-7.
State law reference—See ORC 4513.262(c).

Sec. 503-61. Smoke Screen on Motor Vehicle.

No person shall attach or cause to be attached to any motor vehicle any smoke screen device, or operate or cause to be operated any motor vehicle carrying a smoke screen device attached thereto or capable of being attached thereto.

Whoever violates this section is guilty of attaching or operating a car with a smoke screen, a first degree misdemeanor.
(C.M.C. 503-61; ordained by Ord. No. 523-1973, eff. Jan. 1, 1974)

Analogous to C.O. 901-S6; renumbered to C.M.C. 901-S6, eff. Jan. 1, 1972; r. Ord. No. 523-1973, eff. Jan. 1, 1974.

Chapter 504

TESTING STATIONS (REPEALED)*

*__Editor's note—__Repealed by Ord. No.45-1981, eff. Feb. 11, 1981.

Chapter 505

LOAD AND PASSENGERS

Sec. 505-1. Projecting Material, Rear.
Sec. 505-2. Projecting Material, Sides.
Sec. 505-4. Deadening Noises.
Sec. 505-5. Load—Sifting or Leaking.
Sec. 505-7. Load Shifting.
Sec. 505-9. Explosives—Transporting.
Sec. 505-10. Prohibiting Parking of Vehicles Containing Explosives.
Sec. 505-11. Operator's View or Control.
Sec. 505-12. Passengers on Motorcycles and Bicycles.
Sec. 505-13. Protective Equipment.
Sec. 505-14. When Bicycles are Subject to This Chapter.
Sec. 505-16. Passengers on Vehicles.
Sec. 505-17. Obstructing Operator's View.
Sec. 505-18. Boarding or Leaving Vehicle in Motion.
Sec. 505-19. Boarding or Leaving Stopped Vehicle.

Sec. 505-1. Projecting Material, Rear.

Whenever the load upon any vehicle extends to the rear four feet or more beyond the bed or body of such vehicle there shall be displayed at the extreme rear end of the load, at the times specified in Section 503-1, a red light or lantern plainly visible from a distance of at least 500 feet to the sides and rear. The red light or lantern required under this section shall be in addition to the red rear light required upon every vehicle. At any other time there shall be displayed at the extreme rear end of such load a red flag or cloth not less than 16 inches square.
(C.O. 505-1; reordained as C.M.C. 505-1, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-1, 512-7, 512-23.
State law reference—See ORC 4513.09.

Sec. 505-2. Projecting Material, Sides.

No passenger-type vehicle shall be operated on any highway with any load carried thereon extending more than six inches beyond the line of the fenders on either the left or right side of such vehicle.
(C.O. 505-2; a. Ord. No. 109-1968, eff. Mar. 13, 1968; reordained as C.M.C. 505-2, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-1, 512-7, 512-23.
State law reference—See ORC 4513.30.

Sec. 505-4. Deadening Noises.

No person shall operate any vehicle laden with metallic or noisy substance or material unless such load is so placed or packed or deadened as to prevent unnecessary noise.
(C.O. 505-4; reordained as C.M.C. 505-4, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-4, 512-7, 512-23.

Sec. 505-5. Load—Sifting or Leaking.

No vehicle shall be driven or moved on any highway unless such vehicle is so constructed or loaded or the load securely covered, as to prevent any of its load from dropping, sifting, leaking or otherwise escaping therefrom; except that sand or other substance may be dropped for the purpose of securing traction, and that water or other substance may be sprinkled on a roadway in cleaning or maintaining such roadway.
(C.O. 505-5; reordained as C.M.C. 505-5, eff. Jan. 1, 1972; a. Ord. No 338-1980, eff. Sept. 6, 1980)

Cross reference—Penalty, §§ 512-1, 512-7, 512-23.
State law reference—See ORC 4513.31.

Sec. 505-7. Load Shifting.

In addition to all other requirements of load distribution, it shall be unlawful to operate any vehicle upon a highway unless such vehicle is so laden as to prevent its contents from shifting or otherwise unbalancing the vehicle to such an extent as to interfere with the safe operation of the vehicle.
(C.O. 505-7; reordained as C.M.C. 505-7, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-1, 512-7.

Sec. 505-9. Explosives—Transporting.

No person operating any vehicle transporting any explosives upon a highway shall fail to comply, at all times, with the provisions of this section.

Such vehicle shall be marked or placarded on each side and the rear with the word "explosives" in letters not less than eight inches high, or there shall be displayed on the rear of such vehicle a red flag not less than 24 inches square marked with the word "danger" in white letters six inches high.

Every such vehicle shall be equipped with not less than two fire extinguishers filled and ready for immediate use and placed at convenient points on the vehicle so used.

Such operator shall also comply with any other regulations prescribed by the director of highways.
(C.O. 505-9; reordained as C.M.C. 505-9, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-1, 512-7.
State law reference—See ORC 4513.29.

Sec. 505-10. Prohibiting Parking of Vehicles Containing Explosives.

No person shall park a vehicle containing any explosives upon streets or grounds, whether public or private, within the corporate limits of the city of Cincinnati, except in case of accident or any other emergency involving such vehicle or its driver. In the latter event, as soon as practicable, the driver of such vehicle shall notify the police of the location of such vehicle as well as the circumstances surrounding the accident or emergency.

(Sec. 505-10; ordained by Ord. No. 106-1961, eff. Apr. 28, 1961; reordained as C.M.C. 505-10, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-1, 512-7.

State law reference—See ORC 3743.15(E).

Sec. 505-11. Operator's View or Control.

No person shall drive a vehicle so loaded or with such number of persons in the front seat as to obstruct the view of the driver to the front or sides of the vehicle, nor shall the driver of the vehicle wear any equipment or apparel including but not limited to sun glasses on or about the head or face which is so constructed as to limit the driver's field of vision so as to interfere with the driver's control of the vehicle.

(C.O. 505-11; a. Ord. No. 361-1965, eff. Sept. 1, 1965; reordained as C.M.C. 505-11, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-1, 512-7.

State law reference—See ORC 4511.70.

Sec. 505-12. Passengers on Motorcycles and Bicycles.

No person operating a bicycle or motorcycle shall ride other than upon the permanent and regular seat attached thereto, nor carry any other person upon such bicycle or motorcycle other than upon a firmly attached and regular seat thereon, nor shall any person ride upon a bicycle or motorcycle other than as above authorized.

No bicycle or motorcycle shall be used to carry more persons at one time than the number for which it is designed and equipped, nor shall any motorcycle be operated on a highway when the handle bars or grips are more than 15 inches higher than the seat or saddle for the operator.

No person shall operate a motorcycle on a highway, or be a passenger on a motorcycle, unless wearing a protective helmet on the head, with the chin strap properly fastened, and using safety glasses or other protective eye device. Such helmet, safety glasses, or other protective eye device shall conform with regulations prescribed and promulgated by the director of highway safety. The provisions of this paragraph or a violation thereof shall not be used in the trial of any civil action.

(C.O. 505-12; reordained as C.M.C. 505-12, eff. Jan. 1, 1972; a. Ord. No. 224-1972, eff. May 24, 1972)

Cross reference—Penalty, §§ 512-1, 512-7.

State law reference—See ORC 4511.53.

Sec. 505-13. Protective Equipment.

(a) *Motorized bicycles.*

(1) No person shall operate a motorized bicycle on a street or highway, or be a passenger on a motorized bicycle, unless wearing a protective helmet on the head, with the chin strap properly fastened, and using safety glasses or other protective eye device. Such helmet, safety glasses, or other protective eye device shall conform with regulations prescribed and promulgated by the Ohio director of highway safety for motorcycles under the provisions of Section 4511.53 of the Revised Code. **2**

(2) For purposes of this Section, "motorized bicycle" shall have the same meaning as defined in Section 501-1-M2.

(3) For purposes of this Section "street or highway" shall have the same meaning as defined in Section 501-1-S3.

(b) *Bicycles, Scooters, Skateboards, e-Scooters, Roller Skates and In-Line Skates.*

(1) No person 15 years of age and under shall operate a bicycle, e-scooter, skateboard, or scooter or ride as a passenger on such device, or wear roller skates or in-line skates, within the city of Cincinnati on any public or non-residential property, unless such person is wearing a protective helmet on his or her head, with the chin strap fastened under the chin. Such helmet shall be fitted to the size of the operator and shall meet or exceed the standards set by ANSI (American National Standards Institute), CPSC (Consumer Product Safety Commission), or SNELL (Snell Memorial Foundation). This ordinance shall not apply to any person riding a bicycle, e-scooter, skateboard or scooter as the operator or passenger or wearing roller skates or in-line skates on any property which is a single-family residence.

(2) No person who is 15 years of age and under shall violate Section 505-13B.

(3) The penalty for a violation of this ordinance shall be as follows:

a. First offense: written warning;

b. Second offense: written warning and the juvenile shall view a safety video within 45 days. Failure to view the video within 45 days shall result in a minor misdemeanor citation; and

c. Third and all subsequent offenses: minor misdemeanor.

If aggravating circumstances are present, such as a traffic accident or a near accident or there are accompanying criminal or traffic charges against the minor, the officer shall issue a citation rather than a warning.

(4) For purposes of this Section, "bicycle" shall have the same meaning as defined in Section 501-1-B.

(5) For purposes of this Section, "e-scooter" shall have the same meaning as defined in Section 501-1-E3.

(Ordained by Ord. No. 447-1983, eff. Oct. 21, 1983; a. Ord. No. 346-2003, eff. May 1, 2004; amended by Emer. Ord. No. 228-2021, §§ 6, 7, eff. June 2, 2021)

Sec. 505-14. When Bicycles are Subject to This Chapter.

The provisions of the traffic code applicable to bicycles shall apply whenever a bicycle is operated upon any highway or upon any path set aside for the exclusive use of bicycles subject to those exceptions stated herein.
(C.O. 505-14; reordained as C.M.C. 505-14, eff. Jan. 1, 1972)

State law reference—See ORC 4511.52.

Sec. 505-16. Passengers on Vehicles.

No person shall ride on any vehicle upon any portion thereof not designed or intended for the use of passengers when the vehicle is in motion, nor shall any operator knowingly permit the same to be done.

This provision shall not apply to an employee engaged in the necessary discharge of a duty, or riding within a truck body in space designed for merchandise.
(C.O. 505-16; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. 505-16, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-1, 512-7.

Sec. 505-17. Obstructing Operator's View.

No passenger in a vehicle shall ride in such position as to interfere with the operator's view ahead or to the sides or to interfere with the operator's control over the driving mechanism.
(C.O. 505-17; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. 505-17, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-1, 512-7.

Sec. 505-18. Boarding or Leaving Vehicle in Motion.

No person shall board or alight from any vehicle while such vehicle is in motion.
(C.O. 505-18; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. 505-18, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-1, 512-7.

Sec. 505-19. Boarding or Leaving Stopped Vehicle.

No operator or passenger of any motor vehicle shall leave or enter such vehicle, or otherwise open any door of a vehicle, on the side next to a moving lane of traffic unless such movement can be made without danger of causing an accident by reason of a passing vehicle, lawfully using the highway, striking the open door or the person entering or leaving or swerving to avoid same.
(C.O. 505-19; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. 505-19, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-1, 512-7.

Chapter 506

OPERATION AND RIGHT OF WAY

Sec. 506-2. Defects or Infirmities in Driver.
Sec. 506-3. Repealed.
Sec. 506-4. Operation of Bicycles, Motorized Bicycles, e-Scooters and Motorcycles.
Sec. 506-5. Bicycles, Operation by Minors.
Sec. 506-5-A. Bicycles, e-Scooters: Operation Upon Bicycle/Pedestrian Way.
Sec. 506-6. Reckless Operation of Vehicles.
Sec. 506-7. Reckless Operation of Vehicles Off Streets and Highways.
Sec. 506-8. Speed.
Sec. 506-9. Radar Arrests.
Sec. 506-10. Posted Special Speeds.
Sec. 506-11. Railroads Crossing Highways at Grade.
Sec. 506-12. Slow-Moving Vehicles.
Sec. 506-13. Following Emergency Vehicles.
Sec. 506-14. Following Emergency or Public Safety Vehicles.
Sec. 506-15. Gathering at Scene of Accident.
Sec. 506-16. Construction Zones, Signs and Penalties.
Sec. 506-17. Following Vehicles Too Closely.
Sec. 506-18. Clinging to Moving Vehicles.
Sec. 506-19. Use of Highway for Soliciting, Riding on Outside of Rear End of Vehicle.
Sec. 506-20. Repealed.
Sec. 506-21. Crossing Railroad Tracks.
Sec. 506-22. Slow-Speed Vehicles on Railroad Crossings.
Sec. 506-23. Grade Crossings.
Sec. 506-24. Use of Public Transit Stops.
Sec. 506-25. Leaving Curb.
Sec. 506-26. Coasting on Down-Grade.
Sec. 506-27. Fire Hose, Crossing.
Sec. 506-28. Backing.
Sec. 506-30. Racing on Street.
Sec. 506-31. Towing Disabled Vehicle.
Sec. 506-34. Through Highways; Stop Streets.
Sec. 506-35. Entering through Highway or Stop Intersection.
Sec. 506-35-A. Traffic Sign Avoidance.
Sec. 506-37. Utility Vehicles to Stop at Railroad Crossings.
Sec. 506-39. Emerging from Alleys or Driveways.
Sec. 506-40. Traffic Control Signals, Vehicular.
Sec. 506-40-A. Traffic Control Signals, Pedestrian.
Sec. 506-40-B. Traffic Signal Avoidance.
Sec. 506-41. Reversible Lane Signals.
Sec. 506-43. Flashing Red Signals.
Sec. 506-44. Flashing Yellow Signals.
Sec. 506-45. Public Safety Vehicles, Right of Way.
Sec. 506-46. Pedestrians Crossing Highway.
Sec. 506-47. Pedestrians to Use Sidewalks.
Sec. 506-48. Playing in the Street.
Sec. 506-49. Right-of-Way at Street Intersections.
Sec. 506-51. Right of Way, Pedestrians.
Sec. 506-52. Right of Way, Blind Persons.
Sec. 506-53. Intoxicated Pedestrian on Public Highway.
Sec. 506-54. Stopping when Traffic Obstructed.
Sec. 506-59. Driving on Left Side of Highway.
Sec. 506-60. Vehicles Keeping to the Right.

Sec. 506-61. Driving in Marked Lanes.
Sec. 506-62. Driving through Safety Zones.
Sec. 506-63. Driving on Sidewalk Area.
Sec. 506-64. Driving Over New Pavement.
Sec. 506-66. Vehicle Restrictions—Street Usage.
Sec. 506-67. Speed—Semi-Trailer.
Sec. 506-69. Stopping for School Buses.
Sec. 506-70. Passing in Opposite Direction.
Sec. 506-71. Overtaking and Passing.
Sec. 506-72. Overtaking and Passing on the Right.
Sec. 506-73. Driving to Left of Center Line; Clear Distance Ahead.
Sec. 506-74. Restrictions on Crossing Center Line.
Sec. 506-75. Hazardous Zones; Signs and Markings.
Sec. 506-76. Weaving.
Sec. 506-77. Divided Roadways.
Sec. 506-79. Passing Vehicles Stopped at Crosswalk.
Sec. 506-80. Changing Course of or Stopping Vehicle.
Sec. 506-81. Changing Course of or Stopping Semi-Trailer.
Sec. 506-83. Hand Signals.
Sec. 506-84. Turning at Intersections.
Sec. 506-85. Motor Bus Turns.
Sec. 506-85-A. North on Broadway to West on Fourth Street.
Sec. 506-85-B. South on Race Street to East on Seventh Street.
Sec. 506-85-C. West on Eighth Street to South on Walnut Street.
Sec. 506-85-D. South on Race Street to East on Fifth Street.
Sec. 506-85-E. North on Elm Street to West on Eighth Street.
Sec. 506-86. Repealed.
Sec. 506-87. Turns in the Business District.
Sec. 506-88. Repealed.
Sec. 506-91. Street Fetes.
Sec. 506-92. Play Streets.
Sec. 506-93. Quiet Zones.
Sec. 506-94. Court House Quiet Zone.
Sec. 506-97. Unnecessary Horn-Blowing.
Sec. 506-98. Sending, Reading or Writing a Text Message or Accessing the Internet While Driving.

Sec. 506-2. Defects or Infirmities in Driver.

No person who is subject to epilepsy, vertigo, or other infirmity of mind or body which would render him incapable of the safe operation of a vehicle shall operate any vehicle. The foregoing provision shall not bar a person whose eyesight is defective from operating a vehicle if vision is brought to normal by a proper correction.
(C.O. 506-2; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. 506-2, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-1, 512-7.

Sec. 506-3. Repealed.

(Ordained by Ord. No. 525-1987, eff. Dec. 16, 1987; a. Ord. No. 285-2000, eff. 8-2-00; r. Ord. No. 153-2024, § 3, eff. May 15, 2024)

Sec. 506-4. Operation of Bicycles, Motorized Bicycles, e-Scooters, and Motorcycles.

(a) Every person operating a bicycle, motorized bicycle, or e-scooter shall obey the rules of operation and right-of-way for all vehicles as provided by this chapter and elsewhere in Title V of the Cincinnati Municipal Code except when clearly exempted from any section thereof.

(b) Every person operating a bicycle, motorized bicycle, or e-scooter upon a roadway shall ride as near to the right side of the roadway as practicable, obeying all traffic rules applicable to vehicles and exercising due care when passing a standing vehicle or one proceeding in the same direction.

(c) Persons operating bicycles, motorized bicycles, or e-scooters shall ride in the same direction as all other vehicular traffic.

(d) Persons operating bicycles, motorized bicycles, e-scooters, or motorcycles upon a roadway shall ride not more than two abreast in a single lane.

(e) No person shall operate a bicycle, motorized bicycle, or e-scooter on a city sidewalk, except for bicycles in certain areas ridden by minors 15 years of age or younger as authorized under Section 506-5 of this chapter.

(f) No operator of an e-scooter device shall do any of the following:

(1) Fail to yield the right-of-way to pedestrians at all times;

(2) Fail to give an audible signal before overtaking and passing a pedestrian;

(3) Operate the device at night, unless the device or its operator is equipped with or wearing both of the following:

(a) A lamp pointing to the front that emits a white light visible from a distance of not less than five hundred feet; and

(b) A red reflector facing the rear that is visible from all distances from one hundred feet to six hundred feet when directly in front of lawful lower beams of head lamps on a motor vehicle.

(4) Park an e-scooter on a sidewalk in a manner that impedes the flow of pedestrian travel, interferes with an intended function of the sidewalk, or blocks or obstructs any doorway, crosswalk, or other access routes.

(5) Operate an e-scooter while it is occupied by more than one person. E-scooters shall only be occupied by one person while in operation.

(g) No person who is under sixteen years of age shall rent an e-scooter.

(1) No person shall knowingly rent an e-scooter to a person who is under sixteen years of age.

(2) No person shall knowingly rent an e-scooter for use by a person who is under sixteen years of age.

(h) No person shall operate an e-scooter at a speed greater than 15 miles per hour.

(i) No person who is under the age of 16 shall operate an e-scooter capable of obtaining a speed greater than 10 miles per hour.

(j) No person shall operate an e-scooter in the Streetcar Obstruction Zone, except when crossing over the Streetcar Obstruction Zone, which shall be done at a ninety-degree angle or otherwise perpendicular to the streetcar tracks.

(k) Violation of this section shall be punishable as a traffic violation misdemeanor as defined in Section 512-1 of the Cincinnati Municipal Code.
(C.O. 506-4; reordained as C.M.C. 506-4, eff. Jan. 1, 1972; a. Ord. No. 239-1974, eff. June 29, 1974; a. Ord. No. 191-1975, eff. May 22, 1975; a. Ord. No. 267-1982, eff. July 23, 1982; Ord. No. 607-1983, eff. Dec. 21, 1983; a. Ord. No. 0292-2018, §§ 4, 5, eff. Sept. 9, 2018; amended by Emer. Ord. No. 228-2021, §§ 4, 5, eff. June 2, 2021)

Cross reference—Penalty, §§ 512-1, 512-7.
State law reference—See ORC 4511.55.

Sec. 506-5. Bicycles, Operation by Minors.

Minors 15 years of age or less may be permitted to ride bicycles on sidewalks where the buildings do not abut the paved portion of the sidewalk; provided that, where approaching a pedestrian or other person lawfully using the sidewalk, any such minor riding on the sidewalk shall give audible warning by means of a bell or horn and shall yield the use of the sidewalk to such pedestrian or other persons dismounting if necessary to do so.
(C.O. 506-5; reordained as C.M.C. 506-5, eff. Jan. 1, 1972)

Sec. 506-5-A. Bicycles, e-Scooters: Operation Upon Bicycle/Pedestrian Way.

Bicycles and e-scooters may be operated on shared bicycle/pedestrian ways, including on such shared bicycle/pedestrian ways in public parks, as authorized by applicable rules. Any person riding a bicycle or e-scooter upon a bicycle/pedestrian way who is approaching a pedestrian lawfully using such way shall give audible warning and shall yield to such pedestrian, dismounting if necessary to do so.
(Ordained by Ord. 29-1995, eff. Feb. 21, 1995; a. Ord. No. 0292-2018, §§ 4, 5, eff. Sept. 9, 2018)

Sec. 506-6. Reckless Operation of Vehicles.

No person shall operate a vehicle on any street or highway without due regard for the safety of persons or property.

Whoever violates this section shall be fined not more than $250 or imprisoned not more than 30 days, or both.
(C.O. 506-6; a. Ord. No. 109-1968, eff. Mar. 13, 1968; reordained as C.M.C. 506-6, eff. Jan. 1, 1972 and Sec. 512-6 ordained by Ord. No. 371-1961, eff. Nov. 24, 1961; reordained as C.M.C. 512-6, eff. Jan. 1, 1972; renumbered to C.M.C. 506-6, eff. Sept. 1, 1979)

State law reference—See ORC 4511.20.

Sec. 506-7. Reckless Operation of Vehicles Off Streets and Highways.

No person shall operate a vehicle on any public or private property other than streets or highways without due regard for the safety of persons or property.

Whoever violates any provision of this section shall be fined not more than $250, or imprisoned not more than 30 days, or both.
(Sec. 506-7; ordained by Ord. No. 109-1968, eff. Mar. 13, 1968; reordained as C.M.C.

506-7 and 512-15, eff. Jan. 1, 1972; C.M.C. 512-15, renumbered to C.M.C. 506-7, eff. Sept. 1, 1979)

State law reference—See ORC 4511.201.

Sec. 506-8. Speed.

No person shall operate a motor vehicle in and upon the streets and highways at a speed greater or less than is reasonable or proper, having due regard to the traffic, surface and width of the street or highway and of any other conditions then existing, and no person shall drive any motor vehicle in and upon any street or highway at a greater speed than will permit the operator to bring it to a stop within the assured clear distance ahead.

It shall be prima facie lawful for the operator of a motor vehicle to operate the same at a speed not exceeding the following:

(a) 15 miles per hour on all alleys.

(b) 20 miles per hour when passing a school building or the grounds thereof during school recess and while children are going to or leaving school, during the opening or closing hours, and when appropriate signs giving notice of the existence of the school are erected, except that on controlled-access highways, expressways and freeways, if the right of way line fence has been erected without pedestrian opening the school speed limit shall not apply.

(c) 25 miles per hour in other parts of the city, except on state routes and on through highways outside business districts.

(d) 35 miles per hour on state routes or on through highways outside business districts except on controlled-access highways, expressways, or freeways and on state routes outside urban districts.

(e) 50 miles per hour on state routes outside urban districts unless a lower prima facie speed has been established.

(f) 50 miles per hour on controlled-access highways and expressways.

(g) 55 miles per hour on freeways with paved shoulders.

It shall be prima facie unlawful for any person to exceed any of the speed limitations in this or in other sections of the traffic code. In every charge of violation of this section the affidavit and warrant shall specify the time, place and the speed at which the defendant is alleged to have driven, also the speed, if any, which this section declares shall be prima facie lawful at the time and place of such alleged violation, except that in affidavits where a person is alleged to have driven at a greater speed than will permit the person to bring a vehicle to a stop within the assured clear distance ahead the affidavit and warrant need not specify the speed at which the defendant is alleged to have driven.

Nothing herein shall be construed to relieve a driver from the duty to decrease speed when approaching and crossing an intersection, when approaching and going around a curve, when approaching a hillcrest, when traveling upon any narrow or winding roadway, or when special hazards exist with respect to pedestrians or other traffic or by reason of weather or highway conditions or to avoid colliding with any person, vehicle or other conveyance on or entering a highway. (C.O. 506-8; a. Ord. No. 403-1963, eff. Nov. 20, 1963; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. 506-8, eff. Jan. 1, 1972; a. Ord. No. 224-1972, eff. May 24, 1972; a. Ord. No. 92-1974, eff. Mar. 13, 1974; reordained as Ord. No. 400-1992, eff. Oct. 12, 1992)

Cross reference—Penalty, §§ 512-1, 512-7.

State law reference—See ORC 4511.21.

Sec. 506-9. Radar Arrests.

The driver of any motor vehicle which has been checked by radar, or by any electrical or mechanical timing device to determine the speed of the motor vehicle over a measured distance of the highway and found to be in violation of any of the provisions of Section 506-8 of the traffic code, may be arrested until a warrant can be obtained, provided such officer has observed the recording of the speed of such motor vehicle by the radio microwaves, electrical or mechanical timing device, or has received a radio message from the officer who observed the speed of the motor vehicle recorded by the radio microwaves, electrical or mechanical timing device; provided, in case of an arrest based on such a message, such radio message has been dispatched immediately after the speed of the motor vehicle was recorded and the arresting officer is furnished a description of the motor vehicle for proper identification and the recorded speed.
(C.M.C. 506-9; ordained by Ord. No. 224-1972, eff. May 24, 1972)

Sec. 506-10. Posted Special Speeds.

Whenever the prima facie speed limitations in Section 506-8 have been altered by the city manager as provided under the uniform traffic act of the state of Ohio and appropriate signs erected as required, operators of motor vehicles shall be governed by the speed limitations set forth by such signs.
(C.O. 506-10; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. 506-10, eff. Jan. 1, 1972)

State law reference—See ORC 4511.21.

Sec. 506-11. Railroads Crossing Highways at Grade.

No directing officer or operator of any railroad locomotive, railroad cars or railroad train shall direct the operation of or operate the same in such a manner as to interfere unreasonably with the use of a street for purposes of travel. The blocking of a street by a locomotive, railroad car or cars, or railroad train for a period of more than five minutes shall be prima facie evidence of a violation of this section.
(C.O. 506-11; reordained as C.M.C. 506-11, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-1, 512-7.
State law reference—See ORC 5589.21.

Sec. 506-12. Slow-Moving Vehicles.

No person shall operate a vehicle at such a slow speed as to impede or block the reasonable movement of traffic except when reduced speed is necessary for safe operation or in compliance with law. Upon all roadways any vehicle proceeding at less than the normal speed of traffic at the times and place and under the conditions then existing shall be driven in the right-hand lane then available for traffic, or as close as practicable to the right-hand curb or edge of the roadway, except when overtaking and passing another vehicle proceeding in the same direction or when preparing for a left turn.
(C.O. 506-12; a. Ord. No. 130-1960, eff. May 6, 1960; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. 506-12, eff. Jan. 1, 1972; a. Ord. No. 442-1975, eff. Oct. 10, 1975)

Cross reference—Penalty, §§ 512-1, 512-7.
State law reference—See ORC 4511.22, 4511.33.

Sec. 506-13. Following Emergency Vehicles.

No driver of any vehicle other than an emergency vehicle or public safety vehicle on official business shall follow any emergency vehicle or public safety vehicle traveling in response to an alarm closer than 500 feet or drive into or park such vehicle within the

block where fire apparatus has stopped in answer to a fire alarm unless directed so to do by a police officer or fireman.
(C.O. 506-13; reordained as C.M.C. 506-13, eff. Jan. 1, 1972; a. Ord. No. 224-1972, eff. May 24, 1972)

Cross reference—Penalty, §§ 512-1, 512-7.
State law reference—See ORC 4511.72.

Sec. 506-14. Following Emergency or Public Safety Vehicles.

No person, being the operator of any vehicle other than an emergency vehicle or public safety vehicle on official business, shall follow any emergency vehicle or public safety vehicle for the purpose of keeping such emergency or public safety vehicle or the occupants therein under surveillance, unless directed to do so by a police officer or a fireman.
(C.O. 506-14; a. Ord. No. 109-1968, eff. Mar. 13, 1968; reordained a C.M.C. 506-14, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-1, 512-7.

Sec. 506-15. Gathering at Scene of Accident.

No driver of any vehicle shall proceed to the scene of an accident or other emergency so as to interfere with-the progress of vehicles of the police or other city department proceeding thereto; nor shall stop or park vehicles in the vicinity thereof, nor shall pedestrians gather or assemble, so as to interfere with or impede police officers or other persons in performing their duties or in rendering proper service at the scene of such accident or other emergency or for the purpose of advertising or offering any service for hire; nor shall any person thereat solicit gainful employment of any nature, or otherwise interfere with or impede traffic upon the streets or the proper and efficient rendition of service to persons or property involved in, or affected by, such accident; provided that this section shall not be construed as applying to ambulances, clergymen or physicians and their vehicles, vehicles of a public utility company, or commercial vehicles that are responding to an express request from one of the parties involved in such accident, or in response to a request from the police department.
(C.O. 506-15; reordained as C.M.C. 506-15, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-1, 512-7.

Sec. 506-16. Construction Zones, Signs and Penalties.

As used in this section the phrase "construction zone" means that lane or portion of street or highway open to vehicular traffic and adjacent to a lane, berm or shoulder of a street or highway within which lane, berm, or shoulder construction, or reconstruction, resurfacing, or any other work or repair of a maintenance nature, including public utility work, is being conducted, commencing with the point where the first worker or piece of equipment is located and ending where the last worker or piece of equipment is located.

(A) That the Director of Public Works is authorized to erect signs advising motorists that increased penalties apply for violation of moving traffic offenses in construction zones. The increased penalties are in effect when the signs are posted, and when the violations occur during hours of actual work within the construction zone.

(B) That the increased penalties shall apply to violations of the following sections of the Cincinnati Municipal Code occurring on streets or highways in construction zones; Sections 502-19; 506-8; 506-10; 506-30; 506-35; 506-61; 506-62; 506-64; 506-67; 506-70; 506-71; 506-72; 506-73; 506-74; 506-75; 506- 76; 506-77; 506-80; 506-84.

(C) Notwithstanding any other section of the Cincinnati Municipal Code, upon

a finding that a person operated a motor vehicle in a construction zone where a sign was then posted in accordance with Section 506-16(A), the court, in addition to all other penalties provided by law, shall impose a minimum fine of at least two times the amount posted on the Hamilton County Municipal Court traffic payout schedule.

(Ordained by Ord. Nor. 344-1995, eff. Nov. 17, 1995; a. Ord. No. 359-1998, eff. Oct. 23, 1998)

Cross reference—Cincinnati building code, tit. XI.

Sec. 506-17. Following Vehicles Too Closely.

No operator of a vehicle shall follow another vehicle more closely than is reasonable and prudent, having due regard for the speed of such vehicle and the traffic upon and the condition of the highway.

(C.O. 506-17; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. 506-17, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-1, 512-7.
State law reference—See ORC 4511.34.

Sec. 506-18. Clinging to Moving Vehicles.

No person riding upon any bicycle, motorcycle, coaster, roller skates, sled, or toy vehicle shall attach it or such person to any vehicle upon a roadway.

No operator shall knowingly permit any person riding upon any bicycle, coaster, roller skates, sled, or toy vehicle to attach it or such person to any vehicle while it is moving upon a roadway.

(C.O. 506-18; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. 506-18, eff. Jan. 1, 1972; a. Ord. No. 224-1972, eff. May 24, 1972)

Cross reference—Penalty, §§ 512-1, 512-7.
State law reference—See ORC 4511.54.

Sec. 506-19. Use of Highway for Soliciting, Riding on Outside of Rear End of Vehicle.

(a) No person shall stand on a highway for the purpose of soliciting employment, business or contributions from the occupant of any vehicle.

(b) No person shall hang onto, or ride on the outside of, the rear end of any motor vehicle while moving upon a highway.

(c) No operator shall knowingly permit any person to hang onto or ride on the outside of any motor vehicle while it is upon the roadway.

(C.M.C. 506-19; ordained by Ord. No. 442-1975, eff. Oct. 10, 1975)

Sec. 506-20. Repealed.

(C.O. 506-20; reordained as C.M.C. 506-20, eff. Jan. 1, 1972; r. Emer. Ord. No. 247-2011, § 11, eff. June 29, 2011)

Cross reference—Penalty, §§ 512-1, 512-7.

Sec. 506-21. Crossing Railroad Tracks.

No person shall drive a vehicle upon a railroad grade crossing when:

(a) A clearly visible electric or mechanical signal device gives warning of the immediate approach of a train;

(b) A crossing gate is lowered, or when a human flagman gives or continues to give a signal of the approach or passage of a train.

(c) It is impossible to clear the crossing completely.

No operator shall change lanes while crossing a railroad grade crossing or within 100 feet of such crossing.

(C.O. 506-21; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. 506-21, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-1, 512-7.
State law reference—See ORC 4511.62.

Sec. 506-22. Slow-Speed Vehicles on Railroad Crossings.

No person shall operate or move any crawler-type tractor, steam shovel, derrick, roller, or any equipment or structure having a normal operating speed of six or less miles per hour or a vertical body or load clearance of less than nine inches above the level surface of a roadway upon or across any tracks at a railroad grade crossing without first complying with paragraphs (a) and (b) of this section.

(a) Before making any such crossing the person operating or moving any such vehicle or equipment shall first stop the vehicle or equipment and while so stopped shall listen and look in both directions along such track for any approaching train and for signals indicating the approach of a train and shall proceed only upon exercising due care.

(b) No such crossing shall be made when warning is given by automatic signal or crossing gates or a flagman or otherwise of the immediate approach of a railroad train or car.

(c) In the event the normal sustained speed of such vehicle, equipment or structure is not more than three miles per hour, the person owning, operating or moving the vehicle, equipment or structure shall also give notice of such intended crossing to a station agent or superintendent of such railroad and a reasonable time shall be given to such railroad to provide proper protection for such crossing. Where such vehicles or equipment are being used in constructing or repairing a section of highway lying on both sides of a railroad grade crossing, and in such construction or repair it is necessary to repeatedly move such vehicles or equipment over such crossing, one daily notice specifying when such work will start and the hours during which it will be prosecuted shall be sufficient.

(C.O. 506-22; reordained as C.M.C. 506-22, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-1, 512-7.
State law reference—See ORC 4511.64.

Sec. 506-23. Grade Crossings.

The city manager or a person designated by the city manager may designate dangerous highway grade crossings over railroad tracks and erect stop signs thereat. When such stop signs are erected, the operator of any vehicle shall stop before proceeding across such grade crossing.

(C.O. 506-23; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. 506-23, eff. Jan. 1, 1972; a. Ord. No. 418-1978, eff. Nov. 4, 1978)

Cross reference—Penalty, §§ 512-1, 512-7.
State law reference—See ORC 4511.61.

Sec. 506-24. Use of Public Transit Stops.

Except for an operator of an authorized paratransit vehicle, no operator of a public transit vehicle shall stop such vehicle for the purpose of receiving or discharging passengers at any point other than at an authorized public transit stop.

(C.O. 508-20; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. 508-20, eff. Jan. 1, 1972; renumbered from 508-20 to 506-24, by Ord. 423-1992, eff. Sept. 16, 1992; a. Ord. No. 110-2014, § 2, eff. June 29, 2014)

Cross reference—Penalty, §§ 512-4, 512-7, 512-23.

Sec. 506-25. Leaving Curb.

No person shall start a vehicle which is stopped, standing or parked unless and until

such movement can be made with reasonable safety, and without giving the proper signal for such movement.
(C.O. 506-25; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. 506-25, eff. Jan. 1, 1972)
Cross reference—Penalty, §§ 512-1, 512-7.
State law reference—See ORC 4511.38.

Sec. 506-26. Coasting on Down-Grade.

No operator of any motor vehicle traveling on a steep down-grade shall permit the vehicle he is driving to proceed with the gears, clutch, or any portion of the driving mechanism thereof disengaged.
(C.O. 506-26; reordained as C.M.C. 506-26, eff. Jan. 1, 1972)
Cross reference—Penalty, §§ 512-1, 512-7.

Sec. 506-27. Fire Hose, Crossing.

No vehicle shall be driven over any unprotected hose of a fire department when laid down on any street or private driveway without the consent of the fire department official in command.
(C.O. 506-27; a. Ord. No. 109-1968, eff. Mar. 13, 1968; reordained as C.M.C. 506-27, eff. Jan. 1, 1972)
Cross reference—Penalty, §§ 512-1, 512-7.
State law reference—See ORC 4611.73.

Sec. 506-28. Backing.

Before backing, operators of vehicles shall give ample warning, and while backing shall exercise vigilance not to injure persons or property on the street or highway.

No person shall back any vehicle for a greater distance than is necessary to reach the nearest curb or to clear an obstruction to traffic.

No person shall back a motor vehicle on a freeway except in the performance of public works or official duties, or as a result of an emergency caused by an accident or breakdown of a motor vehicle.
(C.O. 506-28; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. 506-28, eff. Jan. 1, 1972; a. Ord. No. 224-1972, eff. May 24, 1972)
Cross reference—Penalty, §§ 512-1, 512-7.
State law reference—See ORC 4511.38.

Sec. 506-30. Racing on Street.

No person shall operate any motor vehicle in any race, endurance test, or speed contest, upon any highway. Persons rendering assistance in any manner to such competitive use of vehicles shall be equally charged as the participants.
(C.O. 506-30; a. Ord. No. 130-1960, eff. May 6, 1960; reordained as C.M.C. 506-30, eff. Jan. 1, 1972)
Cross reference—Penalty, §§ 512-1, 512-7.
State law reference—See ORC 4511.25.1.

Sec. 506-31. Towing Disabled Vehicle.

When one vehicle is towing another the drawbar or other connection shall be of sufficient strength to pull all weight towed thereby and said drawbar or other connection shall not exceed 15 feet from one vehicle to the other except the connection between any two vehicles transporting poles, pipe, machinery or other objects of structural nature which cannot readily be dismembered.

When one vehicle is towing another and the connection consists only of a chain, rope, or cable, there shall be displayed upon such connection a white flag or cloth not less than 12 inches square.

In addition to such drawbar or other connection, each trailer and each semi-trailer which is not connected to a commercial tractor by means of a fifth-wheel shall be coupled with stay chains or cables to the vehicle by which it is being drawn, which chains or cables shall be of sufficient

size and strength to prevent parting from the drawing vehicle, should the drawbar or other connection break or become disengaged; provided, however, that in the case of a loaded pole trailer the connecting pole to the drawing vehicle shall be coupled to the drawing vehicle with stay chains or cables of sufficient size and strength to prevent parting from the drawing vehicle.

Every trailer or semi-trailer except pole and cable trailers and pole and cable dollies operated by a public utility as defined in Sections 5701.11 and 5727.01 of the Ohio Revised Code shall be equipped with a coupling device which shall be so designed and constructed that the trailer will follow substantially in the path of the vehicle drawing it without whipping or swerving from side to side.
(C.O. 506-31; reordained as C.M.C. 506-31, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-1, 512-7.
State law reference—See ORC 4513.32.

Sec. 506-34. Through Highways; Stop Streets.

All state routes and all sections of streets and highways on which are operated motor coaches for carrying passengers for hire along a fixed or regular route are through highways, provided that stop signs shall be erected at all intersections with such through highways by the city manager or person designated by the city manager; provided, however, that where two or more through highways intersect and no traffic control signal is in operation, stop signs shall be erected at one or more entrances thereto by the city manager or person designated by the city manager.

Other streets or highways, or portions thereof, with a continuous length of more than one mile between the limits of such street or highway or portion thereof, at the entrances to which vehicular traffic from the majority of intersecting streets or highways is controlled by "stop" or "yield" signs or traffic control signals are hereby designated as through highways. For the purposes of this section the limits of such street or highway or portion thereof shall be the city limit line, the physical terminus of the street or highway, or any point on such street or highway at which vehicular traffic thereon is required by regulatory signs to stop or yield to traffic on the intersecting street.

The city manager or person designated by the city manager need not erect stop signs at intersections so constructed as to permit traffic to safely enter a through highway without coming to a stop. Signs shall be erected at such intersections indicating that the operator of a vehicle shall yield the right of way to or merge with all traffic proceeding on the through highway.

The city manager or person designated by the city manager may designate additional through highways and shall erect stop signs on all streets and highways intersecting such through highways, or may designate any intersection as a stop intersection and shall erect like signs at one or more entrances to such intersection.

Every said sign shall bear the word "Stop" in letters not less than six inches in height. Every stop sign shall be located as near as practicable at the property line of the highway at the entrance to which the stop must be made, or at the nearest line of the crosswalk thereat, or, if none, at the nearest line of the roadway.

Every operator of a vehicle shall stop at such sign or at a clearly marked stop line before entering an intersection except when directed to proceed by a police officer or a traffic control signal.
(C.O. 506-34; a. Ord. No. 130-1960, eff. May 6, 1960; a. Ord. No. 47-1971, eff. Feb. 10,

1971; reordained as C.M.C. 506-34, eff. Jan. 1, 1972; a. Ord. No. 224-1972, eff. May 24, 1972; a. Ord. No. 418-1978, eff. Nov. 4, 1978)

Cross reference—Penalty, §§ 512-1, 512-7.
State law reference—See ORC 4511.65

Sec. 506-35. Entering Through Highway or Stop Intersection.

Except when directed to proceed by a law enforcement officer, every driver of a vehicle approaching a stop sign shall stop at a clearly marked stop line, but if none, before entering the crosswalk on the near side of the intersection, or, if none, then at the point nearest the intersecting roadway where the driver has a view of approaching traffic on the intersecting roadway before entering it. After having topped, the driver shall yield the right of way to any vehicle in the intersection or approaching on another roadway so closely as to constitute an immediate hazard during the time the driver is moving across or within the intersection or junction of roadways.

The driver of a vehicle approaching a yield sign shall slow down to a speed reasonable for the existing conditions and, if required for safety to stop, shall stop at a clearly marked stop sign, but if none, before entering the crosswalk on the near side of the intersection or, if none, then at the point nearest the intersecting roadway where the driver has a view of approaching traffic on the intersecting roadway before entering it. After slowing or stopping, the driver shall yield the right of way to any vehicle in the intersection or approaching on another roadway so closely as to constitute an immediate hazard during the time the driver is moving across or within the intersection or junction of roadways. Whenever a driver is involved in a collision with a vehicle in the intersection or junction of roadways, after driving past a yield sign without stopping, the collision shall be prima facie evidence of the driver's failure to yield the right of way.
(C.O. 506-35; a. Ord. No. 130-1960, eff. May 6, 1960; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. 506-35, eff. Jan. 1, 1972; a. Ord. No. 442-1975, eff. Oct. 10, 1975)

Cross reference—Penalty, §§ 512-1, 512-7.
State law reference—See ORC 4511.43.

Sec. 506-35-A. Traffic Sign Avoidance.

No person operating a vehicle shall cause such vehicle to leave the roadway for the purpose of avoiding any traffic-control device, including but not limited to stop and yield signs except when directed to do so by a law enforcement officer.
(Ordained by Ord. No. 380-1988, eff. Sept. 21, 1988)

Sec. 506-37. Utility Vehicles to Stop at Railroad Crossings.

The operator of any motor vehicle carrying passengers for hire, or of any school bus, or of any vehicle carrying explosives or flammable liquids as a cargo or such part of a cargo as to constitute a hazard, before crossing at grade any track of a railroad, shall stop such vehicle, and while so stopped he shall listen through an open door or open window and look in both directions along the tracks for any approaching train and for signals indicating the approach of a train, and shall proceed only upon exercising due care; after stopping, looking, and listening as required by this section and upon proceeding, the operator of any such vehicle shall cross only in such gear of the vehicle that there will be no necessity for changing gears while traversing such crossing and the operator shall not shift gears while crossing the tracks.

This section does not apply to abandoned tracks, spur tracks, side tracks, and industrial tracks when the public utilities commission

of Ohio has authorized and approved the crossing of such tracks without making the stop required in this section.

Whoever violates any provision of this section shall be fined not more than $50 for the first offense; for the second offense such person shall be fined not more than $100 or imprisoned not more than 30 days, or both.
(C.O. 506-37; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. and C.O. 512-5; renumbered to C.M.C. 506-37, eff. Jan. 1, 1972; 506-37, eff. Sept. 6, 1979)

State law reference—See ORC 4511.63, 4511.99.

Sec. 506-39. Emerging from Alleys or Driveways.

The operator of a vehicle about to enter or cross a highway from any place other than another roadway shall yield the right of way to all traffic approaching on the roadway to be entered or crossed.

The driver of a vehicle emerging from an alley, building, private road, or driveway within a business or residence district shall stop the vehicle immediately prior to driving onto a sidewalk or onto the sidewalk area extending across the alley, building entrance, road and driveway, or in the event there is no sidewalk area, shall stop at the point nearest to the street to be entered where the driver has a view of approaching traffic thereon.
(C.O. 506-39; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained C.M.C. 506-39, eff. Jan. 1, 1972; a. Ord. No. 442-1975, eff. Oct. 10, 1975)

Cross reference—Penalty, §§ 512-2, 512-7.

State law reference—See ORC 4511.44.

Sec. 506-40. Traffic Control Signals, Vehicular.

Whenever traffic is controlled by traffic control signals, exhibiting different illuminated colored lights, or controlled with illuminated arrows, the following colors only shall be used and the terms and lights shall indicate and apply to operators of vehicles as follows:

(a) Circular green alone or "go". All traffic facing the signal except as provided under Sections 506-62, 506-84 and 506-85 may proceed straight through or turn right or left unless a sign at such place prohibits either such turn. But such traffic shall yield the right of way to vehicles lawfully within the intersection and to pedestrians within a crosswalk at the time such signal is exhibited.

(b) Circular yellow alone or "caution" when shown following the green or "go" signal. All traffic facing the signal is warned that the red or "stop" signal will be exhibited immediately thereafter, and that pedestrians proceeding in accordance with traffic control signals shall have the right of way.

(c) Circular red alone or "stop":

(1) All traffic facing the signal shall stop before entering the intersection and shall remain standing until authorized to proceed by a traffic control device except as provided in paragraph (c)(2) of this section.

(2) Unless a sign is in place prohibiting a right turn, all traffic facing this signal may cautiously enter the intersection to make a right turn after stopping as required by paragraph (c)(1) of this section. Such traffic shall yield the right of way to pedestrians lawfully within an adjacent crosswalk and to other traffic lawfully using the intersection.

(d) Green arrow signal or a traffic control device authorizing turn with red or

"stop" signal. All traffic facing such signal or device may cautiously enter the intersection only to make the movement indicated by the green arrow or device and shall yield the right of way to pedestrians lawfully within a crosswalk and to other traffic lawfully using the intersection.

(e) Green arrow signal alone. All traffic facing such signal may enter the intersection only to make the movement indicated by such arrow but shall yield the right of way to pedestrians lawfully within a crosswalk and to traffic lawfully using the intersection.

(f) Yellow arrow signal alone when shown following a related green arrow signal. All traffic facing such a signal is warned that the related green arrow movement is about to be terminated.

(g) Where more than one traffic control signal or device is shown simultaneously, vehicular traffic shall comply with the traffic control signal or device applicable to the traffic lane and direction in which it is proceeding or about to proceed.

(h) Any traffic lawfully upon the roadway within an intersection at the time a traffic control signal changes may continue cautiously through the intersection with due regard for the safety and rights of all persons using the roadway.

(i) Whenever a traffic signal is inoperative because of mechanical failure, operators of vehicles shall slow down and stop if the movement of traffic on the cross street or streets indicates that the red signal is out and then proceed with caution when the intersection has cleared.

(j) In the event an official traffic control signal is erected and maintained at a place other than an intersection, the provisions of this section shall be applicable except as to those provisions which by their nature can have no application. Any stop required shall be made at a sign or marking on the pavement indicating where the stop shall be made, but in the absence of any such line or marking the stop shall be made at the signal.

(C.O. 506-40; a. Ord. No. 153-1960, eff. May 20, 1960; a. Ord. No. 246-1960, eff. July 29, 1960; a. Ord. No. 403-63, eff. Nov. 20, 1963; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. 506-40, eff. Jan. 1, 1972; a. Ord. No. 224-1972, eff. May 24, 1972; a. Ord. No. 340-1975, eff. July 2, 1975)

Cross reference—Penalty, §§ 512-1, 512-7.
State law reference—See ORC 4511.13.

Sec. 506-40-A. Traffic Control Signals, Pedestrian.

Whenever traffic is controlled by traffic signals exhibiting different illuminated colored lights or controlled with illuminated arrows, the following colors only shall be used and the terms and lights shall indicate and apply to pedestrians as follows:

(a) Circular green alone or "go." Pedestrians facing the signal may proceed across the roadway within any marked or unmarked crosswalk unless directed otherwise by a pedestrian signal or a traffic control device.

(b) Circular yellow alone or "caution" when shown following the green or "go" signal. No pedestrian facing such signal shall enter the roadway.

(c) Circular red alone or "stop." No pedestrian facing such signal shall enter the roadway.

(d) Green arrow signal or traffic control device authorizing turn with red or "stop" signal. No pedestrian facing such signal shall enter the roadway, except when in a crosswalk subject to regulation by a signal indicating "walk."

(e) Green arrow signal alone. Pedestrians facing a vertical green arrow signal may proceed across the roadway within any marked or unmarked crosswalk unless directed otherwise by a pedestrian signal or a traffic control device.

(f) Yellow arrow signal alone when shown following a related green arrow signal. No pedestrian facing such signal shall enter the roadway unless otherwise directed by a pedestrian signal.

(g) Whenever special pedestrian control signals indicating the words "walk," "don't walk," or "wait" are in place such signals shall indicate as follows:

(1) "Walk." Pedestrians facing such signal may proceed across the roadway in direction of the signal.

(2) "Don't walk" or "wait." No pedestrian shall start to cross the roadway in the direction of said signal but any pedestrian who has partially completed crossing on the walk signal shall proceed to a sidewalk or safety zone while the "wait" or "don't walk" signal is showing.

(h) Whenever a traffic control signal is inoperative because of mechanical failure pedestrians shall stop if the movement of traffic on the cross street or streets indicates that the red signal or the "wait" or "don't walk" signal is out and then proceed with caution when the intersection is clear.

(i) In the event an official traffic control signal is erected and maintained at a place other than an intersection the provisions of this section shall be applicable except as to those provisions which by their nature can have no application.

(C.O. 506-40a; a. Ord. No. 403-1960, eff. Nov. 20, 1963; a. Ord. No. 463-1971, eff. Dec. 22, 1971; a. Ord. No. 487-1972, eff. Dec. 29, 1971; renumbered to C.M.C. 506-40-A, eff. Jan. 1, 1972; a. Ord. No. 224-1972, eff. May 24, 1972)

Cross reference—Penalty, §§ 512-1, 512-7.

State law reference—See ORC 4511.13, 4511.14.

Sec. 506-40-B. Traffic Signal Avoidance.

No person operating a vehicle shall cause such vehicle to leave the roadway for the purpose of avoiding any traffic-control signal except when directed to do so by a law enforcement officer.

(Ordained by Ord. No. 312-1988, eff. Aug. 3, 1988)

Sec. 506-41. Reversible Lane Signals.

Whenever it is necessary to indicate and control the direction of travel in a traffic lane or lanes of a street or highway for the purpose of reversing the direction of traffic in the lane, rectangular signal units shall be placed over each reversible lane and shall apply to operators of vehicles as follows:

(a) Rectangular signal unit with downward pointing illuminated green arrow. Traffic facing such signal may travel in the lane over which the green arrow is shown.

(b) Rectangular signal unit with an illuminated red "X." Traffic facing

such signal shall not enter or travel in any lane over which the "X" signal is shown.

(Sec. 506-41; ordained by Ord. No. 403-1963, eff. Nov. 20, 1963; reordained by Ord. No. 56-1964, eff. Mar. 13, 1964; reordained as C.M.C. 506-41, eff. Jan. 1, 1972)

State law reference—See ORC 4511.131.

Sec. 506-43. Flashing Red Signals.

Whenever flashing red traffic signals are used they shall require obedience as follows:

Flashing red (stop signal): Operators of vehicles shall stop before entering the intersection or at a limit line when marked, and the right to proceed shall be subject to the rules applicable after making a stop at a stop sign.

(C.O. 506-43; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. 506-13, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-1, 512-7.

State law reference—See ORC 4511.15.

Sec. 506-44. Flashing Yellow Signals.

Whenever flashing yellow traffic signals are used they shall require obedience as follows:

(a) Flashing yellow (caution signal): Operators of vehicles may proceed through the intersection or past such signal only with caution.

(b) Emergency signal: When amber lights are flashing in conjunction with the regular red and green operation at an intersection, it shall be unlawful for the operator of any vehicle to enter or cross such intersection without first slowing down to 10 miles an hour and without ascertaining that such movement can be made without interfering with the passage of an authorized emergency vehicle.

(C.O. 506-44; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. 506-44, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-1, 512-7.

State law reference—See ORC 4511.15.

Sec. 506-45. Public Safety Vehicles, Right of Way.

Upon the approach of a public safety vehicle, equipped with at least one flashing, rotating or oscillating light visible under normal atmospheric conditions from a distance of 500 feet to the front of such vehicle and the driver is giving audible signal by siren, exhaust whistle, or bell, the driver of every other vehicle shall yield the right of way, immediately drive to a position parallel to, and as close as possible to, the right edge or curb of the highway clear of any intersection, and stop and remain in such position until the public safety vehicle has passed, except when otherwise directed by a police officer.

Upon the immediate approach of a public safety vehicle, as stated in Section 4511.45, Ohio Revised Code, every pedestrian shall yield the right of way to the public safety vehicle.

This section shall not operate to relieve the driver of an emergency vehicle from the duty to drive with due regard for the safety of all persons and property upon the highway.

(C.O. 506-45; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. 506-45, eff. Jan. 1, 1972; a. Ord. No. 224-1972, eff. May 24, 1972; a. Ord. No. 442-1975, eff. Oct. 10, 1975; a. Ord. No. 381-1976, eff. Aug. 4, 1976)

Cross reference—Penalty, §§ 512-1, 512-7.

State law reference—See ORC 4511.45.

Sec. 506-46. Pedestrians Crossing Highway.

No pedestrian shall suddenly leave a curb or other place of safety and walk or run into the path of a vehicle which is so close as to constitute an immediate hazard.

No pedestrian shall cross a roadway at a place other than for a crosswalk except when crosswalks are an unreasonable distance apart; provided, however, that no pedestrian shall cross the highway at a place between crosswalks which is within 150 feet of a marked or signalized crosswalk.

Pedestrians shall move, whenever practical, upon the right half of a crosswalk.

Every pedestrian crossing a roadway at any point other than within a marked crosswalk or within an unmarked crosswalk at an intersection shall yield the right of way to all traffic operating lawfully upon the roadway.

Any pedestrian crossing a roadway at a point where a pedestrian tunnel or overhead pedestrian crossing has been provided shall yield the right of way to all traffic upon the roadway.

Notwithstanding the provisions of this section, every operator of a vehicle shall exercise due care to avoid colliding with any pedestrian upon any roadway.

No pedestrian shall cross a roadway at any place other than by a route at right angles to the curb or by the shortest route to the opposite curb except in a crosswalk.
(C.O. 506-46; a. Ord. No. 152-1960, eff. May 20, 1960; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. 506-46, eff. Jan. 1, 1972; a. Ord. No. 50-1976, eff. Mar. 6, 1976)

Cross reference—Penalty, §§ 512-1, 512-7.
State law reference—See ORC 4511.48, 4511.49, 4511.50.

Sec. 506-47. Pedestrians to Use Sidewalks.

Where usable walks or paths parallel a roadway, no pedestrian shall walk in, along, or upon the roadway, except as provided in this chapter.

Where usable walks or paths are not provided to a roadway, pedestrians may walk along or upon the roadway and where practicable shall face approaching traffic, and shall exercise due care to avoid approaching traffic.

Where a sidewalk is not available, any pedestrian walking along and upon a highway shall walk only on a shoulder as far as practicable from the edge of the roadway.

Where neither a sidewalk nor a shoulder is available, any pedestrian walking along and upon a highway shall walk as near as practicable to an outside edge of the roadway, and, if on a two-way roadway, shall walk only on the left side of the roadway.
(C.O. 506-47; reordained as C.M.C. 506-47, eff. Jan. 1, 1972; a. Ord. No. 442-1975, eff. Oct. 10, 1976)

Cross reference—Penalty, §§ 512-2, 512-7.
State law reference—See ORC 4511.50.

Sec. 506-48. Playing in the Street.

No person upon roller skates, or riding in or by means of any coaster, toy vehicles, or similar device, shall go upon any roadway other than the roadway of a play street, except while crossing a highway on a crosswalk.
(C.O. 506-48; reordained as C.M.C. 506-48, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-1, 512-7.

Sec. 506-49. Right-of-Way at Street Intersections.

Except where otherwise provided, the operator of a vehicle shall yield the right-of-way at an intersection to a vehicle approaching from the right.
(C.O. 506-49; a. Ord. No. 130-1960, eff. May 6, 1960; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. 506-49, eff. Jan. 1, 1972; a. Ord. No. 426-1983, eff. Oct. 8, 1983)

Cross reference—Penalty, §§ 512-1, 512-7.
State law reference—See ORC 4511.41.

Sec. 506-51. Right of Way, Pedestrians.

It shall be the duty of the operator of any vehicle to grant the right to proceed to a pedestrian lawfully crossing the roadway within any crosswalk when the pedestrian is upon the half of the roadway upon which the vehicle is traveling, or the pedestrian is approaching so closely from the opposite half of the roadway as to be in danger.
(C.O. 506-51; a. Ord. No. 47-1971; eff. Feb. 10, 1971; reordained as C.M.C. 506-51, eff. Jan. 1, 1972; a. Ord. No. 50-1976, eff. Mar. 5, 1976)

Cross reference—Penalty, §§ 512-1, 512-7.
State law reference—See ORC 4511.46.

Sec. 506-52. Right of Way, Blind Persons.

As used in this section "blind person" or "blind pedestrian" shall mean a person having not more than 20/200 visual acuity in the better eye with correcting lenses or visual acuity greater than 20/200 but with a limitation in the fields of vision such that the widest diameter of the visual field subtends an angle no greater than 20 degrees.

The driver of every vehicle shall yield the right of way to every blind pedestrian guided by a guide dog, or carrying in a raised or extended position a white cane or white cane with a red tip.

No person, other than a blind person, while on any public highway, street, alley, or other public thoroughfare shall carry in a raised or extended position a white cane or a white cane with a red tip.

Whoever violates any provision of this section shall be fined not more than $200.
(C.O. 737-9; renumbered to C.M.C. 506-52 and C.M.C. 512-21, eff. Jan. 1, 1972; a. Ord. No. 224-1972, eff. May 24, 1972; C.M.C. 512-21; renumbered to C.M.C. 506-52, eff. Sept. 1, 1979)

State law reference—See ORC 4511.47.

Sec. 506-53. Intoxicated Pedestrian on Public Highway.

A pedestrian who is under the influence of alcohol or any drug of abuse as defined in Section 3719.011, Ohio Revised Code, or any combination thereof, to a degree which renders himself a hazard shall not walk or be upon a highway.
(C.M.C. 506-53; ordained by Ord. No. 442-1975, eff. Oct. 10, 1975)

Sec. 506-54. Stopping When Traffic Obstructed.

No driver shall enter an intersection or a marked crosswalk unless there is sufficient space on the other side of the intersection or crosswalk to accommodate the vehicle being operated without obstructing the passage of other vehicles or pedestrians, notwithstanding any traffic control signal indication to proceed.
(C.O. 506-54; reordained as C.M.C. 506-54, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-1, 512-7.

Sec. 506-59. Driving on Left Side of Highway.

Upon all roadways of sufficient width a vehicle shall be driven upon the right half of the roadway, except as follows:

(a) When overtaking and passing another vehicle proceeding in the same direc-

tion or when making a left turn under the rules governing such movements;

(b) When an obstruction exists making it necessary to drive to the left of the center of the highway; provided any person so doing shall yield the right of way to all vehicles traveling in the proper direction upon the unobstructed portion of the highway within such distance as to constitute an immediate hazard;

(c) Upon a roadway divided into three or more marked lanes for traffic under the rules applicable thereon;

(d) Upon a roadway designated and sign posted for one-way traffic; or

(e) When otherwise directed by a police officer or traffic control device.

(C.O. 506-59; a. Ord. No. 403-1963, eff. Nov. 20, 1963; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. 506-59, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-1, 512-7.
State law reference—See ORC 4511.25.

Sec. 506-60. Vehicles Keeping to the Right.

Except on one-way streets or when overtaking and passing another vehicle proceeding in the same direction, or when preparing for a left turn, it shall be the duty of the operator of any vehicle proceeding at less than the normal speed of traffic at the time and place and under the conditions then existing to drive in the right hand lane then available for traffic or as close as practicable to the right hand curb or edge of the roadway.

(C.O. 506-60; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. 506-60, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-1, 512-7.

Sec. 506-61. Driving in Marked Lanes.

Wherever any roadway has been divided into two or more clearly marked lanes for traffic, or wherever traffic is lawfully moving in substantially continuous lines in the same direction, the following rules, in addition to all others consistent herewith, shall apply.

(a) A vehicle shall be driven as nearly as practicable entirely within a single lane or line of traffic and shall not be moved from such lane or line until the driver has first ascertained that such movement can be made with safety.

(b) Official signs may be erected directing specified traffic to use a designated lane or designating those lanes to be used by traffic moving in a particular direction regardless of the center of the roadway, and drivers of vehicles shall obey the directions of such signs.

(c) Whenever a lane has been designated for left turns from either direction by signs, markings, or other traffic control devices, it shall be used for that purpose only and the driver of a vehicle entering the lane to make a left turn shall exercise due care to avoid colliding with vehicles lawfully within or about to enter the lane.

(d) Except for the operator of a bus entering or exiting an authorized bus stop, the driver of a motor vehicle shall not drive, unless entering or exiting a legal parking space or driveway, upon any on-street path or lane designated by official signs or markings for the exclusive use of bicycles or otherwise drive or place the vehicle in such a manner as to impede bicycle traffic on such path or lane.

(e) Except for authorized public transit vehicles, a driver of a motor vehicle shall not drive, unless that driver is

crossing that traffic lane to enter or exit a legal parking space or driveway, upon any traffic lane designated by official signs or markings for the exclusive use of public transit vehicles.

(C.O. 506-61; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. 506-61, eff. Jan. 1, 1972; a. Ord. No. 224-1972, eff. May 24, 1972; a. Ord. No. 442-1975, eff. Oct. 10, 1975; a. Ord. No. 241-2010, § 1, eff. July 23, 2010; a. Ord. No. 071-2016, § 2, eff. April 23, 2016)

Cross reference—Penalty, §§ 512-1, 512-7.
State law reference—See ORC 4511.33

Sec. 506-62. Driving Through Safety Zones.

No vehicle shall at any time be driven through or within a safety zone

(C.O. 506-62; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. 506-62, eff. Jan 1, 1972)

Cross reference—Penalty, §§ 512-1, 512-7.
State law reference—See ORC 4511.60.

Sec. 506-63. Driving On Sidewalk Area.

No person shall drive or propel a vehicle, or ride, lead or drive an animal of the horse or cattle kind within or across a sidewalk area, or public park or recreation area, immediately adjacent to a street or highway except at a permanent or temporary driveway or bridle path; provided, however, that where the coal hole for a property is located within a sidewalk area, the owner of the property may apply to the city manager for a special permit authorizing the backing of coal trucks onto the sidewalk for the sole purpose of dumping coal or coke into such coal hole. If the city manager on recommendation of the director of public works shall be satisfied that such operation can be performed without danger to the sidewalk, he may issue the permit applied for, for a period of not more than one year. Every such permit shall be conditioned on the agreement of the property owner to assume full responsibility for any damage that may occur to the sidewalk from the use by coal trucks and to save and to hold the city harmless of any and all liability, claims or expenses of any kind caused by, or growing out of, any such use of the sidewalk. A fee of 50 cents shall be charged for each application to cover the cost of inspection and supervision.

This provision shall not prohibit driving on the sidewalk area when necessary to avoid a temporary obstruction in the roadway but in such case the operators of the vehicle shall exercise due care for pedestrians using the sidewalk area.

(C.O. 506-63; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. 506-63, eff. Jan. 1, 1972)

Cross references—Penalty, §§ 512-1, 512-7; Streets and sidewalks, use regulations, ch. 723.

Sec. 506-64. Driving Over New Pavement.

No person shall drive upon, along or across a street or highway or any part thereof which has been closed and posted with appropriate signs, while in the process of construction, reconstruction or repair, by the authority having jurisdiction to close such highway.

(C.O. 506-64; reordained as C.M.C. 506-64, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-1, 512-7.
State law reference—See ORC 4511.71.

Sec. 506-66. Vehicle Restrictions—Street Usage.

It shall be unlawful to operate any vehicle or combination of any vehicle and trailer which contains more than two axles and four wheels, and whose gross vehicle weight exceeds 7500 pounds on the following streets:

(a) Central Parkway from Plum Street to Ludlow Avenue northbound and southbound; Victory Parkway; West-

wood Northern Boulevard; Columbia Parkway from Fifth and Pike Streets to Delta Avenue; Columbia Parkway from Stanley Avenue to Beechmont Avenue; West Seymour Avenue from Dillard Avenue to Vine Street. These highways may at all times be used by motor vehicles of the United States of America carrying U.S. Mail and may be used by other vehicles for the purpose of delivering goods or merchandise to or receiving same from premises located alongside said highways and not otherwise accessible. Such other vehicles so using said highways shall enter and leave the same at the intersecting street nearest the loading or unloading point.

(b) West Seymour Avenue from 200 feet west of Este Avenue to Vine Street. This highway may at all times be used by motor vehicles of the United States of America carrying U.S. Mail and may be used by other vehicles for the purpose of delivering goods or merchandise to or receiving same from premises located alongside said highway.

(C.O. 506-66; a. Ord. No. 436-1958, eff. Jan. 2, 19592 reordained as C.M.C. 506-66, eff. Jan. 1, 1972; a. Ord. No. 510-1976, eff. Nov. 10, 1976; a. Ord. No. 525-1976, eff. Nov. 17, 1976; a. Ord. No. 151-1977, eff. May 27, 1977; a. Ord. No. 286-1997, eff. Sept. 4, 1997; a. Ord. No. 397-1998, eff. Oct. 28, 1998; a. Ord. No. 390-2024, § 2, eff. Nov. 20, 2024)

Cross reference—Penalty, §§ 512-1, 512-7.
State law reference—See ORC 737.022(E)

Sec. 506-67. Speed—Semi-Trailer.

No person shall operate a semi-trailer in and upon the streets and highways at a speed greater or less than is reasonable or proper, having due regard to the traffic, surface and width of the street or highway and of any other conditions then existing; and no person shall drive any semi-trailer in and upon any street or highway at a greater speed than will permit the operator to bring it to a stop within the assured clear distance ahead.

It shall be prima facie lawful for the operator of a semi-trailer to operate the same at a speed not exceeding the following:

(a) 15 miles per hour on all alleys;

(b) 20 miles per hour when passing a school building or the grounds thereof during school recess and while children are going to or leaving school, during the opening or closing hours, and when appropriate signs giving notice of the existence of the school are erected, except that on controlled-access highways, expressways and freeways, if the right-of-way line fence has been erected without pedestrian opening, the school speed limit shall not apply;

(c) 25 miles per hour in other parts of the city, except on state routes and on through highways outside business districts;

(d) 35 miles per hour on state routes or on through highways outside business districts except on controlled-access highways, expressways, or freeways and on state routes outside urban districts;

(e) 50 miles per hour on state routes outside urban districts unless a lower prima facie speed has been established;

(f) 50 miles per hour on controlled-access highways and expressways;

(g) 55 miles per hour on freeways with paved shoulder.

It shall be prima facie unlawful for any person to exceed any of the speed limitations in this section or in other sections of the traffic code. In every charge of violation of this section, the affidavit and warrant shall specify the time, place and speed at which the defendant is alleged to have driven, also the speed, if any, which this section declares shall be prima facie lawful at the time and place of such alleged violation; except that in affidavits where a person is alleged to have driven at a greater speed than will permit the person to bring a semi-trailer to a stop within the assured clear distance ahead, the affidavit and warrant need not specify the speed at which the defendant is alleged to have driven.

Nothing herein shall be construed to relieve a driver from the duty to decrease speed when approaching and crossing an intersection, when approaching and going around a curve, when approaching a hillcrest, when traveling upon any narrow or winding roadway, or when special hazards exist with respect to pedestrians or other traffic or by reason of weather or highway conditions or to avoid colliding with any person, vehicle or other conveyance on or entering a highway.
(Ordained by Ord. No. 406-1986, eff. Nov. 5, 1986; a. Ord. No. 396-1992, eff. Oct. 12, 1992)

Cross reference—Penalty, § 512-3.

Sec. 506-69. Stopping for School Buses.

The driver of a vehicle, upon meeting or overtaking from either direction any yellow school bus stopped for the purpose of receiving or discharging any school child or person attending programs offered by community boards of mental health and county boards of developmental disabilities shall stop at least 10 feet from the front or rear of the yellow school bus and shall not proceed until such school bus resumes motion, or until signaled by the school bus driver to proceed. The requirement to stop shall not apply for vehicles approaching a school bus on the opposite side of a highway divided into four or more traffic lanes; the driver of a vehicle overtaking a school bus on such a divided highway is still required to comply with the requirement to stop.

Whoever violates this section may be fined an amount not to exceed $500.
(Ordained by Ord. No. 361-1981, eff. Sept. 2, 1981; a. Ord. No. 350-1981, eff. Sept. 1, 1982; a. Ord. No. 287-23, § 1, eff. August 2, 2023)

Sec. 506-70. Passing in Opposite Direction.

Operators of vehicles proceeding in opposite directions shall pass each other to the right, and upon roadways having width for not more than one line of traffic in each direction each operator shall give to the other one-half or as nearly one-half of the main traveled portion of the roadway as is reasonably possible.
(C.O. 506-70; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. 506-70, eff. Jan. 1,1970)

Cross reference—Penalty, §§ 512-1, 512-7.
State law reference—See ORC 4511.26.

Sec. 506-71. Overtaking and Passing.

The following rules shall govern the overtaking and passing of vehicles proceeding in the same direction, subject to those limitations, exception, and special rules hereinafter stated:

(a) The operator of a vehicle overtaking another vehicle proceeding in the same direction shall signal to the vehicle to be overtaken and shall pass to the left thereof at a safe distance and shall not again drive to the right side of the roadway until safely clear of the overtaken vehicle.

(b) The operator of a motor vehicle overtaking a bicycle proceeding in the same direction on a roadway shall leave a safe distance, but not less than 3 feet, when passing the bicycle and shall maintain that distance until safely past the overtaken bicycle.

(c) Except when overtaking and passing on the right is permitted, the operator of an overtaken vehicle shall give way to the right in favor of the overtaking vehicle on audible signal and shall not increase the speed of his vehicle until completely passed by the overtaking vehicle.

(d) The operator of a vehicle overtaking and passing another vehicle proceeding in the same direction on a divided highway, a limited access highway, or a highway with four or more traffic lanes, is not required to signal audibly to the operator of the vehicle being overtaken and passed.

(C.O. 506-71; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. 506-71, eff. Jan. 1, 1972; a. Ord. No. 224-1972, eff. May 24, 1972; a. Ord. No. 241-2010, § 3, eff. July 23, 2010)

Cross reference—Penalty, §§ 512-1, 512-7.
State law reference—See ORC 4511.27.

Sec. 506-72. Overtaking and Passing on the Right.

The driver of a vehicle may overtake and pass upon the right of another vehicle only under the following conditions:

(a) When the vehicle overtaken is making or about to make a left turn;

(b) Upon a roadway with unobstructed pavement of sufficient width for two or more lines of vehicles moving lawfully in the direction being traveled by the overtaking vehicle.

The driver of a vehicle may overtake and pass another vehicle only under conditions permitting such movement in safety. The movement shall not be made by driving off the roadway.

(C.O. 506-72; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. 506-72, eff. Jan. 1, 1972; a. Ord. No. 442-1975, eff. Oct. 10, 1975)

Cross reference—Penalty, §§ 512-2, 512-7.
State law reference—See ORC 4511.28.

Sec. 506-73. Driving to Left of Center Line; Clear Distance Ahead.

No vehicle shall be driven to the left of the center of the roadway in overtaking and passing traffic proceeding in the same direction, unless such left side is clearly visible and is free of oncoming traffic for a sufficient distance ahead to permit such overtaking and passing to be completely made, without interfering with the safe operation of any traffic approaching from the opposite direction or any traffic overtaken. In every event the overtaking vehicle must return to any authorized lane of travel as soon as practicable and in the event the passing movement involves the use of a lane authorized for traffic approaching from the opposite direction, before coming within 200 feet of any approaching vehicle.

(C.O. 506-72; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. 506-72, eff. Jan. 1, 1972; a. Ord. No. 442-1975, eff. Oct. 10, 1975)

Cross reference—Penalty, §§ 512-1, 512-7.
State law reference—See ORC 4511.29.

Sec. 506-74. Restrictions on Crossing Center Line.

No vehicle shall, in overtaking and passing traffic, or at any other time, be driven to the left of the center or center line of the roadway under the following conditions:

(a) When approaching the crest of a grade or upon a curve in the highway, where

the driver's view is obstructed within such a distance as to create a hazard in the event traffic might approach from the opposite direction.

(b) When the view is obstructed upon approaching within 100 feet of any bridge, viaduct or tunnel.

(c) When approaching within 100 feet of or traversing any intersection or railroad grade crossing.

The foregoing limitations shall not apply on a one-way roadway or upon a roadway where traffic is lawfully directed to be driven to the left side.
(C.O. 506-74; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. 506-74, eff. Jan. 1, 1972; a. Ord. No. 442-1975, eff. Oct. 10, 1975)
Cross reference—Penalty, §§ 512-1, 512-7.
State law reference—See ORC 4511.30.

Sec. 506-75. Hazardous Zones; Signs and Markings.

The city manager or person designated by the city manager is authorized to determine those portions of any roadway where overtaking and passing other traffic or driving to the left of the center or center line of the roadway would be especially hazardous and may, by appropriate signs or markings on the roadway, indicate the beginning and end of such zones, and when such signs or markings are in place and clearly visible, every operator of a vehicle shall obey the directions thereof notwithstanding the distances allowed by Section 506-74.

No operator of any vehicle shall move across a solid double yellow or white line or a solid single yellow line, which is on the operator's side of a broken center or lane line except for the purpose of entering a driveway, alley, or an intersecting street.
(C.O. 506-75; a. Ord. No. 47-1971, eff. Feb. 10, 1971; renumbered to C.M.C. 506-75, eff. Jan. 1, 1972; a. Ord. No. 41-1973, eff. March 2, 1973; a. Ord. No. 418-1978, eff. Nov. 4, 1978)
Cross reference—Penalty, §§ 512-1, 512-7.
State law reference—See ORC 4511.31.

Sec. 506-76. Weaving.

No person shall drive a vehicle upon any highway in a weaving or zigzag course, unless such irregular course is made necessary by traffic exigencies.
(C.O. 506-76; reordained as C.M.C. 506-76, eff. Jan. 1, 1972)
Cross reference—Penalty, §§ 512-1, 512-7.

Sec. 506-77. Divided Roadways.

Whenever any highway has been divided into two roadways by an intervening space or by a physical barrier or clearly indicated dividing section so constructed as to impede vehicular traffic, every vehicle shall be driven only upon the right-hand roadway; and no vehicle shall be driven over, across or within any such dividing space, barrier or section, except through an opening, crossover, or intersection therein established, or when authorized by official traffic-control devices designating certain lanes to the left of center of the roadway for use by traffic not otherwise permitted to use the lanes. This section shall not prohibit the occupancy of such dividing space, barrier, or section for the purse of an emergency stop or in compliance with an order of a police offer or the crossing of an open divider of the "ripple ride," "jiggle bar," or "mushroom button" type for the pure of entering a driveway, alley or an intersecting street.
(C.O. 506-75a; a. Ord. No. 130-1960, eff. May 5, 1960; renumbered to C.M.C. 506-77, eff. Jan. 1, 1972; a. Ord. No. 386-1983, eff. Sept. 2, 1983)
Cross reference—Penalty, §§ 512-1, 512-7.
State law reference—See ORC 4511.35.

Sec. 506-79. Passing Vehicles Stopped at Crosswalk.

Whenever any vehicle is stopped at a marked crosswalk or at any unmarked crosswalk at an intersection to permit a pedestrian to cross the roadway, no operator of any other vehicle approaching from the rear shall overtake and pass such stopped vehicle.

(C.O. 506-79; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. 506-79, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-1, 512-7.

State law reference—See ORC 4511.46.

Sec. 506-80. Changing Course of or Stopping Vehicle.

No person shall turn a vehicle in an intersection unless the vehicle is in proper position upon the roadway as required in Section 506-84 or turn a vehicle to enter a private road or driveway or otherwise turn a vehicle from a direct course or move right or left upon a roadway unless and until such movement can be made with reasonable safety. No person shall so turn any vehicle without giving an appropriate signal in the manner hereinafter provided in the event any other traffic may be affected by such movement.

(a) When required, a signal of intention to turn or move right or left shall be given continuously during not less than the last 100 feet traveled by the vehicle before turning.

(b) No person shall stop or suddenly decrease the speed of a vehicle without first giving an appropriate signal in the manner provided herein to the driver of any vehicle immediately to the rear when there is opportunity to give a signal.

(c) Any stop or turn signal required by this section shall be given either by means of the hand and arm, or by signal lights that clearly indicate to both approaching and following traffic intention to turn or move right or left, except that any motor vehicle in use on a highway shall be equipped with, and the required signal shall be given by, signal lights when the distance from the center of the top of the steering post to the left outside limit of the body, cab, or load of such motor vehicle exceeds 24 inches, or when the distance from the center of the top of the steering post to the rear limit of the body or load thereof exceeds 14 feet, whether a single vehicle or a combination of vehicles.

The signal lights required by this section shall not be flashed on one side only on a disabled vehicle, flashed as a courtesy or "do pass" signal to operators of other vehicles approaching from the rear, not be flashing on one side only of a parked vehicle except as may be necessary for compliance with this section.

(C.O. 506-80; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. 506-80, eff. Jan. 1, 1972; a. Ord. No. 442-1975, eff. Oct. 10, 1975)

Cross reference—Penalty, §§ 512-1, 512-7.

State law reference—See ORC 4511.39.

Sec. 506-81. Changing Course of or Stopping Semi-Trailer.

No person shall turn a semi-trailer in an intersection unless the semi-trailer is in proper position upon the roadway as required in Section 506-84 or turn a semi-trailer to enter a private road or driveway or otherwise turn a semi-trailer from a direct course or move right or left upon a roadway unless and until such movement can be made with reasonable safety. No person shall so turn any semitrailer without giving an appropriate signal in the manner hereinafter provided in the event any other traffic may be affected by such movement.

(a) When required, a signal of intention to turn or move right or left shall be

given continuously during not less than the last 100 feet traveled by the semi-trailer before turning.

(b) No person shall stop or suddenly decrease the speed of a semi-trailer without first giving an appropriate signal in the manner provided herein to the driver of any vehicle immediately to the rear when there is opportunity to give a signal.

(c) Any stop or turn signal required by this section shall be given either by means of the hand and arm, or by signal lights that clearly indicate to both approaching and following traffic intention to turn or move right or left, except that any semi-trailer in use on a highway shall be equipped with, and the required signal shall be given by, signal lights when the distance from the center of the top of the steering post to the left outside limit of the body, cab, or load of such motor vehicle exceeds 24 inches, or when the distance from the center of the top of the steering post to the rear limit of the body or load thereof exceeds 14 feet, whether a single vehicle or semi-trailer.

The signal lights required by this section shall not be flashed on one side only on a disabled vehicle, flashed as a courtesy or "do pass" signal to operators of other vehicles approaching from the rear, nor be flashing on one side only of a parked vehicle except as may be necessary for compliance with this section.
(Ordained by Ord. No. 406-1986, eff. Nov. 5, 1986; a. Ord. No. 16-1987, eff. Jan. 14, 1987)

Sec. 506-83. Hand Signals.

All signals herein required when given by hand and arm shall be given from the left side of the vehicle in the following manner and such signals shall indicate as follows:

(a) Left turn hand and arm extended horizontally.

(b) Right turn - hand and arm extended upward.

(c) Stop or decrease speed - hand and arm extended downward.

(d) Move to another traffic lane - same signal as for a turn in that direction.
(C.O. 506-83; reordained as C.M.C. 506-83, eff. Jan. 1, 1972)
State law reference—See ORC 4511.40.

Sec. 506-84. Turning at Intersections.

Except as otherwise provided, the driver of a vehicle intending to turn at an intersection shall do so as follows:

(a) Approach for a right hand turn and a right turn itself shall be made as close as practicable to the right hand curb or edge of the roadway.

(b) Approach for a left turn from a two-way roadway into a two-way roadway shall be made in that portion of the right half of the roadway nearest the center line thereof and after entering the intersection the left turn shall be made so as to leave the intersection to the right of the center line of the roadway being entered.

(c) Approach for a left turn from a two-way roadway to a one-way roadway shall be made in that portion of the right half of the roadway nearest the center line thereof and by passing to the right of such center line where it enters the intersection.

(d) Approach for a left turn from a one-way to a two-way roadway shall be made as close as practicable to the left hand curb or edge of the roadway and after entering the intersection the left turn shall be made so as to leave the intersection to the right of the center lane of the roadway being entered.

(e) Approach for a left turn from a one-way to a one-way roadway shall be made as close as practicable to the left hand curb or edge of the roadway. The completion of this turn is to be made in the extreme left hand lane lawfully available.

(f) When a right turn roadway has been provided between the right hand curb or edge of the roadway and a channelizing island or marked area at an intersection, it shall constitute the only legal path for right turns and shall be used for no other purpose.

(g) The operator of a vehicle within an intersection intending to turn to the left shall yield the right of way to any vehicle or bicycle approaching from the opposite direction.

(h) When a motor vehicle and a bicycle are traveling in the same direction on any roadway, the operator of the motor vehicle overtaking such bicycle traveling on the right side of the roadway shall not turn to the right in front of the bicycle at that intersection or at any alley or driveway until such vehicle has overtaken and is safely clear of the bicycle.

(i) Whenever, by reason of the location of a bus stop, it is necessary for the operator of a bus to proceed straight through in a lane marked for a compulsory turn or whenever the operator of any vehicle which because of its length or turning radius cannot comply with the foregoing, or who deviates from them as provided in Section 506-85, it shall be the duty of the operator to first ascertain that such movement can be made with safety and without interfering with traffic.

(C.O. 506-84; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. 506-84, eff. Jan. 1, 1972; a. Ord. No. 224-1972, eff. May 24, 1972; a. Ord. No. 241-2010, § 5, eff. July 23, 2010)

Cross reference—Penalty, §§ 512-1, 512-7.

State law reference—See ORC 4511.36.

Sec. 506-85. Motor Bus Turns.

At the intersections designated in Sections 506-85-A through 506-85-E, a left hand turn from a right-hand lane may be made as follows by a motor bus after stopping to take on or discharge passengers.

The bus will advance on the green light from its position in the bus stop along a line parallel to the center of the street on which the bus stop is located, until the head of the bus has entered the intersecting street. When the head of the bus is in the intersection, the bus will stop until the amber light following the green appears, and will continue its movement, making the left-hand turn with caution.

(C.O. 506-85; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. 506-85, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-1, 512-7.

Sec. 506-85-A. North on Broadway to West on Fourth Street.

(C.O. 506-85a; renumbered to C.M.C. 506-85-A, eff. Jan. 1, 1972)

Sec. 506-85-B. South on Race Street to East on Seventh Street.

(C.O. 506-85c; renumbered to C.M.C. 506-85-B, eff. Jan. 1, 1972)

Sec. 506-85-C. West on Eighth Street to South on Walnut Street.

(C.O. 506-85e; renumbered to C.M.C. 506-85-C, eff. Jan. 1, 1972)

Sec. 506-85-D. South on Race Street to East on Fifth Street.

(C.O. 506-85j; renumbered to C.M.C. 506-85-D, eff. Jan. 1, 1972)

Sec. 506-85-E. North on Elm Street to West on Eighth Street.

(C.O. 506-85k renumbered to C.M.C. 506-85-E, eff. Jan. 1, 1972)

Sec. 506-86. Repealed.

(C.O. 506-86; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. 506-86, eff. Jan. 1, 1972; r. Ord. No. 241-2010, § 9, eff. July 23, 2010)

Cross reference—Penalty, §§ 512-1, 512-7.
State law reference—See ORC 4511.42.

Sec. 506-87. Turns in the Business District.

No person, within a business district, shall turn any vehicle so as to proceed in the opposite direction except where the left turn from the same direction is permitted and where a continuous center divider exists 100 feet or more in length.

No vehicle shall be turned so as to proceed in the opposite direction upon any curve, or upon the approach to, or near the crest of a grade, where such vehicle cannot be seen by the driver of any other vehicle approaching from either direction within 500 feet, or at any other location unless such movement can be made in safety and without backing or otherwise interfering with traffic.

(C.O. 506-87; reordained as C.M.C. 506-87, eff. Jan. 1, 1972; a. Ord. No. 500-1989, eff. Dec. 20,1989)

Cross reference—Penalty, §§ 512-1, 512-7.
State law reference—See ORC 4511.37.

Sec. 506-88. Repealed.

(C.O. 506-88; a. Ord. No. 101-1999, eff. March 24, 1999; r. Ord. No. 344-2000, eff. Sept. 27, 2000)

Sec. 506-91. Street Fetes.

With the consent of the owner or occupants of the abutting property, the city manager or person designated by the city manager may, where the public travel will not be greatly interfered with thereby, close any highway or portion thereof to vehicular traffic and permit the holding thereon of fetes, bazaars or similar events for religious, charitable, civic, patriotic, or fraternal purposes.

No person shall drive any vehicle upon any highway or portion thereof closed to traffic pursuant to this section while such highway or portion thereof is so closed.

No person shall conduct a street fete unless that person pays a non-refundable application fee in the amount of $25.00.

(C.O. 506-92a; renumbered to C.M.C. 506-91, eff. Jan. 1, 1972; a. Ord. No, 418-1978, eff. Nov. 4, 1978; Emer. Ord. No. 116-2014, § 15, eff. July 1, 2014)

Cross reference—Penalty, §§ 512-1, 512-7.

Sec. 506-92. Play Streets.

The city manager or person designated by the city manager, or the director of safety when authorized by the city manager, shall have the authority in cases and during hours when public travel will not be greatly interfered with thereby, to close any highway or portion thereof to vehicular traffic, except that requiring access to or egress from premises not accessible except by such highway. Such authority shall be exercised only in cases where it is necessary or expedient to do so in order to provide safe places in which the children or residents of the neighborhood may play, and such play streets shall be properly marked while so restricted.

No person shall drive any vehicle upon such restricted highway while it is so restricted, except as permitted by this section.
(C.O. 506-92; renumbered to C.M.C. 506-92, eff. Jan. 1, 1972; a. Ord. No. 332-1973; eff. July 5, 1973; a. Ord. No. 418-1978, eff. Nov. 4, 1978)
Cross reference—Penalty, §§ 512-1, 512-7.

Sec. 506-93. Quiet Zones.

The city manager or person designated by the city manager may designate zones of quiet upon any highway within 250 feet of any hospital, school, court, church, mental health institution, or other like institution.

When any such zone is so designated by official traffic signs, no person therein shall blow a horn or a whistle or make or cause any outcry or any avoidable noise or clamor likely to disturb persons within such zone.
(C.O. 506-93; reordained as C.M.C. 506-93, eff. Jan. 1, 1972; a. Ord. No. 418-1978, eff. Nov. 4, 1978; a. Ord. No. 287-23, § 1, eff. August 2, 2023)
Cross reference—Penalty, §§ 512-1, 512-7.

Sec. 506-94. Court House Quiet Zone.

The streets bounding the county court house, to wit: Main Street from court Street to Central Parkway, Central Parkway from Main Street to Sycamore Street, Sycamore Street from Central Parkway to Court Street, and Court Street from Sycamore Street to Main Street, shall be a zone of quiet.

No person on any of the streets within such limits shall blow a horn or whistle, or make or cause any outcry or any avoidable noise or clamor likely to disturb the peace and quiet of the rooms in which courts are being held.
(C.O. 506-94; reordained as C.M.C. 506-94, eff. Jan. 1, 1972)
Cross reference—Penalty, §§ 512-1, 512-7.

Sec. 506-97. Unnecessary Horn-Blowing.

No person shall sound any signaling device except when reasonably necessary for the prevention of an accident.
(C.O. 506-97; reordained as C.M.C. 506-97, eff. Jan. 1, 1972)
Cross reference—Penalty, §§ 512-1, 512-7.

Sec. 506-98. Sending, Reading or Writing a Text Message or Accessing the Internet While Driving.

(a) As used in this section:

(1) "Text message" means a message sent, stored or received via a mobile communication device. For purposes of this section, an e-mail message shall be considered a text message.

(2) "Mobile communication device" means any portable electronic device capable of transmitting or receiving data in the form of a text message or capable of accessing the internet, including but not limited to a wireless telephone, a text-messaging device, a personal digital assistant, or a personal computer.

(b) No person shall operate a motor vehicle while using a mobile communication device to:

(1) Compose, send or read a text message; or

(2) Send, read, create, play or interact with internet-based content.

(c) Notwithstanding the provisions of division (b), this section shall not be construed to prohibit the use of a mobile communication device inside a motor vehicle by:

(1) A driver using a mobile communication device to report a health or safety emergency; or

(2) A driver using a mobile communication device or inputting data into a navigational system while the motor vehicle is parked, standing, or stopped and is removed from the flow of traffic, in accordance with applicable laws, or is stopped due to the inoperability of such vehicle; or

(3) A driver using a mobile communication device in the course of the driver's duties while operating an emergency or public safety vehicle; or

(4) A driver receiving data from a permanently installed or hands free navigational system. A driver may only input data into a navigational system in accordance with subsection (2) herein.

(d) Whoever violates this section is guilty of a minor misdemeanor.

(Ordained by Ord. No. 336-2010, § 1, eff. Oct. 9, 2010)

Chapter 507

ONE-WAY STREETS*

Sec. 507-1. One-Way Streets and Alleys.
Sec. 507-1-A. Adnored Court, north from Leroy Court to Glencoe Place.
Sec. 507-1-A1. Ahrens Street, South from St. Clair Street to Rochelle Street.
Sec. 507-1-A2. Alden Alley, east from Main Street to Sycamore Street.
Sec. 507-1-A3. Altoona Street, west from Walter Avenue to Kerper Avenue.
Sec. 507-1-A4. Ambrose Avenue, east from Hamilton Avenue to Lantana.
Sec. 507-1-A5. Augusta Street, west from Central Avenue to Smith Street.
Sec. 507-1-A6. Allston Street, north from Madison Road to Minot Avenue.
Sec. 507-1-B. Baum Street, east from Monastery Street to Oregon Street.
Sec. 507-1-B1. Beekman Street, North from Harrison Avenue to Queen City Avenue.
Sec. 507-1-B2. Belvedere Street, north from Pavilion Street to Hatch Street.
Sec. 507-1-B3. Berning Place, north from 50 feet south of Fourth Street to Fourth Street.
Sec. 507-1-B4. Bowen Street, north from Seventh Street to Central Parkway.
Sec. 507-1-B5. Braxton Campbell Court, south from Beresrord Avenue to Rammelsburg Street.
Sec. 507-1-B6. Broadway Street, north from Fifth Street to Thirteenth Street.
Sec. 507-1-B7. Buena Vista Place, east from Kerper Avenue to Walter Avenue.
Sec. 507-1-B8. Burgoyne Street, west from Spring Grove Avenue to Colerain Avenue.
Sec. 507-1-B9. Burlington Place, south from Hopple Street to Spring Grove Avenue.
Sec. 507-1-B10. Burr Oak Street one way north from East Epworth and east to Chickering Avenue.
Sec. 507-1-B11. Bains Place, South from Columbia Parkway to Eastern Avenue.
Sec. 507-1-B12. Brookside Avenue, north from Chase Avenue to Pullan Avenue.
Sec. 507-1-B13. Back Street, northwest from Walnut Street to Hamer Street.
Sec. 507-1-C. Calhoun Street, west from Vine Street to Clifton Avenue.
Sec. 507-1-C1. Carney Street, north from Fort View Place to Hatch Street.
Sec. 507-1-C2. Carrel Street, south from Eastern Avenue to Dumont Street.
Sec. 507-1-C3. Central Avenue, north from Sixth Street to Ninth Street, and from Court Street to Ezzard Charles Drive.
Sec. 507-1-C4. Church Place, north from Beechmont Avenue to Linwood Road.
Sec. 507-1-C5. Clay Street, south from Wilkymacky Alley to Central Parkway.
Sec. 507-1-C6. Colerain Avenue, south from Brighton Lane to Bank Street.
Sec. 507-1-C7. College Street, south from Seventh Street to Sixth Street.
Sec. 507-1-C8. Concordia Street, south from Melish Avenue to Lincoln Avenue.
Sec. 507-1-C9. Charles Street, east from Central Parkway to Elm Street.
Sec. 507-1-C10. Cosby Street, west from Spring Grove Avenue to Hamilton Avenue.
Sec. 507-1-C11. Curtis Street, east from Gilbert Avenue to Kemper Lane.
Sec. 507-1-C12. Cypress Street, east from Ashland to Upland Place.
Sec. 507-1-C13. Charlotte Street, west from Linn Street to Baymiller Street.
Sec. 507-1-C14. Repealed.
Sec. 507-1-C15. Court Street, east from Main Street to Sycamore Street.
Sec. 507-1-C16. Chestnut Street, west from Central Avenue to Mound Street.
Sec. 507-1-D. Dautel Avenue, east from Harrison Avenue to Faber Avenue.
Sec. 507-1-D1. Delhi Avenue, west from River Road to Fairbanks Avenue.
Sec. 507-1-D2. Deronda Court, south from Glencoe Place to Leroy Court.
Sec. 507-1-D3. DeSales Lane, east from Woodburn Avenue to Fairfield Avenue.
Sec. 507-1-D4. Dhonau Street, east from Colerain Avenue to Spring Grove Avenue.

*__Cross reference—__Streets and sidewalks, establishment and maintenance, ch. 721.

Sec. 507-1-D5. Delta Avenue, south from Kellogg Avenue to Humbert Avenue.
Sec. 507-1-D6. Dalewood Place, east from Phantom Avenue to Rhode Island Avenue.
Sec. 507-1-E. East Cheapside Street, north from Eighth Street to Ninth Street.
Sec. 507-1-E1. Eighth Street, west from Broadway to Walnut Street; west from Elm Street to Plum Street.
Sec. 507-1-E2. Elkins Alley, east from Race Street to Vine Street.
Sec. 507-1-E3. Elm Street, north from Third Street to McMicken Street.
Sec. 507-1-E4. Elmore Street, west from Spring Grove Avenue to Colerain Avenue.
Sec. 507-1-E5. Eton Place, east from Central Parkway to Dunlap Street.
Sec. 507-1-E6. Essex Place, south from William Howard Taft Road to McMillan Street.
Sec. 507-1-E7. Elder Street, east from Race Street to Vine Street.
Sec. 507-1-E8. Repealed.
Sec. 507-1-E9. Ebersole Avenue, north of Madison Road to Chandler Street.
Sec. 507-1-E10. Eggleston Avenue, south from Central Parkway to Broadway.
Sec. 507-1-E11. East Millvale Circle, north of Millvale Court to West Millvale Circle.
Sec. 507-1-E12. Elberon Avenue north from Briever Avenue to Glenway Avenue.
Sec. 507-1-E13. East Twelfth Street, eastbound from Sycamore Street to Broadway.
Sec. 507-1-F. Fifteenth Street, west from Walnut Street to Central Parkway.
Sec. 507-1-F1. Fifth Street, east from Central Avenue to Pike Street.
Sec. 507-1-F2. Fourteenth Street, east from Central Avenue to Central Parkway and from Elm Street to Main Street.
Sec. 507-1-F3. Fourth Street, west from Pike Street to Central Avenue.
Sec. 507-1-F4. Fuller Street, south from Hatch Street to Pavilion Street.
Sec. 507-1-F5. Findlay Street, west from Vine Street to Race Street.
Sec. 507-1-F6. Fairbanks Avenue, south from Warsaw Avenue to Price Avenue.
Sec. 507-1-F7. Feemster Street, from Stites Avenue to McCullough Street.
Sec. 507-1-G2. Glencoe Place, west from Adnored Court to Deronda Court.
Sec. 507-1-G3. Glendora Avenue, south from University Avenue to Corry Street.
Sec. 507-1-G4. Government Place, east from Walnut Street to Main Street.
Sec. 507-1-G5. Gregson Place, east from Edwards Road to Michigan Avenue.
Sec. 507-1-G6. Repealed.
Sec. 507-1-G7. Gilbert Avenue Viaduct, west from Seventh Street Ramp to Broadway.
Sec. 507-1-G8. Garden Lane, west from Rhode Island Avenue to Phantom Avenue.
Sec. 507-1-G9. Gano Street, east from Vine Street to Walnut Street.
Sec. 507-1-H. Hackberry Street, north from McMillan Street to Madison Road.
Sec. 507-1-H1. Hartman Street, east from Sedam Street to Delhi Avenue.
Sec. 507-1-H2. Hatch Street, west from Carney Street to Wareham Drive.
Sec. 507-1-H3. Hobart Avenue, west from Brookside Avenue to Hamilton Avenue.
Sec. 507-1-H4. Hoffner Street west from Hamilton Avenue to Apple Street.
Sec. 507-1-H5. Home Street, south from Fifth Street to Fourth Street.
Sec. 507-1-H6. Hutchins Avenue, east from Reading Road to Magill Avenue.
Sec. 507-1-H7. Hope Lane, west from Koenig Avenue to Epworth Avenue.
Sec. 507-1-H8. Hamer Street, north from Hubert Street to East Elder Street.
Sec. 507-1-I. Islington Avenue, west from Watterson Avenue to LaCrosse Avenue.
Sec. 507-1-I1. Iroll Avenue, north from McHenry Road to Baltimore Avenue.
Sec. 507-1-J. Jackson Street, north from Central Parkway to Twelfth Street.
Sec. 507-1-J1. Jail Alley, east from Main Street to Sycamore Street.
Sec. 507-1-J2. John Street, south from Clark Street to Court Street.
Sec. 507-1-J3. Jamestown Street, west from Rosemont Avenue to Rutledge Street.

Sec. 507-1-J4. Jester Street, east from Gordon Street to Pitts Street.
Sec. 507-1-J5. Joyce Lane, west from Seymour Avenue to Seymour Avenue.
Sec. 507-1-K. Kemper Lane, north from Eastern Avenue to Columbia Parkway.
Sec. 507-1-K1. Kinsey Avenue, east from Auburn Avenue to Paris Street.
Sec. 507-1-K3. Kilgour Street, west from Oregon Street to Monastery Street.
Sec. 507-1-L. Laredo Street, south from McMillan Street to Cypress Street.
Sec. 507-1-L1. Leroy Court, east from Deronda Court to Adnored Court.
Sec. 507-1-L2. Lodge Alley, north from Sixth Street to Seventh Street.
Sec. 507-1-L3. Lodwick Street, west from Delhi Avenue to Sedam Street.
Sec. 507-1-L4. Logan Street, south from Findlay Street to Liberty Street.
Sec. 507-1-L5. Lytle Street, north and east from Third Street to Pike Street.
Sec. 507-1-L6. Lebanon Street, south from 73rd Street to 72nd Street.
Sec. 507-1-L7. Louden Street, south from Paradome Street to Hatch Street.
Sec. 507-1-L8. Leyman Drive, west from Red Bud Avenue to Clinton Springs Avenue.
Sec. 507-1-L9. Livingston Street, east from Freeman Avenue to Baymiller Street.
Sec. 507-1-L10. Lawn Avenue, west from Rhode Island Avenue to Phantom Avenue.
Sec. 507-1-M. Magill Avenue, north from Hutchins Avenue to Lexington Avenue.
Sec. 507-1-M1. Meeker Street north from Hopple Street to Avon Place.
Sec. 507-1-M2. Mathis Street, north from Erie Avenue to Madison Road.
Sec. 507-1-M3. May Street, north from McMillan Street to William Howard Taft Road.
Sec. 507-1-M4. McMillan Street, east from Clifton Avenue to the I-71 northbound on-ramp.
Sec. 507-1-M5. Mercer Street, west from Walnut Street to Vine Street.
Sec. 507-1-M6. Merrimac Avenue, west from Woodburn Avenue to Durrell Avenue.
Sec. 507-1-M7. Minion Avenue, south from Latham Avenue to West Liberty Street.
Sec. 507-1-M8. Moorman Avenue, south from Clayton Street to McMillan Street.
Sec. 507-1-M9. Morrow Street, west from Beechmont Avenue to Sutton Avenue.
Sec. 507-1-M10. Motor Lane, east from Harrison Avenue to Higbee Street.
Sec. 507-1-M11. Mulberry Street, southeast from Vine Street to Loth Street.
Sec. 507-1-M12. Minnesota Street, east from Reading Road to Essex Place.
Sec. 507-1-M13. Maplepark Avenue, north from Wasson Road to Madison Road.
Sec. 507-1-M14. Morris Place, west from Donham Avenue to Stanley Avenue.
Sec. 507-1-N. New Street, east from Broadway to Culvert Street.
Sec. 507-1-N1. Ninth Street, west from Eggleston Avenue to Mound Street.
Sec. 507-1-N2. North Bend Road (Old North Bend Road), west from North Bend Road to Kirby Road, and east from Kirby Road to North Bend Road.
Sec. 507-1-N3. North Clerose Circle from South Clerose Circle west to Rosemont Avenue.
Sec. 507-1-O. O'Bryon Street, north from Madison Road to Pogue Avenue.
Sec. 507-1-O1. Ogden Place, west from Vine Street to Race Street.
Sec. 507-1-O2. Oregon Street, east from Monastery Street to Baum Street.
Sec. 507-1-O3. Ormond Avenue, south from Ludlow Avenue to Howell Avenue.
Sec. 507-1-O4. Repealed.
Sec. 507-1-P. Pancoast Alley, north from Alden Alley to Ninth Street south from Alden Alley to Eighth Street.
Sec. 507-1-P1. Pape Avenue, west bound from Brentwood Avenue to Pinehurst Avenue.
Sec. 507-1-P2. Paradrome Street, east from Louden Street to Martin Drive.
Sec. 507-1-P3. Pavilion Street, east from St. Gregory Street to Carney Street.
Sec. 507-1-P4. Perry Street, west from Plum Street to Central Avenue.
Sec. 507-1-P5. Pike Street, south from Fifth Street to Fourth Street.

Sec. 507-1-P6. Plainville Road, southeast from Madison Road to Camargo Pike.
Sec. 507-1-P7. Pleasant Street, north from Fourteenth Street to Green Street, south from Elder Street to Green Street.
Sec. 507-1-P8. Plum Street, south from Central Parkway to Sixth Street, and from Fifth Street to Mehring Way.
Sec. 507-1-P9. Prentice Street, east from Ward Street to Mathis Street.
Sec. 507-1-P10. Prescott Street, west from Meridian Street to Revere Avenue.
Sec. 507-1-P11. Prosperity Place, east from Glenway Avenue to Ferguson Road.
Sec. 507-1-P13. Pomona Court, west from Cleinview Avenue to Hackberry Street.
Sec. 507-1-P14. Postal Alley, south from Fifth Street to Fourth Street.
Sec. 507-1-P15. Powers Street, east from Colerain Avenue to Spring Grove Avenue.
Sec. 507-1-P16. Pauling Place, north from Cuts Alley to East Sixth Street.
Sec. 507-1-Q. Queen City Avenue, west from Beekman Street to Westwood Avenue.
Sec. 507-1-R. Race Street, south from McMicken Street to Third Street.
Sec. 507-1-R1. Rammelsburg Street, east from Braxton Campbell Court to Mathers Street.
Sec. 507-1-R2. Reading Road, west from Broadway to Main Street.
Sec. 507-1-R3. Republic Street, south from Elder Street to Twelfth Street, north from Elder Street to sixty feet south of Findlay Street.
Sec. 507-1-R4. Rosemont Avenue, north from Glenway Avenue to Liberty Street.
Sec. 507-1-R5. Rusconi Place, south from Shillito Place to Sixth Street.
Sec. 507-1-R8. Romana Place, east from Eileen Drive to Madison Road.
Sec. 507-1-R9. Red Bud Place, west from Red Bud Avenue to Rose Hill Avenue.
Sec. 507-1-S1. Seventh Street, east from John Street to Culvert Street.
Sec. 507-1-S2. Seventh Street Ramp, east from Broadway to Gilbert Avenue.
Sec. 507-1-S3. Shillito Place, west from Race Street to Rusconi Place.
Sec. 507-1-S4. Shiloh Street, west from Telford Street to Middleton Avenue.
Sec. 507-1-S5. Schorr Alley, south from McMillan Street to Warner Street.
Sec. 507-1-S6. Sixth Street, west from Sentinel Street to Central Avenue.
Sec. 507-1-S7. St. John's Place, south from Erie Avenue to Observatory Road.
Sec. 507-1-S8. Sycamore Street, south from Central Parkway to Third Street.
Sec. 507-1-S9. St. Gregory Street, south from Hatch Street to Hill Street.
Sec. 507-1-S10. Seegar Avenue, north from Vinton Street to Baltimore Avenue.
Sec. 507-1-S11. St. Paul Drive, west from Eden Park Drive to Alpine Park.
Sec. 507-1-S12. St. Paul Place, north from Pavillion Street to Monastery Street.
Sec. 507-1-S13. South Clerose Circle east from Rosemont Avenue to North Clerose Circle.
Sec. 507-1-S14. Sunset Lane, south/westbound from Sunset Avenue near Queen City Avenue to Sunset Avenue near Guerley Road.
Sec. 507-1-T. William Howard Taft Road, west from May Street to Vine Street.
Sec. 507-1-T1. Telford Street, north from Ludlow Avenue to Shiloh Street.
Sec. 507-1-T2. Third Street, east from Elm Street to Broadway.
Sec. 507-1-T3. Thirteenth Street, west from Reading Road to Main Street.
Sec. 507-1-T4. Twelfth Street, east from Main Street to Sycamore Street, and from Broadway to Reading Road.
Sec. 507-1-T5. Thorp Alley, east from Vine Street to Race Street.
Sec. 507-1-T6. Trevor Place, south from Baltimore Avenue to Vinton Street.
Sec. 507-1-V. Vandalia Avenue, west from Hamilton Avenue to Gulow Street.
Sec. 507-1-V1. Vine Street, north from Third Street to Central Avenue.
Sec. 507-1-V2. Van Street, south from University Avenue to Charleton Street.
Sec. 507-1-V3. Vinton Street, west from Trevor Place to Seegar Avenue.
Sec. 507-1-W. Wade Street, west from Western Avenue to Dalton Avenue.
Sec. 507-1-W1. Willard Avenue west from Madison Road to Edwards Road.
Sec. 507-1-W2. Ward Street, south from Madison Road to Prentice Street.
Sec. 507-1-W3. West Cheapside Street, south from Ninth Street to Eighth Street.

Sec. 507-1-W4. Western Avenue, south from Bank Street to Gest Street.
Sec. 507-1-W5. Wilmink Street, east from Partridge Place to Linn Street.
Sec. 507-1-W6. Wilstach Street, east from Dalton Avenue to Western Avenue.
Sec. 507-1-W7. Winchell Avenue, north from Lincoln Park Drive to 125 feet north of Bank Street.
Sec. 507-1-W8. Repealed.
Sec. 507-1-W9. Wyoming Avenue, north from West Liberty Street to Latham Avenue.
Sec. 507-1-W10. Westwood Avenue, east from Queen City Avenue to Harrison Avenue.
Sec. 507-1-W11. West Fork Road, west from Montana Avenue to Baltimore Avenue.
Sec. 507-1-W12. Warwick Avenue, north from Clinton Springs Avenue to Mitchell Avenue.
Sec. 507-1-W13. West Hollister Street, west from Vine Street to West McMillan Street.
Sec. 507-1-W14. Weber Lane, east from Rosemont Avenue to Gilsey Avenue.
Sec. 507-1-W15. Walter Avenue, north from Buena Vista Place to Altoona Street.
Sec. 507-1-W16. Worth Street, north from Humbert Avenue to Eastern Avenue.
Sec. 507-1-W17. West Millvale Circle, south from East Millvale Circle to Millvale Court.
Sec. 507-1-W18. Wilmer Court, south from Beechmont Circle to Wilmer Avenue.
Sec. 507-1-W19. Woodward Street, from Main Street to Hanover Street.
Sec. 507-1-Y. Hanover Street, from Woodward Street to 13th Street.
Sec. 507-3. Two-Way Streets, Width Less Than Sixteen Feet.
Sec. 507-4. Contra-Flow and Limited Access Lanes.

Sec. 507-1. One-Way Streets and Alleys.

Except as otherwise provided in this section and the sections hereunder, all streets and alleys having a roadway width of 16 feet or more shall be two-way streets. Except as otherwise provided in Sections 507-3 and 507-4, all streets and alleys having a roadway width of less than 16 feet whose general direction is east and west shall be one-way west, and all such streets and alleys whose general direction is north and south shall be one-way north. All one-way roadways 16 feet or more in width shall be designated by suitable direction signs at each intersection. One-way streets and alleys less than 16 feet in width shall be provided with direction signs where their direction varies from the general direction for one-way streets and alleys. The streets and alleys specified in this chapter shall be one-way streets in the direction indicated.

No person shall operate a vehicle on a one-way street or alley except in the direction indicated therefor.

(C.O. 507; renumbered to C.M.C. 507-1, eff. Jan. 1, 1972; a. Emer. Ord. No. 392-2024, § 2, eff. Nov. 20, 2024)

Cross reference—Penalty, §§ 512-1, 512-7.

Sec. 507-1-A. Adnored Court, north from Leroy Court to Glencoe Place.

(C.O. 507-a4; renumbered to C.M.C. 507-1-A, eff. Jan. 1, 1972)

Sec. 507-1-A1. Ahrens Street, South from St. Clair Street to Rochelle Street.

(Sec. 507-a5; ordained by Ord. No. 391-1967, eff. Nov. 10, 1967; renumbered to C.M.C. 507-1-A1, eff. Jan. 1, 1972)

Sec. 507-1-A2. Alden Alley, east from Main Street to Sycamore Street.

(C.O. 507-a3; renumbered to C.M.C. 507-1-A2, eff. Jan. 1, 1972)

Sec. 507-1-A3. Altoona Street, west from Walter Avenue to Kerper Avenue.

(C.O. 507-a2; a. Ord. No. 53-1960, eff. Mar. 11, 1960; renumbered to C.M.C. 507-1-A3, eff. Jan. 1, 1972; a. Ord. No. 107-1996, eff. Apr. 10, 1996)

Sec. 507-1-A4. Ambrose Avenue, east from Hamilton Avenue to Lantana.

(Ordained by Ord. No. 285-2001, eff. Sept. 6, 2001)

Sec. 507-1-A5. Augusta Street, west from Central Avenue to Smith Street.

(C.O. 507-a1; renumbered to C.M.C., 507-1-A4, eff. Jan. 1, 1972)

Sec. 507-1-A6. Allston Street, north from Madison Road to Minot Avenue.

(Ordained by Ord. No. 369-2008, eff. Dec. 5, 2008)

Sec. 507-1-B. Baum Street, east from Monastery Street to Oregon Street.

(Sec. 507-b11; ordained by Ord. No. 21-1964, eff. Feb. 14, 1964; renumbered to C.M.C., 507-1-B, eff. Jan. 1, 1972; a. Ord. No. 182-1999, eff. June 11, 1999)

Sec. 507-1-B1. Beekman Street, North from Harrison Avenue to Queen City Avenue.

(Sec. 507-b2; ordained by Ord. No. 290-1970, eff. Oct. 16, 1970; renumbered to C.M.C. 507-1-B1, eff. Jan. 1, 1972)

Sec. 507-1-B2. Belvedere Street, north from Pavilion Street to Hatch Street.

(C.O. 507-b6; renumbered to C.M.C. 507-1-B2, eff. Jan. 1, 1972)

Sec. 507-1-B3. Berning Place, north from 50 feet south of Fourth Street to Fourth Street.

(Sec. 507-b7; ordained by Ord. No. 401-1967, eff. Nov. 22, 1967; a. Ord. No. 392-1963, eff. Dec. 14, 1963; renumbered to C.M.C. 507-1-B3, eff. Jan. 1, 1972)

Sec. 507-1-B4. Bowen Street, north from Seventh Street to Central Parkway.

(C.O. 507-b1; renumbered to C.M.C. 507-1-B4, off. Jan. 1, 1972)

Sec. 507-1-B5. Braxton Campbell Court, south from Beresrord Avenue to Rammelsburg Street.

(Sec. 507-b8; ordained by Ord. No. 44-1958, eff. Mar. 21, 1958; renumbered to C.M.C. 507-1-B5; eff. Jan. 1, 1972)

Sec. 507-1-B6. Broadway Street, north from Fifth Street to Thirteenth Street.

(C.O. 507-b6; a. Ord. No. 43-1968, eff. Mar. 1, 1968; a. Ord. No. 146-1970, eff. June 19, 1970; renumbered to C.M.C. 507-1-B6, eff. Jan. 1, 1972; a. Ord. No. 507-1-B6, § 1, eff. Nov. 24, 2012)

Sec. 507-1-B7. Buena Vista Place, east from Kerper Avenue to Walter Avenue.

(C.O. 507-b4; renumbered to C.M.C. 507-1-B7, eff. Jan. 1, 1972)

Sec. 507-1-B8. Burgoyne Street, west from Spring Grove Avenue to Colerain Avenue.

(Sec. 507-b9; ordained by Ord. No. 333-1969, eff. Oct. 30, 1969; renumbered to C.M.C. 507-1-B8, eff. Jan. 1, 1972)

Sec. 507-1-B9. Burlington Place, south from Hopple Street to Spring Grove Avenue.

(Sec. 507-b10; ordained by Ord. No. 131-1960, eff. May 6, 1960, renumbered to C.M.C. 507-1-B9, eff. Jan. 1, 1972)

Sec. 507-1-B10. Burr Oak Street one way north from East Epworth and east to Chickering Avenue.

(Sec. 507-b12; ordained by Ord. No. 279-1970, eff. Oct. 10, 1970; renumbered to C.M.C. 507-1-B10, eff. Jan. 1, 1972; a Ord. No. 112-1998, eff. May 1, 1998)

Sec. 507-1-B11. Bains Place, South from Columbia Parkway to Eastern Avenue.

(C.M.C. 507-1-B11; ordained by Ord. No. 561-1975, eff. Dec. 26, 1975)

Sec. 507-1-B12. Brookside Avenue, north from Chase Avenue to Pullan Avenue.

(C.M.C. 507-1-B12; ordained by Ord. No. 195-1976, eff. June 11, 1976)

Sec. 507-1-B13. Back Street, northwest from Walnut Street to Hamer Street.

(Ordained by Ord. No. 119-2010, § 1, eff. May 14, 2010)

Sec. 507-1-C. Calhoun Street, west from Vine Street to Clifton Avenue.

(Sec. 507-c2; ordained by Ord. No. 397-1968, eff. Oct. 9, 1968; a. Ord. No. 443-1968, eff. Nov. 17, 1968; renumbered to C.M.C. 507-1-C, eff. Jan. 1, 1972)

Sec. 507-1-C1. Carney Street, north from Fort View Place to Hatch Street.

(C.O. 507-c11; renumbered to C.M.C. 507-1-C1, eff. Jan. 1, 1972)

Sec. 507-1-C2. Carrel Street, south from Eastern Avenue to Dumont Street.

(C.O. 507-c10; renumbered to C.M.C. 507-1-C2, eff. Jan. 1, 1972)

Sec. 507-1-C3. Central Avenue, north from Sixth Street to Ninth Street, and from Court Street to Ezzard Charles Drive.

(Sec. 507-c12; ordained by Ord. No. 146-1970, eff. June 19, 1970; renumbered to 507-c1 by Ord. No. 290-1970, eff. Oct. 16, 1970; renumbered to C.M.C. 507-1-C3, eff. Jan. 1, 1972; a. Ord. No. 38-1975, eff. Feb. 21, 1975; a. Ord. No. 382-1983, eff. Sept. 2, 1983; a. Ord. No. 163-1998, eff. May 2, 1998)

Sec. 507-1-C4. Church Place, north from Beechmont Avenue to Linwood Road.

(Sec. 507-c13; ordained by Ord. No. 290-1970, eff. Oct. 16, 1970; renumbered to C.M.C. 507-1-C4, eff. Jan. 1, 1972)

Sec. 507-1-C5. Clay Street, south from Wilkymacky Alley to Central Parkway.

(C.O. 507-c9; renumbered to C.M.C. 507-1-C5, eff. Jan. 1, 1972)

Sec. 507-1-C6. Colerain Avenue, south from Brighton Lane to Bank Street.

(C.O. 507-c8; a. Ord. No. 33-1962, eff. Mar. 2, 1962; renumbered to C.M.C. 507-1-C6, eff. Jan. 1, 1972)

Sec. 507-1-C7. College Street, south from Seventh Street to Sixth Street.

(Sec. 507-c12; ordained by Ord. No. 217-1966, eff. July 22, 1966; renumbered to C.M.C. 507-1-C7, eff. Jan. 1, 1972)

Sec. 507-1-C8. Concordia Street, south from Melish Avenue to Lincoln Avenue.

(C.O. 507-c3; renumbered to C.M.C. 507-1-C8, eff. Jan. 1, 1972)

Sec. 507-1-C9. Charles Street, east from Central Parkway to Elm Street.

(Ordained by Emer. Ord. No. 0416-2021, § 1, eff. October 27, 2021)

Sec. 507-1-C10. Cosby Street, west from Spring Grove Avenue to Hamilton Avenue.

(C.O. 507-c6; renumbered to C.M.C. 507-1-C10, eff. Jan. 1, 1972)

Sec. 507-1-C11. Curtis Street, east from Gilbert Avenue to Kemper Lane.

(C.O. 507-c6; renumbered to C.M.C. 507-1-C11, eff. Jan. 1, 1972)

Sec. 507-1-C12. Cypress Street, east from Ashland to Upland Place.

(C.O. 507-c7; renumbered to C.M.C. 507-1-C12, eff. Jan. 1, 1972)

Sec. 507-1-C13. Charlotte Street, west from Linn Street to Baymiller Street.

(C.M.C. 507-1-C13; Ordained by Ord. No. 464-1974, eff. Dec. 6, 1974)

Sec. 507-1-C14. Repealed.

(C.M.C. 507-1-C13; ordained by Ord. No. 423-1975, eff. Oct. 4, 1975; renumbered to 507-1-C14, eff. Oct. 4, 1975; r. Ord. No. 348-1982, eff. Oct. 1, 1982)

Sec. 507-1-C15. Court Street, east from Main Street to Sycamore Street.

(Ordained by Ord. No. 415-1984, eff. Oct. 12, 1984)

Sec. 507-1-C16. Chestnut Street, west from Central Avenue to Mound Street.

(Ordained by Ord. No. 89-1986, eff. Apr. 4, 1986)

Sec. 507-1-D. Dautel Avenue, east from Harrison Avenue to Faber Avenue.

(Sec. 507-d7; ordained by Ord. No. 424-1964, eff. Nov. 20, 1964; renumbered to C.M.C. 507-1-D, eff. Jan. 1, 1972)

Sec. 507-1-D1. Delhi Avenue, west from River Road to Fairbanks Avenue.

(C.O. 507-d2; renumbered to C.M.C. 507-1-D1, eff. Jan. 1, 1972)

Sec. 507-1-D2. Deronda Court, south from Glencoe Place to Leroy Court.

(C.O. 507-d4; renumbered to C.M.C. 507-1-D2, eff. Jan. 1, 1972)

Sec. 507-1-D3. DeSales Lane, east from Woodburn Avenue to Fairfield Avenue.

(C.O. 507-d3; renumbered to C.M.C. 507-1-D3, eff. Jan. 1, 1972)

Sec. 507-1-D4. Dhonau Street, east from Colerain Avenue to Spring Grove Avenue.

(Sec. 507-d6; ordained by Ord. No. 333-1959, eff. Oct. 30, 1959; renumbered to C.M.C. 507-1-D4; eff. Jan. 1, 1972)

Sec. 507-1-D5. Delta Avenue, south from Kellogg Avenue to Humbert Avenue.

(Ordained by Ord. No. 19-1983, eff. Oct. 8, 1983)

Sec. 507-1-D6. Dalewood Place, east from Phantom Avenue to Rhode Island Avenue.

(Ordained by Ord. No. 35-1987, eff. Feb. 27, 1987)

Sec. 507-1-E. East Cheapside Street, north from Eighth Street to Ninth Street.

(C.O. 507-e3; a. Ord. No. 531-1968, eff. Jan. 17, 1969; renumbered to C.M.C. 507-1-E, eff. Jan. 1, 1972)

Sec. 507-1-E1. Eighth Street, west from Broadway to Walnut Street; west from Elm Street to Plum Street.

(C.O. 507-e5; renumbered to C.M.C. 507-1-E1, eff. Jan. 1, 1972)

Sec. 507-1-E2. Elkins Alley, east from Race Street to Vine Street.

(C.O. 507-e1; renumbered to C.M.C. 507-1-E2, eff. Jan. 1, 1972)

Sec. 507-1-E3. Elm Street, north from Third Street to McMicken Street.

(C.O. 507-e2; a. Ord. No. 42-1964, eff. Mar. 6, 1964; renumbered to C.M.C. 507-1-e3, eff. Jan. 1, 1972; a. Ord. No. 333-1973, eff. July 5, 1973)

Sec. 507-1-E4. Elmore Street, west from Spring Grove Avenue to Colerain Avenue.

(C.O. 507-E4; renumbered to C.M.C. 507-1-E4, eff. Jan. 1, 1972)

Sec. 507-1-E5. Eton Place, east from Central Parkway to Dunlap Street.

(Sec. 507-e7; ordained by Ord. No. 448-1966, eff. Jan. 6, 1967; renumbered to C.M.C. 507-1-E5, eff. Jan. 1, 1972)

Sec. 507-1-E6. Essex Place, south from William Howard Taft Road to McMillan Street.

(Sec. 507-e6; ordained by Ord. No. 264-1966, eff. June 29, 1966; renumbered to C.M.C. 507-1-E6, eff. Jan. 1, 1972)

Sec. 507-1-E7. Elder Street, east from Race Street to Vine Street.

(C.M.C. 507-1-E7; ordained by Ord. No. 205-1975, eff. June 6, 1975; a. Ord. No. 133-1988, eff. Apr. 20, 1988; a. Ord. No. 134-1998, eff. May 15, 1998)

Sec. 507-1-E8. Repealed.

(C.M.C. 507-1-E8; ordained by Ord. No. 365-1978, eff. Oct. 13, 1978; r. Ord. No. 0378-2021, § 1, eff. Sept. 22, 2021)

Sec. 507-1-E9. Ebersole Avenue, north of Madison Road to Chandler Street.

(Ordained by Ord. No. 299-1980, eff. July 2, 1980)

Sec. 507-1-E10. Eggleston Avenue, south from Central Parkway to Broadway.

(Ordained by Ord. No. 212-1984, eff. June 22, 1984)

Sec. 507-1-E11. East Millvale Circle, north of Millvale Court to West Millvale Circle.

(Ordained by Ord. No. 279-1994, eff. Aug. 8, 1994)

Sec. 507-1-E12. Elberon Avenue north from Briever Avenue to Glenway Avenue.

(Ordained by Ord. No. 0123-2009, § 1, eff. June 6, 2009)

Sec. 507-1-E13. East Twelfth Street, eastbound from Sycamore Street to Broadway.

(Ordained by Ord. No. 306-2012, § 1, eff. Sept. 1, 2012)

Sec. 507-1-F. Fifteenth Street, west from Walnut Street to Central Parkway.

(C.O. 507-f4; renumbered to C.M.C. 507-1-F, eff. Jan. 1, 1972; a. Ord. No. 0109-2024, § 1, eff. March 27, 2024)

Sec. 507-1-F1. Fifth Street, east from Central Avenue to Pike Street.

(C.O. 507-f1; a. Ord. No. 304-1959, eff. Oct. 10, 1959; a. Ord. No. 146-1970, eff. June 19, 1970; renumbered to C.M.C. 507-1-F1, eff. Jan. 1, 1972; a. Ord. No. 152-1977, eff. May 27, 1977; a. Ord. No. 211-1984, eff. June 22, 1984)

Sec. 507-1-F2. Fourteenth Street, east from Central Avenue to Central Parkway and from Elm Street to Main Street.

(C.O. 507-f3; renumbered to C.M.C. 507-1-F2, eff. Jan. 1, 1972; a. Ord. No. 451-1973, eff. Oct. 3, 1973)

Sec. 507-1-F3. Fourth Street, west from Pike Street to Central Avenue.

(C.O. 507-f2; a. Ord. No. 42-1964, off. Mar. 6, 1964; renumbered to C.M.C. 507-1-F3, eff. Jan. 1, 1972)

Sec. 507-1-F4. Fuller Street, south from Hatch Street to Pavilion Street.

(Sec. 507-f 7; ordained by Ord. No. 367-1967, eff. Oct. 13, 1967; renumbered to C.M.C. 507-1-F4; eff. Jan. 1, 1972)

Sec. 507-1-F5. Findlay Street, west from Vine Street to Race Street.

(C.M.C. 507-1-F5; ordained by Ord. No. 205-1975, eff. June 6, 1975)

Sec. 507-1-F6. Fairbanks Avenue, south from Warsaw Avenue to Price Avenue.

(Ordained by Ord. No. 367-1982, eff. Oct. 9, 1982)

Sec. 507-1-F7. Feemster Street, from Stites Avenue to McCullough Street.

(Ordained by Ord. No. 348-2018, § 1, eff. Nov. 30, 2018)

Sec. 507-1-G2. Glencoe Place, west from Adnored Court to Deronda Court.

(C.O. 507-g5; renumbered to C.M.C. 507-1-G2, eff. Jan. 1, 1972)

Sec. 507-1-G3. Glendora Avenue, south from University Avenue to Corry Street.

(Sec. 507-g9; ordained by Ord. No. 74-1961, eff. Mar. 25, 1961; renumbered to C.M.C. 507-1-G3, eff. Jan. 1, 1972)

Sec. 507-1-G4. Government Place, east from Walnut Street to Main Street.

(C.O. 507-g2; renumbered to C.M.C. 507-1-G4, eff. Jan. 1, 1972)

Sec. 507-1-G5. Gregson Place, east from Edwards Road to Michigan Avenue.

(C.O. 507-g3; renumbered to C.M.C. 507-1-G5, eff. Jan. 1, 1972)

Sec. 507-1-G6. Repealed.

(C.O. 507-g4; renumbered to C.M.C. 507-1-G6; eff. Jan. 1, 1972; repealed by Ord. No. 378-2002, eff. Jan. 10, 2003)

Sec. 507-1-G7. Gilbert Avenue Viaduct, west from Seventh Street Ramp to Broadway.

(Ordained by Ord. No. 443-1980, eff. Nov. 29, 1980)

Sec. 507-1-G8. Garden Lane, west from Rhode Island Avenue to Phantom Avenue.

(Ordained as 507-1-G7 by Ord. No. 448-1982, eff. Nov. 26, 1982)

Editor's note—As stated in the history note, Ord. No. 448-1982 added § 507-1-G7, which the editor has redesignated § 507-1-G8 since Ord. No. 443-1980 previously added § 507-1-G7.

Sec. 507-1-G9. Gano Street, east from Vine Street to Walnut Street.

(Ordained by Ord. No. 272-1984, eff. July 27, 1984)

Sec. 507-1-H. Hackberry Street, north from McMillan Street to Madison Road.

(Sec. 507-h7; ordained by Ord. No. 122-1959, eff. May 22, 1969; renumbered to C.M.C. 507-1-H, eff. Jan. 1, 1972)

Sec. 507-1-H1. Hartman Street, east from Sedam Street to Delhi Avenue.

(C.O. 507-h5; renumbered to C.M.C. 507-1-H1, eff. Jan. 1, 1972)

Sec. 507-1-H2. Hatch Street, west from Carney Street to Wareham Drive.

(Sec. 507-h8; ordained by Ord. No. 365-1969, eff. Oct. 31, 1969; renumbered to C.M.C. 507-1-H2, eff. Jan. 1, 1972)

Sec. 507-1-H3. Hobart Avenue, west from Brookside Avenue to Hamilton Avenue.

(C.O. 507-h6; renumbered to C.M.C. 507-1-H3, eff. Jan. 1, 1972)

Sec. 507-1-G8. Garden Lane, west from Rhode Island Avenue to Phantom Avenue.

(Ordained as 507-1-G7 by Ord. No. 448-1982, eff. Nov. 26, 1982)

Editor's note—As stated in the history note, Ord. No. 448-1982 added § 507-1-G7, which the editor has redesignated § 507-1-G8 since Ord. No. 443-1980 previously added § 507-1-G7.

Sec. 507-1-G9. Gano Street, east from Vine Street to Walnut Street.

(Ordained by Ord. No. 272-1984, eff. July 27, 1984)

Sec. 507-1-H. Hackberry Street, north from McMillan Street to Madison Road.

(Sec. 507-h7; ordained by Ord. No. 122-1959, eff. May 22, 1969; renumbered to C.M.C. 507-1-H, eff. Jan. 1, 1972)

Sec. 507-1-H1. Hartman Street, east from Sedam Street to Delhi Avenue.

(C.O. 507-h5; renumbered to C.M.C. 507-1-H1, eff. Jan. 1, 1972)

Sec. 507-1-H2. Hatch Street, west from Carney Street to Wareham Drive.

(Sec. 507-h8; ordained by Ord. No. 365-1969, eff. Oct. 31, 1969; renumbered to C.M.C. 507-1-H2, eff. Jan. 1, 1972)

Sec. 507-1-H3. Hobart Avenue, west from Brookside Avenue to Hamilton Avenue.

(C.O. 507-h6; renumbered to C.M.C. 507-1-H3, eff. Jan. 1, 1972)

Sec. 507-1-H4. Hoffner Street west from Hamilton Avenue to Apple Street.

(C.O. 507-1-H4; ordained by Ord. No. 281-1994, eff. Aug. 8, 1994)

Sec. 507-1-H5. Home Street, south from Fifth Street to Fourth Street.

(C.O. 507-h1; renumbered to C.M.C. 507-1-H4, eff. Jan. 1, 1972; renumbered to C.M.C. 507-1-H4, eff. Aug. 8, 1994)

Sec. 507-1-H6. Hutchins Avenue, east from Reading Road to Magill Avenue.

(C.O. 507-h4; renumbered to C.M.C. 507-1-H5, eff. Jan. 1, 1972; renumbered to C.M.C. 507-1-H6, eff. Aug. 8, 1994)

Sec. 507-1-H7. Hope Lane, west from Koenig Avenue to Epworth Avenue.

(Ordained by Ord. No. 248-1986, eff. July 25, 1986; renumbered to C.M.C. 507-1-H7, eff. Aug. 8, 1994)

Sec. 507-1-H8. Hamer Street, north from Hubert Street to East Elder Street.

(Ordained by Ord. No. 118-2010, § 1, eff. May 14, 2010)

Sec. 507-1-I. Islington Avenue, west from Watterson Avenue to LaCrosse Avenue.

(C.O. 507-i9; renumbered to C.M.C. 507-1-I, eff. Jan. 1, 1972)

Sec. 507-1-I1. Iroll Avenue, north from McHenry Road to Baltimore Avenue.

(C.M.C. 507-1-I1; ordained by Ord. No. 420-1975, eff. Oct. 4, 1975)

Sec. 507-1-J. Jackson Street, north from Central Parkway to Twelfth Street.

(Sec. 507-j3; ordained by Ord. No. 404-1968, eff. Dec. 5, 1958; renumbered to C.M.C. 507-1-J, eff. Jan. 1, 1972)

Sec. 507-1-J1. Jail Alley, east from Main Street to Sycamore Street.

(C.O. 507-j2; renumbered to C.M.C. 507-1-J1, eff. Jan. 1, 1972)

Sec. 507-1-J2. John Street, south from Clark Street to Court Street.

(C.O. 507-j1; 1. Ord. No. 42-1964, eff. Mar. 6, 1964; renumbered to C.M.C. 507-1-J2, eff. Jan. 1, 1972; a. Ord. No. 514-1975, eff. Nov. 28, 1975; a. Ord. No. 304-1995, eff. Oct. 20, 1995; a. Ord. No. 452-2003, eff. Dec. 17, 2003)

Sec. 507-1-J3. Jamestown Street, west from Rosemont Avenue to Rutledge Street.

(C.M.C. 507-1-J3; ordained by Ord. No. 179-1974, eff. June 7, 1974)

Sec. 507-1-J4. Jester Street, east from Gordon Street to Pitts Street.

(Sec. 507-j4; ordained by Ord. No. 307-1971, eff. Oct. 1, 1971; renumbered to C.M.C. 507-1-J4, eff. Jan. 1, 1972)

Sec. 507-1-J5. Joyce Lane, west from Seymour Avenue to Seymour Avenue.

(C.M.C. 507-1-J5; ordained by Ord. No. 128-1978, eff. May 5, 1978)

Sec. 507-1-K. Kemper Lane, north from Eastern Avenue to Columbia Parkway.

(Sec. 507-k2; ordained by Ord. No. 401-1957, eff. Nov. 15, 1957; renumbered to C.M.C. 507-1-K, eff. Jan. 1, 1972)

Sec. 507-1-K1. Kinsey Avenue, east from Auburn Avenue to Paris Street.

(C.O. 507-k1; renumbered to C.M.C. 507-1-K1, eff. Jan. 1, 1972)

Sec. 507-1-K3. Kilgour Street, west from Oregon Street to Monastery Street.

(C.O. 507-1-K3; ordained by Ord. No. 181-1999, eff. June 11, 1999)

Sec. 507-1-L. Laredo Street, south from McMillan Street to Cypress Street.

(C.O. 507-14; renumbered to C.M.C. 507-1-L, eff. Jan. 1, 1972)

Sec. 507-1-L1. Leroy Court, east from Deronda Court to Adnored Court.

(C.O. 507-16; renumbered to C.M.C. 507-1-11, eff. Jan. 1, 1972)

Sec. 507-1-L2. Lodge Alley, north from Sixth Street to Seventh Street.

(C.O. 507-11; renumbered to C.M.C. 507-1-12, eff. Jan. 1, 1972)

Sec. 507-1-L3. Lodwick Street, west from Delhi Avenue to Sedam Street.

(C.O. 507-13; renumbered to C.M.C. 507-1-13, eff. Jan. 1, 1972)

Sec. 507-1-L4. Logan Street, south from Findlay Street to Liberty Street.

(C.O. 507-12; renumbered to C.M.C. 507-1-14, eff. Jan. 1, 1972; a. Ord. No. 451-1973, eff. Oct. 3, 1973)

Sec. 507-1-L5. Lytle Street, north and east from Third Street to Pike Street.

(Sec. 507-16; ordained by Ord. No. 290-1970, eff. Oct. 16, 1970; renumbered to C.M.C. 507-1-15, eff. Jan. 1, 1972)

Sec. 507-1-L6. Lebanon Street, south from 73rd Street to 72nd Street.

(C.M.C. 507-1-16; ordained by Ord. No. 179-1972, eff. May 26, 1972)

Sec. 507-1-L7. Louden Street, south from Paradome Street to Hatch Street.

(C.M.C. 507-1-17; ordained by Ord. No. 371-1973, eff. Aug. 31, 1973)

Sec. 507-1-L8. Leyman Drive, west from Red Bud Avenue to Clinton Springs Avenue.

(C.M.C. 507-1-18; ordained by Ord. No. 465-1974, eff. Dec. 6, 1974)

Sec. 507-1-L9. Livingston Street, east from Freeman Avenue to Baymiller Street.

(Ordained by Ord. No. 37-1985, eff. Feb. 23, 1985)

Sec. 507-1-L10. Lawn Avenue, west from Rhode Island Avenue to Phantom Avenue.

(Ordained by Ord. No. 225-1985, eff. May 31, 1985)

Sec. 507-1-M. Magill Avenue, north from Hutchins Avenue to Lexington Avenue.

(C.O. 507-m4; renumbered to C.M.C. 507-1-M, eff. Jan. 1, 1972)

Sec. 507-1-M1. Meeker Street north from Hopple Street to Avon Place.

(C.O. 507-m1; a. Ord. No. 243-1960, eff. July 29, 1960; a. Ord. No. 146-1970, eff. June 20, 1970; renumbered to C.M.C. 507-1-M1, eff. Jan. 1, 1972; a. Ord. No. 399-2004, eff. Dec. 15, 2004)

Sec. 507-1-M2. Mathis Street, north from Erie Avenue to Madison Road.

(Sec. 507-m9; ordained by Ord. No. 303-1969, eff. Oct. 10. 1969; renumbered to C.M.C. 507-1-M2, eff. Jan. 1, 1972)

Sec. 507-1-M3. May Street, north from McMillan Street to William Howard Taft Road.

(Sec. 507-m12, ordained by Ord. No. 254-1966, eff. June 29, 1966; renumbered to Sec. 507-m13 by Ord. No. 127-1968, eff. Mar. 27, 1968; renumbered to C.M.C. 507-1-M3, eff. Jan. 1, 1972)

Sec. 507-1-M4. McMillan Street, east from Clifton Avenue to the I-71 northbound on-ramp.

(Sec. 507-m11; ordained by Ord. No. 254-1966, eff. June 29, 1966; a. Ord. No. 397-1968, eff. Oct. 9, 1968; a. Ord. No. 443-1968, eff. Nov. 17, 1968; renumbered to Sec. 507-m2 by Ord. No. 290-1970, eff. Oct. 16, 1970; a. Ord. No. 86-1971, eff. Apr. 9, 1971; renumbered to C.M.C. 507-1-M4, eff. Jan. 1, 1972; a. Ord. No. 364-2012, §§ 1, 3, eff. Nov.

11, 2012; a. Ord. No. 0258-2017, § 1, eff. Oct. 20, 2017; a. Ord. No. 0130-2022, §§ 2, 3, eff. May 25, 2022)

Sec. 507-1-M5. Mercer Street, west from Walnut Street to Vine Street.

(C.O. 507-m6; renumbered to C.M.C. 507-1-M5, eff. Jan. 1, 1972)

Sec. 507-1-M6. Merrimac Avenue, west from Woodburn Avenue to Durrell Avenue.

(Sec. 507-m12; ordained by Ord. No. 50-1964, eff. Mar. 13, 1964; reordained by Ord. No. 127-1968, eff. Mar. 27, 1968; renumbered to C.M.C. 507-1-M6, eff. Jan. 1, 1972)

Sec. 507-1-M7. Minion Avenue, south from Latham Avenue to West Liberty Street.

(Sec. 507-m11; ordained by Ord. No. 79-1962, eff. Apr. 20, 1962; renumbered to C.M.C. 507-1-M7, eff. Jan. 1, 1972)

Sec. 507-1-M8. Moorman Avenue, south from Clayton Street to McMillan Street.

(Sec. 507-m8; ordained by Ord. No. 122-1969, eff. May 22, 1969; renumbered to C.M.C. 507-1-M8, eff. Jan. 1, 1972)

Sec. 507-1-M9. Morrow Street, west from Beechmont Avenue to Sutton Avenue.

(C.O. 507-m6; renumbered to C.M.C. 507-1-M9, eff. Jan. 1, 1972)

Sec. 507-1-M10. Motor Lane, east from Harrison Avenue to Higbee Street.

(C.O. 507-m3; renumbered to C.M.C. 507-1-M10. eff. Jan. 1, 1972)

Sec. 507-1-M11. Mulberry Street, southeast from Vine Street to Loth Street.

(Sec. 507-m7; ordained by Ord. No. 40-1957, eff. Mar. 1, 1957; renumbered to C.M.C. 507-1-M11, eff. Jan. 1, 1972)

Sec. 507-1-M12. Minnesota Street, east from Reading Road to Essex Place.

(C.M.C. 507-1-M12; ordained by Ord. No. 18-1977, eff. Feb. 11, 1977)

Sec. 507-1-M13. Maplepark Avenue, north from Wasson Road to Madison Road.

(C.M.C. 507-1-M13; ordained by Ord. No. 466-1978, eff. Oct. 8, 1978)

Sec. 507-1-M14. Morris Place, west from Donham Avenue to Stanley Avenue.

(Ordained by Ord. No. 60-1980, eff. March 21, 1980)

Sec. 507-1-N. New Street, east from Broadway to Culvert Street.

(C.O. 507-n1; renumbered to C.M.C. 507-1-N, eff. Jan. 1, 1972)

Sec. 507-1-N1. Ninth Street, west from Eggleston Avenue to Mound Street.

(C.O. 507-n2; a. Ord. No. 42-1964, eff. Mar. 6, 1964; renumbered to C.M.C. 507-1-N1, eff. Jan. 1, 1972)

Sec. 507-1-N2. North Bend Road (Old North Bend Road), west from North Bend Road to Kirby Road, and east from Kirby Road to North Bend Road.

(C.M.C. 507-1-N2; ordained by Ord. No. 60-1978, eff. March 16, 1978)

Sec. 507-1-N3. North Clerose Circle from South Clerose Circle west to Rosemont Avenue.

(Ordained by Ord. No. 50-2003, eff. March 25, 2003)

Sec. 507-1-O. O'Bryon Street, north from Madison Road to Pogue Avenue.

(C.O. 507-o4; renumbered to C.M.C. 507-1-O, eff. Jan. 1, 1972; a. Ord. No. 68-1972, eff. Mar. 1, 1972)

Sec. 507-1-O1. Ogden Place, west from Vine Street to Race Street.

(C.O. 507-o1; renumbered to C.M.C. 507-1-O1, eff. Jan. 1, 1972)

Sec. 507-1-O2. Oregon Street, east from Monastery Street to Baum Street.

(Sec. 507-o5; ordained by Ord. No. 21-1964, eff. Feb. 14, 1964; renumbered to C.M.C. 507-1-02, eff. Jan. 1, 1972)

Sec. 507-1-O3. Ormond Avenue, south from Ludlow Avenue to Howell Avenue.

(C.M.C. 507-1-03; ordained by Ord. No. 435-1976, eff. Oct. 22, 1976)

Sec. 507-1-O4. Repealed.

(Ordained by Ord. No. 415-1983, eff. Oct. 8, 1983; repealed by Ord. No. 303-1995, eff. Oct. 20, 1995)

Sec. 507-1-P. Pancoast Alley, north from Alden Alley to Ninth Street south from Alden Alley to Eighth Street.

(C.O. 507-p6; renumbered to C.M.C. 507-1-P, eff. Jan. 1, 1972)

Sec. 507-1-P1. Pape Avenue, west bound from Brentwood Avenue to Pinehurst Avenue.

(C.O. 507-p8; renumbered to C.M.C. 507-1-P1, eff. Jan. 1, 1972)

Sec. 507-1-P2. Paradrome Street, east from Louden Street to Martin Drive.

(Sec. 507-p15; ordained by Ord. No. 365-1969, eff. Oct. 31, 1969; renumbered to 507-p10 by Ord. No. 290-1970, eff. Oct. 16, 1970; renumbered to C.M.C. 507-1-P2, eff. Jan. 1, 1972)

Sec. 507-1-P3. Pavilion Street, east from St. Gregory Street to Carney Street.

(Sec. 507-p16; ordained by Ord. No. 365-1969, eff. Oct. 31, 1969; renumbered to 507-p2 by Ord. No. 290-1970, eff. Oct. 16, 1970; renumbered to C.M.C. 507-1-P3, eff. Jan. 1, 1972)

Sec. 507-1-P4. Perry Street, west from Plum Street to Central Avenue.

(C.O. 507-p9; renumbered to C.M.C. 507-1-P4, eff. Jan. 1, 1972)

Sec. 507-1-P5. Pike Street, south from Fifth Street to Fourth Street.

(C.O. 507-p7; a. Ord. No. 146-1970, eff. June 19, 1970; renumbered to C.M.C. 507-1-P5, eff. Jan. 1, 1972)

Sec. 507-1-P6. Plainville Road, southeast from Madison Road to Camargo Pike.

(Sec. 507-p12; ordained by Ord. No. 425-1961, eff. Dec. 29, 1961; renumbered to C.M.C. 507-1-P6, eff. Jan. 1, 1972)

Sec. 507-1-P7. Pleasant Street, north from Fourteenth Street to Green Street, south from Elder Street to Green Street.

(C.O. 507-p4; also Sec. 507-p1; ordained by Ord. No. 166-1969, eff. May 30, 1969; renumbered to C.M.C. 507-1-P7, eff. Jan. 1, 1972)

Sec. 507-1-P8. Plum Street, south from Central Parkway to Sixth Street, and from Fifth Street to Mehring Way.

(C.O. 507-p6; a. Ord. No. 146-1970, eff. May 20, 1970; renumbered to C.M.C. 507-1-P8, eff. Jan. 1, 1972; a. Ord. No. 382-1983, eff. Sept. 2, 1983)

Sec. 507-1-P9. Prentice Street, east from Ward Street to Mathis Street.

(Sec. 507-P11; ordained by Ord. No. 303-1959, eff. Oct. 10, 1959; renumbered to C.M.C. 507-1-P9, eff. Jan. 1, 1972; a. Ord. No. 347-1982, eff. Oct. 1, 1982)

Sec. 507-1-P10. Prescott Street, west from Meridian Street to Revere Avenue.

(C.O. 507-p3; renumbered to C.M.C. 507-1-P10, eff. Jan. 1, 1972)

Sec. 507-1-P11. Prosperity Place, east from Glenway Avenue to Ferguson Road.

(Sec. 507-p14; ordained by Ord. No. 309-1969, eff. Sept. 5, 1969; renumbered to C.M.C. 507-1-P11, eff. Jan. 1, 1972)

Sec. 507-1-P13. Pomona Court, west from Cleinview Avenue to Hackberry Street.

(Sec. 507-p13; ordained by Ord. No. 132-1971, eff. Apr. 14, 1971 renumbered to C.M.C. 507-1-P13, off. Jan. 1, 1972)

Sec. 507-1-P14. Postal Alley, south from Fifth Street to Fourth Street.

(C.M.C. 507-1-P14; ordained by Ord. No. 68-1972, eff. Mar. 1, 1972)

Analogous to Sec. 507-p16; ordained by Ord. No. 180-1969, eff. June 6, 1969; r. Ord. No. 290-1970, eff. Oct. 16, 1970.

Sec. 507-1-P15. Powers Street, east from Colerain Avenue to Spring Grove Avenue.

(C.M.C. 507-1-P15; ordained by Ord. No. 68-1972, eff. Mar. 1, 1972)

Analogous to Sec. 507-p15; ordained by Ord. No. 290-1963, eff. Oct. 6, 1963; r. Ord. No. 290-1970. eff. Oct. 16, 1970.

Sec. 507-1-P16. Pauling Place, north from Cuts Alley to East Sixth Street.

(Ordained by Ord. No. 382-1984, eff. Oct. 6, 1984)

Sec. 507-1-Q. Queen City Avenue, west from Beekman Street to Westwood Avenue.

(Sec. 507-q1; ordained by Ord. No. 290-1970, eff. Oct. 16, 1970; a. Ord. No. 452-1971, eff. Jan. 14, 1972; renumbered to C.M.C. 507-1-Q, eff. Jan. 1, 1972;,a. Ord. No. 74-1976, eff. Mar. 26, 1976)

Sec. 507-1-R. Race Street, south from McMicken Street to Third Street.

(C.O. 507-r1; renumbered to C.M.C. 507-1-R, eff. Jan. 1, 1972; a. Ord. No. 333-1973, eff. July 5, 1973)

Sec. 507-1-R1. Rammelsburg Street, east from Braxton Campbell Court to Mathers Street.

(Sec. 507-r6; ordained by Ord. No. 44-1958, eff. Mar. 21, 1958; renumbered to C.M.C. 507-1-R1, eff. Jan. 1, 1972; a. Ord. No. 497-1972, eff. Nov. 25, 1972)

Sec. 507-1-R2. Reading Road, west from Broadway to Main Street.

(C.O. 507-r3; a. Ord. No. 284-1959, eff. Oct. 2, 1959; renumbered to C.M.C. 507-1-R2, eff. Jan. 1, 1972)

Sec. 507-1-R3. Republic Street, south from Elder Street to Twelfth Street, north from Elder Street to sixty feet south of Findlay Street.

(C.O. 507-r2; renumbered to C.M.C. 507-1-R3, eff. Jan. 1, 1972; a. Ord. No. 421-1976, eff. Oct. 4, 1975; a. Ord. No. 132-1988, eff. Apr. 20, 1988)

Sec. 507-1-R4. Rosemont Avenue, north from Glenway Avenue to Liberty Street.

(C.O. 507-r4; renumbered to C.M.C. 507-1-R4, eff. Jan. 1, 1972)

Sec. 507-1-R5. Rusconi Place, south from Shillito Place to Sixth Street.

(Sec. 507-r7; ordained by Ord. No. 70-1966, eff. Mar. 18, 1966; renumbered to C.M.C. 507-1-R5, off. Jan. 1, 1972)

Sec. 507-1-R8. Romana Place, east from Eileen Drive to Madison Road.

(Sec. 507-r8; ordained by Ord. No. 393-1971, eff. Nov. 10, 1971; renumbered to C.M.C. 507-1-R8, eff. Jan. 1, 1972)

Sec. 507-1-R9. Red Bud Place, west from Red Bud Avenue to Rose Hill Avenue.

(Sec. 507-r9; ordained by Ord. No. 438-1971, eff. Jan. 7, 1972; renumbered to C.M.C. 507-1-R9, eff. Jan[. 1, 1972)

Sec. 507-1-S1. Seventh Street, east from John Street to Culvert Street.

(C.O. 507-82; a. Ord. No. 42-1964, eff. Mar. 6, 1964; renumbered to C.M.C. 507-1-S1, eff. Jan. 1, 1972)

Sec. 507-1-S2. Seventh Street Ramp, east from Broadway to Gilbert Avenue.

(C.O. 507-88; renumbered to C.M.C. 507-1-S2, eff. Jan. 1, 1972)

Sec. 507-1-S3. Shillito Place, west from Race Street to Rusconi Place.

(C.O. 507-83; a. Ord. No. 71-1966, eff. Mar. 18, 1966; renumbered to C.M.C. 507-1-S3, eff. Jan. 1, 1972)

Sec. 507-1-S4. Shiloh Street, west from Telford Street to Middleton Avenue.

(Sec. 507-s5; ordained by Ord. No. 196-1969, eff. June 13, 1969; renumbered to C.M.C. 507-1-S4, eff. Jan. 1, 1972)

Sec. 507-1-S5. Schorr Alley, south from McMillan Street to Warner Street.

(C.O. 507-s7; renumbered to C.M.C. 507-1-S5, off. Jan. 1, 1972)

Sec. 507-1-S6. Sixth Street, west from Sentinel Street to Central Avenue.

(C.O. 507-84; a. Ord. No. 42-1964, eff. Mar. 13, 1964; a. Ord. No. 423-1968, eff. Oct. 25, 1968; renumbered to C.M.C. 507-1-S6, eff. Jan. 1, 1972)

Sec. 507-1-S7. St. John's Place, south from Erie Avenue to Observatory Road.

(C.O. 507-s1; renumbered to C.M.C. 507-1-S7, eff. Jan. 1, 1972)

Sec. 507-1-S8. Sycamore Street, south from Central Parkway to Third Street.

(C.O. 507-s9; a. Ord. No. 245-1960, eff. July 29, 1960; a. Ord. No. 146-1970, eff. June 19, 1970; renumbered to C.M.C. 507-1-S8, eff. Jan. 1, 1972; a. Ord. No. 366-2002, eff. Dec. 4, 2003)

Sec. 507-1-S9. St. Gregory Street, south from Hatch Street to Hill Street.

(Ordained by Ord. No. 68-1972, eff. Mar. 1, 1972)

Analogous to Sec. 507-s10; ordained by Ord. No. 365-1969, eff. Oct. 31, 1969; r. Ord. No. 290-1970, eff. Oct. 16, 1970.

Sec. 507-1-S10. Seegar Avenue, north from Vinton Street to Baltimore Avenue.

(C.M.C. 507-1-S10; ordained by Ord. No. 470-1978, eff. Dec. 15, 1978)

Sec. 507-1-S11. St. Paul Drive, west from Eden Park Drive to Alpine Park.

(Ordained by Ord. No. 425-1980, eff. Nov. 15, 1980)

Sec. 507-1-S12. St. Paul Place, north from Pavillion Street to Monastery Street.

(Ordained by Ord. No. 91-1989, eff. Mar. 8, 1989)

Sec. 507-1-S13. South Clerose Circle east from Rosemont Avenue to North Clerose Circle.

(Ordained by Ord. No. 50-2003, eff. March 25, 2003)

Sec. 507-1-S14. Sunset Lane, south/westbound from Sunset Avenue near Queen City Avenue to Sunset Avenue near Guerley Road.

(Ordained by Ord. No. 002-2012, § 1, eff. Feb. 5, 2012)

Sec. 507-1-T. William Howard Taft Road, west from May Street to Vine Street.

(Sec. 507-t4; ordained by Ord. No. 254-1966, eff. June 29, 1966; a. Ord. No. 397-1968, eff. Oct. 9, 1968; a. Ord. No. 443-1968, eff. Nov. 17, 1960; a. Ord. No. 86-1971, eff. Apr. 9, 1971; renumbered to C.M.C. 507-1-T, eff. Jan. 1, 1972; a. Ord. No. 363-2012, §§ 1, 3, eff. Nov. 11, 2012; a. Ord. No. 130-2022, §§ 4, 5, eff. May 25, 2022)

Sec. 507-1-T1. Telford Street, north from Ludlow Avenue to Shiloh Street.

(Sec. 507-t5; ordained by Ord. No. 196-1969, eff. June 13, 1969; renumbered to C.M.C. 507-1-T1, eff. Jan. 1, 1972)

Sec. 507-1-T2. Third Street, east from Elm Street to Broadway.

(C.O. 507-t3; a. Ord. No. 290-1970, eff. Oct. 16, 1970; renumbered to C.M.C. 507-1-T2, eff. Jan. 1, 1972; a. Ord. No. 550-1975, eff. Dec. 19, 1975; a. Ord. No. 378-1977, eff. Oct. 28, 1977)

Sec. 507-1-T3. Thirteenth Street, west from Reading Road to Main Street.

(C.O. 507-t1; a. Ord. No. 43-1968, eff. Mar. 1, 1968; renumbered to C.M.C. 507-1-T3, eff. Jan. 1, 1972; a. Ord. No. 125-2012, § 1, eff. May 18, 2012)

Sec. 507-1-T4. Twelfth Street, east from Main Street to Sycamore Street, and from Broadway to Reading Road.

(C.O. 507-t2; a. Ord. No. 43-1968, eff. Mar. 1, 1968; renumbered to C.M.C. 507-1-T4, eff. Jan. 1, 1972; a. Ord. No. 1-1998, eff. Feb. 6, 1998)

Sec. 507-1-T5. Thorp Alley, east from Vine Street to Race Street.

(C.M.C. 507-1-T5; ordained by Ord. No. 271-1973, eff. July 12, 1974)

Sec. 507-1-T6. Trevor Place, south from Baltimore Avenue to Vinton Street.

(C.M.C. 507-1-T6; ordained by Ord. No. 471-1978, eff. Dec. 15, 1978)

Sec. 507-1-V. Vandalia Avenue, west from Hamilton Avenue to Gulow Street.

(C.O. 507-v1; renumbered to C.M.C. 507-1-V, eff. Jan. 1, 1972; a. Ord. No. 379-2002, eff. Jan. 10, 2003)

Sec. 507-1-V1. Vine Street, north from Third Street to Central Avenue.

(C.O. 507-v2; a. Ord. No. 146-1970, eff. June 20, 1970; renumbered to C.M.C. 507-1-V1, eff. Jan. 1, 1972; a. Ord. No. 205-1975, eff. June 6, 1975; a. Ord. No. 374-1998, eff. Nov. 20, 1998)

Sec. 507-1-V2. Van Street, south from University Avenue to Charleton Street.

(C.M.C. 507-1-V2; ordained by Ord. No. 151-1978, eff. May 19, 1978)

Sec. 507-1-V3. Vinton Street, west from Trevor Place to Seegar Avenue.

(C.M.C. 507-1-V3; ordained by Ord. No. 472-1978, eff. Nov. 15, 1978)

Sec. 507-1-W. Wade Street, west from Western Avenue to Dalton Avenue.

(Sec. 507-w3; ordained by Ord. No. 290-1970, eff. Oct. 16, 1970; renumbered to C.M.C. 507-1-W, eff. Jan. 1, 1972)

Sec. 507-1-W1. Willard Avenue west from Madison Road to Edwards Road.

(C.O. 507-w1; a. Ord. No. 146-1970, eff. June 20, 1970; renumbered to C.M.C. 507-1-W1, eff. Jan. 1, 1972; a. Ord. No. 400-2004, eff. Dec. 15, 2004)

Sec. 507-1-W2. Ward Street, south from Madison Road to Prentice Street.

(Sec. 507-w4; ordained by Ord. No. 303-1959, eff. Oct. 10, 1969; renumbered to C.M.C. 507-1-W2, eff. Jan. 1, 1972)

Sec. 507-1-W3. West Cheapside Street, south from Ninth Street to Eighth Street.

(C.O. 507-w2; a. Ord. No. 42-1964, eff. Mar. 6, 1964; renumbered to C.M.C. 507-1-W3, eff. Jan. 1, 1972)

Sec. 507-1-W4. Western Avenue, south from Bank Street to Gest Street.

(Sec. 507-w7; ordained by Ord. No. 470-1964, eff. Dec. 25, 1964; renumbered to C.M.C. 507-1-W4, eff. Jan. 1, 1972)

Sec. 507-1-W5. Wilmink Street, east from Partridge Place to Linn Street.

(Sec. 507-w6; ordained by Ord. No. 187-1964, eff. June 5, 1964; renumbered to C.M.C. 507-1-W5, eff. Jan. 1, 1972)

Sec. 507-1-W6. Wilstach Street, east from Dalton Avenue to Western Avenue.

(C.O. 507-w3; renumbered to 507-w9 and amended by Ord. No. 290-1970, eff. Oct. 16, 1970; renumbered to C.M.C. 507-1-W6, eff. Jan. 1, 1972)

Sec. 507-1-W7. Winchell Avenue, north from Lincoln Park Drive to 125 feet north of Bank Street.

(Sec. 507-w8; ordained by Ord. No. 470-1964, eff. Dec. 25, 1964; renumbered to C.M.C. 507-1-W7, eff. Jan. 1, 1972)

Sec. 507-1-W8. Repealed.

(Sec. 507-w10; ordained by Ord. No. 86-1971, eff. Apr. 9, 1971; renumbered to C.M.C. 507-1-W8, eff. Jan. 1, 1972; r. by Ord. No. 130-2022, § 1, eff. May 25, 2022)

Sec. 507-1-W9. Wyoming Avenue, north from West Liberty Street to Latham Avenue.

(Sec. 507-w5; ordained by Ord. No. 80-1962, eff. Apr. 20, 1962; renumbered to C.M.C. 507-1-W9, eff. Jan. 1, 1972)

Sec. 507-1-W10. Westwood Avenue, east from Queen City Avenue to Harrison Avenue.

(Sec. 507-W-10; ordained by Ord. No. 452-1971, eff. Jan. 14, 1972; renumbered to C.M.C. 507-1-W10, eff. Jan. 1, 1972; a. Ord. No. 73-1976, eff. Mar. 26, 1976)

Sec. 507-1-W11. West Fork Road, west from Montana Avenue to Baltimore Avenue.

(C.M.C. 507-1-W11; ordained by Ord. No. 320-1974, eff. Aug. 2, 1974)

Sec. 507-1-W12. Warwick Avenue, north from Clinton Springs Avenue to Mitchell Avenue.

(C.M.C. 507-1-W12; ordained by Ord. No. 341-1978, eff. Sept. 1, 1978)

Sec. 507-1-W13. West Hollister Street, west from Vine Street to West McMillan Street.

(Ordained by Ord. No. 73-1982, eff. Apr. 2, 1982)

Sec. 507-1-W14. Weber Lane, east from Rosemont Avenue to Gilsey Avenue.

(Ordained by Ord. No. 136-1982, eff. May 14, 1982)

Sec. 507-1-W15. Walter Avenue, north from Buena Vista Place to Altoona Street.

(Ordained by Ord. No. 107-1996, eff. Apr. 10, 1996)

Sec. 507-1-W16. Worth Street, north from Humbert Avenue to Eastern Avenue.

(Ordained by Ord. No. 416-1983, eff. Oct. 8, 1983)

Sec. 507-1-W17. West Millvale Circle, south from East Millvale Circle to Millvale Court.

(Ordained by Ord. No. 279-1994, eff. August 8, 1994)

Sec. 507-1-W18. Wilmer Court, south from Beechmont Circle to Wilmer Avenue.

(Ordained by Ord. No. 214-1996, eff. August 2, 1996)

Sec. 507-1-W19. Woodward Street, from Main Street to Hanover Street.

(Ordained by Ord. No. 0260-2017, § 1, eff. Oct. 20, 2017)

Sec. 507-1-Y. Hanover Street, from Woodward Street to 13th Street.

(Ordained by Ord. No. 0260-2017, § 2, eff. Oct. 20, 2017)

Sec. 507-3. Two-Way Streets, Width Less Than Sixteen Feet.

The following streets and alleys having a roadway width of less than 16 feet shall be two-way streets between the termini designated:

(a) Clearwater Street, between Baymiller Street and Freeman Avenue.

(b) Providence Street, between Fourteenth Street and Fifteen Street.

(c) Cedar Alley, between the north curbline of North Bend Road and a point 529 feet north.

(d) Pancoast Alley, between Whetstone Alley and Eighth Street.

(Sec. 507-p12; ordained by Ord. No. 78-1962, eff. Apr. 20, 1962; renumbered to C.M.C. 507-3, eff. Jan. 1, 1972; a. Ord. No. 39-1984, eff. Feb. 8, 1984; a. Ord. No. 0219-2007, § 1, eff. July 6, 2007)

Sec. 507-4. Contra-Flow and Limited Access Lanes.

The city manager may determine and designate streets, parts of streets, or specific lanes thereon upon which general public motor vehicular traffic shall proceed in one (1) direction only, and bicycle traffic, public transit traffic, or other traffic other than general public motor vehicles may flow counter to the one-way direction. Additionally, the city manager may erect signs and road striping designating lanes to be used by different types of traffic moving in a particular direction, regardless of the center line of the roadway. The city manager shall place and maintain appropriate markings, signs, barriers, or other devices to give notice thereof.

(Ordained by Emer. Ord. No. 392-2024, § 1, eff. Nov. 20, 2024)

Chapter 508

STOPPING AND PARKING*

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Sec. 508-34. Special Parking Restrictions.
Sec. 508-35. Special Parking Permits for Veterans.
Sec. 508-36. Accessible Parking, Reserved Locations on Public and Private Property.
Sec. 508-37. Parking Permits for Car Sharing.
Sec. 508-38. Reserved Car Sharing Spaces Established.

*__Cross reference—__Parking and loading regulations, ch. 1471.

Sec. 508-1. Stopping and Parking.

No person shall stand or park a vehicle except when necessary to avoid conflict with other traffic or with the provisions of the traffic code or in compliance with the directions of a police officer or a traffic control device in any of the following places:

(a) Within an intersection;

(b) Upon a crosswalk;

(c) Alongside any vehicle stopped or parked at the edge or curb of a street;

(d) At any place alongside a curb which has been painted yellow;

(e) Alongside or opposite any street excavation or obstruction when such standing or parking would obstruct traffic;

(f) At any place where official signs prohibit stopping;

(g) On the roadway portion of a freeway, expressway, or throughway.

(C.O. 508-1; a. Ord. No. 403-1963, eff. Nov. 20, 1963; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. 508-1, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-4, 512-7, 512-3.
State law reference—See ORC 4511.68.

Sec. 508-1-A. Unauthorized Stopping and Parking.

No person shall stand or park a vehicle except when necessary to avoid conflict with other traffic or with the provisions of the traffic code or in compliance with the directions of a police officer or a traffic-control device, in any of the following places:

(a) Within 30 feet upon the approach to any flashing beacon, stop sign, or traffic-control signal;

(b) Within 25 feet of the driveway entrance to any fire station and on the side of a street opposite the entrance to any fire station within 75 feet of said entrance when properly signposted;

(c) Within 10 feet of a fire hydrant;

(d) In front of a public or private driveway;

(e) Upon any bridge or other elevated structure upon a highway or within a highway tunnel;

(f) Within 20 feet of the curbline of an intersecting roadway;

(g) Within 50 feet of the nearest rail of a railroad crossing;

(h) Within one foot of another parked vehicle;

(i) In front of a curb ramp;

(j) On any on-street path or lane designated by official signs or markings for the exclusive use of bicycles; or

(k) On a sidewalk, except a bicycle, or a motor-driven cycle or motorcycle with an engine of 150 cubic centimeters or less so long as the bicycle, motor-driven cycle, or motorcycle does not impede the normal flow of pedestrian traffic, including access to and travel upon the sidewalk area by persons with restricted mobility such as wheelchair user. A bicycle, motor-driven cycle, or motor scooter impedes the normal flow of pedestrian traffic if any of the following apply:

(i) If the bicycle, motor-driven cycle, or motor scooter is parked outside the five (5) feet adjacent to the curb such that an unobstructed sidewalk pedestrian corridor of a minimum of five (5) feet cannot be maintained parallel to the street at all times. In the Central Business District, the minimum pedestrian corridor is six (6) feet.

(ii) If the bicycle, motor-driven cycle, or motor scooter is attached to a hydrant, tree, or electric traffic control device, including but not limited to a traffic signal or lighting control box, within the right of way.

(iii) If the motor-driven cycle or motor scooter is parked on a sidewalk in a manner that obstructs pedestrian access to a parking meter or parking pay station.

(iv) If the bicycle, motor-driven cycle, or motor scooter is parked within six (6) feet from any alley, pedestrian crosswalk, curb ramp, transit stop, or outdoor dining area permitted in accordance with Municipal Code Section 723-14, "Outdoor Dining Areas."

(v) If the bicycle, motor-driven cycle, or motor scooter is parked in a manner that would prevent a person from entering or exiting a vehicle at curbside, or would prevent a person with restricted mobility such as a wheelchair user from mechanically loading or unloading from a vehicle onto the sidewalk area.

Bicycle, motor-driven cycle, and motorcycle drivers must follow any and all other applicable provisions of the traffic code in addition to the requirements of this section.
(C.O. 508-1a; a. Ord. No. 403-1963, eff. Nov. 20, 1963; a. Ord. No. 47-1971, eff. Feb. 10, 1971; renumbered to C.M.C. 508-1-A, eff. Jan. 1, 1972; a. Ord. No. 224-1972, eff. May 24, 1972; a. Ord. No. 375-1981, eff. Oct. 10, 1981; a. Ord. No. 236-2003, eff. July 24, 2003; a. Ord. No. 241-2010, § 7, eff. July 23, 2010; a. Ord. No. 380-2016, § 1, eff. Jan. 7, 2017)

Cross reference—Penalty, §§ 512-4, 512-7, 512-23.
State law reference—See ORC 4511.68.

Sec. 508-1-B. Unauthorized Stopping and Parking along Streetcar Track.

(a) No person shall stop or leave standing any vehicle, whether attended or unattended, in the streetcar obstruction zone, as defined in Section 501-1-S8, except in compliance with directions of a police officer, traffic-control device, or city-issued right-of-way permit with track access authorization.

(b) The prohibitions set forth in this section apply 24 hours a day, 7 days per week, and apply with or without a streetcar vehicle being present.
(Ordained by Ord. No. 071-2016, § 1, eff. April 23, 2016)

Sec. 508-2. Parking and Stopping Restrictions, Authorization.

The city manager or person designated by the city manager is hereby authorized and required to ascertain on what highways and parts of highways and all other municipal property or public safety zones the accommodation of traffic for the safety of the public requires the restriction as to time, or the prohibition of the parking and stopping of vehicles; and shall erect and maintain appropriate traffic signs plainly indicating the purport of such restrictions. No person shall park or stop a vehicle in violation of a traffic sign so erected.

When the parking or stopping restriction or prohibition is indicated by a sign with a directional arrow the restriction or prohibition shall extend in the direction or directions indicated to the next adjacent sign or signs or to an alley or to an intersecting street.
(C.O. 508-2; reordained as C.M.C. 508-2, eff. Jan. 1, 1972; a. Ord. No. 224-1972, eff. May

24, 1972; a. Ord. No. 471-1975, eff. Oct. 31, 1975; a. Ord. No. 412-1978, eff. Nov. 3, 1978)

Cross reference—Penalty, §§ 512-4, 512-7, 512-23.
State law reference—See ORC 4511.07.

Sec. 508-3. Parking so as to Create Obstruction Prohibited.

Upon any highway outside of a business or residence district no person shall stop, park, or leave standing any vehicle, whether attended or unattended, upon the paved or main traveled part of the highway when it is practicable to stop, park, or to leave such vehicle off such part of the highway, but in every event a clear and unobstructed portion of the highway opposite such standing vehicle shall be left for the free passage of other vehicles and a clear view of such stopped vehicle shall be available from a distance of 200 feet in each direction upon such highway.

This section shall not apply to the driver of any vehicle which is disabled while on the paved or improved or main traveled portion of a highway in such manner and to such extent that it is impossible to avoid stopping and temporarily leaving such disabled vehicle in such position.
(C.O. 508-3; reordained as C.M.C. 508-3, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-4, 512-7, 512-23.
State law reference—See ORC 4511.66.

Sec. 508-4. Removal of Obstructing Vehicles.

(a) Whenever any police officer finds a vehicle standing upon a highway in violation of any of the provisions of Sections 508-1 and 508-3, such officer is hereby authorized to move such vehicle, or require the driver or other person in charge of the, vehicle to move the vehicle, to a position off the paved or improved or main traveled part of such highway.

(b) Whenever any police officer finds a vehicle stopped or stalled for whatever reason on any highway, causeway or in any tunnel, whether attended or unattended, where such vehicle constitutes an obstruction to traffic, such officer is hereby authorized to move such vehicle or require the driver or other person in charge of the vehicle to move the same to a position where it will not obstruct or impede the flow of traffic, or if unattended, to provide for the removal of such vehicle to the nearest garage or other place of safety.

(c) Whenever any police officer or other lawfully authorized enforcement officer finds a vehicle stopped or standing within the streetcar obstruction zone in violation of any of the provisions of Sections 508-1-B, such officer is authorized to take any of the following actions:

(1) Move such vehicle;

(2) Require the driver or other person in charge of the vehicle to move the vehicle to a position outside the streetcar obstruction zone;

(3) If the vehicle is unattended, to provide for either:

(A) The removal of such vehicle to the nearest garage or other place of safety; or

(B) The impoundment of the vehicle as provided in Section 513-1 or Section 515-9(c).

(d) The owner of the vehicle shall pay any cost involved for the relocation, removal, or impoundment of such vehicle and for any storage charge, as provided in Section 515-9 of the Cincinnati Municipal Code.
(C.O. 508-4; reordained as C.M.C. 508-4, eff. Jan. 1, 1972; a. Ord. No. 14-2005, eff. Jan. 20, 2005; a. Ord. No. 071-2016, § 3, eff. April 23, 2016)

State law reference—See ORC 4511.67.

Sec. 508-5. Vehicle Obstructing After Collision.

Whenever, following a collision not involving personal injuries, a vehicle, whether or not the vehicle is damaged or wrecked, is so placed as to interfere with traffic or with the proper operation and service of the divisions of fire, police, or highway maintenance, or with the operation of motor buses, the driver or other person in charge of such vehicle shall, without delay, move or cause the vehicle to be moved to a location where it will not interfere with or impede traffic operations.

Whenever any such vehicle is left unattended, or whenever, upon request, the owner or operator of the vehicle fails to remove it as hereinbefore provided, any member of the police force or fire force, or employee of the division of highway maintenance or of a transit company affected by such vehicle shall be authorized to remove it to a location where it will not interfere with or impede traffic operations.

(C.O. 508-5; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. 508-5, eff. Jan. 1, 1972)

Sec. 508-6. No-Standing, No-Stopping and No-Parking Zones.

(a) Where "No Standing" or "No Stopping" signs are erected, no person shall stop, stand or park any vehicle in violation thereof, except when necessary to avoid conflict with other traffic or in compliance with the directions of a police officer or traffic-control device.

(b) Where "No Parking" signs are erected, the same provisions as above shall be in force, except that the sign shall not apply to the temporary stopping of a vehicle for the purpose of and while actually engaged in loading or unloading of passengers or while actually engaged in loading or unloading merchandise.

(c) Where signs are erected requiring a residential or special parking permit, no person shall stop, stand, or park any vehicles in violation thereof, except when necessary to avoid conflict with other traffic or in compliance with the directions of a police officer or traffic-control device.

(Sec. 508-6; ordained by Ord. No. 74-1969, eff. Feb. 19, 1969; reordained as C.M.C. 508-6, eff. Jan. 1, 1972; a. Ord. No. 390-1981, eff. Sept. 16, 1981; a. Ord. No. 347-2024, § 1, eff. Oct. 30, 2024)

Cross reference—Penalty, §§ 512-4, 512-7, 512-23.

Sec. 508-7. Truck Loading Zones.

When signs are erected designating an area for truck loading, no vehicle other than a truck, a commercial car as defined by section 4501.01(J) of the Revised Code, or a motorcycle used in business which is permanently equipped with a package-carrying device or space, and is clearly marked with the name and telephone number of the business, shall stop, stand or park in such zone, except when necessary to avoid conflict with other traffic or in compliance with directions of a police officer or traffic-control device.

No motor vehicle as defined above shall stop, stand or park in such zone except while actually engaged in loading or unloading merchandise or packages, or shall occupy such zone for this purpose for a period in excess of 60 minutes.

Stopping, standing or parking of such motor vehicles in an area designated for truck loading, or where "No Parking" signs are posted, for a period in excess of 15 minutes, without visible activity showing the motor vehicle to be actively engaged in loading and unloading merchandise, shall be prima facie unlawful.

Nothing in this section shall be interpreted as authorizing a person to stop or leave standing any truck, commercial car, or other vehicle in a streetcar obstruction zone in violation of Section 508-1-B including, without limitation, for loading, unloading, or delivery purposes.
(Sec. 508-7; ordained by Ord. No. 74-1969, eff. Feb. 19, 1969; reordained as C.M.C. 508-7, eff. Jan. 1, 1972; a. Ord. No. 124-1983, eff. Mar. 23, 1983; a. Ord. No. 321-1984, eff. Aug. 4, 1984; a. Ord. No. 071-2016, § 4, eff. April 23, 2016)

Cross reference—Penalty, §§ 512-4, 512-7, 512-23.
State law reference—See ORC 737.022(G).

Sec. 508-8. No-Standing, No-Stopping and No-Parking Zones—Designated Hours.

Where either "No Standing, "No Stopping" or "No Parking" signs are erected prohibiting standing, stopping or parking during designated hours, no person shall stop, stand or park any vehicle, in violation thereof, except when necessary to avoid conflict with other traffic or in compliance with the directions of a police officer or traffic-control device.
(Ordained by Ord. No. 389-1981, eff. Oct. 16, 1981)

Sec. 508-11. Parking of Trucks Restricted.

No person shall park any truck or trailer at any time upon any street in a residence district as defined in Section 501-1-R3.

This prohibition shall not apply to trucks on regular delivery or service calls.
(C.O. 508-11; a. Ord. No. 18-1962, eff. Feb. 16, 1962; reordained as C.M.C. 508-11, eff. Jan. 1, 1972; a. Ord. No. 173-1974, eff. May 31, 1974)

Cross reference—Penalty, §§ 512-4, 512-7, 512-23.

Sec. 508-12. Parking Unreasonable Time.

No person shall park any vehicle contrary to traffic signs erected as otherwise authorized herein; and further, no person shall park any vehicle upon any highway longer than 24 hours except vehicles parked at metered or loading locations upon which the vehicles shall be parked in accordance with Chapter 509 of the Cincinnati Municipal Code and under no circumstances for longer than 14 hours, and vehicles operated by or for the transport of a person with a disability that limits or impairs the ability to walk which display a valid removable windshield disability placard, or special disability license plates alone, or special disability license plates and validation stickers, or validation stickers alone, issued pursuant to the provisions of Chapter 4503 of the Ohio Revised Code or the equivalent thereof from any other state, may park upon a highway for up to but not more than 36 hours.
(C.O. 508-12; reordained as C.M.C. 508-12, eff. Jan. 1, 1972; a. Ord. No. 211-1983, eff. June 10, 1983; a. Ord. No. 10-2000, eff. Feb. 4, 2000; a. Ord. No. 243-2014, § 1, eff. Sept. 6, 2014; a. Ord. No. 287-23, § 1, eff. August 2, 2023)

Cross reference—Penalty, §§ 512-4, 512-7, 512-23.

Sec. 508-16. Parking Exceptions for Funeral Cars.

The provisions of any section of this chapter restricting the time during which parking is prohibited shall not apply to funeral cars marked as authorized by Section 503-49 of the traffic code, parked in the vicinity of a church, chapel or residence while a funeral is in progress therein.
(C.O. 508-16; reordained as C.M.C. 508-16, eff. Jan. 1, 1972)

Sec. 508-17. Trucks Obstructing Traffic.

No person shall cause any vehicle to stand upon any street for the purpose of receiving

or unloading freight where there is a public alley from which such freight can be delivered or received.

No person shall cause any vehicle to stand on any highway so as to obstruct traffic in or through such highway, or obstruct any coal chute on any highway.
(C.O. 508-17; reordained as C.M.C. 508-17, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-4, 512-7, 512-23.

Sec. 508-19. Public Transit Stops and Taxicab Stands Established.

The city manager or person designated by the city manager is authorized and required to establish public transit stops and taxicab stands in such places as the city manager shall determine to be for the benefit and convenience of the public. Every such public transit stop or taxicab stand shall be designated by an appropriate sign or signs.
(C.O. 508-19; reordained as C.M.C. 508-19, eff. Jan. 1, 1972; a. Ord. No. 224-1972, eff. May 24, 1972; a. Ord. No. 412-1978, eff. Nov. 3, 1978; a. Ord. No. 110-2014, § 4, eff. June 29, 2014)

State law reference—See ORC 737.022(G).

Sec. 508-20. Recodified.

(This section has been recodified and moved to C.M.C. § 506-24 by Ord. No. 423-1992, eff. Sept. 16, 1992)

Sec. 508-21. Parking in Public Transit Stops.

No operator of any vehicle other than an authorized bus or public transit vehicle shall stand or park such vehicle in an officially designated public transit stop where signs prohibit standing and parking.
(C.O. 508-21; a, Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. 508-21, eff. Jan. 1, 1972; a. Ord. No. 110-2014, § 6, eff. June 29, 2014)

Cross reference—Penalty, §§ 512-4, 512-7, 512-23.

Sec. 508-22. Unlawful Parking of Taxicabs.

No operator of a taxicab shall park the taxicab on any of the hereinafter designated highways at any place other than a taxicab stand:

Any highway within the area bounded on the north by the north property line of Twelfth Street, on the east by the east property line of Broadway, on the south by the south property line of Third Street, and on the west by the west property line of Central Avenue.

Taxicab drivers shall be permitted to park taxicabs at parking meters in the above designated area for personal and professional purposes only and provided that the taxicab driver pays the fee associated with the parking meter, the taxicab is left unattended at the meter, and the period of parking at the meter does not exceed fifteen (15) minutes.
(C.O. 508-22; reordained as C.M.C. 508-22, eff. Jan. 1, 1972; a. Ord. No. 258-1990, § 1, eff. June 20, 1990; a. Ord. No. 343-2011, § 1, eff. Dec. 16, 2011)

Cross reference—Penalty, §§ 512-4, 512-7, 512-23.

Sec. 508-23. Trailer Parking for Unreasonable Time.

No person shall park, or let stand, a trailer on a street or highway except while actually loading or unloading said trailer.

Whoever violates this section is guilty of a minor misdemeanor on the first offense; if the offender has been found guilty of violating this section within the previous 12 months, a violation of this section is a misdemeanor of the fourth degree.
(Ordained by Ord. No. 146-1992, eff. May 8, 1992)

Sec. 508-24. Taxicab Restrictions.

No operator of a taxicab shall stop his vehicle in Government Square except:

(a) To discharge a passenger.

(b) In compliance with the requirements of traffic signs, signals, or directions.

(c) To occupy, between the hours of 4 p.m. and 6 p.m., on weekdays only, any taxicab stand or stands designated by the director of safety.

(C.O. 508-24; reordained as C.M.C. 508-24, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-4, 512-7, 512-23.

Sec. 508-25. Parking; Unauthorized Plates.

No person who is the owner of any vehicle upon which license plates are required to be displayed by law shall fail to display on the front and rear of such motor vehicle the distinctive number and registration number and registration mark, including any required validation sticker, required by law.

No person shall park upon the streets of the city any vehicle upon which are displayed any license numbers for any period of time which has expired or any license plates issued in another state for which the period of reciprocal agreement with the state of issue has expired.

No person shall park upon the streets of the city any vehicle upon which are displayed any license numbers not legally registered and issued for such vehicle, or upon which are displayed any license numbers that were issued on an application for registration that contained any false statement by the applicant.

(Ordained by Ord. 423-1992, eff. Sept. 16, 1992)

Sec. 508-26. Parking at Curbs.

Except where angle loading or parking is permitted by official signs or markings, every vehicle stopped or parked upon a roadway shall be stopped or parked with the wheels of such vehicle parallel with and not more than 12 inches from the curb or edge of roadway unless it is impossible to approach so close to the curb or edge of roadway because of an obstruction other than a parked or stopped vehicle and in such case the stop shall be as close to the curb or edge of roadway as possible and only for the time necessary to discharge and receive passengers or to load or unload merchandise, except that there shall be no angle parking for the purposes of loading or unloading of merchandise and discharging and receiving of passengers in the congested district or on through highways during the hours 7 a.m. to 6 p.m.

No vehicle shall be stopped or parked on a highway with the vehicle facing in a direction other than the direction of travel on that side of the highway.

Notwithstanding the provisions of the preceding sections or of any state statute or of any rule, regulation, resolution, or ordinance, but subject to the provisions of Section 502-6, air compressors, tractors, trucks, and other equipment, while being used in the construction, reconstruction, installation, repair, or removal of facilities near, on, over, or under a street or highway, may stop, stand, or park where and as necessary in order to perform such work, provided a flagman is on duty or warning signs or lights are displayed as may be prescribed by the director of highways.

(C.O. 508-26; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. 508-26, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-4, 512-7, 512-23.

State law reference—See ORC 4511.69.

Sec. 508-27. Parking on Narrow Streets.

No person shall park a vehicle on a roadway less than 18 feet wide. Where a roadway is 18 feet or more, but less than 24 feet wide, no person shall park on the south side where the general direction is east and west, unless parking is prohibited by sign on the north side, or on the west side when the general direction is north and south, unless parking is prohibited by sign on the east side. Upon all roadways, it shall be unlawful to park a vehicle in such a manner or under such conditions as to leave available less than 12 feet of the width of the roadway for free movement of vehicular traffic, except when necessary in obedience to traffic regulations or traffic signs or signals, or a police officer.
(C.O. 508-27; reordained as C.M.C. 508-27, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-4, 512-7, 512-23.
State law reference—See ORC 737.022(B).

Sec. 508-28. Parking on Grade.

No person shall park or allow a motor vehicle to stand on any highway unattended without first setting the brakes thereon and stopping the motor thereof, and without turning the wheels of such vehicle to the curb or side of the highway if it is standing upon a slope.
(C.O. 508-28; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. 508-28, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-4, 512-7, 512-23.
State law reference—See ORC 737.022(B).

Sec. 508-29. Parking Vehicle for Sale.

No person shall park upon the highway any vehicle which is held in stock for future sale. Nothing herein shall be construed to prohibit the parking of vehicles bearing dealers' license plates which are used in the actual demonstration of a vehicle for sale.
(C.O. 508-29; reordained as C.M.C. 508-29, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-4, 512-7, 512-23.
State law reference—See ORC 737.022(B).

Sec. 508-30. Parking on Undedicated Streets and Private Property.

In order to provide a passage for fire and police vehicles responding to emergency calls, parking on undedicated streets and private property where fire lanes have been established by the fire division shall be subject to the provisions of the Cincinnati Municipal Code regulating parking on streets of the city of Cincinnati.
(C.O. 508-30; renumbered to C.M.C. 508-30, eff. Jan. 1, 1972, a. Ord. No. 401-1973, eff. Sept. 6, 1973)

State law reference—See ORC 737.022(B).

Sec. 508-31. Locks on Motor Vehicles.

No person driving or in charge of a motor vehicle shall permit it to stand, if unattended, on the streets or highways without first stopping the engine, locking the ignition and removing the key.
(C.O. 508-31; reordained as C.M.C. 508-31, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-4, 512-7, 512-23.

Sec. 508-32. Repaired, Serviced or Stored Vehicles, Parking on Street.

No owner, operator, or agent thereof, of a garage, service station, parking lot, or other off-street parking or service facility shall place or allow to be placed upon any highway any vehicle left in such person's custody for repair, servicing or storage.
(C.O. 508-32; reordained as C.M.C. 508-32, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-4, 512-7, 512-23.

Sec. 508-33. Parking on Controlled Access Highways.

No person shall stand or park a vehicle within the right of way line on a controlled

access highway except for emergency purposes or in compliance with the direction of a police officer.
(Sec. 508-33; ordained by Ord. No. 13-1959, eff. Feb. 20, 1959; reordained as C.M.C. 508-33, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-4, 512-7, 512-23.
State law reference—See ORC 737.022(B).

Sec. 508-34. Special Parking Restrictions.

During the period of any snow emergency, no vehicle may be parked on any snow emergency route, as defined in Section 502-25, provided that special signs are erected indicating such a snow emergency route.
(Sec. 508-34; ordained by Ord. No. 80-1965, eff. Mar. 27, 1965; renumbered to C.M.C. 508-34, eff. Jan. 1, 1972; a. Ord. No. 412-1978, eff. Nov. 3, 1978; a. Ord. No. 474-1994, eff. Dec. 21, 1994)

Cross reference—Penalty, §§ 512-1, 512-7.
State law reference—See ORC 737.022(B).

Sec. 508-35. Special Parking Permits for Veterans.

The city manager is hereby authorized to issue special parking permits granting special parking privileges to war veterans who have as a result of a service connected disability suffered the loss of the use of a leg or legs. Application for such permits and the extent of the special privileges granted shall be in accordance with rules and regulations to be adopted by the city manager.
(Ordained by Ord. No. 29-1949, eff. Feb. 18, 1949 as uncodified ordinance; reordained as C.M.C. 508-35, eff. Jan. 1, 1972)

Sec. 508-36. Accessible Parking, Reserved Locations on Public and Private Property.

No person shall stop, stand, or park any motor vehicle at special, clearly marked, parking locations provided for persons with disabilities in or on privately or publicly owned parking lots, parking garages or other parking areas or public streets and highways unless the motor vehicle is displaying a parking card issued under Section 4503.44 of the Revised Code or is being operated by or for the transport of a person with a disability and is displaying the special license plates authorized by Section 4503.44 of the Revised Code or the equivalent thereof from any other state.

As used in this section, "person with a disability" means a person having lost the use of one or both legs, one or both arms, or any combination thereof, or being blind or deaf or so severely disabled as to be unable to move about without the aid of crutches or a wheelchair, or a person whose mobility is restricted by a permanent cardiovascular, pulmonary, or other disabling condition.
(Ordained by Ord. No. 71-1985, eff. Feb. 13, 1985; a. Ord. No. 401-1985, eff. Sept. 6, 1985; Ord. No. 53-2005, eff. July 21, 2005; Emer. Ord. No. 058-2013, § 4, eff. March 6, 2013; a. Ord. No. 287-23, § 1, eff. August 2, 2023)

Sec. 508-37. Parking Permits for Car Sharing.

The city manager or his designee is authorized to issue parking permits to car sharing organizations for the purpose of granting the use of designated on-street parking spaces for car sharing vehicles, and to collect fees for the use of such spaces. For purposes of this section, a car sharing organization shall mean an organization that provides its members with self-service access to reserve, pickup, drive and return vehicles at geographically distributed locations for an hourly rate. Car sharing permits shall be granted in accordance with rules and regulations adopted by the city manager.
(Ordained by Emer. Ord. No. 351-2012, § 1, eff. Sept. 26, 2012)

Sec. 508-38. Reserved Car Sharing Spaces Established.

The city manager or his designee is authorized to establish car sharing spaces in such on-street locations as the city manager shall determine to be for the benefit and convenience of the public. Each such car sharing space shall be designated by an appropriate sign or signs. No person shall stop, stand or park a vehicle in an officially designated car sharing space unless such vehicle displays a valid car sharing parking permit permanently affixed to, and clearly visible through, the front windshield of the vehicle.

(Ordained by Emer. Ord. No. 351-2012, § 2, eff. Sept. 26, 2012)

Chapter 509

PARKING METERS

Sec. 509-1. Parking Meters, Locations.
Sec. 509-2. Types of Parking Meters.
Sec. 509-4. Metered Spaces.
Sec. 509-5. Parking in Metered Spaces or Spaces Requiring Payment.
Sec. 509-7. Unmetered Parking.
Sec. 509-8. Repeat Metering.
Sec. 509-10. Slugs, Coin Substitutes and Fraudulent Payments.
Sec. 509-11. Defacing Parking Meters.
Sec. 509-13. Repealed.
Sec. 509-15. Temporary Meter Closure Fees.

Sec. 509-1. Parking Meters, Locations.

The city manager or person designated by the city manager shall be authorized to provide for the installation, regulation, maintenance, control, operation, and use of parking meters on any street or part of a street, and on all other municipally owned property, where parking is permitted for limited periods only, and parking spaces are ordinarily occupied to capacity, and where the use of such parking meters would tend to reduce over-parking in violation of the ordinances and shall further be authorized to maintain such parking meters in good workable condition.

The city manager or person designated by the city manager shall be authorized to adjust the metered parking fee.

(C.O. 509-1; reordained as C.M.C. 509-1, eff. Jan. 1, 1972; a. Ord. No. 412-1978, eff. Nov. 3, 1978; Emer. Ord. No. 058-2013, § 6, eff. March 6, 2013; a. Ord. No. 185-2015, § 2, eff. July 17, 2015; Emer. Ord. No. 255-2015, § 1, eff. July 1, 2015)

Editor's note—The amendment to § 509-1 made by Ord. No. 185-2015, § 2, was adopted on June 17, 2015, with an effective date of July 17, 2015. Subsequent Ord. No. 255-2015, § 2, adopted July 1, 2015, changed said amendment to an emergency measure, making it effective immediately upon adoption.

Sec. 509-2. Types of Parking Meters.

The city manager may use various devices, technologies, and systems to meter parking on city streets and right-of-way including the following:

(a) Single-space parking meters shall be of either the penny, nickel, dime, quarter, or combination type and shall be so designed and constructed as to display a signal showing lawful parking following the deposit therein of a prescribed coin of the United States of America during the period of time for parking provided for the denomination of coin so deposited, which in no event shall exceed the parking limits now or hereafter provided for the part of the street upon which such single-spaced meter is placed. Each single-spaced meter shall bear a sign or legend setting forth the denomination or denominations of coins which can be deposited therein, and the parking time secured thereby, which sign or legend may be in lieu of any other sign pertaining to the parking of vehicles in the adjacent parts of the street. Each such single-spaced meter shall also be designed and constructed so that upon the expiration of the parking time provided for the denomination of coin deposited it will indicate by automatic operation of a visual signal that the lawful parking period has expired.

(b) Multi-space meters shall be any device installed for the acceptance of parking fees for more than one parking space. Multi-space meters shall require either the conspicuous display of a receipt inside a vehicle where it can be clearly seen from outside the vehicle or the entering of the proper parking space number or entering of license plate information in which the vehicle is parked in conjunction with paying the parking fee. Multi-space meters may accept one or more of the following payment options: coins, tokens, cash, credit cards, debit cards, or other stored value cards.

(c) Parking payment applications, including mobile payment systems, smart phone applications, and all other similar types of technologies.

(C.O. 509-2; reordained as C.M.C. 509-2, eff. Jan. 1, 1972; Emer. Ord. No. 283-2006, § 1, eff. 9-27-06; a. Ord. No. 10-2026, § 1, eff. Jan. 14, 2026)

Sec. 509-4. Metered Spaces.

(a) The city manager may cause lines or marks to be placed on the curb or on the street, about or alongside of each single-space parking meter to designate the parking space for which such single-space meter is to be used, and each vehicle parking alongside of or next to any single-space parking meter shall park within the lines or markings so established. It shall be unlawful to park any vehicle across any such line or mark or to park such vehicle in such way that the same shall not be within the area so designated by such lines or markings, unless such vehicle be too large to be confined in one such space. In the absence of lines or markings, the single-space parking meter posts shall indicate the limits of one or two car parking spaces, and there shall be no parking further than five (5) feet from the nearest meter regulating parking in such space, whether or not such space is occupied by a parked vehicle.

(b) The city manager may cause lines or marks to be placed on the curb or on the street in close proximity to a multi-space parking meter to designate the parking spaces for which such multi-space meter regulates, and each vehicle parking in a space regulated by any multi-space parking meter shall park within the lines or markings so established. It shall be unlawful to park any vehicle across any such line or mark or to park such vehicle in such way that the same shall not be within the area so designated by such lines or markings, unless such vehicle is too large to be confined in one such space. In the absence of lines or markings, signs shall indicate the limits of one or two car parking spaces, and there shall be no parking further than five (5) feet from the nearest sign indicating parking in such space, whether or not such space is occupied by a parked vehicle.

(C.O. 509-4; a. Ord. No. 360-1965, eff. Oct. 1, 1965; reordained as C.M.C. 509-4, eff. Jan. 1, 1972; a. Ord. No. 412-1978, eff. Nov. 3, 1978; a. Ord. No. 169-1991, eff. June 7, 1991; Emer. Ord. No. 283-2006, § 2, eff. 9-27-06)

Cross reference—Penalty, §§ 512-1, 512-7.

Sec. 509-5. Parking in Metered Spaces or Spaces Requiring Payment.

(a) Spaces controlled by meters. Whenever a vehicle is parked in a space which requires payment for parking during hours of limited parking, the owner or driver of the vehicle shall, upon entering the vehicle in the parking space, immediately pay the required fee by any method accepted by such space or the meter. Such owner or driver may use the unexpired time displayed on the meter from its previous use without making an additional payment. Any unexpired time displayed on the meter will not be added to any time purchased for that meter using pay-by-phone technology.

(b) When a vehicle is too large to be confined in a single space, the owner or driver of the vehicle shall make payment for the number of parking spaces the vehicle fully or partially occupies.

(c) If a vehicle remains parked either fully or partially in any parking space beyond the limit fixed for the amount of the payment accepted by such space or meter, such vehicle shall be considered as parked overtime.

(d) If any equipment, system, or technology for paying for parking is out of order or unable to accept payment, the owner or driver of the vehicle shall use other equipment that is nearby to pay for the parking space or spaces used or shall pay for the space or spaces used through another available system or technology.

(C.O. 509-5; reordained as C.M.C. 509-5, eff. Jan. 1, 1972; Emer. Ord. No. 283-2006, § 3, eff. 9-27-06; Emer. Ord. No. 058-2013, § 6,

eff. March 6, 2013; a. Ord. No. 185-2015, § 2, eff. July 17, 2015; Emer. Ord. No. 255-2015, § 1, eff. July 17, 2015; a. Ord. No. 10-2026, § 2, eff. Jan. 14, 2026)

Sec. 509-7. Unmetered Parking.

No person during hours of limited parking shall permit a vehicle to remain parked in a designated parking space in violation of section 509-5 or while the parking meter for the space indicates that the car is illegally parked or if the vehicle does not conspicuously display a valid, unexpired receipt, whether the indication is the result of the failure to pay the required fee by any method accepted by such meter and operate the lever or other actuating device of the meter, or the result of the automatic operation of the meter following the expiration of the authorized parking time subsequent to the payment of the required fee by any method accepted by such meter at the time the vehicle was parked.

The fact that a vehicle is parked in a metered parking space during hours of limited parking either with (i) the meter time signal showing no permitted parking or (ii) without conspicuously displaying a valid unexpired receipt or (iii) not showing as paid via a valid payment method, shall be prima facie evidence that the vehicle has been parked at such space longer than the lawfully permitted parking period.
(C.O. 509-7; reordained as C.M.C. 509-7, eff. Jan. 1, 1972; C.M.C. 512-22, ordained by Ord. No. 221-1976, eff. July 1, 1976; a. Ord. No. 398-1976, eff. Sept. 1, 1976; renumbered to C.M.C. 509-7, eff. Sept. 1, 1979; Emer. Ord. No. 283-2006, § 4, eff. 9-27-06; Emer. Ord. No. 058-2013, § 6, eff. March 6, 2013; a. Ord. No. 10-2026, § 2, eff. Jan. 14, 2026)

Sec. 509-8. Repeat Metering.

No person shall deposit or cause to be deposited in a parking meter a payment for the purpose of obtaining an extension of indicated parking time beyond the maximum limit of time prescribed for parking a vehicle in the designated space alongside of or next to a single-space parking meter or a vehicle parked in a space controlled by a multi-space parking meter; provided, however, that the provisions of this section shall not be operative on municipally owned off-street parking facilities.
(C.O. 509-8; a. Ord. No. 147-1958, eff. June 6, 1958; reordained as C.M.C. 509-8, eff. Jan. 1, 1978; C.M.C. 512-22; ordained by Ord. No. 221-1976, eff. July 1, 1976; a. Ord. No. 398-1976, eff. Sept. 1, 1976; renumbered to C.M.C. 509-8, eff. Sept. 1, 1979; Emer. Ord. No. 283-2006, § 5, eff. 9-27-06; Emer. Ord. No. 058-2013, § 6, eff. March 6, 2013)

Sec. 509-10. Slugs, Coin Substitutes and Fraudulent Payments.

No person shall deposit or cause to be deposited in any parking meter any slug, device, other substitute for a coin or counterfeit currency of the United States of America or use a credit card (as defined in Ohio Revised Code Section 2913.01(U)) to fraudulently obtain a record of payment of parking fees.
(C.O. 509-10; reordained C.M.C. 509-10, eff. Jan. 1, 1972; Emer. Ord. No. 283-2006, § 6, eff. 9-27-06)

Cross reference—Penalty, §§ 512-1, 512-7.

Sec. 509-11. Defacing Parking Meters.

No person shall deface, injure, tamper with, open, break or destroy any parking meter or otherwise impair its usefulness.
(C.O. 509-11; reordained as C.M.C. 509-11, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-1, 512-7.

Sec. 509-13. Repealed.

(Ordained by Ord. No. 387-1983, eff. Sept. 2, 1983; Ord. No. 401-1985, eff. Sept. 6, 1985)

Sec. 509-15. Temporary Meter Closure Fees.

The city manager or person designated by the city manager may charge a temporary closure fee for temporary closure of parking meters. Prior to implementation of such a fee, the city manager or his or her designee shall adopt rules and regulations that establish the process for approving requests for temporary parking meter closures and the charges for such closures.

(Ordained by Emer. Ord. No. 058-2013, § 8, eff. March 6, 2013; a. Ord. No. 185-2015, § 2, eff. July 17, 2015; Emer. Ord. No. 255-2015, § 1, eff. July 1, 2015)

Editor's note—The amendment to § 509-15 made by Ord. No. 185-2015, § 2, was adopted on June 17, 2015, with an effective date of July 17, 2015. Subsequent Ord. No. 255-2015, § 2, adopted July 1, 2015, changed said amendment to an emergency measure, making it effective immediately upon adoption.

Chapter 510

ASSEMBLAGES AND PARADES

Sec. 510-1. Legislative Finding.
Sec. 510-2. Parades.
Sec. 510-3. Special Parades Requiring Permits.
Sec. 510-4. Breaking Procession.
Sec. 510-5. Parking on Parade Route.
Sec. 510-7. Demonstrations on or Near Highway.
Sec. 510-8. Pedestrian Assemblies.
Sec. 510-9. Obstruction of Pedestrians or Vehicles.

Sec. 510-1. Legislative Finding.

It is determined by council that the right of all citizens to make reasonable use of the streets and sidewalks must be preserved to the greatest extent possible.

It is further found that certain areas of the city suffer from serious traffic congestion, both vehicular and pedestrian, and that in order to assure essential movement of persons and vehicles and to protect the rights of all members of the public, traffic laws and regulations have been enacted and must be enforced uniformly.

It is further found that the "congested district" as defined in this code is such an area and that during rush hours other areas of the city also suffer from extreme traffic congestion, requiring the strict enforcement of traffic laws and regulations in order to protect the rights of all persons to move upon the city streets.

It is further found that various groups, associations and organizations desirous of holding public parades, marches and processions, wish to be exempted from complying with the laws and regulations relating to traffic controls, including but not limited to one-way street patterns, traffic lights, traffic signals and signs, and various standard rules for the operation of persons and motor vehicles.

It is further found that such organizations, groups or associations often desire the restriction of parking along all or part of the proposed parade route and often desire police escorts to assure clear passage for the parade.

It is further found that it is the policy of council to permit waiver of enforcement of traffic laws and regulations relating to vehicular and pedestrian traffic in certain instances and under certain conditions where such a waiver or variance in normal procedures would not unreasonably obstruct or interfere with free ingress and egress to and from public and private property or to and from various areas of the city and will not present an unreasonable hazard to the public.

It is further found that the planning for, scheduling of personnel for, and the carrying out of all the necessary preparations for parades, marches and processions in regard to which requests are made for waiver or variance of laws or regulations relating to pedestrian or vehicular traffic, restriction of parking on the parade route, change of traffic patterns, or provision of police escorts, require advance notice to the City of Cincinnati and require the expenditure of public funds.

It is further found that unless adequate advance preparation is made and adequate personnel are provided, it is both unsafe and impractical for parades, marches or processions to move in or about the City of Cincinnati unless in strict compliance with all laws and regulations relating to the movement of pedestrian and vehicular traffic.
(Sec. 510-1; ordained by Ord. No. 152-1970, eff. June 26, 1970; reordained as C.M.C. 510-1, eff. Jan. 1, 1972)

Sec. 510-2. Parades.

All parades, marches and processions, except funeral processions operating in accordance with the provisions of law relating especially to them, and all persons participating in such parades, marches and processions, shall obey all laws and regulations relating to pedestrian and vehicular traffic and shall not obstruct or unreasonably interfere with the rights of the public to use and enjoy the streets, sidewalks and public ways of the City of Cincinnati, and the rights of the public and owners of adjacent property to

access to and from the streets and sidewalks of the City of Cincinnati to and from abutting or adjacent property.
(C.O. 510-1; a. Ord. No. 152-1970, eff. June 26, 1970; renumbered to C.M.C. 510-2, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-1, 512-7.

Sec. 510-3. Special Parades Requiring Permits.

Notwithstanding the provisions of Section 510-2, the city manager, or person designated by the city manager, may grant permission to a group, association or organization holding or sponsoring a parade, march or procession to do so without strict compliance with specified provisions of the laws and regulations relating to vehicular and pedestrian traffic, and may restrict parking along a proposed route of a parade, march or procession and provide police escorts therefor upon the following terms and conditions:

(a) The group, organization or association sponsoring a parade, march or procession shall apply in writing at least 30 calendar days in advance of the date of the parade, march or procession for a permit to hold a parade at variance with the laws and regulations relating to pedestrian and vehicular traffic.

The city manager or person designated by the city manager shall, in appropriate cases, have the authority to waive the time period within which the application for a parade permit must be made.

(b) Application for such permit shall be on forms provided by the city manager or person designated by the city manager, and shall state:

(1) The name and address of the sponsoring group, association or organization.

(2) The names and addresses and telephone numbers of officers of the organization or persons authorized to speak for and on behalf of such organization and to represent the organization in all matters pertaining to the parade permit.

(3) The date, time and proposed route of the parade.

(4) The nature of the parade; i.e., whether it will consist of or include:

a. Pedestrians,

b. Vehicles,

c. Animals,

d. A combination of any of the above, and

e. The approximate size or length of the parade.

(5) Those traffic laws or regulations which the group, association or organization holding or sponsoring the parade wish to be waived in regard to it.

(6) Whether or not it is desirous that parking be restricted along the parade route or any part of the parade route.

(7) Whether or not a police escort is desired.

(8) The application for the proposed parade shall include a non refundable $100.00 fee if it is estimated that fewer than 3,000 people will be in attendance, or a $500.00 fee if it is estimated that over 3,000 people will be in attendance.

(c) In reviewing the application for a parade permit, the city manager or person designated by the city manager shall determine the number of police officers reasonably necessary to con-

trol traffic in the area of the requested parade. In making this determination, the city manager or person designated by the city manager shall consider such factors as the time, date, route, length, number of participants and vehicles contained in the application for the parade permit. The city manager or person designated by the city manager shall inform the applicant for the parade permit of the number and cost of police officers and vehicles which he determines to be necessary to control the traffic for the requested parade. The cost to the applicant for each police officer shall be the current standard hourly special duty rate. The cost for each police vehicle shall be the standard hourly rental rate prescribed by the Cincinnati Police Department. The applicant for a parade permit shall deposit one-half of the amount of money designated by the city manager or person designated by the city manager as necessary for police traffic control and police vehicles with the Cincinnati Police Department within five business days of the issuance of the permit, or within five business days prior to the parade, whichever date is earlier, unless the deposit requirement is waived by the city manager. The Cincinnati Police Department will invoice the applicant for a parade permit for the remaining one-half of all such costs, and the applicant shall promptly pay the invoice.

(d) In reviewing the application for a parade permit, the city manager or person designated by the city manager shall determine if personnel from the Cincinnati Fire Department are necessary to the safe conduct and operation of the parade. In making that determination, the city manager or person designated by the city manager shall consider the time, date, route and length of the parade; the likelihood of fires or explosions during the parade or the need for emergency and medical services; the nature and purpose of the parade; the anticipated attendance at the parade by both participants and observers; the number, type, and speed of vehicles in the parade; and the ability of the Cincinnati Fire Department to respond to a call for services from a location outside the parade route.

If the city manager or person designated by the city manager determines that Cincinnati Fire Department personnel are necessary to the safe conduct and operation of the parade, then the applicant for the parade permit shall be informed of the necessary number and cost of Cincinnati Fire Department personnel. The cost to the applicant of the Cincinnati Fire Department personnel shall be the current standard hourly special duty rate for such personnel. The cost for each Cincinnati Fire Department vehicle shall be a standard hourly rate prescribed by the fire chief. The applicant for a parade permit shall deposit one-half of the amount of money designated by the city manager or person designated by the city manager as necessary for fire department personnel and vehicles with the Cincinnati Fire Department within five business days of the issuance of the permit, or within five business days prior to the parade, whichever date is earlier, unless the deposit requirement is waived by the city manager. The Cincinnati Fire Department will invoice the applicant for a parade permit for the remaining one-half of all such costs, and the applicant shall promptly pay the invoice.

(e) Before issuing a permit, the city manager or person designated by the city manager shall determine that:

(1) Waiver of laws or regulations relating to the movement of pedestrian or vehicular traffic for the proposed parade will not present an unreasonable hazard to the safety of the public.

(2) The waiver of enforcement of laws and regulations relating to vehicular and pedestrian traffic along the route of the suggested parade will not substantially and unreasonably increase traffic congestion in the congested area or in any other area of the city during rush hours.

(3) That there will be available sufficient city manpower to provide for the reasonably safe movement of the parade and other traffic, the safety of the public, and the restriction of parking along the parade route or police escorts when requested or when determined to be necessary for the safety of the public by the city manager or person designated by the city manager.

(4) That the parade will not unreasonably interfere with access to public or private property adjacent to the streets and sidewalks to the proposed parade route.

(f) If the parade, march or procession involves the use of motor vehicles or animals, the organization, group or association sponsoring or holding the parade shall obtain liability insurance and file a copy of the policy with the City of Cincinnati, which policy shall:

(1) List the sponsoring group, association or organization and the City of Cincinnati as a named insured; and

(2) Provide liability coverage against all hazards arising from the holding of the parade for personal injuries and property damage in the amount of $500,000.

(g) A parade permit will not be granted to any applicant whose stated intended purpose is to communicate any obscenity, defamation, "fighting words," or words creating a "clear and present danger."

The City of Cincinnati will promptly seek judicial review of any intended denial or revocation of a parade permit based upon the obscenity, defamation, "fighting words," or "clear and present danger" prohibitions contained in this section. Unless a court issues an order within ten business days of the city's petition declaring that the permit may be lawfully denied or revoked, the parade permit will be granted.

(h) After the application is filed, the city manager or person designated by the city manager shall act upon an application for a special parade permit within ten business days, or within five business days prior to the proposed parade, whichever date is earlier.

If the city manager or person designated by the city manager finds that the determinations required by paragraph (e) above cannot be made without changes in the proposed route, time, or waiver of laws or regulations relating to movement of pedestrian or vehicular traffic as requested in the application, or the restriction of parking along the proposed route, the city manager or person designated by the city manager shall suggest in writing alternate times, routes, or procedures or conditions which would meet the

requirements of paragraph (e) above. Such suggestions shall be noted upon the application for the special parade permit. The terms of such suggestions shall be communicated by the city manager or the person designated by the city manager to the permit applicant either by personal delivery or certified mail within ten business days after the application is filed, or within five business days prior to the proposed parade, whichever date is earlier.

If these suggestions are accepted in writing by the permit applicant within three business days after the date the city manager or person designated by the city manager personally notifies the applicant of the suggestions or mails the suggestions to the applicant, the city manager or person designated by the city manager shall proceed as though such changes were originally part of the application. The permit applicant's acceptance of the suggestions shall be noted upon the application.

(i) Any applicant shall have the right to appeal the denial of a permit to the office of administrative hearings by filing a written notice of appeal with the city manager within five business days of the denial of the permit. The city manager shall transmit the notice of appeal and all documents related to the permit application to the office of administrative hearings within 24 hours of the filing of the appeal. The office of administrative hearings shall conduct a hearing and issue a decision in sufficient time to allow the applicant to conduct the parade if the appeal is granted, but in no event shall the hearing be held more than five business days after the appeal is filed.

(j) A permit may be revoked at any time by the city manager or person designated by the city manager for the same reasons as those provided for denial of a permit. Notice of the revocation of a permit shall be given immediately to the applicant as provided in Section 510-3(g), and appeal of the revocation of the permit may be taken in the same manner and time as provided in Section 510-3(h), except the requirement that the appeal shall be heard before the date of the parade will not apply.

(k) In the absence of special circumstances, the following parade route in the congested district shall be deemed to comply with the requirements of this section insofar as presenting the least hazard to the safety of the public and the least interference with normal use and movement upon the streets in that area, and shall be followed by any group proposing to hold a parade in the congested area, unless the city manager or person designated by the city manager finds that exceptional circumstances exist, which shall be stated in writing upon the application, which warrant the use of an alternate route:

From the intersection of Butler and Sentinel Street, travel south on Sentinel Street to Fifth Street, thence west on Fifth Street to Vine Street, thence north on Vine Street to the intersection of Vine Street and Central Parkway, where the parade shall end.

(l) No person participating in a parade, march or procession under this section shall distribute handbills, free samples, give autographs or other such items to spectators along the designated parade route nor commit any

other act which would encourage spectators to move into the designated parade route during the course of any such parade.

(C.O. 510-1, 510-2, 510-3; a. Ord. No. 162-1970, eff. June 26, 1970; renumbered to C.M.C. 510-3, eff. Jan. 1, 1972; a. Ord. No. 332-1973, eff. July 5, 1973; a. Ord. No. 412-1978, eff. Nov. 3, 1978; a. Ord. No. 376-1980, eff. Sept. 17, 1980; a. Ord. No. 67-1989, eff. Feb. 23, 1989; a. Ord. No. 109-1989, eff. Mar. 15, 1989; a. Ord. No. 193-1989, eff. May 10, 1989; a. Ord. No. 252-1989, eff. June 21, 1989; a. Ord. No. 199-1993, eff. July 5, 1993; a. Emer. Ord. No. 0130-2007, § 1, eff. Apr. 17, 2007; Emer. Ord. No. 116-2014, § 17, eff. July 1, 2014)

Sec. 510-4. Breaking Procession.

Except public safety vehicles proceeding in accordance with Section 506-45 of the traffic code, no operator of any vehicle shall drive between moving vehicles comprising an authorized procession, but passage for cross traffic shall be provided at intervals not exceeding 10 minutes.

(C.O. 510-4; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. 510-4, eff. Jan. 1, 1972; a. Ord. No. 224-1972, eff. May 24, 1972)

Cross reference—Penalty, §§ 512-1, 512-7, 512-23.

State law reference—See ORC 4511.451.

Sec. 510-5. Parking on Parade Route.

The city manager or person designated by the city manager is authorized, whenever it is determined necessary to prohibit or restrict the parking of vehicles along a highway or part thereof constituting a part of the route of a parade or a procession, to erect temporary traffic signs to that effect.

No person shall park or leave unattended any vehicle in violation of such signs.

(C.O. 510-5; reordained as C.M.C. 510-5, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-4, 512-7, 512-23.

Sec. 510-7. Demonstrations on or Near Highway.

No person in or upon any sidewalk or in or upon any premises abutting thereon shall make any speech or harangue, or demonstrate, sell or offer for sale goods, wares or merchandise, or shall display any sign, device, information or exhibition, in consequence of which there is caused or created such a gathering of persons on such sidewalk as to interfere with pedestrian traffic thereon.

(C.O. 510-7; reordained as C.M.C. 510-7, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-1, 512-7.

Sec. 510-8. Pedestrian Assemblies.

No pedestrians shall gather and remain in crowds or assemblies at or about any point or place, or move in crowds or assemblies from place to place, upon the roadways or sidewalks, in such numbers and in such manner as to interfere with ordinary vehicular or pedestrian traffic.

(C.O. 510-8; reordained as C.M.C. 510-8, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-1, 512-7.

Sec. 510-9. Obstruction of Pedestrians or Vehicles.

No person shall stand or loiter on any sidewalk, street or public place in a manner so as to wilfully block or obstruct the free passage of pedestrians or vehicles in the lawful use of sidewalks, streets or public places.

(Sec. 510-9; ordained by Ord. No. 375-1971, eff. Oct. 28, 1971; reordained as C.M.C. 510-9, eff. Jan. 1, 1972)

Chapter 511

MISCELLANEOUS TRAFFIC PROVISIONS

Sec. 511-1. Advertising on Vehicles.
Sec. 511-2. Unnecessary Noise in Operation of Vehicles.
Sec. 511-3. Cleaning Vehicles on Street.
Sec. 511-4. Repair Business from Vehicles.
Sec. 511-5. Waste Carts in Congested Districts.
Sec. 511-6. Placing Tacks, Glass or Other Articles on Highway.
Sec. 511-8. Droves of Animals.
Sec. 511-9. Horses or Cattle on Highway.
Sec. 511-10. Reporting Accidents on Public Roads or Highways.
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Sec. 511-11-A. Reporting Accident Resulting in Damage to Realty.
Sec. 511-12. Moving Parked Vehicle.
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Sec. 511-15-A. Stopping for Person Soliciting a Ride.
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Sec. 511-26. Permitting or Authorizing Violations.
Sec. 511-27. Operation of Vehicles on Undedicated Streets.
Sec. 511-28. Controlled Access Highways; Prohibitions Thereon.
Sec. 511-29. Throwing Objects at or From Vehicle.
Sec. 511-30. Giving False Alarm or Information.
Sec. 511-31. Storage of Unlicensed or Inoperable Vehicles in Residence or Commercial Districts.
Sec. 511-33. Front Yard Parking Prohibited.
Sec. 511-34. Opening and Closing Vehicle Doors.

Sec. 511-1. Advertising on Vehicles.

No person shall operate or park on any highway any vehicle for the primary purpose of displaying advertising; provided, however, that in the case of public undertakings, or undertakings sponsored by charitable, benevolent, or religious organizations, the city manager or person designated by the city manager shall be authorized to issue temporary permits for such advertising display on vehicles where no charge is made for the use of the vehicle.

In granting any such permits, the city manager may impose such limitations and restrictions as may be conducive to the public welfare.

(C.O. 511-1; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. 511-1, eff. Jan. 1, 1972; a. Ord. No. 412-1978, eff. Nov. 3, 1978)

Cross reference—Penalty, §§ 512-1, 512-7.

Sec. 511-2. Unnecessary Noise in Operation of Vehicles.

No person shall operate a motor vehicle upon any street or highway so as to create loud or excessive noise. Any person operating a vehicle on a street or highway which emits or creates sound or noise in excess of 95 decibels as measured on the A scale of a General Radio Company No. 1551-A sound level meter, or equivalent, stationed at a distance of not less than 20 feet to the right of the vehicle as the vehicle passes the sound level meter, shall, prima facie, be guilty of producing loud or excessive noise. Nothing herein shall be construed to prohibit the blowing of horns when necessary to prevent an accident or the use of sirens or other similar devices on authorized emergency vehicles.

Whoever violates any provision of this section shall be fined not less than $12 for each offense and not more than $25 for the first offense and for a second or subsequent conviction within one year thereafter shall be fined not more than $100.

The minimum fine may be reduced or waived by a finding of the court that such reduction or waiver is required by the interest of justice.

(C.O. 511-2; a. Ord. No. 406-1958, eff. Dec. 13, 1958; reordained as C.M.C. 511-2 and 512-9, eff. Jan. 1, 1972; C.M.C. 512-9; renumbered to C.M.C. 511-2, eff. Sept. 1, 1979; and part of C.M.C. 512-23; ordained by Ord. No. 221-1976, eff. July 1, 1976; a. Ord. No. 320-1970, eff. Aug. 7, 1976; a. Ord. No. 398-1976, eff. Sept. 1, 1976 included in C.M.C. 511-2, eff. Sept. 1, 1979)

Sec. 511-3. Cleaning Vehicles on Street.

No person upon any highway shall repair, wash, polish or clean any vehicle, or park any vehicle for the purpose of so doing. This section shall not be construed to prohibit the making of such necessary emergency repairs as will permit a vehicle to proceed.

(C.O. 511-3; reordained as C.M.C. 511-3, eff. Jan. 1, 1972)

Cross references—Penalty, §§ 512-4, 512-7, 512-23; streets and sidewalks, use regulations, ch. 723.

Sec. 511-4. Repair Business from Vehicles.

No owner or operator of any vehicle shall use such vehicle or permit it to be used on the streets and public places of the city for the manufacture or repair of shoes, clothing, furniture, metal ware, tools or other articles of personal or household use.

(C.O. 511-4; reordained as C.M.C. 511-4, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-4, 512-7, 512-23.

Sec. 511-5. Waste Carts in Congested Districts.

No person shall operate or stand any scavenger waste carts within the congested dis-

trict of the city of Cincinnati between the hours of 7 a.m. and 10 a.m. and between the hours of 3 p.m. and 6 p.m.
(C.O. 511-5; reordained as C.M.C. 511-5, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-4, 512-7, 512-23.

Sec. 511-6. Placing Tacks, Glass or Other Articles on Highway.

No person shall place or knowingly drop upon any part of a highway, lane, road, street, or alley, any tacks, bottles, wire, glass, nails, or other articles, except such substances that may be placed there by proper authority for the repair or construction thereof, which may damage or injure any person, vehicle or animal traveling along or upon such highway.

Any person who drops or permits to be dropped or thrown upon any highway any destructive or injurious material shall immediately remove the material or cause it to be removed.

Any person authorized to remove a wrecked or damaged vehicle from a highway shall remove any glass or other injurious substance dropped upon the highway from such vehicle.

No person shall place any obstruction in or upon a highway without proper authority.
(C.O. 511-6; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. 511-6, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-1, 512-7.
State law reference—See ORC 4511.74.

Sec. 511-8. Droves of Animals.

No person shall drive or cause to be driven any drove of animals upon or through any highway or public ground unless a permit to do so has first been obtained from the city manager.
(C.O. 511-8; reordained as C.M.C. 511-8, eff. Jan. 1, 1972)

Cross references—Penalty, §§ 512-1, 512-7; animals, birds, fowl, ch. 701.

Sec. 511-9. Horses or Cattle on Highway.

No person shall negligently permit or suffer an animal of the horse or cattle kind to run away or go at large upon a highway.
(C.O. 511-9; reordained as C.M.C. 511-9, eff. Jan. 1, 1972)

Cross references—Penalty, §§ 512-1, 512-7; animals, birds, fowl, ch. 701.

Sec. 511-10. Reporting Accidents on Public Roads or Highways.

It shall be the duty of any operator whose vehicle is involved in any accident upon a public road or highway to report such accident to a police officer or at a police station as promptly as is practicable, and in any case within 24 hours after the occurrence of such accident. It shall be the duty of any operator whose vehicle is involved in an accident upon a public road or highway in which any person or property is injured to immediately stop such vehicle at the scene of such accident and remain at the scene of such accident until such operator has given his name and address and the license number of the vehicle to any person injured in such accident or to the operator, occupant, owner or attendant, or to any police officer at the scene of such accident.

In the event that the injured person is unable to comprehend and record the information required to be given by this section, the other driver involved in such accident shall forthwith notify the nearest police authority concerning the location of the accident, and the driver's name, address, and the registration number of the motor vehicle being operated, and then remain at the scene of the accident until a police officer arrives, unless removed from the scene by an emergency vehicle operated by a political subdivision or an ambulance.

If such accident is with an unoccupied or unattended motor vehicle, the operator so

colliding with such motor vehicle shall securely attach the information required to be given in this section, in writing, to a conspicuous place in or on said motor vehicle.
(C.O. 511-10; a. Ord. No. 403-1963, eff. Nov. 20, 1963; a. Ord. No. 47-1971, eff. Feb. 10, 1971; reordained as C.M.C. 511-10, eff. Jan. 1, 1972)

Cross reference—Penalty, § 512-2.
State law reference—See ORC 4549.02.

Sec. 511-11. Reporting Accident on Public or Private Property.

In case of accident or collision resulting in injury or damage to persons or property upon any public or private property other than public roads or highways, due to the driving or operation thereon of any motor vehicle, the person so driving or operating such motor vehicle, having knowledge of such accident or collision, shall stop, and, upon request of the person injured or damaged, or any other person shall give his or her name and address, and, if not the owner, the name and address of the owner of such motor vehicle, together with the registered number of such motor vehicle, and, if available, exhibit his or her operator's or chauffeur's license.

If the owner or person in charge of such damaged property is not furnished such information the driver of the motor vehicle involved in the accident or collision shall within 24 hours after such accident or collision, report it to a police officer or at a police station giving the date, time, and location of the accident and the same information required to be given to the owner or person in control of such damaged property.

If such accident or collision is with an unoccupied or unattended motor vehicle, the operator so colliding with such motor vehicle shall securely attach the information required to be given in this section, in writing, to a conspicuous place in or on said unoccupied or unattended motor vehicle.
(Sec. 511-11; ordained by Ord. No. 403-1963, eff. Nov. 20, 1963; a. Ord. No. 276-1968, eff. July 12, 1968; reordained as C.M.C. 511-11, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-1, 512-7.
State law reference—See ORC 4549.02.1.

Sec. 511-11-A. Reporting Accident Resulting in Damage to Realty.

The driver of any vehicle involved in an accident resulting in damage to real property, or personal property attached to such real property, legally upon or adjacent to a public road or highway shall immediately stop and take reasonable steps to locate and notify the owner or person in charge of such property of such fact, of such driver's name and address, and of the registration number of the vehicle being driven and shall, upon request and if available, exhibit his or her operator's or chauffeur's license.

If the owner or person in charge of such property cannot be located after reasonable search, the driver of the vehicle involved in the accident resulting in damage to such property shall within 24 hours after such accident forward to the police department the same information required to be given to the owner or person in control of such property and give the location of the accident and a description of the damage insofar as it is known.
(C.M.C. 511-11-A; ordained by Ord. No. 224-1972, eff. May 24, 1972)

Sec. 511-12. Moving Parked Vehicle.

Except in or in connection with the performance of their duties by members of the police force and of the fire force and by employees of the division of highway maintenance and except for the purpose of clearing

the way for transit vehicles, it shall be unlawful for any person to move any vehicle left standing on a highway by another person, unless with the consent or by the direction of the owner or person in charge of such vehicle.
(C.O. 511-12; reordained as C.M.C. 611-12, eff. Jan. 1, 1972)

Sec. 511-13. Master Key, Illegal Sale, Possession or Use.

No person shall sell or otherwise dispose of a master key designed to fit more than one motor vehicle, knowing or having reasonable cause to believe such key will be used to commit a crime.

No person shall buy, receive, have in such person's possession, or use a master key designed to fit more than one motor vehicle, for the purpose of using such key to commit a crime.

Whoever violates any provision of this section shall be fined not more than $500, or imprisoned not more than six months, or both.
(Sec. 511-13; ordained by Ord. No. 109-1968, eff. Mar. 13, 1968; reordained as C.M.C. 511-13, and C.M.C. 512-13, eff. Jan. 1, 1972; C.M.C. 512-13, renumbered to C.M.C. 511-13, eff. Sept. 1, 1979)

State law reference—See ORC 4549.042.

Sec. 511-14. Watching Parked Cars.

No person shall solicit or accept employment as a guard, watcher, or caretaker of any vehicle parked or about to be parked upon any highway.
(C.O. 511-14; reordained as C.M.C. 511-14, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-1, 512-7.

Sec. 511-15. Soliciting Rides.

No person while on a roadway outside of a safety zone shall solicit a ride from the driver of any vehicle.
(C.O. 511-15; reordained as C.M.C. 511-15, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-1, 512-7.

State law reference—See ORC 4511.51.

Sec. 511-15-A. Stopping for Person Soliciting a Ride.

No operator of a motor vehicle shall stop on any controlled access highway for the purpose of picking up a person or persons, other than the driver or occupant of a disabled vehicle, soliciting a ride.
(Sec. 511-15a; ordained by Ord. No. 88-1963, eff. Apr. 5, 1963; renumbered to C.M.C. 511-15-A, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-1, 512-7.

Sec. 511-16. Noisy Mufflers.

No person shall sell, give away for use upon, or install, or use on any motor vehicle operated in the city of Cincinnati, any type of muffler that shall modify the exhaust system of a motor vehicle in any manner that will amplify or increase the noise emitted by the motor of such vehicle.
(Sec. 511-16; ordained by Ord. No. 363-1957, eff. Oct. 11, 1957; reordained as C.M.C. 511-16, eff. Jan. 1, 1972)

Cross references—Penalty, §§ 512-1, 512-7; loud noises, § 910-7; excessive sound from a motor vehicle, § 910-10; air quality, ch. 1001.

Sec. 511-17. Distributing Cards or Stickers.

No person shall place or affix or cause to be placed or affixed in or upon any vehicle parked or standing upon a highway or any public property being used for parking purposes, any card, ticket, advertisement or paper. Any person, firm or corporation whose name appears upon any such card, ticket, advertisement, or paper as the owner or

maker of or dealer in the things advertised shall be prima facie deemed to have caused the distribution of such card, ticket, advertisement, or paper.
(C.O. 511-17; reordained as C.M.C. 511-17, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-1, 512-7.

Sec. 511-22. Citation Tags.

The city manager or person designated by the city manager, is authorized and directed to supply police officers with citation tags and parking tickets, for the purpose of giving notice to persons violating any provisions of the traffic code or of other laws or ordinances affecting the use of highways. Such notice may be given by delivering such tag or parking ticket to the violator, or by affixing it to the vehicle by means of which the violation occurred. Such citation tag or parking ticket shall, depending on the nature of the violation, either direct the violator to appear and to present such tag or parking ticket at a designated place in Cincinnati at or before a date and hour specified thereon, or how to comply with the provisions of Chapter 515 C.M.C. relative to the payment of parking infractions.

Nothing in this section shall be construed to abridge the power of a police officer to arrest any violator and take the violator into custody, provided, however, that no person may be taken into custody for the commission of a parking infraction as such is defined in Section 515-1-P1 C.M.C.
(C.O. 511-22; reordained as C.M.C. 611-22, eff. Jan. 1, 1972 a. Ord. No. 412-1978, eff. Nov. 3, 1978; a. Ord. No. 423-1992, eff. Sept. 16, 1992)

Sec. 511-23. Registering Citation Tags.

No person charged with violating any of the provisions of the ordinances relating to traffic shall present a citation tag or parking ticket or to file a written plea of guilty with the clerk of the municipal court under a name other than such person's correct and true name.
(C.O. 511-23; reordained as C.M.C. 511-23, eff. Jan. 1, 1972; a. Ord. 423-1992, eff. Sept. 16, 1992)

Cross reference—Penalty, §§ 512-1, 512-7.

Sec. 511-25. Owner's or Lessee's Responsibility.

The violation of any section or provision of the traffic code by means of a motor vehicle, except for parking infractions as defined in Section 515-1-P1, which are discussed in the last paragraph hereof, shall be prima facie evidence that such violation was committed by or with the authority or permission of the owner or lessee of such vehicle.

The owner of a vehicle shall be entitled to establish nonliability for prosecution for a violation of the traffic code by proving that at the time of the violation the vehicle was in the care, custody or control of a person other than the owner pursuant to a written lease agreement and that no other business relationship with respect to the vehicle in question exists between the operator and owner.

Proof that the vehicle was in the care, custody or control of a person other than the owner shall be established by sending a copy of such written lease agreement to the police chief within 30 days from the date of receipt by the owner of the notice of violation. The furnishing of a copy of a written lease agreement shall be prima facie evidence that a vehicle was in the care, custody or control of the lessee.

With respect to parking infractions as such are defined in Section 515-1-P1, the provisions of Section 515-8 CMC shall control as to the liability or nonliability of an owner of a vehicle.
(C.O. 511-25; reordained as C.M.C. 511-25, eff. Jan. 1, 1972; a. Ord. No. 37-1983, eff. Feb. 2, 1983; a. Ord. 423-1992, eff. Sept. 16, 1992)

Sec. 511-26. Permitting or Authorizing Violations.

No person being the owner or in charge of any vehicle shall authorize, direct or permit another person to violate any section or provision of the traffic code by means of such vehicle.
(C.O. 511-26; reordained as C.M.C. 511-26, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-1, 512-7.

Sec. 511-27. Operation of Vehicles on Undedicated Streets.

The provisions of the Cincinnati Municipal Code regulating traffic on the streets of the city of Cincinnati shall apply to the operation of vehicles on any private or undedicated street or bridge by whatever name known which is within the city of Cincinnati and which forms or is generally recognized as a part of the city street and highway system.

The city manager, or person designated by the city manager, is authorized to erect such traffic control devices and to enforce such regulations in accordance with the provisions of the traffic code on such private or undedicated streets or bridges as are necessary for the safe and orderly movement of traffic.
(C.O. 511-27; reordained as C.M.C. 511-27, eff. Jan. 1, 1972; a. Ord. No. 412-1978, eff. Nov. 3, 1978)

Cross references—Undedicated streets, improvements forbidden, § 721-23; undedicated streets, construction under public supervision, § 721-47.

Sec. 511-28. Controlled Access Highways; Prohibitions Thereon.

Except where special facilities are provided for pedestrians, controlled access highways shall be used only by motor vehicles licensed by the state of Ohio as provided in Section 4503.02 of the Revised Code, which are capable of maintaining a sustained minimum speed of 35 miles per hour, provided, however, that operators and/or passengers of disabled vehicles may use the berm or shoulder for the purpose of reaching an exit or point of communication to solicit aid but shall not cross the traveled portion of such highways.

Without limiting the generality of the above, the use of a controlled access highway by pedestrians, except where special facilities are provided, and by animal drawn vehicles, ridden, led or herded animals, push carts, bicycles, motor bicycles, agricultural tractors, and slow moving construction or hauling equipment shall be deemed unlawful.
(Sec. 511-28; ordained by Ord. No. 44-1959, eff. Mar. 28, 1959; reordained as C.M.C. 511-28, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 512-1, 512-7.
State law reference—See ORC 4511.051.

Sec. 511-29. Throwing Objects at or From Vehicle.

No person shall willfully and maliciously throw a stone or other substance or shoot a missile at or from a railway car, train, locomotive, motor bus, or other motor vehicle, or at or from a steam vessel or watercraft on any of the waters within or bordering on this state.

Whoever violates this section shall be fined not more than $500 or imprisoned not more than six months, or both.
(C.M.C. 511-29; ordained by Ord. No. 224-1972, eff. May 24, 1972)

Sec. 511-30. Giving False Alarm or Information.

No person shall knowingly give or assist in giving a false or fictitious call or report to the police department, fire department, or other law enforcement officer, or to any person dispatching or operating an ambulance or other emergency vehicle with intent to mislead, misdirect or improperly summon such officer or person.

No person shall knowingly give a false or fictitious call or report to school officials or other persons in charge of locations where groups of persons assemble when the nature of such false or fictitious call or report results in law enforcement action.

Whoever violates this section shall be fined not more than $1,000 or imprisoned for not more than one year, or both.
(C.M.C. 511-30; ordained by Ord. No. 224-1972, eff. May 24, 1972)

Sec. 511-31. Storage of Unlicensed or Inoperable Vehicles in Residence or Commercial Districts.

No owner or person in control shall park or allow the storage of any unlicensed or inoperable trailer, semi-trailer, or motor vehicle in any residence district or commercial property other than in a garage or in a place not open to view from any other residential or commercial property or any public street or place for longer than three days. For purposes of this section an unlicensed or inoperable trailer, semi-trailer, or motor vehicle draped by a tarpaulin or similar covering is deemed open to view from another residential property, public street, or place unless it is in a garage or other permanent structure. Each day's violation shall be considered a separate offense.

An "unlicensed" trailer, semi-trailer, or motor vehicle shall mean any vehicle not displaying a current, valid license plate, including any validation sticker, other than a vehicle exempt under Ohio Revised Code Chapter 4503. An "inoperable" trailer, semi-trailer, or motor vehicle shall mean any vehicle missing wheels, tires, windshield, motor, or transmission or which has been so damaged as to appear not safely operable. If any of these indicia of inoperability are observed by a person charged with enforcing this chapter, the trailer, semi-trailer, or motor vehicle shall be presumed inoperable unless and until the owner or person in control demonstrates otherwise. Any vehicle that remains parked at or near the same location for more than 30 consecutive days shall be presumed to be inoperable.
(Ordained by Ord. No. 323-1986, eff. Sept. 4, 1986; a. Ord. No. 401-1992, eff. Oct. 12, 1992; a. Ord. No. 53-2003, eff. 4-4-2003; Emer. Ord. No. 232-2022, § 2, eff. June 19, 2022)

Cross reference—Penalty, § 512-26.

Sec. 511-33. Front Yard Parking Prohibited.

A person may not park a motor vehicle on an unpaved portion of a front yard of a property used for residential purposes.
(Ordained by Ord. No. 55-1996, eff. March 25, 1996)

Cross reference—Penalty, § 512-27.

Sec. 511-34. Opening and Closing Vehicle Doors.

No person shall open the door of a vehicle on the side available to moving traffic unless and until it is reasonably safe to do so, and can be done without interfering with the movement of other traffic, including bicyclists, nor shall any person leave a door open on the side of a vehicle available to moving traffic, including bicyclists, for a period of time longer than necessary to load or unload passengers.
(Ordained by Ord. No. 241-2010, § 10, eff. July 23, 2010)

Chapter 512

PENALTIES FOR TRAFFIC VIOLATIONS

Sec. 512-1. Traffic Violation Misdemeanor.
Sec. 512-2. Violation of Sections 503-44, 511-10, and 512-8.
Sec. 512-3. Violation of Section 506-67.
Sec. 512-4. Maximum Penalties for Citation Offenses.
Sec. 512-5. Violation of Section 506-81.
Sec. 512-7. Suspension of Right to Drive.
Sec. 512-8. Driving While Right is Suspended.
Sec. 512-11. Repealed.
Sec. 512-23. Minimum Penalties for Certain Offenses.
Sec. 512-24. Minimum Penalties for Violations of Sections 503-1, 503-3, 503-5, 503-7 or 503-9.
Sec. 512-25. Minimum Penalties for Violations of Sections 502-19, 503-34, 503-54, 503-55, 505-11 or 505-17.
Sec. 512-26. Penalty for Violation of Section 511-31; Impoundment.
Sec. 512-27. Penalty for Parking in Violation of Section 511-33.
Sec. 512-28. Repealed.
Sec. 512-29. Bicycle Safety Violation Penalties.

Sec. 512-1. Traffic Violation Misdemeanor.

It is a misdemeanor for any person to violate any of the provisions of the traffic code unless such violation is a parking infraction as defined in Section 515-1-P1 or unless such violation is by a law of this state declared to be a felony.

Except as written pleas of guilty are accepted as provided by rules of the Hamilton County Municipal Court, every person convicted or found guilty of a violation of any of the provisions of the traffic code for which another penalty not provided shall, for a first offense thereof, be fined not more than $100; and for a second offense within one year thereafter, not more than $150 or imprisoned in the Hamilton County Justice Center not more than 10 days, or both; and for a third or subsequent offense within one year after the first offense shall be fined not more than $200 or imprisoned in the Hamilton County Justice Center not more than 30 days, or both, provided, further, that when any person is found guilty of a first offense for a violation of Section 506-8 upon a finding that the person operated a motor vehicle faster than 35 miles an hour in a business district or faster than 50 miles an hour in other portions, or faster than 70 miles per hour on an interstate highway, or faster than 35 miles an hour while passing through a school zone during recess or while children are going to or leaving school during the opening or closing hours, the court may, in addition to the penalty herein provided, sentence such offender to the Hamilton County Justice Center for not more than five days.
(C.O. 512-1; a. Ord. No. 414-1970, eff. Dec. 23, 1970; renumbered to C.M.C. 512-1, eff. Jan. 1, 1972; a. Ord. No. 195-1973, eff. June 1, 1973; a. Ord. No. 434-1978, eff. Oct. 18,1978; a. Ord. No. 423-1992, eff. Sept. 16, 1992)

State law reference—See ORC 4511.99, 4613.99.

Sec. 512-2. Violation of Sections 503-44, 511-10, and 512-8.

Whoever violates any provision of Section 503-44, 511-10, or 512-8 shall be fined not more than $200 or imprisoned not more than six months, or both.
(C.O. 512-2; reordained as C.M.C. 512-2, eff. Jan. 1, 1972; a. Ord. No. 406-1986, eff. Nov. 5, 1986)

Sec. 512-3. Violation of Section 506-67.

Except as written pleas of guilty are accepted as provided by rules of the Hamilton County Municipal Court, every person convicted or found guilty of violating Section 506-67 shall, for a first offense thereof, be fined $200; and for a second offense within one year thereafter, be fined $300; and for a third or subsequent offense within one year after the first offense shall be fined $400 or imprisoned in the county jail or workhouse not more than 30 days, or both; provided, further, that when any person is found guilty of a first offense for a violation of Section 506-67 upon a finding that he operated a motor vehicle faster than 35 miles an hour in a business district or faster than 50 miles an hour in other portions, or faster than 70 miles per hour on an interstate highway, or faster than 35 miles an hour while passing through a school zone during recess or while children are going to or leaving school during the opening or closing hours, the court may, in addition to the penalty herein provided, sentence such offender to the county jail or workhouse for not more than five days.
(Ordained by Ord. No. 406-1986, eff. Nov. 5, 1986)

Sec. 512-4. Maximum Penalties for Citation Offenses.

Whoever violates any provisions of Sections 503-1, 503-3, 503-5, 503-7. 503-9, 503-34, 503-38, 503-39, 503-41, 503-51, 503-52,

503-54, 503-55, 503-58, 505-4, 511-3, 511-4 and 511-5 shall be fined not more than $101.
(C.M.C. 512-4; ordained by Ord. No. 434-1978, eff. Oct. 18, 1978; a. Ord. No. 494-1981, eff. Dec. 25, 1981; a. Ord. No. 423-1992, eff. Sept. 16, 1992)

Sec. 512-5. Violation of Section 506-81.

Whoever violates any provision of Section 506-81 shall be fined $200 or imprisoned not more than six months, or both.
(Ordained by Ord. No. 406-1986, eff. Nov. 5, 1986)

Sec. 512-7. Suspension of Right to Drive.

Upon the conviction of any person for violating any section of the traffic code except parking infractions as such are defined in Section 515-1-P1, the court may, in addition to and independent of all other penalties provided in this title, prohibit such person from operating or driving a motor vehicle for a period not to exceed one year.
(C.O. 512-7; reordained as C.M.C. 512-7, eff. Jan. 1, 1972; a. Ord. No. 423-1992, eff. Sept. 16, 1992)

Sec. 512-8. Driving While Right is Suspended.

No person who has been prohibited by a court from operating or driving a motor vehicle, as provided in Section 512-7, shall operate any motor vehicle during the period of such prohibition.
(C.O. 512-8; reordained as C.M.C. 512-8, eff. Jan. 1, 1972)

Cross reference—Penalty, § 512-2.

Sec. 512-11. Repealed.

(C.O. 504-25, renumbered to C.M.C. 512-11, eff. Jan. 1, 1972; a. Ord. No. 320-1976, eff. Aug. 7, 1976; a. Ord. No. 398-1976, eff. Sept. 1, 1976; a. Ord. No. 380-1977, eff. Sept. 28, 1977; a. Ord. No. 434-1978, eff. Oct. 18, 1978; r. Ord. No. 494-1981, eff. Dec. 25, 1981)

Sec. 512-23. Minimum Penalties for Certain Offenses.

Whoever violates any provision of Sections 503-17, 503-25, 503-38, 503-39, 503-40, 503-41, 503-49, 503-51, 503-58, 505-1, 505-2, 505-4, 505-5, or 510-4 shall be fined not less than $12 for each offense, which minimum fine may be reduced or waived upon a finding by the court that such reduction or waiver is required by the interest of justice.
(C.M.C. 512-23; ordained by Ord. No. 221-1976, eff. July 1, 1976; a. Ord. No. 320-1976, eff. Aug. 7, 1976; a. Ord. No. 398-1976, eff. Sept. 1, 1976; a. Ord. 423-1992, eff. Sept. 16, 1992)

Sec. 512-24. Minimum Penalties for Violations of Sections 503-1, 503-3, 503-5, 503-7 or 503-9.

Whoever violates any provision of Sections 503-1, 503-3, 503-5, 503-7 or 503-9 shall be fined not less than $18 for each offense, which minimum fine may be reduced or waived upon a finding by the court that such reductions or waiver is required by the interest of justice.
(C.M.C. 512-24; ordained by Ord. No. 221-1976, eff. July 1, 1976; a. Ord. No. 398-1976, eff. Sept. 1, 1976)

Sec. 512-25. Minimum Penalties for Violations of Sections 502-19, 503-34, 503-54, 503-55, 505-11 or 505-17.

Whoever violates any provision of Sections 502-19, 503-34, 503-54, 503-55, 505-11 or 505-17 shall be fined not less than $24 for each offense, which minimum fine may be reduced or waived upon a finding by the court that such reduction or waiver is required by the interest of justice.
(C.M.C. 512-25; ordained by Ord. No. 221-1976, eff. July 1, 1976; a. Ord. No. 398-1976, eff. Sept. 1, 1976)

Sec. 512-26. Penalty for Violation of Section 511-31; Impoundment.

A violation of 511-31 shall constitute a Class C1 Civil Offense. Alternatively, whoever violates any provision of Section 511-31 shall be guilty of a minor misdemeanor on a first offense; if the offender has been previously convicted within the past year of violating Section 511-31, the offender shall be guilty of a misdemeanor of the fourth degree; if the offender has been twice previously convicted within the past two years of violating Section 511-31, the offender shall be guilty of a misdemeanor of the first degree and shall be fined not less than $500 and imprisoned not less than 30 days. Such minimum fine and term of imprisonment may be reduced or waived only upon a finding of the court that such reduction or waiver is required by the interest of justice.

Upon a finding of guilt, the court may order the owner of any vehicles stored or parked in violation of Section 511-31 to remove all such vehicles to a place where they may be lawfully stored or parked, or the court may order all such vehicles impounded and direct the police to cause them to be towed.
(Ordained by Ord. No. 323-1986, eff. Sept. 4, 1986; Emer. Ord. No. 232-2022, § 3, eff. June 19, 2022)

Sec. 512-27. Penalty for Parking in Violation of Section 511-33.

Whoever parks a motor vehicle in violation of Section 511-33 is guilty of a minor misdemeanor.
(Ordained by Ord. No. 55-1996, eff. March 25, 1996)

Sec. 512-28. Repealed.

(Ordained by Ord. No. 101-1999, eff. March 24, 1999; r. Ord. No. 344-2000, eff. Sept. 27, 2000)

Sec. 512-29. Bicycle Safety Violation Penalties.

Any person who violates subsection (d) of 506-61, subsection (b) of 506-71, subsections (g) or (h) of 506-84, or 511-34 shall be subject to (i) a penalty of $150.00, or (ii) if such a violation causes a collision between a motor vehicle and a bicycle, a penalty of $500.00.
(Ordained by Ord. No. 241-2010, § 11, eff. July 23, 2010)

Chapter 513

IMPOUNDMENT OF MOTOR VEHICLES

Sec. 513-1. Impoundment of Motor Vehicles.
Sec. 513-3. Delinquent Motor Vehicles.
Sec. 513-4. Forfeiture of bond.
Sec. 513-5. Notice of Impoundment.
Sec. 513-7. Impounding Fees.
Sec. 513-9. Appeal Procedure.
Sec. 513-11. Sales of Impounded Vehicles.

Sec. 513-1. Impoundment of Motor Vehicles.

Any police officer may impound and cause to be towed any motor vehicle:

(a) (1) Which is stolen; or

(2) Which is parked in violation of law; or

(3) Which is involved in an accident; or

(4) Which has been declared delinquent because of two or more outstanding traffic capiases or two or more outstanding traffic citations which have not been paid, or a bond posted pursuant to § 513-3 of the Cincinnati Municipal Code and registered for court in accordance with the provisions of § 511-23 of the Cincinnati Municipal Code; or

(5) Which has been declared delinquent because of two or more outstanding parking infractions which have not been paid or not had a bond posted pursuant to § 515-9 of the Cincinnati Municipal Code and not been registered for hearing with the Parking Violations Bureau in accordance with the provisions of CMC §§ 515-5 and 515-6; or

(6) Which does not display currently valid license plates; or

(7) Which is parked so as to block ingress or egress to a street, alley, roadway, driveway, parking facility or loading facility; or

(8) Which is in the possession of a physically arrested person; or

(9) Which is driven by a person who is under the influence of alcohol or drugs or a combination thereof; or

(10) Which is subject to seizure and impoundment pursuant to the provisions of § 909-5; or

(11) When the person in possession of a motor vehicle requests it to be impounded for safekeeping; or

(12) Which motor vehicle was used in the commission of an offense in violation of Ohio Revised Code § 2921.331, "Failure to Comply with Order or Signal of Police Officer," or

(13) Which motor vehicle was used in the commission of an offense in violation of § 729-30.

(b) A motor vehicle which is subject to impoundment under items (8) or (9) above shall not be impounded if title or right to possession of the motor vehicle can be readily established at the location where the motor vehicle is initially stopped, by the driver of the motor vehicle, or the person in possession of the motor vehicle, or the person to whom possession of the motor vehicle is to be given if:

(1) The motor vehicle can be safely and legally parked at its location; or

(2) The driver is able to arrange for someone to take care of the motor vehicle after being given a reasonable opportunity to do so, unless the driver requests that the motor vehicle be impounded for safekeeping after being advised of such driver's rights under (1) and (2) of § 513-1(b).

(c) In the event that a motor vehicle ordered to be towed pursuant to this section has been reported stolen to the Cincinnati Police Department or constitutes a stolen vehicle to the

knowledge of the Cincinnati Police Department at the time that such vehicle is towed, the Cincinnati Police Department shall take appropriate action to have such vehicle towed to an impound facility owned or controlled by the City of Cincinnati. For purposes of this chapter, a vehicle will be found to constitute "a stolen vehicle to the knowledge of the Cincinnati Police Department" if the Cincinnati Police Department has received written or verbal notice regarding the theft of the vehicle from a law enforcement agency at the time that the vehicle is towed pursuant to an order issued by the Cincinnati Police Department. The Cincinnati Police Department shall be deemed to have such notice of the vehicle's stolen status if the vehicle's owner reported the vehicle stolen in another law enforcement jurisdiction and that jurisdiction provided the report or status update to the Cincinnati Police Department in a manner reasonably calculated to have provided such information to the Cincinnati Police Department administration at the time that the vehicle in question was towed.

(C.M.C. 513-1; ordained by Ord. No. 364-1978, eff. Jan. 1, 1979; a. Ord. No. 13-1981, eff. Jan. 7, 1981; a. Ord. No. 36-1992, eff. Feb. 24, 1992; a. Ord. No. 88-1992, eff. April 3, 1992; a. Ord. No. 423-1992, eff. Sept. 16, 1992; a. Ord. No. 383-2007, § 3, eff. Nov. 24, 2007; a. Ord. No. 059-2010, § 2, eff. April 10, 2010; Ord. No. 252-2014, § 1, eff. Oct. 4, 2014; a. Ord. No. 0389-2023, § 2, eff. Nov. 15, 2023)

Analogous to C.O. 511-19; a. Ord. No. 255-1959, eff. July 1, 1959; a. Ord. No. 173-1962, eff. June 8, 1962; a. Ord. No. 265-1962, eff. Aug. 4, 1962; a. Ord. No. 512-1965, eff. Jan. 15, 1965; a. Ord. No. 69-1966, eff. Mar. 18, 1966; a. Ord. No. 90-1969, eff. Apr. 1, 1969; a. Ord. No. 110-1971, eff. Mar. 24, 1971; reordained as C.M.C. 511-19, eff. Jan. 1, 1972; a. Ord. No. 322-1972, eff. June 28, 1972; a. Ord. No. 327-1975, eff. Sept. 1, 1975; a. Ord. No. 58-1976, eff. Feb. 11, 1976; r. Ord. No. 364-1978, eff. Jan. 1, 1979, reordained Ord. No. 282-1979, eff. Sept. 1, 1979; renumbered to C.M.C. 513-1 and amended by Ord. No. 367-1979, eff. Sept. 6, 1979.

Sec. 513-3. Delinquent Motor Vehicles.

A motor vehicle shall not be declared delinquent because of outstanding parking infractions until the procedures of §§ 515-6 and 515-9 CMC have been followed.

A motor vehicle shall not be declared delinquent because of traffic citations until the notice procedures of this section have been followed.

Written notice of at least two outstanding traffic citations shall be given to the registered owner of the motor vehicle against which the traffic citations were issued. Notice, when practicable, shall be given by regular U.S. mail mailed to the last known address of the registered owner. Notice by regular U.S. mail shall be deemed delivered unless such notice is returned as undeliverable within 10 days of mailing. Where notice by mail is not practicable, written notice of possible impoundment placed on the motor vehicle at the time of citation shall be deemed to be sufficient notice. The written notice sent by regular U.S. mail shall include:

(1) Identity of the outstanding traffic citations;

(2) How information regarding the outstanding traffic citations can be obtained;

(3) Persons to whom evidence of prior disposition of the outstanding traffic citations may be submitted;

(4) A warning that failure to pay the traffic citations or post a bond equal to the amount of the accumulated fines and to register the traffic citations for a court hearing may subject the owner to arrest and/or the motor vehicle to impoundment;

(5) A schedule of impounding and storage fees.

Any motor vehicle impounded as delinquent because of traffic citations shall be released upon:

(1) Proof of payment of the outstanding traffic citation(s) or parking infraction(s) and payment of the accumulated impounding and storage fees, or;

(2) Posting of a cash bond with the clerk of court(s) in an amount equal to the sum of the accumulated penalties; proof of payment of impounding and storage fees through the Cincinnati impoundment lot; registration of the outstanding traffic citations for court or parking infractions for hearing. The motor vehicle shall be released without fee if the traffic citations were paid prior to the impoundment.

(C.M.C. 513-3; ordained by Ord. No. 364-1978, eff. Jan. 1, 1979; a. Ord. No. 34-1992, eff. Feb. 24, 1992; a. Ord. No. 89-1992, eff. April 3, 1992; a. Ord. No. 423-1992, eff. Sept. 16, 1992)

Sec. 513-4. Forfeiture of bond.

Any person posting a cash bond pursuant to §§ 513-3 or 515-9 CMC shall be deemed to have forfeited the cash bond to the City if that person fails to appear for court or hearing upon the designated day or fails to pay the accumulated fines, penalties, costs, impounding fees and storage costs stemming from the traffic citations or parking infractions. Notice of the right of the City to forfeit the cash bond shall either be given in person to the party posting the bond or mailed to their last known address.

(C.M.C. 513-4; ordained by Ord. No. 35-1992, eff. Feb. 24, 1992; a. Ord. No. 423-1992, eff. Sept. 16, 1992)

Sec. 513-5. Notice of Impoundment.

Within three days or as soon as practicable after the impoundment of any motor vehicle under the provisions of §§ 513-1 or 515-9 CMC notice shall be given of the impoundment to the owner of the motor vehicle: personally; or by regular mail sent to the last known address of the registered owner; or by certified mail where notice of the date of the auction of the motor vehicle as unclaimed is to be held is included. Such notice shall state:

(1) That the motor vehicle has been taken into custody and stored;

(2) The location where the motor vehicle is stored;

(3) The reason for impoundment;

(4) The procedure for obtaining release of the motor vehicle;

(5) The basic charges for impoundment and storage;

(6) That the person claiming the motor vehicle can challenge the validity of the impoundment at a hearing before a person designated by the chief of police;

(7) That failure to obtain release of the motor vehicle within 20 days after notice of impoundment has been given or sent as provided in this section may cause it to be sold at public auction if unclaimed; and

(8) That in the event that the impounded motor vehicle was reported stolen to the Cincinnati Police Department or constituted a stolen vehicle to the knowledge of the Cincinnati Police Department at the time that such vehicle is towed, any City-originated fees shall be waived by the City of Cincinnati for up to seven days following the towing of the vehicle excluding any fees owed pursuant to

Section 513-3 arising from outstanding parking infractions or delinquent traffic citations.

(C.M.C. 513-5; ordained by Ord. No. 364-1978, eff. Jan. 1, 1979; a. Ord. No. 423-1992, eff. Sept. 16, 1992; Ord. No. 252-2014, § 1, eff. Oct. 4, 2014; a. Ord. No. 0389-2023, § 2, eff. Nov. 15, 2023)

Sec. 513-7. Impounding Fees.

(a) The city manager is authorized to charge a fee to recover the cost and expense related to the tow, impound, administration, processing, maintenance, storage, release, sale, auction, or disposal of an impounded motor vehicle as well as the cost of maintaining the impound lot infrastructure, fixtures, and equipment, including pavement, fencing, security features, and facilities. The city manager or the city manager's designee shall determine the fees on a biennial schedule as part of the budget based on the project cost of the services herein, and the amount of such fees shall be posted conspicuously where the fees are paid.

(b) Notwithstanding the provisions of subsection (a), for the first seven days following the impoundment of a motor vehicle that is either reported stolen to the Cincinnati Police Department or that constitutes a stolen motor vehicle to the knowledge of the Cincinnati Police Department at the time that such motor vehicle is impounded, the city shall charge only any fees owed to the city pursuant to Section 513-3 arising from outstanding parking infractions or delinquent traffic citations. A motor vehicle that is either reported stolen to the Cincinnati Police Department or that constitutes a stolen motor vehicle to the knowledge of the Cincinnati Police Department can be disposed of pursuant to this chapter if not claimed or recovered by the owner within twenty days after notice of impoundment.

(c) A driver in police custody shall be given an opportunity to arrange for another person to retrieve a motor vehicle impounded solely pursuant to §§ 513-1(a)(8) or 513-1(a)(9). Notwithstanding the provisions of subsections (a) and (d), a motor vehicle shall be released without fee if it is claimed within eighteen hours of notice of its impoundment and no special equipment or handling was required to accomplish the impoundment of the motor vehicle. All motor vehicles impounded pursuant to §§ 513-1(a)(8) or 513-1(a)(9) shall be released without charge where the person arrested is not charged with a crime.

(d) An impounded motor vehicle shall be released to the owner or other person authorized by the owner to claim the motor vehicle only upon the payment of all impound and towing charges.

(e) Impounded motor vehicles which were disabled at the time of impoundment may be released without charge or at a reduced charge upon evidence establishing that the motor vehicle was disabled at the time of its impoundment and in accordance with a policy established by the chief of police and contained in the rules and regulations required by section 869-7.

(f) The owner or person entitled to possession of an impounded motor vehicle which is retained in police custody for law enforcement purposes not related to the original impoundment shall not be responsible for any impounding fees related solely to the continuing possession of the motor vehicle by the city of Cincinnati for law enforcement purposes.

(g) The impound fees authorized by the city manager pursuant to this section shall be included in the fee list authorized by section 869-7 or its successor.

(C.M.C. 513-7; ordained by Ord. No. 364-1978, eff. Jan. 1, 1979; a. Ord. No. 395-

1981, eff. Oct. 1, 1981; a. Ord. No. 591-1983, eff. Jan. 1, 1984; a. Ord. No. 400-1986, eff. Oct. 29, 1986; a. Ord. No. 404-1993, eff. Dec. 10, 1993; a. Ord. No. 437-2000, eff. Jan. 19, 2001; Emer. Ord. No. 443-2008, eff. Dec. 17, 2008; Emer. Ord. No. 384-2009, § 6, eff. Dec. 21, 2009; Ord. No. 252-2014, § 1, eff. Oct. 4, 2014; a. Emer. Ord. No. 164-2020, §§ 1, 2, eff. May 28, 2020; a. Ord. No. 0389-2023, § 2, eff. Nov. 15, 2023)

Sec. 513-9. Appeal Procedure.

(a) At the time that the owner or other person authorized by the owner to claim the motor vehicle attempts to claim an impounded motor vehicle, such person shall be advised that he or she may have the propriety of the impoundment of the motor vehicle reviewed immediately by a person designated by the chief of police. The person designated by the chief of police to hear the case shall immediately investigate the matter and issue a written decision within 48 hours stating the basis for the decision.

(b) The owner or other person authorized by the owner to claim the motor vehicle may appeal the decision of the designee of the chief of police by submitting a written notice of appeal to the Office of Administrative Hearings and paying a bond equal to the amount of any fees and/or fines due to the city within 48 hours of receiving notice of the decision. The Office of Administrative Hearings shall conduct a hearing after notifying the parties of the date and time of the hearing and promptly issue a written decision following the conclusion of the hearing.

(c) If the motor vehicle is found to be improperly impounded, the motor vehicle shall be released and any fees or fines due as a result of the impoundment shall be waived. (C.M.C. 513-9; ordained by Ord. No. 364-1978, eff. Jan. 1, 1979; a. Ord. No. 423-1992, eff. Sept. 16, 1992; a. Ord. No. 0389-2023, § 2, eff. Nov. 15, 2023)

Sec. 513-11. Sales of Impounded Vehicles.

Whenever any vehicle which has been impounded by a police officer remains in the possession of the city, unclaimed by any person having the right to possession of such vehicle, for a period of 20 days after notice of impoundment, such vehicle shall be sold under the direction of the chief of police at public auction to the highest bidder, after a notice of such auction has been given by advertisement published three times in the City Bulletin or in a newspaper of general circulation within the city of Cincinnati, or otherwise disposed of to a junk yard or other appropriate facility in accordance with the provisions of Section 4513.62 of the Ohio Revised Code.

At least 15 days prior to such sale, a notice shall be mailed by Certified Mail, Return Receipt Requested, to the owner of such motor vehicle, if ascertainable, and to all mortgage and lien holders of record, advising them of their rights to claim the vehicle upon payment of all towing, storage and impounding fees, and in addition thereto, the costs of any services performed by the city in order to properly maintain the impounded vehicle.

In addition to junk yards, scrap metal processors who can guarantee that a junk motor vehicle will never again appear back upon the city streets are hereby determined to be a proper facility relating to the disposition of junk motor vehicles as required by Section 4513.62 of the Ohio Revised Code. (C.O. 511-20; a. Ord. No. 194-1969, eff. June 13, 1969; a. Ord. No. 130-1970, eff. Apr. 29, 1970; reordained as C.M.C. 511-20, eff. Jan. 1, 1972; a. Ord. No. 497-1976, eff. Nov. 26, 1976; renumbered to C.M.C. 513-11 by Ord. No. 367-1979, eff. Sept. 6, 1979; a. Ord. No. 0389-2023, § 2, eff. Nov. 15, 2023)

Chapter 514

PARKING PERMITS

Sec. 514-1. Special Parking Permits for Veterans.
Sec. 514-3. Designation of Restricted Parking Areas.
Sec. 514-5. Residential Parking Permits Criteria.
Sec. 514-7. Permit Types, Qualifications and Fees.
Sec. 514-9. Administrations.
Sec. 514-11. Parking Restrictions.
Sec. 514-13. Fee Schedule.
Sec. 514-15. Violation and Revocation.
Sec. 514-17. Rules and Procedures.
Sec. 514-99. Penalty.

Sec. 514-1. Special Parking Permits for Veterans.

The city manager is hereby authorized to issue parking permits granting special parking privileges to war veterans who have, as a result of a service-connected disability, suffered the loss of the use of a leg or legs. Application for such permits and the extent of the special privileges granted shall be in accordance with rules and regulations to be adopted by the city manager.
(Ordained by Ord. No. 29-1949, eff. Feb. 18, 1949, as uncodified ordinance; reordained as C.M.C. 508-35, eff. Jan. 1, 1972; renumbered 514-1 by Ord. No. 544-1980, eff. Jan. 24, 1981; reordained by Ord. No. 394-1997, eff. Dec. 15, 1997)

Sec. 514-3. Designation of Restricted Parking Areas.

The city council may designate, by resolution, areas within the city in which the parking of vehicles may be restricted, in whole or in part, to holders of valid parking permits issued pursuant to this chapter. At its discretion, the appropriate committee of council may hold a public hearing when considering such a resolution.

To determine whether an area shall be designated a residential parking permit area, the traffic engineer will conduct, upon a petition by a majority of the households in such area, an engineering study prior to submitting a resolution to city council to establish the designation or withdraw an existing designation. For the purposes of this chapter, a dwelling unit is any postal address occupied by one or more persons in a residential parking permit area or a proposed residential parking permit area.
(Ordained by Ord. No. 644-1980, eff. Jan. 24, 1981; reordained by Ord. No. 394-1997, eff. Dec. 15, 1997)

Sec. 514-5. Residential Parking Permits Criteria.

The city manager shall establish the criteria for the creation of residential parking permit area. At the minimum a residential parking permit area shall:

(a) Be zoned residential and used exclusively for residential purposes.

(b) Have more registered vehicles or residences than there are available on-street parking spaces.

(c) Have the total number of spaces actually occupied by vehicles exceed 75 percent of the number of spaces available for parking during two typical 8-hour periods, excluding weekends, as disclosed by an engineering study.

(d) Be large enough to discourage non-residents from parking in adjacent non-permit areas.

(e) Have mass transit service available within at least two city blocks.

(f) Have available for the general public either off street or meter parking.

(Ordained by Ord. No. 394-1997, eff. Dec. 15, 1997)

Sec. 514-7. Permit Types, Qualifications and Fees.

There shall be three types of residential parking permits: a residents parking permit, a visitors parking permit and a temporary parking permit. Permits shall be sold only to occupants of dwelling units. Resident parking permits are limited one per person and two per dwelling unit. Visitors parking permits are limited one per dwelling unit. There is no limit on the number of temporary parking permits which may be issued to an occupant of a dwelling unit. Residents and visitors parking permits are valid for either six months or one year and shall cost fifteen

and thirty dollars respectively. Temporary parking permits are valid for two weeks and shall cost five dollars.
(Ordained by Ord. No. 394-1997, eff. Dec. 15, 1997)

Sec. 514-9. Administrations.

The city manager, or the manager's designee, shall issue parking permits and cause parking signs to be erected in restricted parking areas indicating the times, location, and conditions under which parking shall be by permit only. Upon the submission of a complete application in the form prescribed by the city manager, or the manager's designee, approval by the Parking Division, and payment of the appropriate fee, a permit shall be issued to the owner or operator of a motor vehicle who resides in a dwelling unit on a street, avenue, or other location within the residential parking permit area.
(Ordained by Ord. No. 394-1997, eff. Dec. 15, 1997; a. Ord. No. 0108-2022, §§ 1, 2, eff. April 27, 2022)

Sec. 514-11. Parking Restrictions.

No person shall park a vehicle in a residential parking permit area unless such vehicle (i) displays a valid residential parking permit permanently affixed to, and clearly visible through, the front windshield of the vehicle or front fork of a two-wheeled vehicle, or (ii) is associated with a valid parking permit, which may be issued via electronic or digital means. Visitor permits may be displayed on the dashboard. The holder of a residential parking permit is permitted to stand or park a motor vehicle displaying such permit in the designated residential parking area where parking is otherwise authorized by law.

A residential parking permit does not authorize the holder thereof to stand or park a motor vehicle in such places or during such times as the stopping, standing, or parking of motor vehicles is prohibited or reserved for specific vehicles, nor exempt the holder from the observance of any traffic or parking regulation.
(Ordained by Ord. No. 544-1980, eff. Jan. 24, 1981; reordained as C.M.C. 514-11, eff. Dec. 15, 1997; a. Ord. No. 0108-2022, §§ 3, 4, eff. April 27, 2022)

Cross reference—Penalty, § 514-99.

Sec. 514-13. Fee Schedule.

The following are exempt from the provisions of this Chapter:

(a) A vehicle bearing the special license plate for a person with a disability as provided in Ohio Revised Code 4503.44 or a similar license plate issued by any other state.

(b) A vehicle bearing the special disabled veterans license plates as provided by Ohio Revised Code 4503.41 or a similar license plate issued by any other state.

(c) A truck, commercial vehicle or a vehicle operated by a utility company, or a governmental entity when the driver is making a delivery, pickup or service call in the normal course of employment.

(d) Parking necessitated by emergency or mechanical failure.

(e) Any vehicle exempted in the aforementioned provisions may not violate any other traffic or parking regulation or control device.

(Ordained by Ord. No. 544-1981, eff. Jan. 24, 1981; reordained as C.M.C. 514-13, eff. Dec. 15, 1997; a. Ord. No. 287-23, § 1, eff. August 2, 2023)

Sec. 514-15. Violation and Revocation.

It shall constitute a violation of this chapter for any person to falsely represent himself as eligible for a residential parking permit

or to furnish any false information in an application to obtain a residential parking permit.

The city manager is authorized to revoke the residential parking permit of any permittee found to be in violation of this chapter and, upon written notification thereof, the permittee shall surrender such permit to the city manager or the manager's designee. Failure to surrender a revoked residential parking permit when requested shall constitute a violation of this chapter.
(Ordained by Ord. No. 544-1981, eff. Jan. 24, 1981; reordained as C.M.C. 514-15, eff. eff. Dec. 15, 1997)

Sec. 514-17. Rules and Procedures.

The city manager, or the manager's designee, is authorized to establish administrative regulations and procedures consistent with the intent of the chapter.
(Ordained by Ord. No. 394-1997, eff. Dec. 15, 1997)

Sec. 514-99. Penalty.

Any person who violates section 514-11 shall be guilty of a Class A civil offense. Any person who violates section 514-15 shall be guilty of a Class C civil offense.
(Ordained by Ord. No. 544-1980, eff. Jan. 24, 1981; reordained as C.M.C. 514-99, eff. Dec. 15, 1997; a. Ord. No. 394-2011, § 1, eff. Jan. 14, 2012)

Chapter 515

PARKING INFRACTIONS; COLLECTION PROCEDURES

Sec. 515-1. Definitions.
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Sec. 515-1. Definitions.

For the purposes of this chapter, the words and phrases defined in the sections hereunder shall have the meanings therein respectively ascribed to them unless a different meaning is clearly indicated by the context.
(Ordained by Ord. No. 422-1992, eff. Sept. 16, 1992)

Sec. 515-1-C. Court.

"Court" or "Municipal Court" means the Hamilton County Municipal Court, unless specifically identified as another court, in which case it means the specifically identified court.
(Ordained by Ord. No. 422-1992, eff. Sept. 16, 1992)

Sec. 515-1-O. Office of Administrative Hearings.

The Office of Administrative Hearings ("OAH") is an office of the City of Cincinnati, which is part of the Solicitor's Office. OAH hears appeals to all civil offenses issued pursuant to the Cincinnati Municipal Code, and, pursuant to this chapter, OAH hears appeals of non-criminal parking citations issued pursuant to the City's authority under Chapter 4521 of the Ohio Revised Code.
(Ordained by Emer. Ord. No. 0007-2020, § 1, eff. Jan. 21, 2020)

Sec. 515-1-P1. Parking Infraction.

"Parking Infraction" means a violation of Section 502-3, 508-1, 508-1-A, 508-1-B, 508-2, 508-3, 508-6, 508-7, 508-8, 508-11, 508-12, 508-17, 508-21, 508-22, 508-23, 508-24, 508-25, 508-26, 508-27, 508-28, 508-29, 508-31, 508-32, 508-33, 508-34, 508-36, 508-38, 509-4, 509-7, 509-8, and 510-5 of the Cincinnati Municipal Code.
(Ordained by Ord. No. 422-1992, eff. Sept. 16, 1992; a. Ord. No. 102-2004, eff. 3-31-2004; Emer. Ord. No. 351-2012, § 3, eff. Sept. 26, 2012; a. Ord. No. 071-2016, § 5, eff. April 23, 2016)

Sec. 515-1-P2. Parking Violations Bureau.

"Parking Violations Bureau" means the bureau established by the Council of the City of Cincinnati, Ohio, pursuant to Section 4521.04 of the Ohio Revised Code and Section 515-3 hereof.
(Ordained by Ord. No. 422-1992, eff. Sept. 16, 1992; a. Ord. No. 0007-2020, §§ 2, 3, eff. Jan. 21, 2020)

Sec. 515-1-V. Vehicle.

"Vehicle" has the same meaning as in Section 501-1-V of the Cincinnati Municipal Code.
(Ordained by Ord. No. 422-1992, eff. Sept. 16, 1992)

Sec. 515-1-V1. Violations Clerk.

"Violations Clerk" means the City Solicitor of the City of Cincinnati. All responsibilities of the Violations Clerk in this chapter may be performed by OAH.
(Ordained by Ord. No. 422-1992, eff. Sept. 16, 1992; a. Emer. Ord. No. 0007-2020, §§ 2, 3, eff. Jan. 21, 2020)

Sec. 515-2. Parking infraction not a criminal offense.

A violation of any parking infraction section, as such is defined in Section 515-1-P1, in the City of Cincinnati shall not be considered a criminal offense for any purpose, and shall not result in the arrest of the person who commits the violation.

A violation of any parking infraction section shall be handled pursuant to the terms of this chapter which is promulgated under

the authority of Chapter 4521 of the Ohio Revised Code and specifically Section 4521.02 ORC.
(Ordained by Ord. No. 422-1992, eff. Sept. 16, 1992)

Sec. 515-3. Parking Violations Bureau.

(a) The City of Cincinnati Parking Violations Bureau is hereby established pursuant to Section 4521.04 of the Ohio Revised Code. The Parking Violations Bureau shall be within the Office of Administrative Hearings. The Parking Violations Bureau has jurisdiction over each parking infraction that occurs within the territory of the City of Cincinnati. Notwithstanding any other provision of law to the contrary, each parking infraction that occurs within the jurisdiction of the Parking Violations Bureau and the enforcement of each such parking infraction shall be handled pursuant to and be governed by the provisions of this Chapter.

(b) The City Solicitor shall appoint any deputy clerks or other necessary clerical employees and shall appoint the parking hearing examiners. In accordance with Section 4521.05 of the Ohio Revised Code, no person shall be employed as a hearing officer unless the person is an attorney admitted to the practice of law in this state or formerly was employed as a law enforcement officer.

(c) The fine, penalties, fees, and costs established for a parking infraction shall be collected, retained, and disbursed by the Violations Clerk and OAH in coordination with the City Finance Director and/or Treasurer.
(Ordained by Ord. No. 422-1992, eff. Sept. 16, 1992; a. Emer. Ord. No. 0007-2020, §§ 2, 3, eff. Jan. 21, 2020)

Sec. 515-4. Parking ticket, service and liability.

(a) The parking ticket adopted in Section 515-10 hereof shall be used by law enforcement officers or parking enforcement officers in all cases in which a person is charged with committing a parking infraction within the City of Cincinnati. The parking ticket shall be the summons and complaint for purposes of this Chapter.

(b) A law enforcement officer or parking enforcement officer who issues a parking ticket for a parking infraction shall complete the ticket by identifying the parking infraction charged, recording the license plate number, type, and make or model of the vehicle, and indicating the date, time, and place of the parking infraction charged. The officer shall sign the ticket and affirm the facts it contains and file a copy with the Violations Clerk. The officer may either physically or electronically sign the ticket. A copy of the ticket may be filed electronically with the Violations Clerk. If the operator of the vehicle is present, the officer also shall record on the ticket the name of the operator in a space provided on the ticket for identification of the offender, and then shall personally serve the parking ticket upon the operator. If the operator of the vehicle is not present, the officer shall insert the word "owner" in the space provided on the ticket for identification of the offender, and then shall constructively serve the parking ticket upon the owner of the vehicle by affixing the ticket to the vehicle in a conspicuous place.

Constructive service of a parking ticket upon an owner of a vehicle by affixation as provided in this Section, or by the procedure described in paragraph (d) of this Section, has the same force and effect, and potentially subjects both the owner and the operator of the vehicle whose act or omission resulted in the parking infraction, if different, to the same fine, penalties, fees and costs for failure to timely answer or to appear if a hearing is requested, as if the parking ticket were personally served on both the owner and operator of the vehicle at the time of the violation.

(c) The original of a parking ticket issued pursuant to this Section or any true copy of it, shall be considered a record kept in the ordinary course of business of the City of Cincinnati and of the law enforcement agency whose officer issued it, and shall be prima facie evidence of the facts it contains. A true copy of a parking ticket includes an electronic copy of the ticket.

(d) An operator of a vehicle who is not the owner of the vehicle, but who operates it with the express or implied permission of the owner is the agent of the owner for purposes of the receipt of parking tickets served in accordance with this Section, and personal service of a parking ticket upon the operator in accordance with this Section constitutes constructive service upon the owner for purposes of this Chapter. The operator of a rented or leased vehicle whose act or omission resulted in an alleged parking infraction shall not be considered an agent of the owner if the owner is engaged in the business of renting or leasing vehicles pursuant to a written rental or lease agreement and if the owner follows the procedures set forth in Section 515-8 hereof.

(e) Except as provided is Section 515-8 hereof, when a parking ticket is issued for a parking infraction and is served pursuant to this Section, the operator of the vehicle whose act or omission resulted in the parking infraction for which the ticket was issued and the owner of the vehicle involved in the parking infraction, if different, are jointly liable for the parking infraction and any fine, penalty, fees and costs arising out of the parking infraction. Any owner of a vehicle who pays any fine, penalty, fee and cost imposed for a parking infraction pursuant to this Chapter may recover the amount paid from the operator of the vehicle whose act or omission resulted in the parking infraction.

(Ordained by Ord. No. 422-1992, eff. Sept. 16, 1992; Emer. Ord. No. 53-2005, eff. Feb. 16, 2005; Emer. Ord. No. 0069-2007, § 1, eff. Feb. 22, 2007)

Sec. 515-5. Answer; Procedures.

(a) A person who is personally or constructively served with a parking ticket charging the commission of a parking infraction may answer the charge by appearing personally before the Parking Violations Bureau, by mail, or electronically if authorized and as instructed on the Parking Violations Bureau website. An answer shall be made within fourteen days from the date of the infraction and shall be in one of the following forms:

(1) An admission that the person committed the parking infraction, by payment of any fine arising out of the parking infraction;

(2) An admission that the person committed the parking infraction, with an explanation of the circumstances surrounding the parking infraction;

(3) A denial that the person committed the parking infraction and a request for a hearing relative to the infraction. If the person desires the presence of the law enforcement officer or parking enforcement officer who issued the parking ticket at the hearing, the person must request that presence in the answer.

(b) (1) A person who admits that he or she committed a parking infraction shall, and a person who admits that he or she committed a parking infraction with explanation may, when making their answer, pay the fine arising out of the infraction admitted to the Parking Violations Bureau.

(2) A person who admits that they committed a parking infraction with explanation shall submit evidence to the Parking Violations Bureau that explains the circumstances surrounding the parking infraction. The evidence may be submitted in person

or, to avoid the necessity of personal appearance, may be sent as affidavits and other documentary evidence, by mail, or electronically if authorized and as instructed on the Parking Violations Bureau website. The Parking Violations Bureau, when it receives an answer admitting that a person committed a parking infraction with explanation, shall promptly determine whether the explanation mitigates the fact that the person committed the parking infraction and notify the person in writing of its determination.

(i) If the Parking Violations Bureau determines that the explanation mitigates the fact that the person committed the parking infraction, the Parking Violations Bureau shall eliminate or reduce the amount of the fine arising out of the parking infraction. If the fine is eliminated or reduced and the person has previously paid the fine, the amount paid in excess of the revised fine shall be returned to the person; if the fine is eliminated or reduced and the person has not previously paid the fine, the person shall pay only the amount of the revised fine.

(ii) If the Parking Violations Bureau determines that the explanation does not mitigate the fact that the person committed the parking infraction, the person owes the entire amount of the fine arising out of the parking infraction, and if the person has not previously paid the fine, the person shall pay the entire amount of the fine. If the person admits that he or she committed a parking infraction with explanation and the person fails to pay the amount of the fine due within ten days after receiving notice of the Parking Violations Bureau's determination, unless the amount due has been previously paid, the Parking Violations Bureau's determination and the amount of the fine due shall be considered a judgment and shall be treated as if it were a judgment rendered subsequent to a hearing held pursuant to subsection (b) of Section 515-7 of this chapter.

(3) A person who denies that he or she committed a parking infraction shall be granted a hearing concerning the infraction. A person who denies that he or she committed a parking infraction may request that the hearing be conducted outside of the person's presence and that the hearing officer should consider only the materials submitted by the person by mail or in electronic format. The Parking Violations Bureau shall set a date for the hearing and notify the person, in writing, of the date, time, and place of the hearing, or shall assign a hearing officer to hold the hearing outside of the presence of the person if the person has so requested. The hearing shall be conducted by a hearing officer of the Parking Violations Bureau in accordance with Section 515-7 hereof.

(c) (1) If a person who is personally or constructively served with a parking ticket charging the commission of a parking infraction fails to timely answer the charge, as provided in subsection (a) of this Section, the Parking Violations Bureau shall issue the proper notifications of infraction

pursuant to Section 515-6 of this chapter and proceed according to that section.

(2) A late fee of $10 will be added to the initial fine if the charge is not answered within the fourteen day period provided by subsection (a) of this Section and may result in the imposition of additional penalties or costs.

(3) If a person who is personally or constructively served with a parking ticket charging the commission of a parking infraction fails to answer the charge within twenty-one days, the $10 late fee shall be removed and the initial fine will double.

(d) The issuance of a parking ticket, the filing of or failure to file an answer by a person personally or constructively served with the ticket, the substance of an answer, the payment of any fine, penalty, fee, and cost, and any other relevant information shall be entered in the records of the Parking Violations Bureau.
(Ordained by Ord. No. 422-1992, eff. Sept. 16, 1992; a. Ord. No. 185-2015, § 4, eff. Oct. 1, 2015; a. Emer. Ord. No. 0007-2020, §§ 2, 3, eff. Jan. 21, 2020)

Sec. 515-6. Failure to answer.

(a) When a person is personally or constructively served with a parking ticket charging the commission of a parking infraction in accordance with Section 515-4 hereof and the person fails to answer the charge within the time specified in Section 515-5 hereof, the Parking Violations Bureau shall send notification of infractions as follows:

(1) If the person who fails to answer was the operator of the vehicle involved in the parking infraction at the time of the commission of the parking infraction and was personally served with the parking ticket, a notification of infraction shall be sent to that person, and additionally if such person is not the owner of the vehicle, as determined from the records of the Bureau of Motor Vehicles, a notification of infraction also shall be sent to the owner at his most recent address appearing in such records;

(2) If the person who fails to answer was the owner of the vehicle and was constructively served with the parking ticket, a notification of infraction shall be sent to the owner at his most recent address appearing in the records of the Bureau of Motor Vehicles.

(b) A notification of infraction shall be sent within twelve months after the expiration of the time specified in Section 515-5 hereof for the making of an answer, shall be sent by first class mail, and shall contain all of the following:

(1) An identification of the parking infraction with which the person was charged and the time and date of the parking infraction, which identification may be a copy of the parking ticket charging the parking infraction that was personally or constructively served upon the person;

(2) An identification of the amount of the fine, penalties, fees, and costs arising out of the parking infraction that are due;

(3) A warning that the person must answer the parking infraction charged in the ticket within thirty (30) days or a default civil judgment in the amount of the fine, penalties, fees, and costs due may be entered against the person;

(4) A description of the allowable answers that may be made and notification

that the person will be afforded a hearing before the Parking Violations Bureau if he denies in his answer that he committed the parking infraction;

(5) An identification of the manners in which and the entity to which an answer may be made;

(6) A warning that if the person fails to appear at a requested hearing, a default civil judgment in the amount of the fine, penalties, fees, and costs due may be entered against the person.

(c) A person who receives a notification of infraction pursuant to this Section may answer the parking infraction with which he is charged that is identified in the notification of infraction in any of the manners provided in Division (a) of Section 515-5 hereof for answers to parking infractions charged in a parking ticket. An answer under this Section shall be made within thirty (30) days after the day on which the notification of infraction was mailed, and shall be in one of the forms specified in Divisions (a)(1), (2), and (3) of Section 515-5 hereof for answers to parking infractions charged in a parking ticket, except that if the answer includes payment of the fine arising out of the parking infraction any penalty, fee, or cost arising out of such infraction also shall be paid. The answer shall be governed by the provisions of Division (b) of Section 515-5 hereof for answers relative to parking infractions charged in a parking ticket, except that any determination of the amount to be paid under an answer admitting the commission of the parking infraction with explanation also shall consider any penalty, fee, or cost arising out of such infraction.

If a person who is issued a notification of infraction pursuant to Section 4521.07 of the Ohio Revised Code and Division (c) of this Section, fails to timely answer, the failure to answer shall be considered an admission that the person committed the parking infraction, and a default civil judgment, in the amount of the fine, penalties, fees, and costs due may be entered against the person. Failure to answer the parking infraction within thirty (30) days after the date on which the notification of infraction was mailed may result in the imposition of additional penalties, fees, or costs.
(Ordained by Ord. No. 422-1992, eff. Sept. 16, 1992)

Sec. 515-7. Hearing Procedure.

(a) If a person who is personally or constructively served with a parking ticket charging the commission of a parking infraction or who receives a notification of infraction, when answering the charge denies committing the infraction, the Parking Violations Bureau shall conduct a hearing to determine if the person committed the parking infraction. Each hearing shall be conducted by a hearing officer of the Parking Violations Bureau. Each hearing shall be conducted in such manner as the hearing officer considers appropriate. Rules regarding the admissibility of evidence shall not be strictly applied in the hearing, but all testimony shall be under oath. Parking Violations Bureau hearing procedures are governed by this chapter. Hearing officers are not required to comply with the procedural obligations placed on city hearing examiners under Sections 113-7 through 113-15 of the Cincinnati Municipal Code.

(1) At the hearing, the City of Cincinnati, whether the Cincinnati Police Department or the Parking Division or any successor City office that issues non-criminal parking citations, has the burden of proving by a preponderance of the evidence that the person

for whom the hearing is being conducted committed the parking infraction.

(2) If the person, in his or her answer, denies committing the parking infraction and requests the presence at the hearing of the law enforcement officer or parking enforcement officer who issued the parking ticket, the officer shall be required to attend the hearing unless the hearing officer determines that the officer's presence is not required. If the officer's presence at the hearing has been requested and the officer is unable to attend the hearing on the day and at the time scheduled, the hearing officer may grant a reasonable continuance.

(3) The person for whom the hearing is being conducted may present any relevant evidence and testimony at the hearing. The person does not have to attend the hearing if he submits documentary evidence to the hearing officer prior to the day of the hearing.

(b) The City shall submit the original parking ticket that was personally or constructively served on the person or a true copy of that ticket, and information from the Bureau of Motor Vehicles that identifies the owner of the vehicle. The ticket and the information in proper form is prima facie evidence that the registered owner of the vehicle was the person who committed the parking infraction. The City may present additional evidence and testimony at the hearing. The City does not have to be represented at the hearing by an attorney.

(c) In accordance with Ohio Revised Code Section 4521.08(B):

(1) If a person for whom a hearing is to be conducted under subsection (a) of this section appears at the scheduled hearing or submits evidence in accordance with that subsection, the hearing officer shall consider all evidence and testimony presented and shall determine whether the City has established, by a preponderance of the evidence, that the person committed the parking infraction. If the hearing officer determines that the person committed the infraction, an order indicating the determination as a judgment against the person and requiring the person to pay the appropriate fine and any additional penalties, fees, and costs shall be entered in the records of the Parking Violations Bureau.

(2) If a person for whom a hearing is to be conducted under subsection (a) of this section fails to appear at the scheduled hearing and fails to submit evidence in accordance with that subsection, the hearing officer shall, if he or she determines from any evidence and testimony presented at the hearing by a preponderance of the evidence that the person committed the parking infraction, enter a default judgment against the person and require the person to pay the appropriate fine and any additional penalties, fees, and costs. A default judgment entered under this subsection shall be entered in the records of the Parking Violations Bureau.

(3) If a person who is sent a notification of infraction pursuant to Section 515-6 of this chapter does not timely answer, as provided in subsection (c) of that section, the hearing officer of the Parking Violations Bureau shall, if he or she determines from any evidence and testimony presented by the City, by a preponderance of the evidence, that the person committed

the parking infraction, enter a default judgment against the person and require the person to pay the appropriate fine and any additional penalties, fees, and costs. A default judgment entered under this subsection shall be entered in the records of the Parking Violations Bureau.

(4) If the hearing officer does not determine, by a preponderance of the evidence, that a person in any of the classes described in subsection (c)(1), (2), or (3) of this Section committed the parking infraction, the hearing officer shall enter judgment against the City, shall dismiss the charge of the parking infraction against the person, and shall enter the judgment and dismissal in the records of the Parking Violations Bureau.

(5) A default judgment entered under this section may be vacated by the hearing officer who entered it if all of the following apply:

(A) The person against whom the default judgment was entered files a motion with the Parking Violations Bureau within one year of the date of entry of the judgment;

(B) The motion sets forth a sufficient defense to the parking infraction out of which the judgment arose;

(C) The motion sets forth excusable neglect as to the person's failure to attend the hearing or answer the notification of infraction.

(d) In accordance with Ohio Revised Code Section 4521.08(C), payment of any judgment or default judgment entered against a person pursuant to this section shall be made to the Violations Clerk of the Parking Violations Bureau within ten days of the date of entry. All money paid in satisfaction of a judgment or default judgment shall be disbursed by the Violations Clerk to the Treasurer of the City of Cincinnati, and the Violations Clerk shall enter the fact of payment of the money in the records of the Parking Violations Bureau. If payment is not made within this time period, the judgment or default judgment may be filed with the Office of the Clerk of Court of Hamilton County, Civil Division, and when so filed, shall have the same force and effect as a money judgment in a civil action rendered in the Court.

(i) Judgments and default judgment filed with the Hamilton County Municipal Court, Office of the Clerk of Court, Civil Division, shall be maintained in a separate index and judgment roll from other judgments rendered in that Court. Computer printouts, microfilm, microdot, microfiche, or other similar data recording techniques may be utilized to record such judgments.

(ii) When a judgment or default judgment is filed with the Court, execution may be levied, and such other measures may be taken for its collection as are authorized for the collection of an unpaid money judgment in a civil action rendered in that Court. The Municipal Court may assess costs against the judgment debtor, in an amount not exceeding ten dollars ($10.00) for each parking infraction, to be paid upon satisfaction of the judgment.

(e) In accordance with Ohio Revised Code Section 4521.08(D) any person against whom a judgment or default judgment is entered pursuant to this section, or the City if judgment is entered against the City pursuant to this section, may appeal the judgment or default judgment to the Hamilton County

Municipal Court by filing notices of appeal with the Parking Violations Bureau and the Municipal Court within fifteen days of the date of entry of the judgment and by the payment of such reasonable costs as the Court requires. Upon the filing of an appeal, the Court shall schedule a hearing date and notify the parties of the date, time, and place of the hearing. The hearing shall be held by the Court in accordance with the rules of the Court. Service of a notice of appeal under this subsection by a person stays enforcement and collection of the judgment or default judgment from which appeal is taken by the person. Notwithstanding any other provision of law, the judgment on appeal to the Municipal Court is final, and no other appeal of the judgment of the Parking Violations Bureau and no appeal of the judgment of the Municipal Court may be taken.

(f) A default judgment entered pursuant to this section may be filed with the Municipal Court, Office of the Clerk of Court, Civil Division, under subsection (d) of this section at any time within three years after the date of issuance of the parking ticket charging the parking infraction out of which the judgment arose. This subsection applies to any ticket issued for an offense that would be a parking infraction on or after September 16, 1992, if the ticket was issued within three years prior to September 16, 1992 and a warrant has not been issued and served on the operator or owner of the vehicle involved in the offense.

(Ordained by Ord. No. 422-1992, eff. Sept. 16, 1992; a. Emer. Ord. No. 0007-2020, §§ 2, 3, eff. Jan. 21, 2020)

Sec. 515-8. Nonliability of owner.

(a) An owner of a vehicle is not jointly liable with an operator of the vehicle whose act or omission resulted in a parking infraction for the parking infraction or any fine, penalty, fee, or cost arising out of the parking infraction under this Chapter if either of the following apply:

(1) The owner answers the charge of the parking infraction under Sections 515-5 or 515-6 hereof, the answer denies that he committed the infraction and requests a hearing concerning the infraction, the owner additionally asserts and provides reasonable evidence at that time to prove that the vehicle, at the time of the commission of the parking infraction, was being used by the operator without the owner's express or implied consent, and the Parking Violations Bureau determines that the vehicle was being used without the owner's express or implied consent at that time. If the Parking Violations Bureau does not so determine, it shall conduct the hearing concerning the infraction according to Section 515-7 hereof.

(2) The owner answers the charge of the parking infraction under Sections 515-5 or 515-6 hereof, the answer denies that he committed the parking infraction, the owner additionally submits evidence at that time that proves that, at the time of the alleged commission of the infraction, the owner was engaged in the business of renting or leasing vehicles under written rental or lease agreements, and the owner additionally submits evidence that proves that, at the time of the alleged commission of the parking infraction, the vehicle in question was in the care, custody, or control of a person other than the owner pursuant to a written rental or lease agreement. If the owner does not so prove, the Parking Violations Bureau shall conduct a hearing relative to the infraction according to Section 515-7 hereof.

(3) The owner, at a hearing concerning the parking infraction conducted in accordance with Section 515-7 hereof, proves that the vehicle, at the time of the parking infraction, was being used by the operator without the owner's express or implied consent or proves the facts described in Division (a)(2) of this Section.

(b) An owner of a vehicle who is engaged in the business of renting or leasing vehicles under written rental or lease agreements, but who does not satisfy the additional requirements of Division (a)(2) of this Section is not liable for any penalties arising out of a parking infraction involving the vehicle if at the time of the commission of the parking infraction, the vehicle was in the care, custody, or control of a person other than the owner pursuant to a written rental or lease agreement, and if the owner answers the charge of the parking infraction by denying that he committed the parking infraction or by paying the fine arising out of the parking infraction within thirty (30) days after actual receipt of the parking ticket charging the infraction or, if the owner did not receive the parking ticket, within thirty (30) days after receipt of notification of infraction.

Proof that the vehicle was in the care, custody, or control of a person other than the owner pursuant to a written rental or lease agreement at the time of the alleged parking infraction shall be established by sending a true copy of the rental or lease agreement or an affidavit to that effect to the Parking Violations Bureau within thirty (30) days after the date of receipt by the owner of the parking ticket charging the infraction or, if the owner did not receive the parking ticket, within thirty (30) days after receipt of the notification of infraction. The submission of a true copy of a written rental or lease agreement or affidavit shall be prima facie evidence that a vehicle was in the care, custody, or control of a person other than the owner. In addition, any information required by Division (a)(2) of this Section may be provided on magnetic tape or another computer readable media in a format acceptable to the City of Cincinnati or the Violations Clerk.
(Ordained by Ord. No. 422-1992, eff. Sept. 16, 1992)

Sec. 515-9. Impoundment and immobilization.

(a) A vehicle involved in three or more parking infractions in which judgments or default judgments have been entered into the records of the Parking Violations Bureau, is subject to impoundment by law enforcement officers of the City of Cincinnati or their agents. Impoundment pursuant to this section is permitted without regard to whether the vehicle, at the time of impoundment, is legally parked. The owner of a vehicle impounded pursuant to this Chapter shall be liable for impoundment fees and storage charges as provided by Section 513-7 of this Code.

(b) A vehicle impounded under paragraphs (a) or (c) of this section shall be released to the owner, or person lawfully authorized by the owner to claim the vehicle, if the owner or person lawfully authorized by the owner does both of the following:

(1) presents a valid certificate of title to the vehicle to the Cincinnati Police Department; and

(2) either:

(A) pays all outstanding judgments or default judgments issued by the Parking Violations Bureau; or

(B) posts a bond equal to the amount of fines, penalties, fees, and costs. In no case, however, shall the

owner of a vehicle impounded pursuant to this Chapter be required to post a bond in excess of one thousand dollars ($1,000) to obtain release of the vehicle.

(c) Notwithstanding paragraphs (a) and (b) of this section, a vehicle parked, stopped, or standing on a public street or highway in commission of a parking infraction is subject to impoundment.

(d) A vehicle involved in three or more parking infractions in which judgments or default judgments have been entered into the records of the Parking Violations Bureau is subject to immobilization. A vehicle may be immobilized by law enforcement officers or parking enforcement officers of the City of Cincinnati or parking enforcement officers acting pursuant to any contract with the city or vehicle immobilization services agreement with the City. Immobilization pursuant to this section is permitted without regard to whether the vehicle, at the time of immobilization, is legally parked.

(e) A vehicle immobilized under paragraph (d) of this section shall be released to the owner or the person lawfully authorized to claim the vehicle upon the owner or person lawfully authorized to claim the vehicle paying the judgments or default judgments, or posting a bond equal to the amount of fines, penalties, fees and costs. In no case, however, shall the owner of a vehicle immobilized pursuant to this Chapter be required to post a bond in excess of one thousand dollars ($1,000) to obtain release of the vehicle.

(Ordained by Ord. No. 422-1992, eff. Sept. 16, 1992; Emer. Ord. No. 058-2013, § 9, eff. March 6, 2013; Emer. Ord. No. 152-2017, § 11, eff. July 1, 2017; Emer. Ord. No. 166-2018, § 4, eff. July 1, 2018; Emer. Ord. No. 168-2018, § 6, eff. July 1, 2018; Ord. No. 0339-2021, §§ 1, 2, eff. September 2, 2021; Ord. No. 0389-2023, § 2, eff. Nov. 15, 2023)

Sec. 515-10. Parking ticket adopted.

The City Manager is hereby authorized to adopt the parking ticket to be used by law enforcement officers and parking enforcement officers as the summons and complaint in all cases in which a person is charged with a parking infraction within the City of Cincinnati. A copy of such ticket shall be kept on file in the Cincinnati Police Planning Section, located at 310 Ezzard Charles Drive, Cincinnati, Ohio 45214.

(Ordained by Ord. No. 422-1992, eff. Sept. 16, 1992; Emer. Ord. No. 53-2005, eff. Feb. 16, 2005)

Sec. 515-11. Parking Infraction Fines.

(a) The following fines for parking infractions are hereby established:

Sec. 502-3	Parking prohibitions during street sweeping operations	$65.00
Sec. 508-1	Stopping and parking	65.00
Sec. 508-1	Unauthorized stopping and parking	65.00
Sec. 508-1A(c)	Unauthorized stopping and parking within 10 feet of a fire hydrant	250.00
Sec. 508-1-B	Unauthorized stopping and parking along streetcar track	100.00
Sec. 508-2	Parking and stopping restrictions, unauthorized	65.00
Sec. 508-3	Parking so as to create obstruction prohibited	65.00
Sec. 508-6	No standing and no parking zones	65.00
Sec. 508-7	Truck loading zones	65.00
Sec. 508-8	No standing, no stopping, no parking zones designated	65.00
Sec. 508-11	Parking of trucks restricted	65.00
Sec. 508-12	Parking unreasonable time	65.00
Sec. 508-17	Trucks obstructing traffic	65.00
Sec. 508-21	Parking in public transit stops	65.00
Sec. 508-22	Unlawful parking of taxicabs	65.00
Sec. 508-23	Trailer parking	44.00
Sec. 508-24	Taxicab, restrictions	65.00
Sec. 508-25	Unauthorized license plates	65.00
Sec. 508-26	Parking at curbs	65.00
Sec. 508-27	Parking on narrow streets	65.00
Sec. 508-28	Parking on grade	65.00
Sec. 508-29	Parking vehicle for sale	65.00
Sec. 508-31	Locks on motor vehicle	65.00
Sec. 508-32	Repaired, serviced, or stored vehicles, parking on streets	65.00
Sec. 508-33	Parking on controlled access highways	65.00
Sec. 508-34	Snow emergency	56.00
Sec. 508-36	Accessible parking	250.00
Sec. 508-38	Parking in reserved car sharing spaces	65.00
Sec. 510-5	Parking on parade route	65.00

(b) The following fines for parking infractions issued on or before June 30, 2013, are hereby established:

Sec. 509-4	Metered spaces - across line	$35.00
Sec. 509-7	Unmetered parking	35.00
Sec. 509-8	Repeat metering	35.00

(c) The following fines for parking infractions issued on or after July 1, 2013 are hereby established:

Sec. 509-4	Metered spaces - across line	$45.00
Sec. 509-7	Unmetered parking	45.00
Sec. 509-8	Repeat metering	45.00

(Ordained by Ord. No. 422-1992, eff. Sept. 16, 1992; a. Ord. No. 403-2004, eff. Dec. 15, 2004; Emer. Ord. No. 53-2005, eff. Feb. 16, 2005; Emer. Ord. No. 179-2005, eff. June 10, 2005; Emer. Ord. No. 444-2008, eff. Dec. 17, 2008; Emer. Ord. No. 448-2008, eff. Dec. 17, 2008; Emer. Ord. No. 351-2012, § 5, eff. Sept. 26, 2012; Emer. Ord. No. 058-2013, § 9, eff. March 6, 2013; a. Ord. No. 185-2015, § 2, eff. July 17, 2015; Emer. Ord. No. 255-2015, § 1, eff. July 1, 2015; a. Ord. No. 071-2016, § 6, eff. April 23, 2016; Emer. Ord. No. 0249-2017, § 1, eff. Sept. 13, 2017; a. Emer. Ord. No. 0219-2019, eff. June 19, 2019; a. Ord. No. 287-23, § 1, eff. August 2, 2023)

Editor's note—The amendment to § 515-11 made by Ord. No. 185-2015, § 2, was adopted on June 17, 2015, with an effective date of July 17, 2015. Subsequent Ord. No. 255-2015, § 2, adopted July 1, 2015, changed said amendment to an emergency measure, making it effective immediately upon adoption.

Chapter 517

COMMERCIAL AND HEAVY VEHICLES

Sec. 517-1. Definitions.
Sec. 517-3. Oversize or Overweight Vehicle Operation on City Roadways and State Routes; State Permit.
Sec. 517-5. Maximum Width, Height and Length.
Sec. 517-7. Route and Load Information.
Sec. 517-9. Wheel Protectors.
Sec. 517-11. Violation of Ohio Revised Code and Public Utilities Commission of Ohio Rules.
Sec. 517-13. Commercial Vehicle Lamps and Reflectors.
Sec. 517-15. Tractor Lamps.
Sec. 517-17. Marking of Vertical Clearance.
Sec. 517-19. Use of Alleys.
Sec. 517-21. Vehicle Trains, Street Restrictions.
Sec. 517-23. Truck Restrictions, Intercity.
Sec. 517-25. Truck Restriction, Residential Streets.
Sec. 517-27. Weight of Vehicle.
Sec. 517-29. Weight on Tires.
Sec. 517-31. Inspection as to Unlawful Load.
Sec. 517-33. Damaging Street Surface.
Sec. 517-35. Bridges, Carrying Capacity of.
Sec. 517-37. Excess Load; Moving Permit.
Sec. 517-39. Tires.
Sec. 517-99. Penalties.

Sec. 517-1. Definitions.

(a) *Words and Phrases.* For the purposes of this chapter, the words and phrases used herein shall have the definition as ascribed thereto in Title 49 CFR, Parts 171-180, 383, 387, and 390-397, including amendments, additions and deletions thereto unless a separate definition is specifically set forth in this chapter.

(b) *Director.* "Director" shall mean the Ohio Director of Transportation.

(c) *Vehicle.* "Vehicle" shall have the same definition meaning as ascribed thereto in Section 501-1-V of the Cincinnati Municipal Code.
(Ordained by Ord. No. 36-1998, eff. March 6, 1998)

Sec. 517-3. Oversize or Overweight Vehicle Operation on City Roadways And State Routes; State Permit.

(a) No person shall operate or move a vehicle or combination of vehicles upon any roadway within the municipality of a size or weight of vehicle or load exceeding the maximum specified in Ohio Revised Code §§ 5577. 1 to 5577.09, inclusive.

(b) No person shall operate or move a vehicle or combination of vehicles upon any roadway within the municipality unless in compliance with Ohio Revised Code § 4513.7, inclusive.

(c) No person shall operate or move a vehicle or combination of vehicles upon any roadway within the municipality unless in compliance with Ohio Revised Code § 5728.6 requiring a valid highway use permit.

(d) The requirements contained in subsections (a), (b) and (c) hereof shall not apply when a special written permit has been issued by the Ohio Director of Transportation.Every such permit shall be carried in the vehicle or combination of vehicles to which it refers and shall be open to inspection by any police officer.

(e) No holder of a permit issued by the Ohio Director of Transportation shall be required to obtain any local permit or license or pay any local fee or charge for movement on any state route within the municipality, however, no person shall operate any such vehicle or combination of vehicles upon any roadway within the municipality which is not a state route.
(Ordained by Ord. No. 36-1998, eff. March 6, 1998)

Cross reference—Penalty, § 517-99.

Sec. 517-5. Maximum Width, Height and Length.

No vehicle shall be operated upon the public highways, streets, bridges and culverts within the municipality, whose dimensions exceed those specified in this section.

(a) No such vehicle shall have a width in excess of:

(1) 104 inches for passenger bus type vehicles operated exclusively within municipal corporations;

(2) 102 inches, excluding such safety devices as are required by law, for passenger bus type vehicles operated over freeways, and such other state roads with minimum pavement widths of twenty-two feet, except those roads or portions thereof over which operation of 102-inch buses is prohibited by order of the Ohio Director of Transportation;

(3) 132 inches for traction engines;

(4) 102 inches, including load, for all other vehicles, except that the director may, by journal entry, prohibit the opera-

tion of 102-inch vehicles on such state routes or portions thereof as the director designates.

(b) No such vehicle shall have a length in excess of:

(1) 60 feet for passenger bus type vehicles operated by a regional transit authority pursuant to Ohio Revised Code 306.30 to 306.54;

(2) 40 feet for all other passenger bus type vehicles;

(3) 53 feet for any semitrailer when operated in a commercial tractor-semitrailer combination, with or without load, except that the director may, by journal entry, prohibit the operation of any such commercial tractor-semitrailer combination on such state routes or portions thereof as the director designates;

(4) 28.5 feet for any semitrailer or trailer when operated in a commercial tractor-semitrailer-trailer or commercial tractor-semitrailer-semitrailer combination, except that the director may, by journal entry, prohibit the operation of any such commercial tractor-semitrailer-trailer or commercial tractor-semitrailer-semitrailer combination on such state routes or portions thereof as the director designates.

(5) 75 feet for drive-away saddlemount vehicle transporter combinations and drive-away saddlemount with fullmount vehicle transporter combinations, not to exceed three saddlemounted vehicles, but which may include one fullmount;

(6) 65 feet for any other combination of vehicles coupled together, with or without load, except as provided in subsections (b)(3) and (4) and in subsection (d) hereof;

(7) 40 feet for all other vehicles except trailers and semitrailers, with or without load.

(c) No such vehicle shall have a height in excess of thirteen feet six inches, with or without load.

(d) Any automobile transporter or boat transporter shall be allowed a length of sixty-five feet and any stinger-steered automobile transporter or stinger-steered boat transporter shall be allowed a length of seventy-five feet, except that the load thereon may extend no more than four feet beyond the rear of such vehicles and may extend no more than three feet beyond the front of such vehicles, and except further that the director may, by journal entry, prohibit the operation of any stinger-steered automobile transporter or stinger-steered boat transporter or a B-train assembly on any state highway or portion thereof that the director designates.

The lengths prescribed in subsections (b)(2) to (6) hereof shall not include safety devices, bumpers attached to the front or rear of such bus or combination, B-train assembly used between the first and second semitrailer of a commercial tractor-semitrailer-semitrailer combination, energy conservation devices as provided in any regulations adopted by the Secretary of the United States Department of Transportation, or any noncargo-carrying refrigeration equipment attached to the front of trailers and semitrailers. In special cases, vehicles whose dimensions exceed those prescribed by this section may operate in accordance with rules promulgated by the Ohio Director of Transportation.

This section does not apply to fire engines, fire trucks or other vehicles or apparatus belonging to any municipal corporation or to the volunteer fire department of any municipal corporation or used by such department in the discharge of its functions. This section does not apply to vehicles and pole trailers

used in the transportation of wooden and metal poles, nor to the transportation of pipes or well-drilling equipment, nor to farm machinery and equipment. The owner or operator of any vehicle, machinery or equipment not specifically enumerated in this section but the dimensions of which exceed the dimensions provided by this section, shall when operating the same on the highways and streets of this state comply with the rules of the director governing such movement, which rules the director may adopt and promulgate. Ohio Revised Code 119.01 to 119.13 apply to any rules adopted under this section, or the amendment or rescission thereof, and any person adversely affected shall have the same right of appeal as provided in such sections.

This section does not require the state, the municipality, county, township or any railroad or other private corporation to provide sufficient vertical clearance to permit the operation of such vehicle, or to make any changes in or about existing structures now crossing streets, roads and other public thoroughfares in the municipality.
(Ordained by Ord. No. 36-1998, eff. March 6, 1998)

Cross reference—Penalty, § 517-99.

Sec. 517-7. Route and Load Information.

Drivers of vehicles described in this chapter shall be required, upon request by a police officer, to give full and true information as to the route they are following and the name of the consignor and consignee and place of delivery or removal and the location of any consignment being hauled or goods being removed, and upon a designation by such police officer of a route to be followed, shall immediately adopt and pursue such route.
(Ordained by Ord. No. 36-1998, eff. March 6, 1998)

Cross reference—Penalty, § 517-99.

Sec. 517-9. Wheel Protectors.

No person shall drive or operate, or cause to be driven or operated, any commercial car, trailer or semitrailer, used for the transportation of goods or property, the gross weight of which, with load, exceeds three tons, upon the streets, bridges and culverts within this municipality unless such vehicle is equipped with suitable metal protectors or substantial flexible flaps on the rearmost wheels of such vehicle or combination of vehicles to prevent, as far as practicable, the wheels from throwing dirt, water or other materials on the windshields of following vehicles. Such protectors or flaps shall have a ground clearance of not more than one-fifth of the distance from the center of the rearmost axle to the center of the flaps under any conditions of loading of the vehicle, and they shall be at least as wide as the tires they are protecting. If the vehicle is so designed and constructed that such requirements are accomplished by means of fenders, body construction or other means of enclosure, then no such protectors or flaps are required. Rear wheels not covered at the top by fenders, bodies or other parts of the vehicle shall be covered at the top by protective means extending at least to the center line of the rearmost axle.
(Ordained by Ord. No. 36-1998, eff. March 6, 1998)

Cross reference—Penalty, § 517-99.

Sec. 517-11. Violation of Ohio Revised Code and Public Utilities Commission of Ohio Rules.

(a) No motor transportation company, officer, agent or employee of a motor transportation company or other corporation, company, association, joint stock association, person, firm or copartnership shall violate or procure, aid or abet the violation of Ohio Revised Code 4921.02 to 4921.32, inclusive, or fail to comply with any order, decision, rule or regulation of the Public Utilities Commis-

sion, or procure aid or abet any motor transportation company in its failure to comply with such order, decision, rule or regulation.

(b) Information of a conviction of a violation of this section shall be reported to the Public Utilities Commission by the Clerk of the Court.
(Ordained by Ord. No. 36-1998, eff. March 6, 1998)

Cross reference—Penalty, § 517-99.

Sec. 517-13. Commercial Vehicle Lamps and Reflectors.

Every new motor vehicle hereafter sold and operated on a highway, other than a commercial tractor, to which a trailer or semi-trailer is attached shall carry at the rear, either as a part of the tail lamps or separately, two red reflectors meeting the requirements of this section except that vehicles of the type mentioned in Section 503-1(g) shall be equipped with reflectors as required in those sections applicable thereto.

Every such reflector shall be of such size and characteristics and so maintained as to be visible at night from all distances within 300 feet to 50 feet from such vehicle, except that visibility from a greater distance is hereinafter required of reflectors on certain types of vehicles when directly in front of a motor vehicle displaying lawfully lighted head lamps as provided in Section 503-1(f) hereof.
(Ordained by Ord. No. 36-1998, eff. March 6, 1998)

Cross reference—Penalty, § 517-99.

Sec. 517-15. Tractor Lamps.

Whenever motor and other vehicles are operated in combination during the time that lights are required, any lamp, except tail lamps need not be lighted which by reason of its location on a vehicle of the combination would be obscured by another vehicle of the combination, but this shall not affect the requirement that lighted clearance lamps be displayed on the front of the foremost vehicle required to have clearance lamps, or that taillights required on the rear of the rearmost vehicle of any combination shall be lighted.
(Ordained by Ord. No. 36-1998, eff. March 6, 1998)

Cross reference—Penalty, § 517-99.

Sec. 517-17. Marking of Vertical Clearance.

Where the vertical clearance between an overhead structure and any point of the roadway surface underneath said structure is less than 14 feet, the clearance height shall be posted on the overhead structure by the owner or person or corporation responsible for the control, use or maintenance of the overhead structure.
(Ordained by Ord. No. 36-1998, eff. March 6, 1998)

Cross reference—Penalty, § 517-99.

Sec. 517-19. Use of Alleys.

No person shall operate any vehicle in an alley unless such vehicle shall have a minimum clearance of six inches on each side as measured between the side of the vehicle and the building line; provided, however, that no person shall operate any vehicle exceeding seven feet in width in Cuts Alley between Sycamore Street and Leslie Alley.
(Ordained by Ord. No. 36-1998, eff. March 6, 1998)

Cross reference—Penalty, § 517-99.

Sec. 517-21. Vehicle Trains, Street Restrictions.

In addition to the restrictions fixed by the provisions of Section 517-5, no person shall operate any vehicle or train of vehicles in excess of 40 feet in length other than a passenger bus or fire force apparatus within the area bounded by the west line of Sycamore Street, the north line of Third Street, the east line of Elm Street, and the south line of Seventh Street between the hours of 7 a.m.

and 6 p.m., daily, Mondays through Fridays of each week. Provided, however, that semi-trailer units up to 53 feet in length are permitted to enter the restricted area between the hours of 7 a.m. and 4 p.m., exclusively for the purpose of loading or unloading.
(Ordained by Ord. No. 36-1998, eff. March 6, 1998)

Cross reference—Penalty, § 517-99.

Sec. 517-23. Truck Restrictions, Intercity.

Except where necessary in making a pickup at, a delivery to, or a service call at, a premises abutting a street which is not a truck route, no driver of any intercity truck shall use any street or highway in the city of Cincinnati that is not a truck route. Nothing in this section shall be construed to permit the operation of trucks on parkways and other streets on which truck traffic has been restricted and which have been so signed.

For the purpose of this section the following terms shall have the meanings indicated:

"Truck route" shall mean any street or highway which carries a state or U.S. route, or is a marked truck route, which has been designated by the city manager with the designation "city route" after appropriate notices and hearing.

"Intercity truck" shall mean a truck traveling through the city of Cincinnati from a point outside of the Cincinnati metropolitan area to a point outside the Cincinnati metropolitan area, or a truck traveling from a point within the city of Cincinnati to a point outside the Cincinnati metropolitan area or vice versa.

"Cincinnati metropolitan area" shall mean the area comprising Hamilton County, Ohio, and Kenton and Campbell Counties, Kentucky.
(Ordained by Ord. No. 36-1998, eff. March 6, 1998)

Cross reference—Penalty, § 517-99.

Sec. 517-25. Truck Restriction, Residential Streets.

The city manager or person designated by the city manager is authorized to prohibit dual wheel trucks on any residential street having a roadway width of less than 20 feet available for travel on a two-way street or less than 12 feet on a one-way street, where such traffic is determined to be a nuisance, a hazard, or otherwise undesirable from a traffic and safety standpoint. For the purpose of this section, the available roadway space shall mean the distance between curbs, where parking is prohibited on both sides; the distance between curbs, less seven feet, where parking is permitted on one side; or the distance between curbs, less 14 feet, where parking is permitted on both sides.

When appropriate signs have been installed by the city manager or person designated by the city manager, no dual wheel truck shall use such street except for the purpose of delivering property to or receiving property from premise not otherwise accessible.
(Ordained by Ord. No. 36-1998, eff. March 6, 1998)

Cross reference—Penalty, § 517-99.

Sec. 517-27. Weight of Vehicle.

No person, except in cases wherein permits have been granted, as provided in Section 517-37 shall transport under its own power any road roller, steam or power shovel, traction engine, or other self-propelled machinery upon any highway.

The provisions of this section shall not apply to vehicles, equipment or loads belonging to or used by any department of the city. (Ordained by Ord. No. 36-1998, eff. March 6, 1998)

Cross reference—Penalty, § 517-99.

Sec. 517-29. Weight on Tires.

No person shall operate any vehicle which, together with its load, exceeds in weight the following:

(a) In vehicles having metal tires three inches or less in width a load of 500 pounds for each inch of the total width of tire on all wheels. When the tires on such vehicles exceed three inches in width an additional load of 800 pounds shall be permitted for each inch by which the total width of the tires on all wheels exceeds 12 inches.

(b) In vehicles having tires of rubber or other similar substance, for each inch of the total width of tires on all wheels, as follows: For tires three inches in width, a load of 450 pounds; for tires three and one-half inches in width, a load of 450 pounds; for tires four inches in width, a load of 500 pounds; for tires five inches in width, a load of 600 pounds, and, for tires six inches and over in width, a load of 650 pounds. The total width of tires on all wheels shall be, in case of solid tires of rubber or other similar substances, the width in inches of all such tires between the flanges at the base of the tires, but in no event shall that portion of the tire coming into contact with the road surface be less than two-thirds the width so measured between the flanges. And in the case of pneumatic tires of rubber or other similar substance, the total width of all tires on all wheels shall be the actual width of all such tires measured at the widest portion thereof when inflated and not bearing a load.

In no event shall the load, including the proportionate weight of vehicle that can be concentrated on any wheel, exceed 650 pounds to each inch in width of the tread as defined above for solid tires; or to each inch in the actual diameter of pneumatic tires measured when inflated and not bearing a load. (Ordained by Ord. No. 36-1998, eff. March 6, 1998)

Cross reference—Penalty, § 517-99.

Sec. 517-31. Inspection as to Unlawful Load.

Any police officer having reason to believe that the weight of a vehicle and load is unlawful is authorized to require the driver to stop and submit to a weighing of the same either by means of a compact, self-contained, portable, sealed scale specially adapted to determining the wheel loads of vehicles on highways; a sealed scale permanently installed in a fixed location, having a load-receiving element specially adapted to determining the wheel loads of highway vehicles; a sealed scale, permanently installed in a fixed location, having a load-receiving element specially adapted to determining the combined load of all wheels on a single axle or on successive axles of a highway vehicle or a sealed scale adapted to weighing highway vehicles, loaded or unloaded. The driver of such vehicle shall, if necessary, be directed to proceed to the nearest available of such sealed scales to accomplish the weighing provided such scales are within three miles of the point where such vehicle is stopped. Any vehicle stopped in accordance with this section may be held by the police officer for a reasonable time only to accomplish the weighing as prescribed by this section. All scales used in determining the lawful weight of a vehicle and its load shall be annually com-

pared by a municipal, county, or state sealer with the state standards or standards approved by the state.

Whenever such officer upon weighing a vehicle and load, as above provided, determines that the weight is unlawful, such officer may require the driver to stop the vehicle in a suitable place and remain standing until such portion of the load is removed as may be necessary to reduce the gross weight of such vehicle to such limit as permitted under the traffic code.
(Ordained by Ord. No. 36-1998, eff. March 6, 1998)

Cross reference—Penalty, § 517-99.

Sec. 517-33. Damaging Street Surface.

Whenever in the judgment of the city manager or person designated by the city manager any highway or part thereof would be injured or damaged by general use by vehicles having solid tires or by vehicles exceeding in gross weight or in weight per inch of tire width the limits which the city manager or designee shall determine to be safe for such highway or part thereof, appropriate traffic signs shall be erected prohibiting the operation of vehicles having solid tires, or indicating and designating such weight limits, and no person shall operate over any such highway or part thereof any vehicle having solid tires or exceeding such weight limits, without securing a permit thereunto as provided in Section 517-3 or 517-37.
(Ordained by Ord. No. 36-1998, eff. March 6, 1998)

Cross reference—Penalty, § 517-99.

Sec. 517-35. Bridges, Carrying Capacity of.

Where the carrying capacity of a bridge has been ascertained to be less than the load limit prescribed by law, the city manager or person designated by the city manager shall erect signs thereat prohibiting any person from driving thereon any conveyance of greater weight either with or without load which exceeds the carrying capacity thereof.
(Ordained by Ord. No. 36-1998, eff. March 6, 1998)

Cross reference—Penalty, § 517-99.

Sec. 517-37. Excess Load; Moving Permit.

It shall be within the discretion of the director of transportation and engineering or the person designated by the director of transportation and engineering, upon receipt of an application in writing and good cause being shown therefor, to issue a special permit in writing authorizing the applicant to operate or move a vehicle or combination of vehicles of a size or weight of vehicle or load exceeding the maximum specified in Section 5577.01 to 5577.09, inclusive, of the Ohio Revised Code, or otherwise not in conformity with the provisions of the traffic code upon any highway. A permit may be issued for a single or round trip or in special instances for a certain period of time, or in the case of a vehicle in excess of 40 tons combined gross weight of vehicle or vehicle and load which is found by the director to be highly mobile and capable of moving at reasonable traffic speeds, a permit may be issued for a period of time not to exceed six months.

It shall be within the discretion of the director of transportation and engineering or the person designated by the director of transportation and engineering, to issue an annual permit for the safe operation of vehicles, exceeding the size and weight provisions of this section, by a business regularly engaged in operation of such vehicles on local streets immediately adjacent to the business to access state and federal highways for which the business has a valid permit issued by the State of Ohio. The director of

transportation and engineering or the person designated by the director of transportation and engineering shall establish the terms and conditions necessary for the issuance of an annual permit.

The application for the permit shall be in such form and shall set forth the conditions for the issuance of the permit as prescribed by the director of transportation and engineering or the person designated by the director of transportation and engineering. The conditions precedent to the issuance of a permit may require a bond or other security or liability coverage.

Upon the issuance of a permit, the applicant shall pay a permit fee, established by the city manager or the city manager's designee, in an amount necessary to recover the costs and expenses incurred by the city or estimated to be incurred by the city in connection with its administration of the excess load moving program, including, but not limited to, costs associated with the processing of applications, inspection and oversight of permittees, their vehicles, and equipment, and inspection and maintenance of affected rights of ways. Each such permit shall expire no more than 12 months following its issue date.

In the event a police escort is required for public safety, this determination, the fee schedule and the minimum charge for a police escort shall be promulgated by the Chief of the Cincinnati Police Department or the person designated by the Cincinnati Police Chief.

No permit shall cover more than one vehicle, contrivance, structure, or load, or more than one operation, except as allowed in accordance with an annual permit as described herein.

Every permit shall be carried in the vehicle or combination of vehicles to which it refers and shall be open to inspection by any police officer or authorized agent of any authority granting such permit, and no person shall violate any of the terms or conditions of the permit.

(Ordained by Ord. No. 36-1998, eff. March 6, 1998; a. Ord. No. 388-2006, § 1, eff. Jan. 20, 2007; a. Ord. No. 0083-2008, § 1, eff. April 12, 2008; a. Emer. Ord. No. 0425-2023, § 1, eff. Dec. 13, 2023)

Cross reference—Penalty, § 517-99.

Sec. 517-39. Tires.

No person shall operate any vehicle unless it has tires of rubber or of some equally resilient material, except in the following cases:

(a) Vehicles drawn by animal power;

(b) Road rollers, concrete mixers, and other similar devices, which may have smooth metallic tires, without cleats, lugs, spikes, projections or sharp or uneven parts likely to cause damage to the surface of the roadway.

(Ordained by Ord. No. 36-1998, eff. March 6, 1998)

Cross reference—Penalty, § 517-99.

Sec. 517-99. Penalties.

(a) Whoever violates Section 517-3(a) shall be fined eighty dollars ($80.00) for the first 2,000 pounds, or fraction thereof, of overload; for overloads in excess of 2,000 pounds, but not in excess of 5,000 pounds, such person shall be fined one hundred dollars ($100.00) and in addition thereto one dollar ($1.00) per one hundred (100) pounds of overload; for overloads in excess of 5,000 pounds, but not in excess of ten thousand (10,000) pounds, such person shall be fined one hundred thirty dollars ($130.00) and in addition thereto two dollars ($2.00) per 100 pounds of overload, or imprisoned not more than thirty days, or both. For all overloads in excess of 10,000 pounds such person shall be fined one hundred sixty dollars ($160.00) and in

addition thereto three dollars ($3.00) per 100 pounds of overload, or imprisoned not more than thirty days or both. Whoever violates the weight provision of vehicle and load relating to gross load limits shall be fined not less than one hundred dollars ($100.00). No penalty prescribed in this division shall be imposed on any vehicle combination if the overload on any axle does not exceed 1,000 pounds and if the immediately preceding or following axles, excepting the front axle of the vehicle combination is under loaded by the same as a greater amount. For purposes of this division, two axles on one vehicle less than eight feet apart shall be considered as one axle.

(b) Whoever violates Section 517-3(c) is guilty of a misdemeanor of the fourth degree.

(c) Whoever violates Sections 517-5 to 517-7 shall be fined not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00).

(d) Whoever violates Sections 517-9, 517-11, 517-13, 517-19, 517-21, 517-23, 517-25, 517-27, 517-29, 517-33, and 517-39 shall be fined not less than twenty-five dollars ($25.00) nor more than one thousand dollars ($1,000).

(e) Whoever violates Section 517-3(b) or 517-37 is guilty of a minor misdemeanor on a first offense; on a second offense within one year after the first offense, such person is guilty of a misdemeanor of the fourth degree; on each subsequent offense within one year after the first offense, such person is guilty of a misdemeanor of the third degree.

(Ordained by Ord. No. 36-1998, eff. March 6, 1998)

TITLE VI

PUBLIC HEALTH

Chapter 601

GENERAL PROVISIONS

Sec. 601-1. Orders and Regulations.
Sec. 601-3. Monthly Bulletin.
Sec. 601-5. Procedure Herein Not Exclusive.
Sec. 601-7. Delegation of Board of Health Powers.
Sec. 601-9. Repealed.
Sec. 601-11. Repealed.
Sec. 601-13. Repealed.
Sec. 601-15. Repealed.
Sec. 601-17. Spitting in a Public Place.
Sec. 601-18. Repealed.
Sec. 601-19. Sale or Use of Toxic Glue to Produce a State of Intoxication or Other Abnormal Condition.
Sec. 601-21. Sale of Paregoric.
Sec. 601-23. Drug Prescriptions, Possession Prohibited.
Sec. 601-25. Unauthorized Access and Use of Confidential Medical Information.
Sec. 601-27. Access to and Use of Confidential Medical Information with Intent to Harm Another.
Sec. 601-30. Contacts with City Health District, General Health District and Health Maintenance Organizations.
Sec. 601-33. Anti-Choking Procedures in Restaurants.
Sec. 601-99. Penalties.

Sec. 601-1. Orders and Regulations.

The board of health may make such orders and regulations as it may deem necessary for its own government.
(C.O. 501-1; reordained a. C.M.C. 501-1, eff. Jan. 1, 1972)

Sec. 601-3. Monthly Bulletin.

The board of health of the city of Cincinnati shall have power to cause to be issued, printed, published and distributed, a monthly bulletin, which shall be edited by the health commissioner, and shall contain such information and data relating to the public health, sanitary inspection, epidemics, communicable diseases, vital statistics, food and drugs, industrial hygiene, child hygiene, medical inspection and relief, and other kindred subjects as in the opinion of the commissioner will tend to promote the public health of the city.

The board of health shall determine the number of copies of each issue of such bulletin that shall be printed, and may cause the same to be distributed as it deems proper. The cost and expense of issuing, printing, publishing and distributing the bulletin may be paid out of appropriations for the board of health, upon proper voucher.
(C.O. 601-2; renumbered to C.M.C. 601-3, eff. Jan. 1, 1972)

Sec. 601-5. Procedure Herein Not Exclusive.

The procedures, methods of enforcement and penalties provided in Title VI of this code shall be held to be in addition to and in no way taking the place of or modifying or repealing the procedures, methods of enforcement and penalties provided in the laws of Ohio, and the ordinances of the city of Cincinnati relating to the board of health and the department of buildings and inspections.
(C.O. 601-3; renumbered to C.M.C. 601-5, eff. Jan. 1, 1972)

Sec. 601-7. Delegation of Board of Health Powers.

The making of decisions and issuance of orders as provided for in Title VI of this code may be delegated by the board of health to the health commissioner, and when so delegated the making of any such decision or the issuance of any such order by the health commissioner shall have the same effect as the code of ordinances provides for the opinion, decision or order of the board of health.
(C.O. 601-4; renumbered to C.M.C. 601-7, eff. Jan. 1, 1972)

Sec. 601-9. Repealed.

(Sec. 601-5; ordained by Ord. No. 468-1962, eff. Dec. 12, 1962; a. Ord. No. 279-1978, eff. July 12, 1978; a. Ord. No. 90-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 601-9, eff. Jan. 1, 1972; a. Ord. No. 327-1975, eff. Sept. 1, 1975; a. Ord. No. 467-1979, eff. Oct. 24, 1979; a. Ord. No. 142-1981, eff. Apr. 15, 1981; a. Ord. No. 309-1982, eff. July 8, 1982; a. Ord. No. 400-1983, eff. Sept. 28, 1983; a. Ord. No. 186-1994, eff. 6-24-94; repealed by Ord. No. 373-1995, eff. Dec. 31, 1995)

Sec. 601-11. Repealed.

(Sec. 601-6, ordained by Ord. No. 468-1962, eff. Dec. 12, 1962; a. Ord. No. 279-1968, eff. July 12, 1968; a. Ord. No. 90-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 601-11, eff. Jan. 1, 1972; a. Ord. No. 327-1975, eff. Sept. 1, 1975; a. Ord. No. 467-1979, eff. Oct. 24, 1979; a. Ord. No. 142-1981, eff. Apr. 15, 1981; a. Ord. No. 309-1982, eff. July 8, 1982; a. Ord. No. 328-1983, eff. Aug. 6, 1983; r. Ord. No. 492-1983, eff. Oct. 19, 1983)

Sec. 601-13. Repealed.

(Sec. 601-7; ordained by Ord. No. 224-1965, eff. June 3, 1965; a. Ord. No. 279-1968, eff. July 12, 1968; a. Ord. No. 90-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 601-13,

eff. Jan. 1, 1972, a. Ord. No. 327-1975, eff. Sept. 1, 1975; a. Ord. No. 460-1983, eff. Sept. 28, 1983; r. Ord. No. 110-1988, eff. Apr. 6, 1988)

Cross reference—See Board of Health Regulation 00047.

Sec. 601-15. Repealed.

(Sec. 601-9; ordained by Ord. No. 42-1970, eff. Mar. 13, 1970; renumbered to C.M.C. 601-15, eff. Jan. 1, 1972; a. Ord. No. 327-1975, eff. Sept. 1, 1975; a. Ord. No. 282-1979, eff. Sept. 1, 1979; r. Ord. No. 180-1991, eff. June 14, 1991)

Sec. 601-17. Spitting in a Public Place.

No person shall spit upon any sidewalk, street, highway, alley, the floor of any bus used for public transportation, theatre, railway or public transportation depot or platform or the floor of any school house, church or public building of any kind.

Whoever violates this section is guilty of spitting in a public place, a minor misdemeanor.

(C.M.C. 601-17; ordained by Ord. No. 523-1973, eff. Jan. 1, 1974)

Analogous to C.O. 901-89; renumbered to C.M.C. 901-S9, eff. Jan. 1, 1972; r. Ord. No. 523-1973, eff. Jan. 1, 1974.

Cross references—Streets and sidewalks, establishment and maintenance, ch. 721; streets and sidewalks, use regulations, ch. 723.

Sec. 601-18. Repealed.

(C.M.C. 601-18; ordained by Ord. No. 454-1978, eff. Dec. 1, 1978; a. Ord. No. 32-1995, eff. Jan. 19, 1995; r. Ord. No. 287-1995, eff. 9-17-95)

Sec. 601-19. Sale or Use of Toxic Glue to Produce a State of Intoxication or Other Abnormal Condition.

As used in this section, the term "toxic glue" shall mean any glue, adhesive cement, mucilage, plastic solvent or other adhesive containing toluene, acetone, xylene, butyl alcohol, hexane, tricresyl phosphate or other toxic ingredient.

No person, for the purpose of violating or aiding another to violate any provision of this section, shall intentionally possess, buy, sell, transfer possession or receive possession of any toxic glue.

No person shall sell or transfer possession of any toxic glue to another person under 18 years of age, except that one tube of glue may be sold at any one time to a person under 18 years of age, provided that the tube is included in a kit for the assembly of a model airplane, automobile, boat or other unassembled model, or when a kit not having glue packaged therein is sold in conjunction with the sale of one tube of glue.

No person shall inhale, drink, eat or otherwise introduce into such person's respiratory or circulatory system any toxic glue with the intent of becoming intoxicated, elated, paralyzed, irrational or in any manner changing, distorting or disturbing the eyesight, thinking process, judgment, balance or coordination of such person. For the purpose of this section, any such condition so induced shall be deemed to be an intoxicated condition.

Whoever violates this section is guilty of selling or using toxic glue to produce a state of intoxication or other abnormal condition, a misdemeanor of the first degree.

(C.M.C. 601-19; ordained by Ord. No. 523-1973, eff. Jan. 1, 1974)

Analogous to Sec. 901-G15; ordained by Ord. No. 475-1965, eff. Nov. 24, 1965; reordained as C.M.C. 901-615, eff. Jan. 1, 1972; r. Ord. No. 523-1973, eff. Jan. 1, 1974.

Sec. 601-21. Sale of Paregoric.

No person shall do any of the following:

(a) Sell paregoric without requiring the purchaser thereof to furnish the purchaser's name and address which

shall be entered in an appropriate record, together with the date of sale and the amount of paregoric sold. Record of each individual purchase shall be kept for at least two years.

(b) Give a false name and address when purchasing paregoric.

Whoever violates this section is guilty of illegally selling or purchasing paregoric, a misdemeanor of the first degree.
(C.M.C. 601-21; ordained by Ord. No. 523-1973, eff. Jan. 1, 1974)

Analogous to Sec. 901-P13; ordained by Ord. No. 134-1958, eff. Apr. 23, 1958; reordained as C.M.C. 901-P13, eff. Jan. 1, 1972; r. Ord. No. 523-1973, eff. Jan. 1, 1974.

Sec. 601-23. Drug Prescriptions, Possession Prohibited.

No person, other than a registered wholesale distributor of dangerous drugs, a licensed terminal distributor of dangerous drugs, a manufacturer of dangerous drugs, a pharmacist, a practitioner, or carriers or warehousemen but only for the purpose of carriage or storage, for any of the foregoing, shall have in such person's possession any prescription drug, except those obtained pursuant to a prescription or dispensed by a practitioner.

Proof of possession of a prescription drug, other than in a container labeled to indicate the date of sale, the name and address of the person for whom the drug was prescribed, instructions for taking, and the name of the pharmacy where sold, together with the prescription number, shall constitute prima facie evidence of a violation of this section.

For the purpose of this section, the term "prescription drug" shall mean:

Any drug which, under the "Federal Food, Drug and Cosmetic Act," 52 Stat. 1040 (1938), 21 U.S.C.A. 301, as amended, Sections 3715.01 to 3715.72 of the Ohio Revised Code, may be dispensed only upon a prescription; or

Any drug intended for administration by injection into the human body other than through a natural orifice of the human body; or

Any drug listed within the standard pharmaceutical reference manual as defined in 2926.01(N) of the Ohio Revised Code which may be dispensed only upon a prescription; or

Any drug or drug product the commercial package of which bears a label containing the legend, "Caution: Federal Law Prohibits Dispensing Without Prescription" or "Federal Law Restricts This Drug To Use by or on the Order of a Licensed Veterinarian" or any similar restrictive statement.

For the purpose of this section, the term "prescription" shall have the meaning ascribed to it in Section 4729.02(G) of the Ohio Revised Code.

For the purpose of this section, the term "person," "terminal distributor of dangerous drugs," "registered wholesale distributor of dangerous drugs," "manufacturer of dangerous drugs," "practitioner," "pharmacist," and "prescription" shall have the meanings ascribed to them in Ohio Revised Code section 4729.02.

Whoever violates this section shall be guilty of possessing a prescription drug, a misdemeanor of the first degree.
(C.M.C. 601-23; ordained by Ord. No. 523-1973, eff. Jan. 1, 1974; a. Ord. No. 254-1981, eff. June 24, 1981)

Analogous to Sec. 901-D8; ordained by Ord. No. 278-1962, eff. Aug. 4, 1962; reordained as C.M.C. 901-D8, eff. Jan. 1, 1972; r. Ord. No. 523-1973, eff. Jan. 1, 1974.

Sec. 601-25. Unauthorized Access and Use of Confidential Medical Information.

No person shall willfully attempt to obtain, use or make public, or obtain, use or make public, confidential medical information be-

longing to the Cincinnati health department which concerns any patient of a clinic of that department when he knows or should know he is without proper authorization.

Whoever violates this section shall be guilty of a misdemeanor of the third degree.
(Ordained by Ord. No. 82-1980, eff. April 5, 1980)

Sec. 601-27. Access to and Use of Confidential Medical Information With Intent To Harm Another.

No person, with the intent to harm the person, reputation or business of another, shall willfully attempt to obtain, use or make public, or obtain, use or make public, confidential medical information belonging to the Cincinnati health department which concerns any patient of a clinic of that department when he knows or should know he is without proper authorization.

Whoever violates this section shall be guilty of a misdemeanor of the second degree.
(Ordained by Ord. No. 82-1980, eff. April 5, 1980)

Sec. 601-30. Contacts With City Health District, General Health District and Health Maintenance Organizations.

In addition to the powers and duties granted to the board of health by the Charter and the laws of the state of Ohio relating to the providing of health and medical services to the public, the board of health may, within the limits of its physical and financial ability to do so, provide for medical and health care services to residents of Hamilton County, including the furnishing of preventative, diagnostic, therapeutic or rehabilitative care for the purpose of ensuring the protection, maintenance and support of human physical, mental, and emotional health. The board of health is authorized to enter into contracts with city and general health districts and health maintenance organizations to provide the public health services authorized in this section or with any city health district or general health district within the state. Any such contract shall:

(a) State the amount of money or the proportion of the expenses to be paid by or to the city for such services and how it is to be paid;

(b) Provide the amount and character of health service to be given to the city health district or the general health district, or to members of a health maintenance organization;

(c) State the date on which such services shall begin;

(d) State the length of time such contract shall be in effect.

No such contract shall be entered into until the board of health of the city of Cincinnati, and the health department of the city of Cincinnati determines that the board of health of the city of Cincinnati and health department of the city of Cincinnati are organized and equipped to provide adequate health service, and have sufficient funds appropriated to carry on the contract ties. No additional financial burdens shall be placed upon the city or the board of health for services provided outside the city, and no health services shall be provided outside the city if such health services reduce or diminish the health services provided to the city of Cincinnati.

All moneys received for such public health services contracts shall be deposited in special funds which shall clearly identify moneys attributable to provision of services outside the city.

The board shall attempt whenever possible to collect payment from third party sources, including but not limited to Medicaid, Medi-

care, private insurers, and private firms, agencies and institutions for examinations and medical services rendered.
(C.M.C. 601-30; ordained by Ord. No. 390-1975, eff. Aug. 6, 1975)

Sec. 601-33. Anti-Choking Procedures in Restaurants.

Every establishment where food is sold and space is designated specifically as eating areas shall have posted in a conspicuous place, easily accessible to all employees and customers, a sign graphically depicting the Heimlich Maneuver instructing on how to dislodge food from a choking person. Such sign shall be drafted and printed by the department of health.

Nothing contained in this section shall impose any duty or obligation on any proprietor, employee or other person to remove, assist in removing, or attempt to remove food from the throat of the victim of a choking emergency.

The department of health shall make signs available, and may charge a fee to cover printing, postage and handling expenses.

Whoever fails to post the sign in compliance with this section shall be guilty of a minor misdemeanor.
(Ordained by Ord. No. 397-1979, eff. Oct. 19, 1979)

Sec. 601-99. Penalties.

Whoever violates any provision of this chapter or any regulation of the board of health pertaining thereto shall be guilty of a misdemeanor of the first degree.
(Sec. 601-8; ordained by Ord. No. 279-1968, eff. July 12, 1968; renumbered to C.M.C. 601-99, eff. Jan. 1, 1972; Emer. Ord. No. 153-2004, eff. April 28, 2004)

Chapter 602

UNSANITARY BUILDINGS AND NUISANCES*

Sec. 602-1. Permitting Unclean Habitations.
Sec. 602-3. Structures Deemed Unsanitary.
Sec. 602.5 Declaring Building a Public Nuisance.
Sec. 602-7. Vacation of Unsanitary Premises.
Sec. 602-9. Building Code Violations, Powers of Officers.
Sec. 602-11. Vacation and Abatement Hearings.
Sec. 602-13. Posting Notice of Vacations.
Sec. 602-15. Vacation Enforced.
Sec. 602-17. Court Actions.
Sec. 602-19. Keeping Tenement and Lodging Houses Clean.
Sec. 602-99. Penalties.
Sec. 602-99-A. Violation of Section 602-19.

*__Cross reference—__Cincinnati building code, tit. XI.

Sec. 602-1. Permitting Unclean Habitations.

No person, firm or corporation shall lease, let, permit the occupancy of, permit the continuation of the occupancy of or continue the occupancy of any structure or building or any portion thereof, used for human habitation, unless such structure or building or portion thereof be free from unclean and unsanitary conditions, as defined in the subsequent sections of this chapter, and unless the provisions of the subsequent sections are complied with.

(C.O. 602-1; reordained as C.M.C. 602-1, eff. Jan. 1, 1972)

Cross reference—Penalty, § 602-99.

Sec. 602-3. Structures Deemed Unsanitary.

Any structure or building or any portion thereof used for human habitation shall be deemed to be in an unclean and unsanitary condition by reason of any portion of such building being infected with a communicable disease, or by reason of the absence thereon of toilet facilities as required by law or ordinance, or by reason of the known presence of sewer gas therein or thereon.

Any structure or building or any portion thereof used for human habitation shall be deemed to be in an unclean and unsanitary condition when unfit for human habitation or in a condition dangerous or harmful to the lives or health of the occupants by reason of the inhabited portion of the house being damp or wet or by reason of such lack of repair, or by reason of such accumulation of dirt, filth, litter, refuse or other offensive or dangerous substances or liquids, or by reason of such defects in or lack of repair of or improper use of the drainage, plumbing or ventilation, or by reason of the existence on the premises of such a nuisance or other condition as is likely to cause sickness among the occupants.

(C.O. 602-2; renumbered to C.M.C. 602-3, eff. Jan. 1, 1972)

Sec. 602-5. Declaring Building a Public Nuisance.

Any structure or building or any portion thereof used for human habitation which is in an unclean or unsanitary condition is hereby declared to constitute a public nuisance.

(C.O. 602-4; renumbered to C.M.C. 602-5, eff. Jan. 1, 1972)

Sec. 602-7. Vacation of Unsanitary Premises.

Whenever the board of health ascertains from examination or reports of its inspectors or sanitary officers or otherwise that a public nuisance exists, as defined in Sections 602-3 and 602-5, in or upon any structure or building, or portion thereof, and is of the opinion that such nuisance is capable of being abated without immediate vacation of the premises or such portion thereof, and serves notice upon the owner of such house, or his lessee or agent, or the person in possession, charge or control thereof, directing them to abate such nuisance and remove the unclean or unsanitary conditions within such reasonable time as may be fixed by said board and specified in said notice, it shall then be the duty of such owner, agent or person to abate such nuisance within such time.

Whenever such abatement does not take place within such time, or whenever in the opinion of the board such abatement is impossible or impracticable without an immediate vacation of the house or portion thereof, and the board serves notice upon the owner, lessee, agent, or person in possession, charge or control thereof to vacate or cause the vacation of such house or portion thereof designated in the notice, then it shall be the duty of such owner, lessee, agent or person to vacate or cause the vacation of such house or portion thereof within 20 days from the date

of the service of such notice, or within a shorter time (not less than 24 hours in any case) as may be specified in the notice.

Whenever, either in addition to or without the service of notices on said owner, lessee, agent or person in possession, charge or control, the board is of the opinion that such nuisance can be abated by a tenant or other occupant of such house or portion thereof, and such notices, either for abatement of the nuisance or of vacation of the premises, are served upon such tenant or other occupant, then it shall be the duty of such tenant or other occupant to comply with the terms of such notices and to abate the nuisance or vacate the premises accordingly.

After any such notice or order of vacation it shall be unlawful to occupy or permit the occupancy of such premises or portion thereof until such nuisance shall have been completely abated and such building or portion thereof shall have been rendered clean and sanitary in accordance with the terms of said notices of the board of health.

When there is no owner, agent, lessee or person in charge, possession or control who is a resident of or can be served in the city of Cincinnati, then personal service outside of the city on any such owner, agent, lessee or person in charge, possession or control by anyone delegated by the board of health to make such service, or by registered letter, or if the address of the owner, lessee, agent or person in possession, charge or control is unknown, or service is not secured by registered letter after effort to do so, by notice by publication once a week for two consecutive weeks in any newspaper of general circulation in Cincinnati, or posting or attaching to or on the outside of the structure or building of a copy of the notice or order consecutively for two weeks, shall have the same effect as service within the city.
(C.O. 602-5; renumbered to C.M.C. 602-7, eff. Jan. 1, 1972)

Cross reference—Penalty, § 602-99.

Sec. 602-9. Building Code Violations, Powers of Officers.

When the unsanitary condition of any such building or part thereof is, in the opinion of the board of health, due to the violation of any of the provisions of Title XI of this code and the ordinances and sections amendatory thereof and supplementary thereto, and the board shall certify such fact to the director of buildings and inspections, it shall thereupon be the duty of the director to proceed, in accordance with the provisions of Title XI, to enforce the provisions thus violated; and thereupon, in addition to the powers of the director and the methods of enforcement provided in Title XI, the director may issue and serve, publish or post an order or notice of vacation upon like terms and conditions and of like purport as is provided in Section 602-7 for orders of vacation issued by the board of health; and it shall be the duty of the person, firm or corporation thus notified to comply with the terms of such notice and to vacate or cause the vacation of the building or portion thereof until the provisions of Title XI have been complied with.

Without any certification from the board of health, the director of buildings and inspections may enforce the provisions of Title XI, and all sections amendatory and supplementary thereto, by issuing and serving, publishing or posting notices or orders of abatement and vacation upon like terms and conditions and of like purport as is provided in Section 602-7 for notice and orders of abatement and vacation issued by the board of health; and it shall be the duty of the persons, firm or corporation thus notified to comply with such notices and orders. All such notices and orders of the director shall be subject to appeal as provided in the. administrative code.
(C.O. 602-8; renumbered to C.M.C. 602-9, eff. Jan. 1, 1972)

Sec. 602-11. Vacation and Abatement Hearings.

When the notice or order of vacation follows a notice or order of abatement, as provided in Sections 602-7 and 602-13, such notice or order of vacation shall not be enforced, as provided in this chapter, unless such notice or order of abatement specifies a time when the person so notified or ordered may appear before the board or officer issuing the notice or order of abatement to show cause why such order or notice of vacation should not be issued, and unless the board or a majority thereof or officer is present at its office at the time so specified; such time to be not less than 24 hours after the service of the notice or order.

When the notice or order of vacation is issued as provided in Section 602-7, without a previous notice or order of abatement, such notice or order of vacation shall not be enforced as provided in this chapter unless it specifies a time, not less than five days after the service thereof, when the person so notified or ordered may appear before the board issuing such notice or order to show cause why it should not be enforced, and the board or a majority thereof is present at its office at the time so specified; provided that when, in the opinion of at least four-fifths of the members of the board, an emergency exists which requires, for the protection of the health of occupants, the vacation of the building or portion thereof without a delay of five days, then no such fixing of a time for hearing shall be required.
(C.O. 602-10; renumbered to C.M.C. 602-11, eff. Jan. 1, 1972)

Sec. 602-13. Posting Notice of Vacations.

Whenever such procedure is, in the opinion of the board of health or director of buildings and inspections, desirable or necessary, the board of health or director may affix conspicuously on the buildings or part thereof the notice or order of vacation.
(C.O. 602-11; renumbered to C.M.C. 602-13, eff. Jan. 1, 1972)

Sec. 602-15. Vacation Enforced.

When the notice or order of vacation has not been complied with, and the board of health or director of buildings and inspections certifies such fact, together with a copy of the order or notice, to the chief of the police division of the city, it shall then be the duty of the chief and the members of the police division to enforce such notice or order of vacation and to cause the premises to be vacated, in accordance with the terms of such notice or order.
(C.O. 602-12; renumbered to C.M.C. 602-15, eff. Jan. 1, 1972)

Sec. 602-17. Court Actions.

Whenever the board of health or the director of buildings and inspections certifies to the city solicitor any failure to comply with any such order or notice of vacation, with the request that the city solicitor institute civil proceedings for the enforcement thereof, the city solicitor is hereby authorized to and shall institute any and all proceedings, either legal or equitable, that may be appropriate or necessary for the enforcement of such order or notice and the abatement of the nuisance against which such order or notice was directed; such suits or proceedings to be brought in the name of the city of Cincinnati, and no such suits or proceedings shall be held to exclude any criminal or penal proceedings which may be authorized by this chapter or any of the laws or ordinances in force in this city, or to exempt anyone violating this or such laws or ordinances from any penalty which may be incurred.
(C.O. 602-14; renumbered to C.M.C. 602-17, eff. Jan. 1, 1972)

Sec. 602-19. Keeping Tenement and Lodging Houses Clean.

Every owner of, and every agent in charge of, a tenement house, lodging house or hotel, or part thereof shall cause to be kept thoroughly clean all parts of the premises not within the occupied apartments. No person shall place filth, urine or fecal matter in any place in a tenement house, lodging house or hotel, other than provided for the same, or keep filth, urine or fecal matter in the apartments or upon the premises such length of time as to create a nuisance, and every tenant shall keep tenant's apartment in clean and sanitary condition. The walls of courts and shafts, unless built in a light color brick or stone, shall be painted a light color and shall be so maintained. Such paint shall be renewed as required by the director of buildings and inspections.

(C.O. 602-18; a. Ord. No. 279-1968, eff. July 12, 1968; renumbered to C.M.C. 602-19, eff. Jan. 1, 1972)

Cross reference—Penalty, § 602-99-A.

Sec. 602-99. Penalties.

Any person, firm or corporation who violates any provision of this chapter for which another penalty is not specifically provided or fails to conform to any of the provisions of such sections, excepting an agent with authority to act in the premises, shall be fined not more than $50.

(C.O. 602-16; a. Ord. No. 414-1970, eff. Dec. 23, 1970; renumbered to C.M.C. 602-99, eff. Jan. 1, 1972)

Sec. 602-99-A. Violation of Section 602-19.

Whoever violates any provision of Section 602-19 shall be fined not more than $500.

(C.O. 602-18; renumbered to C.M.C. 602-99-A, eff. Jan. 1, 1972)

Chapter 603

MEATS

Sec. 603-1. Meat Inspection, Powers of Health Commissioner.
Sec. 603-3. Repealed.
Sec. 603-5. Inspection.
Sec. 603-7. Who Shall Brand.
Sec. 603-9. Unfit Carcasses Condemned.
Sec. 603-11. Veal Calf Dressed.
Sec. 603-13. Live Animals, Examination.
Sec. 603-15. Importing Unfit Animals for Sale.
Sec. 603-17. Importing or Buying Unfit Animals.
Sec. 603-19. Importing Unwholesome Foods.
Sec. 603-21. Light and Air Equipment in Establishments.
Sec. 603-23. Ceilings, Walls and Floors.
Sec. 603-25. Implements to be Kept Clean.
Sec. 603-27. Clothing of Employees to be Clean.
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Sec. 603-1. Meat Inspection, Powers of Health Commissioner.

The health commissioner or any authorized assistant may enter at any time, and no person shall hinder or prevent such entry, any place in this city where live cattle, calves, sheep, goats or swine are held or where animals are slaughtered, or where poultry, game, fish or oysters are dressed, scaled or prepared to be disposed of for human food; and, likewise, they may enter any house, store, market, stall, railroad car, wagon or other vehicle where meat, sausage, poultry, game, fish or oysters are prepared, packed, stored, transported, held or kept for sale for human food; and, likewise, they may also enter any factory or place where dead animals are skinned or rendered, or where the offal from slaughter houses or meat stores, such as fat, head, feet or guts, are steamed, tanked or otherwise disposed of.
(C.O. 603-1; reordained as C.M.C. 603-1, eff. Jan. 1, 1972)

Cross reference—Penalty, § 603-99.

Sec. 603-3. Repealed.

(C.O. 603-3; a. Ord. No. 388-1962, eff. Nov. 9, 1962; a. Ord. No. 279-1968, eff. July 12, 1968; a. Ord. No. 90-1969, eff. Apr. 1, 1969; reordained as C.M.C. 603-3, eff. Jan. 1, 1972; a. Ord. No. 327-1975, eff. Sept. 1, 1975; r. Ord. No. 467-1979, eff. Oct. 24, 1979)

Sec. 603-5. Inspection.

No carcass, or any part thereof, of any slaughtered cattle, calf, sheep, goat or swine shall be branded or otherwise marked for identification by the health commissioner, or authorized assistant, until it has been carefully inspected and passed for food, and the viscera, head, tongue, tail and caul of each and every cattle, calf, sheep, goat or swine slaughtered when the inspector is not present shall be kept together and wholly separate from similar parts of any other carcass.
(C.O. 603-4; renumbered to C.M.C. 603-5, eff. Jan. 1, 1972)

Cross reference—Penalty, § 603-99.

Sec. 603-7. Who Shall Brand.

No dressed carcass, or any part thereof, of any slaughtered cattle, calf, sheep, goat or swine, to be used for human food, shall be removed from any slaughter house or slaughtering place within the city limits before it has been branded or otherwise marked for identification by the health commissioner, or authorized assistant, or by an inspector of the United States department of agriculture or the Ohio department of agriculture.
(C.O. 603-5; a. Ord. No. 279-1968, eff. July 12, 1968; renumbered to C.M.C. 603-7, eff. Jan. 1, 1972)

Cross reference—Penalty, § 603-99.

Sec. 603-9. Unfit Carcasses Condemned.

Any carcass, or any part thereof, of any slaughtered cattle, calf, sheep, goat or swine in this city, which, because of disease, injury or any other condition, is unfit for human food, shall be freely slashed with a knife and saturated with coal oil by the health commissioner, or authorized assistant, and shall not be sold or otherwise disposed of for human food.
(C.O. 603-10; renumbered to C.M.C. 603-9, eff. Jan. 1, 1972)

Cross reference—Penalty, § 603-99.

Sec. 603-11. Veal Calf Dressed.

No veal calf at the time of slaughter shall be dressed with the skin left on the carcass unless such skin is clean and the feet and head are removed.
(C.O. 603-11; reordained as C.M.C. 603-11, eff. Jan. 1, 1972)

Cross reference—Penalty, § 603-99.

Sec. 603-13. Live Animals, Examination.

A careful examination shall be made by the health commissioner or authorized assistant at all public stockyards in this city of any live cattle, swine, sheep, goat or calf when requested to do so by a purchaser of any such animal intended for slaughter under the post-mortem inspection of the board of health.

No person shall sell any such animal judged as diseased or otherwise unfit for human food, or suspected of being diseased or of being otherwise unfit for human food, to any butcher or other person slaughtering livestock under the post-mortem inspection of the board of health, provided that such an animal may be sold subject to post-mortem inspection and may be removed to any slaughter house where a post-mortem inspection is conducted by the board of health when properly tagged for identification.
(C.O. 603-21; renumbered to C.M.C. 603-13, eff. Jan. 1, 1972)

Cross reference—Penalty, § 603-99.

Sec. 603-15. Importing Unfit Animals for Sale.

No person shall bring into this city, or sell or offer for sale, or give to the proprietor or agent of any packing or slaughter house, or to any butcher in this city, any cattle, hog, sheep or lamb that is diseased, injured, crippled, immature, under weight, badly emaciated, or that for any other obvious reason might be unfit for human food, without first delivering said cattle, hog, sheep or lamb at one of the public stockyards of this city where the health commissioner or authorized assistant is stationed reporting all known facts relating to such animal or animals to the officer and receiving written permission from the board of health to do so.
(C.O. 603-22; renumbered to C.M.C. 603-15, eff. Jan. 1, 1972)

Cross reference—Penalty, § 603-99.

Sec. 603-17. Importing or Buying Unfit Animals.

No proprietor or agent of any packing house or slaughter house, nor any butcher in this city, shall bring into this city or buy or offer to buy or accept in this city any cattle, calf, hog, sheep or lamb that is diseased, injured, crippled, immature, under weight, badly emaciated, or that for any other obvious reason might be unfit for human food, without first reporting all known facts relating to such animal or animals to the chief food inspector and receiving written permission from the board of health to do so.
(C.O. 603-23; renumbered to C.M.C. 603-17, eff. Jan. 1, 1972)

Cross reference—Penalty, § 603-99.

Sec. 603-19. Importing Unwholesome Foods.

No person shall bring into this city, or sell or offer for sale any meat, sausage, poultry, game, fish or oysters that are diseased, adulterated, unsound, unwholesome, or that for any other reason are unfit for human food; and all such articles of food shall be seized and destroyed by the health commissioner or authorized assistant.
(C.O. 603-24; renumbered to C.M.C. 603-19, eff. Jan. 1, 1972)

Cross reference—Penalty, § 603-99.

Sec. 603-21. Light and Air Equipment in Establishments.

All houses or places in this city in which animals are slaughtered or the meat and meat products are prepared, cured, packed, stored, handled or sold, shall be suitably lighted and ventilated and maintained ln a sanitary condition. All work in such establishments shall be performed in a clean and sanitary manner.
(C.O. 603-27; renumbered to C.M.C. 603-21, eff. Jan. 1, 1972)

Cross reference—Penalty, § 603-99.

Sec. 603-23. Ceilings, Walls and Floors.

Ceilings, side walls, pillars and partitions shall be frequently whitewashed or painted, or where this is impracticable, they shall, when necessary, be washed, scraped or otherwise rendered sanitary. Where floors or other parts of a building, or tables or other parts of the equipment are so old, or in such condition that they cannot be readily made sanitary, they shall be removed and replaced by suitable materials or otherwise put in a condition acceptable to the health commissioner. All floors upon which meats are piled during the process of curing shall be so constructed that they can be kept in a clean and sanitary condition, and such meats shall also be kept clean.

(C.O. 603-29; renumbered to C.M.C. 603-23, eff. Jan. 1, 1972)

Cross reference—Penalty, § 603-99.

Sec. 603-25. Implements to be Kept Clean.

All trucks, trays and other receptacles, all chutes, platforms, racks, tables, and all knives, saws, cleavers and other tools and all utensils and machinery used in moving, handling, cutting, chopping, mixing, canning or other process, shall be thoroughly cleaned daily, if used.

(C.O. 603-30; renumbered to C.M.C. 603-25, eff. Jan. 1, 1972)

Cross reference—Penalty, § 603-99.

Sec. 603-27. Clothing of Employees to be Clean.

The aprons, smocks or other outer clothing of employees who handle meat in contact with such clothing, shall be of a material that is readily cleaned and made sanitary, and shall be cleansed daily, if used. Employees who handle meat or meat food products shall be required to keep their hands clean.

(C.O. 603-31; renumbered to C.M.C. 603-27, eff. Jan. 1, 1972)

Cross reference—Penalty, § 603-99.

Sec. 603-29. Toilet and Dressing Rooms.

All toilet rooms, urinals and dressing rooms shall be entirely separated from compartments in which carcasses are dressed, or meat or meat products are cured, stored, packed, handled, prepared or sold. They shall be sufficient in number, ample in size and fitted with modern lavatory accommodations, including toilet paper, soap, running water, and towels. They shall be properly lighted, suitably ventilated and kept in a sanitary condition.

(C.O. 603-33; renumbered to C.M.C. 603-29, eff. Jan. 1, 1972)

Cross reference—Penalty, § 603-99.

Sec. 603-31. Lighting, Ventilating.

The rooms or compartments in which meats or meat food products are prepared, cured, stored, packed or otherwise handled shall be properly lighted and ventilated, and shall be so located that odors from toilet rooms, catch basins, casing departments, tank rooms, and hide cellars do not permeate them. All rooms or compartments shall be provided with cuspidors, which employees who expectorate shall be required to use.

(C.O. 603-34; renumbered to C.M.C. 603-31, eff. Jan. 1, 1972)

Cross reference—Penalty, § 603-99.

Sec. 603-33. Persons with Communicable Diseases Not to be Employed.

Persons affected with tuberculosis or any other communicable disease shall not be employed in any of the departments or establishments where carcasses are dressed, meats handled or meat food products prepared, and any employee suspected of being so affected shall be so reported by the chief food inspector to the manager of the establishment and to the health commissioner.

(C.O. 603-36; renumbered to C.M.C. 603-33, eff. Jan. 1, 1972)

Cross reference—Penalty, § 603-99.

Sec. 603-36. Unsanitary Uses Prohibited.

No use incompatible with proper sanitation shall be made of any part of the premises on which a slaughter house is located. All yards, fences, pens, chutes, and alleys belonging to the premises of such establishment shall, whether they are used or not, be maintained in a sanitary condition.
(C.O. 603-37; renumbered to C.M.C. 603-35, eff. Jan. 1, 1972)
Cross reference—Penalty, § 603-99.

Sec. 603-37. Diseased Carcasses, Sanitary Practices.

Butchers who dress diseased carcasses shall cleanse their hands of all grease and then immerse them in a prescribed disinfectant and rinse them in clear water before engaging again in dressing or handling healthy carcasses. All butchers' implements used in dressing diseased carcasses shall be cleansed of all grease and then sterilized, either in boiling water or by immersion in a prescribed disinfectant, and rinsed in clear water before being used again in dressing healthy carcasses. Facilities for such cleansing and disinfection approved by the health commissioner shall be provided by the establishment. Separate trucks shall be furnished for handling diseased carcasses and parts. Following the slaughter of an animal affected with an infectious disease, a stop shall be made until the implements have been cleansed and disinfected, unless duplicate implements are provided.
(C.O. 603-38; renumbered to C.M.C. 603-37, eff. Jan. 1, 1972)
Cross reference—Penalty, § 603-99.

Sec. 603-39. Handling of Products for Rendering.

Meat and meat food products intended for rendering into edible products must be prevented from falling on the floor while being emptied into the tanks by use of some device, such as a funnel.
(C.O. 603-39; reordained as C.M.C. 603-39, eff. Jan. 1, 1972)
Cross reference—Penalty, § 603-99.

Sec. 603-41. Holding Skewers in Mouth Prohibited.

Butchers who dress carcasses are prohibited from holding in their mouths skewers to be used in such dressing.
(C.O. 603-40; renumbered to C.M.C. 603-41, eff. Jan. 1, 1972)
Cross reference—Penalty, § 603-99.

Sec. 603-43. No Slaughtering in Residences.

No slaughter house, or any part thereof, shall be used or occupied as a residence or lodging place for any person; and no slaughtering of livestock shall be permitted in any house, building, or place used as a residence or lodging place for human beings.
(C.O. 603-42; renumbered to C.M.C. 603-43, eff. Jan. 1, 1972)
Cross reference—Penalty, § 603-99.

Sec. 603-45. Dogs.

No dog shall be permitted in any slaughter house or any place where meats are prepared.
(C.O. 603-43; renumbered to C.M.C. 603-45, eff. Jan. 1, 1972)
Cross reference—Penalty, § 603-99.

Sec. 603-47. Lockers for Inspectors.

A suitable locker, approved by the commissioner of health, shall be furnished free of cost by the proprietor of each slaughter house for the use of the health commissioner or authorized assistant.
(C.O. 603-45; renumbered to C.M.C. 603-47, eff. Jan. 1, 1972)

Sec. 603-49. Permit to Remove Dead Animals.

All persons engaged in the removal of dead cattle, sheep, goats or swine from or within the city limits, except from the streets and public grounds of the city by contract with the city, shall first obtain a written permit from the board of health to conduct such business. All applications for such permits shall be in writing and shall state the location of the factory or place to which such dead animals are to be taken and the exact disposition to be made of them or their products. All persons engaged in such business shall, at the close of each calendar week, make a report to the board of health upon blanks furnished by the board, which shall state the number and kind of dead animals removed and the disposition made of them.
(C.O. 603-46; renumbered to C.M.C. 603-49, eff. Jan. 1, 1972)

Cross reference—Penalty, § 603-99.

Sec. 603-51. Conflict with Federal Laws.

If any of the provisions of this chapter shall conflict with or be inconsistent with the laws of the United States, or the rules of the United States department of agriculture or of the Ohio department of agriculture governing the inspection of meat, such laws and rules shall govern.
(C.O. 603-47; a. Ord. No. 279-1968, eff. July 12, 1968; renumbered to C.M.C. 603-51, eff. Jan. 1, 1972)

Sec. 603-53. Selling Sheep and Goats.

No person shall sell or offer for sale in the city any sheep, lamb, goat or kid that has been slaughtered, until the head, feet, pelt and plucks thereof shall have been completely severed therefrom.
(C.O. 603-48; renumbered to C.M.C. 603-53, eff. Jan. 1, 1972)

Cross reference—Penalty, § 603-99-B.

Sec. 603-55. Killing Poultry in Public Places.

No person shall kill or dress any poultry in any of the market houses, market spaces, streets, avenues or public places of the city.
(C.O. 603-50; renumbered to C.M.C. 603-55, eff. Jan. 1, 1972)

Cross reference—Penalty, § 603-99-C.

Sec. 603-57. Dealers in Horsemeat to Use Special Signs.

Every dealer conducting a store or other place of business at which horsemeat or horsemeat products are sold shall maintain a sign with letters not less than two inches high, in a conspicuous place in the front window of such store or at the entrance thereto, and also above or on the wall of the meat department, containing the words: "HORSEMEAT SOLD HERE."

Nothing in this section shall apply to the sale of horsemeat in a hermetically sealed container labeled so as to indicate it is for animal consumption, nor to the sale of horsemeat in a customarily prepared animal food package of dried or prepared biscuit; nor to the sale of chopped horsemeat decharacterized by the addition of not less than one-half of 1 percent charcoal, thoroughly mixed with the chopped horsemeat, and labeled so as to plainly indicate it is for animal consumption.
(C.O. 603-55; renumbered to C.M.C. 603-57, eff. Jan. 1, 1972)

Cross reference—Penalty, § 603-99-A.

Sec. 603-59. Horsemeat Dealer Not to Sell Other Meat.

No dealer in horsemeat or horsemeat products shall sell or handle any other kind of meat or meat products at dealer's store or place of business.

Nothing in this section shall apply to the sale of horsemeat in a hermetically sealed container labeled so as to indicate it is for

animal consumption, nor to the sale of horsemeat in a customarily prepared animal food package of dried or prepared biscuit; nor to the sale of chopped horsemeat decharacterized by the addition of not less than one half of 1 percent charcoal, thoroughly mixed with the chopped horsemeat, and labeled so as to plainly indicate it is for animal consumption.
(C.O. 603-56; renumbered to C.M.C. 603-59, eff. Jan. 1, 1972)

Cross reference—Penalty, § 603-99-A.

Sec. 603-61. Restaurants Serving Horsemeat.

No owner or operator of any restaurant or other food-handling establishment, serving cooked or prepared horsemeat, or food products containing horsemeat, for consumption on the premises, shall sell or permit the horsemeat to be sold under any designation not indicating that horsemeat is used in such cooked or prepared meat or food products.
(C.O. 603-58; renumbered to C.M.C. 603-61, eff. Jan. 1, 1972)

Cross reference—Penalty, § 603-99-A.

Sec. 603-63. Serving Cooked or Prepared Horsemeat; Sign Required.

The owner or manager of any restaurant or other food-handling establishment serving cooked or prepared horsemeat for consumption on the premises shall cause at least one sign to be prominently displayed in each room where such foods are served, containing the words in letters not less than four inches high: "HORSEMEAT SERVED HERE." If menu cards are used, any food containing horsemeat shall be so designated on the menu.
(C.O. 603-59; renumbered to C.M.C. 603-63, eff. Jan. 1, 1972)

Cross reference—Penalty, § 603-99-A.

Sec. 603-65. Horsemeat Products to be Labeled.

Every dealer selling cooked or prepared horsemeat products at retail, other than properly labeled food preparations intended for consumption by animals, shall cause the products to be conspicuously stamped, branded or labeled with the words "HORSEMEAT"' or "HORSEMEAT PRODUCTS."
(C.O. 603-61; renumbered to C.M.C. 603-65, eff. Jan. 1, 1972)

Cross reference—Penalty, § 603-99-A.

Sec. 603-67. Retail Sale of Meat by Weight.

Meat, poultry, cheese or seafood for retail purposes shall be displayed, advertised, offered for sale, or sold, by weight, except for the following:

(a) Shellfish in the shell;

(b) Meat, poultry, cheese or seafood sold for consumption on the premises;

(c) Meat, poultry, cheese or seafood as one of several elements comprising a ready-to-eat meal sold as a unit for consumption other than on the premises where sold;

(d) Meat, poultry, cheese or seafood sold as part of a sandwich.

The retail display, advertising, offering for sale, or sale of a combination package shall include the weight and price per pound of each different cut or type of meat, poultry, cheese or seafood constituting the combination package.

For the purposes of this section, combination package shall mean any prepackaged collection of more than one cut or more than one type of meat, poultry, cheese, or seafood, with a net weight of more than three pounds.
(C.M.C. 603-67; ordained by Ord. No. 125-1977, eff. Apr. 13, 1977; a. Ord. No. 361-1977, eff. Sept. 21, 1977)

Sec. 603-68. Retail Defined.

Retail shall mean, as used in Section 603-67, the selling directly to a consumer.
(C.M.C. 603-68; ordained by Ord. No. 236-1977, eff. June 15, 1977)

Sec. 603-69. Wholesale Sale of Meat by Weight.

Meat, poultry, cheese or seafood for wholesale purposes shall be sold by weight, except for shellfish in the shell.
(C.M.C. 603-69; ordained by Ord. No. 236-1977, eff. June 15, 1977)

Sec. 603-70. Wholesale Defined.

Wholesale shall mean, as used in Section 603-69, the selling to retailers or jobbers or to one who intends to resell rather than to a consumer.
(C.M.C. 603-70; ordained by Ord. No. 236-1977, eff. June 15, 1977)

Sec. 603-99. Penalties.

Whoever violates any provision of this chapter for which no specific penalty is provided shall for a first offense be fined not more than $100, and for a second or any subsequent offense may in addition to such fine be imprisoned for not more than three months.
(C.O. 603-75; a. Ord. No. 414-1970, Dec. 23, 1970; renumbered to C.M.C. 603-99, eff. Jan. 1, 1972)

Sec. 603-99-A. Violation of Section 603-57, 603-59, 603-61, 603-63, or 603-65.

Whoever violates any provisions of Section 603-57, 603-59, 603-61, 603-63, or 603-65 shall be fined not more than $25. Each sale or service of food contrary to such provisions and each day's failure to maintain a sign as required by such provisions shall constitute a separate offense.
(C.O. 60-63; renumbered to C.M.C. 603-99-A, eff. Jan. 1, 1972)

Sec. 603-99-B. Violation of Section 603-63.

Whoever violates any provisions of Section 603-53 shall be fined not more than $100.
(C.O. 603-48; renumbered to C.M.C. 603-99-B, eff. Jan. 1, 1972)

Sec. 603-99-C. Violation of Section 603-66.

Whoever violates any provisions of Section 603-55 shall be fined not more than $50.
(C.O. 603-50; renumbered to C.M.C. 603-99-C, eff. Jan. 1, 1972)

Chapter 604

RAT CONTROL

Sec. 604-1. Rat Control Program.
Sec. 604-3. Specifications for Rat-Proofing of Premises. (Repealed).
Sec. 604-5. All Improved Premises to be Rat-Proofed.
Sec. 604-7. Notice of Intent to Rat-Proof.
Sec. 604-9. Injuring Rat-Proof Constructions.
Sec. 604-11. Rat Control Inspection.
Sec. 604-13. Rat-Proofing by the Board of Health.
Sec. 604-15. Rat Control Fund.
Sec. 604-17. Unapproved Bird, Fowl or Animal Feeding.
Sec. 604-99. Penalties.

Sec. 604-1. Rat Control Program.

The board of health is authorized to conduct a continuous program of rat control, including procedures for the extermination of rats by trapping and poisoning, elimination of rat harborage and food supply, rat-proofing of buildings, maintenance of inspection and other rat control services, and educational methods designed to inform and secure the cooperation of the public.
(C.O. 608-1; renumbered to C.M.C. 604-1, eff. Jan. 1, 1972)

Sec. 604-3. Specifications for Rat-Proofing of Premises. (Repealed).

Editor's note—Resolution No. 2003-01, adopted Feb. 12, 2003, repealed Board of Health Regulation 00057, codified as § 604-3 of the Cincinnati Municipal Code.

Sec. 604-5. All Improved Premises to be Rat-Proofed.

It shall be the duty of the owner, lessee, or other responsible person in control of improved real estate premises to provide for the effective rat-proofing of the premises and keep them effectively rat-proofed in accordance with the regulations and specifications of the board of health.
(C.O. 608-4; renumbered to C.M.C. 604-5, eff. Jan. 1, 1972)

Cross reference—Penalty, § 604-99.

Sec. 604-7. Notice of Intent to Rat-Proof.

Whenever the work of rat-proofing any improved real estate premises shall require the construction, reconstruction or repair of any building or other appurtenance thereof, a permit for such work shall be obtained from the director of buildings and inspections before the work is begun.
(C.O. 608-6; renumbered to C.M.C. 604-7, eff. Jan. 1, 1972)

Cross reference—Penalty, § 604-99.

Sec. 604-9. Injuring Rat-Proof Constructions.

No person shall remove, damage or destroy any part of any building or other appurtenance of improved real estate premises intended to protect such premises against ingress of rats, or in any other way create a condition by which ingress of rats is made possible; provided that this section shall not apply where the interference with the rat-proofing is made necessary in connection with a lawful construction, reconstruction or repair if the rat-proofing is promptly restored.
(C.O. 608-7; renumbered to C.M.C. 604-9, eff. Jan. 1, 1972)

Cross reference—Penalty, § 604-99.

Sec. 604-11. Rat Control Inspection.

Inspectors of the board of health shall have access at all reasonable times to buildings and premises for the purpose of inspecting the same with reference to rat harborage, rat access conditions and the need for rat-proofing.

No person shall refuse permission for such inspection by a lawfully authorized inspector, or otherwise interfere with such inspection.
(C.O. 608-9; renumbered to C.M.C. 604-11, eff. Jan. 1, 1972)

Cross reference—Penalty, § 604-99.

Sec. 604-13. Rat-Proofing by the Board of Health.

The board of health shall be authorized to undertake the rat-proofing of any improved real estate premises with its own forces. Application for such rat-proofing service shall be made to the board of health by the owner of the premises or an authorized agent and shall be accompanied by a preliminary fee of $6.50.

If the application is accepted, the proper officer of the board of health shall cause an

inspection to be made of the premises applied for, to determine the cost of making such premises rat-proofed by preventing ingress of rats from without, through proper construction or repair, and by exterminating rats within such premises by means of trapping and poisoning. After such examination, the health commissioner shall estimate the actual cost necessary for material and services to rat-proof the premises and shall offer to make the required rat-proofing for the amount of such estimate plus a 20 percent charge for overhead. If the property owner shall desire the health commissioner to proceed with the proposed rat-proofing, the owner shall pay the estimated amount of cost plus 20 percent to the city treasurer to the credit of the rat control fund and the health commissioner through inspectors and employees shall cause the work of rat-proofing to be consummated.

If the actual cost for materials and service to the city is less than the estimate furnished to the property owner, the difference shall be refunded with the proportionate amount of the overhead.
(C.O. 608-12; a. Ord. No. 90-1969, eff. Apr. 1,1969; renumbered to C.M.C. 604-13, eff. Jan. 1, 1972)

Sec. 604-15. Rat Control Fund.

The city treasurer is hereby authorized and directed to establish a special fund to be known as the "Rat Control Fund" from which he shall make all expenditures in connection with the rat control program as provided in this chapter; provided, however, that there shall be retained in the fund, at all times, a sum estimated to be sufficient to make the necessary refunds to property owners as provided in Section 604-13.
(C.O. 608-13; renumbered to C.M.C. 604-15, eff. Jan. 1, 1972)

Sec. 604-17. Unapproved Bird, Fowl or Animal Feeding.

No person who has put outdoors, or allowed to be put outdoors, any food for the purpose of nourishing birds, fowl or animals shall allow such food to be available to rats by leaving the food unattended by some person unless such food shall be in an aboveground-level birdfeed container.

Persons feeding injured or stray animals for the purpose of capturing and harboring such animals shall not be considered to be in violation of this section.
(Ordained by Ord. No. 532-1983, eff. Dec. 16, 1983)

Sec. 604-99. Penalties.

Whoever violates any section of this chapter shall be fined not more than $100.00.
(C.O. 608-15; renumbered to C.M.C. 604-99, eff. Jan. 1, 1972)

Chapter 605

MILK

Sec. 605-1. Approved Milk.
Sec. 605-3. Inspection Charges.
Sec. 605-5. Miscellaneous Dealers.
Sec. 605-7. Inspection of Books.
Sec. 605-11. Revocation of Permit.
Sec. 605-13. Rules and Regulations.
Sec. 605-99. Penalties.

Sec. 605-1. Approved Milk.

All milk, milk products or ice cream, sold or distributed for consumption in the city of Cincinnati shall come from sources approved by the board of health of Cincinnati.
(Sec. 605-1; ordained by Ord. No. 279-1968, eff. July 12, 1968; reordained as C.M.C. 605-1, eff. Jan. 1, 1972)

Analogous to C.O. 605-16; a. Ord. No. 279-1968, eff. July 12, 1968.

Cross reference—Penalty, § 605-99.

Sec. 605-3. Inspection Charges.

Every owner of a milk or ice cream plant located within the city of Cincinnati, and every owner of a milk or ice cream plant located outside the city of Cincinnati, which handles milk, milk products or ice cream for distribution, in whole or in part within the city of Cincinnati, shall pay to the city treasurer an inspection charge of 3.5 cents for plants located within the city of Cincinnati and 4.0 cents for plants located outside the city of Cincinnati for each 100 pounds of milk received from milk producers having a Cincinnati board of health permit in good standing.
(Sec. 605-3; ordained by Ord. No. 279-1968, eff. July 12, 1968; reordained as C.M.C. 605-3, eff. Jan. 1, 1972; a. Ord. No. 134-1983, eff. Jan. 30, 1983)

Sec. 605-5. Miscellaneous Dealers.

Any dealer or distributor of milk products or ice cream, other than the owner of a milk or ice cream plant, distributing milk or ice cream within the city of Cincinnati, directly or indirectly, shall be subject to the same regulations as milk or ice cream plants, and shall pay the same inspection charges; provided, however, that no dealer or distributor shall be required to pay inspection charges on milk or ice cream on which an inspection charge has already been paid by another dealer or distributor.
(Sec. 605-5; ordained by Ord. No. 279-1968, eff. July 12, 1968; reordained as C.M.C. 605-5, eff. Jan. 1, 1972)

Analogous to C.O. 606-18; r. Ord. No. 279-1968, eff. July 12, 1968.

Cross reference—Penalty, § 605-99.

Sec. 605-7. Inspection of Books.

The health commissioner or any authorized subordinate shall be permitted, at any reasonable time, to investigate the correctness or accuracy of the statements filed in accordance with Sections 605-3 and 605-5 and for that purpose shall have access at all reasonable times to all books and documents of dealers and distributors bearing on the amount of milk, milk products or ice cream received or sold by any milk dealer, ice cream dealer or distributor whose products are distributed in the city of Cincinnati. The information so obtained by the officers and employees of the board of health from such investigation of the books and accounts of any milk or ice cream dealer shall not be divulged or made public except as follows:

(a) The information may be furnished to other public administration officials in the regular course of their official duties.

(b) The information obtained may be statistically handled and published in the form of general statistical studies or data, in which the identity of the persons furnishing the information and the persons, firms or corporations from whom it was obtained shall not be disclosed.

(c) The information may be offered as evidence by the health commissioner or any duly authorized subordinate in any civil action at law for the collection of inspection fees or in any admin-

istrative hearing held pursuant to the provisions of the sections of the Cincinnati Municipal Code dealing with milk inspection and milk inspection fees.

(Sec. 605-7; ordained by Ord. No. 279-1968, eff. July 12, 1968; reordained as C.M.C. 605-7, eff. Jan. 1, 1972)

Analogous to C.O. 605-19; r. Ord. No. 279-1968, eff. July 12, 1968.

Cross reference—Penalty, § 605-99.

Sec. 605-11. Revocation of Permit.

The failure of any milk or ice cream dealer or distributor, for the period of more than 30 days, to pay the required inspection charges on milk, milk products or ice cream handled, or the failure otherwise to comply with the provisions of Section 605-1, 605-3, 605-5 or 605-7, shall be cause for the revocation or withdrawal of the permission granted to such dealer or distributor to distribute milk, milk products and ice cream in the city of Cincinnati, or to dispose of them to others for distribution within the city of Cincinnati.

(Sec. 605-11; ordained by Ord. No. 279-1968, eff. July 12, 1968; reordained as C.M.C. 605-11, eff. Jan. 1, 1972)

Analogous to C.O. 605-22; r. Ord. No. 279-1968, eff. July 12,1968.

Sec. 605-13. Rules and Regulations.

The board of health shall have all necessary power to enact and enforce reasonable rules and regulations to carry out the purposes of the sections of this chapter dealing with inspection of milk, milk products and ice cream, and the collection of inspection charges therefor.

(Sec. 605-13; ordained by Ord. No. 279-1968, eff. July 12,1968; reordained as C.M.C. 605-13, eff. Jan. 1, 1972)

Analogous to C.O. 605-23; r. Ord. No. 279-1968, eff. July 12, 1968.

Sec. 605-99. Penalties.

No milk or ice cream dealer or distributor shall fall to comply with any provision of Section 605-1, 605-3, 605-5 or 605-7.

Whoever violates any provision of such sections shall be fined not more than $100 for each separate offense.

(Sec. 605-9; ordained by Ord. No. 279-1968, eff. July 12, 1968; renumbered to C.M.C. 605-99, eff. Jan. 1, 1972)

Analogous to C.O. 605-21; a. Ord. No. 279-1968, eff. July 12, 1968.

Chapter 606

RABIES VACCINATIONS FOR DOGS

Sec. 606-1. Definitions.
Sec. 606-1-D. Dog.
Sec. 606-1-H. Harboring.
Sec. 606-1-I. Inoculated.
Sec. 606-1-V. Veterinarian.
Sec. 606-3. Vaccination of Dogs.
Sec. 606-5. Reserved.
Sec. 606-7. Duty of Veterinarian.
Sec. 606-9. Tag to be Attached to Dog and Rabies Vaccination Certificate Retained by Owner.
Sec. 606-11. Exceptions.
Sec. 606-99. Penalties.

Sec. 606-1. Definitions.

For the purpose of these regulations pertaining to the inoculation of dogs with anti-rabic vaccine, the words and phrases defined in the sections hereunder shall have the meanings therein respectively ascribed to them, unless a different meaning is clearly indicated by the context.
(Sec. 606-1; ordained by Ord. No. 279-1968, eff. July 12, 1968; reordained as C.M.C. 606-1, eff. Jan. 1, 1972)

Analogous to C.O. 606-15; a. Ord. No. 477-1958, eff. Dec. 31, 1958; r. Ord. No. 279-1968, eff. July 12, 1968.

Sec. 606-1-D. Dog.

"Dog" shall include dogs of either sex more than three months of age.
(Sec. 606-1; ordained by Ord. No. 279-1968, eff. July 12, 1968; reordained as C.M.C. 606-1-D, eff. Jan. 1, 1972; a. Ord. No. 0021-2008, §§ 1, 2, eff. 2-15-08)

Analogous to C.O. 606-15; a. Ord. No. 477-1958, eff. Dec. 31,1958; r. Ord. No. 279-1968, eff. July 12, 1968.

Sec. 606-1-H. Harboring.

"Harboring," as applied to a person harboring a dog, shall mean a person who shall permit any dog to remain and be lodged and fed within his or her home or enclosure.
(Sec. 606-1; ordained by Ord. No. 279-1968, eff. July 12, 1968; reordained as C.M.C. 606-1-H, eff. Jan. 1972)

Analogous to C.O. 606-15; a. Ord. No. 477-1958, eff. Dec. 31, 1958; r. Ord. No. 279-1968, eff July 12, 1968.

Sec. 606-1-I. Inoculated.

"Inoculated" shall mean the administration of an anti-rabic vaccine, the method and administration of which has been approved by the current "Compendium of Animal Rabies Vaccines" prepared by the National Association of State Public Health Veterinarians, Inc., or the board of health.
(Sec. 606-1; ordained by Ord. No. 279-1968, eff. July 12, 1968; reordained as C.M.C. 606-1-I, eff. Jan. 1, 1972; a. Ord. No. 0021-2008, §§ 3, 4, eff. 2-15-08)

Analogous to C.O. 606-15; a. Ord. No. 477-1958, eff. Dec. 31, 1958; r. Ord. No. 279-1968, eff. July 12, 1968.

Sec. 606-1-V. Veterinarian.

"Veterinarian" shall mean any person licensed to practice the profession of veterinary medicine in the State of Ohio.
(Sec. 606-1; ordained by Ord. No. 279-1968, eff. July 12, 1968; reordained as C.M.C. 606-1-V, eff. Jan. 1, 1972)

Analogous to C.O. 606-15; a. Ord. No. 477-1958, eff. Dec. 31, 1958; r. Ord. No. 279-1968, eff. July 12, 1968.

Sec. 606-3. Vaccination of Dogs.

It shall be the duty of every person who owns or harbors a dog or dogs in the City of Cincinnati to have such dog or dogs inoculated by a veterinarian with a rabies vaccine so that the dog is continually protected against rabies by having the dog revaccinated as necessary; provided, however, that dogs shall not be required to be vaccinated before reaching the age of three months.

No person shall fail to have such dog or dogs inoculated.
(Sec. 606-3; ordained by Ord. No. 279-1968, eff. July 12, 1968; reordained as C.M.C. 606-3, eff. Jan. 1, 1972; a. Ord. No. 0021-2008, §§ 5, 6, eff. 2-15-08)

Analogous to C.O. 606-16; a. Ord. No. 477-1958, eff. Dec. 31, 1958; a. Ord. No. 377-1959, eff. Dec. 12, 1959; r. Ord. No. 279-1968, eff. July 12, 1968.

Cross reference—Penalty, § 606-99.

Sec. 606-5. Reserved.

Editor's note—Ord. No. 0021-2008, § 7, adopted Jan. 16, 2008, eff. Feb. 15, 2008, repealed § 606-5 in its entirety. Formerly, said section pertained to Board of Health to Prepare Certificates as enacted by section 606-5; ordained by Ord. No. 279-1968, eff. July 12, 1968; as amended.

Sec. 606-7. Duty of Veterinarian.

It shall be the duty of each veterinarian, when inoculating a dog with anti-rabic vaccine, to complete the rabies vaccination certificate as recommended by the National Association of State Public Health Veterinarians, Inc., or its equivalent containing the same information as such, and without delay, distribute a copy of the certificate to the dog owner or harborer. A copy shall be retained by the veterinarian.

At the time of the inoculation of any dog, the veterinarian shall also deliver to the owner or

harborer of said dog a durable rabies vaccination tag, as evidence of such inoculation with antirabic vaccine.
(Sec. 606-7; ordained by Ord. No. 279-1968, eff. July 12, 1968; reordained as C.M.C. 606-7, eff. Jan. 1, 1972; a. Ord. No. 0021-2008, §§ 8, 9, eff. 2-15-08)

Analogous to C.O. 606-18; r. Ord. No. 279-1968, eff. July 12, 1968.

Sec. 606-9. Tag to be Attached to Dog and Rabies Vaccination Certificate Retained by Owner.

Every owner or harborer of a dog, upon obtaining the tag from a veterinarian, shall immediately attach the tag to the collar or harness of said dog to be worn by said dog at all times. The certificate obtained from the veterinarian shall be retained by the owner or harborer of such dog for inspection by the officials of the health and police department at all times.
(Sec. 606-9; ordained by Ord. No. 279-1968, eff. July 12, 1968; reordained as C.M.C. 606-9, eff. Jan. 1972; a. Ord. No. 0021-2008, §§ 10, 11, eff. 2-15-08)

Analogous to C.O. 606-19; r. Ord. No. 279-1968, eff. July 12, 1968.

Cross reference—Penalty, § 606-99.

Sec. 606-11. Exceptions.

The requirement imposed by Section 606-3 shall not apply to dogs kept by regularly chartered medical colleges or other educational or scientific institutions to be used for scientific purposes or to dogs kept in licensed breeding kennels and confined to the premises at all times and to dogs brought to the city for exhibition purposes at any dog show, provided a permit for the holding of such show is obtained from the board of health.
(Sec. 606-11; ordained by Ord. No. 279-1968, eff. July 12, 1968; reordained as C.M.C. 606-11, eff. Jan. 1, 1972)

Analogous to C.O. 606-20; r; Ord. No. 279-1968, eff. July 12, 1968.

Sec. 606-99. Penalties.

Whoever violates any provision of this chapter shall be fined not more than $109.
(Sec. 606-13; ordained by Ord. No. 279-1968, eff. July 12, 1960; renumbered to C.M.C. 606-99, eff. Jan. 1, 1972)

Analogous to C.O. 606-21; r. Ord. No. 279-1968, eff. July 12, 1968.

Chapter 607

SMOKING IN STADIUM PROHIBITED

Sec. 607-1. Definitions.
Sec. 607-1-D. Designated Smoking Area.
Sec. 607-1-E. Event.
Sec. 607-1-E1. Event Sponsor.
Sec. 607-1-S. Seating Area.
Sec. 607-1-S1. Smoking or No Smoking Signs.
Sec. 607-1-S2. Smoking.
Sec. 607-1-S3. Stadium.
Sec. 607-3. No Smoking in Riverfront Stadium and Other Stadiums.
Sec. 607-99. Penalties.

Sec. 607-1. Definitions.

For the purpose of this chapter, the words and phrases defined in the sections hereunder shall have the meanings therein respectively ascribed to them, unless a different meaning is clearly indicated by the context.
(Ordained by Ord. No. 117-1993, eff. Jan. 1, 1994)

Sec. 607-1-D. Designated Smoking Area.

"Designated Smoking Area" means any area where smoking is specifically permitted. Any area in which smoking is permitted shall be a location where Environmental Tobacco Smoke, Passive Smoke or Secondhand Smoke will not accumulate.
(Ordained by Ord. No. 117-1993, eff. Jan. 1, 1994)

Sec. 607-1-E. Event.

"Event" means a Cincinnati Reds' or Bengals' game or any professional, college, high school, elementary school, sports game or match, concert, show, rally, or similar happening where admission is subject to ticket entry.
(Ordained by Ord. No. 117-1993, eff. Jan. 1, 1994)

Sec. 607-1-E1. Event Sponsor.

"Event Sponsor" means the Cincinnati Reds, Cincinnati Bengals or owner, operator or manager of an event.
(Ordained by Ord. No. 117-1993, eff. Jan. 1, 1994)

Sec. 607-1-S. Seating Area.

"Seating Area" means all seating inside a stadium whether individual seats, bleachers, or benches, including the aisles and walkways but excluding enclosed areas or rooms controlled by Board of Health regulations and other applicable law.
(Ordained by Ord. No. 117-1993, eff. Jan. 1, 1994)

Sec. 607-1-S1. Smoking or No Smoking Signs.

"Smoking" or "No Smoking" signs, as appropriate, or the international "no smoking" symbol, consisting of a depiction of a burning cigarette inside a red circle with a red bar diagonally across it, shall be clearly and conspicuously posted.
(Ordained by Ord. No. 117-1993, eff. Jan. 1, 1994)

Sec. 607-1-S2. Smoking.

"Smoking" means lighted cigarettes, cigars, pipes, other tobacco products or other lighted products.
(Ordained by Ord. No. 117-1993, eff. Jan. 1, 1994)

Sec. 607-1-S3. Stadium.

"Stadium" or "Stadiums" means a large structure for holding outdoor athletic events or other large gatherings having either a seating capacity or bleacher seating capacity exceeding two hundred persons.
(Ordained by Ord. No. 117-1993, eff. Jan. 1, 1994)

Sec. 607-3. No Smoking in Riverfront Stadium and Other Stadiums.

(a) No person shall smoke in seating areas, rest rooms or marked concession areas at Riverfront Stadium and other stadiums.

(b) No person, having been notified of the smoking prohibition contained in (a) above, shall fail or refuse to comply with a request

as provided in (f) below or order of a law enforcement officer to stop smoking or fail or refuse to go to a designated smoking area.

(c) The City Manager, or the City Manager's designee shall designate smoking areas within Riverfront Stadium or other stadiums to accommodate people who wish to smoke.

(d) The owner or operator of a Stadium shall post no smoking signs as designated by the City Manager or the City Manager's designee.

(e) The event sponsor shall at the beginning of each event announce over a public address system the smoking prohibitions and announce where the designated smoking areas are located.

(f) The event sponsor or the event sponsor's agents or employees, finding a person smoking in a prohibited area, shall notify the person of this law and request the person to stop smoking or direct the person to the designated smoking area.
(Ordained by Ord. No. 117-1993, eff. Jan. 1, 1994)

Sec. 607-99. Penalties.

Whoever violates any provision of Section 607-3(b) of this Chapter shall be guilty of a minor misdemeanor.
(Ordained by Ord. No. 117-1993, eff. Jan. 1, 1994)

Chapter 609

SALE OF TOBACCO PRODUCTS*

Sec. 609-1. Definitions.
Sec. 609-1-E. Electronic Smoking Device.
Sec. 609-1-P. Possess or Possession.
Sec. 609-1-P2. Tobacco Product Paraphernalia.
Sec. 609-1-R. Tobacco Retailer.
Sec. 609-1-S. Sale.
Sec. 609-1-S1. Smoke.
Sec. 609-1-T. Tobacco Product.
Sec. 609-1-U. Use of Tobacco.
Sec. 609-1-V. Vending Machine.
Sec. 609-3. Sale to Minors Prohibited: Possession and Use Prohibited.
Sec. 609-5. Repealed.
Sec. 609-7. Affirmative Defense.
Sec. 609-9. Tobacco Retailer Licensing.
Sec. 609-11. Rules and Regulations.
Sec. 609-13. Severability.
Sec. 609-99. Penalties.

***Editor's note—**Emer. Ord. No. 363-2018, § 18, effective Dec. 12, 2018, renamed ch. 609 from "sale, use and possession of tobacco products" to "sale of tobacco products."

Cross references—Distributing tobacco or other smoking products in public places, § 714-24; advertising of alcoholic products, ch. 850.

Sec. 609-1. Definitions.

For the purposes of this chapter the words and phrases defined in the sections hereunder shall have the meanings respectively ascribed to them, unless a different meaning is clearly indicated by the context.
(Ordained by Ord. No. 287-1995, eff. Sept. 17, 1995)

Sec. 609-1-E. Electronic Smoking Device.

"Electronic Smoking Device" shall mean any device that can be used to deliver aerosolized or vaporized nicotine to the person inhaling from the device, including, but not limited to, an e-cigarette, e-cigar, e-pipe, vape pen or ehookah. Electronic smoking device includes any component, part, or accessory of such a device, whether or not sold separately, and includes any substance intended to be aerosolized or vaporized during the use of the device. Electronic smoking device does not include drugs, devices, or combination products authorized for sale by the U.S. Food and Drug Administration, as those terms are defined in the Federal Food, Drug and Cosmetic Act.
(Ordained by Emer. Ord. No. 363-2018, § 6, eff. Dec. 12, 2018)

Sec. 609-1-P. Possess or Possession.

"Possess" or "possession" shall mean having control over a tobacco product.
(Ordained by Ord. No. 287-1995, eff. Sept. 17, 1995)

Sec. 609-1-P2. Tobacco Product Paraphernalia.

"Tobacco product paraphernalia" shall mean any product that is used to assist in chewing, smoking, absorbing, dissolving, inhaling, or any other consumption of tobacco to include, but not limited to pipes and rolling papers.
(Ordained by Emer. Ord. No. 363-2018, § 4, eff. Dec. 12, 2018)

Sec. 609-1-R. Tobacco Retailer.

"Tobacco retailer" shall mean any individual, firm, partnership, joint venture, association, joint stock company, corporation, unincorporated business entity, or any other group or combination acting as a unit that owns or operates, within the city of Cincinnati, any manufacturer, producer, distributor, supplier, vending machine, wholesaler or retailer of tobacco products. Tobacco retailer shall not mean the employees of an owner or operator of any manufacturer, producer, distributor, supplier, vending machine company, wholesaler or retailer of tobacco products.
(Ordained by Emer. Ord. No. 363-2018, § 5, eff. Dec. 12, 2018)

Sec. 609-1-S. Sale.

"Sale" shall mean delivery, barter, exchange, transfer or gift or offer thereof and each such transaction made by any person, whether as principal, proprietor, agent, servant or employee.
(Ordained by Ord. No. 287-1995, eff. Sept. 17, 1995)

Sec. 609-1-S1. Smoke.

"Smoke" shall mean to burn any tobacco product including cigarettes, cigars, tobacco products in pipes or other smoking devices or materials.
(Ordained by Ord. No. 287-1995, eff. Sept. 17, 1995)

Sec. 609-1-T. Tobacco Product.

"Tobacco product" shall mean any product that is made from or derived from tobacco, and is intended for human consumption or is likely to be consumed, whether smoked, heated, chewed, absorbed, dissolved, inhaled or ingested by any other means, including, but not limited to, a cigarette, a cigar, pipe tobacco, chewing tobacco, snuff, or snus. The

term also includes electronic smoking devices and tobacco product paraphernalia, whether or not they contain nicotine. Tobacco product does not include drugs, devices, or combination products authorized for sale by the U.S. Food and Drug Administration, as those terms are defined in the Federal Food, Drug and Cosmetic Act.
(Ordained by Ord. No. 287-1995, eff. Sept. 17, 1995; a. Emer. Ord. No. 363-2018, §§ 9, 10, eff. Dec. 12, 2018)

Sec. 609-1-U. Use of Tobacco.

"Use of Tobacco" shall mean to smoke, chew or retain any substance containing tobacco, including smokeless tobacco, in the mouth.
(Ordained by Ord. No. 287-1995, eff. Sept. 17, 1995)

Sec. 609-1-V. Vending Machine.

"Vending machine" shall mean any mechanical or electronic device designed to do both of the following: Receive a coin, bill, token, or credit card, including, but not limited to, a card, code, device, or other means of access to a customer's account, made for that purpose, and in return for the insertion or deposit of a coin, bill, token, or credit card, automatically dispense property, provide a service, or grant a license.
(Ordained by Emer. Ord. No. 363-2018, § 7, eff. Dec. 12, 2018)

Sec. 609-3. Sale of Tobacco Products to Those Under Twenty-One Years of Age Prohibited.

Effective on and after December 1, 2019, no tobacco retailer shall themselves, or through any agent, employee, representative, or vending machine, do either of the following:

(1) Give, sell or otherwise provide or distribute tobacco products to any person under twenty-one years of age.

(2) Give, sell or otherwise provide or distribute tobacco products without viewing proof of age demonstrating the recipient is at least twenty-one years of age, except that no such verification is required for a recipient over the age of thirty. That a person appeared to be over the age of thirty shall not constitute a defense to a violation of this section.

(Ordained by Ord. No. 287-1995, eff. Sept. 17, 1995; a. Emer. Ord. No. 363-2018, §§ 11, 12, eff. Dec. 12, 2018)

Cross reference—Penalty, § 609-99.

Sec. 609-5. Repealed.

Editor's note—(Ordained by Ord. No. 287-1995, eff. Sept. 17, 1995; r. Emer. Ord. No. 363-2018, § 8, eff. Dec. 12, 2018)

Sec. 609-7. Affirmative Defense.

It shall be an affirmative defense for any tobacco retailer charged with violation of Section 609-3 hereof that a purchaser or recipient exhibited to the tobacco retailer, or to the tobacco retailer's agent, employee, or representative that provided or sold the tobacco products, a valid driver's license or other form of federal or state identification showing that the purchaser was at least twenty-one years of age at the time of the alleged offense.
(Ordained by Ord. No. 287-1995, eff. Sept. 17, 1995; a. Emer. Ord. No. 363-2018, §§ 13, 14, eff. Dec. 12, 2018)

Cross reference—Penalty, § 609-99.

Sec. 609-9. Tobacco Retailer Licensing.

a. No tobacco retailer shall give, sell, or distribute tobacco products without a valid license issued by the board of health, subject to the issuances of rules and regulations by the board of health. A tobacco retailer must obtain a valid tobacco retailer license from

the board of health for each property or vending machine owned or operated by the tobacco retailer.

b. Every tobacco retailer shall display at all times a printed sign or signs on the premises of any place owned or operated by the tobacco retailer and where tobacco products are sold or distributed to the public stating that tobacco products shall not be sold to anyone under the age of twenty-one, subject to the issuances of rules and regulations by the board of health determining the following:

1. The location and placement of the sign or signs;
2. the dimensions of the sign or signs; and
3. the message to be clearly and legibly displayed on the sign or signs.

c. This ordinance shall be effective on and after December 1, 2019.
(Ordained by Emer. Ord. No. 363-2018, § 1, eff. Dec. 12, 2018)

Sec. 609-11. Rules and Regulations.

The board of health is hereby authorized to promulgate rules and regulations to carry out the purpose and intent of this chapter in order to protect the public health, safety, and welfare, including, but not limited to, the circumstances under which tobacco retailer licenses may be revoked pursuant to Section 609-9. The board of health is authorized to promulgate these rules and regulations by May 31, 2019.
(Ordained by Emer. Ord. No. 363-2018, § 2, eff. Dec. 12, 2018)

Sec. 609-13. Severability.

The provisions of any part of this Chapter are severable. If any provision or subsection hereof or the application thereof to any person or circumstances is held invalid, the other provisions, subsections, and applications of the Chapter to other persons or circumstances shall not be affected thereby. It is declared to be the intent of this section that the same would have been adopted had such invalid provisions, if any, not been included herein.
(Ordained by Emer. Ord. No. 363-2018, § 3, eff. Dec. 12, 2018)

Sec. 609-99. Penalties.

(a) A violation of Section 609-3 of this chapter is a Class C1 Civil Offense as defined by Cincinnati Municipal Code Section 1501-8(d); and a person who violates this section is liable for the civil fine specified in Section 1501-99 for a Class C1 Civil Offense.

(b) A violation of Section 609-9 of this chapter is a Class C1 Civil Offense as defined by Cincinnati Municipal Code Section 1501-8(e); and a person who violates this section is liable for the civil fine specified in Section 1501-99 for a Class C1 Civil Offense. Every thirty days in violation constitutes a separate and distinct offense.

(c) Any civil fines collected under this chapter shall be deposited into a Tobacco 21 Fund for the health department to support enforcement of Chapter 609 and to be used for enforcement, community education, and compliance efforts towards state and local tobacco product sales and use laws.
(Ordained by Ord. No. 287-1995, eff. Sept. 17, 1995; a. Ord. No. 416-2000, eff. Dec. 6, 2000; a. Emer. Ord. No. 363-2018, § 15, eff. Dec. 1, 2018)

Chapter 611

CLEAN INDOOR AIR ACT (REPEALED)*

*__Editor's note—__Repealed by Emer. Ord. No. 349-2006, effective Dec. 6, 2006.

TITLE VII

GENERAL REGULATIONS*

Chapter 701

ANIMALS, BIRDS, FOWL†

Sec. 701-1. Definitions.
Sec. 701-1-A. Animal.
Sec. 701-1-C. Cruelty; Torture; Torment.
Sec. 701-1-C-1. Repealed.
Sec. 701-1-D. Downed Animal.
Sec. 701-1-D-1. Dangerous Dog.
Sec. 701-1-H. Harbor.
Sec. 701-1-H1. Repealed.
Sec. 701-1-I. Injury.
Sec. 701-1-L. Leash.
Sec. 701-1-M. Menacing Fashion.
Sec. 701-1-N. Nuisance Dog.
Sec. 701-1-O. Owner, Person, Corporation.
Sec. 701-1-P. Premises.
Sec. 701-1-P1. Police Dog.
Sec. 701-1-S. Serious Injury.
Sec. 701-1-T. Tether.
Sec. 701-1-V. Vicious Dog.
Sec. 701-1-W. Without Provocation.
Sec. 701-2. Leash Required; Responsibility for Injury.
Sec. 701-3. Transporting Downed Animal Prohibited.
Sec. 701-4. Repealed.
Sec. 701-5. Repealed.
Sec. 701-6. Repealed.
Sec. 701-7. Repealed.
Sec. 701-8. Repealed.
Sec. 701-9. Repealed.
Sec. 701-10. Repealed.
Sec. 701-11. Mistreatment of Animals.
Sec. 701-12. Rules, Regulations, and Fees.
Sec. 701-13. Cruel Treatment or Abandonment of Animals.
Sec. 701-14A. Repealed.
Sec. 701-14-A. Seizure and Impoundment of Dogs.
Sec. 701-14B. Repealed.
Sec. 701-14-B. Impoundment; Administrative Hearing, Expenses, Obtaining Release.
Sec. 701-15. Injuring Birds.
Sec. 701-17. Birds and Animals Creating Nuisance.
Sec. 701-19. Order to Muzzle Dogs.
Sec. 701-21. Enticing Dog.
Sec. 701-22. Tethering Dogs.
Sec. 701-23. Abusing Dogs; Dog Fighting.
Sec. 701-24. Repealed.

*__Cross reference—__Public utilities, tit. IV.

†__Cross references—__Rates of fare for limousines, pedicabs, tour vehicles and animal-drawn carriages, § 407-55; litter control for animal-drawn carriages, § 407-137; droves of animals, § 511-8; horses or cattle on highway, § 511-9; removal of dead animals, § 729-27.

Sec. 701-25. Repealed.
Sec. 701-26. Extreme Weather Conditions; Shelter; Food and Water.
Sec. 701-27. Loud Dog.
Sec. 701-29. Repealed.
Sec. 701-30. Dog Excrement Removal.
Sec. 701-33. Animals or Fowl Damaging Gardens and Lawns.
Sec. 701-35. Care of Fowl Confined in Crates.
Sec. 701-37. Use of Small Fowl as Toys; Mishandling or Dyeing Prohibited.
Sec. 701-39. Administering Poison to Domestic Animals.
Sec. 701-41. Endangered Species, Possession and Sale of.
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Sec. 701-50. Nuisance, Dangerous, and Vicious Dogs.
Sec. 701-60. Animal Task Force.
Sec. 701-99. Penalties.
Sec. 701-99-A. Repealed.
Sec. 701-99-A-1. Violation of Section 701-3.
Sec. 701-99-B. Violation of Section 701-22 or 701-26.
Sec. 701-99-C. Violation of Section 701-19.
Sec. 701-99-D. Violation of Section 701-11 or 701-13.
Sec. 701-99-E. Violation of Section 701-15.
Sec. 701-99-F. Violation of Section 701-33.
Sec. 701-99-G. Violation of Section 701-39.
Sec. 701-99-H. Violation of Sections Dealing with Fowl.
Sec. 701-99-I. Violation of Section 701-30.
Sec. 701-99-J. Impoundment Fees.

Sec. 701-1. Definitions.

For the purpose of this chapter the words and phrases defined in the sections hereunder shall have the meanings therein respectively ascribed to them, unless a different meaning is clearly indicated by the context.
(C.O. 720-16; renumbered to C.M.C. 701-1, eff. Jan. 1, 1972)

Sec. 701-1-A. Animal.

"Animal" shall, for the purposes of Chapter 701, mean any nonhuman animate being which is endowed with the power of voluntary motion.
(C.O. 720-16; renumbered to C.M.C. 701-1-A, eff. Jan. 1, 1972; a. Ord. No. 422-1983, eff. Oct. 8, 1983)

Sec. 701-1-C. Cruelty; Torture; Torment.

"Cruelty," "torture," and "torment" shall mean and include every act, omission, or neglect whereby unnecessary or unjustifiable physical pain or suffering is caused or permitted.
(C.O. 720-16; renumbered to C.M.C. 701-1-C, eff. Jan. 1, 1972)

Sec. 701-1-C-1. Repealed.
(Ordained by Ord. No. 460-1999, eff. Dec. 24, 1999; r. Emer. Ord. No. 183-2015, § 2, eff. June 17, 2015)

Sec. 701-1-D. Downed Animal.

"Downed Animal" means any live animal (including cattle, swine, sheep, goats, or equine species) which is unable to stand and walk without assistance.
(Ord. No. 206-1997, eff. July 18, 1997)

Sec. 701-1-D-1. Dangerous Dog.

(A) "Dangerous dog" means a dog that, without provocation, has done any of the following:

(1) Caused injury, other than killing or serious injury, to any person;

(2) Killed or caused serious injury to another dog; or

(3) Been the subject of a third or subsequent violation of either Section 701-2(A) of this chapter or section 955.22(C) of the Ohio Revised Code.

(B) "Dangerous dog" does not include a police dog that has caused injury, other than killing or serious injury, to any person or has caused serious injury or killed another dog while the police dog is being used to assist one or more law enforcement officers in the performance of their official duties.
(Ordained by Ord. No. 460-1999, eff. Dec. 24, 1999; a. Ord. No. 062-2015, § 1, eff. April 4, 2015; Emer. Ord. No. 183-2015, § 1, eff. June 17, 2015)

Sec. 701-1-H. Harbor.

"Harbor" shall mean control, possess, or oversee.
(Ordained by Ord. No. 460-1999, eff. Dec. 24, 1999)

Sec. 701-1-H1. Repealed.
(Ordained by Ord. No. 460-1999, eff. Dec. 24, 1999; r. Ord. No. 062-2015, § 4, eff. April 4, 2015)

Sec. 701-1-I. Injury.

"Injury" under Chapter 701 shall mean any bodily harm resulting in physical damage, hurt, or pain. The harm may include but is not limited to that caused by a dog's bite, hit, push, bump, tackle, chase or any menacing action, which directly harms a person or indirectly causes a fall or other harmful physical contact. The damage or harm may include but is not limited to a visible bruise, cut, laceration, abrasion, contusion, puncture, lesion, or trauma; a sprain, fracture, dislocation, infection, burn, or internal injury; loss of consciousness, or any other physical manifestation of harm.
(Ordained by Ord. No. 460-1999, eff. Dec. 24, 1999; a. Ord. No. 062-2015, § 1, eff. April 4, 2015)

Sec. 701-1-L. Leash.

"Leash" shall mean a rope, leather strap, chain, or other type of tether of sufficient strength to bind a dog to the person harboring the dog.
(Ordained by Ord. No. 460-1999, eff. Dec. 24, 1999)

Sec. 701-1-M. Menacing Fashion.

"Menacing fashion" means that a dog would cause any person being chased or approached to reasonably believe that the dog will cause physical injury to that person.
(Ordained by Ord. No. 062-2015, § 3, eff. April 4, 2015)

Sec. 701-1-N. Nuisance Dog.

"Nuisance dog" means a dog that without provocation and while off the premises of its owner, keeper, or harborer has chased or approached a person in either a menacing fashion or an apparent attitude of attack or has attempted to bite or otherwise endanger any person. "Nuisance dog" does not include a police dog that while being used to assist one or more law enforcement officers in the performance of official duties has chased or approached a person in either a menacing fashion or an apparent attitude of attack or has attempted to bite or otherwise endanger any person.
(Ordained by Ord. No. 062-2015, § 3, eff. April 4, 2015)

Sec. 701-1-O. Owner, Person, Corporation.

"Person" means any individual, partnership, firm, joint stock company, corporation, association, trust, estate or other legal entity. The knowledge and actions of persons employed by or agents acting on behalf of corporations or principals shall be imputed to be the knowledge and acts of both the individuals, corporation, and principals. If the owner of a dog is a minor, then the minor's parent or legal guardian is deemed the owner for the purposes of this chapter.
(C.O. 720-16; renumbered to C.M.C. 701-1-O, eff. Jan. 1, 1972; a. Ord. No. 206-1997, eff. July 18, 1997; a. Ord. No. 460-1999, eff. Dec. 24, 1999; a. Ord. No. 460-1999, eff. Dec. 24, 1999)

Sec. 701-1-P. Premises.

"Premises" shall mean the structure and the real property which is immediately surrounding the structure titled to or controlled by the owner or harborer of a dog. This shall include any place of residence, business or other property.
(Ordained by Ord. No. 460-1999, eff. Dec. 24, 1999)

Sec. 701-1-P1. Police Dog.

"Police dog" means a dog that has been trained, and may be used, to assist one or more law enforcement officers in the performance of their official duties.
(Ordained by Ord. No. 062-2015, § 3, eff. April 4, 2015)

Sec. 701-1-S. Serious Injury.

"Serious injury" means any of the following:

(1) Any physical harm that carries a substantial risk of death;

(2) Any physical harm that involves a permanent incapacity, whether partial or total, or a temporary, substantial incapacity;

(3) Any physical harm that involves a permanent disfigurement or a temporary, serious disfigurement;

(4) Any physical harm that involves acute pain of a duration that results in substantial suffering or any degree of prolonged or intractable pain.

(Ordained by Ord. No. 460-1999, eff. Dec. 24, 1999; a. Ord. No. 062-2015, § 1, eff. April 4, 2015)

Sec. 701-1-T. Tether.

"Tether" means a rope, chain, cord, or similar restraint attached from a fixed point to a dog's collar or elsewhere on a dog, for the purpose of holding the dog in place, which in effect creates a fixed area in which the dog can move about, the radius of which is the length of the tether.
(Ordained by Emer. Ord. No. 325-2016, § 1, eff. Oct. 12, 2016)

Sec. 701-1-V. Vicious Dog.

(A) "Vicious dog" means a dog that, without provocation, has killed or caused serious injury to any person.

(B) "Vicious dog" does not include either of the following:

(1) A police dog that has killed or caused serious injury to any person while the police dog is being used to assist one or more law enforcement officers in the performance of their official duties; or

(2) A dog that has killed or caused serious injury to any person while a person was committing or attempting to commit a trespass or other criminal offense on the property of the owner, keeper, or harborer of the dog.

(Ordained by Ord. No. 460-1999, eff. Dec. 24, 1999; Emer. Ord. No. 166-2012, § 1, eff. May 16, 2012; a. Ord. No. 062-2015, § 1, eff. April 4, 2015)

Sec. 701-1-W. Without Provocation.

"Without provocation" shall, for purposes of Chapter 701, mean that a dog which acted in a menacing fashion or caused injury or serious injury was not teased, tormented, or abused by a person, or that the dog was not coming to the aid or the defense of a person who was not engaged in illegal or criminal activity and who was not using the dog as a means of carrying out such activity.
(Ordained by Ord. No. 062-2015, § 3, eff. April 4, 2015)

Sec. 701-2. Leash Required; Responsibility for Injury.

(A) Except when a dog is lawfully engaged in a competition or hunting and accompanied by the owner, keeper, harborer, or handler of the dog, no owner, keeper, or harborer of any dog shall fail at any time to do either of the following:

(1) Keep the dog physically confined or restrained upon the premises of the owner, keeper, or harborer by a leash, tether, adequate fence, supervision, or secure enclosure to prevent escape;

(2) When off the premises of the owner, keeper, or harborer, keep the dog on a leash under the reasonable control of some person who is of suitable age and discretion;

(3) This subsection does not apply when the dog is within a designated dog park pursuant to Rule 41 of the Board of Park Commissioners of the City of Cincinnati.

(B) *Violations.*

(1) *Off Leash*. A violation of subsection 701-2(A) shall constitute a Class A Civil Offense.

(2) *Menacing Fashion*. A violation of subsection 701-2(A) which results in the dog behaving in a menacing fashion shall constitute a Class C Civil Offense. A dog which has behaved in a menacing fashion may meet the definition of a nuisance dog under section 701-1-N and may be

designated as a nuisance dog in accordance with section 701-50 of this chapter.

(3) *Injury*. A violation of subsection 701-2(A) which results in injury to any person or domestic animal shall constitute a Class C Civil Offense. A dog which has caused injury to any person or domestic animal may meet the definition of a dangerous dog under section 701-1-D-1 and may be designated as a dangerous dog in accordance with section 701-50 of this chapter.

(4) *Serious Injury*. A violation of subsection 701-2(A) which results in serious injury to any person or domestic animal shall constitute a Class E2 Civil Offense. Subsequent violations of subsection 701-2(B) which result in serious injury to any person or domestic animal shall constitute a Class F Civil Offense. A dog which has caused serious injury to any person or domestic animal may meet the definition of a vicious dog under section 701-1-V and may be designated as a vicious dog in accordance with section 701-50 of this chapter.

(Ordained by Ord. No. 460-1999, eff. Dec. 24, 1999; a. Ord. No. 062-2015, § 1, eff. April 4, 2015; Emer. Ord. No. 183-2015, § 1, eff. June 17, 2015)

Cross reference—Penalty, § 701-99.

Sec. 701-3. Transporting Downed Animal Prohibited.

(1) No person shall transport or deliver any downed animal within the City of Cincinnati.

(2) It shall be an affirmative defense that anyone charged with violating Section 701-3(1) was transporting or delivering a downed animal to a veterinarian for treatment.

(Ordained by Ord. No. 206-1997, eff. July 18, 1997)

Cross reference—Traffic code, tit. V.

Sec. 701-4. Repealed.

(Ordained by Ord. No. 460-1999, eff. Dec. 24, 1999; r. Ord. No. 062-2015, § 4, eff. April 4, 2015)

Sec. 701-5. Repealed.

(Ordained by Ord. No. 460-1999, eff. Dec. 24, 1999; r. Ord. No. 062-2015, § 4, eff. April 4, 2015)

Sec. 701-6. Repealed.

(Ordained by Ord. No. 460-1999, eff. Dec. 24, 1999; a. Ord. No. 273-2003, eff. Nov. 1, 2003; a. Ord. No. 370-2003, eff. Nov. 13, 2003; a. Ord. No. 187-2008, § 1, eff. June 29, 2008; a Ord. No. 0080-2009, § 1, eff. April 25, 2009; Emer. Ord. No. 166-2012, § 3, eff. May 16, 2012; r. Ord. No. 062-2015, § 4, eff. April 4, 2015)

Sec. 701-7. Repealed.

(Ordained by Ord. No. 460-1999, eff. Dec. 24, 1999; a. Ord. No. 370-2003, eff. Nov. 13, 2003; r. Ord. No. 062-2015, § 4, eff. April 4, 2015)

Sec. 701-8. Repealed.

(Ordained by Ord. No. 460-1999, eff. Dec. 24, 1999; a. Ord. No. 272-2003, eff. Nov. 1, 2003; Emer. Ord. No. 166-2012, § 5, eff. May 16, 2012; r. Ord. No. 062-2015, § 4, eff. April 4, 2015)

Sec. 701-9. Repealed.

(Ordained by Ord. No. 460-1999, eff. Dec. 24, 1999; a. Ord. No. 0080-2009, § 3, eff. April 25, 2009; r. Ord. No. 062-2015, § 4, eff. April 4, 2015)

Sec. 701-10. Repealed.
(Ordained by Ord. No. 460-1999, eff. Dec. 24, 1999; a. Ord. No. 187-2008, § 3, eff. June 29, 2008; r. Emer. Ord. No. 166-2012, § 7, eff. May 16, 2012)

Sec. 701-11. Mistreatment of Animals.

No person shall overdrive, overload or drive when overloaded, or shall overwork, or deprive of necessary sustenance, torture, torment or cruelly beat, mutilate, or cause or procure to be so overdriven, overloaded, overworked, deprived of necessary sustenance, tortured, tormented or cruelly beaten, or mutilated, any animal, either as owner or otherwise, or shall permit any such animal to be without proper protection from the weather.
(C.O. 720-14; renumbered to C.M.C. 701-11, eff. Jan. 1, 1972)
Cross reference—Penalty, § 701-99-D.

Sec. 701-12. Rules, Regulations, and Fees.

That the safety director is authorized to establish rules, regulations, and fees necessary for the enforcement of the provisions of this chapter dealing with dogs, including the removal of the dangerous dog designation.

The safety director is authorized to charge an annual fee, not to exceed $50, for the registration of a dangerous or vicious dog.
(Ordained by Ord. No. 460-1999, eff. Dec. 24, 1999)
Cross reference—Penalty, § 701-99.

Sec. 701-13. Cruel Treatment or Abandonment of Animals.

No person, being the owner or having charge or custody of any animal, shall cruelly drive or work the same when unfit for labor, or cruelly abandon the same, or cause the same to be dragged or carried along in an unnecessarily cruel or inhuman manner, or shall knowingly and willfully authorize or permit the same to be subjected to unnecessary torture, suffering or cruelty of any kind.
(C.O. 720-15; renumbered to C.M.C. 701-13, eff. Jan. 1, 1972)
Cross reference—Penalty, § 701-99-D.

Sec. 701-14A. Repealed.
(Ordained by Ord. No. 359-2004, eff. Dec. 16, 2004; a. Ord. No. 187-2008, § 7, eff. June 29, 2008; r. Emer. Ord. No. 183-2015, § 2, eff. June 17, 2015)

Sec. 701-14-A. Seizure and Impoundment of Dogs.

(A) A police officer may cause any dog to be seized and impounded, at the owner's expense, if:

(1) The dog's owner, keeper, or harborer violates section 701-2 of this chapter; or

(2) The police officer deems the dog to be a nuisance dog, a dangerous dog, or a vicious dog, as defined in sections 701-1-N, 701-1-D-1, and 701-1-V of this chapter; or

(3) The dog is a victim of abuse or has been used for dog fighting in violation of section 701-23 of this chapter.

(B) Within three days of the seizure of the dog and/or identification of the dog's owner, keeper or harborer, whichever is later, the police officer who causes a dog to be impounded pursuant to this section shall either:

(1) File the appropriate complaint in municipal court for a criminal charge under section 701-23 of this chapter; or

(2) Forward the appropriate citation to the Office of Administrative Hearings for a civil violation under this chapter.

(C) The police officer who causes a dog to be impounded pursuant to this section shall cause the dog to be held until final adjudication of the charge or civil violation, unless ordered to release the dog as a result of an administrative hearing under section 701-14-2 of this chapter.

(Ordained by Ord. No. 460-1999, eff. Dec. 24, 1999; a. Ord. No. 359-2004, eff. Dec. 16, 2004; a. Ord. No. 187-2008, § 5, eff. June 29, 2008; a. Ord. No. 062-2015, § 1, eff. April 4, 2015; Emer. Ord. No. 183-2015, § 1, eff. June 17, 2015)

Cross reference—Penalty, § 701-99.

Note—Formerly § 701-14.

Sec. 701-14B. Repealed.

(Ordained by Ord. No. 359-2004, eff. 12-16-04; a. Ord. No. 187-2008, § 9, eff. June 29, 2008; r. Emer. Ord. No. 183-2015, § 2, eff. June 17, 2015)

Sec. 701-14-B. Impoundment; Administrative Hearing, Expenses, Obtaining Release.

(A) *Notice.*

(1) As soon as practicable, but no later than three days after the impoundment of any dog under this chapter and/or identification of the dog's owner, whichever is later, the impounding police officer shall provide written notice to the owner of the dog in accordance with CMC §1501-13.

(2) Such notice shall include:

(i) That the dog has been taken into custody;

(ii) The location where the dog is being held;

(iii) The reason for impoundment;

(iv) The expenses of impoundment and boarding and that the owner will be responsible for those expenses;

(v) That the dog's owner, keeper or harborer, can challenge the validity of the impoundment at a hearing before the Hearing Examiner; and

(vi) The date and location of any scheduled hearing.

(3) Such notice shall also reference this section so that the owner is made aware of the relevant procedures in the context of impoundment of the dog.

(B) *Office of Administrative Hearings.*

(1) A police officer's initial determination that a dog is a nuisance, dangerous, or vicious dog will not become permanent until after a hearing at the Office of Administrative Hearings in accordance with CMC §701-50.

(i) All interested persons shall have the opportunity to present evidence on the issue of whether the dog should be designated as a nuisance, dangerous, or vicious dog.

(ii) Failure of the dog's owner, keeper, or harborer to appear at the hearing shall be considered prima facie evidence that the dog is a nuisance, dangerous, or vicious dog and shall result in the forfeiture of the dog to the City of Cincinnati.

(2) When a police officer issues a citation for violation of a civil offense under this chapter, a hearing shall take

place in the Office of Administrative Hearings in accordance with CMC §1501-17.

(3) The owner shall be responsible for any expenses incurred for the holding of the dog during the pendency of a hearing.

(4) The hearing shall be held within seven days of notice being served to the owner, keeper, or harborer of the dog in accordance with CMC §1501-13.

(5) Failure of the owner, keeper, or harborer to attend any scheduled administrative hearings will result in the forfeiture of the dog to the City of Cincinnati.

(C) *Impoundment Pursuant to Criminal Charges Under CMC § 701-23.*

(1) When a dog is impounded pursuant to a charge or civil citation against its owner under CMC §701-23, the owner shall be responsible for any expenses incurred for the holding of a dog until final adjudication of the charge.

(2) Failure of the owner, keeper, or harborer to attend all scheduled criminal court appearances will result in forfeiture of the dog to the City of Cincinnati.

(3) If the owner, keeper, or harborer is found guilty of a criminal offense or in violation of a civil offense under CMC §701-23, the dog will be forfeited to the City of Cincinnati.

(D) *Obtaining Release of an Impounded Dog.*

(1) If the owner, keeper, or harborer is found to be in violation of any civil offense under this chapter, or if the dog is found to be a nuisance, dangerous, or vicious dog, the owner must obtain release of the dog within 31 days after the final order of the administrative hearing officer.

(2) If the dog is a dangerous dog or a vicious dog, the owner must show proof of liability insurance, in accordance with CMC §701-50(C), in order to obtain release of the dog.

(3) The owner must pay all costs resulting from the impoundment of the dog including, but not limited to, all costs and fees associated with the dog's impoundment and medical and/or veterinary care, in order to obtain release of the dog.

(4) The dog shall be released to the owner without expense only if:

(i) The owner, keeper, or harborer is found not to be in violation of any civil offense under this chapter, citation for which led to the impoundment of the dog;

(ii) The dog is found not to be a nuisance, dangerous, or vicious dog, when an initial designation as such led to the impoundment of the dog;

(iii) The owner, keeper, or harborer is found to be not guilty of an offense, criminal or civil, under CMC §701-23, when a charge under that section led to the impoundment of the dog; and

(iv) The owner, keeper, or harborer obtains release of the dog within 3 days of the final hearing date or final adjudication in court.

(5) The owner, keeper, or harborer may voluntarily forfeit the dog to the City of Cincinnati by execution of a written consent form. The owner, keeper, or harborer shall still be responsible for any expenses incurred for the

holding of the dog during the pendency of the hearing, including, but not limited to, all costs and fees associated with the dog's impoundment and medical and/or veterinary care.

(Ordained by Emer. Ord. No. 183-2015, § 3, eff. June 17, 2015)

Sec. 701-15. Injuring Birds.

No person shall kill, wound, maim or injure, in any manner whatever, any bird, or shall throw, fire or shoot with any gun, pistol or other deadly weapon, or any stone, arrow, or other missile, at such bird, or shall break, tear down, or destroy any bird's nest or the eggs or other contents of such nests; nor shall any person catch or capture any bird in any manner whatever, or set traps, or spread nets or snares, with intent to catch or capture any bird, or follow or pursue any bird with intent to catch or injure such bird (except tame birds actually in possession of, or owned by any person).

Nothing herein shall apply to any officer or employee of the City of Cincinnati acting in accordance with the provisions of Section 701-17.

(C.O. 720-19; renumbered to C.M.C. 701-15, eff. Jan. 1, 1972)

Cross reference—Penalty, § 701-99-E.

Sec. 701-17. Birds and Animals Creating Nuisance.

Whenever it shall appear, on complaint of residents or otherwise, that starlings, sparrows, pigeons, rodents, or other birds or animals constitute a nuisance in any part of the city, the city manager shall be authorized to use all necessary means to destroy such nuisance-creating birds and animals.

(C.O. 720-20; renumbered to C.M.C. 701-17, eff. Jan. 1, 1972)

Sec. 701-19. Order to Muzzle Dogs.

Whenever the city manager determines it necessary for the protection of the public, an order shall be issued prohibiting for a certain time therein specified, any or all dogs from running at large in any public streets or place within the city, unless such dogs are securely muzzled, or led by a line or chain, so as to effectually prevent them from biting any person or animal. Such order shall be published in a newspaper published in the city, for such time as the city manager may determine necessary.

No person shall molest or interfere in any way with any officer while engaged in carrying out such order.

(C.O. 720-23; renumbered to C.M.C. 701-19, eff. Jan. 1, 1972)

Cross reference—Penalty, § 701-99-C.

Sec. 701-21. Enticing Dog.

No person shall entice any animal of the dog kind away from the premises of the person owning or harboring the animal, with intent to deprive the owner of the possession of such animal.

(C.O. 720-24; renumbered to C.M.C. 701-21, eff. Jan. 1, 1972)

Cross reference—Penalty, § 701-99.

Sec. 701-22. Tethering Dogs.

(a) No owner, keeper, or harborer shall allow a dog to be tethered:

(1) For more than six hours in a twenty-four hour period;

(2) Between the hours of 10 p.m. and 6 a.m.;

(3) When no owner, keeper, or harborer of the dog is present on the premises; or

(4) In any area where there is an accumulation of feces or other waste, insect infestation, rodent infestation,

foul odor, or another unsanitary or dangerous condition within the radius of the tether.

(b) No owner, keeper, or harborer of a dog shall use any of the following types of tethers for the dog:

(1) A tether of less than ten feet in length, or less than four times the length of the dog's body from tip of nose to base of tail, whichever is greater;

(2) A tether the length of which allows the dog to cross the property line of the property on which it is tethered;

(3) A tether that causes injury or pain to the dog because of the material of which it is made or because of the size or weight of the tether; generally, a tether should not weigh more than one-eighth (1/8) of a dog's body weight.

(c) No owner, keeper, or harborer of a dog shall tether the dog:

(1) By attaching the tether to the dog by means of a choke chain collar, pinch collar, or prong collar, as the collars are defined by the Humane Society of the United States;

(2) By attaching the tether to a collar that is not properly fitted;

(3) In an area likely to cause injury or pain to the dog because of entanglement; or

(4) In an area likely to cause injury or pain to the dog because of surrounding structures.

(Ordained by Emer. Ord. No. 325-2016, § 1, eff. Oct. 12, 2016)

Sec. 701-23. Abusing Dogs; Dog Fighting.

No person shall beat, abuse or injure any dog in an immoderate, cruel or unnecessary manner; no person shall open or keep a dog pen or dog pit for the purpose of causing or permitting dogs to fight; and no person shall cause or set dogs to fight. A violation of this section shall constitute a first degree misdemeanor or a Class E1 Civil Offense.
(C.O. 720-25; renumbered to C.M.C. 701-23, eff. Jan. 1, 1972; a. Ord. No. 062-2015, § 1, eff. April 4, 2015; Emer. Ord. No. 183-2015, § 1, eff. June 17, 2015)

Cross reference—Penalty, § 701-99.

Sec. 701-24. Repealed.

(Ordained by Ord. No. 194-1986, eff. June 20, 1986; a. Ord. No. 43-1987, eff. Jan. 28, 1987; a. Ord. No. 321-1996, eff. Oct. 16, 1996; a. Ord. No. 95-1997, eff. May 9, 1997; r. Ord. No. 460-1999, eff. Dec. 24, 1999)

Sec. 701-25. Repealed.

(C.O. 720-27; renumbered to C.M.C. 701-25, eff. Jan. 1, 1972; a. Ord. No. 548-1981, eff. Dec. 23, 1981; a. Ord. No. 508-1983, eff. Nov. 2, 1983; a. Ord. No. 322-1996, eff. Oct. 16, 1996; r. Ord. No. 460-1999, eff. Dec. 24, 1999)

Sec. 701-26. Extreme Weather Conditions; Shelter; Food and Water.

(a) *Purpose, applicability*. This section establishes standards for placing dogs outdoors, providing shelter and sustenance to dogs, and for how extreme weather conditions affect the required treatment of dogs. These standards are meant to supplement, not replace or conflict with, the requirements and prohibitions related to the treatment of all types of domestic animals that are currently found in Section 959.13 of the Ohio Revised Code.

(b) *Outdoor time limits during extreme weather conditions*.

(1) No owner, keeper, or harborer of a dog shall leave the dog outdoors

without adequate shelter for longer than sixty minutes when the temperature is below 20 degrees Fahrenheit or above 90 degrees Fahrenheit.

(2) No owner, keeper, or harborer of a dog shall leave the dog outdoors for longer than necessary for the dog to urinate and/or defecate without adequate shelter when the National Weather Service has issued a severe weather warning for the location in which the dog is kept or harbored.

(c) *Adequate shelter*.

(1) *Suitable size, construction*. No owner, keeper, or harborer of a dog who keeps or harbors a dog outdoors as the dog's primary living space shall fail to provide for the dog a shelter suitable for the dog's breed, size, age, coat, and health.

(2) *No standing water*. All shelters must be designed and/or located such that water does not gather and stand within the structure.

(3) *Outdoor dogs in extreme weather conditions*. The owner, keeper, or harborer of a dog who provides the dog with a shelter shall adhere to paragraph (b) of this section, related to time limits during extreme weather conditions, unless the shelter provided for the dog has design and construction characteristics that, alone or in combination, sufficiently protect a particular dog against extreme weather conditions. Such characteristics include, but are not limited to, the following:

i. Door, flap, or similar device to close shelter from the elements;

ii. Construction of material durable enough to withstand strong wind;

iii. Insulation;

iv. Bedding of a material to protect against temperature extremes;

v. Floor raised above the ground;

vi. Airflow system, fan, or other cooling mechanism.

(4) *No exception if access to shelter blocked.* An owner, keeper, or harborer of a dog must keep the dog indoors, except to urinate, defecate, or for recreation, if the dog has a shelter but the shelter is not accessible because of snow, ice, flood water, or other conditions.

(d) *Food and water.* No owner, keeper, or harborer who leaves a dog unattended for more than six hours, indoors or outdoors, shall fail to provide the dog with a sufficient quantity of potable water.
(Ordained by Emer. Ord. No. 325-2016, § 1, eff. Oct. 12, 2016)

Sec. 701-27. Loud Dog.

No person shall harbor or keep any animal of the dog kind which by loud and frequent or habitual barking or yelping shall cause serious annoyance or disturbance to the neighborhood.
(C.O. 720-28; renumbered to C.M.C. 701-27, eff. Jan. 1, 1972)

Cross reference—Penalty, §§ 902-1, 902-5.

Sec. 701-29. Repealed.

(Sec. 720-30; ordained by Ord. No. 271-1963, eff. Sept. 6, 1963; a. Ord. No. 294-1963, eff. Sept. 5, 1963; renumbered to C.M.C. 701-29, eff. Jan. 1, 1972; a. Ord. No. 544-1972, eff. Jan. 5, 1973; a. Ord. No. 460-1999, eff. Dec. 24, 1999)

Sec. 701-30. Dog Excrement Removal.

No person shall allow a dog under his or her control to be upon public property or upon the property of another, absent the consent of the owner or occupant of the property, without some device for the removal and containment of such dog's excrement; nor shall any person fail to remove any excrement deposited by any dog under his or her control on public or private property.

This section shall not apply to guide dogs under the control of a blind person.
(Ordained by Ord. No. 123-1982, eff. May 7, 1982)

Cross reference—Penalty, § 701-99-I.

Sec. 701-33. Animals or Fowl Damaging Gardens and Lawns.

No person owning or harboring one or more cats, dogs, other animals or fowl shall permit such cats, dogs, other animals or fowl to run at large so as to do damage to gardens, lawns, shrubbery or other private property.
(C.O. 720-38; renumbered to C.M.C. 701-33, eff. Jan. 1, 1972)

Cross reference—Penalty, § 701-99-F.

Sec. 701-35. Care of Fowl Confined in Crates.

No person shall confine any fowl in a crate, box, or other receptacle in a cramped or unnatural position or shall overcrowd any crate, box or other receptacle with fowl or fail to provide proper food, water, shelter or sanitation for fowl confined in any receptacle.
(C.O. 720-39; renumbered to C.M.C. 701-35, eff. Jan. 1, 1972)

Cross reference—Penalty, § 701-99-H.

Sec. 701-37. Use of Small Fowl as Toys; Mishandling or Dyeing Prohibited.

No person shall use any live, newly hatched fowl or bird as a toy or pet, subject it to mistreatment or careless handling or dye it.

No person shall sell or give away such fowl to any person in lots of less than six.
(C.O. 720-40; renumbered to C.M.C. 701-37, eff. Jan. 1, 1972)

Cross reference—Penalty, § 701-99-H.

Sec. 701-39. Administering Poison to Domestic Animals.

No person shall maliciously or wilfully, and without the consent of the owner, administer poison, except as it is administered by a state licensed veterinarian acting in such capacity, to a horse, mare, foal, filly, jack, mule, sheep, goat, cow, steer, mole, heifer, ass, ox, swine, dog, cat, poultry or any other domestic animal, the property of another, nor shall any person wilfully and without the consent of the owner place any poisoned food about where it may be easily found and eaten by any of the above named animals, either upon such person's own land or the lands of another.
(C.O. 720-43; renumbered to C.M.C. 701-39, eff. Jan. 1, 1972)

Cross reference—Penalty, § 701-99-G.

Sec. 701-41. Endangered Species, Possession and Sale of.

No person shall possess with intent to sell, sell or offer for sale, or buy or attempt to buy within the city any of the following animals, alive or dead, or any part or product thereof:

all wild cats of the family Felidae, polar bear (Thalarctos martimus), red wolf (Canis niger), vicuna (Vicugna vicugna), or alligator, caiman or crocodile of the order of Crocodylia, gray or timber wolf (Canis Lupus), sea otter (Enhydra lutris), Pacific Ridley Turtle (Lepidochelys Olivacea), Atlantic Green Turtle (Chelonia Mydas), Mexican Ridley Turtle (Lepidochelys Kempi).

No person shall buy, sell or offer for sale a native or foreign species or subspecies of mammal, bird, amphibian or reptile, or the dead body or parts thereof, which appears on the Endangered Species List designated by the United States Secretary of the Interior and published in the Code of Federal Regulations pursuant to the Endangered Species Act of 1969 (Public Law 135, 91st Congress).

No person shall import or cause to be imported into this city any part of the plumage, skin or dead body of any species of hawk, owl or eagle. This paragraph shall not be construed to forbid or restrict the importation or use of the plumage, skin, body, or any part thereof legally collected for use by the American Indians for ceremonial purposes or in the preservation of their tribal customs and heritage.

This section does not prevent the importation, possession, purchase or sale of any species by the Cincinnati Museum of Natural History, institutes of higher learning, persons holding federal permits, the Cincinnati Zoological Gardens, or by a person holding a Scientific Collectors Permit issued by the Director of the Department of Natural Resources of the State of Ohio, or to any person or organization licensed to present a circus under Chapter 825 of the Cincinnati Municipal Code.

Any product being offered for sale in violation of this ordinance may be seized by any police officer acting pursuant to the orders of the city manager and upon seizure and a hearing which shall be promptly held before the city manager or person designated by the city manager may be destroyed or in appropriate circumstances be disposed of through zoological, educational or conservation institutions by order of the city manager.

Whoever violates this ordinance shall be guilty of a misdemeanor of the fourth degree for the first offense and a misdemeanor of the third degree for each subsequent offense. (C.M.C. 701-41; ordained by Ord. No. 523-1973, eff. Jan. 1, 1974)

Analogous to C.M.C. 901-E3; ordained by Ord. No. 233-1972, eff. July 1, 1972; r. Ord. No. 523-1973, eff. Jan. 1, 1974.

Sec. 701-42. Possession or Sale of Wild or Potentially Dangerous Animals; Prohibitions.

(a) No person shall keep, own, harbor, have charge of, maintain or have control of within the city a wild or potentially dangerous animal.

(b) No person shall possess with intent to sell, sell or offer for sale, or buy or attempt to buy within the city a wild or potentially dangerous animal.

(c) For purposes of this section, a wild or potentially dangerous animal is defined as an animal which is wild by nature and not customarily domesticated in the City of Cincinnati and which because of its size, disposition, or other characteristics inherently constitutes a danger to human life or property. A wild and potentially dangerous animal shall include but not be limited to:

(1) Apes: Chimpanzees (Pan); gibbons (Hylobates; gorillas (Gorilla); orangutans (Pongo); and siamangs (Symphalangus).

(2) Baboons (Papoi, Mandrillus).

(3) Bears (Ursidae).

(4) Cheetahs (Acinonyx jubatus).

(5) Coyotes (Canis latrans) and coyote-dog hybrids.

(6) Elephants (Elephas and Loxodonta).

(7) Hyenas (Hyaenidae).

(8) Jaguars (Panthera onca).

(9) Leopards (Panthera pardus).

(10) Lions (Panthera leo).

(11) Lynxes (Lynx).

(12) Pumas (Felis concolor); also known as cougars, mountain lions and panthers.

(13) Tigers (Panthera tigris).

(14) Wolves (Canis lupus) and wolf-dog hybrids.

(15) Wild cats (jungle cat, ocelot, margay, serval, caracal, leopard cat) and wildcat-domestic cat hybrids.

As used in this section, "Wild or Potentially Dangerous Animal" does not include an animal that is in the possession or control of any of the following agencies, organizations, its employees or agents:

(1) The Division of Wildlife in the Department of Natural Resources;

(2) The Ohio Department of Agriculture;

(3) An incorporated humane society;

(4) A veterinarian holding a valid license under Chapter 4741 of the Ohio Revised Code, who has custody of the animal for the purpose of providing medical treatment of the animal;

(5) Any organization that is an accredited member of the American Association of Zoological Parks and Aquariums;

(6) An agency or official of the United States government acting in its official capacity;

(7) Any research facility within the meaning of the "Animal Welfare Act," 80 STAT 359 (1966) 7 USCA 2131, as amended;

(8) A common carrier with possession of the animal for the purpose of transportation;

(9) Any person who is not currently dwelling in the city, who is traveling through the City of Cincinnati with any "wild or potentially dangerous animal," and who is in the City of Cincinnati for no more than twenty-four hours and the "wild or potentially dangerous animal" is maintained in quarters so constructed which are humane and will prevent escape;

(10) The International Society for the Preservation of Wild Animals;

(11) Research facilities of the International Society for Endangered Cats; or

(12) Any circus, exhibitor or professional entertainer, holding a valid license issued by the Secretary of Agriculture of the United States in accordance with the "Animal Welfare Act", 7 U.S.C. § 2134, and the Code of Federal Regulations, 9 C.F.R. § 2.1, present within the City of Cincinnati for the purpose of entertainment to the general public provided the wild or potentially dangerous animal is maintained in quarters so constructed which are humane and will prevent escape.

Whoever violates this section is guilty of a misdemeanor of the second degree for the first offense and a misdemeanor of the first degree for each subsequent offense.

When any person is found guilty of a second offense of Section 701-42, such person shall be fined not less than $300.00, which fine shall not be remitted.

In addition, any person found guilty of violating § 701-42 shall be liable to the city for all expenses, whether incurred by the city or advanced by the city, for the shelter, food, veterinary expenses, boarding and transportation of the seized wild or dangerous animal, and such other expenses as may be required in the relocation or destruction of any such wild or dangerous animal.
(Ord. 205-1994, eff. 7-8-94; a. Ord. No. 188-1995, eff. June 16, 1995; a. Ord. No. 106-2008, § 1, eff. April 26, 2008)

Sec. 701-43. Use of Leghold Traps Forbidden.

It shall be unlawful for any person to set, place, draw, maintain or otherwise use a leghold trap.

Any person violating this ordinance shall be fined not more than $100, or imprisoned for not more than 60 days, or both.
(C.M.C. 701-43; ordained by Ord. No. 77-1976, eff. March 26, 1976; a. Ord. No. 36-1978, eff. Mar. 2, 1978)

Sec. 701-45. Repealed.

(Ordained by Ord. No. 509-1983, eff. Nov. 2, 1983; r. Ord. No. 460-1999, eff. Dec. 24, 1999)

Sec. 701-50. Nuisance, Dangerous, and Vicious Dogs.

(A) *Designation as Nuisance, Dangerous, or Vicious.*

(1) If a police officer has reasonable cause to believe that a dog in the officer's jurisdiction is a nuisance dog, dangerous dog, or vicious dog, the police officer shall notify the owner, keeper, or harborer of that dog, within three days after that person is identified, by certified mail or in person, of both of the following:
   (i) That the police officer has designated the dog a nuisance dog, dangerous dog, or vicious dog, as applicable;
   (ii) That the owner, keeper, or harborer of the dog may attend a hearing regarding the designation in accordance with this section, section 701-14-1, and section 701-14-2, which hearing will take place no less than seven days from mailing of the notice or personal service of notice.

(2) In cases in which there is no criminal violation charged under section 701-23 of this chapter, the Office of Administrative Hearings shall make the final determination regarding a dog's designation as a nuisance, dangerous, or vicious dog. At the hearing, the city has the burden of proving, by clear and convincing evidence, that the dog is a nuisance, dangerous, or vicious dog.

(3) The owner, keeper, or harborer of the dog or the officer who designated the dog as a nuisance dog, dangerous dog, or vicious dog may appeal the determination of the Office of Administrative Hearings as in any other case heard by that office.

(B) *Duty of Care of Owner After Designation of a Dog as Nuisance, Dangerous, or Vicious as Provided in Section 701-50(A).* Except when a nuisance, dangerous, or vicious dog is lawfully engaged in hunting or training for the purpose of hunting and is accompanied by the owner, keeper, harborer, or handler of the dog, no owner, keeper, or harborer of a nuisance, dangerous, or vicious dog shall fail to do any of the following:

(1) While that dog is on the premises of the owner, keeper, or harborer, the

dog shall be securely confined at all times in a locked pen that has a top or other locked enclosure that has a top, except that if the dog is a nuisance dog it may also be confined in a locked fenced yard without a top, and:

(i) No nuisance, dangerous, or vicious dog shall be tethered or otherwise tied to any inanimate object, such as a tree, post, or building, outside of its enclosure as provided herein.

(ii) Owners, keepers, or harborers, of nuisance, dangerous, or vicious dogs who maintain the animal outdoors, shall have a portion of their property fenced with a perimeter or area fence. The pen or kennel may not share common fencing with the area or perimeter fence.

(2) All owners, keepers, or harborers of any nuisance dog, vicious dog, dangerous dog, or any dog which is used to guard any property, shall display in a prominent place on their premises and at each entrance and exit to the area where such dog is confined, a sign easily readable to the public using the words "Beware of Dog."

(3) While the nuisance, dangerous, or vicious dog is off the premises of the owner, keeper, or harborer, that person shall keep that dog on a tether that is not more than six feet in length and additionally shall do at least one of the following:

(i) Keep that dog in a locked pen that has a top, locked fenced yard, or other locked enclosure that has a top;

(ii) Have the leash or tether controlled by a person who is of suitable age and discretion or securely attach, tie, or affix the leash or tether to the ground or a stationary object or fixture so that the dog is adequately restrained and station such a person in close enough proximity to that dog so as to prevent it from causing injury to any person; or

(iii) Muzzle that dog by sufficient means to prevent it from biting other persons or animals.

(4) *Educational Training; Sterilization.* Within 31 days of a dog's final designation as a nuisance, dangerous, or vicious dog, the dog's owner, keeper, or harborer, shall, at that person's sole expense:

(i) Take an educational training course provided by a local humane society or, with approval of the Office of Administrative Hearings, a similar course provided by another entity, which teaches the basic tenets of responsible dog ownership; and

(ii) Spay or neuter the dog.

(C) *Additional Duty of Care—Dangerous or Vicious Dogs.*

(1) No person who has been convicted of or pleaded guilty to three or more violations of Ohio Revised Code Sections 955.10, 955.22, or 955.25, or who has violated Section 701-2 of this chapter three or more times involving the same dog and/or no owner of a dangerous or vicious dog shall fail to do the following:

(i) Obtain liability insurance in an amount not less than $100,000.00 with an insurer authorized to write liability insurance in this state providing coverage in each occurrence because of damage or bodily injury to or death of a

person caused by the dangerous dog and provide proof of that liability insurance upon request to any law enforcement officer, county dog warden, or public health official charged with enforcing this section;

(ii) Obtain a dangerous dog registration certificate from the county auditor pursuant to Ohio Revised Code Section 955.22, affix a tag that identifies the dog as a dangerous or vicious dog to the dog's collar, and ensure that the dog wears the collar and tag at all times;

(iii) Notify the local dog warden immediately if any of the following occurs:

a) The dog is loose or unconfined.

b) The dog bites a person, unless the dog is on the property of the owner of the dog, and the person who is bitten is unlawfully trespassing or committing a criminal act within the boundaries of that property.

c) The dog attacks another animal while the dog is off the property of the owner of the dog.

(iv) If the dog is sold, given to another person, or dies, notify the county auditor within ten days of the sale, transfer, or death.

(v) While that dog is on the premises of the owner, keeper, or harborer, the dog shall be securely confined at all times in a locked pen that has a top or other locked enclosure that has a top, and:

(2) It shall be unlawful for any person to own, harbor, or keep more than one dangerous or vicious dog.

(3) The owner of a dangerous or vicious dog shall present the dangerous dog registration certificate upon being requested to do so by any law enforcement officer, dog warden, or public health official charged with enforcing this section.

(D) *Penalties*.

(1) Whoever violates subsection (B) is subject to a Class E civil penalty.

(2) Whoever violates subsection (C) is subject to a Class E civil penalty.

(3) Additionally, for violations of subsections (B) or (C), the administrative hearing officer may order the offender to personally supervise the dog that the offender owns, keeps, or harbors, to cause that dog to complete dog obedience training, or to do both. The administrative hearing officer, in the alternative, may order the dog to be humanely destroyed by a licensed veterinarian, the county dog warden, or the county humane society at the owner's expense.

(Ordained by Ord. No. 062-2015, § 3, eff. April 4, 2015; Emer. Ord. No. 183-2015, § 1, eff. June 17, 2015)

Sec. 701-60. Animal Task Force.

(A) There shall be an animal task force on animal issues whose duty it shall be to advise the mayor and council on the establishment of appropriate practices and policies regarding animals and the safety of the public.

(B) The animal task force shall be composed of ten to twelve members. Each member shall be appointed by the mayor and approved by council. Within sixty days of the effective date of this ordinance, the mayor shall appoint and the council shall approve the inaugural members of the animal task force. Each member shall serve without compensation and shall be residents of the city.

There shall be at least one member engaged in each of the following fields: animal behaviorist, veterinarian, business management, animal rescue or humane shelter, county dog warden, experienced animal law attorney, member of the city solicitor's office or the Hamilton County prosecuting attorney's office, representative from a local social services organization, and public relations/media representative. The chief of police or his designee shall serve as a permanent member. Any additional members shall be selected from the community at large.

(C) Each member shall serve a term of two years. As the term of each member expires, the mayor shall appoint a successor. The mayor shall make appointments to fill vacancies caused by the death or resignation of members in unexpired terms.

(D) The animal task force shall meet as often as necessary but at least semi-annually, shall elect its officers, and adopt its own operating procedures consistent with city practice and policy. The animal task force shall take the following actions:

(1) Coordinate efforts among local organizations.

(2) Develop an action plan.

(3) Establish dog bite prevention priorities.

(4) Generate public and legislative support for dog bite control.

(5) Identify dog bite reporting sources.

(6) Interpret data.

(7) Identify and obtain resources for program activities (educational, financial, staffing).

(8) Provide technical expertise for the program.

(9) Recommend goals and objectives for prevention.

(10) Research, identify, and recommend appropriate training courses for the purposes of section 701-2(C) of this chapter.

(11) Research, identify, and recommend appropriate educational courses for minors.

(Ordained by Ord. No. 062-2015, § 3, eff. April 4, 2015)

Sec. 701-99. Penalties.

Whoever violates section 701-23 shall be guilty of a first degree misdemeanor or in violation of a Class E1 Civil Offense. Any dog which attacks a human being or domestic animal may be ordered destroyed when, in the court's judgment or the judgment of the Office of Administrative Hearings, such dog represents a continuing threat of serious harm to human beings or domestic animals. (C.O. 720-32; renumbered to C.M.C. 701-99, eff. Jan. 1, 1972; a. Ord. No. 548-1981, eff. Dec. 23, 1981; a. Ord. No. 508-1983, eff. Nov. 2, 1983; a. Ord. No. 460-1999, eff. Dec. 24, 1999; a. Ord. No. 0080-2009, § 5, eff. April 25, 2009; a. Ord. No. 062-2015, § 1, eff. April 4, 2015; Emer. Ord. No. 183-2015, § 1, eff. June 17, 2015)

Sec. 701-99-A. Repealed.

(Ordained by Ord. No. 194-1986, eff. June 20, 1986; r. Ord. No. 460-1999, eff. Dec. 24, 1999)

Sec. 701-99-A-1. Violation of Section 701-3.

Whoever violates Section 701-3 is guilty of a misdemeanor of the second degree.
(Ordained by Ord. 206-199, eff. July 18, 1997)

Sec. 701-99-B. Violation of Section 701-22 or 701-26.

(a) Whoever violates Section 701-22 or 701-26 of this Chapter commits a Class B Civil Offense as defined by Section 1501-5(b) of the Cincinnati Municipal Code.

(b) Whoever violates Section 701-22 or 701-26 of this Chapter for a second time in two years or less commits a Class B1 Civil Offense as defined by Section 1501-6 of the Cincinnati Municipal Code.

(c) Whoever violates Section 701-22 or 701-26 of this Chapter three or more times in two years or less commits a Class C Civil Offense as defined by Section 1501-7(b) of the Cincinnati Municipal Code.
(Ordained by Ord. No. 509-1983, eff. Nov. 2, 1983; r. Ord. No. 460-1999, eff. Dec. 24, 1999; reordained by Emer. Ord. No. 325-2016, § 1, eff. Oct. 12, 2016)

Sec. 701-99-C. Violation of Section 701-19.

Whoever violates any provision of Section 701-19 shall be fined not more than $100.
(C.O. 720-23; renumbered to C.M.C. 701-99-C, eff. Jan. 1, 1972)

Sec. 701-99-D. Violation of Section 701-11 or 701-13.

Whoever violates any provision of Section 701-11 or 701-13 shall be fined not more than $100, or imprisoned not more than 60 days, or both.
(C.O. 720-14, 720-15; a. Ord. No. 414-1970, eff. Dec. 23, 1970; renumbered to C.M.C. 701-99-D, eff. Jan. 1972)

Sec. 701-99-E. Violation of Section 701-15.

Whoever violates any provision of Section 701-15 shall be fined not more than $10.
(C.O. 720-19; renumbered to C.M.C. 701-99-E, eff. Jan. 1, 1972)

Sec. 701-99-F. Violation of Section 701-33.

Whoever violates any provision of Section 701-33, upon complaint of any owner of property damaged by any cat, dog, or other animal or fowl, shall be fined not more than $25.
(C.O. 720-38; renumbered to C.M.C. 701-99-F, eff. Jan. 1, 1972)

Sec. 701-99-G. Violation of Section 701-39.

Whoever violates any provision of Section 701-39 shall be fined not more than $200, or imprisoned not more than 30 days, or both.
(C.O. 720-43; a. Ord. No. 414-1970, eff. Dec. 23, 1970; renumbered to C.M.C. 701-99-G, eff. Jan. 1, 1972)

Sec. 701-99-H. Violation of Sections Dealing with Fowl.

Whoever violates any provision of this chapter dealing with the mishandling of fowl shall be fined not more than $100. Each day's violation shall constitute a separate offense.
(C.O. 720-42; renumbered to C.M.C. 701-99-H, eff. Jan. 1, 1972)

Sec. 701-99-I. Violation of Section 701-30.

Whoever violates Section 701-30 shall be fined not more than $50.
(Ordained by Ord. No. 123-1982, eff. May 7, 1982)

Sec. 701-99-J. Impoundment Fees.

In addition to any penalty that is provided pursuant to Chapter 955 of the Ohio Revised Code or Chapter 701 of the Cincinnati Municipal Code, when the Cincinnati Police Department has caused a dog to be confiscated due to a violation of the Cincinnati Municipal Code or the Ohio Revised Code, the owner shall reimburse the City for all costs resulting from the impoundment of the dog, including, but not limited to, all costs and fees associated with the dog's

impoundment and medical and/or veterinary care. The City shall be paid prior to the release of the dog from the SPCA.
(Ordained by Ord. No. 274-2003, eff. Aug. 6, 2003; Emer. Ord. No. 183-2015, § 1, eff. June 17, 2015)

Chapter 703

BLASTING

Sec. 703-1. Blasting Unlawful Without Permit.
Sec. 703-3. Application for Permit.
Sec. 703-5. Investigation.
Sec. 703-7. Conditions for Granting Permit.
Sec. 703-9. Revocation of Permit, Additional Security.
Sec. 703-11. Provisions of Chapter to be Cumulative.
Sec. 703-99. Penalties.

Sec. 703-1. Blasting Unlawful Without Permit.

No person, firm or corporation shall engage in blasting operations or the use of dynamite, powder or other explosives without first obtaining a permit in accordance with the provisions of this chapter.
(C.O. 719-1; renumbered to C.M.C. 703-1, eff. Jan. 1, 1972)

Cross reference—Penalty, § 703-99.

Sec. 703-3. Application for Permit.

Any person, firm or corporation desiring a blasting permit shall apply to the city manager, setting forth all information as to the proposed blasting as shall be required.
(C.O. 719-2; renumbered to C.M.C. 703-3, eff. Jan. 1, 1972)

Sec. 703-5. Investigation.

Whenever any application is made for a blasting permit, the city manager shall, at the expense of the applicant, cause an investigation to be made as to the likelihood of injury or damage to persons or to public or private property from the proposed blasting.
(C.O. 719-3; renumbered to C.M.C. 703-5, eff. Jan. 1, 1972)

Sec. 703-7. Conditions for Granting Permit.

If the city manager is satisfied, after investigation, that there is no reasonable likelihood of injury or damage from the proposed blasting, the permit may be issued subject to the following conditions:

(a) The applicant shall agree in writing to indemnify and save harmless the city of Cincinnati as to all damage, liability, claims or expenses of any kind, and to reimburse any private individual, firm or corporation for any loss or damage of any kind arising out of, or occasioned by, the proposed blasting.

(b) The applicant shall furnish a bond or indemnity insurance, in such reasonable sum as the city manager shall fix, for the benefit of the city of Cincinnati and of any private person, firm or corporation who shall be injured or damaged by the proposed blasting. Such bond or insurance shall not be released as long as any claim shall remain undisposed of or unsatisfied. Satisfactory evidence that the applicant has contracted for, and is protected by, adequate insurance may be temporarily accepted at the time of issuing permit in lieu of a policy of insurance.

(C.O. 719-4; renumbered to C.M.C. 703-7, eff. Jan. 1, 1972)

Sec. 703-9. Revocation of Permit, Additional Security.

The city manager shall be authorized at any time, for reasonable cause, to revoke a blasting permit or to require additional security as a condition of its continuance.
(C.O. 719-5; renumbered to C.M.C. 703-9, eff. Jan. 1, 1972)

Sec. 703-11. Provisions of Chapter to be Cumulative.

The relief and remedies provided by the preceding sections of this chapter shall be in addition to all legal and equitable rights of any person, firm or corporation who shall be injured or damaged by any blasting operations.
(C.O. 719-6; renumbered to C.M.C. 703-11, eff. Jan. 1, 1972)

Sec. 703-99. Penalties.

Any person who shall blast with dynamite, powder or other explosive without obtaining a permit as required by this chapter shall be

fined not more than $100, and for the purposes of this chapter each blasting operation shall constitute a separate offense.
(C.O. 719-9; a. Ord. No. 414-1970, eff. Dec. 23, 1970; renumbered to C.M.C. 703-99, eff. Jan. 1, 1972)

Chapter 704

CITY HALL

Sec. 704-1. Office Hours.
Sec. 704-3. Orderly Conduct Required.
Sec. 704-5. Games of Chance and Indecent Conduct Prohibited.
Sec. 704-7. Peddling, Begging Prohibited.
Sec. 704-9. Posting Bills Prohibited.
Sec. 704-11. Reserved.
Sec. 704-99. Penalties.

Sec. 704-1. Office Hours.

Except as otherwise provided by administrative order, the offices in the city hall shall be open to the general public between the hours of 8 a.m. and 5 p.m. daily, except on Saturdays, Sundays and holidays, and on days when special occasions may require the closing of the building.
(C.O. 734-1; a. Ord. No. 6-1971, eff. Jan. 6, 1971; renumbered to C.M.C. 704-1, eff. Jan. 1, 1972)

Sec. 704-3. Orderly Conduct Required.

No idlers, loungers or disorderly persons shall be permitted to stand or remain in or about the city hall; nor shall any riotous or disorderly conduct or loud talking, or use of threatening, profane or indecent language, by officials, employees or visitors be permitted.
(C.O. 734-2; renumbered to C.M.C. 704-3, eff. Jan. 1, 1972)
Cross reference—Penalty, § 704-99.

Sec. 704-5. Games of Chance and Indecent Conduct Prohibited.

No person or persons shall play at any game of chance or do any obscene or indecent act whatever within or about the city hall building.
(C.O. 734-3; renumbered to C.M.C. 704-5, eff. Jan. 1, 1972)
Cross reference—Penalty, § 704-99.

Sec. 704-7. Peddling, Begging Prohibited.

No person shall expose anything for sale within or about the city hall building except at a regular stand or stands which may be authorized by the city manager for the vending of newspapers, periodicals, confections, tobacco products and such other articles as may be approved by the city manager; nor shall any hawking, peddling, soliciting, except for a charitable purpose, or begging of any kind be allowed within or about the building.

Nothing in this section shall be construed to restrict the allowance of discounts on special events or discounts on entry tickets to public places for the benefit of city employees.
(C.O. 734-4; renumbered to C.M.C. 704-7, eff. Jan. 1, 1972; a. Ord. No. 59-1982, eff. Mar. 26, 1982)
Cross reference—Penalty, § 704-99.

Sec. 704-9. Posting Bills Prohibited.

No person shall post or otherwise affix any bill, notice, poster, lithograph or other paper or advertising matter, whether political or otherwise, upon the exterior of the city hall building or upon any wall, door, window or elevator shaft within the building; or in any way mar or deface the building or any part thereof.

Nothing in this section shall be construed to restrict the allowance of discounts on special events or discounts on entry tickets to public places for the benefit of city employees.
(C.O. 734-5; renumbered to C.M.C. 704-9, eff. Jan. 1, 1972; a. Ord. No. 59-1982, eff. Mar. 26, 1982)
Cross reference—Penalty, § 704-99.

Sec. 704-11. Reserved.

Editor's note—Ord. No. 0234-2009, § 1, effective Sept. 5, 2009, repealed § 704-11 which pertained to distributing handbills prohibited and derived from C.O. 734-6 renumbered as C.M.C. 704-11.

Sec. 704-99. Penalties.

Whoever violates any provision of this chapter shall be fined not more than $10 for each offense.
(C.O. 734 9; renumbered to C.M.C. 704-99, eff. Jan. 1, 1972)

Chapter 707

CITY VEHICLES

Sec. 707-1. City Vehicles; Identification.
Sec. 707-3. Removing of Identification Unlawful.
Sec. 707-99. Penalty.

Sec. 707-1. City Vehicles; Identification.

Every motor vehicle owned by the city of Cincinnati other than motorcycles, shall be marked conspicuously with the words "City of Cincinnati" in addition to other markings required by law. The city manager may require any other additional identification including the name of the city department or division by which the vehicle is used and the equipment number of the vehicle. The identification shall at all times be plainly visible and easily readable.

Notwithstanding the above, the city manager may at any time set aside one or more vehicles without the aforesaid identification for use by employees, agents and officials of the city.

(C.O. 735-1; renumbered to C.M.C. 707-1, eff. Jan. 1, 1972; a. Ord. No. 154-1977, eff. Apr. 27, 1977)

Sec. 707-3. Removing of Identification Unlawful.

No person shall remove or cause to be removed from any city vehicle the official identification required by Section 707-1 without authorization of the city manager or person designated by the city manager.

(C.O. 735-2; renumbered to C.M.C. 707-3, eff. Jan. 1, 1972; a. Ord. No. 154-1977, eff. Apr. 27, 1977)

Sec. 707-99. Penalty.

Whoever violates Section 707-3 of the Cincinnati Municipal Code shall be fined not more than $100.

(C.O. 735-6; a. Ord. No. 414-1970, eff. Dec. 23, 1970; renumbered to C.M.C. 707-99, eff. Jan. 1, 1972; a. Ord. No. 154-1977, eff. Apr. 27, 1977)

Chapter 708

DANGEROUS WEAPONS AND FIREWORKS*

Sec. 708-1. Definitions.
Sec. 708-1-A. Deadly Weapon.
Sec. 708-1-B. Firearm.
Sec. 708-1-C. Handgun.
Sec. 708-1-D. Dangerous Weapon.
Sec. 708-1-E. Person.
Sec. 708-1-F. Retail Dealer.
Sec. 708-2. Repealed.
Sec. 708-3. Repealed.
Sec. 708-5. Repealed.
Sec. 708-7. Repealed.
Sec. 708-9. Repealed.
Sec. 708-11. Repealed.
Sec. 708-13. Repealed.
Sec. 708-15. Repealed.
Sec. 708-17. Repealed.
Sec. 708-19. Repealed.
Sec. 708-21. Repealed.
Sec. 708-23. Gun Clubs.
Sec. 708-25. Permit Required.
Sec. 708-26. Permitted Hunting on Cincinnati Park Board Property and on Hamilton County Park District Property Located within the City of Cincinnati.
Sec. 708-26A. Permitted Archery Programs.
Sec. 708-27. Discharging Firearms.
Sec. 708-28. Permitted Hunting Firearms.
Sec. 708-29. Confiscation of Firearms.
Sec. 708-30. Fee for Return of Certain Firearms to Owners.
Sec. 708-31. Repealed.
Sec. 708-33. Repealed.
Sec. 708-35. Repealed.
Sec. 708-37. Repealed.
Sec. 708-39. Dangerous Weapons on School Property.
Sec. 708-41. Deadly or Dangerous Weapons in City Buildings.
Sec. 708-99. Penalties.
Sec. 708-99-A. Violation of Section 708-27.
Sec. 708-99-B. Repealed.

*__Cross reference—__Fireworks, ch. 1213.

Sec. 708-1. Definitions.

For purposes of this chapter, the following words in Sections 708-1-A—708-1-E shall have the following meanings.
(Ordained by Ord. No. 448-1988, passed Nov. 16, 1988)

Sec. 708-1-A. Deadly Weapon.

"Deadly weapon" shall mean any instrument, device, or thing capable of inflicting death, and designed or specifically adapted for use as a weapon, or possessed, carried, or used as a weapon.
(Ordained by Ord. No. 448-1988, passed Nov. 16, 1988)

Sec. 708-1-B. Firearm.

Firearm shall have the meaning ascribed to the term "firearm" by Ohio Revised Code Section 2923.11, Weapons Control Definitions.

The ownership, possession, purchase, other acquisition, transport, storage, carrying, sale, or other transfer of firearms, their components, and their ammunition within the State of Ohio are regulated by the Ohio Revised Code.
(Ordained by Ord. No. 448-1988, passed Nov. 16, 1988; Emer. Ord. No. 028-2014, § 1, eff. March 5, 2014)

Sec. 708-1-C. Handgun.

"Handgun" shall mean any firearm designed to be fired while being held in one hand, or any combination of parts from which it is possible to assemble a handgun.
(Ordained by Ord. No. 448-1988, passed Nov. 16, 1988)

Sec. 708-1-D. Dangerous Weapon.

"Dangerous Weapon" shall mean any instrument, device or thing capable of inflicting death or serious physical injury and designed or specifically adapted for use as a weapon, including an air gun, BB gun, bowie knife, dirk or other device passed, carried or used as a weapon. For purposes of this title, "dangerous weapon" does not include "firearm."
(Ordained as C.M.C. 708-2 by Ord. No. 201-1980, eff. May 7, 1980; repealed and reordained as C.M.C. 708-1-D by Ord. No. 448-1988, eff. Nov. 16, 1988; Emer. Ord. No. 028-2014, § 2, eff. March 5, 2014)

Sec. 708-1-E. Person.

"Person" shall mean any individual, organization, company or corporation.
(Ordained by Ord. No. 448-1988, eff. Nov. 16, 1988; Ord. No. 484-1988, eff. Dec. 14, 1988)

Sec. 708-1-F. Retail Dealer.

"Retail dealer" means any person engaged in selling, exchanging, bartering or keeping a thing with the intention of selling, bartering, or exchanging directly it to or with a consumer.
(Ordained by Ord. No. 374-2000, eff. Nov. 10, 2000)

Sec. 708-2. Repealed.

(C.O. 718-1; a. Ord. No. 388-1970, eff. Dec. 16, 1970; renumbered to C.M.C. 708-1, eff. Jan. 1, 1972; repealed and reordained as C.M.C. 708-2 by Ord. No. 448-1988, eff. Nov. 16, 1988; r. Ord. No. 7-1992, eff. Jan. 8, 1992)

Sec. 708-3. Repealed.

(C.O. 718-2; renumbered to C.M.C. 708-3, eff. Jan. 1, 1972; a. Ord. No. 201-1980, eff. May 7, 1980; repealed and reordained by Ord. No. 448-1988, eff. Nov. 16, 1988; repealed and reordained by Ord. No. 393-1994, eff. Nov. 25, 1994; r. Emer. Ord. No. 028-2014, § 9, eff. March 5, 2014)

Sec. 708-5. Repealed.

(C.O. 718-4; renumbered to C.M.C. 708-5, eff. Jan. 1, 1972; repealed and reordained by Ord. No. 448-1988, eff. Nov. 16, 1988; r. Emer. Ord. No. 028-2014, § 9, eff. March 5, 2014)

Sec. 708-7. Repealed.

(C.O. 718-5; renumbered to C.M.C. 708-7, eff. Jan. 1, 1972; repealed and reordained by Ord. No. 448-1988, eff. Nov. 16, 1988; r. Emer. Ord. No. 028-20014, § 9, eff. March 5, 2014)

Sec. 708-9. Repealed.

(C.O. 718-7; a. Ord. No. 104-1964, eff. Apr. 24, 1964; a. Ord. No. 90-1969, eff. Apr. 1, 1969; a. Ord. No. 388-1970, eff. Dec. 16, 1970; renumbered to C.M.C. 708-9, eff. Jan. 1, 1972; a. Ord. No. 327-1975, eff. Sept. 1, 1975; a. Ord. No. 282-1979, eff. Sept. 1, 1979; repealed and reordained by Ord. No. 448-1988, eff. Nov. 16, 1988; repealed and reordained by Ord. No. 374-2000, eff. Nov. 10, 2000; Emer. Ord. 463-2010, § 17, eff. Dec. 30, 2010; r. Emer. Ord. No. 028-2014, § 9, eff. March 5, 2014)

Sec. 708-11. Repealed.

(C.O. 718-8; renumbered to C.M.C. 708-11, eff. Jan. 1, 1972; repealed and reordained by Ord. No. 448-1988, eff. Nov. 16, 1988; r. Emer. Ord. No. 028-2014, § 9, eff. March 5, 2014)

Sec. 708-13. Repealed.

(C.O. 718-10; a. Ord. No. 388-1970, eff. Dec. 16, 1970; renumbered to C.M.C. 708-13, eff. Jan. 1, 1972; repealed and reordained by Ord. No. 448-1988, eff. Nov. 16, 1988; r. Emer. Ord. No. 028-2014, § 9, eff. March 5, 2014)

Sec. 708-15. Repealed.

(C.O. 708-11; renumbered to C.M.C. 708-15, eff. Jan. 1, 1972; repealed and reordained by Ord. No 448-1988, eff. Nov. 16, 1988; a. Ord. No. 350-1994, eff. Oct. 21, 1994; r. Emer. Ord. No. 028-2014, § 9, eff. March 5, 2014)

Sec. 708-17. Repealed.

(C.O. 718-12; renumbered to C.M.C. 708-17, eff. Jan. 1, 1972; repealed and reordained by Ord. No. 448-1988, eff. Nov. 16, 1988; r. Emer. Ord. No. 028-2014, § 9, eff. March 5, 2014)

Sec. 708-19. Repealed.

(C.O. 718-14; renumbered to C.M.C. 708-19, eff. Jan. 1, 1972; repealed and reordained by Ord. No. 448-1988, passed Nov. 16, 1988; r. Emer. Ord. No. 028-2014, § 9, eff. March 5, 2014)

Sec. 708-21. Repealed.

(C.O. 718-17; a. Ord. No. 265-1962, eff. Aug. 4, 1962; a. Ord. No. 90-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 708-21, eff. Jan. 1, 1972; a. Ord. No. 327-1975, eff. Sept. 1, 1975; a. Ord. No. 282-1979, eff. Sept. 1, 1979; repealed and reordained by Ord. No. 448-1988, passed Nov. 16, 1988; Emer. Ord. 463-2010, § 19, eff. Dec. 30, 2010; r. Emer. Ord. No. 028-2014, § 9, eff. March 5, 2014)

Sec. 708-23. Gun Clubs.

It shall be lawful for any regularly organized gun club consisting of at least 20 members to hold shooting matches in the City of Cincinnati, on grounds owned or leased by the club, for not less than one year, which grounds are located not less than one-quarter of a mile from any inhabited dwelling. It shall be lawful to shoot only shotguns at such matches, using no shot of a larger caliber than No. 6, and at inanimate targets, whether stationary or flying.

(C.O. 718-19; renumbered to C.M.C. 708-23, eff. Jan. 1, 1972; repealed and reordained by Ord. No. 448-1988, passed Nov. 16, 1988)

Cross reference—Penalty, § 902-5.

Sec. 708-25. Permit Required.

Any gun club desiring to hold shooting matches shall first obtain a permit from the

city manager, which permit shall be valid for one year. Such permit shall be revocable by the city manager for cause.
(C.O. 718-20; renumbered to C.M.C. 708-25, eff. Jan. 1, 1972; repealed and reordained by Ord. No. 448-1988, passed Nov. 16, 1988)

Sec. 708-26. Permitted Hunting on Cincinnati Park Board Property and on Hamilton County Park District Property Located within the City of Cincinnati.

The Cincinnati Park Board has the authority to permit the legal use and discharge of weapons within Cincinnati Parks in compliance with State of Ohio game and hunting laws, in order to control the deer overpopulation that is destroying the urban forest. Permitted use is governed by the rules of the Board of Park Commissioners of the City of Cincinnati.

The hunting of deer under the authority of the Hamilton County Park District for the purpose of controlling the deer overpopulation in the urban forest shall be permitted on Hamilton County Park District Property located in City of Cincinnati provided that the Hamilton County Park District takes all necessary action to fully comply with all State of Ohio game and hunting laws regarding such deer hunting activities and provided that all permitted hunters receive any and all required training to engage in such activities in accordance with such State of Ohio game and hunting laws. Permitted use is governed by of the rules of the Board of Park Commissioners of the City of Cincinnati. At least fourteen days prior to engaging in any deer hunting activities on Hamilton County Park District Property, the executive director of the Hamilton County Park District or his or her designee shall provide written notice to the city manager describing the days, hours and location of any such deer hunting activities on Hamilton County Park District properties and the number of permitted hunters engaged in each such deer hunting activity and shall further provide documentation establishing compliance with State of Ohio game and hunting laws for each deer hunting activity.
(Ordained by Ord. No. 0186-2009, § 1, eff. July 17, 2009; a. Ord. No. 081-2011, § 1, eff. April 16, 2011)

Sec. 708-26A. Permitted Archery Programs.

A person may lawfully discharge a bow and arrow approved by the Public Recreation Commission or the Director of Recreation when participating in an archery program approved by the Public Recreation Commission or the Director of Recreation which program occurs on property owned by the City of Cincinnati.
(Ordained by Emer. Ord. No. 110-2012, § 1, eff. April 4, 2012)

Sec. 708-27. Discharging Firearms.

(a) No person shall discharge any kind of firearm or dangerous weapon, including handguns, rifles, air rifles or air guns by whatever name known.

(b) No person shall discharge any cannon or explosive bomb from a mortar.

(c) Section (a) of this ordinance shall not apply to:

(1) Any law enforcement officer, any agent, or employee of this or any other political subdivision or the United States if acting within the scope of his duties.

(2) Any member of the Armed Forces of the United States or any state militia if acting within the scope of his duties.

(3) Any person acting pursuant to Section 708-23.

(4) Any employee of the Cincinnati Zoo and Botanical Garden, acting within the scope of his employment, on the Zoo's property and who is currently authorized to discharge a firearm by the Chief of Police.

(5) Any individual both authorized by the Chief of Police and licensed as a private police officer pursuant to Chapter 857 of the Municipal Code who is acting within the scope of his duties as a private police officer.

(6) Any person acting in self defense.

(7) Any person lawfully engaged in the Park Board hunting program using approved weapons as authorized by Section 708-26.

(8) Any person lawfully engaged in an archery program approved by the Public Recreation Commission or the Director of Recreation on property owned by the city of Cincinnati and using approved bows and arrows as authorized by Section 708-26A.

(9) Any person lawfully engaged in remote chemical immobilization of deer using an air-powered gun as a component of a deer fertility control study authorized by the Board of Park Commissioners and authorized by a permit issued by the Ohio Department of Natural Resources, Division of Wildlife.

(C.O. 718-24; renumbered to C.M.C. 708-27, eff. Jan. 1, 1972; repealed and reordained by Ord. No. 448-1988, passed Nov. 16, 1988; repealed and reordained by Ord. No. 38-1997, eff. March 14, 1997; a. Ord. No. 0186-2009, § 2, eff. July 17, 2009; Emer. Ord. No. 110-2012, § 2, eff. April 4, 2012; Emer. Ord. No. 344-2015, § 1, eff. Nov. 12, 2015)

Cross reference—Penalty, § 708-99-A.

Sec. 708-28. Permitted Hunting Firearms.

All equipment used pursuant to Section 708-26 herein must conform to State of Ohio requirements. Compound, long, recurve and crossbows are allowed. In order to use a longbow there must be a minimum draw weight of 40 pounds. In order to use a crossbow there must be a minimum draw weight of 75 pounds and a maximum draw weight of 200 pounds.
(Ordained by Ord. No. 0186-2009, § 4, eff. July 17, 2009)

Sec. 708-29. Confiscation of Firearms.

When any police officer shall discover any person in the act of violating any provision of Section 708-27, it shall be his duty to seize the firearms or cannon so unlawfully used, and to cause the arrest of such person. Upon conviction of the person so arrested, the chief of police shall order the firearms or cannon so seized destroyed.
(C.O. 718-25; renumbered to C.M.C. 708-29, eff. June 1, 1972; repealed and reordained by Ord. No. 448-1988, passed Nov. 16, 1988; Emer. Ord. No. 028-2014, § 3, eff. March 5, 2014)

Sec. 708-30. Fee for Return of Certain Firearms to Owners.

(a) An owner of a firearm may request the return of the owner's firearm from the police department when the police department is in possession of the firearm and the firearm is not held as evidence or otherwise required by the police department for official use. The owner shall pay a fee of $200 at the time the owner requests the return of the firearm to the owner to cover the city's costs associated with the testing of the firearm, verification of ownership, any necessary background check of the owner or person designated by the owner to possess the firearm on behalf of the owner, and process-

ing the request for the return of the firearm. The fee is nonrefundable and shall be paid regardless of whether the firearm is returned.

(b) This section does not apply when:

(1) The person requesting the return of the firearm is the verified owner of the firearm who is permitted to acquire, have, carry, or use any firearm pursuant to federal, state, and Cincinnati law; and the firearm was stolen from the verified owner; and the owner reported the firearm as stolen to the appropriate local authorities as required by Ohio law or the Cincinnati Municipal Code; or

(2) State law or a court order specifically requires the police department to return the firearm to the verified owner without the owner paying a fee.

(c) Procedures for Return of Firearms.

(1) The chief of police shall establish an appropriate procedure for the destruction or use for appropriate law enforcement purposes of any unclaimed firearm provided that appropriate notice requirements have been met. This procedure shall include an appropriate procedure for tracking confiscated firearms that are used for law enforcement purposes.

(2) The chief of police shall determine and annually adjust the structure and amount of fees charged pursuant to this section, provided the aggregate annual revenue from such fees is based on recovering the projected costs of processing the request for the return of the firearm, including the cost of testing of the firearm, verifying firearm ownership, any necessary background check of the owner or person designated by the owner to possess the firearm on behalf of the owner, processing the request for the return of the firearm, and all other direct services and related administrative, educational, technological, and incidental services.

(Ordained by Emer. Ord. No. 427-2023, § 1, eff. Dec. 13, 2023)

Sec. 708-31. Repealed.

(C.M.C. 708-31; ordained by Ord. No. 523-1973, eff. Jan. 1, 1974; repealed and reordained by Ord. No. 448-1988, passed Nov. 16, 1988; r. Emer. Ord. No. 028-2014, § 9, eff. March 5, 2014)

Analogous to C.O. 901-a3; renumbered to C.M.C. 901-A3, eff. Jan. 1, 1972; r. Ord. No. 523-1973, eff. Jan. 1, 1974.

Sec. 708-33. Repealed.

(C.M.C. 708-34; a. Ord. No. 238-1988, eff. June 21, 1988; r. Emer. Ord. No. 028-2014, § 9, eff. March 5, 2014)

Sec. 708-35. Repealed.

(Ordained as C.M.C. 708-33, eff. Apr. 20, 1988; r. Ord. No. 448-1988, passed Nov. 16, 1988; reordained as C.M.C. 708-35 by Ord. No. 486-1988, eff. Dec. 14, 1988; a. Ord. No. 363-1994, eff. Nov. 4, 1994; r. Emer. Ord. No. 028-2014, § 9, eff. March 5, 2014)

Sec. 708-37. Repealed.

(C.M.C. 708-37; ordained by Ord. No. 380-1989, eff. Sept. 27, 1989; r. Emer. Ord. No. 028-2014, § 9, eff. March 5, 2014)

Sec. 708-39. Dangerous Weapons on School Property.

(a) No person shall knowingly possess, carry or use a deadly or dangerous weapon, dangerous ordnance or ammunition in a school building, on any school property or other facility used for school purposes or at a school-sponsored activity.

(b) This section does not apply to the possession, transporting, or carrying of firearms, components of firearms, or firearm ammunition as defined and regulated by Ohio Revised Code Chapter 2923, Conspiracy, Attempt, and Complicity; Weapons Control and Corrupt Activity.

(c) This section does not apply to officers, agents, or employees of this or any other state or the United States, or to law enforcement officers, authorized to carry firearms and acting within the scope of their duties.

(d) Whoever violates this section is guilty of having a weapon while on school property, a misdemeanor of the first degree.

(e) As used herein the word "school" shall mean an accredited public or private educational institution for one or more of the grades kindergarten through the twelfth grade.
(Ordained by Ord. No. 8-1992, eff. Feb. 7, 1992; Emer. Ord. No. 028-2014, § 4, eff. March 5, 2014)

Sec. 708-41. Deadly or Dangerous Weapons in City Buildings.

(a) No person shall knowingly possess, carry or use a deadly or dangerous weapon within any city building.

(b) This section shall not apply to the possession, transporting, or carrying of firearms, components of firearms, or firearm ammunition as defined and regulated by Ohio Revised Code Chapter 2923, Conspiracy, Attempt, and Complicity; Weapons Control and Corrupt Activity.

(c) This section does not apply to law enforcement officers authorized to carry firearms and acting within the scope of their duties.

(d) For purposes of this section, "city building" shall include City Hall, any building other than City Hall that is owned by the city or any of its boards or commissions, or any privately owned building that is leased by the city or any of its boards or commissions. The term "city building" shall include but is not limited to any building utilized by the Greater Cincinnati Water Works and the Metropolitan Sewer District.

(e) Whoever violates this section is guilty of having a weapon within a city building, a misdemeanor of the first degree.
(Ordained by Ord. No. 329-2003, eff. Oct. 1, 2003; Emer. Ord. No. 154-2004, eff. April 28, 2004; Emer. Ord. No. 028-2014, § 5, eff. March 5, 2014)

Sec. 708-99. Penalties.

Violations of the provisions of this chapter shall be punishable as set forth in the sections hereunder and other applicable penalty sections of this code.
(C.M.C. 708-99; ordained by Ord. No. 361-1971, eff. Jan. 1, 1972; repealed and reordained by Ord. No. 448-1988, eff. Nov. 16, 1988)

Sec. 708-99-A. Violation of Section 708-27.

Whoever violates any provision of Section 708-27 shall be fined not more than $1,000, or imprisoned not more than six months, or both.
(C.O. 718-15; renumbered to C.M.C. 708-99-A, eff. Jan. 1, 1972; a. Ord. No. 128-1988, eff. Apr. 20, 1988; repealed and reordained by Ord. No. 448-1988, eff. Nov. 16, 1988; repealed and reordained by Ord. No. 485-1988, eff. Dec. 14, 1988; a. Ord. No. 374-2000, eff. Nov. 10, 2000; Emer. Ord. No. 028-2014, § 6, eff. March 5, 2014)

Sec. 708-99-B. Repealed.

(C.O. 718-24; renumbered to C.M.C. 708-99-B, eff. Jan. 1, 1972; repealed and reor-

dained by Ord. No. 448-1988, eff. Nov. 16, 1988; r. Emer. Ord. No. 028-2014, § 9, eff. March 5, 2014)

Chapter 713

FOUNTAIN SQUARE, CONVENTION HALL*

Sec. 713-1. Legislative Findings and Declaration.
Sec. 713-2. Definition—Fountain Square.
Sec. 713-3. Use of Fountain Square.
Sec. 713-4. Permit for Use of Fountain Square.
Sec. 713-5. Prohibited Uses of Fountain Square Without a Permit.
Sec. 713-6. Prohibitions on Fountain Square.
Sec. 713-7. Prohibition of Sales on Fountain Square.
Sec. 713-9. Fees.
Sec. 713-19. Repealed.
Sec. 713-21. Repealed.
Sec. 713-23. Repealed.
Sec. 713-25. Repealed.
Sec. 713-27. Repealed.
Sec. 713-29. Repealed.
Sec. 713-31. Repealed.
Sec. 713-41. Convention Center, Rental, Purchasing.
Sec. 713-43. Convention Center, Rules and Regulations.
Sec. 713-99. Penalties.

*__Editor's note—__Ord. No. 215-2005, § 1, eff. July 14, 2005, amended the title of chapter 713 to read as herein set out. Formerly said chapter was entitled Fountain Square, Convention Hall, Riverfront Stadium.

Sec. 713-1. Legislative Findings and Declaration.

It is hereby found and determined by the Council of the City of Cincinnati that in order to effectively manage the various uses of Fountain Square it is appropriate to adopt a permit and regulation process. The permit process and rules and regulations for the use of Fountain Square shall be adopted and implemented to protect the public's use and enjoyment of the Square, to coordinate multiple uses of a limited public space, to assure preservation of the Fountain Square facilities, to prevent uses that are dangerous, unlawful, or impermissible under the city manager's rules and regulations, and to provide the City of Cincinnati with advance notice of requirements for police, fire, sanitation, emergency, health, or transportation services. The permit and regulation process for the use of Fountain Square is hereby reserved to the City of Cincinnati, and shall be implemented by the city manager or his or her designees. The city manager may designate a third party who has lawfully entered into an agreement for the management of Fountain Square to administer the Fountain Square permitting process.

Any third-party with whom the city manager lawfully enters into an agreement for the management of Fountain Square must recognize and expressly agree to respect and honor the city's obligation to maintain Fountain Square as a public forum that is open and available to all members of the public pursuant to the constitutions of the United States and the State of Ohio.
(C.O. 737-7; a. Ord. No. 164-1970; eff. July 3, 1970; renumbered C.M.C. 713-1, eff. Jan. 1, 1972; a. Ord. No. 57-1975, eff. Feb. 5, 1975; a. Ord. No. 413-1976, eff. Sept. 9, 1976; a. Ord. No. 449-1979, eff. Oct. 17, 1979; a. Ord. No. 124-1982, eff. Apr. 7, 1982; a. Ord. No. 142-1992, eff. May 8, 1992; a. Ord. No. 354-1993, eff. Oct. 6, 1993; a. Ord. No. 354-1994, eff. Oct. 28, 1994; a. Ord. No. 108-1996, eff. May 10, 1996; a. Ord. No. 243-1996, eff. Sept. 6, 1996; repealed and reordained by Ord. No. 122-2002, eff. May 16, 2002; a. Ord. No. 215-2005, § 2, eff. July 14, 2005; Emer. Ord. No. 224-2006, § 1, eff. Aug. 2, 2006)

Sec. 713-2. Definition—Fountain Square.

For purposes of this chapter, Fountain Square is defined to include the area between Fifth Street, Walnut Street, Sixth Street and Vine Street, including all appurtenances, and public ways adjacent thereto, Tyler Davidson Fountain, the Fountain Square Pavilion, any second level pedestrian walkways between Central Avenue on the west, Central Parkway on the north, Eggleston Avenue on the east and the Ohio River on the south which are open to the public, regardless of whether the property is public or private. The definition of Fountain Square does not include completely enclosed private property.
(Ordained by Ord. No. 504-1987, eff. Dec. 25, 1988; a. Ord. No. 354-1993, eff. 10-6-93; repealed and reordained by Ord. No. 122-2002, eff. May 16, 2002; Emer. Ord. No. 224-2006, § 2, eff. Aug. 2, 2006)

Sec. 713-3. Use of Fountain Square.

The use of Fountain Square will be preserved primarily for the peaceful and orderly enjoyment of the square, its facilities, appurtenances, landscaping, and the Tyler Davidson Fountain by the general public.

Any other use of Fountain Square by a person or group of persons will not be permitted except in accordance with the terms of a permit issued by the director of public services or the city manager's designee in strict compliance with the conditions set forth hereinafter.

(a) The city manager shall promulgate rules and regulations governing the use of Fountain Square that are con-

sistent with §§ 713-1 through 713-9 of this chapter, and he or she may appoint a substitute to carry out any of the duties of the director of public services as provided in this chapter and the city manager's rules and regulations for the use of Fountain Square, including a third party with whom the city manager has lawfully entered into an agreement for the management of Fountain Square.

(b) No person or group may erect a display, exhibit, structure or sign on Fountain Square without a permit issued by the director of public services or the city manager's designee in accordance with the rules and regulations for the use of Fountain Square.

(c) Subject to the provisions of this chapter and the city manager's rules and regulations in effect pursuant to this chapter, no person or group may hold an event, protest, rally, or meeting or make any other use of Fountain Square involving more than 50 participants without a permit issued by the director of public services or the city manager's designee in accordance with the rules and regulations for the use of Fountain Square.

(d) No displays, exhibits or gatherings shall be permitted within 20 feet of the Tyler Davidson Fountain.

(e) The provisions of this section are not intended to prohibit the use of Fountain Square as a photographic background by a commercial enterprise when such activities are of a short duration and/or are not disruptive to the normal or other permitted use of Fountain Square and do not require any additional city services of assistance, subject, however, to all other provisions of this chapter. Such use does not require a permit except as provided in subparagraph (1) of this subsection. This provision does not prohibit permits for extensive commercial photography, restaurant patios on private property, or signs as authorized in this section.

(1) The director of public services or the city manager's designee may permit Fountain Square to be used as a background for extensive commercial photography which may temporarily impair, impede or otherwise interfere with the public's enjoyment of Fountain Square and/or requires city support services or assistance. If such a permit is granted, the fee schedule provided in section 713-9 shall apply and the permittee shall be responsible for engaging and paying for any and all additional costs incurred by the city.

(2) The director of public services or the city manager's designee may issue permits for the use of private or public property that is part of Fountain Square for restaurant patio uses, including the sale of food and beverages for consumption on the premises, in conjunction with adjoining fully enclosed restaurants. Such permits are subject to other applicable requirements of this section, except that the term of such permits may be for an indefinite time period provided that the permit is revocable upon at least 90 days notice.

(3) The director of public services or the city manager's designee may issue permits for the use of private or public property that is part of Fountain Square for the sale of food and beverages or the

sale of merchandise from and in conjunction with permanent or semi-permanent restaurants, stands, kiosks or booths erected on Fountain Square by the city or pursuant to any agreement for the management of Fountain Square lawfully in effect at the time the permit is issued. Such permits are subject to other applicable requirements of this section and the city manager's rules and regulations in effect pursuant to this chapter, except that the term of such permits may be for an indefinite time period provided that the permit is revocable upon at least 90 days notice.

(4) The director of public services or the city manager's designee may issue permits for signs on Fountain Square pursuant to any agreement for the management of Fountain Square lawfully in effect at the time the permit is issued. Such permits are subject to other applicable requirements of this section and the city manager's rules and regulations in effect pursuant to this chapter, except that the term of such permits may be for an indefinite time period provided that the permit is revocable upon no more than 90 days notice.

(f) To promote security and provide for scheduled maintenance, Fountain Square shall be closed from 3:00 a.m. to 6:00 a.m., except for the purpose of entering and exiting the garage or adjacent buildings.

(C.M.C. 713-3; ordained by Ord. No. 57-1976, eff. Feb. 5, 1975; a. Ord. No. 262-1981, eff. July 1, 1981; a. Ord. No. 143-1988, eff. June 10, 1988; a. Ord. 186-1992, eff. June 5, 1992; repealed and reordained by Ord. No. 122-2002, eff. May 16, 2002; a. Ord. No. 215-2005, § 2, eff. July, 14, 2005; Emer. Ord. No. 224-2006, § 3, eff. Aug. 2, 2006)

Sec. 713-4. Permit for Use of Fountain Square.

(a) The director of public services or the city manager's designee will follow the rules and regulations for the use of Fountain Square when granting, denying or revoking a permit. The rules and regulations will also provide for a spontaneous use permit to be granted where space and time are available.

(b) The director of public services or the city manager's designee shall assign a number to each permit.

(c) A permit may contain specific conditions of use to ensure safety and compliance with this chapter and the rules and regulations for the use of Fountain Square.

(d) Any person issued a permit for the use of Fountain Square under the authorization of this section must keep the permit on his or her person during a permitted event on Fountain Square and produce it upon request. In the case of a permit issued to a group for the use of Fountain Square, at least one individual acting as an agent or representative of the group must keep the permit on his or her person during a permitted event on Fountain Square and produce it upon request.

(e) All permitted displays, exhibits, or structures must be accompanied by a sign indicating the permit number and the date of issuance of the permit. This sign must be legible from at least ten feet in distance.

(f) The director of public services or the city manager's designee shall ensure that equal access is available for all lawful uses of Fountain Square in accordance with this chapter and the rules and regulations for the use of Fountain Square.

(g) If the director of public services or the city manager's designee denies or revokes a permit for the use of Fountain Square issued pursuant to this chapter on any of the grounds specified in the rules and regulations for the use of Fountain Square, he or she must clearly set forth in writing the grounds for denial or revocation and, where feasible, must propose measures to cure defects in the application.

(h) If, due to space or time limitations, the director of public services or the city manager's designee is unable to offer an applicant, who would otherwise be granted a permit, the date and time requested in the application, the applicant, upon being notified of the limitation, may request that the director of public services or the city manager's designee review alternative locations and/or dates for the applicant's proposed use of Fountain Square. The director of public services or the city manager's designee will then investigate whether a suitable alternative location and/or time is available.

(i) Any denial or revocation of a permit or the partial denial or revocation of a permit for the use of Fountain Square issued pursuant to this chapter on any of the grounds specified in the rules and regulations for the use of Fountain Square (except for denial or revocation based upon subsection 713-6(b)) may be appealed in writing to the city manager within five business days of the decision of the director of public services or the city manager's designee to deny the permit. Within five business days of receipt of such appeal, or at a mutually agreed time, the city manager or a city hearing officer shall conduct a hearing regarding the reasons for the permit denial or revocation and the basis of the protest.

At the hearing, the sole issue to be decided is whether the application meets the requirements of this chapter and the city manager's rules and regulations for the use of Fountain Square. The applicant and the city may present evidence and testimony in support of their positions, and a record of the proceedings shall be kept. The city manager or a city hearing officer shall exercise independent, unbiased authority to issue an opinion in compliance with this legislation and the city manager's rules and regulations for the use of Fountain Square.

The city manager or a city hearing officer shall render a decision within three (3) business days from the close of the hearing.

The City of Cincinnati will promptly seek judicial review of any intended denial or revocation of a permit for the use of Fountain Square based upon the obscenity, defamation, or "fighting words" prohibitions contained in subsection 713-6(b). Unless a court issues an order within ten business days of the city's petition declaring that the permit may be lawfully denied or revoked, the permit will be granted.
(Ordained by Ord. No. 122-2002, eff. May 16, 2002; a. Ord. No. 215-2005, § 2, eff. July 14, 2005; Emer. Ord. No. 224-2006, § 4, eff. Aug. 2, 2006)

Sec. 713-5. Prohibited Uses of Fountain Square Without a Permit.

Unless expressly authorized by a permit for the use of Fountain Square issued in accordance with this chapter and the rules and regulations for the use of Fountain Square, it is unlawful for any person or group to do the following:

(a) Possess on or bring into Fountain Square any poles, sticks or clubs made of wood, metal, plastic or any rigid material or any other instrument, device or thing that is capable of inflicting serious physical harm, that is designed or specially adapted for use as a weapon or that is possessed, carried or used as a weapon. The prohibitions

imposed by this section do not apply to a wooden stick used to elevate or support a sign or banner, provided that such wooden stick is blunt on both ends and is not more than two inches in width or three-quarters of an inch in diameter, one-quarter of an inch in thickness, and 40 inches in length. The prohibitions in this section do not apply to canes, crutches or any other similar device used by persons who are visually or physically impaired, nor to law enforcement officers and city employees acting within the scope of their duties. The prohibitions in this section do not apply to the possession, transporting, or carrying of firearms as defined by Section 708-1-B of the Cincinnati Municipal Code, components of firearms, or firearm ammunition as defined and regulated by Ohio Revised Code Chapter 2923, Conspiracy, Attempt, and Complicity; Weapons Control and Corrupt Activity.

(b) Display, offer for sale or barter, or sell or barter any merchandise on Fountain Square or any public stairway, escalator, passageway or elevator connecting thereto.

(c) Use any sound-amplifying equipment on Fountain Square.

(d) Play a radio, tape recorder or other electronic sound producing equipment, other than with earphones so that no sound is audible to others.

(e) Take any animal onto Fountain Square, unless such animal is being or will be used by law enforcement officials engaged in the performance of their duties, or unless such animal is used as a guide for a disabled individual or such animal is part of a permitted program and is listed on the application.

(f) Operate or drive any vehicle, including bicycles, skateboards, roller blades, roller skates or scooters on Fountain Square, except city employees or contractors while engaged in their official or contractual duties. This does not prohibit the use of any motorized wheelchair or any vehicle that is specifically approved as part of a permitted program.

(C.M.C. 713-5; ordained by Ord. No. 57-1975, eff. Feb. 5, 1975; a. Ord. No. 210-1983, eff. May 11, 1983; repealed and reordained by Ord. No. 122-2002, eff. May 16, 2002; a. Ord. No. 215-2005, § 2, eff. July 14, 2005; Emer. Ord. No. 224-2006, § 5, eff. Aug. 2, 2006; Emer. Ord. No. 028-2014, § 7, eff. March 5, 2014)

Sec. 713-6. Prohibitions on Fountain Square.

It is unlawful for any person or group with or without a permit to:

(a) Endanger, obstruct or unreasonably interfere with the use of Fountain Square or any facility or appurtenances thereof, or access to, from or through any part of said Square, including but not limited to escalators, stairways, passageways, overhead walkways, elevators, exits and entrances. The proscription of this paragraph applies, but is not limited, to:

(1) The purposeful throwing, slinging, shooting or propelling of any object on Fountain Square;

(2) The lying down on the floor surface or any walking or standing area on Fountain Square.

(b) Communicate on Fountain Square any obscenity, defamation, or "fighting words" including, but not limited to, a symbol, object, appellation, characterization, oral communication or graffiti

which injures a person or group of persons or is likely to cause an immediate act of violence by the listener or observer.

(Ordained by Ord. No. 289-1987, eff. July 31, 1987; repealed and reordained by Ord. No. 122-2002, eff. May 16, 2002)

Sec. 713-7. Prohibition of Sales on Fountain Square.

Unless permitted by Section 713-3(e)(2) or by 713-5(b) of this chapter or expressly authorized by a permit for the use of Fountain Square issued in accordance with this chapter and the rules and regulations for the use of Fountain Square, it is unlawful to sell, barter, offer for sale or display merchandise, including food, beverages, flowers, or any other merchandise on Fountain Square.

(C.M.C. 713-7; ordained by Ord. No. 447-1975, eff. Sept. 17, 1975; a. Ord. No. 608-1975, eff. Dec. 24, 1975; a. Ord. No. 116-1976, eff. Mar. 31, 1976; a. Ord. No. 178-1976, eff. Apr. 28, 1976; a. Ord. No. 186-1992, eff. June 5, 1992; a. Ord. No. 108-1996, eff. May 10, 1996; a. Ord. No. 122-2002, eff. May 16, 2002)

Sec. 713-9. Fees.

The fee for the use of Fountain Square as provided in subsection 713-3(e)(1) for commercial photography on Fountain Square shall be as follows:

(a) For first hour or portion thereof: $100.00.

(b) For each additional one-half hour or portion thereof: $50.00.

The director of public services or the city manager's designee may, in accordance with subsection 713-3(e)(1), establish such additional fees as may be necessary to provide the required level of security or other city services for any such extensive commercial photography use of Fountain Square.

(Ordained by Ord. No. 124-1982, eff. Apr. 7, 1982; a. Ord. No. 243-1996, eff. Sept. 6, 1996; a. Ord. No. 122-2002, eff. May 16, 2002; Emer. Ord. No. 224-2006, § 6, eff. Aug. 2, 2006)

Sec. 713-19. Repealed.

(Ordained by Ord. No. 186-1992, eff. June 5, 1992; a. Ord. No. 287-2000, eff. 8-2-00; r. Ord. No. 075-2001, eff. Mar. 14, 2001)

Sec. 713-21. Repealed.

(Sec. 106-37; ordained by Ord. No. 406-1970, eff. Dec. 23, 1970; renumbered to C.M.C. 713-21, eff. Jan. 1, 1972; r. Ord. No. 313-2001, eff. Nov. 2, 2001)

Sec. 713-23. Repealed.

(Sec. 106-38; ordained by Ord. No. 406-1970, eff. Dec. 23, 1970, renumbered to C.M.C. 713-23, eff. Jan. 1, 1972; a. Ord. No. 445-1972, eff. Sept. 27, 1972; a. Ord. No. 327-1976, eff. Sept. 1, 1975; a. Ord. No. 282-1979, eff. Sept. 1, 1979; r. Ord. No. 313-2001, eff. Nov. 2, 2001)

Sec. 713-25. Repealed.

(Sec. 106-39; ordained by Ord. No. 406-1970, eff. Dec. 23, 1970; renumbered to C.M.C. 713-26, eff. Jan. 1, 1972; r. Ord. No. 313-2001, eff. Nov. 2, 2001)

Sec. 713-27. Repealed.

(Sec. 106-40; ordained by Ord. No. 406-1970, eff. Dec. 23, 1970; renumbered to C.M.C. 713-27, eff. Jan. 1, 1972; r. Ord. No. 313-2001, eff. Nov. 2, 2001)

Sec. 713-29. Repealed.

(Ordained by Ord. No. 189-1970, eff. June 24, 1970 as uncodified ordinance; reordained as C.M.C. 713-29, eff. Jan. 1, 1972; a. Ord. No. 504-1973, eff. Nov. 21, 1973; r. Ord. No. 313-2001, eff. Nov. 2, 2001)

Sec. 713-31. Repealed.

(Ordained by Ord. No. 189-1970, eff. June 24, 1970 as uncodified ordinance; reordained as C.M.C. 713-31, eff. Jan. 1, 1972; a. Ord. No. 504-1973, eff. Nov. 21, 1973; r. Ord. No. 313-2001, eff. Nov. 2, 2001)

Sec. 713-41. Convention Center, Rental, Purchasing.

The city manager is authorized to sign contracts or agreements providing for the use and rental of the Convention Center, as well as contracts or agreements for the purchase of all supplies, materials, equipment and nonprofessional services required for the management of the Convention Center. The city manager may designate a city official, or an agent of the city, to enter into such contracts on his behalf.
(Ordained by Ord. No. 326-1965, eff. Aug. 4, 1965 as uncodified ordinance; reordained as C.M.C. 713-41, eff. Jan. 1, 1972; a. Ord. No. 413-1976, eff. Sept. 9, 1976; a. Emer. Ord. No. 174-2006, § 1, eff. 6-14-06)

Sec. 713-43. Convention Center, Rules and Regulations.

The city manager shall prepare a set of rules and regulations governing the use, rental and operation of the Convention Center, which set of rules shall be revised from time to time as experience and conditions necessitate. Such rules and regulations shall include, but not be limited to, the following subjects:

(a) Rental rates, including minimum fees, for use of the building for exposition purposes. Such rates shall be competitive with similar facilities in other cities.

(b) Rates for rental of facilities for other than exposition purposes.

(c) Rates for services, power, equipment, and other items of the type not normally included in the rental fee.

(d) Provisions to protect the city from damage or loss to the premises occasioned by the rental or use of the facility

(e) Provisions for protecting the City of Cincinnati from liability for personal injury or property damage occasioned by the use of the Convention Center, including, but not limited to, provisions for the posting of insurance against personal injury and property damage liability in such amount as the city manager determines is reasonably in keeping with the nature, type and extent of the use contracted for.

Such rules may be set forth in a contract for the management of the Convention Center, in the Operations Manual for the Convention Center, or in some other form as approved by the city manager.
(Ordained by Ord. No. 326-1965, eff. Aug. 4, 1965 as uncodified ordinance; reordained as C.M.C. 713-43, eff. Jan. 1, 1972; a. Emer. Ord. No. 174-2006, § 2, eff. June 14, 2006)

Sec. 713-99. Penalties.

A violation of any provision in this chapter is a minor misdemeanor for the first offense, and a misdemeanor of the fourth degree for a second or subsequent violation. Each day's operation without a permit or in violation of this chapter constitutes a separate offense.
(Ordained by Ord. No. 122-2002, eff. May 16, 2002)

Chapter 714

LITTERING*

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Sec. 714-99. Penalties—Civil and Criminal.
Sec. 714-99-A. Repealed.

*__Cross references—__Litter control for animal-drawn carriages, § 407-137; removal of trash and debris from public landing, § 411-23.

Sec. 714-1. Definitions.

For the purpose of this chapter the following terms, phrases, words and their derivations shall have the meaning given herein. When not inconsistent with the context, words used in the present tense include the future, words used in the plural number include the singular number, and words used in the singular number include the plural number. The word "shall" is always mandatory and not merely directory.
(Sec. 759-1; ordained by Ord. No. 119-1971, eff. Apr. 30, 1971; renumbered to C.M.C. 714-1, eff. Jan. 1, 1972)

Sec. 714-1-A. Abandoned Property.

"Abandoned Property" shall mean property that is not being maintained consistent with the requirements of Chapter 714 and that the property owner or person in control has failed to bring into compliance with Section 714-37 within seven days of receiving a notice of civil offense and civil fine.
(Ordained by Emer. Ord. No. 075-2015, § 4, eff. March 25, 2015)

Sec. 714-1-A1. Abatement.

"Abatement" shall mean the removal of any conditions that are the subject of a notice of violation in accordance with Sections 714-45 and 714-46.
(Ordained by Emer. Ord. No. 075-2015, § 4, eff. March 25, 2015)

Sec. 714-1-C. Commercial Handbill.

"Commercial handbill" shall mean any printed or written matter, dodger, circular, leaflet, pamphlet, paper, booklet or any other printed or otherwise reproduced original or copies of any matter of literature:

(a) Which advertises for sale any merchandise, product, commodity or thing; or

(b) Which directs attention to any business or mercantile or commercial establishment, or other activity, for the purpose of directly promoting the interest thereof by sales; or

(c) Which directs attention to or advertises any meeting, theatrical performance, exhibition or event of any kind for which an admission fee is charged for the purpose of private gain or profit.

(Sec. 759-1-C; ordained by Ord. No. 119-1971, eff. Apr. 30, 1971; renumbered to C.M.C. 714-1-C, eff. Jan. 1, 1972; a. Ord. No. 519-1985, eff. Dec. 14, 1985; a. Ord. No. 353-1986, eff. Oct. 24, 1986)

Sec. 714-1-G. Garbage.

"Garbage" shall mean putrescible animal and vegetable wastes resulting from the handling, preparation, cooking and consumption of food.
(Sec. 759-1-G; ordained by Ord. No. 119-1971, eff. Apr. 30, 1971; renumbered to C.M.C. 714-1-G, eff. Jan. 1, 1972)

Sec. 714-1-I. Initial Violation.

"Initial Violation" shall mean a violation at a property under Section 714-35, 714-37, or 714-39, unless the violation meets the requirements of a "Subsequent Violation" as defined in Section 714-1-S.
(Ordained by Emer. Ord. No. 075-2015, § 4, eff. March 25, 2015)

Sec. 714-1-L. Litter.

"Litter" shall mean garbage, refuse and rubbish, as defined herein, and all other waste material which, if thrown or deposited as herein prohibited, tends to create a danger to public health, safety and welfare.
(Sec. 759-1-L; ordained by Ord. No. 119-1971, eff. Apr. 30, 1971; renumbered to C.M.C. 714-1-L, eff. Jan. 1, 1972)

Sec. 714-1-N. Non-Commercial Handbill.

"Non-commercial handbill" shall mean printed or written matter, any sample or device, dodger, circular, leaflet, pamphlet, newspaper, magazine, paper, booklet or any other printed or otherwise reproduced original or copies of any matter of literature not included in the aforementioned definitions of a commercial handbill.
(Sec. 759-1-N; ordained by Ord. No. 119-1971, eff. Apr. 30, 1971; renumbered to C.M.C. 714-1-N, eff. Jan. 1, 1972)

Sec. 714-1-P. Park.

"Park" shall mean a park, reservation, playground, beach, recreation center or any other public area in the city, owned or used by the city and devoted to active or passive recreation.
(Sec. 759-1-P; ordained by Ord. No. 119-1971, eff. Apr. 30, 1971; renumbered to C.M.C. 714-1-P, eff. Jan. 1, 1972)

Sec. 714-1-P1. Person.

"Person" shall mean an individual, firm, partnership, association, corporation, company or organization of any kind.
(Sec. 759-1-P1; ordained by Ord. No. 119-1971, eff. Apr. 30, 1971; renumbered to C.M.C. 714-1-P1, eff. Jan. 1, 1972; a. Ord. No. 418-2010, § 1, eff. Nov. 24, 2010)

Sec. 714-1-P2. Public Property or Public Place.

"Public property" or "public place" shall mean all property owned, operated or controlled by any governmental agency, including but not limited to streets, sidewalks, tree lawns, parks, playgrounds, parking lots, schools, libraries, post office, municipal transit facilities and other public lands and buildings.
(Sec. 759-1-P2; ordained by Ord. No. 119-1971, eff. Apr. 30, 1971; renumbered to C.M.C. 714-1-P2, eff. Jan. 1, 1972)

Sec. 714-1-P3. Private Property or Private Place.

"Private property" or "private place" shall mean all property not included in the aforesaid definition of "public property", including but not limited to vacant land or to any land, building or other structure designed or used for residential, commercial, business, industrial, institutional or religious purposes, together with any yard, grounds, walk, driveway, fence, porch, steps, vestibule, mailbox and other structure appurtenant thereto.
(Sec. 759-1-P3; ordained by Ord. No. 119-1971, eff. Apr. 30, 1971; renumbered to C.M.C. 714-1-P3, eff. Jan. 1, 1972)

Sec. 714-1-P4. Person in Control.

"Person in control" shall mean the owner of the freehold estate of the premises; a mortgagee or vendee in possession; a receiver; an executor; a trustee; and any person, public or private entity, lessee or holder of a lesser estate in the premises, and/or its duly authorized agent(s), with the authority to bring a building or premises into compliance with the provisions of this code, including but not limited to any mortgagee that has filed an action in foreclosure on the particular premises at issue, based on breach or default of a mortgage agreement, until title to the premises is transferred to a third party.
(Ordained by Ord. No. 418-2010, § 2, eff. Nov. 24, 2010; Emer. Ord. No. 075-2015, § 5, eff. March 25, 2015)

Sec. 714-1-R. Refuse.

"Refuse" shall mean all putrescible and nonputrescible solid wastes (except body wastes), including garbage, rubbish, ashes, street cleanings, dead animals, abandoned automobiles and solid market and industrial wastes.
(Sec. 759-1-R; ordained by Ord. No. 119-1971, eff. Apr. 30, 1971; renumbered to C.M.C. 714-1-R, eff. Jan. 1, 1972)

Sec. 714-1-R1. Rubbish.

"Rubbish" shall mean nonputrescible solid wastes consisting of both combustible and noncombustible wastes, such as paper, wrappings, dirt, cigarettes, cardboard, tin cans, yard clippings, leaves, wood, glass, bedding, crockery and similar materials.
(Sec. 759-1-R1; ordained by Ord. No. 119-1971, eff. Apr. 30, 1971; renumbered to C.M.C. 714-1-R1, eff. Jan. 1,1972)

Sec. 714-1-S. Subsequent Violation.

"Subsequent Violation" shall mean a violation under Section 714-35, 714-37 or 714-39 at a property which has been identified for an Initial Violation under Section 714-35, 714-37 or 714-39 and has not been abated by the owner or person in control. After the Initial Violation, any violations will be considered Subsequent Violations for purposes of Chapter 714 until the owner or person in control takes action under Section 714-41(b)(2)(f).
(Ordained by Emer. Ord. No. 075-2015, § 4, eff. March 25, 2015)

Sec. 714-1-V. Vehicle.

"Vehicle" shall mean every device in, upon or by which any person or property is or may be transported or drawn upon a highway.
(Sec. 759-1-V; ordained by Ord. No. 119-1971, eff. Apr. 30, 1971; renumbered to C.M.C. 714-1-V, eff. Jan. 1, 1972)

Sec. 714-3. Litter in Public Places.

No person shall throw or deposit litter in or upon any street, sidewalk or other public place within the city except in public receptacles or in authorized receptacles for collection.
(Sec. 759-3; ordained by Ord. No. 119-1971, eff. Apr. 30, 1971; renumbered to C.M.C. 714-3, eff. Jan. 1, 1972)

Cross reference—Penalty, § 714-99, 714-99-A.

Sec. 714-5. Placement of Litter in Receptacles so as to Prevent Scattering.

Persons responsible for placing or maintaining litter in public receptacles or in private receptacles shall do so in such a manner as to prevent it from being carried or deposited by the elements upon any street, sidewalk or other public place or upon private property.
(Sec. 759-5; ordained by Ord. No. 119-1971, eff. Apr. 30, 1971; renumbered to C.M.C. 714-5, eff. Jan. 1, 1972; a. Ord. No. 344-2004, eff. Oct. 27, 2004)

Sec. 714-7. Upsetting Public or Private Receptacles.

No person shall upset a public or private receptacle designed or used for the deposit of litter or cause or permit its contents to be deposited or strewn in or upon public or private property.
(Sec. 759-7; ordained by Ord. No. 119-1971, eff. Apr. 30, 1971; renumbered to C.M.C. 714-7, eff. Jan. 1, 1972)

Cross reference—Penalty, § 714-99, 714-99-A.

Sec. 714-9. Sweeping Litter into Gutters Prohibited.

No person shall throw, deposit or sweep into any gutter, sidewalk, street or other public place within the city the accumulation of litter from any building or lot or from any public or private sidewalk or driveway. Persons owning, in control of or occupying property shall keep the sidewalk in front of their premises free of litter.
(Sec. 759-9; ordained by Ord. No. 119-1971, eff. Apr. 30, 1971; renumbered to C.M.C. 714-9, eff. Jan. 1, 1972)

Cross reference—Penalty, § 714-99, 714-99-A.

Sec. 714-11. Duty to Keep Sidewalks Free of Litter.

No person owning or occupying a place of business shall sweep into or deposit in any

gutter, street or other public place within the city the accumulation of litter from any building or lot or from any public or private sidewalk or driveway. Any person, being the owner, agent, lessee, occupant or person otherwise in charge or control of any premises abutting a city street, shall, after notification by a police officer, remove, with reasonable promptness, from the sidewalk area along such premises, all debris, rubbish, litter and other matter which may at any time accumulate or be deposited thereon from any cause whatever.

(Sec. 759-11; ordained by Ord. No. 119-1971, eff. Apr. 30, 1971; renumbered to C.M.C. 714-11, eff. Jan. 1, 1972)

Cross reference—Penalty, § 714-99, 714-99-A.

Sec. 714-13. Repealed.

(Sec. 759-13; ordained by Ord. No. 119-1971, eff. Apr. 30, 1971; renumbered to C.M.C. 714-13, eff. Jan. 1, 1972; a. Ord. No. 553-1987, eff. Dec. 23, 1987; r. Ord. No. 311-2014, § 17, eff. July 1, 2015)

Sec. 714-15. Truck and Vehicle Loads Causing Litter or Scattering Debris.

No person shall drive or move any truck or other vehicle within the city unless such vehicle is so constructed and loaded as to prevent any load, contents or litter from being thrown or deposited upon any street, alley or other public place. No person, being the owner, driver or other person in charge of a vehicle hauling excavated material, coal, coke, construction or building materials, or other materials within the city shall permit any part of such material to fall or drop or be blown therefrom on a city street, alley or other public place. When a vehicle carries trash, sawdust, ashes, cinders, sand, earth, lime, manure or other substance liable to be blown away, the owner, driver or other person in charge thereof shall, before driving or operating it on any street, alley or other public place, cause such substance or substances to be completely covered with a canvas, duck or other substantial covering in such manner that the same cannot fall or be blown from such vehicle.

No person shall operate any truck or other vehicle, including those used for hauling earth-moving and any other equipment, or that has accumulated any mud, dirt, litter or any other debris that is liable to be blown or otherwise dislodged during operation onto any roadway, street, alley or other public place. The owner, driver or person in charge of such truck or other vehicle shall, before operating it on any roadway, street, alley or other public place, cause such accumulated mud, dirt, litter or debris to be removed or shall cover such portions of the truck or vehicle with a canvas or other substantial covering so that such accumulated material cannot be blown or otherwise dislodged during such operation.

(Sec. 759-15; ordained by Ord. No. 119-1971, eff. Apr. 30, 1971; renumbered to C.M.C. 714-15, eff. Jan. 1, 1972; a. Ord. No. 195-1989, eff. May 10, 1989)

Cross reference—Penalty, § 714-99, 714-99-A.

Sec. 714-17. Tracking Mud, Dirt or Other Substances on Streets.

No person shall operate on any street, alley or other public place a vehicle with mud, dirt, sticky substances, litter or foreign matter on its wheels or other parts if such operation results in the depositing or tracking of such mud, dirt, substances, litter or foreign matter on any street, alley or other public place. No person being owner of real property or a prime contractor in charge of a construction site shall maintain such property or construction site so that vehicles upon the property or construction site pick up mud, dirt, sticky substances, litter or foreign matter on the wheels or other parts and

deposit or track the mud, dirt, sticky substances, litter or foreign matter onto any street, alley or other public place.

Where mud, dirt, sticky substances, litter or foreign matter has been tracked or deposited on any street, alley or other public place in violation of this section or Section 714-15 of this code, the city manager is authorized to cause such mud, dirt, substances, litter or foreign matter to be cleaned from such street and to charge the cost thereof to person or persons responsible. The cost of cleaning shall be collected by civil suit. The term "responsible person" as used in this section shall mean the driver of the vehicle which deposited or tracked the mud, dirt, substances, litter or foreign matter on the street or the driver's employer or the owner of the real property or prime contractor in charge of a construction site from where the deposited or tracked mud, dirt, substances, litter or foreign matter on the street, alley or other public place originated.
(Sec. 759-17; ordained by Ord. No. 119-1971, eff. Apr. 30, 1971; renumbered to C.M.C. 714-17, eff. Jan. 1, 1972)

Cross reference—Penalty, § 714-99, 714-99-A.

Sec. 714-19. Litter in Parks.

No person shall throw or deposit litter in any park within the city except in public receptacles and in such a manner that the litter will be prevented from being carried or deposited by the elements upon any part of the park or upon any street or other public place. Where public receptacles are not provided, all such litter shall be carried away from the park by the person responsible for its presence and properly disposed of elsewhere as provided herein.
(Sec. 759-19; ordained by Ord. No. 119-1971, eff. Apr. 30, 1971; renumbered to C.M.C. 714-19, eff. Jan. 1, 1972)

Cross reference—Penalty, § 714-99, 714-99-A.

Sec. 714-21. Litter in Lakes and Fountains.

No person shall throw or deposit litter in any fountain, pond, lake, stream or any other body of water in a park or elsewhere within the city.
(Sec. 759-21; ordained by Ord. No. 119-1971, eff. Apr. 30, 1971; renumbered to C.M.C. 714-21, eff. Jan. 1, 1972)

Cross reference—Penalty, § 714-99, 714-99-A.

Sec. 714-23. Throwing or Distributing Handbills in Public Places.

No person shall throw or deposit any commercial or non-commercial handbill in or upon any sidewalk, street or other public place within the city. Nor shall any person hand out or distribute or sell any commercial handbill in any public place. Provided, however, that it shall not be unlawful on any sidewalk, street or other public place within the city for any person to hand out or distribute, without charge to the receiver thereof, any non-commercial handbill to any person willing to accept it, except within or around the city hall building.
(Sec. 759-23; ordained by Ord. No. 119-1971, eff. Apr. 30, 1971; renumbered to C.M.C. 714-23, eff. Jan. 1, 1972)

Cross reference—Penalty, § 714-99, 714-99-A.

Sec. 714-24. Distributing Tobacco or Other Smoking Products in Public Places.

No person shall hand out or otherwise distribute cigarettes, other tobacco products, or other smoking products in or upon any sidewalk, street, or other public place for advertising or sales promotion purposes.
(Ordained by Ord. No. 429-1988, eff. Nov. 2, 1988)

Cross references—Sale, use and of tobacco, ch. 609; advertising of tobacco products, ch. 850.

Sec. 714-25. Placing Handbills on Vehicles.

No person shall throw or deposit any commercial or non-commercial handbill in or

upon any vehicle. Provided, however, that it shall not be unlawful in any public place for a person to hand out or distribute, without charge to the receiver thereof, a non-commercial handbill to any occupant of a vehicle who is willing to accept it.
(Sec. 759-25; ordained by Ord. No. 119-1971, eff. Apr. 30, 1971; renumbered to C.M.C. 714-25, eff. Jan. 1, 1972)

Cross reference—Penalty, § 714-99, 714-99-A.

Sec. 714-27. Depositing Handbills on Uninhabited or Vacant Premises.

No person shall throw or deposit any commercial or non-commercial handbill in or upon any private premises which are temporarily or continuously uninhabited or vacant.
(Sec. 759-27; ordained by Ord. No. 119-1971, eff. Apr. 30, 1971; renumbered to C.M.C. 714-27, eff. Jan. 1, 1972)

Cross reference—Penalty, § 714-99, 714-99-A.

Sec. 714-29. Prohibiting Distribution of Handbills Where Posted.

No person shall throw, deposit or distribute any commercial or non-commercial handbill upon any private premises if requested by anyone thereon not to do so, or if there is placed on the premises in a conspicuous position near the entrance thereof, a sign bearing the words: "No Trespassing," "No Peddlers or Agents," "No Advertisement," or any similar notice, indicating in any manner that the occupants of the premises do not desire to be molested or have their right of privacy disturbed, or have any such handbills left upon such premises.
(Sec. 759-29; ordained by Ord. No. 119-1971, eff. Apr. 30, 1971; renumbered to C.M.C. 714-29, eff. Jan. 1, 1972)

Cross reference—Penalty, § 714-99, 714-99-A.

Sec. 714-31. Distributing Handbills at Inhabited Private Premises.

No person shall throw, deposit or distribute any commercial or non-commercial handbill in or upon private premises which are inhabited, except by handing or transmitting any such handbill directly to the owner, occupant, or other person then present in or upon such private premises. Provided, however, that in case of inhabited private premises which are not posted, as provided in this chapter, such person, unless requested by anyone upon such premises not to do so, may place or deposit any such handbill in or upon such inhabited private premises, if such handbill is so placed or deposited as to secure or prevent such handbill from being blown or drifted about such premises or sidewalks, streets or other public places, and except that mailboxes may not be so used when so prohibited by federal postal law or regulations.

The provisions of this section shall not apply to the distribution of mail by the United States, nor to newspapers except that newspapers shall be placed on private property in such a manner as to prevent their being carried or deposited by the elements upon any street, sidewalk or other public place or upon private property.
(Sec. 759-31; ordained by Ord. No. 119-1971, eff. Apr. 30, 1971; renumbered to C.M.C. 714-31, eff. Jan. 1, 1972)

Cross reference—Penalty, § 714-99, 714-99-A.

Sec. 714-33. Repealed.

(Sec. 759-33; ordained by Ord. No. 119-1971, eff. Apr. 30, 1971; renumbered to C.M.C. 714-33, eff. Jan. 1, 1972; a. Ord. No. 360-1989, eff. Sept. 13, 1989; a. Ord. No. 129-1997, eff. April 30, 1997; a. Ord. No. 181-99, eff. June 11, 1999; a. Ord. No. 298-2002, § 1, Sept. 18, 2002; r. Ord. No. 363-2009, § 11, eff. Jan. 16, 2010)

Sec. 714-35. Litter on Occupied or Unoccupied Private Property.

No person shall throw or deposit litter on any occupied or unoccupied private property within the city, whether owned by such person or not, except that the owner or person in

control of private property may maintain authorized private receptacles for collection in such a manner that litter will be prevented from being carried or deposited by the elements upon any street, sidewalk or other public place or upon any private property.
(Sec. 759-35; ordained by Ord. No. 119-1971, eff. Apr. 30, 1971; renumbered to C.M.C. 714-35, eff. Jan. 1, 1972; Emer. Ord. No. 075-2015, § 5, eff. March 25, 2015)
Cross reference—Penalty, § 714-99, 714-99-A.

Sec. 714-37. Owner or Person in Control to Maintain Premises Free of Litter.

The owner or person in control of any private property shall at all times maintain the premises free of litter. Provided, however, that this Section shall not prohibit the storage of litter in authorized private receptacles for collection.
(Sec. 759-37; ordained by Ord. No. 119-1971, eff. Apr. 30, 1971; renumbered to C.M.C. 714-37, eff. Jan. 1, 1972; Emer. Ord. No. 075-2015, § 5, eff. March 25, 2015)
Cross reference—Penalty, § 714-99, 714-99-A.

Sec. 714-39. Litter on Vacant Lots.

No person shall throw or deposit litter on any open or vacant private property within the city whether owned by such person or not.
(Sec. 759-39; ordained by Ord. No. 119-1971, eff. Apr. 30, 1971; renumbered to C.M.C. 714-39, eff. Jan. 1, 1972)
Cross reference—Penalty, § 714-99, 714-99-A.

Sec. 714-40. Potential Waiver or Suspension of Fines for Property Susceptible to Littering by Third Parties.

(a) If a property is susceptible to littering by third parties who are not the owner or person in control and who are not invited to be present on the property by the owner or person in control, or if the property is susceptible to illegal and prohibited waste disposal as defined by Chapter 729 by third parties who are not the owner or person in control and who are not invited to be present on the property by the owner or person in control, the owner or person in control may be eligible for suspension or waiver of fines incurred for violations of Section 714-35, 714-37, or 714-39.

(b) Examples of conditions that may make an owner or person in control eligible for suspension or waiver of fines under this provision include but are not limited to the property's location in a high vehicular traffic area or a high pedestrian traffic area that subjects it to excessive littering through no direct fault of the property owner; the property being situated such that parts of it are not routinely visible to the owner or person in control and thus, it is more susceptible to illegal and prohibited waste disposal, as defined by Chapter 729; and other extenuating or mitigating factors.

(c) A property is eligible for a suspension or waiver of fines under Section 714-35, 714-37, or 714-39, only if:

(1) The owner or person in control has requested a waiver or suspension of fees and submitted a proposed abatement plan to directly address the conditions giving rise to the violations within seven days of the issuance of the notice of violation set forth in Section 714-41;

(2) The owner or person in control has set forth in the request for waiver or suspension the reasons why the violations are not within the control or the fault of the owner or person in control due to either the ongoing nature of the litter violations at the property caused by third parties or the property's sus-

ceptibility to illegal and prohibited waste disposal, as defined by Chapter 729;

(3) The owner or person in control's proposed abatement plan

A. Sets forth how potential future violations of this chapter will be avoided or addressed; and

B. Directly addresses the factors that contributed to the underlying violation, but that are not fully within the control of the owner or person in control due to either the ongoing nature of the litter violations at the property caused by third parties; and

(4) The city manager or the city manager's designee has approved the abatement plan submitted by the owner or person in control of the property, with the determination being made in accordance with the rules and regulations promulgated by the city manager as authorized in Section 714-49.

(d) A property's eligibility for suspension or waiver of fines under this provision is at the discretion of the city manager or the city manager's designee. The city manager or the city manager's designee may reject, request modification of, or revoke an abatement plan.

(e) The city manager or city manager's designee's enforcement of this provision shall be governed by the rules and regulations promulgated by the city manager as authorized in Section 714-49. A copy of the city manager's rules and policies and any subsequent revisions to such rules shall be submitted to Council for approval prior to implementation.

(f) A denial of a request for suspension or waiver or fines and the rejection, modification or revocation of an abatement plan under this Section is appealable to the office of administrative hearings.
(Ordained by Emer. Ord. No. 075-2015, § 4, eff. March 25, 2015)

Sec. 714-41. Notice to Owners and Persons in Control—Initial and Subsequent Violations.

(a) Notice for Initial Violations: When the city manager or the city manager's designee ascertains that litter has been placed on lands within the city of Cincinnati, a written notice in accordance with Section 1501-13 shall be served upon the owner or person in control of the littered land. In addition to the notice of civil offense and civil fine provided in Section 1501-13, the written notice shall state that:

(1) Litter is on the land in violation of Section 714-35, 714-37, or 714-39, and that it must be collected and removed within seven days of the date of receipt of the notice;

(2) Due to the recurring nature of violations under this Section, if the owner or person in control fails to bring the property into compliance with Section 714-35, 714-37, or 714-39 within seven days of receiving a notice of civil offense and civil fine:

A. The property shall be deemed Abandoned Property;

B. In accordance with subsection (b), below, the city will abate Subsequent Violations pursuant to either Section 714-45 or 714-46 without further additional notice to the owner or person in control;

C. The costs of all abatement of Subsequent Violations will be assessed as set forth in Section 714-47;

D. The Abandoned Property will be part of a routine maintenance schedule, pursuant to guidelines established by the city manager or the city manager's designee;

E. Once the property is deemed Abandoned Property, in order to avoid issuance of further civil fines for subsequent violations or assessment for the costs of the abatement action, an owner or person in control of abandoned property must contact the city manager or the city manager's designee in writing to request approval of an abatement plan;

F. The owner or person control may request a waiver or suspension of fines in accordance with Section 714-40.

(b) Notice for Subsequent Violation: Once a property is deemed Abandoned Property, in addition to the penalty described in Section 714-99, when the city manager or the city manager's designee ascertains that litter is present on the property in violation of Section 714-35, 714-37 or 714-39, a written notice in accordance with Section 1501-13(e) shall be served upon the owner or person in control of the property each and every time the condition is to be abated. In addition to the notice of civil offense and civil fine provided in Section 1501-13, the written notice shall state the following:

(1) Litter is present on the lot or land in violation of Section 714-35, 714-37, or 714-39;

(2) Due to the recurring nature of violations under this Section, because the owner or person in control failed to bring the property into compliance with Section 714-35, 714-37 or 714-39 within seven days of receiving an initial notice of civil offense and civil fine, the following shall occur:

A. The property has been deemed Abandoned Property;

B. Litter is present again, constituting a Subsequent Violation;

C. If there are any Subsequent Violations found at the Abandoned Property, in addition to imposition of civil fines, the city will continue to abate all Subsequent Violations pursuant to Sections 714-45 and 714-46, providing notice of abatement each time;

D. The costs of all abatement of Subsequent Violations will be assessed as set forth in 714-47;

E. The Abandoned Property will be part of a routine maintenance schedule, pursuant to guidelines established by the city manager or the city manager's designee;

F. Once the property is deemed Abandoned Property, in order to avoid issuance of further civil fines for subsequent violations or assessment for the costs of the abatement action, an owner or person in control of abandoned property must contact the city manager or the city manager's designee in writing to request approval of an abatement plan.

G. The owner or person control may request a waiver or suspension of fines in accordance with Section 714-40.

(c) This section shall not apply to land being used under a city of Cincinnati building or construction permit or license, a city of Cincinnati permit or license or a conditional zoning permit or variance to operate a junk

yard, scrap metal processing facility or similar business, or a permit or license issued pursuant to Chapter 3734, Sections 4737.05 to 4737.12, or Chapter 6111 of the Ohio Revised Code.
(C.M.C. 714-41; ordained by Ord. No. 459-1976, eff. Oct. 6, 1976; a. Ord. No. 212-2002, eff. June 19, 2002; Emer. Ord. No. 075-2015, § 5, eff. March 25, 2015)

Sec. 714-42. Answer to Notice to Owner and Persons in Control.

An owner or person in control served with a written notice pursuant to Section 714-41 may answer the charge in accordance with Section 1501-15 within seven business days of receipt of the notice by the person being charged, and for Initial Violations, may include an offer of proof of correction in accordance with Section 1501-19.
(Ordained by Ord. No. 212-2002, eff. June 19, 2002; Emer. Ord. No. 075-2015, § 5, eff. March 25, 2015)

Sec. 714-43. Receipt of Notice by the Person Charged.

For purposes of Sections 714-41 and 714-42, receipt of notice by the person charged shall mean (1) the date on which the issuing officer personally served the person being charged, (2) the date on which the issuing officer posted a copy of the notice on the real property in accordance with Section 1501-13(d), or (3) three days after the issuing officer has mailed the notice in accordance with Section 1501-13(d) if the real property is vacant, and the issuing officer is unable to personally serve the notice to the person charged or post a copy on the real property.
(C.M.C. 714-43; ordained by Ord. No. 460-1976, eff. Oct. 6, 1976; repealed and reordained by Ord. No. 212-2002, eff. June 19, 2002)

Sec. 714-44. Procedures for Denial or Proof of Correction.

For purposes of denying a violation of Section 714-37 or offering proof of correction of a violation of Section 714-37, the procedures contained in Section 1501-13 to Section 1501-31 shall apply to the person being charged.
(Ordained by Ord. No. 212-2002, eff. June 19, 2002)

Sec. 714-45. Abatement by Public Officers.

(a) If the owner or person in control of any land identified in Section 714-41 fails to comply with such notice within the specified time period, the city manager or the city manager's designee shall cause such litter to be removed, and may employ the necessary labor to perform the task. The city manager or the city manager's designee shall report all expenses involved in the removal of such litter, including the cost of service of notice and inspection costs, to council.

(b) The city manager shall place Abandoned Property on a list of abandoned properties that will be routinely inspected and, if Abandoned Property is found to be in violation of Section 714-35, 714-37, or 714-39, shall immediately cause litter that is the source of the violation to be removed. Such inspection and abatement of litter on Abandoned Property shall continue as long as the condition persists, with a 714-41(a) notice sent each time, and may continue into the following calendar years.

(c) The obligation of any mortgagee or person in control as defined in Section 1101-01 or Section 1123-01 to comply with all obligations of the applicable Building Code regulations is not modified by this Section.
(C.M.C. 714-45; ordained by Ord. No. 462-1976, eff. Oct. 6, 1976; Emer. Ord. No. 075-2015, § 5, eff. March 25, 2015)

Sec. 714-46. Abatement by City's Authorized Designee.

(a) If the owner or person in control of property that has a violation of Section 714-35, 714-37 or 714-39 is notified of such viola-

tion pursuant to 714-41(a) and fails to comply with the requirements of such notice within the specified time period, then the property shall be shall be identified as an Abandoned Property as defined by Section 714-1-A, and the city manager or the city manager's designee may authorize a person who is not the owner or person in control of real property ("Authorized Designee") and who suspects that the property may be in violation of Section 714-35, 714-37, or 714-39 to remove the litter. Before entering onto the real property, the Authorized Designed must obtain written verification from the city manager or the city manager's designee of all of the following:

(1) That the owner or person in control of the property has received a notice pursuant to Section 714-41(a) for failure to comply with Section 714-35, 714-37, or 714-39; and

(2) That the owner or person in control has failed to comply with the requirements of such notice.

(b) Upon receipt of a written verification from the city's designated public officer, the Authorized Designee may immediately cause any litter violation specified in Section 714-35, 714-37, or 714-39 to be removed.

(c) An Authorized Designee,

(1) is immune from suits for claims of civil liability for an act or omission related to the entry or to any action described in subsection (b) to the extent allowed by Ohio Revised Code Chapter 2744 et seq., unless the act or omission constitutes willful, wanton, or reckless misconduct; and

(2) shall not be subject to prosecution by the city for criminal trespass and shall be deemed to be lawfully on the property.

(d) The Authorized Designee shall report all expenses involved in the removal of such litter, including the cost of service of notice and inspection costs to the city manager or the city manager's designee, who shall in turn report all expenses to council.

(e) The obligation of any mortgagee or person in control as defined in Section 1101-01 or Section 1123-01 to comply with all of the obligations of the applicable Building Code regulations is not modified by this Section.
(Ordained by Emer. Ord. No. 075-2015, § 4, eff. March 25, 2015)

Sec. 714-47. Costs as Lien on the Land and Personal Judgment Against Owners and Persons in Control.

When litter has been removed in accordance with Section 714-45 or 714-46, the cost thereof shall be a lien on such land from the date such expenses are reported to the clerk of council in accordance with such Section. The clerk of council shall certify such cost to the county auditor to be placed upon the tax list and collected as other taxes are collected and returned to the city of Cincinnati in accordance with Section 715.26, 715.261 or 731.54 of the Ohio Revised Code. The costs of removal may also be recovered by means of a judgment against the owner or person in control of the property. Any costs recovered under this chapter shall be deposited into the private lot abatement fund to support abatement activities authorized by Sections 714-45 and 714-46 and enforcement of this chapter.
(C.M.C. 714-47; ordained by Ord. No. 462-1976, eff. Oct. 6, 1976; a. 597-1979, eff. Jan. 27, 1980; Emer. Ord. No. 075-2015, § 5, eff. March 25, 2015; a. Ord. No. 384-2016, § 3, eff. Feb. 11, 2017)

Sec. 714-48. Rules and Regulations.

The city manager or the city manager's designee is authorized to promulgate rules

and regulations to effectuate the provisions and purposes of this chapter, including without limitation, the following: the determination of whether a property is Abandoned as defined by Section 714-1-A; the implementation of a routine maintenance schedule for Abandoned Properties; the implementation of a program enabling Abatement by the city's authorized designee, as outlined in Section 714-46, including determining the cost of authorized designee time and of abatement; an administrative process to contest a determination of Abandonment under Section 714-1-A; a process for administering the waiver or suspension of fines for property susceptible to littering by third parties as outlined in Section 714-40; an opportunity for property owners to re-assert control over Abandoned Properties to avoid ongoing maintenance, assessments and civil penalties by the city; and a policy and a process for property owners seeking to remove their property from the city's abatement program.
(Ordained by Emer. Ord. No. 075-2015, § 4, eff. March 25, 2015)

Sec. 714-49. Repealed.
(Ordained by Ord. No. 229-2000, eff. July 21, 2000; r. Ord. No. 212-2002, eff. June 19, 2002)

Sec. 714-99. Penalties—Civil and Criminal.

(a) Violation of Section 714-5, 714-7, 714-9, 714-23, 714-24, 714-29, or 714-31 is a Class A1 Civil Offense.

(b) Violation of Section 714-3, 714-17, 714-19, 714-21, 714-25, 714-27, or 714-33 is a Class B1 Civil Offense. Subsequent violation of these code provisions will constitute an additional Class B1 Civil Offense except for a subsequent violation of Section 714-33, which constitutes a Class C1 Civil Offense.

(c) Violation of Section 714-11, 714-13, 714-15, 714-35, 714-37, or 714-39 is a Class C1 Civil Offense.

(d) Any civil fines collected under this chapter shall be deposited into Stormwater Management Fund 107 in accordance with CMC 720-51.

(e) As an alternative to a notice of civil offense and civil fine, a violation of:

(1) Section 714-7 of this chapter may be cited as a misdemeanor of the first degree and shall carry with it a mandatory fine of $1,000.

(2) Section 714-3, 714-13 or 714-19 of this chapter may be cited as a misdemeanor of the third degree and shall carry with it a mandatory fine of $500.

(3) Any other provision of this chapter may be cited as a minor misdemeanor if it is a first offense which shall carry a mandatory fine of $150, and a misdemeanor of the fourth degree if it is a second offense which shall carry a mandatory fine of $250.

(f) If an offender of Section 714-35, 714-37 or 714-39 has been previously convicted of violating Section 714-35, 714-37 or 714-39 of this chapter, the offender is guilty of a misdemeanor of the first degree which shall carry a mandatory fine of $1,000.
(Sec. 759-99; ordained by Ord. No. 119-1971, eff. Apr. 30, 1971; renumbered to C.M.C. 714-99, eff. Jan. 1, 1972; a. Ord. No. 13-1988, eff. Jan. 21, 1988; a. Ord. No. 235-2003, eff. June 25, 2003; a. Ord. No. 250-2010, § 1, eff. July 30, 2010; Emer. Ord. No. 075-2015, § 5, eff. March 25, 2015; a. Ord. No. 384-2016, § 3, eff. Feb. 11, 2017; a. 282-2024, § 1, eff. Sept. 5, 2024)

Sec. 714-99-A. Repealed.

(Sec. 759-99-1; ordained by Ord. No. 119-1971, eff. Apr. 30, 1971; a. Ord. No. 168-

1971, eff. May 12, 1971; a. Ord. No. 268-1971, eff. July 8, 1971; renumbered to C.M.C. 714-99-A, eff. Jan. 1, 1972; r. Ord. No. 13-1988, eff. Jan. 21, 1988)

Chapter 715

PUBLIC RELIEF

Sec. 715-1. Misuse of Relief Tokens.
Sec. 715-3. False Statements to Obtain Public Relief.
Sec. 715-5. Possessing Relief Tokens Issued to Another.
Sec. 715-7. Selling Relief Tokens.
Sec. 715-9. Fraudulent Handling of Relief Tokens.
Sec. 715-11. Use of Relief Token Issued to Others.
Sec. 715-99. Penalties.

Sec. 715-1. Misuse of Relief Tokens.

Whenever a relief voucher, food stamp, paper, or other relief token, auxiliary to the rendering of assistance to persons in distress, and referred to in this chapter as relief tokens, is issued by any public or semi-public authority, entitling a person named to obtain emergency supplies of food, clothes or other necessities upon presentation thereof, such relief token shall be used only by the person named, for the person's own needs and those of such person's dependents.
(C.O. 736-1; renumbered to C.M.C. 715-1, eff. Jan. 1, 1972)

Sec. 715-3. False Statements to Obtain Public Relief.

No person shall make false statements as to identity, place or residence or the needs for self or dependents, for the purpose of obtaining one or more relief tokens, or obtaining other relief at public or semi-public expense.
(C.O. 736-2; renumbered to C.M.C. 715-3, eff. Jan. 1, 1972)

Cross reference—Penalty, § 715-99.

Sec. 715-5. Possessing Relief Tokens Issued to Another.

No person shall appropriate, retain possession of, or use, a relief token issued in the name of another person. This provision shall not apply to any merchant, dealer, or other person furnishing food, clothing, or supplies for such relief token, in the regular course of business, or to lawful assignees.
(C.O. 736-3; renumbered to C.M.C. 715-5, eff. Jan. 1, 1972)

Cross reference—Penalty, § 715-99.

Sec. 715-7. Selling Relief Tokens.

No recipient or possessor of a relief token shall sell it or give it away, directly or indirectly, or use it in any way other than to obtain food, clothes, or other supplies for such recipient and dependents; and no other person shall purchase, discount or negotiate such relief token in any other way than by furnishing food, clothes or supplies in the course of business.
(C.O. 736-4; renumbered to C.M.C. 715-7, eff. Jan. 1, 1972)

Cross reference—Penalty, § 715-99.

Sec. 715-9. Fraudulent Handling of Relief Tokens.

No merchant, dealer or other person furnishing food, clothes or supplies in exchange for relief tokens shall:

(a) Charge a person presenting a relief token higher prices than those regularly charged other customers;

(b) Make entries on any relief token purporting to show deliveries of food, clothes or other supplies to the person on relief in excess of those actually furnished;

(c) Upon the redemption of a relief token, obtain, or attempt to obtain, payment in excess of the amount for which it was honored by such person or agent.

(C.O. 736-5; renumbered to C.M.C. 715-9, eff. Jan. 1, 1972)

Cross reference—Penalty, § 715-99.

Sec. 715-11. Use of Relief Token Issued to Others.

No person other than the person named therein shall present a relief token and obtain food, clothes or other supplies by means thereof; provided that nothing herein shall prevent the making of reasonable arrangements for caring for sick, helpless or infirm recipients of relief tokens.
(C.O. 736-6; renumbered to C.M.C. 715-11, eff. Jan. 1, 1972)

Cross reference—Penalty, § 715-99.

Sec. 715-99. Penalties.

Whoever violates any provision of this chapter shall be fined not more than $100.
(C.O. 736-10; renumbered to C.M.C. 715-99, eff. Jan. 1, 1972)

Chapter 717

REGISTRATION OF CONVICTED PERSONS

Sec. 717-1. Registration by Persons Convicted of Certain Crimes.
Sec. 717-2. Registration of Persons Convicted of Violent Personal Crimes.
Sec. 717-3. Photograph and Fingerprints.
Sec. 717-5. Convicted Persons Residing in the City.
Sec. 717-7. Change of Address.
Sec. 717-9. False Information.
Sec. 717-11. Failure to Furnish Information Unlawful.
Sec. 717-13. When Provisions of Chapter not Applicable.
Sec. 717-15. Repealed.
Sec. 717-16. Neighborhood Notification.
Sec. 717-99. Penalties.

Sec. 717-1. Registration by Persons Convicted of Certain Crimes.

Every person coming into the city, whether in transit through, or otherwise, who has been convicted two or more times in federal or state courts of offenses which are felonies under the laws of the United States or of the state in which committed, or which would be classed as felonies, if committed in the state of Ohio, at least one of which conviction shall have been within the period of five years prior thereto, shall report to the criminal investigation section (CIS) of the police department, within 24 hours after arrival within the city, and shall furnish to the CIS, in a written signed statement, such person's true name and every other name or alias by which such person is or has been known, a full and complete physical description and the name of each offense as hereinabove defined of which such person has been convicted, together with the names of the places where each such offense was committed, the name under which such person was convicted, the date of the conviction, and the name, if any, and location of each penal institution in which such person has been confined by way of punishment for each such offense, together with the location or address used, or to be used by such person, as a residence, stopping place or living quarters in the City of Cincinnati, with a description of the character of each such place, whether a hotel, apartment house, dwelling house or otherwise, giving the street number thereof, if any, or any description of it as will so identify it as to make it possible of location; also the length of time such person expects to remain within the city.

(C.O. 749-1; renumbered to C.M.C. 717-1, eff. Jan. 1, 1972; a. Ord. No. 0434-2007, § 1, eff. Jan. 4, 2008)

Cross reference—Penalty, § 717-99.

Sec. 717-2. Registration of Persons Convicted of Violent Personal Crimes.

Every person coming into the city, whether in transit through, or otherwise, who was released from incarceration prior to serving the full term of sentence and continues under state or judicial supervision and the offense for which the person continues to be under state, federal or judicial supervision is aggravated murder (ORC 2903.01), murder (ORC 2903.02), voluntary manslaughter (ORC 2903.03), rape (ORC 2907.02), sexual battery (ORC 2907.03), gross sexual imposition (ORC 2907.05), kidnapping (ORC 2905.01), or abduction (ORC 2905.02) under the laws of Ohio or is the equivalent offense under the laws of the United States or of the state in which committed, shall report to the CIS if the supervision is related to homicide, rape, kidnapping, sexual battery or gross sexual imposition under the laws of Ohio, the United States or the state in which committed, shall report to the CIS of the police department, within 24 hours after arrival within the city, and shall furnish to the CIS, in a written signed statement, such person's true name and every other name or alias by which such person is or has been known, a full and complete physical description and the name of each offense as hereinabove defined of which such person has been convicted, together with the names of the places where each such offense was committed, the name under which such person was convicted, the date of the conviction, and the name, if any, and location of each penal institution in which such person has been confined by way of punishment for each such offense together with the location and address used, or to be used by such person, as a residence, stopping place or living quarters in the City of Cincinnati, with a description of the character of each such place, whether a hotel, apartment house, dwelling house or otherwise, giving the street number thereof, if any, or any

description of it as will so identify it as to make it possible of location; also the length of time such person expects to remain within the city.
(Ordained by Ord. No. 291-1995, eff. Sept. 13, 1995; a. Ord. No. 0434-2007, § 3, eff. Jan. 4, 2008)

Sec. 717-3. Photograph and Fingerprints.

Every person registering in accordance with section 717-1 or section 717-2 shall be photographed and fingerprinted by the CIS, and such photograph and fingerprints shall be made a part of the permanent records of the police department.
(C.O. 749-4; renumbered to C.M.C. 717-3, eff. Jan. 1, 1972; a. Ord. No. 291-1995, eff. Sept. 13, 1995; a. Ord. No. 0434-2007, § 5, eff. Jan. 4, 2008)

Sec. 717-5. Convicted Persons Residing in the City.

Every person residing within the city who has been convicted, within the immediately prior period of five years, of any offense, as described in Section 717-1 or Section 717-2, shall have on file with the bureau of identification a written statement signed by such person, containing all the information required to be furnished in accordance with Section 717-1 or Section 717-2, together with photograph and fingerprints, as provided by Section 717-3. Such statement shall also set forth the occupation or employment in which such person is engaged, the name of the employer, the business in which the employer is engaged, and the nature and character of the business.
(C.O. 749-6; renumbered to C.M.C. 717-5, eff. Jan. 1, 1972; a. Ord. No. 291-1995, eff. Sept. 13, 1995)

Sec. 717-7. Change of Address.

Any person required to register in accordance with the provisions of this chapter who changes place of residence, stopping place or living quarters to a new or different place within the city shall, within 24 hours after leaving the registered location, notify the bureau of identification of the change of address in a signed statement, which statement shall set forth the new address and the change in any information previously submitted pursuant to Section 717-1 or Section 717-2. Similar notification shall be made in the case of further changes of address.
(C.O. 749-7; renumbered to C.M.C. 717-7, eff. Jan. 1, 1972; a. Ord. No. 291-1995, eff. Sept. 13, 1995)

Sec. 717-9. False Information.

No person who is subject to the provisions of this chapter shall furnish in any report a false or fictitious address, or furnish any false, untrue or misleading information or statement relating to information required by the provisions of this chapter to be made or furnished.
(C.O. 749-9; renumbered to C.M.C. 717-9, eff. Jan. 1, 1972)
Cross reference—Penalty, § 717-99.

Sec. 717-11. Failure to Furnish Information Unlawful.

No person required by any provision of this chapter to furnish a report or information shall fail, neglect or refuse to make such report or furnish such information, photograph or fingerprints, or fail, neglect or refuse to furnish the same within the time prescribed, or fail, neglect or refuse to furnish to the CIS, within such time, any information, photograph or fingerprints required to be furnished by any provision of this chapter, or furnish any false, untrue or misleading information on, or statement relating to, any information required to be made or furnished.
(C.O. 749-10; renumbered to C.M.C. 717-11, eff. Jan. 1, 1972; a. Ord. No. 0434-2007, § 7, eff. Jan. 4, 2008)
Cross reference—Penalty, § 717-99.

Sec. 717-13. When Provisions of Chapter not Applicable.

Nothing in this chapter shall be deemed or construed to apply to any person who has received a pardon for each offense, as described in Section 717-1 or Section 717-2, of which such person has been convicted.
(C.O. 749-13; renumbered to C.M.C. 717-13, eff. Jan. 1, 1972; a. Ord. No. 291-1995, eff. Sept. 13, 1995)

Sec. 717-15. Repealed.
(C.O. 749-14; renumbered to C.M.C. 717-15, eff. Jan. 1, 1972; r. Ord. No. 0434-2007, § 9, eff. Jan. 4, 2008)

Sec. 717-16. Neighborhood Notification.

Notwithstanding section 717-15, the Cincinnati Police Department, in accordance with procedures established by the Cincinnati Police Department, shall notify the neighbors of the residence or address of any person who, pursuant to this section 717-2, registers or re-registers with the Cincinnati Police Department CIS and for that person both of the following criteria apply:

1. The person was released from incarceration prior to serving the full term of sentence and continues under state or judicial supervision; and
2. The offense for which the person continues to be under state, federal or judicial supervision is to be under state, federal or judicial supervision is aggravated murder (ORC 2903.01), murder (ORC 2903.02), voluntary manslaughter (ORC 2903.03), rape (ORC 2907.02), sexual battery (ORC 2907.03), gross sexual imposition (ORC 2907.05), kidnapping (ORC 2905.01), or abduction (ORC 2905.02) under the laws of Ohio or is the equivalent offense under the laws of the United States or of the state in which committed.

(Ordained by Ord. No. 291-1995, eff. Sept. 13, 1995; Ord. No. 0434-2007, § 10, eff. Jan. 4, 2008)

Sec. 717-99. Penalties.

Whoever violates any provision of this chapter shall be fined not more than $1,000 or imprisoned not more than 180 days, or both. (C.O. 749-17; renumbered to C.M.C. 717-99, eff. Jan. 1, 1972; a. Ord. No. 291-1995, eff. Sept. 13, 1995)

Chapter 718

REVOCABLE STREET PRIVILEGES

Sec. 718-1. Definitions.
Sec. 718-1-B. Building Encroachment.
Sec. 718-1-H. Holder.
Sec. 718-1-P1. Privileged Premises.
Sec. 718-1-R. Revocable Street Privilege.
Sec. 718-1-S. Repealed.
Sec. 718-3. Revocable Street Privileges, General.
Sec. 718-5. Building Encroachments, Regulation.
Sec. 718-7. Standard Conditions of Revocable Street Privilege Approval.
Sec. 718-9. Repealed.
Sec. 718-11. Repealed.
Sec. 718-13. Repealed.
Sec. 718-15. Repealed.
Sec. 718-17. Repealed.
Sec. 718-19. Repealed
Sec. 718-21. Repealed.
Sec. 718-23. Unlawful Private Use of Streets.
Sec. 718-25. Secret Street Uses.
Sec. 718-27. Discovery of Unlawful Uses.
Sec. 718-29. Repealed.
Sec. 718-31. Fences.
Sec. 718-33. Water Meters and Pits.
Sec. 718-99. Penalties.
Sec. 718-99-A. Violation of Section 718-23.
Sec. 718-99-B. Violation of Section 718-25.
Sec. 718-99-C. Violation of Section 718-9.

Sec. 718-1. Definitions.

For the purpose of this chapter the words and phrases defined in the sections hereunder shall have the meanings therein respectively ascribed to them, unless a different meaning is clearly indicated by the context.
(C.O. 745; renumbered to C.M.C. 718-1, eff. Jan. 1, 1972)

Sec. 718-1-B. Building Encroachment.

"Building encroachment" shall mean the occupancy of a public street, alley or way, on, under or above the street surface, by a construction constituting a part of a building such as a vault, balcony, bay-window, marquee, sign or other construction.
(C.O. 745-b1; renumbered to C.M.C. 718-1-B, eff. Jan. 1, 1972)

Sec. 718-1-H. Holder.

"Holder" shall mean a person, firm or corporation in lawful possession of a revocable street privilege. Where the privilege granted is directly appurtenant to the abutting real estate, "holder" shall mean the owner of such real estate.
(C.O. 745-p1; renumbered to C.M.C. 718-1-P, eff. Jan. 1, 1972; renumbered by Ord. No. 363-2009, § 3, eff. Jan. 16, 2010)

Sec. 718-1-P1. Privileged Premises.

"Privileged premises" shall mean the lot or parcel of real estate to which a revocable street privilege is appurtenant.
(C.O. 745-p2; renumbered to C.M.C. 718-1-P1, eff. Jan. 1, 1972)

Sec. 718-1-R. Revocable Street Privilege.

"Revocable street privilege" shall mean any authorized or permitted private right in the use of a special part of a city street, sidewalk, alley or way, separate and distinct from the use of city streets, alleys and ways by the general public or by authorized public utility corporations.
(C.O. 745-r1; renumbered to C.M.C. 718-1-R, eff. Jan. 1, 1972; a. Ord. No. 363-2009, § 3, eff. Jan. 16, 2010)

Sec. 718-1-S. Repealed.
(C.O. 745-s1; renumbered to C.M.C. 718-1-S, eff. Jan. 1, 1972; r. Ord. No. 363-2009, § 3, eff. Jan. 16, 2010)

Sec. 718-3. Revocable Street Privileges, General.

The enjoyment of revocable street privileges on, under or over public streets, alleys and ways by abutting owners or others for private purposes shall be subject to regulation and control as provided in this chapter and in Chapter 723 "Streets and Sidewalks, Use Regulations." Nothing in this chapter shall apply to the use of city streets by duly authorized public utility corporations for the furnishing of utility services to consumers in the City of Cincinnati in accordance with regulations established by ordinance. Revocable street privileges may only be granted for the purposes set forth in this chapter and in Chapter 723 "Street and Sidewalks, Use Regulations."
(C.O. 745-1; renumbered to C.M.C. 718-3, eff. Jan. 1, 1972; a. Ord. No. 363-2009, § 3, eff. Jan. 16, 2010)

Sec. 718-5. Building Encroachments, Regulation.

Unless otherwise specially permitted, encroachments by building structures on public streets, alleys or ways shall be regulated in accordance with the provisions of Title XI of the Cincinnati Municipal Code.
(C.O. 745-3; renumbered to C.M.C. 718-5, eff. Jan. 1, 1972)

Sec. 718-7. Standard Conditions of Revocable Street Privilege Approval.

(a) Any revocable street privilege issued pursuant to this chapter or Chapter 723, "Streets and Sidewalks, Use Regulations," shall automatically be subject to the following conditions, in addition to any other conditions imposed by the Cincinnati Municipal Code, provided that the city manager or his or her designee may waive one or more conditions upon the determination that it will not negatively impact public health, safety, or welfare, unreasonably interfere with the use and function of city streets, or pose an undue threat to the fiscal interests of the city:

1. *Expenses*. All costs and expenses associated with the use of the revocable street privilege and the construction, maintenance, modification, use, operation, repair, removal, and abandonment of all building encroachments, fixtures, equipment, personalty, or other improvements associated with the revocable street privilege shall be the sole responsibility of the holder. The city shall have no responsibility for any costs or expenses associated with the use of the revocable street privilege and the construction, maintenance, modification, use, operation, repair, removal, and abandonment of any building encroachments, fixtures, equipment, personalty, or other improvements associated with the revocable street privilege.

2. *Maintenance of Building Encroachment*. The holder shall maintain all building encroachments, fixtures, equipment, personalty, or other improvements associated with the revocable street privilege in a good, clean, and safe condition and repair and in accordance with applicable city standards, which may be established by the city manager or his or her designee in his or her sole discretion.

3. *City's Right to Enter the Area*. The holder acknowledges that the city and its authorized representatives have the unlimited right to enter upon the revocable street privilege area at any time for any purpose, including without limitation to inspect the area and any building encroachments, fixtures, equipment, personalty, or other improvements located in the area, provided that the city shall have no duty to inspect.

4. *Rights of Utility Companies*. The revocable street privilege granted to a holder is subject and subordinate to the rights of any and all utility companies that may now or hereafter have utility lines and other utility installations located in, under, over, or within the vicinity of the revocable street privilege area.

5. *Insurance; Bond*. For so long as the revocable street privilege remains in effect, the holder shall maintain a policy of general liability insurance for the revocable street privilege area and any building encroachments, fixtures, equipment, personalty, or other improvements located in the area in an amount that, unless a specific amount is otherwise provided by the code, corresponds to the prevailing rate for similar property used for a similar purpose as determined by the city manager or his or her designee in his or her sole discretion.

   The city shall be named as an additional insured. The holder shall furnish a certificate of insurance to the city evidencing such insurance

prior to commencing use of the revocable street privilege area or the construction of any building encroachments or improvements in the area. The holder shall furnish a new certificate of insurance annually by the anniversary of the date of the issuance of the revocable street privilege upon the request of the city.

In addition, whenever, in the opinion of the city manager, the construction or maintenance of building encroachments, fixtures, equipment, personalty, or other improvements associated with the revocable street privilege presents the possibility of substantial damage or loss to the city, to other property owners, or to members of the public, the city manager shall be authorized to require a reasonable bond to protect against such damage or loss.

6. *Waiver of Claims for Damage*. The city shall have no responsibility or liability for loss or damage related to the use of the revocable street privilege, the construction, maintenance, operation, repair, removal, or abandonment of building encroachments, fixtures, equipment, personalty, or other improvements associated with the revocable street privilege, or the loss, theft, or damage of equipment, fixtures, or personalty that may at any time be placed within the revocable street privilege area.

7. *Indemnification*. The holder shall indemnify, defend, and save the city, its officials, employees, agents, contractors, guests, and invitees harmless from and against any and all claims, liens, demands, obligations, actions, proceedings, causes of action, losses, damages, settlements, costs, charges, professional fees, and other expenses and liabilities of every kind and character (including without limitation attorney fees) arising out of, or related to, the use, maintenance, or abandonment of the revocable street privilege, the construction, maintenance, use, operation, repair, removal, or abandonment of building encroachments, fixtures, equipment, personalty, or other improvements associated with the revocable street privilege, or the loss, theft, or damage of equipment, fixtures, or personalty that may at any time be placed within the revocable street privilege area.

8. *Personal to Holder*. Each revocable street privilege is personal to its holder and cannot be transferred. If a holder sells or transfers any interest in the privileged premises associated with the street privilege, the revocable street privilege shall automatically terminate and all applicable termination provisions in this chapter shall apply.

9. *Use for Advertising Purposes Prohibited*. Unless expressly authorized by the code, no structure placed upon any sidewalk, city street, alley or way pursuant to a revocable street privilege shall be used for advertising purposes.

10. *Revocation or Modification*. Each revocable street privilege shall be subject to revocation or modification by the city manager or his or her designee at any time and for any reason. Except for instances in which a different time is specified by the code, the revocation or modification of a revocable street privilege shall be effective 30 days after notice of the revocation or modification is served on the holder; provided, however, that the revocation or modification of a

revocable street privilege on the basis of public health or safety concerns shall be immediately effective.

11. *Notice.* Notice from the city or any of its authorized officers, employees, agents of the provisions of this section shall be valid if served on the holder or on any local agent of the holder either personally, by mail addressed to the last known place of residence, or by publication in the manner required for ordinances of the City of Cincinnati.

12. *Restoration and Required Changes*. Upon the revocation or modification of a revocable street privilege, the holder shall take immediate steps to remove or modify all building encroachments, improvements, equipment, fixtures, and personal property from or in the revocable street privilege area and shall repair and restore any and all public improvements within the area to their original condition as they existed immediately prior to the issuance of the revocable street privilege, unless otherwise authorized by the city manager or his or her designee. All repairs, modifications, and restorations shall be subject to the supervision and approval of the city manager or his or her designee.

13. *Failure to Restore or Modify*. In case of a holder's failure to remove or modify all building encroachments, fixtures, equipment, personalty, and other improvements from the revocable street privilege area, or to repair and restore any and all public improvements within the area within a reasonable time, the city manager shall be authorized to make the necessary removal, modify, repair, and restoration, and to charge the expense thereof to the holder; provided, however, in the case of underground pipes, equipment, or construction that may be effectively sealed without interfering with the use and maintenance of public streets, the city manager may authorize the sealing of the pipes, equipment, or construction in lieu of their removal and, upon their sealing, all pipes, equipment, or construction shall become the property of the city. In the case of modifications required by a privately owned public utility company, the city manager shall authorize such company to make the change and the holder shall be liable for the reasonable cost thereof.

(b) In addition to the conditions contained herein, the city manager or his or her designee may impose additional conditions that shall automatically apply to revocable street privileges issued pursuant to this chapter or Chapter 723, "Streets and Sidewalks, Use Regulations," to the extent necessary to carry out the intent and purpose of the code section authorizing the revocable street privilege, to ensure the public health, safety, and welfare, to maintain the use and function of public streets, or to protect the fiscal interests of the city.

(Ordained by Ord. No. 0056-2021, § 3, eff. Feb. 18, 2021)

Sec. 718-9. Repealed.

(C.O. 745-6; renumbered to C.M.C. 718-9, eff. Jan. 1, 1972; a. Ord. No. 271-1989, eff. Aug. 5, 1989; a. Ord. No. 363-2009, § 3, eff. Jan. 16, 2010; r. Ord. No. 0056-2021, § 4, eff. Feb. 18, 2021)

Sec. 718-11. Repealed.

(C.O. 745-7; renumbered to C.M.C. 718-11, eff. Jan. 1, 1972; a. Ord. No. 363-2009, § 3, eff. Jan. 16, 2010; r. Ord. No. 0056-2021, § 4, eff. Feb. 18, 2021)

Sec. 718-13. Repealed.
(C.O. 745-9; renumbered to C.M.C. 718-13, eff. Jan. 1, 1972; a. Ord. No. 363-2009, § 3, eff. Jan. 16, 2010; r. Ord. No. 0056-2021, § 4, eff. Feb. 18, 2021)

Sec. 718-15. Repealed.
(C.O. 745-10; renumbered to C.M.C. 718-15, eff. Jan. 1, 1972; a. Ord. No. 363-2009, § 3, eff. Jan. 16, 2010; r. Ord. No. 0056-2021, § 4, eff. Feb. 18, 2021)

Sec. 718-17. Repealed.
(C.O. 745-12; renumbered to C.M.C. 718-17, eff. Jan. 1, 1972; a. Ord. No. 363-2009, § 3, eff. Jan. 16, 2010; r. Ord. No. 0056-2021, § 4, eff. Feb. 18, 2021)

Sec. 718-19. Repealed
(C.O. 745-13; renumbered to C.M.C. 718-19, eff. Jan. 1, 1972; a. Ord. No. 363-2009, § 3, eff. Jan. 16, 2010; Emer. Ord. 292-2010, § 7, eff. June 30, 2010; r. Ord. No. 0056-2021, § 4, eff. Feb. 18, 2021)

Sec. 718-21. Repealed.
(C.O. 745-14; renumbered to C.M.C. 718-21, eff. Jan. 1, 1972; a. Ord. No. 363-2009, § 3, eff. Jan. 16, 2010; r. Ord. No. 0056-2021, § 4, eff. Feb. 18, 2021)

Sec. 718-23. Unlawful Private Use of Streets.

No person, firm or corporation shall establish or maintain a private use of a public street, sidewalk, alley or way, other than an authorized building encroachment, except in accordance with an ordinance authorizing such use, and in accordance with the provisions of this chapter.
(C.O. 745-15; renumbered to C.M.C. 718-23, eff. Jan. 1, 1972; a. Ord. No. 363-2009, § 3, eff. Jan. 16, 2010)
Cross reference—Penalty, § 718-99-A.

Sec. 718-25. Secret Street Uses.

No person, firm or corporation shall knowingly install or cause to be installed, or shall knowingly maintain or operate, or cause to be maintained or operated, in any public street, alley or way, an underground pipe, conduit or other underground street use without authority in accordance with the provisions of this chapter.
(C.O. 745-16; renumbered to C.M.C. 718-25, eff. Jan. 1, 1972)
Cross reference—Penalty, § 718-99-B.

Sec. 718-27. Discovery of Unlawful Uses.

Whenever the existence of an unlawful street use in violation of Sections 718-23 and 718-25, herein, shall be brought to the attention of the city manager, such use shall be ordered to be discontinued within 30 days.

Nothing in this section shall be construed to relieve any person from prosecution or penalty in accordance with the provisions of Sections 718-23 and 718-25, herein.
(C.O. 745-17; renumbered to C.M.C. 718-27, eff. Jan. 1, 1972; a. Ord. No. 363-2009, § 3, eff. Jan. 16, 2010)

Sec. 718-29. Repealed.
(C.O. 745-20; renumbered to C.M.C. 718-29, eff. Jan. 1, 1972; r. Ord. No. 363-2009, § 3, effective Jan. 16, 2010)

Sec. 718-31. Fences.

No person, firm or corporation shall construct or maintain a fence on a city street, alley or way, without having first applied for permission from the city manager or his designee, who shall cause an investigation to be made, and after such investigation, shall either approve or deny such

application. Any application granted shall be subject to all applicable sections of Chapter 718 of the Cincinnati Municipal Code.
(C.M.C. 718-31; ordained by Ord. No. 203-1976, eff. June 12, 1976; a. Ord. No. 363-2009, § 3, eff. Jan. 16, 2010)

Sec. 718-33. Water Meters and Pits.

No person, firm or corporation shall construct or maintain a water meter and pit on a city street, sidewalk, alley or way without having first applied for permission from the city manager or his designee, who shall cause an investigation to be made, and after such investigation, shall either approve or deny such application. Any application granted shall be subject to all applicable sections of Chapter 718 of the Cincinnati Municipal Code.
(Ordained by Ord. No. 558-1982, eff. Jan. 28, 1983; a. Ord. No. 363-2009, § 3, eff. Jan. 16, 2010)

Sec. 718-99. Penalties.

Violations of the provisions of this chapter shall be punishable as set forth in the following sections and other applicable penalty sections of this code.
(C.M.C. 718-99; ordained by Ord. No. 361-1971, eff. Jan. 1, 1972)

Sec. 718-99-A. Violation of Section 718-23.

Whoever violates any provision of Section 718-23 shall be fined not more than $200, or imprisoned not more than 30 days, or both. Each day's unlawful use shall constitute a separate offense.
(C.O. 745-15; renumbered to C.M.C. 718-99-A, eff. Jan. 1, 1972)

Sec. 718-99-B. Violation of Section 718-25.

Whoever violates any provision of Section 718-25 shall be fined not more than $500, or imprisoned not more than 60 days, or both. Each day's unlawful use shall constitute a separate offense.
(C.O. 745-16; renumbered to C.M.C. 718-99-B, eff. Jan. 1, 1972)

Sec. 718-99-C. Violation of Section 718-9.

Whoever violates any provision of Section 718-9 commits a Class B Civil Offense as defined by the Cincinnati Municipal Code § 1501-5(a), and is liable for the civil fine specified in § 1501-99 for a Class B Civil Offense.
(Ordained by Ord. No. 363-2009, § 3, eff. Jan. 16, 2010; Emer. Ord. 292-2010, § 9, eff. June 30, 2010)

Chapter 719

WIRELESS COMMUNICATIONS FACILITIES IN THE RIGHT OF WAY*

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*__Editor's note—__Prior to the reenactment of Ch. 719 by Ord. No. 308-2016, § 1, eff. Sept. 28, 2016, said chapter was repealed in its entirety by Ord. No. 055-2012, § 1, eff. March 29, 2012. The former Ch. 719, §§ 719—719-99-C, pertained to sewers and derived from C.O. 703, 703-1, 703-1a—703-1f, 703-2, 703-3, 703-6, 703-7, 703-10—703-14, 703-16, 703-17, 703-19, 703-20, 703-22, 703-24, 703-26—703-29, 703-31—703-36, 703-38—703-44, 703-50, and 703-50a—703-50c; Ord. No. 413-1959, eff. Jan. 15, 1959; Ord. No. 105-1962, eff. May 4, 1962; Ord. No. 415-1965, eff. Nov. 6, 1965; Ord. No. 90-1969, eff. April 1, 1969; Ord. No. 414-1970, eff. Dec. 23, 1970; Ord. No. 523-1973, eff. Jan. 1, 1974; Ord. No. 447-1974, eff. Oct. 30, 1974; Ord. No. 327-1975 eff. Sept. 1, 1975; Ord. No. 379-1978, eff. Oct. 13, 1978; Ord. No. 282-1979, eff. Sept. 1, 1979; and Ord. No. 222-1982, eff. July 9, 1982. For further information, see the tables of ordinances.

Sec. 719-17. Nonconforming Wireless Communications Facilities.
Sec. 719-19. Severability.
Sec. 719-99. Penalties.

Sec. 719-1. Purpose and Goals.

The purpose of this chapter is to establish general procedures and standards, consistent with all applicable federal and state laws, for the siting, construction, installation, collocation, modification, operation, and removal of wireless communications facilities in the right of way. The goals of this chapter are to:

(a) Provide standards for the siting, construction, installation, collocation, modification, operation, and removal of wireless communications facilities in the city's right of way and for payment of fees and charges to be uniformly applied to all applicants and owners of wireless communications facilities or support structures for such facilities.

(b) Establish basic criteria for applications to site wireless communications facilities in the right of way and authorize the director of the department of transportation and engineering to develop, publish, and from time to time amend applications and other associated materials to provide clear guidance to applicants.

(c) Ensure that wireless communications facilities will conform to all applicable health and safety regulations and will blend into their environment to the greatest extent possible.

(d) Enhance the ability of wireless communications carriers to deploy wireless infrastructure in the city quickly, effectively, and efficiently so that residents, businesses, and visitors benefit from ubiquitous and robust wireless service availability. Promote the rapid deployment of small cell infrastructure and related capital investment in the city by ensuring that the city grants or denies consent to install, operate, modify, or replace wireless communications facilities in a timely manner.

(e) Preserve the character of the city's neighborhoods and historic districts. Protect the integrity of the residential areas and historic assets and ensure that access to and occupancy or use of public ways in such districts is technologically and aesthetically appropriate.

(f) Comply with, and not conflict with or preempt, all applicable state and federal laws, including without limitation Section 101(a) and Section 704 of the Telecommunications Act, Pub. L. 104-104, 101 Stats. 56, 70 (Feb. 8, 1996) (codified as 47 U.S.C. §§ 253(a), 332(c)(7)), as may be amended or superseded, and Section 6409(a) of the Middle Class Tax Relief and Job Creation Act, Pub. L. 112-96, 126 Stat. 156 (Feb. 22, 2012) (codified as 47 U.S.C. § 1455(a)), as may be amended or superseded, and all Federal Communications Commission ("FCC") rules and regulations to interpret and implement applicable federal statutes.

(Ordained by Emer. Ord. No. 308-2016, § 1, eff. Sept. 28, 2016; a. Emer. Ord. No. 335-2021, §§ 1, 2, eff. Aug. 4, 2021)

Sec. 719-2. Applicability.

(a) *Existing wireless communications facilities*. Wireless communications facilities for which a permit has been issued prior to the effective date of this chapter shall not be required to meet the requirements of this chapter, except as set forth in Section 719-17, Nonconforming Wireless Communications Facilities.

(b) *Exclusion for amateur radio facilities*. This chapter shall not govern the installation of any amateur radio facility that is

owned or operated by a federally licensed amateur radio station operator or is used exclusively for receive-only antennas.

(c) *Exclusion for certain over-the-air receiving devices*. This chapter shall not govern the installation of any OTARD antennas covered under FCC regulations codified in 47 C.F.R. §§ 1.4000 et seq., as may be amended or superseded. OTARD antennas include, without limitation, direct-to-home satellite dish antennas less than one meter in diameter, television antennas and wireless cable antennas.

(d) *Exclusion for handsets and user equipment.* This chapter shall not govern the use of personal wireless devices (e.g., cell phones) or other consumer-grade mobile user equipment used in the public right-of-way.

(e) *Wireline backhaul facilities*. The permitting procedures and authorizations set forth in this chapter do not authorize the construction and operation of a wireline backhaul facility.

(f) *Relationship to other chapters*. This chapter shall supersede all conflicting requirements of other titles and chapters of the Cincinnati Municipal Code regarding the locating and permitting of wireless communications facilities in the right of way.
(Ordained by Emer. Ord. No. 308-2016, § 1, eff. Sept. 28, 2016; a. Emer. Ord. No. 335-2021, §§ 1, 2, eff. Aug. 4, 2021)

Sec. 719-3. General Definitions.

For the purposes of this Chapter 719, the following words and phrases used in this Chapter 719 shall have the meanings ascribed to them in this Section 719-3, regardless of whether or not the words and phrases are capitalized. Several defined terms are identical to those found in Ohio Revised Code Section 4939.01, 47 U.S.C. § 1455, or 47 C.F.R. § 1.6100.

When the definitions contained herein conflict with identical terms contained in the Ohio Revised Code, the United States Code, the Code of Federal Regulation, or other applicable state or federal laws, rules, or regulations, the conflict shall be resolved by giving precedence to the federal definition or, in the absence of a federal definition, the state definition.
(Ordained by Emer. Ord. No. 308-2016, § 1, eff. Sept. 28, 2016; a. Emer. Ord. No. 335-2021, §§ 1, 2, eff. Aug. 4, 2021)

Sec. 719-3-A1. Abandoned.

"Abandoned" means any wireless communications facility that is unused for a period of three hundred sixty-five days without the operator otherwise notifying the city and receiving the city' s approval.
(Ordained by Emer. Ord. No. 335-2021, §§ 1, 2, eff. Aug. 4, 2021)

Sec. 719-3-A2. Antenna.

"Antenna" means communications equipment that transmits or receives radio frequency signals in the provision of wireless service.
(Ordained by Emer. Ord. No. 308-2016, § 1, eff. Sept. 28, 2016; renumbered by Emer. Ord. No. 335-2021, §§ 1, 2, eff. Aug. 4, 2021)

Sec. 719-3-A3. Applicant.

"Applicant" means any person, including an operator, who submits an application to the city to site, install, construct, collocate, modify, and/or operate a wireless communications facility in the right of way.
(Ordained by Emer. Ord. No. 308-2016, § 1, eff. Sept. 28, 2016; renumbered by Emer. Ord. No. 335-2021, §§ 1, 2, eff. Aug. 4, 2021)

Sec. 719-3-B. Base Station.

"Base Station" means the same as defined by the FCC in 47 C.F.R. § 1.6100, as may be

amended and interpreted by the FCC and any other authority with competent jurisdiction.
(Ordained by Emer. Ord. No. 308-2016, § 1, eff. Sept. 28, 2016; a. Emer. Ord. No. 335-2021, §§ 1, 2, eff. Aug. 4, 2021)

Sec. 719-3-C. Collocation or Collocate.

"Collocation" or "Collocate" means to install, mount, maintain, modify, operate, or replace wireless facilities on an existing wireless support structure, tower, base station, utility pole, or decorative pole.
(Ordained by Emer. Ord. No. 308-2016, § 1, eff. Sept. 28, 2016; a. Emer. Ord. No. 335-2021, §§ 1, 2, eff. Aug. 4, 2021)

Sec. 719-3-D1. Decorative Pole.

"Decorative Pole" means a pole, arch, or structure other than a street light pole placed in the public way specifically designed and placed for aesthetic purposes and on which no appurtenances or attachments have been placed except for the following attachments:

(a) Electric lighting;

(b) Specially designed informational or directional signage;

(c) Temporary holiday or special event attachments;

(d) Regulatory signage; or

(e) Parking meters or parking meter supports.

(Ordained by Emer. Ord. No. 335-2021, §§ 1, 2, eff. Aug. 4, 2021)

Sec. 719-3-D2. Design Guidelines.

"Design Guidelines" means those detailed design guidelines and examples promulgated by the department of transportation and engineering for the design and installation of structures supporting wireless communications facilities in the right of way, which are effective insofar as they do not conflict with FCC rules and regulations, applicable state law, or the design standards established in section 719-11 of this chapter.
(Ordained by Emer. Ord. No. 308-2016, § 1, eff. Sept. 28, 2016; renumbered by Emer. Ord. No. 335-2021, §§ 1, 2, eff. Aug. 4, 2021)

Sec. 719-3-D3. Design Standards.

"Design Standards" means those standards established in section 719-11 of this chapter, approved by the city planning commission and adopted by city council, for the design, construction, and installation of wireless communications facilities in the right of way, which are supplemented by design guidelines, and which are effective insofar as they do not conflict with state or federal law, including without limitation any applicable FCC rules and regulations.
(Ordained by Emer. Ord. No. 308-2016, § 1, eff. Sept. 28, 2016; renumbered by Emer. Ord. No. 335-2021, §§ 1, 2, eff. Aug. 4, 2021)

Sec. 719-3-E1. Eligible Support Structure.

"Eligible Support Structure" means the same as defined by the FCC in 47 C.F.R. § 1.6100, as may be amended, which defines that term as "[a]ny tower or base station as defined in this section, provided that it is existing at the time the relevant application is filed with the State or local government under this section."
(Ordained by Emer. Ord. No. 308-2016, § 1, eff. Sept. 28, 2016; renumbered by Emer. Ord. No. 335-2021, §§ 1, 2, eff. Aug. 4, 2021)

Sec. 719-3-E2. Eligible Support Structure Request or Eligible Facilities Request.

"Eligible Support Structure Request" or "Eligible Facilities Request" means the same as defined in 47 U.S.C. 1455(a)(2) and by the

FCC in 47 C.F.R. § 1.6100, as may be amended, which defines that term as "[a]ny request for modification of an existing tower or base station that does not substantially change the physical dimensions of such tower or base station, involving: (i) [c]ollocation of new transmission equipment; (ii) [r]emoval of transmission equipment; or (iii) [r]eplacement of transmission equipment."
(Ordained by Emer. Ord. No. 335-2021, §§ 1, 2, eff. Aug. 4, 2021)

Sec. 719-3-E3. Existing.

"Existing" means the same as defined by the FCC in 47 C.F.R. § 1.6100, as may be amended, which provides that "[a] constructed tower or base station is existing for purposes of [the FCC's Section 6409(a) regulations] if it has been reviewed and approved under the applicable zoning or siting process, or under another State or local regulatory review process, provided that a tower that has not been reviewed and approved because it was not in a zoned area when it was built, but was lawfully constructed, is existing for purposes of this definition."
(Ordained by Emer. Ord. No. 335-2021, §§ 1, 2, eff. Aug. 4, 2021)

Sec. 719-3-H. Historic District.

"Historic District" means a building, property, or site, or group of buildings, properties, or sites that are either of the following:

(a) Listed in the national register of historic places or formally determined eligible for listing by the keeper of the national register, the individual who has been delegated the authority by the federal agency to list properties and determine their eligibility for the national register, in accordance with section VI.D.1.a.i-v of the nationwide programmatic agreement codified at 47 C.F.R. part 1, Appendix C; or

(b) A registered historic district as defined in O.R.C. Section 149.311, including existing locally designated historic districts, landmarks, and sites governed by Cincinnati Municipal Code Chapter 1435, "Historic Preservation."

(Ordained by Emer. Ord. No. 335-2021, §§ 1, 2, eff. Aug. 4, 2021)

Sec. 719-3-O1. Operator.

"Operator" means a wireless service provider, cable operator, or a video service provider that operates a wireless communications facility and provides wireless service. For the purpose of this chapter, "operator" includes a wireless service provider, cable operator, or a video service provider that provides information services as defined in the "Telecommunications Act of 1996," 110 Stat. 59, 47 U.S.C. § 153(20), and services that are fixed in nature or use unlicensed spectrum.
(Ordained by Emer. Ord. No. 335-2021, §§ 1, 2, eff. Aug. 4, 2021)

Sec. 719-3-O2. O.R.C.

"O.R.C." means the Ohio Revised Code.
(Ordained by Emer. Ord. No. 335-2021, §§ 1, 2, eff. Aug. 4, 2021)

Sec. 719-3-P1. Potential Support Structure.

"Potential Support Structure" means an existing building or structure, other than a tower as defined in this section, that may be transformed into a base station through the mounting or installation of an antenna or transmission equipment after the city approves it as a support structure and the permittee installs transmission equipment pursuant to such approval; potential support structures include, but are not limited to, buildings, steeples, water towers, utility

poles, light poles, City-owned structures in the right of way, and outdoor advertising signs.
(Ordained by Emer. Ord. No. 308-2016, § 1, eff. Sept. 28, 2016; a. Emer. Ord. No. 335-2021, §§ 1, 2, eff. Aug. 4, 2021)

Sec. 719-3-P2. Person.

"Person" means any natural person, corporation, or partnership and also includes any governmental entity.
(Ordained by Emer. Ord. No. 308-2016, § 1, eff. Sept. 28, 2016; a. Emer. Ord. No. 335-2021, §§ 1, 2, eff. Aug. 4, 2021)

Sec. 719-3-R. Right of Way or Public Way.

"Right of Way" or "Public Way" means real property for or devoted to (1) public transportation purposes; or (2) the placement of the city's municipal utility easements and other traditional uses along a transportation route, whether by dedication, prescription, or otherwise, as well as the spaces above and below. In addition to the foregoing, the definition of right of way includes, without limitation, public highways, streets, avenues, alleys, sidewalks, bridges, aqueducts, and viaducts within the city.
(Ordained by Emer. Ord. No. 308-2016, § 1, eff. Sept. 28, 2016; a. Emer. Ord. No. 335-2021, §§ 1, 2, eff. Aug. 4, 2021)

Sec. 719-3-S1. Site.

"Site" means the same as defined by the FCC in 47 C.F.R. § 1.6100, as may be amended, which provides that "[f]or towers other than towers in the public right-of-way, the current boundaries of the leased or owned property surrounding the tower and any access or utility easements currently related to the site, and, for other eligible support structures, further restricted to that area in proximity to the structure and to other transmission equipment already deployed on the ground."
(Ordained by Emer. Ord. No. 335-2021, §§ 1, 2, eff. Aug. 4, 2021)

Sec. 719-3-S2. Small Cell Facility.

"Small Cell Facility" means transmission equipment or a wireless facility that meets both of the following requirements:

(a) Each antenna is located inside an enclosure of not more than six cubic feet in volume or, in the case of an antenna that has exposed elements, the antenna and all of its exposed elements could fit within an enclosure of not more than six cubic feet in volume; and

(b) All other wireless equipment associated with the facility is cumulatively not more than twenty-eight cubic feet in volume. The calculation of equipment volume shall not include electric meters, concealment elements, telecommunications demarcation boxes, grounding equipment, power transfer switches, cut-off switches, and vertical cable runs for the connection of power and other services.

(c) The term includes a micro wireless facility as defined in O.R.C. Section 4929.01(H).

(Ordained by Emer. Ord. No. 335-2021, §§ 1, 2, eff. Aug. 4, 2021)

Sec. 719-3-S3. Substantial Change.

"Substantial Change" means the same as defined by the FCC in 47 C.F.R. § 1.6100, as may be amended, and as applicable to facilities in the public right-of-way, which defines that term as a collocation or modification that:

(a) Increases the overall height more than 10% or 10 feet (whichever is greater);

(b) Increases the width more than 6 feet from the edge of the wireless tower or base station;

(c) Involves the installation of any new equipment cabinets on the ground when there are no existing ground-mounted equipment cabinets;

(d) Involves the installation of any new ground-mounted equipment cabinets that are ten percent (10%) larger in height or volume than any existing ground-mounted equipment cabinets;

(e) Involves excavation or deployment of equipment outside the area in proximity to the structure and other transmission equipment already deployed on the ground;

(f) Would defeat the existing concealment elements of the support structure as determined by the department; or

(g) Violates a prior condition of approval, provided however that the collocation need not comply with any prior condition of approval related to height, width, equipment cabinets or excavation that is inconsistent with the thresholds for a substantial change.

Note: For clarity, the definition in this chapter includes only the definition of a substantial change as it applies to facilities in the public right-of-way. The thresholds for a substantial change outlined above are disjunctive. The failure to meet any one or more of the applicable thresholds means that a substantial change would occur. The thresholds for height increases are cumulative limits. For sites with horizontally separated deployments, the cumulative limit is measured from the originally permitted support structure without regard to any increases in size due to wireless equipment not included in the original design. For sites with vertically separated deployments, the cumulative limit is measured from the permitted site dimensions as they existed on February 22, 2012, the date that Congress passed Section 6409(a) of the Middle Class Tax Relief and Job Creation Act.

(Ordained by Emer. Ord. No. 308-2016, § 1, eff. Sept. 28, 2016; renumbered by Emer. Ord. No. 335-2021, §§ 1, 2, eff. Aug. 4, 2021)

Sec. 719-3-T1. Tower.

"Tower" means any structure built for the sole or primary purpose of supporting any FCC-licensed or authorized antennas and their associated facilities, that are constructed for wireless communications services including, but not limited to, private, broadcast, and public safety services, as well as unlicensed wireless services and fixed wireless services such as microwave backhaul, and the associated site, as more specifically defined by the FCC in 47 C.F.R. § 1.6100, as may be amended or superseded.

(Ordained by Emer. Ord. No. 308-2016, § 1, eff. Sept. 28, 2016; a. Emer. Ord. No. 335-2021, §§ 1, 2, eff. Aug. 4, 2021)

Sec. 719-3-T2. Transmission Equipment.

"Transmission Equipment" means any equipment that facilitates transmission of any FCC licensed or authorized wireless communications service, including, but not limited to, radio transceivers, and other relevant equipment associated with and necessary to their operation, including coaxial or fiber-optic cable, and regular and backup power supply, as more specifically defined by the FCC in 47 C.F.R. § 1.6100. This definition includes equipment in any technological configuration associated with any FCC authorized wireless transmission, licensed or unlicensed, commercial mobile, private mobile, fixed wireless microwave backhaul, and fixed broadband.

(Ordained by Emer. Ord. No. 308-2016, § 1, eff. Sept. 28, 2016; a. Emer. Ord. No. 335-2021, §§ 1, 2, eff. Aug. 4, 2021)

Sec. 719-3-U. Utility Pole.

"Utility Pole" means a structure that is designed for, or used for the purpose of, carrying lines, cables, or wires for electric or telecommunications service. "Utility pole" excludes street signs and decorative poles.
(Ordained by Emer. Ord. No. 335-2021, §§ 1, 2, eff. Aug. 4, 2021)

Sec. 719-3-W1. Wireless Facility.

(a) "Wireless Facility" means transmission equipment at a fixed location that enables wireless communications between user equipment and a communications network, including all of the following:

1. Equipment associated with wireless communications; and
2. Radio transceivers, antennas, coaxial or fiber-optic cable, regular and backup power supplies, and comparable equipment, regardless of technological configuration.

(b) The term includes small cell facilities and micro wireless facilities as defined in O.R.C. Section 4929.01(H).

(c) The term does not include any of the following:

1. The structure or improvements on, under, or within which the equipment is collocated; or
2. Coaxial or fiber-optic cable that is between wireless support structures or utility poles or that is otherwise not immediately adjacent to or directly associated with a particular antenna.

(Ordained by Emer. Ord. No. 335-2021, §§ 1, 2, eff. Aug. 4, 2021)

Sec. 719-3-W2. Wireless Communications Facility.

"Wireless Communications Facility" means any unstaffed installation for the transmission and/or reception of radio frequency signals for wireless communications services, typically consisting of a tower or base station, transmission equipment, equipment cabinets, and all materials or techniques used to conceal the installation.
(Ordained by Emer. Ord. No. 308-2016, § 1, eff. Sept. 28, 2016; renumbered by Emer. Ord. No. 335-2021, §§ 1, 2, eff. Aug. 4, 2021)

Sec. 719-3-W3. Wireless ROW Permit.

"Wireless ROW Permit" means a wireless facility right-of-way occupancy permit as further defined in Section 719-9(c).
(Ordained by Emer. Ord. No. 335-2021, §§ 1, 2, eff. Aug. 4, 2021)

Sec. 719-3-W4. Wireless Service.

"Wireless Service" means any services using licensed or unlicensed wireless spectrum, whether at a fixed location or mobile, provided to the public using wireless facilities.
(Ordained by Emer. Ord. No. 308-2016, § 1, eff. Sept. 28, 2016; renumbered by Emer. Ord. No. 335-2021, §§ 1, 2, eff. Aug. 4, 2021)

Sec. 719-3-W5. Wireless Service Provider.

"Wireless Service Provider" means a person who provides wireless service as defined in O.R.C. Section 4927.01(A)(20).
(Ordained by Emer. Ord. No. 335-2021, §§ 1, 2, eff. Aug. 4, 2021)

Sec. 719-3-W6. Wireless Support Structure.

"Wireless Support Structure" means a tower, a pole, such as a monopole, either guyed or self-supporting, street light pole, traffic signal pole, a fifteen-foot or taller sign pole, or utility pole that is capable of

supporting small cell facilities. As used this chapter, "wireless support structure" excludes all of the following:

(a) A utility pole or other facility owned or operated by a municipal electric utility;

(b) A utility pole or other facility used to supply traction power to public transit systems, including railways, trams, streetcars, and trolleybuses; and

(c) A decorative pole.

(Ordained by Emer. Ord. No. 335-2021, §§ 1, 2, eff. Aug. 4, 2021)

Sec. 719-3-W7. Wireline Backhaul Facility.

"Wireline Backhaul Facility" is a facility used for the transport of communications service or any other electronic communications by coaxial, fiber-optic cable, or any other wire.

(Ordained by Emer. Ord. No. 335-2021, §§ 1, 2, eff. Aug. 4, 2021)

Sec. 719-3-W8. Work Permit.

"Work Permit" means a permit issued by the city that must be obtained in order to perform any work in, on, above, within, over, below, under, or through any part of the public way, including, but not limited to, the act or process of digging, boring, tunneling, trenching, excavating, obstructing, or installing, as well as the act of opening and cutting into the surface of any paved or improved surface that is part of the public way.

(Ordained by Emer. Ord. No. 335-2021, §§ 1, 2, eff. Aug. 4, 2021)

Sec. 719-4. Repealed.

(Ordained by Emer. Ord. No. 308-2016, § 1, eff. Sept. 28, 2016; r. Emer. Ord. No. 335-2021, §§ 1, 2, eff. Aug. 4, 2021)

Sec. 719-4-E1. Repealed.

(Ordained by Emer. Ord. No. 308-2016, § 1, eff. Sept. 28, 2016; r. Emer. Ord. No. 335-2021, §§ 1, 2, eff. Aug. 4, 2021)

Sec. 719-4-E2. Repealed.

(Ordained by Emer. Ord. No. 308-2016, § 1, eff. Sept. 28, 2016; r. Emer. Ord. No. 335-2021, §§ 1, 2, eff. Aug. 4, 2021)

Sec. 719-4-S. Repealed.

(Ordained by Emer. Ord. No. 308-2016, § 1, eff. Sept. 28, 2016; r. Emer. Ord. No. 335-2021, §§ 1, 2, eff. Aug. 4, 2021)

Sec. 719-5. Applications.

(a) *Requirement*. Anyone making an eligible facilities request or seeking consent to site, install, construct, modify, repair, or collocate a wireless communications facility in the right of way shall first duly file a written application with the city's department of transportation and engineering, in accordance with the requirements in this section and the application requirements set forth in the design guidelines as modified from time to time by the director of the department of transportation and engineering by the authority granted in Section 719-11(c) of this chapter.

(b) *Single facility per application.* A single application shall propose the siting, installation, construction, modification, repair, or collocation of no more than one existing eligible support structure or wireless support structure, installation on a potential support structure, or construction of a new tower or base station. Applications and eligible facilities requests may be consolidated as permitted by O.R.C. Section 4939.0312 but without any reduction in applicable fees.

(c) *Owner information.* Applications shall include the name of the person who owns or will own the wireless communications facility, wireless facility, wireless support

structure, base station, tower, or potential support structure for an eligible facilities request or for which consent is requested. A permit or record of consent issued by the city shall include the name of the person who owns or will own the facility or structure.

(d) *Recovery of additional costs incurred in processing application*. The department of transportation and engineering is authorized to charge the applicant for recovery of additional reasonable costs incurred in its analysis, evaluation, and response to an application for an eligible facilities or request for consent under this chapter if the actual costs of review exceed the application fee. Nothing in the reasonableness limitation on additional costs shall be construed to bar or limit the city's authority to incur costs it deems necessary or appropriate in connection with the application. Additional costs may include unforeseen city staff review costs and the costs of third-party technical experts hired to assist with review application. No city work permits or ROW wireless occupancy permits shall issue until and unless the applicant pays the nonrefundable application fees and such additional costs as are authorized to be recovered under this paragraph.

1. *Authorization to retain independent consultants*. The director of the department of transportation and engineering may, in his or her discretion, and at any time in the review process, select and retain an independent consultant with expertise in telecommunications satisfactory to the department of transportation and engineering in connection with any permit application. In the event that the department of transportation and engineering decides to retain an independent consultant for technical review, it shall send written notice to the applicant including a nonbinding estimate of the cost for such review. The applicant shall have five business days from the date of mailing of notice to elect to withdraw the application without any liability for any costs or expenses in connection with the independent technical review.
2. *Scope*. The department of transportation and engineering may request independent consultant review on any issue that involves specialized or expert knowledge in connection with the permit application. Technical review issues may include, but are not limited to:
   i. Application completeness or accuracy;
   ii. Planned compliance with applicable RF exposure standards;
   iii. Whether and where a significant gap exists or may exist, and whether such a gap relates to service coverage or service capacity;
   iv. The applicability, reliability, and/or sufficiency of analyses or methodologies used by the applicant to reach conclusions about any issue within this scope; and
   v. Any other issue that requires expert or specialized knowledge identified by the department of transportation and engineering.
3. *No permit until payment*. The applicant must pay for the cost of consultant technical review and for the technical consultant's testimony in any hearing as requested by the department of transportation and engineering. No permit shall issue to an applicant where that applicant has not timely paid any fee required

under the Municipal Code or if the applicant owes payment on outstanding invoices for costs recoverable by the City under this Chapter 719.

4. *Application Fees.* The nonrefundable fee charged by the city for an application for consent or an eligible facilities request shall not exceed two hundred and fifty dollars per each small cell facility covered by the application. This limit shall be increased by ten percent, rounded to the nearest five dollars, every five years commencing July 1, 2021. During each five-year period, the adjustment may be applied incrementally or as a single adjustment as determined by the department of transportation and engineering. For Type I applications, the department of transportation and engineering may, in its discretion, allow for multiple locations from a single applicant to be listed under a single application. Additionally, providers shall pay all fees as required for work permits and ROW occupancy permits.

(Ordained by Emer. Ord. No. 308-2016, § 1, eff. Sept. 28, 2016; a. Emer. Ord. No. 335-2021, §§ 1, 2, eff. Aug. 4, 2021)

Sec. 719-7. Categories of Applications; Review Timelines.

In accordance with FCC regulations, the department of transportation and engineering shall classify every application to locate a wireless communications facility in the right of way as one of the following four types:

(a) A Type I application is for a minor modification that:

1. Involves collocation, removal, or replacement of transmission equipment or a wireless facility, including a small cell facility, on an existing wireless support structure, tower, or base station and does not substantially change the physical dimensions of the existing wireless support structure, tower, or base station.

2. *60-day period for review*. The city shall approve a Type I application within sixty days, upon confirming that the requested modification constitutes an eligible facilities request and does not constitute a substantial change under 47 CFR § 1.6100. The period for review may be tolled in accordance with 47 CFR § 1.6100.

(b) A Type II application is for a modification that:

1. Involves collocation, removal, or replacement of transmission equipment or a wireless facility, including a small cell facility, on an existing wireless support structure, tower, or base station and substantially changes the physical dimensions of the existing wireless support structure, tower, or base station or does not qualify for approval pursuant to 47 U.S.C. § 1455(a) for any lawful reason.

2. *90-day period for review*. The city shall review and approve or deny a Type II application within ninety days, in accordance with O.R.C. Section 4939.031.

(c) A Type III application is one that proposes:

1. Siting new transmission equipment or a new wireless facility, including a small cell facility, on an existing wireless support

structure in the right of way that does not already support transmission equipment or a wireless facility.

2. *90-day period for review*. The city shall review and approve or deny a Type III application within ninety days, in accordance with O.R.C. Section 4939.031.

(d) A Type IV application is one that proposes:

1. Siting new transmission equipment or a new wireless facility, including a small cell facility, on a new wireless support structure, tower, base station, utility pole, decorative pole, or potential support structure in the right of way.

2. *120-day period for review*. The city shall review and approve or deny a Type IV application within one hundred twenty days, in accordance with O.R.C. Section 4939.031.

The timelines for review of Type II, Type III, and Type IV applications established in this section may be tolled under certain circumstances, in accordance with O.R.C. Section 4939.036.

When the timelines for review contained herein conflict with the timelines for review mandated by the Ohio Revised Code, the United States Code, the Code of Federal Regulation, or other applicable state or federal laws, rules, or regulations, the conflict shall be resolved by giving precedence to the federal timeline or, in the absence of a federal timeline, the state timeline.
(Ordained by Emer. Ord. No. 308-2016, § 1, eff. Sept. 28, 2016; a. Emer. Ord. No. 335-2021, §§ 1, 2, eff. Aug. 4, 2021)

Sec. 719-9. Application Review and Wireless Facility Right-of-Way Occupancy Permit.

(a) *General standard of review for wireless communications facilities*. All wireless communications facilities in the right of way shall conform to the provisions of this chapter and to the design guidelines as modified from time to time by the director of the department of transportation and engineering. The department of transportation shall review and consider each application according to the application classifications, review processes, and deployment standards described in the design guidelines.

(b) *Notice to residents*. Within 10 days of filing a Type III or Type IV application, the applicant shall provide the department of transportation and engineering with proof of notice to the owners of all real property located within 100 feet of the site of the proposed wireless communications facility or as further provided in the design guidelines. Separate notice including a list of impacted streets shall be sent to the corresponding community council(s) and a copy provided to the department of transportation and engineering. The intent of the notices is to allow persons who live or work nearest the site the opportunity to ask questions and educate themselves and to apprise the department of transportation and engineering of conditions that may not be readily apparent from otherwise available information. The notices shall inform interested persons of the opportunity to file written comments to be submitted to the department of transportation and engineering, which comments should address whether the application conforms to the provisions of this chapter. The applicant shall provide the department with proof that the notices required under this section has been given, including a mailing list for all recipients and a copy of the mailed notices. Notwithstand-

ing the above, the department of transportation and engineering may, at its discretion, require additional public notice if it determines such notice is in the best interests of the public. Notice shall not be required for Type I or Type II applications.

(c) *Written decision.* Within five working days after the department of transportation and engineering renders a decision on an application, it shall send written notice to the applicant. Any denial shall include the reasons for the denial and information regarding the process for an administrative appeal under Section 719-9.

(d) *Approval.* Approval of an application shall include the following permissions:

1. *Permit to construct*. A work permit to construct the approved wireless communications facility, subject to any conditions established by the department of transportation and engineering to carry out the purposes and intent of this chapter and the Cincinnati Municipal Code.
2. *Wireless facility right-of-way occupancy permit*. A wireless right-of-way occupancy permit granting the applicant permission to occupy the right of way at the proposed site and subject to (a) the standard conditions required by Section 719-10 and (b) any additional conditions required by the director of the department of transportation and engineering to carry out the purposes and intent of this chapter and the Cincinnati Municipal Code. The wireless ROW permit shall not convey title, equitable or legal, in the right of way.

(e) *Restrictions on Wireless ROW Permits*. A wireless ROW permit may be transferred upon notification to the city and acceptance by the transferee to allow the transferee to site wireless facilities in the same location on the same supporting structure as the transferor. Such a transfer may be made only to a wireless service provider who possesses a current wireless ROW permit from the city for siting wireless facilities elsewhere in the right of way.

(f) *Denial.* The city reserves the right to deny an application if any one of the following conditions exist:

1. The applicant has not demonstrated that its application conforms to the provisions of this chapter and the Cincinnati Municipal Code, including the design guidelines established pursuant to this chapter;
2. The applicant is not authorized to conduct business in the State of Ohio;
3. For any Type I application, the applicant has failed to show that the project qualifies for approval as an eligible facilities request, pursuant to 47 U.S.C. § 1455(a) and the related FCC regulations at 47 C.F.R. § 1.6100 et seq.;
4. For any Type II, Type III, or Type IV application, the applicant has failed within the prior three years to comply or is presently not in full compliance with the requirements of this chapter with regard to another wireless communications facility that is not the subject of the application in question;
5. The applicant is in default of its obligation to pay to the city fees imposed by this chapter;
6. The design or location does not comply with the relevant standards promulgated by the American Association of State Highway and Transportation Officials (AASHTO) and utilized by the department of transportation of engineering for construction in the right of way;

7. The design or location does not comply with current or proposed Americans with Disabilities Act Accessibility Guidelines (ADAAG) promulgated by the United State Access Board.

(g) *Multiple requests for same or nearby location.* If multiple requests are received by the city to install two or more wireless facilities or wireless support structures that would violate applicable spacing requirements under the design guidelines, or to collocate two or more wireless facilities on the same wireless support structure, the city may resolve conflicting requests through whatever reasonable and nondiscriminatory manner the city deems appropriate.

(h) *Appeal of denial on the merits.* Upon denial of an application for failure to meet the requirements of this chapter, the applicant may appeal the decision to the director of the department of transportation and engineering for reconsideration. The appeal must be in writing and delivered to the director no later than 5:00 p.m. (EST) on the tenth business day after issuance of written notification by the city of denial of the permit. An appeal must provide a detailed explanation, in writing, of the reasons the applicant contends the proposed wireless facility satisfies the requirements of Chapter 719 (including if the application qualifies for a limited exemption for personal wireless service facilities under Section 719-9(h)). The appeal should include all relevant supporting documentation. The director shall review the written appeal together with other evidence in the record and grant the permit if the director determines that, based on substantial evidence in the application record, the permit complies with the requirements of Chapter 719. The director shall issue a written decision within ten business days of the filing of the appeal. Failure by applicant to appeal and request reconsideration under this section shall constitute a failure to exhaust administrative remedies for purposes of any subsequent appeal in a court of law.

(i) *Limited exemption for personal wireless service facilities.* Federal law prohibits a permit denial when it would effectively prohibit the provision of personal wireless services. Due to wide variation among wireless facilities and technical service objectives, and due to changed circumstances over time, a limited exemption for proposals in which strict compliance with this chapter would effectively prohibit personal wireless services serves the public interest. Circumstances in which an effective prohibition may occur are extremely difficult to discern, and specified findings to guide the analysis promotes clarity and the city's legitimate interest in well-planned wireless facilities deployment. Therefore, in the event that any applicant asserts that strict compliance with any provision in this chapter, as applied to a specific proposed wireless communications facility, would effectively prohibit the provision of personal wireless services, the director of the department of transportation and engineering may grant a limited, one-time exemption from strict compliance, subject to the following provisions:

1. *Required findings*. The director of the department of transportation and engineering shall not grant any exemption unless the applicant provides each of the following:

   i. Evidence that the proposed wireless facility qualifies as a "personal wireless services facility" as defined in 47 U.S.C. § 332(c)(7)(C)(ii);

   ii. A clearly defined and reasonable technical service objective and a clearly defined potential site search area; and

iii. A meaningful comparative analysis that includes the factual reasons why (1) any alternative location(s) or design(s) suggested by the city or otherwise identified in the administrative record are not technically feasible and (2) the proposed location and design deviation is the least noncompliant location and design necessary to reasonably achieve the applicant's technical service objective.

2. *Scope of exemption*. The director of the department of transportation and engineering shall limit the exemption to the extent to which the applicant demonstrates such exemption is necessary to reasonably achieve its reasonable technical service objectives. The department of transportation and engineering may adopt conditions of approval specific to a permit issued as a limited exemption pursuant to this section, as reasonably necessary to promote the purposes in this chapter and protect the public health, safety, and welfare.

(Ordained by Emer. Ord. No. 308-2016, § 1, eff. Sept. 28, 2016; a. Emer. Ord. No. 335-2021, §§ 1, 2, eff. Aug. 4, 2021)

Sec. 719-10. Standard Conditions of Permit Approval.

(a) *Standard conditions of approval.* Permission to site wireless communications facilities in the right of way shall be conditioned on compliance with the standard conditions of approval provided in this Section 719-10. The department of transportation and engineering may add or modify conditions of approval as necessary or appropriate to protect and promote the public health, safety, and welfare.

(b) *Wireless ROW Permit duration; term*. For Type II, Type III, and Type IV permits, the wireless ROW permit will automatically expire ten years from the issuance date, except when federal or state law authorizes the city to issue a permit with a shorter term. Any request for a permit renewal shall be reviewed as request for a new permit subject to all applicable procedures and standards in effect at the time the request is received. An operator may remove a wireless communications facility at any time subject to applicable work permit and city requirements.

(c) *Standard conditions of approval for Type I permits*. Any Type I permit approved or deemed granted by the operation of law shall be automatically subject to the following conditions of approval:

1. *Duration for Type I approvals*. The city's grant or grant by operation of law of a Type I eligible facilities request constitutes a federally mandated modification to the underlying permit or approval of the subject wireless support structure, tower, and/or base station. The city's grant or grant by operation of law of a Type I eligible facilities request will not extend the permit term for any underlying permit or other regulatory approval, and its term shall be coterminous with the underlying permit or other regulatory approval for the subject wireless support structure, tower, and/or base station.

2. *Accelerated permit terms due to invalidation*. In the event that any court of competent jurisdiction invalidates any portion of 47 U.S.C. § 1455(a) or any FCC rule that interprets 47 U.S.C. § 1455(a) such that federal law would not mandate approval of any Type I permit, such permit shall automatically expire one

year from the effective date of the judicial order, unless the decision specifically does not authorize accelerated termination of previously approved Type I permits. A permittee shall not be required to remove its improvements approved under the invalidated Type I permit if it submits an application for a Type II, Type III, or Type IV permit for those improvements before the one-year period ends. The director of the department of transportation and engineering, at his or her discretion, may extend beyond one-year the time in which a permittee may apply for a Type II, Type III, or Type IV permit for an invalidated Type I permit.

3. *No waiver of standing*. The city's grant or grant by operation of law of a Type I permit does not waive, and shall not be construed to waive, any standing by the city to challenge 47 U.S.C. § 1455(a), any FCC rules that interpret 47 U.S.C. § 1455(a), or any particular Type I eligible facilities request.

(d) *Standard conditions of approval for all wireless ROW permit.* All applications for all four types of wireless ROW permits shall be subject to the following standard conditions of approval by operation of law:

1. *Compliance with all applicable laws*. Permittee shall at all times maintain compliance with all applicable federal, state, and local laws, regulations, ordinances, or other rules.

2. *Inspections; emergencies*. The city or its designee may inspect a wireless communications facility in the right of way upon reasonable notice to the permittee. The permittee shall cooperate with all inspections. The city reserves the right to support, repair, disable, or remove any elements of the facility in emergencies or when the facility threatens imminent harm to persons or property.

3. *Contact information for responsible parties*. Permittee shall at all times maintain accurate contact information for all parties responsible for the facility, which shall include a phone number, street mailing address, and email address for at least one natural person and emergency contact information. All such contact information for responsible parties shall be provided to the department of transportation and engineering promptly upon request.

4. *Indemnities*. To the fullest extent permitted by law, all permittees, operators, and, if applicable, non-government owners of a wireless communications facility shall defend, indemnify, and hold harmless the city and its agents, officers, officials, and employees from:

   i. Any and all damages, liabilities, injuries, losses, costs, and expenses arising out of any claims, demands, lawsuits, writs of mandamus, or other actions or proceedings brought against the city to challenge, attack, seek to modify, set aside, void, or annul the city's approval of the applicable wireless ROW permit; and

   ii. Any and all damages, liabilities, injuries, losses, costs, and expenses and any claims, demands, lawsuits, or other actions or proceedings of any kind, whether for personal injury, death, or property damage, arising out of or in connection with the activities or performance of

the permittee or its agents, employees, licensees, contractors, subcontractors, or independent contractors.

iii. In the event the city becomes aware of any such actions or claims, the city shall promptly notify the permittee and shall reasonably cooperate in the defense. It is expressly agreed that the city shall have the right to approve, which approval shall not be unreasonably withheld, the legal counsel providing the city's defense, and the permittee (as applicable) shall reimburse city for any costs and expenses directly and necessarily incurred by the city in the course of the defense.

5. *Interference with public safety radio services*. In the event that the city has reason to believe that permittee's radio communications operations are causing interference with the city's radio communications operations, then the permittee shall, at its cost, immediately cooperate with the city to either rule out permittee as the interference source or eliminate the interference. Cooperation with the city may include, but shall not be limited to, temporarily switching the transmission equipment on and off for testing.

6. *Adverse impacts on adjacent properties*. Permittee shall undertake all reasonable efforts to avoid undue adverse impacts to adjacent properties and/or uses that may arise from the construction, operation, maintenance, modification, or removal of the facility.

7. *General maintenance*. The site and the facility, including, but not limited to, all landscaping, fencing, and related transmission equipment, must be maintained in a neat and clean manner and in accordance with all approved plans and conditions of approval.

8. *Good condition required*. Wireless communications facilities shall at all times be kept and maintained in good condition, order, and repair by qualified maintenance and construction personnel, so that the same shall not menace or endanger the life or property of any person. In the event any damages occur to a non-city-owned wireless support structure, tower, or base station, the wireless support structure, tower or base station shall be repaired within 20 days.

9. *Graffiti abatement*. Permittee shall remove any graffiti on the wireless facility at permittee's sole expense in a timely manner.

10. *RF exposure compliance*. All facilities must comply with all standards and regulations of the FCC and any other state or federal government agency with the authority to regulate RF exposure standards.

11. *Relocation for public improvement projects*. Permittee shall remove and relocate the permitted wireless communications facility at permittee's sole expense to accommodate construction of a public improvement project by the city as required under Chapter 722 of the Cincinnati Municipal Code.

12. *Removal if discontinued use.* In the event that the use of a wireless communications facility is discontinued or abandoned, the owner shall provide written notice to the city of its intent to discontinue use or abandon, and the date when the use shall be

discontinued or is abandoned. If a wireless communications facility is not removed within ninety (90) days of discontinued use, or is determined abandoned by the city, the city may remove it at the owner's expense irrespective of the notice requirement under this section.

13. *Taxes and assessments*. To the extent taxes or other assessments are imposed by taxing authorities on the use of city property as a result of an applicant's use or occupation of the right of way, the applicant shall be responsible for payment of such taxes, payable annually unless otherwise required by the taxing authority.

14. *Completion within 180 days*. The collocation of a wireless facility or the construction of a new wireless support structure, tower, or base station for which a permit is granted shall be completed within one hundred eighty days after issuance of the permit. The city and the operator may agree in writing to extend this period if a delay is caused by make-ready work for a city-owned wireless support structure or decorative pole or by the lack of commercial power or backhaul availability at the site, provided that the operator has made a timely request within sixty days after the issuance of the permit for commercial power or backhaul services and the additional time to complete installation does not exceed three hundred sixty days after issuance of the permit. If the colocation or construction is not accomplished with the designated time period without a prior extension having been granted by the city, the permit shall be void.

(Ordained by Emer. Ord. No. 308-2016, § 1, eff. Sept. 28, 2016; a. Emer. Ord. No. 335-2021, §§ 1, 2, eff. Aug. 4, 2021)

Sec. 719-11. Design Standards and Siting Preferences.

(a) *General design principles*. Every Type II, Type III, and Type IV wireless communications facilities must conform to the following design principles:

1. The proposed wireless communications facility, its support structure, equipment, and all associated improvements, shall be designed and sited in a manner that is sympathetic to the particular architectural character of the buildings and compatible with the streetscape in the vicinity of the proposed project site;

2. Design elements of the proposed wireless communications facility, its support structure, equipment, and all associated improvements, shall be sensitively selected to reflect the detailing and materials associated with the buildings and streetscape in the vicinity of the proposed project site;

3. The proposed wireless communications facility, its support structure, equipment, and all associated improvements, shall be designed and sited in a manner that does not adversely impact right-of-way circulation, accessibility, or obstruct existing or planned-future uses of the right-of-way; and

4. When sited in a Historic District, the proposed wireless communications facility shall be designed or concealed to mitigate adverse impacts on the historic environment based upon reasonable, technically feasible, and nondiscriminatory design criteria. No design or concealment criteria so imposed shall have the effect of prohibiting any operator's technology, nor may any such measures be

considered a part of a small cell facility for purposes of the size restrictions in the definition of small cell facility.

5. The proposed wireless communications facility shall comply with all applicable design, construction and location provisions in the design guidelines.

(b) *Design guidelines*. The department of transportation and engineering shall promulgate additional detailed design guidelines for the design and installation of wireless communications facilities in the right of way, which the department shall consider in reviewing an application. The design guidelines will accord with this section but will provide greater detail, description, and examples of acceptable wireless facilities including visual depictions. In addition, the design guidelines shall provide administrative and procedural guidance to applicants such as, for example, a list of minimum application requirements. The provisions in this section shall not limit or prohibit the department's discretion to promulgate and make publicly available other information, materials or requirements in addition to, and separate from, the design guidelines.

1. The design guidelines shall be reviewed and approved by the city planning commission before being finalized. The director of the department of transportation and engineering shall have authority to update or supplement the design guidelines to address relevant changes in law, technology, or administrative processes. Any revisions to the design guidelines that would materially modify the physical design requirements for wireless communications facilities to make them more obtrusive or materially modify the standard and minor review locations for wireless facilities shall be presented to the city planning commission for review and recommendation at a duly noticed hearing prior to adoption by the director. The notice shall be transmitted, at minimum, to all community councils and any person holding a wireless ROW permit under Chapter 719 or having an active permit application for the same. In the event of any conflict between the design guidelines and the standards articulated in this chapter of the Cincinnati Municipal Code, the language of this chapter takes precedence over the language of the design guidelines.

2. For revisions to the design guidelines required to be presented to the city planning commission under Section 719-11(b)(1), the city shall provide notice of the proposed revisions to all community councils and any person who holds a permit under this Chapter 719, and shall provide reasonable time (not less than 14 days) for those persons to review and comment on the proposed modifications.

(c) *Alternate location*. The city may propose an alternate location to the proposed location of a new wireless communications facility that is within one hundred feet of the proposed location or within a distance that is equivalent to the width of the public way in or on which the new wireless communications facility is proposed, whichever is greater, which the operator shall use if it has the right to use the alternate location on reasonable terms and conditions and the alternate location does not impose technical limits or additional costs.

(Ordained by Emer. Ord. No. 308-2016, § 1, eff. Sept. 28, 2016; a. Emer. Ord. No. 335-2021, §§ 2, eff. Aug. 4, 2021)

Sec. 719-13. Recovery of Costs; Use of Revenue.

All costs recovered under this chapter shall be used to reimburse the department of transportation and engineering for its costs incurred in responding to applications and monitoring installation and maintenance of wireless communications facilities in the right of way pursuant to this chapter.
(Ordained by Emer. Ord. No. 308-2016, § 1, eff. Sept. 28, 2016)

Sec. 719-15. Safety Requirements.

Nothing in this chapter precludes the city from applying its generally applicable health, safety, and welfare regulations to an eligible facilities request or when granting consent for a wireless communications facility, a wireless facility, including a small cell facility, a wireless support structure, a tower, or a base station. These standards include, but are not limited to, the following specific requirements:

(a) *Prevention of failures and accidents*. Any person who owns a wireless communications facility sited in the right of way shall at all times employ ordinary and reasonable care and install and maintain in use nothing less than the best available technology for preventing failures and accidents which are likely to cause damage, injury, or nuisance to the public.

(b) *Compliance with fire safety and FCC regulations*. Wireless communications facilities, wires, cables, fixtures, and other equipment shall be installed and maintained in substantial compliance with the requirements of the National Electric Code, all FCC, state, and local regulations, and in such manner that will not interfere with the use of other property.

(c) *Surety bond or equivalent financial tool for cost of removal.* All owners must procure and provide to the city a bond or an equivalent financial mechanism in an amount determined by the department of transportation and engineering, to ensure compliance with all provisions of this section and to cover costs of damage to public property caused by the wireless communications facility. The bond or equivalent financial method must specifically cover the cost of removal of each wireless communications facility which the owner installs in the right of way in case the city has to remove or pay for removal of the wireless facility. Two acceptable alternatives to a bond include a funds set-aside and a letter of credit.

(d) *Relocation or adjustment for safety purpose*. If requested by the city, in order to accomplish construction and maintenance activities directly related to improvements for the health, safety, and welfare of the public, an operator shall relocate or adjust its facilities within the public way at no cost to the city, as long as such request similarly binds all users in or on such public way. Such relocation or adjustment shall be completed in accordance with local law.

(Ordained by Emer. Ord. No. 308-2016, § 1, eff. Sept. 28, 2016; a. Emer. Ord. No. 335-2021, §§ 1, 2, eff. Aug. 4, 2021)

Sec. 719-17. Nonconforming Wireless Communications Facilities.

(a) Any wireless communications facility sited in the right of way that is legally in existence on the date of the adoption of this chapter but that does not comply with the requirements of this chapter shall be permit-

ted to remain in the right of way but shall be considered a nonconforming wireless communications facility.

(b) As of the effective date of the ordinance establishing this chapter, the owner of the nonconforming facility and the facility itself are subject to the standard conditions found in Section 719-10 and the maintenance requirements found in Section 719-15 of this Chapter.

(c) If a nonconforming wireless communications facility is hereafter damaged or destroyed beyond repair, any replacement facility must be designed in accordance with all provisions of this chapter of the Cincinnati Municipal Code and the design guidelines.

(d) The provisions in this section shall not be applied to prohibit or deny any collocation or modification pursuant to a Type I application or eligible facilities request, as required by FCC regulations.
(Ordained by Emer. Ord. No. 308-2016, § 1, eff. Sept. 28, 2016; a. Emer. Ord. No. 335-2021, §§ 1, 2, eff. Aug. 4, 2021)

Sec. 719-19. Severability.

The provisions of any part of this chapter are severable. If any provision or subsection, or the application of any provision or subsection to any person or circumstances, is held invalid, the remaining provisions, subsection, and applications of such ordinance to other persons or circumstances shall not be made invalid as well. It is declared to be the intent of this section that the remaining provisions would have been adopted had such invalid provisions not been included in this chapter when originally adopted by Council.
(Ordained by Emer. Ord. No. 308-2016, § 1, eff. Sept. 28, 2016)

Sec. 719-99. Penalties.

(a) Any person who shall erect, construct, reconstruct, alter, repair, convert, attach, or maintain any wireless communications facility in violation of any of the terms of this chapter, or who, being the owner or agent of the owner of any lot, tract, or parcel of land, shall suffer or permit another to erect, construct, reconstruct, alter, repair, convert, attach, or maintain any such facility, shall be deemed to have violated the provisions hereof and commits a Class D Civil Offense as defined by § 1501-9(a) of the Cincinnati Municipal Code each day during the period such violation continues.

(b) If any wireless communications facility is erected, constructed, reconstructed, altered, repaired, converted, attached, or maintained in violation of this chapter or of any regulations made pursuant hereto, the proper officer of the city, in addition to other remedies, may institute in the name of the city any appropriate action or proceeding, whether by legal process or otherwise, to prevent such unlawful erection, construction, reconstruction, alteration, repair, conversion, maintenance, attachment, or use, to restrain, correct, or abate such violation, to prevent the use of such facility, and/or to prevent any illegal act, conduct, business, or use in or about such facility.

(c) The department of transportation and engineering is authorized to make requests and to issue orders regarding wireless communications facilities in the right of way for the purpose of public safety and compliance with this chapter of the Cincinnati Municipal Code. The department of transportation and engineering is also authorized to conduct visual and external inspections of wireless communications facilities and support structures in the right of way at any time and shall make efforts to coordinate with

the provider responsible for a wireless communications facility for any internal inspection of the relevant equipment.
(Ordained by Emer. Ord. No. 308-2016, § 1, eff. Sept. 28, 2016; a. Emer. Ord. No. 335-2021, §§ 1, 2, eff. Aug. 4, 2021)

Chapter 720

STORMWATER MANAGEMENT CODE*

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Sec. 720. Scope.

The purpose of the stormwater management code contained in this chapter is to provide for effective management and financing of a stormwater system within the city; to provide mechanism for mitigating the damaging effects of uncontrolled and unplanned stormwater runoff; to improve the public health, safety and welfare by providing for the safe and efficient capture and conveyance of stormwater runoff and the correction of stormwater problems; to authorize the establishment and implementation of a master plan for storm drainage, including design, coordination construction, management, operation, maintenance, inspection and enforcement; to establish reasonable storm drainage service charges based on each property's contribution of stormwater runoff to the system and use and benefit of services and facilities; and to encourage and facilitate urban water resources management techniques, including detention of stormwater runoff, minimization of the need to construct storm sewers, and the enhancement of the environment.

In order to accomplish such purpose a storm drainage service charge shall be made on each lot or parcel in the city. Each property's contribution to runoff shall be the primary consideration in setting the service charge. Secondary consideration shall be given to specific or unusual service requirements of some properties, and special and general benefits accruing to or from properties as a result of providing their own stormwater management facilities.

The city's storm drainage service charges shall be fair and reasonable and bear a substantial relationship to the cost of providing service and facilities. Similar properties shall pay similar stormwater service charges. Charges shall reflect the area of each property and its intensity of development, since these factors bear directly on the peak rate of stormwater runoff. Rate studies shall be conducted periodically.

Stormwater costs shall be spread throughout the city, except where activities or facilities are clearly unusual and in excess of the normal level of service city-wide.

Charges for residential properties of two or less dwelling units shall reflect the relatively uniform effect that residential development has on runoff. Large residential lots generally have a lower overall intensity of development than small residential lots because a lesser percentage of large lots is covered with hard surfaced area. The effect of large residential properties on stormwater runoff is lowered by less imperviousness. Multi-family residential properties having three or more dwelling units and properties in land uses other than residential shall pay in proportion to residential properties of two or less dwelling units. Both relative area and intensity of development of other land uses shall be considered in setting rates.

An appeal and service charge adjustment process shall be employed to review stormwater charges when unusual circumstances exist which alter runoff characteristics or when either service or benefit varies from a normal condition or is of greater significance than contribution to runoff.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985)

Sec. 720-1. Definitions.

For the purpose of this chapter, the words and phrases shall be defined as follows, unless the context clearly indicates or requires a different meaning.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985)

Sec. 720-1-A. Abatement.

"Abatement" shall mean any action taken to remedy, correct, or eliminate a condition

within, associated with or impacting a drainage system, pursuant to C.M.C. 720-69 or 720-71.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985)

Sec. 720-1-A1. Approved Plans.

"Approved Plans" shall mean plans approved under C.M.C. 720-29.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985)

Sec. 720-1-A2. Architect or Architect, Registered.

"Architect" or "Architect, Registered" is a person holding a certificate under Section 4703.06 of the Ohio Revised Code.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985)

Sec. 720-1-A3. Area Range Number (ARN).

"Area Range Number" shall mean a number assigned by the utility division for the purpose of calculating storm drainage service charges, based on the total square footage of lots or parcels of real property described below as Class C parcels. Lots or parcels of between 1 and 2,000 square feet shall be assigned area range number (ARN) 1. (ARN) 2 shall be used for those lots or parcels between 2,001 and 4,000 square feet, (ARN) 3 for lots or parcels between 4,001 and 6,000 square feet, and so on.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985)

Sec. 720-1-B. Bridge.

"Bridge" shall mean any structure of ten feet or more, clear span, or ten feet or more in diameter on, above, or below a highway, including structures upon which railroad locomotives or cars may travel.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985; a. Ord. No. 056-2012, § 1, eff. March 29, 2012)

Sec. 720-1-B1. Buildings and Inspections.

"Buildings and Inspections" shall mean the department of buildings and inspections of the City of Cincinnati.
(Ordained by Ord. No. 056-2012, § 2, eff. March 29, 2012; Emer. Ord. No. 238-2015, § 2, eff. July 1, 2015)

Sec. 720-1-C. City.

"City" shall mean the City of Cincinnati, Ohio.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985)

Sec. 720-1-C1. City Manager.

"City Manager" shall mean the city manager of the City of Cincinnati.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985)

Sec. 720-1-C2. COBBC.

"COBBC" is the abbreviation for the "Cincinnati - Ohio Basic Building Code."
(Ordained by Ord. No. 281-1985, eff. July 19, 1985)

Sec. 720-1-C3. Combined Sewer.

"Combined Sewer" shall mean a sewer which serves as a storm sewer and a sanitary sewer.
(Ordained by Ord. No. 281-1985. eff. July 19, 1985)

Sec. 720-1-C4. Council.

"Council" shall mean the council of the City of Cincinnati.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985)

Sec. 720-1-C5. County.

"County" shall mean the county of Hamilton, Ohio.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985)

Sec. 720-1-C6. Culvert.

"Culvert" shall mean any structure that conveys water or forms a passageway through an embankment and is designed to support a super-imposed earth load or other fill material plus live loads.
(Ordained by Ord. No. 056-2012, § 3, eff. March 29, 2012)

Sec. 720-1-D. Director.

"Director" shall mean director of greater Cincinnati water works.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985; a. Ord. No. 452-1994, eff. Jan. 20, 1995; Emer. Ord. No. 156-2016, § 3, eff. June 15, 2016)

Sec. 720-1-D1. Developer.

"Developer" shall mean a person, firm, partnership, corporation, or other entity that excavates, fills, builds structures, or otherwise improves a specific parcel or tract of land.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985)

Sec. 720-1-D2. Drainage Code.

"Drainage Code" shall mean the "stormwater management code" of the City of Cincinnati as contained in Chapter 720 of the Cincinnati Municipal Code.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985)

Sec. 720-1-E. Engineer, Professional.

"Engineer, Professional" is a person holding a certificate of registration under Section 4733.14 or 4733.19 of the Ohio Revised Code.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985)

Sec. 720-1-E1. Equivalent Runoff Unit (ERU).

"Equivalent Runoff Unit" shall mean a value based on the parameters used in the stormwater management utility rate structure which represents a unit of stormwater runoff. This value is used to facilitate comparison of the number of billing units of various properties.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985)

Sec. 720-1-E2. Existing.

"Existing" shall mean present or in effect as of the time of the adoption of this chapter [June 19, 1985].
(Ordained by Ord. No. 281-1985. eff. July 19, 1985)

Sec. 720-1-F. Facilities.

"Facilities" shall mean various drainage works that may include inlets, conduits, manholes, energy dissipation structures, channels, outlets, retention/detention basins, stormwater storage devices, stormwater treatment devices, and other structural components.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985; a. Ord. No. 056-2012, § 4, eff. March 29, 2012)

Sec. 720-1-I. Impervious Surface.

"Impervious Surface" shall mean surfaces on or in a lot or parcel of real property which substantially reduce the rate of infiltration of stormwater into the earth.
(Ordained by Ord. No. 281-1985. eff. July 19.1985)

Sec. 720-1-I1. Intensity of Development Factor (IDF).

"Intensity of Development Factor" shall mean the runoff coefficient or percentage of impervious coverage on or in a lot or parcel

of real property. Ten land uses are identified for purposes of this chapter, with an accompanying intensity of development factor ranging from 0.00 for undeveloped lands to 0.85 for commercial development. The numerical value for each such land use is based upon generally accepted engineering standards, review of and application of said standards to local conditions, and analysis of the City of Cincinnati's 1983 photographic land use interpretation study.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985)

Sec. 720-1-M1. MSD.

"MSD" shall mean the Metropolitan Sewer District of Greater Cincinnati.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985)

Sec. 720-1-N. Notice.

"Notice" shall mean a written or printed communication conveying information or warning.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985)

Sec. 720-1-O. OBBC.

"OBBC" shall mean the "Ohio Basic Building Code."
(Ordained by Ord. No. 281-1985, eff. July 19, 1985)

Sec. 720-1-O1. Order.

"Order" shall mean the whole or any part of the final disposition (whether affirmative, negative, injunctive, or declaratory in form) or any matter issued by the deputy director of stormwater management utility or city manager or person designated by them pursuant to any provisions of this chapter.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985; a. Emer. Ord. No. 359-2024, § 1, eff. Oct. 30, 2024)

Sec. 720-1-P. Pollutant.

"Pollutant" shall mean dredged spoil, solid waste, incinerator residue, filter backwash, sewage, garbage, sewage sludge, munitions, chemical wastes, biological materials, radioactive materials, heat, wrecked or discarded equipment, rock, sand, cellar dirt, and industrial, municipal, and agricultural waste discharged into water.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985; a. Ord. No. 056-2012, § 5, eff. March 29, 2012)

Sec. 720-1-P1. Premises.

"Premises" shall mean the lot and the buildings situated thereon.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985; a. Ord. No. 056-2012, § 6, eff. March 29, 2012)

Sec. 720-1-P2. Private.

"Private" shall mean that property or facilities owned by individuals, corporations, and other organizations including governmental entities, and not accepted by city, state or federal government for use by the general public.
(Ordained by Ord. No. 056-2012, § 7, eff. March 29, 2012)

Sec. 720-1-S. Sediment Control Plan.

"Sediment Control Plan" shall mean a plan required by an ordinance, rule, or regulation for controlling the movement of soils due to storm runoff created by construction activities.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985)

Sec. 720-1-S1. Storm, Stormwater.

"Storm" and "Stormwater" as used in this chapter are interchangeable terms.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985)

Sec. 720-1-S2. Stormwater Management Code.

"Stormwater Management Code" shall mean Chapter 720 of the Cincinnati Municipal Code.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985)

Sec. 720-1-S3. Stormwater System.

"Stormwater System" shall mean all man-made facilities, structures, and natural watercourses used for collecting and conducting stormwater to, through, and from drainage areas to the points of final outlet, including, but not limited to, any and all of the following: inlets, conduits and appurtenant features, canals, creeks, channels, catch basins, ditches, streams, gulches, gullies, flumes, culverts, siphons, retention or detention basins, dams, floodwalls, levees, and pumping stations.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985)

Sec. 720-1-S4. Storm Sewer.

"Storm Sewer" or "Storm Drain" shall mean a sewer which carries stormwaters, surface runoff, street wash waters, and drainage, but which excludes sanitary sewage and industrial wastes, other than unpolluted cooling water.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985)

Sec. 720-1-T. Total Square Footage of Surface Area of Lot or Parcel of Real Property.

"Total Square Footage of Surface Area of Lot or Parcel of Real Property," for the purpose of assigning an area range number (ARN) to a lot or parcel of real property, shall mean the square footage of a lot or parcel measured or estimated by using the outside boundary dimensions in feet to obtain the total enclosed square footage, without regard for topographic features of the enclosed surface. The boundary dimensions in feet of the enclosed surface area may be established by any of the following methods:

(1) On-site or photogrammetric measurements of the apparent outside boundary dimensions of the lot or parcel of real property made by the city or on its behalf; or

(2) Computation of the area using dimensions of lot or parcel of real property and/or existing area measurements which are set forth and contained in the records of the office of the county recorder or auditor.

(Ordained by Ord. No. 281-1985, eff. July 19, 1985)

Sec. 720-1-U. Undeveloped Land.

"Undeveloped Land" shall mean a piece or parcel of land that is without any building, structure or improvement. It does not mean recreation, green or open space created around private or municipal facilities or parcels connected thereto or contiguous with such facilities for such reason. For the purposes of administering this chapter, undeveloped land has an IDF of 0.00.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985)

Sec. 720-1-U1. Utility Division.

The "Utility Division" shall mean the stormwater management utility division of the greater Cincinnati water works as set forth in Article VIII, Section 3 of the Administrative Code.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985; a. Ord. No. 452-1994, eff. Jan. 20, 1995; Emer. Ord. No. 156-2016, § 3, eff. June 15, 2016)

Sec. 720-1-U2. Utility Engineer.

"Utility Engineer" shall mean the director of greater Cincinnati water works or a person designated by the director as the city stormwater management engineer.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985; a. Ord. No. 452-1994, eff. Jan. 20, 1995; Emer. Ord. No. 156-2016, § 3, eff. June 15, 2016)

Sec. 720-3. Organization of Utility Division.

The stormwater management utility division of the department of greater Cincinnati water works of the City of Cincinnati shall have the responsibility for planning, developing, and implementing stormwater management plans; financing, constructing, maintaining, rehabilitating, inspecting, and managing existing and new stormwater facilities; collecting fees and charges for the utility division; implementing and enforcing the provisions of this Code; and other related duties as directed by the city manager.

The utility division shall be administered by the deputy director of stormwater management utility, who shall be the superintendent of the division's facilities.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985; a. Ord. No. 452-1994, eff. Jan. 20, 1995; Emer. Ord. No. 156-2016, § 3, eff. June 15, 2016; a. Emer. Ord. No. 359-2024, § 1, eff. Oct. 30, 2024)

Sec. 720-5. Storm Sewers.

The utility division shall monitor the design, operation, maintenance, inspection, construction and use of all storm sewers, storm drains, and stormwater facilities in the city. The utility division shall be responsible for the design and construction of public stormwater facilities in the city and shall inspect, operate, and maintain them as prescribed in C.M.C. 720-15 and C.M.C. 720-19. Additionally, the utility division may accept responsibility for the design and for construction of private stormwater facilities and shall inspect, operate, and maintain them only when prescribed in C.M.C. 720-13. For the purposes of this chapter, storm sewers begin at the grating or opening where water enters the structure, through the sewer and conduits to the outlet structure where water enters a channel, natural watercourse or combined sewer.

Responsibility for all private or public sanitary and combined sewers shall be dictated by the terms of the April 12, 1968, agreement between the city and MSD and other memoranda of understanding.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985; a. Ord. No. 056-2012, § 8, eff. March 29, 2012)

Sec. 720-7. Erosion, Siltation, Sedimentation, and Improper or Illicit Discharges.

The utility division shall be responsible for controlling erosion, siltation, sedimentation, illicit discharges, and accumulation of debris, litter, yard waste, or other foreign or improper objects that will adversely affect storm sewers, drainage ditches, watercourses, and other drainage facilities. It shall not be concerned with slips and slides of earth; however, it shall be concerned with the pollution of public waters and watercourses carrying sediment from accelerated soil erosion and accelerated storm runoff caused by earth-disturbing activities insofar as they clog, change, or alter the carrying capacity of drainage facilities. It shall be concerned with any activities, other than construction procedures, causing erosion, siltation, sedimentation, illicit discharges, or accumulation of debris, litter, yard waste, or other foreign or improper objects, that might hinder proper drainage.

The utility division shall not be responsible for erosion, siltation, sedimentation, and illicit discharges for projects of other governmental agencies having sediment and illicit discharge control plans. In case of an emergency resulting from failure of such other government agency to fulfill its obligations under such control plan, the deputy director of stormwater management utility may act pursuant to Section 720-71 to correct such condition and charge the cost of such action to the responsible government agency.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985; a. Ord. No. 056-2012, § 9, eff. March 29, 2012; Emer. Ord. No. 152-2017, § 23, eff. July 1, 2017; a. Emer. Ord. No. 359-2024, § 1, eff. Oct. 30, 2024)

Sec. 720-9. Multiple Fund Projects.

Where a public improvement is funded by the city and other agencies or organizations, and storm drainage is not a primary part of that project, the utility division's responsibility for the storm drainage costs shall be in proportion to the city's share of the total cost of the project unless otherwise agreed.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985)

Sec. 720-11. Flood Control Structures.

The administration of the Mill Creek Barrier Dam, Carr Street facility, Lytle Place facility, Fort Washington Way facility, and any other pump stations which are built as a part of the city's flood control system and the Mount Adams flood control system shall be a function of the utility division.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985)

Sec. 720-13. Private Facilities.

The owner shall be responsible for private drainage facilities within the public right-of-way, including, but not limited to, downspout lines, sump lines, foundation drains, yard drains, patio and porch drains.

The owner shall clean and maintain the private facilities as required to ensure proper operation. The utility division may repair private facilities within the right-of-way when the deputy director of stormwater management utility has determined that such repair is needed to abate a risk to the public or public property. In such circumstances, the utility division may bill the owner of the private facility for all repair costs.

The owner shall place no structures or plantings that interfere with the drainage facility or its operation and maintenance.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985; a. Ord. No. 152-1997, eff. June 20, 1997; a. Ord. No. 056-2012, § 10, eff. March 29, 2012; a. Emer. Ord. No. 359-2024, § 1, eff. Oct. 30, 2024)

Sec. 720-15. Public Facilities.

The utility division shall be responsible for the inspection, maintenance, and operation of public drainage facilities on all streets, boulevards, alleys, viaducts, sidewalks, curbing, street crossings, grade separations, and other public ways and easements and highway structures and appurtenances belonging to the city. These facilities may include, but are not limited to, inlets, manholes, pipe sewers, ditches, culverts, canals, streams, levees, tunnels and appurtenances thereof.

Where public facilities are in easements, the owner of the property is responsible for aesthetic maintenance such as, but not limited to, lawn mowing and litter pickup.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985; a. Ord. No. 152-1997, eff. June 20, 1997; a. Ord. No. 056-2012, § 11, eff. March 29, 2012)

Sec. 720-17. Ancillary Improvements.

The deputy director of stormwater management utility may authorize the construction of curbs, pavements, channels, watercourses, conduits, culverts, or other structures necessary to properly operate and maintain new and existing stormwater facilities.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985; a. Emer. Ord. No. 359-2024, § 1, eff. Oct. 30, 2024)

Sec. 720-19. Routine and Remedial Maintenance.

The deputy director of stormwater management utility shall provide for inspection and routine maintenance of public storm facilities. Routine maintenance may include, but is not limited to, cleaning catch basins, intakes, bridge surface drainage systems, manholes, storm conduits, ditches and channels, as well as erosion repair, street sweeping, and other incidentals. The deputy director of stormwater management utility may take reasonable actions to prevent the entry of foreign or improper objects into the stormwater system, including, but not limited to, debris, litter, and yard waste. The deputy director of stormwater management utility shall provide for remedial maintenance of facilities based upon the severity of stormwater problems and potential hazard to the public. Remedial maintenance may include, but is not limited to, repairing, replacing, modifying and/or extending public storm facilities. Remedial maintenance of bridge surface drainage systems shall remain the responsibility of agencies other than the utility division.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985; a. Ord. No. 056-2012, § 12, eff. March 29, 2012; Emer. Ord. No. 152-2017, § 23, eff. July 1, 2017; a. Emer. Ord. No. 359-2024, § 1, eff. Oct. 30, 2024)

Sec. 720-21. Land and Facilities Affected Outside the City.

Where stormwater drains from lands outside the city, facilities within the city shall be designed in accordance with this chapter as if the entire drainage area was within the city.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985)

Sec. 720-23. Rules and Regulations.

In order to accomplish the purpose of this chapter to protect the drainage facilities, improvements, and properties owned by the city; to secure the best results from the construction, operation, and maintenance thereof; and to prevent damage, including, but not limited to, damage from erosion, siltation, sedimentation, and illicit discharges, that adversely affects public rights-of-way, storm sewers, drainage ditches, watercourses, and other drainage facilities, and misuse of any of the drainage facilities, improvements, or properties within the city, the deputy director of stormwater management utility may make and enforce rules and regulations that are approved by the city manager, and are necessary and reasonable:

(1) To prescribe the manner in which storm sewers, ditches, channels, and other stormwater facilities are to be designed, installed, maintained, adjusted, used, altered or otherwise changed.

(2) To prescribe inspection and other fees permitted by this chapter.

(3) To prescribe the manner in which such facilities are operated.

(4) To facilitate the enforcement of this chapter.

(5) To prescribe the collection procedures and timing of service charge bills.

(6) To protect the drainage facilities, improvements, and properties controlled by the division, and to prescribe the manner of their use by any public or private person, firm, or corporation.

(7) To protect the public health, safety, and welfare.

(8) To prohibit illicit discharges to the stormwater system.

(9) To comply with the terms and conditions of applicable federal, state and local permits with regards to public stormwater facilities.

(Ordained by Ord. No. 281-1985, eff. July 19, 1985; a. Ord. No. 152-1997, eff. June 20, 1997; a. Ord. No. 056-2012, § 13, eff. March 29, 2012; a. Emer. Ord. No. 359-2024, § 1, eff. Oct. 30, 2024)

Sec. 720-25. National Flood Insurance Program.

The utility division shall assist the building division in the administration of the National Flood Insurance Program.

The utility division shall assist the building division in the review of detailed site plans submitted with applications for permits for development in areas of special flood hazard. The review shall be based upon the flood insurance study and the floodway boundary and floodway map furnished by the Federal Emergency Management Agency. The utility division shall provide the building division with such information as required. It will assist in appeals, public information, map reviews, flood profile determinations, and other calculations and consultations required in the administration of the program.

(Ordained by Ord. No. 281-1985, eff. July 19, 1985; a. Ord. No. 056-2012, § 14, eff. March 29, 2012)

Sec. 720-27. Master Plan.

The deputy director of stormwater management utility shall establish and maintain a master plan for a stormwater system designed to handle the stormwater runoff. The master plan shall provide or be accompanied by maps or other descriptive material showing, at a minimum, the following:

(1) An inventory of the existing stormwater facilities plus the extent and area of each watershed tributary to the main drainage channels in the city.

(2) The street storm sewers and other storm drains to be built; the basis of their design; the outfall, inlet and outlet locations; the receiving stream or channel and its high water elevation; and the functioning of the systems and facilities during high water conditions.

(3) The parts of the proposed street system where pavements are planned to be depressed sufficiently to convey or temporarily store overflow from storm sewers and runoff over the curb resulting from the heavier rainstorms and the outlets for such overflow.

(4) Existing streams and floodplains to be maintained, enlarged, altered, and eliminated; and new channels to be constructed, their locations, cross-sections and profiles.

(5) Existing culverts and bridges, drainage areas, and adequacy of waterway openings; and new culverts and bridges to be built, waterway openings and the basis of their design.

(6) Existing detention ponds and basins to be maintained, enlarged, and altered; and new ponds or basins to be built with dams, if any.

(7) The slope, type, and size of all storm sewers and other waterways.

(8) For all detention retention basins, a tabulation of storage volumes with corresponding water surface elevations and of the basin outflow rates for those water surface elevations.

(9) For all detention/retention basins, design hydrographs of inflow and outflow for the design year under developed conditions and the calculated frequency peak flows from the site under natural and developed conditions.

(10) An examination of the need for reduction of pollution loads resulting from surface runoff where applicable, now or in the future.

(11) Estimates of cost.

(Ordained by Ord. No. 281-1985, eff. July 19, 1985; Emer. Ord. No. 156-2016, § 3, eff. June 15, 2016; a. Emer. Ord. No. 359-2024, § 1, eff. Oct. 30, 2024)

Sec. 720-29. Permits and Plan Review.

It shall be unlawful for any person or organization to construct, enlarge, alter, repair, relocate, or demolish a storm sewer, natural watercourse, or other drainage facility, without first filing an application and obtaining a proper permit. Permits for minor repairs, as defined in the rules and regulations, shall not be required.

Permits are required and may be granted by the utility division for the following improvement categories:

(1) Connection into the public stormwater system, except unimproved creeks or streams.

(2) Improvements which are or will become public facilities.

(3) Improvements within dedicated but unimproved street rights-of-way.

(4) Improvements which require retention or detention facilities.

Plans for all improvements made within the city that require stormwater facilities or changes or alterations to existing stormwater facilities must be submitted to the deputy director of stormwater management utility for review and approval. Plans and applications may be submitted directly to the utility division or through the building permit process. All improvements must conform to the provisions of this chapter or rules or regulations promulgated hereunder and the master plan. The deputy director of stormwater management utility shall have 30 days after the date of application to review each plan submitted. Plans that are not approved may be resubmitted. Plans that are not approved may be resubmitted after revisions are made. No permit shall be issued until a plan is approved or the need for a permit is waived by the deputy director of stormwater management utility.

Every improvement shall be provided with a stormwater system capable of handling stormwaters flowing onto the improvement site from other areas as well as stormwater from the site itself. The drainage system shall be designed to discharge into a watercourse, drainage channel, or other existing stormwater facility. These designs shall conform to the guidelines listed below and the specifications prescribed in the rules and regulations.

For developed lots and where new structures, additions, or changes are to be made, adequate surface grading shall be extended or runoff shall be collected in inlets and then connected to sewers or drains. This grading, and the drains where necessary, shall be shown on the building permit plan. The plan shall then be reviewed by the deputy director of stormwater management utility.

Where plans are being developed, all areas shall be graded and drained to prevent the standing of stormwater, except lakes, lagoons, or retention reservoirs approved by the utility division. Where necessary, drainage channels or sewers shall be provided to convey the water to an existing watercourse or outlet. The method and means of drainage, including the handling of both paved and unpaved areas, shall be subject to approval by the deputy director of stormwater management utility.

Facilities shall be provided to drain all street intersections, and to care for roof downspouts and drains from yards and driveway aprons. Where foundation drains are installed, the foundation drains must discharge to the surface water drainage system directly or through a sump pump installation.

Except for existing combined sewers, the stormwater drainage system shall not be combined with any part of the sanitary sewer system, nor shall sanitary waste water be discharged thereto.

Connection into a storm sewer shall be performed only by sewer tappers who meet the following requirements:

(1) They are licensed by the city or greater Cincinnati water works; and

(2) They have posted a bond with the city in the amount of $5,000.

(Ordained by Ord. No. 281-1985, eff. July 19, 1985; Emer. Ord. No. 156-2016, § 3, eff. June 15, 2016; a. Emer. Ord. No. 359-2024, § 1, eff. Oct. 30, 2024)

Sec. 720-31. Application for Permit.

An application shall be made by the owner of the property involved, or an authorized agent employed in connection with the proposed work.

The application shall be prepared in writing on printed forms prescribed by the deputy director of stormwater management utility and shall contain the full names and addresses of the owner, applicant, and contractor; the street and house number of the building or structure; a brief description of the proposed work; the estimated cost thereof; a statement on behalf of the owner that the proposed work will be in accordance with this Code and all laws and ordinances applying to the premises; and such other information as may be required by the deputy director of stormwater management utility.

Except for minor repairs as defined in the rules and regulations promulgated hereunder, all applications for permits shall be accompanied by three sets of plans and two sets of specifications. Plans and specifications shall be prepared in accordance with the deputy director of stormwater management utility's requirements as outlined in the rules and regulations. In addition to the plans and specifications, the applicant shall provide any statements, calculations, drawings and other supporting data regarding the manner in which stormwater runoff from the project site on the proposed development area will be controlled.

(Ordained by Ord. No. 281-1985, eff. July 19, 1985; a. Emer. Ord. No. 359-2024, § 1, eff. Oct. 30, 2024)

Sec. 720-33. Permits Issued.

The deputy director of stormwater management utility shall examine the applications as described in the plan review process. The proposed stormwater drainage system must be designed so as to fit into the existing or planned stormwater drainage system as prepared by the deputy director of stormwater management utility. The design, materials, and construction of all parts of the drainage system shall satisfy the requirements of the utility division and, when

involving highways and freeways, the requirements of the department of transportation of the state of Ohio.

If the examination reveals no objections to the proposed plan and it appears that the proposed work will be in compliance with the master plan, codes, laws, and ordinances applicable thereto and the proposed construction or work will be in conformance with this chapter, such application shall be approved and a permit issued, as soon as practicable, for the proposed work. If the examination reveals otherwise, such application shall be rejected and the findings shall be communicated in writing to the applicant.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985; a. Emer. Ord. No. 359-2024, § 1, eff. Oct. 30, 2024)

Sec. 720-35. Permit Limitations.

A permit shall expire when no work is started within 180 days from the date of issuance; provided however, that one renewal, which shall be valid from 180 days commencing upon expiration of the original permit, shall be granted upon written application made prior to the expiration of the original permit and payment of the fee prescribed in Section 720-37.

A permit shall be revoked when work is discontinued for a period of one year or when, in the opinion of the deputy director of stormwater management utility, the completion of the work has been unduly delayed. No revoked permit may be revived until the plans and uncompleted work are made to comply with all the requirements of all laws, codes, regulations, and ordinances then in effect.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985; a. Emer. Ord. No. 359-2024, § 1, eff. Oct. 30, 2024)

Sec. 720-37. Permit and Inspection Fees.

A permit fee and an inspection fee shall be paid as detailed herein for all stormwater facilities to be constructed. The fees shall be determined by the deputy director of stormwater management utility in accordance with the guidelines set herein.

Permit fees for connections into the public stormwater system except unimproved creeks and streams shall be $40.

Inspection fees and plan review fees for other permits required by Section 720-29 as set forth in the rules and regulations, shall be based on an hourly rate reasonably related to the cost to the city. The owner is responsible for all plan review and inspection fees. A deposit shall be required to provide for inspection fees.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985; a. Emer. Ord. No. 359-2024, § 1, eff. Oct. 30, 2024)

Sec. 720-39. Posting of Permit.

The permit shall be posted in a conspicuous location at the project site if possible. If not, the owner or contractor shall retain the permit and have it readily available upon request by the utility division.

The owner or contractor shall preserve the permit until completion of the work. Upon application by the owner or contractor, the deputy director of stormwater management utility shall issue a duplicate permit to replace one destroyed by vandals or one which is accidentally destroyed.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985; a. Emer. Ord. No. 359-2024, § 1, eff. Oct. 30, 2024)

Sec. 720-41. Revocation of Permit.

The deputy director of stormwater management utility may revoke the permit or stop work for any of the following reasons:

(1) Whenever there is a violation of any provision of this chapter, any ordinance of the city, or statute of the state relating to the project;

(2) Whenever the continuance of any work becomes dangerous to life or property;

(3) Whenever there is a violation of any condition on which the issuance of the permit was based;

(4) Whenever any false statement or misrepresentation has been made upon the application, plans, or specifications on which the issuance of the permit or approval was based.

(Ordained by Ord. No. 281-1985, eff. July 19, 1985; a. Emer. Ord. No. 359-2024, § 1, eff. Oct. 30, 2024)

Sec. 720-43. Inspection and Surveillance.

The deputy director of stormwater management utility shall inspect permit premises and enforce all laws relating to construction, alteration, repair, removal, demolition, equipment, use, location, and maintenance of the drainage facilities except as may be otherwise provided for. The deputy director of stormwater management utility shall, when the interests of the city so require, make investigations in connection with matters referred to in the code and render written reports on the same. For the purpose of enforcing compliance with the law, the deputy director of stormwater management utility shall issue such notices or orders as may be necessary.

The deputy director of stormwater management utility shall keep careful and comprehensive records of applications permits, inspections, reports rendered, notices, orders issued, and approvals. All such records shall be open for public inspection.

(Ordained by Ord. No. 281-1985, eff. July 19, 1985; a. Emer. Ord. No. 359-2024, § 1, eff. Oct. 30, 2024)

Sec. 720-44. Prohibition of Illicit Discharges and Connections.

720-44.1. Illicit Discharges: No pollutant or water containing any pollutant, including the backwash water from the cleaning of private residential swimming pool filtration medium and filter elements, other than stormwater shall be discharged, caused or threatened to be discharged to the stormwater system. For the purposes of this section, the following non-stormwater sources are not pollutants:

(1) Water line flushing, landscape irrigation, diverted stream flows, rising ground waters, uncontaminated ground water infiltration [as defined at 40 CFR §35.2005(20)], uncontaminated pumped ground water, discharges from potable water sources, foundation drains, air conditioning condensation, irrigation water, springs, water from crawl space pumps, footing drains, lawn watering, non-commercial car washing, flows from riparian habitats and wetlands, dechlorinated swimming pool discharges, street wash water, and discharges or flows from fire fighting activities.

(2) Water associated with dye testing, provided the dye has been approved by the deputy director of stormwater management utility and prior written notification of the day and time of testing has been provided to the deputy director of stormwater management utility.

(3) Discharges permitted under a valid National Pollutant Discharge Elimination System permit, waiver, or waste discharge order administered by the United States or Ohio Environmental Protection Agency, provided that the

discharger is in compliance with all requirements of the permit or order and written approval has been granted by the deputy director of stormwater management utility for any such discharge.

(4) Discharges from an existing Household Sewage Disposal System, provided the Household Sewage Disposal System is being operated with a permit from the Cincinnati Board of Health.

(5) Discharges of non-backwash water from private residential swimming pools, provided the swimming pool water is dechlorinated by resting the water for at least 48 hours following the addition of chlorine or the chlorine level is below 0.1 milligrams per liter, and provided that the pH of any non-backwash swimming pool water discharged to the stormwater system shall not be less than 6.5 or greater than 8.5 at the time of the discharge.

720-44.2. Notification of Illicit Discharge: A person responsible for an illicit discharge shall notify the utility division immediately of such illicit discharge. This notification shall be followed, within 15 days of the date of occurrence, by a detailed written statement from the person responsible describing the causes of the discharge and the measures being taken to reduce, eliminate and prevent future occurrences of illicit discharges. The detailed written statement must be retained by the person responsible for three years from the date of the illicit discharge if the illicit discharge originated from a commercial or industrial establishment.

720-44.3. Illicit Connections: No pipe, ditch, drain, conveyance, device, outlet or accessory shall be connected directly or indirectly to the stormwater system that will discharge any pollutant or water containing any pollutant other than stormwater into the stormwater system. No illicit connection shall be constructed, used, operated, maintained or otherwise continued in existence.

(Ordained by Ord. No. 056-2012, § 15, eff. March 29, 2012; a. Emer. Ord. No. 359-2024, § 1, eff. Oct. 30, 2024)

Sec. 720-45. Notice of Violations.

When the deputy director of stormwater management utility finds the drainage facility, or the construction thereof, is contrary to the approved plans, or presents an unsafe or dangerous condition in connection with the provisions of this Code or of any law or ordinance relating to the same subject matter, or finds an illicit discharge or illicit connection, the deputy director of stormwater management utility shall give written notice to the owner of the premises. In addition to specifying a reasonable time in which to conform to the plans or the code, the notice shall:

1. State where and in what respect the work does not conform to the approved plans, or state the defective condition and law violated; or
2. State the nature of the illicit discharge and law violated; or
3. State the illicit connection and law violated.

In every instance, a revocation notice of the permit shall be in writing and shall be served upon the owner, agent, or the person having charge of the work. A revocation notice shall also be posted alongside the permit. After the notice is received or posted, it shall be unlawful for any person to proceed with any operation for which such permit was issued. No part of the fees for such permit shall be returned.

Notice, as required by this provision, is to be served on the owner, agent, contractor or

other person responsible for the work or violation related to this chapter, by personal delivery or by certified mail addressed to the last-known place of residence or place of business.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985; a. Ord. No. 056-2012, § 16, eff. March 29, 2012; a. Emer. Ord. No. 359-2024, § 1, eff. Oct. 30, 2024)

Sec. 720-47. Right of Entry for Survey and Examination.

After presenting proper credentials and securing permission, the employees of the utility division or its agents, including contractors and their employees, consultants and their employees, may enter upon lands within the city to make surveys and examinations to accomplish the necessary preliminary findings to establish a master plan and for detailed analysis to prepare final plans and specifications for the proposed improvements.

Where improvements are made that require periodic maintenance or inspection upon the lands by the utility division, the owner of such lands shall grant the city a perpetual easement and right of entry around and access to any stormwater channel or facility, including storm sewers.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985)

Sec. 720-48. Right of Entry for Enforcement.

The employees of the utility division or its agents may enter upon lands at any reasonable time in the performance of their duties in the enforcement of Chapter 720, except that no such employee shall enter a building until the employee has identified himself or herself and secured permission from the owner, occupant or other person in control of the building to enter the building. Permission to enter from the owner, occupant, or other person in control of the building shall not be required if the employee is entering the building in the execution of a search warrant issued by a judge or magistrate authorizing entry and inspection, in accordance with law and utility division policy.

Before entering upon a premises or while on a premises in the performance of enforcement of Chapter 720, an employee of the utility division or its agent shall show his or her department credentials upon request by the owner or occupants of the premises involved or by the contractor performing work on the premises.
(Ordained by Ord. No. 056-2012, § 17, eff. March 29, 2012)

Sec. 720-49. Funding.

Funding for the stormwater utility division activities shall include, but not be limited to:

(1) Storm drainage service charge.

(2) Permit and inspection fees.

(3) Direct charges. This charge will be collected from owners and developers for the cost of designing and constructing stormwater facilities and administrative costs and related expenses where the utility designs and/or constructs or contracts for the construction of such facilities.

(4) Direct assessment. This change will be collected from owners in localized areas that desire stormwater drainage facilities not considered a part of the regional development or where an improvement is desired ahead of the priority status.

(5) Other income obtained from federal, state, local, and private grants, or revolving funds.

(Ordained by Ord. No. 281-1985. eff. July 19, 1985)

Sec. 720-51. Stormwater Fund.

All revenues generated by or on behalf of the utility division, including storm drainage service charges, permit and inspection fees, and direct charges and interest earnings on those revenues, shall be deposited in a stormwater fund and used exclusively for utility division purposes.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985)

Sec. 720-53. Storm Drainage Service Charge.

A storm drainage service charge is imposed on each lot and parcel of land within the city, and the owner thereof, excepting only streets, boulevards, alleys, viaducts, sidewalks, curbing, street crossings, grade separations, and other public ways and easements, and highway structures and appurtenances belonging to the city.

(1) Undeveloped land shall be exempted from stormwater service charges.

(2) Road and freeway rights-of-way shall be exempted from the storm drainage service charge because they function as part of the stormwater collection and conveyance system. Railroads and other rights-of-way will be charged as described herein.

(3) Properties that have existing stormwater detention facilities, or those planning such facilities, may have their storm drainage service charges reduced as determined by the deputy director of stormwater management utility, in accordance with generally accepted engineering standards and practices to more accurately reflect the contribution to runoff from the property and the level of service provided to such property. The detention facilities must be in accord with the hydrologic, hydraulic, and structural design requirements of the rules and regulations. Facilities of a temporary nature will not be allowed a decrease in their charges.

(Ordained by Ord. No. 281-1985, eff. July 19, 1985; a. Emer. Ord. No. 359-2024, § 1, eff. Oct. 30, 2024)

Sec. 720-55. Classification of Property.

There shall be three classifications of property for determination of the storm drainage charge:

(1) Class A: One- and Two-Family Residential Properties Having a Land Area 10,000 Square Feet or Less. Typically, these types of property comprise about 7,500 square feet total, area range number (ARN 4) and an intensity of development factor (IDF) of 0.25, which constitutes an equivalent runoff unit (ERU) of 1.00. A flat rate or value of 1.00 ERU shall be applied to all one- and two-family residential property having a land area 10,000 square feet or less.

(2) Class B: One- and Two-Family Residential Properties Having a Land Area 10,001 Square Feet or Larger. Typically, these types of property comprise about 13,000 square feet total, area range number (ARN 7) and an intensity of development factor (IDF) of 0.20 which constitutes an equivalent runoff unit (ERU) of 1.40. A flat rate or value of 1.40 ERU shall be applied to all one- and two-family residential property having a land area 10,001 square feet or larger.

(3) Class C: Multi-Family (3 Families and More) Residential Property and Nonresidential Property. The gross area, total square footage, of each Class C property will be determined by any one or more means defined in Section 720-1-T. Such property sizes

shall be grouped in 2,000 square foot ranges and assigned an area range number (ARN).

(Ordained by Ord. No. 281-1985, eff. July 19, 1985)

Sec. 720-57. Land Use Intensity of Development Factors.

Ten land uses are identified and recognized for purposes of this chapter, each of which has an assigned intensity of development factor (IDF). The land use of each Class C property shall be assigned based on the records of the county recorder or auditor, the city, or through field examination or photogrammetric analysis.

Land Use	IDF
Commercial	0.85
Industrial	0.75
Multi-family	0.60
Transportation	0.50
Institutional	0.40
Residential Class A; up to 10,000 s.f.	0.25
Residential Class B; 10,001 s.f. or larger	0.20
Agriculture	0.08
Park	0.05
Undeveloped	0.00

(Ordained by Ord. No. 281-1985, eff. July 19, 1985)

Sec. 720-59. Monthly Charge per Equivalent Runoff Unit (ERU).

The monthly charge per equivalent runoff unit (ERU) shall be $5.75 per month through, June 30, 2019. Thereafter, the monthly charge per ERU shall be as follows:

- $5.75 per month from January 1, 2019 through June 30, 2019;
- $6.90 per month from July 1, 2019 through December 31, 2019;
- $8.28 per month starting January 1, 2020 through December 31, 2020;
- $8.78 per month starting January 1, 2021 through December 31, 2021;
- $9.04 per month starting January 1, 2022 and for every month thereafter until the monthly rate is further modified.

(Ordained by Ord. No. 281-1985, eff. July 19, 1985; a. Ord. No. 180-1993, eff. July 1, 1993; a. Ord. No. 022-1999, eff. Jan 1, 1999; a. Ord. No. 391-2006, § 1, eff. Jan. 20, 2007; Emer. Ord. No. 383-2011, § 1, eff. Dec. 14, 2011; Emer. Ord. No. 476-2012, § 1, eff. Jan. 1, 2013; Emer. Ord. No. 068-2018, § 1, eff. April 4, 2018; Emer. Ord. No. 164-2018, § 1, eff. July 1, 2018; a. Emer. Ord. No. 0218-2019, eff. July 1, 2019)

Sec. 720-61. Rates.

The deputy director of stormwater management utility is directed to prepare a list of all lots and parcels within the city and the area thereof, and assign a classification as set forth in Section 720-55 to each. All properties included in Class C shall be assigned an area range number (ARN) and intensity of development factor (IDF). The deputy director of stormwater management utility shall report any applications of the provisions of Sections 720-53 through 720-57, which the deputy director of stormwater management utility considers unjust or inequitable, and the matter shall be resolved in accordance with the provisions of Section 720-65.

The rates for the three classes of property set forth in Section 720-55 shall be as follows:

(1) *Class A:* The monthly storm drainage service charge for Class A lots and parcels as defined in Section 720-55 shall be calculated as follows:

Flat rate of 1.00 ERU times the monthly charge for ERU shall be applied to each Class A property.

This calculation may be phrased as follows:

1.00 × ($) charge per ERU = ($) Monthly Storm Drainage Service Charge, Class A.

(2) *Class B:* The monthly storm drainage service charge for Class B lots and parcels as defined in Section 720-55 shall be calculated as follows:

Flat rate of 1.40 ERU times the monthly charge for ERU shall be applied to each Class B property.

This calculation may be phrased as follows:

1.40 × ($) charge per ERU = ($) Monthly Storm Drainage Service Charge, Class B.

(3) *Class C:* The monthly storm drainage service charge for each lot and parcel within Class C described in Sections 720-55 and 720-57 shall be calculated as follows:

Multiply the area range number (ARN) of each lot or parcel times the intensity of development factor (IDF) of each lot or parcel, which equals the equivalent runoff units (ERU). Multiply this figure times the monthly charge per equivalent runoff unit. This calculation may be phrased as follows:

ARN × IDF = ERU.

ERU × ($) charge per ERU = ($) Monthly Storm Drainage Service Charge, Class C.

(Ordained by Ord. No. 281-1985, eff. July 19, 1985; Emer. Ord. No. 068-2018, § 3, eff. April 4, 2018; a. Emer. Ord. No. 359-2024, § 1, eff. Oct. 30, 2024)

Sec. 720-63. Collection of Storm Drainage Service Charge.

The storm drainage service charge shall be paid by the owner of each lot or parcel that is subject to this charge monthly or quarterly as determined by the director.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985; Ordained by Ord. No. 056-2012, § 18, eff. March 29, 2012)

Sec. 720-65. Adjustment of Charge, Appeal.

Persons who consider the charges applicable to their lot or parcel to be unjust or inequitable may apply to the utility engineer for adjustment thereof, stating in writing the grounds of the complaint. The utility engineer shall cause appropriate investigation thereof and report the findings and recommendations to the city manager or the city manager's designee for review. The city manager or the city manager's designee shall consider the complaint and the report and recommendation of the utility engineer, and determine whether an adjustment of the charges for any such lot or parcel is necessary to provide for the just and equitable application of the storm drainage service charge, and adjust such charge if appropriate.

Notice and substance of the appeal shall be sent to the utility division within 15 days after receipt of the charge. The utility engineer shall have 30 days to investigate the matter. The city manager or the city manager's designee shall timely review and rule upon the appeal.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985)

Sec. 720-67. Delinquent Charges.

All charges not paid within 30 days after receipt of billing or under appeal shall be considered delinquent.

All charges in arrears and delinquent hereunder shall (1) be subject to an interest charge at the statutory rate, (2) be subject to a rebilling charge covering administrative costs in accordance with the regulations established under C.M.C. 720-23 and (3) constitute a lien upon the real property affected from the date charges are incurred. Charges which remain unpaid for a period of 60 days may be reported to council for assessment against the real property. In the alternative, council may direct the city solicitor to file suit and collect unpaid charges
(Ordained by Ord. No. 281-1985, eff. July 19, 1985)

Sec. 720-69. Notice to Correct Drainage.

Whenever the deputy director of stormwater management utility shall find that a tract of land is inadequately drained, or that there is an obstruction to a culvert, covered drain, or other natural or man-made watercourse that interferes with water naturally flowing therein or that such culvert, drain, or watercourse is of insufficient capacity to reasonably accommodate the flow of water, as required by this chapter, the deputy director of stormwater management utility or a person designated by the deputy director of stormwater management utility shall notify the owner or person having possession, charge, or management of such land to remove the obstruction or provide the necessary drainage. Such notice shall be served on such persons by personal delivery, by mail at the last-known place of residence, or by posting on the premises.

The owner must comply with the deputy director of stormwater management utility's orders within the time specified and not to exceed 30 days. Failure to comply with such order shall constitute an unlawful act. Each additional period of 10 days thereafter during which the owner fails to carry out the order of the deputy director of stormwater management utility, or a designee, shall constitute a separate offense.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985; a. Emer. Ord. No. 359-2024, § 1, eff. Oct. 30, 2024)

Sec. 720-71. Emergencies and Abatement.

In case of an emergency, the deputy director of stormwater management utility may direct that action be taken immediately to correct the condition or abate the activity to protect the public health, safety, and welfare. The utility division may perform the required work and charge the owner the abatement costs.

In any case where a condition described in Section 720-69 exists for more than 30 days after service of notice, council may by resolution direct the owner to fill or drain such land, remove any obstruction and, if necessary, enlarge the culverts, drains, or watercourse to meet the requirements of this chapter.

After service of a copy of such resolution or after publication in a paper of general circulation in the city for two consecutive weeks, the owner, or agent or attorney, shall comply with the directions of the resolution within the time therein specified. When the resolution is submitted to the appropriate council committee, the owner shall be afforded notice and an opportunity to be heard prior to passage of the resolution In the event an owner fails or refuses to comply with council's resolution, the utility division may perform the required work and charge the owner the abatement costs. Such costs shall constitute a lien on the real property from the time of the adoption of the resolution which may be enforced by suit in the court of common pleas.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985; a. Emer. Ord. No. 359-2024, § 1, eff. Oct. 30, 2024)

Sec. 720-73. Abatement Costs.

The deputy director of stormwater management utility shall account for all costs associated with an emergency or abatement, including, but not limited to, administration, notification, inspection, serving of papers or documents, legal counsel, force account labor, enforcement, operational services, and outside contracted services. These costs shall be added to the owner's storm drainage service charge.

This section shall not be construed to relieve the owner of any penalties prescribed by other sections of this chapter.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985; a. Emer. Ord. No. 359-2024, § 1, eff. Oct. 30, 2024)

Sec. 720-75. Appeals and Variances.

Except as provided in Section 720-65 of this chapter, any person who has a bona fide controversy with the utility engineer as to the interpretation or application of a provision of this chapter or related laws or ordinances pertaining to stormwater management and subject to the administration of the utility engineer may apply in writing to the utility engineer for a written interpretation or ruling, setting forth in his application the requirements of Section 720-77.

When the utility engineer has rendered a written interpretation or ruling, or has issued a written order to make repairs, maintenance, or alterations, the complainant shall be allowed 30 days from the date of the receipt of the same, within which to file with the utility engineer an appeal to the board of appeals.

The appeal shall be based on one of the following grounds:

(1) The interpretation, ruling, or order is erroneous or constitutes an erroneous application of the particular provisions of the drainage code or other related laws or ordinances pertaining to stormwater management and finance, or is otherwise contrary to law;

(2) A variance is necessary and feasible whereby the board of appeals shall make the following findings:

a. Good and sufficient cause based on an unreasonable burden or hardship has been proven.

b. The granting of the variance would not result in any increase in quantity or velocity of flow, degradation of water quality, or negative impacts upon adjoining or downstream properties, nor upon the stormwater system.

c. The degree of variance is the minimum necessary to afford relief from the unreasonable burden or hardship imposed by the drainage code or standards, specifications, requirements, regulations, and procedures adopted pursuant to this code.

d. The variance may be granted without defeating the public health, safety, and welfare purposes and intent of the drainage code or related laws or ordinances pertaining to stormwater management and finance.

(Ordained by Ord. No. 281-1985, eff. July 19, 1985)

Sec. 720-77. Contents of Petition.

The complainant shall set forth in the petition for appeal, the interpretation, ruling, or order appealed from, and the provisions of the drainage code or related laws or ordinances, and shall state wherein the interpretation, ruling, or order is erroneous. If the appeal is based on a request for

variance, the petition shall point out the provision or provisions from which the variance is sought and how the request satisfies the requirements of Section 720-75(2).
(Ordained by Ord. No. 281-1985, eff. July 19, 1985)

Sec. 720-79. Filing Fee.

No appeal petition shall be accepted for filing unless the complainant, at the time of filing, pays a fee of $50 to partially compensate the city for the direct and indirect expenditures, costs, and extra work occasioned by the filing and prosecution of the appeal. Such filing fee shall be in addition to the payment of the permits and inspection fees and any or other fee which thereafter may occur, and no portion of such filing fee shall be refunded whatever the outcome of the appeal.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985)

Sec. 720-81. Board of Appeals.

A board consisting of the director of greater Cincinnati water works, the division supervisor of the stormwater management utility, and the city solicitor, or representatives appointed by them, shall serve as the board of appeals to hear and determine any appeal filed under Section 720-75.

The board of appeals shall have full authority to affirm, modify, reverse, or set aside the interpretation, ruling, or order appealed from or to grant a variance; and its decision shall be final.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985; a. Ord. No. 152-1997, eff. June 20, 1997; Emer. Ord. No. 156-2016, § 3, eff. June 15, 2016)

Sec. 720-83. Emergency Situations.

Nothing in this section shall be construed to prevent immediate action by the director in emergency situations.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985)

Sec. 720-85. Flooding, Liability.

Floods from stormwater runoff may occasionally occur which exceed the capacity of storm drainage facilities construed, operated, or maintained by funds made available under this chapter. This chapter does not imply that property subject to the fees and charges established herein will always be free from stormwater flooding or flood damage, or that stormwater systems capable of handling all storm events can be cost effectively constructed, operated, or maintained. Nor shall this chapter create a liability on the part of, or cause of action against, the city or any officer or employee thereof for any flood damage that may result from such storms or the runoff thereof. Nor does this chapter purport to reduce the need or the necessity for obtaining flood insurance.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985)

Sec. 720-87. Severability.

If any section, subsection, sentence, clause or portion of this chapter is for any reason held invalid or unconstitutional by any court of competent jurisdiction, such portion shall be deemed a separate, distinct, and independent provisions; and such holding shall not affect the validity of the remaining portions.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985)

Sec. 720-99. Penalties.

Except as provided in Section 720-99-A, any person, being the owner, agent, or having

control of the premises, who violates any of the provisions of this chapter, or fails to conform to any of the provisions thereof, or fails to obey any order of the deputy director of stormwater management utility or his duly authorized agent, shall be guilty of a misdemeanor of the first degree. Each and every day on which such person continues to violate the provisions of this chapter after having once been notified of such violation shall constitute a separate offense.
(Ordained by Ord. No. 81-1985, eff. July 19, 1985; a. Emer. Ord. No. 359-2024, § 1, eff. Oct. 30, 2024)

Sec. 720-99-A. Violation of Section.

(1) Whoever violates Sections 720-29 and 720-31 by failing to file an application for minor repairs shall first be given a warning by the utility and thereafter shall be guilty in accordance with section 720-99-A(2).

(2) Whoever violates Section 720-39 or fails to obey a warning under Section 720-99-A(1) shall be guilty of a minor misdemeanor on a first offense and a misdemeanor of the fourth degree on each subsequent offense. Each day and every day on which such person continues to violate the provisions of this code after having once been notified of such violation shall constitute a separate offense. Any fine hereunder shall be mandatory.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985)

Sec. 720-99-B. Accessories.

Any person, being the owner, agent, or having control of the premises, architect, engineer, contractor, builder, subcontractor, foreman, mechanic, employee, or other person who shall violate or assist in the violation of this chapter, or of any certificate, order, or permit issued hereunder, shall be guilty of a misdemeanor of the fourth degree on each offense.
(Ordained by Ord. No. 281-1985, eff. July 19, 1985)

Chapter 721

STREETS AND SIDEWALKS, ESTABLISHMENT AND MAINTENANCE*

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*__Cross references—__One-way streets, ch. 507; spitting in a public place, § 601-17.

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Sec. 721. General.

The laying out, construction, repair and maintenance of streets and sidewalks shall be subject to the provisions of this chapter.
(C.O. 701; renumbered to C.M.C. 721, eff. Jan. 1, 1972)

Sec. 721-1. Definitions.

For the purpose of this chapter and Chapter 723 the words and phrases defined in the sections hereunder shall have the meanings therein respectively ascribed to them, unless a different meaning is clearly indicated by the context.
(C.O. 701-1; renumbered to C.M.C. 721-1, eff. Jan. 1, 1972)

Sec. 721-1-A. Apron.

"Apron" shall mean that portion of a driveway between the paved sidewalk and the curb or the presumable curb. Should the property not be served by a public sidewalk then "Apron" shall mean the portion of the driveway between property line and the curb or presumable curb.
(C.O. 721-1; ordained by Ord. No. 406-1999, eff. Nov. 12, 1999)

Sec. 721-1-D. Department.

"Department" shall mean the department of transportation and engineering.
(C.O. 701-1a; renumbered to C.M.C. 721-1-D, eff. Jan. 1, 1972; a. Ord. No. 391-2024, § 1, eff. Nov. 20, 2024)

Sec. 721-1-D1. Director.

"Director" shall mean the director of transportation and engineering.
(C.O. 701-1b; renumbered to C.M.C. 721-1-D1, eff. Jan. 1, 1972; a. Ord. No. 391-2024, § 1, eff. Nov. 20, 2024)

Sec. 721-1-D2. Driveway.

"Driveway" shall mean a strip of concrete or asphalt located within the sidewalk space designed to enable vehicular access from a street to private property.
(C.O. 721-1-D2; ordained by Ord. No. 406-199, eff. Nov. 12, 1999)

Sec. 721-1-P. Public Transit.

"Public Transit" or "Transit" means a publicly-owned or publicly-operated mass transit system providing mass transit in the City of Cincinnati, including public transit by bus, paratransit vehicle, streetcar, or passenger rail.
(Ordained by Ord. No. 110-2014, § 8, eff. June 29, 2014)

Sec. 721-1-R. Roadway or Street Pavement.

"Roadway" or "street pavement" shall mean the portion of a street between curbs or the portion devoted to vehicular traffic.
(C.O. 701-1d; renumbered to C.M.C. 721-1-R, eff. Jan. 1, 1972)

Sec. 721-1-S. Sidewalk.

"Sidewalk" and "Sidewalk Space" shall mean the portion of a street lying between the established or presumable curb line and the adjacent property line; the portion set aside for pedestrian use. "Sidewalk" shall include a curb which is integral with the sidewalk. "Sidewalk" and "Sidewalk Space" shall include all city-owned real property abutting public streets acquired for the purpose of providing public pedestrian space. "Sidewalk" shall also mean all elevated public walkway systems and concourses in both public right of way and private easements, and all vertical means of access and egress including, but not limited to, stairways, escalators, and elevators.
(C.O. 701-1e; renumbered to C.M.C. 721-1-S, eff. Jan. 1, 1972; a. Ord. No. 57-1975, eff. Feb. 5, 1975; a. Ord. No. 406-1999, eff. Nov. 12, 1999)

Sec. 721-1-S1. Sidewalk Encroachment.

"Sidewalk encroachment" shall mean a cellar door, basement, coal hole, window well, utility grate, the parts of any of the aforesaid, or any appurtenance of the adjacent property which is in a street but which serves, or was intended to serve, the building or land adjacent to the right of way.
(Ordained by Ord. No 351, eff. Oct 8, 1997)

Sec. 721-1-S2. Street.

"Street" shall mean every public way set apart for travel, by whatever word designated, including the area from property line to property line.
(C.O. 701-1c; renumbered to C.M.C. 721-1-S1, eff. Jan. 1, 1972; renumbered to C.M.C. 721-1-S2, eff. Oct. 8, 1997)

Sec. 721-3. Street Lines.

The city planning commission is empowered to make, from time to time, plans for the location of the proposed lines of a street or streets in any portion of Cincinnati, and to make, from time to time, plats of the areas or districts thus planned, showing the location of such lines. The commission may transmit to council any such plat, together with the commission's estimate of the period or periods within which the land shown on the plat as street location or locations should, in its opinion, be acquired for street purposes.
(C.O. 701-2; renumbered to C.M.C. 721-3, eff. Jan. 1, 1972)

Sec. 721-5. Hearing.

Before passing upon any such plat transmitted by the city planning commission, council shall hold a hearing thereon at a time and place specified by council. Notice of the time and place of such hearing, with a general description of the district, area or streets covered by the plat shall be given not less than 30 days previous to the time fixed therefor by one publication in The City Bulletin.
(C.O. 701-3; renumbered to C.M.C. 721-5, eff. Jan. 1, 1972)

Sec. 721-7. Approval or Modification.

After such hearing, council may adopt or reject such plat or may modify it with the approval of the city planning commission, or in the event of disapproval by the commission may, by a vote of not less than two-thirds of its membership, modify such plat and adopt the modified plat. When a plat is adopted, the adopting ordinance shall fix the time limit period for effectuation, which shall not be in excess of 20 years.
(C.O. 701-4; renumbered to C.M.C. 721-7, eff. Jan. 1, 1972)

Sec. 721-9. Recording.

After adoption of any such plat, the clerk of council shall transmit a certified copy thereof to the county recorder of Hamilton county for record; also a certified copy to the director of city planning. The adoption of any such plat shall not, however, be deemed the opening or establishment of any street, nor the taking of any land for street purposes or for public use.
(C.O. 701-5; renumbered to C.M.C. 721-9, eff. Jan. 1, 1972; Emer. Ord. No. 238-2015, § 3, eff. July 1, 2015)

Sec. 721-11. Limitation on Issuance of Building Permits.

After the adoption of a mapped street line pursuant to Section 721-7 and within the period of time fixed in the adopting ordinance, the director of buildings and inspections shall not, unless specifically authorized by council, issue a permit for:

(a) The rehabilitation, extension or erection of any building or structure or part thereof on land within the

mapped street lines, if the reasonable cost of the rehabilitation, extension or erection is in excess of $3,000 or 5 percent of the tax value of the land and buildings comprising the real estate on which the structure is to be erected, whichever is the greater amount; or

(b) The erection of a structure on land within the mapped street line if the structure consists of an addition to a building which is not situated on land within the mapped street lines; or

(c) The erection of a structure on land not within the mapped street lines if the structure consists of an addition to a building within the mapped street line and the reasonable cost of the addition is in excess of $3,000 or 5 percent of the tax value of the land and building comprising the real estate on which the addition is to be erected, whichever is the greater amount.

Provided further, that during the final year of the period fixed for a mapped street line no building permit shall be issued unless specifically authorized by council, for the repair, rehabilitation, extension, or erection of a structure within the lines of the mapped street line or for an addition to a building within the mapped street lines irrespective of the cost thereof.

The director of buildings and inspections shall refer applications for building permits which come within the purview of the preceding paragraph to the city manager. The city manager shall transmit each application to council, together with a report containing an estimate of the cost of the proposed construction; the present market value of the land and structures comprising the real estate on which the proposed construction is to be done; if the permit is for an addition to a building not located within the mapped street lines, a statement as to whether the erection of such addition might, in the event the city acquires the property, require the city to pay for the entire building, under the provisions of the manifest injury statute; and a recommendation relative to the advisability of immediately purchasing the property.

Within 30 days of the receipt of the application and the report of the city manager, council shall determine whether the immediate acquisition of such property within the mapped street lines is in the best interests of the public. In the event council determines that the immediate acquisition of such property is in the best interests of the public, it shall direct the city manager to take the necessary steps to acquire such property. If council determines that the immediate acquisition of such property is not in the best interests of the public, it shall direct the issuance of a building permit in accordance with applicable law.
(C.O. 701-6; renumbered to C.M.C. 721-11, eff. Jan. 1, 1972)

Sec. 721-13. Acquisition of Property Prior to Payment Therefor.

When council has authorized a street improvement requiring the acquisition and use of unimproved private property and the city has been unable to negotiate the purchase of such property, the city manager shall, if the public convenience and welfare requires the construction of such street improvement at the earliest possible date, submit to council a report identifying the street improvement involved and the unimproved property needed, but not yet acquired, and recommending that the city should proceed with the construction of such street improvement over and across such unimproved property without first paying to the owner or owners thereof compensation therefor.

Upon receipt of the report by council, it shall be referred to the public works committee of council. The public works committee shall fix a date for a hearing before the committee on the question of proceeding with the construction of the street improvement over and across the unimproved property without first paying to the owners thereof compensation therefor, and notice of the hearing shall be given at least 10 days prior to the date of hearing to the owners of such property by certified mail, or by leaving the notice at the owner's last known address. Failure of delivery of such notice shall not affect the validity of the proceedings. At the hearing any owner or owners of unimproved property to be taken prior to the payment of compensation therefor may be heard, either personally or through an authorized representative.

After the hearing the public works committee shall submit its recommendation to council. Thereafter, if upon consideration of the matter council, by motion, determines that the city should proceed with the construction of the street improvement involved over and across such unimproved property without first paying to the owner or owners thereof compensation therefor, then the city manager is authorized to and shall proceed with the construction of the improvement over and across such unimproved property without first paying to the owner or owners thereof compensation therefor.

In all such cases, except those in which there is dispute between the city and private persons with respect to whether the unimproved property is owned by the city or such private persons, the city solicitor shall, prior to the letting of the contract for the construction of the street improvement, make application to the Court of Common Pleas for impaneling a jury, pursuant to Chapter 719 of the Revised Code of Ohio, to inquire into the compensation to be paid by the city for the unimproved property to be so taken. Interest shall be paid by the city on the value of each piece of such property so taken from the date of the taking to the date of the payment for the property.

As used in this section, the following terms shall have the meaning ascribed to them herein:

(a) "Street improvement" shall mean construction, reconstruction, repair, widening, making or improving or any combination thereof, of any public street.

(b) "Unimproved property" shall mean any land upon which no building or part of a building is physically located regardless of whether such land is a part of a lot or parcel of land on which a building or buildings are located.

(Sec. 701-7; ordained by Ord. No. 388-1958, eff. Nov. 5, 1958; a. Ord. No. 65-1964, eff. Feb. 26, 1964; renumbered to C.M.C. 721-13, eff. Jan. 1, 1972)

Sec. 721-15. Removal of Unlawful Construction.

The director of buildings and inspections and other officers of the city may abate or remove or prevent the continuance or occupancy of any unlawfully erected building, structure or part thereof in the manner provided in the case of buildings erected without a building permit. The city solicitor shall be authorized to bring appropriate proceedings to enjoin the erection of any such building, structure or part.

(C.O. 701-9; renumbered to C.M.C. 721-15, eff. Jan. 1, 1972)

Sec. 721-17. Scope of Provisions.

The provisions of Sections 721-3 to 721-15, inclusive, shall apply to platted street widenings and street extensions as well as to new streets.
(C.O. 701-10; renumbered to C.M.C. 721-17, eff. Jan. 1, 1972)

Sec. 721-19. Grades of Streets.

The grades of all streets, landings and other places having or to have curbs shall be established on the top or upper surface of their curbs; and in all cases where the grade is the same on both sides of the street, the ordinance shall so declare; and in all cases where the grade of the curb on one side differs from the grade of the curb on the other side, a grade shall be established for each curb, both to be embodied in the same ordinance.
(C.O. 701-13; renumbered to C.M.C. 721-19, eff. Jan. 1, 1972)

Sec. 721-21. Roadway and Sidewalk Widths.

Where the roadway lines of a street have not been definitely marked by curbing, or have not been otherwise specially established by council, the parts allotted to roadway and sidewalk shall be determined as herein provided. The sidewalk spaces on each side shall be equal to each other. The city manager shall classify streets or parts of streets as major, secondary or minor, in accordance with traffic requirements. Roadway widths of such classes shall be as follows:

(a) *Major Highways.*

Total width, 80 feet or more, - roadway 60 feet.

Total width, less than 80 feet, not less than 75 feet, - roadway 56 feet.

Total width less than 75 feet, not less than 70 feet, - roadway 54 feet.

Total width less than 70 feet, not less than 60 feet, - roadway 40 feet.

Total width less than 60 feet, not less than 50 feet, - roadway 36 feet.

(b) *Secondary Streets.*

Total width not less than 66 feet, - roadway 40 feet.

Total width less than 66 feet, not less than 60 feet, - roadway 36 feet.

Total width less than 60 feet, not less than 50 feet, - roadway 34 feet.

Total width less than 50 feet, not less than 40 feet, - roadway 27 feet.

(c) *Minor Streets.*

Total width not less than 40 feet, - roadway 24 feet.

Total width less than 40 feet, not less than 30 feet, - roadway 20 feet.

Total width less than 30 feet, not less than 25 feet, - roadway 18 feet.

Total width less than 25 feet, not less than 20 feet, - roadway 16 feet.

Total width less than 20 feet, not less than 15 feet, - roadway 10 feet.

Total width less than 15 feet, not less than 10 feet, - roadway 8 feet.

In the case of proposed streets in new subdivisions, the rules and regulations of the city planning commission shall apply.
(C.O. 701-14; renumbered to C.M.C. 721-21, eff. Jan. 1, 1972)

Sec. 721-23. Undedicated Streets, Improvements Forbidden.

No department or division of the city, nor any officer or employee, shall grade, pave, curb, repair, clean or light any street, or lay any water main, sewer or connection for a water main or sewer or other service connection in any street, or authorize such water

main, sewer or connection to be laid therein, or authorize or make any other improvement therein, unless:

(a) Such street is an established street, duly accepted or opened as a public street or way, or having otherwise received the legal status of a public street or way prior to January 1, 1927; or

(b) Such street corresponds in location and extent with a street shown on a recorded plat approved by the city planning commission; or

(c) The location and extent of such street has received the approval of the city planning commission, or, in case of disapproval by the city planning commission, has been approved by a two-thirds vote of council in accordance with the charter.

Notwithstanding the foregoing, the city manager or the city manager's designee may expend funds to repair undedicated streets that are so unsafe, poorly maintained, or otherwise hazardous that they present a serious and substantial threat to city vehicles or the delivery of medical, fire, police, or sanitation services that are necessary in the interests of public health, safety, and general welfare. For purposes of this section, an undedicated street includes ways which are privately owned and set apart for use by motor vehicle traffic.
(C.O. 701-15; renumbered to C.M.C. 721-23, eff. Jan. 1, 1972; a. Ord. No. 391-2024, § 1, eff. Nov. 20, 2024)

Cross reference—Operation of vehicles on undedicated streets, § 511-27.

Sec. 721-25. Sale of Land on Private or Undedicated Streets.

The owner, or any agent of the owner, of any lot of land abutting on a street or way not lawfully accepted or established as a public street or way, who sells or contracts for the sale of such lot, shall, prior to the execution of such sale or contract of sale, furnish the intending purchaser with a signed statement as to whether or not the location of such street or way has been approved by the city planning commission.
(C.O. 701-16; renumbered to C.M.C. 721-25, eff. Jan. 1,1972)

Cross reference—Penalty, § 721-999-A.

Sec. 721-27. Street Openings; Application for Permit.

Permits for making openings in city streets shall be issued only by the director and only for some duly authorized purpose. Applications for street opening permits shall be made on forms provided by the department. The application shall give the size and location of the proposed opening and shall state the kind of paving where the cut is to be made. The permit shall be issued only after ample security has been given the city to insure the proper restoration and subsequent maintenance of the street pavement disturbed. Such security shall be furnished in one of three ways to the satisfaction of the city as follows:

(a) A cash deposit may be made with each application sufficient to cover the cost of restoration; or

(b) A general deposit may be made, to be replenished from time to time and to constitute a running account against which permits may be issued; provided that no permit shall be issued when the net unincumbered balance in the account becomes less than the estimated cost of the requisite restoration; or

(c) A bond to the satisfaction of the city.

Nothing in this section relieves owners of abutting property of their duty and liability under Section 721-147.

In the case of city contracts involving the cutting of street pavements, permits may be issued without cash deposit, but in such cases sufficient money to pay for the necessary street restoration shall be withheld from the contract moneys owing to the contractor until such street restoration is completed by the contractor to the satisfaction of the director of public works, or until such contractor has paid to the city the requisite amount for the street restoration.
(C.O. 701-19; renumbered to C.M.C. 721-27, eff. Jan. 1, 1972); a. 46-1991, eff. Mar. 8, 1991)

Sec. 721-29. Street Openings by City, County or State Departments.

When any city department or division shall require the installation of underground conduits or structures, it may obtain the necessary street opening permits without making any cash deposit. The department or division shall be charged, however, for the necessary street restoration work, and the amount of the charge shall be paid out of the appropriations for the respective department or division. In special cases, the city manager may direct the performance of the street restoration work to be done by the department of public works without charging the department or division for whose purposes the work is done.

No cash deposit shall be required from the county of Hamilton or the state of Ohio for street opening permits. Where, in any such case, the work done inures greatly to the benefit of the City of Cincinnati, the street restoration may, with the approval of the city manager, be made at the cost of the city.
(C.O. 701-20; renumbered to C.M.C. 721-29, eff. Jan. 1, 1972)

Sec. 721-31. Openings by Public Utility Corporations.

Where a public utility corporation is authorized by a special agreement with the city to do its own restoration work in connection with the opening of streets for maintenance and construction work, the required deposit shall be sufficient to cover inspection costs. If, however, in any case the restoration is to be made by the city, the deposit shall be increased accordingly. Any such public utility corporation shall be permitted to maintain with the city treasurer a general deposit account to be replenished from time to time, against which permits may be issued. No permit shall be issued when the net unincumbered balance is less than the amount necessary to cover the estimated city costs for inspection and restoration.
(C.O. 701-21; renumbered to C.M.C. 721-31, eff. Jan. 1, 1972)

Sec. 721-33. Restoration of Pavement.

Where openings have been or are to be made in a street, the director shall provide for the restoration of the street pavement in one of the following ways:

(a) The entire work of restoration, including both paving surface and paving base, may be performed directly by the department after the permittee has completed the back fill.

(b) The paving surface may be installed by the department after the permittee has made the back fill and installed the pavement base.

(c) The work may be done either completely as in (a), or as to paving surface only, as in (b), by a city contractor thereunto duly authorized by a contract with the city.

(d) The entire work of restoration may be done by the permittee.

In all cases, the entire work shall be carried out under the direction and to the

satisfaction of the director, and in accordance with the rules, regulations and specifications approved by the city manager.
(C.O. 701-22; renumbered to C.M.C. 721-33, eff. Jan. 1, 1972)

Sec. 721-35. Rules and Schedules.

A complete set of rules and regulations shall be prepared by the director and approved by the city manager, describing in detail the procedure to be observed in obtaining permits and precautions to be taken in acting under the permits when issued. Specifications shall also be similarly prepared describing the manner in which restoration work shall be done. The rules and regulations shall contain a schedule of prices to be charged for various size openings in various kinds of paving, due regard being had to the kind of service to be rendered by the department in connection with the restoration work. The city manager shall have the right to change the rules, regulations and specifications and to revise the schedule or prices whenever the interests of the city require such change or revision.

The city engineer may issue permits for nighttime construction between the hours of 11:00 p.m. and 7:00 a.m. the following day, where the applicant demonstrates it is in the interest of public safety that operations be conducted during those hours.
(C.O. 701-23; renumbered to C.M.C. 721-34, eff. Jan. 1, 1972; a. Ord. No. 271-1987, eff. July 31, 1987)

Sec. 721-37. Street Restoration Fund.

All moneys received as deposits or payments under the provisions of Sections 721-27 to 721-45, inclusive, shall be paid to the city treasurer and credited to a fund to be known as the "street restoration fund." The department shall have the right to draw vouchers from time to time against the fund for the labor, material, services, use of tools and equipment, payment of contractors, and supervision furnished by the department in restoring the pavements disturbed and supervising such restoration. The department shall also, on demand, after restoration has been completed, prepare vouchers in favor of depositors for balances due such depositors after the charges of the department for its services in connection with the restoration work have been paid.
(C.O. 701-24; renumbered to C.M.C. 721-37, eff. Jan. 1, 1972)

Sec. 721-39. Notices to Property Owners.

Prior to the paving, repair or resurfacing of any street, the director shall, under the direction of the city manager, cause notices to be sent to all abutting property owners requiring them to install any needed water or sewer service branches. Notice shall also be sent to all public utility corporations and city departments to install all necessary mains, conduits, service branches and structures. Property owners, public utility corporations and city departments shall be allowed the necessary and legal time required for the aforesaid installations before the new pavement is laid. Thereafter, during the period of three years from the final completion and acceptance of the new pavement, no permit for making an opening in such pavement shall be issued by the department except by express authority in each case from the city manager, and the city manager shall exercise this special authority only for reasons of public necessity or of undue private hardship where the necessity for the opening rises from causes over which the applicant has no control. Lack of foresight in not installing service connections prior to the laying of a new pavement shall not be considered an adequate reason for abrogation of the three year restriction. In all cases where a street opening permit shall be issued during the restriction period, an

additional suitable charge in excess of the schedule rate shall be imposed on the basis of 2 percent per month of the unelapsed period, in no event less than 10 percent.
(C.O. 701-25; renumbered to C.M.C. 721-39, eff. Jan. 1, 1972)

Sec. 721-41. Street Opening Without Permit Unlawful.

No person, firm or corporation shall make an opening in any street, or disturb in any way, the surface or subsurface of any street or sidewalk, without having first received a permit therefor from the department. Where, because of a leak in a water or gas main, a break in an electric duct, a broken rail, or other serious accident, the public safety requires immediate action, the work may be proceeded without previous permit, but the permit shall be obtained as soon after the accident as possible.
(C.O. 701-26; renumbered to C.M.C. 721-41, eff. Jan. 1, 1972)

Cross reference—Penalty, § 721-999-B.

Sec. 721-43. Excavations Near Street.

In all cases in which the construction, repair or alteration of any building or other structure will require an excavation within three feet of the curb line of any street, permits must be obtained from the department before the excavating is commenced. Such permits shall be similar to those issued for street openings, and applications therefor must be accompanied by deposits based on the estimated cost of restoring the street in case of settlement, using the schedule of prices fixed for street openings.

In cases where the edge of the excavation is more than three feet from the curb line, the city manager shall, at the first indication of any settlement in the street surface or curbing, require the builder to obtain a street opening permit from the department and shall have the right to suspend or cancel the building permit until the street opening permit has been issued.
(C.O. 701-27; renumbered to C.M.C. 721-43, eff. Jan. 1, 1972)

Sec. 721-45. Settling of Streets Due to Building Operation.

Whenever it shall appear that a settlement has taken place in the paving of any street because of building operations, and that no permit deposit or other provision has been made for the street restoration, the expense of the necessary restoration shall be charged to the property owner as though a permit had been issued, and where necessary, suit shall be brought by the city solicitor to collect the amount of the same, if not paid.
(C.O. 701-28; renumbered to C.M.C. 721-45, eff. Jan. 1, 1972)

Sec. 721-47. Undedicated Streets, Construction Under Public Supervision.

Whenever an owner of private property (i) desires to construct or improve an undedicated street by paving, setting curbs and gutters, laying sidewalks, sewering, or otherwise making street improvements; or (ii) desires to construct a sewer through private property to connect with a public sewer, then the owner shall do so under public inspection and supervision by constructing or improving the undedicated street to public street standards, or sewer to public sewer standards. The owner shall (1) deposit the estimated cost and fees of inspection and supervision, (2) submit the plans and specifications under which the work is to be executed, and (3) shall secure a permit from the city manager, or a permit from the Director of the Metropolitan Sewer District of Greater Cincinnati if the improvement involves a sewer connection, which permits

shall set forth the conditions and modifications of such plans and specifications under which such inspection and supervision will be given. The owner shall maintain an undedicated street to public street standards. The city manager may inspect any undedicated streets and if the city manager finds such streets in disrepair or are a hazard to city vehicles and services, the city manager may issue orders for the owner to repair such streets. If the owner fails to repair the undedicated street, the city manager may, in accordance with Section 721-23, repair any undedicated street and invoice and assess the owner for the repairs.

For purposes of this section, an undedicated street includes ways which are privately owned and set apart for use by motor vehicle traffic.
(C.O. 701-31; renumbered to C.M.C. 721-47, eff. Jan. 1, 1972; a. Ord. No. 391-2024, § 1, eff. Nov. 20, 2024)

Cross reference—Operation of vehicles on undedicated streets, § 511-27.

Sec. 721-49. Fund for Inspection of Streets and Sewers Privately Constructed.

All moneys received as deposit or payment under the provisions of Section 721-47 shall be paid to the city treasurer and credited to the general fund. The department shall have the right to draw vouchers from time to time against the fund for the cost of inspection and supervision furnished in accordance with said Section 721-47. The department shall also, on demand, prepare vouchers in favor of the depositors for balances due them after the charges of the department for its services have been paid.
(C.O. 701-32; renumbered to C.M.C. 721-49, eff. Jan. 1, 1972; a. Ord. No. 391-2024, § 1, eff. Nov. 20, 2024)

Sec. 721-51. Undedicated Streets; Review of Engineering Details for Supervised Construction.

The owner of an undedicated street who desires to improve the street in accordance with the provisions of Section 721-47, shall submit to the city engineer the plans for the proposed improvement, as prepared by a registered engineer duly licensed by the state of Ohio, and the city engineer shall review the engineering details of the plans, in accordance with the applicable city standards for public streets.
(C.O. 701-33; renumbered to C.M.C. 721-51, eff. Jan. 1, 1972; a. Ord. No. 391-2024, § 1, eff. Nov. 20, 2024)

Sec. 721-53. Rules and Schedules of Prices.

The director shall, with the approval of the city manager, prepare a complete set of rules, regulations and procedures applicable to the designing and construction of undedicated streets by private persons under city supervision in accordance with Section 721-47. Such rules and regulations shall contain a schedule of prices chargeable for the services of the department, such prices to be based on the nature of the services rendered and the time required for performance. The services of the department may include office and field work. With the approval of the city manager, the rules, regulations, and procedure may be changed from time to time, and the schedule of prices revised, whenever such changes and revision are reasonably required in the interests of the city.
(C.O. 701-33a; renumbered to C.M.C. 721-53, eff. Jan. 1, 1972; a. Ord. No. 391-2024, § 1, eff. Nov. 20, 2024)

Sec. 721-55. Fund for Reviewing Engineering Details for Construction of Undedicated Streets.

All moneys received as deposit or payment under the provisions of Sections 721-51 and 721-53 shall be paid to the city treasurer and credited to the general fund. The department shall have the right to draw vouchers from time to time against the fund for the cost of reviewing engineering details in accordance with Sections 721-51 and 721-53.

The department shall also, on demand, prepare vouchers in favor of depositors for balances due them after the charges of the department for its services have been paid.
(C.O. 701-33b; renumbered to C.M.C. 721-55, eff. Jan. 1, 1972; a. Ord. No. 391-2024, § 1, eff. Nov. 20, 2024)

Sec. 721-57. Street Dirt, Use.

The city manager may use street dirt and ashes in filling to grade streets which have been dedicated to the city; and may fill in with such street dirt and ashes on private property, or other property than regularly dedicated streets, with the consent of the owner or owners of such property; provided that reasonable supervision shall be maintained by the city manager over such filling to prevent its becoming or creating a nuisance. Any other filling in with such materials is prohibited.
(C.O. 701-34; renumbered to C.M.C. 721-57, eff. Jan. 1, 1972)

Sec. 721-59. Taking Material from Streets.

No person shall dig up or cause to be dug up, or in any manner destroy or injure any street, water course or creek, or take or carry away from any such street, water course or creek, any stone, rock, dirt or other material therein, or sell any such stone, rock, dirt or other material unlawfully taken therefrom.
(C.O. 701-35; renumbered to C.M.C. 721-59, eff. Jan. 1, 1972)

Cross reference—Penalty, § 721-999-C.

Sec. 721-61. Warning Lights; Barriers.

(a) Every person who shall dig, or cause to be dug, in or adjoining any street any excavation whatsoever, and every person who shall occupy or cause to be occupied any portion of any street with building material or any obstruction shall comply with the applicable lighting and barricade provisions of the most recent edition of the Ohio Manual of Uniform Traffic Control Devices for Streets and Highways.

(b) When the director of public works determines that it is necessary for public safety, he may require barricades or traffic control devices in addition to those required by the most recent edition of the Ohio Manual of Uniform Traffic Control Devices in any excavation or obstruction of a public street in the City of Cincinnati.
(C.O. 701-36; renumbered to C.M.C. 721-61, eff. Jan. 1, 1972; a. Ord. No. 432-1997, eff. Jan. 16, 1997; a. Ord. No. 406-1999, eff. Nov. 12, 1999)

Cross reference—Penalty, § 721-999-D.

Sec. 721-63. Gutter Crossings.

Except as herein provided, no property owner shall construct or maintain, or permit to be constructed or maintained, on a street abutting the owner's premises, any gutter cover, bridge, plate, pipe or other kind of gutter crossing. In unimproved streets or in streets not improved with curbs and gutters, the director may issue a special permit for the placing of a pipe, if such construction is, in the director's opinion, necessary in order to improve vehicle access to the abutting

property. Such special permit shall specify the extent and type of construction permitted.
(C.O. 701-40; renumbered to C.M.C. 721-63, eff. Jan. 1, 1972)

Cross reference—Penalty, § 721-999-E.

Sec. 721-65. Obstructing Gutters.

No person shall obstruct or permit the obstruction of any gutter so as to impede the passage of water flowing in such gutter in any city street. Wherever a property owner maintains a pipe in the gutter of a street abutting his premises, by virtue of a special permit issued in accordance with Section 721-63, such owner shall at all times keep such pipe free and clear of obstruction.
(C.O. 701-41; renumbered to C.M.C. 701-65, eff. Jan. 1, 1972; a. Ord. No. 406-1999, eff. Nov. 12, 1999)

Cross reference—Penalty, § 721-999-D.

Sec. 721-67. Sidewalk Grades.

All sidewalks shall be constructed, reconstructed or repaired under the supervision of the city engineer. The grade of any sidewalk constructed in accordance with the provisions of this chapter shall conform to the curb grades of the street, and shall slope regularly from the top of the curb to the property line at the rate of from one-fourth to one-half of an inch to each foot, as the city engineer may direct. At street intersections the slope of the sidewalks shall be worked out under the direction of the city engineer.

If, in any particular case, the provisions of this section shall be found impractical, the city engineer is authorized to modify their strict application. An owner who is dissatisfied with the modification proposed by the city engineer may appeal to the city manager, whose decision shall be final.
(C.O. 701-43; renumbered to C.M.C. 701-67, eff. Jan. 1, 1972)

Sec. 721-69. Sidewalk Construction, Specifications, Contract.

The city manager shall cause specifications to be prepared for the construction of the various kinds of sidewalk pavement, and shall submit them to council for approval. When the specifications have been approved, the city manager shall advertise for proposals to do all the work which may be ordered by the city in the construction and repair of sidewalks, and shall contract therefor, for a period not exceeding one year, with the lowest responsible bidder, who shall furnish good and sufficient sureties for the faithful performance of such work. If deemed advisable, the city manager may make separate contracts for the different parties and may divide the city into districts and make a separate contract or contracts as to each district.
(C.O. 701-44; renumbered to C.M.C. 701-69, eff. Jan. 1, 1972)

Sec. 721-71. Permits for Sidewalk Construction.

No person, firm or corporation shall construct, lay or repair a sidewalk or a driveway across a sidewalk on any street without first securing a permit from the department. The application for the permit shall contain a statement showing the location of the proposed sidewalk or driveway, the exact number of lineal feet of sidewalk or driveway involved, the name and address of the owner of the abutting premises, and such other pertinent information as the department may require. Separate permits shall be required for each lot or parcel of real estate involved.

The provisions stated above shall not apply to sidewalk repair or construction being undertaken as part of a public works contract or improvement.
(C.O. 701-45; renumbered to C.M.C. 721-71, eff. Jan. 1, 1972; a. Ord. No. 422-1972, eff. Oct. 13, 1972)

Cross reference—Penalty, § 721-999-F.

Sec. 721-73. Permits for Heating System in Sidewalk for Melting Snow and Ice.

Upon application of the owner of property abutting a sidewalk, the city manager shall be authorized, along with a permit for sidewalk construction under Section 721-71, to issue a permit to install, operate and maintain heating pipes or electric heating cables in the sidewalk space for the purpose of melting snow and ice. Detailed plans and specifications for the work shall be approved by the director of transportation and engineering, except that work requiring connections to building utilities located on private property shall additionally be approved by the director of buildings and inspections. All work in connection therewith shall be performed under the direction and supervision and to the full satisfaction of such officers of the city.

Permits issued under authority of this section shall be subject to the terms, conditions and obligations as set forth in Sections 721-95 to 721-103, inclusive, and Chapter 718, "Revocable Street Privileges."
(C.O. 701-45a; renumbered to C.M.C. 721-73, eff. Jan. 1, 1972; Emer. Ord. No. 238-2015, § 4, eff. July 1, 2015)

Sec. 721-75. Sidewalk Repair Permit Fees.

A permit may be issued to property owners to do sidewalk work in the street right-of-way abutting their property provided such work is less than 65 square feet in area and does not involve any driveway construction.

Upon the issuance of a permit, the applicant shall pay a permit fee, established by the city manager or the city manager's designee, in an amount necessary to recover the costs and expenses incurred by the city or estimated to be incurred by the city in connection with its administration of sidewalk-repair permits, including, but not limited to, costs associated with the processing of applications, inspection and oversight of permittees, their vehicles, and equipment, and inspection and maintenance of affected rights-of-way.
(C.O. 701-46; a. Ord. No. 265-1962, eff. Aug. 4, 1962; renumbered to C.M.C. 721-75, eff. Jan. 1, 1972; a. Ord. No. 327-1975, eff. Sept. 1, 1975; a. Ord. No. 282-1979, eff. Sept. 1, 1979; a. Ord. No. 223-1982, eff. July 9, 1982; a. Ord. No. 627-1983, eff. Dec. 29, 1983; a. Ord. No. 74-1984, eff. Feb. 15, 1984; a. Emer. Ord. No. 0425-2023, § 1, eff. Dec. 13, 2023)

Sec. 721-77. Free Permits.

The director may issue a free permit to a property owner where repairs of minor importance are made to a sidewalk abutting the property.
(C.O. 701-47; renumbered to C.M.C. 721-77, eff. Jan. 1, 1972)

Sec. 721-79. Deposit of Materials.

The issuance of a permit shall authorize the necessary reasonable use of sidewalk or street space for the deposit of materials and equipment required for the construction or repair, subject to any rules or regulations of the department governing such temporary deposits.
(C.O. 701-48; renumbered to C.M.C. 721-79, eff. Jan. 1, 1972)

Sec. 721-81. Sidewalk Construction Without Permit Unlawful.

No person, directly or indirectly, as principal, agent, or employee shall construct or repair, or attempt to construct or repair, any sidewalk, without having obtained the required permit or permits for such work.
(C.O. 701-50; renumbered to C.M.C. 721-81, eff. Jan. 1, 1972)

Cross reference—Penalty, § 721-999-F.

Sec. 721-83. Street Contractor's License.

Except as provided in Sections 721-27 and 721-75, no person, firm or corporation shall undertake to construct, lay or repair any part of a street without having previously secured a license as a street contractor. Such license shall be dated as of April 1 and shall be renewed annually. Except as provided in Sections 721-27 and 721-75, no permit shall be granted to construct, lay or repair a street except to a licensed street contractor.
(C.O. 701-52; renumbered to C.M.C. 721-83, eff. Jan. 1, 1972; a. Ord. No. 46-1991, eff. Mar. 8, 1991)

Cross reference—Penalty, § 721-999-D.

Sec. 721-85. Application and Certificate for Contractor's License.

Application for a street contractor's license shall be made to the city manager. If the city manager is satisfied that the applicant is qualified to properly perform street construction, such fact shall be certified to the city treasurer.
(C.O. 701-53; renumbered to C.M.C. 721-85, eff. Jan. 1, 1972; a. Ord. No. 46-1991, eff. Mar. 8, 1991)

Sec. 721-87. Bond and License Fee of Street Contractor.

Upon receipt of the city manager's certificate and the filing of a sufficient bond in the sum of at least $10,000.00, conditioned to require the contractor to at once repair any part of a street not repaired in accordance with city specifications, the city treasurer shall issue a license authorizing the applicant to engage in the business of street contractor. Said bond shall guarantee work by the contractor for a period of one year from the date of the final city inspection.

Upon the issuance of a license, the applicant shall pay an annual license fee, established by the city manager or the city manager's designee, in an amount necessary to recover the costs and expenses incurred by the city or estimated to be incurred by the city in connection with its administration of the street-contractor-licensing program, including, but not limited to, costs associated with the processing of applications, inspection and oversight of licensees, their vehicles, and equipment, and inspection and maintenance of affected rights-of-way. Each annual license fee must be paid no more than 12 months following the issue date of the affected license.
(C.O. 701-54; a. Ord. No. 90-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 721-87, eff. Jan. 1, 1972; a. Ord. No. 327-1975, eff. Sept. 1, 1975; a. Ord. No. 482-1978, eff. Nov. 29, 1978; a. Ord. No. 71-1982, eff. Mar. 3, 1982; a. Ord. No. 46-1991, eff. Mar. 8, 1991; a. Ord. No. 406-1999, eff. Nov. 12, 1999; a. Ord. No. 388-2006, § 3, eff. Jan. 20, 2007; a. Emer. Ord. No. 0425-2023, § 1, eff. Dec. 13, 2023)

Sec. 721-89. Sidewalk Specification and Inspection.

The director shall have on file the specifications regulating the manner in which a sidewalk repair or construction is to be done. Upon notice of the completion of any sidewalk construction or repair, the city engineer shall make an inspection of the work. If, in the judgment of the city engineer, the work is unsatisfactory, notice of such fact shall be served, by mail or otherwise on

the contractor and the property owner, and the contractor shall be ordered to relay or repair the work according to specifications.
(C.O. 701-55; renumbered to C.M.C. 721-89, eff. Jan. 1, 1972)

Sec. 721-91. Revocation of License.

In case any street contractor shall fail to comply with the rules and specifications governing any street construction or repair undertaken by the contractor, the city manager shall be authorized to direct the city treasurer to revoke the license of such contractor and the city treasurer shall thereupon revoke such license.
(C.O. 701-56; renumbered to C.M.C. 721-91, eff. Jan. 1, 1972; a. Ord. No. 46-1991, eff. Mar. 8, 1991)

Sec. 721-93. Temporary Driveway Permits.

No person, firm or corporation shall use any part of a sidewalk for temporary driveway purposes without first securing a permit from the director of transportation and engineering.
(C.O. 701-57; renumbered to C.M.C. 721-93, eff. Jan. 1, 1972; a. Ord. No. 406-1999, eff. Nov. 12, 1999; Emer. Ord. No. 238-2015, § 5, eff. July 1, 2015)

Cross reference—Penalty, § 721-999-D.

Sec. 721-95. Interfering Encroachments in City Streets.

Whenever, in connection with the construction, repair or reconstruction of a street or sidewalk improvement, or in connection with the laying of sewers, water pipes or other municipal utility equipment, it shall become necessary for a property owner to remove, repair or adjust, in whole or in part, a building encroachment or other private street privilege to conform to such improvement, the city engineer shall notify the owner of the property to which the encroachment or street privilege is appurtenant to make such removal or change as shall conform to the proposed improvement and comply with the laws of the state and the ordinances of the city.
(C.O. 701-61; renumbered to C.M.C. 721-95, eff. Jan. 1, 1972; a. Ord. No. 171-1978, eff. May 3, 1978)

Sec. 721-97. Form of Notice.

The notice required in Section 721-95 shall be sufficient if served on the owner or owner's agent personally or by letter addressed to the place of business or last known residence of such owner or agent. Where the property affected is owned by more than one person, service on any one owner shall be sufficient. If no owner or agent can be found, it shall be sufficient to post a notice on the premises.
(C.O. 701-62; renumbered to C.M.C. 721-97, eff. Jan. 1, 1972)

Sec. 721-99. Termination of Privilege.

If any owner shall, for the period of 30 days or more after the issuing of the notice required by Section 721-95, fail to make the removal or readjustment required by such notice, the city manager shall be authorized, at any time, to revoke and declare terminated the right to maintain the encroachment or street privilege, as the case may be. Notice of such revocation and termination shall be given in the same manner provided in Section 721-97.
(C.O. 701-63; renumbered to C.M.C. 721-99, eff. Jan. 1, 1972)

Sec. 721-101. Removal of Encroachment.

Whenever the right to maintain an encroachment or street privilege in a public street or sidewalk shall have been revoked or terminated in accordance with the foregoing provisions, the city manager shall be

authorized to remove the encroaching construction in whole or in part and, where necessary, to fill up, wall up, seal or cover over any opening or cavity. The cost of making such removal and performing such auxiliary work shall be charged against the property owner. Where such removal and auxiliary work are necessary in connection with a sidewalk construction, such work shall be included as part of the sidewalk construction and the cost thereof shall be assessed against the abutting premises.
(C.O. 701-64; renumbered to C.M.C. 721-101, eff. Jan. 1, 1972)

Sec. 721-103. Defect Caused by Encroachment.

Whenever any street or sidewalk shall become defective by reason of the failure of a property owner to properly maintain a private construction constituting an encroachment or street privilege within such street or sidewalk, the city manager shall be authorized to require the removal, repair or reconstruction of such encroachment by the owner, or to have the work done by the city in case of default, and to charge or assess against the owner any expense incurred by the city in connection therewith, in the same manner as provided in the case of the removal of interfering encroachments.
(C.O. 701-65; renumbered to C.M.C. 721-103, eff. Jan. 1, 1972)

Sec. 721-105. Removing Subsurface Encroachments When Building Is Wrecked.

Whenever a building with appurtenant facilities or encroachments within the street right of way is wrecked or removed, the owner shall remove all such appurtenant encroachments or facilities and fill in and restore the space previously occupied by them to conform to the adjacent street and pavement. In case the owner shall fail to make such removal and restoration, the city manager shall be authorized to cause it to be done and to charge the cost against the owner in the same manner as provided in the case of the removal of encroachments interfering with street construction.
(C.O. 701-66; renumbered to C.M.C. 721-105, eff. Jan. 1, 1972)

Sec. 721-107. Conflicting Special Ordinances.

All provisions of special street privilege ordinances in conflict with Sections 721-95 to 721-105, inclusive, shall be void and of no effect to the extent of such conflict.
(C.O. 701-67; renumbered to C.M.C. 721-107, eff. Jan. 1, 1972)

Sec. 721-109. Sidewalk Covering Over Sub-space; Prohibited Materials.

No person shall use sandstone slabs or prismatic lights as a sidewalk pavement over any sub-space.
(C.O. 701-68; renumbered to C.M.C. 721-109, eff. Jan. 1, 1972)

Cross reference—Penalty, § 721-999-A.

Sec. 721-111. Support for Sidewalk Covering Over Sub-space.

No person shall use unencased steel beams, columns or lintels to support a sidewalk pavement over any sub-space.
(C.O. 701-69; renumbered to C.M.C. 721-111, eff. Jan. 1, 1972)

Cross reference—Penalty, § 721-999-A.

Sec. 721-113. Definitions.

For the purpose of Sections 721-109 and 721-111 the words and phrases defined in the sections hereunder shall have the mean-

ings therein respectively ascribed to them, unless a different meaning is clearly indicated by the context.
(C.O. 701-70; renumbered to C.M.C. 721-113, eff. Jan. 1, 1972)

Sec. 721-113-P. Prismatic Lights.

"Prismatic lights" shall mean transparent materials such as glass or plastic, inserted in the surface of a sidewalk for the purpose of transmitting light to a sidewalk sub-space.
(C.O. 701-70c; renumbered to C.M.C. 721-113-P, eff. Jan. 1, 1972)

Sec. 721-113-S. Sandstone Slab.

"Sandstone slab" shall mean any natural stone slab used as sidewalk pavement.
(C.O. 701-70b; renumbered to C.M.C. 721-113-S, eff. Jan. 1, 1972)

Sec. 721-113-S1. Sidewalk Sub-space.

"Sidewalk sub-space" shall mean any open space under the surface of a sidewalk adjacent to a building.
(C.O. 701-70a; renumbered to C.M.C. 721-113-S1, eff. Jan. 1, 1972)

Sec. 721-113-U. Unencased Steel Beams, Columns or Lintels.

"Unencased steel beams, columns or lintels" shall mean any steel, wrought iron or cast iron beams, columns or lintels which are not enclosed in a casing of reinforced concrete, of a minimum thickness of two inches, reinforced with steel wire mesh of a minimum weight of one and one-half pounds per square yard, with maximum spacing of wires four inches, or a system of materials subject to the approval of the director of public works, which provides comparable, or greater, fire protection and corrosion resistance.
(C.O. 701-70d; renumbered to C.M.C. 721-113-U, eff. Jan. 1, 1972; a. Ord. No. 81-1978, eff. Mar. 1, 1978)

Sec. 721-115. Openings in City Retaining Walls.

No permit shall be issued to any private property owner for the making of an opening or openings in any retaining wall erected by the city along any highway, unless the city engineer shall be satisfied that such opening can be made without danger to the highway protected by it and to other adjoining public or private property.
(C.O. 701-71; renumbered to C.M.C. 721-115, eff. Jan. 1, 1972; a. Ord. No. 171-1978, eff. May 3, 1978)

Sec. 721-117. Application for Permit.

Application for permission to make an opening in a city retaining wall shall be made to the city engineer. The applicant shall furnish all necessary data as to the nature of the construction contemplated both within the highway and on premises adjoining the highway.
(C.O. 701-72; renumbered to C.M.C. 721-117, eff. Jan. 1, 1972; a. Ord. No. 171-1978, eff. May 3, 1978)

Sec. 721-119. Investigation and Report.

The city engineer shall investigate the feasibility of the proposed opening, having due regard to the safety of the highway and of other adjoining property, public and private.

Upon finding the proposed opening feasible, the city engineer shall require:

(a) Special conditions and restrictions to be imposed on the applicant for the protection of the highway and other property.

(b) The estimated total cost of making the proposed opening, including all adjustment and restoration costs.

(C.O. 701-73; renumbered to C.M.C. 721-119, eff. Jan. 1, 1972; a. Ord. No. 171-1978, eff. May 3, 1978)

Sec. 721-121. Approval by the City Manager.

If the city engineer is satisfied that a proposed opening in a city retaining wall can be made without danger to the highway and other property, the city engineer shall issue a permit incorporating the special conditions and restrictions and cause a deposit to be made as a guarantee of satisfactory completion of all work and/or satisfactory restoration.
(C.O. 701-74; renumbered to C.M.C. 721-121, eff. Jan. 1, 1972; a. Ord. No. 171-1978, eff. May 3, 1978)

Sec. 721-125. Rules and Regulations.

The city engineer is authorized to make and enforce all necessary rules and regulations for the effectuation of the provisions governing openings in city retaining walls.
(C.O. 701-76; renumbered to C.M.C. 721-125, eff. Jan. 1, 1972; a. Ord. No. 171-1978, eff. May 3, 1978)

Sec. 721-127. Flagpole Sockets in Sidewalks.

The city engineer is authorized, on application of any civic or patriotic society, or of any property owner, to grant a permit or permits to install one or more metal flagpole sockets in the sidewalk of any street. Such flagpole sockets shall be not less than 12 inches from the curb line and not less than 25 feet apart unless an obstruction or other difficulty renders the restrictions impracticable. Installation of such flagpole sockets, and their use after installation, shall be under the direction and subject to the approval of the city engineer. The city engineer is authorized to prepare rules and regulations governing such installation and use. No permit fee shall be charged for permission to install or use such flagpole sockets. Any permit may be revoked by the city engineer, in whole or in part, at any time.
(C.O. 701-78; renumbered to C.M.C. 721-127, eff. Jan. 1, 1972; a. Ord. No. 171-1978, eff. May 3, 1978)

Sec. 721-129. Driveways Across Sidewalks.

The construction, reconstruction, and repair of driveways across sidewalks shall be subject to Sections 721-131 to 721-145, inclusive. If access to a driveway is continuously blocked, or use of the driveway is discontinued, the owner of the real property which is or was served by that driveway shall remove any apron in the public right-of-way, and restore the curb and grass strip.
(C.O. 701-79; renumbered to C.M.C. 721-129, eff. Jan. 1, 1972; a. Ord. No. 406-1999, eff. Nov. 12, 1999)

Sec. 721-131. Permit and Supervision.

A permanent driveway across a sidewalk shall not be constructed, reconstructed, or repaired until a permit is issued therefor by the director of public works.
(C.O. 701-80; renumbered to C.M.C. 721-131, eff. Jan. 1, 1972)

Sec. 721-132. Driveway and Location.

Motor vehicle access from a public road to private property must be via a driveway constructed in accordance with this Chapter, and at a location approved by the city engineer.
(C.O. 721-132; ordained by Ord. No. 406-1999, eff. Nov. 12, 1999)

Sec. 721-133. Construction.

The construction or reconstruction of a driveway from an improved roadway to private property shall be concrete in accordance with prevailing City specifications. The construction or reconstruction of a driveway from an unimproved roadway to private property shall be concrete or asphalt in accordance with prevailing City specifications. All commercial driveways shall be adequate to carry the loads to which they are subjected, but no driveway shall be less

than seven inches thick. For construction of new driveways, three sets of detailed plans, of the proposed construction or reconstruction, may be required showing lot lines, street curb lines, street inlets, or public utility structures which may be affected by, or which are immediately adjacent to, the proposed driveway, and such other information as may be necessary, all of which shall be subject to the approval of the city engineer.
(C.O. 701-81; renumbered to C.M.C. 721-133, eff. Jan. 1, 1972; a. Ord. No. 406-1999, eff. Nov. 12, 1999)

Sec. 721-134. Surfacing.

Portions of all driveways or parking areas shall be paved so that every vehicle exiting any driveway or parking area shall travel at least 25 feet over a hard surface immediately before exiting to any public street. Portions between the roadway and the property line shall be constructed in accordance with Section 721-133. Any portion extending onto private property shall be constructed or reconstructed with concrete, asphaltic concrete, brick or pavers, adequate to carry the loads to which it will be subjected. This section shall not apply to driveways and parking areas serving single-family and two-family dwellings.
(Ordained by Ord. No. 388-1990, eff. Sept. 26, 1990)

Sec. 721-135. Width.

Driveway entrances shall have a width of not less than 12 feet nor more than 35 feet measured at the curb line. The width of driveways at the property line shall not be greater than the width at the curb line. Multiple driveway entrances will be permitted where necessary and with the approval of the city engineer, but not to exceed a width of 35 feet measured at the curb line for each multiple driveway entrance; provided, however, that such multiple driveway entrances shall be separated by pedestrian safety islands which shall be in whole units of car parking spaces, as follows: 28 feet, 48 feet, 68 feet, or any additional number of 20 foot spaces. In no case can more than 60 percent of the property frontage be used for driveway purposes.
(C.O. 701-82; renumbered to C.M.C. 721-135, eff. Jan. 1, 1972)

Sec. 721-137. Depth.

Driveways across sidewalks shall have a depth on the abutting private property adequate to permit a vehicle to completely clear the sidewalk right of way so that no part of the vehicle shall remain on or project over such right of way. Where such driveway enters a building, the garage provisions of Title XI of the Cincinnati Municipal Code will apply. Where such driveway enters a parking lot, provisions must be made for cars to turn around and head out.
(C.O. 701-83; renumbered to C.M.C. 721-137, eff. Jan. 1, 1972)

Sec. 721-139. Barriers at Street Property Line.

Where driveways serve other than residence property, driving thereover in the sidewalk area shall be confined to a width measured at the property line not greater than the width at the curb line, by the construction of suitable curbs or barriers, the curbs or barriers to be constructed of concrete, wooden timbers or other suitable materials firmly set or anchored in the ground. The curb or barrier shall extend at least seven inches above the surface of the ground or paved area. In cases where the private property is used for parking vehicles in a position other than parallel to the street property line, these curbs or barriers shall be located or constructed as to prevent any part of the parked vehicles from extending

over the sidewalk area. The location, specifications and termini shall be subject to the approval of the city engineer.
(C.O. 701-84; renumbered to C.M.C. 721-139, eff. Jan. 1, 1972)

Sec. 721-141. Layout.

Driveways near street intersections where the angle between the street lines is 40 degrees or less, shall be constructed so that the end of the curb cut nearest the intersection is not closer than two feet from a point at right angles to the street line at the point of street line intersection, and where the angle between the streets is 80 degrees shall not be closer than four feet. For angles between 40 degrees and 80 degrees the distance shall vary proportionately. The four foot distance shall be maintained for angles up to 100 degrees, and for angles of 140 degrees or more shall not be less than 14 feet. For angles between 100 degrees and 140 degrees, the distance shall vary proportionately.

Where residential driveways are serving interior lots, the curb cut shall not extend beyond a line drawn at right angles to the street line at the corner of the lot.

Where driveways, other than residential driveways, are serving interior lots, the curb cut shall not extend beyond a line drawn at right angles to the street line at the corner of the lot, and the line of the driveway shall be no closer than five feet to such line drawn at right angles to the street line at the corner of the lot at a point five back of the curb line. From this point to the property line the driveway will not be less than five feet from the line drawn at right angles to the street line at the corner of the lot. Driveways may be constructed at an angle not less than 60 degrees with the curb line.

No driveway entrance shall interfere with municipal facilities such as street-lighting poles, traffic signal standards, signs, catch basins, hydrants, crosswalks, public transit loading platforms, public transit stops, utility poles, fire alarm supports, underground pipes or ducts or other necessary street structures. The length and location of each curb cut and lowered curb shall be subject to the approval of the city engineer. The applicant for a driveway permit must make arrangements with the proper authority for the adjustment or relocation of the facility affected before a driveway permit will be issued, which arrangements must include provisions for the payment of the cost of adjusting or relocating such facilities if applicable. In no case will it be permissible for a curb cut to be located closer than five feet to any such facility and, more specifically, no part of the facility shall project within the space between the curb cut and a line drawn at right angles to the curb five feet from the curb cut as measured along the curb.

Filling stations, industrial or business buildings requiring direct entrances for two or more lanes of traffic shall have their driveway layouts approved by the city engineer before receiving their building permits.

Where the owner of any premises, existing or proposed building or structure contemplates constructing or reconstructing a driveway at the same time as constructing or making alterations to a building or structure, or any other time, such owner shall have the driveway layout approved by the city engineer before constructing the driveway and before a building permit is issued.
(C.O. 701-86; renumbered to C.M.C. 721-141, eff. Jan. 1, 1972; a. Ord. No. 110-2014, § 9, eff. June 29, 2014)

Sec. 721-143. Grade.

(a) Residential driveway. Where the property to be served by the proposed construction or reconstruction of a driveway

abuts on a street on which the curb is of the vertical face type and the walkway is located with its outside edge not less than three feet from the curb line, the driveway shall ramp from the grade at the edge of the walkway to a grade not less than one and three quarters inches above the gutter grade. Across the walkway and for at least one foot farther towards the street property line, the grade of the driveway shall coincide with the cross grade of the walkway. On improved streets where there are no walkways, the standard walkway grade shall be carried to the street property line. On streets having no curbs or walkways, the traveled roadway shall be considered the established grade and the slope of the driveway from the roadway to the street property line shall rise at the rate of one-half inch per foot.

Where the outside edge of the walkway is less than three feet from the curb line, the grade of the driveway shall attain the sidewalk grade in not to exceed such distance. In special cases of narrow walkways laid contiguous to the back of the curb, the length of the ramp to gutter shall be decreased to permit not less than a three foot walking space. In case of full width sidewalks, the cross grade of the walkway shall be maintained to the street property line.

(b) Non-residential driveway. The above provisions for residential driveways shall apply except that in all cases the cross grade of the walkway shall be maintained to the street property line.
(C.O. 701-86; renumbered to C.M.C. 721-143, eff. Jan. 1, 1972)

Sec. 721-145. Modifications.

If at any time it is found that the driveway provisions set forth in the preceding sections are impracticable for a particular case, the city engineer shall be authorized to modify the strict application of the sections so as to provide for the safety and convenience of the public and to avoid undue hardship on the owner, in harmony with the purpose of the sections.

An owner who is dissatisfied with the modifications authorized by the city engineer, may appeal as provided in Section 721-155.
(C.O. 701-87; renumbered to C.M.C. 721-145, eff. Jan. 1, 1972; a. Ord. 388-1990, eff. Sept. 26, 1990)

Sec. 721-146. Owner of Abutting Property to Maintain Sidewalk Encroachment.

(A) The owner or owners of land adjacent to a sidewalk encroachment are jointly and severally responsible for causing the sidewalk encroachment to be kept safe and in repair.

(B) If the city manager determines that a sidewalk encroachment is an immediate safety hazard he may cause the abatement of the hazard by any reasonable means. In the case of such an emergency the city manager may enter the adjacent property and building to effectuate repairs. In such cases notice required by Section 721-149 is waived.

(C) For purposes of enforcement, each day of nonconformance with Section 721-146 is a separate offense.
(Ordained by Ord. No. 351-1997, eff. Oct. 8, 1997)

Sec. 721-147. Owners of Abutting Property to Maintain Sidewalk.

Where land abuts on a street where there is a paved sidewalk and/or a paved sidewalk with an integral curb, the owner or owners of such land shall be jointly and severally responsible for causing the sidewalk and any curb which is integral with the sidewalk to be kept in repair and free from nuisance.

Said owners are responsible for any damage caused by said repair to the gutters adjacent to their property.

For residential property, the owner of a parcel abutting two or more public streets shall be responsible for repair of paved walks on only one frontage, that frontage being determined as follows:

(a) the parcel frontage containing the driveway; or

(b) where either both or neither parcel frontage contains a driveway, the parcel frontage upon which the street address is based; or

(c) if neither subsection (a) or (b) apply, as determined by the city engineer based upon typical frontages for other parcels in the subdivision.

For purposes of this subsection residential property is defined as property serving as one, two, or three family dwellings.

Notwithstanding anything else in this section, abutting property owners are responsible for the maintenance of each driveway. This responsibility includes driveway aprons, driveways across paved walks, and curbs integral with driveway. Abutting property owners are responsible for maintaining all sidewalk encroachments and for keeping the sidewalk space on all parcel frontages free from nuisance.

In repairing any paved sidewalk, sidewalk area, curbing integral with the sidewalk or restoring gutters, the abutting property owner(s), unless directed by the city engineer or exempted by the Sidewalk Board of Appeals pursuant to Sections 721-155 through 721-159, shall use the same materials, including surface materials, that compose the existing sidewalk at the time of repair.
(C.O. 708-88; renumbered to C.M.C. 721-147, eff. Jan. 1, 1972; a. Ord. No. 267-1980, eff. July 18, 1980; a. Ord. No. 270-1992, eff. June 29, 1992; a. Ord. No. 406-1999, eff. Nov. 12, 1999)

Sec. 721-148. Owners of Abutting Property to Maintain Area Between Property Line and Curb or Presumable Curb.

Where land abuts a street, the owner or owners of such land shall be jointly and severally responsible for causing the area between the curb, or presumable curb, and the property line to be kept in good order, free from nuisance, weeds, and litter. In addition said owners shall:

(a) Keep the line of sight to all traffic signals open and visible to the operators of vehicles for a minimum distance of 150 feet; maintain a clear line of sight of street name signs, traffic control signs and devices.

(b) Maintain a minimum overhead clearance of eight feet over the sidewalk space.

(c) Maintain a minimum overhead clearance of fourteen feet above the adjacent roadway.

(d) Keep privately owned trees, growing under a utility wire in the public right of way, at a height less than the utility wire.

The city manager, or his designee, shall notify the owner, or owners, of the property of conditions which may violate this section. Such notice shall provide for a fifteen day period within which the owner or owners may eliminate the conditions. Notice sent to the tax mailing address is deemed sufficient notice. If the situation is not remedied within fifteen days of actual notice, or the mailing of the notice, the city manager or his designee may remedy the situation. In such

event the owner or owners shall be jointly and severally responsible for the city's direct and indirect costs.

As used in this section the phrase "presumable curb" means the point at which the paved area of a street, with no curb, ends.
(Ordained by Ord. No. 9-1995, eff. Feb. 1, 1995; a. Ord. No. 406-1999, eff. Nov. 12, 1999)

Sec. 721-149. Notice to Repair.

Whenever the city manager shall find that any paved walk, driveway, or integral curbing should be constructed or that any sidewalk space (including paved walk, driveways, and the grass strip), integral curbing, or sidewalk encroachment is not in repair, not free from nuisance, or is not safe, the owner of the abutting property shall be notified, in writing, to have the necessary construction, reconstruction or repairs made; provided that, if as a part of a street improvement the city has to replace or repair the sidewalk or curbing at one time, the city may make the repair or replacement after notice to the owner of the abutting property.

Such notice shall be served on the owner or owners or the agent in charge of the property in the manner provided by law for the service of summons in civil actions, or by certified mail addressed to such owner or owners or agent at the last known address or at the address to which tax bills are sent, or by a combination of the foregoing methods. The return of the person serving the notice or a certified copy thereof, or a returned receipt for notice forwarded by certified mail accepted by the addressee or anyone purporting to act for the addressee shall be prima facie evidence of the service of notice under this section.

For the purpose of such service, any person charged with the collection of rents or the payment of taxes on the property or having general control of it in any way, shall be considered the agent of the owner.
(C.O. 701-89; a. Ord. No. 236-1962, eff. June 20, 1962; renumbered to C.M.C. 721-149, eff. Jan. 1, 1972; a. Ord. No. 372-1991, eff. Oct. 11, 1991; a. Ord. No. 351-1997, eff. Oct. 8, 1997; a. Ord. No. 406-1999, eff. Nov. 12, 1999)

Sec. 721-151. Non-resident Owners.

If it appears by the return of service or the return of the certified mail notice provided for in Section 721-149 that one or more of the owners cannot be found, such owners shall be served by publication of the notice once in either The City Bulletin or in a newspaper of general circulation in the City of Cincinnati.
(C.O. 701-90; a. Ord. No. 236-1962, eff. June 20, 1962; renumbered to C.M.C. 721-151, eff. Jan. 1, 1972)

Sec. 721-153. Contents of Notice.

The notice provided for in Sections 721-149 and 721-151 shall identify the property and give the location of the sidewalk encroachment or sidewalk and the period of time allowed the property owner to have the work done by private contract. Such time shall be reasonable, but shall not be less than 30 days from the date of service of notice or the mailing of the certified mail notice provided for in Section 721-149. In the case of a street improvement requiring replacement or repair of the sidewalk by the city, the notice shall give the time the work will be done and the amount owing to the city from the property owner. The property owner shall not, in the case of a street improvement, have the option of having the work done by private contract.
(C.O. 701-91; a. Ord. No. 236-1962, eff. June 20, 1962; renumbered to C.M.C. 721-

153, eff. Jan. 1, 1972; a. Ord. No. 372-1991, eff. Oct. 11, 1991; a. Ord. No. 351-1997, eff. Oct. 8, 1997)

Sec. 721-155. Right of Appeal.

A board, to be known as the sidewalk board of appeals, shall hear and determine any protests filed by property owners or their agents as to sidewalks, curb, or gutter construction, reconstruction or repair, the surfacing of driveways and parking lots, or appeals from owners dissatisfied with any modification authorized by the city engineer under Section 721-145.

The sidewalk board of appeals shall consist of five members. Two members shall be appointed by the city manager for a period of three years, or until a successor is appointed. These members must be residents of the City of Cincinnati, own real property within the city, and may not be employees of the city. The remaining three members shall be the director of transportation and engineering, the city engineer, the director of public services, or their respective designees. The city solicitor shall serve as the legal advisor to the sidewalk board of appeals.
(C.O. 701-92; renumbered to C.M.C. 721-155, eff. Jan. 1, 1972; a. Ord. No. 388-1990, eff. Sept. 26, 1990; a. Ord. No. 351-1997, eff. Oct. 8, 1997; a. Ord. No. 84-1998, eff. April 10, 1998; a. Ord. No. 0060-2022, §§ 1, 2, eff. March 9, 2022)

Sec. 721-157. Protests Filed Prior to Work.

If protests are filed prior to the doing of the work called for by the notice from the city manager, the board of appeals shall have authority to modify, alter or revoke any such notice, as to the amount or type of work required, or the time in which it must be completed, consistent with the city ordinances and the specifications regarding sidewalk, curbing and gutter construction, reconstruction, or repair. The board shall also have the authority to waive strict compliance with such requirements where such compliance would cause undue hardship, provided such waiver will not cause or continue a public nuisance or an unsafe condition.
(C.O. 701-93; renumbered to C.M.C. 721-157, eff. Jan. 1, 1972)

Sec. 721-159. Protests Filed after Work is Completed.

If protests are filed after the work provided for in the notice to the property owner has been completed, the board's authority shall be limited to determining that the amount of the bill is correct and is charged against the right property, and that the work done was in accordance with the notice to the property owner. If the board shall find that an amount has been incorrectly charged against the property, but the work has been completed for which the city contractor is entitled to payment, it may order such payment made from the funds provided for the payment of the city's portion of sidewalk work.

The property owner's right to file a protest under this section shall cease 180 days following the date of the first tax bill containing a sidewalk assessment for the protested work.
(C.O. 701-94; renumbered to C.M.C. 721-159, eff. Jan. 1, 1972; a. Ord. No. 406-1999, eff. Nov. 12, 1999)

Sec. 721-161. Protest to be Filed in Writing.

Any protest regarding sidewalk, sidewalk encroachment, curb, or gutter construction, reconstruction or repairs, or the assessment therefor shall be filed in writing with the city engineer, who shall notify the person filing such protest of the date and place of hearing before the appeal board.
(C.O. 701-95; renumbered to C.M.C. 721-161, eff. Jan. 1, 1972; a. Ord. No. 351-1997, eff. Oct. 8, 1997)

Sec. 721-163. Construction, Reconstruction or Repairing to be Done at Expense of Property Owner.

If a sidewalk, curb or gutter is not constructed, or if a defective sidewalk, sidewalk encroachment, curb or gutter is not reconstructed, repaired or freed from nuisance within the period of time permitted by the notice to the owner of the abutting property, the city manager shall cause the work to be done by contract, as provided in Section 721-69, or by city forces, or both, and the entire cost shall be charged against such property.

(C.O. 701-96; renumbered to C.M.C. 721-163, eff. Jan. 1, 1972; a. Ord. No. 351-1997, eff. Oct. 8, 1997)

Sec. 721-165. Emergencies.

In case of emergency, the city manager is authorized to have temporary repairs made, or to barricade and red-light the area, or otherwise provide for the public safety. The cost of all such emergency repair and protection shall be charged against the abutting property and shall be collected as provided in Sections 721-167 and 721-169. In such emergencies, the notice required under § 721-149 is waived.

(C.O. 701-97; renumbered to C.M.C. 721-165, eff. Jan. 1, 1972; a. Ord. No. 406-1999, eff. Nov. 12, 1999)

Sec. 721-167. Property Owner To Be Billed.

Upon completion by the city of any sidewalk, sidewalk encroachment, curbing or gutter construction, repairs or reconstruction as provided by Sections 721-146, 721-163 and 721-165, the owner of the abutting property, or the owner's agent, shall be billed for the cost and expense of the work. Such costs shall include:

(a) All construction costs, including all costs of temporary repairs, barricading and red-lighting in emergency cases;

(b) All permit fees;

(c) A charge for administrative costs of 15 percent of the construction costs, provided that, if the construction was performed by the city as part of a street improvement under Section 721-149 or 721-153, there shall be no charge for administrative costs.

(C.O. 701-98; renumbered to C.M.C. 721-167, eff. Jan. 1, 1972; a. Ord. No. 102-1978, eff. Apr. 21, 1978; a. Ord. No. 626-1983, eff. Dec. 29, 1983; a. Ord. No. 372-1991, eff. Oct. 11, 1991; a. Ord. No. 351-1997, eff. Oct. 8, 1997; a. Ord. No. 406-1999, eff. Nov. 12, 1999)

Sec. 721-169. Assessment Against Abutting Property.

Bills issued under Section 721-167 shall be payable upon receipt. Any charge for administrative costs for bills paid within 30 days from the date of such bills shall be reduced to 10 percent of the construction costs. Bills not paid within 30 days shall be reported to city council for assessment against the abutting property.

(C.O. 701-99; renumbered to C.M.C. 721-169, eff. Jan. 1, 1972; a. Ord. No. 102-1978, eff. Apr. 21, 1978; a. Ord. No. 626-1983, eff. Dec. 29, 1983; a. Ord. No. 372-1991, eff. Oct. 11, 1991; a. Ord. No. 406-1999, eff. Nov. 12, 1999)

Sec. 721-999. Penalties.

Violations of the provisions of this chapter shall be punishable as set forth in the sections hereunder and other applicable penalty sections of this code.

(C.O. 701-100; renumbered to C.M.C. 721-999, eff. Jan. 1, 1972)

Sec. 721-999-A. Violation of Section 721-25, 721-109, or 721-111.

Whoever violates any provision of Section 721-25, 721-109, or 721-111 shall be fined not more than $200 and imprisoned not more than 30 days.
(C.O. 701-100b; a. Ord. No. 414-1970, eff. Dec. 23, 1970; renumbered to C.M.C. 721-999-A, eff. Jan. 1, 1972)

Sec. 721-999-B. Violation of Section 721-41.

Whoever violates any provision of Section 721-41 shall be fined not more than $100, and each opening shall be considered a separate offense.
(C.O. 701-100c; a. Ord. No. 414-1970, eff. Dec. 23, 1970; renumbered to C.M.C. 721-999-B, eff. Jan. 1, 1972)

Sec. 721-999-C. Violation of Section 721-59.

Whoever violates any provision of Section 721-59 shall be fined not more than $50, or imprisoned not more than 30 days, or both.
(C.O. 701-100d; renumbered to C.M.C. 721-999-C, eff. Jan. 1, 1972)

Sec. 721-999-D. Violation of Section 721-61, 721-65, 721-83, or 721-93.

Whoever violates any provision of Section 721-61, 721-65, 721-83, or 721-93 shall be fined not more than $25.
(C.O. 701-100f; renumbered to C.M.C. 721-999-D, eff. Jan. 1, 1972)

Sec. 721-999-E. Violation of Section 721-63.

Whoever violates any provision of Section 721-63 shall be fined not more than $25.
(C.O. 701-100g; a. Ord. No. 414-1970, eff. Dec. 23, 1970; renumbered to C.M.C. 721-999-E, eff. Jan. 1, 1972)

Sec. 721-999-F. Violation of Section 721-71 or 721-81.

Whoever violates any provision of Section 721-71 or 721-81 shall be fined not more than $250.
(C.O. 701-100e; a. Ord. No. 414-1970, eff. Dec. 23, 1970; renumbered to C.M.C. 721-999-F, eff. Jan. 1, 1972; a. Ord. No. 592-1983, eff. Jan. 20, 1984)

Sec. 721-999-G. Violation of Section 721-134.

Whoever violates any provision of Section 721-134 or 721-148 shall be fined not less than $50 nor more than $500. Each day's violation shall be a separate offense. As to Section 721-148 the violation is deemed to commence fifteen days after notice of the violation is given.
(Ordained by Ord. No. 388-1990, eff. Sept. 26, 1990; a. Ord. 9-1995, eff. Feb. 1, 1995)

Sec. 721-999-H. Violation of Section 721-146.

A violation of any provision of Section 721-146 is a Class C Civil Offense.
(Ordained by Ord. No. 351-1997, eff. Oct. 8, 1997)

Chapter 722

MANAGEMENT AND CONTROL OF THE USE OF THE CITY RIGHT-OF-WAY

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Sec. 722-1. Definitions.

For the purposes of this Chapter 722, the following words and phrases shall have the meanings ascribed to them below, regardless of whether or not the words and phrases are capitalized.
(Ordained by Emer. Ord. No. 349-2012, § 1, eff. Sept. 26, 2012)

Sec. 722-1-B. Best Effort(s).

"Best effort(s)" means the best reasonable efforts under the circumstances, taking into consideration, among other appropriate matters, all applicable laws, regulations, safety, engineering and operational codes, available technology, human resources, and cost.
(Ordained by Emer. Ord. No. 349-2012, § 1, eff. Sept. 26, 2012)

Sec. 722-1-C. Cable Franchise.

"Cable Franchise" has the same meaning as "franchise" in the Cable Communications Policy Act of 1984, 98 Stat. 2779, 47 U.S.C.A. 522.
(Ordained by Emer. Ord. No. 349-2012, § 1, eff. Sept. 26, 2012)

Sec. 722-1-C2. Cable Operator.

"Cable Operator" has the same meaning as in the Cable Communications Policy Act of 1984, 98 Stat. 2779, 47 U.S.C.A. 522.
(Ordained by Emer. Ord. No. 349-2012, § 1, eff. Sept. 26, 2012)

Sec. 722-1-C3. Cable Service.

"Cable Service" has the same meaning as in the Cable Communications Policy Act of 1984, 98 Stat. 2779, 47 U.S.C.A. 522.
(Ordained by Emer. Ord. No. 349-2012, § 1, eff. Sept. 26, 2012)

Sec. 722-1-C4. City.

"City" means the City of Cincinnati, Ohio.
(Ordained by Emer. Ord. No. 349-2012, § 1, eff. Sept. 26, 2012)

Sec. 722-1-C5. City Council.

"City Council" means the governing body of the City.
(Ordained by Emer. Ord. No. 349-2012, § 1, eff. Sept. 26, 2012)

Sec. 722-1-C6. City Manager.

"City Manager" means the administrative head of the municipal government known as the City of Cincinnati, Ohio.
(Ordained by Emer. Ord. No. 349-2012, § 1, eff. Sept. 26, 2012)

Sec. 722-1-C7. Cincinnati Municipal Code.

"Cincinnati Municipal Code" or "Code" means the City of Cincinnati Municipal Code, related city legislation, and related city regulations.
(Ordained by Emer. Ord. No. 349-2012, § 1, eff. Sept. 26, 2012)

Sec. 722-1-C8. Construct.

"Construct" means digging, boring, tunneling, trenching, excavating, obstructing, installing wires, installing conduit, installing pipes, installing transmission lines, installing poles, installing signs or installing Facilities, other than landscaping, ornamental plantings in, on, above, within, over, below, under or through any part of the right of way. Construct shall also include the act of opening and/or cutting into the surface of any paved or improved surface that is any part of the right of way.
(Ordained by Emer. Ord. No. 349-2012, § 1, eff. Sept. 26, 2012)

Sec. 722-1-C9. Construction.

"Construction" means the act or process of digging, boring, tunneling, trenching, excavating, obstructing, installing wires, installing conduit, installing pipes, installing transmission lines, installing poles, installing signs or installing Facilities, other than landscaping, ornamental plantings in, on, above, within, over, below, under or through any part of the right of way. Construction shall also include the act of opening and/or cutting into the surface of any paved or improved surface that is part of the right of way.
(Ordained by Emer. Ord. No. 349-2012, § 1, eff. Sept. 26, 2012)

Sec. 722-1-C10. Construction Permit.

"Construction Permit" means any permit required under Chapter 718, Chapter 721, Chapter 722, or Chapter 723, for construction or use in or on a right of way.
(Ordained by Emer. Ord. No. 349-2012, § 1, eff. Sept. 26, 2012)

Sec. 722-1-C11. County.

"County" means Hamilton County, Ohio (except for the purpose of the provision of sewer and water service within or through the city). County specifically excludes any and all contractors, agents or other persons acting on behalf of said county.
(Ordained by Emer. Ord. No. 349-2012, § 1, eff. Sept. 26, 2012)

Sec. 722-1-D. Delay Costs.

"Delay Costs" means additional costs incurred by the City as a direct result of a provider's violation of the utility relocation requirements set forth in this chapter including, but not limited to, the cost of resulting contractor change orders, delay claims, penalties, and the cost of additional city staff time incurred as a result of provider's violation.
(Ordained by Emer. Ord. No. 042-2014, § 1, eff. March 19, 2014)

Sec. 722-1-D2. Department.

"Department" means the Department of Transportation and Engineering of the city.
(Ordained by Emer. Ord. No. 349-2012, § 1, eff. Sept. 26, 2012; Emer. Ord. No. 042-2014, § 2, eff. March 19, 2014)

Sec. 722-1-D3. Director.

"Director" means the Director of the Department of Transportation and Engineering or the director's designee.
(Ordained by Emer. Ord. No. 349-2012, § 1, eff. Sept. 26, 2012; Emer. Ord. No. 042-2014, § 4, eff. March 19, 2014)

Sec. 722-1-E. Emergency.

"Emergency" means a condition that poses a clear and immediate danger to life or health, or of a significant loss of property.
(Ordained by Emer. Ord. No. 349-2012, § 1, eff. Sept. 26, 2012)

Sec. 722-1-F. Facility(ies).

"Facility(ies)" means any tangible thing located in any right of way within the city; but shall not include boulevard plantings, ornamental plantings or gardens planted or maintained in the right of way between a person's property and the street edge of pavement.
(Ordained by Emer. Ord. No. 349-2012, § 1, eff. Sept. 26, 2012)

Sec. 722-1-F2. FCC.

"FCC" means the Federal Communications Commission, or any successor thereto.
(Ordained by Emer. Ord. No. 349-2012, § 1, eff. Sept. 26, 2012)

Sec. 722-1-F3. Field Identify.

"Field Identify" means to the locate and mark underground utility facilities at the excavation site.
(Ordained by Emer. Ord. No. 042-2014, § 8, eff. March 19, 2014)

Sec. 722-1-F4. Full.

"Full" means unable to accommodate any additional facilities as determined by the Director in accordance with the principles of public health, safety and welfare, following a reasonable analysis taking into consideration: all applicable law; commonly accepted industry standards; and routine engineering practices.
(Ordained by Emer. Ord. No. 349-2012, § 1, eff. Sept. 26, 2012; Emer. Ord. No. 042-2014, § 6, eff. March 19, 2014)

Sec. 722-1-I. In.

"In," when used in conjunction with right of way, means in, on, above, within, over, below, under or through a right of way.
(Ordained by Emer. Ord. No. 349-2012, § 1, eff. Sept. 26, 2012)

Sec. 722-1-I2. Inspector.

"Inspector" means any person authorized by the Director to carry out inspections related to the provisions of Chapter 722.
(Ordained by Emer. Ord. No. 349-2012, § 1, eff. Sept. 26, 2012)

Sec. 722-1-L. Law.

"Law" means any local, state and/or federal legislative, judicial or administrative order, certificate, decision, statute, constitution, ordinance, resolution, regulation, rule, tariff or other requirement in effect either at the time of execution of Chapter 722 or at any time during the location of, and/or while a provider's facilities are located in the public rights-of-way.
(Ordained by Emer. Ord. No. 349-2012, § 1, eff. Sept. 26, 2012)

Sec. 722-1-O. Ohio Manual of Uniform Traffic Control Devices.

"Ohio Manual of Uniform Traffic Control Devices" means the uniform system of traffic control devices promulgated by the Ohio Department of Transportation pursuant to O.R.C. § 4511.09.
(Ordained by Emer. Ord. No. 349-2012, § 1, eff. Sept. 26, 2012)

Sec. 722-1-O2. O.R.C.

"O.R.C." means the Revised Code of the State of Ohio.
(Ordained by Emer. Ord. No. 349-2012, § 1, eff. Sept. 26, 2012)

Sec. 722-1-O3. Ohio Utility Protection Service.

"Ohio Utility Protection Service" means the utility protection service as defined in O.R.C. § 153.64 and/or § 3781.26 or a statutory successor thereto.
(Ordained by Emer. Ord. No. 349-2012, § 1, eff. Sept. 26, 2012)

Sec. 722-1-O4. Open Video Service.

"Open Video Service" means any video programming services provided to any person through the use of the right of way, which person is certified by the FCC to operate an open video system pursuant to § 651 et seq. of the Telecommunications Act of 1996 (codified at 47 U.S.C. Title VI, Part V), regardless of the facilities used.
(Ordained by Emer. Ord. No. 349-2012, § 1, eff. Sept. 26, 2012)

Sec. 722-1-P. Permit.

"Permit" means a construction permit or revocable street privilege, required for activity within the right of way, as the context requires.
(Ordained by Emer. Ord. No. 349-2012, § 1, eff. Sept. 26, 2012)

Sec. 722-1-P2. Permit Fee.

"Permit Fee" means money paid to the city for a permit to construct in the right of way

as authorized by the Cincinnati Municipal Code including, but not limited to, Chapters 718, 721, 722, and 723 of the Code.
(Ordained by Emer. Ord. No. 349-2012, § 1, eff. Sept. 26, 2012)

Sec. 722-1-P3. Permittee.

"Permittee" means any person to whom a construction permit, minor maintenance permit, or other permit for activity within the right of way that has been granted by the city and not revoked.
(Ordained by Emer. Ord. No. 349-2012, § 1, eff. Sept. 26, 2012)

Sec. 722-1-P4. Person.

"Person" means any natural or corporate person, business association or other business entity including, but not limited to, a partnership, a sole proprietorship, a political subdivision, a public or private agency of any kind, a utility, a provider, a successor or assign of any of the foregoing, or any other legal entity.
(Ordained by Emer. Ord. No. 349-2012, § 1, eff. Sept. 26, 2012)

Sec. 722-1-P5. Potholing.

"Potholing" means the practice of excavating a small section or sections of the street to locate existing underground facilities.
(Ordained by Emer. Ord. No. 349-2012, § 1, eff. Sept. 26, 2012)

Sec. 722-1-P6. Provider.

"Provider" means a person who owns or operates a system in the right of way. The city, county, and cable television operators operating pursuant to a valid Cable Franchise, shall also be considered providers.
(Ordained by Emer. Ord. No. 349-2012, § 1, eff. Sept. 26, 2012)

Sec. 722-1-P7. Public Improvement.

A "Public Improvement" means any construction, reconstruction, improvement, enlargement, alteration, or repair of a building, highway, drainage system, water system, road, street, sidewalk, sidewalk area, alley, sewer, ditch, sewage disposal plant, water works, and all other structures or works of any nature by a public authority. Public improvements include, without limitation, street improvements that enable the public use of the city's street network by both automobile and public non-automobile modes of transportation (e.g., transportation by pedestrian way, bicycle, public bus, or public streetcar).
(Ordained by Emer. Ord. No. 349-2012, § 1, eff. Sept. 26, 2012)

Sec. 722-1-P8. PUCO.

"PUCO" means the Public Utilities Commission of Ohio as defined in O.R.C. § 4901.02.
(Ordained by Emer. Ord. No. 349-2012, § 1, eff. Sept. 26, 2012)

Sec. 722-1-R. Restoration.

"Restoration" means the process and the resultant effects by which a right of way is returned to a condition as good as or better than its condition immediately prior to the construction. Restoration shall occur in accordance with the rules and regulations for making openings in a right of way as amended from time to time.
(Ordained by Emer. Ord. No. 349-2012, § 1, eff. Sept. 26, 2012)

Sec. 722-1-R2. Right(s) of Way.

"Right(s) of Way" means the surface and space in, above, within, over below, under or through any real property in which the city has an interest in law or equity, whether held in fee, or other estate or interest, or as a trustee for the public, including, but not limited to any public street, boulevard, road,

highway, freeway, lane, alley, court, sidewalk, parkway, river, tunnel, viaduct, bridge, conduit, or any other place, area, or real property owned by or under the legal or equitable control of the city that, consistent with the purposes for which it was dedicated, may be used for the purposes of constructing, operating, repairing, or replacing a system. Right of way shall not include buildings, parks, or other public property or easements that have not been dedicated to compatible uses, except to the extent the use or occupation of such property is specifically granted in a permit or by law.
(Ordained by Emer. Ord. No. 349-2012, § 1, eff. Sept. 26, 2012)

Sec. 722-1-R3. Rules and Regulations for Making Openings in a Right of Way.

"Rules and Regulations for Making Openings in a Right of Way" means the rules and regulations governing the making and restoration of openings in streets, alleys, sidewalks, public ways or places of the city drafted under the authority of this Code and on file in the department, including without limitation the city's Right-of-Way Permits and Street Restoration Manual, as amended from time to time.
(Ordained by Emer. Ord. No. 349-2012, § 1, eff. Sept. 26, 2012; Emer. Ord. No. 042-2014, § 9, eff. March 19, 2014)

Sec. 722-1-S. Service(s).

"Service(s)" means the offering of any service for a fee directly to the public, or to such classes of users as to be effectively available directly to the public.
(Ordained by Emer. Ord. No. 349-2012, § 1, eff. Sept. 26, 2012)

Sec. 722-1-S2. SORTA.

"SORTA" means the Southern Ohio Regional Transit Authority or its corporate successor for the limited purposes of providing public transportation.
(Ordained by Emer. Ord. No. 349-2012, § 1, eff. Sept. 26, 2012)

Sec. 722-1-S3. System.

"System" means any system of conduit, cables, ducts, pipes, wires, lines, towers, poles, pole foundations, antennae wave guides, optic fiber, microwave, laser beams and any associated converters, equipment or facilities or utilities designed and constructed for the purpose of producing, receiving, amplifying, delivering or distributing services within the city. A system shall specifically include, but not necessarily be limited to: electric distribution and/or transmission systems, natural or artificial gas distribution and/or transmission systems, water distribution systems, storm sewer systems, sanitary sewer systems, cable television systems, telecommunications systems (whether voice, video, data, or other), fiber optic systems, and wireless communications systems.
(Ordained by Emer. Ord. No. 349-2012, § 1, eff. Sept. 26, 2012; Emer. Ord. No. 042-2014, § 11, eff. March 19, 2014)

Sec. 722-1-S4. System Representative.

"System Representative" means the specifically identified agent/employee of a provider who is authorized to direct field activities of that provider and serve as official notice agent for system related information. Any such system representative shall be required to be available at all times to receive notice of and immediately direct response to system related emergencies or situations.
(Ordained by Emer. Ord. No. 349-2012, § 1, eff. Sept. 26, 2012)

Sec. 722-1-T. Trenchless Technology.

"Trenchless Technology" means, but is not limited to, the use of directional boring, horizontal drilling, microtunneling and other techniques in the construction of underground portions of facilities which result in the least amount of disruption and damage to rights-of-way as possible.
(Ordained by Emer. Ord. No. 349-2012, § 1, eff. Sept. 26, 2012)

Sec. 722-1-U. Underground Facilities.

"Underground Facilities" means all lines, cables, conduits, pipes, posts, tanks, vaults and any other facilities which are located wholly or partially underneath rights-of-way.
(Ordained by Emer. Ord. No. 349-2012, § 1, eff. Sept. 26, 2012)

Sec. 722-1-U2. Utility.

"Utility" means any water, sewer, gas, drainage, sprinkler or culvert pipe and any electric power, telecommunication, signal, communication, or cable television conduit, fiber, wire, cable, or operator thereof.
(Ordained by Emer. Ord. No. 349-2012, § 1, eff. Sept. 26, 2012)

Sec. 722-1-W. Working Day.

"Working Day" means any Monday, Tuesday, Wednesday, Thursday or Friday, but excluding legal holidays observed by the city.
(Ordained by Emer. Ord. No. 349-2012, § 1, eff. Sept. 26, 2012)

Sec. 722-2. Right of Way Administration.

(a) *Administration.* The director shall be the principle city official responsible for the administration of Chapter 722, except as otherwise provided herein. The director may delegate any or all of the duties hereunder to the city engineer or other designee.

(b) *Right-of-Way Occupancy.* Each person who occupies, uses or seeks to occupy or use the right-of-way to operate a system located in the right-of-way, or who has, or seeks to have, a system located in any right-of-way, shall be subject to the requirements of Chapter 722, including persons operating under a permit, license or franchise issued by the city prior to the effective date of this Chapter, except that nothing in this chapter shall control as against the express terms of a valid franchise granted to a public utility to occupy the right-of-way.

A permit, license, franchise, or other permission for a provider to use or occupy the right of way is a nonexclusive, limited right to occupy the right-of-way in the city, for the limited purposes and for the limited period stated in the permit, license, or franchise, and in accordance with the requirements of this chapter. Permits to occupy the right-of-way may not be subdivided or subleased; provided, however, that two or more providers may co-locate facilities in the same area of the right-of-way so long as each such provider complies with the provisions of this chapter. A permit does not excuse a provider from obtaining appropriate access or pole attachment agreements before collocating its facilities on facilities of others, including the city's facilities.
(Ordained by Emer. Ord. No. 349-2012, § 1, eff. Sept. 26, 2012; Emer. Ord. No. 042-2014, § 13, eff. March 19, 2014)

Sec. 722-3. Construction Permit.

(a) Permit Required for Construction in Right of Way. The director is charged with regulating the right of way for the construction, maintenance, and repair of streets, sidewalks, sidewalk spaces, alleys, public ways and places, and no provider , whether

an abutting owner or not, shall do or permit to be done by his agents or employees without having first obtained from the director a permit under Chapter 718, Chapter 719, Chapter 721, Chapter 722, or Chapter 723, any of the following acts:

(i) Make any excavation or dig into any street, sidewalk, sidewalk space, alley, or other portion of the right of way;

(ii) Remove, break or make holes in any pavement of the roadway or sidewalk or in any sidewalk space or any curb;

(iii) Construct, build, erect, or place any thing or structure in, upon, over, or under a street, sidewalk, sidewalk space, alley, or public way or place;

(iv) Make an improvement to the surface of any street, sidewalk, sidewalk space, alley, or public way or place by grading or paving, or construct or repair a sidewalk or curb, or make any other improvement thereto;

(v) Occupy or obstruct the right-of-way for purposes of accessing or maintaining facilities; or

(vi) Engage in construction or demolition activities, make any street opening, place any obstruction, or otherwise perform work within, or in proximity to, the streetcar right-of-way that requires the power-down or shutdown of the streetcar transit system or that otherwise materially interferes with the operation of the streetcar transit system.

(b) *Repealed.*

(c) *Other Approvals, Permits, and Agreements.* Providers shall obtain any and all regulatory approvals, permits, authorizations, or licenses necessary for the offering or provision of such services from the appropriate federal, state and local authorities and upon the city's reasonable request, shall provide copies of such documents to the city. Further, permission to occupy the right-of-way shall not entitle a provider to use, alter, convert to, or interfere with, the facilities, easements, poles, conduits, lines, pipelines, wires, fiber, cable or any other real or personal property of any kind whatsoever under the management or control of the city.

(d) *Conditions for Providers Occupying the Right of Way*. In order to provide for the safe and effective management of the right of way by the city and in addition to the requirements imposed by the Cincinnati municipal code, providers shall:

(i) Prioritize efficient, and least obtrusive use of right of way, consistent with safety, and to minimize traffic and other disruptions including street cuts; and

(ii) Participate in the department of transportation and engineering's construction coordination system using Cincinnati Area Geographic Information System ("CAGIS") for joint planning, construction, and advance notification of the provider's capital improvement and capital replacement projects located within the right of way. On a continuing basis, providers shall identify all capital work planned within three years, enter the planned work into the CAGIS-based construction coordination system, and make updates as necessary to maintain accuracy of the construction coordination system. Noncompliance with construction coordination requirements shall be grounds for denial of a construction permit; and

(iii) Upon written notice, and at the direction of the director, promptly remove or rearrange facilities as necessary for public safety; and

(iv) Perform all work, construction, maintenance or removal of facilities within the right of way, including tree trimming, in accordance with good engineering, construction and arboricultural practice including any appropriate state building codes, safety codes and law and use best efforts to repair and replace any street, curb or other portion of the right of way, or facilities located therein, to a condition to be determined by the director to be adequate under current standards and not less than materially equivalent to its condition prior to such work and to do so in a manner which minimizes any inconvenience to the public, the city and other providers, all in accordance with all applicable provisions of this chapter and the Cincinnati municipal code; and

(v) Construct, install, operate and maintain its facilities and system in a manner consistent with all applicable laws, ordinances, construction standards and governmental requirements including, but not limited to, the national electric safety code, national electric code and applicable FCC or other federal, state and/or local regulations; and

(vi) Comply with CMC Section 743-19, "Protection of Public Trees," which prohibits providers from performing work within 15 feet of a public tree without first obtaining a permit for such work from the urban forestry division of the Cincinnati parks' department; and

(vii) Warrant that all worker facilities, conditions and procedures that are used during construction, installation, operation and maintenance of the provider's facilities within the right of way shall comply with all applicable standards of the federal occupational safety and health administration; and

(viii) Use its best efforts to cooperate with the city in any emergencies involving the right of way; and

(ix) Weather permitting, remove all graffiti within 30 calendar days of notice. Provider shall remove any and all graffiti on any of the provider's facilities located within the city right-of-way. Should the provider fail to do so, the city may take action to remove the graffiti and bill the provider for the cost thereof; and

(x) Field identify its facilities in the right of way in accordance with the requirements set forth in the Ohio revised code and the Cincinnati municipal code, including, but not limited to, CMC Section 722-5(a); and

(xi) When applicable, obtain a separate streetcar power-down or shutdown permit pursuant to CMC Section 723-79. Permittee shall have valid authorization from the streetcar transit system when required for work occurring within, or in proximity to, the right of way of a streetcar route.

(Ordained by Emer. Ord. No. 349-2012, § 1, eff. Sept. 26, 2012; Emer. Ord. No. 042-2014, § 15, eff. March 19, 2014; a. Ord. No. 090-2018, § 1, eff. June 2, 2018; a. Ord. No. 297-2021, §§ 1, 2, eff. June 23, 2021)

Sec. 722-4. Location and Relocation of Provider Facilities.

(a) *Location of Facilities.*

(i) The placement of new facilities and replacement of old facilities, either above ground or underground, shall be completed in conformity with applicable laws, including, but not

limited to, the Cincinnati municipal code, the city street restoration book, and applicable city regulations.

(ii) The director shall have the right to dictate the location, including both horizontal and vertical placement, of a new or relocated facility that is placed within the right-of-way.

(iii) The director shall have the power to prohibit or limit the placement of new or additional facilities within the right-of-way if the right of way is full. In making such decisions, the director shall strive to the extent possible to accommodate all existing and potential users of the right-of-way, but shall be guided primarily by considerations of the public health, safety and welfare, the condition of the right of way, the time of year with respect to essential utilities, the protection of existing facilities in the right of way, future city, county, and state plans for public

improvements, development projects which have been determined to be in the public interest, and nondiscriminatory and competitively neutral treatment among providers.

(iv) Any new or relocated facility that is located in a designated underground district shall be located underground.

(b) *Least Disruptive Technology.* All construction or maintenance of facilities shall be accomplished in the manner resulting in the least amount of damage and disruption of the right of way. Specifically, every permittee when performing underground construction, if required by the director shall utilize trenchless technology, including, but not limited to, horizontal drilling, directional boring, and microtunneling. When the above methods are used the permittee shall perform potholing to locate existing utilities prior to starting the work. In addition, the director or the director's designee may require all cable, wire or fiber optic cable installed in the subsurface right of way pursuant to this chapter to be installed in conduit, and if so required, no cable, wire or fiber optic cable may be installed pursuant to this chapter using "direct bury" techniques.

(c) *Relocation of Facilities.*

(i) A provider shall, at its own expense, temporarily or permanently remove, relocate, change or alter the position of any facilities in the right-of-way whenever the director shall have determined that such removal, relocation, change or alteration is reasonably necessary for any one of the following reasons:

(A) the need to construct, repair, maintain, improve or use the right of way or public property;

(B) the construction, reconstruction, repair, maintenance or installation of any public improvement in or on the right of way; or

(C) the public health, safety, and welfare requires it.

(ii) No provider shall, without reasonable compensation, be required by the city to:

(A) relocate, change, support, hold, or alter the position of any facility for the benefit of a third party unless that party is performing services in the right of way on behalf of the city or installing facilities that will be owned by the city;

(B) relocate, change, support, hold, or alter the position of any facility for the benefit of a municipal utility providing the same service as and competing for customers with any provider in the city right-of-way;

(C) relocate, change, support, hold, or alter the position of any facility for a municipal water or sewer utility performing maintenance and upkeep of existing facilities in the public right-of-way; or

(D) relocate, change, support, hold, or alter the position of any facility for a non-transportation related aesthetic improvement.

(iii) If a provider disputes a director determination of provider responsibility for relocation costs under Section 722-4(c), provider shall nonetheless coordinate and perform the relocation work in accordance with Section 722-5(a) pending resolution of the cost dispute in the appropriate legal forum.

(iv) Notwithstanding the foregoing, a provider who has facilities in the right of

way subject to a vacation or narrowing that is not required for the purposes of the city, shall have a permanent easement in such vacated portion or excess portion in conformity with O.R.C. § 723.04.1.

(Ordained by Emer. Ord. No. 349-2012, § 1, eff. Sept. 26, 2012; Emer. Ord. No. 042-2014, § 17, eff. March 19, 2014)

Sec. 722-5. Utility Coordination and General Construction Obligations.

The following utility coordination and general construction obligations serve to promote the safe, efficient, and fair management of provider access to limited space within the public right-of-way. A provider shall comply with the following requirements as a condition for receiving permits to work in the public right-of-way.

(a) *Utility Coordination for Public Improvement Projects*. For public improvement projects in the public right-of-way, providers shall comply with specific coordination and relocation procedures set forth below in addition to other requirements of the Cincinnati Municipal Code. A provider that fails to comply with CMC Section 722-5(a) may be subject to civil penalties and reimbursement claims for delay costs as set forth in CMC Section 722-7.

(i) *Step 1 - Identification and field marking*. Providers shall field identify and provide written records of their facilities in the right-of-way within 30 days of being notified by the director that such identification is necessary for the city to begin planning for the construction, paving, maintenance, repair, relocation, or other alteration of any street or area in the public right-of-way. Providers shall comply with the following requirements for field identification of facilities:

(A) Each provider shall field identify all its facilities within the project area in a manner that is clearly legible from the ground, consistent with industry best practices, and in compliance with city and state rules and regulations;

(B) If standard field identification methods would potentially create a safety problem or violate any safety code, then permittee shall request approval from the director for alternative methods of marking facilities; and

(C) Providers shall supply the department plans and records of all recorded and verified utilities within the project limits.

(ii) *Step 2 - Verification and relocation.* The city shall include facility identification information provided in Step 1, above, in the preliminary construction drawings, which will be transmitted to providers together with preliminary roadway alignment drawings. Upon receiving preliminary construction drawings from the city, provider shall respond to the department as follows:

(A) Provider shall review the preliminary construction drawings and reply within 30 days to confirm the locations of the facilities shown on the drawings or correct the drawings to accurately show the location of provider's facilities;

(B) Provider shall identify any conflicts with provider facilities and the proposed improvement work, identify the scope of relocation work necessary to remedy the conflict(s), and identify any other work proposed by the provider within the project limits;

(C) Provide the city with a description of the proposed work as identified in 722-5(a)(ii)(B) and an estimated time frame needed for the completion of provider's project-related work; and

(D) The city will use the scope and estimated time as provided in 722-5 (a)(ii)(C) to develop a project schedule. Provider shall be given a reasonable time prior to construction to permanently or temporarily move its facilities or, alternatively, if project conditions allow, the city and provider may agree to coordinate relocation with construction contractor to whom the contract for a public improvement is awarded. If the time frame requested by provider is not reasonable and conflicts with the city's project schedule, then provider shall take reasonable steps to revise its time frame to fit within the project schedule. Once agreed to by the provider and the city the project schedule will be incorporated into the project bid documents as stated in 722-5(a)(iii).

(iii) *Step 3 - Final Drawings and Schedule*. The department will utilize the information obtained from providers in Steps 1 and 2, above, to create final construction plans and a schedule for utility work for the public improvement project. The final plans and schedule will be transmitted to each affected provider for final review and verification. If provider does not respond to the city within 14 days of receipt of final plans and schedule, provider shall be deemed to have concurred and verified the contents of the construction plans and schedules. The city shall rely upon provider-verified plans and schedules for contractor procurement (e.g., in a 4A note to contractor) and construction purposes.

(iv) *Step 4 - Utility Coordination with Contractor during Construction*. Prior to the start of construction of the public improvement, the city shall notify providers of known utilities within the limits of the construction area of the name of the contractor and the schedule for the proposed work. Each affected provider shall coordinate with the city's contractor when requested to locate utilities and perform needed relocation work. In the event of a conflict with an unidentified or mislocated utility during construction, the affected provider shall be promptly notified of the conflict. Upon notification, the provider shall take steps to resolve the utility conflict and to complete the removal or relocation within a reasonable time specified by the director or director's designee. If provider fails

to act diligently to remove or relocate the obstructing facilities, the director may employ the necessary labor, tools, and equipment to remedy provider noncompliance, including removal or relocation of such facilities. The city shall have no liability for any damage caused by such action and provider shall be liable to the city for all reasonable costs incurred by the city in such action.

(v) *Failure to Comply with CMC Section 722-5.* If provider does not comply with the requirements of CMC Section 722-5, then the director may issue a notice of civil offense and civil fine and issue administrative orders as provided in CMC Section 722-7 to bring about compliance. As provided in CMC Section 722-7, a provider may be required to reimburse the city for delay costs and/or costs of remedial work incurred by the city.

(b) *Construction Schedule for Utility Work, Generally.* All work by a provider within the public right-of-way shall be performed within a reasonable amount of time and shall be diligently pursued by the permittee, irrespective of the public or non-public character of the work. With the exceptions of public improvement project work subject to Section 722-5(a) and emergency work subject to CMC Section 722-6(c), permittee shall submit a written construction schedule to the city not less than five working days prior to commencing work in the right of way and shall notify the city not less than one working day prior to excavation in the right of way.

(c) *General Permittee Obligations.*

(i) Obtaining a construction permit does not relieve permittee of its duty to obtain all other necessary permits, licenses, and authority and to pay all fees required by any other city, county, state or federal laws.

(ii) Permittee shall comply with Ohio Utility Protection Service requirements.

(iii) Permittee shall perform all work in conformance with all applicable laws and standards, and is responsible for all work done in the right-of-way pursuant to its permit, regardless of who performs the work.

(iv) No right-of-way obstruction or excavation may be performed when seasonally prohibited or when conditions are unreasonable for such work, except in the case of an emergency as outlined in Section 722-6(c).

(v) Permittee shall not obstruct a right-of-way so that the natural free and clear passage of water through the gutters or other waterways shall be interfered with.

(vi) Private vehicles other than necessary construction vehicles may not be parked within or adjacent to a permit area. The loading or unloading of trucks adjacent to a permit area is prohibited unless specifically authorized by the permit.

(Ordained by Emer. Ord. No. 042-2014, § 17, eff. March 19, 2014)

Sec. 722-6. Enforcement of Permit Obligation.

(a) *Mandatory Denial of Permit.* Except in the case of an emergency, no construction permit or minor maintenance permit will be granted:

(i) To any person who has not yet made an application; or

(ii) If, in the discretion of the director, the issuance of a permit for the particular date and/or time would cause a conflict or interfere with an exhibition, celebration, festival, or any other event. The director, in exercising this discretion, shall be guided by the safety and convenience of ordinary travel of the public over the right of way, and by considerations relating to the public health, safety and welfare.

(b) *Permissive Denial of Permit.* The director may deny a permit in order to protect the public health, safety and welfare, to prevent interference with the safety and convenience of public travel over the right of way, or when necessary to protect the right of way and its users.

(i) The director, in his or her discretion, may consider one or more of the following factors:

(A) The extent to which right-of-way space where the permit is sought is available; and/or

(B) The competing demands for the particular space in the right of way; and/or

(C) The availability of other locations in the right of way or in other rights of way for the proposed facilities; and/or

(D) The applicability of this chapter or other regulations of the right-of-way that affect location of facilities in the right of way; and/or

(E) The degree of compliance of provider with the terms and conditions of its permits, this chapter, and other applicable ordinances and regulations; and/or

(F) The degree of disruption to surrounding communities and businesses that will result from the use of that part of the right of way; and/or

(G) The condition and age of the right of way, and whether and when it is scheduled for total or partial re-construction; and/or

(H) The balancing of the costs of disruption to the public and damage to the right-of-way, against the benefits to that part of the public served by the expansion into additional parts of the right-of-way; and/or

(I) Whether such applicant or its agent has failed within the past three years to comply, or is presently not in full compliance with, the requirements of this chapter or, if applicable, any other law.

(c) *Work Done Without a Permit in Emergency Situations.*

(i) Each provider shall, as soon as is practicable, immediately notify the director of any event regarding its facilities which it considers to be an emergency. The provider may proceed to take whatever actions are necessary in order to respond to the emergency. Within one working day, unless otherwise extended by the director, after the occurrence or discovery of the emergency (whichever is later), the provider shall apply for the necessary permits, pay the fees associated therewith and fulfill the rest of the requirements necessary to bring itself into

compliance with this chapter for any and all actions taken in response to the emergency. In the event that the city becomes aware of an emergency regarding a provider's facilities, the city shall use best efforts to contact the provider or the system representative of each provider affected, or potentially affected, by the emergency. In any event, the city may take whatever action it deems necessary in order to respond to the emergency, the cost of which shall be borne by the provider whose facilities caused the emergency. Nothing in this section shall alter any emergency permitting requirements applicable to work occurring along a streetcar public way.

(ii) Except in the case of an emergency, any provider who constructs in, on, above, within, over, below or through a right-of-way without a valid permit must subsequently obtain a permit, pay double the normal fee for said permit, pay triple all the other fees required by the Cincinnati municipal code, deposit with the city the fees necessary to correct any damage to the right-of-way and comply with all of the requirements of this chapter, including payment of any additional fines or penalties applicable under the code.

(d) *Revocation of Permits.*

(i) Permittees hold permits issued pursuant to this code as a privilege and not as a right. The city reserves its right, as provided herein, to revoke any permit, without refunding any fees, in the event of a substantial breach of the terms and conditions of any law, or any provision or condition of the permit. A substantial breach by permittee shall include, but shall not be limited to, the following:

(A) The violation of any provision or condition of the permit; or

(B) An evasion or attempt to evade any provision or condition of the permit, or the perpetration or attempt to perpetrate any fraud or deceit upon the city or its citizens; or

(C) Any material misrepresentation of fact in the application for a permit; or

(D) The failure to maintain the required construction or removal bonds and/or insurance; or

(E) The failure to complete the construction in a timely manner.

(ii) If the director determines that the permittee has committed a substantial breach of a term or condition of any law or any condition of the permit, the director and engineering shall serve a written demand upon the permittee to remedy such violation. The demand shall state that continued violations may be cause for revocation of the permit. Upon a substantial breach, as stated above, the director may place additional or revised conditions on the permit.

(iii) By the close of the next working day following receipt of notification of the breach, permittee shall contact the director with a plan, acceptable to the director, for its correction. Permittee's failure to so contact the director, or the permittee's failure to submit an acceptable plan, or permittee's failure to reasonably implement the approved plan, shall be cause for immediate revocation of the permit.

(iv) If a permittee commits a second substantial default as outlined above, permittee's permit may be automatically revoked and the permittee may not be

allowed further permits for up to and including one full year, except for emergency repairs.

(v) If a permit is revoked, the permittee shall also reimburse the city for the city's reasonable costs, including restoration costs and the costs of collection and reasonable attorneys' fees incurred in connection with such revocation.

(Ordained by Emer. Ord. No. 349-2012, § 1, eff. Sept. 26, 2012; Emer. Ord. No. 042-2014, § 19, eff. March 19, 2014)

Sec. 722-7. Administrative Orders.

In addition to or in lieu of any other remedies provided by law, if a person violates any of the provisions of this chapter, or fails to take the corrective action set out in a notice provided for in CMC Section 722-5(a) by the date provided in the notice, the director, or the director's designee, may issue an administrative order or orders containing any of the following measures:

(a) Notice of violation and remedial action related to the violation, including an order requiring provider to submit a remedial action plan to the city to bring about compliance with this chapter;

(b) Issuance of a Notice of Civil Offense and Civil Fine against the permittee for committing a Class D civil offense;

(c) An order that provider reimburse delay costs incurred by the city as a result of provider failure to comply with CMC Section 722-5. Upon incurring delay costs, the director may order provider to reimburse the city for such costs if the following conditions are met:

(i) The director or director's designee gave notice of the public improvement project to provider consistently with CMC Section 722-5(a)(i)—(iv);

(ii) For delay caused by conflicts with provider's facilities occurring after the start of construction, the city and/or contractor notified provider of potential liability for delay costs promptly after discovering the conflict;

(iii) For delay caused by provider's failure to meet the final schedule developed pursuant to 722-5(a), the city and/or contractor notified provider of potential liability for delay costs promptly after discovering that provider would not meet the required schedule;

(iv) Provider shall not be responsible for reimbursement of any portion of delay costs that were caused solely by matters outside of provider's control. Provider ignorance of the location of its own facilities (vertical and horizontal location) is no defense against responsibility for reimbursement of delay costs.

(d) An order that provider reimburse the city for costs of relocation work performed by the director or director's agent pursuant to CMC Section 722-5(a)(iv). Upon incurring costs under CMC Section 722-5(a)(iv), the director may order provider to reimburse the city for such costs if the following conditions are met:

(i) The director provided notice of the public improvement project to provider consistently with CMC Section 722-5(a)(i)-(iv);

(ii) The city and/or contractor notified provider of the facility conflict and gave provider a reason-

able amount of time to commence the relocation work prior to city remedial action; and

(iii) Prior to initiating city relocation work, the director notified provider in writing that failure to commence and diligently pursue the required relocation work as required by the director would result in the city taking steps to relocate provider's facilities in order to remedy provider's noncompliance with CMC Section 722-5(a)(iv).

(Ordained by Emer. Ord. No. 042-2014, § 24, eff. March 19, 2014)

Sec. 722-8. Notice of Violation, Remedial Action and Civil Fine.

Upon issuance of an administrative order for a notice of violation or a civil fine provided in CMC Section 722-7, the director shall serve upon the provider a written notice in accordance with CMC Section 1501-13.

A person served with a written notice pursuant to this section may answer the charge in accordance with Section 1501-15, including an offer of proof of correction, if applicable, in accordance with Section 1501-19 within seven days of receipt of the notice by the person being charged.

For purposes of denying a civil violation of this chapter, or offering proof of correction, the procedures contained in Section 1501-13 to Section 1501-31 shall apply to the person being charged.

(Ordained by Emer. Ord. No. 042-2014, § 25, eff. March 19, 2014)

Sec. 722-9. General Provisions.

(a) *Non-Exclusive Remedy.* The remedies provided in this chapter are not exclusive or in lieu of other rights and remedies that the city may have under the Cincinnati municipal code, or at law, or in equity. The city is hereby authorized at any time to seek legal and equitable relief for actual or threatened injury to the public right of way, including damages to the right of way, whether caused by a violation of any of the provisions of this chapter or other provisions of this code.

(b) *Severability.* If any section, subsection, sentence, clause, phrase, or portion of this chapter is for any reason held invalid or unconstitutional by any court or administrative agency of competent jurisdiction, such portion shall be deemed a separate, distinct, and independent provision and such holding shall not affect the validity of the remaining portions thereof. If a regulatory body or a court of competent jurisdiction should determine by a final, non-appealable order that any permit, right or any portions of this section are illegal or unenforceable, then any such permit or right granted or deemed to exist hereunder shall be considered as a revocable permit with a mutual right in either party to terminate without cause upon giving 60 days' written notice to the other. The requirements and conditions of such a revocable permit shall be the same requirements and conditions as set forth in the permit or right, respectively, except for conditions relating to the term of the permit and the right of termination. If a permit or right shall be considered a revocable permit as provided herein, the permittee must acknowledge the authority of the city to issue such revocable permit and the power to revoke it.

(c) *Reservation of Regulatory and Police Powers.* The city, by the granting of a permit pursuant to this chapter, does not surrender or to any extent lose, waive, impair, or lessen the lawful powers and rights, which it has now or may be hereafter vested in the city under the constitution and laws of the United States, state of Ohio and under the charter of the city of Cincinnati to regulate the use of the right of way. The permittee by its accep-

tance of a permit for work in the right of way, is deemed to acknowledge that all lawful powers and rights, regulatory power, or police power, or otherwise as now are or the same as may be from time to time vested in or reserved to the city, shall be in full force and effect and subject to the exercise thereof by the city at any time. A permittee or provider is deemed to acknowledge that its rights are subject to the regulatory and police powers of the city to adopt and enforce general ordinances necessary to the safety and welfare of the public and is deemed to agree to comply with all applicable general laws and ordinances enacted by the city pursuant to such powers.

(d) *Method of Service.* Any notice or order of the director or city manager shall be deemed to be properly served if a copy thereof is:

(i) Delivered personally; or

(ii) Successfully transmitted via facsimile transmission to the last known fax number of the person to be served; or

(iii) Left at the usual place of business of the person to whom it is to be served upon and with someone who is 18 years of age or older; or

(iv) Sent by certified, preposted U.S. mail to the last known address; or

(v) If the notice is attempted to be served by certified, preposted U.S. mail and then returned showing that the letter was not delivered, or the certified letter is not returned within 14 days after the date of mailing, then notice may be sent by regular, preposted, first-class U.S.; or

(vi) If the notice is attempted to be served by regular, first class U.S. mail, postage prepaid, and the letter is then returned showing that the letter was not delivered, or is not returned within 14 days after the date of mailing, then notice shall be posted in a conspicuous place in or about the structure, building, premises or property affected by such notice.

(e) *Applies to All Providers.* This chapter shall apply to all providers and all permittees unless expressly exempted.

(f) *Police Powers and Charter Authority.* All persons' rights are subject to the police powers of the city to adopt and enforce ordinances necessary to the health, safety and welfare of the public. All persons shall comply with all applicable laws enacted by the city pursuant to its police powers. In particular, all persons shall comply with city zoning and other land use requirements pertaining to the placement and specifications of facilities. In addition, all persons' rights under this chapter shall be subject to the city's home rule charter authority over the use of the public right-of-way.

(g) *Compliance.* No person shall be relieved of its obligation to comply with any of the provisions of this chapter by reason of any failure of the city to enforce prompt compliance.

(h) *Choice of Law and Forum.* This chapter and the terms and conditions of any permit or enforcement action under this chapter shall be construed and enforced in accordance with the substantive laws of the City of Cincinnati, State of Ohio, and United States, in that order. As a condition of the grant of any permit all disputes shall be resolved in a court of competent jurisdiction in Hamilton County, Ohio.

(i) *Force Majeure.* In the event any person's performance of any of the terms, conditions or obligations required by this chapter is prevented by a cause or event not within such person's control, such inability to perform shall be deemed excused and no penalties or sanctions shall be imposed as a

result thereof. For the purpose of this section, causes or events not within the control of a provider shall include, without limitation, acts of God, strikes, sabotage, riots or civil disturbances, failure or loss of, explosions, acts of public enemies, and natural disasters such as floods, earthquakes, landslides, and fires.

(j) *No Warranty.* The city makes no representation or warranty regarding its right to authorize the construction of facilities on any particular right of way. The burden and responsibility for making such determination shall be upon the person installing facilities in the right of way.

(k) *City Standards.* As part of city-required standards wherever the right of way is under construction, if deemed advisable and practicable by the director, the city may install all such facilities deemed necessary to accommodate future provider needs. Any such installed facilities shall be city property and may be conveyed to any person under such terms and conditions as are deemed advisable by the city manager.
(Ordained by Emer. Ord. No. 349-2012, § 1, eff. Sept. 26, 2012; Emer. Ord. No. 042-2014, § 22, eff. March 19, 2014)

Sec. 722-99. Penalties.

A violation of any provision of Chapter 722 is a Class D Civil Offense.
(Ordained by Emer. Ord. No. 349-2012, § 1, eff. Sept. 26, 2012; Emer. Ord. No. 042-2014, § 26, eff. March 19, 2014; a. Ord. No. 090-2018, § 1, eff. June 2, 2018)

Chapter 723

STREETS AND SIDEWALKS, USE REGULATIONS*

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*__Cross references—__Franchise period for use of streets, § 404-4; sidewalk or street parking, § 413-25; driving on sidewalk area, § 506-63; cleaning vehicle on street, § 511-3; spitting in a public place, § 601-17; peddlers and itinerant vendors, ch. 839.

Sec. 723-42. Mobile Food Vending.
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Sec. 723-99-G. Repealed.
Sec. 723-99-H. Repealed.
Sec. 723-99-I. Violation of Section 723-57 or 723-59.
Sec. 723-99-J. Violation of Section 723-79.

Sec. 723. Applicability.

The standards set forth in this chapter apply to the use of streets, sidewalks and public rights-of-way and the placement of structures upon said streets, sidewalks and public rights-of-way, including, but not limited to:

(a) Benches and other street furniture

(b) Planters

(c) Sandwich board signs

(d) Parcel drop-off boxes

(e) Newsracks

(f) Retail sidewalk displays

(g) Bus stop shelters

(h) Outdoor dining areas

(i) Informational kiosks

(j) Sidewalk vending

(k) Awnings, Marquees and Projecting Signs

(l) Mailboxes

(m) Mobile food vending

(n) Bike share stations

(o) Parking sign pylons

(p) Access ramps for persons with mobility impairments

(q) Temporary signs or banners in accordance with duly enacted City event promotion policy

Structures not provided for within these regulations are not allowed within the city rights-of-way unless specifically permitted elsewhere in the Cincinnati Municipal Code. This chapter shall not apply to the following activities, which are governed by other city policies or sections of the Cincinnati Municipal Code:

(a) Placement of lines or conduit by any public utility

(b) Public Assemblies and Special events (CMC Chapter 883 and CMC Chapter 765)

(c) Street construction (CMC Chapter 721)

(d) Public parks (Regulations of the City of Cincinnati Park Board)

(e) Building encroachments within the rights-of-way (CMC Title XI - Cincinnati Building Code), except as set forth in CMC 723-27, "Access Ramps"

(f) Designated markets (CMC Chapter 845)

(g) Pay telephones (CMC Chapter 405)

(h) Ticket Sales (CMC Chapter 840)

(i) Peddlers and Itinerant Vendors (CMC Chapter 839)

(j) Way-finding signs placed by the City of Cincinnati.

(C.O. 702; renumbered to C.M.C. 723, eff. Jan. 1, 1972; a. Ord. No. 363-2009, § 1, eff. Jan. 16, 2010; Emer. Ord. No. 096-2013, § 1, eff. April 17, 2013; Emer. Ord. No. 295-2013, § 1, eff. Sept. 25, 2013; a. Ord. No. 0186-2017, § 1, eff. Sept. 9, 2017; a. Ord. No. 337-2017, § 1, eff. Jan. 6, 2018; Emer. Ord. No. 026-2018, § 1, eff. Feb. 22, 2018; a. Ord. No. 416-2024, § 2, eff. December 11, 2024)

Sec. 723-1. Definitions.

For purposes of this chapter, the following words used in this Chapter 723 shall have the meanings ascribed to them in this Section 723-1 and its Subsections, regardless of whether or not the words and phrases are capitalized.

(Ordained by Ord. No. 363-2009, § 1, eff. Jan. 16, 2010; Emer. Ord. No. 096-2013, § 1, eff. April 17, 2013; Emer. Ord. No. 295-2013, § 1, eff. Sept. 25, 2013; a. Ord. No. 0186-2017, § 1, eff. Sept. 9, 2017; a. Ord. No. 337-2017, § 1, eff. Jan. 6, 2018)

Sec. 723-1-A1. Access Ramps.

"Access Ramp" means ramp or similar accessibility features located all or partly within the public right-of-way for the purpose of improving access to a structure for persons with mobility impairments.
(Ordained by Ord. No. 337-2017, § 1, eff. Jan. 6, 2018)

Sec. 723-1-A2. Advertising.

"Advertising" means all commercial and non-commercial messages whether verbal or non-verbal but does not include sponsorships.
(Ordained by Ord. No. 337-2017, § 1, eff. Jan. 6, 2018)

Sec. 723-1-A3. Awning.

"Awning" means an architectural projection that provides weather protection, identity or decoration and is wholly supported by the building to which it is attached. An awning is comprised of a lightweight, rigid skeleton structure over which a covering is attached. An awning may be fixed or of a type that can be retracted, folded or collapsed.
(Ordained by Ord. No. 337-2017, § 1, eff. Jan. 6, 2018)

Sec. 723-1-B1. Bike Share Station.

"Bike Share Station" means a structure which docks multiple bicycles and offers citizens the ability to access the bicycles for a fee.
(Ordained by Ord. No. 337-2017, § 1, eff. Jan. 6, 2018)

Sec. 723-1-B2. Building Rehabilitation.

"Building Rehabilitation" means alterations to an existing structure that require a building permit under Title XI of the Cincinnati Municipal Code, except that alterations for the primary purpose of adding an access ramp to an existing structure and related minor alterations do not qualify as building rehabilitation for purposes of chapter 723. Projects meeting the definition of new construction under section 723-1 are excluded from the definition of building rehabilitation.
(Ordained by Ord. No. 337-2017, § 1, eff. Jan. 6, 2018)

Sec. 723-1-E. Encumber.

"Encumber" means to place any structure in a way that restricts or blocks free movement within or across the right-of-way.
(Ordained by Ord. No. 337-2017, § 1, eff. Jan. 6, 2018)

Sec. 723-1-I. Informational Kiosk.

"Informational Kiosk" means a fixed, freestanding structure designed for the posting of informational messages.
(Ordained by Ord. No. 337-2017, § 1, eff. Jan. 6, 2018)

Sec. 723-1-M1. Marquee.

"Marquee" means a sign that is painted on, attached to, or made part of a marquee in any manner.
(Ordained by Ord. No. 337-2017, § 1, eff. Jan. 6, 2018)

Sec. 723-1-M2. Mobile Food Vending.

"Mobile Food Vending" means the selling or offering to sell non-alcoholic beverages or ready-to-eat food which has been cooked, wrapped, packaged, processed, or portioned for service, sale, or distribution from a commercially manufactured, motorized or otherwise mobile unit, truck, or cart that is readily movable.
(Ordained by Ord. No. 337-2017, § 1, eff. Jan. 6, 2018)

Sec. 723-1-N. New Construction.

"New Construction" means construction of a new structure from the ground up, including a new building envelope and new structural, mechanical, electrical and plumbing systems.
(Ordained by Ord. No. 337-2017, § 1, eff. Jan. 6, 2018)

Sec. 723-1-P1. Parking Sign Pylon.

"Parking Sign Pylon" means a sign structure mounted to a foundation that identifies the location and availability of Public Parking.
(Ordained by Ord. No. 337-2017, § 1, eff. Jan. 6, 2018)

Sec. 723-1-P2. Projecting Sign.

"Projecting Sign" means a sign that is wholly or partly dependent on a building for support or suspended from a pole attached to a structure and that projects from the building at a perpendicular angle or approximately perpendicular angle.
(Ordained by Ord. No. 337-2017, § 1, eff. Jan. 6, 2018)

Sec. 723-1-R. Rights-of-way.

"Rights-of-way" means those streets and ways dedicated, either by statute or common law, to the use of the public and controlled or maintained by the city.
(Ordained by Ord. No. 337-2017, § 1, eff. Jan. 6, 2018)

Sec. 723-1-S1. Sandwich Board Sign.

"Sandwich Board Sign" means a sign with two hinged, connected, or double-faced boards or other material that can be temporarily placed on or in the ground and is customarily placed on a sidewalk or in a sod strip by an adjacent property owner.
(Ordained by Ord. No. 337-2017, § 1, eff. Jan. 6, 2018)

Sec. 723-1-S2. Sidewalk Vending.

"Sidewalk Vending" means the selling or offering to sell merchandise or food by a person at a particular, fixed location in the public right-of-way located in a designated vending district.
(Ordained by Ord. No. 337-2017, § 1, eff. Jan. 6, 2018)

Sec. 723-1-S3. Structure.

"Structure" means any free-standing or fixed object.
(Ordained by Ord. No. 337-2017, § 1, eff. Jan. 6, 2018)

Sec. 723-1-S4. Skating or Coasting Device.

"Skating or coasting device" includes skateboards, roller skates, roller blades, coasters, scooters, and similar rolling or wheeled devices that are moved by human power. "Skating or coasting device" does not include bicycles; e-scooters and other motorized low-speed micromobility devices; mobility devices regulated by the Americans with Disabilities Act of 1990 and its implementing regulations, including motorized wheelchairs as defined in Section 4511.01 of the Ohio Revise Code or its successor; or personal delivery devices as defined in Section 4511.513 of the Ohio Revised Code or its successor.
(Ordained by Ord. No. 153-2024, § 1, eff. May 15, 2024)

Sec. 723-2. Street Obstructions.

No person shall obstruct any street by erecting thereon any fence, building, or other obstruction or permit any fence, building or other obstruction to remain thereon.
(C.O. 702-1; renumbered to C.M.C. 723-1, eff. Jan. 1, 1972; renumbered by Ord. No. 363-2009, § 1, eff. Jan 16, 2010)

Cross reference—Penalty, § 723-99-A.

Sec. 723-3. Unauthorized Wires, etc., in Streets.

No person, firm, or corporation, or any agent or servant of any person, firm, or corporation shall lay, string or maintain or cause to be laid, strung or maintained, any wire, pipe, subway, conduit or other appliance or construction, on, under or over the surface of any street or public place, except as duly authorized according to law. Each day that any such unauthorized appliance or construction is permitted to remain shall constitute a separate offense.
(C.O. 702-2; renumbered to C.M.C. 723-3, eff. Jan. 1, 1972)

Cross reference—Penalty, § 723-99-B.

Sec. 723-5. Encumbering Sidewalks.

Except as otherwise provided in this chapter, no person shall encumber any street or sidewalk space or other area of the right-of-way with goods, wares, merchandise, structures or other materials.

This section shall not apply to the temporary use of streets and sidewalks for lawful construction purposes or in accordance with the rules of the division of sanitation.
(C.O. 702-3; renumbered to C.M.C. 723-5, eff. Jan. 1, 1972; a. Ord. No. 440-1989, eff. Nov. 15, 1989; a. Ord. No. 363-2009, § 1, eff. Jan. 16, 2010)

Cross reference—Penalty, § 723-99-C.

Sec. 723-6. Revocable Street Privileges Required.

(a) Unless specifically provided herein, no person shall encroach upon, or in any way obstruct or occupy any street, alley, avenue, sidewalk, public grounds, public right-of-way or land dedicated to the public use, or any part thereof, in the city by placing, building, erecting, causing to be placed, built, or erected or allowing to remain thereon any structure without first obtaining a revocable street privilege as governed by Chapter 718 of the Cincinnati Municipal Code.

(b) Except as specifically allowed herein, no structure governed by this chapter and permitted by a revocable street privilege shall contain any type of advertising as defined herein.

(c) All revocable street privileges issued pursuant to this chapter shall be subject to revocation and termination as specified in Chapter 718 of the Cincinnati Municipal Code.

(d) Notwithstanding the provisions of this chapter, all structures placed in designated Urban Design Overlay Districts must conform to the design standards and procedures specified in Chapter 1437 of the Cincinnati Municipal Code and any other design standards adopted for the specific Urban Design Overlay Districts.

(e) Notwithstanding the provisions of this policy, all structures placed in designated Historic Districts must conform to the design standards and procedures specified in Chapter 1435 of the Cincinnati Municipal Code and any other design standards adopted for the specific Historic District.

(f) Nothing in this chapter is intended to prohibit the lawful carrying of signs by an individual in any public place.

(g) All persons desiring to secure a revocable street privilege shall submit an application on a form to be provided by the city manager or his/her designee.

(h) All persons desiring to secure a revocable street privilege shall include a non-refundable application fee of $100.00 for each and every encroachment, obstruction, structure, dining area, kiosk, or other type of occupation requested.

(i) The city shall waive the revocable street privilege application fee required under paragraph (h) of this section for the following:

(1) An application for placement of a planter within the public right-of-way pursuant to Section 723-8; and

(2) An application on behalf of a recognized community council.

(Ordained by Ord. No. 363-2009, § 1, eff. Jan. 16, 2010; a. Ord. No. 228-2017, § 1, eff. Sept. 9, 2017; a. Ord. No. 228-2023, § 1, eff. August 2, 2023)

Cross reference—Penalty, § 723-99-C.

Sec. 723-7. Park Benches.

(a) Donated Benches. The city manager or his designee is authorized to accept donations of park benches from individuals or organizations. Donated park benches shall become the property of the city and shall be placed and maintained solely at the city's discretion.

(b) Privately Owned Benches. The city manager or his designee may grant a revocable street privilege to any person desiring to place and maintain a park bench in the public rights-of-way for use by the general public.

(c) All park benches shall adhere to the following regulations:

1. Park benches may be placed only at transit stops, in recognized Neighborhood Business Districts, or in Planned Development Districts as defined in Chapter 1429 of the Cincinnati Municipal Code, at locations where seating would serve the convenience of the public as determined by the city manager or his designee.

2. Park benches shall be permanently secured to the sidewalk in accordance with a properly obtained sidewalk construction permit issued pursuant to Chapter 721 of the Cincinnati Municipal Code.

3. No advertising may be displayed upon park benches; provided, however, that the name of the donor or sponsor may be displayed on the bench in letters not more than two (2) inches high or shown on a plaque no larger than eight (8) by three and one-half (3½) inches affixed to the bench.

4. Park benches must either conform to the design standards promulgated by the department of city planning, or must be approved by the Urban Design Review Board. The department of transportation and engineering is hereby authorized to promulgate design standards for park benches.

5. Park benches shall be placed:

   i. Only on paved surfaces;

   ii. In a location that is not directly in front of an entrance a building;

   iii. At least six (6) feet from any alley, pedestrian crosswalk, driveway curb cut, curb ramp, fire hydrant or sidewalk café and at least four (4) feet from any bicycle rack;

   iv. Either with the back of the bench set six (6) inches away from the adjacent building (only with prior permission from the property owner) or with the front edge of the bench located two (2) feet from the curb line and in alignment with other authorized street furniture;

   v. In a manner such that the open area available for pedestrian traffic is not less than six (6) feet in front of or behind the bench in

those areas established as business districts as shown on the building zone map ("Neighborhood Business Area"), or in any area designated by the department of transportation and engineering as having a high volume of pedestrian traffic ("High Pedestrian Area"), or less than four (4) feet in all other areas of the city;

vi. In a way that does not block access to buses at bus stops, fire escapes, sidewalk access doors, traffic or street lighting equipment, utility valve boxes or other utility equipment;

vii. In a way that does not obstruct permanent building signage or building display windows (unless prior permission from the property owner has been obtained);

viii. In a way that does not obstruct curb control signage or traffic signal equipment, including pedestrian crosswalk signs.

(d) Persons desiring to secure a revocable street privilege for placement of a park bench within the public rights-of-way shall submit an application on a form to be provided by the city manager or his designee which shall:

1. Identify the name of the applicant;

2. Identify the requested location for the park bench;

3. Identify the name and address of the person authorized to receive notices pursuant to Chapter 718 of the Cincinnati Municipal Code;

4. Include proof of liability insurance in an amount not less than $1,000,000.00. The City of Cincinnati shall be named as an additional insured;

5. Include a non-refundable application fee as set forth in section 723-6 of this chapter;

6. Include the design specifications of the requested bench.

(e) Revocable street privileges for park benches shall not expire, but shall be revocable as set forth in Chapter 718 of the Cincinnati Municipal Code.

(f) Holders of revocable street privileges for park benches must maintain liability insurance in an amount not less than $1,000,000.00 at all times while the revocable street privilege is in effect. The City of Cincinnati shall be named as an additional insured. Proof of insurance shall be provided periodically upon request. Failure to provide proof of insurance may result in the revocation of the revocable street privilege.
(Ordained by Ord. No. 363-2009, § 1, eff. Jan. 16, 2010; Emer. Ord. No. 238-2015, § 6, eff. July 1, 2015; a. Ord. No. 137-2017, § 1, eff. July 14, 2017; a. Ord. No. 0228-2017, § 1, eff. Sept. 9, 2017)

Editor's note—Ord. No. 363-2009, § 1, effective Jan. 16, 2010, repealed the former § 723-7 and enacted a new section as set out herein. The former § 723-7 pertained to wholesale produce areas and derived from C.O. 702-4; and C.M.C. 723-7, eff. Jan. 1, 1972.

Cross reference—Penalty, § 723-99-C.

Sec. 723-8. Planters.

(a) The city manager or his designee may grant a revocable street privilege to any person desiring to place and maintain a planter in the public rights-of-way.

(b) Planters (including plants) shall be placed:

1. In a location that is not directly in front of an entrance to a building;

2. At least six (6) feet from any alley, pedestrian crosswalk, driveway curb cut, curb ramp, fire hydrant or sidewalk café and at least four (4) feet from any bicycle rack;

3. In a manner such that the open area available for pedestrian traffic is not less than six (6) feet in front of or behind the planter in those areas established as business districts as shown on the building zone map ("Neighborhood Business Area"), or in any area designated by the department of transportation and engineering as having a high volume of pedestrian traffic ("High Pedestrian Area"), or less than four (4) feet in all other areas of the city;

4. In a way that does not block access to buses at bus stops, fire escapes, sidewalk access doors, traffic or street lighting equipment, utility valve boxes or other utility equipment;

5. In a way that does not obstruct permanent building signage or building display windows (unless prior permission from the property owner has been obtained);

6. In a way that does not obstruct curb control signage or traffic signal equipment, including pedestrian crosswalk signs.

(c) No advertising may be displayed upon any planter; provided, however, that the name of the donor or sponsor may be displayed on a plaque no larger than eight (8) inches long by three and one-half (3 ½) inches high.

(d) Persons desiring to secure a revocable street privilege for placement of a planter within the public right-of-way shall submit an application on a form to be provided by the city manager or his designee which shall:

1. Identify the name of the applicant;

2. Identify the requested location for the planter;

3. Identify the name and address of the person authorized to receive notices pursuant to Chapter 718 of the Cincinnati Municipal Code;

4. Include proof of liability insurance in an amount not less than $500,000.00. The City of Cincinnati shall be named as an additional insured;

5. Include a non-refundable application fee of $10.00 for each planter requested.

(e) Revocable street privileges for planters shall not expire, but shall be revocable as set forth in Chapter 718 of the Cincinnati Municipal Code.

(f) Holders of revocable street privileges for planters must maintain liability insurance in an amount not less than $500,000.00 at all times while the revocable street privilege is in effect. The City of Cincinnati shall be named as an additional insured. Proof of insurance shall be provided upon request. Failure to provide proof of insurance may result in the revocation of the revocable street privilege.
(Ordained by Ord. No. 363-2009, § 1, eff. Jan. 16, 2010)

Cross reference—Penalty, § 723-99-C.

Sec. 723-9. Sandwich Board Signs.

(a) The owner or operator of a retail business or service is permitted to place one (1) free-standing sandwich board sign on the public sidewalk or sod strip in front of his business premises. Sandwich board signs

shall not require a revocable street privilege, provided they adhere to the following requirements:

1. Sandwich board signs shall be placed either immediately adjacent to the building, or so that the sign's most distant point is no farther than three (3) feet six (6) inches from the curb. Notwithstanding the aforementioned, each sign must permit adequate pedestrian access;

2. The owner or operator of a retail business or service displaying a sandwich board sign on the sidewalk shall maintain a policy of general liability insurance, naming the City of Cincinnati as an additional insured, in an amount of not less than $500,000.00 to cover claims for injuries arising from or related to said sandwich board sign;

3. Sandwich board signs shall be placed on the sidewalk or adjacent sod strip only during the business hours of the establishment and shall be removed at all other times;

4. Notwithstanding any other provision of this section, the owner or operator of a retail business or service maintaining a sandwich board sign on the sidewalk or in the adjacent sod strip shall immediately remove said sign from the sidewalk upon notice given by any Cincinnati Police Officer or authorized employee of the city that the sign is unreasonably obstructing pedestrian traffic or has otherwise created a dangerous condition;

5. The sign shall be constructed of sturdy material, so as to prevent damage during heavy winds or other inclement weather; and

6. The sandwich board sign shall be no larger than two feet six inches (2'6") wide and four feet six inches (4'6") tall.

(Ordained by Ord. No. 363-2009, § 1, eff. Jan. 16, 2010)

Editor's note—Ord. No. 363-2009, § 1, effective Jan. 16, 2010, repealed the former § 723-9 and enacted a new section as set out herein. The former § 723-9 pertained to regulations for wholesale produce areas and derived from C.O. 702-5; and C.M.C. 723-9, eff. Jan. 1, 1972.

Cross reference—Penalty, § 723-99-C.

Sec. 723-10. Parcel Drop-Off Boxes.

(a) The city manager or his designee is authorized to grant a revocable street privilege to any person desiring to place a parcel drop-off box within the public rights-of-way.

(b) Parcel drop-off boxes shall be placed as follows:

1. Only on paved surfaces sitting flush with the sidewalk;

2. Such that the opening for receipt of parcels faces into the sidewalk area;

3. In a location that is not directly in front of an entrance to a building;

4. At least six (6) feet from any alley, pedestrian crosswalk, driveway curb cut, curb ramp, fire hydrant or sidewalk café and at least four (4) feet from any bicycle rack;

5. In a manner such that the open area available for pedestrian traffic is not less than six (6) feet in front of or behind the parcel drop-off box in those areas established as business districts as shown on the building zone map ("Neighborhood Business Area"), or in any area designated by the department of transportation and engineering as having a high volume of pedestrian traffic ("High Pedestrian Area"), or less than four (4) feet in all other areas of the city;

6. In a way that does not block access to buses at bus stops, fire escapes, sidewalk access doors, traffic or street lighting equipment, utility valve boxes or other utility equipment;

7. In a way that does not obstruct permanent building signage or building display windows (unless prior permission from the property owner has been obtained);

8. In a way that does not obstruct curb control signage or traffic signal equipment, including pedestrian crosswalk signs.

(c) Parcel drop-off boxes may contain the name and logo of the mail or parcel delivery service, but shall not contain any other advertising.

(d) Persons desiring to secure a revocable street privilege for placement of a parcel drop-off box within the public right-of-way shall submit an application on a form to be provided by the city manager or his designee which shall:

1. Identify the name of the applicant;

2. Identify the requested location for the parcel drop-off box;

3. Identify the name and address of the person authorized to receive notices pursuant to Chapter 718 of the Cincinnati Municipal Code;

4. Include proof of liability insurance in an amount not less than $1,000,000.00. The City of Cincinnati shall be named as an additional insured;

5. Include a non-refundable application fee of as set forth in section 723-6 of this Chapter.

(e) Revocable street privileges for parcel drop-off boxes shall not expire, but shall be revocable as set forth in Chapter 718 of the Cincinnati Municipal Code.

(f) Holders of revocable street privileges for parcel drop-off boxes must maintain liability insurance in an amount not less than $1,000,000.00 at all times while the revocable street privilege is in effect. The City of Cincinnati shall be named as an additional insured. Proof of insurance shall be provided upon request. Failure to provide proof of insurance may result in the revocation of the revocable street privilege.
(Ordained by Ord. No. 363-2009, § 1, eff. Jan. 16, 2010; a. Ord. No. 0228-2017, § 1, eff. Sept. 9, 2017)

Cross reference—Penalty, § 723-99-C.

Sec. 723-11. Newsracks.

(a) For purposes of this section, the following words and phrases shall have the meanings ascribed to them respectively, regardless of whether or not the words and phrases are capitalized:

1. *Abandon* means to fail to stock any modular newsrack with current publications for sale or distribution to the public for a period of at least ten (10) consecutive days following written notice from the city to the owner or distributor of the publication.

2. *Director* means the director of the department of transportation and engineering for the city, or his designee.

3. *District* means a Modular Newsrack District as defined in this section.

4. *Private newsrack* means a privately owned newsrack, other than a modular newsrack within a modular newsrack container, used to display, sell or

distribute a publication from a public street, sidewalk, place or right-of-way within the city.

5. *Modular newsrack container* means a metallic, box-like container provided by the city with compartments designed to contain modular newsracks and accommodate, at any one time, the display, sale or distribution of multiple and distinct printed publications.

6. *Modular newsrack* means a newsrack designed to fit in a compartment within a modular newsrack container, including the door, coin return mechanism, if any, and associated hardware.

7. *Permit* means an annual license issued by the director to the owner of a publication to install, maintain and use a modular newsrack within a modular newsrack container for the display, sale or distribution of a publication to the public within a Modular Newsrack District.

8. *Publication* means any written or printed material, including, but not limited to, newspapers, periodicals, advertising circulars, and magazines.

9. *Newsrack* means any self-service or coin-operated box, container, storage unit or other dispenser installed, used or maintained for the display, sale or distribution of a publication.

10. *Owner* means the person or legal entity responsible for selling, displaying or distributing a publication.

(b) Modular Newsrack Districts may be established by City Council. Modular Newsrack Districts shall be confined to the following zoning districts: DD, CN-P, CN-M, CC-P, CC-M, CC-A, CG-A.

(c) Private newsracks prohibited. No owner or other person shall place, or allow to remain in place, a private newsrack on a public street, sidewalk, place or right-of-way within any Modular Newsrack District.

(d) Modular newsrack permit required. No person, other than the owner of a publication issued a permit pursuant to section (g) herein shall display, sell or otherwise distribute a publication from a newsrack on a public street, sidewalk, place or right of way within a Modular Newsrack District.

(e) Placement of modular newsrack containers. The director shall place modular newsrack containers at locations convenient to pedestrian use within each Modular Newsrack District.

(f) Application for permit.

1. The owner of a publication applying for a permit to install, maintain and use a modular newsrack within a modular newsrack container for the display, sale or distribution of a publication to the public shall, on an application form furnished by the director:

   i. Identify, by location, the modular newsrack container;

   ii. Identify, by name, the publication;

   iii. Identify, by frequency of issuance, the type of publication (e.g., daily, twice weekly, monthly);

   iv. Identify, by name and address, the person authorized to receive notices sent pursuant to sections (i) and (j) herein, as well as Chapter 718 of the Cincinnati Municipal Code; and

   v. Attach to each application a notarized statement signed by

or on behalf of the owner agreeing to abide by the terms of this section.

2. The owner of a publication shall apply for a permit no sooner than ninety (90) days and no later than forty-five (45) days prior to the effective date of the permit.

3. Subject to sub-section (f) 4, the owner of a publication may apply for more than one permit issued pursuant to sub-section (g), however, a separate application is required for each permit.

4. The owner of a publication may not apply for a permit to display, sell or distribute the same publication from more than one modular newsrack within the same modular newsrack container.

5. A non-refundable application fee as set forth in section 723-6 of this Chapter.

(g) Modular newsrack permit. For each modular newsrack container within a Modular Newsrack District, the director shall proceed as follows:

1. Based on frequency of issuance, assign all applications submitted in accordance with sub-section (f) to one of the following three categories of publications:

   i. Publications issued at least five (5) or more times a week;

   ii. Publications issued one (1) to four (4) times a week; or

   iii. Publications issued less frequently than weekly.

2. Beginning with category i above, issue permits by randomly selecting an application for each available modular newsrack until all applications in category i have been assigned or until all available modular newsrack within the modular newsrack container are filled, whichever occurs first.

3. If available modular newsracks remain after all category i applications have been assigned, proceed to category ii. Issue permits by randomly selecting applications from category ii for each available modular newsrack until all applications in category ii have been assigned, or until all available modular newsracks within the modular newsrack container are filled, whichever occurs first.

4. If available modular newsracks remain after all category ii applications have been assigned, proceed to category iii. Issue permits by randomly selecting applications from category iii for each available modular newsrack until all applications in category iii have been assigned, or until all available modular newsracks within the modular newsrack container are filled, whichever occurs first.

5. Each permit issued pursuant to this section shall be in effect for a period of two (2) years. Permits are renewable only upon the filing of a new application.

(h) Maintenance and use of modular newsracks. The owner of a publication issued a permit pursuant to sections (f) and (g) of this policy shall:

1. Maintain the modular newsrack door and coin return mechanism in good working order and promptly repair any defective or malfunctioning part or replace the defective or malfunctioning part with equipment of like kind and appearance;

2. Permanently affix a label, inconspicuous in size and color, to the modular

newsrack door at a readily visible location, which label shall provide the name, address and 24-hour-operable telephone number of a person or service that customers may call to report a problem or receive a refund in the event of a coin-return malfunction;

3. Not place any advertising on the modular newsrack door, other than a sign identifying the publication contained within the modular newsrack; and

4. Notify the director no less than thirty (30) days prior to the owner's voluntary abandonment of the modular newsrack.

(i) Revocation of permit. Pursuant to this section, the director may revoke the modular newsrack permit of a publication violating any requirement of this chapter. The director shall provide written notice to the owner informing the owner of the violation and specifying a time for taking corrective action. The notice shall also inform the owner that the owner may contest the violation by filing a written appeal with the director within seven (7) days of receiving the notice, and warn the owner that failure to timely correct the violation or file an appeal with the director shall result in revocation of the permit issued to the owner. The director shall hear any appeal timely filed pursuant to this section within ten (10) days of its filing and promptly issue a written decision. The decision of the director is final, subject to judicial review.

(j) Abandonment of modular newsrack.

1. The owner of a publication issued a permit to install, maintain and use a modular newsrack shall not abandon the modular newsrack without first providing at least thirty (30) days prior written notice to the director.

2. The director shall revoke the modular newsrack permit of any modular newsrack abandoned the owner.

(k) Placement of newsracks in areas not designated as Modular Newsrack Districts.

1. The city manager or his designee is authorized to grant revocable street privileges for the placement of newsracks in areas not designated as Modular Newsrack Districts, subject to the following restrictions:

   i. Newsracks may only be located within a qualifying location, as herein defined.

   ii. Only one qualifying location shall be designated per street block face.

   iii. Individual publications are permitted only one newsrack per qualifying location.

   iv. No more than four (4) free-standing newsracks are permitted per qualifying location.

   v. Newsracks must be located such that an unobstructed sidewalk pedestrian corridor of a minimum of four (4) feet is maintained parallel to the street at all times. Where existing obstructions are present (such as fire hydrants), the corridor can be measured to go around these obstructions. For tree grates, the corridor is measured from the outer edge of the grate.

   vi. Newsracks must be placed at least six (6) feet from any alley, pedestrian crosswalk, driveway curb cut, curb ramp, or sidewalk café and at least four (4) feet from any bicycle rack.

vii. Newsracks may contain the name and logo of the publication distributed therein, but shall not contain any other advertising.

viii. Newsracks may not be secured or attached to any building, tree or sidewalk.

ix. Newsrack units must not block building display windows without the prior written consent of the property and/or business owner. A copy of said agreement must be filed with the application for a revocable street privilege.

x. Newsracks must conform to the design specifications promulgated by the department of transportation and engineering. The department of city planning is hereby authorized to promulgate design specifications for newsracks.

2. Persons desiring to secure a revocable street privilege for placement of a newsrack within the public right-of-way in an area not designated as a Modular Newsrack District shall submit an application on a form to be provided by the city manager or his designee which shall:

i. Identify the name of the applicant and the name of the publication;

ii. Identify the requested location for the newsrack;

iii. Identify the name and address of the person authorized to receive notice pursuant to Chapter 718 of the Cincinnati Municipal Code;

iv. Include proof of liability insurance in an amount not less than $1,000,000.00. The City of Cincinnati shall be named as an additional insured;

v. A non-refundable application fee as set forth in section 723-6 of this Chapter.

3. Revocable street privileges for the placement of newsracks in areas not designated as Modular Newsrack Districts shall expire one (1) year after issuance and are renewable only upon the filing of a new application.

4. Grant of Revocable Street Privileges for newsracks located in areas not designated as Modular Newsrack Districts.

i. Revocable Street Privileges for the placement of newsracks in areas not designated as Modular Newsrack Districts shall be issued on a first-come, first-served basis.

ii. The first four (4) applicants for any designated location will be granted Revocable Street Privileges, provided they comply with all other requirements of this section.

iii. In the event that more than four (4) applications for placement of a newsrack are received for the same qualifying location at the same time, preference will be given to publications issued at least five (5) times per week, followed by publications issued one (1) to four (4) times per week, followed by publications issued less often than weekly.

iv. The city manager or his designee shall issue a decision on an application for a Revocable Street Privilege for placement of newsracks under this section within thirty (30) days of receipt of the application.

5. Revocation of Revocable Street Privileges for newsracks located in areas not designated as Modular Newsrack Districts.
    i. The city manager or his designee may revoke the revocable street privilege for a newsrack located in an area not designated as a Modular Newsrack District for any lawful, content-neutral reason.
    ii. The city manager or his designee shall provide written notice to the Holder informing the Holder of the reason(s) for revocation.
    iii. The notice shall also inform the Holder that the Holder may contest the revocation by filing a written appeal with the Director within seven (7) days of receiving the notice.
    iv. The Director shall hear any appeal timely filed pursuant to this section within ten (10) days of its filing. The Director shall then issue a written decision within fourteen (14) days of the hearing. The decision of the Director is final, subject to judicial review.

(Ordained by Ord. No. 363-2009, § 1, eff. Jan. 16, 2010; Emer. Ord. 292-2010, § 1, eff. June 30, 2010; Emer. Ord. No. 238-2015, § 7, eff. July 1, 2015; a. Ord. No. 0228-2017, § 1, eff. Sept. 9, 2017)

Editor's note—Ord. No. 363-2009, § 1, effective Jan. 16, 2010, repealed the former § 723-11 and enacted a new section as set out herein. The former § 723-11 pertained to retail sidewalk display and derived from C.O. 702-7; C.M.C. 723-11, eff. Jan. 1, 1972; and Ord. No. 363-1986, eff. Sept. 24, 1986.

Cross reference—Penalty, § 723-99-C.

Sec. 723-12. Retail Sidewalk Displays.

(a) It shall be permissible for the owner or operator of a retail business to maintain a display of articles of merchandise in front of his business premises on the public sidewalk, without first obtaining a revocable street privilege, subject to the following requirements:

1. A retail display, outside the Downtown Business District, may extend from the property line not more than a maximum of thirty-six (36) inches provided that a minimum of seven (7) feet of sidewalk width, measured between the curb and the front of the display, and a minimum of four (4) feet clear, unobstructed walking area must remain. A retail display otherwise permitted by this section within the Downtown Business District may extend from the property line not more than a maximum of thirty-six (36) inches provided that a minimum of ten (10) feet of sidewalk width, measured between the curb and the front of the display, and a minimum of six (6) feet of clear, unobstructed walking area must remain.
2. Merchandise less than eighteen (18) inches in height shall be displayed on a display stand or bench surface. The total height of any permitted retail display shall not exceed four (4) feet above the sidewalk.
3. Displays must be kept neat and free of litter, including the space underneath the stand and the surrounding sidewalk and roadway gutter areas.
4. The owner or operator of the retail business displaying merchandise on the sidewalk as permitted by this section shall maintain a policy of general liability insurance, naming the City of Cincinnati as an additional insured, in an amount of not less than $500,000.00 to cover claims for any injuries arising from or related

to said sidewalk merchandise display. A certificate of insurance demonstrating the required coverage shall be filed with the office of risk management prior to any use of the public sidewalk for a retail display as permitted in this section. A copy of said certificate shall be kept on the business premises behind the sidewalk display and shall be immediately available for inspection upon request.

5. An otherwise authorized retail display shall be permitted on the sidewalk area only during the regular business hours of the principal business premises behind said display and while such premises are open for business. At all other times the sidewalk area shall be kept clear of all display merchandise, stands and any associated paraphernalia.
6. Notwithstanding any other provisions of this section, the owner or operator of a business maintaining a retail sidewalk display shall immediately remove said display upon notice given by any Cincinnati police officer or other authorized representative of the city that the sidewalk display is unreasonably obstructing pedestrian traffic or has otherwise created a dangerous condition.
7. Retail sidewalk displays shall be given location priority over sidewalk vendors.

(Ordained by Ord. No. 363-2009, § 1, eff. Jan. 16, 2010)

Editor's note—Ord. No. 363-2009, § 1, effective Jan. 16, 2010, repealed the former § 723-12 and enacted a new section as set out herein. The former § 723-12 pertained to free standing business or identification signs (sandwich boards) on sidewalk and derived from Ord. No. 184-1992, eff. May 29, 1992.

Cross reference—Penalty, § 723-99-C.

Sec. 723-13. Transit Stop Structures.

(a) *Restrictions on Transit Stop Structures*. The city manager or his designee is authorized to grant to a public transit agency revocable street privileges for the placement of transit stop structures including but not limited to bus stop shelters, bus stop benches, informational kiosks, and ticket vending machines, subject to the following restrictions:

1. Transit stop structures may be located:
   i. Only at transit stops authorized by a public transit agency, including but not limited to the following: Southwest Ohio Regional Transit Authority (SORTA), Transit Authority of Northern Kentucky (TANK), Butler County Regional Transit Authority (BCRTA), and Clermont Transportation Connection;
   ii. Only on paved surfaces;
   iii. In a location that does not substantially impede access to an entrance to a building;
   iv. At least six (6) feet from any alley, crosswalk, driveway curb cut, curb ramp, fire hydrant, or outdoor dining area;
   v. At least four (4) feet from any bicycle rack;
   vi. In a manner such that the open area available for pedestrian traffic is not less than six (6) feet in front of or behind the transit stop structure in any area having a high volume of pedestrian traffic, including neighborhood business districts, the central business district, and areas in close proximity to universities and schools, and less than four (4) feet in all other areas of the city;
   vii. In a way that does not substantially impede access to buses, fire escapes, sidewalk access doors, traffic or street

lighting equipment, utility valve boxes or other utility equipment;

viii. In a way that does not obstruct permanent building signage or building display windows, unless the transit agency obtains prior written permission from the property owner.

2. Transit stop structures may not be erected or installed without first obtaining all permits required by the Cincinnati Municipal Code, in addition to the required revocable street privilege.

3. Transit stop structures must conform to the design specifications promulgated by the department of transportation and engineering pursuant to its authority under Cincinnati Municipal Code section 723-13(e).

4. Public transit agencies desiring to secure a revocable street privilege for placement of a transit stop structure within the public right-of-way shall submit an application on a form to be provided by the city manager or his designee which shall:

i. Identify the name of the applicant who seeks to secure a revocable street privilege;

ii. Identify the requested location for the transit stop structure;

iii. Identify the name and address of the person authorized to receive notices regarding changes to or revocation of the revocable street privilege pursuant to Chapter 718 of the Cincinnati Municipal Code;

iv. Include proof of liability insurance in an amount not less than $1,000,000.00, with the City of Cincinnati named as an additional insured;

v. Include a non-refundable application fee as set forth in section 723-6 of this Chapter;

vi. Include the design specifications for the requested transit stop structure.

5. Revocable street privileges for transit stop structures shall not expire but shall be revocable as set forth in Chapter 718 of the Cincinnati Municipal Code.

6. Holders of revocable street privileges for transit stop structures must maintain liability insurance in an amount not less than $1,000,000.00 per occurrence, per location at all times while the revocable street privilege is in effect. The City of Cincinnati shall be named as an additional insured. Proof of insurance shall be provided upon request. Failure to provide proof of insurance may result in the revocation of the revocable street privilege.

7. Revocable street privileges for transit stop structures shall be revoked in the event the location ceases to be used as a transit stop. Transit stop structures must be removed within sixty (60) days of revocation of the revocable street privilege.

8. The department of transportation and engineering may grant a revocable street privilege encompassing multiple transit stop locations, structures, kiosks, or advertisements, except that the authorization for a particular location, structure, or activity may be revoked as if it were granted under its own revocable street privilege.

(b) *Advertising at Public Transit Stops*. The city may by revocable street privilege authorize a public transit agency to allow advertising at transit stops, subject to any applicable design specifications and placement guidelines promulgated by the department of transportation and engineering under Cincinnati Municipal Code section 723-13(e).

(c) *Advertising at Streetcar Station Stops*. A public transit agency authorized by the city to operate and maintain the Cincinnati streetcar system may engage in advertising at streetcar station stops by agreement with the City of Cincinnati, subject to any applicable design specifications and placement guidelines promulgated by the department of transportation and engineering under Cincinnati Municipal Code section 723-13(e).

(d) *Informational Kiosks at Public Transit Stops*. The department of transportation and engineering may by revocable street privilege authorize a public transit agency to allow informational kiosks with advertising elements at transit stops, in accordance with section 723-15(a)(2), and ticket vending machines with advertising elements at streetcar station stops, which kiosks shall be subject to design specifications and location requirements promulgated by the department of transportation and engineering under Cincinnati Municipal Code section 723-13(e).

(e) *Design Specifications and Location Requirements*. The director of the department of transportation and engineering is authorized to promulgate design specifications and placement guidelines for shelters, benches, and informational kiosks located at public transit stops consistent with this section of the Cincinnati Municipal Code. Prior to adoption by the director of the department of transportation and engineering, the guidelines shall be submitted to the city planning commission for review and approval. The design specifications and location requirements shall prioritize accessibility for users of public sidewalks while promoting the safety and convenience of the public transit system for its users.

(Ordained by Ord. No. 363-2009, § 1, eff. Jan. 16, 2010; Emer. Ord. No. 238-2015, § 8, eff. July 1, 2015; a. Ord. No. 069-2016, § 1, eff. April 23, 2016; a. Ord. No. 327-2016, § 1, eff. Nov. 19, 2016; a. Ord. No. 0228-2017, § 1, eff. Sept. 9, 2017)

Editor's note—Ord. No. 363-2009, § 1, effective Jan. 16, 2010 renumbered the former § 723-13 as 723-19 and enacted a new section as set out herein. The historical notation has been retained with the amended provisions for reference purposes.

Cross reference—Penalty, § 723-99-C.

Sec. 723-14. Outdoor Dining Areas.

(a) Program Authorization; Applications.

(1) The city manager or his or her designee is authorized to grant revocable street privileges for the establishment and maintenance of outdoor dining areas on public streets and sidewalks following receipt of a complete application and payment of the applicable fee.

(2) Applications for the establishment of outdoor street dining shall be made in the form and in the manner prescribed by the city manager or his or her designee, and they may require the payment of a fee to offset the city's cost of administering the outdoor street dining program.

(3) Upon receipt of a complete application and the applicable fee, the city manager or his or her designee shall consider whether the application meets the general location, design, and materials criteria set forth herein and whether to approve or deny the application.

(4) The city manager or his or her designee may approve or deny an application in his or her sole discretion and shall notify an applicant in writing of the determination, including the specific reasons supporting a denial of an application.

(b) All outdoor street dining shall comply with the following general location, design, and material criteria, unless otherwise authorized by the city manager or his or her designee upon the determination that a variance from those criteria will not negatively impact the public health, safety, or welfare, or unreasonably interfere with the use and function of a sidewalk or street:

(1) *General Location Criteria*.

1. Outdoor street dining may be located on sidewalks or in existing parking lanes adjacent to the curb, but it shall not extend into lanes of automobile travel and shall not impact existing traffic control indicators, e.g. crosswalks, lane lines, or regulatory signs.
2. Outdoor street dining must be associated with an existing eating or drinking establishment licensed by the Cincinnati Board of Health, if applicable, and it must be located adjacent to the establishment.
3. All outdoor street dining locations must ensure the safety of patrons and staff, and it must not create a hazard to users of the right-of-way.
4. Outdoor dining areas may be placed:
   a. Only on paved surfaces;
   b. In a location that does not block the entrance to or exit from any building;
   c. In such a way that all chairs, tables and/or railings do not interfere with the use and function of any alley, pedestrian crosswalk, driveway curb cut, curb ramp, fire hydrant, sidewalk café, or bicycle rack;
   d. In a manner that ensures the flow of pedestrian traffic around the outdoor dining area and does not interfere with the use and function of any bus stops, fire escapes, sidewalk access doors, traffic or street lighting equipment, utility valve boxes or other utility equipment; and
   e. In a way that does not obstruct permanent building signage or building display windows, unless prior permission from the property owner has been obtained.
5. Outdoor dining areas shall be given location priority over sidewalk vendors.

(2) *Design and Materials Criteria*.

1. Outdoor street dining areas shall be enclosed by a barrier, railing, or other separation to delineate the area and provide protection to patrons and staff as appropriate.
2. Outdoor street dining areas shall be designed to comply with ADA requirements and guidelines.
3. No drilling, adhesives, or attachments of structures, fixtures, or equipment to a sidewalk or roadway surface shall be permitted in connection with an outdoor street dining area without the

express written permission of the city manager or his or her designee.

4. Outdoor street dining areas shall be designed to maintain existing stormwater drainage in the roadway and curb gutter.

(c) Revocable street privileges issued pursuant to this section shall be subject to the standard conditions contained in Section 718-7, "Standard Conditions of RSP Approval," and the following special conditions applicable to outdoor street dining:

(1) The holder of a revocable street privilege for outdoor dining shall pay the charge established by the city manager or his or her designee for the special use of a public sidewalk or street, which the city manager or his or her designee is hereby authorized to establish in his or her reasonable discretion.

(2) The holder of a revocable street privilege for outdoor dining shall comply with health and safety measures required in connection with the issuance of the revocable street privilege, including those related to cleanliness, food safety, and keeping the area free of litter, debris, and graffiti.

(3) The hours of operation for the outdoor dining area, and any outdoor entertainment provided within the outdoor dining area, shall comply with applicable zoning laws and approvals governing the operation of the eating or drinking establishment with which the outdoor dining area is associated.

(4) No alcohol shall be served within the outdoor dining area unless the owner or operator of the area holds an existing and valid liquor license permitting the service of alcohol within the area.

(5) Outdoor dining areas must be at removed on a seasonal basis at the direction of the city manager or his or her designee to allow for the seasonal needs of the city.

(6) Notwithstanding any other provision of this section, the operator of an outdoor dining area shall immediately remove said outdoor dining area from the sidewalk upon notice given by any Cincinnati Police Officer or authorized employee of the city that the outdoor dining area is unreasonably obstructing pedestrian traffic or has otherwise created a dangerous condition.

(d) Supplemental Design Standards, Rules, and Regulations. The city manager or his or her designee is authorized to create supplemental design standards, rules, and regulations as are necessary to carry out the intent and purpose of this section, to ensure public health, safety, and welfare, and to maintain the use and function of public sidewalks and streets.

(Ordained by Ord. No. 363-2009, § 1, eff. Jan. 16, 2010; a. Ord. No. 0228-2017, § 1, eff. Sept. 9, 2017; a. Ord. No. 0056-2021, §§ 1, 2, eff. Feb. 18, 2021)

Cross reference—Penalty, § 723-99-C.

Sec. 723-15. Informational Kiosks and Parking Sign Pylons.

(a) *Informational Kiosks.* The city manager or his or her designee is authorized to grant revocable street privileges for the placement of informational kiosks in the city right-of-way.

1. Informational kiosks may be installed only pursuant to a contract with the city awarded in accordance with the Cincinnati Municipal Code.

2. The following rules govern the information displayed on or through informational kiosks:
   i. Informational kiosks must convey information of use to the general public, e.g. wayfinding. In addition, they may contain advertising provided for by contract with the city, for the purpose of raising revenue to offset the cost of the kiosks and providing public services.
   ii. All surfaces of an informational kiosk used to convey messages and advertising are intended to be non-public forums under the control of the entity permitted to install the kiosk, subject to any limitations imposed herein and by contract with the city. The city does not intend to create a public forum by permitting informational kiosks to convey messages and advertising.
   iii. Through the contract or contracts governing informational kiosks, the city manager may make reasonable, viewpoint-neutral limitations applied uniformly to the advertising authorized on kiosks.
   iv. The contract governing a particular informational kiosk may limit any physical or visual aspects of the advertising or other information to provide for the protection of aesthetics and traffic safety and to account for public feedback and other factors of public interest. The limitations may include but are not limited to the following: size, display type, brightness if electronic, and frequency of change of message or display.
   v. Advertising on informational kiosks at transit stops installed by a public transit agency with permission of the department of transportation and engineering shall be regulated not pursuant to this Section 723-15 but instead pursuant to Section 723-13(d) of the Cincinnati Municipal Code.
3. In addition to any location or placement restrictions established in the contract authorizing the installation of the kiosks, informational kiosks located in the city right-of-way shall be located and placed:
   i. Only on paved surfaces;
   ii. In locations that do not substantially impede access to an entrance to any building;
   iii. In a manner such that the open area available for pedestrian traffic around the informational kiosk is not less than four feet in front of or behind the informational kiosks;
   iv. At least four feet from any alley, crosswalk, driveway curb cut, curb ramp, fire hydrant, or outdoor dining area;
   v. At least four feet from any bicycle rack;
   vi. In a way that does not substantially impede access to buses at bus stops, fire escapes, sidewalk access doors, traffic or street lighting equipment, utility valve boxes, or other utility equipment;
   vii. In a way that does not obstruct permanent building signage or building display windows unless prior permission from the property owner has been obtained, provided that a three

foot separation between existing building signage or display windows and the closest vertical edge of a kiosk is presumed not to obstruct such signage or windows;

viii. In a way that does not obstruct curb control signage or traffic signal equipment, including pedestrian crosswalk signs.

(b) *Parking Sign Pylons.* The city manager or his or her designee is authorized to grant revocable street privileges for the placement of parking sign pylons subject to the following restrictions:

1. General conditions:

   i. Parking sign pylons shall only be permitted for purposes of wayfinding for a parking lot or garage providing publicly available off-street public parking.

   ii. Parking sign pylons shall be no larger than 6'0" high x 2'0" wide x 6" thick. Pylons shall be permanently mounted to a concrete foundation flush with the sidewalk. The pylon connection and foundation shall be designed by a professional engineer and meet the general design standards set forth in the current version of the department of transportation and engineering's ("DOTE") street restoration manual.

   iii. Parking sign pylons shall include the universal green "P" symbol for parking and the words "Public Parking." No advertising may be displayed upon any pylon; however, the name of the parking operator may be displayed on the pylon with letters no more than 5" in height.

2. Parking sign pylons shall be located subject to the following restrictions, in addition to generally applicable specifications and requirements set forth in the department of transportation and engineering's street restoration manual:

   i. Must be more than two feet and less than six feet from the driveway entrance of the parking lot or garage served by the parking sign pylon.

   ii. The face of the sign must be more than two feet from the face of the curb and centered within the collector strip as much as possible.

   iii. Must be located so that the continuous and unobstructed width of sidewalk available for pedestrian travel in the area of the parking sign pylon is no less than four feet. In downtown, neighborhood business districts, and any other high use area identified by the department of transportation and engineering, the parking sign pylon must be located so that the continuous and unobstructed width of sidewalk for pedestrian travel in the area of the parking sign pylon is not less than six feet.

   iv. Must not obstruct access to buses at bus stops, fire escapes, sidewalk access doors, traffic or street lighting equipment, utility valve boxes, fire hydrants, parking meters or other utility equipment.

   v. Must not obstruct permanent building signage or building display windows, unless prior permission from the affected

property owner has been obtained prior to installation of parking sign pylon.

vi. Must be located in a way that does not obstruct curb control signage or traffic signal equipment, including pedestrian crosswalk signs.

vii. The installation of electric or low voltage wiring feeding the sign is generally discouraged, and no illumination of signage is allowed in a historic district without first obtaining historic conservation board authorization under Chapter 1435 of the Cincinnati Municipal Code. Parking sign pylons having electric or low voltage wiring and that otherwise meet Cincinnati Municipal Code requirements must comply with the national electric code and be inspected by an approved independent inspection agency. An applicant for a revocable street privilege for an electric or low voltage sign must comply with DOTE requirements for participation in the Ohio Utility Protection Service to ensure the safe marking of locations of any underground wiring, cables, or conduit associated with the parking sign pylon in connection with future work in the public right-of-way.

3. A person desiring to place a parking sign pylon in the public right-of-way must secure a revocable street privilege under this chapter and related provisions of the Cincinnati Municipal Code. An applicant for a revocable street privilege under this section 723-15 must submit an application on a form to be provided by the director of the department of transportation and engineering that, at a minimum, provides the following:

i. Identify the name of the applicant;

ii. Identify the requested location for the parking sign pylon;

iii. Identify the name and address of the person authorized to receive notices about the proposed parking sign pylon pursuant to Chapter 718 of the Cincinnati Municipal Code;

iv. Include proof of liability insurance in an amount not less than $1,000,000.00. The City of Cincinnati shall be named as an additional insured;

v. Include a non-refundable application fee as set forth in section 723-6 of this chapter.

4. Revocable street privileges for parking sign pylons shall not expire, but shall be revocable as set forth in Chapter 718 of the Cincinnati Municipal Code.

5. Holders of revocable street privileges for parking sign pylon must maintain liability insurance in an amount not less than $1,000,000.00 at all times while the revocable street privilege is in effect. The City of Cincinnati shall be named as an additional insured. Proof of insurance must be provided to the City upon request. Failure to provide proof of insurance may result in the revocation of the revocable street privilege.

(Ordained by Ord. No. 363-2009, § 1, eff. Jan. 16, 2010; a. Ord. No. 069-2016, § 1, eff. April 23, 2016; a. Ord. No. 0186-2017, § 1,

eff. Sept. 9, 2017; a. Ord. No. 0228-2017, § 1, eff. Sept. 9, 2017; a. Ord. No. 295-2019(Emer.), §§ 1, 2, eff. June 26, 2019)

Editor's note—Ord. No. 363-2009, § 1, effective Jan. 16, 2010 renumbered the former § 723-15 as 723-20 and enacted a new section as set out herein. The historical notation has been retained with the amended provisions for reference purposes.

Cross reference—Penalty, § 723-99-C.

Sec. 723-16. Sidewalk Vending.

(a) *Sidewalk Vending Program.* The city manager or his or her designee is authorized to grant revocable street privileges for the placement of sidewalk vending locations in accordance with this section. This section governs merchandise and food vending on the sidewalks in the City's right-of-way. Mobile food vending within city streets is governed by Sections 723-42 and 723-50 of the Cincinnati Municipal Code.

(b) *Sidewalk Vending Rules and Regulations*. The city manager is authorized to establish rules and regulations for the orderly and efficient administration of this chapter, including but not limited to rules governing application fees, vending practices, displays at vending locations, equipment and materials, health and safety standards, and authorized hours of operation. Changes to the rules and regulations must be approved by the city manager.

(c) *Vending Districts.* The following sidewalk vending districts are the only areas in which individual sidewalk vending locations may be established by the city manager or his or her designee. Peddlers and itinerant vendors authorized to operate under Chapter 839 of the Cincinnati Municipal Code are prohibited from operating in these sidewalk vending districts, as stated in Section 839-13 of the Cincinnati Municipal Code.

1. The "Downtown Vending District" shall be defined as follows: the area within the public right-of-way within the bounds beginning at the intersection of the north property line of East Central Parkway and the east property line of Eggleston Avenue as projected northeastwardly; thence southeastwardly along the projected east property line, the actual east property line and the projected east property line of Eggleston Avenue to the south city corporate limit; thence west along the south city corporate limit to the west property line of Central Avenue as projected southwardly to the city corporate limit; thence northwardly along the west property line of projected Central Avenue and the actual west property line of Central Avenue to the north property line of West Court Street; thence eastwardly along the north property line of West Court Street to the west property line of Plum Street; thence northwardly along the west property line of Plum Street to the projected north property line of West Central Parkway; thence east along the projected and actual north property line of Central Parkway; continuing eastwardly along the north property line of East Central Parkway to the point of beginning.
2. The "Liberty/Dalton Street Vending District" shall be defined as the area within the public right-of-way beginning at a point being the intersection of the west right-of-way line of Dalton Street and the north right-of-way line of Flint Street. Thence north along the west right-of-way line of Dalton Street to the point of intersection with the south right-of-way line of Findlay Street. Thence east along the south right-of-way line of Findlay Street to the point of intersection with the east right-of-way line of Dalton Street. Thence south along the east right-of-way line of Dalton

Street to the point of intersection with the north right-of-way line of Flint Street. Thence west along the north right-of-way line of Flint Street to the point of intersection with the west right-of-way line of Dalton Street, being the point and place of beginning.

3. The "Short Vine Vending District" shall be defined as the area beginning at a point being the intersection of the north right-of-way line of Corry Street and the east right-of-way line of Vine Street. Thence north along the east right-of-way line of Vine Street to the point of intersection with the south right-of-way line of Martin Luther King Jr. Drive. Thence west along the south right-of-way line of Martin Luther King Jr. Drive to the point of intersection with the west right-of-way line of Vine Street. Thence south along the west right-of-way line of Vine Street to the point of intersection with the north right-of-way line of Corry Street. Thence east along the north right-of-way line of Corry Street to the east right-of-way line of Vine Street, being the point and place of beginning.

4. The "University Hospital Vending District" shall be defined as the area beginning at a point being the intersection of the south right-of-way line of Piedmont Avenue and the west right-of-way line of Eden Avenue. Thence north along the west right-of-way line of Eden Avenue to the point of intersection with the north right-of-way line of Albert Sabin Way. Thence east along the north right-of-way line of Albert Sabin Way to the point of intersection with the east right-of-way line of Burnet Avenue. Thence south along the east right-of-way line of Burnet Avenue to the point of intersection with the south right-of-way line extended of Piedmont Avenue. Thence west along the south right-of-way line extended and the right-of-way line of Piedmont Avenue to the point of intersection with the west right-of-way of Eden Avenue, being the point and place of beginning.

5. The "FC Cincinnati Vending District" shall be defined as follows: the area within the public right-of-way within the bounds beginning at the intersection of the north property line of West Liberty Street and the west property line of John Street as projected easterly; thence to the east property line of Elm Street projected southerly to the south property line of West Liberty Street then projecting westerly along the south property line of West Liberty Street to the east property line of Central Parkway; thence projected southerly on the east property line of Central Parkway to the south property line of Charles Street; thence projecting westerly along the south property line of Charles Street to the west property line of Central Avenue; thence projecting northerly along the west property line of Central Avenue to the south property line of Ezzard Charles Drive; thence projecting westerly to the west property line of John Street; thence projecting northwesterly to the north property line of West Liberty Street.

6. The "OTR Vending District" shall be defined as follows: the area within the public right-of-way within the bounds beginning at the intersection of the east right-of-way line of Sycamore Street and the north right-of-way line of East Liberty Street;

thence westerly along the north right-of-way line of East Liberty Street to the east right-of-way line of Vine Street; thence westerly along the north right-of-way line of West Liberty Street to the east property line of Elm Street; thence south along the projected east right-of-way line of Elm Street to the south property line of West Liberty Street; then projecting westerly along the south property line of West Liberty Street to the east right-of-way line of Central Parkway; thence southerly along the east right-of-way line of Central Parkway and then eastwardly along the north right-of-way line of Central Parkway to the east right-of-way line of Sycamore Street; thence northerly along the east right-of-way line of Sycamore Street to the north right-of-way line of East Liberty Street.

(d) *Vending Locations.* The city manager or his or her designee may designate sites within the defined vending districts for either food vending or merchandise vending and shall identify approved sites by maps, approximate address, or both. Additional sites may be requested in writing by persons interested in vending at specific locations which have not been designated for vending of the type proposed in the request. The city manager or his or her designee shall exercise sole discretion in determining the appropriateness of the requested location and shall notify the applicant in writing of the decision.

(e) *Temporary Locations.* Temporary locations within the vending districts established in subsection (c) of this section for use in relocating sidewalk vendors from special event areas or for handling short-term (under seven days) demand for vending locations prompted by special events, holidays, sports championships, and other such occurrences, may be established and withdrawn by the city manager or his or her designee at any time.

(f) *Applications for Sidewalk Vending Locations.* Persons desiring to obtain a revocable street privilege for a vending location shall submit an application on a form to be provided by the city manager or his or her designee. The city manager or his or her designee is authorized to charge a non-refundable application fee to be determined by the city manager.

(g) *Assignment of Vending Locations.* Vending revocable street privileges for sidewalk vending locations will be awarded in accordance with the following:

1. Each year, vendors with existing sidewalk vending locations may retain up to eight of their vending locations, upon provision of written notice to the city.
2. New vending locations, and newly open vending locations not retained by a vendor, are to be awarded on a first come, first served basis.
3. Applications for new or newly available vending locations shall be considered and awarded, in the order in which they are received, only to qualified applicants who submit proper and complete applications.
4. Existing vendors seeking to retain one or more (up to eight) of their vending locations, and applicants seeking a new vending location, all must submit their applications within the deadlines for each step of the process. The application periods and deadlines shall be established in the rules and regulations governing the sidewalk vending program.
5. In a given year, if deemed necessary because of high demand for new vend-

ing locations, the city manager or his or her designee may implement another method for awarding new locations, including but not limited to a lottery or another random drawing method, to ensure fairness both to existing vendors and new vendors.

6. The provisions of this subsection (g) do not change the revocability of vending revocable street privileges addressed in subsection (h) of this section and in Chapter 718 of the Cincinnati Municipal Code.

(h) *Vending Revocable Street Privilege.* The city manager or his designee shall issue a vending revocable street privilege for each vending location awarded upon payment of the required fee set forth in the rules and regulations for the sidewalk vending program. Vending revocable street privileges for vending locations issued pursuant to this chapter are also governed by Chapter 718 of the Cincinnati Municipal Code and are revocable at any time as set forth in Chapter 718. In the event of revocation not caused by any act or omission of the vendor, the city shall make good faith efforts to accommodate the vendor by identifying an alternative vending location, or, if no alternative locations are available, the city will refund a prorated amount of the annual fee for the vending revocable street privilege based on the number of months of the year that the vendor had the vending revocable street privilege.

(i) *Vending During Special Events.* When city council passes an ordinance in connection with a special event which temporarily prohibits vending in a specified area within any vending district except that which is authorized by the special event sponsor, and such area includes established sidewalk vending locations, or when, as a result of lawful construction or demolition or a significant change in the use of the street or sidewalk space in the vending district, it is necessary to eliminate an established vending site, the city manager or his or her designee may designate a temporary alternative sidewalk vending location within one of the defined vending districts established in subsection (c) of this section. The city manager or his or her designee shall designate temporary locations for sidewalk vending on an as-needed basis. The location of such temporary sites shall be at the sole discretion of the city manager or his or her designee.

(Ordained by Ord. No. 363-2009, § 1, eff. Jan. 16, 2010; Emer. Ord. 292-2010, § 13, eff. June 30, 2010; Emer. Ord. 0052-2017, § 1, eff. March 1, 2017; a. Ord. No. 0228-2017, § 1, eff. Sept. 9, 2017; Emer. Ord. No. 042-2018, § 1, eff. March 14, 2018; Emer. Ord. No. 0093-2019, § 1, eff. March 20, 2019; a. Ord. No. 0012-2020, §§ 1, 3, eff. Jan. 15, 2020; a. Emer. Ord. No. 263-2021, § 1, eff. June 23, 2021; a. Emer. Ord. No. 0034-2023, §§ 1, 2, eff. February 1, 2023; a. Ord. No. 228-2023, § 1, eff. August 2, 2023; a. Emer. Ord. No. 283-2024, § 1, eff. Sept. 5, 2024)

Cross reference—Penalty, § 723-99-C.

Sec. 723-17. Awnings, Marquees and Projecting Signs.

(a) The city manager or his designee is authorized to grant revocable street privileges for the placement of awnings, marquees and projecting signs subject to the following restrictions:

1. Awnings, marquees and projecting signs must be approved by the department of buildings and inspections.

2. Awnings, marquees and projecting signs must be designed and constructed in accordance with the American Association of State Highway and Transportation Officials' "Standard Specifications for Structural Supports for Highway Signs, Luminar-

ies, and Traffic Signals" using a fifty-year mean recurrence interval for wind loads.

3. Awnings, marquees and projecting signs must have a minimum vertical clearance of eight feet (8') above the sidewalk (unless the awning or projecting sign includes electrical components), a minimum horizontal clearance of two feet (2') from the street curb line, and be in compliance with clearance requirements for all overhead utilities.

4. Awnings, marquees and projecting signs that include electrical components must have a minimum clearance of ten feet (10') above the sidewalk.

5. Awnings, marquees and projecting signs must be fully supported by the building with no vertical supports extending below the bottom of the canopy.

(b) Persons desiring to obtain a revocable street privilege for placement of an awning, marquee or projecting sign shall submit an application on a form to be provided by the city manager or his designee which shall:

i. Identify the name of the applicant;

ii. Identify the proposed location of the awning, marquee or projecting sign;

iii. Identify the name and address of the person authorized to receive notices pursuant to Chapter 718 of the Cincinnati Municipal Code;

iv. Include written proof of approval of the awning by the department of buildings and inspections;

v. Include a written statement signed and stamped by a professional engineer registered in the State of Ohio indicating compliance with the American Association of State Highway and Transportation Officials' "Standard Specifications for Structural Supports for Highway Signs, Luminaries, and Traffic Signals."

(c) Revocable street privileges for awnings and projecting signs shall not expire but shall be revocable as set forth in Chapter 718 of the Cincinnati Municipal Code.

(Ordained by Ord. No. 363-2009, § 1, eff. Jan. 16, 2010; Emer. Ord. No. 238-2015, § 9, eff. July 1, 2015)

Editor's note—Ord. No. 363-2009, § 1, effective Jan. 16, 2010, repealed the former § 723-17 and enacted a new section as set out herein. The former § 723-17 pertained to U.S. Mail boxes and derived from C.O. 737-10; and C.M.C. 723-17, eff. Jan. 1, 1972.

Cross reference—Penalty, § 723-99-C.

Sec. 723-18. Mail Boxes.

(a) The United States Postal Service shall be permitted to place mail boxes within the public rights-of-way without first obtaining a revocable street privilege, subject to the following requirements:

(b) Mail boxes shall be placed as follows:

1. Only on paved surfaces sitting flush with the sidewalk;

2. Such that the opening for receipt of mail faces into the sidewalk area;

3. In a location that is not directly in front of an entrance to a building;

4. At least six (6) feet from any alley, pedestrian crosswalk, driveway curb cut, curb ramp, fire hydrant or sidewalk café and at least four (4) feet from any bicycle rack;

5. In a manner such that the open area available for pedestrian traffic is not less than six (6) feet in front of or behind the mail box in those areas established as business districts as shown on the building zone map ("Neighborhood Business Area"), or in any area designated by the depart-

ment of transportation and engineering as having a high volume of pedestrian traffic ("High Pedestrian Area"), or less than four (4) feet in all other areas of the city;

6. In a way that does not block access to buses at bus stops, fire escapes, sidewalk access doors, traffic or street lighting equipment, utility valve boxes or other utility equipment;

7. In a way that does not obstruct permanent building signage or building display windows (unless prior permission from the property owner has been obtained);

8. In a way that does not obstruct curb control signage or traffic signal equipment, including pedestrian crosswalk signs.

(c) Mail boxes may contain the name and logo of the United States Postal Service, but shall not contain any other advertising.
(Ordained by Ord. No. 363-2009, § 1, eff. Jan. 16, 2010)

Cross reference—Penalty, § 723-99-C.

Sec. 723-19. Temporary Encumbrances.

Where materials, equipment or containers are being delivered to or removed from a property, they may be placed on sidewalks temporarily as necessary during the process of loading and unloading; provided that a walk space not less than four (4) feet wide shall at all times be kept open for pedestrians in the center of the sidewalk.
(C.O. 702-8; renumbered to C.M.C. 723-13, eff. Jan. 1, 1972; renumbered by Ord. No. 363-2009, § 1, eff. Jan. 16, 2010)

Editor's note—Ord. No. 363-2009, § 1, effective Jan. 16, 2010, repealed the former § 723-19 and renumbered § 723-13 as § 723-19 as set out herein. The former § 723-19 pertained to park benches in the public right-of-way and derived from C.M.C. 723-19; Ord. No. 272-1989, eff. Aug. 5, 1989; and Ord. No. 149-1991, eff. May 17, 1991.

Cross reference—Penalty, § 723-99-C.

Sec. 723-20. Limitations.

Nothing in this chapter shall be construed as authorizing the use of sidewalks for storage purposes.
(C.O. 702-9; renumbered to C.M.C. 723-15, eff. Jan. 1, 1972; renumbered by Ord. No. 363-2009, § 1, eff. Jan. 16, 2010)

Editor's note—Ord. No. 363-2009, § 1, effective Jan. 16, 2010, repealed the former § 723-20 and renumbered § 723-15 as § 723-20 as set out herein. The former § 723-20 pertained to advertising benches in the public right-of-way and derived from C.M.C. 723-20; Ord. No. 272-1989, eff. Aug. 5, 1989; Ord. No. 149-1991, eff. May 17, 1991; Ord. No. 20-1996, eff. Feb. 23, 1996; Ord. No. 5-2006, eff. Feb. 10, 2006; Ord. No. 0225-2007, § 1, eff. July 6, 2007; Emer. Ord. No. 0422-2007, § 1, eff. Nov. 28, 2007; and Emer. Ord. No. 229-2008, § 1, eff. June 18, 2008.

Sec. 723-21. Removal of Structures.

Any structure placed in violation of any provision of this chapter is subject to removal by the city upon thirty (30) days' written notice to the owner, if known. Structures of which the owner is not known are subject to immediate removal. Removed structures shall be stored by the city and available for pick-up by the owner for a period of thirty (30) days following removal. Removal and storage costs shall be billed to the owner of the structure. Structures may be claimed by the owner only upon payment of the removal and storage costs. Structures not claimed within thirty (30) days of removal will be disposed of. Nothing in this section is intended to prohibit the assessment of any other penalties provided in this chapter or in any other chapter of the Municipal Code.
(Ord. No. 363-2009, § 1, eff. Jan. 16, 2010)

Editor's note—Ord. No. 363-2009, § 1, effective Jan. 16, 2010, repealed the former § 723-21 and enacted a new section as set out herein. The former § 723-21 pertained to abutting owner maintaining litter receptacles on sidewalk and derived from Sec. 702-11; Ord. No. 263-1963, eff. Sept. 6, 1963; and C.M.C. 723-21, eff. Jan. 1, 1972.

Sec. 723-22. Repealed.

(C.M.C. 723-22; ordained by Ord. No. 460-1991, eff. Dec. 16, 1991; r. Ord. No. 363-2009, § 1, eff. Jan. 16, 2010)

Sec. 723-23. Ground and Debris on Street or Sidewalk.

Whenever any debris, stone or other material is deposited on the street or sidewalk by reason of any slide, collapse, washing away or crumbling of the owner's land or structures, or by placement or displacement of structures by the owner, the owner shall remove such debris, stone or other material within a reasonable time after written notification by the director and shall barricade and light such obstruction in the street and sidewalk until complete removal of such debris, stone or other material has been effected.

The notice required hereunder shall be sufficient if given according to any of the following methods:

(a) To the owner personally.

(b) To the owner by mail addressed to the last known place of residence.

(c) If the residence of the owner is unknown, the notice may be mailed or delivered personally to any resident agent of the owner or to any tenant or occupant of the premises of the owner.

(d) If there be no known agent, tenant or occupant of the premises, the notice may be posted on the premises.

(C.O. 702-12; renumbered to C.M.C. 723-23, eff. Jan. 1, 1972; a. Ord. No. 363-2009, § 1, eff. Jan. 16, 2010)

Cross reference—Penalty, § 723-99-D.

Sec. 723-24. Bike Share Stations.

(a) No person shall obtain a revocable street privilege from the city for the placement of bike share stations in the right-of-way unless the following conditions have been met:

(1) That person has submitted a timely and complete response to a city-issued request for proposals for a bike share system operator; and

(2) The city selected that person's response to the request for proposals for a bike share system operator as the "most advantageous" to the city; and

(3) That person has obtained the insurance required in Section 723-24(b)(4)(iv); and

(4) That person has executed a concession agreement with the city for the operation of a bike share system within the city.

(b) The city manager or his designee is authorized to grant revocable street privileges for the placement of bike share stations in the right-of-way subject to the following restrictions:

(1) Bike share stations may be located:

(i) Only on paved surfaces;

(ii) In a location that is not directly in front of an entrance to a building;

(iii) In a way that does not block access to buses, bus stops, fire escapes, sidewalk access doors, traffic or street lighting equipment, utility valve boxes or other utility equipment; and

(iv) In a way that does not obstruct permanent building signage or building display windows (unless prior permission from the property owner has been obtained).

(2) No advertising may be displayed upon bike share stations; provided, however, that the name, logo, and contact information of the owner, operator, donor, sponsor, or any combination of the above may be displayed on the bike share kiosk using placards, decals, vinyl wraps, or similar methods, so long as the size of the

sponsorship display does not exceed the overall dimensions of the kiosk. In addition, if the bike share station includes a map module, the name and logo of the owner, operator, donor, sponsor, or any combination of the above may be displayed on one side of the map module which may be no larger than six hundred forty-eight (648) square inches. The name and logo of the owner, operator, donor, sponsor, or any combination of the above may be displayed on the other side of the map module which may be no larger than forty-eight (48) square inches. For purposes of this section, "map module" shall be defined as a double-sided sign with a display not larger than six hundred forty-eight (648) square inches and includes a map of the bike share system and safety information.

(3) Bike share stations may not be constructed without first obtaining any necessary construction permits required by the Cincinnati Municipal Code or any other applicable law.

(4) Persons desiring to secure a revocable street privilege for the placement of a bike share station within the public right-of-way shall submit an application on a form to be provided by the city manager or his designee which shall:

(i) Identify the name of the applicant;

(ii) Identify the requested locations for the bike share stations;

(iii) Identify the name and address of the person authorized to receive notices pursuant to Chapter 718 of the Cincinnati Municipal Code;

(iv) Include proof of liability insurance for each bike share station in an amount not less than $1,000,000.00 which names the city of Cincinnati as an additional insured; and

(v) Include a copy of the city's notice of award that the applicant's response to the city's request for proposals was selected as the "most advantageous" to the city.

(5) Revocable street privileges for bike share stations shall expire upon the termination of the concession agreement with the city of Cincinnati and shall be revocable as set forth in Chapter 718 of the Cincinnati Municipal Code and as set forth in the bike share agreement.

(6) Holders of revocable street privileges for bike share stations must maintain liability insurance in an amount not less than $1,000,000.00 at all times while the revocable street privilege is in effect. The city of Cincinnati shall be named as an additional insured. Proof of insurance shall be provided upon request. Failure to provide proof of insurance may result in the revocation of the revocable street privilege.

(7) Revocable street privileges for bike share stations shall be revoked in the event the location ceases to be used as a bike share station. Bike share stations must be removed within sixty (60) days of revocation of the revocable street privilege.

(c) Penalties. Whoever violates any of the provisions of Section 723-24, "Bike Share Stations," commits a Class C Civil Offense as defined by the Cincinnati Municipal Code § 1501-7(a), and is liable for the civil fine specified in § 1501-99 for a Class C Civil

Offense. Additional violations or failure to pay fines will result in immediate revocation of the revocable street privilege.
(Ordained by Emer. Ord. No. 295-2013, § 3, eff. Sept. 25, 2013; a. Ord. No. 136-2016, § 1, eff. July 2, 2016)

Sec. 723-25. Expense of Removing Debris.

If within 24 hours after the delivery or mailing of the notice required in Section 723-23 the owner fails to barricade and light the obstruction, the director shall be authorized to furnish the necessary barricade and lights. If within 30 days after the delivery or mailing of the notice required in Section 723-23 the owner fails to remove such debris, stone or other material from the street and sidewalk, the director shall be authorized to remove the same. In each case the owner of the premises shall be liable to the city for the expense thereof. In cases of immediate emergency the director shall be authorized to act without notice and without waiting for the expiration of any notification period.
(C.O. 702-13; renumbered to C.M.C. 723-25, eff. Jan. 1, 1972)

Sec. 723-26. Designated Transit Zones.

(a) Streetcar Transit Zones. The Director of the Department of Transportation and Engineering may designate a streetcar station platform located in the public right-of-way as a designated streetcar transit zone, which area shall be accessible exclusively by persons for the limited purposes of boarding or deboarding a Cincinnati streetcar vehicle, waiting to board a Cincinnati streetcar vehicle, or purchasing a fare. Designated streetcar transit zones shall be clearly marked and contain readily visible signage indicating "Streetcar Transit Zone" or other similar notification.

(b) Bus Rapid Transit Zones. The Director of the Department of Transportation and Engineering may designate a bus rapid transit station platform located in the public right-of-way as a designated bus rapid transit zone, which area shall be accessible exclusively by persons for the limited purposes of boarding or deboarding a bus rapid transit vehicle, waiting to board a bus rapid transit vehicle, or purchasing a fare. Designated bus rapid transit zones shall be clearly marked and contain readily visible signage indicating "Bus Rapid Transit Zone" or other similar notification.
(Ordained by Emer. Ord. No. 282-2016, § 1, eff. Aug. 3, 2016; a. Emer. Ord. No. 0353-2020, §§ 3, 5, eff. Oct. 14, 2020; a. Ord. No. 0059-2025, § 2, eff. March 19, 2025)

Sec. 723-27. Access Ramps.

(a) Eligibility for Revocable Street Privilege. The city manager or his or her designee is authorized to grant revocable street privileges for the placement of access ramps in the public right-of-way subject to the following limitations:

1. Access ramps proposed in the public right-of-way related to new construction are not eligible for revocable street privileges or easements for access ramps under this Chapter.
2. For access ramps proposed in the public right-of-way in connection with a building rehabilitation project, a revocable street privilege or an easement may be granted for an access ramp if the applicant demonstrates that it is structurally impracticable to remove barriers to entry for persons with mobility impairments without encroaching upon the right of way. The director of the department of buildings and inspections shall determine structural impracticability in a manner consistent with

applicable building code provisions and determine, in consultation with the department of transportation and engineering, whether an access ramp can be constructed consistently with the requirements of this chapter.

3. The City in its sole discretion may determine whether an access ramp requested to be installed in the public right-of-way is in the public interest taking into account the public safety, convenience, and welfare. Each revocable street privilege authorized under this section 723-27 is subject to the general requirements for revocable street privileges set forth in chapters 718 and 723 of the municipal code and applicable city regulations and guidance concerning construction and occupancy of the public right-of-way.

(b) Siting and Design Requirements. In addition to other requirements applicable to access ramps under Section 723-13, access ramps must comply with the following requirements intended to ensure that access ramps do not adversely affect the public safety, convenience, and welfare. Access ramps permitted under this chapter must be located and designed:

1. In a way that the continuous and unobstructed width of sidewalk available for pedestrian travel in the area of the access ramp is no less than five feet. In downtown, neighborhood business districts, and any other high use area identified by the department of transportation and engineering, the access ramp must be located so that the continuous and unobstructed width of sidewalk for pedestrian travel ("Clear Zone") in the area of the access ramp is not less than six feet. Notwithstanding the above, the director of the department of transportation and engineering may approve a reduced Clear Zone not to be less than four feet in width on streets having historically narrow sidewalks.

2. In a way that does not substantially impede access to public transit at transit stops, fire escapes, sidewalk access doors, traffic or street lighting equipment, utility valve boxes or other utility equipment.

3. In a way that complies with Title XI regulations for building encroachments if applicable per section 718-5.

(c) Persons desiring to secure a revocable street privilege for placement of an access ramp within the public right-of-way shall submit an application on a form to be provided by the city manager or his or her designee and pay an application fee as set forth in section 723-6.

(d) Revocable street privileges for access ramps shall not expire, but shall be revocable as set forth in Chapter 718 of the Cincinnati Municipal Code, except the City shall not revoke permission for an access ramp that has been required as a condition of a building permit unless it first consults with the Department of Buildings and Inspections to address any building code compliance issues arising in connection with the revocation.

(e) If an easement or revocable street privilege granted under this section is terminated or revoked by the City, the property owner is solely responsible for his or her costs arising out of such termination or revocation, including, but not limited to, costs of removal of the access ramp and restoration of the right of way.

(f) Holders of revocable street privileges for access ramps shall maintain liability insurance in an amount not less than $1,000,000 at all times while the revocable street privilege is in effect. The City of

Cincinnati shall be named as an additional insured. Proof of insurance shall be provided to the City upon request. Failure to provide proof of insurance may result in the revocation of the revocable street privilege.
(Ordained by Ord. No. 337-2017, § 2, eff. Jan. 6, 2018)

Sec. 723-28. City Events.

The city manager or his or her designee is authorized to place temporary banners or signs in the public right-of-way for the purpose of promoting the city as a destination for civic events, conventions, or other special events. Any such banner or display is subject to the following requirements:

(a) The placement and design of signs and banners must be consistent with design guidelines issued by the director of the department of transportation and engineering, which guidelines shall be established with review and approval by the city planning commission. The department of transportation and engineering shall administer the design guidelines and may modify them in consultation with the director of the planning department as needed for the safe and orderly management of the public right-of-way.

(b) The city manager or his or her designee, in consultation with the city solicitor's office, shall confirm that a proposed sign or banner promotes the city's role as host or sponsor to the civic event, conventions, or other special event. The city's relationship to the event may be formal or informal and can be expressed, for example and without limitation, by stating "Cincinnati Welcomes…," "Sponsored by the city of Cincinnati," or by prominent placement of the city logo on the sign or banner.

(c) The city administration shall have control over the content, design, fabrication, and installation of any sign or banner located in the public right-of-way pursuant to this ordinance. The city may accept in-kind donations or reimbursement for materials and services relating to signs and banners, but in-kind services must be performed with direction by the city administration.

(d) Signs and banners authorized under this section must be owned and maintained by the city.

(Ordained by Emer. Ord. No. 026-2018, § 3, eff. Feb. 22, 2018)

Sec. 723-29. Repealed.
(C.O. 702-16; renumbered to C.M.C. 723-29, eff. Jan. 1, 1972; r. Ord. No. 363-2009, § 1, eff. Jan. 16, 2010)

Sec. 723-31. Repealed.
(C.O. 702-17; renumbered to C.M.C. 723-31, eff. Jan. 1, 1972; r. Ord. No. 363-2009, § 1, eff. Jan. 16, 2010)

Sec. 723-33. Sweeping onto Sidewalk or Roadway.

No person shall shovel, sweep, throw or otherwise deposit snow or ice from private property onto a sidewalk or roadway located within the public right-of-way.

No person shall sweep, throw or otherwise deposit leaves, sweepings, litter or other matter from private property onto a sidewalk or from a sidewalk onto a roadway or into

the gutter thereof, nor shall any person ignite or burn such materials on a street pavement, or cause such to be done.
(C.O. 702-18; renumbered to C.M.C. 723-33, eff. Jan. 1, 1972; a. Ord. No. 266-1997, eff. Sept. 5, 1997)

Cross reference—Penalty, § 723-99-F.

Sec. 723-34. Skateboards and Other Coasting Devices, Regulation.

(a) No person shall ride or operate a skating or coasting device on or within any street, highway, or other area where such use is restricted by law, rule, or regulation, including:

(1) the area bounded by Second Street, Elm Street, Central Avenue and Mehring Way; and

(2) any additional area, as determined by the city manager or the city manager's designee, where such restriction would be in the interest of public health or safety, and which shall be indicated by official signage prohibiting such use.

(b) A person riding or operating a skating or coasting device on a sidewalk where such use is permitted shall:

(1) give audible warnings of his or her approach to any pedestrian or other person lawfully using the sidewalk;

(2) yield the use of the sidewalk to such pedestrian or other person, or dismount if necessary to do so;

(3) operate the skating or coasting device at a reasonable and prudent speed while exercising reasonable and ordinary control, with due regard for the safety and rights of others, so as to not endanger the physical safety or property of any person lawfully using the sidewalks. A person shall not operate a skating or coasting device in a weaving or zigzagging course unless such irregular course is necessary for safe operation or is in compliance with the law.

(Ordained by Ord. No. 153-2024, § 1, eff. May 15, 2024)

Sec. 723-37. Unloading Heavy Material on Streets or Sidewalks.

No person shall unload heavy material or allow such material to fall upon the pavement of a street or sidewalk without placing a sufficient protection over such pavement.
(C.O. 702-20; renumbered to C.M.C. 723-37, eff. Jan. 1, 1972)

Cross reference—Penalty, § 723-99-F.

Sec. 723-39. Writing, Drawing or Inscribing on Sidewalks Unlawful.

No person shall insert any metal plate, tile or casting into any sidewalk, or write, draw, inscribe, paint or otherwise imprint upon any sidewalk any name, design or other inscription.
(C.O. 702-21; renumbered to C.M.C. 723-39, eff. Jan. 1, 1972; a. Ord. No. 363-2009, § 1, eff. Jan. 16, 2010)

Cross reference—Penalty, § 723-99-F.

Sec. 723-40. Temporary Art: Street Murals.

(a) *Authorization, Applications.*

(1) The department of transportation and engineering may authorize the installation and maintenance of temporary street murals on residential streets following receipt of a complete application and payment of the applicable fee.

(2) Applications for the creation of street murals shall be made in the form and in the manner prescribed by the department of transportation and engineering, which may require the

payment of a fee established to offset the department's costs of administering the street mural program.

(3) Upon receipt of a complete application and the applicable fee, the department of transportation and engineering shall consider whether the application meets the general location, design, and materials criteria set forth herein and whether to approve or deny the application.

(4) The department of transportation and engineering may approve or deny an application within its sole discretion. The department shall notify an applicant in writing of its determination and shall include in the notification the specific reasons supporting the denial of an application.

(b) *Standard Program Terms.*

(1) All street murals shall comply with the general location, design, and material criteria set forth herein, unless otherwise authorized by the director of the department of transportation and engineering upon the director's determination that variance from those requirements will not negatively impact public safety or unreasonably interfere with the use of the street.

(2) Successful applicants must execute a license agreement with the City that includes the following provisions:

(i) Transfer of ownership to the City of all rights in the mural, including a waiver of all applicable rights to the street mural under the federal Visual Artists Rights Act of 1990, 17 U.S.C. §§ 106A and 113(d).

(ii) Agreement by the applicant to accept responsibility for installing and maintaining an authorized street mural in accordance with the provisions of this section and any program standards, rules, and regulations established by the department of transportation and engineering.

(iii) An acknowledgment that the city will have no responsibility to repair or maintain the street mural, including if street repair, maintenance, or reconstruction, or utility work in the right-of-way negatively affects a street mural.

(iv) An acknowledgment that the street mural shall be temporary and subject to removal by the city, in part or in whole, at any time.

(3) Applicants may reapply for permits to re-paint an existing mural eighteen months after installation.

(c) *General Location Criteria.*

(1) Street murals shall not be located in pedestrian paths of travel and shall not impact existing street parking or traffic control indicators, such as crosswalks, lane lines, regulatory signs, etc.

(2) All proposed street mural locations must be safe. A street mural's location and appearance shall not detract from, interfere with, or obscure official traffic control devices. No mural shall create a hazard to users of the right-of-way.

(3) Pavement at proposed location must be in good condition, and murals should not be installed in locations scheduled for resurfacing or utility work within three months of painting.

(d) *Design and Materials Criteria.*

(1) Designs may not include any shapes or colors that could be perceived as traffic control indicators or that could be mistaken for directions to the roadway user or pedestrian.

(2) Designs shall not include words, logos, advertisements, trademarked materials, or universally recognized symbols.

(3) Paint must be skid resistant and non-retro reflective.

(4) Paint materials must be non-toxic/non-corrosive, lead-free, and adhere to the surface in a manner so that they do not erode or shed into the stormwater system.

(e) *Supplemental Design Standards, Rules, and Regulations.* The department of transportation and engineering is authorized to create supplemental design standards, rules, and regulations as are necessary to carry out the intent and purpose of this section, to ensure public safety, and to maintain the use and function of public streets.

(Ordained by Emer. Ord. No. 490-2019, § 1, eff. Dec. 11, 2019)

Sec. 723-41. Unenumerated RSPs and Regulations.

(a) The city manager or his or her designee is authorized to grant revocable street privileges to persons for the use of streets, sidewalks, and public rights-of-way not otherwise specifically provided for in this chapter, and for the placement of structures upon said streets, sidewalks, and public rights-of-way not otherwise specifically provided for in this chapter, upon the city manager's adoption of rules and regulations governing the establishment and maintenance of the class of uses or structures concerned. All revocable street privileges issued pursuant to this section shall be subject to the provisions of Cincinnati Municipal Code Chapter 718.

(b) All rules and regulations, including design guidelines, adopted pursuant to subsection (a) shall be designed to ensure safe, equal, and nondiscriminatory access to the public right-of-way for persons seeking to establish the class of uses or structures that the rules and regulations govern. In addition, the rules and regulations shall promote the orderly, efficient, and flexible management of the public right-of-way.

(c) All rules and regulations established pursuant to subsection (a) and modifications thereto shall be published and made available for public review on the City's website for a period of no less than 14 days prior to their effective date.

(d) No rules and regulations established pursuant to subsection (a) or modifications thereto shall be effective until approved as to form by the city solicitor and signed by the city manager and the director of the department of transportation and engineering.

(e) In addition to the authorizations provided for in subsection (a), the city manager or his or her designee is authorized to adopt written rules and regulations for the protection of the public safety and for the orderly and efficient administration of this chapter.

(C.O. 702-23; renumbered to C.M.C. 723-41, eff. Jan. 1, 1972; r. Ord. No. 248-1980, eff. June 30, 1981; reordained by Ord. No. 149-1991, eff. May 17, 1991; a. Ord. No. 363-2009, § 1, eff. Jan. 16, 2010; a. Ord. No. 482-2021, §§ 1, 2, eff. Dec. 8, 2021)

Sec. 723-42. Mobile Food Vending.

(a) For purposes of this chapter, the following words shall have the meanings respectively ascribed to them, unless a different meaning is clearly indicated by the context.

1. "Mobile Food-Vending Unit" shall be defined as a commercially manufactured, motorized, or otherwise mobile unit, truck, or cart that is readily movable, and from which non-alcoholic beverages and/or ready-to-eat food is cooked, wrapped, packaged, processed, or portioned for service, sale, or distribution.
2. "Mobile Food Vendor" shall be defined as any person who sells or offers for sale food or beverages from a Mobile Food-Vending Unit in any public, private, or restricted space.

(b) Mobile food vending is permitted on street and other public rights-of-way in the City, subject to the following requirements:

(1) The mobile food-vending unit must be parked within a designated parking space, provided that a mobile food vendor may not park within the following areas:
   1. A residential zoning district;
   2. A parking zone that requires a parking permit;
   3. Parking spaces designated for motorcycle or bicycle parking;
   4. Parking spaces designated for disabled persons;
   5. No parking zones, loading zones, valet zones, bus lanes, bicycle lanes, or other restricted use zones;
   6. Within 100 feet of a restaurant, food service business, school, or outdoor dining area or parklet space, unless the mobile food vendor first obtains the prior written consent of all operators of restaurants, food service businesses, schools, and outdoor dining areas, and parklet spaces located within 100 feet of the subject parking space;
   7. Within 100 feet of a sidewalk vendor authorized under Section 723-16, "Sidewalk Vending";
   8. Within 10 feet of a fire hydrant, bus stop, mailbox, building entrance, sidewalk elevator, fire exit or escape, or a police or fire call box; or
   9. Within 750 feet of a special event, community event, parade, or assembly, unless authorized to participate in such event.

(2) A mobile food vendor must:
   1. Be actively engaged in providing mobile food-vending at all times while occupying a parking space.
   2. Keep the area within a 5-foot radius of the mobile food-vending unit clear of all litter and debris arising from their operations.
   3. Collect and dispose of all litter, waste, and debris generated by their mobile food vending, including litter, waste, and debris generated by their customers. Such litter, waste, and debris shall not be placed in city trash receptacles.
   4. Pay all parking and meter fees for the parking spot occupied by its mobile food-vending unit and shall comply with all applicable parking restrictions and requirements.

5. Promptly vacate its parking spot and cease providing mobile food vending if directed to do so by a parking enforcement agent or law enforcement officer in the interest of public health or safety or when the parking spot is required for municipal purposes.

6. Comply with all applicable food-service laws, rules, regulations, including, but not limited to, obtain a food-service permit and related certifications.

(3) A mobile food vendor may not:

1. Utilize the city's electrical outlets, unless specifically authorized by the city.

2. Park in a manner that prevents other vehicles from parking in otherwise available spaces.

3. Block, obstruct, or restrict the free passage of vehicles or persons in the lawful use of street, sidewalks, and public rights-of-way or ingress or egress to an abutting property.

(c) The city manager or the manager's designee is authorized to establish rules and regulations to provide for the safe, efficient, and orderly administration and enforcement of this section.
(Ordained by Emer. Ord. No. 096-2013, § 3, eff. April 17, 2013; a. Ord. No. 228-2023, § 1, eff. August 2, 2023)

Sec. 723-43. Repealed.
(C.O. 702-24; renumbered to C.M.C. 723-43, Jan. 1, 1972; r. Ord. No. 248-1980, eff. June 30, 1981; reordained by Ord. No. 149-1991, May 17, 1991; r. Ord. No. 363-2009, § 1, eff. Jan. 16, 2010)

Sec. 723-44. Repealed.
(Ordained by Emer. Ord. No. 096-2013, § 3, eff. April 17, 2013; r. Ord. No. 228-2023, § 2, eff. August 2, 2023)

Sec. 723-45. Repealed.

(C.O. 702-25; renumbered to C.M.C. 723-45, eff. Jan. 1, 1972; r. Ord. No. 248-1980, eff. June 30, 1981)

Sec. 723-46. Repealed.
(Ordained by Emer. Ord. No. 096-2013, § 3, eff. April 17, 2013; r. Ord. No. 228-2023, § 2, eff. August 2, 2023)

Sec. 723-47. Repealed.

(C.O. 702-26; renumbered to C.M.C. 723-47, eff. Jan. 1, 1972; r. Ord. No. 213-1980, eff. June 30, 1981)

Sec. 723-48. Repealed.
(Ordained by Emer. Ord. No. 096-2013, § 3, eff. April 17, 2013; r. Ord. No. 228-2023, § 2, eff. August 2, 2023)

Sec. 723-50. Mobile Food Vending; Penalties.

Whoever violates any of the provisions of Section 723-42 commits a Class C Civil Offense as defined by the Cincinnati Municipal Code § 1501-7(a), and is liable for the civil fine specified in § 1501-99 for a Class C Civil Offense. Each day that any person violates a provision of Section 723-42 shall constitute a separate offense.
(Ordained by Emer. Ord. No. 096-2013, § 3, eff. April 17, 2013; a. Ord. No. 228-2023, § 1, eff. August 2, 2023)

Sec. 723-51. Repealed.

(C.O. 702-28; renumbered to C.M.C. 723-51, eff. Jan. 1, 1972; r. Ord. No. 248-1980, eff. June 30, 1981)

Sec. 723-53. Repealed.

(C.O. 702-29; renumbered to C.M.C. 723-53, eff. Jan. 1, 1972; r. Ord. No. 248-1980, eff. June 30, 1981)

Sec. 723-55. Repealed.

(C.O. 702-30; a Ord. No. 315-1958, eff. Oct. 10, 1958; renumbered to C.M.C. 723-55, eff. Jan. 1, 1972; r. Ord. No. 248-1980, eff. June 30, 1981)

Sec. 723-57. Removal of Snow.

The owner, occupant or other person having the care of any building premises or unimproved lot of land abutting any street where there is a graded sidewalk or a sidewalk graded and paved, shall, within the first four hours after daylight after the ceasing to fall of any snow, cause the same to be removed from the paved or traveled part of such sidewalk. The provisions of this section shall also apply to the falling of snow or ice from any building onto a sidewalk.

Snow or ice shall not be moved into the gutter when the gutter has been previously cleaned, and in no event shall snow or ice from any area other than the pedestrian walk be moved into the gutter.
(C.O. 702-33; renumbered to C.M.C. 723-57, eff. Jan. 1, 1972)

Cross reference—Penalty, § 723-99-I.

Sec. 723-59. Ice on Sidewalks.

Whenever a sidewalk or any part thereof along any building premises or unimproved lot of land shall be encumbered with ice, the owner, occupant or other person having the care of such premises or lot shall cause such sidewalk to be made safe and convenient by removing the ice therefrom, or by covering the sidewalk with sand or other suitable substance.

Failure to comply with the provisions of this section for a period of more than two hours during the daytime shall subject such owner, occupant or person in charge to the penalty provided for violation of this section.
(C.O. 702-34; renumbered to C.M.C. 723-59, eff. Jan. 1, 1972)

Cross reference—Penalty, § 723-99-I.

Sec. 723-61. Street Name Signs.

Wherever two streets intersect, there shall be placed on at least one corner of such intersection the names of such streets, securely fastened to the sides of the corner building, to a public service post, or to a post specially erected for the purpose.
(C.O. 702-37; renumbered to C.M.C. 723-61, eff. Jan. 1, 1972)

Sec. 723-63. House Numbering.

Buildings on streets running north and south shall be numbered northwardly from the Ohio River. Streets running east and west shall be numbered eastwardly and westwardly from Vine Street. Even numbers shall be used for the northerly and easterly sides of streets and odd numbers for the southerly and westerly sides. In numbering, 100 numbers shall be allowed for each block northwardly from the Ohio River and for each block eastwardly and westwardly from Vine Street. One number shall ordinarily be allowed for each 25 feet of frontage, whether improved or vacant, provided that each existing house or tenement with a front less than 25 feet shall receive a number. The director shall have charge of house numbering.
(C.O. 702-38; renumbered to C.M.C. 723-63, eff. Jan. 1, 1972)

Sec. 723-65. Displaying House Numbers.

Upon notification by the director of the proper number of a building, the owner of such building shall cause such number to be placed and continuously maintained in a conspicuous place on the front of such building. If a building stands back more than 45

feet from the street line, the number shall be conspicuously displayed at or near the walk, driveway or common entrance to such building at the street line on a gate post, fence, tree, post or other appropriate place so as to be easily legible from the sidewalk.
(C.O. 702-39; renumbered to C.M.C. 723-65, eff. Jan. 1, 1972)

Cross reference—Penalty, § 723-99-C.

Sec. 723-67. Change of House Numbers.

The director shall be authorized to change the house numbering of any street or part of a street or of any individual building or buildings, when such change shall be necessary by reason or readjustment of any kind, inaccuracy or mistake, or for any other cause.
(C.O. 702-40; renumbered to C.M.C. 723-67, eff. Jan. 1, 1972)

Sec. 723-69. Removing House Numbers.

No person shall remove, alter or deface any house number, properly assigned and placed on or near a building, nor shall any person place or retain on any building any number other than the one duly assigned by the director.
(C.O. 702-41; renumbered to C.M.C. 723-69, eff. Jan. 1, 1972)

Cross reference—Penalty, § 723-99-C.

Sec. 723-71. Undedicated Streets, Numbers On.

The provisions of this chapter regulating house numbering shall apply on any private or undedicated street by whatever name known.
(Sec. 702-42; ordained by Ord. No. 185-1963, eff. June 7, 1973; renumbered to C.M.C. 723-71, eff. Jan. 1, 1972; a. Ord. No. 363-2009, § 1, eff. Jan. 16, 2010)

Sec. 723-73. Route for Oversize Loads.

No department or division of the city, nor any officer or employee, shall cause or authorize to be caused structures or fixtures, except removable traffic control devices, to be placed in, on or over the portion of the public streets comprising the route described herein which would reduce the vertical clearance to less than 18 feet, the horizontal clearance to less than 20 feet, and the minimum turning radius to less than existed on the streets as of July 1, 1968. The route to be so preserved for oversize load uses within the corporate limits of the City of Cincinnati shall be as follows:

> Beginning at the intersection of Vine Street and Anthony Wayne Avenue, along Vine Street to the corporation line of the city of Elmwood, along Spring Grove Avenue from the corporation line between the city of St. Bernard and the City of Cincinnati, thence continuing along Chickering Avenue, Este Avenue, Mitchell Avenue, Spring Grove Avenue, Ludlow Avenue, Jefferson Avenue, Nixon Street, Vine Street, Jefferson Avenue, Vine Street, McMicken Avenue, Walnut Street, Central Parkway, Eggleston Avenue, Broadway, Fifth Street, Main Street, over a ramp to Second Street, Second Street and its prolongation east of Broadway, Riverside Parkway to a 33 foot approach to the public landing just west of the Central Bridge approach, thence to the Ohio River via the public landing.

Nothing herein shall be construed to alter or affect the provisions of Section 503-27 of this code, as it now is or as it may hereafter be amended, requiring the obtaining of a special permit for the transportation of excess loads over public streets, nor to alter or affect any other provisions of this code with respect to the use of public streets.
(Sec. 702-43; ordained by Ord. No. 366-1968, eff. Sept. 6, 1968; a. Ord. No. 350-

1970, eff. Dec. 12, 1970; renumbered to C.M.C. 723-73, eff. Jan. 1, 1972; a. Ord. No. 136-1972, eff. May 5, 1972)

Sec. 723-75. Repealed.
(C.M.C. 723-75; ordained by Ord. No. 523-1973, eff. Jan. 1, 1974; r. Ord. No. 363-2009, § 1, eff. Jan. 16, 2010)

Sec. 723-76. Sitting and Lying Within the Public Rights-of-Way Prohibited.

(a) No person shall sit or lie down, or otherwise block a public sidewalk, or sit or lie upon a blanket, chair, stool, or any other object placed upon a public sidewalk, in any area designated for commerce, in a manner which recklessly interferes with pedestrian, vehicular, or other traffic.

(b) No person shall lie down upon a public bench within the right of way in any area designated for commerce, in a manner which recklessly interferes with the use or enjoyment of the public.

(c) Definitions: For purposes of this section the following terms are defined accordingly:

(1) "Public Sidewalk" shall mean the portion of a street lying between the established or presumable curb line and the adjacent property line; the portion set aside for pedestrian use. The curb shall be considered a part of the sidewalk. "Sidewalk" shall also mean all elevated public walkway systems and concourses in both public right-of-way and private easements, and all vertical means of access and egress including, but not limited to, stairways, escalators, and elevators.

(2) "Area designated for commerce," means either of the following:

(a) The Downtown Development District (DD), as defined in Chapter 1411 of the Cincinnati Municipal Code.

(b) Neighborhood Business Districts, defined as those area zoned CN-P, CN-M, CC-P, CC-M, CC-A, CG-A, OL, OG, MG, and ML in Title 14 of the Cincinnati Municipal Code.

(3) "Public bench" shall mean any bench, chair, stool, or any other object intended for sitting, located within the public right-of-way and provided for the use of the public, when said bench is either supplied by or approved by the City of Cincinnati.

(d) Exceptions. The prohibitions in subsection (a) shall not apply under any of the following circumstances:

(1) To any person sitting or lying down on a public sidewalk due to a medical emergency or illness;

(2) To any person who, as a result of a disability, utilizes a wheelchair, walker or similar device to move about the sidewalk;

(3) To a child who is utilizing a stroller or similar device to move about the public sidewalk;

(4) To any person who is a proprietor, patron or employee of an establishment or vendor duly authorized or licensed by the City of Cincinnati to conduct business in the public right-of-way;

(5) To any person participating in or attending a parade, festival, performance, rally, demonstration, meeting or other similar event conducted on the public sidewalk pursuant to a street use or other applicable permit;

(6) To any person sitting on a public sidewalk within ten feet of a duly erected bus stop erected by either the

Southern Ohio Regional Transit Authority (SORTA) or the Transit Authority of Northern Kentucky; or

(7) Sitting on a bench, chair, stool, or any other object intended for sitting, located within the public right-of-way and provided for the use of the public, when said bench is either supplied by or approved by the City of Cincinnati.

(e) Citation. No person shall be cited under this section unless the person engages in conduct prohibited by this section after being notified by a law enforcement officer that the person is in violation of the prohibition of this section.

(f) Each section and each part of each section of this ordinance is hereby declared to be an independent section and part of a section and, notwithstanding another evidence of legislative intent that if any section or part of section, or any provision thereof, or the application thereof to any person or circumstances, is held to be invalid, the remaining sections or parts of sections and the application of such provision to any other person or circumstances, other than those as to which it is held invalid, shall not be affected thereby, and it is hereby declared to be the legislative intent that provisions of this ordinance would have been adopted independently of such section, sections or parts of a section so held invalid.

(g) Whoever violates this section is guilty of a misdemeanor of the fourth degree.
(Ordained by Ord. No. 155-1995, eff. June 2, 1995; a. Ord. No. 367-1995, eff. Nov. 8, 1995; a. Ord. No. 139-1999, eff. May 21, 1999; a. Ord. No. 307-2006, § 1, eff. Nov. 25, 2006)

Sec. 723-77. Trespass in a Designated Bus Rapid Transit Zone.

No person shall enter or remain upon, occupy, or use a designated bus rapid transit zone established pursuant to Section 723-26 of this Chapter for purposes other than boarding or deboarding a bus rapid transit vehicle, waiting for a bus rapid transit, or purchasing a fare. A person is in violation of this section only after having occupied a designated bus rapid transit zone for a period of time that exceeds that which is necessary to purchase a fare and to wait for, board, or deboard a bus rapid transit vehicle. It shall be prima facie evidence of a violation of this section if a person remains in a designated bus rapid transit zone after two bus rapid transit vehicles stop and the person does not board either of the bus rapid transit vehicles.

A person violating this section shall be guilty of a minor misdemeanor and shall be fined not more than $150.
(Ordained by Ord. No. 0059-2025, § 1, eff. March 19, 2025)

Sec. 723-79. Streetcar Power-Down and Shutdown Work Permit.

(a) No person shall engage in construction or demolition activities, make any street opening, place any obstruction, or otherwise perform work within, or in proximity to, the streetcar right-of-way that requires the power-down or shutdown of the streetcar transit system or that otherwise materially interferes with the operation of the streetcar transit system without first obtaining a streetcar power-down permit or shutdown permit, as applicable, from the director of transportation and engineering.

(b) In furtherance of his or her responsibility for management of the city's multi-modal transportation system, the director of transportation and engineering is authorized to establish rules and regulations for the issuance of streetcar power-down permits and streetcar shutdown permits, including

the establishment of permit fees, which rules and regulations shall be effective upon approval by the city manager.

(c) The rules and regulations established pursuant to subsection (b) shall promote the safe and orderly conduct of work in the streetcar right-of-way, shall promote the safety and welfare of workers, transit operators, city staff, right-of-way users, and neighboring residents and business, and shall protect and secure the streetcar right-of-way and the streetcar system, including the electric overhead catenary system.

(d) A streetcar power-down permit or shutdown permit issued under this Section 723-79 shall be conditioned on the permittee obtaining track access authorization from the department of transportation and engineering and streetcar transit system in accordance with streetcar transit system rules and regulations. The track access authorization requirements ensure permittee coordination with the streetcar operator with regard to timing of the work, safety training, and other requirements protective of the public safety.

(Ordained by Ord. No. 297-2021, § 3, eff. June 23, 2021)

Sec. 723-81. Protection of Public and Workers.

The Director of Transportation and Engineering has authority to specify all necessary protection for the public and public rights-of-way and to issue associated right-of-way permits for temporary barricades and walkways in accordance with § 723-83 through § 723-89. The Director of Buildings and Inspections has the duty of ensuring that the required right-of-way protection specifications relating to construction and demolition regulated by the CBC and OBC are provided prior to the issuance of the right-of-way protection permits.

(Ordained by Ord. No. 58-2002, eff. March 28, 2002)

Sec. 723-83. Temporary Barricades and Walkways.

When in the opinion of the Director of Transportation and Engineering, a temporary barricade or walkway is required for the protection of the public, the following requirements apply:

(a) Where any demolition, building construction, alteration, addition, repair, or excavation is to be made, or when any hazard exists and the public may be endangered, a suitable barricade must be provided along the public right-of-way. A walkway capable of supporting a uniform live load of 150 pounds per square foot must be maintained unless the Director authorizes the sidewalk to be fenced and closed. Temporary walkways, where necessary, must be constructed and maintained in accordance with §§ 723-85 and 723-87.

(b) All fences, barriers, or temporary structures of any kind, located on the public right-of-way must be so constructed as not to obstruct vision at the intersection of the street right-of-way lines.

(Ordained by Ord. No. 58-2002, eff. March 28, 2002)

Sec. 723-85. Temporary Uncovered Walks.

When in the opinion of the Director of Transportation and Engineering, a temporary uncovered walk is in the right-of-way, the walk must be not less than four feet wide in the clear, built in a safe, substantial and workmanlike manner and maintained in that condition at all times. A smooth substantial handrail must be provided on the traffic side. A similar handrail or solid fence as deemed necessary is to be required

on the inside. The Director may require a walk of greater width if the anticipated volume of pedestrian traffic warrants.
(Ordained by Ord. No. 58-2002, eff. March 28, 2002)

Sec. 723-87. Temporary Covered Walks.

When in the opinion of the Director of Transportation and Engineering, a temporary covered walk is in the right-of-way, the following requirements apply:

(a) The roof of a covered walk, for buildings up to two stories in height, must be constructed of not less than one layer of two-inch nominal wood plank or equal, supported by well-braced framework, and all parts of the roof structure must be designed to support a live load of not less than 125 pounds per square foot. For buildings exceeding two stories in height, the roof of the walk must be constructed of not less than two layers, staggered, of two-inch nominal wood planks or equal, supported by well braced framework, and all parts of the roof structure must be designed to support a live load of not less than 250 pounds per square foot. Suitable material must be placed between the layers of the roof to make it waterproof. The roof construction must be not less than eight feet clear above the walk and must be of sufficient width to cover the entire temporary or permanent sidewalk.

(b) All covered walks must be not less than four feet wide in the clear. The Director may require a walk of greater width if the anticipated volume of pedestrian traffic warrants.

(c) A solid railing or footboard at least 30 inches high must be constructed around the entire outer edge of the temporary covered walk. The side adjacent to the property line, between the sidewalk and roof must be boarded up solidly.

(d) If materials are stored or work is done on the roof of the covered walk, the street sides and ends of the roof must be protected by a tight curb board not less than one foot high and a railing not less than 30 inches high.

(e) The covered walk must be adequately lighted between sunset and sunrise or as deemed necessary by the Director for the protection of the public.

(f) Means of access must be provided for the public from the temporary structure or covered walk to any bus stop. All necessary surface drainage must be provided for when placing the sills or other parts of the structure.

(g) A permit for the construction of any covered walkway may not be issued by the Director of Transportation and Engineering until the applicant has obtained review and approval from the Director of Buildings and Inspection.

(Ordained by Ord. No. 58-2002, eff. March 28, 2002)

Sec. 723-89. Permits for Barricading Public Rights-of-Way.

A person may not erect or maintain a barricade or walkway within a public right-of-way without first applying for and obtaining a barricade permit from the Director of Transportation and Engineering.

Upon the issuance of a permit, the applicant shall pay a permit fee, established by the city manager or the city manager's designee, in an amount necessary to recover the costs and expenses incurred by the city or estimated to be incurred by the city in connection with its administration of sidewalk-repair permits, including, but not

limited to, costs associated with the processing of applications, inspection and oversight of permittees, their vehicles, and equipment, and inspection and maintenance of affected rights-of-way.

The applicant must give written notice of the intended barricade to all owners of property whose access will be affected by the barricade and provide proof of this notification to the Director. Walkways must be of adequate widths to allow the passage of pedestrian traffic, as determined by the Director.
(Ordained by Ord. No. 58-2002, eff. March 28, 2002; a. Emer. Ord. No. 0425-2023, § 1, eff. Dec. 13, 2023)

Sec. 723-91. Repealed.
(C.O. 701-56; renumbered to C.M.C. 721-91, eff. Jan. 1, 1972; a. Ord. No. 46-1991, eff. Mar. 8, 1991; r. Emer. Ord. No. 0425-2023, § 2, eff. Dec. 13, 2023)

Sec. 723-93. Repealed.
(C.O. 701-57; renumbered to C.M.C. 721-93, eff. Jan. 1, 1972; a. Ord. No. 406-1999, eff. Nov. 12, 1999; Emer. Ord. No. 238-2015, § 5, eff. July 1, 2015; r. Emer. Ord. No. 0425-2023, § 2, eff. Dec. 13, 2023)

Sec. 723-95. Repealed.
(C.O. 701-61; renumbered to C.M.C. 721-95, eff. Jan. 1, 1972; a. Ord. No. 171-1978, eff. May 3, 1978; r. Emer. Ord. No. 0425-2023, § 2, eff. Dec. 13, 2023)

Sec. 723-97. Refund of Barricade Permit Fees.

When a permit has been issued for the barricading or use of a sidewalk, street, alley, or roadway for a period of time more than one month and the permit is no longer needed, the permit may be returned to the Director of Transportation and Engineering for cancellation, and the Director shall refund to the applicant the fees collected for future weeks. Provided, however, the fees for the first month may not be refunded.
(Ordained by Ord. No. 58-2002, eff. March 28, 2002)

Sec. 723-98. Enforcement.

Violations of this chapter shall be enforceable by members of the Cincinnati Police Department and/or designated members of other City Departments. Each and every day on which a person continues to violate any provision of this chapter shall constitute a separate offense.
(Ordained by Ord. No. 363-2009, § 1, eff. Jan. 16, 2010; Emer. Ord. 292-2010, § 3, eff. June 30, 2010)

Sec. 723-99. Penalties.

Violations of the provisions of this chapter shall be punishable as set forth in the sections hereunder and other applicable penalty sections of this code.
(C.O. 702-50; renumbered to C.M.C. 723-99, eff. Jan. 1, 1972)

Sec. 723-99-A. Violation of Section 723-2.

Whoever violates any provision of Section 723-2 shall for a first offense be fined not more than $25 and for each subsequent offense shall be fined $25 and imprisoned not more than six months.
(C.O. 702-50f; renumbered to C.M.C. 723-99-A, eff. Jan. 1, 1972; a. Ord. No. 363-2009, § 1, eff. Jan. 16, 2010)

Sec. 723-99-B. Violation of Section 723-3.

Whoever violates any provision of Section 723-3 shall be fined not more than $50.
(C.O. 702-50c; a. Ord. No. 414-1970, eff. Dec. 23, 1970; renumbered to C.M.C. 723-99-B, eff. Jan. 1, 1972)

Sec. 723-99-C. Violation of Sections 723-5 through 723-19.

Whoever violates any of the provisions of Sections 723-5 through 723-19 commits a Class C Civil Offense as defined by the Cincinnati Municipal Code § 1501-7(a), and is liable for the civil fine specified in § 1501-99 for a Class C Civil Offense.
(C.O. 702-50e; renumbered to C.M.C. 723-99-C, eff. Jan. 1, 1972; a. Ord. No. 133-1972, eff. May 5, 1972; a. Ord. No. 363-2009, § 1, eff. Jan. 16, 2010; Emer. Ord. 292-2010, § 5, eff. June 30, 2010)

Sec. 723-99-D. Violation of Section 723-23.

Whoever violates any provision of Section 723-23 shall be fined not more than $200.
(C.O. 702-50a; a. Ord. No. 414-1970, eff. Dec. 23, 1970; renumbered to C.M.C. 723-99-D, eff. Jan. 1, 1972)

Sec. 723-99-E. Repealed.
(C.O. 702-50b; renumbered to C.M.C. 723-99-E, eff. Jan. 1, 1972; r. Ord. No. 363-2009, § 1, eff. Jan. 16, 2010)

Sec. 723-99-F. Violation of Sections 723-33 through 723-39.

Whoever violates any provision of Sections 723-33 through 723-39 -33 shall be fined for the first offense not more than $50. For each subsequent offense within a twelve (12) month period the violator shall be fined not more than $100.
(C.O. 702-50h; a. Ord. No. 414-1970, eff. Dec. 23, 1970; renumbered to C.M.C. 723-99-F, eff. Jan. 1, 1972; a. Ord. No. 363-2009, § 1, eff. Jan. 16, 2010)

Sec. 723-99-G. Repealed.

Editor's note—(C.O. 702-50d; renumbered to C.M.C. 723-99-G, eff. Jan. 1, 1972; r. Ord. No. 363-2009, § 1, eff. Jan. 16, 2010)

Sec. 723-99-H. Repealed.

(C.O. 702-50; renumbered to C.M.C. 723-99-H, eff. Jan. 1, 1972; r. Ord. No. 248-1980, eff. June 30, 1981)

Sec. 723-99-I. Violation of Section 723-57 or 723-59.

Whoever violates any provision of Section 723-57 or 723-59 shall be fined not more than $25.
(C.O. 702-50g; renumbered to C.M.C. 723-99-I, eff. Jan. 1, 1972; a. Ord. No. 248-1980, eff. June 30, 1981; a. Ord. No. 363-2009, § 1, eff. Jan. 16, 2010)

Sec. 723-99-J. Violation of Section 723-79.

Whoever violates the provisions of Section 723-79 commits a Class D Civil Offense as set forth in Cincinnati Municipal Code § 1501-9(b) and is liable for the civil fine specified in § 1501-99 for a Class D Civil Offense.
(Ordained by Ord. No. 297-2021, § 4, eff. June 23, 2021)

Chapter 724

PERMITS FOR ADJUSTMENTS TO CITY FIXTURES ON UTILITY POLES*

Sec. 724-1.	Permit Required to Adjust City-Owned and -Maintained Fixtures on Utility Poles.
Sec. 724-3.	Permit, to Whom Issued, When.
Sec. 724-5.	Permit Procedure.
Sec. 724-7.	Security Required, Purpose.
Sec. 724-9.	Deposits Received and Disbursement.
Sec. 724-11.	Permit Rules, Regulations, Specifications, Charges.

*__Cross reference—__Public utilities, tit. IV.

Sec. 724-1. Permit Required To Adjust City-Owned and -Maintained Fixtures on Utility Poles.

No person, firm or corporation shall engage in adjusting city-owned and -maintained traffic-control, communications, lighting or other electrical equipment, including poles, wires, fixtures, brackets and/or supports owned and maintained by the city of Cincinnati, whether on city-owned poles or on poles owned by a utility company, without a permit granted by the director of public works or his designee and subject to the conditions stated in this section and in the permit. Where because of an accident, public safety requires immediate action, work may proceed without previous permit; but the permit shall be obtained as soon thereafter as possible.
(Ordained by Ord. No. 436-1981, eff. Oct. 7, 1981)

Sec. 724-3. Permit, to Whom Issued, When.

Permits shall be issued under this chapter only to an electric utility company, telephone or telegraph company, cable television company or other private person, company or corporation which has already been granted permission to occupy the streets, lanes and public grounds of the city of Cincinnati for the purpose of erecting and maintaining poles, wires, fixtures, brackets and/or supports for the necessary wires thereon. Permits may be issued when the erection of such appurtenances makes necessary or desirable the installation, adjustment, repositioning or removal of any fixtures or equipment owned and maintained by the city of Cincinnati, whether on city-owned poles or on poles owned by a utility company. Any contractor or subcontractor employed to perform work under a permit issued pursuant to this chapter shall be identified on the permit application and approved in advance by the director or his designee.
(Ordained by Ord. No. 436-1981, eff. Oct. 7, 1981)

Sec. 724-5. Permit Procedure.

Applications for permits under this chapter shall be made on forms provided by the department of public works. The application shall state the exact location(s) and describe the work to be performed to the satisfaction of the department.
(Ordained by Ord. No. 436-1981, eff. Oct. 7, 1981)

Sec. 724-7. Security Required, Purpose.

The permit shall be issued only after security has been given to the city to ensure that the city equipment installed, adjusted or repositioned under the permit will be undamaged and fully operational. Such security shall be furnished in either of the two ways which follow:

(a) A cash deposit may be made with each application sufficient to cover the cost of inspection and of correction or completion of the work in case of unsatisfactory performance of the work by the permittee.

(b) A general deposit may be made, to be replenished from time to time and to constitute a running account against which permits may be issued, providing that no permit shall be issued when the net unencumbered balance in the account becomes less than the total of inspection costs and estimated costs or correction on compliance of work on all outstanding permits.

In the event of damage or excessive duration of service interruption of city equipment caused by the permittee or his contractor or subcontractor, or failure to complete the work

authorized in the permit to the satisfaction of the director or his designee, the director or his designee may, at his discretion, cause the work to be completed by city forces, with all costs incurred by the city to be charged to the permittee's deposit.
(Ordained by Ord. No. 436-1981, eff. Oct. 7, 1981)

Sec. 724-9. Deposits Received and Disbursement.

All moneys received as deposits or payments under the provisions of Sections 724-1 to 724-7 inclusive shall be paid to the city treasurer and credited to a fund known as "Prepayment for Services To Be Performed" Fund No. 603. The department shall have the right to draw vouchers from time to time against the fund for inspection fees and/or for all costs incurred by the department in administering the provisions of these sections. The department shall also, on demand, after all work authorized on a permit has been completed to the satisfaction of the director or his designee, prepare vouchers in favor of depositors for balances due such depositors after the fees and any charges made by the department in connection with the work have been paid.
(Ordained by Ord. No. 436-1981, eff. Oct. 7, 1981)

Sec. 724-11. Permit Rules, Regulations, Specifications, Charges.

Rules and regulations shall be prepared by the director, describing in detail the procedure to be observed in obtaining permits, and precautions to be taken in acting under permits when issued. Specifications shall also be prepared describing the manner in which various types of work shall be done. The rules and regulations shall contain a schedule of inspection fees and charges to be made if city forces are required to perform, correct or complete the work in the event of default or failure of the permittee or his contractor or subcontractor to perform the work to the satisfaction of the director or his designee. The director shall have the authority to change the rules, regulations and specifications, and to revise the schedule of fees and charges whenever the interests of the city require such change or revision.
(Ordained by Ord. No. 436-1981, Oct. 7, 1981)

CHAPTER 725

URBAN RENEWAL*

Sec. 725-1. Definitions.
Sec. 725-1-B-1. Blighted Area.
Sec. 725-1-B-2. Blighted Parcel.
Sec. 725-1-P-1. Project Area.
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Sec. 725-1-R-1. Redeveloper.
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Sec. 725-1-S. Site Preparation.
Sec. 725-1-U-1. Urban Renewal.
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Sec. 725-1-U-3. Urban Renewal Plan.
Sec. 725-3. Urban Renewal Areas Designated by the City Planning Commission.
Sec. 725-5. Urban Renewal Agent.
Sec. 725-7. Preparation of Urban Renewal Studies and Plans.
Sec. 725-9. Submission of Urban Renewal Plan to Council.
Sec. 725-11. Submission of Urban Renewal Plan to Planning Commission.
Sec. 725-13. Council Action; Public Hearings.
Sec. 725-15. Approval of the Urban Renewal Plan.
Sec. 725-17. Modification of Urban Renewal Plans.
Sec. 725-19. Recording and Filing of Approved Urban Renewal Plans.
Sec. 725-21. Execution of Urban Renewal Projects.
Sec. 725-23. Delegation of Duties.

*__Editor's note—__Ord. No. 249-2011, adopted Nov. 23, 2011, and effective Dec. 23, 2011, repealed Ch. 725 and enacted a new chapter as set out herein. The former Ch. 725, §§ 725—725-27, pertained to similar subject matter and derived from Secs. 750-1, 750-3, 750-3a—750-3k, 750-5, 750-9, 750-11, 750-15, 750-17, and 750-31, ordained by Ord. No. 179-1959, eff. May 27, 1959; renumbered to C.M.C. 725, 725-1, 725-1-B, 725-1-D, 725-1-P, 725-1-P1, 725-1-P2, 725-1-R1, 725-1-R2, 725-1-S, 725-1-U, 725-1-U1, 725-1-U2, 725-3, 725-5, 725-7, 725-9, 725-13, 725-14, 725-15, 725-17, 725-19, 725-21, 725-23, 725-25, and 725-27, eff. Jan. 1, 1972; Ord. No. 154-1962, eff. Apr. 25, 1962; Ord. No. 82-1968, eff. Mar. 22, 1968; Ord. No. 160-1968, eff. Apr. 10, 1968; Ord. No. 154-1962, eff. Apr. 25, 1962; Ord. No. 160-1968, eff. Apr. 10, 1968; Ord. No. 79-1976, eff. Feb. 25, 1976; Ord. No. 413-1976, eff. Sept. 9, 1976; Ord. No. 154-1978, eff. Apr. 19, 1978; Ord. No. 184-1981, eff. June 12, 1981; Ord. No. 225-1990, eff. July 2, 1990; and Ord. No. 020-2010, § 3, eff. Feb. 27, 2010.

Sec. 725-1. Definitions.

For the purpose of this chapter the following terms, phrases, words and their derivations shall have the meaning given herein. When not inconsistent with the context, words used in the present tense include the future, words used in the plural number include the singular number, and words used in the singular number include the plural number. The word "shall" is always mandatory and not merely directory.
(Ordained by Ord. No. 349-2011, § 1, eff. Dec. 23, 2011)

Sec. 725-1-B-1. Blighted Area.

"Blighted Area" shall mean an area in which at least seventy percent of the parcels are blighted parcels and those blighted parcels substantially impair or arrest the sound growth of the state or a political subdivision of the state, retard the provision of housing accommodations, constitute an economic or social liability, or are a menace to the public health, safety, morals, or welfare in their present condition and use.
(Ordained by Ord. No. 349-2011, § 1, eff. Dec. 23, 2011)

Sec. 725-1-B-2. Blighted Parcel.

"Blighted Parcel" means either of the following conditions as defined in subsections (A) or (B) herein:

(A) A parcel that has one or more of the following conditions:

(1) A structure that is dilapidated, unsanitary, unsafe, or vermin infested and that because of its condition has been designated by an agency that is responsible for the enforcement of housing, building, or fire codes as unfit for human habitation or use;

(2) The property poses a direct threat to public health or safety in its present condition by reason of environmentally hazardous conditions, solid waste pollution, or contamination;

(3) Tax or special assessment delinquencies exceeding the fair value of the land that remains unpaid thirty-five days after notice to pay has been mailed.

(B) A parcel that has two or more of the following conditions that, collectively considered, adversely affect surrounding or community property values or entail land use relationships that cannot reasonably be corrected through existing zoning codes or other land use regulations:

(1) Dilapidation and deterioration;

(2) Age and obsolescence;

(3) Inadequate provision for ventilation, light, air, sanitation, or open spaces;

(4) Unsafe and unsanitary conditions;

(5) Hazards that endanger lives or properties by fire or other causes;

(6) Noncompliance with building, housing, or other codes;

(7) Nonworking or disconnected utilities;

(8) Is vacant or contains an abandoned structure;

(9) Excessive dwelling unit density;

(10) Is located in an area of defective or inadequate street layout;

(11) Overcrowding of buildings on the land;

(12) Faulty lot layout in relation to size, adequacy, accessibility, or usefulness;

(13) Vermin infestation;

(14) Extensive damage or destruction caused by a major disaster when the damage has not been remediated within a reasonable time;

(15) Identified hazards to health and safety that are conducive to ill health, transmission of disease, juvenile delinquency, or crime;

(16) Ownership or multiple ownership of a single parcel when the owner, or a majority of the owners of a parcel in the case of multiple ownership, cannot be located.

(C) When determining whether a property is a blighted parcel, no person shall consider whether there is a comparatively better use for any premises, property, structure, area, or portion of an area, or whether the property could generate more tax revenues if put to another use.

(D) Notwithstanding any other provision of this section, absent any environmental or public health hazard that cannot be corrected under its current use or ownership, a property is not a blighted parcel because of any condition listed in this section if the condition is consistent with conditions that are normally incident to generally accepted agricultural practices and the land is used for agricultural purposes as defined in section 303.01 or 519.01 of the Ohio Revised Code, or the Hamilton County Auditor has determined under section 5713.31 of the Ohio Revised Code that the land is "land devoted exclusively to agricultural use" as defined in section 5713.30 of the Ohio Revised Code.

A property that is not a blighted parcel in accordance with this subsection shall not be included in a blighted area.

(E) "Parcel" shall mean a parcel as designated by the Hamilton County Auditor's Office, provided that two or more adjoining parcels under single ownership shall be considered one parcel; provided further than an unused portion of an otherwise developed parcel, appropriate for sale as a separate development tract, may be considered and counted as a separate "vacant parcel"; and provided that for purposes of counting parcels a vacant parcel in excess of 100,000 square feet in area shall be counted as that number of parcels which is the result of dividing the total parcel area in square feet by 100,000, rounded to the next highest whole number.

(F) "Structure" shall mean a structure of at least 250 square feet floor area; for purposes of counting, multiple structures on one parcel shall be counted separately; accessory outbuildings shall not be counted as separate "structures."

(G) "Vacant Parcel" shall mean a parcel containing no structure.

(Ordained by Ord. No. 349-2011, § 1, eff. Dec. 23, 2011)

Sec. 725-1-P-1. Project Area.

"Project Area" shall mean a blighted or deteriorated area for which an urban renewal plan has been prepared. A project area shall consist of or be located within one or more urban renewal areas.

(Ordained by Ord. No. 349-2011, § 1, eff. Dec. 23, 2011)

Sec. 725-1-P-2. Project Improvement.

"Project Improvement" shall mean public improvements within or serving the project

area which are necessary for carrying out the urban renewal objectives provided for in the urban renewal.
(Ordained by Ord. No. 349-2011, § 1, eff. Dec. 23, 2011)

Sec. 725-1-R-1. Redeveloper.

"Redeveloper" shall mean any person, firm, public agency or corporation purchasing or leasing property within a project area for use in accordance with the urban renewal plan.
(Ordained by Ord. No. 349-2011, § 1, eff. Dec. 23, 2011)

Sec. 725-1-R-2. Redevelopment.

"Redevelopment" shall mean the acquisition of property in a blighted area, the demolition of the structures thereon, if any, site preparation, the making of project improvements or the disposition of such property for use in accordance with an urban renewal plan.
(Ordained by Ord. No. 349-2011, § 1, eff. Dec. 23, 2011)

Sec. 725-1-R-3. Rehabilitation.

"Rehabilitation" shall mean the restoration, rehabilitation, or conservation of a deteriorating or blighted area by:

(A) Formulating and carrying out a plan for a program of voluntary improvement, modernization, repair or rehabilitation of privately owned structures;

(B) The acquisition of real estate and the demolition or removal of buildings thereon, if any, where necessary to eliminate unhealthful, unsanitary or unsafe conditions, lessen density, or eliminate conditions of blight or deterioration or incompatible land uses detrimental to the public health and welfare;

(C) Otherwise removing or preventing the spread of blight or deterioration;

(D) Constructing or reconstructing necessary streets, playgrounds, utilities, parks and other public improvements;

(E) Acquiring and clearing land for development of privately owned community facilities;

(F) Disposing, for uses in accordance with the urban renewal plan, of property acquired; and

(G) Purchasing, repairing and rehabilitating for guidance purposes and disposition of buildings which are located in the urban renewal area; or

(H) Use of federal or state funding programs for rehabilitation of properties and elimination of blight.

(Ordained by Ord. No. 349-2011, § 1, eff. Dec. 23, 2011)

Sec. 725-1-S. Site Preparation.

"Site preparation" shall mean the demolition, clearance and removal of structures and abandoned utility facilities from a site and the necessary filling, grading and relocation or adjustment of utility facilities, and construction of improvements, necessary to prepare the site for disposition to a redeveloper or to carry out the city's contractual obligations under contracts for sale or lease of lands.
(Ordained by Ord. No. 349-2011, § 1, eff. Dec. 23, 2011)

Sec. 725-1-U-1. Urban Renewal.

"Urban Renewal" shall mean the redevelopment or the rehabilitation of deteriorated or blighted area or areas, or a combination thereof, by actions including but not limited to the acquisition of real estate (including air rights), and the demolition or removal of buildings, the installation of public improve-

ments, and supporting facilities, and the disposition of such property to public or private agencies for redevelopment or rehabilitation in accordance with an urban renewal plan.
(Ordained by Ord. No. 349-2011, § 1, eff. Dec. 23, 2011)

Sec. 725-1-U-2. Urban Renewal Area.

"Urban Renewal Area" shall mean an area defined by an urban renewal plan approved by council pursuant to this chapter and constituting a blighted area or areas.
(Ordained by Ord. No. 349-2011, § 1, eff. Dec. 23, 2011)

Sec. 725-1-U-3. Urban Renewal Plan.

(A) "Urban renewal plan" shall mean a plan approved by council pursuant to this chapter for the urban renewal of an urban renewal area or a project area, whether denominated "urban renewal plan" or "urban design plan."

(B) Urban renewal plans may include, but not be limited to, the following:

(1) A description of the boundaries of the project area;

(2) A land-use plan showing the location, character, and extent of public and private land ownership, use, and occupancy proposed within the area;

(3) A delineation of areas of land acquisition, demolition, and removal of structures, or of rehabilitation, conservation, or reconditioning of existing structures, if any, as may be proposed to be carried out in the project area;

(4) A statement indicating the controls and the use, development, and building restrictions to be placed on the property in the project area to prevent a recurrence of blighted conditions;

(5) A report showing the proposed changes, if any, in the building housing, or zoning ordinances or maps, and in the layout of streets or utilities;

(6) A statement of the relationship of the plan to such definite objectives of the city respecting appropriate land uses, improved traffic conditions and transportation, public utilities, recreation, and community facilities and other public improvements.

In addition to the foregoing, reports and studies in support of an urban renewal plan may be prepared and presented for review together with the proposed plan, including without limitation a report showing the estimated city portion of urban renewal project costs and potential sources of funding therefor.

(C) A relocation plan shall be prepared if required by applicable federal and/or state (if any) funding programs or federal or state law, or in the absence of such requirement may be prepared if the city deems such plan appropriate based upon the urban renewal project contemplated.
(Ordained by Ord. No. 349-2011, § 1, eff. Dec. 23, 2011)

Sec. 725-3. Urban Renewal Areas Designated by the City Planning Commission.

The city planning commission may from time to time, or upon request from the city manager, identify proposed urban renewal areas. The city manager may prepare preliminary plans and recommendations or draft urban renewal plans for the urban renewal of such areas. A preliminary plan or draft urban renewal plan shall be sufficiently comprehensive to show the general features of development of the urban renewal area, including but not limited to approximate area boundaries, future land use, densities, traffic regu-

lation and such other matters as may be appropriate. The preliminary plan or draft urban renewal plan shall be submitted to the city planning commission for review and comment prior to preparation of the urban renewal plan in final form.
(Ordained by Ord. No. 349-2011, § 1, eff. Dec. 23, 2011)

Sec. 725-5. Urban Renewal Agent.

The city manager is responsible for supervising the urban renewal of this city, coordinating the activities of the city departments, officers, employees, commissions, and boards concerned with such projects, and executing on behalf of the city, as its authorized representative, all applications to the federal government for grants, loans, and advances.
(Ordained by Ord. No. 349-2011, § 1, eff. Dec. 23, 2011)

Sec. 725-7. Preparation of Urban Renewal Studies and Plans.

The city manager is hereby authorized to cause to be undertaken by contract or other means within reason the necessary studies, plans, surveys, and reports in connection with the preparation of urban renewal plans, and in connection with the urban renewal activities to be undertaken by the city.
(Ordained by Ord. No. 349-2011, § 1, eff. Dec. 23, 2011)

Sec. 725-9. Submission of Urban Renewal Plan to Council.

When an urban renewal plan has been prepared the city manager shall transmit the plan to council, together with documentation of blight and with a feasible method for the relocation of the families which will be displaced from the area.
(Ordained by Ord. No. 349-2011, § 1, eff. Dec. 23, 2011)

Sec. 725-11. Submission of Urban Renewal Plan to Planning Commission.

Upon receipt of the urban renewal plan, council shall refer the plan to the city planning commission for approval. In the event of failure to approve the plan, the city planning commission shall communicate its reasons therefor to council.
(Ordained by Ord. No. 349-2011, § 1, eff. Dec. 23, 2011)

Sec. 725-13. Council Action; Public Hearings.

Before approving an urban renewal plan, council shall hold a public hearing on the question of the adoption of the urban renewal plan at which an opportunity shall be provided to all persons or organizations interested to be heard either in person or by council. Notice of the time and place of such hearing shall be published in the City Bulletin or other newspaper of general circulation in the city once a week for not less than two successive weeks immediately prior to the date of the hearing. The first publication shall be not less than 10 days prior to the date of the hearing, inclusive of the date of publication but exclusive of the date of hearing.

The notice shall contain a description of the urban renewal or project area by its location in relation to highways, streets, streams or other landmarks, and shall state that maps and plats and other materials describing the urban renewal plan are available for public inspection at a place to be designated in such notice. The notice shall also contain a statement that the city's relocation program will be available for examination and will be open for discussion at the hearing.

Failure to comply strictly with the notice requirements of this section shall not invalidate approval of an urban renewal plan or modification thereof.
(Ordained by Ord. No. 349-2011, § 1, eff. Dec. 23, 2011)

Sec. 725-15. Approval of the Urban Renewal Plan.

After the public hearing, council may approve the urban renewal plan by a majority vote, unless the city planning commission has failed to approve the plan, in which case it may be approved by a vote of not less than two-thirds of the members of council. In the event that council approves the urban renewal plan, it shall include in its approval the following findings:

(A) That the area described in the urban renewal plan is a blighted area;

(B) That there is a feasible method for the temporary relocation of the families displaced from the urban renewal or project area and that there are or are being provided in the area or in other areas not less desirable in regard to public utilities and public and commercial facilities at rents and prices within the financial means of the families displaced from the area decent, safe and sanitary dwellings equal in number to the number of and available to such displaced families, and reasonably accessible to their places of employment;

(C) If financial aid is to be provided by the federal government, that the aid is necessary to enable the project to be undertaken in accordance with the urban renewal plan;

(D) That the urban renewal plan will afford maximum opportunity consistent with the sound needs of the locality as a whole for the redevelopment or rehabilitation of the area by private enterprise;

(E) That the urban renewal plan conforms to the master plan as it then exists for the overall development of the city.

(Ordained by Ord. No. 349-2011, § 1, eff. Dec. 23, 2011)

Sec. 725-17. Modification of Urban Renewal Plans.

An approved urban renewal plan may be amended, modified, or changed by ordinance of council; however, if the boundaries of the project area are extended to include any land (except land contained within the right-of-way lines of a dedicated street or alley) not previously included therein and that will result in the acquisition of additional property by the city not previously designated in the plan for acquisition, or if there is added a new type of urban renewal that requires the acquisition of property not previously designated for acquisition, or if there is any change in the land use or redevelopment restrictions deemed by council to be substantial, or if there is a change in the proposed location, extent, or character of a public improvement or utility within the project area or in any other matter directly within the jurisdiction of the city planning commission to approve or disapprove, or if such amendment, modification, or change is deemed by council to be a substantial change in the urban renewal plan, then all of the proceedings provided for in sections 725-6 through 725-8 herein shall be carried out in connection with such amendment, modification or change, except that the findings to be made in the ordinance approving the urban renewal plan shall be altered to fit the then circumstances. The land use or redevelopment restrictions directly applicable to any land previously conveyed by the city may not be amended, modified, or changed

in a manner that would adversely affect the use of such land without the consent of the property owner thereto.
(Ordained by Ord. No. 349-2011, § 1, eff. Dec. 23, 2011)

Sec. 725-19. Recording and Filing of Approved Urban Renewal Plans.

The director of city planning shall maintain copies of urban renewal plans approved by city council together with copies of blight documentation. The director of the city planning shall cause to be prepared and maintained maps of the city depicting boundaries of urban renewal areas.
(Ordained by Ord. No. 349-2011, § 1, eff. Dec. 23, 2011; Emer. Ord. No. 238-2015, § 10, eff. July 1, 2015)

Sec. 725-21. Execution of Urban Renewal Projects.

(A) *Acquisition of Property.* When authorized by council, the city shall cause the necessary steps to be taken to acquire the parcels of land in the project area in accordance with an urban renewal plan, including, but not limited to, the negotiation for such parcels, obtaining appraisals, title examinations and reports, executing contracts for any of such services and appropriate documents to transfer title to the city; however, in the event that appropriation of property is necessary, council shall initiate and carry out, with the appropriate assistance of the several officers, employees, boards and commissions of the city, the proceedings in accordance with O.R.C. Chapter 163.

(B) *City activities preparing property for disposition.* The city shall make the contracts, purchase the supplies and materials, and provide the labor, pursuant to and in accordance with applicable provisions of the city charter and ordinances, and initiate such city activities as may be necessary to carry out an urban renewal project, including but not limited to, the demolition, rehabilitation, or repair of structures (whether voluntarily by the private owners thereof or by the city), the removal of pavement, sidewalks, lighting and trees, capping, removal, and relocation of city-owned utility lines, grading, construction of site improvements and supporting facilities, and the temporary lease, rental, or permission to let others use structures or parcels of land while owned by the city, relocation activities and the enforcement of any applicable provisions of law or redevelopment agreements relative to building, zoning, platting, and the repair or rehabilitation of property and structures remaining in private ownership.

(C) *Disposition of property.* The city manager is hereby authorized to negotiate for the sale or lease of property in an urban renewal plan. In connection therewith, the city manager is hereby authorized to enter into necessary appraisal and market analysis contracts. No land shall be sold or leased for more than one year by the city manager except pursuant to a special ordinance of council authorizing such sale or lease, which ordinance shall prescribe in detail the terms and conditions upon which such sale or lease is to be made and the covenants to be contained in the deed from the city to the redeveloper.

(D) *Authority of Council.* In the execution of urban renewal projects, council may authorize, as to any appropriate projects or parts of projects, the employment of community improvement corporations, community redevelopment corporations, limited divided housing corporations, and metropolitan housing authorities, as defined by the statutes of Ohio, and when authorized by ordinance of council, may grant leases, make conveyances and enter into agreements with such corporations

related to appropriate aspects of such projects to the full extent of the powers possessed by such corporations.
(Ordained by Ord. No. 349-2011, § 1, eff. Dec. 23, 2011)

Sec. 725-23. Delegation of Duties.

The city manager may delegate to the director of any department or any division of any department under the control of the city manager the duties imposed and authority conferred on the city manager by this chapter.
(Ordained by Ord. No. 349-2011, § 1, eff. Dec. 23, 2011)

Chapter 727

BLIGHT ELIMINATION*

Sec. 727-1. Legislative Finding.
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Sec. 727-5. Notice.
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Sec. 727-11. Public Hearing and Procedure.
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Sec. 727-15. Procedure for Determination of High Crime Property.
Sec. 727-17. Implementation of Blight Abatement Plan.
Sec. 727-19. Tenant Relocation.

*__Editor's note—__Ord. No. 044-2011, §§ 1 and 2, adopted Feb. 16, 2011, repealed ch. 727 and enacted a new chapter as set out herein. The former ch. 727, §§ 727, 727-1, 727-1-B, 727-1-N, 727-1-R, 727-1-R1, and 727-3—727-23, pertained to elimination of spot blight and derived from §§ 751-1, 758-3, 785-3-a—785-3-d, 785-5—785-25, ordained by Ord. No. 454-1968, effective Nov. 15, 1968 and renumbered to C.M.C. 727, 727-1, 727-1-B, 727-1-N, 727-1-R, 727-1-R1, and 727-3—727-23, effective Jan. 1, 1972.

Sec. 727-1. Legislative Finding.

It is hereby found and determined that blighted properties exist in the city of Cincinnati, and the existing state of these properties endangers the health, safety, and welfare of the citizens of the city of Cincinnati. The existence of these properties depletes property values in and throughout the surrounding areas, diminishes already limited municipal resources, impairs the safety and security of neighborhoods and impedes economic development. The purpose of this chapter is to eliminate blighted properties within the city of Cincinnati and to return the properties to productive use. The elimination of blighted properties is necessary for the common good and is demanded by the public welfare. The designation of individual properties as blighted and the authority to eliminate that blight is a public use and purpose for which public money may be spent and private property acquired by purchase or through the exercise of the power of eminent domain as authorized by this Chapter and Chapter 163 of the Ohio Revised Code.
(Ordained by Emer. Ord. No. 044-2011, § 1, eff. Feb. 16, 2011)

Sec. 727-3. Definitions.

For the purposes of this chapter, words and phrases shall have their ordinary meaning unless defined in the following sections.
(Ordained by Emer. Ord. No. 044-2011, § 1, eff. Feb. 16, 2011)

Sec. 727-3-B. Blight Abatement Plan.

"Blight abatement plan" shall mean a plan adopted by council with the following elements:

(1) A determination that the property is a blighted property, the specific criteria supporting the determination, and a finding that the blighted property in its existing state poses a threat to the public health, safety or welfare.

(2) A determination that it is necessary to acquire the property in order to eliminate blight, prevent recurrence of blight and further the purposes of this chapter.

(3) A plan for property acquisition, authorizing the city manager to:

(a) Acquire the property by purchase; or

(b) Acquire the property by eminent domain, pursuant to Ohio Revised Code chapter 163.

(4) The specific method of blight remediation. The council shall determine which of the following is appropriate:

(a) Demolition of the structure or improvement;

(b) Rehabilitation of the structure or improvement;

(c) Any other proposal that will remediate the blight by addressing the specific criteria identified by council that supports the determination that the property is a blighted property.

(5) A statement of intent regarding property disposition.

(Ordained by Emer. Ord. No. 044-2011, § 1, eff. Feb. 16, 2011)

Sec. 727-3-B2. Blighted Property.

"Blighted property" shall mean any property, that, in its existing state, endangers the public's health, safety, or welfare because a structure or condition upon the property vio-

lates minimum health or safety standards. To be deemed "blighted" a property must meet at least two of the following criteria:

(1) Within the prior year, a structure or a portion of a structure upon the property has been ordered vacated, kept vacant, or deemed dangerous or unsafe pursuant to Cincinnati Municipal Code ("CMC") Chapters 1101 and 1117;

(2) The criminal activity upon the property is so substantial that the council has declared it a high crime property. In order for the council to declare a property a "high-crime property" the council must conduct a public hearing as set forth in § 727-15.

(3) The property is chronically out of compliance with the requirements of CMC Chapters 714, 1101, 1117 or 1119, based on the number of violations contained within the notice(s) of violation issued pursuant to those chapters in the two preceding years. A property shall be deemed "chronically out of compliance" if the city's chief building official determines that the number of violations ordered corrected in the two preceding years was ten or more and, of those violations, at least ten were not addressed within the timeframe set forth in the notice(s) of violation.

(4) The property is certified delinquent on the property's tax duplicate;

(5) The property has outstanding health or fire code violations pursuant to CMC Chapter 602 or CMC §§ 1201-21 or 1201-33 and those violations have not been corrected within the time frame set forth in the notice(s) of violation; or

(6) Within the prior two years, the property has been the subject of a failed blight remediation proposal.

(Ordained by Emer. Ord. No. 044-2011, § 1, eff. Feb. 16, 2011)

Sec. 727-3-B3. Blight Remediation Proposal.

"Blight remediation proposal" shall be a plan submitted by the owner of record within 30 days of the notification as set forth in § 727-9. In order to be deemed sufficient, the plan must provide a means by which the owner of record will remediate the identified blight, specifically addressing each of the criteria identified in the preliminary designation report. The plan must accomplish blight remediation within 6 months of the timely submission of the blight remediation proposal.

(Ordained by Emer. Ord. No. 044-2011, § 1, eff. Feb. 16, 2011)

Sec. 727-3-F. Failed Blight Remediation Proposal.

If within two years following the initial submission of the blight remediation proposal it is determined by the council that any one of the criteria identified by the preliminary designation report has recurred on the property, the proposal shall be deemed a "failed blight remediation proposal." Further, if the blight remediation proposal fails to remediate the conditions identified in the preliminary designation report within six months, it shall be deemed a failed blight remediation proposal. A failed blight remediation proposal shall prevent consideration of any subsequent blight remediation proposal from the same owner of record.

(Ordained by Emer. Ord. No. 044-2011, § 1, eff. Feb. 16, 2011)

Sec. 727-3-O. Owner of Record.

"Owner of record" shall mean the person, persons or entity holding title to property where that interest is recorded as a deed in the Hamilton County Recorder's office.

(Ordained by Emer. Ord. No. 044-2011, § 1, eff. Feb. 16, 2011)

Sec. 727-3-P. Preliminary Designation Report.

"Preliminary designation report" shall mean a report drafted by the city manager or his designee, upon a request of a majority of the members of the council, analyzing whether a particular property is "blighted property." The report shall contain the specific criteria, if any, that support a finding that the property is "blighted property" and the basis for the city manager's determination. The report shall include all supporting documents and any other information upon which the city manager relies to form his opinion. If the council has not yet determined that the property is a "high-crime property" and the city manager determines that the property may be eligible for designation as a "high-crime property," the city manager must request that council conduct the hearing as set forth in § 727-15 prior to the completion of the preliminary designation report.
(Ordained by Emer. Ord. No. 044-2011, § 1, eff. Feb. 16, 2011)

Sec. 727-5. Notice.

For purposes of this chapter, all notice to the owner of record shall be by certified mail. Where the certified mail is returned unclaimed, notice shall be sent by regular mail and shall be posted upon the property. If the property is vacant, the city manager or clerk of council shall employ any other additional reasonable steps in order to provide notice to the owner of record. Notice to lienholders shall be by regular mail. Notice to all other persons or entities shall be by regular or electronic mail.
(Ordained by Emer. Ord. No. 044-2011, § 1, eff. Feb. 16, 2011)

Sec. 727-7. Preliminary Designation of Property as Blighted.

Upon a request by council, the city manager shall prepare a preliminary designation report. The report shall provide a preliminary determination as to whether or not a particular property is a blighted property. Only a property preliminarily determined by the city manager to be a blighted property shall be eligible for blight elimination, within the meaning of this chapter.
(Ordained by Emer. Ord. No. 044-2011, § 1, eff. Feb. 16, 2011)

Sec. 727-9. Procedures upon a Preliminary Designation of Property as Blighted.

Where the city manager preliminarily determines that a property is blighted property the city manager shall:

(1) Send notice the owner of record that the property has been preliminarily designated a blighted property. The notice shall include a copy of the preliminary designation report and the requirements of a blight remediation proposal.

(2) Inform the owner of record that within 30 days from the date the notice is issued, the owner must respond in writing with a blight remediation proposal to address and remediate the specific conditions identified in the preliminary designation report. The council shall determine whether the blight remediation proposal is sufficient.

(3) Inform the owner of record that upon a failure to respond within the 30-day period, the city manager shall inform the council that the property is eligible to be declared blighted property pursuant to the procedures set forth in §§ 727-11 and 727-13 below.

(4) Submit any blight remediation proposal to the council. The council shall conduct a public hearing to determine the sufficiency of the blight remedia-

tion proposal. If the council determines that the proposal is insufficient, then the owner of record shall be informed that the property is eligible to be declared a blighted property, pursuant to the procedures set forth in §§ 727-11 and 727-13 below. If the proposal is sufficient, then the property shall not be eligible for blight elimination within the meaning of this chapter for the time period of the blight remediation proposal or six months, whichever is longer.

(Ordained by Emer. Ord. No. 044-2011, § 1, eff. Feb. 16, 2011)

Sec. 727-11. Public Hearing and Procedure.

Upon the completion of the procedures as set forth in § 727-9, the city manager shall provide to the council any property that is eligible for blight elimination within the meaning of this chapter. For each such property, the city manager shall provide to the council a preliminary blight abatement plan.

Upon receipt of a preliminary blight abatement plan from the city manager, council shall set a date for a public hearing to determine whether the property is a blighted property. If the property is determined to be a blighted property, council shall adopt a blight abatement plan.

At least 14 days prior to the date set for the public hearing, the clerk of council shall notify the owner of record, all lienholders whose interest is recorded in the Hamilton County Recorder's office, and tenants of the time and place of the hearing. The notification shall also inform the owner of record, all lienholders whose interest is recorded in the Hamilton County Recorder's office, and tenants of their right to appear at the hearing to show cause why the property should not be declared blighted property, why the property in its existing state does not pose a threat to the public health, safety or welfare or why the property should not be acquired for the purpose of eliminating blight and preventing recurrence of blight. Notice of the hearing shall be provided to the owner of record at his last known address, to all lienholders whose interest is recorded in the Hamilton County Recorder's office, to tenants, or to any other known interested party. Notice shall also be provided to all abutting and adjacent property owners, as well as the community council for the area in which the property is located.

At the hearing, the city manager or his designee shall present evidence to the council, including the preliminary designation report. The preliminary designation report shall be prima facie evidence that the property is a blighted property.

The owner of record shall have an opportunity to address the council and to present evidence and testimony. Members of the public shall also be provided with an opportunity to address the council.

(Ordained by Emer. Ord. No. 044-2011, § 1, eff. Feb. 16, 2011)

Sec. 727-13. Legislative Determination and Adoption of Blight Abatement Plan.

No blight abatement plan shall be effective until an ordinance has been adopted by council and notice of the blight abatement plan and ordinance has been provided to the owner of record. Upon completion of the hearing as set forth in § 727-11, council shall at the same or a subsequent meeting make findings and adopt an ordinance, as appropriate, as to:

(1) Whether or not the property is a blighted property; and

(2) Whether or not the blighted property in its existing state poses a threat to the public health, safety or welfare; and

(3) Whether or not it is necessary to acquire the property in order to eliminate blight, prevent recurrence of blight and further the purposes of this chapter.

Should council determine that the property is a blighted property that, in its existing state, poses a threat to the public health, safety or welfare but that it is not necessary to acquire the property in order to eliminate blight, prevent recurrence of blight and further the purposes of this chapter, it may direct the city manager to take other appropriate action.
(Ordained by Emer. Ord. No. 044-2011, § 1, eff. Feb. 16, 2011)

Sec. 727-15. Procedure for Determination of High Crime Property.

In order to be deemed a high-crime property, the council must request a report from the Cincinnati Police Department containing the arrest and offense reports at the particular property for the prior two years. The arrest and offense reports shall be broken down by Part I and Part II crimes. The report shall also contain an evaluation by the chief of the Cincinnati Police Department as to whether a particular and consistent problem exists at the property, such that it should be declared a "high-crime property." Upon receipt of the report, a public hearing shall be set to consider the report. The owner of record shall be notified by the clerk of council at least 14 days in advance of the hearing; the notice shall contain a copy of the report. Following the public hearing, the council shall make a determination as to whether the property shall be deemed a "high-crime property." The council may initiate the hearing at any time concurrently with or after a request for a preliminary designation report or upon a request of the city manager.
(Ordained by Emer. Ord. No. 044-2011, § 1, eff. Feb. 16, 2011)

Sec. 727-17. Implementation of Blight Abatement Plan.

Upon the adoption by council of an ordinance and blight abatement plan and after appropriate notice has been provided pursuant to § 727-11, the city manager is hereby authorized to implement the blight abatement plan.
(Ordained by Emer. Ord. No. 044-2011, § 1, eff. Feb. 16, 2011)

Sec. 727-19. Tenant Relocation.

Where the blighted property is occupied by tenants, relocation assistance shall be provided consistent with the requirements of CMC chapter 740.
(Ordained by Emer. Ord. No. 044-2011, § 1, eff. Feb. 16, 2011)

Chapter 729

WASTE DISPOSAL

Sec. 729-1. Definitions.
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Sec. 729-1-C. Repealed.
Sec. 729-1-C1. Commercial Waste.
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Sec. 729-1-C3. City Recycling Container.
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Sec. 729-1-O. Repealed.
Sec. 729-1-P. Private Waste Collector.
Sec. 729-1-P1. Putrescible Waste.
Sec. 729-1-R. Recyclable Materials.
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Sec. 729-1-U. Unacceptable Waste.
Sec. 729-1-W. Waste.
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Sec. 729-5. Waste Containers; Requirements.
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Sec. 729-44. Repealed.
Sec. 729-45. Repealed.
Sec. 729-47. Repealed.
Sec. 729-49. Repealed.
Sec. 729-51. Repealed.
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Sec. 729-59. Commercial Waste.

Sec. 729-60. Commercial Establishments to Maintain Commercial Waste Collection Contract.
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Sec. 729-69. Precautions Against Wind Dispersal.
Sec. 729-71. Personal Property Left or Abandoned on Streets and Sidewalks.
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Sec. 729-90. Solid Waste Disposal—Host Fee.
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Sec. 729-94. Disposal of Used Tires; Reporting.
Sec. 729-99. Penalties.
Sec. 729-99-A. Repealed.
Sec. 729-99-B. Repealed.
Sec. 729-99-C. Repealed.

Sec. 729-1. Definitions.

For the purpose of this chapter the words and phrases defined in the sections hereunder shall have the meanings therein respectively ascribed to them, unless a different meaning is clearly indicated by the context.
(C.O. 707-1; renumbered to C.M.C. 729-1, eff. Jan. 1, 1972)

Sec. 729-1-A. Acceptable Waste.

"Acceptable waste" shall mean any waste generated at a dwelling, except for waste defined as unacceptable waste in Section 729-1-U.
(C.O. 707-1e; renumbered to C.M.C. 729-1-A, eff. Jan. 1, 1972; a. Ord. No. 463-2012, § 2, eff. Oct. 7, 2013)

Sec. 729-1-B. Bulk Refuse.

"Bulk refuse" shall mean acceptable waste that requires special collection arrangements due to size, weight, or shape. Bulk refuse is individual items that weigh more than 40 pounds, exceed 48 inches in length, or exceed 100 inches in overall dimension (the total of length plus width plus depth), which cannot reasonably be divided or disassembled into smaller items. Bulk refuse is not a large container filled with smaller items or a large pile of small items, and these items are not eligible for collection pursuant to Section 729-93.
(Ordained by Ord. No. 463-2012, § 4, eff. Oct. 7, 2013)

Sec. 729-1-C. Repealed.
(C.O. 707-1b; renumbered to C.M.C. 729-1-C, eff. Jan. 1, 1972; r. Ord. No. 463-2012, § 1, eff. Oct. 7, 2013)

Sec. 729-1-C1. Commercial Waste.

"Commercial waste" shall mean all waste not generated by the occupants of a dwelling.
(C.O. 707-1f; renumbered to C.M.C. 729-1-C1, eff. Jan. 1, 1972; a. Ord. No. 463-2012, § 2, eff. Oct. 7, 2013)

Sec. 729-1-C2. Commercial Waste Collector.

"Commercial waste collector" shall mean all persons, firms or corporations, in the commercial business of hauling waste other than their own.
(C.M.C. 729-1-C2; ordained by Ord. No. 457-1975, eff. Oct. 24, 1975)

Sec. 729-1-C3. City Recycling Container.

"City Recycling Container" shall mean all recycling containers provided by the city, including 96-, 64-, and 35-gallon carts, 18-gallon bins, recycling drop-off dumpsters, and such other containers as the city may provide for the collection of recyclable materials.
(Ordained by Ord. No. 046-2011, § 1, eff. March 16, 2011)

Sec. 729-1-D. Disposal.

"Disposal" or "Dispose" shall mean the discharge, deposit, dumping, spilling, leaking, emitting, or placing of any waste material on any land, except if the disposition or placement constitutes temporary storage or treatment. Disposal shall not mean injection into any land by well or otherwise, which shall be prohibited on any land in the city. Notwithstanding the foregoing, disposal of waste into a residential septic system, as that term is defined in OAC 1301:7-9-02(B)(54), shall be permitted.
(C.M.C. 729-1-D; ordained by Ord. No. 407-1993, eff. Nov. 17, 1993; a. Ord. No. 314-2012, § 1, eff. Sept. 1, 2012)

Sec. 729-1-D1. Dwelling.

"Dwelling" as used in Chapter 729 shall mean a building that contains no more than four dwelling units and shall include an attached single-family dwelling. "Dwelling" does not include any of the following: (i) a building that contains any combination of business and residential uses other than a

business use that is a home occupation as defined in CMC Section 1401-01-H3 and that meets the requirements of CMC Section 1419-17; or (ii) any building owned by a political subdivision of the state of Ohio or a federal or state agency, regardless of the number of dwelling units contained in the building. As used in this chapter, "dwelling units" shall have the same meaning as in CMC Section 1401-01-D15 and "attached single-family dwelling" shall have the same meaning as in CMC Section 1401-01-A12.

Nothing in this chapter or in Chapter 730 shall prohibit the City from collecting waste, including yard waste, from City-owned buildings or property.
(Ordained by Ord. No. 463-2012, § 4, eff. May 1, 2013; a. Ord. No. 041-2013, § 4, eff. Feb. 20, 2013; Ord. No. 064-2013, § 1, eff. March 22, 2013)

Sec. 729-1-G. Garbage.

"Garbage" shall mean all putrescible wastes not from an industrial source.
(C.O. 707-1d; renumbered to C.M.C. 729-1-G, eff. Jan. 1, 1972; a. Ord. No. 463-2012, § 2, eff. Oct. 7, 2013)

Sec. 729-1-H. Hazardous Waste.

"Hazardous Waste" shall have the same meaning as set forth in Ohio Revised Code section 3734.01 and shall include waste that has otherwise been identified as hazardous in rules promulgated pursuant to Section 729-81.
(C.M.C. 729-1-H; ordained by Ord. No. 407-1993, eff. Nov. 17, 1993; r. Ord. No. 463-2012, § 1, eff. Oct. 7, 2013; reordained by Ord. No. 311-2014, § 1, eff. July 1, 2015)

Sec. 729-1-I. Infectious Waste.

"Infectious Waste" shall mean infectious waste as defined in Section 3734.01(R) Infectious Waste, of the Ohio Revised Code.
(C.M.C. 729-1-I; ordained by Ord. No. 407-1993, eff. Nov. 17, 1993)

Sec. 729-1-L. Litter.

For purposes of this chapter, "litter" shall mean any items, including personal property items, left on the sidewalk or street that are not authorized to be deposited on the sidewalk or street by this chapter or any other chapter of the Cincinnati Municipal Code.
(Ordained by Ord. No. 311-2014, § 2, eff. July 1, 2015)

Sec. 729-1-N. Repealed.
(C.O. 707-1c; renumbered to C.M.C. 729-1-N, eff. Jan. 1, 1972; r. Ord. No. 463-2012, § 1, eff. Oct. 7, 2013)

Sec. 729-1-O. Repealed.
(C.M.C. 729-1-O; ordained by Ord. No. 407-1993, eff. Nov. 17, 1993; a. Ord. No. 463-2012, § 2, eff. Oct. 7, 2013; r. Ord. No. 311-2014, § 28, eff. July 1, 2015)

Sec. 729-1-P. Private Waste Collector.

"Private waste collector" shall mean any person, firm or corporation engaged in the practice of operating their own trucks for the removal of their own waste, and not in the commercial waste collection business.
(C.M.C. 729-1-P; ordained by Ord. No. 457-1975, eff. Oct. 24, 1975)

Sec. 729-1-P1. Putrescible Waste.

"Putrescible waste" shall mean waste that contains organic matter that has the tendency to decompose in a manner producing offensive smelling by-products.
(Ordained by Ord. No. 463-2012, § 4, eff. Oct. 7, 2013)

Sec. 729-1-R. Recyclable Materials.

"Recyclable Materials" shall mean newspapers, junk mail, magazines, phonebooks, cardboard, paperboard, glass bottles, aluminum cans, bi-metal cans, steel cans, plastic bot-

tles, and such other materials determined by the director of the office of environmental quality.
(Ordained by Ord. No. 046-2011, § 2, eff. March 16, 2011)

Sec. 729-1-R1. Residential Waste.

"Residential waste" means that portion of the household waste stream that is normally disposed of by occupants of dwellings, including common household waste, yard waste, recyclables, and bulk refuse.
(Ordained by Emer. Ord. No. 041-2013, § 11, eff. Feb. 20, 2013; r. Emer. Ord. No. 064-2013, § 3, eff. March 22, 2013; ordained by Ord. No. 463-2012, § 4, eff. Oct. 7, 2013)

Sec. 729-1-S. Repealed.
(C.M.C. 729-1-S; ordained by Ord. No. 407-1993, eff. Nov. 17, 1993; r. Ord. No. 463-2012, § 1, eff. Oct. 7, 2013)

Sec. 729-1-U. Unacceptable Waste.

"Unacceptable waste" shall mean waste that is any of the following: hazardous waste as defined by Section 729-1-H; infectious waste as defined under Section 3734.01 of the Ohio Revised Code; central air conditioning or heating units; fire-damaged items, metal grocery carts; compressed gas cylinders, including but not limited to propane and oxygen tanks; asbestos; rocks, dirt, and sand; construction, renovation, and demolition debris; or other similar items designated by the director of public services or his or her designee. "Unacceptable waste" shall not include residual quantities of a consumer product in its original container or medical waste generated by the owner or occupant of a dwelling and packaged according to the rules promulgated pursuant to Section 729-81.
(Ordained by Ord. No. 463-2012, § 4, eff. Oct. 7, 2013; a. Ord. No. 311-2014, § 3, eff. July 1, 2015)

Sec. 729-1-W. Waste.

"Waste" shall mean all trash, rubbish, garbage, food waste and other refuse or discarded matter required to be removed from private and public places. It shall not include yard waste or recognized by-products of any business or industry having commercial value and regularly handled in the ordinary course of business, unless such by-products, or the handling of them, shall become a nuisance or menace to the public health.
(C.O. 707-1a; renumbered to C.M.C. 729-1-W, eff. Jan. 1, 1972; Emer. Ord. No. 463-2012, § 2, eff. April 1, 2013)

Sec. 729-1-Y. Yard Waste Materials.

"Yard Waste Materials" shall mean leaves, grass clippings, brush, garden waste, tree trunks, Christmas/holiday trees, tree trimmings, prunings and/or other similar vegetative matter, but does not include dirt, rocks, treated lumber or wood, or tree stumps.
(C.M.C. 729-1-Y; ordained by Ord. No. 407-1993, eff. Nov. 17, 1993; a. Ord. No. 311-2014, § 5, eff. July 1, 2015)

Sec. 729-3. Repealed.
(C.O. 707-2; A. Ord. No. 136-1969, eff. May 4, 1969; renumbered to C.M.C. 729-3, eff. Jan. 1, 1972; a. Ord. No. 76-1982, eff. Apr. 2, 1982; r. Ord. No. 463-2012, § 1, eff. Oct. 7, 2013)

Sec. 729-5. Waste Containers; Requirements.

(a) *Acceptable Waste Containers.* Only the following types of containers may be used for waste collection by the city:

1) Containers provided by the city; or

2) Wheeled containers that are compatible with the city's semi-automated lift systems, have tight-fitting lids, are of substantial construction and water tight, and are authorized by the direc-

tor of public services or his or her designee as an acceptable waste container; or

3) Other containers, including plastic bags, specifically approved by the director of the department of public services or his or her designee for use by a particular dwelling that has been granted an exemption under subsection (b) below.

Waste containers provided to residents by the city remain the property of the city. No person shall intentionally deface, damage, or destroy any city waste container, including without limitation, damaging the container through overloading it.

Containers for waste that is collected by an entity other than the city shall have tight-fitting lids and be of substantial construction and water tight.

A person who violates this subsection (a) commits a Class B Civil Offense under Section 1501-5(b).

(b) *Exemptions.* The director of public services or his or her designee may designate a dwelling exempt from the requirements in subsections (a)(1) and (2) above when the director finds that unique circumstances related to the location of the dwelling, such as topography or lack of storage space, make use of such containers impracticable or unsafe. For each exempt dwelling, the director of public services shall specify the alternate types of waste containers, including plastic bags, that must be used by the residents of the dwelling.

(c) *Relocation of City-Provided Container.* If the city provides waste containers, each container shall be assigned to a specific address. No person shall relocate a city waste container to an address other than the one to which it is assigned. When a resident vacates the address, the resident shall leave the container at the assigned address.

When filled and set out for collection by the city, waste containers must be easily and readily moveable and capable of being handled by one person.

(d) *Use of Waste Containers.* As part of the city's regular waste collection service, the city shall collect only that waste that fits in the containers provided by the city or specifically approved by the director of public services or his or her designee. The city may collect waste that does not fit in the containers provided by the city or specifically approved by the director of public services or his or her designee as a bulk or special collection as authorized by Section 729-93.

(e) *Plastic Bags.* Plastic bags or other liners may be used inside containers provided by the city or containers specifically approved by the director of public services or his or her designee. Unless exempt under subsection (b), plastic bags or other liners may not be (i) used to store residential or commercial waste on the right-of-way; or (ii) placed at the curb for collection. Plastic bags shall not be used for yard waste, even if it is commingled with other waste.

(f) *Cleaning Waste Containers.* Owners, agents, lessees, occupants and persons in charge of a building or dwelling shall keep all containers used for waste collection clean and disinfected.

(g) *Violation.* In addition to any fine imposed by Section 729-99, any person who damages, defaces, destroys, or relocates a city waste container shall be liable to the city for a civil penalty equal to the container's replacement value.

(C.O. 707-3; renumbered to C.M.C. 729-5, eff. Jan. 1, 1972; a. Ord. No. 457-1975, eff. Oct. 24, 1975; a. Ord. No. 343-2004, eff. Oct. 27,

2004; a. Ord. No. 463-2012, § 2, eff. Oct. 7, 2013; Ord. No. 311-2014, § 7, eff. March 1, 2015)

Sec. 729-7. Setting Out Containers.

It shall be the duty of every owner, tenant, agent, lessee, occupant, and person in charge of any and every building, premises, or place of business in the city to place all waste that is to be collected in properly closed containers that meet the requirements of Section 729-5. Such containers shall be placed not more than three feet from the curb or curbline in front of the building unless the owner, tenant, agent, lessee, occupant, or person in charge of the building, premises, or place of business is notified by or receives approval from the department of public services to place the containers in another location. All containers must be set out for collection no earlier than 5:00 p.m. on the day before the scheduled day of collection, but no later than 6:00 a.m. on the day of collection. The waste containers shall in all cases be kept outside of any fence, wall, enclosure, dwelling, or building on the day of collection.

Any city resident with a physical limitation that impacts the resident's ability to set the week's accumulation of waste at the curb for collection may receive set-out service as provided in Section 729-11 by providing written documentation of the condition to the director of public services or the director's designee and following procedures established by the director for requesting set-out service. The director of public services or the director's designee will approve any request for set-out service that meets the requirements of this section.
(Sec. 707-4; ordained by Ord. No. 136-1969, eff. May 4, 1969; a. Ord. No. 199-1969, eff. May 14, 1969; a. Ord. No. 457-1975, eff. Oct. 24, 1975; renumbered to C.M.C. 729-7, eff. Jan. 1, 1972; a. Ord. No. 62-1976, eff. Feb. 19, 1976; a. Ord. No. 76-1982, eff. Apr. 2, 1982; a. Ord. No. 616-1984, eff. Jan. 28, 1984; a. Ord. No. 463-2012, § 2, eff. Oct. 7, 2013; a. Ord. No. 287-2023, § 1, eff. August 2, 2023; Ord. No. 0391-2023, §§ 1, 2, eff. Nov. 15, 2023)

Analogous to C.O. 704-4; r. Ord. No. 136-1969, eff. May 4, 1969.

Cross reference—Penalty, § 729-99-B.

Sec. 729-9. Repealed.

(Sec. 707-4b; ordained by Ord. No. 136-1969, eff. May 4, 1969; a. Ord. No. 199-1969, eff. May 14, 1969; renumbered to C.M.C. 729-9, eff. Jan. 1, 1972; a. Ord. No. 76-1982, eff. Apr. 2, 1982; a. Ord. No. 616-1983, eff. Jan. 28, 1984; r. Ord. No. 463-2012, § 1, eff. Oct. 7, 2013)

Cross reference—Penalty, § 729-99-B.

Sec. 729-11. Set-out Service for Hardship Cases.

At no time shall any employee of the division of sanitation go beyond any fence, wall, gate or any enclosure for the purpose of removing waste from any such premises except where specifically authorized by the director of public services or his or her designee to remove waste due to extreme hardship cases.

City employees shall not enter a dwelling or building to remove waste.
(Sec. 707-4c; ordained by Ord. No. 136-1969, eff. May 4, 1969; renumbered to C.M.C. 729-11, eff. Jan. 1, 1972; a. Ord. No. 76-1982, eff. Apr. 2, 1982; a. Ord. No. 463-2012, § 2, eff. Oct. 7, 2013)

Sec. 729-13. Disposal of Uncollected Waste.

It shall be the duty of every owner, tenant, agent, lessee, occupant and person in charge of any and every building, premises, or place of business in the city whose waste is not placed at the point or points of collection on the scheduled date and time of collection, to

dispose of the uncollected waste at the sole expense of such owner, tenant, agent, lessee, occupant and person in charge of any and every building, premises or place of business before the time of the next regular scheduled date and time of collection or the waste shall be placed at the point or points of collection by the next regularly scheduled date and time of collection.
(Sec. 707-4d; ordained by Ord. No. 136-1969, eff. May 4, 1969; renumbered to C.M.C. 729-13, eff. Jan. 1, 1972)

Sec. 729-15. Containers to be Removed from Collection Points.

It shall be the duty of every owner, tenant, agent, lessee, occupant and person in charge of any and every building or premises or place of business in the city to remove any and all waste containers from the points mentioned in Sections 729-7 and 729-9 before midnight of that day on which the waste was collected.
(Sec. 707-4e; ordained by Ord. No. 136-1969, eff. May 4, 1969; renumbered to C.M.C. 729-15, eff. Jan. 1, 1972; a. Ord. No. 463-2012, § 2, eff. Oct. 7, 2013)

Sec. 729-17. Locations Serviced by Dumpster Vehicles.

Sections 729-7 and 729-11 shall not apply to any location serviced by dumpsters or dumpmaster-type vehicles.
(Sec. 707-4f; ordained by Ord. No. 136-1969, eff. May 4, 1969; renumbered to C.M.C. 729-17, eff. Jan. 1, 1972; a. Ord. No. 463-2012, § 2, eff. Oct. 7, 2013)

Sec. 729-19. Owners to Provide Containers.

The owner of each dwelling shall ensure that the occupants of the dwelling are provided with city-approved containers which will not exceed one container per unit.
(C.O. 707-5; renumbered to C.M.C. 729-19, eff. Jan. 1, 1972; a. Ord. No. 463-2012, § 2, eff. Oct. 7, 2013)

Cross reference—Penalty, § 729-99.

Sec. 729-21. Dates of Collecting Waste.

The city manager or his or her designee shall be authorized to arrange date schedules for the public collection of waste in the various sections of the city.
(C.O. 707-8; renumbered to C.M.C. 729-21, eff. Jan. 1, 1972; a. Ord. No. 463-2012, § 2, eff. Oct. 7, 2013)

Sec. 729-23. Repealed.

(C.O. 707-10; renumbered to C.M.C. 729-23, eff. Jan. 1, 1972; r. Ord. No. 463-2012, § 1, eff. Oct. 7, 2013)

Cross reference—Penalty, § 729-99.

Sec. 729-25. Waste to be Placed in Containers Promptly.

No commercial or residential waste shall be allowed to remain exposed in any building or on any premises a longer time than shall be reasonably necessary to remove and deposit the same in proper waste containers. Waste must be in a properly closed container at all times.
(C.O. 707-11; renumbered to C.M.C. 729-25, eff. Jan. 1, 1972; a. Ord. No. 463-2012, § 2, eff. Oct. 7, 2013)

Cross reference—Penalty, § 729-99.

Sec. 729-27. Repealed.

(C.O. 707-12; renumbered to C.M.C. 729-27, eff. Jan. 1, 1972; r. Ord. No. 463-2012, § 1, eff. Oct. 7, 2013)

Cross references—Animals, birds, fowl, ch. 701; penalty, § 729-99-A.

Sec. 729-29. Repealed.

(C.O. 707-13; renumbered to C.M.C. 729-29, eff. Jan. 1, 1972; a. Ord. No. 463-2012, § 2, eff. Oct. 7, 2013; r. Ord. No. 311-2014, § 9, eff. July 1, 2015)

Cross reference—Penalty, § 729-99-A.

Sec. 729-30. Dumping Prohibited.

(a) As used in this section, "vehicle" shall include but not be limited to a car, truck, trailer, semitrailer, or pole trailer.

(b) No person shall dump or otherwise dispose of waste, including acceptable waste, unacceptable waste, commercial waste or yard waste materials, by use of any vehicle on any public or private property. Any owner of a vehicle who permits or employs another person to use the vehicle and who knows or should have known through due diligence that the vehicle will be used for the purpose described in this division violates this subsection. Each individual act of dumping or disposal of waste by use of a vehicle on any public or private property constitutes a separate violation under this subsection regardless of whether the acts occur on the same day and at the same or multiple locations.

(c) A violation of subsection 729-30(b) is a Class E Civil Offense as defined by CMC subsection 1501-11(b) or a misdemeanor of the first degree. A person who violates subsection 729-30(b) may be liable for the civil fine specified in § 1501-99 for a Class E Civil Offense.

(d) Notwithstanding any other penalty authorized by this section, if the city manager or the city manager's designee ascertains that a person has violated this section, the city manager or the city manager's designee may direct the removal of the waste and the city solicitor may take any legal action necessary to collect the cost of the removal from the violator.

(e) This section shall not apply to land being used under a City of Cincinnati building or construction permit or license, a City of Cincinnati permit or license or a conditional zoning permit or variance to operate a junk yard, scrap metal processing facility or similar business, or a permit or license issued pursuant to Chapter 3734, Section 4737.05 to 4737.12, or Chapter 6111 of the Ohio Revised Code.

(Ordained by Ord. No. 311-2014, § 10, eff. Dec. 5, 2014; a. Ord. No. 0389-2023, § 2, eff. Nov. 15, 2023)

Sec. 729-31. Impoundment of Motor Vehicles Used to Facilitate Illegal Dumping.

(a) A police officer may impound and cause to be towed any motor vehicle when the officer has probable cause to believe that the motor vehicle was used to facilitate a violation of subsection 729-30(b).

(b) Upon impounding the motor vehicle for violation of subsection 729-30(b), the police officer shall provide by hand delivery to any owner or person in control of the motor vehicle present at the time of impoundment the following:

(1) notice that the motor vehicle is impounded;

(2) notice of a civil offense and civil fine in accordance with Section 1501-13;

(3) the location of the city impound lot: and

(4) the right to post a cash bond pursuant to subsection 729-31(d)(1).

If the motor vehicle owner is not present to receive such notice, the police officer or agent of the city police department shall provide notice to all owner(s) of the motor vehicle at addresses set forth in the motor vehicle registration within three business

days of the date of impoundment. The notice shall include the information specified in subsections (b)(1) through (b)(4) above.

(c) The owner of the impounded motor vehicle may admit the violation of subsection 729-30(b) by paying the civil fine for the underlying Class E Civil Offense as specified in Section 1501-99, together with all towing and storage costs in accordance with Section 513-7. The motor vehicle shall be released to the owner when all civil fines and towing and storage costs are paid.

(d) A person served with notice of a violation of subsection 729-30(b) and/or impoundment pursuant to Section 729-31(a) may answer the charge in accordance with Section 1501-15 and may request a hearing before a hearing examiner in accordance with Section 1501-17.

(1) The owner may secure release of the motor vehicle prior to the hearing by posting a cash bond equal to the amount of the civil fine specified in Section 1501-99 for a Class E Civil Offense, together with all towing and storage costs in accordance with Section 513-7.

(2) At the hearing, the city shall have the burden to show by a preponderance of the evidence that the motor vehicle was used in the commission of a violation of Section 729-30(b). It shall be an affirmative defense to this charge if the motor vehicle owner is able to establish, by a preponderance of the evidence, that the motor vehicle was stolen at the time of the commission of the offense. For purposes of this chapter, "stolen" shall mean the trespassory taking and carrying away of the tangible personal property of another with the intent to permanently deprive the other of the property.

(3) The hearing examiner shall issue a written decision determining whether a violation of Section 729-30(b) occurred and whether the motor vehicle was subject to impoundment pursuant to Section 729-31. If a violation is found, then the hearing examiner shall enter an order finding the person charged liable to the city for the fine specified in Section 1501-99 for the violation of Section 729-30(b), plus any and all accumulated towing and storage costs in accordance with Section 513-7.

(4) The motor vehicle shall be returned to the owner along with any posted cash bond, costs, or fees if the hearing examiner finds any of the following:

(i) That the city did not meet its burden of proof as set forth in this subsection;

(ii) That one of the exceptions of Section 729-31(e) applies; or

(iii) That the motor vehicle was stolen at the time it was impounded.

(e) No motor vehicle shall be impounded or towed pursuant to this section under either of the following circumstances:

(1) The motor vehicle was operating as a common carrier at the time it was subject to impoundment; or

(2) The motor vehicle is a rental vehicle from an automobile rental or leasing agency for a term of no more than thirty consecutive calendar days.

(f) The impounding of any motor vehicle authorized by Section 729-31 is in addition to any civil fines authorized by Section 729-30.

(Ordained by Ord. No. 0389-2023, § 1, eff. Nov. 15, 2023)

Sec. 729-33. Removing Waste From Public Street or Alley.

When waste has been set out in accordance with the division of sanitation regulations on a public street or alley for collection by the division of sanitation, no person shall remove any of such waste except with the consent of the owner. When waste has been set out in waste containers on private premises, no person shall remove any waste therefrom except with the consent of the owner or lessee of the premises.
(C.O. 707-16; renumbered to C.M.C. 729-33, eff. Jan. 1, 1972; a. Ord. No. 457-1975, eff. Oct. 24, 1975; a. Ord. No. 76-1982, eff. Apr. 2, 1982)

Cross reference—Penalty, § 729-99.

Sec. 729-37. Street Waste Receptacles.

Waste receptacles of the division of sanitation placed on the sidewalks and city streets shall be used only for such waste material as persons may have for disposal while passing along the streets. Such receptacles shall in no case be used for the disposal of trash, refuse or other waste material accumulated in residences or places of business.
(C.O. 707-20; renumbered to C.M.C. 729-37, eff. Jan. 1, 1972; a. Ord. No. 76-1982, eff. Apr. 2, 1982)

Cross reference—Penalty, § 729-99.

Sec. 729-39. Repealed.

(C.O. 707-22; renumbered to C.M.C. 729-39, eff. Jan. 1, 1972; a. Ord. No. 457-1975, eff. Oct. 24, 1975; a. Ord. No. 160-1982, eff. July 1, 1982; r. Ord. No. 463-2012, § 1, eff. Oct. 7, 2013)

Sec. 729-41. Repealed.

(C.O. 707-23; renumbered to C.M.C. 729-41, eff. Jan. 1, 1972; a. Ord. No. 457-1975, eff. Oct. 24, 1975; a. Ord. No. 76-1982, eff. Apr. 2, 1982; a. Ord. No. 160-1982, eff. July 1, 1982; r. Ord. No. 463-2012, § 1, eff. Oct. 7, 2013)

Cross reference—Penalty, § 729-99.

Sec. 729-43. Repealed.

(C.O. 707-24; a. Ord. No. 265-1962, eff. Aug. 4, 1962; a. Ord. No. 90-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 72943, eff. Jan. 1, 1972; a. Ord. No. 457-1975, eff. Oct. 24, 1975; a. Ord. No. 282-1979, eff. Sept. 1, 1979; r. Ord. No. 160-1982, eff. July 1, 1982)

Sec. 729-44. Repealed.

(C.M.C. 729-44; ordained by Ord. No. 457-1975, eff. Oct. 24, 1975; a. Ord. No. 467-1976, eff. Nov. 12, 1976; r. Ord. No. 160-1982, eff. July 1, 1982)

Sec. 729-45. Repealed.

(C.O. 707-25; renumbered to C.M.C. 729-45, eff. Jan. 1, 1972, a. Ord. No. 457-1975, eff. Oct. 24, 1975; r. ord. No. 160-1982. eff. July 1, 1982)

Sec. 729-47. Repealed.

(C.O. 707-26; renumbered to C.M.C. 729-47, eff. Jan. 1, 1972; a. Ord. No. 457-1975, eff. Oct. 24, 1975; r. Ord. No. 100-1982, eff. July 1, 1982)

Sec. 729-49. Repealed.

(C.O. 707-27; renumbered to C.M.C. 729-49, eff. Jan. 1, 1972; a. Ord. No. 57-1977, eff. Oct. 24, 1975; a. Ord. No. 37-1978, eff. Mar. 3, 1978; r. Ord. No. 76-1982, eff. Apr. 2, 1972; Ord. No. 160-1982, eff. July 1, 1982)

Sec. 729-51. Repealed.

(C.O. 707-28; renumbered to 729-51, eff. Jan. 1, 1972; a. Ord. No. 457-1975, eff. Oct. 24, 1975; a. Ord. No. 160-1982, eff. July 1, 1982; r. Ord. No. 463-2012, § 1, eff. Oct. 7, 2013)

Sec. 729-53. Transporting Waste.

No waste as defined in this chapter shall be transported through the streets except in

closed vehicles. No such vehicle shall at any time be kept open longer than absolutely necessary to receive the substances to be deposited therein; and the transporting vehicle shall not remain stationary more than five minutes at any one place in any street or alley.
(C.O. 707-29; renumbered to C.M.C. 729-53, eff. Jan. 1, 1972; a. Ord. No. 457-1975, eff. Oct. 24, 1975; a. Ord. No. 76-1982, eff. Apr. 2, 1982; a. Ord. No. 160-1982, eff. July 1, 1982; a. Ord. No. 463-2012, § 2, eff. Oct. 7, 2013)

Cross reference—Penalty, § 729-99-A.

Sec. 729-55. Repealed.
(C.O. 707-31; renumbered to C.M.C. 729-55, eff. Jan. 1, 1972; a. Ord. No. 457-1975, eff. Oct. 24, 1975; a. Ord. No. 160-1982, eff. July 1, 1982; r. Ord. No. 463-2012, § 1, eff. Oct. 7, 2013)

Sec. 729-57. Repealed.

(C.O. 707-31a; a. Ord. No. 11-1966, eff. Feb. 11, 1966; a. Ord. No. 127-1971, eff. Apr. 7, 1971; renumbered to C.M.C. 729-57, eff. Jan. 1, 1972; a. Ord. No. 457-1975, eff. Oct. 24, 1975; r. Ord. No. 160-1982, eff. July 1, 1982)

Sec. 729-59. Commercial Waste.

Commercial waste shall be hauled to disposal sites at the expense of the person, firm or corporation producing such waste.
(C.O. 707-32; renumbered to C.M.C. 729-59, eff. Jan. 1, 1972; a. Ord. No. 457-1975, eff. Oct. 24, 1975; a. Ord. No. 160-1982, eff. July 1, 1982; a. Ord. No. 463-2012, § 2, eff. Oct. 7, 2013)

Sec. 729-60. Commercial Establishments to Maintain Commercial Waste Collection Contract.

No owner of a commercial establishment as defined in Section 730-1-C2 shall fail to maintain a contract with a commercial waste collector for collecting and disposing of commercial waste from the premises of the commercial establishment. A person who violates this section commits a Class B Civil offense under section 1501-5(b).
(Ordained by Ord. No. 311-2014, § 11, eff. July 1, 2015)

Sec. 729-61. Sale of Recyclable Materials.

The city manager is authorized to sell paper, metal, plastic, glass and any other refuse not needed for a municipal purpose to the highest and best bidder, according to law, upon terms and specifications fixed before advertisement.
(C.O. 707-33; renumbered to C.M.C. 729-61, eff. Jan. 1, 1972; a. Ord. No. 463-2012, § 2, eff. Oct. 7, 2013)

Sec. 729-63. Repealed.
(C.O. 707-34; renumbered to C.M.C. 729-63, eff. Jan. 1, 1972; a. Ord. No. 368-1976, eff. Aug. 4, 1976; a. Ord. No. 160-1982, eff. July 1, 1982; a. Ord. No. 482-1984, eff. Oct. 24, 1984; r. Ord. No. 463-2012, § 1, eff. Oct. 7, 2013)

Sec. 729-65. Repealed.
(C.O. 707-36; a. Ord. No. 441-1964, eff. Dec. 4, 1966; renumbered to C.M.C. 729-65, eff. Jan. 1, 1972; r. Ord. No. 463-2012, § 1, eff. Oct. 7, 2013)

Cross reference—Traffic code, tit. V.

Sec. 729-67. Repealed.
(C.O. 707-37; renumbered to C.M.C. 729-67, eff. Jan. 1, 1972; r. Ord. No. 463-2012, § 1, eff. Oct. 7, 2013)

Sec. 729-69. Precautions Against Wind Dispersal.

All loose waste paper, rags, yard waste, and other waste material of such kind as to be subject to being blown about by the wind

or otherwise scattered must be hauled in such manner as not to litter the streets. Such materials shall not be unloaded along the public streets or sidewalks except in bags, boxes, bales or other suitable containers.
(C.O. 707-39; renumbered to C.M.C. 729-69, eff. Jan. 1, 1972; a. Ord. No. 463-2012, § 2, eff. Oct. 7, 2013)
Cross reference—Penalty, § 729-99-A.

Sec. 729-71. Personal Property Left or Abandoned on Streets and Sidewalks.

(a) Personal property shall not be abandoned or allowed to remain upon public streets or sidewalks by reason of eviction or otherwise. Such personal property shall be considered litter if it is not immediately removed and shall be subject to enforcement of any other applicable provisions of this code, unless the property is set out pursuant to a previously scheduled special collection in compliance with the requirements of Section 729-93.

(b) The city of Cincinnati shall not assume any liability of any type for any personal property abandoned on the street or sidewalk or disposed of as provided above.

(c) A property owner or person in control of property, such as lessee, agent, or tenant having charge of the land, who allows personal property to remain on the public streets or sidewalks abutting the land in violation of this section commits the civil offense specified below, and shall be subject to the associated civil fines as specified in Section 1501-99:

(i) For 3 or fewer items: Class B Civil Offense;

(ii) For 4 or more items: Class D Civil Offense.

(d) In addition to the penalty specified in subsection (c) above, when the director of public services or his or her designee ascertains that personal property has been placed on property within the city of Cincinnati in violation of this section, he or she may cause the removal of any accumulated litter and charge the removal costs to the owner or persons in control of such property.
(Sec. 707-40; ordained by Ord. No. 119-1964, eff. May 1, 1964; renumbered to C.M.C. 729-71, eff. Jan. 1, 1972; a. Ord. No. 84-1985, eff. Mar. 23, 1985; a. Ord. No. 463-2012, § 2, eff. Oct. 7, 2013; a. Ord. No. 311-2014, § 12, eff. July 1, 2015)

Sec. 729-73. Discharging Offensive Substances.

No person, firm, or corporation shall discharge or cause to be discharged from a house, factory, or premises into any street, alley or other public place, any offensive liquid or any substance harmful to property or the health of persons residing in or near such street, alley or other public place, or permit any offensive steam, gas, vapors or fumes harmful to property or health to escape or be discharged from any chimney, pipe or other vent on its premises.
(C.O. 707-41; renumbered to C.M.C. 729-73, eff. Jan. 1, 1972; a. Ord. No. 463-2012, § 2, eff. Oct. 7, 2013)
Cross reference—Penalty, § 729-99-A.

Sec. 729-75. Repealed.

(C.O. 707-43; renumbered to C.M.C. 729-75, eff. Jan. 1, 1972; r. Ord. No. 463-2012, § 1, eff. Oct. 7, 2013)
Cross reference—Penalty, § 729-99-A.

Sec. 729-77. Repealed.

(C.O. 707-45; renumbered to C.M.C. 729-77, eff. Jan. 1, 1972; r. Ord. No. 463-2012, § 1, eff. Oct. 7, 2013)
Cross reference—Penalty, § 729-99-A.

Sec. 729-79. Private Incinerators.

Nothing in the provisions of this chapter shall be construed to prohibit the use of private incinerators for the incineration of waste provided such incinerators conform to all provisions of law and are operated without causing offensive odors or other nuisance.
(C.O. 707-46; renumbered to C.M.C. 729-79, eff. Jan. 1, 1972; a. Ord. No. 463-2012, § 2, eff. Oct. 7, 2013)

Sec. 729-80. Repealed.
(C.M.C. 729-80, ordained by Ord. No. 314-1979, eff. Aug. 1, 1979; r. Ord. No. 462-2010, § 1, eff. Dec. 30, 2010)

Sec. 729-81. Rules.

The city manager or his or her designee shall be authorized to prepare and publish rules for the effective administration and enforcement of the provisions of this chapter, including without limitation, rules governing the collection and disposal of waste by private or commercial waste collectors. Any such rules so published shall have the force of law, and a violation of any rule intended to effect the purpose of any section of this chapter shall be punished in the same way as a violation of such section.
(C.O. 707-48; renumbered to C.M.C. 729-81, eff. Jan. 1, 1972; a. Ord. No. 463-2012, § 2, eff. Oct. 7, 2013)

Sec. 729-83. Refrigerators, Abandoning.

No person, firm, or corporation shall leave outside of any building or dwelling, in a place accessible to children, any abandoned, unattended, or discarded ice box, refrigerator or any other container of any kind which has an air-tight snap-lock or other device thereon without first removing the snap-lock or doors from the ice box, refrigerator or container.

Whoever violates this section is guilty of leaving unattended ice boxes or refrigerators, a misdemeanor of the fourth degree.
(C.M.C. 729-83; ordained by Ord. No. 523-1973, eff. Jan. 1, 1974)

Analogous to C.O. 901-r4; renumbered to C.M.C. 901-R4, eff. Jan. 1, 1972; r. Ord. No. 523-1973, eff. Jan. 1, 1974.

Sec. 729-85. Nighttime Waste and Recycling Collection.

No person, association, firm or corporation shall, during the hours from 11:00 p.m. to 7:00 a.m., engage in or undertake any waste or recycling collection activity that produces loud noises so to disturb the peace and quiet of the neighborhood, having due regard for the proximity of places of residence, hospitals, or other residential institutions.
(Ordained by Ord. No. 222-1987, eff. July 10, 1987; a. Ord. No. 463-2012, § 2, eff. Oct. 7, 2013)

Sec. 729-87. Recyclable Materials.

(a) *Taking Recyclables.* Recyclable materials placed on the curbside in a city recycling container or other container for recyclable materials will be collected by the city or its authorized agent. No person shall remove any recyclable materials or the container in which they are placed without the consent of the city manager except the owner or occupant of the dwelling or building to which the city recycling container is assigned.

(b) *Destruction of Container.* Recycling containers provided to residents by the city remain the property of the city. No person shall intentionally deface, damage, or destroy any city recycling container.

(c) *Relocation of Container.* Each city recycling container is assigned to a specific address. No person shall relocate a city recycling container to an address other than the one to which it is assigned. When a

resident vacates the address, the resident shall leave the container at the assigned address.

(d) *Setting Out and Removing Containers.* Recycling containers shall be set out and removed from the curb at the same time and in the same manner specified for trash containers in Section 729-7, Section 729-9, and Section 729-15 of the Cincinnati Municipal Code.

(e) *Recycling Not Mandatory.* Nothing in this section shall be construed as mandating participation in the city recycling program or prohibiting recyclable materials from being mixed with trash and set out for trash collection.

(f) *Violation Equal to Civil Offense.* In addition to any fine imposed by Section 729-99, any person who damages, defaces, destroys, or relocates a city recycling container shall be liable to the city for an administrative penalty equal to the container's replacement value.
(C.M.C. 729-87; ordained by Ord. No. 285-1989, eff. July 6, 1989; a. Ord. No. 046-2011, § 3, eff. March 16, 2011; a. Ord. No. 463-2012, § 2, eff. Oct. 7, 2013)

Sec. 729-88. Yard Waste Materials.

Yard waste materials placed at the curbside for collection and removal are the responsibility of the owner, the agent of the owner, or the person in control of the premises. Yard waste materials from a dwelling (i) shall not be co-mingled with other waste if the city provides separate yard waste collection; or (ii) may be set out for separate collection by a private hauler if the owner or person in control of the premises or the city has made prior arrangements with a private hauler for the collection and removal of yard waste materials.

(a) Yard waste materials set out for separate collection must comply with all of the following:

1. The yard waste materials shall not be co-mingled with any non-yard waste materials unless specifically authorized by the director of public services.
2. Yard waste materials shall be placed at the curbside no sooner than 5:00 p.m. on the day before the scheduled day of yard waste collection, but no later than 6:00 a.m. on the day of yard waste collection.
3. Yard waste materials shall be prepared for set out in a manner that does not pose a risk of injury to the person who collects it and that complies with one of the following criteria:
   A. Placed in a closed cart or trash can clearly labeled with the words "yard waste" that is easily and readily moveable and capable of being handled by one person.
   B. Placed in properly secured and closed paper bags not exceeding 40 pounds each.
   C. Placed in bundles tied with string, not wire or tape, not exceeding 40 pounds in weight, 48 inches in length, or 100 inches in overall dimensions (the total of length plus width plus depth).
4. Yard waste materials must be properly secured so materials are

not subject to being blown or scattered in the street or onto other property.

(b) No person shall dispose of or dump yard waste materials on any street or other public place or on any public property.

(c) No person shall tamper with yard waste materials, containers, bags, bundles or stickers placed at the curbside for collection.

(d) No person shall commit a deceptive or unfair act or practice in connection with any arrangement or transaction either oral or written for the collection and removal of yard waste materials from the curbside whether such act or practice occurs, before, during or after the arrangements or transaction. It shall constitute a deceptive or unfair act or practice when a person represents that the yard waste materials will be composted or otherwise beneficially used and fails to do so.

(C.M.C. 729-88; ordained by Ord. No. 407-1993, eff. 11-17-93; a. Ord. No. 48-1995, eff. Feb. 15, 1995; a. Ord. No. 212-1995, eff. June 21, 1995; Emer. Ord. No. 134-2011, § 1, eff. May 5, 2011; Ord. No. 463-2012, § 2, eff. April 1, 2013)

Sec. 729-89. Disposal of Unacceptable Waste.

(a) No person shall place in a waste container or place at the curb for collection any unacceptable waste as defined in Section 729-1-U.

(b) No person shall place in a waste container any of the following unless it is safely contained in a leak-proof and puncture resistant manner that will not injure a person collecting the waste:

(1) Any chemical compound, mixture, or substance that can damage or destroy human skin or membranes at the site of contact.

(2) Objects with edges or points sharp enough to penetrate human skin.

(c) A person who violates subsection (a) or (b) of this section commits a Class A Civil Offense under Section 1501-03.

(d) Notwithstanding subsection (c) of this section, a person who places construction debris or hazardous waste for collection in the manner described in (a) commits a Class C Civil Offense under Section 1501-7(b).

(C.M.C. 729-89; ordained by Ord. 321-1991, eff. Aug. 7, 1991; a. Ord. No. 463-2012, § 2, eff. Oct. 7, 2013; a. Ord. No. 311-2014, § 14, eff. July 1, 2015)

Cross reference—Environmental code, tit. X.

Sec. 729-90. Solid Waste Disposal—Host Fee.

The owner or operator of each solid waste disposal facility located within the city shall, as trustee for the city, collect a fee for the city of $.25 per ton on the disposal of solid waste at the solid waste disposal facility regardless of where the wastes were generated and shall forward such moneys collected to the City Treasurer monthly pursuant to Section 3437.57 of the Ohio Revised Code.

(Ordained by Ord. No. 129-1993, eff. April 14, 1993)

Sec. 729-91. Infectious Waste—Host Fee.

The owner or operator of an off-site infectious waste treatment facility located within the city shall, as trustee for the city, collect a fee for the city of $5.00 per ton on the treatment of infectious waste at the treatment facility regardless of where the waste was generated and shall forward such moneys collected to the City Treasurer monthly pursuant to Section 3734.025 of the Ohio Revised Code.

(Ordained by Ord. No. 220-1994, eff. July 15, 1994)

Sec. 729-93. Special Collection.

The director of public services may offer special collection of acceptable waste, including without limitation bulk refuse, in addition to regularly scheduled waste collection and may establish the conditions pursuant to which such special collection may be made.

To request a special collection of bulk refuse, the owner of or person responsible for the bulk refuse must call the city for a determination that the bulk refuse qualifies for special collection prior to placing bulk refuse at the curb for collection. If the bulk refuse is eligible for special collection, the city will make an appointment for the collection of the bulk refuse. The bulk refuse must be placed at the curb no earlier than 5:00 p.m. on the day preceding the scheduled collection and no later than 6:00 a.m. on the day of collection. The bulk refuse must be placed separate from, and must not be comingled with, any items that are not bulk refuse.

(Ordained by Ord. No. 54-2003, eff. April 4, 2003, r. Ord. No. 128-2003, eff. 4-30-03; ordained by Ord. No. 463-2012, § 4, eff. Oct. 7, 2013)

Sec. 729-94. Disposal of Used Tires; Reporting.

(a) *Registration.* No person, firm, or corporation shall accept for disposal more than five automobile, truck, motorcycle, or bicycle tires in any one calendar month unless and until the person, firm, or corporation has registered with the director of public services as a source of waste tires. The director of public services shall furnish a registration form for the purposes of the registration, and, upon the registrant's payment of a fee of $100.00, shall issue a certificate of registration, which may apply to all locations at which the registrant does business. Registrations shall be renewed annually. The form for registration shall contain the name and address of the registrant, and if a partnership, the names and addresses of all partners, and if a corporation, the name of the corporation and the names and addresses of the officers and the statutory agent, and shall contain additional information as deemed necessary by the director of public services.

(b) *Reporting.* Except as provided in this section, all persons, firms, or corporations registered under division (a) of this section shall report tire disposal activity by submitting a monthly tire disposal report to the director of public services on a form promulgated by the director for that purpose. The monthly tire disposal report form shall contain the date and time that tires were hauled off the registrant's premises during the previous month. The form shall also require disclosure of the identity of each waste hauler transporting tires off the registrant's premises, and the license tag number of each truck used to transport tires off the registrant's premises. The monthly tire disposal report form shall cover a calendar month and be submitted to the director of public services no later than ten days after the last date of the calendar month in question.

(c) If a person, firm or corporation disposes of its tires exclusively by contract with a tire disposal entity registered under division (a) above, and a copy of the contract is filed with the director of public services with the registration required under division (a) above, then the person, firm, or corporation is not required to report as required in division (b) above.

(d) Except as provided in this section, no person, firm, or corporation who disposes of tires shall fail to register as a source of waste tires as provided in division (a) of this section, or fail to submit monthly tire disposal report forms to the director of public services

as provided in division (b) of this section, or fail to provide complete information required by the forms.

(e) No person, firm, or corporation shall engage another for the purpose of hauling waste tires unless the waste hauler is registered under this section.

(f) Whoever violates any provision of this section is guilty of a misdemeanor of the first degree.
(Ordained by Ord. No. 311-2014, § 16, eff. July 1, 2015)

Sec. 729-99. Penalties.

Except where a penalty for a violation of a provision of this chapter is otherwise provided, a person who violates any provision of this chapter commits a Class A Civil Offense as defined by Cincinnati Municipal Code Section 1501-3, and is liable for the civil fine specified in Section 1501-99 for a Class A Civil Offense.
(C.O. 707-51; renumbered to C.M.C. 729-99, eff. Jan. 1, 1972; a. Ord. No. 457-1975, eff. Oct. 24, 1975; a. Ord. No. 463-2012, § 2, eff. Oct. 7, 2013)

Sec. 729-99-A. Repealed.
(C.O. 707-50; renumbered to C.M.C. 729-83, eff. Jan. 1, 1972; a. Ord. No. 496-1982, eff. 12-24-82; a. Ord. No. 480-1984, eff. Nov. 23, 1984; r. Ord. No. 463-2012, § 1, eff. Oct. 7, 2013)

Sec. 729-99-B. Repealed.
(Ordained by Ord. No. 479-1984, eff. Nov. 23, 1984; r. Ord. No. 463-2012, § 1, eff. Oct. 7, 2013)

Sec. 729-99-C. Repealed.
(Ordained by Ord. No. 481-1984, eff. Nov. 23, 1984; r. Ord. No. 463-2012, § 1, eff. Oct. 7, 2013)

Chapter 730

COMMERCIAL WASTE FRANCHISES

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Sec. 730-1. Definitions.

For the purpose of this chapter, the words and phrases defined in the sections below shall have the meanings therein respectively ascribed to them, without limiting the generalities of the words, unless a different meaning is clearly indicated by the context. Words used in this chapter that are defined in Chapter 729 of the Cincinnati Municipal Code shall have the same definition as in that chapter.
(Ordained by Ord. No. 489-2012, § 1, eff. Jan. 14, 2013)

Sec. 730-1-A. Applicant.

"Applicant" shall mean a person who completes an application or responds to a request for services seeking to be awarded a franchise.
(Ordained by Ord. No. 489-2012, § 1, eff. Jan. 14, 2013; a. Ord. No. 143-2021, §§ 1, 2, eff. April 16, 2021)

Sec. 730-1-C. CMC.

"CMC" shall mean the Cincinnati Municipal Code.
(Ordained by Ord. No. 489-2012, § 1, eff. Jan. 14, 2013)

Sec. 730-1-C1. City Manager.

"City manager" means the city manager of the city of Cincinnati and or his or her duly authorized designee, who shall be responsible for the administration and enforcement of the provisions set forth in this chapter.
(Ordained by Ord. No. 489-2012, § 1, eff. Jan. 14, 2013)

Sec. 730-1-C2. Clean Hard Fill.

"Clean Hard Fill" shall have the same meaning as the term is defined in Ohio Administrative Code section 3745-400-01.
(Ordained by Ord. No. 143-2021, § 3, eff. April 16, 2021)

Sec. 730-1-C2. Commercial Establishment.

"Commercial establishment" shall mean any building that does not constitute a dwelling.
(Ordained by Ord. No. 489-2012, § 1, eff. Jan. 14, 2013; Emer. Ord. No. 364-2014, § 1, eff. Dec. 17, 2014; Am. Ord. No. 335-2025, § 1, eff. October 22, 2025)

Sec. 730-1-C3. Commercial Waste.

"Commercial Waste" shall mean any of the following:

(a) All waste generated by a commercial establishment; or

(b) Construction and demolition debris generated in connection with:

(1) the construction, alteration, or demolition, in whole or in part, of a structure subject to regulation by the Ohio Building Code, including associated site improvements, utilities, and infrastructure; or

(2) the construction of a new structure subject to regulation by the Residential Code of Ohio, including associated site improvements, utilities, and infrastructure; or

(3) public infrastructure improvements.

"Commercial Waste" does not include:

(a) Infectious waste, asbestos abatement waste, or hazardous waste;

(b) Recyclable materials delivered to a legitimate recycling facility; or

(c) Commercial waste or construction demolition debris generated by buildings or grounds, including public right-of-way, owned or operated by the City

of Cincinnati or by a public school district located within the city limits of the city of Cincinnati.

(Ordained by Ord. No. 489-2012, § 1, eff. Jan. 14, 2013; Emer. Ord. No. 064-2013, § 4, eff. March 22, 2013; a. Ord. No. 337-2019, §§ 1, 2, eff. Jan. 1, 2020; a. Emer. Ord. No. 137-2020, § 1, eff. Oct. 1, 2020; a. Ord. No. 143-2021, §§ 4, 5, eff. April 16, 2021; Am. Ord. No. 335-2025, § 1, eff. October 22, 2025)

Sec. 730-1-C4. Commercial Waste Collection Service.

"Commercial waste collection service" shall mean the activity of collecting, transporting, receiving, storing, disposing of or separating any type of commercial waste generated within the city on or after May 1, 2013. "Commercial waste collection service" includes all attendant services, such as providing, selling, leasing, moving, cleaning, repairing, and maintaining containers for commercial establishments in the city.

(Ordained by Ord. No. 489-2012, § 1, eff. Jan. 14, 2013; Emer. Ord. No. 041-2013, § 5, eff. Feb. 20, 2013; Emer. Ord. No. 064-2013, § 6, eff. March 22, 2013)

Sec. 730-1-C5. Commercial Waste Collector.

"Commercial waste collector" shall have the same definition listed in CMC § 729-1-C.

(Ordained by Ord. No. 489-2012, § 1, eff. Jan. 14, 2013)

Sec. 730-1-C6. Construction and Demolition Debris.

"Construction and demolition debris" shall have the same meaning as the term is defined in Ohio Administrative Code section 3745-400-01.

(Ordained by Ord. No. 489-2012, § 1, eff. Jan. 14, 2013; a. Ord. No. 143-2021, §§ 6, 7, eff. April 16, 2021)

Sec. 730-1-C7. Container.

"Container" means a dumpster, roll-on/roll-off box, compactor, refuse bin, heavy duty waterproof plastic bag, garbage can, molded polyethylene barrel, roll cart, or other receptacle used to store commercial waste.

(Ordained by Ord. No. 489-2012, § 1, eff. Jan. 14, 2013)

Sec. 730-1-D. Repealed.

(Ordained by Ord. No. 489-2012, § 1, eff. Jan. 14, 2013; r. Ord. No. 143-2021, § 8, eff. April 16, 2021)

Sec. 730-1-D-1. Dwelling.

"Dwelling" shall have the same definition listed in CMC § 729-1-D.

(Ordained by Ord. No. 489-2012, § 1, eff. Jan. 14, 2013)

Sec. 730-1-F. Franchise.

"Franchise" means the city's grant of authority for a person to engage in the business of providing commercial waste collection services in the city, as evidenced by a franchise agreement between such person and the city.

(Ordained by Ord. No. 489-2012, § 1, eff. Jan. 14, 2013)

Sec. 730-1-F1. Franchise Agreement.

"Franchise agreement" means a "franchise agreement for commercial waste collection services" between the city and a franchisee.

(Ordained by Ord. No. 489-2012, § 1, eff. Jan. 14, 2013)

Sec. 730-1-F2. Franchisee.

"Franchisee" means a person who is authorized by the city manager to provide

commercial waste collection services within the city, subject to the requirements of this chapter and a franchise agreement.
(Ordained by Ord. No. 489-2012, § 1, eff. Jan. 14, 2013)

Sec. 730-1-G. Garbage.

"Garbage" shall have the same definition listed in CMC § 729-1-G.
(Ordained by Ord. No. 489-2012, § 1, eff. Jan. 14, 2013)

Sec. 730-1-G1. Gross Revenues.

"Gross revenues" means all revenues the franchisee is entitled to collect from the franchisee's customers for providing commercial waste collection services in the city. "Gross revenues" are equal to the franchisee's billings for commercial waste collection services, with no deductions, except for bad debts written off in accordance with generally accepted accounting principles issued by the financial accounting standards board.
(Ordained by Ord. No. 489-2012, § 1, eff. Jan. 14, 2013)

Sec. 730-1-H. Hazardous Waste.

"Hazardous waste" shall have the same definition listed in Ohio Revised Code Chapter 3734.
(Ordained by Ord. No. 489-2012, § 1, eff. Jan. 14, 2013)

Sec. 730-1-I. Infectious Waste.

"Infectious waste" shall have the same definition listed in CMC § 729-1-I.
(Ordained by Ord. No. 489-2012, § 1, eff. Jan. 14, 2013)

Sec. 730-1-L. Legitimate Recycling Facility.

"Legitimate Recycling Facility" shall have the same meaning as the term is defined in Ohio Administrative Code section 3745-27-01(L)(2).
(Ordained by Ord. No. 143-2021, § 9, eff. April 16, 2021)

Sec. 730-1-O. ORC.

"ORC" means the Ohio Revised Code.
(Ordained by Ord. No. 489-2012, § 1, eff. Jan. 14, 2013)

Sec. 730-1-P. Person.

"Person" means any and all persons, natural or artificial, including any individual, firm, or association; any municipal or private corporation organized or existing under the laws of this state or any other state; any county of this state; and any governmental agency of this state or the federal government.
(Ordained by Ord. No. 489-2012, § 1, eff. Jan. 14, 2013)

Sec. 730-1-R1. Recyclable Materials.

"Recyclable materials" shall mean those materials which would otherwise become solid waste and which may be collected, separated, or processed and returned to the economic mainstream in the form of raw materials or products. Examples of potential recyclable materials include, but are not limited to, newspapers, junk mail, magazines, phonebooks, cardboard, paperboard, glass bottles, aluminum cans, bi-metal cans, steel cans, plastic bottles, food waste, yard waste materials, clean hard fill, and certain construction and demolition debris, and the city manager may deem other materials that meet this definition to be recyclable.
(Ordained by Ord. No. 489-2012, § 1, eff. Jan. 14, 2013; a. Ord. No. 143-2021, §§ 10, 11, eff. April 16, 2021)

Sec. 730-1-R2. Recycling.

"Recycling" shall have the same meaning as the term is defined in Ohio Administrative Code section 3745-27-01(R)(1).

(Ordained by Ord. No. 143-2021, § 12, eff. April 16, 2021)

Sec. 730-1-R. Rubbish.

"Rubbish" means an accumulation of discarded paper, trash, rags, cans, bottles, boxes, or other waste material resulting from normal housekeeping activities and operations in commercial establishments.
(Ordained by Ord. No. 489-2012, § 1, eff. Jan. 14, 2013)

Sec. 730-1-W. Waste.

"Waste" shall have the same definition listed in CMC § 729-1-W.
(Ordained by Ord. No. 489-2012, § 1, eff. Jan. 14, 2013)

Sec. 730-1-Y. Yard Waste Materials.

"Yard waste materials" shall have the same definition listed in CMC § 729-1-Y.
(Ordained by Ord. No. 489-2012, § 1, eff. Jan. 14, 2013)

Sec. 730-3. Applicability; Requirement for Franchise; Term of Franchise.

(a) This chapter shall apply to any person engaged in the business of providing commercial waste collection services in the city on or after May 1, 2013.

(b) This chapter applies to the collection of commercial waste, as defined in section 730-1-C3, on or after May 1, 2013.

(c) The requirements in this chapter shall supplement the requirements in Chapter 729, "Waste Disposal," of the Cincinnati Municipal Code.

(d) On or after May 1, 2013, no person shall engage in the business of providing commercial waste collection services in the city unless that person has obtained a franchise from the city to provide such services.

(e) No person shall obtain a franchise from the city until that person has complied with the following:

(1) Submitted a timely and complete application for franchise or submitted a timely and complete response to a request for services conducted by the city;

(2) Paid an application fee in the amount established in Section 730-7(d);

(3) Posted a bond and obtained the insurance required in Sections 730-19 and 730-21; and

(4) Executed a franchise agreement with the city for commercial waste collection services.

(f) Each franchise agreement shall take effect upon execution, unless the applicant requests and the city approves a later effective date. Each franchise agreement that takes effect on or after July 1, 2021 shall expire one year from the date of its issuance, unless terminated prior to expiration or renewed pursuant to the agreement. Each franchise agreement shall renew for two one-year periods unless notice is given.
(Ordained by Ord. No. 489-2012, § 1, eff. Jan. 14, 2013; Emer. Ord. No. 041-2013, § 7, eff. Feb. 20, 2013; Emer. Ord. No. 064-2013, § 7, eff. March 22, 2013; a. Ord. No. 143-2021, §§ 13, 14, eff. April 16, 2021)

Sec. 730-5. General Provisions.

(a) It is unlawful for any person to commence or engage in the business of providing commercial waste collection service within the city without first obtaining a franchise and entering into a franchise agreement with the city. No person may obtain a license, permit, permission, or other approval from

the city in furtherance of providing commercial waste collection service within the city without first obtaining a franchise and entering into a franchise agreement with the city. In addition, all persons providing services to the City of Cincinnati or a public school district that would be classified as a commercial waste collection service but for the provisions of Sec. 730-1-C3 must first obtain a franchise and enter into a franchise agreement with the city before providing such services.

(b) A franchise shall be awarded to a person only if that person completes an application for franchise or request for services and the person's application or request for services submittal is selected as one of the most advantageous to the city under Sec. 730-7 and the criteria specified in the application or request for services.

(c) Each franchisee shall comply with all laws of the city of Cincinnati, the state of Ohio, and the federal government. Each franchisee shall obtain and maintain all applicable licenses and permits required by federal, state, and local laws, rules, regulations, and orders of regulatory bodies.

(d) A franchisee shall not be relieved of its obligation to comply with all requirements of this chapter and the franchise agreement by failure of the city to enforce compliance with such requirements.

(e) The city reserves its right to grant franchises and similar rights to more than one (1) person.

(f) Each franchisee shall totally enclose or securely cover any commercial waste that the franchisee is transporting within the city. Each franchisee shall immediately clean up any commercial waste that the franchisee spills on public or private property in the city.

(g) A franchisee providing commercial waste collection services is not and shall not be deemed to be an agent or employee of the city. A franchisee shall be solely responsible for any losses or damages of any kind arising from its performance or nonperformance under its franchise. A franchisee shall indemnify, defend, and hold the city harmless against any and all claims and suits brought against the city resulting from the franchisee's performance or nonperformance under the franchise agreement.

(h) All of the commercial waste collected by franchisees in the city shall be delivered to a licensed municipal solid waste landfill facility, licensed sanitary landfill facility, licensed solid waste transfer facility, or a licensed construction and demolition debris facility. Recyclable material shall be delivered to a legitimate recycling facility.

(i) The execution of the franchise agreement and the issuance of a franchise and the renewal thereof is at the sole discretion of the city manager and shall not be construed as creating any vested rights in the franchisee. Each franchise is revocable in accordance with the terms of this chapter and the terms of the franchise agreement.

(j) A franchise may not be assigned or transferred to another person.

(k) A franchise authorizes a franchisee to provide commercial waste collection services in the city of Cincinnati.

(Ordained by Ord. No. 489-2012, § 1, eff. Jan. 14, 2013; a. Ord. No. 143-2021, §§ 15, 16, eff. April 16, 2021; Am. Ord. No. 335-2025, § 1, eff. October 22, 2025)

Sec. 730-7. Award of Franchises.

(a) Any person wishing to obtain a franchise to engage in the business of providing commercial waste collection services within the city shall submit an application

to the city manager in compliance with the process established for awarding franchises.

(b) Where appropriate, the city may choose to conduct a request for services pursuant to Cincinnati Municipal Code Section 321-1-R6 to solicit qualified franchisees in lieu of an application process.

(c) An applicant for a franchise shall provide the city with satisfactory evidence demonstrating that:

(1) The applicant has the experience, personnel, equipment, and other resources necessary to provide commercial waste collection services in compliance with the requirements in this chapter; and

(2) The applicant has the capacity and willingness to comply with all applicable local, state, and federal laws.

(d) Applicants for a new franchise and applicants for the renewal of an existing franchise shall provide the information requested by the city manager and any other relevant information. The application and supporting information shall be submitted under oath and on forms supplied by the city manager. At a minimum, the application shall include the following information:

(1) The name and mailing address of the applicant; contact information for the applicant's designated representative; the name of the person to be granted the franchise; if the applicant is a corporation, the names of the corporation's principal officers; the names of the local operating managers who will be responsible for performing collection services for the applicant, together with the business address and telephone number of each manager;

(2) If the applicant is a corporation, proof that the corporation is in good standing in the state of Ohio and, if the applicant is not an Ohio corporation, proof that the applicant is authorized to do business in the State of Ohio. If the applicant is operating under a fictitious name, the applicant shall be required to submit information that such fictitious name is registered and held by the applicant;

(3) A statement of whether the applicant operates or has operated a solid waste collection business in Ohio or any other state or territory. If the applicant has provided or is providing solid waste collection services, the applicant shall describe all cases where and when it provided such services (but not more than ten (10) communities), and whether any of the applicant's permits, approvals, or licenses to provide such services have ever been revoked or suspended within the last five (5) years;

(4) A complete record of all felony convictions, and all misdemeanor convictions within the last five (5) years, involving the applicant's collection, receiving, storing, separating, transportation, or disposal of solid waste. If the applicant is not an individual, the applicant also shall provide the complete record of such convictions for any person who is an officer, director, member, majority shareholder, or partner in the applicant, and any person having a controlling interest in the applicant;

(5) A complete record of all civil penalties and liquidated damages in excess of five thousand dollars ($5,000.00) assessed against the applicant by local, state, and federal governmental

entities within the last five (5) years involving the collection, transportation, or disposal of waste;

(6) The types of commercial waste materials and, if applicable, recyclable materials to be collected, transported, or disposed of by the applicant under the franchise; and

(7) A list of the vehicles, equipment, and containers that will be used by the applicant to provide commercial waste collection services. The list shall be provided on a form prescribed by the city manager. At a minimum, the list shall identify the make, model, and year of each vehicle and piece of collection equipment, as well as the size and type of each container that will be used by the applicant. Identifiers including, but not limited to, license plate numbers, company vehicle numbers, and company equipment numbers shall be provided. The city manager may inspect all of the vehicles, equipment, and containers identified by the applicant and thereby determine whether the applicant possesses vehicles, equipment, and containers that are capable of providing safe and efficient commercial waste collection services in compliance with this chapter; and

(8) A chart identifying the maximum rates that the applicant charges customers for various types of commercial waste collection services.

(e) Each applicant shall submit a nonrefundable application fee to the city in the amount of one hundred ($100) dollars. The application fee is due and payable when the application is submitted. This fee shall not apply to responses to a request for services.

(f) New applications must be submitted to the city manager at least sixty (60) days before the applicant plans to begin providing commercial waste collection services. Renewal applications must be submitted to the city manager at least thirty (30) days before the applicant's existing franchise expires.

(Ordained by Ord. No. 489-2012, § 1, eff. Jan. 14, 2013; a. Ord. No. 143-2021, §§ 17, 18, eff. April 16, 2021)

Editor's note—Ord. No. 143-2021, §§ 17, 18, effective April 16, 2021, renamed § 730-7 from "RFP and Application Requirements for a Franchise" to "Award of Franchises."

Sec. 730-9. Basis for Award of Franchise.

A franchise for commercial waste collection services may be granted to a person when the city manager concludes that the applicant has satisfied the requirements in this chapter. This includes successfully responding to the request for services or completing the application, and the city rating the person's proposal or application as most advantageous.

(Ordained by Ord. No. 489-2012, § 1, eff. Jan. 14, 2013; a. Ord. No. 143-2021, §§ 19, 20, eff. April 16, 2021)

Sec. 730-11. Denial of Franchise Application.

(a) The city manager may deny an application for a franchise for commercial waste collection services when the city manager concludes that the applicant failed to satisfy one (1) or more of the requirements of this chapter and the Code.

(b) The city manager may deny an application for any reason that would justify the suspension or revocation of a franchise, as described in CMC § 730-13.

(c) The city manager shall deny an application for a franchise for the following reasons:

(1) The applicant has not submitted a complete application with all of the

required supporting documents, paid the application fee, provided an appropriate bond and insurance, and executed a franchise agreement;

(2) The applicant has submitted false or materially misleading statements in the application; or

(3) The applicant or a partner, director, or officer of the applicant has been convicted of a felony within the past five (5) years, or has been convicted of a misdemeanor within the past three (3) years, involving the collection, transportation, or disposal of solid waste.

(Ordained by Ord. No. 489-2012, § 1, eff. Jan. 14, 2013)

Sec. 730-13. Suspension or Revocation of Franchise.

(a) The city manager may suspend or revoke a franchise and the corresponding franchise agreement if the city manager concludes that:

(1) The franchise was issued by mistake of law or fact;

(2) The franchise was issued based upon a false statement or misrepresentation by the applicant;

(3) The franchisee has violated an applicable provision of the Cincinnati Municipal Code, state law, or federal law;

(4) A necessary permit, approval, or license of the franchisee has become invalid;

(5) The franchisee is no longer engaged in providing commercial waste collection services to commercial establishments in the city;

(6) The commercial waste collection services and other activities authorized under the franchise are not being performed in accordance with the requirements of this chapter, the franchise agreement, or the application for a franchise;

(7) Timely and full payment of the franchise fee has not been accomplished by the franchisee in compliance with section 730-17 of this chapter;

(8) The franchisee or one (1) of its principals has been convicted under a local, state, or federal law for a crime involving the collection, transportation, or management of solid waste;

(9) The franchisee failed to provide, pay for and maintain the required bond and insurance coverage in accordance with the requirements of this chapter;

(10) The franchisee violated a requirement of this chapter or the franchise agreement;

(11) The franchisee failed to comply with a lawful order of the city manager; or

(12) The franchisee's actions or inactions demonstrate that the franchisee is not competent or fit to provide commercial waste collection services to the public.

(b) Before the city manager suspends or revokes a franchise, the city manager or his or her designee shall provide notice to the franchisee and an opportunity to be heard in the manner set forth in section 730-15 of this chapter.

(c) A franchise that has been suspended or revoked under this chapter shall not be reinstated or reissued unless, at a minimum, the franchisee has complied with all of the requirements of this chapter, submitted a complete application, paid the application fee, executed a franchise agreement, and been approved by the city manager.

(d) The revocation of a franchise shall automatically terminate the corresponding franchise agreement.
(Ordained by Ord. No. 489-2012, § 1, eff. Jan. 14, 2013)

Sec. 730-15. Right to Appeal the Denial, Suspension or Revocation of a Franchise.

(a) Prior to the denial of an application or the suspension or revocation of a franchise, the applicant or franchisee shall be given reasonable notice of the city manager's proposed action and shall be given an opportunity to present evidence to the city manager or his or her designee explaining why the franchise should not be denied, suspended or revoked. The city manager shall consider any evidence presented by the applicant or franchisee that the city manager determines is relevant to the appeal before the city manager issues a final decision. Notice of the city's proposed action, and notice of the city's final decision, shall be served upon the applicant or franchisee by certified mail.

(b) The applicant or franchisee may appeal the city's final decision by filing a notice of appeal with the office of administrative hearings pursuant to Chapter 1501 of the Cincinnati Municipal Code within fifteen (15) days after written notice of the city manager's decision is served.
(Ordained by Ord. No. 489-2012, § 1, eff. Jan. 14, 2013)

Sec. 730-17. Requirement to Execute a Franchise Agreement with the City; Payment of Franchise Fees.

(a) Each applicant shall execute a franchise agreement, including all required attachments, in the form that has been approved by the city council and furnished to the applicant by the city manager or his or her designee.

(b) Each franchisee shall submit franchise fees and appropriate documentation to the city.

(c) Each franchisee shall pay franchise fees to the city as compensation for the rights and benefits granted by the franchise, including but not limited to the right to collect commercial waste in the city. The franchise fee shall be equal to twenty (20) percent of the franchisee's gross revenues from the commercial waste collection services provided by the franchisee within the city.

(d) The franchisee shall submit its quarterly franchise fee payments to the city no later than thirty (30) days after the three-month periods ending March 31, June 30, September 30, and December 31. Each payment shall be accompanied by a statement of the franchisee's gross revenues, which shall be submitted on a form prescribed by the city finance department. The franchise fees shall be paid directly to the city finance department. Statements and remittances shall be accepted as timely if postmarked within thirty (30) days after the end of the month; if the thirtieth day falls upon a Saturday, Sunday, or federal or state holiday, statements and remittances shall be accepted as timely if postmarked on the next business day. Payments not received by the due date shall be assessed (1) an administrative fee to reimburse the city for the reasonable administrative costs associated with collecting such monies and (2) interest for each day of delinquency at the rate of eighteen (18) percent per annum or the maximum allowed by law, whichever is less, for each day of delinquency, until the total unpaid amount due and owing is paid in full. The administrative fee shall be equal to six (6) percent of

the amount owed by the franchisee to the city or fifteen dollars ($15.00), whichever is greater.

(e) Each franchisee shall file an annual report concerning the franchisee's total gross revenues for the year. This annual report shall be examined by an independent certified public accountant, who shall confirm that the franchisee's computations concerning gross revenues and franchise fees were performed in accordance with the requirements of this chapter. The report of the certified public accountant shall state that its examination of the franchisee's records was performed in accordance with professional standards established by the American Institute of Certified Public Accountants or successor organization. Each franchisee shall file the auditor's report with the City Manager's office within one hundred twenty (120) days after the end of the franchisee's fiscal year. Franchisee shall be solely responsible for retaining the independent auditor and paying his or her services.

(f) All amounts paid by the franchisee shall be subject to confirmation and recomputation by the city An acceptance of payment shall not be construed as an accord that the amount paid is the correct amount, nor shall acceptance of payment be construed as a release of any claim the city may have for further or additional sums payable.

(g) Billing methods that have the effect of reducing or avoiding the payment of franchise fees are prohibited and will be cause for termination of the franchise. Any person who uses false, misleading, or fraudulent billing methods for the purpose of reducing or avoiding the payment of franchise fees may be subject to the penalties provided by CMC § 730-99.

(h) Payment of the franchise fee shall not exempt the franchisee from the payment of any other fee, tax, or charge on the business, occupation, property or income of the franchisee that may be imposed by the city, the county, the state, or the federal government.

(i) A franchisee's failure to remit the franchise fees and documentation required by this chapter shall be grounds for the suspension or revocation of the franchise.

(j) The city may seek judicial relief to recover all fees, costs, and interest due and owing by the franchisee. The franchisee shall pay the city's court costs, reasonable attorney fees, accounting and auditing costs, and other collection costs incurred by the city as a result of franchisee's failure to remit the franchise fees and documentation required by this chapter and the franchise agreement.
(Ordained by Ord. No. 489-2012, § 1, eff. Jan. 14, 2013; Emer. Ord. No. 064-2013, § 9, eff. March 22, 2013; Emer. Ord. No. 165-2018, § 1, eff. July 1, 2018)

Sec. 730-19. Bond Requirements.

At the time of the execution of a franchise agreement, each franchisee shall provide the city with a bond in the amount of twenty percent (20%) of the franchisee's gross revenues for the quarter immediately preceding the execution date of the franchise agreement. For franchisees who did not hold a franchise in the quarter immediately preceding the execution date of the franchise agreement, the bond shall be in the amount of fifty thousand dollars ($50,000). The bond shall conform with the requirements of CMC Chapter 304. The bond shall be used to insure the franchisee's performance under this chapter and the franchise agreement. Among other things, the bond shall be used to ensure the franchisee's payment of franchise fees and other sums that are due and owing to the city. The bond shall also be used to indemnify the city from any damages that may be suffered by the city in any

manner as a result of the city's award of a franchise to the applicant, including but not limited to damages resulting from the applicant's performance or non-performance of the conditions and requirements of the franchise agreement, the applicant's use of the city's streets, the failure of the applicant to conform with applicable laws, and any negligent, reckless or intentional wrongful act or omission of the applicant or the applicant's employees, agents, officers, or representatives. The bond shall be kept in full force at all times during the term of the franchise. The bond shall be released by the city within one year following the expiration or termination of the franchise agreement. (Ordained by Ord. No. 489-2012, § 1, eff. Jan. 14, 2013; Emer. Ord. No. 041-2013, § 9, eff. Feb. 20, 2013; a. Ord. No. 143-2021, §§ 21, 22, eff. April 16, 2021)

Sec. 730-21. Insurance Requirements.

(a) Each franchisee shall maintain in effect at all times, and shall furnish to the city a certificate evidencing, the following types of insurance coverage and specified limits of coverage, issued by an insurance company licensed to do business in the state of Ohio, acceptable to the city, and as required and set forth in greater specificity in the franchise agreement:

(1) Comprehensive general liability insurance with a limit of a one million dollar ($1,000,000.00) per occurrence and a two million dollar ($2,000,000.00) general aggregate. This policy must include the following coverages: premises and operations liability, independent contractors, products and completed operations, personal injury, contractual liability, and fire damage;

(2) Automotive liability insurance coverage providing a combined single limit of not less than one million dollars ($1,000,000.00) per occurrence. This policy must include the following coverages: bodily injury and property damage including premises and operations;

(3) Workers compensation insurance shall be provided for all of franchisee's employees as required under Ohio law; and

(4) Employers liability insurance providing a single limit of not less than one million dollars ($1,000,000.00), bodily injury by each accident, and providing a single limit of not less than one million dollars ($1,000,000.00), bodily injury disease per each employee, and providing a single limit of not less than one million dollars ($1,000,000.00) bodily injury by disease policy limit.

(b) When an applicant submits an application for a franchise, and when a franchisee submits an application for the renewal of its franchise, the franchisee shall furnish the city a certificate evidencing this insurance coverage is in effect for the same term as the franchise agreement, and naming the city as an additional insured (except with regard to the workers compensation and employers liability insurances). The franchisee shall notify the city in writing by registered or certified mail thirty (30) days in advance of any cancellation, intent not to renew, or any other changes in the insurance coverage. Upon the cancellation or lapse of any policy of insurance required by this chapter or the franchise agreement, the franchisee's license to operate as a franchisee in the city under its franchise agreement shall be immediately revoked unless, before the expiration date of the policy of insurance, another policy of insurance containing all the requirements of

the original policy of insurance is obtained and a new certificate is provided to the city manager.
(Ordained by Ord. No. 489-2012, § 1, eff. Jan. 14, 2013; a. Ord. No. 143-2021, §§ 23, 24, eff. April 16, 2021)

Sec. 730-23. Books, Records, and Reporting Requirements.

(a) Each franchisee shall prepare, keep, and maintain current, accurate records demonstrating its compliance with the requirements in this chapter and the franchise agreement.

(b) The city shall have the right to inspect and review a franchisee's records concerning its franchise. The city shall provide fifteen (15) days advance written notice of any such inspection. The city also may copy and audit the franchisee's records, at the city's expense. The records shall be readily accessible for review by the city.

(c) Each franchisee providing commercial waste collection services shall file an annual report concerning the franchisee's total gross revenues for the year. This annual report shall be examined by an independent certified public accountant ("auditor"), who shall confirm that the franchisee's computations concerning gross revenues and franchise fees were performed in accordance with the requirements of this chapter. The auditor's report shall state that its examination of the franchisee's records was performed in accordance with professional standards established by the American Institute of Certified Public Accountants or successor organization. The auditor's report shall be filed with the city manager within one hundred twenty (120) days after the end of the franchisee's fiscal year. The auditor's services shall be contracted and paid by the franchisee.
(Ordained by Ord. No. 489-2012, § 1, eff. Jan. 14, 2013)

Sec. 730-25. Methods of Solid Waste Collection.

(a) Each franchisee shall collect commercial waste in the manner required by this chapter and the franchise agreement. At a minimum, each franchisee shall comply with the following requirements:

(1) *Hours of collection.* Hours of commercial waste collection services within the city shall be governed by the rules and regulations established by the Chapter 729 of the Cincinnati Municipal Code and as set forth in the franchise agreement.

(2) *Equipment.* All vehicles, equipment, and containers used to provide commercial waste collection services shall be maintained at all times in a clean, sanitary, and neat condition, and in good repair. All of the franchisee's collection vehicles, equipment, and containers shall bear the franchisee's name, current phone number in letters that are at least two (2) inches tall, or other identifying marks or decals prescribed by the city manager.

(3) *Maximum weight of loaded vehicles.* The total gross weight of any loaded vehicle used by the franchisee on a city road shall not exceed the maximum gross weight allowed per vehicle under any applicable federal, state, or city law.

(4) *Prohibited material.* A franchisee shall take all reasonable measures to prevent prohibited materials from being collected, transported, or disposed of in a manner that poses a threat to human health, public safety, or the environment.

(5) *Delivery to Solid Waste Management Facility.* If a franchisee collects, receives, transports, stores, or separates commercial waste that was

generated within the city, the franchisee shall deliver such waste to a solid waste management facility.

(6) *Receipts from designated solid waste management facility.* A franchisee, upon request of the city manager, shall produce receipts or other documents demonstrating that all of the commercial waste collected by the franchisee in the city was delivered to a solid waste management facility pursuant to Sec. 730-05(h).

(b) Each franchisee shall offer recycling services to all of its customers. A franchisee, upon request of the city manager, shall produce receipts of other documents demonstrating that all recyclable materials collected by the franchisee in the city were delivered to a legitimate recycling facility.
(Ordained by Ord. No. 489-2012, § 1, eff. Jan. 14, 2013; a. Ord. No. 143-2021, §§ 25, 26, eff. April 16, 2021)

Sec. 730-25. Inspections.

All of the franchisee's equipment, vehicles and containers shall be subject at all times to inspection by the city. The city manager may require the franchisee to clean, repair, refurbish, or replace any equipment, vehicle, or container that fails to comply with the requirements in this chapter or the franchise agreement.
(Ordained by Ord. No. 489-2012, § 1, eff. Jan. 14, 2013)

Sec. 730-27. Program Rules and Regulations.

The city manager is authorized to adopt, promulgate, and enforce rules and regulations consistent with the provisions of this chapter to provide for the effective administration and enforcement of the city's commercial waste franchise program.
(Ordained by Ord. No. 143-2021, § 27, eff. April 16, 2021)

Sec. 730-99. Penalties.

A violation of any section of this chapter shall constitute a Class D civil offense.
(Ordained by Ord. No. 489-2012, § 1, eff. Jan. 14, 2013)

Chapter 731

WEED CONTROL

Sec. 731-1. Definitions.
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Sec. 731-1. Definitions.

For the purpose of this chapter the words and phrases defined in the sections hereunder shall have the meanings therein respectively ascribed to them, unless a different meaning is clearly indicated by the context.
(C.O. 737-13; a. Ord. No. 216-1969, eff. June 27, 1969; a. Ord. No. 414-1970, eff. Dec. 23, 1970; renumbered to C.M.C. 731-1, eff. Jan. 1, 1972)

Sec. 731-1-A. Abandoned Property.

"Abandoned Property" shall mean property that is not being maintained consistent with the requirements of Chapter 731 and that the property owner or person in control has failed to bring into compliance with Section 731-3 within seven days of receiving a notice of civil offense and civil fine.
(Ordained by Emer. Ord. No. 075-2015, § 1, eff. March 25, 2015)

Sec. 731-1-A1. Abatement.

"Abatement" shall mean the removal of any conditions in accordance with Sections 731-9 and 731-10 that are the subject of a notice of violation.
(Ordained by Emer. Ord. No. 075-2015, § 1, eff. March 25, 2015)

Sec. 731-1-I. Initial Violation.

"Initial Violation" shall mean the first violation at a property under Section 731-3(a), unless the violation meets the requirements of a "Subsequent Violation" as defined in Sec. 731-1-S.
(Ordained by Emer. Ord. No. 075-2015, § 1, eff. March 25, 2015)

Sec. 731-1-M. Managed Natural Landscaped Area.

"Managed Natural Landscaped Areas" shall be defined as designed and cultivated plant communities that are self-sustaining with minimal resort to artificial methods of plant care and that serve at least one of the following purposes:

(1) the attraction and aid of wildlife.

(2) the offset and control of a potential or existing soil loss program.

(3) the enrichment or stabilization of soil fertility.

(4) pest control.

(5) governmental programs, including, without limitation, storm water control.

(6) educational studies.

(7) food production.

(Ordained by Ord. No. 149-2011, § 1, eff. June 11, 2011; renumbered by Emer. Ord. No. 075-2015, § 2, eff. March 25, 2015)

Sec. 731-1-P. Person in Control.

"Person in control" shall mean the owner of the freehold estate of the premises; a mortgagee or vendee in possession; a receiver; an executor; a trustee; and any person, public or private entity, lessee or holder of a lesser estate in the premises, and/or its duly authorized agent(s), with the authority to bring a building or premises into compliance with the provisions of this code, including but not limited to any mortgagee that has filed an action in foreclosure, based on breach or default of a mortgage agreement, until title to the premises is transferred to a third party.
(Ordained by Emer. Ord. No. 075-2015, § 1, eff. March 25, 2015)

Sec. 731-1-S. Subsequent Violation.

"Subsequent Violation" shall mean a violation under Section 731-3(b) at a property which has been identified for an Initial Violation under Section 731-3(a) and has not been abated by the owner or person in control. After the Initial Violation, any violations

will be considered Subsequent Violations for purposes of Chapter 731 until the owner or person in control takes action under Section 731-5(b)(2)(f).
(Ordained by Emer. Ord. No. 075-2015, § 1, eff. March 25, 2015)

Sec. 731-1-T. Turf Grass.

"Turf grass" shall mean grass commonly used in regularly-cut lawns or play areas, whether dead or alive.
(C.O. 737-13; a. Ord. No. 216-1969, eff. June 27, 1969; a. Ord. No. 414-1970, eff. Dec. 23, 1970; renumbered to C.M.C. 731-1-A, eff. Jan. 1, 1972; a. Ord. No. 149-2011, § 1, eff. June 11, 2011; renumbered by Emer. Ord. No. 075-2015, § 2, eff. March 25, 2015)

Sec. 731-1-W. Weeds.

"Weeds" shall include any and all vegetation, including honeysuckle, that is not managed or maintained by the owner or person in control of the property on which all such vegetation is located which generally exceeds the height restrictions in this Chapter, but shall exclude trees, shrubs and/or cultivated flowers and gardens.
(Ordained by Ord. No. 149-2011, § 1, eff. June 11, 2011; renumbered by Emer. Ord. No. 075-2015, § 2, eff. March 25, 2015)

Sec. 731-3. Height Restrictions.

Except as otherwise provided in Section 731-4:

(a) Every owner or person in control of any lot or lands within the city of Cincinnati shall cause the lot or lands to be kept free from weeds and turf grasses over ten inches in height by cutting and then removing said cut weeds and turf grasses from such lot or lands immediately. Anyone who fails to comply with this provision shall be liable for an Initial Violation, as defined in Section 731-1-I, and shall be subject to a fine as described in Section 731-99.

(b) Once a property becomes an Abandoned Property, the owner or person in control of that property shall keep it free from weeds and turf grasses over six inches in height by cutting and then removing said cut weeds and turf grasses from such lot or lands immediately. Anyone who fails to comply with this provision shall be liable for a Subsequent Violation, as defined in Section 731-1-S, and subject to a fine as provided in Section 731-99.

(c) A separate and distinct offense shall be regarded as committed each day on which an owner or person in control shall continue such violation, and as to each separate plot of ground owned or controlled by such an owner or person in control.

(C.O. 737-13; a. Ord. No. 216-1969, eff. June 27, 1969; a. Ord. No. 414-1970, eff. Dec. 23, 1970; renumbered to C.M.C. 731-3, eff. Jan. 1, 1972; a. Ord. No. 159-1988, eff. May 11, 1988; a. Ord. No. 149-2011, § 1, eff. June 11, 2011; Emer. Ord. No. 075-2015, § 2, eff. March 25, 2015)

Cross reference—Penalty, § 731-99.

Sec. 731-4. Managed Natural Landscaping.

The height restrictions provided in Section 731-3 shall not apply to natural plants on privately owned, occupied residential property and properties contiguous to the privately owned, occupied residential property provided that such contiguous properties are owned by the same individual, when such natural plants are part of a Managed Natural Landscape Area.

Managed Natural Landscaped Areas shall be set back a minimum of three (3) feet from all property lines, roads, alleys and/or drive-

ways unless the property is abutted by a fence or similar barrier separating it from adjoining residential properties, then the natural landscaping may be planted up to the property line (inside the sidewalk). With the exception of trees, all vegetation in the right of way strip between the sidewalk and street must be kept at a height of less than ten (10) inches.

Managed Natural Landscaped Areas shall not be permitted to overhang or encroach onto any public or private properties, or public sidewalks, streets, or alleys adjacent to the lot, tract or parcel on which they are planted.
(Ordained by Ord. No. 149-2011, § 1, eff. June 11, 2011)

Sec. 731-5. Notice to Owners and Persons in Control for Initial and Subsequent Violations.

(a) Notice for Initial Violations: When the city manager or the city manager's designee ascertains that weeds and/or turf grasses are growing on any lot or land within the city of Cincinnati in violation of Section 731-3(a), a written notice in accordance with Section 1501-13 shall be served upon the owner or person in control of that property. In addition to the notice of civil offense and civil fine provided in Section 1501-13, the written notice shall state the following:

(1) Weeds and/or turf grasses are growing on the lot or land in violation of Section 731-3(a);

(2) The weeds and/or turf grass must be cut and removed within seven days of the date of receipt of the notice;

(3) Due to the recurring nature of violations under this Section, if the owner or person in control fails to bring the property into compliance with Section 731-3 within seven days of receiving a notice of civil offense and civil fine, the following shall occur:

A. The property shall be deemed Abandoned Property;

B. Grass or weeds that become six inches or higher will be a Subsequent Violation;

C. If there are any Subsequent Violations found at the Abandoned Property, in addition to imposition of civil fines, the city will abate all Subsequent Violations pursuant to either Section 731-9 or 731-10;

D. The costs of all abatement of Subsequent Violations will be assessed as set forth in Section 731-11;

E. The Abandoned Property will be part of a routine maintenance schedule, pursuant to guidelines established by the city manager or the city manager's designee;

F. Once the property is deemed Abandoned Property, in order to avoid issuance of further civil fines for subsequent violations or assessment for the costs of the abatement action, an owner or person in control of abandoned property must contact the city manager or the city manager's designee in writing to request approval of an abatement plan.

(b) Notice for Subsequent Violation: Once a property is deemed Abandoned Property, in addition to the penalty described in Section 731-99, when the city manager or the city manager's designee ascertains that weeds and/or turf grasses are growing on the property in violation of Section 731-3(b), a written notice in accordance with Section 1501-13(e) shall be served upon the owner or person in

control of the property each and every time the condition is to be abated. In addition to the notice of civil offense and civil fine provided in Section 1501-13, the written notice shall state the following:

(1) Weeds and/or turf grasses are growing on the lot or land in violation of Section 731-3(a); and

(2) Due to the recurring nature of violations under this Section, if the owner or person in control fails to bring a property into compliance with Section 731-3 within seven days of receiving an initial notice of civil offense and civil fine, the following shall occur:

A. The property will be deemed Abandoned Property;

B. Grass or weeds which become six inches or higher will constitute a Subsequent Violation;

C. If there are any Subsequent Violations found at the Abandoned Property, in addition to imposition of civil fines, the city will continue to abate all Subsequent Violations pursuant to either Section 731-9 or 731-10, providing notice of abatement each time;

D. The costs of all abatement of Subsequent Violations will be assessed as set forth in Section 731-11;

E. The Abandoned Property will be part of a routine maintenance schedule, pursuant to guidelines established by the city manager or the city manager's designee;

F. Once the property is deemed Abandoned Property, in order to avoid issuance of further civil fines for subsequent violations or assessment for the costs of the abatement action, an owner or person in control of abandoned property must contact the city manager or the city manager's designee in writing to request approval of an abatement plan.

(C.O. 737-14; renumbered to C.M.C. 731-5, eff. Jan. 1, 1972; a. Ord. No. 242-1999, eff. July 9, 1999; a. Ord. No. 211-2002, eff. June 19, 2002; a. Ord. No. 257-2002, eff. June 26, 2002; a. Ord. No. 149-2011, § 1, eff. June 11, 2011; Emer. Ord. No. 075-2015, § 2, eff. March 25, 2015)

Sec. 731-6. Answer to Notice to Owner and Persons in Control.

An owner or person in control served with a written notice pursuant to Section 731-5 may answer the charge in accordance with Section 1501-15 within seven business days of receipt of the notice by the person being charged, and for Initial Violations, may include an offer of proof of correction in accordance with Section 1501-19.

(Ordained by Ord. No. 211-2002, eff. June 19, 2002; a. Ord. No. 149-2011, § 1, eff. June 11, 2011; Emer. Ord. No. 075-2015, § 2, eff. March 25, 2015)

Sec. 731-7. Receipt of Notice by the Person Charged.

For purposes of Sections 731-5(a) and 731-6, receipt of notice by the person charged shall mean any of the following:

(a) The date on which the issuing officer personally served the person being charged;

(b) The date on which the issuing officer posted a copy of the notice on the real property in accordance with Section 1501-13(d) or mailed it in accordance with Section 1501-13(e), whichever is applicable; or

(c) Three days after the issuing officer has mailed the notice in accordance

with Section 1501-13(d) if the real property is vacant and the issuing officer is unable to personally serve the notice to the person charged or post a copy on the real property.

(C.O. 737-15; renumbered to C.M.C. 731-15, eff. Jan. 1, 1972; repealed and reordained by Ord. No. 211-2002, eff. June 19, 2002; Emer. Ord. No. 075-2015, § 2, eff. March 25, 2015)

Sec. 731-8. Procedures for Denial or Proof of Correction.

For purposes of denying a violation of Section 731-3 or offering proof of correction of a violation of Section 731-3, the procedures contained in Section 1501-13 to Section 1501-31 shall apply to the person being charged.

(Ordained by Ord. No. 211-2002, eff. June 19, 2002)

Sec. 731-9. Abatement by Public Officers.

(a) With respect to Initial Violations, if the owner or person in control of property that has a violation of Section 731-3(a) is notified of such violation pursuant to Section 731-5(a) and fails to comply with the requirements of such notice within the specified time period, the city manager or the city manager's designee shall cause any weeds and/or turf grasses that exceed the height restrictions specified in Section 731-3(a) to be cut, as set forth in Section 731-3.

(b) If Subsequent Violations occur at an Abandoned Property,

(1) The city manager or the city manager's designee shall place the property on a list of Abandoned Properties that will be routinely inspected, pursuant to guidelines established by the city manager or city manager's designee;

(2) If the property is subsequently found to be in violation of Section 731-3(b), the city manager or the city manager's designee immediately shall cause any weeds and/or turf grasses that exceed the height restrictions specified in Section 731-3(b) to be cut, as set forth in Section 731-3; and

(3) Inspection and abatement of the Abandoned Property shall continue as long as the condition persists, with a 731-5(a) notice sent each time, and may continue into the following calendar years.

(c) The city manager or the city manager's designee shall report all expenses involved in the cutting of such weeds and turf grass, including the cost of service of notice, any administrative costs, and inspection costs, to council.

(d) The obligation of any mortgagee or person in control as defined in Section 1101-01 or Section 1123-01 to comply with all of the obligations of the applicable Building Code regulations is not modified by this Section.

(C.O. 737-16; renumbered to C.M.C. 731-9, eff. Jan. 1, 1972; a. Ord. No. 149-2011, § 1, eff. June 11, 2011; Emer. Ord. No. 075-2015, § 2, eff. March 25, 2015)

Sec. 731-10. Abatement by City's Authorized Designee.

(a) If the owner or person in control of property that has a violation of Section 731-3 is notified of such violation pursuant to Section 731-5 and fails to comply with the requirements of such notice within the specified time period, then the property shall be identified as an Abandoned Property as defined by Section 731-1-A, and the city manager or the city manager's designee may authorize a person who is not the owner or person in control of the property ("Authorized Designee") to cut weeds and/or turf grasses that exceed the height restrictions specified in Section 731-3. Before entering onto the

property, the Authorized Designee must obtain written verification from the city's designated public officer of the following:

(1) That the owner or person in control of the property has received a notice pursuant to Section 731-5 for failure to comply with the height restrictions specified in Section 731-3; and

(2) That the owner or person in control has failed to comply with the requirements of such notice.

(b) Upon receipt of a written verification from the city's designated public officer, the Authorized Designee may immediately cause any weeds and/or turf grasses that exceed the height restrictions specified in Section 731-3 to be cut, as set forth in Section 731-3.

(c) An Authorized Designee:

(1) Is immune from suits for claims for civil liability for an act or omission related to subsection (b) to the extent allowed by Ohio Revised Code Chapter 2744, et seq., unless the Authorized Designee's act or omission constitutes willful, wanton, or reckless misconduct; and

(2) Shall not be subject to prosecution by the city for criminal trespass and shall be deemed to be lawfully on the property.

(d) The Authorized Designee shall report all expenses involved in the destruction of such weeds and/or turf grass to the city manager or the city manager's designee, including the cost of service of notice and inspection costs, who shall in turn report all expenses to council.

(e) The obligation of any mortgagee or person in control as defined in Section 1101-01 or Section 1123-01 to comply with all of the applicable Building Code regulations is not modified by this Section.
(Ordained by Ord. No. 075-2015, § 1, eff. March 25, 2015)

Sec. 731-11. Cost as Lien on the Land and Personal Judgment Against Owners and Persons in Control.

When weeds and/or turf grasses have been cut in accordance with Section 731-9 or 731-10, the cost thereof shall be a lien on such lot or land from the date such expenses are reported to council in accordance with Section 731-9 or 731-10. The clerk of council shall certify such cost to the county auditor to be placed upon the tax list and collected as other taxes are collected and returned to the city of Cincinnati in accordance with Section 715.26, 715.261 or 731.54 of the Ohio Revised Code. The cost of removal may also be recovered by means of a judgment against the owner or person in control. Any abatement costs recovered under this chapter shall be deposited into the private lot abatement fund to support abatement activities authorized by Sections 731-9 and 731-10 and enforcement of this chapter.
(C.O. 737-17; renumbered to C.M.C. 731-11, eff. Jan. 1, 1972; a. Ord. No. 697-1979, eff. Jan. 27, 1980; a. Ord. No. 149-2011, § 1, eff. June 11, 2011; Emer. Ord. No. 075-2015, § 2, eff. March 25, 2015; a. Ord. No. 384-2016, § 1, eff. Feb. 11, 2017)

Sec. 731-13. Rules and Regulations.

The city manager or the city manager's designee is authorized to promulgate rules and regulations to effectuate the provisions and purposes of this Chapter, including without limitation, the following: the determination of whether a property is Abandoned as defined by Section 731-1-A; the implementation of a routine maintenance schedule for Abandoned Properties; the implementation of a program enabling abatement by the city's authorized designee, as outlined in Section 731-10, including determining the cost of authorized designee time and of Abatement; an administrative

process to contest a determination of Abandonment under Section 731-1-A; an opportunity for property owners to re-assert control over Abandoned Properties to avoid ongoing maintenance, assessments and civil penalties by the city; and a policy and a process for property owners seeking to remove their property from the city's abatement program.
(Ordained by Ord. No. 075-2015, § 1, eff. March 25, 2015)

Sec. 731-99. Penalties—Civil and Criminal.

(a) Any violation of the height restrictions specified in Section 731-3 shall constitute a Class C1 civil offense on the first day after the owner or person in charge of the property has received notice under Section 731-5 and Section 1501-13.

(b) Any civil fines collected under this Chapter shall be deposited into Stormwater Management Fund 107 in accordance with CMC 720-51.

(c) As an alternative to a notice of civil offense and civil fine, a violation of any provision of this Chapter is a minor misdemeanor.

(d) If the offender has been previously convicted of violating any Section of this Chapter, a subsequent violation is a misdemeanor of the fourth degree.
(C.O. 737-13; a. Ord. No. 216-1969, eff. June 27, 1969; a. Ord. No. 414-1970, eff. Dec. 23, 1970; renumbered to C.M.C. 731-99, eff. Jan. 1, 1972; a. Ord. No. 123-1986, eff. May 9, 1986: a. Ord. No. 13-1988, eff. Jan. 21, 1988; Emer. Ord. No. 075-2015, § 2, eff. March 25, 2015; a. Ord. No. 384-2016, § 1, eff. Feb. 11, 2017; a. 282-2024, § 1, eff. Sept. 5, 2024)

Sec. 731-99-A. Waiver and Written Pleas.

Notwithstanding the penalty provisions of Section 731-99, any person who has violated any of the provisions of this Chapter and been charged with a criminal offense may enter a guilty plea upon executing before and filing with the clerk of the Hamilton County Municipal Court, Criminal Division, an instrument waiving the formal issuance of an affidavit and warrant, together with the reading of such affidavit, stating that such person understands the nature of the charges; and further waiving the right to be present personally at trial of such action; and further waiving the right to appeal and authorizing a plea of guilty to be entered. A person shall be fined for an amount as determined by the Hamilton County Municipal Court. Such fine shall be deposited with the clerk within 168 hours after citation. If any person fails to so deposit such amount with the clerk within 168 hours, the amount of the fine may be doubled.
(Ordained by Ord. No. 123-1986, eff. May 9, 1986; a. Ord. No. 149-2011, § 1, eff. June 11, 2011; Emer. Ord. No. 075-2015, § 2, eff. March 25, 2015)

Chapter 733

WEIGHING OF HEAVY COMMODITIES (REPEALED)*

*__Editor's note—__Repealed by Ord. No. 453-1994, eff. Jan. 20, 1995.

Chapter 735

WEIGHTS AND MEASURES (REPEALED)*

*__Editor's note—__Repealed by Ord. No. 453-1994, eff. Jan. 20, 1995.

Chapter 737

EXCAVATION AND FILLING OF LAND (REPEALED)*

*__Editor's note—__Repealed by Ord. No. 73-1985, eff. Feb. 13, 1985.

Chapter 739

CENTRAL RIVERFRONT

Sec. 739-1. Definition of Central Riverfront.
Sec. 739-3. Use of the Central Riverfront.
Sec. 739-5. Prohibited Uses of the Central Riverfront.
Sec. 739-7. Prohibited Containers, Penalties.

Sec. 739-1. Definition of Central Riverfront.

For the purposes of this chapter, the central riverfront shall be defined to include the areas commonly known as the public landing, marina, Serpentine Wall and upper walkway, Cincinnatus Concourse, Sawyer Point, Yeatman's Cove Park and Eden Park Waterfront.
(C.M.C. 739-1; ordained by Ord. No. 254-1978, eff. June 28, 1979)

Sec. 739-3. Use of the Central Riverfront.

The use of the central riverfront shall be preserved primarily for the peaceful and orderly enjoyment of the facilities, appurtenances and landscaping by the general public.

The operating agencies for the central riverfront shall be the Cincinnati public recreation commission and the board of park commissioners for areas under their respective jurisdictions.

Any special use of the central riverfront by a person, group of persons or organization shall not be permitted except in accordance with the terms of a permit issued by the wharfmaster with the approval of the appropriate agency or agencies.

Special use shall include, but not be limited to, public meetings, music concerts, parades and races. All affected city departments including, but not limited to, the park board, the recreation commission, public utilities, public works and safety shall be notified by the wharfmaster before the permit is issued. The city of Cincinnati need not obtain a permit for use of the central riverfront, but must coordinate the use thereof through the wharfmaster.

The following shall be a stipulation of all permits granted:

(a) Groups, organizations or associations applying for a permit shall pay in advance the estimated reasonable costs of cleaning the central riverfront after the use and shall agree in writing to be responsible for repairing damage to the area, its appurtenances, facilities and landscaping which in any way arise out of the proposed use of the central riverfront.

(b) Any person issued a permit to use the central riverfront under the authorization of this section shall have possession of the permit during such activity and show it upon request.

This chapter shall provide the rules and regulations governing the use of the entire central riverfront to provide for the safety and protection of persons using the area pursuant to application for permit, the general public using the area and all public ways adjacent thereto, and the protection of the central riverfront itself, including all appurtenances, facilities and landscaping.

Any permit issued pursuant to these rules may require the posting of bond or insurance policy and the hiring of off-duty Cincinnati police and/or park police officers to protect the public and the city of Cincinnati from any loss, injury or damage that may arise from such use. The wharfmaster shall supply forms to be used by groups, associations and organizations making application for the use of central riverfront in accordance with the provisions of this section.

Rules included herein combine applicable, existing rules and regulations of the board of park commissioners and the public recreation commission and shall prevail over such existing rules and regulations in the event of conflict. Non-conflicting park board or recre-

ation commission rules and regulations shall continue to have full force and effect in the appropriate areas of the central riverfront.

Any violation of this section shall be deemed to be a minor misdemeanor for the first offense, and for a second or subsequent offense, a misdemeanor of the fourth degree. (C.M.C. 739-3; ordained by Ord. No. 254-1978, eff. June 28, 1978)

Sec. 739-5. Prohibited Uses of the Central Riverfront.

It shall be unlawful for any person, group of persons or organization, except pursuant to a valid permit issued in accordance with Section 739-3 of the Cincinnati Municipal Code to endanger, obstruct, or unreasonably interfere with the use of the central riverfront or any facility or appurtenance thereof, or access to, from or through any part of the area, including but not limited to stairways, passageways, overhead walkways, elevators, exits and entrances.

In furtherance of the proscription of this paragraph, the following rules and regulations are hereby adopted:

(1) No person may make use of central riverfront property at any time for activities which are specifically prohibited by posted signs or when such use is likely to cause bodily harm to such person or others, or cause damage to property.

(2) No person may climb onto any building, baseball backstop, football goal post, fence or any other structure located on central riverfront property except on play equipment erected for this purpose.

(3) No person shall throw or bat a hardball or softball, or drive, putt or play with a golf ball, except at such places as may be set aside therefor. The operating agency retains the right to prohibit softball, horseshoes, football, soccer and similar activities where such activity presents a clear and present danger to others.

(4) Any section or part of any of the central riverfront may be declared closed to the public at any time, and for certain uses, as the city or its agents shall find necessary.

(5) All persons who have a valid permit for the use of the central riverfront property shall have prior right for such use, except that persons participating in activities sponsored by any city board or department shall have first option for use.

(6) No person shall sell or expose or offer anything for sale on the central riverfront except the appropriate operating agency's duly authorized concessionaire or concessionaires of any person, group of persons or organization using the central riverfront pursuant to a valid permit issued in accordance with Section 739-3 of the Cincinnati Municipal Code and then only during the hours designated in such permit and when such concessionaire has all the required permits to engage in such sales.

(7) Except by written permission of the appropriate operating agency, no person shall lead, ride or otherwise cause or permit any horse, pony, mule, burro, or any other animal or reptile to enter onto central riverfront property, except that persons may ride or lead any such animal on paths or trails set aside by the city or its agents for such purposes.

(8) No person shall take or permit a dog on or within any central riverfront property where a sign is posted prohibiting dogs. On central riverfront

property where no such signs are posted, no person shall take or permit a dog within such central riverfront property unless the dog is held by leash, chain or cord.

(9) No person shall carry or discharge slings, bows, or any other device by which persons, animals, or birds may be injured or frightened, or throw stones or other missiles within central riverfront property, except under the supervision of any employee of the city or its agents or with the written permission of the operating agency. No person shall discharge firearms within central riverfront property, except under the supervision of any employee of the city or its agents or with the written permission of the operating agency. The prohibitions in this section do not apply to the possession, transporting, or carrying of firearms as defined by Section 708-1-B of the Cincinnati Municipal Code, components of firearms, or firearm ammunition as defined and regulated by Ohio Revised Code Chapter 2923, Conspiracy, Attempt, and Complicity; Weapons Control and Corrupt Activity.

(10) No person may have in possession or consume any kind of beer, wine or intoxicating liquor on or within central riverfront property without the written permission of the appropriate operating agency, except that persons may make use of any beverage sold on central riverfront property by an employee of the city or its agents or by any other properly authorized concessionaire.

(11) No person may ride a bicycle or other such conveyance on central riverfront property in any manner that will endanger the safety of others, create confusion or interfere with the regular activities on this area or damage the property.

(12) No person shall operate, fly, launch, drive or use any motor-propelled vehicle or flying apparatus or other vehicle (except motor vehicles may be driven on roadways designed for that purpose and boats may be launched at areas so designated, subject to any separate regulation thereof) on the central riverfront including but not limited to airplanes, balloons, gliders, hang gliders, boats, airplanes, snowmobiles, go-carts, rockets, powered model planes, motorbikes, motorcycles or automobiles except with the written permission of the appropriate operating agency and except within such areas as designated by the appropriate operating agency and except in compliance with any reasonable safety regulation set by the appropriate operating agency and made a condition of any consent. No one shall park any vehicle on central riverfront property except in areas provided for this purpose, and then only in designated lanes, except with the written permission of the appropriate operating agency. City employees in the course of carrying out their duties may operate motor-powered vehicles on central riverfront property.

(13) No person shall move or alter the arrangement of any chain, cable, post or barrier of any kind when placed on central riverfront property for the purpose of regulating the use of such property.

(14) No person, except with the written permission of the appropriate operating agency, shall take, carry away, remove, dig, cut, disturb, molest, destroy, mar or damage any solid or

mineral substance or any form of vegetation, whether living or dead, on the central riverfront. Nor shall any person, except with written permission of the appropriate operating agency, take, carry away, remove, disassemble, destroy, mar, deface, mark or damage or attach anything to any central riverfront equipment, building or structure on the central riverfront.

(15) No person, except with the written permission of the appropriate operating agency, shall display or distribute any leaflet, banner, flag, target, sign or device for commercial or fundraising purposes, or make any speech or harangue on central riverfront property or on any sidewalk bounding such property in such a manner as to materially interfere with the rights of others to enjoy the central riverfront or that could result in danger or injury to persons or property.

(16) No person shall enter any of the fountain areas in violation of posted signs.

(17) No person shall dive or jump from the Serpentine Wall into the river.

(18) No person shall start or have any fires on central riverfront property except in containers provided for such purpose, or except with written permission of the operating agency.

Any violation of this section shall be deemed to be a minor misdemeanor for the first offense, and for a second or subsequent offense, a misdemeanor of the fourth degree.
(C.M.C. 739-5; ordained by Ord. No. 254-1978, eff. June 28, 1978; Emer. Ord. No. 028-2014, § 8, eff. March 5, 2014)

Sec. 739-7. Prohibited Containers, Penalties.

No person shall possess any glass bottle or glass beverage container in the area known as the Central Riverfront, as defined in Section 739-1, Cincinnati Municipal Code, the Stadium, the Stadium Plaza, the Stadium Parking Facilities, and the ground level and second level walkway system surrounding Riverfront Coliseum. This section shall not apply to an employee of the city of Cincinnati, its agent, or any properly authorized concessionaire, or a supplier thereof, while acting within the course and scope of employment in providing concession at a scheduled event authorized by the city of Cincinnati.

Any violation of this section is a minor misdemeanor.
(Ordained by Ord. No. 230-1982, eff. June 9, 1982)

Chapter 740

DISPLACEMENT AND RELOCATION BENEFITS FOR CITY-ASSISTED PROJECTS

Sec. 740-1. Policy.
Sec. 740-3. Definitions.
Sec. 740-5. Residential Relocation Benefits.
Sec. 740-7. Business Relocation Benefits.
Sec. 740-9. Rules and Regulations.
Sec. 740-11. Discrimination Against Government Housing Allowance Recipients Forbidden.
Sec. 740-13. Affirmative Marketing.
Sec. 740-99. Civil Remedy.

Sec. 740-1. Policy.

The council declares that it is city policy in the planning and administration of every city property acquisition project or city housing or development assistance program to minimize the adverse effects of involuntary displacement of persons from their homes, businesses and neighborhoods.
(Ordained by Ord. No. 238-1990, eff. June 4, 1990; a.Ord. 299, eff. Aug. 17, 1992; a. Ord. No. 268-1999, eff. June 23, 1999)

Sec. 740-3. Definitions.

As used in this chapter:

(a) "City Assistance" means providing a developer with:

(1) Tax increment financing;

(2) Land acquired through eminent domain or at a price less than the acquisition cost to the city; or

(3) Any city-funded housing or economic development loan or grant program.

(b) "Business occupant" means the owner of a business exclusively occupying a place of business:

(1) for the conduct of a lawful business;

(2) in conformity with zoning regulations applicable to the zone district in which the business is located or is a lawful nonconforming use;

(3) in compliance with applicable licensing laws and ordinances; and

(4) as property owner or pursuant to a valid lease or rental agreement.

(b) "Residential tenant" means any person or household lawfully occupying under a valid written or rental agreement any single-family dwelling, apartment, or sleeping room for 180 days or more.
(Ordained by Ord. No. 238-1990, eff. June 4, 1990; a.Ord. 299-1992, eff. Aug. 17, 1992; a. Ord. No. 268-1999, eff. June 23, 1999)

Sec. 740-5. Residential Relocation Benefits.

Any residential homeowner or residential tenant involuntarily displaced from a dwelling as a direct result of any city property acquisition or project or program receiving city assistance shall be entitled to relocation benefits from the city.

Relocation benefits under this section shall include a relocation payment not to exceed $650 for reasonable moving expenses and a replacement housing payment to enable the displaced homeowner or tenant to lease, rent or purchase a decent, safe and sanitary replacement dwelling. Subject to the provisions of this chapter, the guidelines of the U. S. Department of Housing and Urban Development Handbook 1378, Tenant Assistance, Relocation, and Real Property Acquisition shall be used for the computation of the replacement housing payment. The maximum payment shall be $4,000 to a displaced homeowner and $2,000 to a displaced tenant. (Ordained by Ord. No. 238-1990, eff. June 4, 1990; a.Ord. 299-1992, eff. Aug. 17, 1992; a. Ord. No. 268-1999, eff. June 23, 1999)

Sec. 740-7. Business Relocation Benefits.

Any business occupant involuntarily displaced as a direct result of any city property acquisition or project receiving city assistance shall be entitled to reimbursement for moving expenses, including reestablishment expenses, up to $20,000. Subject to the provisions of this chapter, the guidelines of the U. S. Department of Housing and Urban Development Handbook 1378, Tenant Assis-

tance, Relocation, and Real Property Acquisition shall be used for the computation of the reestablishment expense payment.
(Ordained by Ord. No. 238-1990, eff. June 4, 1990; a.Ord. 299-1992, eff. Aug. 17, 1992; a. Ord. No. 268-1999, eff. June 23, 1999)

Sec. 740-9. Rules and Regulations.

Payments under this chapter shall be subject to such rules and regulations as may be prescribed by the city solicitor. Such rules and regulations shall limit relocation benefits under this chapter to persons who are not eligible for payments from other sources which are equal or greater to payments herein and may further define expenses eligible for reimbursement. In addition, the rules and regulations shall establish a time limit on application for benefits.
(Ordained by Ord. No. 238-1990, eff. June 4, 1990; a.Ord. 299-1992, eff. Aug. 17, 1992; a. Ord. No. 268-1999, eff. June 23, 1999)

Sec. 740-11. Discrimination Against Government Housing Allowance Recipients Forbidden.

It is unlawful for owners of residential rental units or their agents to refuse to rent a vacant dwelling unit, to evict any person or otherwise discriminate in the terms of tenancy solely because a tenant or prospective tenant is a holder of a Certificate of Family Participation under the Section 8 Existing Housing Program of the Housing and Community for Development Act of 1974, as amended, or is a recipient of any other government housing allowance program. (Ordained by Ord. No. 238-1990, eff. June 4, 1990; a.Ord. 299-1992, eff. Aug. 17, 1992; a. Ord. No. 268-1999, eff. June 23, 1999)

Sec. 740-13. Affirmative Marketing.

Any owner of residential rental units who is the recipient of city assistance shall for a period of 15 years from the receipt of such assistance Affirmatively Market the availability of such units to government housing allowance recipients. "Affirmatively Market" shall mean advertising the availability of the rental unit to government housing allowance recipients in a newspaper of general circulation throughout the city and giving notice of availability to government housing assistance offices, at least ten days in advance of renting the unit to any person other than a recipient of government housing allowance assistance. If 25 percent of the units are already rented to recipients of government housing assistance at the time that a vacancy occurs, the owner need not Affirmatively Market the availability of the rental unit to government housing allowance recipients. This Section shall not be construed to limit the rent that may be charged for such units.
(Ordained by Ord. No. 238-1990, eff. June 4, 1990; a.Ord. 299-1992, eff. Aug. 17, 1992; a. Ord. No. 268-1999, eff. June 23, 1999)

Sec. 740-99. Civil Remedy.

The rights granted by Section 740-11 may be enforced by civil action. The court may grant injunctive or other relief, and award to the tenant actual damages or $300, whichever is greater, and punitive damages, together with court costs, and shall award reasonable attorney fees to a prevailing tenant.
(Ordained by Ord. No. 238-1990, eff. June 4, 1990; a. Ord. 299-1992, eff. Aug. 17, 1992; a. Ord. No. 268-1999, eff. June 23, 1999)

Chapter 741

HISTORIC CONSERVATION
(REPEALED)

Sec. 741-1. Definitions.
(Ordained by Ord. No. 190-1980, eff. June 7, 1980; r. eff. Oct. 6, 2004)

Sec. 741-1-A. Alteration.
(Ordained by Ord. No. 190-1980, eff. June 7, 1980; r. eff. Oct. 6, 2004)

Sec. 741-1-C. Certificate of Appropriateness.
(Ordained by Ord. No. 190-1980, eff. June 7, 1980; r. eff. Oct. 6, 2004)

Sec. 741-1-D. Demolition.
(Ordained by Ord. No. 190-1980, eff. June 7, 1980; r. eff. Oct. 6, 2004)

Sec. 741-1-E. Environmental Change.
(Ordained by Ord. No. 190-1980, eff. June 7, 1980; r. eff. Oct. 6, 2004)

Sec. 741-1-H. Historic District.
(Ordained by Ord. No. 190-1980, eff. June 7, 1980; r. eff. Oct. 6, 2004)

Sec. 741-1-H1. Historic Significance.
(Ordained by Ord. No. 190-1980, eff. June 7, 1980; r. eff. Oct. 6, 2004)

Sec. 741-1-H2. Historic Site.
(Ordained by Ord. No. 190-1980, eff. June 7, 1980; r. eff. Oct. 6, 2004)

Sec. 741-1-H3. Historic Structure.
(Ordained by Ord. No. 190-1980, eff. June 7, 1980; r. eff. Oct. 6, 2004)

Sec. 741-3. Designation of Historic Districts, Sites, and Structures.
(Ordained by Ord. No. 190-1980, eff. June 7, 1980; r. eff. Oct. 6, 2004)

Sec. 741-5. Proposals for Historic Structures, Sites, and Districts.
(Ordained by Ord. No. 190-1980, eff. June 7, 1980; r. eff. Oct. 6, 2004)

Sec. 741-7. Report, Public Hearing and Decision.
(Ordained by Ord. No. 190-1980, eff. June 7, 1980; r. eff. Oct. 6, 2004)

Sec. 741-9. Notification of Designation.
(Ordained by Ord. No. 190-1980, eff. June 7, 1980; r. eff. Oct. 6, 2004)

Sec. 741-11. Conservation Guidelines.
(Ordained by Ord. No. 190-1980, eff. June 7, 1980; r. eff. Oct. 6, 2004)

Sec. 741-13. Regulation of Alterations, Demolitions and Environmental Changes.
(Ordained by Ord. No. 190-1980, eff. June 7, 1980; a. Ord. No. 407-1981, eff. Oct. 23, 1981; r. eff. Oct. 6, 2004)

Sec. 741-15. Demolition.
(Ordained by Ord. No. 190-1980, eff. June 7, 1980; r. eff. Oct. 6, 2004)

Sec. 741-17. Appeal.
(Ordained by Ord. No. 190-1980, eff. June 7, 1980; a. Ord. No. 361-1994, eff. Oct. 28, 1994; r. eff. Oct. 6, 2004)

Sec. 741-19. Minimum Maintenance Requirement.
(Ordained by Ord. No. 190-1980, eff. June 7, 1980; r. eff. Oct. 6, 2004)

Sec. 741-21. Exemptions.
(Ordained by Ord. No. 190-1980, eff. June 7, 1980; r. eff. Oct. 6, 2004)

Sec. 741-23. Prohibitions, Enforcement, and Penalties.
(Ordained by Ord. No. 190-1980, eff. June 7, 1980; r. eff. Oct. 6, 2004)

Chapter 743

URBAN FORESTRY

Sec. 743-1. Definitions.
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Sec. 743-31. Disposal of Urban Forest Products.
Sec. 743-99. Penalties.

Sec. 743-1. Definitions.

For the purpose of this chapter, the words and phrases defined in the sections hereunder shall have the meanings therein respectively ascribed to them, unless a different meaning is clearly indicated by the context.
(Ordained by Ord. No. 248-1980, eff. June 30, 1985; repealed and reordained by 352-1985, eff. Aug. 2, 1985; a. Ord. No. 412-1990, eff. Oct. 3, 1990)

Sec. 743-1-D. Director.

"Director" shall mean the director of parks or person designated by the director.
(Ordained by Ord. No. 352-1985, eff. Aug. 2, 1985; a. Ord. No. 412-1990, eff. Oct. 3, 1990)

Sec. 743-1-P1. Person.

"Person" shall mean an individual, corporation, the city of Cincinnati, or any of its departments, boards, or commissions, estate, trust, partnership or association, two or more persons having a joint or common interest, or any other legal or commercial entity.
(Ordained by Ord. No. 248-1980, eff. June 30, 1981; repealed and reordained by Ord. No. 352-1985, eff. Aug. 2, 1985; a. Ord. No. 412-1990, eff. Oct. 3, 1990)

Sec. 743-1-P2. Public Tree.

"Public tree" shall mean a tree located on a public street within the city of Cincinnati.
(Ordained by Ord. No. 248-1980, eff. June 30, 1981; repealed and reordained by Ord. No. 352-1985, eff. Aug. 2, 1985; a. Ord. No. 412-1990, eff. Oct. 3, 1990)

Sec. 743-1-R. Remove.

"Remove" shall mean the cutting down or damaging, whether by deliberate or negligent act or omission, of any tree which causes the tree to die or become hazardous within three years.
(Ordained by Ord. No. 248-1980, eff. June 30, 1981; repealed and reordained by Ord. No. 352-1985, eff. Aug. 2, 1985; a. Ord. No. 412-1990, eff. Oct. 3, 1990)

Sec. 743-1-S. Street.

"Street" shall mean every public way including the area from property line to property line, including parkways.
(Ordained by Ord. No. 248-1980, eff. June 30, 1981; repealed and reordained by Ord. No. 352-1985, eff. Aug. 2, 1985; a. Ord. No. 412-1990, eff. Oct. 3, 1990)

Sec. 743-1-T. Tree.

"Tree" shall mean:

(a) Any self-supporting woody plant which has a well-defined stem with a diameter of at least four inches at four and one-half feet from the ground;

(b) Any dogwood, redbud or other conspicuously flowering woody plant as designated by the director which has a well-defined stem of at least two inches diameter at four and one-half feet from the ground; or

(c) Any small seedling or sapling planted or protected specifically to become a large tree as described in paragraph (a) or (b) above.

(Ordained by Ord. No. 248-1980, eff. June 30, 1981; repealed and reenacted by Ord. No. 352-1985, eff. Aug 2, 1985; a. Ord. No. 412-1990, eff. Oct. 3, 1990)

Sec. 743-1-U. Urban Forest.

"Urban forest" shall mean trees located on city-owned or -controlled property.
(Ordained by Ord. No. 352-1985, eff. Aug. 2, 1985; a. Ord. No. 412-1990, eff. Oct. 3, 1990)

Sec. 743-1-U1. Urban Forestry Regulations.

"Urban forest regulations" shall mean regulations promulgated by the Board of Park Commissioners for implementation of this chapter.
(Ordained by Ord. No. 352-1985, eff. Aug. 2, 1985; a. Ord. No. 412-1990, eff. Oct. 3, 1990)

Sec. 743-3. Urban Forestry Advisory Board.

(a) There shall be an urban forestry advisory board whose duty it shall be to advise the director on the establishment of appropriate urban forestry programs, regulations, and the planning, promotion and guidance of the urban forestry program.

(b) The urban forestry advisory board shall be composed of nine members. Six members shall be appointed by the city manager to serve without compensation, and shall be residents of the city who have demonstrated their interest in conservation of natural resources. Two of such members shall be engaged in the field of arboriculture, forestry, horticulture or landscape architecture, two in the field of business management, law, or public relations, and two shall be selected from the community at large. The director of city planning, the director of transportation and engineering, and the city engineer or their designee shall serve as permanent members.

(c) As the term of each member expires, the city manager shall appoint a successor to serve a four year term and until a successor is appointed and qualified. The city manager shall make appointments to fill vacancies caused by the death or resignation of members in unexpired terms.

(d) The urban forestry advisory board shall meet at least bi-monthly, shall elect its officers and adopt its own operating procedures consistent with city practice and policy.
(Ordained by Ord. No. 412-1990, eff. Oct. 3. 1990; a. Ord. No. 020-2010, § 5, eff. Feb. 27, 2010; Emer. Ord. No. 238-2015, § 11, eff. July 1, 2015)

Sec. 743-5. Work on City Property.

The department, board or commission having control of city- owned or -controlled property shall be responsible for any urban forestry work done on such property except on public trees and in emergencies as defined herein; however, upon request, the director may perform any urban forestry service within the urban forest on city-owned or -controlled property which is under the control of any other department, board or commission and shall be reimbursed for such service.
(Ordained by Ord. No. 352-1985, eff. Aug. 2, 1985; a. Ord. No. 412-1990, eff. Oct. 3, 1990)

Sec. 743-7. Permits Required.

No person shall commence or proceed with any operation involving a public tree without first obtaining a permit from the director.
(Ordained by Ord. No. 248-1980, eff. June 30, 1981; repealed and reenacted by Ord. No. 352-1985, eff. Aug 2, 1985; a. Ord. No. 412-1990, eff. Oct. 3, 1990)

Sec. 743-9. Application for Permits.

Application for an urban forestry permit shall be made in the form prescribed by the director.

(a) The owner of the property on which the proposed work is to be performed or by the owner's authorized agent, landscape architect, or contractor employed in connection with the proposed work.

(b) By the public utility company or its authorized agent, if the work is to be done by a public utility company pursuant to its regular operations.

(c) By the abutting property owner, or such owner's agent, if the work is to be performed within a street on behalf of the abutting property owner.

(d) If any work not included in paragraph (a), (b) or (c) is to be performed within a street, by the person the work is to be performed for or by such person's agent, or by the person having control over such property.

Each application shall be accompanied by the appropriate permit fee.

The application shall identify the nature of the work for which the application is sought. If the proposed work involves the removal of any public tree or planting of a public tree, the applicant shall file with the director plans and specifications showing the location, size, species, and conditions of all existing trees in the vicinity, the location, size, and species of any trees to be planted, and any existing or planned buildings, street lights, traffic signals or signs, pavement, sidewalk, curb cut, or public utilities. Such plans and specifications shall be in such form and include such additional information as may be required by urban forestry regulations.
(Ordained as Sec. 743-11 by Ord. No. 248-1980, eff. June 20, 1981; repealed and reordained as Sec. 743-9 by Ord. No. 352-1985, eff. Aug. 2, 1985; a. Ord. No. 412-1990, eff. Oct. 3, 1990)

Sec. 743-11. Fees for Permits.

The fees for permits for any operation involving a public tree shall be based on the estimated cost of the planned work. Where the estimated cost of the work is not more than $500; no fee. Where the estimated cost is more than $500, $1 for each $100 over $500 or fraction thereof. Fees for annual permits shall be based on the same formula. No fee shall be required for permits obtained by other city departments, boards or commissions. When work for which a permit is required is commenced prior to obtaining a permit, the fees herein described shall be an amount equal to double the fee or $10, whichever is greater, to cover administrative costs. Payment of such double fees shall not relieve any person from fully complying with this chapter nor from any other penalty or compensation payments prescribed herein.
(Ordained as Sec. 743-23 by Ord. No. 248-1980, eff. June 30, 1981; repealed and reordained as Sec. 743-11 by Ord. No. 352-1985, eff. Aug. 2, 1985; a. Ord. No. 412-1990, eff. Oct. 3, 1990)

Sec. 743-13. Issuance of Permits.

Every application for a permit shall be approved or disapproved within 15 days after filing. If application is rejected, the applicant shall be notified in writing of the reason for the rejection. If no action is taken within 15 days on an application, it shall be deemed to have been approved provided permit fees and compensatory payments are paid.

Permits may be issued on an individual job basis or in the case of public utilities doing routine work, on an annual fee basis.
(Ordained as Sec. 743-9 by Ord. No. 248-1980, eff. June 30, 1981; repealed and reordained as Sec. 743-13 by Ord. No. 352-1985, eff. Aug. 2, 1985; a. Ord. No. 412-1990, eff. Oct. 3, 1990)

Sec. 743-15. Emergencies.

No permit shall be required to remove any tree or part thereof which by reason of damage by fire, windstorm or other calamity poses a threat to the public health or safety or which obstructs any public way.

In the event of windstorm, fire, flood or other widespread public calamity, the director may declare a state of emergency and exempt operations necessary to remove threats to public safety from the permit requirements imposed by this chapter.

The director may determine that a public tree is extremely hazardous and order that it be treated or removed immediately to protect the public health or safety, or that any other

tree poses a threat to the public health or safety within or obstructing any public way and shall be removed or treated immediately. (Ordained as Sec. 743-13 by Ord. No. 248-1980, eff. June 30, 1981; repealed and reordained as Sec. 743-15 by Ord. No. 352-1985, err. Aug 2, 1985; a. Ord. No. 412-1990, eff. Oct. 3, 1990)

Sec. 743-17. Compensatory Payments.

No person shall remove any public tree without replacing such tree with a tree of equivalent dollar value in the vicinity of the removed tree. The value of a tree shall be determined by the director in accordance with urban forest regulations considering the species, locations, size, and condition of the tree. If no suitable location exists in the vicinity of the tree removed or if the replacement tree is of lesser value, the person causing the tree to be removed shall make a compensatory payment to the city of Cincinnati equal to the difference in value between the tree removed and any replacement tree. Any public tree that is determined by the director to be damaged, but not sufficiently to justify its removal, shall be considered to be devalued. The amount of devaluation shall be paid to the city by the person causing the damage. Compensatory permits shall be paid into a fund established for that purpose and restricted to use for urban forestry programs. (Ordained by Ord. No. 248-1980, eff. June 30, 1981; repealed and reordained by Ord. No. 352-1985, eff. Aug. 2, 1985; a. Ord. No. 412-1990, eff. Oct. 3, 1990)

Sec. 743-19. Protection of Public Trees.

No person shall make any excavation, place any fill, compact the soil, or construct any building, structure, street, sidewalk, driveway, pavement, or public utility within 15 feet of any public tree without first obtaining a permit for such work from the director and conducting such work in accordance with such permit. As a condition of issuing such permit, the director shall require that the work be done in accordance with the urban forestry regulation as may be necessary to protect the vitality of such trees.
(Ordained by Ord. No. 248-1980, eff. June 30, 1981; repealed and reordained by Ord. No. 352-1985, eff. Aug. 2, 1985; a. Ord. No. 412-1990, eff. Oct. 3, 1990)

Sec. 743-21. Prohibitions.

Except as authorized by permit issued by the director:

(a) No person shall damage, cut, carve, prune or remove any public tree; nor attach any rope, wire, nails, advertising poster or other artifact to any public tree; nor allow any toxic substance to harm or damage any public tree; nor set fire to or otherwise injure by fire any public tree.

(b) No person shall plant or transplant any public tree.

(c) No person shall spray, inject or otherwise apply any fertilizer or pesticide, including but not limited to dormant oil, insecticide, fungicide, herbicide or biological control to any public tree.

(Ordained by Ord. No. 248-1980, eff. June 30, 1981; repealed and reordained by Ord. No. 352-1985, eff. Aug. 2, 1985; a. Ord. No. 412-1990, eff. Oct. 3, 1990)

Sec. 743-25. Required Pruning.

Any person, being the owner of real property abutting a street, shall prune any tree on the owner's property so that no tree shall obstruct or interfere with the view to oncoming traffic pedestrians free passage of pedestrians on any sidewalk or the free passage of vehicles on the paved portion of any street or the view of traffic signs or signals or with the extension or maintenance of wires for street

electric lights. The minimum clearance shall be 8 feet over sidewalk and 14 feet over the paved portion of streets.

Any person who has received from the city a grant to occupy the streets of the city for the purpose of erecting and maintaining poles, wires, fixtures, brackets and supports for the necessary wires thereon shall, upon notification by the director that any such supported wire under its control is interfering with a public tree, prune such tree or redesign or relocate its wires or other equipment at the person's option, at no expense to the city within 48 hours or other reasonable time designated by the director in the notification in such manner as to remove any interference to the tree from the wires.
(Ordained by Ord. No. 248-1980, eff. June 30, 1981; a. Ord. No. 485-1981, eff. Nov. 25, 1981; repealed and reordained by Ord. No. 352-1985, eff. Aug. 2, 1985; a. Ord. No. 412-1990, eff. Oct. 3, 1990)

Sec. 743-27. Orders.

Any tree located on private or public property which obstructs a street or sidewalk, or which suffers from a communicable disease or insect infestation, as determined by the director, which threatens the public welfare or the health of public trees is hereby declared to be a public nuisance.

When such a public nuisance exists, the director may cause a notice to be mailed by certified mail to the owner of the property on which the tree is located specifying what corrective work is necessary and directing the owner to perform such corrective work to eliminate the nuisance.

Should any ordered correction not be made within 14 days of the date such notice is received, the director shall cause such tree to be pruned, treated or removed as necessary to eliminate the public nuisance. All expenses involved in such work shall be recorded, and the director shall be authorized to collect such expenses from the owner of the property on which the tree is located.

The director may order any person responsible to correct any violation of the provisions of this chapter or make compensatory payments in accordance with urban forestry regulations. Should any ordered correction not be made within 14 days of the receipt of such notice, the director shall cause the correction to be made. All expenses involved in such work shall be recorded, and the director shall be authorized to collect such expenses from the person responsible for causing the correction to be required.

The director may revoke for cause any permit previously approved, and no refund of the permit fee shall be made.
(Ordained by Ord. No. 248-1980, eff. June 30, 1981; a. Ord. No. 485-1981, eff. Nov. 25, 1981; repealed and reordained by Ord. No. 352-1985, eff. Aug. 2, 1985; a. Ord. No. 412-1990, eff. Oct. 3, 1990)

Sec. 743-29. Appeals.

(a) Any person affected by an order, grant, denial, or revocation of a permit, of the director may appeal such order, grant, denial or revocation of a permit, to the urban forestry advisory board.

(b) Such appeal shall be filed in writing with the director within 14 days of the date of notification of the directors ruling.

(c) The appeal shall be heard by the urban forestry advisory board. Action by the director shall be stayed until the decision of the urban forestry advisory board is rendered and the applicant notified.

(d) The urban forestry advisory board may in conformity with the provisions of this chapter reverse or affirm or modify wholly or partly, the order, grant, denial or revocation of any permit.

(e) Any person affected by the decision of the urban forestry advisory board, may appeal such decision to the board of park commissioners.

(f) Such appeal shall be filed in writing with the director within 14 days of the date of notification of the decision of the urban forestry advisory board.

(g) The appeal shall be reviewed by the board of park commissioners. Action by the director shall be stayed until the decision of the board of park commissioners is rendered and the applicant is notified.

(h) The board of park commissioners may in conformity with the provisions of this chapter reviser or affirm or modify wholly or partly, the order, grant, denial or revocation of any permit and the decision of the urban forestry advisory board. The decision of the board of park commissioners shall be final.

(i) The right of appeal shall be clearly stated on all permits.

(Ordained by Ord. No. 248-1980, eff. June 30, 1981; repealed and reordained by Ord. No. 352-1985, eff. Aug. 2, 1985; a. Ord. No. 412-1990, eff. Oct. 3, 1990)

Sec. 743-31. Disposal of Urban Forest Products.

The director may sell without competitive bidding wood and other forest products generated during urban forestry and park operations which are not needed by the city. Monies generated from compensatory payments, permit fees, donations, gifts and the sale of urban forest products and wood of public trees shall be used solely for the purpose of enhancing the street tree program. Monies generated from compensatory payments, permits, fees, donations, gifts and the sale of park and parkway forest products and wood shall be used for the purpose of enhancing the parks and parkway forests.

(Ordained by Ord. No. 485-1981, eff. Nov. 25, 1981; repealed and reordained by Ord. No. 352-1985, eff. Aug. 2, 1985; a. Ord. No. 412-1990, eff. Oct. 3, 1990)

Sec. 743-99. Penalties.

Any person who violates any provision of this chapter or who fails to comply with a lawful order of the director shall be guilty of a fourth-degree misdemeanor. Criminal penalties are not in place of any payments which may be required under Section 743-17 or any required permit fee.

(Ordained by Ord. No. 248-1980, eff. June 30, 1981; repealed and reordained by Ord. No. 352-1985, eff. Aug. 2, 1985; a. Ord. No. 412-1990, eff. Oct. 3, 1990)

Chapter 745

ABORTION (REPEALED)*

*__Editor's note—__Repealed by Ord. No. 171-2024, § 1, eff. May 22, 2024.

Chapter 747

CITY RIGHT-OF-WAY LIMITED FRANCHISE CABLE SYSTEM CROSSINGS

Sec. 747-1. Definitions.
Sec. 747-1-C. City Right-of-Way.
Sec. 747-1-C1. Contiguous.
Sec. 747-1-L. Limited Franchise Cable System Crossing Equipment.
Sec. 747-1-L1. Limited Franchise Permittee or Operator.
Sec. 747-3. Limited Franchise Permit Required.
Sec. 747-5. Permit Fee.
Sec. 747-7. Limited Franchise Permit.
Sec. 747-9. Previously Granted Franchises.
Sec. 747-11. Relocation of Equipment.
Sec. 747-13. Severability.
Sec. 747-15. Penalties.

Sec. 747-1. Definitions.

For the purpose of this chapter, the words and phrases defined in the sections hereunder shall have the meanings herein respectively ascribed to them unless the context clearly indicates or requires a different meaning.
(Ordained by Ord. No. 191-1984, eff. May 9, 1984)

Sec. 747-1-C. City Right-of-Way.

"City right-of-way" shall mean those streets and ways dedicated, either by statute or common law, to the use of the public and controlled or maintained by the city, the terms, conditions and limitations of which are not inconsistent with the presence of cable system crossing equipment.
(Ordained by Ord. No. 191-1984, eff. May 9, 1984)

Sec. 747-1-C1. Contiguous.

"Contiguous" shall mean that such multiple dwelling units under common ownership and control are located on parcels of real property which would touch at a given point but for the existence of a city right-of-way.
(Ordained by Ord. No. 191-1984, eff. May 9, 1984)

Sec. 747-1-L. Limited Franchise Cable System Crossing Equipment.

"Limited franchise cable system crossing equipment" shall mean wire, antenna, cable, line, tower, waveguide or other conductor, converter, equipment or facility or any system thereof designed and constructed for the purpose of producing, receiving, transmitting, amplifying and distributing, audio, video and other forms of electronic or electric signals, but limited to facilities which serve subscribers in one or more contiguous multiple dwelling units under common ownership or control and which physically occupy space within city rights-of-way, except that where such facilities serving subscribers in such units do not occupy contiguous parcels of real property, a limited franchise permit shall be granted to serve not more than two such multiple dwelling units under common ownership or control and such additional multiple dwelling units under common ownership control as are contiguous thereto.
(Ordained by Ord. No. 191-1984, eff. May 9, 1984)

Sec. 747-1-L1. Limited Franchise Permittee or Operator.

"Limited franchise permittee" or "limited franchise operator" shall be the operator of a limited franchise cable system as defined herein whether the owner, agent for the owner or controller of the dwelling units served thereby or one permitted to operate such a system by the owner, agent for the owner, or controller of said dwelling units, and is the person who applies for the permit. Where the operator of the system is not the owner, agent of the owner or controller of the premises, the owner, agent of the owner or authorized controller thereof shall sign the permit to evidence consent to the installation of the city right-of-way cable crossing.
(Ordained by Ord. No. 191-1984, eff. May 9, 1984)

Sec. 747-3. Limited Franchise Permit Required.

No cable system equipment shall be permitted within the city right-of-way without the operator thereof obtaining a limited franchise permit from the city specifically approving of the placement of such equipment within the designated rights-of-way.
(Ordained by Ord. No. 191-1984, eff. May 9, 1984)

Sec. 747-5. Permit Fee.

Limited franchise permittees shall pay a one-time $500 right-of-way user fee per facility under common ownership and control served by any limited franchise cable system, plus an additional fee of $100 for each cable system right-of-way crossing serving said facility per year. Council may by ordinance change the fees set forth herein, when, in the opinion of council, such changes become necessary.
(Ordained by Ord. No. 191-1984, eff. May 9, 1984)

Sec. 747-7. Limited Franchise Permit.

The provisions of said limited franchise permit shall require the limited franchise permittee to apply for said permit to the office of the director of public works with a copy to the office of cable communications under the following terms and conditions:

(a) The limited franchise permit fees shall be payable upon approval by the city of an application for a limited franchise permit.

(b) Limited franchise permittees shall remain subject to all applicable federal, state and local laws, including but not limited to all ordinances of the city governing the use of city rights-of-way (e.g. Chapter 718 of the Cincinnati Municipal Code), inspection codes, building codes, zoning codes and the like as the same may be amended from time to time; and any and all fees connected with obtaining permits, applications or inspections required by law shall be the sole responsibility of the permittee.

(c) Length of the limited franchise permit shall be seven years from the date on which the permit is granted. Permit shall remain in full force and effect and shall be renewable for an additional seven years absent a showing by the city that permittee has acted in bad faith or that good cause exists for revoking said permit.

(d) In the event that the city shall elect to alter the grade or other physical characteristic of any city right-of-way, the permittee shall relocate its facilities to accommodate such changes, in accordance with city requirements, at the permittee's sole expense.

(e) The permittee shall be responsible to obtain any and all easements and permits, at its sole expense, from existing public utilities for the placement of its facilities in the city rights-of-way.

(Ordained by Ord. No. 191-1984, eff. May 9, 1984)

Sec. 747-9. Previously Granted Franchises.

Nothing contained in this chapter shall be construed to apply to or restrict previously granted franchises to public utilities nor to the franchise granted by ordinance No. 62-1981, except as provided in Section 747-11 hereof.
(Ordained by Ord. No. 191-1984, eff. May 9, 1984)

Sec. 747-11. Relocation of Equipment.

Where conflicts occur concerning the placement of cable system equipment in the city right-of-way by either limited franchise permittee or Warner-Amex Cable Communications of Cincinnati, Inc., the party requesting relocation of such equipment shall bear the costs thereof.
(Ordained by Ord. No. 191-1984, eff. May 9, 1984)

Sec. 747-13. Severability.

If any section, subsection, sentence, clause, phrase or portion of this chapter is for any reason held invalid or unconstitutional by any court of competent jurisdiction, such portion shall be deemed a separate, distinct and independent provision; and such holding shall not affect the validity of the remaining portions.
(Ordained by Ord. No. 191-1984, eff. May 9, 1984)

Sec. 747-15. Penalties.

Any violation of the provisions of this chapter shall cause the permittee to be fined $50 per day per violation after notification to the permittee by certified mail at its principal place of business, as listed in the permit application.

In the event such violations are not remedied within 14 days after such notice, the permit may be terminated by the director of public works, with the approval of the city manager; and all equipment of the permittee which occupies city right-of-way shall be removed within 10 days thereafter. If said equipment is not removed, the city may remove said equipment and charge the costs thereof to the permittee.
(Ordained by Ord. No. 191-1984, eff. May 9, 1984)

Chapter 749

DISPOSAL OF ABORTED HUMAN FETUSES

Sec. 749-1. Disposal of Aborted Fetuses.
Sec. 749-3. Definitions.
Sec. 749-99. Penalties.

Sec. 749-1. Disposal of Aborted Fetuses.

Every hospital and clinic in which abortions are performed or occur spontaneously, and every laboratory to which the aborted human fetuses are delivered, shall provide that the fetuses be interred, deposited in a vault or tomb, cremated, or otherwise disposed of in a manner approved by the commissioner of health. The hospital, clinic, or laboratory may complete any tests necessary for the health of the woman who conceived or carried such aborted fetus or her future offspring prior to disposing of the aborted fetus.

No hospital or clinic where abortions are performed or spontaneously occur or laboratory which disposes of aborted fetuses shall dispose of any aborted fetuses without first receiving a permit to dispose of aborted fetuses from the commissioner of health. The commissioner of health shall not issue a permit unless he determines that the applicant has appropriate facilities, methods, and capabilities for disposal of aborted human fetuses in a sanitary manner consistent with public health and safety. Each such hospital, clinic and laboratory shall report on a form provided by the commissioner of health the total number of aborted fetuses disposed of and a summary stating every manner of disposal used and the corresponding number of aborted fetuses for each manner of disposal. Such report shall be made annually by January 31 for the prior calendar year. A report must also be made whenever the methods of disposal used change. The commissioner of health shall provide forms for reporting under this section.
(Ordained by Ord. No. 8-1986, eff. Feb. 7, 1986)

Cross reference—Penalty, § 749-99.

Sec. 749-3. Definitions.

For the purposes of this section [chapter], "aborted human fetus" shall mean the aborted offspring of human parents at every stage of biological development up to 20 weeks gestation which is not the subject of disposal and reporting requirements of the state of Ohio.
(Ordained by Ord. No. 8-1986, eff. Feb. 7, 1986)

Sec. 749-99. Penalties.

Whoever knowingly violates any provision of Section 749-1 of this chapter shall be fined not more than $1,000.
(Ordained by Ord. No. 8-1986, eff. Feb. 7, 1986)

Chapter 751

GRAFFITI ABATEMENT*

Sec. 751-1. Definitions.
Sec. 751-1-A. Abatement.
Sec. 751-1-G. Graffiti.
Sec. 751-1-N. Nuisance Property.
Sec. 751-1-P. Person in Control.
Sec. 751-1-P2. Premises.
Sec. 751-2. Duty to keep Premises free of Graffiti.
Sec. 751-3.1. Notice of Violation.
Sec. 751-3.2. Service of Notice.
Sec. 751-3.3. Receipt of Notice.
Sec. 751-3.4. Petition for Written Determination.
Sec. 751-4. Abatement by Public Officers.
Sec. 751-5. Cost as Lien on the Land and Personal Judgment Against Owners and Persons in Control.
Sec. 751-6. Rules and Regulations.

*__Editor's note—__Ord. No. 163-2024, §§ 1, 2, effective May 15, 2024, repealed ch. 751, §§ 751-1—751-9 and enacted a new ch. 751. Former ch. 751 pertained to similar subject matter and derived from Ord. No. 261-1995, effective August 2, 1995 and Ord. No. 248-2002, effective June 26, 2002.

Sec. 751-1. Definitions.

For the purpose of this chapter the following terms, phrases, words, and their derivations shall have the meaning given herein. When not inconsistent with the context, words used in the present tense include the future, words used in the plural number include the singular number, and words used in the singular number include the plural number. The word "shall" is always mandatory and not merely directory.
(Ord. No. 163-2024, § 1, eff. May 15, 2024)

Sec. 751-1-A. Abatement.

"Abatement" shall mean the removal of any conditions, in accordance with Section 751-4, that are the subject of a notice of violation pursuant to Section 751-3.1.
(Ord. No. 163-2024, § 1, eff. May 15, 2024)

Sec. 751-1-G. Graffiti.

"Graffiti" shall mean any inscription, word, figure, marking, or design that is marked, etched, scratched, drawn, or painted on any premises, including buildings, structures, fixtures, or other improvements, whether permanent or temporary, whether public or private, without the consent of the owner of the property, a person in control, or the property owner's authorized agent, and that is visible from the public right-of-way or other public or quasi-public location within the city.
(Ord. No. 163-2024, § 1, eff. May 15, 2024)

Sec. 751-1-N. Nuisance Property.

"Nuisance property" shall mean property that is not being maintained consistent with the requirements of Chapter 751 and that the property owner or person in control has failed to bring into compliance with Section 751-2 within thirty days of receiving a notice of violation pursuant to 751-3.1.
(Ord. No. 163-2024, § 1, eff. May 15, 2024)

Sec. 751-1-P. Person in Control.

"Person in control" shall mean the owner of the freehold estate of the premises; a mortgagee or vendee in possession; a receiver; an executor; a trustee; and any person, public or private entity, lessee or holder of a lesser estate in the premises, and/or its duly authorized agent(s), with the authority to bring a building or premises into compliance with the provisions of this code, including, but not limited to, any mortgagee that has filed an action in foreclosure on the particular premises at issue, based on breach or default of a mortgage agreement, until title to the premises is transferred to a third party.
(Ord. No. 163-2024, § 1, eff. May 15, 2024)

Sec. 751-1-P2. Premises.

"Premises" shall mean the lot and structures situated thereon.
(Ord. No. 163-2024, § 1, eff. May 15, 2024)

Sec. 751-2. Duty to keep Premises free of Graffiti.

Every owner or person in control of any premises shall at all times maintain the premises free of graffiti.
(Ord. No. 163-2024, § 1, eff. May 15, 2024)

Sec. 751-3.1. Notice of Violation.

Whenever the city manager or the city manager's designee determines that graffiti exists on a premises in violation of Section 751-2, the city manager or the city manager's designee shall issue a notice to the owner or person in control of the premises that states the following:

a. Graffiti is present on the premises in violation of Section 751-2;

b. Within thirty days of receipt of the notice, the owner of person in control of the premises must either abate the graffiti or petition the city manager

or city manager's designee for a written determination pursuant to Section 751-3.4;

c. If the owner or person in control fails to abate the graffiti or petition the city manager or city manager's designee for a written determination within the above timeframe, the premises shall thereafter be deemed a nuisance property and subject to abatement by the city; and

d. The cost of abatement of the graffiti by the city will be assessed in accordance with Section 751-5.

(Ord. No. 163-2024, § 1, eff. May 15, 2024)

Sec. 751-3.2. Service of Notice.

When the city manager or city manager's designee issues a notice pursuant to Section 751-3.1, service shall be made by both posting the notice in a conspicuous place on the premises and in one of the following ways:

a. By personal delivery to the owner or person in control involved;

b. By delivery at the residence or place of business of the owner or person in control involved; or

c. By mail addressed to the owner or person in control at their place of residence or place of business.

(Ord. No. 163-2024, § 1, eff. May 15, 2024)

Sec. 751-3.3. Receipt of Notice.

For the purposes of this section, receipt of the notice shall mean any of the following:

a. The date on which the issuing officer posted a copy of the notice on the premises;

b. The date on which the issuing officer personally served the person being charged;

c. The date on which the issuing officer delivered the notice at the residence or place of business of the owner or person in control involved; or

d. Three days after the date on which the issuing officer mailed a copy of the notice.

(Ord. No. 163-2024, § 1, eff. May 15, 2024)

Sec. 751-3.4. Petition for Written Determination.

Any person who has a bona fide controversy with the interpretation, application, or enforcement of this chapter may petition the city manager or the city manager's designee for a written decision, order, or adjudication as follows:

a. The petition shall be on forms prescribed by the city manager or the city manager's designee.

b. The petition may not relate to a decision, order, or adjudication that is the subject of a past or pending administrative appeal or legal action.

c. The city manager or the city manager's designee shall dispose of the petition based upon the petitioner's written submissions, applicable laws, publicly available materials, and an inspection of the subject property if necessary; provided, however, that the petitioner may be heard in person prior to final disposition of the petition by making the request in writing upon submission of the petition.

d. If the city manager or the city manager's designee requests to inspect the subject property, the petitioner may refuse the request, but the refusal may serve as a basis for the denial of the petition.

e. The city manager or the city manager's designee shall issue a final written

determination on the petition within thirty days from the date of its submission, which determination shall constitute a final, appealable adjudication of the controversy described in the petition.

(Ord. No. 163-2024, § 1, eff. May 15, 2024)

Sec. 751-4. Abatement by Public Officers.

(1) If the owner or person in control of a premises in violation of Section 751-2 fails to comply with a notice of violation issued pursuant to Sec. 751-3.1, the premises shall be deemed a nuisance property, and the city manager or the city manager's designee may cause any graffiti on the premises to be abated, and may employ the necessary labor to perform the task.

(2) If the city manager or the city manager's designee abates graffiti pursuant to this section, they shall completely abate the graffiti in a manner that renders it inconspicuous.

(3) The city manager or the city manager's designee shall report all expenses involved in the abatement of such graffiti to council.

(Ord. No. 163-2024, § 1, eff. May 15, 2024)

Sec. 751-5. Cost as Lien on the Land and Personal Judgment Against Owners and Persons in Control.

When graffiti has been abated in accordance with Section 751-4, the cost thereof shall be a lien on such premises from the date such expenses are reported to council in accordance with Section 751-5. The clerk of council shall certify such cost to the county auditor to be placed upon the tax list and collected as other taxes are collected and returned to the city of Cincinnati in accordance with R.C. Section 715.26, 715.261, or 731.54. The cost of removal may also be recovered by means of a judgment against the owner or person in control of the property.

(Ord. No. 163-2024, § 1, eff. May 15, 2024)

Sec. 751-6. Rules and Regulations.

The city manager or the city manager's designee is authorized to promulgate rules and regulations to effectuate the provisions and purposes of this chapter, including without limitation, the following: the implementation of a program enabling abatement by an authorized designee of the city, including determining the cost of authorized designee time and of abatement; and guidelines for color matching paint used in graffiti abatement with existing surfaces.

(Ord. No. 163-2024, § 1, eff. May 15, 2024)

Chapter 753

PROSTITUTION-EXCLUSION ZONES (REPEALED)*

*__Editor's note—__Repealed by Ord. No. 178-2007, eff. June 9, 2007.

Chapter 755

DRUG-EXCLUSION ZONES (REPEALED)*

*__Editor's note—__Repealed by Ord. No. 178-2007, eff. June 9, 2007.

Chapter 757

CITY PARK-EXCLUSION ZONES (REPEALED)*

*__Editor's note—__Repealed by Ord. No. 178-2007, eff. June 9, 2007.

Chapter 758

JUNK MOTOR VEHICLES

Sec. 758-1. Definitions.
Sec. 758-2. Junk Motor Vehicle.
Sec. 758-3. Public Nuisance.
Sec. 758-4. Notice.
Sec. 758-5. Appeal.
Sec. 758-6. Conclusive Presumption of Junk Motor Vehicle as a Public Nuisance.
Sec. 758-7. Removal and Disposal of Junk Motor Vehicles.
Sec. 758-8. Removal of Abandoned Automobiles and Automobile Wreckage.

Sec. 758-1. Definitions.

For the purpose of this chapter the following terms, phrases, words and their derivations shall have the meaning given herein. When not inconsistent with the context, words used in the present tense include the future, words used in the plural number include the singular number, and words used in the singular number include the plural number. The word "shall" is always mandatory and not merely directory.
(Ordained by Ord. No. 129-2003, § 1, eff. April 30, 2003)

Sec. 758-2. Junk Motor Vehicle.

"*Junk Motor Vehicle*" shall mean:

(1) A vehicle that has been left on private property for more than forty-eight (48) hours or left on a public street, public way, or other property open to the public for purposes of vehicular travel or parking, or upon or within the right-of-way of any road or highway, for more than forty-eight (48) hours; and

(2) A vehicle that is three (3) years old, or older; and

(3) A vehicle that is extensively damaged, including but not limited to any combination of the following types of damage: deflated, wrecked, or missing tires or rims; missing or wrecked body parts; broken or missing headlights, taillights or brake lights; broken, cracked or missing windows or windshields; missing all or part of the motor or transmission; missing or invalid license plate(s); or a vehicle that is otherwise apparently inoperable; and

(4) A vehicle that has a fair market value of one thousand five hundred dollars ($1,500.00) or less.

However, a "Junk Motor Vehicle" shall not mean a vehicle stored on the premises of an existing state-licensed motor vehicle storage facility or a motor vehicle salvage facility licensed under Chapter 846 of the Cincinnati Municipal Code.
(Ordained by Ord. No. 129-2003, § 1, eff. April 30, 2003)

Sec. 758-3. Public Nuisance.

The location or presence of any Junk Motor Vehicle on any public or private land or property, or public or private street, alley, or way within the City of Cincinnati is hereby deemed a public nuisance and is subject to summary abatement as provided in this chapter or any other ordinance or law of the City of Cincinnati or as provided under any relevant portion of the Ohio Revised Code.

No person shall permit a Junk Motor Vehicle to remain in the open on any public or private property within the City of Cincinnati after receipt of a notice to remove such vehicle due to its nature as a public nuisance.
(Ordained by Ord. No. 129-2003, § 1, eff. April 30, 2003)

Sec. 758-4. Notice.

Inspectors or authorized personnel from the Department of Health, the Department of Buildings and Inspections and the Department of Public Services and sworn members of the Police Department are hereby authorized to issue such written notice and order such Junk Motor Vehicles to be removed.

Such notice shall be provided in accordance with the "Junk Vehicle Public Nuisance" Procedure and Hearing Policy. In addition to the notice requirements contained in the Procedure and Hearing Policy, the notice shall further describe the vehicle to be removed with reasonable specificity, shall state that it constitutes an abandoned Junk Motor Vehicle and a public nuisance, shall state that the owner has 168 hours in which

to either remove the vehicle or give written notice of a request for a hearing appealing the order.

The notice shall set forth the owner's right to present any and all evidence and arguments why the action should not be enforced.

No proposed order shall become effective until the expiration of 168 hours after the receipt of the notice by the owner in the event no appeal is requested, or until after consideration of the appeal and approval or modification of the proposed order in the event an appeal is timely requested. Notice of the approved or modified order shall be given by certified mail to the owner.
(Ordained by Ord. No. 129-2003, § 1, eff. April 30, 2003)

Sec. 758-5. Appeal.

If any recipient of a notice to remove a Junk Motor Vehicle would like to appeal the order, a written notice of appeal must be filed with the Department of Health prior to the expiration of the 168 hour time limit from receipt of such notice.

An appeal can only be filed by:

(1) Appearing in person at the Department of Health and completing a written appeal; or

(2) Sending a written appeal via facsimile, e-mail or traditional mail methods, as long as received by the Department of Health prior to the expiration of the 168 hour time limit.

(Ordained by Ord. No. 129-2003, § 1, eff. April 30, 2003)

Sec. 758-6. Conclusive Presumption of Junk Motor Vehicle as a Public Nuisance.

If any recipient of a notice to remove a Junk Motor Vehicle fails to abate the nuisance or fails to appeal the notice in writing to the Office of Administrative Hearings within 168 hours after its receipt, it shall be conclusively presumed to establish the Junk Motor Vehicle as a public nuisance and such vehicle may be removed immediately by the Police Department.
(Ordained by Ord. No. 129-2003, § 1, eff. April 30, 2003)

Sec. 758-7. Removal and Disposal of Junk Motor Vehicles.

The Police Department shall order the Junk Motor Vehicle towed or otherwise removed from the property or place where found, if such owner fails or refuses to remove the motor vehicle within the applicable time period after issuance of notice. Thereafter, such Junk Motor Vehicle shall be treated as abandoned and shall be deemed forfeited, to be disposed of in accordance with this Chapter.

Prior to being removed, the abandoned Junk Motor Vehicle shall be photographed by a representative of the Director of the Department of Health, the Director of the Department of Buildings and Inspections, the Department of Public Services or the Chief of Police. Such person shall also record the make and model of the vehicle, the vehicle identification number when available, and shall detail the damaged or missing parts or equipment to substantiate the value of one thousand five hundred dollars ($1,500.00) or less.

The Police Department shall thereupon tow, remove or cause to be removed such abandoned Junk Motor Vehicle and shall immediately dispose of it to a motor vehicle salvage dealer, as defined in 4738.01 of the Ohio Revised Code, or a scrap metal processing facility, as defined in 4737.05 of the Ohio Revised Code. Any monies accruing from the disposition of an abandoned Junk Motor Vehicle that are in excess of the expenses incurred by the City for towing, removal or

storage of the vehicle shall be credited to a fund of the City of Cincinnati established to allow this program to be self-supporting.
(Ordained by Ord. No. 129-2003, § 1, eff. April 30, 2003)

Sec. 758-8. Removal of Abandoned Automobiles and Automobile Wreckage.

(a) Any automobile that does not meet the definition of junk vehicle or any automobile wreckage abandoned on vacant premises without the consent of the owner of the property shall be removed from the property by the appropriate division or department of the city. Automobiles so abandoned shall be dealt with as in the case of automobiles abandoned on the city streets.

(b) All expenses incurred by the city in removing abandoned automobiles or automobile wreckage from vacant premises pursuant to Section 758-8 shall be chargeable to the person unlawfully depositing such property on vacant premises. The charge shall equal the actual expense plus a 15 percent surcharge to cover supervision and other overhead expenses.
(Ordained by Ord. No. 463-2012, § 5, eff. Oct. 7, 2013)

Chapter 759

USE OF A MOTOR VEHICLE TO FACILITATE A PROSTITUTION OR DRUG RELATED CRIME

Sec. 759-1.	Legislative Findings.
Sec. 759-2.	Use of a Motor Vehicle in Failing to Comply with Order or Signal of a Police Officer.
Sec. 759-3.	Use of a Motor Vehicle for Prostitution or Solicitation Prohibited.
Sec. 759-4.	Use of a Motor Vehicle for the Delivery, Transportation, Purchase or Sale of Illegal Drugs.
Sec. 759-5.	Impoundment of Motor Vehicles Used to Facilitate Officer Evasion, Prostitution or Drug Related Crimes.
Sec. 759-7.	Answer to Notice; Hearings.
Sec. 759-9.	Posting Bond.
Sec. 759-11.	Default.
Sec. 759-13.	Appeal.
Sec. 759-15.	Sales of Impounded Vehicles.

Sec. 759-1. Legislative Findings.

It is hereby found and determined by the council of the City of Cincinnati that persons who use vehicles or permit another to use a vehicle to facilitate the commission or attempted commission of crimes involving evading a police officer, sexual activity for hire or the possession, delivery, transportation, purchase, or sale of illegal drugs pose a significant threat to the safety of citizens and the quality of life in Cincinnati's neighborhoods and are a detriment to the public's health, welfare and safety.

The council also finds and determines that the impoundment of vehicles used in the commission or attempted commission of crimes involving evading a police officer, sexual activity for hire or the possession, delivery, transportation, purchase, or sale of illegal drugs will temporarily remove such vehicles from the streets of the city and reduce the potential for further illicit use. Removal of the resources and instrumentalities of persons who commit or attempt to commit such crimes will have a deterrent effect on this type of criminal behavior, thus contributing to council's efforts to improve citizens' safety and the quality of life in Cincinnati's neighborhoods.

(Ordained by Ord. No. 330-2002, § 1, eff. Oct. 9, 2002; a. Ord. No. 451-2005, § 1, eff. Dec. 22, 2005; a. Ord. No. 059-2010, § 4, eff. April 10, 2010)

Sec. 759-2. Use of a Motor Vehicle in Failing to Comply with Order or Signal of a Police Officer.

No person shall operate or use or permit another to operate or use a motor vehicle to facilitate the commission or attempted commission of a crime involving the failure to comply with the lawful order or signal of a police officer pursuant to Ohio Revised Code § 2921.331. Violation of this section is a Class D Civil Offense as defined by the Cincinnati Municipal Code § 1501-9(b); and a person who violates this section is liable for the civil fine specified in § 1501-99 for a Class D Civil Offense.

(Ordained by Ord. No. 059-2010, § 1, eff. April 10, 2010)

Sec. 759-3. Use of a Motor Vehicle for Prostitution or Solicitation Prohibited.

No person shall operate or use or permit another to operate or use a motor vehicle to facilitate the commission or attempted commission of a crime involving sexual activity for hire pursuant to Ohio Revised Code §§ 2907.21, 2907.22, 2907.23, 2907.24, 2907.241 or 2907.25. Violation of this section is a Class E Civil Offense as defined by Cincinnati Municipal Code § 1501-9(b); and a person who violates this section is liable for the civil fine specified in § 1501-99 for a Class E Civil Offense. If a person has previously been found to have violated this section of the Cincinnati Municipal Code, that person may be charged as a second offender and on being found to have committed a second or subsequent offense is liable for a Class E3 Civil Offense as defined by Cincinnati Municipal Code § 1501-18.

(Ordained by Ord. No. 330-2002, § 1, eff. Oct. 9, 2002; a. Ord. No. 451-2005, § 1, eff. Dec. 22, 2005; Emer. Ord. No. 267-2014, § 1, eff. Sept. 17, 2014)

Sec. 759-4. Use of a Motor Vehicle for the Delivery, Transportation, Purchase or Sale of Illegal Drugs.

No person shall operate or use or permit another to operate or use a motor vehicle to facilitate the commission or attempted commission of a crime involving the possession, delivery, transportation, purchase or sale of illegal drugs pursuant to Ohio Revised Code

§§ 2925.03, 2925.09, 2925.11, 2925.32 or 2925.37, or pursuant to Cincinnati Municipal Code §§ 601-23 or 910-23. Violation of this section is a Class D Civil Offense as defined by Cincinnati Municipal Code § 1501-9(b); and a person who violates this section is liable for the civil fine specified in § 1501-99 for a Class D Civil Offense.
(Ordained by Ord. No. 451-2005, § 1, eff. 12-22-05; Emer. Ord. No. 139-2006, §§ 1, 2, eff. 5-10-06)

Sec. 759-5. Impoundment of Motor Vehicles Used to Facilitate Officer Evasion, Prostitution or Drug Related Crimes.

(a) In addition to the imposition of a civil fine, a police officer may impound and cause to be towed any motor vehicle when the officer has probable cause to believe that the motor vehicle was used to facilitate the commission or attempted commission of a crime involving failure to comply with the order or signal of a police officer pursuant to Ohio Revised Code § 2921.331, sexual activity for hire pursuant to Ohio Revised Code §§ 2907.21, 2907.22, 2907.23 2907.24, 2907.241 or 2907.25, and/or a crime involving the possession, delivery, transportation, purchase or sale of illegal drugs pursuant to §§ 2925.03, 2925.09, 2925.11, 2925.32 or 2925.37, or pursuant to Cincinnati Municipal Code §§ 601-23 or 910-23.

(b) Upon impounding the vehicle, the police officer shall provide by hand delivery to any present owner or person in control of the vehicle notice of the fact of the impoundment, notice of a civil offense and civil fine in accordance with § 1501-13, the location of the city impound lot and the right to post a cash bond pursuant to § 759-9.

(c) If the vehicle owner is unavailable to receive such notice, then the police officer or agent of the city police department shall provide notice to all owner(s) of the vehicle at addresses set forth in the vehicle registration within three business days of the date of impoundment. The notice shall include the fact of the impoundment, notice of a civil offense and civil fine in accordance with § 1501-13, the location of the city impound lot and the right to post a cash bond pursuant to § 759-9.

(d) This section shall not apply and no vehicle shall be impounded or towed pursuant to this section under any of the following circumstances:

(1) A law enforcement agency seizes the vehicle pursuant to Ohio Revised Code § 2933.43.

(2) The vehicle was operating as a common carrier at the time it was subject to impoundment.

(3) The vehicle is a rental vehicle from an automobile rental or leasing agency for a term of no more than thirty consecutive calendar days.

(Ordained by Ord. No. 330-2002, § 1, eff. Oct. 9, 2002; a. Ord. No. 451-2005, § 1, eff. Dec. 22, 2005; Emer. Ord. No. 139-2006, §§ 3, 4, eff. 5-10-06; a. Ord. No. 059-2010, § 6, eff. April 10, 2010)

Sec. 759-7. Answer to Notice; Hearings.

(a) The owner of the impounded vehicle may admit that the commission of the offense by payment of the fine equal to the amount of the fine for the underlying civil offense, plus any and all accumulated towing and storage costs in accordance with § 513-7, and secure the immediate release of the impounded vehicle; or

(b) A person served with notice of a violation of § 759-2, § 759-3 or § 759-4 may answer the charge in accordance with § 1501-15 and may request a hearing before a hearing examiner in accordance with § 1501-17. At the hearing, the city shall have the burden to show by a preponderance of the evidence that

the vehicle was used in violation of § 759-2, § 759-3 or § 759-4. It shall be an affirmative defense to this charge if the vehicle owner is able to establish, by a preponderance of the evidence, that the vehicle was stolen at the time of the commission of the offense. For purposes of this chapter, "stolen" shall mean the trespassory taking and carrying away of the tangible personal property of another with the intent to permanently deprive.

If the hearing examiner finds that the vehicle was subject to impoundment in violation of § 759-2, § 759-3 or § 759-4, then the hearing examiner may enter an order finding the person charged liable to the city for the fine specified in § 1501-99 for the underlying civil offense, plus any and all accumulated towing and storage costs in accordance with § 513-7.

If the hearing examiner finds that the city did not meet its burden of proof as set forth in this section, that one of the exceptions of § 759-5(d) applies, or that the vehicle was stolen at the time it was impounded, the vehicle shall be returned to the owner along with any posted cash bond, costs or fees.
(Ordained by Ord. No. 330-2002, § 1, eff. Oct. 9, 2002; a. Ord. No. 451-2005, § 1, eff. Dec. 22, 2005; Emer. Ord. No. 236-2015, § 1, eff. June 24, 2015)

Sec. 759-9. Posting Bond.

The owner of the impounded vehicle may secure release of the vehicle by posting a cash bond equal to the amount of the fine for the underlying civil offense together with all towing and storage costs in accordance with § 513-7. Upon a finding that the vehicle was subject to impoundment in violation of § 759-2, § 759-3, or § 759-4 or upon an admission of the offense, any amount posted as bond to secure the release of the vehicle will be credited to the amount owed as determined by the hearing examiner in accordance with § 759-7(b).
(Ordained by Ord. No. 330-2002, § 1, eff. Oct. 9, 2002; a. Ord. No. 451-2005, § 1, eff. Dec. 22, 2005; Emer. Ord. No. 236-2015, § 2, eff. June 24, 2015)

Sec. 759-11. Default.

If a person served with notice of a violation of § 759-2, § 759-3 or § 759-4 is deemed to be in default as set forth in § 1501-21, it shall be deemed admitted that the vehicle was subject to impoundment in violation of § 759-2, § 759-3, or § 759-4 and the fine class specified in § 1501-99 shall be deemed delinquent.
(Ordained by Ord. No. 330-2002, § 1, eff. Oct. 9, 2002; a. Ord. No. 451-2005, § 1, eff. Dec. 22, 2005; Emer. Ord. No. 236-2015, § 3, eff. June 24, 2015)

Sec. 759-13. Appeal.

A person served with notice of a violation of § 759-2, § 759-3 or § 759-4 has all of the rights and opportunities for appeals of civil offenses as set forth in §§ 1501-23 through 1501-999.
(Ordained by Ord. No. 330-2002, § 1, eff. Oct. 9, 2002; a. Ord. No. 451-2005, § 1, eff. Dec. 22, 2005; Emer. Ord. No. 236-2015, § 4, eff. June 24, 2015)

Sec. 759-15. Sales of Impounded Vehicles.

Vehicles impounded pursuant to this Chapter shall be subject to sale as set forth in § 513-11, provided that the city may not begin proceedings to sell the vehicle when the city is notified by the owner of the impounded vehicle that the violation of § 759-2, § 759-3 or § 759-4 is under pending appeal.
(Ordained by Ord. No. 330-2002, § 1, eff. Oct. 9, 2002; a. Ord. No. 451-2005, § 1, eff. Dec. 22, 2005; Emer. Ord. No. 236-2015, § 5, eff. June 24, 2015)

Chapter 761

CHRONIC NUISANCE PREMISES

Sec. 761-1. Definitions.
Sec. 761-1-C. Chronic Nuisance.
Sec. 761-1-N. Nuisance or Nuisance Activity.
Sec. 761-1-O. Occupant.
Sec. 761-1-O1. Operator.
Sec. 761-1-O2. Owner.
Sec. 761-1-P. Person Associated With.
Sec. 761-1-P1. Property or Premises.
Sec. 761-1-U. Unit.
Sec. 761-3. Notification That Premises May Be a Chronic Nuisance.
Sec. 761-5. Determination That Premises is a Chronic Nuisance.
Sec. 761-7. Citations For Multiple Nuisance Activities; Criminal And Civil Penalties.
Sec. 761-9. Appeals.
Sec. 761-11. Liens.
Sec. 761-12. Status Reports to City Council.
Sec. 761-13. Rules and Regulations.
Sec. 761-14. Eviction or Retaliation Prohibited.
Sec. 761-15. Severability.

Sec. 761-1. Definitions.

For the purpose of this chapter the words and phrases defined in the sections hereunder shall have the meanings therein respectively ascribed to them, unless a different meaning is clearly indicated by the context.
(Ordained by Ord. No. 296-2006, eff. Nov. 11, 2006)

Sec. 761-1-C. Chronic Nuisance.

"Chronic nuisance" shall mean a premises or property that is in violation of C.M.C. 761-5.
(Ordained by Ord. No. 296-2006, eff. Nov. 11, 2006)

Sec. 761-1-N. Nuisance or Nuisance Activity.

"Nuisance" or "nuisance activity" shall mean any of the following activities, conduct, or behavior whenever engaged in by premises owners, operators, occupants, or persons associated with a premises:

(a) Assault, aggravated assault, or felonious assault as defined in C.M.C. 908-5 or as defined in Ohio Revised Code Sections 2903.11, 2903.12, or 2903.13 or any offense of violence as defined in Ohio Revised Code Section 2901.01;

(b) Menacing, aggravated menacing, or menacing by stalking as defined in C.M.C. 908-3, 908-7, or 908-9 or as defined in Ohio Revised Code Sections 2903.21, 2903.22, or 2903.211;

(c) Inducing panic, making a false alarm, or perpetrating a hoax weapon of mass destruction as defined in Ohio Revised Code Sections 2917.31, 2917.32, and 2917.33;

(d) Disrupting public services as defined in Ohio Revised Code Section 2909.04;

(e) Curfew violation as defined in C.M.C. 911-27;

(f) Attendance at school violation as defined in C.M.C. 910-1;

(g) Disorderly conduct as defined in Ohio Revised Code Section 2917.11;

(h) Discharging firearms in violation of C.M.C. 708-27;

(i) Commission of any drug offense under Chapter 2925 or 3719 of the Ohio Revised Code or loitering with the intention of committing an unlawful drug transaction as defined in C.M.C. 910-21;

(j) Compelling or promoting prostitution, procuring, soliciting, or loitering to engage in solicitation, or prostitution as defined Ohio Revised Code Sections 2907.21 through 2907.25, inclusive;

(k) Public gaming as defined in C.M.C. 906-9 or in Ohio Revised Code Section 2915.04;

(l) Unauthorized possession, sale, or discharge of fireworks as defined in C.M.C. 1213-7 or in Ohio Revised Code Section 3743.65;

(m) Loud noises or excessive sound from a motor vehicle as defined by C.M.C. 909-3 or 909-5; and

(n) Loud, dangerous, or vicious dog as defined in C.M.C. 701-4, 701-5, 701-6, 701-7, or 701-27.

(Ordained by Ord. No. 296-2006, eff. Nov. 11, 2006; a. Ord. No. 328-2011, § 1, eff. Nov. 19, 2011; Ord. No. 388-20013, § 1, eff. Dec. 20, 2013)

Sec. 761-1-O. Occupant.

"Occupant" shall mean the person residing in or having use of a premises. The same person or persons can be owner and occupant.
(Ordained by Ord. No. 296-2006, eff. Nov. 11, 2006)

Sec. 761-1-O1. Operator.

"Operator" shall mean any person, firm, partnership, company, corporation or association, including their employees, agents, or contractors, that controls, operates, or manages a premise(s).
(Ordained by Ord. No. 296-2006, eff. Nov. 11, 2006; Ord. No. 388-2013, § 1, eff. Dec. 20, 2013)

Sec. 761-1-O2. Owner.

"Owner" shall mean any person, partnership, firm, company, association, trust or corporation, who alone or jointly with others, shall be in possession of or have any control of any premises, or is listed as the owner of a premises on the records of the Hamilton County Auditor.
(Ordained by Ord. No. 296-2006, eff. Nov. 11, 2006; Ord. No. 388-2013, § 1, eff. Dec. 20, 2013)

Sec. 761-1-P. Person Associated With.

"Person associated with" shall mean any person who, whenever engaged in a nuisance or nuisance activity, enters, patronizes, visits; attempts to enter, patronize or visit; or waits to enter, patronize, or visit, a premises or person present on a premises, including any officer, director, customer, agent, employee, or independent contractor of a premises owner.
(Ordained by Ord. No. 296-2006, eff. Nov. 11, 2006)

Sec. 761-1-P1. Property or Premises.

"Property" or "premises" shall mean a platted lot or part thereof, or unplatted lot or parcel of land, or plot of land either occupied or unoccupied by any building or structure, equipment, or property of any kind.
(Ordained by Ord. No. 296-2006, eff. Nov. 11, 2006)

Sec. 761-1-U. Unit.

"Unit" shall mean an individual residential dwelling in which the occupant(s) have a right to exclusive possession, including but not limited to an individual apartment within an apartment complex or an individual dwelling within a multi-family home.
(Ordained by Ord. No. 328-2011, § 3, eff. Nov. 19, 2011)

Sec. 761-3. Notification That Premises May Be a Chronic Nuisance.

(a) The city solicitor or his or her designee shall notify a premises owner in writing that the premises is in danger of becoming a chronic nuisance when any of the following circumstances have occurred at the premises:

(1) When three or more nuisance activities have occurred at the premises, where each activity occurs on a separate day during a thirty-day period; or

(2) The commission of a felony drug offense under any provision of Chapter 2925 or 3719 of the Ohio Revised Code has occurred at the premises; or

(3) When, within a one year period, the following number of nuisance activities has occurred at the premises:

(A) Premises with 2 or 3 residential units: 6 nuisance activities

(B) Premises with 4 to 19 residential units: 14 nuisance activities

(C) Premises with 20 to 39 residential units: 18 nuisance activities

(D) Premises with 40 to 119 residential units: 20 nuisance activities

(E) Premises with 120 to 199 residential units: 26 nuisance activities

(F) Premises with over 200 residential units: 30 nuisance activities

(b) The notice provided for in Section 761-3(a) is a lawful order. Each directive contained in the notice is a separate lawful order, and failure to obey any directive is subject to penalties pursuant to Section 761-7 herein.

(c) The notice provided for in Section 761-3(a) shall be deemed properly delivered if sent by first class mail to the address for the owner listed on the records of the Hamilton County Auditor. If the notice is returned as undeliverable, the notice shall be deemed properly delivered if it is either posted on the front door of the premises that is the subject of the notice and order or if it is delivered in person to the owner. The notice shall contain the following information:

(1) The street address or legal description sufficient for identification of the premises;

(2) A factual description of the nuisance activities that have occurred at the premises, including the dates of the nuisance activities;

(3) A statement that the premises owner shall respond to the city solicitor or his or her designee within 10 days of the date of the owner's receipt of the notice with a written plan to abate the nuisance activities;

(4) A statement that the requirement the owner provide a written plan to abate the nuisance is a lawful order, and that failure to provide a written plan could subject the owner to penalties pursuant to Section 761-7; and

(5) A statement that the cost of future enforcement at the premises as a result of nuisance activities shall be billed to the premises owner and could become a lien against the property if not paid.

(Ordained by Ord. No. 296-2006, eff. Nov. 11, 2006; a. Ord. No. 328-2011, § 4, eff. Nov. 19, 2011; Ord. No. 388-2013, § 1, eff. Dec. 20, 2013)

Sec. 761-5. Determination That Premises is a Chronic Nuisance.

(a) Whenever the city solicitor or his or her designee determines that an additional nuisance activity has occurred at a premises for which a notice has been issued pursuant to Section 761-3, and this nuisance activity occurs more than 13 days after the notice has been issued, the city solicitor or his or her designee shall determine that the premises is a chronic nuisance and issue a lawful order that the owner abate the nuisance within 30 days of the owner's receipt of the notice. The city solicitor or his or her designee shall also calculate the cost of enforcement for this and any subsequent nuisance activities, notify the owner that the owner is being billed for the cost of this and any subsequent nuisance activities, and bill the owner for the cost of enforcement. Failure to abate the nuisance shall be deemed a violation of this chapter.

(b) The notice and order provided for in Section 761-5(a) shall be deemed properly delivered if sent by first class mail to the address for the owner listed on the records of the Hamilton County auditor. If the notice and order are returned as undeliverable, the notice and order shall be deemed properly delivered if they are either posted on the front door of the premises that is the subject of the notice and order or if they are delivered in person to the owner. The notice shall contain the following information:

(1) The street address or legal description sufficient for identification of the premises;

(2) A description of the nuisance activity or activities for which the premises owner is being billed, including the dates of the nuisance activity or activities;

(3) An order that the nuisance activity be abated; and

(4) A statement that the premises owner may appeal the determination that the owner's premises is a chronic nuisance or may appeal the amount of the bill as provided in Section 761-9.

(c) A determination that a premises is a chronic nuisance subject to bills for the cost of enforcement pursuant to Section 761-5 and subject to fines or criminal prosecution pursuant to Section 761-7 shall be effective against the owner until the nuisance is abated under the thresholds established in Section 761-3(a).

(Ordained by Ord. No. 296-2006, eff. Nov. 11, 2006; a. Ord. No. 328-2011, § 6, eff. Nov. 19, 2011; Ord. No. 388-2013, § 1, eff. Dec. 20, 2013)

Sec. 761-7. Citations For Multiple Nuisance Activities; Criminal And Civil Penalties.

(a) Whoever violates this chapter or fails to obey any lawful order issued by the city solicitor or his or her designee to abate a chronic nuisance within 30 days or to provide a written plan to abate the nuisance activities within 10 days, is guilty of a misdemeanor of the fourth degree on the first offense and guilty of a misdemeanor of the third degree on the second and subsequent offense. Each day's continuation of a violation or failure to comply is a separate offense.

(b) As an alternative to criminal prosecution, the city solicitor or his or her designee may cite a person who violates any provision of this chapter or fails to obey any order to abate a chronic nuisance within 30 days or to provide a written plan to abate the nuisance activities within 10 days.

(1) Citations for nuisance activities shall be imposed based on the number of bills for enforcement sent to a premises owner for a specific premise(s) within a two-year period beginning with the date of the nuisance activity that is the subject of the first bill for enforcement sent to the premises owner for that specific premises.

(2) Whenever a premises owner has been billed on three or more separate dates within a two-year period beginning with the date of the nuisance activity that is the subject of the first bill for enforcement sent to the premises owner for that specific premises, the police chief or his or her designee shall issue a citation to the premises owner as follows:

(A) For the fourth bill within a two-year period, a citation of $500.00 shall be imposed;

(B) For the fifth bill within a two-year period, a citation of $1,000.00 shall be imposed;

(C) For the sixth bill within a two-year period, a citation of $1,500.00 shall be imposed;

(D) For the seventh bill within a two-year period, a citation of $5,000.00 shall be imposed;

(E) For each bill after the seventh bill within a two-year period, a citation of $10,000 shall be imposed.

(c) With regard to any premises or unit where a violation occurs that constitutes a nuisance activity, that premises or unit shall be a public nuisance subject to abatement pursuant to Ohio Revised Code Chapter 3767 including, but not limited to, a one year closure of the premises or unit where the nuisance activity occurred.

(d) Notwithstanding the requirements of this chapter, the city solicitor is authorized to file suit under state and local law to abate nuisances existing at property or premises, including seeking injunctive relief.

(e) Notwithstanding subsections (a) and (b) or Section 761-5(a), no criminal sanctions, civil citations or bills shall be issued under this Chapter if the owner submits a written plan to abate the nuisance activities pursuant to Section 761-3(c) but the premises shall remain subject to abatement under Ohio Revised Code Chapter 3767.
(Ordained by Ord. No. 296-2006, eff. Nov. 11, 2006; a. Ord. No. 328-2011, § 8, eff. Nov. 19, 2011; Ord. No. 388-2013, § 1, eff. Dec. 20, 2013)

Sec. 761-9. Appeals.

(a) A premises owner may appeal the determination of the city solicitor or his or her designee pursuant to Section 761-5(a) that a premises is a chronic nuisance, the amount of the bill for enforcement related to nuisance activities at the premises pursuant to Section 761-5(b), or a civil citation issued pursuant to Section 761-7(b) within 30 days from the date of the notification from the city solicitor or his or her designee that the premises is a chronic nuisance or within 30 days from the date the bill or civil citation is issued.

(b) Any appeal filed by a owner or operator must request in writing that an administrative hearing be conducted by a hearing examiner with the Office of Administrative Hearings. The hearing examiner will issue a written determination on any appeal brought pursuant to Section 761-9.
(Ordained by Ord. No. 296-2006, eff. Nov. 11, 2006; Ord. No. 388-2013, § 1, eff. Dec. 20, 2013)

Sec. 761-11. Liens.

Bills for enforcement and citations that are not paid will become liens on the premises to the extent permitted under applicable law.
(Ordained by Ord. No. 296-2006, eff. Nov. 11, 2006)

Sec. 761-12. Status Reports to City Council.

(a) The law department shall give a monthly update on the progress in abating known nuisance properties before the public safety committee or other appropriate committee of council unless that committee determines that such report is not necessary. The monthly update shall be a full accounting of nuisance enforcement actions and progress for properties in the city that have the greatest number of chronic nuisance calls for service and other nuisance problems.

The report shall include the following for the thirty-day period covered by the report:

1. New initial nuisance notification letters sent in the thirty-day period covered by the report;
2. Nuisance abatement plans received that have been deemed acceptable;
3. Subsequent nuisance activities identified pursuant to Section 761-5(a) at any premises included in the report;
4. Change in status letters sent to premises;
5. Billing notices and appeals related to any premises included in the report;
6. Criminal prosecutions, civil citations and appeals related to any premises included in the report;
7. Decisions on any appeals related to any premises included in the report; and
8. Any litigation filed by the city seeking to have a receiver appointed for any premises determined to be a chronic nuisance.

(b) The city solicitor or his or her designee shall submit a copy of the monthly nuisance premises status report to members of the

public safety committee or other appropriate committee at least one week prior to the scheduled committee meeting.
(Ordained by Ord. No. 328-2011, § 10, eff. Nov. 19, 2011)

Sec. 761-13. Rules and Regulations.

The city solicitor or his or her designee shall establish rules, regulations, and policies for the maintenance of information, notification of violations, determination of when calls for service are counted for purposes of this ordinance, appeals of decisions made, training for police officers or other city personnel, and all other relevant issues necessary for implementation of this chapter.
(Ordained by Ord. No. 296-2006, eff. Nov. 11, 2006; a. Ord. No. 328-2011, § 11, eff. Nov. 19, 2011)

Sec. 761-14. Eviction or Retaliation Prohibited.

(a) It shall be unlawful for a landlord to terminate the lease agreement or periodic tenancy of any tenant without good cause or otherwise retaliate against any tenant because that tenant complained to the police or other city official or employee about nuisance or criminal activities on the landlord's premises or made calls for service to the police related to nuisance or criminal activities on the landlord's premises. It shall be unlawful for a landlord or any person acting as an agent for the landlord to intimidate or actively discourage a tenant and/or persons associated with a tenant from calling the police to report nuisance activity associated with a property. It shall be presumed that any attempt to increase charges, reduce services, or to otherwise harass or retaliate against the tenant during the 12-month period following receipt of the complaint by the chief of police constitutes unlawful retaliation under this section.

Such presumption shall be rebutted by the preponderance of evidence that the actions taken by the landlord were based upon good cause. "Good cause" as used in this subsection means that a landlord must show good cause for his or her actions, other than one related to or caused by the operation of this section. Notwithstanding the foregoing, a tenant's lease agreement or periodic tenancy may be terminated for a failure to pay rent; committing nuisance activity as defined in Section 761-1-N; committing waste upon the premises; violating the terms and conditions of the lease agreement or periodic tenancy; or as otherwise provided in O.R.C. 5321. A landlord's failure to renew a lease agreement or periodic tenancy upon expiration of such lease agreement or periodic tenancy shall not be deemed a violation of this subsection.

(b) Penalty. A person who violates § 761-14(a) commits a Class D Civil Offense as defined by the Cincinnati Municipal Code § 1501-9, and is liable for the civil fine specified in § 1501-99 for a Class D Civil Offense.
(Ordained by Ord. No. 328-2011, § 13, eff. Nov. 19, 2011)

Sec. 761-15. Severability.

The provisions of any part of this Chapter are severable. If any provision or subsection hereof or the application thereof to any person or circumstances is held invalid, the other provisions, subsection, and applications of such ordinance to other persons or circumstances shall not be affected thereby. It is declared to be the intent of this section that the same would have been adopted had such invalid provisions, if any, not been included herein.
(Ordained by Ord. No. 328-2011, § 14, eff. Nov. 19, 2011)

Chapter 763

RESIDENCY PROHIBITIONS AGAINST SEXUAL OFFENDERS

Sec. 763-1.	Legislative Findings.
Sec. 763-3.	Definitions.
Sec. 763-5.	Prohibition Against Sexual Offenders Residing Near Schools, State-Licensed Childcare Centers, YMCA's or YWCA's, Boys & Girls Clubs of Greater Cincinnati, or any Public Recreational Center or Public Swimming Pool Owned or Operated by the City of Cincinnati or its Boards or Commissions.
Sec. 763-99.	Municipal Right of Action Against Violator.

Sec. 763-1. Legislative Findings.

The Council of the City of Cincinnati hereby determines and declares that it recognizes and finds that sexual offenders who commit sexually oriented offenses or child-victim offenses, as defined in Chapter 2950 of the Ohio Revised Code, "Sex Offenders", pose a risk of engaging in further sexually abusive behavior even after being released from imprisonment, a prison term, or other confinement or detention, and that protection of the members of the public from sexual offenders who commit sexually oriented offenses or child-victim offenses is a paramount governmental interest.
(Ordained by Ord. No. 0005-2007, eff. 3-11-2007)

Sec. 763-3. Definitions.

Unless specifically defined in this chapter, and unless the context clearly requires otherwise, any terms contained herein shall have the same meaning as that term has in Ohio Revised Code Chapter 2950, "Sex Offenders":

(A) "Sexual offender" means any person who has been convicted of, is convicted of, has pleaded guilty to, or pleads guilty to either (1) a sexually oriented offense that is not a registration-exempt sexually oriented offense under Ohio law, or (2) a child-victim oriented offense; and whose right to establish a residence or occupy a residential premises in the State of Ohio is subject to the prohibitions contained in Ohio Revised Code Section 2950.031, "Prohibition against residing near school premises; right of action against violator."

(B) "Sexually oriented offense" has the same meaning as in Ohio Revised Code Section 2950.01(D).

(C) "Child-victim oriented offense" has the same meaning as Ohio Revised Code Section 2950.01(S)(1), (2).

(D) "Registration-exempt sexually oriented offense" has the same meaning as Ohio Revised Code Section 2950.01(Q)(1), (2).

(E) "Residential premises" has the same meaning as Ohio Revised Code Section 2950.01(W).

(F) "State-licensed day care center" has the same meaning as Ohio Revised Code Section 5104.01(L), "child day care center".

(G) "Boys & Girls Clubs of Greater Cincinnati" means club facilities operated by the organization known as the Boys & Girls Clubs of Greater Cincinnati.

(H) "Y.M.C.A." means recreational facilities owned and operated by the Young Men's Christian Association Corporation.

(I) "Y.W.C.A." means recreational facilities owned and operated by the Young Women's Christian Association Corporation.

(J) "Public recreational centers or public swimming pools owned or operated by the City of Cincinnati or any of its boards or commissions" means any such public facilities owned or operated by the City of Cincinnati, the Cincinnati Park Board or the Cincinnati Recreation Commission.

(K) "School" or "school premises" has the same meaning as Ohio Revised Code Section 2950.01(R).

(Ordained by Ord. No. 0005-2007, eff. 3-11-2007; Emer. Ord. No. 0086-2007, § 1, eff. Feb. 28, 2007)

Sec. 763-5. Prohibition Against Sexual Offenders Residing Near Schools, State-Licensed Childcare Centers, YMCA's or YWCA's, Boys & Girls Clubs of Greater Cincinnati, or any Public Recreational Center or Public Swimming Pool Owned or Operated by the City of Cincinnati or its Boards or Commissions.

Unless otherwise authorized by law, no sexual offender shall occupy a residential premises within one thousand feet of any school premises, state-licensed day care center, Y.M.C.A. or Y.W.C.A. facilities, Boys and Girls Clubs of Greater Cincinnati, or any public recreational center or public swimming pool owned or operated by the City of Cincinnati or its boards or commissions.
(Ordained by Ord. No. 0005-2007, eff. 3-11-2007)

Sec. 763-99. Municipal Right of Action Against Violator.

If a sexual offender to whom Section 763-5 applies violates Section 763-5 of this chapter by occupying a residential premises within one thousand feet of any school premises, state-licensed day care center, Y.M.C.A. or Y.W.C.A. facilities, Boys and Girls Clubs of Greater Cincinnati, or any public recreational center or public swimming pool owned or operated by the City of Cincinnati or its boards or commissions, the City of Cincinnati shall have a cause of action for injunctive relief against the person, to be pursued by action of the City Solicitor, to remedy any such violation.
(Ordained by Ord. No. 0005-2007, eff. 3-11-2007)

Editor's note—Section 2 of Ord. No. 0005-2007 provided that any sexual offender who has, prior to the effective date of this section, established a residential premises within a prohibited area, per the terms of this section, shall be exempted from the operation of this provision, until such time that he or she changes the location of his or her residential premises, at which time he or she shall be subject to all the terms and prohibitions contained in this section.

Chapter 765

SPECIAL EVENTS*

Sec. 765-1. Legislative Findings.
Sec. 765-3. Definitions.
Sec. 765-5. Special Event Permit Application.
Sec. 765-6. Special Event Application Fees.
Sec. 765-7. Application Process.
Sec. 765-9. Approval of an Application.
Sec. 765-11. Required Terms and Conditions.
Sec. 765-13. Denial of an Application.
Sec. 765-15. Revocation of a Special Event Permit.
Sec. 765-17. Appeals.
Sec. 765-19. Limitations to Signs and Poles at Special Events.
Sec. 765-99. Penalties.

*__Editor's note—__Ord. No. 334-2017, § 1, adopted December 6, 2017, renamed ch. 765 from "special event permits" to "special events."

Sec. 765-1. Legislative Findings.

The council of the city of Cincinnati recognizes that special events are essential for a vibrant community and provide a distinct benefit to the local culture and economy.

The purpose of this chapter is to create a uniform and fair process for the safe and orderly implementation of special events which utilize city infrastructure, assets, and personnel. This chapter balances the needs of special events while protecting the public health, safety, and welfare.
(Ordained by Ord. No. 449-2012, § 1, eff. Dec. 28, 2012)

Sec. 765-3. Definitions.

For the purpose of this chapter, the words and phrases defined in the sections below shall have the meanings therein respectively ascribed to them, without limiting the generalities of the words, unless a different meaning is clearly indicated by the context.

(a) "Special event" shall mean a planned temporary aggregation of attractions, including a parade, march, or procession, public entertainment, food and beverage service facilities, sales of souvenirs or other merchandise, or similar attractions, that is (i) conducted on the public right-of-way or (ii) conducted primarily outdoors on property open to the public other than the public right-of-way and which includes one or more of the following conditions:

(1) The sale of liquor, wine, or beer;

(2) Expected attendance of 3,000 or more people; or

(3) Requires special city services, including, but not limited to, any of the following: street closures; provisions of barricades, garbage cans, stages, or special parking restriction signs; special electrical services; or special police protection.

"Special event" does not include a parade for which a permit is required under Cincinnati Municipal Code ("CMC") Chapter 510, "Assemblages and Parades," or a neighborhood block party for which a permit is required under CMC section 506-91, "Street Fetes."

"Special event" does not include any event authorized by ordinance which begins on or before January 1, 2013.

(b) "City manager" shall mean the city manager or his or her designee.

(c) "Chief of police" shall mean the chief of police or his or her designee.

(d) "Sponsor of the event" or "sponsor" means the entity that pays a substantial portion of the costs involved in staging the event or receives a substantial portion of the financial proceeds.

(e) "Historical event" shall mean an annually recurring special event which celebrates the culture, history, and traditions of Cincinnati and shall refer to the following list of events (which typically occur on or near the date noted):

(1) Taste of Cincinnati - Memorial Day weekend;

(2) Oktoberfest - third weekend in September;

(3) Riverfest - Labor Day weekend;

(4) Flying Pig Marathon - first weekend in May;

(5) Heart Mini-Marathon - middle of March;

(6) Findlay Market Opening Day Parade - the opening day baseball game;

(7) St. Patrick's Day Parade - March 17th or the weekend before or after;

(8) Black Family Reunion - third weekend in August;

(9) Juneteenth - June 19th or the weekend before or after;

(10) Cincinnati Pride Parade - fourth weekend in June;

(11) Cincinnati Music Festival - third or fourth weekend in July;

(12) Festival513 - third or fourth weekend in July.

In the event of a conflict with another special event, a historical event takes precedence.

(f) "Recurring special event" shall mean a special event that takes place during more than one non-consecutive calendar days but that is hosted by the same sponsors, at the same location, for the same purpose, with the same event name, for the same or similar hours of operation or activity. A recurring special event takes place for multiple, separate periods of time throughout a portion of the calendar year but remains substantially the same event.

(g) "Neighborhood organizations" shall mean City of Cincinnati-recognized Community Councils, Neighborhood Business Associations, and Community Development Corporations.

(Ordained by Ord. No. 449-2012, § 1, eff. Dec. 28, 2012; a. Ord. No. 328-2016, § 1, eff. Nov. 19, 2016; a. Ord. No. 343-2016, § 1, eff. Dec. 2, 2016; a. 0120-2019, §§ 2, 3, eff. May 17, 2019; a. Emer. Ord. No. 0102-2022, §§ 1, 2, eff. April 27, 2022; a. Emer. Ord. No. 0016-2024, § 1, 1-10-2024)

Sec. 765-5. Special Event Permit Application.

(a) No person shall conduct a special event unless the sponsor of the event obtains a special event permit from the city manager.

(b) A sponsor must make an application for a special event permit to the chief of police no later than sixty (60) calendar days prior to the date the event is scheduled to begin unless the city manager or chief of police determines that the reasons for not applying sixty (60) calendar days or more before the beginning of the event were beyond the reasonable control of the sponsor.

The special event permit application shall include the following information:

(1) The name, address, and tax identification of the sponsor of the requested special event, and the name, address, and telephone number of an authorized and responsible agent of the sponsor, and any other identifying information that the chief of police may require;

(2) A description of the special event that the sponsor wishes to conduct;

(3) The requested dates, times, and location of the special event, including any requests for street closures, and a site plan;

(4) The estimated attendance for the special event;

(5) Whether food, alcoholic beverages, or merchandise will be sold at the requested special event;

(6) Whether music will be played at the requested special event and, if so, whether such music will be electroni-

cally amplified. If electronically amplified music will be played, the sponsor shall also submit an appropriate plan for the control of sound at the event;

(7) Plans for event security, including the number, hours, and location of deployment of personnel and equipment that will be provided by the sponsor;

(8) A description of other city services, if any, the special event would require;

(9) Proof of insurance and agreement to indemnify and hold harmless as required by CMC §§ 765-11(c) and (d), respectively;

(10) The number of all food vendors; alcoholic beverage vendors; or peddlers or itinerant vendors as defined in CMC Chapter 839 who would be participating in the requested special event;

(11) A proposed sanitation plan, including, but not limited to, the provision of toilets and wash stations required for the event, based on an estimated number of attendees;

(12) Any other information that may be reasonably necessary to determine compliance with the Cincinnati Municipal Code; and

(13) The applicable fee as set forth in CMC § 765-6.

(c) All information provided on the application shall be complete and truthful. If, prior to the event, the sponsor of the event changes any of the information required by CMC § 765-5(b) such that the special event would require additional city services or approval from any city department, the sponsor of the event must submit an amended application to the chief of police in compliance with the time requirements of CMC § 765-5(b).
(Ordained by Ord. No. 449-2012, § 1, eff. Dec. 28, 2012; a. Ord. No. 116-2014, § 12, eff. July 1, 2014)

Sec. 765-6. Special Event Application Fees.

No person shall conduct a special event unless the sponsor of the event pays a non-refundable application fee to the chief of police. Recurring special events shall also be subject to a non-refundable logistics fee.

(a) *Application Fees.*

(1) For a special event with expected or past attendance that is less than one thousand (1,000) people, the sponsor of the event shall pay one non-refundable application fee in the amount of Two-Hundred Fifty Dollars ($250.00).

(2) For any other special event, the sponsor of the event shall pay one non-refundable application fee in the amount of Five Hundred Dollars ($500.00).

(3) For any special event sponsored by a neighborhood organization, regardless of expected or past attendance, the sponsor of the event shall pay a non-refundable application fee in the amount of Fifty Dollars ($50.00).

(4) For recurring special events, applicants shall pay a single application fee, which shall be valid for six (6) months. If the recurring special event recurs for more than six (6) calendar months, a new application fee will be required.

(b) *Logistics Fees.* In addition to the non-refundable application fees set forth

in Section (a), the sponsor of the event shall pay a non-refundable logistics fee of $50 for each subsequent, non-consecutive date on which the special event recurs.

(Ordained by Ord. No. 116-2014, § 14, eff. July 1, 2014; a. Ord. No. 328-2016, § 1, eff. Nov. 19, 2016; a. 0120-2019, §§ 4, 5, eff. May 17, 2019)

Sec. 765-7. Application Process.

(a) The chief of police shall promptly send copies of all applications for a special event permit to the following departments, which shall review the application for compliance with CMC § 765-9(b):

(1) The city manager;

(2) The fire department;

(3) The department of public services;

(4) The department of transportation and engineering;

(5) The law department; and

(6) In the chief of police's discretion, any other department, board, division, or employee of the city that may need to provide information, resources, or services to the requested special event.

(b) If any of the departments reviewing the application have any information that the proposed special event does not meet the standards set forth in CMC § 765-9(b), the department must submit written objections to the chief of police within thirty (30) calendar days of receiving the application or the chief of police may presume that there are no departmental objections.

(c) Within thirty (30) calendar days of receipt of the application, the chief of police shall review the sponsor's security plan, including provisions made for private security personnel and for handling emergencies, and shall determine whether the sponsor has planned for and provided sufficient personnel and equipment to protect public safety at the event or whether the city will need to provide additional city police and traffic control equipment. The determination of the need for additional city police services shall be based on the expected pedestrian and vehicular traffic and congestion, considering the following factors:

(1) Estimated attendance;

(2) Density of area;

(3) Size of area;

(4) Number of street closures; and

(5) Affected intersections.

If the chief of police determines that the special event will require a detail of police officers, then he or she shall calculate the estimated hourly cost for the personnel required for the event, and shall charge the sponsor for such services; provided that, the charge to the sponsor shall exclude any personnel hours related to any anticipated or actual crowd reaction to the identity of the sponsoring organization.

(d) If the chief of police determines that the special event will require special city services, then the city manager or his or her designee shall calculate the estimated cost for the special city services required for the event, and shall charge the sponsor for such services. For purposes of this chapter, "special city services" shall mean any of the following: a detail of police officers; a detail of fire department or emergency medical personnel; parking meter closures; street closures; provision of barricades, garbage cans, stages, or special parking restriction signs; or special electrical services.

(e) The sponsor shall, at the sponsor's option, either prepay or post a bond to cover the total amount of the required chargeable city services that has been estimated by the chief of police pursuant to subsections (c)

and (d) of this section, prior to issuance of a special event permit. Within thirty (30) calendar days after the end of the event, the chief of police shall calculate the actual city costs owed under this section, obtain such costs from the bond if a bond was provided, remit any overpayment if prepayment was made, and shall provide to the sponsor an itemized statement of such costs and, if applicable, a bill for any unpaid costs.

(f) The city manager shall inform a sponsor for a special event permit whether the application is approved or denied within thirty (30) calendar days after the application and any amendments are received by the chief of police. If the chief of police fails to act within thirty (30) calendar days after the date upon which the application and any amendments were received by the chief of police, the application shall be approved and the permit deemed granted in conformance with the application. This subsection shall not apply to an application submitted less than sixty (60) calendar days prior to the event.

(Ordained by Ord. No. 449-2012, § 1, eff. Dec. 28, 2012; Emer. Ord. No. 058-2013, § 11, eff. March 6, 2013)

Sec. 765-9. Approval of an Application.

Unless otherwise stated on the permit, the issuance of a permit pursuant to this Chapter authorizes the sponsor of the event to conduct a special event notwithstanding the provisions of Chapter 713, Sections 2, 3, 5, 9, 12, 14, 21, 39 and 76 of Chapter 723, Chapter 839, Chapter 845, Chapter 909, Section 91 of Chapter 506, Chapter 1213, and Chapter 321 of the Cincinnati Municipal Code.

(a) Preference among conflicting applications for special event permits shall be given to the application received earliest. However, a historical event shall receive preference regardless of the date of receipt of the application.

(b) The chief of police shall recommend approval of the application, if, after considering any relevant written recommendations or objections of the appropriate city departments, he or she determines that:

(1) Admission to the event is open to the general public;

(2) The proposed special event will not substantially or unnecessarily interfere with traffic in the area;

(3) The proposed special event will not substantially or unnecessarily interfere with any publicly managed infrastructure project;

(4) There are available at the time of the special event a sufficient number of peace officers to police and protect lawful participants in the event;

(5) The concentration of persons or things at the event will not prevent proper fire and police protection or ambulance service;

(6) The event is not being conducted for an unlawful purpose;

(7) The event will not subject the surrounding neighborhood to an unreasonable degree of noise, littering, or parking difficulties in light of the character of the neighborhood;

(8) The event will not conflict with a special event or parade which has been previously scheduled or a historical event;

(9) No permit issued under this section may authorize the operation

of a special event for a period longer than fourteen (14) consecutive calendar days;

(10) If the event will occur on Fountain Square, the sponsor has obtained a permit from the city manager or his or her designee;

(11) If the event will occur in any city park, the sponsor has obtained a permit from the board of park commissioners;

(12) If the event will occur in any city recreation facility or on any city recreation grounds, the sponsor has obtained a permit from the public recreation commission;

(13) The sponsor does not have any outstanding debts related to prior special events;

(14) The special event will not require city services that cannot be reasonably made available;

(15) The sponsor has paid the applicable fee as set forth CMC § 765-6; and

(16) The event will provide a proper sanitation plan, including, but not limited to, the provision of toilets and wash stations required for the event, based on an estimated number of attendees.

(c) The chief of police shall forward the application to the city manager with a recommendation to approve or deny the application. The city manager shall take one of the following actions:

(1) Issue a conditional special event permit pursuant to CMC § 765-9(d) until all necessary licenses are issued, required plans approved, fees paid, and costs prepaid or bonds posted;

(2) Issue a special events permit if all necessary licenses have been issued, required plans approved, fees paid, and costs prepaid or bonds posted;

(3) If the city manager disagrees with the recommendation to approve the application, he may deny the application if necessary to preserve the health, safety, or welfare of the public; or

(4) If the city manager disagrees with the recommendation to deny the application, he may approve the application if he deems it to be appropriate.

(d) No later than thirty (30) calendar days prior to the date the event is scheduled to begin, the sponsor of the event shall submit all applications for any necessary licenses, including food or vendor licenses, to the chief of police. The chief of police shall forward the license applications to all appropriate departments. The departments shall review such license applications and, within ten (10) calendar days of receipt of the license application, either issue such licenses or issue a written denial stating the reasons therefor. If the city manager previously has issued a conditional permit, then within five days after the appropriate licenses have been issued and are received by the chief of police, and all required plans approved, fees paid, and costs prepaid or bonds posted, or sooner if the event will occur sooner and doing so is reasonably practicable, the city manager shall issue the special event permit.

(e) In order to serve any intoxicating liquor or beer, the sponsor of the event or its liquor or beer vendor

must obtain an F or F-2 liquor permit pursuant to Ohio Revised Code §§ 4303.20 or 4303.202.

(Ordained by Ord. No. 449-2012, § 1, eff. Dec. 28, 2012; Emer. Ord. No. 116-2014, § 12, eff. July 1, 2014; a. Ord. No. 328-2016, § 1, eff. Nov. 19, 2016)

Sec. 765-11. Required Terms and Conditions.

As part of a special event permit, the sponsor of the event shall agree in writing and the permit shall contain the following terms and conditions:

(a) The sponsor of the event shall have a representative present at all times during the event who shall be responsible for ensuring compliance with all applicable ordinances and regulations and for accepting all notices of violations and closure orders.

(b) The special event shall not take place unless the sponsor has supplied the city with a certificate of insurance that meets the special-events insurance requirements established by the city manager.

(1) The special-events insurance requirements established by the city manager shall set forth the types and limits of insurance required for special events, including for recurring special events, which shall be the minimum necessary to protect the city and its employees from liability for injury and property damage claims associated with or foreseeably resulting from the sponsor's use of city property and services, taking into account the size and duration of the event, the number of participants involved, and the nature of the property, facilities, and services used. Any requirements that the city manager establishes pursuant to this section, which shall be made available to the public and published on the city's website, shall take effect thirty days after their initial publication.

(2) Each insurance policy required by this subsection shall include a provision to the effect that it shall not be subject to cancellation, reduction in the amounts of its liabilities, or other material changes until notice thereof has been received in writing by the office of risk management and the city manager not less than sixty days prior to such action.

(3) Each sponsor shall maintain the insurance required by this subsection in full force and effect for the duration of the permit period. Failure of the sponsor of the event to maintain such insurance during the periods indicated above shall result in automatic expiration of the permit. For the purposes of this subsection, the permit shall include the time required for construction and removal of all materials and equipment provided for the conduct of the special event until the public way has been cleared and restored as provided in subsection (f).

(4) Each insurance policy required by this subsection shall list the city as an additional insured and shall provide a waiver of subrogation in favor of the city.

(5) The city manager is authorized to waive an insurance requirement upon a written finding that

the event does not present a substantial liability or property damage risk for the city or its employees, or that the minimum insurance requirement would unduly burden the sponsor's expressive activity protected by the United States and Ohio constitutions. To qualify for a waiver, the sponsor must agree to redesign or reschedule the event to mitigate specific risks, hazards, or dangers to public health and safety that the city manager identifies as being reasonably foreseeable consequences of the event.

(c) Except where otherwise prohibited by law, the sponsor of the event shall indemnify and hold harmless the city of Cincinnati, its officials, employees, subcontractors, agents, and assignees from any and all losses, damages, injuries, claims, demands, and expenses arising out of the operation of the special event or the condition, maintenance, and use of public property.

(d) During the presentation of the special event, the sponsor of the event shall at its own cost keep the public way clean and free from paper, debris, or refuse, and upon termination of the permit by lapse of time or otherwise, the sponsor of the event shall remove all materials and equipment and clean the street. If the public way has been damaged, the city shall repair and restore it to the condition it was in prior to the special event and bill the sponsor of the event for the city's actual cost to repair.

(e) Whenever a permit requires the closure of a street, a clear path of not less than twelve feet must be maintained at all times to provide for the passage of emergency vehicles.

(f) The sponsor of the event shall be responsible for ensuring that each vendor participating in the event obtains the proper licenses. In the event that an unlicensed or improperly licensed vendor is found at the event, the sponsor of the event shall be fined pursuant to section 765-99 for each unlicensed or improperly licensed vendor. This shall be in addition to any fines or penalties which may be issued to the individual vendor. The sponsor shall promptly remove the unlicensed or improperly licensed vendor from the event area.

(g) The sponsor of the event shall be responsible for ensuring that no person during the event shall, unless specifically authorized by the Cincinnati Police Department, possess or bring to the event area any poles, sticks, or clubs made of any rigid material or any other instrument, device, or thing that is capable of inflicting serious physical harm, that is designed or specifically adapted for use as a weapon, or that is possessed, carried, or used as a weapon, except to support a sign or banner, provided that such wooden stick is not more than two inches in width or three-quarters of an inch in diameter, one-quarter inch in thickness, and forty inches in length, and where such wooden stick is blunt on both ends.

This subsection shall apply without limitations to any poles, sticks or other devices attached to or otherwise used to support or elevate signs, banners or other displays of any kind not associated with or approved by the city of Cincinnati. This section does

not apply to law enforcement officers or to canes, crutches, or other similar devices used by persons who are visually or physically impaired.

(h) The sponsor of the event shall be responsible for ensuring that no person during the event shall take any animal to the event area, unless such animal is being or will be used by law enforcement officials engaged in the performance of their duties, or unless such animal is used as a guide for a disabled individual or such animal is part of the event and is listed on the application.

(Ordained by Ord. No. 449-2012, § 1, eff. Dec. 28, 2012; a. Ord. No. 116-2014, § 12, eff. July 1, 2014; a. Ord. No. 289-2023, § 1, eff. August 2, 2023)

Sec. 765-13. Denial of an Application.

(a) If the city manager denies the application, he shall provide written notice of his determination stating the specific reasons, facts, and conclusions that are the basis for his denial of the permit. The specific reasons, facts, and conclusions must be supported by one or more factors listed in CMC § 765-9(b). Additionally, any denial shall be consistent with a sponsor's constitutional rights contained in the First, Fifth, and Fourteenth Amendments to the United States Constitution, and Sections Three and Eleven of Article One of the Ohio Constitution.

(b) A sponsor may appeal a denial of an application through the process outlined in CMC § 765-17.

(Ordained by Ord. No. 449-2012, § 1, eff. Dec. 28, 2012)

Sec. 765-15. Revocation of a Special Event Permit.

(a) The city manager may at any time revoke a special event permit if the operation of the event is in violation of this Code, the permit, or any other applicable law, or if such revocation is necessary to preserve the health, safety, or welfare of the public. Written notice of the revocation with the reasons therefor shall be mailed to or served upon the sponsor of the event at the time of revocation. Unless the permit will expire by its own terms before a hearing can be reasonably scheduled, no such revocation will take effect until the sponsor of the event has been given notice and an opportunity to be heard in accordance with rules and regulations issued by the city manager.

When necessary to prevent an immediate threat to the health, safety, or welfare of the public, the city manager shall order the sponsor of the event to cease operation of the special event pending the outcome of the hearing. For any violation of the special event permit or the rules and regulations promulgated under this section which endangers the health or safety of the public, no new special event permits shall be issued to the sponsor of the event for the remainder of the year and for the following calendar year. Additionally, any revocation shall be consistent with a sponsor's constitutional rights contained in the First, Fifth, and Fourteenth Amendments to the United States Constitution, and Sections Three and Eleven of Article One of the Ohio Constitution.

(b) A sponsor may appeal a revocation of a special event permit through the process outlined in CMC § 765-17.

(Ordained by Ord. No. 449-2012, § 1, eff. Dec. 28, 2012)

Sec. 765-17. Appeals.

Any sponsor shall have the right to appeal the denial of an application or the revocation of a special permit to the office of administrative hearings by filing a written notice of appeal with the city manager within five business days of the denial or revocation. The city manager shall transmit the

notice of appeal and all documents related to the permit application to the office of administrative hearings within two business days of the filing of the appeal. The office of administrative hearings shall conduct a hearing and issue a decision in sufficient time to allow the sponsor to conduct the event if the appeal is granted, but in no event shall the hearing be held more than five business days after the office of administrative hearings receives the appeal from the city manager.
(Ordained by Ord. No. 449-2012, § 1, eff. Dec. 28, 2012)

Sec. 765-19. Limitations on Signs and Poles at Special Events.

(a) Signs at special events are subject to the following size limitations, each of which is independently enforceable:

(1) No greater than three (3) feet in height.

(2) No greater than three (3) feet in width.

(3) No greater than nine (9) square feet in surface area.

(b) Sticks, poles, or other rigid objects are prohibited at special events except for wooden sticks used to elevate or support a sign or banner. This prohibition does not apply to canes, crutches, or any other similar device used by persons who are visually or physically impaired or to law enforcement officers or other city employees acting within the scope of their duties. Any wooden stick or pole used to support a sign or banner is subject to the following limitations:

(1) Must be blunt on both ends.

(2) Must not be more than:

(i) If rectangular, two (2) inches by one-quarter (¼) of an inch in width, or

(ii) If round, three-quarters (¾) of an inch in diameter.

(3) Must not be more than forty (40) inches in length.

(c) A special event permit holder may display signs or banners that do not meet the parameters in paragraph (a) of this section that are supported by poles or sticks that do not meet the restrictions in paragraph (b) of this section, but any such official signage or support poles that will not meet the limitations established in this section will require approval from the Cincinnati Police Department's Special Events unit in advance of the event, to ensure that signs are placed in a manner to avoid any safety concerns.
(Ordained by Ord. No. 334-2017, § 1, eff. Dec. 6, 2017)

Sec. 765-99. Penalties.

A violation of any section of this chapter shall constitute a Class B civil offense.

No person, firm, association, or corporation shall violate any provision of a special event permit. Following a warning, whoever violates a provision contained in a special event permit is guilty of a misdemeanor of the fourth degree.
(Ordained by Ord. No. 449-2012, § 1, eff. Dec. 28, 2012)

Chapter 769

SEXUAL ORIENTATION OR GENDER IDENTITY CHANGE EFFORTS

Sec. 769-1. Definitions.
Sec. 769-1-C. Conversion Therapy.
Sec. 769-1-M1. Mental Health Professional.
Sec. 769-1-M2. Minor.
Sec. 769-1-R. Reparative Therapy.
Sec. 769-1-S. Sexual Orientation or Gender Identity Change Efforts.
Sec. 769-3. Sexual Orientation or Gender Identity Change Efforts Prohibited.
Sec. 769-99. Penalties.

Sec. 769-1. Definitions.

For the purpose of this chapter, the terms, words and phrases defined herein shall have the meanings respectively ascribed to them, unless a different meaning is clearly indicated by the context.
(Ordained by Ord. No. 373-2015, § 2, eff. Jan. 9, 2016)

Sec. 769-1-C. Conversion Therapy.

"Conversion therapy" means any treatment that aims to change sexual orientation from homosexual to heterosexual or to convert an individual who identifies with a gender other than the gender assigned at birth to the originally assigned gender.
(Ordained by Ord. No. 373-2015, § 2, eff. Jan. 9, 2016)

Sec. 769-1-M1. Mental Health Professional.

"Mental health professional" means an individual who is licensed, certified or registered under the laws of the State of Ohio to provide, to an individual or a group, mental health services, including but not limited to, the assessment or improvement of mental, emotional, psychiatric, psychological, or psychosocial adjustment or functioning, regardless of whether there is a diagnosable, pre-existing disorder or disease. Mental health professionals include, but are not limited to, physicians specializing in the practice of psychiatry, psychologists, marriage and family therapists, licensed clinical social workers, professional clinical counselors, behavioral clinicians or therapists, nurses, or any other persons offering such mental health services.
(Ordained by Ord. No. 373-2015, § 2, eff. Jan. 9, 2016)

Sec. 769-1-M2. Minor.

"Minor" means a person less than eighteen (18) years of age.
(Ordained by Ord. No. 373-2015, § 2, eff. Jan. 9, 2016)

Sec. 769-1-R. Reparative Therapy.

"Reparative therapy" has the same meaning as conversion therapy, which is defined in Section 769-1-C herein.
(Ordained by Ord. No. 373-2015, § 2, eff. Jan. 9, 2016)

Sec. 769-1-S. Sexual Orientation or Gender Identity Change Efforts.

"Sexual orientation or gender identity change efforts" means conversion therapy, reparative therapy or any other practices by mental health professionals that seek to change an individual's sexual orientation or to change gender identity to a gender other than that with which the individual personally identifies, including efforts to change behaviors or gender expressions, or to eliminate or reduce sexual or romantic attractions or feelings toward individuals of the same sex. "Sexual orientation or gender identity change efforts" does not include psychotherapies that provide acceptance, support, and understanding of clients or the facilitation of clients' coping, social support, and identity exploration and development, including sexual orientation-neutral interventions to prevent or address unlawful conduct or unsafe sexual practices, and psychotherapies that do not seek to change sexual orientation or to change gender identity to a gender other than that with which the individual personally identifies.
(Ordained by Ord. No. 373-2015, § 2, eff. Jan. 9, 2016)

Sec. 769-3. Sexual Orientation or Gender Identity Change Efforts Prohibited.

No mental health professional shall engage, within the geographic boundaries of the City of Cincinnati, in sexual orientation or gender identity change efforts with a minor, without regard to whether the mental health professional is compensated or receives any form of remuneration for his or her services. If the city manager or his designee receives a report of a violation of this provision, the city manager or his designee shall mail to the mental health professional written notice to immediately cease and desist offering to provide or engaging in sexual orientation or gender identity change efforts. The failure of the mental health professional to immediately cease and desist shall subject the mental health professional to the civil fine provided in Section 769.99 of this chapter.
(Ordained by Ord. No. 373-2015, § 2, eff. Jan. 9, 2016)

Sec. 769-99. Penalties.

Violation of Section 769-3 is a Class B1 Civil Offense. Each day in violation constitutes a separate offense.
(Ordained by Ord. No. 373-2015, § 2, eff. Jan. 9, 2016; Emer. Ord. No. 007-2016, § 1, eff. Jan. 8, 2016)

Chapter 770

STREETCAR TRANSIT

Sec. 770-[0]. Purpose and Findings.
Sec. 770-1. General Definitions.
Sec. 770-1-C. Cincinnati Streetcar Platform.
Sec. 770-1-C1. Cincinnati Streetcar Transit System.
Sec. 770-1-D. Designated Streetcar Transit Zone.
Sec. 770-1-E. Enforcement Agent.
Sec. 770-1-F1. Fare Medium.
Sec. 770-1-P. Proof of Fare Payment.
Sec. 770-1-S. Streetcar Facilities.
Sec. 770-1-S1. Streetcar Transit Provider.
Sec. 770-1-S2. Streetcar Vehicle.
Sec. 770-3. Unlawfully Obtaining Streetcar Services.
Sec. 770-5. Unlawful Interference with Streetcar Services.
Sec. 770-7. Notice of Violation; Exclusion from Streetcar System; Misdemeanor.
Sec. 770-9. Enforcement of Civil Violations.
Sec. 770-99. Administrative Penalties.

Sec. 770-[0]. Purpose and Findings.

The purpose of this chapter is to ensure the safety, security, and comfort of the public by prohibiting conduct that unreasonably interferes with the administration and lawful use of the Cincinnati streetcar. The purpose of this chapter is not to punish any person for prior conduct, but, rather, to provide civil and non-punitive regulations city council finds necessary to prevent nuisances and to protect the health, welfare and safety of the public using the Cincinnati streetcar.
(Ordained by Emer. Ord. No. 282-2016, § 2, eff. Aug. 3, 2016)

Editor's note—Emer. Ord. No. 282-2016, § 2, eff. Aug. 3, 2016, enacted two sections numbered § 770-1. At the discretion of the editor, and to preserve the style of the Code, the first instance has been renumbered as § 770-0 as set out herein.

Sec. 770-1. General Definitions.

The following words and phrases used in this chapter 770 shall have the meanings ascribed to them below, regardless of whether or not the words and phrases are capitalized.
(Ordained by Emer. Ord. No. 282-2016, § 2, eff. Aug. 3, 2016)

Sec. 770-1-C. Cincinnati Streetcar Platform.

"Cincinnati streetcar platform" means an area used exclusively for boarding and deboarding, purchasing fare media, or waiting for a Cincinnati streetcar, including the designated loading area, stairways, ramps, and shelters.
(Ordained by Emer. Ord. No. 282-2016, § 2, eff. Aug. 3, 2016)

Sec. 770-1-C1. Cincinnati Streetcar Transit System.

"Cincinnati streetcar transit system" means the streetcar system owned by the city of Cincinnati and operated by the streetcar transit provider, including streetcar platforms, streetcar stations, fare machines, and streetcar vehicles.
(Ordained by Emer. Ord. No. 282-2016, § 2, eff. Aug. 3, 2016)

Sec. 770-1-D. Designated Streetcar Transit Zone.

"Designated streetcar transit zone" means an area designated by the city as a designated streetcar transit zone under section 723-26 of the Cincinnati Municipal Code for exclusive use by persons for the limited purposes of boarding or deboarding a Cincinnati streetcar vehicle, waiting to board a Cincinnati streetcar vehicle, or purchasing a fare.
(Ordained by Emer. Ord. No. 282-2016, § 2, eff. Aug. 3, 2016; a. Emer. Ord. No. 0353-2020, §§ 4, 5, eff. Oct. 14, 2020)

Sec. 770-1-E. Enforcement Agent.

"Enforcement agent" means a person authorized by the city manager to enforce the standards of conduct set forth in this chapter 770, which person may be a city employee or a person designated by the streetcar transit provider with city manager approval.
(Ordained by Emer. Ord. No. 282-2016, § 2, eff. Aug. 3, 2016; a. Emer. Ord. No. 0353-2020, §§ 4, 5, eff. Oct. 14, 2020)

Editor's note—Ord. No. 0353-2020, § 4, adopted October 14, 2020, changed the definition of "fare enforcement agent" to "enforcement agent," therefore, at the discretion of the editor, and to preserve the style of the Code, the definition has been renumbered as § 770-1-E as set out herein.

Sec. 770-1-F1. Fare Medium.

"Fare medium" means a ticket, smart card, pass, coupon, token, transfer, electronic ticket, or other medium sold or distributed by a streetcar transit provider, or its authorized agent, for use in gaining entry to or use of the Cincinnati streetcar transit system facilities or streetcar vehicles.
(Ordained by Emer. Ord. No. 282-2016, § 2, eff. Aug. 3, 2016)

Sec. 770-1-P. Proof of Fare Payment.

"Proof of fare payment" means a fare medium valid for the place or time at, or the manner in, which it is used. If using a reduced-fare medium, proof of fare payment also includes proper identification demonstrating a person's eligibility for the reduced fare. If using a fare medium issued solely for the use of a particular individual, proof of fare payment also includes an identification document bearing a photographic likeness of the individual and demonstrating that the individual is the person to whom the fare medium is issued.
(Ordained by Emer. Ord. No. 282-2016, § 2, eff. Aug. 3, 2016)

Sec. 770-1-S. Streetcar Facilities.

"Streetcar facilities" means any vehicles, equipment, property, structures, stations, improvements, or other facilities, or rights that are owned, leased, held, or used for the purpose of providing Cincinnati streetcar services, whether or not the facility is owned or operated by a public entity.
(Ordained by Emer. Ord. No. 282-2016, § 2, eff. Aug. 3, 2016)

Sec. 770-1-S1. Streetcar Transit Provider.

"Streetcar transit provider" means an entity authorized by the city of Cincinnati to operate the Cincinnati streetcar transit system pursuant to a valid operations and maintenance agreement with the city. For purposes of this chapter 770, the term "streetcar transit provider" includes third-party contractors under contract with the streetcar transit provider to assist in the provision of Cincinnati streetcar operations and maintenance services.
(Ordained by Emer. Ord. No. 282-2016, § 2, eff. Aug. 3, 2016)

Sec. 770-1-S2. Streetcar Vehicle.

"Streetcar vehicle" means a fixed-rail vehicle used for the purpose of providing Cincinnati streetcar services.
(Ordained by Emer. Ord. No. 282-2016, § 2, eff. Aug. 3, 2016)

Sec. 770-3. Unlawfully Obtaining Streetcar Services.

It is prohibited for a person to intentionally obtain or attempt to obtain service for himself, herself, or another person from a streetcar transit provider by doing any of the following:

(a) When a fare is required, it shall be unlawful for any person to occupy, ride in or use, any streetcar vehicle without paying the applicable fare.

(b) When a fare is required, it shall be unlawful for any person to occupy, ride in or use, any streetcar vehicle without carrying proof of fare payment.

(c) When a fare is required, it shall be unlawful for any person occupying a streetcar vehicle, or occupying a streetcar platform upon disembarking a streetcar vehicle, to fail to carry or to fail to exhibit proof of fare payment upon request of an enforcement agent or a police officer.

(d) When no fare is required, it shall be unlawful for any person to occupy, ride in or use, a streetcar vehicle for longer than one complete revolution of the streetcar route.

(e) It shall be unlawful for any person to violate the posted ridership rules of the Cincinnati streetcar transit system.

(f) It shall be unlawful for any person to fail to provide his or her name, address and government issued identification

to an enforcement agent or police officer who requests the information for the purpose of issuance or service of a notice of violation or other enforcement action under this chapter.

(g) It shall be unlawful for any person, required by this chapter to provide his or her name, address or identification, to provide a false name, address or identification.

(h) Where self-service barrier-free fare collection is utilized by a streetcar transit provider, it is a violation of this section to fail to exhibit proof of fare payment upon the request of an enforcement agent when entering, riding upon, or leaving a streetcar vehicle or when in a designated streetcar transit zone.

(i) It shall be unlawful for any person to put or attempt to put any of the following into any fare box, pass reader, ticket vending machine, or other fare collection equipment of a streetcar transit provider:

(1) Papers, articles, instruments, or items other than fare media, credit cards or currency; or

(2) A fare medium that is not valid for the place or time at, or the manner in, which it is used.

(Ordained by Emer. Ord. No. 282-2016, § 2, eff. Aug. 3, 2016; a. Emer. Ord. No. 0353-2020, §§ 4, 5, eff. Oct. 14, 2020)

Sec. 770-5. Unlawful Interference with Streetcar Services.

A person is guilty of a violation of this section by violating any of the following:

(a) No person unless authorized by an authorized representative of the streetcar transit provider shall operate a sound-emitting device aboard any streetcar vehicle or at a streetcar station stop unless the only sound produced by such item is emitted by a personal listening attachment (earphone) and is plainly audible only to the person using the device producing the sound, except that vehicle operators may operate electronic equipment for official business;

(b) No person shall smoke tobacco or any other substance or shall carry any lighted or smoldering substance in any form or utilize any form of an e-cigarette or vaporizing paraphernalia aboard a streetcar vehicle or at a streetcar station stop or within any space where posted signage prohibits smoking;

(c) No person shall bring or carry aboard a streetcar vehicle food or beverages in open containers, nor consume food aboard a streetcar vehicle;

(d) No person shall possess an open container of alcoholic beverage on a streetcar vehicle or at a streetcar station stop, unless authorized by the streetcar transit operator in a manner consistent with applicable law;

(e) No person shall make excessive or unnecessary noise, including boisterous, disruptive and unreasonably loud conduct, within any streetcar vehicle or streetcar station stop that may cause inconvenience or annoyance to the public, Cincinnati streetcar personnel, or enforcement agents or a police officer; or perform vocal or instrumental music, without the prior authorization of the streetcar transit provider;

(f) No person shall enter or remain upon, occupy or use a designated streetcar transit zone for purposes other than boarding or deboarding a streetcar vehicle, waiting for a streetcar vehicle,

or purchasing a fare. A person is in violation of this section only after having occupied a designated streetcar transit zone for a period of time that exceeds that which is necessary to wait for, board or deboard a streetcar vehicle, or to purchase a fare. It shall be prima facie evidence of a violation of this section if a person remains in a designated streetcar transit zone after two streetcar vehicles stop and the person does not board either of the streetcar vehicles;

(g) No person shall interfere with the safe and efficient operation of a streetcar vehicle through conduct which includes, but is not limited to the following:

(1) Extending any portion of his or her body through any door or window of a streetcar vehicle while it is in motion;

(2) Attempting to board or de-board a moving streetcar vehicle;

(3) Lying down on the floor in a streetcar vehicle or across the seats of a streetcar vehicle or station in a manner which inhibits the proper use of seats provided for waiting or boarding riders;

(4) Unreasonably preventing or delaying the closure of an exterior door on a streetcar vehicle;

(5) Striking or hitting a streetcar vehicle, station or shelter; or

(6) Stopping or crossing in front of a streetcar vehicle for the purpose of stopping the vehicle or gaining passage after the vehicle has concluded boarding, or in any manner hanging onto or attaching to, any exterior part of a streetcar vehicle while the vehicle is resting or in motion.

(7) No person shall fail to comply with any lawful order or direction of an enforcement agent or an employee of the Cincinnati streetcar transit system or streetcar transit provider, invested with authority to direct, control or regulate the safe and efficient operations of the streetcar vehicle.

(h) No person shall discard or deposit or leave any rubbish, trash, debris, offensive substance or other solid or liquid waste in or upon a streetcar vehicle, or streetcar station stop, except in receptacles provided for that purpose;

(i) No person shall spit, defecate or urinate in or upon a streetcar vehicle;

(j) No person shall bring or carry aboard a streetcar vehicle or be present at a streetcar station stop with an animal except:

(1) A person accompanied by a service animal or a person training a service animal and that service animal is under the control of the person by leash, harness or other device made for the purpose of controlling the movement of an animal; or

(2) A person transporting an animal if:

(A) The animal is kept and held at all times within a secure container appropriate for carrying the size and type of animal; and

(B) The animal can be transported without risk of injury to the animal and

without risk of harm or inconvenience to other riders or Cincinnati streetcar personnel, and in accordance with all other provisions of this Chapter.

(C) The animal is a trained police dog accompanied by a police officer.

(k) No person shall sleep on a streetcar facility; or

(l) No person shall activate or utilize streetcar vehicle emergency equipment such as door egress devices, intercoms, fire extinguishers or any other emergency equipment when no emergency exists.

(Ordained by Emer. Ord. No. 282-2016, § 2, eff. Aug. 3, 2016; a. Emer. Ord. No. 0353-2020, §§ 4, 5, eff. Oct. 14, 2020)

Sec. 770-7. Notice of Violation; Exclusion from Streetcar System; Misdemeanor.

(a) When an enforcement agent ascertains that a violation of this chapter 770 has occurred, a written notice of civil offense shall be personally served upon the violator in accordance with Section 1501-13, except that the notice of civil offense may be issued by an enforcement agent.

(b) A person found violating this chapter shall be required to deboard the streetcar vehicle and leave any designated streetcar transit zones and shall be prohibited from entering streetcar vehicles or designated streetcar transit zones for 24 hours or such time as prescribed in an exclusion notice issued by the city or by the streetcar transit service provider in accordance with a duly adopted exclusion policy.

A person violating an exclusion requirement under this section 770-7 or who refuses to comply with order under section 770-9(b) shall be guilty of a misdemeanor of the fourth degree and shall be fined not more than $250 or imprisoned not more than 30 days, or both.

(Ordained by Emer. Ord. No. 282-2016, § 2, eff. Aug. 3, 2016; a. Emer. Ord. No. 0353-2020, §§ 4, 5, eff. Oct. 14, 2020)

Sec. 770-9. Enforcement of Civil Violations.

(a) The city manager may authorize designated city employees and the Cincinnati streetcar transit provider or its designated agents to act as enforcement agents with authority to issue administrative citations for violations of sections 770-3 and 770-5. The city manager may revoke his or her authorization(s) under this section at his or her sole discretion.

(b) Any police officer or enforcement agent, including designated persons within the Cincinnati police department or a regional transit authority police officers, may refuse entrance to streetcar facilities, including, without limitation, a streetcar vehicle or designated streetcar transit zone, or require departure from a streetcar vehicle or streetcar station stop of any person:

(1) Who violates any provision of this chapter 770; or

(2) Who has been issued a notice of exclusion under section 770-7.

(Ordained by Emer. Ord. No. 282-2016, § 2, eff. Aug. 3, 2016; a. Emer. Ord. No. 0353-2020, §§ 4, 5, eff. Oct. 14, 2020)

TITLE VIII

BUSINESS REGULATIONS*

Chapter 801

GENERAL PROVISIONS

Sec. 801-1. License Requirements to be Complied With.
Sec. 801-3. Provisions of Chapter Apply to Licenses Generally; Exception.
Sec. 801-5. Application for License.
Sec. 801-7. Issue of License and Record.
Sec. 801-9. Business at a Particular Location.
Sec. 801-11. Assignment or Transfer.
Sec. 801-13. Statement of Sales.
Sec. 801-15. License Period.
Sec. 801-17. Evidence of Liability.
Sec. 801-19. Penalty for Delinquency.
Sec. 801-21. Exhibition of License.
Sec. 801-23. Revocation for Fraudulent Representations.
Sec. 801-25. Revocation for Non-Compliance or Misconduct.
Sec. 801-27. Conviction Does Not Exempt.
Sec. 801-29. Child Support Obligations; Non-compliance.
Sec. 801-99. Penalties.

*__Cross references—__Valet parking, ch. 414; soliciting business on streets and sidewalks, § 723-75; R-B residence business mixed use district regulations, ch. 1423; RF-1 riverfront (recreational-residential-commercial) district use regulations, ch. 1425; I-R institutional-residential district use regulations, ch. 1427; O-1A suburban low-density office district use regulations, ch. 1429; O-1 suburban high-density office district use regulations, ch. 1431; O-2 urban office district use regulations, ch. 1433; B-1 neighborhood business district use regulations, ch. 1435; B-2 community business district use regulations, ch. 1437; B-3 retail wholesale business district use regulations, ch. 1439; B-4 general business district use regulations, ch. 1441; DD downtown development district regulations, ch. 1443; M-1 neighborhood manufacturing, ch. 1445; M-2 intermediate manufacturing district use regulations, ch. 1447; M-3 heavy manufacturing district use regulations, ch. 1449.

Sec. 801-1. License Requirements to be Complied With.

When any section or sections of the Cincinnati Municipal Code require the licensing of any trade, occupation or profession, or the licensing of any place of business, vehicle, machine, or other instrument or device used in connection with the operation of a trade, occupation, business or profession, it shall be unlawful for any person to engage in such trade, occupation, business or profession, unless duly licensed, or to operate or use any such place of business, vehicle, machine, or other instrument or device used in connection with the operation of a trade, occupation, business or profession, unless the operation has been duly licensed.
(C.O. 801-1; reordained as C.M.C. 801-1, eff. Jan. 1, 1972; a. Ord. No. 457-1974, eff. Oct. 30, 1974)

Sec. 801-3. Provisions of Chapter Apply to Licenses Generally; Exception.

All licenses, under whatever chapter of the Cincinnati Municipal Code issued, shall be subject to the provisions of this chapter, except insofar as, in the case of particular licenses, different provisions are specifically made.
(C.O. 801-2; renumbered to C.M.C. 801-3, eff. Jan. 1, 1972)

Sec. 801-5. Application for License.

Except as otherwise specifically provided in particular cases, applications for license shall be made to the city treasurer or other issuing authority on forms to be provided by them. The applicant shall state under oath or affirmation such facts as may be applicable to the license applied for.

The city treasurer or other issuing authority shall have authority to deny a license to an applicant for failure of the applicant to comply with the provisions of the Income Tax Ordinance of the city of Cincinnati, or for being in default on court-ordered child support obligations.

The city treasurer shall charge a $50.00 application fee for the applications for the licenses listed in this section.

(a) Amusement Licenses:
   i. Amusement Parks, as regulated by Chapter 805.
   ii. Ball Grounds, as regulated by Chapter 803.
   iii. Cabarets, as regulated by Chapter 819.
   iv. Circuses, as regulated by Chapter 825.
   v. Skating Rinks, as regulated by Chapter 861.
   vi. Theaters, as regulated by Chapter 865.

(b) Business and Merchandising Licenses:
   i. Antique Dealers, as regulated by Chapter 809.
   ii. Appliance Dealers, as regulated by Chapter 803.
   iii. Rooming Houses, as regulated by Chapter 855.

(c) Police and Protective Licenses:
   i. Motor Vehicle Salvages, as regulated by Chapter 846.
   ii. Class 3 Junk Dealers, as regulated by Chapter 843.
   iii. Class 4 Junk Dealers, as regulated by Chapter 843.
   iv. Dealers in Used Automobiles, as regulated by Chapter 831.
   v. Second-Hand Dealers, as regulated by Chapter 843.

(C.O. 801-4; a. Ord. No. 330-1967, eff. Oct. 7, 1967; a. Ord. No. 193-1968, eff. May 24, 1968;

renumbered to C.M.C. 801-5, eff. Jan. 1, 1972; a. Ord. No. 358-1995, eff. Dec. 1, 1995; Emer. Ord. No. 142-2013, § 14, eff. May 30, 2013; Emer. Ord. No. 208-2013, § 14, eff. June 26, 2013)

Cross reference—See Chapter 311, City Income Tax.

Sec. 801-7. Issue of License and Record.

Upon payment of the required license fee, and compliance with other license provisions, the city treasurer shall issue the license applied for, together with a certificate stating the amount paid. The city treasurer shall sign all licenses issued and shall keep a record of the same in a license cash book and license ledger.

(C.O. 801-6; renumbered to C.M.C. 801-7, eff. Jan. 1, 1972)

Sec. 801-9. Business at a Particular Location.

Where a license is issued for the conduct of a business at a particular or fixed location, the license shall specify the name of the person, firm or corporation to whom it is issued and also the particular place in which the business is to be conducted. Where a person, firm or corporation conducts a licensed business at more than one location, a separate license shall be required for each such location.

(C.O. 801-8; renumbered to C.M.C. 801-9, eff. Jan. 1, 1972)

Sec. 801-11. Assignment or Transfer.

No license shall authorize any person other than the licensee to conduct a business, authorize any business other than is named therein, authorize the conduct of a business at any place other than as therein stated, or grant permission to any act other than that stated in the permit. No assignment of a license or transfer of such license to a different location shall be valid until approved by the city treasurer or other issuing authority in writing endorsed thereon. Such assignment or transfer shall be made only upon the payment of a transfer fee of ten percent of the original cost of the license, with a minimum charge of $10. When an assignment or transfer is approved, the fact shall be immediately recorded upon the property register.

The city treasurer, or other issuing authority shall have authority to deny the assignment of a license to an assignee for failure of the assignee to comply with the provisions of the income tax ordinance of the city of Cincinnati, or for being in default on court-ordered child support obligations.

(C.O. 801-9; a. Ord. No. 330-1967, eff. Oct. 7, 1967; a. Ord. No. 193-1968, eff. May 24, 1968; renumbered to C.M.C. 801-11, eff. Jan. 1, 1972; a. Ord. No. 445-1979, eff. Nov. 18, 1979; a. Ord. No. 358-1995, eff. Dec. 1, 1995)

Sec. 801-13. Statement of Sales.

Where the amount of the license fees to be paid is based upon the amount of sales made or the business transacted, the applicant shall either personally, or by authorized agent, furnish the city treasurer a sworn statement as to total amount of sales made or business transacted by such applicant during the six month period preceding the application. Such statement, if approved, shall form the basis of the license fees payable.

(C.O. 801-11; renumbered to C.M.C. 801-13, eff. Jan. 1, 1972)

Sec. 801-15. License Period.

Except as otherwise specifically provided, all licenses shall be issued for one year periods, expiring either December 31 or June 30. If the license period begins on or prior to June 30, it shall end on December 31; if it begins after June 30, it shall end on the next succeeding June 30.

(C.O. 801-12; renumbered to C.M.C. 801-15, eff. Jan. 1, 1972)

Sec. 801-17. Evidence of Liability.

In the trial of any action for operating without a license or for failure to pay license fees, the fact that a party to such action represented such party as engaged in a trade, business or occupation requiring a license, or as the owner, keeper or manager of a place of business, or of a vehicle, machine or device for which a license is required, or the fact that such party exhibited a sign indicating that such party was engaged in such trade, business or occupation, or such ownership or management, shall be evidence of such party's liability to pay the regular license fees therefor.

(C.O. 801-14; renumbered to C.M.C. 801-17, eff. Jan. 1, 1972)

Sec. 801-19. Penalty for Delinquency.

Except as otherwise specifically provided, all annual and semiannual renewal license fees shall be considered delinquent if not paid within 15 days after the expiration of the preceding license period. For each month or fraction of a month thereafter during which the fees remain delinquent, there shall be added to the regular license amount a penalty of 5 percent, which shall be collected in the same manner as the license fee.

For the purpose of this section, any application for a license made by the same individual or firm, located at the same address, for the same type of license as previously issued shall be considered a renewal application subject to delinquent renewal fees if the previous license expired within one year of the application date.

The addition of delinquency penalties to the license fees provided for shall not operate to exempt a person liable therefor from any fine or other penalty for the violation of any provision of this chapter or of any other section of the Cincinnati Municipal Code governing licensing of trades, businesses, occupations, places of business, vehicles, machines or devices.
(C.O. 801-15 renumbered to C.M.C. 801-19, eff. Jan. 1, 1972; a. Ord. No. 445-1979, eff. Nov. 17, 1979; a. Ord. No. 630-1983, eff. Jan. 28, 1984)

Sec. 801-21. Exhibition of License.

Every person, firm or corporation, licensed to conduct a business at a particular location, shall have the license certificate on display at all times in a conspicuous part of the place of business. The holder of a license certificate shall be required to produce it at any time upon the request of a police officer or other authorized municipal officer. When application is made for a renewal, the expiring or expired certificate shall be exhibited to the city treasurer. Every peddler shall carry the license certificate while engaged in peddling, and upon demand shall exhibit it upon the request of any police officer or other authorized municipal officer.
(C.O. 801-16; renumbered to C.M.C. 801-21, eff. Jan. 1, 1972)

Sec. 801-23. Revocation for Fraudulent Representations.

If, after a license has been issued, it shall be made to appear to the satisfaction of the city treasurer that the license was procured by fraudulent conduct or false statement of a material fact, or that a fact concerning the applicant not disclosed at the time of making application would have constituted just cause for a refusal to issue such license, the city treasurer may revoke the license. Such revocation shall terminate all authority and permission theretofore granted by the license to the licensee.
(C.O. 801-17; renumbered to C.M.C. 801-23, eff. Jan. 1, 1972)

Sec. 801-25. Revocation for Non-Compliance or Misconduct.

If at any time it shall be made to appear to the satisfaction of the city treasurer or other issuing authority that any licensee, or permittee, or agent or employee, with the knowledge of the licensee or permittee, has failed to comply with any of the provisions of the Cincinnati Municipal Code dealing with the operation of the business, occupation, instrumentality or permitted activity for which the license or permit was issued, or if any such licensee or permittee shall be convicted of violating any of such provisions, or shall knowingly permit, tolerate or allow an agent or employee to violate any such provisions, or shall be convicted of any misdemeanor or felony under the laws of the United States, or of the state of Ohio, or the ordinances of the city of Cincinnati, involving moral turpitude, or shall permit, suffer, tolerate or allow any agent or employee to violate any such law or ordinance, the city treasurer or other issuing authority shall revoke the license or permit of such licensee or permittee, and such licensee or permittee shall thereupon cease to have any authority to operate thereunder.

The city treasurer or other issuing authority shall have authority to revoke the license or permit of licensee or permittee for failure of the licensee or permittee to comply with the provisions of the Income Tax Ordinance

of the city of Cincinnati, or for being in default on court-ordered child support obligations.
(C.O. 801-18; a. Ord. No. 330-1967, eff. Oct. 7, 1967; a. Ord. No. 193-1968, eff. May 24, 1968; renumbered to C.M.C. 801-25, eff. Jan. 1, 1972; a. Ord. No. 358-1995, eff. Dec. 1, 1995)

Cross reference—See Chapter 311, City Income Tax.

Sec. 801-27. Conviction Does Not Exempt.

The conviction and punishment of any person for conducting an occupation or business without a license shall not excuse or exempt such person from the payment of any unpaid license fee or fees due or unpaid at the time of such conviction.
(C.O. 801-22; renumbered to C.M.C. 801-27, eff. Jan. 1, 1972)

Sec. 801-29. Child Support Obligations; Non-compliance.

The city treasurer or other issuing authority shall issue no license or any renewal thereof to any person who is, at the time of application or renewal, in default on court-ordered child support obligations.

For the purposes of this section and related sections in Chapter 801 and the Municipal Code, a person will be considered to be in default on court-ordered child support obligations when that person has been declared to be in default by the Child Support Enforcement Agency of Hamilton County.
(Ordained by Ord. No. 358-1995, eff. Dec. 1, 1995)

Sec. 801-99. Penalties.

Any person who shall violate any of the provisions of Title VIII of the Cincinnati Municipal Code except any provision of Chapter 871 of the Cincinnati Municipal Code or who shall violate any other section of this code dealing with the licensing of occupations, businesses or devices, or with the operation of such licensed occupations, businesses or devices, for which no penalty is specifically provided, shall be fined not more than $500 or imprisoned for not more than six months, or both.
(C.O. 801-20; a. Ord. No. 414-1970, eff. Dec. 23, 1970; renumbered to C.M.C. 801-99, eff. Jan. 1, 1972; a. Ord. No. 475-1973; eff. Oct. 17, 1973)

Chapter 802

REGULATION OF PLASTIC AND PAPER BAGS

Sec. 802-1. Definitions.
Sec. 802-1-C. Customer.
Sec. 802-1-E. Exempt Customer.
Sec. 802-1-F. Food Service Establishment.
Sec. 802-1-R. Recycled Content Paper Bag.
Sec. 802-1-R1. Restaurant.
Sec. 802-1-R2. Reusable Bag.
Sec. 802-1-S. Single Use Bag.
Sec. 802-3. Restrictions on Providing Paper and Plastic Bags.
Sec. 802-5. Regulation of Recycled Content Paper Bags and Reusable Bags.
Sec. 802-7. Reporting on Distribution of Bags and Collection of Charges.
Sec. 802-9. Severability.
Sec. 802-11. Effective Date.
Sec. 802-99. Penalties.

Sec. 802-1. Definitions.

For the purposes of this chapter, the words and phrases defined in the sections hereunder shall have the meanings therein respectively ascribed to them, unless a different meaning is clearly indicated by the context.
(Ordained by Ord. No. 300-2020, § 1, eff. Sept. 10, 2020)

Sec. 802-1-C. Customer.

"Customer" shall mean a person obtaining goods, including food, from a food service establishment or restaurant.
(Ordained by Ord. No. 300-2020, § 1, eff. Sept. 10, 2020)

Sec. 802-1-E. Exempt Customer.

"Exempt customer" shall mean any customer participating in the Supplemental Nutrition Assistance Program, 7 U.S.C. ch. 51, the Special Supplemental Food Program for Women, Infants, and Children, 42 U.S.C. ch. 13A, or similar programs that require use of an Electronic Benefits Transfer card issued under 7 U.S.C. § 2016(h). A customer's use of an Electronic Benefits Transfer Card shall be sufficient evidence of participation in a qualifying program.
(Ordained by Ord. No. 300-2020, § 1, eff. Sept. 10, 2020)

Sec. 802-1-F. Food Service Establishment.

"Food service establishment" shall mean a commercial establishment located within the city in a permanent building, operating year-round, that sells foodstuffs, meats, produce, dairy products, or perishable foods to be consumed off the premises where they are sold, and which is not a restaurant. "Food service establishment" does not mean:

(A) Temporary vending establishments; or

(B) Vendors that sell foodstuffs, meats, produce, dairy products, or other perishable items at farmers' markets or similar temporary events.

(Ordained by Ord. No. 300-2020, § 1, eff. Sept. 10, 2020)

Sec. 802-1-R. Recycled Content Paper Bag.

"Recycled content paper bag" shall mean a paper bag that is one hundred percent recyclable and contains a minimum of forty percent post-consumer recycled material, which a food service establishment or restaurant provides to a customer at the point of sale or otherwise for the purpose of carrying goods, including food, out of the food service establishment or restaurant. The word "Recyclable" shall be legibly printed on the outside of the bag, as well as the name and location of the manufacturer and the percentage of post-consumer recycled material used to manufacture the bag.
(Ordained by Ord. No. 300-2020, § 1, eff. Sept. 10, 2020)

Sec. 802-1-R1. Restaurant.

"Restaurant" shall mean a commercial establishment that is primarily engaged in serving prepared food and beverages to customers for consumption, whether on or off its premises, including but not limited to, restaurants, cafeterias, cafes, fast-food outlets, snack bars, food trucks, takeouts, and food delivery businesses.
(Ordained by Ord. No. 300-2020, § 1, eff. Sept. 10, 2020)

Sec. 802-1-R2. Reusable Bag.

"Reusable bag" shall mean a bag specifically designed and manufactured for extensive reuse, which is made of cloth, other machine washable fabric, or durable plastic that is at least 2.25 mils thick, and which a food service establishment or

restaurant provides to a customer at the point of sale or otherwise for the purpose of carrying goods, including food, out of the food service establishment or restaurant.
(Ordained by Ord. No. 300-2020, § 1, eff. Sept. 10, 2020)

Sec. 802-1-S. Single Use Bag.

"Single use bag" shall mean a bag, whether paper or plastic, other than a reusable bag or a recycled content paper bag, which a food service establishment or restaurant provides to a customer at the point of sale or otherwise for the purpose of carrying goods, including food, out of the food service establishment or restaurant. "Single use bag" does not include: individual product packaging that encloses goods at the time such goods are obtained by a food service establishment or restaurant, and in which the goods are intended to be sold to customers; bags provided by pharmacists that contain prescription drugs; bags provided, not at the point of sale, that are used to separate or contain meat, seafood, produce, cheese, unpackaged confectionaries, unpackaged baked goods, or wholesale unpackaged goods such as flour, grains, nuts, cereals, and similar bulk items; bags used to protect newspapers, laundry, dry cleaning, and similar items from becoming wet or soiled; and bags used to contain flowers, plants, or similar items that may cause damage when bagged with other goods.
(Ordained by Ord. No. 300-2020, § 1, eff. Sept. 10, 2020)

Sec. 802-3. Restrictions on Providing Paper and Plastic Bags.

(A) A food service establishment or restaurant shall not provide a single use bag to a customer at the point of sale or otherwise.

(B) A food service establishment or restaurant may provide a recyclable paper bag or a reusable bag to a customer at the point of sale or otherwise only as provided in this chapter.

(C) Customers may use bags of any type that they bring to a food service establishment or restaurant for the purpose of carrying goods, including food, out of the food service establishment or restaurant.
(Ordained by Ord. No. 300-2020, § 1, eff. Sept. 10, 2020)

Sec. 802-5. Regulation of Recycled Content Paper Bags and Reusable Bags.

(A) A food service establishment or restaurant may provide recycled content paper bags and reusable bags to customers as provided in this section.

(B) A food service establishment or restaurant that provides a recycled content paper bag or reusable bag to a customer must collect a minimum charge as provided below:

(1) A food service establishment that provides a recycled content paper bag or reusable bag to a customer must charge the customer a minimum charge of five cents for each such bag provided, except as otherwise provided in this chapter. A food service establishment may charge a customer more than the minimum charge for a recycled content paper bag or a reusable bag.

(2) A restaurant that provides a recycled content paper bag or reusable bag to a customer must charge the customer a minimum charge of five cents for each such bag provided only if the customer purchases food for consumption off the premises where it is sold, or as otherwise provided in this chapter. A restaurant may charge a customer more than the minimum charge for a recycled content paper bag or a reusable bag.

(C) A food service establishment or restaurant shall not rebate or otherwise reimburse a customer any portion of the minimum charge required by this section, or otherwise exempt a customer from the minimum charge, except as otherwise provided in this chapter.

(D) A food service establishment or restaurant must state on the customer's receipt the number of recycled content paper bags or reusable bags provided to the customer and the total amount charged for the bags, including the minimum charge.

(E) A food service establishment or restaurant may provide reusable bags to customers free of all charges as part of infrequent promotions or educational campaigns that shall not exceed a total of ninety days during any consecutive twelve-month period.

(F) The minimum charge requirements of this section do not apply to exempt customers. However, a food service establishment or restaurant that provides recycled content paper bags or reusable bags must state on the exempt customer's receipt the number of recycled content paper bags or reusable bags provided to the exempt customer.

(G) All minimum charges collected by a food service establishment or restaurant from customers under this section shall be retained by the food service establishment or restaurant and must be used only to pay for the following purposes, at the food service establishment's or restaurant's option:

(1) Costs associated with complying with the requirements of this chapter, including the costs of providing recycled content paper bags or reusable bags to customers and exempt customers;

(2) Costs associated with facilitating, promoting, and implementing the collection and recycling of single use bags, recycled content paper bags, and reusable bags; or

(3) Costs associated with the creation or distribution of educational materials, or the conduct of an educational campaign, encouraging the reduction, reuse, or recycling of single use bags, recycled content paper bags, and reusable bags, or related product packaging.

(H) If a food service establishment or restaurant charges customers more than the minimum charge per recycled content paper bag or reusable bag, such amounts in excess of the minimum charge are not subject to the limitations of this section.

(I) The minimum charge requirements of this section do not apply if the City Manager waives the charge during a period of health emergency declared by the State of Ohio.
(Ordained by Ord. No. 300-2020, § 1, eff. Sept. 10, 2020)

Sec. 802-7. Reporting on Distribution of Bags and Collection of Charges.

(A) On a biannual basis to be established by the city manager, a food service establishment or restaurant must report the following information for the previous biannual reporting period to the city manager:

(1) The total number of recycled content paper bags or reusable bags provided to customers;

(2) The total amount of minimum charges collected for providing recycled content paper bags or reusable bags to customers;

(3) The total number of recycled content paper bags or reusable bags provided to exempt customers;

(4) The dates of any promotional period during which a food service establishment or restaurant provided reusable bags to customers free of all charges and the number of such reusable bags provided to customers;

(5) A summary of the food service establishment's or restaurant's use of collected minimum charges for the purposes mandated by this chapter, except those collected minimum charges used to comply with the requirements of this section as provided in Section 802-5(G); and

(6) Any related information determined to be reportable by the city manager.

(B) If a food service establishment or restaurant collects from customers more than the required minimum charge per recycled content paper bag or reusable bag, such amounts in excess of the required minimum charge shall not be reported.

(C) A food service establishment or restaurant must report the information required by this section through a website designated by the city manager according to the forms and procedures specified therein. A responsible agent or officer of the food service establishment or restaurant must affirm that the information provided is accurate and complete.

(D) Each food service establishment or restaurant shall maintain accurate and complete records, including any books, accounts, invoices, or other records, necessary to verify the accuracy and completeness of the reports required by this section. Each food service establishment or restaurant shall keep and preserve all such documents and records, including electronic documents and records, for a period of three years from the end of the reporting period to which such records relate.

(E) Upon the request of the city manager, each food service establishment or restaurant shall make its records available for audit during regular business hours for the city to verify compliance with the provisions of this chapter.

(F) The city manager is authorized to issue and enforce such rules and regulations as are necessary to carry out the provisions of this chapter and may designate enforcement of the provisions of this chapter to an appropriate department or departments. Such rules and regulations, if adopted, shall be posted on the city's website and shall be available through the website portal designated for the reporting required by this section.

(G) All reports required by this section must be submitted no later than thirty days after the end of each reporting period established by the city manager. Any food service establishment or restaurant that fails to submit reports as required by this section shall be subject to the applicable penalties set forth in this chapter, except that a food service establishment or restaurant shall not be subject to the applicable penalties set forth in this chapter if, within thirty days of receipt of notification that a report is defective, it submits a report correcting identified defects.
(Ordained by Ord. No. 300-2020, § 1, eff. Sept. 10, 2020)

Sec. 802-9. Severability.

If any section, subsection, subdivision, paragraph, sentence, clause, or phrase of this chapter or any part thereof is for any reason held to be unconstitutional, such decision shall not affect the validity of the remaining portions of this chapter or any part thereof. City council hereby declares that it would have passed each section, subsection, subdivision, paragraph, sentence, clause, or phrase thereof, irrespective of the

fact that any one or more sections, subsections, subdivisions, paragraphs, sentences, clauses, or phrases be declared unconstitutional.
(Ordained by Ord. No. 300-2020, § 1, eff. Sept. 10, 2020)

Sec. 802-11. Effective Date.

This chapter shall take effect upon the later of January 1, 2021, or the day following the expiration of any legislation passed by the Ohio General Assembly prohibiting local governments from passing or enforcing charges associated with single-use bags if that date is later than January 1, 2021, except that Sections 802-5 and 802-7 shall take effect six months after the effective date of this chapter.
(Ordained by Ord. No. 300-2020, § 1, eff. Sept. 10, 2020)

Sec. 802-99. Penalties.

(A) Whoever violates any provision of section 802-3 of this chapter, or section 802-5 of this chapter except for paragraph (G) of that section, commits a Class A1 Civil Offense as defined by Section 1505-4 of the Cincinnati Municipal Code. A new violation may be charged on each day during which a food service establishment or restaurant is in violation of these sections.

(B) Whoever violates any provision of section 802-5(G) or section 802-7 of this chapter commits a Class C Civil Offense as defined by section 1501-5 of the Cincinnati Municipal Code.
(Ordained by Ord. No. 300-2020, § 1, eff. Sept. 10, 2020)

Chapter 803

SCHEDULE OF MISCELLANEOUS LICENSE FEES

Sec. 803-1. Schedule of Fees.
Sec. 803-1-A. Repealed.
Sec. 803-1-A5. Appliance Dealers.
Sec. 803-1-B. Ball Grounds at Which Admission Fee is Charged.
Sec. 803-1-B3. Billiard and Pool Tables.
Sec. 803-1-C1. Carrousels.
Sec. 803-1-I. Repealed.
Sec. 803-1-I1. Repealed.
Sec. 803-1-I2. Repealed.
Sec. 803-1-M5. Repealed.
Sec. 803-1-P5. Repealed.
Sec. 803-1-R. Repealed.
Sec. 803-1-S2. Repealed.
Sec. 803-1-S6. Repealed.

Sec. 803-1. Schedule of Fees.

License fees shall be paid in accordance with the schedules set forth or referred to in the sections hereunder. Where the section refers to another chapter or section of the Cincinnati Municipal Code, the fees are payable in accordance with the provisions of such chapter or section.
(C.O. 802; renumbered to C.M.C. 803-1, eff. Jan. 1, 1972)

Sec. 803-1-A. Repealed.
(C.O. 802-a1; a. Ord. No. 265-1962, eff. Aug. 4, 1962; a. Ord. No. 90-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 803-1-A, eff. Jan. 1, 1972; a. Ord. No. 327-1975, eff. Sept. 1, 1976; a. Ord. No. 282-1979, eff. Sept. 1, 1979; r. Ord. No. 363-2009, § 6, eff. Jan. 16, 2010)

Sec. 803-1-A5. Appliance Dealers.

Appliance dealers, including any person, firm or corporation selling used appliances taken in trade for similar new appliances sold by such person, firm or corporation, and any person, firm or corporation selling repossessed appliances originally sold or leased by such person, firm or corporation, $75.00 per year for each store or place of business.

Whenever an appliance dealer obtains by any means any used sporting goods, photographic equipment, musical instruments, typewriters, radios, television sets, electrical appliances, business machines of any type, jewelry, power tools of any type, or any other articles upon which has been affixed a serial number, the dealer shall, within 24 hours after receiving such article or articles, report to the division of police a description of such article or articles on a form prescribed by the chief of police together with a full description of the person presenting the article or articles.
(C.O. 802-a4; a. Ord. No. 265-1962, eff. Aug. 4, 1962; a. Ord. No. 90-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 803-1-A5, eff. Jan. 1, 1973; a. Ord. No. 513-1973, eff. Dec. 21, 1973; a. Ord. No. 327-1975, eff. Sept. 1, 1975; a. Ord. No. 282-1979, eff. Sept. 1, 1979; Emer. Ord. 463-2010, § 21, eff. Dec. 30, 2010)

Sec. 803-1-B. Ball Grounds at Which Admission Fee is Charged.

Payments of the following annual license fee shall authorize only the conducting of baseball games on the licensed grounds. Other games or exhibitions shall be charged at the same rate as provided in the various chapters of the Cincinnati Municipal Code for the licensing of such games or exhibitions.

For the first 5,000 seats, $525 per year for each 1,000 seating capacity or fraction thereof.

For the second 5,000 seats, $390 per year for each 1,000 seating capacity or fraction thereof.

All over 10,000 seats, $330 per year for each 1,000 seating capacity or fraction thereof; provided, however, that the maximum fee shall not exceed $10,725 per year.

If no license fee is prescribed elsewhere in the code for such other games or exhibitions, the following fees shall be paid by any person, partnership or corporation using such ball grounds:

For the first 5,000 admissions, $16 per day for each 1,000 admissions or fraction thereof.

For the second 5,000 admissions, $12 per day for each 1,000 admissions or fraction thereof.

For all over 10,000 admissions, $10 per day for each 1,000 admissions or fraction thereof; provided, however, that the maximum fee shall not exceed $322.

All such daily license fees shall be paid to the treasurer of the city of Cincinnati within 24 hours after the close of any such exhibition or use. The treasurer of the city of

Cincinnati shall have the authority to extend such payment period as to residents of Hamilton County, Ohio, whenever, in his opinion, the payment of the license fees within the payment period would result in undue hardship.
(C.O. 802-b1; a. Ord. No. 265-1962, eff. Aug. 4, 1962; a. Ord. No. 90-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 803-1-B, eff. Jan. 1, 1972; a. Ord. No. 327-1975, eff. Sept. 1, 1975; a. Ord. No. 282-1979, eff. Sept. 1, 1979)

Sec. 803-1-B3. Billiard and Pool Tables.

Billiard and pool tables, $175.00 per year for one billiard or pool table; $73.00 per year for each additional billiard or pool table. No license or renewal thereof shall be granted to a person hereunder if such person has been convicted within the preceding 10 years of a felony or convicted within the preceding 5 years of a misdemeanor involving moral turpitude. Billiard and pool tables operated and maintained by non-profit organizations for recreational and social purposes only, whether or not a usage charge is made therefor, provided any such usage charge is for the maintenance or repair of such billiard or pool table, shall not be subject to licensing regulations or fees set forth herein or set forth in Chapter 801 of the Cincinnati Municipal Code.
(C.O. 802-b2; a. Ord. No. 265-1962, eff. Aug.. 4, 1962; a. Ord. No. 90-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 803-1-B3, eff. Jan. 1, 1972; repealed and reordained by Ord. No. 26-1974, eff. Jan. 16, 1974; a. Ord. No. 457-1974, eff. Oct. 10, 1974; a. Ord. No. 327-1975, eff. Sept. 1, 1975; a. Ord. No. 237-1979, eff. June 6, 1979; a. Ord. No. 282-1979, eff. Sept. 1, 1979; Emer. Ord. 463-2010, § 23, eff. Dec. 30, 2010)

Sec. 803-1-C1. Carrousels.

An annual license fee of $115 for each flying american, flying dutchman, merry-go-round, carrousel, miniature railroad train, miniature airplane ride or similar device not located in a licensed amusement park.

Any licensed carrousel operator may apply to the chief of police to exhibit a carrousel or similar device within the city of Cincinnati. Such application shall be submitted not less than seven days prior to the date on which the exhibition of such device is to be given. Upon receipt of such application, the chief of police shall cause an investigation to be made of the premises upon which it is requested that such device be exhibited. If the premises are in a business or industrial use district and the chief of police finds that the exhibition of such device or devices will not interfere with the peace and quiet of the surrounding area, permission shall be granted.
(C.O. 802-c2; a. Ord. No. 401-1958, eff. Dec. 5, 1958; a. Ord. No. 265-1962, eff. Aug. 4, 1962; a. Ord. No. 90-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 803-1-C1, eff. Jan. 1, 1972; a. Ord. No. 327-1975, eff. Sept. 1, 1975; a. Ord. No. 282-1979, eff. Sept. 1, 1979)

Sec. 803-1-I. Repealed.

(Sec. 802-i2; ordained by Ord. No. 456-1964, eff. Nov. 18, 1964; a. Ord. No. 90-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 803-1, eff. Jan. 1, 1972; a. Ord. No. 474-1974, eff. Dec. 14, 1974; r. Ord. No. 332-1981, eff. Aug. 5, 1981)

Sec. 803-1-I1. Repealed.

(C.O. 802-11; a. Ord. No. 265-1962, eff. Aug. 4, 1962; a. Ord. No. 90-1969, eff. Apr 1, 1969; renumbered to C.M.C. 803-1-11, eff. Jan. 1, 1972; a. Ord. No. 327-1975, eff. Sept. 1, 1975; a. Ord. No. 282-1979, eff. Sept. 1, 1979; r. Ord. No. 332-1981, eff. Aug. 5, 1981)

Sec. 803-1-I2. Repealed.

(C.O. 802-12; a. Ord. No. 265-1962, eff. Aug. 4, 1962; renumbered to C.M.C. 803-1-

12, Jan. 1, 1972; a. Ord. No. 327-1975, eff. Sept. 1, 1975; a. Ord. No. 282-1979, eff. Sept. 1, 1979; r. Ord. No. 332-1981, eff. Aug. 5, 1981)

Sec. 803-1-M5. Repealed.

(C.O. 802-m3; a. Ord. No. 265-1962, eff. Aug. 4, 1962; a. Ord. No. 90-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 803-1-m5, eff. Jan. 1, 1972; a. Ord. No. 327-1975, eff. Sept. 1, 1975; a. Ord. No. 282-1979, eff. Sept. 1, 1979; r. Ord. No. 14-1983, eff. Feb. 11, 1983)

Sec. 803-1-P5. Repealed.

(C.O. 802-p7; a. Ord. No. 265-1962, eff. Aug. 4, 1962; a. Ord. No. 90-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 803-1-R, eff. Jan. 1, 1972; a. Ord. No. 327-1975, eff. Sept. 1, 1975; a. Ord. No. 282-1979, eff. Sept. 1, 1979; r. Ord. No. 320-1983, eff. Oct. 1, 1983)

Sec. 803-1-R. Repealed.

(C.O. 802-r1; a. Ord. No. 265-1962, eff. Aug. 4, 1962; a. Ord. No. 90-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 803-1-R, eff. Jan. 1, 1972; a. Ord. No. 327-1975, eff. Sept. 1, 1975; a. Ord. No. 282-1979, eff. Sept. 1, 1979; r. Ord. No. 332-1981, eff. Aug. 1, 1981)

Sec. 803-1-S2. Repealed.

(C.O. 802-s1; a. Ord. No. 265-1962, eff. Aug. 4, 1962; a. Ord. No. 90-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 803-1-S2, eff. Jan. 1, 1972; a. Ord. No. 327-1975, eff. Sept. 1, 1975; a. Ord. No. 282-1979, eff. Sept. 1, 1979; r. Ord. No. 332-1981, eff. Aug. 5, 1981)

Sec. 803-1-S6. Repealed.

(C.O. 802-S3; ordained by Ord. No. 530-1968, eff. Dec. 18, 1969; renumbered to C.M.C. 803-1-S6, eff. Jan. 1, 1972; a. Ord. No. 592-1979, eff. Dec. 27, 1979; r. Ord. No. 423-1983, eff. Oct. 8, 1983)

Chapter 804

PROHIBITED SALARY HISTORY INQUIRY AND USE

Sec. 804-01. Definitions.
Sec. 804-03. Prohibition on inquiring about or use of salary history.
Sec. 804-05. Remedies for non-compliance.
Sec. 804-07. Severability.
Sec. 804-09. Effective date.

Sec. 804-01. Definitions.

(a) For the purposes of this chapter, words and phrases shall have their ordinary meaning unless defined herein.

(b) "Applicant" means any person applying for employment to be performed within the geographic boundaries of the City of Cincinnati, and whose application, in whole or in part, will be solicited, received, processed, or considered in the City of Cincinnati, regardless of whether the applicant is interviewed.

(c) "Employer" means any individual, corporation, limited liability company, firm, partnership, labor organization, voluntary association, joint stock association, and any public corporation, or an agent thereof, located within the City of Cincinnati and using the services of fifteen or more employees for pay within the City of Cincinnati. "Employer" includes job placement and referral agencies and other employment agencies. "Employer" does not include any unit of local, state, or federal government, except that it does include the City of Cincinnati.

(d) "Employment" means any occupation, vocation, job, or work, including but not limited to temporary and seasonal work, part-time work, contracted work, contingent work, work on commission, and work through the services of a temporary or other employment agency for which the applicant is to receive wages or a salary. Employment does not include work as an independent contractor.

(e) "Inquire" means to communicate any question or statement to an applicant, an applicant's current or prior employers, or a current or former employee or agent of the applicant's current or prior employer, in writing or otherwise, for the purpose of obtaining an applicant's salary history, or to conduct a search of publicly available records or reports for the purpose of obtaining an applicant's salary history, but does not include informing the applicant in writing or otherwise about the position's proposed or anticipated salary or salary range.

(f) "Salary history" includes the applicant's current or prior wage, benefits, or other compensation. "Salary history" does not include any objective measure of the applicant's productivity such as revenue, sales, or other production reports.
(Ordained by Ord. No. 0083-2019, § 1, eff. April 12, 2019)

Sec. 804-03. Prohibition on inquiring about or use of salary history.

(a) Except as otherwise provided in this subdivision, it is an unlawful discriminatory practice for an employer or its agent to:

(1) Inquire about the salary history of an applicant for employment; or

(2) Screen job applicants based on their current or prior wages, benefits, other compensation, or salary histories, including requiring that an applicant's prior wages, benefits, other compensation or salary history satisfy minimum or maximum criteria; or

(3) Rely on the salary history of an applicant in deciding whether to offer employment to an applicant, or in determining the salary, benefits, or other compensation for such applicant during the hiring process, including the negotiation of an employment contract; or

(4) Refuse to hire or otherwise disfavor, injure, or retaliate against an applicant for not disclosing his or her salary history to an employer.

(b) Notwithstanding paragraph (a) of this subdivision, an employer or its agent may, without inquiring about salary history, engage

in discussion with the applicant about their expectations with respect to salary, benefits, and other compensation, including but not limited to unvested equity or deferred compensation that an applicant would forfeit or have cancelled by virtue of the applicant's resignation from their current employer.

(c) An employer, upon reasonable request, shall provide the pay scale for a position to an applicant applying for employment, for which the applicant has been provided a conditional offer of employment by the employer.

(d) The prohibitions contained in this section shall not apply to:

(1) Any actions taken by an employer or its agent pursuant to any federal, state, or local law that specifically authorizes the reliance on salary history to determine an employee's compensation;

(2) Applicants for internal transfer or promotion with their current employer;

(3) A voluntary and unprompted disclosure of salary history information by an Applicant;

(4) Any attempt by an employer to verify an applicant's disclosure of non-salary related information or conduct a background check, provided that if such verification or background check discloses the applicant's salary history, such disclosure shall not be relied upon for purposes of determining the salary, benefits, or other compensation of such applicant during the hiring process, including the negotiation of a contract;

(5) Applicants who are re-hired by the employer within five years of the Applicant's most recent date of termination from employment by the Employer, provided that the employer already has past salary history data regarding the Applicant from the previous employment of Applicant;

(6) Employee positions for which salary, benefits, or other compensation are determined pursuant to procedures established by collective bargaining;

(7) Any employer who, within the previous three years and before the action is filed against it, has received an external review and certification, and made the certification publicly available, that the employer's practices do not include salary history in the hiring process; and

(8) Federal, state, and local political subdivisions, other than the City of Cincinnati.

(Ordained by Ord. No. 0083-2019, § 1, eff. April 12, 2019)

Sec. 804-05. Remedies for non-compliance.

If an employer, employment agency, or employee or agent thereof fails to comply with any provision of this chapter, the applicant shall have a private cause of action to enforce the provisions of this chapter against the employer, employment agency, or employee or agent thereof for compensatory damages, reasonable attorney's fees, the costs of the action, and such legal and equitable relief as the court deems just and proper. An action for violation of this Chapter shall be commenced within two years after the cause of action accrued.

(Ordained by Ord. No. 0083-2019, § 1, eff. April 12, 2019)

Sec. 804-07. Severability.

If any provision or section of this chapter or the enforcement of any such provision or section is held to be invalid or unenforceable

by a court of competent jurisdiction, such invalidity or unenforceability shall not affect or render invalid or unenforceable any other provision or section of this chapter. To this end, each of the provisions and sections of this chapter are severable.
(Ordained by Ord. No. 0083-2019, § 1, eff. April 12, 2019)

Sec. 804-09. Effective date.

This Chapter shall take effect 365 days after it becomes law.
(Ordained by Ord. No. 0083-2019, § 1, eff. April 12, 2019)

Chapter 805

AMUSEMENT PARKS

Sec. 805-1. Definitions.
Sec. 805-1-A. Amusement Park.
Sec. 805-1-A1. Amusement Park Owner.
Sec. 805-3. Operation Without License Unlawful.
Sec. 805-5. Application for License.
Sec. 805-7. Granting of License.
Sec. 805-9. Amusement Park License Fees.
Sec. 805-99. Penalties.

Sec. 805-1. Definitions.

For the purpose of this chapter the words and phrases defined in the sections hereunder shall have the meanings therein respectively ascribed to them, unless a different meaning is clearly indicated by the context.
(C.O. 713-1; a. Ord. No. 401-1958, eff. Dec. 5, 1958; renumbered to C.M.C. 805-1, eff. Jan. 1, 1972)

Sec. 805-1-A. Amusement Park.

"Amusement park" shall mean any park wherein band concerts, theatrical performances, or other methods of entertainment and amusement to the public are held, and where an entrance fee is charged for admission to such park or any park wherein eight or more amusement devices, open to the public upon payment of a fee, are operated. Provided, however, that nothing herein shall be construed to apply to parks owned by the city of Cincinnati.
(C.O. 713-1; a. Ord. No. 401-1958, eff. Dec. 5, 1958; renumbered to C.M.C. 805-1-A, eff. Jan. 1, 1972)

Sec. 805-1-A1. Amusement Park Owner.

"Amusement park owner" shall mean the owner or lessee in possession or control of an amusement park.
(C.O. 713-1; a. Ord. No. 401-1958, eff. Dec. 5, 1958; renumbered to C.M.C. 805-1-A1, eff. Jan. 1, 1972)

Sec. 805-3. Operation Without License Unlawful.

No person, firm or corporation shall operate an amusement park or permit any premises belonging to them or under their control to be operated as an amusement park, unless such operation shall have been duly licensed.
(C.O. 713-2; renumbered to C.M.C. 805-3, eff. Jan. 1, 1972)

Cross reference—Penalty, § 805-99.

Sec. 805-5. Application for License.

Application for amusement park licenses shall be made to the director of safety upon blanks provided by the director and shall set forth the name and address of the applicant, the approximate size and location of the park, the number and nature of the amusement and entertainment devices in the park, and such other information as may be required by the director of safety.
(C.O. 713-3; renumbered to C.M.C. 805-5, eff. Jan. 1, 1972)

Sec. 805-7. Granting of License.

If the director of safety finds that the location and size of the amusement park is permissible under the zoning laws and such park complies with all laws, ordinances or regulations having to do with the operation of amusement parks, the director shall grant the application and notify the city treasurer, who shall issue a license to the applicant upon the payment of the license fee hereinafter provided.
(C.O. 713-4; renumbered to C.M.C. 805-7, eff. Jan. 1, 1972)

Sec. 805-9. Amusement Park License Fees.

Licenses for amusement parks shall be issued for 4-month periods beginning on January 15, May 15, and September 15, upon the payment of $1,350.00 for the first 4 months, and $275.00 for each successive 4-month period in any one calendar year; provided, however, that licenses for amusement parks which are operated and licensed by the boxing and wrestling commission under the provisions of Chapter 208 and which, under the provisions of Section 208-15 of this code, pay 5 percent of the net gross receipts for admission fees and collections, shall be issued upon payment of $390.00 per year.
(C.O. 713-5; a. Ord. No. 265-1962, eff. Aug. 4, 1962; a. Ord. No. 90-1969, eff. Apr. 1, 1969;

renumbered to C.M.C. 805-9, eff. Jan. 1, 1972; a. Ord. No. 327-1975, eff. Sept. 1, 1975; a. Ord. No. 282-1979, eff. Sept. 1, 1979; Emer. Ord. 463-2010, § 25, eff. Dec. 30, 2010)

Sec. 805-99. Penalties.

Whoever violates any provision of Section 805-3 shall be fined not more than $100. Each day's violation shall constitute a separate offense.
(C.O. 713-2; renumbered to C.M.C. 805-99, eff. Jan. 1, 1972)

Chapter 807

ALARMS

Sec. 807-1. Definitions.
Sec. 807-1-A. Alarm Business.
Sec. 807-1-A1. Alarm Site.
Sec. 807-1-A2. Alarm System.
Sec. 807-1-A3. Alarm User.
Sec. 807-1-A4. Alarm Registration.
Sec. 807-1-C. City Manager.
Sec. 807-1-F. False Alarm.
Sec. 807-1-L. Local Alarm System.
Sec. 807-1-P. Person.
Sec. 807-7. Police Direct Connect Alarms.
Sec. 807-9. Confidentiality.
Sec. 807-11. Administrative Fees for Multiple False Alarms.
Sec. 807-13. Enhanced Call Verification; Excessive False Alarms; Suspension of Response and Revocation of Registration; Reinstatement of Registration; Enforcement of Provisions.
Sec. 807-15. Appeals.
Sec. 807-17. Rules and Regulations.
Sec. 807-19. Repealed.

Sec. 807-1. Definitions.

The words and phrases defined in the sections hereafter shall have the meanings therein respectively ascribed to them, unless a different meaning is clearly indicated by the context.
(Ordained by Ord. No. 448-1986, eff. Jan. 16, 1987)

Sec. 807-1-A. Alarm Business.

"Alarm business" shall mean the business by any individual, partnership, corporation, company, firm, or other entity of selling, installing, leasing, maintaining, servicing, repairing, altering, replacing, moving, or monitoring any alarm system or causing to be sold, installed, leased, maintained, serviced, repaired, altered, replaced, moved, or monitored any alarm system in or on any building, structure or facility.
(Ordained by Ord. No. 448-1986, eff. Jan. 16, 1987)

Sec. 807-1-A1. Alarm Site.

"Alarm site" shall mean the specific property or area of the premises upon or within which an alarm system is located or is to be installed.
(Ordained by Ord. No. 448-1986, eff. Jan. 16, 1987)

Sec. 807-1-A2. Alarm System.

"Alarm system" shall mean any device or combination of devices designed for the detection of an unauthorized entry on the premises, of an unlawful act, or of an emergency, which device alerts an entity which notifies a government organization of its commission or occurrence and when activated gives a signal, either visual, audible or both, or transmits or causes to be transmitted a signal. For purposes of this chapter, "alarm system" shall also mean any local alarm system, as defined in Section 807-1-L.

For purposes of this chapter, an alarm system shall not include:

(1) An alarm system or device installed upon premises occupied by the United States Government, the State of Ohio, or any other governmental entity that is specifically exempted from local control by state or federal law.

(2) Any device or system designed solely to detect or give notice of fire or smoke.

(Ordained by Ord. No. 448-1986, eff. Jan. 16, 1987; Emer. Ord. No. 116-2014, § 8, eff. July 1, 2014)

Sec. 807-1-A3. Alarm User.

"Alarm user" shall mean the person, firm, partnership, association, corporation, company, or organization of any kind in control of premises wherein an alarm system is maintained.
(Ordained by Ord. No. 448-1986, eff. Jan. 16, 1987)

Sec. 807-1-A4. Alarm Registration.

(1) Alarm Business Registration.

a. All Alarm Businesses, as defined in 807-1-A of this section, are required to register with the False Alarm Reduction Unit of the Cincinnati Police Department. A registration fee of $250 will be imposed annually and registration is valid for one year from the date of registration.

b. At the time of initial registration, Alarm Businesses will be required to provide a listing of current Alarm Systems within the City jurisdiction, including the Alarm User's name, mailing address, alarm location, and date of activation.

c. Alarm Businesses will subsequently be required to notify the False Alarm Reduction Unit of any new Alarm Sys-

tem installations within forty-five (45) days of activation, including the Alarm User's name, mailing address, alarm location, and date of activation.

d. The False Alarm Reduction Unit will notify the Alarm Business of the Alarm User Registration Number as assigned by the Cincinnati Police Department. All Alarm Businesses will be required to use the Alarm Users registration number, in addition to the address, when requesting a police response to an alarm.

e. A $1000 civil penalty will be imposed (1) for each request for a police response related to an Alarm System operated by an unregistered Alarm Business; or (2) for each request by an Alarm User for registration of an Alarm System installed by an unregistered Alarm Business.

f. Any Alarm Business with sustained operation within the City jurisdiction and a prior registration that was not renewed within ninety (90) days of the expiration of the registration period will be considered unregistered for the purposes of imposing civil penalties. The effective date of any subsequent renewal will be retroactive to the expiration date of the prior registration.

g. Upon failure to provide notification of a new Alarm System installation within forty-five (45) days of activation, a $50 civil penalty will be imposed, per offense, upon the Alarm Business. Upon failure to provide required listing of Alarm Systems at the time of initial registration, a monthly civil penalty of $1000 will be imposed upon the Alarm Business. For each failure of the Alarm Business to provide the alarm registration number of any registered Alarm User when requesting a police response, a $25 civil penalty will be imposed.

(2) Alarm User Registration.

a. All Alarm Systems within the City of Cincinnati must be registered with the False Alarm Reduction Unit of the Cincinnati Police Department. New Alarm Users must register with the False Alarm Reduction Unit before the Alarm System is activated.

b. Residential Alarm User registration is valid for two years from the date of registration and must identify the Alarm System location and the Alarm User. Residential Alarm Users shall pay a non-refundable, non-transferable, user and location-specific biennial fee of $50.

c. Non-residential Alarm User registration is valid for two years from the date of registration and must identify the Alarm System location and the Alarm User. Non-residential Alarm Users shall pay a non-refundable, non-transferable, user and location-specific biennial fee of $100.

d. A $100 civil penalty will be imposed on any Alarm User for using an unregistered Alarm System. The penalty may be waived if the Alarm User completes registration within twenty-one (21) days of the first notice of violation.

e. Any active Alarm System with a prior registration that was not renewed upon expiration of the prior registration will be considered unregistered for the purposes of imposing civil penalties. Effective date of any subsequent renewal will be retroactive to the expiration date of the prior registration.

(Ordained by Ord. No. 147-2003, § 1, eff. July 15, 2003; a. Ord. No. 237-2003, eff. June 25,

2003; a. Ord. No. 256-2003, eff. Sept. 5, 2003; Emer. Ord. No. 116-2014, § 8, eff. July 1, 2014)

Sec. 807-1-C. City Manager.

"City manager" shall mean the city manager or individual designated by the city manager to administer and enforce the provisions of this chapter.
(Ordained by Ord. No. 448-1986, eff. Jan. 16, 1987)

Sec. 807-1-F. False Alarm.

"False alarm" shall mean the activation of any Alarm System which is not the result of an actual or threatened emergency requiring an immediate Police response. False alarms include negligently or accidentally activated alarms or signals; alarms or signals which are the result of faulty, malfunctioning, or improperly installed or maintained equipment; and signals which are purposely activated to summon police or emergency services in non-emergency situations. Multiple occurrences due to equipment malfunction within a 24-hour period of activity constituting false alarms may be considered one false alarm for the purposes of this chapter.
(Ordained by Ord. No. 448-1986, eff. Jan. 16, 1987; a. Ord. No. 147-2003, § 2, eff. July 15, 2003; a. Ord. No. 237-2003, eff. June 25, 2003; Emer. Ord. No. 116-2014, § 8, eff. July 1, 2014)

Sec. 807-1-L. Local Alarm System.

"Local alarm system" shall mean any device or combination of devices designed for the detection of an unauthorized entry on the premises, of an unlawful act, or of an emergency, which when activated gives a signal, either visual, audible, or both only at the alarm site and which does not alert a governmental organization.
(Ordained by Emer. Ord. No. 116-2014, § 10, eff. July 1, 2014)

Sec. 807-1-P. Person.

"Person" shall mean any individual, partnership, corporation or other legal entity.
(Ordained by Ord. No. 448-1986, eff. Jan. 16, 1987)

Sec. 807-7. Police Direct Connect Alarms.

Alarm systems which terminate at the Cincinnati Police Division Communications Section under the provisions of Section 108-5 of the Cincinnati Municipal Code are exempted from the provisions of this chapter.
(Ordained by Ord. No. 448-1986, eff. Jan. 16, 1987)

Sec. 807-9. Confidentiality.

Because of the threat to the public safety and the risk that such information could be used for criminal action, and to protect the privacy of those persons affected by any provision of this chapter, the alarm system information kept by the city shall remain confidential. Such information shall be used solely for the purpose of law enforcement, judicial proceedings and the administration of this chapter and shall not be otherwise disclosed.

The provisions of Section 149.43 of the Ohio Revised Code which conflict with this section are hereby declared inoperative in the City of Cincinnati.
(Ordained by Ord. No. 448-1986, eff. Jan. 16, 1987)

Sec. 807-11. Administrative Fees for Multiple False Alarms.

Alarm users shall be responsible for multiple false alarms sent by alarm systems on premises under their control.

False alarm fees shall be imposed based on the number of false alarms sent by one Alarm System within a one-year period beginning with the first false alarm. A thirty (30) day grace period following the installation of a

new Alarm System, beginning on the activation date provided by the registered Alarm Business installing the Alarm System, will be given during which no alarms will be counted as false alarms for the purposes of imposing fees.

The city manager shall impose on alarm users an administrative fee, based on costs of administration and police response to false alarms, as follows:

(1) On the first and second false alarms within a registration period, no fee will be imposed; however, False Alarm Reduction Unit shall send a written warning notice to the alarm user advising of the number of false alarms recorded for that alarm system to date and the schedule of fees for multiple false alarms.

(2) On the third false alarm within a registration period, a fee of $50 shall be imposed. However, such fee may be waived if the Alarm User agrees to attend an educational class given by the Police Department.

(3) On the fourth false alarm within a registration period, a fee of $75 shall be imposed.

(4) On the fifth false alarm within a registration period, a fee of $100 shall be imposed.

(5) On the sixth false alarm within a registration period, a fee of $150 shall be imposed.

(6) On the seventh false alarm within a registration period, a fee of $200 shall be imposed.

(7) On the eighth false alarm within a registration period, a fee of $300 shall be imposed.

(8) On the ninth false alarm within a registration period, a fee of $400 shall be imposed.

(9) On the tenth false alarm within a registration period, a fee of $500 shall be imposed.

(10) For each false alarm after the tenth false alarm within a registration period, a fee of $800 shall be imposed.

(11) Beginning with the second false alarm on an unregistered Alarm System, all subsequent false alarms will be billed at the maximum rate of $800.

No fee shall be imposed until 30 days after written notification that a false alarm has been recorded against the alarm system has been sent to the alarm user at the registration mailing address, or if unregistered, at the address of the Alarm Site.

(Ordained by Ord. No. 448-1986, eff. Jan. 16, 1987; a. Ord. No. 526-1987, eff. Dec. 16, 1987; a. Ord. No. 147-2003, § 3, eff. July 15, 2003; a. Ord. No. 237-2003, eff. June 25, 2003)

Sec. 807-13. Enhanced Call Verification; Excessive False Alarms; Suspension of Response and Revocation of Registration; Reinstatement of Registration; Enforcement of Provisions.

(1) *Enhanced Call Verification*. An Alarm Business shall not notify or alert the City's Emergency Communications Center that an Alarm System has been activated unless the Alarm Business completes the procedure for enhanced call verification.

For purposes of this Chapter, "enhanced call verification" shall mean a monitoring procedure requiring that a minimum of two calls be made in an attempt to contact the alarm user prior to requesting a dispatch from the City's Emergency Communications Center. The two calls must be made to different phone numbers provided by the Alarm User.

(2) *Excessive False Alarms*. No alarm user, having been sent each of the written notices for the third through tenth false alarms, as provided in Section 807-11, shall permit a false alarm to occur during the same calendar year. This section shall be construed to impose strict liability for all false alarms occurring after the notices in Section 807-11 have been sent.

(3) *Suspension of Response and Revocation of Registration*. When an Alarm User or Alarm Business has $500 or more in delinquent fees outstanding, the City shall terminate the registration of the Alarm User or Alarm Business and any further requests for a police or fire response to the activation of an Alarm System shall be suspended.

(4) *Reinstatement of Registration*. If the person pays all delinquent fees that remain outstanding, a person may request that the City reinstate a registration revoked under C.M.C. 807-13(3).

(5) *Enforcement of Provisions*. All remedies shall be cumulative, and the use of one or more remedies by the city shall not bar the use of any other remedy for the purpose of enforcing the provisions of this chapter. The amount of any penalty shall be deemed a debt to the city. An action may be commenced in the name of the city in any court of competent jurisdiction for the amount of any delinquency or penalty. All penalties shall be deemed delinquent 30 days after they are due and payable.
(Ordained by Ord. No. 448-1986, eff. Jan. 16, 1987; a. Ord. No. 552-1987, eff. Dec 23, 1987; Emer. Ord. No. 116-2014, § 8, eff. July 1, 2014)

Sec. 807-15. Appeals.

(1) Any alarm user may appeal determination by the city manager that an alarm activation is a false alarm within 30 days after notification is sent by the city that a false alarm has been recorded against the alarm system. Appeal procedures shall be set forth in rules and regulations established by the city manager.

(2) Any appeal must be made in writing and directed to the False Alarm Reduction Unit Commander. A written notification of determination will be sent within thirty (30) days of receipt of appeal. No change in the False Alarm status may be made without going through the written appeal process.

(3) An administrative fee of $25 will be charged for the appeal process. The fee must be received with the written appeal request. The fee will be refunded if the appeal is upheld.

(4) If unsatisfied by the determination issued by the False Alarm Reduction Unit Commander, the Alarm User may request that an Administrative Hearing be conducted by a hearing examiner outside of the Police Department. There will be no additional fee for this process. The hearing examiner will issue a written determination.
(Ordained by Ord. No. 448-1986, eff. Jan. 1987; a. Ord. No. 147-2003, § 4, eff. July 15, 2003; a. Ord. No. 237-2003, eff. June 25, 2003)

Sec. 807-17. Rules and Regulations.

The city manager shall establish rules and regulations for the maintenance of information, notification of violations, imposition of fees, and appeals of decisions made as he deems necessary for implementation of this chapter. All alarm users and alarm businesses shall be subject to the rules and regulations promulgated by the city manager. The rules and regulations and amendments thereto shall be published in the City Bulletin 30 days prior to their effective date.
(Ordained by Ord. No. 448-1986, eff. Jan. 16, 1987)

Sec. 807-19. Repealed.
(Ordained by Ord. No. 448-1986, eff. Jan. 16, 1987; r. Emer. Ord. No. 116-2014, § 11, eff. July 1, 2014)

Chapter 809

ANTIQUE DEALERS

Sec. 809-1. Antique Dealer Defined.
Sec. 809-3. License Required.
Sec. 809-5. License Fees.
Sec. 809-99. Penalties.

Sec. 809-1. Antique Dealer Defined.

"Antique dealer" shall mean any person, firm or corporation engaged in the business of selling, exchanging, bartering or keeping with the intention of selling, bartering, or exchanging any antique. For the purpose of this section antiques shall include ceramics, paintings, jewelry, gold or silver articles, oriental rugs, tapestries, embroideries, statuary, furniture, household furnishings or other objects of art, which because of age, history, design or workmanship have a trade value greater than their utilitarian value.
(C.O. 744-1; renumbered to C.M.C. 809-1, eff. Jan. 1, 1972)

Sec. 809-3. License Required.

No person, firm or corporation shall carry on the business of antique dealer without obtaining a license therefor from the city treasurer for each place of business operated by such person, firm or corporation.
(C.O. 744-2; renumbered to C.M.C. 809-3, eff. Jan. 1, 1972; a. Ord. No. 261-1976, eff. June 16, 1976; a. Ord. No. 0028-2022, §§ 1, 2, eff. February 9, 2022)
Cross reference—Penalty, § 809-99.

Sec. 809-5. License Fees.

The annual license fee to be paid to the city treasurer by any person, firm or corporation carrying on the business of antique dealers shall be $175.00 for the period of one year following the application for each place of business.
(C.O. 744-3; a. Ord. No. 265-1962, eff. Aug. 4, 1962 a. Ord. No. 90-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 809-5, eff. Jan. 1, 1972; a. Ord. No. 327-1975, eff. Sept. 1, 1975; a. Ord. No. 282-1979, eff. Sept. 1, 1979; Emer. Ord. 463-2010, § 27, eff. Dec. 30, 2010)

Sec. 809-99. Penalties.

Whoever violates Section 809-3 shall be fined not more than $300.
(C.O. 744-4; a. Ord. No. 414-1970, eff. Dec. 23, 1970; renumbered to C.M.C. 809-99, eff. Jan. 1, 1972)

Chapter 811

e-SCOOTER RENTAL FRANCHISES

Sec. 811-1. Applicability.
Sec. 811-3. General Provisions.
Sec. 811-5. Award of e-Scooter Franchisees.
Sec. 811-7. Requirement to Execute a Franchise Agreement with the City; Payment of Franchise Fees.
Sec. 811-9. Rules and Regulations for Franchisee Operations.
Sec. 811-11. Suspension or Revocation of Franchise.
Sec. 811-13. Right to Appeal the Denial, Suspension, or Revocation of a Franchise.
Sec. 811-15. Penalties.

Sec. 811-1. Applicability.

(a) e-Scooter shall have the same meaning as defined in Cincinnati Municipal Code Section 501-1-E3, "e-Scooter."

(b) This chapter applies to any person engaged in the business of providing e-scooter rental or sharing services to the public within the city.

(c) The requirements of this chapter shall supplement the provisions of Title V, "Traffic Code," of the Cincinnati Municipal Code.

(d) No person shall engage in the business of e-scooter rental or sharing services to the public within the city unless that person has obtained a franchise from the city to engage in such a business.

(e) No person shall obtain a franchise from the city until that person has complied with the following:

(1) Submitted a timely and complete application for a franchise or timely and complete response to a request for proposals conducted by the city;

(2) Paid the application fee established by the city manager, if applicable;

(3) Posted a bond and obtained the insurance required by Sec. 811-07; and

(4) Executed a franchise agreement with the city for the provision of e-scooter rental or sharing services.

(Ordained by Emer. Ord. No. 455-2021, § 1, eff. Dec. 8, 2021)

Sec. 811-3. General Provisions.

(a) It is unlawful for any person to commence or engage in the business of providing e-scooter rental or sharing services within the city without first obtaining a franchise and entering into a franchise agreement with the city.

(b) Each franchisee shall comply with all laws of the city of Cincinnati, the state of Ohio, and the federal government. Each franchisee shall obtain and maintain all applicable licenses and permits required by federal, state, and local laws, rules, regulations, and orders of regulatory bodies.

(c) Each franchisee shall comply with all rules and regulations established by the city manager or his or her designee for the safe and effective administration, operation, and enforcement of the e-scooter rental and sharing services pursuant to Sec. 811-09.

(d) A franchisee shall not be relieved of the obligation to comply with all requirements of this chapter and the franchise agreement by failure of the city to enforce compliance with such requirements.

(e) The city reserves its right to grant franchises and similar rights to more than one (1) person.

(f) Each franchisee shall identify and mark each of its e-scooters located within the city with the franchisee's name so that they are easily identifiable.

(g) A franchisee providing e-scooter rental or sharing services is not and shall not be deemed to be an agent or employee of the city. A franchisee shall be solely responsible for any losses or damages of any kind arising from its performance or nonperformance under its franchise. A franchisee shall indemnify, defend, and hold the city harmless against any and all claims and suits brought against the city resulting from the franchisee's performance or nonperformance under the franchise agreement.

(h) The execution of the franchise agreement and the issuance of a franchise, and the renewal thereof, is at the sole discretion of the city manager and shall not be construed as creating any vested rights in the

franchisee. Each franchise is revocable in accordance with the terms of this chapter and the terms of the franchise agreement.

(i) A franchise may not be assigned or transferred to another person.

(j) A franchise authorizes a franchisee to provide e-scooter rental or sharing services within the city.

(k) All of the franchisee's equipment, including e-scooters and other vehicles used in connection with e-scooter rental or sharing services, shall be subject at all times to inspection by the city, and the city manager or his or her designee may require the cleaning, repair, replacement, or retirement of any equipment, including e-scooters and other vehicles used in connection with e-scooter or sharing services.
(Ordained by Emer. Ord. No. 455-2021, § 1, eff. Dec. 8, 2021)

Sec. 811-5. Award of e-Scooter Franchisees.

(a) Any person wishing to obtain a franchise to engage in the business of providing e-scooter rental or sharing services within the city shall submit an application to the city manager in compliance with the process established for awarding franchises.

(b) Where appropriate, the city manager may choose to conduct a request for services pursuant to Cincinnati Municipal Code Section 321-1-R6 to solicit qualified franchisees in lieu of an application process.

(c) An applicant for a franchise shall provide the city with satisfactory evidence demonstrating that:

(1) The applicant has the experience, personnel, equipment, and other resources to provide e-scooter rental or sharing services in the city and the management of such; and

(2) The applicant has the capacity and willingness to comply with all local, state, and federal laws, and all rules and regulations of the city for the rental, sharing, and operation of rental e-scooters.

(d) Applicants for a new franchise and applicants for the renewal of an existing franchise shall provide information requested by the city manager and other relevant information. The application and supporting materials shall be submitted under oath. At a minimum, the application shall include the following information:

(1) The name and mailing address of the applicant; contact information for the applicant's designated representative; the name of the person to be granted the franchise; if the applicant is a corporation, the names of the corporation's principal officers; the names of the local operating managers who will be responsible for the rental or sharing services for the applicant, together with the business address and telephone number of each manager;

(2) If the applicant is a corporation, proof that the corporation is in good standing in the State of Ohio and, if the applicant is not an Ohio corporation, proof that the applicant is authorized to do business in the State of Ohio. If the applicant is operating under a fictitious name, the applicant shall be required to submit information that such fictitious name is registered and held by the applicant;

(3) A statement of whether the applicant operates or has operated an e-scooter rental or sharing business in Ohio or any other state or territory. If the applicant has provided or is providing e-scooter rental or sharing services,

the applicant shall describe all cases where and when it provided such services (but not more than ten (10) communities), and whether any of the applicant's permits, approvals, or licenses to provide such services have ever been revoked or suspended within the last five (5) years;

(4) A complete record of all felony convictions, and all misdemeanor convictions within the last five (5) years, involving the applicant's e-scooter rental and sharing services. If the applicant is not an individual, the applicant also shall provide the complete record of such convictions for any person who is an officer, majority shareholder, or partner in the applicant, and any person having a controlling interest in the applicant;

(5) A complete record of all civil penalties and liquidated damages in excess of five thousand dollars ($5,000.00) assessed against the applicant by local, state, and federal governmental entities within the last five (5) years involving the e-scooter rentals or sharing services;

(6) The types of e-scooters or other vehicles which the applicant has in its inventory and their capabilities, including any e-scooters that are adapted to expand access for people with physical limitations;

(7) Evidence demonstrating the applicant's capacity to satisfy the requirements imposed on franchisees pursuant to Sec. 811-07;

(8) A list of the e-scooters, vehicles, equipment, and containers that will be used by the applicant to provide e-scooter rental or sharing services. At a minimum, the list shall identify the make, model, and year of each e-scooter or vehicle. The city manager may inspect any of the e-scooters, vehicles, equipment, and containers identified by the applicant and thereby determine whether the applicant possesses the e-scooters, vehicles, equipment, and containers that are capable of providing safe and efficient e-scooter rental and sharing services in compliance with this chapter; and

(9) A chart identifying the maximum rates that the applicant charges customers for various types of e-scooter rental or sharing services.

(e) When applicable, each applicant shall submit a nonrefundable application fee to the city in the amount established by the city manager. The application fee is due and payable when the application is submitted. This fee shall not apply to responses to a request for services.

(f) New applications must be submitted to the city manager at least sixty (60) days before the applicant wishes to begin providing e-scooter rental or sharing services. Renewal applications must be submitted to the city manager at least thirty (30) days before the applicant's existing franchise expires.

(g) A franchise for e-scooter rental or sharing services may be granted to a person when the city manager concludes that the applicant has satisfied the requirements in this chapter. This includes successfully responding to the request for services or completing the application and the city rating the person's proposal or application as most advantageous.

(h) The city manager retains the sole discretion to approve or deny an application. Among others, an applica-

tion for a franchise for e-scooter rental or sharing services may be denied for the following reasons:

(1) The applicant has not submitted a complete application with all of the required supporting documents or paid the application fee;

(2) The applicant has submitted false or materially misleading statements in the application;

(3) The applicant or a partner, director, or officer of the applicant has been convicted of a felony within the past five (5) years, or has been convicted of a misdemeanor within the past three (3) years, involving provision of scooter rental or sharing services;

(4) The applicant has failed to satisfy one or more of the requirements of this chapter or the Cincinnati Municipal Code;

(5) Any reason that would justify the suspension or revocation of a franchise, as described in Sec. 811-11; and

(6) The addition of further franchises would exceed either the total number of allowable e-scooters in the city or the number of franchises determined by the city manager to be needed by the city.
(Ordained by Emer. Ord. No. 455-2021, § 1, eff. Dec. 8, 2021)

Sec. 811-7. Requirement to Execute a Franchise Agreement with the City; Payment of Franchise Fees.

(a) Each applicant awarded a franchise for e-scooter rental or sharing services shall execute a franchise agreement, including all required attachments, in the form prescribed by the city manager or his or her designee.

(b) All franchise agreements shall impose an affirmative obligation on each franchisee to cause all persons operating or using its e-scooters within the city to be insured under a policy of insurance against loss from liability imposed by law for damages arising out of the e-scooters' use and operation, which policy shall be issued by an insurance carrier licensed to do business in the state of Ohio and acceptable to the city, and which policy shall provide coverage of no less than the following specified limits:

(1) Ten thousand dollars because of bodily injury to or death of one person in any one accident.

(c) In connection with the execution of a franchise agreement, each franchisee shall submit the required franchise fees and documentation to the city, including, but not limited to, the following:

(1) An annual fee of two thousand five hundred dollars ($2,500) for the administrative costs of oversight of the franchise, which fee shall be due and payable on the commencement date of the franchise and on each anniversary of the commencement date during the term of the franchise agreement.

(2) Monthly franchise fees as compensation for the rights and benefits granted by the franchise, including, but not limited to, the right to operate an e-scooter rental or sharing business in the city. The franchise fee shall be equal to twenty-five cents ($0.25) per trip or activation of an e-scooter (which shall equal the total number of trips or activations of an e-scooter within a calendar month multiplied by $0.25) for each e-scooter maintained by the franchisee within the city. A trip shall mean anytime a person activates or uses the e-scooter and pays a fee for such use. The franchisee shall submit its monthly franchise fee pay-

ments to the city no later than five business days after the end of each month.

(3) A statement of the franchisee's total number of trips in the city that accompanies each monthly franchisee fee payment, which statement shall be submitted on a form prescribed by the city manager or his or her designee. The statement shall include the number of e-scooters deployed or available in the city and the amount of trips and fees per day for each e-scooter. Statements and remittances shall be accepted as timely if postmarked within five days after the end of the month; if the fifth day falls upon a Saturday, Sunday, or federal or state holiday, statements and remittances shall be accepted as timely if postmarked on the next business day. Payments not received by the due date shall be assessed (1) an administrative fee to reimburse the city for the reasonable administrative costs associated with collecting such monies; and (2) interest for each day of delinquency at the rate of eighteen (18) percent per annum or the maximum allowed by law, whichever is less, for each day of delinquency, until the total unpaid amount due and owing is paid in full. The administrative fee shall be equal to six (6) percent of the amount owed by the franchisee to the city or fifteen dollars ($15.00), whichever is greater.

(4) An annual report concerning the franchisee's total trips for the year. This annual report shall be examined by an independent reviewer, who shall confirm that the franchisee's computations concerning trips and franchise fees were performed in accordance with the requirements of this chapter. The report of the reviewer shall state that its examination of the franchisee's records was performed in accordance with professional standards. Each franchisee shall notify the city of the date its fiscal year ends. Each franchisee shall file the auditor's report with the city within one hundred twenty (120) days after the end of the franchisee's fiscal year. Franchisee shall be solely responsible for retaining the independent auditor and paying for his or her services.

(5) A certificate evidencing insurance coverage for the following types of insurance coverage and specified limits of coverage is in effect for the same term as the franchise agreement, and naming the city as an additional insured (except with regard to the workers compensation and employers liability insurances), issued by an insurance company licensed to do business in the state of Ohio, acceptable to the city, and as required and set forth in greater specificity in the franchise agreement:

(a) Comprehensive general liability insurance with a limit of a one million dollar ($1,000,000) per occurrence and a two million dollar ($2,000,000) general aggregate. This policy must include the following coverages: premises and operations liability, independent contractors, products and completed operations, personal injury, contractual liability, and fire damage;

(b) Automotive liability insurance coverage providing a combined single limit of not less than one million dollars ($1,000,000) per occurrence. This policy must include the following coverages:

bodily injury and property damage including premises and operations;

(c) Workers compensation insurance shall be provided for all of franchisee's employees as required under Ohio law; and

(d) Employer's liability insurance providing a single limit of not less than one million dollars ($1,000,000), bodily injury by each accident, and providing a single limit of not less than one million dollars ($1,000,000), bodily injury disease per each employee, and providing a single limit of not less than one million dollars ($1,000,000) bodily injury by disease policy limit.

(6) A bond in the amount of twenty percent (20%) of the franchisee's gross revenues for the quarter immediately preceding the execution date of the franchise agreement. For franchisees who did not hold a franchise in the quarter immediately preceding the execution date of the franchise agreement, the bond shall be in the amount of fifty thousand dollars ($50,000). The bond shall conform with the requirements of CMC Chapter 304.

(7) Documentation acceptable to the city demonstrating the franchisee's compliance with the requirements of Sec. 811-07(b), which documentation shall be made available at any time upon the city's request.

(d) All amounts paid by the franchisee shall be subject to confirmation and recomputation by the city. An acceptance of payment shall not be construed as an accord that the amount paid is the correct amount, nor shall acceptance of payment be construed as a release of any claim the city may have for further or additional sums payable.

(e) Billing methods that have the effect of reducing or avoiding the payment of franchise fees are prohibited and will be cause for termination of the franchise. Any person who uses false, misleading, or fraudulent billing methods for the purpose of reducing or avoiding the payment of franchise fees may be subject to the penalties provided by this chapter.

(f) Payment of the franchise fee shall not exempt the franchisee from the payment of any other fee, tax, or charge on the business, occupation, property, or income of the franchisee that may be imposed by the city, the county, the state, or the federal government.

(g) The franchisee shall notify the city in writing by registered or certified mail thirty (30) days in advance of any cancellation, intent not to renew, or any other changes in the insurance coverage required by this section. Upon the cancellation or lapse of any policy of insurance required by this chapter or the franchise agreement, the franchisee's license to operate as a franchisee in the city under its franchise agreement shall be deemed to be immediately revoked unless, before the expiration date of the policy of insurance, another policy of insurance containing all the requirements of the original policy of insurance is obtained and a new certificate is provided to the city.

(h) The bond required by this section shall be used to ensure the franchisee's performance under this chapter and the franchise agreement. Among other things, the bond shall be used to ensure the franchisee's payment of franchise fees and other sums that are due and owing to the city. The bond shall also be used to indemnify the city from any damages that may be

suffered by the city in any manner as a result of the city's award of a franchise to the applicant, including, but not limited to, damages resulting from the franchisee's performance or nonperformance of the conditions and requirements of the franchise agreement, the franchisee's use of the city's streets, the failure of the franchisee to conform with applicable laws, and any negligent, reckless, or intentional wrongful act or omission of the franchisee or the franchisee's employees, agents, officers, or representatives. The bond shall be kept in full force at all times during the term of the franchise. The bond shall be released by the city within one year following the expiration or termination of the franchise agreement.

(i) A franchisee's failure to remit fees and documentation required by this chapter shall be grounds for the suspension or revocation of the franchise.

(j) The city may seek judicial relief to recover all fees, costs, and interest due and owing by a franchisee. The franchisee shall pay the city's court costs, reasonable attorney fees, accounting and auditing costs, and other collection costs incurred by the city as a result of franchisee's failure to remit the fees and documentation required by this chapter and the franchise agreement.
(Ordained by Emer. Ord. No. 455-2021, § 1, eff. Dec. 8, 2021)

Sec. 811-9. Rules and Regulations for Franchisee Operations.

(a) The city manager or his or her designee is authorized to establish rules and regulations for the safe and effective administration, operation, and enforcement of the e-scooter rental and sharing services program. The regulations may include but are not limited to the following categories:

(1) Required notices and information to be provided to e-scooter renters and users;

(2) Required management and enforcement tools so the city and franchisees may effectively control, monitor, and manage rented e-scooters;

(3) Required maintenance obligations and abatement obligations regarding retrieval of e-scooters which are determined by the city to be in disrepair, in need of service, or located outside of permissible areas of operation;

(4) Identification requirements to ensure rented e-scooters are identifiable and ensure the payment of fees and costs associated with such rentals;

(5) Restrictions on parking in the city right-of-way;

(6) Environmental concerns and regulations based on the weather;

(7) Rider education and public health concerns regarding safety;

(8) Restrictions on fleet size or the number of shared or rentable e-scooters owned or operated by a franchisee;

(9) Allowances for accessible e-scooters or similar devices which are intended to allow those persons with physical limitations access to similar rentable devices;

(10) Curfew restrictions and boundaries for permanent and temporary restricted areas of operation; and

(11) All regulations necessary for the safe and effective management and control of e-scooters in the city's streets, paths, roads, rights-of-way, and other public grounds.

(b) The rules and regulations established pursuant to this section shall promote the safe and orderly operation of e-scooters within the city and shall promote the safety and welfare of pedestrians, residents, busi-

nesses, city staff, and right-of-way users. All e-scooter rental franchises shall agree to abide by such rules and regulations.

(c) Each franchisee shall prepare, keep, and maintain current, accurate records demonstrating its compliance with the requirements of this chapter and the franchise agreement.

(d) The city shall have the right to inspect and review a franchisee's records concerning its franchise. The city shall provide fifteen (15) days advance written notice of any such inspection. The city also may copy and audit the franchisee's records, at the city's expense. The records shall be readily accessible for review by the city.
(Ordained by Emer. Ord. No. 455-2021, § 1, eff. Dec. 8, 2021)

Sec. 811-11. Suspension or Revocation of Franchise.

(a) The city manager may suspend or revoke a franchise and the corresponding franchise agreement if the city manager concludes that:

(1) The franchise was issued due to a mistake of law or fact;

(2) The franchise was issued based upon a false statement or misrepresentation by the franchisee;

(3) The franchisee has violated an applicable provision of the Cincinnati Municipal Code, state law, or federal law;

(4) A necessary permit, approval, or license of the franchisee has become invalid;

(5) The franchisee is no longer engaged in providing e-scooter rental or sharing services in the city;

(6) The services and other activities authorized under the franchise are not being performed in accordance with the requirements of this chapter, the franchise agreement, or the application for a franchise;

(7) Timely and full payment of the franchise fee has not been accomplished by the franchisee in compliance with this chapter;

(8) The franchisee or one (1) of its principals has been convicted under a local, state, or federal law for a crime involving e-scooter rental or sharing services;

(9) The franchisee failed to provide, pay for, and maintain the coverage in accordance with the requirements of this chapter;

(10) The franchisee violated a requirement of this chapter or the franchise agreement;

(11) The franchisee failed to comply with a lawful order of the city manager or his or her designee; or

(12) The franchisee's actions or inactions demonstrate that the franchisee is not competent or fit to provide services to the public.

(b) Before the city manager suspends or revokes a franchise, the city manager or his or her designee shall provide notice to the franchisee and an opportunity to be heard in the manner set forth in Sec. 811-13.

(c) A franchise that has been suspended or revoked under this chapter shall not be reinstated or reissued unless, at a minimum, the franchisee has complied with all of the requirements of this chapter, submitted a complete application, paid the application fee, executed a franchise agreement, and been approved by the city manager.

(d) The revocation of a franchise shall automatically terminate the corresponding franchise agreement.
(Ordained by Emer. Ord. No. 455-2021, § 1, eff. Dec. 8, 2021)

Sec. 811-13. Right to Appeal the Denial, Suspension, or Revocation of a Franchise.

(a) Prior to the denial of an application or the suspension or revocation of a franchise, the applicant or franchisee shall be given reasonable notice of the city manager's proposed action and shall be given an opportunity to present evidence to the city manager or his or her designee explaining why the franchise should not be denied, suspended, or revoked. The city manager shall consider any evidence presented by the applicant or franchisee that the city manager determines is relevant to the appeal before the city manager issues a final decision. Notice of the city's proposed action and notice of the city's final decision shall be served upon the applicant or franchisee by certified mail.

(b) The applicant or franchisee may appeal the city's final decision by filing a notice of appeal with the office of administrative hearings pursuant to Chapter 1501 of the Cincinnati Municipal Code within fifteen (15) days after written notice of the city manager's decision is issued. An appeal to the office of administrative hearings shall not act as a stay of the city manager's decision to suspend or revoke a franchise.
(Ordained by Emer. Ord. No. 455-2021, § 1, eff. Dec. 8, 2021)

Sec. 811-15. Penalties.

A violation of any section of this chapter shall constitute a Class D civil offense.
(Ordained by Emer. Ord. No. 455-2021, § 1, eff. Dec. 8, 2021)

Chapter 815

BOWLING ALLEYS (REPEALED)*

*__Editor's note—__Repealed by Ord. No. 89-1995, eff. March. 22, 1995.

Chapter 817

BUDGET SERVICE COMPANIES (REPEALED)*

*__Editor's note—__Repealed by Ord. No. 437-2005, eff. Dec. 15, 2005.

Chapter 819

CABARET

Sec. 819-1. Definitions.
Sec. 819-1-C. Cabaret.
Sec. 819-3. Cabarets; License Fees.
Sec. 819-5. Requirements for License.
Sec. 819-7. Neighborhood Protest.
Sec. 819-9. Police to Have Access.
Sec. 819-11. Revocation of License.
Sec. 819-99. Penalties.

Sec. 819-1. Definitions.

For the purpose of this chapter the words and phrases defined in the sections hereunder shall have the meanings therein respectively ascribed to them, unless a different meaning is clearly indicated by the context.
(C.O. 716-1; renumbered to C.M.C. 819-1. eff. Jan. 1. 1972)

Sec. 819-1-C. Cabaret.

"Cabaret" shall mean a place regularly and habitually operated for profit, where food and beverages are served for consumption on the premises, and where one or more forms of entertainment are provided by others for the patrons thereof after 9 p.m. The operation of a radio or a phonograph on the inside of a building, or the rendition of music only, shall not be considered as a form of entertainment within the meaning of this chapter.
(C.O. 716-1; renumbered to C.M.C. 819-1-C, eff. Jan. 1, 1972)

Sec. 819-3. Cabarets; License Fees.

It shall be unlawful to operate a cabaret unless such operation is duly licensed.

License fees shall be payable as follows:

(a) If the floor and ground space devoted to the use of patrons and to the use of performers, excluding space for which a dance hall license is required, contains less than 1,000 square feet, the license fee shall be $500.00 for one year.

(b) If the floor and ground space as described in paragraph (a) contains more than 1,000 square feet but less than 2,000 square feet, the license fee shall be $705.00 for one year.

(c) If the floor and ground space as described in paragraph (a) contains more than 2,000 square feet but less than 3,000 square feet, the license fee shall be $1,150.00 for one year.

(d) If the floor and ground space as described in paragraph (a) contains more than 3,000 square feet, the license fee shall be $1,500.00 for one year.

It shall be unlawful to operate a cabaret between the hours of 1:30 a.m. and 6:00 a.m. where individuals under the legal age in Ohio for consuming beer and intoxicating liquor are present.
(C.O. 716-2; a. Ord. No. 265-1962, eff. Aug. 4, 1962; a. Ord. No. 90-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 819-3, eff. Jan. 1, 1972; a. Ord. No. 327-1975, eff. Sept. 1, 1975; a. Ord. No. 282-1979, eff. Sept. 1, 1979; a. Ord. No. 289-1988, eff. Aug. 3, 1988; Emer. Ord. 463-2010, § 29, eff. Dec. 30, 2010)

Cross reference—Penalty, § 819-99.

Sec. 819-5. Requirements for License.

No cabaret license shall be issued without the consent of the city manager or person designated by the city manager. No person shall be licensed to operate a cabaret if he has been convicted within the preceding 10 years of a felony or if he has been convicted within the preceding 5 years of a misdemeanor involving moral turpitude. No license shall be issued to a firm or corporation if any officer of the firm or corporation has been convicted within the preceding 10 years of a felony or if any officer has been convicted within the preceding 5 years of a misdemeanor involving moral turpitude.

No license to operate a cabaret shall be issued without the written approval of the department of buildings and inspections and the fire division indicating the building is constructed and maintained in strict accordance with all laws, ordinances and regulations governing the erection, maintenance and conduct of buildings used for such purposes. No application for renewal of an exist-

ing license shall be approved if prior to the expiration of the existing license the department of buildings and inspections or the fire division notifies the city treasurer in writing that the building is not constructed or maintained in strict accordance with all laws, ordinances and regulations governing the erection, maintenance and conduct of buildings used for such purpose.
(C.O. 716-4; renumbered to C.M.C. 819-5, eff. Jan. 1, 1972; a. Ord. No. 92-1977, eff. Mar. 23, 1977; a. Ord. No. 237-1979, eff. June 6, 1979; Emer. Ord. No. 238-2015, § 12, eff. July 1, 2015)

Cross reference—Penalty, § 819-99.

Sec. 819-7. Neighborhood Protest.

The city manager or a designee shall not give consent to the issuance of a cabaret license for the period of at least 30 days from the date of the receipt of the application therefor. The city manager or a designee shall give notice of the pending license application to all property owners within 300 feet of the cabaret premises and to the community council of the area where the cabaret premises are to be located, at least 30 days prior to the license issuance.

If within such period of 30 days a written protest against the issuance of the license is filed with the city manager by a majority of the owners or occupants of the structures located within 300 feet of any point in the property line of the property on which it is proposed to establish and maintain a cabaret, and if the city manger finds upon investigation that the establishment and maintenance of such cabaret will constitute a disturbance to the peace and quiet of the neighborhood within such 300 feet, or will be injurious or harmful to the morals of children or persons attending any church, school, hospital, sanitarium, public library within such 300 feet, the city manager or designee shall refuse consent to the issuance of the license.
(C.O. 716-5; renumbered to C.M.C. 819-9, eff. Jan. 1, 1972; a. Ord. No. 92-1977, eff. Mar. 23, 1977; a. Ord. No. 93-1991, eff. Apr. 12, 1991)

Sec. 819-9. Police to Have Access.

The city manager or a designee and city police officers shall at all times have access to any cabaret.
(C.O. 716-7; renumbered to C.M.C. 819-9, eff. Jan. 1, 1972; a. Ord. No. 92-1977. eff. Mar. 23, 1977)

Sec. 819-11. Revocation of License.

If the city manager or designee finds that the further maintenance of any cabaret is injurious to the public welfare and morals, or is a disturbance to the peace and quiet of a neighborhood within 300 feet of the cabaret property, the city manager shall revoke the license of such cabaret without refunder.
(C.O. 716-10; renumbered to C.M.C. 819-11, eff. Jan. 1, 1972; a. Ord. No. 92-1977, eff. March 23, 1977)

Sec. 819-99. Penalties.

Whoever violates Sections 819-3 or 819-5 of this chapter, shall be guilty of a minor misdemeanor. If the offender has within one year, been convicted of a previous violation of these sections, then the violation shall be a misdemeanor of the first degree.
(C.M.C. 819-99; ordained by Ord. No. 133-1991, eff. May 10, 1991)

Chapter 821

CHARITABLE SOLICITATIONS (REPEALED)*

*__Editor's note—__Repealed by Ord. No. 602-1983, eff. Dec. 21, 1983.

Chapter 823

CHILDREN, STREET TRADES

Sec. 823-1. Minimum Ages.
Sec. 823-3. Permit and Badge Necessary.
Sec. 823-5. Issuance of Permit and Badge.
Sec. 823-7. Requirements for Permit.
Sec. 823-9. Rules as to Badges.
Sec. 823-11. Sale or Delivery to Child Without Badge.
Sec. 823-13. Hours of Work.
Sec. 823-15. Revocation of Permit.
Sec. 823-99. Penalties.

Sec. 823-1. Minimum Ages.

No child, male or female, under 16 years of age, shall at any time sell, expose or offer for sale any goods, wares or merchandise of any description whatsoever, upon the streets or in any public or private place within the city, provided, that any child over 10 years of age may apply for a permit and badge as hereinafter provided to exercise the trade of bootblack, or sell, expose or offer for sale any newspaper, magazine, periodical or shopping bag, under the terms and conditions hereinafter provided.
(C.O. 717-1; renumbered to C.M.C. 823-1, eff. Jan. 1, 1972; a. Ord. No. 281-1976, eff. June 23, 1976)

Cross reference—Penalty, § 823-99.

Sec. 823-3. Permit and Badge Necessary.

No child under 18 years of age shall exercise the trade of bootblack, or sell, deliver, or expose or offer for sale any newspaper, magazine, periodical or shopping bag, upon the streets or in any public or private place within the city, without a permit and badge, as hereinafter provided.
(C.O. 717-2; renumbered to C.M.C. 823-3, eff. Jan. 1, 1972)

Cross reference—Penalty, § 823-99.

Sec. 823-5. Issuance of Permit and Badge.

Permits required under the provisions of this chapter shall be issued by the city treasurer or an authorized subordinate in accordance with Section 823-7 upon the request of the parents, guardian, custodian or next friend of an applicant.
(C.O. 717-3; renumbered to C.M.C. 823-5, eff. Jan. 1, 1972)

Sec. 823-7. Requirements for Permit.

No badge or permit shall be issued unless the issuing agency shall be satisfied that the applicant is at least 10 years of age, of normal development and physically fit to undertake the work intended. The permit shall state the name and address of the applicant, date and place of birth, name and address of the parents, guardian, custodian or next friend, color of hair and eyes, height, weight, distinguishing marks, and name of school attended. It shall also carry the identifying signature of the applicant. Every permit shall bear a serial number and shall expire on December 31 next following the date of issue. The color of permit cards shall be changed each year.
(C.O. 717-4; renumbered to C.M.C. 823-7, eff. Jan. 1, 1972)

Sec. 823-9. Rules as to Badges.

Every badge issued hereunder shall bear a serial number corresponding with the number of the permit issued, shall be worn in a conspicuous place by the applicant to whom it is issued, and shall be exhibited upon demand of any officer authorized to examine the same. All badges shall be good only until December 31 following the date of issue and must be renewed annually on that date.

Such permit and badge shall be good only in the hands of the child to whom they are issued. No child shall transfer either a permit or badge to any other person, or use a permit or badge not issued to such child personally, as provided herein.
(C.O. 717-5; renumbered to C.M.C. 823-9, eff. Jan. 1, 1972)

Cross reference—Penalty, § 823-99.

Sec. 823-11. Sale or Delivery to Child Without Badge.

No person, firm or corporation shall sell or deliver any newspaper, magazine, periodical or shopping bag to any child not provided with a permit and badge in accordance with the provisions of this chapter.
(C.O. 717-6; renumbered to C.M.C. 823-11, eff. Jan. 1, 1972)

Cross reference—Penalty, § 823-99.

Sec. 823-13. Hours of Work.

Except on election days and on days when late extra editions of newspapers are printed following the regular editions, no child under 12 years of age shall engage in any street trades described in Section 823-3 later than 7 p.m., no child under 14 years of age later than 8;30 p.m., and no child under 16 years of age later than 11 p.m.
(C.O. 717-9; renumbered to C.M.C. 823-13, eff. Jan. 1, 1972)

Cross reference—Penalty, § 823-99.

Sec. 823-15. Revocation of Permit.

The permit of any child who, while using the permit, uses indecent or profane language, or commits any act of a disorderly or dishonest nature, or visits or loiters around saloons, or is seen intoxicated in the street or public thoroughfares, or who violates any of the provisions of this chapter or any of the ordinances of the city of Cincinnati, shall thereby be revoked, and such child shall immediately surrender the permit so revoked and badge upon the demand of any officer charged with the duty of enforcing such provisions.
(C.O. 717-12; renumbered to C.M.C. 823-15, eff. Jan. 1, 1972)

Sec. 823-99. Penalties.

Any child under 18 years of age who violates any of the provisions of this chapter shall be fined not more than $1 and any person 18 years of age or over, and every firm or corporation who knowingly violates or permits the violation of any of said provisions, shall be fined not more than $10 for each and every offense committed.
(C.O. 717-15; renumbered to C.M.C. 823-99, eff. Jan. 1, 1972)

Chapter 825

CIRCUSES*

Sec. 825. General.
Sec. 825-1. Application for License.
Sec. 825-3. Conditions for License.
Sec. 825-5. Time Limit.
Sec. 825-7. Circuses; License Fees.
Sec. 825-9. Festivals Fostered by Public Recreation Commission.
Sec. 825-99. Penalties.

*__Editor's note—__Ord. No. 315-2011, § 1, effective Nov. 19, 2011, changed the title of Ch. 825 from "Circuses and Carnivals" to "Circuses."

Sec. 825. General.

The operation of circuses and other similar forms of public entertainment shall be subject to the provisions of this chapter, except when held in a duly licensed theater. For purposes of this chapter, a "circus" shall mean a public performance of a travelling company of entertainers including, but not limited to, acrobats, clowns, trapeze artists, and trained animals.
(C.O. 714; renumbered to C.M.C. 825, eff. Jan. 1, 1972; a. Ord. No. 315-2011, § 1, eff. Nov. 19, 2011)

Sec. 825-1. Application for License.

An applicant for a license to operate a circus or similar form of public entertainment shall submit an application in writing to the city manager or person designated by the city manager, stating the dates of the performances, the location of the lot or place where the performances or exhibits are to be presented, and such other pertinent information as shall be required.

If an applicant for a license seeks to operate a circus or similar form of public entertainment for less than six consecutive days, the applicant shall file the application at least seven days prior to the first scheduled date of the event.

If an applicant for a license seeks to operate a circus or similar form of public entertainment for more than five consecutive days, the applicant shall file the application at least fourteen days prior to the first scheduled date of the event.
(C.O. 714-1; renumbered to C.M.C. 825-1, eff. Jan. 1, 1972; a. Ord. No. 92-1977, eff. March 23, 1977; a. Ord. No. 315-2011, § 1, eff. Nov. 19, 2011)

Cross reference—Penalty, § 825-99.

Sec. 825-3. Conditions for License.

No license under this chapter shall be issued by the city treasurer without the consent of the city manager or person designated by the city manager. Provided that the city manager or designee finds that the location of the proposed performances or exhibits is suitable for the purpose, that it will properly accommodate the proposed circus or similar public entertainment, and that the use of such location will not impose too great an additional burden upon the police and fire forces, the city manager or the designee shall authorize the issuance of a license.
(C.O. 714-2; renumbered to C.M.C. 825-3, eff. Jan. 1, 1972; a. Ord. No. 92-1977, eff. Mar. 23, 1977; a. Ord. No. 315-2011, § 1, eff. Nov. 19, 2011)

Sec. 825-5. Time Limit.

No circus or similar public entertainment shall be operated for more than five consecutive days, except in cases where a longer period shall have been approved in writing by the city manager or person designated by the city manager, upon application submitted by the applicant at least fourteen days prior to the first scheduled date of the event.
(C.O. 714-3; renumbered to C.M.C. 825-5, eff. Jan. 1, 1972; a. Ord. No. 315-2011, § 1, eff. Nov. 19, 2011)

Cross reference—Penalty, § 825-99.

Sec. 825-7. Circuses; License Fees.

The fees for the licenses issued under the provisions of this chapter shall be $25.00 per 100 seats, or fraction thereof, for each day's operation, the fee to be based upon the estimated number of seats furnished to the city treasurer by the division of buildings.

Nothing in this section shall be construed as applicable to a circus supported by charitable or fraternal organizations in a regular theater or auditorium.
(C.O. 714-6; a. Ord. No. 265-1962, eff. Aug. 4, 1962; a. Ord. No. 90-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 825-7, eff. Jan. 1, 1972; a. Ord. No. 327-1975, eff. Sept. 1, 1975;

a. Ord. No. 282-1979, eff. Sept. 1, 1979; Emer. Ord. 463-2010, § 31, eff. Dec. 30, 2010; a. Ord. No. 315-2011, § 1, eff. Nov. 19, 2011)

Sec. 825-9. Festivals Fostered by Public Recreation Commission.

The city manager or person designated by the city manager may authorize the issuance of a license, without the payment of any license fee, for the holding of a circus or similar public entertainment for not more than six consecutive days, where such circus or similar public entertainment is fostered by the public recreation commission, and the funds derived therefrom are expended under the supervision of the director of public recreation for recreational purposes.
(C.O. 714-8; renumbered to C.M.C. 825-9, eff. Jan. 1, 1972; a. Ord. No. 92-1977, eff. Mar. 23, 1977; a. Ord. No. 315-2011, § 1, eff. Nov. 19, 2011)

Sec. 825-99. Penalties.

Whoever violates any provision of this chapter shall be fined not more than $500.
(C.O. 714-10; renumbered to C.M.C. 825-99, eff. Jan 1, 1972; a. Ord. No. 315-2011, § 1, eff. Nov. 19, 2011)

Chapter 826

CONSUMER SALES PRACTICES

Sec. 826-1. Definitions.
Sec. 826-1-C. Consumer Transaction.
Sec. 826-1-C2. Consumer.
Sec. 826-1-K. Knowledge.
Sec. 826-1-P. Person.
Sec. 826-1-S1. Repealed.
Sec. 826-1-S2. Supplier.
Sec. 826-3. Deceptive or Unfair Acts or Practices Prohibited.
Sec. 826-5. Unconscionable Acts or Practices Prohibited.
Sec. 826-7. Duties of the Chief of the Consumer Protection Office.
Sec. 826-9. Rules and Regulations.
Sec. 826-11. Hearing Before and Orders by the Chief of the Consumer Protection Office.
Sec. 826-13. Legal Proceedings.
Sec. 826-15. Service of Notice.
Sec. 826-17. Exclusions.
Sec. 826-19. Severability.
Sec. 826-21. Conflict.
Sec. 826-99. Penalties.

Sec. 826-1. Definitions.

For the purpose of this chapter the words and phrases defined in the sections hereunder shall have the meanings herein respectively ascribed to them, unless a different meaning is clearly indicated by the context.
(C.M.C. 826-1: ordained by Ord. No. 196-1975. eff. Apr. 30. 1975)

Sec. 826-1-C. Consumer Transaction.

"Consumer transaction" means any oral or written agreement, sale, lease, assignment, award by chance, or other transfers of an item of goods, a service, a franchise, or an intangible, (except those transactions between persons, defined in sections 4905.03 and 5725.01 of the Ohio Revised Code, and their customers, or between attorneys or physicians and their clients or patients), to an individual for purposes that are primarily personal, family or household, or solicitation to supply any of these things.
(C.M.C. 826-1-C; ordained by Ord. No. 196-1975, eff. Apr. 30, 1975)

Sec. 826-1-C2. Consumer.

"Consumer" means a person who engages in a consumer transaction with a supplier.
(C.M.C. 826-1-C2; ordained by Ord. No. 196-1975, eff. Apr. 30, 1975)

Sec. 826-1-K. Knowledge.

"Knowledge" means actual awareness, but such actual awareness may be inferred where objective manifestations indicate that the individual involved acted with such awareness.
(C.M.C. 826-1-K; ordained by Ord. No. 196-1975, eff. Apr. 30, 1975)

Sec. 826-1-P. Person.

"Person" includes an individual, corporation, government, government subdivision or agency, business trust, joint stock company, estate, trust, partnership, association, cooperative, or any other legal entity, or their legal representatives, agents, assigns, employees or successors.
(C.M.C. 826-1-P; ordained by Ord. No. 196-1975, eff. Apr. 30, 1975)

Sec. 826-1-S1. Repealed.

(C.M.C. 826-1-S1; ordained by Ord. No. 258-1976, eff. June 9, 1976; r. Ord. No. 44-1986, eff. Feb. 27, 1986)

Sec. 826-1-S2. Supplier.

"Supplier" means a seller, lessor, assignor, franchisor, or other person engaged in the business of effecting or soliciting consumer transactions whether or not such person deals directly with the consumer.
(C.M.C. 826-1-S2; ordained by Ord. No. 196-1975, eff. Apr. 30, 1975; a. Ord. No. 258-1976, eff. June 9, 1976)

Sec. 826-3. Deceptive or Unfair Acts or Practices Prohibited.

No supplier shall with knowledge commit a deceptive or unfair act or practice in connection with a consumer transaction. Such deceptive act or practice by a supplier violates this section whether it occurs before, during or after the transaction.

Without limiting the scope of the foregoing, an act or practice of a supplier in representing any of the following is deceptive or unfair:

(a) That the subject of a consumer transaction has sponsorship, approval, performance characteristics, accessories, uses, or benefits it does not have;

(b) That the subject of a consumer transaction is of a particular standard, quality, grade, style, prescription, or model, if it is not;

(c) That the subject of a consumer transaction is new, or unused, if it is not;

(d) That the subject of a consumer transaction is available to the consumer for a reason that does not exist;

(e) That the subject of a consumer transaction has been supplied in accordance with a previous representation, if it has not, except that the act of a supplier in furnishing similar merchandise of equal or greater value as a good faith substitute does not violate this section.

(f) That the subject of a consumer transaction will be supplied in greater quantity, weight, or volume than it contains or is made up of, or than the supplier will deliver, does deliver or intends to deliver.

(g) That replacement or repair is needed, if it is not;

(h) That a specific price advantage exists, if it does not;

(i) That the supplier has a sponsorship, approval, or affiliation he does not have;

(j) That a consumer transaction involves or does not involve a warranty, a disclaimer of warranties, particular warranty terms, or other rights, remedies, or obligations if the representation is false;

(k) That goods or services will be supplied at an estimated price given to the consumer to induce the transaction when in fact the actual charges exceed the estimate by more than 10 percent, unless prior approval to exceed the estimate is given to the supplier by the consumer;

(l) That periodic payments for consumer goods may be easily made by a consumer when the supplier sets high payments in order to promote a default;

(m) That advertised goods and services are available when the supplier did not sell them as advertised;

(n) That advertised goods and services are available when the supplier did not intend to supply for a reasonably expectable public demand unless the advertisement disclosed a limitation of quantity.

(o) That a consumer will receive a rebate, discount, or other benefit as an inducement for entering into a consumer transaction in return for giving the supplier the names of prospective consumers, or otherwise helping the supplier to enter into consumer transactions, if earning the benefit is contingent upon an event occurring after the consumer enters into the transaction;

(p) That a salesman, representative or agent has authority to negotiate the final terms of a transaction with the consumer when no such authority exists;

(q) That the consumer transaction confers or involves rights, remedies or obligations that it does not have or involve or which are prohibited by law.

(C.M.C. 826-3; ordained by Ord. No. 196-1975, eff. Apr. 30, 1975)

Sec. 826-5. Unconscionable Acts or Practices Prohibited.

No supplier shall commit an unconscionable act or practice in connection with a consumer transaction. Such an unconscionable act or practice by a supplier violates this section whether it occurs before, during or after the transaction.

In determining whether an act or practice is unconscionable, the following circumstances shall be taken into consideration:

(a) Whether the supplier has knowingly taken advantage of the inability of the

consumer reasonably to protect such consumer's interests because of physical or mental infirmities, ignorance, illiteracy, or inability to understand the language of an agreement;

(b) Whether the supplier knew at the time the consumer transaction was entered into that the price was substantially in excess of the price at which similar property or services were readily obtainable in similar consumer transactions by like consumers;

(c) Whether the supplier knew at the time the consumer transaction was entered into of the inability of the consumer to receive a substantial benefit from the subject of the consumer transaction;

(d) Whether the supplier knew at the time the consumer transaction was entered into that there was no reasonable probability of payment of the obligation in full by the consumer;

(e) Whether the supplier required the consumer to enter into a consumer transaction on terms the supplier knew were substantially one-sided in favor of the supplier;

(f) Whether the supplier knowingly made a misleading statement of opinion on which the consumer was likely to rely to his detriment.

(C.M.C. 826-5; ordained by Ord. No. 196-1975, eff. Apr. 30, 1975)

Sec. 826-7. Duties of the Chief of the Consumer Protection Office.

(a) The chief of the consumer protection office shall supervise the execution and enforcement of all laws, rules and regulations pertaining to consumer affairs.

(b) The chief of the consumer protection office shall advise, inform, consult and cooperate by written agreement, approved by council, with federal, state and local agencies on the promotion of consumer protection.

(C.M.C. 826-7; ordained by Ord. No. 196-1976, eff. Apr. 30, 1975; a. Ord. No. 44-1986, eff. Feb. 27, 1986)

Sec. 826-9. Rules and Regulations.

(a) The chief of the consumer protection office, under the supervision and direction of the city manager or person designated by the city manager and after having held a public hearing affording interested persons an opportunity to be heard and with the approval of city council, may adopt, amend, or repeal substantive rules and regulations defining with reasonable specificity acts or practices which violate Sections 826-3 and 826-5 of this chapter. Such rules and regulations and amendments thereto and alterations thereof shall become effective after three successive publications in The City Bulletin.

(b) Prior to the adoption, amendment or alteration of any rule or regulation, the chief of the consumer protection office shall give at least 14 days' notice of intended action by publication in The City Bulletin setting forth the date, time and place of a public hearing and the contents of the proposed rules and regulations to be acted upon.

(C.M.C. 826-9; ordained by Ord. No. 196-1975, eff. Apr. 30, 1975; a. Ord. No. 92-1977, eff. Mar. 13, 1977; a. Ord. No. 44-1986, eff. Feb. 27, 1986)

Sec. 826-11. Hearing Before and Orders by the Chief of the Consumer Protection Office.

(a) Whenever the chief of the consumer protection office or person designated by such chief has reasonable cause to believe that a violation of this chapter exists or has occurred, written notice thereof may be served

upon the alleged violator, and by conference and consultation the chief may endeavor to mediate and arbitrate consumer complaints and persuade the violator to provide written assurance of voluntary compliance with this chapter. Such assurance of voluntary compliance shall not be considered as evidence of a violation of this chapter.

(b) If the alleged violator denies responsibility for acts complained of, and the chief of the consumer protection office or the designee is not able to obtain written assurance of voluntary compliance, or the written assurance of voluntary compliance is violated, the chief of the consumer protection office may conduct a hearing to determine whether a violation of this chapter exists. Notice of the hearing shall be served on the supplier in question at least 15 days prior to the hearing.

(c) The chief of the consumer protection office shall have the power to promulgate rules and regulations for the conduct of hearings under this article subject to approval by city council. In the conduct of the hearing authorized by this section, the chief of the consumer protection office shall have the power to subpoena witnesses, adduce evidence, and require the production of relevant material, and to conduct an orderly proceeding. The privilege of cross-examination shall be accorded all interested parties or their counsel.

(d) After due consideration of the evidence adduced at the hearing, or upon the default in answer or appearance of the respondent, the chief of the consumer protection office shall make such determinations and shall issue a cease and desist order as a final order if the chief of the consumer office finds that one or more violations of this chapter exist, which violations will be specifically stated in the order. The chief of the consumer protection office shall make and enter findings from the record and conclusions thereof which support the decision.

(e) The chief of the consumer protection office may grant a stay of the order for 10 days following the final decision pending the perfection of an appeal by the respondent pursuant to the Ohio Revised Code, Section 2506.01 et seq.

(f) The chief of the consumer protection office shall transmit a copy of the decision and findings by personal service or certified mail to the applicant and to other parties of record in the case requesting copies of the written decision.

Subsequent failure to comply with the terms of the cease and desist order is prima facie evidence of a violation of this chapter.
(C.M.C. 826-11; ordained by Ord. No. 196-1975, eff. Apr. 30, 1975; a. Ord. No. 461-1975, eff. Oct. 24, 1975; a. Ord. No. 258-1976, eff. June 9, 1976; a. Ord. No. 44-1986, eff. Feb. 27, 1986)

Sec. 826-13. Legal Proceedings.

All legal actions to enforce this chapter shall be brought by the office of consumer protection in conjunction with the city solicitor. In addition to recovery of fines as provided by this chapter, actions may be brought for injunctive relief in any court of competent jurisdiction to restrain a person from violating this chapter and to restrain a merchant from engaging in unfair, deceptive, fraudulent or unconscionable conduct with consumers.
(C.M.C. 826-13; ordained by Ord. No. 196-1975, eff. Apr. 30, 1975; a. Ord. No. 44-1986, eff. Feb. 27, 1986)

Sec. 826-15. Service of Notice.

Service of any written notice or orders issued pursuant to this chapter shall be by certified mail, return receipt requested, directed to the last known address of the person to be notified, or delivered personally.
(C.M.C. 826-15; ordained by Ord. No. 196-1975, eff. Apr. 30, 1975)

Sec. 826-17. Exclusions.

Chapter 826 of the Cincinnati Municipal Code does not apply to:

(a) An act or practice required or specifically permitted by or under federal or state law, or by or under other chapters of the Cincinnati Municipal Code.

(b) A publisher, broadcaster, printer, or other person engaged in the dissemination of information or the reproduction of printed or pictorial matter insofar as the information or matter has been disseminated or reproduced in behalf of others without knowledge that it violated Chapter 826 of the Cincinnati Municipal Code.

(c) Claims for personal injury or death, or claims for damages to property other than the property that is the subject of the consumer transaction unless otherwise specifically provided.

(C.M.C. 826-17; ordained by Ord. No. 196-1975, eff. Apr. 30, 1975)

Sec. 826-19. Severability.

If any clause, sentence, paragraph or part of this chapter, or the application thereof to any person or circumstances shall for any reason be adjudged by a court of competent jurisdiction to be unconstitutional or invalid, such judgment shall not affect, impair or invalidate the remainder of this chapter and the application of such provisions to other persons or circumstances, but shall be confined in its operation to the controversy in which such judgment shall have been rendered and to the person, firm, corporation, or circumstances involved. It is hereby declared to be the legislative intent of this body that this chapter would have been included.

(C.M.C. 826-19; ordained by Ord. No. 196-1975, eff. Apr. 30, 1975)

Sec. 826-21. Conflict.

In the event of a conflict between any provision of this chapter and any other ordinances of the city of Cincinnati, the provisions of this chapter shall prevail with the exception of ordinances whose standards are more restrictive than those set out in this chapter.

(C.M.C. 826-21; ordained by Ord. No. 196-1975, eff. Apr. 30, 1975)

Sec. 826-99. Penalties.

No person shall violate nor participate in the violation of any of the provisions of this chapter.

Whoever violates the provisions of this chapter shall be guilty of a second degree misdemeanor.

(C.M.C. 826-99; ordained by Ord. No. 196-1975, eff. Apr. 30, 1975; a. Ord. No. 258-1976, eff. June 9, 1976)

Chapter 827

CONSUMER SALES AND CONTRACTS

Sec. 827-1. Home Solicitation Sale Defined.
Sec. 827-3. Right to Cancel.
Sec. 827-5. Form of Agreement; Statement of Buyer's Rights; Disclosures.
Sec. 827-7. Restoration of Down Payment.
Sec. 827-9. Duty of Buyer; No Compensation for Services Prior to Cancellation.
Sec. 827-11. Telephone Solicitation Sales.
Sec. 827-13. Referral Sales.
Sec. 827-15. Purpose and Interpretation.
Sec. 827-17. Unconstitutionality; Severability.
Sec. 827-99. Penalties.

Sec. 827-1. Home Solicitation Sale Defined.

"Home solicitation sale" shall mean a consumer credit sale of goods or services in which the seller or a person acting for the seller engages in a personal solicitation of the sale at a residence of the buyer and the buyer's agreement or offer to purchase is there given to the seller or a person acting for the seller. It does not include a sale made pursuant to a pre-existing charge account, or a sale made pursuant to prior negotiations between the parties at a business establishment at a fixed location where goods or services are offered or exhibited for sale. "Personal solicitation" shall be deemed to include solicitation by telephone call to the buyer's residence.

(C.M.C. 827-1; ordained by Ord. No. 351-1972, eff. Aug. 5, 1972)

Not analogous to former C.M.C. 827-1; r. Ord. No. 163-1972, eff. May 19, 1972.

Sec. 827-3. Right to Cancel.

(a) Except as provided in subsection (e) in addition to any right otherwise to revoke an offer, the buyer has the right to cancel a home solicitation sale until midnight of the third business day after the day on which the buyer signs an agreement or offer to purchase which complies with this part.

(b) Cancellation occurs when the buyer gives written notice of cancellation to the seller at the address stated in the agreement or offer to purchase.

(c) Notice of cancellation, if given by mail, is given when it is deposited in a mailbox properly addressed and postage prepaid.

(d) Notice of cancellation given by the buyer need not take a particular form and is sufficient if it indicates by any form of written expression the intention of the buyer not to be bound by the home solicitation sale. Retention by the buyer of a copy of the written notice and notation of the date of mailing thereon should be prima facie evidence of cancellation.

(e) The buyer may not cancel a home solicitation sale if the buyer requests the seller to provide goods or services without delay because of an emergency, and

(1) the seller in good faith makes a substantial beginning of performance of the contract before the buyer gives notice of cancellation, and

(2) in the case of goods, the goods cannot be returned to the seller in substantially as good condition as when received by the buyer.

(f) If a home solicitation sale is also subject to any other right to rescind certain transactions, the buyer may proceed either under those rights or under the provisions of this chapter.

(C.M.C. 827-3; ordained by Ord. No. 351-1972, eff. Aug. 5, 1972)

Not analogous to former C.M.C. 827-3; r. Ord. No. 163-1972, eff. May 19, 1972.

Sec. 827-5. Form of Agreement; Statement of Buyer's Rights; Disclosures.

(a) In a home solicitation sale, unless the buyer requests the seller to provide goods or services without delay in an emergency, the seller must present to the buyer and obtain buyer's signature to a written agreement or offer to purchase which designates as the date of the transaction the date on which the buyer actually signs and contains a statement of the buyer's rights which complies with subsection (b).

(b) The statement must:

(1) appear under the conspicuous caption: "BUYER'S RIGHT TO CANCEL," and

(2) read as follows: "If this agreement was solicited at your residence and you do not want the goods or services, you may cancel this agreement by mailing a notice to the seller. The notice must say that you do not want the good or services and must be mailed before midnight of the third business day after you sign this agreement. This notice must be mailed to:

_____

(insert name and mailing address of seller)"

(C.M.C. 827-5; ordained by Ord. No. 351-1972, eff. Aug. 5. 1972)

Sec. 827-7. Restoration of Down Payment.

(a) Except as provided in this section, within 10 days after a home solicitation sale has been cancelled or an offer to purchase has been revoked the seller must tender to the buyer any payments made by the buyer and any note or other evidence of indebtedness.

(b) If the down payment includes goods traded in, the goods must be tendered in substantially as good condition as when received by the seller. If the seller fails to tender the goods as provided by this section, the buyer must elect to recover an amount equal to the trade-in allowance stated in the agreement.

(c) Until the seller has complied with the obligations imposed by this section the buyer may retain possession of goods delivered by the seller and has a lien on the goods in buyer's possession or control for any recovery to which buyer is entitled.

(d) In all events after cancellation or revocation of an offer to purchase buyer shall not be liable for any finance or any other charges and any security interest given by or on behalf of the buyer shall become void.

(C.M.C. 827-7; ordained by Ord. No. 351-1972, eff. Aug. 5, 1972)

Sec. 827-9. Duty of Buyer; No Compensation for Services Prior to Cancellation.

(a) Except as provided by the provisions on retention of goods by the buyer (subsection (c) of Section 827-7), within a reasonable time after a home solicitation sale has been cancelled or an offer to purchase revoked, the buyer upon demand must tender to the seller any goods delivered by the seller pursuant to the sale but buyer is not obligated to tender at any place other than buyer's residence. If the seller fails to demand possession of goods within a reasonable time after cancellation or revocation, the goods become the property of the buyer without obligation to pay for them. For the purpose of this section, 20 days is presumed to be a reasonable time.

(b) The buyer has a duty to take reasonable care of the goods in buyer's possession before cancellation or revocation and for a reasonable time thereafter, during which time the goods are otherwise at the seller's risk.

(c) If the seller has performed any services pursuant to a home solicitation sale prior to its cancellation, the seller is entitled to no compensation except the cancellation fee provided in this part.

(C.M.C. 827-9; ordained by Ord No. 351-1972, eff. Aug. 5, 1972)

Sec. 827-11. Telephone Solicitation Sales.

Any sale or contract of sale which results from a telephone solicitation made by or on behalf of the seller or by the buyer in response to advertising by or on behalf of the seller shall not be valid unless the advertisement or telephone solicitation gives notice to the buyer of the right to cancel the sale after receipt or inspection of the goods.

Provided, however, nothing in this section shall be interpreted in any way as limiting or affecting the rights of a buyer under any other provision of this chapter, but it shall be

deemed as granting additional protection to the buyer. Nor shall this section be interpreted as limited by any provision of any other section of this chapter.

Sales in which goods are delivered "collect" shall not deprive the buyer of the right to cancel the sale as provided in this chapter and recover the price paid.
(C.M.C. 827-11; ordained by Ord. No. 361-1972, eff Aug. 5, 1972)

Sec. 827-13. Referral Sales.

With respect to a consumer sale, credit sale, sales contract or lease the seller or lessor may not give or offer to give a rebate or discount or otherwise pay or offer to pay value to the buyer or lessee as an inducement for a sale or lease in consideration of giving to the seller or lessor the names of prospective purchasers or lessees, or otherwise aiding the seller or lessor in making a sale or lease to another person, if the earning of the rebate, discount or other value is contingent upon the occurrence of an event subsequent to the time the buyer or lessee agrees to buy or lease.

If a buyer or lessee is inducted by a violation of this section to enter into a consumer sale, credit sale, sales contract or lease, the agreement is unenforceable by the seller or lessor and the buyer or lessee, at their option, may rescind the agreement or retain the goods delivered and the benefit of any services performed, without any obligation to pay for them.
(C.M.C. 827-13; ordained by Ord. No. 351-1972, eff. Aug. 5, 1972)

Sec. 827-15. Purpose and Interpretation.

The purpose of this chapter is to grant aid and assistance to consumers in the city of Cincinnati in regard to sales, contracts, and transactions involving consumer goods and services and the provisions thereof shall be so interpreted as to carry out that purpose. In case of question involving interpretation of the provisions of this chapter, to the fullest extent possible such question shall be resolved so as to benefit the buyer or consumer.
(C.M.C. 827-15; ordained by Ord. No. 351-1972, eff. Aug. 5, 1972)

Sec. 827-17. Unconstitutionality; Severability.

Should any section of this chapter or any part of any section be declared to be unconstitutional or invalid, such decision shall not affect the validity of other sections or any part thereof not so declared unconstitutional or invalid, and the remainder of this chapter shall remain in full force and effect as though the portion declared unconstitutional or invalid did not exist.
(C.M.C. 827-17; ordained by Ord. No. 351-1972, eff. Aug. 5, 1972)

Sec. 827-99. Penalties.

No person shall violate the provisions of Section 827-5, 827-7, 827-9 or 827-13 of this chapter.

Whoever violates Section 827-5, 827-7, 827-9 or 827-13 shall be fined no more than $50.
(C.M.C. 827-99; ordained by Ord. No. 351-1972, eff. Aug. 5, 1972)

Not analogous to former C.M.C. 827-99; r. Ord. No. 163-1972, eff. May 19, 1972.

Chapter 828

RENTAL AGENCIES

Sec. 828-1. Definitions.
Sec. 828-2-C. Consumer.
Sec. 828-1-C1. Consumer Transaction.
Sec. 828-1-L. Landlord.
Sec. 828-1-R. Rental Agency.
Sec. 828-1-R1. Rental Property.
Sec. 828-3. Prohibited Acts and Practices.
Sec. 828-5. Consumer's Relief.
Sec. 828-7. Action by the Solicitor.
Sec. 828-99. Penalties.

Sec. 828-1. Definitions.

For the purpose of this chapter the words and phrases defined in the sections hereunder shall have the meanings herein respectively ascribed to them, unless a different meaning is clearly indicated by the context.
(C.M.C. 828-1; ordained by Ord. No. 577-1975, eff. Dec. 10, 1975)

Sec. 828-2-C. Consumer.

"Consumer" for the purpose of this chapter, means a person who engages in a consumer transaction with a rental agency.
(C.M.C. 828-2-C; ordained by Ord. No. 577-1975, eff. Dec. 10, 1975)

Sec. 828-1-C1. Consumer Transaction.

"Consumer transaction" means any oral or written agreement, sale, lease, assignment, award by chance or other transfers of an item of goods, a service, a franchise, or an intangible, to an individual for purposes that are primarily personal, family or household, or solicitation to supply any of these things.
(C.M.C. 828-1-C1; ordained by Ord. No. 577-1975, eff. Dec. 10, 1975)

Sec. 828-1-L. Landlord.

"Landlord" means the owner or a rental property or any other person authorized or empowered to rent such rental property to others.
(C.M.C. 828-1-L; ordained by Ord. No. 577-1975, eff. Dec. 10, 1975)

Sec. 828-1-R. Rental Agency.

"Rental agency" means any individual, partnership, firm, corporation, company, society, association, or other group or organization whether or not organized for profit who for compensation collects and offers for sale information concerning rental property.
(C.M C. 828-1-R, ordained by Ord. No. 577-1975, eff. Dec. 10, 1975)

Sec. 828-1-R1. Rental Property.

"Rental property" includes, for the purposes of this chapter, any residential dwelling unit which is offered for rent.
(C.M.C. 828-1-R1; ordained by Ord. No. 577-1975, eff. Dec. 10, 1975)

Sec. 828-3. Prohibited Acts and Practices.

It is unlawful for any rental agency, agent, or employee to advertise, or otherwise solicit consumers for the rental agency business within the city of Cincinnati unless:

(a) The rental agency does not require payment by a consumer of any charge or fee at any time prior to the consumer's entering into a rental agreement or lease with a landlord as a result of information provided by the rental agency and posts a conspicuous sign in the rental agency office in an area in which the agency conducts business with consumers stating that no fee may be collected until the consumer has entered into a rental agreement or lease as a result of the agency's provision of rental information; or

(b) The following procedures are followed:

1. The agency's agreement with each customer is evidenced by a written, dated contract which contains the following notice:

BUYER'S RIGHT TO REFUND

If you, the buyer, fail to rent housing as a result of information provided by _____, you will receive a refund by presenting or mailing to _____ a signed, dated statement that you have failed to rent housing as a result of its information. This statement must be mailed no sooner than 30 and no later than 60 days after the

signing of this contract. Within seven days of receiving your refund request, _____ will refund to you at least 75 percent of the total contract price retaining no more than 25 percent or $10, whichever is smaller, as a service charge.

Such notice must be placed conspicuously on the contract, which may contain nothing contrary to or in mitigation of the notice. The blank spaces shall be filled with the name of the agency. AND

2. The agency, after at least 30 days following a consumer transaction and upon receipt of that consumer's request for a refund, provides to the consumer a refund within seven days of receipt of that request. The agency may retain no more than 25 percent of the fee paid or $10, whichever is smaller. AND
3. The agency posts a conspicuous sign in its place of business in any area in which the agency transacts business with consumers fully explaining the agency's refund procedures in compliance with this chapter. AND
4. The agency has posted with the city treasurer a good and sufficient bond in the sum of $10,000 which shall be conditioned to indemnify any purchasers who suffer any loss by reason of the rental agency's failure to provide refunds to consumers in accordance with this chapter or ceasing doing business without fulfilling contractual obligations to consumers.

(C.M.C. 828-3; ordained by Ord. No. 577-1975, eff. Dec. 10, 1975; a. Ord. No. 257-1976, eff. July 9, 1976)

Sec. 828-5. Consumer's Relief.

For violation of 828-3 of the Cincinnati Municipal Code, the consumer may rescind the transaction or recover the consumer's actual damages in a civil action.

(C.M.C. 828-5; ordained by Ord. No. 577-1975, eff. Dec. 10, 1975)

Sec. 828-7. Action by the Solicitor.

The city solicitor may bring an action to obtain a declaratory judgment that an act or practice violates Section 828-3 of the Cincinnati Municipal Code or to enjoin a rental agency which is violating the section.

(C.M.C 828-7; ordained by Ord. No. 577-1975, eff. Dec. 10, 1975)

Sec. 828-99. Penalties.

No rental agency, agent, or employee shall violate nor participate in the violation of any of the provisions of this chapter. Whoever violates the provisions of this chapter shall be guilty of a second degree misdemeanor.

Each transaction that violates any provision of this chapter shall constitute a separate violation of this chapter.

(C.M.C. 828-99; ordained by Ord. No. 577-1975, eff. Dec. 10, 1975; a. Ord. No. 257-1976, eff. July 9, 1976)

Chapter 829

DANCE HALLS

Sec. 829-1. Definitions.
Sec. 829-1-P. Public Dance; Public Ball.
Sec. 829-1-P1. Public Dance Hall.
Sec. 829-3. Unlawful Operation of Dance Hall.
Sec. 829-5. Dance Hall License Fees.
Sec. 829-7. Requirements to License.
Sec. 829-9. License Shall Not Be Issued.
Sec. 829-11. Applicant to be of Good Moral Character.
Sec. 829-13. Police to Have Access.
Sec. 829-15. Revocation of License.
Sec. 829-17. Educational Institutions Exempt.
Sec. 829-19. Bona Fide Clubs Exempt.
Sec. 829-21. Public Recreation Commission and Park Board Activities.
Sec. 829-23. Rules and Regulations.
Sec. 829-97. Appeal of the City Manager or the City Manager's Designee's Decision.
Sec. 829-99. Penalties.

Sec. 829-1. Definitions.

For the purpose of this chapter the words and phrases defined in the sections hereunder shall have the meanings therein respectively ascribed to them, unless a different meaning is clearly indicated by the context.
(C.O. 715-1; renumbered to C.M.C. 829-1, eff. Jan. 1, 1972)

Sec. 829-1-P. Public Dance; Public Ball.

"Public dance" or "public ball" shall mean any dance or ball to which admission may be obtained by the payment of a fee or cover charge, or equivalent, or by the purchase, possession or presentation of a ticket or taken, or any other dance to which the public generally may gain admission, with or without the payment of a fee.
(C.O. 715-1; renumbered to C.M.C. 829-1-P, eff. Jan. 1, 1972)

Sec. 829-1-P1. Public Dance Hall.

"Public dance hall" shall mean any room, place or space in which a public dance or public ball shall be held.
(C.O. 715-1; renumbered to C.M.C. 829-1-P1, eff. Jan. 1, 1972)

Sec. 829-3. Unlawful Operation of Dance Hall.

No person shall hold any public dance or public ball or permit any premises or property that is either owned by or under that person's custody, control or supervision to be used to hold any public dance or public ball unless the dance hall in which it is to be held has been previously licensed for such purpose. The license shall be issued by the city treasurer with the approval and consent of the city manager or person designated by the city manager, and the fee therefor shall be paid at the time of issuance.

No person shall hold a public dance or public ball or permit any premises or property that is either owned by or under that person's custody, control or supervision to be used to hold any public dance or public ball between the hours of 1:30 a.m. and 6:00 a.m. where individuals under the legal age in Ohio for consuming beer and intoxicating liquor are present.
(C.O. 715-2; renumbered to C.M.C. 829-3, eff. Jan. 1, 1972; a. Ord. No. 92-1977, eff. Mar. 23, 1977; a Ord. No. 289-1988, eff. Aug. 3, 1988; a. Ord. No. 40-2006, § 1, eff. Mar. 17, 2006)

Cross reference—Penalty, § 829-99.

Sec. 829-5. Dance Hall License Fees.

Every application for a license to operate a dance hall shall be accompanied by a nonrefundable application fee of $50.00. Upon approval, license fees for dance halls shall be payable on the basis of floor space as follows:

(a) For 1,000 square feet or less, $500.00 per year, or $100.00 per single dance.

(b) More than 1,000 square feet, nor more than 2,000 square feet, $785.00 per year, or $125.00 per single dance.

(c) More than 2,000 square feet, not more than 3,000 square feet, $1,175.00 per year, or $150.00 per single dance.

(d) More than 3,000 square feet, not more than 4,000 square feet, $1,500.00 per year, or $175.00 per single dance.

(e) More than 4,000 square feet, not more than 5,000 square feet, $1,900.00 per year, or $200.00 per single dance.

(f) More than 5,000 square feet, not more than 6,000 square feet, $2,200.00 per year, or $225.00 per single dance.

(g) More than 6,000 square feet, $2,400 per year or $250.00 per single dance.

In computing floor space, only that portion of the floor actually used for dancing shall be

considered. Annual licenses granted under this chapter shall expire on February 15 next after date of issuance.
(C.O. 715-3; a. Ord. No. 265-1962, eff. Aug. 4, 1962; a. Ord. No. 90-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 829-5, eff. Jan. 1, 1972; a. Ord. No. 327-1975, eff. Sept. 1, 1975; a. Ord. No. 282-1979, eff. Sept. 1, 1979; Emer. Ord. 463-2010, § 33, eff. Dec. 30, 2010)

Sec. 829-7. Requirements to License.

No person shall be licensed to operate a dance hall if he has been convicted within the preceding ten years of a felony or if he has been convicted within the preceding five years of a misdemeanor involving moral turpitude. No license shall be issued to a firm or corporation if any officer of the firm or corporation has been convicted within the preceding ten years of a felony or if any officer has been convicted within the preceding five years of a misdemeanor involving moral turpitude.

No license to operate a dance hall shall be issued without the written approval of the department of buildings and inspections and the fire division indicating the building is constructed and maintained in strict accordance with all laws, ordinances and regulations governing the erection, maintenance and conduct of buildings used for such purpose. No application for renewal of an existing license shall be approved if prior to the expiration of the existing license the department of buildings and inspections or the fire division notifies the city treasurer in writing that the building is not constructed or maintained in strict accordance with all laws, ordinances and regulations governing the erection, maintenance and conduct of buildings used for such purpose.

No license to operate a dance hall shall be issued until notice has been given to all property owners within 300 feet of the dance hall premises and to the community council of the area where the dance hall premises are located, at least 30 days prior to the license issuance. Such notice shall request from the property owners and community council information as to whether the issuance of the dance hall license will prejudice public decency, morals or good order, or will disturb the peace and quiet of the surrounding neighborhood.
(C.O. 715-5; renumbered to C.M.C. 829-7, eff. Jan. 1, 1972; a. Ord. No. 237-1979, eff. June 6, 1979; a. Ord. No. 93-1991, eff. Apr. 12, 1991; Emer. Ord. No. 238-2015, § 13, eff. July 1, 2015)

Sec. 829-9. License Shall Not Be Issued.

The city manager or person designated by the city manager shall not give consent to the issuance of a dance hall license when it appears, after an investigation has been conducted by the police, fire, and planning and building departments, or their respective successor department, that the issuance of the dance hall license will substantially prejudice public decency, morals, or good order, or will disturb the peace and quiet of surrounding neighborhood, or the operation of a dance hall license at the permit premises may cause significant risk to public safety, health, or welfare.
(Sec. 715-6; ordained by Ord. No. 367-1960, eff. Oct. 19, 1960; renumbered to C.M.C. 829-9, eff. Jan. 1, 1972; a. Ord. No. 92-1977, eff. Mar. 23, 1977; a. Ord. No. 029-2012, § 1, eff. March 15, 2012)

Sec. 829-11. Applicant to be of Good Moral Character.

The city manager or person designated by the city manager shall not issue a license until satisfied that the person applying for the license is a reputable person of good moral character.
(C.O. 715-7; renumbered to C.M.C. 829-11, eff. Jan. 1, 1972; a. Ord. No. 92-1977, eff. Mar. 23, 1977)

Sec. 829-13. Police to Have Access.

The city manager, the city manager's designee and city police officers shall at all times have access to any premises licensed to conduct a public dance.
(Sec. 715-8; ordained by Ord. No. 367-1960, eff. Oct. 19, 1960; renumbered to C.M.C. 829-13, eff. Jan. 1, 1972; a. Ord. No. 92-1977, eff. Mar. 23, 1977)
Cross reference—Penalty, § 829-99.

Sec. 829-15. Revocation of License.

The license of any public dance hall may be forfeited, revoked, or denied reissuance by the city manager or city manager designee for disorderly or immoral conduct on the premises, or for violation of any of the rules, regulations, ordinances and laws governing or applying to public dance halls or public dance, or if the city manager or the designee finds that the further maintenance of any public dance hall or public dance does prejudice public decency, morals or good order, is a disturbance to the peace and quiet of the surrounding neighborhood, or the operation of a dance hall license at the permit premises causes a significant risk to public safety, health, or welfare; the license of such public dance hall or public dance shall be revoked without refund, or the reissuance of a license of such public dance hall or public dance upon expiration of the dance hall license shall be refused. Upon application for renewal, the police, fire, and buildings and inspections departments, or the successor department(s), shall review the dance hall facility and its operations, and report their findings to the city manager or the city manager designee.

If, at any time, the license of a public dance hall or public dance shall be forfeited or revoked or the holder of a dance hall license shall be found to be or have been in violation of any of the rules and regulations, at least six months shall elapse before another license or permit for dancing may be issued to the holder or to any individual associated with a corporation which applied for and received the dance hall license, if the holder is a corporation.
(C.O. 715-9; a. Ord. No. 367-1960, eff. Oct. 19, 1960; renumbered to C.M.C. 829-15, eff. Jan. 1, 1972; a. Ord. No. 92-1977, eff. Mar. 23, 1977; a. Ord. No. 250-1993, eff. July 8, 1993; a. Ord. No. 029-2012, § 3, eff. March 15, 2012; Emer. Ord. No. 238-2015, § 14, eff. July 1, 2015)

Sec. 829-17. Educational Institutions Exempt.

The provisions of this chapter shall not apply to schools, academies, colleges or other educational institutions.
(C.O. 715-9; a. Ord. No. 367-1960, eff. Oct. 19, 1960; renumbered to C.M.C. 829-17, eff. Jan. 1, 1972)

Sec. 829-19. Bona Fide Clubs Exempt.

The provisions of this chapter shall not apply to bona fide clubs, fraternal orders or societies conducting dances where admission is restricted to members of such clubs, orders or societies and families of members, whether held on their own premises or in a hall leased or donated for the purpose.
(C.O. 715-11; renumbered to C.M.C. 829-19. eff. Jan. 1, 1972)

Sec. 829-21. Public Recreation Commission and Park Board Activities.

Dances conducted by the public recreation commission or board of park commissioners and held on public property must comply with all ordinances and regulations specified herein, but will not be required to pay a license fee.

If, however, either the public recreation commission or board of park commissioners

shall lease any of their facilities to any private individual or organization for purposes of conducting public dances, the lessee shall be required to comply with all provisions of this chapter, including the payment of license fee herein provided.
(C.O. 715-12; renumbered to C.M.C. 829-21, eff. Jan. 1, 1972)

Sec. 829-23. Rules and Regulations.

The city manager or city manager's designee shall promulgate a set of rules and regulations describing the procedures to be observed by any such licensee. These rules shall provide specific procedures to be followed for "teen dances" to include rules as to age limits, ending times, security requirements, notice to potentially affected neighborhoods, parking and pick-up areas, and identification of attendees.

A "teen dance" is defined for the purposes of this chapter, as any dance which is directed to and promoted for individuals under the age of 18.

The city manager or city manager's designee shall have the authority to change such rules and regulations when safety concerns and the public peace so require.
(Ordained by Ord. No. 250-1993, eff. July 8, 1993)

Sec. 829-97. Appeal of the City Manager or the City Manager's Designee's Decision.

(a) Any denial of a dance hall license or revocation or denial of a reissuance of a dance hall license under this chapter is subject to appeal to the office of administrative hearings by filing a written notice of appeal within thirty (30) days after issuance of written notice by the city manager or the city manager designee denying a dance hall license or revoking or denying a reissuance of a dance hall license.

(b) A hearing shall be conducted by a hearing officer from the office of administrative hearings within thirty (30) days after such written notice of appeal is filed and a decision by the hearing officer shall be rendered no later than forty-five (45) days after the filing of the written notice of appeal. The enforcement of this section shall be stayed pending any appeal related to the revocation or denial of reissuance of a dance hall license.

(c) Appeals of the hearing officer's decision may be taken to the Hamilton County Court of Common Pleas as allowed by law.
(Ordained by Ord. No. 029-2012, § 5, eff. March 15, 2012)

Sec. 829-99. Penalties.

Whoever violates Sections 829-3 or 829-13 or the rules and regulations promulgated by the city manager or city manager's designee under Section 829-23 of this chapter shall be guilty of a misdemeanor of the fourth degree. If the offender has within one year been convicted of a previous violation of this chapter, then the violation shall be a misdemeanor of the first degree.
(C.O. 715-15; a. Ord. No. 414-1970, eff. Dec. 23, 1970; renumbered to C.M.C. 829-99, eff. Jan. 1, 1972; a. Ord. No. 133-1991, May 10, 1991; a. Ord. No. 40-2006, § 2, eff. Mar. 17, 2006)

Chapter 831

DEALERS IN AUTOMOBILES

Sec. 831-1. Dealers in Used Automobiles; License Fees.
Sec. 831-3. Repealed.
Sec. 831-5. Record of Identifying Marks.
Sec. 831-99. Penalties.

Sec. 831-1. Dealers in Used Automobiles; License Fees.

No person, firm or corporation, located either completely or partially in the city of Cincinnati, shall engage in the business of buying, selling or taking in trade operable used automobiles without first having obtained a license as a used automobile dealer, as hereinafter provided. For the purpose of this chapter the term "used automobile dealer" shall mean any person, firm or corporation exclusively engaged in the business of buying, selling or taking in trade operable automobiles, which were previously owned by another person, firm or corporation, for resale in operable condition by the dealer to another person, firm or corporation in substantially the same form as when originally received by the dealer.

Except as otherwise provided, the city treasurer shall, on request, issue to any reputable person, firm or corporation, a license to engage in the business of buying and selling used automobiles upon payment of a license fee for the calendar year in the sum of $150.00 for each place at which such business is conducted. Before an original license is issued under this chapter, the person seeking the license shall make application therefor with the city treasurer, and the applicant shall attach to the application an accurate plot plan of the area, showing the actual shape and dimensions of the lot or area to be used in the sale of used automobiles. The city treasurer shall not issue a license to any person, firm or corporation for any location which in the treasurer's opinion is being operated or maintained as a motor vehicle salvage lot or junk yard. The city treasurer's opinion in this matter shall be based upon a visual inspection of the premises by a designated city employee, a review of the sale records of the applicant at the given location, and the definition of junk yard and motor vehicle salvage lot as set forth in Section 846-1 and 843-1 of the code. Any person, firm or corporation operating a used automobile dealership within the fenced portion of any junk yard or motor vehicle salvage lot shall not be required to obtain a license as a used automobile dealer.

No original license application shall be acted upon by the city treasurer until the application has been approved by the city engineer and the director of buildings and inspections, showing that the applicant has complied with all city ordinances and rules regarding zoning, drains, signs, driveways and barrier curbs.

Approval by the city engineer and the director of buildings and inspections will not be necessary for the renewal of a license. However, the city treasurer shall be empowered to suspend or revoke any license when it is shown that the licensee has not complied with all city ordinances and rules regarding zoning, drains, signs, driveways and barrier curbs, and the city treasurer shall also be empowered to suspend or revoke an existing license when in the treasurer's opinion the location at which the license is granted is being used as a motor vehicle salvage lot or junk yard, without the proper fence having been erected according to the provisions of Sections 846-7 and 843-7 of the code.
(C.O. 721-1; a. Ord. No. 391-1960, eff. Dec. 16, 1960; a. Ord. No. 23-1961, eff. Feb. 10, 1961; a. Ord. No. 265-1962, eff. Aug 4, 1962; a. Ord. No. 90-1969, eff. Apr. 1, 1969; a. Ord. No. 436-1969, eff. Jan. 15, 1970; renumbered to C.M.C. 831-1, eff. Jan. 1, 1972; a. Ord. No. 327-1975, eff. Sept. 1, 1975; a. Ord. No. 282-1979, eff. Sept. 1, 1979; Emer. Ord. 463-2010, § 35, eff. Dec. 30, 2010)

Cross reference—Penalty, § 831-99.

Sec. 831-3. Repealed.

(C.O. 721-2; renumbered to C.M.C. 831-3, eff. Jan. 1, 1972; r. Ord. No. 452-1982, eff. Nov. 26, 1982)

Sec. 831-5. Record of Identifying Marks.

Dealers in new and used automobiles, taking used automobiles in trade as part payment on the price of new automobiles, shall make a record of the motor number, the factory number, the body number, color, type and model, and other marks of identification of any such used automobiles, also the full name and place of residence of the person trading in such used car, together with the state license tag, number and data identifying the bill of sale or other evidence of title required by law. The dealer shall preserve such record for the period of 90 days after the completion of the sale, and such record shall be available to police officers, on demand, at all times.
(C.O. 721-3; renumbered to C.M.C. 831-5, eff. Jan. 1, 1972)

Cross reference—Penalty, § 831-99.

Sec. 831-99. Penalties.

Whoever violates, directly or indirectly, any provisions of this chapter, shall be fined not more than $500; and it shall be the duty of the city treasurer, upon the second conviction of any such person, firm or corporation, to revoke the license granted hereunder.
(C.O. 721-4; renumbered to C.M.C. 831-99, eff. Jan. 1, 1972)

Chapter 833

DISTRESS MERCHANDISE SALES

Sec. 833-1. Definitions.
Sec. 833-1-D. Distress Merchandise Sale.
Sec. 833-1-P. Person.
Sec. 833-3. License Required.
Sec. 833-5. Application for License.
Sec. 833-7. Bond Required.
Sec. 833-9. Investigation of Application; Grounds for Denial of License.
Sec. 833-11. Hiring of Examiners.
Sec. 833-13. Issuance of License.
Sec. 833-15. Revocation of License.
Sec. 833-17. Renewal of License.
Sec. 833-19. License Fees.
Sec. 833-21. Exceptions.
Sec. 833-99. Penalties.
Sec. 833-99-A. Violation of Section 833-5 or 833-11.

Sec. 833-1. Definitions.

For the purpose of this chapter the words and phrases defined in the sections hereunder shall have the meanings therein respectively ascribed to them, unless a different meaning is clearly indicated by the context.
(C.O. 751-1; renumbered to C.M.C. 833-1, eff. Jan. 1, 1972)

Sec. 833-1-D. Distress Merchandise Sale.

"Distress merchandise sale" shall mean any offer to sell to the public, or sale to the public, of goods, wares or merchandise on the implied or direct representation that such sale is in anticipation of the termination of a business at its present location, or that the sale is being held other than in the ordinary course of business. Without limiting the generality of the above, distress merchandise sales shall include any sale advertised either specifically or in substance to be a "fire sale," "smoke and water damage sale," "adjustment sale," "creditor's sale," "trustee's sale," "bankrupt sale," "save us from bankruptcy sale," "insolvent sale," "insurance salvage sale," "mortgage sale," "assignee's sale," "adjuster's sale," "must vacate sale," "quitting business sale," "receiver's sale," "loss of lease sale," "forced out of business sale" or "removal sale."
(C.O. 751-1; renumbered to C.M.C. 833-1-D, eff. Jan. 1, 1972)

Sec. 833-1-P. Person.

"Person" shall mean any individual partnership, association, firm or corporation.
(C.O. 751-1; renumbered to C.M.C. 833-1-P, eff. Jan. 1, 1972)

Sec. 833-3. License Required.

No person shall advertise or conduct a distress merchandise sale without first having obtained a license to do so in accordance with the provisions of this chapter.
(C.O. 751-3; renumbered to C.M.C. 833-3, eff. Jan. 1, 1972)

Cross reference—Penalty, § 833-99.

Sec. 833-5. Application for License.

Any person desiring to conduct a distress merchandise sale shall make written application to the city treasurer at least five days prior to the date on which the sale is to commence, on forms furnished by the city treasurer and verified by the applicant before a person authorized to administer oaths. In cases where due to circumstances beyond the control of the applicant - other than economic reverses - application cannot be made five days prior to commencement of the sale, the city treasurer shall waive the five day requirement.

Each application shall contain the following information, and such other information the city treasurer may deem necessary.

(a) The name and address of the owner of the goods, wares or merchandise to be sold.

(b) A description of the place where such sale is to be held.

(c) The nature of the occupancy of the place where such sale is to be held, whether by lease or otherwise, and the effective date of termination of such occupancy.

(d) A full and complete statement of facts regarding the distress merchandise sale, including the reason why such sale is being conducted, the manner in which such sale will be conducted and the commencement and termination date of such sale.

(e) A complete and detailed inventory of the goods, wares and merchandise to be offered at such sale as disclosed by applicant's record; or a statement of both the cost and retail value of the inventory of goods, wares and merchandise to be offered at such sale based on the physical inventory used for applicant's most recent federal income tax return adjusted for sale, purchases and mark-downs. Adjustments for sales, purchases and mark-downs shall be shown on a monthly basis to date of application. In addition, there shall be shown on separate items in either form of inventory the retail value of all goods, wares and merchandise the applicant has on consignment which will be offered for sale and the cost and retail value of all goods, wares and merchandise on back order.

The filing of an application for a license, the contents of such application, and the issuance of a license shall be confidential information and no disclosure thereof shall he made except such as may be necessary in the administration of the provisions of this chapter; provided, however, that any disclosure may be made with the consent of the applicant and the filing of an application and the issuance of a license shall not be considered confidential after public notice has been given of the proposed sale. Disclosures made contrary to the provisions of this section shall be subject to the penalty provided in Section 833-99-A.

(C.O. 751-5; renumbered to C.M.C. 833-5, eff. Jan. 1, 1972)

Cross reference—Penalty, § 833-99-A.

Sec. 833-7. Bond Required.

No license shall be issued for a distress merchandise sale unless there is filed with the city treasurer a bond conditioned upon the faithful observance of all the provisions of this chapter and the indemnifying of any purchaser at the sale who suffers any loss by reason of any misrepresentation made in connection with the sale, and authorizing actions thereunder by the city for the violation of any provision of this chapter, and by any purchaser at the sale for damage or loss suffered by reason of any misrepresentation made in connection with the sale. The amount of the bond shall be determined as follows:

Ten percent of the first $100,000 of the inventory cost of all the goods, wares and merchandise to be offered at sale; five percent on the next $400,000 and two percent on the balance. The bond shall be approved as to form by the city solicitor and as to sufficiency by the director of finance.

(C.O. 751-7; renumbered to C.M.C. 833-7, eff. Jan. 1, 1972)

Sec. 833-9. Investigation of Application; Grounds for Denial of License.

Upon receipt of an application, the city treasurer shall make any necessary investigation of the facts contained therein. No license shall be issued if any one or more of the following facts or circumstances are found to exist:

(a) That the applicant was granted more than one license hereunder for a going-out-of-business sale within two years preceding the date of the filing of the application.

(b) That the applicant has heretofore been convicted of violation of this chapter or has had a license issued pursuant to this chapter revoked within a five year period immediately preceding the date of the filing of the application.

(c) That the inventory includes goods, wares, or merchandise purchased by

the applicant or added to stock in contemplation of such sale and for the purpose of selling at such sale. For the purpose of this sub-paragraph, any unusual addition to the stock of such goods, wares, and merchandise made within 60 days prior to the filing of such application shall be prima facie evidence that such addition was made in contemplation of such sale and for the purpose of selling at such sale.

(d) That the applicant, in the ticketing of goods, wares, and merchandise to be offered at the sale, has misrepresented the original retail price or value thereof.

(e) That any representation made in the application is false.

(C.O. 751-9; renumbered to C.M.C. 833-9, eff. Jan. 1, 1972)

Sec. 833-11. Hiring of Examiners.

The city manager or person designated by the city manager shall, from time to time, enter into contracts with competent, qualified persons for the examination of the inventories and records of applicants for licenses. Such persons shall work under the direction and control of the city treasurer and shall make such examinations of records and inventories as are specified by the city treasurer and authorized by this chapter.

All information obtained by such persons or any city employees or officials through applications or examinations made pursuant to this chapter shall be confidential, and any disclosure thereof, except where such disclosure is necessary in the administration of the provisions of this chapter, shall constitute a misdemeanor.

(C.O. 751-10; renumbered to C.M.C. 833-11, eff. Jan. 1, 1972; a. Ord. No. 92-1977, eff. Mar. 23, 1977)

Cross reference—Penalty, § 833-99.

Sec. 833-13. Issuance of License.

When it appears to the city treasurer that all the statements in the application are true and that the proposed sale is of the character represented therein, that the application is in full compliance with the terms and conditions of this chapter, and that the required license fee has been paid and the required bond filed, the city treasurer shall issue a license to the applicant authorizing the applicant to advertise and conduct the sale as described in the application, subject to the following conditions:

(a) The sale shall be held at the place named in the application and by the particular licensee for a period of not more than 30 consecutive calendar days (Sundays and legal holidays excluded), next following the date specified in the license;

(b) Only the goods, wares and merchandise included in the inventory attached to the application shall be sold at the sale;

(c) Upon the commencement of the sale and for its duration, the license issued hereunder shall be prominently displayed in the place of sale by the licensee;

(d) The licensee shall keep suitable books during the sale, at the location at which the sale is conducted, in which shall be made daily entries showing:

(1) Dollar amount of retail sales.

(2) Dollar amount of mark-downs. (Without limiting the meaning of the term "mark-down," the difference between the retail and wholesale price of goods wholesaled by licensee shall be considered a mark-down.)

(3) Dollar amount, both retail and cost price, of goods on back order received.

(4) Dollar amount of wholesale sales.

Copies of such daily entries shall be sent to the city treasurer weekly and all books of licensee shall be open for inspection by the city treasurer or duly authorized representatives during business hours.
(C.O. 751-11; renumbered to C.M.C. 833-13, eff. Jan. 1, 1972)

Sec. 833-15. Revocation of License.

The city treasurer shall revoke any license issued pursuant to the provisions of this chapter if the licensee has:

(a) Violated the provisions of this chapter;

(b) Made any material misstatement in the application;

(c) Failed to include in the inventory required by the provisions of this chapter all the goods, wares and merchandise being offered for sale;

(d) Offered or permitted to be offered at the sale any goods, wares or merchandise not included in the inventory attached to the application;

(e) Failed to keep suitable records of the sale; or

(f) Made or permitted to be made any false or misleading statements or representations in advertising the sale, or in displaying, ticketing, or pricing goods, wares or merchandise offered for sale.

(C.O. 751-13; renumbered to C.M.C. 833-15, eff. Jan. 1, 1972)

Sec. 833-17. Renewal of License.

The city treasurer shall upon application therefor renew a license issued under the provisions of this chapter for one or more periods of 30 days each (Sundays and legal holidays excluded), if the licensee has not sold all the goods listed on the inventory submitted with the original application. Such fact shall be sworn to by the applicant in the appropriate place on the application for renewal of the license. Only such goods as were listed on the original inventory filed with the application and not previously sold may be sold during the renewal period. The fee for the renewal of a license shall be $20. No more than five license renewals shall be granted by the treasurer to any applicant.
(C.O. 751-15; renumbered to C.M.C. 833-17, eff. Jan. 1, 1972; a. Ord. No. 327-1975, eff. Sept. 1, 1975; a. Ord. No. 282-1979, eff. Sept. 1, 1979; a. Ord. No. 544-1982, eff. Jan. 21, 1983)

Sec. 833-19. License Fees.

The fee for licenses issued pursuant to this chapter shall be $77 or one-half of 1 percent of the cost inventory value of the goods, wares, and merchandise to be sold at the sale, whichever is the greater amount; provided, however, that no fee shall be charged for a license in the case of a business holding a distressed merchandise sale as the result of acquisition of the business premises by the city of Cincinnati or by any other governmental body, federal, state, or local, which is invested with the power of eminent domain. Nothing herein contained shall be interpreted as waiving compliance with all other provisions of this chapter.
(C.O. 751-17; a. Ord. No. 265-1962, eff. Aug. 4, 1962; a. Ord. No. 455-1965, eff. Dec. 10, 1965; a. Ord. No. 90-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 833-19, eff. Jan. 1, 1972; a. Ord. No. 327-1975, eff. Sept. 1, 1975; a. Ord. No. 282-1979, eff. Sept. 1, 1979)

Sec. 833-21. Exceptions.

The provisions of this chapter shall not apply to any sale conducted by a public officer

as part of official duties, to any sale an accounting of which must be made to a court of law, or to any sale conducted pursuant to an order of a court of law.
(C.O. 751-19; renumbered to C.M.C. 833-21, eff. Jan. 1, 1972)

Sec. 833-99. Penalties.

Whoever violates any provision of this chapter for which another penalty is not specifically provided shall be fined not more than $100, or imprisoned not more than 30 days, or both. Each day's violation shall constitute a separate offense.
(C.O. 751-21; a. Ord. No. 414-1970, eff. Dec. 23, 1970; renumbered to C.M.C. 833-99, eff. Jan. 1, 1972)

Sec. 833-99-A. Violation of Section 833-5 or 833-11.

Whoever violates any provisions of Section 833-5 or 833-11 of this chapter shall be fined not more than $100 or imprisoned not more than 60 days, or both.
(C.O. 751-10; renumbered to C.M.C. 833-93-A, eff. Jan. 1, 1971)

Chapter 834

ENTERTAINMENT DISTRICTS

Sec. 834-01. Definitions.
Sec. 834-02. Application for Designation of Community Entertainment District.
Sec. 834-03. Review of Application.

Sec. 834-01. Definitions.

As used in this Chapter:

a. "*Community entertainment district*" means a bounded area that includes or will include a combination of entertainment, retail, educational, sporting, social, cultural, or arts establishments within close proximity to some or all of the following types of establishments within the district, or other types of establishments similar to these:

(1) Hotels;

(2) Restaurants;

(3) Retail sales establishments;

(4) Enclosed shopping centers;

(5) Museums;

(6) Performing arts theaters;

(7) Motion picture theaters;

(8) Night clubs;

(9) Convention facilities;

(10) Sports facilities;

(11) Entertainment facilities or complexes;

(12) Any combination of the establishments described in division (1) to (11) of this section that provide similar services to the community.

b. "*Director of Community and Economic Development*" refers to the Director of Community and Economic Development of the City of Cincinnati, or his designee.

(Ordained by Emer. Ord. No. 295-2006, eff. Oct. 11, 2006; Emer. Ord. No. 238-2015, § 15, eff. July 1, 2015)

Sec. 834-02. Application for Designation of Community Entertainment District.

a. Any owner of property located within the City of Cincinnati seeking to have that property, or that property and other surrounding property, designated as a community entertainment district, as defined in Chapter 4301 of the Ohio Revised Code, shall file an application seeking this designation with the Mayor.

b. An application to designate an area as a community entertainment district shall contain all of the following:

(1) The applicant's name and address;

(2) A map or survey of the proposed community entertainment district in sufficient detail to identify the boundaries of the district and the property owned by the applicant;

(3) A general statement of the nature and types of establishments described in section 834-01(a) that are or will be located within the proposed community improvement district and any other establishments located in the proposed community entertainment district that are not described in section 834-01(a);

(4) If some or all of the establishments within the proposed community entertainment district have not yet been developed, the proposed time frame for completing the development of these establishments;

(5) Evidence that the uses of land within the proposed community entertainment district are in accord with the City of Cincinnati's master zoning plan or map;

(6) A certificate from a surveyor or engineer licensed under Chapter 4733 of the Ohio Revised Code indicating that

the area encompassed by the proposed community entertainment district contains no less than twenty contiguous acres;

(7) A handling and processing fee, payable by cashier's check or money order to the City of Cincinnati, in the amount of $15,000.00;

(8) The City Manager may grant a nonprofit entity applicant a reduction of the fee in (7) above in an amount determined by the City Manager, if he or she determines that the intent of the application is to promote and encourage community involvement, economic prosperity, and revitalization within a City neighborhood by locating operating businesses in existing vacant or underutilized buildings. An applicant shall not be eligible for a fee reduction unless a majority of the newly available liquor licenses will be used in buildings existing and eligible for a permanent certificate of occupancy as of the date of the application. An applicant shall include with an application written documentation, acceptable to the City Manager, evidencing that the applicant meets the eligibility requirements set forth herein. The application form shall include a list of acceptable documentation.

c. The property owner shall deliver a copy of the application, along with the handling and processing fee, to the Director of Community and Economic Development, or his designee, who shall provide proof of receipt.
(Ordained by Emer. Ord. No. 295-2006, eff. Oct. 11, 2006; a. Emer. Ord. No. 367-2010, § 1, eff. Oct. 13, 2010; a. Ord. No. 172-2013, § 1, eff. July 12, 2013; Emer. Ord. No. 238-2015, § 16, eff. July 1, 2015)

Sec. 834-03. Review of Application.

a. The Mayor, within thirty (30) days after receiving the application, shall submit the application with the Mayor's recommendations to City Council.

b. Within thirty (30) days after it receives the application and the Mayor's recommendations relating to the application, City Council, by notice published once a week for two consecutive weeks in at least one newspaper of general circulation in the City, shall notify the public that the application is on file in the office of the Clerk of Council and is available for inspection by the public during regular business hours. The notice shall also indicate the date and time of any public hearing on the application.

c. Within seventy-five (75) days after the date the application is filed with the Mayor, City Council by ordinance or resolution shall approve or disapprove the application based on whether the proposed community entertainment district does or will substantially contribute to entertainment, retail, educational, sporting, social, cultural, or arts opportunities for the community. Any approval of an application shall be by an affirmative majority vote of City Council.
(Ordained by Emer. Ord. No. 295-2006, eff. Oct. 11, 2006)

Chapter 835

GASOLINE*

Sec. 835-1. Precautions for Storing.
Sec. 835-3. False Representations as to Quality.
Sec. 835-5. False Trade Names on Containers.
Sec. 835-7. Fraudulent Imitation of Trade Markings.
Sec. 835-9. Selling Substituted or Adulterated Products.
Sec. 835-11. Putting Substituted Products in Trade Name Containers.
Sec. 835-13. Provisions Apply Only to Retail Dealers.
Sec. 835-15. Street Sales from Tank Truck Prohibited.
Sec. 835-99. Penalties.
Sec. 835-99-A. Violation of Section 835-1.

*__Cross reference—__Environmental code, tit. X.

Sec. 835-1. Precautions for Storing.

No person shall store in such person's house gasoline known as 87 gravity deodorized gasoline, or any gasoline of a higher gravity than 74 deodorized gasoline, or have in possession gasoline known as 87 gravity gasoline, unless such gasoline is kept in some kind of a vessel that will keep it from escaping.

No person shall have in such person's possession gasoline known as 87 gravity deodorized gasoline, unless the vessel holding the gasoline of 87 gravity shall be placed underground not less than 25 feet from any building and the gasoline of 87 gravity is enclosed in some kind of enclosure such as a vault, shed or small house built in such manner as to protect the gasoline from fire.
(C.O. 729-1; renumbered to C.M.C. 835-1, eff. Jan. 1, 1972)

Cross reference—Penalty, § 835-99-A.

Sec. 835-3. False Representations as to Quality.

No person, firm, association or corporation shall store, sell, expose for sale or offer for sale any liquid fuel, lubricating oil, grease or other petroleum product in any manner whatsoever, with intent to deceive the purchaser as to the nature, quality or identity of the product so sold or offered for sale.
(C.O. 729-3; renumbered to C.M.C. 836-3, eff. Jan. 1, 1972)

Cross reference—Penalty, § 835-99.

Sec. 835-5. False Trade Names on Containers.

No person, firm, association or corporation shall store, keep, expose for sale, offer for sale, or sell from any tank or container or from any pump or other distributing device any liquid fuel, lubricating oil, grease or other petroleum product other than those indicated by the name, trade name, trademark symbol, sign, or other distinguishing mark or device of the manufacturer or distributor appearing upon the tank, container, pump or other equipment from which the same is sold, offered for sale or delivered.
(C.O. 729-4; renumbered to C.M.C. 835-5, eff. Jan. 1, 1972)

Cross reference—Penalty, § 835-99.

Sec. 835-7. Fraudulent Imitation of Trade Markings.

No person, firm, association or corporation shall imitate the design, symbol, emblem, color scheme, trade name or markings of any equipment used, or capable of use, by any other marketer of petroleum products, where such imitation tends to deceive or has the effect of deceiving the purchaser as to the nature, source, quality or identity of the product sold or offered for sale by the owner or operator thereof.
(C.O. 729-5; renumbered to C.M.C. 836-7, eff. Jan. 1, 1972)

Cross reference—Penalty, § 835-99.

Sec. 835-9. Selling Substituted or Adulterated Products.

No person, firm, association or corporation shall expose for sale, offer for sale or sell under any trade-mark or trade name in general use any liquid fuel, lubricating oil, grease or other petroleum product except those manufactured or distributed by the manufacturer or distributor marketing liquid fuels, lubricating oils, greases or other petroleum products under such trade-mark or trade name, or substitute, mix or adulterate the liquid fuels, lubricating oils, greases or other petroleum products sold or offered for sale under such trade-mark or trade name.
(C.O. 729-6; renumbered to C.M.C. 835-9, eff. Jan. 1, 1972)

Cross reference—Penalty, § 835-99.

Sec. 835-11. Putting Substituted Products in Trade Name Containers.

No person, firm, association or corporation shall aid or assist any other person, firm,

association or corporation in the violation of the provisions of this chapter by depositing or delivering into any tank, receptacle or other container any liquid fuels lubricating oil, grease or petroleum product other than those of the person, firm, association or corporation whose products are intended to be stored therein and sold therefrom as indicated by the trade-mark, trade name, color scheme or emblem displayed on the container itself or on the pump or other storage device used in connection therewith.
(C.O. 729-7; renumbered to C.M.C. 835-11, eff. Jan. 1, 1972)

Cross reference—Penalty, § 835-99.

Sec. 835-13. Provisions Apply Only to Retail Dealers.

The provisions of Sections 835-3 through 835-11, inclusive, shall be construed to apply only to storage equipment at places where liquid fuel, lubricating oil, grease or other petroleum products are sold or offered for sale at retail to the consumers or users thereof, and shall not be construed to apply to places where such products are stored for wholesale distribution nor to transportation equipment engaged solely in transporting such products from a warehouse or bulk storage to retail places, unless retail sales shall be made from such equipment, warehouse or bulk storage.
(C.O. 729-9; renumbered to C.M.C. 835-13, eff. Jan. 1, 1972)

Cross reference—Penalty, § 835-99.

Sec. 835-15. Street Sales from Tank Truck Prohibited.

No person, firm, association or corporation shall offer for sale or sell at retail, from a tank truck or other vehicle used for the transportation of liquid fuel, any volatile liquid fuel on any street, highway or other public place.
(C.O. 729-11; renumbered to C.M.C. 835-15, eff. Jan. 1, 1972)

Cross reference—Penalty, § 835-99.

Sec. 835-99. Penalties.

Whoever violates any provision of this chapter for which no other penalty is specifically provided shall be fined not more than $500, or imprisoned not more than six months, or both.
(C.O. 729-14; renumbered to C.M.C. 835-99, eff. Jan. 1, 1972)

Sec. 835-99-A. Violation of Section 835-1.

Whoever violates any provision of Section 835-1 shall be fined not more than $75.
(C.O. 729-1; a. Ord. No. 414-1970, eff. Dec. 23, 1970; renumbered to C.M.C. 835-99-A, eff. Jan. 1, 1972)

Chapter 838

OUTDOOR REFRESHMENT AREAS

Sec. 838-01. Definitions.
Sec. 838-03. Creation of Outdoor Refreshment Areas.
Sec. 838-05. Review and Re-Approval of Existing Outdoor Refreshment Areas.
Sec. 838-07. Rules Governing Patrons in an Outdoor Refreshment Area.

Sec. 838-01. Definitions.

As used in this Chapter:

(A) "Qualified permit holder" means the holder of an A-1, A-1-A, A-1c, A-2, or D permit issued under Chapter 4303 of the Ohio Revised Code ("ORC").

(B) "Outdoor refreshment area" shall mean a designated territory in the city of Cincinnati, no larger than one-half square mile, within which no fewer than four businesses with liquor permits may sell beer or intoxicating liquor for on-premises consumption and for consumption off-premises but within the outdoor refreshment area, in accordance with ORC §§ 4301.62 and 4301.82.

(Ordained by Emer. Ord. No. 167-2015, § 1, eff. June 10, 2015)

Sec. 838-03. Creation of Outdoor Refreshment Areas.

(A) The city manager may file an application with city council to have property within the city of Cincinnati designated as an outdoor refreshment area or to expand an existing outdoor refreshment area to include additional property within the city, in accordance with ORC §§ 4301.62 and 4301.82. The city manager or his or her designee shall ensure that the application contains all of the following:

(1) A map or survey of the proposed outdoor refreshment area, which shall not exceed three hundred and twenty contiguous acres or one-half square mile, in sufficient detail to identify the boundaries of the area;

(2) A general statement of the nature and types of establishments that will be located within the proposed outdoor refreshment area;

(3) A statement that the proposed outdoor refreshment area will encompass not fewer than four qualified permit holders;

(4) Evidence that the uses of land within the proposed outdoor refreshment area are in accord with the master zoning plan or map of the city; and

(5) Proposed requirements for the purpose of ensuring safety within the proposed outdoor refreshment area.

(B) Notice and time requirements.

(1) Within forty-five days after the date the application is filed with city council, city council shall publish public notice of the application once a week for two consecutive weeks in one newspaper of general circulation in the city of Cincinnati or as provided in ORC § 7.16. City council shall ensure that the notice states that the application is on file in the office of the clerk of council and is available for inspection by the public during regular business hours. City council also shall indicate in the notice the date and time of any public hearing to be held regarding the application by city council.

(2) Not earlier than thirty but not later than sixty days after the initial publication of notice, city council shall approve or disapprove the application by ordinance. Approval of an application requires an affirmative vote of a majority of city council.

(C) Upon approval of the application by city council, the territory described in the application shall constitute an outdoor refreshment area. City council shall provide to the Ohio division of liquor control notice of the approval of the application and a description of the area specified in the application. If city council disapproves the application, the

city manager may make changes in the application to secure its approval by city council.

(D) The number of outdoor refreshment areas is limited as provided in ORC § 4301.82 or any successor statute.

(E) As soon as possible after receiving notice that an outdoor refreshment area has been approved, the Ohio division of liquor control, for purposes of ORC § 4301.62, shall issue an outdoor refreshment area designation to each qualified permit holder located within the refreshment area that is in compliance with all applicable requirements under ORC Chapters 4301 and 4303. The division shall not charge any fee for the issuance of the designation. Any permit holder that receives such a designation shall comply with all laws, rules, and regulations that govern its license type and, if applicable, any safety requirements established for the outdoor refreshment area under division (F) of this section.

(F) Safety requirements and modification of existing outdoor refreshment areas.

(1) At the time of the creation of an outdoor refreshment area or any time thereafter, city council may adopt an ordinance that establishes requirements city council determines necessary to ensure safety within the area. City council may, but is not required to, include in the ordinance any safety requirements proposed in an application under division (A) of this section to designate or expand the outdoor refreshment area. City council may subsequently modify the safety requirements as it determines necessary.

(2) Prior to adopting an ordinance under this subsection, city council shall give notice of its proposed action by publication once a week for two consecutive weeks in one newspaper of general circulation in the city of Cincinnati or as provided in ORC § 7.16.

(3) City council shall provide to the division of liquor control notice of any safety requirements established or modified under this subsection.

(G) ORC § 4399.18 applies to a liquor permit holder located within an outdoor refreshment area in the same manner as if the liquor permit holder were not located in an outdoor refreshment area.
(Ordained by Emer. Ord. No. 167-2015, § 1, eff. June 10, 2015)

Sec. 838-05. Review and Re-Approval of Existing Outdoor Refreshment Areas.

(A) Five years after the date of creation of an outdoor refreshment area, city council shall review the operation of the area and shall, by ordinance, either approve the continued operation of the area or dissolve the area.

(1) Prior to adopting the ordinance, city council shall give notice of its proposed action by publication once a week for two consecutive weeks in one newspaper of general circulation in Cincinnati or as provided in ORC § 7.16.

(2) If city council dissolves the outdoor refreshment area, the outdoor refreshment area ceases to exist. City council then shall provide notice of its action to the Ohio division of liquor control, and the division shall revoke all outdoor refreshment area designations issued to qualified permit holders within the dissolved area.

(3) If city council approves the continued operation of the outdoor refreshment area, the area continues in operation.

(B) Five years after the approval of the continued operation of an outdoor refreshment area under division (A)(3) of this section, city council shall conduct a review in the same manner as provided in division (A) of this section. The legislative authority also shall conduct such a review five years after any subsequent approval of continued operation under this subsection of this section.

(C) At any time, city council may, by ordinance, dissolve all or a part of the outdoor refreshment area.

(1) Prior to adopting the ordinance, city council shall give notice of its proposed action by publication once a week for two consecutive weeks in one newspaper of general circulation in Cincinnati or as provided in ORC § 7.16.

(2) If city council dissolves all or part of an outdoor refreshment area, the area designated in the ordinance shall no longer constitute an outdoor refreshment area. City council shall provide notice of its actions to the division of liquor control. Upon receipt of the notice, the division shall revoke all outdoor refreshment area designations issued to qualified permit holders within the dissolved area or portion of the area.

(Ordained by Emer. Ord. No. 167-2015, § 1, eff. June 10, 2015)

Sec. 838-07. Rules Governing Patrons in an Outdoor Refreshment Area.

(A) A person may possess an opened container of beer or intoxicating liquor at an outdoor location within an outdoor refreshment area created under ORC § 4301.82 if the opened container of beer or intoxicating liquor was purchased from a qualified permit holder to which both of the following apply:

(1) The permit holder's premises is located within the outdoor refreshment area; and

(2) The permit held by the permit holder has an outdoor refreshment area designation.

(B) Subsection (A) of this section does not authorize a person to do either of the following:

(1) Enter the premises of an establishment within an outdoor refreshment area while possessing an open container of beer or intoxicating liquor acquired elsewhere; or

(2) Possess an opened container of beer or intoxicating liquor while being in or on a motor vehicle within an outdoor refreshment area, unless the motor vehicle is stationary and is not being operated in a lane of vehicular travel or unless the possession is otherwise authorized under divisions (D), (E), or (F) of ORC § 4301.62.

(Ordained by Emer. Ord. No. 167-2015, § 1, eff. June 10, 2015)

Chapter 839

PEDDLERS AND ITINERANT VENDORS*

Sec. 839-1. Definitions.
Sec. 839-1-C. Repealed.
Sec. 839-1-D. Repealed.
Sec. 839-1-I. Itinerant Vendor.
Sec. 839-1-L. Repealed.
Sec. 839-1-P. Peddler.
Sec. 839-1-SV. Repealed.
Sec. 839-1-U. Repealed.
Sec. 839-3. Scope of Chapter.
Sec. 839-5. Operation Without License Unlawful; Failure to Display License and Identification Card Unlawful.
Sec. 839-6. Operation Without License Unlawful.
Sec. 839-7. License Fees.
Sec. 839-9. Application for Peddler License.
Sec. 839-10. Transfer of Identification Card.
Sec. 839-11. Street Sales—General.
Sec. 839-13. Street Sales in Vending Districts.
Sec. 839-15. Time Restriction in Residential Neighborhoods.
Sec. 839-99. Penalties.

*__Cross references—__Peddling, begging prohibited, § 704-7; streets and sidewalks, use regulations, ch. 723; street solicitation, ch. 863.

Sec. 839-1. Definitions.

For the purpose of this chapter the words and phrases defined in the sections hereunder shall have the meanings therein respectively ascribed to them, unless a different meaning is clearly indicated by the context.
(C.M.C. 839-1; ordained by Ord. No. 313-1979, eff. Aug. 1, 1979)

Analogous to C.O. 725-2; renumbered to C.M.C. 839-1, eff. Jan. 1, 1972; r. Ord. No. 313-1979, eff. Aug. 1, 1979.

Sec. 839-1-C. Repealed.

(Ordained by Ord. No. 445-1983, eff. Sept. 21, 1983; a. Ord. No. 228-1984, eff. June 6, 1984; a. Ord. No. 41-1986, eff. Jan. 29, 1986; a. Ord. No. 251-1986, eff. July, 2, 1986; r. by Ord. No. 393-1997, eff. Nov. 13, 1997; reordained by Ord. No. 288-2000, eff. 8-2-00; r. Ord. No. 072-2001, eff. Mar. 14, 2001)

Sec. 839-1-D. Repealed.
(Ordained by Ord. No. 393-1997, eff. Nov. 13, 1997; a. Ord. No. 431-1999, eff. Dec. 10, 1999; r. Ord. No. 0012-2020, § 4, eff. Jan. 15, 2020)

Sec. 839-1-I. Itinerant Vendor.

"Itinerant vendor" shall mean and include any person, firm or corporation, except any person peddling shopping bags in a city market pursuant to a permit issued by the market manager, and except peddlers on the street from vehicles or door-to-door, who engages in or conducts, either as principal or agent, in the City of Cincinnati, a temporary or transient business buying or selling goods, wares, merchandise, food, confectionery or drink with the intention of continuing such business in any one place for a period of not more than 120 days.
(C.M.C. 839-1-I; ordained by Ord. No. 313-1979, eff. Aug. 1, 1979; a. Ord. No. 333-1981, eff. Aug. 5, 1981; a. Ord. No. 288-1994, eff. Aug. 8, 1994)

Analogous to C.O. 725-2; renumbered to C.M.C. 839-1-I, eff. Jan. 1, 1972; r. Ord. No. 313-1979, eff. Aug. 1, 1979.

Sec. 839-1-L. Repealed.
(Ordained by Ord. No. 447-1985, eff. Sept. 11, 1985; r. Ord. No. 0012-2020, § 4, eff. Jan. 15, 2020)

Sec. 839-1-P. Peddler.

"Peddler" shall mean and include any person who goes from city-to-city, or from place-to-place, or from door-to-door, selling or offering to sell or barter, or carrying for sale or barter, or exposing therefor, any goods, wares, merchandise, food, confectionery, drink, or other commodity, carried by hand, from portable stands or tables, or by manually propelled vehicles, or by motor- or animal-drawn vehicles.
(C.M.C. 839-1-P; Ordained by Ord. No. 313-1979, eff. Aug. 1, 1979; a. Ord. No. 314-1982, eff. Sept. 3, 1982)

Analogous to C.O. Chapter 726; a. Ord. No. 265-1962, eff. Aug. 4, 1962; a. Ord. No. 90-1969, eff. Apr. 1, 1969; renumbered to C.M.C. Chapter 849, eff. Jan. 1, 1972; a. Ord. No. 327-1975, eff. Sept. 1, 1975; a. Ord. No. 139-1977, eff. Apr. 13, 1977; r. Ord. No. 313-1979, eff. Aug. 1, 1979.

Sec. 839-1-SV. Repealed.
(Ordained by Ord. No. 0318-2007, § 1, eff. 10-6-2007; a. Ord. No. 363-2008, § 1, eff. Nov. 22, 2008; r. Ord. No. 0012-2020, § 4, eff. Jan. 15, 2020)

Sec. 839-1-U. Repealed.
(Ordained by Ord. No. 447-1985, eff. Sept. 11, 1985; r. Ord. No. 0012-2020, § 4, eff. Jan. 15, 2020)

Sec. 839-3. Scope of Chapter.

The provisions of this chapter do not apply to:

(a) Sales made to dealers by commercial travelers or selling agents in the usual course of business;

(b) Bona fide sales of goods, wares or merchandise by samples for future delivery;

(c) Sales at trade shows or conventions;

(d) Sales or solicitations made pursuant to Chapter 863, Street Solicitations, of the Cincinnati Municipal Code;

(e) Sales from city market spaces regulated under Chapter 845, Markets, of the Cincinnati Municipal Code or sales otherwise authorized by Chapter 845;

(f) Sales of tickets to an event, without regard to whether the sale is regulated under Chapter 840, Street Ticket Sales, of the Cincinnati Municipal Code; or

(g) Sales from Neighborhood Farmers Market Project sites on city-owned, non-right-of-way property, provided that such sites have been approved by the city manager.

(C.M.C. 839-3; ordained by Ord. No. 313-1979, eff. Aug. 1, 1979; a. Ord. No. 393-1997, eff. Nov. 13, 1997; a. Ord. No. 072-2001, eff. Mar. 14, 2001; a. Ord. No. 189-2001, eff. June 20, 2001)

Sec. 839-5. Operation Without License Unlawful; Failure To Display License and Identification Card Unlawful.

No person, firm or corporation shall engage in the business or trade of itinerant vendor without first obtaining a license from the city treasurer. The itinerant vendor's license shall be displayed at all times. Each day's operation of such business without a license shall constitute a separate offense.

No person shall engage in the business or trade of peddler without first obtaining a license and identification card from the city treasurer. The peddler license shall be displayed conspicuously at all times upon the peddler's stand, cart or container. Any and all additional licenses or permits required pursuant to law shall be displayed conspicuously at all times upon the peddler's stand, cart or container. The identification card issued by the city treasurer shall be worn conspicuously and affixed to the outer garment of the peddler at all times. The identification card is not a license and shall so state.

(C.M.C. 839-5; ordained by Ord. No. 313-1979, eff. Aug. 1, 1979; a. Ord. No. 314-1982, eff. Sept. 3, 1982; reordained by Ord. No. 467-1982, eff. Nov. 10, 1982; a. Ord. No. 136-1988, eff. May 27, 1988; a. Ord. No. 072-2001, eff. Mar. 14, 2001)

Analogous to C.O. 725-1; renumbered to C.M.C. 839-3, eff. Jan. 1, 1979; r. Ord. No. 313-1979, eff. Aug. 1, 1979.

Sec. 839-6. Operation Without License Unlawful.

No person, firm or corporation shall engage in the business or trade of itinerant vendor or peddler without first obtaining a license from the city treasurer. Each day's operation of such business without a license shall constitute a separate offense.

(C.M.C. 839-5; ordained by Ord. No. 313-1979, eff. Aug. 1, 1979)

Analogous to C.O. 725-1; renumbered to C.M.C. 839-3, eff. Jan. 1, 1972; r. Ord. No. 313-1979, eff. Aug. 1, 1979.

Sec. 839-7. License Fees.

The license fee for engaging in the trade or business of itinerant vendor shall be $150 for each day that such business is to be carried on. The license shall terminate with the last day for which such license fee shall have been paid.

The minimum license fee for engaging in the trade or business of peddler shall be $150 for a minimum period of one year. The license period may be extended at the time of issuance for a period not to exceed the number of calendar days which will extend the expiration date to the last day of the months of March, June, September or December which month and day first comes following the expiration date of the minimum

license period. The fee for extension beyond the minimum one-year license period shall be 50 cents per calendar day.

(C.M.C. 839-7; ordained by Ord. No. 313-1979, eff. Aug. 1, 1979; a. Ord. No. 314-1982, eff. Sept. 3, 1982; a. Ord. No. 262-1985, eff. July 5, 1985; a. Ord. No. 272-1985, eff. June 12, 1985)

Analogous to C.O. 725-4; a. Ord. No. 90-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 839-7, eff. Jan. 1, 1972; a. Ord. No. 327-1975, eff. Sept. 1, 1975; a. Ord. No. 313-1979, eff. Aug. 1, 1979; and to C.O. 726-1; a. Ord. No. 265-1962, eff. Aug. 4, 1965; a. Ord. No. 90-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 849-1, eff. Jan. 1, 1972; a. Ord. No. 327-1975, eff. Sept. 1, 1975; a. Ord. No. 139-1977, eff. Apr. 13, 1977; a. Ord. No. 531-1977, eff. Dec. 29, 1977; r. Ord. No. 313-1979, eff. Aug. 1, 1979.

Sec. 839-9. Application for Peddler License.

Each applicant for a peddler license shall file an application with the city treasurer in such form as prescribed by the city treasurer. The applicant may be an individual peddler or a person, firm or corporation on behalf of an individual peddler. In the case where a person, firm or corporation applies for the license on behalf of an individual peddler, the license shall be issued in the name of the applicant, the license shall also bear the name and identification card number of the peddler on whose behalf the license is issued. The identification card shall be issued in the name of the peddler on whose behalf the license was purchased. Each applicant for a peddler license shall furnish two photographs of the peddler on whose behalf the license is purchased, taken within 30 days preceding the date of application, of a size designated by the city treasurer, one of which shall be attached to a consecutively numbered identification car. Applicants for the sale of food or beverage shall exhibit to the city treasurer the necessary permit from the board of health.

In the case of loss of an identification card, the licensee shall file with the city treasurer a signed and sworn affidavit that the identification card was lost or in the case of theft, a copy of the theft report submitted to any law enforcement agency and upon payment of $25 shall receive a replacement identification card. Each applicant for a replacement identification card shall furnish two photographs of the peddler on whose behalf the license was issued, of a size designated by the city treasurer, which photographs shall have been taken within 30 days of the date of application. The replacement identification card shall expire on the same date as the original being replaced.

(C.M.C. 839-9; ordained by Ord. No. 313-1979, eff. Aug. 1, 1979; a. Ord. No. 314-1982, eff. Sept. 3, 1982; reordained by Ord. No. 467-1982, eff. Nov. 10, 1982)

Analogous to C.O. 725-8; renumbered to C.M.C. 839-11, eff. Jan. 1, 1972; r. Ord. No. 313-1979, eff. Aug. 1, 1979.

Sec. 839-10. Transfer of Identification Card.

The peddler license is nontransferable. When the license is issued to a person, firm or corporation on behalf of another peddler, the licensee may make application with the city treasurer to transfer the identification card from one peddler to another peddler. The licensee must exhibit the original license receipt and surrender the identification card to the city treasurer at the time of application for transfer. Each applicant for transfer of the identification card shall furnish two photographs of the peddler on whose behalf the identification card is to be issued of a size designated by the city treasurer, which photographs shall have been taken within 30 days of the date of application for transfer.

A fee of $15.00 shall be charged for the transfer of an identification card. The transferred identification card shall expire on the same date as the original being transferred.

In the event the licensee fails to surrender the original identification card because it is lost or stolen, the application for transfer shall be accompanied by a signed and sworn affidavit that the identification card was lost or in the case of theft, a copy of the theft report submitted to any law enforcement agency. The fee for a replacement identification card shall be paid in addition to the transfer fee.
(Ordained by Ord. No. 467-1982, eff. Nov. 10, 1982)

Sec. 839-11. Street Sales—General.

No person licensed as a peddler shall demonstrate, sell or offer for sale or barter any goods, wares, merchandise, food, confection or drink upon any highway or sidewalk or any other city-owned property within the City of Cincinnati except in accordance with all of the following provisions:

(a) No merchandise shall be displayed or sold on Fountain Square, on the overhead walkway system, or in any parking lots or garages owned or operated by the City of Cincinnati.

(b) No merchandise shall be displayed or sold to the occupants of vehicles stopped in traffic.

(c) Each peddler selling from a motor or animal-drawn vehicle must comply with all traffic regulations at the location the vehicle is parked or standing.

(d) No merchandise shall be displayed or sold at any location where the sidewalk is less than 12 feet in width from the private property line to the curbline.

(e) No merchandise shall be displayed or sold within 20 feet from the point of intersection of the curblines (except alleys), crosswalk, bus stop, escalator or stairway leading to or from the overhead walkway system.

(f) No merchandise shall be displayed or sold within ten feet of a fire hydrant, a standpipe, a sprinkler intake, a doorway or other access point to abutting property, a store window or a sidewalk elevator.

(g) No merchandise shall be displayed, or sold at a location which hinders or restricts access to a telephone booth, mailbox, parking meter, fire alarm call box or traffic-control box.

(h) No merchandise shall be displayed or sold within 40 feet of the location at which another peddler is already displaying or selling merchandise except on Sundays and legal holidays. On Sundays and legal holidays, the distance between peddlers shall be no less than 20 feet. In the case of a dispute between peddlers, the peddler who arrived first on the day involved shall be deemed to have the privilege of operating at that location on that day. One peddler must continue to be there in person with wares to claim such privilege. Such distance shall be measured from the end of one display stand, table, cart, container or other appurtenance to the beginning of the next.

(i) No merchandise shall be displayed or sold in a manner that blocks, obstructs or restricts the free passage of pedestrians or vehicles in the lawful use of the sidewalks or highways or ingress or egress to the abutting property.

(j) All merchandise shall be displayed or sold from portable stands or containers. Each peddler shall remove all merchandise, packaging, paper,

containers, display stands or tables, or other materials brought to the location at the termination of sales each day. No permanent stands or displays will be permitted.

(k) No peddler's display stand, cart, container or other appurtenances, paraphernalia, merchandise, supplies or signage shall occupy more than 42 inches of lateral sidewalk width, nor more than 72 inches of longitudinal sidewalk area.

(l) Each peddler during the period of selling shall keep the area within 10 feet of the location where the peddler sells or displays merchandise free from all litter and debris arising from the operations, including the litter which arises from actions of customers in disposing of wrapping or packaging materials on merchandise sold by the peddler.

(m) No peddler's display stand, cart, container or other appurtenance or paraphernalia shall be set up along street plantings or street furniture.

(n) Peddlers shall at all times exercise reasonable care that their merchandise, packaging material, display equipment and other paraphernalia shall not create a safety or health hazard to customers or other persons using the public highways or sidewalks or to persons on or in abutting property.

(o) No food, confection or drink except prepackaged and/or containerized products shall be displayed or sold from any unimproved public property, including unimproved sidewalks or pedestrian walkways.

(p) No street sales shall be conducted nor shall any display stand, cart, container, or other appurtenances be permitted on any public property between the hours of midnight and 6:00 a.m. daily.

(q) No peddler selling from a motor or animal-drawn vehicle may remain in any one place for a period longer than necessary to make a sale and remove any associated trash as required in subsection (r), herein, after having been approached or stopped for the purpose of such sale.

(r) No peddler may leave any location without first picking up, removing and disposing of all trash or refuse remaining from sales made by the peddler.

Nothing herein shall be construed to prohibit the distribution of noncommercial handbills, cards, leaflets, other literature or the sale of newspapers and magazines on the sidewalks.

(C.M.C. 839-11; ordained by Ord. No. 313-1979, eff. Aug. 1, 1979; a. Ord. No. 445-1983, eff. Sept. 21, 1983; a. Ord. No. 288-2000, eff. 8-2-00; a. Ord. No. 072-2001, eff. Mar. 14, 2001; a. Ord. No. 0062-2008, eff. 3-13-08)

Analogous to C.O. 510-6; a. Ord. No. 353-1958, eff. Nov. 7, 1958; renumbered to C.M.C. 510-6, eff. Jan. 1, 1972; a. Ord. No. 140-1973, eff. Apr. 27, 1973; a. Ord. No. 425-1976, eff. Sept. 15, 1976; r. Ord. No. 313-1979, eff. Aug. 1, 1979.

Sec. 839-13. Street Sales in Vending Districts.

No person licensed as a peddler shall demonstrate, sell, or offer for sale, or barter any goods, wares, merchandise, food, confection, or drink in the sidewalk vending districts defined in Section 723-16 of the Cincinnati Municipal Code.

(Ordained by Ord. No. 445-1983, eff. Sept. 1, 1983; a. Ord. No. 447-1985, eff. Sept. 11, 1985; a. Ord. No. 393-1997, eff. Nov. 13, 1997; a. Ord. No. 0012-2020, §§ 5, 6, eff. Jan. 15, 2020)

Sec. 839-15. Time Restriction in Residential Neighborhoods.

No peddler selling from a motor or animal-drawn vehicle may sell or offer for sale, any food, beverage or merchandise from a motor vehicle on a public street at any one location or at any location in the same city block on any street that abuts any residential zoning district denoted by the letters SF or RM for a period of time in excess of 30 minutes in any 24-hour period.
(Ordained by Ord. No. 0062-2008, eff. 3-13-08)

Sec. 839-99. Penalties.

Whoever violates the provisions of Section 839-5, Cincinnati Municipal Code, of operating as an itinerant vendor or peddler without a license is guilty of a misdemeanor of the third degree. Each subsequent violation is a misdemeanor of the second degree. In addition, offenders will forfeit their goods upon each conviction.

Whoever violates any provisions of Chapter 839, C.M.C., even though operating with a valid license is guilty of a misdemeanor of the fourth degree. Each subsequent violation of this chapter while operating with a valid license shall be a misdemeanor of the third degree, including forfeiture of goods.

Whoever is convicted of violating any provision of Chapter 839, C.M.C., shall surrender to the court all licenses and identification cards issued by the city treasurer pursuant to this chapter for return and revocation by the city treasurer for a period of one year from date of conviction.
(C.M.C. 839-99; ordained by Ord. No. 313-1979, eff. Aug. 1, 1979; a. Ord. No. 314-1982, eff. Sept. 3, 1982; reordained by Ord. No. 467-1982, eff. Nov. 10, 1982)

Analogous to C.O. 725-21; renumbered to C.M.C. 839-99, eff. Jan. 1, 1972; r. Ord. No. 313-1979, eff. Aug. 1, 1979.

Chapter 840

STREET TICKET SALES

Sec. 840-1	Definitions.
Sec. 840-1-E.	Eastern Riverfront Exclusion Area.
Sec. 840-1-W.	Western Riverfront Exclusion Area.
Sec. 840-3.	Street Ticket Sales Without License Unlawful; Failure to Display Identification Card Unlawful.
Sec. 840-5.	Street Ticket Sales License.
Sec. 840-7.	Street Ticket Sales—General.
Sec. 840-9.	Ticket Sales for Face Value or Less Exempt.
Sec. 840-11.	Street Ticket Sales License Fees.
Sec. 840-13.	Revocation of Street Ticket Sales License.
Sec. 840-99.	Penalties.

Sec. 840-1. Definitions.

Sec. 840-1-E. Eastern Riverfront Exclusion Area.

"Eastern Riverfront Exclusion Area" means the streets, sidewalks and publicly-owned plazas and all overhead walkway bridges, stairways, escalators, passageways and elevators connecting thereto within the bounds beginning at the northwest corner of the intersection of Walnut and Third Streets thence South along the westernmost line of the sidewalk adjoining the western side of Walnut Street and in a line continuing southward to the northern bank of the Ohio River; thence East along the northern bank of the Ohio River to the eastern end of the Public Landing, thence North to Mehring Way, thence East and North along the easternmost side the sidewalk of Mehring Way to the northeast corner of the intersection of Mehring Way and East Pete Rose Way; thence West along the North side of Pete Rose Way to the Northeast corner of the intersection of Pete Rose Way and Broadway Street; thence North along the East side of Broadway to the Northeast corner of the intersection of Broadway and Third Streets; thence West along the North side of Third Street to the place of beginning.
(Ordained by Ord. No. 075-2001, eff. Mar. 14, 2001; a. Ord. No. 63-2003, eff. March 19, 2003)

Sec. 840-1-W. Western Riverfront Exclusion Area.

"Western Riverfront Exclusion Area" means the streets, sidewalks and publicly-owned plazas and all overhead walkway bridges, stairways, escalators, passageways and elevators connecting thereto within the bounds beginning at the intersection of the centerline of Mehring Way and west edge extended of the west sidewalk of Central Avenue, thence north along the west edge of the west sidewalk of Central Avenue to the north edge of the sidewalk on the north side of Pete Rose Way, thence east along the north edge of the sidewalk on the north side of Pete Rose Way to the west edge of the west sidewalk of Elm Street, thence north along the west edge of the west sidewalk of Elm Street to the centerline of Second Street, thence east along the centerline of Second Street to the east edge of the east sidewalk of Elm Street, thence south along the east edge of the east sidewalk of Elm Street and the east edge extended to the centerline of Mehring Way, thence west along the centerline of Mehring Way to the place of beginning.
(Ordained by Ord. No. 075-2001, eff. Mar. 14, 2001)

Sec. 840-3. Street Ticket Sales Without License Unlawful; Failure to Display Identification Card Unlawful.

A person may not sell or offer for sale any ticket for admission to an event for more than face value on a public street, sidewalk, public right-of-way, or any other city-owned property within the city of Cincinnati without first obtaining a license and an identification card from the city treasurer. The street ticket sales identification card must be worn conspicuously and affixed to the outer garment of the ticket seller at all times while engaging in the business of street ticket sales. Each day's operation of such business without a license constitutes a separate offense.
(Ordained by Ord. No. 075-2001, eff. Mar. 14, 2001)

Sec. 840-5. Street Ticket Sales License.

(a) Each applicant for a street ticket sales license shall file an application with the city treasurer for a quarterly or annual street ticket sales license in such form as prescribed by the city treasurer. Each applicant for a street ticket sales license shall furnish two

photographs of the street ticket seller taken within 30 days preceding the date of application, of a size designated by the city treasurer, one of which shall be attached to a consecutively numbered identification card.

(b) In the case of loss of an identification card, the licensee shall file with the city treasurer a signed and sworn affidavit that the identification card was lost or in the case of theft, a copy of the theft report submitted to any law enforcement agency and upon payment of $25 shall receive a replacement identification card. Each applicant for a replacement identification card shall furnish two photographs of the street ticket seller of a size designated by the city treasurer, which photographs shall have been taken within 30 days of the date of application. The replacement identification card shall expire on the same date as the original being replaced.

(c) The street ticket sales license and identification card are nontransferable.
(Ordained by Ord. No. 075-2001, eff. Mar. 14, 2001)

Sec. 840-7. Street Ticket Sales—General.

A person may not sell or offer for sale a ticket for admission to an event on a public street, sidewalk, public right-of-way, or any other city-owned property within the city of Cincinnati except in accordance with all of the following provisions:

(a) Tickets may not be offered for sale or sold on Fountain Square, or on the overhead walkway system.

(b) Tickets may not be offered for sale or sold on sidewalks where passage is restricted by construction.

(c) Tickets may not be offered for sale or sold on the portion of a sidewalk, located close to a place of public assembly, that has been officially designated as a bus stop and is marked by an appropriate sign or signs.

(d) Tickets may not be offered for sale or sold on a street, sidewalk or publicly-owned plaza within the Eastern Riverfront or Western Riverfront exclusion area or an overhead walkway bridge, stairway, escalator, passageway and elevator connecting thereto. This prohibition does not apply to sales from a ticket booth operated by a place of public assembly or within a publicly-owned garage located within the exclusion area, provided that the seller is in the garage with the permission of the garage owner or operator.

(e) Tickets may not be offered for sale or sold from a public right-of-way other than a public sidewalk. This prohibition does not apply to sales to or from a passenger vehicle provided that the buyer or seller is not in violation of any provision of Title V, Traffic Code, of the Cincinnati Municipal Code.

(f) Tickets may not be offered for sale or sold to the occupants of vehicles in traffic.

(g) Tickets may not be offered for sale or sold in a manner that blocks, obstructs or restricts the passage of pedestrians or vehicles in the lawful use of the sidewalks or highways, ingress or egress to the abutting property, or interferes with the operation of any display stand of a person licensed as a vendor under Chapter 839 or Chapter 845 of the Cincinnati Municipal Code.

(h) Ticket sellers may not use a display stand, table, booth, chair or sign other than a hand-held sign for the sale or offering for sale of tickets.
(Ordained by Ord. No. 075-2001, eff. Mar. 14, 2001)

Sec. 840-9. Ticket Sales for Face Value or Less Exempt.

This Chapter does not apply to the sale of tickets for admission to an event for face value or less, provided that the tickets are not:

(a) Offered for sale or sold to the occupants of vehicles in traffic;

(b) Offered for sale or sold in a manner that blocks, obstructs or restricts the passage of pedestrians or vehicles in the lawful use of the sidewalks or highways or ingress or egress to the abutting property; nor

(c) Offered for sale or sold within the Eastern Riverfront or Western Riverfront exclusion areas.

(Ordained by Ord. No. 075-2001, eff. Mar. 14, 2001)

Sec. 840-11. Street Ticket Sales License Fees.

(a) The license fees for engaging in the trade or business of street ticket sales are $200.00 for a quarterly license and $400.00 for an annual license. A quarterly license is valid for three months from the date of issuance of the license, and an annual license is valid for one year from the date of issuance of the license. License fees are payable to the city treasurer at the time of application.

(b) Persons having a license issued under Chapter 839 or 845 of the Cincinnati Municipal Code in effect as of September 7, 2000 may tender that license to the city treasurer for cancellation and receive without charge a street ticket sales license with the same expiration date as the license tendered for cancellation.

(Ordained by Ord. No. 075-2001, eff. Mar. 14, 2001; Emer. Ord. 463-2010, § 37, eff. Dec. 30, 2010)

Sec. 840-13. Revocation of Street Ticket Sales License.

(a) The office of administrative hearings has the duty to keep records of violations of Section 840-7 of the Cincinnati Municipal Code. Whenever a person is found to have committed a third offense in violation of Section 840-7 of the Cincinnati Municipal Code, whether by admission, finding by the hearing examiner, or default, within a one-year period, or a person fails to pay a civil fine for a violation of Section 840-7 and the fine has been sent for collection, the office of administrative hearings shall notify the city treasurer, who shall send a notice of revocation of a street ticket sales license to the person to whom the license was issued by ordinary U.S. Mail to the address shown on the application for the license.

(b) A person may request a hearing before the city treasurer to contest the revocation of a street ticket sales license. The request shall be filed in writing with the city treasurer within ten days of the date of notice of revocation. The city treasurer shall set a date for the hearing and notify the person, in writing, of the date, time and location of the hearing. The city treasurer shall conduct a public hearing on the revocation of a street ticket sales license whenever the person whose license is subject to revocation requests a hearing. The hearing shall be held within ten days after the filing of the request, unless the delay is agreed to by the person whose license is subject to revocation and is necessary in the interest of justice.

(c) The office of administrative hearings shall submit to the city treasurer all notices of civil offense and civil fines, the civil fine due, payments, delinquency and collection charges, and other relevant information pertaining to the person whose license is subject to revocation. The city treasurer shall provide a copy to the person whose license is subject to revocation and enter the information into the record.

(d) At the hearing, all testimony shall be under oath. The person whose license is subject to revocation may:

(1) Present positions, arguments, and contentions;

(2) Offer and examine witnesses and present evidence in support;

(3) Cross-examine witnesses;

(4) Offer evidence to refute evidence and testimony offered in opposition; and

(5) Proffer any such evidence into the record, if the admission of it is denied by the city treasurer.

(e) The city treasurer has the duty to issue a decision and make findings of fact from the record and conclusions of law in support of the decision within ten days from the close of the hearing. The findings and conclusions must demonstrate that the decision is consistent with applicable laws, ordinances and regulations and the interests of justice.

(f) If the city treasurer determines that the person has committed a third offense in violation of Section 840-7 of the Cincinnati Municipal Code within a one-year period, or has failed to pay a civil fine for a violation of Section 840-7 and the fine has been sent for collection and remains unpaid, the city treasurer has the duty to revoke the license and declare the person be ineligible to obtain a street ticket sales license for a period of 30 days from the date of the revocation.

(g) The decision of the city treasurer on a license revocation is final, subject to appeal as may be provided by law.

(h) If a person who has been sent a notice of revocation of a street ticket sales license fails to request a hearing before the city treasurer to contest the revocation within the ten-day period allowed for the request of a hearing, the revocation of the street ticket sales license shall take effect at the expiration of the ten days, and that person shall be ineligible to obtain a street ticket sales license for one year from the date of the revocation.

(Ordained by Ord. No. 075-2001, eff. Mar. 14, 2001)

Sec. 840-99. Penalties.

(a) Any violation of § 840-3 of the Cincinnati Municipal Code is a misdemeanor of the fourth degree.

(b) Any person holding a street ticket sales license who violates any provision of § 840-7 of the Cincinnati Municipal Code is liable for the civil fine specified in § 1501-99 for a Class C civil offense, and is subject to the procedures set forth in Title XV of the Cincinnati Municipal Code for code compliance and hearings. The penalty is not subject to reduction under § 1501-19.

(c) Any person other than a person holding a street ticket sales license who sells or offers for sale a ticket for face value or less and violates any provision of § 840-9 of the Cincinnati Municipal Code is liable for the civil fine specified in § 1501-99 for a Class A civil offense.

(Ordained by Ord. No. 075-2001, eff. Mar. 14, 2001)

Chapter 841

JEWELRY AUCTIONS (REPEALED)*

*__Editor's note—__Repealed by Ord. No. 332-1981, eff. August 5, 1981.

Chapter 843

JUNK DEALERS AND SECOND-HAND DEALERS

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Sec. 843-1. Definitions.

For the purpose of this chapter the words and phrases defined in the sections hereunder shall have the meanings therein respectively ascribed to them, unless a different meaning is clearly indicated by the context.
(Sec. 741-1; ordained by Ord. No. 51-1969, eff. Feb. 5, 1969; a. Ord. No. 435-1969, eff. Jan. 15, 1970; renumbered to C.M.C. 843-1, eff. Jan. 1, 1972)

Analogous to C.O. 741-1; r. Ord. No. 51-1969, eff. Feb. 5, 1969; and 741-3; a Ord. No. 328-1963, eff. Oct. 2, 1963; a. Ord. No. 268-1964, eff. July 17, 1964; r. Ord. No. 51-1969, eff. Feb. 5, 1969.

Sec. 843-1-F. Fence.

"Fence" shall mean a barrier at least six feet but not more than ten feet in height, which is either comprised of plantings or natural objects, or constructed of any non-transparent material, approved by the director of buildings and inspections, and created and maintained so as to substantially obscure the junk located within or upon the premises of the junk yard from the ordinary view of persons passing upon any public street or highway located within the City of Cincinnati.
(Sec. 741-1; ordained by Ord. No. 51-1969, eff. Feb. 5, 1969; a. Ord. No. 435-1969, eff. Jan. 15, 1970; renumbered to C.M.C. 843-1-F, eff. Jan. 1, 1972; a. Ord. No. 030-2012, § 1, eff. March 15, 2012; Emer. Ord. No. 238-2015, § 17, eff. July 1, 2015)

Sec. 843-1-H. Home Sale.

"Home sale" shall mean a sale of personal property to the general public conducted in or on any portion of residential premises within a residential zoning district and shall include, but not be limited to, all sales entitled "garage sale," "yard sale," "lawn sale," "patio sale," "attic sale," "room sale," "carport sale," "basement sale," "driveway sale," "flea market sale," "rummage sale," or the like.
(Ordained by Ord. No. 239-1986, eff. July 25, 1986)

Sec. 843-1-J. Junk.

"Junk" shall mean old or scrap tin, rope, rags, batteries, paper, rubber, glass, lead, trash, waste, second-hand plumbing materials, second-hand gas and electric fixtures, used mattresses, and all other old or used articles commonly designated as junk.
(Sec. 741-1; ordained by Ord. No. 51-1969, eff. Feb. 5, 1969; a. Ord. No. 435-1969, eff. Jan. 15, 1969; renumbered to C.M.C. 843-1-J, eff. Jan. 1, 1972; a. Ord. No. 297-2013, § 1, eff. Oct. 25, 2013)

Analogous to C.O. 741-1; r. Ord. No. 51-1969, eff. Feb. 5, 1969.

Sec. 843-1-J1. Junk Yard.

"Junk Yard" shall mean any establishment or place of business which is maintained or operated for the purposes of storing, keeping, buying or selling junk, except manufacturing establishments buying and storing scrap or junk materials for use, in altered form, in their manufacturing process, or establishment or places where motor vehicles, wrecked or otherwise, are being held due to impoundment by a police officer, or which are maintained principally for the repair of wrecked or damaged motor vehicles. In no event shall the exception pertaining to those engaged principally in the repair of motor vehicles apply to establishments or places wherein any wrecked or damaged motor vehicle is permitted to remain outside of a completely enclosed area for a period of more than one week, or where more than 15 wrecked or damaged motor vehicles are permitted to remain outside of a completely enclosed area at any one time. For the purposes of this Chapter the term "junk yard" shall exclude scrap metal processing facilities or persons who operate as scrap metal dealers or bulk merchandise container dealers.
(Sec. 741-1; ordained by Ord. No. 51-1969, eff. Feb. 5, 1969; a. Ord. No. 435-1969, eff. Jan. 15, 1970; renumbered to C.M.C. 843-1-

J1, eff. Jan. 1, 1972; a. Ord. No. 435-2012, § 2, eff. Dec. 15, 2012; a. Ord. No. 297-2013, § 2, eff. Oct. 25, 2013)

Analogous to C.O. 741-1; r. Ord. No. 51-1969, eff. Feb. 5, 1969.

Sec. 843-1-J2. Junk Dealer.

"Junk Dealer" shall mean any person who buys, sells, barters, or trades junk, or who owns or operates a junk yard.
(Ordained by Ord. No. 030-2012, § 3, eff. March 15, 2012; a. Ord. No. 435-2012, § 4, eff. Dec. 15, 2012)

Sec. 843-1-M. Repealed.
(Ordained by Ord. No. 0250-2007, § 1, passed June 6, 2007; a. Ord. No. 030-2012, § 4, eff. March 15, 2012; a. Ord. No. 435-2012, § 6, eff. Dec. 15, 2012; r. Ord. No. 297-2013, § 7, eff. Oct. 25, 2013)

Sec. 843-1-M1. Repealed.
(Ordained by Ord. No. 030-2012, § 6, eff. March 15, 2012; r. Ord. No. 297-2013, § 7, eff. Oct. 25, 2013)

Sec. 843-1-M2. Repealed.
(Ordained by Ord. No. 030-2012, § 7, eff. March 15, 2012; r. Ord. No. 297-2013, § 7, eff. Oct. 25, 2013)

Sec. 843-1-P. Person.

"Person" shall mean any person, firm, corporation, partnership, association, joint venture or joint enterprise.
(Sec. 741-1; ordained by Ord. No. 51-1969, eff. Feb. 5, 1969; a. Ord. No. 435-1969, eff. Jan. 15, 1970; renumbered to C.M.C. 843-1-P, eff. Jan. 1, 1972)

Sec. 843-1-S. Repealed.
(Sec. 741-1; ordained by Ord. No. 51-1969, eff. Feb. 5, 1969; a. Ord. No. 435-1969, eff. Jan. 15, 1970; renumbered to C.M.C. 843-1-S, eff. Jan. 1, 1972; r. Ord. No. 435-2012, § 14, eff. Dec. 15, 2012)

Sec. 843-1-S1. Repealed.
(Sec. 741-1; ordained by Ord. No. 51-1969, eff. Feb. 5, 1969; a. Ord. No. 435-1969, eff. Jan. 15, 1970; renumbered to C.M.C. 843-1-S1, eff. Jan. 1, 1972; r. Ord. No. 435-2012, § 14, eff. Dec. 15, 2012)

Sec. 843-1-S2. Second-Hand Dealer.

"Second-hand dealer" shall mean any person who purchases, sells, exchanges or receives second-hand articles of any kind other than a scrap metal dealer as defined by Ohio Revised Code (R.C.) Section 4737.04, a dealer in precious metals as defined by R.C. Section 4737.011, or a dealer of special purchase articles as defined by the R.C. Section 4737.04, scrap iron, and scrap metal.
(Sec. 741-1; ordained by Ord. No. 51-1969, eff. Feb. 5, 1969; a. Ord. No. 435-1969, eff. Jan. 15, 1970; renumbered to C.M.C. 843-1-S2, eff. Jan. 1, 1972; a. Ord. No. 514-1973, eff. Dec. 21, 1973; a. Ord. No. 264-1981, eff. July 1, 1981; a. Ord. No. 278-2013, § 2, eff. Oct. 11, 2013)

Analogous to C.O. 741-3; a. Ord. No. 328-1963, eff. Oct. 2, 1963; a. Ord. No. 268-1964, eff. July 17, 1964; r. Ord. No. 51-1969, eff. Feb. 5, 1969.)

Sec. 843-1-S3. Repealed.
(Sec. 741-1; ordained by Ord. No. 51-1969, eff. Feb. 5, 1969; a. Ord. No. 435-1969, eff. Jan. 15, 1970; renumbered to C.M.C. 843-1-S3, eff. Jan. 1, 1972; r. Ord. No. 278-2013, § 3, eff. Oct. 11, 2013)

Analogous to C.O. 741-3; r. Ord. No. 328-1963, eff. Oct. 2, 1963; a. Ord. No. 268-1964, eff. July 17, 1964; r. Ord. No. 51-1969, eff. Feb. 5, 1969.

Sec. 843-1-S4. Repealed.
(Ordained by Ord. No. 0250-2007, § 1, passed June 6, 2007; r. Ord. No. 435-2012, § 14, eff. Dec. 15, 2012)

Sec. 843-1-S5. Substantially Obscured.

"Substantially obscured" shall mean that a fence, plantings or natural object or objects of

no less than six feet and no more than 10 feet in height obscure the junk located within or upon the premises.
(Sec. 741-4; ordained by Ord. No. 51-1969, eff. Feb. 5, 1969; a. Ord. No. 435-1969, eff. Jan. 15, 1970; renumbered to C.M.C. 843-1-S4, eff. Jan. 1, 1972; renumbered to C.M.C. 843-1-S5, passed June 6, 2007)

Sec. 843-1-S6. Repealed.
(Ordained by Ord. No. 030-2012, § 8, eff. March 15, 2012; r. Ord. No. 297-2013, § 7, eff. Oct. 25, 2013)

Sec. 843-1-S7. Repealed.
(Ordained by Ord. No. 435-2012, § 1, eff. Dec. 15, 2012; r. Ord. No. 297-2013, § 7, eff. Oct. 25, 2013)

Sec. 843-3. License Required.

No person shall act as a second-hand dealer or junk dealer within the city limits of Cincinnati without first obtaining from the city manager or the city manager's designee a license to act as a second-hand dealer or junk dealer.

Nothing in this section is intended to apply to the sale or purchase of aluminum cans.

License Requirements for Second-Hand Dealers and Junk Dealers. Before an original license is issued for a second-hand dealer or junk dealer, the person seeking the license shall make application therefore with the city manager or city manager's designee. If the dealer owns or operates a store, facility, or yard, the dealer shall attach to the application an accurate plot plan of the area, showing the actual shape and dimensions of the lot or area to be used, and shall provide any other additional information that may be requested by the city manager or city manager's designee or director of buildings and inspections in determining whether the applicant should be granted the requested license. An application shall be approved by the director of buildings and inspections and the city police prior to granting a license and shall show that the applicant has complied with all city ordinances and rules and state laws regarding sales and purchasing, duties of dealers, licensing, zoning, drains, signs, driveways, fencing and barrier curbs. The city manager or city manager's designee shall be empowered to suspend, revoke, or deny reissuance of any existing license when it is shown through an investigation by the city police or buildings and inspections departments that the licensee has not complied with all city ordinances and rules and state laws regarding sales and purchasing, duties of dealers, licensing, zoning, drains, signs, driveways, fencing and barrier curbs.

Under no circumstances shall any license to operate a junk yard be issued or renewed until the fencing requirements section forth in Section 843-7 of this chapter have been met and the fence has, after completion, received final approval by the director of buildings and inspections. No license to operate a junk yard shall be renewed if, in the opinion of the director of buildings and inspections, the premises are not adequately fenced pursuant to Section 843-7 of this chapter. Anyone who operates a motor vehicle salvage lot on the same premises and who has obtained a license therefore shall not be required to also obtain a license under this chapter.
(Sec. 741-2; ordained by Ord. No. 51-1969, eff. Feb. 5, 1969; a. Ord. No. 435-1969, eff. Jan. 15, 1970; renumbered to C.M.C. 741-2, eff. Jan. 1, 1972; a. Ord. No. 261-1976, eff. June 16, 1976; a. Ord. No. 030-2012, § 9, eff. March 15, 2012; a. Ord. No. 435-2012, § 8, eff. Dec. 15, 2012; a. Ord. No. 297-2013, § 3, eff. Oct. 25, 2013; Emer. Ord. No. 238-2015, § 18, eff. July 1, 2015; a. Ord. No. 0028-2022, §§ 3, 4, eff. February 9, 2022)

Analogous to C.O. 741-5; r. Ord. No. 51-1969, eff. Feb. 8, 1969.

Editor's note—Ord. No. 030-2012, §§ 26 and 27, effective March 15, 2012, state that § 843-3(c) shall expire twelve

(12) months after the ordinance goes into effect, and that the Council shall have the option to extend the effective dates of § 843-3(c), pending an evaluation of data provided by the City Administration.

Cross reference—Penalty, § 843-99.

Sec. 843-5. License Fees.

The annual license fee to be paid to the city manager or city manager's designee by any person acting as a second-hand dealer or junk dealer shall be as follows:

Junk dealer:

Class 1: Junk dealers having a store, stand or other place of business at which $25,000.00 or more in annual gross sales are made, $400.00 for each store, stand or place of business.

Class 2: Junk dealers having a store, stand or place of business at which less than $25,000.00 in annual gross sales are made, $200.00 for each store, stand or place of business. If an applicant for a Class 2 license fails to provide the city manager or city manager's designee with sufficient evidence that the annual gross sales are less than $25,000.00, the city manager or city manager's designee shall assess the applicant the Class 1 license fee.

Class 3: Junk dealers operating from trucks, wagons, or other vehicles, except pushcarts, $60.00 for each such truck, wagon, or other vehicle.

Class 4: Junk dealers operating from pushcarts, $10.00 for each such pushcart.

Class 5: Junk dealers required to have a junk facility license pursuant to Chapter 1021 of the Cincinnati Municipal Code shall obtain their license from the health commissioner upon the payment of a license fee for the calendar year of $40.00.

If the premises are operated as both a junkyard and a motor vehicle salvage lot, the combined annual gross sales for both operations shall determine the license fee to be assessed.

Second-hand dealer:

Class 1: For any charitable, civic or welfare organization conducting a rummage sale of articles contributed by its members and friends, for a period of not more than three days, and not more than twice in any one year, the license fee shall be $7.00 for each such rummage sale so conducted.

Class 2: For any second-hand dealer that does not qualify as a Class 1 dealer, the license fee shall be $400.00.

(Sec. 741-3; ordained by Ord. No. 51-1969, eff. Feb. 5, 1969; a. Ord. No. 435-1969, eff. Jan. 15, 1970; renumbered to C.M.C. 843-5, eff. Jan. 1, 1972; a. Ord. No. 327-1975, eff. Jan. 1, 1975; a. Ord. No. 261-1976, eff. June 16, 1976; a. Ord. No. 272-1979, eff. Sept. 1, 1979; a. Ord. No. 460-1980, eff. Nov. 13, 1980; a. Ord. No. 345-1995, eff. Nov. 24, 1995; Emer. Ord. 463-2010, § 39, eff. Dec. 30, 2010; a. Ord. No. 030-2012, § 11, eff. March 15, 2012; a. Ord. No. 435-2012, § 10, eff. Dec. 15, 2012; a. Ord. No. 297-2013, § 4, eff. Oct. 25, 2013)

Analogous to C.O. 741-6; a. Ord. No. 265-1962, eff. Aug. 4, 1962; r. Ord. No. 51-1969, eff. Feb. 1, 1969.

Editor's note—Ord. No. 030-2012, §§ 26 and 27, effective March 15, 2012, state that § 843-5 shall expire twelve (12) months after the ordinance goes into effect, and that the Council shall have the option to extend the effective dates of § 843-5, pending an evaluation of data provided by the City Administration.

Sec. 843-7. Fence Required.

No person shall operate or maintain a junk yard within 1,000 feet of the nearest edge of the right of way of any public street or highway unless the ordinary view thereof from such street or highway is substantially obscured by a barrier of natural objects, plantings or fence as defined in Section 843-1-F of this chapter.

The fence herein required shall be kept in good order and repair and no advertisement shall be permitted thereon other than the name of the person under whose name the license to operate said junk yard has been issued and the nature of the business conducted therein. In the event plantings are used to obscure the area, only those varieties of trees, bushes, shrubs or other plantings approved by the Cincinnati Park Board and listed in the office of the director of buildings and inspections shall be authorized. Such plantings shall ring the area which can be viewed from the public street or highway, to a depth of no less than five feet, in no less than two rows, in a staggered pattern, so as to provide the greatest possible concealment of the junk sought to be obscured.

No person shall operate or maintain a junk yard located either partially or completely within the limits of the city of Cincinnati without a license issued pursuant to this chapter by the city manager or city manager's designee, nor operate or maintain a junk yard without the required fence.

No fence required to be erected pursuant to the provisions of this chapter shall be constructed until a permit therefore has been obtained from the director of buildings and inspections, and no permit shall be issued until complete plans for the construction of the fence, including materials, have been given final approval by the director of buildings and inspections. No license to operate or maintain a junk yard shall be issued by the city manager or manager's designee until the fence has been completed and been given final approval by the director of buildings and inspections.

(Sec. 741-4; ordained by Ord. No. 51-1969, eff. Feb. 5, 1969; a. Ord. No. 435-1969, eff. Jan. 15, 1970; renumbered to C.M.C. 843-7, eff. Jan. 1, 1972; a. Ord. No. 030-2012, § 13, eff. March 15, 2012; Emer. Ord. No. 238-2015, § 19, eff. July 1, 2015)

Cross reference—Penalty, § 843-99.

Sec. 843-8. Repealed.

(Ordained by Ord. No. 030-2012, § 15, eff. March 15, 2012; r. Ord. No. 435-2012, § 14, eff. Dec. 15, 2012)

Sec. 843-9. Pawn Shops.

No person shall conduct the business of a pawn shop or loan office, or advance any moneys upon goods pawned or received in any building or store room not completely separated by permanent partitions or walls through which a person could not pass from an adjoining retail store.

No person shall keep open any pawn shop or loan office or transact business therein, or advance any moneys upon goods pawned or received therein, at any time other than the following:

(a) On Fridays and on all weekdays preceding New Year's Day, Memorial Day, Independence Day and Thanksgiving Day, between the hours of 9 a.m. and 7 p.m.

(b) Other weekdays, between the hours of 9 a.m. and 6 p.m.

(c) Any weekday during the period in each year beginning with December 1 and ending with December 25, between the hours of 9 a.m. and 9 p.m.

Whoever violates this section is guilty of illegally operating a pawn shop, a minor misdemeanor.

(C.M.C. 843-9; ordained by Ord. No. 623-1973, eff. Jan. 1, 1974)

Analogous to C.O. 901-p2; renumbered to C.M.C. 901-P2, eff. Jan. 1, 1972; a. Ord. No. 571-1972, eff. Dec. 20, 1972; r. Ord. No. 523-1973, eff. Jan. 1, 1974.

Sec. 843-11. Regulation of Home Sales.

No person, firm or corporation shall conduct a home sale within the city of Cincinnati in violation of the following requirements:

(a) No home sale will be permitted for more than two consecutive days and shall be permitted only during daylight hours.

(b) It shall be unlawful to conduct more than two home sales at any residential premises during any calendar year.

(Ordained by Ord. No. 239-1986, eff. July 25, 1986)

Sec. 843-13. Repealed.

(Ordained by Ord. No. 0250-2007, § 3, passed June 6, 2007; Emer. Ord. No. 022-2010, § 1, eff. Jan. 27, 2010; a. Ord. No. 030-2012, § 116, eff. March 15, 2012; r. Ord. No. 435-2012, § 14, eff. Dec. 15, 2012)

Sec. 843-14. Repealed.

(Ordained by Ord. No. 030-2012, § 18, eff. March 15, 2012; r. Ord. No. 435-2012, § 14, eff. Dec. 15, 2012)

Sec. 843-15. Repealed.

(Ordained by Ord. No. 0250-2007, § 4, passed June 6, 2007; renumbered to C.M.C. 843-16, eff. March 15, 2012; a. Ord. No. 030-2012, § 19, eff. March 15, 2012; r. Ord. No. 435-2012, § 14, eff. Dec. 15, 2012)

Sec. 843-17. Severability.

In the event any section or provision of this chapter shall be declared by a court of competent jurisdiction to be invalid or unconstitutional, such decision shall not affect the validity of this chapter as a whole or any part thereof than the part so declared to be invalid or unconstitutional.

(Ordained by Ord. No. 030-2012, § 22, eff. March 15, 2012)

Sec. 843-98. Enforcement.

Enforcement of second-hand dealer regulations within the city of Cincinnati will encompass both the city's enforcement of the licensing requirements contained within Chapter 843 and the regulations contained within the Ohio Revised Code Section 4737. For purposes of the city's enforcement of the record keeping component within Ohio Revised Code 4737.01, the city will consider a description of a second-hand good to mean the make, model, color, size, and where applicable, any serial number contained thereon or therein.

(Ordained by Ord. No. 278-2013, § 1, eff. Oct. 11, 2013)

Sec. 843-99. Penalties.

Whoever violates the provisions of Section 843-3 of this chapter shall be charged with a minor misdemeanor per day for each day said violation continues and if convicted, shall pay all costs of prosecution hereunder.

Upon conviction of any person, it shall be the duty of the city manager or city manager's designee to: upon a first conviction, suspend all license(s) issued under this chapter for a period of thirty (30) days, and provide written notice to the license holder of such a suspension; upon a second conviction in one year, suspend all license(s) issued under this chapter for a period of ninety (90) days, and provide written notice to the license holder of any such suspension; and upon a third conviction in one year, revoke all license(s) issued under this chapter, and provide written notice to the license holder of such revocation. Any appeal of the above stated suspension or revocations shall follow the process set forth in Section 843-16.

(Sec. 741-5; ordained by Ord. No. 51-1969, eff. Feb. 5, 1969; a. Ord. No. 435-1969, eff. Jan. 15, 1970; a. Ord. No. 414-1970, eff. Dec. 23, 1970; renumbered to C.M.C. 843-99, eff. Jan. 1, 1972; a. Ord. No. 229-1987,

eff. July 19, 1987; a. Ord. No. 030-2012, § 23, eff. March 15, 2012; a. Ord. No. 435-2012, § 12, eff. Dec. 15, 2012; a. Ord. No. 297-2013, § 5, eff. Oct. 25, 2013)

Analogous to C.O. 741-9; r. Ord. No. 51-1969, eff. Feb. 5, 1969.

Sec. 843-99-A. Penalties [for Violation of Section 843-11].

Whoever violates the provisions of Section 843-11 shall be fined not more than $100 for the first violation of said section and not more than $500 for any subsequent violation of said section and the costs of prosecution.

(Ordained by Ord. No. 239-1986, eff. July 25, 1986)

Sec. 843-99-B. Repealed.

(Ordained by Ord. No. 0250-2007, § 5, passed June 6, 2007; r. Ord. No. 030-2012, § 25, eff. March 15, 2012)

Chapter 845

MARKETS

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Sec. 845-1. Definitions.

For the purpose of this chapter, the words and phrases defined in the sections hereunder shall have the meanings therein respectively ascribed to them unless a different meaning is clearly indicated by the context.
(Ord. No. 289-1994, eff. Aug. 8, 1994)

Sec. 845-1-C. Repealed.

(Ordained by Ord. No. 286-2000; eff. Aug. 2, 2000; r. Ord. No. 073-2001, eff. Mar. 14, 2001)

Sec. 845-1-L. Licensee.

The term "licensee" shall include any person authorized to make use of city market space, including without limitation temporary, part time or seasonal users.
(Ordained by Ord. No. 376-2016, § 1, eff. Jan. 7, 2017)

Sec. 845-1-M. Market Manager.

The term "market manager" as used in this chapter shall include, without limitation, any person or entity with whom the City may enter into an agreement for the management of any public market owned by the City.
(Ordained by Ord. No. 376-2016, § 1, eff. Jan. 7, 2017)

Sec. 845-2. Scope of Chapter.

The provisions of this chapter do not apply to sales of tickets to an event, without regard to whether the sale is regulated under Chapter 840, Street Ticket Sales, of the Cincinnati Municipal Code.
(Ordained by Ord. No. 073-2001, eff. Mar. 14, 2001)

Sec. 845-3. Duties of Market Manager.

The market manager shall be designated by the city manager and shall manage any city market pursuant to the terms of a management agreement between the manager and the city of Cincinnati. The market manager shall be responsible for the enforcement and execution of all laws, ordinances and rules and regulations relating to city markets, and such other functions as designated by the city manager. No person shall resist any lawful order of the market manager or his or her designee in the lawful discharge of the several duties imposed upon them. The market manager may designate others to assist in the enforcement and execution of all laws, ordinances and rules and regulations relating to city markets, and such other functions as designated by the city manager.
(Ord. No. 289-1994, eff. Aug. 8, 1994; a. Ord. No. 376-2016, § 2, eff. Jan. 7, 2017)

Sec. 845-5. Location of Markets.

City Market locations are designated as follows:

Findlay Market: That area commonly referred to as Findlay Market, including: the Market House and Farmer's Shed; and all areas owned by the City in that area from Elm Street east to Race Street, and from Findlay Street south to Green Street, including without limitation those portions of Elder Street and Pleasant Street within said area, and all sidewalks, alleys, and parking lots within said area; and the parking lot at Logan and Elder Streets.
(Ord. No. 289-1994, eff. Aug. 8, 1994; a. Ord. No. 323-1996, eff. Nov. 15, 1996; a. Ord. No. 431-1999, eff. Dec. 10, 1999; a. Ord. No. 363-2009, § 7, eff. Jan. 16, 2010; a. Ord. No. 376-2016, § 2, eff. Jan. 7, 2017)

Sec. 845-7. Days and Times of Markets.

The days and times of operation of city markets shall be determined by the market manager after due consideration of the needs of the public and the city market licensees. Such days and times shall be provided within

the market rules and regulations, which rules may include normal hours of operation but also allow the market manager the ability to allow a particular licensee to vary from those normal hours if the variance is to the mutual advantage of the market and the licensee based on the goods or services which the licensee sells.
(Ord. No. 289-1994, eff. Aug. 8, 1994; a. Ord. No. 376-2016, § 2, eff. Jan. 7, 2017)

Sec. 845-9. Market Spaces.

Market spaces at Findlay Market shall be as delineated in such measurements and in such locations as determined to be in the best interest of the public by the market manager. The market manager may from time to time change the sizes or locations of market spaces, the use of vacant spaces, and make use of market spaces for city purposes or for its own retail operations. The locations and dimensions of market spaces and their permitted uses shall be as designated in the market rules and regulations.
(Ord. No. 289-1994, eff. Aug. 8, 1994; a. Ord. No. 323-1996, eff. Nov. 15, 1996; a. Ord. No. 363-2009, § 9, eff. Jan. 16, 2010; a. Ord. No. 376-2016, § 2, eff. Jan. 7, 2017)

Sec. 845-11. Repealed.
(Ord. 289-1994, eff. Aug. 8, 1994; a. Ord. No. 323-1996, eff. Nov. 15, 1996; rpld. by Ord. No. 82-2004, eff. April 9, 2004)

Sec. 845-13. Agreements for Use of Market Space.

The market manager may enter into agreements for the use of market spaces. Each person to whom an award of a city market space has been made, before occupying such city market space at any city market, shall enter into a written license agreement, temporary use agreement, or other agreement with the market manager for occupancy and use. Said agreements shall provide for, but not be limited to, each of the following: fees to be paid by the licensee; the right of the market manager to relocate the licensee to a different market space; terms for any transfer or assignment of a licensee's rights; the agreement of the licensee to be bound by, and conform to, all laws of the United States, the State of Ohio, ordinances of the city of Cincinnati, lawful orders of the city manager, market manager and/or their designees, and city market rules and regulations; and agreement of the licensee that the city manager and the market manager shall have the authority to adopt rules and regulations as are reasonable and for the common benefit of all city market licensees as the particular circumstances may require from time to time.
(Ord. 289-1994, eff. Aug. 8, 1994; a. Ord. No. 376-2016, § 2, eff. Jan. 7, 2017)

Sec. 845-15. Repealed.
(Ord. 289-1994, eff. Aug. 8, 1994; r. Ord. No. 376-2016, § 4, eff. Jan. 7, 2017)

Sec. 845-17. Compliance with Market Rules and Regulations, Orders, Laws and Code Provisions.

Every city market licensee shall comply with city market rules and regulations, all laws of the United States, State of Ohio, ordinances of the city of Cincinnati, and lawful orders of the city manager, market manager and/or their designees.
(Ord. 289-1994, eff. Aug. 8, 1994; a. Ord. No. 376-2016, § 2, eff. Jan. 7, 2017)
Cross reference—Penalty, § 845-99.

Sec. 845-19. Occupation of Market Space Without Written Permission of Market Manager Unlawful.

No person shall occupy, for the sale of merchandise, any city market space without entering a written agreement for the

occupancy and use of that market space with the market manager. No person shall occupy, for the sale of merchandise, any space within the market boundaries established in 845-5 which has not been designated as a market space. Each day's operation without an agreement shall constitute a separate offense.
(Ord. 289-1994, eff. Aug. 8, 1994; a. Ord. No. 323-1996, eff. Nov. 15, 1996; a. Ord. No. 376-2016, § 2, eff. Jan. 7, 2017)
Cross reference—Penalty, § 845-99.

Sec. 845-21. Other Uses of Market Spaces.

The market manager, at his or her discretion, may also provide for the use of market space as follows:

(a) *Non-profit organizations:* The market manager may authorize non-profit organizations to occupy city market space if such space is otherwise not occupied. The market manager shall create standards for the issuance of agreements to occupy market space by non-profit organizations. Such standards shall be provided in the market rules and regulations;

(b) *Musicians and performers:* The city market manager may provide for spaces and times for use of market space by musicians and performers;

(c) *Vacant spaces:* The market manager may maintain market spaces as vacant where necessary or desirable to facilitate the operations of a city market;

(d) *Promotional uses:* The market manager may authorize market spaces for the market's own promotional use, and may authorize the use of market spaces by other organizations for promotional purposes; and

(e) The market manager may authorize the use of market spaces for such other purposes not inconsistent with other provisions of this chapter as he or she deems appropriate.

(Ord. 289-1994, eff. Aug. 8, 1994; a. Ord. No. 376-2016, § 2, eff. Jan. 7, 2017)

Sec. 845-23. Interfering with Occupancy.

No unauthorized person shall interfere with any person lawfully occupying a market space by virtue of a valid agreement for use.
(Ord. 289-1994, eff. Aug. 8, 1994; a. Ord. No. 376-2016, § 2, eff. Jan. 7, 2017)
Cross reference—Penalty, § 845-99.

Sec. 845-25. Subletting, Assignments and Transfers.

No city market licensee shall sublet, assign or transfer any interest in a city market space lease agreement or allow any unauthorized person to occupy any city market space or any part thereof except with the written consent of the market manager, in accordance with the license agreement governing the licensee's use of market space and with the city market rules and regulations. In the event of a sublet or other assignment, persons to whom city market space is sublet, assigned or transferred shall comply with all the license agreement governing the use of the market space being sublet, assigned, or transferred, and with the city market rules and regulations. Except as otherwise provided in this chapter, persons to whom city market space is sublet, assigned or transferred shall have no right of renewal, shall have no right to transfer or assign such rights, and shall have no tenure rights.
(Ord. 289-1994, eff. Aug. 8, 1994; a. Ord. No. 376-2016, § 2, eff. Jan. 7, 2017)
Cross reference—Penalty, § 845-99.

Sec. 845-27. Partnerships and Corporations.

For a partnership or a corporation to be eligible to enter into an agreement for use of

market space, such partnership or corporation must be composed only of individuals and said individuals shall number no more than five. Said business shall enter into an agreement with the market manager whereby changes in the ownership of such entities shall be subject to the approval of the market manager. In addition, a corporation desiring to make use of market space must have the following language typed or printed in capital letters on the obverse side of all of its stock certificates:

THESE SHARES AND ALL OTHER SHARES OF THIS CORPORATION ARE SUBJECT TO AND LIMITED AS TO TRANSFER IN ACCORDANCE WITH SECTION 845-27 OF THE CINCINNATI MUNICIPAL CODE, AND WITH AN AGREEMENT BETWEEN THIS CORPORATION AND THE CITY OF CINCINNATI DATED _____.

A partnership desiring to make use of market space must amend its partnership agreement to reflect the requirements of this section, and the language of the amendment must be approved by the market manager.

Prior to entering into an agreement for use of market space, each partnership or corporation shall file with the market manager a statement setting forth the name and address of every partner or shareholder.

Partnerships and corporations which are not in compliance with this section shall not be authorized to use any city market space.
(Ord. 289-1994, eff. Aug. 8, 1994; a. Ord. No. 376-2016, § 2, eff. Jan. 7, 2017)

Sec. 845-29. Renewal.

Persons who have entered into an agreement with the market manager for use of a city market space shall have no right to renewal of such agreement except as may be provided in the agreement or the market rules and regulations.
(Ord. 289-1994, eff. Aug. 8, 1994; a. Ord. No. 376-2016, § 2, eff. Jan. 7, 2017)

Sec. 845-31. Repealed.
(Ord. 289-1994, eff. Aug. 8, 1994; r. Ord. No. 376-2016, § 4, eff. Jan. 7, 2017)

Sec. 845-33. Repealed.
(Ord. 289-1994, eff. Aug. 8, 1994; r. Ord. No. 376-2016, § 4, eff. Jan. 7, 2017)

Sec. 845-35. Transfer Upon Retirement.

In the event of the retirement of a city market tenant, such city market tenant with the approval of the market manager may transfer his or her leasehold interest in such space to his or her spouse or to a direct lineal descendant if the transferee satisfies any requirements prescribed in this chapter for occupants of city market spaces. To accomplish such transfer, the city market tenant shall request permission from the market manager in writing no later than 30 calendar days prior to the proposed transfer. The request shall contain the name, address and relation to city market tenant of the transferee, and the proposed date of transfer. The transferee shall enter into a lease agreement with the city of Cincinnati prior to taking possession of the city market space. The term of the new agreement shall be for the unexpired portion of the rental period, and any rental or portion thereof paid by the transferor-market tenant shall be credited to the rental of the transferee.

Persons to whom city market space is transferred pursuant to this section shall also be transferred any right of renewal, transfer rights and tenure rights belonging to the retired city market tenant at time of retirement.

In the event of the retirement of a person who is a partner in a partnership or a shareholder in a corporation which is a city market tenant, the retiree may, without affecting such business' right to city market tenancy, transfer his or her interest in the business to his or her spouse or to a direct lineal descendant or descendants, or to the remaining partners or shareholders of the business.
(Ord. 289-1994, eff. Aug. 8, 1994)

Sec. 845-37. Award of Market Space.

The market manager shall be authorized to award city market spaces in his or her discretion and may establish a procedure for the award of temporary, part time and seasonal market spaces. Such procedure may be as provided by city market rules and regulations, written license agreements, or other agreements for use of space, and may provide for application, award, and assignment of space through an electronic system.
(Ord. 289-1994, eff. Aug. 8, 1994; a. Ord. No. 376-2016, § 2, eff. Jan. 7, 2017)

Sec. 845-39. Repealed.
(Ord. 289-1994, eff. Aug. 8, 1994; r. Ord. No. 376-2016, § 4, eff. Jan. 7, 2017)

Sec. 845-41. Repealed.
(Ord. 289-1994, eff. Aug. 8, 1994; r. Ord. No. 376-2016, § 4, eff. Jan. 7, 2017)

Sec. 845-43. Limitation on Occupancies.

No person shall occupy or have a financial interest in more than 10 city market spaces in the same city market located outside the Findlay Market House, or in more than 2 city market spaces located inside the Findlay Market House, except that the market manager may in his or her discretion authorize use of market space in excess of the limits provided in this section if enforcement of this section would cause market spaces to remain vacant.

The market manager shall upon 10 calendar days written notice revoke any written agreement to occupy any city market space in excess of 10 city market spaces, whenever a qualified applicant has entered into an agreement to occupy such city market space as provided for in Section 845-13.

A city market licensee whose license is suspended shall not be entitled to any refund of any rent paid by the city market licensee for the term of the suspension.
(Ord. 289-1994, eff. Aug. 8, 1994; a. Ord. No. 376-2016, § 2, eff. Jan. 7, 2017)
Cross reference—Penalty, § 845-99.

Sec. 845-45. Repealed.
(Ord. 289-1994, eff. Aug. 8, 1994; r. Ord. No. 376-2016, § 4, eff. Jan. 7, 2017)

Sec. 845-47. Occupancy Before and After Market Hours.

No city market licensee shall occupy any city market space, erect or place in position in any street, sidewalk or curb within a city market, any items of any kind whatsoever which are to be used, sold or exposed for sale in the city market, earlier than 2 hours before the opening of such city market, or later than 1 hour after the closing of such city market, except as authorized by the market manager in accordance with the market rules and regulations.
(Ord. 289-1994, eff. Aug. 8, 1994; a. Ord. No. 376-2016, § 2, eff. Jan. 7, 2017)
Cross reference—Penalty, § 845-99.

Sec. 845-49. Repealed.
(Ord. 289-1994, eff. Aug. 8, 1994; r. Ord. No. 376-2016, § 4, eff. Jan. 7, 2017)

Sec. 845-51. Receptacle for Refuse.

City market licensees shall provide suitable receptacles for refuse to hold all the perishable refuse matter that accumulates at his or her city market space. The market manager shall create standards for suitable receptacles for refuse. Such standards shall be provided in the city market rules and regulations.
(Ord. 289-1994, eff. Aug. 8, 1994; a. Ord. No. 376-2016, § 2, eff. Jan. 7, 2017)
Cross reference—Penalty, § 845-99.

Sec. 845-53. Deposit of Non-Market Area Waste Prohibited.

No person shall bring refuse from outside any city market and deposit such refuse for pickup in any location inside the market area.
(Ord. 289-1994, eff. Aug. 8, 1994)
Cross reference—Penalty, § 845-99.

Sec. 845-55. Noisy Trade Soliciting and Profanity Prohibited.

No city market licensee or any person employed at a city market space shall use profane or abusive language, utter loud cries for the purpose of soliciting trade, or solicit business from other city market licensees by making public statements in the city market about the quality or value of the products or goods of other city market licensees.
(Ord. 289-1994, eff. Aug. 8, 1994; a. Ord. No. 376-2016, § 2, eff. Jan. 7, 2017)
Cross reference—Penalty, § 845-99.

Sec. 845-57. Market Licensee Responsible for Employees.

Each city market licensee shall be responsible for his or her employees and associates working at such licensee's city market space, insofar as conduct during city market hours and honest dealing with the public are concerned, and any violation by an employee of any ordinances, laws, or city market rules and regulations, relating to the conduct of persons occupying city market space, or relating to weights, scales and measures, shall also be deemed a violation by the city market licensee who employs such person.
(Ord. 289-1994, eff. Aug. 8, 1994; a. Ord. No. 376-2016, § 2, eff. Jan. 7, 2017)
Cross reference—Penalty, § 845-99.

Sec. 845-59. Sales Limited.

Inside the Findlay Market House no person shall offer, sell or expose for sale any articles, goods, or merchandise other than: foodstuffs; items used to prepare, serve or transport foodstuffs; promotional items advertising the licensee's business or the city market; or such other items authorized by the market manager under this section or in accordance with the market rules and regulations. In all city markets not inside the Findlay Market House, no person shall offer, sell or expose for sale any articles, goods or merchandise except: foodstuffs; horticultural items; or, other items that have been specifically authorized by the market manager. Such other items that may be authorized by the market manager may include, but not be limited to, arts and crafts items and prepared foodstuffs. The market manager may make provision in the rules and regulations for specific classes of goods which may be offered for sale and for how market spaces for the sale of such classes of goods shall be prioritized in terms of their location and potential value and allotted to applicants who wish to license the use of those spaces. The market manager may in the terms of a written agreement for use of market space provide limitations of the classes of goods that may be offered for sale by a licensee.
(Ord. 289-1994, eff. Aug. 8, 1994; a. Ord. No. 376-2016, § 2, eff. Jan. 7, 2017)
Cross reference—Penalty, § 845-99.

Sec. 845-61. Revocation of Agreement.

Revocation by the market manager of a license or other agreement for use of market space shall constitute a termination of all city market rights and privileges of the holder of such agreement. A city market licensee whose rights are revoked shall not be entitled to any refund of any unearned rent paid by such city market licensee.
(Ord. 289-1994, eff. Aug. 8, 1994; a. Ord. No. 376-2016, § 2, eff. Jan. 7, 2017)

Sec. 845-63. Suspension of Rights of Use or Occupancy.

Among other rights and remedies upon a finding of breach or violation of the terms of an agreement for use, or violation of market rules and regulations, the market manager shall have authority to suspend rights of a licensee to use any market space. Suspension of rights of use or occupancy shall not exceed 30 calendar days and shall constitute a suspension of all the city market licensee's rights and privileges in the city market during the term of the suspension. A city market licensee whose license is suspended shall not be entitled to any refund of any rent paid by the city market licensee for the term of the suspension.
(Ord. 289-1994, eff. Aug. 8, 1994; a. Ord. No. 376-2016, § 2, eff. Jan. 7, 2017)

Sec. 845-65. Fines, Suspensions and Revocations of Rights of Use or Occupancy.

The market manager may issue a notice of civil offense against a city market licensee for every violation and/or for each day on which a violation continues, may suspend or revoke the use of market space, or may deny an application for use of market space, for any one or more of the following reasons:

(a) Violation of any provision in this chapter, violation of any laws, ordinances or statutes, violation of any federal laws regulating the use of food stamps, violation of any city market rule or regulation, violation of any laws related to city markets or weights, scales and measure, or rules of the board of health.

(b) Violation of any provision of city market licensee's lease agreement or permit.

(c) Failure to comply with any lawful order of the city manager, the manager of facility management, the market manager, or their designees.

(d) Misrepresenting or providing a false statement in the obtaining of an agreement for use of city market space.

(e) Non-use for a period in excess of 30 calendar days of city market space inside the Findlay Market House by a city market licensee with a one year lease agreement for such space; or non-use for a period of 4 consecutive months of city market space outside the Findlay Market House by a city market licensee with a one year lease agreement for such space. Upon written request, the market manager may waive this forfeiture provision for a specific period of time, when in the determination of the market manager it is in the best interest of the city market to do so, where non-use was due to circumstances such as, but limited to, injury, military service, or illness.

(f) Failure to pay a fine imposed upon a city market licensee by the market manager.

(Ord. No. 289-1994, eff. Aug. 8, 1994; a. Ord. No. 376-2016, § 2, eff. Jan. 7, 2017)

Sec. 845-67. Procedure for Fine, Suspension, Denial or Revocation of Rights of Use of Market Space.

(a) The market manager shall provide written notice to an applicant or city market licensee, by personal service or by mail to a contact address provided by the applicant or city market licensee, of the market manager's

(1) issuance of a notice of civil offense against the city market licensee or

(2) suspension or revocation of a license agreement or other agreement for use previously entered into with the licensee; or

(3) denial of an application for a license agreement or other agreement for use submitted by the applicant.

(b) Such written notice shall describe:

(1) the violation or breach that is the basis for the civil offense, or

(2) the violation or breach that is the basis for the suspension or revocation of the license agreement or other agreement for use and the effective date of the suspension or revocation, or

(3) the lack of qualification or other factors that are the basis for the denial of the application for a license agreement or other agreement for use.

(c) If a notice of civil offense is issued, the written notice shall include the class of offense and corresponding amount of fine, as authorized under Section 845-99 of this chapter.

(d) The written notice shall also provide notice of the right to a hearing before the Office of Administrative Hearings to appeal: the civil offense, the suspension or revocation of a license agreement or other agreement for use, or the denial of an application for a license agreement or other agreement for use.

(Ord. No. 289-1994, eff. Aug. 8, 1994; a. Ord. No. 376-2016, § 2, eff. Jan. 7, 2017)

Sec. 845-69. Right to a Hearing.

On or before the seventh calendar day after receipt of written notice from the market manager of intent to fine a city market licensee, to suspend or revoke a license agreement or other agreement for use, or to deny an application for a license agreement or other agreement for use, the applicant or city market licensee may request a hearing before the Office of Administrative Hearings in accordance with Chapter 1501 of the Cincinnati Municipal Code. For purposes of this chapter, receipt of written notice shall occur either on the day the market manager or his or her designee personally served notice on the licensee or applicant or three days after the written notice was mailed to the contact address provided by the applicant or licensee.

(Ord. No. 289-1994, eff. Aug. 8, 1994; a. Ord. No. 376-2016, § 2, eff. Jan. 7, 2017)

Sec. 845-71. Closing of Streets During Hours Needed for Operation of Findlay Market.

The market manager shall be authorized to close Elder Street, Sellew Alley, and Glass Alley, between Race and Elm Streets, Clymer Alley, between Glass Alley and Green Street and between Sellew Alley and Findlay Street, Fenwick Alley, between Sellew Alley and Findlay Street, and Pleasant Street, between Findlay and Green Streets to the traffic of all vehicles except emergency and public safety vehicles during the hours needed for operation of Findlay Market as determined in accordance with the provisions of Section 845-7 of this chapter. The market manager shall, in his or her discretion, provide daily

access to the above referenced streets and alleys for service, loading and unloading, at such times and for such periods as are convenient and useful.

Emergency and public safety vehicles shall be as defined in Chapter 501 of the Cincinnati Municipal Code. The market manager shall cause to be erected such signs and barriers as are necessary to enforce the provisions of this section.
(Ord. No. 289-1994, eff. Aug. 8, 1994; a. Ord. No. 96-1998, eff. April 17, 1998; a. Ord. No. 376-2016, § 2, eff. Jan. 7, 2017)

Sec. 845-73. Rules and Regulations.

The city manager is authorized to adopt and revise city market rules and regulations as required, necessary, or convenient for the orderly and efficient administration, regulation, management, supervision and control of the city markets. In the use of any space at a city market, all persons shall be subject to: the orders of the city manager, the market manager, and/or their designees; the market rules and regulations; and the provisions of this chapter.
(Ordained by Ord. No. 289-1994, eff. Aug. 8, 1994; a. Ord. No. 376-2016, § 2, eff. Jan. 7, 2017)

Sec. 845-75. Repealed.

(Ordained by Ord. No. 286-2000, eff. Aug. 2, 2000; r. Ord. No. 073-2001, eff. Mar. 14, 2001)

Sec. 845-99. Penalties.

Any person who violates any section of this chapter for which no other penalty is specifically provided, or whoever violates any lawful city market rule or regulation adopted in pursuance of any such section, commits a Class A civil offense as defined by Section 1501-3 of the Cincinnati Municipal Code or shall be guilty of a misdemeanor of the fourth degree.
(Ordained by Ord. No. 289-1994, eff. Aug. 8, 1994; a. Ord. No. 376-2016, § 2, eff. Jan. 7, 2017)

Chapter 846

MOTOR VEHICLE SALVAGE DEALERS

Sec. 846-1. Definition.
Sec. 846-1-F. Fence.
Sec. 846-1-M. Motor Vehicle Salvage Dealer.
Sec. 846-1-M1. Motor Vehicle Salvage Lot.
Sec. 846-1-P. Person.
Sec. 846-1-S. Substantially Obscured.
Sec. 846-3. License Required.
Sec. 846-5. License Fees.
Sec. 846-7. Fence Required.
Sec. 846-9. Permanent Record as to Used Motor Vehicles and Parts Thereof Bought by Dealer.
Sec. 846-99. Penalties.

Sec. 846-1. Definition.

For the purpose of this chapter the words and phrases defined in the sections hereunder shall have the meanings therein respectively ascribed to them, unless a different meaning is clearly indicated by the context.
(Sec. 755-1; ordained by Ord. No. 434-1969, eff. Jan. 15, 1970; renumbered to C.M.C. 846-1, eff Jan. 1, 1972)

Sec. 846-1-F. Fence.

"Fence" shall mean a barrier at least six feet but not more than 10 feet in height, which is either comprised of plantings or natural objects, or constructed of any non-transparent material, approved by the director of building and inspections of the city of Cincinnati, and created and maintained so as to substantially obscure the motor vehicles and motor vehicle parts located within or upon the premises of the motor vehicle salvage lot from the ordinary view of persons passing upon any public street or highway located within the city of Cincinnati, as further set forth in Section 846-7 of this chapter.
(Sec. 755-1; ordained by Ord. No. 434-1969, eff. Jan. 15, 1970; renumbered to C.M.C. 846-1-F, eff. Jan. 1, 1972)

Sec. 846-1-M. Motor Vehicle Salvage Dealer.

"Motor vehicle salvage dealer" shall mean any person engaged in the business of buying, selling or storing used motor vehicle parts, exclusive of tires, or in the salvaging of any motor vehicles, or who brings upon such person's premises two or more motor vehicles for the purpose of removing parts, accessories, equipment or sections or portions thereof from vehicles for sale to others, or who maintains or operates a motor vehicle salvage lot, or any other establishment or place which is used or operated for storing, keeping, buying or selling two or more wrecked, scrapped, ruined, junked, dismantled or inoperable motor vehicles, with the exception of dealers in used automobiles as defined in Section 831-1 and persons excepted from the licensing provisions of Section 846-3 of this chapter.
(Sec. 755-1; ordained by Ord. No. 434-1969, eff. Jan. 15, 1970; renumbered to C.M.C. 846-1-M, eff. Jan. 1, 1972)

Sec. 846-1-M1. Motor Vehicle Salvage Lot.

"Motor vehicle salvage lot" shall mean any place where the buying, selling or storing of used motor vehicle parts, exclusive of tires, or the salvaging of motor vehicles, or the bringing of any motor vehicles thereon for the purpose of removing parts, accessories, equipment or sections or portions therefrom for sale to others, or the storing, keeping, buying or selling of junked, wrecked, scrapped, ruined, dismantled or inoperable motor vehicle occurs, with the exception of establishments or places where motor vehicles, wrecked or otherwise, are being held due to impoundment by a police officer, or which are maintained principally for the repair of wrecked or damaged motor vehicles. In no event shall the exception pertaining to those engaged principally in the repair of motor vehicles apply to establishments or places wherein any wrecked or damaged motor vehicle is permitted to remain outside of a completely enclosed area for a period of more than one week, or where more than 15 wrecked or damaged motor vehicles are permitted to remain outside of a completely enclosed area at any one time. The term motor vehicle salvage lot shall also include any piece of property on which there is habitually kept two or more inoperable motor vehicles. A collection of motor vehicle parts and similar metal parts occupying the space of one automobile shall be considered as one motor vehicle under the terms of this definition.
(Sec. 755-1; ordained by Ord. No. 434-1969, eff. Jan. 15, 1970; renumbered to C.M.C. 846-1-M1, eff. Jan. 1, 1972)

Sec. 846-1-P. Person.

"Person" or "persons" shall mean any individual, firm, corporation, partnership, association, joint venture or joint enterprise.
(Sec. 755-1; ordained by Ord. No. 434-1969, eff. Jan. 15, 1970; renumbered to C.M.C. 846-1-P, eff. Jan. 1, 1972)

Sec. 846-1-S. Substantially Obscured.

"Substantially obscured" shall mean that a fence, plantings or natural object or objects of no less than six feet and no more than ten feet in height obscure the motor vehicles and motor vehicle parts located within or upon the premises.
(Sec. 755-4; ordained by Ord. No. 434-1969, eff. Jan. 15, 1970; renumbered to C.M.C. 846-1-S, eff. Jan. 1, 1972)

Sec. 846-3. License Required.

No person shall act as a motor vehicle salvage dealer or shall operate or maintain a motor vehicle salvage lot within the city limits of Cincinnati without first obtaining a license as a motor vehicle salvage dealer from the city treasurer for each motor vehicle salvage lot operated by such person. Any motor vehicle salvage lot located only partially within the city limits of Cincinnati shall also be licensed pursuant to this section.

Before an original license is issued under this chapter, the person seeking the license shall make application therefor with the city treasurer, and shall attach to the application an accurate plot plan of the area, showing the actual shape and dimensions of the lot or area to be used, and shall provide any other additional information that may be requested by the city treasurer, city engineer or director of buildings and inspections in determining whether the applicant should be granted the requested license. An application shall be approved by the city engineer and the director of buildings and inspections prior to being granted and shall show that the applicant has complied with all city ordinances and rules regarding zoning, drains, signs, driveways, fencing and barrier curbs. Approval by the city engineer and the director of buildings and inspections will not be necessary for the renewal of any license issued under this chapter. However, the city treasurer shall be empowered to suspend or revoke any existing license when it is shown that the licensee has not complied will all city ordinances and rules regarding zoning, drains, signs, driveways, fencing and barrier curbs. Under no circumstances shall any license to operate a motor vehicle salvage lot be issued or renewed until the fencing requirements set forth in Section 846-7 of this chapter have been met and the fence has, after completion, received final approval by the director of buildings and inspections.

Anyone who operates a junk yard on the same premises and who has obtained a license therefor shall not be required to also obtain a license under this chapter. No license to operate a motor vehicle salvage lot shall be renewed if, in the opinion of the director of buildings and inspection, the premises is not adequately fenced pursuant to Section 846-7 of this chapter. No person who has been convicted of illegally possessing or purchasing any motor vehicle or motor vehicle parts or accessories within the past 10 years preceding the date of the application for a license shall be granted a license as a motor vehicle salvage dealer. No partnership in which any of the partners, or no corporation in which any of the principal officers, have been so convicted within the past 10 years preceding the date of application for a license shall be issued such a license.
(Sec. 755-2; ordained by Ord. No. 434-1969, eff. Jan. 15, 1970; renumbered to C.M.C. 846-3, eff. Jan. 1, 1972)

Analogous to C.O. 755-1; a. Ord. No. 265-1962, eff. Aug. 4, 1962; r. Ord. No. 434-1969, eff. Jan. 15, 1970.

Cross reference—Penalty, § 846-99.

Sec. 846-5. License Fees.

Except as otherwise provided, the city treasurer shall, on request, after having been satisfied that no violations of this chapter exist, issue to any responsible person a license to act as a motor vehicle salvage dealer or operate and maintain a motor vehicle salvage lot upon the payment of a license fee for the calendar year in the amount of $400.
(Sec. 755-3; ordained by Ord. No. 434-1969; eff. Jan. 15, 1970; renumbered to C.M.C. 846-5, eff. Jan. 1, 1972; a. Ord. No. 327-1975, eff. Sept. 1, 1975; a. Ord. No. 282-1979, eff. Sept. 1, 1979; Emer. Ord. 463-2010, § 41, eff. Dec. 30, 2010)

Analogous to C.O. 755-1; a. Ord. No. 265-1962, eff. Aug. 4, 1962; r. Ord. No. 434-1969, eff. Jan. 15, 1970.

Sec. 846-7. Fence Required.

No person shall operate or maintain a motor vehicle salvage lot within 1,000 feet of the nearest edge of the right of way of any public street or highway unless the ordinary view thereof from such street or highway is substantially obscured by a barrier of natural objects, plantings or a fence as defined in this chapter. The fence herein required shall be kept in good order and repair, and no advertisement shall be permitted thereon other than the name of the person under whose name the license to operate the motor vehicle salvage lot has been issued and the nature of the business conducted therein. In the event plantings are used to obscure the area, only those varieties of trees, bushes, shrubs or other plantings approved by the Cincinnati Park Board and listed in the office of the director of buildings and inspections shall be authorized. Such plantings shall ring the area which can be viewed from the public street or highway, to a depth of no less than five feet, in no less than two rows, in a staggered pattern, so as to provide the greatest possible concealment of the motor vehicles and motor vehicle parts sought to be obscured.

No person shall operate or maintain a motor vehicle salvage lot located either partially or completely within the limits of the city of Cincinnati without a motor vehicle salvage license issued by the city treasurer, nor shall any person operate or maintain a motor vehicle salvage lot without the required fence.

No fence required to be erected pursuant to the provisions of this chapter shall be constructed until a permit therefor has been obtained from the director of buildings and inspections of the city of Cincinnati, and no permit shall be issued until complete plans for the construction of the fence, including materials, have been submitted to and approved by the director. No license to operate or maintain a motor vehicle salvage lot shall be issued by the city treasurer until the fence has been completed and been given final approval by the director of buildings and inspections.
(Sec. 755-4; ordained by Ord. No. 434-1969, eff. Jan. 15, 1970; renumbered to C.M.C. 846-7, eff. Jan. 1, 1972)

Cross reference—Penalty, § 846-99.

Sec. 846-9. Permanent Record as to Used Motor Vehicles and Parts Thereof Bought by Dealer.

Every person engaged in the business of buying or selling used motor vehicles, motor vehicle parts or motor vehicle accessories shall maintain a permanent record of all motor vehicles, parts of motor vehicles or motor vehicle accessories, unless such equipment was purchased from a person, firm or corporation licensed under the provisions of this chapter or under Chapter 831 of this code. The record shall contain a full and complete description of such used motor vehicle or motor vehicles, parts of motor vehicles or accessories thereof, together with the motor number, the serial number, the body number, color, type, model and other marks

of identification, the date of purchase and the name of the person from whom such motor vehicle or motor vehicles, parts of motor vehicles or motor vehicle accessories were purchased.

(Sec. 755-5; ordained by Ord. No. 434-1969, eff. Jan. 15, 1970; renumbered to C.M.C. 846-9, eff. Jan. 1, 1972)

Analogous to C.O. 755-3; a. Ord. No. 382-1965, eff. Oct. 9, 1965; r. Ord. No. 434-1969, eff. Jan. 15, 1970.

Cross reference—Penalty, § 846-99.

Sec. 846-99. Penalties.

Whoever violates the provisions of Section 846-3, 846-7 or 846-9 of this chapter shall be fined $100 per day for each day said violation continues and shall pay all costs of prosecution hereunder; and it shall be the duty of the city treasurer, upon conviction of any person, firm or corporation, to revoke the license granted hereunder immediately.

Operation of scrap lots without a license or in violation of this chapter shall subject such persons, firms or corporations engaged in such operation to petition for injunctive relief for the cessation of such operation.

(Sec. 755-6; ordained by Ord. No. 434-1969, eff. Jan. 15, 1970; a. Ord. No. 414-1970, eff. Dec. 23, 1970; renumbered to C.M.C. 846-99, eff. Jan. 1, 1972; a. Ord. No. 229-1987, eff. July 19, 1987)

Analogous to C.O. 755-4; r. Ord. No. 434-1969, eff. Jan. 15, 1970.

Chapter 847

RESERVED*

*__Editor's note—__Ord. No. 328-2008, § 1, effective Jan. 1, 2009, repealed ch. 847 in its entirety. Former ch. 847 pertained to nursing homes as ordained by Ord. No. 9-2002, effective Feb. 14, 2003. See the Ordinance Modification Table for further information.

Chapter 848

RESERVED*

*__Editor's note—__Ord. No. 328-2008, § 2, effective Jan. 1, 2009, repealed ch. 848 in its entirety. Former ch. 848 pertained to residential care facilities as ordained by Ord. No. 8-2002, effective 2-14-2003. See the Ordinance Modification Table for further information.

Chapter 850

ADVERTISING OF TOBACCO PRODUCTS*

Sec. 850-1. Definitions.
Sec. 850-1-A. Advertise.
Sec. 850-1-M. Motor Transportation Company.
Sec. 850-1-P. Person.
Sec. 850-1-P1. Place of Public Exposition.
Sec. 850-1-P2. Public Bus or Motor Bus.
Sec. 850-1-P3. Public Vehicle.
Sec. 850-1-S. Sidewalk.
Sec. 850-1-S1. Sign.
Sec. 850-1-S2. Street or Highway.
Sec. 850-1-T. Tobacco Product.
Sec. 850-3. Advertising of Tobacco Products.
Sec. 850-99. Penalties.

*__Cross references__—Sale, use and of tobacco, ch. 609; distributing tobacco or other smoking products in public places, § 714-24.

Sec. 850-1. Definitions.

For the purpose of this chapter the words and phrases defined in the section hereunder shall have the meanings respectively ascribed to them, unless a different meaning is clearly indicated by the context.
(Ord. 193-1994, eff. 6-2-94)

Sec. 850-1-A. Advertise.

"Advertise" means to direct attention to a business commodity, product, service or entertainment conducted, sold or offered elsewhere than upon the premises where such advertisement is maintained or primarily intended to promote sale off-premises.
(Ord. 193-1994, eff. 6-2-94)

Sec. 850-1-M. Motor Transportation Company.

"Motor Transportation Company" means every person owning, controlling, operating or maintaining any motor-propelled vehicle used in the business of transportation of persons as a common carrier, for compensation, over any public street or highway in the city of Cincinnati, not engaged primarily in the transportation of persons in interstate commerce.
(Ord. 193-1994, eff. 6-2-94)

Sec. 850-1-P. Person.

"Person" means an individual, corporation, business trust, estate, trust, partnership and association.
(Ord. 193-1994, eff. 6-2-94)

Sec. 850-1-P1. Place of Public Exposition.

"Place of Public Exposition" means a stadium, theatre, arena, concert hall and the like, whether indoors or outdoors, where minors are present.
(Ord. 193-1994, eff. 6-2-94)

Sec. 850-1-P2. Public Bus or Motor Bus.

"Public Bus" or "Motor Bus" means a motor-propelled vehicle used and operated by a motor transportation company.
(Ord. 193-1994, eff. 6-2-94)

Sec. 850-1-P3. Public Vehicle.

"Public Vehicle" means a vehicle by which individual service for compensation in the transportation of persons on the public streets or highways is furnished or offered to be furnished including taxicabs, limousines, accessible vehicles, and animal-drawn carriages.
(Ord. 193-1994, eff. 6-2-94; a. Ord. No. 287-23, § 1, eff. August 2, 2023)

Sec. 850-1-S. Sidewalk.

"Sidewalk" means that portion of a street between the curbline, or the lateral lines of a street or highway, and the adjacent property lines intended for the use of pedestrians and all elevated public walkway systems and concourses and all vertical means of access and egress including, but not limited to, stairways, escalators and elevators.
(Ord. 193-1994, eff. 6-2-94)

Sec. 850-1-S1. Sign.

"Sign" means writing, including a word or numeral; pictorial representation, including illustration or decoration; emblem, including device, symbol or trademark or other figures or characters used to announce, direct attention to or advertise.
(Ord. 193-1994, eff. 6-2-94)

Sec. 850-1-S2. Street or Highway.

"Street" or "Highway" means the entire width between the boundary lines of every way open to the use of the public as a thoroughfare for purposes of vehicular travel,

including the traveled portion of roadways in city parks, recreation grounds or in other areas owned or operated by the city.
(Ord. 193-1994, eff. 6-2-94)

Sec. 850-1-T. Tobacco Product.

"Tobacco Product" means any substance which contains tobacco, including cigarettes, cigars, smoking tobacco and smokeless tobacco.
(Ord. 193-1994, eff. 6-2-94)

Sec. 850-3. Advertising of Tobacco Products.

No person shall place any sign, poster, placard, device, graphic display or other form of advertising that advertises tobacco products in or on any sidewalk, street, highway, public vehicle, public bus or motor bus occupying any public street or highway under the jurisdiction and control of the city or any of its boards or commissions or in or on any place of public exposition.

The provisions of this chapter pertaining to places of public exposition shall be operational on and after June 1, 1996.

This restriction shall not apply to commercial vehicles used for transporting tobacco products.
(Ord. 193-1994, eff. 6-2-94)

Sec. 850-99. Penalties.

Whoever violates any provision of this chapter shall be fined not more than $100, or imprisoned not more than 30 days, or both. Each day's violation shall constitute a separate offense.
(Ord. 193-1994, eff. 6-2-94)

Chapter 851

AMUSEMENT GAMES

Sec. 851-1. Definitions.
Sec. 851-1-D. Distributor.
Sec. 851-1-E. Exhibitor.
Sec. 851-1-G. Amusement Game.
Sec. 851-3. Operation Without License Unlawful.
Sec. 851-5. License Fees.
Sec. 851-7. Application for License.
Sec. 851-9. Requirement for License.
Sec. 851-11. Mechanism Requirement.
Sec. 851-13. Restriction on Minors.
Sec. 851-15. Supervision of Premises.
Sec. 851-17. Transfer of License.
Sec. 851-19. Change of Location.
Sec. 851-21. Inspection by Police.
Sec. 851-23. Revocation of License.
Sec. 851-99. Penalties.

Sec. 851-1. Definitions.

For the purpose of this chapter, the words and phrases deemed in the sections hereunder shall have the meanings therein respectively ascribed to them unless a different meaning is clearly indicated by the context.
(Ordained by Ord. No. 249-1982, eff. June 16, 1982)

Sec. 851-1-D. Distributor.

"Distributor" shall include any person, firm or corporation which sells, leases, rents, owns, for the purpose of distribution, or otherwise distributes amusement games within the city of Cincinnati for profit.
(Ordained by Ord. No. 249-1982, eff. June 16, 1982)

Sec. 851-1-E. Exhibitor.

"Exhibitor" shall mean a person, firm or corporation owning or conducting a place of business in the city of Cincinnati and operating or exhibiting one or more amusement games at such place of business.
(Ordained by Ord. No. 249-1982. eff. June 16, 1982)

Sec. 851-1-G. Amusement Game.

"Amusement game" shall include any machine or device commonly or popularly known as a pinball machine, and any machine or device which registers a score and in which or on which a person can shoot or roll, either manually or mechanically, one or more pellets, balls or marbles upon the insertion of a coin, disc or other insertion piece or upon the payment of a consideration. "Amusement game" shall also include any machine or device which is operated by the insertion of any coin, token, disc or upon the payment of a consideration which contains a video screen upon which the contest or game is displayed and which tabulates a score.
(Ordained by Ord. No. 249-1982, eff. June 16, 1982)

Sec. 851-3. Operation Without License Unlawful.

No person, firm or corporation shall engage in the business of selling, leasing, renting, operating or exhibiting amusement games without first obtaining a license to do so and conforming to the regulations provided for such business in accordance with the provisions of this chapter.
(Ordained by Ord. No. 249-1982, eff. June 16, 1982)

Sec. 851-5. License Fees.

Every distributor shall pay an annual license fee of $75.00 plus a fee of $75.00 for each amusement game maintained or exhibited. Every exhibitor shall pay an annual license fee of $15.00 plus a fee of $10.00 for each amusement game maintained or exhibited. An exhibitor operating at more than one location shall pay a license fee for each location.

All licenses issued under this chapter shall expire on the succeeding 30th day of June. Licenses issued on or after the first day of January will be at the rate of one-half of the annual fees mentioned in this section.
(Ordained by Ord. No. 249-1982, eff. June 16, 1982; Emer. Ord. 463-2010, § 43, eff. Dec. 30, 2010)

Sec. 851-7. Application for License.

Applications for distributor, exhibitor and amusement game licenses shall be made to the city treasurer on forms provided by the city treasurer. Applications for distributor's licenses shall set forth the places of business and residence of the distributor. If the distributor is a firm, the place of residence of all partners shall be furnished. If the distributor is a corporation, the place of residence of the chief business manager or other controlling executive officers shall be furnished. Applications for exhibitor's licenses shall in addition

state the number of amusement games for which licenses are requested, the trade name, design or operation of each such machine or device and the location of the premises and the particular room on the premises in which such amusement games are to be exhibited.

If the city treasurer is satisfied that the applicant has complied with all of the provisions of this and the following sections and is otherwise eligible to be a licensee, the city treasurer shall issue the license on payment of the license fees. The treasurer shall if necessary inspect any machine or device sought to be licensed in order to determine whether it complies with the provisions of this chapter.

The license stamps for amusement games shall specify the locations in which they are to be exhibited or maintained. If a location consists of more than one room, the particular room shall be specified. Each license stamp shall be attached to the machine or device for which it is issued so as to be in plain view of persons playing the machine or device.
(Ordained by Ord. No. 249-1982, eff. June 16, 1982)

Sec. 851-9. Requirement for License.

No person shall be licensed as a distributor unless such person has been a bona fide resident of Hamilton County for a period of at least two years immediately preceding the application for such license and unless such person is of good moral character. No person shall be licensed as an exhibitor unless such person is of good moral character. No firm or corporation shall be licensed as a distributor unless the business is operated from a location within Hamilton County, unless all partners or the chief business manager or other controlling executive officers of such firm or corporation shall have been residents of Hamilton County for a period of at least two years immediately preceding the application for such license, and unless all of said persons are of good moral character. No exhibitor's license shall be issued in the name of a firm or corporation. A person convicted within the preceding 10 years of a felony or within the preceding 5 years of a misdemeanor involving moral turpitude or gambling shall be considered as being not of good moral character.

Any distributor operating in the city of Cincinnati and not in compliance with the residency requirements of this section shall be eligible to receive a distributor's license until June 30, 1984, regardless of the residency provisions of this section. After June 30, 1984, all applicants for a distributor's license must comply with the residency requirement.
(Ordained by Ord. No. 249-1982, eff. June 16, 1982)

Sec. 851-11. Mechanism Requirement.

No exhibitor or other person shall exhibit, operate or have in possession an amusement game which is so constructed as to make possible either directly or by the use of an adjustment the return of cash, tickets, discs, tokens or certificates of any kind whether or not such tickets, discs, tokens or certificates have any value. No exhibitor or other person shall exhibit, operate or have in possession an amusement game which is programmed so as to make possible either directly or by the use of an adjustment a free game.
(Ordained by Ord. No. 249-1982, eff. June 16, 1982)

Sec. 851-13. Restriction on Minors.

No person shall permit a minor under the age of 18 years to play any amusement game requiring a license as provided for by this chapter between the hours of 8:00 a.m. and 3:00 p.m. on any day the school in which the

minor is enrolled is in session unless such minor has the consent of a parent or legal guardian.
(Ordained by Ord. No. 249-1982, eff. June 16, 1982)

Sec. 851-15. Supervision of Premises.

Each location exhibiting an amusement game requiring a license as provided for by this chapter shall be under the control and supervision of an adult of at least 18 years of age who shall be on the premises at all times the business is open.
(Ordained by Ord. No. 249-1982, eff. June 16, 1982)

Sec. 851-17. Transfer of License.

When the business of a distributor or exhibitor is sold or otherwise transferred the license of such distributor or exhibitor may be transferred to the transferee with the consent of the city treasurer for the remainder of the license period if the treasurer is satisfied that such successor would be eligible to receive a new license.

The transfer of the exhibitor's license shall carry with it the transfer of the amusement game licenses issued, but such transfer shall be noted on the books of the city treasurer and upon the license stamps issued for amusement games.
(Ordained by Ord. No. 249-1982, eff. June 16, 1982)

Sec. 851-19. Change of Location.

No licensed amusement game shall be removed from one premises to another or from one room to another room on the same premises unless the new location shall be approved by the city treasurer and duly noted on the license stamp and on the city treasurer's records. Nothing herein however shall be understood to prevent the replacement of one machine by another and the transfer of the license to such substituted machine if such replacement complies with the requirements of this chapter.
(Ordained by Ord. No. 249-1982, eff. June 16, 1982)

Sec. 851-21. Inspection by Police.

All amusement games and all premises in which such machines or devices are maintained or exhibited shall be open to inspection by the police during business hours.
(Ordained by Ord. No. 249-1982, eff. June 16, 1982)

Sec. 851-23. Revocation of License.

Should any distributor or exhibitor be convicted of violating the gambling laws of the state of Ohio involving the use of any "amusement game," as defined in Section 851-1-G, Cincinnati Municipal Code, it shall be the duty of the city treasurer to revoke all licenses issued under this chapter of the distributor or exhibitor. Should any distributor or exhibitor be convicted of violating or failing to comply with any of the provisions of this chapter, the city treasurer may revoke or suspend all licenses issued under this chapter of the distributor or exhibitor. In the event four or more misdemeanors or felony convictions of a patron or patrons are obtained for offenses occurring during business hours on a premises licensed under this chapter, in a calendar year, the city treasurer may revoke or suspend all licenses issued under this chapter of the exhibitor or distributor. In the case of the revocation of an exhibitor's license, the license of all machines or devices operated by the exhibitor or on the exhibitor's premises shall be revoked and such machines or devices removed from the premises within 24 hours thereafter. A distributor or exhibitor whose license has been revoked shall not be eligible to apply for or receive a new license within the period of one year from the date of revocation.
(Ordained by Ord. No. 249-1982, eff. June 16, 1982)

Sec. 851-99. Penalties.

Whoever violates any provision of this chapter shall be fined not more than $100.
(Ordained by Ord. No. 249-1982, eff. June 16, 1982)

Chapter 853

PROFESSIONAL BONDSMEN

Sec. 853-1. Repealed.
Sec. 853-3. Repealed.
Sec. 853-4. Repealed.
Sec. 853-5. Surety Bond.
Sec. 853-7. Repealed.
Sec. 853-9. Repealed.
Sec. 853-11. Repealed.
Sec. 853-13. Repealed.
Sec. 853-15. Repealed.
Sec. 853-17. Repealed.
Sec. 853-19. Repealed.

Sec. 853-1. Repealed.

(C.O. 722-1, renumbered to C.M.C. 853-1, eff. Jan. 1, 1972; a. Ord. No. 212-1983; eff. June 10, 1983; r. Ord. No. 332-1984, eff. Aug. 1, 1984)

Sec. 853-3. Repealed.

(C.O. 722-2; a. Ord. No. 265-1962, eff. Aug. 4, 1962; a. Ord. No. 90-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 853-3, eff. Jan. 1, 1972; a. Ord. No. 490-1973, eff. No. 7, 1973; a. Ord. No. 327-1975, eff. Sept. 1, 1975; a. Ord. No. 237-1979, eff. June 6, 1979; a. Ord. No. 282-1979, eff. Sept. 1, 1979; a. Ord. No. 212-1983, eff. June 10, 1983; r. Ord. No. 332-1984, eff. Aug. 1, 1984)

Sec. 853-4. Repealed.

(C.M.C. 853-4; ordained by Ord. No. 237-1979, eff. June 6, 1979; a. Ord. No. 212-1983, eff. June 10, 1983; r. Ord. No. 332-1984, eff. Aug. 1, 1984)

Sec. 853-5. Surety Bond.

The city treasurer shall retain in his possession all cash, bonds of the United States, the state of Ohio, or any of its political subdivisions which is not in default in the payment of any of its bonds, or the interest thereon which have been endorsed and made payable to the city of Cincinnati and have been deposited with the city treasurer as surety for all outstanding, undischarged bail bonds, recognizance bonds, appeal bonds, or other court bonds and unpaid forfeitures on which the depositor may be liable as surety.

Upon receipt of certification from the Hamilton County Clerk of Courts that the amount of outstanding bail bonds, appeal bonds or other unpaid forfeitures for which the depositor is liable as surety have been discharged or have been reduced below the level of the amount of the deposits held by the city treasurer, the city treasurer shall return the excess amount of cash, bonds of the United States, the state of Ohio, or any of its political subdivisions which is not in default in the payment of any of its bonds, or the interest thereon held by the city treasurer as bond to the depositor.

No bail bond, recognizance bond, appeal bond, or other court bond shall be written or issued from and after the effective date of this ordinance [section] against the cash, bonds of the United States, the state of Ohio, or any of its political subdivisions which is not in default in the payment of any of its bonds or the interest thereon which are deposited with the city treasurer under this section.
(C.O. 772-2a; renumbered to C.M.C. 853-5, eff. Jan. 1, 1972; a. Ord. No. 49-1973, eff. Nov. 7, 1973; repealed and reenacted by Ord. No. 333-1984, eff. Aug. 1, 1984)

Sec. 853-7. Repealed.

(C.M.C. 853-7; ordained by Ord. No. 237-1979, eff. June 6, 1979; a. Ord. No. 212-1983, eff. June 10, 1983; r. Ord. No. 332-1984, eff. Aug. 1, 1984)

Sec. 853-9. Repealed.

(C.O. 722-3; renumbered to C.M.C. 853-9, eff. Jan. 1, 1972; a. Ord. No. 212-1983, eff. June 10, 1983; r. Ord. No. 332-1984, eff. Aug. 1, 1984)

Sec. 853-11. Repealed.

(C.O. 722-4; renumbered to C.M.C. 853-11, eff. Jan. 1, 1972; a. Ord. No. 212-1983, eff. June 10, 1983; r. Ord. No. 332-1984, eff. Aug. 1, 1984)

Sec. 853-13. Repealed.

(C.O. 722-5; renumbered to C.M.C. 853-13, eff. Jan. 1, 1972; a. Ord. No. 490-1973, eff. Nov. 7, 1973; Ord. No. 332-1984, eff. Aug. 1, 1984)

Sec. 853-15. Repealed.

(C.O. 722-5a; renumbered to C.M.C. 853-15, eff. Jan. 1, 1972; r. Ord. No. 332-1984, eff. Aug. 1, 1984)

Sec. 853-17. Repealed.

(C.O. 722-6; renumbered to C.M.C. 853-17, eff. Jan. 1, 1972; a. Ord. No. 490-1973, eff. Nov. 7, 1973; a. Ord. No. 212-1983, eff. June 10, 1983; r. Ord. No. 332-1984, eff. Aug. 1, 1984)

Sec. 853-19. Repealed.

(C.O. 722-7; renumbered to C.M.C. 853-19, eff. Jan. 1, 1972; r. Ord. No. 332-1984, eff. Aug. 1, 1984)

Chapter 855

ROOMING HOUSES

Sec. 855-1. Definitions.
Sec. 855-1-D. Dwelling.
Sec. 855-1-D1. Director.
Sec. 855-1-H. Hotel.
Sec. 855-1-P. Person.
Sec. 855-1-R. Roomer.
Sec. 855-1-R1. Rooming House.
Sec. 855-3. License Required.
Sec. 855-5. Application for License.
Sec. 855-7. Renewal of License.
Sec. 855-9. License Fees.
Sec. 855-11. Revocation of License.
Sec. 855-13. Transference of License.
Sec. 855-15. Appeal from Denial or Revocation of License.
Sec. 855-17. Guest Register Required.
Sec. 855-19. Use of Premises Restricted.
Sec. 855-21. Register to be Open for Inspection by City Officers.
Sec. 855-23. Copy of License to be Posted.
Sec. 855-99. Penalties.

Sec. 855-1. Definitions.

For the purpose of this chapter the words and phrases defined in the sections hereunder shall have the meanings therein respectively ascribed to them, without limiting the generalities of the words, unless a different meaning is clearly indicated by the context.
(C.O. 740-1; renumbered to C.M.C. 855-1, eff. Jan. 1, 1972)

Sec. 855-1-D. Dwelling.

"Dwelling" shall mean a building occupied as a place of abode by one or more persons.
(C.O. 740-1; renumbered to C.M.C. 855-1-D, eff. Jan. 1, 1972)

Sec. 855-1-D1. Director.

"Director" shall include the director of buildings and inspections and authorized employees appointed to perform specific duties of the department.
(C.O. 740-1; renumbered to C.M.C. 855-1-C, eff. Jan. 1, 1972; renumbered to C.M.C. 855-1-D1, eff. Sept. 6, 1979)

Sec. 855-1-H. Hotel.

"Hotel" shall mean any dwelling licensed as such by the state fire marshal and kept, used, maintained, advertised or held out to the public to be a place where food is served and sleeping accommodations are offered for pay to transient guests, in which six or more rooms are used for the accommodations of such guests, and having one or more dining rooms directly accessible from within the building.
(C.O. 740-1; renumbered to C.M.C. 855-1-H, eff. Jan. 1, 1972)

Sec. 855-1-P. Person.

"Person" shall mean individual persons, firms or corporations, their agents, trustees, heirs or assigns.
(C.O. 740-1; renumbered to C.M.C. 855-1-P, eff. Jan. 1, 1972)

Sec. 855-1-R. Roomer.

"Roomer" shall mean any person who is not a member of the family of, nor related by blood, marriage, or legal adoption to the operator of a rooming house, to whom space is provided for sleeping or boarding purposes for pay.
(C.O. 740-1; renumbered to C.M.C. 855-1-R, eff. Jan. 1, 1972)

Sec. 855-1-R1. Rooming House.

"Rooming house" shall mean a dwelling occupied by three or more roomers or in which three or more rooms are kept, used, maintained, advertised or held out to the public to be a place where sleeping accommodations are offered for pay; provided that "hotels" as herein defined, "dwelling units" as defined in Title XI of this code and any dwelling in which one or two rooms within individual dwelling-units are let out by the occupants of the units shall not be construed to be rooming houses for purposes of this chapter.
(C.O. 740-1; renumbered to C.M.C. 855-1-R1, eff. Jan. 1, 1972)

Sec. 855-3. License Required.

No person shall operate or permit to be operated a rooming house without having a license or a temporary certificate to do so as hereinafter provided.
(C.O. 740-3; renumbered to C.M.C. 855-3, eff. Jan. 1, 1972)

Cross reference—Penalty, § 855-99.

Sec. 855-5. Application for License.

Within 60 days after the effective date of this ordinance, the operator of every existing rooming house shall apply for, as hereinafter provided, a rooming house license issued by the city treasurer in the name of the operator and for the specific dwelling within which the rooming house is contained.

The city treasurer shall furnish duplicate application forms on which the operator shall indicate:

(a) The address of the building in which the rooming house is operated;

(b) The name and address of the owner of the building;

(c) The name and address of the operator of the rooming house;

(d) A statement as to whether or not the operator has ever been convicted of a crime involving moral turpitude;

(e) The type of occupancy of the rooming house (all one sex or mixed);

(f) The number of rooms to be let out for sleeping purposes;

(g) The number and location of the toilets, lavatories and baths;

(h) Such other information as may be necessary to determine that the use and occupancy of the building is permitted by law.

The city treasurer shall forthwith issue a no-charge temporary certificate stating that a license has been applied for and that such license shall be issued or denied within 90 days or less after the date of the inspection by the director of buildings and inspections.

A copy of all applications shall be sent to the director who shall make an inspection of the building as soon as feasible to determine whether or not it is in substantial compliance with Title XI of this code and in a safe and sanitary condition. He shall thereupon either notify the operator of the rooming house that the application has been approved and that the license shall be obtained from the city treasurer within 30 days or the use discontinued, or notify the operator that the rooming house is not in compliance with the law and in what respects, and order it to be brought into compliance within 90 days from the date of the original inspection and a license secured, or to cease operations.

Every new rooming house must obtain a license before beginning operation. Application shall be made to the city treasurer as above provided and acted upon within 30 days of the date of filing.
(C.O. 740-5; renumbered to C.M.C. 855-5, eff. Jan. 1, 1972)

Cross reference—Penalty, § 855-99.

Sec. 855-7. Renewal of License.

All licenses shall be issued annually after inspection and approval by the director; provided, however, that the first license shall expire on the last day of the 12th month after the issuance.
(C.O. 740-7; renumbered to C.M.C. 855-7, eff. Jan. 1, 1972)

Sec. 855-9. License Fees.

The annual license fee shall be $75.00 plus the sum of $15.00 for each room to be let out; provided, however, that the maximum fee per license shall not exceed $250.00.

Failure to renew a license within 15 days after the date of expiration, for a rooming house in actual operation, shall result in the above fees being doubled.
(C.O. 740-9; a. Ord. No. 418-1958, eff. Dec. 1958; a. Ord. No. 265-1962, eff. Aug. 4, 1962; a. Ord. No. 90-1969, eff. Aug. 1, 1969; renumbered to C.M.C. 855-9, eff. Jan. 1, 1972; a. Ord. No. 327-1975, eff. Sept. 1, 1975; a. Ord. No. 282-1979, eff. Sept. 1, 1979; Emer. Ord. 463-2010, § 45, eff. Dec. 30, 2010)

Sec. 855-11. Revocation of License.

A rooming house license shall be revoked or denied by the city treasurer upon certification by the director of buildings and inspec-

tion, the commissioner of health, the fire chief or the chief of police of any of the following conditions:

(a) Failure to comply with any lawful order to correct violations of laws, rules or regulations of the city of Cincinnati or the laws of Ohio concerning safety, health, morals or general welfare of the occupants of the rooming house, or the public in general, within 60 days or within the time stated in the notice when the condition to be remedied is so hazardous as to require immediate attention;

(b) Conviction of the operator of any illegal or immoral use of the building, or any crime involving moral turpitude;

(c) The presence of cooking facilities in any designated sleeping room or in any room not legally constituted as a dwelling unit;

(d) The use in common of kitchen facilities by more than one family;

(e) Continued or repeated instances of insanitation, or disregard of fire safety regulations, or inadequate maintenance of the building and/or of its parts or equipment.

(C.O. 740-11; renumbered to C.M.C. 855-11, eff. Jan. 1, 1972)

Sec. 855-13. Transference of License.

No such license shall be transferable. Any person taking over the operation of a licensed rooming house shall apply for a new license within 10 days of taking over the operation, or be considered delinquent and charged the double fee. No refunds shall be made to those discontinuing operation or who sell, transfer, give away, or otherwise dispose of a rooming house to another person.

(C.O. 740-13; renumbered to C.M.C. 855-13, eff. Jan. 1, 1972)

Cross reference—Penalty, § 855-99.

Sec. 855-15. Appeal from Denial or Revocation of License.

Any person aggrieved by the denial or revocation of a license in matters relating to violations of Title XI of this code may request a hearing before a board of review composed of the city solicitor, director of safety and health commissioner. The board of review shall make its determination within 20 days from the date of hearing of the appeal.

Notice of intention to appeal shall be filed at the office of the city treasurer within 10 days after receipt of the notice of denial or revocation of a license.

(C.O. 740-15; renumbered to C.M.C. 855-15, eff. Jan. 1, 1972)

Sec. 855-17. Guest Register Required.

A guest register shall be maintained at all times and the operator shall require each person to whom a room is let for occupancy to sign both name and address in the register prior to renting or occupying the same. In the case of husband and wife, one person may sign for both. A parent or guardian may sign for children in their care.

The operator in charge at the time of signing shall note opposite the name of each guest the room number or numbers of the room or rooms assigned for occupancy and the time and date of beginning such occupancy. When a guest relinquishes occupancy, the operator in charge shall note in the register the time and date of leaving. All entries shall be in ink and shall not be in any manner, erased, obliterated or defaced.

The guest register shall be available for inspection for six months following the date of entry in the register.

(C.O. 740-17; renumbered to C.M.C. 855-19, eff. Jan. 1, 1972; a. Ord. No. 427-1973, eff. Oct. 19, 1973)

Cross reference—Penalty, § 855-99.

Sec. 855-19. Use of Premises Restricted.

No person having authority or responsibility over the use of the premises of a rooming house shall knowingly permit such premises to be used for the purpose of engaging in sexual activity for hire.

Whoever violates this section is guilty of procuring, a misdemeanor of the first degree.
(C.O. 740-19; renumbered to C.M.C. 855-19, eff. Jan. 1, 1972; a. Ord. No. 256-1976, eff. July 9, 1976)

Cross reference—Penalty, § 855-99.

Sec. 855-21. Register to be Open for Inspection by City Officers.

The guest register shall at all times be open for inspection by members of the police force, the fire force, the department of health or the Department of Buildings and Inspections.
(C.O. 740-21; renumbered to C.M.C. 855-21, eff. Jan. 1, 1972)

Cross reference—Penalty, § 855-99.

Sec. 855-23. Copy of License to be Posted.

The operator shall at all times keep the license posted in a conspicuous place in every rooming house. Altering, tampering, or removing the license is prohibited.
(C.O. 740-23; renumbered to C.M.C. 855-23, eff. Jan. 1, 1972)

Cross reference—Penalty, § 855-99.

Sec. 855-99. Penalties.

Whoever violates any provision of this chapter for which no other specific penalty has been provided shall be fined not more than $500. Each day's continuance shall constitute a separate offense.
(C.O. 740-25; renumbered to C.M.C. 855-99, eff. Jan. 1, 1972; a. Ord. No. 256-1976; eff. July 9, 1976)

Chapter 856

SHORT TERM RENTALS

Sec. 856-1. Definitions.
Sec. 856-1-H. Hosting Platform.
Sec. 856-1-O. Operator.
Sec. 856-1-P. Person.
Sec. 856-1-R. Responsible Person.
Sec. 856-1-S. Short Term Rental.
Sec. 856-1-T. Transient Guest.
Sec. 856-3. Applicability.
Sec. 856-5. Registration Requirements.
Sec. 856-7. Short Term Rental Registration.
Sec. 856-9. Standard Conditions of Short Term Rental Registration.
Sec. 856-11. Short Term Rental Registration Renewal.
Sec. 856-13. Denial of Application for New or Renewal Registration.
Sec. 856-15. Avoidance of Nuisances.
Sec. 856-17. Limitations on the Operation of Short Term Rentals.
Sec. 856-19. Limitations on Inspections.
Sec. 856-21. Excise Tax.
Sec. 856-23. Short Term Rental Hosting Platform Obligations.
Sec. 856-25. Suspension, Revocation, and Penalties.
Sec. 856-27. Appeals.
Sec. 856-29. Severability.

Sec. 856-1. Definitions.

For the purpose of this chapter the words and phrases defined in this section shall have the meanings respectively ascribed to them, unless a different meaning is clearly indicated by the context.
(Ordained by Ord. No. 0125-2019, eff. July 1, 2019)

Sec. 856-1-H. Hosting Platform.

"Hosting Platform" means a person or entity that provides a means through which short term rentals are offered, listed, advertised, solicited, or otherwise held out for rent.
(Ordained by Ord. No. 0125-2019, eff. July 1, 2019)

Sec. 856-1-O. Operator.

"Operator" means any person who offers a short term rental or holds a short term rental out to the public for rental by placing advertisements or solicitations with a hosting platform.
(Ordained by Ord. No. 0125-2019, eff. July 1, 2019)

Sec. 856-1-P. Person.

"Person" shall mean any individual, firm, partnership, joint venture, association, social club, fraternal organization, joint stock company, corporation, estate, trust, business trust, receiver, trustee, syndicate, or any other group or combination acting as a unit.
(Ordained by Ord. No. 0125-2019, eff. July 1, 2019)

Sec. 856-1-R. Responsible Person.

"Responsible Person" means:

(a) A natural person;

(b) Designated by the operator of a short term rental as having the duty, responsibility, and authority to operate, maintain, and manage the short term rental;

(c) Whose principal residence or principal place of business is located no greater than fifty miles from the short term rental.

(Ordained by Ord. No. 0125-2019, eff. July 1, 2019)

Sec. 856-1-S. Short Term Rental.

"Short Term Rental" means:

(a) Any residential dwelling unit or part thereof;

(b) Offered or held out to the public for rent on a hosting website, web or mobile application, or other online platform through which short term rentals are listed, advertised, solicited, or otherwise held out for rent;

(c) For a duration of occupancy of less than thirty consecutive days.

(Ordained by Ord. No. 0125-2019, eff. July 1, 2019)

Sec. 856-1-T. Transient Guest.

"Transient guest" shall mean a person or persons who enters into a contractual arrangement with the operator of a short term rental whereby the person or persons pays rent to the operator, or to a person designated by the operator to receive rent, in exchange for occupancy of the short term rental.
(Ordained by Ord. No. 0125-2019, eff. July 1, 2019)

Sec. 856-3. Applicability.

(a) This chapter applies to all short term rentals located in the city of Cincinnati, including those short term rentals operated prior to the effective date of this ordinance, and all opera-

tors and hosting platforms conducting business in the city of Cincinnati. This chapter shall have prospective application and shall not impair or modify the terms of any agreement executed or in effect prior to the effective date of this chapter providing for the occupancy of a short term rental by a transient guest to the extent that the agreement and the other terms thereof conflict with the provisions of this chapter.

(b) This chapter shall not apply to any transient use of property otherwise regulated by specific provisions of the Cincinnati Municipal Code. The owners and persons responsible for such property regulated by provisions other than this chapter shall comply with any local tax requirements applicable to those uses of such property and, if a local tax is applicable, then such owners and responsible persons shall not pay or allow a short term rental platform to collect the short term rental excise tax established in Chapter 315 of the Cincinnati Municipal Code. Those uses of property regulated by specific provisions of the Cincinnati Municipal Code outside of this chapter include, but are not limited to, the following uses of property:

(1) "Congregate Housing" as defined in Section 1401-01-C7;

(2) "Hotel" as defined in Sections 312-1-H, 855-1-H, 1117-03.2, and 1401-01-H5; or

(3) "Rooming House" as defined in Sections 855-1-R1, 1117-03.2, and 1401-01-R14.

(Ordained by Ord. No. 0125-2019, eff. July 1, 2019)

Sec. 856-5. Registration Requirements.

(a) All operators must register their short term rentals with the city pursuant to Section 856-7, "Short Term Rental Registration," prior to their operation. No person shall operate or permit the operation of a short term rental without first registering the short term rental with the city.

(b) Registration obtained pursuant to this section must be maintained according to the provisions of this chapter during any period of operation as a short term rental.

(Ordained by Ord. No. 0125-2019, eff. July 1, 2019)

Sec. 856-7. Short Term Rental Registration.

(a) All short term rentals shall be registered in the manner prescribed by the city manager or his or her designee, which shall include the payment of a registration fee as necessary to recover the cost and expense of administering the city's short term rental program.

(b) The registration of a short term rental shall require the following information:

(1) A current street mailing address, contact phone number, emergency contact phone number, and email address for the operator and the responsible person designated for the short term rental. The operator of a short term rental shall be the person designated to receive legal notice from the city related to operation of the short term rental.

(2) A current list of all hosting platforms through which the short term rental is listed, advertised, solicited, or otherwise held out for rent and those through which it is reasonably anticipated to be listed, advertised, solicited, or otherwise held out for rent.

(3) A certification from the operator that the operator is the legal owner or tenant of the short term rental unit with the right and authority to operate the unit as a short term rental.

(4) A certification from the operator that, to the best of his, her, or its knowledge, the short term rental is in conformity with:

(i) Building codes, including, as applicable, the Ohio Building Code, the Residential Code of Ohio, and the Cincinnati Building Code;

(ii) Zoning codes, including, as applicable, the Cincinnati Zoning Code and Land Development Code;

(iii) Housing codes, including the Cincinnati Housing Code; and

(iv) Fire codes, including the Cincinnati Fire Code and the Ohio Fire Code.

(5) Proof that the operator of the short term rental is current on all existing tax and utility payment liabilities to the city, including payment of the short term rental excise tax.

(6) An acknowledgment that the operator understands that the short term rental must at all times maintain compliance with applicable federal, state, and local laws, regulations, ordinances, or other rules or codes governing the operation of the short term rental.

(7) An acknowledgment that the operator has read Cincinnati Municipal Code Chapter 914, "Unlawful Discriminatory Practices," including Section 914-5, "Housing Discrimination Prohibited," and Section 914-7, "Public Accommodations Discrimination Prohibited."

(8) An acknowledgement that Fair Housing Act training sessions are regularly available in the Cincinnati area and that the city administration will include operators of short term rentals on the distribution list for notifications about upcoming Fair Housing Act training sessions.

(c) The city manager or his or her designee shall review each registration application and shall issue a registration and a unique registration number to the operator of the short term rental unit upon finding the application satisfies all the requirements of this chapter.

(d) The city manager or his or her designee shall notify the applicant of a final determination on an application no later than thirty days following receipt of a complete application submission. All application denials shall be in writing and shall set forth specific reasons for the denial.

(e) Each short term rental registration shall be valid for three years from the date of issuance.
(Ordained by Ord. No. 0125-2019, eff. July 1, 2019)

Sec. 856-9. Standard Conditions of Short Term Rental Registration.

All short term rentals registered with the city shall be subject to the following standard conditions:

(a) All information associated with the registration must be updated within seven days of a change in status, including any changes in the contact information for the operator and the responsible person, and

further must be verified no less often than triennially when the registration is renewed.

(b) All listings, advertisements, or solicitations offering a short term rental for rent shall include its registration number.

(c) The operator shall prominently display the short term rental registration at the entrance inside the short term rental unit.

(d) The operator shall prominently display an advisory adjacent to the short term rental registration, which advisory shall be in the form prescribed by the city manager or his or her designee and shall indicate the contact information for the responsible person, the contact information for the police department and fire department that serve the area in which the short term rental is located, the location of all means of egress from the short term rental, and a list activities and behaviors prohibited by city law that tend to be associated with the operation of short term rentals.

(e) The short term rental shall be maintained and operated in accordance with applicable building codes, zoning codes, housing codes, fire codes, and the provisions of this chapter.

(f) The operator of the short term rental must remain current on all existing tax liabilities to the city, including payment of the short term rental excise tax.

(g) Proof of liability insurance for the short term rental unit in an amount that corresponds to the prevailing rate for similar properties being used for a similar purpose as determined by the city manager or his or her designee. Insurance provided by hosting platforms may be used to satisfy this requirement.
(Ordained by Ord. No. 0125-2019, eff. July 1, 2019)

Sec. 856-11. Short Term Rental Registration Renewal.

(a) All operators shall apply to renew their registration no earlier than one hundred eighty days and no later than sixty days before its expiration date. If an operator fails to apply for renewal as provided herein, he, she, or it must apply for a new registration rather than a renewal.

(b) All short term rental registration renewals shall be made in the manner prescribed by the city manager or his or her designee, which shall include the payment of a renewal fee as necessary to recover the cost and expense of administering the city's short term rental program.

(c) The city manager or his or her designee shall review each renewal application and shall issue a renewal upon finding compliance with all the conditions of short term rental registration established in Section 856-9 of this chapter as applicable.
(Ordained by Ord. No. 0125-2019, eff. July 1, 2019)

Sec. 856-13. Denial of Application for New or Renewal Registration.

(a) The city manager or his or her designee may deny any application for a new or renewal registration if any of the following are true of the application, applicant, owner, operator, or property:

(1) The applicant failed to provide all required application materials or to pay the application fee.

(2) Any registration associated with the operator making the application or for the short term rental that is the subject of the application is currently revoked or suspended as of the date of the application.

(3) The applicant, operator, or owner of the short term rental is delinquent in the payment of existing tax and utility payment liabilities to the city, including payment of the short term rental excise tax.

(4) The applicant has made a material misrepresentation of fact on the application.

(5) The applicant, operator, or owner of the short term rental is shown to have been engaged in the act of prostitution or soliciting for prostitution, or an act that would constitute a violation of the Ohio Revised Code Chapters 2925 or 3719, on the premises of the short term rental in question, or any short term rental in which that individual has any interest in, including, but not limited to, ownership or operation.

(6) The applicant, operator, or owner of the short term rental has failed to make a good faith effort to correct violations of this chapter or has obstructed or interfered with correction of the violations.

(7) The short term rental premises is subject to outstanding orders from a City department that have not been corrected.

(8) The short term rental premises has been declared a chronic nuisance pursuant to Cincinnati Municipal Code Chapter 765.

(b) The city manager or his or her designee may deny any application for a new or renewal registration if any of the following are shown to have occurred at the short term rental:

(1) A pattern of felony drug related activity, as defined in Ohio Revised Code Section 2923.31, exists at the short term rental.

(2) A pattern of prostitution related activity or evidence of human trafficking, as defined in Ohio Revised Code Section 2923.31, exists at the short term rental.

(3) A pattern of criminal gang activity, as defined in Ohio Revised Code Section 2923.41, exists at the short term rental.

(4) A documented history of repeated offenses of violence as defined in Ohio Revised Code Section 2901.01, exists at the short term rental.

(c) Evidence of criminal conduct under subsections (a) and (b) of this section need only be that of de facto violation of law; evidence of conviction is not a prerequisite for denial unless specifically indicated.
(Ordained by Ord. No. 0125-2019, eff. July 1, 2019)

Sec. 856-15. Avoidance of Nuisances.

No short term rental may be operated within the city so as to cause a nuisance. For the purposes of this section, three or more written citations or notices of violation for one or more of the following behaviors by transient guests of the short term rental in and around the vicinity of the short term rental in any one-year period shall establish a rebuttable presumption that a short term rental has been operated in a manner that causes a nuisance:

(a) Incidents constituting a nuisance as defined by Cincinnati Municipal Code Section 761-1-N.

(b) Incidents of failure to maintain noise standards per Cincinnati Municipal Code Chapter 909, "Community Noise."

(c) Incidents of exceeding the maximum occupancy levels permitted pursuant to applicable building codes, housing codes, and fire codes.

(d) Incidents of illegal parking of vehicles on private property.

(e) Incidents of failure to abide by the requirements of Cincinnati Municipal Code Title XVI, "Neighborhood Quality of Life Uniform Code."

(f) Incidents of criminal activity, including littering, trespass, public intoxication, overdose, vandalism, and lewd and lascivious behavior, including one or more of the criminal activities listed in Section 856-13.

(Ordained by Ord. No. 0125-2019, eff. July 1, 2019)

Sec. 856-17. Limitations on the Operation of Short Term Rentals.

(a) No dwelling unit that receives affordable housing grants or credits from the federal, state, or local governments, or that meets any requirement applicable to the property in which the dwelling unit is located related to such affordable housing grants or credits, shall be registered as a short term rental.

(b) No building may contain a greater number of short term rental units than set forth below, and no registration may issue to authorize the establishment of a short term rental in a building to the extent it would exceed the maximum number of short term rental units permitted:

(1) For buildings containing four or fewer dwelling units, there is no limit on the number of short term rentals that may be operated in the building.

(2) For buildings containing five or more dwelling units, four short term rentals plus one additional short term rental for every four dwelling units in excess of four dwelling units is permitted.

(3) For buildings containing dwellings units used as short term rentals on or before January 1, 2019, the greater of (i) the number of short term rentals permitted under subsections (b)(1) and (b)(2), as applicable; or (ii) the number of units used as short term rentals prior to January 1, 2019.

(c) The number of short term rental registrations issued for a building shall be calculated on a first applied, first approved basis.

(d) The limitations established in this section do not alter existing obligations under the Cincinnati Building Code, Zoning Code, Fire Code, or Health Code and other applicable building, housing, or residential codes.

(Ordained by Ord. No. 0125-2019, eff. July 1, 2019)

Sec. 856-19. Limitations on Inspections.

No person charged with enforcing this chapter shall enter upon a private premises to conduct an inspection unless it is conducted in the same manner required of city building inspectors under the provisions of Cincinnati Municipal Code Section 1101-45.

(Ordained by Ord. No. 0125-2019, eff. July 1, 2019)

Sec. 856-21. Excise Tax.

All operators of short term rentals shall pay, or shall cause any hosting platform on which their short term rental is rented to pay on their behalf, the short term rental excise tax established in Chapter 315 of the Cincinnati Municipal Code. Hosting platforms shall be independently responsible for ensuring that the short term rental excise tax is withheld and paid.

(Ordained by Ord. No. 0125-2019, eff. July 1, 2019)

Sec. 856-23. Short Term Rental Hosting Platform Obligations.

(a) All hosting platforms through which short term rentals within the city are listed, advertised, solicited, or otherwise held out for rent shall provide the following information to the city manager or his or her designee on a quarterly basis:

(1) The total number and location of short term rentals listed on the platform during the applicable reporting period;

(2) The total number of nights that each listing on the platform was rented to guests during the applicable reporting period; and

(3) The total amount of tax collected and remitted by the hosting platform to the city during the applicable reporting period.

(b) All hosting platforms through which short term rentals within the city are listed, advertised, solicited, or otherwise held out for rent shall provide a field on the platform to allow operators to input short term rental registration numbers.
(Ordained by Ord. No. 0125-2019, eff. July 1, 2019)

Sec. 856-25. Suspension, Revocation, and Penalties.

(a) Failure to comply with the conditions of operating a short term rental established in Section 856-9 of this chapter, existence of any of the grounds for denial of application established in Section 856-13(a) and (b) of this chapter, or allowing a nuisance to exist at the short term rental as described and defined in Section 856-15 of this chapter, may result in the suspension or revocation of a short term rental registration as follows:

(1) The city manager may suspend a registration if an operator fails to bring its short term rental into compliance with this chapter within fifteen days following the issuance of written notice of a violation. An operator may not operate the short term rental associated with the registration or hold it out for rent during a period of suspension.

(2) The city manager or his or her designee shall reinstate a suspended registration once the operator restores its short term rental to compliance with the provisions of this chapter and pays a reinstatement fee as necessary to recover the cost and expense of administering the city's short term rental program registry.

(3) The city manager may revoke a registration if an operator fails to bring its short term rental into compliance with the conditions established in this chapter within thirty days following the issuance of written notice of a violation. An operator may not operate the short term rental associated with the registration or hold it out for rental during a period of revocation.

(4) Prior to or following a suspension or revocation, an operator may provide proof to the city manager or his or her designee establishing to the satisfaction of the city manager or his or her designee that the short term rental did not operate in violation of the provisions of this chapter cited as the reason for the suspension or revocation, in which case the registration shall be reinstated without the payment of a reinstatement fee.

(5) Prior to or following a suspension or revocation, an operator may provide a plan to the city manager or his or her designee to achieve substantial

compliance with a provision of this chapter when achieving strict compliance with the provision would impose practical difficulties. If the city manager or his or her designee determines the plan is viable and accomplishes the spirt and intent of the provision it is designed to address, then the execution of the plan shall constitute compliance with the provision at issue.

(6) Except as provided in subsection (a)(4), a registration may not be reinstated for twelve months following its revocation date, and the short term rental associated with a revoked registration may not be operated as a short term rental during the twelve-month waiting period. In addition, no operator associated with a revoked registration and no natural person with authority to exercise control over the operator or holding an ownership interest or beneficial interest in the operator may apply for a new registration for a short term rental during the same twelve-month period.

(b) Failure to obtain a short term rental registration prior to holding a short term rental out for rent to the public or operating a short term rental shall constitute a Class C civil offense on the first day, and having once been notified under CMC Section 1501-13, "Notice of Civil Offense and Civil Fine; Procedures," each additional day that the dwelling unit is operated, or held out to the public, as a short term rental shall constitute a separate, subsequent Class D civil offense.

(c) Operation of a short term rental in violation of the limitations on short term rentals established in Section 856-15 or the limitations on owners and operators of short term rentals established in Section 856-17 of this chapter shall constitute a Class D civil offense and may result in the revocation of the short term rental registration for the applicable properties.

(d) Failure to provide the active registration number associated with a short term rental on any listing advertising or soliciting the unit shall constitute a Class A civil offense on the first day, and having once been notified under CMC Section 1501-13, "Notice of Civil Offense and Civil Fine; Procedures," each additional day that an operator fails to provide the active registration number associated with the short term rental on any listing through which the unit is held out for rent to the public shall constitute a separate, subsequent Class A civil offense.

(e) Failure of a hosting platform to comply with Section 856-23, "Short Term Rental Platform Obligations," of this chapter shall constitute a Class C civil offense on the first day, and having once been notified under CMC Section 1501-13, "Notice of Civil Offense and Civil Fine; Procedures," each additional day that the short term rental is operated or held out to the public for rental shall constitute a separate, subsequent Class D civil offense.

(Ordained by Ord. No. 0125-2019, eff. July 1, 2019)

Sec. 856-27. Appeals.

Any person who has a bona fide controversy with the application or enforcement of this chapter and who has been adversely affected by the decision may appeal the decision to the city's office of administrative hearings by filing a notice of appeal with the office no later than thirty days after written notice of the decision is mailed to the person. An appeal shall not operate to stay the suspension or revocation of a short term rental registration.

(Ordained by Ord. No. 0125-2019, eff. July 1, 2019)

Sec. 856-29. Severability.

If any section, subsection, subdivision, paragraph, sentence, clause, or phrase of this chapter or any part thereof is for any reason held to be unconstitutional, such decision shall not affect the validity of the remaining portions of this chapter or any part thereof. The city council hereby declares that it would have passed each section, subsection, subdivision, paragraph, sentence, clause, or phrase thereof, irrespective of the fact that any one or more sections, subsections, subdivisions, paragraphs, sentences, clauses, or phrases be declared unconstitutional.

(Ordained by Ord. No. 0125-2019, eff. July 1, 2019)

Chapter 857

SALES, LIQUIDATION

Sec. 857. Legislative Finding.
Sec. 857-1. Definitions.
Sec. 857-1-D. Defunct Business.
Sec. 857-1-L. Liquidation Sale.
Sec. 857-3. License Required.
Sec. 857-5. Application for License.
Sec. 857-7. Bond Required.
Sec. 857-9. Investigation of Application; Grounds for Denial of License.
Sec. 857-11. Hiring of Examiners.
Sec. 857-13. Issuance of License; Conditions Thereof.
Sec. 857-15. Revocation of License.
Sec. 857-17. Renewal of License.
Sec. 857-19. License Fees.
Sec. 857-21. Exceptions.
Sec. 857-99. Penalties.
Sec. 857-99-A. Violation of 857-11.

Sec. 857. Legislative Finding.

Council finds:

(a) That the provisions of Chapter 833 of the Cincinnati Municipal Code regulating distress merchandise sales are being circumvented by persons who purchase the stocks in trade of defunct business and conduct liquidation sales at the former places of business of such defunct businesses;

(b) That in most such sales the person conducting the sales represents to the public that the goods, wares and merchandise being sold have been purchased from the defunct business and that such goods, wares and merchandise are being sold at greatly reduced prices, whereas in reality most of the goods, wares and merchandise offered at such sales were never a part of the stock in trade of the defunct business but have been purchased by the person conducting the sale only for the purpose of being offered for sale at such sale;

(c) That misrepresentations with respect to the real retail value of the goods, wares and merchandise are commonplace and that many persons are being deceived and defrauded by such sales; and

(d) That the regulation of such sales is necessary to protect the public welfare.

(Sec. 757-1; ordained by Ord. No. 314-1958, eff. Oct. 10, 1958; renumbered to C.M.C. 857, eff. Jan. 1, 1972)

Sec. 857-1. Definitions.

For the purpose of this chapter the words and phrases defined in the sections hereunder shall have the meanings therein respectively ascribed to them, unless a different meaning is clearly indicated by the context.
(Sec. 757-3; ordained by Ord. No. 314-1958, eff. Oct. 10, 1958; renumbered to C.M.C. 857-1, eff. Jan. 1, 1972)

Sec. 857-1-D. Defunct Business.

"Defunct business" shall mean any business or branch or branch store thereof which has terminated business at a particular location.
(Sec. 757-3; ordained by Ord. No. 314-1958, eff. Oct. 10, 1958; renumbered to C.M.C. 857-1-D, eff. Jan. 1, 1972)

Sec. 857-1-L. Liquidation Sale.

"Liquidation sale" shall mean any sale which the seller represents, either directly or indirectly, that any or all of the goods, wares or merchandise offered for sale are all or part of the former stock in trade of a defunct business which was theretofore conducted on the premises on which the sale is held. Without limiting the generality of the foregoing, liquidation sale shall include any sale, in connection with which the seller represents that he is liquidating all or part of the stock in trade of a business previously conducted on the premises on which the sale is being held. Liquidation sale shall not include any sale coming within the purview of Chapter 833, Distress Merchandise Sales, of the Cincinnati Municipal Code.
(Sec. 757-3; ordained by Ord. No. 314-1958, eff. Oct. 10, 1968; renumbered to C.M.C. 857-1-L, eff. Jan. 1, 1972)

Sec. 857-3. License Required.

No person shall advertise or conduct a liquidation sale without first having obtained a license to do so in accordance with the provisions of this chapter.
(Sec. 757-5; ordained by Ord. No. 314-1958, eff. Oct. 10, 1958; renumbered to C.M.C. 857-3, eff. Jan. 1, 1972)

Cross reference—Penalty, § 857-99.

Sec. 857-5. Application for License.

Any person desiring to conduct a liquidation sale shall make, at least five days prior to the date on which the sale is to be commenced, written application to the city treasurer on forms furnished by the city treasurer and sworn to by the applicant before a person authorized to administer oaths. In cases where, due to circumstances beyond the control of the applicant, application cannot be made five days prior to the commencement of the sale, the city treasurer shall waive the five-day requirement. Each application shall contain the following information and such other information as the city treasurer may deem necessary:

(a) Name and address of the owner of the goods, wares or merchandise to be sold.

(b) The name and address of the owner of the defunct business, the former stock in trade of which is to be offered for sale, and the full name of such defunct business.

(c) A description of the place where the liquidation sale is to be held.

(d) The commencement and termination date of the liquidation sale.

(e) A complete and detailed inventory of the goods, wares and merchandise to be offered at the liquidation sale which may be in the form of a copy of the bill of sale from the owner of the defunct business to the person conducting the sale. Only the former stock in trade of the defunct business sold to the person conducting the liquidation sale can be sold at such sale.

The filing of an application for a license, the contents of such application and the issuance of a license shall be confidential information and no disclosure thereof shall be made, except such as may be necessary in the administration of the provisions of this chapter; provided, however, that any disclosure may be made with the consent of the applicant, and the filing of an application and the issuance of a license shall not be considered confidential after public notice has been given of the proposed sale.
(Sec. 757-7; ordained by Ord. No. 314-1958, eff. Oct. 10, 1958; renumbered to C.M.C. 857-5, eff. Jan. 1. 1972)

Sec. 857-7. Bond Required.

No license shall be issued for a liquidation sale unless there is filed with the city treasurer a bond conditioned upon the observance of all the conditions of this chapter and the indemnifying of any purchaser at the sale who suffers any loss by reason of any misrepresentation made in connection therewith, and authorizing actions thereunder by the city for the violation of any provision of this chapter and by any purchaser at such sale for damages or loss suffered by reason of any misrepresentation made in connection with the sale. The amount of bond shall be determined as follows:

Ten percent of the first $100,000 of the inventory cost of all goods and wares, and merchandise to be offered at sale;

Five percent of the next $400,000 and two percent of the balance.

Bonds shall be approved as to form by the city solicitor and as to sufficiency by the director of finance.
(Sec. 757-9; ordained by Ord. No. 314-1958, eff. Oct. 10, 1958; renumbered to C.M.C. 857-7, eff. Jan. 1, 1972)

Sec. 857-9. Investigation of Application; Grounds for Denial of License.

Upon receipt of an application the city treasurer shall cause such investigation as deemed necessary to be made of the facts contained therein. No license shall be issued if any one or more of the following facts or circumstances are found to exist:

(a) That the defunct business, the stock in trade of which is to be sold, conducted a going-out-of-business sale at the premises described in the application for license within one year prior to the date of the filing of the application.

(b) That the applicant was theretofore convicted of a violation of this chapter or had a license issued pursuant to this chapter revoked within the five year period immediately preceding the date of the filing of the application.

(c) That the inventory submitted with the application includes goods, wares or merchandise which were not part of the stock in trade of the defunct business sold to applicant.

(d) That the applicant, in the ticketing of the goods, wares and merchandise to be offered for sale, has misrepresented the original retail price or value thereof.

(e) That any representation made in the application is false.

(Sec. 757-11; ordained by Ord. No. 314-1958, eff. Oct. 10, 1958; renumbered to C.M.C. 857-9, eff. Jan. 1, 1972)

Sec. 857-11. Hiring of Examiners.

The city manager or the city manager's designee shall, from time to time, enter into contracts with competent, qualified persons for the examination of the inventories and records of applicants for licenses. Such persons shall work under the direction and control of the city treasurer and shall make such examinations of records and inventories as are specified by the city treasurer and authorized by this chapter.

All information obtained by such persons or any city employees or officials through applications or examinations made pursuant to this chapter shall be confidential, and any disclosure thereof, except where such disclosure is necessary in the administration of the provisions of this chapter, shall constitute a misdemeanor.

(Sec. 757-13; ordained by Ord. No. 314-1958, eff. Oct. 10, 1958; renumbered to 857-11, eff. Jan. 1, 1972; a. Ord. No. 92-1977, eff. Mar. 23, 1977)

Cross reference—Penalty, § 857-99-A.

Sec. 857-13. Issuance of License; Conditions Thereof.

When it appears to the city treasurer that all the statements in the application are true and that the proposed sale is of the character represented therein, that the application is in full compliance with the terms and conditions of this chapter, that the required licensed fee has been paid and the bond required filed, the city treasurer shall issue a license to the applicant authorizing the applicant to advertise and conduct the sale as described in the application subject to the following conditions:

(a) The sale shall be held at the place named in the application and by the particular licensee for a period of not more than 30 consecutive calendar days (Sundays and legal holidays excluded) next following the date specified in the license;

(b) Only goods, wares and merchandise included in the inventory attached to the application shall be sold at the sale;

(c) Upon the commencement of the sale and for its duration the license issued hereunder shall be prominently displayed in the place at which the sale is conducted;

(d) The licensee shall keep suitable books during the sale at the location at which the sale is conducted and in which shall be made daily entries showing the goods, wares and merchandise sold each day. Copies of such daily entries shall be sent to the city treasurer weekly and all books of the licensee shall be open for inspection by the city treasurer or duly authorized representatives during business hours.

(Sec. 757-15; ordained by Ord. No. 314-1958, eff. Oct. 10, 1968; renumbered to C.M.C. 857-13, eff. Jan. 1, 1972)

Sec. 857-15. Revocation of License.

The city treasurer shall revoke any license issued pursuant to the provisions of this chapter if the licensee has:

(a) Violated any provisions of this chapter;

(b) Made any material misstatement in the application for license;

(c) Failed to include in the inventory required by the provisions of this chapter all the goods, wares and merchandise being offered for sale;

(d) Offered or permitted to be offered at the sale any goods, wares or merchandise not included in the inventory attached to the application;

(e) Failed to keep suitable records of the sale; or

(f) Made or permitted to be made any false or misleading statements or representations in advertising the sale or in displaying, ticketing or pricing goods, wares or merchandise offered for sale.

(Sec. 757-17; ordained by Ord. No. 314-1958, eff. Oct. 10, 1958; renumbered to C.M.C. 857-15, eff. Jan. 1, 1972)

Sec. 857-17. Renewal of License.

The city treasurer shall, upon application therefor, renew a license issued under the provisions of this chapter for one or more periods of 30 days each (Sundays and legal holidays excluded) if the licensee has not sold all the goods listed on the inventory submitted with the original application. Such facts shall be sworn to by the applicant in the appropriate place on the application for renewal of the license. Only such goods as were listed on the original inventory filed with the application and not previously sold may be sold during the renewal period.

The fee for the renewal of a license shall be $20.

(Sec. 757-19; ordained by Ord. No. 314-1958, eff. Oct. 10, 1958; renumbered to C.M.C. 857-17, eff. Jan. 1, 1972; a. Ord. No. 327-1975, eff. Sept. 1, 1975; a. Ord. No. 282-1979, eff. Sept. 1, 1979)

Sec. 857-19. License Fees.

The fee for any license issued pursuant to this chapter shall be $77, or one-half of 1 percent of the cost inventory value of the goods, wares or merchandise to be sold at such sale, whichever is the greater amount.

(Sec. 757-21; ordained by Ord. No. 314-1958, eff. Oct. 10, 1958; a. Ord. No. 265-1962, eff. Aug. 1, 1962; a. Ord. No. 90-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 857-19, eff. Jan. 1, 1972; a. Ord. No. 327-1975, eff. Sept. 1, 1975; a. Ord. No. 282-1979, eff. Sept. 1, 1979)

Sec. 857-21. Exceptions.

The provisions of this chapter shall not apply to any sale conducted by a public officer

as part of official duties, to any sale an accounting of which must be made to a court of law, or to any sale conducted pursuant to an order of a court of law.
(Sec. 757-23; ordained by Ord. No. 314-1958, eff. Oct. 10, 1958; renumbered to C.M.C. 857-21, eff. Jan. 1, 1972)

Sec. 857-99. Penalties.

Whoever violates any provision of this chapter for which another penalty is not specifically provided shall be fined not more than $100, or imprisoned not more than 30 days, or both. Each day's violation shall constitute a separate offense.
(Sec. 757-25; ordained by Ord. No. 314-1958, eff. Oct. 10, 1958; a. Ord. No. 414-1970, eff. Dec. 23, 1970; renumbered to C.M.C. 857-99, eff. Jan. 1, 1972)

Sec. 857-99-A. Violation of 857-11.

Whoever violates any provision of Section 857 shall be fined not more than $100 or imprisoned not more than 60 days, or both.
(Sec. 757-13; ordained by Ord. No. 314-1958, eff. Oct. 10, 1958; renumbered to C.M.C. 857-99-A, eff. Jan. 1, 1972)

Chapter 861

SKATING RINKS

Sec. 861-1. Skating Rink Defined.
Sec. 861-3. License Required.
Sec. 861-5. Application for License.
Sec. 861-7. Issuance of License.
Sec. 861-9. License Fees.
Sec. 861-11. Hours of Operation.
Sec. 861-13. Revocation.
Sec. 861-99. Penalties.

Sec. 861-1. Skating Rink Defined.

"Skating rink" shall mean an outdoor or indoor rink where ice or roller skating is permitted for a fee or other compensation.
(C.O. 743-1; renumbered to C.M.C. 861-1, eff. Jan. 1, 1972)

Sec. 861-3. License Required.

No person, firm or corporation shall operate a skating rink or permit a skating rink in their possession or contract to be so operated, unless they have been duly licensed to operate such skating rink and have paid the license fee as provided in Section 861-9, herein.
(C.O. 743-2; renumbered to C.M.C. 861-3, eff. Jan. 1, 1972)

Cross reference—Penalty, § 861-99.

Sec. 861-5. Application for License.

Application for a license to operate a skating rink shall be made upon forms provided by the director of safety which shall set forth the name and address of the applicant, the location of the skating rink, the dimensions of the area used for skating purposes, the nature of the skating rink and such other information as shall be required by the director of safety.
(C.O. 743-3; renumbered to C.M.C. 861-5, eff. Jan. 1, 1972)

Sec. 861-7. Issuance of License.

If the director of safety finds that the location of the rink is permissible under the zoning laws and complies with all requirements of public safety and is supplied with sufficient toilet facilities, the director of safety shall grant the application and notify the city treasurer who shall issue the license upon the payment of the proper license fee.
(C.O. 743-4; renumbered to C.M.C. 861-7, eff. Jan. 1, 1972)

Sec. 861-9. License Fees.

Licenses for skating rinks shall be issued annually upon payment of the fees in accordance with the following schedule:

Per 1,000 square feet for each rink up to 5,000 square feet in skating area, $125.00;

Per 1,000 square feet for the next 5,000 square feet in skating area per rink, $75.00;

For each additional 1,000 square feet in excess of 10,000 square feet in skating area per rink, $45.00.

(C.O. 743-5; a. Ord. No. 265-1962, eff. Aug. 4, 1962; a. Ord. No. 90-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 861-9, eff. Jan. 1, 1972; a. Ord. No. 327-1975, eff. Sept. 1, 1975; a. Ord. No. 282-1979, eff. Sept. 1, 1979; Emer. Ord. 463-2010, § 47, eff. Dec. 30, 2010)

Sec. 861-11. Hours of Operation.

Skating rinks shall be operated only between the hours of 8 a.m. and 2:30 a.m.
(C.O. 743-7; renumbered to C.M.C. 861-11, eff. Jan. 1, 1972)

Sec. 861-13. Revocation.

The director of safety shall have power to revoke the license granted to operate a skating rink for violation of any of the provisions of this chapter or if, in the director's opinion, any skating rink is being operated in a manner detrimental to the public health, safety and welfare.
(C.O. 743-8; renumbered to C.M.C. 861-13, eff. Jan. 1, 1972)

Sec. 861-99. Penalties.

Whoever violates any provision of Section 861-3 of this chapter shall be fined not more than $50. Each day's operation of a skating rink without a license shall constitute a separate offense.
(C.O. 743-6; renumbered to C.M.C. 861-99, eff. Jan. 1, 1972)

Chapter 862

STREET NEWSPAPER SALES

Sec. 862-1. Selling Newspapers on Streets.
Sec. 862-3. Interfering with Sellers.
Sec. 862-99. Penalties.

Sec. 862-1. Selling Newspapers on Streets.

Permission is hereby granted to any person or persons lawfully authorized to engage in the business of selling newspapers to occupy space on the sidewalks of city streets for selling newspapers, either in the morning or afternoon, where permission has been obtained from the owner or tenant of the adjoining building.
(C.O. 737-3; a. Ord. No. 414-1970, eff. Dec. 23, 1970; renumbered to C.M.C. 862-1, eff. Jan. 1, 1972)

Sec. 862-3. Interfering with Sellers.

No person shall interfere with the rights of anyone selling newspapers as provided in Section 862-1.
(C.O. 737-3; a. Ord. No. 414-1970, eff. Dec. 23, 1970; renumbered to C.M.C. 862-3, eff. Jan. 1, 1972)
Cross reference—Penalty, § 862-99.

Sec. 862-99. Penalties.

Whoever violates any provision of this chapter shall be fined not more than $25.
(C.O. 737-3; a. Ord. No. 414-1970, eff. Dec. 23, 1970; renumbered to C.M.C. 862-99, eff. Jan. 1, 1972)

Chapter 863

STREET SOLICITATION (REPEALED)*

*__Editor's note—__Repealed by Ord. No. 058-2010, § 1, effective April 10, 2010.
__Cross reference—__Peddlers and itinerant vendors, ch. 839.

Chapter 865

THEATRES AND EXHIBITIONS

Sec. 865-1. Discrimination in Theatre Prices.
Sec. 865-3. Scale of Prices, Advertisement.
Sec. 865-5. Theatre License Fees.
Sec. 865-7. Drive-In Theatre License Fees.
Sec. 865-9. Consent of City Manager or his Designee Required.
Sec. 865-11. Restrictions on Issuance of License.
Sec. 865-13. Free Permit where Purpose is Charitable, Educational.
Sec. 865-15. No License Fee Required for City-Owned Places of Amusement.
Sec. 865-17. Repealed.
Sec. 865-19. Game Arcade, License Fee.
Sec. 865-21. Operation of Game Arcade Without License Unlawful.
Sec. 865-23. Ownership of Business.
Sec. 865-25. Custody of Films.
Sec. 865-27. License Revocation.
Sec. 865-29. Repealed.
Sec. 865-31. Emergency On-the-Scene Authority of Police and/or Fire Officer in Charge.
Sec. 865-33. Selling of Tickets Over Capacity of Places of Assembly.
Sec. 865-99. Penalties.
Sec. 865-99-A. Violation of Section 865-1.
Sec. 865-99-B. Violation of Section 865-3.
Sec. 865-99-C. Violation of Section 865-21.
Sec. 865-99-D. Violation of Sections 865-23, 865-26 and 865-27.
Sec. 865-99-E. Violation of Section 865-20 and Section 865-33.
Sec. 865-99-F. Violation of Section 865-31.

Sec. 865-1. Discrimination in Theatre Prices.

After opening for the reception or entertainment of persons attending any theatrical exhibition, public show or exhibition of whatever name or nature, for which money or other reward is in any manner demanded or received, it shall be unlawful for any person or persons, owning or having control or charge of any such show or exhibition or of the sale or disposal of tickets or seats for such show or exhibition, to sell or dispose of, or to permit the sale or disposal of such tickets or seats, so as to reserve particular seats in any portion of the show or exhibition to any individuals, or in any way to discriminate in the right to or sale of any such seats. Every place of amusement shall have a printed copy of this section framed and hung up at the door in some conspicuous place.
(C.O. 712-1; renumbered to C.M.C. 865-1, eff. Jan. 1, 1972)

Cross reference—Penalty, § 865-99-A.

Sec. 865-3. Scale of Prices, Advertisement.

Whenever any theatrical show or exhibition of any name or nature is given at any hall or building licensed as a theatre, and for admission to which money is demanded, if such theatrical show or exhibition is advertised by the proprietor of such theatre, show or exhibition in any newspaper of general circulation published within the city of Cincinnati, every such advertisement shall state the complete scale of prices for admission to such theatrical show or exhibition, and such scale of prices shall also be framed and hung up on some conspicuous place at the door of the theatre.

No person shall sell or dispose of any ticket or seat for such theatrical show or exhibition at a higher price for admission thereto than according to the scale of prices so published, framed and hung up.

No person shall sell or dispose of any ticket or seat for any such theatrical show or exhibition without such scale of prices having been first advertised, together with any newspaper advertisement of such show or exhibition, and also having been framed and hung up at the door of the theatre as above required.
(C.O. 712-2; renumbered to C.M.C. 865-3, eff. Jan. 1, 1972)

Cross reference—Penalty, § 865-99-B.

Sec. 865-5. Theatre License Fees.

The operation of any theatre, moving picture theatre, concert hall, or other place of amusement, entertainment or exhibition shall be subject to the payment by the owner or lessee thereof, of an annual license fee, for the period commencing on the date of issuance of the license and terminating on the 365th day thereafter, at the following rates:

Per seat for the first 500 seats, 75 cents.

Per seat for over 500 seats, 60 cents.

Where the accommodation is provided by benches or otherwise than by individual seats; the space of 18 inches shall be counted as a seat. License fees shall be payable annually in advance; provided that temporary licenses may be issued for periods of less than 20 consecutive days, at a rate per day equal to one-twentieth of the annual license fee which would be payable but in no event less than $25.00.

The license fee payable hereunder shall include all activities conducted within the theatre.
(C.O. 712-5; a. Ord. No. 265-1962, eff. Aug. 4, 1962; a. Ord. No. 90-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 865-5, eff. Jan. 1, 1972; a. Ord. No. 327-1975, eff. Sept. 1, 1975; a. Ord. No. 363-1978, eff. Sept. 7, 1978; a. Ord. No. 282-1979, eff. Sept. 1, 1979; Emer. Ord. 463-2010, § 49, eff. Dec. 30, 2010)

Sec. 865-7. Drive-In Theatre License Fees.

The operation of any drive-in theatre shall be subject to the payment by the owner or lessee thereof of an annual license fee, for the period commencing on the date of issuance of the license and terminating on the 365th day thereafter, at the following rate:

Per car space for the first 250 car spaces, $2.

For each additional car space, $1.

(C.O. 712-6; a. Ord. No. 265-1962, eff. Aug. 4, 1962; a. Ord. No. 90-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 865-7, eff. Jan. 1, 1972; a. Ord. No. 327-1975, eff. Sept. 1, 1975; a. Ord. No. 363-1978, eff. Sept. 7, 1978; a. Ord. No. 282-1979, eff. Sept. 1, 1979)

Sec. 865-9. Consent of City Manager or his Designee Required.

No license for the operation of a theatre, moving picture theatre, concert hall or other place of amusement, entertainment or exhibition shall be issued without the consent of the city manager or the city manager's designee, given in accordance with the provisions of Section 865-11.

(C.O. 712-8; renumbered to C.M.C. 865-9, eff. Jan. 1, 1972; a. Ord. No. 92-1977, eff. Mar. 23, 1977)

Sec. 865-11. Restrictions on Issuance of License.

The city manager or person designated by the city manager shall not give consent to the issuance of any license to operate any theatre, concert hall, or any place of amusement, entertainment or exhibition, to any person, firm or corporation if such person or any officer of such firm or corporation has been convicted within the preceding 10 years of a felony or within the preceding 5 years of a misdemeanor involving moral turpitude.

No license to operate a theatre, concert hall, or any place of amusement, entertainment or exhibition shall be issued without the written approval of the department of buildings and inspections and the fire division indicating the building is constructed and maintained in strict accordance with all laws, ordinances and regulations governing the erection, maintenance and conduct of buildings used for such purpose. No application for renewal of an existing license shall be approved if prior to the expiration of the existing license the department of buildings and inspections or the fire division notifies the city treasurer in writing that the building is not constructed or maintained in strict accordance with all laws, ordinances and regulations governing the erection, maintenance and conduct of buildings used for such purpose.

If the building in which it is proposed to maintain such theatre, concert hall, place of amusement, entertainment or exhibition is within 300 feet of any church, school or public library, and the city manager or designee shall, upon investigation, find the establishment of such theatre, concert hall, place of amusement, entertainment or exhibition at such a place would be injurious or harmful to the morals of the children or the people attending such church, school or library, then and in that event the city manager or designee may refuse consent to the issuance of such license.

If it is proposed to locate such theatre, concert hall, place of amusement, entertainment or exhibition in a residential district of the city, and a majority of the owners or occupants of structures or property located within 300 feet of such proposed building protest in writing against the issuance of such license previous to the time at which such consent of the city manager or designee is given, then and in that event the city manager or designee, if finding upon investi-

gation that it would be for the best interests of such neighborhood, shall refuse consent to the issuance of such license.

When the city manager or designee gives consent to the issuance of such license, and the license is issued in pursuance thereof, it shall be upon the express condition that the city manager or other designated officers of the city shall at all times have access to such theatre, concert hall, place of amusement, entertainment or exhibition, and that if at any time, in the opinion of the city manager or designee, the performance, entertainment or exhibition given in such place is immoral, indecent or injurious to the public welfare or morals, then the city manager or designee shall have power to revoke the license without refunder.
(C.O. 712-9; renumbered to C.M.C. 865-11, eff. Jan. 1, 1972; a. Ord. No. 92-1977, eff. Mar. 23, 1977; a. Ord. No. 237-1979, eff. June 6, 1979; Emer. Ord. No. 238-2015, § 20, eff. July 1, 2015)

Sec. 865-13. Free Permit Where Purpose is Charitable, Educational.

The city manager or the city manager's designee may grant without cost to any proprietor or lessee of any theatre, moving picture house, concert hall or other place of amusement, entertainment or exhibition, a permit to use such place for not more than six consecutive days for an entertainment or exhibition that may be given for the benefit of a church, or for any benevolent, charitable, educational, religious or purely public purposes.
(C.O. 712-11; renumbered to C.M.C. 865-13, eff. Jan. 1, 1972; a. Ord. No. 92-1977, eff. Mar. 23, 1977)

Sec. 865-15. No License Fee Required for City-Owned Places of Amusement.

Places of amusement or of an educational character, owned and controlled by the city of Cincinnati, and not being operated for profit, shall not be required to pay a license fee.
(C.O. 712-12; renumbered to C.M.C. 865-15, eff. Jan. 1, 1972)

Sec. 865-17. Repealed.

(C.O. 712-14, a. Ord. No. 265-1962, eff. Aug. 4, 1962; a. Ord. No. 90-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 865-17, eff. Jan. 1, 1972; a. Ord. No. 327-1975, eff. Sept. 1, 1975; a. Ord. No. 282-1979, eff. Sept. 1, 1979; r. Ord. No. 349-1982, eff. Sept. 1, 1982)

Sec. 865-19. Game Arcade, License Fee.

Any person, firm or corporation operating a game arcade shall pay an annual license fee of $75.00 for each establishment operated.

No license shall be issued to operate a game arcade without the consent of the city manager or person designated by the city manager given in accordance with the provisions of Section 865-11.

For the purpose of this chapter, "game arcade" shall mean any arcade, room, building or enclosure where six or more coin-operated machines or devices are kept for entertainment of the public for profit.
(C.O. 712-15; a. Ord. No. 265-1962, eff. Aug. 4, 1962; a. Ord. No. 90-1969, eff. Apr. 1, 1969; renumbered to C.M.C. 865-19, eff. Jan. 1, 1972; a. Ord. No. 327-1975, eff. Sept. 1, 1975; a. Ord. No. 92-1977, eff. Mar. 23, 1977; a. Ord. No. 282-1979, eff. Sept. 1, 1979; a. Ord. No. 249-1982, eff. June 16, 1982; Emer. Ord. 463-2010, § 51, eff. Dec. 30, 2010)

Cross reference—Penalty, § 801-19, 801-99.

Sec. 865-21. Operation of Game Arcade Without License Unlawful.

No person, firm or corporation shall operate a game arcade unless such operation shall have been duly licensed as provided in Section 865-19.
(C.O. 712-16; renumbered to C.M.C. 865-21, eff. Jan. 1, 1982; a. Ord. No. 249-1982, eff. June 16, 1982)

Cross reference—Penalty, § 865-99.

Sec. 865-23. Ownership of Business.

Every person required by this chapter to obtain a license for the operation of any theatre, moving picture theatre, drive-in theatre, game arcade, concert hall, or other place of amusement, entertainment or exhibition, shall, if exhibiting moving picture films, prior to the issuance of any original license or any renewal thereof, file with the treasurer of the city of Cincinnati, a sworn affidavit stating therein the name, home address and principal business address of each owner and the manager of the business or enterprise through which said theatre, moving picture theatre, drive-in theatre, game arcade, concert hall, or other place of amusement, entertainment or exhibition, is owned and operated if such business or enterprise is unincorporated, and the name, home address and principal business address of the stockholders owning 10 per cent or more of the stock, the directors, the officers and manager of such business or enterprise, if such business or enterprise is incorporated and within ten days following any change of information as contained in such affidavit a new affidavit shall be submitted setting forth such changes.
(C.M.C. 865-23; ordained by Ord. No. 234-1972, eff. July 1, 1972; a. Ord. No. 249-1982, eff. June, 16, 1982)

Cross reference—Penalty, § 865-99-D.

Sec. 865-25. Custody of Films.

Every person required by this chapter to obtain a license for the operation of any theatre, moving picture theatre, drive-in theatre, game arcade, concert hall, or other place of amusement, entertainment or exhibition, exhibiting moving picture films, shall, prior to the issuance of any original license or any renewal thereof, file with the treasurer of the city of Cincinnati a sworn affidavit stating therein the name and home address of the person or persons who shall, at any and all times, have the legal possession, care, custody and control of the motion picture films on the premises and within 10 days following any change of information as contained in such affidavit a new affidavit shall be submitted setting forth such changes.
(C.M.C. 865-25; ordained by Ord. No. 234-1972, eff. July 1, 1972; a. Ord. No. 249-1982, eff. June 16, 1982)

Cross reference—Penalty, § 865-99-D.

Sec. 865-27. License Revocation.

In the event any theatre, moving picture theatre, drive-in theatre, game arcade, concert hall, or other place of amusement, entertainment or exhibition which has heretofore been licensed or which may hereafter be licensed fails to comply with the provisions of Sections 865-23 and 865-25 of this chapter, the city manager shall revoke such license if, after 10 days following the receipt of the written notice of violations, the licensee fails to correct the violations involved. Upon revocation of the license, the licensee shall cease operation of the theatre, moving picture theatre, drive-in theatre, game arcade, concert hall, or other place of amusement, entertainment or exhibition. The revocation of the license shall not affect any of the other penalty provisions provided for in this chapter.
(C.M.C. 865-27; ordained by Ord. No. 234-1972, eff. July 1, 1972; a. Ord. No. 92-1977, eff. March 3, 1977; a. Ord. No. 582-1979, eff. Dec. 27, 1979; a. Ord. No. 249-1982, eff. June 16, 1982)

Cross reference—Penalty, § 865-99-D.

Sec. 865-29. Festival Seating or General Admission Prohibited; Exemptions.

(Ordained by Ord. No. 582-1979, eff. Dec. 27, 1979; r. Ord. No. 518-1981, eff. Dec. 9, 1981; a. Ord. No. 223-1997, eff. Aug. 4, 1997; r. Ord. No. 267-2004, eff. Aug. 4, 2004)

Sec. 865-31. Emergency On-the-Scene Authority of Police and/or Fire Officer in Charge.

At all theaters, arenas, concert halls and all other places of assembly when the maximum capacity of the facility is 1,800 or more, or the anticipated crowd is 1,800 or more, the sponsor of the event shall publicize at least 48 hours prior to the event the time at which patrons may be permitted to enter the facility and shall obtain a public assembly permit under Chapter 883 of the Cincinnati Municipal Code.

For crowd control purposes inside or outside at theaters, arenas, concert halls and all other places of assembly, whether indoor or outdoor, the police officer or fire officer in charge at the scene shall have authority to order the placement or removal of barriers, the opening or closing of doors or other entrances, the establishment of check points, or other crowd control measures whenever the size, manner, nature or conduct of the crowd in light of all other facts and circumstances at the time, including the number of personnel on the scene to control and/or to accommodate the crowd, indicate that the risk of substantial danger or injury to persons or property warrants such action.

Nothing in this section shall be construed in any way to lessen in any fashion the liability of those responsible for the management and operation of the event, including the employment of adequate personnel for security, safety, health and sanitation.

(Ordained by Ord. No. 583-1979, eff. Dec. 27, 1979; a. Ord. No. 515-1981, eff. Dec. 9, 1981; a. Ord. No. 416-2024, § 2, eff. December 11, 2024)

Sec. 865-33. Selling of Tickets Over Capacity of Places of Assembly.

It shall be unlawful to sell, give away or in any other way disseminate tickets to all theaters, arenas, operas, concert halls and other places of assembly over the maximum capacity of said theater, arena, opera, concert hall or other place of assembly, which capacity is determined in accordance with the provisions of the Cincinnati Fire Prevention Code and Cincinnati Building Code.

(Ordained by Ord. No. 66-1980, eff. Feb. 27, 1980; a. Ord. No. 865-33, eff. Dec. 9, 1981; a. Ord. No. 416-2024, § 2, eff. December 11, 2024)

Sec. 865-99. Penalties.

Violations of the provisions of this chapter shall be punishable as set forth in the sections hereunder and other applicable penalty sections of this code.

(C.M.C. 865-99; ordained by Ord. No. 361-1971, eff. Jan. 1. 1972)

Sec. 865-99-A. Violation of Section 865-1.

Whoever violates any provision of Section 865-1 shall be fined not more than $10. Each ticket or seat so disposed of or sold shall be deemed and held to be a separate offense and violation.

(C.O. 712-1; renumbered to C.M.C. 865-99-A, eff. Jan. 1, 1972)

Sec. 865-99-B. Violation of Section 865-3.

Whoever violates any provision of Section 865-3 shall be fined not more than $50.

Each ticket or seat sold or disposed of contrary to the provisions of this section shall be deemed and held to be a separate offense.
(C.O. 712-2; a. Ord. No. 414-1970, eff. Dec. 23, 1970; renumbered to C.M.C. 865-99-B, eff. Jan. 1, 1972)

Sec. 865-99-C. Violation of Section 865-21.

Whoever violates any provision of Section 865-21 shall be fined not more than $50. Each day's operation of a penny arcade without a license shall constitute a separate offense.
(C.O. 712-16; renumbered to C.M.C. 865-99-C, eff. Jan. 1, 1972)

Sec. 865-99-D. Violation of Sections 865-23, 865-26 and 865-27.

Any person who shall violate any of the provisions of Sections 865-23, 865-25 and 865-27 shall be guilty of a misdemeanor and shall be fined not more than $200 and each day such violation exists shall constitute a separate violation.
(C.M.C. 865-99-D; ordained by Ord. No. 234-1972, eff. July 1, 1972)

Sec. 865-99-E. Violation of Section 865-20 and Section 865-33.

Whoever violates Section 865-29 or Section 865-33 shall be guilty of a misdemeanor punishable by six months imprisonment or a fine not to exceed $1,000.
(Ordained by Ord. No. 582-1979. eff. Dec. 27, 1979; a. Ord. No. 66-1980, eff. Feb. 27, 1980)

Sec. 865-99-F. Violation of Section 865-31.

Whoever fails to publicize the time for opening the doors as required in Section 865-31 or to open the doors at the scheduled time, or to comply with an order of the police officer in charge pursuant to Section 865-31 shall be guilty of a misdemeanor punishable by six months imprisonment or a fine not to exceed $1,000.
(Ordained by Ord. No. 583-1979, eff. Dec. 27, 1979)

Chapter 867

TRAILER CAMPS (REPEALED)*

*__Editor's note—__Repealed by Ord. No. 332-1981, eff. Aug. 5, 1981.

Chapter 868

TENANTS' ACCESS TO COUNSEL IN EVICTION PROCEEDINGS

Sec. 868-01. Definitions.
Sec. 868-01-A. Access to Counsel Pilot Program.
Sec. 868-01-B. Brief Legal Assistance.
Sec. 868-01-C. Community Partner.
Sec. 868-01-C1. Covered Individual.
Sec. 868-01-C2. Covered Proceeding.
Sec. 868-01-F. Full Legal Representation.
Sec. 868-01-F1. Funds Administration Partner.
Sec. 868-01-I. Imminent Threat of Eviction.
Sec. 868-01-L. Legal Partner.
Sec. 868-01-L1. Legal Services.
Sec. 868-01-R. Rental Assistance Funds.
Sec. 868-03. Legal Representation and Rental Assistance in Eviction Proceedings.

Sec. 868-01. Definitions.

For the purpose of this chapter, the words and phrases defined in the sections below shall have the meanings therein respectively ascribed to them, without limiting the generalities of the words, unless a different meaning is clearly indicated by the context.
(Ordained by Emer. Ord. No. 416-2023, § 1, eff. Dec. 6, 2023)

Sec. 868-01-A. Access to Counsel Pilot Program.

"Access to Counsel Pilot Program" is the program defined and created by this Chapter.
(Ordained by Emer. Ord. No. 416-2023, § 1, eff. Dec. 6, 2023)

Sec. 868-01-B. Brief Legal Assistance.

"Brief legal assistance" shall mean individualized legal assistance provided in a single consultation by a legal partner to a covered individual in connection with a covered proceeding.
(Ordained by Emer. Ord. No. 416-2023, § 1, eff. Dec. 6, 2023)

Sec. 868-01-C. Community Partner.

"Community partner" shall mean a nonprofit organization or entity with the capacity to provide tenant outreach, engagement, education, and information relating to the Access to Counsel Pilot Program, or to raise or donate funds for contribution to the Access to Counsel Pilot Program, which has been designated by the office of the city manager as a community partner.
(Ordained by Emer. Ord. No. 416-2023, § 1, eff. Dec. 6, 2023)

Sec. 868-01-C1. Covered Individual.

"Covered individual" shall mean any person who occupies a dwelling unit in the city of Cincinnati under a claim of legal right other than the owner, including any tenant in a building owned, operated, or managed by the Cincinnati Metropolitan Housing Authority and:

(1) Whose annual gross income is not in excess of sixty percent of the area median income, as established by the United States Department of Housing and Urban Development for the Cincinnati metropolitan area, adjusted for household size, and as may be updated from time to time ("AMI");

(2) Is presently subject to imminent threat of eviction; and

(3) Has not been awarded rental assistance funds from the city's Access to Counsel Pilot Program within twelve months prior to their current application.

(Ordained by Emer. Ord. No. 416-2023, § 1, eff. Dec. 6, 2023)

Sec. 868-01-C2. Covered Proceeding.

"Covered proceeding" shall mean any judicial or administrative proceeding to evict or terminate the tenancy or housing subsidy of a covered individual, any proceeding initiated to protect the tenancy of a covered individual under R.C. 5321.07, any proceeding deemed by a legal partner as the functional equivalent of such a proceeding, or any first appeal of such a proceeding.
(Ordained by Emer. Ord. No. 416-2023, § 1, eff. Dec. 6, 2023)

Sec. 868-01-F. Full Legal Representation.

"Full legal representation" shall mean ongoing legal representation provided by any designated organization to a covered individual, and all legal advice, advocacy, and assistance associated with such representation. Such representation includes,

but is not limited to, the filing of a notice of appearance on behalf of the covered individual in a covered proceeding.
(Ordained by Emer. Ord. No. 416-2023, § 1, eff. Dec. 6, 2023)

Sec. 868-01-F1. Funds Administration Partner.

"Funds Administration Partner" shall mean an organization or entity that has the capacity to administer rental assistance funds for the Access to Counsel Pilot Program and has entered into contract with the city to do so.
(Ordained by Emer. Ord. No. 416-2023, § 1, eff. Dec. 6, 2023)

Sec. 868-01-I. Imminent Threat of Eviction.

"Imminent threat of eviction" shall mean either:

(1) The filing of a covered proceeding; or

(2) The receipt of a notice to leave premises, as defined by R.C. 1923.04, within sixty days prior to application.

(Ordained by Emer. Ord. No. 416-2023, § 1, eff. Dec. 6, 2023)

Sec. 868-01-L. Legal Partner.

"Legal partner" shall mean a not-for-profit organization or an entity to be determined by the city manager's office that has the capacity to provide legal services per the standards set by the American Bar Association Standards for the Provision of Civil Legal Aid to covered individuals in one or more covered proceedings and has entered into contract with the City or the Funds Administration Partner to provide such services.
(Ordained by Emer. Ord. No. 416-2023, § 1, eff. Dec. 6, 2023)

Sec. 868-01-L1. Legal Services.

"Legal services" shall mean any legal representation provided to a covered individual, including brief legal assistance and full legal representation.
(Ordained by Emer. Ord. No. 416-2023, § 1, eff. Dec. 6, 2023)

Sec. 868-01-R. Rental Assistance Funds.

"Rental assistance funds" shall mean monetary funds designated by contract with the city for provision of rental assistance to covered individuals.
(Ordained by Emer. Ord. No. 416-2023, § 1, eff. Dec. 6, 2023)

Sec. 868-03. Legal Representation and Rental Assistance in Eviction Proceedings.

(a) Covered individuals shall receive legal services, rental assistance funds, or both from the legal partners or funds administration partner, as applicable, under contract with the city. If legal services are provided in a covered proceeding, the legal partner shall provide those services as soon as possible after the initiation of the covered proceeding and in accordance with ABA standards.

(b) The provision of legal services through legal partners as described in section 868-03(a) is contingent upon additional legislative authority authorizing and appropriating the funds for a contract between the city and legal partners and is subject to any terms and conditions contained in such agreement.

(c) The provision of rental assistance funds through a funds administration partner as described in Section 868-03(a) is contingent upon additional legislative authority authorizing and appropriating the funds for a contract

between the city and the funds administration partner and is subject to any terms and conditions contained in such agreement.

(d) If the projected or actual need for legal services or rental assistance funds exceeds the available funds, the provision of legal services or rental assistance funds may be prioritized by reasonable standards set by the City, the legal partners, and the funds administration partners.

(e) Legal partners and the funds administration partners shall work with the city and community partners to engage and educate tenants of their rights and available resources.

(f) Legal partners and the funds administration partners shall be contractually obligated by the City to collect, retain, and report pre-determined data and performance metrics to the City on a quarterly basis, and to adhere to quality assurance standards set by the City based on ABA standards. All such contractual obligations must be satisfied in order to receive an on-going contract to provide legal services or administer rental assistance funds under this chapter.

(g) Any legal services performed by a designated organization under this section shall not supplant, replace, or satisfy any obligations or responsibilities of that designated organization under any other program agreement or contract with the City.

(h) Nothing in this chapter, or in the administration or application of this chapter, shall be construed to create a private right of action on the part of any person or entity against the City of Cincinnati or any agency, official, or employee of the City of Cincinnati.

(i) If any provision or section of this chapter or the enforcement of any provision or section is held to be invalid or unenforceable by a court of competent jurisdiction, such invalidity or unenforceability shall not affect or render invalid or unenforceable any other provision or section of this chapter. To this end, each of the provisions and sections of this chapter are severable.

(Ordained by Emer. Ord. No. 416-2023, § 1, eff. Dec. 6, 2023)

Chapter 869

WRECKER AND TOWING OPERATIONS*

Sec. 869-1. Wrecker Defined.
Sec. 869-3. Wrecker Operator Defined.
Sec. 869-5. Police Rotation List.
Sec. 869-7. Rules and Regulations for Police Rotation List.
Sec. 869-9. Police to Use Rotation List.
Sec. 869-11. Removal of Vehicles.
Sec. 869-99. Penalties.

*__Editor's note—__Ord. No. 166-2001, effective May 31, 2001, repealed Ch. 869 and enacted a new chapter as set out herein. The former Ch. 869, §§ 869-1—869-99, pertained to similar subject matter and derived from Ord. No. 420-1983, effective Oct. 8, 1983.

Sec. 869-1. Wrecker Defined.

"Wrecker" shall mean any truck, other motor vehicle, or mechanical device adapted or used for the purpose of towing, winching, or otherwise removing disabled or parked motor vehicles.
(Ordained by Ord. No. 166-2001, eff. May 31, 2001)

Sec. 869-3. Wrecker Operator Defined.

"Wrecker or towing operator" shall mean any person, firm or corporation engaged in the business of offering towing service by use of a wrecker, so designated for that purpose, "towing service" being the towing or otherwise removing of disabled or parked motor vehicles from the place where they have been disabled or parked.
(Ordained by Ord. No. 166-2001, eff. May 31, 2001)

Sec. 869-5. Police Rotation List.

For the purpose of facilitating the removal of vehicles within the City limits which are illegally parked or which have been disabled, the City Manager or the City Manager's designee, is authorized to establish a police rotation list consisting of the names of locally owned wrecker operators who are able and willing to provide towing services for the city. To be eligible for participation in the rotation of wrecker operators on the police rotation list, a wrecker operator must:

(a) have and keep in force general liability insurance, protecting against bodily injury and property damage, in an amount of not less than $1,000,000 with a deductible no greater than $1,000. Such insurance must contain an endorsement providing a minimum of ten days notice by the insurer to the City of Cincinnati prior to any material change or cancellation.

(b) have garage keepers legal liability insurance, covering property which comes into the care, custody, or control of the wrecker operator, by virtue of towing, covering theft, fire and collision in an amount of not less than $100,000 with a deductible no greater than $500. Such insurance must contain an endorsement providing a minimum of ten days notice by the insurer to the City of Cincinnati prior to any material change or cancellation.

(c) not have been convicted of one (1) or more charges under Ohio Revised Code Section 4513.60 or Section 869-11 of this chapter, or any successor statute or ordinance, within the previous twelve (12) months.

If, at any time, a wrecker owner or operator is removed from the police rotation list after being convicted of one (1) charge under Ohio Revised Code Section 4513.60 or Section 869-11 of this chapter, or any successor statute or ordinance, at least one (1) year shall elapse before the wrecker owner or operator may be eligible for the police rotation list.

If, at any time, a wrecker owner or operator is removed from the police rotation list and has two (2) or more convictions under Ohio Revised Code Section 4513.60 or Section 869-11 of this chapter, or any successor statute or ordinance, within the previous five (5) years, at least three (3) years shall elapse from the date of the last conviction before the wrecker owner or operator may be eligible for the police rotation list.
(Ordained by Ord. No. 166-2001, eff. May 31, 2001; a. Ord. No. 114-2012, § 1, eff. May 18, 2012)

Sec. 869-7. Rules and Regulations for Police Rotation List.

The City Manager or the City Manager's designee shall promulgate rules and regula-

tions describing the procedures to be observed by wrecker and towing operators on the police rotation list. The rules and regulations shall include a schedule of fees to be charged to owners for towing services as specified in section 513-7 or its successor, a list of charges for towing services to be paid to towing companies or operators who tow vehicles at the request of the city, criteria for towing and wrecker equipment, required employee training and/or licensing, security requirements for storage and equipment, the method of selection of wrecker operators for a particular tow, and the policy required by section 513-7 for reducing the impound and towing charges. The City Manager may designate a third party who has lawfully entered into an agreement for the management of police tows to administer the police rotation list in accordance with section 869-5 and the rules and regulations. The rules and regulations may be revised from time to time by the city manager or the city manager's designee to reflect the needs of the City and the police department, except that the fees charged to car owners for towing and impoundment may be changed only by amending the provisions of Section 513-7 of the Municipal Code or its successor.
(Ord. No. 166-2001, eff. May 31, 2001; a. Emer. Ord. No. 164-2020, §§ 3, 4, eff. May 28, 2020; a. Emer. Ord. No. 0225-2020, §§ 1, 2, June 24, 2020)

Sec. 869-9. Police to Use Rotation List.

All police tows shall be made according to the rules and regulations established under the authority of Section 869-7 hereof, employing wrecker and towing operators from the police rotation list.
(Ordained by Ord. No. 166-2001, eff. May 31, 2001)

Sec. 869-11. Removal of Vehicles.

No person shall remove or cause the removal of any vehicle from a private tow-away zone as defined in Ohio Revised Code Section 4513.60(B) in the City of Cincinnati except in accordance with Ohio Revised Code Section 4513.60 or any successor statute.
(Ordained by Ord. No. 114-2012, § 3, eff. May 18, 2012)

Sec. 869-99. Penalties.

Whoever violates Section 869-11 of the City of Cincinnati Municipal Code shall be fined no more than one thousand dollars.
(Ordained by Ord. No. 114-2012, § 4, eff. May 18, 2012)

Chapter 870

LAND INSTALLMENT CONTRACTS

Sec. 870-01. Definitions.
Sec. 870-03. Certificate of Occupancy Required.
Sec. 870-05. Recording of Land Installment Contracts.
Sec. 870-07. Prohibition; Notice of Violation.
Sec. 870-09. Vendee's Remedies for Non-Compliance.
Sec. 870-11. Severability.

Sec. 870-01. Definitions.

(a) For the purposes of this chapter, words and phrases shall have their ordinary meaning unless defined herein.

(b) "Land Installment Contract" means an executory agreement which by its terms is not required to be fully performed by one or more of the parties to the agreement within one year of the date of the agreement and under which the vendor agrees to convey title in real property located within the city of Cincinnati to the vendee and the vendee agrees to pay the purchase price in installment payments, while the vendor retains title to the property as security for the vendee's obligation.

(c) "Owner" means any person or person in control, as defined in Cincinnati municipal code section 1123-3-P, who, alone or jointly or severally with others has title of a residential property to be conveyed by land installment contract with or without accompanying actual possession, or has charge, care or control of any residential property to be conveyed by land installment contract as owner or agent of the owner including, but not limited to, trustee, guardian of the estate of the owner, or executor or administrator who with the approval of the probate court has assumed the responsibility of management. Any such person thus representing the actual owner shall be bound to comply with the provisions of this requirement, to the same extent as if he or she were the owner. Mortgagees who have not acquired the property through a foreclosure action or are not in actual possession of the property are not an "owner" for purposes of this chapter.

(d) "Property" means real property located in the city of Cincinnati improved by virtue of a dwelling having been erected on the real property.

(e) "Vendee" means the person who acquires an interest in property pursuant to a land installment contract, or any legal successor in interest to that person.

(f) "Vendor" means any individual, partnership, corporation, association, trust, or any other group of individuals however organized making a sale of property by means of a land installment contract.
(Ordained by Ord. No. 186-2018, § 1, eff. July 27, 2018)

Sec. 870-03. Certificate of Occupancy Required.

Prior to conveying an interest in residential property within the city of Cincinnati by land installment contract, the vendor shall apply for and obtain a current certificate of occupancy or temporary certificate of occupancy as provided by Cincinnati building code sections 1101-37.3 and 1101-37.5. Vendors in possession of a certificate of occupancy issued for the property within 180 days prior to the date of execution of the land installment contract are exempt from this requirement.
(Ordained by Ord. No. 186-2018, § 1, eff. July 27, 2018)

Sec. 870-05. Recording of Land Installment Contracts.

(a) Before the execution of a land installment contract, the vendor shall deliver to the vendee a copy of the current certificate of occupancy.

(b) Within twenty days after a land installment contract has been signed by both the vendor and the vendee, the vendor shall cause a copy of the contract to be recorded as provided in R.C. 5301.25, and a copy of the contract to be delivered to the county auditor.
(Ordained by Ord. No. 186-2018, § 1, eff. July 27, 2018)

Sec. 870-07. Prohibition; Notice of Violation.

(a) No vendor shall convey any interest in a residential property through land installment contract unless a certificate of occupancy or temporary certificate of occupancy has been issued, pursuant to this section.

(b) No vendor shall fail to deliver to the vendee a copy of the current certificate of occupancy or temporary certificate of occupancy prior to the execution of the land installment contract.

(c) No vendor shall fail to record, as provided in R.C. 5301.25, the land installment contract with the county recorder and deliver a copy to the county auditor within twenty days of the execution of a land installment contract.

(d) In a conveyance of any interest of a residential property through land installment contract sale, no vendor shall require a vendee, as a condition of the contract, to sign a "quit claim" deed, deeding the property in question to the vendor in the event of a default by the vendee.

(e) The director of buildings and inspections may issue a notice of violation to the vendor of the residential property who conveys any interest in a residential property through land installment contract where the property has been found to be in violation of the Cincinnati building code and located in the city of Cincinnati without the dwelling having been issued a certificate of occupancy or temporary certificate of occupancy.

(f) The following rebuttable presumption shall apply to violations of this section: the owner of the premises whose name is listed in the records of the Hamilton County auditor is presumed, for purposes of this section, to be the owner of said premises.
(Ordained by Ord. No. 186-2018, § 1, eff. July 27, 2018)

Sec. 870-09. Vendee's Remedies for Non-Compliance.

If a vendor fails to comply with any provision of this chapter, the vendee shall have a cause of action against the vendor and may rescind the land installment contract and may recover, for each such failure, the vendor's actual damages or $5,000.00, whichever is greater, and reasonable attorney's fees for services performed, and the costs of the action.
(Ordained by Ord. No. 186-2018, § 1, eff. July 27, 2018)

Sec. 870-11. Severability.

If any provision or section of this chapter or the enforcement of any such provision or section is held to be invalid or unenforceable by a court of competent jurisdiction, such invalidity or unenforceability shall not affect or render invalid or unenforceable any other provision or section of this chapter. To this end, each of the provisions and sections of this chapter are severable.
(Ordained by Ord. No. 186-2018, § 1, eff. July 27, 2018)

Chapter 871

LANDLORD-TENANT RELATIONSHIPS

Sec. 871-1. Purpose and Construction.
Sec. 871-3. Definitions.
Sec. 871-5. Severability.
Sec. 871-7. Authority of Director of Buildings and Inspections Not Altered.
Sec. 871-8. Unlawful Entry Prohibited.
Sec. 871-9. Obligations of Landlords and Tenants.
Sec. 871-10. Unlawful Eviction Prohibited.
Sec. 871-11. Notice to Tenants.
Sec. 871-12. Lead Service Line Notification to Tenant.
Sec. 871-13. Application of Chapter.
Sec. 871-14. Landlord's Obligation to Provide Tenant Relocation Assistance.
Sec. 871-15. Court Action.
Sec. 871-17. Retaliation Prohibited.

Sec. 871-1. Purpose and Construction.

(a) The purpose of this chapter is to improve the housing stock in Cincinnati, promote equitable relationships between landlords and tenants, and ensure that tenants have access to decent, safe, and sanitary housing. To this end, the chapter shall be liberally construed.

(b) If any of the provisions of this chapter conflict with the laws, rules, and regulations of the United States or the state of Ohio, such laws, rules, and regulations shall govern. (C.M.C. 871-1; ordained by Ord. No. 314-1973, eff. Aug. 4, 1973; a. Ord. No. 0010-2020, §§ 1, 4, eff. Jan. 15, 2020; a. Ord. No. 415-2023, §§ 2, 5, eff. Dec. 5, 2023)

Sec. 871-3. Definitions.

As used in this Chapter 871, the following words and terms shall have the meanings indicated in this section. Words and terms used and not specifically defined in this section, but which are defined in the Cincinnati Building Code, Title XI of the Cincinnati Municipal Code, shall have the meanings there defined. Words used in the singular include the plural and the plural the singular. Words used in the masculine gender include the feminine, and the feminine the masculine.

(a) "Director of Buildings and Inspections" or "Director" shall be construed to include the director of buildings and inspections and authorized employees appointed to perform specific duties of the Department of Buildings and Inspections in the enforcement of the provisions of the Ohio Building Code and the Cincinnati Building Code.

(b) "Landlord" means the owner of a rental unit.

(c) "Protected activity" or "protected activities" means any advocacy or action related to advocacy by a tenant or tenant organization intended to influence or impact the health, safety, or welfare of a tenant of residential rental property; the terms of a rental agreement; or the amount or payment of rent including, but not limited to:

(1) Reporting or complaining to an appropriate governmental agency of a violation of a building, housing, health, fire, or safety code that is applicable to the premises of the residential rental property;

(2) Reporting or complaining to the landlord, landlord's agent or representative, or person in control of the residential rental property of any violation of R.C. 5321.04, Section 871-9, or any substantially similar successor statute or ordinance;

(3) Using or indicating an intent to use a right or remedy provided under R.C. 5321.07 or any substantially similar successor statute;

(4) Communicating or joining with other tenants for the purpose of negotiating or dealing collectively with the landlord on any of the terms and conditions of a rental agreement;

(5) Establishing or operating an organization intended to advocate for tenants or engage in protected activity;

(6) Distributing, posting, or placing leaflets on doors of rental units, in lobby areas, or common areas;

(7) Conducting door-to-door surveys to determine interest from tenants in establishing a tenant organization or promoting tenant rights;

(8) Offering information about tenant organizations, tenant rights, or landlord obligations;

(9) Assisting tenants to participate in tenant organization activities; or

(10) Convening meetings of tenants to discuss, advocate, or plan to respond to issues related to tenant health, safety, or welfare; criminal activity at the premises; enforcement action by a governmental entity regarding the premises; or violations of building, health, or fire safety laws or standards.

(d) "Rental agreement" means any contract or lease, whether written, oral, or implied by operation of law, for the rental of the rental unit.

(e) "Rental unit" means the whole or part of a building including common areas used by a person for living dining, cooking, sleeping, and sanitation purposes owned or controlled by another, under an agreement for the periodic payment of rent.

(f) "Retaliate" means increasing the tenant's rent, decreasing services that are due to the tenant, or bringing or threatening to bring an action for possession of the tenant's premises, serving a notice to leave the premises, terminating the tenant's rental agreement, refusing to renew the tenant's rental agreement or to continue the tenant's tenancy, shutting off or interfering with access to utilities, refusing to accept rent payments, interfering with the tenant's lawful use of the premises, or any other action or threat intended to deter or punish a tenant or tenant organizer from engaging in a protected activity.

(g) "Security deposit" means any deposit of money or other property however denominated whose primary function is to secure the performance of the tenant under a rental agreement.

(h) "Tenant" means an occupant of a rental unit other than an owner or operator.

(i) "Tenant household" means an individual tenant who lawfully resides in a rental unit or two or more individuals who lawfully reside in the same rental unit, whether or not such individuals are related to one another by blood or marriage.

(j) "Tenant organization" means any group of people who establish a group at the invitation or request of tenants for the purpose of addressing issues related to the health, safety, and welfare of tenants; the terms and conditions of their tenancy; health, building, fire, and other safety code compliance; and crime around the premises.

(k) "Vacate order" means an order to vacate and keep vacant an occupied rental unit, which order is issued pursuant to the city's police powers to protect public health, safety, and welfare, including pursuant to Section 3742.40 of the Ohio Revised Code, Rule 370-30-11 of the Ohio Administrative Code, Section 602-7 or Section 1101-65 of the Cincinnati Municipal Code, or the director's authority pursuant to Section 5, Article XXI of the Cincinnati Administrative Code.

(C.M.C. 871-3: ordained by Ord. No. 314-1973. eff. Aug. 4, 1973; a. Ord. No. 415-2023, §§ 2, 5, eff. December 5, 2023; a. Ord. No. 289-2025, § 1, eff. Sept. 10, 2025)

Sec. 871-5. Severability.

If any provision or clause of this chapter or its application to any person or in any circumstances is held invalid, such invalidity shall not affect other provisions or applications of this chapter which can be given effect without the invalid provision or application, and to this end the provisions of this chapter shall be severable.
(C.M.C. 871-5; ordained by Ord. No. 314-1973, eff. Aug. 4, 1973)

Sec. 871-7. Authority of Director of Buildings and Inspections Not Altered.

Nothing contained in this chapter shall be construed to limit the power of the director of buildings and inspections to require permits for repair work or to order any condition in violation of the Cincinnati - Ohio Basic Building Code into compliance with provisions of the Cincinnati - Ohio Basic Building Code or to take any other action or exercise any other power authorized or conferred by the Cincinnati - Ohio Basic Building Code or other laws and ordinances.
(C.M.C. 871-7; ordained by Ord. No. 314-1973, eff. Aug. 4, 1973; a. Ord. No. 39-1975, eff. Feb. 21, 1975)

Sec. 871-8. Unlawful Entry Prohibited.

(a) Except in the case of an emergency or if it is impracticable to do so, a landlord shall give a tenant reasonable notice of their intent to enter the leased premises and enter only at reasonable times. Twenty-four (24) hours is presumed to be reasonable notice in the absence of evidence to the contrary.

(b) If a landlord makes an entry in violation of section (a), makes a lawful entry in an unreasonable manner, or makes repeated demands for entry otherwise lawful that have the effect of harassing the tenant, the tenant is entitled to any or all of the following forms of relief:

(1) At the tenant's option, either recovery of actual damages resulting from the entry or demands, or recovery of damages of an amount not less than one-hundred dollars ($100.00) nor more than one-thousand dollars ($1,000.00);

(2) Injunctive relief to prevent the recurrence of the conduct;

(3) Judgment for reasonable attorney's fees; and

(4) Termination of the rental agreement.
(Ordained by Ord. No. 403-2019, § 1, effective January 28, 2020)

Sec. 871-9. Obligations of Landlords and Tenants.

(a) In every rental agreement there shall be imposed upon the landlord the following obligations to the tenant:

(1) The landlord shall conform to the "Obligations of Landlords" as set out in Section 5321.04 of the Ohio Revised Code.

(2) The landlord shall maintain the rental unit in substantial compliance with the provisions applicable to landlords in the Cincinnati - Ohio Basic Building Code, the Cincinnati Fire Prevention Code, and the regulations of the board of health;

(3) So long as the tenant continues to meet their obligation under paragraph 871-9(b)(2), no landlord shall raise the agreed rent for the rental unit above the rent charged for comparable rental units, or otherwise increase the obligations of the tenant in any way, or terminate the tenancy, or bring an action for forcible entry and

detainer, in retaliation for the tenant's pursuing any right or remedy under this chapter or because:

(A) The tenant has complained in good faith to the landlord or their agent or employees of conditions in or affecting the tenant's rental unit which the tenant believes may constitute a violation of the Cincinnati - Ohio Basic Building Code, the Fire Prevention Code, the regulations of the board of health or any other law.

(B) The tenant has complained in good faith to a body charged with the enforcement of the Cincinnati - Ohio Basic Building Code, the Fire Prevention Code, or the regulations of the board of health, or any other law of a condition in or affecting the rental unit which the tenant believes may constitute a violation of such codes, regulations or other laws; or

(C) In response to a complaint of the tenant, the body charged with enforcement of the Cincinnati - Ohio Basic Building Code, the Fire Prevention Code, the regulations of the board of health or any other law has served a notice or complaint of a violation on the landlord, agents or employees of the landlord.

(4) Within six months after the occurrence of any event referred to in this paragraph 871-9(a)(3), an action for forcible entry and detainer shall be presumed to be in retaliation for that event and the landlord shall not be entitled to recover possession unless landlord proves by a preponderance of the evidence that:

(A) The tenant is committing waste, creating a nuisance, using the rental unit for an illegal purpose or for other than living or dwelling purposes, or substantially impairing the quiet enjoyment of the property by the other occupants of the property; or

(B) The landlord desires possession of the rental unit for immediate use as landlord's own abode; or

(C) The rental unit must be vacated in order to make necessary repairs; or

(D) The landlord plans permanently and immediately to remove the rental unit from the rental market.

(5) The obligations of a tenant under any agreement or under this chapter shall not be modified by this section, but failure of the tenant to perform any obligations other than those specified in paragraphs 871-9(b)(2) and 871-9(a)(4) shall not be grounds for eviction.

(6) Prior to entry into the rental agreement and thereafter upon request by the tenant, the landlord shall provide to the tenant:

(A) A copy of all rules and regulations concerning the use, occupancy and maintenance of the rental unit, appurtenances thereto, and the property of which the rental unit is a part, and

(B) A copy of the "Notice to tenants" set out in paragraph 871-11(a), and shall obtain from the tenant a written acknowledgement by the tenant of receipt of the rules and regulations and the "Notice to tenants" set out in paragraph 871-11(a).

(C) A complete copy of the written rental agreement, if any.

(7) When a tenant provides a security deposit the landlord shall provide the tenant with a signed receipt for the security deposit and all rental payments, except for payments made by personal check of the tenant, at the time the security deposit or rental payments are made.

(8) Upon a tenant's request, all landlords who own and control more than twenty-five rental units and require a security deposit shall offer to accept at least one of the options described in paragraph 871-9(a)(8)(A-C) in lieu of the required security deposit:

(A) Rental security insurance that satisfies the following criteria:

(i) The insurance provider is an approved carrier licensed by, and in good standing with, the Ohio Department of Insurance;

(ii) The coverage is effective upon the payment of the first premium and remains effective for the entire lease term; and

(iii) The coverage provided per claim is no less than the amount the landlord requires for security deposits.

(B) Payment of the security deposit over a series of no less than six equal monthly installment payments, which installments shall be due on the same day as the monthly rent payment and which may be paid together with the monthly rent payment in a single transaction, absent separate agreement by the landlord and tenant; or

(C) Payment of a reduced security deposit, which amount shall be no more than fifty percent of the monthly rental rate charged for the subject rental unit.

(D) Prior to entering into a rental agreement, a landlord shall provide the tenant written notice of the available security deposit alternatives consistent with paragraph 871-11, "Notice to Tenants."

(E) If rental security insurance meeting the criteria in this paragraph 871-9(a)(8) is not available within the corporate limits of city of Cincinnati, a landlord shall satisfy his or her obligations under this paragraph 871-9(a)(8) by offering, at his or her option, one of the rental security deposit alternatives described in paragraph 871-9(a)(8)(B-C).

(F) The provisions of this paragraph 871-9(a)(8) shall not apply to a deposit placed with a landlord to secure the availability of a rental unit more than sixty days prior to the commencement of the rental period.

(9) A tenant who elects to provide rental security insurance in lieu of a required security deposit shall not be required to provide additional security or insurance coverage per claim in an amount greater than the amount required for security deposits.

(10) If the rental agreement includes a provision that authorizes the landlord to assess the tenant a fee for late payment of the monthly rent, the

total amount of that late payment fee for any month may not exceed fifty dollars ($50.00) or five percent (5%) of the monthly contract rent, whichever amount is greater.

(11) The landlord shall not:

(A) Charge interest on a late fee;

(B) Impose a late fee more than one time on a tenant's single late payment of rent; or

(C) Impose a late fee on a tenant for the late payment or nonpayment of any portion of the rent for which a rent subsidy provider, rather than the tenant, is responsible for paying.

(b) In every rental agreement there shall be imposed upon the tenant the following obligations to the landlord:

(1) The tenant shall conform to the "Responsibilities of occupants" as set out in the Cincinnati - Ohio Basic Building Code and to the "Obligations of Tenant" as set out in Section 5321-05 of the Ohio Revised Code.

(2) The tenant shall tender the agreed rent at the agreed time and place, and in the agreed manner except:

(A) When the tenant has made any payment to a utility supplier for utility services to the rental unit which, by the rental agreement, is the obligation of the landlord, the tenant may deduct the amount of such payments from the rent.

(B) When the landlord has failed to comply with an order of state or local building, health, or fire officials within the time period specified in the initial order to the landlord, the tenant may make or cause to be made necessary repairs and deduct the reasonable cost thereof, including the cost of all necessary permits, from the rent due and owing in the next two consecutive 30 day rental periods. No tenant shall deduct more than two months' rent for the cost of repairs in any six-month period. No tenant shall undertake repairs without first obtaining the necessary permits from the Department of Buildings and Inspections. All repairs shall be made in compliance with the provisions of the Cincinnati - Ohio Basic Building Code.

(C) Whenever the building or a portion of the building of which the rental unit is a part is ordered vacated by governmental authority, the tenant shall vacate the rental unit and the duty of the tenant to pay rent shall be completely abated.

(3) The tenant shall obey all rules and regulations established by the landlord concerning the use, occupation, and maintenance of the rental unit, appurtenances thereto, and the property of which the unit is a part, if:

(A) The tenant has acknowledged receipt in writing of a copy of the rules and regulations prior to entry into the rental agreement, or has consented in writing to rules and regulations promulgated after commencement of the rental agreement, and

(B) The rules and regulations are reasonably related to the convenience, safety or welfare of the tenants of the property, or to

the preservation of the property, or to the fair distribution of services and facilities held out for the tenants generally, and

(C) The rules and regulations are sufficiently explicit in their prohibition, direction, or limitation of the tenant's conduct to inform tenant of what must or must not be done to comply.

(c) In any eviction action (Complaint for Forcible Entry and Detainer) brought by a landlord under Ohio Revised Code Chapter 1923 for nonpayment of rent involving a residential rental property, the tenant's tender of all past due rent; reasonable late fees, which late fees are governed by Sections 871-9(a)(10) and 871-9(a)(11); court costs; and reasonable attorney fees, not to exceed $125.00, whether tender is made before or after the filing of the eviction action, so long as tender is made no later than at the municipal court eviction hearing, shall constitute an affirmative defense.

(1) For purposes of this section, "tender" shall mean payment of or the provision of a voucher from an accredited social service, nonprofit, governmental, or quasi-governmental agency that guarantees the payment of any and all past due rent, reasonable late fees, court costs, and, where applicable, reasonable attorney's fees. Such tender shall be made to the landlord in any lawful form agreed upon by the landlord, any form provided for by state law, or any form approved of by a court with jurisdiction over the eviction action. Where a tenant provides payment to a landlord in the form of a cashier's check, money order, certified check, or cash in an amount which covers all past due rent, reasonable late fees, court costs, and, where applicable, reasonable attorney's fees, such payment shall also constitute "tender" for purposes of this section.

(d) Except as specifically provided in Section 871-9 or any other section of this chapter, all obligations of landlords and tenants under this chapter shall be interpreted as independent obligations and the duty of a tenant or landlord to meet the obligations under this chapter shall not be conditioned upon the performance of obligations by the other party to the rental agreement.
(C.M.C. 871-9; ordained by Ord. No. 314-1973, eff. Aug. 4, 1973; a. Ord. No. 39-1975, eff. Feb. 21, 1975; a. Ord. No. 0404-2019, § 1, eff. Jan. 28, 2020; a. Ord. No. 0010-2020, §§ 2, 5, eff. Jan. 15, 2020; a. Ord. No. 419-2021, §§ 1, 2, eff. Nov. 10, 2021)

Sec. 871-10. Unlawful Eviction Prohibited.

(a) *Unlawful Eviction.* No landlord shall initiate any act, including a constructive eviction, termination of utilities or services, exclusion from the premises, seizing a tenant's property, or threat of any unlawful act, against a tenant, or a tenant whose right to possession has terminated, for the purpose of recovering possession of residential premises, other than as provided in Chapters 1923, 5303, and 5321 of the Ohio Revised Code.

(b) If a landlord engages in an unlawful eviction in violation of section (a), unlawfully seizes the property of a tenant, or makes repeated threats of initiating an unlawful eviction for the purpose of recovering possession of residential premises, the tenant is entitled to any or all of the following forms of relief:

(1) At the tenant's option, either recovery of actual damages resulting from the

landlord's act, seizure, or demands, or recovery of damages of an amount not less than $1,000;

(2) Injunctive relief to prevent the recurrence of the conduct;

(3) Judgment for reasonable attorney's fees; and

(4) Termination of the rental agreement. (Ordained by Ord. No. 315-2023, § 1, eff. 9-13-2023)

Sec. 871-11. Notice to Tenants.

(a) For purposes of paragraph 871-9(a)(6)(B) the "Notice to tenants" shall include the following language. The capitalized language shall be set in 14-point bold-face type; all other language shall be set in 12-point type.

NOTICE TO TENANTS

The following notice is required by the Cincinnati Municipal Code:

TENANT'S DUTIES

Each tenant shall comply with all duties imposed upon tenants by the applicable provisions of all municipal codes, regulations and ordinances, and in particular:

1. Keep that part of the premises which tenant occupies and uses safe and sanitary.
2. Dispose of all rubbish, garbage, and other waste in a clean, safe, and sanitary manner.
3. Keep all plumbing fixtures in the dwelling unit or used by tenants as clean as their condition permits.
4. Use and operate all electrical and plumbing fixtures properly.
5. Personally refrain, and forbid any other person who is on the premises with tenant's permission, from intentionally or negligently destroying, defacing, damaging, or removing any fixture, appliance, or other part of the premises.
6. Maintain in good working order and condition any range, refrigerator, washer, dryer, dishwasher, or other appliances supplied by the landlord and required to be maintained by the tenant under the terms and conditions of a written rental agreement.
7. Conduct himself or herself and require other persons on the premises with tenant's consent to conduct themselves in a manner that will not disturb neighbors' peaceful enjoyment of the premises.
8. Upon reasonable notice and at reasonable times give consent for the landlord to enter into the dwelling unit in order to inspect the premises, make ordinary, necessary or agreed repairs, decorations, alterations, improvements, deliver parcels which are too large for the tenant's mail facilities, supply necessary or agreed services, or exhibit the dwelling unit to prospective or actual purchasers, mortgagees, tenants, workmen, or contractors.
9. Inform the landlord, or landlord's agents, within a reasonable time, of any conditions, whether caused by the tenant or due to normal use of the premises, which should be corrected in order to preserve the condition of the rented premises.

Any tenant who creates a condition which constitutes a violation of the standards established by the Cincinnati - Ohio Basic Building Code may be punished for a violation in accordance with the penalty provisions of the Cincinnati - Ohio Basic Building Code, if the tenant fails to remedy

the condition within a reasonable time after he receives notice of such violation from the Department of Buildings and Inspections or fire division or the board of health.

LANDLORD'S DUTIES

Each owner or landlord of residential property shall comply with all duties imposed upon owners or landlords by the applicable provisions of all municipal codes, regulations, or ordinances governing the maintenance, construction, use or appearance of the dwelling unit and the property of which it is a part, and in particular:

1. Keep all common areas of the premises in a safe and sanitary condition.
2. Make all repairs necessary to put and keep the dwelling unit and the appurtenances thereto in a fit and habitable condition and in compliance with the Cincinnati - Ohio Basic Building Code, Cincinnati Fire Prevention Code, and the regulations of the board of health.
3. Maintain in good and safe working order and condition all electrical, plumbing, sanitary, heating, ventilating, and air conditioning fixtures and appliances, and elevators, supplied or required to be supplied by landlord.
4. Dispose of all garbage and rubbish in accordance with the provisions of Section 00053-7 of the regulations of the board of health.
5. Exterminate any insects, rodents, or other pests on the premises.
6. Supply running water, reasonable amounts of hot water and reasonable heat at all times, except when the building that includes the dwelling unit is not required by law to be equipped for that purpose, or the dwelling unit is so constructed that heat or hot water is generated by an installation within the exclusive control of the tenant and supplied by a direct public utility connection.
7. Except in the case of emergency or if it is impracticable to do so, give the tenant reasonable notice of landlord's intent to enter and enter only at reasonable times. Twenty-four hours is presumed to be a reasonable notice in the absence of evidence to the contrary.
8. [LANDLORDS WHO OWN AND CONTROL MORE THAN TWENTY-FIVE RENTAL UNITS SHALL ALSO INCLUDE THE FOLLOWING LANGUAGE IN THEIR NOTICES:]

If a security deposit is required, Tenant has the right to request and Landlord is required to accept one of the following three alternatives: a) rental security insurance; b) a deposit paid over no less than six equal monthly installments; or c) a one-time reduced security deposit payment of no more than fifty percent of the monthly rental rate charged for the rental unit. Tenant shall not be required to provide rental security insurance coverage per claim in an amount greater than the amount required for security deposits.

IF YOU BELIEVE THAT THIS BUILDING OR ANY PORTION OF IT IS NOT IN COMPLIANCE WITH THE CINCINNATI - OHIO BASIC BUILDING CODE, CINCINNATI FIRE PREVENTION CODE, AND THE REGULATIONS OF THE BOARD OF HEALTH, NOTIFY YOUR LANDLORD OR LANDLORD'S AGENT:

NAME [INSERT NAME]

ADDRESS [INSERT ADDRESS]

TELEPHONE [INSERT TELEPHONE]

TAKE A WITNESS OR NOTIFY THE LANDLORD OR LANDLORD'S AGENT IN WRITING AND KEEP A COPY. YOU MAY NEED EVIDENCE OF YOUR COMPLAINT. IF YOU AND YOUR LANDLORD CANNOT RESOLVE THE PROBLEM, YOU SHOULD NOTIFY THE CINCINNATI DEPARTMENT OF BUILDINGS AND INSPECTION, 801 PLUM STREET, CINCINNATI, OHIO 45202, TELEPHONE 352-3275, THE CINCINNATI FIRE DIVISION, 430 CENTRAL AVENUE, CINCINNATI, OHIO, TELEPHONE 241-6700, OR THE CINCINNATI BOARD OF HEALTH, 3101 BURNET AVENUE, CINCINNATI, OHIO, TELEPHONE 352-3100. YOUR RIGHT TO DO SO IS PROTECTED BY LAW.

IF YOU HAVE FULFILLED YOUR DUTIES AS A TENANT, AND YOUR LANDLORD HAS NOT FULFILLED HIS DUTIES AS A LANDLORD, YOU MAY, IN SOME CASES, HAVE YOUR RENT USED TO MAKE REPAIRS OR YOU MAY BE ABLE TO APPLY TO A COURT OF LAW FOR A DECREASE IN YOUR RENT. FOR MORE INFORMATION ABOUT YOUR RIGHTS AS A TENANT CONTACT THE BETTER HOUSING LEAGUE, 2400 READING ROAD, CINCINNATI, OHIO 45202, TELEPHONE 721-6855.

(b) In the spaces provided in paragraph 871-11(a)(8), the landlord shall supply the name, address, and telephone number of a person available at all reasonable times authorized to order repairs made to the property.

(C.M.C. 871-11; ordained by Ord. No. 314-1973, eff. Aug. 4, 1973; a. Ord. No. 39-1975, eff. Feb. 21, 1975; a. Ord. No. 0010-2020, §§ 3, 6, eff. Jan. 15, 2020)

Sec. 871-12. Lead Service Line Notification to Tenant.

Landlords shall inform any prospective tenant in writing prior to the prospective tenant's execution of a lease if the rental unit is serviced by a Lead Service Line. Records of service line material composition may be accessed at the Greater Cincinnati Water Works webpage at http://www.cincinnati-oh.gov/water/lead-information/.

(Ordained by Ord. No. 185-2017, § 6, eff. July 28, 2017)

Sec. 871-13. Application of Chapter.

The provisions of this chapter shall apply to all rental and lease agreements entered into or renewed, including periodic tenancies renewed on a periodic basis. This chapter shall also apply to any clauses in rental and/or lease agreements or in a separate document that purport to confer on a tenant some right, whether qualified or unqualified, to purchase the landlord's interest in the real property that the tenant occupies or intends to occupy at a future date as specified in the agreement; and the tenant agrees to pay an option fee upon execution of the agreement and rent during the term of the contract; and where the landlord retains legal and equitable title to the property until such time as the tenant successfully completes the purchase of the property, after the effective date of this chapter. No obligation imposed by this chapter may be waived or modified by agreement, written or oral.

(C.M.C. 871-13; ordained as C.M.C. 871-21 by Ord. No. 314-1973, eff. Aug. 4, 1973; amended and renumbered to C.M.C. 871-13 by Ord. No. 39-1975, eff. Feb. 21, 1975; a. Ord. No. 326-2004, eff. Nov. 5, 2004)

Sec. 871-14. Landlord's Obligation to Provide Tenant Relocation Assistance.

(a) *Relocation assistance required.* If a tenant household is or will be displaced as a result of the issuance of a vacate order by

the director of buildings and inspections or the board of health due to uninhabitable or unsafe living conditions that are the result of intentional or unintentional neglect or deferred maintenance by the landlord, the landlord shall provide relocation assistance to the displaced tenant household. The relocation assistance shall be provided in addition to any damages or other amounts to which the tenant may otherwise be entitled by law.

This section does not apply if the landlord either provides alternative or temporary housing that complies with the applicable provisions of the Cincinnati Municipal Code or demonstrates the existence of another exception under section 871-14(b). The director of buildings and inspections is hereby authorized to establish rules and regulations as are necessary and appropriate to the administration of this section. Such rules and regulations shall include, but not be limited to, minimum size requirements of proposed alternative or temporary housing.

Relocation assistance shall be provided as follows:

(1) Within three business days of the issuance of a vacate order, the landlord shall pay a relocation amount of $2,500 to each tenant household impacted by the vacate order and shall refund any prepaid rent and/or security deposit remitted to the landlord by the tenant household; and

(2) If more than three business days have passed since the issuance of the vacate order and the landlord has not provided the relocation assistance required by section 871-14(a)(1), the tenant may claim in a court action against the landlord the greater of either the relocation assistance provided in section 871-14(a)(1) or the following amounts:

(A) A refund of any and all prepaid rent;

(B) A refund of the full balance of the current month's rental payment;

(C) A refund of any security deposit;

(D) Payment or repayment of the reasonable and necessary costs of the tenant household's relocation costs, such as moving company or rental moving van expenses, with such payments limited to relocations within a fifty mile radius;

(E) Payment or repayment of the tenant household's fees for normal and initial reconnection of any utilities at the tenant household's new residence, not including arrearage due and owing to the utility company by the tenant household; and

(F) Any and all reasonable and necessary local hotel and/or motel costs incurred by the tenant household if the tenant household is given less than thirty days' notice to vacate their rental unit. The landlord's obligation to each tenant household to reimburse for such hotel or motel costs is limited as follows:

i. the landlord shall be obligated to payment of no more than fourteen days of a tenant household's hotel or motel stay, and

ii. the amount of hotel or motel costs for which the landlord shall be obligated to reimburse to the tenant household shall not exceed the average daily rate, including taxes, which hotels and motels located in the

City customarily charge for comparable accommodations.

(3) If any tenant household is given less than seven days' notice to vacate a rental unit, the landlord shall provide a one-time payment of $50.00 per tenant, but no more than $300.00 total, to the tenant household to cover the tenant household's cost to replace food and other incidental items.

(b) *Exceptions.* If the landlord can demonstrate by clear and convincing evidence the existence of one of the following, the landlord shall not be liable to pay relocation assistance:

(1) The vacate order is the direct result of conditions caused by the tenant or the tenant's guest or invitee;

(2) The vacate order is the direct result of disconnection of utilities for nonpayment and the tenant has agreed in a written lease to assume responsibility for payment of the account(s);

(3) The vacate order results from conditions arising from a natural disaster including, but not limited to, a windstorm, tornado, landslide, earthquake, or flood;

(4) The landlord has obtained an active judgment against the tenant household for possession of the rental unit;

(5) The vacate order is rescinded or withdrawn or is overturned by a court prior to the time the tenant household has taken definitive steps to move;

(6) The landlord and tenant household reach a separate agreement regarding relocation, provided that the relocation premises comply with the applicable provisions of the Cincinnati Municipal Code and the terms of the agreement otherwise comply with applicable provisions of the Ohio Revised Code and Cincinnati Municipal Code governing landlord and tenant agreements; or

(7) The landlord has moved the tenant household into another unit or building after the tenant has voluntarily agreed to accept the replacement unit in lieu of payment for relocation under this section and the replacement unit complies with all applicable zoning, building, and housing codes.

(c) *Rental of vacant and uninhabitable rental units prohibited.* If a rental unit is or becomes vacant because vacate orders have been issued due to uninhabitable living conditions, a landlord shall not enter into a rental agreement for the rental unit or allow new tenants to occupy the vacant rental unit until the conditions are corrected.

(d) *Director's involvement in relocation assistance.* The director of buildings and inspections may provide the relocation assistance required by the landlord under section 871-14(a) to tenant households if the landlord fails or refuses to pay for required relocation costs. If the director provides relocation assistance to a tenant household because of the landlord's failure to comply with its obligation under section 871-14(a), the landlord shall be liable to the city for any and all such costs.

(e) *Penalties.*

(1) *Renting vacant and uninhabitable rental unit.* If a landlord knowingly violates section 871-14(c) and rents a vacant and uninhabitable rental unit, in addition to being liable for the relocation assistance set forth in section 871-14(a), the tenant renting a vacant and uninhabitable rental unit may also recover from the landlord

either two months periodic payments of rent or up to three times the actual damages the tenant household sustained as a result of the violation, whichever is greater.

(2) *Failure to provide relocation assistance or repay relocations costs*.

(A) A landlord's failure to provide relocation assistance in accordance with section 871-14(a) or to repay costs incurred by the director in providing relocation assistance in accordance with section 871-14(d) shall constitute a class D civil offense under Section 1501-9(a) for every tenant household displaced.

(B) Each and every day on which a landlord continues to violate section 871-14(a) shall constitute a separate offense.

(f) *Appeals.*

(1) *Administrative Ruling.* A landlord who has a controversy with the city as to the interpretation or application of this section may seek a written determination from the director pursuant to Section 1101-80 of the Cincinnati Building Code.

(2) *Appeal of Director's Ruling.* A landlord aggrieved by an order of the director made pursuant to this section may appeal the order to the Board of Housing Appeals in accordance with Section 1101-83 of the Cincinnati Building Code.

(Ordained by Ord. No. 0038-2023, § 1, eff. January 31, 2024)

Sec. 871-15. Court Action.

(a) The obligations imposed upon landlords and tenants under this chapter, including the duty of the landlord to maintain the rental unit in substantial compliance with the Cincinnati Building Code, the Cincinnati Fire Prevention Code, and the Regulations of the Board of Health confer in the other party to a rental agreement a concomitant right to enforce those obligations. A landlord or tenant may bring an action for mandatory or injunctive relief to secure compliance with these obligations.

(b) A landlord or tenant may recover damages, including damages for injury to person or property, for the breach of any obligation imposed by this chapter.

(c) The city may recover costs from a landlord for any relocation assistance that it provides in accordance with Section 871-14(d).

(d) A tenant may seek the appointment of a receiver for the building in which the tenant resides only in any pending action where the tenant and landlord are parties. The tenant shall show that a city official has ordered the landlord to make repairs to the building, that such order has not been complied with within the time allotted for compliance, and that there is a pattern of neglect of the building on the part of the landlord. The tenant shall also show that the orders are for the correction of conditions which are in violation of the Cincinnati Building Code, the Cincinnati Fire Prevention Code, the Regulations of the Board of Health, or related laws and ordinances. Finally, the tenant shall show that the conditions of the building impose a serious threat to the life, health, or safety of the occupants.

(e) Upon appointment, a receiver shall collect all rents for the building due the landlord for a period not to exceed six months and use the sums collected for the purpose of correcting violations of the Cincinnati Building Code or for such other purposes authorized by the court. The obligation of a tenant to pay rent shall be discharged upon

payment of rent due to the receiver. A building may not be placed under a receivership more than once in a period of 365 days to run from the time of appointment.

(f) A receiver may be allowed out of the rents collected a fee for services. The fee allowed shall be as determined reasonable by the court but shall not exceed 20 percent of the amount actually and reasonably expended for repairs.

(g) If a receiver is appointed at the request of the tenant, the tenant may be allowed as part of the costs of the action expenses and a reasonable attorney's fee for services relating to the appointment and service of the receiver.
(C.M.C. 871-15; ordained as C.M.C. 871-17 by Ord. No. 314-1973, eff. Aug. 4, 1973; amended and renumbered to C.M.C. 871-15 by Ord. No. 39-1975, eff. Feb. 4, 1975; a. Ord. No. 462-1984, eff. Nov. 9, 1984; a. Ord. No. 415-2023, §§ 2, 5, eff. December 5, 2023)

Sec. 871-17. Retaliation Prohibited.

(a) No landlord, landlord's agent or representative, or person in control of the premises of a residential rental property shall retaliate or threaten to retaliate against a tenant or tenant organization because the tenant or tenant organizer engaged in a protected activity.

(b) Nothing in section (a) of this section shall prohibit a landlord from:

(1) increasing the rent to reflect the cost of improvements installed at the residential rental property or to reflect an increase in other costs of operation of the residential rental property.

(2) enforcing a tenant's obligations under R.C. 5321.05, Section 871-9, or any substantially similar successor statute or ordinance, so long as the landlord has not assumed responsibility for any of these obligations pursuant to R.C. 5321.13(F).

(c) If a landlord acts in violation of section (a) of this section the tenant may:

(1) Use the retaliatory action of the landlord as a defense to an action by the landlord to recover possession of the premises;

(2) Recover possession of the premises; or

(3) Terminate the rental agreement.

In addition to the remedies described in division (c), the tenant or tenant organizer may recover from the landlord reasonable attorneys' fees together with the greater of three times any actual damages or an amount equal to three times the periodic rent.

(d) It shall be prima facie evidence of a violation of section (a) that a landlord, landlord's agent or representative, or a person in control of the premises threated to engage or engaged in an action listed in Section 871-3(f) within six months of a tenant engaging in a protected activity.

(e) In addition to the remedies provided by Section 871-15, any person who violates, threatens to violate, or engages in a pattern of violations of this section shall be enjoined from further violation consistent with state law.
(Ordained by Ord. No. 289-2025, § 2, eff. Sept. 10, 2025)

Chapter 872

RESIDENTIAL LEASE OPTION CONTRACTS

Sec. 872-1. Definitions.
Sec. 872-3. Severability.
Sec. 872-4. Obligations of Landlords and Tenants.
Sec. 872-5. Minimum Contents of Residential Lease Option Contract; formalities.
Sec. 872-7. Option Fee Statement Requirements; Maximum Option Fee.
Sec. 872-9. Statements Required to be Furnished to Tenant; Record to be Maintained by the Landlord.
Sec. 872-11. Property Disclosure Form for Residential Real Property Transfers.
Sec. 872-13. Enforcement by Tenant.

Sec. 872-1. Definitions.

For the purpose of this chapter the words and phrases defined in the sections hereunder shall have the meaning respectively ascribed to them, unless a different meaning is clearly indicated by the context.

(a) **"Residential Lease Option Contract"** means an executory agreement, without regard to its title or description, or composition with regards to the number of separate documents which make up said agreement which: 1) by its terms is not required to be fully performed by one or more of the parties to the agreement within one year of the date of the agreement; 2) purports to confer on a tenant some right, whether qualified or unqualified, to purchase the landlord's interest in the real property that the tenant occupies or intends to occupy at a future date as specified in the agreement; and 3) the tenant agrees to pay an option fee upon execution of the agreement and rent during the term of the contract; and 4) where the landlord retains legal and equitable title to the property until such time as the tenant successfully completes the purchase of the property.

(b) *Agreements* commonly known as lease option agreements or rent to own agreements pertaining to real property that purport to confer on a tenant some right, whether qualified or unqualified, to purchase the landlord's interest in the real property that the tenant occupies or intends to occupy shall not be deemed a "lease option agreement", a "option contract for the purchase of real property" or "lease with option to purchase agreement," but shall be deemed a residential lease option contract. Residential Lease Option Contracts are considered rental agreements under Chapter 5321 of the Ohio Revised Code. However, residential lease option contracts do not include any of the following:

(1) A lease for agricultural, business or commercial purposes

(2) A lease made to an organization

(3) A lease of money, personal property or intangible personal property

(4) A lease of a motor vehicle as defined in Section 4501.01 of the Ohio Revised Code

(c) "*Property*" means residential real property, located within the City of Cincinnati corporate boundaries, improved by virtue of a dwelling having been erected on the real property.

(d) "*Landlord*" means the owner, lessor, or sublessor of residential premises, the agent of the owner, lessor, or sublessor, or any person authorized by the owner, lessor, or sublessor to manage the premises or to receive rent from a tenant under a rental agreement per Section 5321.01(B) of the Ohio Revised Code.

(e) "*Tenant*" means a person entitled under a rental agreement to the use and occupancy of residential premises to the exclusion of others per Section 5321.01(A) of the Ohio Revised Code.

(f) "*Option fee*" means any amount that a tenant pays for the right to purchase at a future date, the property that the tenant occupies or intends to occupy.

(g) "*Legal description*" means a description of the property by metes and bounds or lot numbers of a recorded plat including a description of any portion of the property subject to an easement or reservation, if any.

(h) "*Option Agreement*" means the executory contract defining the terms and conditions under which the tenant may purchase the property, where a separate lease contract and option contract are used, or the portion(s) of the contract defining same, where a single contract is used.

(i) "*Option to Purchase*" means the tenant's right, whether qualified or unqualified, to buy the real property under the price and terms outlined in the Residential Lease Option Contract.

(j) "*Purchase Price*" means the price at which the landlord agrees to sell, and the tenant agrees to buy, the real property upon successful completion of the Residential Lease Option Contract and exercise of the Option to Purchase.

(k) "*Rent Credit*" means a portion of the monthly rent, which is applied toward the Option Price under certain circumstances in some Residential Lease Option Contracts.

(l) "*Lease Agreement*" means the contract defining the terms and conditions of the tenant's continued tenancy in the real property, where a separate lease contract and option contract are used, or the portion(s) of the contract defining same, where a single contract is used.

(Ordained by Ord. No. 327-2004, eff. Nov. 5, 2004)

Sec. 872-3. Severability.

If any provision or clause of this chapter or its application to any person or in any circumstances is held invalid, such invalidity shall not affect other provisions or applications of this chapter which can be given effect without the invalid provision or application, and to this end the provisions of this chapter shall be severable.

(Ordained by Ord. No. 327-2004, eff. Nov. 5, 2004)

Sec. 872-4. Obligations of Landlords and Tenants.

The obligations of the landlord and tenant shall be as contained in Chapter 5321 of the Ohio Revised Code, including but not limited to the following:

(a) A landlord who is a party to a rental agreement shall:

(1) Comply with the requirements of all applicable building, housing, health, and safety codes that materially affect health and safety;

(2) Make all repairs and do whatever is reasonably necessary to put and keep the premises in a fit and habitable condition;

(3) Keep all common areas of the premises in a safe and sanitary condition; and

(4) Maintain in good and safe working order and condition all electrical, plumbing, sanitary, heating, ventilating, and air conditioning fixtures and appliances, and elevators, supplied or required to be supplied by him.

(b) A tenant who is a party to a rental agreement shall:

(1) Keep that part of the premises that he occupies and uses safe and sanitary;

(2) Dispose of all rubbish, garbage, and other waste in a clean, safe, and sanitary manner;

(3) Keep all plumbing fixtures in the dwelling unit or used by him as clean as their condition permits; and

(4) Use and operate all electrical and plumbing fixtures properly.

(Ordained by Ord. No. 327-2004, eff. Nov. 5, 2004)

Sec. 872-5. Minimum Contents of Residential Lease Option Contract; Formalities.

(a) The lease portion of the Residential Lease Option Contract shall conform to Chapter 5321 of the Ohio Revised Code.

(b) In addition to the landlord duties and tenant duties prescribed in this Chapter, and Chapter 871 of the Cincinnati Municipal Code, every Residential Lease Option Contract shall be executed in duplicate, and a copy of the contract shall be provided to the landlord and the tenant.

(1) The words "THIS IS NOT A CONTRACT TO BUY. THIS CONTRACT GIVES YOU THE RIGHT TO BUY THE PROPERTY DESCRIBED IN IT. YOU WILL NOT OWN THE PROPERTY UNTIL YOU FULFILL THE TERMS OF THIS CONTRACT AND FIND FINANCING TO PAY THE PURCHASE PRICE IN FULL." shall be printed in bold face type, all caps, and be no smaller than 14 pt. font; both on the top of the first page of any contract setting forth the terms of the Option to Purchase and again directly above the tenant's signature on the same contract.

(2) The following statements shall be printed clearly and conspicuously in bold face type, in the same size type used for the text of the contract and in close proximity to the statement of the amount of the option fee:

(a) "The tenant is renting this property and has all the rights enjoyed by any other residential tenant in the City of Cincinnati;

(b) In addition, the tenant has paid a fee of $_____ (the amount of the option fee) for the right to purchase the property located at _____ (street address of the rental property), Cincinnati, Ohio _____ (zip code of the property);

(c) If the tenant does not pay the monthly rent or violates other terms of the lease, the tenant may be evicted and lose their option fee."

(c) The Residential Lease Option Contract shall also contain at least the following provisions:

(1) The full names and then current mailing addresses of all the parties to the contract;

(2) The date when the contract was signed by each party;

(3) A legal description of the property;

(4) The amount of tenant's monthly rent;

(5) A statement outlining which, if any, expenses of closing and sale will be paid by the landlord and which, if any, will be paid by the tenant;

(6) The price at which the parties have agreed that the tenant may purchase the property (also include any adjustments that may be made to the purchase price in dollar amounts and under what circumstances those adjustments will be made);

(7) The amount, if any, of the tenant's monthly rent which is to be applied toward the purchase price;

(8) The period of time during which the tenant may exercise his right to buy the property;

(9) A statement of any encumbrances known or that could be reasonably ascertained against the property;

(10) A statement requiring the landlord to deliver a general warranty deed on completion of the contract, or the best deed that is available when the landlord is legally unable to deliver a general warranty deed;

(11) A provision that the landlord provide evidence of title at closing (upon exercise of option);

(12) A provision that the landlord provide a description of the landlord's ownership interest in the property and specify where documentation showing the landlord's ownership interest is located;

(13) A statement of any pending order of any public agency against the property;

(14) A statement that any and all liens and mortgages against the property shall be removed by the landlord at the time of the closing, excepting and specifying those to be assumed by the tenant;

(15) A statement that, prior to the execution of the Residential Lease Option Contract, the tenant has received and reviewed the City of Cincinnati's Mandatory Lease Option Pamphlet, explaining the rights and obligations of the tenant and the landlord under a Residential Lease Option Contract;

(16) A statement that the tenant has received, reviewed, and signed, prior to the execution of the option agreement, a completed copy of the State of Ohio Property disclosure form for residential real property transfers;

(17) A statement that upon demand, but no more than twice in each 12 month period, the landlord will provide within ten days a reconciliation of:

(a) The tenant's purchase price as of the date of the statement;

(b) Any calculations used to reach that price, showing all credits toward the purchase price and all additions to it; and

(c) A statement that this reconciliation shall either be delivered in person, with the tenant signing a copy of the statement as evidence of receipt, or by registered mail to the property address, with the return receipt serving as evidence of receipt.

(Ordained by Ord. No. 327-2004, eff. Nov. 5, 2004)

Sec. 872-7. Option Fee Statement Requirements; Maximum Option Fee.

(1) The Residential Lease Option Contract shall also contain the amount of the option fee, including a statement as to what portion, if any, of the option fee will be credited against the purchase price upon successful execution of the option to purchase by the tenant; and the following statement printed clearly and conspicuously in bold face type, all caps, and be no smaller than 14 pt. font: THIS OPTION FEE IS NOT A SECURITY DEPOSIT, AND MAY NOT BE REFUNDABLE IF YOU DO NOT BUY THE PROPERTY FOR ANY REASON;

(2) The maximum amount a landlord may collect at the execution of the Residential Lease Option Contract for the option fee shall not exceed 1½ times the rent the first year and shall not exceed 1½ times the rent, in subsequent years. The option fee shall not exceed four times the monthly rent during the entire term of the Residential Lease Option Contract.
(Ordained by Ord. No. 327-2004, eff. Nov. 5, 2004)

Sec. 872-9. Statements Required to be Furnished to Tenant; Record to be Maintained by the Landlord.

(1) Prior to the execution of a Residential Lease Option Contract, the landlord shall furnish to the tenant the following:

(a) A copy of the City of Cincinnati's Mandatory Lease Option Pamphlet, explaining the rights and obligations of the tenant and the landlord under a Residential Lease Option Contract.

(b) A completed copy of the State of Ohio Property disclosure form for residential real property transfers as required by Section 5302.30 of the Ohio Revised Code.

(2) Upon execution of a Residential Lease Option Contract, the landlord shall furnish to the tenant the following:

(a) A copy of the Residential Lease Option Contract signed by both the landlord and the tenant;

(b) A completed copy of the State of Ohio Property disclosure form for residential real property transfers signed by both the landlord and the tenant;

(c) Landlord's failure to provider an executed copy of the State of Ohio Property disclosure form for residential real property transfers shall entitle tenant to all remedies outlines in Section 5302.30 of the Ohio Revised Code;

(d) A copy of a written receipt, executed and dated by each tenant under a Residential Lease Option Contract, stating that the tenant has received and reviewed the Mandatory Lease Option Pamphlet. In addition, the landlord shall maintain the original of this receipt during the period that the Residential Lease Option Contract is in effect;

(e) Landlord's failure to provide the City of Cincinnati's Mandatory Lease Option Pamphlet to the tenant shall entitle the tenant to cancel the Option Agreement and, if so canceled, receive a refund of the option fee paid upon execution of the Residential Lease Option Contract;

(f) Any and all other documents required by federal, state, or city law to complete a residential lease.
(Ordained by Ord. No. 327-2004, eff. Nov. 5, 2004)

Sec. 872-11. Property Disclosure Form for Residential Real Property Transfers.

(a) When Property Disclosure Form is Applicable: This section applies to any transfer of residential real property that occurs on or after October 1, 2004, by residential lease option contract. For purposes of this section, a transfer occurs when the initial contract for transfer is executed, regardless of when legal title is transferred, and references in this section to transfer offers and transfer agreements refer to offers and agreements in respect of the initial contract for transfer.

Except as provided in division (D) of this section, every person who intends to enter into a residential lease option contract and/or transfer any residential real property on or

after October 1, 2004, by residential lease option contract shall complete all applicable items in a property disclosure form required by Section 5302.30 of the Ohio Revised Code and shall deliver in accordance with the requirements of Section 5302.30 of the Ohio Revised Code. Additionally, a signed and dated copy of the completed form shall be delivered to each prospective tenant or his agent as soon as is practicable, according to the requirements of Section 5302.30 of the Ohio Revised Code.

(b) Property Disclosure Form Contents: Residential Lease Option Contracts shall include a Residential Property Disclosure Form. The Residential Property Disclosure Form (the "form") shall be the State of Ohio Department of Commerce, Residential Property Disclosure Form (Form OAC 1301:1-4-10), required pursuant to Section 5302.30 of the Ohio Revised Code and Rule 1301:1-4-10 of the Ohio Administrative Code.

Generally, this form is designed to disclose material matters relating to the physical condition of the property to be transferred, including, but not limited to, the source of water supply to the property; the nature of the sewer system serving the property; the condition of the structure of the property, including the roof, foundation, walls, and floors; the presence of hazardous materials or substances, including lead-based paint, asbestos, urea-formaldehyde foam insulation, and radon gas; and any material defects in the property that are within the actual knowledge of the landlord.

(c) The form shall be governed by Section 5302.30 of the Ohio Revised Code. All requirements under Section 5302.30 of the Ohio Revised Code must be complied with as part of a Residential Lease Option Contract.
(Ordained by Ord. No. 327-2004, eff. Nov. 5, 2004)

Sec. 872-13. Enforcement by Tenant.

Upon the failure of any landlord to substantially comply with Sections 872-5, 872-7, 872-9, or 872-11 of this Chapter, the landlord shall be liable for damages in favor of the tenant in an amount of not less than Ninety Dollars ($90.00) and not more than Five Hundred Dollars ($500.00) for each violation, together with reasonable attorney fees. With regard to violations of Section 872-7, a court may order the contract to be voided and the option returned to tenant and also order actual damages incurred by the tenant, where proved to the court's satisfaction.

Upon the failure of any landlord to comply with any other portions of this Chapter, the tenant may enforce such provisions in a municipal court, county court, or court of common pleas. Upon the determination of the court that the landlord has failed to comply with these provisions, the court shall grant appropriate relief.
(Ordained by Ord. No. 327-2004, eff. Nov. 5, 2004)

Chapter 873

MISCELLANEOUS BUSINESS REGULATIONS

Sec. 873-1. Firewood; Definition.
Sec. 873-3. Firewood; Definition of Cord.
Sec. 873-5. Firewood; Sale by the Cord.
Sec. 873-7. Firewood; Sale of Packaged Wood.
Sec. 873-9. Firewood; Use of Terms Prohibited.
Sec. 873-11. Firewood; Delivery Ticket on Sales Invoice.
Sec. 873-21. Insulation; Definitions.
Sec. 873-21-C. Consumer.
Sec. 873-21-M. Manufacturer.
Sec. 873-21-S. Supplier.
Sec. 873-23. Insulation; Cellulose or Wood Fiber.
Sec. 873-25. Repealed.
Sec. 873-27. Insulation; Mineral Fiber.
Sec. 873-29. Insulation; Contract for Sale.
Sec. 873-31. Insulation; Tender of Packaging.
Sec. 873-33. Operating a Moving Business with Unsatisfied Judgement Prohibited.
Sec. 873-99. Penalty for Violation of Firewood Provisions.
Sec. 873-99-A. Penalty for Violation of Insulation Provisions.

Sec. 873-1. Firewood; Definition.

"Firewood" shall mean all wood, natural or processed, sold or offered for sale as fuel.
(C.M.C. 873-1; ordained by Ord. No. 50-1978, eff. Feb. 8, 1978)

Sec. 873-3. Firewood; Definition of Cord.

"Cord" shall mean that amount of firewood which when stacked in a compact manner with the individual pieces parallel to and touching each other occupies 128 cubic feet.
(C.M.C. 873-3; ordained by Ord. No. 50-1978, eff. Feb. 8, 1978)

Sec. 873-5. Firewood; Sale by the Cord.

No person, firm, or corporation shall advertise, sell, or offer for sale firewood, except packaged firewood, in any quantity other than a cord or fractional parts of a cord.
(C.M.C. 873-5; ordained by Ord. No. 50-1978, eff. Feb. 8, 1978)

Sec. 873-7. Firewood; Sale of Packaged Wood.

Firewood which has been packaged for sale shall display on its face the quantity of the package in cubic feet and fractional parts of cubic feet. Packages of firewood containing six or less logs may be sold by net weight or count. Packages of kindling may be sold by weight in packages of not more than 20 pounds.
(C.M.C. 873-7; ordained by Ord. No. 50-1978, eff. Feb. 8, 1978)

Sec. 873-9. Firewood; Use of Terms Prohibited.

No person, firm, or corporation shall advertise, sell, or offer for sale firewood using the terms face cord, rack, rick, pile, truckload, or trunkload.
(C.M.C. 873-9; ordained by Ord. No. 50-1978, eff. Feb. 8, 1978)

Sec. 873-11. Firewood; Delivery Ticket on Sales Invoice.

Every sale of firewood by the cord or fractional part of a cord shall be made by delivery ticket containing the following information:

(a) The name and address of the vendor;

(b) The name and address of the vendee;

(c) The date delivered;

(d) The quantity delivered and the quantity upon which the price is based, if it differs from the delivered quantity;

(e) The price of the amount delivered;

(f) The identity of the species of the wood delivered by percentage within 10 percent accuracy of the quantity delivered.

(C.M.C. 873-11; ordained by Ord. No. 50-1978, eff. Feb. 8, 1978)

Sec. 873-21. Insulation; Definitions.

For the purposes of this ordinance, the words and phrases defined in this section shall have the meanings herein respectively ascribed to them, unless a different meaning is clearly indicated by the context.
(C.M.C. 873-21; ordained by Ord. No. 117-1978, eff. Apr. 28, 1978)

Sec. 873-21-C. Consumer.

"Consumer" shall mean a person who engages in a consumer transaction with a supplier.
(C.M.C. 873-21-A; ordained by Ord. No. 117-1978, eff. Apr. 28, 1978; renumbered to C.M.C. 873-21-C, eff. Sept. 6, 1979)

Sec. 873-21-M. Manufacturer.

"Manufacturer" shall mean a person, firm or corporation who by labor, art or skill, transforms raw material into a finished product or article of trade.
(C.M.C. 873-21-C; ordained by Ord. No. 117-1978, eff. Apr. 28, 1978; renumbered to C.M.C. 873-21-M, eff. Sept. 6, 1979)

Sec. 873-21-S. Supplier.

"Supplier" shall mean a seller, lessor, assignor, franchisor, or other person engaged in the business of effecting or soliciting consumer transactions, whether or not such person deals directly with the consumer.
(C.M.C. 873-21-B; ordained by Ord. No. 117-1978, eff. Apr. 28, 1978; renumbered to C.M.C. 873-21-S, eff. Sept. 6, 1979)

Sec. 873-23. Insulation; Cellulose or Wood Fiber.

No supplier or manufacturer shall advertise, offer for sale, sell, or cause to be installed in any residential structure, cellulose or wood fiber insulating material which is not, at the time of sale or installation:

(a) Packaged and bearing a label stating that the material has been tested in accordance with and meets the requirements of United States General Services Administration (GSA) specification HH-1-515C;

(b) Non-corrosive to all metals, when tested in accordance with GSA specification HH-1-515C;

(c) Fire resistant and flame retardant, when tested in accordance with GSA specification HH-1-515C.

(C.M.C. 873-23; ordained by Ord. No. 117-1978, eff. Apr. 28, 1978)

Sec. 873-25. Repealed.

(C.M.C. 873-25; ordained by Ord. No. 117-1978, eff. Apr. 28, 1978; r. Ord. No. 261-1981, eff. July 1, 1978)

Sec. 873-27. Insulation; Mineral Fiber.

No supplier or manufacturer shall advertise, offer for sale, sell, or cause to be installed in any residential structure mineral fiber insulating material which is not, at the time of sale or installation:

(a) Packaged and bearing a label stating that the material has been tested in accordance with and meets the requirements of GSA specification HH-I-1030 or HH-I-521 E;

(b) Flame retardant, with a flame spread of 25 or less, when tested in accordance with HH-I-1030 or HH-I-521 E.

(C.M.C. 873-27; ordained by Ord. No. 117-1978, eff. Apr. 28, 1978)

Sec. 873-29. Insulation; Contract for Sale.

No supplier shall engage in a transaction with a consumer for the purpose of installing insulation in the consumer's residence, and fail to provide a written contract containing the following information:

(a) The type and brand of insulation to be installed;

(b) The "R" value to be attained in each area of the building to be insulated;

(c) The area (in square feet) that each package of insulation will cover to attain the stated "R" value and the total number of packages to be installed, if the insulation is prepackaged;

(d) The thickness of insulation to be installed in each area of the residence;

(e) The true, legal name of the supplier and the supplier's address;

(f) A statement that all insulation will be installed in accordance with Title XI of the Cincinnati Municipal Code.

(C.M.C. 873-29; ordained by Ord. No. 117-1978, eff. Apr. 28, 1978)

Sec. 873-31. Insulation; Tender of Packaging.

No supplier shall install dry insulation material and fail to tender to the consumer all empty packages which had contained material used in the installation.
(C.M.C. 873-31; ordained by Ord. No. 117-1978, eff. Apr. 28, 1978)

Sec. 873-33. Operating a Moving Business With Unsatisfied Judgement Prohibited.

No moving business shall transport the household goods of another from and to any place exclusively within the city of Cincinnati, or from and to any place within the city of Cincinnati and from or to any place in a municipality immediately contiguous to the city of Cincinnati if such moving business has an unsatisfied judgment against it.

For purposes of this section a person is deemed to have an unsatisfied judgment against him, if there is an unsatisfied judgment against any partnership, association, corporation, or other business entity and that person was a partner, officer, or director of the entity when the acts leading to the unsatisfied judgment occurred.

Definitions

"Moving business" means any person, partnership, association, or corporation engaged in moving the house hold goods of another from one residence to another residence with the intent of making a profit.

"Unsatisfied judgment" means an unpaid, final, and unappealable order of any court in the United States against a moving business to pay a consumer money as a result of the moving business's action, error, or omission in the course of operating a moving business

A violation of this section shall constitute a misdemeanor of the fourth degree.
(C.M.C. 873-33; ordained by Ord. No. 395-1999, eff. Nov. 5, 1999)

Sec. 873-99. Penalty for Violation of Firewood Provisions.

Whoever violates any provision of Sections 873-1, 873-3, 873-5, 873-7, 873-9 or 873-11 shall be fined not more than $100.
(C.M.C. 873-99; ordained by Ord. No. 50-1978, eff. Feb. 8, 1978; a. Ord. No. 117-1978, eff. Apr. 28, 1978)

Sec. 873-99-A. Penalty for Violation of Insulation Provisions.

Whoever violates the provisions of Sections 873-23, 873-26, 873-27, 873-29 or 873-31 shall be guilty of a deceptive or unfair sales act or practice in connection with a consumer transaction and shall be subject to the penalties provided in Section 826-99 of the Cincinnati Municipal Code.
(C.M.C. 873-99-A; ordained by Ord. No. 117-1978, eff. Apr. 28, 1978)

Chapter 874

RESIDENTIAL RENTAL REGISTRATION

Sec. 874-1. Definitions.
Sec. 874-3. Scope.
Sec. 874-5. General Obligations of Owners and Persons in Control of Residential Rental Properties.
Sec. 874-7. Penalties.
Sec. 874-9. Severability.
Sec. 874-11. Appeals.
Sec. 874-13. Effective Date.

Sec. 874-1. Definitions.

For the purposes of this chapter, words and phrases shall have their ordinary meaning unless defined herein.

(a) "Director of Buildings and Inspections or Director" shall be construed to include authorized employees appointed to perform specific duties of the Department of Buildings and Inspections in the enforcement of the provisions of the Ohio Building Code and the Cincinnati Building Code.

(b) "Person in control" shall mean:

(1) The person, persons, or entity holding title to the freehold estate of the premises; or

(2) Any individual designated by the owner of a Residential Rental Property as having the duty, responsibility, and authority to operate, maintain, and manage the Residential Rental Property; or

(3) A mortgagee or vendee in possession; or

(4) A receiver; or

(5) An executor; or

(6) A trustee; or

(7) Any person, public or private entity, lessee or holder of a lesser estate in the premises, and/or its duly authorized agent(s), with the authority to bring a building or premises into compliance with the provisions of this code, including, but not limited to, any mortgagee that has filed an action in foreclosure on the particular premises at issue, based on breach or default of a mortgage agreement, until title to the premises is transferred to a third party.

(c) "Property" shall mean real property located in the city of Cincinnati improved by virtue of a dwelling having been erected on the real property.

(d) "Residential Rental Property" shall have the same meaning as Ohio Revised Code 5323.01(E). In addition, the Director may consider the following criteria in identifying whether real property constitutes residential rental property for purposes of this Chapter:

(1) The property does not receive an owner occupancy tax credit based on the records of the Hamilton County Auditor;

(2) The property contains a dwelling unit registered as a rental property with the Hamilton County Auditor pursuant to Ohio Revised Code Chapter 5323;

(3) The property is owned by a corporate entity and not individually;

(4) For single-family homes, the water records kept by greater Cincinnati water works reflect third-party billing;

(5) The Hamilton County Auditor has applied any of the following land use codes to the property:

CATEGORY	DESCRIPTION	DEPT. OF TAX EQUALIZATION	HAMILTON COUNTY
COMMERCIAL	APARTMENTS—4 TO 19 UNITS	401	401
COMMERCIAL	APARTMENTS—20 TO 39 UNITS	402	402
COMMERCIAL	APARTMENTS—40+ UNITS	403	403

CATEGORY	DESCRIPTION	DEPT. OF TAX EQUALIZATION	HAMILTON COUNTY
COMMERCIAL	RETAIL—APARTMENTS OVER		404
COMMERCIAL	OFFICE—APARTMENTS OVER		431
RESIDENTIAL	TWO FAMILY DWELLINGS	520	520
RESIDENTIAL	THREE FAMILY DWELLINGS	530	530
RESIDENTIAL	LOW INCOME HOUSE TAX CREDIT (residential)	569	569
RESIDENTIAL	OTHER STRUCTURES	599	599

(6) The property has been registered as a residential rental property with the Hamilton County Auditor as required by Ohio Revised Code 5323.02;

(7) Other reasonable indicators that real property has been rented to tenants for residential purposes, for example, the existence of a lease agreement.

(Ordained by Ord. 406-2019, § 1, eff. April 30, 2020)

Sec. 874-3. Scope.

(a) The provisions of this Chapter apply to all Residential Rental Properties.

(b) Real property or a portion thereof used exclusively for the following purposes shall be exempt from the requirements of this section:

(1) Hotels or motels;

(2) College or university dormitories that are state-owned and are inspected for code compliance under other procedures or licensure;

(3) Properties that are currently unoccupied because they have been ordered vacated by the director;

(4) Properties that are available to the public for rental for a period of thirty days or less;

(5) Non-residential purposes when separate and distinct from a portion used as a residential rental property, e.g. first floor retail in a multi-story mixed-use apartment building.

(c) In the event of a dispute over whether a property is subject to the application and inspection provisions of this ordinance, owners may submit evidence to the Director demonstrating that their property is not "Residential Rental Property" for purposes of this section.

(Ordained by Ord. 406-2019, § 1, eff. April 30, 2020)

Sec. 874-5. General Obligations of Owners and Persons in Control of Residential Rental Properties.

(a) The owner or person in control of a Residential Rental Property must file a Residential Rental Property registration with the director within 60 calendar days of the effective date of this ordinance or within 60 calendar days of assuming ownership, whichever is later.

(b) All Residential Rental Property registrations shall be made on forms and in the manner prescribed by the director, and shall include the following information:

(1) The name, address, and telephone number of the owner;

(2) If the Residential Rental Property is owned by a trust, business trust, estate, partnership, limited partnership, limited liability company, association, corporation, or any other business entity, the name, address, and telephone number of the following:

a. A trustee, in the case of a trust or business trust;

b. The executor or administrator, in the case of an estate;

c. A general partner, in the case of a partnership or a limited partnership;

d. A member, manager, or officer, in the case of a limited liability company;

e. An associate, in the case of an association;

f. An officer, in the case of a corporation;

g. A member, manager, or officer, in the case of any other business entity.

(3) The name, address, and telephone number for any and all persons in control of the Residential Rental Property, including, but not limited to, a professional property management company or on-site maintenance personnel, who have been designated by the owner as the party responsible for responding to emergency or maintenance issues for the Residential Rental Property and who can be reached 24 hours a day, 7 days a week, 365 days a year. At least one person in control must reside within 100 miles of the registered Residential Rental Property.

(4) The street address and permanent parcel number of the residential rental property.

(5) The monthly rent charged and the number and size of each rental unit located in each residential rental property, including the number of bedrooms, bathrooms, and approximate square footage of the unit.

(c) The owner and any designated person in control of a registered Residential Rental Property have a continuing obligation to notify the director in writing of any changes, including, but not limited to:

(1) Any change in information on the Residential Rental Property registration form.

(2) Any change in ownership.

(3) Any change in use of the Residential Rental Property, including, but not limited, to the property becoming and remaining vacant for a period of sixty days or more.

(d) All Residential Rental Registrations shall be accompanied by the applicable fee necessary to recover the cost and expense of the administering the registry, which fee shall not exceed $1.00 per registered rental unit.
(Ordained by Ord. 406-2019, § 1, eff. April 30, 2020)

Sec. 874-7. Penalties.

(a) Failure to register a Residential Rental Property shall constitute a Class D civil offense. Each additional day that the property remains unregistered after receiving under CMC Section 1501-13, "Notice of Civil Offense and Civil Fine; Procedures," shall constitute a separate, subsequent Class E civil offense.

(b) Failure to maintain accurate information once having registered a Residential Rental Property shall constitute a Class A civil offense. Each additional day that the information remains inaccurate after receiving under CMC Section 1501-13, shall constitute a separate, subsequent Class B civil offense.
(Ordained by Ord. 406-2019, § 1, eff. April 30, 2020)

Sec. 874-9. Severability.

If any provision or section of this chapter or the enforcement of any such provision or section is held to be invalid or unenforceable by a court of competent jurisdiction, such invalidity or unenforceability shall not affect or render invalid or unenforceable any other provision or section of this chapter. To this end, each of the provisions and sections of this chapter are severable.
(Ordained by Ord. 406-2019, § 1, eff. April 30, 2020)

Sec. 874-11. Appeals.

Any person who has a bona fide controversy with the interpretation, application, or enforcement of this Chapter may submit a written petition for reconsideration to the Director under CBC Section 1101-80, "Director's Actions."
(Ordained by Ord. 406-2019, § 1, eff. April 30, 2020)

Sec. 874-13. Effective Date.

This Chapter shall take effect on September 1, 2020.
(Ordained by Ord. 406-2019, § 1, eff. April 30, 2020; a Emer. Ord. No. 0099-2020, §§ 1, 2, eff. April 1, 2020)

Chapter 875

STAINED AND BEVELED GLASS

Sec. 875-1. Definitions.
Sec. 875-3. Report of Acquisition or Purchase of Stained or Beveled Glass.
Sec. 875-5. Alteration or Sale of Stained or Beveled Glass.
Sec. 875-7. Stained and Beveled Glass in Place.
Sec. 875-99. Penalties.

Sec. 875-1. Definitions.

For the purpose of this chapter the words antique dealer, junk dealer and second-hand dealer shall have the meanings assigned to them in Chapters 809, 811 and 843 of the Cincinnati Municipal Code.
(C.M.C. 875-1; ordained by Ord. No. 40-1979, eff. Mar. 2, 1979; a. Ord. No. 0028-2022, §§ 5, 6, eff. February 9, 2022)

Sec. 875-3. Report of Acquisition or Purchase of Stained or Beveled Glass.

Every antique dealer, junk dealer, and second-hand dealer shall make a daily report to the chief of police of all stained or beveled glass bought or acquired by such person during the day for sale. The report shall be on forms approved by the police division and shall contain a full and complete description of all such stained and beveled glass including all marks of identification, colors, materials, size, name, and approximate date if known of each item, the date of the purchase or acquisition of the item and the name, address, birthdate, social security number and physical description (sex/race/height/weight/complexion) of the person from whom such item was acquired. The antique dealer, junk dealer or second-hand dealer shall further obtain written proof of identification and the signature of the seller on the required form. A copy of these forms shall be retained for one year. Upon the demand of the chief of police or police officer deputed by the chief of police, the antique dealer, junk dealer or second-hand dealer shall produce and show any reported item in such person's possession.
(C.M.C. 875-3; ordained by Ord. No. 40-1979, eff. Mar. 2, 1979; a. Ord. No. 0028-2022, §§ 5, 6, eff. February 9, 2022)

Sec. 875-5. Alteration or Sale of Stained or Beveled Glass.

No antique dealer, junk dealer, or second-hand dealer shall change, alter, sell, or voluntarily release possession of any stained or beveled glass acquired or held by such person until the expiration of 168 hours after the delivery to the chief of police of a copy of the report as required by Section 875-3 of the Cincinnati Municipal Code, except by the permission of the police department.
(C.M.C. 875-5; ordained by Ord. No. 40-1979, eff. Mar. 2, 1979; a. Ord. No. 0028-2022, §§ 5, 6, eff. February 9, 2022)

Sec. 875-7. Stained and Beveled Glass in Place.

Notwithstanding Sections 875-3 and 875-5 of the Cincinnati Municipal Code, antique dealers, junk dealers, and second hand dealers may acquire and sell stained and beveled glass without filing the report or waiting the prescribed period required by such sections when the glass has been removed by the dealer from the place of permanent or original installation. In this case the antique dealer, junk dealer or second-hand dealer shall make a record of the name and address of the owner or seller of the stained or beveled glass. If the seller is not the owner, the antique dealer, junk dealer, or second-hand dealer shall require written permission from the owner before the glass may be acquired. The name, address, and written permission when required shall be kept on record by the antique dealer, junk dealer, or second-hand dealer and shall be produced for inspection by the police upon request.
(C.M.C. 875-7; ordained by Ord. No. 40-1979, eff. Mar. 2, 1979; a. Ord. No. 0028-2022, §§ 5, 6, eff. February 9, 2022)

Sec. 875-99. Penalties.

Whoever violates Sections 875-3, 875-5 or 875-7 directly, or indirectly by knowingly accepting false information, shall be fined not more than $300, and it shall be the duty of the city treasurer, upon the second convic-

tion of any person, firm or corporation to revoke the license granted under any section of the Cincinnati Municipal Code.
(C.M.C. 875-99; ordained by Ord. No. 40-1979, eff. Mar. 2, 1979)

Chapter 879

DRUG PARAPHERNALIA

Sec. 879-1. Drug Paraphernalia.
Sec. 879-3. Controlled Substance.
Sec. 879-5. Application of Definition of Drug Paraphernalia.
Sec. 879-7. Possession, Manufacture or Sale of Drug Paraphernalia.
Sec. 879-9. Sale of Drug Paraphernalia to Minors.
Sec. 879-99. Penalties.

Sec. 879-1. Drug Paraphernalia.

"Drug paraphernalia" shall mean all equipment, products and materials of any kind which are used, intended for use, or designed for use, in planting, manufacturing, compounding, converting, reproducing, processing, preparing, testing, containing, concealing, injecting, ingesting, inhaling, or otherwise introducing into the human body a controlled substance in violation of this chapter. It includes, but is not limited to:

(1) Kits used, intended for use, or designed for use in planting, propagating, cultivating, growing or harvesting of any species of plant which is a controlled substance or from which a controlled substance can be derived;

(2) Kits used, intended for use, or designed for use in manufacturing, compounding, converting, producing, processing, or preparing controlled substances;

(3) Isomerization devices used, intended for use, or designed for use in increasing the potency of any species of plant which is a controlled substance;

(4) Testing equipment used, intended for use, or designed for use in identifying, or in analyzing the strength, effectiveness or purity of controlled substances;

(5) Scales and balances used, intended for use, or designed for use in weighing or measuring controlled substances;

(6) Diluents and adulterants, such as quinine hydrochloride, mannitol, mannite, dextrose and lactose, used, intended for use, or designed for use in cutting controlled substances;

(7) Separation gins and sifters used, intended for use, or designed for use in removing twigs and seeds from, or in otherwise cleaning or refining, marihuana;

(8) Blenders, bowls, containers, spoons and mixing devices used, intended for use, or designed for use in compounding controlled substances;

(9) Capsules, balloons, envelopes and other containers used, intended for use, or designed for use in packaging small quantities of controlled substances;

(10) Containers and other objects used, intended for use, or designed for use in storing or concealing controlled substances;

(11) Hypodermic syringes, needles and other objects used, tended for use, or designed for use in parenterally injecting controlled substances into the human body;

(12) Objects used, intended for use, or designed for use in ingesting, inhaling, or otherwise introducing marihuana, cocaine, hashish, or hashish oil or other controlled substance into the human body, such as:

(i) Metal, wooden, acrylic, glass, stone, plastic, or ceramic pipes with or without screens, permanent screens, hashish heads, or punctured metal bowls;

(ii) Water pipes;

(iii) Carburetion tubes and devices;

(iv) Smoking and carburetion masks;

(v) Roach clips; meaning objects used to hold burning material, such as a marihuana cigarette, that has become too small or too short to be held in the hand;

(vi) Miniature cocaine spoons, and cocaine vials;

(vii) Chamber pipes;

(viii) Carburetor pipes;

(ix) Electric pipes;

(x) Air-driven pipes;

(xi) Chillums;

(xii) Bongs;

(xiii) Ice pipes or chillers.

(Ordained by Ord. No. 368-1986, eff. Oct. 1, 1986)

Sec. 879-3. Controlled Substance.

"Controlled substance" shall mean a drug, compound, mixture, preparation, or substance included in controlled substance Schedules I, II, III, IV, or V, which have been established pursuant to Section 3719.41 of the Revised Code, as amended, pursuant to Section 3719.43 or 3719.44 of the Revised Code.
(Ordained by Ord. No. 368-1986, eff. Oct. 1, 1986)

Sec. 879-5. Application of Definition of Drug Paraphernalia.

In determining whether an object is "drug paraphernalia," a court or other authority should consider, in addition to all other logically relevant factors, the following:

(1) Statements by a owner or by anyone in control of the object concerning its use;

(2) Prior convictions, if any, of an owner, or of anyone in control of the object, under any city, state, or federal law relating to any controlled substance;

(3) The proximity of the object, in time and space, to a direct violation of this chapter;

(4) The proximity of the object to controlled substances;

(5) The existence of any residue of controlled substances on the object;

(6) Direct or circumstantial evidence of the intent of a owner, or of anyone in control of the object to deliver it to persons whom he knows, or should reasonably know, intend to use the object to facilitate a violation of this chapter; the innocence of an owner or of anyone in control of the object, as to a direct violation of this chapter shall not prevent a finding that the object is intended for use, or designed for use as "drug paraphernalia";

(7) Instructions, oral or written, provided with the object concerning its use;

(8) Descriptive materials accompanying the object which explain or depict its use;

(9) National and local advertising concerning its use;

(10) The manner in which the object is displayed for sale;

(11) Direct or circumstantial evidence of the ratio of sales of the object(s) to the total sales of the business enterprise;

(12) The existence and scope of legitimate uses for the object in the community;

(13) Expert testimony concerning its use.
(Ordained by Ord. No. 368-1986. eff. Oct. 1, 1986)

Sec. 879-7. Possession, Manufacture or Sale of Drug Paraphernalia.

No person shall use, or possess with intent to use, drug paraphernalia to plant, propagate, cultivate, grow, harvest, manufacture, compound, convert, produce, process, prepare, test, analyze, pack, repack, store, contain, conceal, inject, ingest, inhale, or otherwise introduce into the human body a controlled substance.

No person shall deliver, sell, possess with intent to deliver or sell, or manufacture with

intent to deliver or sell, drug paraphernalia, knowing that it will be used to plant, propagate, cultivate, grow, harvest, manufacture, compound, convert, produce, process, prepare, test, analyze, pack, repack, store, contain, conceal, inject, ingest, inhale, or otherwise introduce into the human body a controlled substance.

No person shall place in any newspaper, magazine, handbill, or other publication any advertisement, knowing that the purpose of the advertisement, in whole or in part, is to promote the sale of objects designed or intended for use as drug paraphernalia.

This section does not apply to manufacturers, practitioners, pharmacists, owners of pharmacies and other persons whose conduct is in accordance with Chapters 3719, 3796, 4715, 4729, 4731 and 4741 of the Revised Code. This section shall not be construed to prohibit any possession, manufacture, or lawful use of hypodermic syringes.
(Ordained by Ord. No. 368-1986, eff. Oct. 1, 1986; a. Ord. No. 134-2017, § 1, eff. July 7, 2017)

Sec. 879-9. Sale of Drug Paraphernalia to Minors.

No person shall sell, offer to sell, give, deliver or offer to deliver any item of drug paraphernalia in violation of Section 879-7 to any person under 18 years of age where such person knows or should have known in the exercise of reasonable care the age of the person to whom the drug paraphernalia is sold, given, or delivered.
(Ordained by Ord. No. 368-1986, eff. Oct. 1, 1986)

Sec. 879-99. Penalties.

Whoever violates Section 879-7 of this chapter shall be guilty of a misdemeanor of the second degree.

Whoever violates Section 879-9 of this chapter shall be guilty of a misdemeanor of the first degree.

Whoever violates any provision of this chapter, having previously been convicted of a violation of any provision of this chapter, shall be guilty of a misdemeanor of the first degree.
(Ordained by Ord. No. 368-1986, eff. Oct. 1, 1986)

Chapter 881

FACILITIES FOR PUBLIC ASSEMBLY (REPEALED)*

*__Editor's note—__Repealed by Ord. No. 416-2024, § 3, eff. December 11, 2024.

Chapter 883

PUBLIC ASSEMBLY PERMIT

Sec. 883-1. Definitions.
Sec. 883-1-E. Event.
Sec. 883-1-F. Facility for Public Assembly; Facility.
Sec. 883-1-F1. Facility Manager.
Sec. 883-1-P1. Person.
Sec. 883-3. Public Assembly Permit.
Sec. 883-5. Issuance or Denial of Permit.
Sec. 883-7. Revocation of Permit.
Sec. 883-9. Single Event and Series Permit Fees.
Sec. 883-11. Notice of Modifications.
Sec. 883-13. Rules and Regulations.
Sec. 883-15. Exemptions.
Sec. 883-17. Hearings.
Sec. 883-19. Appeal to the City Manager.
Sec. 883-21. Prohibitions.
Sec. 883-23. Penalties.

Sec. 883-1. Definitions.

For the purposes of this chapter, the words and phrases defined in the sections hereunder shall have the meaning therein respectively ascribed to them unless a different meaning is clearly indicated by the context.
(Ordained by Ord. No. 438-1980, eff. Oct. 29, 1980; reordained by Ord. No. 456-1980, eff. Nov. 5, 1980; a. Ord. No. 416-2024, § 1, eff. December 11, 2024)

Sec. 883-1-E. Event.

"Event" shall mean a live, videotaped, recorded, televised or transmitted speech, performance, presentation or gathering of persons, including, but not limited to, concerts, dramatic or dance presentations, variety shows, sports presentations, exhibitions or other performances, presentations or gatherings of people where the intent of the person attending can be construed to be the visual or auditory observation of persons, performers or objects and for which a separate admission is required regardless of whether tickets are issued, sold or required or whether a fee is charged.
(Ordained by Ord. No. 416-2024, § 1, eff. December 11, 2024)

Sec. 883-1-F. Facility for Public Assembly; Facility.

"Facility for public assembly" or "facility" shall mean a stadium, theatre, arena, concert hall or other place having a gathering of 1,800 persons or more which is in a wholly or partially enclosed area, whether indoors or outdoors, having limited access through a restricted number of entrances.
(Ordained by Ord. No. 416-2024, § 1, eff. December 11, 2024)

Sec. 883-1-F1. Facility Manager.

"Facility manager" shall mean a person who owns, operates, or manages a facility for public assembly.
(Ordained by Ord. No. 416-2024, § 1, eff. December 11, 2024)

Sec. 883-1-P1. Person.

"Person" shall mean the city of Cincinnati, any individual, corporation, firm, partnership, association, organization, university, school, or agent thereof, or any other group acting as a unit as well as individually, and shall also mean an executor, administrator, trustee, receiver, or other representative appointed according to law.
(Ordained by Ord. No. 416-2024, § 1, eff. December 11, 2024)

Sec. 883-3. Public Assembly Permit.

(a) No person shall operate or admit patrons to a facility for public assembly for an event without first obtaining a permit approved by the Cincinnati fire chief or the fire chief's designee.

(b) Before a permit is issued under this chapter, the facility manager of a permanent facility for public assembly shall make application on a form, including by electronic means, provided by the city manager 60 days prior to the date of the event. The facility manager of a facility or person responsible for a facility involving street events or other events requiring a special event permit, shall also make application as required by Cincinnati Municipal Code Chapter 765. The city manager may allow application within a shorter time upon a showing of special circumstances. The application shall include all information required by the rules and regulations provided for in Section 883-13 which shall include the following information and meet the following requirements:

(1) The name and location of the facility for public assembly at which the event is to be held;

(2) The type of activity or event;

(3) The name and description of the event and any acts within the event;

(4) The number of persons participating in the event and each act thereof;

(5) The number of support personnel, including stage hands, electricians, technicians and other persons whose activities support the staging of the event;

(6) The date and time of each event;

(7) The amount of time and time of day the doors will be open to admit patrons to the event, which time shall be in accordance with Section (c)(2)(iii) below. The number of doors shall comply with the Fire Code and the Building Code, and as required by any rules and regulations which may consider requiring one door per 1,000 patrons;

(8) An estimate of the duration of the event;

(9) The number of persons anticipated to attend the event;

(10) The name, address and telephone number of the promoter or sponsor of the event;

(11) The arrangements of seating for the event, including the location of the stage (A diagram of the arrangements including the stage shall be included with the application);

(12) The person or persons in charge of the event and each act of the event and the name of the facility representative who will be present at the facility during the event;

(13) City services or personnel to be used during the event;

(14) Additional plans for the event to protect the safety and welfare of patrons and the public;

(15) The respective responsibilities of the promoter, the operator of a facility, and persons performing or participating in the event for crowd management and the provision of a safe environment for patrons to the event and the public;

(16) Insurance coverage, per the city's regulations, including type of risk and amount, of promoter of an event, operator of the facility, performers and participants; the city of Cincinnati shall be named as an additional insured of any insurance policy for the event and a copy of the policy shall be attached to the application;

(17) The date on which ticket sales will commence;

(18) Such other information as may be required by regulations promulgated pursuant to the provisions of Section 883-13 of this chapter.

(c) Festival seating or general admission must be clearly indicated on the application. For festival seating or general admission seating, a Life Safety Evaluation will be required and shall include an assessment of the following conditions and related safety measures:

(1) Nature of events and the participants and attendees:

(i) The type of music or event;

(ii) The type of crowd including the anticipated age span of the crowd;

(iii) Require a written plan on the steps that will be taken to address aggressive behavior such as "Moshing" and "Body Surfing";

(iv) Performances may be interrupted upon orders of the commanding fire officer due to safety concerns;

(v) A written show stoppage procedure detailing the steps to be taken to stop the performance in an emergency;

(vi) Location of a formal command post including representation from fire, police, facility, and event manager. The facility and event manager shall ensure proper staffing to ensure stoppage of an event if needed;

(vii) The fire chief will determine the number of fire personnel required to assure public safety for any event, which may require a minimum of two life safety officers; and

(viii) Whether there is the removal of the fire alarm system or changes to the fire alarm systems.

(2) Access and egress movement, including crowd density problems:

(i) The number of tickets available for festival seating. All tickets for festival seating must be sold prior to the event;

(ii) Maximum occupancy for the festival seating area will be determined according to the criteria established by the National Fire Protection Association's Life Safety Code standards;

(iii) Doors must be prepared to open 2 hours prior to the start of the event and will open upon the command of the fire officer on the scene. All ushers and security personnel will be in place 2 and 1/2 hours prior to the start of the event. Doors shall not open less than 90 minutes prior to the publicized start of the event for a general admission or festival seating event, nor 60 minutes prior to the publicized start of the event for a reserved seating event, unless the time is otherwise determined by the fire chief, police chief or their designee;

(iv) The number of additional ushers and security personnel assigned specifically to the festival seating area;

(v) A procedure detailing the plan to stage and escort patrons into the festival seating area;

(vi) If only part of the event is for general or festival seating admission, then all floor/festival seating patrons will be required to wear a wrist band or, if permitted by the Cincinnati fire chief or a designee, electronic banding for tickets on electronic devices;

(vii) A written emergency plan in place addressing the control and evacuation of patrons from the festival seating area;

(viii) A description of the facility, including the number and locations of exits from the floor/festival seating area, including the width of the exits, the configuration of the facility and event, including aisle widths, and such other information as may be required by regulations promulgated pursuant to the provisions of Section 883-13 of this chapter.

(3) Medical emergencies:

(i) Refer to emergency procedure plan as required on current permit requirements;

(ii) A diagram of the ingress and egress maintained for emergency personnel.

(4) Fire hazards:

(i) Refer to emergency procedure plan as required on current permit requirements.

(5) Permanent and temporary structures:

(i) Diagram detailing the placement of barricades and exit doors as well as any queuing lines that may be needed. Such diagrams shall show the widths of all exits.

(6) Severe weather conditions:

(i) Refer to emergency procedure plan as required on current permit requirements.

(7) Earthquakes:

(i) Refer to emergency procedure plan as required on current permit requirements.

(8) Civil or other disturbances:

(9) Hazardous materials incidents within and near the facility:

(i) Refer to emergency procedure plan as required on current permit requirements.

(10) Relationships among facility management, event participants, emergency response agencies, and others having a role in the events accommodated in the facility.

(11) Such other information as may be required by regulations promulgated pursuant to the provisions of Section 883-13 of this chapter.

(12) This section shall not apply to high school athletic events, including club-sponsored athletic events; nor to religious events sponsored by bona fide religious organizations; nor to business expositions or exhibitions where the activity involved consists of the viewing of stationary exhibits by persons for whom seating is not available.

(Ordained by Ord. No. 438-1980, eff. Oct. 29, 1980; reordained by Ord. No. 456-1980, eff. Nov. 5, 1980; a. Ord. No. 514-1981, eff. Dec. 9, 1981; a. Ord. No. 223-1997, eff. Aug. 4, 1997; a. Ord. No. 266-2004, eff. Aug. 4, 2004; a. Ord. No. 416-2024, § 1, eff. December 11, 2024)

Sec. 883-5. Issuance or Denial of Permit.

(a) The Cincinnati fire chief or a designee shall grant or deny a public assembly permit for an event being held in a facility within 30 days of the date of a full and completed application. The Cincinnati fire chief or a designee shall grant or deny a public assembly permit for an event involving street events or other events requiring a special event permit in accordance with Chapter 765 of the Cincinnati Municipal Code.

(b) If the Cincinnati fire chief or a designee finds that the applicant is reasonably protecting the safety and welfare of the patrons to the event and the public and that the facility in which the event is to take place, the Cincinnati fire chief or a designee shall issue a permit to hold the event.

(c) The Cincinnati fire chief or a designee may deny a permit, withhold final issuance, or grant conditional issuance if the Cincinnati fire chief or a designee determines that:

(1) The information provided is incompatible; or

(2) The information is complete but the applicant is not reasonably protecting the safety of patrons to the event or the public; or

(3) Applicant has not complied with applicable federal, state and local laws and regulations pertaining to public safety.

(d) When the Cincinnati fire chief or a designee determines that in order to reasonably protect the safety and welfare of patrons to an event and the public it will be necessary for the applicant to use city services or personnel, the Cincinnati fire chief or a designee may condition a permit upon the use of such city services and personnel as the Cincinnati fire chief or a designee deems adequate. Further, the applicant shall reimburse the city for the costs of such city services and personnel at the city's established rate, unless the city has otherwise agreed.

(e) In determining whether the applicant is reasonably protecting the safety and welfare of the patrons to the event and the public, the Cincinnati fire chief or a designee shall consider:

(1) The number, age and anticipated conduct of patrons and others attracted to the event;

(2) Whether the information submitted with the application for a permit and other information known to the Cincinnati fire chief or a designee establishes that:

a. The applicant has made arrangements to ensure safe ingress and egress to the event;

b. The applicant has made adequate provisions for crowd control and emergency medical services;

c. The applicant has made adequate arrangements for communication between internal and external security personnel, including city personnel, if any, and arrangements for emergency communication with patrons;

d. The applicant has adopted adequate procedures for admission to ensure the safety of patrons and the exclusion of others not entitled to entry;

e. The applicant has made adequate plans for emergencies, including, but not limited to, methods for safe ingress and egress.

(3) Prior experience of city personnel and others which relates to applicant's provision of an environment which reasonably protects the safety of patrons to the event and the public.

(f) If the Cincinnati fire chief or a designee makes a preliminary determination that a permit should not be issued or that the granting of a permit should be conditional, the applicant shall be notified in writing with the reasons for such determination specified. The applicant shall be provided with an opportunity for a hearing. If after such hearing the Cincinnati fire chief or a designee finds that information has been presented or conditions agreed to by the applicant which establish that the applicant is reasonably protecting the safety of patrons to the event and the public, the Cincinnati fire chief or a designee shall issue the permit.

(g) If after hearing the Cincinnati fire chief or a designee denies the issuance of the permit, the Cincinnati fire chief or a designee shall specify in writing the findings of fact and conclusions of law upon which the denial is based.

(Ordained by Ord. No. 438-1980, eff. Oct. 29, 1980; reordained by Ord. No. 456-1980, eff. Nov. 5, 1980; a. Ord. No. 223-1997, eff. Aug. 4, 1997; a. Ord. No. 416-2024, § 1, eff. December 11, 2024)

Sec. 883-7. Revocation of Permit.

If the Cincinnati fire chief or a designee finds upon hearing that a permit holder has failed to comply with the provisions of this chapter, the laws of the state of Ohio, or the ordinances of the city of Cincinnati, has misrepresented the information provided in the application, or fails to provide the level of services set forth in the application, the Cincinnati fire chief or a designee may revoke or suspend the permit for that event until such time as the person holding such permit establishes that procedures are in existence to reasonably protect the safety and welfare of the patrons to the event and the public.

The Cincinnati fire chief or a designee shall notify the permit holder in writing of the findings of fact and conclusions of law upon which the revocation or suspension is based. The Cincinnati fire chief or a designee may, in case of emergency which immediately threatens the safety and welfare of the patrons to an event or the public, suspend or revoke a permit without hearing.
(Ordained by Ord. No. 438-1980, eff. Oct. 29, 1980; reordained by Ord. No. 456-1980, eff. Nov. 5, 1980; a. Ord. No. 416-2024, § 1, eff. December 11, 2024)

Sec. 883-9. Single Event and Series Permit Fees.

A series permit may be issued where a number of substantially similar events are scheduled within a defined time period not to exceed one year.

In determining whether to grant a series permit, the Cincinnati fire chief or a designee may consider the similarity of the events, the dates of the events, whether the information required to be included in the application is similar for each event, and whether the applicant is reasonably protecting the safety of patrons to the event and the public.

All permit fees, application fees, and other fees and costs as provided for in this chapter, when such are to be established by the city manager or the Cincinnati fire chief, shall be limited to those costs and expenses incurred by the city or estimated to be incurred by the city, including, but not limited to, for the application, inspection, and oversight in the administration of the relevant program as provided for in this chapter. Any such fees shall be available on the city's website and shall be paid in accordance with the relevant program section addressing the program and the payment of such fees and costs.

No permit shall be issued prior to the payment in full of all permit fees. Further, the city manager may require a deposit of funds for any amounts for city services or other fees and costs expected to be incurred by the city for the event.
(Ordained by Ord. No. 438-1980, eff. Oct. 29, 1980; reordained by Ord. No. 456-1980, eff. Nov. 5, 1980; a. Ord. No. 437-1981, eff. Oct. 7, 1981; a. Ord. No. 514-1981, eff. Dec. 9, 1981; a. Ord. No. 416-2024, § 1, eff. December 11, 2024)

Sec. 883-11. Notice of Modifications.

Every person granted a permit under the provision of this chapter shall notify the Cincinnati fire chief or a designee of any material change or modification to the information included in the application for the permit. Such notice shall be made in writing 14 days prior to implementation of such change or modification, unless the Cincinnati fire chief or a designee agrees to a lesser period upon a showing of special necessity. The Cincinnati fire chief or a designee may allow such modification upon finding that the modification or change is consistent with the safety and welfare of patrons to an event and the public.

If the Cincinnati fire chief or a designee finds that such change or modification is not consistent with the safety and welfare of patrons to an event or the public, the Cincinnati fire chief or a designee shall disapprove such modification.
(Ordained by Ord. No. 438-1980, eff. Oct. 29, 1980; reordained by Ord. No. 456-1980, eff. Nov. 5, 1980; a. Ord. No. 416-2024, § 1, eff. December 11, 2024)

Sec. 883-13. Rules and Regulations.

The Cincinnati fire chief or a designee may issue rules and regulations, including the establishment of permit fees and city costs, governing events at facilities for public assembly necessary to implement the provisions of this chapter and to provide for the safety and protection of patrons of such events and the general public.

Such rules and regulations shall be published on the city's website and sent to all persons having been issued a public facility permit within the last year.

Such rules and regulations shall take effect and be in force 30 days after such rules and regulations are published on the city's website.
(Ordained by Ord. No. 438-1980, eff. Oct. 29, 1980; reordained by Ord. No. 456-1980, eff. Nov. 5, 1980; a. Ord. No. 416-2024, § 1, eff. December 11, 2024)

Sec. 883-15. Exemptions.

The provisions of this chapter shall not apply to events to which less than 1,800 patrons will be admitted.
(Ordained by Ord. No. 438-1980, eff. Oct. 29, 1980; reordained by Ord. No. 456-1980, eff. Nov. 5, 1980; a. Ord. No. 416-2024, § 1, eff. December 11, 2024)

Sec. 883-17. Hearings.

Any hearing held pursuant to this chapter shall be within 10 days of the request for the hearing or preliminary determination of denial by the Cincinnati fire chief or a designee unless the applicant or permit holder agrees to an extension of time. The hearing shall be heard by the office of administrative hearings. The Cincinnati fire chief or a designee shall cause a record to be made of all evidence admitted or proffered by the applicant or permit holder. All testimony shall be given under oath.

The applicant or permit holder shall be permitted to appear and be heard in person or by an attorney:

(a) To present the position, arguments and contentions of the applicant or permit holder;

(b) To offer and examine witnesses and present evidence;

(c) To cross-examine witnesses purporting to refute the position, arguments, and contentions of the applicant or permit holder;

(d) To offer evidence, to refute evidence and testimony offered in opposition to the position, arguments, and contentions of the applicant or permit holder;

(e) To proffer any such evidence into the record, if admission thereof is denied.

(Ordained by Ord. No. 438-1980, eff. Oct. 29, 1980; reordained by Ord. No. 456-1980, eff. Nov. 5, 1980; a. Ord. No. 416-2024, § 1, eff. December 11, 2024)

Sec. 883-19. Appeal to the City Manager.

Any revocation, suspension or denial of a permit may be appealed to the city manager or person designated by the city manager, who may reverse, affirm or modify the decision of the Cincinnati fire chief or a designee. The appeal shall be confined to a review of

the written record, including written statements of the appellant and such additional information as may be permitted. The review on appeal shall be limited to consideration of the standards and requirements set forth in this chapter. The city manager or the designee may adopt the findings of fact and conclusions of law issued by the Cincinnati fire chief or a designee or make such other findings and conclusions as appropriate.

Appeals shall be made to the city manager within 10 days of receipt of the decision of the Cincinnati fire chief or a designee in writing setting forth the decision appealed from and the reasons why the appellant believes the decision is erroneous.
(Ordained by Ord. No. 438-1980, eff. Oct. 29, 1980; reordained by Ord. No. 456-1980, eff. Nov. 5, 1980; a. Ord. No. 416-2024, § 1, eff. December 11, 2024)

Sec. 883-21. Prohibitions.

(a) No person shall make any material change or modification to the plans set forth in the permit application without complying with the provisions of this chapter.

(b) No person shall fail to protect the safety and welfare of patrons to a facility or the public by conducting an event at a facility for public assembly not in accordance with the plan of operating procedure of the facility or such conditions as may have been imposed by the Cincinnati fire chief or a designee upon issuance of the permit.
(Ordained by Ord. No. 438-1980, eff. Oct. 29, 1980; reordained by Ord. No. 456-1980, eff. Nov. 5, 1980; a. Ord. No. 416-2024, § 1, eff. December 11, 2024)

Sec. 883-23. Penalties.

Whoever violates the provisions of Section 883-3 or 883-21 of this chapter or who gives false information in order to obtain a permit under this chapter shall be fined not more than $5,000 or imprisoned not more than 6 months, or both.

If a corporation violates the provisions of Section 883-3 or 883-21 of this chapter or gives false information on any application form or other written document required by the provisions of this chapter, it shall be fined not more than $10,000.

Violations of this chapter shall be enforceable by members of the Cincinnati fire department. Each and every day on which a person or corporation continues to violate any provision of this chapter shall constitute a separate offense.
(Ordained by Ord. No. 438-1980, eff. Oct. 29, 1980; reordained by Ord. No. 456-1980, eff. Nov. 5, 1980; a. Ord. No. 331-1981, eff. Sept. 5, 1981; a. Ord. No. 416-2024, § 1, eff. December 11, 2024)

Chapter 885

PLACES OF PUBLIC ACCOMMODATION*

Sec. 885-1. Places of Public Accommodation.
Sec. 885-2. Person Defined.
Sec. 885-3. Discrimination Unlawful.
Sec. 885-4. Enforcement.

*Sections 885-1—885-9 repealed by Ord. No. 549-1982, eff. Dec. 22, 1982; Sec. 885-1—885-4 ordained by Ord. No. 364-1988, eff. Oct. 21, 1988.

Sec. 885-1. Places of Public Accommodation.

For purposes of the enforcement of this chapter and Chapter 4112 of the Ohio Revised Code, the term "place of public accommodation" shall include a private club which has more than 200 members; provides regular meal service; and regularly receives payment for dues, fees, use of space, facilities, services, meals or beverages directly or indirectly from or on behalf of nonmembers for the furtherance of trade or business. A "place of public accommodation" shall not include a benevolent corporation nor a religious corporation incorporated as such under the laws of Ohio.
(Ordained by Ord. No. 364-1988, eff. Oct. 21, 1988)

Sec. 885-2. Person Defined.

The term "person" as used in this chapter includes one or more individuals, partnerships, associations, organizations, corporations, legal representatives, agents, fiduciaries and any other organized groups of persons.
(Ordained by Ord. No. 364-1988, eff. Oct. 21, 1988)

Sec. 885-3. Discrimination Unlawful.

It shall be an unlawful discriminatory practice for any person, being the owner, lessee, proprietor, superintendent, agent or employee of any private club that qualified as a place of public accommodation to deny to any person, except for reasons applicable alike to all persons regardless of race, color, religion, sex, national origin, or ancestry, the full enjoyment of the accommodations, advantages, facilities or privileges thereof; provided, it shall not be unlawful to maintain same-sex toilets, bathrooms, showers, locker rooms, and other same-sex spa or athletic facilities.
(Ordained by Ord. No. 364-1988, eff. Oct. 21, 1988)

Sec. 885-4. Enforcement.

Complaints of a violation of Section 885-3 shall be made to the human services division of the city manager's office. The human services division shall designate an agency to investigate such complaints and, when the agency determines that it is probable that such practices have occurred or are presently in existence, to attempt to eliminate any such unlawful discriminatory practices by informal methods of conference, conciliation and persuasion.

If the designated agency is unable to eliminate the unlawful discriminatory practice or obtain a conciliation of the complaint, notice thereof shall be given to the complainant. A civil action to enforce the terms of this chapter may be commenced by the complainant at any time within six months of the alleged unlawful discriminatory practice. If such civil action is brought prior to the completion of the designated agency's investigation and conciliation effort, then such effort may be discontinued within the discretion of the human services division of the city manager's office.
(Ordained by Ord. No. 364-1988, eff. Oct. 21, 1988)

Chapter 886

EQUITABLE RESTROOMS*

Sec. 886-01. Definitions.
Sec. 886-03. Single-occupancy Restrooms.
Sec. 886-05. Penalties and Enforcement.

*__Editor's note—__Ord. No. 0348-2021, § 1, adopted September 2, 2021, shall be take effect and be in force from and after January 1, 2022.

Sec. 886-01. Definitions.

(a) "Place of public accommodation" has the same meaning provided in Section 914-1-P1, "Places of Public Accommodation," of the Cincinnati Municipal Code.

(b) "Single-occupancy restroom" means a fully enclosed room, with a locking mechanism controlled by the user, containing no more than one sink, one toilet, and one urinal.
(Ordained by Ord. No. 0348-2021, § 1, eff. January 1, 2022)

Sec. 886-03. Single-occupancy Restrooms.

(a) All single-occupancy restrooms located within a public building or place of public accommodation, including family restrooms and accessible restrooms, shall be made available for use by all persons, regardless of their sex, gender identity, physical or mental capacity, or familial status.

(b) All single-occupancy restrooms located within a public building or place of public accommodation shall be outfitted with exterior signage that identifies the single-occupancy restroom as a restroom and does not indicate use of the restroom is limited to a specific gender.

(c) This provisions of this chapter apply to all existing and future public buildings and places of public accommodation operating on or after the effective date of this chapter.
(Ordained by Ord. No. 0348-2021, § 1, eff. January 1, 2022)

Sec. 886-05. Penalties and Enforcement.

(a) A violation of any provision of this chapter shall constitute a class C1 civil offense.

(b) The provisions of this chapter may be enforced by the city manager or the city manager's designee, including in connection with any inspection of a public building or place of public accommodation conducted by city officials responsible for code enforcement in connection with their official duties.
(Ordained by Ord. No. 0348-2021, § 1, eff. January 1, 2022)

Chapter 887

PRIVATE POLICE (REPEALED)*

*__Editor's note—__Repealed by Ord. No. 100-2015, § 3, eff. April 12, 2016.

Chapter 889

PRIVATE AMBULANCE SERVICE (REPEALED)*

*__Editor's note—__Repealed by Ord. No. 285-1994, eff. Aug. 8, 1994.

Chapter 891

HOME IMPROVEMENT CONTRACTORS*

Sec. 891-1. Definitions.
Sec. 891-1-A. Home Improvement.
Sec. 891-1-B. Home Improvement Contract.
Sec. 891-1-C. Owner.
Sec. 891-1-D. Person.
Sec. 891-1-E. Home Improvement Contractor.
Sec. 891-1-F. Home Improvement Salesperson.
Sec. 891-1-G. Special Order Materials.
Sec. 891-3. Home Improvement Contract Requirements.
Sec. 891-5. Owner's Right to Cancel Home Improvement Contract.
Sec. 891-7. Notice of Cancellation.
Sec. 891-9. Home Improvements Under $500.
Sec. 891-11. Emergency Repairs Over $500.
Sec. 891-13. Special Order Materials—Misrepresentation.
Sec. 891-15. Preemption by State or Federal Law; Limitation of Registration; Power of City to Regulate.
Sec. 891-17. Severability.
Sec. 891-99. Penalties.

*__Cross reference—__Procurement and disposal of supplies, services and construction, ch. 321.

Sec. 891-1. Definitions.

For the purposes of this chapter, the words and phrases defined in the sections hereunder shall have the meanings therein respectively ascribed to them unless a different meaning is clearly indicated by the context.
(C.M.C. 891-1; ordained by Ord. No. 398-1989, eff. Oct. 11, 1989)

Sec. 891-1-A. Home Improvement.

"Home improvement" shall mean the repair, replacement, remodeling, alteration, modification, conversion, modernization, rehabilitation, or addition to any land or building or any portion thereof which is used or designed to be used as a private residence or dwelling place by not more than three families, or the construction, replacement, installation or improvement of driveways, swimming pools, porches, garages, doors, windows, plumbing, electrical, waterproofing, heating, and air conditioning units used in connection with such land or building or that portion thereof which is used or designed to be used as a private residence or dwelling place.

"Home improvement" does NOT include:

(a) The construction of a new home;

(b) The sale of goods by a seller who neither arranges to perform nor performs, directly or indirectly, any work or labor in connection with the installation or application of the goods or materials;

(c) The sale of goods or services furnished for commercial or business use or for resale;

(d) The sale of appliances, such as stoves, refrigerators, freezers, room air conditioners and others which are designed for and are easily removable from the premises; or

(e) Any work performed by the owner on his own premises.

(C.M.C. 891-1-A; ordained by Ord. No. 398-1989, eff. Oct. 11, 1989)

Sec. 891-1-B. Home Improvement Contract.

"Home improvement contract" shall mean a written agreement contained in one or more documents between a home improvement contractor and an owner for the performance of home improvements, including all labor, services, and materials furnished and performed thereunder, and the entire cost of same.
(C.M.C. 891-1-1-B; ordained by Ord. No. 398-1989, eff. Oct. 11, 1989)

Sec. 891-1-C. Owner.

"Owner" shall mean any home owner, tenant, or any other person who orders, contracts for, or purchases home improvement services from a home improvement contractor, or the person entitled to the performance of the work of a home improvement contractor pursuant to a home improvement contract.
(C.M.C. 891-1-1-C; ordained by Ord. No. 398-1989, eff. Oct. 11, 1989)

Sec. 891-1-D. Person.

"Person" shall mean an individual, corporation, partnership, proprietorship, business trust, estate, trust, receiver or association.
(C.M.C. 891-1-D; ordained by Ord. No. 398-1989, eff. Oct. 11, 1989)

Sec. 891-1-E. Home Improvement Contractor.

"Home improvement contractor" shall mean any person, other than a bona fide employee of a home improvement contractor, who engages in the business of making home im-

provements, and who undertakes or offers to undertake or agrees to perform any home improvement for compensation.
(C.M.C. 891-1-E; ordained by Ord. No. 398-1989, eff. Oct. 11, 1989)

Sec. 891-1-F. Home Improvement Salesperson.

"Home improvement salesperson" shall mean any person who regularly negotiates of offers to negotiate a home improvement contract with an owner or who solicits or otherwise endeavors to procure by any means whatsoever, either directly or indirectly, a home improvement contractor.
(C.M.C. 891-1-F; ordained by Ord. No. 398-1989, eff. Oct. 11, 1989)

Sec. 891-1-G. Special Order Materials.

"Special order materials" shall mean any item that is not commonly available from building supply companies and which must be specifically ordered based upon its use or application, or an item which is unique in its application or use under the provisions of the home improvement contract, or an item which must be designed and custom manufactured for use or installation under the provisions of the home improvement contract.
(C.M.C. 891-1-G; ordained by Ord. No. 398-1989, eff. Oct. 11, 1989)

Sec. 891-3. Home Improvement Contract Requirements.

All home improvements performed where the cost is in excess of $500 shall be done pursuant to a written contract, dated and signed by an authorized representative of the home improvement contractor and the owner. The home improvement contract shall include the entire agreement between the home improvement contractor and the owner. One completed copy of the home improvement contract shall be given to the owner.

The home improvement contract shall, at a minimum, contain the following provisions:

(a) The names and addresses of the parties, including the home improvement contractor's business address, telephone number and registration number, and the home improvement salesperson's name;

(b) A complete description of the work to be performed, the goods and services to be furnished and the terms of payment;

(c) The expected date when the work is to begin and the date when the work can reasonably be anticipated to be completed, weather permitting;

(d) A statement that the owner should not sign the contract if any blank spaces remain on the contract;

(e) A requirement that the home improvement contractor obtain all applicable permits;

(f) A requirement that the home improvement contractor provide a statement declaring that all subcontractors, laborers and materialmen will be paid in full prior to the final payment on the home improvement contract;

(g) A provision limiting the amount of any down payment to ten percent of the total home improvement contract price plus the cost of special order materials, when applicable, and limiting the amount of interim payments under the home improvement contract to the percentage of work completed at the time of the interim payment to the total home improvement contract price;

(h) A requirement that all manufacturers' warranties will be supplied to the consumer upon request;

(i) A guarantee of all workmanship supplied under the home improvement contract for a period of not less than one year unless otherwise stated;

(j) A notice of cancellation in the form provided in Section 891-7. A notice of cancellation in the form prescribed by the federal trade commission establishing a cooling-off period for door-to-door sales may be used in lieu of the form prescribed by Section 891-7;

(k) A provision that all amendments to the terms of the original home improvement contract shall be in writing, dated and signed by the home improvement contractor and the owner.

(C.M.C. 891-3; ordained by Ord. No. 398-1989, eff. Oct. 11, 1989)

Sec. 891-5. Owner's Right to Cancel Home Improvement Contract.

In addition to any right otherwise to revoke an offer, the owner has the right to cancel a home improvement contract until midnight of the third business day after the day on which the owner signs the home improvement contract. Cancellation is evidenced by the owner giving written notice of cancellation to the home improvement contractor at the address stated in the home improvement contract. The owner may deliver the notice by mail, telegram, manual delivery, or other personal delivery. Written notice of cancellation shall be effective upon the date of postmarking. Telegram delivery is effective when the telegram is ordered. Manual delivery or other personal delivery is effective when delivered to the home improvement contractor or to the home improvement contractor's address, whichever comes first. Notice of cancellation need not take a particular form and is sufficient if it indicates, by any form of written expression, the intention of the owner not to be bound by the home improvement contract. Notice of owner's right to cancel must appear on all notes or other evidence of indebtedness given pursuant to any home improvement contract.

In the event that the home improvement contractor fails to attach the notice of cancellation to the home improvement contract, the owner has the right to cancel the contract at any time prior to the commencement of the work required under the home improvement contract.

A home improvement contractor shall not deliver any materials or perform any labor required under the home improvement contract during the three-day waiting period in which the owner may cancel the home improvement contract except in cases of emergency repairs.

(C.M.C. 891-5; ordained by Ord. No. 398-1989, eff. Oct. 11, 1989)

Sec. 891-7. Notice of Cancellation.

A completed detachable form, in duplicate captioned "Notice of Cancellation," shall be attached to the home improvement contract. The notice of cancellation shall be in ten-point, bold-face type and be in the following form:

NOTICE OF CANCELLATION
(Enter date of transaction)

_____
(Date)

You may cancel this transaction, without any penalty or obligation, within three business days from the above date.

If you cancel this home improvement contract, any payments made by you under the home improvement contract and any negotiable instrument executed by you will be returned within ten business days following receipt by the home improvement contractor

of your cancellation notice, and any security interest arising out of the transaction will be cancelled.

To cancel this transaction, mail or deliver a signed and dated copy of this cancellation notice or any other written notice of cancellation to:

_____

(Name of home improvement contractor)

at _____, not later than midnight of

_____

(Date).

(Address of home improvement contractor's place of business)

_____

I hereby cancel this transaction.

_____

(Date)

_____

(Owner's signature)

Before furnishing copies of the notice of cancellation to the owner, the home improvement contractor shall complete both copies by entering the name of the owner, the address of the home improvement contractor's place of business, the date of the transaction which is the date the owner signed the home improvement contract and the date, not earlier than the third business day following the date of the transaction, by which the owner may give notice of cancellation.
(C.M.C. 891-7; ordained by Ord. No. 398-1989, eff. Oct. 11, 1989)

Sec. 891-9. Home Improvements Under $500.

All home improvements performed where the estimated cost is less than $500 shall be done pursuant to a written or oral estimate.

Where additional material or labor is required beyond the amount of the original estimate and the total amount of all material and labor required is less than $500, an additional written or oral estimate shall be provided.

Where additional material or labor is required beyond the amount of the original estimate and the total cost of the home improvement contract is in excess of $500, a written home improvement contract shall be executed pursuant to the provisions of Section 891-3.

In lieu of a written or oral estimate for home improvements under $500, the parties may enter into a written home improvement contract.
(C.M.C. 891-9; ordained by Ord. No. 398-1989, eff. Oct. 11, 1989)

Sec. 891-11. Emergency Repairs Over $500.

Emergency repairs over $500 to heating, plumbing, electrical or other systems which must commence immediately for the protection of the health, safety and welfare of the residents of the premises shall be made pursuant to a written home improvement contract. Emergency repairs over $500 may commence on an oral estimate. A written home improvement contract shall be executed pursuant to the provisions of Section 891-3 as soon as practicable after the emergency repairs have commenced. The notice of cancellation and waiting period required by Sections 891-3, 891-5 and 891-7 may be waived in writing by the owner when the consumer initiates the transaction.
(C.M.C. 891-11; ordained by Ord. No. 398-1989, eff. Oct. 11, 1989)

Sec. 891-13. Special Order Materials—Misrepresentation.

No person shall represent that an item is a special order material when it is not a special order material.
(C.M.C. 891-13; ordained by Ord. No. 398-1989, eff. Oct. 11, 1989)

Sec. 891-15. Preemption by State or Federal Law; Limitation of Registration; Power of City to Regulate.

(a) Where any provision of this chapter conflicts with any federal or state law, the federal or state law shall prevail.

(b) Registration pursuant to these sections may not be construed to authorize the registrant to perform any particular type of work or kind of business which is reserved to qualified licensees under separate provisions of state or local law, nor shall any license or authority other than the registration granted under these sections be construed to authorize the registrant to engage in business as a home improvement contractor or home improvement salesperson.

(c) Nothing in this chapter shall be construed to limit or restrict the power of the city to regulate the quality, performance, or character of work of home improvement contractors, including a system of permits and inspections which are designed to secure compliance with and aid in the enforcement of applicable state and local building laws, or to enforce other laws necessary for the protection of the public health, safety and welfare.

(d) Nothing in this chapter shall limit the power of this city to adopt any system of permits requiring submission to and approval by the city of plans and specifications for an installation prior to the commencement of construction of the installation or of inspection of work done.
(C.M.C. 891-15; ordained by Ord. No. 398-1989, eff. Oct. 11, 1989)

Sec. 891-17. Severability.

If any provision of this chapter or the application thereof to any person or circumstance is held invalid, the invalidation does not affect other provisions or application of the section or related sections which can be given effect without the invalid provision or application and to this end the provisions are severable.
(C.M.C. 891-17; ordained by Ord. No. 398-1989, eff. Oct. 11, 1989)

Sec. 891-99. Penalties.

Any violation of the provisions of this chapter shall on the first offense be a second degree misdemeanor. Any subsequent violation of any provision of this chapter shall be a misdemeanor of the first degree.
(C.M.C. 891-99; ordained by Ord. No. 398-1989, eff. Oct. 11, 1989)

Chapter 895

OUTDOOR ADVERTISING SIGNS

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Sec. 895-99. Penalties.

Sec. 895-1. Definitions.

For the purpose of this chapter the words and phrases defined in this section shall have the meanings respectively ascribed to them, unless a different meaning is clearly indicated by the context.
(C.M.C. 895-1; ordained by Ord. No. 65-1989, eff. Mar. 25, 1989; a. Ord. No. 384-1991, eff. Oct. 18, 1991)

Sec. 895-1-B. Back-to-Back Sign.

"Back-to-Back Sign" means a structure with two parallel and directly opposite outdoor advertising signs with their faces oriented in opposite directions located not more than 15 feet apart at the nearest point between two faces.
(C.M.C. 895-1-B; ordained by Ord. No. 65-1989, eff. Mar. 25, 1989; a. Ord. No. 384-1991, eff. Oct. 18, 1991)

Sec. 895-1-C. Construct.

"Construct" means to construct an outdoor advertising sign, or to increase the face area of an existing sign, but shall not include any activity when performed as an incident to the change of advertising message or normal maintenance of a sign or sign structure.
(C.M.C. 895-1-C; ordained by Ord. No. 65-1989, eff. Mar. 25, 1989; a. Ord. No. 384-1991, eff. Oct. 18, 1991)

Sec. 895-1-D. Double-Faced Sign.

"Double-Faced Sign" means two adjacent outdoor advertising signs on a single structure or separate structures with both faces oriented in the same direction and not more than 10 feet apart at the nearest point between the two faces. A "double-faced sign" may also be referred to herein as a "side-by-side," "stacked," or "decked" sign.
(C.M.C. 895-1-D; ordained by Ord. No. 65-1989, eff. Mar. 25, 1989; a. Ord. No. 384-1991, eff. Oct. 18, 1991)

Sec. 895-1-F. Face Area.

"Face area" means the area of the polygon of minimum area with no interior angle greater than 180 degrees that completely encloses the entire sign face. Provided, however, any cutout (an irregularly shaped temporary addition to a sign face displayed no more than 120 consecutive days appurtenant to a particular advertising message) that adds no more than 5 feet, 6 inches to the vertical measure or no more than 2 feet to the horizontal measure of the sign face, or is equal to or less than 25% of the face area of the sign face as measured without including the cutout, whichever is more restrictive, may be disregarded in the calculation of the face area.
(C.M.C. 895-1-F; ordained by Ord. No. 65-1989, eff. Mar. 25, 1989; a. Ord. No. 384-1991, eff. Oct. 18, 1991)

Sec. 895-1-G. Ground Sign.

"Ground Sign" means any outdoor advertising sign supported by a freestanding framework affixed to one or more uprights or braces in or upon the ground.
(C.M.C. 895-1-G; ordained by Ord. No. 65-1989, eff. Mar. 25, 1989; a. Ord. No. 384-1991, eff. Oct. 18, 1991)

Sec. 895-1-O. Outdoor Advertising Sign.

"Outdoor Advertising Sign" means either of the following: (i) a sign for which its owner or operator receives, or is entitled to receive, rent or other consideration from another person or entity in exchange for the use of the sign, including for the placement of a message on the sign; or (ii) a sign that is offered or made available by its owner or operator for use by another person or entity, including for the placement of a message on the sign, in exchange for rent or other consideration.
(C.M.C. 895-1-O; ordained by Ord. No. 65-1989, eff. Mar. 25, 1989; a. Ord. No.

384-1991, eff. Oct. 18, 1991; a. Ord. No. 0226-2007, § 1, eff. July 6, 2007; a. Ord. No. 372-2017, § 1, eff. Jan. 20, 2018; a. Emer. Ord. No. 380-2020, §§ 4, 5, eff. Nov. 12, 2020)

Sec. 895-1-P. Place of Worship.

"Place of Worship" means a building primarily used as a place of assembly for worship or other religious services, with a maximum number of occupants permitted on the premises under the Cincinnati Building Code greater than 50.
(Ordained by Ord. No. 386-1995, eff. Jan 5, 1996)

Sec. 895-1-R. Residential District.

"Residential District" means a residential zoning district denoted by the letters SF or RMX.
(Ordained by Ord. No. 0226-2007, § 2, eff. July 6, 2007)

Sec. 895-1-R1. Roof Sign.

"Roof sign" means an outdoor advertising sign attached to a building with more than one-half the face area of the sign above the highest occupied floor of the building.
(C.M.C. 895-1-R; ordained by Ord. No. 65-1989, eff. Mar. 25, 1989; a. Ord. No. 384-1991, eff. Oct. 18, 1991; reordained by Ord. No. 0226-2007, § 3, eff. July 6, 2007)

Sec. 895-1-S. School.

"School" means a public or private elementary or high school chartered by the state of Ohio board of education.
(C.M.C. 895-1-S; ordained by Ord. No. 65-1989, eff. Mar. 25, 1989; a. Ord. No. 384-1991, eff. Oct. 18, 1991)

Sec. 895-2. Applicability.

The provisions of this Chapter apply to all outdoor advertising signs except as otherwise provided by law. Signs not governed by this Chapter include:

(a) Signs erected or displayed in the public right-of-way and authorized under Chapter 723 of the Municipal Code; and

(b) Signs erected or displayed on Fountain Square pursuant to Rules and Regulations for the Use of Fountain Square as authorized by Chapter 713 of the Municipal Code; and

(c) Signs approved by the City for a special event authorized under chapter 765 of the Municipal Code or other event authorized under Park Board rules; and

(d) Signs erected or displayed on city-owned property by the City of Cincinnati or by a third-party pursuant to a contract with the city subject to reasonable, uniform, viewpoint-neutral limitations that ensure the signs do not undermine the city's interests, including its interests in aesthetics and traffic safety; and

(e) Signs erected or displayed on property owned by a governmental entity pursuant to a contract with the city subject to reasonable limitations that ensure the signs do not undermine the city's interests, including its interests in aesthetics and traffic safety.

(Ordained by Ord. No. 372-2017, § 3, eff. Jan. 20, 2018; a. Ord. No. 295-2019(Emer.), §§ 3, 4, eff. June 26, 2019; a. Emer. Ord. No. 380-2020, §§ 4, 5, eff. Nov. 12, 2020)

Sec. 895-3. General Requirements.

Every outdoor advertising sign shall:

(a) Be securely affixed to a substantial structure, and in the case of wall signs, securely affixed to a building.

(b) Be maintained, clean and in good repair, and the painted portions of such signs shall be periodically repainted and kept in good condition.

(c) Be constructed in accordance with the Cincinnati Building Code, except for advertising benches, and the Cincinnati Zoning Code.

(d) Not be maintained or affixed to any building that has been declared by the director of buildings and inspections as dangerous and unsafe and a public nuisance or that has been ordered vacated and barricaded and that has been found open to trespassers by reason of the failure of the owner to maintain the building securely barricaded. The holder of the outdoor advertising sign permit for such sign shall be given 30 days notice of the order of the director of buildings and inspections prior to any action to enforce this provision.

(C.M.C. 895-3; ordained by Ord. No. 65-1989, eff. Mar. 25, 1989; a. Ord. No. 384-1991, eff. Oct. 18, 1991; a. Ord. No. 186-1996, eff. June 12, 1996; a. Ord. No. 0226-2007, § 4, eff. July 6, 2007)

Sec. 895-5. Construction of Signs.

No person shall construct an outdoor advertising sign:

(a) As a roof sign.

(b) Within 200 feet in any direction of any school or hospital.

(c) Within 100 feet in any direction of a residential district boundary line.

(d) In any park, parkway, or playground under the jurisdiction of the board of park commissioners or the recreation commission, the establishment of which has been authorized by council, or within 200 feet in any direction of the boundary of any such park, parkway or playground.

(e) As a double-faced, side-by-side, stacked, or decked sign, with a combined sign face area of more than 150 square feet.

(f) With a face area greater than 672 square feet inclusive of any border and trim, but excluding the base or apron, cutouts, supports and other structural members.

(g) Closer to the street than the building set-back line, and no portion of any outdoor advertising sign may be placed on, or extend over the right- of-way line of any street or highway.

(h) On any publicly-owned real property without permission.

(i) As a ground sign more than 40 feet above the grade of the lot or location being occupied by such sign, or the average natural grade at the sign location, if higher. Provided, however, in the instance of a street or highway which is higher than the grade of the lot or location to be occupied by the sign, the height shall be measured from the center line of the pavement at such location, but in no event shall the maximum height exceed 40 feet.

(j) On any property located within an Urban Design Overlay District established pursuant to Title XIV, Chapter 1437 of the Cincinnati Municipal Code, except as noted below for Preexisting Lawful Signs.

(k) On any property located within a Historic District or Historic Landmark established pursuant to Title XIV, Chapter 1435 of the Cincinnati Municipal Code, except as noted below for Preexisting Lawful Signs.

(l) The provisions of subsections (j) and (k) above shall not apply to signs lawfully constructed or erected prior to March 25, 1989 ("Preexisting Lawful Sign"). In the event a Preexisting Lawful Sign is removed by the City for any reason, the sign may be relocated to, or a new sign of equal or lesser sign face area and height may be constructed or erected in, an alternative location within the same Urban Design Overlay District or Historic District upon the review and approval by the applicable reviewing authority for new construction in the Urban Design Overlay District or Historic District. Any new sign constructed or erected in accordance with this subsection (l) shall comply with all of the prohibitions of this Section 895-5 except for subsections (f) and (i) above as the new sign may have an equal or lesser sign face area and height as the removed sign.

(C.M.C. 895-5; ordained by Ord. No. 65-1989, eff. Mar. 25, 1989; a. Ord. No. 384-1991, eff. Oct. 18, 1991; a. Ord. No. 186-1996, eff. June 12, 1996; a. Ord. No. 0226-2007, § 5, eff. July 6, 2007; a. Ord. No. 020-2013, § 1, eff. March 1, 2013)

Sec. 895-7. Spacing of Outdoor Advertising Signs.

(a) On the interstate and primary systems, spacing shall be in accordance with the agreement entered into by the State of Ohio and the United States secretary of transportation, and shall be pursuant to state regulation.

(b) On all other streets and highways within the City of Cincinnati, no outdoor advertising sign may be constructed within 500 feet of any other outdoor advertising sign, located on the same side of the street right-of-way and facing the same traffic flow.

(c) The minimum distance between structures for purposes of complying with this section shall be measured along the nearest edge of the pavement between points directly opposite the center of the signs along the same side of the street or highway on which the sign is to be located.

(C.M.C. 895-7; ordained by Ord. No. 65-1989, eff. Mar. 25, 1989; a. Ord. No. 186-1996, eff. June 12, 1996; a. Ord. No. 0226-2007, § 6, eff. June 6, 2007)

Sec. 895-9. Lighting Requirements for Outdoor Advertising Signs.

Lighting shall not be used in any way in connection with any outdoor advertising sign unless it is so effectively shielded as to prevent beams or rays of light from being directly cast on any portion of the street or highway, or is of such low intensity or brilliance as not to cause glare or to impair the vision of the driver of any motor vehicle or to otherwise interfere with any driver's operation of a motor vehicle. Illuminated off-premise signs shall not produce more than one foot candle of illumination four feet from the sign, when measured from the base of the sign.

(C.M.C. 895-9; ordained by Ord. No. 65-1989, eff. Mar. 25, 1989)

Sec. 895-10. Repealed.

(Ordained by Ord. No. 372-2017, § 3, eff. Jan. 20, 2018; r. by Emer. Ord. No. 380-2020, § 6, eff. Nov. 12, 2020)

Sec. 895-11. Prohibited Advertising.

A person may not display on an outdoor advertising sign:

(a) An advertisement for an alcoholic beverage if the outdoor advertising sign is located within 500 feet of any school or hospital.

(b) An advertisement for a tobacco product that can be viewed from a

primary school, secondary school, public park, or public playground, located within 1,000 feet of the sign, or if the advertising message can be viewed from a place of worship or a hospital, located within 500 feet of the sign.

(c) An advertisement for a tobacco product unless the outdoor advertising sign is located within a the CG-A Commercial General-Auto-Oriented Zoning District or the RF-M Riverfront Manufacturing District, and the sign is primarily intended for view by persons traveling on an expressway or a state arterial route, or is located in a MG Manufacturing General or ME Manufacturing Exclusive Zoning District. The Districts are shown on the Zoning Map of the Cincinnati Zoning Code, Title XIV of the Cincinnati Municipal Code. Expressways and state arterial routes are the Class 1 and Class 2 streets listed in the City of Cincinnati 1994 Official Through Street System, dated May 16, 1995, a copy of which is on file with the Clerk of Council.

(C.M.C. 895-11; ordained by Ord. No. 65-1989, eff. Mar. 25, 1989; a. Ord. No. 192-1994, eff. 6-2-94; a. Ord. No. 383-1995, eff. Nov. 29, 1995; a. Ord. No. 386-1995, eff. Jan. 5, 1996; a. Ord. No. 372-2017, § 1, eff. Jan. 20, 2018)

Sec. 895-13. Outdoor Advertising Sign Construction Permit.

A person may not construct an outdoor advertising sign without first obtaining an outdoor advertising construction permit from the director of buildings and inspections. Application for an outdoor advertising construction permit must be made on a form provided by the director. The outdoor advertising construction permit is required in addition to a building permit and any other permit or license required by law or ordinance. The fee for an outdoor advertising construction permit is $70.00 for each outdoor advertising sign face. An outdoor advertising construction permit may not be issued unless approved by the director as conforming to this chapter and all other applicable codes.

The director has the duty to inspect the construction of outdoor advertising signs. On determining that the construction has been completed in accordance with all applicable codes, the director has the duty to assign an outdoor advertising permit number to each outdoor advertising sign face. The owner of the outdoor advertising sign must permanently display the permit number and the owner's name on the sign or accompanying structure so that the name and number are clearly visible from the public right-of-way.

If the person displaying the sign is not the owner of record of the real property on which the sign is displayed, the person shall keep on file and make available for inspection on demand by the director, the name and address of the property owner or tenant in possession and documentation executed by the property owner or tenant in possession establishing the right of the applicant to display the sign.

If a holder of an outdoor advertising sign permit transfers ownership of an outdoor advertising sign, the person to whom ownership has been transferred must notify the director in writing of the transfer within 90 days of the transfer and provide the director with the name, address and telephone number of the person responsible for maintaining the sign in compliance with this chapter.

(C.M.C. 895-13; ordained by Ord. No. 65-1989, eff. Mar. 25, 1989; a. Ord. No. 115-1993, eff. Mar. 24, 1993; a. Ord. No. 186-1996, eff. June 12, 1996; a. Ord. No.

247-2002, eff. July 25, 2002; a. Ord. No. 0226-2007, § 7, eff. July 6, 2007; Emer. Ord. No. 163-2018, § 5, eff. July 1, 2018; a. Emer. Ord. No. 323-2018, § 2, eff. Oct. 10, 2018)

Sec. 895-15. Cap and Replace.

In order that the total face area and number of faces of all lawful outdoor advertising signs within the business districts and the city not be increased, no person shall construct an outdoor advertising sign without first removing outdoor advertising signs equal in face area and number of faces. In order to administer this provision, the director of buildings and inspections shall issue a replacement permit to any person who permanently removes a lawfully existing outdoor advertising sign and any supporting structure that has been inspected pursuant to this chapter and found to be fully complying with this chapter and all other applicable codes. The director shall note on the replacement permit the number of faces and face area, up to a maximum of 672 square feet, and the zone district in which the sign was located for every sign face removed. Replacement permits may be transferred. No outdoor advertising sign construction permit shall be issued unless the applicant tenders for cancellation replacement permits with a total face area and number of faces noted of at least the area and number of the sign or signs to be constructed.
(C.M.C. 895-15; ordained by Ord. No. 65-1989, eff. Mar. 25, 1989; a. Ord. No. 115-1993, eff. Mar. 24, 1993; a. Ord. No. 372-2017, § 1, eff. Jan. 20, 2018)

Sec. 895-17. Reconstruction of Nonconforming Signs Prohibited.

The structural support of outdoor advertising signs deemed nonconforming uses under the zoning code may not be reconstructed, rebuilt, or replaced nor the face area of such signs increased. Any nonconforming sign damaged or destroyed to the extent of 51 percent or more of its estimated replacement cost at the time of its damage or destruction may not be repaired, rebuilt, or reconstructed except in conformity with this chapter.
(C.M.C. 895-17; ordained by Ord. No. 65-1989, eff. Mar. 25, 1989)

Sec. 895-18. Repealed.
(Ordained by Ord. No. 186-1996, eff. June 12, 1996; r. Ord. No. 247-2002, eff. July 25, 2002)

Sec. 895-19. Annual Outdoor Advertising Sign Permit Renewal.

By December 31 of every other year beginning in 2002, every person displaying an outdoor advertising sign must apply to the director of buildings and inspections for renewal of every outdoor advertising permit for each outdoor advertising sign being displayed. Renewal may be based on an owner's certification of compliance filed with the director in accordance with paragraph (a) of this section or inspection by the director in accordance with paragraph (b) of this section.

(a) A person displaying an outdoor advertising sign may file with the director a verified certification that each sign displayed by the person is being displayed and maintained in accordance with the provisions of this chapter. The certification must be made on a form prescribed by the director and filed with the director by December 31. The certification must be based on inspection of each sign by the applicant made within 30 days of the certification. The person displaying an outdoor advertising sign must keep on file and make available for inspection on demand by the director

a written record of each inspection made. The fee for renewal of an outdoor advertising sign permit based on an owner's certification of compliance is $20.00 for each sign face.

(b) A person displaying an outdoor advertising sign may apply to the director for inspection of the sign. Application must be made on a form prescribed by the director and timely filed. The director has the duty to inspect each sign and determine if it is being displayed and maintained in accordance with the provisions of this chapter. The fee for renewal of an outdoor advertising sign permit based on inspection by the director is $40.00 for each sign face.

(c) In the event a person displaying an outdoor advertising sign fails to apply for renewal and either file a certification pursuant to paragraph (a) or apply to the director for inspection pursuant to paragraph (b) in a timely manner, the director has the duty to inspect each sign and determine if it is being displayed and maintained in accordance with the provisions of this chapter. The fee for renewal of an outdoor advertising sign permit based on inspection by the director made pursuant to this paragraph is $50.00 for each sign face. If the person displaying an outdoor advertising sign fails to pay the inspection fee and correct any violations within the time provided by the director that person is subject to penalty as provided in § 895-99.

(d) If the director finds that a person has falsely certified that signs displayed by the person are being displayed and maintained in accordance with the provisions of this chapter, the director has the duty to reject the certification, require the applicant to file for renewal pursuant to paragraph (b) of this section and disqualify that person from renewing permits based on filing an owner's certification of compliance. A person so disqualified will remain disqualified for five years unless reinstated pursuant to paragraph (e) of this section.

(e) A person disqualified pursuant to paragraph (b) of this section may request a hearing before the director to present evidence that the certification was correct or that the false statements were inadvertent or the result of careless error. If the director finds that the certification was correct or that the false statements were inadvertent or the result of careless error, the director has the duty to issue permits based on the owner's certification as it may be amended to correct any misstatement and to remove the disqualification; provided, however, on a second finding within a five-year period that an owner has filed a false certification, whether through inadvertence, careless error or otherwise, the director has the duty to reject the certification, require the applicant to file for renewal pursuant to paragraph (b) of this section and disqualify that person from renewing permits based on filing an owner's certification of compliance for five years.

(C.M.C. 895-19; ordained by Ord. No. 65-1989, eff. Mar. 25, 1989; a. Ord. No. 384-1991, eff. Oct. 18, 1991; a. Ord. No. 115-1993, eff. Mar. 24, 1993; a. Ord. No. 21-1996, eff. Feb. 23, 1996; a. Ord. No. 186-1996, eff. June 12, 1996; a. Ord. No. 247-2002, eff. July 25, 2002; Emer. Ord. No. 163-2018, § 5, eff. July 1, 2018; a. Emer. Ord. No. 323-2018, § 2, eff. Oct. 10, 2018)

Sec. 895-21. Notice of Violation.

Whenever the director of buildings and inspections finds an outdoor advertising sign displayed in violation of any provision of this chapter, the director has the duty to send a notice of violation to the holder of the outdoor advertising sign permit for the sign or, if an outdoor advertising sign permit for the sign has not been issued, to the owner of the property where the sign is being displayed.

If the director does not receive an application for renewal of every outdoor advertising permit within the time prescribed by § 895-19 from a person to whom an outdoor advertising permit has been issued for a outdoor advertising sign being maintained and displayed, the director has the duty to send a notice of violation to the permit holder.
(C.M.C. 895-21; ordained by Ord. No. 65-1989, eff. Mar. 25, 1989; a. Ord. No. 115-1993, eff. Mar. 24, 1993; a. Ord. No. 247-2002, eff. July 25, 2002)

Sec. 895-23. Hearings.

Any person denied a permit or who contests a notice of violation may request a hearing before a board comprised of the director of buildings and inspections, the city solicitor, and the city engineer or their designated representatives. The request shall be in writing and filed with the board within ten days of the original denial or notice of violation determination. Notice of the hearing shall be published in the City Bulletin. The hearing shall be open to the public. The hearing may be informal but all testimony shall be sworn. The board shall issue a final determination within ten days of the close of the hearing.
(C.M.C. 895-23; ordained by Ord. No. 65-1989, eff. Mar. 25, 1989; a. Ord. No. 384-1991, eff. Oct. 18, 1991; a. Ord. No. 115-1993, eff. Mar. 24, 1993)

Sec. 895-25. Regulations.

The city manager is authorized to adopt and promulgate regulations necessary for the orderly and efficient administration of this chapter.
(C.M.C. 895-25; ordained by Ord. No. 384-1991, eff. Oct. 18, 1991)

Sec. 895-27. Outdoor Advertising Sign Excise Tax.

Any person who owns or controls an outdoor advertising sign shall pay the outdoor advertising sign excise tax established in Cincinnati Municipal Code chapter 313, "Outdoor Advertising Sign Excise Tax," unless the person or the sign is exempted from taxation pursuant to the provisions of that chapter.
(Ordained by Emer. Ord. No. 167-2018, § 2, eff. July 1, 2018)

Sec. 895-29. Severability.

If any section, subsection, subdivision, paragraph, sentence, clause or phrase of this chapter or any part thereof is for any reason held to be unconstitutional, such decision shall not affect the validity of the remaining portions of this chapter or any part thereof. The city council hereby declares that it would have passed each section, subsection, subdivision, paragraph, sentence, clause or phrase thereof, irrespective of the fact that any one or more sections, subsections, subdivisions, paragraphs, sentences, clauses or phrases be declared unconstitutional.
(Ordained by Emer. Ord. No. 380-2020, § 7, eff. Nov. 12, 2020)

Sec. 895-99. Penalties.

Whoever violates any provision of this chapter commits a Class D Civil Offense as defined by Section 1501-9(a) of the Cincinnati Municipal Code. Display of an outdoor

advertising sign in violation of this chapter within a different calendar month shall be a separate offense. Whoever displays the same outdoor advertising sign in violation of this chapter following a prior violation within the same calendar year commits a separate, additional Class D Civil Offense as defined by Section 1501-9(a) of the Cincinnati Municipal Code, and shall forfeit the outdoor advertising sign and cause it to be permanently removed.

(C.M.C. 895-99; ordained by Ord. No. 65-1989, eff. Mar. 25, 1989; a. Ord. No. 192-1994, eff. 6-2-94; Emer. Ord. No. 163-2018, § 5, eff. July 1, 2018; a. Emer. Ord. No. 323-2018, § 3, eff. Oct. 10, 2018)

Chapter 897

MASSAGE ESTABLISHMENTS AND PRACTITIONERS

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Sec. 897. Licensing and Regulation of Massage Establishments and Massage Practitioners.

(Ordained by Ord. No. 232-1996, eff. Sept. 6, 1996)

Sec. 897-1. Definitions.

The following words and phrases, wherever used in this chapter, shall be construed as defined in this section unless from the context a different meaning is intended.
(Ordained by Ord. No. 232-1996, eff. Sept. 6, 1996)

Sec. 897-1-A. Applicant.

"Applicant" shall mean a person who applies for a massage practitioner license or a massage establishment license. If the applicant for a massage establishment is other than an individual, each individual who has a 20% or greater interest in the business and the person who will manage the business conducted in this city shall be deemed to be an applicant and upon issuance of a massage establishment license, a licensee.
(Ordained by Ord. No. 232-1996, eff. Sept. 6, 1996)

Sec. 897-1-M-1. Massage Establishment.

"Massage Establishment" shall mean any place of business or establishment wherein any of the subjects or methods of treatment listed in section 897-1-M-3 are administered, practiced or used, or from which is dispatched a person for the purpose of administering, practicing or using any of the subjects or methods of treatment listed therein.
(Ordained by Ord. No. 232-1996, eff. Sept. 6, 1996)

Sec. 897-1-M-2. Massage Practitioner.

"Massage Practitioner" shall mean a person who practices or administers any massage or touching techniques listed in section 897-1-M-3 for a fee, income or compensation of any kind within the city of Cincinnati.
(Ordained by Ord. No. 232-1996, eff. Sept. 6, 1996)

Sec. 897-1-M-3. Massage or Touching Techniques.

"Massage" or "Touching Techniques" shall mean any of the following named subjects and methods of treatment: oil rubs; alcohol rubs; salt glows; hot or cold packs; tub, shower, or cabinet baths; colon irrigation; and touching procedures upon the external parts of the body by hand or by any electrical, mechanical or vibratory apparatus—including stroking, friction, kneading, rolling, vibrating, cupping, petrissage, rubbing, effleurage and tapotement.
(Ordained by Ord. No. 232-1996, eff. Sept. 6, 1996)

Sec. 897-1-M-4. Moral Turpitude.

"Moral Turpitude" shall mean an act of baseness, vileness, or depravity in the private and social duties which a man owes to his fellow men, or to society in general.
(Ordained by Ord. No. 232-1996, eff. Sept. 6, 1996)

Sec. 897-3. City Treasurer; Duties.

It shall be the duty and responsibility of the city treasurer for the city of Cincinnati or such persons as may be designated by the city treasurer to administer the provisions of chapter 897. Pursuant to this duty the city treasurer or such designee shall issue, renew, deny, suspend or revoke massage practitioner and massage establishment licenses as required by chapter 897.
(Ordained by Ord. No. 232-1996, eff. Sept. 6, 1996)

Sec. 897-5. Licensing of Massage Practitioners and Massage Establishments Required.

(a) It shall be unlawful for any person to practice or administer or to offer or agree to practice or administer any subject or method of treatment listed in section 897-1-M-3 in the city of Cincinnati, whether for a fee, income or consideration of any kind, without first obtaining and maintaining in effect a massage practitioner license as required by chapter 897.

(b) It shall be unlawful for any person, association, firm, or corporation to conduct or operate a massage establishment or to perform such services in the city of Cincinnati without first obtaining and maintaining in effect a massage establishment license as required by chapter 897.

(c) It shall be unlawful for any person, association, firm, or corporation to employ as a massage practitioner in the city of Cincinnati any person who does not hold a current unrevoked and unsuspended massage practitioner license as required by chapter 897.

(d) It shall be unlawful for any person, association, firm, or corporation licensed as provided in chapter 897 to operate under any name or conduct business in the city of Cincinnati under any designation not specified in such license.

(e) It shall be unlawful for any massage establishment licensed as provided in this article to remain open for business or provide services any time between the hours of 1:00 a.m. and 6:00 a.m.
(Ordained by Ord. No. 232-1996, eff. Sept. 6, 1996)

Sec. 897-7. New License Application; Procedures and Fee.

(a) Any person, association, firm, or corporation desiring to obtain a massage practitioner or massage establishment license shall make application to the city treasurer who shall refer each such application to the chief of police for appropriate investigation. A person desiring licenses authorizing him to perform the activities of a massage practitioner and, in addition, to conduct or operate a massage establishment shall submit two separate applications.

(b) The application shall be accompanied by a non-refundable fee in the amount of $300.00 for an initial license to operate a massage establishment, and $150 for a renewal license; or $200.00 for an initial license to operate as a massage practitioner, and $50 for a renewal license, as those terms are defined in this chapter.

(c) An applicant for a massage practitioner or massage establishment license shall submit the following:

(1) The full legal name and current residence address of the applicant;

(2) Any other names by which the applicant has been known;

(3) The address at which applicant desires to do business;

(4) The two residence addresses immediately prior to the present residence address of applicant, and the dates of residence at each;

(5) Written proof that the applicant is over the age of twenty-one years if applying for a massage establishment license, or over the age of eighteen years if applying for a massage practitioner license;

(6) Two portrait photographs, approximately two inches by two inches in size, taken within the previous six months;

(7) The business license history of the applicant, whether the applicant, in previously operating in this or an-

other city or state under license, has had such licenses revoked or suspended, the reason therefor, and the business activity or occupation subsequent to such suspension or revocation;

(8) All felony and misdemeanor convictions, excluding those for traffic offenses, and the grounds of such convictions;

(9) The applicant's complete fingerprints, recorded by the police department;

(10) The applicant's education, training and experience in the administration, practice or use of the subjects and methods listed in section 897-1-M-3, including diplomas or credentials from schools or institutions of learning. The educational requirements for massage practitioner license applicants shall include certification of satisfactory completion of a minimum of 160 hours of course instructions in anatomy, physiology and massage or touching techniques from a school of massage approved by the State Medical Board of Ohio or an equivalent board from outside this state, or accredited by an accrediting agency recognized by the United States Department of Education or the Council on Post Secondary Accreditation.

(11) Any other identification and information as the police department may require in order to discover the truth of the matters above required to be set forth in the application.

(Ordained by Ord. No. 232-1996, eff. Sept. 6, 1996; Emer. Ord. 463-2010, § 53, eff. Dec. 30, 2010)

Sec. 897-9. License Application Investigation.

Any applicant for a license pursuant to these provisions shall personally appear at the office of the city treasurer and shall present the application containing the information required by section 897-7. The police department shall have a reasonable time in which to investigate the application and the background of the applicant. Based on such investigation, the police department shall recommend to the city treasurer approval or denial of the license.

(Ordained by Ord. No. 232-1996, eff. Sept. 6, 1996)

Sec. 897-11. Massage Establishment License; Special Requirements.

(a) No massage establishment license shall be issued if the applicant has been convicted within the last ten years of any felony, or any misdemeanor offense involving moral turpitude and having a reasonable relationship to the functions of a massage establishment licensee, or if the application was deliberately falsified.

(b) No massage establishment license shall be issued if the applicant has been convicted within the last ten years of any offense committed outside this state or city which if committed in this state or city would constitute a felony, or any misdemeanor offense involving moral turpitude and having a reasonable relationship to the functions of a massage establishment licensee.

(c) An applicant for a massage establishment license or a licensee shall permit representatives of the police department, and any other federal, state, county, or city agency in the performance of any function connected with the enforcement of any code, statute or regulation relating to human health, safety or welfare or structural safety, normally and regularly conducted by such agencies, to inspect the premises of a massage establishment for the purpose of ensuring compliance with the law, at any time it is occupied or open for business.

(d) No massage establishment license shall be issued unless inspection by a city agency or, where appropriate, a county agency, indicates the site of the establishment complies with each of the following minimum requirements:

(1) A current certificate of occupancy shall be issued in the name of the massage establishment.

(2) A readable sign shall be posted at the main entrance identifying the establishment as a massage establishment.

(3) Minimum lighting shall be provided in accordance with the building code of the city of Cincinnati and in addition, at least one artificial light of not less than forty watts shall be provided in each room or enclosure where services are performed on patrons which shall be in operation when such services are performed.

(4) Minimum ventilation shall be provided in accordance with the building code of the city of Cincinnati.

(5) Adequate equipment shall be provided for disinfecting and sterilizing instruments used in administering or practicing any of the subjects or methods of treatment listed in section 897-1-M-3.

(6) Hot and cold running water, tempered by means of a mixing valve faucet, shall be provided at all times.

(7) Closed cabinets shall be provided, and used, for the storage of clean linens.

(8) Adequate dressing and toilet facilities shall be provided for patrons. One dressing room, which may be the same as the massage treatment room. One toilet and one wash basin shall be provided by every massage establishment for every three treatment rooms. A minimum of one shower or tub shall be provided for any establishment offering colon therapy, colonics, or any hydrotherapy services, including whirlpool baths, saunas, steam baths, and herbal wraps. Each dressing room or treatment room shall contain a locker for each patron to be served, which locker shall be capable of being locked.

(9) Any pool or spa shall be issued a permit and inspected.

(10) All walls, ceilings, floors, showers, bathtubs, steam rooms, and all other physical facilities within the establishment must be in good repair and maintained in a clean and sanitary condition. Wet and dry heat rooms, steam or vapor rooms or cabinets, toilets and wash basins shall be thoroughly cleaned each day business is in operation. Shower compartments and bathtubs, where provided, shall be thoroughly cleaned after each use.

(11) Clean and sanitary sheets and towels shall be provided for each patron of the establishment. The head rest of each table shall be provided with a clean and sanitary covering for each patron.

(12) All wash basins within an establishment shall have hot and cold running water, tempered by means of a mixing valve faucet; provide sanitary towels placed in permanent installed dispensers or upon a permanently attached rod dispenser, and provide soap in a soap dispenser that is placed on or near the wash basin. A hand wash basin shall be provided in each treatment room providing colon therapy, colonics, or hydrotherapy services, including whirlpool bath saunas, steam baths and herbal wraps.

(Ordained by Ord. No. 232-1996, eff. Sept. 6, 1996)

Sec. 897-13. Display of License.

Every person, association, firm or corporation to whom a license shall have been granted shall display the license in a conspicuous place upon the business premises. If the license has been granted to a person, a recent photograph of the licensee shall be attached to the license.
(Ordained by Ord. No. 232-1996, eff. Sept. 6, 1996)

Sec. 897-15. Change of Location.

A change of location of a massage establishment may be approved by the city treasurer or such person as may be designated by the city treasurer, provided that all ordinances and regulations of the city are followed and a fee of $100.00 is paid to the city treasurer.
(Ordained by Ord. No. 232-1996, eff. Sept. 6, 1996)

Sec. 897-17. Renewal.

(a) Annually on or before the first day of January of each year, every licensed massage establishment shall pay to the city treasurer a renewal fee of $25.00.

(b) Annually, on or before the first day of January of each year, every licensed massage practitioner shall pay the city treasurer a renewal fee of $15.00.

(c) The holder of an expired massage practitioner license may, within thirty days from the date of expiration, have the license renewed upon payment of the required renewal fee.
(Ordained by Ord. No. 232-1996, eff. Sept. 6, 1996)

Sec. 897-19. Sale, Transfer or Expansion.

Upon the sale or transfer of any interest in a massage establishment, the license therefor shall be null and void. A new application shall be made by any person, association, firm or corporation desiring to own or operate the establishment. The provisions of sections 897-9 and 897-11 shall apply to any person, association, firm or corporation applying for a massage establishment permit for premises previously used as such establishment.
(Ordained by Ord. No. 232-1996, eff. Sept. 6, 1996)

Sec. 897-21. Other Unlawful Activities; General Penalty.

(a) It shall be unlawful:

(1) For any person, association, firm, or a corporation to conduct or operate a massage establishment on the same premises whereon is also conducted the business of a liquor establishment, photography studio, model studio, art studio, telephone answering service, motion picture theater or bookstore;

(2) For any person to practice or administer any subject or method of treatment listed in section 897-1-M-3, whether for fee, gratuity or compensation of any kind;

(i) In a manner or under circumstances intended to arouse, appeal to or gratify sexual desires; or

(ii) To any other person whose private parts are not covered by opaque material; or

(iii) In any way touch the genitals of the individual receiving the treatment.

(b) Whenever in this chapter 897 any act is prohibited or declared to be unlawful, and wherever in this chapter 897 the doing of any act is required or the failure to do any act(s) declared to be unlawful, the violation of any such provision of this chapter 897 is a misdemeanor of the first degree. Each day any such

violation continues shall constitute a separate offense. Revocation or suspension of a license shall not be a defense against prosecution.
(Ordained by Ord. No. 232-1996, eff. Sept. 6, 1996)

Sec. 897-23. Revocation, Suspension or Denial of License, Appeal; Grounds.

(a) The license of a massage practitioner or of a massage establishment may be revoked, suspended or denied renewal upon any one or more of the following grounds:

(1) That the licensee is guilty of fraud in conducting the business of massage practitioner or massage establishment or of fraud or deceit in obtaining a license to conduct such business;

(2) That the licensee has been convicted within the last 10 years in a court of competent jurisdiction of a felony, or any misdemeanor offense involving moral turpitude and having a reasonable relationship to the functions of a massage establishment licensee or a massage practitioner, whichever is applicable.

(3) That the licensee is guilty of untrue, fraudulent, misleading or deceptive advertising.

(4) That the licensee is engaged in the business of massage practitioner or massage establishment under a false or assumed name, or is impersonating another practitioner of a like or different name;

(5) That the licensee has violated any of the provisions of section 897.

(b) Notwithstanding the provisions of subsection (a) of this section, the license of a massage practitioner or a massage establishment shall be revoked or denied renewal if the licensee has been convicted of any offense committed outside this state or city which if committed in this state or city would constitute a felony, or any misdemeanor involving moral turpitude and having a reasonable relationship to the functions of a massage practitioner or a massage establishment licensee.

(c) Notwithstanding the provisions of subsection (a) of this section, the license of a massage establishment shall be revoked or denied renewal if within a 12 month period, a licensee or agent, employee or independent contractor of the massage establishment while on the premises of such establishment commits any felony offense, or any misdemeanor offense involving moral turpitude and having a reasonable relationship to the functions of a massage practitioner or a massage establishment licensee.

(d) If the city treasurer determines that probable grounds exist for denial, suspension, or revocation of a license under this division, the treasurer shall notify the applicant or licensee (respondent) in writing of the intent to deny, suspend or revoke the license, including the grounds therefor, by delivery, or by certified mail. The notification shall be directed to the most current business address on file with the city treasurer. Within ten working days of receipt of such notice, the respondent may provide to the city treasurer in writing a response which shall include a statement of reasons why the license or permit should not be denied, suspended, or revoked. If a response is not received by the city treasurer in the time stated or, if after review the city treasurer finds that grounds exist for denial, suspension, or revocation, then such action shall become final and notice of such final action sent to the applicant or licensee. If the city treasurer finds that no grounds exist for denial, suspension, or revocation of a license then the city treasurer shall withdraw the intent to deny, suspend, or revoke

the license and shall so notify the respondent in writing by delivery, or by certified mail of such action.

(e) When a decision to deny, suspend or revoke a license becomes final, the applicant or licensee whose application for a license has been denied or whose license has been suspended or revoked shall have the right to appeal such action within 14 working days to the city manager who shall have the authority to sustain, amend, or reverse the decision of the city treasurer.
(Ordained by Ord. No. 232-1996, eff. Sept. 6, 1996)

Sec. 897-25. Denial or Termination of License; Appeal.

(a) The denial, revocation or non-renewal of a massage practitioner license or a massage establishment license shall continue for one year and, the applicant or licensee shall not be issued a massage practitioner license or massage establishment license for one year from the date denial, revocation or non-renewal becomes effective; provided, however, that if the license was denied or revoked under section 897-23(c), an applicant shall not be granted another license at any time, and if the license was denied or revoked under sections 897-11(a) or (b), or 897-13, or 897-23(a)(2) or (b), an applicant shall not be granted another license until ten years have elapsed from the date of conviction.

(b) The suspension of a massage practitioner license or a massage establishment license shall continue for a specified period not to exceed one year.

(c) The fact that a conviction is being appealed or a judgment of guilt is subsequently set aside shall have no effect on the denial, suspension, revocation or non-renewal of a license under this article.
(Ordained by Ord. No. 232-1996, eff. Sept. 6, 1996)

Sec. 897-27. Applicability of Regulations to Existing Business.

The provisions of chapter 897 shall apply to all activities regulated by this chapter of such persons and businesses described herein, whether such activities were commenced before, on or after the effective date of this ordinance; provided however, that any person licensed as a massage practitioner prior to the effective date of this ordinance, by this city or any other licensing authority and having certification of satisfactory completion of course instruction in anatomy, physiology, or massage and touching techniques from a school or institution approved by the state medical board of Ohio or an equivalent board from outside this state, or accredited by an accrediting agency recognized by the United States department of education or the council on post secondary accreditation shall be eligible for a license under this article, provided they file an application within two years of the effective date of this ordinance and is otherwise qualified and complies with all other provisions set forth herein.
(Ordained by Ord. No. 232-1996, eff. Sept. 6, 1996)

Sec. 897-29. Exemptions.

(a) The provisions of this article shall not apply to:

(1) Persons authorized by the laws of this state to practice medicine, osteopathy, chiropractic, podiatry, or naturopathy;

(2) Registered nurses, licensed practical nurses or technicians, when acting under the supervision of a licensed physician or osteopath;

(3) Persons employed or acting as trainees for any bona fide amateur, semi-professional or professional athlete or athletic team;

(4) Persons authorized by the laws of this state as barbers or cosmetologists, provided their activity is limited to the head, face, or neck;

(5) Persons wholly employed in the sale of clothing, cosmetics, jewelry or sporting equipment insofar as these individuals must incidentally touch a customer to properly fit or sell the product, at its standard market price;

(6) Persons wholly engaged in specialized weight reduction techniques where touching of the body is incidental to the procedure;

(7) Persons duly licensed by the laws of this state and the Ohio State Medical Board as a "licensed massage therapist"; and

(8) Establishments in which all massage services rendered are provided only by persons who are exempted herein.

(b) Any exemption granted herein is effective only insofar as and to the extent that the bona fide practice of the business or profession of the person exempted overlaps into the field comprehended by chapter 897, and exemptions granted herein are solely for those activities which are performed in the course of the bona fide practice of the business or profession of the person exempted.

(Ordained by Ord. No. 232-1996, eff. Sept. 6, 1996; a. Ord. No. 395-2011, § 1, eff. Jan. 14, 2012)

Chapter 898

ESCORTS AND ESCORT SERVICES

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Sec. 898-25. Revocation of License, Grounds and Procedure; Appeal.
Sec. 898-27. Applicability of Regulations to Existing Businesses.
Sec. 898-29. Penalty.

Sec. 898-1. Definitions.

The following words and phrases, wherever used in this chapter, shall be construed as defined in this section unless from the context a different meaning is intended.
(Ordained by Ord. No. 233-1996, eff. Sept. 6, 1996)

Sec. 898-1-C. City Treasurer.

"City Treasurer" shall mean the city treasurer of the city of Cincinnati or such other person as may be designated by the city treasurer.
(Ordained by Ord. No. 233-1996, eff. Sept. 6, 1996)

Sec. 898-1-C-1. Consideration.

"Consideration" shall mean money or money's worth.
(Ordained by Ord. No. 233-1996, eff. Sept. 6, 1996)

Sec. 898-1-E. Escort.

"Escort" shall mean any person who for monetary consideration in the form of a fee, commission or salary, is held out to the public as available for hire to consort with or to accompany another or others to social affairs, places of amusement or entertainment within any place of public resort, or within any private quarters.
(Ordained by Ord. No. 233-1996, eff. Sept. 6, 1996)

Sec. 898-1-E-1. Escort Service.

"Escort Service" shall mean any person who for a fee, commission, profit, payment or other monetary consideration, furnishes, refers, or offers to furnish or refer escorts, or provides, or offers to introduce, patrons to escorts.
(Ordained by Ord. No. 233-1996, eff. Sept. 6, 1996)

Sec. 898-1-E-2. Escort Service Runner.

"Escort Service Runner" shall mean any person, not an escort, who for a salary, fee, hire, reward, or profit, as the agent for either an escort service, or a patron, contacts or meets with escort patrons or an escort service at any location other than the established open office, as defined hereunder, whether that person is employed by the escort service, or any business, or is self-employed.
(Ordained by Ord. No. 233-1996, eff. Sept. 6, 1996)

Sec. 898-1-L. Licensee.

"Licensee" shall mean a person who is the holder of a valid license under this ordinance. A licensee includes an agent, servant, employee or other person while acting on behalf of that licensee whenever such licensees are or would be prohibited from doing or performing an act or acts under this chapter.
(Ordained by Ord. No. 233-1996, eff. Sept. 6, 1996)

Sec. 898-1-O. Offer to Provide Acts or Sexual Conduct.

"Offer to Provide Acts" or "Sexual Conduct" shall mean to offer, propose or solicit to provide sexual conduct to a patron. Such definitions include all conversations, advertisement and acts which would lead a reasonably prudent person to conclude that such acts were to be provided.
(Ordained by Ord. No. 233-1996, eff. Sept. 6, 1996)

Sec. 898-1-O-1. Open Office.

"Open Office" shall mean an office at the licensed escort service address from which escort business is transacted; to qualify as an open office it is required that:

(a) Business hours be established and posted and that the office is open to the public and patrons or prospective

patrons during such business hours and that the office is accessible to business invitees, business license officials and law enforcement officers during hours that escorts are working;

(b) The office be managed by the owner or a management employee of the owner having authority to bind the escort service to escort and patron contracts and to adjust patron and consumer complaints;

(c) All telephone lines and numbers listed to the escort service, or advertised as escort service numbers, terminate at the open office and at no other location;

(d) An index of all employees and escorts is kept in the open office;

(e) All business records be kept in the open office including records of escort calls and referrals, stating the name and address, including hotel or motel room, of the patron, the date and time of referral, name of the escort sent and whether the referral resulted in an escort service and the total fee received from the patron, if any.

(Ordained by Ord. No. 233-1996, eff. Sept. 6, 1996)

Sec. 898-1-P. Person.

"Person" shall mean any individual, or any firm, partnership, corporation or association of any kind.

(Ordained by Ord. No. 233-1996, eff. Sept. 6, 1996)

Sec. 898-1-P-1. Person Financially Interested.

"Person Financially Interested" shall mean, for the corporation, any person who is an officer or a director or any shareholder holding more than 5% of the shares thereof, for a non-corporate business, any person who shares in any financial gain attributable to the business as a proprietor or owner or on the basis of a percentage in excess of 5% of gross or 10% of net revenue.

(Ordained by Ord. No. 233-1996, eff. Sept. 6, 1996)

Sec. 898-1-S. Service Oriented Escort.

"Service Oriented Escort" shall mean an escort who:

(a) Operates from an open office; and

(b) Does not employ or use an escort service runner; and

(c) Does not advertise that sexual conduct will be provided or work for an escort service which so advertises; and

(d) Does not offer, solicit, agree to provide, or provide sexual conduct.

(Ordained by Ord. No. 233-1996, eff. Sept. 6, 1996)

Sec. 898-1-S-1. Service Oriented Escort Service.

"Service Oriented Escort Service" shall mean an escort bureau which:

(a) Maintains an open office at an established place of business; and

(b) Does not use an escort bureau runner; and

(c) Does not advertise, offer, solicit, agree to, or provide sexual conduct to a patron; and

(d) Employs or provides only escorts who possess escort identification cards.

(Ordained by Ord. No. 233-1996, eff. Sept. 6, 1996)

Sec. 898-1-S-2. Sexual Conduct.

"Sexual Conduct" shall mean engaging in or the commission of an act of sexual intercourse, oral-genital contact, or the touching

of the sexual organs, pubic region, buttock or female breast of a person for the purpose of amusing or gratifying sexual desire of another person.
(Ordained by Ord. No. 233-1996, eff. Sept. 6, 1996)

Sec. 898-1-S-3. Sexual Gratification.

"Sexual Gratification" shall mean sexual conduct as defined herein.
(Ordained by Ord. No. 233-1996, eff. Sept. 6, 1996)

Sec. 898-1-S-4. Sexually Oriented Acts.

"Sexually Oriented Acts" shall mean sexual conduct as defined herein.
(Ordained by Ord. No. 233-1996, eff. Sept. 6, 1996)

Sec. 898-1-S-5. Sexually Oriented Escort.

"Sexually Oriented Escort" shall mean an escort who:

(a) Employs an escort service runner as an employee, agent or independent contractor; or

(b) Works for, as an agent, employee or independent contractor, or is referred to a patron by a sexually oriented escort service; or

(c) Advertised that sexual conduct will be provided or works for as an agent, employee or independent contractor or is referred to a patron by an escort service which so advertised; or

(d) Solicits, offers, agrees to provide or does provide acts or sexual conduct to an escort patron; or

(e) Accepts an offer or solicitation to provide acts of sexual conduct for a fee in addition to the fee charged by the escort service.

(Ordained by Ord. No. 233-1996, eff. Sept. 6, 1996)

Sec. 898-1-S-6. Sexually Oriented Escort Service.

"Sexually Oriented Escort Service" shall mean an escort service which:

(a) Engages in advertising to make the prospective patron believe that acts of sexual conduct or sexual stimulation will be provided; or

(b) uses as escorts persons known to have violated the law regarding prostitution; or

(c) does not maintain an open office; or

(d) employs as an employee, agent or independent contractor or uses an escort service runner; or

(e) advertises that sexual conduct will be provided or that escorts which provide such sexual conduct will be provided, referred, or introduced to a patron; or

(f) solicits, offers or agrees to provide or does provide acts or sexual conduct to a patron; or

(g) employs, contracts with, or provides or refers escorts who do not possess escort identification cards as required herein; or

(h) does not deliver contracts to every patron or customer; or

(i) employs, contracts with, or refers or provides to a patron, a sexually oriented escort.

(Ordained by Ord. No. 233-1996, eff. Sept. 6, 1996)

Sec. 898-1-S-7. Sexual Stimulation.

"Sexual Stimulation" shall mean to excite or arouse the prurient interest or to offer or solicit acts of sexual conduct as defined under "offer to provide acts or sexual conduct".
(Ordained by Ord. No. 233-1996, eff. Sept. 6, 1996)

Sec. 898-3. Escort Service License Required.

It shall be unlawful for any person to work or perform services in the City of Cincinnati such as, conduct, manage, operate or maintain an escort service unless licensed pursuant to this section. It shall also be unlawful for any person to work or perform services as, conduct, operate, manage, or maintain a sexually oriented escort service regardless of license. A separate license is required for each location and name by which the escort service conducts business or advertises.
(Ordained by Ord. No. 233-1996, eff. Sept. 6, 1996)

Cross reference—Penalty, § 898-29.

Sec. 898-5. License Nontransferability.

The term of a license issued pursuant to the provisions of this section is one year. All licenses issued pursuant to this section are nontransferable.
(Ordained by Ord. No. 233-1996, eff. Sept. 6, 1996)

Sec. 898-7. Application for Escort Service License; Contents; Required Fees.

(a) An applicant for an escort service license shall file an application with the city treasurer accompanied by a non-refundable application fee.

(b) Unless otherwise provided in this chapter, the application shall contain the name and address of the activity and the following information about the applicant, any person financially interested in the activity to be licensed, any authorized local agents, and any managing employee of the activity to be licensed:

(1) The name, including any aliases, business trade names or styles;

(2) Present residence and business addresses and telephone number, as applicable;

(3) Each residence and business address for the five-year period immediately preceding the date of filing of the application and the inclusive dates of each such address;

(4) Ohio driver's license;

(5) Valid proof of age and that the applicant is at least 18 years of age;

(6) Height, weight, color of eyes and hair and date of birth;

(7) Two current 2" × 2" photographs;

(8) The business, occupation or employment history for the three-year period immediately preceding the date of the filing of the application;

(9) Information as to whether such individual or business has ever been refused any similar license or permit or has had any similar license or permit issued to such individual or business in Cincinnati or elsewhere revoked or suspended, and the reason or reasons therefor;

(10) All prior criminal convictions excepting minor traffic offenses;

(11) Fingerprints;

(12) If the applicant is a corporation, the name of the corporation shall be set forth exactly as shown in its articles of incorporation or charter together with the state and date of incorporation, and the names, residence addresses, and dates of birth of each of its current officers and directors, and each stockholder holding more than 5% of the stock in the corporation. If the applicant is a partnership, the applicant shall set forth the names, residence addresses and dates or birth of

each of the partners, including limited partners and profit interest holders. If the applicant is a limited partnership, the applicant shall furnish a copy of the certificate of limited partnership. If one or more of the partners is a corporation, the provisions of this subsection pertaining to corporations shall apply. The corporation or partnership applicant shall designate one of its officers or general partners to act as its responsible managing officer. Such designated person shall complete and sign all application forms required of an individual applicant under this ordinance, but only one application fee shall be charged;

(13) A description of any service to be provided together with a declaration that the services to be provided shall not involve those of a sexually oriented escort or escort service;

(14) The names and residential addresses of all persons employed as escorts.

(c) The city treasurer shall have a reasonable period of time in which to investigate the application and background of the applicant and process the application through various city departments.

(d) The city treasurer shall grant the license upon the following circumstances:

(1) The required fees have been paid;

(2) The application conforms in all respects to the provisions of this section;

(3) The applicant has not made a material misrepresentation of fact in the application;

(4) That neither the applicant, if an individual; nor any person financially interested if a corporation; nor any of the partners, including limited partners, nor the holder of any profit interest, nor the manager or other person principally in charge of the operation of the existing or proposed escort service, nor any individual employed or contracted with to be an escort or to provide escort services has been convicted of, pleaded nolo contendere to or guilty to any felony, or to a misdemeanor involving moral turpitude, within five years prior to the issuance of the license;

(5) The applicant has not had a license similar to the one issued pursuant to the provisions of this chapter issued by another authority, suspended or revoked within the five-year period immediately preceding the date of the filing of the application;

(6) The escort service complies with all applicable laws of the city of Cincinnati and state of Ohio; and

(7) The applicant, manager or other person principally in charge of the operation of the business is at least 18 years of age.

(e) The city treasurer shall deny the license application if all of the requirements set forth in subsections (d)(1) through (7) of this section have not been met. In the event of denial, the applicant shall be notified by mail of the denial and the reasons therefor. The applicant may appeal such denial to the city manager who shall have the authority to sustain, amend or reverse the decision of the city treasurer.
(Ordained by Ord. No. 233-1996, eff. Sept. 6, 1996)

Sec. 898-9. Escorts, Unlawful to Work.

It shall be unlawful for any person to work or perform services as an escort within the city of Cincinnati unless employed by a licensed escort service or licensed as an escort service. It shall also be unlawful for any

person to work or perform services as a sexually oriented escort, regardless of license.
(Ordained by Ord. No. 233-1996, eff. Sept. 6, 1996)
Cross reference—Penalty, § 898-29.

Sec. 898-11. Escort Identification Card.

Each escort service licensee shall be issued identification cards in its name and in the names of each person who shall engage in the activity of an escort on its behalf. This card must be carried on the person of any individual while such person is engaged in the activity of an escort within the city of Cincinnati. Such identification card shall be displayed upon request of any Cincinnati police officer or other law enforcement official.
(Ordained by Ord. No. 233-1996, eff. Sept. 6, 1996)
Cross reference—Penalty, § 898-29.

Sec. 898-13. Escort Service Duties.

(a) The escort service shall provide to each patron a written contract and receipt of payment for services. The contract shall clearly state the type of services to be performed, the length of time such services shall be performed, the total amount of money such services shall cost the patron, and any special terms or conditions relating to the service to be performed.

(b) The escort service shall maintain an open office at the licensed location. The address of that office shall be included in all patron contracts and published advertisements. Private rooms or booths where the patron may meet with the escort shall not be provided at the open office or at any other location by the escort service.

(c) The escort service, in terms of licensing consequences, is responsible and liable for the acts of all its employees and subcontractors including but not limited to, telephone receptionists and escorts who are referred by that service while the escort is with the patron.
(Ordained by Ord. No. 233-1996, eff. Sept. 6, 1996)
Cross reference—Penalty, § 898-29.

Sec. 898-15. Advertising Without a License.

It is unlawful to advertise or hold out to the public the availability of an escort or escort service without obtaining a license therefore as provided in this section, whether the actual business of escorts or escort service as defined in this chapter is performed. The escort service license number must be prominently displayed in such advertisement.
(Ordained by Ord. No. 233-1996, eff. Sept. 6, 1996)
Cross reference—Penalty, § 898-29.

Sec. 898-17. Information Update.

Any changes in information required to be submitted by this section must be given to the city treasurer within ten days of any such change.
(Ordained by Ord. No. 233-1996, eff. Sept. 6, 1996)
Cross reference—Penalty, § 898-29.

Sec. 898-19. Prohibited Activities.

It shall be unlawful for a licensee to provide escort services as described in this section to individuals under 18 years of age unless written authorization by a parent or legal guardian is issued to the escort when acting as such.
(Ordained by Ord. No. 233-1996, eff. Sept. 6, 1996)
Cross reference—Penalty, § 898-29.

Sec. 898-21. Renewal of Licenses.

Any license issued pursuant to the provisions of this chapter which has not been

suspended or revoked, may be renewed for a period of time not to exceed one year on written application to the city treasurer made at least 45 days prior to the expiration date of the current valid license. The renewal application shall be on a form provided by the treasurer and shall contain all of the information required by section 898-9.
(Ordained by Ord. No. 233-1996, eff. Sept. 6, 1996)

Sec. 898-23. Fees.

A non-refundable application fee in the amount to be determined by the city treasurer as sufficient to cover the costs of this program shall accompany each application for an escort or for an escort service. Upon approval an initial license fee of $300.00shall be assessed. An annual renewal fee of $300.00 shall accompany each renewal application.
(Ordained by Ord. No. 233-1996, eff. Sept. 6, 1996; Emer. Ord. 463-2010, § 55, eff. Dec. 30, 2010)

Sec. 898-25. Revocation of License, Grounds and Procedure; Appeal.

(a) Any license issued pursuant to this section shall be revoked upon any one or more of the following grounds:

(1) The licensee, any employee, agent, or any other person connected or associated with the license as a partner, director, officer, stockholder or manager, or any "person financially interested" as defined in section 898-1-P-1, has violated any provision of this section in conducting an activity licensed under the provisions of this chapter.

(2) The licensee, any employee, agent or any other person connected or associated with the licensee as a partner, director, officer, stockholder or manager, or any "person financially interested" as defined in section 898-1-P-1 has made a material misrepresentation of fact in the application for any license required in this chapter.

(3) The licensee has been convicted, subsequent to the issuance of any license of a crime which is either a felony or a misdemeanor involving moral turpitude or has offered or agreed to or rendered the service of a sexually oriented escort.

(4) The licensee has violated a provision of this section in conducting a licensed activity pursuant to this section.

(5) The licensee is a corporation and is not or is no longer qualified to transact business in the state of Ohio.

(b) To revoke a license, the city treasurer shall notify the licensee in writing by mail to the address as shown on the application or otherwise more recently of record, that said license or permit is revoked. The cause for such revocation shall be set forth in the notice. Service shall be complete upon mailing to the address of record, in the office of the city treasurer.

(c) Except as otherwise provided in this section, the license shall terminate if the licensee fails to pay any taxes owed to the city, or licensee fee owed either when due or by the end of any renewal period.

(d) Appeals from the revocation or termination of a license as provided for in this section may be appealed to the city manager for the city of Cincinnati who shall be authorized to amend, sustain or reverse the decision of the treasurer.

(e) A revoked license shall be surrendered to the city treasurer on demand at the expiration of the appeals process.
(Ordained by Ord. No. 233-1996, eff. Sept. 6, 1996)

Sec. 898-27. Applicability of Regulations to Existing Businesses.

The provisions of this section shall be applicable to all persons and activities described herein whether the herein described activities were established before or after the effective date of the ordinance enacting this section into law. All such persons and businesses shall have 60 days from said effective date hereof to comply with the provisions of this chapter.
(Ordained by Ord. No. 233-1996, eff. Sept. 6, 1996)

Sec. 898-29. Penalty.

The commission of any act declared to be unlawful in this chapter is a misdemeanor of the first degree.
(Ordained by Ord. No. 233-1996, eff. Sept. 6, 1996)

Chapter 899

SEXUALLY ORIENTED BUSINESSES AND EMPLOYEES*

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*__Cross reference—__Zoning code of the City of Cincinnati, tit. XIV.

Sec. 899-1. Definitions.

For purposes of this chapter, the words and phrases defined in the sections hereunder shall have the meanings therein respectively ascribed to them unless a different meaning is clearly indicated by the context.
(Ordained by Ord. No. 230-1996, eff. Sept. 6, 1996)

Sec. 899-1-A. Adult Arcade.

"Adult arcade" shall mean any place to which the public is permitted or invited wherein coin-operated or slug-operated or electronically, electrically, or mechanically controlled still or motion picture machines, projectors, or other image-producing devices are regularly maintained to show images to five or fewer persons per machine at any one time, and where the images so displayed are distinguished or characterized by an emphasis on exhibiting or displaying "specified sexual activities" or "specified anatomical areas."
(Ordained by Ord. No. 230-1996, eff. Sept. 6, 1996; a. Ord. No. 31-1998, eff. Jan. 28, 1998; a. Ord. No. 250-2002, eff. June 26, 2002)

Sec. 899-1-A1. Adult Bookstore or Adult Video Store.

"Adult Bookstore" or "Adult Video Store" means a commercial establishment which, as one of its principal business activities, offers for sale or rental for any form of consideration any one or more of the following: books, magazines, periodicals or other printed matter, or photographs, films, motion pictures, video cassettes, compact discs, digital video discs, slides, or other visual representations which are characterized by their emphasis upon the display of "specified sexual activities" or "specified anatomical areas." A "principal business activity" exists where the commercial establishment meets any one or more of the following criteria:

(a) At least 35% of the establishment's displayed merchandise consists of said items; or

(b) At least 35% of the establishment's revenues derive from the sale or rental, for any form of consideration, of said items; or

(c) The establishment maintains at least 35% of its floor space for the display, sale, and/or rental of said items (aisles and walkways used to access and purchase said items shall be included in "floor space" maintained "for the display, sale, and/or rental of said items"); or

(d) The establishment maintains at least five hundred square feet (500 sq. ft.) of its floor space for the display, sale, and/or rental of said items (aisles and walkways used to access and purchase said items shall be included in "floor space" maintained "for the display, sale, and/or rental of said items"); or

(e) The establishment regularly offers for sale or rental at least one thousand (1,000) of said items; or

(f) The establishment regularly offers said items and regularly advertises itself or holds itself out, by using "adult," "adults-only,' "XXX," "sex," "erotic," "novelties," or substantially similar language, as an establishment that caters to adult sexual interests.

(Ordained by Ord. No. 230-1996, eff. Sept. 6, 1996; a. Ord. No. 9-1998, eff. Jan. 12, 1998; a. Ord. No. 250-2002, eff. June 26, 2002; Emer. Ord. 083-2011, § 1, eff. March 16, 2011)

Sec. 899-1-A2. Adult Cabaret.

"Adult cabaret" means a nightclub, bar, juice bar, restaurant bottle club, or similar commercial establishment, whether or not alcoholic beverages are served, which regularly features: (a) persons who appear seminude: (b) live performances which are characterized by any "specified sexual activities,"

or (c) films, motion pictures, video cassettes, slides, or other photographic reproductions which are distinguished or characterized by an emphasis on exhibiting or displaying "specified sexual activities" or "specified anatomical areas."
(Ordained by Ord. No. 230-1996, eff. Sept. 6, 1996; a. Ord. No. 31-1998, eff. Jan. 28, 1998; a. Ord. No. 250-2002, eff. June 26, 2002)

Sec. 899-1-A3. Adult Motel.

"Adult motel" means a motel, hotel, or similar commercial establishment which: (a) offers public accommodations, for any form of consideration, which provides patrons with closed-circuit television transmissions, films, motion pictures, video cassettes, slides, or other photographic reproductions which are characterized by the depiction or description of "specified sexual activities" or "specified anatomical areas" and which advertises the availability of this sexually oriented type of material by means of a sign visible from the public right-of-way, or by means of any off-premises advertising, including but not limited to, newspapers, magazines, pamphlets or leaflets, radio or television, or (b) offers a sleeping room for rent for a period of time less than ten (10) hours; or (c) allows a tenant or occupant to sub-rent the sleeping room for a time period of less than ten (10) hours.
(Ordained by Ord. No. 230-1996, eff. Sept. 6, 1996; a. Ord. No. 31-1998, eff. Jan. 28, 1998)

Sec. 899-1-A4. Adult Motion Picture Theater.

"Adult motion picture theater" means a commercial establishment where films, motion pictures, video cassettes, slides, or similar photographic reproductions which are distinguished or characterized by an emphasis on exhibiting or displaying "specified sexual activities" or "specified anatomical areas" are regularly shown for any form of consideration.
(Ordained by Ord. No. 31-1998, eff. Jan. 28, 1998; a. Ord. No. 250-2002, eff. June 26, 2002)

Sec. 899-1-A5. Adult Theater.

"Adult theater" means a theater, concert hall, auditorium, or similar commercial establishment which, for any form of consideration, regularly features persons who appear in a state of semi-nudity or live performances which are characterized by any "specified sexual activities."
(Ordained by Ord. No. 31-1998, eff. Jan. 28, 1998; a. Ord. No. 250-2002, eff. June 26, 2002)

Sec. 899-1-A6. Semi-Nude Model Studio.

"Semi-Nude Model Studio" means any place where a person, who regularly appears in a state of semi-nudity is provided for money or any form of consideration to be observed, sketched, drawn, painted, sculptured, photographed, or similarly depicted by other persons.

It is a defense to prosecution for any violation of this ordinance that a person appearing in a state of nudity or semi-nudity did so in a modeling class operated:

1. By a college, junior college, or university supported entirely or partly by taxation;
2. By a private college or university which maintains and operates educational programs in which credits are transferable to a college, junior college, or university supported entirely or partly by taxation; or:
3. In a structure:
    a. Which has no sign visible from the exterior of the structure and no other advertising that indicates a semi-nude person is available for viewing; and
    b. Where, in order to participate in a class a student must enroll at least three days in advance of the class; and

c. Where no more than one semi-nude model is on the premises at any one time.

(Ordained by Ord. No. 31-1998, eff. Jan. 28, 1998)

Sec. 899-1-A7. Sexual encounter establishment.

"Sexual encounter establishment" means a business or commercial establishment, that as one of its principal business purposes, offers for any form of consideration, a place where two or more persons may congregate, associate, or consort for the purpose of engaging in or viewing live "specified sexual activities" or when one or more of the persons is semi-nude or in a state of nudity. The definition of sexual encounter establishment shall not include an establishment where a medical practitioner, psychologist, psychiatrist, or similar professional person licensed by the state engages in medically approved and recognized sexual therapy.

(Ordained by Ord. No. 31-1998, eff. Jan. 28, 1998; a. Ord. No. 250-2002, eff. June 26, 2002)

Sec. 899-1-A8. Regularly.

"Regularly" means the consistent and repeated doing of an act on an ongoing basis.

(Ordained by Ord. No. 250-2002, eff. June 26, 2002; Emer. Ord. 083-2011, § 1, eff. March 16, 2011)

Sec. 899-1-A9. Feature.

"Feature" means to give special prominence to.

(Ordained by Emer. Ord. 083-2011, § 3, eff. March 16, 2011)

Sec. 899-1-A10. Sexual Device.

"Sexual Device" has the same meaning as in § 2907.40 of the Ohio Revised Code.

(Ordained by Emer. Ord. 083-2011, § 3, eff. March 16, 2011)

Sec. 899-1-A11. Sexual Device Shop.

"Sexual Device Shop" has the same meaning as in § 2907.40 of the Ohio Revised Code.

(Ordained by Emer. Ord. 083-2011, § 3, eff. March 16, 2011)

Sec. 899-1-C. City Treasurer or Treasurer; City Manager.

"City Treasurer" or "Treasurer" shall mean the city treasurer of the city of Cincinnati or such people as may be designated by the city treasurer. City Manager shall mean the city manager of the city of Cincinnati or such person as may be designated by the city manager pursuant to section 899-19.

(Ordained by Ord. No. 230-1996, eff. Sept. 6, 1996; a. Ord. No. 250-2002, eff. June 26, 2002)

Sec. 899-1-E. Employ, Employee, and Employment.

Describing and pertaining to any person who performs any service on the premises of a sexually oriented business, on a full time, part time or contract basis, whether or not the person is denominated an employee, independent contractor, agent, or otherwise. "Employee" does not include a person exclusively on the premises for repair or maintenance of the premises or for the delivery of goods to the premises.

(Ordained by Ord. No. 230-1996, eff. Sept. 6, 1996; a. Ord. No. 31-1998, eff. Jan. 28, 1998; a. Ord. No. 250-2002, eff. June 26, 2002)

Sec. 899-1-E1. Established or Establishment.

"Established" or "Establishment" shall mean and include any of the following:

(a) The opening or commencement of any sexually oriented business as a new business;

(b) The conversion of an existing business, whether or not a sexually oriented business, to any sexually oriented business;

(c) The addition of any sexually oriented business to any other existing sexually oriented business; or

(d) The relocation of any sexually oriented business.

(Ordained by Ord. No. 230-1996, eff. Sept. 6, 1996)

Sec. 899-1-L. Licensee

"Licensee" shall mean a person in whose name a license to operate a sexually oriented business has been issued, as well as the individual or individuals listed as an applicant on the application for a sexually oriented business license.

(Ordained by Ord. No. 230-1996, eff. Sept. 6, 1996)

Sec. 899-1-N. Nonporous.

"Nonporous" shall exclude any wood, plywood, composition board or other porous material.

(Ordained by Ord. No. 230-1996, eff. Sept. 6, 1996)

Sec. 899-1-N1. Nudity or a State of Nudity.

"Nudity" or a "State of Nudity" shall mean:

(a) The appearance of the cleft of the buttocks, anus, male genitals, female genitals, or areola of the female breast; or

(b) A state of dress which fails to opaquely cover the cleft of the buttocks, anus, male genitals, female genitals, or areola of the female breast.

(Ordained by Ord. No. 230-1996, eff. Sept. 6, 1996)

Sec. 899-1-O. Operate or Cause to be Operated; Operator.

"Operate" or "Cause to be Operated" shall mean to cause to function or to put or keep in operation. "Operator" means any persons on the premises of a sexually oriented business who is authorized to exercise overall operational control of the business or who causes to function or who puts or keeps in operation the business. A person may be found to be operating or causing to be operated a sexually oriented business regardless of whether that person is an owner, part owner, or licensee of the business.

(Ordained by Ord. No. 230-1996, eff. Sept. 6, 1996; a. Ord. No. 250-2002, eff. June 26, 2002)

Sec. 899-1-P. Person.

"Person" shall mean an individual, proprietorship, partnership, corporation, association, or other legal entity.

(Ordained by Ord. No. 230-1996, eff. Sept. 6, 1996)

Sec. 899-1-S. Semi-nude or Semi-nudity.

"Semi-Nude" or "Semi-Nudity" means the showing of the female breast below a horizontal line across the top of the areola and extending across the width of the breast at that point, or the showing of the male or female buttocks. This definition shall include the lower portion of the human female breast, but shall not include any portion of the cleavage of the human female breasts exhibited by a bikini, dress, blouse, shirt, leotard, or similar wearing apparel provided the areola is not exposed in whole or in part.

(Ordained by Ord. No. 230-1996, eff. Sept. 6, 1996; a. Ord. No. 250-2002, eff. June 26, 2002; Emer. Ord. 083-2011, § 1, eff. March 16, 2011)

Sec. 899-1-S1. Sexually Oriented Business.

"Sexually Oriented Business" means an adult arcade, adult bookstore, adult video

store, adult cabaret, adult motel or adult entertainment out-call service in the form of semi-nude dancing or exhibition, adult motion picture theater, adult theater, semi-nude model studio, or sexual device shop.
(Ordained by Ord. No. 230-1996, eff. Sept. 6, 1996; a. Ord. No. 9-1998, eff. Jan. 12, 1998; a. Ord. No. 31-1998, eff. Jan. 28, 1998; a. Ord. No. 250-2002, eff. June 26, 2002; Emer. Ord. 083-2011, § 1, eff. March 16, 2011)

Sec. 899-1-S2. Specified Anatomical Areas.

"Specified anatomical areas" shall mean: (a) human genitals in a state of sexual arousal, (b) the appearance of the cleft of the buttocks, anus, male or female genitals, or areola of the female breast.
(Ordained by Ord. No. 230-1996, eff. Sept. 6, 1996; a. Ord. No. 250-2002, eff. June 26, 2002)

Sec. 899-1-S3. Specified Sexual Activity.

"Specified Sexual Activity" shall have the same meaning as "sexual activity," as defined in Ohio Revised Code Section 2907.01(C).
(Ordained by Ord. No. 230-1996, eff. Sept. 6, 1996)

Sec. 899-1-T. Transfer of Ownership or Control.

"Transfer of Ownership or Control" of a sexually oriented business shall mean any of the following:

(a) The sale, lease, or sublease of the business;

(b) The transfer of securities which constitute a controlling interest in the business, whether by sale, exchange, or similar means; or

(c) The establishment of a trust, gift, or other similar legal device which transfers the ownership or control of the business, except for transfer by bequest or other operation of law upon the death of the person possessing the ownership or control.

(Ordained by Ord. No. 230-1996, eff. Sept. 6, 1996)

Sec. 899-1-V. Viewing Room.

"Viewing Room" shall mean the room, booth, or area where a patron of a sexually oriented business would ordinarily be positioned while watching a film, video cassette, or other video reproduction.
(Ordained by Ord. No. 230-1996, eff. Sept. 6, 1996)

Sec. 899-3. Classification.

Sexually oriented business shall be classified as follows:

(1) Adult arcades;

(2) Adult bookstores, adult video stores;

(3) Adult cabarets;

(4) Adult motels;

(5) Adult entertainment out-call service in the form of semi-nude dancing or exhibition;

(6) Adult motion picture theaters;

(7) Adult theaters;

(8) Semi-nude model studios;

(9) Sexual device shops.

(Ordained by Ord. No. 230-1996, eff. Sept. 6, 1996; a. Ord. No. 9-1998, eff. Jan. 12, 1998; a. Ord. No. 31-1998, eff. Jan. 28, 1998; a. Ord. No. 250-2002, eff. June 26, 2002; Emer. Ord. 083-2011, § 1, eff. March 16, 2011)

Sec. 899-5. License Required.

(a) It shall be unlawful for any person to operate a sexually oriented business or to conduct such services in the city of Cincinnati without a valid sexually oriented business license, issued by the city for the partic-

ular type of business, or to employ an employee as defined in Section 899-1-E who is not licensed as a sexually oriented business employee as provided by Subsection (b) of this section or who is not authorized to work or perform services pursuant to Subsection (c) of this section.

(b) Except as provided in Subsection (c) of this section, it shall be unlawful for any person to be an employee of a sexually oriented business in the city of Cincinnati without a valid license.

(c) An applicant, upon receipt by the city treasurer of his or her application for a sexually oriented business employee license, may work or perform services without an employee license until such time as the license is granted or the decision to deny the license becomes final pursuant to Section 899-19. Upon receipt of the applicant's completed application for an employee's license, the city treasurer shall issue the applicant a temporary work permit. The applicant shall keep the temporary work permit on his or her person or on the premises where the applicant is then working or performing services, and produce such permit for inspection upon request by a law enforcement officer or other authorized city official.

(d) An applicant for a sexually oriented business license or a sexually oriented business employee license shall file in person at the office of the city treasurer an application made on a form prescribed and provided by the city treasurer. The applicant shall be qualified according to the provisions of this chapter. The application shall be signed under oath by the applicant and notarized. The application shall contain the information called for in Paragraphs (d)(1) through (6) as follows. An application will be deemed completed when it contains the information required in this subsection.

(1) The full true name and any other names used in the preceding five years.

(2) Current business addresses and telephone numbers.

(3) If the application is for a sexually oriented business license, the name, business location, business mailing address and phone number of the proposed sexually oriented business.

(4) Written proof of age, in the form of a birth certificate, current Ohio drivers' license with picture, or other picture identification document issued by a governmental agency.

(5) Two (2) identical, passport-quality photographs of the applicant, approximately two (2) inches by two (2) inches in size, taken within the preceding month.

(6) If the application is for a sexually oriented business license, the name and address of the statutory agent or other agent authorized to receive service of process. The information provided pursuant to Paragraphs (d)(1) through (6) of this subsection shall be supplemented in writing by certified mail, return receipt requested, to the city treasurer within ten working days of a change of circumstances which would render the information originally submitted false or incomplete.

(e) The application for a sexually oriented business license shall be accompanied by a sketch or diagram showing the configuration of the premises, including a statement of total floor space occupied by the business. The sketch or diagram need not be professionally prepared but shall be drawn to a designated scale or drawn with marked dimensions of the interior of the premises to an accuracy of plus or minus six inches. Applicants who are required to comply with Section 899-25 of this chapter shall submit a diagram meeting the requirements of Section 899-25.

(f) If a person who wishes to operate a sexually oriented business is an individual, he shall sign the application for a license as applicant. If a person who wishes to operate a sexually oriented business is other than an individual, each officer, director, general partner or other person who will participate directly in decisions relating to management of the business shall sign the application for a license as applicant. Each applicant must be qualified under Section 899-7 and each applicant shall be considered a licensee if a license is granted.

(g) A person who possesses a valid video center license or theater license is not exempt from the requirement of obtaining a sexually oriented business license. A person who operates a sexually oriented business and possesses a video center license or theater license shall comply with the requirements and provisions of this Chapter 899 when applicable.

(h) The information provided by an applicant in connection with the application for a license under this chapter shall be maintained by the city treasurer on a confidential basis, except that such information may be disclosed only to other governmental agencies in connection with a law enforcement or public safety function, or as may otherwise be required by law.
(Ordained by Ord. No. 230-1996, eff. Sept. 6, 1996; a. Ord. No. 366-1997, eff. Nov. 21, 1997; a. Ord. No. 31-1998, eff. Jan. 28, 1998; a. Ord. No. 250-2002, eff. June 26, 2002)

Sec. 899-7. Issuance of License.

(a) The city treasurer shall approve or deny the issuance of a license to an applicant for a sexually oriented business license or a sexually oriented business employee license within thirty (30) days after receipt of a completed application. The city treasurer shall approve the issuance of a license unless one or more of the following is found to be true.

(1) An applicant is less than eighteen (18) years of age.

(2) An applicant or an applicant's spouse is delinquent in the payment to the city of taxes, fees, fines, or penalties assessed against or imposed upon the applicant or the applicant's spouse in relation to a sexually oriented business.

(3) An applicant has failed to provide information as required by Section 899-5 for issuance of the license or has falsely answered a question or request for information on the application form.

(4) An applicant; an applicant's spouse; a business entity for which the applicant had, at the time of an offense leading to a criminal conviction described herein, a management responsibility or a controlling interest; or a business entity which is a "related member" of the applicant (as "related member" is defined in Ohio Revised Code Section 5733.042, without regard to division (B) of that section), has been convicted of a violation of a provision of this chapter, other than an offense of operating a sexually oriented business without a license, within two (2) years immediately preceding the application. The fact that a conviction is being appealed shall have no effect.

(5) The license application fee required by this section has not been paid.

(6) A representative of the proposed establishment has not obtained a certificate of compliance pursuant to Section 1477-310 and Section 1477-421 of the Cincinnati Zoning Code or (2) filed a notice of appeal on an adverse zon-

ing decision which is pending at the time of receipt of the application, which shall stay the final decision until a determination is reached on the appeal by the Court of Common Pleas of Hamilton County, Ohio.

(7) The proposed establishment is located in a zoning district other than an M-2 Intermediate Manufacturing District or an M-3 Heavy Manufacturing District established under the Cincinnati Zoning Code; or is not in compliance with the location restrictions established for sexually oriented businesses in those zoning districts.

(8) An applicant; an applicant's spouse; a business entity for which the applicant had, at the time of an offense leading to a criminal conviction described herein, a management responsibility or a controlling interest; or a business entity which is a "related member" of the applicant (as "related member" is defined in Ohio Revised Code Section 5733.042, without regard to division (B) of that section), has been convicted of any offense in violation of Chapter 2907 of the Ohio Revised Code and committed in this state or any offense committed outside this state which if committed in this state would constitute an offense in violation of Chapter 2907 for which:

(i) Less than two (2) years have elapsed since the date of conviction or the date of release from confinement, whichever is the later date, if the conviction is of a misdemeanor offense for the specified criminal acts which are sexual crimes against children, sexual abuse, rape, or crimes connected with another sexually oriented business including but not limited to distribution of obscenity or material harmful to minors, prostitution, pandering, or tax violations; or

(ii) Less than five (5) years have elapsed since the date of conviction or the date of release from confinement, whichever is the later date, if the conviction is of a felony offense; for the specified criminal acts which are sexual crimes against children, sexual abuse, rape, or crimes connected with another sexually oriented business including but not limited to distribution of obscenity or material harmful to minors, prostitution, pandering, or tax violations; or

(iii) Less than (5) years have elapsed since the latest date of conviction, or the date of release from confinement, whichever is the later date, if the convictions are of two or more misdemeanor offenses for specified criminal acts which are sexual crimes against children, sexual abuse, rape, or crimes connected with another sexually oriented business, including but not limited to, distribution of obscenity or materials harmful to minors, prostitution, pandering, or tax violations; for two or more offenses occurring within any twenty-four month period.

(b) The fact that a relevant conviction is being appealed shall have no effect on the disqualification of the applicant or applicant's spouse.

(c) An applicant ineligible for a license due to Paragraph (a)(4) or (a)(8) of this section may qualify for a sexually oriented business license only when the time period required by the applicable paragraph has elapsed.

(d) The license, if granted, shall state on its face the name of the person or persons to whom it is granted, the number of the license issued to that applicant, the expiration date, and, if the license is for a sexually oriented business, the address of the sexually oriented business. A sexually oriented business employee license shall contain a photograph of the licensee. The sexually oriented business license shall be posted in a conspicuous place at or near the entrance to the sexually oriented business so that it may be easily read at any time. A sexually oriented business employee shall keep the employee's license on his or her person or on the premises where the licensee is then working or performing and shall produce such license for inspection upon request by a law enforcement officer or other authorized city official.
(Ordained by Ord. No. 230-1996, eff. Sept. 6, 1996; a. Ord. No. 366-1997, eff. Nov. 21, 1997; a. Ord. No. 31-1998, eff. Jan. 28, 1998; a. Ord. No. 275-1999, eff. June 30, 1999; a. Ord. No. 250-2002, eff. June 26, 2002)

Sec. 899-9. Fees.

The nonrefundable application fees for a sexually oriented business license shall be set by the City Treasurer at an amount determined by the Treasurer as sufficient to pay the cost of administering this program. Upon approval, an initial license fee of $300.00 shall be assessed. A renewal application fee for a sexually oriented business license shall be $300.00. The application fee for a sexually oriented business employee license shall be $200.00.
(Ordained by Ord. No. 230-1996, eff. Sept. 6, 1996; Emer. Ord. 463-2010, § 57, eff. Dec. 30, 2010)

Sec. 899-11. Inspection.

(a) Sexually oriented business operators and sexually oriented business employees shall permit officers or agents of the city of Cincinnati's police department or treasurer's office to inspect from time to time on an occasional basis, the portions of the sexually oriented business premises where patrons are permitted, for the purpose of ensuring compliance with the specific regulations of this chapter, during those times when the sexually oriented business is occupied by patrons or is open for business. A licensee's knowing or intentional refusal to permit such an inspection shall not constitute a misdemeanor, but shall constitute a violation of this section for purposes of license denial, suspension, and/or revocation. This section shall be narrowly construed by the city to authorize reasonable inspections of the licensed premises pursuant to this chapter, but not to authorize a harassing or excessive pattern of inspections.

(b) The provisions of this section do not apply to areas of an adult motel which are currently being rented by a customer for use as a permanent or temporary habitation.
(Ordained by Ord. No. 230-1996, eff. Sept. 6, 1996; a. Ord. No. 250-2002, eff. June 26, 2002)

Cross reference—Penalty, § 899-29.

Sec. 899-13. Expiration of License.

Each license shall remain valid for a period of one calendar year from the date of issuance unless otherwise suspended or revoked. Such license may be renewed only by making application and payment of a fee as provided in Sections 899-5 and 899-9. Application for renewal should be made at least 75 days before the expiration date, and when made less than 75 days before the expiration date, the expiration of the license will not be affected.
(Ordained by Ord. No. 230-1996, eff. Sept. 6, 1996; a. Ord. No. 250-2002, eff. June 26, 2002)

Sec. 899-15. Suspension.

The city shall issue a written letter of intent to suspend a sexually oriented busi-

ness license for a period not to exceed thirty (30) days if it is determined that the sexually oriented business licensee has knowingly violated this chapter or has knowingly allowed an employee to violate this chapter.
(Ordained by Ord. No. 230-1996, eff. Sept. 6, 1996; a. Ord. No. 31-1998, eff. Jan. 28, 1998; a. Ord. No. 250-2002, eff. June 26, 2002)

Sec. 899-17. Revocation.

(a) The city treasurer shall revoke a sexually oriented business license or a sexually oriented business employee license if a cause of suspension in Section 899-15 occurs and the license has been suspended within the preceding twelve (12) months.

(b) The city treasurer shall revoke a sexually oriented business license if the treasurer determines that:

(1) A licensee gave false information in the application for a sexually oriented business license or in any document related to the operation of the sexually oriented business.

(2) A licensee or an employee has knowingly allowed possession, use, or sale of controlled substances on the premises;

(3) A licensee or an employee has knowingly allowed prostitution on the premises;

(4) A licensee or an employee knowingly operated the sexually oriented business during a period of time when the licensee's license was suspended;

(5) A licensee has been convicted of an offense listed in Section 899-7(a) for which the time period required in Section 899-7(a) has not elapsed;

(6) On two (2) or more occasions within a 12-month period, a person or persons while in or on the licensed premises committed an offense listed in Section 899-7(a), for which a conviction has been obtained, and the person or persons were employees of the sexually oriented business at the time the offenses were committed;

(7) A licensee or an employee has knowingly allowed any sexual activity to occur in or on the licensed premises. The term "sexual activity" shall have the same meaning as it is defined in Ohio Revised Code § 2907.01; or

(8) A licensee is delinquent in payment to the city of taxes or fees related to the sexually oriented business.

(c) The fact that any relevant conviction, as described in Section 899-7, is being appealed shall have no effect on the revocation of the license.

(d) For the purposes of license denial, suspension, or revocation, an act by any employee that constitutes grounds for revocation of that employee's license shall be imputed to the sexually oriented business licensee only if the Hearing Officer determines by a preponderance of evidence that an officer, director, or general partner, or an employee who managed, supervised, or controlled, the operation of the business, knowingly allowed such act to occur on the premises. Subsection (b)(7) of this Section does not apply to adult motels as a ground for revoking the license unless the licensee or employee knowingly allowed sexual activity to occur in exchange for money or within public view.

(e) When the city treasurer revokes a license, the revocation shall continue for one (1) year and the licensee shall not be issued a sexually oriented business license for (1) one year from the date revocation becomes effective. If, subsequent to revocation, the city treasurer finds that the basis for the revocation has been corrected or abated, the applicant shall [be] granted a license if at least (ninety) 90 days have elapsed since the date

the revocation became effective. If the license was revoked under Subsection (b)(5) of this section, an applicant may not be granted another license until the appropriate number of years required under Section 899-7(a) has elapsed.
(Ordained by Ord. No. 230-1996, eff. Sept. 6, 1996; a. Ord. No. 250-2002, eff. June 26, 2002)

Sec. 899-19. Hearing; Revocation, License Denial, Suspension; Appeal.

(a) If the City Treasurer determines that probable grounds exist for denial, suspension, or revocation of a license under this chapter, the Treasurer shall notify the applicant or licensee (respondent) in writing of the intent to deny, suspend or revoke the license, including the grounds therefor, by personal delivery, or by certified mail. The notification shall be directed to the most current business address on file with the City Treasurer.

Within ten working days of receipt of such notice, the respondent may provide to the City Manager or his or her designee in writing a response which shall include a statement of reasons why the license or permit should not be denied, suspended, or revoked. For purposes of this Section, any designee of the City Manager shall not be the City Treasurer or an employee in the Office of the City Treasurer. The City Manager or his or her designee shall notify the respondent in writing of the hearing date within three days of the receipt of such written response. Within ten working days of the receipt of such written response, the City Manager or his or her designee shall conduct a hearing at which respondent shall have the opportunity to be represented by counsel, to present evidence and witnesses on his or her behalf, and to cross-examine adverse witnesses.

The City Manager or his or her designee shall give due consideration to the issues raised and shall exercise independent discretion in reaching a decision on such issues. The hearing shall last no more than two days, unless extended by request of the respondent or necessary for the administration of justice and due process. If a response is not received by the City Manager or his or her designee in the time stated or, if after the hearing the City Manager or his or her designee finds that grounds exist for denial, suspension, or revocation, then such action shall become final and notice of such final action sent to the applicant or licensee in writing by the City Manager or his or her designee within five working days after the conclusion of the hearing. Such notice shall include a statement advising the applicant or licensee of the right to challenge or appeal such decision in any court of competent jurisdiction to decide the factual or legal issues therein. If the City Manager or his or her designee finds that no grounds exist for denial, suspension, or revocation of a license then the City Manager or his or her designee shall withdraw the intent to deny, suspend, or revoke the license and shall so notify the respondent in writing by delivery, or by certified mail of such action.

(b) When a decision to deny, suspend or revoke a license becomes final, the applicant or licensee whose application for a license has been denied or whose license has been suspended or revoked shall have the right to challenge such action in a court of competent jurisdiction pursuant to Ohio Revised Code Section 2506 or pursuant to any other procedure available at law. Any suspension or revocation of a sexually oriented business license or a sexually oriented business employee license does not take effect until the trial court adjudicating the challenge to the suspension or revocation issues a final decision on said challenge.

Immediately upon the filing of a court challenge to a license denial, the City Trea-

surer shall issue a temporary license to the applicant if the applicant is: (1) a preexisting sexually oriented business that was lawfully operating on the day that it filed its renewal application for an annual sexually oriented business license, or (2) a preexisting sexually oriented business employee who was lawfully working as a sexually oriented business employee license on the day that employee filed his or her renewal application for a sexually oriented business employee license. The temporary license shall expire upon the trial court's issuance of a final decision on the applicant's challenge to the license denial.
(Ordained by Ord. No. 230-1996, eff. Sept. 6, 1996; a. Ord. No. 31-1998, eff. Jan. 28, 1998; a. Ord. No. 425-1999, eff. Oct. 27, 1999; a. Ord. No. 356-2001, eff. Dec. 14, 2001; Emer. Ord. 083-2011, § 1, eff. March 16, 2011)

Sec. 899-21. Transfer of License.

A licensee shall not transfer his license to another, nor shall a licensee operate a sexually oriented business under the authority of a license at any place other than the address designated in the application.
(Ordained by Ord. No. 230-1996, eff. Sept. 6, 1996)

Cross reference—Penalty, § 899-29.

Sec. 899-22. Live Nudity at Sexually Oriented Business Prohibited.

Live nudity is prohibited in any sexually oriented business including said businesses where no alcoholic beverages are sold, served or consumed on the premises and regardless of whether a permit has been issued pursuant to this Chapter 899. Any sexually oriented business which is found in violation of this section shall have its permit suspended pursuant to the provisions of Section 899-15.
(Ordained by Ord. No. 31-1998, eff. Jan. 28, 1998; a. Ord. No. 250-2002, eff. June 26, 2002)

Sec. 899-23. Additional Regulations for Adult Motels.

(A) Evidence that a sleeping room in a hotel, motel, or similar commercial establishment has been rented and vacated two or more times in a period of time that is less than ten hours creates a rebuttable presumption that the establishment is an adult motel as that term is defined in Chapter 899.

(B) It shall be unlawful for a person who is in control of a sleeping room in a hotel, motel, or similar commercial establishment that does not have a sexually oriented business license to rent or subrent a sleeping room to a person and, within ten hours from the time the room is rented, rent or subrent the same sleeping room again.

(C) For purposes of Subsection (B) of this Section, the terms "rent" or "subrent" mean the act of permitting a room to be occupied for any form of consideration.
(Ordained by Ord. No. 230-1996, eff. Sept. 6, 1996)

Cross reference—Penalty, § 899-29.

Sec. 899-24. Additional Regulations for Sexually Oriented Businesses.

No sexually oriented business shall open to do business before 10:00 a.m. or remain open after 10:00 p.m., provided that, a sexually oriented business which has obtained a license to sell alcoholic beverages from the State of Ohio may remain open pursuant to the terms of that license, but may not conduct sexually oriented business activity after 10:00 p.m. No adult arcade, adult bookstore, adult novelty store, adult video store, adult cabaret, adult entertainment out-call service in the form of semi-nude dancing or exhibition, adult motion picture theater, adult theater, or semi-nude model studio shall be open for business on any Sunday or a legal holiday as designated in Section 308-9(a) of the Cincinnati Municipal Code. This subsection shall

not apply to any business, regulated under both this chapter and section, which is not an adult arcade, adult bookstore, adult novelty store, adult video store, adult cabaret, adult entertainment out-call service in the form of semi-nude dancing or exhibition, adult motion picture theater, adult theater, or semi-nude model studio as the same is defined in this chapter.
(Ordained by Ord. No. 31-1998, eff. Jan. 28, 1998; a. Ord. No. 250-2002, eff. June 26, 2002)

Sec. 899-25. Regulations Pertaining to Exhibition of Sexually Explicit Films or Videos.

(A) A person who operates or causes to be operated a sexually oriented business, other than an adult motel, which exhibits on the premises in a viewing room of less than one-hundred and fifty (150) square feet of floor space, a film, video cassette, or other video reproduction which depicts specified sexual activities or specified anatomical areas, shall comply with the following requirements.

(1) Each application for a sexually oriented business license shall contain a diagram of the premises showing the location of all manager's stations, viewing rooms, overhead lighting fixtures, video cameras and monitors installed for monitoring purposes and restrooms, and shall designate all portions of the premises in which patrons will not be permitted. Restrooms shall not contain video reproduction equipment. The diagram shall also designate the place at which the permit will be conspicu-

ously posted, if granted. A professionally prepared diagram in the nature of an engineer's or architect's blueprint shall not be required; however, each diagram shall be oriented to the north or to some designated street or object and shall be drawn to a designated scale or with marked dimensions sufficient to show the various internal dimensions of all areas of the interior of the premises to an accuracy of plus or minus six inches. The City Treasurer may waive the foregoing diagram for renewal applications if the applicant adopts a diagram that was previously submitted and certifies that the configuration of the premises has not been altered since it was prepared.

(2) The application shall be sworn to be true and correct by the applicant.

(3) No alteration in the configuration or location of a manager's station or viewing room may be made without the prior approval of the City Treasurer.

(4) It shall be the duty of the operator, and of any employees present on the premises, to ensure that no patron is permitted access to any area of the premises which has been designated as an area in which patrons will not be permitted in the application filed pursuant to Paragraph (a)(1) of this section.

(5) The interior premises shall be equipped with overhead lighting fixtures of sufficient intensity to illuminate every place to which patrons are permitted access at an illumination of not less than one foot candle as measured at the floor level. It shall be duty of the operator, and of any employees present on the premises, to ensure that the illumination described above is maintained at all times that the premises is occupied or open for business.

(6) It shall be the duty of the operator, and of any employees present on the premises, to ensure that no sexual activity occurs in or on the licensed premises.

(7) It shall be the duty of the operator, and of any employees present on the premises, to ensure that not more than one person is present in a viewing room at any time. No person shall enter a viewing room that is occupied by another person.

(8) It shall be the duty of the operator, and of any employees present on the premises, to ensure that no openings of any kind exist between viewing rooms. No person shall make an attempt to make an opening of any kind between viewing rooms.

(9) It shall be the duty of the operator, or of any employee who discovers two or more patrons in a viewing room or discovers any person making or attempting to make an opening of any kind between viewing rooms, to immediately escort such persons from the premises.

(10) It shall be the duty of the operator, or of any employee, who discovers an opening of any kind between viewing rooms to immediately secure such rooms, and prevent entry into them by any patron until such time as the wall between the rooms has been repaired to remove the opening. Removal and repairing openings between viewing rooms shall be in a manner that is as structurally substantial as the original wall construction.

(11) It shall be the duty of the operator, during each business day, to regularly inspect the walls between viewing rooms for openings of any kind.

(12) It shall be the duty of the operator, and of any employee on the premises, to initiate and enforce a no loitering policy in viewing rooms.

(13) It shall be the duty of the operator to post conspicuous signs in well-lighted entry areas of the business stating all of the following:

(i) That no loitering is permitted in viewing rooms.

(ii) That the occupancy of viewing rooms is limited to one person.

(iii) That sexual activity on the premises is prohibited.

(iv) That the making of openings between viewing rooms is prohibited.

(v) That violators will be required to leave the premises.

(vi) That violations of Subparagraphs (b), (c) and (d) of this paragraph are unlawful.

(14) It shall be the duty of the operator to ensure that floor coverings in viewing rooms are nonporous, easily cleanable surfaces, with no rugs or carpeting.

(15) It shall be the duty of the operator to ensure that all wall surfaces and seating surfaces in viewing rooms, or any room or area providing patron privacy are constructed of, or permanently covered by nonporous easily cleanable material.

(16) It shall be the duty of the operator to ensure that premises are clean and sanitary at all times. Cleaning procedures shall include all of the following:

(i) The operator shall maintain a regular cleaning schedule, documented by appropriate logs, and shall employ sufficient personnel to assure the establishment is clean.

(ii) The operator shall provide an employee to check all areas for garbage, trash, body fluids and excrement and to remove and clean all areas with a disinfectant. All solid waste generated by the business shall be collected from the premises for disposal at a lawful solid waste disposal facility at least twice each week. Prior to collection solid waste shall be stored in a manner that prevents access by animals or members of the public and which will not facilitate the creation of a health nuisance.

(iii) Thorough cleaning of the entire interior of any room providing patron privacy shall be done using a disinfectant. Cleaning shall include floors, walls, doors, seating, monitors, video cameras, and windows and other surfaces.

(17) It shall be the duty of the operator to ensure any seating within a viewing room is designed so as to accommodate one person only.

(18) It shall be the duty of the operator to provide in a conspicuous place on the premises free information relating to the prevention of sexually transmitted diseases, including AIDS.

(19) The interior of the premises shall be configured in such a manner that there is an unobstructed view from a manager's station of every area of the premises, including the interior of each viewing room but excluding restrooms, to which any patron is permitted access for any purpose. A manager's

station shall not exceed 32 square feet of floor area. If the premises has two or more manager's stations designated, then the interior of the premises shall be configured in such a manner that there is an unobstructed view of each area of the premises to which any patron is permitted access for any purpose from at least one of the manager's stations. The view required in this paragraph must be by direct line of sight from the manager's station. It is the duty of the operator to ensure that at least one employee is on duty and situated in each manager's station at all times that any patron is on the premises. It shall be the duty of the operator, and it shall also be the duty of any employees present on the premises to ensure that the view area specified in this paragraph remains unobstructed by any doors, curtains, walls, merchandise, display racks or other materials or enclosures at all times that any patron is present on the premises.

(b) It shall be unlawful for a person having a duty under this section to knowingly fail to fulfill that duty.
(Ordained by Ord. No. 230-1996, eff. Sept. 6, 1996)

Cross reference—Penalty, § 899-29.

Sec. 899-26. Sexual Encounter Establishments Prohibited.

No person shall operate a sexual encounter establishment as defined in this Chapter. Operation of such an establishment shall constitute a public nuisance per se, and will additionally result in imposition of penalties for violation of Chapter 899.
(Ordained by Ord. No. 250-2002, eff. June 26, 2002)

Sec. 899-27. Loitering and Exterior Lighting and Monitoring Requirements.

(a) It shall be the duty of the operator of a sexually oriented business to: (a) post conspicuous signs stating that no loitering is permitted on such property; (b) designate one of [or] more employees to monitor the activities of persons on such property by visually inspecting such property at least once every 30 minutes or inspecting such property by use of video cameras and monitors; and (c) provide lighting of not less than one (1.0) foot candle as measured at the floor level to the exterior premises to provide for visual inspection or video monitoring to prohibit loitering. The video cameras and monitors shall operate continuously at all times that the premises is open for business. The monitors shall be installed within a manager's station.

(b) It shall be unlawful for a person having a duty under this section to knowingly fail to fulfill that duty.
(Ordained by Ord. No. 230-1996, eff. Sept. 6, 1996; a. Ord. No. 250-2002, eff. June 26, 2002)

Cross reference—Penalty, § 899-29.

Sec. 899-29. Penalties and Enforcement.

A person who violates any provision of this Chapter 899 is guilty of a Misdemeanor of the First Degree.

The City Solicitor is hereby authorized to institute civil proceedings necessary for the enforcement of this Chapter 899 to restrain or correct violations hereof. Such civil proceedings, including injunction, shall be brought in the name of the city, provided, however, that nothing in this section and no action taken thereunder, shall be held to exclude such criminal proceedings as may be authorized by this code, or any of the laws or ordinances in force in the city or to exempt

anyone violating this code or any part of the said laws from any penalty which may be incurred.
(Ordained by Ord. No. 230-1996, eff. Sept. 6, 1996; a. Ord. No. 31-1998, eff. Jan. 28, 1998)

Sec. 899-31. Applicability of Ordinance to Existing Businesses.

The provisions of this chapter shall apply to the activities of all persons and sexually oriented businesses described herein, whether such businesses or activities were established or commenced before, on or after the effective date of this ordinance.
(Ordained by Ord. No. 230-1996, eff. Sept. 6, 1996)

Sec. 899-33. Regulations Pertaining to Sexually Oriented Businesses Featuring Performances.

A sexually oriented business which regularly features persons who appear in a state of semi-nudity or live performances which are characterized by specified sexual activities shall be operated in accordance with the following regulations. It is unlawful for a sexually oriented business licensee to knowingly violate the following regulations or to knowingly allow an employee or any other person to violate the following regulations.

(a) A person shall not knowingly appear in a state of semi-nudity except upon a stage elevated at least (eighteen) 18 inches above floor level. All parts of the stage, or a clearly designated area thereof within which the person appears in a state of semi-nudity or performs, shall be a distance of at least three (3) feet from all parts of a clearly designated area in which patrons may be present. The stage or designated area thereof shall be separated from the area in which patrons may be located by a barrier or railing the top of which is at least three (3) feet above floor level. No person appearing in a state of semi-nudity or engaging in such live performances or patron may knowingly extend any part of his or her body over or beyond the barrier or railing.

(b) An employee may not knowingly touch the breast, buttocks, or genitals of a patron, nor may a patron touch the breast, buttocks, or genitals of an employee.

(c) A patron may not knowingly place any money on the person or in or on the costume of an employee.

(d) A sign in a form to be prescribed by the city treasurer and summarizing the provisions of Paragraphs (a), (b), (c), and (4) of this Section, shall be posted near the entrance of the sexually oriented business in such a manner as to be clearly visible to patrons upon entry.

(Ordained by Ord. No. 230-1996, eff. Sept. 6, 1996; a. Ord. No. 31-1998, eff. Jan. 28, 1998; a. Ord. No. 250-2002, eff. June 26, 2002)

Cross reference—Penalty, § 899-29.

Sec. 899-34. Prohibition Against Presence of Persons Under the Age of 18.

(a) A person commits a violation of this ordinance if the person knowingly allows a person under the age of eighteen years on the premises of a sexually oriented business.

(b) It shall be the duty of the operator, and of any employees on the premises to verify the ages of all patrons as being eighteen years or older. It shall be unlawful for a person having a duty under this section to knowingly fail to fulfill that duty.
(Ordained by Ord. No. 250-2002, eff. June 26, 2002)

Sec. 899-35. Severability.

Cincinnati Municipal Code Chapter 899 and each section and provision of said chapter thereunder, are hereby declared to be independent divisions and subdivisions and, not withstanding any other evidence of legislative intent, it is hereby declared to be the controlling legislative intent that if any provisions of said chapter, or the application thereof to any person or circumstance is held to be invalid, the remaining sections or provisions and the application of such sections and provisions to any person or circumstances other than those to which it is held invalid, shall not be affected thereby, and it is hereby declared that such sections and provisions would have been passed independently of such section or provision so known to be invalid.

(Ordained by Ord. No. 230-1996, eff. Sept. 6, 1996; a. Ord. No. 250-2002, eff. June 26, 2002)

TITLE IX

MISDEMEANORS

Chapter 902

OFFENSES

Sec. 902-1. Offenses Defined and Classified.
Sec. 902-3. Rule of Construction.
Sec. 902-5. Penalties.
Sec. 902-6. Organization Defined.
Sec. 902-7. Criminal Liability for Organizations, Officers, Agents and Employees.
Sec. 902-8. Summons and Appearance of Organizations.
Sec. 902-11. Criminal Liability.
Sec. 902-13. Attempt.
Sec. 902-15. Complicity.
Sec. 902-17. Provisions to Apply to Ordinances Hereafter Passed.
Sec. 902-19. Clerk to Notify City Manager of Certain Convictions.
Sec. 902-21. Pending Rights.

Sec. 902-1. Offenses Defined and Classified.

No conduct constitutes a criminal offense against the city unless it is defined as an offense in the Cincinnati Municipal Code.

An offense is defined when one or more sections of the Cincinnati Municipal Code state a positive prohibition or enjoin a specific duty.

Offenses in the Cincinnati Municipal Code include misdemeanors of the first, second, third, and fourth degree, minor misdemeanors, and misdemeanors not specifically classified.

Any offense not specifically classified is a minor misdemeanor if no specific penalty has been provided for the offense.
(C.M.C. 902-1; ordained by Ord. No. 523-1973, eff. Jan. 1, 1974)

Analogous to C.O. 902-1; r. Ord. No. 523-1973, eff. Jan. 1, 1974.

State law reference—See ORC 2901.02, 2901.03.

Sec. 902-3. Rule of Construction.

Sections of the Cincinnati Municipal Code defining offenses or penalties shall be strictly construed against the city and liberally construed in favor of the accused.
(C.M.C. 902-3; ordained by Ord. No. 523-1973, eff. Jan. 1, 1974)

State law reference—See ORC 2901.04.

Sec. 902-5. Penalties.

Whoever is convicted of or pleads guilty to a classified misdemeanor other than a minor misdemeanor shall be imprisoned for a definite term or fined, or both, which term of imprisonment and fine shall be fixed by the court as provided in this section.

Terms of imprisonment for classified misdemeanors shall be imposed as follows:

(a) For a misdemeanor of the first degree, not more than six months;

(b) For a misdemeanor of the second degree, not more than ninety days;

(c) For a misdemeanor of the third degree, not more than sixty days;

(d) For a misdemeanor of the fourth degree, not more than thirty days.

Fines for misdemeanors shall be imposed as follows:

(a) For a misdemeanor of the first degree, not more than one thousand dollars;

(b) For a misdemeanor of the second degree, not more than seven hundred fifty dollars;

(c) For a misdemeanor of the third degree, not more than five hundred dollars;

(d) For a misdemeanor of the fourth degree, not more than two hundred fifty dollars.

Whoever is convicted of or pleads guilty to a minor misdemeanor shall be fined not more than one hundred fifty dollars.

All fines do not include any applicable court costs.

Whoever is convicted of or pleads guilty to a misdemeanor not specifically classified for which a specific penalty has been provided shall be imprisoned or fined in accordance with the provisions of the applicable section.
(C.M.C. 902-5; ordained by Ord. No. 523-1973, eff. Jan. 1, 1974; a. Ord. No. 273-1974, eff. June 12, 1974; a. Ord. No. 224-2004, eff. June 23, 2004)

Analogous to C.O. 902-5; a. Ord. No. 7-1971, eff. Jan. 6, 1971; r. Ord. No. 523-1973, eff. Jan. 1, 1974.

State law reference—See ORC 2929.21, 2901.02.

Sec. 902-6. Organization Defined.

For purposes of Sections 902-7 and 902-8 of the Cincinnati Municipal Code, Organizations shall mean a corporation for profit or not for profit, partnership, limited partner-

ship, joint venture, unincorporated association, estate, trust, or other commercial or legal entity. "Organization" does not include an entity organized as or by a governmental agency for the execution of a governmental program.

(C.M.C. 902-6; ordained by Ord. No. 250-1979, eff. July 13, 1979)

Analogous to C.M.C. 901-1-01; ordained by Ord. No. 523-1973, eff. Jan. 1, 1974; r. Ord. No. 424-1977, eff. Nov. 25, 1977.

Sec. 902-7. Criminal Liability for Organizations, Officers, Agents and Employees.

(a) *Organizational liability.* An organization may be convicted of an offense under any of the following circumstances:

(1) The offense is a minor misdemeanor committed by an officer, agent, or employee of the organization acting in its behalf and within the scope of such person's office or employment, except that if the section defining the offense designates the officers, agents, or employees for whose conduct the organization is accountable or the circumstances under which it is accountable, such provisions shall apply.

(2) A purpose to impose organizational liability plainly appears in the section defining the offense, and the offense is committed by an officer, agent, or employee of the organization acting in its behalf and within the scope of such person's office or employment, except that if the section defining the offense designates the officers, agents, or employees for whose conduct the organization is accountable or the circumstances under which it is accountable, such provisions shall apply.

(3) The offense consists of an omission to discharge a specific duty imposed by law on the organization.

(4) If, acting with the kind of culpability otherwise required for the commission of the offense, its commission was authorized, requested, commanded, tolerated, or performed by the board of directors, trustees, partners, or by a high managerial officer, agent, or employee acting in behalf of the organization and within the scope of such person's office or employment.

When strict liability is imposed for the commission of an offense, a purpose to impose organizational liability shall be presumed, unless the contrary plainly appears.

In a prosecution of an organization for an offense other than one for which strict liability is imposed, it is a defense that the high managerial officer, agent, or employee having supervisory responsibility over the subject matter of the offense exercised due diligence to prevent its commission.

The defense is not available if it plainly appears inconsistent with the purpose of the section defining the offense.

(b) *Personal accountability for organizational conduct.* An officer, agent, or employee of an organization may be prosecuted for an offense committed by such organization, if such person acts with the kind of culpability required for the commission of the offense, and any of the following apply:

(1) In the name of the organization or in its behalf, such person engages in conduct constituting the offense, or causes another to engage in such conduct, or tolerates such conduct when it is of a type for which such person has direct responsibility;

(2) Such person has primary responsibility to discharge a duty imposed on the organization by law, and such duty is not discharged.

When convicted of an offense by reason of this section, a person is subject to the same penalty as if such person had acted in his own behalf.

(c) *Organizational penalties.* Regardless of the penalties provided in Section 902-5 of the Cincinnati Municipal Code, an organization convicted of an offense pursuant to this section shall be fined, which fine shall be fixed by the court as follows:

(1) For a misdemeanor of the first degree, not more than five thousand dollars;

(2) For a misdemeanor of the second degree, not more than four thousand dollars;

(3) For a misdemeanor of the third degree, not more than three thousand dollars;

(4) For a misdemeanor of the fourth degree, not more than two thousand dollars;

(5) For a minor misdemeanor, not more than one thousand dollars;

(6) For a misdemeanor not specifically classified, not more than two thousand dollars;

(7) For a minor misdemeanor not specifically classified, not more than one thousand dollars.

When an organization is convicted of an offense not specifically classified, and the section defining the offense or penalty plainly indicates a purpose to impose the penalty provided for violation upon organizations, then such penalty shall be imposed in lieu of the penalty provided in this section.

When an organization is convicted of an offense not specifically classified, and the penalty provided includes higher fine than that provided in this section, then the penalty imposed shall be pursuant to the penalty provided for violation of the section defining the offense.

This section does not prevent the imposition of available civil sanctions against an organization convicted of offense pursuant to this section, either in addition to or in lieu of a fine imposed pursuant to this section.
(C.M.C. 902-7; ordained by Ord. No. 523-1973, eff. Jan. 1, 1974; a. Ord. No. 250-1979, eff. July 13.1979)

State law reference—See ORC 2901.23, 2901.24, 2929.31.

Sec. 902-8. Summons and Appearance of Organizations.

Whenever an affidavit is filed in the Hamilton County Municipal Court charging any organization with the violation of any ordinance of the city of Cincinnati, the clerk of the municipal court shall issue a summons to the chief of police, or any bailiff of the court, which summons shall read as follows:

"To the chief of police of the city of Cincinnati, or to _____, bailiff: You are hereby commanded to summon _____ to appear in the Hamilton County Municipal Court on the _____ day of _____ A.D. 19____, at _____ a.m., to answer the charge of

_____

(here set out the charge),
which has been preferred against it in said municipal court, upon the oath and affirmation of _____ and of this summons you will make due return.

"Witness my hand and seal of said court this _____ day of _____, A.D. 19____."

The summons shall be returnable on the 28th day after its date. The summons, with a copy of the affidavit, shall be served and returned in the manner provided by law for service upon such organization in civil actions in the common pleas court. The organization may, on or before the return day of the summons duly served, appear by one of its officers, or by counsel, and answer to the affidavit by motion or plea. Upon failure to make such appearance and answer the court

shall enter a plea of not guilty, and upon such appearance being made or plea entered the organization shall be deemed thenceforth continuously present in said court until the case is finally disposed of. Service shall be such as is provided in Rule 4 of the Ohio Rules of Criminal Procedure. The time and manner of service shall be indorsed on the original summons.
(C.M.C. 902-8; ordained by Ord. No. 287-1974, eff. June 19, 1974)

Analogous to C.O. 903-7; r. Ord. No. 523-1973, eff. Jan. 1, 1974.

Sec. 902-11. Criminal Liability.

(a) Except as provided in paragraph (b) of this section, a person is not guilty of an offense unless both of the following apply:

(1) Such person's liability is based on conduct which includes either a voluntary act, or an omission to perform an act or duty which such person is capable of performing;

(2) Such person has the requisite degree of culpability for each element as to which a culpable mental state is specified by the section defining the offense.

(b) When the section defining an offense does not specify any degree of culpability, and plainly indicates a purpose to impose strict criminal liability for the conduct described in such section, then culpability is not required for a person to be guilty of the offense. When the section neither specifies culpability nor plainly indicates a purpose to impose strict liability, recklessness is sufficient culpability to commit the offense.

(c) For the purpose of this section possession is a voluntary act if the possessor knowingly procured or received the thing possessed, or was aware of the possessor's own control thereof for a sufficient time to have ended possession. Reflexes, convulsions, body movements during unconsciousness or sleep, and body movements that are not otherwise a product of the actor's volition, are involuntary acts.
(C.M.C. 902-11; ordained by Ord. No. 523-1973, eff. Jan. 1, 1974; a. Ord. No. 250-1979, eff. July 13, 1979)

State law reference—See ORC 2901.21.

Sec. 902-13. Attempt.

No person, purposely or knowingly, and when purpose or knowledge is sufficient culpability for the commission of an offense, shall engage in conduct which, if successful, would constitute or result in the offense.

It is no defense to a charge under this section that, in retrospect, commission of the offense which was the object of the attempt was impossible under the circumstances.

No person who is convicted of committing a specific offense or of complicity in the commission of such offense, shall be convicted of an attempt to commit the same offense in violation of this section.

It is an affirmative defense to a charge under this section that the actor abandoned the effort to commit the offense or otherwise prevented its commission, under circumstances manifesting a complete and voluntary renunciation of criminal purpose.

Whoever violates this section is guilty of an attempt to commit an offense. An attempt to commit any misdemeanor is a misdemeanor of the next lesser degree than the misdemeanor attempted. In the case of an attempt to commit a misdemeanor of the fourth degree, an attempt is a minor misdemeanor. In the case of attempt to commit a misdemeanor not specifically classified, an

attempt is a misdemeanor of the fourth degree. An attempt to commit a minor misdemeanor is not an offense under this section.
(C.M.C. 902-13; ordained by Ord. No. 523-1973, eff. Jan. 1, 1974; a. Ord. No. 250-1979, eff. July 13, 1979)

State law reference—See ORC 2923.02.

Sec. 902-15. Complicity.

No person, acting with the kind of culpability required for the commission of an offense, shall do any of the following:

(a) Solicit or procure another to commit the offense;

(b) Aid or abet another in committing the offense;

(c) Cause an innocent or irresponsible person to commit the offense.

It is no defense to a charge under this section that no person with whom the accused was in complicity has been convicted as a principal offender.

No person shall be convicted of complicity under this section unless an offense is actually committed, but a person may be convicted of complicity in an attempt to commit an offense in violation of Section 902-13 of the Cincinnati Municipal Code.

No person shall be convicted of complicity under this section solely upon the testimony of an accomplice, unsupported by other evidence.

It is an affirmative defense to a charge under this section that, prior to the commission of or attempt to commit the offense, the actor terminated the complicity, under circumstances manifesting a complete and voluntary renunciation of the actor's criminal purpose.

Whoever violates this section is guilty of complicity in the commission of an offense, and shall be prosecuted and punished as if the violator were a principal offender. A charge of complicity may be stated in terms of this section, or in terms of the principal offense.
(C.M.C. 902-15; ordained by Ord. No. 523-1973, eff. Jan. 1, 1974; a. Ord. No. 250-1979, eff. July 13, 1979)

Analogous to Sec. 901-A8; ordained by Ord. No. 186-1964, eff. June 5, 1964; r. Ord. No. 523-1973, eff. Jan. 1, 1974.

State law reference—See ORC 2923.03.

Sec. 902-17. Provisions to Apply to Ordinances Hereafter Passed.

The provisions of this chapter shall apply to ordinances hereafter passed amending any section of the Cincinnati Municipal Code or ordaining supplementary sections.
(C.M.C. 902-17; ordained by Ord. No. 523-1973, eff. Jan. 1, 1974)

Analogous to C.O. 902-4; r. Ord. No. 523-1973, eff. Jan. 1, 1974.

Sec. 902-19. Clerk to Notify City Manager of Certain Convictions.

The Hamilton County Municipal Court Clerk shall notify the city manager, in writing, upon forms to be furnished by the city manager, of convictions by said court in cases where it is provided by this code, or by ordinances supplementary or amendatory thereof, that upon such conviction, a license, permit or privilege shall or may be revoked or suspended.
(C.M.C. 902-19; ordained by Ord. No. 523-1973, eff. Jan. 1, 1974)

Analogous to C.O. 902-9; r. Ord. No. 523-1973, eff. Jan. 1, 1974.

Sec. 902-21. Pending Rights.

Whenever a section of the Cincinnati Municipal Code or the whole or part of any ordinance, resolution or other measure is repealed or amended, such repeal or amendment shall in no manner affect pending actions, prosecutions or proceedings, nor causes of action, prosecution or proceeding existing

at the time of such repeal or amendment, unless the repealing or amending ordinance or act shall expressly provide otherwise.
(C.M.C. 902-21; ordained by Ord. No. 523-1973, eff. Jan. 1, 1974)

Analogous to C.O. 902-10; r. Ord. No. 523-1973, eff. Jan. 1, 1974.

Chapter 903

DETENTION FACILITIES

Sec. 903-1. Repealed.
Sec. 903-3. Repealed.
Sec. 903-5. Disorderly Conduct at Any Detention Facility Operated by or Under Control of the City of Cincinnati.
Sec. 903-7. Repealed.
Sec. 903-9. Repealed.
Sec. 903-11. Repealed.
Sec. 903-13. Repealed.
Sec. 903-15. Repealed.

Sec. 903-1. Repealed.

(C.M.C. 903-1; ordained by Ord. No. 523-1973, eff. Jan. 1, 1974; a. Ord. No. 457-1977, eff. Nov. 16, 1977; r. Ord. No. 101-1982, eff. Mar. 24, 1982)

Analogous to C.M.C. 905-1; r. Ord. No. 523-1973, eff. Jan. 1, 1974.

Sec. 903-3. Repealed.

(C.M.C. 903-3; ordained by Ord. No. 523-1973, eff. Jan. 1, 1974; r. Ord. No. 101-1982, eff. Mar. 24, 1982)

Analogous to Sec. 905-2; ordained by Ord. No. 173-1957, eff. May 24, 1957; and Sec. 905-4; ordained by Ord. No. 316-1957, eff. Oct. 5, 1957; a. Ord. No. 414-1970, eff. Dec. 23, 1970; r. Ord. No. 523-1973, eff. Jan. 1, 1974.

Sec. 903-5. Disorderly Conduct at Any Detention Facility Operated by or Under Control of the City of Cincinnati.

No person shall recklessly cause inconvenience, annoyance or alarm to another, while at any detention facility operated by or under control of the city of Cincinnati, by doing any of the following:

(a) Engaging in fighting, in threatening harm to persons or property, or in violent or turbulent behavior;

(b) Making unreasonable noise or offensively coarse utterance, gesture or display, or communicating unwarranted and grossly abusive language to any person;

(c) Insulting, taunting or challenging another, under circumstances in which such conduct is likely to provoke a violent response;

(d) Hindering or preventing the movement of persons, so as to interfere with the rights of others, and by any act which serves no lawful and reasonable purpose of the offender;

(e) Creating a condition which is physically offensive to persons or which presents a risk of physical harm to persons or property by any means, which serves no lawful and reasonable purpose of the offender.

Whoever violates this section is guilty of disorderly conduct at a detention facility operated or under the control of the city of Cincinnati, a misdemeanor of the first degree.

(C.M.C. 903-3; ordained by Ord. No. 523-1973, eff. Jan. 1, 1974; a. Ord. No. 101-1982, eff. Mar. 24, 1982)

Analogous to Sec. 905-2; ordained by Ord. No. 173-1957, eff. May 24, 1957; and Sec. 905-4; ordained by Ord. No. 316-1957, eff. Oct. 5, 1957; a. Ord. No. 414-1970, eff. Dec. 23, 1970; r. Ord. No. 523-1973, eff. Jan. 1, 1974.

Sec. 903-7. Repealed.

(C.M.C. 903-7; ordained by Ord. No. 523-1973, eff. Jan. 1, 1974; a. Ord. No. 457-1977, eff. Nov. 16, 1977; r. Ord. No. 101-1982, eff. Mar. 24, 1982)

Analogous to C.O. 905-3; ordained by Ord. No. 523-1973, eff. Jan. 1, 1974.

Sec. 903-9. Repealed.

(C.M.C. 903-9; ordained by Ord. No. 523-1973, eff. Jan. 1, 1974; r. Ord. No. 101-1982, eff. Mar. 24, 1982)

Analogous to C.O. 905-5; r. Ord. No. 523-1973, eff. Jan. 1, 1974.

Sec. 903-11. Repealed.

(C.M.C. 903-11; ordained by Ord. No. 523-1973, eff. Jan. 1, 1974; a. Ord. No. 250-1979, eff. July 13, 1979; r. Ord. No. 101-1982, eff. Mar. 24, 1982)

Analogous to C.O. 905-7; a. Ord. No. 449-1964, eff. Dec. 12, 1964; r. Ord. No. 523-1973, eff. Jan. 1, 1974.

Sec. 903-13. Repealed.

(C.M.C. 903-13; ordained by Ord. No. 523-1973, eff. Jan. 1, 1974; a. Ord. No. 250-1979, eff. July 13, 1979.

Analogous to C.O. 905-10; a. Ord. No. 155-1961, eff. May 10, 1961; r. Ord. No. 523-1973, eff. Jan. 1, 1974.

Sec. 903-15. Repealed.

(C.M.C. 903-15; ordained by Ord. No. 523-1973, eff. Jan. 1, 1974; r. Ord. No. 101-1982, eff. Mar. 24, 1982)

Analogous to Sec. 905-20; ordained by Ord. No. 452-1969, eff. Dec. 31, 1969; r. Ord. No. 523-1973, eff. Jan. 1, 1974.

Chapter 904

ADMINISTRATION AND LAW ENFORCEMENT

Sec. 904-3. Contempt of Council.
Sec. 904-7. Possessing a Law Enforcement Officer's Insignia.
Sec. 904-8. Sale of Device with Representation as to Law Enforcement Action.

Sec. 904-3. Contempt of Council.

Every person who, having been summoned as a witness by the authority of council or a duly authorized committee of council to give testimony or to produce books, papers or other evidence upon any matter under inquiry before the council or such committee, willfully fails to appear, or who, having appeared, refuses to testify to any acts within his knowledge, or to produce any papers or books in his possession, or under his control, relating to the matter under inquiry, shall be deemed guilty of contempt of council, a misdemeanor of the first degree.
(Ordained by Ord. No. 42-1980, eff. Feb. 6, 1980)

Sec. 904-7. Possessing a Law Enforcement Officer's Insignia.

No person shall, without authority, make, sell, or have in such person's possession any law enforcement officer's wreath, number, manual, badge, button, belt, whistle, or other insignia of office.

Whoever violates this section is guilty of illegally possessing law enforcement officer's insignia and equipment, a minor misdemeanor.

For the purpose of this section, "law enforcement officer" shall mean any of the following:

(a) A sheriff, deputy sheriff, constable, marshal, deputy marshal, municipal police officer, or state highway patrolman;

(b) An officer, agent, or employee of the state or any of its agencies, instrumentalities, or political subdivisions, upon whom, by statute a duty to conserve the peace or to enforce all or certain laws is imposed and the authority to arrest violators is conferred, within the limits of such statutory duty and authority;

(c) A mayor, while acting in the capacity of chief conservator of the peace within the municipality;

(d) A member of an auxiliary police force organized by county, township, or municipal law enforcement authorities, within the scope of such member's appointment or commission;

(e) A person lawfully called pursuant to Section 311.07 of the Ohio Revised Code to aid a sheriff in keeping the peace, for the purposes and during the time when such person is called;

(f) A person appointed by a mayor pursuant to Section 737.01 of the Ohio Revised Code as a special police officer during riot or emergency, or persons appointed pursuant to Article XVIII of the administrative code of the city of Cincinnati, for the purposes and during the time when such person is appointed;

(g) A member of the organized militia of this state or the armed forces of the United States, lawfully called to duty to aid civil authorities in keeping the peace or protect against domestic violence;

(h) A prosecuting attorney, assistant prosecuting attorney, secret service officer, municipal prosecutor, or assistant municipal prosecutor.

(C.M.C. 904-7; ordained by Ord. No. 523-1973, eff. Jan. 1, 1974; a. Ord. No. 250-1979, eff. July 13, 1979)

Analogous to C.O. 901-P4; r. Ord. No. 523-1973, eff. Jan. 1, 1974.

Sec. 904-8. Sale of Device With Representation as to Law Enforcement Action.

No person shall sell, attempt to sell, give or ask for a donation in exchange for a membership card, badge, sticker, emblem or other

device with either the expressed or implied representation that the display of such membership card, badge, sticker, emblem or device will result in less stringent law enforcement action than normal as to the person displaying such membership card, badge, sticker, emblem or device.

Whoever violates this section is guilty of a misdemeanor of the first degree.
(Ordained by Ord. No: 206-1982, eff. May 26, 1982)

Chapter 906

GAMBLING

Sec. 906-9. Public Gaming.

Sec. 906-9. Public Gaming.

(a) No person, while at a hotel, restaurant, tavern, store, arena, hall, business, amusement, resort, plaza, park, sidewalk, or other place where the public is invited or has a right to be shall make a bet or play any game of chance or use any computerized sweepstakes device.

(b) No person, being the owner or lessee, or having custody, control, or supervision of a hotel, restaurant, tavern, store, arena, hall, business, amusement, resort, plaza, park, sidewalk or other place where the public is invited or has a right to be shall recklessly permit such premises to be used or occupied in violation of paragraph (a) of this section.

(c) This section does not prohibit conduct in connection with gambling expressly permitted by law.

(d) Whoever violates this section is guilty of public gaming, a minor misdemeanor. If the offender has previously been convicted of any gambling offense, public gaming is a misdemeanor of the fourth degree.

(e) Premises used or occupied in violation of paragraph (b) of this section constitutes a nuisance subject to abatement.

For the purposes of this section, "bet" shall mean the hazarding of anything of value upon the result of an event, undertaking, or contingency, but does not include a bona fide business risk; "Game of chance" shall mean poker, craps, roulette, a slot machine, punchboard, or other game in which a player gives anything of value in the hope of gaining, the outcome of which is determined largely or wholly by chance; and "Gambling offense" shall mean any of the following:

(i) A violation of C.M.C. 906-9 of the Cincinnati Municipal Code, or of Chapter 2915 of the Ohio Revised Code.

(ii) A violation of an existing or former municipal ordinance or law of this or any other state or of the United States substantially equivalent to any section listed in the above paragraph.

(iii) An offense under an existing or former municipal ordinance or law of this or any other state or of the United States, of which gambling is an element.

(iv) An attempt to commit, or complicity in committing, an offense under any paragraph of this section.

For purposes of this section, "Computerized sweepstakes device" shall mean any computer, machine, game, apparatus or device that is owned, leased, or otherwise possessed by any person conducting a sweepstakes, or by that person's partners, affiliates, subsidiaries, or contractors, which is capable of connection to or interfacing with the internet, regardless of whether such connection is utilized or whether it is server-based, through a wireless router telephone line, digital subscriber line, satellite, cellular telephone, cable connection or any other method, which may be operated by the public generally for use as a contest or game of chance, entertainment or amusement, or to make a bet; whether or not any of the following shall apply:

(aa) The device registers a score;

(bb) The device produces, announces, reveals or discloses the eligibility, award or payment of a cash prize redeemable on or at the device or any place where the public is invited;

(cc) The device provides the user with a chance to win anything of value that is not de minimis;

(dd) The device uses a simulated game terminal as a representation of the prizes associated with the results of the sweepstakes entries;

(ee) The device utilizes software such that the simulated game influences or determines the winning of or value of the prize;

(ff) The device selects prizes from a predetermined finite pool of entries;

(gg) The device utilizes a mechanism that reveals the content of a predetermined sweepstakes entry;

(hh) The device predetermines the prize results and stores those results for delivery at the time the sweepstakes entry results are revealed;

(ii) The device utilizes software to create a game result;

(jj) The device requires deposit of any money, coin, or token, or the use of any credit card, debit card, prepaid card, or any other method of payment to activate the electronic machine or device;

(kk) The device requires direct payment into the device, or remote activation of the device;

(ll) The device requires purchase of a related product;

(mm) Any related product of which purchase is required has legitimate value;

(nn) The device reveals the prize incrementally, even though the device does not influence the awarding of prize or the value of any prize awarded;

(oo) The device determines and associates the prize with an entry or entries at the time the sweepstakes is entered; and/or

(pp) The device is a slot machine or other form of electrical, mechanical, or computer game.

For purposes of this section, the following terms shall have the following meanings:

(1) "Prize" means any gift, award, gratuity, good, service, credit, reward, or any other thing of value, which may be transferred to a person, whether possession of the prize is actually transferred, or placed on an account or other record as evidence of the intent to the transfer the prize.

(2) "Sweepstakes" means any game of chance, contest, advertising scheme or plan, or other promotion, whether or not consideration is required for a person to enter to win or become eligible to receive any prize.

(C.M.C. 906-9; ordained by Ord. No. 523-1973, eff. Jan. 1, 1974; r. Ord. No. 424-1977, eff. Nov. 25, 1977; reordained by Ord. No. 453-1978, eff. Nov. 1, 1978; a. Ord. No. 250-1979, eff. July 13, 1979; Emer. Ord. No. 196-2012, § 1, eff. June 6, 2012)

Analogous to C.O. 901-G1 - 901-G11; r. Ord. No. 523-1973, eff. Jan. 1, 1974.

State law reference—See ORC 2915.04.

Chapter 907

HABITATION AND PROPERTY OFFENSES

Sec. 907-3. Vandalism.
Sec. 907-5. Trespass on the Land or Premises of a Medical Facility.

Sec. 907-3. Vandalism.

No person, without privilege to do so, shall knowingly cause any physical harm to, damage, or otherwise alter in any way, any structure or any of the contents of any structure located upon the land of another or upon public land.

No person, without privilege to do so, shall enter upon the land of another, or upon public land, for the purpose of causing any physical harm, damage or alteration to any structure, or to the contents of any structure.

Whoever violates this section is guilty of vandalism, a misdemeanor of the fourth degree.
(C.M.C. 907-3; ordained by Ord. No. 129-1974, eff. May 3, 1974)

Sec. 907-5. Trespass on the Land or Premises of a Medical Facility.

(A) No person, without privilege to do so, shall do any of the following:

(1) Knowingly enter or remain on the land or premises of a medical facility;

(2) Knowingly enter or remain on the land or premises of a medical facility; the use of which is lawfully restricted to certain persons, purposes, modes, or hours, when the offender knows he is in violation of any such restriction or is reckless in that regard;

(3) Recklessly enter or remain on the land or premises of a medical facility, as to which notice against unauthorized access or presence is given by actual communication to the offender, or in a manner calculated to come to the attention of potential intruders, or by fencing or other enclosure manifestly designed to restrict access;

(4) Being on the land or premises of a medical facility, negligently fail or refuse to leave upon being notified to do so by the owner or occupant, or the agent or servant of either.

(B) It is no defense to a charge under this section that the land or premises involved was owned, controlled, or in custody of a public agency.

(C) It is no defense to a charge under this section that the offender was authorized to enter or remain on the land or premises involved, when such authorization was secured by deception.

(D) As used in this section, "land or premises" includes any land, building, structure, or place belonging to, controlled by, or in custody of another, and any separate enclosure or room or portion thereof.

(E) As used in this section:

(1) "Medical facility" means any of the following:

(a) any hospital, as defined in Section 3701 of the Ohio Revised Code; or

(b) any clinic, office, or facility where persons received medical examination, treatment, or advice from health care professionals, including physicians, nurses, psychologists, counselors, social workers, and physician's assistants as defined in Title 47 of the Ohio Revised Code; or

(c) any clinic, office or facility where persons receive medical examination, treatment or advice from a physician as defined in Section 4730.01 of the Ohio Revised Code.

(F) Whoever violates this section is guilty of trespass at a medical facility, a misdemeanor of the first degree and subject to the penalties set out in Section 902-5 of the

Cincinnati Municipal Code and further subject to the penalties set out in 907-5 (G) through (J).

(G) Whoever violates Section 907-5 by committing the offense of trespass on the land and premises of a medical facility shall be sentenced to a term of imprisonment of three consecutive days and may be sentenced to a longer term of imprisonment. In addition, the offender shall be fined not less than $150.00 nor more than $1,000.00.

(H) Whoever violates Section 907-5 by committing the offense of trespass on the land and premises of a medical facility who has previously been convicted, within five years of the offense, of trespass on the land and premises of a medical facility under Section 907-5, shall be sentenced to a term of imprisonment of six consecutive days and may be sentenced to a longer term of imprisonment. In addition, the offender shall be fined not less than $300.00 nor more than $1,000.00.

(I) Whoever violates Section 907-5 by committing the offense of trespass on the land and premises of a medical facility who has previously been convicted, within five years of the offense, of more than one violation of trespass on the land and premises of a medical facility under Section 907-5, shall be sentenced to a term of imprisonment of twelve consecutive days and may be sentenced to a longer term of imprisonment. In addition, the offender shall be fined not less than $600.00 nor more than $1,000.00.

(J) No court shall impose a mandatory fine pursuant to Division (G) through (I) of this section upon an offender who alleges in an affidavit filed with the court prior to his sentencing, that he is indigent and is unable to pay any mandatory fine imposed pursuant to that division, if the court determines that the offender is an indigent person and is unable to pay the fine.

(K) Notwithstanding any provision of law that authorizes the suspension of the imposition or execution of a sentence, but subject to division (J), above, no court shall suspend the three, six or twelve consecutive days of imprisonment or remit or suspend the $150.00, $300,00, or $600.00 mandatory fines required to be imposed by Division (G), (H), or (I) of this section. Nor shall a court place an offender in any program in lieu of imprisonment until after the offender has served the three, six or twelve consecutive days of imprisonment required to be imposed pursuant to Division (G), (H), or (I).
(Ordained by Ord. No. 256-1992, eff. May 28, 1992)

Chapter 908

CRIMES AGAINST THE PERSON

Sec. 908-3. Criminal Intimidation.
Sec. 908-5. Assault.
Sec. 908-7. Aggravated Menacing.
Sec. 908-9. Menacing.
Sec. 908-11. Criminal Damaging or Endangering.
Sec. 908-13. Criminal Mischief.
Sec. 908-15. Telephone Harassment.

Sec. 908-3. Criminal Intimidation.

(A) No person shall violate section 908-5, 908-7, 908-9, 908-11, 908-13, paragraphs (A)(3), (4), or (5) of section 908-15, or section 907-3 of the Municipal Code, or section 2903.13, 2903.21, 2903.22, 2909.06, 2909.07, or paragraphs (A)(3), (4), or (5) of section 2917.21 of the Ohio Revised Code by reason of the actual or perceived race, color, religion, national origin, gender, physical or mental disability, homeless status, sexual orientation, gender identity, gender expression, or age (60 and above) of another person or group of persons.

(B) *Definitions:* For the purposes of this section, the words and phrases used herein shall have the meanings respectively ascribed to them unless the context clearly indicates or requires a different meaning.

"*Gender expression*" shall mean the external appearance of one's gender identity, usually expressed through behavior, clothing, haircut or voice, and which may or may not conform to socially defined behaviors and characteristics typically associated with being either masculine or feminine.

"*Gender identity*" shall mean one's innermost concept of self as male, female, a blend of both or neither—how individuals perceive themselves and what they call themselves. One's gender identity can be the same or different from their sex assigned at birth.

"*Homeless Individual*" shall mean:

a) An individual who lacks a fixed, regular, and adequate residence;

b) An individual with a nighttime residence that is a public or private place not designed for or ordinarily used as a regular sleeping accommodation for human beings, including but not limited to: a car, park, abandoned building, bus or train station, camping ground, overpass, woods, benches, parking garage, or doorway;

c) An individual who lives some or all of the time in a publicly or privately operated shelter, transitional housing, motel, hotel, detoxification facility, hospital, nursing home, jail or any other facility meant for temporary residence;

d) An individual who is exiting a facility meant for temporary residence or residing in a temporary residence pending transition to a permanent residence;

e) An individual exiting jail or prison without a permanent residence to go to; or

f) An individual abandoned at a hospital or awaiting foster care placement.

"*Homeless Status*" shall mean an individual's actual or perceived status as a homeless individual.

"*Sexual orientation*" shall mean an individual's actual or perceived heterosexuality, homosexuality, or bisexuality, by orientation or practice.

"*Transgender*" shall mean the condition or state wherein a person manifests gender characteristics, behavior and/or self-identification typical of or commonly associated with persons of another gender, and which may be characterized by assumption of the clothes, hairstyles, cosmetic usage or other appearance qualities commonly associated with another gender and/or by the surgical or medical modification of primary sexual organs in order to assume the gender role of another sex.

(C) Whoever violates this section is guilty of criminal intimidation, a misdemeanor of the first degree.
(Ordained by Ord. No. 404-1995, eff. Jan. 19, 1996; a. Ord. No. 32-2003, eff. March 4,

2003; Ord. No. 016-2015, § 1, eff. Feb. 22, 2015; a. Ord. No. 0033-2021, §§ 1, 2, eff. Feb. 3, 2021)

Sec. 908-5. Assault.

(A) No person shall knowingly cause or attempt to cause physical harm to another.

(B) No person shall recklessly cause serious physical harm to another.

(C) Whoever violates this section is guilty of assault, a misdemeanor of the first degree.
(Ordained by Ord. No. 404-1995, eff. Jan. 19, 1996)

Sec. 908-7. Aggravated Menacing.

(A) No person shall knowingly cause another to believe that the offender will cause serious physical harm to the person or property of such other person or member of his immediate family.

(B) Whoever violates this section is guilty of aggravated menacing, a misdemeanor of the first degree.
(Ordained by Ord. No. 404-1995, eff. Jan. 19, 1996)

Sec. 908-9. Menacing.

(A) No person shall knowingly cause another to believe that the offender will cause physical harm to the person or property of such other person or member of his immediate family.

(B) Whoever violates this section is guilty of menacing. Except as otherwise provided in this section, menacing is a misdemeanor of the fourth degree. If the victim of the offense is a community policing volunteer, menacing is a misdemeanor of the first degree.

(C) Definitions: For the purpose of this section, a "community policing volunteer" is a person who is a registered participant in a City of Cincinnati Police Department Volunteer In Police Service ("VIPS") program, including, but not limited to, Citizens on Patrol, Cincinnati Police Volunteer Surveillance Teams, and Community Problem Oriented Policing teams.
(Ordained by Ord. No. 404-1995, eff. Jan. 19, 1996; a. Ord. No. 378-2005, eff. Nov. 11, 2005)

Sec. 908-11. Criminal Damaging or Endangering.

(A) No person shall cause, or create a substantial risk of physical harm to any property of another without his consent:

(1) Knowingly, by any means;

(2) Recklessly, by means of fire, explosion, flood, poison gas, poison, radioactive material, caustic or corrosive material, or other inherently dangerous agency or substance.

(B) Whoever violates this section is guilty of criminal damaging or endangering, a misdemeanor of the second degree. If violation of this section creates a risk of physical harm to any person, criminal damaging or endangering is a misdemeanor of the first degree.
(Ordained by Ord. No. 404-1995, eff. Jan. 19, 1996)

Sec. 908-13. Criminal Mischief.

(A) No person shall:

(1) Without privilege to do so, knowingly move, deface, damage, destroy, or otherwise improperly tamper with the property of another;

(2) With purpose to interfere with the use or enjoyment of the property of another, set a fire on the land of another or place personal property that has been set on fire on the land of another, which fire or personal property is outside and apart from

any building, other structure, or personal property that is on that land.

(B) Whoever violates this section is guilty of criminal mischief, a misdemeanor of the third degree. If violation of this section creates a risk of physical harm to any person, criminal mischief is a misdemeanor of the first degree.
(Ordained by Ord. No. 404-1995, eff. Jan. 19, 1996)

Sec. 908-15. Telephone Harassment.

(A) No person shall knowingly make or cause to be made a telephone call, or knowingly permit a telephone call to be made from a telephone under his control, to another, if the caller does any of the following:

(1) Fails to identify himself to the recipient of the telephone call and makes the telephone call with purpose to harass, abuse, or annoy any person at the premises to which the telephone call is made, whether or not conversation takes place during the telephone call;

(2) Describes, suggests, requests, or proposes that the caller, recipient of the telephone call, or any other person engage in, any sexual activity as defined in division (C) of section 2907.01 of the Ohio Revised Code, and the recipient of the telephone call, or another person at the premises to which the telephone call is made, has requested, in a previous telephone call or in the immediate telephone call, the caller not to make a telephone call to the recipient of the telephone call or to the premises to which the telephone call is made;

(3) During the telephone call, violates section 908-7 of the Municipal Code;

(4) Knowingly states to the recipient of the telephone call that he intends to cause damage to or destroy public or private property, and the recipient of the telephone call, any member of the family of the recipient of the telephone call, or any other person who resides at the premises to which the telephone call is made owns, leases, resides, or works in, will at the time of the destruction or damaging be near or in, has the responsibility of protecting, or insures the property that will be destroyed or damaged;

(5) Knowingly makes the telephone call to the recipient of the telephone call, to another person at the premises to which the telephone call is made, or to the premises to which the telephone call is made, and the recipient of the telephone call, or another person at the premises to which the telephone call is made, has previously told the caller not to call the premises to which the telephone call is made or not to call any persons at the premises to which the telephone call is made.

(B) No person shall make or cause to be made a telephone call, or permit a telephone call to be made from a telephone under his control, with purpose to abuse, threaten, annoy, or harass another person.

(C) Whoever violates this section is guilty of telephone harassment, a misdemeanor of the first degree.
(Ordained by Ord. No. 404-1995, eff. Jan. 19, 1996)

Chapter 909

COMMUNITY NOISE

Sec. 909-1. Definitions.
Sec. 909-1-A. ANSI.
Sec. 909-1-D. Decibel.
Sec. 909-1-P. Person.
Sec. 909-1-S. Sound level meter.
Sec. 909-1-Z. Zoning districts.
Sec. 909-3. Loud noise.
Sec. 909-4. Limitations on Amplified Sound at Special Events.
Sec. 909-5. Excessive Sound From a Motor Vehicle.
Sec. 909-7. Nighttime Construction.
Sec. 909-95. Enforcement.

Sec. 909-1. Definitions.

For the purpose of this chapter the following terms, phrases, words and their derivations shall have the meaning given herein. When not inconsistent with the context, words used in the present tense include the future, words used in the plural number include the singular number, and words used in the singular number include the plural number. The word "shall" is always mandatory and not merely directory.

All definitions/terminology used in this chapter, but not defined below, shall be in conformance with the applicable standards of the American National Standards Institute (ANSI) or its successor body.
(Ordained by Ord. No. 289-2010, § 1, eff. July 30, 2010)

Sec. 909-1-A. ANSI.

"ANSI" means the American National Standards Institute or its successor bodies.
(Ordained by Ord. No. 289-2010, § 1, eff. July 30, 2010)

Sec. 909-1-D. Decibel.

"Decibel" (dB) means a unit for measuring the intensity of a sound, equal to twenty (20) times the logarithm to the base ten (10) of the ratio of the pressure of the sound measured to the reference pressure, which is twenty (20) micropascals.
(Ordained by Ord. No. 289-2010, § 1, eff. July 30, 2010)

Sec. 909-1-P. Person.

"Person" means any public corporation, private corporation, individual, firm, partnership, association or any other entity.
(Ordained by Ord. No. 289-2010, § 1, eff. July 30, 2010)

Sec. 909-1-S. Sound level meter.

"Sound level meter" means an instrument used to measure noise and sound levels in a specified manner that is calibrated in decibels and includes a microphone, an amplifier, an output meter, and frequency-weighting networks. The meter must satisfy the applicable standards for a Type 1 or Type 2 sound level meter as defined in ANSI S1.4 - 1983 or the most recent revision.
(Ordained by Ord. No. 289-2010, § 1, eff. July 30, 2010)

Sec. 909-1-Z. Zoning districts.

"Zoning Districts" means those zoning districts established by Title XIV, Zoning Code of the City of Cincinnati, as enacted by council under authority of the City of Cincinnati by Ordinance No. 15-2004.
(Ordained by Ord. No. 289-2010, § 1, eff. July 30, 2010)

Sec. 909-3. Loud noise.

(A) No person shall create noise or sound, or permit the creation of noise or sound in such a manner as to disturb the peace and quiet of a neighborhood, having due regard for the proximity of places of residence, hospitals or other residential institutions and to any other conditions affected by such noise.

(B) No person operating a restaurant, hotel, summer garden or other place of refreshment or entertainment shall permit, nor shall any person in or about such restaurant, hotel, summer garden or other place of refreshment or entertainment engage in, the playing or rendition of music of any kind, singing, loud talking, amplification of sound, or other noises on or about the premises, in such a manner as to disturb the peace and quiet of the neighborhood, having due regard for the proximity of places of residence, hospitals or other residential institutions and to any other conditions affected by such noises.

(C) It shall be prima facie evidence of a violation of this section if any such noise listed in subsection (A) or (B) exceeds the following sound level limitations tested by a sound level meter by receiving zoning district, time of day and day of the week:

Maximum permissible sound levels Leq dB (A)—A sound meter reading taken over a minimum of a six minute period producing an average reading of the limits listed in Tables 1, 2 and 3 below, and shall be measured at or within the boundaries of the receiving or affected property or immediately adjacent to the property of the noise source. When instrumentation cannot be placed within these boundaries, the measurement shall be made as close thereto as is reasonable. The day the 7 p.m. to 2 a.m. time period falls on shall be determined by the day that corresponds with the 7 p.m. time.

The maximum permissible sound levels in Planned Development (PD), Hillside (HS), Urban Design (UD), Interim Development Control (IDC) or Historic (HD) Districts shall be assigned by designated members of the Department of City Planning and Buildings upon the District's creation, taking into account the surrounding neighborhoods and their correlating maximum permissible sound levels as indicated in the tables herein. Any PD, HS, UD, IDC, or HD District existing at the time of passage of this ordinance shall have its maximum permissible sound levels assigned by the designated members of the Department of City Planning and Buildings within 30 days of passage of this ordinance.

Table 1. Sunday through Wednesday

Receiving or Affected Property Zoning District	*7 a.m. to 7 p.m. Sunday through Wednesday*	*7 p.m. to 2 a.m. Sunday through Wednesday*	*2 a.m. to 7 a.m. Sunday through Thursday*
Single Family (SF), Residential (RFR, RM or RMX), or Institutional (IR)	60	55	55
Commercial (CC, CG, CN or RFC), Downtown Development (DD), Urban Mix (UM) or Office (OL or OG)	70	65	65
Manufacturing (MA, ML, MG, ME or RF-M)	75	70	70

Table 2. Thursday

Receiving or Affected Property Zoning District	*7 a.m. to 7 p.m. Thursday*	*7 p.m. to Midnight Thursday*	*Midnight. to 7 a.m. Friday*
Single Family (SF), Residential (RM or RMX), or Institutional (IR)	60	55	55

Receiving or Affected Property Zoning District	*7 a.m. to 7 p.m. Thursday*	*7 p.m. to Midnight Thursday*	*Midnight. to 7 a.m. Friday*
Commercial (CC or CN) Downtown District (DD) or Office (OL or OG)	70	75	65
Manufacturing (ML, MG, ME or RF-M)	75	70	70

Table 3. Friday through Saturday

Receiving or Affected Property Zoning District	*7 a.m. to 7 p.m. Friday through Saturday*	*7 p.m. to 2 a.m. Friday through Saturday*	*2 a.m. to 7 a.m. Saturday through Sunday*
Single Family (SF), Residential (RM or RMX), or Institutional (IR)	65	60	60
Commercial (CC or CN) Downtown District (DD) or Office (OL or OG)	75	75	70
Manufacturing (ML, MG, ME or RF-M)	75	70	70

The performance of one or two street musicians on unamplified musical instruments between the hours of 11:30 a.m. and 1:00 p.m. or between the hours of 5:30 p.m. and 10:00 p.m., for no more than a single period of 90 consecutive minutes in the vicinity of a single location and not closer than any of the following: a) 20 feet to a pedestrian crosswalk; b) 20 feet to a street vendor; and c) 100 feet to an open market as such are defined in section 845-3 CMC, shall not constitute a violation of this section.

Whoever violates this section is guilty of a minor misdemeanor. Whoever violates this section three or more times within a one-year period is guilty of a fourth degree misdemeanor. For purposes of this section, three or more times within a one-year period shall be determined based on the dates of the violations.

(Ordained by Ord. No. 289-2010, § 1, eff. July 30, 2010; a. Ord. No. 411-2010, § 1, eff. Dec. 17, 2010)

Sec. 909-4. Limitations on Amplified Sound at Special Events.

(A) No person shall operate or cause to be operated any sound amplification equipment or sound-amplifying instrument during any special event that requires a special event permit under Chapter 765 of the Cincinnati Municipal Code, in any of the following areas at the special event location:

(1) Within 100 feet of the sale of food, beverages, or merchandise;

(2) Within 100 feet of performances or other event attractions provided to attendees by the event sponsor; or

(3) Within 100 feet of the event sponsor's public address system or other means of broadcasting announcements and other messages to attendees.

(B) This section does not apply to the sponsor or the designee of a sponsor of a special event. The sponsor of a special event is allowed to utilize sound amplification equipment or sound-amplifying instruments and to allow those who are part of the official program of the special event to utilize such equipment and instruments.

(C) Sound amplification equipment and sound-amplifying instruments include, but are not limited to, megaphones, microphones, electric amplifiers, drums, whistles, and horns.

(D) Nothing in this section is intended to replace or supersede the provisions of Section 909-3 of this chapter. The existing limitations on loud noise established in Section 909-3 are still in effect at special events.

(E) Nothing in this section is intended to prohibit the assessment of any other penalties provided in this chapter or in any other chapter of the Cincinnati Municipal Code.

(F) Following a warning, whoever violates this section is guilty of a misdemeanor of the fourth degree.
(Ordained by Emer. Ord. No. 344-2016, § 1, eff. Nov. 2, 2016)

Sec. 909-5. Excessive Sound From a Motor Vehicle.

(A) No person being the owner or person in possession of a motor vehicle with any radio, phonograph, television, tape player, loud speaker or any other instrument, machine or device shall cause or permit any noise to emanate from the motor vehicle in such a manner and to be of such intensity, volume and duration to create unreasonable noise or loud sound which causes inconvenience and annoyance to persons of ordinary sensibilities or which is plainly audible to persons other than the occupants of said motor vehicle.

(B) It shall be prima facie unlawful for a person being the owner or person in possession of a motor vehicle with a device described above to cause or permit any noise emanating from a motor vehicle which is plainly audible at a distance of 50 feet from the motor vehicle. The lawful use of a motor vehicle horn shall not be a violation of this section.

(C) This section shall not apply to any of the following circumstances:

(1) The sound amplifying equipment of the motor vehicle is being operated to request medical or vehicular assistance or to warn others of a hazardous road, vehicle, or traffic safety condition;

(2) The motor vehicle is an emergency vehicle or public safety vehicle and is on an emergency run;

(3) The motor vehicle is owned and operated by the state or a political subdivision, or a public utility;

(4) The motor vehicle is participating in a parade or other activity for which the sponsors have obtained the necessary permit or authorization; or

(5) The sound amplifying equipment of the motor vehicle is being operated as a requirement of federal, state or local law.

(D) Whoever violates this section is guilty of generating excessive sound from a motor vehicle. The following penalties apply to violations of this section:

(1) For a first offense, a mandatory fine of two hundred fifty dollars ($250.00);

(2) For a second offense within one year after conviction of a first offense under this section, a mandatory fine of three hundred fifty dollars ($350.00); and

(3) For a third offense and each subsequent offense within one year after conviction of a first offense under this section, a mandatory fine of five hundred dollars ($500.00).

In addition, the motor vehicle that is used by a person who has been convicted of a third offense within one year after conviction of a first offense under this section and the person in violation is the vehicle owner, then the motor vehicle shall be subject to seizure and impoundment. The owner of such vehicle shall be liable for an administrative penalty of five hundred dollars ($500.00) in addition to scheduled fees for the towing and storage of the vehicle pursuant to § 513-7 of the Cincinnati Municipal Code.

(E) Whenever a police officer has probable cause to believe that a vehicle is subject to seizure and impoundment pursuant to this section, the impoundment of such vehicle shall be done so pursuant to Chapter 513 of the Cincinnati Municipal Code. At the time the vehicle is towed, at the time of the alleged violation, the police officer shall notify the person in violation who is the owner of the vehicle, of the seizure and impoundment and of the vehicle owner's right to appeal the impoundment in accordance with § 513-9 of the Cincinnati Municipal Code.
(Ordained by Ord. No. 289-2010, § 1, eff. July 30, 2010)

Sec. 909-7. Nighttime Construction.

No person other than in the event of emergency, shall, between the hours from 9:00 p.m. to 7:00 a.m. the following day, engage in or undertake any construction or demolition activity or the operation of any mechanical, electrical or battery-operated apparatus which produces loud sound which disturbs the peace and quiet of the neighborhood within 500 feet of places of residence, hospitals or other residential institutions, without first obtaining a special permit from the director of buildings and inspections or the city engineer for such nighttime construction. For purposes of this section, construction shall include every operation regulated by the Cincinnati - Ohio Basic Building Code.

Violation of this section shall be a misdemeanor of the fourth degree.
(Ordained by Ord. No. 289-2010, § 1, eff. July 30, 2010)

Sec. 909-95. Enforcement.

The provisions of this section may be enforced by designated members of the Buildings and Inspections and Police Departments of the City of Cincinnati.
(Ordained by Ord. No. 289-2010, § 1, eff. July 30, 2010; Emer. Ord. No. 238-2015, § 21, eff. July 1, 2015)

Chapter 910

PUBLIC ORDER

Sec. 910-1. Attendance at School.
Sec. 910-7. Repealed.
Sec. 910-8. Repealed.
Sec. 910-9. Repealed.
Sec. 910-10. Repealed.
Sec. 910-11. Repealed.
Sec. 910-12. Improper Solicitation.
Sec. 910-13. Interference with Pedestrian or Vehicular Traffic.
Sec. 910-15. Damaging City Property on Fountain Square.
Sec. 910-17. Repealed.
Sec. 910-19. Violation of Special Event Ordinance.
Sec. 910-21. Loitering with the Intention of Committing Unlawful Drug Transactions.
Sec. 910-23. Possession of Marijuana.
Sec. 910-24. Possession, Use, and Sale of Trigger Activators Prohibited.

Sec. 910-1. Attendance at School.

No child between the ages of 6 and 18 years who is actually a resident in the state of Ohio shall be upon or about public streets, public places, commercial establishments or places of amusement and entertainment within the city during the hours when said child is required to be in attendance at either a public or private school, an alternative program placement designated by the Cincinnati Board of Education, or is under suspension or expulsion from a public or private school, unless said child is accompanied by a parent, guardian or other adult person having the care and custody of him or her, or is upon an emergency errand or other legitimate business directed by a parent, guardian or other adult person having the care and custody of him or her. A child who has been suspended or expelled but also has been placed in and is attending an alternative learning center program approved by the Cincinnati Board of Education shall be considered to be in compliance with this section. A child placed in a bona fide home schooling program shall not be subject to the terms of this section.

Any child convicted of a violation of this section shall be adjudicated an unruly child, pursuant to this section and the laws of the state of Ohio.

Any law enforcement officer or police officer may arrest any child found violating this section and charge such child with a violation of this section. After arrest, if the child is under suspension or expulsion, the officer may take the child to a facility proposed by the Cincinnati Board of Education and approved by the city manager. If a child is truant, the officer may take such child to the approved facility or, in the alternative, to said child's school attendance officer or assistant attendance officer, or may release such child to his or her parent, guardian, or custodian.

(Ordained by Ord. No. 376-1986, eff; Oct. 8, 1986; a. Ord. No. 190-1993, eff. June 1, 1993; a. Ord. No. 285-1997, eff. Oct. 3, 1997; a. Ord. No. 131-1998, eff. April 15, 1998; a. Ord. No. 286-1998, eff. Aug. 5 1998; a. Ord. No. 358-1999, eff. Sept. 15, 1999; a. Ord. No. 473-1999, eff. Dec. 15, 1999; a. Ord. No. 57-2000, eff. Feb. 24, 2000)

Sec. 910-7. Repealed.

(C.M.C. 910-7; ordained by Ord. No. 523-1973, eff. Jan. 1, 1974; a. Ord. No. 392-1988, eff. Sept. 28, 1988; a. Ord. No. 331-1989, eff. Sept. 7, 1989; a. Ord. No. 373-1992, eff. Sept. 2, 1992; a. Ord. No. 93-1993, eff. April 16, 1993; a. Ord. No. 290-1994, eff. Aug. 8, 1994; a. Ord. No. 0062-2009, § 1, eff. April 11, 2009; r. Ord. No. 289-2010, § 2, eff. July 30, 2010)

Sec. 910-8. Repealed.

(Ordained by Ord. No. 272-1987, eff. July 31, 1987; r. Ord. No. 289-2010, § 3, eff. July 30, 2010)

Sec. 910-9. Repealed.

(C.M.C. 910-9; ordained by Ord. No. 523-1973, eff. Jan. 1, 1974; a. Ord. No. 153-1995, eff. May 26, 1995; r. Ord. No. 289-2010, § 4, eff. July 30, 2010)

Sec. 910-10. Repealed.

(Ordained by Ord. No. 138-1996, eff. June 7, 1996; a. Ord. No. 383-2007, § 1, eff. Nov. 24, 2007; r. Ord. No. 289-2010, § 5, eff. July 30, 2010)

Sec. 910-11. Repealed.

(Ordained by Ord. No. 93-1993, eff. 4-16-93; r. Ord. No. 0068-2007, § 1, eff. March 22, 2007)

Sec. 910-12. Improper Solicitation.

(a) Definitions. For purposes of this section, the following terms shall be defined as set forth below:

(1) "Solicit" and "Solicitation" means to make any request in person while in a public place, for an immediate grant of money, goods or any other form of gratuity from another person(s) when the person making the request is not known to the person(s) who are the subject of the request, or to engage in such activity on private property.

However, the terms "solicit" and "solicitation" shall not mean the act of passively standing or sitting with a sign or other indicator that a donation of money, goods or any other form of gratuity is being sought without any vocal request other than a response to an inquiry by another person.

(2) "Public place" means a publicly owned building and premises appurtenant thereto, any public park, sidewalk or other right of way open to the general public and includes alleys, bridges, buildings, driveways, parking lots, parks, plazas, skywalks and streets.

(b) It is unlawful for any person to solicit in the following places or under the following conditions:

(1) In any public transportation vehicle;

(2) Within 20 feet of an automatic teller machine or public entrance to a bank;

(3) From any operator or occupant of a motor vehicle or from any person entering or exiting a motor vehicle;

(4) On private property without permission from the owner;

(5) After 8:00 p.m. and before 7:00 a.m. during any dates on which Daylight Saving Time is in effect; or after 7:00 p.m. and before 7:00 a.m. during any dates on which Daylight Saving Time is not in effect. The dates for the annual duration of Daylight Saving Time shall be as established by the federal government of the United States;

(6) From any person engaged in the act of placing money in a single-space or multi-space parking meter or from any person engaged in the act of locating money on his or her person or within his or her personal belongings to place in a single-space or multi-space parking meter, as such parking meters are defined in Chapter 509 of the Cincinnati Municipal Code, "Parking Meters", while such person is standing within five feet of a single-space or multi-space parking meter;

(7) Within any private parking garages or private parking lots as defined in Chapter 413 of the Cincinnati Municipal Code, "Parking Garages or Parking Lots", or any public parking garages or public parking lots.

(c) It is unlawful for any person to recklessly cause inconvenience, annoyance or alarm to another by soliciting from another person when the other person is located in the following places or is facing the following conditions;

(1) At any bus stop;

(2) Within 20 feet of any crosswalk;

(3) While standing in line waiting to be admitted to a commercial establishment;

(4) Within any outdoor dining area as defined in Chapter 723 of the Cincinnati Municipal Code, "Streets and Sidewalks; Use Regulations";

(5) Within 20 feet of any hotel doorway to which hotel patrons have authorized

and/or rules, regulations or restrictions governing a parade, performance, presentation, speech, exhibition, or any other event or gathering of persons in or on a public street, venue, park, facility or any other public property in the city.

Following a warning, whoever violates a provision contained in a special event ordinance is guilty of a misdemeanor of the fourth degree. Following a warning, whoever violates a provision contained in any special event ordinance that pertains to the advertising or the sale of food, beverages, goods, merchandise or services of any kind, including restrictions, suspensions or the temporary revocation of any vending license or permit issued by the City of Cincinnati, in addition to being guilty of a misdemeanor of the fourth degree, is also subject to the confiscation of any remaining food, beverages, goods, advertising materials, coupons, product samples or any other items related to the restricted sales or advertising, by the Police Chief or his designee.
(Ordained by Ord. No. 179-2001, eff. June 13, 2001)

Sec. 910-21. Loitering with the Intention of Committing Unlawful Drug Transactions.

(a) Definitions. As used in this section:

(1) "Controlled substance" shall have the same meaning as that term has in Ohio Revised Code § 3719.01(C)

(2) "Loiter" shall mean to sit, stand, lie, pace or otherwise remain in essentially the same place in a manner or at a time not usual for a law-abiding citizen.

(3) "Public place" means any area of property, either publicly owned or to which the public has access. The term shall specifically include, but not be limited to, a street, sidewalk, alley, park, playground, parking lot or garage, the doorway or entrance to any building that fronts such a location, and a motor vehicle that is parked or idling in such a location.

(4) "Unlawful drug-related activity" means conduct which constitutes an offense defined in Chapter 2925 of the Ohio Revised Code; conduct which constitutes complicity to commit such an offense by, for example, acting as a lookout; or conduct which constitutes conspiracy to commit such an offense.

(b) Offense. It shall be unlawful for any person to loiter in a public place with the intention of engaging in unlawful drug-related activity.

(c) A police officer who observes a person loitering under circumstances which provide the officer with a reasonable basis to believe that the person intends to engage in unlawful drug-related activity may detain the individual for the purpose of investigating whether the person is in violation of (b).

(d) A police officer may not detain an individual under (c) unless both of the following elements are satisfied:

(1) The person engages in one or more of the following behaviors:

(A) The person passes or receives from passers-by, bystanders or persons in motor vehicles money, objects having characteristics consistent with controlled substances, and/or an envelope, bag or other container which could reasonably contain such objects or money.

(B) The person conceals or attempts to conceal an object having characteristics

consistent with controlled substances and/or an envelope, bag or other container which could reasonably contain such objects.

(C) The person flees or obscures himself upon seeing law enforcement officers.

(D) The person communicates the fact that law enforcement officers are in the vicinity to another person in a manner which suggests that the communication is a warning.

(E) The officer observes the person in possession of any instrument or object which is customarily used in the sale, administration or use of controlled substances, and

(2) One of the following factors applies:

(A) The officer is aware that, within the preceding three years, the person has been convicted or found delinquent of an offense defined in Chapter 2925 of the Ohio Revised Code, of complicity to commit such an offense, or of conspiracy to commit such an offense within the preceding three years.

(B) The officer has knowledge of a specific tip concerning unlawful drug-related activity at a specific location, and the person who is loitering is doing so at a time, in a place or in a manner that is otherwise reasonably similar to the details provided in the tip.

(C) The person is loitering in an area that is notorious for unlawful drug-related activity.

(D) The person is in an area where he is prohibited by court order from being, and the officer is aware of the court order.

(E) The officer knows that the person has previously been convicted of loitering with the intention of engaging in unlawful drug-related activity under this section.

(F) Any vehicle the person has approached or communicated with is registered to an individual who has been convicted of an unlawful drug-related activity in the previous three years, and the officer is aware of that fact.

(e) Neither the race or ethnic background of the person nor the racial or ethnic makeup of the neighborhood within which the person is loitering shall be considered in determining a person's specific intent under this section.

(f) Upon detaining a person pursuant to (c), a police officer must afford the person an opportunity to explain his conduct or otherwise to dispel the officer's suspicion. No person shall be convicted upon trial if it appears that the officer failed to do so, and no person shall be convicted upon trial if it appears that the explanation he provided the officer at the scene is true and disclosed a lawful purpose.

(g) If a police officer who detains a person pursuant to (c) develops probable cause to believe that the person is in violation of (b), the officer shall order the person to immediately leave the location and to remain at least five hundred (500) feet away from the location for five hours. In the event that the person refuses to comply with such an order, the police officer may arrest the person and charge him with a violation of this section.

(h) Penalty. Whoever violates this section is guilty of loitering with the intention of engaging in unlawful drug-related activity, a misdemeanor of the fourth degree. If any offender has previously been convicted under this section, violation of this section is a second degree misdemeanor.
(Ordained by Ord. No. 152-2003, § 2, eff. June 20, 2003)

Sec. 910-23. Possession of Marijuana.

(A) No person aged eighteen or over shall knowingly obtain, possess, or use marijuana, in an amount less than one hundred grams.

(B) Whoever violates this section is guilty of possession of marijuana, a minor misdemeanor. Persons convicted of violating this section shall be fined $0.00, provided that any such use of marijuana did not occur in a public place, defined for purposes of this section as places generally open to the public, including, but not limited to, sidewalks, streets, parks, and places of public accommodation.

(C) Arrest or conviction for a minor misdemeanor violation of this section does not constitute a criminal record and need not be reported by the person so arrested or convicted in response to any inquiries about the person's criminal record, including any inquiries contained in any application for employment, license, or other right or privilege, or made in connection with the person's appearance as a witness.

(D) All court costs shall be $0.00 for violations of this section herein.

(E) The provisions of any part of this section are severable. If any provision or subsection hereof or the application thereof to any person or circumstances is held invalid, the other provisions, subsections, and applications of the section to other persons or circumstances shall not be affected thereby. It is declared to be the intent of this section that the same would have been adopted had such invalid provisions, if any, not been included herein.
(Ordained by Ord. No. 0175-2019, § 1, eff. July 12, 2019; a. Ord. No. 324-2019, §§ 1, 2, eff. September 6, 2019)

Sec. 910-24. Possession, Use, and Sale of Trigger Activators Prohibited.

(a) "Trigger Activator" is hereby defined as a device designed or functioning to accelerate the rate of fire of a firearm to approximate an automatic weapon, including bump stocks, trigger cranks, slide fire devices, and other similar accessories.

(b) It shall be unlawful for any person to own, possess, sell, or use a trigger activator, as defined herein, within the municipal limits of Cincinnati.

(c) Whoever violates this section is guilty of possession of a trigger activator, a misdemeanor of the first degree.
(Ordained by Emer. Ord. No. 091-2018, § 1, eff. July 9, 2018)

Chapter 911

MISCELLANEOUS MISDEMEANORS

Sec. 911-5. Permitting Drug Abuse.
Sec. 911-7. Reserved.
Sec. 911-9. Employment Advertisements—Sex Designated Classifications.
Sec. 911-11. Hypnotism.
Sec. 911-15. Posting Bills on Private Property.
Sec. 911-17. Posting Bills on Streets.
Sec. 911-21. Pool and Billiard Tables.
Sec. 911-23. Fence, Electrically Charged.
Sec. 911-25. Security Requirements for Nitrous Oxide.
Sec. 911-27. Curfew for Minors.
Sec. 911-28. Special Extended Curfew District for Minors.
Sec. 911-29. Repealed.

Sec. 911-5. Permitting Drug Abuse.

(a) No person, being the owner, operator or person in charge of a locomotive, watercraft, aircraft or other vehicle as defined in division (a) of Section 4501.01 of the Revised Code, shall knowingly permit such vehicle to be used for commission of a felony drug offense.

(b) No person, being the owner, lessee or occupant, or having custody, control or supervision of premises, or real estate, including vacant land, shall knowingly permit premises, or real estate, including vacant land, to be used for commission of a felony drug offense by another person.

(c) No person being the owner, lessee, occupant, or having custody, control or supervision of premises, or real estate, including vacant land, shall recklessly permit the premises to be used for the commission of a felony drug offense under any provision of Chapter 2925 or 3719 of the Revised Code, after the receipt of written notice from a law enforcement officer that a felony drug offense under any a provision of Chapter 2925 or 3719 of the Revised Code has previously occurred on the premises, or real estate. In multiple unit dwellings, including hotels or motels, the notice provided for in this division shall state the names of the parties and the specific unit involved. The notice required by this division shall be delivered by certified mail, requested delivery and return receipt requested or by personal service. The notice required by this division shall identify the sender, identify the nature of the drug activity occurring on the premises and bear the date of such notice. The notice shall also contain, as applicable, information as to whether a search warrant has been executed for the premises and the results therefrom, whether and what charges have been placed against individuals stemming from drug activity on the premises, and/or identify a contact person within the Cincinnati Police Division who can substantiate for the owner, lessee, or person in control of the premises, the nature of the felony drug offense, and also, if necessary, coordinate testimony in a court of law to substantiate such felony drug offense. It shall be prima facie evidence that the owner or lessor did not recklessly permit the premises to be used for the commission of a felony drug offense on the premises if:

(1) the owner or lessor has begun the process of evicting the person or persons committing the drug offense, including sending a notice of eviction; or

(2) the owner or lessor has identified for the police in writing and in a timely manner after receipt of the notice required by this division, of the steps that the owner or lessor has commenced to prevent the commission of additional felony drug offenses on the premises.

This division (c) shall not apply to any owner or lessor who has filed an action for forcible entry and detainer to remove a lessee or occupant from the premises.

(d) Premises or real estate, including vacant land, used in violation of division (b) or (c) of this section and where a felony violation of Chapter 2925 or 3719 of the Revised Code occurs, constitutes a nuisance subject to abatement pursuant to Chapter 3767 of the Revised Code.

(e) Whoever violates divisions (a) or (b) of this section is guilty of permitting drug abuse, a misdemeanor of the first degree. Notwithstanding any other section of this Code, at least thirty (30) days' imprisonment is mandatory upon conviction of an offense under this division.

(f) Whoever violates division (c) of this section is guilty of recklessly permitting drug abuse, a misdemeanor of the third degree. Notwithstanding any other section of this Code, at least ten days' imprisonment is mandatory upon conviction of a second offense under this division and at least 30 days' imprisonment is mandatory upon conviction of a third or subsequent offense under this division.
(Ordained by Ord. No.345-1996, eff. Nov. 29, 1996)

Sec. 911-7. Reserved.

(C.M.C. 911-7; ordained by Ord. No. 92-1979, eff. March 21, 1979; r. Ord. No. 536-1979, eff. Dec. 5, 1979)

Sec. 911-9. Employment Advertisements—Sex Designated Classifications.

No person shall publish employment opportunity notices or advertisements under a sex-designated classification system.

This section does not apply when the sex of the prospective employee is a bona fide occupational requirement to a specific employment opportunity.

Whoever violates this section is guilty of publishing sex-designated classifications in employment advertisements, a minor misdemeanor.
(C.M.C. 911-9; ordained by Ord. No. 523-1973, eff. Jan. 1, 1974)

Analogous to C.M.C. 901-E4; ordained by Ord. No. 370-1973, eff. Aug. 1, 1973; r. Ord. No. 523-1973, eff. Jan. 1, 1974.

Sec. 911-11. Hypnotism.

No person shall give a public exhibition or illustration of the effects of hypnotism or mesmerism upon any human subject.

The beginning of any of the acts prohibited shall be considered a violation of this Section.

Whoever violates this section is guilty of giving a public exhibition or illustration of mesmerism, a misdemeanor of the fourth degree.
(C.M.C. 911-11; ordained by Ord. No. 523-1973, eff. Jan. 1, 1974)

Analogous to C.O. 901-H3; r. Ord. No. 523-1973, eff. Jan. 1, 1974.

Sec. 911-15. Posting Bills on Private Property.

No person shall post up or affix, or cause to be posted up or affixed, in any manner, any bill, placard or notice, either written or printed, upon any fence, tree-box, wall or upon any part of any building, without the previous consent of the occupant thereof, or if there be no occupant, without previous consent of the owner or owners thereof, or upon any part of any building or property belonging to the City of Cincinnati.

Whoever violates this section shall be guilty of posting bills on private property, a minor misdemeanor.
(C.M.C. 911-15; ordained by Ord. No. 523-1973, eff. Jan. 1, 1974)

Analogous to C.O. 901-P8; r. Ord. No. 523-1973, eff. Jan. 1, 1974.

Sec. 911-17. Posting Bills on Streets.

Except as otherwise provided in this section or in Section 714-33, no person shall post or affix to any pole or other structure on any street, avenue, alley, park or public ground of the city, any handbill, card, circular or other printed material, including directional signs; provided however, that signs may be affixed or posted with the permission of the city manager or director of public works designating the location or direction of institutions of higher learning having an enrollment in excess of 500,

stadiums or arenas having a seating capacity in excess of 12,000, the Cincinnati Zoo, the Cincinnati Union Terminal, publicly-owned parks and playfields, publicly-owned parking facilities, publicly-owned airports, the municipal vehicle testing lane, publicly-owned buildings, highway destinations, highway routes, business districts located off major thoroughfares, churches located off through highways, bridges, interchanges, or ramp connections, the Art Museum; provided further that temporary signs for special events by charitable institutions may be posted with the approval of the city manager; provided further, that temporary signs giving notice of public hearings of departments, offices, boards and commissions, of the City of Cincinnati and city council or council committees may be posted in locations approved by the city manager; and provided further that newspapers of general circulation in the City of Cincinnati may be sold from racks, containers and bags attached to poles and other structures on city sidewalks in accordance with uniform rules and regulations adopted by the city manager relating to the safety and unobstructed use of the streets by vehicular and pedestrian traffic.

Whoever violates this section shall be guilty of posting bills on streets, a minor misdemeanor.

(C.M.C. 911-17; ordained by Ord. No. 523-1973, eff. Jan. 1, 1974; a. Ord. No. 413-1976, eff. Sept. 9, 1976; a. Ord. No. 129-1997, eff. April 30, 1997)

Analogous to C.O. 901-p9; a. Ord. No. 246-1957, eff. July 19, 1957; a. Ord. No. 334-1959, eff. Oct. 30. 1959; a. Ord. No. 24-1960, eff. Feb. 19, 1960; a. Ord. No. 400-1960, eff. Dec. 23, 1960; a. Ord. No. 156-1966, eff. May 27, 1966; a. Ord. No. 414-1970, eff. Dec. 23, 1970; a. Ord. No. 156-1973, eff. May 4, 1973; r. Ord. No. 523-1973, eff. Jan. 1, 1974.

Sec. 911-21. Pool and Billiard Tables.

No person owning, operating, or having custody of any establishment containing pool or billiard tables for public use shall permit any person to play or use any pool or billiard table between the hours of 2:30 a.m. and 9:00 a.m. except that pool and billiard tables operated and maintained by non-profit organizations for recreational and social purposes only are not subject to the requirements herein set forth.

Whoever violates this section is guilty of operating a pool or billiard table after hours, a misdemeanor of the fourth degree.

(C.M.C. 911-21; ordained by Ord. No. 26-1974, eff. Jan. 16, 1974; a. Ord. No. 457-1974, eff. Oct. 30, 1974)

Analogous to C.O. 901-p7; a. Ord. No. 246-1967, eff. June 21, 1967; a. Ord. No. 414-1970, eff. Dec. 23, 1970; a. Ord. No. 418-1973, eff. Sept. 12, 1973; r. Ord. No. 523-1973, eff. Jan. 1, 1974; reordained as C.M.C. 803-1-B3 by Ord. No. 523-1973, eff. Jan. 1, 1974; r. Ord. No. 26-1974, eff. Jan. 16, 1974.

Sec. 911-23. Fence, Electrically Charged.

No person shall construct, erect, maintain or use for any purpose on residential premises within the corporate limits of the city, any fence or wire barrier charged with electrical current.

(C.M.C. 911-23; ordained by Ord. No. 443-1975, eff. Sept. 10, 1975; a. Ord. No. 250-1979, eff. July 13, 1979)

Sec. 911-25. Security Requirements for Nitrous Oxide.

No person being in control or possession of nitrous oxide shall do any of the following:

(a) Fail to secure any motor vehicle used in the delivery of nitrous oxide in such a manner as to prevent the theft of cylinders of nitrous oxide contained therein;

(b) Fail to report to the Cincinnati police division the theft of any cylinder of nitrous oxide.

Whoever violates any provision of this section is guilty of a minor misdemeanor for the first offense and a fourth degree misdemeanor for each subsequent offense.

(C.M.C. 911-25; ordained by Ord. No. 507-1979, eff. Nov. 15, 1979)

Sec. 911-27. Curfew for Minors.

(a) *Definitions.*

(1) "Minor" shall mean a person who is under the age of 18 years of age.

(2) "Remain" shall mean to linger or to stay upon a place.

(3) "Adult" shall mean a person at least 21 years of age.

(4) "Emergency" shall mean any unforeseen combination of circumstances or the resulting state that calls for immediate action. The term includes, but is not limited to, a fire, a natural disaster, an automobile accident, or any situation requiring immediate action to prevent serious bodily injury or loss of life.

(5) "Knowingly" shall have the same meaning as defined in Ohio Revised Code Section 2901.22.

(6) "Emancipated Minor" shall mean a minor child under the age of 18 years of age and free of parental control.

(7) "Public Place" refers to any place to which the public or a substantial group of the public has access, including, but not limited to: streets, highways, roads, sidewalks, alleys, avenues, playgrounds, parks, plazas, and/or the common areas of schools, hospitals, apartment houses, office buildings, transportation facilities, and shops.

(b) It shall be unlawful for any minor under the age of 18 years to be, or remain in, about or upon any place in the city away from the dwelling house or usual place of abode of said minor, between the hours of 11:00 p.m. and 5:00 a.m. of the following day.

(c) *Exceptions*. The provisions of paragraph (b) of this section do not apply to any minor who is:

(1) Accompanied by said minor's parent, guardian, or other adult person having the care, custody, or supervision of said minor;

(2) Emancipated;

(3) Exercising First Amendment Rights protected by the United States Constitution;

(4) Going to or from employment without detour or stop;

(5) Attending an official school, religious, or other recreational activity sponsored by the City of Cincinnati, by a civic or public organization or entity, or by another similar organization or entity, which activity is supervised by adults, and/or going to or returning from such an activity without detour or stop;

(6) Involved in an emergency;

(7) Involved in interstate travel through, or beginning or terminating in, the city;

(8) On the sidewalk abutting the minor's residence or abutting the residence of a next-door neighbor if the neighbor did not complain to the police department about the minor's presence; or

(9) Running an errand or doing any other specific task or activity directed or permitted by said minor's parent, guardian or other adult person having the care, custody or supervision of said minor.

(d) *Parent or Guardian to Take Minor Into Custody.* In addition to any other powers already provided by law, any law enforcement officer who arrests a minor for violating any of the provisions of division (b) of

this section shall be empowered to demand of the parent, guardian or other adult person having the care, custody or supervision of said minor that said parent, guardian or other adult person appear and take said minor into custody. Should there be a failure of the parent, guardian or other adult person to appear and take custody of said minor, the officer may then be empowered to take the minor home or to the Hamilton County Juvenile Court. It shall be unlawful for any such parent, guardian or other adult person having the care, custody or supervision of said minor to fail or refuse to appear and take such minor into custody within two hours after such demand is made upon said parent, unless reasonably hindered from doing so.

(e) *Responsibility of Parent or Guardian.* No parent, guardian or other adult person having the care, custody or supervision of a minor shall knowingly permit or by inefficient control allow said minor to be, or remain in, about or upon any place in the city away from the dwelling house or usual place of abode of said minor in violation of any of the provisions of Section 911-27(b)

(f) *Authority of Officer to Transport Minor.* Any law enforcement officer who arrests a minor for violating any of the provisions of division (b) of this section, in addition to any other powers already provided by law, shall be empowered to transport said minor to the nearest center designated as a holding facility for curfew violators. The numbers and locations of such centers shall be determined or modified by the Chief of Police based upon need and desirability. The minor shall be released only to a parent, guardian or other adult person having the care, custody or supervision of said minor, or a person at least 18 years of age designated for such purpose by a parent, guardian or other adult person having the care, custody or supervision of said minor, or an appropriate juvenile agency.

(g) *Penalty.*

(1) Any minor found violating the provisions of division (b) of this section shall be guilty of committing a curfew violation.

(2) Any parent, guardian or other adult person having the care, custody or supervision of a minor who shall violate the provisions of division (d) of this section shall be guilty of a minor misdemeanor. Any parent, guardian or other adult person having the care, custody or supervision of a minor who violates the provisions of 911-27(e) shall receive a written warning for the first violation. Any parent, guardian or other adult person having the care, custody or supervision of a minor who violates the provisions of 911-27(e) for the second and any subsequent offenses shall be guilty of a minor misdemeanor.

(h) *Enforcement.* Before taking any enforcement action under this section, a law enforcement officer shall ask the apparent offender's age and reason for being in the public place. The officer shall not issue a citation or make an arrest under this section unless the officer reasonably believes that an offense has occurred and that, based on any response and other circumstances, no exception in subsection (c) is present.

(i) *Monitoring of Effectiveness and Annual Report.* The City Manager or the City Manager's designee shall devise and institute a procedure to monitor and evaluate the effectiveness and desirability of the juvenile curfew, and prepare a detailed report for annual submissions to city council.

(j) *Severability.* If any section, subsection, sentence, clause, phrase or portion of the provisions of this section is for any reason declared by any court of competent jurisdiction to be invalid or unconstitutional, such

section, subsection, sentence, clause, phrase or portion shall be deemed a separate, distinct, and independent provision, and such holding shall not affect the validity of the remaining provisions of this section.
(C.M.C. 911-27; ordained by Ord. No. 225-1994, eff. 7-294; a. Ord. No. 235-1994, eff. 6-29-94; extended by Ord. No. 318-1994, eff. 9-14-94; a. Ord. No. 378-1994, eff. 10-12-94; a. Emer. Ord. No. 265-2025, § 1, eff. Aug. 6, 2025)

Sec. 911-28. Special Extended Curfew District for Minors.

(a) *Definitions.*

(1) "Minor" shall mean a person who is under the age of 18 years of age.

(2) "Remain" shall mean to linger or to stay upon a place.

(3) "Adult" shall mean a person at least 21 years of age.

(4) "Emergency" shall mean any unforeseen combination of circumstances or the resulting state that calls for immediate action. The term includes, but is not limited to, a fire, a natural disaster, an automobile accident, or any situation requiring immediate action to prevent serious bodily injury or loss of life.

(5) "Knowingly" shall have the same meaning as defined in Ohio Revised Code Section 2901.22.

(6) "Emancipated Minor" shall mean a minor child under the age of 18 years of age and free of parental control.

(7) "Special Extended Curfew District" refers to a specially designated area of Cincinnati in which curfew parameters varying from citywide curfew parameters may be imposed.

(b) It shall be unlawful for any minor under the age of 18 years to be, or remain in, about or upon any place in the city designated a special extended curfew district away from the dwelling house or usual place of abode of said minor, between the hours of 9:00 p.m. and 5:00 a.m. of the following day, unless alternative days or hours of operation of a special extended curfew district are otherwise specifically provided by ordinance of City Council.

(c) *Exceptions.* The provisions of paragraph (b) of this section do not apply to any minor who is:

(1) Accompanied by said minor's parent, guardian, or other adult person having the care, custody, or supervision of said minor;

(2) Emancipated;

(3) Exercising First Amendment Rights protected by the United States Constitution;

(4) Going to or from employment without detour or stop;

(5) Attending an official school, religious, or other recreational activity sponsored by the City of Cincinnati, by a civic or public organization or entity, or by another similar organization or entity, which activity is supervised by adults, and/or going to or returning from such an activity without detour or stop;

(6) Involved in an emergency;

(7) Involved in interstate travel through, or beginning or terminating in, the city;

(8) On the sidewalk abutting the minor's residence or abutting the residence of a next-door neighbor if the neighbor did not complain to the police department about the minor's presence; or

(9) Running an errand or doing any other specific task or activity directed or permitted by said minor's parent, guardian or other adult person having the care, custody or supervision of said minor.

(d) *Parent or Guardian to Take Minor Into Custody.* In addition to any other powers already provided by law, any law enforcement officer who arrests a minor for violating any of the provisions of division (b) of this section shall be empowered to demand of the parent, guardian or other adult person having the care, custody or supervision of said minor that said parent, guardian or other adult person appear and take said minor into custody. Should there be a failure of the parent, guardian or other adult person to appear and take custody of such minor, the officer may then be empowered to take the minor home or to the Hamilton County Juvenile Court. It shall be unlawful for any such parent, guardian or other adult person having the care, custody or supervision of said minor to fail or refuse to appear and take said minor into custody within two hours after such demand is made upon said parent, unless reasonably hindered from doing so.

(e) *Responsibility of Parent or Guardian.* No parent, guardian or other adult person having the care, custody or supervision of a minor shall knowingly permit or by inefficient control allow such minor to be, or remain in, about or upon any place in the city designated a special extended curfew district away from the dwelling house or usual place of abode of said minor in violation of any of the provisions of Section 911-28(b).

(f) *Authority of Officer to Transport Minor.* Any law enforcement officer who arrests a minor for violating any of the provisions of division (b) of this section, in addition to any other powers already provided by law, shall be empowered to transport said minor to the nearest center designated as a holding facility for curfew violators. The numbers and locations of such centers shall be determined or modified by the Chief of Police based upon need and desirability. The minor shall be released only to a parent, guardian or other adult person having the care, custody or supervision of said minor, or a person at least 18 years of age designated for such purpose by a parent, guardian or other adult person having the care, custody or supervision of said minor, or an appropriate juvenile agency.

(g) *Penalty.*

(1) Any minor found violating the provisions of division (b) of this section shall be guilty of committing a curfew violation.

(2) Any parent, guardian or other adult person having the care, custody or supervision of a minor who shall violate the provisions of 911-28(d) shall be guilty of a minor misdemeanor. Any parent, guardian or other adult person having the care, custody or supervision of a minor who violates the provisions of 911-28(e) shall receive a written warning for the first violation. Any parent, guardian or other adult person having the care, custody or supervision of a minor who violates the provisions of 911-28(e) for the second and any subsequent offenses shall be guilty of a minor misdemeanor.

(h) *Enforcement.* Before taking any enforcement action under this section, a law enforcement officer shall ask the apparent offender's age and reason for being in the public place. The officer shall not issue a citation or make an arrest under this section unless the officer reasonably believes that

an offense has occurred and that, based on any response and other circumstances, no exception in subsection (c) is present.

(i) *Monitoring of Effectiveness and Annual Report*. The City Manager or the City Manager's designee shall devise and institute a procedure to monitor and evaluate the effectiveness and desirability of any special extended curfew district, and prepare a detailed report for annual submissions to city council.

(j) *Severability.* If any section, subsection, sentence, clause, phrase or portion of the provisions of this section is for any reason declared by any court of competent jurisdiction to be invalid or unconstitutional, such section, subsection, sentence, clause, phrase or portion shall be deemed a separate, distinct, and independent provision, and such holding shall not affect the validity of the remaining provisions of this section.

(k) *Downtown Special Extended Curfew District*. There shall be a Downtown Special Extended Curfew District, the perimeter of which is illustrated in attached Map 911-28(k) Downtown Special Extended Curfew District.

(l) *Fountain Square Special Extended Curfew District*. There shall be a Fountain Square Special Extended Curfew District, the perimeter of which is illustrated in attached Map 911-28(l) Fountain Square Special Extended Curfew District. It shall be unlawful for any minor under the age of 18 years to be, or remain in, about or upon the Fountain Square Special Extended Curfew District, away from the dwelling house or usual place of abode of said minor, between the hours of 6:00 p.m. and 5:00 a.m. of the following day. This special extended curfew district shall remain in effect for thirty days from the time of passage unless extended by action of Council.

(Ordained by Emer. Ord. No. 266-2025, § 1, eff. Aug. 6, 2025; Am. Emer. Ord. No. 356-2025, § 1, eff. November 13, 2025)

Sec. 911-29. Repealed.

(Ord. 69-1997, eff. April 11, 1997; a. Ord. No. 161-1998, eff. April 29, 1998; a. Ord. No. 148-1999, eff. April 28, 1999; r. Ord. No. 396-2002, eff. Jan. 17, 2003)

Chapter 912

DISSEMINATING MATERIAL HARMFUL TO JUVENILES

Sec. 912-1. Definitions.
Sec. 912-1-A. Juvenile.
Sec. 912-1-B. Material.
Sec. 912-1-C. Material Harmful to Juveniles.
Sec. 912-1-D. Nudity.
Sec. 912-1-E. Sexual Contact.
Sec. 912-1-F. Sexual Conduct.
Sec. 912-1-G. Sadomasochistic Sexual Abuse.
Sec. 912-1-H. Sexual Excitement.
Sec. 912-1-I. Knowledge of Character.
Sec. 912-1-J. Person.
Sec. 912-3. Displaying Material Harmful to Juveniles.
Sec. 912-7. Affirmative Defenses.
Sec. 912-99. Penalties.

Sec. 912-1. Definitions.

For the purposes of this chapter, the words and phrases defined in the sections hereunder shall have the meanings therein respectively ascribed to them unless a different meaning is clearly indicated by the context.
(Ordained by Ord. No. 59-1984, eff. March 9, 1984)

Sec. 912-1-A. Juvenile.

"Juvenile" shall mean an unmarried person under the age of 18.
(Ordained by Ord. No. 59-1984, eff. March 9, 1984)

Sec. 912-1-B. Material.

"Material" shall mean any book, magazine, newspaper, pamphlet, poster, print, picture, figure, image, description, motion picture film, phonographic record, or tape, or other tangible thing capable of arousing interest through sight, sound or touch.
(Ordained by Ord. No. 59-1984, eff. March 9, 1984)

Sec. 912-1-C. Material Harmful to Juveniles.

"Material harmful to juveniles" shall mean any material which:

(a) The average adult, applying contemporary community standards, would find that the material, taken as a whole, appeals to the prurient interest of juveniles; and

(b) The material depicts or describes nudity, sexual contact, sexual conduct, sexual excitement or sadomasochistic sexual abuse, in a way that is patently offensive to prevailing standards in the adult community with respect to what is suitable for juveniles; and

(c) The material, taken as a whole, lacks serious literary, artistic, political, educational or scientific value for juveniles.

(Ordained by Ord. No. 59-1984, eff. March 9, 1984)

Sec. 912-1-D. Nudity.

"Nudity" shall mean the showing, representation or depiction of human male or female genitals, pubic area or buttocks with less than a full, opaque covering, or of a female breast with less than a full, opaque covering of any portion thereof below the top of the nipple, or of covered male genitals in a discernibly turgid state.
(Ordained by Ord. No. 59-1984, eff. March 9, 1984)

Sec. 912-1-E. Sexual Contact.

"Sexual contact" shall mean any touching of an erogenous zone of another, including without limitation the thigh, genitals, buttock, pubic region, or, if the person is a female, a breast, for the purpose of sexually arousing or gratifying either person.
(Ordained by Ord. No. 59-1984, eff. March 9, 1984)

Sec. 912-1-F. Sexual Conduct.

"Sexual conduct" shall mean vaginal intercourse between a male and female, and anal intercourse, fellatio, cunnilingus between persons regardless of sex, and acts of masturbation.
(Ordained by Ord. No. 59-1984, eff. March 9, 1984)

Sec. 912-1-G. Sadomasochistic Sexual Abuse.

"Sadomasochistic sexual abuse" shall mean actual or simulated flagellation, rape, torture, or other physical or sexual abuse, by or upon a person who is nude or partially unclothed, or the condition of being fettered,

bound or otherwise physically restrained, for the actual or simulated purpose of sexual gratification or abuse or represented in the context of a sexual relationship.
(Ordained by Ord. No. 59-1984, eff. March 9, 1984)

Sec. 912-1-H. Sexual Excitement.

"Sexual excitement" shall mean the condition of human male or female genitals when in a state of sexual stimulation or arousal.
(Ordained by Ord. No. 59-1984, eff. March 9, 1984)

Sec. 912-1-I. Knowledge of Character.

"Knowledge of character" shall mean having general knowledge or reason to know of, or a belief or ground for belief which warrants further inspection or inquiry of, the nature and character of the material. A person has such knowledge when he or she knows or is aware that the material contains, depicts or describes nudity, sexual contact, sexual conduct, sexual excitement, or sadomasochistic sexual abuse, whichever is applicable, whether or not such person has precise knowledge of the specific contents. A person need not have knowledge of the legal status of the material.
(Ordained by Ord. No. 59-1984, eff. March 9, 1984)

Sec. 912-1-J. Person.

"Person" shall mean any individual, partnership, association, corporation, company, business or other legal entity of any kind.
(Ordained by Ord. No. 59-1984, eff. March 9, 1984)

Sec. 912-3. Displaying Material Harmful to Juveniles.

No person having custody, control or supervision of any commercial establishment shall knowingly display material which is harmful to juveniles in such a way that juveniles, as a part of the invited general public, will be exposed to view such material; however, a person shall be deemed not to have displayed material harmful to juveniles if the material is kept behind devices commonly known as "blinder racks" so that the lower two-thirds of the material is not exposed to view.
(Ordained by Ord. No. 59-1984, eff. March 9, 1984)

Sec. 912-7. Affirmative Defenses.

It shall be an affirmative defense to any prosecution under this chapter that:

(1) The defendant is the parent, guardian or spouse of the juvenile involved.

(2) The juvenile involved, at the time the material was given, sold, presented, furnished, picked up, handled, opened, read or viewed by him was accompanied by his parent or guardian who, with knowledge of its character, consented to the material being given, sold, presented, furnished, picked up, handled, opened, read or viewed by the juvenile.

(3) The juvenile exhibited to the defendant or his agent or employee a draft card, driver's license, birth certificate, marriage license, or other official or apparently official document purporting to show that such juvenile was 18 years of age or over or married, and the person to whom such document was exhibited did not otherwise have reasonable cause to believe that such juvenile was under the age of 18 and unmarried.

(4) The material which is harmful to juveniles was given, sold, presented, furnished to the juvenile or the juvenile was permitted to pick up, handle, open, read or view the material which is harmful to juveniles for a bona fide medical, scientific, educational, gov-

ernmental, judicial or other proper purpose, by a physician, psychologist, sociologist, scientist, teacher, librarian, clergyman, prosecutor, judge or other proper person.

(Ordained by Ord. No. 59-1984, eff. March 9, 1984)

Sec. 912-99. Penalties.

Whoever violates any provision of this chapter shall be fined not more than $500.

(Ordained by Ord. No. 59-1984, eff. March 9, 1984)

Chapter 914

UNLAWFUL DISCRIMINATORY PRACTICES

Sec. 914-1. Definitions.
Sec. 914-1-A. Age.
Sec. 914-1-A1. Appalachian Regional Origin.
Sec. 914-1-A2. Ancestral Origin.
Sec. 914-1-B. Burial Lot.
Sec. 914-1-B1. Breastfeeding Status.
Sec. 914-1-D. Disability.
Sec. 914-1-D1. Discriminate.
Sec. 914-1-E. Employee.
Sec. 914-1-E1. Employer.
Sec. 914-1-E2. Employment Agency.
Sec. 914-1-F. Familial Status.
Sec. 914-1-G. Gender Expression.
Sec. 914-1-G1. Gender Identity.
Sec. 914-1-H. Housing Accommodations.
Sec. 914-1-L. Labor Organization.
Sec. 914-1-M. Marital Status.
Sec. 914-1-M1. Military Status.
Sec. 914-1-P. Person.
Sec. 914-1-P1. Place of Public Accommodation.
Sec. 914-1-R. Restrictive Covenant.
Sec. 914-1-S. Sexual Orientation.
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Sec. 914-1-S2. Sexual or Reproductive Health Decisions.
Sec. 914-1-T. Natural Hair Types and Natural Hair Styles Commonly Associated With Race.
Sec. 914-1-U. Unlawful Discriminatory Practice.
Sec. 914-3. Housing Discrimination Prohibited.
Sec. 914-5. Employment Discrimination Prohibited.
Sec. 914-7. Public Accommodations Discrimination Prohibited.
Sec. 914-9. Complaint Procedure.
Sec. 914-11. Enforcement.
Sec. 914-13. Failure to Comply with Lawful Order.
Sec. 914-15. Exclusions.
Sec. 914-17. Severability.

Sec. 914-1. Definitions.

For the purposes of Chapter 914 the words and phrases defined in the sections hereunder shall have the meanings therein respectively ascribed to them unless a different meaning is clearly indicated by the context.
(Ordained by Ord. No. 490-1992, eff. Nov. 25, 1992)

Sec. 914-1-A. Age.

"Age" shall mean at least 40 years old.
(Ordained by Ord. No. 490-1992, eff. Nov. 25, 1992)

Sec. 914-1-A1. Appalachian Regional Origin.

"Appalachian regional origin" shall mean birth or ancestral origin from that area of the eastern United States consisting of the counties listed in an Appalachian Regional Origin Document which shall be maintained on file with the Clerk of Council.
(Ordained by Ord. No. 490-1992, eff. April 7, 1995)

Sec. 914-1-A2. Ancestral Origin.

"Ancestral Origin" shall mean a maternal or paternal lineal relationship to a parent or grandparent born in the Appalachian area of the United States.
(Ordained by Ord. No. 66-1995, eff. April 7, 1995)

Sec. 914-1-B. Burial Lot.

"Burial lot" shall mean any lot for the burial of deceased persons within any public burial ground or cemetery, including but not limited to, cemeteries owned and operated by the City of Cincinnati or companies or associations incorporated for cemetery purposes.
(Ordained by Ord. No. 490-1992, eff. Nov. 25, 1992)

Sec. 914-1-B1. Breastfeeding Status.

"Breastfeeding status" means a mother's choice to feed her child directly with milk from her breast or to pump milk from her breast for future consumption by her child, without being required to cover her breast or to move to a particular location within or outside of a public accommodation on account of the act of breastfeeding.
(Ordained by Ord. No. 0131-2022, § 3, eff. May 25, 2022)

Editor's note—Ord. No. 0131-2022, § 3, effective May, 25, 2022, set out provisions intended for use as § 914-1-B. Inasmuch as there were already provisions so designated, said section has been codified herein as § 914-1-B1 at the discretion of the editor.

Sec. 914-1-D. Disability.

"Disability" shall mean any natural person: a) with a physical or mental impairment that substantially limits one or more of the major life functions; b) with a record of such impairment; or c) being regarded as having such an impairment (whether or not true).
(Ordained by Ord. No. 490-1992, eff. Nov. 25, 1992)

Sec. 914-1-D1. Discriminate.

"Discriminate" shall mean to unlawfully segregate, separate or treat individuals differently based on or because of race; natural hair types and natural hair styles commonly associated with race; gender; sex, as defined in Section 914-1-S1, which includes without limitation sexual orientation and gender identity or expression; age; color; religion; disability status; military status; familial status; marital status; or ethnic, national or Appalachian regional origin.
(Ordained by Ord. No. 490-1992, eff. Nov. 25, 1992; a. Ord. No. 66-1995, eff. April 7, 1995; a. Ord. No. 65-2006, eff. April 14, 2006; a. Ord. No. 016-2015, § 3, eff. Feb. 22, 2015; a. Ord. No. 351-2019, § 1, eff. Jan. 1, 2020; a. Ord. No. 131-2022, §§ 1, 2, eff. May 25, 2022)

Sec. 914-1-E. Employee.

"Employee" shall mean any individual employed by an employer but does not include any individual employed in the domestic service of any natural person.
(Ordained by Ord. No. 490-1992, eff. Nov. 25, 1992)

Sec. 914-1-E1. Employer.

"Employer" shall mean any person who employs four or more persons within the City of Cincinnati.
(Ordained by Ord. No. 490-1992, eff. Nov. 25, 1992; a. Ord. No. 131-2022, §§ 1, 2, eff. May 25, 2022)

Sec. 914-1-E2. Employment Agency.

"Employment agency" shall mean any person regularly undertaking with or without compensation to procure opportunities for employment or to procure, recruit, refer or place employees.
(Ordained by Ord. No. 490-1992, eff. Nov. 25, 1992)

Sec. 914-1-F. Familial Status.

"Familial status" means having either of the following family characteristics, where "family" also includes an individual:

(A) One or more individuals who are under eighteen years of age and who are either

(1) domiciled with a parent or guardian having legal custody of the individual; or

(2) domiciled, with the written permission of the parent or guardian having legal custody, with a designee of the parent or guardian; or

(B) Any individual who is pregnant or in the process of securing legal custody of any individual who is under eighteen years of age.
(Ordained by Ord. No. 0131-2022, § 3, eff. May 25, 2022)

Sec. 914-1-G. Gender Expression.

"Gender expression" means external manifestations of gender, expressed through one's behavior or appearance, that may or may not be those traditionally associated with the individual's assigned sex at birth.
(Ordained by Ord. No. 0131-2022, § 3, eff. May 25, 2022)

Sec. 914-1-G1. Gender Identity.

"Gender identity" means an individual's sense of having, or being perceived as having, a gender that may or may not be traditionally associated with the individual's assigned sex at birth.
(Ordained by Ord. No. 0131-2022, § 3, eff. May 25, 2022)

Sec. 914-1-H. Housing Accommodations.

"Housing accommodations" shall mean any building or structure or any portion thereof which is used or occupied or is intended, arranged, or designed to be used or occupied as a home, residence or sleeping place of one or more individuals, groups, or families, whether or not living independently of each other; any such building or structure held or offered for sale or rent by a real estate broker, salesman, or agent, or by any other person pursuant to authorization of the owner, by the owner, or by such person's legal representative; or any vacant land offered for sale or lease.
(Ordained by Ord. No. 490-1992, eff. Nov. 25, 1992; a. Ord. No. 131-2022, §§ 1, 2, eff. May 25, 2022)

Sec. 914-1-L. Labor Organization.

"Labor organization" shall mean any organization which exists for the purpose, in whole or in part, of collective bargaining or of dealing with employers concerning grievances, terms or conditions of employment, or for other mutual aid or protection in relation to employment.
(Ordained by Ord. No. 490-1992, eff. Nov. 25, 1992)

Sec. 914-1-M. Marital Status.

"Marital status" shall mean the state of being married, single, divorced, separated, or widowed.
(Ordained by Ord. No. 490-1992, eff. Nov. 25, 1992)

Sec. 914-1-M1. Military Status.

"Military status" shall have the same meaning set forth in Section 4112.01 of the Ohio Revised Code or its successor.
(Ordained by Ord. No. 0131-2022, § 3, eff. May 25, 2022)

Sec. 914-1-P. Person.

"Person" shall mean any natural person, partnership, association, organization, corporation, legal representative, trustee, trustee in bankruptcy, receiver, or other organized group of persons. It includes the City of Cincinnati, but does not include state or federal governmental units.
(Ordained by Ord. No. 490-1992, eff. Nov. 25, 1992)

Sec. 914-1-P1. Place of Public Accommodation.

"Place of public accommodation" shall mean any place that provides access to goods, services, facilities, privileges, advantages, or accommodations in the City of Cincinnati, whether or not that place maintains a physical location in the City of Cincinnati or charges for those goods, services, facilities, privileges, advantages, or accommodations, including, but not limited to, any inn, restaurant, eating house, barbershop, public conveyance by air, land, or water, theater, store, place for the sale of merchandise, or any other place of public accommodation or amusement where the goods, services, facilities, privileges, advantages, or accommodations thereof are available to the public.
(Ordained by Ord. No. 490-1992, eff. Nov. 25, 1992; a. Ord. No. 131-2022, §§ 1, 2, eff. May 25, 2022)

Sec. 914-1-R. Restrictive Covenant.

"Restrictive covenant" shall mean any specification in a deed, land contract or lease limiting the transfer, rental, lease or other use of any housing based on or because of race; natural hair types and natural hair styles commonly associated with race; gender; sex, as defined in Section 914-1-S1, which includes without limitation sexual orientation and gender identity or expression; age; color; religion; disability status; military status; familial status; marital status; or ethnic, national or Appalachian regional origin; and shall include any limitation based upon affiliation with or approval by any person, directly or indirectly, employing race; natural hair types and natural hair styles commonly associated with race; gender; sex, as defined in Section 914-1-S1, which includes without limitation sexual orientation and gender identity or expression; age; color; religion; disability status; military status; familial status; marital status; or ethnic, national or Appalachian regional origin as a condition of affiliation or approval.
(Ordained by Ord. No. 490-1992, eff. Nov. 25, 1992; a. Ord. No. 66-1995, eff. April 7, 1995; a. Ord. No. 65-2006, eff. April 14, 2006; a. Ord. No. 016-2015, § 3, eff. Feb. 22, 2015; a. Ord. No. 351-2019, § 2, eff. Jan. 1, 2020; a. Ord. No. 131-2022, §§ 1, 2, eff. May 25, 2022)

Sec. 914-1-S. Sexual Orientation.

"Sexual orientation" shall mean an individual's actual or perceived heterosexuality, homosexuality, or bisexuality.
(Ordained by Ord. No. 65-2006, eff. April 14, 2006; a. Ord. No. 016-2015, § 3, eff. Feb. 22, 2015)

Sec. 914-1-S1. Sex.

"Sex," as well as phrases such as "based on sex" or "because of sex," shall include, but not be limited to, a person's sex assigned at birth; sexual orientation; sex characteristics; gender identity; gender expression; pregnancy, childbirth, or related medical condition; breastfeeding status; sexual or reproductive health decisions; and all forms of "sex" and sex stereotypes recognized under the Civil Rights Act of 1964, as amended.
(Ordained by Ord. No. 0131-2022, § 3, eff. May 25, 2022; a. Ord. No. 343-2022, §§ 1, 2, eff. Nov. 2, 2022)

Sec. 914-1-S2. Sexual or Reproductive Health Decisions.

For the purposes of Chapter 914, the term "sexual or reproductive health decisions" means any decision by an individual to receive or not receive services or products related to sexual and reproductive health including, but not limited to, contraception, sterilization, fertility treatment or procedures, pregnancy testing, family planning services or counseling, abortion, sexually transmitted disease testing or prevention or treatment, hormone therapy including that which alters gender expression or affirms gender identity, or medical treatments that affirm gender identity. Nothing in this provision shall be construed to require an employer to provide health insurance benefits for sexual or reproductive health services or products that are not otherwise required by federal, state, or local law.
(Ordained by Ord. No. 343-2022, § 3, eff. Nov. 2, 2022)

Sec. 914-1-T. Natural Hair Types and Natural Hair Styles Commonly Associated With Race.

"Natural hair types and natural hair styles commonly associated with race" includes, but is not limited to, hair style, type, and texture, treated or untreated, as well as protective hairstyles such as natural hair, afros, braids, twists, cornrows, and locks, which hair types and hair styles are commonly associated with African-Americans and their racial, ethnic, and cultural identities.
(Ordained by Ord. No. 351-2019, § 3, eff. Jan. 1, 2020; a. Ord. No. 131-2022, §§ 1, 2, eff. May 25, 2022)

Editor's note—Ord. No. 0131-2022, §§ 1, 2, effective May 25, 2022, repealed § 914-1-T and renumbered § 914-1-T1 as § 914-1-T.

Sec. 914-1-U. Unlawful Discriminatory Practice.

"Unlawful discriminatory practice" shall mean any act prohibited by Chapter 914 of the Cincinnati Municipal Code.
(Ordained by Ord. No. 490-1992, eff. Nov. 25, 1992)

Sec. 914-3. Housing Discrimination Prohibited.

(A) It shall be an unlawful discriminatory practice for a person to discriminate:

(1) In the sale, transfer, assignment, rental, lease, sublease, or financing of housing accommodations or otherwise deny or withhold housing accommodations from any prospective owner, occupant, or user of such housing accommodations.

(2) By representing to any person that housing accommodations are not available for inspection when they are available.

(3) By refusing to lend money, whether or not secured by mortgage or otherwise, for the acquisition, construction, rehabilitation, repair, or maintenance of housing accommodations or otherwise withhold financing of housing accommodations from any present or prospective owner, occupant, or user of such housing accommodations, provided such person lends money as one of the principal aspects of his business or incident to his principal business and not only as a part of the purchase price of an owner-occupied residence he is selling nor merely casually or occasionally to a relative or friend.

(4) In the terms or conditions of sale, transfer, assignment, rental, lease, or sublease of any housing accommodations or in furnishing facilities, services, or privileges in connection with the ownership, occupancy or use of any housing accommodations of any present or prospective owner, occupant, or user of such housing accommodations.

(5) In the terms or conditions of any loan of money, whether or not secured by mortgage or otherwise, for the acquisition, construction, rehabilitation, repair, or maintenance of any housing accommodations of any present or prospective owner, occupant, or user of such housing accommodations.

(6) By printing, publishing, or circulating any statement or advertisement relating to the sale, transfer, assignment, rental lease, sublease, or acquisition of any housing accommodations or the loan of money, whether or not secured by mortgage or otherwise, for the acquisition, construction, rehabilitation, repair, or maintenance of housing accommodations which indicates any discrimination or preference, limitation, or specification based on the groups designated in this chapter.

(7) By making any inquiry, eliciting any information, making or keeping any record, or using any form of application containing questions or entries concerning race; natural hair types and natural hair styles commonly associated with race; gender; sex, as defined in Section 914-1-S1, which includes without limitation sexual orientation and gender identity or expression; age; color; religion; disability status; military status; familial status; marital status; or ethnic, national or Appalachian regional origin, except as may be otherwise required by or for compliance with state, federal, or local laws, rules and regulations, or other legal requirements or any other stipulation set forth by the U.S. Department of Housing and Urban Development in connection with the sale or lease of any housing accommodations or the loan of any money, whether or not secured by a mortgage or otherwise, for the acquisition, construction, rehabilitation, repair or maintenance of housing accommodations.

(8) By including in any deed, land contract, or lease of accommodations any restrictive covenant, or honoring or exercising, or attempting to honor or exercise, any such restrictive covenant, provided that the prior inclusion of a restrictive covenant in the chain of title shall not be deemed a violation of this provision.

(9) By inducing or soliciting or attempting to induce or solicit any housing accommodations listing, sale, or

transaction by representing that a change has occurred or may occur with respect to the ethnic composition of the block, neighborhood, or area in which the property is located, or inducing or soliciting or attempting to induce or solicit such sale or listing by representing that the presence or anticipated presence of persons of any race, natural hair types and natural hair styles commonly associated with race; gender; sex, as defined in Section 914-1-S1, which includes without limitation sexual orientation and gender identity or expression; age; color; religion; disability status; military status; familial status; marital status; or ethnic, national or Appalachian regional origin, in the area will or may have results such as the following:

(a) The lowering of property values;

(b) A change in the race; natural hair types and natural hair styles commonly associated with race; gender; sex, as defined in Sec. 914-1-S1, which includes without limitation sexual orientation and gender identity or expression; age; color; religion; disability status; military status; familial status; marital status; or ethnic, national or Appalachian regional origin composition of the block, neighborhood, or area in which the property is located;

(c) An increase in criminal or antisocial behavior in the area;

(d) A decline in the quality of schools serving the area.

(10) By discouraging or attempting to discourage the purchase by prospective purchasers of any housing accommodations by representing that any block, neighborhood, or area has or might undergo a change with respect to the race; natural hair types and natural hair styles commonly associated with race; gender; sex, as defined in Section 914-1-S1, which includes without limitation sexual orientation and gender identity or expression; age; color; religion; disability status; military status; familial status; marital status; or ethnic, national or Appalachian regional origin composition of the block, neighborhood, or area.

(11) By denying any otherwise qualified person access to or membership or participation in any real estate, brokers' organization, or other service, organization, or facility relating to the business of selling or renting housing accommodations, or to discriminate against them in the terms or conditions of such access, membership, or participation.

(12) By coercing, intimidating, threatening, or interfering with any person in the exercise or enjoyment of, or on account of their having exercised or enjoyed, or on account of their having aided or encouraged any other person in the exercise or enjoyment of, any right protected by this section.

(13) By using force or threat of force to willfully injure, intimidate, or interfere with, or to attempt to injure, intimidate, or interfere with:

(a) Any person because of their race; natural hair types and natural hair styles commonly associated with race; gender; sex, as defined in Section 914-1-S1, which includes without limitation sexual orientation and gender identity or expression; age; color; religion; disability status; military status;

familial status; marital status; or ethnic, national or Appalachian regional origin and because that person is or has been selling, purchasing, renting, financing, occupying, or contracting or negotiating for the sale, purchase, rental, financing, or occupation of any dwelling, or applying for or participating in any service, organization, or facility relating to the business of selling or renting housing accommodations.

(b) Any person because that person is, has been, or may be:

(1) Participating without discrimination in any of the activities, services, organizations, or facilities described in division (A)(13)(a) of this section.

(2) Affording another person or class of persons opportunity or protection so to participate in any of the activities, services, organizations, or facilities described in division (A)(13)(a) of this section.

(c) Any person because that person is, has been, or may be lawfully aiding or encouraging other persons to participate without discrimination in any of the activities, services, organizations, or facilities described in division (A)(13)(a) of this section, or participating lawfully in speech or peaceful assembly opposing any denial of the opportunity to so participate.

(14) In any manner against any other person because that person has opposed any unlawful practice defined in this chapter, or because that person has made a charge, testified, assisted, or participated in any manner, in any investigation, proceeding, or hearing under the provisions of this chapter.

(B) No person shall discriminate in the sale, transfer, assignment, rental or lease, sublease, finance, or otherwise deny or withhold a burial lot from any prospective owner or user of such lot.

(C) It shall not be a violation of this section for a person to designate any room, suite of rooms, or apartment as only for men or women if such room, suite of rooms, or apartment is located in a building in which the only toilet and bathroom facilities provided for such room, suite of rooms, or apartment are for the common use of all occupants, so long as that person does not discriminate based on gender identity or expression.

(Ordained by Ord. No. 490-1992, eff. Nov. 25, 1992; a. Ord. No. 66-1995, eff. April 7, 1995; a. Ord. No. 65-2006, eff. April 14, 2006; a. Ord. No. 016-2015, § 3, eff. Feb. 22, 2015; a. Ord. No. 351-2019, § 4, eff. Jan. 1, 2020; a. Ord. No. 131-2022, §§ 1, 2, eff. May 25, 2022)

Sec. 914-5. Employment Discrimination Prohibited.

(A) It shall be an unlawful discriminatory practice, except where based upon applicable national security regulations established by the United States:

(1) For any employer to discriminate by refusing to hire any person or otherwise to discriminate against that person with respect to hire, tenure, terms, conditions or privileges of employment, or any matter directly or indirectly related to employment.

(2) For any employer, employment agency, or labor organization to discriminate in the establishment, announcement

or to follow a policy of discrimination by denying or limiting, through a quota system or otherwise, the employment or membership opportunities of any person or group of persons.

(3) For any employer, labor organization, or joint labor-management committee controlling apprentice training programs to discriminate against any person in the admission to employment in any program established to provide apprentice training.

(4) For any employer, employment agency, or labor organization to publish or circulate or to cause to be published or circulated any notice or advertisement relating to employment or membership which indicates any preference, limitation, specifications or discrimination based on or because of race; natural hair types and natural hair styles commonly associated with race; gender; sex, as defined in Section 914-1-S1, which includes without limitation sexual orientation and gender identity or expression; age; color; religion; disability status; military status; familial status; marital status; or ethnic, national or Appalachian regional origin.

(5) For any employment agency to discriminate by refusing or failing to accept, register, classify properly, refer for employment, or otherwise to discriminate against any person.

(6) For any employer, employment agency, or labor organization to utilize in the recruitment or hiring of persons, any employment agency, placement service, labor organization, training school or center or any other employee-referring source known to discriminate.

(7) For any labor organization to discriminate against any person by limiting their employment opportunities or otherwise adversely affecting their status as an employee, or their wages, hours, or employment conditions.

(8) For an employment agency to discriminate by complying with a request from an employer for the referral of applicants for employment if the request indicates, directly or indirectly, that the employer fails to comply with this chapter.

(9) For any labor organization to discriminate by limiting or classifying its membership.

(10) For any employer, employment agency or labor organization to:

(a) Elicit or attempt to elicit any information concerning the race; natural hair types and natural hair styles commonly associated with race; gender; sex, as defined in Section 914-1-S1, which includes without limitation sexual orientation and gender identity or expression; age; color; religion; disability status; military status; familial status; marital status; or ethnic, national or Appalachian regional origin of an applicant for employment or membership, except as may otherwise be required by or for compliance with state, federal, or local laws, rules and regulations.

(b) Make or keep a record of the race; natural hair types and natural hair styles commonly associated with race; gender; sex, as defined in Section 914-1-S1, which includes without limitation sexual orientation and

gender identity or expression; age; color; religion; disability status; military status; familial status; marital status; or ethnic, national or Appalachian regional origin of any applicant for employment or membership, except as may otherwise be required by or for compliance with state, federal, or local laws, rules and regulations.

(c) Use any form of application for employment or personnel or membership blank seeking to elicit information regarding race; natural hair types and natural hair styles commonly associated with race; gender; sex, as defined in Section 914-1-S1, which includes without limitation sexual orientation and gender identity or expression; age; color; religion; disability status; military status; familial status; marital status; or ethnic, national or Appalachian regional origin, except as may otherwise be required by or for compliance with state, federal, or local laws, rules and regulations; but an employer holding a contract containing a nondiscrimination clause with the government of the United States or any department or agency thereof, may require an employee or applicant for employment to furnish documentary proof of United States citizenship and may retain such proof in the employer's personnel records and may use photographic or fingerprint identification for security purposes.

(11) For any employer, employment agency, or labor organization to discriminate against any person because he has opposed any practice forbidden by this chapter, or because he has made a complaint or testified or assisted in any manner any investigation or proceeding under this chapter.

(12) For any person, whether or not an employer, employment agency, or labor organization, to aid, incite, compel, coerce, or participate in the doing of any act declared to be an unlawful discriminatory practice by this chapter or to obstruct or prevent any person from enforcing or complying with the provisions of this chapter, or to attempt directly or indirectly to commit any act declared by this chapter to be an unlawful discriminatory practice.

(Ordained by Ord. No. 490-1992, eff. Nov. 25, 1992; a. Ord. No. 66-1995, eff. April 7, 1995; a. Ord. No. 65-2006, eff. April 14, 2006; a. Ord. No. 016-2015, § 3, eff. Feb. 22, 2015; a. Ord. No. 351-2019, § 5, eff. Jan. 1, 2020; a. Ord. No. 131-2022, §§ 1, 2, eff. May 25, 2022)

Sec. 914-7. Public Accommodations Discrimination Prohibited.

It shall be an unlawful discriminatory practice:

(A) For any proprietor or his employee, keeper, or manager of a place of public accommodation to discriminate by denying any person except for reasons applicable alike to all persons the full enjoyment of the accommodations, advantages, facilities, or privileges thereof.

(B) For any person to aid, incite, compel, coerce, or participate in the doing of any act declared to be an unlawful discriminatory practice under this section.

(Ordained by Ord. No. 490-1992, eff. Nov. 25, 1992)

Sec. 914-9. Complaint Procedure.

(A) *Administration.* The city manager or one or more persons designated by him as a Complaint Officer may conduct investigations, hearings, and conciliation, make determinations, issue orders and perform such duties as are necessary and appropriate to the administration of this chapter. The city manager is authorized to establish rules and procedures for the administration of this chapter.

(B) *Complaints.*

(1) *Preliminary Investigation.* Whenever it is charged in writing by a person or aggrieved organization, hereinafter referred to as "complainant", that any person, employer, employment agency, or labor organization, hereinafter referred to as the "respondent", has engaged in or is engaging in any unlawful discriminatory practice as defined in this chapter, the Complaint Officer may initiate a preliminary investigation. Such charge shall be filed within six months after the alleged unlawful discriminatory practice is committed.

If it is determined by the Complaint Officer after such preliminary investigation that it is not likely that an unlawful discriminatory practice has been or is being engaged in, the complainant and respondent shall be notified that it has been so determined, and that no other action will be initiated under this chapter.

(2) *Informal Conciliation.* If it is determined, after such preliminary investigation, that it is likely that an unlawful discriminatory practice has been or is being engaged in, the Complaint Officer may endeavor to eliminate such practice by informal methods of conciliation. If the Complaint Officer is satisfied that an alleged unlawful discriminatory practice of the respondent will be or has been eliminated, he may treat the complaint as conciliated and notify the complainant and respondent that no other action will be initiated under this chapter.

If informal methods of conciliation fail to effect the elimination of such alleged unlawful discriminatory practice and it is determined by the Complaint Officer that the alleged unlawful discriminatory practice is conduct over which the state and/or federal government has exercised jurisdiction and provided a mechanism for redress to an aggrieved party, the Complaint Officer shall notify the complainant and respondent that no other action will be taken pursuant to this chapter and will provide complainant with information relating to appropriate state or federal legislation and enforcement agencies which may have jurisdiction.

(3) *Determination Hearing.* If informal methods of conciliation fail to effect the elimination of such alleged unlawful discriminatory practice, and it is determined by the Complaint Officer that the state or federal government has not exercised jurisdiction and provided mechanism for redress, the Complaint Officer may cause to be served upon the respondent and complainant a notice of a determination hearing, notifying the respondent of a hearing at a time and place therein fixed to be held not less than 14 days after the service of such notice and stating the charges specified in the original charge against the respondent. If circumstances war-

rant, the Complaint Officer may serve such notice at any time during the complaint procedure.

The respondent shall have the right to appear at such hearing in person, and the complainant shall be a party to the proceeding.

No person shall be compelled to be a witness against himself in any determination hearing, formal or informal. In conducting any determination hearing as provided herein, the Complaint Officer may request the attendance as witness of any person believed to have knowledge or facts relevant to such hearing.

(4) *Conciliation.* If upon all the evidence presented, the Complaint Officer determines that respondent has engaged in, or is engaging in, any unlawful discriminatory practice under this chapter, whether against the complainant or others, the Complaint Officer may endeavor to eliminate such practice by way of conference and conciliation.

(5) *Notice of Violation and Order to Cease and Desist.* If conference and conciliation fails to effect the elimination of such unlawful discriminatory practice or to obtain conciliation of the matter, or if the Complaint Officer determines that efforts to conciliate would be futile, the Complaint Officer may issue a notice of violation and may issue an order to respondent to cease and desist the unlawful discriminatory practice.

The notice of violation and order to cease and desist of the Complaint Officer shall be served on the respondent and complainant, with notice that if the Complaint Officer determines that after 30 calendar days following service of its order the respondent has not eliminated or corrected the unlawful discriminatory practice, the Complaint Officer shall take action to refer the matter to the city manager or the city manager's designee for civil or criminal enforcement.
(Ordained by Ord. No. 490-1992, eff. Nov. 25, 1992)

Sec. 914-11. Enforcement.

If after 30 calendar days following service of an order to cease and desist the respondent has not eliminated or corrected the unlawful discriminatory practice, the Complaint Officer is authorized to impose a fine of $100 per day for each day of substantial non-compliance with the provisions of this chapter, but not to exceed a total of $1,000.

The city manager is authorized to institute through the city solicitor in the name of the City of Cincinnati any appropriate civil enforcement proceedings.
(Ordained by Ord. No. 490-1992, eff. Nov. 25, 1992)

Sec. 914-13. Failure to Comply With Lawful Order.

Any person who commits an unlawful discriminatory practice under any of the provisions of this chapter and fails to obey any order of the city manager or his duly authorized designee to cease and desist such unlawful discriminatory practice shall be guilty of failure to comply with an unlawful discriminatory practice order, a misdemeanor of the fourth degree.
(Ordained by Ord. No. 490-1992, eff. Nov. 25, 1992)

Sec. 914-15. Exclusions.

Nothing in this chapter shall bar a fraternal organization from giving preference to members of such fraternal organization or from making such selection as is calculated

by such organization to promote the aims, purposes, or fraternal principles for which it is established or maintained.

This chapter does not apply to a religious corporation, association, educational institution, or society with respect to the employment of an individual of a particular religion to perform work connected with the carrying on by that religious corporation, association, educational institution, or society of its activities.

The application and enforcement of the protections created herein are limited solely to the terms of this chapter and such terms shall not create nor enhance protected class status for any other purpose including public and private affirmative action program eligibility. The term "affirmative action program" shall include any program administered by any private or public entity for the purpose of providing preferential treatment for those in a protected class.

Any practice which has a discriminatory effect and which would otherwise be prohibited by this chapter shall not be deemed unlawful if it can be established that such practice is not intentionally devised or operated to contravene the prohibitions of this chapter and can be justified by business necessity. Under this chapter, a "business necessity" exception is applicable only in each individual case where it can be proved by a respondent that, without such exception, such business cannot be conducted; a "business necessity" exemption cannot be justified by the factors of increased costs to business, business efficiency, the comparative characteristics of one group as opposed to another, the stereotyped characterizations of one group as opposed to another, and the preferences of co-workers, employers, customers, or any other person.

The provisions of Chapter 914 shall not apply to any act or charge of discrimination that is currently or was previously the subject of any state or federal civil, criminal or administrative proceeding.
(Ordained by Ord. No. 490-1992, eff. Nov. 25, 1992; a. Ord. No. 131-2022, §§ 1, 2, eff. May 25, 2022)

Sec. 914-17. Severability.

Chapter 914 and each section and provision of said chapter thereunder, are hereby declared to be independent divisions and subdivisions and, notwithstanding any other evidence of legislative intent, it is hereby declared to be the controlling legislative intent that if any provisions of said chapter, or the application thereof to any person or circumstance is held to be invalid, the remaining sections or provisions and the application of such provision to any person or circumstances other than those to which it is held invalid, shall not be affected thereby, and it is hereby declared that such sections and provisions would have been passed independently of such section or provision so known to be invalid.
(Ordained by Ord. No. 490-1992, eff. Nov. 25, 1992)

Chapter 915

WEAPONS OFFENSES

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Sec. 915-1. Definitions.

For purposes of this chapter, the words and phrases defined in this chapter shall have the meanings ascribed to them unless a different meaning is clearly indicated by the context.
(Ordained by Emer. Ord. No. 0037-2023, eff. February 8, 2023)

Sec. 915-1-C. Child.

"Child" means a child under eighteen years of age or a mentally or a physically handicapped child under twenty-one years of age.
(Ordained by Emer. Ord. No. 0037-2023, eff. February 8, 2023)

Sec. 915-1-D. Dangerous Ordnance.

(a) "Dangerous ordnance" means any of the following, except as provided in subsection (b) of this section:

(1) Any automatic or sawed-off firearm, zip-gun, or ballistic knife;

(2) Any explosive device or incendiary device;

(3) Nitroglycerin, nitrocellulose, nitrostarch, PETN, cyclonite, TNT, picric acid, and other high explosives; amatol, tritonal, tetrytol, pentolite, pecretol, cyclotol, and other high explosive compositions; plastic explosives; dynamite, blasting gelatin, gelatin dynamite, sensitized ammonium nitrate, liquid-oxygen blasting explosives, blasting powder, and other blasting agents; and any other explosive substance having sufficient brisance or power to be particularly suitable for use as a military explosive, or for use in mining, quarrying, excavating, or demolitions;

(4) Any firearm, rocket launcher, mortar, artillery piece, grenade, mine, bomb, torpedo, or similar weapon, designed and manufactured for military purposes, and the ammunition for that weapon;

(5) Any firearm muffler or suppressor;

(6) Any combination of parts that is intended by the owner for use in converting any firearm or other device into a dangerous ordnance.

(b) "Dangerous ordnance" does not include any of the following:

(1) Any firearm, including a military weapon and the ammunition for that weapon, and regardless of its actual age, that employs a percussion cap or other obsolete ignition system, or that is designed and safe for use only with black powder;

(2) Any pistol, rifle, or shotgun, designed or suitable for sporting purposes, including a military weapon as issued or as modified, and the ammunition for that weapon, unless the firearm is an automatic or sawed-off firearm;

(3) Any cannon or other artillery piece that, regardless of its actual age, is of a type in accepted use prior to 1887, has no mechanical, hydraulic, pneumatic, or other system for absorbing recoil and returning the tube into battery without displacing the carriage, and is designed and safe for use only with black powder;

(4) Black powder, priming quills, and percussion caps possessed and lawfully used to fire a cannon of a type defined in division (b)(3) of this section during displays, celebrations, organized matches or shoots, and target practice, and smokeless and black powder, primers, and percus-

sion caps possessed and lawfully used as a propellant or ignition device in small-arms or small-arms ammunition;

(5) Dangerous ordnance that is inoperable or inert and cannot readily be rendered operable or activated, and that is kept as a trophy, souvenir, curio, or museum piece;

(6) Any device that is expressly excepted from the definition of a destructive device pursuant to the "Gun Control Act of 1968," 82 Stat. 1213, 18 U.S.C. 921(a)(4), as amended, and regulations issued under that act; or

(7) Any firearm with an overall length of at least twenty-six inches that is approved for sale by the federal Bureau of Alcohol, Tobacco, Firearms, and explosives under the "Gun Control Act of 1968," 82 Stat. 1213, 18 U.S.C. 921(a)(3), but that is found by the bureau not to be regulated under the "National Firearms Act," 68A Stat. 725 (1934), 26 U.S.C. 5845(a).

(Ordained by Emer. Ord. No. 0037-2023, eff. February 8, 2023)

Sec. 915-1-F. Firearm.

(a) "Firearm" means:

(1) any deadly weapon capable of expelling or propelling one or more projectiles by the action of an explosive or combustible propellant; or

(2) the frame or receiver of any such weapon as defined in 27 CFR 478.12.

(b) "Firearm" includes an unloaded firearm, and any firearm that is inoperable but that can readily be rendered operable.

(c) The trier of fact may rely upon circumstantial evidence, including, but not limited to, the representations and actions of the individual exercising control over the firearm when determining whether a firearm is capable of expelling or propelling one or more projectiles by the action of an explosive or combustible propellant.

(Ordained by Emer. Ord. No. 0037-2023, eff. February 8, 2023)

Sec. 915-1-F1. Forthwith.

"Forthwith" means immediately, promptly, or without delay.

(Ordained by Emer. Ord. No. 426-2023, § 1, eff. Dec. 13, 2023)

Sec. 915-1-I. Intimate Partner.

"Intimate partner" means, with respect to a person, the spouse of the person, a former spouse of the person, an individual who is a parent of a child of the person, an individual who cohabitates or has cohabited with the person, and an individual who, at the time of the conduct in question, is in a dating relationship with the person who also is an adult or who, within the twelve months preceding the conduct in question, has had a dating relationship with the person who also is an adult.

(Ordained by Emer. Ord. No. 0037-2023, eff. February 8, 2023)

Sec. 915-1-K. Knowingly.

"Knowingly" shall have the same meaning as in Ohio Revised Code Section 2901.22.

(Ordained by Emer. Ord. No. 426-2023, § 1, eff. Dec. 13, 2023)

Sec. 915-1-M. Misdemeanor Crime of Domestic Violence.

"Misdemeanor crime of domestic violence" shall have the same meaning as used in 18 U.S.C. § 921(a).

(Ordained by Emer. Ord. No. 0037-2023, eff. February 8, 2023)

Sec. 915-1-N. Negligent or Negligently.

"Negligent" or "negligently" means when, because of a substantial lapse from due care, a person fails to perceive a risk that the person's conduct may cause a certain result or may be of a certain nature or fails to avoid a risk that the person's conduct may cause a certain result or may be of a certain nature. A person is negligent with respect to circumstances when, because of a substantial lapse from due care, the person fails to perceive or avoid a risk that such circumstances may exist.
(Ordained by Emer. Ord. No. 0037-2023, eff. February 8, 2023)

Sec. 915-1-S. Safe Storage.

"Safe storage" means:

(a) a device that, when installed on a firearm, is designed to prevent the firearm from being operated without first deactivating the device;

(b) a device incorporated into the design of the firearm that is designed to prevent the operation of the firearm by anyone not having access to the device; or

(c) a safe, gun safe, gun case, lock box, or other device that is designed to be or can be used to store a firearm and that is designed to be unlocked only by means of a key, a combination, or other similar means.

(Ordained by Emer. Ord. No. 0037-2023, eff. February 8, 2023)

Sec. 915-1-U. Under Operation of Law or Legal Process.

"Under operation of law or legal process" shall not mean mere completion, termination, or expiration of a sentence imposed as a result of a criminal conviction.
(Ordained by Emer. Ord. No. 0037-2023, eff. February 8, 2023)

Sec. 915-3. Child Endangering.

(a) No person who is the parent, guardian, custodian, person having custody or control, or person in loco parentis of a child shall create a substantial risk to the health or safety of the child by violating a duty of care, protection, or support.

(b) It shall be a substantial risk to the health or safety of a child for a person who is the parent, guardian, custodian, person having custody or control, or person in loco parentis of a child to negligently store or leave a firearm in a manner or location in the person's residence or vehicle where the person knows or reasonably should know a child is able to gain access to the firearm.

(c) This section does not apply to a person who does either of the following:

(1) Stores or leaves a firearm in the person's residence or vehicle if the firearm is kept in safe storage; or

(2) Stores or leaves a firearm in the person's residence or vehicle if a child gains access to the firearm as a result of any other person's unlawful entry into a person's residence or vehicle.

(d) Penalties. Whoever violates this section is guilty of a first degree misdemeanor.

(e) Nothing in this section prohibits a person who is in the person's residence or vehicle from carrying a firearm on the person's body or placing a firearm in a location that is under the person's immediate control.

(f) This section shall not apply if the circumstances indicate that the firearm was unlawfully furnished to the child, violation of which would be prosecuted under applicable state law.

(g) Any instrumentality that has been used in a violation of this section shall be seized and is subject to forfeiture pursuant to Chapter 2981 of the Ohio Revised Code. (Ordained by Emer. Ord. No. 0037-2023, eff. February 8, 2023)

Sec. 915-5. Having weapons while under disability.

(a) Unless relieved from disability under operation of law or legal process, no person shall knowingly acquire, have, carry, or use any firearm or dangerous ordnance, if either of the following apply:

(1) The person is subject to a court order that:

(A) Was issued after a hearing of which such person received actual notice, and at which such person had an opportunity to participate;

(B) Restrains such person from harassing, stalking, or threatening an intimate partner of such person or child of such intimate partner or person, or engaging in other conduct that would place an intimate partner in reasonable fear of bodily injury to the partner or child; and

(C) Provides one of the following:

(i) Includes a finding that such person represents a credible threat to the physical safety of such intimate partner or child; or

(ii) By its terms explicitly prohibits the use, attempted use, or threatened use of physical force against such intimate partner or child that would reasonably be expected to cause bodily injury.

(2) The person has been convicted of a misdemeanor offense of domestic violence.

(b) Whoever violates this section is guilty of misdemeanor having weapons while under disability, a misdemeanor punishable by up to one year in jail.

(c) Any instrumentality that has been used in a violation of this section shall be seized and is subject to forfeiture pursuant to Chapter 2981 of the Ohio Revised Code. (Ordained by Emer. Ord. No. 0037-2023, eff. February 8, 2023)

Sec. 915-7. Mandatory Reporting of Loss or Theft of Firearm or Dangerous Ordnance.

(a) Conduct Prohibited. No person shall knowingly fail to report to law enforcement authorities forthwith the loss or theft of any firearm or dangerous ordnance in the person's possession or under the person's control.

(b) Reporting Requirements. A report to law enforcement authorities of the loss or theft of any firearm or dangerous ordnance in the person's possession or under the person's control shall include both the serial number of the firearm or dangerous ordnance and the date of acquisition of the firearm or dangerous ordnance. A person who fails to include both the serial number of the firearm or dangerous ordnance and the date of acquisition of the firearm or dangerous ordnance on the report may be subject to a civil fine, as detailed in subsection 915-7(e).

(c) Severability. If any section, subsection, sentence, clause, phrase, or portion of the provisions of this section is for any reason declared by any court of competent jurisdiction to be invalid or unconstitutional, such section, subsection, sentence, clause, phrase, or portion shall be deemed a separate,

distinct, and independent provision, and such holding shall not affect the validity of the remaining provisions of this section.

(d) Event Causing Section 915-7 to Become Inoperative. In the event the Ohio General Assembly codifies changes to the Revised Code which prohibit local legislation of firearm loss or theft reporting requirements, Section 915-7 immediately shall become inoperative.

(e) Violations and Penalties.

(1) Violation of subsection 915-7(a) of this section is a misdemeanor of the fourth degree.

(2) Violations may also be cited as a Class D civil offense pursuant to Section 1501-9.

(Ordained by Emer. Ord. No. 426-2023, § 1, eff. Dec. 13, 2023)

TITLE X

ENVIRONMENTAL CODE*

CHAPTER 1001

AIR QUALITY

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Sec. 1001-3-P. Person.
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Sec. 1001-15. Administrative Policies and Procedures.
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Sec. 1001-19. Complaints, Investigations and Orders.
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Sec. 1001-25. Notice of Violation, Remedial Action and Civil Fine.
Sec. 1001-29. Citizen Action.
Sec. 1001-31. Emergency Powers and Injunction.
Sec. 1001-33. Notice to Public.

*__Cross references—__Public utilities, tit. IV; division of air pollution control for motor buses, § 406-1-D1; disposal of dangerous chemicals and objects, § 729-89; environmental change, § 741-1-E; gasoline, ch. 835; EQ environmental quality district regulations, ch. 1459.

Sec. 1001-1. Purpose.

The purpose of Chapter 1001, Air Quality, of the Cincinnati Municipal Code shall be to protect and enhance the quality of the city's air resources so as to promote the public health, welfare, and comfortable enjoyment of life, property, and recreation of the people of Cincinnati, and to enable the city, through the city manager, or his or her designee, to adopt and maintain a program for source reduction, and prevention, control and abatement of air pollution that is consistent with the federal Clean Air Act and Chapter 3704, Air Pollution Control, of the Ohio Revised Code, and the regulations adopted pursuant to those enactments.
(Ordained by Ord. No. 159-2004, eff. June 4, 2004)

Sec. 1001-3. Definitions.

For the purpose of this chapter the words and phrases defined shall have the meaning set forth below, unless a different meaning is clearly indicated by the context.
(Ordained by Ord. No. 159-2004, eff. June 4, 2004)

Sec. 1001-3-A1. Air Contaminant.

"*Air contaminant*" means particulate matter, dust, fumes, gas, mist, smoke, vapor, or odorous substances, or any combination thereof.
(Ordained by Ord. No. 159-2004, eff. June 4, 2004)

Sec. 1001-3-A2. Air Contaminant Source.

"*Air contaminant source*" means each separate operation or activity that results or may result in the emission of any air contaminant.
(Ordained by Ord. No. 159-2004, eff. June 4, 2004)

Sec. 1001-3-A3. Air Pollution.

"*Air pollution*" means the presence in the ambient air of one or more air contaminants or any combination thereof in sufficient quantity and of such characteristics and duration as is or may be injurious to human health or welfare, plant or animal life, or property, or as substantially interferes with the comfortable enjoyment of life, health, safety, or property.
(Ordained by Ord. No. 159-2004, eff. June 4, 2004)

Sec. 1001-3-A4. Ambient Air.

"*Ambient air*" means that portion of the atmosphere outside of buildings and other enclosures, stacks, or ducts that surrounds human, plant, or animal life, or property.
(Ordained by Ord. No. 159-2004, eff. June 4, 2004)

Sec. 1001-3-E1. Emit.

"*Emit*" or "*emission*" means the release either directly or indirectly into the ambient air of an air contaminant.
(Ordained by Ord. No. 159-2004, eff. June 4, 2004)

Sec. 1001-3-E2. Emission Limitation.

"*Emission limitation*" and "*emission standard*" mean a requirement that limits the quantity, rate or concentration of emissions of air contaminants, including any requirement relating to the operation or maintenance of an air contaminant source.
(Ordained by Ord. No. 159-2004, eff. June 4, 2004)

Sec. 1001-3-F. Federal Clean Air Act.

"*Federal Clean Air Act*" means "Air Quality Act of 1967," 81 Stat. 485, as amended by "Clean Air Act Amendments of 1970," 84 Stat. 1676, "Act of November 18, 1971," 85 Stat. 464, "Act of April 9, 1973," 87 Stat. 11, "Act of

June 24, 1974," 88 Stat. 248, "Clean Air Act Amendments of 1977," 91 Stat. 685, "Safe Drinking Water Act Amendments of 1977," 91 Stat. 1393, "Clean Air Act Amendment of 1990," 104 Stat. 2399, and any other amendments that have been or may hereafter be adopted, or any supplements to such acts and laws of the United States that have been or may hereafter be enacted in substitution therefore, together with any regulations that have been or may hereafter be adopted by the administrator of the United States E.P.A. by virtue of and in accordance with such acts and laws. Reference to a particular title or section of the federal Clean Air Act includes any amendments that have been or may hereafter be enacted in substitution therefore and any regulations pertaining to the title or section that have been or may hereafter be adopted by virtue of and in accordance with the federal Clean Air Act.
(Ordained by Ord. No. 159-2004, eff. June 4, 2004)

Sec. 1001-3-P. Person.

"*Person*" means the federal government or any agency thereof, the state or any agency thereof, any political subdivision or any agency thereof, or any public or private corporation, individual, partnership, or other entity.
(Ordained by Ord. No. 159-2004, eff. June 4, 2004)

Sec. 1001-3-S. Stationary Source.

"*Stationary source*" means any building, structure, facility or installation or any portion thereof that emits any air contaminant.
(Ordained by Ord. No. 159-2004, eff. June 4, 2004)

Sec. 1001-5. Air Pollution Nuisance Prohibited.

No person shall cause the emission or escape into the open-air from any stationary source or stationary sources whatsoever, any air contaminant, in such manner or in such amounts as to:

(1) Endanger the health, safety or welfare of the public, cause unreasonable injury or damage to property; or

(2) Substantially interfere with the comfortable enjoyment of life, health, property or safety.

A violation of this section is hereby found and declared to be a public nuisance. It shall be unlawful for any person to cause, permit or maintain any such public nuisance.
(Ordained by Ord. No. 159-2004, eff. June 4, 2004)

Sec. 1001-7. Exceeding Federal or Ohio Air Emission Limitations Prohibited.

An air emission which exceeds or violates any enforceable and applicable federal or Ohio air emission standard or limitation, or any other enforceable and applicable federal or Ohio standard or requirement pertaining to air pollution abatement or control, including but not limited to the limitations, standards or requirements established under the Federal Clean Air Act as amended, Chapter 3704 of the Ohio Revised Code as amended, and regulations adopted and promulgated thereunder, is hereby prohibited.
(Ordained by Ord. No. 159-2004, eff. June 4, 2004)

Sec. 1001-9. Domestic Use.

The provisions of this chapter shall not apply to consumer products intended for household use by the general public when used in the manner intended by their manufacturers.
(Ordained by Ord. No. 159-2004, eff. June 4, 2004)

Sec. 1001-11. Collection of Information Related to Air Pollution Problems.

The city manager, or his or her designee, including the Hamilton County Department of Environmental Services ("HCDES"), may, upon determining that there is reasonable cause to believe that an air pollution violation as defined by this chapter exists in an area or areas of the city or the city as a whole, collect information relating to any such air pollution violation, by requiring of person(s) suspected responsible for the air pollution, the submission of available information which may assist in the identification and abatement of any such problem or nuisance. Before requiring the submission of information from persons suspected to be responsible for sources of air pollution, the city manager, or his or her designee, including HCDES, shall first consider:

(a) The ready availability of information elsewhere;

(b) The economic consequences of the request to the person or persons from whom the information is sought; and

(c) The benefits to the community for obtaining the information and fulfilling the objectives of this chapter.

All persons requested to provide information by the city manager, or his or her designee, including HCDES, hereunder shall do so within the time period specified in any such request.

(Ordained by Ord. No. 159-2004, eff. June 4, 2004)

Sec. 1001-13. Records Available for Public Inspection; Exception.

Any records, reports, or information obtained under this chapter shall be available for public inspection, except that upon a showing satisfactory to the city manager, or his or her designee, by any person that such records, reports, or information, or any particular part thereof other than emission data, to which the city manager, or his or her designee, has access under such chapter, if made public, would divulge methods or processes entitled to protection as trade secrets of such person as defined under 42 USC Section 11042 (or equivalent Ohio law), the city manager, or his or her designee, shall consider such record, report, or information or particular portion thereof confidential, except that such record, report, or information may be disclosed when necessary to sustain any proceeding brought to enforce the provisions of this chapter. Nothing in this section shall be construed to prevent the city manager, or his or her designee, from compiling or publishing analyses or summaries relating to the general condition of the atmosphere, provided that such reports do not reveal any information otherwise confidential under this section.

(Ordained by Ord. No. 159-2004, eff. June 4, 2004)

Sec. 1001-15. Administrative Policies and Procedures.

The city manager, or his or her designee, shall develop and recommend administrative policies and procedures to implement the provisions and purposes of this chapter and encourage and conduct studies and research relating to air pollution and its prevention, control and abatement.

(Ordained by Ord. No. 159-2004, eff. June 4, 2004)

Sec. 1001-17. Intergovernmental Cooperation.

The city manager, or his or her designee, shall advise, consult and cooperate with agencies and organizations of the state, political subdivisions of the state, other states, agencies of the federal government, industries, and with affected and interested groups in

furtherance of improved air quality and encourage cooperation of municipalities, counties, industries and others in preserving the quality of the air within the city.
(Ordained by Ord. No. 159-2004, eff. June 4, 2004)

Sec. 1001-19. Complaints, Investigations and Orders.

The city manager or his or her designee, including but not exclusively HCDES, is hereby designated to investigate complaints and make other investigations related to air pollution or air pollution nuisances in the city. The city manager, or his or her designee, may enter orders requiring compliance with the requirements of this chapter. The city manager, or his or her designee, including HCDES, may enter and inspect any property and records at any reasonable time for the purpose of ascertaining the state of compliance with the requirements of this chapter. If entry or inspection is refused, the city solicitor may apply to an appropriate court for a warrant or other order necessary to achieve the purposes of this chapter. Nothing contained in this chapter shall be construed to allow a search of any premises without a proper warrant where such is required by law.
(Ordained by Ord. No. 159-2004, eff. June 4, 2004)

Sec. 1001-21. Collection of Data for Alleged Violations.

The city manager, or his or her designee, including HCDES, may order any person who the city manager, or his or her designee, including HCDES, has reasonable cause to believe has been or is causing a violation of any provision of this chapter to report to the city manager or his or her designee, including HCDES, information regarding the alleged violation. The city manager, or his or her designee, including HCDES, shall specify the manner in which the information is to be collected and the form and frequency in which it is to be reported. All persons shall provide all information requested within the time period specified in any such request issued by the city manager, or his or her designee, including HCDES
(Ordained by Ord. No. 159-2004, eff. June 4, 2004)

Sec. 1001-23. Administrative Orders; Penalties.

In addition to or in lieu of any other remedies provided by law, if a person violates any of the provisions of this chapter, or fails to take the corrective action set out in a notice provided for in CMC Section 1001-25 by the date provided in the notice, the city manager, or his or her designee, may issue an administrative order or orders containing any of the following measures:

(a) Notice of violation and remedial action related to the violation, including an environmental assessment performed by the violator to determine the nature and extent of air pollutants responsible for the violation, and preparation and implementation of a compliance plan to bring the violator into compliance with this chapter.

(b) The imposition of a Class F Civil Offense as provided in CMC Chapter 1501, which includes a fine of up to $15,000 per day of violation per violation; or

(c) In addition to or in lieu of any civil remedy provided by law, a violation of any provision of this chapter may be prosecuted as a misdemeanor of the fourth degree if it is a first offense. If the offender has been previously convicted of violating any section of this chapter, he is guilty of a misdemeanor of the first degree.

In rendering an order concerning a violation of any of the provisions of

this chapter, the city manager, or his or her designee, shall consider among other factors the magnitude of the violations, and any recurrence of violations of this chapter by the violator.
(Ordained by Ord. No. 159-2004, eff. June 4, 2004)

Sec. 1001-25. Notice of Violation, Remedial Action and Civil Fine.

Upon issuance of an administrative order for a notice of violation or a civil fine provided in CMC Sec. 1001-23, the city manager or the city manager's designee, shall serve upon the owner and, if different, upon the person in control, such as lessee, agent or tenant having charge of such lot or land, a written notice in accordance with CMC Section 1501-13. In addition to the notice of civil offense and civil fine provided in Section 1501-13, the written notice shall include the nature of the violation, including a reference to the provisions of this chapter alleged to be violated, a date by which the violation is to be corrected and the action that the city may take if the violation is not corrected.

A person served with a written notice pursuant to this section may answer the charge in accordance with Section 1501-15, including an offer of proof of correction in accordance with Section 1501-19, within ten business days of receipt of the notice by the person being charged.

For purposes of this section, receipt of notice by the person charged shall mean (1) the date on which the issuing officer personally served the person being charged, (2) the date on which the issuing officer posted a copy of the notice on the real property in accordance with Section 1501-13(d), or (3) three days after the issuing officer has mailed the notice in accordance with Section 1501-13(d) if the real property is vacant, and the issuing officer is unable to personally serve the notice to the person charged or post a copy on the real property.

For purposes of denying a civil violation of this chapter, or offering proof of correction, the procedures contained in Section 1501-13 to Section 1501-31 shall apply to the person being charged.
(Ordained by Ord. No. 159-2004, eff. June 4, 2004)

Sec. 1001-29. Citizen Action.

If the city manager, or his or her designee, including HCDES, fails upon written complaint by a Cincinnati resident of violations of Section 1001-5, Air Pollution Nuisances Prohibited, or Section 1001-7, Exceeding Federal or Ohio Air Emission Limitations Prohibited, or any order issued under Section 1001-23, Administrative Order hereof, or 1001-31, Emergency Powers and Injunction, to diligently investigate, and prosecute in accordance with the provisions of Sections 1001-19 through 1001-25 of this chapter, within 60 days of receipt of the complaint, the citizen may commence a civil action in a court of competent jurisdiction against any person who violates, or has violated any provisions of this chapter or order issued hereunder to compel compliance herewith, including injunctive procedures where permitted by law. The citizen shall mail a copy of the complaint to the alleged violator by certified mail, return receipt requested, at the time the complaint is field. The city shall not be responsible for any of the citizen's costs of litigation including attorney's fees unless the court so orders, where the city is the violator of Section 1001-5 or 1001-7 of this chapter. The solicitor shall have the right to intervene in the name of the city in any such proceedings instituted by a citizen. The court, in issuing any final order in an action brought pursuant to this section, may award costs of litigation, including reasonable attorney and expert witness

fees, to any substantially prevailing party, whenever the court determines such award is appropriate.
(Ordained by Ord. No. 159-2004, eff. June 4, 2004)

Sec. 1001-31. Emergency Powers and Injunction.

Upon receipt of information that a violation or threatened violation of this chapter may imminently and substantially endanger the health, safety or welfare of the residents of Cincinnati or the environment, the city solicitor is hereby authorized and empowered to institute civil proceedings at any time in the name of the city to enjoin any person from causing or contributing to any such violation or threatened violation without first exhausting any other remedy.

The city solicitor is authorized to institute civil proceedings at any time in the name of the city to enjoin air pollution nuisances or emissions in violation of Section 1001-5 or 1001-7 hereof.
(Ordained by Ord. No. 159-2004, eff. June 4, 2004)

Sec. 1001-33. Notice to Public.

Upon reasonable evidence of a violation of this chapter which may endanger the public, the city manager, or his or her designee, shall give notice to the public or to that portion of the public that is in danger by any and all appropriate means.
(Ordained by Ord. No. 159-2004, eff. June 4, 2004)

Chapter 1021

JUNK FACILITY

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Sec. 1021-27. Administrative Order.
Sec. 1021-29. Appeal from Orders and Decisions.
Sec. 1021-31. Emergency Powers and Injunction.
Sec. 1021-99. Penalties.

Sec. 1021. Purpose.

The purpose of this chapter is to provide for the licensing and supervision of junk facilities and to assure the promotion of sound health and environmental practices.
(Ordained by Ord. No. 345-1995, eff. Nov. 24, 1995)

Sec. 1021-1. Definitions.

For the purpose of this chapter the words and phrases defined above have the meaning set forth below, unless a different meaning is clearly indicated by the context.
(Ordained by Ord. No. 345-1995, eff. Nov. 24, 1995)

Sec. 1021-1-A. Automobile Graveyard.

"Automobile graveyard" means junk yard.
(Ordained by Ord. No. 345-1995, eff. Nov. 24, 1995)

Sec. 1021-1-C. Contamination.

"Contamination" means the existence of any substance introduced into air, water or soil which has the effect of rendering them harmful, toxic or hazardous.
(Ordained by Ord. No. 345-1995, eff. Nov. 24, 1995)

Sec. 1021-1-C1. Closure.

"Closure" means the time at which the facility will no longer accept junk or salvage motor vehicles or the effective date of an order revoking the license of the facility. The term includes measures performed to protect public health or safety, to prevent air or water pollution, or to make the facility suitable for other uses, if any, including, without limitation, the establishment and maintenance of suitable cover soil and vegetation and the minimization of erosion, the infiltration of surface water into such areas, the production of leachate, and the accumulation of runoff of contaminated surface water.
(Ordained by Ord. No. 345-1995, eff. Nov. 24, 1995)

Sec. 1021-1-F. Fence.

"Fence" means a barrier at least eight feet but not more than ten feet in height, which is either comprised of plantings or natural objects, or constructed of any non-transparent material, approved by the director of buildings and inspections of the city of Cincinnati, and created and maintained so as to substantially obscure the facility materials located within or upon the premises of the junk facility from the ordinary view of persons passing upon any public street or highway located within the city of Cincinnati. The eight feet height requirement for fences shall apply only to new or replacement fencing.
(Ordained by Ord. No. 345-1995, eff. Nov. 24, 1995)

Sec. 1021-1-H. Health Commissioner.

"Health commissioner" means the health commissioner of the city of Cincinnati.
(Ordained by Ord. No. 345-1995, eff. Nov. 24, 1995)

Sec. 1021-1-J. Junk.

"Junk" means scrap copper, brass, tin, rope, rags, batteries, paper, rubber, glass, lead, trash, waste, second-hand plumbing materials, second-hand gas and electric fixtures, used mattresses, iron, steel, and all other old or used articles commonly designated as junk, including all old or scrap ferrous or nonferrous material.
(Ordained by Ord. No. 345-1995, eff. Nov. 24, 1995)

Sec. 1021-1-J1. Junk Yard.

"Junk yard" means any establishment or place of business which is maintained or

operated for the purposes of storing, keeping, buying or selling junk, except manufacturing establishments buying and storing scrap or junk materials for use, in altered form, in their manufacturing process, or establishments or places where motor vehicles, wrecked or otherwise, are being held due to impoundment by a police officer, or which are maintained principally for the repair of wrecked or damaged motor vehicles. In no event shall the exception pertaining to those engaged principally in the repair of motor vehicles apply to establishments or places wherein any wrecked or damaged motor vehicle is permitted to remain outside of a completely enclosed area for a period of more than one week, or where more than 15 wrecked or damaged motor vehicles are permitted to remain outside of a completely enclosed area at any one time.
(Ordained by Ord. No. 345-1995, eff. Nov. 24, 1995)

Sec. 1021-1-J2. Junk Facility.

"Junk facility" or "facility" means automobile grave yard, junk yard, motor vehicle salvage lot, but does not include a scrap metal processing facility or existing state licensed motor vehicle salvage dealer facilities.
(Ordained by Ord. No. 345-1995, eff. Nov. 24, 1995)

Sec. 1021-1-M. Motor Vehicle Salvage Lot.

"Motor vehicle salvage lot" means any place where the buying, selling or storing of used motor vehicle parts, exclusive of tires, or the salvaging of motor vehicles, or the bringing of any motor vehicles thereon for the purpose of removing parts, accessories, equipment or sections or portions therefrom for sale to others, or the storing, keeping, buying or selling of junked, wrecked, scrapped, ruined, dismantled or inoperable motor vehicle occurs, with the exception of establishments or places where motor vehicles, wrecked or otherwise, are being held due to impoundment by a police officer, or which are maintained principally for the repair of wrecked or damaged motor vehicles. In no event shall the exception pertaining to those engaged principally in the repair of motor vehicles apply to establishments or places wherein any wrecked or damaged motor vehicle is permitted to remain outside of a completely enclosed area for a period of more than one week, or where more than 15 wrecked or damaged motor vehicles are permitted to remain outside of a completely enclosed area at any one time. The term motor vehicle salvage lot shall also include any piece of property on which there is habitually kept two or more inoperable motor vehicles. A collection of motor vehicle parts and similar metal parts occupying the space of one automobile shall be considered as one motor vehicle under the terms of this definition.
(Ordained by Ord. No. 345-1995, eff. Nov. 24, 1995)

Sec. 1021-1-P. Person.

"Person" means the state, any political subdivision of the state or other state or local body, the United States and any agency or instrumentality thereof, and any legal entity or organization defined as a person under Section 1.59 of the Ohio Revised Code.
(Ordained by Ord. No. 345-1995, eff. Nov. 24, 1995)

Sec. 1021-1-P1. Public Nuisance.

"Public nuisance" means any space, building, excavation, facility or site operated for the disposal of material authorized in this chapter which in its entirety or in part thereof, by the reason of the condition in which the same is permitted to be or remain, shall or may endanger the health, life, limb, or property or cause any hurt, harm, inconvenience,

damage or injury to any one or more persons within the city including, but not limited to, any one or more of the following:

(a) By reason of being a menace to the general health of the community;

(b) By reason of being a fire hazard;

(c) By reason of being unsafe for occupancy or use on, in, about, or around the aforesaid premises;

(d) By reason of being a nuisance because of a lack of reasonable or adequate maintenance of the premises, thereby depreciating the enjoyment and use of the adjacent properties in the immediate vicinity to such an extent that it is harmful to the community in which such premises, site, or facility is situated;

(e) By reason of material being placed on the premises, site, or facility which may cause seepage through a dike or in any other way drain upon adjacent property or into ditches or waterways so as to cause pollution of water or soil;

(f) By reason of material being placed on the premises, site, or facility being of such a nature so as to cause pollution of air;

(g) By reason of encumbering the use of the right-of-way;

(h) By reason of placing the right-of-way in a condition that its use is to impose a danger to the public;

(i) By reason of impeding the proper maintenance/construction of the right-of-way.

(Ordained by Ord. No. 345-1995, eff. Nov. 24, 1995)

Sec. 1021-1-S. Scrap Metal Processing Facility.

"Scrap metal processing facility" means an establishment utilizing machinery and equipment for processing iron, steel or nonferrous metallic scrap into prepared grades and whose principal product is scrap iron, scrap steel or nonferrous metallic scrap for sale for remelting purposes to steel mills, foundries, smelters and refiners.

(Ordained by Ord. No. 345-1995, eff. Nov. 24, 1995)

Sec. 1021-3. Rules and Regulations.

The city manager shall promulgate rules and regulations for junk facilities.

(Ordained by Ord. No. 345-1995, eff. Nov. 24, 1995)

Sec. 1021-5. License.

(a) No person shall establish, modify, operate or maintain a junk facility without a license from the health commissioner.

(b) The health commissioner shall issue a license for junk facilities within 30 days after receiving a complete application, accompanying plans, specifications, and information. The license for such facilities shall be issued yearly after review and approval by the health commissioner prior to each year's renewal. All licenses issued shall expire December 31 of each year. All applications for renewal shall be submitted to the health commissioner with the required fee not later than 90 days prior to the expiration date of the current license. If no objection to the renewal is made to the health commissioner within 30 days, operation of the facility can continue and a renewal license shall be issued. If a late application is made for renewal, the health commissioner shall have 90 days in which to approve or deny such application. A new license shall be secured before the facility shall be placed in operation which will allow

operation or maintenance until the following December 31. All licenses shall be in writing and shall state the conditions thereof, and the term for which the license is granted. It shall be unlawful for any person to conduct, operate, maintain, or manage any facility without complying with the requirements of this chapter.

(c) The annual fee for a license to establish, modify, operate, or maintain a facility shall be six hundred dollars ($600.00). In addition, a bond must be posted in the amount of one hundred thousand dollars ($100,000.00). The bond is required to ensure compliance with this chapter.

(d) Application for a license to establish, modify, operate, or maintain a facility, shall be submitted to the health commissioner and shall contain the following:

(1) A topographical map containing pertinent information for the orderly development, conduct, and completion of the facility, with the final elevation indicated.

(2) A surface water site investigation report, including drainage to, adjoining property, metropolitan sewer district, stormwater management, or ground water.

(3) A report describing any soil or surface water contamination.

(4) A report showing the number, age, type, and size of equipment to ensure the proper operation of the facility and showing details of fencing and/or berming roadways and landscaping.

(5) A report disclosing the ownership of the land upon which the facility is located and an accurate description of the boundaries of the facility.

(6) A report describing the financial viability of the operation.

(7) A report certifying that the applicant has met the pertinent air, building, fire, health and zoning code requirements for the facility.

(e) The health commissioner shall not issue a license to establish and operate a facility without proper diking when any portion of the facility is proposed to be located in either of the following locations:

(1) Within the boundaries of the one-hundred year flood plain of a watercourse, as those boundaries are shown on the applicable maps prepared under the "National Flood Insurance Act of 1968," 82 Stat. 572, 442 U.S.C.A. 4001, as amended. With respect to watercourses or portions thereof for which no such maps have been prepared, the boundaries of the one-hundred year flood plain shall be determined by the applicant for a license based upon a design storm of seven inches of precipitation in twenty-four hours and upon standard methodologies set forth in "Urban Hydrology of Small Watersheds" (Soil Conservation Service Technical Release Number 55) and Section 4 of the "National Engineering Hydrology Handbook" of the Soil Conservation Service of the United States Department of Agriculture.

(2) Within the boundaries of a sole source aquifer designated by the administrator of the United States Environmental Protection Agency under the "Safe Drinking Water Act," 88 Stat. 1660 (1974, 42 U.S.C.A. 300f), as amended.

(f) The health commissioner may permit existing junk facility to spread significant capital expenditures, in excess of five thousand dollars ($5,000.00), over a period of years, not to exceed five (5) years.
(Ordained by Ord. No. 345-1995, eff. Nov. 24, 1995)

Cross reference—Penalty, § 1021-99.

Sec. 1021-7. Review and Comments Prior to Approval.

(a) The health commissioner shall send copies of applications and items attached thereto, to the appropriate departments for review and comments.

(b) The health commissioner shall not issue a license unless the applicant is in compliance with all applicable air, building, fire, health, drainage and zoning codes.
(Ordained by Ord. No. 345-1995, eff. Nov. 24, 1995)

Sec. 1021-9. Operation and Maintenance of Facility.

(a) The operation of the facility shall be conducted totally within the boundaries of the facility and within the fence area described in the application for the license in Section 1021-5, License.

(b) The operation of the facility shall be conducted in accordance with the following:

(1) All fluids be drained from vehicles stored for more than 30 days, or prior to removal of any parts from the vehicle.

(2) All vehicles be stored on an impermeable surface with appropriate containment prior to and during removal of fluids.

(3) A stormwater management utility approved surface water control system shall be installed at the facility. All surface water shall be collected in this facility and disposed of as approved by the health commissioner.

(4) Soil and/or surface water samples shall be taken at the facility where contamination is suspected. The samples shall be taken to a certified laboratory and tested for priority pollutants as defined in 40 CFR 126.26 or as determined by the health commissioner. The laboratory analysis shall be at the owner's expense. Treatment of the surface water runoff may be required before disposing outside the property.

(5) The health commissioner may require the installation of ground water monitoring wells.

(6) A record shall be kept on all fluids removed from vehicles determined to be hazardous, indicating proper disposal or recycling.

(c) The operator shall take action: to control noise, dust, and odors that originate from the facility, so as not to cause a public nuisance, health hazard or air pollution. All facilities shall have vehicle cleaning apparatus to remove dirt and debris from the vehicle prior to the vehicle exiting the facility.

(d) The operation of the facility shall comply with the Scrap Tire requirements of the Chapter 3734 Solid and Hazardous Waste of the Ohio Revised Code and any regulation adopted pursuant to such section and the waste tire provision of Section 3745-27-03 Exemptions of the Ohio Administrative Code.

(e) Open burning not be conducted, permitted or allowed at a facility.

(f) Open dumping, as defined in Chapter 3745-27-01 of the Ohio Administrative Code, shall not be conducted, permitted or allowed on a facility.

(g) Solid wastes, infectious wastes, hazardous wastes, residual waste, sewage solids, semi-solids or liquid wastes shall not be accepted at a facility.

(h) The operator shall exclude all domestic animals from the facility, except for dogs employed for security purposes.

(i) The operator shall maintain the fence in good repair without rust or signs.

(j) The operator shall maintain the area between the fence and street in a clean, litter and weed free manner.
(Ordained by Ord. No. 345-1995, eff. Nov. 24, 1995)

Sec. 1021-11. Inspections.

(a) At least twice annually, the health commissioner shall cause each facility, licensed under this chapter to be inspected, one inspection scheduled and the other unannounced, and shall cause a record to be made of each inspection.

(b) The health commissioner, upon proper identification and upon stating the purpose and necessity of an inspection, may enter at reasonable times upon any public or private property, real or personal, to inspect, obtain samples, and examine or copy records to determine compliance with this chapter. The health commissioner may apply for a search warrant necessary to achieve the purposes for this chapter. If entry is refused or inspection is refused, hindered, or thwarted, the health commissioner may suspend or revoke the facility's license.

(c) In the event of any conflict between this chapter and the provisions of any law, rule or regulation of the state of Ohio, the provisions imposing the higher standard or the more stringent requirement shall be controlling.
(Ordained by Ord. No. 345-1995, eff. Nov. 24, 1995)

Sec. 1021-13. Closure Financial Assurance Requirements.

No license to operate or maintain a facility shall be issued under this chapter until the owner or operator of the facility submits: proof of a final closure trust fund as defined in Ohio Administrative Code 3745-27-15(A); or a surety bond as defined in Ohio Administrative Code 3745-27-15(B) or (C); or negotiable certificates of deposit; or proof of final closure insurance as defined in Ohio Administrative Code 3745-27-15(E); or an amount or another form of surety which the health commissioner deems satisfactory.
(Ordained by Ord. No. 345-1995, eff. Nov. 24, 1995)

Sec. 1021-15. Closure of a Facility.

Closure of a facility shall be deemed to occur in the event of any of the following:

(a) The operator declares the facility closed.

(b) A license held by the operator expired, and no further license had been applied for in the manner prescribed.

(c) A license held by the operator has expired, a license renewal has been applied for and denied, and all appeal procedures for such denial have either been exhausted or waived by timely failure to pursue such appeal procedures.

(d) A license held by the operator has been suspended or revoked, and all appeal procedures for such revocation or suspension have either been exhausted or waived by timely failure to pursue such appeal procedures.

(e) The initial application for a license for an existing facility is denied and all appeal procedures for such denial have either been exhausted or waived by timely failure to pursue such appeal procedures.

(Ordained by Ord. No. 345-1995, eff. Nov. 24, 1995)

Sec. 1021-17. Closure Requirements.

The facility shall be closed in accordance with Ohio laws to protect the environment

from air, soil, surface water and ground water contamination and in such a manner as not to constitute a public nuisance.
(Ordained by Ord. No. 345-1995, eff. Nov. 24, 1995)

Sec. 1021-19. Prohibitions.

(a) No person shall violate any section of this chapter.

(b) No person shall create or permit a public nuisance at a facility licensed under this chapter.
(Ordained by Ord. No. 345-1995, eff. Nov. 24, 1995)

Sec. 1021-21. Complaints, Investigations and Orders.

The health commissioner shall investigate complaints and make other investigations related to a facility or public nuisances in the city. The health commissioner may enter orders requiring compliance with the requirements of this chapter. The health commissioner may enter and inspect any property at any reasonable time for the purpose of ascertaining the state of compliance with the requirements of this chapter. If entry or inspection is refused, the city solicitor may apply to an appropriate court for a warrant or other order necessary to achieve the purposes of this chapter. Nothing contained in this chapter shall be construed to allow a search of any premises without a proper warrant where such is required by law.
(Ordained by Ord. No. 345-1995, eff. Nov. 24, 1995)

Sec. 1021-23. Failure to Comply with Orders.

No person shall violate any lawful order of the health commissioner or the health commissioner's designee. If, after service of any lawful order from the health commissioner or the health commissioner's designee, the owner, agent, contractor or other person responsible for the work or violation refuses to comply with such order or does not comply within the period stated in the order or notice, such failure to comply shall constitute a violation of this chapter.
(Ordained by Ord. No. 345-1995, eff. Nov. 24, 1995)

Sec. 1021-25. Notice of Violation.

Upon finding that a violation of this chapter has occurred or is occurring, the health commissioner may mail the notice of violation to the alleged violator and post a copy on the premises of the alleged violator. The notice shall include the nature of the violation, including a reference to the provisions of this chapter alleged to be violated, a date by which the violation is to be corrected and the action that the city may take if the violation is not corrected.
(Ordained by Ord. No. 345-1995, eff. Nov. 24, 1995)

Sec. 1021-27. Administrative Order.

In addition to or in lieu of any notice of violation, injunctive relief or any other remedies provided by law, if a person violates any of the provisions of this chapter, or fails to take the corrective action set out in a notice provided for in Section 1021-25 by the date in the notice, the health commissioner may issue an administrative order or orders containing any of the following measures:

(a) The imposition of a fine of up to $5,000 per day of violation per violation;

(b) Remedial action related to the violation, including an environmental audit performed by the violator to determine the nature and extent of all pollutant releases, and preparation and implementation of a prevention or source reduction plan;

(c) An order suspending or revoking the facility license.

The health commissioner shall mail a copy of the order to the alleged violator and post a copy on the premises of the alleged violator, and a summary of the order will be published in the city bulletin. In rendering an order concerning a violation of any of the provisions of this chapter, the health commissioner shall consider among other factors the egregiousness of the violator's conduct, the magnitude of the violations, and any recurrence of violations of this title by the violator.

The order shall contain a statement of the action to be taken and shall include a notice setting forth the violator's right to a hearing before the health commissioner or hearing officer designated by the health commissioner at which the violator may present any and all evidence and arguments why the action should not be enforced. The request for a hearing shall be made in writing to the health commissioner within ten business days of the date of receipt of the order. No proposed order shall become effective until the expiration of the tenth business day after the receipt of the notice by the violator in the event no appeal to the health commissioner is requested, or until after consideration of the appeal and approval or modification of the proposed order in the event an appeal is timely requested. Notice of the approved or modified order shall be given by certified mail to the violator.
(Ordained by Ord. No. 345-1995, eff. Nov. 24, 1995)

Sec. 1021-29. Appeal from Orders and Decisions.

Any alleged violator who has received an order may appeal the decision or order under the provisions of Section 2506.01 of the Ohio Revised Code.
(Ordained by Ord. No. 345-1995, eff. Nov. 24, 1995)

Sec. 1021-31. Emergency Powers and Injunction.

Upon receipt of information that a violation or threatened violation of this chapter may imminently and substantially endanger the health, safety or welfare for the residents of Cincinnati or the environment, the city solicitor is hereby authorized and empowered to institute civil proceedings at any time in the name of the city to enjoin any person from causing or contributing to any such violation or threatened violation without first exhausting any other remedy.

Upon request of the health commissioner, the city solicitor is authorized to institute civil proceedings at any time in the name of the city to enjoin public nuisances or violations of this chapter.
(Ordained by Ord. No. 345-1995, eff. Nov. 24, 1995)

Sec. 1021-99. Penalties.

Whoever violates Section 1021-5 (a), License, of this chapter shall be guilty of a misdemeanor and shall upon conviction be fined not more than $1,000 or imprisoned not more than 90 days, or both. Each and every day on which such person continues to violate the provisions of this chapter after having been notified of such violation shall constitute a separate offense.

No person shall be imprisoned under this section for the first offense, and the prosecution shall be as and for the first offense unless the affidavit upon which the prosecution is instituted contains the allegation that the offense is a second or repeated offense.
(Ordained by Ord. No. 345-1995, eff. Nov. 24, 1995)

Chapter 1031

SOIL CONTAMINATION STANDARDS

Sec. 1031-1. Defined Terms.
Sec. 1031-3. Application for Approval of Fill Material.
Sec. 1031-5. Phase One Investigation.
Sec. 1031-7. Phase Two Investigation.
Sec. 1031-9. Acceptable Fill Material.
Sec. 1031-13. Restrictions on Use of Fill Site.
Sec. 1031-15. Lifting of Fill Site Use Restrictions.
Sec. 1031-17. Fees.
Sec. 1031-19. Appeal.

Sec. 1031-1. Defined Terms.

"Phase One Investigator" means a Registered Environmental Property Assessor or other person who demonstrates to the satisfaction of the city manager possession of knowledge, education and experience sufficient to perform a Phase One Investigation in a professional manner.

"Phase Two Investigator" means a Registered Environmental Manager or other person other who demonstrates to the satisfaction of the city manager possession of knowledge, education and experience sufficient to perform a Phase Two Investigation in a professional manner.

"Qualified Laboratory" means a soils analysis laboratory that participates in the United States Environmental Protection Administration contract laboratory program.

"Site Inspection Checklist" means a questionnaire adopted by the city manager completed in accordance with the American Society for Testing Materials standard method E1527-93 or other method as may be approved by the city manager.
(Ordained by Ord. No. 327-1995, eff. Nov. 3, 1995)

Sec. 1031-3. Application For Approval Of Fill Material.

A person may apply to the city manager for approval of material that is to be placed as fill within the City of Cincinnati. The source of the material may be inside or outside the City of Cincinnati. The city manager may designate a person within the administrative service to carry out the responsibilities and to exercise the authority given the city manager by this Chapter.

The city manager may approve material as acceptable for use as fill material at a site intended for residential use on being satisfied after appropriate investigation that the levels of contaminants in the material do not exceed those allowable in residential soil.

The city manager may after consultation with the commissioner of health adopt regulations to classify institutional uses a residential or as commercial or industrial uses based on the likely frequency and duration of exposure of persons frequenting the institutional use to soils at the site. The city manager may approve material as acceptable for use as fill material at a site intended for commercial or industrial use on being satisfied after appropriate investigation that the levels of contaminants in the material do not exceed those allowable in commercial or industrial soil.
(Ordained by Ord. No. 327-1995, eff. Nov. 3, 1995)

Sec. 1031-5. Phase One Investigation.

Opinion from qualified professional that after completion of an investigation as necessary to complete a Site Inspection Checklist that historic uses of site and adjoining properties give no indication or reason to suspect that the material intended to be removed from the site is contaminated with a metallic, inorganic, or organic compound above the level acceptable for a residential site.
(Ordained by Ord. No. 327-1995, eff. Nov. 3, 1995)

Sec. 1031-7. Phase Two Investigation.

An opinion from a Phase Two Investigator as to the acceptability of fill material, based on the degree of contamination found through soil sampling and analysis by a Qualified Laboratory.
(Ordained by Ord. No. 327-1995, eff. Nov. 3, 1995)

Sec. 1031-9. Acceptable Fill Material.

Material is acceptable as fill for a site intended to be used for residential develop-

ment if the material contains equal to or fewer parts per million of any contaminant than allowed under the Ohio Environmental Protection Agency's Voluntary Action Program generic direct-contact soil standards for carcinogenic and non-carcinogenic chemicals of concern for residential soils as found in OAC 3745-300-08. Material is acceptable as fill for a site intended to be used for commercial or industrial development if the soil contains equal to or fewer parts per million of any contaminant than allowed under the Ohio Environmental Protection Agency's Voluntary Action Program generic direct-contact soil standards for carcinogenic and non-carcinogenic chemicals of concern for commercial or industrial soils as found in OAC 3745-300-08.
(Ordained by Ord. No. 327-1995, eff. Nov. 3, 1995; Ord. No. 273-2006, § 1, eff. 10-20-06)

Sec. 1031-13. Restrictions On Use Of Fill Site.

Before filling a site with material that has been approved for use a commercial or industrial site only, the owner of the site that is to be filled must file with the Director of Buildings and Inspections a written agreement binding the owner and the owner's successors in interest not to use the property for a residential purpose. The owner must obtain the approval of the City Solicitor as to the form of the agreement. The Solicitor has the duty to cause the agreement to be entered on the records of the Hamilton County Recorder, at the expense of the owner.
(Ordained by Ord. No. 327-1995, eff. Nov. 3, 1995)

Sec. 1031-15. Lifting of Fill Site Use Restrictions.

The owner of a site that has been restricted to commercial or industrial use may apply to the city manager to lift that use restriction. The owner must submit an opinion from a Phase Two Investigator, including supporting soil sampling and laboratory analysis, that the fill material placed at the site no longer exceeds the contamination standards for fill acceptable at a residential site.
(Ordained by Ord. No. 327-1995, eff. Nov. 3, 1995)

Sec. 1031-17. Fees.

For review of a Phase One investigation: $50.

For review of a Phase Two investigation: $150.

For review of an application to lift fill site use restrictions: $150.
(Ordained by Ord. No. 327-1995, eff. Nov. 3, 1995)

Sec. 1031-19. Appeal.

A person denied a permit under this chapter may request a hearing. The city manager may appoint an examiner to conduct the hearing. The hearing must be open to the public. The appellant may present evidence that the material is acceptable under the standards of this Chapter and the denial was improper. Within 30 days of the close of the hearing the examiner must recommend to the city manager whether the use of the material should be approved for its intended use. The city manager must then determine whether to approve the use of the material as fill. That determination is final. The city manager may not grant a variance from the strict application of this Chapter.
(Ordained by Ord. No. 327-1995, eff. Nov. 3, 1995)

Chapter 1041

ENVIRONMENTAL ADVISORY BOARD

Sec. 1041-1. Definitions.
Sec. 1041-1-G. Green Cincinnati Plan.
Sec. 1041-1-O. Office of Environment and Sustainability; Office.
Sec. 1041-3. Mission and duties of board.
Sec. 1041-5. Board membership, meetings, and governance.

Sec. 1041-1. Definitions.

For the purpose of this chapter, the words and phrases defined in the sections hereunder shall have the meanings therein respectively ascribed to them, unless a different meaning is clearly indicated by the context.
(Ordained by Ord. No. 121-23, § 1, eff. April 12, 2023)

Sec. 1041-1-G. Green Cincinnati Plan.

"Green Cincinnati Plan" shall mean the Green Cincinnati Plan adopted by Council in 2018 and any successor plan approved by council.
(Ordained by Ord. No. 121-23, § 1, eff. April 12, 2023)

Sec. 1041-1-O. Office of Environment and Sustainability; Office.

"Office of Environment and Sustainability" or "office" shall mean the city's office of environment and sustainability and any future city office or department that succeeds to the responsibilities of the office of environment and sustainability.
(Ordained by Ord. No. 121-23, § 1, eff. April 12, 2023)

Sec. 1041-3. Mission and duties of board.

(a) The mission of the environmental advisory board is to promote awareness of environmental and sustainability issues in the city, serve as a public advocate for the office of environment and sustainability, and assist the office of environment and sustainability in implementing the recommendations of the Green Cincinnati Plan, including measuring the impact of the programs and initiatives identified therein.

(b) The environmental advisory board shall have the following functions and duties associated with environmental and sustainability issues and programs:

(1) Recommending policies and strategies to implement the recommendations of the Green Cincinnati Plan;

(2) Measuring implementation of and impact to the community and region of the recommendations of the Green Cincinnati Plan;

(3) Preparing and distributing reports, which shall be filed with the clerk of council and the city manager, including at least an annual report regarding the city's progress in implementing the recommendations of the Green Cincinnati Plan; and

(4) Providing advice and guidance regarding environmental and sustainability issues and policies, including implementation of the Green Cincinnati Plan, at the request of the director of the office of environment and sustainability, other members of the administration, or elected officials.

(Ordained by Ord. No. 121-23, § 1, eff. April 12, 2023)

Sec. 1041-5. Board membership, meetings, and governance.

(a) The city manager shall appoint the members of the environmental advisory board. The environmental advisory board shall consist of a minimum of nine and a maximum of nineteen members, with a majority of currently serving members creating a quorum. The members shall be diverse in terms of race, ethnicity, gender, and age, and shall be professionally involved in environmental and sustainability projects and issues or community advocates for such projects and issues. Members shall serve without compensation. The city manager

shall take into account and reflect the priorities of the Green Cincinnati Plan when appointing members and shall prefer stakeholders who are personally or professionally focused on such priorities for appointment.

(b) The director of the office of environment and sustainability or the director's designee shall be an ex-officio board member who shall not vote and shall not count as one of the board members appointed by the city manager.

(c) In the environmental advisory board's first year, the city manager shall appoint up to five members for a term of three years, up to five members for a term of two years, and up to four members for a term of one year, so that approximately one-third of the positions shall be eligible for renewal or replacement each year. Upon the expiration of the initial term of each member, each member's appointment may be renewed for up to two additional three-year terms. Members may hold over until the appointment of a successor member, but for not more than a period of six months. The city manager shall make appointments to fill vacancies caused by the death or resignation of members in unexpired terms.

(d) The environmental advisory board shall meet on a quarterly basis or more frequently as needed. All meetings shall be public meetings.

(e) The environmental advisory board is authorized to pass by laws or other regulations governing the board, provided that such bylaws or regulations do not conflict with any provision of the municipal code.

(f) The environmental advisory board, through its bylaws, shall establish a structure of standing committees with specific areas of responsibility for accomplishing the mission and duties of the board. The board shall elect a chair, who shall be responsible for setting the board's agenda. The chair shall consult with the director of the office of environment and sustainability in developing the board's agenda.

(Ordained by Ord. No. 121-23, § 1, eff. April 12, 2023; a. Ord. No. 1-2026, § 1, eff. Jan. 14, 2026)

MUNICIPAL CODE

CITY OF

CINCINNATI, OHIO

VOLUME II

Published in 2003 by Order of the City Council

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P.O. Box 2235 Tallahassee, FL 32316

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*__Cross references—__Public utilities, tit. IV; procurement and disposal of supplies, services and construction, ch. 321; gas, ch. 403; electricity, ch. 404; construction zones, signs and penalties, § 506-16; unsanitary buildings and nuisances, ch. 602; historic conservation, ch. 741; building, plumbing and fire safety requirements for nursing home, § 848-25.

†__Cross reference—__Procurement and disposal of supplies, services and construction, ch. 321.

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Sec. 1101-01. Title.

1101-01.1 *Title:* Chapters 1101 to 1119 of Title XI of the Cincinnati Municipal Code shall be known collectively as the "Cincinnati Building Code," for which the designation "CBC", may be substituted.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996)

Sec. 1101-03. Definitions.

1101-03.1 *General:* Unless otherwise expressly stated, the following terms shall, for the purpose of this Code, have the meanings indicated herein.

Agricultural purposes: Such purposes include agriculture, farming, dairying, pasturage, apiculture, horticulture, floriculture, viticulture, ornamental horticulture, olericulture, pomiculture, and animal and poultry husbandry.

Architect or architect, registered: A person holding a certificate under § 4703.06 of the Ohio Revised Code, and registered pursuant to §§ 4703.01 to 4703.19 of the Ohio Revised Code.

Borrow: Earth material acquired from an off-site location for use in grading on a site.

Building Department: The Department of Buildings and Inspections of the City of Cincinnati.

Construction documents: Plans, specifications and other written, graphic and pictorial documents prepared or assembled for describing the design, location and physical characteristics of the elements of a project necessary for obtaining a permit.

Crane: All non-exempt equipment governed by the Occupational Safety & Health Administration's regulations for Cranes and Derricks in Construction found in 29 CFR Part 1926, Subpart CC.

Credentials: The badge of office, employee ID card or other certificate or letter issued by the director of buildings and inspections to an employee for the identification of said employee in the performance of his/her duties.

Director of Buildings and Inspections or *Director:* This term shall be construed to include authorized employees appointed to perform specific duties of the Department of Buildings and Inspections in the enforcement of the provisions of the Ohio Building Code and the Cincinnati Building Code.

Earth material: Any rock, fill or natural soil and/or combination thereof.

Engineer, geotechnical: A civil engineer experienced and knowledgeable in the practice of geotechnical engineering.

Engineer, professional: A person holding a certificate of registration under § 4733.14 or 4733.19 of the Ohio Revised Code and registered pursuant to §§ 4733.01 to 4733.23 of the Ohio Revised Code.

Engineering geologist: A geologist who is certified or registered to practice engineering geology in any of the 50 states or is a member of the Association of Engineering Geologists, with a minimum of three years professional experience under the supervision of a certified engineering geologist or geotechnical engineer, and is competent in the field of geology and knowledgeable in the fundamentals of soil mechanics.

Engineering, geotechnical: The application of the principles of soil mechanics in the investigation, evaluation and design of civil works involving the use of earth materials and the inspection and testing of the construction thereof.

Erosion: The wearing away of the land surface by the action of the wind, water, gravity, or other natural process.

Excavation: Any artificial or mechanical act by which earth, sand, gravel, rock or any other similar material is dug into, cut, quarried, stripped of vegetive cover and root systems, uncovered, removed, displaced, relocated or bulldozed and shall include the conditions resulting therefrom.

Fill: An artificial or mechanical act by which earth, sand, gravel, rock or any other material is placed, pushed, dumped, pulled, transported or moved to a new location above the natural surface of the ground or on top of the stripped surface and shall include the conditions resulting therefrom. The difference in elevation between a point on the original ground and a designated point of higher elevation on the final grade. The materials used to make a fill.

Grading: Any excavating or filling or combination thereof.

Natural terrain: Existing ground as shown on the most recent published editions of the City of Cincinnati and Hamilton County metropolitan topographic survey sheets prior to October 30, 1974.

Notice: A written or printed communication conveying information or warning.

OBC: The abbreviation for the "Ohio Building Code."

Order: The whole or any part of the final disposition (whether affirmative, negative, injunctive, or declaratory in form) of any matter issued by the director of buildings and inspections pursuant to any provision of the Cincinnati Building Code or other law or ordinance subject to administration by the director of buildings and inspections.

Person: An individual, firm, partnership, association, corporation, company or organization of any kind.

Person in Control: The owner of the freehold estate of the premises; a mortgagee or vendee in possession; a receiver; an executor; a trustee; and any person, public or private entity, lessee or holder of a lesser estate in the premises, and/or its duly authorized agent(s), with the authority to bring a building or premises into compliance with the provisions of this code, including but not limited to any mortgagee that has filed an action in foreclosure on the particular premises at issue, based on breach or default of a mortgage agreement, until title to the premises is transferred to a third party.

Plans: These include drawings, specifications, and data submitted to the director of buildings and inspections under § 1101-19 CBC for approval.

Premises: The lot and the buildings situated thereon.

Private: At it relates to a premises, those portions of the premises in which a person holds a reasonable expectation of privacy.

Revised Code: All statutes of a permanent and general nature of this state as revised and consolidated into general provisions, titles, chapters, and sections.

Safe: As applied to a building, means free from danger or hazard to the life, safety, health or welfare of persons occupying or frequenting it, or of the public, and from danger of settlement, movement, disintegration, or collapse, whether such danger arises from the method or materials of its construction or from equipment installed therein, for the purpose of lighting, heating, the transmission or utilization of electric current, or from its location or otherwise.

Sanitary: As applied to a building, means free from danger or hazard to the health of persons occupying or frequenting it or to that of the public, if such danger arises from the method or materials of its construction

or from any equipment installed therein for the purpose of lighting, heating, ventilating or plumbing.

Sediment: Solid material both mineral and organic, that is in suspension, is being transported, or has been moved from its original site or origin by air, water, or gravity as a product of erosion.

Serious hazard: A hazard of considerable consequence to safety or health through the design, location, construction, or equipment of a building, or the condition thereof, which hazard has been established through experience to be of certain or probable consequence, or which can be determined to be, or which is obviously such a hazard.

Site: Any lot or parcel of land or contiguous combination thereof, upon which excavation or filling is, has been, or will be performed.

Slope: An inclined ground surface, the inclination of which is expressed as a ratio of horizontal distance to vertical distance.

Soil scientist: A full member in good standing of the Soil Science Society of America and who has special knowledge and training in the physical, chemical, and biological sciences applicable to soils.

Work: Any man-made change to improved or unimproved real estate associated with the repair, replacement, relocation, alteration, enlargement, installation, demolition, or construction of any building, structure or building service equipment, the change of use of any building or structure, or the excavation and filling of land, for which change a permit issued by the director of buildings and inspections is required in accordance with § 1101-17 CBC.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 343-2001, eff. Nov. 23, 2001; a. Ord. No. 59-2002, eff. March 28, 2002; a. Ord. No. 418-2010, § 3, eff. Nov. 24, 2010; a. Ord. No. 092-2016, § 1, eff. Aug. 1, 2016; Emer. Ord. No. 329-2016, § 2, eff. Oct. 19, 2016)

Sec. 1101-05. Cincinnati Building Code and Associated Regulations.

1101-05.1 *General:* The Director of Buildings and Inspections is responsible for enforcing the Cincinnati Building Code as well as the following: Cincinnati Zoning Code, Ohio Building Code, Ohio Mechanical Code, Ohio Plumbing Code, Cincinnati Elevator Code, and those provisions of the Cincinnati Municipal Code as may be specified by ordinance or regulation.

1101-05.2 *Administrative Chapters:* For the purposes of administration, Chapter 4101:1-1 OBC, entitled "Administration" is operative for all uses regulated by the OBC. Chapter 1101 Cincinnati Building Code is operative to all uses, including uses regulated by OBC, when not in conflict with and required to enforce CBC and related regulations.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 59-2002, eff. March 28, 2002)

Sec. 1101-07. Liberal Construction.

1101-07.1 *General:* The CBC and all proceedings thereunder shall be liberally construed in order to promote public safety, health and welfare and to avoid unnecessary hardship, provided the spirit and intent of this code shall be observed.

1101-07.2 *Policies, Procedures and Interpretations:* The Director of Buildings and Inspections is authorized to issue policies, procedures and interpretations in order to maintain consistency with judicial opinions. Boards of Appeals decisions resolve conflicts

between regulations, and provide rulings as necessary to liberally construe the OBC, CBC and related regulations.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 59-2002, eff. March 28, 2002)

Sec. 1101-09. Applicability.

1101-09.1 *General:* The CBC applies to all buildings and regulated improvements to structures or premises.

Exceptions to CBC other than Chapter 1109, Flood Plain Management and the Zoning Code:

(1) Buildings owned by and used for a function of the United States government.

(2) Buildings constructed by the State of Ohio or buildings constructed on land owned by the State of Ohio.

(3) Existing buildings where their location, parts, equipment, and other items do not constitute a serious hazard unless otherwise regulated by the provisions of Chapters 1117 and 1119 CBC.

(4) Buildings constructed in accordance with plans approved as being in conformance with the CBC as then in effect.

(5) Buildings or structures which are incident to the use for agricultural purposes of the land on which said buildings or structures are located, provided such buildings or structures are not used in the business of retail trade; for the purposes of this section, a building or structure is not considered used in the business of retail trade if fifty per cent or more of the gross income received from sales of products in the building or structure by the owner or operator is from sales of products produced or raised in a normal crop year on farms owned or operated by the seller (see §§ 3781.6 and 3781.06.1 of the Ohio Revised Code).

(6) Agricultural labor camps as defined in § 3733.41 of the Ohio Revised Code.

(7) Buildings or structures which are designed, constructed, and maintained in accordance with federal standards and regulations and are used primarily for federal and state military purposes which the U.S. secretary of defense, pursuant to 10 U.S.C. Sections 18233(A) and 18237, has acquired by purchase, lease, or transfer, and constructs, expands, rehabilitates, or corrects and equips, such buildings or structures as he determines to be necessary to carry out the purposes of chapter 1803 of the U.S.C.

1101-09.2 *Effect of Contract.* The Cincinnati Building Code is applicable to all parties as herein specified. A contract between private parties shall not affect the parties' responsibilities under this Code.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 59-2002, eff. March 28, 2002; a. Ord. No. 418-2010, § 4, eff. Nov. 24, 2010)

Sec. 1101-11. Conformance.

1101-11.1 *General:* No building or its equipment or appurtenances shall hereafter be constructed, installed, altered, relocated, repaired, removed, or changed in use except in conformity with the provisions of the CBC and any authorized rule or approval of the director of building and inspections made and issued thereunder.

1101-11.2 *Single, Two and Three Family Dwelling Houses:* The provisions of the CBC are modified as follows:

1101-11.2.1 *Alternative Construction:* The provisions of this code are not intended to limit the appropriate use, in single, two and three family dwelling houses, of materials, appliances, equipment or methods of design or construction not specifically prescribed by this code, provided the director of buildings and inspections determines that the proposed alternate materials, appliances, equipment or methods of design or construction are at least equivalent to those prescribed in this code in regard to suitability, quality, strength, effectiveness, fire resistance, durability, dimensional stability, safety and sanitation.

Determination of equivalence shall be based on design or test methods or other such standards approved by the director. The director may require that evidence or proof be submitted to substantiate any claims of equivalency regarding a proposed alternate. The director may accept as supporting data to assist in this determination duly authenticated reports from the Building Officials and Code Administrators International, In.; Southern Building Code Congress International, Inc.; International Conference of Building Officials; the National Evaluation Service Committee of the Council of American Building Officials; and acceptance documents from the U.S. Department of Housing and Urban Development or other approved authoritative sources. The costs of all tests, reports and investigations required under these provisions shall be paid by the applicant.

1101-11.2.2 *Change of Use:* Any existing residential building that is changed in use as a single, two and three family dwelling shall be required to comply only with 1101-11.2.3 and Chapter 1111 CBC.

1101-11.2.3 *Repairs, Alterations or Additions to Single, Two and Three Family Dwelling Houses:* Repairs, alterations or additions to any single, two or three family dwelling house, shall conform to that required of a new structure, without requiring the existing structure to comply with those provisions of this Code for new buildings, provided conformance with Chapter 1117 CBC can be demonstrated. Repairs, alterations and additions shall not cause the existing structure to become unsafe, unsanitary, or adversely affect its performance.

Alterations or repairs to a single, two or three family dwelling house which are structural or adversely affect any structural member or any part of the existing structure having a required fire-resistance rating shall be made with materials required for a new structure.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996)

Sec. 1101-13. Relocating Buildings.

1101-13.1 *General:* No building other than temporary buildings shall be relocated except in conformity with this section.

1101-13.2 *Notification:* The director of buildings and inspections shall be notified and furnished required information by the owner of the building under consideration, or his agent, not less than seven days before the date on which it is proposed to relocate the building.

1101-13.3 *Contents of notice:* The notification and required information shall include the following concerning the building:

(1) Present and proposed address;

(2) Type of construction;

(3) A plot plan of the proposed location, drawn to scale, and having figures

therein showing the distance from the building to all lot lines and other buildings on the same lot;

(4) The approval of the highway and police authorities having jurisdiction when a street is to be used in the relocating operations; and

(5) Such other information determined by the director of buildings and inspections as may be necessary to ensure compliance with CBC.

1101-13.4 *Review of proposed relocation:* After the required notification and information have been received by the director of buildings and inspections, he shall inspect said building or cause it to be inspected and if he finds it can be safely relocated in the manner proposed, and that the building will conform to the provisions of the CBC applicable to new buildings in its new location, he shall notify the owner or his agent in writing that the building may be relocated.

Exception: Relocation of single, two and three family dwelling houses shall be in conformance with this section and § 1101-11.2.3 CBC.

1101-13.5 *Approval of relocation:* No building shall be relocated until the director of buildings and inspections has approved the relocating thereof, through the issuance of a permit to do so or through a letter to the owner or his authorized agent.

1101-13.6 *Raising or lowering a building:* Nothing in CBC prohibits the raising or lowering of a building to meet a change of grade in the street adjoining the lot on which the building is located, provided a serious hazard will not result.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996)

Sec. 1101-15. Permits, Prior Approvals Required.

1101-15.1 *Sewers:* No permit for the construction of any building or addition shall be issued by the director of buildings and inspections until the applicant has obtained review and approval from the metropolitan sewer district of greater Cincinnati.

1101-15.2 *Electrical supply:* No permit for the construction, change of use, or addition to any building shall be issued by the Director of Buildings and Inspections until the applicant has obtained review and approval from the electrical inspection agency for the installation of the electrical system.

Exception: Buildings of use groups regulated under the Residential Code of Ohio.

1101-15.3 *Driveways:* When the applicant applies for a building permit upon a dedicated street where no sidewalks are constructed and where a driveway is to be constructed, he shall be required to present detailed drawings in triplicate to the engineering division of the department of public works of the City of Cincinnati to obtain a special approval before the building permit is issued to assure proper construction of the driveway. The grade of the proposed driveway at the property line and on the street right-of-way shall be constructed to meet the requirements of the engineering division of the department of transportation and engineering of the City of Cincinnati.

1101-15.4 *Water supply:* No permit for the construction of any building shall be issued by the director of buildings and inspections except where adequate water supply and facilities for fire fighting purposes are available, as determined by the fire chief. No permit for the construction of any building intended for human occupancy shall be issued by the director of buildings and inspections

until the water works has certified the availability of city water, or the commissioner of health has approved some other source. If the director of buildings and inspections finds that upon inspection of any building under construction that adequate water supply or facilities for firefighting purposes, as determined by the fire chief, are not being furnished as required, then the director of buildings and inspections may stop such construction and revoke the permit previously issued therefor until such time as adequate water supply or facilities for firefighting purposes, as determined by the fire chief, are furnished.

1101-15.5 *Flood insurance program:* The director of buildings and inspections shall review all permit applications to assure that proposed new construction, alterations, additions or development will be in accordance with Chapter 1109 CBC and the applicant has received all necessary permits from those governmental agencies from which prior approval is required.

1101-15.6 *Historic conservation:* No permit for the alteration of any historic structure, as determined by the historic conservation board, shall be issued by the director of buildings and inspections except where a certificate of appropriateness has been issued by the urban conservator.

1101-15.7 *Stormwater management:* No permit for the construction of any building, building addition, or parking lot, or for the excavation or fill of land shall be issued by the director of buildings and inspections until the applicant has obtained review and approval of the proposed work from the stormwater management utility division of the water works.

Exceptions:

(1) Permits for buildings, building additions, and parking lots less than 800 square feet in area.

(2) Cut or fill permits for the demolition of structures or for the installation of underground tanks.

1101-15.8 *Street Encroachments:* No permit involving the use of space in, under, or above any street or alley shall be issued unless the encroachment is authorized by the city manager or the city manager's designee under the authority of the Cincinnati Municipal Code or other applicable authority, law, rule, or regulation. The right of private occupancy of any part of a city street or alley is permissive only and may be withdrawn or revoked at any time. When the right is withdrawn or revoked, the occupancy shall be terminated and all necessary construction for such street or sidewalk restorations shall be made at the expense of the property owner or person in control. Every property owner or person in control using space in, under, or above any street or alley for private purposes shall be liable to the public and to the city for any loss or damage from nuisance arising out of such use.

1101-15.9 *Excavation and Fill:* The director of buildings and inspections may not issue a permit to place at a fill site more than 500 cubic yards of fill material from an off-site borrow unless the fill material has been approved under Chapter 1031, Soil Contamination Standards, of Title X, Environmental Code, of the Cincinnati Municipal Code.

Exceptions:

(1) Up to 1,000 cubic yards of fill material if the fill site is wholly within a zone district less restrictive than the R-0.7 District.

(2) Any amount of construction and demolition debris within the meaning of § 00091 of the Regulations of the Board of Health of the City of Cincinnati.

1101-15.10 *Restricted Fill Site:* The director of buildings and inspections may not issue a permit for work in violation of a restriction imposed by the city manager under Chapter 1031, Soil Contamination Standards, of Title X, Environmental Code, of the Cincinnati Municipal Code.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 59-2002, eff. March 28, 2002; a. Ord. No. 418-2010, § 5, eff. Nov. 24, 2010; Emer. Ord. No. 238-2015, § 23, eff. July 1, 2015; a. Ord. No. 0011-2023, §§ 3, 4, eff. January 11, 2023)

Sec. 1101-17. Permits.

1101-17.1 *Permits required:* It shall be unlawful for any person to construct, enlarge, alter, repair, relocate or demolish a structure or building equipment installed therein; change a structure to another occupancy; prepare improved or unimproved real estate for the construction of a new building or structure; excavate or fill land; undertake development in the areas of special flood hazard; erect signs according to 3107.1.1 OBC: pave areas greater than 800 square feet in area other than driveways, without first filing an application and obtaining a proper permit from the director of buildings and inspections, and paying the fee hereinafter prescribed for same.

Exceptions:

(1) Minor maintenance repairs not resulting in a material change to structures may be made without application or notice to the director of buildings and inspections, but such repairs shall not include the cutting away of any wall, partition or portion thereof, the removal or cutting of any structural beam or bearing support, or the removal or change of any required means of egress, or rearrangement of parts of a structure affecting the exit requirements; nor shall minor repairs include addition to, alteration of, replacement, relocation of, or material change to any standpipe, waste supply, sewer, drainage, drain leader, gas, soil, waste, vent or similar piping, electric wiring or mechanical equipment or other work affecting public health or general safety. This exception shall not apply to repairs to vacant buildings.

(2) Normal cemetery operations of opening or closing graves.

(3) Public work performed by or under control of the director of transportation and engineering relative to the right of way other than elevated pedestrian walkways, buildings and structures regulated under OBC and CBC or excavation or filling of land performed outside the project work limits.

(4) Exploratory excavations under the direction of a registered professional engineer, geotechnical engineer, engineering geologist, soil scientist, or architect where incident to the practice of architecture, and exploratory excavations by a contractor or builder provided they are not made in a slope steeper than five horizontal to one vertical. All such excavations shall be promptly and properly filled, and the terrain shall be properly restored.

(5) Temporary trenches for sewers, water lines, gas lines, electric lines, and other underground utilities.

(6) Subject to the provisions of § 1113-09 CBC, any excavation that does not exceed five feet in vertical depth at its deepest point or 100 cubic yards per each 5,000 square feet of site area, whichever is the more restrictive, and is made on natural terrain

with a slope flatter than five horizontal to one vertical and does not result in a finished slope steeper than three horizontal to one vertical.

(7) Subject to the provisions of § 1113-09 CBC, any fill that does not exceed five feet in vertical depth at its deepest point, contain more than 100 cubic yards per each 5,000 square feet of site area, and is made on natural terrain with a slope flatter than five horizontal to one vertical and does not result in a finished slope steeper than three horizontal to one vertical.

(8) Subject to the provisions of § 1113-09 CBC, any excavation for a basement and footings of a building authorized by a valid building permit, provided the excavation does not exceed eight feet in vertical depth at its deepest point or 350 cubic yards per each 5,000 square feet of site area, whichever is the more restrictive, and is made in existing terrain with a slope flatter than 10 horizontal to one vertical, and the subsequent filling with this excavated material on the same site, provided the fill does not exceed five feet in vertical depth at its deepest point or 350 cubic yards per each 5,000 square feet of site area, whichever is more restrictive, and is placed on existing terrain with a slope flatter than 10 horizontal to one vertical and does not result in a finished slope steeper than three horizontal to one vertical.

(9) Where a succession of small excavations or fills individually not requiring a permit, constitutes a continuing operation on a property and the accumulation of such excavations or fills on that property will not exceed five feet in depth or 100 cubic yards per each 5,000 square feet of site area.

(10) Excavation or filling of land necessary for the permanent removal of existing underground storage tanks provided excavated soil is not removed from the site.

(11) Demolition prior to replacement of existing single story, detached garage structures, less than 800 square feet in area.

(12) Storage sheds not greater than 100 square feet in area that are no higher than eight feet in height provided the shed is accessory to a single, two or three family dwelling house and is located in the rear yard in compliance with the Zoning Code.

(13) Play equipment that is not greater than 12-½ feet in height that is not enclosed, and not provided with electric, or heating equipment.

(14) Repairs or replacements of fabric covering an awning without signage.

(15) Painted wall signs. (See Chapter 895 for outdoor advertising signs)

(16) New fences not more than six feet in height accessory to a single-, two- or three-family dwelling; provided, however, all new fences shall require a zoning certificate of compliance.

(17) Other repair or replacement work to the following elements of single-, two- or three-family dwellings:

(a) Windows.

(b) Roof coverings (not resulting in more than two coverings remaining in place or in the roof structure being overloaded).

(c) Siding.

(d) Gutter and downspouts.

(e) Fences not more than six feet in height.

(f) Flagpoles.

This exception (17) shall not apply to structures designated as a Historic Landmark or located within a designated Historic District or Urban Design Overlay District.

(18) Sign face changes not structurally altering the sign; provided, however, all sign face changes shall require a zoning certificate of compliance or certificate of appropriateness, as applicable.

1101-17.1.1 *Certificate of Appropriateness:* A person may not perform work excepted from the permit requirements under §§ 1101-17.1(16) or 1101.17.1(17) on an historic structure or within an historic district without first obtaining a certificate of appropriateness for the proposed work.

1101-17.1.2 *No Duty to Inspect:* The director of buildings and inspections has no duty to inspect work excepted from permit requirements under § 1101-17.1(1) through § 1101-17.1(17).

1101-17.2 *Permits issued:* It shall be the duty of the director of buildings and inspections or the electrical inspection agency to examine the applications for permits within a reasonable time after filing. If the examination reveals no objections to the same and it appears that the proposed work will be in compliance with the laws and ordinances applicable thereto and the proposed construction or work will be safe, such application shall be approved and a permit issued for the proposed work as soon as practicable. If the examination reveals otherwise, such application shall be rejected or delayed and the findings shall be communicated in writing to the applicant.

1101-17.3 *Separate permits required:* A separate permit shall be required for the following branches of the work which will not be included in the building permit: sprinkler equipment including associated tanks and pumps, elevators, plumbing, excavation or filling of land (each site), mechanical equipment, electrical work, and other regulated equipment or work.

1101-17.4 *Electrical permits:* Separate and distinct permits shall be required for electrical work as set out in §§ 1101-17.4.1 and 1101-17.4.2 CBC.

Exception: Replacement gas or oil furnaces and boilers, replacement heat pumps, and replacement air conditioning equipment, connected to existing branch circuits in single, two or three family dwellings.

1101-17.4.1 *Wiring:* The installation or repair of any permanent electrical wiring, including but not limited to extensions to existing wiring.

1101-17.4.2 *Equipment:* The installation or alteration of any electrical equipment or electrical service equipment.

1101-17.5 *Permits to wreck structures having party walls:* Before issuing any permit for the wrecking of any structure having one or more party walls, the director of buildings and inspections shall take the successive steps set out in §§ 1101-17.5.1 and 1101-17.5.2 CBC.

1101-17.5.1 *Affidavit:* Secure the affidavit required by § 1101-19.7.1 CBC.

1101-17.5.2 *Permit issued:* No sooner than ten days after receiving the affidavit required by § 1101-19.7.1 CBC, issue the permit with such conditions as the director of buildings and inspections may deem necessary to protect the safety of any abutting structure of the public health, safety and welfare.

1101-17.6 *Permits to wreck structures containing asbestos:* No permit for the demolition of any building, structure, facility or installation, that is deemed to contain a significant risk of exposure to asbestos fibers, pursuant to § 1111-15.1 CBC, shall be issued by the director of buildings and inspections until such director has made a determination that the demolition will be in accordance with the requirements of § 1111-15.2 CBC.

1101-17.6.1 *Presence of asbestos fibers:* When a permit is granted for the demolition of a building, structure, facility or installation, that is deemed to contain a significant risk of exposure to asbestos fibers from the dislodging of asbestos during demolition, pursuant to § 1111-15.1 CBC, the department of buildings and inspections shall notify the fire division in order that local fire stations may be alerted to the danger of exposure to asbestos involved in fighting a possible fire at that location.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 431-1998, eff. Dec. 25, 1998; a. Ord. No. 083-2001, eff. Apr. 20, 2001; a. Ord. No. 59-2002, eff. March 28, 2002; Emer. Ord. 114-2014, § 3, eff. June 4, 2014; Emer. Ord. No. 163-2018, § 6, eff. July 1, 2018)

Sec. 1101-19. Application for Permits.

1101-19.1 *By Whom Application is Made:* Application shall be made by the owner, person in control, or the authorized agent, architect, engineer or contractor employed by the owner or person in control in connection with the proposed work. Where the application is made by a person other than the owner or person in control, the owner or person in control shall authorize the applicant to grant consent to the inspection by employees of the Department of Buildings and Inspections of the premises where the work is to be performed at any time when work on the premises described in the application is ongoing. Where the owner or person in control does not employ or contract with another party to perform the proposed work, the application shall be made by the owner of the building or person in control and the owner or person in control shall consent to inspection by employees of the Department of Buildings and Inspections of the premises

where the work is to be performed at any time when work on the premises described in the application is ongoing.

1101-19.2 *Form of Application:* Application shall be prepared in writing on forms prescribed by the director of buildings and inspections and shall contain the full names and addresses of the owner or person in control, applicant and contractor, the street and house number of the building or structure, a brief description of the proposed work, the use and occupancy(ies) for which the proposed work is intended, the estimated cost thereof, a statement on behalf of the owner or person in control that the proposed work and occupancy will be in accordance with all laws and ordinances applying to the premises and such other information as may be required by the director of buildings and inspections. Applications shall be signed by the owner or person in control or a person authorized to sign for the owner or person in control. Electronically filed applications shall bear a facsimile signature and indicate the authority of the person affixing the facsimile to the application. In order to provide the public with a record of the intended use of the premises, every application for a permit for a new building or structure, an addition to an existing building, or change in use, where the intended use is classified in Group F-l, Moderate Hazard Factory and Industrial, Group H, High Hazard, or Group S-1, Moderate Hazard Storage, shall disclose the standard industrial classification of the establishment intending to use the premises and every installation, discharge or operating permit from the Ohio Air Pollution Control Agency, the Metropolitan Sewer District of Greater Cincinnati, or the Cincinnati Health Department that is required by law to be issued or amended for the intended use of the premises; this requirement shall apply only to permits required for activities or sources intended to be installed or operated within one year after a certificate of occupancy has been issued for the new building, structure, addition or use. The standard industrial classification shall be as determined by the Standard Industrial Classification Manual, 1987 edition.

Exception: When applications and plans are accompanied by plans and specifications in an electronic plan file and an electronic index file, formatted in a manner acceptable to the director of buildings and inspections, the number of required sets shall be reduced to one set of specifications and two sets of plans for building permits or three sets of plans for combination building and mechanical permits.

1101-19.3 *Construction Documents:* Except for minor repairs or as otherwise approved by the director of buildings and inspections, all applications for building permits shall be accompanied by four sets of construction documents. One set of such construction documents shall be returned to the applicant when the permit is issued.

1101-19.4 *Survey Plat:* Where the permit is for a new principal building, and in other cases where, in the opinion of the director of buildings and inspections it is necessary, four copies of the survey plat shall also be required showing the surveyor's stakes, the proposed front yard, side yard and rear yard dimensions, the front yard of buildings on other lots as required by the Zoning Code, and the dimensions of all projections of such buildings into the front yards, such as covered porches, vestibules, or bays existing or proposed easements with full details and such other information that may be necessary to determine compliance with the Code. The survey plat shall also show the width of the streets and alleys abutting the lot, whether or not the same are dedicated, and show the distance to the nearest platted street intersection of record, the location, size and type (sanitary, storm or combination) of existing and proposed sewers, including the location

of the existing or proposed tee branch and building sewer (house lateral) which serves or will serve the premises and the elevation of the sewer invert at the point of connection. The plat shall indicate the proposed disposition of surface drainage which shall be the responsibility of the owner or person in control. The plat shall also show the location and size of the existing or proposed water main and the proposed location of the water connection which serves or will serve the premises, the location of existing or proposed fire hydrants, the location and width of the existing sidewalk in the street, the curbs (or edge of traveled roadway) and the width and type of street pavement. The information on existing and proposed structures, as described above, shall be fully indicated on the survey plat. The survey points shall be maintained and be accessible at all times during construction. All elevations shall be referenced to mean sea level in accordance with Section 104-11 of the Cincinnati Municipal Code. A convenient bench mark shall be indicated on the plat and said bench mark shall be maintained for the duration of construction.

1101-19.5 *Excavation or Fill:* The construction documents submitted with an application for a permit to excavate or fill land shall be prepared by a registered professional engineer or an architect where the work contemplated is incident to the practice of architecture and in addition to the requirements of §§ 1101-19.3 and 1101-19.4 CBC shall include the following:

(1) A contour map of the affected area showing the existing and proposed contours at five-foot intervals.

(2) The proposed amount of excavation or fill in cubic yards.

(3) The location of any existing and proposed buildings or structures on the site and within 15 feet of the site.

(4) The proposed method for the protection of soils from erosion.

(5) A report from a geotechnical engineer showing the results of surface and sub-surface exploration, conditions of the land, and procedures for performing the operation.

(6) All drainage provisions which shall be of such design to adequately handle the surface runoff, together with a map showing the drainage area of all land tributary to the site, and estimated cubic foot per second runoff of the area served by any drain computed in accordance with current acceptable standards.

(7) A description of the borrow material, and the method to be used for and the degree of its proposed compaction.

(8) Proposed preparation of existing ground surface to receive fill.

(9) Proposed sub-surface drainage if necessary for stability.

(10) Plans for all retaining walls, cribbing, vegetative provisions, erosions and sediment control measures, together with location of temporary and/or permanent fencing and other protective devices to be constructed in connection, or as part of the proposed work.

(11) A timing schedule and sequence indicating the anticipated starting and completion dates of the development sequence-stripping and/or clearing, rough grading and construction, final grading and vegetative establishment, and maintenance and the time of exposure of each area prior to the completion of effective erosion and sediment control measures.

Exception: Where the application and/or plans for a permit or plans for a permit or a certificate in writing of a geotechnical engi-

neer states, to the satisfaction of director of buildings and inspections, that the proposed excavation or fill is an isolated, self-contained area, there is not apparent danger to adjacent public or private property, and that the proposed excavation or fill will not:

(1) Interfere with adequate drainage for the site area and the drainage area of land tributary to the site;

(2) Obstruct, damage or adversely affect existing sewerage or drainage, public or private;

(3) Cause a stagnant pond of water to form;

(4) Create slope stability problems on subject and adjacent property; or

(5) Cause detrimental erosion or sedimentation.

1101-19.6 *Electrical Permits:* Electrical wiring or equipment shall not be installed within or on any building or structure or premises, nor shall any alteration be made in any such existing installations without first securing approval from the electrical inspection agency. It shall be unlawful to use or permit the use of, or to supply current for an electrical system in a building or structure, unless the required inspections and approvals have been made by the electrical inspection agency. Application for electrical permits shall be prepared in writing on printed forms prescribed and furnished the electrical inspection agency.

1101-19.6.1 *Plans:* Except for use group R-3, R-4 and R-5 structures, any application for an electrical permit for a new structure or structural addition to an existing structure shall be accompanied by three sets of plans drawn to scale. One set of such plans shall be returned to the owner or person in control when the permit is issued.

1101-19.6.2 *Technical Data:* The electrical inspection agency may require technical data or such additional information as may be deemed necessary to determine compliance with the requirements of OBC and CBC.

1101-19.7 *Wrecking Permits for Structures Having Party Walls, Notice to Abutting Owners:* Prior to submitting the application for a permit to wreck a structure having one or more party walls, the owner or person in control, or his authorized agent shall:

(1) Determine the ownership of any abutting structure by consulting records of Hamilton County; and

(2) Notify the owner of any abutting structure; service of notice shall be in accordance with § 1101-61.2 CBC.

1101-19.7.1 *Affidavit:* Applications for permits to wreck structures having party walls shall be accompanied by an affidavit containing a statement on behalf of the owner or person in control that the proposed work will be in accordance with all laws and ordinances applying to the premise, and that the notice required by § 1101-19.7 CBC have been served, and a complete listing of the names, addresses and method of service to those served.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 025-1999, eff. Feb. 22, 1999; a. Ord. No. 59-2002, eff. March 28, 2002; a. Ord. No. 418-2010, § 6, eff. Nov. 24, 2010)

Sec. 1101-21. Plans to be Adequate.

1101-21.1 *Clarity of plans:* Plans required under § 1101-19 CBC shall be drawn on paper or other medium acceptable to the to director of buildings and inspections, drawn to scale and shall be sufficiently clear, comprehensive, detailed, and legible when submitted to the director so that, together with any accompanying specifications and data, a person who is competent in such matters can determine whether or not the proposed building, addition, or alteration, and all proposed

building equipment, will conform in safety and sanitation to all applicable provisions of CBC.

1101-21.2 *Size of plans and required details:* Plans, when submitted to the director of buildings and inspections for review, shall be in standard multiples of eight and one-half inches by eleven inches or nine inches by twelve inches in size, and shall include:

(1) An index of drawings located on the first sheet;

(2) A plat plan showing street location; the location of the proposed building and all existing buildings on the side, including setback and side yard dimensions; distances between all buildings; and location and sizes of all utility lines;

(3) Floor plans, including plans of full or partial basements or cellars and full or partial attics or penthouses. Floor plans must show all relevant information such as door swings, stairs and ramps, windows, shafts, etc.; and must be sufficiently dimensioned to describe all relevant space sizes. Wall materials must be described by cross-hatching (with explanatory key), by notation, or by other clearly understandable method. Spaces must be identified by Code appellation, i.e., an "auditorium" shall not be identified as "meeting room" if its size and function indicates that it is an auditorium;

(4) All elevations necessary to completely describe the exterior of the building including floor to floor dimensions;

(5) Cross sections, wall sections and detail sections, to scale, as may be required to describe the general building construction including wall, ceiling, floor and roof materials and construction, and details which may be necessary to describe typical connections, etc.;

(6) Complete structural description of the building on the above drawings or on separate drawings including size and location of all principal structural elements and a table of live loads used in the design of the building and computations, stress diagrams and other data sufficient to show correctness of plans and such information shall be identified by the engineer or architect responsible for the design;

(7) Complete description of the mechanical and electrical systems of the building on the above drawings or on separate drawings, including plumbing schematics and principal plumbing, heating, ventilation and air conditioning duct and piping layouts and lighting and power equipment layouts; and

(8) Additional graphic or test information as may be reasonably required by the director of buildings and inspections to allow him to review special or extraordinary construction methods or equipment.

(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 025-1999, eff. Feb. 22, 1999)

Sec. 1101-23. Construction Documents, Required Evidence of Responsibility.

1101-23.1 *General:* Required construction documents, when submitted for examination as required under § 1101-19 CBC shall bear the identification of the person primarily responsible for their preparation and for the provisions for safety and sanitation shown therein.

(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 59-2002, eff. March 28, 2002)

Sec. 1101-25. Revision to Construction Documents.

1101-25.1 *Revisions prior to permit issuance:* Nothing in this Code shall prohibit the filing for revisions to construction documents at any time during which the application is being processed by the department of buildings and inspections and before the permit is issued or the application is rejected. Such changes after approval shall be made a part of the construction documents and filed as such.

1101-25.2 *Revisions after permit issuance:* Except for minor changes as approved by the director of buildings and inspections, a separate permit shall be required for revisions to construction documents for which a permit has been granted and such revisions shall be considered as alterations or additions to an existing building.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 59-2002, eff. March 28, 2002)

Sec. 1101-27. Plans, Examination Of.

1101-27.1 *Order of examination:* The director of buildings and inspections shall examine plans for compliance with CBC in the order in which the plans are submitted to him for approval, unless otherwise consented to by the building owner or person in control of the building affected by deferred examination of his plans.

1101-27.2 *Plans by architect or engineer:* Plans certified by the registered architect or professional engineer who prepared the same as conforming to the requirements of CBC pertaining to design loads, stresses, strength, and stability, or other requirements involving technical analysis, need be examined by the director of buildings and inspections only to the extent necessary to determine conformity of such plans with other requirements of CBC.

1101-27.2.1. *Standardized plans:* Whenever plans for a building are substantially identical to the plans that have previously been approved by the director of buildings and inspections for compliance with Chapter 1115 CBC or OBC, the plans need only be examined by the director to the extent necessary to determine conformity with the site-dependent requirements of the CBC and OBC.

Exception: Amendment to the CBC or OBC renders the previous approval no longer appropriate.

1101-27.3 *Maximum turnaround time:* Not later than ten working days after the receipt of an application and plans for a permit to construct, enlarge, alter or repair a residential building having not more than 20 dwelling units, the director of buildings and inspections shall notify the applicant by mail:

(1) That the application has been approved and, upon the payment of the required fee, a permit will be issued; or

(2) That approval of the application for a permit is being withheld and the reasons therefor.

If the director of buildings and inspections does not mail the notice required by this section within the time prescribed, then the prescribed permit fee shall be waived.

Exception: This section shall not apply to applications for building permits which are subject to public hearing or which are subject to review of the historic conservation board.

1101-27.4 *Plans and specifications for automatic sprinkler systems:* Plans and specifications for automatic sprinkler systems shall:

(1) When submitted under the signature of an individual certified under § 3781.105 of the Ohio Revised Code, be processed in the same manner as plans and specifications submitted under the signature of a professional

engineer registered under Chapter 4703 of the Ohio Revised Code. Any statistical data, reports, explanations, plan description, or information that would not also be required for a similar submission by a professional engineer or registered architect need not be submitted by a certified designer.

(2) If certified by a registered architect or professional engineer or individual certified under § 3781.105 of the Ohio Revised Code as conforming to requirements of OBC pertaining to design loads, stresses, strength, stability, or other requirements involving technical analysis, be examined by the director of buildings and inspections only to the extent necessary to determine conformity of such plans and specifications with other requirements adopted by the board under Chapters 3781 and 3791 of the Ohio Revised Code.

(3) Indicate thereon the individual installing the automatic sprinkler systems who shall be certified by the Fire Marshal pursuant to Section 3737.65 of the Ohio Revised Code. In the event that the installer is not known at the time of plan approval, partial plan approval shall be granted subject to subsequent submission by addendum of the name of the qualified installer prior to installation of any part of the automatic sprinkler systems.

(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 128-2000, eff. May 19, 2000; a. Ord. No. 59-2002, eff. March 28, 2002; a. Ord. No. 418-2010, § 7, eff. Nov. 24, 2010)

Sec. 1101-29. Construction Documents, Approval Of.

1101-29.1 *General:* When the director of buildings and inspections finds that plans submitted to him for approval under § 1101-19 CBC conform to the applicable provisions of CBC, he shall endorse or stamp such plans as approved. The approval of plans under this section is a "license" and the failure to approve such plans as submitted within 30 days after filing or the disapproval of such plans is an "adjudication order denying the issuance of a license" requiring the opportunity for an "adjudication hearing" as provided by Sections 119.07 to 119.13 of the Ohio Revised Code and as modified by Sections 3781.031 and 3781.19 of the Ohio Revised Code. An adjudication order denying the issuance of a license shall specify the reasons for such denial.

1101-29.2 *Nonconformance approval:* When construction documents are submitted which do not conform with the requirements of the CBC and OBC. Such documents may be approved by the director of buildings and inspections provided such nonconformance is not considered to be a serious hazard and the owner or owner's representative or person in control subsequently submits revised construction documents showing evidence of compliance with the CBC and OBC. In the event such construction documents are not received within a reasonable length of time, not to exceed thirty days, the director of buildings and inspections shall issue an order revoking the permit.

1101-29.3 *Conditional permits:* When plans are submitted which cannot be approved under the provisions of § 1101-29.1 CBC, the director of buildings and inspections, may at the request of the owner or representative of the owner or person in control, issue a conditional permit when an objection to any portion of the plans or specifications results from conflicting interpretations of the Code, or compliance requires only minor modifications to the building design or construction. No conditional permit shall be issued where the objection is to the application of specific technical requirements of the Code or correc-

tion of the objection would cause extensive changes in the building design or construction. A conditional permit is a "conditional license" to proceed with construction or materials up to the point where construction or materials objected to by the director of buildings and inspections are to be incorporated into the building. The conditions objected to shall be in writing from the director of buildings and inspections which shall be an "adjudication order denying the issuance of a license," and may be appealed in accordance with § 3781.19 of the Ohio Revised Code. In the absence of fraud or a serious safety or sanitation hazard, all items previously examined shall be conclusively presumed to comply with Chapters 3781.and 3791.of the Revised Code, CBC and OBC Reexamination of plans shall be limited to those items in the adjudication order. A conditional permit is not a partial permit pursuant to § 1101-29.4 CBC.

1101-29.3.1 *Conditional one, two and three family dwelling permits:* When plans for a one, two and three family dwelling are submitted which cannot be approved under the provisions of § 1101-29.1 CBC, the director of buildings and inspections, may at the request of the owner or representative of the owner, issue a conditional permit when compliance requires only minor modifications to the building design or construction. By proceeding with construction under a conditional permit, the owner agrees to carry out the work in conformity with the CBC, and compliance with the CBC shall be determined by field inspection.

1101-29.4 *Phased permits:* The director of buildings and inspections may issue a partial permit for construction of a foundation or any other part of a building or structure before complete plans and specifications for the entire building or structure have been submitted, provided that such permits are issued for various stages in sequence of construction and that all information and data required by the Code for that portion of the building or structure has been submitted. The holder of a partial permit may proceed only to the point for which approval has been given, at his own risk and without assurance that approval for the entire building or structure will be granted.

1101-29.5 *Permit limitations:* Any permit issued by the director of buildings and inspections or the electrical inspection agency under the provisions of this Code, shall expire by limitation as provided in §§ 1101-29.5.1 through 1101-29.5.4 CBC.

1101-29.5.1 *Applicable law:* Permits shall be issued in accordance with all laws, codes and ordinances in effect at the time of original application, providing that the application is substantially complete and in a form which provides sufficient information to determine whether the proposed work complies with all applicable codes. Applications may be amended and drawings revised to reflect changes necessary to comply with applicable codes or to provide additional information as may be requested by the director of buildings and inspections. Furthermore, no application may remain pending for more than one year from the date of first application unless the application and plans are resubmitted prior to the one year expiration and such plans comply with all the applicable codes in effect at the time of resubmission and upon payment of the fees established under Section 1101-85. In any event, an application may not remain pending for more than two years from the date of first application.

1101-29.5.2 *Permits other than to wreck:* A permit for other than the wrecking of any building or structure shall expire by limitation if construction, erection, alteration, or other work has not commenced within 12 months from the date of permit issuance, provided however, that one renewal shall be granted for an additional 12-month period commencing upon expiration of the original

permit, if requested by the owner or person in control prior to expiration of the permit and upon payment of the fees established under Section 1101-85.

Exception: Separate permits as required by § 1101-17.3 CBC issued concurrently with the building permit for the same address or same project shall not expire prior to the expiration of said building permit

1101-29.5.3 *Work discontinued for six months:* A permit for other than the wrecking of any building or structure shall expire by limitation if in the course of construction, work is delayed or suspended for more than six months, provided that two renewals shall be granted for six months each commencing upon expiration of the original permit or first renewal, if requested by the owner or person in control prior to expiration of the permit and upon payment of the fees established under Section 1101-85.

1101-29.5.4 *Permits to wreck:* The issuance of a permit to wreck any building or structure shall be subject to the provisions of §§ 1101-29.5.4.1 through 1101-29.5.4.2 CBC.

1101-29.5.4.1 *Expiration of application:* An application for a permit to wreck any building or structure shall expire by limitation when the permit has not been issued within 14 days from the date of notification to the applicant that the permit is ready to be issued.

1101-29.5.4.2 *Expiration of permit to wreck:* A permit to wreck any building or structure (including the associated excavation and fill permit when less than 1.000 cubic yards) shall expire by limitation when the work has not been completed within 120 days from the issuance, provided, however, that one renewal, which shall be valid for 30 days commencing upon written application made prior to the expiration of the original permit and payment of the fees established under Section 1101-85. Except for good cause, such as labor disputes or acts of God, no further extensions may be granted, and any further work shall be pursuant to a new application and permit.

Exception: Permits to wreck with extended expiration date: When the scope of work under a permit (including the associated excavation and fill permit when less than 1,000 cubic yards) to wreck is such that the work, using due diligence and labor and equipment appropriate to the scope of the work, cannot be completed within the periods provided in § 1101-29.5.4.2 CBC, an applicant may, prior to the first issuance of any permit to wreck, seek approval from the director of buildings and inspections for a permit to wreck with extended expiration date. The director may, at the time of first issuance of a permit to wreck, grant such additional time as may be reasonable, given the custom and practice of the wrecking trade, at no additional fee.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 357-1998, eff. Oct. 16, 1998; a. Ord. No. 128-2000, eff. May 19, 2000; a. Ord. No. 59-2002, eff. March 28, 2002; a. Ord. No. 418-2010, § 8, eff. Nov. 24, 2010; Emer. Ord. 114-2014, § 3, eff. June 4, 2014)

Sec. 1101-31. Construction Documents, Approved Sets Required.

1101-31.1 *Approved sets of plans:* One set of construction documents which has been approved under § 1101-29 CBC shall be returned to the owner or person in control. One identical set of such construction documents shall be kept at the site of the work and shall be available for reference by the director of buildings and inspections at all times during working hours while such work is in progress.

1101-31.2 *Additional sets of construction documents:* The director of buildings and inspections shall stamp or endorse additional sets of construction documents which have been approved by him in addition to the sets

required under § 1101-19 CBC, when so requested by the owner or his agent or person in control.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 59-2002, eff. March 28, 2002; a. Ord. No. 418-2010, § 9, eff. Nov. 24, 2010)

Sec. 1101-33. Construction Documents, Conformity To.

1101-33.1 *General:* The construction, erection, and alteration of a building, and any addition thereto, and the equipment and maintenance thereof shall conform to required construction documents which have been approved by the director of buildings and inspections except for minor deviations which do not involve a violation of CBC. In the absence of fraud or a serious safety or sanitation hazard, any structure built in accordance with approved plans shall be conclusively presumed to comply with Chapters 3781 and 3791 of the Ohio Revised Code and CBC and OBC.

Exception: Industrialized units shall be constructed to conform to the plans approved by the Board of Building Standards.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 59-2002, eff. March 28, 2002)

Sec. 1101-35. Permits, Requirements For and Posting.

1101-35.1 *Issuance of permits:* After construction documents have been approved under § 1101-29 CBC, and the fee prescribed elsewhere in this Code has been paid, the director of buildings and inspections shall furnish a permit to the owner or person in control of the building or equipment to which the plans relate.

1101-35.2 *Form of permits:* The form of the permit shall be as prescribed by the director of buildings and inspections and shall show the serial number of the permit, the address at which the building or equipment under consideration is or is to be located, the name and address of the owner or person in control, the name of the person who issued the permit, and such other information as is necessary to facilitate and insure the proper enforcement of CBC.

1101-35.3 *Posting of permits:* The permit shall be posted in a conspicuous location outside of the building and in the front part of the premises on which is, or will be, located the building or equipment to which the approved plans relate. The owner or person in control and the contractor shall, so far as possible, preserve and keep said permit posted until the completion of the work to which the approved plan relate. Upon application by the owner or person in control, the director of buildings and inspections shall issue a duplicate permit to replace one destroyed by vandals or one which is accidentally destroyed.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 59-2002, eff. March 28, 2002; a. Ord. No. 418-2010, § 10, eff. Nov. 24, 2010)

Sec. 1101-37. Certificate of Occupancy.

1101-37.1 *New buildings:* A building or structure hereafter erected shall not be used or occupied in whole or in part until a certificate of occupancy shall have been issued by the director of buildings and inspections.

1101-37.2 *Buildings hereafter altered:* A building or structure hereafter enlarged, extended or altered, in whole or in part, shall not be occupied or used until the certificate of occupancy shall have been issued; except that any use or occupancy which was not discontinued during the work of alteration shall require the issuance of a certificate by the director of buildings and inspections within thirty days after completion of the alteration.

Exception: A certificate of occupancy shall not be required for alteration work to existing single family dwelling houses.

1101-37.3 *Existing buildings:* Upon written request from the owner or person in control of an existing building or structure, the Director of Buildings and Inspections shall issue a certificate of occupancy, provided there are no violations of law or orders of the building official pending, and it is established after inspection and investigation that the alleged occupancy of the building or structure has heretofore existed. This Code shall not require the removal, alteration or abandonment of, or prevent the continuance of the occupancy of a lawfully existing building or structure, unless such occupancy is deemed to endanger public safety and welfare.

1101-37.4 *Changes of occupancy:* A building or structure hereafter changed, in whole or in part, from one occupancy to another shall not be occupied for the new occupancy until the building conforms to the applicable provisions of this code for the new occupancy and the certificate of occupancy shall have been issued by the director of buildings and inspections for such changed portions.

1101-37.5 *Temporary occupancy:* Upon the request of the holder of a permit, the director of buildings and inspections may issue a temporary certificate of occupancy for a building or structure, or part thereof, before the entire work covered by the permit shall have been completed, provided such portion or portions may be occupied safely prior to full completion of the building or structure without endangering life or public welfare.

1101-37.6 *Contents of certificate:* When a building or structure is entitled thereto, the Director of Buildings and Inspections shall issue a certificate of occupancy. Upon completion of inspection and resolution of all pending orders, the certificate of occupancy shall be issued. The certificate of occupancy shall contain the following:

(1) Statement certifying compliance with the provisions of all applicable codes.

(2) The edition of the OBC or One, Two and Three Family Dwelling Code under which the plan approval was issued.

(3) The plan approval application number.

(4) The address.

(5) A description of that portion of the structure for which the certificate is issued.

(6) The use group(s) and occupancies(s), in accordance with the provision of "Chapter 3, Use and Occupancy Classification" OBC or Section 1115-01 CBC.

(7) The type of construction as defined in "Chapter 6, Types of Construction" OBC.

(8) The design occupant load.

(9) If an automatic sprinkler system is provided, whether the sprinkler system is required.

(10) The hazard classification or storage configuration, including aisle widths, for which the automatic sprinkler system is designed.

(11) The automatic sprinkler and standpipe system demand at the base of the riser.

(12) The classification of the subject property under the Cincinnati Zoning Code, including any applicable overlay district regulations.

(13) Any special stipulations and conditions of the plan approval including any variances granted to the requirements of this code.

1101-37.6.1 *Validity of a certificate of occupancy:* The certificate of occupancy represents an approval that is valid only when the building or structure is used as approved and certifies conformance with applicable provisions of the CBC, OBC and Chapters 3781 and 3791. of the Revised Code. The approval is conditioned upon all building systems and equipment being maintained and tested in accordance with applicable codes and applicable equipment and systems schedules.

1101-37.7 *Fee:* The fee for a certificate of use and occupancy required by this code shall be established under Section 1101-85, and shall be payable at the time the permit is issued; or the case of a request for a certificate not associated with a permit, payment shall be made at the time of application.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 357-1998, eff. Oct. 16, 1998; a. Ord. No. 59-2002, eff. March 28, 2002; a. Ord. No. 418-2010, § 11, eff. Nov. 24, 2010; Emer. Ord. 114-2014, § 3, eff. June 4, 2014)

Sec. 1101-39. Special Professional Services.

1101-39.1 *General:* Where applications for unusual design or magnitude of construction are filed where required in Section 1704 OBC or where code reference standards in Appendix A OBC require special architectural or engineering inspections, the director of buildings and inspections may require special inspections or full-time project supervision by a registered architect or professional engineer. Such architect, engineer or special inspector shall supervise the work and be responsible for its conformity with the approved plans as they relate to safety and sanitation, keep daily records and submit reports as required by the director of buildings and inspections. Where the building official requires fill-time project supervision, the installation of an automatic sprinkler system may be supervised by a person certified under Section 3781.105 of the Revised Code in lieu of supervision by a registered architect or professional engineer.

1101-39.2 *Excavation or fill field observation:* Observation and testing of excavation or fill in the field shall be performed by a registered professional engineer, an architect where the excavation and fill is incident to the practice of architecture, or their representatives. The registered professional engineer or architect shall submit a summary report to the director of buildings and inspections upon completion of operations. The director of buildings and inspections may require any of these services to the performed by a geotechnical engineer.

Exception: Where not deemed necessary as determined by the director of buildings and inspections, in accordance with § 1101-19.5 CBC.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 59-2002, eff. March 28, 2002)

Sec. 1101-40. Cranes.

(a) All cranes used to perform work shall be registered pursuant to section 1106-16 of the Cincinnati Building Code, and all persons using or operating a crane shall be registered pursuant to section 1106-16. This section and the rules established under section 1106-16 apply only to cranes and crane operations within the corporate limits of the City of Cincinnati.

(b) Any person intending to use a crane to perform work shall provide notice as well as current contractor registration and operator

certification to the director of buildings and inspections no less than one business day prior to the installation, erection, or placement of the crane on the premises where the work is to be performed.

(c) All cranes used to perform work shall be installed, erected, and placed in conformity with Occupational Safety & Health Administration's (OSHA) regulations for Cranes and Derricks in Construction (29 CFR Part 1926, Subpart CC, §§ 1926.1403 through 1926.1406) and the crane manufacturer's specifications. Any person intending to use a crane that requires on site assembly shall provide the director of buildings and inspections with certification of compliance with this section, reviewed and sealed by a qualified person, prior to the crane's use or operation.

(d) Upon the installation, erection, or placement of a crane on a work site and delivery of the written certification of its conformity with section 1106-16 of the Cincinnati Building Code, the crane shall be used and operated in conformity with the crane manufacturer's specifications, applicable industry standards established by the American Society of Mechanical Engineers (ASME) B30 series, and OSHA's regulations for Cranes and Derricks in Construction (29 CFR Part 1926, Subpart CC).

(e) Any modification, jumping, climbing, lowering, disassembly, or dismantlement of a crane shall be conducted in conformity with the crane manufacturer's documentation, applicable industry standards established by the American Society of Mechanical Engineers (ASME) B30 series, and OSHA's regulations for Cranes and Derricks in Construction found in 29 CFR Part 1926, Subpart CC.

(f) Upon a crane's installation, erection, or placement on a work site, a copy of the crane manufacturer's documentation, applicable industry standards established by the American Society of Mechanical Engineers (ASME) B30 series and OSHA's regulations for Cranes and Derricks in Construction found in 29 CFR Part 1926, Subpart CC shall be maintained at the site in an accessible and legible format, paper or electronic, until the crane is disassembled and removed from the site.

(g) All cranes and the use and operation of cranes shall be subject to inspection by the director of buildings and inspections.
(Ordained by Ord. No. 092-2016, § 3, eff. Aug. 1, 2016)

Sec. 1101-41. Lot Line Markers Required.

1101-41.1 *Lot lines:* Before any work is started in the construction of a building or an addition to a building to which CBC is applicable under § 1101-09 CBC, all boundary lines shall be clearly marked at their intersections with permanent markers or with markers which are offset at a distance which is of record with the owner.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996)

Sec. 1101-42. Courtesy Inspections.

1101-42.1 *Program Authorization:* The director is authorized to establish a program to provide courtesy inspections of existing commercial buildings. Any program so established shall provide that any person may request an inspection of an existing commercial building by submitting a complete application on forms specified by the director and by paying the required fee established pursuant to Section 1101-85 of this Chapter.

1101-42.2 *Pre-Development Inspections:* The courtesy inspection program shall provide for inspections that ascertain whether an existing commercial building would require alterations, modifications, additions, repairs,

or other improvements before it may be legally used for a particular type of occupancy. Any findings and determinations made by the director in connection with a courtesy inspection shall be provided for informational purposes only and shall not constitute an adjudication for the purposes of the CBC or the OBC; provided, however, that the director shall have the discretion and authority to issue orders and make adjudications pursuant to the CBC or the OBC based upon findings and determinations made in connection with a courtesy inspection.

1101-42.3 *Program Rules and Regulations:* The director is hereby authorized to promulgate rules and regulations to carry out the purposes of this section.
(Ordained by Emer. Ord. No. 329-2016, § 1, eff. Oct. 19, 2016)

Sec. 1101-43. Inspections, General.

1101-43.1 *General:* If the plans for the erection, construction, repair, alteration, relocation, or equipment of a building are subject to examination by the director of buildings and inspections, under § 1101-17.2 CBC he shall make or cause to be made such inspections, investigations, and determinations as are necessary to determine whether or not the work which has been performed and the installations which have been made are in conformity with the approved plans relating thereto and to safety and sanitation, except to the extent special supervision is provided under § 1101-39CBC.

1101-43.2 *Ongoing inspections:* The director of buildings and inspections, from time to time, shall make or cause to be made an inspection of any building and equipment installation that may become dangerous, unsanitary or unsafe, and for compliance with the provisions of this Code.

1101-43.3 *Excavation or filling operations:* The person to whom an excavation or filling permit is issued shall notify the director of buildings and inspections:

(1) Of commencement of operations under such permit, 12 hours in advance;

(2) When such operations are completed;

(3) Of locations of any borrow sites or any disposal sites for excess materials, prior to commencement of operations.

1101-43.4 *Dangerous operations or conditions:* Whenever, in the opinion of the director of buildings and inspections, any building is being constructed, altered, repaired or demolished in a careless or unworkmanlike manner so as to endanger life or property, or so as to violate any provision of the CBC and OBC, or where at any time adequate safeguards are not provided in or about any premises, to protect life and property, the director of buildings and inspections may order such operations discontinued until he is satisfied that adequate measures will be taken to comply with the provisions of the CBC and OBC, and that the work will proceed in a manner which will not endanger life or property, or he may order such changes to be made and such measures taken as he may deem necessary to protect life and property.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 59-2002, eff. March 28, 2002)

Sec. 1101-44. Periodic Property Inspection Program.

1101-44.1 *Program Authorization:* The director is authorized to establish a periodic property inspection program to ensure that the use and occupancy of a commercial, non-residential premises conforms to continuing conditions imposed by an administrative official or administrative body pursuant to

applicable building, housing, zoning, or related codes and ordinances, including, but not limited to, conditions imposed by the director, board of building appeals, board of housing appeals, zoning hearing examiner, historic conservation board, zoning board of appeals, and city planning commission.

1101-44.2 *Initial Inspection:* The periodic property inspection program shall provide for inspections of a premises when the use or occupancy of the premises is subject to one or more continuing conditions imposed by an administrative official or administrative body. The director shall initially inspect each premises within a reasonable period of time following the imposition of one or more continuing conditions to determine whether the use and occupancy of the premises conforms to all continuing conditions imposed on its use and occupancy.

1101-44.3 *Subsequent Inspections:* Following an initial inspection, the director, in consultation with the owner or person in control of the premises, shall establish an inspection schedule of regular intervals no greater than every five years to ensure that the use and occupancy of the premises remains in conformity with all applicable conditions.

The director shall have the discretion to modify the inspection schedule from time to time; provided, however, that in establishing the schedule or modifying it, the director must consider the following:

(1) The nature of the premises and the activities conducted thereon;

(2) The potential impact on the quality of life within the immediate neighborhood and surrounding community if a condition is not observed;

(3) The potential impact on the health, safety, and welfare of the public if a condition is not observed; and

(4) The documented instances of compliance and non-compliance with the condition.

The director shall provide the owner or person in control of the premises with a copy of the inspection schedule and any modifications thereto and the basis for the schedule and any modifications thereto no less than 30 days prior to the next inspection date indicated on the schedule. After the schedule and any modification thereto is established, the owner and person in control of a premises subject to this section shall be responsible for causing the premises to be inspected according the schedule established by the director.

1101-44.4 *Fee; Liability for Failure to Have Premises Inspected:* The director is authorized to charge the inspection interval fee established pursuant to Section 1101-85 for each inspection conducted by the director pursuant to this section, and the owner and person in control of the premises shall be jointly and severally responsible for the payment of the fee no later than 30 days following each inspection performed by the director.

1101-44.5 *Right to Rescind Condition Use:* If the director finds that the use and occupancy of a premises fails to conform to a continuing condition, the director may revoke all permits, certificates, permissions, and approvals issued or granted for the use and occupancy of the premises that rely upon compliance with the condition. The director's revocation of a permit, certificate, permission, or approval for failure to comply with a condition shall be effective 30 days following the director's service of written notice of revocation and the reasons therefore to the owner or person in control of the premises.

1101-44.6 *Program Rules and Regulations:* The director is hereby authorized to promulgate rules and regulations to carry out the purposes of this section.
(Ordained by Emer. Ord. No. 329-2016, § 1, eff. Oct. 19, 2016)

Sec. 1101-45. Right of Entry and Credentials.

1101-45.1 *Right of entry:* The employees of the department of buildings and inspections may enter upon a premises at any reasonable time in the performance of their duties in the enforcement of the CBC, except that no such employee shall enter a private portion of a premises until the employee has identified himself or herself and secured permission from the owner, occupant, or other person in control of the premises to enter such portion of the premises.

1101-45.2 *Credentials:* Before entering upon a premises or while on a premises in the administration or enforcement of the CBC, an employee of the department of buildings and inspections shall show his or her department credentials upon request by the owner or person in control or occupants of the premises involved or by the contractor performing work on the premises.

1101-45.3. *Search warrants:* In the event the owner, occupant, or person in control of a premises or a portion thereof refuses to permit an authorized employee of the department of buildings and inspections to enter upon a private portion of the premises, the employee shall obtain a search warrant before attempting to enter that portion of the premises. The employee shall also obtain a search warrant in the event that an owner, occupant, or person in control of a premises or a portion thereof otherwise refuses to comply with one or more provisions of the CBC, if compliance with the provision would constitute a search of a private portion of the premises.

An authorized employee of the department of buildings and inspections must demonstrate probable cause to obtain a search warrant sought in connection with this section, provided that the employee may demonstrate probable cause with a showing of (i) specific evidence that a premises or portion thereof is affected by an existing code violation; or (ii) evidence that the warrant is sought in connection with the performance of a general inspection program, the premises or portion thereof is subject to the general inspection program, and the owner, occupant, or person in control has not complied with the requirements of the general inspection program. Notwithstanding the foregoing, nothing contained in this section shall be construed to expand, limit, or otherwise alter a judicial official's authority to consider any criteria the official deems relevant in his or her consideration of a warrant request made under this section.

1101-45.4. *No penalty:* Notwithstanding any provision of the CBC or the Cincinnati Municipal Code to the contrary, no person who, having the right to do so (i) refuses to permit an authorized employee of the department of buildings and inspections to search a private portion of a premises, or (ii) otherwise refuses to comply with a provision of the CBC if compliance with the provision would constitute a search of a private portion of a premises, shall be subject to criminal or civil penalty as a consequence of exercising the right.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 418-2010, § 12, eff. Nov. 24, 2010; Emer. Ord. No. 329-2016, § 2, eff. Oct. 19, 2016)

Sec. 1101-47. Personal Liability and Indemnity.

1101-47.1 *General:* Any officer or employee charged with the enforcement of this Code,

acting for the City of Cincinnati in the discharge of his duties, shall not thereby render

himself liable personally, and he is hereby relieved from all personal liability for any damage that may accrue to persons or property as a result of any act required or authorized in the discharge of his duties. Any suit brought against any officer or employee because of such act performed by him in the enforcement of any provision of this Code shall be defended by the department of law until the final termination of the proceedings therein.

1101-47.2 *Indemnity:* Any person to whom a permit or certificate is issued, under the provisions of this Code, shall agree, by the acceptance thereof, to hold the city harmless and free from claims of any person that may be caused by, or arise from, any excavation, fill, use, building construction, or related operation. The permitted use or operation shall be conditional upon such agreement and liability.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996)

Sec. 1101-49. Revocation of Permits and Certificates.

1101-49.1 *Revocation and refusal of permits:* The director of buildings and inspections may revoke any permit, license, certificate or approval issued under the provisions of this Code, may refuse to issue a permit, license certificate, or approval or may stop the work for any of the following reasons:

(1) Whenever there is a violation of any provision of this Code, any ordinance of the city or statute of the state relating to the same subject matter;

(2) Whenever the continuance of any work or a condition of occupancy becomes dangerous to life or property;

(3) Whenever there is a violation of any condition on which the issuance of the permit, license or certificate was based;

(4) Whenever in the opinion of the director of buildings and inspections the person having charge of the work is incompetent;

(5) Whenever any false statement or misrepresentation has been made upon the application, plans, or specifications on which the issuance of the permit, license, certificate or approval was based;

(6) When orders on a building have not been complied with or when the building does not comply with the occupancy requirements; or

(7) Whenever adequate water supply or facilities for firefighting purposes are not furnished as required in § 1101-15.4 CBC.

1101-49.2 *Notice of revocation:* The revocation notice of the permit, license, certificate or approval in every instance shall be in writing and shall be served upon the owner, his agent or the person having charge of the work. A revocation notice shall also be posted upon the building in question by the Director of Buildings and Inspections or the electrical inspection agency. After the notice is received or posted, it shall be unlawful for any person to proceed with any operation for which such permit was issued. No part of the fees for such permit shall be returned.

1101-49.3 *Rescinding revocation fee:* When any permit, license certificate, or approval is revoked because of the violation of any of the provisions of this Code, the fee for rescinding such revocation shall be as established under Section 1101-85.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; Emer. Ord. 114-2014, § 3, eff. June 4, 2014)

Sec. 1101-51. Penalties.

1101-51.1 *Violation of this code:* Except as provided in § 1101-51.2 CBC, any person,

being the owner, agent, or person in control of any building or premises, who violates any provision of this code, or fails to conform to any provision thereof, or fails to obey any order of the director of buildings and inspections or his duly authorized agent, shall be guilty of a misdemeanor of the first degree. Each and every day on which such person continues to violate any provision of this code after having once been notified of such violation shall constitute a separate offense.

1101-51.2 *Violation of § 1101-69 CBC:* Whoever violates § 1101-69 CBC shall be guilty of a minor misdemeanor on a first offense and a misdemeanor of the fourth degree on each subsequent offense. Each day and every day after the effective date of the vacation notice that such dwelling unit is occupied shall constitute a separate offense. Any fine hereunder shall be mandatory.

1101-51.4 *Accessories:* Any owner, agent, or person in control of any building or premises, or architect, engineer, contractor, builder, subcontractor, foreman, mechanic, employee, or other person who shall assist in the violation of this code or of any certificate, order, or permit issued thereunder shall be guilty of a minor misdemeanor on a first offense and a misdemeanor of the fourth degree on each subsequent offense.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 418-2010, § 13, eff. Nov. 24, 2010)

Sec. 1101-53. Certificate of Inspection.

1101-53.1 *By whom application is made:* A property owner or his agent may apply in writing on a form provided by the Director of Buildings and Inspections for a certificate of inspection. After payment of the required fee established under Section 1101-85, the Director of Buildings and Inspections shall make or cause to be made a special inspection of the property. The result of such inspection shall be contained in a certificate of inspection which shall set forth either:

(1) A statement that the property is in substantial compliance with the Building and Zoning Codes for the current use as of the date of the inspection; or

(2) A list of major Building or Zoning Code violations as of the date of the inspection.

If the director had, previous to the date of application for a certificate, issued any order or notice of violation pursuant to § 1101-61 CBC or Chapter 1451of the Zoning Code that remains outstanding as of the date of issuance, the director shall attach a copy of such order or notice to the certificate.

1101-53.2 *Issuance of certificates of inspection:* A certificate of inspection shall be issued only to the owner or his agent. Except in the case of threatened collapse of a building, object or device, or any other situation of immediate danger, building orders for the correction of code violations stated on a certificate of inspection shall not be served within 60 days of the issuance of the certificate of inspection.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; Emer. Ord. 114-2014, § 3, eff. June 4, 2014; Emer. Ord. No. 238-2015, § 24, eff. July 1, 2015)

Sec. 1101-55. Inspection of Load-Bearing Concrete Masonry Units.

1101-55.1 *General:* It shall be unlawful to use load-bearing concrete masonry units manufactured by other than the holder of a valid City of Cincinnati certificate of approval.

1101-55.2 *Tests of samples:* The director of buildings and inspections shall select samples of each classification of loadbearing concrete masonry units from each manufacturer at least once every 12 months and shall

require tests of the said units to determine compliance with §§ 1101-55.3 and 1101-55.4 CBC.

1101-55.3 *Hollow load-bearing concrete masonry units:* Such units shall be of a quality not less than that specified in ASTM Standard No. C-90, titled: "Standard Specification for Hollow Load-Bearing Concrete Masonry Units" as designated in Appendix A.

1101-55.4 *Solid load-bearing concrete masonry units:* Such units shall be of a quality not less than that specified in ASTM Standard No. C-145, entitled: "Standard Specification for Solid Load-Bearing Concrete Masonry Units" as designated in Appendix A.

1101-55.5 *Issuance of certificate of approval:* When load-bearing concrete masonry units comply with the requirements of this section and the fee established under Section 1101-85 has been paid, the director of buildings and inspections shall issue, annually, a certificate of approval to the manufacturer of said masonry units.

1101-55.6 *Identification of units:* No less than one out of every five load-bearing concrete masonry units shall have applied or formed thereon a mark of identification that will indicate the name and place of business of the manufacturer. No such mark shall be used until a facsimile thereof has been filed with and approved by the director of buildings and inspections.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; Emer. Ord. 114-2014, § 3, eff. June 4, 2014)

Sec. 1101-57. Demolition or Repair of Buildings.

1101-57.1 *Buildings Subject to Demolition or Repair:* A building shall be subject to demolition or repair by the director of buildings and inspections whenever:

(1) The building has been deemed to be dangerous and unsafe as defined in § 1101-63.1 CBC, the director of buildings and inspectionshas exhausted the provisions of § 1101-61.1 CBC, and the building has not been brought into compliance with the CBC or any order issued by the director of buildings and inspections; or

(2) The building threatens to collapse or poses other immediate danger and action authorized by § 1101-63.4 CBC is in the interest of public safety.

1101-57.2 *Administrative Proceedings:* Whenever a building is subject to demolition or repair under § 1101-57.1(1) CBC the director of buildings and inspections shall:

(1) Schedule a public hearing for the purpose of determining whether the building in question constitutes such a public nuisance that it should be demolished or repaired by governmental action;

(2) Send notices to all known parties of interest in the property, as determined from the official land records of Hamilton County, by certified mail not less than ten days prior to the public hearing;

(3) If the subject building contains any dwelling units, send electronic mail notification to the community council for the area within which the building is located, electronic mail notification to not-for-profit organizations known to be active in the rehabilitation of residential buildings in the neighborhood of the subject building, and any other entity or individual who has requested electronic mail notification. Such notification is contingent upon the relevant community councils, nonprofit organizations and other entities or individuals providing the director of buildings and inspections with electronic mail contact information;

(4) If the subject property is more than fifty (50) years of age, notify the urban conservator so that he can conduct a separate hearing to assess the building's historic significance;

(5) Post a copy of the notice of the public hearing on the subject building or premises not less than ten days prior to the public hearing;

(6) Publish the notice of the public hearing on the City of Cincinnati's website at least two weeks prior to the public hearing;

(7) Engage the services of a reputable property manager or other person experienced in the rehabilitation of buildings of similar use and type as the subject building to survey the premises to determine whether the condition of the premises is a factor seriously depreciating property values in the neighborhood;

(8) Hold the public hearing at which evidence may be received from any known parties of interest in the property, representatives from neighborhood organizations, police and fire division, the division of property maintenance code enforcement, and others. Witnesses must be sworn before testifying;

(9) Parties of interest in the property shall be permitted to appear and be heard in person, or by an attorney, in opposition to the proposed demolition or repair of the building, and to do all of the following:

(a) Present the party's position, arguments, and contentions;

(b) Offer and examine witnesses and present evidence in support;

(c) Cross-examine witnesses purporting to refute the party's position, arguments, and contentions;

(d) Offer evidence to refute evidence and testimony offered in opposition to his position, arguments, and contentions;

(e) Proffer any such evidence into the record, if the admission of it is denied by the chief building official or his designee;

1101-57.3 *Stay of Hearing:* The director of buildings and inspections may stay the conduct of hearing or continue a hearing in progress for up to 30 days if:

(1) The subject building has been sold or transferred and the new owner or person in control has the present capacity and intent to bring the subject building and its premises into compliance with the CBC or, if the building is not an historic structure or a structure within an Historic Landmark or District, taken down and removed within 30 days or such other time as may be allowed by the director of buildings and inspections; or

(2) The owner or person in control has applied for and obtained an administrative stay pursuant to § 1101-57.9 CBC.

If the building and its premises are not brought into compliance with the foregoing standards within the time provided the hearing shall be resumed, and any bond that may have been posted forfeited and the proceeds applied to the demolition and restoration costs.

1101-57.4 *Findings:* If from the evidence received at the public hearing conducted pur-

suant to § 1101-57.2 CBC and from personal observation of the subject building, the director of buildings and inspections finds:

(1) The city has exhausted reasonable efforts to cause the building to be brought into compliance with the CBC; and

(2) The subject building is a public nuisance under the standards of § 1101-63.1 CBC or because of age, obsolescence, dilapidation, deterioration, lack of maintenance or repair or any combination thereof constitutes a serious fire hazard, a serious health hazard, a substantial and unreasonable interference with the reasonable and lawful use and enjoyment of other premises within the neighborhood or a factor seriously depreciating property values in the neighborhood;

Then the director of buildings and inspections shall direct the subject building to be demolished and its premises restored to a safe condition, or that it be repaired in a manner sufficient to remediate any public nuisance. If the urban conservator has conducted a public hearing and concluded that the building is of historic significance, repair or other legal remedies will be pursued in lieu of demolition unless an emergency condition exists. The director of buildings and inspections shall have standing to seek a certificate of appropriateness from the urban conservator or historic conservation board for the purpose of performing repairs. Where the director of buildings and inspections seeks a certificate of appropriateness pursuant to this chapter, any fees associated with the application shall be waived. The director of buildings and inspections shall reduce the order to writing and incorporate the findings and conclusions supporting the order.

1101-57.5 *Demolition or Repair:* In cases where the director of buildings and inspections has directed a building to be repaired or demolished, the director of buildings and inspections shall:

(1) Notify all known parties of interest in the property of his decision by sending a copy by certified mail to their tax mailing addresses, by publication at least once in the City Bulletin and by posting a notice of the decision upon the building or premises concerned.

(2) Not less than thirty days after the notification as set forth in paragraph (1) of this division, cause the building to be demolished or repaired by governmental action. If demolished, the site will be left free of any nuisance and, if applicable, consistent with historic district guidelines. Maintenance of the vacant lot remains the responsibility of the owner or person in control. If repaired, the premises will be restored to a safe condition, free from any public nuisance, and the director of buildings and inspections will certify the costs incurred to the city treasurer for payment.

1101-57.6 *Recovering Demolition or Repair Costs:* The city solicitor, at the request of the director of buildings and inspections, shall recover the total cost of demolition and restoration or repair of the property, including the cost of service of notice and publication, from the persons on whom liability is imposed by § 1101-57.7 CBC.

1101-57.7 *Liability of Owners and Persons in Control:* Any person who on or after July 13, 1990 owns or is in control of a building found to be in violation of the CBC by the director of buildings and inspections pursuant to § 1101-61.1 CBC and subsequently demolished or repaired by government action pursuant to § 1101-57 CBC shall be jointly and severally liable for the costs incurred unless the building is reinspected and found

to have been brought into compliance with the CBC without governmental action and the building is thereafter kept in compliance with the CBC for so long as the person retains any interest in the building.

The city solicitor may accept title to real property from any person liable for demolition or repair costs under § 1101-57.7 CBC in whole or partial settlement of that liability on being advised by the city manager that the property can be used for municipal purposes or that the city can cause the property to be rehabilitated or redeveloped if title is acquired.

1101-57.9 *Administrative Stay:* The owner or person in control of any building subject to demolition under § 1101-57.1(1) and § 1101-57.4 CBC may apply to the director of buildings and inspections for a stay of the demolition. The owner or person in control shall give to the city treasurer a bond in amount equal to the costs of demolishing the building and restoring the premises to a safe condition as estimated by the director of buildings and inspections conditioned on the owner or person in control causing the subject building to be brought into compliance with the CBC. The director of buildings and inspections may grant a stay for a period not to exceed 90 days on finding that the delay in demolition will not pose an imminent peril to the public. The director of buildings and inspections may extend a stay for an additional 90 days on being satisfied that the owner or person in control is diligently causing the building to be brought into compliance with the CBC. If the owner or person in control fails to bring the building into compliance with the CBC within the period of the stay the bond shall be forfeited. The director of buildings and inspections shall then demolish or repair the building and restore the premises to a safe condition, free from any public nuisance, and certify the costs incurred to the city treasurer for payment.

1101-57.9.5 *Stay of Demolition or Repair of Buildings Under Contract for Rehabilitation With the City*: The owner or person in control of any building subject to demolition or repair under § 1101-57.1(1) and § 1101-57.4 CBC who has a contract in effect with the city for the rehabilitation of that building or who has applied to the city for rehabilitation assistance may apply to the director of buildings and inspections for stay of demolition or repair by governmental action. If the contract is in effect the director of buildings and inspections may issue the stay for as long as the owner is not in default of the contract. The director of buildings and inspections may issue a stay to a person who has applied to the city for rehabilitation assistance if the director of community and economic development endorses the application for stay and states that the city is likely to enter into a rehabilitation contract within the next 90 days. If the application is rejected the stay shall terminate.

1101-57.10 *Appeals:* Any person affected by any order or decision of the director of buildings and inspections made pursuant to § 1101-57 CBC may appeal in the manner as provided by law.

(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 355-1996, eff. Nov. 6, 1996; a. Ord. No. 357-1998, eff. Oct. 16, 1998; a. Ord. No. 325-2001, eff. Nov. 9, 2001; a. Ord. No. 59-2002, eff. March 28, 2002; a. Ord. No. 418-2010, § 14, eff. Nov. 24, 2010; Emer. Ord. No. 045-2011, § 1, eff. Feb. 16, 2011; Emer. Ord. No. 080-2012, § 1, eff. March 21, 2012; a. Ord. No. 091-2014, § 1, eff. June 7, 2014; Emer. Ord. No. 238-2015, § 25, eff. July 1, 2015)

Sec. 1101-59. Nighttime Construction Permits.

1101-59.1 *Permits:* The city engineer and/or the director of buildings and inspections may issue permits for nighttime construction be-

tween the hours of 11:00 p.m. and 7:00 a.m. the following day, where the applicant demonstrates it is in the interest of public safety that operations be conducted during those hours.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996)

Sec. 1101-61. Orders and Notice of Violations.

1101-61.1 *Notice of violations:* When the director of buildings and inspections finds that work or equipment is contrary to plans approved by the director of buildings and inspections or the historic conservation board, or is otherwise contrary to the CBC, or whenever it shall appear that an unsafe, dangerous or unsanitary condition exists in connection with any building, object, or device governed by the provisions of this Code, or a condition constituting a violation of any section of this Code or of any law or ordinance relating to the same subject matter, the director of buildings and inspections shall, forthwith, give notice of such defective condition or law violation to the owner or person in control, and order the same to be brought in compliance with the provisions of the CBC or related laws and ordinances. The notice shall state where and in what respect the work or equipment does not conform to the approved plans for same or the CBC, or shall state the defective condition or law violation and specify a reasonable period of time in which to conform to such plans or the CBC or the lawful order of the director of buildings and inspections.

1101-61.2 *Service of notice:* Unless otherwise specifically provided for, the service of any notice required by the provisions of this Code to be served on the owner, or person in control, agent, contractor or other person responsible for the work or violation in connection with any violation of the CBC or the construction, reconstruction, repair, removal, vacation, or wrecking, of any building, object or device or such property, may be made in any of the following ways:

(1) By personal delivery to the party involved;

(2) By delivery at the residence or place of business of the party involved;

(3) By mail addressed to the party involved at his residence or place of business; or

(4) Where the residence and place of business of such party is unknown and cannot be ascertained with reasonable diligence, or where, for any other reason, personal service or service by mail cannot be made, the notice shall be posted in a conspicuous place on the premises.

(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 418-2010, § 15, eff. Nov. 24, 2010; Emer. Ord. No. 045-2011, § 2, eff. Feb. 16, 2011; Emer. Ord. No. 238-2015, § 26, eff. July 1, 2015)

Sec. 1101-62. Emergency Correction of Essential Building Facilities Within Residential Rental Buildings.

1101-62.1 *Definitions*: For the purposes of this section, the following words and phrases shall have the following meaning:

Emergency Condition: "Emergency condition" means any condition resulting from the failure of essential building facilities that is dangerous or injurious to the health or safety of the occupants of the dwelling unit or building, or occupants of a neighboring dwelling unit or building. It includes, but is not limited, to the following:

(1) A mechanical failure of a ventilation or heating system, including failure

by such system to maintain a minimum temperature of 60 degrees Fahrenheit inside the dwelling unit;

(2) Lack of adequate water supply, including an adequate supply of hot water, to the dwelling unit or building due to mechanical failures of pipes or appliances such as boilers or hot water heaters;

(3) A structural, mechanical, or electrical defect that creates a substantial and serious risk of fire, accident, injury to health or safety, or other calamity;

(4) Lack of adequate and properly functioning sanitary facilities in the dwelling unit; or

(5) A failure of fire safety exiting devices to function properly.

Essential Building Facilities: "Essential building facilities" means the devices and systems that must be fully functional to allow for the safe and healthy habitation of a legal residential dwelling unit or building, including, but not limited to:

(1) Heating System, including boilers and furnaces, and associated delivery systems and facilities providing fuel sources or air handling necessary to utilize such system;

(2) Plumbing System, including drinking, bathing, and sanitary fixtures and pipes, and all facilities necessary to utilize such system;

(3) Structural System, including foundational and structural support systems necessary to stabilize and support the envelope of the building and structures supporting the prescribed emergency exiting path within the building;

(4) Electrical System, including panels, outlets, wiring, service lines, and all facilities necessary to utilize such system; or

(5) Fire Safety System, including fire escapes, fire exit stairs, and emergency doors.

1101-62.2 *Limitation on Repair of Essential Building Facilities*. Whenever the director determines that an emergency condition exists, the director may act according to the provisions of this section unless the director estimates the cost of proceeding under this section to exceed forty percent of the assessed improvement value of the subject building as determined from the records of the Hamilton County Auditor. If the director may not proceed under this section because the cost of remediation exceeds this threshold, the director may utilize any other remedy available under law as the director deems appropriate to ameliorate the emergency condition.

1101-62.3 *Emergency Repair of Essential Building Facilities*. If the director determines that an emergency condition exists and elects to proceed under this section, the director shall issue an order pursuant to Section 1101-61 specifying the condition requiring correction, the timeframe in which remedial action must be taken, and the consequences of failure to comply with the order. The director shall issue the order promptly to the property owner or person in control of the property responsible for the maintenance, operation, and repair of such structures, equipment, or systems. After such order has been served pursuant to Section 1101-61, the director may enter upon the premises pursuant to Section 1101-45 and repair or cause to be repaired such condition, in a workmanlike manner by a licensed and registered contractor. All costs of proceeding under this section shall be recoverable as total cost under Section 1101-64.

1101-62.4 *Fund for Repair of Essential Building Facilities*: Total cost, as defined in Section 1101-64, recovered pursuant to Sections 1101-62.3 and 1101-64 shall be paid to the city treasurer and credited to a fund established for the purpose of making resources available for the continued enforcement of this section. The director may use such resources as are in the fund, in addition to other resources available, to aid in the enforcement of this section. The director shall make all reasonable attempts to recover the total cost incurred in proceeding under this section for crediting to the fund.
(Ordained by Emer. Ord. No. 413-2023, § 1, eff. Dec. 6, 2023)

Sec. 1101-63. Dangerous and Unsafe Premises.

1101-63.1 *General:* All buildings, structures, and premises shall be deemed a public nuisance constituting a dangerous and unsafe hazard to the safety, health, or general welfare of the occupants or the public if they have defects as set forth herein:

(1) Those whose walls, floors, foundations, or other members are so out of plumb, level, or original position, or are so deteriorated or overloaded, as to be unlikely to perform their intended structural function, or are in such condition or of such size as to cause stresses in any structural members likely to result in failure or collapse; or

(2) Those which are so dilapidated, decayed, or unsafe, or which so substantially fail to provide the basic elements of shelter or safety, that they are unfit for human habitation or dangerous to life or property; or

(3) Those which, in the opinion of the director and a responsible officer of the fire division, constitute a serious fire hazard because of their use, construction, unprotected exposure, or lack of maintenance; or

(4) Those which are a hazard to the safety, health, or general welfare of the occupants or the public; or

(5) Those which the director has ordered vacated or kept vacant and which in the time provided by the order have not been brought into compliance with the CBC or into compliance with the terms and conditions of a current vacant building maintenance license.

Any such dangerous or unsafe building, structure, or premises is herewith declared to be a public nuisance.

Whenever a building, structure, or premises is found to be dangerous or unsafe, a written notice shall be sent to the owner or person in control, or agent in charge, stating wherein such building, structure, or premises is dangerous or unsafe, and ordering that the same be brought into compliance with the provisions of the CBC or be taken down and removed within a specified time, not to exceed 30 days from the date of the notice, except as provided in § 1101-63.2 or § 1101-77 of the CBC. If a building, structure, or premises is designated as a Historic Landmark or is a building, structure, or premises located within a designated Historic District, the written notice will specify that all alterations to the property must be made in compliance with § 1101-15.6 and Chapter 1435 of the Cincinnati Municipal Code, that all material alterations require a certificate of appropriateness, and that demolition is not permitted unless such demolition complies with Chapter 1435 of the Cincinnati Municipal Code. If the building, structure, or premises, in the opinion of the director, is beyond repair and is not designated as a Historic Landmark or located within a designated Historic District, the notice shall

direct that it be taken down and removed. If the building, structure, or premises is designated as a Historic Landmark or is a building, structure, or premises located within a designated Historic District, and the director finds that it is beyond repair, the director shall schedule an administrative proceeding pursuant to § 1101-57.2. All such notices shall require the owner, person in control, or agent served to immediately advise the director in writing of his acceptance or rejection of terms of the notice, to wit: whether he will promptly take down and remove the building, structure, or premises, or will promptly cause the dangerous or unsafe condition to be remedied in accordance with the provisions of this Code; or if in disagreement with the notice and not willing to comply and where he can show substantial reasons for his disagreement, will under such circumstances file an appeal to the applicable board of appeals within 30 days of the date of the notice.

1101-63.2 *Failure to take down and remove:* If, after such service of notice, the owner, person in control, or agent refuses to comply with the order of the director, or if, at the end of the period allowed by the notice, the direction of the director to comply with the provisions of the CBC or to take down and remove has not been carried out by the owner, the director shall be authorized at any time thereafter as such person considers necessary for the public safety or welfare, to proceed in accordance with the provisions of §§ 1101-57, 1101-63.4, or 1101-75 CBC.

1101-63.3 *Notice to the public of unsafe condition:* In every case the director shall cause a written or printed notice to be placed on the dangerous or unsafe building or premises as a warning to the public. It shall be unlawful to remove any notice placed on such building or premises under the provisions of this Code until the use for the same has been corrected.

1101-63.4 *Emergency Abatement of Dangerous and Unsafe Conditions:* The director and city manager are authorized to abate dangerous and unsafe conditions that pose an immediate danger to the public health and safety by taking one or more of the following actions:

(1) removing, repairing, and securing all buildings, structures, or premises determined to be insecure, unsafe, structurally defective, abandoned, deserted, or open and vacant;

(2) making emergency corrections of hazardous conditions;

(3) abating any nuisance;

(4) performing any additional abatement activity, repairs, remediation, or corrections authorized by R.C. §§ 715.26 and 715.261.

If a building, structure, or premises is designated as a Historic Landmark or is a building, structure, or premises located within a designated Historic District, emergency repairs and compliance with Chapter 1435 of the Zoning Code shall be pursued in lieu of demolition whenever reasonable.

The director is authorized to collect the total cost incurred in conducting abatement activity under this Section in the manner provided by R.C. §§ 715.26 and 715.261 including, but not limited to, by placing a lien on the lands on which the abatement activity occurred.

1101-63.5 *Correction of hazardous earth conditions:* Whenever the director determines that any existing excavation, fill, slope or other earth condition has become a hazard, or endangers the public health and safety or any public or private property or adversely affects the safety, usability or stability of any public way or drainage channel or has caused detrimental erosion or sedimentation, the director shall order the owner or

person in control of the property on which such condition exists to correct the condition.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 418-2010, § 16, eff. Nov. 24, 2010; Emer. Ord. No. 045-2011, §§ 3, 4, eff. Feb. 16, 2011; Emer. Ord. No. 238-2015, § 27, eff. July 1, 2015; Emer. Ord. No. 329-2016, § 2, eff. Oct. 19, 2016)

Sec. 1101-64. Recovering Total Cost of Correcting Hazardous Building Conditions, Abating Emergency Conditions Related to Essential Building Facilities, and/or Abating Nuisances.

(1) The director may collect the total cost of abatement activities from the property owner or person in control of a property when the property has benefitted from the abatement activity using one or more of the following methods;

(a) The director may invoice the property owner or person in control of the benefitted property;

(b) The director may place a lien on the benefitted property in accordance with the process set forth in Ohio Revised Code Sections 715.26, 715.261, and 731.54 or any successor sections;

(c) The city solicitor may commence a civil action against the property owner or person in control of the benefitted property at the time the costs were incurred;

(d) The director may file a lien against and pursue a foreclosure of the benefitted property in accordance with the process set forth in Ohio Revised Code Sections 323.65 to 323.79, and 715.261(B)(3) or any successor sections; or

(e) The director may invoice the property owner or person in control of the benefitted property pursuant to the quarterly fee schedule established under Section 1101-85 of this chapter.

(2) For the purposes of this section, the following words and phrases shall have the following meaning:

(a) "Abatement activity" means each instance of any of the following:

(i) Removing, repairing, or securing insecure, unsafe, structurally defective, abandoned, deserted, or open and vacant buildings or other structures;

(ii) Making emergency corrections of hazardous conditions;

(iii) Abatement of any nuisance condition by the director as authorized by the Ohio Revised Code;

(iv) All code enforcement activity undertaken to abate a nuisance condition that exists for more than sixty days following the director's issuance of orders describing the nuisance condition including, but not limited to, inspections and attempts to achieve code compliance; or

(v) Correction, abatement, or remediation of emergency conditions related to essential building facilities within residential buildings.

(b) "Emergency condition" has the same meaning as in Section 1162.1

(c) "Essential building facilities" has the same meaning as in Section 1162.1.

(d) "Nuisance condition" means any violation of a building code, housing code, zoning code, quality of life code, and any other codes under the jurisdiction of the director.

(e) "Total cost" means the sum of the following costs incurred or borne by the city in pursuit of abatement activity authorized under this chapter: any costs related to the use of employees, materials, or equipment of the city; any accrued quarterly code enforcement monitoring fees resulting from abatement activities associated with Section 1101-64(2)(a)(iv); any costs related to contracts for labor, materials, or equipment; and any costs related to issuance or service of notice or publication required under this chapter. "Total cost" includes, but is not limited to, any attorney's fees, costs of inspection, administrative and support staff fees, property maintenance costs, court costs, title search fees, process server fees, and skip tracing expenses; any costs of police, fire, and medical services provided to abate the nuisance conditions; any costs of collection or prosecution, including discovery and deposition expenses, related to the demolition, repair, alteration, securing or boarding of a building or structure or for abating any other nuisance condition; and any costs of providing emergency temporary housing authorized by the Cincinnati Municipal Code related to abatement activity.

(3) The director may suspend the obligation to pay the total cost of abatement activities for a period of up to one year provided that the property owner or person in control of the benefitted property demonstrates to the satisfaction of the director that the person requesting the suspension:

(a) has a bona fide and viable plan to correct the conditions that gave rise to the abatement activity;

(b) has the financial capacity to implement the plan or is making a bona fide effort to obtain the financial resources to implement the plan;

(c) will suffer an undue burden if required to pay the costs of abatement activity prior to implementation of the plan; and

(d) maintains the benefitted property in a condition that does not pose an unreasonable hazard to emergency personnel and the health and safety of the public, including trespassers.

(4) All suspensions issued under subsection (3) of this section are subject to the following conditions:

(a) The benefitted property must be maintained in a manner that does not pose an unreasonable hazard to emergency personnel and the health and safety of residents or the public, including trespassers;

(b) Any condition that arises or is discovered during the suspension period that poses an unreasonable hazard to emergency personnel and the health and safety of residents or the public, including trespassers, must be repaired promptly, as required by the director;

(c) The condition or conditions giving rise to the abatement activity must be corrected prior to the expiration of the suspension period; and

(d) The director shall be permitted to inspect the interior and exterior of the benefitted property based on an inspection schedule established by the director as necessary to ensure ongoing compliance with applicable laws and conditions.

(5) The director may impose additional conditions on a suspension issued under subsection (3) to the extent necessary to ensure that the benefitted property is maintained in a manner that does not pose an unreasonable hazard to emergency personnel and the health and safety of the public, including trespassers, during the suspension period.

(6) The director may approve the assignment of an existing suspension to a subsequent purchaser or person in control of the benefitted property upon determining that they meet the same standards pursuant to which the suspension was granted. Upon approval, the purchaser or person in control of the benefitted property shall have the same rights and responsibilities as the initial petitioner to whom the suspension was granted.

(7) The director may terminate a suspension at any time and levy all suspended costs upon determining that the petitioner knowingly violated applicable law or a condition imposed on the suspension. Costs reinstated under this section shall be a debt due and payable to the city within 30 days of the decision and shall be collectible as a total cost as provided for in this section.

(8) The director shall certify that any costs suspended during the period are permanently waived upon correction of the conditions that gave rise to the abatement activity.

(9) The director is authorized to promulgate rules and regulations to carry out the purposes of this section.
(Ordained by Emer. Ord. No. 163-2018, § 8, eff. July 1, 2018; a. Emer. Ord. No. 413-2023, § 2, eff. Dec. 6, 2023)

Sec. 1101-65. Vacations and Barricades.

1101-65.1 *General:* The director of buildings and inspections shall be authorized to order any building or portion of any building vacated, or if it is vacant to remain vacated for one or more of the reasons set out below.

1101-65.1.1 *Code violations:* When a building is occupied, or any work, operation or construction is performed therein or thereon in violation of any of the provisions of this Code.

1101-65.1.2 *Unsafe or unsanitary building:* When in the opinion of the director of buildings and inspections the building is unsafe or unsanitary.

1101-65.1.3 *Noncompliance:* When the owner, agent, person in control, or tenant fails or refuses to comply with any lawful order issued by the director of buildings and inspections.

1101-65.2 *Barricades:* If a vacant building is open to access by trespassers, the directors of buildings and inspections may order any openings barricaded to prevent trespassers from entering such building. The barricading of such doors, windows and other openings shall be maintained as long as the building is vacant or until the windows, doors and other openings are repaired in an approved manner.

1101-65.3 *Failure to secure and barricade:* If, after service of an order to barricade a building, the owner, person in control, or agent fails to comply with that order of the director of buildings and inspections within the time allowed by that order, or fails to maintain the building secure from entry, the director may at any time thereafter proceed under § 1101-75 to secure and barricade the building and restore the premises to a safe condition.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 418-2010, § 17, eff. Nov. 24, 2010)

Sec. 1101-67. Vacation Notices.

1101-67.1 *General:* Every order of vacation shall be in writing and shall be served upon the owner, agent, person in control, or tenant, stating the reason for the order or vacation and directing that the building or portion of the building, if it is occupied, be vacated by a specified time. The order to vacate shall provide instructions for obtaining a vacated building maintenance license ("VBML") or suspension of VBML requirements and, if the building is an historic structure or a structure within an Historic Landmark or District, the order shall indicate such and provide instructions for obtaining a certificate of appropriateness. When the director of buildings and inspections shall deem the same necessary, a notice of vacation shall be posted in a conspicuous place on the building. After the posting of such notice or order of vacation, it shall be unlawful to occupy or permit the occupancy of the premises or any portion thereof until the provisions of law and the orders issued by the director of buildings and inspections are complied with.

1101-67.2 *Rescinding vacation order:* When it shall appear to the director of buildings and inspections that the reasons for the order of vacation have ceased to exist and that the building or portion of the building and the occupancy thereof are in substantial compliance with law and the orders of the director of buildings and inspections, he shall rescind the vacation order in writing.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 418-2010, § 18, eff. Nov. 24, 2010; Emer. Ord. No. 045-2011, § 5, eff. Feb. 16, 2011; Emer. Ord. No. 238-2015, § 28, eff. July 1, 2015)

Sec. 1101-69. Vacated Dwelling Units Not to be Rented.

1101-69.1 *General:* When the owner, person in control, or agent of a dwelling unit, fails to comply with an order of vacation issued by the director of buildings and inspections and allows the dwelling unit to be occupied by persons other than himself, such person shall be in violation of § 1101-65 CBC unless he can show by preponderance of the evidence that the property is being occupied without his knowledge or consent. Proper service of an eviction notice or the good faith maintenance of forcible entry and detainer proceedings against occupants shall be prima facie evidence of lack of knowledge and consent. The penalty for violation shall be as provided in § 1101-51.2 CBC.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 418-2010, § 19, eff. Nov. 24, 2010)

Sec. 1101-71. Failure to Comply With Orders.

1101-71.1 *General:* If, after service of any lawful order from the director of buildings and inspections, the owner, person in control, agent, contractor or other person responsible for the work or violation refuses to comply with such order or does not comply within the period stated in the order of notice, such failure to comply shall constitute a misdemeanor of the first degree punishable as provided for in this Code.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 418-2010, § 20, eff. Nov. 24, 2010)

Sec. 1101-73. Removal of Unlawful Signs.

1101-73.1 *General:* Should any sign be installed, erected or maintained in violation of any of the provisions of this Code, the director of buildings and inspections shall notify forthwith the owner, person in control, or occupant by certified mail, sent to the last known address of the person to be notified or by personal service, to remove such sign within 72 hours from the date of the notice.

In the event of noncompliance with said notice, the director of buildings and inspections shall cause the sign to be removed. (Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 418-2010, § 21, eff. Nov. 24, 2010)

Sec. 1101-75. Barricading of Buildings by the Director of Buildings and Inspections.

1101-75.1 *Buildings subject to barricading:* The director of buildings and inspections may secure and barricade any building whenever:

(1) The building has been deemed dangerous and unsafe pursuant to § 1101-63.1 CBC, and the owner or person in control has failed to bring the building into compliance with the CBC within the time provided, but the building has not been determined as threatening to collapse or posing other immediate peril, pursuant to § 1101-63.4 CBC; or

(2) The owner or person in control has failed to comply with an order of the director to barricade the building issued pursuant to § 1101-65.2 CBC.

1101-75.2 *Administrative procedures:* Whenever a building is subject to being barricaded pursuant to this Section the director of buildings and inspections shall:

(1) Serve the owner, as determined from the official land records of Hamilton County, or person in control by personal delivery or by certified mail with a notice of intent to barricade. The director shall also post a copy of the notice of intent to barricade on the building.

(2) The notice of intent to barricade shall set forth the street address of the building, the date of intended entry on the premises in order to secure and barricade the building, the right of an owner or person in control to a public hearing before the director on the necessity of the building being barricaded by the director prior to the building being so barricaded, and the time limit for requesting a public hearing, which shall be no less than three days after the date of the posting of the building with the notice of intent to barricade and before the date of intended entry.

(3) If the owner or person in control requests in writing a public hearing within the time set forth in the notice of intent, the director shall refrain from barricading the building until after the director has held a public hearing.

1101-75.3 *Hearings:* Whenever an owner or person in control requests a public hearing pursuant to § 1101-75.2(3) CBC, the director of buildings and inspections shall fix the time for the hearing, which shall be no later than three days after receipt of the request, and send notice of the hearing to the owner or person in control. The director of buildings and inspections shall conduct the hearing and receive testimony and other evidence as to whether good cause exists under the standards set forth in §§ 1101-63.1 or 1101-65.2 CBC for the director to barricade the building. The director shall announce the decision made at the conclusion of the hearing.

1101-75.4 *Barricading:* If no request for a hearing was timely made or if following a hearing the director of buildings and inspections finds that good cause exists for barricading the building, the director shall enter on the premises to secure and barricade the building.

1101-75.5 *Liability of Owners or Persons in Control:* Any owner or person in control shall be jointly and severally liable for the costs incurred by the director of buildings and inspections pursuant to § 1101-75.4 CBC and for service of notice.

1101-75.6 *Recovery of costs:* The city solicitor, at the request of the director of buildings and inspections, shall recover all costs in-

curred by the director pursuant to § 1101-75.4 CBC from the persons liable for such costs under § 1101-75.5 CBC.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 6-2000, eff. Feb. 4, 2000; a. Ord. No. 418-2010, § 22, eff. Nov. 24, 2010)

Sec. 1101-77. Obligations of Owners and Persons in Control of Vacated Buildings.

1101-77.1 *General:*

a. The owner or person in control of a building ordered in whole or in part vacated or kept vacant by the director of buildings and inspections shall apply for a vacated building maintenance license, cause the premises to conform to the minimum standards of safety and structural integrity set forth in § 1101-79.4, and obtain a vacated building maintenance license.

b. The owner or person in control of a building ordered in whole or in part vacated or kept vacant by the director of buildings and inspections shall acquire or otherwise maintain general liability insurance in an amount of not less than $300,000 for buildings designed primarily for use as residential units, including buildings containing no more than four dwelling units; and not less than $1,000,000 for any other building, including, but not limited to, buildings designed for manufacturing, industrial, storage, or commercial uses, including buildings containing five or more dwelling units. Any insurance policy acquired after an order to vacate or keep the building vacant shall provide for written notice to the director of buildings and inspections within 30 days of any lapse, cancellation, or change in coverage. Upon request, the owner or person in control shall provide evidence of the insurance to the director of buildings and inspections. The owner or person in control of a building ordered in whole or in part vacated or kept vacant by the director of buildings and inspections shall not be required to obtain or otherwise maintain fire/casualty insurance.

1101-77.2 *Time For Compliance:* An owner or person in control subject to § 1101-77.1 CBC shall apply for a vacated building maintenance license and obtain liability insurance in the amount required by § 1101-77.1 within 30 days from the date of issuance of the initial order to vacate the building or portion thereof. After applying for a license and obtaining insurance, the owner shall cause the premises to conform to the minimum standards of safety and structural integrity set forth in § 1101-79.4 within 60 days of the application date. The director may extend the time in writing, upon the owner or person in control showing good cause for extension. Any such extensions of time shall not exceed a total of 180 days, following the expiration of the 60-day period following the application date.

1101-77.3 *Non-Compliance*: If the owner or person in control of a building ordered vacated or kept vacant by the director of buildings and inspections fails to comply with § 1101-77.1 CBC within the time allotted, or having applied for a vacated building maintenance license fails to cause the premises to conform to the minimum standards of safety and structural integrity set forth in § 1101-79.4 within 60 days of the application date, or fails to renew the license prior to the annual renewal date or due date, the director may charge the owner or person in control with failure to comply with orders pursuant to § 1101-71 CBC and take other action as authorized by the CBC. The annual renewal date shall be the anniversary of the date notice of violation is given pursuant to Sec-

tion 1101-61 CBC wherein the building or portion thereof was initially ordered to be vacated or kept vacant.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 311-1997, eff. Sept. 4, 1997; a. Ord. No. 59-2006, eff. April 14, 2006; a. Ord. No. 418-2010, § 23, eff. Nov. 24, 2010; Emer. Ord. No. 045-2011, § 6, eff. Feb. 16, 2011)

Sec. 1101-79. Vacated Building Maintenance Licenses.

1101-79.1 *Application:* Application for a vacated building maintenance license shall be made on a form provided by the director of buildings and inspections and verified by the owner or person in control. The application shall disclose all measures to be taken to ensure that the building will be kept weathertight and secure from trespassers, safe for entry by police officers and firefighters in times of emergency, and, together with its premises, free from nuisance and in good order. At the time of application, the owner may arrange for a preliminary inspection of the premises by the director in the presence of the owner, or person in control, or an agent of the owner having responsibility for maintenance of the premises. Upon request by the owner or person in control, the director shall, after completing the preliminary inspection, issue a report in writing to the owner or person in control specifying the reasons why the premises does not conform with the vacated building maintenance standards set forth in § 1101-79.7. Upon conclusion of the time for compliance and any extension granted pursuant to § 1101-72.1, the director shall conduct a final inspection to determine if the premises conforms with the vacated building maintenance standards set forth in § 1101-79.4. If the owner or person in control fails or refuses to consent to and arrange for an inspection, the director must first obtain a search warrant from a court of competent jurisdiction to authorize inspection of the premises for the purpose of determining the structural integrity of the building.

1101-79.2 *Inspection:* The director of buildings and inspections shall inspect the premises at the end of the compliance period and any extension granted pursuant to § 1101-72.1, for the purpose of determining the structural integrity of the building, and that it will be safe for entry by fire fighters and police officers in time of emergency, and that the building and its contents do not present a hazard to the public during the time that the building remains vacant.

The director of buildings and inspections shall ensure that:

(1) The building is adequately protected from intrusion by trespassers and from deterioration by the weather in accordance with the vacated building maintenance standards set forth in § 1101-79.4; and

(2) Allowing the building to remain will not be detrimental to the public health, safety and welfare, will not unreasonably interfere with the reasonable and lawful use and enjoyment of other premises within the neighborhood, and will not pose any extraordinary hazard to police officers or fire fighters entering the premises in times of emergency.

1101-79.3 *Issuance:* The director of buildings and inspections shall issue a vacated building maintenance license on being satisfied after having inspected the building that the building is in compliance with the vacated building maintenance standards set forth in §§ 1101-79.4 and is adequately protected from intrusion by trespassers and from deterioration by the weather.

1101-79.4 *Vacated Building Maintenance Standards:* A building shall be deemed ade-

quately protected from intrusion by trespassers and from deterioration by the weather if:

(1) Building openings: Doors, windows, areaways and other openings are weathertight and secured against entry by birds, vermin and trespassers. Missing or broken doors, windows and opening coverings are covered with at least one-half inch of CDX plywood, weather protected, tightly fitted to the opening and secured by screws or bolts.

(2) Roofs: The roof and flashings are sound, tight, will not admit moisture, and drained to prevent dampness or deterioration in the walls or interior.

(3) Drainage: The building gutters and downspouts are watertight and entire storm drainage system is adequately sized, installed in an approved manner, functional and discharged in an approved manner.

(4) Building Structure: The building is maintained in good repair, structurally sound, free from debris, rubbish and garbage, and sanitary, and interior floors, walking surfaces and stairs are structurally sound, and interior walls and ceilings are free of loose or hanging plaster and finishes, so as not to pose a threat to the public health or safety.

(5) Structural Members: The structural members are free of deterioration and capable of safely bearing imposed dead and live loads.

(6) Foundation Walls: The foundation walls are plumb, free from open cracks and breaks, and ratproof.

(7) Exterior Walls: The exterior walls are free of holes, breaks, and loose or rotting materials. Exposed metal and wood surfaces are protected from the elements and against decay or rust by periodic application of weather coating materials, such as paint or similar surface treatment.

(8) Decorative Features: The cornices, belt courses, corbels, terra cotta trim, wall facings and similar decorative features are safe, anchored, and in good repair. Exposed metal and wood surfaces are protected from the elements and against decay or rust by periodic application of weather coating materials, such as paint or similar surface treatment.

(9) Structure Extensions: All balconies, porches, canopies, marquees, signs, metal awnings, cornices, stairways, fire escapes, standpipes, exhaust ducts and similar features are in good repair, anchored, safe and sound. Exposed metal and wood surfaces are protected from the elements and against decay or rust by periodic application of weather coating materials, such as paint or similar surface treatment.

(10) Chimneys and Towers: Chimneys, cooling towers, smokestacks, and similar appurtenances are structurally safe. Exposed metal and wood surfaces are protected from the elements and against decay or rust by periodic application of weather coating materials, such as paint or similar surface treatment.

(11) Sidewalk Openings: Yardwalks, steps, and openings in sidewalks are safe for pedestrian travel.

(12) Accessory and Appurtenant Structures: Accessory and appurtenant structures such as garages, sheds, and fences are free from safety, health, and fire hazards.

(13) Premises: The premises on which a structure is located is clean, safe and sanitary, maintained free of weeds, junk cars, and litter, and does not pose a threat to the public health or safety.

1101-79.5 *Procedure for Renewal:* At the time of application for a renewal of a vacated building maintenance license the owner or person in control may arrange with the director of buildings and inspections for the inspection of the building, its premises and interior. If the owner or person in control fails or refuses to consent to and arrange for an inspection, the director must first obtain a search warrant from a court of competent jurisdiction to authorize inspection of the premises for the purpose of determining the structural integrity of the building, that it will be safe for entry by fire fighters and police officers in time of emergency, and that the building and its contents do not present a hazard to the public during the time that the building remains vacant. The director of buildings and inspections shall renew a vacated building maintenance license on being satisfied after having inspected the building that the building is in compliance with the vacated building maintenance standards set forth in § 1101-79.4, adequately protected from intrusion by trespassers and from deterioration by the weather, will not be detrimental to the public health, safety and welfare, will not unreasonably interfere with the reasonable and lawful use and enjoyment of other premises within the neighborhood, and will not pose any extraordinary hazard to police officers or fire fighters entering the premises in times of emergency; otherwise the director shall deny renewal. The license renewal shall be for one year, which renewal shall run from the anniversary of the date that the building or portion thereof was initially vacated by the director of buildings and inspections.

1101-79.6 *Appeals:* A person affected by an order or decision of the director of buildings and inspections made pursuant to Section 1101-77 or 1101-79 may submit a written petition for reconsideration to the director pursuant to Section 1101-80, "Director's Actions."

(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 355-1996, eff. Nov. 6, 1996; a. Ord. No. 311-1997, eff. Sept. 4, 1997; a. Ord. No. 59-2006, eff. April 14, 2006; a. Ord. No. 418-2010, § 24, eff. Nov. 24, 2010; Emer. Ord. No. 157-2012, § 1, eff. May 9, 2012; Emer. Ord. No. 238-2015, § 29, eff. July 1, 2015; a. Ord. No. 345-2017, § 1, eff. Jan. 20, 2018)

Sec. 1101-80. Director's Actions.

1101-80.1 *Written Determination by the Director.*

(1) Any person who has a bona fide controversy with the interpretation, application, or enforcement of a law under the jurisdiction of the director may petition the director for a written decision, order, or adjudication as follows:

(a) The petition shall be on forms prescribed by the director.

(b) The petition shall be accompanied by the applicable fee.

(c) The petition may not relate to a decision, order, or adjudication that is the subject of a past or pending administrative appeal or legal action.

(d) The director shall dispose of the petition based upon the petitioner's written submissions, applicable laws, publicly available materials, and an inspection of the subject property if necessary; provided, however, the petitioner may be heard in person

prior to final disposition of the petition by making the request in writing upon submission of the petition.

(e) If the director requests to inspect the subject property, the petitioner may refuse the request but the refusal may serve as a basis for the denial of the petition.

(f) The director shall issue a final written determination on the petition within 30 days from the date of its submission, which determination shall constitute a final, appealable adjudication of the controversy described in the petition.

1101-80.2 *Suspension of Vacated Building Maintenance License Fees and Requirements.* Any person subject to the provisions of Section 1101-77, "Obligations of Owners and Persons in Control of Vacated Buildings," may petition the director for an order suspending provisions of the CBC as follows:

(1) The director may suspend the obligation to pay vacant building maintenance license application fees under Section 1101-129, "Fees for Vacated Building Maintenance Licenses," for a period of one year provided the petitioner demonstrates to the satisfaction of the director that:

(a) The petitioner has a bona fide and viable plan to make the subject property safe for occupancy;

(b) The petitioner has the financial capacity to implement the plan;

(c) Payment of the fees will place an undue burden on the petitioner's ability to implement the plan; and

(d) The subject property does not pose an unreasonable hazard to emergency personnel and the health and safety of the public, including trespassers.

(2) The director may suspend the obligation to pay vacant building maintenance license application fees under Section 1101-129, "Fees for Vacated Building Maintenance Licenses," for a period of two years provided the petitioner demonstrates to the satisfaction of the director that:

(a) The petitioner meets all requirements of Section 1101-80.2(1);

(b) The petitioner has made one or more vacated or condemned structures within the City of Cincinnati safe for occupancy within the previous five year period; and

(c) The subject property is either (i) a Historic Landmark, or a building, structure, or premises located within a designated Historic District; or (ii) development of the subject property is infeasible within the following two years.

(3) The director may suspend one or more of the vacated building maintenance standards set forth under Section 1101-79.4, "Vacated Building Maintenance Standards," for a period of one year provided the petitioner demonstrates to the satisfaction of the director that:

(a) The literal and strict enforcement of the standard will cause unnecessary hardship; and

(b) Granting relief from enforcement of the standard will not violate the spirit and intent of the standard or create an unreasonable hazard to emergency personnel and the health and safety of the public, including trespassers.

(4) Upon receiving a request no earlier than 60 days prior to its expiration, the director may extend a suspension period issued under this section for a total duration not to exceed five years provided the petitioner demonstrates to the satisfaction of the director that:

(a) The petitioner has complied with applicable laws and conditions imposed by the director during the suspension period;

(b) The petitioner continues to meet the standards on which the suspension was ordered;

(c) For suspensions granted pursuant to subsections (1) and (2), the petitioner has made diligent efforts to implement its plan for making the subject property safe for occupancy but has been unable to do so for good cause; and

(d) The petitioner has demonstrated that the extension period requested is no longer than reasonably necessary to correct or repair the offending condition(s) affecting the subject property.

(5) Any petition filed pursuant to this section shall be made in the manner described in Section 1101-80.1.

1101-80.3 *VBML Suspension Terms and Conditions.*

(1) All suspensions issued under Section 1101-80.2 are subject to the following conditions:

(a) The petitioner shall maintain the subject property in a manner that does not pose an unreasonable hazard to emergency personnel and the health and safety of the public, including trespassers;

(b) The petitioner shall timely repair any condition that arises or is discovered during the suspension period that poses an unreasonable hazard to emergency personnel and the health and safety of the public, including trespassers;

(c) The petitioner shall make the subject property safe for occupancy prior to the expiration of the suspension period; and

(d) The petitioner shall permit the director to inspect the interior and exterior of the subject property based on an inspection schedule established by the director as necessary to ensure ongoing compliance with applicable laws and conditions.

(2) The director may impose additional conditions on a suspension issued under Section 1101-80.2 to the extent necessary to ensure the subject property is maintained in a manner that does not pose an unreasonable hazard to emergency personnel and the health and safety of the public, including trespassers, during the suspension period.

(3) The director may approve the assignment of an existing suspension to a subsequent purchaser or personal in control of the subject property upon determining that they meet the same standards on which the suspension was ordered. Upon approval, the purchaser or person in control shall have the same rights and responsibilities as the initial petitioner to whom the suspension was granted.

(4) The director may terminate a suspension at any time and levy all suspended fees upon determining that the petitioner knowingly violated applicable law or a condition imposed on the suspension. Fees reinstated under this section shall be a debt due and payable to the City within 30 days of the decision.

(5) The director shall certify to the petitioner that any fees suspended during the period are permanently waived upon determining the subject property has been made safe for occupancy.

1101-80.4 *Appeals.* Any person adversely affected by a final, appealable decision, order, or adjudication made pursuant to this Section may appeal the decision, order, or adjudication to the administrative body having jurisdiction over the subject matter of the decision, order, or adjudication.
(Ordained by Emer. Ord. No. 238-2015, § 30, eff. July 1, 2015; a. Ord. No. 345-2017, § 1, eff. Jan. 20, 2018)

Sec. 1101-81. Board of Building Appeals.

1101-81.1 *Jurisdiction.*

(1) Persons adversely affected by a final, appealable decision, order, or adjudication issued under the authority of the director of buildings and inspections pursuant to the enforcement of Ohio Revised Code Chapters 3781 and 3791, the rules made under them, and those provisions of the Cincinnati Building Code that supplement those chapters and the rules made under them, may appeal to the Board of Building Appeals.

(2) Whenever an appeal is properly filed with the Board of Building Appeals that presents questions of law or fact within the jurisdiction of the Board of Housing Appeals, the Board of Building Appeals may hear and determine those questions of law and fact and dispose of them in the same manner and to the same extent as the Board of Housing Appeals is authorized to do so. In doing so, the Board of Building Appeals shall divest of the Board of Housing Appeals of jurisdiction, and it may dispose of those questions of law or fact at issue in the appeal.

(3) An appeal to the Board of Building Appeals is perfected upon completion of the following:

(a) Filing a notice of appeal in the form and manner prescribed by the board within 30 days from the date of the mailing of the final, appealable decision, order, or adjudication that is the subject of the appeal; and

(b) Payment of the applicable fee.

1101-81.2 *Meetings.*

(1) All board meetings shall be open to the public.

(2) The board shall publish a meeting agenda in the City Bulletin at least ten days before a meeting.

(3) The board shall mail a hearing notice to an appellant by regular mail no

less than ten days before the meeting date at which the board shall hear an appellant's appeal.

(4) The board shall cause notice to be provided to any local organization composed of or representing persons with disabilities, as defined in Ohio Revised Code Section 3781.111 of any appeal related to Ohio Revised Code Section 3781.111 or rules adopted thereunder.

(5) The following persons shall be permitted to appear and be heard in person to present their positions, arguments, or contentions, to offer and examine witnesses and present evidence:

(a) The appellant, or the appellant's attorney or agent.

(b) Government officials.

(c) Representatives of the community organization recognized by the Council as representative of the neighborhood in which the subject property is located.

(d) Any person who alleges that the subject matter of the appeal presents a unique impact on their rights, duties, privileges, benefits, or legal relationships.

(6) The board may adopt additional rules of procedure from time to time that the board deems necessary to carry out the performance of its duties.

1101-81.3 *Decisions.*

(1) All decisions, orders, or adjudications reviewed by the board shall be presumed to be valid, and the burden shall be upon the appellant to prove otherwise.

(2) The board may modify or reverse a decision, order, or adjudication if the board finds that the appellant demonstrates by a preponderance of the substantial, reliable, and probative evidence one or more of the following:

(a) The decision, order, or adjudication is contrary to existing laws, rules or regulations;

(b) The decision, order, or adjudication is contrary to a fair interpretation or application of existing laws, rules or regulations; or

(c) That a variance from the provisions of the existing laws, rules or regulations, as applied to the subject property, will not be contrary to the public interest and literal enforcement of the provisions will result in unnecessary hardship.

1101-81.4 *Appeals.* The board's final written decision shall constitute a final appealable order that may be appealed in the manner provided by R.C. Chapter 2506.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 355-1996, eff. Nov. 6, 1996; a. Ord. No. 59-2002, eff. March 28, 2002; Emer. Ord. No. 035-2010, §§ 2, 3, eff. Feb. 10, 2010; a. Ord. No. 091-2014, § 5, eff. June 7, 2014; Emer. Ord. 114-2014, § 3, eff. June 4, 2014; Emer. Ord. No. 238-2015, § 31, eff. July 1, 2015; a. Ord. No. 345-2017, § 1, eff. Jan. 20, 2018)

Sec. 1101-83. Board of Housing Appeals.

1101-83.1 *Jurisdiction.*

(1) The following persons may appeal to the Board of Housing Appeals:

(a) Persons adversely affected by a final, appealable decision, order, or adjudication issued by the director pursuant to Sections 1101-80.2 or 1101-80.3.

(b) Persons adversely affected by a final, appealable decision, order, or adjudication issued by the Community Reinvestment Area Housing Officer made pursuant to Ohio Revised Code Sections 3735.65 to 3735.69 and city ordinances adopted under the authority of those sections.

(c) Persons adversely affected by a final, appealable decision, order, or adjudication under the authority of the director of buildings and inspections pursuant to the enforcement of the property maintenance provisions of the Cincinnati Municipal Code, unless the subject matter of the appeal falls within the jurisdiction of another board of the City.

(2) An appeal to the Board of Housing Appeals is perfected upon completion of the following:

(a) Filing a notice of appeal in the form and manner prescribed by the board within 30 days from the date of the mailing of the final, appealable decision, order, or adjudication that is the subject of the appeal; and

(b) Payment of the applicable fee.

1101-83.2 *Meetings.*

(1) All board meetings shall be open to the public.

(2) The board shall publish in the City Bulletin a meeting agenda at least ten days before a meeting.

(3) The board shall mail a hearing notice to an appellant by regular mail no less than ten days before the meeting date at which the board shall hear an appellant's appeal.

(4) The following persons shall be permitted to appear and be heard in person to present their positions, arguments, or contentions, to offer and examine witnesses and present evidence:

(a) The appellant, or the appellant's attorney or agent.

(b) Government officials.

(c) Representatives of the community organization recognized by the Council as representative of the neighborhood in which the subject property is located.

(d) Any person who alleges that the subject matter of the appeal presents a unique impact on their rights, duties, privileges, benefits, or legal relationships.

(5) The board may adopt from time to time additional rules of procedure that the board deems necessary to carry out the performance of its duties.

1101-83.3 *Decisions.*

(1) All notices of decisions, orders, or adjudications reviewed by the board shall be presumed to be valid, and the burden shall be upon the appellant to prove otherwise.

(2) The board may modify or reverse a decision, order, or adjudication provided the appellant demonstrates by a preponderance of the substantial, reliable, and probative evidence that the decision, order, or adjudication is illegal, arbitrary, capricious, unreasonable, unsupported, or otherwise contrary to law.

1101-83.4 *Appeals.* The board's final written decision shall constitute a final appeal-

able order that may be appealed in the manner provided by the R.C. Chapter 2506. (Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; r. Ord. No. 355-1996, eff. 11-6-96; ordained by Ord. No. 367-2008, § 1, eff. Oct. 29, 2008; a. Ord. No. 418-2010, § 25, eff. Nov. 24, 2010; Emer. Ord. No. 045-2011, § 7, eff. Feb. 16, 2011; a. Ord. No. 091-2014, § 7, eff. June 7, 2014; Emer. Ord. No. 238-2015, § 32, eff. July 1, 2015; a. Ord. No. 345-2017, § 1, eff. Jan. 20, 2018)

Sec. 1101-85. Fees for Permits, Certificates, Licenses, Approvals, and Related Services.

1101-85.1 *Fees in General:* The Council shall establish by ordinance a schedule of fees for permits, certificates, licenses, approvals, administrative appeals, and related services required under the Cincinnati Building Code, except for those fees described in Section 1101-85.3 and Section 1101-85.4. No permit, certificate, license, or approval shall be issued by the director of buildings and inspections, and no administrative appeal shall be heard, until the fees established under this Section 1101-85 have been paid.

1101-85.2 *Assessment of Fees:* The director of buildings and inspections is hereby authorized to assess and collect the fees for permits, certificates, licenses, approvals, administrative appeals, and related services required under Cincinnati Building Code. The director of buildings and inspections shall determine the fees that apply to permits, certificates, licenses, approvals and related services and that determination shall be conclusive. The director of buildings and inspections shall render a receipt to a person making payment and the receipt shall state the amount and purpose for which a fee has been paid.

1101-85.3 *Ohio Board of Building Standards Surcharge:* The director of buildings and inspections shall assess and collect an Ohio Board of Building Standards surcharge fee as required by state law. The director shall remit the surcharge fee as required by state law.

1101-85.4 *Outside Inspection Agency Fees:* Fees for permits, certificates, licenses, approvals, and related services assessed by outside inspection agencies shall be established and collected by the respective agencies as compensation in full for their services.

1101-85.5 *Application Extension Fee:* When plans are resubmitted prior to the expiration date under Section 1101-29.5.1, the applicant at the time of re-filing shall pay an application extension for plans reviewed.

1101-85.6 *Revision Fee:* Revised plans are required when code deficiencies have been identified or when plans are so inadequate that a review cannot occur. All revisions to plans, including revisions to engineering changes, will be assessed a fee.

1101-85.7 *Investigation Fee for Work Performed Without a Permit:* The director of buildings and inspections shall conduct a special investigation of work performed prior to obtaining one or more permits, certificates, licenses, or approvals required by the Cincinnati Building Code. In connection with the investigation, the director of buildings and inspections shall assess and collect an investigation fee equal to the required permit, certificate, license, or approval fees for the work performed but not to exceed the maximum investigation fee established under this Section 1101-85.1. The investigation fee shall be in addition to the payment of the required fees and any other fees that may later accrue, and no portion of the investigation fee shall be refunded. The payment of the investigation fee shall not relieve any person from fully complying with the require-

ments of the Cincinnati Building Code in the execution of the work, nor from any other penalty prescribed herein.

1101-85.8 *Permit Fees for Wrecking:* Permit fees for wrecking buildings shall be based on the total floor area of the building. In computing total floor area, the floor areas of each story (except basement) shall be added together, using outside dimensions. Where a building has a story exceeding 15 feet in height, for the purpose of computing the total floor area, each 15 feet or fraction thereof of such story height shall be considered as a separate floor. A separate permit shall be required for each separate building.

1101-85.9 *Fractions:* Valuation estimates and area estimates that result in a fraction of the increment used to calculate fees established under this Section 1101-85 shall be rounded up to the next valuation increment or area increment. The following examples demonstrate the application of this rule:

Example 1: If the building permit fee schedule utilizes $1,000.00 increments and the valuation estimate for the work to be performed under the building permit is $3,500.00, the building permit fee shall be calculated based upon a valuation estimate of $4,000.00.

Example 2: If the tent permit fee schedule utilizes 10,000 square foot increments and the area estimate for the tent to be erected under the tent permit is 15,000 square feet, the tent permit fee shall be calculated based upon an area estimate of 20,000 square feet.

(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 025-1999, eff. Feb. 22, 1999; a. Ord. No. 128-2000, eff. May 19, 2000; a. Ord. No. 121-2001, eff. May 25, 2001; a. Ord. No. 416-2001, eff. Jan. 18, 2002; a. Ord. No. 404-2004, eff. March 1, 2005; a. Ord. No. 386-2006, § 1, eff. Jan. 20, 2007; a. Ord. No. 0230-2007, § 1, eff. July 20, 2007; a. Ord. No. 445-2008, § 1, eff. Jan. 17, 2009; Emer. Ord. No. 0057-2009, § 1, eff. March 11, 2009; Emer. Ord. 114-2014, § 1, eff. June 4, 2014; Emer. Ord. No. 238-2015, § 33, eff. July 1, 2015)

Sec. 1101-87. Diaper Changing Stations.

1101-87.1 *Definitions*. In this section the following terms shall have the following meanings:

Diaper changing station: A diaper changing station, deck, table, or similar amenity that is intended for use by the public for the purposes of changing diapers on children weighing up to 50 pounds.

Public bathing room: A room containing at least one bathtub or shower intended for public use, including rooms accessible to families and persons with disabilities and rooms intended for unisex use.

Public toilet room: A room containing at least one toilet or urinal intended for public use, including rooms accessible to families and persons with disabilities and rooms intended for unisex use.

1101-87.2 *Diaper Changing Stations Required*:

(1) Safe, sanitary, and convenient diaper changing stations shall be provided on those floors of a newly constructed or existing building that meet the following criteria:

(a) each floor of a newly constructed building in which a new public toilet room or new public bathing room is constructed to serve an Assembly Group A occupancy or Mercantile Group M occupancy; and

(b) each floor of an existing building undergoing renovation in which

a new public toilet room or new public bathing room is constructed to serve an Assembly Group A occupancy or Mercantile Group M occupancy; and

(c) each floor of an existing building containing one or more public toilet rooms or public bathing rooms that serve an Assembly Group A occupancy or Mercantile Group M occupancy if the building undergoes renovation and the renovation work area includes at least 50 percent of the area of the Assembly Group A occupancy or Mercantile Group M occupancy, except that no diaper changing station shall be required if no existing public toilet rooms or public bathing rooms on the floor can accommodate the diaper changing station without being reconfigured or increasing their floor area.

(2) When required under subsection (1), diaper changing stations shall be provided according to the following order of priority:

(a) If one or more public toilet rooms or public bathing rooms available for use by both male and female occupants is located on the floor, then one diaper changing station shall be provided within at least one of the rooms;

(b) If no public toilet room or public bathing rooms available for use by both male and female occupants is located on the floor, then one diaper changing station shall be provided in at least one public toilet room or public bathing room available for use by female occupants and one diaper changing station shall be provided in at least one public toilet room or public bathing room available for use by male occupants.

Exception: if no public toilet room or public bathing room for use by a particular gender is available on the floor, then no diaper changing station is required on the floor to serve that gender.

1101-87.3 *Requirements for Diaper Changing Stations:* Diaper changing stations required under Section 1101-87.2 must conform to the following requirements:

(1) Diaper changing stations shall comply with the accessibility requirements of the Ohio Building Code and Section 603.5 (Diaper Changing Tables) of International Code Council A117.1-2017, Standard for Accessible and Usable Buildings and Facilities.

(2) Diaper changing stations be designed for use with children weighing up to 50 pounds and shall include a child restraint system.

(3) Commercially manufactured wall-mounted or recessed diaper changing stations shall be listed and labeled as complying with ASTM F2285 - 04(2016)e1 (Standard Consumer Safety Performance Specification for Diaper Changing Tables for Commercial Use), and they shall be approved and installed in accordance with the manufacturer's installation instructions, the requirements of this subsection, and any other applicable laws.

(4) Commercially manufactured countertop diaper changing stations shall be approved and installed in accordance with the manufacturer's installation

instructions, the requirements of this subsection, and any other applicable laws.

(5) Non-commercially manufactured diaper changing stations shall be approved, constructed, and installed in accordance with the requirements of this subsection, and any other applicable laws.

1101-87.4 *Signage:* Signage indicating the location of the nearest diaper changing station available for use by persons using a public toilet room or public bathing room shall be posted within or adjacent to the entrance of each public toilet room or public bathing room that does not have a diaper changing station and is located in a building containing one or more public toilet rooms or public bathing rooms that serve an Assembly Group A occupancy or Mercantile Group M occupancy and in which building at least one diaper changing station is installed on or after January 1, 2020, whether voluntarily or pursuant to this Section or other applicable law. The required signs shall be readily visible, shall be posted in a conspicuous place within or adjacent to each public toilet room or public bathing room, and shall comply with Section 703.2 (Visual Characters) of 2017 ICC A117.1.

No sign shall be required within or adjacent to a public toilet room or public bathing room in which a diaper changing station is located, and no sign shall be required within or adjacent to the entrance of public toilet rooms or public bathing rooms intended for use by a particular gender if diaper changing stations are not available in the building for use by the gender.

1101-87.5 *Maintenance:* Diaper changing stations installed in any building, whether voluntarily or pursuant to this Section or other applicable law, shall be maintained in a safe, sanitary, and working condition.

1101-87.6 *Incorporation by reference:*

(1) The following publication is hereby incorporated by reference into this Section:

(a) ICC A117.1, Standard for Accessible and Usable Buildings and Facilities, publication date 2017, published by the International Code Council, Inc.

(2) Copies of the ICC A117.1 may be obtained from the publisher at the following address: International Code Council, Inc., 500 New Jersey Avenue, NW, 6th Floor, Washington DC 20001.

(Ordained by Ord. No. 157-2020, § 1, eff. May 28, 2020)

Sec. 1101-89. Repealed.

(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 404-1996, eff. Dec. 18, 1996; a. Ord. No. 416-2001, eff. Jan. 18, 2002; a. Ord. No. 386-2006, § 1, eff. Jan. 2, 2007; r. Emer. Ord. 114-2014, § 2, eff. June 4, 2014)

Sec. 1101-91. Repealed.

(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 416-2001, eff. Jan. 18, 2002; r. Emer. Ord. 114-2014, § 2, eff. June 4, 2014)

Sec. 1101-93. Repealed.

(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 311-1997, eff. Sept. 4, 1997; a. Ord. No. 416-2001, eff. Jan. 18, 2002; a. Ord. No. 366-2008, § 1, eff. Oct. 29, 2008; r. Emer. Ord. 114-2014, § 2, eff. June 4, 2014)

Sec. 1101-95. Repealed.

(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; r. Ord. No. 59-2002, eff. March 28, 2002)

Sec. 1101-97. Repealed.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 357-1998, eff. Oct. 16, 1998; a. Ord. No. 416-2001, eff. Jan. 18, 2002; a. Ord. No. 404-2004, eff. March 1, 2005; r. Emer. Ord. 114-2014, § 2, eff. June 4, 2014)

Sec. 1101-99. Repealed.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 404-1996, eff. Dec. 18, 1996; a. Ord. No. 416-2001, eff. Jan. 18, 2002; r. Emer. Ord. 114-2014, § 2, eff. June 4, 2014)

Sec. 1101-101. Repealed.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 416-2001, eff. Jan. 18, 2002; a. Ord. No. 404-2004, eff. March 1, 2005; a. Ord. No. 387-2006, § 1, eff. March 1, 200; r. Emer. Ord. 114-2014, § 2, eff. June 4, 20147)

Sec. 1101-103. Repealed.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 92-1996, eff. Apr. 22, 1996; a. Ord. No. 249-1999, eff. July 16, 1999; a. Ord. No. 416-2001, eff. Jan. 18, 2002; Ord. No. 183-2005, § 1, eff. June 17, 2005; Emer. Ord. No. 0049-2008, eff. Feb. 13, 2008; a. Ord. No. 281-2013, § 1, eff. Oct. 25, 2013; r. Emer. Ord. 114-2014, § 2, eff. June 4, 2014)

Sec. 1101-105. Repealed.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 416-2001, eff. Jan. 18, 2002; r. Emer. Ord. 114-2014, § 2, eff. June 4, 2012)

Sec. 1101-107. Repealed.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 416-2001, eff. Jan. 18, 2002; a. Ord. No. 404-2004, eff. March 1, 2005; r. Emer. Ord. 114-2014, § 2, eff. June 4, 2014)

Sec. 1101-109. Repealed.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; r. Emer. Ord. 114-2014, § 2, eff. June 4, 2014)

Sec. 1101-111. Repealed.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 404-2004, eff. March 1, 2005; r. Emer. Ord. 114-2014, § 2, eff. June 4, 2014)

Sec. 1101-113. Repealed.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 416-2001, eff. Jan. 18, 2002; r. Emer. Ord. 114-2014, § 2, eff. June 4, 2014)

Sec. 1101-115. Repealed.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 355-1996, eff. Nov. 6, 1996; a. Ord. No. 404-2004, eff. March 1, 2005; a. Ord. No. 091-2014, § 3, eff. June 7, 2014; r. Emer. Ord. 114-2014, § 2, eff. June 4, 2014)

Sec. 1101-116. Reserved.

Editor's note—Emergency Ordinance No. 238-2015, § 34, effective July 1, 2015, repealed § 1101-116 in its entirety. Formerly, said section pertained to Board of Housing Appeals, Filing Fees and derived from Ord. No. 091-2014, § 9, eff. June 7, 2014)

Sec. 1101-117. Refunder of Processing Permit or Certificate Fees.

1101-117.1 *Expired permit:* When a permit shall have expired by limitation or the project has been abandoned for which a permit was issued, such permit may be returned to the director of buildings and inspections or the electrical inspection agency for cancellation; and such person shall be authorized to issue a refunder to the applicant in an amount equal to one-half of the total permit fee paid. After two years, no refunder of any nature shall be allowed.

1101-117.2 *Permit or certificate of inspection or certificate of occupancy issued in error:* When a permit or a certificate of inspection or a certificate of occupancy has been issued in error, such permit or certificate may be returned to the director of buildings and inspections or the electrical inspection agency for cancellation; and such person shall be authorized to issue a refunder to the applicant of the total permit or certificate fee paid.

1101-117.3 *Unissued certificates:* When an applicant requests the cancellation of an application for a certificate of inspection or a certificate of occupancy and an inspection has not been made, the director of buildings and inspections shall be authorized to issue a refunder to the applicant of the total fee paid for such certificate.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 128-2000, eff. May 19, 2000; a. Ord. No. 59-2002, eff. March 28, 2002)

Sec. 1101-119. Repealed.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; r. Emer. Ord. 114-2014, § 2, eff. June 4, 2014)

Sec. 1101-121. Record and Deposit of Fees.

1101-121.1 *General:* Records shall be kept by the director of buildings and inspections of all fees received. Such records shall show the date of receipt, the name of the person making payment, and the purpose for which such fees have been paid. All fees thus received shall be deposited with the city treasurer to the credit of the general fund. Duplicates of all permits for new buildings, alterations and additions shall be submitted to the county auditor.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996)

Sec. 1101-123. Repealed.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 404-1996, eff. Dec. 18, 1996; a. Ord. No. 416-2001, eff. Jan. 18, 2002; r. Emer. Ord. 114-2014, § 2, eff. June 4, 2014)

Sec. 1101-125. Repealed.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; r. Emer. Ord. 114-2014, § 2, eff. June 4, 2014)

Sec. 1101-127. Repealed.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 59-2002, eff. March 28, 2002; a. Ord. No. 0230-2007, § 3, eff. July 20, 2007; r. Emer. Ord. 114-2014, § 2, eff. June 4, 2014)

Sec. 1101-129. Fees for Vacated Building Maintenance Licenses.

1101-129.1 *Application Fee:* The fee for application for a vacated building maintenance license is based on the duration of time the building has been ordered vacated or kept vacated as determined by the following scale:

- $900 for properties that have been ordered vacated or kept vacant for less than one year;
- $1,800 for properties that have been ordered vacated or kept vacant for at least one year but less than two years;
- $2,700 annually for properties that have been ordered vacated or kept vacant for at least two years but less than five years;
- $3,500 annually for properties that have been ordered vacated or kept vacant for at least five years.

The fee shall be paid at the time of application and deposited in the building hazard abatement fund. Such rates shall go

into effect upon the effective date of the ordinance which implements the fee structure contained in this section. Upon any initial application for a license, or upon the first renewal of a license following the implementation of the above-listed fee structure, all persons shall initially be required to pay the $900 fee, and will thereafter pay the designated annual fee based on the graduated rate listed herein.

1101-129.2 *Renewal Fee:* The fee for renewal of a vacated building maintenance license to be determined by the scale in § 1101-129.1, shall be paid at the time of application for renewal and deposited in the building hazard abatement fund. A renewal license shall expire on the annual renewal date. The annual renewal date shall be the anniversary of the date notice of violation is given pursuant to Section 1101-61 CBC wherein the building or portion thereof was initially ordered to be vacated or kept vacant.

1101-129.3 *Late Fee:* In addition to the amount assessed for the VBML license, the director of buildings and inspections shall charge a late fee equal to the license or renewal fee or $1,000, whichever is less, if the owner or person in control fails to obtain a vacated building maintenance license within the time provided by § 1101-77.2 CBC or if the owner or person in control fails to apply for renewal of a vacated building maintenance license before the annual renewal date. The annual renewal date shall be the anniversary of the date notice of violation is given pursuant to Section 1101-61 CBC wherein the building or portion thereof was initially ordered to be vacated or kept vacant. Unpaid Late Fees shall be considered a debt collectible pursuant to Section 1101-129.3A.

1101-129.3A *Fee as a Debt to the City:* If the owner or person in control fails to pay the amount due for the license, for renewal of the license, or as a fine for being out of compliance with the vacant building requirements, said amount shall constitute a debt due and owing to the city, and the city may commence a civil action to collect such unpaid debt.

1101-129.5 *Request for Suspension of Fees:* The director may suspend liability for payment of all or a portion of VBML fees in the manner described in Section 1101-80.

(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 311-1997, eff. Sept. 4, 1997; a. Ord. No. 59-2006, eff. April 14, 2006; a. Ord. No. 366-2008, §§ 2, 3, eff. Oct. 29, 2008; a. Ord. No. 418-2010, § 26, eff. Nov. 24, 2010; Emer. Ord. No. 045-2011, §§ 8—10, eff. Feb. 16, 2011; Emer. Ord. No. 238-2015, § 35, eff. July 1, 2015; a. Ord. No. 345-2017, § 1, eff. Jan. 20, 2018)

Chapter 1103

MISCELLANEOUS MECHANICAL REGULATIONS (REPEALED)*

*__Editor's note—__Repealed by Ord. No. 59-2002, eff. March 28, 2002.

Chapter 1105

PLUMBING CODE

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Sec. 1105-35. City Regulations to be Followed.
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Sec. 1105-39. Revocation or Suspension Procedure.

Sec. 1105-01. Scope.

This Chapter of the CBC includes Chapters 4101:3-1 to 4101:3-13 of the Ohio Administrative Code, and collectively known as the Ohio Plumbing Code, for which the designation "OPC" may be substituted, with all amendments thereto, which is adopted and incorporated as part of the Cincinnati Plumbing Code, except for amendments, deletions and substitutions as set forth herein.

The performance of plumbing operations within, or in connection with buildings, are subject to the provisions of this Chapter.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; repealed and reordained by Ord. No. 415-2001, eff. Dec. 19, 2001; a. Ord. No. 59-2002, eff. March 28, 2002)

Sec. 1105-03. Drainage Required.

The provisions of Section 1101.2 OPC are superseded by the following:

(a) Every building, except accessory buildings less than 800 square feet in area, must be equipped with gutters and downspouts connected to an approved sewer. Drains from roofs, sun decks, or promenades open to occupancy must be trapped when connected to a combined sewer. If there is no approved sewer, the downspout must be connected under the sidewalk to the street gutter, or the stormwater must be disposed of in an approved manner on the property. Where stormwater pipes discharge into a paved street gutter, there must be at least one length of cast-iron pipe at the gutter connection. The cast iron section must extend from the gutter to the back of the sidewalk or ten feet away from the gutter, whichever is greater. Subsurface water (e.g. foundation drains, sump lines, etc.) shall not discharge to a paved street gutter.

Exceptions: Where approved, stormwater from roofs and similar impervious surfaces is permitted to discharge to grade as follows:

(1) Stormwater may discharge to grade without gutters and downspouts for roof areas of less than 50 square feet over bay windows, entry stoops and similar projections;

(2) Stormwater may discharge to grade without gutters and downspouts for roof areas of less than 400 square feet where the points of discharge to a pervious ground surface is at least 10 feet from property lines and the flow of surface water is away from adjacent buildings;

(3) In instances where the property is not in a hillside overlay district and the Director of Sewers deems it advantageous to relieve the public sewer system by disconnecting downspouts or not connecting downspouts to the public sewer system, the following items will be considered in this determination:

i. The ground where the downspout will discharge will allow water to flow away from structures, driveways, sidewalks, alleys, roadways, and neighboring properties.

ii. The ground or containment area where the downspout will discharge is capable of accepting stormwater flow from a 10 year, 24 hour storm event with acceptable emer-

gency overflow devices and standing water will be eliminated within 48 hours from the start of accumulation.

iii. The ground where the downspout will discharge is characterized by one of the following soil classifications as shown in the Soil Survey of Hamilton County, Ohio: Gn, Go, Hu, Ju, McA, McB, PbB2, PbC2, PbD, PbE, PcB, PcC, RwB2, RxB, UgB, UgC, Uh, UmB, UmC.

iv. Disconnected downspouts shall be SDR 35 or an approved equal and shall extend below grade at least six feet away from a basement, foundation, crawl space, or concrete slab. Approved splash blocks or permanent erosion control is required and cannot be part of the measurement. The outlet of the extension will be at least ten feet away from any property lines and retaining walls. Where downspout lines discharge into a paved street gutter there shall be at least one length (ten feet) of cast-iron pipe at the gutter connection. The cast iron section must extend from the gutter to the back of the sidewalk or ten feet away from the gutter, whichever is greater.

v. Downspout extensions will not discharge above oil tanks or septic systems.

vi. Any abandoned downspout stacks is sealed with a one inch thick concrete cap or an approved equal.

(b) All paved areas more than 800 square feet in area that do not have natural drainage on the same property shall be drained into an approved sewer. If there is no approved sewer the stormwater shall be disposed of in an approved manner on the property.

(c) When connected to a combined sewer, one trap may serve all connections described in this section. Traps shall be below the frost line or on the inside of the building.

(d) No pipe or pipes conveying rain or surface water shall be connected to a sanitary sewer and any such existing connections encountered or reported shall be disconnected by the owner of the premises and the rain and surface water disposed of in an approved manner. All such connections to sanitary sewers shall be disconnected when any plumbing alterations are made.

(e) Area drains and subsurface drains that discharge to the ground surface shall meet the same requirements outlined in section[s] (a)(3)i, ii, iii, iv, v.

(f) Rainwater collection, catchment and harvesting devices, such as rain barrels, may be installed outside of a building if both of the following conditions are satisfied:

(1) Any such devices are equipped with an overflow that meets the requirements of this Chapter 1105; and

(2) All collected rainwater remains outside of the building or satisfies the requirements of Section 1105-08 below.

(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 357-1998, eff. Oct. 16, 1998; repealed and reordained by Ord. No. 415-2001, eff. Dec. 19, 2001; a. Ord. No. 59-2002,

eff. March 28, 2002; a. Ord. No. 057-2012, § 1, eff. March 29, 2012; a. Ord. No. 085-2013, § 1, eff. May 10, 2013)

Sec. 1105-05. Storm Drains, Conductors and Leaders.

In single, two and three family dwelling houses that discharge to a combined sewer, a separation manhole shall not be required at the junction of the building storm drains and the building sewer outside the walls of such buildings. In lieu thereof, the two lines may be connected in the same horizontal plane by a "Y" fitting, located at least five feet outside the building, provided a trap with a cleanout is installed in the storm sewer upstream from the combined sewer.

Where stormwater pipes dispose into a paved street gutter there shall be at least one length of cast-iron pipe at the gutter connection. The cast iron section must extend from the gutter to the back of the sidewalk or ten feet away from the gutter, whichever is greater. (Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; repealed and reordained by Ord. No. 415-2001, eff. Dec. 19, 2001; a. Ord. No. 057-2012, § 2, eff. March 29, 2012)

Sec. 1105-07. Size of Leaders and Storm Drains.

In addition to the provisions of Chapter 11 OPC, the following is required:

Drain gratings for driveways, parking lots, and other paved areas must be sized on the basis of 6500 square feet of paved area per one square foot of grating. Where used in grassy areas the grating area may be reduced to 35% of that required for paved areas. Such drains need not be trapped except that when connected to a combined sewer they may not be within ten feet of a building ventilation opening unless trapped. Outlets must be sized in accordance with Section 1106 OPC.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 357-1998, eff. Oct. 16, 1998; repealed and reordained by Ord. No. 415-2001, eff. Dec. 19, 2001; a. Ord. No. 59-2002, eff. March 28, 2002)

Sec. 1105-08. Rainwater Harvesting.

(a) *References.* As used in this Section 1105-08, "IGCC" shall mean the International Green Construction Code. All references to the International Plumbing Code set forth in those sections of the IGCC adopted in this Section 1105-08 shall be replaced with references to the Ohio Plumbing Code ("OPC"). "GCWW" shall mean Greater Cincinnati Water Works. "MSD" shall mean Metropolitan Sewer District of Greater Cincinnati.

(b) *Harvesting Systems.* Subject to the requirements set forth in this Section 1105-08, and notwithstanding the requirements for connections to an approved sewer set forth in Section 1105-03 above, rainwater harvesting systems shall be permitted to be installed as a non-potable auxiliary water source for use in subsurface irrigation, flushing of fixtures and other non-potable uses approved in the discretion of the Director of Buildings and Inspections in consultation with MSD, GCWW and the Cincinnati Health Department. Harvesting systems shall be submitted as an alternative engineered design as listed in the OPC and shall comply in all respects with the requirements of this Section 1105-08, those portions of the IGCC expressly adopted herein, those regulations contained in the Cincinnati Municipal Code pertaining to private water supply systems, and those rules, regulations and policies adopted from time to time by MSD, GCWW, the Cincinnati Department of Buildings and Inspections, the Cincinnati Health Department and the Cincinnati Board of Health, and shall be subject to all other applicable laws and ordinances not otherwise excepted herein.

(c) *Use of Harvested Water.* The following sections of the IGCC are hereby adopted and incorporated herein in their entirety to en-

sure the conservation, quality and efficiency of water harvested under this Section 1105-08:

(i) IGCC Section 707, "Rainwater Collection and Distribution Systems," is hereby adopted and incorporated herein in its entirety with the following additions, deletions and exceptions:

(aa) References in IGCC Section 707 to "potable water application" and "reclaimed" or "recycled" water shall not be adopted herein and shall not apply in the City of Cincinnati.

(bb) IGCC Section 707.11.6, "Disinfection," shall be adopted herein; provided, however, that for purposes of this Section 1105-08 the first sentence of IGCC Section 707.11.6, "Disinfection," shall read as follows: "Where the intended application and initial quality of the collected rainwater requires disinfection or other treatment or both, the collected rainwater shall be disinfected."

(cc) In addition to the provisions of IGCC Section 707.13, "Operations and maintenance manuals," the following is required: GCWW reserves the right for a review and approval of operations and maintenance at time of installation and on an annual basis.

(dd) The requirements in the IGCC Section 707.12.4 are hereby deleted and replaced with the following: "The testing and installation of backflow preventer and backflow valves shall be in accordance with the requirements of the GCWW."

(ee) In addition to the provisions of IGCC Section 707.14, "System abandonment," the following is required: Not later than ten days from the date of the abandonment of a system, the owner must send written notice of an abandonment to the City of Cincinnati Department of City Planning and Buildings, MSD and GCWW.

(d) *Inspections.* The Department of Buildings and Inspections, in coordination with GCWW, shall conduct an annual inspection of all rainwater harvesting systems for compliance with all applicable codes and regulations. The Department of Buildings and Inspections shall be permitted to charge a fee for such inspections reasonably commensurate with the administrative costs of the inspection.

(e) *Enforcement.* The provisions of this Section 1105-08 shall be enforced by the Department of Buildings and Inspections with the cooperation of GCWW, MSD and the Cincinnati Department of Health.

(f) *Exceptions.* Rainwater harvesting systems and activities permitted in this Section 1105-08 are expressly exempt from the provisions of the following sections of the Cincinnati Municipal Code:

(i) Section 401-61, "Water for Temporary Use";

(ii) Section 401-62, "Use of Water Without a Permit"; and

(iii) Section 401-63, "Charge for Unmetered Water."

(g) *Related Code Sections.*

(i) The requirements of jurisdiction referenced in IGCC Section 707.12.10, "Water quality test," may be found in Cincinnati Municipal Code Section 401-125, "Backflow Prevention."

(ii) Rainwater shall be metered according to the requirements set forth in Cincinnati Municipal Code Chapter 401, "Water Works," Division E, "Meters."

(iii) Premises that discharge rainwater to the public wastewater treatment system shall be charged according to the requirements set forth in Metropolitan Sewer District Rules and Regulations Chapter XVI, Application of the Wastewater Treatment System (WTS) Service Charge Section 1601, "General Rule."

(Ordained by Ord. No. 085-2013, § 1, eff. May 10, 2013; Emer. Ord. No. 238-2015, § 36, eff. July 1, 2015)

Sec. 1105-09. Inspections.

Approvals or certificates of inspection given under this Code shall not thereafter relieve the plumbing contractor of responsibility for any incomplete or defective work or materials which may have escaped the notice of the inspector, or which may have developed after inspection, nor the owner for any plumbing work done by any person after inspection.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; repealed and reordained by Ord. No. 415-2001, eff. Dec. 19, 2001)

Sec. 1105-11. Journeymen Plumbers to be Licensed and Plumbing Contractors and Plumbing Apprentices to be Registered.

A person may not work as a journeyman plumber unless duly licensed in accordance with the provisions of Section 1105-17 CBC. A person may not engage in the business of plumbing contractor without first registering with the director of buildings and inspections. Persons serving an apprenticeship in the plumbing trade and doing work as such in the city of Cincinnati must be registered as plumber apprentice with the director of buildings and inspections, must be enrolled in an apprenticeship training program which conforms to the apprenticeship standards as approved and registered by the Ohio state apprenticeship council and recognized by the federal committee on apprenticeship and must work under the supervision of a licensed plumbing contractor.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; repealed and reordained by Ord. No. 415-2001, eff. Dec. 19, 2001)

Sec. 1105-13. Plumbing Operations to be Performed by Licensed Plumbers.

(a) Except as provided in division (b) and (c) of this section, it is unlawful for any person other than a registered licensed plumbing contractor, licensed journeyman plumber or registered plumber apprentice in the employ of or under the supervision of a registered licensed plumbing contractor to install, alter, repair or make any connection with any potable water distributing pipe, house or building sewer or building drain, soil, waste, drain or vent pipe, or with any plumbing system pipe or plumbing appurtenance connected or designated or intended to connect therewith or to enter any waste pipe, soil pipe, house or building drain by dismantling or fracture for cleaning purposes, within or in connection with any building except as follows:

(1) The cleaning out of drainage lines where it is not necessary to dismantle or fracture piping to gain access;

(2) The replacement of washers, faucets and valves, repairs to existing fixtures and parts thereof, and the repairing of leaks which do not require changes in the piping to or from the plumbing fixture;

(3) Mechanical piping for manufacturing purposes. Such mechanical piping shall include but is not limited to the exten-

sion of water supply lines from an existing opening left in supply line to equipment used in process and manufacturing; condensers for cooling equipment (except drinking water); cooling water for air compressors and turbines; makeup water for steam and hot water heating equipment and hydraulic testing equipment. All the above piping shall be protected against back flow or back siphonage; and

(4) Water drainage piping in connection with mechanical piping for manufacturing purposes where drainage discharges indirectly into an open drain above floor level with an air gap between the drain outlet and an approved trapped and vented opening installed to receive such waste.

(b) The provisions of this section shall not apply to work in a single-family dwelling used exclusively for living purposes, including the usual accessory buildings and quarters in connection with such building, provided the person is the bona fide owner of such a dwelling and that the same will be occupied by said owner for at least one year and that such owner shall personally purchase all material and perform all labor in connection therewith, and provided further that he shall obtain a plumbing permit to do the work; and

(c) The provisions of this section shall not apply to plumbing repairs and minor alterations conducted by the City of Cincinnati or any other governmental authority with employees regularly appointed according to law and qualified to perform such work, nor to plumbing repairs in apartment, business and industrial buildings where approved competent superintendents are employed and where such plumbing repairs are performed by approved qualified employees.

(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; repealed and reordained by Ord. No. 415-2001, eff. Dec. 19, 2001)

Sec. 1105-15. Examination.

The Board of Examiners of plumbers, as established in accordance with § 7 Article XXI of the Administrative Code, shall examine any person desiring a license to work at the trade of journeyman plumber as to his qualifications and competency. In exercising its jurisdiction the board shall adopt, from time to time, such general rules and regulations relating to its procedures as it may deem necessary. Application for examiner shall be made at least two weeks before the date of an examination on printed forms furnished by the board. All questions on such application blanks shall be fully answered, and any false statements made thereon shall invalidate the application or any certificate based on such application.

(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; repealed and reordained by Ord. No. 415-2001, eff. Dec. 19, 2001; Emer. Ord. No. 238-2015, § 37, eff. July 1, 2015)

Sec. 1105-17. Examination Fees.

Each application for examination as journeyman plumber must be accompanied by an examination fee of $50. No part of any examination fee may be refunded because of failure of the applicant to undergo the examination or to qualify for a certificate.

(Ordained by Ord. No. 415-2001, eff. Dec. 19, 2001)

Sec. 1105-19. Examination for Journeyman Plumber's License.

The board of examiners of plumbers shall allow any person to present himself or herself for examination for license as journeyman plumber who:

(a) Has been registered as an apprentice plumber with the director of buildings and inspections, has successfully completed an apprenticeship training program which conforms to the appren-

ticeship standards as approved and registered by the Ohio state apprenticeship council and recognized by the federal committee on apprenticeship and has actually been engaged for at least four years in work as a registered plumber's apprentice;

(b) Holds and has held a certificate as a licensed journeyman plumber for at least four years from some other jurisdiction, whose prequalifications for the examination for licensing as a journeyman plumber are similar to those of the City of Cincinnati; or

(c) Has been certified by the U.S. department of labor as a plumber trainee enrolled in the journeyman employment training program (JET), has been registered with the City of Cincinnati as a plumber JET trainee for the duration of that person's training, and has successfully completed plumber's apprenticeship training in a training program which conform to the apprenticeship standards as approved and registered by the Ohio state apprenticeship council and recognized by the federal committee on apprenticeship.

The examination for journeyman plumber will be based on questions and practical tests to determine the applicant's knowledge of the Cincinnati Plumbing Code, adopted by the council of the City of Cincinnati, the applicant's knowledge of construction and installation of plumbing as provided by this Code, and the interpretation of plans and blueprints of plumbing installations.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; repealed and reordained by Ord. No. 415-2001, eff. Dec. 19, 2001)

Sec. 1105-21. Certificate of Competency.

If after examination the board of examiners of plumbers shall be satisfied with the competency of an applicant, based upon applicant receiving a passing grade of 70% or better in each of the separate parts of the examination, it shall certify to the director of buildings and inspections that such applicant has passed the examination for journeyman plumber.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; repealed and reordained by Ord. No. 415-2001, eff. Dec. 19, 2001)

Sec. 1105-23. Appeal for Examination Review.

Any person having failed to qualify in the examination for a journeyman plumber's license, as provided in Section 1105-17 CBC, by notifying the examining board in writing within five days after receiving notification of failure to qualify, may have the record of questions and answers certified to the secretary of the civil service commission. The secretary of the civil service commission has the duty to arrange for a hearing before the civil service commission. If the civil service commission finds that the applicant should have passed, the commission has the duty to so certify to the examining board, whereupon the applicant has the same rights, certifi-

cates and licenses as if the applicant had been originally passed by the board of examiners.
(Ordained by Ord. No. 415-2001, eff. Dec. 19, 2001)

Sec. 1105-25. License and Registration Fees.

The fee for original or annual renewal of a journeyman plumber's license is $50.00. The fee for original or annual renewal of a plumbing contractor's registration is $125.00. All licenses expire on the 31st day of January next succeeding the date of issue, and no reduction may be made for any part of the year elapsed. All registrations expire on the same date as the applicant's state plumbing contractor's license expires.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; repealed and reordained by Ord. No. 415-2001, eff. Dec. 19, 2001; a. Ord. No. 404-2004, eff. March 1, 2005)

Sec. 1105-27. Issuance of Licenses.

Upon presentation of a proper certificate from the board of examiners of plumbers and payment of the prescribed license fee, the director of buildings and inspections shall issue a license in accordance with the certification, authorizing the applicant to work at the trade of journeyman plumber. Further, upon presentation of a plumbing contractor's certificate issued by the Ohio construction industry examining board and payment of the prescribed licensed plumbing contractor's registration fee, the Director of Buildings and Inspections has the duty to register the applicant as a licensed plumbing contractor.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; repealed and reordained by Ord. No. 415-2001, eff. Dec. 19, 2001)

Sec. 1105-29. Renewals of Licenses.

Applications for renewal of a journeyman plumber's license must be made not later than 30 days after the expiration of the license period. In case of failure to renew license within such time, the license fee is $75.00. If more than one year has elapsed since the date of license expiration, the applicant must pay all examination and license fees and stand for examination again. Any person holding a master plumber's license issued during the calendar year 2001 may renew that license as a journeyman plumber's license for the calendar year 2002.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; repealed and reordained by Ord. No. 415-2001, eff. Dec. 19, 2001; a. Ord. No. 404-2004, eff. March 1, 2005)

Sec. 1105-31. Reexamination.

Any person who has failed to pass an examination for journeyman plumber may apply for reexamination after the expiration of 30 days. Applicants for reexamination shall comply with the provisions prescribed in the case of original examinations, including the payment of the examination fee. In case of failure to pass a second examination, an applicant shall not be permitted to apply for a further examination until after the expiration of six months from the date of the prior examination.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; repealed and reordained by Ord. No. 415-2001, eff. Dec. 19, 2001)

Sec. 1105-33. License Not Transferable.

Journeyman plumber's licenses and plumbing contractor's or apprentice registrations under the provisions of this Chapter are not transferable or assignable.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; repealed and reordained by Ord. No. 415-2001, eff. Dec. 19, 2001)

Sec. 1105-35. City Regulations to be Followed.

In all water, drainage and plumbing construction, the licensed plumbing contractor

in charge shall be responsible for the performance of the plumbing operations in accordance with all applicable sections of the Cincinnati Municipal Code and the Cincinnati Building Code, and all the rules and regulations of the department of water works and department of buildings and inspections.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; repealed and reordained by Ord. No. 415-2001, eff. Dec. 19, 2001)

Sec. 1105-37. Revocation or Suspension of License.

(a) Any license as journeyman plumber and any permission to work as a registered plumber's apprentice may be revoked or suspended for any of the following causes, to wit:

(1) Incompetency, careless workmanship or dereliction of duty;

(2) Misrepresentation in obtaining a license, permit or registration;

(3) Fraudulent use of license or registration;

(4) Failure to obey any notice or order of any city department having jurisdiction; or

(5) Any other failure to comply with the plumbing provisions of the Cincinnati Building Code and Ohio Basic Building Code.

(b) The registration of any plumbing contractor may be revoked or suspended for any of the causes in division (a) of this section or for any of the following, to wit:

(1) Failure to make reasonable investigation as to the license or registration in employment of a person to perform plumbing operations in accordance with the provisions of this Chapter;

(2) Failure to take out a required permit before work is started; or

(3) Failure to notify the proper city department or division for inspection of water, sewer or plumbing construction requiring inspection.

(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; repealed and reordained by Ord. No. 415-2001, eff. Dec. 19, 2001)

Sec. 1105-39. Revocation or Suspension Procedure.

A journeyman plumber's license, a plumbing contractor's registration or an apprentice registration may not be suspended or revoked without a hearing before the board of examiners of plumbers. Any person charged with a violation of Section 1105-39 CBC shall be given at least ten day's notice of the date and place of hearing and may be represented by counsel. When the board shall certify to the director of buildings and inspections that the charges as to one or more of the items set forth in Section 1105-39 CBC have been sustained, the latter shall suspend or revoke the license or permission in accordance with such certification of the board. The board's decisions shall state whether or not the person affected may apply for a new license and, if so, the length of time, not to exceed one year, before the application may be made. Where permission is granted to apply for a new license, the procedure shall be the same as for a new applicant. Any individual, whose plumber's license either master or journeyman or apprentice registration has been suspended or revoked, may within 30 days appeal to the director of buildings and inspections for a rehearing on the suspension or revocation of said license. If the director of buildings and inspections on rehearing upholds the revocation or suspension, the individual whose license or registration has been suspended or revoked, may, within 30 days thereafter appeal to the court of common pleas.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; repealed and reordained by Ord. No. 415-2001, eff. Dec. 19, 2001)

Chapter 1106

GENERAL AND SPECIALTY CONTRACTORS*

Sec. 1106-1. Definitions.
Sec. 1106-1-C. Cincinnati Building Code (CBC).
Sec. 1106-1-O. Ohio Construction Industry Licensing Board (OCILB) Licensed Specialty Contractors.
Sec. 1106-1-R. Registered Building Construction Contractor.
Sec. 1106-1-R1. Registered Home Improvement Contractor.
Sec. 1106-3. General.
Sec. 1106-5. OCILB Licensed Specialty Contractor Registration Required.
Sec. 1106-7. OCILB Licensed Specialty Contractor Registration Requirements.
Sec. 1106-9. Building Construction Contractor Registration Required.
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Sec. 1106-13. Home Improvement Contractor Registration Required.
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Sec. 1106-27. Suspension and Revocation of Registration.
Sec. 1106-29. Registration Rights.
Sec. 1106-31. Appeal.
Sec. 1106-33. Non-warranty.
Sec. 1106-35. State and Federal Law.
Sec. 1106-37. Homeowner's Exception.
Sec. 1106-99. Penalties.

*__Editor's note—__Ord. No. 406-2007, § 1, effective Jan. 1, 2008, added ch. 1106 to read as herein set out. In addition, section 3 of said ordinance provided that new chapter 1106 of the Cincinnati Municipal Code shall expire 24 months after passage, section 4 provided that the annual registration fee, set forth in Section 1106-23, will not be adjusted during this 24-month time period, section 5 provided that council shall have the option to extend chapter 1106, pending an evaluation of data provided by the city administration and section 6 provided that this chapter shall take effect and be in force January 1, 2008 and remain in effect thereafter for a period of 24 months.

Ord. No. 355-2009, § 5, effective Dec. 25, 2009, repealed sections 3 and 4 of Ord. No. 406-2007 related to the sunset provision and the prohibition on adjustments of the registration fee during this sunset period.

Sec. 1106-1. Definitions.

For the purposes of this chapter, the following terms, phrases, words and their derivations shall have the meaning given herein. When not inconsistent with the context, words used in the present tense include the future, words used in the plural number include the singular number, and words used in the singular number include the plural number. The word "shall" is always mandatory and not merely directory.
(Ordained by Ord. No. 0406-2007, § 1, eff. Jan. 1, 2008)

Sec. 1106-1-C. Cincinnati Building Code (CBC).

For the purposes of this chapter, the CBC shall be interpreted to include the Residential Code of Ohio in its entirety.
(Ordained by Ord. No. 0406-2007, § 1, eff. Jan. 1, 2008)

Sec. 1106-1-O. Ohio Construction Industry Licensing Board (OCILB) Licensed Specialty Contractors.

"Ohio Construction Industry Licensing Board (OCILB) Licensed Specialty Contractors" shall mean:

For the purposes of this chapter, any person licensed as defined by Chapter 4740 and § 715.27(F) of the Ohio Revised Code and engaging in work on projects as a/an:

(1) Electrical contractor;

(2) Heating, ventilating and air-conditioning (HVAC) contractor;

(3) Hydronics (steam and hot water) contractor;

(4) Plumbing contractor;

(5) Refrigeration contractor.

(Ordained by Ord. No. 0406-2007, § 1, eff. Jan. 1, 2008)

Sec. 1106-1-R. Registered Building Construction Contractor.

"Registered Building Construction Contractor" shall mean:

(a) Any person that functions either on the behalf of, or as an agent for, an owner of a building, structure or site for the purpose of obtaining building permits for the structural addition, prefabrication, alteration, repair, demolition and/or new construction of any appurtenance, building, structure or site, or a portion thereof, governed by the Ohio Building Code (OBC) and/or the new construction of one, two and three family dwellings and those new appurtenances directly associated therewith as regulated by the CBC.

(b) Any person that offers to provide and/or provides the means, processes and procedures for the structural addition, alteration, repair and/or new construction of any appurtenance, building, structure or site, or a portion thereof, governed by the OBC. In addition, such registration shall also include the new construction of one, two and three family dwellings and those new appurtenances directly associated therewith as regulated by the CBC.

(c) Any person or entity, commonly referred to as a subcontractor, that assumes, by secondary contract, some or all of the obligations of a general contractor, homebuilder or primary engineer, for the structural addition, alteration, repair, demolition and/or new construction of any appurtenance, building, structure or site, or a portion thereof, governed by the OBC and/or the new construction of one, two and three family dwellings and those new appurtenances directly associated

therewith as regulated by the CBC. In addition, such registration shall also include a person or entity engaged in the aforementioned activities, other than an OCILB licensed specialty contractor, that enters into a contractual agreement with the general contractor, homebuilder or primary engineer for the performance of any portion of the aforementioned activities.

(Ordained by Ord. No. 0406-2007, § 1, eff. Jan. 1, 2008)

Sec. 1106-1-R1. Registered Home Improvement Contractor.

"Registered Home Improvement Contractor" shall mean:

Any person or entity directly engaged in any work by the OBC or CBC involving the repair, replacement, remodeling, alteration, conversion, modernization, improvement, or addition to any land or building, or that portion thereof which is used or designed to be used as a private residence or dwelling place for one, two and three family dwellings and buildings, structures or sites associated therewith governed by the OBC or the CBC; and shall include, but not be restricted to, the construction, replacement, or improvement of driveways, swimming pools, porches, garages, fallout shelters and other improvements to structures or upon land which is adjacent to a dwelling house. "Home improvement contractor" shall not include any person, business or company engaged in:

(1) The construction of a new home building or work done by a contractor in compliance with a guarantee of completion of a new building project, or

(2) The sale of goods or materials by a seller who neither arranges to perform nor performs directly or indirectly any work or labor in connection with the installation of or application of the goods or materials.

(Ordained by Ord. No. 0406-2007, § 1, eff. Jan. 1, 2008)

Sec. 1106-3. General.

(a) The purpose of this chapter is to provide minimum qualification standards for the herein defined areas of construction-related contracting within the corporate limits by requiring that such specific areas of contracting herein regulated will be performed under the supervision, direction and control of registered contractors for the protection of life, limb, health, property and for the safety and welfare of the general public and the owners and occupants of all buildings and structures.

(b) The provisions of this chapter for contractor registration apply to the permitted construction, addition, prefabrication, alteration, repair, demolition, maintenance, new construction, maintenance, repair, replacement, remodeling, alteration, conversion, modernization and improvement of all types of any appurtenance, building, structure or site, or a portion thereof or associated therewith, including the building service equipment associated therewith, that is either governed or regulated by the Cincinnati Building Code (CBC) or the Ohio Building Code (OBC).

(c) For the purpose of this chapter, an architect, professional engineer, or any other such person who is required by Chapter 4703 or Chapter 4733 of the Ohio Revised Code to attain standards of competency or experience as a prerequisite to engaging in such profession is considered a professional service provider. When such an individual is acting exclusively within the scope of the profession for which they are either licensed or registered pursuant to such law, they are exempted from registration as a contractor.

(Ordained by Ord. No. 0406-2007, § 1, eff. Jan. 1, 2008)

Sec. 1106-5. OCILB Licensed Specialty Contractor Registration Required.

No person or entity shall undertake or perform work requiring a permit of any Ohio Construction Industry Licensing Board (OCILB) licensed specialty contractor, as defined by Chapter 4740 and § 715.27(F) of the Ohio Revised Code, within the corporate limits without first obtaining an OCILB licensed specialty contractor registration from the director of buildings and inspections. Such work within the corporation limits shall only be transacted by an OCILB licensed specialty contractor duly registered by the department of buildings and inspections or as otherwise permitted by local, state or federal law or regulation.

In addition, it shall be unlawful for any person other than an owner, officer, partner, or employee of an OCILB licensed specialty contractor, to represent or advertise him or herself, for or without compensation, either publicly or privately, as being ready, willing or able to contract to undertake or offer to undertake, to plan for, lay out, supervise, install and/or make additions, alterations or repairs in or for the building service equipment installation of any electrical, plumbing, heating, ventilating and air conditioning (HVAC), refrigeration or hydronics system in any building or structure governed by the CBC, unless such work will be performed under the direction, supervision and authority of a duly registered OCILB licensed specialty contractor as required by this section.

No OCILB licensed specialty contractor registration shall be required of any person when acting in the particular capacity or particular type of transaction set forth in this subsection as follows:

(1) A tradesperson who performs labor or services for a department-registered OCILB specialty contractor for wages, salary, or compensation of any type, manner or form provided such person is a direct employee or a legally leased tradesperson under the direct supervision of the registered OCILB licensed specialty contractor;

(2) Any retail clerk, clerical, administrative, or other employee of a department-registered OCILB specialty contractor, as to a transaction on the premises of the contractor.

(Ordained by Ord. No. 0406-2007, § 1, eff. Jan. 1, 2008; a. Ord. No. 0032-2008, § 1, eff. March 7, 2008; a. Ord. No. 020-2010, § 7, eff. Feb. 27, 2010; Emer. Ord. No. 238-2015, § 38, eff. July 1, 2015)

Sec. 1106-7. OCILB Licensed Specialty Contractor Registration Requirements.

Upon the payment of the nonrefundable fee and submission of a complete application for an OCILB licensed specialty contractor registration in accordance with § 715.27 of the Ohio Revised Code, the department of buildings and inspections shall immediately issue to such applicant an OCILB licensed specialty contractor registration. The expiration of an OCILB licensed specialty contractor registration shall coincide with the specialty license issued by the OCILB.

The continued validity or renewal of an OCILB licensed specialty contractor registration is dependent upon the continued maintenance of all the following:

(1) A current, valid OCILB specialty contractor license and its required liability insurance coverage;

(2) A bond in favor of and in form acceptable to the City of Cincinnati, which shall be required only if the contractor intends to perform work on property owned by the City of Cincinnati;

(3) State of Ohio workers compensation coverage; and

(4) An account in good standing with the city income tax division.

(Ordained by Ord. No. 0406-2007, § 1, eff. Jan. 1, 2008; a. Ord. No. 0032-2008, § 3, eff. March 7, 2008; a. Ord. No. 020-2010, § 9, eff. Feb. 27, 2010; a. Ord. No. 042-2011, § 1, eff. March 16, 2011; Emer. Ord. No. 238-2015, § 39, eff. July 1, 2015)

Sec. 1106-9. Building Construction Contractor Registration Required.

No person or entity shall undertake or perform work requiring a permit of a registered building construction contractor, as defined in this chapter, without first obtaining a building construction contractor registration from the director of buildings and inspections. Such work within the corporation limits shall only be transacted by a building construction contractor duly registered or as otherwise permitted by local, state or federal law or regulation.

(Ordained by Ord. No. 0406-2007, § 1, eff. Jan. 1, 2008; a. Ord. No. 0032-2008, § 5, eff. March 7, 2008; Emer. Ord. No. 238-2015, § 40, eff. July 1, 2015)

Sec. 1106-11. Building Construction Contractor Registration Requirements.

Any person or entity, before engaging in work requiring a permit as a registered building construction contractor, shall submit an application for such registration to the director of buildings and inspections on a form prescribed therefor, pay the nonrefundable fee and comply with all registration requirements required by this chapter. The department of buildings and inspections, shall review and process the application within a reasonable time and in accordance with the rules, regulations and procedures established by the director of buildings and inspections.

The continued validity or renewal of a building construction contractor registration is dependent upon the continued maintenance of all the following:

(1) Proof of current and valid liability insurance coverage;

(2) A bond in favor of and in form acceptable to the City of Cincinnati, which shall be required only if the contractor intends to perform work on property owned by the City of Cincinnati;

(3) State of Ohio workers compensation coverage; and

(4) An account in good standing with the city income tax division.

(Ordained by Ord. No. 0406-2007, § 1, eff. Jan. 1, 2008; a. Ord. No. 0032-2008, § 7, eff. March 7, 2008; a. Ord. No. 020-2010, § 11, eff. Feb. 27, 2010; a. Ord. No. 042-2011, § 2, eff. March 16, 2011; Emer. Ord. No. 238-2015, § 41, eff. July 1, 2015)

Sec. 1106-13. Home Improvement Contractor Registration Required.

No person or entity shall undertake or perform work requiring a permit of a registered home improvement contractor, as defined in this chapter, without first obtaining a home improvement contractor registration from the director of buildings and inspections. Such work within the corporation limits shall only be transacted by a home improvement contractor duly registered or as otherwise permitted by local, state or federal law or regulation.

(Ordained by Ord. No. 0406-2007, § 1, eff. Jan. 1, 2008; a. Ord. No. 0032-2008, § 9, eff. March 7, 2008; Emer. Ord. No. 238-2015, § 42, eff. July 1, 2015)

Sec. 1106-15. Home Improvement Contractor Registration Requirements.

Any person or entity, before engaging in work requiring a permit as a registered home improvement contractor, shall submit an application for such registration to the director of buildings and inspections on a form prescribed therefor, pay the nonrefundable fee and comply with all registration requirements required by this chapter. The department of buildings and inspections, shall review and process the application within a reasonable time period and in accordance with the rules, regulations and procedures established by the director of buildings and inspections.

The continued validity or renewal of a home improvement contractor registration is dependent upon the continued maintenance of all the following:

(1) Proof of current and valid liability insurance coverage;

(2) State of Ohio workers compensation coverage; and

(3) An account in good standing with the city income tax division.

(Ordained by Ord. No. 0406-2007, § 1, eff. Jan. 1, 2008; a. Ord. No. 0032-2008, § 11, eff. March 7, 2008; a. Ord. No. 020-2010, § 13, eff. Feb. 27, 2010; a. Ord. No. 042-2011, § 3, eff. March 16, 2011; Emer. Ord. No. 238-2015, § 43, eff. July 1, 2015)

Sec. 1106-16. Crane Contractor Registration Requirements.

(a) Any person intending to use a crane to perform work in the corporate limits of the city of Cincinnati shall first obtain a building contractor registration from the director of the building department. A person who obtains a building contractor registration for crane operations and who will use a crane for a particular project is the person responsible for complying with the requirements in this section for that project, regardless of whether the person is the general contractor, a sub-contractor for all crane operations, or a sub-contractor only for a single crane operation.

(b) The continued validity or renewal of a building construction contractor registration for a person intending to use a crane to perform work is dependent upon the continued maintenance of all the following with the director of the building department:

(1) A list of all cranes under the person's supervision and control that it intends to use to perform work, which cranes shall be certified by a qualified person to be in good working order;

(2) A list of all individuals under the person's supervision and control who are authorized to use or operate a crane under the person's control, which individuals shall be qualified to use or operate the applicable crane by an accredited crane organization, for example the National Center for Construction Education and Research (NCCER), National Commission for the Certification of Crane Operators (NCCCO), Crane Inspection and Certification Bureau (CICB), Crane Institute of America (CIA), Crane Institute Certification (CIC), International Union of Operating Engineers (IUOE), International Ironworkers, or another organization whose program aligns with the requirements of the American Society of Mechanical Engineers (ASME) B30 series;

(3) For each individual operator of a crane under the person's supervision or control, proof that the operator is

qualified as a crane operator in accordance with the Occupational Safety & Health Administration's (OSHA) regulations in 29 CFR § 1926.1427, Operator Qualification and Certification;

(4) For each individual under the person's supervision or control who will provide signals to the operator of a crane, proof that the individual is a qualified signaler as per OSHA regulation 29 CFR Part 26, Subpart CC, § 1926.1428;

(5) For each individual under the person's supervision or control who will perform rigging work, proof that the rigger is a qualified person as defined under OSHA regulation 29 CFR Part 1926, Subpart CC, § 1926.1401;

(6) Proof of insurance:

(i) For any person able to provide crane service with a rated lift capacity of no greater than 40 tons, proof that the person holds current and valid liability insurance coverage in an amount no less than $1,000,000 per occurrence and $2,000,000 aggregate with additional umbrella coverage of no less than $4,000,000;

(ii) For any person able to provide crane service with a rated lift capacity of greater than 40 tons, proof that the person holds current and valid liability insurance coverage in an amount no less than $1,000,000 per occurrence and $2,000,000 aggregate with additional umbrella coverage of no less than $10,000,000;

(iii) Alternative insurance arrangements that provide the substantially same amount of coverage required by subsections (i) and (ii) or greater may be approved by the director of buildings and inspections;

(iv) If a person will operate a crane on or above city property or the city's right-of-way, the city must be named as an additional insured and covered to an amount determined by the city's risk manager.

(Ordained by Ord. No. 092-2016, § 3, eff. Aug. 1, 2016)

Sec. 1106-17. Permits.

A permit required by the provisions of the OBC or the CBC shall be issued only to an OCILB licensed specialty contractor, building construction contractor or home improvement contractor holding a valid registration as required herein, or to a homeowner exempted from registration under this chapter and that permit may be issued to an OCILB licensed specialty contractor, building construction contractor or home improvement contractor only for work in the areas for which the contractor holds a valid registration. A homeowner exempted from registration under this chapter shall provide with the permit application the name of the general contractor the homeowner intends to use on the project for which a permit is being sought. An OCILB licensed specialty contractor, building construction contractor or home improvement contractor shall provide with the permit application the names of the known subcontractors, if any, they plan to utilize on the project for which they seek the permit.

(Ordained by Ord. No. 0406-2007, § 1, eff. Jan. 1, 2008)

Sec. 1106-19. Certificate of Occupancy.

A general contractor shall provide with the request for certificate of occupancy a list

of all subcontractors used on the project for which the certificate of occupancy is being sought.
(Ordained by Ord. No. 0406-2007, § 1, eff. Jan. 1, 2008)

Sec. 1106-21. Rules and Regulations.

The director of buildings and inspections is authorized to establish rules, regulations and procedures consistent with the intent of this chapter, and to perform such duties as are necessary and appropriate to the administration of this chapter. Such rules and regulations shall include, but not be limited to, registration and application requirements, exemptions, application forms, contractor classifications and descriptions, same day processing fee, late fees, assignment requirements and changes to assignment, revocation, suspension or expiration of registration, insurance and bond requirements and chapter enforcement. Said rules, regulations and procedures shall not be inconsistent with the provisions of this chapter, the Cincinnati Municipal Code, or state and federal laws and regulations. All such fees shall be nonrefundable.
(Ordained by Ord. No. 0406-2007, § 1, eff. Jan. 1, 2008; a. Ord. No. 0032-2008, § 13, eff. March 7, 2008; a. Ord. No. 355-2009, § 1, eff. Dec. 25, 2009; Emer. Ord. No. 238-2015, § 44, eff. July 1, 2015)

Sec. 1106-23. Registration Fees.

The initial registration and annual renewal fee for all registrations required under this chapter shall be $125.00 payable to the department of buildings and inspections, as provided by this chapter and the rules and regulations promulgated by the director of buildings and inspections.
(Ordained by Ord. No. 0406-2007, § 1, eff. Jan. 1, 2008; a. Ord. No. 0032-2008, § 15, eff. March 7, 2008; a. Ord. No. 355-2009, § 3, eff. Dec. 25, 2009; a. Ord. No. 020-2010, § 15, eff. Feb. 27, 2010; Emer. Ord. No. 238-2015, § 45, eff. July 1, 2015)

Sec. 1106-25. Expiration and Renewal.

An applicant may apply for a registration for a one, two or three-year period. Registration shall be renewable during the 30-day period immediately preceding the expiration date.
(Ordained by Ord. No. 0406-2007, § 1, eff. Jan. 1, 2008)

Sec. 1106-27. Suspension and Revocation of Registration.

Any registration as provided for in this chapter may be revoked, suspended or refused by the director of buildings and inspections for good cause shown including, but not limited to the following:

(1) Misrepresentation or false statement made in obtaining a registration;

(2) Any violation of a provision of this chapter or of the rules and regulations promulgated hereunder, or failure to comply with any provision of this chapter or of the rules and regulations promulgated hereunder or lawful order of the director of buildings and inspections;

(3) Any failure to comply with the provisions of this chapter, the laws and regulations of the State of Ohio, or the ordinances of the City of Cincinnati, the CBC or failure to provide the level of services set forth in the application and by the director of buildings and inspections;

(4) The registration holder used its registration to obtain a permit for another;

(5) The registration holder failed to secure permits, inspections and approvals required by the OBC or the CBC;

(6) The registration holder repeatedly installed work in an unworkmanlike manner or not in conformity with permits issued;

(7) The holder repeatedly has been notified of violations of the OBC or the CBC and, has failed or refused to promptly correct any violation or part of it;

(8) There have been repeated incidents of returned checks for insufficient funds or stop payment without just cause.

If the director of buildings and inspections determines that probable grounds exist for denial, suspension, or revocation of a registration under this chapter, the director of buildings and inspections shall notify the applicant or registered party or entity (respondent) in writing of the denial, suspension or revocation of the registration, including the findings and conclusions therefor, by personal delivery, or by certified mail. The notification shall be directed to the most current business address on file with the department of buildings and inspections.
(Ordained by Ord. No. 0406-2007, § 1, eff. Jan. 1, 2008; a. Ord. No. 0032-2008, § 17, eff. March 7, 2008; a. Ord. No. 020-2010, § 17, eff. Feb. 27, 2010; Emer. Ord. No. 238-2015, § 46, eff. July 1, 2015)

Sec. 1106-29. Registration Rights.

No person or entity holding a registration as provided herein shall loan or extend the right to privileges given thereunder to any person other than the registrant or persons, not including subcontractors, working under the registrant's direction, supervision and authority.
(Ordained by Ord. No. 0406-2007, § 1, eff. Jan. 1, 2008)

Sec. 1106-31. Appeal.

Any denial, suspension or revocation of any registration under this chapter may be appealed to the city manager or person designated by the city manager, who may reverse, affirm or modify the decision of the director of buildings and inspections. Ineligibility penalties for violation of this chapter may also be appealed hereunder. The appeal shall be confined to a review of the written record, including written statements of the appellant and such additional information as may be permitted. The review on appeal shall be limited to consideration of the standards and requirements set forth in this chapter. The city manager or the designee may adopt the findings and conclusions issued by the director of buildings and inspections or make such other findings and conclusions as appropriate.
(Ordained by Ord. No. 0406-2007, § 1, eff. Jan. 1, 2008; Emer. Ord. No. 0033-2008, § 1, eff. Feb. 6, 2008; Emer. Ord. No. 238-2015, § 47, eff. July 1, 2015)

Sec. 1106-33. Non-warranty.

Responsibility for acceptable quantity and quality of work performed and for materials used by any registered contractor rests with the individual contractor. The City of Cincinnati makes no warranty relative thereto.
(Ordained by Ord. No. 0406-2007, § 1, eff. Jan. 1, 2008)

Sec. 1106-35. State and Federal Law.

The provisions of this chapter shall be enforced unless otherwise provided, authorized or prohibited by state or federal law or regulation.
(Ordained by Ord. No. 0406-2007, § 1, eff. Jan. 1, 2008)

Sec. 1106-37. Homeowner's Exception.

No provision herein shall be interpreted to require that the owner of a one, two or

three family dwelling shall be registered under this chapter in order to personally perform work upon the premises, provided the same will be occupied by said owner for at least one year. All work done by an owner shall be in conformity with the provisions of the OBC and CBC and rules and regulations promulgated under it, and no work shall be done unless owner is in compliance with all permits, inspections and approvals required by the OBC and CBC.
(Ordained by Ord. No. 0406-2007, § 1, eff. Jan. 1, 2008)

Sec. 1106-99. Penalties.

Whoever violates any provision of this chapter of the Cincinnati Municipal Code shall be subject to a Class D Civil Offense as defined by Cincinnati Municipal Code section 1501-9, and subject to a 50 percent reduction for correction of the violation as set forth in section 1501-9(a) and shall be ineligible to be registered under this chapter for a period of one year from the date of the violation, unless it is shown in accordance with section 1501-15 that the violation has been corrected.

If a person or entity has previously been found to have violated a provision of this chapter within one year that person or entity may be charged as a second offender and on being found to have committed a second or subsequent offense is liable for the civil fine for the subsequent offense provided in Cincinnati Municipal Code section 1501-9(a), which fine is specified in section 1501-99 and is not subject to reduction for correction of the violation and shall be ineligible to be registered under this chapter for a period of one year from the date of the violation.
(Ordained by Ord. No. 0406-2007, § 1, eff. Jan. 1, 2008; Emer. Ord. No. 0033-2008, § 3, eff. Feb. 6, 2008)

Chapter 1107

ELEVATOR AND CONVEYER EQUIPMENT*

Sec. 1107-01. General.
Sec. 1107-01-E. Elevator.
Sec. 1107-03. Elevator Permits.
Sec. 1107-05. Certificates of Inspection and Operation.
Sec. 1107-07. Posting of Certificate of Inspection and Operation.
Sec. 1107-09. Periodic Inspections.
Sec. 1107-11. Responsibility of Owner or Person in Control.
Sec. 1107-13. Enforcement.
Sec. 1107-15. Power to Seal.
Sec. 1107-17. Accidents.
Sec. 1107-19. Appeals.
Sec. 1107-21. Reference Standard.
Sec. 1107-23. Effective Date.

*__Editor's note—__Emer. Ord. No. 329-2016, §§ 4 and 5, eff. Oct. 19, 2016, repealed Ch. 1107 and enacted a new chapter as set out herein. The former Ch. 1107, §§ 1107-1—1107-35, pertained to elevator, dumbwaiter and conveyer equipment, installation and maintenance and derived from Ord. No. 67-1996, effective April 5, 1996; Ord. No. 404-1996, effective Dec. 18, 1996; Ord. No. 357-1998, effective Oct. 16, 1998; Ord. No. 59-2002, effective March 28, 2002; and Emer. Ord. 114-2014, § 3, effective June 4, 2014.

Sec. 1107-01. General.

(a) The provisions of this Chapter shall govern the construction, installation, alteration, maintenance, operation, inspection, and testing of all elevators, dumbwaiters, buck hoists, escalators, moving walks, belt manlifts, and special hoisting and conveying equipment hereafter operated, installed, relocated, or altered within the city of Cincinnati.

(b) Except as otherwise provided herein, the construction, installation, alteration, maintenance, operation, inspection, and testing of elevators shall conform to the standards referenced in Section 1107-23, Ohio Administrative Code 4101: 5-3-01 and ANSI/ASSE, "Personnel Hoists and Employee Elevators on Construction and Demolition Site."

(c) The provisions of this chapter shall not apply to portable elevating devices used to handle materials only.

(d) Notwithstanding any other provisions of this chapter, the director may permit the installation of vertical wheelchair lifts to provide for accessibility where such lifts exceed the maximum travel distance of 12 feet upon the demonstration of a hardship and an equivalent degree of safety.
(Ordained by Emer. Ord. No. 329-2016, § 5, eff. Oct. 19, 2016; a. Ord. No. 287-23, § 1, eff. August 2, 2023)

Sec. 1107-01-E. Elevator.

"Elevator" shall mean elevators, buck hoists, escalators, moving walks, belt manlifts, and special hoisting and conveying equipment, but it does not include portable elevating devices used to handle materials only.
(Ordained by Emer. Ord. No. 329-2016, § 5, eff. Oct. 19, 2016)

Sec. 1107-03. Elevator Permits.

(a) The owner or person in control of a premises, building, or structure wherein an elevator is to be constructed, installed, or altered must obtain an elevator permit prior to the construction, installation, or alteration of the elevator.

(b) Application to construct, install, or alter an elevator shall be made on forms prescribed by the director, which form shall include a right of entry authorizing the director to conduct all tests and inspections necessary at reasonable times to determine that the elevator is safe for operation and complies with the requirements of this Chapter, the CBC, the OBC, and the standards incorporated by Section 1107-21.

(c) All applications to construct, install, or alter an elevator must also be accompanied by the applicable fee established pursuant to Section 1101-85.

(d) The director shall issue an elevator permit to an applicant upon determining that an application is complete and meets all applicable requirements of this Chapter, the CBC, the OBC, and the standards incorporated by Section 1107-21.
(Ordained by Emer. Ord. No. 329-2016, § 5, eff. Oct. 19, 2016)

Sec. 1107-05. Certificates of Inspection and Operation.

(a) No person shall operate or permit the operation of an elevator without first obtaining a certificate of inspection and operation or a limited certificate of inspection and operation.

(b) The director has the responsibility to conduct all tests and inspections necessary to determine that the construction, installation, or alteration of an elevator for which a permit has been issued, including its weights, guides, supports, safety devices, and

machinery connected therewith, complies with the requirements of this Chapter, the CBC, the OBC, and the standards incorporated by Section 1107-21.

(c) The director shall issue a certificate of inspection and operation upon determining that an elevator is safe for operation and complies with the requirements of this Chapter, the CBC, the OBC, and the standards incorporated by Section 1107-21. A certificate of inspection and operation shall permit the ongoing operation of the elevator, subject to periodic inspections as required by Section 1107-13.

(d) The director may issue a limited certificate of inspection and operation authorizing the use of an elevator during a period of construction, installation, or alteration of a building or structure requiring use of the elevator, subject to any conditions and limitations the director deems necessary to ensure the safe operation of the elevator. Any person permitted to operate the elevator during this period of construction, installation, or alteration must be a contractor registered pursuant to Chapter 1106 of the CBC and must provide the director with proof of liability insurance as required by Chapter 1106 of the CBC.

(e) The director may impose specific conditions on the issuance of a certificate of inspection and operation or a temporary certification of inspection when necessary to ensure an elevator's safe operation or to otherwise provide for the safety, health, and general welfare of a building's occupants or the general public.
(Ordained by Emer. Ord. No. 329-2016, § 5, eff. Oct. 19, 2016)

Sec. 1107-07. Posting of Certificate of Inspection and Operation.

The owner or person in control of a premises, building, or structure wherein an elevator is installed and operated shall post the last issued certificate of inspection and operation in a conspicuous place inside, on, or immediately adjacent to, the elevator. The director shall have the discretion to permit the posting of a certificate of inspection and operation in an alternative location provided that the location of the certificate is posted in a conspicuous place inside, on, or immediately adjacent to the elevator.
(Ordained by Emer. Ord. No. 329-2016, § 5, eff. Oct. 19, 2016)

Sec. 1107-09. Periodic Inspections.

(a) The owner or person in control of a premises, building, or structure wherein an elevator is installed and operated shall cause the elevator to be inspected and tested to ensure it is properly maintained and safe for operation consistent with the standards of this Chapter, the CBC, the OBC, and the standards incorporated by Section 1107-21, according to the following schedule:

(1) *Quarterly:* all elevators used for building construction shall be inspected at intervals no greater than once a quarter every calendar year.

(2) *Annual inspections:* all permanently installed power dumbwaiters, hoists, and other lifting or lowering apparatus must be inspected on or before the first day of January of each year.

(3) *Semiannual inspections:* all other elevators must be inspected on or before the first day of January and the first day July of each year.

(b) Periodic inspections shall be made in addition to the foregoing if the director has cause to believe that an elevator poses a unique safety risk to a building's occupants, emergency responders, or the general public.

(c) Elevators located within a premises, building, or structure governed by the Residential Code of Ohio are not subject to the inspection and testing requirements contained in this Section.

(d) The owner or person in control of a premises, building, or structure must pay the applicable elevator inspection fee established pursuant to Section 1101-85 for each inspection performed by the director pursuant to this section. An owner or person in control of a premises, building, or structure who fails to cause an elevator to be timely inspected pursuant to this section must also pay the additional late fee established pursuant to Section 1101-85 for each elevator that is not timely inspected.
(Ordained by Emer. Ord. No. 329-2016, § 5, eff. Oct. 19, 2016; Emer. Ord. No. 163-2018, § 9, eff. July 1, 2018)

Sec. 1107-11. Responsibility of Owner or Person in Control.

(a) The owner and each person in control of a premises, building, or structure wherein an elevator is installed and operated shall be responsible for the safe operation and maintenance of the elevator.

(b) The owner or person in control shall notify the director of any change in ownership of a premises, building, or structure in which an elevator regulated by this Chapter is located.
(Ordained by Emer. Ord. No. 329-2016, § 5, eff. Oct. 19, 2016)

Sec. 1107-13. Enforcement.

(a) The director is authorized to issue civil and criminal orders and citations to enforce the regulations of this Chapter in addition to any other enforcement authority granted to the director under this Chapter and the CBC. The director may also petition the City Solicitor to commence an appropriate legal action against any person found to be in violation of the provisions of this Chapter.

(b) The director is authorized to enter any premises, building, or structure in the city wherein an elevator is installed to perform the inspection and testing required by this Chapter, subject to the provisions of Section 1101-45 of the CBC.

(c) It shall be unlawful for any person to interfere with, obstruct, or cause delay in the performance of the director's duties under this Chapter.

(d) Whoever fails to comply with the requirements of this Chapter shall be liable for a Class D Civil Offense, as defined by Cincinnati Municipal Code Section 1501-9(a), for an initial offense. For each subsequent offense occurring within one year after having once been notified of an initial offense under Cincinnati Municipal Code Section 1501-9(a), any person who fails to comply with the requirements of this Chapter shall be liable for a Class E Civil Offense, as defined by Cincinnati Municipal Code § 1501-9(a). Each additional day that a person fails to comply with the requirements of this Chapter shall constitute a separate civil offense.

(e) Unless otherwise specifically provided for, the service of any notice required by this Chapter may be made in the following ways:

(1) By personal delivery to the party involved;

(2) By delivery at the residence or the place of business of the party involved;

(3) By mail addressed to the party involved at his or her residence or place of business; or

(4) Where the residence and place of business of the party involved is unknown and cannot be ascertained with reasonable diligence, or where,

for any other reason, personal service or service by mail cannot be made, the notice shall be posted in a conspicuous place on the premises.

(Ordained by Emer. Ord. No. 329-2016, § 5, eff. Oct. 19, 2016)

Sec. 1107-15. Power to Seal.

(a) The director shall have the power to seal out of service any elevator regulated by this Chapter and to revoke the certification of operation and inspection for the elevator, if one exists, for any of the following reasons:

(1) The elevator is constructed, installed, altered, or operated without a permit or certificate of inspection and occupancy;

(2) The owner or person in control of a premises, building, or structure wherein an elevator is installed has failed to cause the elevator to be inspected and tested as required by Section 1107-09;

(3) The director has cause to believe that an elevator poses a dangerous and unsafe risk to the occupants of a building, emergency responders, or the general public; or

(4) The owner or person in control of a premises, building, or structure wherein an elevator is installed has knowingly failed to comply with orders issued by the director pursuant to this Chapter.

(b) The director shall seal an elevator out of service by placing a sign inside, on, or immediately adjacent to the elevator. If access to the elevator is impracticable, the director may seal an elevator out of service by placing a sign in a conspicuous location on the premises, building, or structure wherein the elevator is installed. Upon the sealing of an elevator, the owner or person in control of a premises, building, or structure where the elevator is sealed out of service shall be liable for the elevator seal fee established pursuant to Section 1101-85 for each elevator sealed out of service pursuant to this section.

(c) Prior to sealing an elevator out of service or revoking a certificate of operation, the director shall give at least 14 days' written notice to the owner or person in control and order the elevator to be brought in compliance with the provisions of the CBC or related laws and ordinances; provided, however, the director may immediately seal an elevator out of service if the elevator poses an immediate danger or safety hazard to persons or property, in which case the director shall provide written notice of the sealing to the owner or person in control within three business days thereafter. Any notice provided under this section shall state why the elevator fails to conform to the standards of this Chapter and specify a reasonable period of time, no less than 14 days, in which to bring the elevator into compliance.

(d) Any person who knowingly operates an elevator that has been sealed out of service shall be guilty of a misdemeanor of the first degree.

(Ordained by Emer. Ord. No. 329-2016, § 5, eff. Oct. 19, 2016; Emer. Ord. No. 163-2018, § 9, eff. July 1, 2018)

Sec. 1107-17. Accidents.

(a) The owner or person in control of a premises, building, or structure wherein an elevator has been involved in an accident that resulted in personal injury or damage to property shall notify the director of the accident within one business day of its occurrence.

(b) When an accident involves the failure, breakage, damage, or destruction of any part of the elevator, it shall be unlawful to

operate the elevator until after inspection, testing, and approval by the director. It shall be the duty of the director to make a prompt examination into the cause of the accident and to create a report thereof.

(c) Any person who knowingly fails to report an accident, restrains any person from making a report, or attempts to influence any person against making a report as required by this section shall be guilty of a misdemeanor of the first degree.
(Ordained by Emer. Ord. No. 329-2016, § 5, eff. Oct. 19, 2016)

Sec. 1107-19. Appeals.

Any person adversely affected by a notice of violation, order, or decision of the director made pursuant to this Chapter 1107 may appeal the notice of violation, order, or decision of the director to the Board of Building Appeals pursuant to the procedures set forth in Section 1101-81 and the procedures established by the board.
(Ordained by Emer. Ord. No. 329-2016, § 5, eff. Oct. 19, 2016)

Sec. 1107-21. Reference Standard.

(a) The city of Cincinnati hereby adopts and incorporates the codes and standards found in Ohio Administrative Code 4101: 5-3-01, as they may be amended and modified from time to time, to govern the construction, installation, alteration, maintenance, operation, inspection, and testing of elevators.

(b) The city of Cincinnati hereby adopts and incorporates the codes and standards found in ANSI/ASSE, "Personnel Hoists and Employee Elevators on Construction and Demolition Sites," as they may be amended and modified from time to time, to govern the construction, installation, alteration, maintenance, operation, inspection, and testing of buck hoists, belt manlifts, and other special hoisting and conveying equipment.
(Ordained by Emer. Ord. No. 329-2016, § 5, eff. Oct. 19, 2016)

Sec. 1107-23. Effective Date.

The owner or person in control of the premises, building, or structure wherein one or more elevators is installed and operated shall have six months from the effective date of this Chapter to procure all necessary and required permits, certificates, inspections, and tests.
(Ordained by Emer. Ord. No. 329-2016, § 5, eff. Oct. 19, 2016)

Chapter 1109

FLOOD DAMAGE REDUCTION*

Sec. 1109-1. General Provisions.
Sec. 1109-2. Administration.
Sec. 1109-3. Use and Development Standards for Flood Hazard Reduction.
Sec. 1109-4. Appeals and Variances.
Sec. 1109-5. Enforcement.
Sec. 1109-6. Definitions and Interpretation.

*__Editor's note—__Emer. Ord. No. 0715-2023, §§ 2, 3, adopted May 24, 2023, repealed ch. 1109 and enacted a new ch. 1109 as set out herein. Former ch. 1109 pertained to similar subject matter and derived from Ord. No. 035-2010, §§ 4, 5, adopted February 10, 2010; Emer. Ord. No. 238-2015, §§ 48, 49, effective July 1, 2015.

Sec. 1109-1. General Provisions.

1109-1.1. *Authorization*.

Article XVIII, Section 3 of the Ohio Constitution grants municipalities the legal authority to adopt land use and control measures for promoting the health, safety, and general welfare of its citizens. The city of Cincinnati participates in the Federal Emergency Management Agency's ("FEMA") National Flood Insurance Program ("NFIP"), which makes flood insurance available to residents, business, and property owners. The Council of the city of Cincinnati enacts chapter 1109 of the Cincinnati Building Code ("CBC") to maintain the city's eligibility for the NFIP.

1109-1.2. *Findings of Fact.*

The city has special flood hazard areas that are subject to periodic inundation which may result in loss of life and property, health and safety hazards, disruption of commerce and governmental services, extraordinary public expenditures for flood protection and relief, and impairment of the tax base. Additionally, structures that are inadequately elevated, floodproofed, or otherwise protected from flood damage contribute to flood losses. This chapter is adopted to minimize the threat of such damages and to achieve the purposes hereinafter set forth.

1109-1.3. *Statement of Purpose.*

It is the purpose of this chapter to promote the public health, safety, and general welfare, and to:

A. Protect human life and health;

B. Minimize expenditure of public money for costly flood control projects;

C. Minimize the need for rescue and relief efforts associated with flooding and generally undertaken at the expense of the general public;

D. Minimize prolonged business interruptions;

E. Provide for a fair and efficient process for orderly development within areas of potential flooding;

F. Minimize damage to public facilities and utilities such as water and gas mains; electric, telephone, and sewer lines; streets; and bridges located in areas of special flood hazard;

G. Help maintain a stable tax base by providing for the proper use and development of areas of special flood hazard so as to protect property and minimize future flood blight areas;

H. Ensure that those who occupy the areas of special flood hazard assume responsibility for their actions;

I. Minimize the impact of development on adjacent properties within and near flood prone areas;

J. Ensure that the flood storage and conveyance functions of the floodplain are maintained;

K. Minimize the impact of development on the natural, beneficial values of the floodplain;

L. Prevent floodplain uses that are either hazardous or environmentally incompatible; and

M. Meet community participation requirements of the National Flood Insurance Program.

1109-1.4. *Methods of Reducing Flood Loss.*

To achieve the purposes set forth in Sec. 1109-1.3, this chapter includes provisions for:

A. Restricting or prohibiting uses which are dangerous to health, safety, and

property due to water hazards, or which result in damaging increases in flood heights or velocities;

B. Requiring that uses vulnerable to floods, including facilities that serve such uses, be protected against flood damage at the time of initial construction;

C. Controlling the alteration of natural floodplains, stream channels, and natural protective barriers, which help accommodate or channel flood waters;

D. Controlling filling, grading, dredging, excavating, and other development which may increase flood damage; and

E. Preventing or regulating the construction of flood barriers, which will unnaturally divert flood waters or which may increase flood hazards in other areas.

1109-1.5. *Applicability of Chapter 1109.*

The provisions of this chapter shall apply to all special flood hazard areas within the jurisdiction of the city of Cincinnati, as identified in Section 1109-1.6, including any additional special flood hazard areas annexed by the city of Cincinnati. Section 1109-6.1 provides a list of defined terms used in this chapter.

1109-1.6. *Basis for Establishing Special Flood Hazard Areas.*

For the purposes of this chapter, the following maps and/or studies, as may be revised from time to time, are hereby adopted by reference and declared to be part of this chapter in order to define the special flood hazard areas within the city of Cincinnati:

A. *Flood Insurance Study Hamilton County, Ohio, and Incorporated Areas* and *Flood Insurance Rate Map Hamilton County, Ohio, and Incorporated Areas*, each effective June 7, 2023.

B. Other studies and/or maps approved by the floodplain administrator, which may be relied upon for establishment of the flood protection elevation, delineation of the 100-year floodplain and floodways, or delineation of other areas of special flood hazard.

C. Any hydrologic and hydraulic engineering analysis authored by a registered professional engineer in the state of Ohio which has been approved by the city of Cincinnati as required by Sec. 1109-3.3, "Subdivisions and Other New Developments."

These maps and/or studies are on file in the office of the director of buildings and inspections also referred to herein as the floodplain administrator.

1109-1.7. *Warning and Disclaimer of Liability.*

The degree of flood protection required by this chapter is considered reasonable for regulatory purposes and is based on scientific and engineering considerations. Larger floods can and will occur on rare occasions. Flood heights may be increased by man-made or natural causes. This chapter does not imply that land outside the areas of special flood hazard or uses permitted within such areas will be free from flooding or flood damage. This chapter shall not create liability on the part of the city of Cincinnati, any officer or employee thereof, or the Federal Emergency Management Agency for any flood damage that results from reliance on this chapter, or any administrative decision lawfully made thereunder.
(Ordained by Emer. Ord. No. 715-2023, §§ 2, 3, eff. May 24, 2023)

Sec. 1109-2. Administration.

1109-2.1. *Designation of the Floodplain Administrator.*

The director of buildings and inspections is hereby appointed to administer and implement this chapter and is referred to herein as the floodplain administrator.

1109-2.2. *Duties and Responsibilities of the Floodplain Administrator.*

The duties and responsibilities of the floodplain administrator shall include but are not limited to:

A. Evaluate applications for permits to develop in special flood hazard areas.

B. Interpret floodplain boundaries and provide flood hazard and flood protection elevation information.

C. Issue permits to develop in special flood hazard areas when the provisions of this Chapter 1109 have been met or refuse to issue the same in the event of noncompliance.

D. Inspect buildings and lands to determine whether any violations of this Chapter 1109 have been committed.

E. Make and permanently keep all records for public inspection necessary for the administration of this Chapter 1109, including FIRMs, LOMCs, records of issuance and denial of permits to develop in special flood hazard areas, determinations of whether development is in or out of special flood hazard areas for the purpose of issuing floodplain development permits, elevation certificates, floodproofing certificates, variances, and records of enforcement actions taken for violations of this Chapter 1109.

F. Enforce the provisions of this Chapter 1109.

G. Provide information, testimony, or other evidence as needed during variance hearings.

H. Coordinate map maintenance activities and FEMA follow-up.

I. Conduct substantial damage determinations to determine whether existing structures, damaged from any source and in special flood hazard areas identified by FEMA, must meet the development standards of this Chapter 1109.

1109-2.3. *Floodplain Development Permits.*

Until a floodplain development permit is obtained from the floodplain administrator, it shall be unlawful for any person to begin construction or other development activity wholly within, partially within, or in contact with any identified special flood hazard area, as established in Sec. 1109-1.6, including but not limited to: (i) the excavation, filling, or grading of land; (ii) the construction, alteration, remodeling, or expanding of any structure; or (iii) the alteration of any watercourse. Such floodplain development permit shall show that the proposed development activity is in conformity with the provisions of this Chapter 1109. No such permit shall be issued by the floodplain administrator until the requirements of this Chapter 1109 have been met.

1109-2.4. *Application Required.*

An application for a floodplain development permit shall be required for all development activities located wholly within, partially within, or in contact with an identified special flood hazard area. Such application shall be made by the owner of the property or the owner's authorized agent, herein referred to as the applicant, prior to the actual commencement of such construc-

tion on a form furnished by the floodplain administrator for that purpose. Where it is unclear whether a development site is in a special flood hazard area, the floodplain administrator may require a floodplain development permit application to include a survey certified by a licensed professional surveyor showing the development location. All applications shall include the following information:

A. Site plans drawn to scale showing the nature, location, dimensions, and topography of the area in question; the location of existing and proposed structures, fill, storage of materials, drainage facilities, and the location of the foregoing.

B. Elevation of the existing, natural ground where structures are existing and proposed.

C. Elevation of the lowest floor, including basement, of all existing and proposed structures.

D. Such other material and information as may be requested by the floodplain administrator to determine conformance with and enable enforcement of this Chapter 1109.

E. Technical analyses, as listed below, conducted by the appropriate design professional registered in the state of Ohio and submitted with an application for a floodplain development permit when applicable:

1. Floodproofing certification for non-residential floodproofed structures as required in Section 1109-3.5.

2. Certification that fully enclosed areas below the lowest floor of a structure not meeting the design requirements of Section 1109-3.4(E) are designed to automatically equalize hydrostatic flood forces.

3. Description of any watercourse alteration or relocation that the flood carrying capacity of the watercourse will not be diminished, and maintenance assurances as required in Section 1109-3.9(C).

4. A hydrologic and hydraulic analysis demonstrating that the cumulative effect of the proposed development, when combined with all other existing and anticipated development, will not increase the water surface elevation of the base flood by more than one foot in special flood hazard areas where FEMA has provided base flood elevations but no floodway has been designated as required by Section 1109-3.9(B).

5. A hydrologic and hydraulic engineering analysis showing impact of any development on flood heights in an identified floodway as required by Section 1109-3.9(A).

6. Generation of base flood elevation(s) for subdivisions and other new developments as required by Section 1109-3.3.

F. Payment of any floodplain development permit application fee set by the schedule of fees adopted by Council.

G. For any development to be funded, financed, undertaken, or preempted by the state of Ohio, including, but not limited to (i) development activities in an existing or proposed manufactured home park that are

under the authority of the Ohio Department of Commerce and subject to the flood damage reduction provisions of Ohio Administrative Code Section 4781-12; (ii) major utility facilities permitted by the Ohio Power Siting Board under R.C. Chapter 4906; and (iii) hazardous waste disposal facilities permitted by the Hazardous Waste Siting Board under R.C. Chapter 3734, the applicant shall provide documentation from such state agency stating that the development complies with the minimum NFIP criteria and any applicable local floodplain management resolution or ordinance as required by R.C. Section 1521.13.

H. For any development activities undertaken by a federal agency and which are subject to *Federal Executive Order 11988 - Floodplain Management*, such federal agency has a responsibility to evaluate the potential effects of any actions it may take in a floodplain; to ensure that its planning programs and budget request reflect consideration of flood hazards and floodplain management; and to prescribe procedures to implement the policies and requirements of EO 11988. The applicant shall provide documentation to the floodplain administrator of compliance with this Section 1109-2.4(H).

1109-2.5. *Review and Approval of a Floodplain Development Permit Application.*

A. *Review.*

1. After receipt of a complete application, the floodplain administrator shall review the application to ensure that the standards of this Chapter 1109 have been met. No floodplain development permit application shall be reviewed until all information required by Section 1109-2.4 has been received by the floodplain administrator.

2. The floodplain administrator shall review all floodplain development permit applications to assure that all necessary permits have been received from those federal, state, or local governmental agencies from which prior approval is required. The applicant shall be responsible for obtaining such permits as required including, without limitation, permits issued by the U.S. Army Corps of Engineers under Section 10 of the Rivers and Harbors Act and Section 404 of the Clean Water Act, and the Ohio Environmental Protection Agency under Section 401 of the Clean Water Act.

B. *Approval.* Within thirty days after the receipt of a complete application, the floodplain administrator shall either approve or disapprove the application. If the floodplain administrator is satisfied that the development proposed in the floodplain development application conforms to the requirements of this Chapter 1109, the floodplain administrator shall issue the permit. All floodplain development permits shall be conditioned upon the commencement of work within 180 days. A floodplain development permit shall expire 180 days after issuance unless the permitted activity has been substantially begun and is thereafter pursued to completion.

1109-2.6. *Inspections.*

The floodplain administrator shall make periodic inspections at appropriate times throughout the period of construction in order to monitor compliance with permit conditions.

1109-2.7. *Post-Construction Certifications Required.*

The following as-built certifications are required after a floodplain development permit has been issued:

A. For new or substantially improved residential structures, or nonresidential structures that have been elevated, the applicant shall have a *Federal Emergency Management Agency Elevation Certificate* completed by a registered professional surveyor to record as-built elevation data.

B. For elevated structures in Zone A and Zone AO areas without a base flood elevation, the *Federal Emergency Management Agency Elevation Certificate* may be completed by the property owner or owner's representative.

C. For all development activities subject to the standards of Section 1109-2.10(A), a LOMR.

D. For new or substantially improved nonresidential structures that have been floodproofed in lieu of elevation, where allowed, the applicant shall supply a completed *Floodproofing Certificate for Non-Residential Structures* completed by a registered professional engineer or architect together with associated documentation.

1109-2.8 *Revoking a Floodplain Development Permit.*

A floodplain development permit shall be revocable, if among other things, the actual development activity does not conform to the terms of the application and permit in question. In the event of the revocation of a permit, an appeal may be taken to the board of building appeals in accordance with Section 1109-4.

1109-2.9. *Exemption from Filing a Development Permit.*

An application for a floodplain development permit shall not be required for maintenance work such as roofing, painting, and basement sealing, or for small nonstructural development activities (except for excavation, filling, and grading) valued at less than $2500.

1109-2.10. *Map Maintenance Activities.*

The map maintenance activities in this Section 1109-2.10 are required in order to meet NFIP minimum requirements for FEMA review and approval of flood data, and to ensure that the city of Cincinnati flood maps, studies, and other data identified in Section 1109-1.6 accurately represent current flooding conditions so that floodplain management criteria are based on current data.

A. *Requirement to Submit New Technical Data.*

1. Applications for development that impacts floodway delineations or base flood elevations (as listed below) shall provide the following new technical data, which the city shall submit to FEMA within six months of receipt:

a. Floodway encroachments that increase or decrease base flood elevations or alter floodway boundaries;

b. Fill sites to be used for the placement of proposed structures where the

applicant desires to remove the site from the special flood hazard area;

c. Alteration of watercourses that result in a relocation or elimination of the special flood hazard area, including the placement of culverts; and

d. Subdivision or other new development proposals requiring the establishment of base flood elevations in accordance with Section 1109-3.3.

2. The floodplain administrator shall require a CLOMR prior to the issuance of a floodplain development permit for:

a. Proposed floodway encroachments that increase the base flood elevation; and

b. Proposed development which increases the base flood elevation by more than one foot in riverine areas where FEMA has provided base flood elevations but no floodway.

3. Floodplain development permits issued by the floodplain administrator shall be conditioned upon the applicant obtaining a LOMR from FEMA for any development proposal subject to Section 1109-2.10(A)(1).

4. An applicant shall: (i) prepare all technical data required in accordance with this Section 1109-2.10(A) in a format required for a CLOMR or LOMR, and (ii) submit such technical data to FEMA. Submittal and processing fees for these map revisions shall be the responsibility of the applicant.

B. *Right to Submit New Technical Data.* The floodplain administrator may request that FEMA change any of the information shown on an effective map that does not impact floodplain or floodway delineations or base flood elevations, such as labeling or planimetric details. Such a submission shall include appropriate supporting documentation made in writing by the city manager of the city of Cincinnati and may be submitted at any time.

C. *Annexation / Detachment.* Upon occurrence, the floodplain administrator shall notify FEMA in writing whenever: (i) the boundaries of the city of Cincinnati have been modified by annexation; (ii) the city has assumed authority over an area; or (iii) the city no longer has authority to adopt and enforce the provisions of this Chapter 1109 for a particular area. In order that the city of Cincinnati's FIRM accurately represents the city of Cincinnati boundaries, the floodplain administrator shall include within such notification a copy of a map of the city of Cincinnati suitable for reproduction, clearly showing the new corporate limits or the new area for which the city of Cincinnati has assumed or relinquished floodplain management regulatory authority.

1109-2.11. *Data Use and Flood Map Interpretation.*

The following guidelines shall apply to the use and interpretation of maps and other data showing areas of special flood hazard:

A. In areas where FEMA has not identified special flood hazard areas, or in

FEMA-identified special flood hazard areas where base flood elevation and floodway data have not been identified, the floodplain administrator shall review and reasonably utilize any other flood hazard data available from a federal, state, or other source.

B. Base flood elevations and floodway boundaries identified on FEMA flood maps and studies shall take precedence over base flood elevations and floodway boundaries identified by any other source that reflect a reduced floodway width and/or lower base flood elevations. Other sources of data showing increased base flood elevations or larger floodway areas than are shown on FEMA flood maps and studies shall be reasonably used by the floodplain administrator.

C. The floodplain administrator shall make interpretations, where needed, as to the exact location of the flood boundaries and areas of special flood hazard. A person contesting the determination of the location of the boundary shall be given a reasonable opportunity to appeal the interpretation as provided in Section 1109-4.

D. Where an existing or proposed structure or other development is affected by multiple flood zones, by multiple base flood elevations, or both, the development activity must comply with the provisions of this chapter applicable to the most restrictive flood zone and the highest base flood elevation affecting any part of the existing or proposed structure; or for other developments, affecting any part of the area of the development.

1109-2.12. *Use of Preliminary FIRM and/or Flood Insurance Study Data.*

When assessing the flood hazard risk associated with a particular property in the zones specified below, the floodplain administrator shall apply the following rules:

A. *Zone A:*

1. Within Zone A areas designated on an effective FIRM, data from the preliminary FIRM and/or FIS shall be reasonably utilized as the best available data.

2. When all appeals have been resolved and a notice of final flood elevation determination has been provided in a letter of final determination ("LFD"), base flood elevation and floodway data from the preliminary FIRM and/or FIS shall be used for regulating development.

B. *Zones AE, A1-30, AH, and AO:*

1. Base flood elevation and floodway data from a preliminary FIS or FIRM restudy are not required to be used in lieu of base flood elevation and floodway data contained in an existing effective FIS and FIRM. However:

a. Where base flood elevations increase in a restudied area, communities have the responsibility to ensure that new or substantially improved structures are protected. Communities are encouraged to reasonably utilize preliminary FIS or FIRM data in instances where base flood elevations increase and floodways are revised to ensure that the health, safety, and property of their citizens are protected; and

b. Where base flood elevations decrease, preliminary FIS or FIRM data should not be used to regulate floodplain development until the LFD has been issued or until all appeals have been resolved.

2. If a preliminary FIRM or FIS has designated floodways where none had previously existed, communities should reasonably utilize this data in lieu of applying the encroachment performance standard of Section 1109-3.9(B) because the data in the draft or preliminary FIS represents the best data available.

C. *Zones B, C, and X:*

Use of base flood elevation and floodway data from a preliminary FIRM or FIS is not required for areas designated as Zone B, C, or X on the effective FIRM which are being revised to Zone AE, A1-30, AH, AO, VE, or V1-30. Communities are encouraged to reasonably utilize preliminary FIS or FIRM data to ensure that the health, safety, and property of their citizens are protected.

1109-2.13. *Substantial Damage Determinations.*

When a structure has suffered damage, including, but not limited to damage resulting from flood, tornado, wind, snow, or fire, the property owner shall report such damage to the floodplain administrator. The floodplain administrator shall take the following steps to determine whether the structure has suffered substantial damage as defined in Section 1109-6.1:

A. Determine whether damaged structures are located in special flood hazard areas;

B. Conduct substantial damage determinations for damaged structures located in special flood hazard areas; and

C. Require owners of substantially damaged structures to obtain a floodplain development permit prior to repair, rehabilitation, or reconstruction. The language of this Section 1109-2.13(C) shall not be interpreted to limit the requirements of Section 1109-2.3 as to the need to obtain a floodplain development permit for all construction or development activity in a special flood hazard area regardless of whether or not it is substantially damaged.

Additionally, the floodplain administrator may implement other measures to assist with the substantial damage determination and subsequent repair process. These measures include issuing press releases, public service announcements, and other public information materials related to the floodplain development permits and repair of damaged structures; coordinating with other federal, state, and local agencies to assist with substantial damage determinations; providing owners of damaged structures materials and other information related to the proper repair of damaged structures in special flood hazard areas; and assisting owners of substantially damaged structures with increased-cost-of-compliance insurance claims.

(Ordained by Emer. Ord. No. 715-2023, §§ 2, 3, eff. May 24, 2023)

Sec. 1109-3. Use and Development Standards for Flood Hazard Reduction.

The following use and development standards apply to development wholly

within, partially within, or in contact with a special flood hazard area as established in this Chapter 1109.

1109-3.1. *Use Regulations.*

A. *Permitted Uses.*

All uses not otherwise prohibited in this section or any other applicable land use regulation adopted by the city of Cincinnati are allowed provided they meet the provisions of this Chapter 1109.

1109-3.2. *Water and Wastewater Systems.*

The following standards apply to all water supply, sanitary sewerage, and waste disposal systems in the absence of a more restrictive standard provided under the Ohio Revised Code or applicable state rules:

A. All new and replacement water supply systems shall be designed to minimize or eliminate infiltration of floodwaters into the systems;

B. New and replacement sanitary sewerage systems shall be designed to minimize or eliminate infiltration of flood waters into the systems and discharge from the systems into flood waters; and,

C. On-site waste disposal systems shall be located to avoid impairment to or contamination from them during flooding.

1109-3.3. *Subdivisions and Other New Developments.*

A. All subdivision proposals and all other proposed new development shall be consistent with the need to minimize flood damage and are subject to all applicable standards in this Chapter 1109.

B. All subdivision proposals and all other proposed new development shall have public utilities and facilities such as sewer, gas, electrical, and water systems located and constructed to minimize or eliminate flood damage.

C. All subdivision proposals and all other proposed new development shall have adequate drainage provided to reduce exposure to flood damage.

D. In all areas of special flood hazard where base flood elevation data are not available, the applicant shall provide a hydrologic and hydraulic engineering analysis that generates base flood elevations for all subdivision proposals and other proposed developments containing at least fifty lots or five acres, whichever is less.

E. The applicant shall meet the requirement to submit technical data to FEMA in Section 1109-2.10(A)(1)(d) when a hydrologic and hydraulic analysis is completed that generates base flood elevations as required by Section 1109-3.3(D).

1109-3.4. *Residential Structures.*

The requirements of this Section 1109-3.4 apply to new construction of residential structures and to substantial improvements of residential structures in zones A, A1-30, AE, AO, and AH, in special flood hazard areas designated on the city of Cincinnati's effective FIRM, or in special flood hazard areas designated on a preliminary or final FIRM issued by FEMA under the circumstances provided in Section 1109-2.12.

A. New construction and substantial improvements shall be anchored to prevent flotation, collapse, or lateral movement of the structure resulting from hydrodynamic and hydrostatic loads, including the effects of buoyancy. Where a structure, including its foundation members, is elevated on fill to or above the base

flood elevation, the requirements for anchoring (Section 1109-3.4(A)) and construction materials resistant to flood damage (Section 1109-3.4(B)) are satisfied.

B. New construction and substantial improvements shall be constructed with methods and materials resistant to flood damage.

C. New construction and substantial improvements shall be constructed with electrical, heating, ventilation, plumbing, and air conditioning equipment and other service facilities that are designed and/or elevated so as to prevent water from entering or accumulating within the components during conditions of flooding.

D. New construction and substantial improvement of any residential structure, including manufactured homes, shall have the lowest floor, including basement, elevated to or above the flood protection elevation. In Zone AO areas with no elevations specified, the structure shall have the lowest floor, including basement, elevated at least two feet above the highest adjacent natural grade.

E. New construction and substantial improvements, including manufactured homes, that do not have basements and that are elevated to the flood protection elevation using pilings, columns, posts, or solid foundation perimeter walls with openings to allow the automatic equalization of hydrostatic pressure, may have an enclosure below the lowest floor provided the enclosure meets the following standards:

Be used only for the parking of vehicles, building access, or storage; and

1. Be designed and certified by a registered professional engineer or architect to automatically equalize hydrostatic flood forces on exterior walls by allowing for the entry and exit of floodwaters; or

2. Have a minimum of two openings on different walls having a total net area not less than one square inch for every square foot of enclosed area, and the bottom of all such openings being no higher than one foot above grade. The openings may be equipped with screens, louvers, or other coverings or devices provided that they permit the automatic entry and exit of floodwaters.

F. Manufactured homes shall be affixed to a permanent foundation and anchored to prevent flotation, collapse, or lateral movement of the structure resulting from hydrodynamic and hydrostatic loads, including the effects of buoyancy. Methods of anchoring may include, but are not limited to, use of over-the-top or frame ties to ground anchors.

G. In AO and AH Zones, new construction and substantial improvement shall have adequate drainage paths around structures on slopes to guide floodwaters around and away from the structure.

1109-3.5. *Nonresidential Structures.*

The requirements of this Section 1109-3.5 apply to new construction and to substantial improvements of nonresidential structures in zones A, A1-30, AE, AO, and AH, in special flood hazard areas designated on the community's effective FIRM, or in special flood hazard areas designated on a

preliminary or final FIRM issued by FEMA under the circumstances provided in Section 1109-2.12.

A. New construction and substantial improvements of any commercial, industrial, or other nonresidential structure shall be anchored to prevent flotation, collapse, or lateral movement of the structure resulting from hydrodynamic and hydrostatic loads, including the effects of buoyancy. Where a structure, including its foundation members, is elevated on fill to or above the base flood elevation, the requirements for anchoring in this Section 1109-3.5(A) and construction materials resistant to flood damage Section 1109-3.5(B) are satisfied.

B. New construction and substantial improvements of any commercial, industrial, or other nonresidential structure shall be constructed with methods and materials resistant to flood damage.

C. New construction and substantial improvements of any commercial, industrial, or other nonresidential structure shall be constructed with electrical, heating, ventilation, plumbing, and air conditioning equipment and other service facilities that are designed and/or elevated so as to prevent water from entering or accumulating within the components during conditions of flooding.

D. New construction and substantial improvements of any commercial, industrial, or other nonresidential structure, including manufactured homes, that do not have basements and that are elevated to the flood protection elevation using pilings, columns, posts, or solid foundation perimeter walls with openings to allow the automatic equalization of hydrostatic pressure may have an enclosure below the lowest floor provided the enclosure meets the following standards:

1. Be used only for the parking of vehicles, building access, or storage; and

   a. Be designed and certified by a registered professional engineer or architect to automatically equalize hydrostatic flood forces on exterior walls by allowing for the entry and exit of floodwaters; or

   b. Have a minimum of two openings on different walls having a total net area not less than one square inch for every square foot of enclosed area, and the bottom of all such openings being no higher than one foot above grade. The openings may be equipped with screens, louvers, or other coverings or devices provided that they permit the automatic entry and exit of floodwaters.

E. Manufactured homes and manufactured structures shall be affixed to a permanent foundation and anchored to prevent flotation, collapse, or lateral movement of the structure resulting from hydrodynamic and hydrostatic loads, including the effects of buoyancy. Methods of anchoring may include, but are not limited to, use of over-the-top or frame ties to ground anchors.

F. New construction and substantial improvement of any commercial, industrial, or other non-residential

structure shall either have the lowest floor, including basement, elevated to or above the level of the flood protection elevation; or, together with attendant utility and sanitary facilities, shall meet all of the following standards:

1. Be dry floodproofed so that the structure is watertight with walls substantially impermeable to the passage of water to the level of the flood protection elevation;
2. Have structural components capable of resisting hydrostatic and hydrodynamic loads and effects of buoyancy; and
3. Be certified by a registered professional engineer or architect, through the use of a FEMA floodproofing certificate, that the design and methods of construction are in accordance with Sections 1109-3.5(F)(1) and (2).

G. In Zone AO areas with no elevations specified, the structure shall have the lowest floor, including basement, elevated at least two feet above the highest adjacent natural grade.

1109-3.6. *Accessory Structures.*

A. Accessory structures that are greater than 600 square feet must comply with the requirements applicable to the principal structure.

B. Accessory structures located within zones A, A1-30, AE, AO, and AH that are 600 square feet or less and are used exclusively for parking and/or storage are exempt from elevation and dry floodproofing standards, but must meet all of the following standards:

1. They shall not be used for human habitation;
2. They shall be constructed of flood resistant materials;
3. They shall be constructed and placed on the lot to offer the minimum resistance to the flow of floodwaters;
4. They shall be firmly anchored to prevent flotation;
5. Service facilities, such as electrical and heating equipment, shall be elevated or floodproofed to or above the level of the flood protection elevation; and
6. They shall meet the opening requirements of Section 1109-3.4(E)(1)(b).

1109-3.7. *Recreational Vehicles.*

Recreational vehicles on sites within zones A, A1-A30, AE, AO, or AH must meet one of the following standards:

A. They shall not be located on sites in special flood hazard areas for more than 180 days; or

B. They must be fully licensed and ready for highway use; or

C. They must be placed on the site pursuant to a floodplain development permit issued under Sections 1109-2.3 and 2.4 and meet all standards of Section 1109-3.4.

1109-3.8. *Gas or Liquid Storage Tanks.*

Within zone A, A1-A30, AE, AO, or AH, new or substantially improved above ground gas or liquid storage tanks shall be anchored to prevent flotation or lateral movement resulting from hydrodynamic and hydrostatic loads.

1109-3.9. *Assurance of Flood Carrying Capacity.*

Pursuant to the purpose and methods of reducing flood damage stated in this Chapter

1109, the following additional standards are adopted to assure that the reduction of the flood-carrying capacity of watercourses is minimized:

A. *Development in Floodways.*

1. Except as otherwise provided in this section, development in floodway areas shall cause no increase in flood levels during the occurrence of the base flood discharge. Prior to issuance of a floodplain development permit, the applicant must submit a hydrologic and hydraulic analysis, conducted by a registered professional engineer, demonstrating that the proposed development would not result in any increase in the base flood elevation; or

2. Development in floodway areas causing increases in the base flood elevation is permitted provided that the applicant completes all of the following:

a. Satisfies the requirements to submit technical data in Section 1109-2.10(A);

b. Provides a credible evaluation, acceptable to the floodplain administrator, of alternatives that would not result in increased base flood elevations and an explanation why these alternatives are not feasible;

c. Certifies that no structures are located in areas that would be impacted by the increased base flood elevation;

d. Demonstrates via documentation that individual notices were provided to all impacted property owners within and outside the community, explaining the impact of the proposed action on their property; and

e. Obtains the approvals of the city manager of the city of Cincinnati and the chief executive officer of any other communities impacted by the proposed actions.

B. *Development in Riverine Areas with Base Flood Elevations but No Floodways.*

1. In riverine special flood hazard areas identified by FEMA where base flood elevation data are provided but no floodways have been designated, the cumulative effect of any proposed development, when combined with all other existing and anticipated development, shall not increase the base flood elevation more than one foot at any point. Prior to issuance of a floodplain development permit, the applicant must submit a hydrologic and hydraulic analysis, conducted by a registered professional engineer, demonstrating that this standard has been met; or

2. In riverine special flood hazard areas identified by FEMA where base flood elevation data are provided but no floodways have been designated, development causing more than a one foot increase in the base flood elevation may be permitted provided the applicant does all of the following:

a. Provides a credible evaluation, acceptable to the

floodplain administrator, of alternatives that would result in a base flood elevation increase of one foot or less and an explanation why these alternatives are not feasible;

b. Satisfies the requirements to submit technical data in Section 1109-2.10(A);

c. Certifies that no structures are located in areas that would be impacted by the increased base flood elevation;

d. Demonstrates via documentation that individual notices were provided to all impacted property owners within and outside the community, explaining the impact of the proposed action on their property; and

e. Obtains the approvals of the city manager of the city of Cincinnati and the chief executive officer of any other communities impacted by the proposed actions.

C. *Alterations of a Watercourse.*

For the purpose of this Chapter 1109, a watercourse is altered when any change occurs within its banks. The extent of the banks shall be established by a field determination of the "bankfull stage." The field determination of "bankfull stage" shall be based on methods presented in Chapter 7 of the *USDA Forest Service General Technical Report RM-245, Stream Channel Reference Sites: An Illustrated Guide to Field Technique* or other applicable publication available from a federal, state, or other authoritative source. For all proposed developments that alter a watercourse, the following standards apply:

1. The bankfull flood carrying capacity of the altered or relocated portion of the watercourse shall not be diminished. Prior to the issuance of a floodplain development permit, the applicant must submit a description of the extent to which any watercourse will be altered or relocated as a result of the proposed development, and a certification by a registered professional engineer that the bankfull flood carrying capacity of the watercourse will not be diminished.

2. Adjacent communities, the U.S. Army Corps of Engineers, and the Ohio Department of Natural Resources, Division of Water, must be notified prior to any alteration or relocation of a watercourse. Evidence of such notification must be submitted to FEMA.

3. The applicant shall be responsible for providing the necessary maintenance for the altered or relocated portion of said watercourse so that the flood carrying capacity will not be diminished. The floodplain administrator may require the permit holder to enter into an agreement with the city of Cincinnati specifying the maintenance responsibilities. If an agreement is required, it shall be made a condition of the floodplain development permit.

4. The applicant shall meet the requirements to submit techni-

cal data in Section 1109-2.10(A)(1)(c) when an alteration of a watercourse results in the relocation or elimination of the special flood hazard area, including the placement of culverts.

(Ordained by Emer. Ord. No. 715-2023, §§ 2, 3, eff. May 24, 2023)

Sec. 1109-4. Appeals and Variances

1109-4.1. *Appeals Board Established.*

The board of building appeals established by Article XXX, Section 5 of the Cincinnati Administrative Code shall serve as the appeals board to hear and decide appeals from rulings, orders, and decisions by the floodplain administrator made under the provisions of this Chapter 1109 and may grant variances from and in accordance with the provisions of this Chapter 1109.

1109-4.2. *Powers and Duties.*

A. The board of building appeals shall hear and decide appeals where it is alleged there is an error in any order, requirement, decision, or determination made by the floodplain administrator in the administration or enforcement of this Chapter 1109.

B. The board of building appeals shall have authority to grant variances in specific and rare cases where the applicant has met the burden of showing clear and convincing proof in accordance with Section 1109-4.5.

1109-4.3. *Appeals and Variances.*

A. Any person affected by any notice, interpretation, ruling, order, or other official action of the floodplain administrator may appeal the ruling to the board of building appeals by filing a notice of appeal within thirty days of the date of such ruling.

B. Any person believing that, owing to unique physical conditions affecting that person's property, strict compliance with the use and development standards of this Chapter 1109 would cause it or surrounding property owners to suffer unnecessary hardship may file an application for a variance.

1109-4.4. *Form of Notices of Appeal and Variance Applications; Public Hearing.*

A. Notices of appeal and applications for variances shall be in writing, signed by the applicant, or agent thereof, and include: (i) the name, address, email, and telephone number of the applicant; (ii) a legal description of the property; (iii) a parcel map; (iv) a description of the existing use of the property; (v) a description of the proposed use, if applicable; and (vi) the location of the floodplain. All notices of appeal and applications for variances shall be filed with the board of building appeals, with a copy provided to the floodplain administrator. Upon receipt of the notice of appeal, the floodplain administrator shall transmit said notice and all pertinent information on which the floodplain administrator's decision was made to the board of building appeals.

B. Notices of appeal shall additionally set forth in writing: (i) the interpretation, ruling, order, or other action appealed from; (ii) the provisions of the CBC and Ohio Building Code and related laws and ordinances involved; (iii) the reason the notice, interpretation, ruling, order, or other official action is claimed to be erroneous with reference to the standard set forth in Section 1109-4.5; and (iv) the prescribed filing fee.

C. Applications for variances shall additionally set forth in writing: (i) a description of the variance sought; (ii) the reason for the variance request with references to the standards and factors set forth in Section 1109-4.5; (iii) supporting evidence and documentation; and (iv) the prescribed filing fee.

D. The board of building appeals shall schedule and hold a public hearing upon receiving a notice of appeal or application for a variance, which notice shall be published in the City Bulletin at least ten days before the date of the hearing. All testimony shall be given under oath. A complete record of the proceedings, except confidential deliberations of the board, shall be kept, including all documents presented and a record of the testimony of all witnesses. The floodplain administrator may present evidence or testimony in opposition to the appeal or variance. All witnesses shall be subject to cross-examination by the adverse party or that party's counsel. Evidence that is not admitted may be proffered and shall become part of the record for appeal. Within a reasonable time following the conclusion of the hearing, the board shall issue a written decision, containing supporting conclusions of fact.

1109-4.5. *Standards and Factors for Reviewing Appeals and Approving Variances.*

A. In its review of a notice of appeal, the board of building appeals shall consider whether the notice, interpretation, ruling, order, or other official action of the floodplain administrator under review is illegal, arbitrary, capricious, unreasonable, or unsupported by the preponderance of the substantial, reliable, and probative evidence presented by the applicant and other parties at the public hearing.

B. In its review of variance applications, the board of building appeals shall consider whether the applicant has demonstrated by clear and convincing evidence that, owing to unique physical conditions affecting its property, strict compliance with the use and development standards of this Chapter 1109 would cause it or surrounding property owners to suffer unnecessary hardship. In making this determination, the board of building appeals shall consider the following factors and all other relevant factors and standards specified in other sections of this Chapter 1109:

1. Any increased risk that materials may be swept onto other lands to the injury of others.

2. Any increased risk to life and property due to flooding or erosion damage.

3. Any increased susceptibility of the proposed facility and its contents to flood damage and the effect of such damage on the individual owner.

4. The importance of the services provided by the proposed facility to the community.

5. The availability of alternative locations or construction alternatives for the proposed use that are not subject to flooding or erosion damage.

6. The necessity to the facility of a waterfront location, where applicable.

7. The compatibility of the proposed use with existing and anticipated development.
8. The relationship of the proposed use to the comprehensive plan and floodplain management program for that area.
9. The safety of access to the property in times of flood for ordinary and emergency vehicles.
10. The expected heights, velocity, duration, rate of rise, and sediment transport of the floodwaters and the effects of wave action, if applicable, expected at the site.
11. The costs of providing governmental services during and after flood conditions, including maintenance and repair of public utilities and facilities such as sewer, gas, electrical, and water systems, and streets and bridges.

C. In addition to its consideration of the standard and factors contained in Section 1109-4.5(B), the board may only issue a variance(s) upon finding all of the following:

1. A showing of good and sufficient cause for the variance(s).
2. Clear and convincing evidence demonstrating unique and unnecessary hardship to the owner or surrounding properties.
3. A determination that failure to grant the variance would result in exceptional hardship due to the physical characteristics of the property. Financial hardship, inconvenience, or aesthetic concerns of meeting the requirements of this Chapter 1109 do not constitute an exceptional hardship to the applicant.
4. A determination that the granting of a variance will not result in increased flood heights beyond that which is allowed in this Chapter 1109; additional threats to public safety; extraordinary public expense, nuisances, fraud on or victimization of the public; or conflict with existing local laws.
5. A determination that the structure or other development is protected by methods to minimize flood damages.
6. A determination that the variance is the minimum necessary, considering the flood hazard, to afford relief.
7. A determination that granting the variance would comply with the NFIP regulations in 44 CFR Section 60.6(a).

D. *Conditions for Variances.*

1. Upon granting a variance, the board of building appeals may attach such conditions to the granting of variances as it deems necessary to further the purposes of this Chapter 1109.
2. Variances shall not be issued within any designated floodway if any increase in flood levels during the base flood discharge would result.
3. Generally, variances may be issued for new construction and substantial improvements to be erected on a lot of one-half acre or less in size contiguous to and surrounded by lots with existing structures constructed below the base flood level, providing items in Sections 1109-4.5(B)(1 to 11) have been fully considered and a

favorable finding as to all of Sections 1109-4.5(C)(1 to 7). As the lot size increases beyond one-half acre, the technical justification required for issuing the variance increases.

4. Any applicant to whom a variance is granted shall be given written notice that the structure will be permitted to be built with a lowest floor elevation below the base flood elevation and the cost of flood insurance will be commensurated with the increased risk resulting from the reduced lowest floor elevation.

1109-4.6. *Appeal to the Court.*

Those aggrieved by the decision of the board of building appeals as to this Chapter 1109 may appeal such decision to the Hamilton County Court of Common Pleas, pursuant to R.C. Chapter 2506.
(Ordained by Emer. Ord. No. 715-2023, §§ 2, 3, eff. May 24, 2023)

Sec. 1109-5. Enforcement.

1109-5.1. *Compliance Required.*

A. No structure or land shall hereafter be located, erected, constructed, reconstructed, repaired, extended, converted, enlarged, or altered without full compliance with the terms of this Chapter 1109 and all other applicable regulations which apply to uses within the jurisdiction of this Chapter 1109, unless specifically exempted from filing for a development permit as stated in Section 1109-2.9.

B. Failure to obtain a floodplain development permit shall be a violation of this Chapter 1109 and shall be punishable in accordance with Section 1109-5.2.

C. Floodplain development permits issued on the basis of plans and applications approved by the floodplain administrator authorize only the use and arrangement of structures and other approved features of a development set forth in such approved plans and applications or amendments thereto. Use, arrangement, or construction contrary to that authorized shall be deemed a violation of this Chapter 1109 and punishable in accordance with Section 1109-5.2.

1109-5.2. *Violations and Penalties.*

A. Violation of the provisions of this Chapter 1109 or failure to comply with any of its requirements shall be deemed to be a strict liability offense and shall constitute a first-degree misdemeanor.

B. Violations may also be cited as a Class D civil offense in accordance with CMC Title XV Code Compliance and Hearings.

C. The director of buildings and inspections shall give notice of violations of the provisions of this Chapter 1109 in accordance with Section 1101-61.

D. Each day a violation continues shall be considered a separate offense.

E. Nothing herein contained shall prevent the city of Cincinnati from taking such other lawful action as is necessary to prevent or remedy any violation. The city of Cincinnati shall prosecute any violation of this Chapter 1109 in accordance with the penalties stated herein.

(Ordained by Emer. Ord. No. 715-2023, §§ 2, 3, eff. May 24, 2023)

Sec. 1109-6. Definitions and Interpretation.

1109-6.1. *Definitions.*

Unless specifically defined elsewhere in this Chapter 1109, the words or phrases used in this Chapter 1109 shall have the meanings defined below, regardless of whether or not the words and phrases are capitalized and shall be interpreted so as to give them the meaning they have in common usage and to give this Chapter 1109 the most reasonable application. When the definitions contained herein conflict with the identical terms contained in 44 CFR Section 59.1, the conflict shall be resolved by giving precedence to the definition creating the more stringent interpretation of this Chapter 1109.

Accessory Structure: A structure on the same lot with, and of a nature customarily incidental and subordinate to, the principal structure.

Appeal: A request for review of the floodplain administrator's interpretation of any provision of this Chapter 1109 or a request for a variance.

Base Flood: The flood having a one percent chance of being equaled or exceeded in any given year. The base flood may also be referred to as the 1% chance annual flood or 100 year flood.

Base (100-Year) Flood Elevation (BFE): The water surface elevation of the base flood in relation to a specified datum, usually the National Geodetic Vertical Datum of 1929 or the North American Vertical Datum of 1988, and usually expressed in Feet Mean Sea Level (MSL). In Zone AO areas, the base flood elevation is the lowest adjacent natural grade elevation plus the depth number (from one to three feet).

Basement: Any area of the building having its floor subgrade (below ground level) on all sides.

Development: Any manmade change to improved or unimproved real estate, including but not limited to buildings or other structures, mining, dredging, filling, grading, paving, excavation, or drilling operations or storage of equipment or materials.

Enclosure Below the Lowest Floor: See "Lowest Floor."

Executive Order 11988 (Floodplain Management): Issued by President Carter in 1977, this order requires that no federally assisted activities be conducted in or have the potential to affect identified special flood hazard areas, unless there is no practicable alternative.

Federal Emergency Management Agency (FEMA): The agency with the overall responsibility for administering the National Flood Insurance Program.

Fill: A deposit of earth material placed by artificial means.

Flood or Flooding: A general and temporary condition of partial or complete inundation of normally dry land areas from:

1. The overflow of inland or tidal waters, and/or
2. The unusual and rapid accumulation or runoff of surface waters from any source.

Flood Hazard Boundary Map (FHBM): Usually the initial map produced by the Federal Emergency Management Agency or U.S. Department of Housing and Urban Development for a community depicting approximate special flood hazard areas.

Flood Insurance Rate Map (FIRM): An official map on which the Federal Emergency Management Agency or the U.S. Department of Housing and Urban Development has delineated the areas of special flood hazard.

Flood Insurance Risk Zones: Zone designations on FHBMs and FIRMs that indicate

the magnitude of the flood hazard in specific areas of a community. Following are the zone definitions:

Zone A: Special flood hazard areas inundated by the 100-year flood in any given year; base flood elevations are not determined.

Zones A1-30 and *Zone AE*: Special flood hazard areas inundated by the 100-year flood in any given year; base flood elevations are determined.

Zone AO: Special flood hazard areas inundated by the 100-year flood in any given year; with flood depths of one to three feet (usually sheet flow on sloping terrain); average depths are determined.

Zone AH: Special flood hazard areas inundated by the 100-year flood in any given year; flood depths of one to three feet (usually areas of ponding); base flood elevations are determined.

Zone A99: Special flood hazard areas inundated by the 100-year flood to be protected from the 100-year flood by a federal flood protection system under construction; no base flood elevations are determined.

Zone B and *Zone X* (shaded): Areas of 500-year flood; areas subject to the 100-year flood with average depths of less than one foot or with contributing drainage area less than one square mile; and areas protected by levees from the base flood.

Zone C and *Zone X* (unshaded): Areas determined to be outside the 500-year floodplain.

Flood Insurance Study (FIS): The official report in which the Federal Emergency Management Agency or the U.S. Department of Housing and Urban Development has provided flood profiles, floodway boundaries (sometimes shown on flood boundary and floodway maps), and the water surface elevations of the base flood.

Floodproofing: Any combination of structural and non-structural additions, changes, or adjustments to structures which reduce or eliminate flood damage to real estate or improved real property, water and sanitary facilities, structures, and their contents.

Flood Protection Elevation (FPE): The Flood Protection Elevation is the base flood elevation plus one foot of freeboard. In areas where no base flood elevations exist from any authoritative source, the flood protection elevation can be historical flood elevations, or base flood elevations determined and/or approved by the floodplain administrator.

Floodway: A floodway is the channel of a river or other watercourse and the adjacent land areas that have been reserved in order to pass the base flood discharge. A floodway is typically determined through a hydraulic and hydrologic engineering analysis such that the cumulative increase in the water surface elevation of the base flood discharge is no more than a designated height. In no case shall the designated height be more than one foot at any point within the community. The floodway is an extremely hazardous area and is usually characterized by any of the following: Moderate to high velocity flood waters, high potential for debris and projectile impacts, and moderate to high erosion forces.

Freeboard: A factor of safety usually expressed in feet above a flood level for the purposes of floodplain management. Freeboard tends to compensate for the many unknown factors that could contribute to flood heights greater than the height calculated for a selected size flood and floodway conditions, such as wave action,

obstructed bridge openings, debris and ice jams, and the hydrologic effect of urbanization in a watershed.

Historic structure: Any structure that is:

1. Listed individually in the National Register of Historic Places (a listing maintained by the U.S. Department of Interior) or preliminarily determined by the Secretary of the Interior as meeting the requirements for individual listings on the National Register;
2. Certified or preliminarily determined by the Secretary of the Interior as contributing to the historical significance of a registered historic district or a district preliminarily determined by the Secretary to qualify as a registered historic district;
3. Individually listed on the State of Ohio's inventory of historic places maintained by the Ohio Historic Preservation Office; or
4. Individually listed on the inventory of historic places maintained by the city of Cincinnati's historic preservation program, which program is certified by the Ohio Historic Preservation Office.

Hydrologic and hydraulic engineering analysis: An analysis performed by a professional engineer, registered in the state of Ohio, in accordance with standard engineering practices as accepted by FEMA, used to determine flood elevations and/or floodway boundaries.

Letter of Map Change (LOMC): A Letter of Map Change is an official FEMA determination, by letter, to amend or revise effective FIRMs, Flood Boundary and Floodway Maps, and FISes. LOMCs are broken down into the following categories:

Letter of Map Amendment (LOMA): A revision based on technical data showing that a property was incorrectly included in a designated special flood hazard area. A LOMA amends the current effective FIRM and establishes that a specific property is not located in a special flood hazard area.

Letter of Map Revision (LOMR): A revision based on technical data that, usually due to manmade changes, shows changes to flood zones, flood elevations, floodplain, and floodway delineations, and planimetric features. One common type of LOMR, a LOMR-F, is a determination concerning whether a structure or parcel has been elevated by fill above the base flood elevation and is, therefore, excluded from the special flood hazard area.

Conditional Letter of Map Revision (CLOMR): A comment by FEMA regarding a proposed project that would, upon construction, affect the hydrologic or hydraulic characteristics of a flooding source and thus result in the modification of the existing regulatory floodway, the effective base flood elevations, or the special flood hazard area. A CLOMR does not amend or revise effective FIRMs, Flood Boundary and Floodway Maps, or FISes.

Lowest floor: The lowest floor of the lowest enclosed area (including basement) of a structure. This definition excludes an "enclosure below the lowest floor" which is an unfinished or flood resistant enclosure usable solely for parking of vehicles, building access, or storage, in an area other than a basement area, provided that such enclosure is built in accordance with the applicable design requirements specified in this Chapter 1109 for enclosures below the lowest floor.

Manufactured home: A structure, transportable in one or more sections, which is built on a permanent chassis and is designed for use with or without a permanent foundation when connected to the required

utilities. The term "manufactured home" does not include a "recreational vehicle." For the purposes of this Chapter 1109, a manufactured home includes manufactured homes and mobile homes as defined in R.C. Chapter 4781.

Manufactured home park: As specified in the Ohio Adm. Code Section 4781-12-01(K), a manufactured home park means any tract of land upon which three or more manufactured homes, used for habitation, are parked, either free of charge or for revenue purposes, and includes any roadway, building, structure, vehicle, or enclosure used or intended for use as part of the facilities of the park. A tract of land that is subdivided and the individual lots are not for rent or rented, but are for sale or sold for the purpose of installation of manufactured homes on the lots, is not a manufactured home park, even though three or more manufactured homes are parked thereon, if the roadways are dedicated to the local government authority. Manufactured home park does not include any tract of land used solely for the storage or display for sale of manufactured homes.

Market value of the structure: The "market improvement value" as determined by the Hamilton County auditor or by a current appraisal of the fair market value of the improvements (not including the land value of the parcel).

Mean sea level: For purposes of the National Flood Insurance Program, the National Geodetic Vertical Datum (NGVD) of 1929 or other datum, to which base flood elevations shown on a community's FIRM are referenced.

National Flood Insurance Program (NFIP): The NFIP is a federal program enabling property owners in participating communities to purchase insurance protection against losses from flooding. This insurance is designed to provide an insurance alternative to disaster assistance to meet the escalating costs of repairing damage to buildings and their contents caused by floods. Participation in the NFIP is based on an agreement between local communities and the federal government that states if a community will adopt and enforce floodplain management regulations to reduce future flood risks to all development in special flood hazard areas, the federal government will make flood insurance available within the community as a financial protection against flood loss.

New construction: For floodplain management purposes, new construction refers to structures for which the "start of construction" commenced on or after the effective date of a floodplain ordinance adopted by the city of Cincinnati and includes any subsequent improvements to such structures. For the purposes of determining insurance rates, structures for which the "start of construction'' commenced on or after the effective date of the initial city of Cincinnati FIRM of October 15, 1982, whichever is later, and includes any subsequent improvements or alterations to such structures regardless of whether the work was performed with or without permits.

Person: Includes any individual or group of individuals, corporation, partnership, association, or any other entity, including state and local governments and agencies. An agency is further defined in R.C. Section 111.15(A)(2) as any governmental entity of the state and includes, but is not limited to, any board, department, division, commission, bureau, society, council, institution, state college or university, community college district, technical college district, or state community college. "Agency" does not include the general assembly, the controlling board, the adjutant general's department, or any court.

Recreational vehicle: A vehicle which is (1) built on a single chassis, (2) 400 square feet or less when measured at the largest horizontal projection, (3) designed to be self-propelled or permanently towable by a light duty truck, and (4) designed primarily not for use as a permanent dwelling but as temporary living quarters for recreational, camping, travel, or seasonal use.

Registered Professional Architect: A person registered to engage in the practice of architecture pursuant to R.C. Chapter 4703.

Registered Professional Engineer: A person registered as a professional engineer pursuant to R.C. Chapter 4733.

Registered Professional Surveyor: A person registered as a professional surveyor pursuant to R.C. Chapter 4733.

Residential building: A non-commercial building designed for habitation by one or more families or a mixed-use building that includes a single family, two-to-four family, or other residential use. Hotels, motels, and dormitories shall be included under this definition.

Special Flood Hazard Area: Also known as "Areas of Special Flood Hazard." The land in the floodplain subject to a one percent or greater chance of flooding in any given year. Special flood hazard areas are designated by FEMA on FIRMs, FISes, Flood Boundary and Floodway Maps and FHBMs as Zones A, AE, AH, AO, A1-30, or A99. Special flood hazard areas may also refer to areas that are flood prone and designated from other federal, state, or local sources of data including but not limited to historical flood information reflecting high water marks, previous flood inundation areas, and flood prone soils associated with a watercourse.

Start of construction: The date the building permit was issued, provided the actual start of construction, repair, reconstruction, rehabilitation, addition, placement, or other improvement was within 180 days of the permit date. The actual start means either the first placement of permanent construction of a structure on a site, such as the pouring of slab or footings, the installation of piles, the construction of columns, or any work beyond the stage of excavation; or the placement of a manufactured home on a foundation. Permanent construction does not include land preparation, such as clearing, grading, and filling; nor does it include the installation of streets and/or walkways; nor does it include excavation for a basement, footings, piers, or foundations or the erection of temporary forms; nor does it include the installation on the property of accessory buildings, such as garages or sheds not occupied as dwelling units or not part of the main structure. For a substantial improvement, the actual start of construction means the first alteration of any wall, ceiling, floor, or other structural part of a building, whether or not that alteration affects the external dimensions of a building.

Structure: A walled and roofed building, manufactured home, or gas or liquid storage tank that is principally above ground.

Substantial Damage: Damage of any origin sustained by a structure whereby the cost of restoring the structure to the "before damaged" condition would equal or exceed fifty percent of the market value of the structure before the damage occurred. Substantial damage also means flood-related damage sustained by a structure on two separate occasions during a ten-year period for which the cost of repairs at the time of each such flood event, on the average, equals or exceeds 25 percent of the market value of the structure before the damage occurred.

Substantial Improvement: Any reconstruction, rehabilitation, addition, or other improvement of a structure, the cost of

which equals or exceeds fifty percent of the market value of the structure before the "start of construction" of the improvement. This term includes improvement of structures, which have incurred "substantial damage," regardless of the actual repair work performed. The term does not, however, include:

1. Any improvement to a structure that falls under the definition of "new construction" in this Chapter 1109.
2. Any project for improvement of a structure to correct existing violations of state or local health, sanitary, or safety code specifications which have been identified by the local code enforcement official and which are the minimum necessary to assure safe living conditions; or
3. Any alteration of or addition to an "historic structure," provided that the alteration or addition would not preclude the structure's continued designation as a "historic structure."

Variance: A grant of relief from the standards of this Chapter 1109.

Violation: The failure of a structure or other development to be fully compliant with this Chapter 1109.

1109-6.2. *Abrogation and Greater Restrictions.*

This Chapter 1109 is not intended to repeal any existing ordinances including subdivision regulations, zoning, or building codes. In the event of a conflict between this Chapter 1109 and any other ordinance, the more restrictive shall be followed. This Chapter 1109 is not intended to repeal, abrogate, or impair any existing ordinance, easement, covenant, or deed restrictions. However, where this Chapter 1109 and another ordinance, easement, covenant, or deed restriction conflict or overlap, whichever imposes the more stringent restrictions shall prevail.

1109-6.3. *Interpretation.*

In the interpretation and application of this Chapter 1109, all provisions shall be:

A. Considered as minimum requirements;

B. Liberally construed in favor of the governing body; and

C. Deemed neither to limit nor repeal any other powers granted under state statutes. Where a provision of this Chapter 1109 may be in conflict with a state or federal law, such state or federal law shall take precedence over this Chapter 1109.

1109-6.4. *Severability.*

Should any section or provision of this Chapter 1109 be declared by the courts to be unconstitutional or invalid, such decision shall not affect the validity of this Chapter 1109 as a whole, or any part other than that declared to be unconstitutional or invalid. (Ordained by Emer. Ord. No. 715-2023, §§ 2, 3, eff. May 24, 2023)

Chapter 1111

PRECAUTIONS DURING BUILDING OPERATIONS

Sec. 1111-01. Protection of Public and Workers.
Sec. 1111-03. Temporary Barricades and Walkways.
Sec. 1111-05. Temporary Uncovered Walks.
Sec. 1111-07. Temporary Covered Walks.
Sec. 1111-09. Outrigger Scaffolds.
Sec. 1111-11. Debris to be Dampened.
Sec. 1111-13. Sandblasting or Building Cleaning Operations.
Sec. 1111-15. Demolition of Buildings or Structure Containing Asbestos Insulation or Fireproofing.
Sec. 1111-17. Special Precautions During Wrecking.

Sec. 1111-01. Protection of Public and Workers.

The director of transportation and engineering shall have the authority to specify all necessary protection for the public rights-of-way, protection of the public and issue associated right of way permits for temporary barricades and walkways in accordance with Chapter 723 CMC. The director of buildings and inspections shall be responsible for ensuring that the required right of way protection specifications relating to construction and demolition regulated by the CBC and OBC are provided prior to the issuance of the right of way protection permits.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 59-2002, eff. March 28, 2002)

Sec. 1111-03. Temporary Barricades and Walkways.

When in the opinion of the agency having jurisdiction, a temporary barricade or walkway is required, the following requirements shall apply:

(1) Where any demolition, building construction, alteration, addition, repair, or excavation is to be made, or when any hazard exists and the public is endangered, a suitable barricade shall be provided along the public way. A walkway capable of supporting a uniform live load of 150 pounds per square foot shall be maintained unless the public agency having jurisdiction authorizes the sidewalk to be fenced and closed. Temporary walkways, where necessary, shall be constructed and maintained in accordance with §§ 1111-05 and 1111-07.

(2) All fences, barriers, or temporary structures of any kind, located on the public way shall be so constructed as not to obstruct vision at the intersection of the street property lines.

(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996)

Sec. 1111-05. Temporary Uncovered Walks.

When in the opinion of the agency having jurisdiction, a temporary uncovered walk is required, such walk shall be not less than four feet wide in the clear and shall be built in a safe, substantial and workmanlike manner, and be maintained in that condition at all times. A smooth substantial handrail shall be provided on the traffic side. A similar handrail or solid fence as deemed necessary shall be required on the inside. The agency having jurisdiction may require a walk of greater width.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996)

Sec. 1111-07. Temporary Covered Walks.

When in the opinion of the public agency having jurisdiction, a temporary covered walk is required, the following requirements shall apply:

(1) The roof of such covered walk, for buildings up to two stories in height, shall be constructed of not less than one layer of two-inch nominal wood plank or equal, supported by well-braced framework and all parts of the roof structure shall be designed to support a live load of not less than 125 pounds per square foot. For buildings exceeding two stories in height, the roof of such walk shall be constructed of not less than two layers, staggered, of two-inch nominal wood plants or equal, supported by well braced framework, and all parts of the roof structure shall be designed to support a live load of not less than 250 pounds

per square foot. Suitable material shall be placed between the layers of such roof to make it waterproof. Such roof construction shall be not less than eight feet clear above the walk and shall be of sufficient width to cover the entire temporary or permanent sidewalk.

(2) All covered walks shall be not less than four feet wide in the clear. However, the agency having jurisdiction may require a walk of greater width.

(3) A solid railing or footboard at least 30 inches high shall be constructed around the entire outer edge of the temporary covered walk. The side adjacent to the property line, between the sidewalk and roof shall be boarded up solidly.

(4) If materials are stored or work is done on the roof of the covered walk, the street sides and ends of the roof shall be protected by a tight curb board not less than one foot high and a railing not less than 30 inches high.

(5) The covered walk shall be adequately lighted between sunset and sunrise or as deemed necessary by the agency having jurisdiction.

(6) Means of access shall be provided for the public from such temporary structure or covered walk to any bus stop. All necessary surface drainage shall be provided for when placing the sills or other parts of the structure.

(7) No permit for the construction of any covered walkway shall be issued by the director of buildings and inspections until the applicant has obtained review and approval from the director of public works.

(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996)

Sec. 1111-09. Outrigger Scaffolds.

During the wrecking of any building or during other construction operations, where deemed necessary, the director of buildings and inspections may require outrigger scaffolds to be constructed on all sides of the building which are within ten feet of a traveled thoroughfare and on all sides that are adjacent to and extend above any occupied building lot. These outrigger scaffolds shall be located not more than two stories below the point where any wrecking or handling of outside wall material is being done. The floor, or platform, of all such outrigger scaffolds shall be tightly laid from the edge of the building and shall be at least eight feet wide with a 42 inch solid railing or footboard at the outside edge. The flooring and its support, or outriggers, shall be capable of sustaining a live load of not less than 125 pounds per square foot.

(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996)

Sec. 1111-11. Debris to be Dampened.

Every contractor or other person, when erecting, altering, repairing, or wrecking any building from which debris is to be moved, or in removing, handling, or hauling debris from any building, shall keep all such debris thoroughly dampened with water so as to prevent excessive dust arising therefrom.

(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996)

Sec. 1111-13. Sandblasting or Building Cleaning Operations.

1111-13.1 *General:* No person shall engage in any sandblasting or building cleaning operation utilizing sand, water, acid, or alkali solutions, grinders, or pneumatic chipping devices unless such operation complies with §§ 1111-13.2 and 1111-13.3 CBC.

1111-13.2 *Control methods:* The director of buildings and inspections shall impose any control methods deemed necessary to control excessive particulate and other pollutants during sandblasting or building cleaning operations and shall be authorized to regulate the times and hours of operation. Waste debris shall be cleaned from the public walks, streets, sills, and other places where particulate may become airborne as work progresses. The director of buildings and inspections shall stop sandblasting or building cleaning operations until adequate control methods are employed to control airborne particulate. Failure to comply with this section shall be deemed sufficient cause to revoke the permit.

1111-13.3 *Sandblasting:* Sandblasting of buildings shall be of "wet-method" application wherein water is entrained with the cleaning medium to prevent excessive dust during cleaning operations. Adequate tarpaulins shall be provided to prevent particulate and water droplets from creating a nuisance when wet sandblasting methods are employed, except that dry sandblasting methods of cleaning may be utilized when the nozzle is operated within a tarpaulin enclosure equipped with suitable means of funneling the dispensed sand and the debris into a suitable container to prevent the waste material from becoming airborne. The disposal of any waste debris shall be in accordance with the applicable regulations of the Ohio environmental protection agency.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996)

Sec. 1111-15. Demolition of Buildings or Structure Containing Asbestos Insulation or Fireproofing.

1111-15.1 *General:* The demolition of any portion of any building, structure, facility, or installation, except for use groups R-2 having not more than four dwelling units, R-3 and R-4 shall be deemed to present a significant risk of exposure to asbestos fibers from the dislodging of asbestos and the said demolition shall be in compliance with 1111-15.2 CBC.

1111-15.2 *Safeguards:* During the demolition of a building, structure, facility, or installation that falls within the purview of 1111-15.1 CBC. precautionary measures shall be required as follows:

(1) Demolition by toppling of walls shall not be permitted, except as may be specifically approved by the director of buildings and inspections.

(2) Wherever practicable, the insulation or fireproofing material of boilers, pipes, and steel members shall be wetted and stripped before toppling of walls is begun. Such waste shall be bagged immediately, and disposed of in the manner described in paragraph (6) of this section.

(3) When demolition by toppling is permitted, such reasonable enclosure for dust emission control, as is compatible with the character of the structure, shall be provided.

(4) Before and during the demolition or toppling of any portion of the structure, adequate wetting shall be provided to suppress the dust.

(5) Debris shall not be dropped or thrown from any floor, but shall be transported by dust-tight chutes or buckets. Such debris shall be wetted sufficiently to preclude dust dispersion at the point of discharge.

(6) The disposal of any debris shall be in accordance with the applicable regulations of the Ohio environmental protection agency.

(7) Signs shall be posted in conspicuous locations around the structure or building being demolished to warn persons of the presence of asbestos fibers.

(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996)

Sec. 1111-17. Special Precautions During Wrecking.

1111-17.1 *General:* The director of buildings and inspections may require special precautions or procedures in certain situations, during the wrecking of buildings for the protection of the public or adjoining properties. Such situations include, but are not limited to, party wall situations, instances in which buildings on adjoining property are so located or are so designed that special care must be exercised in wrecking operations to maintain the structural stability or otherwise protect such buildings, and situations where street or sidewalk barricades or covered walkways shall be required for the protection of the public.

1111-17.2 *Basement or foundation holes:* When any building is removed, the basement or foundation hole shall be filled with noncombustible material and the lot shall be graded, or upon approval of the director of buildings and inspections the owner shall provide and maintain a fence adequate to prevent injury to the public.

(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996)

Chapter 1113

EXCAVATION OR FILLING OF LAND

Sec. 1113-01. Purpose.
Sec. 1113-03. Prohibition of Certain Excavations, Fills, or Grades.
Sec. 1113-05. Setbacks of Tops and Toes of Slopes.
Sec. 1113-07. Protection Against Erosion.
Sec. 1113-09. Relocation of Sewers and Drainage Courses.
Sec. 1113-11. Protection of Existing Sewers.
Sec. 1113-13. Performance Bond.

Sec. 1113-01. Purpose.

The purpose of this Chapter is to safeguard life, limb, property and the public welfare, and the preservation of the natural environment and the stability of hillsides by regulating excavating and filling of land.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996)

Sec. 1113-03. Prohibition of Certain Excavations, Fills, or Grades.

1113-03.1 *Operational Plan:* An excavation and fill permit shall not be issued for an excavation or fill comprising the movement of more than 1,000 cubic yards of material or disturbing one acre or more (whichever is more restrictive), unless the permit application is accompanied by an operational plan determined by the Cincinnati Stormwater Management Utility as sufficient to ensure that the operations are not offensive or objectionable due to erosion, siltation, dust or construction site pollutants. The operational plan must include:

(1) A narrative description of the site that includes:

(a) Total area of the site;

(b) Area of the site that is expected to be disturbed;

(c) A calculation of the area-weighted runoff coefficients for each catchment tributary to an erosion prevention and sediment control best management practice, post-construction stormwater control best management practice, stormwater conveyance facility, and stormwater detention facility under both pre-construction and post-construction site conditions;

(d) An estimate of the impervious area and percent imperviousness of the site at the beginning and at the conclusion of the project;

(e) Existing data describing the soils throughout the site, including the soil series, soil association, and hydrologic soil group;

(f) Geotechnical data such as infiltration, extended conveyance, media filtration, or other best management practice to support the design of each proposed erosion prevention and sediment control best management practice and post-construction stormwater control best management practice, whose effectiveness depends upon site-specific data about the porosity, infiltration characteristics, depth to groundwater, depth to bedrock, and any impermeable layers;

(g) Existing data, if available, describing the quality of any stormwater discharge from the site;

(h) The name and/or location of the immediate receiving water resource and the first subsequent named water resource and the extent and description of wetlands or other special aquatic sites at or near the site which will be disturbed or which will receive discharges from disturbed areas of the site;

(i) The location and description of any stormwater discharges associated with asphalt and concrete plants on or contiguous with the project site and dedicated to the project, and the best management practices to address pollutants in these stormwater discharges;

(j) The location of structures on adjoining properties;

(k) The hours of operation of work activities on site;

(l) The anticipated duration of the project; and

(m) The intended use of the property after completion of construction on the site.

(2) A map or series of maps that, in addition to the survey plat requirements of § 1101-19.4, includes and/or delineates:

(a) The entire site on a single 24" × 36" (architectural D-size drawing) plan sheet;

(b) A scale of at least 1-inch equals 50-feet;

(c) Identification of the phase of construction, if applicable, in relation to the overall construction;

(d) A north arrow;

(e) Elevation datum;

(f) Date of preparation or revision;

(g) Ingress and egress from the site including access drives and the connection to the public right of way;

(h) Limits of excavation and fill on the site for each phase of construction;

(i) Soils types for the site, including the location and extent of visibly evident existing excavations or fills, slope instability, erosion and water seepage or wet conditions, unstable or highly erodible soils, or other areas with potentially serious existing or future erosion problems;

(j) Existing and proposed two-foot (2') contours, unless site conditions require more detailed topography to depict site drainage conditions;

(k) Drainage patterns;

(l) Erosion prevention and sediment control best management practices within, entering, and exiting the site during each phase of construction, including any existing and/or constructed combined and separate stormwater drainage conveyance and drainage inlet facilities within the site, beyond the site, and/or within the larger common plan of development if utilized during construction;

(m) Drainage watersheds at the site expected before, during, and after major excavation and fill activities;

(n) Location and approximate depth of existing and proposed utilities including appurtenances, structures and outfalls;

(o) Water resource locations including known springs, wetlands, streams, lakes, water wells, and Stream Corridor Protection Overlay District and/or other setbacks on or within 200 feet of the site, including the boundaries of wetlands or streams and any first subsequent named receiving water resource(s) intending to be filled or relocated under an approval from the Army Corps of Engineers and/or Ohio EPA;

(p) Existing and proposed locations of buildings, roads, and parking facilities;

(q) In-stream activities including stream crossings;

(r) Existing and proposed property boundaries, including bearings, distances, and survey monument information, and subdivision lot numbers;

(s) Existing or proposed easements or other restrictions placed on the use of the property and the responsible party under such easement or restriction;

(t) Areas vulnerable to erosion and sediment damage;

(u) Areas that do not drain to erosion prevention and sediment control best management practice structures;

(v) Locations where soil is to be stockpiled; and

(w) Location and size of permanent stormwater control best management practices and other stormwater facilities, drawn to scale.

(3) A narrative that describes how stormwater discharges from the site will be controlled during construction that includes:

(a) A description of the overall erosion prevention and sediment control plan that highlights specific areas of concern;

(b) A maintenance and inspection plan for erosion prevention and sediment control best management practices;

(c) An implementation schedule that describes the sequence of major construction operations (i.e., grubbing, excavating, grading, utilities and infrastructure installation) and the implementation of erosion prevention and sediment control best management practices to be employed during each operation of the sequence;

(d) Standards and specifications for the installation and maintenance of all temporary erosion prevention and sediment control best management practices;

(e) Temporary stabilization requirements and timelines for specific areas of the site;

(f) Standards and specifications for all vegetative practices including seeding, mulching, and fertilizing rates;

(g) Standards and specifications for any turf re-enforcement matting or other stabilization practices;

(h) Procedures for the stabilization of areas receiving stockpiled soils immediately after stockpiling is completed;

(i) Schedule indicating the anticipated starting and completion times of the development sequence, including clearing land, grubbing, stripping, rough grading and construction, final grading and vegetative establishment, and maintenance including the time of exposure of each area prior to the completion of erosion prevention and sediment control best management practices;

(j) Inspection and maintenance guidelines for each erosion prevention and sediment control best management practice;

(k) Calculations for proposed stormwater runoff flows, volumes, and timing into and through all temporary erosion prevention and sediment control best management practices that shall include

the underlying assumptions and hydrologic and hydraulic methods and parameters, under pre- and post-development land use conditions, for flood control, water resource protection, and water quality, which calculations shall demonstrate that the runoff from upper watershed areas have been considered in the calculations and indicate that no adverse impacts are conveyed downstream of the proposed project; and

(l) An investigation of immediate downstream conditions that addresses anticipated temporary impacts on the downstream water resource and floodplain morphology, hydrology, and water quality.

(4) A narrative that describes how the quantity and quality of stormwater discharges from the site and/or into a water resource will be controlled after completion of construction that includes:

(a) Standards and specifications for the installation and maintenance of all permanent stormwater control best management practices including vegetation, amended soil composition, structural materials, and rationale for the selection of each practice;

(b) Operations and maintenance requirements for all permanent stormwater control best management practices during and after construction;

(c) Permanent stabilization requirements and timelines for specific areas of the site;

(d) Calculations for proposed stormwater runoff flows, volumes, and timing into and through all stormwater control best management practices that shall include the underlying assumptions and hydrologic and hydraulic methods and parameters, under pre- and post-development land use conditions, for flood control, water resource protection, and water quality, which calculations shall demonstrate that the runoff from upper watershed areas have been considered in the calculations and indicate that no adverse impacts are conveyed downstream of the proposed project;

(e) An investigation of immediate downstream conditions that addresses anticipated permanent impacts on the downstream water resource and floodplain morphology, hydrology, and water quality;

(f) Soil and subsurface conditions, including tests of infiltration rates for native and amended soils underlying post construction stormwater control best management practices, and borings or equivalent data indicating seasonal high groundwater levels, top of bedrock elevations, and perched groundwater elevations;

(g) Installation of permanent stormwater control best management practices off-site may be considered if it is shown that installation of these structures are not feasible on the site and a maintenance agreement for off-site structures in a form acceptable to the city solicitor is recorded.

(5) A narrative that describes how non-sediment pollutants will be controlled during construction that includes:

(a) The type, location, and dimensions of structural and non-structural non-sediment pollution best management practices incorporated into the site and the rationale for their selection; and

(b) An inspection and maintenance plan for the non-sediment pollution best management practices used on the site.

(6) Drawings that include:

(a) Each permanent stormwater control best management practice providing sufficient dimensions, construction details, design calculations, volumes and sizes of contributing drainage areas, and elevations;

(b) For subdivided developments where a centralized erosion prevention and sediment control best management practice capable of controlling multiple individual lots is not provided, a detail drawing of a typical individual lot showing standard individual lot erosion prevention and sediment control best management practices.

(7) An inspection and maintenance plan for each permanent stormwater control best management practice in a form acceptable to the city solicitor that must be recorded that includes:

(a) The parties who:

(i) Own the permanent stormwater control best management practice;

(ii) Are responsible for inspecting and maintaining the permanent stormwater control best management practice;

(iii) Own property contributing stormwater to the permanent stormwater control best management practice; and

(iv) Are required to install the permanent stormwater control best management practice.

(b) A schedule for the regular inspection and maintenance of the permanent stormwater control best management practice.

(c) A requirement that if the party listed in the plan as responsible for inspecting and maintaining the permanent stormwater control best management practice fails to do so, each property owner contributing stormwater to and/or required to install the permanent stormwater control best management practice shall be proportionally responsible for such inspection and maintenance.

(d) The legal description for each property served by the permanent stormwater control best management practice.

(e) The legal description for the property on which a permanent stormwater control best management practice is located.

(f) A description of the funding for the long-term maintenance and inspection of the permanent stormwater control best management practice.

(g) A requirement that reports of all inspections of and maintenance operations on the stormwater control best management practice must be filed with the utility engineer within thirty days after such inspection or maintenance.

(h) A prohibition on alteration of the stormwater control best management practice without prior written approval from the utility engineer.

An operational plan is also required for an excavation or fill comprising the movement of less than 1,000 cubic yards of material or on less than one acre if the work area borders one or more work areas under separate excavation and fill permit and the total amount of material being moved in all contiguous areas is more than 1,000 cubic yards or the contiguous areas comprise more than one acre and the areas have some common ownership or the work in all areas is under common control.

1113-03.2 *Certification of Excavation and Fill Quantities and Operational Plan Compliance:* Every six months after the issuance of an excavation and fill permit and on completion of operations, the holder of permit for an excavation or fill comprising the movement of more than 1,000 cubic yards of material must file with the Director a certification prepared by a registered surveyor, registered architect or professional engineer of the quantities of materials placed or removed since the issuance of the permit and that the work has been conducted in accordance with the operational plan.

1113-03.3 *Revocation of Excavation and Fill Permits:* The Director may revoke an excavation and fill permit if the holder of the permit has failed to comply with the operational plan or if the Director determines that the operations have become offensive or objectionable due to erosion, siltation or dust.

1113-03.4 *Excavations and Fills in Residential Districts:* If the proposed work is wholly or partially within a residential zone district, work must be completed within one year from the date of permit issuance. The Director may extend the time for completion of the work if the Director determines after conducting a public hearing that the operations have been conducted in compliance with the permit and have not been offensive or objectionable due to erosion, siltation or dust. The Director has the duty to notify the owner or occupant of the subject property, any owner or occupant of property abutting the subject property and any community or neighborhood association or organization whose boundaries include or abut the subject property, recognized by the council as representing the area. Notice must be sent by ordinary U.S. Mail at least ten days in advance of the date set for the public hearing.

1113-03.5 *Slope:* An excavation and fill permit may not be issued for an excavation or fill to be made with a face steeper in slope than three horizontal to one vertical.

Exception: The director of buildings and inspections may permit an excavation or fill to be made with steeper face if an applicant demonstrates satisfactorily by means of appropriate soil exploration and analysis and the written opinion of the geotechnical engineer that the materials are capable of standing on a steeper slope without creating any of the hazards described in §§ 1101-17.1.1 and 1101-63.5 CBC.

(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 343-2001, eff. Nov. 23, 2001; a. Ord. No. 058-2012, § 1, eff. March 29, 2012)

Sec. 1113-05. Setbacks of Tops and Toes of Slopes.

The tops and toes of excavation and fill slopes shall be set back from property boundaries and structures as far as necessary for the safety of adjacent properties and adequacy of foundation support and to prevent damage as a result of water runoff.

(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996)

Sec. 1113-07. Protection Against Erosion.

All excavations and fills shall be performed so as to minimize soil erosion and sedimentation.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996)

Sec. 1113-09. Relocation of Sewers and Drainage Courses.

If, in the opinion of the director of sewers or director of public works, it is necessary to adjust, relocate, add to, or otherwise modify the existing sewer system or drainage course serving the area affected by an excavation or fill operation area or protecting the existing sewer system or drainage course from damage, a permit shall be issued in accordance with this Chapter only if the applicant for the permit obtains a permit to provide, relocate, or modify the sewer system or drainage course for the affected area pursuant to the regulations under Chapter 719, Sewers, of the Cincinnati Municipal Code, and the current rules and regulations of the metropolitan sewer district of Greater Cincinnati and the department of public works at the expense of the applicant and such easements as may be necessary shall be granted.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996)

Sec. 1113-11. Protection of Existing Sewers.

In places where existing sewerage is adequate, but in the opinion of the director of sewers or director of public works is of doubtful strength to carry additional loading, the director of buildings and inspections shall issue a permit in accordance with this Chapter only if the applicant for the permit provided written approval from the director of sewers and the director of public works.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996)

Sec. 1113-13. Performance Bond.

When in the opinion of the Director of Buildings and Inspections, the termination before completion of a proposed excavation or fill operation would create an actual or potential hazard to the public, the Director of Buildings and Inspections prior to issuing the permit shall require a bond in an amount sufficient to cover the estimated cost of restoration of any affected land or to cover the cost of performance of the operations under such permit, whichever is greater.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996)

Chapter 1115

ONE, TWO AND THREE FAMILY DWELLING CODE

Sec. 1115-01. General.
Sec. 1115-03. Changes to Ohio Residential Code Sections.
Sec. 1115-05. Ohio Residential Code, Appendix A.
Sec. 1115-07. Changes to Ohio Residential Code, Appendix A.
Sec. 1115-09. Appendix A Sections Deleted.
Sec. 1115-11. Ohio Residential Code Chapter Deleted.
Sec. 1115-15. Plumbing.
Sec. 1115-17. Electrical.
Sec. 1115-19. Elevators and Dumbwaiters.
Sec. 1115-21. Flood Plain Management.
Sec. 1115-23. Excavation or Filling of Land.

Sec. 1115-01. General.

(A) The provisions of this Chapter apply to the construction, alteration, repair, use, occupancy and maintenance of adult family homes (4101:2-2-01), detached single, two or three family dwelling houses and one-family townhouses, and their accessory structures.

(B) This Chapter of the Cincinnati Building Code shall include the Residential Code of Ohio for One-, Two-, and Three-Family Dwellings, which is incorporated as if set out at length herein, except for changes, deletions, and substitutions as set forth herein. The Clerk of Council and the director of buildings and inspections shall keep copies available for public inspection.

(C) Dwellings regulated by this Chapter that are greater than three stories in height shall comply with the technical requirements of the Ohio Basic Building Code for R-2 and R-3 uses.

(D) Dwellings regulated by this Chapter shall be classified as R-5 uses including those meeting the technical requirements.
(Ordained by Ord. No. 282-2001, eff. Sept. 6, 2001; Emer. Ord. No. 157-2012, § 3, eff. May 9, 2012; Emer. Ord. No. 238-2015, § 50, eff. July 1, 2015)

Sec. 1115-03. Changes to Ohio Residential Code Sections.

The following sections of the Ohio Residential Code for One, Two and Three Family Dwellings are changed as part of this Chapter of the Cincinnati Building Code.

1115-03.1 Change Section 910.1, General, to read:

Materials and methods used for repair, replacement or recovering an existing roof shall comply with Sections 910.2 through 910.5.

1115-03.2 Change Section 1101.2, Application, to read:

In addition to the general administrative requirements of Chapter 1101 of the Cincinnati Building Code, the administrative provisions of this chapter shall also apply to the mechanical requirements of chapters 12 through 28.
(Ordained by Ord. No. 282-2001, eff. Sept. 6, 2001)

Sec. 1115-05. Ohio Residential Code, Appendix A.

This Chapter shall include Appendix A, Manufactured Housing Used as Dwellings.
(Ordained by Ord. No. 282-2001, eff. Sept. 6, 2001)

Sec. 1115-07. Changes to Ohio Residential Code, Appendix A.

The following sections of Appendix A are changed as part of this Chapter of the Cincinnati Building Code.

1115-07.1 Change Section A301.3, Accessory Buildings, to read:

Permits shall be required for all accessory buildings and structures and their building service equipment. Permit issuance and fees therefore shall be in conformance with Chapter 1101 of the Cincinnati Building Code applicable to the types of work involved.

1115-07.2 Change section A503.1, Skirting and Perimeter Enclosures, to read:

Skirting shall be of material suitable for exterior exposure and contact with the ground. Permanent perimeter enclosures shall be constructed of materials as required by this code for regular foundation construction.

Skirting shall be installed in accordance with the skirting manufacturer's installation instructions. Skirting shall be adequately

secured to assure stability, to minimize vibration and susceptibility to wind damage, and to compensate for possible frost heave.
(Ordained by Ord. No. 282-2001, eff. Sept. 6, 2001)

Sec. 1115-09. Appendix A Sections Deleted.

The following provisions of Appendix A are deleted without substitution:

1115-09.1 Section A302, Application for Permit (see section 1101-19, Cincinnati Building Code)

1115-09.2 Section A303, Permits Issuance (see section 1101-27 and 1101-29, Cincinnati Building Code)

1115-09.3 Section A304, Fees (see section 1101-85 through 1101-129, Cincinnati Building Code)

1115-09.4 Section A305, Inspections (see section 1101-43, Cincinnati Building Code)

1115-09.5 Section A306, Special Inspections (see section 1101-39, Cincinnati Building Code)

1115-09.6 Section A307, Utility Service
(Ordained by Ord. No. 282-2001, eff. Sept. 6, 2001)

Sec. 1115-11. Ohio Residential Code Chapter Deleted.

Chapter 1, General Administration, of the Ohio Residential Code is deleted from this Code.
(Ordained by Ord. No. 282-2001, eff. Sept. 6, 2001)

§ 1115-13. Swimming Pools.

Family (residential) swimming pools shall conform to the requirements of this Section.

1115-13.1 *Permits.* Permits are required as follows:

1. Building permits are required for all family (residential) swimming pools more than 24 inches in depth at any point, or greater than 150 sq. ft. in surface area. Pools not requiring building permits may require permits as listed in (2) and (3) below.
2. Plumbing permits are required for all pools served by a permanent water supply and/or permanent draining system.
3. Electrical permits are required for all pools which utilize electrical apparatus or equipment, in conjunction with the cleaning, servicing or operation of the pool. (Copy of electrical permit required at application.)
4. Separate permits are not required for fences used as pool enclosure devices. (See Par. (D) under this section.
5. All permits require that certain in-process inspections and a final inspection must be accomplished before the pool is filled. The permit holder is responsible for final inspection. Prior to the final inspection, the required enclosure shall be installed and the electrical work shall be approved. No work requiring inspection shall be permanently covered, before such inspection is accomplished.

1115-13.2 *Location on lot.* The family (residential) swimming pool walls shall be a minimum of 3'-0" from property lines, unless regulated differently by zoning regulations.

1115-13.3 *Design and Construction.*

1. In-ground swimming pools:
    a. Minimum Standards—the standards to be used in determining compliance to this section shall

be the most current copy of Standards for Residential Swimming Pools.

2. Above ground/on ground swimming pools:

    a. Minimum Standards—the standards to be used in determining compliance to this section shall be the most current copy of Standard for Above Ground/On Ground Residential Swimming Pools.

1115-13.4 *Enclosure Devices.* Every person owning land on which a family (residential) swimming pool is situated, which constitutes an obvious hazard, or which is more than 24 inches in depth at any point or greater than 150 sq. ft. in surface area, shall erect and maintain thereon an enclosure surrounding the pool area, sufficient to make such a body of water inaccessible to small children.

Pool enclosures, including gates, must be not less than 48 inches tall measured from the grade four (4) feet beyond the enclosure.

All gates must be self-closing and self-latching with all latches placed on the inside of the enclosure high enough to render the gate inoperable by small children.

All enclosure shall have intermediate rails or ornamental closures which will not allow passage of an object 4 inches or more in diameter.

Exceptions:

1. Pools with walls 48 inches or higher above grade require no enclosure. (Grade should prevail for at least four feet beyond the pool wall.)

2. Above ground pools with walls 48 inches or higher and with decks and removable ladders as the sole means of access need no enclosure, if the ladder is removed to render the pool inaccessible to small children when not in use.

3. Pools with fencing attached to the top of the wall making the total height over 48 inches high.

(Ordained by Ord. No. 282-2001, eff. Sept. 6, 2001)

Sec. 1115-15. Plumbing.

Plumbing shall comply with Chapter 1105 Cincinnati Building Code.
(Ordained by Ord. No. 282-2001, eff. Sept. 6, 2001)

Sec. 1115-17. Electrical.

Single, two, or three family dwelling houses shall conform to the Electrical Code for One- and Two-Family Dwellings (NfiPA70A) excerpted from the National Electrical Code (NfiPA 70) listed in Chapter 49, Standards, as published by the National Fire Protection Association.
(Ordained by Ord. No. 282-2001, eff. Sept. 6, 2001)

Sec. 1115-19. Elevators and Dumbwaiters.

Elevators and dumbwaiters shall comply with Chapter 1107 Cincinnati Building Code.
(Ordained by Ord. No. 282-2001, eff. Sept. 6, 2001)

Sec. 1115-21. Flood Plain Management.

The provisions of Chapter 1109 Cincinnati Building Code shall apply to new construction, substantial improvements, and developments in areas of special flood hazard.
(Ordained by Ord. No. 282-2001, eff. Sept. 6, 2001)

Sec. 1115-23. Excavation or Filling of Land.

The excavation and filling of land shall comply with chapter 1113 Cincinnati Building Code.
(Ordained by Ord. No. 282-2001, eff. Sept. 6, 2001)

Chapter 1117

HOUSING CODE

Sec. 1117-01. Title and Administration.
Sec. 1117-03. Definitions.
Sec. 1117-05. Purpose.
Sec. 1117-07. Scope.
Sec. 1117-09. Application of Building Code.
Sec. 1117-11. Exits.
Sec. 1117-13. Lighting of Exits.
Sec. 1117-15. Fire-Protective Features.
Sec. 1117-17. Access and Privacy.
Sec. 1117-19. Space Requirements.
Sec. 1117-21. Waterproofing and Dampproofing Requirements.
Sec. 1117-23. Habitable Rooms Below Grade.
Sec. 1117-25. Sanitation and Drainage.
Sec. 1117-27. Toilet Rooms.
Sec. 1117-29. Plumbing and Plumbing Fixtures Required.
Sec. 1117-31. Connection of Fixtures.
Sec. 1117-33. Water Heating Facilities.
Sec. 1117-35. Heating Facilities.
Sec. 1117-37. Light and Ventilation, General.
Sec. 1117-39. Light.
Sec. 1117-41. Ventilation.
Sec. 1117-43. Illumination and Electrical Work.
Sec. 1117-45. General Maintenance and Repair.
Sec. 1117-47. Maintenance of Foundations Floors, Roofs and Exterior Walls.
Sec. 1117-49. Maintenance of Interior Walls, Floors and Ceilings.
Sec. 1117-51. Maintenance of Accessory and Appurtenant Structures.
Sec. 1117-53. Fencing Vacant Premises.
Sec. 1117-55. Basement or Foundation Holes.
Sec. 1117-57. Trees.
Sec. 1117-59. Railings.
Sec. 1117-61. Security Provisions.
Sec. 1117-63. Janitor, Custodian or Agent.
Sec. 1117-65. Prohibited Uses of Dwellings.
Sec. 1117-67. Responsibilities.
Sec. 1117-69. Responsibilities of Occupants.
Sec. 1117-71. Responsibilities of Owners and Operators of Rooming Houses.
Sec. 1117-73. Swimming Pool Safety Devices.

Sec. 1117-01. Title and Administration.

1117-01.1 *Title:* This Chapter of the Cincinnati Building Code (CBC) shall be known as the "Housing Code" and may be cited as such.

1117-01.2 *Administration:* The administration of the Housing Code is governed by the applicable provisions of Chapter 1101 of the Cincinnati Building Code(CBC), the Administrative Code and the Cincinnati Municipal Code, with special reference to the following:

(1) § 1101-07 Liberal Construction

(2) § 1101-17 Permits;

(3) § 1101-43 Inspection, General;

(4) § 1101-61 Orders and Notice of Violations;

(5) § 1101-65 Vacations;

(6) § 1101-67 Vacation Notices;

(7) § 1101-71 Failure to Comply With Orders;

(8) § 1101-77 Obligations of Owners of Vacated Buildings;

(9) § 1101-51 Penalties;

(10) § 1101-57 Administrative Proceedings Preparatory to Demolition of Certain Buildings by Governmental Action;

(11) § 1101-83 Appeals to the Board of Housing Appeals;

(12) § 1101-45 Right of Entry and Credentials

(13) Chapter 855 of the Cincinnati Municipal Code.

(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996)

Sec. 1117-03. Definitions.

1117-03.1 *Meaning:* As used in Chapter 1117 CBC, the following words and terms shall have the meanings indicated in this section. Words and terms used and not specifically defined in this section but which are defined elsewhere in the Cincinnati Building Code, shall have the meanings defined in the CBC.

1117-03.2 *Number and Gender:* Words used in the singular include the plural and the plural the singular. Words used in the masculine gender include the feminine, and the feminine the masculine.

Accessory sleeping quarters: A space or building which is an accessory to another occupancy and which is used as sleeping quarters for five or more persons.

Apartment: A suite of rooms with sanitation facilities, with or without cooking facilities, and occupied as the home or residence of a single family.

Approved: Approved by the director of buildings and inspections under the provisions of this Code or by any other authority designated by the law to give approval of the matter in question.

Bedroom: A sleeping room.

Dormitory: A space in a building where group sleeping accommodations are provided for persons not members of the same family group, in one room, or in a series of closely associated rooms.

Dwelling: A building occupied, arranged, intended, or designed to be occupied as an abode for one or more persons.

Dwelling unit: A suite of rooms providing complete living facilities for one family, including permanent provisions for living, dining, cooking, sleeping and sanitation.

Extermination: The control and elimination of insects, rodents, or other pests by eliminating their harborage places by removing or making inaccessible materials that may serve as their food; by poisoning, spraying, fumigating, trapping; or by such other methods as are accepted by the health department.

Family: An individual or any number of individuals related by blood or marriage; a group of not more than five individuals not so related; a group of not more than ten members of a religious order who live together in a single dwelling unit; or a group of not more than ten adults, the majority of whom are 60 years of age or older, who live together in a single dwelling unit, are all capable of self-preservation without assistance in the event of an emergency, and do not need to live in a supervised environment.

Garbage: The animal and vegetable waste resulting from the handling, preparation, cooking and consumption of food.

Habitable floor area: The net floor area within enclosing walls of a habitable room; however, built-in facilities such as beds, wardrobes, cabinets, kitchen units, or fixtures may count for not more than 10% of any required habitable floor area.

Habitable room: A room or enclosed floor space arranged for living, eating, or sleeping purposes, but does not include a basement recreation room in a single-family, two-family or three-family dwelling, a room used as a closet, toilet room, laundry, kitchenette, pantry, foyer, hallway, or other accessory floor space.

Hotel: Any building containing sis or more guest rooms intended or designed to be used, or which are used, rented or hired out to be occupied or which are occupied for sleeping purposes by guests.

Household unit: An apartment.

Infestation: The presence, within or contiguous to a dwelling or premises, of insects, rodents, vermin or other pests in such numbers that the health of the occupant or occupants or the well-being of the community is endangered.

Kitchen: A space having a habitable floor area of 60 square feet, exclusive of cabinets and built-in features, and which is used for the cooking of food.

Kitchenette: A space having a floor area of less than 60 square feet, exclusive of cabinets and built-in features, and which is used for the cooking of food.

Lodger: A transient or temporary paying guest in the home of another person.

Multi-family apartment house: A building or portion thereof containing more than three dwelling units that cannot be classified as a multiple single family dwelling.

Multiple single family dwelling: A building or portion thereof containing more than three dwelling units where each unit has an independent means of egress and is separated by a one-hour fire separation assembly.

Multiple dwelling: A multi-family apartment house, hotel, motel, lodging house, dormitory, convent, monastery, rooming house for three or more roomers, and similar residential buildings or the portions of any building with mixed occupancy housing two or more families.

Occupant: Any person over one year of age (including owner, person in control, or operator) living, sleeping, cooking or eating in, or having actual possession of a dwelling unit or room used for rooming occupancy.

One-family dwelling: A building containing one dwelling unit with not more than two lodgers or boarders.

Operator: A person who has charge, care or control of a dwelling structure.

Person: An individual, firm, partnership, association, corporation, company or organization of any kind.

Person in Control: The owner of the freehold estate of the premises; a mortgagee or vendee in possession; a receiver; an executor; a trustee; and any person, public or private entity, lessee or holder of a lesser estate in the premises, and/or its duly authorized agent(s), with the authority to bring a building or premises into compliance with the provisions of this code, including but not limited to any mortgagee that has filed an action in foreclosure on the particular premises at issue, based on breach or default of a mortgage agreement, until title to the premises is transferred to a third party.

Premises: A lot, parcel or plot of land including the buildings or structures thereon.

Required: Demanded by some provision of the Housing Code.

Roomer: A paying guest in the home of another person. The term also includes any person who is not a member of the family of, nor related by blood, marriage, or legal adoption to the operator of a rooming house, to whom space is provided for sleeping purposes for pay.

Rooming house: Any dwelling, apartment or dwelling unit in which one or more rooming units are occupied by three or more roomers or lodgers,

or in which three or more rooming units are kept, used, maintained, advertised or held out to the public to be a place where sleeping accommodations are offered for pay.

Rooming unit: A single room or group of rooms, without cooking facilities, and occupied or designed to be occupied by one or more roomers or lodgers.

Rubbish: Combustible and noncombustible waste materials, except garbage; and the term shall include the residue from the burning of wood, coal, coke, and other combustible materials, paper, rags, cartons, boxes, wood, excelsior, rubber, leather, tree branches, yard trimmings, tin cans, metals, mineral matter, glass, crockery, dust, and other similar materials.

Sanitation facilities: Water closet, lavatory, sink, and shower or bathtub.

Sleeping room: A room used primarily for sleeping by one or more persons.

Suite of rooms: Two or more rooms which are arranged to be used as a unit.

Supplied: Paid for, installed, furnished or provided by the owner, person in control, or operator whether or not he charges tenants separately for a required facility installed or furnished by him.

Toilet room: A room or compartment devoted primarily to the use of a water closet, bathtub or shower.

Two-family dwelling: A building containing two dwelling units with not more than two lodgers or boarders per family but not more than 20 individuals.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 418-2010, § 27, eff. Nov. 24, 2010)

Sec. 1117-05. Purpose.

1117-05.1 *General:* The purpose of this Housing Code is to establish minimum housing standards necessary for the preservation of the public safety, health, and general welfare in all buildings, portions thereof, or premises used or intended to be used for dwelling purposes; to assign the maintenance responsibility of owners, persons in control, operators, and occupants of dwellings and accessory buildings; and to adopt the administrative and penalty provisions of Chapter 1101 CBC (Administration).
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 418-2010, § 28, eff. Nov. 24, 2010)

Sec. 1117-07. Scope.

1117-07.1 *General:* The provisions of this Housing Code are supplementary to the sections of Cincinnati Building Code that relate to the construction, use and maintenance of residential buildings, portions thereof, or premises used or intended to be used for human habitation. Every provision of this Housing Code which applies to rooming houses shall also apply to hotels and motels, except to the extent that any such provision may be found in conflict with the laws of this state or with the lawful regulations of any state board or agency. Housing conditions not in compliance with the requirements of this Housing Code are hereby deemed to be serious safety and sanitation hazards. Therefore, all the provisions of this Housing Code shall be retroactive and shall apply to all dwellings.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996)

Sec. 1117-09. Application of Building Code.

1117-09.1 *General:* This Housing Code shall be deemed to be included within the reference to the Cincinnati Building Code.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996)

Sec. 1117-11. Exits.

1117-11.1 *General:* Except as provided in §§ 1117-11.1 through 1117-11.6 CBC, every apartment and every rooming unit shall have two separate exits therefrom, or shall have access to at least two separate exits therefrom which are remote from each other. All exits shall be continuous and unobstructed and shall lead directly to a public way. Fire escapes may be utilized to provide additional required means of egress.

1117-11.2 *One-, two-, and three-family dwellings:* Only one exit is required from an apartment or rooming unit in:

(1) A one- or two-family dwelling not more than three stories in height;

(2) A three-family dwelling not more than three stories in height where each dwelling unit is provided with all means of egress independent and serving only that dwelling unit.

1117-11.3 *Two-story rooming house:* For rooming houses not more than two stories high, only one exit is required from an apartment or from a rooming unit.

1117-11.4 *Multiple dwellings complying with Section 1005.2.1 OBC:* For multiple dwellings complying with the requirements of Section 1005.2.1 OBC, only one exit is required from an apartment or from a rooming unit.

1117-11.5 *Continuation of existing use:* For multiple dwellings for which a permit was lawfully granted by the director of buildings and inspections after April 16, 1962, and prior to the effective date of this Code, and where such multiple dwellings were lawfully constructed and maintained with only one exit, only one exit is required from an apartment or rooming unit.

1117-11.6 *Emergency escape:* For multiple dwellings, which do not meet the requirements of § 1117-11.4 CBC, only one exit is required from an apartment or from a rooming unit where such apartment or rooming unit has direct access to a window meeting the following requirement.

(1) Such window shall be openable to provide an unobstructed area of not less than 5.7 square feet. The minimum net clear opening height dimension shall be 24 inches. The minimum net clear opening width dimension shall be 20 inches;

(2) The sill of such window shall be not more than 44 inches above the finished floor of the room and the floor level of the room shall be not more than 14 feet above the grade directly below;

(3) Such window shall be openable from the inside without the use of tools;

(4) Bars, grills or screens placed over such window shall be removable from the inside without the use of a key, tool, or excessive force.

1117-11.7 *Escape and rescue from sleeping rooms*: For each sleeping room below the fourth story, at least one window or exterior door shall remain operable and unobstructed for emergency escape and rescue. Bars, grills, or screens placed over the opening shall be releasable or removable from the inside without the use of a key, tool, or force greater than that which is required for normal operation of a window. If there is more than one window or door in a sleeping room, the largest and most accessible opening shall be designated for escape and rescue. Window unit air conditioners may not be installed in a designated escape and rescue window.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 59-2002, eff. March 28, 2002; Emer. Ord. No. 212-2013, § 1, eff. Aug. 7, 2013)

Sec. 1117-13. Lighting of Exits.

1117-13.1 *General:* Except as provided in § 1117-13.2 CBC, the exits of all multiple

dwellings, including exterior open spaces to or through which exits lead, shall be provided with light as follows:

(1) A level of not less than three foot candles of illumination measured at floor level shall be provided at all times during which the floor area served by such exit is occupied.

(2) Where the required illumination is provided by artificial means, the owner or person in control shall maintain not less than one approved light at each floor in each stairhall and public hallway, and shall provide additional approved lights when necessary for safety.

1117-13.2 *Nontransient residential buildings:* In nontransient residential buildings not more than three stories in height, where the entire exit can be illuminated by any person at any floor at any time, the lights are required to be kept burning only from sunset until midnight.

1117-13.3 *Artificial lights:* If artificial lights are provided and then become extinguished without the knowledge or consent of the owner or person in control, the provisions of this section shall be deemed to be complied with if the lights are restored within a reasonable time.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 418-2010, § 29, eff. Nov. 24, 2010)

Sec. 1117-15. Fire-Protective Features.

1117-15.1 *General:* Every three-family and multiple dwelling shall be protected with such fire-protective features as may be required for the adequate protection of the occupants thereof. The minimum requirements for such protection are as set out in Sections 1117-15.2 through 1117-15.8 CBC.

1117-15.2 *Interior stairways and corridors:* Any interior stairway or corridor serving more than one apartment, rooming unit or dwelling unit shall be enclosed with approved fire-resistive construction. Corridors shall be constructed so as to be effective barriers to resist the passage of smoke. Any doorway in said construction shall be protected by an approved solid core wood door or equivalent, which shall be well-fitted within the opening. An undercut to the door greater than three-fourths (¾) of an inch is prohibited.

1117-15.3 *Use of glass:* No plain glass shall be used in any door or transom opening upon an interior stairway serving more than one apartment, rooming unit or dwelling unit. All such transoms shall be fixed or otherwise made non-openable, and any existing glass in such doors, windows, or transoms shall be replaced with wired glass or an approved equivalent, or covered with an approved material.

1117-15.4 *Fire doors:* All required fire doors shall be equipped with approved self- or automatic-closing devices, latches and keepers.

1117-15.4.1 *Signing of fire doors:* All required fire doors, except for those doors leading directly to apartments, rooming units or dwelling units, shall be designated with an approved sign with letters not less than one-half inch high, "FIRE DOOR KEEP CLOSED."

1117-15.5 *Separation of occupancies:* Residential occupancies shall be separated from other occupancies by approved fire-resistive construction.

1117-15.6 *Smoke Detectors:* Residential occupancies shall be supplied with an early fire warning system (smoke detectors) in accordance with Chapter 1235 (Fire Code) of the Cincinnati Municipal Code.

1117-15.7 *Automatic Fire Detection Systems:* All existing buildings or portions

thereof of Group 1-1 (See Section 308.2 OBC) shall be provided with an Automatic Fire Detection System installed in accordance with Section 907.0 OBC or the building code in effect at the time of installation.

1117-15.8 *Self-closing doors*: By August 1, 2023, all doors providing access to interior stairways or corridors shall be self-closing or equipped with a device that will ensure closing after having been opened and automatic latching. Notwithstanding Section 1117-15.1, this section applies only to multiple dwellings with five or more dwelling units.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 357-1998, eff. Oct. 16, 1998; a. Ord. No. 59-2002, eff. March 28, 2002; a. Ord. No. 283-2022, §§ 1, 2, eff. Sept. 14, 2022)

Editor's note—That those multiple dwelling structures existing at the time of the adoption of Ordinance No. 283-2022 that are not in strict compliance with the provisions and requirements of this ordinance shall have up to and including August 1, 2023 to comply with the provisions and requirements set forth herein.

Sec. 1117-17. Access and Privacy.

1117-17.1 *General:* Access or privacy shall be provided as set out in §§ 1117-17.2 through 1117-17.5 CBC.

1117-17.2 *Toilet rooms:* Except for supplementary water closets, bathtubs and showers in single-family dwellings, water closets, bathtubs and showers shall be located within a toilet room. Supplementary water closets, bathtubs, and showers in single-family dwellings are not required to be located in toilet rooms. No toilet room shall provide sole access to another room.

1117-17.3 *Required door:* Every bedroom and toilet room shall be provided with a door which, when closed, shall afford privacy to a person therein.

1117-17.4 *Access to toilet rooms:* In every apartment or dwelling unit having two or more bedrooms, access to at least one toilet room shall be provided without passing through a bedroom.

1117-17.5 *Public toilet rooms:* Public toilet rooms, where permitted, shall be located so as to be readily accessible from public spaces. Separate toilet rooms shall be provided for each sex, to be accommodated and designated accordingly.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996)

Sec. 1117-19. Space Requirements.

1117-19.1 *Dwelling units:* Every dwelling unit shall contain a minimum gross floor area of not less than 150 square feet for the first occupant, and 100 square feet for each additional occupant. The floor area shall be calculated on the basis of the total area of all habitable rooms. No more than one family may occupy a dwelling unit. For purposes of this section, "family" shall mean:

(1) An individual or any number of individuals related by blood or marriage;

(2) A group of not more than five individuals not so related;

(3) A group of not more than ten members of a religious order who live together in a single dwelling unit; or

(4) A group of not more than ten adults, the majority of whom are 60 years of age or older, who live together in a single dwelling unit, are all capable of self-preservation without assistance in the event of an emergency, and do not need to live in a supervised environment.

1117-19.2 *Area for sleeping purposes:* Every room occupied for sleeping purposes by one occupant shall contain at least 70 square feet of floor area, and every room occupied

for sleeping purposes by more than one person shall contain at least 50 square feet of floor area for each occupant thereof.

1117-19.3 *Overcrowding:* If any room used for residential purposes is overcrowded, the director of buildings and inspections may order the number of persons sleeping or living in said room to be reduced so that there shall be not less than the total area required in Table 1117-19 CBC, "Minimum Occupancy Area Requirements."

TABLE 1117-19 CBC
MINIMUM OCCUPANCY
AREA REQUIREMENTS
Minimum Occupancy Area in Square Feet

Space	*1—2 Occupants*	*3—5 Occupants*	*6 or More*
Living room*	No requirements	120	150
Dining room*	No requirements	80	100
Kitchen	50	50	60
Bedrooms	Must comply with § 1117-19.2		

*Note: Combined living room-dining room spaces will be construed as meeting the requirements of this Table if the total area is equal to that required for separate rooms and if the space is so located that it may function as a combination living room-dining room.

1117-19.4 It shall be prohibited to use for sleeping purposes any kitchen, nonhabitable space, or public space.

1117-19.5 *Minimum ceiling heights:* Habitable rooms shall have a clear ceiling height over the minimum area required by this Code at not less than 7 feet, except that in attics or top half-stories the ceiling height shall be not less than seven feet over not less than one-third of the minimum area required by this Code when used for sleeping, study or similar activity. In calculating the floor area of such rooms, only those portions of the floor area of the room having a clear ceiling height of five feet or more may be included.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 357-1998, eff. Oct. 16, 1998; Emer. Ord. No. 212-2013, § 1, eff. Aug. 7, 2013)

Sec. 1117-21. Waterproofing and Dampproofing Requirements.

1117-21.1 *General:* All rooms which are used for residence purposes in which there is evidence at any time that the floors, ceiling or walls are damp by reason of leakage, excessive condensation or any other cause which renders such rooms unfit for habitation, or where such rooms do not comply with all other applicable provisions of this Code, shall be made waterproof and dampproof and brought into compliance with this Code.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996)

Sec. 1117-23. Habitable Rooms Below Grade.

1117-23.1 *General:* No room in an apartment or dwelling unit below grade shall be used as a habitable room if it does not comply with all the following requirements:

(1) At least 50% of the required height of such room shall be above grade at walls which have required windows;

(2) The finished grade shall be at least six inches below the window sill level; when areaways are used to reduce the finished grade, the width measured at right-angles to a building, of an areaway serving a required window, shall be not less than the depth of the sill of the window below the top of the areaway; areaways shall be drained in an approved manner;

(3) Light and ventilation shall be provided in accordance with the requirements of §§ 1117-37, no window shall open directly upon a street, alley or public sidewalk, nor within three feet thereof, unless the window sill is at least two feet six inches above such street, alley or public sidewalk;

(4) Every basement apartment or dwelling unit shall be so located that the required living room windows open upon required front or rear yards, or upon a side yard or court at least nine feet wide, measured at right angles to the building;

(5) All floors and walls of habitable rooms below grade and in contact with the ground shall be of concrete or masonry and shall be made waterproof and dampproof in an approved manner.

(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996)

Sec. 1117-25. Sanitation and Drainage.

1117-25.1 *General:* The sanitation and drainage of all residential buildings shall comply with the provisions of §§ 1117-25.1 through 1117-25.3 CBC.

1117-25.2 *Sanitary equipment:* Sanitary equipment, including sink drain boards, shall be constructed of approved materials having smooth and impervious surfaces free from concealed fouling spaces. Installation shall be as required in §§ 1117-27. 1117-29 and 1117-31 CBC and in accordance with the provisions of the Plumbing Chapter 1105 CBC.

1117-25.3 *Sharing kitchen facilities not permitted:* The sharing of kitchen facilities by two or more families or apartments shall not be permitted.

(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996)

Sec. 1117-27. Toilet Rooms.

1117-27.1 *General:* Toilet rooms shall conform to the provisions of §§ 1117-27.2 through 1117-27.5.

1117-27.2 *Number and kind of plumbing fixtures:* Each apartment, each dwelling unit, each rooming house, each lodging house, and each story in which a dormitory or accessory sleeping quarters are located shall be provided with the number and kind of plumbing fixtures specified in Table 1117-29 CBC.

1117-27.3 *Walls:* The walls shall extend from the floor to the ceiling.

1117-27.4 *Surfaces:* All surfaces of every toilet room shall be constructed and maintained so as to be substantially impervious to water and so as to permit such surfaces to be easily kept in a clean and sanitary condition.

1117-27.5 *Size of toilet rooms:* All toilet rooms shall be large enough to accommodate fixtures contained plus not less than 18 inches of clear space in front of each fixture, and shall have clear ceiling heights of not less than six feet eight inches.

(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996)

Sec. 1117-29. Plumbing and Plumbing Fixtures Required.

1117-29.1 *General:* Plumbing and plumbing fixtures for dwellings shall conform to the applicable provisions of the Plumbing Chapter 1105 CBC and Table 1117-29 CBC.

TABLE 1117-29 CBC
PLUMBING FIXTURES REQUIRED

Occupancy	*Type and Number of Plumbing Fixtures Required - Note (b).*
Apartments without cooking facilities	1 water closet 1 lavatory 1 bathtub or shower
Apartments with cooking facilities (dwelling units)	1 sink 1 water closet 1 lavatory 1 bathtub or shower
Hotels, motels, lodging houses, accessory sleeping quarters, and dormitories	For persons not provided with private rooming houses, toilet rooms: Note (a) 1 water closet for: 1 to 10 Males Each additional 25 males: Note (e) Each additional 20 females 1 urinal for: Each 25 males, where 11 to 150 males using the same toilet Each 50 males in excess of 150 males using the same toilet room 1 lavatory for: 1 to 12 persons: Note (c) Each additional 20 males Each additional 15 females 1 bathtub or shower for: 1 to 10 persons Each additional 30 persons 1 drinking fountain for: Each 75 accessory sleeping persons: Note (f)
All residential buildings	Where plumbing fixtures in public toilet rooms are not accessible for use by employees on the premises or where the number of fixtures provided is inadequate for the number of tenants and employees to be accommodated plumbing fixtures for use by employees shall be provided in toilet rooms as follows: Note (a). 1 water closet for each 25 males: Note (e) 1 water closet for each 25 females: Note (e) 1 lavatory for each 25 persons: Note (d)

Note (a): Separate public toilet rooms shall be provided for each sex, to be accommodated and designated accordingly.

Note (b): Where the required number of fixtures is determined according to a basic number of persons accommodated by one fixture, not less than one such fixture shall be provided for any fraction of such number of persons to be accommodated.

Note (c): Not less than one required lavatory shall be located in each public toilet room.

Note (d): For employees, at least one lavatory shall be provided in or adjacent to food preparation and similar spaces.

Note (e): Urinals may be substituted for one-third the required number of water closets.

Note (f): Drinking fountains or other equally adequate and sanitary drinking facility; drinking fountains shall not be located in public toilet rooms.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996)

Sec. 1117-31. Connection of Fixtures.

1117-31.1 *Water supply:* All plumbing fixtures in every residential building shall be connected to an approved water supply.

1117-31.2 *Sewer connection:* All plumbing fixtures in every residential building shall be provided with a public sewer connection, or an approved private sewage disposal system.

1117-31.3 *Hot and cold running water:* All sinks, lavatories, bathtubs, and showers shall be supplied with hot and cold running water. It shall be an affirmative defense to a charge brought under this section that the tenant of the dwelling unit has agreed in writing to provide or pay for the required water service for the unit occupied by that tenant.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 415-2023, §§ 3, 5, eff. December 5, 2023)

Sec. 1117-33. Water Heating Facilities.

1117-33.1 *General:* Every dwelling shall be supplied with water heating facilities which are installed in an approved manner, properly maintained, and properly connected with hot water lines to the fixtures required to be supplied with hot water under § 1117-31 CBC. Such supplied water heating facilities shall be capable of heating water to such a temperature as to permit an adequate amount of water to be drawn at every required kitchen sink, lavatory, bathtub, or shower, at a temperature of not less than 115° F. under normal use.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996)

Sec. 1117-35. Heating Facilities.

1117-35.1 *General:* The owner, person in control, or operator of any dwelling, other than those erected exclusively for summer use, shall provide heating facilities which are capable of safely heating all habitable rooms and toilet rooms to a temperature of 70° F., at a distance of three feet above the floor level at the center of the room when the outside temperature is 0° F. The owner, person in control, or operator shall cause such heating facilities to be installed in an approved manner, safely maintained, and in good working condition.

1117-35.2 *Flue connections:* All heating and water heating devices which burn gaseous, liquid or solid fuel shall be connected to an approved flue.

Exception: Unvented gas space heaters equipped with oxygen depletion sensors and listed in accordance with ANSI Standard "Z21.11.2 1978" or later edition, shall be permitted in one-family and two-family dwellings.

1117-35.3 *Flues to be clean and unobstructed:* The owner or person in control of the dwelling shall be required to see that flues are clean and unobstructed, provided with a cleanout, and capable of providing the draft necessary to remove the products of combustion from heating or water heating equipment connected thereto.

1117-35.4. *Sale of Space Heaters:* It shall be unlawful to sell. offer for sale, or display for sale in the City of Cincinnati any gas

space heater which is not an approved vented gas space heater equipped with an approved gas pressure regulator.

Exception: Unvented gas space heaters equipped with oxygen depletion sensors and listed in accordance with ANSI Standard "Z21.II.2-1978" or later edition, shall be permitted in one-family and two-family dwellings.

1117-35.5. *Installation of Space Heaters:* It shall be unlawful to install in the City of Cincinnati any gas space heater which is not an approved vented gas space heater equipped with an approved gas pressure regulator without connecting such gas space heater to an approved flue in an approved manner.

Exception: Unvented gas space heaters equipped with oxygen depletion sensors and listed in accordance with ANSI Standard "Z21.11.2-1978" or later edition, shall be permitted in one-family and two-family dwellings.

1117-35.6. *Authority to Shut-Off Gas-Fired Space Heaters and Water Heaters:* Whenever it shall appear on inspection that gas equipment used for space heating or water heating is discharging dangerous fumes, or is unsafe for use, and when, in the opinion of the director of buildings and inspections or other persons in the fire division or department of health authorized by the city manager, immediate action is necessary, they shall be authorized to shut off the supply of gas to the equipment by turning off the valve or cock to the equipment, or when required, by capping or plugging gas lines to the equipment or other mechanical means to accomplish shut off of gas to the equipment and attaching thereto a tag and seal out of service so as to make inoperative or to take any steps necessary in the interest of the public safety with or without notice to the owners or persons in control of the property or equipment involved.

1117-35.7. *Nonconforming Gas-fired Equipment:* Whenever it shall appear on inspection that gas equipment used for space heating or water heating is in violation of any of the requirements of any section of this Code, or of any law or ordinance relating to the same subject matter, an order shall be issued to the owner or the person in control of the gas equipment to correct same. After such order and the failure of the owner or person in control of such gas equipment to correct the violation within the time specified in the order, the director of buildings and inspections or other persons in the fire division or department of health authorized by the city manager, shall be authorized to shut off the supply of gas to the gas equipment in the manner herein provided.

1117-35.8. *Sealing Device Not to Be Removed:* It shall be unlawful to remove the tag, seal, cap, plug, or other mechanism or sealing device or to use or permit to be used any gas equipment which use has been ordered discontinued in accordance with § 1117-35.6 or 1117-35.7 CBC until such equipment is made to comply with the applicable provisions of the CBC and OBC. (Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 59-2002, eff. March 28, 2002; a. Ord. No. 418-2010, § 30, eff. Nov. 24, 2010; a. Ord. No. 415-2023, §§ 3, 5, eff. December 5, 2023)

Sec. 1117-37. Light and Ventilation, General.

1117-37.1 *General:* The provisions of this Code shall govern the minimum conditions and standards for the light and ventilation for the occupancy of a structure. All light and ventilation shall comply with the requirements herein prescribed insofar as they are applicable.

1117-37.2 *Responsibility:* The owner or person in control of the structure shall

provide and maintain such light and ventilation and space conditions in compliance with these requirements. A person shall not occupy as owner-occupant or let to another for occupancy or use any premises which do not comply with the following requirements of this Code.

1117-37.3 *Open space:* An open space when used for the origin of light and ventilation shall be maintained unobstructed.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 418-2010, § 31, eff. Nov. 24, 2010)

Sec. 1117-39. Light.

1117-39.1 *General:* All spaces or rooms shall be provided sufficient lights so as not to endanger health and safety.

1117-39.2 *Habitable rooms:* Every habitable room shall have at least one window of approved size facing directly to the outdoors or to a court. A minimum total window area, measured between stops, for every habitable room shall be 8% of the floor area of such room, except in kitchens and dining areas when artificial light may be provided in accordance with the provisions of this Code. Whenever walls or other portions of a structure face a window of any room and such obstructions are located less than three feet from the window and extend to a level above that of the ceiling of the room, such window shall not be deemed to face directly to the outdoors nor to a court and shall not be included as contributing to the required minimum total window area for the room.

1117-39.3 *Common halls and stairways:* Every common hall in every building, other than one-family dwellings, shall be adequately lighted at all times with an illumination of at least a 60 watt light bulb or a 15 watt fluorescent fixture.

1117-39.4 *Other spaces:* All other spaces shall be provided with natural or artificial light of sufficient intensity and so distributed as to permit the maintenance of sanitary conditions, and the safe use of the space and the appliances, equipment and fixtures. The director of buildings and inspections may require the walls and ceiling of any room to be painted a light color when necessary to improve its lighting.

1117-39.5 *Minimum light:* Whenever any room receives insufficient required natural light at noon on a bright day to provide a level of five footcandles of illumination on the majority of the area of such room, the director of buildings and inspections may declare such room unfit for human habitation and prohibit its use for living purposes.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 59-2002, eff. March 28, 2002; a. Ord. No. 6-2003, eff. Feb. 7, 2003)

Sec. 1117-41. Ventilation.

1117-41.1 *General:* All spaces or rooms shall be provided sufficient natural or mechanical ventilation so as not to endanger health and safety. Where mechanical ventilation is provided in lieu of the natural ventilation, such mechanical ventilating system shall be maintained in operation during the occupancy of any structure or portion thereof.

1117-41.2 *Habitable rooms:* Every habitable room, except kitchens and dining areas, shall have at least one window which can be easily opened or such other device as will adequately ventilate the room. The total openable window area in every room shall be equal to at least 45% of the minimum window area size required in § 1117-39.2 CBC.

1117-41.3 *Toilet rooms:* Every bathroom and water closet compartment shall comply with the light and ventilation requirements for habitable rooms as required by § 1117-39.2 CBC except that a window shall not be

required in bathrooms or water closet compartments equipped with an approved mechanical ventilation system.

1117-41.4 *Cooking facilities:* Cooking shall not be permitted in any sleeping room or dormitory unit, and a cooking facility or appliance shall not be permitted to be present in a sleeping room or dormitory unit.

1117-41.5 *Guards for basement windows:* Whenever rodent infestation is evident, every basement or cellar window used or intended to be used for required ventilation, and every other opening to a basement which might provide entry for rodents, shall be supplied with a screen or such other device as will effectively prevent their entrance. (Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996)

Sec. 1117-43. Illumination and Electrical Work.

1117-43.1 *Illumination:* All portions of residential buildings, including attics, basements and cellars, shall be provided with approved electrical illumination adequate for the intended use of such area.

1117-43.2 *Electrical work:* All electrical installations, wire, apparatus and appliances for furnishing light, heat, power, or for other purposes which are deemed to be hazards as defined in § 1117-43.4 shall be corrected as set forth in Section 1117-43.5.2 through 1117-43.5.7 CBC, inclusive or discontinued as set forth in Section 1117-43.6 CBC.

1117-43.3 *Existing Hazardous Wiring.*

1117-43.3.1 *General:* When the wiring of an existing building is found to constitute a serious safety hazard, the director of buildings and inspections shall order the owner or person in control of such building or structure to bring all wiring into substantial compliance with the minimum requirements of this code as set forth in 1117-43.5 CBC.

1117-43.4 *Hazards Defined.*

1117-43.4.1 *General:* For the purposes of this Chapter, serious safety hazards shall include, but not be limited to the following:

(1) Over fusing (installation of overcurrent protective devices which exceed the approved circuit carrying capacity of the conductors), or bridging of required fuses:

(2) Unapproved splices;

(3) Overloaded services, feeder or branch circuits;

(4) Extension cord abuse (extension cords used as permanent wiring);

(5) Unprotected knife switches or other dangerous electrical equipment;

(6) Defective permanent wiring;

(7) Lighting fixtures with pull chain switches mounted above plumbing fixtures:

(8) Brass shell sockets within reach of grounded surfaces.

1117-43.5 *Minimum Facilities for Existing Structures.*

1117-43.5.1 *General:* The conditions listed in 1117-43.5.2 through 1117-43.5.7 CBC shall be deemed to be the minimum facilities acceptable under this Code to correct hazardous conditions in existing buildings or other structures.

1117-43.5.2 *Receptacle outlets:* Every existing habitable room shall be provided with a minimum of one duplex receptacle outlet for each 55 square feet of floor area or fraction thereof. Required outlets shall not be spaced closer than 12 feet measured around the perimeter of the room.

1117-43.5.3 *Appliance circuit:* In existing residential occupancies, at least one appliance circuit of not less than 20 ampere capacity shall be installed as separate circuit in the area where cooking facilities have been installed when any new outlets are added in that area.

1117-43.5.4 *Circuits related to floor area:* In existing residential occupancies, there shall be at least one 15-ampere rated lighting circuit for each 575 square feet of floor area or one 20-ampere rated lighting circuit for each 765 square feet of floor area.

1117-43.5.5 *Service equipment:* Such equipment shall be of approved size for the load with a minimum of 60-ampere capacity.

1117-43.5.6 *Overload protection:* All lighting and appliance circuits of 30 amperes or less shall be protected by nontamperable fuses or circuit breakers of approved size.

1117-43.5.7 *Hazardous wiring and devices:* All wiring and electrical devices shall be of such nature as to be safe under normal conditions of use and free from all hazards apt to result in injury or fire. All hazardous wiring or equipment, as determined by the director of buildings and inspections, shall be removed.

1117-43.5.8 *Fused panels:* Existing fused panels, load centers and disconnects within medium base fuse holders shall have a non-removable insert installed that shall allow only the proper amperage fuse to be installed as sized for the branch wiring that is protected by that fuse.

1117-43.6 *Service Supply for Existing Buildings or Other Structures.*

1117-43.6.1 *General:* In existing buildings or other structures, when any unsafe wiring conditions as hereinafter described shall not have been corrected as ordered within the time given in the notice, the director of buildings and inspections may direct the person, firm or corporation supplying the electric service to the building to discontinue the service. It shall be unlawful for any person, firm, or corporation to continue such service or to restore same until furnished with a copy of a certificate of approval from the electrical inspection agency, or a directive of the director of buildings and inspections certifying that an inspection has been made, that all hazardous conditions have been corrected and that all wiring, apparatus, and feeders have been brought into substantial compliance with the minimum requirements of this code as set forth in Section 1117-43.5 CBC.

1117-43.7 *Extensions to Power or Lighting Wiring.*

1117-43.7.1 *Existing buildings or structures:* In existing buildings or other structures, the wiring may be extended within the same room or area in the type of wiring which the building was originally wired, provided that neither the existing wiring nor the additions thereto shall constitute a serious safety hazard. If there are no visible unsafe defects in the existing wiring, such existing wiring shall not be required to be changed, even if new service lines are required.

(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 357-1998, eff. Oct. 16, 1998; a. Ord. No. 418-2010, § 32, eff. Nov. 24, 2010)

Sec. 1117-45. General Maintenance and Repair.

1117-45.1 *Premises conditions:* All residential buildings, and all parts thereof, together with the premises on which they are located, shall be kept in good repair and free from unsafe, unclean and unsanitary conditions, so that all parts thereof shall function properly and provide approved conditions of safety and sanitary habitability.

1117-45.2 *Supplied fixtures and equipment:* Every plumbing installation, gutter and downspout, required supplied facility, piece of equipment, or utility shall be so constructed or installed that it will function safely, and shall be maintained in satisfactory working condition.

1117-45.3 *Service or utility not to be shut off:* No owner, person in control, operator, or occupant shall cause any service, facility, equipment, or utility which is required under this Housing Code to be removed or shut off from or discontinued for any occupied dwelling, let or occupied by him except for such temporary interruption as may be necessary while actual repairs or alterations are in process, or during temporary emergencies.

1117-45.4 *Hardware for fire and self-closing doors:* All automatic and self-closing devices, and other hardware for required fire doors, self-closing doors, or other opening protectives shall be maintained in good working condition.

1117-45.5 *Unrestrained fire and self-closing doors:* No object shall be placed, and no restraining devices shall be installed so as to interfere with the proper functioning of a required fire door, self-closing door, or other opening protective.

1117-45.6 *Unused gas outlets:* Each gas outlet, including a valve or cock outlet, that is not to be used immediately, and each unused gas illuminating fixture shall be removed and the line shall be securely closed gastight with a threaded plug or cap, or, in lieu thereof, the use of a quick-disconnect device that is listed by the American Gas Association, Inc., Laboratories.

1117-45.7 *Insect and rodent control:* Every owner, person in control, or operator shall exterminate any insects, rodents, or other pests on the premises.

(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 418-2010, § 33, eff. Nov. 24, 2010; a. Ord. No. 283-2022, §§ 1, 2, eff. Sept. 14, 2022)

Editor's note—That those multiple dwelling structures existing at the time of the adoption of Ordinance No. 283-2022 that are not in strict compliance with the provisions and requirements of this ordinance shall have up to and including August 1, 2023 to comply with the provisions and requirements set forth herein.

Sec. 1117-47. Maintenance of Foundations Floors, Roofs and Exterior Walls.

1117-47.1 *Weathertight:* All foundations, floors, roofs and exterior walls of every dwelling shall be reasonably free of holes, large cracks and any loose and deteriorated material, and shall be maintained so as to be reasonably weathertight, and watertight.

1117-47.2 *Protective coating:* All exterior walls, woodwork and exposed metal portions of every dwelling that are inadequately protected against the weather due to lack of paint, or other approved protective coating shall be painted or otherwise protected against decay, corrosion, or deterioration.

1117-47.3 *Improve visibility:* In multiple dwellings, the walls of courts not built of light colored material shall, when necessary for improved visibility, be painted a light color and shall be so maintained.

(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996)

Sec. 1117-49. Maintenance of Interior Walls, Floors and Ceilings.

1117-49.1 *Cleanliness:* All walls, ceilings, floors and woodwork of any room or hall shall be kept free of large holes, large cracks, loose, flaky, peeling, unclean or insanitary

conditions. Whenever required by the director of buildings and inspections, all old wall coverings shall be removed from the rooms or halls and the walls and ceilings thoroughly cleaned and then repapered or painted.

1117-49.2 *Interior surfaces:* The walls, ceilings and floor of basements and cellars of all dwellings shall be maintained in a clean and sanitary condition.

1117-49.3 *Surfaces of toilet rooms:* All surfaces of every toilet room shall be constructed and maintained so as to be substantially impervious to water and so as to permit such surfaces to be easily kept in a clean and sanitary condition.

1117-49.4 *Space beneath sinks:* The space beneath sinks and lavatories shall be left open unless equipped with doors or drawers which make it readily accessible for cleaning and maintenance. The floor and wall surface beneath and around the sink and lavatory shall be kept in good order and repair.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996)

Sec. 1117-51. Maintenance of Accessory and Appurtenant Structures.

1117-51.1 *General:* All accessory and appurtenant structures such as garages, sheds, fences, etc., shall be maintained in good repair and free from health, accident and fire hazards.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996)

Sec. 1117-53. Fencing Vacant Premises.

1117-53.1 *Abatement of nuisance conditions on vacant premises:* The director of buildings and inspections shall be authorized to order the owner or person in control of a premises to take necessary measures, including, but not limited to, erecting fencing or posting signage on the premises, to prevent their premises from being used as an illegal dump site or for similar nuisance activity if any of the following conditions exist:

(a) The premises is unsafe or unsanitary;

(b) The premises has been abated at least once pursuant to Cincinnati Municipal Code Chapter 714, "Littering," or Chapter 731, "Weed Control,"; or

(c) The premises has been used as a dump site in violation of Section 729-30, "Dumping Prohibited," of the Cincinnati Municipal Code.

This section shall apply only to vacant lots or lots with vacant structures.

1117-53.3 *Abatement measures:* The abatement measures taken by the owner or person in control in response to an order issued pursuant to Section 1117-53.1 must be approved by the director and shall be maintained until the director of buildings and inspections approves of the owner or person in control's plan to prevent or timely abate nuisance conditions.

1117-53.5 *Failure to take abatement measures:* If, after service of an order issued under Section 1117-53.1, the owner or person in control fails to take abatement measures within the time provided, the director of buildings and inspections may enter the premises and undertake abatement measures, including installing fencing to protect against the creation of future nuisance conditions.

1117-53.7 *Administrative procedures*: Whenever premises is subject to abatement measures pursuant to Section 1117-53.1, the director of buildings and inspections shall:

(a) Serve the owner, as determined from the official land records of Hamilton County, or person in control by personal delivery or by certified mail with a notice of intent to undertake

abatement measures. If there is a vacant and unoccupied structure, the director shall also post a copy of the notice on the structure.

(b) The notice shall set forth the street address of the premises, the date of intended entry on the premises, the right of an owner or person in control to a public hearing before the director on the necessity of the abatement measures by the director prior to the measures being taken, and the time limit for requesting a public hearing, which shall be no less than seven days after the date of the notice of intent being issued and before the date of intended entry.

(c) If the owner or person in control requests in writing a public hearing within the time set forth in the notice of intent, the director shall refrain from fencing the premises until after the director has held a public hearing.

1117-53.9 *Hearings:* Whenever an owner or person in control requests a public hearing pursuant to this section, the director of buildings and inspections shall fix the time for the hearing and send notice of the hearing to the owner or person in control. The director of buildings and inspections shall conduct the hearing and receive testimony and other evidence as to whether good cause exists for the director to take abatement measures. The director shall announce the decision made at the conclusion of the hearing.

1117-53.11 *Liability of Owners or Persons in Control:* Any owner or person in control shall be jointly and severally liable for the costs incurred pursuant to this section.

1117-53.13 *Costs as a Lien on the Land and Personal Judgment Against Owners and Persons in Control*: When abatement measures have been taken in accordance with this section, the cost thereof shall be a lien on such lot or land from the date such expenses are reported to council. The clerk of council shall certify such cost to the county auditor to be placed upon the tax list and collected as other taxes are collected and returned to the City of Cincinnati in accordance with Section 715.26, Section 715.261, or Section 731.54 of the Ohio Revised Code. The cost of abatement may also be recovered by means of a judgment against the owner or person in control.

1117-53.13 *Nonconformity of Order to Take Abatement Measures:* Fencing may be erected pursuant to this section notwithstanding any contrary provision related to zoning or land use within the Cincinnati Municipal Code.

(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 418-2010, § 34, eff. Nov. 24, 2010; Ord. No. 0376-2023, §§ 1, 2, eff. Nov. 15, 2023)

Sec. 1117-55. Basement or Foundation Holes.

1117-55.1 *General:* When any building is removed, the basement or foundation hole shall be filled with non-combustible material and the lot shall be graded, or upon approval of the director of buildings and inspections the owner or person in control shall provide and maintain a fence adequate to prevent injury to the public.

(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 418-2010, § 35, eff. Nov. 24, 2010)

Sec. 1117-57. Trees.

1117-57.1 *General:* Every tree, whether located on a vacant lot or on a lot improved with any building, structure or other facility, shall be maintained in a safe condition. When a tree or any part thereof becomes in such a condition as to constitute a hazard to

life or property, the director of buildings and inspections may order the tree or hazardous portion thereof taken down and removed from the premises. Dead trees, or portions thereof, shall be considered prima facie evidence of an unsafe condition.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996)

Sec. 1117-59. Railings.

1117-59.1 *Balconies, porches and decks:* All exposed sides of balconies, porches and decks more than 30 inches above the adjacent grade line shall have effective railings, guards, walls or panels. Such protective feature shall be not less than 30 inches high. The design of such protective feature shall be as conditions require for reasonable safety for those using the area.

1117-59.2 *Inside stairs:* All inside stairs more than four risers high shall have a substantial handrail on each side of same, except that for stairs 44 inches or less in width, where a handrail is required on one side only of the stairs if a wall, conforming balustrade, or guard is on the other side of the stairs.

1117-59.3 *Outside stairs:* All outside stairs more than four risers high normally used for ingress shall have a substantial handrail on at least one side.

1117-59.4 *Height of railing:* Handrails shall be not less than 30 inches nor more than 38 inches above the nosings of treads or landings.

1117-59.5 *Areaways:* Areaways over 24 inches in vertical depth shall be provided with protective grills, railings not less than 30 inches high, or by other means affording equivalent protection to persons.

1117-59.6 *Walls:* When retaining walls with a difference in grade level on either side of the wall in excess of four feet are located closer than two feet to a walk, path, parking lot or driveway on the high side, such retaining walls shall be provided with a 42-inch high guardrail constructed in accordance with Sections 1003.2.12 through 1003.2.12.2 OBC, or other approved protective measure.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 357-1998, eff. Oct. 16, 1998; a. Ord. No. 59-2002, eff. March 28, 2002)

Sec. 1117-61. Security Provisions.

1117-61.1 *Doors:* Every door providing access to a dwelling unit shall be made tight-fitting and shall be equipped with a permanently installed operable locking device maintained by the owner or person in control.

Exceptions:

(1) Owner-occupied single-family dwellings including single-family dwellings occupied under a land contract.

(2) Exit doors required by § 1117-11 CBC shall be equipped with operating locking devices readily openable from the side from which egress is to be made, without the use of a tool, excessive force, special knowledge, or the insertion of a key.

1117-61.2 *Window openings:* Every exterior window opening shall be equipped with a permanently installed operable locking or latching device, or by the installation of bars or grilles maintained by the owner or person in control.

Exceptions:

(1) Owner-occupied single-family dwellings including single-family dwellings occupied under a land contract.

(2) Window openings, when all portions of which are more than 10 feet vertically above grade or any easily acces-

sible surface, and more than six feet horizontally from any easily accessible surface.

(3) Window openings required to be operable for egress or ventilation by the CBC and OBC shall be equipped with latching devices, bars, or grilles only, which are openable or removable from the interior without the use of a key, tool, excessive force, or special knowledge.

(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 59-2002, eff. March 28, 2002; a. Ord. No. 418-2010, § 36, eff. Nov. 24, 2010)

Sec. 1117-63. Janitor, Custodian or Agent.

1117-63.1 *Transient residential buildings:* In any transient residential building in which the owner or person in control does not reside, the owner or person in control shall be required to have on the premises a janitor, custodian, agent, or other responsible person to take charge of the same.

1117-63.2 *Nontransient residential buildings:* In any nontransient residential building in which the owner or person in control does not reside, the owner or person in control shall be required to have a designated janitor, custodian, agent, or other responsible person to take charge of the same, and the name, address and telephone number of such designated person shall be conspicuously displayed on the premises.

(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 418-2010, § 37, eff. Nov. 24, 2010)

Sec. 1117-65. Prohibited Uses of Dwellings.

1117-65.1 *General:* No live poultry or livestock shall be kept in any dwelling or part thereof. Any such fowl or animals kept on the same lot or premises with a dwelling shall be in accordance with the zoning code and the regulations of the board of health.

(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996)

Sec. 1117-67. Responsibilities.

1117-67.1 *General:* Where in this Housing Code the obligation for observance is not otherwise clearly designated, the respective responsibility of owner, person in control, operator, and occupant shall be as specified in §§ 1117-69 and 1117-71 CBC.

1117-67.2 *Effect of contract:* A contract between private parties shall not affect the parties' responsibilities under this Housing Code.

1117-67.3 *Owner and person in control responsibility:* Every owner or person in control shall be responsible for complying with all the provisions of this Housing Code, other than those specifically excepted.

(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 418-2010, § 38, eff. Nov. 24, 2010)

Sec. 1117-69. Responsibilities of Occupants.

1117-69.1 *General:* Each occupant shall comply with all duties imposed upon occupant by the applicable provisions of all municipal codes, regulations, and ordinances, and in particular:

(1) Keep that part of the premises which he occupies and uses safe and sanitary;

(2) Dispose of all rubbish, garbage, and other waste in a clean, safe, and sanitary manner; and

(3) Keep all plumbing fixtures in the dwelling unit or used by tenants as clean as their condition permits.

1117-69.2 *Violations by occupants:* Any occupant who creates a condition which

constitutes a violation of the standards established by Chapter 1117 of the Cincinnati Building Code may be punished for a violation in accordance with the penalty provisions of the Cincinnati Building Code, if the occupant fails to remedy the condition within a reasonable time after he receives notice of such violation, pursuant to § 1101-61 of the Cincinnati Building Code.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996)

Sec. 1117-71. Responsibilities of Owners and Operators of Rooming Houses.

1117-71.1 *Disposal of garbage and rubbish:* Every owner, person in control, or operator of every rooming house shall dispose of all garbage and rubbish in a clean and sanitary manner by placing it in approved storage facilities which are safe and sanitary.

1117-71.2 *Extermination of insects and rodents:* Every owner, person in control, or operator of a rooming house shall be responsible for the extermination of any insects, rodents or other pests in it or on the premises.

1117-71.3 *Sanitation:* Every operator of a rooming house shall be responsible for the sanitary maintenance of every part of the rooming house, and shall be further responsible for the sanitary maintenance of the entire premises where the entire structure or building within which the rooming house is contained is leased or occupied by the operator.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 418-2010, § 39, eff. Nov. 24, 2010)

Sec. 1117-73. Swimming Pool Safety Devices.

Structures designed as or intended to be used as a swimming pool that can contain 24 inches or more of water in depth at any point, shall have an adequate enclosure surrounding the pool area.

Exception: Above ground pools with continuous walls 48 inches above adjacent grade need not be enclosed. Provided, however, all access points shall be protected in a manner equivalent to the enclosure described below.

Enclosure: The enclosure shall extend not less than 48 inches above the ground, measured from the outside of the enclosure, at all points around the pool. All gates shall be self-closing and self-latching with latches placed at least 48 inches above the ground, measured from the outside of the enclosure.

Construction: The enclosure shall be constructed so as to prohibit the passage of a sphere larger than 4 inches in diameter through any opening or under the enclosure. The enclosure shall be designed to withstand a horizontal concentrated load of 200 pounds applied on a one-square-foot area at any point of the fence.
(Ord. No. 357-1998, eff. Oct. 16, 1998; a. Ord. No. 59-2002, eff. March 28, 2002)

Chapter 1119

BUILDING HAZARD ABATEMENT CODE

Sec. 1119-01. General.
Sec. 1119-02. Definitions.
Sec. 1119-03. General Requirements.
Sec. 1119-04. Light, Ventilation and Occupancy Limitations.
Sec. 1119-05. Plumbing Facilities and Fixture Requirements.
Sec. 1119-06. Mechanical and Electrical Requirements.
Sec. 1119-07. Fire Safety Requirements.

Sec. 1119-01. General.

1119-01.1 *Title:* This chapter of the Cincinnati Building Code (CBC) shall be known as the building hazard abatement code and may be cited as such.

1119-01.2 *Administration:* The administration of this building hazard abatement code is governed by the applicable provisions of Chapter 1101 of the CBC, the administrative code and other portions of the Cincinnati municipal code, with special reference to the following:

(1) § 1101-07 Liberal Construction

(2) § 1101-10 Conformance;

(3) § 1101-17 Permits;

(4) § 1101-43 Inspection, General;

(5) § 1101-61 Orders and Notice of Violations;

(6) § 1101-63 Dangerous and Unsafe Premises;

(7) § 1101-65 Vacations;

(8) § 1101-67 Vacation Notices;

(9) § 1101-71 Failure to Comply With Orders;

(10) § 1101-77 Obligation of Owners of Vacated Buildings;

(11) § 1101-51 Penalties;

(12) § 1101-57 Administrative Proceedings Preparatory to Demolition of Certain Buildings by Governmental Action.

(13) § 1101-81 Appeals to the Board of Building Appeals;

(14) § 1101-45 Right of Entry and Credentials;

1119-01.3 *Purpose:* The purpose of this building hazard abatement code is to establish minimum standards necessary for the preservation of the public safety, health, and general welfare in all buildings, portions thereof, or premises used or intended to be used for nonresidential purposes.

1119.01.4 *Scope:* The provisions of this building hazard abatement code are supplementary to the sections of Cincinnati Building Code that relate to the construction, use and maintenance of all buildings, portions thereof, or premises used or intended to be used for nonresidential purposes. Conditions not in compliance with the requirements of this chapter are hereby deemed to be serious safety or sanitation hazards. Therefore, all the provisions of this hazard abatement code shall be retroactive and shall apply to all nonresidential premises.

1119-01.5 *Application of building code:* This building hazard abatement code shall be deemed to be included within the reference to the Cincinnati Building Code.

1119-01.6 *Responsibilities of persons:* Owners and agents in charge of nonresidential premises shall maintain such structures and exterior property in compliance with this chapter of CBC.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996)

Sec. 1119-02. Definitions.

1119-02.1 *Meaning:* As used in Chapter 1119 CBC, the following words and terms shall have the meanings indicated in this section. Words and terms used and not specifically defined in this section but which are defined elsewhere in the Cincinnati Building Code, shall have the meanings defined in the CBC.

1119-02.2 *Number and Gender:* Words used in the singular include the plural and the plural the singular. Words used in the masculine gender include the feminine, and the feminine the masculine.

Approved: Approved by the director of buildings and inspections.

Exterior Property: The open space on the premises and on adjoining property under the control of owners or operators of such premises.

Plumbing: The practice, materials, and fixtures used in the installation, maintenance, extension and alteration of all piping, fixtures, appliances, and appurtenances within the scope of the Chapter 1105 CBC.

Plumbing Fixtures: A receptacle or device which is either permanently or temporarily connected to the water distribution system of the premises, and demands a supply of water therefrom; or discharges used water, liquid-borne waste materials, or sewage either directly or indirectly to the sanitary drainage system of the premises; or which requires both a water supply connection and a discharge to the sanitary drainage system of the premises.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996)

Sec. 1119-03. General Requirements.

1119-03.1 *Scope:* The provisions of this section shall govern the minimum safety conditions and standards for existing nonresidential structures and exterior property accessory thereto.

1119-03.2 *Vacant structures and land:* All vacant structures and premises thereof, exterior property or vacant land shall be maintained in a clean, safe, secure, and sanitary condition as provided herein so as not to adversely affect the public health or safety.

1119-03.2.1 *Vacant Lots:* Whenever the maintenance of any vacant lot or lots without enclosing fences shall, in the opinion of the director of buildings and inspections, constitute a nuisance, he shall be authorized to compel the owner or agent in charge of any such lot or lots to enclose the same with a fence. Notice of the order of the director of buildings and inspections declaring a vacant or unenclosed lot or lots to be a nuisance shall be served upon the owner or any agent. If there is no resident owner or agent, the notice shall be served by mail addressed to the last known place of residence of the owner or agent. Any owner or agent failing to comply with such notice within 20 days from the date of serving, shall be subject to the penalty prescribed by the CBC. In a situation of immediate danger, the director of buildings and inspections shall be authorized to cause such protective construction to be erected as he may consider necessary, and to charge the cost thereof to the owner.

1119-03.2.2 *Basement or Foundation Holes:* When any building is removed, the basement or foundation hole shall be filled with noncombustible material and the lot shall be graded, or upon approval of the director of buildings and inspections the owner shall provide and maintain a fence adequate to prevent injury to the public.

1119-03.2.3 *Trees:* Every tree, whether located on a vacant lot or on a lot improved with any building, structure or other facility, shall be maintained in a safe condition. When a tree or any part thereof becomes in such a condition as to constitute a hazard to life or property, the director of buildings and inspections may order the tree or hazardous portion thereof taken down and removed from the premises. Dead trees, or portions thereof, shall be considered prima facie evidence of an unsafe condition.

1119-03.3 *Building structure:* The interior and exterior of a structure shall be maintained in good repair, structurally sound and sanitary so as not to pose a threat to the public health, safety or welfare.

1119-03.3.1 *Structural members:* All structural members shall be maintained free of deterioration, and capable of safely bearing imposed dead and live loads.

1119-03.3.2 *Foundation walls:* All foundation walls shall be maintained plumb and free from open cracks and breaks and shall be kept in such condition so as to prevent the entry of rats.

1119-03.3.3 *Exterior walls:* All exterior walls shall be free of holes, breaks, loose or rotting materials; and maintained weatherproof and properly surface-coated where required to prevent deterioration.

1119-03.3.4 *Roofs and drainage:* All roofs and flashings shall be sound, tight, and not admit moisture. Roof drainage shall be adequate to prevent dampness or deterioration in the walls or interior portion of the building. Roof water shall not be discharged in a manner that creates a public nuisance.

1119-03.3.5 *Decorative features:* All cornices, belt courses, corbels, terra cotta trim, wall facings and similar decorative features shall be maintained in good repair with proper anchorage and in a safe condition.

1119-03.3.6 *Overhang extensions:* All canopies, marquees, signs, metal awnings, stairways, fire escapes, standpipes, exhaust ducts and similar overhang extensions shall be maintained in good repair and be properly anchored so as to be kept in a safe and sound condition. All exposed surfaces of metal or wood shall be protected from the elements and against decay or rust by periodic application of weather-coating materials, such as paint or similar surface treatment.

1119-03.3.7 *Chimneys and towers:* All chimneys, cooling towers, smoke stacks, and similar appurtenances shall be maintained structurally safe, sound, and in good repair. All exposed surfaces of metal or wood shall be protected from the elements and against decay or rust by periodic application of weather-coating materials, such as paint or similar surface treatment.

1119-03.4 *Stairs and railings:* All interior and exterior stairs, stair landings and railings shall be maintained in sound condition and good repair.

1119-03.4.1 *Handrails and guardrails:* Every flight of stairs which is more than four risers high shall have a handrail on at least one side of the stair, and every open portion of a stair, landing or balcony which is more than 30 inches (762 mm) above the floor or grade below shall have guardrails. Handrails shall be not less than 30 inches (762 mm) nor more than 42 inches (1067 mm) high, measured vertically above the nosing of the treads. Guardrails shall be not less than 30 inches (762 mm) high above the floor of the landing or balcony. Every handrail and guardrail shall be firmly fastened and capable of bearing normally imposed loads and shall be maintained in good condition.

1119-03.4.2 *Doors:* All doors and hardware shall be maintained in good operating condition.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 59-2002, eff. March 28, 2002)

Sec. 1119-04. Light, Ventilation and Occupancy Limitations.

1119-04.1 *Scope:* The provisions of this section shall govern the minimum conditions and standards for the light, ventilation and space for the occupancy of a structure.

1119-04.1.1 *Alternative devices:* In lieu of the means for natural light and ventilation herein prescribed, artificial light or mechanical ventilation shall be permitted in accordance with CBC.

1119-04.2 *Required illumination:* Every common hall and stairway required as a means of egress, shall be lighted at all times with at least a 60 watt standard incandescent bulb or equivalent for each 200 square feet of floor area, provided that the spacing between the

lights shall not be greater than 30 feet. Every exterior stairway, if required as a means of egress, shall be illuminated with a minimum of one foot candle at floors, landings and treads.

1119-04.3 *Ventilation:* In occupied rooms or spaces in which the lack of ventilation air is deemed by the director of buildings and inspections to constitute a dangerous or unsafe condition, ventilation air shall be provided in accordance with CBC.

1119-04.3.1 *Maintenance of existing systems:* Existing ventilation air systems shall be maintained in a safe and sanitary condition and shall not be rendered inoperable or reduced below the requirements of the CBC.

1119-04.3.2 *Process ventilation:* Where injurious, toxic, irritating or noxious fumes, gases, dust, or mists are generated, a local exhaust ventilation system shall be provided to remove the contaminating agent at the source. Air shall be exhausted to the exterior in accordance with Ohio Environmental Protection Agency standards and not be recirculated to any space.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996)

Sec. 1119-05. Plumbing Facilities and Fixture Requirements.

1119-05.1 *Scope:* The provisions of this section shall govern the minimum plumbing facilities and plumbing fixtures to be provided.

1119-05.2 *Required employees' facilities:* Employees shall have plumbing facilities available for their use.

1119-05.3 *Plumbing fixtures:* All plumbing fixtures shall be properly installed and maintained in working order and shall be capable of performing the functions for which such fixtures are designed.

1119-05.4 *Water system:* Every sink, lavatory, bathtub or shower, drinking fountain, water closet or other plumbing fixture shall be properly connected to either a public water supply system or to an approved private water supply system. All kitchen sinks, lavatories, laundry facilities, bathtubs and showers shall be supplied with hot or tempered and cold running water.

1119-05.4.1 *Contamination:* The water supply shall be maintained free from contamination.

1119-05.5 *Sanitary drainage system:* All plumbing fixtures shall be properly connected to either a public sewer system or to an approved private sewage disposal system. (Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996)

Sec. 1119-06. Mechanical and Electrical Requirements.

1119-06.1 *Scope:* The provisions of this section shall govern the minimum mechanical and electrical facilities and equipment to be provided.

1119-06.2 *Mechanical equipment:* All mechanical equipment shall be properly installed and maintained in safe working condition, and capable of performing the intended function.

1119-06.2.1 *Flue connections:* All fuel-burning equipment and appliances shall be connected to an approved chimney or vent.

Exception: Fuel-burning equipment and appliances that are labeled for unvented operation.

1119-06.2.2 *Clearances:* All required clearances to combustible materials shall be maintained in accordance with CBC.

1119-06.2.3 *Safety controls:* All safety controls for fuel-burning equipment shall be maintained in effective operation.

1119-06.2.4 *Combustion air:* A supply of air for complete combustion of the fuel and for ventilation of the space shall be provided for the fuel-burning equipment.

1119-06.2.5 *Authority to Shut-Off Gas-Fired Space Heaters and Water Heaters:* Whenever it shall appear on inspection that gas equipment used for space heating or water heating is discharging dangerous fames, or is unsafe for use, and when, in the opinion of the director of buildings and inspections or other persons in the fire division or department of health authorized by the city manager, immediate action is necessary, they shall be authorized to shut off the supply of gas to the equipment by turning off the valve or cock to the equipment, or when required, by capping or plugging gas lines to the equipment or other mechanical means to accomplish shut off of gas to the equipment and attaching thereto a tag and seal out of service so as to make inoperative or to take any steps necessary in the interest of the public safety with or without notice to the owners of the property or equipment involved.

1119-06.2.6. *Nonconforming Gas-fired Equipment:* Whenever it shall appear on inspection that gas equipment used for space heating or water heating is in violation of any of the requirements of any section of this Code, or of any law or ordinance relating to the same subject matter, an order shall be issued to the owner or the person in control of the gas equipment to correct same. After such order and the failure of the owner or person in control of such gas equipment to correct the violation within the time specified in the order, the director of buildings and inspections or other persons in the fire division or department of health. authorized by the city manager, shall be authorized to shut off the supply of gas to the gas equipment in the manner herein provided.

1119-06.2.7. *Sealing Device Not to Be Removed:* It shall be unlawful to remove the tag, seal, cap, plug, or other mechanism or sealing device or to use or permit to be used any gas equipment which use has been ordered discontinued in accordance with § 1119-06.2.5 or 1119-06.2.6 CBC, until such equipment is made to comply with the applicable provisions of the CBC and OBC.

1119-06.3 *Fireplaces:* Fireplaces and solid fuel-burning appliances shall be properly installed and maintained in a safe working condition.

1119-06.4 *Electrical facilities required:* Every building used for human occupancy shall be provided with an electrical system in compliance with the requirements of Sections 1119-06.4.1 through 1119-06.4.9 CBC.

1119-06.4.1 *Installation:* All electrical equipment, wiring and appliances shall be properly installed and maintained in a safe and approved manner in accordance with this Chapter and the provisions of NFIPA 70 listed in Appendix A OBC.

1119-06.4.2 *Electrical system hazards:* Where it is found that the electrical system in a structure constitutes a hazard to the occupants or the structure by reason of inadequate service, improper fusing, insufficient outlets, improper wiring and installation, deterioration or damage, or for similar reasons, the Director of Buildings and Inspections shall require the defects to be corrected to eliminate the hazard. When any unsafe wiring conditions as hereinafter described shall not have been corrected as ordered within the time given in the notice, the Director of Buildings and Inspections may direct the person, firm or corporation supplying the electric service to the building to discontinue the service. It shall be unlawful for any person, firm, or corporation to continue such service or to restore same until furnished with a copy of a certificate of approval from the electrical inspection agency, or a directive of the Director of Buildings and Inspections

certifying that an inspection has been made, that all hazardous conditions have been corrected and that all wiring, apparatus, and feeders have been brought into substantial compliance with the minimum requirements of this code as set forth in Section 1119-06.4.4 CBC.

1119-06.4.3 *Existing Hazardous Wiring:* When the wiring of an existing building is found to constitute a serious safety hazard, the Director of Buildings and Inspections shall order the owner, agent, or person in charge of such building or structure to bring all wiring into substantial compliance with the minimum requirements of this code as set forth in Section 1119-06.4.4 CBC. For the purposes of this section, serious safety hazards shall include, but not be limited to the following:

(1) Over fusing (installation of overcurrent protective devices which exceed the approved circuit carrying capacity of the conductors), or bridging of required fuses;

(2) Unapproved splices;

(3) Overloaded service, feeder or branch circuits;

(4) Extension cord abuse (extension cords used as permanent wiring);

(5) Unprotected knife switches or other dangerous electrical equipment;

(6) Defective permanent wiring;

(7) Lighting fixtures with pull chain switches mounted above plumbing fixtures;

(8) Brass shell sockets within reach of grounded surfaces.

1119-06.4.4 *Minimum Facilities for Existing Structures:* The conditions listed in subsections 1119-06.4.5 through 1119-06.4.9 CBC shall be deemed to be the minimum facilities acceptable under this code to correct hazardous conditions in existing buildings or other structures.

1119-06.4.5 *Receptacle Outlets:* Every existing habitable room shall be provided with a minimum of one duplex receptacle outlet for each 55 square feet of floor area or fraction thereof. Required outlets shall not be spaced closer than 12 fee, measured around the perimeter of the room.

1119-06.4.6 *Service Equipment:* Such equipment shall be of approved size for the load with a minimum of 60 ampere capacity.

1119-06.4.7 *Overload Protection:* All circuits of 30 amperes or less shall be protected by nontamperable fuses or circuit breakers of approved size.

1119-06.4.8 *Hazardous Wiring and Devices:* All wiring and electrical devices shall be of such nature as to be safe under normal conditions of use and free from all hazards apt to result in injury or fire. All hazardous wiring or equipment, as determined by the Director of Buildings and Inspections, shall be removed.

1119-06.4.9 *Fused panels:* Existing fused panels, load centers and disconnects within medium base fuse holders shall have a nonremovable insert installed that shall allow only the proper amperage fuse to be installed as sized for the branch wiring that is protected by that fuse.

1119-06.4.10 *Extensions to Power or Lighting Wiring:* In existing buildings or other structures, the wiring may be extended within the same room or area in the type of wiring which the building was originally wired, provided that neither the existing wiring nor the additions thereto shall constitute a serious safety hazard. If there are no visible unsafe

defects in the existing wiring, such existing wiring shall not be required to be changed, even if new service lines are required.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 59-2002, eff. March 28, 2002)

Sec. 1119-07. Fire Safety Requirements.

1119-07.1 *Scope:* The provisions of this section shall govern the minimum conditions and standards for fire safety relating to structures and exterior premises, including fire safety facilities and equipment to be provided.

1119-07.2 *Means of egress:* Safe, continuous and unobstructed means of egress shall be provided from the interior of a structure to a public way.

1119-07.2.1 *Locked doors:* All doors in the required means of egress shall be readily openable from the inner side without the use of keys, except as provided in Chapter OBC.

1119-07.2.2 *Exit signs:* All required means of egress shall be indicated with approved exit signs where required by Chapter 10 OBC. All exit signs shall be maintained visible and shall be illuminated at all times that the building is occupied.

1119-07.2.3 *Number of exits:* In nonresidential buildings, or portions thereof, every story used for human occupancy shall be provided with not less than two independent and remote exits in accordance with Chapter 10 OBC 117.

Exceptions: A single exit shall be acceptable under any one of the following conditions:

(1) Where the building is equipped throughout with an automatic fire suppression system and an automatic fire alarm system with smoke detectors located in all corridors, lobbies and common areas, or;

(2) Where the building is provided with an automatic fire alarm system and the exit is a smokeproof enclosure or pressurized stair, or;

(3) In buildings and stories that require only one exit in accordance with the requirements of Chapter 10 OBC.

1119-07.2.4 *Exit capacity:* The capacity of the exits serving a floor shall be sufficient for the occupant load thereof as determined by Chapter 10 OBC 119.

1119-07.2.5 *Corridor enclosure:* All corridors serving an occupant load of greater than 30 and openings therein shall provide an effective smoke barrier. All transoms, louvers, doors and other openings shall be closed or shall be self-closing. The use of door stops, wedges and other unapproved hold-open devices is prohibited.

Exception: Corridors which are in compliance with Chapter 10 OBC.

1119-07.2.6 *Dead-end travel distance:* All corridors which serve more than one exit shall provide direct connection to such exits. The length of a dead-end corridor shall not exceed 35 feet (10668 mm) where the building is not equipped throughout with an automatic fire suppression system. The dead-end travel distance limitation shall be increased to 70 feet (21336 mm) where the building is equipped throughout with an automatic fire suppression system.

1119-07.2.7 *Aisles:* Aisleways shall have a minimum unobstructed clearance of 44 inches (1118 mm) where serving an occupant load of greater than 50, and 36 inches (914 mm) where serving an occupant load of not greater than 50.

1119-07.3 *Accumulations and storage:* Rubbish, garbage of other materials shall not be stored or allowed to accumulate in stairways, passageways, doors, windows, fire escapes, or other means of egress.

1119-07.4 *Fireresistance ratings:* The fire resistance rating of floors, walls, ceilings, and other elements and components shall be maintained.

1119-07.4.1 *Maintenance:* All required fireresistance rated doors or smoke barriers shall be maintained in good working order, including all hardware necessary for the proper operation thereof. The use of door stops, wedges and other unapproved hold-open devices is prohibited.

1119-07.5 *Fire protection systems:* All systems, devices and equipment to detect a fire, actuate an alarm, or suppress or control a fire or any combination thereof shall be maintained in proper operating condition at all times.

1119-07.5.1 *Fire suppression systems:* Fire suppression systems shall be maintained in good condition and free from mechanical injury. Sprinkler heads shall be maintained clean, free of corrosion, obstructions, paint, and damage.

1119-07.5.2 *Standpipe systems:* Hose connections shall be identified and accessible.

1119-07.5.3 *Fire extinguishers:* All portable fire extinguishers shall be visible, accessible, and shall be maintained in an efficient and safe operating condition.
(Ordained by Ord. No. 67-1996, eff. Apr. 5, 1996; a. Ord. No. 357-1998, eff. Oct. 16, 1998; a. Ord. No. 59-2002, eff. March 28, 2002)

Chapter 1121

STANDARDS FOR ADAPTIVE REHABILITATION OF HISTORIC BUILDINGS AND STRUCTURES

Sec. 1121-01. Purpose.
Sec. 1121-03. Scope.
Sec. 1121-05. Historic Buildings and Structures.
Sec. 1121-07. Fire-Resistive Construction.
Sec. 1121-09. Means of Egress Stairways.
Sec. 1121-11. Exterior Openings.
Sec. 1121-13. Unoccupied Floors.
Sec. 1121-15. Alternative Construction.
Sec. 1121-17. Appeals.

Sec. 1121-01. Purpose.

The purpose of this chapter is to promote and facilitate the development, preservation, restoration, change of occupancy and adaptive rehabilitation of historic structures in the City of Cincinnati.
(Ordained by Ord. No. 370-2001, eff. Dec. 27, 2001; a. Ord. No. 59-2002, eff. March 28, 2002)

Sec. 1121-03. Scope.

This chapter provides for the adaptive rehabilitation of historic buildings by specifying pursuant to Section 3406.0 of the Ohio Building Code means for the protection of the public that have been determined to satisfy the intent of the code requirements as an alternative to those otherwise mandated by the Ohio Building Code and the Cincinnati Building Code.

The provisions of this Chapter are intended as an optional approach for use in the planning, design, and evaluation of certain proposed restoration and rehabilitation projects involving historic buildings. As such, these provisions constitute an alternative to compliance with certain of the provisions of Chapters 2 through 33 of the OBC and applicable chapters of CBC but do not preclude the option of full compliance with Chapter 34 of the OBC and applicable chapters of CBC.
(Ordained by Ord. No. 370-2001, eff. Dec. 27, 2001)

Sec. 1121-05. Historic Buildings and Structures.

Buildings and structures are deemed historic for purposes of this chapter if individually listed on the National Register of Historic Places, individually designated as an historic landmark by the City of Cincinnati, or located within an historic district listed on the National Register of Historic Places or established pursuant to Chapter 1435, Historic Preservation, of the Cincinnati Municipal Code and determined by the Urban Conservator as contributing to the historic significance of the district.

An historic building or structure may only be repaired, altered, added to, restored or moved under the standards provided by this chapter:

(1) When the intended use is classified in use Group R-2, R-3, B, M or a combination of those use Groups;

(2) The building has occupied floors no more than four stories above lowest level of Fire Division access or has occupied floors no more than five stories above lowest level of Fire Division access when all occupied floors are protected with an approved fire suppression system;

(3) The building or structure is of minimum Type IIIB construction;

(4) The building or structure contains no more than 2,000 square feet of occupied area maximum floor area that may be occupied is 4,000 square feet; and

(5) Each occupied floor has at least two means of egress, one of which may be a fire escape; and

(6) The Chief of the Fire Division determines pursuant to the Cincinnati Fire Prevention Code that the proposed work will remedy all serious threats to life safety.

(Ordained by Ord. No. 370-2001, eff. Dec. 27, 2001; a. Ord. No. 59-2002, eff. March 28, 2002; Emer. Ord. No. 238-2015, § 51, eff. July 1, 2015)

Sec. 1121-07. Fire-Resistive Construction.

Fire resistive enclosures and separations must be provided:

(1) Around stairwells and other common means of egress;

(2) Between occupied units;

(3) Between different uses; and

(4) Around fuel-fired space or water-heating equipment.

Exception: Other than stairwells and other common means of egress, fire areas requiring fire-resistive protection may have exposed combustible ceiling construction or metal ceiling when protected by an approved automatic fire suppression system.

Fire resistance protection for combustible framing may be plaster on wood lath, maintained in good condition without cracks or defects, and may be replaced within in-kind construction or 5/8" type "X" gypsum board, or protected by an approved automatic fire suppression system.

Exception: Combustible wood trim, crown moldings, wainscoting, etc., are permitted when backed by noncombustible wall and ceiling surfaces; or protected by an approved automatic fire suppression system.
(Ordained by Ord. No. 370-2001, eff. Dec. 27, 2001)

Sec. 1121-09. Means of Egress Stairways.

Existing stairways and enclosures and replacement of stairways within existing stair enclosures must comply with the following minimum requirements:

1121-09.1 Stairways may not be less than 32" in width and may extend no more than 15' between landings.

1121-09.2 Winder stairways are permitted.

1121-09.3 Existing handrails and in-kind replacement handrails not less than 34" in height provided only on the open sides of stairways are permitted; guards need not be provided.

1121-09.4 Stairway enclosures must be fire resistive in accordance with § 1121-07 and § 1121-07.1 CBC.

1121-09.5 Stairway doors must be self-closing, self-latching and be of solid-core wood, wood-panel or steel construction.

1121-09.6 Stairway doors may not be less than 32" in width and be well-fitted in the opening.

1121-09.7 The occupied side of stairway door shall be provided with a hard wired interconnected smoke detector capable of annunciating alarm signals to all occupied portions of the building.

1121-09.8 Stairway door transoms must be fixed in place and any glazing replaced with 5/8" type "X" gypsum board insert, unless the glazing is protected by a sprinkler head on both sides of the transom and a ventilation is provided at the top of the stairwell to the building exterior.
(Ordained by Ord. No. 370-2001, eff. Dec. 27, 2001)

Sec. 1121-11. Exterior Openings.

Existing or replacement windows immediately adjacent to a property line or along a fire escape path are permitted when protected by a sprinkler head on the interior side of such openings.
(Ordained by Ord. No. 370-2001, eff. Dec. 27, 2001)

Sec. 1121-13. Unoccupied Floors.

Every unoccupied floor must comply with the vacant building maintenance licensing standards set forth in § 1101-79 CBC and must contain at least one hardwired interconnected smoke detector in each fire area, capable of annunciating alarm signals to all occupied portions of the building.
(Ordained by Ord. No. 370-2001, eff. Dec. 27, 2001)

Sec. 1121-15. Alternative Construction.

The provisions of this chapter are not intended to limit the appropriate use of mate-

rials, appliances, equipment or methods of design or construction not specifically prescribed by this code, provided the director of buildings and inspections determines that the proposed alternate materials, appliances, equipment or methods of design or construction are at least equivalent to those prescribed in this code in regard to suitability, quality, strength, effectiveness, fire resistance, durability, dimensional stability, safety and sanitation.

Determination of equivalence shall be based on design or test methods or other such standards approved by the director. The director may require that evidence or proof be submitted to substantiate any claims of equivalency regarding a proposed alternate. The director may accept as supporting data to assist in this determination duly authenticated reports from the Building Officials and Code Administrators International, Inc., Southern Building Code Congress International, Inc., International Conference of Building Officials, the National Evaluation Service Committee of the Council of American Building Officials, and acceptance documents from the U.S. Department of Housing and Urban Development or other approved authoritative sources. The costs of all tests, reports and investigations required under these provisions shall be paid by the applicant.
(Ordained by Ord. No. 370-2001, eff. Dec. 27, 2001)

Sec. 1121-17. Appeals.

1121-17.1 *Appeals from Determinations Made by the Fire Chief:* Determinations made by the Chief of the Fire Division pursuant to the Cincinnati Fire Prevention Code that the proposed work will not remedy all serious threats to life safety may be taken to the Cincinnati fire prevention board of appeals as provided by the Cincinnati Fire Prevention Code.

1121-17.2 *Appeals from Determinations Made by the Director of Buildings and Inspections:* Determinations made by the director of buildings and inspections pursuant to this chapter may be taken to the board of building appeals as provided by § 1101-81 CBC.
(Ordained by Ord. No. 370-2001, eff. Dec. 27, 2001)

Chapter 1123

VACANT FORECLOSED RESIDENTIAL PROPERTY REGISTRATION

Sec. 1123-1. Legislative Findings.
Sec. 1123-3. Definitions.
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Sec. 1123-9. Maintenance Obligations of Mortgagees.
Sec. 1123-11. Penalties.
Sec. 1123-13. Exemptions.
Sec. 1123-15. Point of Sale Inspections on Vacant, Foreclosed Properties.
Sec. 1123-17. Joint and Several Liability.
Sec. 1123-19. Severability.

Sec. 1123-1. Legislative Findings.

It is hereby found and determined that vacant, foreclosed properties pose a danger to the public health, safety and welfare. Vacant, foreclosed properties also quickly diminish in value and are at greater risk for becoming unsecured, vandalized and hazardous. Several studies have demonstrated that vacant, foreclosed properties can quickly become blighted properties, and foreclosed residential properties are at greater risk of becoming vacant and abandoned properties than other properties in the city. Locating the person in control of the property or responsible for the care and maintenance of the property is often an impossible task, mired in disputes between the mortgagee, mortgagor, servicer, and subservicer. Accordingly, citations for property maintenance are routinely ignored at these properties, placing properties at increased risk for becoming unsecured, vandalized, and hazardous.

The proliferation of vacant, foreclosed properties and the failure to maintain and monitor these properties has caused their value to diminish, their condition to deteriorate, and blight to flourish. As a result, these properties are structurally compromised, provide havens for criminal activity; jeopardize the safety of neighborhoods; pose dangerous risks to the city's firefighters, police officers, and code enforcement officials; deplete already scarce city resources; diminish surrounding property values throughout the city; undermine the city's ability to enforce its criminal laws; and interfere with the city's duty to protect its citizens from unsafe and harmful conditions and to protect vacant foreclosed properties from further degradation.

The purpose of this chapter is to ensure that vacant, foreclosed properties are protected and maintained and that city officials are alerted to the location of these vulnerable properties. This chapter is enacted in order to protect blighted foreclosed properties and prevent their further degradation, as well as to address the problem of blight and the threat to the public health, safety and welfare that can result from unmonitored vacant, foreclosed properties.

This chapter was initially enacted in June 2012 as a pilot project and applied to the neighborhoods of Westwood, West Price Hill, East Price Hill, College Hill, and Madisonville. These neighborhoods were selected due to the high concentration of foreclosures during the past several years. During the pilot program, the city sought to address the neighborhoods with the most severe problems.

Under the program, registrants receive a particularized benefit in the form of City oversight to ensure that vacant foreclosed properties do not unnecessarily diminish in value and structural integrity as a result of becoming unsecured, vandalized, and hazardous. Each property in the program is routinely inspected to determine if it is vacant and being maintained. Photos are taken to document the condition of the property at the beginning and end of the foreclosure process. Any maintenance issues prohibited by this chapter and other sections of the Cincinnati Municipal Code are promptly reported to the registrant of the property.

One problem encountered under the current VFPR ordinance is that, upon judicial sale to the mortgagee, VFPR regulation ceases. Thus, upon legal transfer of title to the mortgagee, basic VFPR maintenance requirements can no longer be enforced. As a result, the City has seen VFPR properties which were maintained during the foreclosure process quickly degrade in condition. Post-judicial sale, some VFPR program maintenance requirements (e.g., high grass or standing water) can be enforced against mortgagees by the City under other existing CMC health and safety standards. However, for other VFPR maintenance requirements

(e.g. no signs or placards on the front of the property advertising it as vacant and foreclosed), the City has no enforcement ability upon cessation of the VFPR case at judicial sale. This change in enforcement ability undermines the regulation and continuity that occurred prior to judicial sale.

After approximately eighteen months, the city has analyzed and evaluated this pilot program. The city has concluded that the program has been and continues to be successful. Accordingly, the city now wishes to extend this program to apply to all fifty-two neighborhoods in the city of Cincinnati. As well, it wishes to extend the timeline for VFPR enforcement from within ten (10) business days of foreclosure and vacancy until title transfers to a bona fide owner occupant or an unaffiliated third party.
(Ordained by Ord. No. 195-2012, § 1, eff. July 6, 2012; a. Ord. No. 035-2014, § 1, eff. April 12, 2014)

Sec. 1123-3. Definitions.

For the purposes of this chapter, words and phrases shall have their ordinary meaning unless defined in the following sections or in the preceding chapters of Title XI.
(Ordained by Ord. No. 195-2012, § 1, eff. July 6, 2012)

Sec. 1123-3-C. City Solicitor.

"City solicitor" shall mean the city solicitor of the city of Cincinnati or his or her designee.
(Ordained by Ord. No. 195-2012, § 1, eff. July 6, 2012)

Sec. 1123-3-C-1. Code Official.

"Code official" shall mean the property maintenance deputy of the department of buildings and inspections of the city of Cincinnati or his designee.
(Ordained by Ord. No. 195-2012, § 1, eff. July 6, 2012; a. Ord. No. 035-2014, § 1, eff. April 12, 2014; Emer. Ord. No. 238-2015, § 52, eff. July 1, 2015)

Sec. 1123-3-F. Foreclosed.

"Foreclosed" shall mean a property upon which a mortgagee has filed an action in foreclosure in order to recover monies pursuant to a mortgage agreement which has been secured by a lien on property.
(Ordained by Ord. No. 195-2012, § 1, eff. July 6, 2012)

Sec. 1123-3-M. Mortgagee.

"Mortgagee" shall mean any party to a mortgage agreement whose interest in that agreement is secured by a lien on residential property who has filed an action in foreclosure on the particular premises at issue. For the purposes of Chapter 1123, the party shall be considered the mortgagee until title to the premises is transferred to a bona fide owner-occupant or unaffiliated third-party.
(Ordained by Ord. No. 195-2012, § 1, eff. July 6, 2012; a. Ord. No. 035-2014, § 1, eff. April 12, 2014; a. Ord. No. 343-2015, § 1, eff. Dec. 4, 2015)

Sec. 1123-3-P. Person in Control.

"Person in control" shall mean the person, persons, or entity holding title to the freehold estate of the premises; a mortgagee or vendee in possession; a receiver; an executor; a trustee; and any person, public or private entity, lessee or holder of a lesser estate in the premises, and/or its duly authorized agent(s), with the authority to bring a building or premises into compliance with the provisions of this code, including, but not limited to any mortgagee that has filed an action in foreclosure on the particular premises at issue, until title to the premises is transferred to a third party.
(Ordained by Ord. No. 195-2012, § 1, eff. July 6, 2012)

Sec. 1123-3-P-1. Repealed.
(Ordained by Ord. No. 195-2012, § 1, eff. July 6, 2012; r. Ord. No. 035-2014, § 1, eff. April 12, 2014)

Sec. 1123-3-P-2. PMCE.

"*PMCE*" shall refer to the property maintenance code enforcement division of the department of buildings and inspections of the City of Cincinnati.
(Ordained by Ord. No. 195-2012, § 1, eff. July 6, 2012; a. Ord. No. 035-2014, § 1, eff. April 12, 2014; Emer. Ord. No. 238-2015, § 53, eff. July 1, 2015)

Sec. 1123-3-R. Residential Property.

"Residential property" shall mean parcel of land within the corporate limits of the city of Cincinnati which contains a dwelling or structure that provides living accommodations for persons.
(Ordained by Ord. No. 195-2012, § 1, eff. July 6, 2012; a. Ord. No. 035-2014, § 1, eff. April 12, 2014)

Sec. 1123-3-V. Vacant.

"Vacant" shall mean unoccupied or without authorized human inhabitants.
(Ordained by Ord. No. 195-2012, § 1, eff. July 6, 2012)

Sec. 1123-3-V-1. Vacant, Foreclosed Property Registration Form.

"Vacant, foreclosed property registration form" shall mean a form publicly available from the PMCE division that mortgagees subject to the requirements of this chapter must complete and submit as specified in this section.
(Ordained by Ord. No. 195-2012, § 1, eff. July 6, 2012)

Sec. 1123-5. Registration of Vacant, Foreclosed Residential Property.

a. Within ten (10) business days of filing a foreclosure action on residential property that is vacant at the time of filing, the mortgagee shall submit a vacant, foreclosed property registration form for the property to the city's PMCE division.

A mortgagee is not required to submit the vacant, foreclosed registration form if the residential property is not vacant on the date of the filing of a foreclosure action on the property. However, if the residential property becomes vacant at any point during the foreclosure process, the mortgagee shall submit a vacant, foreclosed property registration form regarding the property to the city's PMCE division within ten (10) business days of the vacancy.

The vacant, foreclosed property registration form shall contain the following information:

(1) Description of the residential property, including, but not limited to, the street address and parcel identification number;

(2) The name, street address, and telephone number of a natural person, 18 years of age or older, or a business entity registered with the Ohio Secretary of State designated by the mortgagee as an authorized agent for receiving notices of code violations and for receiving process in any court proceeding or administrative enforcement proceeding on behalf of the mortgagee in connection with enforcement of this chapter, and this person or entity must maintain an office in Ohio or must actually reside in Ohio; and

(3) The mortgagee shall pay the initial registration fee listed in section 1123-7(1) or, if the mortgagee meets the exemption requirements in section 1123-13, the mortgagee shall pay the exception fee listed in section 1123-7(3).

b. The mortgagee shall notify the city's PMCE division within ten (10) business days of any change of information on the foreclosed property registration form. The vacant, foreclosed property registration form shall be maintained with accurate information until the property is transferred to a bona fide owner-occupant, or an unaffiliated third party. The mortgagee shall notify PMCE in writing when the property is transferred to a bona fide owner-occupant or an unaffiliated third party, or the property is reoccupied, so the property may be promptly removed from the registry.

c. On an annual basis, the mortgagee shall pay the annual registration fee listed in section 1123-7(2) or, if the mortgagee meets the exemption requirements in section 1123-13, the mortgagee shall pay the exception fee listed in section 1123-7(3).
(Ordained by Ord. No. 195-2012, § 1, eff. July 6, 2012; a. Ord. No. 035-2014, § 1, eff. April 12, 2014)

Sec. 1123-7. Fees.

Mortgagees shall pay any required fees until the property is transferred to a bona fide owner-occupant or an unaffiliated third-party. The fees for the various requirements under this chapter are as follows:

Subsection	*Title of fee*	*Fee amount*
(1)	Initial registration fee	$500
(2)	Annual registration fee	$500
(3)	Exception fee	$50

All fees shall be directed to a special fund designated only for use in administering and operating the registry program. The fee is non-refundable and cannot be prorated.
(Ordained by Ord. No. 195-2012, § 1, eff. July 6, 2012; a. Ord. No. 035-2014, § 1, eff. April 12, 2014)

Sec. 1123-9. Maintenance Obligations of Mortgagees.

During the period that the property is registered, the mortgagee shall have the obligations set forth in this section.

a. Vacant, foreclosed property shall be maintained free of all outward appearances of foreclosure and vacancy during the registration period including:

(1) No signs or placards on the exterior of the building or in the windows indicating that the property is vacant or foreclosed;

(2) Grass shall be no higher than 10 inches at any time and all noxious weeds shall be removed;

(3) The premises shall be maintained free of debris and litter;

(4) The premises shall remain secure and locked. Broken windows and doors which are visible from the right-of-way may be covered with plywood or similar boarding material on an emergency basis, but for no more than ten (10) business days, while arrangements are being made to replace broken glass or broken parts of the existing windows and doors. Broken windows and doors on the rear or sides of the building may be boarded until the windows and doors are repaired for re-occupancy provided that the boarded openings are not visible from public right-of-way;

(5) Windows and doors which are visible from the right-of-way may not be boarded and shall be maintained in good repair;

(6) Handbills, circulars, and advertisements shall be removed from porches and yards in a timely manner; and

(7) Standing water on the premises, including but not limited to standing water in swimming pools, shall be eliminated.

b. The maintenance requirements and penalties in this chapter related to vacant, foreclosed residential properties are in addition to, and shall not be considered in conflict with, any and all other property maintenance requirements of the Cincinnati Municipal Code. Nothing within this chapter shall be construed to limit the responsibilities of persons in control to comply with and adhere to any and all building, housing, health, and zoning ordinances established by the city. Nothing within this chapter shall be construed to limit or conflict with the responsibilities of persons in control to comply with and adhere to any and all state and federal laws.

(Ordained by Ord. No. 195-2012, § 1, eff. July 6, 2012)

Sec. 1123-11. Penalties.

a. Failure to register a vacant, foreclosed property shall constitute a Class D civil offense on the first day, and having once been notified under Section 1501-13, each additional day that the property remains unregistered shall constitute a separate, subsequent Class E civil offense.

b. Failure to maintain accurate information once having registered shall constitute a Class A civil offense on the first day, and having once been notified under Section 1501-13, each additional day that the information remains inaccurate shall constitute a separate, subsequent Class B civil offense.

c. Failure to maintain the property in accordance with the maintenance provisions contained in 1123-9 shall constitute a Class A civil offense on the first day, and having once been notified under Section 1501-13, each additional day that the property fails to meet the maintenance provisions shall constitute a separate, subsequent Class B civil offense.

d. Any civil fines collected under this chapter shall be deposited into the Hazard Abatement Fund/Fund 347 for use in administering and operating the registry program and abatement activity.

(Ordained by Ord. No. 195-2012, § 1, eff. July 6, 2012; Ord. No. 343-2015, § 2, eff. July 1, 2016)

Sec. 1123-13. Exemptions.

With the approval of the code official, a mortgagee may install and maintain a working burglar and fire alarm system and have an active account with a third-party alarm company. The burglar alarm system shall connect to all areas of the building subject to unauthorized human entry, including, but not limited to, all exterior doors, windows or other readily accessible openings. The burglar alarm system shall, upon detecting unauthorized entry or fire, send an automatic signal to a burglar alarm company that has twenty-four hour live operators who will monitor the system and telephone the mortgagee of the unauthorized entry or fire, and who will also telephone the police department or fire department as applicable, if there is no adequate response from the mortgagee. If the mortgagee complies with this section, the mortgagee shall be exempt from the following:

a. The initial and annual registration fees listed in Section 1123-7; and

b. The point of sale requirements in Section 1123-15 provided that the mortgagee arranges for an inspection of the premises by the code official and there must be a finding by the code official that the property does

not have any code violations, or if code violations exist, the mortgagee fixes the code violations within thirty (30) calendar days.

(Ordained by Ord. No. 195-2012, § 1, eff. July 6, 2012)

Sec. 1123-15. Point of Sale Inspections on Vacant, Foreclosed Properties.

a. Point of sale inspections are hereby authorized on all properties that are subject to the vacant, foreclosed property registration. Mortgagees shall arrange to have all properties subject to the requirements of this chapter inspected by the code official within five (5) business days of filing for the property to be sold at a judicial sale. If the mortgagee fails to arrange an inspection, the property shall be inspected by the code official pursuant to Ohio Revised Code § 2329.17(B) prior to the property being sold at a judicial sale or pursuant to a search warrant issued by a court of competent jurisdiction.

b. If, as a result of the above inspection, the code official determines that health code violations, housing code violations, hazards, or structural defects exist on the property, the code official shall provide written notice via certified mail to the mortgagee or the mortgagee's agent, as designated on the foreclosed vacant property registration form, the owner of record, and any equitable lien holders, informing the parties of the following:

(1) The need to repair and correct the violations, hazards, or structural defects prior to the judicial sale;

(2) If the property is not brought into compliance within thirty (30) calendar days of the issuance of the notice of violation, the code official may correct or repaired some or all of the violations;

(3) If the code official corrects or repairs some or all of the violations, the code official shall notify the city solicitor and the city solicitor shall promptly place a priority lien on the property for the total cost of abating the violations. The city solicitor shall collect the priority lien from the proceeds of the judicial sale of the property, or upon any subsequent sale of the property, or by the methods provided in ORC § 715.261. When notice is given as provided for in this section, the lien shall be a priority over liens of prior record and the lien will be effective on the date the city incurs the costs of repairs as provided in ORC § 715.26(B).

c. The mortgagee may post a bond in an amount equal to the cost of abatement of the code violations which may include repair or demolition. The mortgagee must submit to the code official written cost estimates by contractors registered with the city of Cincinnati for abating the violations. The code official will establish the bond amount based upon the submitted cost estimates. Upon successful submission of the bond pursuant to Chapter 303 of the Cincinnati Municipal Code, the mortgagee shall be exempt from the requirements of Section 1123-15(b). The code official may extend the compliance date up to 90 days if a bond is posted. An additional 90 days may be extended in writing by the code official if good cause or diligence in abating the violations is demonstrated. If the violations are not abated in conformance with the terms of this section, the bond will be forfeited and the code official shall cause the violations to be abated with the proceeds of the forfeiture.

(Ordained by Ord. No. 195-2012, § 1, eff. July 6, 2012; a. Ord. No. 035-2014, § 1, eff. April 12, 2014)

Sec. 1123-17. Joint and Several Liability.

Any owner of property, person in control of property, or subsequent owner of property for which a notice of violation is issued under Chapter 1123 to correct health or building code violations shall be jointly and severally liable for the costs incurred by the city for the abatement of violations on the property. Joint and several liability shall be attributed to each entity in the chain of title from the date of issuance of orders forward. (Ordained by Ord. No. 195-2012, § 1, eff. July 6, 2012)

Sec. 1123-19. Severability.

Should any provision, section, paragraph, sentence, or word of this section be determined or declared invalid by any final court action or by reason of any preemptive legislation, the remaining provisions, sections, paragraphs, sentences or words of this section shall remain in full force and effect. (Ordained by Ord. No. 195-2012, § 1, eff. July 6, 2012)

Chapter 1125

Vacant Building Registration*

Sec. 1125-01. Definitions.
Sec. 1125-03. Scope.
Sec. 1125-05. General Obligations of Owners and Persons in Control of Vacant Buildings.
Sec. 1125-07. Vacant Building Registration.
Sec. 1125-09. Vacant Building Registration Certificate.
Sec. 1125-11. Vacant Building Registration Certificate Renewal.
Sec. 1125-13. Periodic Inspections.
Sec. 1125-15. Enforcement.
Sec. 1125-17. Penalties.
Sec. 1125-19. Severability.
Sec. 1125-21. Appeals.

*__Editor's note—__Ord. No. 0039-2025, § 1, is effective February 16, 2026.

Sec. 1125-01. Definitions.

(1) For the purposes of this Chapter, words and phrases shall have their ordinary meaning unless defined herein or in the preceding Chapters of Title XI, "Cincinnati Building Code."

(2) "Vacant building" means a building that for 180 days or more:

(a) has not been occupied by human inhabitants with legal authority to be on the premises;

(b) where substantially all lawful business or construction operation has ceased; or

(c) that is 95 percent or more unoccupied.

(3) "Vacant building maintenance plan" means a written plan submitted to the director that sets forth the owner or person in control's intentions for maintaining the vacant building in a manner that complies with all applicable provisions of the Cincinnati Municipal Code and Cincinnati Building Code, and that includes a timeline for rehabilitating and reoccupying, or demolishing the building.
(Ordained by Ord. No. 0039-2025, § 1, eff. Feb. 16, 2026)

Sec. 1125-03. Scope.

(1) The provisions of this Chapter apply to all vacant buildings except those listed below:

(a) buildings subject to CBC Chapter 1123, "Vacant Foreclosed Residential Property Registration";

(b) buildings subject to CBC Section 1101-77, "Obligations of Owners and Persons in Control of Vacated Buildings"; or

(c) buildings owned by the federal government, the State of Ohio and its political subdivisions, including, but not limited to, the Hamilton County Land Reutilization Corporation, the Hamilton County Treasurer, or the City of Cincinnati.

(2) Notwithstanding the provisions of this Chapter, the director may exempt from registration certain vacant buildings by issuing a written determination pursuant to CBC Section 1101-80.1 or those vacant buildings that meet one of the following criteria:

(a) The building is undergoing active renovation, rehabilitation, or construction that will result in a legally occupied building, conditioned upon the following:

i. the owner or person in control demonstrates to the director's satisfaction that all necessary approvals and permits for such renovation, rehabilitation, or construction have been obtained; and

ii. the director approves a time period for completing the renovation, rehabilitation, or construction.

(b) The building is a single-family or owner-occupied two- or three-family residential building in which the owner has resided for at least three of the previous nine months, and in which the owner has a present intent to reside within the next three months.

(c) Buildings for which a vacant building maintenance plan has been submitted to the director for approval and which, when the vacant building maintenance plan is implemented, the need for monitoring of the building by the Department of Buildings and Inspections is eliminated. The director may revoke a vacant building maintenance plan and impose

registration obligations upon determining that the owner or person in control of a vacant building violated the vacant building maintenance plan or other law governing the rehabilitation or condition of the subject building. Upon such revocation, the owner or person in control of a vacant building shall register the property within fourteen days of the director's issuance of written notice of default. Fees reinstated under this section shall be a debt due and payable to the City within thirty days of the director's decision.

(Ordained by Ord. No. 0039-2025, § 1, eff. Feb. 16, 2026)

Sec. 1125-05. General Obligations of Owners and Persons in Control of Vacant Buildings.

(1) The owner or person in control of a vacant building must register the building as set forth in this Chapter, unless expressly exempted under CBC Section 1125-03, "Scope."

(2) The owner or person in control of a vacant building, once having registered, has a continuing obligation to notify the director in writing of any changes regarding the status and condition of the building during the registration period, including:

(a) any change in information on the vacant building registration form;

(b) any change in ownership, management, or control of the vacant building; or

(c) any reoccupation of the building.

(3) The owner or person in control of a vacant building shall designate a person residing within 100 miles of the building who will respond to emergency or maintenance issues. The owner or person in control shall provide the name, address, and telephone for this individual, and for any and all persons in control of the vacant building to the director.

(4) Satisfaction of the obligations set forth in this Chapter does not relieve the owner or person in control of a vacant building of their responsibility to maintain the property in compliance with any other provision of the CBC.

(Ordained by Ord. No. 0039-2025, § 1, eff. Feb. 16, 2026)

Sec. 1125-07. Vacant Building Registration.

(1) The owner or person in control of a vacant building must file a vacant building registration with the director within thirty calendar days of the property qualifying as a vacant building under CBC Section 1125-01(2) or within thirty calendar days of assuming ownership, whichever is later.

(2) All vacant building registrations shall be made on forms and in the manner prescribed by the director.

(3) All vacant building registrations shall be accompanied by the applicable fee. All fees required under this section are debts due and payable to the City.

(4) All vacant building registrations shall be accompanied by verification of liability insurance in the amount prescribed by CBC Section 1125-05(1)(c).

(Ordained by Ord. No. 0039-2025, § 1, eff. Feb. 16, 2026)

Sec. 1125-09. Vacant Building Registration Certificate.

(1) The director shall issue a vacant building registration certificate upon determining that a vacant building registration complies with all requirements of this Chapter. Certificates issued under this sec-

tion shall be valid for a six-month period from the date of issuance. No vacant building shall be required to be certified more than twice per calendar year.

(2) The director may issue a temporary vacant building registration certificate upon determining that a vacant building substantially complies with the requirements of this Chapter, subject to any conditions or orders the director deems necessary to bring the building into total compliance with this Chapter.
(Ordained by Ord. No. 0039-2025, § 1, eff. Feb. 16, 2026)

Sec. 1125-11. Vacant Building Registration Certificate Renewal.

(1) The owner or person in control of a vacant building shall have a continuing obligation to renew a vacant building registration before its expiration, so long as a building remains vacant.

(2) All vacant building registration renewals shall be submitted on forms and in the manner prescribed by the director.

(3) All vacant building registration renewals shall be accompanied by the applicable fee. All renewal fees required under this section are debts due and payable to the City.
(Ordained by Ord. No. 0039-2025, § 1, eff. Feb. 16, 2026)

Sec. 1125-13. Periodic Inspections.

(1) The director is authorized to inspect any vacant building subject to registration under this Chapter to ensure it is being maintained consistent with the CBC, is safe for entry by first responders in times of emergency and does not represent a threat to the public health, welfare, or safety.

(2) All inspections performed by the director are subject to the provisions of CBC Section 1101-45, "Right of Entry and Credentials."
(Ordained by Ord. No. 0039-2025, § 1, eff. Feb. 16, 2026)

Sec. 1125-15. Enforcement.

(1) It shall be unlawful for any person to interfere with, obstruct, or cause delay in the performance of the director's duties under this Chapter.

(2) The director is authorized to issue orders, notices, and citations to enforce the regulations of this Chapter in addition to any other enforcement authority granted to the director under this Chapter and the CBC.

(3) The form and service of all orders and notices of violation issued by the director related to the enforcement of this Chapter shall comply with CBC Section 1101-61, "Orders and Notice of Violations."
(Ordained by Ord. No. 0039-2025, § 1, eff. Feb. 16, 2026)

Sec. 1125-17. Penalties.

(1) Failure to register a vacant building pursuant to Section 1125-07 shall constitute a Class D civil offense. The owner or person in control may be charged with a new violation of Section 1125-07 for each unregistered vacant building on each day a person has failed to register such vacant building or buildings.

(2) Failure to maintain accurate information pursuant to Section 1125-05 shall constitute a Class A civil offense. The owner or person in control may be charged with a new violation of Section 1125-05 on each day

during which a person in control has failed to maintain accurate information for each registered vacant building.
(Ordained by Ord. No. 0039-2025, § 1, eff. Feb. 16, 2026)

Sec. 1125-19. Severability.

If any provision or section of this Chapter or the enforcement of any such provision or section is held to be invalid or unenforceable by a court of competent jurisdiction, such invalidity or unenforceability shall not affect or render invalid or unenforceable any other provision or section of this Chapter. To this end, each of the provisions and sections of this Chapter are severable.
(Ordained by Ord. No. 0039-2025, § 1, eff. Feb. 16, 2026)

Sec. 1125-21. Appeals.

Any person who has a bona fide controversy with the interpretation, application, or enforcement of this Chapter may submit a written petition for reconsideration to the director under CBC Section 1101-80, "Director's Actions."
(Ordained by Ord. No. 0039-2025, § 1, eff. Feb. 16, 2026)

Chapter 1127

GENERAL INSPECTION PROGRAMS

Sec. 1127-01. Title and Administration.
Sec. 1127-03. Facades of Tall Buildings.
Sec. 1127-05. Fire Escapes.
Sec. 1127-07. Residential Rental Property Inspection Program.

Sec. 1127-01. Title and Administration.

1127-01.1 *Title:* This Chapter of the Cincinnati Building Code (CBC) shall be known as the "General Inspection Programs Code" and may be cited as such.

1127-01.2 *Administration:* The administration of the General Inspection Programs Code is governed by the applicable provisions of Chapter 1101 of the Cincinnati Building Code (CBC), the Administrative Code, and the Cincinnati Municipal Code, with special reference to the following:

(1) § 1101-07 Liberal Construction

(2) § 1101-17 Permits

(3) § 1101-43 Inspection, General

(4) § 1101-45 Right of Entry and Credentials

(5) § 1101-51 Penalties

(6) § 1101-61 Orders and Notice of Violations

(7) § 1101-71 Failure to Comply With Orders

(8) § 1101-81 Appeals to the Board of Building Appeals

(Ordained by Emer. Ord. No. 329-2016, § 6, eff. Oct. 19, 2016)

Sec. 1127-03. Facades of Tall Buildings.

1127-03.1 *Purpose:* The purpose of this section is to ensure that the facades of tall buildings of advanced age are maintained in a safe condition and do not pose public safety hazards.

1127-03.2 *Applicability:* The requirements of this section shall apply to all buildings (i) that have a completed construction date of fifteen years or greater and (ii) all, or a portion of which, is at least five stories or at least sixty feet above established grade, whichever is less.

The requirements of this section shall not apply to those portions of buildings located:

i. At or above five stories or sixty feet above established grade, whichever is less, to the extent they are set back more than twenty-five feet from the base of the building and the area set back from the base of the building is only made accessible to those performing exterior maintenance to the building; or

ii. Twelve inches or less from the exterior wall of an adjacent building.

1127-03.3 *Building Categories:* Each building subject to the requirements of this section shall be categorized according to the following definitions:

i. "Category I Building" means a building constructed with exterior walls and parts thereof that are primarily reinforced with, or are in direct contact with, non-corrodible metal.

ii. "Category II Building" means a building constructed with exterior walls and parts thereof that are primarily reinforced with, or are in direct contact with, corrosion-resistant metal.

iii. "Category III Building" means a building constructed with exterior walls and parts thereof that are primarily secured to the substrate by adhesive bond or with masonry headers.

iv. "Category IV Building" means a building constructed with exterior walls and parts thereof that are primarily reinforced with, or are in direct contact with, corrodible metal.

1127-03.4 *Facade Examination:* The owner or person in control of a building subject to the requirements of this section shall cause an examination of the building's facade to be performed by a professional according to the

schedule prescribed in subsection 1127-03.8. The examination shall include all of the following:

i. A close-up visual examination of the building to be performed from a platform or device which allows an inspection of the facade area which can be reached by one scaffold drop per elevation. Other methods may include photographic magnification techniques, remote observation equipment or infra-red or thermography cameras, which can demonstrate reasonable reliability and which may be approved in addition to the close-up visual examination by the director on a case-by-case basis.

ii. A remote examination of those facade areas which are not accessible during the close-up visual examination.

iii. A complete review of the most recently prepared inspection report.

iv. A complete review of the pertinent drawings and specifications of the building to determine the specified designs of the facades on the building.

v. A complete review of the drawings, specifications, and maintenance reports on previous repair work performed on the facades.

vi. Documentation of the condition of the facades through photographs and drawings.

vii. Identification of any wall areas that are bowed, bulged, displaced or leaning inward or outward and, where such defects exist, an examination of the condition of a sufficient number of metal ties, anchors and shelf angles that support the wall at these locations.

viii. Examination of the substrate of wall areas with external visible distress.

1127-03.5 *Remote Examination:* The director may authorize a remote examination in place of the examination prescribed in subsection 1127-03.4 on facades, or those portions of facades, that are more than twenty-five feet from all adjacent street lines, alleys, sidewalks, paved walkways, plazas, play areas, and other areas accessible to the public. A remote examination shall include all of the following:

i. Methodically scanning the facade area through the use of magnification devices.

ii. Viewing vertically from street grade and down from parapet where possible and along all corners for alignment of facade elements.

iii. Viewing horizontally to check for alignment of bands of facade elements, such as cornices, water tables, balconies, window lintels and sills.

iv. Examining any areas which are bowing, bulging, displaced or leaning inward or outward by performing a critical examination.

1127-03.6 *Inspection Reports:* Each professional conducting a facade examination shall prepare a written inspection report to document the findings of the examination. Each report shall be prepared with the understanding that, because of the physical properties of the many materials commonly used for constructing facades, and the limitations on detecting concealed internal wall distress, the report might not document all "unsafe and imminently hazardous" conditions in facades that are not visible from the exterior. Therefore, an inspection report shall not constitute a representation that all "unsafe

and imminently hazardous" conditions in the facade that is the subject of the report have been identified.

i. Each inspection report shall include:

a. The name and address of the building.

b. The name, address, and phone number of the building owner or person in control, and their agents if applicable.

c. The name, business address, and phone number of the professional preparing the report.

d. A site plan of the building showing adjacent streets and alleys, and the relationship of the building to property lines and adjacent buildings.

e. A description of the building, including the number of stories, height, plan dimensions, age, and type of exterior wall construction, describing (as applicable) cornices, soffits, or similar overhangs or features.

f. Overall photographs or drawings of all elevations of the building.

g. A detailed description of the facade examination in narrative form, including start and completion dates.

h. A designation of the building façade's status by the professional as "safe," "safe with ordinary repair and maintenance," "unsafe," or "unsafe and imminently hazardous," as those terms are defined in subsection 1127-3.10.

i. Drawings or photographs describing the locations and extent of all significant distress or deteriorated conditions observed in the facade.

j. A description of recommended repair work and precautionary measures that should be taken to safeguard the public, emergency responders, and building occupants, if any, and the recommended completion date of such work.

k. Where appropriate, a comparison of conditions of the building facade with conditions observed during previous examinations of the same facade.

l. A recommendation for future examination if earlier than the time period specified in subsection 1127-03.8.

m. The signature and seal of the professional who performed the examination.

n. The signature of the owner or person in control acknowledging his or her knowledge of the building's condition and responsibility to maintain the building in a safe condition.

o. The date of the report.

p. Other documents, notes, summaries, memoranda, letters, or ancillary reports pertinent to the inspection report prepared by the professional.

1127-03.7 *Building Status:* The owner or person in control of the building shall file an original and two copies of the required inspection report with the director and pay the review fee established pursuant to Section 1101-85 no less than 30 days following the completion of a facade examination; except, however, any professional retained to provide

an inspection report must notify the director of any determination that a building facade, or part thereof, is "unsafe and imminently hazardous" within one business day of making the determination. The director shall review each report and issue orders to make needed repairs based on each respective building status as follows:

i. *Buildings Determined "Safe."* Upon determining an inspection report finding a building facade "safe" is satisfactory, the director shall attach a certificate to the report indicating the director's agreement with the report and specifying the due date of the next report. The director shall then return one copy of the certificate and report to the owner or person in control and one copy of the certificate and report to the professional.

ii. *Buildings Determined "Safe With an Ordinary Repair and Maintenance Program."* Upon determining an inspection report finding a building facade "safe with an ordinary repair and maintenance program" is satisfactory, the director shall attach a certificate to the report indicating the director's acceptance of the report and specifying the due date of the next report. The director shall then (a) return one copy to the owner or person in control and one copy to the professional and (b) order that the repairs and maintenance recommended in the report be performed within the timeframe recommended and that the owner or person in control submit a report no later than 30 days thereafter indicating that the repairs and maintenance conform to the recommendations. The director may also issue supplemental orders as necessary to address potentially unsafe conditions identified in the inspection report.

iii. *Buildings Determined "Unsafe."* Upon determining an inspection report finding a building facade "unsafe" is satisfactory, the director shall attach a certificate to the report indicating the director's acceptance of the report and specifying the due date of the next report. The director shall then (a) return one copy to the owner or person in control and one copy to the professional and (b) order that the recommended repairs and maintenance be performed within the recommended timeframe and that the owner or person in control retain a professional and submit a report within 30 days thereafter indicating that the repairs and maintenance conform to the recommendations. The director may also issue supplemental orders as necessary to address unsafe and potentially unsafe conditions identified in the inspection report.

iv. *Buildings Determined "Unsafe and Imminently Hazardous."* Upon determining an inspection report finding a building facade "unsafe and imminently hazardous" is satisfactory, the director shall attach a certificate to the report indicating the director's acceptance of the report and specifying the due date of the next report. The director shall then return one copy to the owner or person in control and one copy to the professional. The director shall further order the following:

a. That appropriate precautionary measures be taken by the owner or person in control prior to a scheduled city inspection to prevent further deterioration and to make the building safe to the public, emergency responders, and building occupants. If the

owner or person in control fails to take these measures prior to the city inspection, the director may cause the precautionary measures to be taken. The cost incurred by the city in taking necessary precautionary measures may be charged against the real estate upon which the building is located. If that cost is so charged, it is a lien upon such real estate and may be assessed and collected as a special charge.

b. Submission to the city of a repair plan within three business days of the director's acceptance of the inspection report.

c. That the owner or person in control retain a professional to submit a report noting when repairs have been performed to bring the building into a "safe" condition based upon a schedule created by the director and provided to the owner or person in control.

d. That the owner or person in control retain a professional to submit a maintenance plan for the building and monthly reports of the maintenance work performed to the director.

e. That a facade examination be performed within one year following the director's acceptance of the inspection report.

f. Any supplemental orders as necessary to address unsafe and imminently hazardous conditions identified in the inspection report.

1127-03.8 *Facade Examination Schedule:* The owner or person in control of a building subject to the requirements of this section shall cause an examination of the building's facade to be made and shall file an inspection report with the director according to the following schedule, unless otherwise ordered by the director to address known or probable public safety hazards:

i. Category I Buildings.

a. If a building has a completed constructed date prior to January 1, 1920, its facade shall be inspected on or before July 1, 2017 and every twelve years thereafter.

b. If a building has a completed constructed date between January 1, 1920 and December 31, 1950, its facade shall be inspected on or before July 1, 2018 and every twelve years thereafter.

c. If a building has a completed constructed date after December 31, 1951 or later and is fifteen years old or older, its facade shall be inspected on or before July 1, 2019 and every twelve years thereafter.

ii. Category II and III Buildings.

a. If a building has a completed constructed date prior to January 1, 1920, its facade shall be inspected on or before July 1, 2017 and every eight years thereafter.

b. If a building has a completed constructed date between January 1, 1920 and December 31, 1950, its facade shall be inspected on or before July 1, 2018 and every eight years thereafter.

c. If a building has a completed constructed date after December 31, 1951 or later and fifteen years or older, its facade shall be

inspected on or before July 1, 2019 and every eight years thereafter.

iii. Category IV Buildings.

a. If a building has a completed constructed date prior to January 1, 1920, its facade shall be inspected on or before July 1, 2017 and every five years thereafter.

b. If a building has a completed constructed date between January 1, 1920 and December 31, 1950, its facade shall be inspected on or before July 1, 2018 and every five years thereafter.

c. If a building has a completed constructed date after December 31, 1951 or later and fifteen years or older, its facade shall be inspected on or before July 1, 2019 and every five years thereafter.

iv. Any building not otherwise described in subsections i-iii above must be examined within one year of reaching fifteen years beyond its completed construction date and must be subsequently examined consistent with the prescribed schedule for its respective building category.

v. If a facade inspection report was completed more recently than the prescribed timeframes for the category and age of a building, the report may be submitted to the director for review in lieu of a new report. If the director approves the report finding that it substantially complies with this section, the next report will be due within five, eight, or twelve years of when that report was originally completed, consistent with the prescribed schedule for the respective building categories described herein.

1127-3.9 *Recovery of Additional Costs Incurred in Program Administration and Enforcement:* The director is authorized to charge the owner or person in control of a premises subject to inspection under this Section 1127-03 for the recovery of reasonable costs incurred in its administration and enforcement of this inspection program. Additional costs may include the cost of third-party technical experts hired to assist the director in the administration and enforcement of this inspection program.

1127-03.10 *Definitions:* The following words and terms shall have the meanings indicated below for the purposes of this Section 1127-03 only:

i. "Close-up visual examination" means that a professional, architect-in-training, engineer-in-training, technician, contractor, or skilled trades person, under a professional's direct supervision, must actually touch the facade by hand or tool, unless other methods are approved prior to the inspection by the director.

ii. "Corrodible metal" means unprotected carbon steel, shop-primed steel, uncoated reinforcing bars, and other metals that are capable of corroding.

iii. "Corrosion-resistant metal" means corrodible metal that is galvanized, epoxy-coated, or painted specifically to resist corrosion, so long as the finish remains intact.

iv. "Facade examination" means a close-up visual examination of the condition of one scaffold drop per elevation of facade, or parts thereof, performed by or under the direct supervision of a professional for the purpose of determining if remedial

work is required. The facade area which cannot be examined through a close-up visual examination shall be subject to a remote examination. The professional responsible for the facade examination shall be qualified by education and experience in design, inspection or repair design of the type of exterior wall system(s) on the building being examined and shall perform services only in the areas of his or her competence.

v. "Facade" means all areas on the exterior of the building, except for horizontal roof areas. The facade includes all walls, windows, balconies, cornices, parapets, and appurtenances. The facade also includes walls supported on roofs, such as penthouse walls, chimneys, and other appurtenances.

vi. "Non-corrodible metal" means stainless steel, aluminum, or other metal that does not corrode under normal atmospheric conditions.

vii. "Professional" means a registered architect or registered engineer authorized to practice in the state of Ohio.

viii. "Remote examination" means an examination performed by a professional and involving the use of binoculars, photographic magnification techniques, remote observation equipment, or infra-red or thermography cameras, which can demonstrate reasonable reliability in determining the condition of a facade in the absence of the ability to conduct a close-up visual examination.

ix. "Repair plan" means a plan created by a professional that identifies the nature of the defect to be corrected, a detailed procedure for making repairs to the defect, a detailed sketch of the corrections or installation to be performed, a plan outlining protective measures for the public when applicable, and a time schedule for the repairs.

x. "Safe" means a condition of a building facade, or part thereof, at the time of a facade examination that does not exhibit (i) an unsafe and imminently hazardous condition and (ii) an unsafe condition; or (iii) a safe with an ordinary repair and maintenance program condition, as these terms are defined in this section.

xi. "Safe with an ordinary repair and maintenance program" means a condition of a building facade, or part thereof, that does not pose any immediate safety hazards at the time of inspection but requires ordinary repairs or maintenance within a time period designated by a professional, to be no later than the next required facade inspection date under subsection 1127-03.8 of this section, in order to prevent its deterioration into an unsafe or unsafe and imminently hazardous condition.

xii. "Scaffold drop" means a movement from top to bottom of a building facade and covering an area at least 24 feet wide using scaffolding, cranes, hoists, cherry pickers, ladders, and other devices that permit a close-up visual examination of the facade at elevations above grade level.

xiii. "Story" means the space in a building between the surfaces of any floor and the floor next above or below, or roof next above, or any space not defined as basement, interior balcony, or mezzanine. The number of stories

of a multistory building includes all stories except the basement, interior balcony, or mezzanine.

xiv. "Unsafe and imminently hazardous condition" means a condition in which a building facade, or part thereof, poses immediate safety hazards, has no reliable means of structural support, or is otherwise dangerous to people or property.

xv. "Unsafe condition" means a condition of a facade, or part thereof, which was reported as safe with an ordinary repair and maintenance program in an earlier inspection report but, upon subsequent inspection, it is determined that the recommended repair and maintenance program has not been performed within the timeframe recommended by the professional in the prior report.

1127-03.11 *Penalties:* Whoever fails to comply with an order of the director pursuant to this Section 1127-03 shall be liable for a Class D Civil Offense, as provided by Cincinnati Municipal Code § 1501-9(a), for an initial offense. For each subsequent offense occurring within one year after having once been notified of an initial offense, any person who fails to comply with an order of the director pursuant to this Section 1127-03 shall be liable for a Class E Civil Offense, as provided by Cincinnati Municipal Code § 1501-9(a). Each additional day that a person fails to comply with an order of the director shall constitute a separate civil offense.

1127-03.12 *Appeals:* Any person adversely affected by a notice of violation, order, or decision of the director made pursuant to this Section 1127-03 may appeal the notice of violation, order, or decision of the director to the Board of Building Appeals pursuant to the procedures set forth in Section 1101-81 and the procedures established by the board. (Ordained by Emer. Ord. No. 329-2016, § 6, eff. Oct. 19, 2016)

Sec. 1127-05. Fire Escapes.

1127-05.1 *Purpose:* This purpose of this section is to ensure that exterior fire escapes are maintained in a safe condition, are capable of performing their intending purpose, and do not pose public safety hazards.

1127-05.2 *Applicability:* The requirements of this section shall apply to all buildings that have an exterior fire escape.

1127-05.3 *Professional Examination:* The owner and any person in control of a building with one or more exterior fire escapes attached thereto are responsible for obtaining an examination of each exterior fire escape by a professional based on the following schedule:

i. For buildings with a completed constructed date prior to January 1, 1920, fire escapes shall be inspected on or before July 1, 2017 and every five years thereafter.

ii. For buildings with a completed constructed date between January 1, 1920 and December 31, 1950, fire escapes shall be inspected on or before July 1, 2018 and every five years thereafter.

iii. For buildings with a completed constructed date after December 31, 1951 or later and fifteen years or older, fire escapes shall be inspected on or before July 1, 2019 and every five years thereafter.

iv. For all other buildings, fire escapes shall be inspected within one year of

reaching fifteen years beyond its completed construction date and every five years thereafter.

1127-05.4 *Inspection Report Contents:* Each inspection report shall include the following information:

i. The name and address of the building.

ii. The name, address, and phone number of the owner or person in control of the building, and their agents if applicable.

iii. The name, business address, and phone number of the professional preparing the report.

iv. A description of the building, including the number of stories, height, plan dimensions, age, type of exterior wall construction, and all exterior fire escapes attached thereto.

v. Overall photographs or drawings of all fire escapes attached to the building.

vi. Drawings or photographs describing the locations and extent of all significant distress or deteriorated conditions observed in the fire escapes.

vii. A detailed description of the examination in narrative form, including start and completion dates.

viii. A designation of each fire escape's status by the professional as "safe," "safe with ordinary repair and maintenance," "unsafe," or "unsafe and imminently hazardous," as those terms are defined in subsection 1127-5.7.

ix. A description of recommended repair work and precautionary measures necessary to safeguard the public, emergency responders, and building occupants, if any, and the recommended completion date of such work.

x. Where appropriate, a comparison of conditions of the fire escapes on the building with conditions observed during previous examinations.

xi. A recommendation for future examination, if earlier than required under subsection 1127-05.3.

xii. The signature and seal of the professional who performed the examination.

xiii. The signature of the owner or person in control acknowledging his or her receipt of the report and responsibility to maintain the fire escapes in a safe condition.

xiv. The date of the report.

xv. Other documents, notes, summaries, memoranda, letters, or ancillary reports pertinent to the inspection report prepared by the professional.

1127-05.5 *Fire Escape Status:* The owner or person in control of the building subject to this section shall file an original and two copies of the required inspection report with the director and pay the review fee established pursuant to Section 1101-85 of the CBC no less than 30 days following the completion of an examination; except, however, any professional retained to provide an inspection report must notify the director of any determination that a fire escape, or part thereof, is "unsafe and imminently hazardous" within one business day of making the determination. The director shall review each report and issue orders to make needed repairs based on each respective fire escape status as follows:

i. *Fire Escapes Determined "Safe."* Upon determining an inspection report finding all fire escapes "safe" is satisfactory, the director shall attach a

certificate to the report indicating the director's agreement with the report and specifying the due date of the next report. The director shall then return one copy of the certificate and report to the owner or person in control and one copy to the professional.

ii. *Fire Escapes Determined "Safe With an Ordinary Repair and Maintenance."* Upon determining an inspection report finding one or more fire escapes "safe with ordinary repair and maintenance" is satisfactory, the director shall attach a certificate to the report indicating the director's acceptance of the report and specifying the due date of the next report. The director shall then (a) return one copy of the certificate and report to the owner or person in control and one copy to the professional and (b) order that the repairs and maintenance recommended by the professional be performed within the recommended timeframe and that the owner or person in control submit a report no later than 30 days thereafter indicating that the repairs and maintenance conform to the recommendations.

iii. *Fire Escapes Determined "Unsafe."* Upon determining an inspection report finding one or more fire escapes "unsafe" is satisfactory, the director shall attach a certificate to the report indicating the director's acceptance of the report and specifying the due date of the next report. The director shall then (a) return one copy to the owner or person in control and one copy to the professional and (b) order that the recommended repairs and maintenance be performed within the recommended timeframe and that the owner or person in control submit a report no later than 30 days thereafter indicating that the repairs and maintenance conform to the recommendations. The director may also issue supplemental orders as necessary to address unsafe and potentially unsafe conditions identified in the inspection report.

iv. *Fire Escapes Determined to be "Unsafe and Imminently Hazardous."* Upon determining an inspection report finding one or more fire escapes "unsafe and imminently hazardous" is satisfactory, the director shall attach a certificate to the report indicating the director's acceptance of the report and specifying the due date of the next report. The director shall then return one copy of the certificate and report to the owner or person in control and one copy to the professional. The director shall further order the following:

a. That appropriate precautionary measures be taken by the owner or person in control prior to a scheduled city inspection to prevent further deterioration and to make the fire escape(s) safe to the public, emergency responders, and building occupants. If the owner or person in control fails to take these measures prior to the city inspection, the director may cause the precautionary measures to be taken. The cost incurred by the city in taking the necessary precautionary measures may be charged against the real estate upon which the fire escapes are located, and if that cost is so charged it is a lien upon such real estate and may be assessed and collected as a special charge.

b. That the owner or person in control provide a safe alternative means of egress for emergency responders and the occupants of the building until the fire escapes are repaired and rendered safe.

c. Submission of a repair plan within three business days of the director' acceptance of the inspection report.

d. That the owner or person in control retain a professional to submit a report noting when repairs have been performed to bring the fire escapes into a "safe" condition on a schedule created by the director and provided to the owner or person in control and the professional.

e. That the owner or person in control retain a professional to submit a maintenance plan for the fire escapes and monthly reports of the maintenance work performed to the director.

f. That a professional examination be performed within one year following the director' acceptance of the inspection report.

g. Any supplemental orders as necessary to address unsafe and imminently hazardous conditions identified in the inspection report.

1127-5.6 *Recovery of Additional Costs Incurred in Program Administration and Enforcement:* The director is authorized to charge the owner or person in control of a premises subject to inspection under this Section 1127-05 for the recovery of reasonable costs incurred in its administration and enforcement of this inspection program. Additional costs may include the cost of third-party technical experts hired to assist the director in the administration and enforcement of this inspection program.

1127-05.7 *Definitions:* The following words and terms shall have the meanings indicated below for the purposes of this Section 1127-05 only:

i. "Professional" means a registered architect or registered engineer authorized to practice in the state of Ohio.

ii. "Professional examination" means a close-up visual examination of each fire escape attached to a building, performed by or under the direct supervision of a professional employed by the owner or person in control of the building to determine whether the fire escapes are in a safe condition, are capable of performing their intending purpose, present public safety hazards, and/or require remedial work. The professional responsible for the examination shall be qualified by education and experience and shall perform services only in the areas of his or her competence.

iii. "Safe" means a condition of an exterior fire escape, or part thereof, at the time of the critical examination that does not exhibit (i) an unsafe and imminently hazardous condition, (ii) an unsafe condition, or (iii) a safe with an ordinary repair and maintenance program condition, as these terms are defined in this section.

iv. "Safe with an ordinary repair and maintenance program" means a condition of an exterior fire escape, or part thereof, that is capable of performing its intended purpose and does not pose any immediate safety hazards at the time of inspection but requires

ordinary repairs or maintenance within a time period designated by the professional, not to be later than the next required professional examination date under subsection 1127-05.3 of this section, in order to prevent its deterioration into an unsafe or unsafe and imminently hazardous condition.

v. "Unsafe" means a condition of an exterior fire escape, or part thereof, which was reported as safe with an ordinary repair and maintenance program in an earlier critical examination report but, upon subsequent inspection, it is determined that the recommended repair and maintenance program has not been performed within the timeframe recommended by the professional in the prior report.

vi. "Unsafe and imminently hazardous" means a condition in which an exterior fire escape, or part thereof, is not capable of performing its intended purpose, has no reliable means of structural support, or is otherwise dangerous to people or property.

1127-05.8 *Penalties:* Whoever fails to comply with an order of the director pursuant to this Section 1127-05 shall be liable for a Class D Civil Offense, as provided by Cincinnati Municipal Code § 1501-9(a), for an initial offense. For each subsequent offense occurring within one year after having once been notified of an initial offense, any person who fails to comply with an order of the director pursuant to this section shall be liable for a Class E Civil Offense, as provided by Cincinnati Municipal Code § 1501-9(a). Each additional day on which a person fails to comply with an order of the director shall constitute a separate civil offense.

1127-05.9 *Appeals:* Any person adversely affected by a notice of violation, order, or decision of the director made pursuant to this Section 1127-05 may appeal the notice of violation, order, or decision of the director to the Board of Building Appeals pursuant to the procedures set forth in Section 1101-81 and the procedures established by the board. (Ordained by Emer. Ord. No. 329-2016, § 6, eff. Oct. 19, 2016)

Sec. 1127-07. Residential Rental Property Inspection Program.

1127-07.1. *Definitions.* As used in this section, the following words and terms shall have the meanings indicated in the definition herein. Words and terms used and not specifically defined in this section, but which are defined in the Cincinnati Building Code ("CBC"), shall have the meanings defined in the CBC.

1127-07.1-A. *Applicable Codes.* "Applicable Codes" includes, but is not limited to, the Residential Code of Ohio ("RCO"), the Ohio Building Code ("OBC"), Chapter 3742 of the Ohio Revised Code ("ORC"), the CBC, and the following provisions of the Cincinnati Municipal Code ("CMC"): Chapter 1117 - Housing Code; Title XII - Cincinnati Fire Prevention Code; Title XIV - Zoning Code; Title XVII - Land Development Code; Chapter 761 - Chronic Nuisance Premises; Chapter 714 - Littering, and Chapter 731 - Weed Control; and any other building, housing, health and safety codes and provisions applicable to residential rental property that materially affect the public health, safety and welfare.

1127-07.1-C. *Code Compliant.* "Code Compliant" means a residential rental property that, upon inspection by the city under this section, is found to be compliant with all applicable code provisions. In determining whether a residential rental property is Code Compliant, the director may consider additional factors including,

without limitation, whether the properties which are well maintained; have any code violations; require some routine maintenance work but not beyond responding to normal wear and use expected for the property age and type of construction; are suitable for rental occupancy and affords the occupants a decent, safe, and sanitary habitation; the maintenance and management of the property does not contribute to depreciating neighboring property values and does not adversely impact the peaceful enjoyment of surrounding properties; there is no history of ignoring substantiated housing violation-related complaints about the property within the previous twelve months.

1127-07.1-N. *Non-compliant.* "Non-compliant" means a residential rental property that, upon inspection by the city under this section, is found to have one or more violations of applicable codes that (1) constitute an immediate hazard or threat to the occupants of the property or (2) in their totality indicate that the rental unit is not being properly maintained. In determining whether a residential rental property is Non-compliant, the director may consider additional factors including, without limitation, whether properties are not being maintained in compliance with the applicable codes; have a number of code violations, some of which appear to be longstanding and/or could materially affect the health and safety of the occupants; have deferred maintenance and/or have evidence of lack of routine maintenance of the halls, yard, common areas or dwelling units; unless the violations are promptly corrected and the premises proactively and routinely maintained, are not suitable for rental occupancy and would not afford the occupants a decent, safe, and sanitary habitation.

1127-07.1-P. *Residential Areas.* "Residential Areas" are specified census tracts within the statistical neighborhood boundary maps of the neighborhoods of Avondale, Clifton-University Heights-Fairview, College Hill, East Price Hill, Madisonville, West Price Hill, and Westwood. The qualifying census tract numbers within each Residential Area are listed below:

Neighborhood	*Qualifying Census Tract Numbers*
Avondale	66, 68, 68, 270
East Price Hill	92, 93, 94, 95, 96
Clifton-University Heights-Fairview	25, 26, 27, 29.01, 29.02, 30
College Hill	81, 82.01, 82.02, 84, 111 (partial tract)
Madisonville	55 (partial tract), 56 (partial tract), 242 (partial tract), 244.01 (partial tract), 276
West Price Hill	97 (partial tract), 98, 99.01 (partial tract), 99.02 (partial tract), 100.05, 107 (partial tract), 214.01
Westwood	88, 100.02, 100.03, 100.04, 101, 102.01 (partial tract), 102.02, 109(partial tract), 209.01

1127-07.1-R. *Residential Rental Properties.* "Residential Rental Properties" shall have the same meaning as O.R.C. Section 5323.01(E).

(a) The director may consider one or more of the following criteria in identifying whether real property constitutes residential rental property for purposes of this Chapter:

(1) The property does not receive an owner occupancy tax credit based on the records of the Hamilton County Auditor;

(2) The property contains a dwelling unit registered as a rental property with the Hamilton County Auditor pursuant to O.R.C. Chapter 5323;

(3) The property is owned by a corporate entity and not individually;

(4) For single-family homes, the water records kept by greater Cincinnati water works reflect third-party billing;

(5) The Hamilton County Auditor has applied any of the following land use codes to the property:

CATEGORY	*DESCRIPTION*	*DEPT. OF TAX EQUALIZATION*	*HAMILTON COUNTY*
COMMERCIAL	APARTMENTS—4 TO 19 UNITS	401	401
COMMERCIAL	APARTMENTS—20 TO 39 UNITS	402	402
COMMERCIAL	APARTMENTS—40+ UNITS	403	403
COMMERCIAL	RETAIL—APARTMENTS OVER		404
COMMERCIAL	OFFICE—APARTMENTS OVER		431
RESIDENTIAL	TWO FAMILY DWELLINGS	520	520
RESIDENTIAL	THREE FAMILY DWELLINGS	530	530
RESIDENTIAL	LOW INCOME HOUSE TAX CREDIT (residential)	569	569
RESIDENTIAL	OTHER STRUCTURES	599	599

(6) The property has been registered as a residential rental property with the Hamilton County Auditor as required by Ohio Revised Code 5323.02 and/or the city of Cincinnati;

(7) Other reasonable indicators that real property has been rented to tenants for residential purposes, for example, the existence of a lease agreement.

(b) Real property or a portion thereof used exclusively for the following purposes shall be exempt from the requirements of this section:

(1) Hotels or motels;

(2) College or university dormitories that are state-owned and are inspected for code compliance under other procedures or licensure;

(3) Two-family units where one unit is owner-occupied;

(4) Properties that are currently unoccupied because they have been ordered vacated by the director;

(5) Properties that are available to the public for rental for a period of thirty days or less;

(6) Non-residential purposes when separate and distinct from a portion used as a residential rental property, e.g., first floor retail in a multi-story mixed-use apartment building.

(c) In the event of a dispute over whether a property is subject to the application and inspection provisions of this ordinance, property owners may submit evidence to the director demonstrating that their property is not "Residential Rental Property" for purposes of this section.

1127-07.1-S. *Substantially Compliant.* "Substantially Compliant" means a residential rental property that, upon inspection by the city under this section, is found

to have one or more violations of applicable codes that (1) do not constitute an immediate hazard or threat to the occupants of the residential rental property and (2) do not indicate in their totality that the rental unit is not being properly maintained. In determining whether a residential rental property is Substantially Compliant, the director may consider additional factors including, without limitation, whether the owner of a substantially compliant property has demonstrated a plan and capacity to abate the violations within thirty (30) days, or in a reasonable time as determined by the director; the maintenance and management of a substantially compliant property does not contribute to depreciating neighboring property values and does not adversely impact the peaceful enjoyment of surrounding properties; and based on the number of units at the property, there have been few or no substantiated complaints of code violations on the premises within the previous twelve months and there is no history of ignoring substantiated code violations.

1127-07.3. *Purpose.* The purpose of this section is to protect the public health, safety and welfare by authorizing the periodic evaluation of certain residential rental property businesses for compliance with applicable codes, including, but not limited to, the RCO, the OBC, ORC Chapter 3742, the CBC, and the following provisions of the CMC: Chapter 1117 - Housing Code; Title XII - Cincinnati Fire Prevention Code; Title XIV - Zoning Code; Title XVII - Land Development Code; Chapter 761 - Chronic Nuisance Premises; Chapter 714 - Littering, and Chapter 731 - Weed Control; and any other building, housing, health, and safety codes and provisions applicable to residential rental property that materially affect the public health, safety and welfare. This section incorporates provisions of CBC Chapter 1101 by reference.

This section does not preempt, supersede, cancel or set aside the requirements of any other applicable landlord-tenant laws, and building, housing, zoning or related regulations.

1127-07.5. *Reserved.*

1127-07.7. *Applicable Properties: Residential Rental Properties.*

(a) This section shall apply to any Residential Rental Property as defined in section 1127-07.1-R of this chapter that is located in the Pilot Residential Areas and that:

(1) Is currently the subject of a delinquent lead hazard control order issued by the Cincinnati health department;

(2) Has been ordered vacated in part by the Cincinnati building department pursuant to section 1101-65 of the CBC, but which remains partially occupied;

(3) Has been determined to be a public nuisance pursuant to section 1101-57 of the CBC;

(4) Has been the subject of two or more orders issued within a twelve-month period by the department of buildings and inspections, the Cincinnati fire department, and/or the board of health or its designee for building, housing, fire prevention, public health, quality of life, or health code violations;

(5) Has been the subject of four or more validated complaints received by the department of buildings and inspections of housing or zoning code violations within a twelve-month period;

(6) Has been declared by the City of Cincinnati to be a chronic nuisance as set forth in section 761-5 of the CMC;

(7) Is currently or within the past twenty-four (24) months has been the subject of civil or criminal prosecution by the City of Cincinnati for violations of the ORC, CMC, or CBC; or

(8) Is certified as tax delinquent by the Hamilton County Treasurer.

(b) This section shall also apply to any Residential Rental Property, as defined in section 1127-07.1-R of this section, that is owned entirely or in part, operated, or managed by an individual, entity, or person in control, as defined by Cincinnati Municipal Code Section 1101-03, regardless of its location in the city of Cincinnati, who owns or has an ownership interest in, operates, or manages any Residential Rental Property that qualifies for this program under subsection 1127-07.7(a), including Residential Rental Properties owned entirely or in part, managed, or operated by related entities, sister entities, parent entities, holding entities, subsidiary entities, or distinct entities where there is evidence of a common principal, board, shareholder base, or headquarters.

1127-07.9. *Rental Inspection Certificate Application Process.*

(a) All owners and persons in control of Residential Rental Properties as that term is defined in subsections 1127-07.1-R and 1127-07.7 of this Section in the residential areas shall apply for a rental inspection certificate under this section.

(b) Application for a rental inspection certificate shall be made on forms and instructions prescribed by the director. The application shall include:

(1) A description of the Residential Rental Property, including, but not limited to, the street address and parcel identification number;

(2) The name, street address, and telephone number of the owner or person in control;

(3) A copy of the owner's current rental registration with the Hamilton County Auditor pursuant to Ohio Revised Code Section 5323, or in the alternative, the same information that would otherwise be provided by the owner to the Auditor on the Auditor's rental registration form; and

(4) A written certification whether the owner or person in control of the Residential Rental Property consents to an inspection of the property.

(c) An application for a residential rental certificate shall not be construed by the city as a waiver of the owner's Fourth Amendment rights.

1127-07.11. *General Inspection Requirements.*

(a) Upon receipt of a complete application and the applicable fee, the director shall perform a visual inspection of the interior and exterior of a Residential Rental Property to determine whether the property complies with all applicable codes.

(b) The director shall inspect Residential Rental Properties at a reasonable time agreed to by the owner or person in control of the Residential Rental Property.

(c) The owner or person in control of the Residential Rental Property shall be responsible for notifying the tenants of a scheduled inspection in accordance with notice requirements under applicable landlord-tenant regulations.

(d) All dwelling units in a Residential Rental Property shall be inspected.

(e) If a Residential Rental Property is inspected and found to be compliant, the director shall issue a residential rental inspection certificate to the owner or person in control of a Residential Rental Property following the inspection. The certificate shall indicate that the property is compliant and indicate the next required inspection date based upon the inspection interval for compliant properties provided for in section 1127-07.13 of this section.

(f) If a Residential Rental Property is inspected and found to be substantially complaint or non-compliant, the director shall provide the owner or person in control with a written order specifying the reasons for the designation and establishing an inspection schedule based upon the inspection intervals provided for in section 1127-07.13 of this section.

(g) A residential rental inspection certificate shall expire thirty (30) days following the required inspection date indicated on the certificate; provided, however, a residential rental inspection certificate shall expire six months following the transfer in ownership of a Residential Rental Property or the transfer of a controlling interest in any entity that owns Residential Rental Property if occurring sooner than thirty (30) days following the required inspection date indicated on the certificate.

(h) Upon the transfer in ownership of a Residential Rental Property or the transfer of a controlling interest in any entity that owns a Residential Rental Property, the owner or person in control shall notify the new owner or person in control of their obligation to maintain a residential rental inspection certificate for the property.

(i) The director is authorized to seek the assistance of personnel from the fire department, health department, police department, and other enforcement agencies concerned with the operation of residential rental property in carrying out the inspections authorized in this section.

(j) The provisions of this section shall not limit or restrict the director or any other authorized official from conducting inspections of residential rental property in administering or enforcing the laws, rules, and regulations they are charged with enforcing, e.g. responding to tenant complaints or upon probable cause that a violation is present.

1127-07.13. *Inspection Intervals.*

a. Residential Rental Properties shall be inspected and evaluated according to the following intervals:

(1) Code Compliant. Properties found to be code compliant shall be issued a certificate and shall be inspected again after forty-eight months.

(2) Substantially Compliant. Properties found to be substantially compliant shall be inspected at thirty-day intervals following the

initial inspection, or at reasonable intervals established by the director as necessary to promote and sustain code compliance, to verify whether previously identified code violations have been cured. Once compliance is achieved, the property shall be issued a certificate and shall be inspected again after forty-eight months.

(3) Non-Compliant. Properties found to be non-compliant shall be inspected at thirty-day intervals following the initial inspection, or at reasonable intervals established by the director as necessary to promote and sustain code compliance, to verify whether previously identified code violations have been cured. Once compliance is achieved, the property shall be inspected in twelve months following the initial inspection. Based on the level of non-compliance, if any, found upon inspection, the director may change the inspection interval as determined necessary to attain compliance.

(4) Revocation. Following the issuance of a certificate, any code compliant, substantially compliant, or non-compliant property that becomes subject to one of the conditions set forth in Section 1127-07.7(a)(1)-(8) shall have its certificate revoked by the director and be subject to the application and inspection processes set forth in Sections 1127-07.9 and 1127-07.11.

1127-07.15. *Appeals.*

a. *Administrative Ruling.* Any person who has a bona fide controversy with the interpretation, application, or enforcement of the provisions of this section may petition the director for a written decision, order, or adjudication pursuant to section 1101-80.1 of the CBC.

b. *Appeals.* Any person adversely affected by a final, appealable decision, order, or adjudication issued by the Director of the Department of Buildings and Inspections under section 1127-07.15(a) may appeal to the Board of Housing Appeals within 30 days from the date of the mailing of the final, appealable decision, order, or adjudication.

1127-07.17. *Recovery of Additional Costs Incurred in Program Administration and Enforcement.* The director is authorized to charge the owner or person in control of a Residential Rental Property subject to inspection under this section for the recovery of reasonable costs incurred in its administration and enforcement of this inspection program. Additional costs may include the cost of third-party technical experts hired to assist the director of buildings and inspections in the administration and enforcement of this inspection program.

1127-07.19. *Inspection Fees.*

a. Initial inspections will be charged a $100 per unit inspected inspection fee. The re-inspection fee schedule for each unit re-inspected is as follows:

(1)	First re-inspection . .	$70.00
(2)	Second re-inspection	140.00
(3)	Third re-inspection .	210.00
(4)	Fourth or more re-inspection	280.00

b. All fees and fine penalties collected under this Section shall be deposited in the building hazard abatement fund.

1127-07.21. *Warrant Requirement.* If an owner, person in control, or tenant refuses to provide the director with permission to inspect the private areas of the Residential Rental Property at a reasonable time, the director shall obtain an administrative search warrant from a court of competent jurisdiction as allowed by law.

1127-07.23. *Rules and Regulations.*

a. The city manager or the city manager's designee is authorized to promulgate rules and regulations to effectuate the provisions and purposes of this section.

b. This section does not preempt, supersede, cancel, or set aside the requirements of any other applicable landlord-tenant laws or any building, housing, zoning, or related laws or regulations.

1127-07.99. *Penalties.*

a. An owner or person in control of a Residential Rental Property who fails to apply for a residential rental inspection certificate, commits a Class C1 civil offense as defined by CMC Section 1501-8(a) on the first day, and having once been notified under CMC Section 1501-13, "Notice of Civil Offense and Civil Fine; Procedures, each additional day that the owner or person in control fails to apply for a residential rental inspection certificate shall constitute a separate, subsequent Class D civil offense.

(Ordained by Ord. No. 405-2019, § 1, eff. Sept. 1, 2020; a. Emer. Ord. No. 0100-2020, § 1, eff. April 1, 2020; a. Ord. No. 414-2023, § 1, 4, eff. Dec. 6, 2023)

TITLE XII

CINCINNATI FIRE PREVENTION CODE*

Chapter 1201

ADMINISTRATION

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Sec. 1201-57. Permits.
Sec. 1201-59. Application for Permits.
Sec. 1201-61. Revision of Application.
Sec. 1201-63. Revocation of Permits.

***Cross references—**Police and fire radio communication, § 503-45; building, plumbing and fire safety requirements for nursing home, § 848-25.

Note—On September 6, 1979, the council of the city of Cincinnati, Ohio, by Ordinance Number 364-1949 adopted, by reference and with certain Cincinnati amendments, the "BOCA Basic Fire Prevention Code/1978, Fourth Edition" and the "Ohio Fire Code Supplement." Title XII of the Cincinnati Municipal Code contains the Cincinnati modifications to the BOCA Basic Fire Prevention Code and, as such, is supplemental to and is intended to be used in conjunction with the BOCA Basic Fire Prevention Code and the Ohio Fire Code, copies of which are on file in the office of the clerk of council.

Subsequently, Ord. No. 385-1984, effective Sept. 6, 1984, readopted the "BOCA Basic Fire Prevention Code/1978, Fourth Edition"; acknowledged the "Ohio Fire Code" as being applicable to the city; and ordained a new Title XII, except for Chapter 1237, which was ordained by Ord. No. 431-1984, effective Nov. 1, 1984. Amending Chapter CFPC 1235 by emergency Ord. No. 37-1986, effective Jan. 23, 1986 and adopting BOCA Basic Fire Prevention Code/1984 Edition.

As originally ordained, Ord. No. 385-1984 designated the sections as Section "CFPC ...." In order to maintain stylistic consistency with the remainder of the Cincinnati Municipal Code, in agreement with the city, the editor has used the section symbol in this title as in the remainder of the C.M.C.; thus "§ 1201-1" is the same as "CFPC 1201-1."

Sec. 1201-65. Permit Fees.
Sec. 1201-67. Permit Fees for Flammable and Combustible Storage Tank Installation.
Sec. 1201-69. Rules Adopted by Reference.
Sec. 1201-71. Repealed.

Sec. 1201-1. Cincinnati Fire Prevention Code.

The Ohio Fire Code, excluding any and all Appendices, as it may be amended, and the Ohio Fire Code Supplement, as it may be amended, are hereby adopted by reference as part of Title XII of the Cincinnati Municipal Code. In the event of a conflict between the Ohio Fire Code or the Ohio Fire Code Supplement and the Cincinnati Fire Code (Title XII of the Cincinnati Municipal Code), the most restrictive code shall govern; where there is a conflict between a general requirement and a specific requirement, the specific requirement shall be applicable.

Title XII, including the model codes and supplements, shall be known as the "Cincinnati Fire Prevention Code" or as the "fire prevention code."

As used in Title XII, unless the context otherwise requires:

(a) Words in the present tense include the future tense;

(b) Words in the masculine gender include the feminine and neuter genders;

(c) Words in the plural number include the singular number, and words in the singular number include the plural number.

(C.M.C. 1201-1; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984; Emer. Ord. 0038-2009, § 1, eff. Feb. 11, 2009; a. Ord. No. 342-2015, § 1, eff. Nov. 28, 2015)

Analogous to CFPC 1-02; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1201-2. Definitions.

(a) "Garbage" shall mean putrescible animal and vegetable wastes resulting from the handling, preparation, cooking and consumption of food.

(b) "Means of Egress" shall mean a continuous and unobstructed way of exit travel from any point in a building or structure to a public way and consists of three separate and distinct parts: the way of exit access, the exit, and the way of exit discharge.

(c) "Owner" shall mean any person, partnership, firm or corporation that, alone or jointly with others, shall be in possession of or have control of any property, dwelling or dwelling unit within the City of Cincinnati as owner, employee or agent of the owner, or as executor, administrator, trustee or guardian of the estate of the owner.

(d) "Person" shall mean an individual, firm partnership, association, corporation, company or organization of any kind.

(e) "Person in control" shall mean the owner of the freehold estate of the premise; a mortgagee or vendee in possession; a receiver; an executor; a trustee; and any person, public or private entity, lessee or holder of a lesser estate in the premises, and/or its duly authorized agent(s), with the authority to bring a building or premises into compliance with the provisions of this code; including but not limited to any mortgagee that has filed an action in foreclosure on a particular premises at issue, based on breach or default of a mortgage agreement, until title to the premises is transferred to a third party.

(f) "Rubbish" shall mean nonputrescible solid wastes consisting of both combustible and noncombustible wastes, such as paper, wrappings, dirt, cigarettes, cardboard, tin cans, yard clippings, leaves, wood, glass, bedding, crockery and similar materials.
(Ordained by Ord. No. 342-2015, § 3, eff. Nov. 28, 2015)

Sec. 1201-3. Scope.

The provisions of this code shall apply to all structures, buildings or premises. Any

condition not in compliance with the requirements of this code is hereby deemed to be a serious safety hazard, therefore, all the provisions of this code shall be retroactive.
(C.M.C. 1201-3; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 1-04; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1201-5. Purpose.

The purpose and the intent of this code is to prescribe minimum requirements and controls to safeguard life, property or public welfare from the hazards of fire and explosion arising from the storage, handling or use of substances, materials or devices and from conditions hazardous to life, property or public welfare in the use or occupancy of buildings, structures, sheds, tents, lots or premises. All matters within the intent of this code and not covered by this code shall comply with the accepted engineering practice standards listed in the Ohio Fire and Building Codes.
(Ordained by Ord. No. 385-1984, eff. Sept. 6, 1984; a. Ord. No. 342-2015, § 1, eff. Nov. 28, 2015)

Sec. 1201-7. Alternate Methods and Materials.

The fire official may accept alternate methods of satisfying the intent of this code if the material, method or work is at least the equivalent of that required by this code in quality, effectiveness, durability and safety, and meets or exceeds the intent of the code.
(Ordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1201-9. New and Existing Conditions.

The provisions of this code shall apply equally to new and existing buildings and conditions, as hereinafter provided except that existing conditions not in strict compliance with the requirements of this code may be permitted to continue where the exceptions do not constitute a distinct hazard to life or property in the opinion of the fire official.
(Ordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1201-11. Exceptions.

A provision contained in this code shall not be construed as applying to the transportation of any article or substance shipped under the jurisdiction of and in compliance with the regulations prescribed by the Department of Transportation (DOT), nor as applying to the military forces of the United States. Rules governing the transportation of petroleum liquids do not apply to vehicles which are within the jurisdiction or subject to the rules and regulations relating thereto of either the Interstate Commerce Commission or the Public Utilities Commission.
(Ordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1201-13. Applicability of Other Laws.

Nothing in this code shall be construed, interpreted or applied to abrogate, nullify or abolish any law, ordinance or code adopted by the jurisdiction governing the construction, alteration, addition, repair, removal, demolition, use, location, occupancy and maintenance of buildings specifically provided herein. When any provision of this code is found to be in conflict with any building, zoning, safety, health or other applicable law, ordinance or code of the jurisdiction existing on the effective date of this code or hereafter adopted, the provision of which

establishes the higher standard for the promotion and protection of the safety and welfare of the public shall prevail.
(Ordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1201-15. Application of Building Code.

The planning, design and construction of new buildings and structures to provide the necessary egress facilities, fire protection, and built-in fire protection equipment shall be controlled by the building code of the jurisdiction; and any alterations, additions or changes in buildings required by the provisions of this code which are within the scope of the building code shall be made in accordance therewith.
(Ordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1201-17. Inspection of Structures, Buildings, and Premises.

It shall be the duty of the fire chief to inspect or cause to be inspected all structures, buildings and premises as often as may be necessary for the purpose of ascertaining and causing to be corrected any conditions liable to cause fire, endanger life from fire, or any violations of the provisions or intent of this code and of any other ordinance affecting the fire hazard.
(C.M.C. 1201-6; ordained by Ord. No. 364-1979, eff. Sept 6, 1979; repealed and reordained as Sec. 1201-17 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 1-10; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1201-19. Special Fire Protection Requirements.

When the fire official finds that, in his opinion, adequate fire protection is not being provided in a building, structure or premises as herein required or where such fire protection is deemed necessary due to hazardous or dangerous conditions involving the occupancy of a building or structure, special fire protection equipment shall be installed in accordance with the requirements of this code and the building code.
(Ordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1201-21. Maintenance.

The owner or person in control shall ensure the safe and proper maintenance of the building, structure, premises or lot at all times. In all new and existing buildings and structures the fire protection equipment, means of egress, alarms, devices and safeguards required by this code and other jurisdictional ordinances shall be maintained in a safe and proper operating condition in accordance with the Ohio Fire Code, the Cincinnati Fire Prevention Code, and applicable referenced standards.

If an occupant of a building creates conditions in violation of this code, by virtue of storage, handling and use of substances, materials, devices and appliances, he can be held responsible for the abatement of said hazardous conditions.
(Ordained by Ord. No. 385-1984, eff. Sept. 6, 1984; a. Ord. No. 342-2015, § 1, eff. Nov. 28, 2015)

Sec. 1201-23. Existing Buildings.

Buildings built under, and in full compliance with the codes in force at the time of construction or alteration thereof, and that have been properly maintained and used for such use as originally permitted, shall be exempt from the requirements of this code pertaining to:

(a) Fire protection of structural elements except as provided for existing buildings under the building code;

(b) Exits required, except as provided for existing buildings under this code and the building code; and

(c) Isolation of hazardous operations, however, the fire official may require the installation of fire safety devices or systems (fire extinguishers, fire alarms, fire detection devices, sprinklers or similar systems) where, in his judgment, they are necessary to provide safety to life and property. In lieu of requiring the installation of safety devices or systems, or when necessary to secure safety in addition thereto, the fire official may prescribe limitations on the handling and storage of materials or substances or upon the operations that are liable to cause fire, contribute to the spread of fire, or endanger life or property.

Where there is a conflict between this code and the rules and regulations of a political subdivision, the requirements which provide the greatest safety shall be applied throughout said subdivision.
(Ordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1201-25. Administrative Liability.

The fire official, office or employee charged with the enforcement of this code, while acting for the jurisdiction, shall not thereby render himself liable personally, and he is hereby relieved from all personal liability for any damage that may accrue to persons or property as a result of any act required or permitted in the discharge of his official duties. Any suit instituted against any officer or employee because of an act performed by him in the lawful discharge of his duties and under the provisions of this code shall be defended by the legal representative of the jurisdiction until the final termination of the proceedings. The fire official or any of his subordinates shall not be liable for costs in any action, suit or proceeding that may be instituted in pursuance of the provisions of this code; and any official, office or employee, acting in good faith and without malice, shall be free from liability for acts performed under any of its provisions or by reason of any act or omission in the performance of his official duties in connection therewith.
(Ordained by Ord. No. 385-1984, eff. Sept 6, 1984)

Sec. 1201-27. Jurisdictional Liability.

The jurisdiction shall not be liable under this code for any damage to persons or property, by reason of the inspection or reinspection of buildings, structures or equipment authorized herein, or failure to inspect or reinspect such buildings, structures or equipment or by reason of the approval or disapproval of any building, structure or equipment authorized herein.
(Ordained by Ord. No. 385-1984, eff. Sept 6, 1984)

Sec. 1201-29. Rules and Regulations.

The fire official shall have authority as may be necessary in the interest of public safety, health and general welfare to promulgate rules and regulations, to interpret and implement the provisions of the Fire Prevention Code, to secure the intent thereof and to designate requirements applicable because of climatic or other conditions, but no such rules shall have the effect of waiving any fire safety requirements specifically provided in the fire prevention code, or violating accepted engineering practice involving public safety.
(Ordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1201-31. Authority at Fires and Emergencies.

The fire chief or his authorized representative shall be in charge at the scene of a fire

or other emergency involving the protection of life and/or property, and shall remain in charge until authority is relinquished.
(Ordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1201-33. Evacuation.

When, in the opinion of the fire official, there is actual and potential danger to the occupants or those in the proximity of any building, structure or premises because of unsafe structural conditions, or inadequacy of any means of egress, the presence of explosives, explosive fumes or vapors, or the presence of toxic fumes, gases or materials, the fire official may order the immediate evacuation of said building, structure or premises. All of the occupants so notified shall immediately leave the building, structure or premises and persons shall not enter or reenter until authorized to do so by the fire official.

(a) Any person who shall refuse to leave, interfere with the evacuation of other occupants or continue any operation after having been given an evacuation order except such work as that person is directed to perform to remove a violation or unsafe condition, shall be deemed guilty of a misdemeanor.

(Ordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1201-35. Spills and Leaks.

The fire chief shall be notified immediately of spillage or leakage of a large quantity of flammable or combustible liquids.
(Ordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1201-37. Procedure in the Event of Fire.

In the event of an unfriendly fire (as defined in division (b) of Section 3737.63 of the Revised Code) in any building or premises, the responsible person (as defined in this code) shall immediately and with all reasonable dispatch and diligence, call or otherwise notify the fire department concerning the fire and shall spread an alarm immediately to all occupants of the building or premises.

Unfriendly fires shall be reported to the local fire official. The local fire official shall notify the state fire marshal of such unfriendly fires.
(Ordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1201-39. Civil Liability.

In the event of fire resulting directly or indirectly from any omission or neglect to properly comply with any written order of the fire chief as provided in this code, or any order which directly or indirectly concerns an existing hazardous use in violation of this code, or any other reasonable order which directly or indirectly concerns safety against fire, any such owner, lessee, occupant or person culpable or negligent in respect thereto shall be liable to the city of Cincinnati for the payment of all costs and expenses of the fire division incurred in and about the use of employees, apparatus and materials in the extinguishment of any fire resulting from such cause; the amount of such costs and expenses to be fixed by the city manager and be collected by him in a civil action wherein the city of Cincinnati shall be plaintiff and the party culpable or negligent, as above set forth, shall be defendant.
(C.M.C. 1201-11; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1201-39 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 1-17; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1201-41. Civil Proceedings.

(A) Whenever the fire chief is satisfied that any provision the fire chief is charged to enforce, or any law in force in the city

applicable to the same subject matter, has been violated or is about to be violated in any respect, or that any order or direction made in pursuance of the enforcement of this code has not been complied with, or is being disregarded, and whenever the fire chief is satisfied that civil proceedings are necessary for the enforcement of this code or laws, to restrain or correct the violations thereof, or to prevent the occupancy or use of any building or other structure that is being constructed, altered or maintained in violation of this code, the fire chief shall apply to the city solicitor, who is hereby authorized to institute civil proceedings. Such civil proceedings shall be brought in the name of the city, provided, however, that nothing in this section and no action taken thereunder, shall be held to exclude such criminal proceedings as may be authorized by this code, or any of the laws or ordinances in force in the city or to exempt anyone violating this code or any part of the laws from any penalty which may be incurred.

(B) Nothing in this code shall be construed to affect any act done or committed in violation of any former ordinance relating to the same subject, or any suit or proceeding now pending in court for the violation of the provisions of any former ordinance, or any cause or causes of action accrued or existing under such ordinance, but all proceedings or prosecutions now pending shall be conducted to final determination irrespective of this code.

(C.M.C. 1201-13; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1201-41 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 1-18; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1201-43. Service of Order.

Unless otherwise specifically provided for, the service of any order required by the provisions of this code to be served on the owner, agent, contractor or other person responsible for the work or violation in connection with any violation of this code or the construction, reconstruction, repair, removal, vacation, or wrecking, of any building, object or device on such property, may be made in any of the following ways:

(a) By personal delivery to the party involved;

(b) By delivery at the residence or place of business of the party involved;

(c) By mail addressed to the party involved at his residence or place of business;

(d) Where the residence and place of business of such party is unknown and cannot be ascertained with reasonable diligence, or where, for any other reason, personal service by mail cannot be made, the notice shall be posted in a conspicuous place on the premises.

(Ordained by Ord. No. 385-1984, eff. Sept. 9, 1984)

Sec. 1201-45. Stop Orders.

The fire chief may issue a notice to stop any work, activity or operation regulated by the provisions of this code for any of the following reasons:

(a) Whenever there is a violation of any provision of this title, any ordinance of the city or statute of the state relating to the same subject matter;

(b) Whenever the continuance of any work, activity or operation becomes dangerous to life or property;

(c) Whenever there is a violation of any conditions on which the issuance of a permit was based;

(d) Whenever, in the opinion of the fire chief, the person having charge of the work activity or operation is incompetent.

(C.M.C. 1201-35; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1201-45 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 1-31; ordained by Ord. No. 479-1972, eff. Nov. 17, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1201-47. Failure To Comply With Orders.

If, after service of any lawful order from the fire chief, the owner, agent, contractor or other person responsible for the work or violation refuses to comply with such order or does not comply within the period stated in the order or notice, such failure to comply shall constitute a misdemeanor punishable as provided for in this code.

(C.M.C. 1201-7; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained a Sec. 1201-47 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 1-13; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; a. Ord. No. 479-1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1201-49. Penalties.

Any person found guilty of a violation of the Cincinnati Fire Prevention Code shall be subjected to a fine of not more than $1,000 or imprisoned not more than 6 months or both. Each and every day on which such person continues to violate the provisions of this code after having been notified of such violation shall constitute a separate offense.

(C.M.C. 120A; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained by Ord. No. 252-1981, eff. June 24, 1981; repealed and reordained as Sec. 1201-49 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 1-14; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1201-51. Appeals.

(A) Any person affected by any notice or order issued in writing by the fire chief pursuant to any provision of this code or other related laws and ordinances subject to administration by the fire chief, except as provided in paragraph (B) herein, may appeal the notice or order to the Cincinnati fire prevention board of appeals created by Article IV, Section 12 of the administrative code, which board shall have authority to affirm, modify or reverse the action of the fire chief. The appeal shall be based on one or both of the following grounds, to wit:

(1) That the interpretation, ruling or order of the fire chief is contrary to this code, its administration, or to any rule or regulation made thereunder; or

(2) That a variance from an applicable section of this code administration, or any rule or regulation made thereunder, in the specific case, will not be contrary to the public interest and, a literal enforcement of such provisions will result in undue hardship.

In exercising its powers, the board shall adopt from time to time such general rules and regulations as it may deem necessary to carry out the performance of its functions.

An appeal to the Cincinnati fire prevention board of appeals shall be in writing and shall be filed within 30 days from the receipt of the notice or order upon which the appeal is based. Service of said notice or order shall be made in accordance with Section 1201-43 of the Cincinnati fire prevention code.

With the filing of an appeal, the appellant shall pay a fee of $125.00.

(B) Whenever any such notice or order issued in writing by the fire chief shall state thereon that immediate action is necessary

because the existing condition constitutes an immediate or impending hazard of fire inimical to life and/or property, the person affected shall comply within the time provided by the notice or order, without right of appeal as provided by above paragraph (A).
(C.M.C. 1201-37; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1201-51 by Ord. No. 385-1984, eff. Sept. 6, 1984; a. Ord. No. 342-2015, § 1, eff. Nov. 28, 2015)

Analogous to CFPC 1-32; ordained by Ord. No. 479-1972, eff. Nov. 17, 1972; a. Ord. No. 348-1975, eff. July 2, 1975; a. Ord. No. 534-1977, eff. Dec. 29, 1977; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1201-53. Cincinnati Fire Prevention Board of Appeals.

There shall be a Cincinnati fire prevention board of appeals whose duty it shall be to hear and rule upon appeals taken from any notice, order or other decision, any one of which was issued in writing by the fire chief. The board shall be composed of five members: One shall be actively engaged in the field of fire insurance, one shall be a consulting engineer engaged in the design or supervision of mechanical installations, one shall be a mechanical contractor, and two shall be representatives of the public at large.

The members shall be appointed by the city manager for original terms of one, two, three, four and five years, respectively, and thereafter for terms of five years each. Members may be removable by the city manager at any time.
(Ordained by Ord. No. 478-1972, eff. Nov. 17, 1972; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Cross references—Boards, commissions, institutions, tit. II; see also Adm. Art. IV, §§ 12.

Sec. 1201-55. Posting of Occupancy Signs; Fees.

A fee of $35.00 shall be paid by the owner or operator of any place of assembly for each sign in excess of the initial sign provided by the fire chief stating the maximum number of occupants permitted on the premises as required by Article 15 and the Cincinnati—Ohio Basic Building Code.
(C.M.C. 1201-39; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1201-55 by Ord. No. 385-1984, eff. Sept. 6, 1984; Emer. Ord. No. 196-2005, § 1, eff. 5-25-05)

Analogous to CFPC 1-33; ordained by Ord. No. 344-1977, eff. Sept. 8, 1977; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1201-57. Permits.

(A) *Permits required:* It shall be unlawful for any person to commence or proceed with any operation for which a permit is required by the provisions of this code without first obtaining such permit and paying the fee hereinafter prescribed for same. Each permit shall be kept on the premises at all times and shall be subject at all times to inspection by the fire chief. A permit shall not be transferable, and any change in use of the premises shall require a new permit.

(B) *Permits issued:* It shall be the duty of the fire chief to examine the application for permits within a reasonable time after filing. If, after examination, the fire chief finds no objections, and it appears that the proposed operation will be in compliance with the provisions of this code, the fire chief shall approve such application and issue a permit for the proposed operation as soon as practicable. If his examination reveals otherwise, the chief shall reject such application, noting the findings on the application and notifying the applicant.

(C) *Permit limitation:* Any permit issued by the fire chief under the provisions of this code shall be valid for the time specified on the permit.
(C.M.C. 1201-15; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1201-57 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 1-19; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; a. Ord. No. 479-1972, eff. Nov. 17, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1201-59. Application for Permits.

(A) Application shall be made by the owner of the building involved, or authorized agent, architect, engineer or contractor employed in connection with the operation.

(B) Application shall be prepared in writing on printed forms prescribed by the fire chief.

(C) The fire chief may require any application to be accompanied by plans, technical data or such additional information as the fire chief may deem necessary to determine compliance with this code.
(C.M.C. 1201-17; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1201-59 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 1-20; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; a. Ord. No. 479-1972, eff. Nov. 17, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1201-61. Revision of Application.

An application or drawings, specifications or other data submitted with an application may be revised or changed at any time prior to the issuance of the permit.
(C.M.C. 1201-19; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1201-61 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 1-21; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1201-63. Revocation of Permits.

The fire chief is hereby authorized and empowered to recall and revoke any permit for any one of the following reasons:

(a) When the permit has been issued in error;

(b) When the permit was based upon an application which contained a false or misleading statement or a misrepresentation of a material fact;

(c) When any provision of this permit or any applicable provisions of this fire prevention code is violated.

(C.M.C. 1201-21; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1201-63 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 1-22; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1201-65. Permit Fees.

No permit shall be issued by the fire chief until the fees hereinafter prescribed shall have been paid:

(a) All permits required under Title XII of the Cincinnati Fire Prevention Code are $125.00 per year except for permits required under Title XII of the Cincinnati Fire Prevention Code for which a different fee is established or for which a shorter time period is specified;

(b) All elementary and secondary schools that meet the state board of education minimum requirements, as stated by Ohio law, shall be exempted from permit fees. All accredited institutions of higher education shall also be exempted.

(C.M.C. 1201-23; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; a. Ord. No. 554-1981, eff. Dec. 23, 1981; a. Ord. No. 205-1982, eff. May 26, 1982; a. Ord. No. 57-1983, eff. Feb. 24, 1983; repealed and reordained

as Sec. 1201-65 by Ord. No. 385-1984, eff. Sept. 6, 1984; a. Ord. No. 69-1989, eff. Feb. 23, 1989; Emer. Ord. No. 196-2005, § 2, eff. May 25, 2005; Emer. Ord. No. 0461-2007, § 1, eff. Dec. 19, 2007; a. Ord. No. 116-2014, § 19, eff. July 1, 2014)

Analogous to CFPC 1-23; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; a. Ord. No. 479-1972, eff. Nov. 17, 1972; a. Ord. No. 348-1975, eff. July 2, 1975; a. Ord. No. 361-1975, eff. July 2, 1975; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1201-67. Permit Fees for Flammable and Combustible Storage Tank Installation.

Storage Tank Installation. The permit fees for flammable and combustible storage tank installation shall be based on the estimated cost thereof, and shall be as follows:

(a) Where the estimated cost is not more than $500 - $35;

(b) Where the estimated cost is more than $500 and not more than $1,000 - $35 for the first $500 plus $2.50 for each additional $100 or fraction thereof;

(c) Where the estimated cost is more than $1,000 and not more than $2,000 - $47.50 for the first $1,000 plus $3.75 for each additional $100 or fraction thereof;

(d) Where the estimated cost is more than $2,000 and not more than $25,000 - $85 for the first $2,000 plus $15 for each additional $1,000 or fraction thereof;

(e) Where the estimated cost is more than $25,000 and not more than $50,000 - $430 for the first $25,000 plus $11.25 for each additional $1,000 or fraction thereof;

(f) Where the estimated cost is more than $50,000 and not more than $100,000 - $711.25 for the first $50,000 plus $7.50 for each additional $1,000 or fraction thereof;

(g) Where the estimated cost is more than $100,000 and not more than $500,000 - $1,086.25 for the first $100,000 plus $5.60 for each additional $1,000 or fraction thereof;

(h) Where the estimated cost is more than $500,000 - $3,336.25 for the first $500,000 plus $3.75 for each additional $1,000 or faction thereof.

(Ordained as C.M.C. 1235-27 by Ord. No. 412-1979, eff. Sept. 26, 1979; repealed and reordained as Sec. 1201-67 by Ord. No. 385-1984, eff. Sept. 6, 1984; Emer. Ord. No. 196-2005, § 3, eff. 5-25-05)

Sec. 1201-69. Rules Adopted by Reference.

Rules and regulations of national technical organizations with additions and exceptions are hereby approved when adopted by council as part of this code by reference.

Such rules and regulations shall have full force and effect of ordinances except when they are not in conformity with the provisions of this code. These rules and regulations are referred to by the title of the sponsoring organization or by their abbreviations. The specific edition of such rules and regulations shall be the National Fire Protection Association (NFPA) approved standard for safety to life from fire in buildings and structures, No. 101 Life Safety Code (2012 edition).

(C.M.C. 1201-5; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1201-69 by Ord. No. 385-1984, eff. Sept. 6, 1984; a. Ord. No. 342-2015, § 1, eff. Nov. 28, 2015)

Analogous to CFPC 1-09; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979)

Sec. 1201-71. Repealed.

(Ordained by Ord. No. 385-1984, eff. Sept. 6, 1984; r. Ord. No. 342-2015, § 4, eff. Nov. 28, 2015)

Chapter 1203

MOTOR EQUIPMENT IN PLACES OF ASSEMBLY

Sec. 1203-1. Temporary Use of Gasoline-Powered Motor Vehicles.
Sec. 1203-3. Temporary Use of Diesel-Powered Motor Vehicles.

Sec. 1203-1. Temporary Use of Gasoline-Powered Motor Vehicles.

The temporary use or exhibition of gasoline-powered motor vehicles, boats or aircraft shall conform to the following:

(a) Written permission shall be obtained from the fire chief seven days prior to use or exhibition of any gasoline-powered motor vehicle.

(b) The installation or operation of all equipment shall be under the supervision of a competent operator.

(c) Fire division personnel shall be employed by the exhibitor whenever vehicle engines are to be used. Where such personnel are required, the fire chief shall determine the following:

(1) The number of personnel (a supervisor shall be required where more than one man is employed);

(2) The hourly wage rate.

(d) The maximum amount of gasoline permitted to remain in a tank shall be three gallons.

(e) A locking type gas cap shall be installed on all gas tanks, or the tanks shall be sealed in a manner approved by the fire chief.

(f) All batteries shall be disconnected while the vehicle is not in actual use.

(g) Fueling or defueling of vehicles shall not take place inside the building.

(h) All fuel shall be dispensed or removed with approved safety equipment.

(C.M.C. 1203-7; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979, repealed and reordained as Sec. 1203-1 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 5-11; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; a. Ord. No. 364-1979, eff. Sep. 6, 1979.

Sec. 1203-3. Temporary Use of Diesel-Powered Motor Vehicles.

The temporary use or exhibition of diesel-powered motor vehicles, boats or aircraft shall conform to the following:

(a) Written permission shall be obtained from the Fire chief seven days prior to the use or exhibition of any diesel powered motor vehicle.

(b) The installation or operation of all equipment shall be under the supervision of a competent operator.

(c) Fire division personnel shall be employed by the exhibitor whenever vehicle engines are to be used. Where such personnel are required the fire chief shall determine the following:

(1) The number of personnel (a supervisor shall be required where more than one man is employed);

(2) The hourly wage rate.

(d) The maximum amount of diesel fuel permitted to remain in a vehicle tank shall be 10 gallons. Where vehicles are equipped with more than one tank, the aggregate amount of diesel fuel permitted shall be not more than 20 gallons for each vehicle.

(e) A locking type fuel tank cap shall be installed on all fuel tanks, or the tanks shall be sealed in a manner approved by the fire chief.

(f) All batteries shall be disconnected while the vehicle is not in actual use.

(g) Fueling or defueling of vehicles shall not take place inside the building.

(h) All fuel shall be dispensed or removed with approved safety equipment.

(C.M.C. 1203-9; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1203-3 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 5-12; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Chapter 1205

CONSTRUCTION SAFEGUARDS AND DEMOLITION OPERATIONS

Sec. 1205-1. Scope.
Sec. 1205-3. Water Supply.
Sec. 1205-5. Fire Protection.
Sec. 1205-7. Access for Firefighting.
Sec. 1205-9. Temporary Heating Devices.
Sec. 1205-11. Disposal of Waste.
Sec. 1205-13. Flammable Liquids.

Sec. 1205-1. Scope.

This chapter shall apply to those precautions which are necessary to minimize fire and life safety hazards during construction and demolition operations.
(C.M.C. 1205-1; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 15-01; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1205-3. Water Supply.

(a) An adequate water supply for fire protection shall be made available as soon as combustible material accumulates. There shall be no delay in the installation of fire protection equipment.

(b) Where underground water mains are to be provided, they shall be installed, completed, and made available for permanent use not later than the time that combustible materials are delivered to the construction site.
(C.M.C. 1205-3; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 15-02; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1205-5. Fire Protection.

The suitability, distribution or maintenance of fire protection equipment shall be in accordance with the applicable provisions of Article 4 [of the BOCA Code] and the following:

(a) Signs designating the location of first aid fire equipment and standpipe connections shall be conspicuously displayed. During demolition operations, charged hose lines supplied by hydrants or sprinkler riser adapters shall be available.

(b) In every building operation wherever a tool house. a storeroom, or other shanty is placed, or a room or space is used for storage, dressing room, or workshop, at least one approved portable extinguisher shall be provided and maintained in an accessible location. At least one approved fire extinguisher shall also be provided on each floor which, in multi-story buildings, shall be located in plain sight of the working stairway where the majority of the workmen pass up and down. During demolition, portable fire extinguishers shall be retained until their removal is necessitated by razing operations.

(C.M.C. 1205-5; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 15-03; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1205-7. Access for Firefighting.

(a) Access for use of heavy firefighting equipment shall be provided to the immediate job site at the start of construction and maintained until all construction is completed.

(b) Free access from the street to the fire hydrants, and to outside connections for standpipes, sprinklers or other fire extinguishing equipment, whether permanent or temporary, shall be provided and maintained at all times. Protective pedestrian walkways shall not be so constructed as to impede ready access to hydrants. No material or construction shall be placed within 10 feet of such hydrants or connections, nor between them and the center line of the street.

(c) During building operations, free access to permanent, temporary, or portable first aid fire equipment shall be maintained at all times.

(d) In all buildings over 50 feet in height, at least one stairway shall be provided in usable condition at all times. This stairway shall be extended upward as each floor is installed in new construction.
(C.M.C. 1205-7; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 15-04; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1205-9. Temporary Heating Devices.

All temporary portable heating devices shall not be operated within six feet of any flammable construction or material.
(C.M.C. 1205-9; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 15-05; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1070, eff. Sept. 6, 1979.

Sec. 1205-11. Disposal of Waste.

Waste material and rubbish shall not be stored nor allowed to accumulate within the building or in the immediate vicinity, but shall be removed from the premises as rapidly as practicable.
(C.M.C. 1205-11; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 15-06; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1205-13. Flammable Liquids.

(a) Flammable liquids and other hazardous materials such as paints, flammable thinners, gasoline, asphalt and tar shall be stored in small detached structures or out in the open and not inside main buildings. Low flash point liquids used within buildings shall be handled only in approved safety cans.

(b) Asphalt and tar kettles shall be located in a safe place outside of the building or on a noncombustible roof at a point where they avoid danger of ignition of combustible material below. Metal covers shall be provided for all kettles to smother out flames in case of fire.

(c) Used roofing mops shall be stored outside the building and away from other combustible materials.

(d) For demolition projects, the following precautions shall be taken:

(1) Flammable liquids and combustible oils from tanks and machinery reservoirs shall be drained in a safe manner, with particular attention to removal of residue and sludge accumulations, and shall be removed immediately from the building;

(2) Tanks and piping, formerly containing flammable liquids shall be removed prior to demolition of the building. If this is not feasible, these hazards shall be placarded or otherwise identified for careful removal.

(C.M.C. 1205-13; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 15-07; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Chapter 1207

DRILLS

Sec. 1207-1. Scope.
Sec. 1207-3. General Requirements.
Sec. 1207-5. Places of Assembly.
Sec. 1207-7. Educational Occupancies.
Sec. 1207-9. Institutional Occupancies.
Sec. 1207-11. Residential Occupancies.
Sec. 1207-13. Mercantile Occupancies.
Sec. 1207-15. Office Occupancies.
Sec. 1207-17. Industrial Occupancies.
Sec. 1207-19. Fire Safety Plan and Evacuation Procedure/High-Rise Buildings.
Sec. 1207-21. Fire Safety Plan and Evacuation Procedure/Living Facilities for Aged Persons and Persons with Disabilities.

Sec. 1207-1. Scope.

This chapter shall apply to fire exit drills which are held for the purpose of rapid evacuation of buildings by the efficient and safe use of the exit facilities available. This chapter shall not apply to drills which are held only for the purpose of practice in the use of first aid fire protection equipment.

It is recognized that modifications may be necessary to the details of the procedures specified in this chapter for an individual building, to make the drills more effective for their intended purpose. All such modifications shall be subject to the approval of the fire chief.
(C.M.C. 1207-1; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 17-01; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1207-3. General Requirements.

(a) Fire exit drills shall be regularly conducted in accordance with the provisions of this chapter.

(b) Fire exit drills shall be held with sufficient frequency to familiarize all occupants with the drill procedures and to have the conduct of the drill a matter of established routine.

(c) Fire exit drills shall be held at unexpected times and under varying conditions to simulate the unusual conditions obtained in case of fire.

(d) Responsibility for the planning and conduct of fire exit drills shall be assigned only to competent persons qualified to exercise leadership.

(e) In the conduct of fire exit drills, emphasis shall be placed upon orderly evacuation under proper discipline rather than upon speed as such; no running or horseplay shall be permitted.

(f) Fire exit drills shall include suitable procedures to make sure that all persons in the building, or all persons subject to the drill, actually participate.

(g) Fire alarm facilities, where available, shall be regularly used in the conduct of fire exit drills.
(C.M.C. 1207-3; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 17-02; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1207-5. Places of Assembly.

The employees or attendants of places of public assembly shall be drilled in the duties they are to perform in case of fire, panic, or other emergency in order to be of greatest service in effecting orderly exit of the occupants.
(C.M.C. 1207-5; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 17-03; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1207-7. Educational Occupancies.

(a) Fire exit drills shall be conducted in accordance with the applicable provisions of the following paragraphs and Section 3737.73 of the Revised Code of Ohio.

(b) Fire exit drills shall be executed at different hours of the day or evening; during the changing of classes; when the school is at assembly; during the recess or gymnastic periods, etc., so as to avoid distinction between drills and actual fires. If a drill is called when pupils are going up and down the stairway, as during the time classes are changing, the pupils shall be instructed to form in file and immediately proceed to the nearest available exit in an orderly manner.

(c) Every fire drill shall be an exercise in school management for principal and teachers, with the chief purpose of every drill being complete control of the class so that the teacher will form its ranks quickly and silently, may halt it, turn it, or direct it as desired. Great stress shall be laid upon the execution of each drill in a brisk, quiet, and orderly manner. Running shall be prohibited. In case there are pupils incapable of holding their places in a line moving at a reasonable speed, provisions shall be made to have them taken care of by the sturdier pupils, moving independently of the regular line of march.

(d) Monitors shall be appointed from the maturer pupils to assist in the proper execution of all drills. They shall be instructed to hold open doors in the line of march or to close doors where necessary to prevent spread of fire or smoke. There shall be at least two substitutes for each appointment so as to provide for proper performance in case of absence of the regular monitors. The searching of toilet or other rooms shall be the duty of the teachers or other members of the staff. If the teachers are to do the searching, it should be done after they have joined their classes to the preceding lines.

(e) Each class or group shall proceed to a predetermined point outside the building and remain there while a check is made to see that all are accounted for, leaving only when a recall signal is given to return to the building, or when dismissed. Such points shall be sufficiently far away from the building and from each other as to avoid danger from any fire in the building, any interference with fire department operations, or any confusion between different classes or groups.

(f) Where necessary for drill lines to cross roadways, signs reading "STOP! SCHOOL FIRE DRILL" or equivalent, shall be carried by monitors to the traffic intersecting points in order to stop traffic during the period of the drill.

(g) All fire exit drill alarms shall be sounded on the fire alarm system and not on the signal system used to dismiss classes.

(h) Whenever any of the school authorities determine that an actual fire exists, they shall immediately call the fire division using the public fire alarm system or such other facilities as are available.

(C.M.C. 1207-7; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 17-04; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1207-9. Institutional Occupancies.

(a) The administration of every hospital and nursing home shall have in effect and available to all supervisory personnel written copies of a plan for the protection of all persons in the event of fire and for their evacuation to areas of refuge and from the building when necessary. All employees shall be instructed and kept informed respecting their duties under the plan. Fire exit drills shall be held at reasonable intervals.

(b) Fire exit drills in hospitals shall include the transmission of a fire alarm signal and simulation of emergency fire conditions except that the movement of infirm or bedridden patients to safe areas or to the exterior of the building is not required. Drills shall be conducted at irregular intervals during day and night to familiarize hospital personnel (nurses, interns, maintenance engineers and administrative staff) with signals and emergency actions required under varied conditions. Not less than 12 drills shall be held every year.

(C.M.C. 1207-9; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 17-05; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1207-11. Residential Occupancies.

(a) All employees of hotels shall be instructed and drilled in the duties they are to perform in the event of fire, panic, or other emergency.

(b) Fire exit drills shall be regularly conducted in dormitories.

(C.M.C. 1207-11; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 17-06; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1207-13. Mercantile Occupancies.

In any store having an aggregate gross area of not less than 30,000 square feet, or utilizing more than three floor levels for sales purposes, the employees shall be regularly trained in the fire exit drill procedures.

(C.M.C. 1207-13; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 17-07; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1207-15. Office Occupancies.

Employees and supervisory personnel shall be instructed in the fire drill procedures and shall conduct practice drills periodically if either:

(a) The building is occupied by more than 500 persons;

(b) The building is occupied below street level by more than 100 persons;

(c) The building is occupied above street level by more than 100 persons;

(C.M.C. 1207-15; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 17-08; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1207-17. Industrial Occupancies.

Employees and supervisory personnel shall be instructed in the fire exit drill procedures and shall conduct practice drills periodically if either:

(a) The building is occupied by more than 500 persons;

(b) The building is occupied below street level by more than 100 persons;

(c) The building is occupied above street level by more than 100 persons.

(C.M.C. 1207-17; ordained by Ord. No. 364-1979, eff. Sept. 6. 1979; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 17-09; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1207-19. Fire Safety Plan and Evacuation Procedure/ High-Rise Buildings.

(a) The owner or other person having charge of buildings identified as high-rise buildings in the building code shall be required to prepare and submit for the review and approval of the fire official, a fire safety plan and evacuation procedure as set forth in this section and a fire plan review fee in the amount of one hundred dollars ($100.00).

(b) A fire safety plan, prepared in accordance with the requirements of the fire official, shall be distributed to the tenants and building service employees. Tenants shall distribute to their employees applicable parts of the fire safety plan which affect their action in the event of a fire or emergency.

(c) It shall be the responsibility of the owner or his agent to promptly update the fire safety plan and evacuation procedures upon changes in occupancy, use or physical arrangement.

(Ordained by Ord. No. 385-1984, eff. Sept. 6, 1984; Emer. Ord. No. 142-2013, § 18, eff. May 30, 2013; Emer. Ord. No. 208-2013, § 18, eff. June 26, 2013)

Sec. 1207-21. Fire Safety Plan and Evacuation Procedure/ Living Facilities for Aged Persons and Persons with Disabilities.

(a) The owner or other person having charge of buildings, which are required to provide living facilities for aged persons and persons with disabilities, as defined in the Cincinnati - Ohio Building Code, shall be required to prepare and submit for the review of the fire official, a fire safety and evacuation procedure as set forth in this section and a fire plan review fee in the amount of one hundred dollars ($100.00).

(b) A fire safety plan and evacuation procedure, prepared in accordance with the requirements of the fire official, shall be distributed to all tenants and building service employees. A floor plan showing evacuation routes shall be posted at the entrance to every required means of egress on each floor level.

(c) It shall be the responsibility of the owner or his agent to promptly update the fire safety plan and evacuation procedure upon changes in occupancy, use or physical arrangement.

(d) A copy of the fire safety plan and evacuation procedure shall be maintained on the premises by the owner or occupant in charge of said premises, and shall be submitted to the fire official when requested for inspection and evaluation.

(e) This section shall not apply to owner-occupied detached single-family dwellings or multiple single-family buildings, such as townhouses.

(Ordained by Ord. No. 410-1988, eff. Nov. 18, 1988; Emer. Ord. No. 142-2013, § 18, eff. May 30, 2013; Emer. Ord. No. 208-2013, § 18, eff. June 26, 2013; a. Ord. No. 287-23, § 1, eff. August 2, 2023)

Chapter 1209

ELECTRICAL WIRING AND EQUIPMENT

Sec. 1209-1. Scope.
Sec. 1209-3. Hazardous Existing Electrical Wiring and Equipment.
Sec. 1209-5. Hazard Defined.

Sec. 1209-1. Scope.

This chapter shall apply to hazardous existing electrical wiring and equipment. This chapter does not apply to the installation of electrical wiring or equipment which is covered by the Cincinnati - Ohio building code.
(C.M.C. 1209-1; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 23-01; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; a. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1209-3. Hazardous Existing Electrical Wiring and Equipment.

When the electrical wiring or equipment of an existing building is found to constitute a serious safety hazard, as defined in Section CFPC 1209-5, the fire chief shall order the owner, agent or person in control of such building to correct such hazard.
(C.M.C. 1209-3; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 23-02; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1209-5. Hazard Defined.

For the purposes of this chapter, serious safety hazards shall include, but not be limited to the following:

(a) Overfusing, such as:

  (1) Installation of greater than 15 amp. fuses or circuit breakers on lighting circuits;

  (2) Installation of greater than 20 amp. fuses or circuit breakers on small appliance circuits;

(b) Bridging of required fuses;

(c) Unapproved splices;

(d) Extension cord abuse (extension cords used as permanent wiring);

(e) Unprotected knife switches or other dangerous meter board equipment;

(f) Defective permanent wiring;

(g) Service entrance cable likely to be subject to injury (such as adjacent to public sidewalks, driveways, areaways, and along alleys, etc.);

(h) Defective or broken fixtures, switches, fixture cord, sockets, appliances or other apparatus and devices.

(C.M.C. 1209-5; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 23-03; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Chapter 1211

FIRE EXTINGUISHERS

Sec. 1211-1. Scope.
Sec. 1211-3. General Requirements.
Sec. 1211-5. Responsibility.
Sec. 1211-7. Inspection.
Sec. 1211-9. Maintenance.

Sec. 1211-1. Scope.

This chapter shall apply to the installation, inspection, maintenance and testing of portable fire extinguishers.
(C.M.C. 1211-1; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 29-01; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1211-3. General Requirements.

(a) Portable extinguishers shall be maintained in a fully charged and operable condition, and kept in their designated places at all times when they are not being used.

(b) Extinguishers shall be conspicuously located where they will be readily accessible and immediately available in the event of fire. They shall be located along normal paths of travel and near exits.

(c) Extinguishers shall not be obstructed or obscured from view. In large rooms, and in certain locations where visual obstruction cannot be completely avoided, means shall be provided to conspicuously indicate the location and intended use of extinguishers.

(d) If extinguishers intended for different classes of fire are grouped, their intended use shall be marked conspicuously to ensure choice of the proper extinguisher at the time of a fire.

(e) Extinguishers shall be installed on the hangers or in the brackets supplied, mounted in cabinets, or set on shelves unless the extinguishers are of the wheeled type.

(f) Extinguishers having a gross weight of not more than 40 pounds shall be installed so that the top of the extinguisher is not more than five feet above the floor. Extinguishers having a gross weight of more than 40 pounds (except wheeled types) shall be so installed that the top of the extinguisher is not more than three and one-half feet from the floor.

(g) Extinguishers mounted in cabinets or wall recesses or set on shelves shall be placed in a manner such that the extinguisher operating instructions face outward. The location of such extinguisher shall be conspicuously marked.

(h) Extinguishers installed under conditions where they are subject to severe vibration shall be installed in brackets specifically designed to cope with this vibration.

(i) Extinguishers shall be suitable for use within a temperature range of not less than plus 40 degrees Fahrenheit to plus 120 degrees Fahrenheit. When installed in locations subjected to temperatures outside this range, they shall be placed in an enclosure capable of maintaining the said temperature range.
(C.M.C. 1211-3; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 29-02; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1211-5. Responsibility.

The required inspection, maintenance and testing of required portable fire extinguishers shall be the responsibility of the owner or operator of a property in which such extinguishers are located.

An owner or operator may contract for the required inspection, maintenance and testing of required portable fire extinguishers with a fire extinguisher attendant; however,

such contract shall not relieve the owner or operator from direct responsibility under this code.
(C.M.C. 1211-9; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1211-6 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 29-05; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; a. Ord. No. 479-1972, eff. Nov. 17, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1211-7. Inspection.

(a) Extinguishers shall be inspected monthly to ensure they are in their designated places, to ensure they have not been actuated or tampered with, and to detect any obvious physical damage, corrosion, or other impairments. Any extinguisher showing defects shall be given a complete maintenance check.

(b) Inspection records shall be kept on file on the premises, and shall be made available upon request by the fire chief. Such records shall contain the following information:

(1) Date of inspection;

(2) Which extinguishers were found defective;

(3) The corrective action, if any, that was taken.

(C.M.C. 1211-11; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1211-7 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 29-06; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1211-9. Maintenance.

(a) At regular intervals, not more than one year apart, or when specifically indicated by an inspection, extinguishers shall be thoroughly examined, and shall be recharged, repaired or replaced as needed to insure operability and safety.

(b) Extinguishers removed from the premises to be recharged shall be replaced by spare extinguishers during the period they are gone.

(c) Each extinguisher shall have a durable tag securely attached to show the maintenance or recharge date and the initials or signature of the person who performed this service.
(C.M.C. 1211-13; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1211-9 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 29-07; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Chapter 1213

FIREWORKS*

Sec. 1213-1. Scope.
Sec. 1213-3. Exceptions.
Sec. 1213-5. Operational Requirements.
Sec. 1213-7. Sale and Use of Fireworks.
Sec. 1213-9. Permit Required.
Sec. 1213-11. Application for Permit.
Sec. 1213-13. Shipping and Transportation.
Sec. 1213-15. Display.
Sec. 1213-17. Qualification of Operators.
Sec. 1213-19. Fire Protection.

*(C.M.C. 1213-1 - 1213-13; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984; Sec. 1213-1 - 1213-19 ordained by Ord. No. 469-1987, eff. Nov. 12, 1987)

Cross reference—Dangerous weapons and fireworks, § 708-1.

Sec. 1213-1. Scope.

This chapter shall apply to the display, sale or discharge of fireworks that by definition shall mean and include any composition or devise prepared for the purpose of producing a visible or an audible effect by combustion, deflagration, or detonation, except ordinary matches and except as provided in Section 1213-3 of this Code, and shall include toy pistols, toy cannons, toy canes or toy guns in which explosives are used, the type of balloons which require fire underneath to propel the same, firecrackers, torpedoes, skyrockets, Roman candles, or other devices of like construction and any devices containing any explosive or flammable compound, or any tablets or other device containing any explosive substance.
(Ordained by Ord. No. 469-1987, eff. Dec. 12, 1987)

Sec. 1213-3. Exceptions.

This chapter does not prohibit or apply to the following:

(a) The manufacture, sale, possession, transportation, storage, or use in emergency situations, of pyrotechnic signaling devices and distress signals for marine, aviation, or highway use;

(b) The manufacture, sale, possession, transportation, storage, or use of fusees, or other signals necessary for the safe operation of railroads;

(c) The manufacture, sale, possession, transportation, storage, or use of blank cartridges in connection with theaters or shows, or in connection with athletics as signals or for ceremonial purposes;

(d) The manufacture for, the transportation, storage, possession, or use by, or sale to the Armed Forces of the United States and the militia of this state of pyrotechnic devices;

(e) The manufacture, sale, possession, transportation, storage, or use of toy pistols, toy canes, toy guns, or other devices in which paper or plastic caps containing twenty-five one-hundredths grain or less of explosive material are used, provided that they are constructed so that a hand cannot come into contact with a cap when it is in place for explosion, or apply to the manufacture, sale, possession, transportation, storage, or use of those caps;

(f) The manufacture, sale, possession, transportation, storage, or use of novelties and trick noisemakers, auto burglar alarms, or model rockets and model rocket motors designed, sold, and used for the purpose of propelling recoverable aero models; "novelties and trick noisemakers" include the following items:

(1) Devices that produce a small report intended to surprise the user, including, but not limited to, booby traps, cigarette loads, party poppers, and snappers;

(2) Snakes or glow worms;

(3) Smoke devices;

(4) Trick matches.

(g) The manufacture, sale, possession, transportation, storage, or use of sparklers on a wire stick, as this term is defined in the regulations of the United States Department of Transportation.
(Ordained by Ord. No. 469-1987, eff. Dec. 12, 1987)

Sec. 1213-5. Operational Requirements.

All licensed manufacturers, wholesalers, shippers, and fireworks exhibitors shall comply with the applicable requirements listed in this chapter, the Cincinnati - Ohio Basic Building Code, NFiPA 1123 and NFiPA 1124, relating to operation, recordkeeping and re-

porting, site security, separation distances, heating, lighting, electrical equipment, smoking regulations, fire and explosion prevention, fire protection and emergency procedures, transportation, and operations of fireworks exhibits.
(Ordained by Ord. No. 469-1987, eff. Dec. 12, 1987)

Sec. 1213-7. Sale and Use of Fireworks.

(a) Except as provided in CFPC 1213-1, 1213-3, and 1213-5, it shall be unlawful for any person to possess for sale at retail or wholesale; or to sell at retail or wholesale; or for any person to discharge, ignite or explode any fireworks within the city limits.

(b) Sales From Motor Vehicles: The sale of fireworks from motor vehicles is prohibited.

(c) No person shall use in a theater or public hall what is technically known as fireworks showers, or a mixture containing potassium chlorate and sulphur.

(d) No person shall sell fireworks or sparklers of any kind to a person under 18 years of age.

(e) No person shall advertise fireworks for sale. A sign located on a seller's premises identifying him as a seller of fireworks is not the advertising of fireworks for sale.
(Ordained by Ord. No. 469-1987, eff. Dec. 12, 1987)

Sec. 1213-9. Permit Required.

A permit shall be obtained as prescribed in Sections CFPC 1201-57 and CFPC 1201-65 prior to the sale and use of fireworks.
(Ordained by Ord. No. 469-1987, eff. Dec. 12, 1987)

Sec. 1213-11. Application for Permit.

An application for a permit to sell or use fireworks shall be made in writing to the fire chief, on forms provided for such purposes. Such application shall be made not less than five days prior to the date set for the display, and shall include the following:

(a) The name of the organization sponsoring the display together with the names of persons actually in charge of the display;

(b) The date and time of day when the display is to be held;

(c) The exact location planned for the display;

(d) The name and license of the fireworks exhibitor who is to supervise the discharge of fireworks;

(e) The class of fireworks to be discharged with the number of set pieces, and shells (specify single or multiple-break), including experimental rockets or missiles;

(f) The manner and place of storage of such fireworks prior to and during the display;

(g) A diagram of the grounds on which the display is to be held, showing the point at which the fireworks are to be discharged, the location of all buildings, highways, railroads, or other inhabited structures within 1,000 feet of the discharge and potential landing site; the diagram shall also show the line barriers behind which the audience will be restrained;

(h) Proof that satisfactory liability insurance is carried for all employees of the applicant;

(i) Proof of financial responsibility as evidenced by an insurance policy or indemnity bond in which the city of Cincinnati is named the co-insured and in the amount deemed adequate by the fire chief, but in no case less than $100,000;

(j) Proof of an exhibitor's license;

(k) The name and license number of the fireworks manufacturer or wholesaler who supplied all items in the fireworks exhibition;

(l) The licensed exhibitor shall be responsible for compliance with the provisions under which the fireworks exhibition permit was granted.

(Ordained by Ord. No. 469-1987, eff. Dec. 12, 1987)

Sec. 1213-13. Shipping and Transportation.

General: All fireworks shall be packed, shipped, placarded, and transported in accordance with DOT regulations and NFiPA 1124 listed in Section 1213-5 of the Cincinnati Fire Prevention Code.

(Ordained by Ord. No. 469-1987, eff. Dec. 12, 1987)

Sec. 1213-15. Display.

(a) No permit shall be granted for any display of fireworks where the discharge, failure to fire, faulty firing, or fallout of any fireworks or other objects would endanger persons, buildings, structures, vehicles, forest or brush, or for any display where the point at which fireworks are to be fired is less than 500 feet from any hospital, mental health facility, or infirmary.

(b) Spectators at a display of fireworks shall be restrained behind lines or barriers designated by the fire chief or a representative of the fire chief. Only persons authorized by the fire chief or representative and persons directly in charge of the display will be allowed inside these lines or barriers during the unloading, preparation or firing of fireworks.

(c) All fireworks that fire a projectile shall be so set up that the projectile will go into the air as nearly as possible in a vertical direction, provided that where such fireworks are to be fired beside a lake or other large body of water, they may be directed in such a manner that the falling residue from the deflagration will fall into the body of water.

(d) Any fireworks that remain unfired after the display is concluded shall be immediately disposed of or removed in a manner safe for the particular type of fireworks. The debris from the discharged fireworks shall be properly disposed of by the operator before leaving the premises. The operator, upon the conclusion of the display, shall make a complete and thorough search for any unfired fireworks or pieces which have failed to fire or function and shall dispose of them in a safe manner. Such search shall be instituted immediately following the conclusion of the display, and if the display is conducted at night, also at sunrise the following morning.

(e) No fireworks display shall be held during any windstorm in which the wind reached a velocity of more than 20 miles per hour.

(f) All class B fireworks to be used at a fireworks exhibition shall be stored in an approved magazine until immediately prior to their use. Such magazine shall be located in an area approved by the local fire official and shall meet the table of distance requirements of Section F-2600 of the Cincinnati Fire Prevention Code.

(g) Other than class B fireworks, all fireworks articles and items at places of display shall be stored in a closed wooden box or flame-resistive tarpaulin secure from fire, accidental discharge and theft until they are to be used.

(h) As soon as the fireworks have been delivered to the display site, they shall not be left unattended nor shall they be allowed to become wet.

(Ordained by Ord. No. 469-1987, eff. Dec. 12, 1987; a. Ord. No. 287-23, § 1, eff. August 2, 2023)

Sec. 1213-17. Qualification of Operators.

(a) The person in actual charge of the firing of fireworks shall be able-bodied, not less than 21 years of age, competent for the task and have had not less than one year's experience as an assistant operator of such displays.

(b) There shall be at all times not less than two operators of the display constantly on duty during the discharge, not less than one of whom shall meet the qualifications of paragraph (a) of this section.

(c) Each assistant operator shall be able-bodied, not less than 18 years of age and capable of reading, writing, speaking and understanding the English language.
(Ordained by Ord. No. 469-1987, eff. Dec. 12, 1987)

Sec. 1213-19. Fire Protection.

The suitability, distribution or maintenance of fire protection equipment shall be in accordance with the applicable provisions of NFiPA #10 listed in Appendix A and shall be provided as required by the fire chief.
(Ordained by Ord. No. 469-1987, eff. Dec. 12, 1987)

Chapter 1215

FLOOD PROTECTION FOR FLAMMABLE AND COMBUSTIBLE LIQUID TANKS

Sec. 1215-1. Flood Protection for Tanks.
Sec. 1215-3. Safe Practices.
Sec. 1215-5. Required Data.
Sec. 1215-7. Inspections.

Sec. 1215-1. Flood Protection for Tanks.

Sections 1215-1 through 1215-7 shall apply to all aboveground and underground tanks used for the storage of flammable or combustible liquids, where such tanks are subject to floodwater from the Ohio River or its tributaries at any stage up to and including an 83-foot stage.

The provisions of such sections are the minimum precautions which are necessary to reasonably secure such tanks, which are endangered by water, from injury, spillage or loss of liquid. Additional safety measures may be required by the fire chief as conditions warrant.

(C.M.C. 1215-7; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1215-1 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 33-24; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1215-3. Safe Practices.

(A) Except as provided in paragraph (D) of this section, all tanks used for the storage of flammable or combustible liquids shall be designed, fabricated, installed and anchored as required by the Cincinnati - Ohio Building Code.

(B) Except as provided in paragraph (D) of this section, all stationary aboveground tanks and all underground tanks shall be completely filled with water, gasoline or other approved liquid and closed before the river water in that vicinity reaches an elevation which will endanger the stability or safety of the tank. Such vicinity and elevation shall be determined by the fire chief. The preparation and filling of such tanks shall be in conformity with the following:

(1) The rate of filling shall be at least equal to the rate of rise of the floodwaters or the established average potential rate of rise;

(2) Sufficient fuel to operate the water or produce pumps shall be available at all times to insure adequate power to fill all tankage;

(3) All valves on connecting pipelines shall be closed and locked in closed position when loading has been completed;

(4) All vent pipes and discharge lines, where in danger of floating objects, shall be disconnected and capped at the ground level or lower.

(C) Except as provided in paragraph (D) of this section, all floating tanks shall be completely filled with water, gasoline or other approved liquid before the river water in that vicinity reaches an elevation which will endanger the stability or safety of the tanks. Such vicinity and elevation shall be determined by the fire chief. The preparation and filling of such tanks shall be in conformity with the following:

(1) The rate of filling shall be at least equal to the rise of the floodwaters or the established average potential rate of rise;

(2) Sufficient fuel to operate the water or produce pumps shall be available at all times to insure adequate power to all tankage;

(3) Where structural guides are provided for the protection of floating tanks, all rigid connections between tanks and pipelines shall be disconnected and blanked off or blinded before the floodwaters reach the bottom of the tank, unless control valves and their connections to the tank are of a type designed to prevent breakage between the valve and the tank;

(4) All valves attached to tanks other than those used in connection with water-loading operations shall be closed and locked;

(5) If a tank is equipped with a swing line, the swing pipe shall be raised to and secured at its highest position.

(D) Except as provided in paragraph (E) of this section, the provisions of Sections CFPC 1215-1 through CFPC 1215-7 shall not apply to the area behind the barrier dam which is protected from a flood of the Ohio River between a 52-foot and an 83-foot stage.

(E) In areas behind the barrier dam, where the fire chief determines that such tanks may be subject to flash floods and in danger of the forces due to such flash floods, tanks shall be protected in the manner required by Sections CFPC 1215-1 through CFPC 1215-7.

(C.M.C. 1215-9; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1215-3 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 33-25; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1215-5. Required Data.

The owner or operator of a tank or tanks, subject to the provisions of this title, shall be required to furnish to the fire chief all data necessary for determining compliance with the provisions of Sections CFPC 1215-1 through CFPC 1215-7.

(C.M.C. 1215-11; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1215-5 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 33-26; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1215-7. Inspections.

The fire chief shall make periodic inspections of all plants where the storage of flammable or combustible liquids is such as to require compliance with the requirements of this code, in order to assure the following:

(a) That all flammable or combustible liquid storage tanks are in compliance with these requirements and so maintained;

(b) That detailed printed instructions of what to do in flood emergencies are properly posted;

(c) That station operators and other employees depended upon to carry out such instructions are thoroughly informed as to the locations and operation of such valves and other equipment necessary to effect the intent of these requirements.

(C.M.C. 1215-13; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1215-7 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 33-27; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Chapter 1217

PARADE FLOATS

Sec. 1217-1. Scope.
Sec. 1217-3. Construction.
Sec. 1217-5. Operation.
Sec. 1217-7. Smoking and the Use of Open Flame.
Sec. 1217-9. Fire Protection.

Sec. 1217-1. Scope.

This chapter shall apply to any parade float operated upon the public streets of the city of Cincinnati.
(C.M.C. 1217-1; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 37-01; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1217-3. Construction.

(A) The decorative skirt shall be kept not less than two inches above the surface of the street.

(B) All material used in the construction of a parade float shall meet the "Field Test: Match Flame Test" as described in NFPA Standard No. 701, title "Fire Tests for Flame-Resistant Textiles and Films," of date designated in Appendix A.

(C) A parade float shall be so constructed that no part of the decorations can come in contact with or is directly exposed to any part of the vehicle's exhaust system.

(D) Any exhaust systems that extend beyond the decoration shall be covered with noncombustible material.

(E) A parade float shall be so constructed that the driver of the vehicle can easily escape from the driver's position in case of fire.

(F) The driver cubicle shall be properly ventilated.
(C.M.C. 1217-3; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 37-02; ordained by Ord. No. 361-1975, eff. July 2, 1975; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Analogous to CFPC 37-04; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 361-1975, eff. July 2, 1975.

Sec. 1217-5. Operation.

A parade float shall be properly serviced for gasoline, oil, water, battery and tire pressure before entering any parade. Auxiliary supplies of gasoline, oil or other fuel shall not be carried on the parade float.
(C.M.C. 1217-5; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 37-03; ordained by Ord. No. 361-1975, eff. July 2, 1975; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Analogous to CFPC 37-05; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 361-1975, eff. July 2, 1975.

Sec. 1217-7. Smoking and the Use of Open Flame.

Smoking and the use of open flame shall not be permitted on any parade float.
(C.M.C. 1217-7; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained by Ord. No. 386-1984, eff. Sept. 6, 1984)

Analogous to CFPC 37-04; ordained by Ord. No. 361-1975, eff. July 2, 1975; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Analogous to CFPC 37-06; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; a. Ord. No. 361-1975, eff. July 2, 1975.

Sec. 1217-9. Fire Protection.

The suitability, distribution or maintenance of fire protection equipment shall be in accordance with the applicable provisions of NFiPA #10 listed in Appendix A [of the BOCA Code] and the following:

A parade float shall be equipped with not less than one Type 2A portable fire extinguisher, which shall be readily accessible in case of fire.
(C.M.C. 1217-9; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 37-05; ordained by Ord. No. 361-1975, eff. July 2, 1975; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Analogous to CFPC 37-07; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 361-1975, eff. July 2, 1975.

Chapter 1219

MISCELLANEOUS REGULATIONS

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Sec. 1219-1. Scope.

This chapter shall apply to conditions not otherwise regulated in this code.
(C.M.C. 1221-2; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1219-1 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1219-3. Material Subject to Spontaneous Ignition.

No person shall deposit ashes, smouldering coal or embers, greasy or oily substances or other materials liable to create spontaneous ignition, within 10 feet of any wooden or plastered wall, partition, fence, floor, sidewalk, lumber, hay, shavings, rubbish or other combustible material, except in metallic or other noncombustible receptacles. All such receptacles, unless resting on the ground or on a noncombustible floor, shall be placed on noncombustible stands, and in every case, shall be kept at least two feet away from any combustible wall or partition.
(C.M.C. 1221-3; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1219-3 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 53-02; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1219-5. Accumulated Waste and Waste Receptacles.

No person shall permit to remain in any part of a building or building premises, or upon any roof, or in any court, yard, vacant lot or open space, any accumulation of waste-paper, ashes, oil rags, waste rags, excelsior, hay, grass, straw, weeds, litter, or combustible waste or rubbish of any kind.

Approved fire-resistive receptacles shall be provided for ashes, oil rags, waste rags, excelsior or material of a similar hazardous nature.

All weeds, grass, vines or other growth, liable to be fired, or otherwise constituting a fire danger to property, shall be cut down and removed by the owner or occupant of the property on which they are found.
(C.M.C. 1221-5; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1219-5 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 53-03; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1219-7. Baled Material.

Every person making, using, storing or having charge or control of any shavings, excelsior, rubbish, sacks, bags, litter, hay, straw, or other combustible material shall, at the close of each day, cause all such material which is not compactly baled and stacked in an orderly manner, to be removed from the premises or stored in suitable vaults or in metal-lined covered receptacles or bins. Suitable baling presses shall be installed in stores, apartment buildings, factories and similar places where accumulations of paper and waste materials are not removed at least every second day.
(C.M.C. 1221-7; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1219-7 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 53-04; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1219-9. Combustible Containers.

The storage of empty cases, boxes, barrels or other similar combustible containers is prohibited; provided that a manufacturing or other establishment may store sufficient amounts to properly carry on its operations. Such storage shall be orderly and so located as not to obstruct exits from the building. Outside storage piles of packing cases, boxes, barrels or other similar combustible containers shall be not more than 20 feet in height

and shall be located at least 50 feet from the nearest building. All such storage shall be compact and orderly.
(C.M.C. 1221-9; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1219-9 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 53-05; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1219-11. Flameproof Decorations.

No person, firm, association or corporation shall buy, sell, offer for sale, or use in any manner any electrical equipment or device, except electric light bulbs of any kind, used or intended for use as decorations or illumination for Christmas trees, unless such equipment or device bears the label or listing of any nationally known and accepted testing laboratory, approved by the fire chief, nor shall any other material be used for the decoration or embellishment of any real or simulated Christmas tree or any other decorative device used during the Christmas season, if such material is proven not to be flame resistant.

Cotton batting, straw, dry vines, leaves, trees or other highly flammable materials shall not be used for decoration or other purposes in show windows, stores or other public occupancies unless rendered flameproof; provided, however, that nothing in this section shall be held to prohibit the display of goods permitted and offered for sale in the store. Electric light bulbs in stores or public halls shall not be decorated with paper or other combustible materials unless such materials shall have been rendered flameproof.
(C.M.C. 1221-11; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1219-11 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 53-06; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1219-13. Trap Doors.

All trap doors, not of automatic operation, in any factory building or buildings used for storage shall be closed at the completion of the business of each day.
(C.M.C. 1221-13; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1219-13 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 53-07; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1219-15. Fire Doors, Shutters and Windows.

All required fire doors, shutters and windows shall be kept in good repair and ready for use at all times. All automatic and self-closing devices and other hardware for required fire doors or other opening protectives shall be maintained in good working condition.

Space around required fire doors, shutters and windows shall be kept free from obstruction which would interfere with their operation. No object shall be placed, and no restraining devices shall be installed so as to interfere with the proper functioning of a required fire door or other opening protective.
(C.M.C. 1221-15; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1219-15 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 53-08; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; a. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1219-17. Misuse of Fire Protection Equipment.

No person shall use any fire hose, sprinkler system, fire extinguishers or other fire protection equipment for other than fire prevention purposes.
(C.M.C. 1221-17; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1219-17 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 53-09; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1219-19. Disposal of Flammable, Combustible or Explosive Material.

No explosive or flammable or combustible liquids, such as automobile crank case drainage or other flammable waste products, or products that may produce explosive gases shall be permitted to drain into a city sewer, directly or indirectly.
(C.M.C. 1221-19; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1219-19 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 53-10; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1219-21. Causing Fire Through Negligence.

No person shall set fire to, or cause the burning of any structure, building, building contents, premises, or any part thereof by any means whatsoever, through carelessness, neglect or negligence in such a manner as to endanger the safety of any person or property.
(C.M.C. 1221-21; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1219-21 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 53-11; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1219-23. Charcoal.

Charcoal shall be stored in a dry, well-ventilated place and shall be examined periodically for evidence of heating. Adequate aisle space shall be provided for firefighting access.
(C.M.C. 1221-23; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1219-23 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 53-12; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1219-25. Chimneys and Fireplaces.

(A) All chimneys shall be examined periodically from the top of the building to the bottom, including attic and false attic spaces, and shall be maintained as follows:

(1) Missing bricks and mortar shall be replaced as necessary;

(2) Missing flue hole covers shall be replaced or the flue hole shall be closed in an approved manner;

(3) Soot shall be removed at regular intervals.

(B) All fireplaces burning solid fuel shall be provided with a protective screen.
(C.M.C. 1221-25; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1219-25 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 53-13; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1219-27. Spark Arrestors.

An approved spark arrestor shall be provided on all fireplace chimneys utilizing solid fuel and if the roof is of wood shingle construction.

Commercial and industrial type incinerators used for burning of rubbish or other readily combustible solid waste material and flue-fed incinerators shall be provided with

approved spark arrestors or other effective means for arresting sparks and fly particles.
(C.M.C. 1221-27; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1219-27 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 53-14; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1219-29. Drip Pans.

Whenever there is likelihood that oil or similar material may drip and saturate any floor, approved drip pans shall be provided.
(C.M.C. 1221-29; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1219-29 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 53-15; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1219-31. Air Conditioning.

(A) Storage shall not be permitted in the following areas:

(1) In any room or space specifically designed or used primarily for the housing of central air conditioning equipment;

(2) Adjacent to any intake of a central air conditioning system.

(B) Rubbish and litter shall not be permitted to accumulate on grills and screens of air conditioning equipment. Filters shall be cleaned and removed when covered with dust, lint, oil or grease accumulation;

(C) Sludge shall be periodically removed from all large oil bath type air conditioning systems.
(C.M.C. 1221-31; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1219-31 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 53-16; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1219-33. Private and Municipal Fire Alarm Boxes.

Access to all fire alarm boxes shall not be obstructed in any manner. All private fire alarm boxes shall be maintained in good operating condition.
(C.M.C. 1221-33; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1219-33 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 53-17; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1219-35. Residential Storage.

All storage shall be orderly, and there shall not be any appreciable accumulation of rubbish.

Combustible storage shall be prohibited under stairs having open risers or treads.

Combustible materials shall not be stored within 18 inches of furnaces and water heaters or under flue pipes.

No storage shall be permitted under gas or electric meters.
(C.M.C. 1221-35; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1219-35 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 53-18; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1219-37. Birds' Nests.

Birds' nests shall not be permitted to accumulate. Any opening where birds can enter a building shall be covered with one-fourth inch (No. 6) mesh galvanized wire.
(C.M.C. 1221-37; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1219-37 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 53-19; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1219-39. Blankets.

A wool blanket shall be accessible at all times in domestic science cooking rooms in schools.
(C.M.C. 1221-39; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1219-39 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 53-20; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1219-41. Exhaust Fans.

All exhaust fans shall be maintained free of grease, dust, oil and lint.
(C.M.C. 1221-41; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1219-41 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 53-21; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1219-43. Fire Escapes.

All entrances to and exits from fire escapes shall be maintained in a serviceable condition and shall be kept free of any obstruction.

No material, object or device shall be placed or stored on any fire escape.
(C.M.C. 1221-43; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1219-43 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 53-22; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1219-45. Gas Shut-off Valves.

All gas appliances shall be provided with shut-off valves. Such valves shall be located between the appliance and the source of supply, as close as practicable to the vertical rise of the gas supply line and at a convenient point of general accessibility.

Multiple-family buildings with adjacent gas supply risers shall have the gas shutoff valve for each apartment identified by a plainly marked metal tag.
(C.M.C. 1221-45; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1219-45 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 53-23; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1219-47. Hotplates.

Any hotplate closer than 12 inches to any combustible material shall have a metal shield with a two-inch air space between it and the combustible material. This shield shall extend six inches beyond the hotplate on both sides and shall extend 12 inches above the level of the hotplate. Any combustible material beneath a hotplate shall be protected by an insulated noncombustible sheet covered with metal extending six inches from both sides and front. In the rear it shall extend to the heat deflector.

Shelving shall not be permitted less than a vertical distance of 36 inches over any hotplate.
(C.M.C. 1221-47; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1219-47 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 53-24; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1219-49. Lamp shades.

Electric light bulbs shall be maintained free from direct contact with any combustible material, including combustible lamp shades.
(C.M.C. 1221-49; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1219-49 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 53-25; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1219-51. Oil Impregnated Mops.

Oil impregnated mops when not in use shall be removed from the handle and kept in a metal container with a close-fitting lid.
(C.M.C. 1221-51; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1219-51 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 53-26; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1219-53. Loading Platforms.

The underside of all loading platforms shall be permanently closed or protected by wire screen of not more than one-half-inch mesh to prevent rubbish accumulation.
(C.M.C. 1221-53; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1219-53 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 53-27; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1219-55. Roof Hazards.

The roof discharge point of exhaust and blow-pipe systems and cyclones shall be maintained free of sawdust, refuse or other combustible material.
(C.M.C. 1221-55; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1219-55 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 53-28; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1219-57. Restrictions on Parking Motor Vehicles.

The fire chief shall restrict or prohibit motor vehicles from parking in any part of any yard, court, parking lot or private driveway where such parking creates or tends to create a fire hazard to life or property or where such parking will interfere with the free movement of fire apparatus.
(C.M.C. 1221-57; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1219-57 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 53-29; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1219-59. Combustible Waste During Building Construction or Demolition.

No debris, trash or other combustible waste matter which creates or tends to create a fire hazard shall be permitted to accumulate in, or about any building or other structure in the process of construction or demolition.
(C.M.C. 1221-59; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1219-59 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 53-30; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1219-61. Shaftways.

(A) Except as provided in Section 1219-61(b) of this section, every door or window in a building used for manufacturing purposes or for storage, which opens directly onto any hoistway or other similar vertical means of communication between two or more floors in such building, shall be plainly marked with the word "Shaftway" in red letters not less than six inches high on a white background. Such a warning sign shall be placed as follows:

(1) In the case of windows - so as to be easily discernible from the outside of the building;

(2) In the case of doors - so as to be easily discernible to anyone approaching the shaftway from the interior of the building.

(B) If the construction of the partition surrounding the shaftway is of such distinctive nature as to make its purpose evident at a glance, the warning sign shall not be required for doors opening onto a shaftway from the interior of the building.
(C.M.C. 1221-61; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1219-61 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 53-31; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1219-63. Inspection, Safety Provisions.

(A) If, as a result of an inspection, the fire chief shall find the presence, arrangement or deposit of any substance or device which may be a fire hazard, or which may create danger in case of fire, or which may cause personal injury or loss of life to any person on or in any premises, building or structure, or which may interfere with the fire force in the exercise of its duty, the fire chief shall order such removal, rearrangement or redistribution of such substances and devices as will afford reasonable protection against fire.

(B) If, as a result of an inspection, the fire chief shall find inadequate fire protection appliances, the fire chief shall order such additional fire protection appliances or such correction of existing appliances as will afford reasonable protection against fire.
(C.M.C. 1221-63; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1219-63 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 53-32; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1219-65. Location of Exits.

The owner or operator of any hotel or motel of more than one story shall post on the back of the entrance door to each guest room a floor plan of the location of the guest room and the directions marked in red to the exits from the building.
(CFPC 25-04; r. Ord. No. 364-1979, eff. Sept. 6, 1979; reordained by Ord. No. 444-1979, eff. Oct. 17, 1979; repealed and reordained as Sec. 1219-65 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1219-67. Interior Stairway Doors.

All interior exit stairway doors in required exit stairways shall be openable from both sides without the use of a key or special knowledge or effort at all times the building or area served is occupied.

Exceptions:

(a) Exit stairway discharge doors shall be openable from the egress side and may be locked from the opposite side;

(b) Doors arranged in accordance with Section F-502.2 [of the BOCA Code].

Note: BOCA F-502.1 is not adopted as part of the Cincinnati Fire Prevention Code.
(Ordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1219-69. Space Requirements.

No more than one family may occupy a dwelling unit.

For purposes of this section, "dwelling unit" shall mean a suite of rooms providing complete living facilities for one family, including permanent provisions for living, dining, cooking, sleeping and sanitation. And, for purposes of this section, "family" shall mean:

(1) An individual or any number of individuals related by blood or marriage;

(2) A group of not more than five individuals not so related;

(3) A group of not more than ten members of a religious order who live together in a single dwelling unit; or

(4) A group of not more than ten adults, the majority of whom are 60 years of age or older, who live together in a single dwelling unit, are all capable of self-preservation without assistance in the event of an emergency, and do not need to live in a supervised environment.

(Ordained by Emer. Ord. No. 296-2013, § 1, eff. Sept. 25, 2013)

Sec. 1219-71. Escape and Rescue from Sleeping Rooms.

For each sleeping room below the fourth story, at least one window or exterior door shall remain operable and unobstructed for emergency escape and rescue. Bars, grills, or screens placed over the opening shall be releasable or removable from the inside without the use of a key, tool, or force greater than that which is required for normal operation of a window. If there is more than one window or door in a sleeping room, the largest and most accessible opening shall be designated for escape and rescue. Window unit air conditioners may not be installed in a designated escape and rescue window. For purposes of this section, "sleeping room" shall mean a room used primarily for sleeping by one or more persons.

(Ordained by Emer. Ord. No. 296-2013, § 1, eff. Sept. 25, 2013)

Sec. 1219-73. Self-Closing Doors.

(a) The owner of every multiple dwelling which is required to be equipped with self-closing doors pursuant to Section 1117-15.8, or any other applicable law, shall keep and maintain such doors in good working condition.

(b) No object shall be placed and no restraining devices shall be installed so as to interfere with the proper functioning of a required self-closing door.

(Ordained by Ord. No. 283-2022, § 3, eff. Sept. 14, 2022)

Editor's note—That those multiple dwelling structures existing at the time of the adoption of Ordinance No. 283-2022 that are not in strict compliance with the provisions and requirements of this ordinance shall have up to and including August 1, 2023 to comply with the provisions and requirements set forth herein.

Chapter 1221

PIERS, WHARVES AND OTHER MARINE TERMINALS

Sec. 1221-1. Scope.
Sec. 1221-3. Water Supply for Fire Protection.
Sec. 1221-5. Housekeeping.
Sec. 1221-7. Smoking and the Use of Open Flame.
Sec. 1221-9. Small Craft Fueling.

Sec. 1221-1. Scope.

This chapter shall apply to piers and wharves and other marine terminals, including special waterfront structures such as ore docks, coal piers, grain terminals or piers on which flammable liquids are handled in bulk. (C.M.C. 1223-1; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1221-1 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 59-01; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1221-3. Water Supply for Fire Protection.

There shall be provided on or immediately adjacent to every pier, wharf or other marine terminal, water supply facilities for use by the fire division for extinguishing large fires in the structure and its contents. The water supply facilities shall conform to the following:

(a) The capacity of water system shall be sufficient to deliver the quantity determined by the fire chief;

(b) Fire flow shall be designed for not less than four hours' duration;

(c) Pipes, pumps and other facilities shall be designed to deliver the required rate of flow;

(d) Hydrants or hose outlets shall be of sufficient number and adequately spaced to enable application of water to the structure without excessively long hose lines.

(C.M.C. 1223-3; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1221-3 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 59-02; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1221-5. Housekeeping.

(A) Piers, wharves and other marine terminals shall be kept free of rubbish and waste materials. Such materials shall be kept in metal containers which shall be removed at sufficiently frequent intervals to prevent dangerous accumulations.

(B) Ashes shall be wet down in the ash pit immediately after being drawn from the fire and placed in metal cans which shall be removed as quickly as possible.

(C) Smoke pipes shall be thoroughly cleaned not less than once each year.

(D) Trusses, girders and other structural members shall be cleaned regularly to eliminate accumulations of flammable dust.

(E) Sampling of merchandise by consignees shall be restricted to a minimum and shall be carried on under the supervision of a competent representative of the pier, wharf or marine terminal operator. Care shall be taken to see that all packages are securely closed after sampling and that the material sampled has not been disturbed in a way that may cause fire. Refuse caused by sampling shall be removed immediately.

(F) Approved metal waste cans with self-closing covers shall be provided in all map rooms, rigging rooms, garages, at electrical motors, winches, engines, and other locations where there is likely to be an accumulation of oily waste. The waste in these cans shall be removed daily.

(C.M.C. 1223-5; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1221-5 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 59-03; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1221-7. Smoking and the Use of Open Flame.

Smoking and the use of open flame shall conform to the applicable provisions of Chapter 1225 and the following:

(a) Smoking shall be strictly prohibited on any portion of the pier, wharf,

marine terminal or in the bulkhead shed except in locations specifically designated as smoking areas and approved by the fire chief;

(b) "NO SMOKING" signs shall be displayed throughout prohibited areas;

(c) All fires, open flames or electric apparatus subject to sparking shall be extinguished or cut off before any loading or unloading operations of flammable liquids are started, except that fires under the power boilers may be maintained in order to supply the necessary and required power to properly operate the pumps and firefighting equipment;

(d) Where necessary to conduct operations at night, lights shall be of the electric incandescent type with bulbs protected by wire cages. Portable lights shall be of approved safety type;

(e) Not less than one deck officer, one engineer and a terminal representative shall be on duty at all times during the loading and unloading operations of vessels.

(C.M.C. 1223-7; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1221-7 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 59-04; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1221-9. Small Craft Fueling.

Fueling stations for bunker fuel oil and gasoline fueling stations for small craft shall be located so as not to create any serious exposure to other property and shall be safely operated in accordance with the applicable provisions of this code.

(C.M.C. 1223-9; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1221-9 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 59-05; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Chapter 1223

SHIPS, BARGES OR VESSELS

Sec. 1223-1. Scope.
Sec. 1223-3. Applicable Regulations.

Sec. 1223-1. Scope.

This chapter shall apply to all ships, barges, floating docks, or other vessels which are permanently moored or aground and are occupied for purposes other than navigation.
(C.M.C. 1227-1; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1223-1 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 65-01; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1223-3. Applicable Regulations.

All ships, barges, floating docks and other vessels which are permanently moored or aground shall be subject to the requirements of this code applicable to buildings, structures or sites of similar occupancy.
(C.M.C. 1227-3; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1223-3 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 66-02; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Chapter 1225

SMOKING AND USE OF OPEN FLAME

Sec. 1225-1. Smoking and Use of Open Flame Prohibited.
Sec. 1225-3. Use of Open Flame Permitted.
Sec. 1225-5. No Smoking Signs.
Sec. 1225-7. Removal of No Smoking Signs.
Sec. 1225-9. General Prohibitions.

Sec. 1225-1. Smoking and Use of Open Flame Prohibited.

No person shall smoke or use an open flame in the following places or permit smoking or use of an open flame:

(a) Where smoking or use of an open flame is prohibited by the Cincinnati fire prevention code;

(b) Where conditions are such as to make smoking or use of an open flame a hazard;

(c) In any retail store designed and arranged to accommodate more than 300 persons or in which more than 25 persons are employed, except as follows:

(1) Specifically designated smoking and rest rooms where approved by the fire chief;

(2) Restaurants, executive offices or beauty parlors located in retail stores;

(d) In an elevator;

(e) In or around any aircraft hangar, except in offices, waiting rooms or areas where approved by the fire chief;

(f) In a hospital, sanitarium, rest home or other institutional building providing care for three or more persons, except as follows:

(1) Patients classified as responsible may smoke in bed under the proper supervision of attendants;

(2) Visitors, employees and patients may smoke in solariums and other areas specifically established for that purpose where approved by the fire chief;

(g) In any building, portion thereof, or any open area, where quantities of flammable or combustible materials are present in amounts which constitute a hazard;

(h) In any building, portion thereof, or any open area where a serious life safety hazard exists;

(i) In any building, barn, vessel, boat or other place where highly flammable, highly combustible, or explosive materials are present;

(j) In any place where the fire chief orders the posting of no smoking signs or the use of audio and/or visual notification that smoking or use of an open flame is prohibited.

(C.M.C. 1229-1; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained by Ord. No. 252-1981, eff. June 24, 1981; repealed and reordained as Sec. 1225-1 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 67-01; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1225-3. Use of Open Flame Permitted.

Notwithstanding the provisions of Section CFPC 1225-1, a person may, upon obtaining the approval of the fire chief or person designated by the fire chief, use or allow to be used an open flame in connection with any public meeting or gathering for the purposes of deliberation, worship, entertainment, amusement, instruction, education, recreation, awaiting transportation or similar purpose in places of public assemblage such as churches, arenas, stadiums, schools, restaurants, eating establishments, cocktail lounges and bars.

(C.M.C. 1229-3; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained by Ord. No. 252-1981, eff. June 24, 1981; repealed and reordained as Sec. 1225-3 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 67-02; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1225-5. No Smoking Signs.

The fire chief or person designated by the fire chief may order the owner or occupant of any place where the fire chief determines that conditions are such as to make smoking or use of an open flame a hazard or where smoking or the use of an open flame is prohibited to post no smoking signs or give audio and/or visual notification that smoking and use of an open flame is prohibited therein. The content, lettering, size, color and location of the no smoking signs or audio and/or visual notification shall be subject to the approval of the fire chief or person designated by the fire chief.
(C.M.C. 1229-5; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained by Ord. No. 262-1981, eff. June 24, 1981; repealed and reordained as Sec. 1225-5 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 67-03; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1225-7. Removal of No Smoking Signs.

No person shall remove, destroy or obscure any no smoking sign which is required by the fire chief.
(C.M.C. 1229-7; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained by Ord. No. 252-1981, eff. June 24, 1981; repealed and reordained as Sec. 1225-7 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 67-04; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1225-9. General Prohibitions.

(A) No person shall violate any provision or fail to conform to any of the provisions of this code or fail to obey any order of the fire chief.

(B) No person shall solicit, procure, facilitate or aid or abet another to violate any provision of this code or of any certificate, order or permit issued thereunder.
(Ordained as Sec. 1229-9 by Ord. No. 252-1981, eff. June 24, 1981; repealed and reordained as Sec. 1225-9 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Chapter 1227

STORAGE, GENERAL REQUIREMENTS

Sec. 1227-1. Scope.
Sec. 1227-3. Aisles and Access for Firefighting.
Sec. 1227-5. Storage Arrangement.
Sec. 1227-7. Smoking and the Use of Open Flame.
Sec. 1227-9. Fire Protection.
Sec. 1227-11. Outdoor Storage.
Sec. 1227-13. Site.
Sec. 1227-15. Material Piling.
Sec. 1227-17. Gates Required in Fences.
Sec. 1227-19. Yard Maintenance and Operations.
Sec. 1227-21. Special Requirements for Type IV Storage.
Sec. 1227-23. Smoking and the Use of Open Flame.
Sec. 1227-25. Fire Protection.

Sec. 1227-1. Scope.

(A) This chapter shall apply to the storage of commodities and materials for which specific provisions are not made elsewhere in this code. Such storage shall be classified as follows:

(1) Type I storage is that in which combustible commodities or noncombustible commodities involving combustible packaging or storage aids (shelves, pallets, bins, etc.) are stored over 15 feet but not more than 21 feet high in solid piles, or 12 feet but not more than 21 feet high in piles that contain horizontal channels. Minor quantities of commodities of hazard greater than ordinary combustibles may be included without affecting this classification;

(2) Type II storage is that in which combustible commodities involving combustible packaging or storage aids are stored not over 15 feet high in solid piles or not over 12 feet high in piles that contain horizontal channels. Minor quantities of commodities of hazard greater than ordinary combustibles may be included without affecting this general classification;

(3) Type III storage is that in which the stored commodities, packaging and storage aids are noncombustible or contain only a small concentration of combustibles which are incapable of producing a fire that would cause appreciable damage to the commodity stored or to noncombustible wall, floor or roof construction. Ordinary combustible commodities in completely sealed noncombustible containers may qualify in this chapter subject to the approval of the fire chief. General commodities storage that is subject to frequent changing and storage of combustible packaging and storage aids is excluded from this category;

(4) Type IV storage is that in which the stored commodity is coal.

(B) This chapter shall not apply to the bulk storage of grain or similar commodities or to refrigerated warehouses.

(C.M.C. 1235-1; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1227-1 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 73-01; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1227-3. Aisles and Access for Firefighting.

Aisles shall be so spaced and of such width as to permit easy access to all portions of the premises for firefighting, and unless provided for elsewhere in this code shall conform to the following:

(a) Aisles shall be arranged to permit the removal or transfer of stored material;

(b) Alleyways shall be not less than five feet wide;

(c) Cross aisles shall be at least three feet wide and shall be located every 20 feet or terminate at a required door, window or fire access panel. The exterior sills of such windows or the exterior of such access panels shall be painted white.

(C.M.C. 1235-3; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1227-3 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 73-02; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1227-5. Storage Arrangement.

(a) The arrangement of Types I, II and III storage shall conform to the following:

(1) All commodities shall be stored, handled and piled with due regard to

their fire characteristics. Any commodity which may be hazardous when stored in combination with another commodity shall be stored so that it cannot come in contact with any other commodity;

(2) The storage of water absorbent commodities shall take into account the swelling characteristics and added weight of water which can be absorbed during firefighting operations;

(3) Commodities shall be piled so as to minimize the spread of fire internally and to permit convenient access for firefighting, salvage and removal of portions of storage. Stable piling shall be maintained at all times;

(4) Combustible contents shall not be piled in contact with any structural column that is not of fire-resistive construction;

(5) Commodities that are susceptible to water damage shall be stored on skids, dunnage, pallets or elevated platforms in order to maintain not less than four inches clearance from the floor;

(6) Storage piles shall be kept as narrow as practicable consistent with operational requirements, and in no case shall a pile exceed 15,000 square feet;

(7) Storage of materials shall be at least 18 inches from lights and heating units;

(8) Commodities shall not be stored within 36 inches of a fire-door opening;

(9) The clearance between any sprinkler head and the top of storage shall be maintained as follows:

(a) Not less than 36 inches for Types I and II storage;

(b) Not less than 18 inches for Type III storage.

(10) The storage of empty combustible pallets shall conform to the following:

(a) In Type I and Type II storage, piles of empty combustible pallets shall not exceed 25 feet in width and 2,000 square feet in area. The height of such piles shall not exceed eight feet. Aisle width between such piles shall not be less than eight feet.

(b) In Type III storage, combustible packaging or storage aids is prohibited.

(B) The arrangement of Type IV storage shall conform to the following:

(1) The storage of coal inside of buildings, excluding coal tipples, shall be in fire-resistive enclosures as prescribed by the Cincinnati - Ohio Building Code, except that such fire-resistive enclosures shall not be required when such storage conforms to any of the following:

(a) The rooms or bins do not exceed 144 square feet in area, and wherein coal is stored not more than six feet in depth;

(b) Not more than 20 tons are stored.

(2) Storage shall be located not closer than two feet from any furnace, steam or hot water heating boiler, or other heating device;

(3) Where more than 100 tons of coal containing slack is stored and the pile exceeds 10 feet in height, the following storage shall conform to the following:

(a) Ventilating pipes or ducts not less than three inches in diameter shall be provided at not less than 10 feet on centers and shall extend from the top to the bottom of the pile.

(b) Daily temperature readings shall be made by lowering thermometers in the ventilating pipes or ducts. The indication of a temperature of more than 180 degrees F. shall be sufficient cause for either the removal of the coal or its submersion in water.

(4) Where 500 tons or more of coal are stored, or where the pile height exceeds 20 feet, construction of the bin shall be such that the contents may be submerged in water to within not less than five feet of the top of the storage. Where submersion is required, adequate drainage shall be provided.

(C.M.C. 1235-5; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1227-5 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 73-03; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1227-7. Smoking and the Use of Open Flame.

Smoking and the use of open flame shall conform to the applicable provisions of Chapter 1225 and shall be prohibited except in locations designated as smoking areas by the fire chief.

(C.M.C. 1235-7; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1227-7 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 73-04; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1227-9. Fire Protection.

The suitability, distribution or maintenance of fire protection equipment shall be in accordance with the applicable provisions of Section F-407.0 and NFiPA #10 listed in Appendix A [of the BOCA Code], and portable fire extinguishers shall be provided in such quantities and types as are needed for the hazards of operation and storage, as determined by the fire chief.

(C.M.C. 1235-9; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1227-7 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 73-05; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1227-11. Outdoor Storage.

Sections 1227-11 through 1227-25 shall apply to all classes of storage unless specifically noted otherwise.

(C.M.C. 1235-11; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1227-11 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 73-06; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1227-13. Site.

A site for outdoor storage shall be located outside the floodplain and shall be provided with the following:

(a) Adequate water systems with hydrants suitably located for protection of the storage;

(b) Adequate all-weather roads for fire department apparatus response;

(c) Sufficient clear space from buildings of combustible construction or from other combustible storage which might constitute an exposure hazard;

(d) Adequate clearance space between storage piles and any highways or railroads.

(C.M.C. 1236-13; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1227-13 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 73-07; ordained by Ord. No. 464-1971, eff Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1227-15. Material Piling.

Material shall be piled in conformance with the following:

(a) Aisles not less than 10 feet in width shall be maintained between the following:

(1) Individual piles;

(2) Piles and buildings;

(3) Piles and the boundary line of the storage site.

(b) Sufficient driveways having a width of not less than 18 feet shall be provided to permit the travel of fire equipment to all portions of the storage area.

(C.M.C. 1235-15; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1227-16 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 73-08; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1227-17. Gates Required in Fences.

Where fences or other barriers are provided around outside storage, an adequate number of gates shall be provided so as to permit ready access of fire apparatus.

(C.M.C. 1235-17; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1227-17 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 73-09; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1227-19. Yard Maintenance and Operations.

(A) The entire storage site shall be kept free from accumulation of unnecessary combustible materials. Weeds and grass shall be kept down and regular procedure provided for the periodic cleanup of the entire area.

(B) Salamanders, braziers, portable heaters or other open fires shall not be used.

(C) Tarpaulins, used for protection of storage against the weather, shall be of approved flameproofed fabric.

(C.M.C. 1235-19; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1227-19 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 73-10; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1227-21. Special Requirements for Type IV Storage.

(A) A coal pile shall not exceed 10 feet in height unless vented as required for inside storage as provided in Section 1227-5(B)(3).

(B) The allowable amount of coal to be stored shall be limited by the distance of the pile from any property line or combustible building in accordance with Table 1227-21(I).

TABLE 1227-21(I)

Amount Stored in Tons	*Distance of Pile From Any Property Line or Exterior Building Wall of Less Than Two Hour Fire Resistance*
Not more than 100	10 ft.
Not more than 500	20 ft.
Unlimited	30 ft.

(C.M.C. 1235-21; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1227-21 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 73-11; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1227-23. Smoking and the Use of Open Flame.

Smoking and the use of open flame shall conform to the applicable provisions of Chapter 1225 and shall be prohibited except in locations designated as smoking areas by the fire chief.

(C.M.C. 1235-23; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1227-23 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 73-12; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1227-25. Fire Protection.

The suitability, distribution or maintenance of fire protection equipment shall be in accordance with the applicable provisions of Chapter 1211 and the following:

(a) Not less than one portable fire extinguisher shall be provided for every 100 feet or fraction thereof of travel distance to any fire extinguisher;

(b) When the climate is such as to involve the danger of freezing, suitable nonfreezing solutions shall be used;

(c) Fire hydrants and all firefighting equipment shall be accessible for use at all times. No temporary storage shall be allowed to obstruct access to firefighting equipment, and any accumulation of snow shall be promptly removed.

(C.M.C. 1235-25; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1227-25 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 73-13; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Chapter 1229

WATER SUPPLY AND FACILITIES FOR FIREFIGHTING PURPOSES

Sec. 1229-1. Scope.
Sec. 1229-3. Water Flow Requirements.
Sec. 1229-5. Location of Buildings and Structures.
Sec. 1229-7. Public Fire Hydrant Spacing.
Sec. 1229-9. Private Fire Hydrants.
Sec. 1229-11. Access for Firefighting.
Sec. 1229-13. Access Streets, Roadways or Driveways.
Sec. 1229-15. Building Permit.

Sec. 1229-1. Scope.

This chapter shall apply to adequate water supply and facilities for firefighting purposes and includes but shall not be limited to:

(a) Water fire flow requirements;

(b) Public fire hydrants;

(c) Private fire hydrants;

(d) Access for firefighting apparatus.

This chapter shall not apply to private fire protection appliances such as the following:

(a) Sprinkler systems;

(b) Standpipe systems;

(c) Foam and other special fire extinguishing systems;

(d) Portable fire extinguishing equipment.
(C.M.C. 1239-1; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1229-1 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 80-01; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1229-3. Water Flow Requirements.

An adequate water supply for firefighting purposes, as determined by the fire chief, shall be available for all buildings, structures and parts thereof and for all buildings and structures under construction. Such water shall be supplied from city water mains.
(C.M.C. 1239-3; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1229-3 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 80-02; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1229-5. Location of Buildings and Structures.

(A) Except as provided in Sections 1229-5(B) and (C), all buildings and structures shall be so located that all parts thereof are not more than 400 feet from not less than two readily accessible public or private fire hydrants.

(B) Except as provided in Section 1229-5(C), all buildings and structures in areas where the required fire flow, as determined by the fire chief, is not more than 4,500 gallons per minute shall be so located that all parts thereof are not more than 400 feet from not less than one readily accessible public or private fire hydrant.

(C) All dwelling houses or other minor use buildings or structures shall be so located that all parts thereof are not more than 500 feet from not less than one readily accessible public or private fire hydrant, unless a greater distance is specifically approved by the fire chief.
(C.M.C. 1239-5; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1229-5 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 80-03; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1229-7. Public Fire Hydrant Spacing.

Public fire hydrants which are necessary to supply the fire-fighting water required by Section 1229-3 shall be spaced or located as follows:

(a) In areas where the required fire flow, as determined by the fire chief, is more than 4,500 gallons per minute, fire hydrants shall not be more than 300 feet apart.

(b) In areas where the required fire flow, as determined by the fire chief, is not

more than 4,500 gallons per minute, fire hydrants shall be not more than 400 feet apart.

(C.M.C. 1239-7; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1229-7 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 80-04; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1229-9. Private Fire Hydrants.

Private fire hydrants where required to meet the provisions of Section 1229-5 shall be located, installed and maintained in accordance with the following:

(a) Private fire hydrants shall be installed in accordance with all applicable laws, ordinances and rules and regulations of the Cincinnati water works and the following:

(1) All private fire hydrants shall have an approved shutoff valve installed in the fire hydrant lead not more than 10 feet from the fire hydrant. Such shutoff valve shall be accessible at all times;

(2) All private fire hydrants shall be installed not closer than two feet, nor more than five feet from a street, roadway or driveway conforming with Section 1229-13.

(b) All private fire hydrants shall be maintained in proper working order by the owner;

(c) An inspection and flow test shall be conducted annually as prescribed by the fire chief;

(d) All private fire hydrants shall be accessible at all times, for firefighting purposes.

(C.M.C. 1239-9; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1229-9 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 80-05; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1229-11. Access for Firefighting.

(A) Where access for firefighting purposes is required by this code, such access shall be provided by means of streets, roadways or driveways conforming to Section 1229-13.

(B) Where access for firefighting purposes is required by the Cincinnati - Ohio Building Code, such access, in addition to complying with all the requirements of the Cincinnati - Ohio Building Code, shall be by means of streets, roadways or driveways conforming to Section 1229-13.

(C) Access from fire hydrants to structures shall be approved by the fire chief.

(C.M.C. 1239-11; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1229-11 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 80-06; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1229-13. Access Streets, Roadways or Driveways.

Access streets, roadways or driveways, where required by Section 1229-11, shall conform to the following:

(a) The width shall be sufficient to permit easy passage of any fire division apparatus, and in no case shall the width be less than 18 feet;

(b) The surface shall be of sufficient strength and type to adequately support any fire division apparatus under any weather conditions;

(c) The curve radii and grade elevations shall be such as to permit any fire division apparatus to negotiate curves and grades under any weather conditions.

(C.M.C. 1239-13; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1229-13 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 80-07; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; a. Ord. No. 428-1973, eff. Oct. 19, 1973; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Sec. 1229-15. Building Permit.

No permit for the construction of any building shall be issued by the director of buildings and inspections except where adequate water supply and facilities for firefighting purposes are available, as determined by the fire chief. If the director of buildings and inspections finds that upon inspection of any building under construction that adequate water supply or facilities for firefighting purposes, as determined by the fire chief, are not being furnished as required, then the director of buildings and inspections may stop such construction and revoke the permit previously issued therefor, until such time as adequate water supply or facilities for firefighting purposes, as determined by the fire chief, are furnished.

(C.M.C. 1239-15; ordained by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1229-15 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to CFPC 80-08; ordained by Ord. No. 464-1971, eff. Jan. 21, 1972; r. Ord. No. 364-1979, eff. Sept. 6, 1979.

Chapter 1231

GENERAL FIRE LAWS

Sec. 1231-1. Careless Smoking.
Sec. 1231-3. Duplication of Signal Box Keys Prohibited.
Sec. 1231-5. Tampering with Signal Boxes.
Sec. 1231-7. Fire Apparatus, Injury To.
Sec. 1231-9. Tampering with Fire Hydrants.
Sec. 1231-11. Obstructing Fire Hydrants.
Sec. 1231-13. Unlicensed Use of Fire Hydrants Prohibited.
Sec. 1231-15. License Fee for Use of Fire Hydrant.
Sec. 1231-17. Fire Salvage Covers; Definition, Rental Fee.
Sec. 1231-19. Emergency Use of Fire Hose; Rental Charge.
Sec. 1231-21. Hearing on the Cause of Fire.
Sec. 1231-23. Power to Compel Attendance of Witnesses.
Sec. 1231-25. Power to Administer Oath.
Sec. 1231-27. Investigation May Be Private.
Sec. 1231-29. Fees for Certain Non-Emergency Services.

Sec. 1231-1. Careless Smoking.

No person shall, in smoking or using lighters or matches for smoking, set fire to the contents of or any building.

Whoever violates this section is guilty of careless smoking, a first degree misdemeanor.
(C.M.C. 911-1; ordained by Ord. No. 523-1973, eff. Jan. 1, 1974; renumbered to C.M.C. 1241-1 by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1231-1 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to C.O. 901-S20; a. Ord. No. 384-1958, eff. Nov. 28, 1958; a. Ord. No. 112-1970, eff. May 15, 1970; r. Ord. No. 523-1973, eff. Jan. 1, 1974.

Sec. 1231-3. Duplication of Signal Box Keys Prohibited.

No person shall make or cause to be made, or have in such person's possession, an impression or duplicate of any signal box key or other key belonging to the fire force, without the express permission of the superintendent of communications and the fire chief.
(C.O. 704-17; renumbered to C.M.C. 709-27, eff. Jan. 1, 1972; a. Ord. No. 420-1972, eff. Oct. 13, 1972; renumbered to C.M.C. 1241-3 by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1231-3 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1231-5. Tampering with Signal Boxes.

No person shall tamper, meddle or interfere, in any way, with a station or fire alarm signal box, or any of the wires or supports thereof, or cut, break, injure, deface or remove any such box or any of the wires or supports thereof, connected with any part of the fire alarm system, or make any connection or communication therewith, so as to interrupt or interfere with the proper working of the system, nor shall any person, with evil intent, injure, break or destroy any machinery or fixture connected with the system.
(C.O. 704-18; renumbered to C.M.C. 709-27, eff. Jan. 1, 1972; renumbered to C.M.C. 1241-5 by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1231-5 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1231-7. Fire Apparatus, Injury To.

No person shall injure any of the fire apparatus belonging to or in the public use of the city, or any of the houses in which it may be placed, or shall place any obstruction in the way so as to hinder in any manner the free access to the engines, ladder trucks, or hose trucks, at all times, or shall injure or remove any of the ladders from their proper places of deposit, except it be at the alarm of fire for the purpose of extinguishing the same or by order of the proper officer, for the purpose of washing, cleansing, repairing or other necessary purpose.
(C.O. 704-22; renumbered to C.M.C. 709-33, eff. Jan. 1, 1972; a. Ord. No. 420-1972, eff. Oct. 13, 1972; renumbered to C.M.C. 1241-7 by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1231-7 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1231-9. Tampering With Fire Hydrants.

No person shall:

(a) Without privilege to do so, knowingly tamper with, make inoperative or attempt to make inoperative any fire hydrant or any part thereof;

(b) Without privilege to do so, knowingly turn, move or operate or attempt to turn, move or operate any part of a fire hydrant.

Whoever violates this section is guilty of tampering with a fire hydrant, a misdemeanor of the first degree.
(C.M.C. 709-35; ordained by Ord. No. 523-1973, eff. Jan. 1, 1974; renumbered to C.M.C.

1241-9 by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1231-9 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Analogous to Sec. 901-F7; ordained by Ord. No. 7-1968, eff. Jan. 4, 1968; renumbered to C.M.C. 901-F7, eff. Jan. 1, 1972; a. Ord. No. 421-1972, eff. Oct. 13, 1972; r. Ord. No. 523-1973, eff. Jan. 1, 1974.

Sec. 1231-11. Obstructing Fire Hydrants.

No person shall place building material or any other obstruction whatever within 10 feet of the center cap of any public or private fire hydrant.

(C.O. 704-25; renumbered to C.M.C. 709-37, eff. Jan. 1, 1972; a. Ord. No. 420-1972, eff. Oct. 13, 1972; renumbered to C.M.C. 1241-11 by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1231-11 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1231-13. Unlicensed Use of Fire Hydrants Prohibited.

No person shall use any wrench or tool other than a regulation fire department spanner on a city fire hydrant. It shall further be unlawful for any person other than an authorized city employee or member of the city fire division to use a city fire hydrant without first securing from the city treasurer a license for such use.

(C.O. 704-26; a. Ord. No. 6-1968, eff. Jan. 4, 1968; renumbered to C.M.C. 709-39, eff. Jan. 1, 1972; a. Ord. No. 420-1972, eff. Oct. 13, 1972; renumbered to C.M.C. 1241-13 by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1231-13 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1231-15. License Fee for Use of Fire Hydrant.

Application for license to use a city fire hydrant shall be made to the water works. If the proposed use is not inconsistent with water works rules and regulations and rules of the fire division or contrary to law, the water works shall grant a license and assess charges for the proper license fee. The license fee shall be set by the director and published periodically.

When a license is granted, the water works will furnish a fire hydrant spanner wrench if required. Failure to return this wrench at the completion of the fire hydrant use will result in a replacement charge.

(C.O. 704-27; a. Ord. No. 265-1962, eff. Aug. 4, 1962; a. Ord. No. 88-1970, eff. Apr. 24, 1970; renumbered to C.M.C. 709-41, eff. Jan. 1, 1972; a. Ord. No. 420-1972, eff. Oct. 13, 1972; a. Ord. No. 327-1975, eff. Sept. 1, 1975; a. Ord. No. 282-1979, eff. Sept. 1, 1979; renumbered to C.M.C. 1241-15 by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1231-15 by Ord. No. 385-1984, eff. Sept. 6, 1984; a. Ord. No. 303-1996, eff. Oct. 25, 1996)

Sec. 1231-17. Fire Salvage Covers; Definition, Rental Fee.

For the purpose of this section, and without limiting the generality thereof, fire salvage cover is defined as a piece of cotton duck material measuring 12 feet by 18 feet, which has been specially treated to make it waterproof and which has been installed by a member or members of the Cincinnati fire division.

When, in the opinion of any member of the fire division, it becomes necessary, due to fire damage or other emergency, to make use of fire salvage covers on any portion of any building to protect it from further additional damage by rain, snow, wind, sun or any other danger, the fire division may make use of fire salvage covers to protect the area for a period not to exceed 15 days without charge to the owner of the building. If the salvage cover remains in place for more than 15 days on any building, the owner of the building shall be assessed a rental fee of $9 per day for each salvage cover remaining longer than the initial 15 days provided herein. This section

shall not be effective if the owner or person in control of the building sends written notification to the fire chief, prior to the expiration of the initial 15-day period, that the salvage covers are to be removed prior to the expiration of the 15-day period.

When, in the opinion of the city manager, a major disaster or catastrophic occurrence causing widespread damage has taken place within the city, the city manager is authorized to waive the rental fee set out in this section for a period not exceeding six months.
(Sec. 704-28; ordained by Ord. No. 249-1969, eff. July 25, 1969; renumbered to C.M.C. 709-43, eff. Jan. 1, 1972; a. Ord. No. 326-1974, eff. July 3, 1974; a. Ord. No. 327-1975, eff. Sept. 1, 1975; a. Ord. No. 282-1979, eff. Sept. 1, 1979; renumbered to C.M.C. 1241-17 by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1231-7 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1231-19. Emergency Use of Fire Hose; Rental Charge.

In case of flood or other emergency requiring the use of hose, the city manager is hereby authorized to rent fire hose no longer used for firefighting for a period of time not to exceed 72 hours for each applicant. For such rental a charge of 9 cents per foot shall be made for such period of use.
(C.O. 704-29; renumbered to C.M.C. 709-45, eff. Jan. 1, 1972; a. Ord. No. 327-1975, eff. Sept. 1, 1975; a. Ord. No. 282-1979, eff. Sept. 1, 1979; renumbered to C.M.C. 1241-19 by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1231-19 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1231-21. Hearing on the Cause of Fire.

If, in the opinion of the fire chief, an investigation to determine the cause or origin of a fire is necessary, the fire chief or a duly delegated representative shall take or cause to be taken testimony on oath of all persons supposed to be cognizant of any facts pertinent thereto, or to have means of knowledge in relation to the matter concerning which an examination is required to be made, and cause such testimony to be reduced to writing.
(Sec. 704-31; ordained by Ord. No. 301-1971, eff. Sept. 1, 1971; renumbered to C.M.C. 709-49, eff. Jan. 1, 1972; renumbered to C.M.C. 1241-21 by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1231-21 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1231-23. Power To Compel Attendance of Witnesses.

The fire chief or a duly delegated representative may summon and compel the attendance of witnesses to testify in relation to any matter which is the proper subject of inquiry or investigation and may require production of any book, paper or document.
(Sec. 704-32; ordained by Ord. No. 301-1971, eff. Sept. 1, 1971; renumbered to C.M.C. 709-51; eff. Jan. 1, 1972; renumbered to C.M.C. 1241-23 by Ord. No. 364-1979; eff. Sept. 6, 1979; repealed and reordained as Sec. 1231-23 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1231-25. Power To Administer Oath.

The fire chief or a duly delegated representative may administer an oath to any person appearing as a witness before the fire chief; and no witness shall refuse to be sworn or testify, or disobey an order of the fire chief or the delegated representative, or fail or refuse to produce a book, paper or document concerning a matter under investigation, or be guilty of contemptuous conduct after being summoned by such officer to appear to give testimony in relation to a matter or subject under investigation.
(Sec. 704-33; ordained by Ord. No. 301-1971, eff. Sept. 1, 1971; renumbered to C.M.C. 709-53; eff. Jan. 1, 1972; renumbered to C.M.C.

1241-25 by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1231-25 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1231-27. Investigation May Be Private.

Investigation by or under the direction of the fire chief may exclude from the place where such investigation is held all persons other than those required to be present and witnesses may be kept separate from each other and not allowed to communicate with each other until they have been examined. (Sec. 704-34; ordained by Ord. No. 301-1971, eff. Sept. 1, 1971; renumbered to C.M.C. 709-55, eff. Jan. 1, 1972; renumbered to C.M.C. 1241-27 by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1231-27 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1231-29. Fees for Certain Non-Emergency Services.

In the event the fire division provides services of a non-emergency nature for private individuals or companies, the fire chief is authorized to establish fees and charge said private individuals or companies for the non-emergency services provided.

Services for which a charge may be established include, but are not limited to, the witnessing of acceptance tests for automatic sprinkler, standpipe or alarm systems; the protection of private property from further damage after incidents of vandalism, natural disaster, weather or water damage; stand-by duties at railroad accidents or incidents, notably those involving hazardous materials; and cleanup of hazardous materials at an incident scene.

Fees charged will be based on the actual personnel and non- personnel expenses to the fire division for the services provided. Personnel expenses will be calculated based on salary rates of personnel utilized according to the labor-management contract in effect at the time the services are provided. Materials and supplies will be charged at their actual cost or replacement value, whichever is greater. (C.M.C. 1231-29; ordained by Ord. No. 70-1989, eff. Feb. 23, 1989; Emer. Ord. No. 142-2013, § 22, eff. May 30, 2013; Emer. Ord. No. 208-2013, § 22, eff. June 26, 2013)

Chapter 1233

FIRE SERVICE OUTSIDE CITY

Sec. 1233-1. Limitations on Outside Fire Service.
Sec. 1233-3. Outside Fire Protection Line.
Sec. 1233-5. Application to Establish Fire Protection Districts.
Sec. 1233-7. Feasibility of Proposed District.
Sec. 1233-9. Fire Protection Fee.
Sec. 1233-11. Protection Periods.
Sec. 1233-13. Contract.
Sec. 1233-15. Unprotected Property.
Sec. 1233-17. Renewals.
Sec. 1233-19. Application of Township, Village or City for Auxiliary Fire Protection.
Sec. 1233-21. Report of City Manager.
Sec. 1233-23. Contract for Township, Village or City Fire Protection.
Sec. 1233-25. Contract Periods.
Sec. 1233-27. Rules and Regulations.

Sec. 1233-1. Limitations on Outside Fire Service.

No fire service shall be rendered outside the city of Cincinnati by the fire force except in the following cases:

(a) To protect property located in a fire protection district or in a township, village or city having a contract with the city of Cincinnati for fire protection;

(b) To protect property within the city threatened by a fire outside the city;

(c) To protect city property located outside the city;

(d) To go to the aid of a community threatened with disaster as the result of a spreading and uncontrolled conflagration;

(e) To assist communities having mutual aid agreements with the city of Cincinnati.

(C.O. 705-1; a Ord. No. 116-1968, eff. Mar. 20, 1968; renumbered to C.M.C. 711-1, eff. Jan. 1, 1972; renumbered to C.M.C. 1243-1 by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1233-1 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1233-3. Outside Fire Protection Line.

The fire chief shall determine the location of an outside fire protection line, including all territory within which the fire force could, with safety, render city fire protection service. No fire service shall be rendered beyond the fire protection line except to protect city-owned property or the operating property of an essential public utility serving the city, or in case of disaster conditions. The location of the line may be modified from time to time to comport with changed circumstances and conditions.

(C.O. 705-4; renumbered to C.M.C. 711-3, eff. Jan. 1, 1972; renumbered to C.M.C. 1243-3 by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1223-3 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1233-5. Application To Establish Fire Protection Districts.

A fire protection district may be established in territory within the outside fire protection line on application of property owners in accordance with the following provisions:

(a) The application shall be made on blank forms to be provided by the city manager and shall be signed by the owners of not less than 90 percent in tax value of all the improved parcels of real estate within the proposed district. For the purpose of this section, "improved parcel of real estate" shall mean a residence, business or factory building with the entire tract of land occupied or used in connection with it; "tax value" shall mean the value for taxation purposes on the real estate tax duplicate of Hamilton County, as corrected by the county auditor and as certified and delivered, in accordance with Section 319.28 of the Ohio Revised Code, to the county treasurer on October 1 preceding the beginning of the fire protection year;

(b) The application shall be accompanied by a plat showing the boundaries of the proposed district, the roads thereof and the approximate location of all buildings therein, and specially indicating each building whose owner does not join in the application;

(c) The application shall designate one or more persons authorized to act for the petitioners;

(d) The application shall be accompanied by a preliminary fee of $100, which shall be considered as a payment on

account, if the proposed district is established, and which shall be forfeited if the contract is refused by the applicant when offered to the applicant.

(C.O. 705-5; renumbered to C.M.C. 711-5, eff. Jan. 1, 1972; renumbered to C.M.C. 1243-5 by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1233-5 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1233-7. Feasibility of Proposed District.

On receipt of a proper application for the establishment of a fire protection district, the city manager shall direct the fire chief to make a survey of the proposed district to determine whether it is feasible for the city to furnish city fire protection. If the fire chief shall find the boundaries of the proposed district are unsatisfactory, they, with the approval of the petitioners, shall be modified, so long as the provisions of paragraph (a) of Section CFPC 1233-5 are complied with.

(C.O. 705-8; renumbered to C.M.C. 711-7, eff. Jan. 1, 1972; renumbered to C.M.C. 1243-7 by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1233-7 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1233-9. Fire Protection Fee.

If the city manager, on the recommendation of the fire chief, shall determine that it is feasible for the fire force to render city fire protection in the proposed district, the city manager shall determine the fire protection fee payable for the period of one year for the district, which fee shall be equal to 15 mills per dollar on the total taxable value of the parcels owned by the applicants. The minimum annual fee for any district shall be $300.

(C.O. 705-9; a. Ord. No. 265-1962, eff. Aug. 4, 1962; a. Ord. No. 429-1967, eff. Dec. 22, 1967; renumbered to C.M.C. 711-9, eff. Jan. 1, 1972; a. Ord. No. 540-1974, eff. Jan. 1, 1975; renumbered to C.M.C. 1243-9 by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1233-9 by Ord. No. 385-1984, eff. Sept. 6, 1984; a. Ord. No. 503-1987, eff. Dec. 25, 1987)

Sec. 1233-11. Protection Periods.

The fire protection period for any fire protection district shall expire on December 31 next after the establishment of the district, except that if the district is established after November 1 of any year, the expiration date shall be December 31 of the succeeding year.

(C.O. 705-11; renumbered to C.M.C. 711-11, eff. Jan. 1, 1972; renumbered to C.M.C. 1243-11 by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1233-11 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1233-13. Contract.

Upon payment of the proper fee, the city manager shall be authorized to execute a contract with the representatives of the fire protection district whereby the city shall undertake to furnish city fire protection to the petitioning property owners of the fire protection district. The contract shall, in no event, confer a right of action for damages on any property owner of the district or on any other person for operation or failure to operate thereunder. The city will not establish any fire houses or fixed equipment outside the city limits. Where the protection period is less or more than a year, the fee shall be proportionately less or greater than the fixed annual fee, according to the number of months. In calculating the number of months, fractional parts of a month consisting of 10 days or less shall be disregarded. Where the fractional part is more than 10 days it shall be counted as a full month.

In the case of the annexation to the city of the whole or a part of a fire protection district more than one month before the end of the

fire protection period, the city manager shall calculate the equitable refund due the property owners for the unexpired part of the protection period and shall report the result of such calculation to council for such action as council shall consider proper.
(C.O. 705-12; renumbered to C.M.C. 711-13, eff. Jan. 1, 1972; renumbered to C.M.C. 1233-13 by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1233-13 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1233-15. Unprotected Property.

Property in a fire protection district for which no fire protection fee has been paid shall not be entitled to fire protection. Where the owner of an unprotected vacant lot subsequently erects a building thereon, the owner may obtain protection for such building on payment of the proportionate fee for the unexpired portion of the protection period. Until the taxation value of the completed building shall have been officially determined, the fee shall be based on the estimated tax value of the lot with the completed structure. Owners of existing buildings in a fire protection district, not joining in the application for fire protection nor paying a fire protection fee, may have their buildings subsequently protected under the contract, but only on payment of the full fee which would have been charged against them had they joined in the application.
(C.O. 705-14; renumbered to C.M.C. 711-15, eff. Jan. 1, 1972; renumbered to C.M.C. 1243-15 by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1233-15 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1233-17. Renewals.

Renewals of contracts for fire protection districts shall be made as in the case of original applications. Applications for renewal shall be made not less than 30 days before the expiration date of the existing contract, and renewal payment shall be made not less than 10 days before such expiration date.
(C.O. 705-15; renumbered to C.M.C. 711-17, eff. Jan. 1, 1972; renumbered to C.M.C. 1243-17 by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1233-17 by Ord. No. 385-1984. eff. Sept. 6, 1984)

Sec. 1233-19. Application of Township, Village or City for Auxiliary Fire Protection.

Any township, village or city within the outside fire protection line which shall desire auxiliary fire protection from the city of Cincinnati shall file its application with the city manager. The application shall be accompanied by an accurate map of the township, village or city showing all streets and roads therein with the approximate location of all buildings, especially indicating factories and office buildings, apartment houses and other types of large building construction.
(C.O. 706-17; renumbered to C.M.C. 711-19, eff. Jan. 1, 1972; renumbered to C.M.C. 1243-19 by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1233-19, by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1233-21. Report of City Manager.

Upon receiving an application from a township, village or city for auxiliary fire protection the city manager shall refer it to the fire chief for approval as to feasibility. If the fire chief shall approve, the city manager shall determine the total real estate tax duplicate value of the applicant township, village or city for the current tax year and refer the application to the council with a report and recommendation.
(C.O. 706-18; renumbered to C.M.C. 711-21, eff. Jan. 1, 1972; renumbered to C.M.C. 1243-21 by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1233-21 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1233-23. Contract for Township, Village or City Fire Protection.

With his report and recommendation in the matter of the application of a township, village or city for auxiliary fire protection, the city manager shall submit an ordinance to council authorizing the execution of a contract of fire protection between the city of Cincinnati and the applicant township, village or city. The proposed contract shall provide the following:

(a) That the applicant township, village or city shall maintain a fire department adequate for its ordinary fire protection purposes, and shall call on the city for additional fire services only for a fire too large to be handled by one company or when its fire department is already engaged at a fire;

(b) That the city of Cincinnati fire force shall answer all calls for fire service in the same manner and with personnel and equipment of the same kind as for similar fires within the city of Cincinnati;

(c) That the contract shall in no event confer a right of action for damages either on the contracting township, village or city or on any property owner or resident thereof, for operation or failure to operate thereunder;

(d) That the amount payable by the applicant township, village or city shall be equal to five mills per dollar of the total real estate tax duplicate value of such township, village or city for each year of the contract. If the period consists of or includes the fractional part of a year, the payments shall be proportioned as in the case of unincorporated fire protection districts;

(e) The method and times of payment of the annual fire protection amount;

(f) That no fire service shall be rendered where the applicant township, village or city is in default in the payment of amounts due under the contract;

(g) Other special provisions that may be agreed on;

(h) The contract shall not be effective until approved by the respective board of trustees, council or other legislative body.

(C.O. 705-19; a. Ord. No. 429-1967, eff. Dec. 22, 1967; renumbered to C.M.C. 711-23, eff. Jan. 1, 1972; a. Ord. No. 540-1974, eff. Jan. 1, 1975; renumbered to C.M.C. 1243-23 by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1233-23 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1233-25. Contract Periods.

Fire protection contracts with townships, villages or cities may be made for periods of not more than three years, but shall in every case expire on the last day of a calendar year.
(C.O. 705-21; renumbered to C.M.C. 711-25, eff. Jan. 1, 1972; renumbered to C.M.C. 1243-25 by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1233-25 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1233-27. Rules and Regulations.

The city manager shall be authorized to make all necessary rules and regulations for the administration of the provisions of this chapter.
(C.O. 705-26; renumbered to C.M.C. 711-27, eff. Jan. 1, 1972; renumbered to C.M.C. 1243-27 by Ord. No. 364-1979, eff. Sept. 6, 1979; repealed and reordained as Sec. 1233-27 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Chapter 1235

DETECTORS, EARLY FIRE WARNING SYSTEMS*

Sec. 1235-1. Detector or Early Fire Warning System.
Sec. 1235-2. Owner—Tenant.
Sec. 1235-3. Early Fire Warning System Required.
Sec. 1235-5. Maintenance Responsibilities.
Sec. 1235-6. New NFiPA Standard.
Sec. 1235-7. Hotel and Motel Requirements.
Sec. 1235-9. Reserved.
Sec. 1235-11. Visual Alarms in Hotels and Motels.
Sec. 1235-13. Fire Protective Signaling Systems.
Sec. 1235-15. Elevator Recall.
Sec. 1235-17. Fire Department Communications Systems.

*Sections 1245-1, 1245-3, 1245-5 repealed by Ord. No. 363-1981, eff. Oct. 10, 1981; Sec. 1245-1, 1245-3, 1245-5, 1245-7, 1245-9 ordained by Ord. No. 363-1981, eff. Oct. 10, 1981; repealed and reordained as Sec. 1235-1, 1235-3, 1235-5, 1235-7, 1235-9, 1235-11 by Ord. No. 385-1984, eff. Sept. 6, 1984; amended 1235-3 and 1235-5 by Ord. No. 37-1986, eff. Jan 23, 1986.

Sec. 1235-1. Detector or Early Fire Warning System.

As used in this chapter, a "detector" or "early warning fire system" means:

Early fire warning system shall mean an approved automatic warning system of one or more devices that detects any of the products of combustion, including visible or invisible particles of combustion, and that produces an audible alarm signal in a building for the purpose of notifying the occupants thereof of the presence of a fire. The primary power for such system may be either an AC electrical system or a monitored battery. Systems with detectors sensitive to heat only are not included in this definition for purposes of this chapter.

For the purpose of installation and maintenance only, a system shall be deemed approved if listed by the Underwriters' Laboratories, Inc., and conforms to the applicable sections of "NFPA Standard No. 72 (referenced by the Cincinnati Building Code).
(Ordained as Sec. 1245-1 by Ord. No. 363-1981, eff. Oct. 10, 1981; repealed and reordained as Sec. 1235-1 by Ord. No. 385-1984, eff. Sept. 6, 1984; a. Ord. No. 292-1997, eff. Oct. 4, 1997; a. Ord. No. 83-1998, eff. April 10, 1998)

Sec. 1235-2. Owner—Tenant.

As used in this chapter an "owner" means the title holder, as evidenced by the deed records of the Hamilton County Recorder, of a building used for residential occupancy. An "owner" is also the purchaser of a building used for residential occupancy under a land contract. A "tenant" is the individual financially responsible to the owner for the rent.
(Ordained as Sec. 1235-2 by Ord. No. 83-1998, eff. April 10, 1998)

Sec. 1235-3. Early Fire Warning System Required.

The owner of a building for which no early fire warning requirements have been imposed by any other applicable municipal ordinance or state law shall install an operable early fire warning system and be responsible for assuring that an operable early fire warning system is continuously present on the premises on or before April 1, 1998. An early warning fire system shall be installed, and maintained, outside of each separate sleeping area in the immediate vicinity of the sleeping areas in each living unit. Each of these detectors shall be audible in each adjacent, separate sleeping area in each living unit when all intervening doors are closed and all household equipment that may be in operation at night are in full operation. An early warning fire system shall also be placed, and maintained, on each additional story without a sleeping area, including basements or cellars but excluding crawl spaces and unfinished attics. All detectors shall be installed and maintained in accordance with NFPA Standard No. 72 (as referenced in the Cincinnati Building Code) Household Fire Warning Equipment.

An owner may not permit a building or dwelling unit to be occupied without an approved and properly operating detector.

No person shall occupy a living unit without an approved and operating detector.
(Ordained as Sec. 1245-3 by Ord. No. 363-1981, eff. Oct. 10, 1981; repealed and reordained as Sec. 1235-3 by Ord. No. 385-1984, eff. Sept. 6, 1984; a. Ord. No. 37-1986, eff. Jan. 23, 1986; a. Ord. No. 292-1997, eff. Oct. 4, 1997; a. Ord. No. 83-1998, eff. April 10, 1998)

Sec. 1235-5. Maintenance Responsibilities.

In any residential building in which the owner is required to have an early warning fire system it shall be the responsibility of the tenant to:

(a) replace an expired battery with a working battery in all detectors within the

living unit when a monthly test or supervisory signal indicates the need for replacement.

(b) notify the owner and the Cincinnati Fire Division of an inoperative detector within twenty four hours of learning of the inoperative status of the detector. This subsection does not require notice when the only inoperative item is a battery of a detector located within a living unit.

(c) test, upon initial occupancy and once a month thereafter, each detector with an exterior test device within the tenant's living unit.

In any residential building in which the owner is required to have an early warning fire system it shall be the responsibility for the owner to:

(d) replace an expired battery with a working battery in all detectors in common areas when a monthly test or supervisory signal indicates the need for replacement.

(e) test each common area detector at least once a month to ensure that each detector battery is operational.

(f) properly repair or replace an inoperative detector within twenty four hours of learning of the inoperative status of a detector.

(g) test, upon purchase of the building and once a month thereafter, each detector with an exterior test device within common areas.

(Ordained as Sec. 1245-5 by Ord. No. 363-1981, eff. Oct. 10, 1981; a. Ord. No. 493-1981, eff. Dec. 25, 1981; repealed and reordained as Sec. 1235-5 by Ord. No. 385-1984, eff. Sept. 6, 1984; a. Ord. No. 37-1986, eff. Jan. 23, 1986; a. Ord. No. 292-1997, eff. Oct. 4, 1997; a. Ord. No. 83-1998, eff. April 10, 1998)

Sec. 1235-6. New NFiPA Standard.

For purposes of this chapter, should the NFiPA modify Standard No. 72-1996, then said modification is incorporated herein by reference. In case of such a modification an owner shall have 90 days from the effective date of the new standard to comply with the new standard.

(Ordained by Ord. No. 292-1997, eff. Oct. 4, 1997)

Sec. 1235-7. Hotel and Motel Requirements.

The owner of a hotel or motel shall install and maintain in full operating condition an early fire warning system on and after July 1, 1980. Such system shall include detectors placed in each guest room, suite or sleeping area. In buildings having a basement or cellar, an additional smoke detector shall be installed and maintained in the basement or cellar in a location approved by the fire chief.

(Ordained as Sec. 1245-7 by Ord. No. 363-1981, eff. Oct. 10, 1981; repealed and reordained as Sec. 1235-7 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1235-9. Reserved.

Editor's note—Ord. No. 0049-2009, § 1, effective April 4, 2009, repealed § 1235-9 which pertained to exemptions and derived from Ord. No. 363-1981, effective Oct. 10, 1981; and Ord. No. 385-1984, effective Sept. 6, 1984.

Sec. 1235-11. Visual Alarms in Hotels and Motels.

On and after September 1, 1982, every hotel and motel shall have available for guest use an operating automatic fire warning device approved by the fire chief which produces a flashing light signal when activated by any audible fire warning system signal, whether located inside or outside a guest room, which is designed to alert persons occupying that guest room of the presence of fire or smoke in the hotel or motel. Hotels and motels having fewer than 75 rooms shall have at least one such device available. Hotels and motels having more than 75 rooms shall have one device for every group of 75 guest rooms or portions thereof. As available, such device shall be installed in a guest room at the request of any guest.
(Ordained as Sec. 1245-11 by Ord. No. 364-1981, eff. Oct. 10, 1981; a. Ord. No. 492-1981, eff. Dec. 25, 1981; a. Ord. No. 265-1982, eff. June 23, 1982; repealed and reordained as Sec. 1235-11 by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1235-13. Fire Protective Signaling Systems.

The owner of any business, mercantile or residential use building as defined by the 1989 edition of Cincinnati-Ohio Basic Building Code (COBBC), when such building has floors for human occupancy located more than 75 feet above the lowest level of fire department vehicle access, shall install and maintain in full operating condition by July 1, 1991,* a fire protection signaling system conforming to Sections 1017.1, 1017.2, and 1017.4 through 1017.8 of the 1989 edition of the COBBC.

For the purpose of this section, "fire protective signaling" shall mean an interior alarm system on a closed electrical circuit, composed of manual pull stations located in each story, not more than five feet (1524 mm) from each exit in each story, and audible alarm signaling devices so arranged that the operation of any one station will cause all such alarm devices to operate within the building in accordance with Section 1017.0 COBBC.

Exceptions: the above provisions shall not apply:

(A) To buildings of residential use which have in accordance with the 1989 edition of the COBBC all of the following:

(1) Automatic smoke detectors located in conformance with Section 3781.104(A)(2)(b) ORC, other than those detectors for elevator recall;

(2) Such detectors hardwired and interconnected to activate all alarm/signaling devices to be audible throughout the building by means of a manual alarm override switch in a constantly attended location; and

(3) Such detectors supervised in accordance with Section 1020.2 COBBC.

(B) To buildings equipped throughout with approved automatic fire detection systems other than smoke detectors for elevator recall when such detection systems are installed in accordance with Section 1018.0 COBBC; have a manual alarm override switch in a constantly attended location to activate all alarm signaling devices throughout the building, and have such detection systems supervised in accordance with Section 1020.2 COBBC.

(C) Buildings conforming to Section 602.0 of the 1989 edition of the COBBC.

(D) To buildings equipped throughout with approved automatic fire suppression

*__Editor's note—__Amended (from 1992 to 1991) on the floor of council session June 28, 1989)

systems when such systems are installed in accordance with Section 1004.0, 1007.0, 1008.0, 1009.0 or 1010.0 COBCC; activate alarm signaling devices audible throughout the building in accordance with Section 1017.7.2 COBBC; have a manual alarm override switch in a constantly attended location to activate all such alarm signaling devices throughout the building, and, when such systems are supervised in accordance with Section 1020.1(1), 1020.1(2) or 1020.1(3) COBBC.

(C.M.C. 1235-13; ordained by Ord. No. 257-1989, eff. June 28, 1989)

Sec. 1235-15. Elevator Recall.

All elevators in business, mercantile and residential use buildings as defined in the 1989 edition of the COBBC which have floors used for human occupancy located more than six stories or 75 feet (22860 mm) above the lowest level of fire department vehicle access, shall conform to the requirements of Rule 211.3 (Operation of Elevators under Fire or Other Emergency Conditions) of ASME A17.1 listed in Appendix A of the 1989 edition of the Cincinnati-Ohio Basic Building Code by July 1, 1995.

For purposes of this section, "elevator recall" shall include "Phase I Emergency Recall Operation" in accordance with Rules 211.3a and 211.3b of ASME A17.1-87 and "Phase II Emergency In-Care Operation" in accordance with Rules 211.3c, 211.3d, 211.3e and 211.3f of ASME A17.1-87.

(C.M.C. 1235-15; ordained by Ord. No. 257-1989, eff. June 28, 1989)

Sec. 1235-17. Fire Department Communications Systems.

A two-way fire department communication system shall be provided and maintained in an operable condition at all times for fire department use in buildings which have floors located more than 75 feet above the lowest level of fire department vehicle access. The fire department communication system shall provide acceptable signal strength as required by the Ohio Fire Code and shall be subject to approval by the fire department. Any new system shall be a bi-directional amplifier (BDA) system.

(C.M.C. 1235-17; ordained by Ord. No. 257-1989, eff. June 28, 1989; Ord. No. 086-2015, § 1, eff. May 8, 2015)

Chapter 1237

FIRE SUPPORT SERVICES - PRIVATE AMBULANCE SERVICE

Sec. 1237-1. Licensing of Private Ambulance Services.

Sec. 1237-1. Licensing of Private Ambulance Services.

All licenses for private ambulance service shall be issued under this section in the manner provided for in Chapter 889, Private Ambulance Service, of the Cincinnati Municipal Code.
(Ordained by Ord. No. 431-1984, eff. Nov. 1, 1984)

Chapter 1247

TOXIC AND HAZARDOUS SUBSTANCES - RIGHT TO KNOW

Sec. 1247-1. Legislative Finding and Purpose.
Sec. 1247-3. Scope.
Sec. 1247-5. Exemptions.
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Sec. 1247-7A. Substance.
Sec. 1247-7B. Trace Quantity.
Sec. 1247-7C. Toxic or Hazardous Substance.
Sec. 1247-7D. Trace Quantities Excluded.
Sec. 1247-7E. Chemical Name.
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Sec. 1247-7H. Container.
Sec. 1247-7I. Label.
Sec. 1247-7J. Store.
Sec. 1247-7K. Work Area.
Sec. 1247-7L. Workplace.
Sec. 1247-7M. Employer.
Sec. 1247-7N. Employee.
Sec. 1247-7O. Material Safety Data Sheet.
Sec. 1247-9. Labeling of Toxic and Hazardous Substances.
Sec. 1247-11. Posting Requirements.
Sec. 1247-13. Training and Education Program.
Sec. 1247-15. Material Safety Data Sheets.
Sec. 1247-17. Location of Toxic or Hazardous Substance.
Sec. 1247-19. Inspection and Duties of the Fire Division and Fire Chief.
Sec. 1247-21. Declaration of Toxic or Hazardous Substances.
Sec. 1247-23. Remedies Available to City Solicitor.
Sec. 1247-25. Employee's Rights.
Sec. 1247-27. Falsification of Information.
Sec. 1247-29. Records.
Sec. 1247-31. Trade Secrets.
Sec. 1247-33. Waiver of Rights Invalid.
Sec. 1247-35. Remedies and Complaint Procedure for Employees.
Sec. 1247-37. Good Faith Report.
Sec. 1247-39. Severability.
Sec. 1247-41. Implementation Schedule.
Sec. 1247-99. Penalties.

Sec. 1247-1. Legislative Finding and Purpose.

The city council of the city of Cincinnati hereby determines that the public health and safety is endangered by a lack of knowledge about toxic or hazardous substances located within the city. The council also finds that the public, particularly citizens and workers, should have the right to know what toxic and hazardous substances they are exposed to in the community and at work because they will then be able to take more adequate measures to protect themselves against chronic and acute health and safety problems in the city. Further, the council hereby determines that the city's firefighters must know what toxic or hazardous substances are present within the city and where they are located in order to properly protect both human life and property.

Thus, the council determines that the labeling of certain recognized toxic and hazardous substances and the availability of information about such substances to employees, public officials, and other affected persons is essential to protect the public safety and health.

(Ordained by Ord. No. 210-1982, eff. July 3, 1982; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1247-3. Scope.

This chapter shall apply to all toxic or hazardous substances as defined herein which are manufactured, used or stored by an employer in workplaces in the city of Cincinnati, and shall be in addition to the Cincinnati Fire Prevention Code of this title, and all other provisions of the Cincinnati Municipal Code regarding toxic or hazardous substances, or any rules or regulations of city departments, boards or commissions pertaining thereto.

(Ordained by Ord. No. 210-1982, eff. July 3, 1982; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1247-5. Exemptions.

(A) Notwithstanding any language herein to the contrary, the provisions of this chapter shall not apply to substances which are:

(1) Consumer products and food stuffs packaged for distribution to, and intended for use by, the general public. This includes any labeled product used or stored in a workplace in the same form, approximate volume or amount, concentration and manner as it is sold to and used by the general public, provided it remains labeled in the workplace, and to which, in the employer's knowledge, employee exposure is not significantly different from that of the general public during foreseeable use of the substance; ingredients used in the production of food stuffs which are regulated by the Food, Drug, and Cosmetic Act, as amended;

(2) Already labeled pursuant to the Federal Insecticide, Fungicide, and Rodenticide Act, as amended, Food, Drug, and Cosmetic Act, as amended, Atomic Energy Act of 1954, as amended, as long as such products remain labeled in the workplace;

(3) Wastes labeled pursuant to the Resource, Conservation and Recovery Act as long as such products remain labeled in the workplace;

(4) Toxic or hazardous substances emitted or transported in interstate commerce into or through the city of Cincinnati;

(5) Located in containers having a volume of less than one gallon of liquid, or less than the equivalent thereof in its solid or gaseous state, based on generally accepted chemical measures.

(B) Notwithstanding any language herein to the contrary, the provisions of this chapter shall not apply to toxic or hazardous sub-

stances within six calendar days excluding Saturday, Sunday and legal holidays after they first enter a workplace, if, despite reasonable efforts of the employer to comply with this chapter, such substances arrive .without conforming labels or material safety data sheets.
(Ordained by Ord. No. 210-1982, eff. July 3, 1982; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1247-7. Definitions.

For the purposes of this chapter, the words and phrases defined in the sections hereunder shall have the meanings therein respectively ascribed to them, unless a different meaning is clearly indicated by the context. Where terms are not defined herein, the ordinarily accepted meanings within the proper context shall apply.
(Ordained by Ord. No. 210-1982, eff. July 3, 1982; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1247-7A. Substance.

Substance means any element, entity, compound combination, or any mixture thereof, whether organic or inorganic.
(Ordained by Ord. No. 210-1982, eff. July 3, 1982; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1247-7B. Trace Quantity.

Trace quantity means a quantity of a substance which constitutes less than one percent of the total substance or the total volume of the substance in question.
(Ordained by Ord. No. 210-1982, eff. July 3, 1982; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1247-7C. Toxic or Hazardous Substance.

Toxic or hazardous substance means, except as provided in Section CFPC 1247-5, a substance which satisfies any one of the following requirements:

(a) A substance which, because of the toxic or hazardous properties which it exhibits, is determined by the council to represent a significant risk to the public health and safety as a result of foreseeable use, handling, accidental spill, exposure, or contamination; or

(b) A substance which is known by the employer to present a significant risk of personal injury or illness in workplaces in the city of Cincinnati as the result of foreseeable use, handling, accidental spill, exposure or contamination. This subsection shall not be construed as requiring any employer to compile or generate new data.

(Ordained by Ord. No. 210-1982, eff. July 3, 1982; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1247-7D. Trace Quantities Excluded.

Toxic or hazardous substance shall not mean any substance which contains only a trace quantity of a toxic or hazardous substance.
(Ordained by Ord. No. 210-1982, eff. July 3, 1982; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1247-7E. Chemical Name.

Chemical name means the scientific designation of a substance in accordance with the nomenclature system developed by the International Union of Pure and Applied Chemistry or the Chemical Abstract Service Rules of Nomenclature.
(Ordained by Ord. No. 210-1982, eff. July 3, 1982; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1247-7F. Common Name.

Common name means any designation or identification, such as trade name or number or code name or brand name, used by the employer to identify a substance other than by its chemical name.
(Ordained by Ord. No. 210-1982, eff. July 3, 1982; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1247-7G. CAS Number.

CAS number means the identification number assigned by the Chemical Abstracts Service to chemical substances.
(Ordained by Ord. No. 210-1982, eff. July 3, 1982; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1247-7H. Container.

Container means any receptacle or formed or flexible covering for toxic or hazardous substances, including but not limited to bag, barrel, bottle, box, can, cylinder, drum, carton, stationary or mobile storage tank, vessel or vat.
(Ordained by Ord. No. 210-1982, eff. July 3, 1982; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1247-7I. Label.

Label means written, printed and graphic information displayed on or affixed to the container of a substance.
(Ordained by Ord. No. 210-1982, eff. July 3, 1982; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1247-7J. Store.

To store means to deposit or place a substance in the city for a period of six calendar days including Saturday, Sunday and legal holidays or more.
(Ordained by Ord. No. 210-1982, eff. July 3, 1982; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1247-7K. Work Area.

Work area means any room or defined space, whether within or outside of a building or other structure, where substances are used, manufactured, or stored, and includes, but is not limited to, areas where substances are handled, mixed, processed, packaged, repackaged, or transported and where employees or others are likely to be present.
(Ordained by Ord. No. 210-1982, eff. July 3, 1982; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1247-7L. Workplace.

Workplace means an establishment or business at one geographic location containing one or more work areas.
(Ordained by Ord. No. 210-1982, eff. July 3, 1982; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1247-7M. Employer.

Employer means any person, firm, corporation, partnership, association or other entity engaged in a business or in providing services, who or which has employees, but does not include the United States, or the state of Ohio, any of its political subdivisions, except the city of Cincinnati. The term "employer" also does not include the employment of domestic workers or casual laborers employed at the place of residence of the employer. "Employer" means that person directly in control of the toxic or hazardous substances in the workplace.
(Ordained by Ord. No. 210-1982, eff. July 3, 1982; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1247-7N. Employee.

Employee means any person who works, with or without compensations in a workplace.
(Ordained by Ord. No. 210-1982, eff. July 3, 1982; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1247-7O. Material Safety Data Sheet.

Material safety data sheet means that listing of information as required by this chapter in Section 1247-15.
(Ordained by Ord. No. 210-1982, eff. July 3, 1982; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1247-9. Labeling of Toxic and Hazardous Substances.

(A) Any employer who manufacturers, uses, or stores toxic or hazardous substances in the city of Cincinnati shall clearly label every container of a toxic or hazardous substance having a capacity of one gallon or more or the equivalent thereof in its solid or gaseous state, based upon generally accepted chemical measures, and which appears on the workplace of any such manufacturer, user or storer with the following information:

(1) The chemical name of the toxic or hazardous substances contained therein; however, any employer may, at its option, choose not to place the chemical name on any or all containers in its possession; provided that if such an election is made by the employer, a material safety data sheet on each unlabeled chemical must be maintained in the work area, the container must bear a code which identifies the applicable material safety data sheet, and the labeling provisions of subsection (2) hereunder must be complied with, except as provided in Section 1247-31;

(2) The category and degree of hazard conveyed through the color and number coding system adopted by the National Fire Protection Association, Inc., as published in the 1980 edition of NFPA 704 entitled "Standard System for the Identification of the Fire Hazards of Materials." A copy of NFPA 704 shall be on file for public inspection in the clerk of council's office and in the office of the city solicitor of the city of Cincinnati. Labeling of toxic or hazardous substances as required by this section shall not be considered a disclosure of trade secret information.

(B) Toxic or hazardous substances used in scientific experimentation or analysis, or chemical research, or product development are exempted from the labeling requirements of this chapter, provided that:

(1) Quantities used are not greater than reasonably necessary for such purposes;

(2) Employees are adequately advised of the toxic or hazardous properties of such substances; and

(3) Substances are used by or directly under the supervision of a properly trained individual assigned to conduct research or product development.

(C) An employer is not required to label a container of toxic or hazardous substance which is 10 gallons or less in volume, into which toxic or hazardous substances are transferred from labeled containers and which are intended only for the immediate use of the employee who performs the transfer.
(Ordained by Ord. No. 210-1982, eff. July 3, 1982; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1247-11. Posting Requirements.

Every employer manufacturing, using or storing a toxic or hazardous substance in the workplace shall be responsible to post or see that a sign is posted in every work area where notices to employees are normally posted, to inform employees that they, or their recognized union representative, have a right to information from their employer re-

garding the toxic or hazardous substances found in workplaces and a description of the toxic or hazardous effects of the substances and the circumstances under which these effects may be produced.
(Ordained by Ord. No. 210-1982, eff. July 3, 1982; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1247-13. Training and Education Program.

(A) Each employer shall have an employee training and education program designed to inform employees about the toxic and hazardous substances to which they are exposed. This information shall include the nature of the hazards, appropriate work practices, protective measures and emergency procedures. Such information shall not be inconsistent with that contained in the material safety data sheets, which shall be used as the basis for or part of the training and education program.

(B) The provisions of subsection (A) hereof shall not apply to employers engaged in the business of construction or reconstruction, provided that each employer engaged in the business of construction or reconstruction shall have an employee training and education program designed to inform employees of their rights pertaining to the toxic and hazardous substances to which they may be exposed. This program shall consist of but need not be limited to orientation regarding labeling and material safety data sheet requirements of this chapter. Such information must be given to the employee within six calendar days, excluding Saturday, Sunday and legal holidays, of the date the employee reports to a job site, and may be in the form of a written notice.
(Ordained by Ord. No. 210-1982, eff. July 3, 1982; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6,1984)

Sec. 1247-15. Material Safety Data Sheets.

(A) Every employer manufacturing, using or storing a toxic or hazardous substance in a workplace within the city of Cincinnati shall compile and mail or deliver to the fire division a material safety data sheet for every toxic or hazardous substance which appears in its workplaces within the city within six calendar days, excluding Saturday, Sunday and legal holidays, of the arrival in the workplace of the toxic or hazardous substance. The material safety data sheet shall set forth the following information:

(1) The chemical name, trade name, common name and CAS number, and any other commonly used name of the substance except as provided in Section CFPC 1247-31;

(2) The routes of exposure such as inhalation, ingestion, adsorption or absorption;

(3) The symptoms of and acute and chronic effects of exposure to the substance at hazardous levels;

(4) The potential for flammability, explosion and reactivity of the substance;

(5) Appropriate emergency treatment in the event of exposure to hazardous levels;

(6) Proper conditions for safe use and exposure to the substance, including the need for personal protective equipment;

(7) Procedures for cleanup of leaks and spills of the substance, including emergency procedures for fire and explosion;

(8) Any known danger, hazard or risk resulting from the use of the substance, whether by itself or in combination or mixture; or a statement that there are no known dangers, hazards

or risks based upon tests conducted by the manufacturer or research of the technical literature available or the toxic or hazardous substance; and

(9) The name, address and the current telephone number of the manufacturer.

(B) The employer shall ensure that copies of material safety data sheets for each toxic or hazardous substance are located at each workplace and are readily accessible to all employees at the workplace for examination during all hours of operation.

(C) The provisions of subsection (B) hereof shall not apply to employers engaged in the business of construction or reconstruction provided such employers ensure that copies of the material safety data sheets for each toxic or hazardous substance are available at the nearest office of said employer and are available during all hours of operation; or upon request, must make them available on the job site within 24 hours.

(D) The employer shall retain material safety data sheets required under (A) for a period of at least one year after the toxic or hazardous substance was last used, manufactured or stored in its workplace.
(Ordained by Ord. No. 210-1982, eff. July 3, 1982; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1247-17. Location of Toxic or Hazardous Substance.

(A) For the purpose of fire division inspections, every employer shall compile and mail or deliver to the fire chief lists of the work areas in the workplace where toxic or hazardous substances are used, manufactured or stored. The limits shall also specify, in alphabetical order by chemical and common name, all toxic or hazardous substances used, manufactured or stored in a work area for a period of 30 consecutive days. Each list shall contain sufficient information to identify the work area by name and location.

(B) When a toxic or hazardous substance is introduced to or removed from the workplace, the employer shall amend the lists in accordance with the provisions of subsection (A) hereof.

(C) The supplying of information to the fire chief under (A) and (B) shall not be considered disclosure of trade secret information. An employer shall specify, however, which information, if any, contained on such lists is trade secret information and is protected from improper use and dissemination under the provisions of Sections CFPC 1247-19(e) and CFPC 1247-31.

(D) The provisions of paragraphs (A), (B) and (C) shall not apply to employers engaged in the business of construction or reconstruction provided such employers are in compliance with the provisions of Section CFPC 1247-15 of this chapter and the quantity of any industrial toxic or hazardous substance manufactured, used or stored is less than 55 gallons of liquid or the equivalent thereof in its solid or gaseous state, based upon generally accepted chemical measures, per workplace.
(Ordained by Ord. No. 210-1982, eff. July 3, 1982; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1247-19. Inspection and Duties of the Fire Division and Fire Chief.

In addition to other duties provided under this code, the following duties are assigned to the Cincinnati fire division:

(A) The fire division shall conduct inspections of workplaces where toxic or hazardous substances are used, manufactured, or stored. The fire division shall not attempt a forcible entry

should the employer refuse to consent to such an inspection, but shall seek a proper search warrant. These inspections, which are to be performed not less frequently than annually, shall be for the purpose of determining:

(1) That toxic or hazardous substances are properly labeled consistent with Section CFPC 1247-9 and the required information is contained on the material safety data sheets;

(2) That appropriate safety, containment and cleanup equipment is readily available; and

(3) That the location of toxic or hazardous substances is consistent with the information required under Section CFPC 1247-17.

(B) The fire division shall accumulate and maintain the following information as received from manufacturers, users, or storers of toxic or hazardous substances in the city of Cincinnati:

(1) Material safety data sheets provided in accordance with Section CFPC 1247-15; and

(2) Information as to the exact location of all toxic or hazardous substances which is provided in accordance with Section CFPC 1247-17.

(C) The fire division shall have the authority to issue citations for any violations of this chapter. In the interest of protecting firefighters, employees in the workplace, and the public, the fire chief or his designee shall additionally have the authority to issue a stop order or orders as provided in Section CFPC 1201-45 of this code.

(D) The fire division shall investigate, within 72 hours, any complaint in which it is alleged that employees have been ordered to work with substances which are not labeled as required by this chapter or for which material safety data sheets required by this chapter are not accessible to employees.

(E) The fire chief shall adopt necessary and appropriate practices and procedures to protect information identified, pursuant to Section CFPC 1247-15 and Section CFPC 1247-31, as trade secret from improper use or dissemination beyond the purposes of this chapter.

(F) The fire chief shall have the power, upon written application by an employer, to authorize variances from labeling provisions of Section CFPC 1247-9, which will not be contrary to the public interest or the intent of this chapter, but only where, (1) owing to special conditions pertaining to a specific employer, workplace or work area, the strict application of this chapter would cause undue or unnecessary hardship, or (2) owing to a preexisting program of an employer designed to inform or protect workers, an employer is in substantial compliance with this chapter.

(1) No such variance for undue or unnecessary hardship shall be authorized by the fire chief unless the fire chief finds the following facts and conditions exist:

(a) Exceptional or extraordinary circumstances or conditions apply to the subject employer, workplace or work area; in making a finding on this point, the fire chief shall consider factors, including but not limited to extreme temperature, difficulty of ac-

cess, lack of a permanent work area or workplace such as at construction or demolition sites, and volatile or rapidly changing conditions in the work area or workplace; and

(b) The employer establishes, with approval of the fire chief, alternate methods of providing information about the toxic or hazardous substances involved, such as placards, posting signs in common areas or entry areas, and oral and written communication, which shall be substituted for those requirements that are waived and which will result in substantial compliance with the intent of this chapter.

(2) No such variance for a preexisting program shall be authorized by the fire chief unless the fire chief finds the following facts and conditions exist:

(a) The program was in existence as of January 1, 1982;

(b) The labeling in use in the program conveys information in a manner substantially equal to or better than the labeling requirements of the chapter;

(c) Material safety data sheets which contain the same data as required by this chapter must be readily accessible to workers; and

(d) The employer must have on file with the fire division an explanation of its program describing its method of labeling and shall conform to the requirements of Section CFPC 1247-19(b).

(3) In modifying the literal interpretation and strict application of the provisions of this chapter and in authorizing a variance there from the fire chief shall impose such requirements and conditions involved as he may deem necessary in order to carry out the intent and purpose of this chapter, and to otherwise safeguard the public health, safety and general welfare.

(4) Variances granted pursuant to this section for undue or unnecessary hardship shall expire one year from the date of issuance, but may be renewed by the fire chief upon compliance with all terms of this section. Variances granted pursuant to this section for preexisting programs shall be for a period of five years, after which they shall expire and the employer shall conform to this chapter.

(5) When an employer files an application for a variance, the employer shall notify its employees of such application by immediately posting a notice of such application. Such posting shall occur in the same manner as provided for in Section CFPC 1247-11.

(6) Appeals from a decision of the fire chief made under this subsection granting or refusing a variance or any other decision of the fire chief, where such decision is based upon this chapter, may be taken to the city manager by any employer, employee, employee's

designated representative or recognized collective bargaining agent who has taken a position on the matter subject to appeal by expressing an opinion in writing to the fire chief prior to his decision. Appeals to the city manager shall be made in writing and filed with the city manager within 30 days from the ruling or the decision of the fire chief. The city manager (or his duly authorized designee, which may include the fire prevention board of appeals) may, in conformity with the provisions of this chapter, reverse or affirm wholly or partly, or may modify the order, requirement, decision, ruling or determination appealed from.

(Ordained by Ord. No. 210-1982, eff. July 3, 1982; repealed and reordained by Ord. No 385-1984, eff. Sept. 6, 1984)

Sec. 1247-21. Declaration of Toxic or Hazardous Substances.

The council hereby determines that certain substances in commercial use which are found in containers and are listed in the list of substances contained in Part 1910, Subpart Z of Title 29 of the Code of Federal Regulations (1981), including Tables Z-1 through Z-3 thereof, which have been found to be toxic or hazardous substances and represent a significant risk to the public health and safety as a result of foreseeable use, handling, accidental spill, exposure, or contamination, pursuant to the provisions of Section CFPC 1247-07(C)(1), are "toxic or hazardous substances" for the purposes of this chapter. This portion of the Code of Federal Regulations is on file, for public inspection, both in the clerk of council's office and the Cincinnati Law Library.

(Ordained by Ord. No. 210-1982, eff. July 3, 1982; repealed and reordained by Ord. No 385-1984, eff. Sept. 6, 1984)

Sec. 1247-23. Remedies Available to City Solicitor.

The city solicitor, or his or her designee, may institute appropriate legal action, either civil or criminal as authorized herein, or as may be otherwise available and appropriate either at law or in equity, which may, in the judgment of the city solicitor or his or her designee, be necessary for the enforcement of any order or orders issued pursuant to this chapter or the abatement of any nuisance or hazard against which such order was directed. Any such suits or proceedings are to be brought in the name of the city of Cincinnati and no such suits or proceedings shall be held to exclude any criminal or penal remedies which may be authorized by this chapter or any of the laws or ordinances in force or effect in the city of Cincinnati, or to exempt any violators of this or any other laws or ordinances from any penalty or penalties as may be prescribed. This section shall not be construed to eliminate, abridge or detract from any remedies either at law or in equity which any employee or other individual may have arising out of any breach of violation of the provisions of this chapter.

(Ordained by Ord. No. 210-1982, eff. July 3, 1982; repealed and reordained by Ord. No 385-1984, eff. Sept. 6, 1984)

Sec. 1247-25. Employee's Rights.

(A) An employee, or such employee's recognized union representative, may request in writing, and the employer or employers shall provide, any information relating to toxic or hazardous substances which the employer is required to maintain pursuant to this chapter.

(B) No employer shall discharge, or cause to be discharged or otherwise disciplined, or in any manner discriminate against any employee or prospective employee for the reason that such person has exercised any right, made any claim or filed any complaint or suit

or has instituted, or caused to be instituted, any proceeding under this chapter, or has testified, or is about to testify, in any proceeding in his own behalf or on the behalf of others; nor shall any remuneration, position, seniority or other benefits be lost or denied to any such employee who has exercised any right provided by this chapter.

(C) An employee, or such employee's recognized union representative, shall have the right to accompany the fire inspector and to participate in any inspection provided for herein. The provisions of this section shall not be construed to require an employer to compensate an employee for time spent accompanying the fire inspector or participating in an inspection during such employee's regular working hours.

(D) Any employee, or his recognized union representative, who believes that a violation of this chapter exists may request an inspection by giving written notice to the fire chief or his authorized representative of such violation. Upon the request of the person giving such notice, such person's identity and that of employees referred to in the notice shall be confidential information and shall not be revealed or published by the fire division except for good cause upon court order.
(Ordained by Ord. No. 210-1982, eff. July 3, 1982; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1247-27. Falsification of Information.

If any employer or any of its officers or employees fails to comply with the provisions of this chapter by knowingly and intentionally misrepresenting, falsifying, concealing, destroying or failing to retain information necessary to comply with the provisions of this chapter, they shall be personally liable under the provisions of Section CFPC 1247-99, whether or not such employer is a corporation, to the extent that such liability may be imposed under the laws of the state of Ohio. The dissolution of a corporation shall not discharge an officer's of employee's liability for such conduct.
(Ordained by Ord. No. 210-1982, eff. July 3, 1982; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1247-29. Records.

All documents and records required by this chapter which are in the possession of this fire division are public records, except as otherwise specifically provided in this chapter.
(Ordained by Ord. No. 210-1982, eff. July 3, 1982; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1247-31. Trade Secrets.

This chapter shall not be construed as limiting any rights, obligations or remedies regarding trade secrets existing under applicable law, except as is necessary to achieve the objectives of this chapter and as expressly provided below.

(A) An employer may withhold the chemical name of a toxic or hazardous substance from the label required by Section CFPC 1247-9 and the material safety data sheet required by Section CFPC 1247-15(a) provided that:

(1) The employer can establish that the substance is a trade secret by showing that it:

(a) Is a catalyst unknown to competitors or other intermediate unknown to competitors; or

(b) Cannot be practically and lawfully discovered by analytical techniques, laboratory procedures or other means available to any potential competitor;

(2) The employer can establish that the substance is not a suspected or recognized carcinogen, mutagen, teratogen, or cause of significant irreversible damage to human organs or body systems, as demonstrated through human, animal and other experimental media;

(3) The toxic or hazardous substance is identified by a generic chemical classification that would provide sufficient information upon which a health professional could render recommendations for adequate safeguards to prevent toxic or hazardous exposure to the substance;

(4) All other information on the properties and effects of the substance required by Section CFPC 1247-9(A)(2) and Section CFPC 1247-5 is provided;

(5) The material safety data sheet indicates which category of information is being withheld on trade secret grounds;

(6) The material safety data sheet for the specific substance or substance in question is posted in the work area where the substance is used, manufactured, or stored; and

(7) The withheld information is provided on a confidential basis to a treating physician who states in writing, except in an emergency situation, that a patient's health problems may be related to exposure to a toxic or hazardous substance. A statement to this effect with the name and phone number of the person or persons authorized, on a 24-hour-a-day basis, to disclose the withheld information shall be included on the material safety data sheet.

(B) An employer must provide the chemical name and location of all toxic or hazardous substances, notwithstanding status as a trade secret as provided in (a), to the fire chief as provided in Sections CFPC 1247-15(A) and CFPC 1247-17. The employer shall designate what information is considered trade secret information to be protected as such by the fire division pursuant to the provisions of Section CFPC 1247-17 and CFPC 1247-19(E). The employer shall also file a statement with the fire chief, when designating that a certain toxic or hazardous substance is trade secret or that its location would reveal trade secret information, that the conditions of (A)(1) - (7) are satisfied.

(C) No officer, employee, agent or contractor of any city department, board or commission shall knowingly and intentionally disclose to anyone in any manner, unless authorized by law, any trade secret information, except as is required to administer or enforce the provisions of this chapter and perform official duties. Any person who violates this provision may be fined, suspended or removed from office or employment in the manner provided under other provisions of the Cincinnati Municipal Code, in addition to any other applicable proceedings and penalties for violation of trade secret protections provided for under existing law.

(D) To the extent that disclosure of the chemical name or location of toxic or hazardous substances constitutes disclosure of trade secret information, the employer may condition access to

such information upon acceptance of a reasonable confidentially agreement by the person or persons requesting or receiving the trade secret information. The agreement may restrict the use of the information to safety and health purposes, prohibit of disclosure of the information to anyone other than a treating health professional without the prior notification of the employer, and provide for compensation or other legally appropriate relief for any competitive harm which results from a breach of the agreement.

(E) Notwithstanding any other provision of this chapter, the fire chief, or his designated representative, is authorized to disclose trade secret information as designated by an employer when such action is necessary to properly protect health, safety or property in an emergency situation.

(Ordained by Ord. No. 210-1982, eff. July 3, 1982; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1247-33. Waiver of Rights Invalid.

Any waiver by an employee or applicant for employment of the benefits of this chapter is against public policy and is null and void.
(Ordained by Ord. No. 210-1982, eff. July 3, 1982; repealed and reordained by Ord. No. 385-1984, eff. Sept. 6, 1984)

Sec. 1247-35. Remedies and Complaint Procedure for Employees.

Any employee who has been discharged, disciplined, or otherwise discriminated against by an employer in violation of this chapter may, within 180 days after the violation occurs or 180 days after the employee first obtains knowledge that a violation has occurred, commence an action in any appropriate court of law alleging wrongful dismissal in violation of this chapter.

In addition to, but not in lieu of, the above-described action, any employee may commence any action in any appropriate court of law to enforce any obligation, duty, or responsibility imposed upon him or his employer under the provisions of this chapter.
(Ordained by Ord. No. 210-1982, eff. July 3, 1982; repealed and reordained by Ord. No 385-1984, eff. Sept. 6, 1984)

Sec. 1247-37. Good Faith Report.

Employers are also encouraged to conduct additional education programs, label substances and containers not covered by this chapter, and otherwise conduct business in accord with the goals and purposes of this chapter. In the event of a violation of provisions of this chapter, such good faith efforts to comply may be considered in determining appropriate penalties.
(Ordained by Ord. No. 210-1982, eff. July 3, 1982; repealed and reordained by Ord. No 385-1984, eff. Sept. 6, 1984)

Sec. 1247-39. Severability.

If any provision or section of this chapter or the enforcement of any such provision or section is held to be invalid or unenforceable by a court of competent jurisdiction, such invalidity or unenforceability shall not affect or render invalid or unenforceable any other provision or section of this chapter. To this end, each of the provisions and sections of this chapter are severable.
(Ordained by Ord. No. 210-1982, eff. July 3, 1982; repealed and reordained by Ord. No 385-1984, eff. Sept. 6, 1984)

Sec. 1247-41. Implementation Schedule.

In order to provide a grace period during which employers may make these provisions necessary to comply with this chapter, no enforcement proceedings or penalties may be

imposed or begun against employers except for violations occurring after the following dates:

(a) For employers having more than 250 total employees at workplaces within Cincinnati, eight months following the effective date of this chapter;

(b) For employers engaged in the business of construction or reconstruction, 13 months after the effective date of this chapter, regardless of the number of employees;

(c) For employers having at least 25 and no more than 250 total employees at workplaces within Cincinnati, one year following the effective date of this chapter;

(d) For employers having fewer than 25 total employees at workplaces in Cincinnati, 18 months after the effective date of this chapter.

(Ordained by Ord. No. 210-1982, eff. July 3, 1982; repealed and reordained by Ord. No 385-1984, eff. Sept. 6, 1984)

Sec. 1247-99. Penalties.

Any employer, person, firm or corporation or other business entity who (which) violates any provision of this chapter for which another penalty is not elsewhere specifically provided shall be fined not more than $500.
(Ordained by Ord. No. 210-1982, eff. July 3, 1982; repealed and reordained by Ord. No 385-1984, eff. Sept. 6, 1984)

Chapter 1249

PROHIBITIONS IN THE REGULATORY FLOODWAY (REPEALED)*

*__Editor's note—__Repealed by Ord. No. 197-1988, eff. July 2, 1988 and by Ord. No. 254-1989 eff. July 28, 1989.
Existing Ch. 1249 was declared unconstitutional and the city was enjoined from enforcing it in Queen City Terminals, Inc., et al. v. City of Cincinnati, United States District Court for the Southern District of Ohio, Western Division, Case No. C-1-85-1262. The city has elected to settle that case without appeal from the order declaring Ch. 1249 unconstitutional and enjoining the city from enforcing its provisions.

Chapter 1251

FIRE STARTING APPARATUS

Sec. 1251-1. Definitions.
Sec. 1251-1-A. Fire Starting Apparatus.
Sec. 1251-1-C. Custodian.
Sec. 1251-1-W. Ward.
Sec. 1251-3. Possession of Fire Starting Apparatus Prohibited.
Sec. 1251-4. Permitting Access to Fire Starting Apparatus.
Sec. 1251-5. Failure to Remove Fire Starting Apparatus.
Sec. 1251-7. Sale or Transfer of Fire Starting Apparatus.
Sec. 1251-9. Supervised Possession Permitted.
Sec. 1251-11. Affirmative Defense.
Sec. 1251-99. Penalty.

Sec. 1251-1. Definitions.

For purposes of this chapter, the words and phrases defined in the sections hereunder shall have the meanings respectively ascribed to them unless a different meaning is clearly indicated by the context.
(Ordained by Ord. No. 291-1997, eff. Oct. 3, 1997)

Sec. 1251-1-A. Fire Starting Apparatus.

"Fire Starting Apparatus" means a cigarette lighter, match, and any other device designed to initiate a fire.
(Ordained by Ord. No. 291-1997, eff. Oct. 3, 1997)

Sec. 1251-1-C. Custodian.

"Custodian" means any natural parent having custody of a minor, and "guardian" as defined in Chapter 2111 of the Ohio Revised Code, any individual having "legal custody", "permanent custody", or "temporary custody" as these terms are defined in Chapter 2151 of the Ohio Revised Code. Custodian shall also mean any adult who voluntarily assumes, either temporarily of permanently, the duty to care for or supervise a minor.

For purposes of this chapter, teachers and administrators acting within the scope of their employment at educational institutions, volunteers of religious, charitable, educational, or civic organizations and acting within the scope of their volunteer activities are not custodians.
(Ordained by Ord. No. 291-1997, eff. Oct. 3, 1997)

Sec. 1251-1-W. Ward.

"Ward" means any child under the age of twelve years in the care or protection of a custodian.
(Ordained by Ord. No. 291-1997, eff. Oct. 3, 1997)

Sec. 1251-3. Possession of Fire Starting Apparatus Prohibited.

No custodian shall negligently, recklessly, or intentionally permit a ward to possess fire starting apparatus.
(Ordained by Ord. No. 291-1997, eff. Oct. 3, 1997)

Cross reference—Penalty, § 1251-99.

Sec. 1251-4. Permitting Access to Fire Starting Apparatus.

No custodian shall negligently, intentionally or recklessly permit a ward to have access to fire starting apparatus.
(Ordained by Ord. No. 291-1997, eff. Oct. 3, 1997)

Cross reference—Penalty, § 1251-99.

Sec. 1251-5. Failure to Remove Fire Starting Apparatus.

A custodian who discovers, determines, or who should have reasonably discovered or determined, that a ward possess a fire starting apparatus shall, at once, take possession of such fire starting apparatus.
(Ordained by Ord. No. 291-1997, eff. Oct. 3, 1997)

Cross reference—Penalty, § 1251-99.

Sec. 1251-7. Sale or Transfer of Fire Starting Apparatus.

No person shall negligently, intentionally or recklessly sell, barter, lend, provide, give or otherwise transfer possession of fire starting apparatus to a child under twelve years of age.
(Ordained by Ord. No. 291-1997, eff. Oct. 3, 1997)

Cross reference—Penalty, § 1251-99.

Sec. 1251-9. Supervised Possession Permitted.

Notwithstanding anything else in this chapter, a custodian may permit a ward to possess and use fire starting apparatus while, and

only while, the custodian is actively supervising the ward in the use of the fire starting apparatus.
(Ordained by Ord. No. 291-1997, eff. Oct. 3, 1997)

Sec. 1251-11. Affirmative Defense.

It shall be an affirmative defense, for any person charged with a violation of Section 1251-7 hereof, that a purchaser exhibited to the person charged with the offense identification which a reasonable person would believe shows that the purchaser was twelve years of age or older.
(Ordained by Ord. No. 291-1997, eff. Oct. 3, 1997)

Sec. 1251-99. Penalty.

Whoever violates this chapter is guilty of a Class D Civil offense if the possession by the ward did not result in death or harm to an individual or damage to property. If the possession by the ward resulted in harm or death to an individual or damage to property then the offender is guilty of a fourth degree misdemeanor.
(Ordained by Ord. No. 291-1997, eff. Oct. 3, 1997)

TITLE XIV
ZONING CODE OF THE CITY OF CINCINNATI*

Chapter 1400

GENERAL PROVISIONS AND RULES FOR MEASUREMENT

§ 1400-01. Title.
§ 1400-03. Purposes.
§ 1400-05. Applicability.
§ 1400-07. Zoning Designation System.
§ 1400-09. Interpretation.
§ 1400-11. Establishment of Zoning Districts.
§ 1400-13. Establishment of Special Review Districts.
§ 1400-15. District Hierarchy.
§ 1400-17. Zoning Map.
§ 1400-19. Declaration of Unconstitutionality.
§ 1400-21. Interpretation of District Boundaries.
§ 1400-23. Principal Structures.
§ 1400-25. Lots Divided by District Boundaries.
§ 1400-27. Measurements.
§ 1400-27-D. Distances.
§ 1400-27-F. Determining Floor Area Ratio.
§ 1400-27-F-1. Fractions.
§ 1400-27-H. Height.
§ 1400-27-L. Lot Width.
§ 1400-27-S. Minimum Separation Distance.
§ 1400-27-S1. Setback Averaging.
§ 1400-27-S2. Square Footage, Multiple Uses by Single Entity.

***Editor's note—**As Enacted By Council Under Authority of the City of Cincinnati by Ordinance 15-2004, Effective 2-13-04, and Repealing the Previous Zoning Code and Amendments Thereto.

Cross references—Public utilities, tit. IV; hearings on zoning regulations, § 111-1; sexually oriented businesses and employees, ch. 899.

§ 1400-01. Title.

This Title XIV of the Municipal Code is known and may be cited as the Cincinnati Zoning Code.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1400-03. Purposes.

The Cincinnati Zoning Code is adopted to:

(a) Provide a guide for the physical development of the city.

(b) Preserve the character and quality of residential neighborhoods.

(c) Foster convenient, harmonious and workable relationships among land uses.

(d) Achieve the arrangement of land uses described in the comprehensive plan for the development of the City as may have been adopted by Council.

(e) Promote the economic stability of existing land uses and protect them from intrusions by inharmonious or harmful land uses.

(f) Provide opportunities for economic development and new housing for all segments of the community.

(g) Create pedestrian-friendly environments to reduce reliance on the automobile for travel.

(h) Prevent excessive population densities and overcrowding of land or buildings.

(i) Ensure the provision of adequate open space for light, air and fire safety.

(j) Ensure that development is compatible with the environment, particularly on the hillsides and along the riverfront.

(k) Promote the conservation, protection, restoration and enhancement of the historic resources of the city.

(l) Lessen congestion in the public streets by providing for off-street parking and loading areas for commercial vehicles.

(m) Provide effective signage that is compatible with the surrounding urban environment.

(n) Set standards by which a nonconforming use may continue to function and to provide for the adaptive reuse of nonconforming buildings.

(o) Define the powers and duties of the administrative officers, hearing officers and the Zoning Board of Appeals.

(p) Provide penalties for violations of the provisions of the Cincinnati Zoning Code.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1400-05. Applicability.

All development must comply with the standards, criteria and procedures of the Cincinnati Zoning Code. Development may not be undertaken without prior authorization pursuant to the Cincinnati Zoning Code.

(a) *Applicability to Property.* The Cincinnati Zoning Code applies to all land within the City of Cincinnati, including land owned by the City of Cincinnati and other local, state, or federal agencies to the extent allowed by law. Application of regulations to specific lots is governed by the zoning map.

(b) *Compliance with Regulations.* Land may not be used, and structures may not be constructed, occupied, enlarged, altered, demolished or moved, except in accord with the provisions of the Cincinnati Zoning Code.

(c) *Public Nuisance.* Neither the provisions of this Chapter nor the approval of any permit authorized by the Cincinnati Zoning Code authorizes the maintenance of any public nuisance.

(d) *Conflict with Other Regulations.* Where conflict occurs between the provisions of the Cincinnati Zoning Code and any other City code, chapter, resolution, guideline or regulation, the more restrictive provision controls, unless otherwise specified in this Chapter.

(e) *Extension of Time for Holidays and Weekends.* If a deadline falls on a weekend or holiday, the time for performing an act is extended to the next working day.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1400-07. Zoning Designation System.

Land use and development regulations applicable to specific sites are shown on the Zoning Map by zoning designations consisting of classes of letter designators:

(a) *Land Use Regulations Designator.* This designator indicates the principal land uses permitted or conditionally permitted in each district and is a component of all zoning designations, for example, SF Single-family Residential District, RM Residential Multi-family District or CN Commercial Neighborhood District.

(b) *Residential Density Designator.* This designator indicates a subdistrict with a specific range of dwelling unit densities as a component of certain residential zoning designations, for example, SF-20 Single-family Residential District is the lowest density range, which requires 20,000 square feet for every dwelling unit. RM-2.0 requires 2,000 square feet for every dwelling unit.

(c) *Subarea Designation.* Within the DD Downtown Development District, subdistricts are designated by letters (A, B, C or D) following the zoning district designation. Similarly, in the commercial districts, subarea designations are used for Pedestrian (P), Mixed (M), and Automobile Oriented (A).

(d) *Special Review District Designators.* These designators are included in a zoning designation if the provisions of one or more districts are applicable to a site or area. For example, HS indicates that the property is within a Hillside District.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1400-09. Interpretation.

The provisions of the Cincinnati Zoning Code are the minimum requirements, adopted for the promotion of the public health, safety, convenience, comfort, prosperity and general welfare. Where the Cincinnati Zoning Code imposes a greater restriction on the use of buildings or premises or on the heights of buildings, or requires larger setbacks, lot area for every dwelling unit, or other open spaces, or requires more parking and loading space or is in any way more restrictive than other provisions of law or ordinance, the provisions of the Cincinnati Zoning Code control.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1400-11. Establishment of Zoning Districts.

For the purposes of the Cincinnati Zoning Code, the City of Cincinnati is divided into 24 zoning districts. These zoning districts are intended to:

(a) *Location and Use.* Regulate and restrict the location and use of buildings and land for residence, commerce and trade, industry, transportation, communications and utilities and other purposes.

(b) *Dimensions.* To regulate and restrict the height and size of buildings and structures hereafter erected or structurally altered, the size of yards, setbacks, other open spaces and the density of population.

(c) *Standards.* To establish site development and design standards, subdivision standards and requirements for adequate public facilities and services.

Base zoning districts and chapter references are shown in Schedule 1400-11. References to classes of districts (SF, RM, C, UM, DD, M, RF, PR and IR) include all of the subdistricts.

Schedule 1400-11: Establishment of Zoning Districts

Base Districts and Chapter Reference	*District*
1403 Single-family Districts	Single-family (SF-20) Single-family (SF-10) Single-family (SF-6) Single-family (SF-4) Single-family (SF-2)
1405 Multi-family Districts	Residential Mixed (RMX) Residential Multi-family (RM-2.0) Residential Multi-family (RM-1.2) Residential Multi-family (RM-0.7)
1407 Office Districts	Office Limited (OL) Office General (OG)
1409 Commercial Districts	Commercial Neighborhood (CN) Commercial Community (CC) Commercial General (CG)
1410 Urban Mix District	Urban Mix (UM)
1411 Downtown Development District	Downtown Development (DD)

Base Districts and Chapter Reference	*District*
1413 Manufacturing Districts	Manufacturing Agricultural (MA) Manufacturing Limited (ML) Manufacturing General (MG) Manufacturing Exclusive (ME)
1415 Riverfront Districts	Riverfront Residential/Recreational (RF-R) Riverfront Commercial (RF-C) Riverfront Manufacturing (RF-M)
1416 Parks and Recreation District	Parks and Recreation (PR)
1417 Institutional-Residential Districts	Institutional-Residential (IR)

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0221-2007, § 1, eff. July 6, 2007; a. Ord. No. 0060-2008, § 1, eff. March 13, 2008; a. Ord. No. 257-2007, § 1, eff. Aug. 27, 2007)

§ 1400-13. Establishment of Special Review Districts.

For the purposes of the Cincinnati Zoning Code, special review districts may be applied to the zoning districts established in § 1400-11.

Schedule 1400-13: Establishment of Special Review Districts

Special Review Districts and Chapter Reference	*District Name*
1429 Planned Development District	Planned Development (PD)
1431 Interim Development Control Districts	Interim Development Control (IDC)
1433 Hillside Districts	Hillside Overlay (HS)
1435 Historic Landmarks and Districts	Historic Landmarks (HL); Historic Districts (HD)
1437 Urban Design Districts	Urban Design (UD)

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1400-15. District Hierarchy.

The term "more restrictive" district applies to any district in the sequence set forth in Schedule 1400-15 that precedes any other district in Schedule 1400-15 and the term "less restrictive" applies to any district which succeeds any other district in Schedule 1400-15.

Schedule 1400-15: District Hierarchy

(a) Single-family (SF-20)

(b) Single-family (SF-10)

(c) Single-family (SF-6)

(d) Single-family (SF-4)

(e) Single-family (SF-2)

(f) Manufacturing Agricultural (MA)

(g) Residential Mixed (RMX)

(h) Residential Multi-family (RM-2.0)

(i) Residential Multi-family (RM-1.2)

(j) Residential Multi-family (RM-0.7)

(k) Riverfront Residential/Recreational (RF-R)

(l) Office Limited (OL)

(m) Office General (OG)

(n) Institutional-Residential (IR)

(o) Commercial Neighborhood-Pedestrian (CN-P)

(p) Commercial Community-Pedestrian (CC-P)

(q) Commercial Neighborhood-Mixed (CN-M)

(r) Downtown Development (DD)

(s) Commercial Community-Mixed (CC-M)

(t) Commercial Community-Auto Oriented (CC-A)

(u) Urban Mixed (UM)

(v) Manufacturing Limited (ML)

(w) Commercial General-Auto Oriented (CG-A)

(x) Manufacturing Exclusive (ME)

(y) Riverfront Commercial (RF-C)

(z) Riverfront Manufacturing (RF-M)

(aa) Manufacturing General (MG)

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0221-2007, § 2, eff. July 6, 2007; a. Ord. No. 0060-2008, § 2, eff. March 13, 2008)

§ 1400-17. Zoning Map.

The boundaries of these districts are established as shown on the Zoning Map that accompanies and is a part of the Cincinnati Zoning Code.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1400-19. Declaration of Unconstitutionality.

Whenever a court declares, by a judgment or decree that is final and further appeal is no longer available, that the zoning of property is unconstitutional or otherwise invalid, the property affected is thereupon subject to the restrictions applicable to the next less restrictive district. Provided however, if the court, in such judgment or decree, declares that the property may be used for a particular use or uses because the City has no right to prohibit such use or uses on the property, then the property shall be subject to the restrictions applicable to the most restrictive district in which the particular use or uses declared proper by the court are permitted. The zoning restrictions made applicable to property pursuant to this section remain in effect for a period not to exceed 120 days after the judgment or decree declaring the

prior zoning unconstitutional or invalid becomes final. The purpose of this section is to prevent property from being unzoned from the time the zoning thereof is held unconstitutional or invalid until rezoned by Council.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1400-21. Interpretation of District Boundaries.

Where uncertainty exists regarding the boundary of a zoning district, the following rules apply:

(a) *Property Lines.* District boundaries shown as approximately following the property line of a lot are construed to follow such property line.

(b) *Scale.* On unsubdivided land or where a district boundary divides a lot, the location of the district boundary is determined by using the scale appearing on the zoning map, unless the boundary location is indicated by dimensions printed on the map.

(c) *Boundary Lines.* District boundaries shown as approximately following right-of-way lines of freeways, streets, railroads, streams, corporations or other identifiable boundary lines are construed to follow such right-of-way or boundary lines.

(d) *Centerlines.* District boundaries shown as lying within right-of-way lines of freeways, streets, railroads, streams, corporations or other identifiable boundary lines are construed to follow the centerline of such right-of-way or boundary lines.

(e) *Uncertainty.* If any uncertainty remains as to the location of a district boundary or other feature shown on the zoning map, the Director of City Planning has the duty to determine the location.

The Director of City Planning has the duty to keep a record of interpretations made pursuant to this section and keep them available to the public.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; Emer. Ord. No. 141-2015, § 1, eff. July 1, 2015)

§ 1400-23. Principal Structures.

No more than one principal structure may be constructed on a lot unless the development of more than one structure has been approved pursuant to §1419-12, Community Learning Centers or Chapter 1429, Planned Development Districts.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 127-2018, § 1, eff. July 6, 2018; a. Emer. Ord. No. 199-2024, § 2, eff. 7-1-2024)

§ 1400-25. Lots Divided by District Boundaries.

Where a district boundary divides a lot in single ownership and of record prior to and continuously since the time the district boundary line was established, the use authorized on and the district requirements of the least restricted portion of the lot are construed as extending to the entire lot; provided that the extension may not include any part of the lot that is more than 25 feet from that district boundary.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1400-27. Measurements.

The sections that follow explain how various measurements referenced in the Cincinnati Zoning Code are to be calculated.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1400-27-D. Distances.

Distances are measured as follows:

(a) *Distances Are Measured Horizontally.* When determining distances for setbacks and structure dimensions, all distances are measured along a horizontal plane from the appropriate line, edge of building, structure, storage area, parking area or other object. These distances are not measured by following the topography of the land.

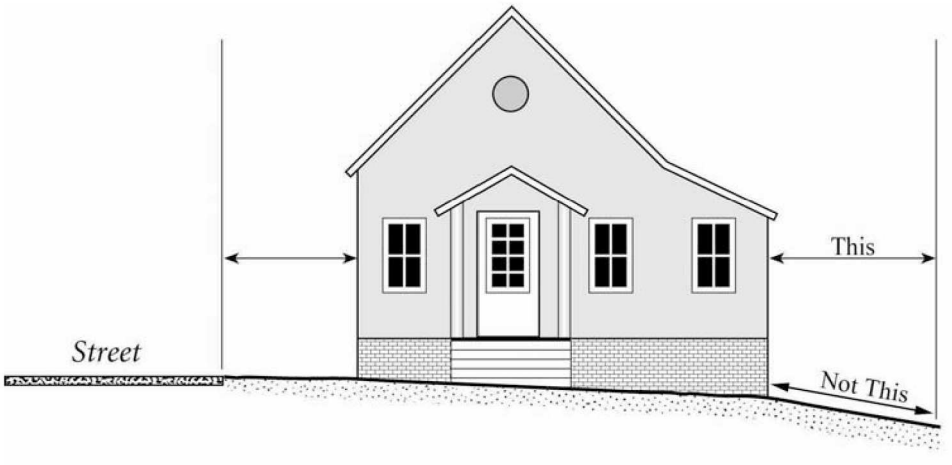

FIGURE 1400-27-D-A Measuring Distances Horizontally

(b) *Measurements are Shortest Distance.* When measuring a required distance, such as the minimum distance between a structure and a lot line, the measurement is made at the closest or shortest distance between the two objects. Exceptions are stated in Subsections (c), (d) and (e) below.

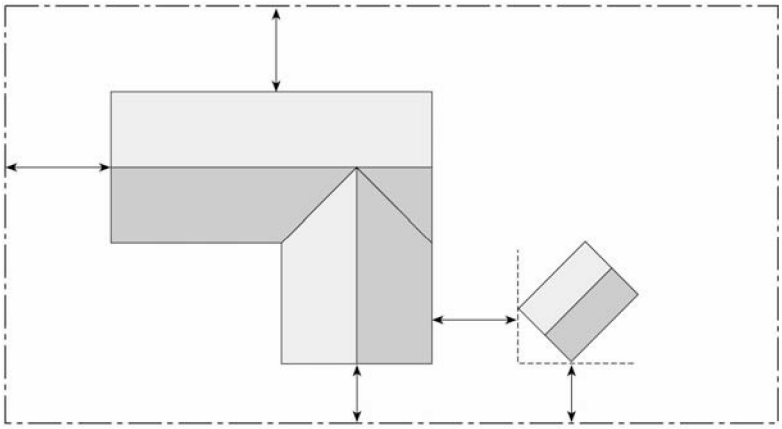

FIGURE 1400-27-D-B Measuring Shortest Distance

(c) *Measurement of Vehicle Stacking or Travel Areas.* Measurement of a minimum travel distance for vehicles, such as garage entrance setbacks and stacking lane distances, is measured down the center of the vehicle travel area. For example, curving driveways and travel lanes are measured along the arc of the driveway or traffic lane.

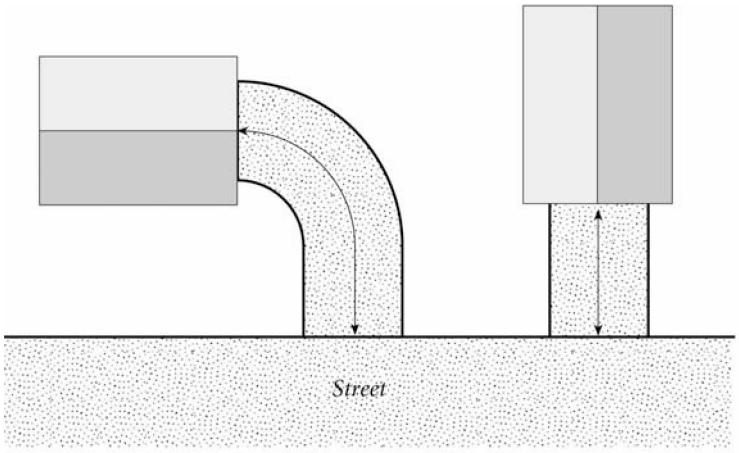

FIGURE 1400-27-D-C Measuring Vehicle Stacking or Travel Areas

(d) *Measurements Involving a Structure.* Measurements involving a structure are made to the closest wall of the structure. Chimneys, eaves and bay windows up to 12 feet in length, are not included in the measurement. Other features, such as covered porches and entrances, are included in the measurement.

(e) *Underground Structures.* Structures or portions of structures that are entirely underground are not included in measuring required distances.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1400-27-F. Determining Floor Area Ratio.

The floor area ratio is measured as the proportion of allowable building gross floor area divided by the area of the parcel of land on which the building rests. For purposes of calculating the floor area ratio, gross floor area associated with the following is excluded:

(a) Attic space having a headroom of seven feet or less.

(b) Space devoted exclusively to parking and loading within the building.

(c) Utility or furnace rooms.

(d) Space used for incidental service storage.

(e) Space used for the installation of mechanical equipment, ventilators, heating systems and similar uses.

(f) Space for the common recreational use of tenants and guests that is not part of a dwelling unit.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0346-2007, § 1, eff. Oct. 13, 2007)

§ 1400-27-F-1. Fractions.

When calculations result in fractions the results are rounded as follows:

(a) Minimum Requirements. When a regulation is expressed in terms of a minimum requirement, any fractional result over 0.5 is rounded up to the next consecutive whole number.

(b) Maximum Limits. When a regulation is expressed in terms of maximum limits, any fractional result will be rounded down to the next lower whole number. For example, if a maximum limit of one dwelling unit for every 20,000 square feet in the SF-20 district is applied to a 50,000 square foot site, the resulting fraction of 2.5 is rounded down to two allowed dwelling units.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1400-27-H. Height.

Height is measured as follows:

(a) *Measuring Building Height.* Building height is measured from the established grade in the front of the lot or from the average natural grade at the building line, if higher to the top of the cornice of flat roofs, or to the deck line of a mansard roof, or to the mid-height of the highest gable or dormer in a pitched or hipped roof, or, if there are no gables or dormers, to the mid-height of a pitched or hipped roof.

(b) *Measuring Height of Other Structures.* The height of other structures such as fences is the vertical distance from the ground level immediately under the structure to the top of a structure. Special measurement provisions are also provided below.

(c) *Measuring Height of Fences on Top of Retaining Walls.* Fences on the top of retaining walls are measured from the top of the retaining wall.

(d) *Measuring Height of Decks.* Deck height is determined by measuring from the ground to the top of the floor of the deck if there is no rail and from the average finished grade to the top of the rails for all other situations.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1400-27-L. Lot Width.

The horizontal distance between the side lot lines as measured from the midpoint of one side lot line to the midpoint of the other side lot line.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1400-27-S. Minimum Separation Distance.

In cases where a minimum separation distance applies, the minimum distance is measured in a straight line, without regard to intervening structures, from the closest property line of the use being regulated to the closest property line, district boundary line or use from which the minimum distance is required.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1400-27-S1. Setback Averaging.

Certain regulations allow for setbacks to be averaged. In these situations, the required setback may be reduced to the average of the existing setbacks of the lots that are on both sides of the site. The following rules apply in calculating the average setback:

(a) *Abutting Setbacks.* Only the setbacks on the lots that abut each side of the site and are on the same street may be used. Setbacks across the street or along a different street may not be used.

(b) *Vacant Abutting Lots and Corner Lots.* When one abutting lot is vacant, the average is of the setback of the abutting non-vacant lot and the required setback for the vacant lot. When the subject lot is a corner lot, the average is of the setback of the abutting

non-vacant lot and the required setback of the subject lot.

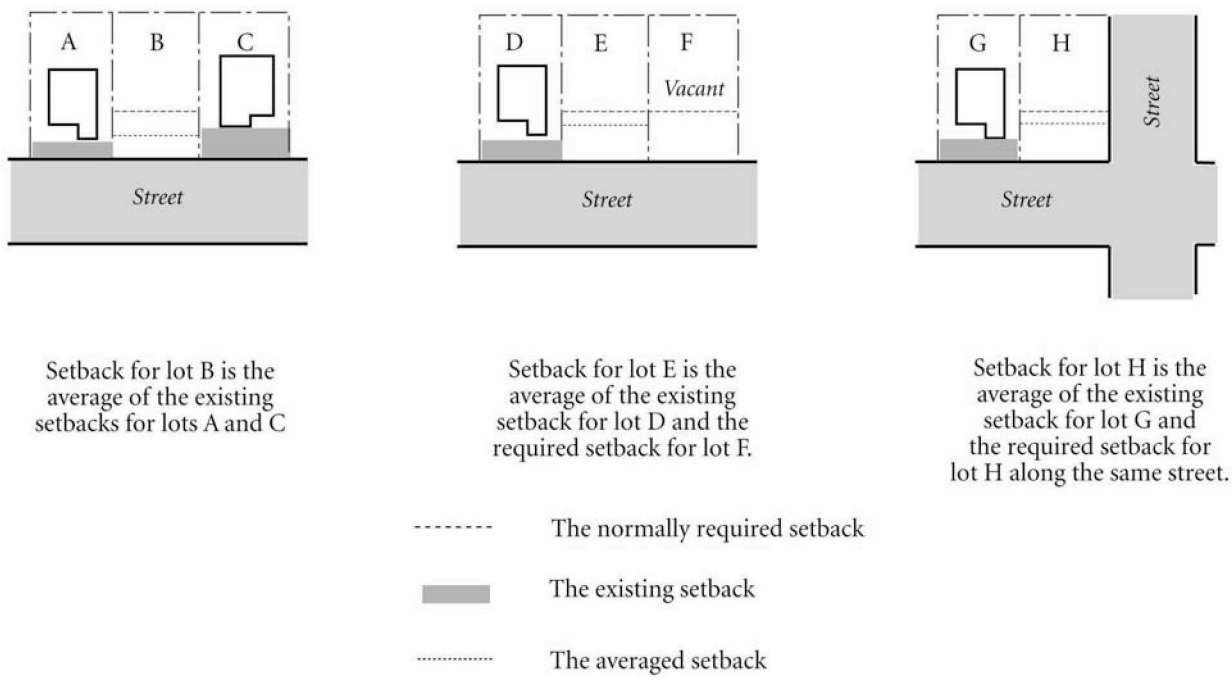

FIGURE 1400-27-S1 Examples of Front Yard Averaging

§ 1400-27-S2. Square Footage, Multiple Uses by Single Entity.

When determining total square footage, an establishment with multiple uses/products operating under one roof, on the same building footprint and controlled by a unifying entity shall have the square footage devoted to each separate use/product category combined and measured for a total square foot calculation.
(Ordained by Ord. No. 376-2006, § 1, eff. Jan. 20, 2007)

Chapter 1401

DEFINITIONS

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§ 1401-01-A3. Accessory Use.
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§ 1401-01-R17. Rowhouse, Single-Family.
§ 1401-01-S. School.
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§ 1401-01-S2. Semi-Public Use.
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§ 1401-01-S12. Street.
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§ 1401-01-W2. Watercraft and Riverfront Facility.
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§ 1401-01-W4. Wireless Communication Antenna.
§ 1401-01-W5. Wireless Communication Tower.
§ 1401-01-W6. Wireless Equipment Shelter or Cabinet.
§ 1401-01-Y. Yard.
§ 1401-01-Y1. Yard, Front.
§ 1401-01-Y2. Yard, Rear.
§ 1401-01-Y3. Yard, Side.
§ 1401-01-Z. Zoning Administrator.

§ 1401-01. Definitions.

For purposes of the Cincinnati Zoning Code, words and phrases defined in this chapter have the meanings ascribed to them; additional definitions are in particular chapters of the Code.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-A1. Abutting or Adjoining.

"Abutting" or "adjoining" means having district boundaries or lot lines in common.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-A1A. Accessory Dwelling Unit.

"Accessory dwelling unit" means a self-contained dwelling unit designed for occupancy by one family for living and sleeping purposes that provides complete independent living facilities, including its own entrance, kitchen, bathroom, and sleeping area; that is located on the same lot as a larger single-family dwelling that serves as the principal use of the lot; and whose use is subordinate and incidental to the larger single-family dwelling.
(Ordained by Ord. No. 266-2023, § 1, eff. Oct. 2, 2023)

§ 1401-01-A2. Accessory Structure.

"Accessory structure" means a structure, other than a sign, exclusively associated with a specified principal structure located more than one foot from the principal structure.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 415-2010, § 1, eff. Dec. 24, 2010)

§ 1401-01-A3. Accessory Use.

"Accessory use" means a use or structure subordinate, customarily incidental and exclusive to the principal use of a building or land and located on the same lot as the principal building or use except as otherwise specified.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 415-2010, § 3, eff. Dec. 24, 2010)

§ 1401-01-A4. Agricultural Structure.

"Agricultural Structure" means a structure used solely for agricultural purposes in which the use is exclusively in connection with the production, harvesting, storage, drying, or raising of agricultural commodities, including the raising of livestock. Agricultural Structures include passive solar structures such as greenhouses, membrane structures, low tunnels, frost frames, and hoophouses. Agricultural Structures must be determined by the Zoning Administrator to be customarily incidental to Horticulture or Animal Keeping Use.
(Ordained by Ord. No. 251-2019, § 2, eff. July 26, 2019)

§ 1401-01-A5. Alley.

"Alley" means a public or private way less than 21 feet in width that may provide vehicular access to abutting properties.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; renumbered by Ord. No. 251-2019, § 3, eff. July 26, 2019)

§ 1401-01-A6. Alteration.

"Alteration" means a change in either the supporting members of a building, such as bearing walls, columns, beams and girders or in the dimensions or configuration of the roof or exterior walls.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; renumbered by Ord. No. 251-2019, § 3, eff. July 26, 2019)

§ 1401-01-A7. Ambulance Services.

"Ambulance services" means administrative facilities for emergency medical care, including the provision of transportation services and the maintenance of vehicles.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; renumbered by Ord. No. 251-2019, § 3, eff. July 26, 2019)

§ 1401-01-A8. Animal Keeping.

"Animal keeping" means the keeping of any animals, including fish and insects, for any purpose, including, but not limited to, companionship, commercial breeding, and/or the raising for human consumption. Types of Animal Keeping may include:

(a) *Apiary*. Any structure where one or more colonies or nuclei of bees are kept.

(b) *Aquaculture*. The cultivation, maintenance, and harvesting of aquatic species.

(c) *Aquaponics*. The combination of aquaculture and hydroponics to grow food or ornamental crops and aquatic species together in a recirculating system without any discharge or exchange of water.

(Ordained by Ord. No. 251-2019, § 2, eff. July 26, 2019; a. Emer. Ord. No. 418-2021, §§ 1, 39, 40, eff. Nov. 10, 2021)

Cross reference—§ 1422-03(d), "Animal Keeping."

§ 1401-01-A9. Animal Service Facilities.

"Animal Service Facilities" means the boarding, grooming, day care or medical care for animals, contained within a structure, enclosure, fencing, usually with the intention that the animals are within the premises for commercial purposes, often for limited periods of time. Animal Service Facilities includes breeding facility, boarding facility, kennels, livery, pet shops, pet day care, shelters, stables, veterinarians. This classification does not include dog walking and similar pet care services that are not carried out at a fixed location.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; renumbered by Ord. No. 251-2019, §§ 3, 4, eff. July 26, 2019)

§ 1401-01-A10. Antenna.

"Antenna" means a system of poles, panels, rods or similar devices used for the transmission or reception of radio frequency signals.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; renumbered by Ord. No. 251-2019, § 3, eff. July 26, 2019)

§ 1401-01-A11. Architectural Element.

"Architectural element" means a prominent or significant part or detail of a building, structure or site.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; renumbered by Ord. No. 251-2019, § 3, eff. July 26, 2019)

§ 1401-01-A12. Arterial Street.

"Arterial street" means a roadway primarily for through traffic, usually on a continuous route not having access control. This term includes both principal arterial and minor arterial streets as classified by the Department of Transportation and Engineering.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; renumbered by Ord. No. 251-2019, § 3, eff. July 26, 2019)

§ 1401-01-A13. Assisted Living.

"Assisted living" means an institution, residence or facility licensed by the State of Ohio that provides accommodation and personal assistance to more than three residents who are dependent on the services of others by reason of age and physical or mental impairment, but that is not licensed to provide skilled nursing care.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; renumbered by Ord. No. 251-2019, § 3, eff. July 26, 2019)

§ 1401-01-A14. Attached Single-Family Dwelling.

"Attached single-family dwelling" means a dwelling unit that is attached to one or more dwelling units, each with independent exterior access and each with no less than two exterior walls.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; renumbered by Ord. No. 251-2019, § 3, eff. July 26, 2019; a. Emer. Ord. No. 199-2024, § 2, eff. 7-1-2024)

§ 1401-01-A15. Automated Teller Machine (ATM).

"Automated Teller Machine (ATM)" means an electronic device used by the public for conducting financial transactions such as withdrawing or depositing cash from a bank, savings, credit union, credit card or similar account wherein the customer operates the device independently.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; renumbered by Ord. No. 251-2019, § 3, eff. July 26, 2019)

§ 1401-01-A16. Automobile Holding Facility.

"Automobile holding facility" means a building or ground area used for the parking of vehicles needing mechanical, body or chassis repair being vehicles not owned by the person who towed the vehicle or the person who will make the repairs and not involving the removing of parts, accessories, equipment or sections or portions thereof for sale to others or the keeping, buying or selling of junked, wrecked, scrapped, ruined or dismantled motor vehicles.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; renumbered by Ord. No. 251-2019, § 3, eff. July 26, 2019)

§ 1401-01-A17. Awning.

An "Awning" is an architectural projection that provides weather protection, identity or decoration and is wholly supported by the building to which it is attached. An awning is comprised of a lightweight, rigid skeleton structure over which a covering is attached. An awning may be fixed or of a type that can be retracted, folded or collapsed.
(Ordained by Ord. No. 171-2006, § 1, eff. July 14, 2006; renumbered by Ord. No. 251-2019, § 3, eff. July 26, 2019)

§ 1401-01-B. Bank and Financial Institution.

"Bank" and "financial institution" means an establishment that provides retail banking, credit and mortgage services to individuals and businesses. This classification includes banks and savings and loan establishments, brokerage firms, check cashing and currency exchange outlets and stand-alone automated teller machines.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-B1. Barge Terminal.

"Barge terminal" means facilities for launching, mooring, docking, loading, unloading and servicing river barges, including backup land for storage and transshipment.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-B2. Basement.

"Basement" means the portion of a building below or immediately above grade and not used for habitation, except that in any building a basement may be used for habitation if one wall of the basement is entirely above ground and each dwelling unit in the basement abuts that wall for at least 12 feet.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-B3. Bed and Breakfast Home.

"Bed and breakfast home" means an owner-occupied dwelling licensed as a rooming house, pursuant to Chapter 855 of the Municipal Code, of no more than three guest rooms providing lodging and breakfast accommodations to paying guests and a maximum stay of no more than four consecutive weeks. Kitchen facilities are not provided for use by guests.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-B4. Bed and Breakfast Inn.

"Bed and breakfast inn" means an establishment licensed, pursuant to Chapter 855 of the Municipal Code, of no more than five guest rooms providing lodging and meal accommodations to paying guests and a maximum stay of no more than four consecutive weeks. Kitchen facilities are not provided for use by guests.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-B5. Berm.

"Berm" means a mound or embankment of earth, together with necessary retaining structures, if required.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-B6. Bicycle Parking Space.

"Bicycle Parking Space" means an area of no less than 2 feet in width by 6 feet in length provided for securing a bicycle to a bicycle rack, bicycle locker, or similar system for securing a bicycle.
(Ordained by Ord. No. 156-2010, § 2, eff. June 12, 2010)

§ 1401-01-B7. Block Face.

"Block face" means the properties abutting each other on one side of the street, and lying between the two nearest intersection or intercepting streets.
(Ordained by Ord. No. 297-2009, § 1, eff. Dec. 12, 2009; a. Ord. No. 156-2010, § 3, eff. June 12, 2010)
Editor's note—Formerly § 1401-01-B6.

§ 1401-01-B8. Boat and Ship Yard.

"Boat and ship yard" means a facility for construction of recreational marine craft in enclosed structures, boat storage, boat repair yards and ship yards for the construction, repairing and servicing of commercial vessels including tug boats, barges and ferries.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 297-2009, § 2, eff. Dec. 12, 2009; a. Ord. No. 156-2010, § 4, eff. June 12, 2010)
Editor's note—Formerly § 1401-01-B7.

§ 1401-01-B9. Breezeway.

"Breezeway" means a roofed, passageway connecting two structures, an example is a passageway between a house and a garage.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 297-2009, § 3, eff. Dec. 12, 2009; a. Ord. No. 156-2010, § 5, eff. June 12, 2010)
Editor's note—Formerly § 1401-01-B8.

§ 1401-01-B10. Buffer Yard.

"Buffer yard" means an open space, landscaped area, fence, wall, berm or any combination thereof used to physically separate potentially incompatible land uses on adjoining lots.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 297-2009, § 4, eff. Dec. 12, 2009; a. Ord. No. 156-2010, § 6, eff. June 12, 2010)

Editor's note—Formerly § 1401-01-B9.

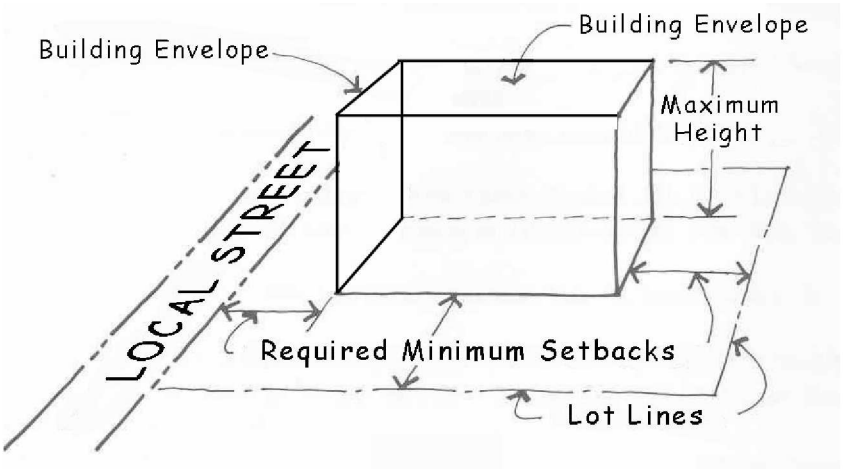
§ 1401-01-B11. Building.

"Building" means a structure enclosed within exterior walls, built, erected and framed of a combination of materials, having a roof to form a structure for the shelter of persons, animals, or property of any kind and excluding any structure designed as a house-trailer or other type trailer.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 237-2005, eff. July 21, 2005; a. Ord. No. 297-2009, § 5, eff. Dec. 12, 2009; a. Ord. No. 156-2010, § 7, eff. June 12, 2010)

Editor's note—Formerly § 1401-01-B10.

§ 1401-01-B12. Building Envelope.

"Building envelope" means the volume of space for which a principal building could be extended in compliance with the minimum setbacks and the maximum allowable building height.



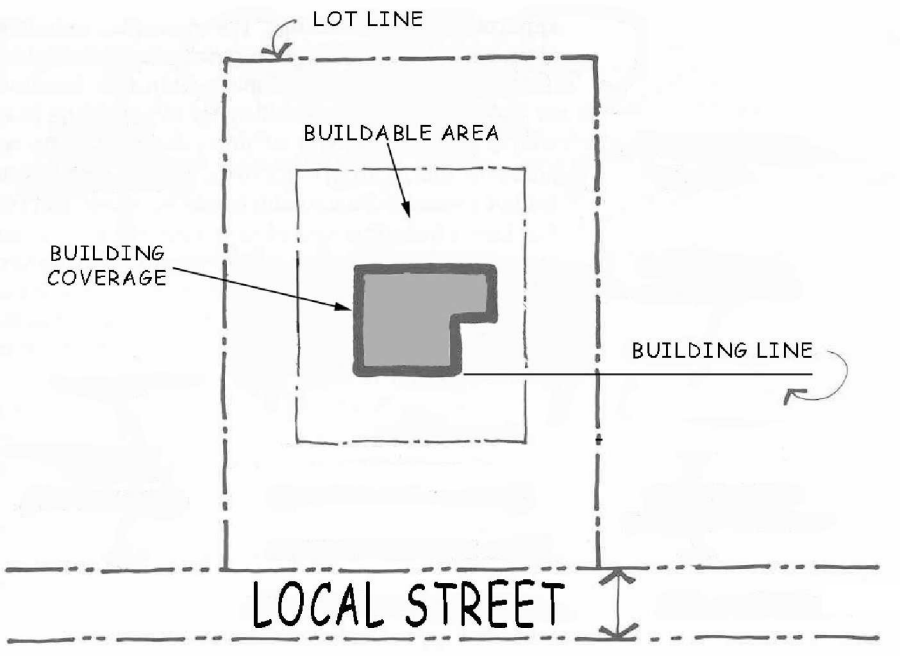
Building Envelope

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 297-2009, § 6, eff. Dec. 12, 2009; a. Ord. No. 156-2010, § 8, eff. June 12, 2010)

Editor's note—Formerly § 1401-01-B11.

§ 1401-01-B13. Building Line.

"Building line" means a line parallel to the street right-of-way line at any story level of a building and representing the distance that all or any part of the building is set back from the right-of-way line.



Building Line

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 297-2009, § 7, eff. Dec. 12, 2009; a. Ord. No. 156-2010, § 9, eff. June 12, 2010)

Editor's note—Formerly § 1401-01-B12.

§ 1401-01-B14. Building Maintenance Service.

"Building maintenance service" means an establishment providing carpet cleaning, carpentry, roofing, exterminator, glazing, janitorial services, electrical repair, plumbing, heating and air conditioning, upholstery, painting and paper hanging and sign painting.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 297-2009, § 8, eff. Dec. 12, 2009; a. Ord. No. 156-2010, § 10, eff. June 12, 2010)

Editor's note—Formerly § 1401-01-B13.

§ 1401-01-B15. Building Materials Sales and Service.

"Building materials sales and service" means retailing, wholesaling or rental of building supplies or construction equipment. This classification includes lumberyards, home improvement sales and services, tool and equipment sales or rental establishments.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 297-2009, § 9, eff. Dec. 12, 2009; a. Ord. No. 156-2010, § 11, eff. June 12, 2010)

Editor's note—Formerly § 1401-01-B14.

§ 1401-01-B16. Business Service.

"Business service" means an establishment providing document delivery, mail receiving and boxes, blueprinting, typesetting, copying, desktop publishing and photographic services.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 297-2009, § 10, eff. Dec. 12, 2009; a. Ord. No. 156-2010, § 12, eff. June 12, 2010)
Editor's note—Formerly § 1401-01-B15.

§ 1401-01-C. Canopy.

A "Canopy" is an architectural projection that provides weather protection, identity or decoration. It is supported by the building to which it is attached or by not less than one stanchion support at the outer end. A canopy is comprised of a rigid structure over which a covering is attached.
(Ordained by Ord. No. 171-2006, § 2, eff. July 14, 2006)

§ 1401-01-C1. Car Wash.

"Car wash" means the washing, waxing or cleaning of automobiles or similar light vehicles.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 171-2006, § 3, eff. July 14, 2006)

§ 1401-01-C2. Cemetery.

"Cemetery" means a burial ground for the interment of the human dead, including columbaria and mausoleums, but excluding crematories or mortuaries classified as Undertaking, funeral and interment services.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 171-2006, § 3, eff. July 14, 2006)

§ 1401-01-C3. Club and Lodge.

"Club" and "lodge" mean a meeting, recreational, or social facility of a private or nonprofit organization or public institution primarily for use by members or guests including residential accommodations that are available to members or guests on a temporary basis but excluding residential hotels. This classification includes union halls and social clubs.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 171-2006, § 3, eff. July 14, 2006; a. Ord. No. 159-2008, § 1, eff. June 7, 2008)

§ 1401-01-C4. Collector Street.

"Collector street" means a street that serves as a traffic way for a neighborhood or a feeder to an arterial street.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 171-2006, § 3, eff. July 14, 2006; a. Ord. No. 159-2008, § 1, eff. June 7, 2008)

§ 1401-01-C5. College.

"College" means an institution of higher education providing curricula of a general, religious, or professional nature, typically granting recognized degrees, including conference

centers and academic retreats associated with such institutions. This classification includes business and computer schools, management training, technical and trade schools, but excludes personal instructional services.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 171-2006, § 3, eff. July 14, 2006; a. Ord. No. 159-2008, § 1, eff. June 7, 2008)

§ 1401-01-C6. Collocation.

"Collocation" means that more than one wireless communications provider mounts equipment on a single support structure.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 171-2006, § 3, eff. July 14, 2006; a. Ord. No. 159-2008, § 1, eff. June 7, 2008)

§ 1401-01-C7. Commercial Meeting Facility.

"Commercial meeting facility" means a facility used for assemblies or meetings of the members or representatives of a group, such as convention centers and banquet halls. This classification does not include clubs, lodges or other meeting facilities of private or non-profit groups that are primarily used by group members.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 171-2006, § 3, eff. July 14, 2006; a. Ord. No. 159-2008, § 1, eff. June 7, 2008)

§ 1401-01-C8. Commercial Pier and Port.

"Commercial pier" and "commercial port" mean a facility for launching, mooring, docking and servicing commercial watercraft, ferry boats and excursion boats, including passenger terminals and berthing areas, storage, employee or passenger parking, administrative functions, etc.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 171-2006, § 3, eff. July 14, 2006; a. Ord. No. 159-2008, § 1, eff. June 7, 2008)

§ 1401-01-C9. Commercial Vehicle.

"Commercial vehicle" means any motorized vehicle other than one used for non-commercial personal or family transportation, recreation, van pooling or ride sharing. Commercial vehicles include commercial trucks, buses, buses used as recreational vehicles, commercial vans, tractors, semi-trailers, motorized farm vehicles, earth moving equipment and construction equipment.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 171-2006, § 3, eff. July 14, 2006; a. Ord. No. 159-2008, § 1, eff. June 7, 2008)

§ 1401-01-C10. Commissary.

"Commissary" means a small shop selling food, dairy, drug and other household or convenience items including video rental.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 171-2006, § 3, eff. July 14, 2006; a. Ord. No. 159-2008, § 1, eff. June 7, 2008)

§ 1401-01-C11. Communications Facility.

"Communications facility" means broadcasting and other communication services accomplished through electronic mechanisms. This classification includes radio, television or recording studios, switching centers and cable transmitting stations.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 171-2006, § 3, eff. July 14, 2006; a. Ord. No. 159-2008, § 1, eff. June 7, 2008)

§ 1401-01-C12. Communications-Related Equipment.

"Communications-related equipment" means equipment ancillary to the transmissions and reception of voice and data via radio frequencies.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 171-2006, § 3, eff. July 14, 2006; a. Ord. No. 159-2008, § 1, eff. June 7, 2008)

§ 1401-01-C13. Community Correctional Facility.

"Community correctional facility" means a facility comprised of one or more buildings designed for total occupancy by no more than 150 persons who live under criminal justice supervision and constraint while receiving therapy and counseling under alternatives to imprisonment, including, but not limited to, pre-release, work-release and probationary programs.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 171-2006, § 3, eff. July 14, 2006; a. Ord. No. 159-2008, § 1, eff. June 7, 2008)

§ 1401-01-C14. Community Garden.

"Community Garden" means a site operated and maintained by an individual or group to cultivate trees, herbs, fruits, vegetables, flowers, or other ornamental foliage for the following uses: personal use, consumption, donation or off site sale of items grown on the site.
(Ordained by Ord. No. 037-2010, § 1, eff. March 18, 2010)

§ 1401-01-C15. Community Learning Center.

"Community learning Center" means a community campus designed to provide integrated educational, recreational, health, and civic services to the populations of the community in which the campus is located.
(Ordained by Ord. No. 127-2018, § 2, eff. July 6, 2018)

§ 1401-01-C16. Community Service Facility.

"Community service facility" means a noncommercial facility established primarily for the benefit and service of the populations of the communities in which they are located, such as YMCA or YWCA facilities, boys and girls clubs and offices of community councils, non-profit civic, religious, welfare or philanthropic organizations.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 171-2006, § 3, eff. July 14, 2006; a. Ord. No. 159-2008, § 1, eff. June 7, 2008; a. Ord. No. 037-2010, § 2, eff. March 18, 2010; a. Ord. No. 127-2018, § 3, eff. July 6, 2018)

§ 1401-01-C17. Composting.

"Composting" means a method of solid waste disposal using controlled biological decomposition. Composting includes the following:

(a) Accessory Composting. Composting activities using less than 500 square feet of land for the entire operation of the composting activity and accessory to a residential or agricultural use and further regulated in Chapter 1422.

(b) Composting Facilities. Composting activities using more than 500 square feet of land for the entire operation of the composting activity, may be a principal use of the property or accessory to an agricultural use, require state licensure and are further regulated in §1419-13.

(Ordained by Ord. No. 251-2019, § 5, eff. July 26, 2019)

§ 1401-01-C18. Conditional Use.

"Conditional use" means a use generally compatible with other uses in a zoning district. The use requires individual review of its location, design, configuration and density and intensity and may require imposition of conditions to ensure the appropriateness of the use at a particular location.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 171-2006, § 3, eff. July 14, 2006; a. Ord. No. 159-2008, § 1, eff. June 7, 2008; a. Ord. No. 037-2010, § 2, eff. March 18, 2010; a. Ord. No. 127-2018, § 3, eff. July 6, 2018; renumbered by Ord. No. 251-2019, § 6, eff. July 26, 2019)

§ 1401-01-C19. Congregate Housing.

Apartments and dwellings with communal dining facilities and services, such as housekeeping, organized social and recreational activities, transportation services and other support services appropriate for the residents.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 171-2006, § 3, eff. July 14, 2006; a. Ord. No. 159-2008, § 1, eff. June 7, 2008; a. Ord. No. 037-2010, § 2, eff. March 18, 2010; a. Ord. No. 127-2018, § 3, eff. July 6, 2018; renumbered by Ord. No. 251-2019, § 6, eff. July 26, 2019)

§ 1401-01-C20. Contractor's Storage.

"Contractor's storage" means a yard for storage of building, construction, or landscaping materials or equipment.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 240-2005, eff. July 21, 2005; a. Ord. No. 171-2006, § 3, eff. July 14, 2006; a. Ord. No. 159-2008, § 1, eff. June 7, 2008; a. Ord. No. 037-2010, § 2, eff. March 18, 2010; a. Ord. No. 127-2018, § 3, eff. July 6, 2018; renumbered by Ord. No. 251-2019, § 6, eff. July 26, 2019)

§ 1401-01-C21. Convenience Market.

"Convenience market" means establishments that retail a limited line of goods that generally include milk, bread, soda, and snacks. Convenience markets may or may not include fuel sales.

(Ordained by Ord. No. 0281-2017, § 1, eff. Nov. 4, 2017; a. Ord. No. 127-2018, § 3, eff. July 6, 2018; renumbered by Ord. No. 251-2019, § 6, eff. July 26, 2019)

§ 1401-01-C22. Convents and Monasteries.

"Convents and monasteries" means group dwellings for members of religious orders.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 171-2006, § 3, eff. July 14, 2006; a. Ord. No. 159-2008, § 1, eff. June 7, 2008; a. Ord. No. 037-2010, § 2, eff. March 18, 2010; a. Ord. No. 0281-2017, § 2, eff. Nov. 4, 2017; a. Ord. No. 127-2018, § 3, eff. July 6, 2018; renumbered by Ord. No. 251-2019, § 6, eff. July 26, 2019)

§ 1401-01-C23. Corner Lot.

See § 1401-01-L6.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 171-2006, § 3, eff. July 14, 2006; a. Ord. No. 159-2008, § 1, eff. June 7, 2008; a. Ord. No. 037-2010, § 2, eff. March 18, 2010; a. Ord. No. 0281-2017, § 2, eff. Nov. 4, 2017; a. Ord. No. 127-2018, § 3, eff. July 6, 2018; renumbered by Ord. No. 251-2019, § 6, eff. July 26, 2019)

§ 1401-01-C24. Correctional Facility.

"Correctional facility" means a facility where persons are detained pending adjudication or confined under sentences of two years or less provided that the facility is operated by a Hamilton County law enforcement agency or under contract with the Board of County Commissioners of Hamilton County.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 171-2006, § 3, eff. July 14, 2006; a. Ord. No. 159-2008, § 1, eff. June 7, 2008; a. Ord. No. 037-2010, § 2, eff. March 18, 2010; a. Ord. No. 0281-2017, § 2, eff. Nov. 4, 2017; a. Ord. No. 127-2018, § 3, eff. July 6, 2018; renumbered by Ord. No. 251-2019, § 6, eff. July 26, 2019)

§ 1401-01-C25. Covenant.

"Covenant" means a legal agreement between the property owner and the City of Cincinnati concerning the use of land and compliance with the Cincinnati Zoning Code binding on the owner and the owner's successors and assigns. See § 1441-07.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 171-2006, § 3, eff. July 14, 2006; a. Ord. No. 159-2008, § 1, eff. June 7, 2008; a. Ord. No. 037-2010, § 2, eff. March 18, 2010; a. Ord. No. 0281-2017, § 2, eff. Nov. 4, 2017; a. Ord. No. 127-2018, § 3, eff. July 6, 2018; renumbered by Ord. No. 251-2019, § 6, eff. July 26, 2019)

§ 1401-01-C26. Cultural Institution.

"Cultural Institution" means a nonprofit institution engaged primarily in the performing arts or in the display or preservation of objects of interest in the arts or sciences that are open to the public on a regular basis. This classification includes performing arts centers for theater, dance and events, museums, historical sites, art galleries, libraries, aquariums and observatories.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 171-2006, § 3, eff. July 14, 2006; a. Ord. No. 159-2008, § 1, eff. June 7, 2008; a. Ord. No. 037-2010, § 2, eff. March 18, 2010; a. Ord. No. 0281-2017, § 2, eff. Nov. 4, 2017; a. Ord. No. 127-2018, § 3, eff. July 6, 2018; renumbered by Ord. No. 251-2019, § 6, eff. July 26, 2019)

§ 1401-01-D. Day Care Center.

"Day care center" means an establishment, other than a Day Care Home, licensed by the State of Ohio when required and providing care and supervision for seven or more persons on a less than 24-hour basis. This classification includes nursery schools, preschools, day care centers for children or adults and any other day care facility licensed by the State of Ohio.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 159-2008, § 2, eff. June 7, 2008)

§ 1401-01-D1. Day Care Home - Adult.

"Day care home - adult" means a day care facility located in a permanent residence where an occupant of the residence provides care and supervision for three or fewer adults at one time with no outside employees.
(Ordained by Ord. No. 159-2008, § 2, eff. June 7, 2008)

§ 1401-01-D2. Day Care Home - Type A.

"Day care home - type A" means a child care facility located in a permanent residence where an occupant of the residence provides care and supervision for seven to twelve children at one time, including children under the age of 6 related to the provider. The provider must be licensed by the State of Ohio Department of Human Services and can have no more than one employee assisting.
(Ordained by Ord. No. 159-2008, § 2, eff. June 7, 2008)

§ 1401-01-D3. Day Care Home - Type B.

"Day care home - type B" means a child care facility located in a permanent residence where an occupant of the residence provides care and supervision for six or fewer children at one time, including children under the age of 6 related to the provider. No employees are permitted.
(Ordained by Ord. No. 159-2008, § 2, eff. June 7, 2008)

§ 1401-01-D4. Decision.

"Decision" means a discretionary action by a decision-making body.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 159-2008, § 2, eff. June 7, 2008)

§ 1401-01-D5. Decision-Making Body.

"Decision-making body" means an individual, officer, board or commission representing the City authorized to decide an application.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 159-2008, § 2, eff. June 7, 2008)

§ 1401-01-D6. Demolition.

"Demolition" means an act or process that destroys a structure in whole or in part.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 159-2008, § 2, eff. June 7, 2008)

§ 1401-01-D7. Density.

"Density" means the number of dwelling units for every unit of land.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 159-2008, § 2, eff. June 7, 2008)

§ 1401-01-D8. Developmental Disability Dwelling.

"Developmental disability dwelling" means an establishment licensed by the State of Ohio that is located in a single-family residence and provides accommodation, personal care, habilitation services and supervision in a family setting for not more than eight residents with developmental disabilities and employees caring for such residents.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 159-2008, § 2, eff. June 7, 2008)

§ 1401-01-D9. Director of Buildings and Inspections.

As used herein, the term "Director of Buildings and Inspections" shall mean the Director of the Department of Buildings and Inspections as set forth in Administrative Code Article XXI.
(Ordained by Emer. Ord. No. 141-2015, § 2, eff. July 1, 2015)

§ 1401-01-D10. Director of City Planning.

"Director of City Planning" shall mean the Director of the Department of City Planning as set forth in Administrative Code Article XXV.
(Ordained by Ord. No. 042-2012, § 1, eff. March 29, 2012; Emer. Ord. No. 141-2015, § 3, eff. July 1, 2015)
Editor's note—Formerly § 1401-01-D9.

§ 1401-01-D11. Double-Frontage Lot.

See § 1401-01-L7.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 159-2008, § 2, eff. June 7, 2008; a. Ord. No. 042-2012, § 2, eff. March 29, 2012; Emer. Ord. No. 141-2015, § 3, eff. July 1, 2015)
Editor's note—Formerly § 1401-01-D10.

§ 1401-01-D12. Drinking Establishment.

See § 1401-01-E1.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 159-2008, § 2, eff. June 7, 2008; a. Ord. No. 042-2012, § 3, eff. March 29, 2012; Emer. Ord. No. 141-2015, § 3, eff. July 1, 2015)
Editor's note—Formerly § 1401-01-D11.

§ 1401-01-D13. Drive Box.

"Drive box" means an enclosable container temporary in nature for receiving recyclable or reusable material.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 159-2008, § 2, eff. June 7, 2008; a. Ord. No. 042-2012, § 4, eff. March 29, 2012; Emer. Ord. No. 141-2015, § 3, eff. July 1, 2015)
Editor's note—Formerly § 1401-01-D12.

§ 1401-01-D14. Drive-Through Components.

"Drive-Through Components" means any equipment or signage integral to the drive-through operations including but not limited to menu boards, pick-up or service windows, queuing lines, ATMs and voice boxes.
(Ordained by Ord. No. 0052-2008, § 1, eff. March 13, 2008; a. Ord. No. 159-2008, § 2, eff. June 7, 2008; a. Ord. No. 042-2012, § 5, eff. March 29, 2012; Emer. Ord. No. 141-2015, § 3, eff. July 1, 2015)
Editor's note—Formerly § 1401-01-D13.

§ 1401-01-D15. Drive-Through Establishment.

Any commercial business which by design, type of operation, or nature of business, has as one of its functions the provision of services to motor vehicles or their occupants, or the provision of services to the occupants of motor vehicles while they remain in a vehicle.
(Ordained by Ord. No. 243-2005, eff. July 21, 2005; a. Ord. No. 0052-2008, § 2, eff. March 13, 2008; a. Ord. No. 159-2008, § 2, eff. June 7, 2008; a. Ord. No. 042-2012, § 6, eff. March 29, 2012; Emer. Ord. No. 141-2015, § 3, eff. July 1, 2015)
Editor's note—Formerly § 1401-01-D14.

§ 1401-01-D16. Dwelling Unit.

"Dwelling unit" means one or more rooms with a single kitchen designed for occupancy by one family for living and sleeping purposes.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 243-2005, eff. July 21, 2005; a. Ord. No. 0052-2008, § 3, eff. March 13, 2008; a. Ord. No. 159-2008, § 2, eff. June 7, 2008; a. Ord. No. 042-2012, § 7, eff. March 29, 2012; Emer. Ord. No. 141-2015, § 3, eff. July 1, 2015)
Editor's note—Formerly § 1401-01-D15.

§ 1401-01-E. Easement.

"Easement" means a grant of one or more property rights for a designated portion of land by the property owner to the public, a corporation, person or other entity.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-E1. Eating and Drinking Establishment.

"Eating and drinking establishment" means a business that is primarily engaged in serving prepared food or beverages for consumption on or off the premises. It includes the following:

(a) Drinking Establishments. Bars, nightclubs, lounges or dance halls serving beverages for consumption on the premises as a primary use and including on-site service of alcohol, including beer, wine and mixed drinks.

(b) Restaurants, full service. Restaurants providing food and beverage services to patrons who order and are served while seated (table service) and pay after eating. Takeout service may be provided.

(c) Restaurants, limited. Restaurants providing food and beverage services to patrons who order and pay before eating. Food and beverages may be consumed on the premises, taken out or delivered. Table service is not provided. This classification includes cafeterias, cafes, fast-food outlets, pizza delivery, snack bars and takeout eating places.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-E2. Establishment.

"Establishment" means a specific land use on a lot or within a building. For purposes of this code, and establishment with multiple uses and/or products is considered to be one establishment when operating under one roof, within the same building footprint, or controlled a unifying entity.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 372-2006, § 1, eff. Jan. 20. 2007)

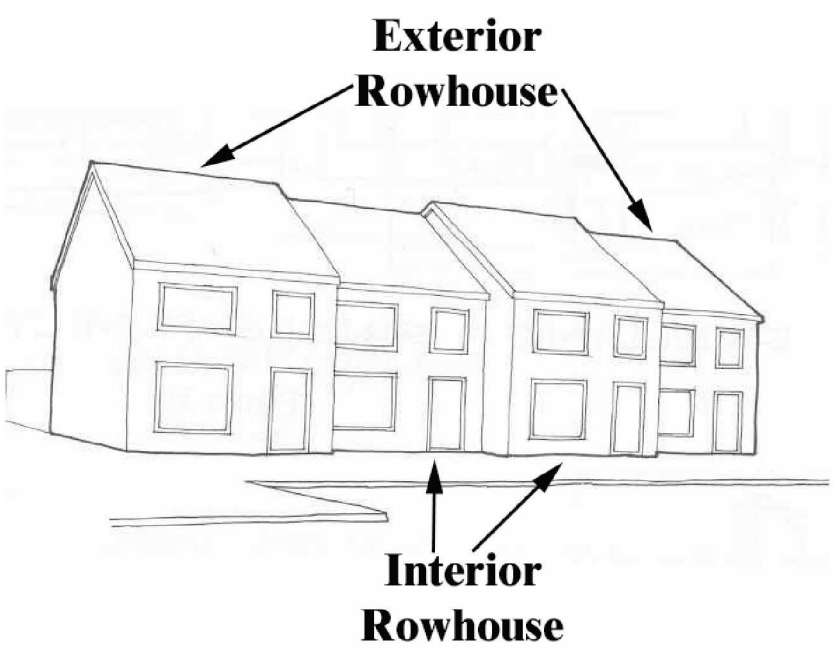
§ 1401-01-E3. Extension.

"Extension" means an increase in the amount of the existing gross floor area.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0346-2007, § 2, eff. Oct. 13, 2007)

§ 1401-01-E4. Exterior Rowhouse Lot.

"Exterior rowhouse" means a lot that is or is intended to be a site for a single-family rowhouse with a similar rowhouse attached on only one side.



Exterior Rowhouse Lot

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-F. Facade, Building.

"Building facade" means the maximum horizontal dimension of that side of a building abutting on or generally parallel to the front lot line or, in the case of a corner building, the combined maximum horizontal dimensions of the sides of the building abutting or generally parallel to the front lot line and the corner side line.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-F1. Facility.

"Facility" means a structure, open area or part thereof.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-F2. Family.

"Family" means a person living alone or two or more persons living together as a single housekeeping unit in a dwelling unit as distinguished from a group residential use. As applied in the SF District use regulations "family" includes:

(a) Up to four persons unrelated to each other by blood, marriage or legal adoption, living together as a single housekeeping unit; or

(b) Up to eight persons, other than foster parents and employees, living together in a foster home approved and regulated by the State of Ohio.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-F3. Farm.

"Farm" means a site operated and maintained by an individual, group or entity to cultivate trees, herbs, fruits, vegetables, flowers, ornamental foliage, or other plant crops for use, consumption, donation or sale where more than 20,000 square feet of land is under cultivation. "Farming" may include the operation of plant cultivation, storage of plants and plant cultivation materials in Agricultural Structures, incidental harvesting and packaging of raw goods, and, when permitted, accessory retail sales of goods cultivated on-site. "Farming" does not include value added processing. Animal Keeping is a separate use of a property, individually regulated. Horticulture is a related synonymous term.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0060-2008, § 3, eff. March 13, 2008; a. Ord. No. 251-2019, § 6, eff. July 26, 2019)

§ 1401-01-F4. Fence.

"Fence" means a barrier made of wire, wood, metal, masonry or other material typically used as fencing or determined appropriate by the Zoning Administrator, used as a screen or enclosure for a yard or open space. It includes a wall, gate or other structure used as a fence.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 245-2005, eff. July 21, 2005; Emer. Ord. No. 141-2015, § 4, eff. July 1, 2015)

§ 1401-01-F5. Floor Area.

"Floor area" means inside surface measured to the outside walls in a defined space.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-F6. Floor Area, Gross.

See Section 1401-01-G4.

(Ordained by Ord. No. 0344-2007, § 1, eff. Oct. 13, 2007)

§ 1401-01-F7. Floor Area Ratio (FAR).

"Floor area ratio" means the gross floor area of a building divided by total lot area, but exclusive of such floor area as may be used for parking facilities within the principal building and exclusive of such floor area as may be used for incidental service storage, installations of mechanical equipment, housing ventilators and heating systems and similar uses and the space used in common for recreational purposes by tenants and their guests where such facilities are not a part of an individual dwelling unit.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0344-2007, § 2, eff. Oct. 13, 2007; a. Ord. No. 0346-2007, § 3, eff. Oct. 13, 2007)

§ 1401-01-F8. Food Market.

"Food market" means an establishment for retail sales of food and beverages for off-site preparation and consumption. Typical uses include supermarkets, specialty food stores, or delicatessens. This category also includes large-scale stores that sell food items and beverages in bulk.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0344-2007, § 3, eff. Oct. 13, 2007; a. Ord. No. 0281-2017, § 4, eff. Nov. 4, 2017)

§ 1401-01-F9. Food Preparation.

"Food preparation" means a business that prepares food and beverages for off-site consumption, including delivery services. This classification includes catering kitchens, bakeries with on-site retail sales and the small-scale production of specialty foods, such as sweets. This classification excludes food production of an industrial character.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0344-2007, § 4, eff. Oct. 13, 2007)

§ 1401-01-F9A. Four-Family Dwelling.

"Four-family dwelling" means a single building that contains four dwelling units.
(Ordained by Emer. Ord. No. 199-2024, § 1, eff. 7-1-2024)

§ 1401-01-F10. Fraternity or Sorority House.

"Fraternity or sorority house" means a building used as group living quarters for students of a college or university, who are members of a fraternity or sorority recognized by the college or university.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0344-2007, § 5, eff. Oct. 13, 2007)

§ 1401-01-F11. Front Lot Line.

See § 1401-01-L11.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0344-2007, § 6, eff. Oct. 13, 2007)

§ 1401-01-F12. Front Yard.

"Front yard" means the area of a lot extending across the full width of the lot and measured between the building line and the front lot line.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0344-2007, § 7, eff. Oct. 13, 2007)

§ 1401-01-F13. Frontage, Street.

"Street frontage" means the sides of a lot abutting a street.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0344-2007, § 8, eff. Oct. 13, 2007)

§ 1401-01-F14. Fuel Sales.

"Fuel sales" means the retail sale of gasoline, diesel and kerosene fuels.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0344-2007, § 9, eff. Oct. 13, 2007)

§ 1401-01-F15. Funeral and Interment Service.

"Funeral and interment service" means an establishment primarily engaged in the provision of services involving the care, preparation or disposition of human dead. Typical uses include funeral parlors, crematories, mortuaries or columbaria.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0344-2007, § 10, eff. Oct. 13, 2007)

§ 1401-01-G. Garden.

"Garden" means a site operated and maintained by an individual, group, or entity to cultivate trees, herbs, fruits, vegetables, flowers, ornamental foliage, or other plants for use, consumption, donation or, when permitted, accessory retail sale of goods cultivated on-site where less than 20,000 square feet of land is under cultivation. "Garden" is synonymous with a personal garden, community garden, or market garden.
(Ordained by Ord. No. 251-2019, § 6, eff. July 26, 2019)

§ 1401-01-G1. Garden Supply Store and Nursery.

"Garden supply store" and "nursery" means an establishment primarily engaged in the retail sale of garden supplies and plants grown on the premises or elsewhere. This classification includes the sale of landscape materials, topsoil and rental of landscaping equipment.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0060-2008, § 4, eff. March 13, 2008; renumbered by Ord. No. 251-2019, § 9, eff. July 26, 2019)

§ 1401-01-G2. Government Facility and Office.

"Government facility and office" include the following:

(a) Facilities and installations. Major mail processing centers, military installations, vehicle emissions testing facilities and other similar facilities.

(b) Correctional institutions. Community correctional facilities, correctional facilities or juvenile detention facilities.

(c) Offices. Administrative, clerical or public contact offices of a government agency, together with incidental storage and maintenance of vehicles, including post offices.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; renumbered by Ord. No. 251-2019, § 9, eff. July 26, 2019)

§ 1401-01-G3. Grade, Existing.

"Existing grade" means the elevation of the ground level or pavement at a stated location as it exists prior to disturbance in preparation for a development.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; renumbered by Ord. No. 251-2019, § 9, eff. July 26, 2019)

§ 1401-01-G4. Grade, Finished.

"Finished grade" means the final elevation of the ground level after completion of the development.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; renumbered by Ord. No. 251-2019, § 9, eff. July 26, 2019)

§ 1401-01-G5. Gross Floor Area.

"Gross Floor Area" means the sum of the gross horizontal area of all floors of a building or structure measured from the exterior face of exterior walls, or from the centerline of a wall separating two buildings with no deduction for hallways, stairs, closets, thickness of interior walls, columns or other features. This definition does not include the area of parking facilities within the principal building.
(Ordained by Ord. No. 371-2006, § 1, eff. Jan. 20, 2007; renumbered by Ord. No. 251-2019, § 9, eff. July 26, 2019)

§ 1401-01-G6. Group Home.

See § 1401-01-T.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 371-2006, § 2, eff. Jan. 20, 2007; renumbered by Ord. No. 251-2019, § 9, eff. July 26, 2019)

§ 1401-01-G7. Group Residential.

"Group residential" includes shared living quarters such as rooming houses, shared housing for the elderly, congregate housing, monasteries, convents, dormitories, sororities, fraternities, patients' family homes and private residential clubs. This classification excludes bed and breakfast homes and inns.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 371-2006, § 3, eff. Jan. 20, 2007; renumbered by Ord. No. 251-2019, § 9, eff. July 26, 2019)

§ 1401-01-H. Height.

"Height" means the vertical dimension as determined in § 1400-27-H. Height.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0050-2008, § 1, eff. March 13, 2008)

§ 1401-03-H1. Height, Building.

"Building height" is measured from the established grade in the front of the lot or from the average natural grade at the building line, if higher, to the top of the cornice of flat roofs, or

to the deck line of a mansard roof, or to the mid-height of the highest gable or dormer in a pitched or hipped roof, or, if there are no gables or dormers, to the mid-height of a pitched or hipped roof.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 247-2005, eff. July 21, 2005)

§ 1401-01-H2. Home for Adjustment.

See § 1401-01-T.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-H3. Home Occupation.

"Home occupation" means an accessory activity of a nonresidential nature that is performed within a dwelling unit by the occupant of the unit.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-H4. Horticulture.

"Horticulture" means the practice, science, or art of growing fruits, vegetables, flowers, crops, or ornamental plants. Types of Horticulture may include:

(a) *Hydroponics*. The growing of food or ornamental crops, in a water and fertilizer solution containing the necessary nutrients for plant growth.

(Ordained by Ord. No. 251-2019, § 10, eff. July 26, 2019)

§ 1401-01-H5. Hospital.

"Hospital" means a state-licensed facility providing medical, surgical, psychiatric or emergency medical services to sick or injured persons. This classification includes facilities for inpatient or outpatient treatment, including drug and alcohol abuse programs as well as training, research and administrative services for patients and employees.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; renumbered by Ord. No. 251-2019, § 11, eff. July 26, 2019)

§ 1401-01-H6. Hotel.

"Hotel" means a facility with six or more guest rooms or suites designed for transient habitation, where access to individual units is predominantly through a common lobby that may provide additional services, such as conference and meeting rooms, restaurants, bars or recreation facilities available to guests or to the general public. This classification includes motor lodges, motels, hostels, extended stay hotels and tourist courts, but does not include rooming houses, boarding houses or residential hotels that are used, designed or intended to be used for sleeping for a period of 30 consecutive days or longer.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; renumbered by Ord. No. 251-2019, § 11, eff. July 26, 2019)

§ 1401-01-I. Illegal Use.

"Illegal use" means an activity or facility that is not a legal conforming or legal nonconforming use.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-I1. Incidental.

"Incidental" means subordinate and minor in size and use and bearing an exclusive relationship with the primary use.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 415-2010, § 5, eff. Dec. 24, 2010)

§ 1401-01-I2. Indoor Storage.

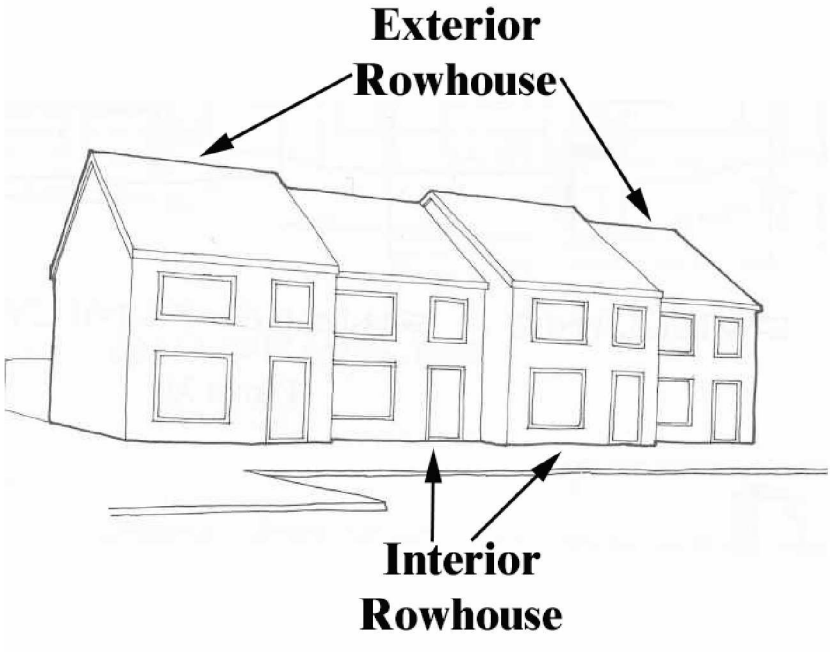
"Indoor storage" means a facility for the keeping of business, personal property and office records, including mini warehouses.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-I3. Interior Lot.

"Interior lot" means a lot other than a corner lot.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-I4. Interior Rowhouse Lot.

See § 1401-01-L8.



Interior Rowhouse Lot

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-I5. Interior Side Lot Line.

See § 1401-01-L9.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-J. Juvenile Detention Facility.

"Juvenile detention facility" means a facility operated as a place for juvenile detention under the jurisdiction of the Court of Common Pleas, Juvenile Division of Hamilton County for children alleged or adjudicated as delinquent, unruly, dependent, neglected, abused or juvenile traffic offenders.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-K. Kitchen.

"Kitchen" means a room or part of a room that is designed, built, used or intended to be used for food preparation and dishwashing; but not including a bar, butler's pantry or similar room adjacent to or connected with a kitchen.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-L. Laboratory, Commercial.

"Commercial laboratory" means a facility for medical, optical, orthotic, prosthetic, or dental laboratory services, photographic, analytical, or testing services and scientific research facilities.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-L1. Landline Communications.

"Landline communications" means a system for the transmission of information by wire or fiber.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-L2. Limited Use.

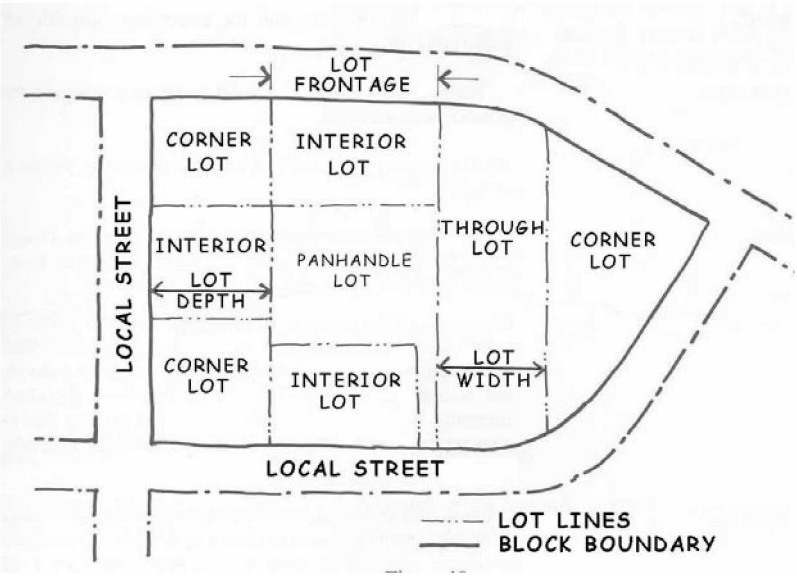
"Limited use" means a use allowed in a zoning district subject to specific limitations and the restrictions applicable to that zoning district.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-L3. Loft Dwelling Unit.

"Loft dwelling unit" means a dwelling unit which may contain a studio, gallery, office or business.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 134-2008, § 1, eff. May 23, 2008)

§ 1401-01-L4. Lot.

"Lot" means a parcel of land occupied or capable of being occupied by a use, building, or group of buildings and accessory buildings and uses, together with such open spaces as are required by this Code and having frontage on a street.



Lot

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-L5. Lot Area.

"Lot area" means the computed area contained within the lot line.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-L6. Lot, Corner.

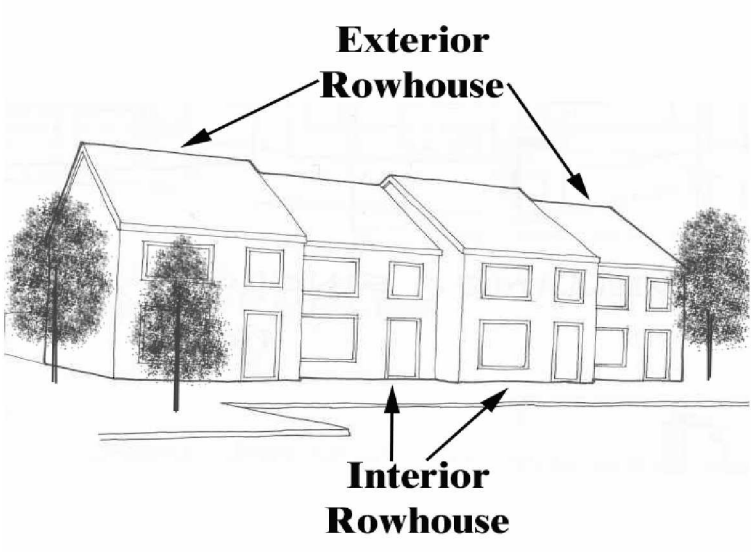
"Corner lot" means a lot bounded on two or more adjacent sides by streets, or by portions of such streets, having an angle of intersection 135 degrees or less.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-L7. Lot, Double-Frontage.

"Double-frontage lot" means an interior lot having frontage on more than one street.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 135-2008, § 1, eff. May 23, 2008; a. Ord. No. 296-2007, § 1, eff. Dec. 12, 2009)

§ 1401-01-L8. Lot, Interior Rowhouse.

"Interior rowhouse lot" means a lot that is or is intended to be a site for a single-family rowhouse with a similar rowhouse attached on each side.



Lot, Interior Rowhouse

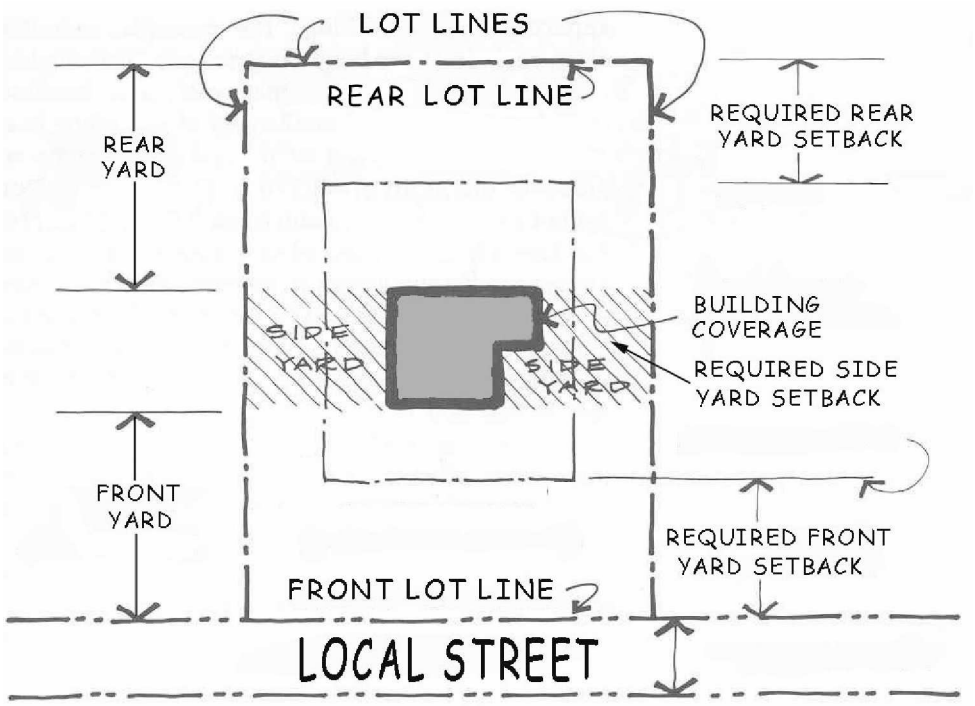
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-L9. Lot, Interior Side Line.

"Interior side lot line" means a side lot line not abutting a street.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-L10. Lot Line.

"Lot line" the boundary enclosing a lot.



Lot Line

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-L11. Lot, Line Front.

"Front lot line" means a lot line dividing a lot from a street. On a corner lot only one street line may be considered as a front line; provided that, where the length of a shorter street line is less than 90 percent of the length of the longer street line, the shorter street line is considered as the front lot line.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-L12. Lot, Line Rear.

"Rear lot line" means a lot line opposite the front lot line. In the case of an irregular, or triangular lot, it means a line within the lot, ten feet long, parallel to and at the maximum distance from the front lot line.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-L13. Lot, Line Side.

"Side lot line" means a lot line that is not a front lot line or a rear lot line. A side lot line separating a lot from a street is a side street lot line. A side lot line separating a lot from another lot or lots is an interior side lot line.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-L14. Lot, Line Street Side.

"Street side lot line" means a lot line dividing a lot from an abutting street, private way or alley way.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-L15. Lot, of Record.

"Lot of record" means a parcel of land that is in existence as of the effective date of this Zoning Code or any amendment thereto or was shown on a preliminary plan of a subdivision approved by the City Planning Commission.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-L16. Lot, Panhandle.

"Panhandle lot" means a lot that does not abut on an improved, publicly-dedicated street or an improved, private street for the full required width prescribed by the zoning code, also known as a "rear lot."
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0050-2019, §§ 1, 2, eff. 2-6-2019)

§ 1401-01-L17. Lot, Sub-Minimum.

"Sub-minimum lot" means a lot not complying with the lot area requirements of the district but with the provisions of § 1421-09; or a lot complying with the lot area requirements but not with the lot width requirements of the district.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-L18. Lot, Vacant.

"Vacant lot" means a lot without a building or structure.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-L19. Low-Impact Manufacturing.

"Low-Impact Manufacturing" means the processing or fabrication of certain materials or products where the process involved will not produce light, noise, vibration, air pollution, fire hazard, or noxious emission which will disturb or endanger neighboring properties or compromise the quality of living.
(Ordained by Ord. No. 0060-2008, § 11, eff. March 13, 2008)

§ 1401-01-M. Maintenance and Repair Service.

"Maintenance and repair service" means an establishment providing repair services for personal and household goods, such as household appliances, computers, television, audio or video equipment, office machines, furniture and leather goods. This classification excludes building maintenance services and maintenance and repair of automobiles and other vehicles and equipment.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-M1. Marina.

"Marina" means a facility for launching, mooring, berthing, storing or securing watercraft for primarily recreational use. A marina provides services to recreational watercraft and occupants thereof, including sanitary and other minor servicing and repair to watercraft while in the water and the sale of fuel and supplies. A marina may provide food, lodging, goods, beverages, recreation and entertainment as accessory uses. This classification includes public docks, yacht clubs, boat clubs and boatels.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-M2. Marine Sales and Service.

"Marine sales and service" means an establishment engaged in the sale and service of marine equipment, boats and recreational watercraft and accessory parts and supplies.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-M3. Marquee.

A "Marquee" is a permanent roofed structure attached to and supported by the building and projects over public property/right-of-way. A marquee is constructed of a durable material such as glass or metal and is designed to accept signage and to provide protection from the elements. Marquees are not awnings or canopies.
(Ordained by Ord. No. 171-2006, § 4, eff. July 14, 2006)

§ 1401-01-M4. Medical Services and Clinic.

"Medical services" and "medical clinic" means offices organized as a unified facility for more than two licensed physicians, dentists, chiropractors, or other health care professionals providing diagnosis or care of sick or injured persons but are not provided with room and board and are not kept overnight on the premises. Medical Services and medical clinics include medical and dental laboratories incidental to the medical office use.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 235-2005, eff. July 21, 2005; a. Ord. No. 171-2006, § 5, eff. July 14, 2006)

§ 1401-01-M5. Metal Waste Salvage Yard, Junk Yard.

"Metal waste salvage yard" and "junk yard" means an establishment for the storage and dismantling of vehicles and equipment for sale of parts, as well as the collection, storage, exchange or sale of goods including, but not limited to, any used building material, used containers or steel drums and similar or related articles or property.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 171-2006, § 5, eff. July 14, 2006)

§ 1401-01-M6. Mining and Quarrying.

"Mining" and "quarrying" means the extraction of metallic and nonmetallic minerals, including sand and gravel pit operations.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 171-2006, § 5, eff. July 14, 2006)

§ 1401-01-M7. Mixed Use.

"Mixed use" means a building or lot containing residential and commercial or industrial uses.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 171-2006, § 5, eff. July 14, 2006)

§ 1401-01-M8. Multi-Family Dwelling.

"Multi-family dwelling" means a building or group of buildings that contain three or more dwelling units.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 171-2006, § 5, eff. July 14, 2006)

§ 1401-01-M9. Mural.

See § 1427-03-M1 Mural.
(Ordained by Ord. No. 136-2008, § 1, eff. May 23, 2008)

§ 1401-01-N. Noncomplying Structure.

"Noncomplying structure" means a structure that was lawfully erected but that does not comply with the currently applicable requirements and standards prescribed in the regulations for the district in which the structure is located by reason of adoption or amendment of this ordinance.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-N1. Nonconforming Use.

"Nonconforming use" means a use of a structure or land that was lawfully established and maintained, but that does not conform with currently applicable use regulations for the district in which it is located by reason of adoption or amendment of this ordinance.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-N2. Nursing Home.

"Nursing home" means an institution, residence or facility licensed by the State of Ohio that provides accommodation, personal assistance and skilled nursing care to more than three residents who are dependent on the services of others by reason of age and physical or mental impairment.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-O. Office.

"Office" means a facility for a firm or organization that primarily provides professional, executive, management or administrative services, such as accounting, advertising, architectural, city planning, computer software consulting, data management, engineering, medical, dental, chiropractors, or other health care professionals, environmental analysis, insurance, interior design, investment, graphic design, landscape design, law and real estate offices, drafting and

recording studios. It excludes medical offices with more than two licensed health care professionals (see §1401-01-M3 Medical Services and Clinics), banks and savings and loan associations and offices that are incidental to retail, production, storage or other activities.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 238-2005, eff. July 21, 2005)

§ 1401-01-O1. Off-Street Loading.

"Off-street loading" means an off-street space for the temporary parking of commercial vehicles while loading or unloading merchandise or materials.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-O2. Oil and Gas Storage.

"Oil and gas storage" means a tank farm or outdoor facility for the storage of oil and gas.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-O3. Opacity.

"Opacity" means the measurement of the screening effectiveness, particularly the amount of light which passes through the screening material.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-O4. Open Space, Common and Private.

"Open space" means the yard or the area between two buildings or between a building and the boundary line of a parcel.

"Common open space" means an open area within a development reserved for the exclusive use for occupants of the development and their guests.

"Private open space" means an open area outside of a building adjoining and directly accessible to a dwelling unit, reserved for the exclusive use of residents of the dwelling unit and their guests.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-O5. Ordinary Repair and Maintenance.

"Ordinary repair and maintenance" means any work where the purpose and effect of such work is to correct any deterioration of or damage to a structure or any part thereof and to restore the same to its condition prior to the occurrence of such deterioration or damage.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-O6. Outdoor Eating and/or Drinking Area.

A porch, patio, deck or other area used for consumption of food and/or beverages by the public which is not completely enclosed within the exterior building walls, windows and doors of a limited restaurant, full service restaurant or a drinking establishment and which may or may not have a solid roof cover.
(Ordained by Ord. No. 94-2006, § 1, eff. 5-18-2006)

§ 1401-01-O7. Outdoor Entertainment.

"Outdoor entertainment" means the provision of television or musical, theatrical, dance, cabaret, or comedy act performed by one or more persons either electronically amplified or not and/or any form of dancing by patrons and guests outside of the principal building on a deck or patio.
(Ordained by Ord. No. 102-2006, § 1, eff. 5-18-2006)

§ 1401-01-O8. Outdoor Storage.

"Outdoor storage" means the keeping of commercial goods, equipment and raw materials in an open lot.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 94-2006, § 2, eff. May 18, 2006; a. Ord. No. 102-2006, § 2, eff. May 18, 2006)

§ 1401-01-P. Panhandle Lot.

See § 1401-01-L16.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-P1. Parabolic Antenna.

"Parabolic antenna" means a bowl-shaped device also known as a dish antenna for the reception and/or transmission of radio frequency communication signals in a specific directional pattern.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-P2-A. Parking Facility, Principal Use.

"Parking facility, Principal Use," means a parking lot or a parking garage offering parking to the public and is the principal use of the premises.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 415-2010, § 7, eff. Dec. 24, 2010)
Editor's note—Formerly § 1401-01-P2.

§ 1401-01-P2-B. Parking Facility, Accessory Use.

"Parking facility, Accessory Use" means a parking lot or a parking garage offering parking to the public and except as other specified, incidental to a principal structure or use on the same lot.
(Ordained by Ord. No. 415-2010, § 8, eff. Dec. 24, 2010)

§ 1401-01-P3. Parking Garage.

"Parking garage" means a multi-level structure built either above or below grade providing off-street parking for motorized vehicles.

Parking Garage

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-P4. Parking Lot.

"Parking lot" means a surface lot that provides off-street parking for motorized vehicles, other than an automobile holding facility.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-P5. Parking Space.

"Parking space" means a permanently surfaced area in a parking facility for the parking of a motor vehicle.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-P6. Parking Space, Tandem.

"Tandem parking space" means an arrangement of parking spaces such that one or more spaces must be driven across in order to access another space or spaces. A space that can only be accessed by driving across another space is called a dependent parking space. A space that can be accessed without driving across another space is called an independent parking space.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-P7. Park and Recreation Facility.

"Park" and "recreation facility" means a park, playground, recreation facility and open space. This classification includes community centers, playing fields, courts, gymnasiums, swimming pools, wave pools, spraygrounds, picnic facilities, golf courses and country clubs, zoos and botanical gardens, as well as related food concessions.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 257-2007, § 2, eff. Aug. 27, 2007)

§ 1401-01-P8. Patients' Family Home.

"Patients' family home" means a residential facility for the temporary residence of families of patients under medical care with common kitchen, dining and living spaces, owned, operated, managed or supervised by a non-profit organization.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-P9. Permitted Use.

"Permitted use" means a use allowed in a zoning district and subject to the restrictions applicable to that zoning district.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-P10. Personal Instructional Service.

"Personal instruction service" means the provision of instructional services including: tutoring, photography, fine arts, crafts, dance or music studios, art studios, driving schools, vocation and trade schools not including automotive repair, diet centers, reducing salons, martial arts, yoga and workout studios with incidental retail sales.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 97-2006, § 1, eff. May 18, 2006)

§ 1401-01-P11. Personal Service.

"Personal service" means the provision of recurrently needed services of a personal nature. This classification includes barber and beauty shops, nail salons, tanning salons, massage therapy, electrolysis, seamstresses, tailors, shoe repair, dry cleaners (excluding dry cleaning plants), self-service laundries and photographic studios.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-P12. Planned Development.

"Planned development" means a large, integrated development adhering to a comprehensive site plan and located on a single site.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-P13. Porch.

"Porch" means a platform having a separate roof at an entrance to a dwelling that is considered a part of the building for setback purposes.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-P14. Portable Storage Container.

"Portable storage container" means any container designed for the storage of personal property of a non-hazardous nature which is typically rented to owners or occupants of property for their temporary use and which is delivered and removed by truck.
(Ordained by Ord. No. 414-2008, § 1, eff. Jan. 4, 2009)

§ 1401-01-P15. Preexisting.

"Preexisting" means in existence prior to the effective date of this zoning code or amendments thereto (as in nonconforming use).
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 414-2008, § 2, eff. Jan. 4, 2009)

§ 1401-01-P16. Principal Structure.

"Principal structure" means a building or other facility that is designed for or occupied by a principal use.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 414-2008, § 2, eff. Jan. 4, 2009)

§ 1401-01-P17. Principal Use.

"Principal use" means a use that is the primary function of land or structures.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 414-2008, § 2, eff. Jan. 4, 2009)

§ 1401-01-P18. Private Vehicular Storage Lot.

"Private vehicular storage lot" means a lot used for the purpose of storing non-disabled cars removed because of trespassing on private property or illegal parking on public property or the public right-of-way.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 414-2008, § 2, eff. Jan. 4, 2009)

§ 1401-01-P19. Production Industry.

"Production industry" means a category of uses that includes:

(a) *Artisan.* Establishments primarily engaged in on-site production of goods by hand manufacturing, involving the use of hand tools and small-scale equipment.

(b) *General.* Manufacturing of products, from extracted or raw materials, or recycled or secondary materials, or bulk storage and handling of such products and materials. This classification includes: food, beverage and tobacco product manufacturing; textile mills; textile product mills; apparel manufacturing; leather and allied product manufacturing; wood product manufacturing; paper manufacturing; chemical manufacturing; plastics and rubber products manufacturing; nonmetallic mineral product manufacturing; transportation equipment manufacturing; primary metal manufacturing; and fabricated metal product manufacturing.

(c) *Intensive high impact.* Manufacturing of acetylene, cement, lime, gypsum or plaster-of-Paris, chlorine, corrosive acid or fertilizer, insecticides, disinfectants, poisons, explosives, paint, lacquer, varnish, petroleum products, coal products, plastic and synthetic resins and radioactive materials. This group also includes smelting, animal slaughtering and oil refining.

(d) *Limited.* Manufacturing of finished parts or products, primarily from previously prepared materials. This classification includes: printing and related support activities; machinery manufacturing, food manufacturing, computer and electronic product

manufacturing; electrical equipment, appliance, component manufacturing, furniture and related product manufacturing; and other uses as determined by the Zoning Administrator.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 414-2008, § 2, eff. Jan. 4, 2009; Emer. Ord. No. 141-2015, § 5, eff. July 1, 2015)

§ 1401-01-P19-A. Projecting Bay.

"Projecting bay" means a continuous recess within the interior of a building that contains one room, does not span more than two stories, and does not reach the ground, resulting in a projection on the outside of the building.

(Ordained by Emer. Ord. No. 199-2024, § 1, eff. 7-1-2024)

§ 1401-01-P20. Public Maintenance Facility.

"Public maintenance facility" means a governmentally owned facility providing maintenance and repair services for vehicles and equipment and areas for storage of equipment and supplies. This classification includes governmentally owned construction yards, equipment service centers and similar facilities.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 414-2008, § 2, eff. Jan. 4, 2009)

§ 1401-01-P21. Public Safety Facility.

"Public safety facility" means a facility for public safety and emergency services, including police and fire protection and police and fire training facilities.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 414-2008, § 2, eff. Jan. 4, 2009)

§ 1401-01-P22. Public Use.

"Public use" means a use owned or operated by a public agency.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 414-2008, § 2, eff. Jan. 4, 2009)

§ 1401-03-P23. Public Utility Distribution System.

"Public utility distribution system" means a facility for the distribution of gas, electricity, water, steam, hot water, chilled water and landline communications.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 414-2008, § 2, eff. Jan. 4, 2009)

§ 1401-01-P24. Public Utility Maintenance Yard.

"Public utility maintenance yard" means a building, other structure, or open area used by a public utility for the storage, maintenance or repair of materials and equipment or vehicle parking.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 414-2008, § 2, eff. Jan. 4, 2009)

§ 1401-01-P25. Public Utility Plant.

"Public utility plant" means a building or other structure for water supply or wastewater treatment or the production of electricity, steam, hot water or chilled water for consumption by the general public.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 414-2008, § 2, eff. Jan. 4, 2009)

§ 1401-01-R. Rear Lot Line.

See § 1401-01-L12.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-R1. Rear Yard.

"Rear yard" means the area of a lot extending across the full width of the lot and measured between the building and the rear lot line.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-R2. Recreation and Entertainment.

"Recreation and entertainment" means the provision of recreation or entertainment to paying participants or spectators. Recreation and entertainment uses may be either:

(a) Outdoor or large-scale recreation and entertainment. This classification includes large, generally outdoor facilities, including: sports stadiums and arenas; amusement and theme parks; racetracks; driving ranges; swimming or wave pools; entertainment complexes; movie theaters (4 or more screens); drive-in theaters; archery or shooting ranges; riding stables; campgrounds; recreational vehicle parks; etc.

(b) Indoor or small-scale recreation and entertainment. This classification includes small, generally indoor facilities, although some facilities may be outdoor, including: fitness centers, gymnasiums, handball, racquetball or tennis club facilities, ice or roller skating rinks, movie theaters (three or fewer screens); bingo parlors, billiard parlors, bowling centers, poolrooms, miniature golf courses and amusement arcades.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-R3. Recreational Vehicle.

"Recreational vehicle" means a mobile vehicle, either self-propelled or towed, that is used for temporary periods of human habitation.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-R4. Recreational Vehicle Park.

"Recreational vehicle park" means a site or tract of land with a minimum of five acres on which two or more recreational vehicles or tents are parked or erected and including any roadway, drainage sewer system, water supply or electric system used or intended for use as a part of the facilities of such recreational vehicle park and as regulated by the Board of Health of Cincinnati. Such facility may not be used for the sale and/or servicing of recreational vehicles.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-R5. Recycling Container.

"Recycling container" means a bin or container for the storage of recyclable materials.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-R6. Recycling Enclosure.

"Recycling enclosure" means a space allocated for collecting and loading recyclable materials, capable of accommodating containers for recycling materials.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-R7. Religious Assembly.

"Religious assembly" means an establishment for religious worship and other religious ceremonies, including religious education, rectories and parsonages, offices, social services, columbaria and community programs.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-R8. Research and Development.

"Research and development" means an establishment primarily engaged in the research, development and controlled production of high technology electronic, industrial or scientific products or commodities for sale. This classification includes biotechnology firms and manufacturers of nontoxic computer components.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-R9. Residential Care Facility.

"Residential care facility" means an establishment operated for the purpose of providing special care or rehabilitation to the occupants, including the following:

(a) Assisted living. See § 1401-01-A11.

(b) Developmental disability dwelling. See § 1401-01-D5.

(c) Nursing home. See § 1401-01-N2.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-R10. Residential District.

"Residential district" means a district denoted by the letters SF or RM.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-R11. Restaurant, Full Service.

See § 1401-01-E1(b).
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-R12. Restaurant, Limited.

See § 1401-01-E1(c)
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-R13. Retail Sales.

"Retail sales" means an establishment engaged in sales of goods, including, but not limited to: alcoholic beverage sales, furniture and home furnishings, electronics and appliances, clothing and shoes, jewelry, luggage and leather goods, sporting goods and hobbies, books, periodicals and music, tobacco sales, department stores, florists, office supplies and stationary, gifts and novelties, pets, hardware, pawn shops, video stores and auto parts. This classification includes the retail sale or rental of merchandise not specifically listed under another use classification.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-R14. Rooming House.

"Rooming house" means a building containing three or more rooming units not offering nursing or dietary care, therapy or counseling for its occupants. (See § 1401-01-R15. Rooming Unit)
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-R15. Rooming Unit.

"Rooming unit" means a room available for rental occupancy for periods of seven days or longer but not equipped with a kitchen facility so as to constitute a dwelling unit.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-R16. Rowhouse Building.

"Rowhouse building" means a building containing two or more single-family rowhouses, each rowhouse being separated from the adjoining rowhouse by fire resistive walls without openings and each rowhouse having independent access to the exterior of the building in the ground story.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-R17. Rowhouse, Single-Family.

"Single-family rowhouse" means a dwelling unit on its own lot that is part of a rowhouse building.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-S. School.

"School" means a facility for educational purposes that offers a general course of study at primary, middle, or high school levels and vocational and trade programs that are incidental to the operation of such schools.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-S1. Screening.

"Screening" means a method of visually shielding or obscuring one abutting or nearby structure or use from another by fencing, walls, berms or densely planted vegetation.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-S2. Semi-Public Use.

"Semi-public use" means a use owned or operated by a non-profit agency, private institution or foundation.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-S3. Setback Line.

"Setback line" means the line that is the required minimum distance from any property line and that establishes the area within which the principal structure must be erected or placed. See Figure in 1401-01-L10. Lot Line.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-S4. Sexually Oriented Business.

"Sexually oriented business" means an adult arcade, adult bookstore, adult novelty store, adult video store, adult cabaret, adult motel or adult entertainment out-call service in the form of semi-nude dancing or exhibition, adult motion picture theater, adult theater, semi-nude model studio or sexual establishment as further defined in Chapter 899 of the Municipal Code.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-S5. Shared Housing for the Elderly.

"Shared housing for the elderly" means a residence for not more than ten adults, the majority of whom are 60 years of age or older, either cooperatively established by the residents or under the sponsorship of a non-profit organization; provided that the residents are living together as a family and are all capable of self-preservation without assistance in the event of an emergency.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-S6. Shopping Center.

"Shopping center" means a group of buildings and accessory space devoted to permitted uses under one ownership with separate establishments rented or leased, having common parking facilities for all establishments, with no lot lines drawn between establishments.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-S7. Side Lot Line.

See § 1401-01-L13.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-S8. Side Yard.

"Side yard" means the area of a lot extending from the front yard to the rear yard and measured between the building and the side lot line.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-S9. Single-Family Dwelling.

"Single-family dwelling" means a freestanding building designed for occupancy by one family.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-S10. Site.

"Site" means a lot or group of lots that is proposed for development in accord with the provisions of this Code and is in a single ownership or under unified control.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-S11. Special Assistance Shelter.

"Special assistance shelter" means a facility for the short-term housing for individuals who are homeless and who may require special services.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-S12. Street.

"Street" means a public or private right-of-way 21 feet or more in width whose primary function is to furnish the chief means or access to properties abutting it.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-S13. Street Side Lot Line.

See § 1401-01-L14.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-S14. Streetcar.

"Streetcar" means as car, other than a railroad train, for transporting persons or property, operated upon rails principally within a street or highway (O.R.C. §4511.01(R)).
(Ordained by Ord. No. 416-2010, § 1, eff. Dec. 24, 2010)

§ 1401-01-S15. Structure.

"Structure" means anything constructed or made, the use of which requires permanent location in or on the ground or attachment to something having a permanent location in or on the ground.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 416-2010, § 2, eff. Dec. 24, 2010)

Editor's note—Formerly § 1401-01-S14.

§ 1401-01-S16. Sub-Minimum Lot.

See § 1401-01-L17.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 416-2010, § 3, eff. Dec. 24, 2010)

Editor's note—Formerly § 1401-01-S15.

§ 1401-01-S17. Substitution.

"Substitution" means the replacement of an existing use by a new use, or a change in the nature of an existing use. It does not include a change of ownership, tenancy or management where the previous line of business or other function is substantially unchanged.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 416-2010, § 4, eff. Dec. 24, 2010)

Editor's note—Formerly § 1401-01-S16.

§ 1401-01-T-0. Three-Family Dwelling.

"Three-family dwelling" means a single building that contains three dwelling units.
(Ordained by Emer. Ord. No. 199-2024, § 1, eff. 7-1-2024)

§ 1401-01-T. Transitional Housing.

"Transitional housing" means housing designed to assist persons in obtaining skills necessary for independent living in permanent housing, including homes for adjustment and halfway houses. Transitional housing is housing in which:

(a) An organization provides a program of therapy, counseling, or training for the residential occupants;

(b) The organization operating the program is licensed or authorized by a governmental authority having jurisdiction over operation; and

(c) The program is for the purpose of assisting the residential occupants in one or more of the following types of care:

(1) Protection from abuse and neglect;

(2) Developing skills necessary to adjust to life;

(3) Adjusting to living with the challenges of a physical disability;

(4) Adjusting to living with the challenges of an emotional or mental disorder or an intellectual disability;

(5) Recuperation from the effects of drugs or alcohol, even if under criminal justice supervision; or

(6) Readjusting to society while housed under criminal justice supervision including, but not limited to, pre-release, work-release, and probationary programs.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 287-23, § 1, eff. August 2, 2023)

§ 1401-01-T1. Transportation Facility.

"Transportation facility" means a category of uses including:

(a) *Airports.* Facilities for the takeoff and landing of airplanes and helicopters, including runways, aircraft storage buildings, public terminal buildings and parking, helicopter pads and support activities such as airport operations and air traffic control.

(b) *Heliports.* Facilities intended solely for takeoff and landing of helicopters.

(c) *Railroad, right-of-way.* Railroad land used for through tracks. Railroad, train yard uses are prohibited.

(d) *Railroad, train yard.* Railroad areas used for classification yards, switch tracks, team tracks, storage tracks and freight yards.

(e) *Transportation passenger operation.* Facilities for passenger transportation operations, holding facilities and maintenance operations, which includes rail stations, bus terminals, urban and regional transit stations and scenic and sightseeing facilities, but does not include airports and heliports.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0051-2008, § 1, eff. March 13, 2008)

§ 1401-01-T2. Truck Terminal and Warehouse.

"Truck terminal and warehouse" means a facility for the storage of commercial goods within an enclosed building for distribution by truck. This includes bulk mail handling facilities.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-T3. Two-Family Dwelling.

"Two-family dwelling" means a single building that contains two dwelling units, neither of which is an accessory dwelling unit.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 266-2023, §§ 2, 15, eff. Oct. 2, 2023)

§ 1401-01-U. Urban Agriculture.

"Urban Agriculture" means the practice of keeping Gardens, Farms and/or Animal Keeping within an established urban environment in compliance with Ohio Department of Agriculture regulations.

(Ordained by Ord. No. 251-2019, § 12, eff. July 26, 2019)

§ 1401-01-V. Vacant Lot.

See § 1401-01-L18.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-V1. Vehicle and Equipment Sales and Rental.

"Vehicle and equipment sales and rental" means a facility for the sale or rental of automobiles, motorcycles, trucks, tractors, construction or agricultural equipment, motor homes and RV's, boats and similar equipment, including storage and incidental maintenance.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-V2. Vehicle and Equipment Services.

"Vehicle and equipment services" means a facility for:

(a) Vehicle and equipment sales and rental. See § 1401-01-V1.

(b) Car wash. See § 1401-01-C.

(c) Fuel sales. See § 1401-01-F13.

(d) Vehicle repair. See § 1401-01-V3.

(e) Automobile holding facility. See § 1401-01-A14.

(f) Vehicle repair, heavy. See § 1401-01-V4.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 137-2008, § 1, eff. May 23, 2008)

§ 1401-01-V3. Vehicle Repair.

"Vehicle repair" means an establishment engaged in repair of automobiles, trucks, motorcycles, motor homes or recreational vehicles or boats, including the sale, installation and servicing of related equipment and parts including quick-service oil, tire sales and installation, tune-up, brake and muffler shops. This classification includes auto repair shops, body and fender shops and upholstery shops, but excludes vehicle dismantling or salvage and tire re-treading or recapping, towing or repair of heavy trucks or construction vehicles.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-V4. Vehicle Repair, Heavy.

"Heavy Vehicle Repair" means motor vehicle repair including but not limited to trucks, recreational vehicles, buses, boats and heavy equipment and similar size vehicles which have gross vehicle weights greater than 6,000 pounds but excluding airplane or aircraft.

(Ordained by Ord. No. 137-2008, § 2, eff. May 23, 2008)

§ 1401-01-V5. Vending Machine.

"Vending machine" means a self-service container, structure, storage unit or other device for dispensing consumable food products and goods. This definition excludes newsracks of publications and printed material.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 137-2008, § 3, eff. May 23, 2008)

Editor's note—Formerly § 1401-01-V4.

§ 1401-01-W. Warehousing and Storage.

(a) "Warehousing and storage" means a facility for the storage and distribution of personal property without sales to the public, including: Contractor's storage. See § 1401-01-C16.

(b) Indoor storage. See § 1401-01-I2.

(c) Oil and gas storage. See § 1401-01-O2.

(d) Outdoor storage. See § 1401-01-O6.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-W1. Waste Management.

"Waste management" means any of the following:

(a) *Waste collection.* Facilities where waste material, other than hazardous or infectious waste, is received and temporarily stored in closed containers without processing or disposition, including but not limited to: recycling drop-off point, yard waste depot,

charitable drive box and other similar uses limited in volume and means of storage and posing no nuisance by reason of odor, noise, runoff, underground seepage or unsightly conditions.

(b) *Waste disposal.* Facilities where waste material, including hazardous or infectious waste, is incinerated, land filled or put to other final disposition.

(c) *Waste transfer.* Facilities where waste material, other than hazardous or infectious waste, is received and processed for transportation to another place for recycling, re-use, incineration or final disposal, including but not limited to: biological treatment facility, composting yard, resource recovery facility, recycling center, buy-back center, tire shredding facility, tire recycling facility, refuse-derived fuel manufacturing facility, transfer station and other similar uses, limited by the volume and type of material processed, or the characteristics of the equipment or methods used to process the waste material.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-W2. Watercraft and Riverfront Facility.

"Watercraft and riverfront facility" includes any of the following:

(a) Barge terminal. See § 1401-01-B1.

(b) Boat and ship yards. See § 1401-01-B6.

(c) Commercial pier and port. See § 1401-01-C8.

(d) Marina. See § 1401-01-M1.

(e) Marine sales and service. See § 1401-01-M2.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-W3. Wholesaling and Distribution.

"Wholesaling and distribution" means a facility for storage and wholesale distribution of merchandise and bulk goods and non-retail store sales, including electronic shopping, mail-order houses and other direct-selling establishments. This use classification excludes retail sale of goods at discount prices for individual consumption.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-W4. Wireless Communication Antenna.

"Wireless communication antenna" means an antenna designed to transmit or receive communications as authorized by the Federal Communication Commission, excluding amateur radio operator antennae and parabolic antennae.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-W5. Wireless Communication Tower.

"Wireless communication tower" means a structure that elevates the wireless communication antenna and may include accessory transmission and receiving equipment, including, but not limited to, self-supporting lattice, guyed or monopole towers.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-W6. Wireless Equipment Shelter or Cabinet.

"Wireless equipment shelter or equipment cabinet" means a facility for housing telecommunication equipment.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-Y. Yard.

"Yard" means the area between the building and any lot line, including a front yard, side yard, corner side yard or rear yard.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-Y1. Yard, Front.

See § 1401-01-F11.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-Y2. Yard, Rear.

See § 1401-01-R1.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-Y3. Yard, Side.

See § 1401-01-S8.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1401-01-Z. Zoning Administrator.

As used herein, the term "Zoning Administrator" shall mean the Zoning Administrator as set forth in Administrative Code Article XXI.
(Ordained by Emer. Ord. No. 141-2015, § 6, eff. July 1, 2015)

Chapter 1403

SINGLE-FAMILY DISTRICTS

§ 1403-01. Purposes.
§ 1403-03. Specific Purposes of the Single-Family Subdistricts.
§ 1403-04. Connected Communities.
§ 1403-05. Land Use Regulations.
§ 1403-07. Development Regulations.
§ 1403-09. Truck Docks, Loading and Service Areas.
§ 1403-11. Repealed.
§ 1403-13. Repealed.
§ 1403-15. Repealed.
§ 1403-17. Repealed.
§ 1403-19. Repealed.

§ 1403-01. Purposes.

The general purposes of single-family districts are to:

(a) Maintain and enhance existing residential housing areas.

(b) Encourage quality and variety in building and landscape design as well as compatibility in use and form.

(c) Allow semi-public and non-residential uses, where appropriate.

(d) Establish appropriate standards for reviewing proposals for new development and redevelopment.

(e) Ensure the provision of public services and facilities needed to accommodate planned population densities.

Maintain and enhance the availability and quality of life for owner-occupied housing units.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1403-03. Specific Purposes of the Single-Family Subdistricts.

The specific purposes of the SF single-family districts are to create, maintain and enhance neighborhood residential areas that are characterized by low-density dwellings with typical lot sizes ranging from 2,000 square feet to one-half acre or more in size. Future development should remain single-family residential in character; however, some public and non-residential uses may be permitted, and two-family, three-family, and four-family uses are permitted in districts with Connected Community designations. Five subdistricts are established:

(a) *SF-20 Single-family.* This subdistrict allows large-lot single-family housing at very low densities found in suburban residential districts. The minimum lot size is 20,000 square feet.

(b) *SF-10 Single-family.* This subdistrict allows single-family housing at low densities. The minimum lot size is 10,000 square feet.

(c) *SF-6 Single-family.* This subdistrict allows medium-density, single-family housing. The minimum lot size is 6,000 square feet.

(d) *SF-4 Single-family.* This subdistrict allows moderately high density single-family housing. The minimum lot size is 4,000 square feet.

(e) *SF-2 Single-family.* This district allows high-density, small lot, single-family developments. The minimum lot size is 2,000 square feet for a single-family dwelling and 1,500 square feet for a rowhouse.

Figures 1403-03-A, B

Figures 1403-03-C, D

Figure 1403-03-E

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Emer. Ord. No. 199-2024, § 2, eff. 7-1-2024)

§ 1403-04. Connected Communities.

Three Connected Communities designations are established to enhance the base zoning district. The underlying zoning district and map overlays apply where not inconsistent with the development regulations below.

(a) *Neighborhood Business District 'B'*. This district designation is intended for areas located within established neighborhood business districts. The neighborhood business district 'B' designation is subject to the following development regulations:

(1) Two-family, three-family, four-family, and multi-family uses are permitted, subject to the development regulations of the underlying zoning district, except as otherwise provided in subsection (a)(2).

(2) Parking:

(i) No off-street parking is required for residential uses in a new building containing ten or fewer dwelling units.

(ii) Residential uses in a new building with more than ten dwelling units require one-half space per additional dwelling unit over ten dwelling units.

(iii) No off-street parking is required in a new commercial or mixed-use building if the building has 5,000 square feet or less of commercial space.

(iv) The underlying zoning district parking requirements are reduced by one-half for commercial uses in a new commercial or mixed-use building if the building has more than 5,000 square feet of commercial space.

(v) Additions to existing buildings are considered new construction for purposes of this section.

(vi) Accessory surface parking facilities shall be located in the rear yard.

(b) *Middle Housing 'MH'*. This district designation is intended for areas surrounding neighborhood business districts. The middle housing 'MH' designation is subject to the following development regulations:

(1) Two-family, three-family, and four-family uses are permitted subject to the development regulations of the underlying zoning district, except as otherwise provided in subsection (b)(2).

(2) Parking:

(i) No off-street parking is required for permitted residential uses.

(ii) Accessory surface parking facilities shall be located in the rear yard.

(c) *Transportation Corridor 'T'*. This district designation is intended for areas located along major transportation corridors. The transit corridor 'T' designation is subject to the following development regulations:

(1) Two-family, three-family, and four-family uses are permitted subject to the development regulations in Section 1403-07, except as otherwise provided in subsections (c)(2)-(4).

(2) Multi-family uses are only permitted if also located within a neighborhood business district.

(3) Minimum off-street parking regulations do not apply.

(4) Accessory surface parking facilities shall be located in the rear yard.

(d) *Design Standards.* Two-family, three-family, and four-family dwellings located within a designated Connected Communities district shall comply with the design standards set forth below.

(1) *Entrance.* At least one dwelling unit entrance shall be located on each street frontage.

(2) *Building Form.* Building composition shall consist of a base, middle, and top component to reduce the apparent bulk of the building. The designs of new buildings shall avoid long unrelieved expanses of wall along the street frontage by maintaining a rhythm of windows and structural bays.

(i) Buildings shall have a distinct base at the ground level, using articulation and materials such as stone, masonry, or decorative concrete.

(ii) Buildings shall have a change in material and/or design that marks the transition from base component to middle component, and from middle component to top component.

(iii) The top of the building shall be treated with a distinct outline with elements such as a projecting parapet, cornice, or projection.

(3) If the Zoning Administrator determines a permit application does not conform to the requirements of Section 1403-04(d), the Zoning Board of Appeals has the duty to determine whether the application satisfies the standards set forth in this Chapter prior to the issuance of a building permit.

(Ordained by Emer. Ord. No. 199-2024, § 1, eff. 7-1-2024)

§ 1403-05. Land Use Regulations.

Schedule 1403-05 below prescribes the land use regulations for SF Districts. Uses are defined in Chapter 1401, Definitions. Uses not listed in the Schedule 1403-05 are prohibited.

The regulations for each subdistrict are established by letter designations as follows:

(a) "P" designates permitted uses. These uses may be subject to additional regulations as indicated.

(b) "L" designates uses that are permitted, subject to certain limitations. Numeric suffixes refer to limitations listed at the bottom of Schedule 1403-05. Except as otherwise indicated, modifications of a numerical, locational or dimensional limitation requires a variance under Chapter 1445 - Variances, Special Exceptions and Conditional Uses.

(c) "C" designates uses permitted only after review and approval of the conditional use by the Zoning Hearing Examiner. These uses may be subject to additional regulations as indicated.

Schedule 1403-05: Use Regulations - Single-family Districts

Use Classifications	*SF-20*	*SF-10*	*SF-6*	*SF-4*	*SF-2*	*Additional Regulations*
Residential Uses						
Bed and breakfast home	—	C	C	C	C	See § 1419-09
Day care home—Type A	L4	L4	L4	L4	L4	
Day care home—Type B	L4	L4	L4	L4	L4	
Group residential						
Convents and monasteries	C	C	C	C	C	
Fraternities and sororities	—	—	—	—	—	
Patient family homes	—	—	—	—	—	
Rooming houses	—	—	—	—	—	
Shared housing for the elderly	—	—	—	L3	L3	
Permanent residential						
Single-family dwelling	P	P	P	P	P	
Attached single-family dwelling	—	—	—	P	P	
Rowhouse, single-family dwelling	—	—	—	—	P	
Two-family	L11	L11	L11	L11	L11	
Multi-family	L11	L11	L11	L11	L11	
Residential care facilities						
Developmental disability dwelling	P	P	P	P	P	
Public and Semipublic Uses						
Cemeteries	—	—	—	L1	L1	
Cultural institutions	—	—	C	C	C	
Park and recreation facilities	L12	L12	L12	L12	L12	
Public safety facilities	—	—	—	C	C	
Religious assembly	C	C	C	C	C	
School, public or private	C	C	C	C	C	See § 1419-12
Transportation, Communication and Utilities						
Public utility distribution system	C	C	C	C	C	
Wireless communication antenna	L2	L2	L2	L2	L2	See § 1419-33
Wireless communication tower	C	C	C	C	C	See § 1419-33
Agriculture and Extractive Uses						

Use Classifications	*SF-20*	*SF-10*	*SF-6*	*SF-4*	*SF-2*	*Additional Regulations*
Animal keeping	P	P	P	P	P	See Chapter 1422
Farms	C	C	C	C	C	See Chapter 1422
Gardens	P	P	P	P	P	See Chapter 1422
Accessory Uses						
Any accessory use not listed below	L8	L8	L8	L8	L8	
Accessory dwelling unit	L13	L13	L13	L13	L13	See § 1421-06
Home Occupation	P	P	P	P	P	See § 1419-17
Commercial Vehicle Parking	L5	L5	L5	L5	L5	
Child day-care centers	L4,6	L4,6	L4,6	L4,6	L4,6	
Refuse storage areas	P	P	P	P	P	See § 1421-35
Drive Box	L7	L7	L7	L7	L7	
Fences and walls	P	P	P	P	P	See § 1421-33
Exterior lighting	P	P	P	P	P	See § 1421-39
Cemetery, incidental buildings and structures	—	—	—	L9	L9	
Rooming Unit	—	—	L10	L10	L10	
Portable storage containers	P	P	P	P	P	See § 1419-24
Nonconforming Uses						See Chapter 1447

Specific Limitations

L1 Only expansion of existing cemeteries allowed with a conditional use approval.

L2 Antenna height may not exceed 20 feet; greater height requires a conditional use approval. The antenna may only be attached to a permitted agricultural, public or semi-public or public utility building or structure.

L3 The minimum lot area for every resident is 800 square feet and the minimum living area for every resident is 250 square feet.

L4 Fencing, a minimum of four feet in height must be provided for purposes of securing outdoor play areas which must be located in the rear yard only.

L5 One commercial vehicle completely enclosed in a garage may be parked or stored on the lot with the following exceptions:

a. An unlimited number of commercial vehicles conveying the necessary tools, materials and equipment to a premises where labor using such tools, materials and equipment is to be performed during actual time of parking.

b. One commercial vehicle with current license owned by a resident of the residential property on which it is stored or parked not to exceed two tons in capacity.

c. Recreational vehicles, watercraft and personal trailers may be parked on the lot beyond the front yard.

L6 Only if accessory to a public or semi-public use.

L7 Accessory to a public or semi-public use, provided the drive-box is at least 100 feet from any property used for residential purposes.

L8 Accessory uses determined by the Zoning Administrator to be customarily incidental to a use of the district are permitted. All others require conditional use approval.

L9 Mausoleums, columbaria and other incidental buildings and structures within and accessory to cemeteries, may be no less than 100 feet from abutting properties in the residential district and may not exceed the height limitation for principal buildings of the district in which it is located.

L10 No more than two rooming units may be rented or leased in a single-family dwelling.

L11 This use must be legally established prior to the effective date of this Zoning Code. The use has the rights of Chapter 1447, Nonconforming Uses and Structures except for the provisions of § 1447-09 Expansion of Nonconforming Use and § 1447-11 Substitution of a Nonconforming Use.

L12 Publicly owned or operated park and recreation facilities are permitted. All park and recreation facilities, private or non-profit, require a conditional use approval.

L13 Permitted only when subordinate and incidental to a single-family dwelling that is the principal use of the lot.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0054-2008, § 1, eff. March 13, 2008; a. Ord. No. 414-2008, § 4, eff. Jan. 4, 2009; a. Ord. No. 301-2009, § 1, eff. Dec. 12, 2009; a. Ord. No. 038-2010, § 1, eff. March 18, 2010; Emer. Ord. No. 141-2015, § 7, eff. July 1, 2015; a. Ord. No. 127-2018, § 5, eff. July 6, 2018; a. Ord. No. 251-2019, § 13, eff. July 26, 2019; a. Emer. Ord. No. 418-2021, §§ 2, 39, 40, eff. Nov. 10, 2021; a. Ord. No. 266-2023, §§ 5, 15, eff. Oct. 2, 2023; a. Emer. Ord. No. 199-2024, § 2, eff. 7-1-2024)

§ 1403-07. Development Regulations.

Schedule 1403-07 below prescribes the development regulations for the SF Districts, including lot area, width, setback and height. Where a special review district applies, the provisions of that district take precedence if there is conflict with the provisions of this Section. Additional standards are included in Chapter 1419.

Schedule 1403-07: Development Regulations - Single-family Districts

Building Form and Location			*Setbacks (ft.)*			
	Lot Area (sq. ft.)	Lot Width* (ft.)	Front Yard	Side Yard Min./Total	Rear Yard	Maximum Height (ft.)
Single-family (SF-20)	20,000	70	30	10/20	35	35
Single-family (SF-10)	10,000	60	30	10/20	35	35
Single-family (SF-6)	6,000	50	25	7/16	35	35
Single-family (SF-4)	4,000	40	20	3/12	25	35
Attached Single-family (SF-4)	3,500	35	20	0/6	25	35
Single-family (SF-2)	2,000	25	5	0/5	20	35
Rowhouse exterior	1,500	25	5	0/5	20	35
Rowhouse interior	1,500	25	5	0/0	20	35

Regulations	*SF-20*	*SF-10*	*SF-6*	*SF-4*	*SF-2*	*Additional Regulations*
Vehicle Accommodation - Driveways and Parking						
Location of Parking	Yes	Yes	Yes	Yes	Yes	See § 1425-15
Parking Lot Landscaping	Yes	Yes	Yes	Yes	Yes	See § 1425-29
Parking Lot Screening	Yes	Yes	Yes	Yes	Yes	See § 1425-27
Truck Docks; Loading and Service Areas	Yes	Yes	Yes	Yes	Yes	See § 1403-09
Other Regulations						
Buffering along District Boundaries	No	No	No	No	No	
Accessory Structures	See Chapter 1421					
General Site Standards	See Chapter 1421					
Landscaping and Buffer Yards	See Chapter 1423					
Nonconforming Uses and Structures	See Chapter 1447					
Off-Street Parking and Loading	See Chapter 1425					
Signs	See Chapter 1427					
Additional Development Regulations	See Chapter 1419					

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 239-2005, eff. July 21, 2005; a. Ord. No. 0050-2019, §§ 3, 4, eff. 2-6-2019; a. Emer. Ord. No. 199-2024, § 2, eff. 7-1-2024)

§ 1403-09. Truck Docks, Loading and Service Areas.

Truck Docks, Loading and Service Areas. Truck docks, loading and service areas are not permitted within 50 feet of an adjoining property line and are not permitted to be used between 10 PM and 7 AM on weekdays and between 11 PM and 7 AM on weekends. The

facilities must be located at the side of buildings or in the rear of the site and screened so as not to be visible from public streets. The preferred location of these facilities is the side furthest away from an adjoining property line.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1403-11. Repealed.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; r. Emer. Ord. No. 199-2024, § 3, eff. 7-1-2024)

§ 1403-13. Repealed.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0060-2008, § 5, eff. March 13, 2008; r. Emer. Ord. No. 199-2024, § 3, eff. 7-1-2024)

§ 1403-15. Repealed.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; r. Emer. Ord. No. 199-2024, § 3, eff. 7-1-2024)

§ 1403-17. Repealed.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; r. Emer. Ord. No. 199-2024, § 3, eff. 7-1-2024)

§ 1403-19. Repealed.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; Emer. Ord. No. 141-2015, § 8, eff. July 1, 2015; r. Emer. Ord. No. 199-2024, § 3, eff. 7-1-2024)

Chapter 1405

RESIDENTIAL MULTI-FAMILY DISTRICTS

§ 1405-01. Purposes.
§ 1405-03. Specific Purposes of the Multi-Family Subdistricts.
§ 1405-04. Connected Communities.
§ 1405-05. Land Use Regulations.
§ 1405-07. Development Regulations.
§ 1405-09. Truck Docks; Loading and Service Areas.

§ 1405-01. Purposes.

The general purposes of multi-family districts are to:

(a) Maintain and enhance the multi-family neighborhoods.

(b) Encourage quality and variety in building and landscape design as well as compatibility in use and form.

(c) Allow semi-public and non-residential uses, where appropriate.

(d) Establish appropriate standards for reviewing proposals for new development and redevelopment.

(e) Ensure the provision of services and facilities needed to accommodate planned population densities.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1405-03. Specific Purposes of the Multi-Family Subdistricts.

The specific purposes of the RM Residential Multi-family subdistricts are to create, maintain and enhance neighborhood residential areas with multi-family housing that are typically located near the city's major arterials and characterized by a mix of attached housing, small and large multi-unit buildings and community facilities, where appropriate. Future development will be primarily residential in character, although some small-scale public and non-residential uses on the ground floor in a mixed use building on an arterial street may be allowed with specific limitations. Four RM District subdistricts are established:

(a) *RMX Residential Mixed.* This subdistrict is intended to create, maintain and enhance areas of the city that have a mix of lot sizes and house types at moderate intensities (one to three dwelling units). Existing multi-family buildings of four or more units are acknowledged but new construction is not permitted.

(b) *RM-2.0 Multi-family.* This subdistrict is intended to provide for a medium density mix of residential housing predominantly duplexes and multi-family on lots that have already been platted. The scale of buildings is generally similar to a large single-family home on a small lot. Where land is assembled, the same scale should be maintained. The minimum land area for every dwelling unit is 2,000 square feet.

(c) *RM-1.2 Multi-family.* This subdistrict is intended to provide for mixed residential uses at moderately high densities. This is an intense district with an urban character. The minimum land area for every dwelling unit is 1,200 square feet.

(d) *RM-0.7 Multi-family.* This subdistrict is the most intense residential district and it will normally consist of tall multi-family or condominium structures. The character is

intended to be urban and should be used where high intensity residential is needed to provide a residential base for important commercial areas. The minimum land area for every dwelling unit is 700 square feet.

FIGURES 1405-03-A-D The following illustrations represent examples of the multi-family districts in this chapter:

Figure 1405-03-A, B

Figure 1405-03-C, D

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 389-2008, eff. Dec. 19, 2008)

§ 1405-04. Connected Communities.

Three Connected Communities designations are established to enhance the base zoning district. The underlying zoning district and map overlays apply where not inconsistent with the development regulations below.

(a) *Neighborhood Business District 'B'*. This district designation is intended for areas located within established neighborhood business districts. The neighborhood business district 'B' designation is subject to the following development regulations:

(1) Two-family, three-family, and four-family uses are permitted, subject to the development regulations of the underlying zoning district, except as otherwise provided in subsections (a)(2)-(4).

(2) Minimum lot-area-per-dwelling-unit regulations do not apply.

(3) Two-family, three-family, and four-family uses shall comply with the minimum lot area regulations for single-family uses.

(4) Parking:

(i) No off-street parking is required for residential uses in a new building containing ten or fewer dwelling units.

(ii) Residential uses in a new building with more than ten dwelling units require one-half space per additional dwelling unit over ten dwelling units.

(iii) No off-street parking is required in a new commercial or mixed-use building if the building has 5,000 square feet or less of commercial space.

(iv) The underlying zoning district parking requirements are reduced by one-half for commercial uses in a new commercial or mixed-use building if the building has more than 5,000 square feet of commercial space.

(v) Additions to existing buildings are considered new construction for purposes of this section.

(vi) Accessory surface parking facilities shall be located in the rear yard.

(b) *Middle Housing 'MH'*. This district designation is intended for areas surrounding neighborhood business districts. The middle housing 'MH' designation is subject to the following development regulations:

(1) Two-family, three-family, and four-family uses are permitted subject to the development regulations of the underlying zoning district, except as otherwise provided in subsections (b)(2)-(4).

(2) Minimum lot-area-per-dwelling-unit regulations do not apply for two-family, three-family, and four-family uses.

(3) Two-family, three-family, and four-family uses shall comply with the minimum lot area regulations for single-family uses.

(4) Parking:

(i) No off-street parking is required for residential uses in a new building containing ten or fewer dwelling units.

(ii) Residential uses in a new building with more than ten dwelling units require one-half space per additional dwelling unit over ten dwelling units.

(iii) No off-street parking is required in a new commercial or mixed-use building if the building has 5,000 square feet or less of commercial space.

(iv) The underlying zoning district parking requirements are reduced by one-half for commercial uses in a new commercial or mixed-use building if the building has more than 5,000 square feet of commercial space.

(v) Additions to existing buildings are considered new construction for purposes of this section.

(vi) Accessory surface parking facilities shall be located in the rear yard.

(c) *Transportation Corridor 'T'.* This district designation is intended for areas located along major transportation corridors. The transit corridor 'T' designation is subject to the following development regulations:

(1) Two-family, three-family, and four-family uses are permitted subject to the development regulations in Section 1405-07, except as otherwise provided in subsections (c)(2)-(6).

(2) Minimum lot-area-per-dwelling-unit regulations do not apply.

(3) Two-family, three-family, and four-family uses shall comply with the minimum lot area regulations for single-family uses.

(4) Minimum off-street parking regulations do not apply.

(5) The height of new structures may exceed the maximum height of the underlying zoning district by an additional twelve feet.

(6) Accessory surface parking facilities shall be located in the rear yard.

(d) *Design Standards.* Two-family, three-family, and four-family dwellings located within a designated Connected Communities district shall comply with the design standards set forth below.

(1) *Entrance.* At least one dwelling unit entrance shall be located on each street frontage.

(2) *Building Form.* Building composition shall consist of a base, middle, and top component to reduce the apparent bulk of the building. The designs of new buildings shall avoid long unrelieved expanses of wall along the street frontage by maintaining a rhythm of windows and structural bays.

(i) Buildings shall have a distinct base at the ground level, using articulation and materials such as stone, masonry, or decorative concrete.

(ii) Buildings shall have a change in material and/or design that marks the transition from base component to middle component, and from middle component to top component.

(iii) The top of the building shall be treated with a distinct outline with elements such as a projecting parapet, cornice, or projection.

(3) If the Zoning Administrator determines a permit application does not conform to the requirements of Section 1405-04(d), the Zoning Board of Appeals has the duty to determine whether the application satisfies the standards set forth in this Chapter prior to the issuance of a building permit.

(Ordained by Emer. Ord. No. 199-2024, § 1, eff. 7-1-2024)

§ 1405-05. Land Use Regulations.

Schedule 1405-05 below prescribes the land use regulations for RM Districts. Use classifications are defined in Chapter 1401, Definitions. Use classifications not listed in Schedule 1405-05 below are prohibited.

The regulations for each subdistrict are established by letter designations as follows:

(a) "P" designates permitted uses. These uses may be subject to additional regulations as indicated.

(b) "L" designates uses that are permitted, subject to certain limitations. Numeric suffixes refer to limitations listed at the bottom of Schedule 1405-05. Except as otherwise indicated, modifications of a numerical, locational or dimensional limitation requires a variance under Chapter 1445 - Variances, Special Exceptions and Conditional Uses.

(c) "C" designates uses permitted only after review and approval of the conditional use by the Zoning Hearing Examiner. These uses may be subject to additional regulations as indicated.

Schedule 1405-05: Use Regulations - Residential Multi-family Districts

Use Classifications	*RMX*	*RM-2.0*	*RM-1.2*	*RM-0.7*	*Additional Regulations*
Residential Uses					
Bed and breakfast home	P	P	P	P	See § 1419-09
Day care home - Adult	C	C	P	P	
Day care home - Type A	L4	L4	L4	L4	
Day care home - Type B	L4	L4	L4	L4	
Group residential					
Congregate housing	—	—	P	P	
Convents and monasteries	P	P	P	P	
Fraternities, sororities, dormitories	—	—	C	P	
Patient family homes	—	—	P	P	
Rooming houses	—	—	—	L2	
Shared housing for the elderly	L1	L1	L1	L1	
Permanent residential					
Single-family dwelling	P	P	P	P	
Attached single-family dwelling	P	P	P	P	

Use Classifications	*RMX*	*RM-2.0*	*RM-1.2*	*RM-0.7*	*Additional Regulations*
Rowhouse, single-family dwelling	P	P	P	P	
Two-family dwelling	P	P	P	P	
Three-family dwelling	P	P	P	P	
Multi-family dwelling	L3	P	P	P	
Residential care facilities					
Assisted living	C	C	P	P	
Developmental disability dwelling	P	P	P	P	
Nursing home	C	C	P	P	
Special assistance shelter	—	—	—	C	
Transitional housing					
Programs 1—4	—	P	P	P	
Programs 5—6	—	—	—	—	
Public and Semipublic Uses					
Clubs and lodges	C	C	C	C	
Community service facilities	C	C	C	P	
Cultural institutions	C	C	C	P	
Parks and recreation facilities	P	P	P	P	
Public safety facilities	C	C	P	P	
Religious assembly	P	P	P	P	
Schools, public or private	P	P	P	P	
Commercial Uses					
Bed and breakfast inns	C	C	C	P	See § 1419-09
Business services	—	—	—	L6,7	
Convenience markets	—	L15	L15	L7	
Food markets	—	L15	L15	L7	
Funeral and interment services	—	—	—	L6	
Loft dwelling units	—	L14	L14	L14	See § 1419-23
Medical services and clinics	—	—	—	L6,7	
Offices	—	—	—	L6,7	
Parking facilities	—	C	C	C	See Chapter 1425
Personal instructional services	—	—	—	L6,7	
Personal services	—	—	—	L6,7	
Recreation and entertainment					
Indoor or small-scale	—	—	—	L6,7	
Transportation, Communication and Utilities					
Public utility distribution system	C	C	C	C	
Transportation facilities					
Railroad right-of-way	P	P	P	P	

Use Classifications	*RMX*	*RM-2.0*	*RM-1.2*	*RM-0.7*	*Additional Regulations*
Wireless communication antenna	L9	L9	L9	L9	See § 1419-33
Wireless communication tower	C	C	C	C	See § 1419-33
Agriculture and Extractive Uses					
Animal keeping	P	P	P	P	See Chapter 1422
Farms	P	P	P	P	See Chapter 1422
Gardens	P	P	P	p	See Chapter 1422
Accessory Uses					
Any accessory use not listed below	L8	L8	L8	L8	
Accessory dwelling unit	L17	L17	L17	L17	See § 1421-06
Home occupations	P	P	P	P	See § 1419-17
Commercial vehicle parking	L11	L11	L11	L11	
Day care center	L4, L16	L4, L16	L4, L16	L4, L16	
Rooming unit	L10	L10	L10	L10	
Transitional housing	L13	L13	L13	L13	
Commercial services	—	P	P	P	See § 1419-35, 1419-37
Refuse storage areas	P	P	P	P	See § 1421-35
Drive box	L12	L12	L12	L12	
Fences and walls	P	P	P	P	See § 1421-33
Exterior lighting	P	P	P	P	See § 1421-39
Portable storage containers	P	P	P	P	See § 1419-24
Nonconforming Uses					See Chapter 1447

Specific Limitations

L1 The minimum lot area for every resident is 500 square feet and the minimum living area for every resident is 250 square feet.

L2 Only rooming houses licensed pursuant to Chapter 855. Rooming Houses of the Municipal Code; the maximum number of rooming units is five, and a separate entrance for access to rooming units must be provided. The minimum rental is seven days. See § 1421-43.

L3 Multi-family dwellings of four or more units must be legally established prior to the effective date of this Zoning Code. The use has the rights of Chapter 1447, Nonconforming Uses and Structures except for the provisions of §1447-09 Expansion of Nonconforming Use and §1447-11 Substitution of a Nonconforming Use.

L4 Fencing, a minimum of four feet in height must be provided for purposes of securing outdoor play areas which must be located in the rear yard only.

L5 Not to exceed 3,000 square feet in gross floor area.

L6 Permitted only on arterial streets.

L7 Permitted on the ground floor occupying less than 2,500 sq. ft.; more space requires a conditional use approval.

L8 Accessory uses determined by the Zoning Administrator to be customarily incidental to a use of the district are permitted. All others require conditional use approval.

L9 Antenna height may not exceed 20 feet; greater height requires a conditional use approval. The antenna may be attached to a multi-family, public and semi-public or public utility building or structure.

L10 No more than two rooming units may be rented or leased in any dwelling.

L11 One commercial vehicle completely enclosed in a garage may be parked or stored on the lot with the following exceptions:

a. An unlimited number of commercial vehicles conveying the necessary tools, materials and equipment to a premises where labor using such tools, materials and equipment is to be performed during actual time of parking.

b. One commercial vehicle with current license owned by a resident of the residential property on which it is stored or parked not to exceed two tons in capacity.

c. Recreational vehicles, watercraft and personal trailers may be parked on the lot beyond the front yard.

L12 Accessory to a public or semi-public use, provided the drive box is at least 100 feet from any property used for residential purposes.

L13 Limited to transitional housing conforming to Paragraph 1401-03-T(c)(5) as an accessory use to public and semi-public uses. The use requires conditional use approval.

L14 Limited to City Council designated Live/Work Districts.

L15 Permitted on the ground floor in multi-family buildings with a minimum of fifty dwelling units, occupying 1,200 square feet or less of gross floor area and having a separate exterior entrance: structures with less than fifty dwelling units require conditional use approval; food markets occupying more than 1,200 square feet of gross floor area require conditional use approval.

L16 Permitted only if accessory to a public or semi-public use.

L17 Permitted only when subordinate and incidental to a single-family dwelling that is the principal use of the lot.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 260-2005, eff. July 21, 2005; a. Ord. No. 0346-2007, § 4, eff. Oct. 13, 2007; a. Ord. No. 156-2008, § 1, eff. June 7, 2008; a. Ord. No. 414-2008, § 6, eff. Jan. 4, 2009; Ord. No. 409-2008, § 1, eff. Jan. 4, 2009; a. Ord. No. 302-2009, § 1, eff. Dec. 12, 2009; a. Ord. No. 038-2010, § 1, eff. March 18, 2010; Emer. Ord.

No. 141-2015, § 9, eff. July 1, 2015; a. Ord. No. 112-2016, § 1, eff. June 4, 2016; a. Ord. No. 0281-2017, § 6, eff. Nov. 4, 2017; a. Ord. No. 251-2019, § 14, eff. July 26, 2019; a. Ord. No. 266-2023, §§ 6, 15, eff. Oct. 2, 2023; a. Emer. Ord. No. 199-2024, § 2, eff. 7-1-2024)

§ 1405-07. Development Regulations.

Schedule 1405-07 below prescribes the development regulations for the RM Districts, including lot area for every unit, minimum lot width, setbacks and maximum height. Figure 1405-07 illustrates the setbacks for the RM Districts. Where an overlay district applies, the provisions of that district take precedence if there is conflict with the standards of this Section.

Schedule 1405-07 Development Regulations - Residential Multi-family Districts

				Setbacks (ft.)			
Building Form and Location	*Lot Area (sq. ft.)*	*Lot Area / Unit (sq. ft.)*	*Lot width (ft.)*	*Front Yard*	*Side Yard Min. / Total*	*Rear Yard*	*Maximum Height (ft.)*
RMX single-family	2,500	—	25	20	0/5	20	35
RMX rowhouse exterior	1,500	—	—	20	0/5	20	35
RMX rowhouse interior	1,500	—	—	20	0/0	20	35
RMX two-family	5,000	2,500	25	20	3/6	20	35
RMX three-family	7,500	2,500	25	20	3/6	20	35
RMX other			25	20	3/6	20	35
RM 2.0 single-family	2,000	—	25	20	0/5	20	35
RM 2.0 rowhouse exterior	1,500	—	—	20	0/5	20	35
RM 2.0 rowhouse interior	1,500	—	—	20	0/0	20	35
RM 2.0 two-family	4,000	2,000	25	20	3/6	20	35
RM 2.0 multi-family	—	2,000	—	20[1]	5/17[3]	35	45
RM 2.0 other			25	20[1]	5/17[3]	35	45
RM 1.2 single-family	2,000	—	25	20	0/5	20	35
RM 1.2 rowhouse exterior	1,500	—	—	20	0/5	20	35
RM 1.2 rowhouse interior	1,500	—	—	20	0/0	20	35
RM 1.2 two-family	2,400	1,200	25	20	3/6	20	35
RM 1.2 multi-family	—	1,200	—	20[2]	5/17[3]	30[2]	-
RM 1.2 other				20[2]	5/17[3]	30[2]	—
RM 0.7 single-family	2,000	—	25	5	0/5	20	35

				Setbacks (ft.)			
Building Form and Location	*Lot Area (sq. ft.)*	*Lot Area / Unit (sq. ft.)*	*Lot width (ft.)*	*Front Yard*	*Side Yard Min. / Total*	*Rear Yard*	*Maximum Height (ft.)*
RM 0.7 rowhouse exterior	1,500	—	—	5	0/5	20	35
RM 0.7 rowhouse interior	1,500	—	—	5	0/0	20	35
RM 0.7 two-family	2,000	700	25	5	0/5	20	35
RM 0.7 multi-family	—	700	—	5	0/5[4]	25[2]	—
RM 0.7 other				5	0/5[4]	25[2]	—

"Yes" means additional regulations apply.

Regulations	*RMX*	*RM 2.0*	*RM 1.2*	*RM 0.7*	*Additional Regulations*
Vehicle Accommodation Driveways and Parking					
Location of parking	Yes	Yes	Yes	Yes	See § 1425-17
Parking lot landscaping	Yes	Yes	Yes	Yes	See § 1425-31
Parking lot screening	Yes	Yes	Yes	Yes	See § 1425-29
Truck docks; loading and service areas	Yes	Yes	Yes	Yes	See § 1405-09
Other Regulations					
Buffering along district boundaries	Yes	Yes	Yes	Yes	See § 1423-13
Accessory structures	See Chapter 1421				
General site standards	See Chapter 1421				
Landscaping and buffer yards	See Chapter 1423				
Nonconforming uses and structures	See Chapter 1447				
Off-street parking and loading	See Chapter 1425				
Signs	See Chapter 1427				
Additional development regulations	See Chapter 1419				

[1]Additional 1-foot of setback for each 1-foot of building height above 35 feet.
[2]Additional 1-foot of setback for each five feet of building height above 35 feet.
[3]Addition 0.5-foot of minimum side yard and 1-foot sum of side yard setback for each 1-foot of building height above 35 feet.
[4]Additional 1-foot of minimum side yard and 2-foot sum of side yard setback for each five feet of building height above 35 feet.

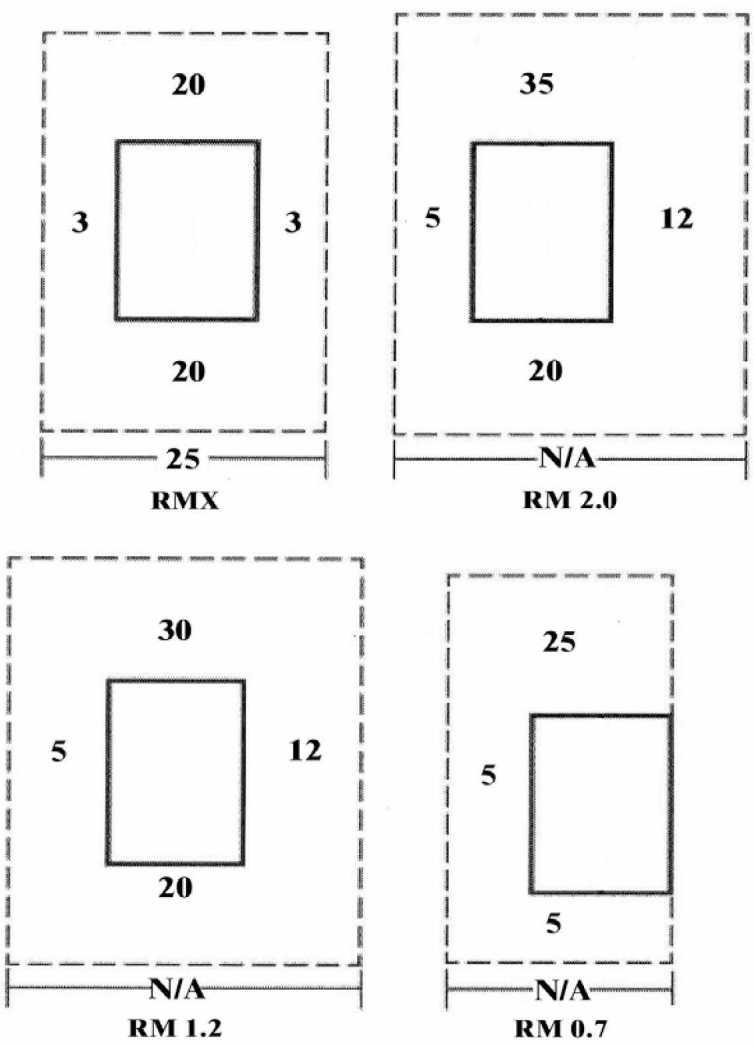


Figure 1405-07 Minimum Setbacks for Multi-Family Buildings
35 ft. in Height

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 260-2005, eff. July 21, 2005; a. Emer. Ord. No. 199-2024, § 2, eff. 7-1-2024)

§ 1405-09. Truck Docks; Loading and Service Areas.

Truck docks, loading and service areas are not permitted within 50 feet of an adjoining property line and are not permitted to be used between 10 PM and 7 AM on weekdays and between 11 PM and 7 AM on weekends. The facilities must be located at the side of buildings or in the rear of the site and screened so as not to be visible from public streets. Where a

building abuts the SF district, these facilities shall be located on the side away from the district boundary unless the applicant can show mitigating circumstances and/or measures that will protect the abutting SF district from adverse impacts from these facilities.
(Ordained by Ord. No. 241-2005, eff. July 21, 2005)

Chapter 1407

OFFICE DISTRICTS

§ 1407-01. Purposes.
§ 1407-03. Specific Purposes of the Office Subdistricts.
§ 1407-04. Connected Communities.
§ 1407-05. Land Use Regulations.
§ 1407-07. Development Regulations.
§ 1407-09. Front Yards.
§ 1407-11. Side Yards.
§ 1407-13. Rear Yards.
§ 1407-15. Driveway Restrictions.
§ 1407-17. Truck Docks; Loading and Service Areas.

§ 1407-01. Purposes.

The general purposes of the office districts are to:

(a) Provide appropriately located areas for office development, consistent with applicable plans.

(b) Ensure compatibility between office development and adjacent uses.

(c) Identify appropriate standards for reviewing proposals for new or expanded office development.

(d) Ensure the provision of services and facilities needed to accommodate planned employment densities.

(e) Provide a transition between residential and commercial uses.

(f) Allow limited residential uses.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1407-03. Specific Purposes of the Office Subdistricts.

The specific purposes of the office subdistricts are:

(a) *OL Office Limited.* To provide sites for offices, research and development facilities and limited commercial uses in a low intensity manner. Mixed-use developments with residential uses are also allowed.

(b) *OG Office General.* To provide sites for offices and research and development facilities in a large-scale or campus-like environment. Offices, small-scale government offices and facilities, banks and other financial institutions and supporting non-office uses-business services and personal services-are allowed. Mixed-use developments with residential uses are also allowed.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1407-04. Connected Communities.

Three Connected Communities designations are established to enhance the base zoning district. The underlying zoning district and map overlays apply where not inconsistent with the development regulations below.

(a) *Neighborhood Business District 'B'.* This district designation is intended for areas located within established neighborhood business districts. The neighborhood business district 'B' designation is subject to the following development regulations:

(1) Two-family, three-family, and four-family uses are permitted, subject to the development regulations of the underlying zoning district, except as otherwise provided in subsections (a)(2) and (a)(3).

(2) Minimum lot-area-per-dwelling-unit regulations do not apply.

(3) Parking:

(i) No off-street parking is required for residential uses in a new building containing ten or fewer dwelling units.

(ii) Residential uses in a new building with more than ten dwelling units require one-half space per additional dwelling unit over ten dwelling units.

(iii) No off-street parking is required in a new commercial or mixed-use building if the building has 5,000 square feet or less of commercial space.

(iv) The underlying zoning district parking requirements are reduced by one-half for commercial uses in a new commercial or mixed-use building if the building has more than 5,000 square feet of commercial space.

(v) Additions to existing buildings are considered new construction for purposes of this section.

(vi) Accessory surface parking facilities shall be located in the rear yard.

(b) *Middle Housing 'MH'*. This district designation is intended for areas surrounding neighborhood business districts. The middle housing 'MH' designation is subject to the following development regulations:

(1) Two-family, three-family, and four-family uses are permitted subject to the development regulations of the underlying zoning district, except as otherwise provided in subsection (b)(2).

(2) Parking:

(i) No off-street parking is required for residential uses in a new building containing ten or fewer dwelling units.

(ii) Residential uses in a new building with more than ten dwelling units require one-half space per additional dwelling unit over ten dwelling units.

(iii) No off-street parking is required in a new commercial or mixed-use building if the building has 5,000 square feet or less of commercial space.

(iv) The underlying zoning district parking requirements are reduced by one-half for commercial uses in a new commercial or mixed-use building if the building has more than 5,000 square feet of commercial space.

(v) Additions to existing buildings are considered new construction for purposes of this section.

(vi) Accessory surface parking facilities shall be located in the rear yard.

(c) *Transportation Corridor 'T'*. This district designation is intended for areas located along major transportation corridors. The transit corridor 'T' designation is subject to the following development regulations:

(1) Two-family, three-family, and four-family uses are permitted subject to the development regulations in Section 1407-07, except as otherwise provided in subsections (c)(2)-(5).

(2) Minimum lot-area-per-dwelling-unit regulations do not apply.

(3) Minimum off-street parking regulations do not apply.

(4) The height of new structures may exceed the maximum height of the underlying zoning district by an additional twelve feet.

(5) Accessory surface parking facilities shall be located in the rear yard.

(d) *Design Standards.* Two-family, three-family, and four-family dwellings located within a designated Connected Communities district shall comply with the design standards set forth below.

(1) *Entrance.* At least one dwelling unit entrance shall be located on each street frontage.

(2) *Building Form.* Building composition shall consist of a base, middle, and top component to reduce the apparent bulk of the building. The designs of new buildings shall avoid long unrelieved expanses of wall along the street frontage by maintaining a rhythm of windows and structural bays.

(i) Buildings shall have a distinct base at the ground level, using articulation and materials such as stone, masonry, or decorative concrete.

(ii) Buildings shall have a change in material and/or design that marks the transition from base component to middle component, and from middle component to top component.

(iii) The top of the building shall be treated with a distinct outline with elements such as a projecting parapet, cornice, or projection.

(3) If the Zoning Administrator determines a permit application does not conform to the requirements of Section 1407-04(d), the Zoning Board of Appeals has the duty to determine whether the application satisfies the standards set forth in this Chapter prior to the issuance of a building permit.

(Ordained by Emer. Ord. No. 199-2024, § 1, eff. 7-1-2024)

§ 1407-05. Land Use Regulations.

Schedule 1407-05 below prescribes the land use regulations for O Office Districts. Use classifications are defined in Chapter 1401, Definitions. Use classifications not listed in Schedule 1407-05 below are prohibited.

The regulations for each subdistrict are established by letter designations as follows:

(a) "P" designates permitted uses. These uses may be subject to additional regulations, as indicated.

(b) "L" designates uses that are permitted, subject to certain limitations. Numeric suffixes refer to limitations listed at the bottom of Schedule 1407-05. Except as otherwise indicated, modifications of a numerical, locational or dimensional limitation requires a variance under Chapter 1445 - Variances, Special Exceptions and Conditional Uses.

(c) "C" designates uses permitted only after review and approval of the conditional use by the Zoning Hearing Examiner. These uses may be subject to additional regulations as indicated.

Schedule 1407-05: Use Regulations - Office Districts

Use Classifications	*OL*	*OG*	*Additional Regulations*
Residential Uses			

Use Classifications	*OL*	*OG*	*Additional Regulations*
Bed and breakfast home	P	P	See § 1419-09
Day care home - Adult	P	P	
Day care home - Type A	L8	L8	
Day care home - Type B	L8	L8	
Group residential			
Congregate housing	P	P	
Convents and monasteries	P	P	
Fraternities and sororities	P	P	
Patient family homes	P	P	
Rooming house	—	L7	
Shared housing for elderly	P	P	
Permanent residential			
Single-family dwelling	P	L1	
Attached single-family dwelling	P	L1	
Rowhouse, single-family dwelling	P	—	
Two-family dwelling	P	L1	
Multi-family dwelling	P	L1	
Transitional housing			
Programs 1—4	P	P	
Program 5	—	P	
Program 6	—	C	
Public and Semipublic Uses			
Clubs or lodges	C	P	
Colleges, public or private	—	C	
Cultural institutions	P	P	
Day care center	P	P	
Government facilities and offices			
Offices	P	P	
Hospitals	—	C	
Parks and recreation facilities	P	P	
Public safety facilities	P	P	
Religious assembly	P	P	
Schools, public or private	P	P	See § 1419-12
Commercial Uses			
Animal services	—	P	See § 1419-05
Banks and financial institutions	P	P	See § 1419-13
Bed and breakfast inns	C	C	See § 1419-09
Business services	P	P	
Commercial meeting facility	L2	P	
Eating and drinking establishments			
Restaurants, full service	—	L4,5	See § 1419-21
Restaurants, limited	—	L4,5	See § 1419-21
Convenience markets	L4, 5	L4, 5	
Food markets	L4,5	L4,5	
Funeral and interment services	P	P	
Hotels and commercial lodging	—	P	
Laboratories, commercial	C	P	

Use Classifications	*OL*	*OG*	*Additional Regulations*
Medical services and clinics	P	P	
Offices	P	P	
Parking facilities	C	C	See Chapter 1425
Personal instructional services	L3,4	L4	
Personal services	L3,4	L4	
Transportation, Communications and Utilities Uses			
Communications facilities	—	C	
Public utility distribution system	C	C	
Transportation facilities			
Heliports	—	C	
Railroad right-of-way	P	P	
Wireless communication antenna	L6	L6	See § 1419-33
Wireless communication tower	C	C	See § 1419-33
Agriculture and Extractive Uses			
Animal keeping	C	C	See Chapter 1422
Farms	C	C	See Chapter 1422
Gardens	P	P	See Chapter 1422
Accessory Uses			See Chapter 1421
Any accessory use not listed below	L9	L9	
Accessory dwelling unit	L13	L13	See § 1421-06
Home occupations	P	P	See § 1419-17
Rooming unit	L10	L10	
Refuse storage areas	P	P	See § 1421-35
Drive box	L11	L11	
Fences and walls	P	P	See § 1421-33
Exterior lighting	P	P	See § 1421-39
Small-scale specialized incinerator	—	L12	
Portable storage containers	P	P	See § 1419-24
Nonconforming Uses			See Chapter 1447

Specific Limitations

L1 For new construction, permitted only above the ground floor in mixed-use building on arterial streets. Modification requires conditional use approval pursuant to the procedures and criteria of Chapter 1445, Variances, Special Exceptions, and Conditional Uses. Pre-existing permanent residential uses are permitted.

L2 Not to exceed 3,000 square feet in gross floor area.

L3 Permitted only on arterial streets.

L4 Permitted on the ground floor occupying less than 2,500 sq. ft.; more space requires a conditional use approval.

L5 Drive-through facilities are not permitted.

L6 Antenna height may not exceed 20 feet; greater height requires a conditional use approval. The antenna may be attached to a multi-family, public and semi-public, commercial or public utility building or structure.

L7 Only rooming houses licensed pursuant to Chapter 855. Rooming Houses of the Municipal Code; no more than five rooming units for every building, and a separate entrance for access to rooming units must be provided. The minimum rental is seven days. See § 1421-43.

L8 Fencing, a minimum of four feet in height must be provided for purposes of securing outdoor play areas which must be located in the rear yard only.

L9 Accessory uses determined by the Zoning Administrator to be customarily incidental to a use of the district are permitted. All others require conditional use approval.

L10 The maximum number of rooming units is two.

L11 Accessory to a public or semi-public use, provided the drive box is at least 100 feet from any property used for residential purposes.

L12 Accessory to hospitals, medical services, clinics commercial laboratories and research and development uses, provided the incinerator is located on a roof or at least 100 feet from any property used for residential purposes.

L13 Permitted only when subordinate and incidental to a single-family dwelling that is the principal use of the lot.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0346-2007, § 5, eff. Oct. 13, 2007; a. Ord. No. 149-2008, § 1, eff. June 7, 2008; a. Ord. No. 414-2008, § 8, eff. Jan. 4, 2009; a. Ord. No. 303-2009, § 1, eff. Dec. 12, 2009; a. Ord. No. 038-2010, § 1, eff. March 18, 2010; Emer. Ord. No. 141-2015, § 10, eff. July 1, 2015; a. Ord. No. 112-2016, § 2, eff. June 4, 2016; a. Ord. No. 0281-2017, § 8, eff. Nov. 4, 2017; a. Ord. No. 127-2018, § 7, eff. July 6, 2018; a. Ord. No. 251-2019, § 15, eff. July 26, 2019; a. Ord. No. 266-2023, §§ 7, 15, eff. Oct. 2, 2023)

§ 1407-07. Development Regulations.

Schedule 1407-07 prescribes the development regulations for O Office Districts, including minimum lot area, maximum floor area ratio (FAR), maximum building height, minimum yards, driveways and parking and other standards that apply. Letter designations in the additional regulations column refer to regulations that follow Schedule 1407-07.

Schedule 1407-07: Development Regulations - Office Districts

Regulations	*OL*	*OG*	*Additional Regulations*
Building Scale - Intensity of Use			
Minimum lot area for every dwelling unit	1200	700	
Maximum gross floor area ratio	0.6	1.75	
Building Form and Location			
Maximum building height	45	100	

Regulations	*OL*	*OG*	*Additional Regulations*
Minimum yard (ft.)			
Front	20	20	See § 1407-09
Side (minimum/total)	5/10	5/20	See § 1407-11
Side rowhouse (minimum/total)			
Exterior lot	0/5	—	
Interior lot	0/0	—	
Rear	20	20	See § 1407-13
Vehicle Accommodation - Driveways and Parking			
Driveway restrictions	Yes	Yes	See § 1407-15
Location of parking	Yes	Yes	See § 1425-15
Parking lot landscaping	Yes	Yes	See § 1425-29
Truck docks; loading and service areas	Yes	Yes	See § 1407-17
Other Regulations			
Buffering along district boundaries	Yes	Yes	See § 1423-13
Accessory uses and structures	See Chapter 1421		
General site standards	See Chapter 1421		
Landscaping and buffer yards	See Chapter 1423		
Nonconforming uses and structures	See Chapter 1447		
Off-street parking and loading	See Chapter 1425		
Signs	See Chapter 1427		
Additional development regulations	See Chapter 1419		

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0346-2007, § 5, eff. Oct. 13, 2007; a. Ord. No. 149-2008, § 2, eff. June 7, 2008)

§ 1407-09. Front Yards.

An additional two feet of front yard setback is required for each ten feet of building height above 25 feet. Refer to Figure 1407-09.

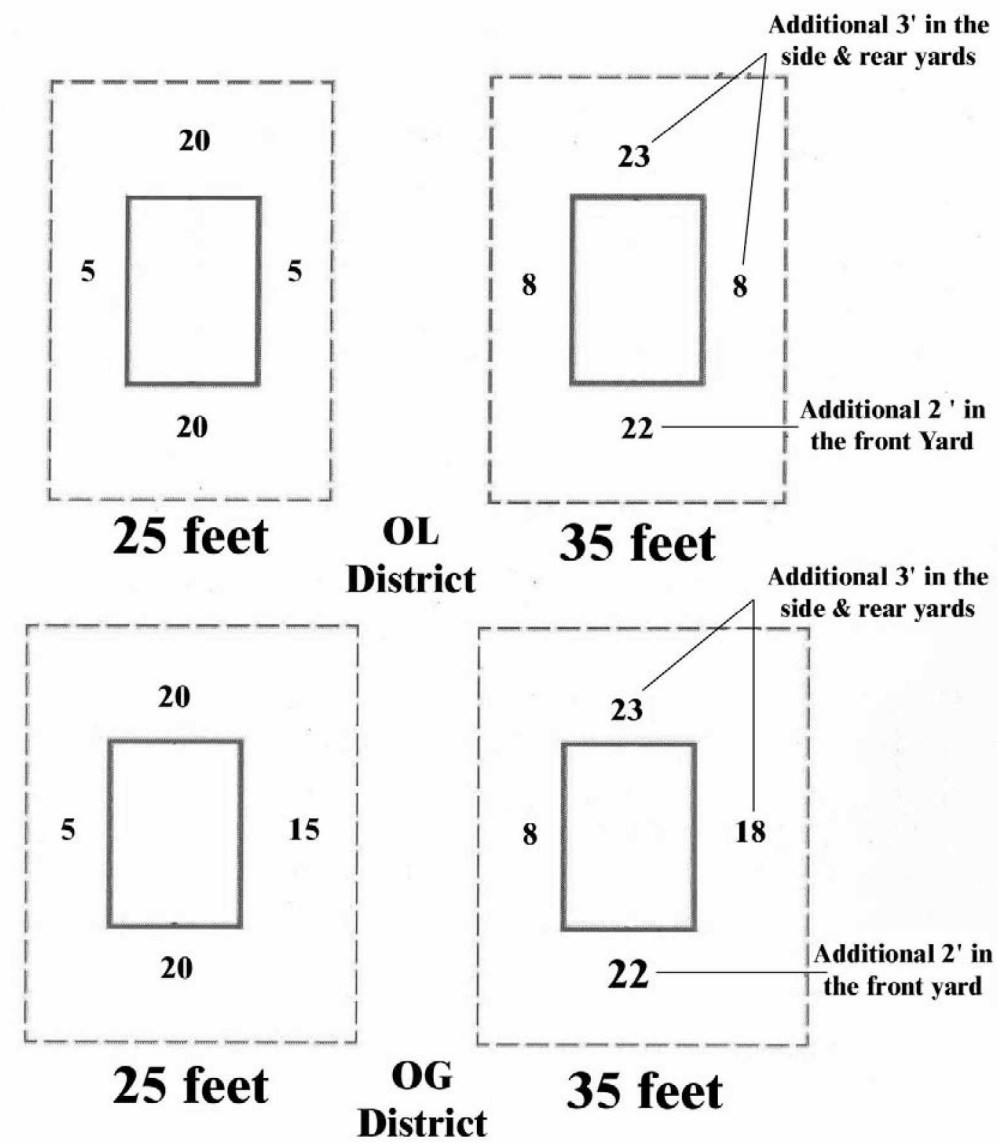


Figure 1407-09 Required Yards for Buildings 25 ft. vs. 35 ft. in Height

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1407-11. Side Yards.

An additional three feet of side yard setback is required on each side for each ten feet of building height above 25 feet. Refer to Figure 1407-09. In the OG District a minimum setback of 20 feet is required if abutting a residential district boundary. Refer to Figure 1407-11.

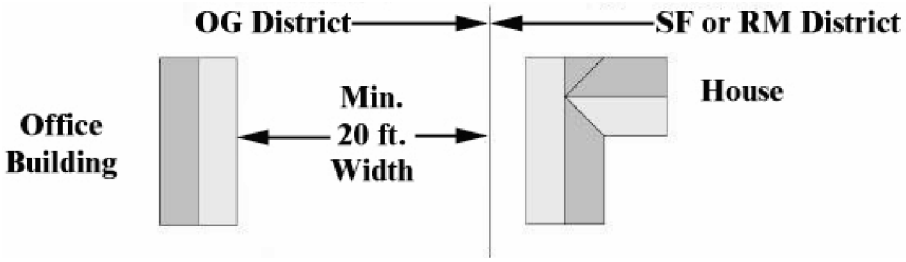


Figure 1407-11 Required Side Yard Abutting a Residential District

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1407-13. Rear Yards.

An additional three feet of rear yard setback is required for each ten feet of building height above 25 feet. Refer to Figure 1407-09.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1407-15. Driveway Restrictions.

Site access must be from a side street or alley wherever practical, but not from a residential street where alternate access is available, as determined by the City Engineer.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1407-17. Truck Docks; Loading and Service Areas.

Truck docks, loading and service areas are not permitted within 50 feet of residential district boundaries and are not permitted to be used between 10 PM and 7 AM on weekdays and between 11 PM and 7 AM on weekends. These facilities must be located at the side of buildings or in the rear of the site and screened so as not to be visible from public streets. Where a building abuts a residential district, the preferred location of these facilities is the side away from the district boundary.

Chapter 1409

COMMERCIAL DISTRICTS

§ 1409-01. Purposes.
§ 1409-03. Specific Purposes of the Commercial Subdistricts.
§ 1409-04. Connected Communities.
§ 1409-05. Community Character.
§ 1409-07. Land Use Regulations.
§ 1409-09. Development Regulations.
§ 1409-11. Driveway Restrictions.
§ 1409-13. Drive-Through Components.
§ 1409-15. Truck Docks; Loading and Service Areas.
§ 1409-17. Building Placement Requirements, CN-P and CC-P Districts.
§ 1409-19. Exceptions to Building Placement Requirements, CN-P and CC-P Districts.
§ 1409-21. Building Placement Requirements, CN-M and CC-M Districts.
§ 1409-23. Ground Floor Transparency.
§ 1409-25. Location of Parking.
§ 1409-27. Outdoor Storage.
§ 1409-29. Outdoor Retail Sales.

§ 1409-01. Purposes.

The general purposes of commercial districts are to:

(a) Encourage the creation of new and the enhancement of existing commercial districts serving adjacent residential neighborhood areas.

(b) Encourage the creation of neighborhood activity centers as focal points along transportation corridors.

(c) Encourage quality and variety in building and landscape design as well as compatibility in use and form, where appropriate.

(d) Establish appropriate standards for reviewing proposals for new development and redevelopment, where appropriate, in commercial areas.

(e) Allow certain limited mixed commercial/residential uses, where appropriate.

(f) Maintain and enhance existing commercial districts, giving special consideration to type, scale, intensity and access.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1409-03. Specific Purposes of the Commercial Subdistricts.

The specific purposes of the commercial subdistricts are:

(a) *CN Commercial Neighborhood.* To identify, create, maintain and enhance mixed-use neighborhood commercial centers that reflect smaller-scale, pedestrian-oriented development with continuous street frontage and a mix of commercial and residential uses. Typical uses include retail, services, housing, office, open space, eating and drinking establishments and smaller-scale public and recreation and entertainment uses. Future development must be of a pedestrian-oriented commercial or mixed-use nature, serving the immediate neighborhood.

(b) *CC Commercial Community.* To identify, create, maintain and enhance areas suitable for a wide variety of commercial and institutional uses along major transportation corridors and in shopping districts or centers. Although these centers may reflect elements of both pedestrian- and auto-oriented development, they typically accommodate larger-scale retail and commercial service uses, such as auto-related businesses and recreation and entertainment, as well as a variety of public and semi-public uses. Future development must reflect a complementary and compatible mix of uses, and may include residential uses.

(c) *CG Commercial General.* To maintain, support and create areas of the City that serve as region-drawing centers of activity. These areas should reflect a mix of commercial, office, recreation and entertainment and arts uses that reflect the regional importance of the area.

Figures 1409-03-A. B

Figures 1409-03-C, D

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1409-04. Connected Communities.

Three Connected Communities designations are established to enhance the base zoning district. The underlying zoning district and map overlays apply where not inconsistent with the development regulations below.

(a) *Neighborhood Business District 'B'.* This district designation is intended for areas located within established neighborhood business districts. The neighborhood business district 'B' designation is subject to the following development regulations:

(1) Two-family, three-family, and four-family uses are permitted, subject to the development regulations of the underlying zoning district, except as otherwise provided in subsections (a)(2) and (a)(3).

(2) Minimum lot-area-per-dwelling-unit regulations do not apply.

(3) Parking:

(i) No off-street parking is required for residential uses in a new building containing ten or fewer dwelling units.

(ii) Residential uses in a new building with more than ten dwelling units require one-half space per additional dwelling unit over ten dwelling units.

(iii) No off-street parking is required in a new commercial or mixed-use building if the building has 5,000 square feet or less of commercial space.

(iv) The underlying zoning district parking requirements are reduced by one-half for commercial uses in a new commercial or mixed-use building if the building has more than 5,000 square feet of commercial space.

(v) Additions to existing buildings are considered new construction for purposes of this section.

(vi) Accessory surface parking facilities shall be located in the rear yard.

(b) *Middle Housing 'MH'*. This district designation is intended for areas surrounding neighborhood business districts. The middle housing 'MH' designation is subject to the following development regulations:

(1) Two-family, three-family, and four-family uses are permitted subject to the development regulations of the underlying zoning district, except as otherwise provided in subsection (b)(2).

(2) Parking:

(i) No off-street parking is required for residential uses in a new building containing ten or fewer dwelling units.

(ii) Residential uses in a new building with more than ten dwelling units require one-half space per additional dwelling unit over ten dwelling units.

(iii) No off-street parking is required in a new commercial or mixed-use building if the building has 5,000 square feet or less of commercial space.

(iv) The underlying zoning district parking requirements are reduced by one-half for commercial uses in a new commercial or mixed-use building if the building has more than 5,000 square feet of commercial space.

(v) Additions to existing buildings are considered new construction for purposes of this section.

(vi) Accessory surface parking facilities shall be located in the rear yard.

(c) *Transportation Corridor 'T'*. This district designation is intended for areas located along major transportation corridors. The transit corridor 'T' designation is subject to the following development regulations:

(1) Two-family, three-family, and four-family uses are permitted subject to the development regulations in Section 1409-09, except as otherwise provided in subsections (c)(2)-(5).

(2) Minimum lot-area-per-dwelling-unit regulations do not apply.

(3) Minimum off-street parking regulations do not apply.

(4) The height of new structures may exceed the maximum height of the underlying zoning district by an additional twelve feet.

(5) Accessory surface parking facilities shall be located in the rear yard.

(d) *Design Standards.* Two-family, three-family, and four-family dwellings located within a designated Connected Communities district shall comply with the design standards set forth below.

(1) *Entrance.* At least one dwelling unit entrance shall be located on each street frontage.

(2) *Building Form.* Building composition shall consist of a base, middle, and top component to reduce the apparent bulk of the building. The designs of new buildings shall avoid long unrelieved expanses of wall along the street frontage by maintaining a rhythm of windows and structural bays.

(i) Buildings shall have a distinct base at the ground level, using articulation and materials such as stone, masonry, or decorative concrete.

(ii) Buildings shall have a change in material and/or design that marks the transition from base component to middle component, and from middle component to top component.

(iii) The top of the building shall be treated with a distinct outline with elements such as a projecting parapet, cornice, or projection.

(3) If the Zoning Administrator determines a permit application does not conform to the requirements of Section 1409-04(d), the Zoning Board of Appeals has the duty to determine whether the application satisfies the standards set forth in this Chapter prior to the issuance of a building permit.

(Ordained by Emer. Ord. No. 199-2024, § 1, eff. 7-1-2024)

§ 1409-05. Community Character.

Three community character designations are established to enhance each type of commercial district:

(a) Pedestrian. This district designation is intended for areas with a traditional urban character, where buildings are required to be built to the street or sidewalk line, to provide a close relationship between pedestrians and shops. Design standards will reinforce this character and require treatments that provide an interesting pedestrian environment. This designation may apply to some areas where a few auto-oriented uses exist, but where restoring the pedestrian character is specified in a community plan or other documentation approved by the Planning Commission.

(b) Mixed. This district designation is intended to provide for a mix of the pedestrian and auto-oriented development. Older, pedestrian-oriented buildings may be intermixed with newer, auto-oriented uses.

(c) Auto-oriented. This district designation is intended for areas that provide for easy automobile access. Large buildings are located on the site with parking in front. Out

lots associated with shopping centers often contain auto-oriented businesses. Performance standards are intended to mitigate the impact of the parking lots and buffer adjacent residential areas.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1409-07. Land Use Regulations.

Schedule 1409-07 below prescribes the land use regulations for C Districts. Use classifications are defined in Chapter 1401, Definitions. Use classifications not listed in Schedule 1409-07 below are prohibited.

The regulations for each subdistrict are established by letter designations as follows:

(a) "P" designates permitted uses. These uses may be subject to additional regulations as indicated.

(b) "L" designates uses that are permitted, subject to certain limitations. Numeric suffixes refer to limitations listed at the bottom of Schedule 1409-07. Except as otherwise indicated, modifications of a numerical, locational or dimensional limitation requires a variance under Chapter 1445 - Variances, Special Exceptions and Conditional Uses.

(c) "C" designates uses permitted only after review and approval of the conditional use by the Zoning Hearing Examiner. These uses may be subject to additional regulations as indicated.

Schedule 1409-07: Use Regulations - Commercial Subdistricts

Use Classifications	*CN-P*	*CN-M*	*CC-P*	*CC-M*	*CC-A*	*CG-A*	*Additional Regulations*
Residential Uses							
Bed and breakfast home	P	P	P	P	—	—	See § 1419-09
Day care home - Adult	P	P	P	P	P	—	
Day care home - Type A	L3	L3	L3	L3	L3	—	
Day care home - Type B	L3	L3	L3	L3	—	—	
Group residential							
Congregate housing	P	P	P	P	P	P	
Convents & monasteries	P	P	P	P	—	—	
Dormitories	P	P	P	P	P	—	
Fraternities & sororities	P	P	P	P	—	—	
Patient family homes	P	P	P	P	—	—	
Rooming houses	L1	L1	L1	L1	—	—	
Shared housing for elderly	P	P	P	P	—	—	
Permanent residential							
Single-family dwelling	P	P	P	L2	L2	—	
Attached single-family dwelling	P	P	P	—	—	—	
Two-family dwelling	P	P	P	L2	L2	—	
Multi-family dwelling	P	P	P	L2	L2	—	
Residential care facilities							
Assisted living	P	P	P	P	P	—	
Developmental disability dwelling	P	P	P	L2	L2	—	
Nursing home	P	P	P	P	P	—	
Special assistance shelter	C	C	C	C	C	C	
Transitional housing							

Use Classifications	*CN-P*	*CN-M*	*CC-P*	*CC-M*	*CC-A*	*CG-A*	*Additional Regulations*
Programs 1—4	P	P	P	L2	L2	—	
Program 5	—	—	—	P	P	P	
Program 6	—	—	—	C	P	P	
Public and Semipublic Uses							
Clubs and lodges	P	P	P	P	P	P	
Colleges, public or private	—	—	—	C	P	P	
Community service facilities	P	P	P	P	P	P	
Cultural institutions	P	P	P	P	P	P	
Day care center	P	P	P	P	P	P	
Government facilities and offices							
Offices	L9	L9	P	P	P	P	
Hospitals	—	—	—	—	—	P	
Park and recreation facilities	P	P	P	P	P	P	
Public maintenance facilities	—	—	—	—	C	C	
Public safety facilities	P	P	P	P	P	P	
Religious assembly	P	P	P	P	P	P	
Schools, public or private	P	P	P	P	P	P	See § 1419-12
Commercial Uses							
Ambulance services	—	—	—	—	P	P	
Animal service facilities	P	P	P	P	P	P	See § 1419-05
Banks and financial institutions	L9	L9	P	P	P	P	
Bed and breakfast inns	P	P	P	P	P	P	
Building maintenance services	—	—	—	—	P	P	
Building materials sales and services	—	—	—	L5	L5	P	
Business services	L9	L9	P	P	P	P	
Commercial meeting facility	—	—	—	P	P	P	
Eating and drinking establishments							
Convenience markets	L9	L9	P	P	P	P	
Drinking establishments	L9	L9	L9	P	P	P	
Restaurants, full service	L9	L9	L9	P	P	P	See § 1419-21
Restaurants, limited	L9	L9	P	P	P	P	See § 1419-21
Food markets	L9	L9	P	P	P	P	
Food preparation	L9	L9	P	P	P	P	
Funeral and interment services	P	P	P	P	P	P	
Garden supply stores and nurseries	—	—	—	L5	L5	P	
Hotels and commercial lodging	—	—	—	P	P	P	
Laboratories, commercial	L9	L9	P	P	P	P	
Loft dwelling units	P	P	P	P	P	P	See § 1419-23
Maintenance and repair services	L9	L9	P	P	P	P	
Medical services and clinics	L9	L9	P	P	P	P	
Offices	L9	L9	P	P	P	P	
Parking facilities	C	P	C	P	P	P	See Chapter 1425
Personal instructional services	L9	L9	P	P	P	P	
Personal services	L9	L9	P	P	P	P	
Private vehicular storage Lot	—	—	—	—	P	P	
Recreation and entertainment							
Indoor or small-scale	L9	L9	P	P	P	P	
Outdoor or large-scale	—	—	—	—	C	P	
Retail sales	L9	L9	P	P	P	P	
Vehicle and equipment services							
Vehicle and equipment sales and rental	—	—	—	C	L7	P	
Car wash	—	—	—	P	P	P	See § 1419-11
Fuel sales	—	P	—	P	P	P	See § 1419-15

Use Classifications	*CN-P*	*CN-M*	*CC-P*	*CC-M*	*CC-A*	*CG-A*	*Additional Regulations*
Vehicle repair	—	—	—	C	P	P	See § 1419-27
Industrial Uses							
Production industry							
Artisan	C	C	C	C	P	P	
Limited	—	—	—	—	P	P	
Warehousing and storage							
Contractor storage	—	—	—	—	L5	L5	
Indoor storage	—	—	—	—	P	P	
Wholesaling and distribution	—	—	—	—	P	P	
Transportation, Communication and Utilities Uses							
Communications facilities	P	P	P	P	P	P	
Public utility distribution system	P	P	P	P	P	P	
Radio and television broadcast antenna	—	—	—	—	C	C	
Transportation facilities							
Heliports	—	—	—	—	C	C	
Railroad right-of-way	P	P	P	P	P	P	
Transportation passenger terminals	—	—	—	—	P	P	
Wireless communication antenna	L4	L4	L4	L4	L4	L4	See § 1419-33
Wireless communication tower	C	C	C	C	C	C	See § 1419-33
Agriculture and Extractive Uses							
Animal keeping	P	P	P	P	P	P	See Chapter 1422
Farms	C	C	C	P	P	P	See Chapter 1422
Gardens	P	P	P	P	P	P	See Chapter 1422
Accessory Uses							See Chapter 1421
Any accessory use not listed below	L6	L6	L6	L6	L6	L6	
Accessory dwelling unit	L12	L12	L12	L12	L12	—	See § 1421-06
Refuse storage areas	P	P	P	P	P	P	See § 1421-35
Drive box	L10	L10	L10	L10	L10	L10	
Commercial vehicle parking	P	P	P	P	P	P	
Exterior lighting	P	P	P	P	P	P	See § 1421-39
Small-scale specialized incinerator	L11	L11	L11	L11	L11	L11	
Portable storage containers	P	P	P	P	P	P	See § 1419-24
Nonconforming Uses							See Chapter 1447

Specific Limitations

L1 Only rooming houses licensed pursuant to Chapter 855. Rooming Houses of the Municipal Code; the maximum number of rooming units is five, and a separate entrance for access to rooming units must be provided. The minimum rental is seven days. See § 1421-43.

L2 Permitted only above the ground floor in a mixed use building. Modification requires conditional use approval pursuant to the procedures and criteria of Chapter 1445, Variance, Special Exceptions, and Conditional Uses.

L3 Fencing, a minimum of four feet in height must be provided for purposes of securing outdoor play areas which must be located in the rear yard only.

L4 Antenna height may not exceed 20 feet; greater height requires a conditional use approval. The antenna may be attached to a multi-family, public and semi-public, commercial or public utility building or structure.

L5 Permitted provided that outside storage is screened with an 8 ft. privacy fence.

L6 Accessory uses determined by the Zoning Administrator to be customarily incidental to a use of the district are permitted except where expressly prohibited. All others require conditional use approval.

L7 Permitted on arterial streets with a maximum site size of two acres. Vehicle loading and unloading must occur on-site.

L8 Use is limited to 2,500 square feet and the use must be located within a mixed-use building; more space requires conditional use approval.

L9 Use is limited to 15,000 square feet; more space requires conditional use approval.

L10 The storage space is less than 30 cubic yards; enclosed by a screen fence or within a structure; and at least 100 feet from any property used for residential purposes.

L11 The material incinerated is generated on-site and is located on a roof or at least 100 feet from any property used for residential purposes.

L12 Permitted only when subordinate and incidental to a single-family dwelling that is the principal use of the lot.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 236-2005, eff. July 21, 2005; a. Ord. No. 98-2006, § 1, eff. May 18, 2006; a. Ord. No. 0027-2007, §§ 1, 2, eff. Feb. 18, 2007; a. Ord. No. 150-2008, § 1, eff. June 7, 2008; a. Ord. No. 160-2008, § 1, eff. June 7, 2008; a. Ord. No. 414-2008, § 10, eff. Jan. 4, 2009; a. Ord. No. 304-2009, § 1, eff. Dec. 12, 2009; a. Ord. No. 038-2010, § 1, eff. March 18, 2010; a. Ord. No. 457-2010, § 1, eff. Jan. 23, 2011; Emer. Ord. No. 141-2015, § 11, eff. July 1, 2015; a. Ord. No. 0281-2017, § 10, eff. Nov. 4, 2017; a. Ord. No. 127-2018, § 8, eff. July 6, 2018; a. Ord. No. 251-2019, § 16, eff. July 26, 2019; a. Emer. Ord. No. 418-2021, §§ 3, 39, eff. Nov. 10, 2021; a. Ord. No. 266-2023, §§ 8, 15, eff. Oct. 2, 2023)

§ 1409-09. Development Regulations.

Schedule 1409-09 prescribes the development regulations for Commercial Districts, maximum building height, minimum setbacks, driveways and parking and other standards that apply. Yes means regulations apply.

Schedule 1409-09: Development Regulations - Commercial Districts

Regulations	*CN-P*	*CN-M*	*CC-P*	*CC-M*	*CC-A*	*CG-A*	*Additional Regulations*
Building Scale—Intensity of Use							
Minimum Lot Area	0	0	0	0	0	0	
Building Form and Location							
Maximum building height (ft.)	50	50	85	85	85	85	
Minimum building height (ft.)	15	15	15	15	15	15	
Minimum front yard setbacks (ft.)	0	0	0	0	0	0	
Maximum front yard setbacks (ft.)	0	12	0	12	—	—	See § 1409-19
Building placement requirements	Yes	Yes	Yes	Yes	No	No	See § 1409-17 and § 1409-21

Regulations	*CN-P*	*CN-M*	*CC-P*	*CC-M*	*CC-A*	*CG-A*	*Additional Regulations*
Ground floor transparency standards	Yes	Yes	Yes	Yes	No	No	See § 1409-23
Vehicle Accommodation - Driveways and Parking							
Driveway restrictions	Yes	Yes	Yes	Yes	Yes	Yes	See § 1409-11
Drive-through facilities	Yes	Yes	Yes	Yes	Yes	Yes	See § 1409-13 and 1419-13
Location of parking	Yes	Yes	Yes	Yes	No	No	See § 1409-25
Parking lot landscaping	Yes	Yes	Yes	Yes	Yes	Yes	See § 1425-29
Truck docks; loading and service areas	Yes	Yes	Yes	Yes	Yes	Yes	See § 1409-15
Other Regulations							
Buffering along district boundaries	Yes	Yes	Yes	Yes	Yes	Yes	See § 1423-13
Accessory structures	See Chapter 1421						
General site standards	See Chapter 1421						
Landscaping and buffer yards	See Chapter 1423						
Nonconforming structures	See Chapter 1447						
Parking and loading	See Chapter 1425						
Signs	See Chapter 1427						
Additional development regulations	See Chapter 1419						
Residential Regulations							
New residential only							
Lot area/unit (sq. ft.)	700	700	700	700	700	700	
Front yard setback	0	0	0	0	0	0	
Interior side yard setback	0	0	0	0	0	0	
Corner side yard setback	0	0	0	0	0	0	
Rear yard setback	0	0	0	0	0	0	
Residential development in existing buildings							
Lot area/unit (sq./ft.)	500	500	500	500	500	500	

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 99-2006, § 1, eff. May 18, 2006; a. Ord. No. 150-2007, § 1, eff. June 7, 2008; a. Emer. Ord. No. 199-2024, § 2, eff. 7-1-2024)

§ 1409-11. Driveway Restrictions.

In pedestrian and mixed commercial districts, vehicular access must be from a side street or alley wherever practical. In all other commercial districts the location, number of and distances between driveways must be approved by the Department of Transportation and Engineering.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1409-13. Drive-Through Components.

In CN-P and CC-P - No drive-through components allowed.

In CN-M and CC-M - Drive-through components must be located in the rear yard or on the building elevation facing the rear yard. Drive-through components on a corner lot require conditional use approval pursuant to Chapter 1445 Variance. Special Exception and Conditional Uses.

In CC-A and CG-A - No restriction on location.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0053-2008, § 1, eff. March 13, 2008)

§ 1409-15. Truck Docks; Loading and Service Areas.

Truck docks, loading and service areas are not permitted within 100 feet of residential district boundaries and are not permitted to be used between 10:00 p.m. and 7:00 a.m. on weekdays and between 11:00 p.m. and 7:00 a.m. on weekends. These facilities must be located at the side of buildings or in the rear of the site and screened so as not to be visible from residential districts. Where a building abuts a residential district, the preferred location of these facilities is the side away from the district boundary, unless conditional use approval is obtained pursuant to the procedures and criteria of Chapter 1445, Variances, Special Exceptions and Conditional Uses.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0345-2007, § 1, eff. Oct. 13, 2007)

§ 1409-17. Building Placement Requirements, CN-P and CC-P Districts.

In the CN-P and CC-P Districts, buildings must be built to street setback lines as illustrated in Figure 1409-17, except as indicated in § 1409-19.

The following rules apply for determining the primary street frontage for building placement. Primary streets are defined as arterials and collectors, and secondary streets are defined as local streets, as defined by the city's functional road classification. Figure 1409-17 illustrates the required placement and enhancement for street frontages.

(a) *Frontage on One Street.* On a site with frontage only on one street, the building must be located on the front lot line of the street frontage.

(b) *Frontage on Arterial or Collector and Local Streets.* On a site with frontage on either an arterial or collector street and a local street, the building must be built to the corner of the two streets and provide the majority of transparency on the facade fronting on the arterial street. See § 1409-23.

(c) *Frontage on Two Arterial or Two Collector Streets.* Sites with frontage on two collector streets must build to the corner of the two streets. The developer may choose on which collector street frontage to provide facade transparency.

(d) *Frontage on Three Streets.* Sites with frontage on three or more streets must build to the corner of at least one collector street, or two collector streets if they intersect at the property. The developer may choose on which collector street to provide facade transparency.

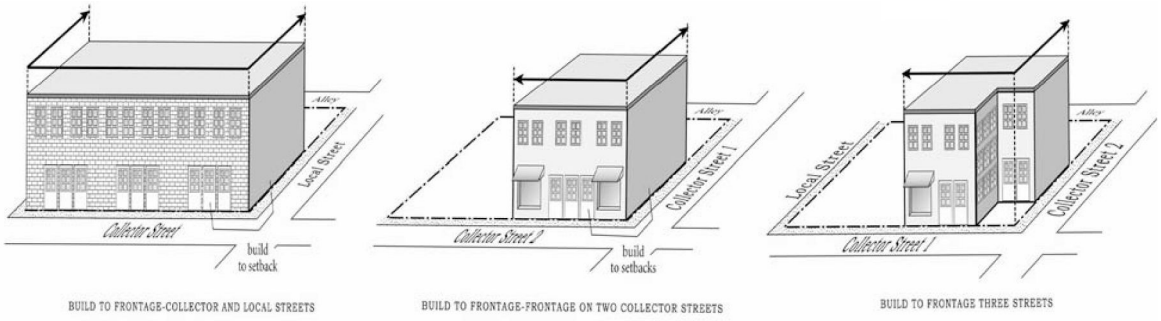


Figure 1409-17 Building Placement in CN-P and CC-P Districts

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1409-19. Exceptions to Building Placement Requirements, CN-P and CC-P Districts.

The following exceptions to the build-to requirement set forth in § 1409-19 are permitted:

(a) *Articulated Building Street Face.* Where a portion of the building is set back from the build-to line, the total area of the space created by the setback may not exceed one square foot for every linear foot of building frontage. Refer to Figure 1409-19-A and Figure 1409-19-B.

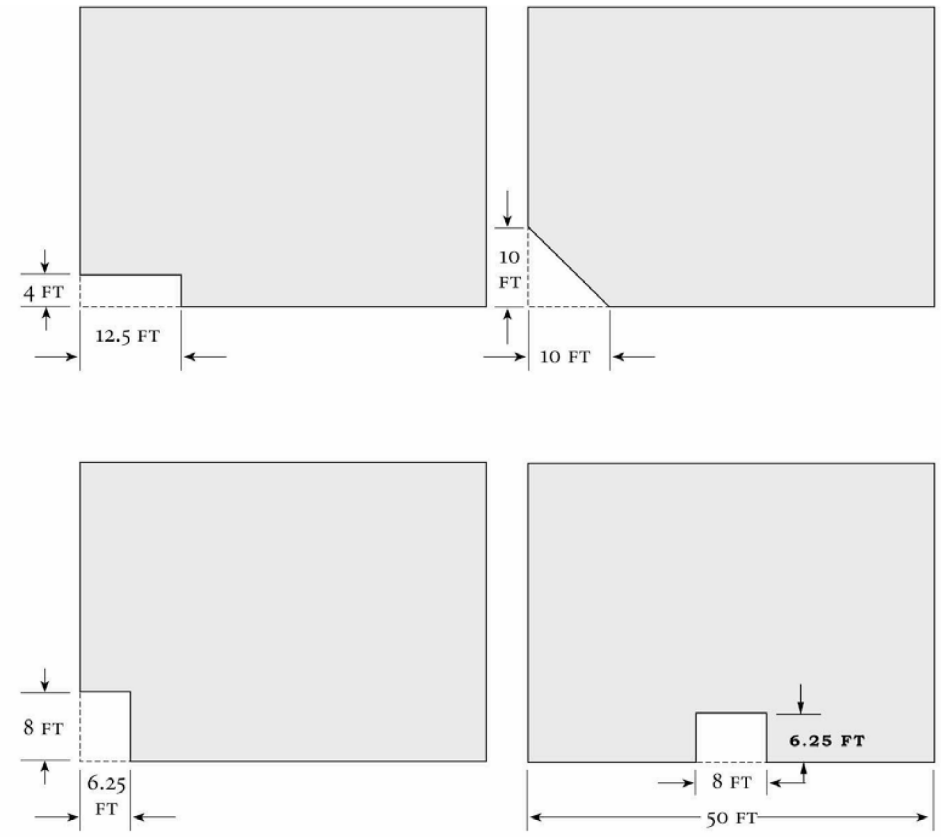


Figure 1409-19-A Articulated Building Facade

Figure 1409-19-B Example of Articulated Building Facade

[b] *Outdoor Eating Areas.* Where there is an outdoor eating area installed on the street frontage, the build-to line may be altered, provided the building is setback not more than 12 feet from the street lot line or at least 40 percent of the building facade meets the build-to line and an outdoor eating area is limited to a maximum area of 12 times the building street frontage in linear feet. See Figure 1409-19-C and Figure 1409-19-D.

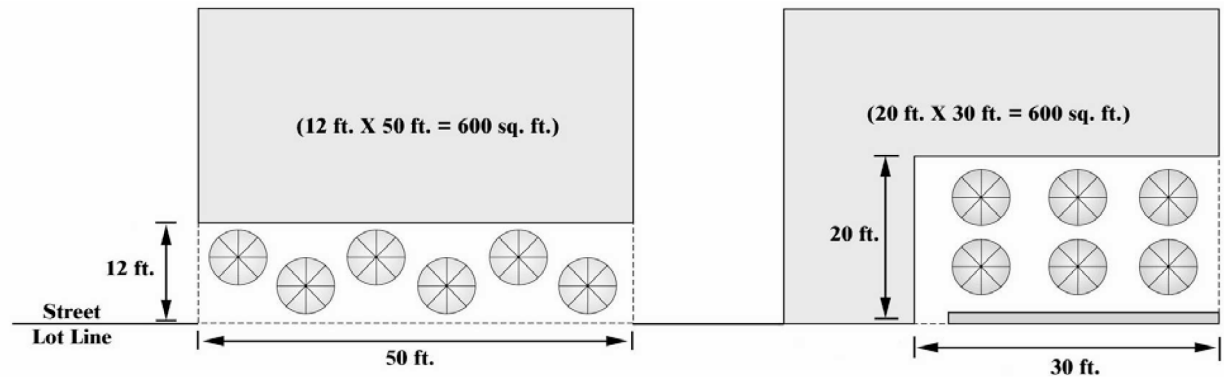


Figure 1409-19-C Outdoor Eating Areas

Figure 1409-19-D Example of Outdoor Eating Area

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1409-21. Building Placement Requirements, CN-M and CC-M Districts.

In the CN-M and CC-M Districts, buildings must be built to street setback lines as indicated below:

(a) *Building Placement, Interior Lots.* If a building on either side of the proposed site is built within 12 feet of the street lot line, then at least 60 percent of the building facade must be built to the front lot line to enhance the pedestrian character.

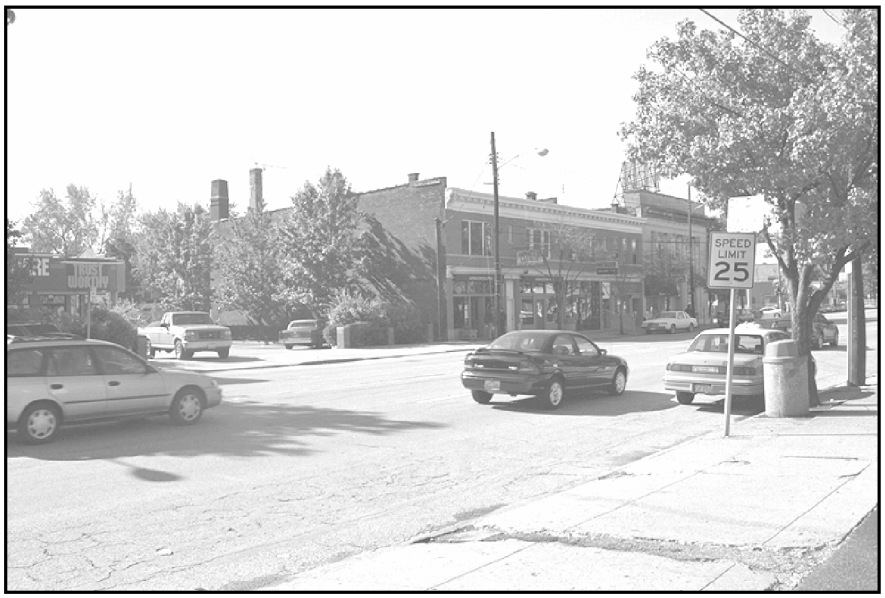


Figure 1409-21-A Example when a Building is NOT placed at the Street Lot Line

Figure 1409-21-B Example when a Building is NOT built to the Street Lot Line as Other Buildings are in this Area

Building Placement, Corner Lots. Corner lots must have the buildings built to the corner, unless all of the opposing corner properties are already designed with parking at the corner. If one corner has a building built to the front lot line, the new building must also be built to the front lot line.

Buildings Occupying An Entire Block Face. Where a development is to occupy an entire block face, the orientation of the opposing block face must be evaluated. If a majority of the opposing block face has a pedestrian orientation with building facades located closer than 12 feet of the front lot line, the proposed development must have a similar building placement.

Outdoor Eating Areas. See Section 1409-19(c).

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1409-23. Ground Floor Transparency.

The purpose of the standard for ground floor windows and transparent doors is to engage the pedestrians' interest and attract the pedestrian to the goods and services offered within buildings. Ground floor windows and glass doors strengthen the commercial viability of a use by attracting customers and add to the enjoyment of the pedestrian on the street.

(a) *Minimum Standard.* Windows and transparent doors must be a minimum percentage of the street frontage, as specified in Schedule 1409-23 below. The percentage of the building's street elevation is measured between 2.5 feet and 7.0 feet in height above grade. Glass block, opaque or darkly tinted glass is not considered to be transparent. Refer to Figure 1409-23-A.

Schedule 1409-23: Transparency Standard for Ground Floor Windows and Doors

	Street Transparency Percentage[1]	
Each Street Frontage (lineal feet)	*Primary Street*	*Secondary Street*
40 or less	80	30
41—80	70	40
81 or more	60	50

[1]Within the zone of transparency as per Figure 1409-23-A

(b) *Display Windows.* Display or show windows that do not provide clear visual access into the interior of the building count, provided they are at least two feet in depth.

(c) *Security Grills.* Security grills may not be installed on the outside of windows along primary street frontage. Open meshed architectural grills installed on the inside are allowed as they provide greater visibility into the store both for safety and for maintaining transparency and streetscape interest even when a store is closed.

(d) *Entrance.* In pedestrian districts, the primary entrance must be on an arterial or collector street.

(e) *Special Exceptions.* Special exceptions may be granted pursuant to Chapter 1445, Variances, Special Exceptions and Conditional Uses where uses cannot meet the requirements of this section.

(f) *Exemptions.* In the CN-P, CN-M and CC-P Districts, residential uses are exempt from the ground floor transparency requirements of Section 1409-23.

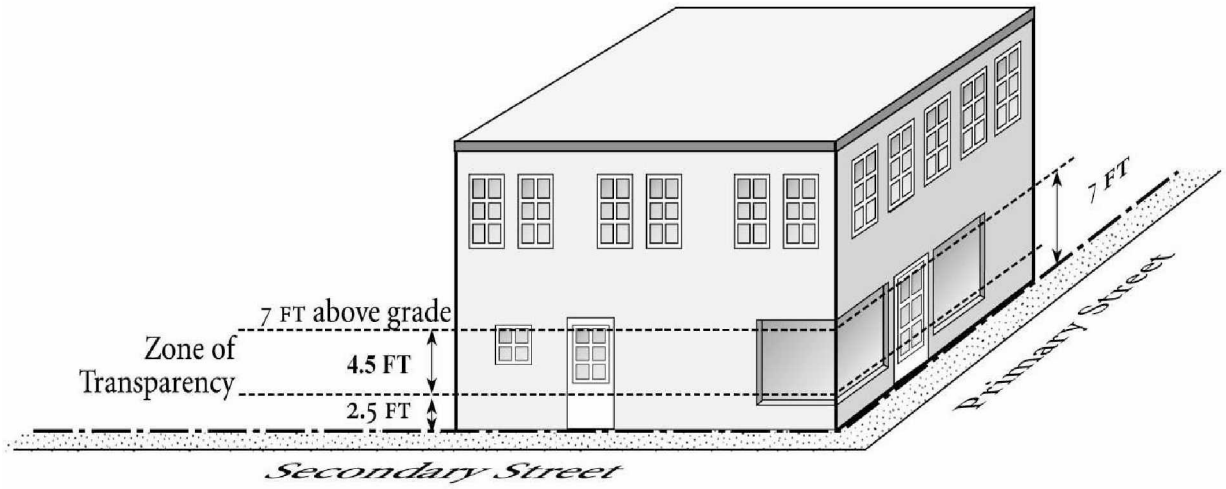


Figure 1409-23-A Ground Floor Zone of Transparency

Figure 1409-23-B Example of Ground Floor Transparency

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0026-2007, § 1, eff. Feb. 18, 2007)

§ 1409-25. Location of Parking.

In the pedestrian and mixed districts, the intent of the building placement standards is to create a continual street facade where parking is located to the rear of the buildings. The depth of lots is, however, not always sufficient to permit this, and some uses need more parking than building area. To maintain pedestrian character in these districts, surface parking lots may be located to the side of the building adjacent to the public right-of-way. This location requires a Special Exception approval provided for in Chapter 1445, Variances, Special Exceptions and Conditional Uses.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 388-2008, eff. Dec. 19, 2008)

§ 1409-27. Outdoor Storage.

These regulations apply in all commercial districts except the CG-A.

Storage areas, accessory, incidental and subordinate to the principal use, may be located outside an enclosed building, provided that such storage:

(a) May not exceed a height of six feet;

(b) Is enclosed by a screen fence or wall at least six feet in height;

(c) Does not exceed 25 percent of the gross floor area of the principal building located on the lot, excluding space used for the parking or storage of vehicles; and

(d) Is not located between the building and the street property line.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 242-2005, eff. July 21, 2005; a. Ord. No. 0346-2007, § 6, eff. Oct. 13, 2007)

§ 1409-29. Outdoor Retail Sales.

Outdoor retail sales areas must be located, developed and operated in compliance with the following standards:

(a) *Location of Sales Area.* Outdoor sales areas must be contiguous and located entirely on private property, outside of any required setback. In a zoning district without required setbacks, a minimum setback of ten feet from any street lot line is required. Outdoor sales areas must adjoin the principal structure on a site, unless the applicant can show by specific facts that unique circumstances exist such that compliance with this requirement would cause an unnecessary hardship.

(b) *Maximum Size.* Outdoor sales areas may not exceed 15 percent of the gross floor area of the use they serve.

(c) *Location of Merchandise.* Display merchandise may not encroach on required parking, driveways, pedestrian walkways or required landscaped areas. Displays may not obstruct sight distance or otherwise create hazards for vehicle or pedestrian traffic.

(d) *Height of Merchandise.* Display merchandise, excluding automobiles, trucks and construction equipment, may not exceed a height of ten feet above finished grade for a single display item. Stacked displays may not exceed a height of six feet above finished grade.

(e) *Litter.* A permanent trash receptacle must be installed at each entrance and exit to the outdoor sales area.

(f) *Pay Telephones and Vending Machines.* Pay telephones and vending machines are prohibited where viewable from a public right-of-way.

(g) *Screening.* All outdoor sales areas must be screened from adjacent public streets by decorative solid walls, fences or landscaped berms of a minimum three feet in height and located within a landscaped area adjacent to the street property line of at least ten feet in width.

(h) *Signs.* Signs, other than as permitted under Chapter 1427, Sign Regulations, are prohibited if visible from a public street.

(i) *Exceptions.* The provisions of this section do not apply to the sale or distribution of food, flowers, seasonal sales of pumpkins and Christmas trees, newspapers and periodicals from a pedestrian-oriented retail storefront.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 244-2005, eff. July 21, 2005; a. Ord. No. 0346-2007, § 6, eff. Oct. 13, 2007; a. Ord. No. 390-2008, eff. Dec. 19, 2008)

Chapter 1410

URBAN MIX DISTRICT

§ 1410-01. Purposes.
§ 1410-04. Connected Communities.
§ 1410-05. Land Use Regulations.
§ 1410-07. Development Regulations.
§ 1410-09. Off-Street Parking and Loading Requirements.
§ 1410-11. Truck Docks; Loading and Service Areas.

§ 1410-01. Purposes.

The general purposes of Urban Mix district are to:

(a) Provide a balance of uses and amenities fostering a vital economic, livable and cultural area and enhance its urban, aesthetic qualities.

(b) Protect and enhance historic, cultural, economic and architectural resources.

(c) Preserve, create and enhance pedestrian-oriented streets to encourage retail, entertainment, residential and office vitality and improve the quality of life for district residents, visitors and workers.

(d) Provide quality public spaces, such as urban street corridors, by maintaining the physical continuity of the street edge created by buildings.

(e) Bring most daily activities within walking distance, giving the elderly, young and disabled increased independence of movement.

(f) Reduce the number of automobile trips; minimize congestion, consumption of resources and air and noise pollution.

Figures 1410-03 A—D: The following illustrations represent examples of the Urban Mix district:

Figure 1410-03-A:UM

Figure 1410-03-B:UM

Figure 1410-03-C:UM

Figure 1410-03-D:UM

(Ordained by Ord. No. 373-2006, § 1, eff. Jan. 20, 2007)

§ 1410-04. Connected Communities.

Three Connected Communities designations are established to enhance the base zoning district. The underlying zoning district and map overlays apply where not inconsistent with the development regulations below.

(a) *Neighborhood Business District 'B'*. This district designation is intended for areas located within established neighborhood business districts. The neighborhood business district 'B' designation is subject to the following development regulations:

(1) Two-family, three-family, and four-family uses are permitted, subject to the development regulations of the underlying zoning district, except as otherwise provided in subsections (a)(2) and (a)(3).

(2) Minimum lot-area-per-dwelling-unit regulations do not apply.

(3) Parking:

(i) No off-street parking is required for residential uses in a new building containing ten or fewer dwelling units.

(ii) Residential uses in a new building with more than ten dwelling units require one-half space per additional dwelling unit over ten dwelling units.

(iii) No off-street parking is required in a new commercial or mixed-use building if the building has 5,000 square feet or less of commercial space.

(iv) The underlying zoning district parking requirements are reduced by one-half for commercial uses in a new commercial or mixed-use building if the building has more than 5,000 square feet of commercial space.

(v) Additions to existing buildings are considered new construction for purposes of this section.

(vi) Accessory surface parking facilities shall be located in the rear yard.

(b) *Middle Housing 'MH'.* This district designation is intended for areas surrounding neighborhood business districts. The middle housing 'MH' designation is subject to the following development regulations:

(1) Two-family, three-family, and four-family uses are permitted subject to the development regulations of the underlying zoning district, except as otherwise provided in subsection (b)(2).

(2) Parking:

(i) No off-street parking is required for residential uses in a new building containing ten or fewer dwelling units.

(ii) Residential uses in a new building with more than ten dwelling units require one-half space per additional dwelling unit over ten dwelling units.

(iii) No off-street parking is required in a new commercial or mixed-use building if the building has 5,000 square feet or less of commercial space.

(iv) The underlying zoning district parking requirements are reduced by one-half for commercial uses in a new commercial or mixed-use building if the building has more than 5,000 square feet of commercial space.

(v) Additions to existing buildings are considered new construction for purposes of this section.

(vi) Accessory surface parking facilities shall be located in the rear yard.

(c) *Transportation Corridor 'T'.* This district designation is intended for areas located along major transportation corridors. The transit corridor 'T' designation is subject to the following development regulations:

(1) Two-family, three-family, and four-family uses are permitted subject to the development regulations in Section 1410-07, except as otherwise provided in subsections (c)(2)-(5).

(2) Minimum lot-area-per-dwelling-unit regulations do not apply.

(3) Minimum off-street parking regulations do not apply.

(4) The height of new structures may exceed the maximum height of the underlying zoning district by an additional twelve feet.

(5) Accessory surface parking facilities shall be located in the rear yard.

(d) *Design Standards.* Two-family, three-family, and four-family dwellings located within a designated Connected Communities district shall comply with the design standards set forth below.

(1) *Entrance.* At least one dwelling unit entrance shall be located on each street frontage.

(2) *Building Form.* Building composition shall consist of a base, middle, and top component to reduce the apparent bulk of the building. The designs of new buildings shall avoid long unrelieved expanses of wall along the street frontage by maintaining a rhythm of windows and structural bays.

(i) Buildings shall have a distinct base at the ground level, using articulation and materials such as stone, masonry, or decorative concrete.

(ii) Buildings shall have a change in material and/or design that marks the transition from base component to middle component, and from middle component to top component.

(iii) The top of the building shall be treated with a distinct outline with elements such as a projecting parapet, cornice, or projection.

(3) If the Zoning Administrator determines a permit application does not conform to the requirements of Section 1410-04(d), the Zoning Board of Appeals has the duty to determine whether the application satisfies the standards set forth in this Chapter prior to the issuance of a building permit.

(Ordained by Emer. Ord. No. 199-2024, § 1, eff. 7-1-2024)

§ 1410-05. Land Use Regulations.

Schedule 1410-05 below prescribes the land use regulations for the UM District. Use classifications are defined in Chapter 1401, Definitions. Use classifications not listed in Schedule 1410-05 below are prohibited.

The regulations are established by letter designations as follows:

(a) "P" designates permitted uses. These uses may be subject to additional regulations as indicated.

(b) "L" designates uses that are permitted, subject to certain limitations. Numeric suffixes refer to limitations listed at the bottom of Schedule 1410-05. Except as otherwise indicated, modifications of a numerical, locational or dimensional limitation requires a variance under Chapter 1445 - Variances, Special Exceptions and Conditional Uses.

(c) "C" designates uses permitted only after review and approval of the conditional use by the Zoning Hearing Examiner. These uses may be subject to additional regulations as indicated.

Schedule 1410-05: Use Regulations—Urban Mix District

Use Classifications	*UM*	*Additional Regulations*
Residential Uses		
Group Residential		
Bed and breakfast home	P	See § 1419-09
Day care home - Adult	P	
Day care home - Type A	L2	
Day care home - Type B	L2	
Group residential		
Congregate housing	P	

Use Classifications	*UM*	*Additional Regulations*
Convents and monasteries	L7	
Fraternities, sororities, dormitories	L7	
Patient family homes	L7	
Rooming houses	L1	
Shared housing for the elderly	L7	
Permanent Residential		
Single-family dwelling	P	
Attached single-family dwelling	P	
Rowhouse, single-family dwelling	P	
Two-family dwelling	P	
Multi-family dwelling	P	
Residential Care Facilities		
Assisted living	P	
Developmental disability dwelling	P	
Nursing home	P	
Special Assistance Shelter	C	
Transitional Housing		
Programs 1—4	P	
Program 5, 6	—	
Public and Semipublic Use		
Clubs and lodges	P	
Colleges, Public or Private	P	
Community service facilities	C	
Cultural institutions	P	
Day Care Center	P	
Government Facilities and Offices		
Offices	P	
Hospitals	P	
Parks and recreation facilities	P	
Public maintenance Facilities	C	
Public safety facilities	P	
Religious assembly	P	
Schools, public or private	P	See § 1419-12
Commercial Uses		
Ambulance Services	C	
Animal Services	C	See § 1419-05
Banks and Financial Institutions	L9	See § 1419-13
ATM, Stand Alone	C	
Bed and breakfast inns	P	See § 1419-09
Building maintenance services	P	
Building material sales & services	L3	
Business services	P	
Commercial meeting facilities	C	
Eating and Drinking Establishments		
Convenience markets	L9	
Drinking establishments	P	See § 1419-21
Restaurants, Full Service	L9	See § 1419-21
Restaurants, Limited Service	L9	See § 1419-21

Use Classifications	*UM*	*Additional Regulations*
Food markets	L9	
Food preparation	P	
Funeral and interment services	P	
Garden supply stores & nurseries	C	
Hotels & commercial lodging	P	
Laboratories, commercial	L6	
Loft dwelling units	P	See § 1419-23
Maintenance & repair services	P	
Medical services and clinics	P	
Offices	P	
Parking facilities	C	See § 1425, § 1411-25
Personal instructional services	P	
Personal services	P	
Recreation and Entertainment		
Indoor or small scale	P	
Outdoor or large scale	C	
Retail sales	L6	
Vehicle & Equipment Services	L10	
Car wash	L10	See § 1419-11
Vehicle repair	L11	See § 1419-27
Industrial Uses		
Production industry		
Artisan	P	
General	C	
Limited	P	
Research & development	C	
Warehouse & Storage		
Contractor's storage	L3	
Indoor storage	P	
Wholesale & distribution	C	
Transportation, Communication and Utilities		
Communications facilities	C	
Public utility distribution system	L12	
Transportation Facilities		
Heliports	C	
Railroad right-of-way	P	
Transportation passenger terminals	C	
Wireless communication antenna	L4	See § 1419-33
Wireless communication tower	C	See § 1419-33
Agriculture and Extractive Uses		
Animal keeping	P	See Chapter 1422
Farms	C	See Chapter 1422
Gardens	P	See Chapter 1422
Accessory Uses		
Any accessory use not listed below	L5	
Accessory dwelling unit	L14	See § 1421-06
Commercial services	P	See § 1419-35, 37
Commercial vehicle parking	P	

Use Classifications	*UM*	*Additional Regulations*
Drive box	L13	
Exterior lighting	P	See § 1421-39
Fences and walls	P	See § 1421-33
Home occupations	P	See § 1419-17
Refuse storage areas	P	See § 1421-35
Rooming unit	L8	
Small scale specialized incinerator	—	
Transitional Housing	—	
Portable Storage Containers	P	See § 1419-24
Nonconforming Uses		See Chapter 1447

Specific Limitations

L1 Only rooming houses licensed pursuant to Chapter 855. Rooming Houses of the Municipal Code; the maximum number of rooming units is five, and a separate entrance for access to rooming units must be provided. The minimum rental is seven days. See § 1421-43.

L2 Fencing, a minimum of four feet in height must be provided for purposes of securing outdoor play areas which much be located in the rear.

L3 Permitted provided outdoor storage is screened so as not to be visible from adjacent streets.

L4 Antenna height may not exceed 20 feet; greater height requires a conditional use approval. The antenna may be attached to a multi-family, public and semi-public, public utility, a commercial or industrial building or structure.

L5 Accessory uses determined by the Zoning Administrator to be customarily incidental to a use of the district are permitted. All others require conditional use approval.

L6 Use is limited to 15,000 square feet.

L7 A separate entrance for access to rooming units must be provided in a MIX-use building.

L8 No more than two rooming units may be rented or leased in any dwelling.

L9 Drive through facilities are not permitted.

L10 Permitted as an accessory use located within a parking garage.

L11 Permitted within a fully enclosed structure.

L12 The facility must be underground, within a building or on the roof within an enclosure.

L13 Accessory to a public or semi-public use provided that the drivebox is at least 100 feet from any property used for residential purposes.

L14 Permitted only when subordinate and incidental to a single-family dwelling that is the principal use of the lot.

(Ordained by Ord. No. 373-2006, § 1, eff. Jan. 20, 2007; a. Ord. No. 155-2008, § 1, eff. June 7, 2008; a. Ord. No. 414-2008, § 12, eff. Jan. 4, 2009; a. Ord. No. 305-2009, §§ 1, 3, eff. Dec.

12, 2009; a. Ord. No. 038-2010, § 1, eff. March 18, 2010; Emer. Ord. No. 141-2015, § 12, eff. July 1, 2015; a. Ord. No. 0281-2017, § 12, eff. Nov. 4, 2017; a. Ord. No. 127-2018, § 9, eff. July 6, 2018; a. Ord. No. 251-2019, § 17, eff. July 26, 2019; a. Ord. No. 266-2023, §§ 9, 15, eff. Oct. 2, 2023; a. Emer. Ord. No. 199-2024, § 2, eff. 7-1-2024)

§ 1410-07. Development Regulations.

Schedule 1410-07 below prescribes the development regulations for the UM district, including lot area for every unit, minimum lot width, setbacks and maximum height. Where an overlay district applies, the provisions of that district take precedence if there is conflict with the standards of this Section.

Schedule 1410-07 Development Regulations—Urban Mix District

Building Form and Location				*Setbacks (ft.)*			
	Lot Area (sq. ft.)	*Lot Area / Unit (sq. ft.)*	*Lot width (ft.)*	*Front Yard (Min. / Max.)*	*Side Yard Min. / Total*	*Rear Yard (Min.)*	*Maximum Height (ft.)*
UM Residential	2,000	700	25	0/10	0/0	10	45
UM Non-residential	2,000	0	25	0/0	0/0	10	45
UM Rowhouse							
Interior	1,500	700	25	0/10	0/0	10	45
Exterior	1,500	700	25	0/10	0/0	10	45
UM Other Use	2,000	2,000	25	0/0	0/0	10	45
Regulations			UM	Additional Regulations			

Vehicle Accommodation—Driveways and Parking		
Driveway Restrictions	NO	
Drive-Through Facilities	NO	
Required Parking	YES	See 1410-09
Location of Parking	YES	See 1425-15
Parking Lot Landscaping	NO	
Parking Lot Screening	YES	See 1425-27
Truck Dock; Loading; Service Areas	YES	See 1403-09
Other Regulations		
Buffering along District Boundaries	YES	See 1423-14
Accessory Structures	YES	See Chapter 1421
General Site Standards	YES	See Chapter 1421
Landscaping and Buffer Yards	YES	See Chapter 1423
Nonconforming Structures	YES	See Chapter 1447
Off Street Parking & Loading	YES	See Chapter 1425
Signs	YES	See Chapter 1427
Additional Development Regulations	YES	See Chapter 1419

"Yes" means additional regulations apply.

(Ordained by Ord. No. 373-2006, § 1, eff. Jan. 20, 2007)

§ 1410-09. Off-Street Parking and Loading Requirements.

(a) *Residential Uses.* One off-street parking space per unit for permanent residential single-family and multi-family.

(b) *All Other Uses.* The Off-Street Parking and Loading Requirements of Section 1425-19 apply to all other uses.

(c) *Special Exception to Off-Street Parking and Loading Requirements.* The Zoning Hearing Examiner pursuant to Section 1445-13 and 1445-19 may grant a special exception for reduced parking requirements.

(1) The applicant must provide documentation to Zoning Hearing Examiner to support the reduction of the required number of parking spaces. This documentation may

include but is not limited to shared parking agreements, availability of on-street parking, provision of bicycle parking, proximity to public transit, and pedestrian orientation development which demonstrates:

(a) The required number of parking spaces are not necessary for the effective operation of the proposed use, and

(b) The reduction of the required number of parking spaces will not infringe or detract from the parking needs of adjacent property owners and uses.

(Ordained by Ord. No. 373-2006, § 1, eff. Jan. 20, 2007)

§ 1410-11. Truck Docks; Loading and Service Areas.

Truck docks, loading and service areas are not permitted within 50 feet of residential district boundaries and are not permitted to be used between 10:00 p.m. and 7:00 a.m. on weekdays and between 11:00 p.m. and 7:00 a.m. on weekends. These facilities must be located at the side of buildings or in the rear of the site and screened so as not to be visible from residential districts. Where a building abuts a residential district, the preferred location of these facilities is the side away from the district boundary.

(Ordained by Ord. No. 0221-2007, § 3, eff. July 6, 2007)

Chapter 1411

DOWNTOWN DEVELOPMENT DISTRICTS

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§ 1411-49. Maintenance of Vacant Lots.
§ 1411-51. Landscaping.

§ 1411-01. Purposes.

The general purposes of the downtown development district regulations are to:

(a) Provide a balance of uses and amenities fostering a vital economic and cultural center of the city and enhance its aesthetic qualities.

(b) Encourage quality and variety in building and landscape design as well as compatibility in use and form.

(c) Protect and enhance historic, cultural and architectural resource.

(d) Create and enhance pedestrian-oriented streets to preserve retail vitality and improve the quality of life for downtown workers, visitors and residents.

(e) Establish appropriate standards for the review of proposals for new development and redevelopment.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1411-03. Purpose of Subdistricts.

The downtown development use subdistricts have the following purposes:

(a) *Subdistrict A-Downtown Core.* To encourage, support and enhance the downtown area as a high-density, mixed-use urban center of regional importance and a center for business, communications, office, government, retail and entertainment. Subdistrict A allows a mix of large-scale offices, convention facilities and hotels, commercial, high-rise residential, public, recreation and entertainment uses.

(b) *Subdistrict B-Downtown Residential.* To create, maintain and enhance areas for residential developments that will complement and support the downtown core. Residential developments may be either as a sole use or as a mixed use and achieved through the adaptive reuse of historic structures or new construction. Subdistrict B also permits loft residences and offices.

(c) *Subdistrict C-Downtown Support.* To maintain and enhance the Downtown Development District by providing sites for offices, residential, commercial and public and semi-public uses essential for the livelihood of businesses and neighborhoods located in Cincinnati and residents living in the downtown area. Subdistrict C permits a mix of professional and governmental offices, residential, commercial, public, semi-public and limited industrial uses.

(d) *Subdistrict D-Riverfront.* To enhance the downtown area by providing sites for commercial recreation, hotel, retail and office space and housing in an urban neighborhood along the Riverfront.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1411-05. Land Use Regulations.

Schedule 1411-05 below prescribes the land use regulations for DD Downtown Development Use Subdistricts. Use classifications are defined in Chapter 1401: Definitions. Use classifications not listed in Schedule 1411-05 are prohibited.

(a) "P" designates permitted uses. These uses may be subject to additional regulations, as indicated.

(b) "L" designates uses that are permitted, subject to certain limitations. Numeric suffixes refer to limitations listed at the bottom of Schedule 1411-05. Except as otherwise indicated, modifications of a numerical, locational or dimensional limitation requires a variance under Chapter 1445 - Variances, Special Exceptions and Conditional Uses.

(c) "C" designates uses permitted only after review and approval of the Conditional Use by the Zoning Hearing Examiner. These uses may be subject to additional regulations, as indicated.

Use classifications are defined in Chapter 1401, Definitions.

Schedule 1411-05: Use Regulations-Downtown Development Use Subdistricts

Use Classifications	*DD-A*	*DD-B*	*DD-C*	*DD-D*	*Additional Regulations*
Residential Uses					
Bed and breakfast home	P	P	P	P	See § 1419-09
Day care home - Adult	P	P	P	P	
Day care home - Type A	L12	L12	L12	L12	
Day care home - Type B	L12	L12	L12	L12	
Group residential					
Convents and monasteries	L1	L1	L1	L1	
Fraternities and sororities	L1	L1	L1	L1	
Patient family homes	L1	L1	L1	L1	
Rooming houses	L2	L2	L2	L2	
Shared housing for elderly	L1	L1	L1	L1	
Permanent residential					
Single-family dwelling	P	P	P	P	
Attached single-family dwelling	P	P	P	P	
Single-family rowhouse	P	P	P	P	
Multi-family dwelling	P	P	P	P	
Two-family dwelling	P	P	P	P	
Residential care facilities					
Assisted living	—	P	P	—	
Developmental disability dwelling	P	P	P	P	
Nursing home	—	P	P	—	
Special assistance shelter	C	C	C	C	
Transitional housing					
Programs 1—5	P	P	P	P	
Program 6	L11	L11	L11	L11	
Public and Semipublic Uses					
Clubs and lodges	P	P	P	P	
Colleges, public or private	P	P	P	P	

Use Classifications	*DD-A*	*DD-B*	*DD-C*	*DD-D*	*Additional Regulations*
Community service facilities	P	P	P	P	
Cultural institutions	P	P	P	P	
Day care center	P	P	P	P	
Government facilities and offices					
Correctional institutions	—	—	C	—	
Offices	P	P	P	P	
Hospitals	P	P	P	P	
Park and recreation facilities	P	P	P	P	
Public maintenance facility	—	P	P	P	
Public safety facilities	P	P	P	P	
Religious assembly	P	P	P	P	
Schools, public or private	P	P	P	P	See § 1419-12
Commercial Uses					
Animal service facilities	—	C	C	—	See § 1419-05
Banks and financial institutions	L3	L3	L3	L3	
ATM, stand-alone	—	—	C	C	See § 1419-07
Bed and breakfast inns	P	P	P	P	See § 1419-09
Building maintenance services	—	—	P	—	
Business services	P	P	P	P	
Commercial meeting facilities	L4	L4	L4	L4	
Eating and drinking establishments					
Convenience markets	L3	L3	L3	L3	
Drinking establishments	P	P	P	P	
Restaurants, full service	L3	L3	L3	L3	See § 1419-21
Restaurants, limited	L3	L3	L3	L3	See § 1419-21
Food markets	L3	L3	L3	L3	
Food preparation	P	P	P	P	
Funeral and interment services	—	—	P	—	
Hotels and commercial lodging	P	P	P	P	
Laboratories, commercial	L4	—	L4	L4	

Use Classifications	*DD-A*	*DD-B*	*DD-C*	*DD-D*	*Additional Regulations*
Loft dwelling units	P	P	P	P	See § 1419-23
Maintenance and repair services	P	P	P	P	
Medical services and clinics	L4	P	L4	L4	
Offices	L4	P	L4	L4	
Parking facilities	L13	L13	L13	L13	See § 1411-25
Personal instructional services	L5	L5	P	L5	
Personal services	P	L6	P	P	
Recreation and entertainment					
Indoor or small-scale	L5	L5	P	L5	
Outdoor or large-scale	C	—	C	C	
Retail sales	P	L6	P	P	
Vehicle and equipment services					
Vehicle and equipment sales and rental	L7	—	L7	—	
Car wash	L7	L7	L7	L7	See § 1419-11
Vehicle repair	—	—	L8	—	See § 1419-27
Industrial Uses					
Production industry					
Artisan	—	—	P	P	
Limited	—	—	P	—	
Research and development	—	—	C	—	
Warehousing and storage					
Indoor storage	—	—	P	—	
Wholesaling and distribution	—	—	P	—	
Transportation, Communication and Utilities					
Communications facilities	P	—	P	P	
Public utility distribution system	L9	L9	L9	L9	
Public utility maintenance yard	—	—	C	—	
Public utility plant	C	—	C	—	
Transportation facilities					
Heliports	C	—	C	C	
Transportation passenger terminals	C	C	C	C	
Watercraft and riverfront facilities					

Use Classifications	*DD-A*	*DD-B*	*DD-C*	*DD-D*	*Additional Regulations*
Commercial piers and ports	—	—	—	P	
Marinas	—	—	—	P	
Wireless communication antenna	L10	L10	L10	L10	See § 1419-33
Wireless communication tower	C	C	C	—	See § 1419-33
Agriculture and Extractive Uses					
Animal keeping	P	P	P	P	See Chapter 1422
Farms	P	P	P	P	See Chapter 1422
Gardens	P	P	P	P	See Chapter 1422
Accessory Uses					See Chapter 1421
Accessory dwelling unit	L14	L14	L14	L14	See § 1421-06
Nonconforming Uses					See Chapter 1447

Specific Limitations

L1 A separate entrance for access to rooming units must be provided in a mixed-use building.

L2 Only rooming houses licensed pursuant to Chapter 855, Rooming Houses of the Municipal Code are allowed. A separate entrance for access to rooming units must be provided. The minimum rental is seven days. See § 1421-23.

L3 Drive-through facilities are not permitted.

L4 Not permitted as a principal ground floor use in locations indicated on Map 1411-17: Commercial Continuity Overlay.

L5 Permitted only above the ground floor in a mixed-use building. Modification requires conditional use approval pursuant to Chapter 1445-Variances, Special Exceptions and Conditional Uses.

L6 Permitted on the ground floor only.

L7 Permitted as a secondary use located within a parking garage.

L8 Permitted only if the entire use and storage is within an enclosed structure.

L9 The facility must be underground, within a building or on the roof within an enclosure.

L10 Antenna height may not exceed 20 feet; greater height requires a conditional use approval. The antenna may be attached to a multi-family, public and semi-public, public utility, commercial or industrial building or structure.

L11 Programs may not exceed 50 resident occupants.

L12 Fencing must be provided for purposes of securing outdoor play areas which must be located in the rear yard only.

L13 See 1411-25.

L14 Permitted only when subordinate and incidental to a single-family dwelling that is the principal use of the lot.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 151-2008, § 1, eff. June 7, 2008; a. Ord. No. 306-2009, §§ 1, 3, eff. Dec. 12, 2009; a. Ord. No. 0281-2017, § 14, eff. Nov. 4, 2017; a. Ord. No. 127-2018, § 10, eff. July 6, 2018; a. Ord. No. 251-2019, § 18, eff. July 26, 2019; a. Emer. Ord. No. 418-2021, §§ 4, 39, eff. Nov. 10, 2021; a. Ord. No. 266-2023, §§ 10, 15, eff. Oct. 2, 2023)

§ 1411-07. Development Regulations.

Schedule 1411-07 summarizes the development regulations for the DD Downtown Development Districts, including lot area, FAR, height, setback and building coverage. Additional standards are included in Chapter 1419.

Schedule 1411-07: Development Regulations - Downtown Development Districts

Regulations	*DD-A*	*DD-B*	*DD-C*	*DD-D*	*Additional Regulations*
Building Scale - Intensity of Use					
Floor Area Ratio (FAR)	See Overlay Map 1411-09				See §§ 1411-09 and 1447-23
Maximum Floor Area Ratio (FAR)	See § 1411-41				
Required Residential Uses	No	Yes	No	Yes	See § 1411-11
Building Form and Location					
Maximum Building Height (ft.)	See Overlay Map 1411-13				See § 1411-13
Minimum Facade Height (ft.)	40	40	40	40	See §1411-15
Minimum Yard (ft.)	See Overlay Map 1411-15				
Pedestrian Orientation					
Commercial Continuity	See Overlay Map 1411-17				See § 1411-17
Ground Floor Transparency (percent)	60	60	60	60	See § 1411-21
Vehicle Accommodation - Parking and Loading					
Required Parking	See Overlay Map 1411-23				See § 1411-23
Location of Parking	Yes	Yes	Yes	Yes	See § 1411-25 1411-27
Lot and Structure Design	Yes	Yes	Yes	Yes	See § 1411-31

Regulations	*DD-A*	*DD-B*	*DD-C*	*DD-D*	*Additional Regulations*
Loading	Yes	Yes	Yes	Yes	See § 1411-37
Other Standards					
Buffering Along District Boundaries	Yes	Yes	Yes	Yes	See § 1423-13
Signs	Yes	Yes	Yes	Yes	See § 1411-39
General Site Standards			See Chapter 1421		
Landscaping and Buffer Yards			See Chapter 1423		
Nonconforming Uses and Structures			See Chapter 1447		
Off-Street Parking and Loading			See Chapter 1425		
Additional Development Regulations			See Chapter 1419		

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 147-2018, § 2, eff. July 13, 2018)

§ 1411-09. Floor Area Ratio (FAR).

Floor Area Ratio (FAR) in all DD subdistricts varies according to Map 1411-09: FAR Overlay in Downtown Development Districts. A building may not exceed the FAR for its location as shown on Map 1411-09: FAR Overlay in Downtown Development Districts.

For purposes of this section, building gross floor area is the sum of the individual gross floor area of every story of the building provided:

(a) Any underground story is disregarded. A story is deemed underground if its floor level is more than three feet six inches below the average street grade at the exterior walls of the building. For the Banks, the grade is street grade.

(b) If the first story (other than an underground story) of a building is more than 25 feet in height, its individual gross floor area is added to the base building gross floor area as many times as its average height is divisible by 25 feet, rounded to the next highest whole number. For example, if the average height of a first story is 36 feet, the individual gross floor area of the first story is added twice in the calculation of the building gross floor area.

(c) If an upper story of a building (other than a story exclusively devoted to heating, ventilating, air conditioning, elevators or other building service equipment) is more than 15 feet in height, its individual gross floor area is added to the building gross floor area as many times as its average height is divisible by 15 feet, rounded to the next highest whole number.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0346-2007, § 7, eff. Oct. 13, 2007)

§ 1411-11. Required Residential Uses.

In Use Subdistrict B, every new building, other than parking garages subject to design review pursuant to § 1411-43 or hotels, must have at least 50 percent of its building gross floor area devoted to residential dwellings. In Use Subdistrict D, every new building must have at least 25 percent of its building gross floor area devoted to residential dwellings. Provided, however, a building that has at least 75 percent of its building gross floor area devoted to parking, museums or sports facilities and is subject to design review and approval by the City Manager pursuant to an agreement between the city and the property owner or is being built in accordance with a site master plan approved pursuant to § 1411-45 is exempt from this requirement. Further, the Zoning Hearing Examiner may, following the procedures specified for the granting of variances, grant such variances from this provision where the applicant demonstrates by clear and convincing evidence that it is not economically feasible to include residential dwellings within the building, that denial of this variance would deny the owner an economic return on investment for the total project and that the grant would be consistent with standards set forth in § 1445-15, Standards for Variances.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0346-2007, § 7, eff. Oct. 13, 2007)

§ 1411-13. Maximum Building Height.

Maximum building height in all DD subdistricts varies according to Map 1411-13: Maximum Building Height Overlay in Downtown Development Districts. Projections above the maximum height limit are permitted, as prescribed in Chapter 1421, General Site Standards. A building may not exceed the maximum building height for its location as shown on Map 1411-13: Maximum Building Height Overlay in Downtown Development Districts.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 101-2006, § 1(Exh. A), eff. May 18, 2006)

§ 1411-15. Minimum Facade Height.

In locations indicated on Map 1411-15: Zero Setback Overlay in Downtown Development Districts every building must be built with a facade at least 40 feet in height and abut the public right-of-way along the indicated locations. Provided, however:

(a) *Rowhouses.* Rowhouses may have a front yard up to ten feet deep.

(b) *Recessed Entrances.* A building may be served by a recessed major entrance provided:

(1) The entrance width does not exceed ten percent of the building facade length fronting on the right-of-way;

(2) The entrance depth does not exceed the entrance width; and

(3) The entrance height does not exceed 25 feet.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1411-17. Commercial Continuity.

In locations indicated on Map 1411-17: Commercial Continuity Overlay in Downtown Development Districts at least 60 percent of first-floor building frontage be devoted to commercial uses. Further, floor areas closest in elevation to and within 12 feet of adjoining walkway or atrium frontages must be devoted to lobbies.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1411-19. Skywalk Overlay.

Map 1411-19: Skywalk Overlay in Downtown Development Districts shows the existing skywalk system as well as locations for extensions.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1411-21. Ground Floor Transparency.

In order to enhance the image of activity within the DD District and thereby contribute to pedestrian activity and security, at least 60 percent of interior facades along the skywalk and exterior facades abutting a sidewalk indicated on the DD District Commercial Continuity Overlay Map must be transparent.

For purposes of this section, transparent means open or enclosed by clear and non-reflecting glass or other material between the height of two feet and ten feet above the walkway grade that provides pedestrians on adjacent sidewalks an unobstructed view extending at least two feet into the building interior.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1411-23. Required Parking Spaces.

Parking requirements in all DD subdistricts varies according to Map 1411-23: Parking Subdistricts Overlay in Downtown Development Districts. Parking is required for the construction of new buildings. Parking is not required for the conversion, renovation or change in use of an existing building, provided any increase in gross floor area may not exceed ten percent. Parking is not required for any use within an Urban Parking Overlay District established according to Section 1425-04. Parking is not required for up to twenty residential dwelling units per building. Where four or more parking spaces are required, any space that requires the movement of another vehicle to gain access to or from the space is not credited toward the requirement. Schedule 1411-23 below prescribes the parking requirements for residential and office uses in the Downtown Development District.

Schedule 1411-23: Parking Requirements - Downtown Parking Subdistricts

	Parking Subdistrict			
Use	W	X	Y	Z
Residential Uses (space/dwelling unit)	First 20 dwelling units: 0 Per dwelling unit above 20: 0.75			
Office Uses (one space/square feet)	1,200	1,000	750	750

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0346-2007, § 7, eff. Oct. 13, 2007; Ord. No. 259-2013, § 1, eff. Sept. 7, 2013)

§ 1411-25. Parking Facilities.

The DD zoning district is divided into the parking subdistricts depicted on Map 1411-23: Parking Subdistricts Overlay in Downtown Development Districts.

(a) Parking garages are permitted in all DD parking subdistricts.

(b) Surface parking facilities are prohibited in all DD parking subdistricts, except as authorized under Section 1411-27, "Temporary Surface Parking Facilities.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; Ord. No. 259-2013, § 2, eff. Sept. 7, 2013; a. Ord. No. 0037-2024, § 1, eff. January 31, 2024)

§ 1411-27. Temporary Surface Parking Facilities.

(a) *Temporary Surface Parking Facilities Permitted*.Temporary surface parking facilities may be established and maintained for a period of two years following the issuance of a temporary surface parking facility permit provided they conform to all applicable laws, ordinances, and regulations, including without limitation the provisions of Section 1411-32.

(b) *Extension of Temporary Permits*. The Zoning Board of Appeals may grant one single extension of a temporary surface parking permit (i) for an additional two-year period for temporary surface parking facilities located in Parking Subdistricts W and X, or (ii) for an additional five-year period for temporary surface parking facilities located in DD Parking Subdistricts Y and Z, upon finding:

(1) *Bona-fide Plan*. The applicant has a bona-fide development plan to establish a permitted use on the subject property; and

(2) *Integral Use*. The temporary surface parking facility is a necessary and integral component of the economic feasibility of the applicant's bona-fide development plan; and

(3) *Compliance with Laws*. The temporary surface parking facility has been maintained in conformity with all applicable laws, ordinances, and regulations.

In reviewing an application for extension, the Zoning Board of Appeals shall conduct a hearing and issue a decision in the same manner as prescribed for the Zoning Hearing Examiner under Chapter 1443, Zoning Hearing Examiner Procedures; provided that the Zoning Board of Appeals may not grant an extension of time greater than the time prescribed herein. Any party with standing may appeal a final decision of the Zoning Board of Appeals issued in accordance with this Chapter to the Hamilton County Court of Common Pleas as allowed by Ohio Revised Code Chapter 2506 or other applicable law.

(c) *Applications for Extension*. The application for extending a temporary surface parking facility permit shall be on forms prescribed by the Zoning Board of Appeals and shall include all the following materials:

(1) *Conceptual Development Plan*. Preliminary development plans showing, at minimum, the location and arrangement of proposed structures, building footprints and setbacks,

schematic floor plans, exterior elevations, and proposed land uses. The plans shall be prepared by a registered architect or professional engineer and drawn to an architectural or engineering scale.

(2) *Development Statement and Timeline*. A statement and all pertinent documentary proof and credible evidence concerning the applicant's proposed development plan, including without limitation the following:

(i) *Narrative*. A description of the proposed development; and

(ii) *Development Forecasts*. Projected deadlines, milestones, and timelines concerning the design, financing, permitting, and construction phases of the proposed development; and

(iii) *Economic Feasibility*. Development pro forma, budgets, and evidence of commitments from lenders, investors, and requested/secured economic development incentives for development financing, if any; and

(iv) *Legal Feasibility/Control*. Documentation demonstrating the applicant's control of the subject property and ability to effectuate the proposed development; and

(v) *Other Information*. Such other information as required by the Zoning Board of Appeals to inform its decision.

(3) *Affidavit*. An affidavit attesting to the truth and accuracy of all information accompanying the application and the applicant's intent and capacity to diligently pursue and implement the proposed development to completion.

(d) *No Further Extensions*. No temporary surface parking facility permit shall receive more than one extension, and no new temporary surface parking facility permit may be issued for a property within five years of the expiration of a temporary surface parking permit concerning the property.

(e) *Security Required.* No permit authorizing the construction or establishment of a temporary surface parking facility shall issue until the property owner or an authorized agent thereof has submitted a performance bond or guaranty in the substance and form prescribed by and deemed satisfactory to the City Manager to ensure sufficient funding to complete all work necessary to satisfy the requirements of Section 1411-51 upon the expiration of the temporary surface parking facility permit. The amount of such bond shall be set at 125 percent of the estimated cost of the improvements necessary to comply with Section 1411-51.

(f) *Permit Expiration*. Upon the expiration of a temporary surface parking facility permit, the owner or person-in-control of the subject property shall cease operation of the parking facility and (i) shall establish a permitted use on the property or (ii) cause the property to conform to the landscaping requirements of Section 1411-51. If the owner or person-in-control fails to bring the subject property into compliance within this provision within 180 days following the expiration of the temporary surface parking facility permit, the City Manager or

the City Manager's designee is authorized to draw upon the performance bond or guaranty provided in accordance with subsection (e) and proceed to complete all work necessary to cause the property to conform to the landscaping requirements of Section 1411-51.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0037-2024, § 1, eff. January 31, 2024)

§ 1411-29. Repealed.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; r. Ord. No. 0037-2024, § 3, eff. January 31, 2024)

§ 1411-31. Lot and Structure Design.

All portions of the perimeter of a surface parking lot that abut a public right-of-way, other than approved entrances and exits, must have a solid concrete or masonry wall or wrought iron fence between three and four feet in height, adjacent to any public right-of-way as illustrated in Figure 1411-31-A. A wrought iron fence may be up to six feet in height or constructed on top of the wall for a combined wall and fence height of up to six feet. Any deviation from the fencing requirements may only be permitted if approved pursuant to Chapter 1445, Variances, Special Exceptions and Conditional Uses.

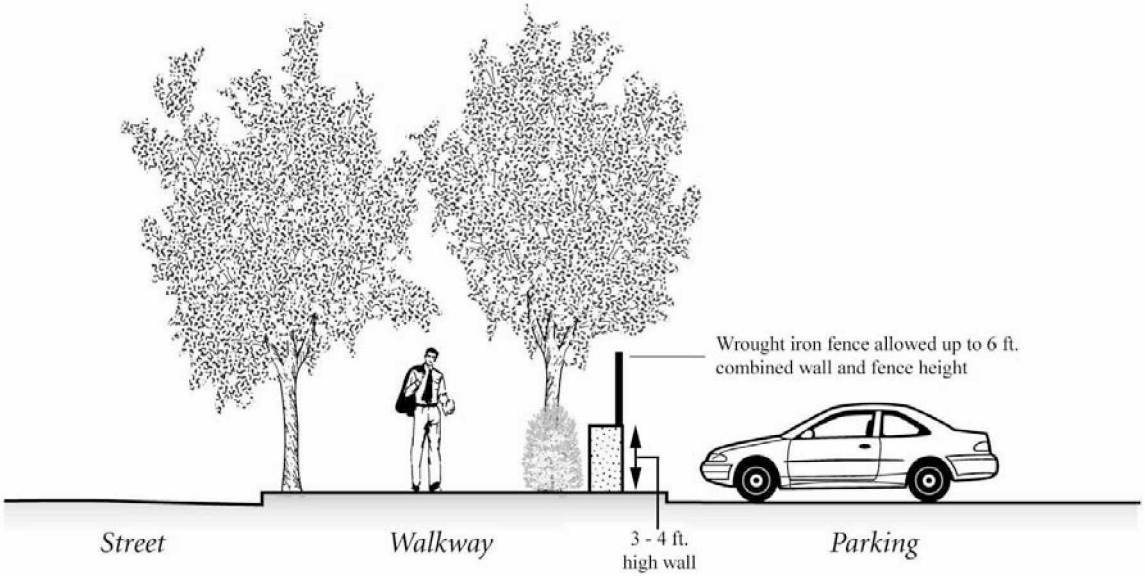


Figure 1411-31-A Screening Surface Parking Lots Adjacent to Public Right-of-Way

Figure 1411-31-B Example of Screening Surface Parking

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1411-32. Temporary Surface Parking Facility Design Standards.

In addition to applicable regulations prescribed in Chapter 1425, "Parking and Loading," all temporary surface parking facilitiesin DD subdistricts shallcomplywith the minimum landscaping and design requirements set forth below. If any requirements set forth in this section conflict with any requirements or standards set forth in Chapter 1425, "Parking and Loading," the standards and requirements set forth herein shall govern and control.

(a) *General Landscaping Requirements*.

(1) *Trees*. All temporary surface parking facilities shall provide one tree for every four parking spaces arranged and dispersed throughout the perimeter landscape buffer area and interior landscaped islands and peninsulas, with at least one tree planted per 35 linear feet throughout the entirety of the perimeter landscape buffer area.

All trees shall have a minimum size at the time of planting as follows:

(a) Two-inch caliper for a deciduous tree; and

(b) Four-foot height for a conifer or evergreen tree.

(2) *Ground Cover*.Plant-based ground cover appropriate to the surface conditions of the area must be installed throughout the perimeter landscape buffer area and interior landscaped islands and peninsulas. Grass shall be the default landscaping material.

(3) *Plant Maintenance Standards*. All plants shall be maintained in a healthy condition and shall be replaced with new plant materials as needed to ensure continued compliance with landscaping requirements. Landscaping and screening plants that die shall be replaced during the current or the following planting season.

(b) *Perimeter Landscape Buffer Area*.

(1) *Width*. All temporary surface parking facilities shall provide a landscape buffer area separating the parking facility from adjoining streets. The buffer area shall measure at least five feet in width and be located within a six-inch-high, poured-in-place concrete curb landscaped with plant material. The buffer area shall not be paved except for approved walkways, bikeways, driveways, and other approved amenities or site elements.

(2) *Screening*. All portions of the perimeter landscape buffer area that abut a public right-of-way, other than approved entrances and exits, shall provide screening consisting of a solid concrete or masonry wall or wrought-iron or other high-quality decorative metal fence between three and four feet in height, as illustrated in Figure 1411-31-A. A wrought-iron fence or other high-quality decorative metal fence up to six feet in height or constructed on top of the wall for a combined wall and fence height of up to six feet may be constructed with the prior approval of the Zoning Administrator.

(c) *Required Surface for Parking and Circulation Areas*. The surface of any parking area, including but not limited to parking, loading, and circulation areas, shall be designed to prevent stormwater runoff into the public right-of-way and shall be improved with asphalt, concrete, permeable pavers, or other hard surface approved by the Zoning Administrator. In Parking Subdistricts Y and Z, all impervious asphalt or concrete surfaces shall be treated with a pavement coating designed to reflect solar radiation with an initial solar reflectance of twenty percent or greater.

(d) *Facilities Larger than One-Quarter Acre*. All new temporary surface parking facilities larger than one-quarter acre (i.e., 10,890 square feet) shall conform to the following standards:

(1) No parking area within a temporary surface parking facility shall exceed one-quarter acre (i.e., 10,890 square feet) in size. To conform to this requirement, larger parking areas shall be divided into smaller parking areas by one or more landscape islands or peninsulas contained within and dispersed throughout the interior of the parking lot.

(2) All interior landscaped islands and peninsulas shall contain plant material and plant-based ground cover within six-inch-high, poured-in-place concrete curbs, and at least one of every four trees required by subsection (a)(1) shall be located within the interior landscaped islands and peninsulas.

(3) Landscaped islands and peninsulas need not be uniformly spaced but shall provide a minimum separation of 15 feet between smaller parking areas.

(Ordained by Ord. No. 0037-2024, § 2, eff. January 31, 2024)

§ 1411-33. Design Review of Parking Garages.

A building having more than 100 above-street-grade parking spaces and devoting more than one-half its above-street-grade gross floor area to parking may not be constructed in Parking

Subdistrict W or X unless the design of the building is reviewed and approved under §1411-43 or by the Zoning Hearing Examiner. The following guidelines apply to parking garage facades facing any right-of-way greater than 50 feet in width or the skywalk:

(a) Parked cars must be screened from public view from every adjacent public way greater than 50 feet in width.

(b) Garage entrances and exits must be designed and located so as to minimize hazards to pedestrians.

(c) Facades must contain openings that, in their scale, size and placement, are compatible with the same qualities of openings in surrounding buildings.

(d) Facades must contain articulations to achieve a sense of scale, rhythm and texture.

(e) The facade of the ground-level floor must be differentiated from upper floors to establish the appearance of a base to the building. By way of example, this differentiation can be achieved through the use of several of the following techniques:

(f) A taller ground floor.

(g) A change in color.

(h) A change in material

(i) A change in detailing.

(j) Banding at the top of the ground floor.

(k) Other architectural means.

The design of facades may not reveal or imply sloping floor levels that may be behind the facade.

Facades must be compatible with the design, materials and overall character of surrounding buildings with regard to the scale, color and texture of materials, form, massing and design detailing.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0346-2007, § 7, eff. 10-13-2007)

§ 1411-35. Parking Signs.

Signage in parking lots and garages must comply with the following:

(a) *Parking Identification Signs.* Parking identification signs may be erected at every entrance and may be internally illuminated, provided the area of any sign face may not exceed 16 square feet. For parking lots, signs may be erected as a ground or wall sign. For parking garages, signs may be erected as a wall sign or projecting sign. The height

of any sign may be no less than ten feet above street grade and may not exceed 16 feet above street grade. The maximum width of a projecting parking identification sign may not exceed 3.5 feet. Refer to Figure 1411-35-A.

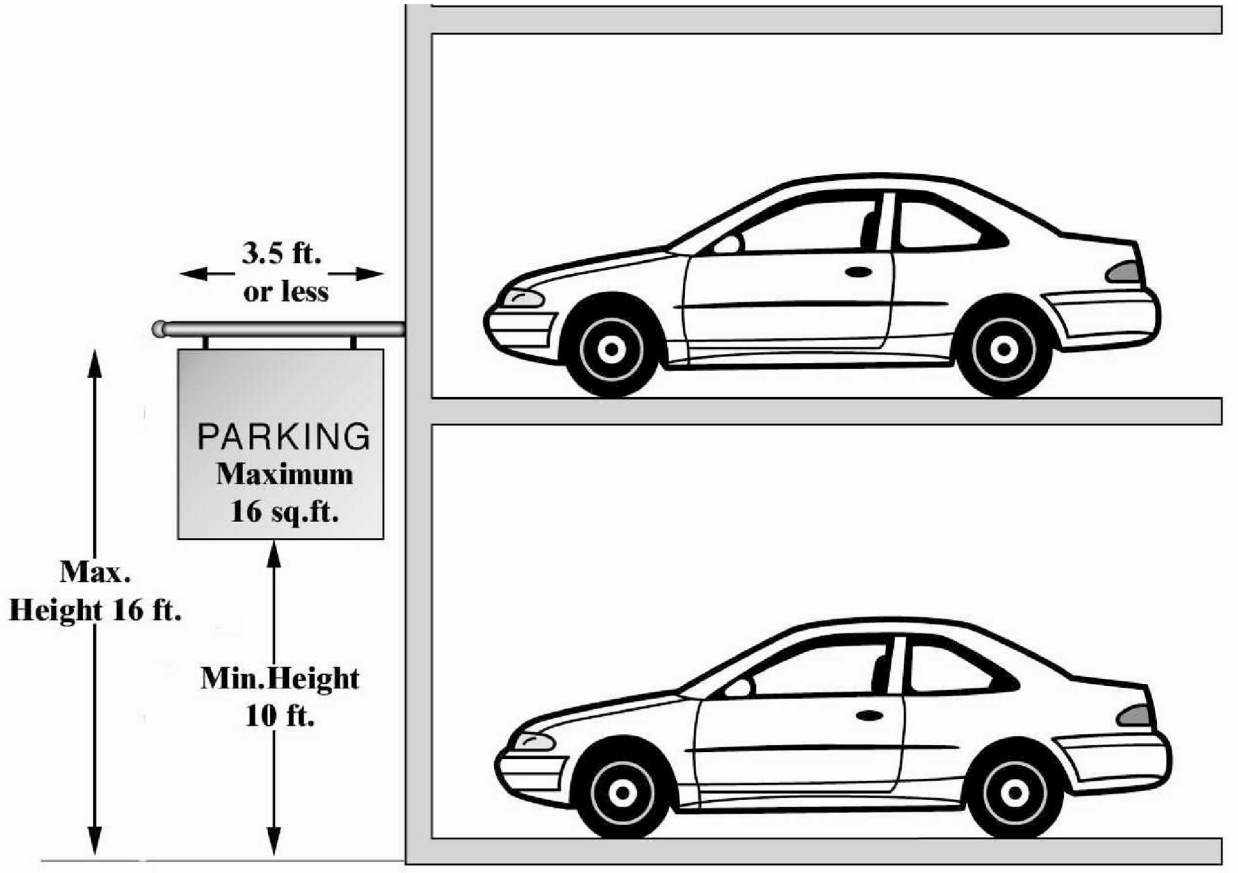


Figure 1411-35-A Parking Identification Signs

(b) *Parking Ownership and Rate Sign.* Public ownership and rate signs may be erected as a wall sign or be affixed to the fencing required by § 1411-31. The copy must be as required by Chapter 413, Parking Garages and Parking Lots, of the Municipal Code. Refer to Figure 1411-35-B.

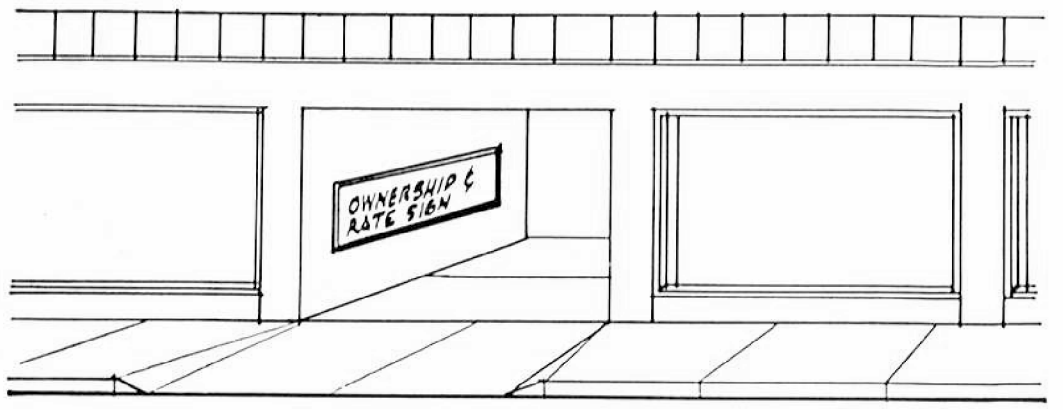


Figure 1411-35-B Public Parking Ownership & Rate Wall Sign

(c) Parking Entrance/Exit Signs. Parking entrance/exit signs may be erected at every entrance or exit. A parking entrance/exit sign may not exceed eight square feet in face area.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1411-37. Loading Requirements.

Loading spaces must be provided pursuant to Chapter 1425, Parking and Loading Regulations. Loading Spaces within Parking Subdistrict W or X must be entirely enclosed.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1411-39. Signs.

Signs located in any DD subdistrict must comply with the following regulations and with Chapter 718, Revocable Street Privileges, of the Municipal Code. Every sign erected, constructed, painted or maintained for which a permit is required, must be plainly marked with the name of the person erecting, painting and maintaining such sign, and must have affixed the number corresponding to the permit issued for the sign. The absence of a reference to a permit number is prima facie evidence that the sign or advertising structure is being displayed in violation of this section.

(a) *Prohibited Signs.* The following signs are prohibited in the DD District:

(1) Outdoor advertising signs.

(2) Flashing signs, unless a marquee sign as provided below.

(3) Portable signs.

(b) *Projecting Signs.* (Refer to Figure 1411-39-A). Projecting signs must comply with the following unless located in a Historic District and approved by the Historic Conservation Board:

(1) Location: Below the third story of a building and extend from the building facade.

(2) Maximum Width: 3.5 feet.

(3) Maximum Height: eight feet.

(4) Required Clearance: A ten-foot clearance above the sidewalk must be maintained.

(5) Lighting: Lighting must be integrated with the sign design and must complement the building.

(6) Signs may not conceal any ornamental architectural elements.

(7) A revocable street privilege is required for signs projecting into the public right-of-way.

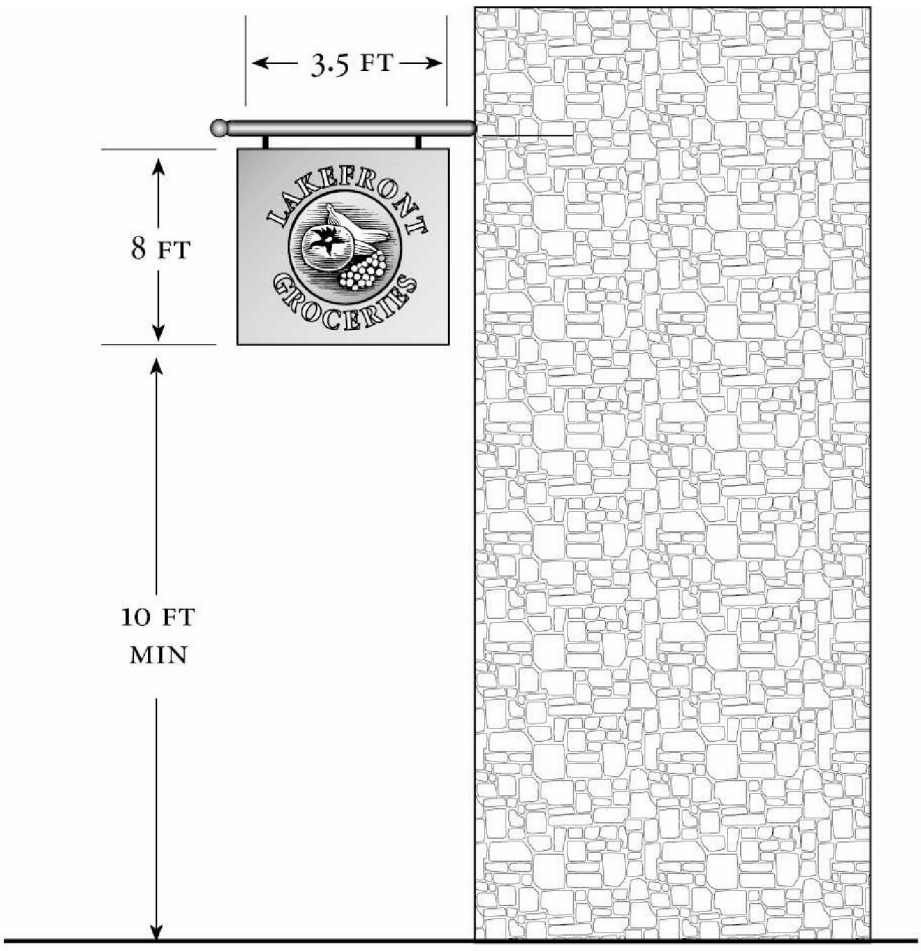


Figure 1411-39-A Projecting Signs in DD Subdistricts

(c) *Street-Level Wall Signs.* (Refer to Figure 1411-39-B). Street-level wall signs must comply with the following:

(1) Maximum Width: contained within the horizontal limits of the business premises.

(2) Maximum Height: 3.5 feet.

(3) Maximum Display Area: 1-square foot for each one-foot of business frontage on the street to be faced by the sign.

(4) Awning signs are considered street level wall signs included in (3) above.

(5) Awning signs may not exceed 12 square feet of total surface area and letters may not exceed 12 inches in height.

(6) The sign may not conceal any ornamental architectural elements and may not project above a parapet.

(7) Signs painted on buildings and structures are deemed street-level wall signs.

(d) *Skywalk-Level Wall Signs.* (Refer to Figure 1411-39-B). Skywalk-level signs must comply with the following:

(1) Maximum Width: contained within the horizontal limits of the business premises.

(2) Maximum Height: Two feet.

(3) Maximum Area: 30 square feet or 0.5-square feet for each foot of business frontage on the skywalk to be faced by the sign, whichever is more restrictive.

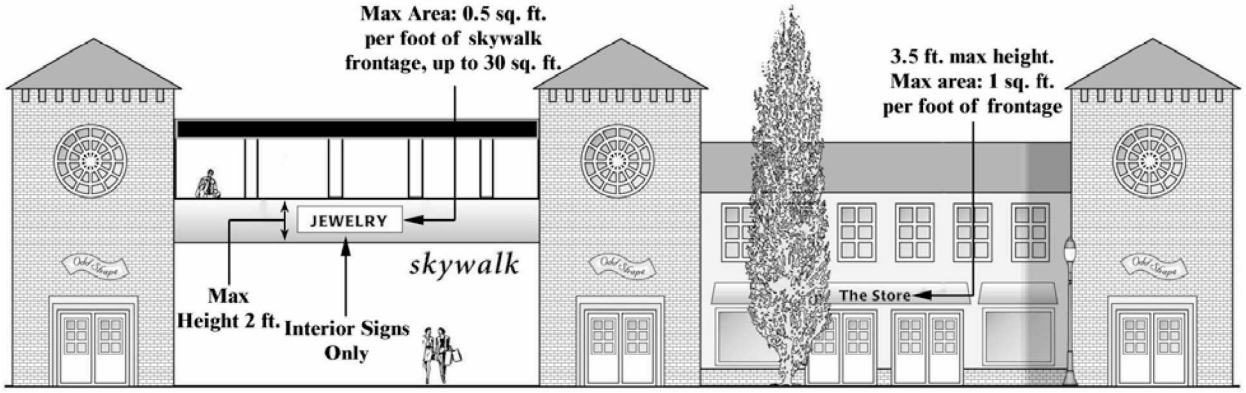


Figure 1411-39-B Wall Signs in DD Subdistricts

(e) *Ground Signs.* Ground signs must comply with the following:

(1) Applicability: A building setback from the public right-of-way by more than 25 feet may be served by one ground sign; otherwise, a ground sign is not permitted.

(2) Maximum Height: 16 feet.

(3) Maximum Area: 60 square feet or one-half square foot for each front foot of the building.

(f) *Building Identification Signs.* Building identification signs must comply with the following:

(1) One trademark or building identification sign identifying the principal occupant as determined by the building owner of a building is allowed for each building facade, with a maximum of four signs for the building.

(2) The trademark or the letters comprising the occupant name must be affixed directly to the building facade.

(3) The building facade underlying the trademark or name may not be painted or otherwise differentiated from the remainder of the building facade merely to draw attention to the sign.

(4) The top of the sign may not project above the parapet, nor may the parapet be enlarged to accommodate a sign.

(5) The sign may be illuminated, but may not be a flashing sign.

(6) The maximum size of the sign cannot exceed the width of the wall on which the sign is attached multiplied by one foot for each 30 feet the top of the sign is located above street grade or 1,800 square feet, whichever is less. For example, a sign whose top is 400 feet above street grade is proposed to be located on a wall that is 150 feet in width where the sign is to be located. The maximum size equals the lesser of 13 × 150 = 1,950 and 1,800. The maximum size is 1,800.

(g) *Marquee Signs.* Marquee signs must comply with the following:

(1) The sign must be accessory to a large-scale recreation and entertainment use, hotels or convention center.

(2) The sign may not be attached to a roof structure and must be integrated architecturally into the primary structure.

(3) The sign may contain copy or other images announcing on-premise events only.

(4) The copy may be permitted to flash, move or otherwise change at intervals of more than one each six seconds.

(5) The size and design of a marquee is subject to review and approval of the Zoning Administrator prior to issuance of a building permit.

(6) A revocable street privilege is required for any marquee sign that extends into the public right-of-way.

(h) *Murals.* Murals are regarded as a work of art and must demonstrate an artistic quality or theme as opposed to direct or indirect illustrative advertising. Murals must comply with the following:

(1) Advertising copy and trademarks are prohibited.

(2) One mural on one wall for every building.

(i) *Subdivision Real Estate or Construction Signs.* Subdivision real estate and construction signs must comply with the following:

(1) A maximum of one sign for every street frontage.

(2) Total Surface Area: 64 square feet.

(3) Temporary signs must be removed within 24 hours of the completion of the activity.

(j) *Temporary Message Sign (including banners).* Temporary message signs must comply with the following:

(1) Be made of cloth or other light fabric.

(2) May not exceed 12 feet in any of its dimensions.

(3) The message must pertain only to the business, commodity, service or entertainment conducted, sold or offered on the same premises as where the sign is maintained.

(4) Temporary message signs may be installed for a period not to exceed 30 days for a maximum of four times for every calendar year with at least seven days between installations.

(5) Temporary message signs may not cover any building openings such as windows and doors.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; Emer. Ord. No. 141-2015, § 13, eff. July 1, 2015)

§ 1411-41. Additional Floor Area for Historic Conservation or Residential Development.

A Conditional Use may be approved allowing additional floor area beyond that allowed by § 1411-07 and by Map 1411-09: FAR Overlay in Downtown Development Districts, for projects receiving a Historic Conservation Bonus or Residential Gross Floor Area Bonus. In no case may additional floor area be granted such that the maximum building heights prescribed by Map 1411-13: Maximum Building Height Overlay in Downtown Development Districts, are exceeded.

(a) *Historic Conservation Bonus.* Under the City's Historic Easement Program, the owner of a building that is listed on the National Register of Historic Places and is located in any DD subdistrict may donate an easement in return for a Certificate of Transferable Bonus Gross Floor Area, provided the easement is accepted by the Historic Conservation Board. This one-time certificate is issued by the Urban Conservator, who has the duty to maintain a record of the issued certificate, including the owner, the gross floor area available for transfer and the gross floor area actually transferred. All bonus gross floor area available under the easement may be transferred, provided the gross floor area does not exceed the maximum building heights prescribed by Map 1411-13: Maximum Building Height Overlay in Downtown Development Districts. Certificates of Transferable Bonus Gross Floor Area may be transferred to and redeemed by anyone other than the original certificate holder. Certificates to be redeemed must be tendered to the Urban Conservator prior to the issuance of permits for construction. On completion of construction, certificates are cancelled and no certificate may be reissued, even if the building constructed pursuant to its redemption is demolished.

(b) *Residential Gross Floor Area Bonus.* The residential gross floor area bonus equals the total interior floor area of a building that is exclusively devoted to residential purposes, provided the bonus gross floor area does not exceed 25 percent of the building gross floor area.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0346-2007, § 7, eff. Oct. 13, 2007)

§ 1411-43. Design Review of Publicly-Funded Parking Garages.

Publicly-funded parking garages are subject to the following review:

(a) *Design Review Responsibility.* On receipt of an application for a publicly-funded downtown parking garage, the City Manager, who has the duty to appoint the person or persons responsible for design review, may by contract retain a person prominent in the field of design of urban projects of scale similar to the proposed development to be responsible for design review. The application must be available, as it may be revised, for public inspection. Those responsible for design review may meet periodically with the applicant in a public, informal conference to discuss the building design.

(b) *Design Review Determination.* The person or persons responsible for design review has the duty to approve the proposed work if it conforms with the 2000 Plan or other applicable urban renewal plan, any otherwise applicable guidelines, laws, ordinances, regulations and variances granted for the work pursuant to Chapter 1447, Variances, Special Exceptions and Conditional Uses and is in the public interest.

(1) The work may be approved subject to conditions as necessary to ensure that the work is lawful, appropriate to its site and the surrounding area and in the public interest. Otherwise, the work must be disapproved.

(2) If the work is disapproved the reasons therefore must be stated in writing as findings of fact and conclusions of law.

(3) In determining whether the work is in the public interest, the decision-making authority has the duty to consider those factors listed in § 1411-33 and § 1445-13 that are relevant to the work and apply them in light of his or her professional training and experience. The failure of the proposed work to conform to any single factor or guideline is not necessarily a sufficient basis for denial. The decision-making authority has the duty to approve work that maximizes both the public interest and private benefits.

(c) *Appeals.* Any adversely affected applicant may appeal a decision made pursuant to paragraph (b) above to the City Manager. The City Manager has the duty to conduct a public hearing on the appeal and affirm, modify or reverse the decision in conformity with the provisions of this Chapter. The decision of the City Manager is final, subject to appeal as provided by law.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1411-45. Phased Developments.

Where the owner of a lot or lots in the DD District intends to phase the development by first erecting one building and then enlarging that building or erecting one or more additional buildings or both, the owner must, prior to commencing development of the site, file a site master plan with the Zoning Hearing Examiner. The site master plan must be a schematic of the intended development of the entire site showing the locations, uses, heights and gross floor areas of every building. The master plan must contain such other information as necessary to determine whether the intended development conforms to the requirements of this Zoning Code. If the development is required to devote gross floor area to residential dwellings of § 1411-11, Required Residential Uses, compliance with the residential dwelling requirement

need not be demonstrated at every phase of the development, but only after completion of all phases of the development. Further, the applicant may be required to demonstrate that completion of all phases is a commercially reasonable exception. The master plan may be amended from time to time, provided any amended master plan be filed with the Zoning Hearing Examiner. Compliance with the DD District Regulations imposed by Schedule 1411-07 of § 1411-07 and, as applicable, § 1411-11, must be determined each time a permit for construction of a new building or enlargement of an existing building is made. The site may be further subdivided and title to the various parcels held by different owners, provided that appropriate deed restrictions, covenants and easements be provided as determined to be necessary by the Zoning Hearing Examiner to ensure that the arrangement of building density and public amenities used to calculate allowable gross floor area are maintained for as long as any building erected on the site pursuant to this provision remains.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0346-2007, § 7, eff. Oct. 13, 2007)

§ 1411-47. Demolition.

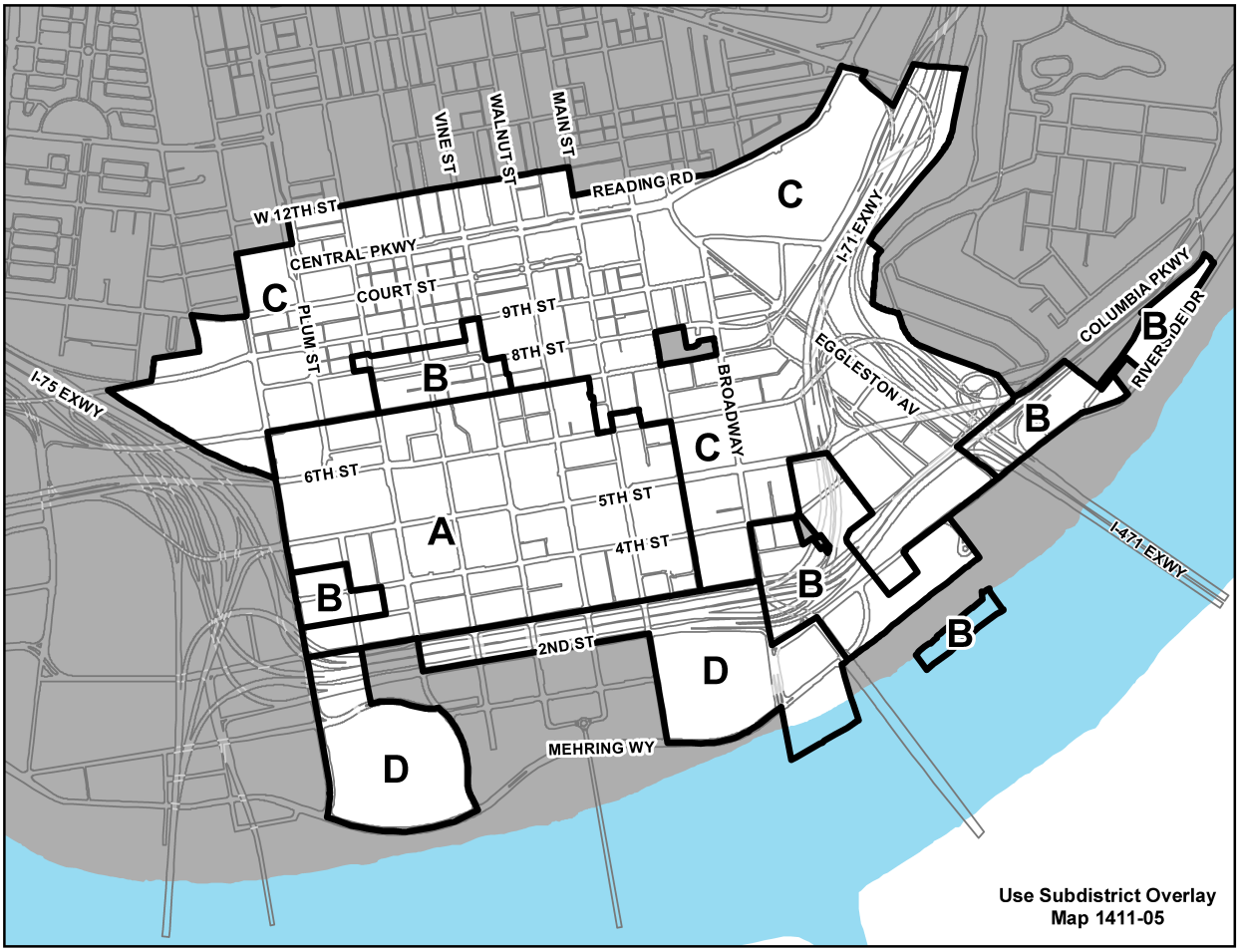
Except in cases of public emergency, no permit for the demolition of any building in the DD District shall be issued unless an application for a building permit for work to replace the building to be demolished has been filed with the Director of Buildings and Inspections. Provided, however, the applicant may instead post a bond with the Director of Buildings and Inspections to secure compliance with § 1411-51. The bond shall be in the amount equal to ten dollars per square foot of the area of the lot on which the building to be demolished is located.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1411-49. Maintenance of Vacant Lots.

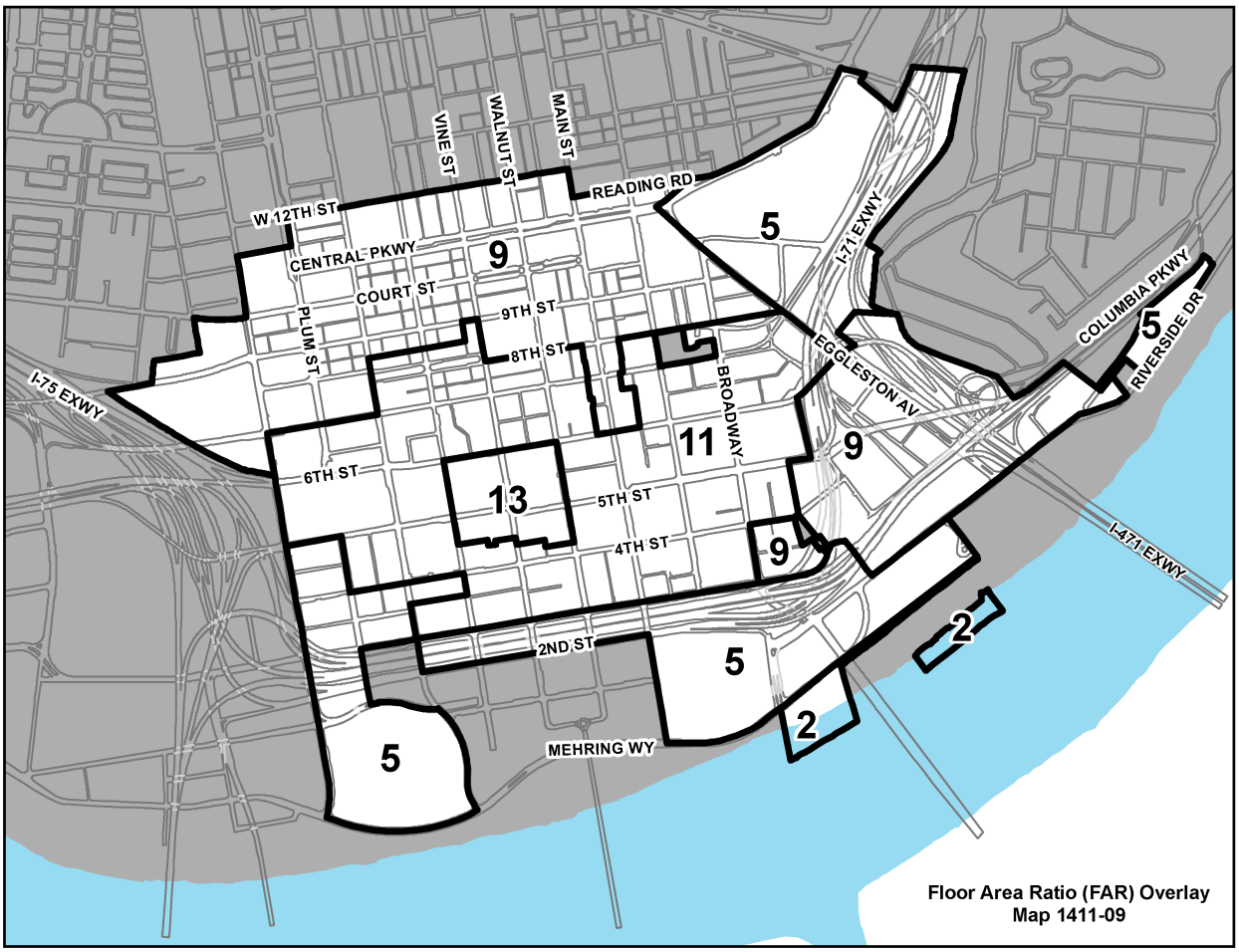
Every owner of any vacant lot within the DD District has the duty to keep the lot clean, free from garbage, litter, standing water, debris, parked motor vehicles other than those parked in a lawfully existing parking or loading facility and all things causing the property to be detrimental to the public health, safety, welfare or to the aesthetics of the DD District or properties in the vicinity.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1411-51. Landscaping.

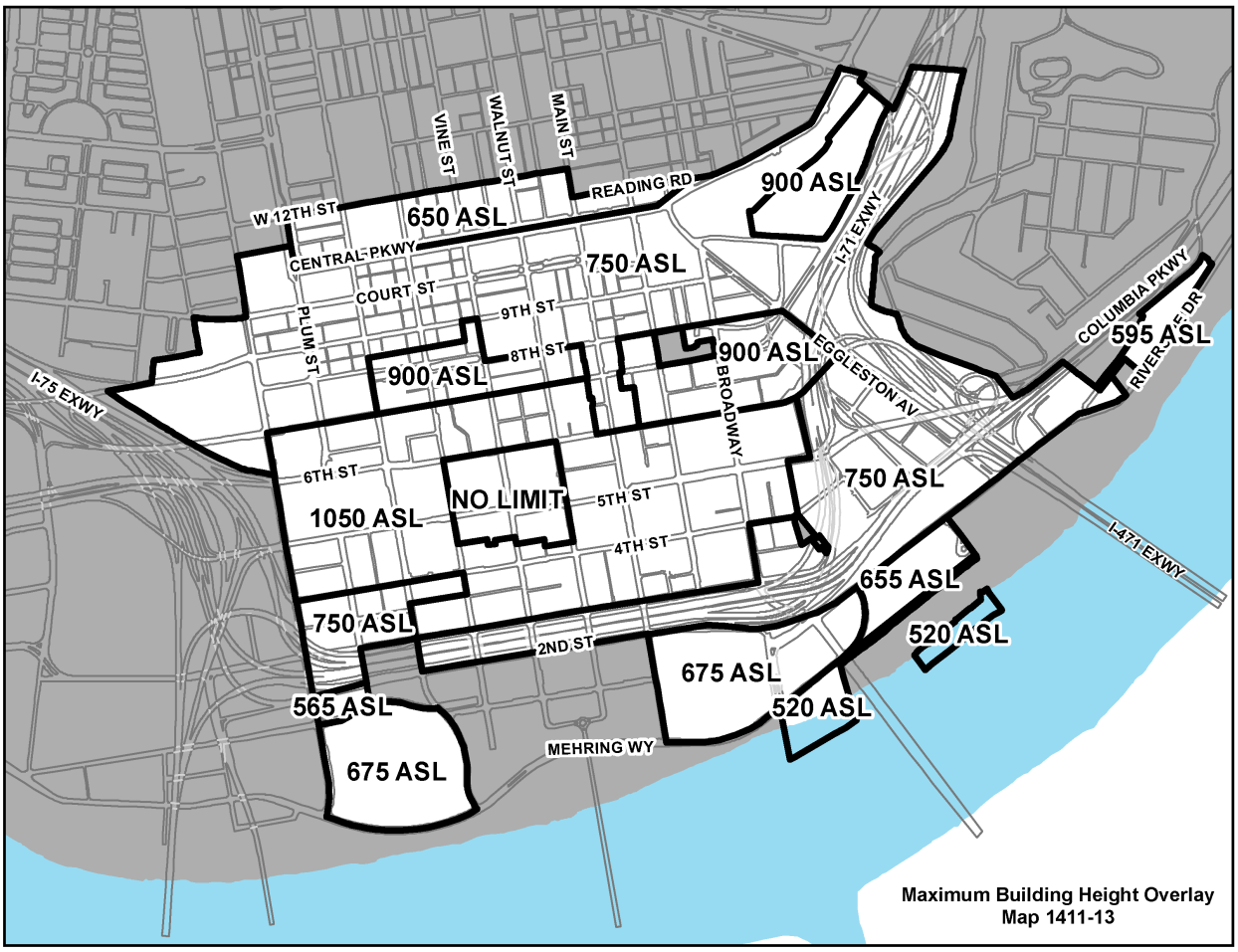
Any lot within the DD District kept vacant for more than 180 days following the demolition of any buildings thereon shall be landscaped and thereafter maintained in good order. Landscaping shall be in accordance with a plan approved by the hearing examiner following the procedures and standards set forth in Chapter 1443. The landscaping shall be appropriate to an urban park or garden. The lot shall be fenced as appropriate for public safety and aesthetics. All plant material shown on the approved plan shall be watered, fertilized, pruned, kept free from weeds and litter and replaced if diseased, injured or dead, consistent with good horticultural practices. Such lots shall not be used for storage.



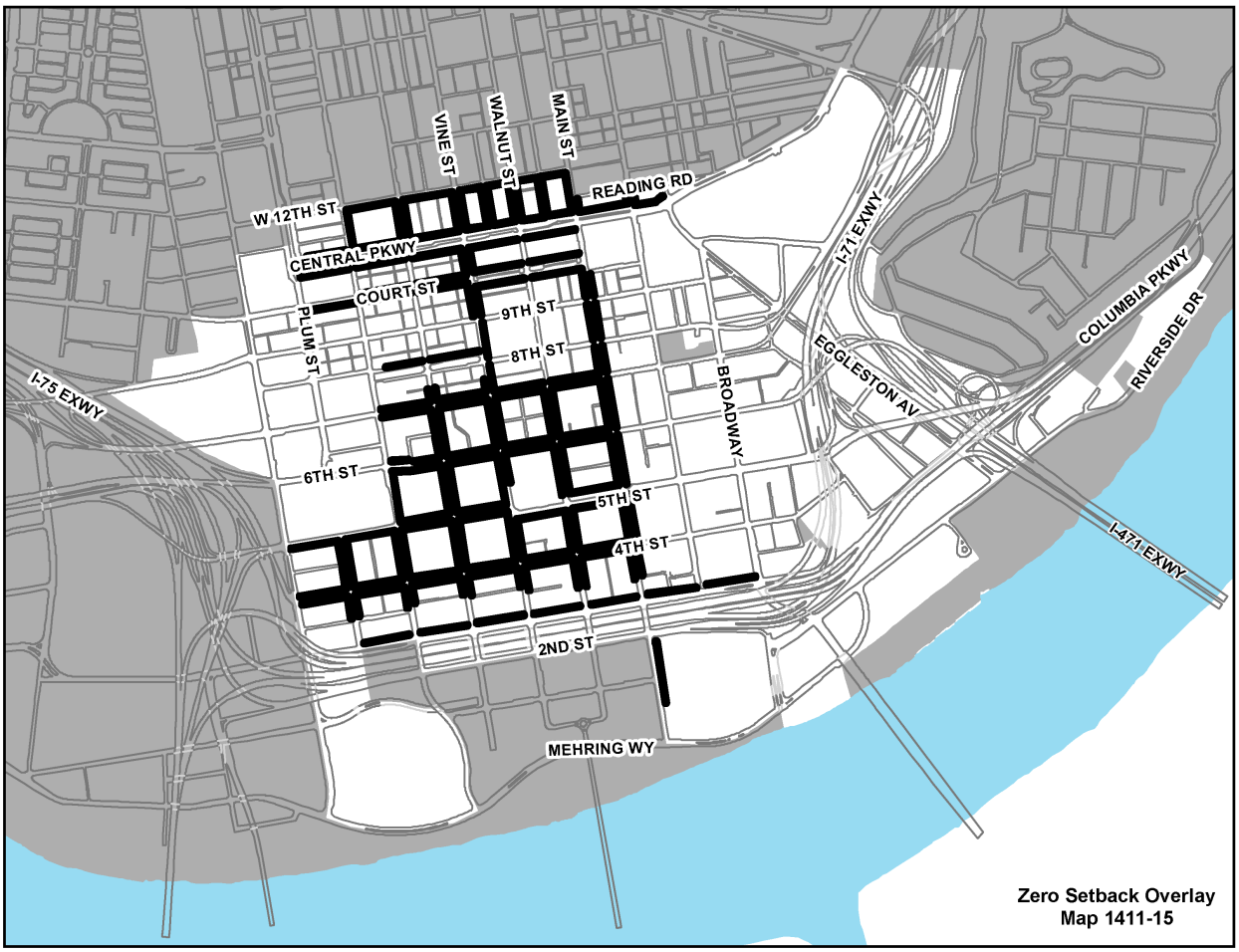
Map 1411-05 Use Subdistrict Overlay



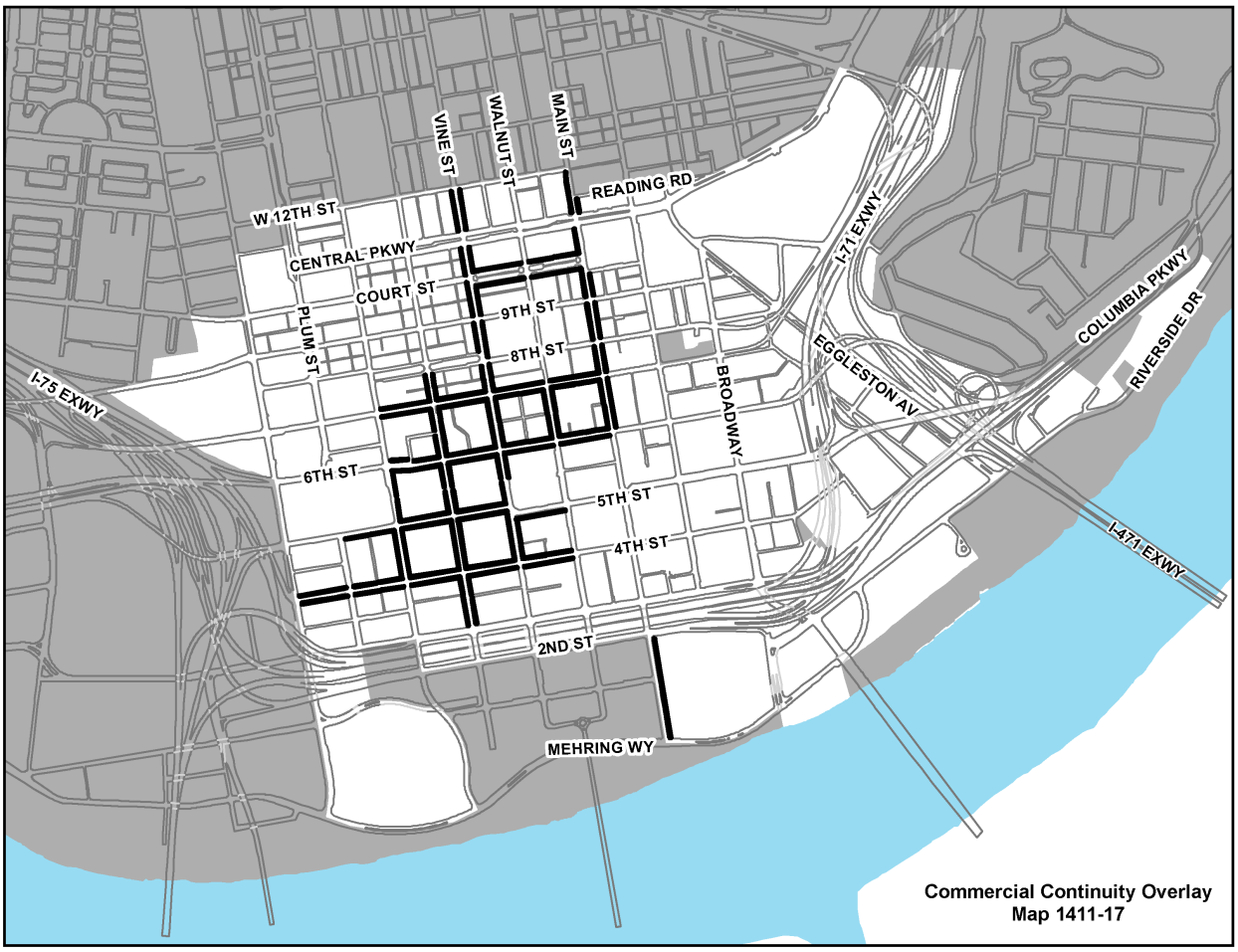
Map 1411-09 Floor Area Ratio (FAR) Overlay



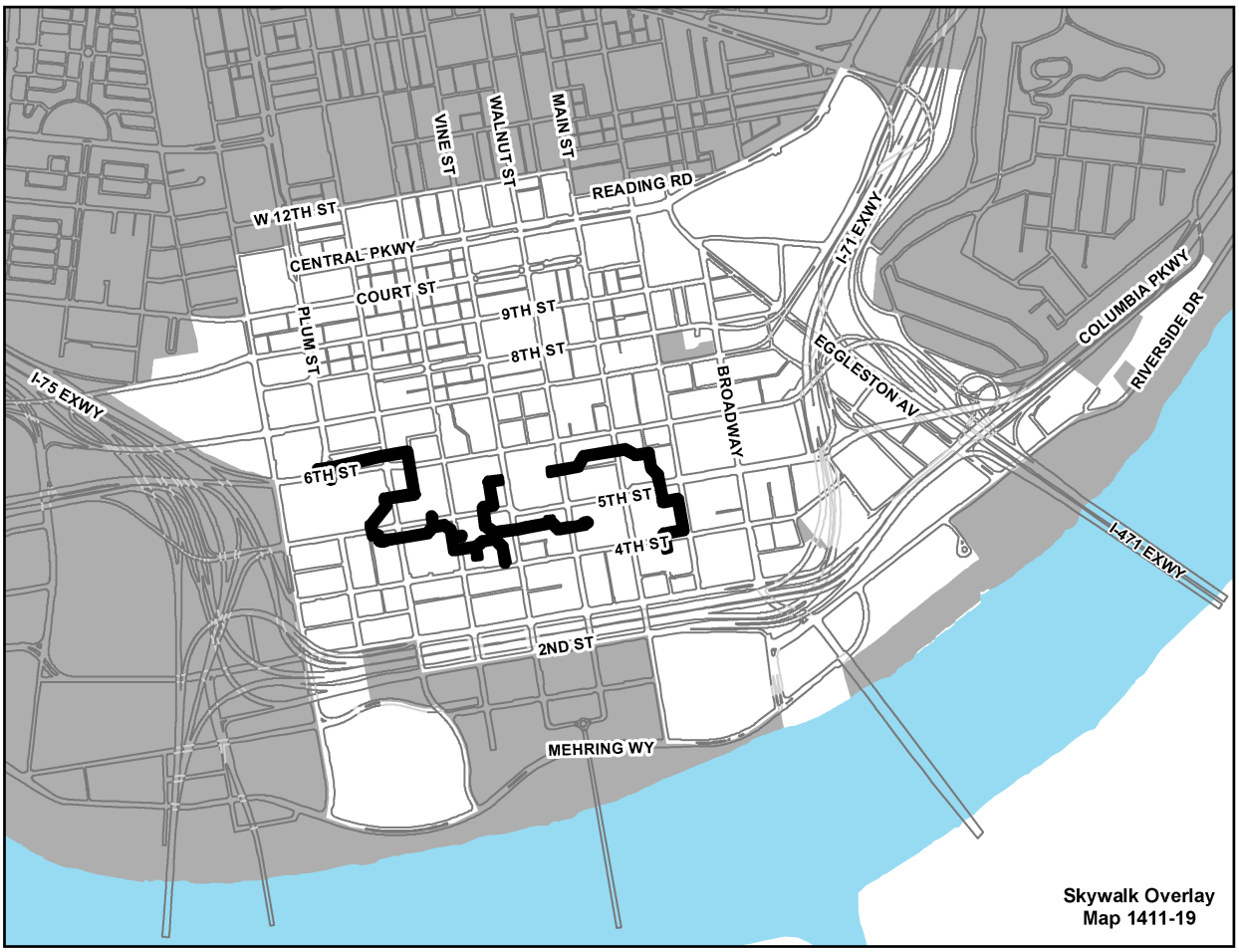
Map 1411-13 Maximum Building Height Overlay



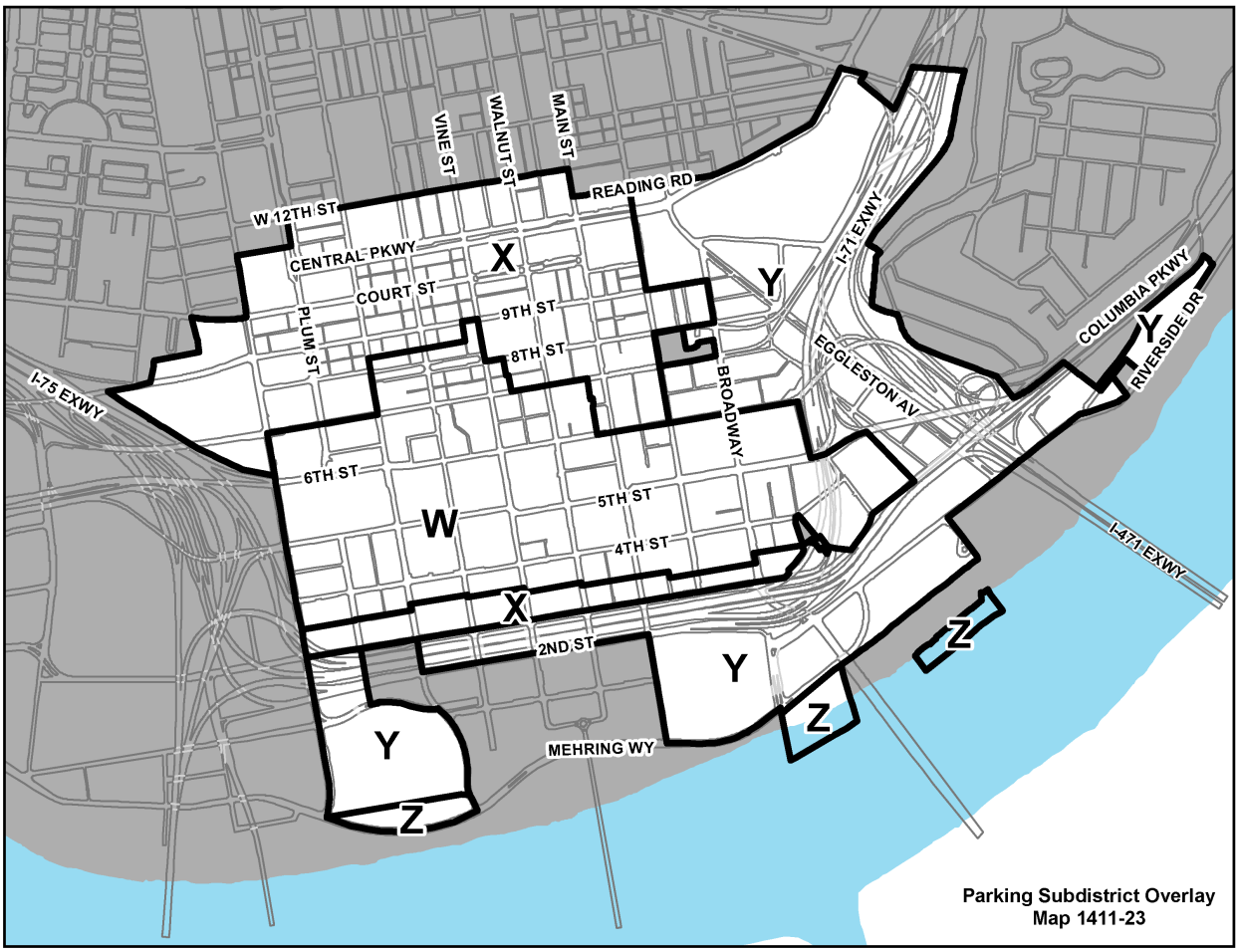
Map 1411-15 Zero Setback Overlay



Map 1411-17 Commercial Continuity Overlay



Map 1411-19 Slywalk Overlay



Map 1411-23 Parking Subdistrict Overlay

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0145-2021, §§ 2—8, eff. April 28, 2021; a. Emer. Ord. No. 0377-2021, §§ 1, 2, eff. September 22, 2021)

Chapter 1413

MANUFACTURING DISTRICTS

§ 1413-01. Purposes.
§ 1413-03. Specific Purposes of the Manufacturing Subdistricts.
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§ 1413-05. Land Use Regulations.
§ 1413-07. Development Regulations.
§ 1413-09. Driveway Restrictions.
§ 1413-11. Truck Docks; Loading and Service Areas.

§ 1413-01. Purposes.

The general purposes of manufacturing districts are to:

(a) Promote and preserve manufacturing areas as significant employment generators.

(b) Facilitate the necessary infrastructure to accommodate a wide variety of transportation, manufacturing and technology uses.

(c) Accommodate existing traditional industries, while anticipating new technologies and business service uses.

(d) Preserve appropriate location of industries that may have the potential to generate off-site impacts, while providing compatibility in use and form.

(e) Establish appropriate standards for reviewing proposals for new development and redevelopment, where appropriate, in manufacturing areas.

(f) Ensure the provision of services and facilities needed to facilitate planned employment densities.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1413-03. Specific Purposes of the Manufacturing Subdistricts.

The specific purposes of the manufacturing subdistricts are:

(a) *MA Manufacturing Agricultural.* To create, preserve and enhance areas that are appropriate for agricultural, farming, low impact manufacturing and supporting commercial uses. Low impact manufacturing and supporting commercial uses may be permitted provided they meet specific performance standards and are buffered from residential uses. Single-family residential is also encouraged in the district.

(b) *ML Manufacturing Limited.* To create, preserve and enhance areas that are appropriate for a range of low-impact manufacturing activities and supporting commercial uses. High-impact manufacturing uses may be permitted, provided they meet specific performance standards and are buffered from residential areas. Loft dwelling units may be permitted in this district and any commercial uses should be located along major transportation corridors.

(c) *MG Manufacturing General.* To create, preserve and enhance areas that are appropriate for a wide variety of supporting and related commercial and manufacturing establishments that may have the potential to generate off-site impacts. Future development will accommodate heavy industrial and manufacturing uses, transportation facilities, warehousing and distribution and similar and related supporting uses. These uses typically require sites with good transportation access. Uses that may inhibit industrial development are prohibited.

(d) *ME Manufacturing Exclusive.* To recognize and preserve areas that are intended exclusively for the location of manufacturing establishments. Future development will

accommodate heavy industrial and manufacturing uses. These uses typically require sites with good transportation access. Uses that may inhibit or compete with industrial development are prohibited.

Figures 1413-03-A, B

Figures 1413-03-C, D

Figure 1413-03-E

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0060-2008, § 6, eff. March 13, 2008)

§ 1413-04. Connected Communities.

Three Connected Communities designations are established to enhance the base zoning district. The underlying zoning district and map overlays apply where not inconsistent with the development regulations below.

(a) Neighborhood Business District 'B'. This district designation is intended for areas located within established neighborhood business districts. The neighborhood business district 'B' designation is subject to the following development regulations:

(1) Two-family, three-family, and four-family uses are permitted, subject to the development regulations of the underlying zoning district, except as otherwise provided in subsections (a)(2) and (a)(3).

(2) Minimum lot-area-per-dwelling-unit regulations do not apply.

(3) Parking:

(i) No off-street parking is required for residential uses in a new building containing ten or fewer dwelling units.

(ii) Residential uses in a new building with more than ten dwelling units require one-half space per additional dwelling unit over ten dwelling units.

(iii) No off-street parking is required in a new commercial or mixed-use building if the building has 5,000 square feet or less of commercial space.

(iv) The underlying zoning district parking requirements are reduced by one-half for commercial uses in a new commercial or mixed-use building if the building has more than 5,000 square feet of commercial space.

(v) Additions to existing buildings are considered new construction for purposes of this section.

(vi) Accessory surface parking facilities shall be located in the rear yard.

(b) Middle Housing 'MH'. This district designation is intended for areas surrounding neighborhood business districts. The middle housing 'MH' designation is subject to the following development regulations:

(1) Two-family, three-family, and four-family uses are permitted subject to the development regulations of the underlying zoning district, except as otherwise provided in subsection (b)(2).

(2) Parking:

(i) No off-street parking is required for residential uses in a new building containing ten or fewer dwelling units.

(ii) Residential uses in a new building with more than ten dwelling units require one-half space per additional dwelling unit over ten dwelling units.

(iii) No off-street parking is required in a new commercial or mixed-use building if the building has 5,000 square feet or less of commercial space.

(iv) The underlying zoning district parking requirements are reduced by one-half for commercial uses in a new commercial or mixed-use building if the building has more than 5,000 square feet of commercial space.

(v) Additions to existing buildings are considered new construction for purposes of this section.

(vi) Accessory surface parking facilities shall be located in the rear yard.

(c) Transportation Corridor 'T'. This district designation is intended for areas located along major transportation corridors. The transit corridor 'T' designation is subject to the following development regulations:

(1) Two-family, three-family, and four-family uses are permitted subject to the development regulations in Section 1413-07, except as otherwise provided in subsections (c)(2)-(5).

(2) Minimum lot-area-per-dwelling-unit regulations do not apply.

(3) Minimum off-street parking regulations do not apply.

(4) The height of new structures may exceed the maximum height of the underlying zoning district by an additional twelve feet.

(5) Accessory surface parking facilities shall be located in the rear yard.

(d) Design Standards. Two-family, three-family, and four-family dwellings located within a designated Connected Communities district shall comply with the design standards set forth below.

(1) Entrance. At least one dwelling unit entrance shall be located on each street frontage.

(2) Building Form. Building composition shall consist of a base, middle, and top component to reduce the apparent bulk of the building. The designs of new buildings shall avoid long unrelieved expanses of wall along the street frontage by maintaining a rhythm of windows and structural bays.

(i) Buildings shall have a distinct base at the ground level, using articulation and materials such as stone, masonry, or decorative concrete.

(ii) Buildings shall have a change in material and/or design that marks the transition from base component to middle component, and from middle component to top component.

(iii) The top of the building shall be treated with a distinct outline with elements such as a projecting parapet, cornice, or projection.

(3) If the Zoning Administrator determines a permit application does not conform to the requirements of Section 1413-04(d), the Zoning Board of Appeals has the duty to determine whether the application satisfies the standards set forth in this Chapter prior to the issuance of a building permit.

(Ordained by Emer. Ord. No. 199-2024, § 1, eff. 7-1-2024)

§ 1413-05. Land Use Regulations.

Schedule 1413-05 below prescribes the land use regulations for M Manufacturing Districts. Use classifications are defined in Chapter 1401: Definitions. Use classifications not listed in Schedule 1413-05 are prohibited.

The regulations for each subdistrict are established by letter designations as follows:

(a) "P" designates permitted uses. These uses may be subject to additional regulations as indicated.

(b) "L" designates uses that are permitted, subject to certain limitations. Numeric suffixes refer to limitations listed at the bottom of Schedule 1413-05. Except as otherwise indicated, modifications of a numerical, locational or dimensional limitation requires a variance under Chapter 1445 - Variances, Special Exceptions and Conditional Uses.

(c) "C" designates uses permitted only after review and approval of the conditional use by the Zoning Hearing Examiner. These uses may be subject to additional regulations as indicated.

Schedule 1413-05: Use Regulations - Manufacturing Districts

Use Classifications	*MA*	*ML*	*MG*	*ME*	*Additional Regulations*
Residential Uses					
Day care home—Adult	P	—	—		
Day care home—Type A	L9	—	—		
Day care home—Type B	L1	—	—		
Group residential					
Convents and monasteries	—	L1	—	—	
Fraternities and sororities	—	L1	—	—	

Use Classifications	*MA*	*ML*	*MG*	*ME*	*Additional Regulations*
Patient family homes	—	L1	—	—	
Rooming houses	—	L1	—	—	
Shared housing for the elderly	P	L1	—	—	
Permanent residential					
Single-family dwelling	P	L1	—	—	
Attached single-family dwelling	P	L1	—	—	
Two-family dwelling	—	L1	—	—	
Multi-family dwelling	—	L1	—	—	
Residential care facilities					
Developmental disability dwelling	P	P	—	—	
Special assistance shelter	—	C	—	—	
Transitional housing					
Programs 1—4	—	P	P	—	
Programs 5, 6	—	—	P	—	
Public and Semipublic Uses					
Community service facilities	P	P	—	—	
Day care center	P	P	L3	—	
Government facilities and offices					
Correctional institutions	—	—	C	—	
Facilities and installations	—	—	C	—	
Juvenile detention facilities	—	—	C	—	
Offices	P	P	P	—	
Park and recreation facilities	P	P	—	—	
Public maintenance facilities	—	P	P	—	
Public safety facilities	C	P	P	P	
Religious assembly	P	P	—	—	
Schools, public or private	P	P	—	—	See § 1419-12
Commercial Uses					
Ambulance services	—	P	P	—	
Animal service facilities	—	P	P	—	See § 1419-05
Banks and financial institutions	—	P	P	—	
Building maintenance services	—	P	P	—	
Building materials sales and services	—	P	P	P	
Business services	—	P	P	—	
Eating and drinking establishments					
Convenience markets	—	L5	L5	—	
Drinking establishments	—	P	P	—	
Restaurants, full service	—	P	P	—	See § 1419-21
Restaurants, limited	—	P	P	—	See § 1419-21
Food markets	—	L5	L5	—	
Food preparation	P	P	P	—	
Garden supply stores and nurseries	P	P	—	—	See § 1419-16

Use Classifications	*MA*	*ML*	*MG*	*ME*	*Additional Regulations*
Laboratories, commercial	—	P	P	—	
Loft dwelling units	P	P	P	—	See § 1419-23
Maintenance and repair services	P	P	P	—	
Medical services and clinics	—	P	P	—	
Offices	P	P	P	P	
Parking facilities	—	P	P	C	See Chapter 1425
Personal instructional services	P	P	P	—	
Personal services	—	L5	L5	—	
Private vehicular storage lot	—	—	P	—	
Recreation and entertainment					
Indoor or small-scale	—	P	P	—	
Outdoor or large-scale	—	C	—	—	
Retail sales	—	L5	L5	—	
Sexually oriented business	—	—	P	—	See § 1419-25
Vehicle and equipment services					
Vehicle and equipment sales and rental	—	L2	L2	—	
Car wash	—	L3	P	—	See § 1419-11
Fuel sales	—	L3	P	—	See § 1419-15
Vehicle repair	—	—	P	—	See § 1419-27
Automobile holding facility	—	—	L4	—	
Industrial Uses					
Production industry					
Artisan	P	P	P	P	
General	—	—	P	P	
Intensive high-impact	—	—	C	C	See § 1419-19
Limited	P	P	P	P	
Research and development	P	P	P	—	
Warehousing and storage					
Contractor's storage	—	C	P	—	
Indoor storage	—	P	P	—	
Oil and gas storage	—	—	C	C	
Outdoor storage	—	—	C	C	
Metal waste salvage yard/junk yards	—	—	C	C	
Waste management					
Waste collection	—	P	P	P	See § 1419-31
Waste disposal	—	—	C	C	
Waste transfer	—	—	C	C	See § 1419-31
Wholesaling and distribution	P	P	P	P	
Transportation, communication and utilities					
Communications facilities	P	P	P	—	
Public utility distribution system	—	P	P	P	
Public utility maintenance yard	—	P	P	P	

Use Classifications	*MA*	*ML*	*MG*	*ME*	*Additional Regulations*
Public utility plant	—	C	P	P	
Radio and television broadcast antenna	—	P	P	—	
Transportation facilities					
Airports	—	L6	—	—	
Heliports	—	L6	L6	L6	
Railroad train yards	—	L7	L7	L7	
Railroad right-of-way	—	P	P	P	
Transportation passenger terminals	—	P	P	P	
Truck terminal and warehouse	—	—	L7	L7	
Wireless communication antenna	L13	L8	L8	L8	
Wireless communication tower	—	C	C	C	
Agriculture and Extractive Uses					
Animal keeping	P	P	P	P	See Chapter 1422
Farms	P	P	P	P	See Chapter 1422
Gardens	P	P	P	P	See Chapter 1422
Mining and quarrying	—	—	C	C	
Accessory Uses					See Chapter 1421
Any accessory use not listed below	L10	L10	L10	L10	
Accessory dwelling unit	L17	L1, L17	—	—	See § 1421-06
Refuse storage area	L12	L12	L12	L12	See § 1421-35
Drive box	L11	L11	L11	L11	
Commercial vehicle parking	L14	P	P	P	
Exterior lighting	P	P	P	P	See § 1421-39
Composting facilities	P	—	—	—	See § 1421-37
Home occupation	P	—	—	—	See § 1419-17
Rooming unit	L15	—	—	—	
Retail Sales	L16	—	—	—	
Portable Storage Containers	P	P	P	P	See § 1419-24
Nonconforming Uses					See Chapter 1447

Specific Limitations

L1 New residential is permitted only when abutting an existing residential use or structure.

L2 Permitted on arterial street only. Vehicle loading and unloading must occur on-site.

L3 Permitted only as an accessory use to a use allowed in the district.

L4 The facility must be completely enclosed on all sides with a six foot screen fence which is protected from damage by a guardrail or other barriers approved by the Zoning Administrator. Must be located at least 100 feet from a residential district.

L5 Permitted only if occupying less than 5,000 sq. ft. in ML and 10,000 sq. ft. in MG.

L6 Landing strip, pad, or apron may not be located within 500 ft. of a residential district boundary.

L7 Not allowed within 250 ft. of a residential use in a Residential District.

L8 Antenna height may not exceed 20 feet; greater height requires a conditional use approval. The antenna may be attached to a multi-family, public or semi-public, public utility, a commercial or industrial building or structure.

L9 Fencing a minimum of four feet in height must be provided for purposes of securing outdoor play areas which must be located in the rear yard only.

L10 Accessory uses determined by the Zoning Administrator to be customarily incidental to a use of the district are permitted. All others require conditional use approval.

L11 The storage space is less than 30 cubic yards; enclosed by a screen fence or within a structure; and at least 100 feet from any property used for residential purposes.

L12 Provisions of § 1421-35 apply when refuse storage.

L13 Antenna height may not exceed 20 feet; greater height requires a conditional use approval. The antenna may be attached to an agricultural, public or semi-public or public utility building or structure.

L14 One commercial vehicle may be parked or stored on residential property with the following provisions:

a. Commercial vehicles with current license owned by a resident of the residential property on which it is stored or parked may not exceed two tons in capacity.

b. Recreational vehicles, watercraft and personal trailers may be parked on the lot beyond the front yard.

L15 No more than two rooming units may be rented or leased in a single-family dwelling.

L16 Retail sales of products manufactured or wholesaled on the premises, when incidental and subordinate to a principal permitted use, provided that the floor area devoted to such retailing shall not exceed 35 percent of the floor area devoted to such principal use, but in no case shall the retail floor area exceed 5,000 square feet.

L17 Permitted only when subordinate and incidental to a single-family dwelling that is the principal use of the lot.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0060-2008, § 7, eff. March 13, 2008; a. Ord. No. 0152-2008, § 1, eff. June 7, 2008; a. Ord. No. 414-2008, § 14, eff. Jan. 4, 2009; a. Ord. No. 307-2009, § 1, eff. Dec. 12, 2009; a. Ord. No. 038-2010, § 1, eff. March 18, 2010; Emer. Ord. No. 141-2015, § 14, eff. July 1, 2015; a. Ord. No. 0281-2017, § 16, eff. Nov. 4, 2017; a. Ord. No. 127-2018, § 11, eff. July 6, 2018; a. Ord. No. 251-2019, § 19, eff. July 26, 2019; a. Emer. Ord. No. 418-2021, §§ 5, 39, eff. Nov. 10, 2021; a. Ord. No. 266-2023, §§ 11, 15, eff. Oct. 2, 2023; a. Emer. Ord. No. 199-2024, § 2, eff. 7-1-2024)

§ 1413-07. Development Regulations.

Schedule 1413-07 below prescribes the development regulations for M Manufacturing Districts, including minimum lot area, maximum height, minimum yards and other standards. Additional standards are included in Chapter 1419.

Schedule 1413-07: Development Regulations - Manufacturing Districts

Regulations	*MA*	*ML*	*MG*	*ME*	*Additional Regulations*
Building Scale - Intensity of Use					
Minimum Lot Area (sq. ft.)					
Residential Uses	20,000	4,000	—	—	
Non-residential Uses	20,000	0	0	0	
Land area for every dwelling unit	—	2,000	—	—	
Building Form and Location					
Maximum Building Height (ft.)	35	45	85	85	
Minimum Yard (ft.)					
Front Residential	40	20	0	0	
Front Non-Residential	25	20	0	0	
Side Residential (minimum/total)	10/20	3/12	0	0	
Side Non-Residential (minimum/total)	10/20	10/20	0	0	
Rear Residential	35	25	0	0	
Rear Non-Residential	20	10	0	0	
Vehicle Accommodation - Driveways and Parking					
Driveway Restrictions	Yes	Yes	Yes	Yes	See § 1413-09
Parking Lot Landscaping	Yes	Yes	Yes	Yes	See § 1425-29
Truck Docks; Loading and Service Areas	Yes	Yes	Yes	Yes	See § 1413-11
Other Regulations					
Buffering Along District Boundaries	Yes	Yes	Yes	Yes	See § 1423-13
Accessory Uses and Structures			See Chapter 1421		
General Site Standards			See Chapter 1421		
Landscaping and Buffer Yards			See Chapter 1423		
Nonconforming Uses and Structures			See Chapter 1447		
Off-Street Parking and Loading			See Chapter 1425		
Signs			See Chapter 1427		
Additional Development Regulations			See Chapter 1419		

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0060-2008, § 8, eff. March 13, 2008; a. Ord. No. 0152-2008, § 2, eff. June 7, 2008; a. Ord. No. 0152-2008, § 2, eff. June 7, 2008)

§ 1413-09. Driveway Restrictions.

Site access must be from a local street or alley wherever practical, but not from a residential street where alternate access is available, as determined by the Department of Transportation and Engineering.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1413-11. Truck Docks; Loading and Service Areas.

Where a building is adjacent to a residential district, the location of these facilities must be the side away from the district boundary. Where truck docks, loading and service areas are adjacent to a residential district boundary a 100 foot setback is required from the district boundary line. In the ML Districts, these facilities must be located at the side of buildings or in the rear of the site and screened so as not to be visible from a public street other than an alley.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

Chapter 1415

RIVERFRONT DISTRICTS

§ 1415-01. Purposes.
§ 1415-03. Specific Purposes of the Riverfront Subdistricts.
§ 1415-04. Connected Communities.
§ 1415-05. Land Use Regulations.
§ 1415-07. Little Miami Riverfront Area Use Regulations.
§ 1415-09. Development Regulations.
§ 1415-11. Maximum Height.
§ 1415-13. Maximum Building Coverage.
§ 1415-15. Truck Docks, Loading and Service Areas.
§ 1415-17. Buffer Yards.
§ 1415-19. Ohio River Bank Area.
§ 1415-21. Little Miami Riverfront Area Use Review.

§ 1415-01. Purposes.

The general purposes of the riverfront districts are to:

(a) Promote residential and river-related recreational, commercial and manufacturing activities along the Ohio and Little Miami Rivers.

(b) Maintain scenic river views from major public thoroughfares.

(c) Preserve significant natural features of the floodplain environment.

(d) Protect the special designation of the Little Miami River as a recreational river by the United States Congress and as a scenic river, as established by the Ohio General Assembly.

(e) Conform to the requirements imposed by Chapter 1109, Floodplain Management, of the Cincinnati Building Code.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1415-03. Specific Purposes of the Riverfront Subdistricts.

The specific purposes of the riverfront subdistricts are:

(a) *RF-R Riverfront Residential/Recreational District.* To optimize the scenic beauty of the riverfront while mixing residential uses into current public and semi-public land uses and to enhance the stability and revitalization of adjoining neighborhoods.

(b) *RF-C Riverfront Commercial District.* To provide sites for commercial and manufacturing uses that require river access and to provide a buffer between the high intensity RF-M riverfront industrial and the more mixed-use RF-R areas, while providing needed services for both areas and protecting adjoining residential neighborhoods, public parks and recreation facilities from the effects of more intense commercial and industrial uses.

(c) *RF-M Riverfront Manufacturing District.* To provide sites for heavy industrial uses that require river access, maintain the economic vitality of the industrial riverfront and minimize any adverse impacts resulting from such activity on residential, park, recreation and commercial recreation facilities.

Figure 1415-03-A

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1415-04. Connected Communities.

Three Connected Communities designations are established to enhance the base zoning district. The underlying zoning district and map overlays apply where not inconsistent with the development regulations below.

(a) *Neighborhood Business District 'B'*. This district designation is intended for areas located within established neighborhood business districts. The neighborhood business district 'B' designation is subject to the following development regulations:

(1) Two-family, three-family, and four-family uses are permitted, subject to the development regulations of the underlying zoning district, except as otherwise provided in subsections (a)(2) and (a)(3).

(2) Minimum lot-area-per-dwelling-unit regulations do not apply.

(3) Parking:

(i) No off-street parking is required for residential uses in a new building containing ten or fewer dwelling units.

(ii) Residential uses in a new building with more than ten dwelling units require one-half space per additional dwelling unit over ten dwelling units.

(iii) No off-street parking is required in a new commercial or mixed-use building if the building has 5,000 square feet or less of commercial space.

(iv) The underlying zoning district parking requirements are reduced by one-half for commercial uses in a new commercial or mixed-use building if the building has more than 5,000 square feet of commercial space.

(v) Additions to existing buildings are considered new construction for purposes of this section.

(vi) Accessory surface parking facilities shall be located in the rear yard.

(b) *Middle Housing 'MH'.* This district designation is intended for areas surrounding neighborhood business districts. The middle housing 'MH' designation is subject to the following development regulations:

(1) Two-family, three-family, and four-family uses are permitted subject to the development regulations of the underlying zoning district, except as otherwise provided in subsection (b)(2).

(2) Parking:

(i) No off-street parking is required for residential uses in a new building containing ten or fewer dwelling units.

(ii) Residential uses in a new building with more than ten dwelling units require one-half space per additional dwelling unit over ten dwelling units.

(iii) No off-street parking is required in a new commercial or mixed-use building if the building has 5,000 square feet or less of commercial space.

(iv) The underlying zoning district parking requirements are reduced by one-half for commercial uses in a new commercial or mixed-use building if the building has more than 5,000 square feet of commercial space.

(v) Additions to existing buildings are considered new construction for purposes of this section.

(vi) Accessory surface parking facilities shall be located in the rear yard.

(c) *Transportation Corridor 'T'.* This district designation is intended for areas located along major transportation corridors. The transit corridor 'T' designation is subject to the following development regulations:

(1) Two-family, three-family, and four-family uses are permitted subject to the development regulations in Section 1415-09, except as otherwise provided in subsections (c)(2)-(5).

(2) Minimum lot-area-per-dwelling-unit regulations do not apply.

(3) Minimum off-street parking regulations do not apply.

(4) The height of new structures may exceed the maximum height of the underlying zoning district by an additional twelve feet.

(5) Accessory surface parking facilities shall be located in the rear yard.

(d) *Design Standards.* Two-family, three-family, and four-family dwellings located within a designated Connected Communities district shall comply with the design standards set forth below.

(1) *Entrance.* At least one dwelling unit entrance shall be located on each street frontage.

(2) *Building Form.* Building composition shall consist of a base, middle, and top component to reduce the apparent bulk of the building. The designs of new buildings shall avoid long unrelieved expanses of wall along the street frontage by maintaining a rhythm of windows and structural bays.

(i) Buildings shall have a distinct base at the ground level, using articulation and materials such as stone, masonry, or decorative concrete.

(ii) Buildings shall have a change in material and/or design that marks the transition from base component to middle component, and from middle component to top component.

(iii) The top of the building shall be treated with a distinct outline with elements such as a projecting parapet, cornice, or projection.

(3) If the Zoning Administrator determines a permit application does not conform to the requirements of Section 1415-04(d), the Zoning Board of Appeals has the duty to determine whether the application satisfies the standards set forth in this Chapter prior to the issuance of a building permit.

(Ordained by Emer. Ord. No. 199-2024, § 1, eff. 7-1-2024)

§ 1415-05. Land Use Regulations.

Schedule 1415-05 below prescribes the land use regulations for RF Riverfront Districts. Use classifications are defined in Chapter 1401, Definitions. Use classifications not listed in Schedule 1415-05 are prohibited.

The regulations for each district are established by letter designations as follows:

(a) "P" designates permitted uses. These uses may be subject to additional regulations as indicated.

(b) "L" designates uses that are permitted, subject to certain limitations. Numeric suffixes refer to limitations listed at the bottom of Schedule 1415-05. Except as otherwise indicated, modifications of a numerical, locational or dimensional limitation requires a variance under Chapter 1445 - Variances, Special Exceptions and Conditional Uses.

(c) "C" designates uses permitted only after review and approval of the conditional use by the Zoning Hearing Examiner. These uses may be subject to additional regulations as indicated.

Schedule 1415-05: Use Regulations - Riverfront Districts

Use Classifications	*RF-R*	*RF-C*	*RF-M*	*Additional Regulations*
Residential Uses				
Bed and breakfast home	P	—	—	See § 1419-09
Day care home - Adult	C	—	—	
Day care home - Type A	C	—	—	
Day care home - Type B	L8	—	—	
Permanent residential				
Single-family dwelling	P	—	—	
Attached single-family dwelling	P	—	—	
Rowhouse single-family dwelling	P	—	—	
Two-family dwelling	P	—	—	
Multi-family dwelling	P	—	—	
Public and Semipublic Uses				

Use Classifications	*RF-R*	*RF-C*	*RF-M*	*Additional Regulations*
Community service facilities	P	—	—	
Cultural institutions	P	P	—	
Day care centers	P	P	—	
Government facilities and offices				
Facilities and installations	—	C	C	
Offices	P	P	—	
Parks and recreation facilities	P	—	—	
Public maintenance facilities	C	P	—	
Public safety facilities	P	P	P	
Religious assembly	P	P	P	
Schools, public and private	P	—	—	See § 1419-12
Commercial Uses				
Bed and breakfast inns	P	—	—	See § 1419-09
Eating and drinking establishments				
Drinking establishments	L1,2,3	L2,3	—	
Restaurants, full service	L1,2,3	L2,3	—	See § 1419-21
Restaurants, limited	L1,2,3	L2,3	—	See § 1419-21
Garden supply stores and plant nurseries	P	—	—	
Hotels and commercial lodging	L3	L3	—	
Recreation and entertainment				
Outdoor or large-scale	P	—	—	
Industrial Uses				
Production industry				
General	—	L4,6	L4,7	
Intensive high-impact	—	—	L4,7	See § 1419-19
Limited	—	L4,6	L4,7	
Metal waste salvage yard/junk yards	—	—	C	
Wholesaling and distribution	—	L4	L4	
Transportation, Communications and Utilities Uses				
Public utility distribution system	P	P	P	
Public utility plant	—	P	P	
Transportation facilities				
Railroad right-of-way	P	P	P	
Railroad train yards	—	L9	L9	
Transportation passenger terminals	P	P	P	
Watercraft and riverfront facilities				
Barge terminals	—	L6	L7	
Boat and ship yards	L6	L6	P	
Commercial piers and ports	—	P	—	
Marinas	P	P	—	
Marine sales and services	—	P	—	
Wireless communication antenna	L5	L5	L5	See § 1419-33

Use Classifications	*RF-R*	*RF-C*	*RF-M*	*Additional Regulations*
Wireless communication tower	C	C	C	See § 1419-33
Agriculture and Extractive Uses				
Animal keeping	P	P	P	See Chapter 1422
Farms	C	P	P	See Chapter 1422
Gardens	P	P	P	See Chapter 1422
Accessory Uses				See Chapter 1421
Any accessory use not listed below	L10	L10	L10	
Accessory dwelling unit	L16	—	—	See § 1421-06
Home occupation	P	—	—	See § 1419-17
Laundries and commissaries	L11	L11	—	
Refuse storage areas	L15	L15	L15	See § 1421-35
Drive box	L12	—	—	
Exterior lighting	P	P	P	See § 1421-39
Outside equipment storage areas	C	—	—	
Office uses	—	L13	L13	
Retail and repair	—	L14	—	
Portable Storage Containers	P	P	P	See § 1419-24
Nonconforming Uses				See Chapter 1447

Specific Limitations

L1 Outdoor eating and drinking areas require a conditional use approval. Presentation of entertainment is not permitted in such areas.

L2 Drive-through facilities are prohibited.

L3 Permitted in marinas and boatyards otherwise a conditional use approval is required.

L4 Use requires direct access to barge facilities

L5 Antenna height may not exceed 20 feet; greater height requires a conditional use approval. The antenna may be attached to an agricultural, multi-family, public or semi-public, public utility, commercial or industrial building or structure.

L6 All storage to be in completely enclosed facilities.

L7 Outdoor storage of chemicals, minerals and aggregate requires a conditional use approval.

L8 Fencing must be provided for purposes of securing outdoor play areas which must be located in the rear yard only.

L9 Not allowed within 250 feet of a residential use in a Residential District.

L10 Accessory uses determined by the Zoning Administrator to be customarily incidental to a use of the district are permitted. All others require conditional use approval.

L11 Accessory to a marina.

L12 Accessory to a public or semi-public use, provided the drive box is at least 100 feet from any property used for residential purposes and is outside the 100-year floodplain.

L13 Accessory to a permitted or conditional use but may not exceed 20,000 square feet of gross floor area.

L14 Retail sales or repair of products incidental to the industrial uses of the district but may not exceed 5,000 square feet of gross floor area.

L15 Provisions of § 1421-35 apply when refuse storage area is within 100 feet of any property used for residential purposes.

L16 Permitted only when subordinate and incidental to a single-family dwelling that is the principal use of the lot.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0346-2007, § 8, eff. Oct. 13, 2007; a. Ord. No. 153-2008, § 1, eff. June 7, 2008; a. Ord. No. 414-2008, § 16, eff. Jan. 4, 2009; a. Ord. No. 308-2009, § 1, eff. Dec. 12, 2009; a. Ord. No. 038-2010, § 1, eff. March 18, 2010; Emer. Ord. No. 141-2015, § 15, eff. July 1, 2015; a. Ord. No. 127-2018, § 12, eff. July 6, 2018; a. Ord. No. 251-2019, § 20, eff. July 26, 2019; a. Ord. No. 266-2023, §§ 12, 15, eff. Oct. 2, 2023)

§ 1415-07. Little Miami Riverfront Area Use Regulations.

In the RF-R District, only public uses are permitted within the river bank area located between a line 200 feet inland from and congruent with the 465 foot mean sea level datum contour line along the Little Miami River. Public uses may include utilities and parks and recreation uses, such as camping, nature interpretation, bicycle or bridle trails, public canoe access and similar recreational activities. Any Permitted (P), Limited (L), or Conditional (C) use in Schedule 1415-05 above is permitted within the river bank area located between 200 feet and 500 feet inland from and congruent with the 465 foot mean sea level datum contour line along the Little Miami River. See § 1415-21 Little Miami Riverfront Area Use Review. (Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1415-09. Development Regulations.

Schedule 1415-09 below prescribes the property development regulations for RF Riverfront Districts, including minimum lot area, maximum height, setback, parking and driveways and other standards. Additional standards are included in Chapter 1419, Additional Development Regulations.

Schedule 1415-09: Development Regulations - Riverfront Districts

Regulations	*RF-R*	*RF-C*	*RF-M*	*Additional Regulations*
Building Scale - Intensity of Use				
Minimum lot area (sq. ft.)	4,000	—	—	
Minimum lot area (sq. ft.) row-house	2,000	—	—	

Regulations	*RF-R*	*RF-C*	*RF-M*	*Additional Regulations*
Minimum area for every dwelling unit	2,000	—	—	
Building Form and Location				
Maximum building height (ft.)	35	100	—	See § 1415-11
Minimum yard (ft.)				
Front	10	25	20	
Side least width/sum	3/6	10/20	5/10	
Side rowhouse exterior, least width/sum	0/3	—	—	
Side rowhouse interior, least width/sum	0/0	—	—	
Rear	30	10	5	
Maximum building coverage (%)	60	70	80	See § 1415-13
Vehicle Accommodation - Driveways and Parking				
Parking lot landscaping	Yes	Yes	Yes	See § 1425-29
Truck docks; loading and service areas	Yes	Yes	Yes	See § 1415-15
Other Standards				
Buffering along district boundaries	Yes	Yes	Yes	See § 1415-17
Ohio River bank area	Yes	Yes	Yes	See § 1415-19
Little Miami Riverfront area	Yes	Yes	Yes	See § 1415-21
Accessory uses and structures			See Chapter 1421	
General site standards			See Chapter 1421	
Landscaping and buffer yards			See Chapter 1423	
Nonconforming uses and structures			See Chapter 1447	
Off-street parking and loading			See Chapter 1425	
Signs			See Chapter 1427	
Additional development regulations			See Chapter 1419	

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 153-2008, § 2, eff. June 7, 2008; a. Ord. No. 391-2008, eff. Dec. 19, 2008)

§ 1415-11. Maximum Height.

In the RF-R District, maximum height is measured above base flood elevation. In the RF-C District, maximum height may not exceed 100 feet above the elevation of the Ohio River at the Markland Dam pool stage if within 500 feet of a SF, RM, or RF-R District except silos. The total width of all silos that exceeds that elevation may not exceed ten percent of the width of the property. Provided, however, the Zoning Administrator may approve silos having a total width of thirty percent of the width of the property if the silos do not materially impair significant views of the Ohio River from any U.S. or state highway or other public vantage. The width of silos is measured at the point of maximum width of the part of the silo that extends more than 100 feet above the elevation of the Ohio River at Markland Dam pool stage at the site. Conveyors, elevators, ladders and similar fixtures serving a silo are not included

in the measurement of the width of a silo. The width of the property is the maximum width of the property measured along a straight line parallel to a line joining the mid points of the Ohio River at each end of the property.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 042-2012, § 9, eff. March 29, 2012; Emer. Ord. No. 141-2015, § 16, eff. July 1, 2015)

§ 1415-13. Maximum Building Coverage.

In the RF-C and RF-M Districts, maximum building coverage may be increased ten percent if a buffer yard pursuant to § 1423-13 Buffer Yards, is provided or if an acceptable perpetual easement granting access to the riverfront, public park or recreation facility is provided.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1415-15. Truck Docks, Loading and Service Areas.

Where a building is adjacent to a residential district, the location of these facilities must be the side away from the district boundary. Where truck docks, loading and service areas are adjacent to a residential district boundary, a 100 foot setback is required from the district boundary line. In RF-R Districts, these facilities must be located at the side of buildings or in the rear of the site and screened so as not to be visible from public streets and are not permitted to be used between 10 PM and 7 AM on weekdays and 11 PM and 7 AM on weekends. Off-street staging is required for all trucks and other vehicles that service or supply terminals or other areas.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1415-17. Buffer Yards.

All uses of the RF districts are subject to the Buffer Yard requirements of Schedule 1423-13-A except for the Residential Uses of Schedule 1415-05.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1415-19. Ohio River Bank Area.

Existing tree cover and vegetation must be preserved between the pool stage of the Ohio River and a line 50 feet inland from and congruent with the Markland Dam pool stage, except where new construction, floodproofing or docking facilities are necessary to achieve compliance with Chapter 1109, Flood Plain Management, of the Cincinnati Building Code, a U.S. Army Corps of Engineers permit, or where modified by the Zoning Administrator pursuant to Chapter 1423, Landscaping and Buffer Yards.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; Emer. Ord. No. 141-2015, § 17, eff. July 1, 2015)

§ 1415-21. Little Miami Riverfront Area Use Review.

Within 500 feet of the Little Miami River, a use may be established only if the Zoning Administrator finds in consultation with the Director of Parks and the Director of Recreation that the use:

(a) Maintains the natural and free-flowing conditions of the Little Miami River, except where channel modifications are required to mitigate a severe hazard to life or property;

(b) Does not aggravate erosion of the river bank;

(c) Has no adverse effect on existing wildlife habitation;

(d) Conserves significant natural vegetation and tree cover except for damaged or diseased trees in access ways;

(e) Protects or enhances the scenic, recreational, geologic, cultural or historic values of the river that led to its designation as a recreational and scenic river; and

(f) Does not substantially interfere with the recreational use and enjoyment of the Little Miami River by the public.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; Emer. Ord. No. 141-2015, § 18, eff. July 1, 2015)

Chapter 1416

PARK AND RECREATION DISTRICT

§ 1416-01. Purposes.
§ 1416-05. Land Use Regulations.
§ 1416-07. Development Regulations.

§ 1416-01. Purposes.

The general purposes of the Park and Recreation district are to:

(a) Preserve, protect and enhance a system of public parks, parkways, greenspace, and recreation areas.

(b) Preserve natural and scenic areas, and protect sensitive natural resource areas.

(Ordained by Ord. No. 0259-2007, § 1, eff. July 27, 2007)

§ 1416-05. Land use regulations.

Schedule 1416-05 below prescribes the land use regulations for the PR District. Use classifications are defined in Chapter 1401, Definitions. Use classifications not listed in Schedule 1416-05 below are prohibited.

The regulations are established by letter designations as follows:

(a) "P" designates permitted uses. These uses may be subject to additional regulations as indicated.

(b) "L" designates uses that are permitted, subject to certain limitations. Numeric suffixes refer to limitations listed at the bottom of Schedule 1416-05. Except as otherwise indicated, modifications of a numerical, locational or dimensional limitation requires a variance under Chapter 1445 - Variances, Special Exceptions and Conditional Uses.

(c) "C" designates uses permitted only after review and approval of the conditional use by the Zoning Hearing Examiner. These uses may be subject to additional regulations as indicated.

Schedule 1416-05: Use Regulations—Park and Recreation District

Use Classifications	*PR*	*Additional Regulations*
Public and Semipublic Uses		
Cemeteries	L1	
Cultural institutions	P	
Government Facilities and Offices—Offices	L2	
Parks and Recreation Facilities	P	
Public Maintenance Facilities	L3	
Schools, Public or Private	C	See § 1419-12
Commercial Uses		
Restaurants, Full Service	C	
Funeral and interment services	L4	
Wireless communication antenna	L5	See § 1419-33
Wireless communication tower	C	See § 1419-33
Agriculture and Extractive Uses		
Animal keeping	P	See Chapter 1422
Farms	P	See Chapter 1422
Gardens	P	See Chapter 1422
Accessory Uses		
Any accessory use not listed below	L6	
Drive box	L7	

Use Classifications	*PR*	*Additional Regulations*
Exterior lighting	P	See § 1421-39
Fences and walls	P	See § 1421-33
Refuse storage areas	P	See § 1421-35
Portable storage containers	P	See § 1419-24
Nonconforming Uses		See Chapter 1447

Specific Limitations

L1 Only existing cemeteries allowed.

L2 Office uses for the administration of Parks and Recreation Facilities, their lessees and concession operators are permitted. All other Government Offices require conditional use approval.

L3 Public Maintenance Facilities for the maintenance of Parks and Recreation Facilities are permitted. All other Public Maintenance Facilities require conditional use approval.

L4 Permitted only as an accessory use to existing Cemeteries.

L5 Antenna height may not exceed 20 feet; greater height requires a conditional use approval. The antenna may be attached to a multi-family, public and semi-public, public utility, a commercial or industrial building or structure.

L6 Accessory uses determined by the Zoning Administrator to be customarily incidental to a use of the district are permitted. All others require conditional use approval.

L7 Accessory to a public or semi public use provided that the drivebox is at least 100 feet from any property used for residential purposes.

(Ordained by Ord. No. 0259-2007, § 1, eff. July 27, 2007; a. Ord. No. 414-2008, § 18, eff. Jan. 4, 2009; a. Ord. No. 309-2009, § 1, eff. Dec. 12, 2009; a. Ord. No. 038-2010, § 1, eff. March 18, 2010; Emer. Ord. No. 141-2015, § 19, eff. July 1, 2015; a. Ord. No. 127-2018, § 13, eff. July 6, 2018; a. Ord. No. 251-2019, § 21, eff. July 26, 2019)

§ 1416-07. Development regulations.

Schedule 1416-07 below prescribes the development regulations for the PR district, including lot area for every unit, minimum lot width, setbacks and maximum height. Where an overlay district applies, the provisions of that district take precedence if there is conflict with the standards of this Section.

Schedule 1416-07
Development Regulations—Park and Recreation District

"Yes" means additional regulations apply.		
Regulations	*PR*	*Additional Regulations*
Building Form and Location		
Maximum building height (ft.)	35	
Minimum yards (ft.)	0	
Vehicle Accommodation - Driveways and Parking		
Parking lot landscaping	Yes	See § 1425-31
Parking and Loading	Yes	See Chapter 1425
Other Regulations		
Buffering along district boundaries	Yes	See § 1423-13-A
Accessory uses and structures	Yes	See Chapter 1421
General site standards	Yes	See Chapter 1421
Landscaping and buffer yards	Yes	See Chapter 1423
Nonconforming uses and structures	Yes	See Chapter 1447
Parking and loading	Yes	See Chapter 1425
Signs	Yes	See Chapter 1427
Additional development regulations	Yes	See Chapter 1419

(Ordained by Ord. No. 0259-2007, § 1, eff. July 27, 2007)

Chapter 1417

INSTITUTIONAL-RESIDENTIAL DISTRICT

§ 1417-01. Purposes.
§ 1417-03. Land Use Regulations.
§ 1417-05. Special Accessory Uses.
§ 1417-07. Development Regulations.
§ 1417-09. Truck Docks; Loading and Service Areas.
§ 1417-11. Institutional Buffer Yard Plan.
§ 1417-13. Institutional Buffer Yard Standards.
§ 1417-15. Sign Standards for Uses in the I-R District.

§ 1417-01. Purposes.

The general purposes of the Institutional-Residential District are to:

(a) Provide appropriate zoning for major institutions and support services that will allow for continuation and expansion without adverse impacts on adjacent residential neighborhoods.

(b) Provide sufficient buffering between institutional properties and adjacent residential neighborhoods.

(c) Promote the orderly development of institutional and residential land uses.

(d) Establish appropriate standards for reviewing proposals for new development of institutional uses and for expansion of existing institutional uses.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1417-03. Land Use Regulations.

Schedule 1417-03 below prescribes the land use regulations for IR Institutional-Residential Districts. Use classifications are defined in Chapter 1401, Definitions. Use classifications not listed in Schedule 1417-03 below are prohibited.

The regulations for each district are established by letter designations as follows:

(a) "P" designates permitted uses. These uses may be subject to additional regulations as indicated.

(b) "L" designates uses that are permitted, subject to certain limitations. Numeric suffixes refer to limitations listed at the bottom of Schedule 1417-03. Except as otherwise indicated, modifications of a numerical, locational or dimensional limitation requires a variance under Chapter 1445 - Variances, Special Exceptions and Conditional Uses.

(c) "C" designates uses permitted only after review and approval of a conditional use by the Zoning Hearing Examiner. These uses may be subject to additional regulations as indicated.

Schedule 1417-03: Use Regulations - Institutional-Residential Districts

Use Classifications	*IR*	*Additional Regulations*
Residential Uses		
Bed and breakfast home	P	See § 1419-09
Day care home - Adult	P	
Day care home - Type A	L6	
Day care home - Type B	L6	
Group residential	P	
Permanent residential		
Single-family dwelling	P	
Attached single-family dwelling	P	
Two-family dwelling	P	
Multi-family dwelling	P	
Residential care facilities		

Use Classifications	*IR*	*Additional Regulations*
Assisted living	P	
Developmental disability dwelling	P	
Nursing home	P	
Transitional housing		
Programs 1—4	P	
Programs 5,6	C	
Public and Semipublic Uses		
Colleges, public or private	P	See § 1417-05
Community service facilities	P	
Cultural institutions	P	
Day care center	P	
Government facilities and offices		
Offices	P	
Hospitals	P	See § 1417-05
Park and recreation facilities	P	
Public safety facilities	P	
Religious assembly	P	
Schools, public or private	P	See § 1417-05 and § 1419-12
Commercial Uses		
Laboratories, commercial	P	See § 1417-05
Medical services and clinics	P	
Offices	P	
Transportation, Communication and Utilities		
Communications facilities	P	
Public utility distribution system	C	
Transportation facilities		
Heliports	C	
Transportation passenger terminals	P	
Wireless communication antenna	L1	See § 1419-33
Wireless communication tower	C	See § 1419-33
Agriculture and Extractive Uses		
Animal keeping	P	See Chapter 1422
Farms	C	See Chapter 1422
Gardens	P	See Chapter 1422
Accessory Uses		See Chapter 1421 and § 1417-05
Any accessory use not listed below	L2	
Accessory dwelling unit	L7	See § 1421-06
Drive box	L5	
Home occupations	P	See § 1419-17
Refuse storage area	L4	See § 1421-35
Rooming unit	L3	
Exterior lighting	P	See § 1421-39
Portable storage containers	P	See § 1419-24
Nonconforming Uses		See Chapter 1447

Specific Limitations

L1 Antenna height may not exceed 20 feet; greater height requires a conditional use approval. The antenna may be attached to multi-family, public or semi-public, public utility or commercial building or structure.

L2 Accessory uses determined by the Zoning Administrator to be customarily incidental to a use of the district other than those specified in § 1417-05 are permitted. All others require conditional use approval.

L3 The maximum number of rooming units is two.

L4 Provisions of § 1421-35 apply when refuse storage area is within 100 feet of any property used for residential purposes.

L5 The storage space is less than 30 cubic yards; enclosed by a screen fence or within a structure; and at least 100 feet from any property used for residential purposes.

L6 Fencing, a minimum of four feet in height must be provided for purposes of securing outdoor play areas which must be located in the rear yard only.

L7 Permitted only when subordinate and incidental to a single-family dwelling that is the principal use of the lot.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 154-2008, § 1, eff. June 7, 2008; a. Ord. No. 414-2008, § 20, eff. Jan. 4, 2009; a. Ord. No. 310-2009, § 1, eff. Dec. 12, 2009; a. Ord. No. 038-2010, § 1, eff. March 18, 2010; Emer. Ord. No. 141-2015, § 20, eff. July 1, 2015; a. Ord. No. 127-2018, § 14, eff. July 6, 2018; a. Ord. No. 251-2019, § 22, eff. July 26, 2019; a. Ord. No. 266-2023, §§ 13, 15, eff. Oct. 2, 2023)

§ 1417-05. Special Accessory Uses.

The following uses are permitted or conditional accessory uses to colleges, hospitals, schools and commercial laboratories:

(a) *Permitted Accessory Uses:*

(1) Dormitories, student residences, patient family homes, conference centers without guest lodging rooms, auditoriums, theaters, sports facilities, amphitheaters, book stores, nursing homes and day-care centers.

(2) Automated teller machines, gift shops, florist shops, pharmacies, restaurants and similar uses; provided, that such uses must be conducted primarily for the convenience of the staff, students, patients, patrons and other invitees of the institution; such accessory uses may not occupy in the aggregate more than 25 percent of the gross floor area of the building in which located; and display of goods or advertising calling attention to the accessory use must not be visible from outside of the building.

(3) Parking lots, decks and garages, provided that the location of all vehicular entrances and exits must first be approved by the Department of Transportation and Engineering.

(4) Utility plants for the production, transmission and distribution of gas, electricity, steam or chilled water, serving institutional uses, provided that the plant may not be nuclear powered. Further, such plant may be erected on its own lot.

(5) Small-scale specialized incinerator accessory to hospitals, clinics, medical laboratories, facilities for scientific research, development or testing, provided that the material incinerated is generated on-site and the incinerator is at least 100 feet from any property used for residential purposes.

(b) *Conditional Accessory Uses:*

(1) Conference centers with guest lodging rooms.

(2) Business and personal services listed in paragraph (a)(2) above not complying with the standards set forth in that paragraph.

(3) Landing pads for helicopters.

(4) Underground parking garages located in buffer yards.

(5) Small-scale specialized incinerator accessory to hospitals, clinics, medical laboratories, facilities for scientific research, development or testing, provided that the material incinerated is generated on-site or by its operator at another site and the incinerator is located on a roof or is at least 100 feet from any property used for residential purposes.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0346-2007, § 9, eff. Oct. 13, 2007; a. Emer. Ord. No. 199-2024, § 2, eff. 7-1-2024)

§ 1417-07. Development Regulations.

Schedule 1417-07 below prescribes the development regulations for IR Institutional-Residential Districts, including maximum floor area ratio (FAR), maximum height and setbacks. Additional standards are included in Chapter 1419, Additional Development Regulations.

Schedule 1417-07: Development Regulations - Institutional-Residential Districts

Regulations	*IR*	*Additional Regulations*
Building Scale - Intensity of Use		
Maximum floor area ratio	4.0	
Building Form and Location		
Maximum building height (ft.)	200	
Minimum yards (ft.)	0	
Vehicle Accommodation - Driveways and Parking		
Parking lot landscaping	Yes	See § 1425-29
Truck docks; loading and service areas	Yes	See § 1417-09
Other Regulations		
Buffering along district	Yes	See § 1417-11
Boundaries		
Accessory uses and structures		See Chapter 1421
General site standards		See Chapter 1421
Landscaping and buffer yards		See Chapter 1423
Nonconforming uses and structures		See Chapter 1447
Parking and loading		See Chapter 1425
Signs		See Chapter 1417-15
Additional development regulations		See Chapter 1419

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 154-2008, § 2, eff. June 7, 2008)

§ 1417-09. Truck Docks; Loading and Service Areas.

Truck docks, loading and service areas are not permitted within 50 feet of a residential district boundary and are not permitted to be used between 10 PM and 7 AM on weekdays and between 11 PM and 7 AM on weekends. These facilities must be located at the side of buildings or in the rear of the site and screened so as not to be visible from public streets. (Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1417-11. Institutional Buffer Yard Plan.

The development of colleges, hospitals, schools and commercial laboratories in an Institutional-Residential District must be in accordance with an approved Institutional Buffer Yard Plan.

(a) *Purpose.* The Institutional Buffer Yard Plan is intended to foster the appropriate growth of colleges, hospitals, schools and commercial laboratories. The purpose of the buffer yard regulations is to require building setbacks and landscaping in a park-like setting to provide a transition from the scale of institutions to the scale of the surrounding residential neighborhood and to address conditions sometimes associated with intense institutional land uses.

(b) *When Required.* Buffer yards must be provided whenever a new institution facility is constructed. New facilities include any new building, addition of more than 2,500 square feet of gross floor area to an existing building, parking garage or deck or expansion thereof, or an existing building whose use is changed to a use listed in (a) above. When the entire new facility is more than 200 feet from any district boundary line, a buffer yard is not required.

(c) *Buffer Yard Plan.* On the first occasion that an institution provides a buffer yard pursuant to the requirements of this section, the institution must file a buffer yard plan with the Zoning Administrator. The plan must show all property within the IR District under control of the institution, the location of all buildings and paved areas for all parts of the institution property within 200 feet of a residential district that abuts the IR District. The plan must show the location of all buffer yards required by this section.

(d) *Buffer Yard Location.* Buffer yards must be provided at all points on the perimeter of an IR District where the IR District abuts a Residential District. Buffer yards are not required, however, at any point where the new facility is obscured by an existing building when viewed by a person standing at grade on the boundary between the IR District and the residential district or where the boundary is more than 200 feet from the new facility.

(e) *Required Buffer Yard Depth.* Buffer yards must be provided to a depth from the perimeter of the property a distance equal to one-sixth the height of the building or

addition plus 25 feet when abutting a Residential District. An institution may designate additional depth to a required buffer yard in order to satisfy the standards over the expanded area.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0346-2007, § 9, eff. Oct. 13, 2007; Emer. Ord. No. 141-2015, § 21, eff. July 1, 2015)

§ 1417-13. Institutional Buffer Yard Standards.

Buffer yards must meet the following standards:

(a) *Plant Material.* Buffer yards must contain plant materials such as trees, grass, flowers, shrubs and ground cover over at least 55 percent of the buffer yard area. The area beneath any building or parking lot that was constructed prior to the designation of the IR District in which the institution is located may be excluded in the calculation of the percentage under this paragraph.

(b) *Trees.* Buffer yards must contain at least one shade or ornamental tree of at least three-inch caliper for every 20 linear feet of buffer yard, measured along the property line, with no more than 50 feet between trees.

(c) *New Structures Prohibited.* New buildings, fences other than protective railings required by the Cincinnati Building Code, walls other than retaining walls, parking lots or loading areas may not be located in any buffer yard.

(d) *Walls.* Retaining walls must be faced with stone or maintained with plant material appropriate to a park-like setting.

(e) *Waste Collection.* Garbage, trash or recycling containers or facilities may not be located in any buffer yard. At the time of the establishment of a buffer yard, any existing garbage, trash or recycling containers or facilities must be removed. This prohibition on trash containers does not extend to trash receptacles located along walkways or in plazas intended for use by pedestrians.

(f) *Underground Parking.* Buffer yards may contain underground parking garages when approved by the Zoning Administrator as a conditional use, utility services and other accessory structures, if located entirely below grade and the surface is restored to park-like appearance with plantings.

(g) *Landscape Maintenance.* All required trees and plants must be maintained in a healthy condition and replaced if damaged or destroyed. Further, all buffer yards must be maintained in good condition and kept free of debris.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; Emer. Ord. No. 141-2015, § 22, eff. July 1, 2015)

§ 1417-15. Sign Standards for Uses in the I-R District.

Signs in the I-R must comply with the following:

(a) *Internal Signs.* The following permitted signs, not intended for view from beyond the premises of the institution, are subject to the following standards:

(1) *Ground Signs.*

(A) Maximum Area Per Sign Face: 24 square feet

(B) Maximum Number of Sign Faces: 2

(C) Maximum Number: One per building

(D) Maximum Sign Height: 6 feet

(E) Maximum Sign Width: 12 feet

(F) Minimum Sign Setback: N/A

(G) Illumination Permitted: External or internal

(2) *Wall Signs Indicating the Name of the Institution and Other Information.*

(A) Maximum Area Per Sign Face: 24 square feet

(B) Maximum Number of Sign Faces: 1

(C) Maximum Number: Two per building

(D) Maximum Sign Height: 20 feet above the average grade of the wall

(E) Maximum Sign Width: None

(F) Minimum Sign Setback: None

(G) Illumination Permitted: External or Internal. If internally illuminated, the background of the sign shall be opaque and the letters light emitting.

(3) *Marquee, Canopy, or Awning Signs.*

(A) Maximum Area Per Sign Face: 24 square feet

(B) Maximum Number of Sign Faces: 1

(C) Maximum Number: One per building

(D) Maximum Sign Height: None

(E) Maximum Sign Width: None

(F) Minimum Sign Setback: None

(G) Illumination Permitted: External or internal

(4) *Ground or Wall Signs Directing the Way to Hospital Emergency Facilities.*

(A) Maximum Area Per Sign Face: 20 square feet

(B) Maximum Number of Sign Faces: 2

(C) Maximum Number: Two per building

(D) Maximum Sign Height: None

(E) Maximum Sign Width: None

(F) Minimum Sign Setback: None

(G) Illumination: External or Internal. If internally illuminated, the background of the sign shall be opaque and the letters light emitting.

(5) *Changeable Copy Signs may be Erected as a Ground or Wall Sign only and Must Comply with the Following:*

(A) Maximum Area Per Sign Face: 24 square feet

(B) Maximum Number of Sign Faces: 2

(C) Maximum Number: 1 per building

(D) Maximum Sign Height:
Ground Sign: 6 feet
Wall Signs: 20 feet above the average grade of the wall

(E) Maximum Sign Width: None

(F) Minimum Sign Setback: None

(G) Illumination Permitted: External or internal. If internally illuminated, the background of the sign shall be opaque and the letters light emitting.

(6) *Instructional Signs may be Erected as Ground or Wall Signs Only and Must Comply with the Following:*

(A) Maximum Area Per Sign Face: 12 square feet

(B) Maximum Number of Sign Faces: 2

(C) Maximum Number: 6 per building

(D) Maximum Sign Height: 6 feet

(E) Maximum Sign Width: None

(F) Minimum Sign Setback: None

(G) Illumination Permitted: External or internal. If internally illuminated, the background of the sign shall be opaque and the letters light emitting.

(b) *External Signs.* The following permitted signs, that are intended to be seen from beyond the premises of the institution are subject to the following standards:

(1) *Ground Signs indicating the name of the institution and other information:*

(A) Maximum Area per Sign Face: 72 square feet

(B) Maximum Number of Faces: Two

(C) Maximum Number: One for every public street frontage on the perimeter of the institution.

(D) Maximum Sign Height: 16 feet

(E) Maximum Letter Height: N/A

(F) Maximum Sign Width: N/A

(G) Maximum Sign Setback: Twice the sign height

(H) Illumination Permitted: External or internal. If internally illuminated, the background of the sign must be opaque and the letters light emitting.

(2) *Wall Signs indicating the name of the institution and other information:*

(A) Maximum Area Per Sign Face: One-half square feet for each foot of wall width, not to exceed fifty square feet

(B) Maximum Number of Sign Faces: 1

(C) Maximum Number: One per building.

(D) Maximum Sign Height: 20 feet above the average grade of the wall.

(E) Maximum Sign Width: N/A

(F) Minimum Sign Setback: N/A

(G) Illumination Permitted: External or internal

(c) *Building Identification Signs.* Building identification signs that are intended to be seen from beyond the site must be erected as wall signs and meet the following standards:

(1) Maximum Display Area: 250 square feet for every sign face.

(2) Placement: Within 20 feet of the top of the wall and shall not project above the roof line. (See Chapter 1427 Sign Regulations.)

(3) Maximum Number On a Single Building: One per external wall and a maximum of four per building.

(4) Maximum Number for Each IR Campus: 4

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Emer. Ord. No. 199-2024, § 2, eff. 7-1-2024)

Chapter 1419

ADDITIONAL DEVELOPMENT REGULATIONS

§ 1419-01. Applicability.
§ 1419-03. Amateur Radio and Satellite Antennas.
§ 1419-05. Animal Service Facilities.
§ 1419-07. Automated Teller Machines.
§ 1419-09. Bed and Breakfast Homes and Inns.
§ 1419-11. Car Wash.
§ 1419-12. Community Learning Centers.
§ 1419-13. Drive-In and Drive-Through Service Facilities.
§ 1419-15. Fuel Sales.
§ 1419-16. Garden Supply Stores and Nurseries.
§ 1419-17. Home Occupations.
§ 1419-19. Intensive High-Impact Industrial Uses.
§ 1419-21. Limited or Full Service Restaurants and Drinking Establishments.
§ 1419-23. Loft Dwelling Units.
§ 1419-24. Portable Storage Containers.
§ 1419-25. Sexually Oriented Businesses.
§ 1419-27. Vehicle Repairs.
§ 1419-29. Vending Machines and Pay Telephones.
§ 1419-31. Waste Collection and Waste Transfer.
§ 1419-33. Wireless Communications Facilities.
§ 1419-35. Commercial Services for Multi-Family Developments.
§ 1419-37. Commercial Services for Multi-Family Buildings.
§ 1419-38. Composting Facilities.
§ 1419-39. Farming.
§ 1419-40. Public Vehicle Operations and Service.
§ 1419-41. Community Gardens.

§ 1419-01. Applicability.

Uses that are permitted, permitted with limitations, or require approval of a conditional use in individual zoning districts must comply with the regulations of this chapter.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1419-03. Amateur Radio and Satellite Antennas.

The intent of these regulations is only to locate such antennas and equipment where they are least visible from public rights-of-way in the vicinity, while not burdening adjacent property owners with adverse visual impacts. The intent is not to discriminate against dish antennas in favor of other communications facilities. Installation of this equipment and antennas is governed by the following:

(a) *Amateur Radio Antennas.* An amateur radio antenna may only be installed on a lot in any district if it complies with the following criteria:

(1) Location: Only allowed in the rear yard.

(2) Maximum Height: 15 feet above the district height limit, provided that additional height may be authorized with a conditional use approval.

(3) Surface Materials and Finishes: Highly reflective surfaces are not permitted.

(b) *Parabolic Antennas.* A parabolic or satellite antenna less than two feet in diameter may be installed in any district. An antenna greater than two feet in diameter may be installed if it complies with the following criteria:

(1) Setbacks. Parabolic antennas must be located in a rear yard a minimum distance from all property lines equivalent to two times the height of the antenna. The distance is determined from the base support of the antenna to the nearest point on a property line.

(2) Maximum Height: 12 feet
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1419-05. Animal Service Facilities.

Animal Service Facilities shall be established and maintained subject to the following regulations:

(a) The facility shall principally be situated within a fully enclosed structure. The structure for the animal service facility must be provided with appropriate mechanical ventilation with continual filtration of all exhaust air and sanitation mechanisms to prevent odor and unsanitary facilities for the animals.

(b) There may be no openings in the walls or roof of any portion of the structures used for an animal service facility unless such openings are stationary windows or required means of egress.

(c) Conditional Use approval required when the total interior area of any animal service facility exceeds 5,000 square feet in area or the total exterior area devoted to animals exceeds 2,500 square feet.

(d) Exterior exercise areas, yards, pens or storage areas may be conditionally approved in CC-A, CG-A, ML and MG districts.

(1) Such uses shall not be located within a required setback and shall not be less than 50 feet from a residential district.

(2) Such uses shall provide a 100% opaque six feet tall minimum barrier to screen animals from adjacent residential district. Noise reduction attributes to the barrier may also be required.

(e) The animal service facility must be constructed and operated according to any other reasonable conditions that the Zoning Administrator may apply to provide for the welfare of animals housed in the facility and to mitigate impacts on neighboring properties.

(f) Livery Facilities, Breeding Facilities, Pet Stores and Other Exotic Species Facilities and Animal Testing Laboratories shall comply with all state and local licensing and regulatory requirements.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; Emer. Ord. No. 141-2015, § 23, eff. July 1, 2015; a. Ord. No. 251-2019, § 23, eff. July 26, 2019)

§ 1419-07. Automated Teller Machines.

Automated teller machines (ATM) must be located, developed and operated in compliance with the following standards:

(a) Drive-Through Facilities. See § 1419-13, Drive-in and Drive-through facilities.

(b) User Comfort. Where ATMs are located on the exterior of a building, weather protection must be provided in the form of an awning or shallow portico.

(c) Security. ATM facilities must have adequate lighting for security purposes.

(d) Litter. ATM facilities must include at least one trash receptacle.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1419-09. Bed and Breakfast Homes and Inns.

Bed and breakfast homes and bed and breakfast inns must be located, developed and operated in compliance with the following:

(a) *Number of Rooms.* No more than three rooms for rent may be allowed in a bed and breakfast home and no more than five rooms for rent in a bed and breakfast inn.

(b) *Appearance.* In all residential districts, the exterior appearance of a structure housing a bed and breakfast home may not be altered from its residential character.

(c) *Business License Required.* A current business license must be obtained and posted in compliance with Chapter 855, Rooming Houses, of the Municipal Code.

(d) *Limitation on Services Provided.* Meals and rental of bedrooms are limited to registered guests. Separate or additional kitchens for guests are prohibited.

(e) *Parking.* One parking space for every guest room, in addition to the requirements for the dwelling itself, as prescribed in Chapter 1425, Parking and Loading.

(f) *Signs.* The requirements of Chapter 1427, Signs, apply.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1419-11. Car Wash.

Car washes must be located, developed and operated in compliance with the following:

(a) *Location.* Permitted on arterial streets only.

(b) *Setbacks.* No building or structure may be located within 20 feet of any street lot line.

(c) *Queue Area.* Each facility must provide sufficient queue area in advance of the car wash area to accommodate two vehicles in advance of a self-service bay and six vehicles in advance of an automatic service bay.

(d) *Litter.* One permanent trash receptacle per wash bay is required.

(e) *Noise.* Sound baffles to absorb noise must be installed at all facilities creating noise levels above 70 decibels at the property line.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1419-12. Community Learning Centers.

A public or private school may operate as a community learning center provided that it is be located, developed, and operated in compliance with the following:

(a) School Use Required. A community learning center may be comprised of one or more principal uses and accessory uses provided that the uses are integrated with a public or private school use.

(b) Additional Uses Permitted. The following principal and accessory uses may comprise a community learning center:

i. Any use permitted in the underlying zoning district.

ii. Any use determined by the Zoning Administrator to be customary and incidental to a community learning center.

iii. If not permitted in the underlying zoning district, the following conditional uses upon receiving approval by the Zoning Hearing Examiner:

Government facilities and offices; offices; medical services and clinics; personal instructional services; day care centers; community service facilities; cultural institutions; park and recreation facilities; recreational facilities, indoor or small size; and community gardens.

(c) Contiguous Campus. The uses comprising a community learning center may be housed in one or more structures located on:

i. the same lot as the required public or private school use; or

ii. one or more lots that are adjacent to lot on which the required public or private school use is located, including adjacent lots separated only by a street.

(d) No Independent Uses. No use comprising a community learning center may operate independently of the required public or private school use. No principal or accessory

use established in connection with a community learning center shall be deemed a legal nonconforming use permitted to operate if the required public or private school use is abandoned.

(e) Additional Development Regulations. Each use comprising a community learning center must comply with all other development regulations applicable to the use.

(Ordained by Ord. No. 127-2018, § 4, eff. July 6, 2018)

§ 1419-13. Drive-In and Drive-Through Service Facilities.

Drive-in and drive-through service facilities must be located, developed and operated in compliance with the following:

(a) *Queue Area.* Each facility must provide sufficient queue area of at least 20 feet per vehicle in advance of the service point to accommodate at least three vehicles per service point or at least six vehicles per establishment, whichever is greater. The queue area may not interfere with other on-site circulation and parking facilities.

(b) *Litter.* At least one permanent trash receptacle must be installed.

(c) *Menu Boards.* Menu boards must be located at least 50 feet from any residential district boundary. Speaker noise levels may not be audible on any abutting residential property.

(d) *Pedestrian Walkways.* Pedestrian walkways must have clear visibility and be emphasized by enhanced paving or markings when they intersect the drive-in or drive-through aisles.

(e) *Screening.* All service areas, trash storage areas and ground- or roof-mounted mechanical equipment must be screened from ground-level view and from adjacent properties or public rights-of-way, as prescribed in § 1421-35, Refuse Storage Areas.

Figure 1419-13 Drive-In and Drive-Through Example

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1419-15. Fuel Sales.

Fuel sales must be located, developed and operated in compliance with the following:

(a) *Fuel Dispensing Units.* Fuel dispensing units must be located at least 15 feet from any property line.

(b) *Canopy.* A canopy covering the fuel dispensing area must be located at least five feet from all property lines.

(c) *Lighting.* All exterior light sources, including canopy, perimeter and flood, must be stationary and shielded or recessed within the roof canopy to ensure that all light is directed away from adjacent properties and public rights-of-way. Lighting may not be of a high intensity so as to cause a traffic hazard or adversely affect adjacent properties. All lighting must comply with the requirements of § 1421-39, Exterior Lighting.

(d) *Litter.* At least one permanent trash receptacle must be installed at each pump island.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

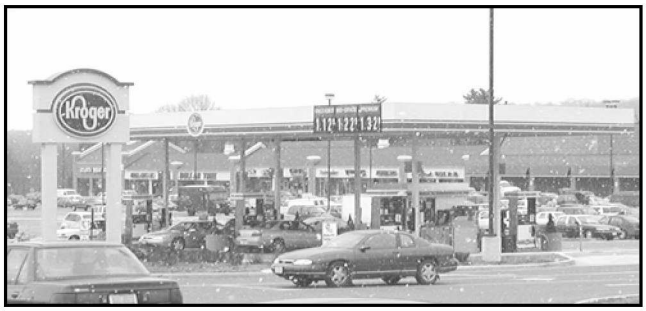

Figure 1419-15 Fuel Sales Example

§ 1419-16. Garden supply stores and nurseries.

Garden Supply Stores and Nurseries are permitted in identified zoning districts subject to the following regulations:

(a) In the MA district, conditional use approval required when the Garden Supply Store is greater than 5,000 square feet.

(b) Outdoor Storage must be screened with a privacy screen six feet in height.
(Ordained by Ord. No. 251-2019, § 24, eff. July 26, 2019)

§ 1419-17. Home Occupations.

Home occupations are permitted in residential districts, subject to the following regulations:

(a) *Purpose.* The purpose of home occupation regulations is to permit residents an opportunity to use their homes as a place of livelihood. While permitting such uses in homes, it is important to protect adjacent residential areas from any adverse impacts caused by activities associated with the home occupation. The limitations in this

section are designed to assure compatibility between the home occupation and neighboring properties, while retaining the residential character of the building in which the home occupation is conducted.

(b) *Permitted Home Occupation Uses.* Home occupations may not include retail sales and are limited to personal services that can be performed on the premises in oral, written, fine-arts, manual-crafts, home-crafts or graphic-arts forms as well as limited business and professional office activities or other occupations determined by the Zoning Administrator.

(c) *Conditions and Limitations.* All permitted home occupations are subject to all of the following conditions and limitations:

(1) The home occupation including accessory storage is conducted entirely within the dwelling unit or within an accessory building.

(2) The gross floor area exclusively devoted to the home occupation including accessory storage may not exceed twenty-five percent of the habitable gross floor area of the dwelling unit or 500 square feet, whichever is less.

(3) Only those persons residing on the premises may be employed, commissioned or engaged in the home occupation.

(4) Merchandise, supplies or stock in trade may not be sold or displayed on the premises.

(5) The exterior appearance of the building may not be altered for the purpose of accommodating the home occupation in a manner that is inconsistent with the residential character of the building.

(6) Materials used in the home occupation may not be stored outside of the principal building or accessory building.

(7) Goods and materials that serve to identify the home occupation may not be displayed so as to be visible from outside the building.

(8) A home occupation may not produce noise, odors, vibrations, glare, fumes or electrical interference above those levels normally expected in a residential neighborhood.

(9) Hazardous or toxic materials may not be used or stored on-site in quantities that could have a potentially significant environmental impact on the property or on the surrounding community. A hazardous or toxic material is one which is subject to the reporting provisions of Section 313 of Subtitle B of the Environmental Planning and Community Right-to-Know Act of 1986, 42 U.S.C. Section 11023.

(10) The home occupation may not generate vehicular or pedestrian traffic in greater volume than that normally expected in the residential district in which the home occupation is located.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0346-2007, § 10, eff. Oct. 13, 2007; Emer. Ord. No. 141-2015, § 24, eff. July 1, 2015)

§ 1419-19. Intensive High-Impact Industrial Uses.

Any intensive high-impact industrial use required to obtain a permit from the Ohio Environmental Protection Agency (OEPA) or any local agency operating under the delegated authority of the OEPA must obtain the permit prior to obtaining zoning approval.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1419-21. Limited or Full Service Restaurants and Drinking Establishments.

Outdoor areas of limited or full service restaurants and drinking establishments must be located, developed and operated in compliance with the following:

(a) *Residential District Boundary Line.* For the purposes of this section the term residential district boundary line shall mean the district boundary line of the SF-20, SF-10, SF-6, SF-4, SF-2, RMX, RM-2.0, RM-1.2, and RM-0.7 districts.

(b) *Location.* Outdoor areas on any public sidewalk or alley requires a revocable street privilege. Any outdoor area located within 100 feet of a residential district boundary line may not exceed fifty percent of the indoor area accessible to the public. Additional outdoor area requires conditional use approval pursuant to the procedures and criteria of Chapter 1445, Variances, Special Exceptions and Conditional Uses.

(c) *Barriers.* Decorative walls or fencing must enclose an outdoor area.

(d) *Entertainment.* Within 500 feet of a residential district boundary line, entertainment, including the use of audio/visual equipment or amplified sound is prohibited unless conditional use approval is obtained pursuant to the procedures and criteria of Chapter 1445, Variances, Special Exceptions and Conditional Uses.

(e) *Fixtures.* Furniture and fixtures provided for use in an outdoor area may consist only of movable tables, chairs, umbrellas, planters, lights and heaters. Lighting fixtures may be permanently affixed onto the exterior of the building. All movable furniture and fixtures must be removed during the off-season.

(f) *Hours of Operation.* Within 100 feet of a residential district boundary line the use of outdoor areas is prohibited between Midnight and 7 AM on Friday and Saturday and 10 PM and 7 AM on all other days, unless conditional use approval is obtained pursuant to the procedures and criteria of Chapter 1445, Variances, Special Exceptions and Conditional Uses. In all other locations, the use of outdoor areas shall be prohibited after 2 AM.

(g) *Breweries and Wineries.* Beer and wine production accessory to a limited or full service restaurant is limited to an area that may not exceed 10,000 sq. ft and may not produce any objectionable odor, dust or fumes.

(h) *Required Buffer Yards.* Where any side or rear yard of the permitted use abuts a residential district boundary line, a 10 foot buffer area ensuring visual and sonic separation shall be provided pursuant to Chapter 1423-03, Landscaping Plan.

(i) *Parking Requirements for Outdoor Areas.* Off-street parking spaces must be made permanently available to the use served. For parking requirements for outdoor areas of eating and drinking establishments see § 1425-19-A: Off-street Parking and Loading Requirements.

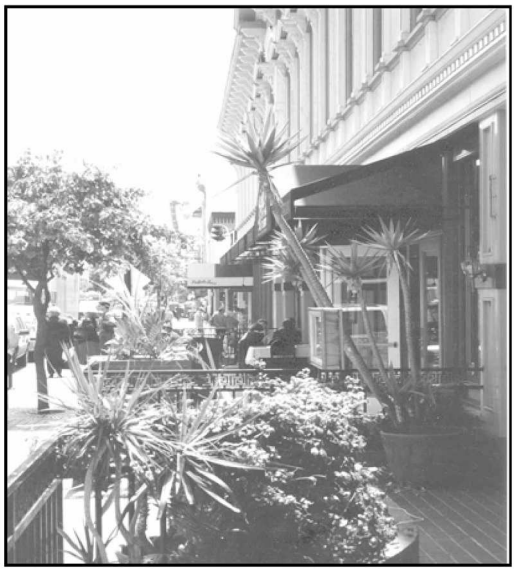

Figure 1419-19(h) Outdoor Eating Area Example

(j) Outdoor areas within Outdoor Refreshment Areas established pursuant to Chapter 838 are permitted with the following conditions:

(1) The hours of operation of the outdoor area may not exceed the hours of operation of the Outdoor Refreshment Area in which it is located unless conditional use approval is obtained pursuant to the procedures and criteria of Chapter 1445, Variances, Special Exceptions and Conditional Uses; and

(2) Section 1419-21(a)—(c) and (e)—(h) do not apply to Outdoor Refreshment Areas. (Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; Ord. No. 284-2006, § 1, eff. Nov. 4, 2006; a. Ord. No. 0055-2008, § 1, eff. March 13, 2008; a. Emer. Ord. No. 199-2024, § 2, eff. 7-1-2024)

§ 1419-23. Loft Dwelling Units.

In commercial and manufacturing districts the owner of the loft dwelling unit has the duty to provide a statement of disclosure to all buyers and tenants acknowledging the commercial and manufacturing character of the district and acceptance of the potential for uses in the area to result in certain off-site impacts at higher levels than would be expected in residential areas. Occupancy of these units is at the risk of the owner/occupant. Loft dwelling units must be located, developed and operated in compliance with the following:

(a) A loft dwelling unit established on the first floor requires conditional use approval pursuant to the procedures and criteria of Chapter 1445, Variances, Special Exceptions and Conditional Uses.

(b) One loft dwelling unit may be permitted for each 1,000 square feet of interior floor area excluding the first floor or basement. No unit may be less than 500 square feet in floor area.

(c) A loft dwelling unit may contain a studio, gallery, office, business or other use as permitted by the applicable zoning district regulations.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 95-2006, § 1, eff. May 18, 2006)

§ 1419-24. Portable Storage Containers.

(a) *Location.* Portable storage containers must be located on a paved surface and be setback a minimum of ten feet from the front lot line.

(b) *Maximum Size.* The maximum size for a portable storage container is 8 feet by 16 feet with a maximum height of 8 feet 6 inches.

(c) *Time Limitation.* Portable storage containers are permitted for a total of 30 days within a calendar year.

(d) *Number Permitted.* Two portable storage containers may be placed on a lot at the same time.

(Ordained by Ord. No. 414-2008, § 22, eff. Jan. 4, 2009)

§ 1419-25. Sexually Oriented Businesses.

Sexually oriented businesses must be located, developed and operated in compliance with the following:

(a) *License*. These establishments are licensed by the city in compliance with the provisions of Chapter 899, Sexually Oriented Businesses and Employees, of the Municipal Code.

(b) *Location.*

(1) The minimum distance from a residential district boundary is 1,000 feet.

(2) The minimum distance from every other licensed sexually oriented businesses is 1,000 feet.

(3) The minimum distance from schools, public or private; religious assembly; public library; parks and recreation facilities; hotel; motel; child day care center; or any place licensed for the sale of beer or intoxicating liquor for consumption on the premises is 1,000 feet.

(c) *Approval*. The Zoning Administrator must only consider the proximity standards specified in (b) above in determining whether to approve a sexually oriented business. The determination must be made without a public hearing being held and must be made within ten days of the receipt of a complete application for a Certificate of Compliance. No person, other than an applicant who has been denied a Certificate of Compliance, may appeal a decision of the Zoning Administrator on an application for a Certification of Compliance for a sexually oriented business to the Zoning Board of Appeals. Any appeal to the Zoning Board of Appeals must be heard and determined within 30 days of the filing of the notice of appeal. Further appeal is to a court of

competent jurisdiction as provided by law. Unless the solicitor obtains an injunctive order restraining the opening and operation of a sexually oriented business, an applicant may open and operate a sexually oriented business 30 days after the filing of a notice of appeal to a court of competent jurisdiction pending final resolution of the appeal.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; Emer. Ord. No. 141-2015, § 25, eff. July 1, 2015)

§ 1419-27. Vehicle Repairs.

Vehicle repairs must be located, developed and operated in compliance with the following:

(a) *Location.* The repair area must be located within an enclosed structure.

(b) *Hazardous Materials.* All automotive fluids must be recycled or removed according to local, state and federal standards.

(c) *Outdoor Storage.* Any space for the storage of vehicles awaiting repair must be screened on all sides and completely enclosed within an eight-foot screen fence which is protected by a guardrail or other barriers approved by the Zoning Administrator. Electrical, barbed and razor wire fences are an accessory conditional use pursuant to § 1421-33. Vehicles may not be stored on the lot for more than 60 days.

(d) *Indoor Storage.* Used or discarded automotive parts or equipment or permanently disabled or junked vehicles must be stored inside a building.

(e) *Building Openings.* There may not be any openings in side walls, rear walls or roofs within 50 feet of a residential district, unless the openings are stationary windows or required fire exits.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; Emer. Ord. No. 141-2015, § 26, eff. July 1, 2015)

§ 1419-29. Vending Machines and Pay Telephones.

(a) *Location of Vending Machines and Pay Telephones in Residential Districts.* Vending machines or pay telephones may not be located outside any building or accessory building used for residential purposes in a Residential District.

(b) *Location of Vending Machines in O, C, UM, DD, M, RF and IR Districts.* Vending machines may not be located:

(1) Within any required landscaping or bufferyard.

(2) So as to obstruct or interfere with pedestrian travel.

(3) Within five feet from a crosswalk, display window, building entrance, fire hydrant or other emergency facility.

(4) With more than three machines at any location.

(5) Closer than 100 feet to another group of vending machines.

(c) *Appearance:* Vending machines must be maintained in good operating condition and be free from rust and adornments such as graffiti, stickers and posters.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0221-2007, § 4, eff. July 6, 2007)

§ 1419-31. Waste Collection and Waste Transfer.

All storage, separation and processing activities for waste collection and waste transfer uses must comply with the following:

(a) *Location, Waste Collection.* Waste collection uses must be at least 100 feet from a residential district.

(b) *Location, Waste Transfer.* Waste transfer uses must be at least 250 feet from a residential district.

(c) *Enclosures or Screening.* All waste collection and waste transfer uses must be conducted within an enclosed building or enclosed by a screen fence. The enclosures must be located outside any required front yard, street side yard, required parking or landscape areas or any other area required by the Cincinnati Zoning Code to be maintained unencumbered according to any other applicable public safety laws.

(d) *Hours of Operation.* The site must be staffed during all hours of operation and a sign be posted indicating the hours of operation and warning of the penalties for illegal dumping.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1419-33. Wireless Communications Facilities.

Wireless communication towers and antennas greater than 20 feet in height must conform to the following:

(a) *Conditional Use Approval Required.* Approval of a conditional use is required, pursuant to Chapter 1445, Variances, Special Exceptions and Conditional Uses. In determining whether approval of an application for a wireless communication tower or antenna greater than 20 feet in height as a conditional use is in the public interest, the Zoning Hearing Examiner has the duty to evaluate whether technically suitable space is available on commercially reasonable terms on an existing tower or structure within the geographic area to be served. To enable this determination, the applicant is required to submit with the permit application a list of the location of every tower, building or structure that could support the proposed antenna so as to allow it to serve its intended function. The applicant must demonstrate that a technically suitable location is not available on commercially reasonable terms on an existing tower, building or structure. If another communication tower is technically suitable, the applicant must show that it has offered to allow the owner to co-locate an antenna on another tower within the city owned by the applicant on reciprocal terms and the offer was not accepted or that other tower is presumed to be reasonably available. Consideration of these factors is in addition to the standards enumerated in Chapter 1445, Variances, Special Exceptions and Conditional Uses, and in this section. The failure of an applicant to offer to other wireless communication service providers on

reciprocal term rights to install wireless communication antennas on wireless communication towers within the city controlled by the applicant is cause to deny approval of an application for a wireless communication tower as a conditional use.

(b) *Wireless Communication Network Plan Required.* Any person licensed by the Federal Communications Commission to provide wireless communication services within the City of Cincinnati who has installed or intends to install a wireless communication antenna within the city is required to file its wireless communication network plan with the Director of Buildings and Inspections. A provider must file an amended plan with the director any time there is a change in company name, ownership, location of facilities or operations. The director must send a copy of each amended plan to every person who has filed a plan and to every community organization affected by the amendments to the plan.

(c) *Minimum Site Area.* Monopole towers in an SF or RF-R district must be located on a site larger than three acres.

(d) *Required Setbacks.* Poles, towers, equipment structures and antennas placement must meet the minimum yard standards for all setbacks as set forth in the applicable district regulations of the Cincinnati Zoning Code. Further, a wireless communication tower should be at least 110 percent of its height distant from any existing residential structure in any residential district.

(e) *Design Compatibility.* Apart from the tower or monopole structure, the facility appurtenances must be aesthetically and architecturally compatible with the architecture of the surrounding environment.

(f) *Screening Required.* Screen fencing must be provided for aesthetic and public safety reasons and a fence at least six feet in height must be erected completely around any communication tower and any related support facilities. Barbed and razor wire fencing is prohibited in residential districts.

(g) *Landscaping.* A Type B planted buffer yard is required along residential district boundaries and adjacent to residential uses, as prescribed in Schedule 1423-13-B. Buffer yards must meet the standards of Chapter 1423, Landscaping and Buffer Yards. Buffer yard planting may be located in a required setback area.

(h) *Obsolete Facility.* The owner or operator must agree to remove an obsolete facility within 12 months of ceasing its active use for wireless communications.

(i) *Outdoor Storage.* Outdoor storage of any supplies, vehicles or equipment related to the use of the facility is prohibited in a residential district.

(j) *Lighting.* An antenna or a tower may not be illuminated and lighting fixtures or signs may not be attached to the antenna or tower, except as required by law or to protect the safety of the general public.

(k) *Certification.* The applicant must provide written certification from a registered engineer that the antenna and tower are to be constructed in compliance with all applicable federal, state and local regulations pertaining to the construction.

(l) *Tower Height.* A tower must be a monopole unless the tower is more than 200 feet high.

(m) *Limitations on Authority to Deny.*

(i) The Zoning Hearing Examiner may not deny an application for a wireless communication antenna as a conditional use if the denial would unreasonably discriminate among providers of functionally equivalent services or prohibit or have the effect of prohibiting the provision of personal wireless services.

(ii) The Zoning Hearing Examiner may not deny an application for a wireless communication antenna as a conditional use on the basis of the environmental effects of radio frequency emissions to the extent that such facilities comply with the Federal Communication Commission's regulations concerning such emissions.

(iii) The Zoning Hearing Examiner may not deny an application for a conditional use for the collocation of new transmission equipment, the removal of transmission equipment, or the replacement of transmission equipment on an existing wireless communications tower, antenna or any base station that does not substantially change the physical dimensions of such communications tower, antenna, or base station.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Emer. Ord. No. 169-2012, § 1, eff. May 23, 2012)

§ 1419-35. Commercial Services for Multi-Family Developments.

Eating and drinking establishments, commissaries, residential concierge services, self-service laundries and automated teller machines are permitted as accessory uses to multi-family developments with 200 or more dwelling units in two or more buildings, provided that:

(a) *Floor Area.* The total floor area of such uses is not more than 5,000 square feet;

(b) *Location. T* he building or buildings containing such uses and the associated parking and loading areas may be no less than 300 feet from the property line of any abutting property.

(c) *Displays and Signs.* The display of goods or services outside of the building in which such uses are located is prohibited and advertising pertaining to such uses may not be visible from the exterior of the building, except for one non-illuminated or indirectly-illuminated identification sign erected as a ground or wall sign not exceeding eight square feet.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1419-37. Commercial Services for Multi-Family Buildings.

Eating and drinking establishments, commissaries, residential concierge services, self-service laundries, automated teller machines and barber and beauty shops are permitted as accessory uses to multi-family developments in a single building with 100 or more dwelling units, provided that:

(a) *Floor Area.* The accessory uses may not exceed in the aggregate, five percent of the total floor area of the building.

(b) *Commissaries.* Commissaries may not exceed a maximum floor area of 500 square feet for the first 100 dwelling units and an additional five square feet for each dwelling unit over 100 up to a maximum floor area of 750 square feet.

(c) *Interior Access.* Access to the accessory uses is from the interior of the building.

(d) *Loading.* The loading and unloading of trucks and service vehicles is conducted inside a building or, if outside a building, any loading or unloading of trucks and any area used or designed to be used primarily by trucks and service vehicles may be no less than 50 feet from the nearest lot line located in or abutting an SF, RMX or RM-2.0 District.

(e) *Displays and Signs.* The display of goods or services outside of the building is prohibited and advertising pertaining to such uses may not be visible from the exterior of the building, except that:

(1) One identification sign as a non-illuminated or indirect illuminated wall sign is permitted not exceeding eight square feet in area, but there may only be one such wall sign, irrespective of the number of accessory uses in the building.

(2) One non-illuminated or indirectly illuminated identification sign erected as a ground sign is permitted for each street frontage. Each sign face may not exceed 12 square feet.

§ 1419-38. Composting facilities.

Composting activities using more than 500 square feet of land for the entire composting activity constitutes a "Composting Facility." Composting activities under 500 square feet of land constitute Accessory Composting and requirements are stipulated in Chapter 1422. Composting Facilities are subject to the following restrictions:

(a) *Licensure*. Composting Facilities are regulated by the Ohio Environmental Protection Agency Division of Materials and Waste Management (DMWM). No Composting Facility may be established or operated without an approved license pursuant to applicable Ohio law.

(b) *Location within Zoning Districts*. Composting Facilities, when constituting between 500 and 1,000 square feet of area may be approved within any zoning district provided they meet the requirements of this section and are granted a license per §1419-38(a). Composting Facilities greater than 1,000 square feet of area shall be considered a Waste Transfer Facility as defined in §1401-01-W1 and may be located only where such uses are permitted.

(c) *Enclosure and Screening*. The entire area containing the Composting Facility shall be enclosed in a minimum of six-foot tall screen fence or structure. Additional height and screening measures, including landscaping and mounding, may be required proportionate to the height and nature of the Composting Facility.

(d) *Enclosure Location Upon Property*. The entire area containing the composting activity shall be at least 100 feet from any abutting property used for residential purposes,

unless granted approval of a lesser setback by the Ohio EPA. When proposed within a 100-year floodplain, the facility shall demonstrate best management practices for flooding.

(Ordained by Ord. No. 251-2019, § 25, eff. July 26, 2019)

§ 1419-39. Farming.

Farming is permitted in the Manufacturing Agricultural District subject to the following regulations:

1. A minimum of 20,000 feet of contiguous land under the same ownership with no more than one single-family dwelling on the property is required in order to use the property for farming purposes.
2. Buildings or structures for livestock must be setback a minimum 50 feet from each property line.
3. Buildings or structures for storage and greenhouses must be setback a minimum of 20 feet from each property line.

(Ordained by Ord. No. 0060-2008, § 12, eff. March 13, 2008)

§ 1419-40. Public Vehicle Operations and Service.

Public vehicle operations and service must be located, developed and operated in compliance with the following:

(a) "Public vehicle" shall have the same meaning as in Title VIII, Section 850-1-P3 of the Cincinnati Municipal Code, or its successor provision.

(b) *Off-Street Parking*. Off-street parking shall be provided for all public vehicles and employee vehicles as set forth in Schedule 1425-19-A: Off-Street Parking and Loading Requirements and shall be allowed only in designated off-street spaces. Vehicles must be operational and licensed or registered in accordance with all applicable laws and regulations. Any storage or repairs must be indoors.

(c) *Operations.* Operations shall be limited to the fleet owned or leased by the operator of the facility. Dispatching shall be made by radio or other telecommunications: loud speakers shall be prohibited.

(d) *Vehicle Repairs.* All servicing shall be performed only on licensed public vehicles in accordance with Section 1419-27 (a), (b), (d) and (e) Vehicle Repairs.

(e) *Screening.* All outdoor parking must comply with Chapter 1425: Parking and Loading Regulations.

(Ordained by Ord. No. 173-2008, § 1, eff. June 29, 2008; Ord. No. 176-2025, § 2, eff. June 11, 2025)

§ 1419-41. Community Gardens.

Community Gardens must comply with the following regulations:

(a) *On-site sales.* On-site sales of community garden products are prohibited.

(b) *Displays and Signs.* Signs are limited to one non-illuminated identification sign erected as a ground or wall sign not exceeding four square feet in total area and a height of six feet from the ground.

(c) *Fencing.*

(1) The maximum height of a perimeter fence or wall or any combination thereof located along any front lot line, corner side lot line or corner rear lot line must not exceed four feet in residential districts and six feet in all other districts and must not exceed an opacity of 50 percent. Along any interior side or rear lot line, the maximum height may not exceed six feet and may be 100 percent opaque.

(2) Electrical, barbed and razor wire fences are prohibited.

(d) *Hours of Operation.* Use of community gardens is prohibited between the hours of 10:00 p.m. to 7:00 a.m.

(e) *Outdoor Storage.*

(1) Tools and supplies shall be stored indoors or removed from the property daily.

(2) Bulk supplies and water tanks must be stored at the center or rear of the site in a neat and orderly fashion and must not create visual blight or offensive odors.

(3) Pesticides and fertilizers must only be stored on the property in a locked storage structure and must comply with any other applicable requirements for hazardous materials.

(f) *Maintenance of Site.*

(1) The property owner of the site on which a community garden is located is responsible for all maintenance requirements.

(2) The site must be designed and maintained to prevent any chemical, pesticide, fertilizer, or other garden waste from draining onto adjacent property.

(3) Cultivated areas must be prevented from encroaching onto adjacent properties.

(4) The property must be maintained free of high grass, weeds or other debris.

(5) Dead plant growth must be composted or removed from the site not later than December 1st of each year.

(g) *Equipment.* Use of commercial or industrial farm equipment is prohibited.

(h) *Refuse Storage.*

(1) Refuse storage must be located:

i. A minimum distance of three feet from rear and side lot lines; and

ii. A maximum distance of 25 feet from the rear lot line; and

iii. A minimum distance of 10 feet from the front lot line.

(2) In the case of corner lots refuse storage must be located:

i. A minimum distance of three feet from the rear and interior side lot lines; and

ii. A maximum distance of 25 feet from the rear lot line; and

iii. A minimum distance of 10 feet from the street side lot line and front lot line.

(3) All refuse storage areas must be screened from ground-level view and from adjacent properties or public rights-of-way.

(i) *Composting.*

(1) Composting must be only of materials generated on-site.

(2) A maximum area of 200 square feet may be used for composting.

(3) Compost material must be enclosed in a screen fence or structure.

(4) Compost enclosures must be located:

i. A minimum distance of three feet from rear and side lot lines; and

ii. A maximum distance of 25 feet from the rear lot line; and

iii. A minimum distance of 10 feet from the front lot line.

(5) In the case of corner lots compost enclosures must be located:

i. A minimum distance of three feet from the rear and interior side lot lines; and

ii. A maximum distance of 25 feet from the rear lot line; and

iii. A minimum distance of 10 feet from the street side lot line and front lot line.

(6) Compost enclosures must be located to prevent runoff of water that has come in contact with the compost from flowing onto adjacent property, into natural or human-made storm channels or the public right-of-way.

(7) Compost enclosures must be maintained in a manner that protects adjacent properties from adverse environmental, health and safety impacts such as noise, odors and attraction of rodents or other pests.

(j) *Structures.*

(1) Structures, except for fences, must be located:

i. A minimum distance of three feet from rear and side lot lines; and

ii. A maximum distance of 25 feet from the rear lot line; and

iii. A minimum distance of 10 feet from the front lot line.

(2) In the case of corner lots, structures, except for fences, must be located:

i. A minimum distance of three feet from the rear and interior side lot lines; and

ii. A maximum distance of 25 feet from the rear lot line; and

iii. A minimum distance of 10 feet from the street side lot line and front lot line.

(3) Maximum size: 800 square feet for all structures other than fences and walls.

(4) Maximum number of Structures: Two.

(5) Maximum Height: 15 feet.

(Ordained by Ord. No. 036-2010, § 1, eff. March 18, 2010)

Chapter 1421

GENERAL SITE STANDARDS

§ 1421-01. Accessory Residential Structures.
§ 1421-03. Accessory Nonresidential Structures.
§ 1421-05. Accessory Structures on Corner Lots.
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§ 1421-31. Use of Land Restricted.
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§ 1421-41. Off-Site Development Rights.
§ 1421-43. Rooming Unit Requirements.
§ 1421-45. Transit Stops.
§ 1421-47. Density, Height, and Parking Modifications for Projects Utilizing Certain Financial Programs

§ 1421-01. Accessory Residential Structures.

Structures ancillary to a principal structure are considered accessory structures. This section establishes regulations for residential accessory structures that are not accessory dwelling units. All accessory structures must be located, developed and operated in compliance with the following:

(a) *Location.* Accessory structures are not permitted in a front yard or a side yard except for fences and walls, flagpoles, lamp posts, arbors, trellis, birdbaths, decorative fountains, or other similar structures as determined appropriate by the Zoning Administrator.

(b) *Minimum Distance from Principal Structure:* One foot. Accessory structures, other than fences and walls, within one foot of the principal structure are considered part of the principal structure.

(c) *Maximum Size:* 800 square feet for all structures other than fences and walls.

(d) *Maximum Number of Accessory Buildings:* Two, subject to the provisions set forth in § 1421-06(e).

(e) *Maximum Height:* 15 feet.

(f) *Setbacks.* A minimum three-foot rear yard setback and three-foot side yard setback is required. Agricultural structures and animal keeping shelter structures shall conform to the provisions set forth in Chapter 1422.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 246-2005, eff. July 21, 2005; a. Ord. No. 0056-2008, § 1, eff. March 13, 2008; Emer. Ord. No. 141-2015, § 27, eff. July 1, 2015; a. Ord. No. 251-2019, § 26, eff. July 26, 2019; a. Ord. No. 266-2023, § 3, eff. Oct. 2, 2023)

§ 1421-03. Accessory Nonresidential Structures.

Structures ancillary to a principal structure are considered accessory structures. This Section establishes regulations for nonresidential accessory structures. All accessory structures must be located, developed, and operated in compliance with the following:

(a) *Location.* Accessory structures, other than fences and walls, are not permitted in a front yard or a side yard.

(b) *Minimum Distance from Principal Structure:* One foot. Accessory structures, other than fences and walls, within one foot of the principal structure are considered part of the principal structure.

(c) *Building Height and Bulk.* Accessory structures are subject to the standards of the district within which the principal structure is located unless an exception to height limits is provided by § 1421-19.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1421-05. Accessory Structures on Corner Lots.

This section establishes setback regulations for accessory structures located on a corner lot in a residential district. A setback from the side street line of the corner lot must be maintained as follows:

(a) *Within 25 feet of the Side lot Line.* When the accessory building is erected within 25 feet of the side lot line of a lot adjacent to the corner lot that is located on the side street, the setback must be equal to the established front yard for such adjacent lot, but need not exceed 40 feet.

(b) *More Than 25 feet of the Side lot Line.* When the accessory building is erected more than 25 feet from the side lot line of such adjacent lot, the setback must be one-half the front yard required for a principal building on the corner lot.

(c) *Narrow Corner Lots.* When the corner lot is narrow and the regulations of (a) and (b) of this section would cause an accessory building of impracticable shape and size, the accessory building may be erected within 25 feet of the interior side lot line and must be set back not less than five feet from the side street lot line.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1421-06. Accessory Dwelling Units.

This section establishes regulations for accessory dwelling units. All accessory dwelling units must be located, developed, and operated in compliance with the following provisions:

(a) *General.* Where permitted, an accessory dwelling unit may be established within the building envelope of a single-family dwelling, as an addition to a single-family dwelling, or as a detached structure on the same lot as a single-family dwelling, provided that no more than one accessory dwelling unit may be established on a single lot.

(b) *Entrance*. Each accessory dwelling unit must provide a separate exterior entrance independent of the entrance to the single-family dwelling to which it is subordinate and incidental.

(c) *Lot Size*. Any lot on which an accessory dwelling unit is established must meet the minimum-lot-size requirements for single-family dwellings prescribed by the applicable zoning district or § 1421-09, whichever requirement is less restrictive.

(d) *Lot Coverage*. The footprint of a detached accessory dwelling unit located on a lot of 4,000 square feet or larger shall not occupy more than 15% of the total lot area or 800 square feet, whichever is greater. If a lot is less than 4,000 square feet, the combined footprint of the primary single-family dwelling and an accessory dwelling unit shall not exceed 60% of the total lot area or 800 square feet, whichever is greater.

Exception: The alteration of a legally existing accessory structure (e.g., a garage) is permitted even though it may exceed the lot coverage restrictions above provided that the alteration of the structure does not expand its existing footprint.

(e) *Maximum Number of Accessory Buildings*: No more than two accessory buildings of any type, inclusive of a detached accessory dwelling unit, are permitted on a single lot.

(f) *Setbacks.*

(1) The establishment of an accessory dwelling unit within the building envelope of a legally existing single-family dwelling or through the alteration of a legally existing accessory structure is not subject to setback restrictions provided that the establishment of the accessory dwelling unit does not expand the existing structure's footprint.

(2) Detached accessory dwelling units are subject to the side and rear-yard setback requirements for accessory residential structures in the applicable zoning district.

Exception: The alteration of a legally existing accessory structure for the purpose of establishing an accessory dwelling unit is not subject to setback restrictions provided that the establishment of the accessory dwelling unit does not expand the existing structure's footprint.

(3) An accessory dwelling unit established as an addition to a legally existing single-family dwelling must comply with all setback requirements for single-family dwellings in the applicable zoning district.

(4) Detached accessory dwelling units are not permitted in front yards.

(g) *Maximum Size:* The square footage of an accessory dwelling unit may not exceed the square footage (excluding unfinished spaces) of the principal single-family dwelling to which it is subordinate and incidental.

(h) *Maximum Height.*

(1) Detached accessory dwelling units shall not exceed 25 feet in height.

Exception: The alteration of a legally existing accessory structure for the purpose of establishing an accessory dwelling unit shall not exceed 25 feet in height or the existing height of the accessory structure, whichever is greater.

(2) An addition to a principal single-family dwelling that will contain an accessory dwelling unit must comply with all height requirements for single-family dwellings in the applicable zoning district.

(i) *Detached Accessory Dwelling Units:* Detached accessory dwelling units must be of permanent construction and must contain permanent utility hookups. Mobile tiny homes and recreational vehicles are not permitted as accessory dwelling units.

(j) *Parking.* Accessory dwelling units are exempt from the off-street parking requirements set forth in § 1425-19.

(k) *Short-Term Rentals.* An accessory dwelling unit may be operated as a short-term rental in accordance with the provisions of Chapter 856, Short Term Rentals.

(l) *Occupancy by Owner or a Responsible Person.*

(1) The owner of each lot on which an accessory dwelling unit is established must (i) maintain a residence in the principal single-family dwelling or the accessory dwelling unit on the lot for so long as the accessory dwelling unit exists; or (ii) designate a responsible person who maintains a residence in the principal single-family dwelling or the accessory dwelling on the lot for so long as the accessory dwelling unit exists.

(2) To ensure ongoing compliance with subsection (1), the owner of each lot on which an accessory dwelling unit is established and maintained shall:

(i) record a covenant, in a form acceptable to the City Solicitor and irrevocable without the prior written consent of the Zoning Administrator, that provides the property owner or a responsible person shall maintain a residence on the property for so long as the accessory dwelling unit exists;

(ii) register the accessory dwelling unit with the Zoning Administrator and verify compliance with subsection (1) upon the establishment of the accessory dwelling unit;

(iii) renew the registration and verification no later than December 31 of every year ending in an odd number following the initial year of registration; and

(iv) update each registration and verification upon a change in ownership of the property or the designated responsible person.

(3) Any person who fails to maintain compliance with subsection (1) shall be liable for a Class F civil offense.

(4) For the purposes of this section 1421-06(l), the following terms shall have the following meanings:

(i) "Residence" means a dwelling unit that is the true, fixed, and permanent home where an individual intends to remain permanently and indefinitely; to which, whenever absent, the individual intends to return; and that only one of which may exist for one person within the city limits of the City of Cincinnati at any time.

(ii) "Responsible Person" means a natural person designated by the owner of a lot on which an accessory dwelling unit is established as having the independent duty, responsibility (including financial responsibility), and authority to operate, maintain, and manage the lot and all the dwelling units thereon.

(Ordained by Ord. No. 266-2023, § 4, eff. Oct. 2, 2023)

§ 1421-07. Building Projections Into Yards.

The standards for building projections into setback areas are prescribed in Schedule 1421-07 below.

Schedule 1421-07: Maximum Projections Allowed Into Yards (Feet)

Physical Element	*Front Yard*	*Side Yard*	*Rear Yard*
Cornices, sills, belt courses, eaves, and other ornamental features	2.5	2.5	2.5
Fire escapes	4.5	4.5	4.5
Uncovered stairways and necessary landings not extending above building entrance floor	4.5	4.5	4.5

Physical Element	*Front Yard*	*Side Yard*	*Rear Yard*
Projecting bays, fireplaces and chimneys that are cumulatively less than ⅓ the length of the building wall	3.0	3.0	3.0
Uncovered decks not more than three feet above the floor level of the ground story	2.5	2.5	2.5
Porte-cocheres and canopies	2.5	2.5	2.5
Balconies into yards of less than 20 feet in SF or RM Districts in aggregate less than ⅓ the length of the building wall	3	3	3
Balconies into yards of more than 20 feet in SF or RM districts in aggregate less than ⅓ the length of the building wall	6	6	6
In all other districts other than residential, balconies no closer to any lot line than 20 feet or ⅓ of the required yard space at the top story, whichever is less	8	8	8
Air conditioners, compressors and similar noise emitting devices	—	Anywhere	Anywhere[1]
Power generating equipment	—	—	Anywhere[1]
Access ramps, excluding handrails, not extending above the floor level of the ground story	Anywhere	Anywhere	Anywhere[1]

[1]Except within required buffer yard.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 287-23, § 1, eff. August 2, 2023; a. Emer. Ord. No. 199-2024, § 2, eff. 7-1-2024)

§ 1421-09. Lot Area for Lots of Record.

In any SF or RM District a single-family dwelling may be erected on a lot less than the minimum lot area specified for the district provided that:

(a) The lot has been of record as defined in § 1401-01-L15; and

(b) The structure complies with all yard and height regulations of the district or as may be modified by § 1421-19 through § 1421-25; and

(c) The area of the lot is no less than:

(1) SF-20 District: 16,000 square feet

(2) SF-10 District: 8,000 square feet

(3) SF-6 District: 4,800 square feet

(4) SF-4 District: 3,200 square feet

(5) SF-2 District: 1,600 square feet

(6) RMX District, Single Family: 2,000 square feet

(7) All RM Districts: Minimum lot area is equal to the lot area per dwelling unit requirement of the district.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 392-2008, eff. Dec. 19, 2008)

§ 1421-11. Lot Area Reductions Due to Public Acquisition.

If a portion of a legally existing lot in any district is acquired for public use, the remaining lot area, setbacks and density are considered in compliance.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1421-13. Lot Area of Panhandle Lots.

Panhandle lots shall be sufficiently large to contain the minimum square-foot area of the applicable zoning district, exclusive of the panhandle or access strip, which panhandle or access strip shall not contribute to the minimum lot area calculation.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0050-2019, §§ 5, 6, eff. 2-6-2019)

§ 1421-15. Reduced Lot Area Per Dwelling Unit for Structured Parking.

Where part or all of the parking spaces required for a multi-family dwelling are provided within the principal building or within a parking structure attached to the principal building, the minimum lot area per dwelling unit specified for the district may be reduced by a maximum of 20 percent, using the following formula:

A/B times 20 percent, where

A equals the number of parking spaces provided within the principal building or attached parking structure, and

B equals the number of parking spaces required for the multi-family dwelling.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1421-17. Increased Floor Area Ratio for Structured Parking.

In the OL, OG, UM and IR Districts where part or all of the parking spaces required for OL, OG, UM and IR uses are provided within the principal building or within a parking structure attached to the principal building, the maximum floor area ratio specified for the OL, OG, UM and IR Districts may be increased by a maximum of 20 percent using the following formula:

A/B times 20 percent, where

A equals the number of parking spaces provided within the principal building or attached parking structure, and

B equals the number of parking spaces required for the OL, OG, UM or IR uses.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0221-2007, § 5, eff. July 6, 2007)

§ 1421-19. Exceptions to Height Limits.

Height limits do not apply to farm buildings and structures, railings with transparency of fifty percent or greater, flush-mounted solar panels, and access elevators and stair towers

with a total footprint of 200 square feet or less, spires, belfries, cupolas, domes, false mansards, monuments, water towers, fire and hose towers, transmission towers, windmills, chimneys, smoke stacks, flag poles, radio and television towers, masts, aerials, parabolic satellite receivers, microwave transmitters and receivers used in connection with radio and television broadcasting, unless subject to specific regulations by other provisions of the Cincinnati Zoning Code.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Emer. Ord. No. 199-2024, § 2, eff. 7-1-2024)

§ 1421-21. Front Yard Modifications.

The front yard requirements for principal buildings in residential and Office Limited (OL) districts, excluding panhandle lots, must be modified subject to the following:

(a) *Required Front Yard.* Front yard setback requirements for principal buildings on lots in residential and the Office Limited (OL) districts, excluding panhandle lots, must be modified subject to the following:

(1) Development must equal the average of the setback of three lots or 300 feet in both directions, whichever is greater, on the same side of the street and in the same block face and in the same zoning district.

(2) If only one structure exists within three lots or 300 feet in both directions, whichever is greater, on the same side of the street and in the same block face and the same zoning district, then the front yard setback shall be the average of the setback on the existing structure and the setback required by the zoning district.

(3) If no structures exist within three lots or 300 feet in both directions, whichever is greater, on the same side of the street and in the same block face and the same zoning district then the setback shall be as required by the zoning district.

(b) *Double Frontage Lots.* Where a lot extends through the block from street to street, the required front yard must be provided along each street.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0253-2007, § 1, eff. June 19, 2007; a. Ord. No. 039-2010, § 1, eff. March 18, 2010)

§ 1421-23. Side Yard Modifications.

The side yard requirements specified for principal buildings are subject to the following:

(a) *Side Yard of a Corner Lot.* A corner side yard along the side street of a corner lot in a residential district, which adjoins in the rear, either directly or across an alley, the side lot line of another lot in a residential district must provide a width of no less than one-half the required front yard for the principal building on the corner lot.

(b) *Irregular Side Yards.* Where the side lot line is irregular or where the side lot line is not parallel to the building line, the average side yard width must conform to the side yard requirements, provided the point of least width is no less than five feet wide or the point of least width is no less than one-half the side yard requirement, whichever is greater.

(c) *Increased Side Yards.* In addition to the side yard requirements set forth for the SF, RM and O Districts and after adjusted by other provisions of this section, the required side yard is increased by one foot for each ten feet or fraction thereof by which the depth of the building exceeds 60 feet.

(d) *Side Yards of Sub-minimum Lots.* On lots of record, as defined in § 1401-03-L7, that do not comply with the minimum lot widths specified in the SF and RM Districts, the side yard requirements may be reduced from the district regulations by one and one-half inches for every foot such lot is less than the minimum lot width. The sum of the least widths of both side yards may be reduced by three inches for every foot such lot is less than the minimum lot width. In no case may a side yard be reduced to less than three feet.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 138-2008, § 1, eff. May 23, 2008)

§ 1421-25. Rear Yard Modifications.

The rear yard requirements specified for principal buildings may be modified subject to the following:

(a) *Irregular Rear Yard.* In the case of an irregularly or triangularly shaped lot, the average depth of the rear yard may be used to determine whether the rear yard requirements are satisfied. In no case may any rear yard so averaged be less than ten feet or one-half the required minimum rear yard depth at any point, whichever is greater.

(b) *Required Rear Yard.* Principal buildings must have a rear yard that:

(1) If abutted on both sides by improved lots whose rear yards do not conform to the district regulations, equals the average depth of those abutting rear yards; or

(2) If abutted on one side by an unimproved lot or a side street of a corner lot and on the other side by an improved lot whose rear yard does not conform to the district regulations, equals the average of the depth of the rear yard of the improved lot and the rear yard setback requirement of the district.

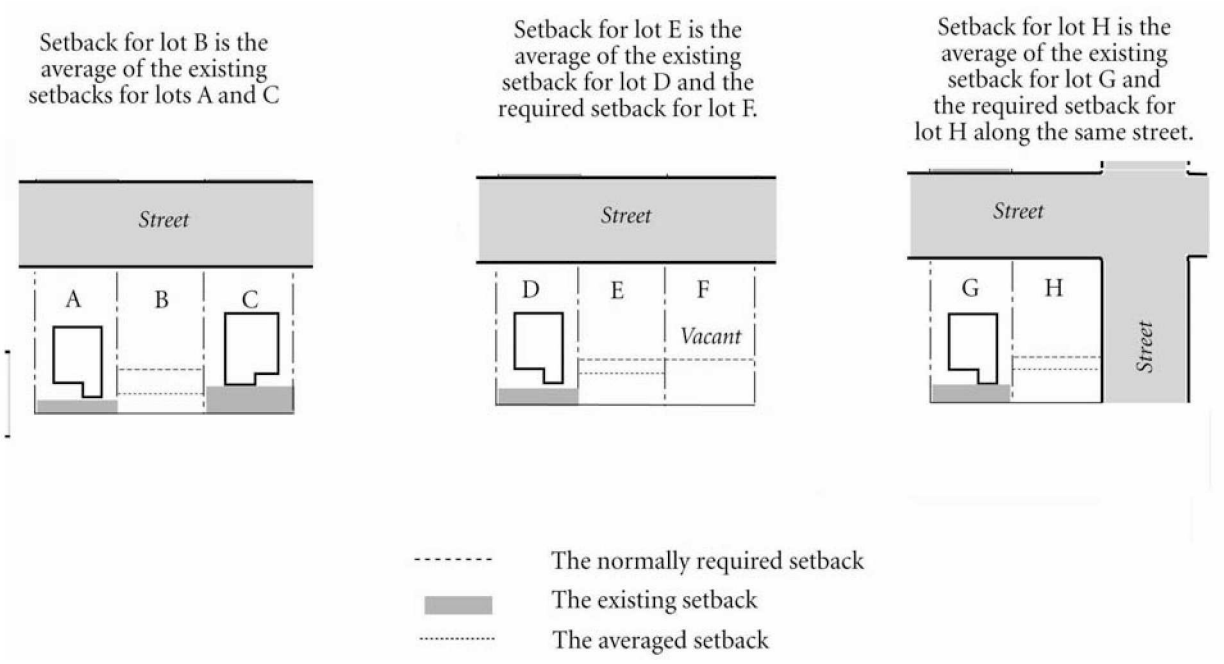


Figure 1421-25 Rear Yard Averaging

(c) *Rear Yards Adjacent to Alleys.* In computing the dimension of a required rear yard adjoining a public alley, one-half of such alley may be assumed to be a portion of the yard, except that in no case may any building or accessory structure other than fences and walls be erected closer than five feet to any such alley.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1421-27. Repealed.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0346-2007, § 11, eff. Oct. 13, 2007; a. Ord. No. 295-2009, § 1, eff. Dec. 12, 2009; r. Ord. No. 359-2010, § 1, eff. Nov. 13, 2010)

§ 1421-29. Reduction of Area.

A lot may not be reduced in area by conveyance of a portion thereof to make the lot area or setbacks of the lot less than the minimum requirements prescribed, provided that such requirements may not be construed to prevent the sale of an individual unit of a multiple-dwelling building.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1421-31. Use of Land Restricted.

Land used to meet the setback, parking, density or other open space requirements of the Cincinnati Zoning Code for a building or group of buildings may not be used to meet the setback, parking, density or other open space requirements for any other building or group of buildings.

Provided, however, where the land used to meet the requirements of the Cincinnati Zoning Code for a building or group of buildings consists of more than one recorded parcel of land, or a part of a parcel of land, the owner must execute on behalf of himself, his successors or assigns in the ownership of the land, or part thereof, a written instrument in a form acceptable to the City Solicitor covenanting that the requirements of this section will be met prior to the issuance of a building permit for the construction of a building on such land. See § 1441-07.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1421-33. Fences and Walls.

All fences and walls are accessory structures and must comply with the provisions of this section, any other applicable provisions of the Cincinnati Zoning Code, and any applicable provisions of the Municipal Code.

(a) *General.* Fences and walls are permitted in all zoning districts and may be required for specific uses, as provided in Chapter 1419, Additional Development Regulations, or as buffering between certain uses, as provided in Chapter 1423, Landscaping and Buffer Yards.

(b) *Maximum Height.* In any front, corner side yard or corner rear yard the maximum height of any fence or wall or any combination thereof may not exceed four feet in Residential Districts and six feet in all other districts and may not exceed an opacity of 50 percent. (EXCEPTION: Fences and walls used as parking lot screening per § 1425-27). In any interior side or rear yard, the maximum height may not exceed six feet and may be 100 percent opaque.

(c) *Entry Gateway.* An entry gateway, trellis or other entry structure may be permitted in the required front yard provided the maximum height and width do not exceed ten feet.

(d) *Driveway Visibility.* All fences are subject to the driveway visibility requirements of § 1425-35.

(e) *Electrical Fences and Razor Wire.* Electrical, barbed and razor wire fences are an accessory conditional use in C, M and RF Districts, and prohibited in all other districts.

(f) *Decks and Railings.* Within the limits of a rear yard in a residential district, decks and railings for above ground swimming pools may be up to eight feet above grade and located at least three feet from all property lines.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 248-2005, eff. July 21, 2005; a. Ord. No. 0060-2008, § 9, eff. March 13, 2008; a. Ord. No. 139-2008, § 1, eff. May 23, 2008; a. Ord. No. 329-2011, § 1, eff. Nov. 26, 2011)

§ 1421-35. Refuse Storage Areas.

The purpose of these regulations is to ensure the provision of adequate, accessible and convenient locations for the collection and storage of recyclable materials and refuse within containers and enclosures that are compatible with surrounding land uses and structures.

Refuse and recycling containers required for all residential and non-residential developments by Chapter 729, Waste Disposal, of the Municipal Code must comply with the following:

(a) *Access.* Driveways and aisles must be unobstructed.

(b) *Enclosure.* All refuse collections and recycling containers must be enclosed or screened so as not to be visible from the right-of-way or other publicly accessible areas. The structure must be enclosed on all sides, one of which includes a gate or door that can be secured.

(c) *Location.* The enclosures may not be located in any required front yard, street side yard, required parking or landscape areas or any other area required by law to be maintained.

(d) *Enclosure Materials.* The enclosure may consist of screen fencing of chain link with slats, solid wood, vinyl fencing or masonry walls.

(e) *Height.* A minimum of one foot taller than the container and no taller than eight feet.

(f) *Landscaping.* The exterior perimeter of the enclosure must be landscaped excluding the access point.

(g) *Maintenance.* Enclosures must be maintained in a manner that protects adjacent properties as well as tenants located on the subject property from adverse environmental, health and safety impacts such as noise, odors and attraction of rodents or other pests. The receptacle must be covered by either a roof on the enclosure or covered receptacles.

(h) *Hours of Operation.* The use of refuse storage areas is prohibited between 11 PM and 7 AM on weekends and between 10 PM and 7 AM on weekdays if located within 50 feet of residential district boundaries.

Figure 1421-35 Examples of Refuse Storage Areas—Note: They are Missing the Required Landscaping

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1421-37. Repealed.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; ; r. Ord. No. 251-2019, § 26, eff. July 26, 2019)

§ 1421-39. Exterior Lighting.

All exterior light sources on private property, including canopy, perimeter, and flood, must be energy-efficient, stationary and shielded or recessed within the roof canopy to ensure that all light is directed away from adjacent properties and public rights-of-way. The maximum height may not exceed 20 feet above grade.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1421-41. Off-Site Development Rights.

Rights to develop dwelling units or gross floor area may be transferred from other lots under common ownership. The conditions applicable to the density calculations are as follows:

(a) The area included for computing the number of dwelling units or gross floor area permissible on a building site lot may include a separate lot or lots under the same ownership, provided that:

(1) The lot from which the development rights are being transferred does not have any structures.

(2) The lot from which the development rights are being transferred abuts the same street or alley on which the building site lot is located.

(3) The maximum distance between the building site lot and the nearest point on the lot from which the development rights are being transferred is 60 feet, and the maximum distance between the building site lot and farthest point on the lot from which the development rights are being transferred is 250 feet.

(b) When one or more lots are to be included in the computation of dwelling units to be erected on a lot as in Paragraph (a) above, the owner must prepare and record a covenant in a form acceptable to the City Solicitor that the land may not be occupied by any structure for dwelling purposes and may not be used to meet the density requirements of the Cincinnati Zoning Code for any other building or group of buildings. See § 1441-07.

(c) The lot from which the development rights are being transferred may be used for parking and recreation facilities as permitted by other provisions of the Cincinnati Zoning Code.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0346-2007, § 11, eff. Oct. 13, 2007)

§ 1421-43. Rooming Unit Requirements.

A rooming unit within a rooming house is subject to the following:

(a) A rooming unit may be occupied by only one person if the unit is less than 100 square feet in floor area and by no more than two persons if larger than 100 square feet in floor area.

(b) For purposes of calculating the permitted rooming unit density, each rooming unit is equal to one-half the lot area per dwelling unit requirement of the district in which the rooming house is located.

§ 1421-45. Transit Stops.

Transit stop structures approved by the Department of Transportation and Engineering are permitted in all zoning districts and are exempt from accessory structure regulations set forth in § 1421-01, § 1421-03, and § 1421-05.
(Ordained by Emer. Ord. No. 199-2024, § 1, eff. 7-1-2024)

§ 1421-47. Density, Height, and Parking Modifications for Projects Utilizing Certain Financial Programs

(a) Minimum lot-area-per-dwelling-unit requirements and minimum off-street parking requirements shall not apply to the establishment of new dwelling units in a newly constructed or renovated building, and a newly constructed or renovated building may have a maximum height twelve feet greater than otherwise permitted by the zoning code, provided the building is constructed or renovated pursuant to Low-Income Housing Tax Credit programs.

(b) To be eligible for density, height, and parking modifications, the owner of the building that is to be constructed or renovated, or its successor-in-interest, as applicable, must establish and maintain compliance with the affordability restrictions pursuant to Low-Income Housing Tax Credit programs for the building on the property for so long as those restrictions remain in effect.

(c) Any person who fails to maintain compliance with subsection (b) shall be liable for a Class F civil offense for each dwelling unit that is not in compliance, as applicable, in a given year.
(Ordained by Emer. Ord. No. 199-2024, § 1, eff. 7-1-2024)

Chapter 1422

URBAN AGRICULTURE: HORTICULTURE AND ANIMAL KEEPING

§ 1422-01. Purpose.
§ 1422-03. Land Use Regulations.
§ 1422-05. Development Regulations.
§ 1422-07. Maintenance and Storage.
§ 1422-09. Sales in Residential Districts.
§ 1422-11. General Hours of Operation.
§ 1422-13. Invasive Species.
§ 1422-15. Food Preparation and Slaughtering Uses.
§ 1422-17. Additional Horticulture and Animal Keeping Commercial Activities.

§ 1422-01. Purpose.

The purpose of this chapter is to permit the productive growing of plants and the raising of animals in a manner that is appropriate to the surrounding neighborhood land uses, thereby enhancing healthy food access for residents of Cincinnati by making it easier to grow food and develop food production businesses.
(Ordained by Ord. No. 251-2019, § 1, eff. July 26, 2019)

§ 1422-03. Land Use Regulations.

(a) *Garden.* Gardens may be grown in all zoning districts, subject to the limitations of this chapter. Gardens must consist of less than 20,000 square feet of cultivated land. Use of large-scale commercial agricultural equipment such as tractors, tillers, or other machinery equal to or exceeding the size of an economy automobile is prohibited.

(b) *Farm.* A farm consists of 20,000 square feet or more of cultivated land. Use of large-scale commercial agricultural equipment is permitted, however such equipment must be completely enclosed in an Agricultural Structure when not in use. Farms located in residential districts require Conditional Use approval pursuant to Chapter 1445.

(c) *Agricultural Structures.* Where a parcel contains no dwelling or other Principal Structure, any proposed Agricultural Structures other than fences shall be deemed accessory to a required operational Garden, Farm and/or Animal Keeping Use as a Principal Use and shall be used solely for agricultural purposes and practices. All Agricultural Structures shall require at a minimum a Zoning Certificate of Compliance and any required building permits. Permanently constructed Agricultural Structures, located on a parcel containing no dwelling or principal structure, shall require a recorded deed restriction, approved as to form by the City Solicitor, that limits it to use as an Agricultural Structure. Release of the deed restriction by the Department of Buildings and Inspections shall constitute abandonment of the Principal and Accessory uses per Chapter 1447 and may require removal of any permanent structures prior to release.

(d) *Animal Keeping.* Where permitted, animal keeping is subject to the density restrictions and sheltering limitations established in this Chapter.

(e) *Conditional Use*. If the principal use of the property is a conditional use in the zoning district in which the property is located, any expansion of the conditional use, including a Horticulture and Animal Keeping Use and its Agricultural Structures, requires conditional use approval from the Zoning Hearing Examiner per Chapter 1445.

(f) *Landscaping and Buffer Yard Regulations.* New development, redevelopment, and changes of land use may require landscaping or the creation of a buffer yard in compliance with Chapter 1423.

(g) *Standards for Producing Agricultural Products Intended for Human or Animal Consumption in Manufacturing and Related Districts.* The production of agricultural products intended for human or animal consumption or the raising of agricultural animals in the ME, MG, ML, UM and RF-M zoning districts is permitted subject to the following limitations:

(1) The agricultural activity is conducted in an appropriate indoor location in compliance with all related regulations; or

(2) Where such agricultural activity is conducted outdoors, the owner of the subject property shall obtain a Zoning Certificate of Compliance from the Zoning Administrator based upon demonstration of either:

(i) Due diligence via soil testing by a licensed professional indicating that the soil shows no contamination with chemicals, metals, or other compounds at a level not exceeding that allowed by federal, state, and local standards for residential areas; or

(ii) Plans showing that such agricultural activity will take place only on rooftops, in raised beds, or in other containers sufficient to prevent any potential contamination.

(Ordained by Ord. No. 251-2019, § 1, eff. July 26, 2019)

§ 1422-05. Development Regulations.

(a) *Agricultural Structures and Uses*. Agricultural Structures must be located, developed and operated in compliance with the following:

(1) *Permanent Agricultural Structures*. Permanent Agricultural Structures exceeding 200 square feet require a building permit.

(2) *Animal Keeping Structures.* Agricultural Structures, including fences and walls, used for animal keeping must comply with both the requirements established below and per Schedule 1422-05.

(3) *Agricultural Structures in Non-Residential Districts.* In non-residential zoning districts, Agricultural Structures not used for Animal Keeping are subject to the principal and accessory structure standards of the zoning district.

(4) *Agricultural Structures in Residential Districts.* In residential zoning districts, Agricultural Structures not used for Animal Keeping are subject to the standards of §1421-01, "Accessory Residential Structures," and §1421-05, "Accessory Structures on Corner Lots."

(5) *Agricultural Structures on Lots Containing No Principal Structure or Dwelling in Residential Districts*.

(i) *Required Rear Yard Location.* In residential districts, where a parcel contains no dwelling or principal structure, Agricultural Structures must be located to the rear of the line determined by rear yard averaging of the adjoining parcels principal structures.

(6) *Temporary Agricultural Structures.* Temporary structures, particularly greenhouse and membrane structures, shall be regulated as identified below.

(i) Temporary Agricultural Structures less than four (4) ft. in height, and of minimum structural character; the maximum area requirement is no greater than the minimum yard setback requirements.

(ii) Temporary Agricultural Structures greater than four (4) ft. in height, shall be regulated as follows:

(A) Structures shall comply with Chapter 3103 of the Ohio Basic Building Code and are limited to 400 sq. ft. in area with 12 ft. spacing between structures.

(B) Structures meeting any of the following requirements, shall submit for appropriate building permits: Structures greater than 400 sq. ft. in area; Structures proposed to remain for greater 180 days.

(7) *Fences and Walls.* Fences and walls must comply with §1421-33.

(b) *Animal Keeping*. The provisions set forth herein and in Schedule 1422-05 below prescribe the development regulations governing minimum area size, containment, and setback and maintenance requirements for animal keeping.

(1) *Maximum Number of Categories/Species of Animals*.

(i) Keeping more than two categories/species of animals requires a cumulative minimum land area based on the requirements for each category/species as set forth in Schedule 1422-05. This provision does not apply to dogs, cats, common indoor household pets, and bees.

(ii) Exceeding the maximum number of categories/species of animals requires Conditional Use approval.

(2) *Animal Keeping Shelter Structure Requirements*. Animal Keeping Shelter Structures shall:

(i) Provide adequate protection from the elements and predators;

(ii) Provide thorough ventilation;

(iii) Be designed to be readily accessed and cleaned; and,

(iv) Provide access for fowl, rabbits, and other small animals to an outdoor enclosure adequately bounded to prevent escape or access by predators.

(3) *Animal Keeping Enclosures*. Animal keeping enclosures should be of sufficient height and durability to contain the species of animal.

Schedule 1422-05: Animal Keeping Requirements

Animal Category/ Species	*Adult Animals Permitted Per Lot Area*	*Containment Required*	*Shelter Structure Requirements*	*Location and Minimum Setbacks for Shelter Structures, Feeders, and Water Stations*
Bees	Minimum 2,500 square feet per apiary.	Yes, with a 6-foot flyway screen (fence or hedge) within three feet of any hive entry is required, unless the apiary is more than 150 feet from all property lines.	A maximum two Apiaries of 30 cubic feet per 10,000 square feet.	Apiaries may be located on the ground or on rooftops. Apiaries shall be setback a minimum of 10 feet from any property line and 25 feet from the nearest inhabited structure when a flyway screen is provided. Apiaries located on rooftops shall be setback a minimum of six feet from the edge of roof. Bee warning or notice signs shall be placed at property lines per Ohio Dept. of Agriculture rules and regulations.

Animal Category / Species	*Adult Animals Permitted Per Lot Area*	*Containment Required*	*Shelter Structure Requirements*	*Location and Minimum Setbacks for Shelter Structures, Feeders, and Water Stations*
Chickens, Ducks, Quail, Doves, and other Smaller Birds	6 permitted for lots less than 10,000 square feet. 12 permitted for 10,000 to 20,000 square foot lots. A maximum of 24 permitted for lots exceeding 20,000 square feet. 1 rooster permitted per every 15 hens.	Yes, if animals are permitted to range outside of a structure. More than 1 rooster requires tethering. Roosters must be kept a minimum of 50 feet from all property lines.	A minimum of 4 square feet per adult.	A setback of 10 feet from all property lines.
Rabbits	6 permitted for lots less than 10,000 square feet. 12 permitted for 10,000 to 20,000 square foot lots. A maximum of 24 permitted for lots exceeding 20,000 square feet.	Yes, if animals are permitted to range outside of a structure.	A minimum of 4 square feet per adult.	A setback of 10 feet from all property lines.
Geese, Turkeys, and other Medium-Sized Birds	4 permitted for lots less than 10,000 square feet. 8 permitted for 10,000 to 20,000 square foot lots. A maximum of 16 permitted for lots exceeding 20,000 square feet.	Yes, if animals are permitted to range outside of a structure.	A minimum of 6 square feet per adult.	A setback of 10 feet from all property lines.
Dehorned Goats and Sheep	2 permitted for lots less than 10,000 square feet. 4 permitted for 10,000 to 20,000 square foot lots, A maximum of 8 permitted for lots exceeding 20,000 square feet.	Yes, with a minimum of a 5-foot setback from property lines. No temporary or permanent structures are permitted within 10 feet of a fence that would enable an animal to climb or jump over a fence.	A minimum of 20 square feet per adult.	A setback of 50 feet from all property lines.
Swine	A minimum of 20,000 square feet per adult; a maximum of 2.	Yes, with a setback of 20 feet from property lines.	A minimum of 30 square feet per adult.	A setback of 50 feet from all property lines.
Horses and Cattle and like-size animals	A minimum of 20,000 square feet per adult; a maximum of 2.	Yes, with a setback of 5 feet from property lines.	A minimum of 100 square feet per adult.	A setback of 50 feet from all property lines.
Alpacas and Llamas	A minimum of 20,000 square feet per adult; a maximum of 2.	Yes, with a setback of 5 feet from property lines.	A minimum 100 square feet per adult.	A setback of 50 feet from all property lines.
Ostriches, Emus, and other Large Birds	A minimum of 20,000 square feet per adult; a maximum of 2.	Yes, with a setback of 5 feet from property lines.	A minimum of 20 square feet per adult.	A setback of 50 feet from all property lines.

(Ordained by Ord. No. 251-2019, § 1, eff. July 26, 2019; a. Emer. Ord. No. 418-2021, §§ 6, 39, eff. Nov. 10, 2021)

§ 1422-07. Maintenance and Storage.

(a) *Site Maintenance*.

(1) The owner of the property on which a Garden, Farm or Animal Keeping Facility is located is responsible for all maintenance requirements.

(2) The site shall be designed and maintained to prevent any chemical, pesticide, fertilizer, or other waste from draining onto adjacent property.

(3) Cultivated areas shall not encroach onto adjacent properties.

(4) The site must be maintained free of high grass, weeds, or other debris.

(5) Dead plant growth must be sufficiently trimmed to no higher than six inches above the ground, composted, or removed from the site not later than December 1st of each year.

(6) The property must be kept free of refuse.

(b) *Maintenance and Care of Animal Keeping Facility*

(1) In general, all Animal Keeping facilities shall provide a constant supply of water and food for all animals, store food in a rodent and predator proof containers, be maintained to be free from odor, prevent the breeding of flies, pests or vermin, properly dispose of animal waste, and prevent animal waste discharge into the stormwater conveyance system.

(2) All areas and structures utilized for the raising of animals shall comply with the standards prescribed by the Cincinnati Board of Health Regulations, as well as other applicable local and state law.

(c) *Equipment and Material Storage.*

(1) Use of large-scale agricultural equipment such as tractors, tillers, or other machinery equal to or exceeding the size of an economy automobile is prohibited on property not qualifying as a Farm as defined in § 1401-01-F3. Such equipment must be completely enclosed in an Agricultural or Principal Structure when not in use.

(2) Tools and supplies shall be stored indoors or removed from the property daily. Pesticides and fertilizers stored on the property shall be contained in a locked storage structure and must comply with any other applicable requirements for hazardous materials.

(3) Bulk supplies and water tanks must be stored to the rear of the lot must not create visual blight or offensive odors.

(4) Refuse storage is prohibited in any required front yard, street side yard, or required parking or landscape area. Refuse storage must comply with §1421-35.

(d) *Accessory Composting*.

(1) *Area.* Composting activities using less than 500 square feet of land and considered accessory to a residential or agricultural use are defined as "Accessory Composting."

(2) *Setbacks and Location.*

(i) Maximum distance of 30 feet from the rear lot line; and

(ii) Minimum 10 feet from side and rear lot lines; and

(iii) Minimum 10 feet from all Principal Structures; and

(iv) Minimum 5 feet from any Accessory Structures; and

(v) Minimum 20 feet from any natural watercourse or wetland.

(vi) Minimum 50 feet from any private water supply system.

(3) *Management.* Compost may only consist of plant derived materials. Management of Accessory Composting shall comply with all applicable Cincinnati Board of Health regulations.

(4) *Enclosure.* Accessory Composting shall be contained and managed per best practices within an appropriate enclosure, container or structure.

(e) *Vehicular Storage, Parking and Egress*.

(1) In residential districts, one commercial vehicle completely enclosed in a garage may be parked or stored on the lot subject to the limitations found in §1403-05-L6 and §1405-05-L11.

(2) On lots that do not contain a dwelling, commercial vehicles and trailers may be temporarily parked on the lot beyond the front yard for a period not to exceed 24 hours per week.

(3) Vehicles parked onsite shall comply with parking requirements of Chapter 1425. Additional onsite parking may be required per §1425-19 when commercial sales or employees are proposed as part of the agricultural use.

(Ordained by Ord. No. 251-2019, § 1, eff. July 26, 2019; a. Emer. Ord. No. 418-2021, §§ 7, 39, eff. Nov. 10, 2021)

§ 1422-09. Sales in Residential Districts.

(a) *On-site sales.* On-site sales of Horticulture products or, if permitted, Products resulting from Animal Keeping, within residential zoning districts require submission of a management or business plan and site plan and application for a zoning Certificate of Compliance.

(b) *On-site production.* Sales in residential zoning districts are exclusively limited to items produced on the property upon which sales are conducted in compliance with Board of Health, Department of Agriculture and all other state and local law.

(c) *Duration.* Sales are limited to 30 days per year.

(d) *Hours.* Sales shall be limited to between 7:00 am and 7:00 pm.

(e) *Sales Structures Prohibited.* Farm stands or similar sales-related structures are prohibited in residential zoning districts.

(Ordained by Ord. No. 251-2019, § 1, eff. July 26, 2019)

§ 1422-11. General Hours of Operation.

Use of automated agricultural equipment or lighting for any Horticulture or Animal Keeping facility is prohibited between the hours of 10:00 p.m. to 7:00 a.m.

(Ordained by Ord. No. 251-2019, § 1, eff. July 26, 2019)

§ 1422-13. Invasive Species.

Introduction or sales of invasive species is prohibited pursuant to applicable Ohio law.
(Ordained by Ord. No. 251-2019, § 1, eff. July 26, 2019)

§ 1422-15. Food Preparation and Slaughtering Uses.

(a) *Food Preparation*. Food preparation shall be permitted within appropriate zoning districts as set forth in the Zoning Code.

(b) *Slaughtering*. Slaughtering is a use within the zoning use group Intensive High Impact Production Industry, Intensive High Impact and shall only be permitted within appropriate zoning districts and as further regulated within § 1419-19.
(Ordained by Ord. No. 251-2019, § 1, eff. July 26, 2019)

§ 1422-17. Additional Horticulture and Animal Keeping Commercial Activities.

Regulations for primarily commercial Horticulture and Animal Keeping facilities are subject to the provisions set forth in Chapter 1419, "Additional Development Regulations."
(Ordained by Ord. No. 251-2019, § 1, eff. July 26, 2019)

Chapter 1423

LANDSCAPING AND BUFFER YARDS

§ 1423-01. Purpose.
§ 1423-03. Landscaping Plan.
§ 1423-05. Landscaping Maintenance.
§ 1423-07. Delayed Landscaping Installations.
§ 1423-09. Buffer Yards.
§ 1423-11. Applicability of Buffer Yard Standards.
§ 1423-13. Required Buffer Yards.

§ 1423-01. Purpose.

The purposes of the landscaping and buffer yard regulations are to:

(a) Promote attractive development and preserve the appearance and character of the surrounding area through the use of landscaping.

(b) Eliminate or minimize conflicts between potentially incompatible, but otherwise permitted land uses on adjoining lots through buffering, which may include a combination of setbacks and visual buffers or barriers.

(c) Prescribe standards for the development and maintenance of planting, fences and walls.

(d) Provide provisions that apply to all development where specific landscaping is required under the Cincinnati Zoning Code.

Figure 1423-01 Example of Buffering Between Commercial and Residential Uses

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1423-03. Landscaping Plan.

When landscaping is required, a landscaping plan must be submitted in conjunction with other application materials, as provided in Chapter 1441: Application Procedures, Fees, Permits and Certificates.

(a) *Components of Plan.* A landscaping plan must include a site plan, drawn to scale with a north arrow that is equal to standard architectural or engineering quality and indicates the following:

(1) The species and size of all existing trees greater than one and one-half inch caliper, showing those that are proposed for removal and those proposed for retention.

(2) All proposed plant materials clearly labeled and drawn to size at maturity.

(3) Adjacent land uses.

(4) Plant list, indicating common names, scientific names and varieties, quantities, planting sizes and types and plant spacing for hedges and screens for all plant materials proposed.

(5) Description of the proposed method of protecting existing trees during construction.

(6) Irrigation system, if any.

(b) *Required Materials.* All plant materials must be suitable for Cincinnati's soils and climatic conditions and the plant's slope exposure. Plant materials for plant unit mix options are defined in Schedule 1423-13-B.

(1) Plant material should be distributed so as to provide a relatively uniform planting. Where the planting is along a street and some visibility into the development is desired, the plant material may be arranged to provide view corridors.

(2) Ground cover must be installed appropriate to the surface conditions of the area. Grass is the default landscaping material, although in parking lots and on steep slopes, other ground covers able to withstand the physical conditions are appropriate.

(3) The landscaped planting areas should be entirely pervious except for fence or wall structures and walks that provide pedestrian access. No more than 25 percent of the required area may consist of impervious materials such as gravel, stones, or paving.

Figure 1423-03 Example of Different Landscaping Materials

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1423-05. Landscaping Maintenance.

All plantings shown on the approved plan must be permanently maintained in good growing condition and replaced with new plant materials when necessary to ensure continued compliance with applicable landscaping requirements.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1423-07. Delayed Landscaping Installations.

Evidence of completion of required landscaping must be supplied to the Director of Buildings and Inspections and submitted prior to issuance of an occupancy permit for new construction. There may be cases where landscaping cannot be completed prior to building occupancy due to weather or other conditions. In these instances, the city will require surety to be provided in the amount of 120 percent of the estimated cost of the landscaping to be provided. The form of the surety must be approved by the City Solicitor's Office.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1423-09. Buffer Yards.

Buffer yards are intended to eliminate or minimize conflicts between potentially incompatible, but otherwise permitted land uses on adjoining lots. Buffering may include a combination of setbacks and visual buffers or barriers. Schedule 1423-13-A prescribes the minimum buffer yard requirements and Schedule 1423-13-B defines types of buffer yards required for specific situations.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1423-11. Applicability of Buffer Yard Standards.

The buffer yard standards of this chapter where required by § 1423-13 apply to:

(a) *Development of Vacant Land.* All new development on vacant land.

(b) *Redevelopment.* Redevelopment or expansion of existing site ground coverage, which includes buildings, accessory uses or structures, parking and outdoor storage areas by more than 30 percent, not including single-family dwellings.

(c) *Change in Use.* Any change in use that increases development intensity and results in increased traffic, processes, noise, water or air pollution, etc. For the purposes of this section, a change in use includes: from a residential use to a commercial use; from a commercial use to a manufacturing use; and in some cases from a manufacturing use to a commercial use.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1423-13. Required Buffer Yards.

Buffer yards are required between certain zone districts with the type of yard depending on the adjoining zoning district. Schedule 1423-13-A prescribes the required buffer yards between adjoining districts.

(a) *Buffer Yard Plan.* A buffer yard plan must be submitted in conjunction with other application materials, as provided in Chapter 1441, Application Procedures, Fees, Permits and Certificates. The buffer yard plan must incorporate a landscaping plan. The buffer yard plan must show the location of all buffer yards on the project site, location of utility easements, roads, emergency access, walkways and existing and proposed structures on the site.

(b) *Location.* Required buffer yards of Schedule 1423-13-A must be developed along the perimeter of the lot and extend inward from the property line of the development site. Buffer yards may not be located within any dedicated public or private street right-of-way.

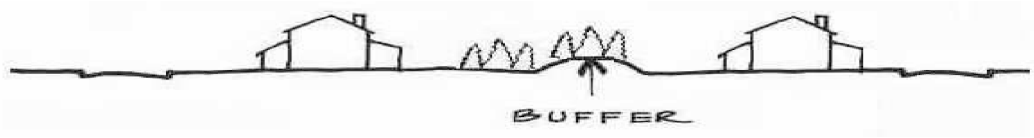


Figure 1423-13 Location of Buffer Yard

Schedule 1423-13-A: Required Buffer Yards

District of Proposed Use	*Adjoining District*	*Yard Condition*	*Buffer Type Required*[1]
RM Districts	SF	Side or Rear	A
	PR (except RMX)	Side of Rear	A
O District	SF	Side or Rear no Loading	A
		Any Yard with Loading	B
	RM	Side or Rear no Loading	A
		Any yard with Loading	B
	PR	Side or Rear no Loading	A
		Any yard with Loading	B
	Other Districts	Front, Side or Rear	None
CN-P and CC-P	SF	Side or Rear no Loading	A
		Any Yard with Loading	A
	RM	Side or Rear no Loading	A
		Any Yard with Loading	A
	PR	Side or Rear no Loading	A
		Any yard with Loading	B
	Other Districts	Front, Side or Rear	None
CN-M, CC-M and CC-A	SF	Side or Rear no Loading	B
		Any Yard with Loading	C
	RM	Side or Rear no Loading	B
		Any Yard with Loading	C
	PR	Side or Rear no Loading	B
		Any yard with Loading	C
	Other Districts	Front, Side or Rear	None
CG-A	SF	Side or Rear no Loading	C
		Any Yard with Loading	D
	RM	Side or Rear no Loading	C
		Any Yard with Loading	D
	PR	Side or Rear no Loading	C
		Any yard with Loading	D
	Other Districts	Front, Side or Rear	None
DD Subdistricts	SF	Side or Rear no Loading	C
		Any Yard with Loading	D
	RM	Side or Rear no Loading	A
		Any Yard with Loading	B
	Other Districts	Front, Side or Rear	None

District of Proposed Use	*Adjoining District*	*Yard Condition*	*Buffer Type Required*[1]
UM Districts	RM	Side or Rear	A
	SF	Side or Rear	A
M Districts	SF and RM	Side or Rear	D
		Front No Storage	None
		Front with Storage	C
	O and C	Side or Rear	A
		Front No Storage or Loading	None
		Front with Storage or Loading	B
	DD	Side or Rear	A
		Front No Storage or Loading	None
		Front with Storage or Loading	B
	PR	Side or Rear	D
		Front No Storage or Loading	None
		Front with Storage or Loading	C
	Other Districts	Front, Side or Rear	None
RF Districts (Except Residential Uses of RF-R District)	SF, RM and Residential Uses of RF-R	Front or Side	D
	PR	Front or Side	D
	O and C	Front or Side	C
	DD	Front or Side	C
	Other Districts	Front or Side	None

[1]See Schedule 1423-13-B

Buffer Yard Standards. Schedule 1423-13-B below prescribes the minimum width, screening and landscaping. Buffer Yards B, C and D provide the applicant with a choice of two options.

Buffer Yard Standards - Schedule 1423-13-B

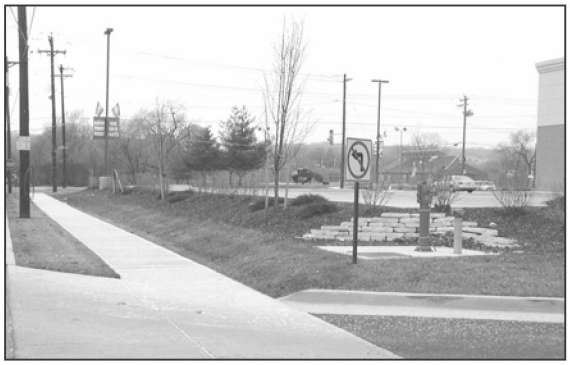
	NUMBER OF PLANTS PER 50 LINEAR FEET OF BUFFER YARD						
BUFFER TYPE	*WIDTH*	*HEIGHT OF SCREEN WALL OR FENCE IN FEET*	*HEIGHT OF BERM IN FEET*	*3 FT. HIGH SHRUBS ON BERM**	*6 FT. HIGH EVERGREEN TREE**	*1.5 INCH CALIPER TREES*	*2.5 INCH CALIPER TREE*
A	10	6	—	—	—	—	—
B	15	6	—	—	1	2	1
	15	—	4	12	—	2	—
C	25	6	—	—	2	2	2
	25	—	6	6	2	2	1
D	35	6	—	—	4	4	3

	NUMBER OF PLANTS PER 50 LINEAR FEET OF BUFFER YARD						
BUFFER TYPE	*WIDTH*	*HEIGHT OF SCREEN WALL OR FENCE IN FEET*	*HEIGHT OF BERM IN FEET*	*3 FT. HIGH SHRUBS ON BERM**	*6 FT. HIGH EVERGREEN TREE**	*1.5 INCH CALIPER TREES*	*2.5 INCH CALIPER TREE*
	35	—	8	—	3	3	2

*Height of Installation

Uses Permitted in Buffer Yards. Buffer yards may be used as required yards, open space or driveways. Accessory structures and surface parking are not permitted in a buffer yard.

FIGURE 1423: A—E
The following illustrations represent examples of landscaping and buffer yards.



Figures 1423 A, B

Figures 1423 C, D

Figure 1423 E

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0221-2007, § 6, eff. July 6, 2007; a. Ord. No. 257-2007, § 3, eff. Aug. 27, 2007)

Chapter 1425

PARKING AND LOADING REGULATIONS

§ 1425-01. Purposes.
§ 1425-03. Requirements for Off-Street Parking and Loading.
§ 1425-04. Urban Parking Overlay Districts.
§ 1425-05. Noncomplying Parking or Loading Facilities.
§ 1425-07. Spaces Required for Multiple Uses.
§ 1425-09. Existing Parking and Loading to be Maintained.
§ 1425-11. Calculation Rules.
§ 1425-13. Dual Usage Prohibited.
§ 1425-15. Location of Parking.
§ 1425-17. Units of Measurement.
§ 1425-19. Off-Street Parking and Loading Requirements.
§ 1425-21. Shopping Center Requirements.
§ 1425-23. Reduced Parking.
§ 1425-25. Off-Street Parking and Loading Dimensions.
§ 1425-27. Parking Lot Screening.
§ 1425-29. Surface Parking Lot Landscaping.
§ 1425-31. Parking Lot Markings.
§ 1425-33. Additional Parking Lot Standards.
§ 1425-35. Access Drive and Maneuvering Aisles.
§ 1425-37. Surfacing, Drainage and Grade of Parking and Loading Facilities.
§ 1425-38. Bicycle Parking.
§ 1425-39. Electric Vehicle Charging Equipment.

§ 1425-01. Purposes.

The purposes of the parking and loading regulations are to:

(a) Require adequate off-street parking and loading, thereby reducing traffic congestion.

(b) Allow for more efficient use of on-street parking.

(c) Promote more efficient loading operations, reducing the use of public streets for loading purposes.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1425-03. Requirements for Off-Street Parking and Loading.

Off-street parking and loading spaces must be provided for uses that are established, enlarged, extended or moved onto any lot in accordance with the standards in Section 1425-19 except within an Urban Parking Overlay District established according to Section 1425-04. Additional parking must be provided based on the standards of this chapter when the expansion of an existing use results in an increase of more than ten percent in the number of currently required parking spaces. Off-street parking and loading requirements for uses in the DD Districts are subject to the provisions of Chapter 1411, Downtown Development Districts.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 121-2008, § 1, eff. May 23, 2008; Ord. No. 259-2013, § 3, eff. Sept. 7, 2013; a. Emer. Ord. No. 199-2024, § 2, eff. 7-1-2024)

§ 1425-04. Urban Parking Overlay Districts.

City Council may establish Urban Parking Overlay Districts within which the provisions of Sections 1410-09(a), 1411-23, 1425-03, 1425-05, 1425-07, 1425-09, 1425-11, 1425-13, 1425-17, 1425-19, 1425-21, and 1425-23 of the Zoning Code do not apply.

(Ord. No. 259-2013, § 4, eff. Sept. 7, 2013; a. Emer. Ord. No. 199-2024, § 2, eff. 7-1-2024)

§ 1425-05. Noncomplying Parking or Loading Facilities.

An existing use of land or structure is not considered nonconforming solely because of the lack of off-street parking or loading facilities required by this chapter. The existing number of off-street parking and loading spaces as of the effective date of these zoning regulations may not be reduced in number.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1425-07. Spaces Required for Multiple Uses.

If more than one use is located on a site, the number of off-street parking and loading spaces to be provided must be equal to the sum of the requirements prescribed for each use. If the gross floor area of individual uses on the same site is less than that for which a loading space would be required in Schedule 1425-21-B, but the aggregate gross floor area of all uses is greater than the minimum for which loading spaces would be required, then the aggregate gross floor area must be used in determining the required number of loading spaces according

to the loading user group. If individual uses are in different loading user groups, the standards for the user group with the lowest number applies. See also provisions of § 1425-21 and § 1425-25.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0346-2007, § 12, eff. Oct. 13, 2007)

§ 1425-09. Existing Parking and Loading to be Maintained.

Existing parking or loading serving any facility may not be reduced in amount or changed in size to less than required by this Chapter.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1425-11. Calculation Rules.

When the units of measurement determining the number of required parking spaces result in requirement of a fractional space, any fraction up to and including one-half is rounded down to the next whole number and fractions of over one-half are rounded up to the next whole number.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1425-13. Dual Usage Prohibited.

An area may not be used and counted both as a required parking space and a required loading space.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1425-15. Location of Parking.

Parking spaces must be on the same lot as the principal buildings except as noted in (c) below, and must be located in compliance with the following:

(a) *Front-Yard Parking Prohibited.* In the SF and RMX Districts, parking for all uses may not be located in any front yard. Parking may be permitted on access drives where such drives lead to the parking lots or spaces either within the principal building or in any accessory structure or at locations behind the front line of a building. In the RM-2.0, RM-1.2, RM-0.7, O, ML and RF Districts, no parking lots or spaces are permitted in the required front yard setback of the district.

(b) *Corner Lots.* On a corner lot in the SF and RM Districts, parking spaces must be located in interior side or rear yards and be at least ten feet from the street lot line.

(c) *Off-Site Parking on Nearby Lots.* Off-site parking to serve a nearby principal structure or principal use is permitted on a lot upon the satisfaction of all of the following conditions:

(1) the off-site parking lot shall be located within a 600-foot radius of the lot containing the principal structure or principal use;

(2) the off-site parking lot shall not be located in a SF Single-Family District; and

(3) (i) A written instrument shall be recorded in title to both the lot containing the principal structure or principal use and the off-site parking lot as follows:

(aa) If the lot containing the principal structure or principal use and the off-site parking lot are owned by the same owner, then a covenant shall be recorded; or

(bb) If the lot containing the principal structure or principal use and the off-site parking lot are owned by different owners, then a reciprocal easement shall be recorded.

(ii) In order to satisfy Condition (3)(i) above, any such written instrument shall:

(aa) Be acceptable to the City Solicitor in substance and form;

(bb) State clearly on its face that it is irrevocable without the prior written consent of the City Manager;

(cc) State that the off-site parking lot shall be used and maintained exclusively for parking to serve the principal structure or principal use so long as the principal structure or principal use requiring such parking remains in existence and has not been abandoned, under the definition contained in Section 1447-07; and

(dd) State that the off-site parking lot shall in no way be deemed to be a nonconforming use or be permitted to continue to be used for parking if the parking is no longer needed to serve the principal structure or principal use.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 012-2011, § 1, eff. Feb. 26, 2011; Emer. Ord. No. 008-2013, § 1, eff. Jan. 16, 2013; Ord. No. 259-2013, § 5, eff. Sept. 7, 2013; Emer. Ord. No. 141-2015, § 28, eff. July 1, 2015)

§ 1425-17. Units of Measurement.

The following rules apply to the determination of required parking:

(a) *Gross Floor Area.* In the case of uses where gross floor area is the unit for determining the required number of parking spaces, the gross floor area includes all areas employed by the use including outdoor eating and drinking areas, except that such gross floor area need not include any area used for parking within the principal building and need not include any area used for incidental service storage, installations of mechanical equipment, penthouses housing ventilators and heating systems and similar uses.

(b) *Hospital Bassinets.* In hospitals, bassinets are not counted as beds.

(c) *Places of Public Assembly.* In places of public assembly that provide benches, fixed or movable seating and assembly areas the requirements are as follows:

(1) In stadiums, sports arenas and other places of assembly in which those in attendance occupy benches or other similar seating facilities, each 18 inches of such seating facilities will be counted as one seat for the purpose of determining the parking requirements of the Cincinnati Zoning Code.

(2) In cases where a place of assembly has both fixed seats and open assembly area, parking requirements will be computed separately for each type of seating area and added together.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 93-2006, § 1, eff. May 18, 2006; a. Ord. No. 0346-2007, § 12, eff. Oct. 13, 2007)

§ 1425-19. Off-Street Parking and Loading Requirements.

(a) When required, off-street parking and loading spaces must be provided in accordance with Schedules 1425-19-A and 1425-19-B and made available to the use giving rise to the requirement. Unless a use is specifically noted under the appropriate use classification heading, the parking and loading requirements apply uniformly to all uses within a use classification. Off-street parking and loading requirements for uses in the DD Districts are subject to the provisions of Chapter 1411, Downtown Development Districts.

(b) Off-street parking and loading facilities must be made permanently available to the use served. Where the use is undetermined or the parking requirement is not established in Schedule 1425-19-A, the Zoning Administrator may determine the probable use and number of spaces required.

(c) An existing structure must maintain existing parking to the extent necessary to meet all or part of the current parking requirements for an existing or proposed use, but no additional parking shall be required in the event of a change in use of the structure.

(d) Commercial uses located in certain Commercial, Office, and Manufacturing zoning districts are entitled to an exemption from the parking requirements as follows:

(1) Commercial Uses in the CN-P and CC-P Zoning Districts. The first 2,000 square feet of gross floor area of existing and new commercial uses are exempted from the off-street parking requirements.

(2) Commercial Uses in the CN-M, CC-M, OL, OG, IR, RF-C and ML Zoning Districts. The first 2,000 square feet of gross floor area of commercial uses in existing buildings are exempted from the off-street parking requirements. Commercial uses in new buildings are not exempted from the parking requirements.

Schedule 1425-19-A: Off-Street Parking and Loading Requirements

Use Classifications	*Required Parking (Sq. Ft. of Floor Area)*	*Loading User Group*
Residential Uses		
Bed and breakfast home	2 for every dwelling, plus 1 for every guest room	
Child day care home	No additional spaces required	
Group residential	1 for every 2 residents	
Permanent residential		
Single-family, Two-family and Multi-family	1 for every unit	
Residential care facilities		
Assisted living	1 for every 4 residents	
Developmental disability dwelling	1 for every 4 residents	
Nursing home	1 for every 4 residents	

Use Classifications	*Required Parking (Sq. Ft. of Floor Area)*	*Loading User Group*
Special assistance shelters	1 for every 3 employees plus 1 for every facility vehicle	
Transitional housing	1 for every facility plus 1 for every 8 beds	
Public and Semi Public Uses		
Cemeteries	None	
Day care center	2 for every facility, plus 1 for every 8 clients	
Clubs and lodges	1 for every 100 sq. ft.	3
Colleges, public or private	1 for every 3 auditorium seats plus 1 for every 5 classroom seats	3
Community service facilities	1 for every 100 sq. ft.	
Cultural institutions	1 for every 500 sq. ft. or 1 for every 8 seats, whichever is greater	3
Government facilities and offices		
Facilities and installations	1 for every 1,000 sq. ft.	1
Correctional institutions	1 for every 20 beds	1
Offices	1 for every 750 sq. ft.	1
Hospitals	1 for every bed	3
Parks and recreation facilities	1 for every 100 sq. ft. of indoor area	
Public maintenance facilities	1 for every 1,000 sq. ft.	
Public safety facilities	1 for every 250 sq. ft.	
Religious assembly	1 for every 30 sq. ft. in principal assembly area	
School, public or private	High School: 1 for every 10 classroom seats	3
	Elementary School: 1 for every 30 classroom seats	3
Commercial Uses		
First 2,000 square feet of gross floor area of existing and new commercial uses in the CN-P and the CC-P districts.	Exempt - no spaces required.	
First 2,000 square feet of gross floor area of existing commercial uses in the CN-M, CC-M, OL, OG, IR, RF-C and ML districts.	Exempt - no spaces required.	
New commercial uses in the CC-M, CC-A, CG-A, OL, OG, IR, RF-C, ML, MG and RF-M districts.	As required below.	
New and existing commercial uses in the CC-A and CG-A districts.	As required below.	
Ambulance services	1 for every 250 sq. ft.	
Animal services	1 for every 400 sq. ft.	

Use Classifications	*Required Parking (Sq. Ft. of Floor Area)*	*Loading User Group*
Banks and financial institutions	1 for every 200 sq. ft. of gross floor area of the first floor area, plus 1 for every 250 sq. ft. of gross floor area of any other floors	2
Bed and breakfast inns	1 for every facility plus 1 for every guest room	
Building materials and services	1 for every 400 sq. ft.	4
Building maintenance services	1 for every 400 sq. ft.	
Business services	1 for every 250 sq. ft.	
Commercial meeting facility	1 for every 150 sq. ft.	3
Eating and drinking establishments		
Drinking establishments	1 for every 150 sq. ft.	
Restaurants, full service	1 for every 150 sq. ft.	
Restaurants, limited service	1 for every 150 sq. ft.	
Food markets	1 for every 150 sq. ft. where it exceeds 2,000 sq. ft.	1
Food preparation	1 for every 750 sq. ft.	
Funeral and interment services	1 for every 50 sq. ft. used for assembly	
Garden supply stores and nurseries	1 for every 400 sq. ft.	
Hotels and commercial lodging	1 for every guest room	3
Loft dwelling units	1 for every unit	
Laboratories, commercial	1 for every 250 sq. ft.	
Maintenance and repair services	1 for every 400 sq. ft.	
Medical services and clinics	1 for every 150 sq. ft.	
Offices	1 for every 400 sq. ft.	2
Personal services	1 for every 250 sq. ft.	
Personal instructional services	1 for every 250 sq. ft.	
Recreation and entertainment		
Indoor and small scale		
Fitness centers, gyms, handball, racquetball or tennis clubs, ice or roller rinks, miniature golf courses	1 for every 350 sq. ft.	
Billiard parlors, poolrooms	1 for every 250 sq. ft.	
Bingo parlors, amusement arcades	1 for every 150 sq. ft.	
Movie theater (three or less screens)	1 for every 5 seats	
Bowling centers	5 for every bowling lane	
Outdoor or large scale		
Sports stadiums and arenas, movie theaters (4 or more screens), racetracks	1 for every 5 seats	
Amusement and theme parks, driving ranges, swimming or wave pools, entertainment complexes, drive-in theaters, archery or shooting ranges, riding stables, campgrounds	1 for every 1,000 sq. ft.	
Retail sales	1 for every 250 sq. ft.	1
Sexually oriented business	1 for every 250 sq. ft.	

Use Classifications	*Required Parking (Sq. Ft. of Floor Area)*	*Loading User Group*
Vehicle and equipment services		
Vehicle and equipment sales and rental	1 for every 400 sq. ft. of office sales or rental area	
Car wash	See § 1419-11	
Fuel sales	None	
Vehicle repair	2 for every service bay or 1 for every 250 sq. ft., whichever is greater	
Automobile holding facilities	None	
Industrial Uses		
Production industry	1 for every 1,000 sq. ft.	4
Research and development	1 for every 750 sq. ft.	2
Warehousing and storage		
Contractor's storage	1 for every 1,000 sq. ft.	
Indoor storage	4 spaces	
Waste management	1 for every 1,000 sq. ft.	
Wholesaling and distribution	1 for every 1,000 sq. ft.	4
Transportation, Communication and Utilities Uses		
Communications facilities	1 for every 600 sq. ft. plus 1 for every 3 auditorium seats	2
Public utility distribution system	1 for every 1,000 sq. ft.	
Public utility maintenance yard	1 for every 1,000 sq. ft.	
Public utility plant	1 for every 1,000 sq. ft.	
Public vehicle operations and service	1 for every employee plus 1 for every taxi and/or limousine	
Transportation facilities		
Airports	1 for every 250 sq. ft of terminal building	1
Heliports	None	
Railroad train yards	None	
Railroad right-of-way	None	
Transportation passenger terminals	1 for every 2,000 sq. ft.	
Truck terminal and warehouse	0—100,000 sq. ft: 1 for every 2,000 feet	4
	Over 100,000: 1 for every 4,000 sq. ft. over 100,000 sq. ft.	4
Watercraft and riverfront facilities		
Barge terminals	1 for every 2,000 sq. ft.	
Boat and ship yards	1 for every 2,000 sq. ft.	
Commercial piers and ports	1 for every 2,000 sq. ft.	
Marinas	1 for every two berths	
Marine sales and services	1 for every 400 sq. ft.	
Agriculture and Extractive Uses		
Farming	1 for every site	
Mining and quarrying	1 for every 1,000 sq. ft.	

Schedule 1425-19-B: Loading User Group Classification

Group	*Requirement*
Group 1	
0—9,999 sq. ft.	No spaces required
10,000—24,999 sq. ft.	1 space
25,000—49,999 sq. ft.	2 spaces
50,000—99,999 sq. ft.	3 spaces
100,000 sq. ft. or more	1 additional space for each 100,000 sq. ft. in excess of 100,000 sq. ft.
Group 2	
0—29,999 sq. ft.	No spaces required
30,000—99,999 sq. ft.	1 space
100,000—499,000 sq. ft.	1 additional space for every 100,000
500,000 sq. ft. or more	1 additional space for every 500,000
Group 3	
0—9,999 sq. ft.	No spaces required
10,000—99,999 sq. ft.	1 space
100,000 sq. ft. or more	1 additional space for each 100,000 sq. ft.
Group 4	
0—4,999 sq. ft.	No spaces required
5,000—39,999 sq. ft.	1 space
40,000—99,999 sq. ft.	2 spaces
100,000 sq. ft. or more	1 additional space for each 100,000 in excess of 100,000

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 96-2006, § 1, eff. May 18, 2006; a. Ord. No. 0022-2007, § 1, eff. Feb. 18, 2007; a. Ord. No. 0346-2007, § 12, eff. Oct. 13, 2007; a. Ord. No. 121-2008, §§ 2, 3, eff. May 23, 2008; a. Ord. No. 174-2008, § 1, eff. June 29, 2008; Emer. Ord. No. 141-2015, § 29, eff. July 1, 2015; a. Ord. No. 131-2018, § 1, eff. July 6, 2018; a. Emer. Ord. No. 418-2021, §§ 8, 39, eff. Nov. 10, 2021; a. Emer. Ord. No. 199-2024, § 2, eff. 7-1-2024)

§ 1425-21. Shopping Center Requirements.

In lieu of calculating the number of parking spaces for individual uses in a shopping center, an overall requirement of four spaces for every 1,000 square feet of gross leasable floor area may be used. The same gross floor area may be used to calculate the loading spaces using the provisions of Loading User Group 1.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0346-2007, § 12, eff. Oct. 13, 2007)

§ 1425-23. Reduced Parking.

A reduction in the number of spaces to less than that specified in Schedule 1425-19-A is permitted under the following conditions:

(a) Proximity to Public Parking Facilities. In the O, C, UM, and M Districts, where a use is located within 1,300 feet of a public parking facility, either publicly or privately owned and operated, as measured along paved sidewalks or walkways that provide access to both sites, and the facility could provide fifty percent or more of the parking

spaces required for the use, the parking requirements for the use shall be reduced by fifty percent. If the reduced requirement results in fewer than five spaces being required, no spaces need be provided.

(b) *Multiple Uses on a Single Development Site*. The maximum allowable reduction in the number of spaces to be provided may not exceed 15 percent of the sum of the number required for each individual use served and not less than the largest amount required for any of the uses computed separately. A covenant in a form satisfactory to the City Solicitor must be filed with the Zoning Administrator in which the owner or owners of property comprising the site agree to participate in the shared parking program. The covenant must include the following:

(1) An agreement that there will be no substantial alteration in the uses that will create a greater demand for parking.

(2) An agreement among the landowners for access to and use of the shared parking spaces.

(c) *Housing for the Elderly and Persons with Disabilities*. The parking requirements for Type A dwelling units is one parking space for every two units, provided that the owner files with the Zoning Administrator, a covenant that reserves those units for the exclusive use of the elderly and persons with disabilities. "Type A dwelling unit" means an accessible dwelling unit complying with Section 1002 of the American National Standard ICC/ANSI A117.1-1998. "Exclusive use of the elderly and persons with disabilities" means that at least one member of the household occupying the dwelling unit is 60 years of age or older or has a physical or mental impairment that substantially limits one or more major life activities, including the functions of caring for one's self, performing manual tasks, walking, seeing, hearing, speaking, breathing, learning and working; a record of a physical or mental impairment; or being regarded as having a physical or mental impairment.

(d) *Proximity to Streetcar*. The parking requirements for residential uses in SF, RM, RF-R, and UM Districts are reduced by fifty percent if located within 600 feet of a streetcar stop. If the effect of the fifty percent reduction means that fewer than three spaces are required, then no spaces need be provided.

(e) *On-Street Parking*. Required off-street parking spaces shall be reduced in an amount equal to the number of on-street parking spaces located adjacent to the property line on the same side of the street. An on-street parking space used to comply with the requirement of this Section must be 20 feet in length, as measured perpendicularly to parallel straight lines.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 370-2006, § 1, eff. Jan. 20, 2007; a. Ord. No. 0221-2007, § 7, eff. July 6, 2007; a. Ord. No. 416-2010, § 5, eff. Dec. 24, 2010; Emer. Ord. No. 141-2015, § 30, eff. July 1, 2015; a. Emer. Ord. No. 199-2024, § 2, eff. 7-1-2024)

§ 1425-25. Off-Street Parking and Loading Dimensions.

The following standards apply to off-street parking and loading facilities:

(a) *Size*. A parking space used to comply with the parking requirements of this chapter may not be less than 8.5 feet in width, as measured perpendicularly to parallel

straight lines and contain 160 square feet in area. The parking spaces, access drives and aisles of the parking facility design must be as approved by the Zoning Administrator.

(b) *Loading Space*. Each loading space may not be less than ten feet in width and 25 feet in length.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; Emer. Ord. No. 141-2015, § 31, eff. July 1, 2015)

§ 1425-27. Parking Lot Screening.

In Residential Districts, a screen fence or solid wall is required for parking areas for four or more vehicles which adjoin or face any other premises, either abutting or directly opposite across-the-street, situated in any Residential or Parks and Recreation District. The fence or wall must be at least four feet and a maximum of six feet in height and must be maintained in good condition. A combination of a four-foot high berm with three-foot high continuous evergreen hedgerow or four-foot high continuous evergreen hedgerow may be substituted for screen fencing and walls. The fence is not required along that side of the property where one of the following conditions exist:

(a) *Abutting Parking Lot.* The abutting property is developed with a parking lot within 25 feet of the common property line for four or more vehicles.

(b) *Grade Differential.* The abutting property has an average elevation of four feet or more above the parking area surface, within an average horizontal distance of eight feet from the parking area.

(c) *Buffer Yard.* The requirements of § 1423-13, Required Buffer Yards are satisfied.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 257-2007, § 4, eff. Aug. 27, 2007)

§ 1425-29. Surface Parking Lot Landscaping.

Surface parking lots shall comply with the minimum landscaping and design requirements set forth below.

(a) *General Landscaping Requirements.*

1. *Perimeter Landscaping.* Surface parking lots shall provide a landscape buffer area separating the parking facility from adjoining streets. The buffer area shall be located within a six-inch-high, poured-in-place concrete curb, landscaped with plant material, and measure at least eight feet in width in CC-A and CG-A zoning districts and five feet in width in all other zoning districts. The buffer area shall not be paved except for approved walkways, bikeways, driveways, and other approved amenities or site elements. A perimeter landscape area of at least three feet in width is required for perimeter areas not adjoining streets.

2. *Trees.* Surface parking lots shall provide at least one tree per ten parking spaces, including one canopy tree per 25 linear feet dispersed throughout the entirety of the perimeter landscape buffer area.

   All trees shall have a minimum size at the time of planting as follows:

   (a) Two-inch caliper for a deciduous tree;

(b) Four-foot height for a conifer or evergreen tree.

3. *Ground Cover.* Ground cover shall be installed appropriate to the surface conditions of the area. Grass is the default landscaping material.

4. *Lighting and Walkways.* Lighting fixtures and walkways are permitted within all islands and perimeter areas.

5. *Maintenance.* All required plantings must be permanently maintained in good growing condition and replaced with new plant materials when necessary to ensure continued compliance with applicable landscaping requirements.

(b) *Facilities Larger than One-Quarter Acre.* Surface parking lots larger than one-quarter acre (i.e., 10,890 square feet) shall conform to the following additional standards:

(1) No parking area within a surface parking lot shall exceed one-quarter acre (i.e., 10,890 square feet) in size. To conform to this requirement, larger parking areas shall be divided into smaller parking areas by one or more landscape islands or peninsulas contained within and dispersed throughout the interior of the parking lot.

(2) Interior landscaped islands and peninsulas shall contain plant material and plant-based ground cover within six-inch-high, poured-in-place concrete curbs, and at least one of every four trees required by subsection (a)(2) shall be located within the interior landscaped islands and peninsulas.

(3) Landscaped islands and peninsulas need not be uniformly spaced but shall provide a minimum separation of fifteen feet between smaller parking areas.

(c) Existing Surface Parking Lots. Surface parking lots established prior to the effective date of this zoning amendment must comply with the requirements of this section upon demolition of a principal structure for which the lot served as an accessory use or the redevelopment or expansion of existing site ground coverage (including buildings, accessory uses or structures, parking and outdoor storage areas) of thirty percent or more.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Emer. Ord. No. 199-2024, § 2, eff. 7-1-2024)

§ 1425-31. Parking Lot Markings.

Driveways and parking areas must include markings consistent with the following standards:

(a) *Markings.* Each parking space and parking facility must be identified by surface markings at all times. The markings must be arranged to provide for orderly and safe loading, unloading, parking and storage of vehicles. Markings required to be maintained in a highly visible condition include striping, directional arrows and signs for areas designated for persons with disabilities.

(b) *Directional Arrows.* One-way and two-way access ways into required parking facilities must be identified by directional arrows. Any two-way access located at any angle other than 90 degrees to a street must be marked with a traffic separation stripe throughout the length of the access; this requirement does not extend to aisles.

(c) *Exit Signs.* Where the exit may not be clearly recognizable, directional signage must be provided.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 287-23, § 1, eff. August 2, 2023)

§ 1425-33. Additional Parking Lot Standards.

Driveways and parking areas must comply with the following standards:

(a) *Vertical Clearance*. The minimum vertical clearance for parking spaces is 6 feet 8 inches.

(b) *Wheel Stops*. All spaces must have wheel stops 2.5 feet from a fence, wall, or walkway unless this requirement is waived by the Zoning Administrator.

Figure 1425-33 Landscape Island WITHOUT Wheel Stops (Bumpers)

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 249-2005, eff. July 21, 2005; Emer. Ord. No. 141-2015, § 32, eff. July 1, 2015)

§ 1425-35. Access Drive and Maneuvering Aisles.

Access drives for parking purposes are permitted only in connection with permitted uses, except for access drives to restricted parking lots allowed by the Zoning Administrator in connection with uses in more restricted districts.

(a) *Parking Access*. An access drive connecting the required parking spaces to a street must be provided either on the same lot as the principal use, or if located on a separate lot as the principal use by either of the following recorded instruments: (i) a recorded covenant if the lot containing the access drive is owned by the same owner as the lot containing the principal use; or (ii) a recorded reciprocal easement if the lot containing the access drive has a different owner than the lot containing the principal use. In any event, any such recorded instrument shall state clearly on its face that it is irrevocable without the prior written consent of the City Manager and shall be acceptable to the City Solicitor. Where provided on the same lot as the principal use, the access drives

must have a minimum width of eight feet and a maximum aggregate width of 20 feet. Where provided for by a recorded instrument, the access drive must have a minimum width of eight feet, except where the access drive serves more than two properties in which case the access drive must be 16 feet.

(b) *Maneuvering Aisles*. Maneuvering aisles and driveways may serve both required parking spaces and loading spaces if they meet the requirements specified in §1425-19 and § 1425-25 for both parking and loading facilities.

(c) *Requirement for Wider Driveway*. The City Engineer may require a wider driveway and driveway opening for a development.

(d) *Driveway Visibility*. Visibility from a driveway may not be blocked between a height of three feet and seven feet for a depth of five feet from the street property line and five feet from the edge of the driveway or at the nearest property line intersecting the street property line, whichever is less. Refer to Figure 1425-35.

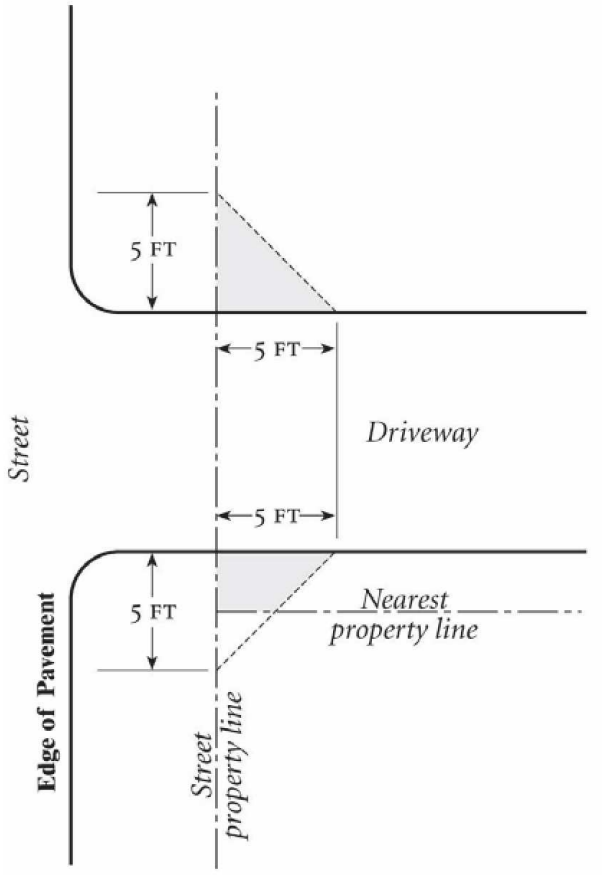


Figure 1425-35 Driveway Visibility

(e) Garage Doors Facing an Alley. Any garage door facing an alley shall provide an adequate turning radius.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0057-2008, § 1, eff. March 13, 2008; a. Ord. No. 363-2010, § 1, eff. Nov. 13, 2010; Emer. Ord. No. 141-2015, § 33, eff. July 1, 2015)

§ 1425-37. Surfacing, Drainage and Grade of Parking and Loading Facilities.

Parking and loading facilities must comply with the following standards:

(a) *Maximum Slope.* The maximum slope of any required maneuvering aisle, parking space or loading space is ten percent and the maximum slope of any required driveway is 15 percent.

(b) *Surfacing.* Parking areas, maneuvering aisles and loading spaces must be paved with asphalt, concrete, interlocking masonry pavers or surfaced with open honeycomb paving blocks which allow grass or ground cover to grow, except as otherwise authorized by the Zoning Administrator.

(c) *Drainage.* All paved parking areas, access drives and loading spaces must have satisfactory disposal of surface waters by grading and drainage subject to approval by the Metropolitan Sewer District.

(d) *Maintenance.* Parking areas, maneuvering aisles and loading spaces must be maintained in good condition, free from broken asphalt, concrete, potholes and weeds and in a state of equivalent quality to that which was approved or required by the City.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 250-2005, eff. July 21, 2005; Emer. Ord. No. 141-2015, § 34, eff. July 1, 2015)

§ 1425-38. Bicycle Parking.

The requirements for bicycle parking are established for the purpose of ensuring secure, weather-protected facilities to accommodate short- and long-term bicycle parking and to encourage the use of bicycles for travel as an alternative to the use of motorized vehicles.

(a) *Applicability.* Bicycle parking facilities shall be provided in every new parking garage, and for every expansion of an existing parking garage when the expansion includes the provision of 60 or more additional motor vehicle parking spaces.

(b) *Maintenance.* The property owner of the garage is responsible for all maintenance requirements imposed by this section.

(c) *Bicycle Parking Requirements.* Bicycle parking spaces shall be provided at a rate of 1 bicycle parking space for every 20 motor vehicle parking spaces provided. In the case of a garage providing bicycle parking spaces based on an expansion, the number of bicycle parking spaces required shall be calculated based on the number of additional motor vehicle spaces created by the expansion.

(1) *Maximum.* No parking garage shall be required to provide more than 24 bicycle parking spaces.

(2) *Fractional Spaces.* When the units of measurement determining the number of required parking spaces result in requirement of a fractional space, any fraction up to and including one-half is rounded down to the nearest whole number and fractions of over one-half are rounded up to the next whole number.

(d) *Bicycle Parking Space Dimensions.* An area no less than 2 feet in width by 6 feet in length shall be provided for each bicycle space. However, the area for each bicycle space may be reduced upon application to the Superintendent of Parking to certify that the proposed layout adequately accommodates the specified number of bicycles.

(e) *Location of Bicycle Parking Spaces.*

(1) Bicycle parking shall be located no lower than the first complete, contiguous parking level below grade, and no higher than the first complete, contiguous parking level above grade. There shall be no stairs on the access route to bicycle parking area(s).

(2) Bicycle parking spaces shall be located inside the garage in an area that is protected from inclement weather.

(3) Bicycle parking spaces shall be equipped with one of the following: a bicycle locker; a securely anchored floor, wall, or ceiling rack; or a similar system for securing the bicycle.

(4) Bicycle parking shall be located in a highly visible area to minimize theft and vandalism.

(5) Bicycle parking shall be separated from motor vehicle parking spaces and lanes of traffic by a physical barrier (such as a curb or bollard).

(6) An aisle or other space at least 5 feet wide shall be provided behind all required bicycle parking to allow room for bicycle maneuvering.

(7) The Department of Transportation and Engineering maintains a handbook of racks and siting guidelines that meet the standards of this section.

(f) *Standards for Bicycle Racks.* Where required bicycle parking is provided by racks, the racks shall meet the following standards:

(1) The bicycle frame and one wheel can be locked to the rack with a high security, U-shaped shackle lock and cable lock if both wheels are left on the bicycle. Bicycle racks that support the wheel but not the frame of the bike may not be used to fulfill a bicycle parking requirement.

(2) A bicycle 6 feet long can be securely held with its frame supported so that the bicycle cannot be pushed or fall in a manner that will damage the wheels or components.

(3) The rack shall be securely anchored.

(g) *Notice of Bicycle Parking.* A sign shall be provided at each point of bicycle entry to the parking garage, mounted with its center between four and six feet above the ground, directly visible and unobstructed from the street. The entry sign shall match exactly

the designated sign on file with the Department of Transportation & Engineering. Bicycle parking signs shall not be used in the calculation of maximum total sign area.
(Ordained by Ord. No. 156-2010, § 1, eff. June 12, 2010)

§ 1425-39. Electric Vehicle Charging Equipment.

Electric vehicle charging equipment is permitted at any location where off-street parking spaces are permitted.
(Ordained by Emer. Ord. No. 199-2024, § 1, eff. 7-1-2024)

Chapter 1427

SIGN REGULATIONS

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§ 1427-01. Purposes.

The purpose of this Chapter is to regulate the display of signs that pertain to businesses, activities and uses that take place on the same premises as where the sign is located. Signs that do not pertain to a business, activity and use that takes place on the same premises as where the sign is located are regulated by Chapter 895, Outdoor Advertising Signs, of the Cincinnati Municipal Code and by the applicable zoning district regulations of the Cincinnati Zoning Code. The regulations in this Chapter are intended to:

(a) Provide property owners and occupants an opportunity for effective identification.

(b) Maintain and enhance the quality of the city's appearance by limiting the number, area, location and design of signs permitted on all sites.

(c) Protect residential districts from adverse impacts of excessive signs both from within residential districts and from surrounding districts.

(d) Reduce sign clutter.

(e) Ensure that signs are located and designed to maintain a safe and orderly pedestrian and vehicular environment.

(f) Provide reasonable, yet appropriate conditions for identifying goods sold or produced or services rendered in all zoning districts.

(g) Control the size, location and design of temporary and permanent signs so that the appearance of such signs will be aesthetically harmonious with their surroundings and will enhance the overall appearance of the built environment.

(h) Eliminate any conflict that could be hazardous between commercial or identification signs and traffic control devices and signs.

(i) Preserve and perpetuate uncluttered and natural views, significant architecture and cultural resources for the enjoyment and environmental enrichment of the citizens of the community and visitors.

(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006)

§ 1427-03. Definitions.

The definitions contained herein are applied to this Chapter, Chapter 1411 Downtown Development District, and Chapter 1417 Institutional-Residential District.

(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006)

§ 1427-03-A. Awning Sign.

"Awning Sign" means a sign painted on or attached to, or supported by an awning in any manner.

(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006)

§ 1427-03-B. Banner.

"Banner" means a non-rigid cloth, plastic, paper, or canvas sign typically related to a public demonstration or for the promotion of civic, welfare or charitable enterprises.

(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006)

§ 1427-03-B1. Building Identification Sign.

"Building Identification Sign" means a sign intended to identify a building from beyond the site on which the sign is located.
(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006)

§ 1427-03-C. Canopy Sign.

"Canopy Sign" means a sign painted on, attached to, or made part of a canopy in any manner.
(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006)

§ 1427-03-C1. Changeable Copy Sign.

"Changeable Copy Sign" means a sign or portion thereof with characters, letters, or illustrations that can be changed or rearranged by mechanical, electronic or manual means.
(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006)

§ 1427-03-C2. Commercial Sign.

"Commercial Sign" means a sign that proposes or promotes a commercial transaction or directs attention to a good, product, commodity, business, service, event, or other object that serves as the basis of a commercial transaction.
(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006; a. Ord. No. 372-2017, § 4, eff. Jan. 20, 2018)

§ 1427-03-C3. Construction Sign.

"Construction Sign" means a nonpermanent sign identifying the persons, firms or businesses directly connected with an ongoing construction project.
(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006)

§ 1427-03-C4. Construction Site Wrap.

"Construction Site Wrap" means a temporary banner attached to a fence surrounding a construction site.
(Ordained by Ord. No. 322-2010, § 1, eff. Sept. 4, 2010)

§ 1427-03-E. Entry Feature Sign.

"Entry Feature Sign" means a permanent on-site ground or wall sign that serves to identify the name of a residential, commercial, or industrial subdivision, multi-family development, or a planned development district.
(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006)

§ 1427-03-E1. External Illumination.

"External Illumination" means a source of illumination directed toward a sign so that a beam of light falls on the exterior surface of the sign and so arranged that no direct rays of light project from such artificial source into residences or streets.
(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006)

§ 1427-03-F. Flag.

"Flag" means any fabric or bunting containing the officially recognized and adopted colors, patterns, or symbols used as the official symbol of a government or political entity.
(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006)

§ 1427-03-F1. Flashing Sign.

"Flashing Sign" means a sign that changes in intensity, color and pattern of illumination at less than ten-second intervals when the sign is activated.
(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006)

§ 1427-03-G. Ground Sign.

"Ground Sign" means a sign supported by structures or supports, permanently placed or anchored in the ground independent from any building or other structure. This term includes, but is not limited to, pole signs, freestanding signs, pylon signs and monument signs.
(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006)

§ 1427-03-I. Identification Sign.

"Identification Sign" means a sign that serves to identify only the name, address, and occupation conducted on or in the premises, business, building or portion of a building on which it is located.
(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006)

§ 1427-03-I1. Illegal On-Site Sign.

"Illegal On-Site Sign" means either:

(a) An on-site sign erected without first complying with all ordinances and regulations in effect at the time of its construction and erection or use.

(b) An on-site sign that was legally erected, but whose use has ceased, or the structure on which the display is placed has been abandoned by its owner, not maintained, or not used to identify or advertise an ongoing business after a period of more than 45 days. See § 1427-43.

(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006)

§ 1427-03-I2. Instructional Sign.

"Instructional Sign" means an on-site sign designed to be visible on-site or immediately adjacent to the site by pedestrians and motorists and that conveys instructions with respect to the premises on which it is maintained. Examples of such signs include a sign designating the entrance to or exit from a parking area, trespassing sign, a danger sign, entry or exit signs, directional signs, service entrance signs, and informational on-site signs.
(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006)

§ 1427-03-I3. Internal Illumination.

"Internal Illumination" means a source of illumination enclosed entirely within the sign and not directly visible from outside the sign.
(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006)

§ 1427-03-M. Marquee Sign.

"Marquee Sign" means a sign painted on, attached to, or made part of a marquee in any manner.
(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006)

§ 1427-03-M1. Mural.

"Mural" means a picture on an exterior surface of a structure. A mural is a sign only if it is related by language, logo, or pictorial depiction to the advertisement of any product, service, place, person or the identification of any business.
(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006)

§ 1427-03-N. Noncommercial Sign.

"Noncommercial Sign" means a sign that does not propose or promote a commercial transaction or direct attention to a good, product, commodity, business, service, event, or other object that serves as the basis of a commercial transaction.
(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006; a. Ord. No. 372-2017, § 4, eff. Jan. 20, 2018)

§ 1427-03-N1. Nonconforming Sign.

"Nonconforming Sign" means a sign that was lawfully erected or displayed under laws or ordinances in effect at the time of its installation, but that is not allowed under the current provisions of the Cincinnati Zoning Code.
(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006)

§ 1427-03-O. Off-Site Sign.

"Off-Site Sign" means a Commercial Sign (i) that proposes or promotes a commercial transaction to be conducted on a premises other than the premises on which the sign is located; or (ii) directs attention to a good, product, commodity, business, service, event, or other object that serves as the basis of a commercial transaction that is not conducted on the same premises as the premises on which the sign is located.
(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006; a. Ord. No. 372-2017, § 4, eff. Jan. 20, 2018)

§ 1427-03-O1. On-Site Sign.

"On-Site Sign" means (i) a Noncommercial Sign; (ii) a Commercial Sign that proposes or promotes a commercial transaction to be conducted on the same premises as the premises on

which the sign is located; or (iii) a Commercial Sign that directs attention to a good, product, commodity, business, service, event, or other object that serves as the basis of a commercial transaction conducted on the same premises as the premises on which the sign is located.
(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006; a. Ord. No. 372-2017, § 4, eff. Jan. 20, 2018)

§ 1427-03-P. Portable Sign.

"Portable Sign" means a sign that is designed to be or capable of being moved or transported, and not permanently affixed or attached to any building, structure, or grounds.
(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006)

§ 1427-03-P1. Professional Sign.

"Professional sign" means a sign indicating the name and occupation of a professional person or group of associated professional persons.
(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006)

§ 1427-03-P2. Projecting Sign.

"Projecting Sign" means a sign that is wholly or partly dependant on a building for support or suspended from a pole attached to a structure and that projects from the building at a perpendicular angle or approximately perpendicular angle. A Projecting Sign may not extend more than six feet from the wall to which it is attached.

Figure 1427-03-P1 Example of Projecting Sign

(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006)

§ 1427-03-R. Real Estate Sign.

"Real Estate Sign" means a sign advertising the sale, rental, open house or lease of the structure or property on which it is installed.
(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006)

§ 1427-03-R1. Roof Line.

"Roof Line" means the uppermost line or point of the facade or parapet of a flat roof structure, or the lower edge of an eve, gable or rake of a sloped roof structure.
(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006)

§ 1427-03-R2. Roof Sign.

"Roof Sign" means a sign erected on or above the roofline of a building or structure.
(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006)

§ 1427-03-S. Sandwich Board Sign.

"Sandwich Board Sign" means a sign with two hinged, connected, or double-faced boards or other material that can be temporarily placed on the ground and is customarily placed on a sidewalk to advertise changing sales, specials, or products sold in the adjacent establishment.
(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006)

§ 1427-03-S1. Sign.

"Sign" means a writing or display, including a word or numeral; pictorial representation, including illustration or decoration; emblem, including device, symbol or trademark; flag, including banner, pennant, mural, or painting; or other figures of similar character that:

(a) Is a structure or part thereof, or is attached to, painted on, or in other manner represented on a building or other structure, and

(b) Is used to announce, direct attention to, or advertise, and

(c) Is visible from outside a building.

(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006)

§ 1427-03-S2. Sign Face Area.

"Sign Face Area" means the area of the smallest enclosing circle, half-circle, parallelogram, or triangle that encloses all of the letters, figures or symbols that comprise the sign message, including any background forming an integral part of the display, but not including any structure supporting the sign, unless the support structure forms a part of the message being displayed. Irregular shapes shall be calculated by up to a maximum of three connected shapes.
(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006)

§ 1427-03-S3. Sign Height.

"Sign Height" means the distance between the highest point of the sign face or sign structure and the finished grade directly below it. The height may not be artificially increased by the use of mounding.
(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006)

§ 1427-03-S4. Site.

"Site" means any tract or tracts of land that comprise a single, integrated development or use of land.
(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006)

§ 1427-03-T. Temporary Sign.

"Temporary Sign" means a sign or advertising display designed, intended, or installed for a short period of time as regulated in this chapter (See § 1427-13 Temporary Signs). This excludes exempt signs as defined in § 1427-11.
(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006)

§ 1427-03-W. Wall Sign.

"Wall Sign" means a sign painted on or fastened to the wall of a building or structure in a plane parallel or approximately parallel to the plane of said wall and affixed in such a manner that the wall becomes the supporting structure for or forms the background surface of the sign.
(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006)

§ 1427-03-W1. Window Sign.

"Window Sign" means a sign painted on or affixed to a windowpane or glass door or displayed on the inside of the building or structure that is within two feet of a windowpane or glass door and is visible from a public right-of-way or adjacent property.
(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006)

§ 1427-05. Applicability.

The regulations set forth in this Chapter apply to all on-site signs in all districts, except in the DD District and in the IR District, where the sign regulations set forth in Chapter 1411, Downtown Development District, and Chapter 1417, Institutional-Residential District, apply where inconsistent with the regulations set forth in this Chapter.

A sign regulated by this Chapter may not be erected or displayed unless a building permit is obtained or the sign is listed as an exempt sign in § 1427-11. In addition, no Off-Site Sign may be erected or displayed unless it conforms to the requirements of Chapter 895, "Outdoor Advertising Signs" and applicable federal and state regulations.
(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006; a. Ord. No. 372-2017, § 4, eff. Jan. 20, 2018)

§ 1427-07. Signs Located on Public Property.

The following signs are exempt from the provisions of the Cincinnati Zoning Code and are permitted in any zoning district:

(a) Signs erected or displayed in the public right-of-way and authorized under Chapter 723 of the Municipal Code; and

(b) Signs erected or displayed on Fountain Square pursuant to Rules and Regulations for the Use of Fountain Square as authorized by Chapter 713 of the Municipal Code; and

(c) Signs approved by the City for a special event authorized under Chapter 765 of the Municipal Code or other event authorized under Park Board rules; and.

(d) Signs erected or displayed on city-owned property by the City of Cincinnati or by a third-party pursuant to a contract with the city subject to reasonable, uniform, viewpoint-neutral limitations that ensure the signs do not undermine the city's interests, including its interests in aesthetics and traffic safety.

(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006; a. Ord. No. 372-2017, § 4, eff. Jan. 20, 2018; a. Ord. No. 295-2019(Emer.), §§ 5, 6, eff. June 26, 2019)

§ 1427-09. Prohibited Sign Types, Locations, and Message.

The following signs, sign types, sign locations, and sign messages are prohibited:

(a) In any public park or on any public property without the permission of the City of Cincinnati.

(b) On any traffic control sign, utility pole, street sign, or tree.

(c) In any location where the view of approaching or intersecting traffic would be obstructed. A sign may not be located so as to interfere with the safe movement of vehicles or pedestrians entering, leaving, or crossing a public right-of-way.

(d) A sign affixed to a vehicle or trailer, unless the vehicle or trailer is used in ordinary course of business for the transportation of persons or materials and not for the primary purpose of advertising.

(e) On any property without prior authorization granted by the property owner on which any sign is displayed.

(f) Moving, flashing or animated signs, balloons, gas inflated signs or similar inflated signs, portable signs, searchlights, streamers, spinners, flags (other than those specifically permitted herein), outdoor image projections (signs projected from an external light source onto a building or structure) or any other similar devices.

(g) Roof Signs.

(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006)

§ 1427-11. Exempt Signs.

The following signs are exempt from the permit requirements of this Chapter and are permitted in any zoning district:

(a) Street address numbers displayed in accordance with § 723-65, Displaying House Numbers, of the Cincinnati Municipal Code.

(b) Public information, identification, special event, directional, and other signs erected by a government agency.

(c) Notices posted by a public utility or other quasi-public agent in the performance of a public duty.

(d) City entry, community or district identification signs not exceeding 20 square feet in area and eight feet in height.

(e) Names of buildings, dates of erection, commemorative tablets and the like, when carved into stone, concrete or similar material or made of bronze, aluminum or other permanent type material.

(f) Credit card, trading stamp, or trade association signs not exceeding one-half square foot each and not exceeding ten per establishment.

(g) Flags not exceeding 72 square feet each. A flag may be displayed on a pole not exceeding 35 feet in height or the height of the principal structure on the site, whichever is less. No more than 4 flags or flagpoles are permitted per site.

(h) One Identification Sign per dwelling unit or per business, not exceeding one square foot each.

(i) Instructional On-Site Signs provided that such signs are limited to a maximum of six square feet in area. If constructed as a ground mounted sign the maximum height is four feet.

(j) Temporary Open House Signs provided that they are limited in number to a maximum of four per event, limited in size to a maximum of 12 square feet in area and located at least 12 feet from the edge of the street pavement. An open house sign may only be installed the day before the open house and must be removed the same day of the open house after its conclusion. In no case shall an open house sign be installed for more than 48 continuous hours.

(k) Real Estate Sign.

(1) For all zoning districts, only one such sign is allowed per site per street frontage, and is limited in size to a maximum total sign face area of 24 square feet and 12 square feet for any single sign face.

(2) The sign may be a ground sign, a window sign, or a wall sign.

(3) All signs must be removed within 14 days after the sale, lease, or rental has occurred. These signs may only be installed on the property to which they refer.

(l) Noncommercial Signs as regulated by § 1427-15.

(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006)

§ 1427-13. Temporary Signs.

A temporary sign is permitted in any zoning district, requires obtaining a building permit or a Certificate of Compliance, may only be externally illuminated, and may include:

(a) A Temporary Construction Sign provided that such a sign is limited in size to a maximum total sign face area of 64 square feet in commercial zoning districts and 32 square feet in residential zoning districts. Each site may only have one Temporary Construction Sign. Construction signs shall be installed no sooner than one (1) week prior to the commencement of construction on the site and must be removed within 24 hours of completion of construction or if the project ceases construction for 12 months or longer. Construction signs may be erected as wall or ground signs.

(b) A Construction Site Wrap provided that such a sign in limited in height to no more than eight (8) feet. The purpose of a Construction Site Wrap is to conceal the

construction site, inform people about the future uses, recognize principle parties, and create interest about the new development. The sign copy may be modified at any time during construction, if the Zoning Administrator approves the change. The sign may span the length of the fence. Construction Site Wraps shall be installed no sooner than one (1) week prior to the commencement of construction on the site and must be removed within 24 hours of the completion of construction or if the project ceases construction for 12 months or longer.

(c) Decorations, banners, and signs for public demonstrations, special events, or for the temporary promotion of civic, welfare or charitable enterprises or events. A banner may not exceed 12 feet in any of its dimensions. These signs may be installed for a period not to exceed 30 days with a minimum of 30 days between installation periods for a maximum of four times for every calendar year.

(d) Residential subdivisions with multiple lots for sale, lease, or rent may have one temporary ground mounted sign per perimeter street frontage around the subdivision in addition to signs allowed under § 1427-11(m) Real Estate Sign. The additional residential subdivision sign may not exceed 250 square feet in area or ten square feet for every lot offered, whichever is less. This sign must be at least 50 feet from a perimeter street or right-of-way surrounding the subdivision. No two signs, if allowed, may be closer than 200 feet to each other. The sign must be removed when 75% of the lots in the subdivision have received a certificate of occupancy.

(e) One on-site commercial sign per site, installed only as a temporary ground sign, not exceeding 36 square feet per sign face, with a maximum of two sign faces and a maximum sign height of 5 feet. Such sign may be installed for a period not to exceed 30 days for a maximum of four times for every calendar year with a minimum of 30 days between installations.

(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006; a. Ord. No. 322-2010, § 2, eff. Sept. 4, 2010; Emer. Ord. No. 141-2015, § 35, eff. July 1, 2015)

§ 1427-15. Noncommercial Signs.

(a) Notwithstanding any other provision of this code, a noncommercial sign shall be permitted in any zoning district in lieu of any sign permitted in the district on the same terms under which the substituted sign is permitted in the district.

(b) Notwithstanding any other provision of this code, except Section 1427-09, "Prohibited Sign Types, Locations and Messages," one or more noncommercial signs may be displayed as ground, window or wall signs in any zone district on each street frontage with a maximum total sign face area for all sign faces visible from any point along the street frontage of 36 square feet. Where a sign has two or more display faces, the area of all faces of the sign shall be included in determining the area of the sign, unless the two faces are joined back to back, are parallel to each other, are of equal size and are not more than 16 inches apart, in which case one face shall be included in determining the area of the sign.

(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006; a. Ord. No. 372-2017, § 4, eff. Jan. 20, 2018)

§ 1427-17. Off-Site Signs.

Off-Site Signs are permitted only in the CC-M, CC-A, CG-A, MG, and ME zoning districts and must be displayed in compliance with Chapter 895, Outdoor Advertising Signs, of the Cincinnati Municipal Code.
(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006)

§ 1427-19. Murals.

One mural on only one wall of a building or structure is permitted. Murals require either a building permit or a Certificate of Compliance.
(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006)

§ 1427-21. Maximum Total Sign Area.

In determining compliance with the maximum total sign area (See § 1427-35-(a), § 1427-37-(a), and § 1427-39-(a)), the following rules apply:

(a) For a site with frontage on only one street, the linear feet of frontage along the street shall be counted for purposes of determining the maximum allowable sign area. For the purposes of § 1427-21, the building frontage is the horizontal linear dimension of the first story of the building.

(b) The maximum total sign area for all buildings shall be the sum of the allowable building sign area permitted and the allowable ground sign area permitted in each of the individual zoning districts.

(c) The maximum sign area for all building (wall, projecting, marquee, awning/canopy) signs shall be a multiple of the linear feet of building frontage occupied by an individual establishment, subject to the maximums delineated for each zoning district. No more than two building sign types may be used on a single building.

(d) The maximum sign area for all ground signs shall be a multiple of the linear feet of lot frontage at the street, subject to the maximums delineated for each zoning district.

(e) The maximum total sign area may be allocated among the permitted signs in each district, provided that each sign conforms to the applicable regulations of the district in which the sign is located and the applicable regulations for the type of sign.

(f) In no case may the total area of all signs on a particular site exceed the maximum total sign area given for a site in a particular zoning district.

(g) Signs that are exempt from permit requirements (§ 1427-11 Exempt Signs), listed as temporary signs (§ 1427-13 Temporary Signs) and non-commercial signs (§ 1427-15 Non-commercial Signs) do not count against the maximum total sign area for a site in a particular zoning district.

(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006)

§ 1427-23. Wall Sign Regulations.

The following regulations apply to wall signs (See § 1427-03-W), unless more specifically regulated elsewhere in this Chapter or by the District regulations applicable to the zoning district in which the sign is located:

(a) A wall sign may not project above a roofline.

(b) A wall sign may not be installed more than the permissible maximum height above grade as established per zoning district, as measured to the top of the sign.

(c) Each individual wall sign face counts against the maximum total sign area (See § 1427-21) permitted for all signs on a site and against the total area permitted for a wall sign as allowed in each district.

Figure 1427-23-B Examples of Wall Signs

(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006)

§ 1427-25. Ground Sign Regulations.

The following regulations apply to ground signs (See § 1427-03-G), unless more specifically regulated elsewhere in this Chapter or by the District regulations applicable to the zoning district in which the sign is located:

(a) A ground sign may not be closer to a lot line or right-of-way than the greater of one-half the sign height or 15' when within a sight triangle. Refer to Figures 1427-25-A and 1427-25-C.

(b) Only one ground sign per site is permitted for sites with less than 400 lineal feet of lot frontage. A secondary ground sign may be permitted on a lot with more than 400 feet of street frontage, but in no circumstance may two ground signs be erected within 200 feet of each other as measured along the street frontage.

(c) For corner lots or sites with sufficient lot frontage of 400 lineal feet or greater to permit two ground signs, the primary ground sign shall not exceed the maximum total sign face area or square feet per sign face permitted in a district. The total sign face area of the second sign shall not exceed 50% of the maximum total sign face area or square feet per sign face permitted in a district.

(d) For lots with double street frontage one ground sign may be installed per street frontage. A ground sign on an arterial street or collector street shall not exceed a maximum total sign face area or square feet per sign face permitted in a district. Ground signs

erected on any other street frontage shall not exceed 50% of the maximum total sign face area or square feet per sign face permitted in a district. Double frontage lots are not subject to the restrictions of § 1427-25(b).

(e) Each individual ground sign face counts against the maximum total sign area (See § 1427-21) permitted for all signs on a site and against the total area permitted for a ground sign as allowed in each district.

(f) Ground signs are subject to the requirements of all City of Cincinnati departments and agencies.

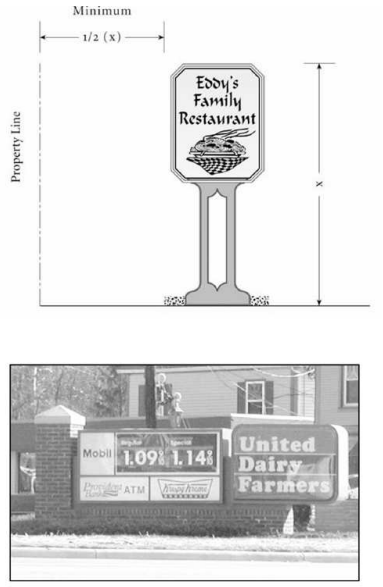

Figure 1427-25-A Ground Signs

Figure 1427-25-B Examples of Ground Signs

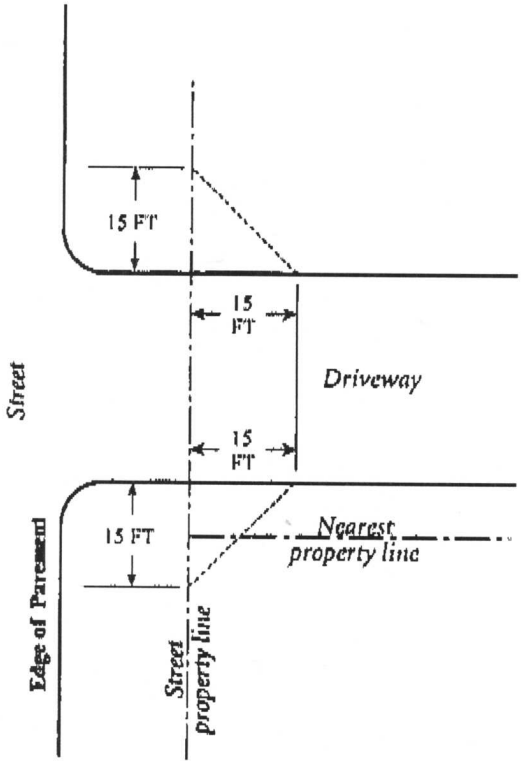

Figure 1427-25-C Site Triangle

(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006)

§ 1427-26. Sandwich Board Sign Regulations.

The following regulations apply to sandwich board signs (See § 1427-03-S), unless more specifically regulated elsewhere in this Chapter or by the District regulations applicable to the zoning district in which the sign is located:

(a) Only one sandwich board sign is permitted per retail business or service.

(b) Such a sign shall be displayed only during the business hours of the establishment.

(c) Each sandwich board sign shall be limited in size to a maximum total sign face area of 12 square feet and 6 square feet for any single face. A single sign face shall not exceed 3 feet in height and 2 feet in width.

(d) Sandwich board signs in the public right-of-way shall be in compliance with § 723-9 of the Municipal Code.

(e) Sandwich board signs shall not require a building permit or Certificate of Compliance.

(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006; a. Ord. No. 320-2022, §§ 3, 4, eff. Oct. 12, 2022)

§ 1427-27. Projecting Sign Regulations.

The following regulations apply to projecting signs (See § 1427-03-P2), unless more specifically regulated elsewhere in this Chapter or by the District regulations applicable to the zoning district in which the sign is located:

(a) A projecting sign must be at least ten feet above the surface over which it projects, or at least 16 feet above a private vehicular passageway.

(b) A projecting sign may not be installed above the roofline of a building or structure, or have a sign height more than 20 feet above the average natural grade at the sign location, whichever is less.

(c) A projecting sign may not be wider than three and one-half feet nor exceed eight feet in height.

(d) A projecting sign must be setback at least five feet from an interior side lot line or a division wall between different establishments.

(e) A projecting sign may not project above a roofline. Refer to Figure 1427-27-A.

(f) A projecting sign that projects into the right-of-way requires a revocable street privilege.

(g) Projecting signs may only be located along or oriented toward a street frontage.

(h) Each individual projecting sign face counts against the maximum total sign area (See § 1427-21) permitted for all signs on a site and against the total area permitted for a projecting sign as allowed in each district.

(i) A projecting sign may not extend more than six feet from the wall to which it is attached to the end of the supporting structure.

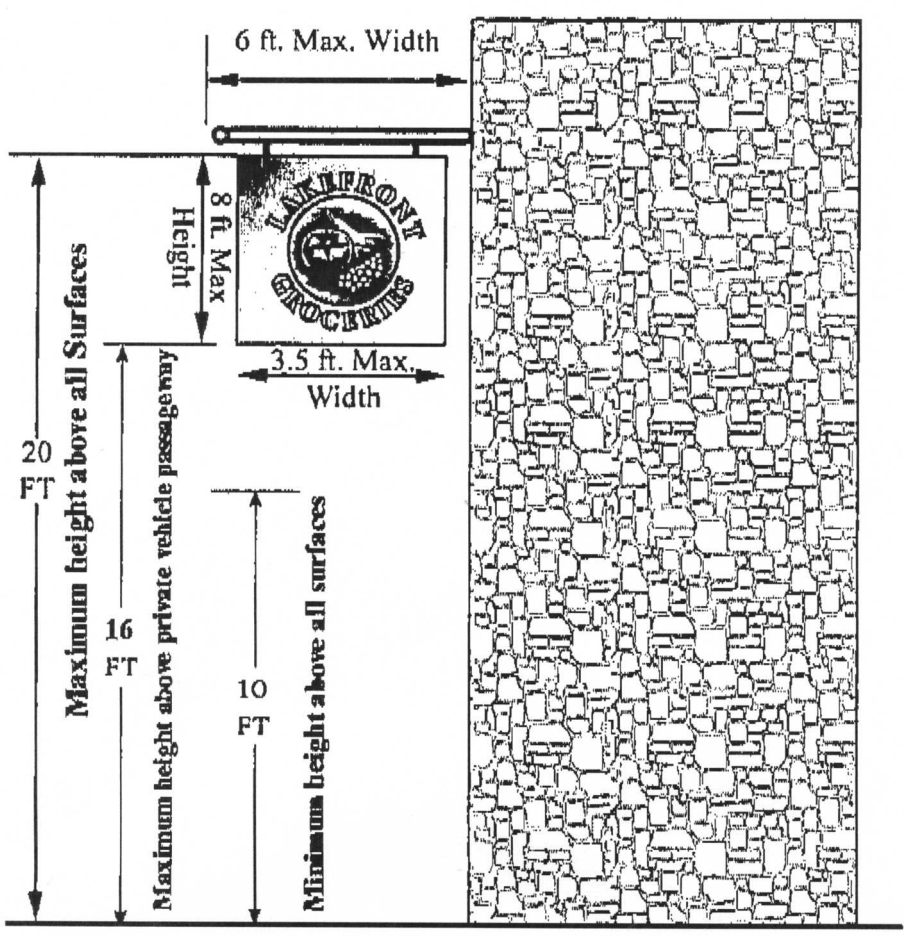

Figure 1427-27-A Projecting Signs

Figure 1427-27-B Examples of Projecting Signs

(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006)

§ 1427-29. Window Sign Regulations.

The following regulations apply to window signs (See § 1427-03-W1), unless more specifically regulated elsewhere in this Chapter or by the District regulations applicable to the zoning district in which the sign is located:

(a) Window signs may not cover more than 20 percent of the total area of the particular window to which they are attached or related.

(b) A window sign shall be limited to the ground floor or first floor windows only unless an establishment is located in one or more of a building's upper floors and occupies no portion of the first floor.

(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006)

§ 1427-31. Signs in Historic Districts or on Landmarks

Signs in historic districts or on historic landmarks require obtaining a Certificate of Appropriateness and shall be in conformance with any applicable guidelines for the district. See Chapter 1435 Historic Landmarks and Districts.

(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006)

§ 1427-33. Signs Permitted in Any District.

The following signs are permitted in all districts (except as noted) where the use the sign is associated with is also permitted, limited, or conditional, subject to all other limitations, conditions, or prohibitions in this chapter.

	Entry Feature Sign	*Identification Sign for Non-Residential Principal Uses in SF and RM Districts*	*Changeable Copy Sign for Public and Semi-Public Uses*	*Home Occupation Sign*	*Sandwich Board Signs for Principal Non-Residential Uses*
Sign Types Permitted	Ground or Wall only	Ground or Wall only	Ground or Wall only	Wall or Window only	N/A
Maximum Area Per Sign Face	1 square foot per dwelling unit or 1 square foot per commercial tenant up to 25 square feet	24 square feet for public and semi-public uses; 12 square feet for all other non-residential uses	20 square feet	2 square feet	6 square feet
Maximum Number of Sign Faces	1	2	2	1	2
Maximum Number of Signs	One sign for every intersection between a subdivision or planned development interior street and a pre-existing perimeter street or along the street frontage of a multi-family development	One per building	One per site	One per dwelling unit that has an existing and permitted home occupation use	One per business establishment
Maximum Sign Height	6 feet	6 feet	6 feet	The ground or first floor only unless a use is located in the second floor or higher of a building and has no first floor occupancy	3 feet
Maximum Sign Width	12 feet	12 feet	10 feet	None	2 feet
Minimum Sign Setback	Twice the proposed sign height for a ground sign. None for a wall sign.	Twice the proposed sign height for a ground sign. None for a wall sign.	Twice the proposed sign height for a ground sign. None for a wall sign.	None	N/A
Illumination Permitted	External only	External only	External or Internal In SF and RM districts: External and non-flashing and non-moving only	None	None

(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006; a. Ord. No. 140-2008, § 1, eff.

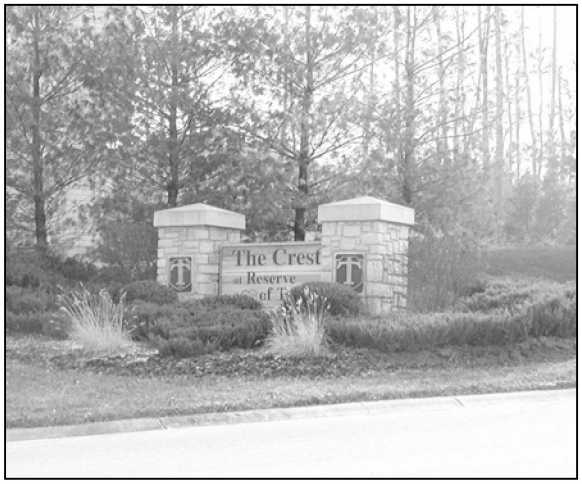

Figure 1427-33 Examples of Entry Feature Signs

May 23, 2008)

§ 1427-35. Sign Standards for the O Districts.

Signs in the O District must comply with the following:

(a) *Maximum Building Sign Area.* (See § 1427-21)

(1) *OL District*: 0.75 square feet for every linear foot of building frontage per establishment.

(2) *OG District*: 1.5 square feet for every linear foot of building frontage per establishment.

(3) *Changeable Copy Signs* are permitted in the OG District. They may be constructed as ground, wall, marquee, or canopy signs and are subject to all other size regulations for the particular sign type selected. Only one changeable copy sign per site is permitted. A Changeable Copy Sign may not be changed or rearranged at less than a ten second interval and may not include streaming, animating, or flashing text or images.

(b) *Maximum Ground Sign Area.* (See § 1427-21)

(1) *OL District*: 0.375 square feet for every linear foot of lot frontage on a street per site.

(2) *OG District*: 0.75 square feet for every linear foot of lot frontage on a street per site.

For Signs in the OL District the following regulations apply:

OL District	*Ground Signs*	*Window Signs*	*Projecting Signs*	*Wall Signs*	*Marquee Signs*	*Awning or Canopy Signs*
Permitted Signs	Yes	Yes	No	Yes, if no marquee sign	Yes, if no wall sign	Yes
Max. # of Signs	See § 1427-25	Unlimited	N/A	1 per street frontage per establishment	1 per street frontage per establishment	1 per establishment

OL District	*Ground Signs*	*Window Signs*	*Projecting Signs*	*Wall Signs*	*Marquee Signs*	*Awning or Canopy Signs*
Max. Sign Area	36 sq. ft. per sign face	See § 1427-29	N/A	36 sq. ft.	36 sq. ft.	36 sq. ft.
Max. # of Sign Faces Permitted	2	1	N/A	1	1	1
Max. Sign Height	6 ft.	See § 1427-29	N/A	See § 1427-23	Not more than 2 ft. above marquee	N/A
Max. Sign Width	6 ft.	Horizontal limits of the window	N/A	Horizontal limits of the establishment	Horizontal limits of the marquee	Horizontal limits of the awning or canopy
Min. Setback from any lot line	3 ft.	N/A	N/A	N/A	N/A	N/A
Permitted Illumination	External only	External only	N/A	External only	External only	External only

For Signs in the OG District the following regulations apply:

OG District	*Ground Signs*	*Window Signs*	*Projecting Signs*	*Wall Signs*	*Marquee Signs*	*Awning or Canopy Signs*
Permitted Signs	Yes	Yes	No	Yes	Yes	Yes
Max. # of Signs	See § 1427-25	Unlimited	N/A	1 per street frontage per establishment	1 per street frontage per establishment	1 per establishment
Max. Sign Area	See § 1427-35	See § 1427-29	N/A	72 sq. ft.	72 sq. ft.	72 sq. ft.
Max. # of Sign Faces Permitted	2	1	N/A	1	1	1
Max. Sign Height	10 ft.	See § 1427-29	N/A		Not more than 2 ft. above marquee	N/A
Max. Sign Width	10 ft.	Horizontal limits of the window	N/A	Horizontal limits of the establishment	Horizontal limits of the marquee	Horizontal limits of the awning or canopy
Min. Setback from any lot line	3 ft. or one-half the height of the sign, whichever is greater	N/A	N/A	N/A	N/A	N/A
Permitted Illumination	External or Internal	External only	N/A	External or Internal	External or Internal	External or Internal

(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006; a. Ord. No. 141-2008, § 1, eff. May 23, 2008; a. Ord. No. 393-2008, eff. Dec. 19, 2008)

§ 1427-37. Signs Standards for the C and UM Districts.

Signs in the C and UM Districts must comply with the following:

(a) *Maximum Building Sign Area.* The maximum sign area allowed is as follows: (See § 1427-21)

(1) *CN-P and CC-P Districts*: One square foot for every linear foot of building frontage per establishment.

(2) *CN-M, CC-M and UM Districts:* 1.5 square feet for every linear foot of building frontage on a street per site.

(3) *CC-A and CG-A Districts*: Two square feet for every linear foot of building frontage per establishment.

(4) *Changeable Copy Signs* are permitted in the CN-M, CC-M, CC-A, and CG-A Districts. They may be constructed as ground, wall, marquee, or canopy signs and are subject to all other size regulations for the particular sign type selected. Only

one changeable copy sign per site is permitted. A Changeable Copy Sign may not be changed or rearranged at less than a ten second interval and may not include streaming, animating, or flashing text or images, except for time/temperature signs that may change up to twenty times per minute.

(b) *Maximum Ground Sign Area.* The maximum sign area allowed is as follows: (See § 1427-21)

(1) *CN-M and CC-M Districts*: 0.75 square feet for every linear foot of lot frontage on a street per site.

(2) *CC-A and CG-A Districts*: One square foot for every linear foot of lot frontage on a street per site.

For Signs in the CN-P & CC-P Districts, the following regulations apply:

CN-P & CC-P District	*Ground Signs*	*Window Signs*	*Projecting Signs*	*Wall Signs*	*Marquee Signs*	*Awning or Canopy Signs*
Permitted Signs	Conditional	Yes	Yes	Yes	Yes, if no projecting or wall sign	Yes
Max. # of Signs	1 per site	Unlimited	1 per building frontage per establishment	1 per building frontage per establishment	1 per building frontage per establishment	1 per establishment
Max. Sign Area	30 square foot per sign space	See § 1427-29	28 sq. ft. per sign face	See § 1427-37(a)(1)	See § 1427-37(a)(1)	See § 1427-37(a)(1)
Max. # of Sign Faces Permitted	2	1	2	1	1	1
Max. Sign Height	6 ft.	See § 1427-29	See § 1427-27	20 feet above grade	Not more than 2 ft. above marquee	N/A
Max. Sign Width	6 ft.	Horizontal limits of the window	See § 1427-27	Horizontal limits of the wall	Horizontal limits of the marquee	Horizontal limits of the awning or canopy
Min. Setback from any lot line	One-half the height of the sign	N/A	See § 1427-27	N/A	N/A	N/A
Permitted Illumination	External or Internal	External or Internal	External or Internal	External or Internal	External or Internal	External or Internal

For Signs in the CN-M, CC-M & UM Districts, the following regulations apply:

CN-M, CC-M & UM District	*Ground Signs*	*Window Signs*	*Projecting Signs*	*Wall Signs*	*Marquee Signs*	*Awning or Canopy Signs*
Permitted Signs	Yes	Yes	Yes	Yes	Yes	Yes
Max. # of Signs	See § 1427-25	Unlimited	1 per building frontage per establishment	1 per building frontage per establishment	1 per building frontage per establishment	1 per establishment
Max. Sign Area	36 sq. ft. per sign face	See § 1427-29	28 sq. ft. per sign face	See § 1427-37-(a)(2)	See § 1427-37-(a)(2)	See § 1427-37-(a)(2)
Max. # of Sign Faces Permitted	2	1	2	1	1	1
Max. Sign Height	10 ft.	See § 1427-29	See § 1427-27	25 ft.	Not more than 2 ft. above marquee	N/A
Max. Sign Width	None	Horizontal limits of the window	See § 1427-27	Horizontal limits of the wall	Horizontal limits of the marquee	Horizontal limits of the awning or canopy
Min. Setback from any lot line	One-half the height of the sign	N/A	See § 1427-27	N/A	N/A	N/A

CN-M, CC-M & UM District	*Ground Signs*	*Window Signs*	*Projecting Signs*	*Wall Signs*	*Marquee Signs*	*Awning or Canopy Signs*
Permitted Illumination	External or Internal	External or Internal	External or Internal	External or Internal	External or Internal	External or Internal

For Signs in the CC-A & CG-A Districts, the following regulations apply:

CC-A & CG-A District	*Ground Signs*	*Window Signs*	*Projecting Signs*	*Wall Signs*	*Marquee Signs*	*Awning or Canopy Signs*
Permitted Signs	Yes	Yes	Yes	Yes	Yes	Yes
Max. # of Signs	See § 1427-25	Unlimited	1 per building frontage per establishment	1 per building frontage per establishment	1 per building frontage per establishment	N/A
Max. Sign Area	72 sq. ft. per sign face	See § 1427-29	28 sq. ft. per sign face	See § 1427-37(a)(3)	See § 1427-37(a)(3)	144 sq. ft.
Max. # of Sign Faces Permitted	2	1	2	1	1	1
Max. Sign Height	15 ft. unless adjacent to and oriented toward an interstate than 40 ft. per 1427-25(g)	See § 1427-29	See § 1427-27	See § 1427-23	Not more than 2 ft. above marquee	N/A
Max. Sign Width	10 ft.	Horizontal limits of the window	See § 1427-27	Horizontal limits of the establishment	Horizontal limits of the marquee	Horizontal limits of the awning or canopy
Min. Setback from any lot line	One-half the height of the sign	N/A	See § 1427-27	N/A	N/A	N/A
Permitted Illumination	External or Internal	External or Internal	External or Internal	External or Internal	External or Internal	External or Internal

(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006; a. Ord. No. 0221-2007, § 8, eff. July 6, 2007; a. Ord. No. 0222-2007, § 1, eff. July 6, 2007)

§ 1427-39. Sign Standards for the M, RF-R, RF-C and RF-M Districts.

Signs in the M, RF-R, RF-C and RF-M Districts must comply with the following:

(a) *Maximum Building Sign Area.* Two square feet for every linear foot of building frontage per establishment. (See § 1427-21)

(b) *Maximum Ground Sign Area.* One square foot for every linear foot of lot frontage per site.

(c) *Changeable Copy Signs.* Changeable Copy Signs are permitted in the M, RF-R, RF-C and RF-M Districts. They may be constructed as ground or wall signs and are subject to all other size regulations for the particular sign type selected. Only one changeable copy sign per site is permitted. A Changeable Copy Sign may not be changed or rearranged at less than a ten second interval and may not include streaming, animating, or flashing text or images.

For Signs in the M, RF-R, RF-C & RF-M Districts, the following regulations apply:

M, RF-C & RF-M District	*Ground Signs*	*Window Signs*	*Projecting Signs*	*Wall Signs*	*Marquee Signs*	*Awning or Canopy Signs*
Permitted Signs	Yes	No	No	Yes	No	No
Max. # of Signs	See § 1427-25	N/A	N/A	1 per building frontage per establishment	N/A	N/A
Max. Sign Area	72 sq. ft. per sign face	N/A	N/A	See § 1427-39(a)	N/A	N/A
Max. # of Sign Faces Permitted	2	N/A	N/A	1	N/A	N/A
Max. Sign Height	15 ft.	N/A	N/A	30 ft.	N/A	N/A

M, RF-C & RF-M District	*Ground Signs*	*Window Signs*	*Projecting Signs*	*Wall Signs*	*Marquee Signs*	*Awning or Canopy Signs*
Max. Sign Width	10 ft.	N/A	N/A	Horizontal limits of the establishment	N/A	N/A
Min. Setback from any lot line	One-half the height of the sign	N/A	N/A	N/A	N/A	N/A
Permitted Illumination	External or Internal	N/A	N/A	External or Internal	N/A	N/A

(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006)

§ 1427-41. Removal of Illegal Signs.

An owner of property where an illegal sign is displayed has the duty to remove all illegal signs. If the Director of Buildings and Inspections finds an illegal sign, the director has the duty to issue an order for the sign to be removed within 60 days. The director has the duty to issue a notice of civil violation to an owner who fails to comply with an order to remove an illegal sign. If the property owner is found guilty of failing to comply with an order to remove an illegal sign, the director has the duty to cause the illegal signs to be removed pursuant to § 1101-73, Removal of Unlawful Signs, of the Cincinnati Building Code.
(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006; Emer. Ord. No. 141-2015, § 36, eff. July 1, 2015)

§ 1427-43. Nonconforming Signs.

A nonconforming sign must be brought into conformity with the provisions of the Cincinnati Zoning Code then in effect if the sign is structurally altered, rebuilt, enlarged, extended, or relocated; or when the principal use of the property is changed from a commercial use to a residential use; provided, however, the repainting or refacing of an existing nonconforming sign is not considered an alteration within the meaning of this section.
(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006)

§ 1427-45. Maintenance, Abandonment and Removal.

All signs must be maintained in a condition or state of equivalent quality to which was approved or required by the City. An on-premise sign advertising an activity, business, service or product must be removed or the sign face replaced with a blank face within 60 days of the activity, business, or service promoted by the sign being discontinued on the premises where the sign is displayed; if the use is not reestablished or a new use is not established within two years and a replacement sign face conforming to this Chapter installed, then the entire sign structure and mounting hardware must be removed.
(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006)

§ 1427-47. Penalties.

See Chapter 1451. Enforcement.
(Ordained by Ord. No. 303-2006, § 1(Exh. A), eff. Nov. 25, 2006)

Chapter 1429

PLANNED DEVELOPMENT DISTRICTS

§ 1429-01. Specific Purposes.
§ 1429-03. Land Use Regulations.
§ 1429-05. Basic Requirements.
§ 1429-07. Establishment of Districts.
§ 1429-09. Concept Plan and Development Program Statement.
§ 1429-11. City Planning Commission and Council Action.
§ 1429-12. Amendments to a Planned Development Concept Plan.
§ 1429-13. Final Development Plan.
§ 1429-15. Planning Commission Approval of Final Development Plan.
§ 1429-16. Concurrent Approval of Concept Plan, Development Program Statement and Final Development Plan.
§ 1429-17. Appeals.
§ 1429-19. Limitation on Final Plan Implementation.
§ 1429-21. Final Development Plan Amendments.
§ 1429-23. Delegation of Duties.

§ 1429-01. Specific Purposes.

In addition to the general purposes listed in Chapter 1400, General Provisions and Rules of Measurement, the specific purposes of the PD Planned Development District are to:

(a) Establish a procedure for the development of land in order to allow for a more efficient and economic development of property than ordinarily permitted by conventional zoning and subdivision regulations.

(b) Ensure orderly and thorough planning and review procedures that lead to quality design and development.

(c) Encourage creativity in developments by allowing greater flexibility in access, light, open space and amenities.

(d) Encourage common open space and provide for its maintenance.

(e) Encourage the coordinated development of properties that might otherwise be developed individually, which may be a detriment to the surrounding neighborhoods and the developer.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1429-03. Land Use Regulations.

Any use authorized by this Cincinnati Zoning Code may be permitted in any specific PD District and located and conducted in accordance with the applicable regulations adopted pursuant to this Chapter to govern each specific PD District.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1429-05. Basic Requirements.

PD Districts and development within PD Districts must comply with the following:

(a) *Minimum Area.* The minimum area of a PD District is 1.5 contiguous acres. Council may approve a PD District that contains less than the minimum acreage required for an area on an affirmative recommendation of the City Planning Commission, finding that special site characteristics exist and the proposed land uses justify development of the property as a PD.

(b) *Ownership.* Evidence that the applicant has sufficient control over the tract of land to effect the proposed plan, including a list of all ownership and beneficial interests in the tract of land and the proposed development.

(c) *Multiple Buildings on a Lot.* More than one building is permitted on a lot.

(d) *Historic Landmarks and Districts.* Whenever a Planned Development application is filed for a property wholly or partially located within a historic landmark, historic district or involving a historic structure, the Historic Conservation Board shall advise the City Planning Commission relating to approval of the Final Development Plan.

(e) *Hillside Overlay Districts.* Whenever a Planned Development application is filed for a property wholly or partially located within a Hillside Overlay District, the City Planning Commission shall approve the Final Development Plan.

(f) *Urban Design Overlay Districts.* Whenever a Planned Development Urban Design Overlay application is filed for a property wholly or partially located within an Urban Design Overlay District, the City Planning Commission shall approve the Final Development Plan.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Emer. Ord. No. 199-2024, § 2, eff. 7-1-2024)

§ 1429-07. Establishment of Districts.

PD districts may be established, modified or removed from the zoning map and the regulations applicable to any specific PD District may be established, modified or deleted as an amendment to the zoning map. A PD District is identified on the zoning map with the letter coding "PD" followed by a specific reference number identifying each separate district. All use regulations, Planned Development Plans, development schedules and other regulatory provisions adopted pursuant to this chapter that apply to any specific PD District, are part of the Cincinnati Zoning Code as if fully set forth in the Cincinnati Zoning Code and identified by reference to the corresponding designation of each specific PD District on the zoning map.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1429-09. Concept Plan and Development Program Statement.

A petition to rezone property to a PD District must have a concept plan and development program statement included. The purpose of the concept plan and development program statement is to describe the proposed use or uses to be conducted in the PD District, including regulations governing permitted uses, conditional uses, site use and development, off-street parking and loading requirements and other special regulations that may be appropriate to govern development, use and maintenance of the site or sites included within the PD District. Applicants are encouraged to engage in informal consultations with the Department of City Planning staff prior to preparing plans; however, no statement or representation by staff is binding on either the department or the City Planning Commission. The concept plan and development program statement must include a text and diagram or diagrams that specify:

(a) *Plan Elements.* A survey of the tract to be developed, providing a metes and bounds description of the property and the survey of property lines and total acreage. Additionally, the plan should include the location in general terms, of land areas to be developed, including: type and description of proposed land uses, buildings and structures; street rights-of-way and driveways; parcel boundaries and proposed lots, including set back lines; building heights; pedestrian circulation systems and open space or other facilities; and proposed topography, drainage, landscaping and buffer plantings.

(b) *Ownership.* Evidence that the applicant has sufficient control over the tract of land to effect the proposed plan, including a list of all ownership and beneficial interests in the tract of land and the proposed development.

(c) *Schedule.* Time schedule of projected development, if the total site is to be developed in phases or if construction is to extend beyond a two year time period.

(d) *Preliminary Reviews.* A preliminary review of geo-technical, sewage, water, drainage and refuse collection.

(e) *Density and Open Space.* Calculations of density and open space area.

(f) *Other Information.* Any other information requested by the Director of City Planning or the City Planning Commission.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; Emer. Ord. No. 141-2015, § 37, eff. July 1, 2015)

§ 1429-11. City Planning Commission and Council Action.

The City Planning Commission has the duty to consider an application for reclassification to a PD District as an amendment to the zoning map and to consider at the same time the proposed concept plan and development program statement. A Commission recommendation to reclassify to a PD District must be accompanied by an approval or a conditional approval of a concept plan and a development program statement.

(a) *City Planning Commission Action.* The City Planning Commission may recommend approval or conditional approval, with restrictions on the establishment of a PD District as the Commission deems necessary for the protection of the public interest and to secure compliance with the development program statement, on finding that all of the following circumstances apply:

(1) The PD concept plan and development program statement are consistent with applicable plans and policies and is compatible with surrounding development;

(2) The PD concept plan and development program statement enhance the potential for superior urban design in comparison with the development under the base district regulations that would apply if the plan were not approved;

(3) Deviations from the base district regulations applicable to the property at the time of the PD application are justified by compensating benefits of the PD concept plan and development program statement; and

(4) The PD concept plan and development program statement includes adequate provisions for utility services, refuse collection, open space, landscaping, buffering, pedestrian circulation, traffic circulation, building design and building location.

(b) *Council Action.* Council has the duty to consider the recommendation of the City Planning Commission in the same manner as a proposal to amend the zone map.

(c) *Lapse of Approvals.* Approval of a concept plan and development program statement lapses two years from its effective date unless:

(1) A final development plan has been approved, or

(2) The City Planning Commission has approved an extension of time that may not exceed one year.

If an approval of a concept plan and development program lapses, the PD District designation is to be removed from the zoning map and the zoning of the PD District reverts to the zoning district designation in effect immediately before the PD designation.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1429-12. Amendments to a Planned Development Concept Plan.

Concept Plans may be amended as follows:

(a) *Minor Amendments.* The Director of City Planning may approve minor amendments provided that they do not change building heights by more than ten percent, floor area by more than five percent, decrease parking spaces by more than ten percent or allow buildings or accessory uses closer to the perimeter property lines.

(b) *Major Amendments.* Amendments to any Concept Plan other than a minor amendment must be approved by the City Planning Commission. Amendments that change the uses allowed or change the density of the development by more than ten percent require approval of the City Planning Commission and Council as a zoning map amendment.

(Ordained by Ord. No. 410-2008, § 1, eff. Jan. 4, 2009)

§ 1429-13. Final Development Plan.

Following approval of a PD District with a concept plan and development program statement, a final development plan must be submitted to the City Planning Commission. A final development plan must be filed for any portion of an approved concept plan that the applicant wishes to develop and this plan has to conform substantially to the approved concept plan and Development Program Statement. The final development plan must include in text and map form:

(a) *Survey.* Plan or survey of the parcel to be developed showing existing and proposed physical features, including: topography, drainage, open space areas and landscaping; and streets, easements and utility lines.

(b) *Site Plan*. A site plan showing the location and arrangement of all existing and proposed structures, including building pads, the proposed internal and external traffic circulation pattern, the areas to be developed for parking, the relationship of abutting land uses and zoning districts, proposed lot lines, building setbacks, proposed sidewalks and pedestrian walkways and proposed public or common open space or other public facilities.

(c) *Engineering Plans*. Engineering plans, including: site grading; street improvements; drainage and utility improvements and extensions as necessary.

(d) *Open Space*. A statement of the anticipated open space, gross density and net density.

(e) *Schematic Building Plans*. Plans showing building footprints, schematic floor plans and exterior elevations and types of building materials.

(f) *Landscape Plans*. Landscaping plans showing the placement of trees, shrubs, ground cover and associated structures and improvements, including specifications, species and quantities.

(g) *Phase Schedule*. A schedule for the development of such phases must be submitted when a development is to be constructed in phases.

(h) *Ownership*. Evidence that the applicant has sufficient control over the tract to effect the proposed plan, including a list of all ownership and beneficial interests in the tract of land and the proposed development.

(i) *Statement of Uses*. A statement identifying the principal uses that are to be included in the proposed development.

(j) *Future Ownership and Control*. Statement on the present and future ownership and control of the development delineating responsibilities of maintenance and upkeep of the buildings, streets, drives, parking areas, utilities, common areas and common facilities.

(k) *Restrictive Covenants*. Copies of any restrictive covenants that are to be recorded with respect to property included in the PD District.

(l) *Other Information*. Any other information requested by the Director of City Planning or the City Planning Commission as deemed necessary.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; Emer. Ord. No. 141-2015, § 38, eff. July 1, 2015)

§ 1429-15. Planning Commission Approval of Final Development Plan.

The City Planning Commission may approve a final development plan for a development in a PD District on consideration of the following:

(a) *Consistency*. The final development plan is consistent with the purpose of the Planned Development District Regulations;

(b) *Adequate Streets*. The existing and proposed internal and external streets are adequate to serve the proposed development and properly interconnect with the surrounding existing road network;

(c) *Adequate Infrastructure*. The proposed infrastructure, utilities and all other proposed facilities are adequate to serve the planned development and properly interconnect with existing public facilities;

(d) *Covenant*. The Department of City Planning must require covenants by the owner of the property in a form acceptable to the City Solicitor to be recorded indicating that the open spaces, parking areas, walks and drives as shown on the plan may not be used for any other purpose. The owner must further covenant that all streets, common areas, common utilities and other common facilities remain in common ownership by all owners of any interest in the land or buildings in the Planned Development other than a leasehold interest of less than five years. (See § 1441-07).

(e) *Release of Covenants*. The City Manager, on receipt of a recommendation from the Director of City Planning, may recommend the covenant be terminated in the

following instances: the particular use requiring a covenant is no longer necessary and the building permits have been terminated, or the condition or conditions requiring such covenant are no longer applicable.

(f) *Compatibility*. The proposed uses, location and arrangement of structures, lots, parking areas, walks, open spaces, landscaping, lighting and appurtenant facilities are compatible with the surrounding land uses;

(g) *Sufficiency of Legal Documents*. Proposed covenants, easements and other provisions meet development standards; and

(h) *Sufficiency of Provisions for Maintenance of Common Areas*. Open space and common areas are identified and provisions have been made for the care and maintenance of such areas.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; Emer. Ord. No. 141-2015, § 39, eff. July 1, 2015)

§ 1429-16. Concurrent Approval of Concept Plan, Development Program Statement and Final Development Plan.

The City Planning Commission may review and approve the Concept Plan, Development Program Statement and the Final Development Plan concurrently, provided that the applicant meets the submission requirements of both the Concept Plan and the Final Development Plan. The Planning Commission's approval of the Final Development Plan is contingent on the applicant obtaining City Council's approval of the Planned Development map amendment without changes.

(Ordained by Ord. No. 411-2008, § 1, eff. Jan. 4, 2009)

§ 1429-17. Appeals.

The City Planning Commission's approval or denial of a request for renewal, revision or approval of a final development plan is subject to appeal to the Hamilton County Court of Common Pleas in the manner provided by law.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 299-2009, § 1, eff. Dec. 12, 2009; a. Emer. Ord. No. 199-2024, § 2, eff. 7-1-2024)

§ 1429-19. Limitation on Final Plan Implementation.

Final development plans are subject to the following:

(a) *Expiration.* A final development plan is effective on the date approved by the City Planning Commission and expires after two years unless a building permit has been issued and construction diligently pursued. An approved final development plan may specify a development staging program exceeding two years.

(b) *Renewal.* The City Planning Commission may renew a final development plan for one year subject to a reevaluation of conditions of approval as specified in the decision or renewal application, if it finds the renewal consistent with the purposes of this chapter. Application for renewal must be made in writing to the Director of City Planning not less than 30 days nor more than 120 days prior to expiration.

(c) *Reversion to Prior Zoning.* If a building permit has not been issued and construction diligently pursued, or a renewal approved within two years of the effective date of approval by the City Planning Commission, the PD District designation is to be removed from the zoning map and the zoning of the PD District revert to the zoning district designation in effect immediately before the PD designation.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; Emer. Ord. No. 141-2015, § 40, eff. July 1, 2015)

§ 1429-21. Final Development Plan Amendments.

Final development plans may be amended as follows:

(a) *Minor Amendments.* The City Planning Commission may authorize minor adjustments in the final development plan that become necessary because of field conditions, detailed engineering data, topography or critical design criteria. More specifically, the City Planning Commission may authorize the Director of City Planning to approve these minor adjustments to revise size and location of drainage ways, sewers, roadways, retaining walls or similar features and to substitute landscape materials in light of technical or engineering considerations. The Director of City Planning may also authorize structural dimensional changes provided that they do not increase building heights by more than 15 feet, gross floor area by more than five percent, decrease the number of parking spaces by more than ten percent or allow buildings closer to perimeter property lines.

(b) *Major Amendments.* Amendments to any final development plan other than a minor amendment may be approved only by the City Planning Commission, provided, however, that the City Planning Commission determines that such adjustments do not substantially alter the concept or intent of the approved final development plan. Amendments that change the uses allowed or materially change the density of the development require approval of Council as a zoning map amendment.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0346-2007, § 13, eff. Oct. 13, 2007; Emer. Ord. No. 141-2015, § 41, eff. July 1, 2015)

§ 1429-23. Delegation of Duties.

The Director of City Planning may designate a person to perform the duties imposed on the director by this chapter if the director would have a conflict of interest or appearance thereof or if such appointment is necessary for the efficient operation of the department.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; Emer. Ord. No. 141-2015, § 42, eff. July 1, 2015)

Chapter 1431

INTERIM DEVELOPMENT CONTROL OVERLAY DISTRICTS

§ 1431-01. Purpose.
§ 1431-03. Applicability and Zoning Map Designator.
§ 1431-05. Establishment of IDC Overlay Districts.
§ 1431-07. IDC Application Review Guidelines.
§ 1431-09. Three-Month IDC Overlay Districts.
§ 1431-11. One-Year IDC Overlay Districts.
§ 1431-13. Extension of IDC Overlay Districts.
§ 1431-15. Applications Subject to Review.
§ 1431-17. Standards for Review.
§ 1431-19. Review of Permit Applications.
§ 1431-21. Appeals.

§ 1431-01. Purpose.

The purpose of the Interim Development Control (IDC) Overlay District is to temporarily regulate the establishment of uses, construction of new buildings and demolition or alteration of existing structures in areas where potential development could be detrimental or have adverse impacts on the implementation of approved amendments to the Cincinnati Zoning Code, approved or adopted plans, or current planning, land use or zoning studies.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; Emer. Ord. No. 218-2012, § 1, eff. June 20, 2012)

§ 1431-03. Applicability and Zoning Map Designator.

An IDC Overlay District may be applied to any district. It is adopted as an amendment to the Zoning Map. This Overlay District is shown on the zoning map by an IDC designator applied to the base district designation. Where inconsistencies exist between the IDC Overlay District regulations and other provisions of the Cincinnati Zoning Code and the Municipal Code, the IDC Overlay District regulations apply.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1431-05. Establishment of IDC Overlay Districts.

After receiving an affirmative recommendation from the City Planning Commission, Council may establish an IDC Overlay District on finding that:

(a) *Proposed Amendments.* Amendments to the Cincinnati Zoning Code have been approved or are under consideration through the following actions:

(1) The City Planning Commission has approved amendments to the Cincinnati Zoning Code; or

(2) The City Planning Commission has approved or adopted a comprehensive plan, community plan, urban design, urban renewal plan or other planning document which contains recommendations to amend the Cincinnati Zoning Code; or

(3) The City Planning Commission, City Council or the City Manager has directed city administration to study planning, land use or zoning issues in the proposed IDC Overlay District boundary.

(b) *Study and Review.* The proposed amendments may substantially affect permitted uses in the area of consideration and will require the study and review by the City Planning Commission, city administration and Council prior to adoption; and

(c) *Public Interest.* The protection of the public interest requires that interim development controls be imposed during the period of study and review by the City Planning Commission.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; Emer. Ord. No. 218-2012, § 1, eff. June 20, 2012)

§ 1431-07. IDC Application Review Guidelines.

The ordinance to adopt an IDC Overlay District must:

(a) *Applications Subject to Review.* Specify which of the following permit applications are to be reviewed by the City Planning Commission. The applications may include:

(1) Building permits for new construction, demolition of existing structures, exterior or interior alterations or additions to existing structures and changes in use.

(2) Building permits for signs.

(3) Building permits for site improvements.

(4) Permits for the construction or reconstruction of streets or sidewalks.

(5) Subdivision improvement plans.

(6) Excavation and fill permits.

(7) Certificate of Compliance.

(b) *Application Review Guidelines.* Adopt application review guidelines for each application subject to review specified in § 1431-15 for the purposes of providing the City Planning Commission with criteria for the exercise of its authority, as granted in this chapter.

[(c)] *Administrative Review.* Designate the city department, division, or official responsible for conducting the administrative review of these applications.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1431-09. Three-Month IDC Overlay Districts.

Council may establish IDC Overlay Districts to remain in effect for three months without prior notice, advertisement or public hearing. The Director of City Planning has the duty to give notice of the establishment of the district and the time and place of a public hearing on the extension of the district for an additional nine-month period within ten business days of the establishment of an IDC Overlay District, by placing an advertisement in a newspaper of general circulation and, if less than 100 parcels of property are within the district, by sending the notice to all owners of record.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; Emer. Ord. No. 141-2015, § 43, eff. July 1, 2015)

§ 1431-11. One-Year IDC Overlay Districts.

Council may establish IDC Overlay Districts to remain in effect for one year, or extend IDC Overlay Districts established pursuant to § 1431-09 for nine additional months if notice has been given and a public hearing held in accordance with § 111-1, Hearings on Zoning Amendments, of the Municipal Code and on finding that:

(a) *Ongoing Study.* The City Planning Commission is studying proposed Cincinnati Zoning Code or map amendments that would affect the area within the IDC District;

(b) *Study Completion.* The study is not yet completed, but may reasonably be expected to be completed and Cincinnati Zoning Code amendments enacted within the year; and

(c) *Inconsistent Uses.* There is a prospect of changes in use, construction of new structures or alteration or demolition of existing structures that would be inconsistent with preliminary objectives or findings for the area approved by the City Planning Commission.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1431-13. Extension of IDC Overlay Districts.

Council may extend the duration of an IDC Overlay District by an additional six months, provided that an IDC Overlay District may not remain in effect for more than two years from the date it was first established. Notice is to be given and a public hearing held in accordance with § 111-1, Hearings on Zoning Amendments, of the Municipal Code prior to the adoption of

any IDC Overlay District extension. Council may only adopt an IDC Overlay District extension after receiving an affirmative recommendation from the City Planning Commission and finding that:

(a) *Complex Study.* The study of the proposed amendment to the Cincinnati Zoning Code or map that would affect the allowable land uses within the IDC Overlay District has proven to be extraordinarily complex by reason of unusual geographic, physical or social conditions in the district;

(b) *Study Incomplete.* The City Planning Commission has not yet completed the consideration of the proposed Cincinnati Zoning Code map amendments that would affect the allowable land uses within the IDC Overlay District; and

(c) *Inconsistent Uses.* There is a prospect of change in use, construction of new structures or alteration or demolition of existing structures that would be inconsistent with preliminary objectives or findings for the area approved by the City Planning Commission.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1431-15. Applications Subject to Review.

The City Planning Commission has the duty to review applications in an established IDC Overlay District as specified in the ordinance that enacted the IDC Overlay District.

A permit made subject to review pursuant to the ordinance establishing the IDC District may not be issued unless approved by the City Planning Commission.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1431-17. Standards for Review.

The administrative reviewer appointed pursuant to subparagraph 1431-7(c) has the duty to prepare an advisory report that evaluates whether the proposed work is in compliance with the application review guidelines adopted. The administrative reviewer has the duty to file the report with the City Planning Commission within 30 business days of the date of application.

The City Planning Commission may approve applications in an established IDC Overlay District if the proposed work is in compliance with the application review guidelines adopted pursuant to subparagraph 1431-7(b), on finding that:

(a) *Proposed Work Permitted by Current and Proposed Zoning.* The proposed work is permitted or conditionally permitted in the base district, conforms to all standards and performance criteria of the Cincinnati Zoning Code and does not conflict with any proposed amendment to the Cincinnati Zoning Code then under consideration by the City Planning Commission or Council.

(b) *Proposed Work Compatibility.* The proposed work is compatible with the predominant or prevailing land use, building and structure patterns in the surrounding neighborhood and community.

(c) *No Detrimental Effect to the Public.* The proposed work is not detrimental to the public peace, health, safety or general welfare.

(d) *No Adverse Effect on Adjoining Properties.* The proposed work has no adverse effect on the access to the property for fire and police protection and adequate public facilities and

services, access to light and air from adjoining properties, traffic conditions, transportation requirements and facilities or development and use of adjacent land, structures and buildings.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 253-2005, eff. July 21, 2005)

§ 1431-19. Review of Permit Applications.

After receiving an advisory report from the administrative reviewer, the City Planning Commission has the duty to consider applications for permits as follows:

(a) *Public Hearing.* The City Planning Commission has the duty to hold a public hearing on the application at a regularly scheduled Commission meeting within 30 days of acceptance of the advisory report prepared pursuant to § 1431-17. Notice of the hearing must be sent to the applicant, owners of record of adjoining properties and any person requesting notice. Notice must be published in the City Bulletin in advance of the hearing. Testimony at the hearing will be taken under oath and recorded and the reviewer responsible for preparing the advisory report must appear. The applicant is permitted to be heard in person or through an attorney and may present evidence and cross-examine opposing witnesses.

(b) *Exceptions From Underlying Zone District Regulations.* The City Planning Commission may grant exceptions from the underlying zone district regulations other than those relating to use, maximum number of dwelling units and maximum floor area ratio, when the exceptions are consistent with the application review guidelines adopted pursuant to § 1431-07 and the standards for review set forth in § 1431-17.

(c) *Decision of The City Planning Commission.* The City Planning Commission has the duty to make a decision on the application within 14 days of the close of the public hearing. The application may be approved, subject to conditions necessary to ensure that the development plan is lawful and in the public interest. If the application is disapproved, the reasons must be stated in writing as findings of fact and conclusions of law. The failure of the proposed work to conform with any single factor is not necessarily a sufficient basis for denial. The City Planning Commission has the duty to approve an application that maximizes both the public interest and private benefits generally. The City Planning Commission has the duty to send its conclusions to the applicant, appropriate city officials and others who request a copy.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 253-2005, eff. July 21, 2005)

§ 1431-21. Appeals.

Any adversely affected person may appeal a decision of the City Planning Commission made pursuant to this chapter to Council pursuant to the provisions of § 111-3, Appeals to Council, of the Municipal Code. The notice of appeal must be filed with the Clerk of Council within 30 days of the mailing of the City Planning Commission's decision to the applicant. Those "adversely affected" include the applicant or any other person, organization or association, who appeared before the City Planning Commission personally, by representative or in writing and expressed a position contrary to the decision of the City Planning Commission.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

Chapter 1433

HILLSIDE OVERLAY DISTRICTS

§ 1433-01. Specific Purposes.
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§ 1433-03-B. Brow.
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§ 1433-03-I. 1980 Inventory of Hamilton County Soils.
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§ 1433-03-L. Landslide Indicia.
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§ 1433-03-S. Slope.
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§ 1433-11. Exempt Permits.
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§ 1433-19. Base Development Requirements.
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§ 1433-23. Hillside Development Standards.
§ 1433-25. Appeal.

§ 1433-01. Specific Purposes.

The purpose of the Hillside Overlay District regulations is to establish standards to assist in the development of land and structures in existing hillside areas and procedures for the review of proposed development, so that development will be compatible with the natural environment and respect the quality of the urban environment in those locations where the hillsides are of significant public value. These regulations are intended to prevent damage to the City's hillsides by minimizing:

(a) Blighting influences caused by the application of conventional land use regulations to lots in areas having sensitive environmental qualities.

(b) Unstable land.

(c) Significant damage to or destruction of hillsides or valleys.

(d) Significant damage to the economic value and efficiency of operation of existing properties or new developments due to the interdependence of their visual and functional relationships.

(e) Soil erosion and stream siltation.

(f) Destruction of mature trees and existing vegetation.

In hillside areas, the existence of a 20 percent slope, in combination with the KOPE geologic formation, is evidence of a condition of natural critical stability and development under conventional regulations may precipitate landslides or excessive soil erosion. The additional regulations embodied in the Hillside District are needed to respect the contours and views of the hills for all equally, not for the sole benefit of a few individuals.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1433-03. Definitions.

For purposes of this chapter, words and phrases defined below have the meanings ascribed to them; additional definitions are in Chapter 1401, Definitions.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1433-03-B. Brow.

"Brow" means a brow of the hill that is the separator between the hilltop that is level or gently sloping and the hillside that is steeply sloped.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1433-03-C. Cincinnati Hillside Development Guidelines.

"Cincinnati Hillside Development Guidelines" means the guidelines prepared in 1975 by the Cincinnati Institute for the City Planning Commission which are adopted as an appendix to this chapter. These guidelines are for the evaluation of proposed projects within adopted Hillside Overlay Districts.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1433-03-C2. Colluvium.

"Colluvium" means soil material, rock fragments or both, moved by creep, slide or local wash deposited on or at the base of hillside slopes.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1433-03-H. Hillside Study.

"Hillside Study" means the report prepared by the City Planning Commission in 1969 for general public distribution; this study identified the 23 critical hillsides within the City of Cincinnati, their natural characteristics and general suitability for development.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1433-03-I. 1980 Inventory of Hamilton County Soils.

"1980 Inventory of Hamilton County Soils" means the report prepared by the Ohio Department of Natural Resources Division of Lands and Soil in conjunction with the Soil Conservation Service of the U.S. Department of Agriculture. This study may be used to evaluate the impact and feasibility of development.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1433-03-K. KOPE Formation.

"KOPE formation" means the shale bedrock that is overlaid by colluvium soils. (See § 1433-03-C2). The colluvium forms a deposit that is thin on the steeper, higher slopes and gradually becomes thicker near the bottom of the hill. Landslides may occur in the colluvium, because the colluvium is derived from the weathering of bedrock.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1433-03-L. Landslide Indicia.

"Landslide Indicia" means geographical contour information included in the Cincinnati Area Geographic Information System (CAGIS) that illustrates both the degree of slope (See § 1433-03-S) as well as irregularities, the presence of which indicate existing or potential landslides. Primary examples of irregularities include:

(a) A significant variation in the degree of slope within a given hillside, and

(b) Very closely spaced contours, particularly near the bottom of a slope.

Either of these characteristics may indicate existing or dormant landslides. These characteristics, when combined with the soil type provide a basis for identifying hillsides where site-specific geotechnical investigations are needed.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1433-03-L1. Landslide Susceptible Soils.

"Landslide Susceptible Soils" means a soil of any of the following types when found on slopes of 20 percent or steeper. (See 1980 Inventory of Hamilton County Soils and Landslide Susceptibility Study and Map).

(a) Bonnell Silt Loam

(b) Casco Loam

(c) Eden Silty Clay Loam

(d) Hennepin Silt Loam

(e) Markland Silty Clay Loam

(f) Miamian-Hennepen Silt Loam

(g) Pate Silty Clay Loam

(h) Switzerland Silt Loam

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1433-03-L2. Landslide Susceptibility Study and Map.

"Landslide Susceptibility Study and Map" means the study and map prepared in 1980 by the consulting firm of Sowers and Dalrymple for the Department of Transportation and Engineering. This map, which divides the City of Cincinnati into four categories of landslide susceptibility, is also used to determine the need for further geotechnical investigation. Low, moderate, moderately high and high landslide susceptibility categories are used in the determination of HS overlay district boundaries.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1433-03-S. Slope.

Slope means the inclination of the land surface from the horizontal. Percentage of slope is the vertical distance divided by horizontal distance, then multiplied by 100. Thus, a slope of 20 percent is a rise of 20 feet in 100 feet of horizontal distance.

$$\text{Slope(s)} = \frac{\text{difference between contour elevation (rise)}}{} \times 100$$

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1433-05. HS Zoning Map Designator.

A Hillside Overlay District is shown on the zoning map by a HS designator applied to the base district designation. This designation is based upon a moderately high or high landslide susceptibility pursuant to the landslide susceptibility study and map: Any real property either whole or in part within said moderately high or high susceptibility areas should be classified as being within a HS District.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1433-07. Applicability.

Except as otherwise provided in this chapter, all regulations of the underlying zone districts and other applicable overlay districts apply to and control property in an HS District; provided, however, that in the case of conflict between the provisions of an underlying zoning district and the HS District, the provisions of the HS District govern.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1433-09. Criteria for Establishment of an HS District.

Council may establish HS Districts to include at least 50 percent of its area within one or more of the 23 hillside areas listed in the Hillside Study. The area with a HS overlay district must contain four of the following seven characteristics:

(a) Slopes of 20 percent or greater;

(b) Existence of KOPE geologic formations;

(c) A minimum of one acre of contiguous land area;

(d) Prominent hillsides that are readily visible from a public thoroughfare located in a valley below a hillside;

(e) Hillsides that provide views of a major stream or valley;

(f) Hillsides functioning as community separators or community boundaries as identified in a community plan accepted and approved by the City Planning Commission; and

(g) Hillsides that support a substantial natural wooded cover.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1433-11. Exempt Permits.

The following are exempt from the provisions of this chapter:

(a) Permits for roof, gutter and chimney repair or replacement, plumbing, heating, air conditioning, elevators, fire alarms and extinguishing equipment and all other mechanical and electrical equipment.

(b) Permits necessary for compliance with retroactive provisions of the Cincinnati Building Code.

(c) Permits necessary for compliance with a lawful order of the Director of Buildings and Inspections, including deficiencies listed in Certificates of Inspection.

(d) Permits necessary to ensure the immediate public health or safety.

(e) Building permits for interior alterations and repairs, demolition or wrecking, driveways, fences and signs.

(f) Permits for construction of public utilities in the public right-of-way.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1433-13. Applications Subject to Review.

The Zoning Administrator has the duty to review the following permits in an established HS District for compliance with the base requirements of this district.

(a) *New Buildings.* Permits for construction of new primary buildings and accessory structures larger than 600 square feet in area or 15 feet in height.

(b) *Alterations to Residential Buildings.* Permits for alterations, additions and repairs to the exterior of residential buildings that result in an increase of dwelling units or exceeds the maximum building envelope.

(c) *Alterations to Non-Residential Buildings.* Permits for alterations, additions and repairs to the exterior of all non-residential buildings in which the estimated improvement costs exceed $5,000;

(d) *Excavation and Fill Permits.* Permits for excavation and fill.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; Emer. Ord. No. 141-2015, § 44, eff. July 1, 2015)

§ 1433-15. Application Requirements.

In addition to the requirements for applications established in Chapter 1441, Application Procedures, Fees, Permits and Certificates, applications for development in the HS District that are not exempt under § 1433-11 must include:

(a) A development plan, accompanied by a property survey, showing existing vegetation and proposed development, and where applicable, streets, drives, parking areas, walkways, heights of structure(s), location of structures, elevation and setback of proposed buildings, drainage, existing contours and proposed grading and new landscaping plans, proposed uses and square footage of uses and recreational facilities;

(b) A preliminary geotechnical evaluation;

(c) A determination of the maximum building envelope;

(d) Average slope/grade of the property; and

(e) Graphic illustrations demonstrating that the proposed improvement or new structure has not exceeded the maximum building envelope.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1433-17. Determination of Maximum Building Envelope.

Each applicant must establish a maximum building volume area to determine the size of a structure that can be built on the site by calculating the following in accordance with the rules of measurement set forth in Chapter 1400:

(a) *HS Rear Yard Setback.* Average rear yard setback of abutting structures on both sides; or the required rear yard setback of the underlying district if no abutting structure(s) exists.

(b) *HS Side Yard Setback.* Average side yard setback of abutting structures on both sides; or the required least width side yard setback of the underlying district if no abutting structure(s) exists.

(c) *HS Front Yard Setback.* Average front yard setback of abutting structures on both sides; or the required front yard setback of the underlying district if no abutting structure(s) exists.

(d) *HS Height of Front.* Maximum height of the front of the structure; either the maximum height of the underlying zoning district or the average height of the front of abutting structures having the same street frontage as measured from the finished grade of the front of each abutting structure, whichever is greater.

(e) *HS Height of Rear.* Maximum height of the rear of the structure; either the maximum height of the underlying zoning district or the average height of the rear of abutting structures having the same street frontage as measured from the average grade, whichever is greater.

The maximum building envelope is the solid defined by vertical planes constructed at the HS rear, side and front yard setbacks and the plane between the HS height of front and the HS height of rear.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 158-2008, § 1, eff. June 7, 2008)

§ 1433-19. Base Development Requirements.

An application subject to review must comply with the following requirements:

(a) *Maximum Building Envelope.* A new building or a building alteration, addition or repair must be contained within the maximum building envelope.

(b) *Height Versus Width.* Buildings proposed on top of the hillside must be taller than wider to accentuate the vertical dimension.

(c) *Stepping.* Buildings proposed below or above the brow of the hill must be staggered or stepped in depth and width to match topography and slope.

(d) *Maximum Retaining Wall Height.* Retaining walls may not exceed eight feet in height.

(e) *Rooftop Utilities.* Rooftop utilities and mechanical equipment should be avoided. If rooftop utilities and mechanical equipment are necessary, screening and sound control must be provided to integrate them into the rooftop.

(f) *Landscaping of Pervious Surfaces.* All pervious surfaces remaining after completion of construction must be landscaped in trees, shrubs, grass or other ground covers to promote hillside stability and reduce excessive water runoff.

(g) Excavation and fills should not exceed eight feet in cumulative height. Excavation and/or fill of any height or cumulative amount that is not tied to a specific development is expressly prohibited. Regardless of height, documentation must be provided to show the excavation and/or fill is necessary to support a specific development and a staff review is required to determine conformance with all requirements of this chapter.

(h) The preliminary geotechnical evaluation should address relative hillside stability.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 412-2008, § 1, eff. Jan. 4, 2009)

§ 1433-21. Approval.

(a) If the Zoning Administrator determines the application conforms to the requirements of § 1433-19 and the requirements of this chapter and all other requirements of the Cincinnati Zoning Code, the Zoning Administrator has the duty to approve a building permit for the proposed work. The Zoning Administrator has the duty to notify all owners of property abutting the subject property and the community organization recognized by the Council as representing the area that includes the subject property.

(b) If the Zoning Administrator determines the application does not conform to the requirements of § 1433-19, a hearing and decision by the Zoning Hearing Examiner is required, pursuant to Chapter 1443, Zoning Hearing Examiner Procedures, prior to the issuance of a building permit.

(c) The Zoning Hearing Examiner may approve, approve with conditions or disapprove an application for development in the HS District based on written findings in accordance with § 1433-23, Hillside Development Standards.

(d) The City Planning Commission is authorized to exercise the powers granted to the Zoning Hearing Examiner pursuant to Chapter 1443 when an application is submitted in connection with an application to subdivide land.

(e) The Historic Conservation Board is authorized to exercise the powers granted to the Zoning Hearing Examiner pursuant to Chapter 1443 when an application relates to property wholly or partially located within a Historic District or involving a Historic Asset.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; Emer. Ord. No. 141-2015, § 45, eff. July 1, 2015; a. Ord. No. 0050-2019, §§ 7, 8, eff. 2-6-2019)

§ 1433-23. Hillside Development Standards.

In addition to the Base Development Requirements of § 1433-19, the Zoning Hearing Examiner must consider the following standards to ensure harmonious relationships with adjacent buildings and the hillside environment:

(a) Avoid cuts in the hillside if they would leave cliff-like vertical slopes and excessively high retaining walls.

(b) Design buildings to fit into the hillside rather than altering the hillside to fit the buildings.

(c) Hillside development should be designed to minimize excavation required for foundations, parking and access drives.

(d) Cluster new development to retain surrounding tree cover and minimize alterations to the existing topography.

(e) Maintain a clear sense of the hillside brow by locating buildings back from the brow of the hill.

(f) Site buildings so as to respect views from public viewing places within the HS District identified in a community plan or other documentation approved by the City Planning Commission.

(g) Where applicable, consider the guidelines contained in the "Cincinnati Hillside Development Guidelines" report to evaluate development applications.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1433-25. Appeal.

Any party with standing may, pursuant to Chapter 1449, Zoning Board of Appeals, appeal to the Zoning Board of Appeals within 30 days after the decision of the Zoning Hearing Examiner.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

Chapter 1435

HISTORIC PRESERVATION*

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*__Editor's note—__Ord. No. 217-2012, § 1, effective July 20, 2012, repealed Ch. 1435 and enacted a new chapter as set out herein. The former Ch. 1435, §§ 1435-01—1435-39, pertained to historic landmarks and districts and derived from Ord. No. 15-2004, effective Feb. 13, 2004; and Ord. No. 254-2005, effective July 21, 2005.

§ 1435-01. Definitions.

For purposes of this chapter, the following words have the following meanings:
(Ordained by Ord. No. 217-2012, § 1, eff. July 20, 2012)

§ 1435-01-A. Adversely Affected Person.

"Adversely Affected Person" means the applicant, property owner, or any other person, organization, association, entity, or city official who has appeared before the Historic Conservation Board personally, by representative, or in writing on a matter affecting such party, or who has attended a pre-hearing conference on a matter affecting such party.
(Ordained by Ord. No. 217-2012, § 1, eff. July 20, 2012)

§ 1435-01-A1. Alteration.

"Alteration" means a material change to the exterior of a Historic Asset, and/or a material change in the interior of a Historic Asset when and to the extent that its interior features are specifically included in the historic designation to which it is relevant or when such change to the interior threatens the structural integrity of the Historic Asset. In addition to the foregoing, alterations shall also include improvements to any property within a Historic District, including, but not limited to, construction of any building, fence, or other permanent structure, including infill development, and changes to a Historic Site other than to Historic Structures, where the character of a Historic Site is materially altered by excavation, earthwork, tree removal, or the introduction of objects or improvements.
(Ordained by Ord. No. 217-2012, § 1, eff. July 20, 2012)

§ 1435-01-C. Certificate of Appropriateness.

A "Certificate of Appropriateness" means a certificate issued by the Historic Conservation Board or Urban Conservator, as applicable, indicating that a proposed alteration or demolition is in accordance with the provisions of this chapter
(Ordained by Ord. No. 217-2012, § 1, eff. July 20, 2012)

§ 1435-01-D. Demolition.

"Demolition" means any act or process that razes, removes, or destroys, in whole or in part a Historic Asset or non-contributing structure, or the substantial deterioration of a Historic Asset or non-contributing structure.
(Ordained by Ord. No. 217-2012, § 1, eff. July 20, 2012)

§ 1435-01-H. Historic Asset.

"Historic Asset" includes the following: (i) a Historic Structure within a Historic District; (ii) a Historic Landmark; or (iii) a Historic Site.
(Ordained by Ord. No. 217-2012, § 1, eff. July 20, 2012)

§ 1435-01-H1. Historic District.

"Historic District" means an identifiable area comprised of two or more parcels and containing two or more Historic Assets typical of one or more eras in the city's history, or representing an assemblage of structures important to the city's history that is designated as such pursuant to the provisions of this chapter.
(Ordained by Ord. No. 217-2012, § 1, eff. July 20, 2012)

§ 1435-01-H2. Historic Landmark.

"Historic Landmark" means a Historic Structure or Historic Structures located on a single parcel or contiguous parcels that is designated as such pursuant to the provisions of this chapter.
(Ordained by Ord. No. 217-2012, § 1, eff. July 20, 2012)

§ 1435-01-H3. Historic Significance.

"Historic Significance" means: (a) the attributes or characteristics of a district, site or structure that possess integrity of location, design, setting, materials, workmanship, feeling and association; (b) a district, site or structure that is associated with events that have made a contribution to the broad patterns of our history; (c) a district, site or structure that is associated with the lives of persons significant in the past; (d) a district, site or structure that embodies the distinctive characteristics of a type, period or method of construction; (e) a district, site or structure that represents a significant and distinguishable entity whose components may lack individual distinction; or (f) a district, site or structure that has yielded, or may be likely to yield, information important in prehistory or history.
(Ordained by Ord. No. 217-2012, § 1, eff. July 20, 2012)

§ 1435-01-H4. Historic Site.

"Historic Site" means real property on which a Historic Structure is located or on which there is no structure but that is itself of Historic Significance and that is designated as such pursuant to the provisions of this chapter.
(Ordained by Ord. No. 217-2012, § 1, eff. July 20, 2012)

§ 1435-01-H5. Historic Structure.

"Historic Structure" means an improvement to real property that has Historic Significance.
(Ordained by Ord. No. 217-2012, § 1, eff. July 20, 2012)

§ 1435-01-N1. Non-Contributing Structure.

A "Non-Contributing Structure" is a structure located within a Historic District or Historic Site, or that is associated with a Historic Landmark, that does not have Historic Significance.
(Ordained by Ord. No. 217-2012, § 1, eff. July 20, 2012)

§ 1435-03. Specific Purposes and Intent.

The specific purposes and intent of the provisions of this chapter are as follows:

(a) Historic preservation;

(b) To promote the public health, safety and welfare;

(c) To foster the beauty of the city;

(d) To stabilize and increase property values;

(e) To strengthen the local economy;

(f) To maintain and enhance the distinctive character of historic buildings and areas;

(g) To safeguard the heritage of the city by preserving districts and landmarks which reflect elements of its history, architecture, archaeology, engineering or culture;

(h) To protect and enhance the city's attractions to current and prospective residents, businesses and tourists;

(i) To facilitate reinvestment in and revitalization of certain districts and neighborhoods;

(j) To facilitate and encourage economic development, public and private investment, and tourism in the city;

(k) To conserve valuable material and energy resources by ongoing use and maintenance of the existing built environment; and

(l) To maintain the historic urban fabric of the city.

(Ordained by Ord. No. 217-2012, § 1, eff. July 20, 2012)

§ 1435-05. Administration.

The following provisions are for the administration of the regulations set forth in this Chapter 1435.

(Ordained by Ord. No. 217-2012, § 1, eff. July 20, 2012)

§ 1435-05-1. Applicability.

Except as otherwise provided in Section 1435-11 and Section 1435-05-7 below, all regulations of the underlying zone districts and other applicable overlay districts apply to and control property in a Historic District or for a Historic Asset; provided, however, that in the case of conflict between the provisions of the underlying zone district, other applicable overlay districts, and the regulations of Chapter 1435, the provisions of this Chapter 1435 shall govern.

(Ordained by Ord. No. 217-2012, § 1, eff. July 20, 2012; a. Emer. Ord. No. 199-2024, § 2, eff. 7-1-2024)

§ 1435-05-2. Urban Conservator.

The position of Urban Conservator is established pursuant to Article XXI, §4 of the City of Cincinnati Administrative Code. The Urban Conservator has the duty to administer the city's historic preservation regulations; maintain and administer the city's historic inventory and conservation guidelines; and review and consider the appropriateness of alterations and demolitions of the city's historic assets and properties located within historic districts, which includes the duty to facilitate the processing of certificates of appropriateness.

(Ordained by Ord. No. 217-2012, § 1, eff. July 20, 2012; Emer. Ord. No. 141-2015, § 46, eff. July 1, 2015)

§ 1435-05-3. Historic Conservation Board.

The Historic Conservation Board is established pursuant to Article XXX, §4 of the City of Cincinnati Administrative Code. In addition to its duties in this Chapter 1435, the Board shall work with city departments and assist departments in recommendations to Council on methods of financing public improvements in Historic Districts if those improvements require additional expenditures as a result of historic design. Any such recommendation shall be advisory only and shall not be binding or appealable by any party. All interested city departments may likewise consult with the Urban Conservator.
(Ordained by Ord. No. 217-2012, § 1, eff. July 20, 2012; Emer. Ord. No. 141-2015, § 47, eff. July 1, 2015)

§ 1435-05-4. Variances, Special Exceptions and Conditional Uses.

Whenever an application is made for a variance, special exception or conditional use relating to property wholly or partially located within a Historic District or involving a Historic Asset, the Historic Conservation Board exercises the authority granted to the Zoning Hearing Examiner in Chapter 1445 of the Cincinnati Zoning Code. In such cases, the provisions of Chapter 1445, where not inconsistent with the provisions of this chapter, apply to the exercise of the authority prescribed therein.

The Historic Conservation Board may grant such conditional use or special exception or variance from the regulations when it finds such relief from the literal implication of the Zoning Code will not be materially detrimental to the public health, safety, and welfare or injurious to property in the district or vicinity where the property is located and either:

(a) Is necessary and appropriate in the interest of historic conservation so as not to adversely affect the historic architectural or aesthetic integrity of the Historic District or Historic Asset; or

(b) Is necessary where the denial thereof would result in a deprivation of all economically viable use of the property as viewed in its entirety. In making such determination, the Historic Conservation Board may consider the factors set forth in Section 1435-09-2(aa)—(ff) below.

(Ordained by Ord. No. 217-2012, § 1, eff. July 20, 2012)

§ 1435-05-5. Appeals.

Any Adversely Affected Person may appeal a decision of the Historic Conservation Board or the Urban Conservator, as applicable, made under this Chapter 1435 to the Zoning Board of Appeals pursuant to Zoning Code Chapter 1449. Notwithstanding anything to the contrary contained in this Chapter 1435 or Chapter 1449, all appeals of certificates of appropriateness shall be to the Zoning Board of Appeals pursuant to Section 1449-01(b).
(Ordained by Ord. No. 217-2012, § 1, eff. July 20, 2012)

§ 1435-05-6. Severability.

If any portion of this Chapter 1435 shall be held to be unconstitutional or invalid by any court of competent jurisdiction, such holding or decision shall not affect or impair the validity of this Chapter 1435 as a whole or any other part thereof.
(Ordained by Ord. No. 217-2012, § 1, eff. July 20, 2012)

§ 1435-05-7. Exceptions from Base Development Regulations.

Within designated historic districts, setback and height regulations as prescribed by the underlying zoning district regulations shall not apply. The height and setbacks of structures within historic districts must substantially conform to the applicable Historic District guidelines.
(Ordained by Emer. Ord. No. 199-2024, § 1, eff. 7-1-2024)

§ 1435-07. Preserving a Structure.

§ 1435-07-1. Becoming a Historic Structure; Determination of Historic Significance.

(a) For purposes of this Chapter 1435, a structure or group of structures may be deemed as having Historic Significance if it has at least one of the following attributes:

(1) Association with events that have made a significant contribution to the broad patterns of our history; or

(2) Association with the lives of persons significant in our past; or

(3) Embodies the distinctive characteristics of a type, period, method of construction or that represent a significant and distinguishable entity whose components may lack individual distinction; or

(4) That has yielded, or may be likely to yield, information important in prehistory or history.

(b) For purposes of this Chapter 1435, a structure or group of structures may not be deemed as having Historic Significance solely because it is:

(1) A cemetery, birthplace, grave of a historical figure or a property owned by religious institutions or used for religious purposes, unless it is a religious property deriving primary significance from architectural or artistic distinction or historical importance; or

(2) A structure that has been moved from its original location, is a reconstructed historic structure, is a property primarily commemorative in nature or a property that has been erected within the past 50 years, unless the structure or property is an integral part of a district that meets the above criteria or falls within one or more of the following categories:

(A) A structure removed from its original location but that is significant primarily for architectural value or that is the surviving structure most importantly associated with a historic person or event; or

(B) A birthplace or grave of a historical figure of outstanding importance if there is no other appropriate site or structure directly associated with the subject's productive life; or

(C) A cemetery that derives its primary significance from graves of persons of transcendent importance, from age, from distinctive design features, or from association with historic events; or

(D) A reconstructed structure when accurately executed in a suitable environment and presented in a dignified manner as part of a restoration master plan and when no other structure with the same association has survived; or

(E) A property primarily commemorative in intent if design, age, tradition or symbolic value has invested it with its own historical significance; or

(F) A property achieving significance within the past 50 years if it is of exceptional importance or is unique within the city.

(Ordained by Ord. No. 217-2012, § 1, eff. July 20, 2012)

§ 1435-07-2. Becoming a Historic Asset; Designation of Historic Landmarks, Historic Districts and Historic Sites.

§ 1435-07-2-A. Applications.

Application for the consideration of the designation of a Historic District, Historic Landmark or a Historic Site may be made by the filing of a designation application, in such form as the Historic Conservation Board may prescribe, by the owner of the subject property or by the owner of a property within the area proposed to be designated, by Council or a member of Council, by the City Manager, by the Urban Conservator, by the City Planning Commission, or by a local community organization, including, but not limited to, preservation associations and community councils. No Historic Structure or Historic Site may be demolished or excavated during the pendency of a designation application, which commences upon the filing of a complete designation application.

(Ordained by Ord. No. 217-2012, § 1, eff. July 20, 2012)

§ 1435-07-2-B. Report, Public Hearing and Decision.

The procedure for the consideration of an application for the designation of a Historic Landmark, Historic District or Historic Site is as follows:

(a) *Report.* Within sixty (60) days of the receipt of a completed designation application, the Urban Conservator has the duty to prepare and send to the Historic Conservation Board a report and proposed conservation guidelines for the Historic Landmark, Historic District or Historic Site and a proposed boundary map for any Historic District. For a proposed Historic District, the Urban Conservator shall prepare and send to the Historic Conservation Board a list of all structures within the proposed Historic District that the Urban Conservator considers to be Non-Contributing Structures. Not later than thirty (30) days after receipt of the Urban Conservator's report and proposed conservation guidelines, the Historic Conservation Board shall schedule a public hearing on the proposed designation.

(b) *Historic Conservation Board.* After a public hearing on the proposed designation, the Historic Conservation Board has the duty to decide whether to recommend designation of the proposed Historic Landmark, Historic District or Historic Site and forward its decision, whether favorable or not, along with the proposed conservation guidelines to the City Planning Commission.

(c) *City Planning Commission.* Within thirty (30) days of the transmittal of the decision and recommendation of the Historic Conservation Board, the City Planning Commis-

sion shall hold a public hearing to determine whether to follow the recommendation of the Historic Conservation Board. In making such determination, the City Planning Commission shall consider all of the following factors:

(1) The relationship of the proposed designation to the comprehensive plans of the city and of the community in which the proposed Historic Landmark, Historic District or Historic Site is located; and

(2) The effect of the proposed designation on the surrounding areas and economic development plans of the city; and

(3) Such other planning and historic preservation considerations as may be relevant to the proposed designation.

After a public hearing on the proposed designation and conservation guidelines, the City Planning Commission has the duty to decide whether to approve or disapprove the designation and forward its decision, whether favorable or not, along with the conservation guidelines to Council.

(d) *Council.* Upon receipt of the decision of the City Planning Commission, Council shall vote to ordain or overrule the City Planning Commission's decision. A simple majority of the members elected to Council is required to ordain a designation; provided, however, if the City Planning Commission disapproves the designation, a two-thirds majority vote of Council is required to overrule the City Planning Commission's decision.
(Ordained by Ord. No. 217-2012, § 1, eff. July 20, 2012)

§ 1435-07-2-C. Adoption of Conservation Guidelines.

At the time of designation of a Historic Landmark, Historic District or Historic Site, Council has the duty to adopt conservation guidelines for each Historic Landmark, Historic District or Historic Site. Conservation guidelines shall promote the conservation, development and use of the Historic Landmark, Historic District or Historic Site and its special historic, architectural, community or aesthetic interest or value. Insofar as practicable, conservation guidelines shall promote redevelopment and revitalization of Historic Structures and compatible new development within the Historic District. The guidelines shall not limit new construction within a Historic District to a single period or architectural style but may seek to preserve the integrity of existing Historic Structures. Conservation guidelines shall take into account the impact of the designation of a Historic Landmark, Historic District or Historic Site on the residents of the affected area, the effect of the designation on the economic and social characteristics of the affected area, the projected impact of the designation on the budget of the city, as well as all of the factors listed in paragraph 1435-07-2-B(c) above. Conservation guidelines shall address Non-Contributing Structures. Approved conservation guidelines shall be published on the City's website and be made available for public inspection in the office of the Urban Conservator.
(Ordained by Ord. No. 217-2012, § 1, eff. July 20, 2012; Emer. Ord. No. 141-2015, § 48, eff. July 1, 2015)

§ 1435-07-2-D. Notice.

Upon enactment of a designation, the Clerk of Council has the duty to promptly notify the Historic Conservation Board, the City Planning Commission, the Director of City Planning,

and the City Solicitor. The Urban Conservator has the duty to provide notice of such designation in the City Bulletin. Once designated, a Historic Landmark, Historic District or Historic Site shall be shown on the city's official zone map by the designation "HL," "HD" or "HS" appended to the underlying zone designation. A Historic Landmark, Historic District or Historic Site may be designated as an overlay on any other zoning district or combined with any other overlay district.
(Ordained by Ord. No. 217-2012, § 1, eff. July 20, 2012; Emer. Ord. No. 141-2015, § 49, eff. July 1, 2015)

§ 1435-07-3. Repeal of Designation.

A designation may be repealed if the property owner petitions the Historic Conservation Board in writing setting forth clear and convincing evidence that the qualities which caused the Historic Landmark, Historic District or Historic Site to be originally designated have been lost or destroyed. Upon petition, the process for the repeal of a designation is the same as prescribed for designation as set forth in Sections 1435-07 above. The Historic Conservation Board shall consider the repeal of the designation of a Historic Landmark, Historic District or Historic Site that is lawfully demolished or destroyed at its next regularly scheduled meeting and shall act at that meeting to make a recommendation to the City Planning Commission, which shall consider the matter at its next regularly scheduled meeting. City Council shall then vote on the repeal of the designation at its next regularly scheduled meeting. Upon repeal of the designation, the associated conservation guidelines shall be null and void and of no further force or effect as to said Historic Landmark, Historic District or Historic Site. Upon the repeal of any designation, the city's official zone map shall be amended to remove the designation.
(Ordained by Ord. No. 217-2012, § 1, eff. July 20, 2012)

§ 1435-07-4. Amendment of Conservation Guidelines.

The conservation guidelines for Historic Landmark or Historic Site may be amended if the property owner petitions the Historic Conservation Board in writing setting forth the justifications for the amendment and the proposed changes to the conservation guidelines. Amendment of the conservation guidelines for a Historic District may be initiated by the Historic Conservation Board. Once initiated, the process for the amendment of conservation guidelines is the same as prescribed for the adoption of conservation guidelines as set forth in Section 1435-07-02-B(b), (c) and (d) above.
(Ordained by Ord. No. 217-2012, § 1, eff. July 20, 2012)

§ 1435-09. Alterations and Demolitions; Certificates of Appropriateness; Minimum Maintenance.

No one shall make an alteration or undertake a demolition, or receive any permit to do so, without first obtaining a Certificate of Appropriateness in accordance with this Section 1435-09. Pursuant to Section 1435-01-A1 above, alterations requiring a certificate of appropriateness shall include infill development in a Historic District.
(Ordained by Ord. No. 217-2012, § 1, eff. July 20, 2012)

§ 1435-09-1. Certificates of Appropriateness; Procedures.

The following sets forth the procedures and standards for obtaining a Certificate of Appropriateness:
(Ordained by Ord. No. 217-2012, § 1, eff. July 20, 2012)

§ 1435-09-1-A. Application.

Applications for Certificates of Appropriateness shall be made on such forms and upon the payment of such fees as may be prescribed by the Historic Conservation Board from time to time. Each application shall be stamped with the time and date of its original receipt. Not later than ten (10) business days after receipt of an application, the applicant shall be notified by e-mail, if an e-mail address is provided, and if not, by regular mail, of any deficiencies in the application. An application shall be deemed perfected when all information required by the application form has been submitted and all fees are paid in full. Additional information may be requested from the applicant at any time prior to a hearing before the Historic Conservation Board. The effective date of the application, for all purposes, shall be the date that the application is perfected, and such date shall be clearly noted on the first page of the application. The applicant's address set forth on the application shall be the address used by the City for all purposes herein unless updated in writing to the Historic Conservation Board by the applicant. If the applicant fails to perfect an application after all applicable notice and cure periods have run, the application shall be deemed rejected.
(Ordained by Ord. No. 217-2012, § 1, eff. July 20, 2012; Emer. Ord. No. 141-2015, § 50, eff. July 1, 2015)

§ 1435-09-1-B. Historic Conservation Board Review and Determination.

The Historic Conservation Board has the duty to make a final appealable determination on a perfected application for Certificate of Appropriateness within a reasonable amount of time after the application is perfected, but in no event more than sixty (60) days thereof unless the applicant agrees to an extension of time or unless the Board requests additional information from the applicant and tables or continues the matter. A continued matter must be heard at the next regularly scheduled meeting of the Board. A tabled matter must be taken off the table and finally determined within thirty (30) days after the matter was tabled. The Board may approve, approve with conditions, or deny an application for Certificate of Appropriateness. The Board's determination on an application for Certificate of Appropriateness shall be made in writing on the Certificate of Appropriateness indicating the Board's approval, conditional approval, or denial of the application, and shall contain findings of fact and conclusions of law and shall be issued to the applicant by certified mail not later than ten (10) business days after the date of the Board's final appealable determination, and that writing shall constitute the final appealable order of the Board. Any denial of an application shall also include a statement of the reasons why the application failed to comply with the applicable guidelines. Failure to issue a Certificate of Appropriateness within such time period shall not invalidate the Board's determination, but shall extend the time for which the applicant has to appeal the Board's determination by one (1) day for each day the Certificate of Appropriateness is late.
(Ordained by Ord. No. 217-2012, § 1, eff. July 20, 2012; Emer. Ord. No. 141-2015, § 51, eff. July 1, 2015)

§ 1435-09-1-C. Urban Conservator Review and Determination.

The Historic Conservation Board may delegate to the Urban Conservator the authority to grant Certificates of Appropriateness within thirty (30) days of the filing of a perfected application without referral to the Historic Conservation Board and without a public hearing in the case of minor alterations of the type and scope that the Historic Conservation Board may from time to time specify in writing to the Urban Conservator. Notwithstanding anything to the contrary contained herein, the term "minor alterations" shall not include structural alterations or demolition. The Urban Conservator's determination shall be made in writing on the Certificate of Appropriateness indicating the Urban Conservator's approval, conditional approval, or denial of the application, and shall be issued by the Urban Conservator within the above 30-day period, and that writing shall constitute a final appealable order of the Board. If the Urban Conservator fails to issue the Certificate of Appropriateness by the last day of the prescribed time period, then the application shall be deemed approved as submitted. Notwithstanding the delegation of authority to the Urban Conservator described in this paragraph (c) the applicant may make written request that the Board consider the application notwithstanding the delegation of authority to the Urban Conservator.
(Ordained by Ord. No. 217-2012, § 1, eff. July 20, 2012)

§ 1435-09-1-D. Notice of Application.

Within ten (10) days after the perfection date thereof, notice of all applications for Certificates of Appropriateness shall be sent to all city departments with authority over any aspect of the activities proposed, to all owners of properties located within two hundred feet (200') of all of the boundaries of the subject property, and to the community council in which the subject property is situated and to all abutting property owners. Such notice shall be by regular mail and electronic mail, if addresses have been provided or are otherwise readily available. The notice may include a time, date and place for a prehearing conference to be held by the Urban Conservator, to which the applicant, the property owner, and all interested city departments, and the aforementioned community council shall be invited. At such prehearing conference, the comments and recommendations of all interested city departments concerning their respective authority over the proposed improvements and their advice as to the appropriateness of the proposed improvements may be received and discussed with the applicant. No member of the Historic Conservation Board shall be present at any prehearing conference. All interested departments and civic organizations may promptly advise the Board in writing of their respective recommendations for approval, conditional approval, disapproval or modifications of the proposed improvements.
(Ordained by Ord. No. 217-2012, § 1, eff. July 20, 2012; Emer. Ord. No. 141-2015, § 52, eff. July 1, 2015)

§ 1435-09-1-E. Notice of Hearing.

For all Certificates of Appropriateness that are to be considered by the Historic Conservation Board as set forth in paragraph (b) above, the Board has the duty to provide notice of its hearing on an application to be postmarked by the U.S. Postal Service at least seven (7) days in advance of the hearing. Such notice shall be by regular mail and electronic mail, if addresses have been provided or are otherwise readily available, sent to the applicant, all

owners of abutting properties, all owners of properties located within two hundred feet (200') of all of the boundaries of the subject property, the community council in which the subject property is situated, and to any other person who have made written requests to be notified of applications. The Board has the duty to publish a notice of each such application for a Certificate of Appropriateness in the City Bulletin at least seven (7) days in advance of acting on the application.
(Ordained by Ord. No. 217-2012, § 1, eff. July 20, 2012)

§ 1435-09-2. Certificates of Appropriateness; Standards for Review.

In accordance with Section 1435-09-1 above, the Historic Conservation Board has the duty to review and make a determination on all Certificates of Appropriateness in the manner prescribed herein for the purpose of furthering the conservation and integrity of the Historic Asset or Historic District affected. The Board may approve or approve with conditions an application for a Certificate of Appropriateness when it finds either:

(a) That the property owner has demonstrated by credible evidence that the proposal substantially conforms to the applicable conservation guidelines; or

(b) That the property owner has demonstrated by credible evidence that the property owner will suffer economic hardship if the certificate of appropriateness is not approved.

In determining whether the property owner has demonstrated an economic hardship for purposes of (b) above, the Historic Conservation Board shall consider all of the following factors:

(i) Will all economically viable use of the property be deprived without approval of a Certificate of Appropriateness;

(ii) Will the reasonable investment-backed expectations of the property owner be maintained without approval of a Certificate of Appropriateness; and

(iii) Whether the economic hardship was created or exacerbated by the property owner.

In evaluating the above factors for economic hardship, the Historic Conservation Board may consider any or all of the following:

(aa) A property's current level of economic return;

(bb) Any listing of property for sale or rent, price asked, and offers received, if any, within the previous two years, including testimony and relevant documents;

(cc) The feasibility of alternative uses for the property that could earn a reasonable economic return;

(dd) Any evidence of self-created hardship through deliberate neglect or inadequate maintenance of the property;

(ee) Knowledge of landmark designation or potential designation at time of acquisition; and/or

(ff) Economic incentives and/or funding available to the applicant through federal, state, city, or private programs.

Whenever a Certificate of Appropriateness is required pursuant to the provisions of this chapter, the Director of Buildings and Inspections may not issue a building permit until a Certificate of Appropriateness has been approved or approved with conditions. In the event that the standards in this Section 1435-09-2 conflict with any standards set forth in any conservation guidelines, the standards set forth herein shall govern and control.
(Ordained by Ord. No. 217-2012, § 1, eff. July 20, 2012; Emer. Ord. No. 141-2015, § 53, eff. July 1, 2015)

§ 1435-09-3. Demolition Delay.

In addition to the provisions of Sections 1435-09-1 and 1435-09-2 above, if an application for a Certificate of Appropriateness seeks approval of demolition, the Historic Conservation Board may delay determination of the application for a period of 180 days on a finding that alternatives to Demolition may be feasible and should be actively pursued by both the applicant and the Historic Conservation Board. In the event that action on an application is delayed as provided herein, the Historic Conservation Board may take such steps as it deems necessary to preserve the Historic Asset concerned, in accordance with the purposes of this chapter and in accordance with Cincinnati Municipal Code Chapter 1101. Such steps may include but may not be limited to consultation with civic groups, public agencies and interested citizens, recommendations for acquisition of property by public or private bodies or agencies, and exploration of the possibility of moving one or more structures or other features. No demolition shall take place until permitted pursuant to the provisions of this chapter and the Cincinnati Building Code. Any unlawful demolition of a Historic Asset shall be punishable by the criminal and civil penalties set forth in Chapter 1451 below and the Cincinnati Municipal Code.
(Ordained by Ord. No. 217-2012, § 1, eff. July 20, 2012)

§ 1435-09-4. Minimum Maintenance Requirement; Demolition by Neglect.

The owner of a Historic Asset has the duty to provide sufficient maintenance and upkeep for such structure to ensure its perpetuation and to prevent its destruction by deterioration. The provisions of this Section 1435-09-4 shall be in accordance with Section 1451-11 below and Cincinnati Municipal Code Chapter 1101. Any failure to comply with this Section 1435-09-4 or Section 1451-11 below shall be an unlawful demolition which shall be punishable by the criminal and civil penalties set forth in the Cincinnati Municipal Code and Sections 1451-13 and 1451-15 below. The Urban Conservator shall maintain a list of Historic Assets that are deemed to be neglected and shall publish that list on the City's website annually.
(Ordained by Ord. No. 217-2012, § 1, eff. July 20, 2012; Emer. Ord. No. 141-2015, § 54, eff. July 1, 2015)

§ 1435-09-5. Exceptions from Requirement to obtain Certificate of Appropriateness.

Nothing in this chapter is to be construed to prevent or regulate:

(a) Ordinary and routine maintenance or repair to a Historic Asset if it entails no alteration.

(b) Emergency repairs to public property.

(c) Emergency demolition, when the Chief Building Official and the Fire Chief certify in writing that demolition is required for the immediate preservation of public safety because of an unsafe or dangerous condition that constitutes an emergency. Such determination shall be made in accordance with Cincinnati Municipal Code Chapter 1101. In making a determination about whether to issue an emergency demolition permit, the Chief Building Official shall do all of the following: (i) consult with the Urban Conservator; (ii) review all permit applications for the property filed within a period of two (2) calendar years prior to the emergency; (iii) review City records to account for all City orders which have been placed upon the property during the period of ownership by the current owner; and (iv) review City records to determine whether a vacated building maintenance license has been applied for or issued for the property.

(d) A Public Infrastructure improvement that Council has expressly approved or that is required to be installed or maintained by law.

For purposes of this Section 1435-09-5, the term "Public Infrastructure" shall mean any public utility line, street, roadway, or transit improvement or facility, signalization, directional or safety signage, streetscape, sidewalk or other public safety improvement, and shall not be deemed to include public buildings, parks, paver alleys, granite curbs, plazas or skywalks.
(Ordained by Ord. No. 217-2012, § 1, eff. July 20, 2012; Emer. Ord. No. 141-2015, § 55, eff. July 1, 2015)

§ 1435-11. Relationship to Other Special Districts.

§ 1435-011-1. Relationship to Overlay Districts.

The following sets forth the relationship between overlay zoning districts and Historic Assets or Historic Districts located within or overlapping such overlay districts:
(Ordained by Ord. No. 217-2012, § 1, eff. July 20, 2012)

§ 1435-011-1-A. Urban Design (UD) Overlay Districts.

Whenever a Historic Asset or Historic District is located within or overlaps an Urban Design Overlay District, the provisions of this chapter control over any conflicting provisions of Chapter 1437 of the Cincinnati Zoning Code. In any such case the authority of the Zoning Hearing Examiner specified in Chapter 1437 is transferred to the Historic Conservation Board and all references to the examiner therein interpreted as references to the Historic Conservation Board. In such cases, the provisions of Chapter 1437, where not inconsistent with the provisions of this chapter, apply to the exercise of the authority prescribed therein.
(Ordained by Ord. No. 217-2012, § 1, eff. July 20, 2012)

§ 1435-011-1-B. Hillside (HS) Overlay Districts.

Whenever a Historic Asset or Historic District is located within or overlaps a Hillside Overlay District, the provisions of this chapter control over any conflicting provisions of Chapter 1433 of the Cincinnati Zoning Code. In any such case the authority of the Zoning Hearing Examiner specified in Chapter 1433 is transferred to the Historic Conservation Board and all references to the examiner therein interpreted as references to the Historic

Conservation Board. In such cases, the provisions of Chapter 1433, where not inconsistent with the provisions of this chapter, apply to the exercise of the authority prescribed therein. (Ordained by Ord. No. 217-2012, § 1, eff. July 20, 2012)

§ 1435-011-2. Relationship to Planned Development (PD) Districts.

Whenever a planned development district is located within or overlaps a Historic District or contains a Historic Landmark or Historic Site, the provisions of this Chapter 1435 and any applicable conservation guidelines shall apply and shall be fully incorporated in the final development plan for the planned development district. More specifically, the process for reviewing and issuing a certificate of appropriateness in a planned development district is as follows:

(a) *Concept Plan Approval Stage:* The Urban Conservator shall review all concept plans submitted for the creation of new planned development districts located within or overlapping a Historic District or containing a Historic Landmark or Historic Site. Prior to the City Planning Commission's review of a concept plan, the Urban Conservator shall identify any and all necessary certificates of appropriateness in writing to the City Planning Commission. If no certificates of appropriateness are identifiable on the concept plan, then the Urban Conservator shall indicate as such in writing to the City Planning Commission. The City Planning Commission's approval of any such concept plan shall be expressly conditioned upon the approval of the certificates of appropriateness identified by the Urban Conservator as part of the final development plan.

(b) *Final Development Plan Approval Stage:* The Historic Conservation Board shall review all final development plans submitted for the creation of a new planned development district located within or overlapping a Historic District or containing a Historic Landmark or Historic Site. Prior to the City Planning Commission's review of a final development plan, the Historic Conservation Board shall make written findings to the City Planning Commission about its approval, conditional approval, or denial of any certificates of appropriateness identified in (a) above, and for any additional certificates of appropriateness that it may identify that were not readily apparent from the concept plan. In reviewing a final development plan, the City Planning Commission may overrule the Historic Conservation Board's written findings by a two-thirds (2/3) majority vote of the City Planning Commission; which shall constitute a final order of the City Planning Commission appealable to the Zoning Board of Appeals pursuant to Section 1429-17 above.

(c) *Post Final Development Plan Approval:* All certificates of appropriateness which may be required by this Chapter 1435 after the approval of a final development plan shall be reviewed and determined in accordance with Section 1435-09 above.

(Ordained by Ord. No. 217-2012, § 1, eff. July 20, 2012)

§ 1435-011-3. Relationship to Downtown Development (DD) District.

Whenever a Historic District or Historic Asset is located within or overlaps the Downtown Development District, the provisions of this chapter control over any conflicting provisions of Chapter 1411 of the Cincinnati Zoning Code. In any such case the authority of the Zoning

Hearing Examiner or the person or persons responsible for design review specified in Chapter 1411 is transferred to the Historic Conservation Board and all references to the examiner or the person or persons responsible for design review therein are interpreted as references to the Historic Conservation Board. In such cases, the provisions of Chapter 1411, where not inconsistent with the provisions of this chapter, apply to the exercise of the authority prescribed therein.
(Ordained by Ord. No. 217-2012, § 1, eff. July 20, 2012)

Chapter 1437

URBAN DESIGN OVERLAY DISTRICT

§ 1437-01. Specific Purposes.
§ 1437-03. Applicability and Zoning Map Designator.
§ 1437-05. Establishment of Urban Design Overlay Districts.
§ 1437-07. Applications Subject to Review.
§ 1437-09. Development Standards in Urban Design Overlay Districts.
§ 1437-11. Approval.
§ 1437-13. Appeal.

§ 1437-01. Specific Purposes.

The specific purposes of the Urban Design Overlay District are to:

(a) Protect and enhance the physical character of selected business districts that have adopted Urban Design Plans;

(b) Prevent the deterioration of property and blighting conditions;

(c) Encourage private investment to improve and stimulate the economic vitality and social character of selected business districts; and

(d) Ensure that infill development does not adversely affect the physical character of the area.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1437-03. Applicability and Zoning Map Designator.

Except as otherwise provided in this chapter, all regulations of the underlying zone districts and other applicable overlay districts, apply to and control property in an Urban Design Overlay District; provided, however, that in the case of conflict between the provisions of an underlying zoning district and the Urban Design Overlay District, the provisions of the Urban Design Overlay District govern.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1437-05. Establishment of Urban Design Overlay Districts.

Council may establish an Urban Design Overlay District whenever both of the following conditions are satisfied:

(a) *Neighborhood Business Center.* Upon finding that an area comprising a concentration of retail and service-oriented commercial establishments serves as the principal business activity center for a socio-geographic community.

(b) *Urban Design Plan.* Upon adoption of an urban design plan for the area that includes: A textual and graphic description of the physical and environmental improvements necessary for the coordinated revitalization of the business district. The urban design plan should include but is not limited to: the location of buildings, architectural character of the buildings, signage, pedestrian and vehicular circulations, parking, open space and landscaping. An urban design plan may also include a list of contributing and noncontributing buildings within the business district.

(1) For the purposes of this section, a contributing building is one that has unique or distinguishable physical attributes that add to the cohesive character and setting of the business district, including its siting and location, architectural characteristics, and massing, and further are consistent with the applicable urban design plan or other applicable community plans approved by City Council.

(2) For the purposes of this section, a noncontributing building is one that detracts from the established physical character and setting of the business district because the building's architectural style, bulk, shape, massing, scale, form, or

setbacks are inconsistent with the predominant characteristics of the district, or the building is obsolete, damaged, in a state of disrepair, dilapidated, or unsanitary.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Emer. Ord. No. 418-2021, §§ 9, 39, 40, eff. Nov. 10, 2021)

§ 1437-07. Applications Subject to Review.

(a) The Zoning Administrator has the duty to review applications for the following permits in an established Urban Design Overlay District for compliance with the base requirements of the district:

(1) *Signs:* Permits for the installation of all signs, with the exception of sandwich board signs authorized pursuant to § 723-9.

(2) *Awnings:* Permits for the installation of all awnings.

(3) *Mechanical Equipment and Utilities:* Permits for the installation of all exterior mechanical equipment and utility service connections.

(4) *Replacement Windows:* Permits for the installation of replacement windows.

(5) *Exterior Renovation or Alterations of Existing Structures:* Permits for exterior renovations, alterations, or additions.

(6) *Eating and Drinking Establishments:* Permits for Restaurants, Limited.

(b) The Zoning Board of Appeals shall approve, approve with conditions, or disapprove an application for the following types of development in an established Urban Design Overlay District in accordance with the base requirements of the district:

(1) *New construction:* Permits for new construction.

(2) *Demolition:* Permits for demolition.

(c) The City Planning Commission is authorized to exercise the powers granted to the Zoning Board of Appeals pursuant to this Chapter when an application is submitted in connection with an application to subdivide land.

(d) The Director of Buildings and Inspections is authorized to order the demolition of a building located in an established Urban Design Overlay District, notwithstanding the provisions of subsection (b), if he or she finds that the building poses an immediate threat to public health or safety.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; Emer. Ord. No. 141-2015, § 56, eff. July 1, 2015; a. Ord. No. 0050-2019, §§ 9, 10, eff. 2-6-2019; a. Emer. Ord. No. 418-2021, §§ 10, 39, 40, eff. Nov. 10, 2021; a. Ord. No. 320-2022, §§ 1, 4, eff. Oct. 12, 2022; a. Ord. No. 267-2023, §§ 1, 2, eff. June 26, 2023)

§ 1437-09. Development Standards in Urban Design Overlay Districts.

Development within individual Urban Design Overlay Districts must comply with the standards prescribed below that the ordinance that establishes the Urban Design Overlay District declares applicable to that district. These standards are intended to implement policies in adopted urban design plans. Whenever the standards conflict with the develop-

ment regulations of the underlying district, these standards supersede those regulations. The following regulations will apply to some or all of the Urban Design Overlay Districts as determined by the urban design plan prepared and adopted for each district. Refer to Schedule 1437-09 for applicability.

Urban Design Overlay District Standards
Schedule 1437-09

	UD #1	*UD #2*	*UD #3*	*UD #4*	*UD #5*	*UD #6*	*UD #7*	*UD #8*	*UD #9*	*UD #10*	*UD #11*	*UD #12*	*UD #13*	*UD #14*	*UD #15*
S1		X	X	X	X	X	X	X	X	X	X	X	X	X	X
S2	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X
S3	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X
S4	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X
S5	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X
S6	X			X				X	X		X				
A1	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X
M1	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X
W1	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X
R1	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X
R2	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X
E1		X	X	X	X		X				X				
F1		X													X
N1	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X
N2	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X
D1	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X

UD #1 - College Hill Business District
UD #2 - Clifton Business District
UD #3 - Hartwell Business District
UD #4 - Hyde Park Square Business District
UD #5 - Oakley Square Business District
UD #6 - University Village Business District
UD #7 - North Avondale Along Reading Road
UD #8 - Mt. Washington Business District
UD #9 - Mt. Airy Business District
UD #10 - Columbia-Tusculum Business District
UD #11 - Hyde Park East Business District
UD #12 - Mt. Lookout Square
UD #13 - Pleasant Ridge Business District
UD #14 - Kennedy Heights Business District
UD #15 - Roselawn Business District

(a) *Signs and Signage Standards:*

S1. Prohibited Signs:

- All blinking, flashing, rotating or moving signs, except barber poles and theater marquees;
- Neon signs;
- Banners, portable or temporary signs except sandwich board signs where permitted pursuant to Schedule 1437-09;
- Rooftop signs, signs or awnings extending above the roofline of the building, or signs or awnings that extend above the window sill line of the second floor of the building;
- Any advertising sign on or about an unoccupied building, except those related to the sale or rental of that building;
- All signs, handbills, or flyers on utility poles, except those installed by the city and state;
- All outdoor advertising signs, as that term is defined in Cincinnati Municipal Code Chapter 895.

S2. Projecting Signs:

- Projecting signs shall not be used except for small identification or trademark signs symbolic of the business identified.
- The copy of all signs should identify the predominant business on the premises or its principal product or service.
- Advertising signs are prohibited.
- Projecting signs shall not exceed six square feet per sign face and shall not exceed 12 square feet for all faces.
- Projecting signs should be located over entry doors or building columns or piers and shall be limited to one projecting sign per business.
- All sign supports shall be simple in nature, have no visible guy wires and be made less obtrusive with camouflaging color in harmony with the surrounding environment.

S3. In the case where buildings have multiple storefronts occupied by different tenants, the allowable signage area for each tenant will be calculated based upon the storefront street frontage in order to maintain a proportional distribution of signage area.

S4. For businesses located within an interior portion of a building, or on the second floor or higher story of a building and lacking an exterior wall or window area, a sign identifying the business no larger than six square feet may be affixed to the exterior of the building. This sign area shall be included in the maximum allowable area for all signs on the property.

S5. Ground signs: where permitted, ground signs shall meet the following standards:

- Ground signs shall be a maximum sign area of not more than one square foot of sign area per linear foot of street frontage per sign face, up to a maximum sign area of 30 square feet per face, or 60 square feet for all sign faces.

- Ground signs shall be limited to two sign faces and shall not exceed six feet in height.
- Ground signs shall be located at or near the primary street frontage.
- Ground signs shall be compatible with the design of the building in proportion, shape, scale, materials, colors, and lighting.

S6. Sandwich board signs are permitted, subject to the provisions of § 723-9 and § 1427-26.

(b) *Awning Standards*:

A1. Awnings shall meet the following standards:

- Awnings shall project no more than two-thirds the width of the sidewalk or six feet, whichever is less.
- Awnings shall run parallel to the face of the building.
- Awnings shall be located within the existing building framework - between columns and below spandrel panels. Awning colors and design shall be compatible with the colors and design of the building.
- Structural supports for all awnings shall be contained within the awning covering.
- Each storefront bay shall have a similar awning to the other storefront bays on the same building.
- Awnings shall be designed to be harmonious with the architecture of the building that they are to be placed on. They shall relate in shape and proportion to the building's architectural elements such as window and opening shapes, facade articulation and general character of the building.

(c) *Mechanical Equipment and Utility Standards*:

M1. Mechanical equipment, including air conditioning, piping, ducts, and conduits external to the building shall be concealed from view from adjacent buildings or street level by grills, screens or other enclosures. Electric and other utility service connections shall be underground for new construction and encouraged for all other changes.

(d) *Replacement Window Standards*:

W1. Replacement windows shall meet the following standards:

- Replacement windows shall fit the size and style of the original openings.
- Original window and door openings shall not be enclosed or bricked-in on the street elevation. Where openings on the sides or rear of the building are to be closed, the infill materials shall match that of the wall and be recessed a maximum of three inches within the opening.

(e) *Exterior Renovation or Alterations of Existing Structures*:

R1. Renovations, alterations or additions shall be designed and executed in a manner that is sympathetic to the particular architectural character of the structure being worked on. Architectural elements shall be sensitively designed to reflect the detailing and materials associated with the particular style of the building.

R2. Renovations and restorations of older buildings shall respect the original building design, including structure, use of materials and details. New materials or signs shall not cover original materials and detailing. Natural materials (brick, slate, glass, stone, etc.) shall be retained in their natural state and not covered with any other contemporary materials. Materials that are out of keeping with the historic character of the building shall be removed from the facade upon significant exterior renovation or restoration of the existing structure.

(f) *Eating and Drinking Establishments*:

E1. Restaurants, Limited shall meet the following standards:

- No more than 45 percent of their gross floor area may be devoted to food preparation, related activities and other space not accessible to the public;
- No more than 35 percent of the restaurant's sales by dollar volume are carry-out and the patrons are served with other than single-use utensils, plates and beverage containers.
- The consumption of food or beverage in automobiles parked upon the premises is prohibited.

(g) *Franchise Establishments*:

F1. New businesses should contribute to the desired mix of commercial activities; franchise type establishments are acceptable provided that they are primarily pedestrian and not automobile oriented.

(h) *New Construction:*

N1. New buildings shall be compatible with their surroundings. Architectural style, bulk, shape, massing, scale and form of new buildings and the space between and around buildings shall be consistent with the area and should be in harmony with neighboring buildings.

- New buildings shall respond to the pattern of window placement in the district. The designs of new buildings shall avoid long unrelieved expanses of wall along the street by maintaining the rhythm of windows and structural bays in the district. The preferred pattern of ground floor windows is open show windows, with inset or recessed entryways; and landscaping, lighting, and other amenities equivalent to those existing in the district.
- Buildings shall de-emphasize secondary rear or side door entrances to commercial space, unless the entrances are associated with public parking areas.

N2. The Zoning Board of Appeals shall review and consider the applicable urban design plan and other applicable community plans approved by City Council when determining the compatibility of new construction proposed within an Urban Design Overlay District.

- New buildings and proposed uses shall be consistent with the goals, objectives, and guidelines of the applicable urban design plan or other applicable community plans approved by City Council.

N3. At the request of an applicant, the Zoning Board of Appeals may conduct a review of a new building or change in use of a property in two parts: (i) first, an initial review of schematic plans in which setbacks, structure and site improvement placement, massing, building envelope, and uses are considered; and (ii) second, a subsequent review in which final plans, materials, and designs are considered.

(i) *Demolition*:

D1. An existing building may only be demolished if the owner of the building, or a person authorized by the owner of the building, demonstrates that one of the following standards is met:

- The building does not contribute to the physical character and economic vitality of the district, which is determined by weighing the following factors:
  - (i) whether the building is identified as a contributing building or noncontributing building by the applicable urban design plan or other applicable community plans approved by City Council;
  - (ii) whether the building is recommended for demolition by the applicable urban design plan or other applicable community plans approved by City Council;
  - (iii) whether the building's architectural style, bulk, shape, massing, scale, form, and setbacks are consistent with the predominant characteristics of the district;
  - (iv) whether the building is iconic or specially associated with the district;
  - (v) whether the demolition of the building will negatively impact the district streetscape; and
  - (vi) whether the building is obsolete, damaged, in a state of disrepair, dilapidated, or unsanitary, and whether its condition was caused by the owner or his or her predecessors through deliberate action or willful neglect.
- The demolition of the building will facilitate the construction of a new building or the establishment of a use that will contribute to the physical character and economic vitality of the district, which is demonstrated by evidence that the owner, or a person authorized by the owner, has:
  - (i) obtained final approval to construct a new building or change the use of property pursuant to the requirements of subsection (h) above;
  - (ii) obtained all building permit approvals necessary to commence the new construction or effect the change in use; and
  - (iii) certified via affidavit or sworn testimony as to his or her intent and capacity to diligently pursue the construction of the new building or change in use if demolition of the building is approved.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 268-2008, § 1, eff. Sept. 6, 2008; a. Ord. No. 298-2009, § 1, eff. Dec. 12, 2009; a. Ord. No. 99-2013, § 1, eff. May 24, 2013; Emer. Ord. No. 141-2015, § 57, eff. July 1, 2015; Ord. No. 275-2016, § 1, eff. Sept. 3, 2016; a. Ord. No. 104-2018, § 4, eff. June 16, 2018; a. Emer. Ord. No. 418-2021, §§ 11, 39, 40, eff. Nov. 10, 2021; a. Ord. No. 320-2022, §§ 2, 4, eff. Oct. 12, 2022; a. Ord. No. 267-2023, § 3, eff. June 26, 2023)

§ 1437-11. Approval.

(a) If the Zoning Administrator determines that a permit application conforms to the requirements of § 1437-09 and all other requirements of this Code, the Zoning Administrator has the duty to approve a building permit for the proposed work. The Zoning Administrator has the duty to notify all owners of property abutting the subject property and the community organization recognized by City Council as representing the area that includes the subject property.

(b) If the Zoning Administrator determines a permit application does not conform to the requirements of § 1437-09, or if a permit application includes a request for new construction or demolition, the Zoning Board of Appeals has the duty to determine whether the application satisfies the standards set forth in this Chapter prior to the issuance of a building permit.

(c) In reviewing a permit application pursuant to § 1437-11(b), the Zoning Board of Appeals shall conduct a hearing and issue a decision in the same manner as prescribed for the Zoning Hearing Examiner under Chapter 1443, Zoning Hearing Examiner Procedures. In considering a permit application, the Zoning Board of Appeals is authorized to grant all additional forms of relief the Zoning Hearing Examiner is authorized to grant (e.g., variance, conditional use, special exceptions, etc.), provided that the Zoning Board of Appeals may not grant a use variance from the provisions of this Chapter.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; Emer. Ord. No. 141-2015, § 58, eff. July 1, 2015; a. Emer. Ord. No. 418-2021, §§ 12, 39, 40, eff. Nov. 10, 2021)

§ 1437-13. Appeal.

Any party with standing may appeal a final decision of the Zoning Board of Appeals issued in accordance with this Chapter to the Hamilton County Court of Common Pleas as allowed by Ohio Revised Code Chapter 2506 or other applicable law.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Emer. Ord. No. 418-2021, §§ 13, 39, 40, eff. Nov. 10, 2021)

Chapter 1439

DECISION-MAKING BODIES AND OFFICIALS

§ 1439-01. Purpose.
§ 1439-03. Director of City Planning.
§ 1439-05. Director of Buildings and Inspections.
§ 1439-07. Zoning Hearing Examiner (effective until May 15, 2022).
§ 1439-07. Zoning Hearing Examiner (effective as of May 15, 2022).
§ 1439-09. Historic Conservation Board.
§ 1439-11. Zoning Board of Appeals (effective until May 15, 2022).
§ 1439-11. Zoning Board of Appeals (effective as of May 15, 2022).
§ 1439-13. City Planning Commission.
§ 1439-15. Council.

§ 1439-01. Purpose.

For the convenience of the user of the Cincinnati Zoning Code, this chapter lists the city decision-making bodies and officials that have responsibility for implementing and administering this Code. Other city officials and departments also having specific responsibilities related to this Code are identified in the appropriate sections of the Cincinnati Zoning Code. This chapter does not confer or limit any authority not otherwise granted or limited. The authority of the decision-making bodies is prescribed in the referenced documents.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1439-03. Director of City Planning.

The Director of City Planning is appointed pursuant to Administrative Code Article XXV, § 1 and has the following powers and duties under Cincinnati Zoning Code:

(a) *Administrative Duties.* The Director of City Planning administers the Department of City Planning.

(b) *Staff to the City Planning Commission.* The Director of City Planning acts as staff to the City Planning Commission and provides professional guidance to the commission, including departmental reports on zoning applications decided by the Commission.

(c) *Planning Advice and Studies.* The Director of City Planning advises the Council and City Manager and other local officials on matters affecting the physical development of the city and prepares comprehensive plans, urban design plans, environmental studies and other plans and planning-related studies.

(d) *District Boundary Lines.* The Director of City Planning is authorized to interpret the exact location of zoning district boundary lines in such a way as to carry out the intent and purpose of the Cincinnati Zoning Code and the Zoning Map for the particular section or district in question.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; r. Ord. No. 042-2012, § 8, eff. March 29, 2012; Emer. Ord. No. 141-2015, § 59, eff. July 1, 2015)

§ 1439-05. Director of Buildings and Inspections.

The Director of Buildings and Inspections is appointed pursuant to Administrative Code Article XXI, § 1 and has the following powers and duties under Cincinnati Zoning Code:

(a) *Administrative Duties.* The Director of Buildings and Inspections administers the Department of Buildings and Inspections and serves as the Chief Building Official for the city.

(b) *Permits and Inspections.* The Director of Buildings and Inspections conducts reviews and inspections to ensure that all building permits and uses of land within the city are in compliance with building, housing, and zoning codes, and other related codes and regulations, including the historic preservation code and historic guidelines.

(c) *Code Enforcement.* The Director of Buildings and Inspections inspects existing buildings and uses of land for compliance with building, housing, and zoning codes, and other related codes and regulations, including the historic preservation code and

historic guidelines, and may take enforcement action as necessary to abate nuisance, unsafe, and hazardous conditions and to otherwise ensure code compliant maintenance of buildings.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; r. Ord. No. 042-2012, § 8, eff. March 29, 2012; reordained by Emer. Ord. No. 141-2015, § 60, eff. July 1, 2015)

§ 1439-07. Zoning Hearing Examiner (effective until May 15, 2022).

Pursuant to Chapter 1443, the Zoning Hearing Examiner conducts public hearings and makes decisions, subject to appeal to the Zoning Board of Appeals, on applications for:

(a) Variances;

(b) Special exceptions;

(c) Conditional uses;

(d) Expansion or substitution of nonconforming uses;

(e) Development permission in Hillside Overlay Districts;

(f) Development permission in Urban Design Overlay Districts; and

(g) Phased development in the DD District.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0025-2007, § 1, eff. Feb. 18, 2007; a. Ord. No. 0058-2008, § 1, eff. March 13, 2008; a. Emer. Ord. No. 418-2021, §§ 14, 39, 40, eff. Nov. 10, 2021)

§ 1439-07. Zoning Hearing Examiner (effective as of May 15, 2022).

Pursuant to Chapter 1443, the Zoning Hearing Examiner conducts public hearings and makes decisions, subject to appeal to the Zoning Board of Appeals, on applications for:

(a) Variances;

(b) Special exceptions;

(c) Conditional uses;

(d) Expansion or substitution of nonconforming uses;

(e) Development permission in Hillside Overlay Districts;

(f) Phased development in the DD District.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0025-2007, § 1, eff. Feb. 18, 2007; a. Ord. No. 0058-2008, § 1, eff. March 13, 2008; a. Emer. Ord. No. 418-2021, §§ 14, 39, 40, eff. Nov. 10, 2021)

§ 1439-09. Historic Conservation Board.

The Historic Conservation Board is established pursuant to Article XXX, § 4 of the Administrative Code and has the following powers and duties under the Cincinnati Zoning Code:

(a) To hear applications for designation of historic districts, structures or sites and to make recommendation to the City Planning Commission on designation applications. See § 1435-07

(b) To approve, conditionally approve or deny applications for Certificates of Appropriateness. See § 1435-13.

(c) To assume the powers and duties of the Zoning Hearing Examiner to hear and approve, conditionally approve or deny applications for conditional uses, nonconforming uses, variances or special exceptions for those applications relating to property wholly or partially within a designated historic district or site or involving a designated landmark. See § 1435-27.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; Emer. Ord. No. 141-2015, § 61, eff. July 1, 2015)

§ 1439-11. Zoning Board of Appeals (effective until May 15, 2022).

The Zoning Board of Appeals is established pursuant to Article XXX, § 6 of the Administrative Code and has the following powers and duties under the Cincinnati Zoning Code and the Land Development Code:

(a) To hear and decide appeals from any order, decision, determination or interpretation made by the Director of Buildings and Inspections and those serving under the authority of the director in the administration or the enforcement of this Code and the Land Development Code, pursuant to the procedures and standards established in Chapter 1449, Zoning Board of Appeals.

(b) To hear and decide appeals from any order, decision, determination or interpretation made by the Zoning Administrator in the administration or the enforcement of this Code and the Land Development Code, pursuant to the procedures and standards established in Chapter 1449, Zoning Board of Appeals.

(c) To hear and decide appeals from any decision of the Zoning Hearing Examiner, pursuant to the procedures and standards established in Chapter 1449, Zoning Board of Appeals.

(d) To hear and decide appeals from any decision of the Historic Conservation Board.

(e) To hear and decide all other appeals as provided for by this Code and the Land Development Code.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; Emer. Ord. No. 141-2015, § 62, eff. July 1, 2015; Emer. Ord. No. 244-2015, § 1, eff. July 1, 2015; a. Emer. Ord. No. 418-2021, §§ 15, 39, 40, eff. Nov. 10, 2021)

§ 1439-11. Zoning Board of Appeals (effective as of May 15, 2022).

The Zoning Board of Appeals is established pursuant to Article XXX, § 6 of the Administrative Code and has the following powers and duties under the Cincinnati Zoning Code and the Land Development Code:

(a) To hear and decide appeals from any order, decision, determination or interpretation made by the Director of Buildings and Inspections and those serving under the authority of the director in the administration or the enforcement of this Code and the Land Development Code, pursuant to the procedures and standards established in Chapter 1449, Zoning Board of Appeals.

(b) To hear and decide appeals from any order, decision, determination or interpretation made by the Zoning Administrator in the administration or the enforcement of this Code and the Land Development Code, pursuant to the procedures and standards established in Chapter 1449, Zoning Board of Appeals.

(c) To hear and decide appeals from any decision of the Zoning Hearing Examiner, pursuant to the procedures and standards established in Chapter 1449, Zoning Board of Appeals.

(d) To hear and decide appeals from any decision of the Historic Conservation Board.

(e) To hear and decide all other appeals as provided for by this Code and the Land Development Code.

(f) To conduct public hearings and makes decisions on certain applications for development permissions in Urban Design Overlay Districts.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; Emer. Ord. No. 141-2015, § 62, eff. July 1, 2015; Emer. Ord. No. 244-2015, § 1, eff. July 1, 2015; a. Emer. Ord. No. 418-2021, §§ 15, 39, 40, eff. Nov. 10, 2021)

§ 1439-13. City Planning Commission.

The City Planning Commission is established by Article VII, § 2 of the Charter, is authorized to make plans and maps of the city and carry out other planning functions pursuant to powers and duties granted under the Charter. The Cincinnati Zoning Code and the Land Development Code grant the City Planning Commission the following authority:

(a) To review and approve, or report to Council reason for failure to approve amendments to the Cincinnati Zoning Code or the Zoning Map, pursuant to the Charter Article VII, § 6.

(b) To approve, conditionally approve or deny Interim Development Control District permits, pursuant to the provisions of Chapter 1431, IDC Interim Development Control Overlay District.

(c) To approve, conditionally approve or deny final development plans in Planned Development District applications, pursuant to the provisions of Chapter 1429, Planned Development District.

(d) To hear and decide applications for relief from the provisions of the Cincinnati Zoning Code under the same authority granted to, and exercised by, the Zoning Hearing Examiner pursuant to Cincinnati Zoning Code Chapter 1445 when such relief is requested in connection with an application to subdivide land.

(e) To hear and decide applications for development permission in Hillside Overlay Districts under the same authority granted to, and exercised by, the Zoning Hearing Examiner pursuant to Cincinnati Zoning Code Chapter 1433 when such permission is requested in connection with an application to subdivide land.

(f) To hear and decide applications for development permission in Urban Design Overlay Districts under the same authority granted to, and exercised by, the Zoning Hearing Examiner pursuant to Cincinnati Zoning Code Chapter 1437 when such permission is requested in connection with an application to subdivide land.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0050-2019, §§ 11, 12, eff. 2-6-2019)

§ 1439-15. Council.

The Council has the following powers and duties under this Code:

(a) To adopt amendments to the Cincinnati Zoning Code and the Zoning Map, pursuant to the Charter, following action by the City Planning Commission.

(b) To hear and decide appeals from decisions of the City Planning Commission on Interim Development Control District permits, pursuant to the provisions of Chapter 1431, Interim Development Control Overlay District.

(c) To hear appeals arising out of the use of property owned or operated by the State of Ohio, Hamilton County, the City of Cincinnati, the Board of Education of the City School District of the City of Cincinnati, the University of Cincinnati or any agency of the state or its political subdivisions. See § 1449-01.

(d) To hear appeals arising out of the grant or denial of any permit for the use of property as a correctional facility or as a community correctional facility. See § 1449-01.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

Chapter 1441

APPLICATION PROCEDURES, PERMITS AND CERTIFICATES

§ 1441-01. Common Procedures for Review of Applications.
§ 1441-03. Zoning Administrator Procedures.
§ 1441-05. Covenants.
§ 1441-07. Certificate of Compliance.
§ 1441-09. Building Permits.
§ 1441-11. Certificates of Occupancy and Use.
§ 1441-13. Repealed.
§ 1441-15. Certificates of Occupancy for Seasonal Events.
§ 1441-17. Effect of Administrative Interpretations.

§ 1441-01. Common Procedures for Review of Applications.

Applications, related legal and other documents submitted pursuant to the Cincinnati Zoning Code, with the exception of petitions to amend the Cincinnati Zoning Code or Zoning Map, are processed in accord with the following procedures:

(a) *Determination of Completeness of Application*. Applications are submitted to staff for the applicable decision-making body on forms prescribed by the decision-making body. Upon receipt of an application, the staff for the receiving body has the duty to determine whether the application is complete within five working days of receipt of an application. If the staff determines that the application is not complete, the staff has the duty to notify the applicant in writing, specifying the deficiencies of the application, including any additional information that must be supplied and that no further action will be taken by the city on the application until the deficiencies are corrected.

(b) *Remedy of Deficiencies*. If the applicant fails to correct the specified deficiencies within 30 working days of the notification of deficiency, the application for development approval will be deemed withdrawn and will be returned to the applicant. The receiving body, on written request, may for good cause shown and without any notice or hearing, grant extensions of the 30 working day time limit for remedying of deficiencies.

(c) *Abutting Property Owners*. If notice to abutting property owners is required, the staff for the receiving body will provide the names and addresses of all abutting property owners as they appear in the official records of the Auditor of Hamilton County within a 100-foot radius of the subject property.

(d) *Fees*. Fees for applications, hearings and review of plans and other documents shall be at a reasonable cost basis as determined by the director of the department performing services associated with the applications, hearings, and plan review.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; Emer. Ord. No. 384-2009, § 8, eff. Dec. 21, 2009; Emer. Ord. No. 141-2015, § 63, eff. July 1, 2015)

§ 1441-03. Zoning Administrator Procedures.

Applications submitted pursuant to the Cincinnati Zoning Code seeking a decision by the Zoning Administrator are processed in accord with the following procedures:

(a) *Applications Decided by the Zoning Administrator.* Every application seeking a decision by the Zoning Administrator must be on forms specified by the Zoning Administrator, must be accompanied by the information specified on the application form or in instructions specified by the Zoning Administrator and must be accompanied by the required filing fee set forth in the fee schedule adopted pursuant to this chapter. Applications are processed in accordance with the common procedures set forth in this chapter.

(b) *Decision by Zoning Administrator.* The Zoning Administrator has the duty to render a decision to approve or deny an application no later than 30 days after determination of completeness of the application, unless the applicant consents in writing to additional

time. The Zoning Administrator may require, at the applicant's expense, additional studies, acquire additional data, or provide the applicant an opportunity to submit plan revisions.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; Emer. Ord. No. 141-2015, § 64, eff. July 1, 2015)

§ 1441-05. Covenants.

The Zoning Administrator has the following duties pertaining to covenants:

(a) *Acceptance of Covenants.* To obtain covenants from the owners of property whenever the Cincinnati Zoning Code requires the owner to file a covenant as a condition for the issuance of a permit or Certificate of Occupancy. Covenants must be in a form acceptable to the City Solicitor.

(b) *Recording.* To file covenants with the Hamilton County Recorder, the owner must pay for the costs of recording.

(c) *Release of Covenants.* To recommend to the City Manager the release of any covenant in favor of the city granted pursuant to the Cincinnati Zoning Code. The release must be in a form of written instrument acceptable to and approved by the City Solicitor. The Zoning Administrator may recommend the termination of a covenant if and only if the conditions that gave rise to the covenant being required no longer apply.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; Emer. Ord. No. 141-2015, § 65, eff. July 1, 2015)

§ 1441-07. Certificate of Compliance.

A person may apply to the Zoning Administrator, on forms prepared by the Zoning Administrator, for a Certificate of Compliance for the zoning of any building or premises. The applicant must furnish any additional information the Zoning Administrator may require to determine compliance with the Cincinnati Zoning Code. The Zoning Administrator has the duty to issue a Certificate of Compliance if and only if the intended use or occupancy conforms to the Cincinnati Zoning Code.

The Zoning Administrator may issue a temporary Certificate of Compliance for a part of a building or premises under conditions as necessary to assure the public health and safety.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; Emer. Ord. No. 141-2015, § 66, eff. July 1, 2015)

§ 1441-09. Building Permits.

A building, structure, land or any part thereof, may not be constructed until a building permit has been issued by the Director of Buildings and Inspections. The director may not issue a building permit for any construction until the Zoning Administrator has determined that the plats, plans, specifications and intended use conform to the Cincinnati Zoning Code. The lot or parcel and the location of the building or buildings must be fixed by survey before construction is started.

(a) *Forms, Information and Specifications Required.* An application for a building permit must be made to the director on forms provided for that purpose. The director must be

furnished with all plans and documents as may be required to allow the Zoning Administrator to determine compliance with the provisions of this Code. Applications for building permits must also be accompanied by those items the director and the Zoning Administrator deem pertinent and such additional information as the director may require to determine compliance with the provisions of this Code, including, but not limited to, plans, drawn to an architectural or engineering scale, showing the following:

(1) The exact shape and dimensions of the lot or parcel to be built on based on an actual survey;

(2) The exact size and location of existing structures;

(3) The lines within which the proposed structure is to be erected or altered;

(4) The existing and intended use of each building or part thereof;

(5) The number of dwelling units the building is designed to accommodate; and

(6) Such other information with regard to the lot and neighboring lots as may be necessary for the enforcement of the Cincinnati Zoning Code.

(b) *Access to a Use.* A building permit or Certificate of Occupancy and Use may not be issued for any building or use that would require access across a zoning district prohibiting the use. For the purposes of this Zoning Code, access to a use is deemed the use.

(c) *Time Limits for Zoning Approvals.* Issuance of a building permit vests the applicant the right to construct the work for which the permit was issued in accordance with the provisions of the Cincinnati Zoning Code in effect at the time of application. That right expires with the expiration of the building permit as provided in the Cincinnati Building Code, Title XI of the Cincinnati Municipal Code.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; Emer. Ord. No. 141-2015, § 67, eff. July 1, 2015)

§ 1441-11. Certificates of Occupancy and Use.

The Director of Buildings and Inspections has the duty to verify that the Zoning Administrator has determined that the proposed work complies with the Cincinnati Zoning Code and to ensure compliance with the Cincinnati Zoning Code through the issuance, issuance with conditions or denial of a Certificate of Occupancy and Use.

(a) *Use of Buildings or Land.* A building, structure, land, or any part thereof, may not be occupied or used and a building hereafter located, constructed, reconstructed, enlarged or structurally altered may not be occupied or used in whole or in part for any purpose until the director issues a Certificate of Occupancy and Use, on finding that the Zoning Administrator has determined the building and use comply with the provisions of this Code.

(1) A Certificate of Occupancy and Use may not be issued until construction is completed and the premises inspected and certified to be in conformity with the plans and specifications on which the building permit and other necessary permits were granted.

(2) A change or conversion of use may not be made in any land, building or part thereof, without a New Certificate of Occupancy and Use issued by the director.

(b) *Application.* An application for a Certificate of Occupancy and Use must be made in writing and signed by the applicant attesting to the truth and exactness of all information supplied on the application form

(c) *Approval of Certificate of Occupancy and Use.* The director may issue Certificates of Occupancy and Use only on finding that the Zoning Administrator has determined a use conforms with the provisions of this Code, any written decision from the Zoning Hearing Examiner or Zoning Board of Appeals deciding an appeal, conditional use, variance or special exception, and any final judgment of a court of competent jurisdiction arising out of the application.

(d) *Conditions of Approval.* Within 20 working days after the receipt of an application, the director has the duty to approve, approve with conditions or disapprove the application in conformance with the provisions of this Code.

(e) *Record of Certificates of Occupancy and Use.* The director has the duty to maintain a record of all Certificates of Occupancy and Use and to furnish copies on request and on payment of all applicable fees to any person.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 255-2005, eff. July 21, 2005; Emer. Ord. No. 141-2015, § 68, eff. July 1, 2015)

§ 1441-13. Repealed.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; r. Ord. No. 0037-2024, § 3, eff. January 31, 2024)

§ 1441-15. Certificates of Occupancy for Seasonal Events.

The Director of Buildings and Inspections may grant temporary and conditional permits for the use of buildings and land for seasonal events to terminate at a date specified in the permit, not to exceed 30 days from the date of such permit.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1441-17. Effect of Administrative Interpretations.

The Zoning Administrator may make administrative interpretations finding a particular use to be permitted as-of-right or as a conditional use. Such an interpretation does not authorize the establishment of such use nor the development, construction, reconstruction, alteration or moving of any building or structure. It merely authorizes the preparation, filing and processing of applications for any approvals and permits that may be required by this Code.

An administrative interpretation by the Zoning Administrator finding proposed work to be permitted as-of-right or permitted as a conditional use in a particular district only authorizes

the proposed work for which the interpretation is issued. Such interpretation does not authorize any other work for which a separate use interpretation has not been issued, even if the other work is similar in character to the work for which the interpretation was issued. (Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; Emer. Ord. No. 141-2015, § 69, eff. July 1, 2015)

Chapter 1443

ZONING HEARING EXAMINER PROCEDURES

§ 1443-01. Application Procedures and Content.
§ 1443-03. Receipt of Application and Staff Reports.
§ 1443-05. Public Hearing Schedule and Notice.
s; 1443-07. Public Hearing Procedure.
§ 1443-09. Zoning Hearing Examiner Decisions.
§ 1443-11. Appeal.

§ 1443-01. Application Procedures and Content.

All applications for a decision by the Zoning Hearing Examiner must be on forms specified by the examiner. Applications must be processed in accord with the common procedures for review of applications set forth in Chapter 1441, Application Procedures, Fees, Permits and Certificates. In addition to the application materials otherwise required by the Cincinnati Zoning Code, applications must include, at a minimum, the information specified on the application forms approved by the examiner, including, but not limited to, the following:

(a) A site plan of the proposed building or use, which complies with the specifications on the examiner application form.

(b) A narrative description of any proposal and reasons for the request.

(c) The names and addresses of all abutting property owners as they appear in the official records of the Auditor of Hamilton County within a 100-foot radius of the subject property.

(d) Such other information applicable to the building or use in question or as may be necessary, in the opinion of the examiner, to carry out the intent and purpose of this Code.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1443-03. Receipt of Application and Staff Reports.

After acceptance of an application pursuant to the provisions of Chapter 1441, Application Procedures, Fees, Permits and Certifications, the staff for the Zoning Hearing Examiner must notify the Director of City Planning of the applications within three working days following its acceptance. The Director of City Planning must provide the examiner with a staff report on the application prior to the scheduled public hearing on the application. The examiner may also forward an application to any other city department for review and request a staff report from any other city department. The failure to receive a staff report prior to the public hearing does not prohibit the examiner from proceeding with a scheduled hearing or deciding to approve, conditionally approve or deny an application.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; Emer. Ord. No. 141-2015, § 70, eff. July 1, 2015)

§ 1443-05. Public Hearing Schedule and Notice.

The Zoning Hearing Examiner has the duty to hold the required public hearing on an application within 30 days of receipt of the complete application. The examiner has the duty to send notice of the public hearing to the applicant, all owners of property located within a 100 foot radius of the subject property, a 250 foot radius of the subject property in the SF-20 and SF-10 zoning districts or the property owners of abutting properties not under the applicant's ownership, and appropriate community organizations known to the examiner to be concerned with the application of zoning regulations to properties in the vicinity of the subject property at least 14 days in advance of the public hearing. The examiner has the duty to advertise notice of the public hearing in the City Bulletin or other newspaper of general circulation at least seven days prior to the hearing.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 256-2005, eff. July 21, 2005; a. Ord. No. 413-2008, § 1, eff. Jan. 4, 2009; Emer. Ord. No. 141-2015, § 71, eff. July 1, 2015)

§ 1443-07. Public Hearing Procedure.

The applicant may be represented by counsel or agent at any public hearing of the case before the Zoning Hearing Examiner. The applicant's side of the case is heard first and those in objection follow. To maintain orderly procedure, each side proceeds without interruption by the other. Every person before the examiner has the duty to abide by the order and direction of the examiner presiding over the hearing.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1443-09. Zoning Hearing Examiner Decisions.

The Zoning Hearing Examiner has the duty to issue a written decision on an application within ten working days of the close of the public hearing on the application, or within 14 days of receipt of an application for which a public hearing has been waived, unless the applicant agrees to an extension of the time for issuance of a decision.

The following conditions will apply to all approvals granted by the examiner. These conditions are in addition to any other conditions set by the Examiner or required by the Cincinnati Zoning Code:

(a) *Permit Expiration and Extension.* A permit for construction or the use of land or buildings for which an approval has been granted must be obtained within two years from the date of the decision of the examiner, unless the decision specifically provides a different time frame for commencement of work. Prior to the ending of the two year period, the applicant may submit a written request for an extension of the decision to the Zoning Administrator. If the Zoning Administrator determines that the approval is still in compliance with all applicable codes, the decision may be extended for an additional six months. Any further extension requires the approval of the examiner; a public hearing is not needed for such approval.

(b) *Compliance.* The Director of Buildings and Inspections has the authority to inspect all properties for compliance with conditions of approval as often as necessary to assure continued compliance.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; Emer. Ord. No. 141-2015, § 72, eff. July 1, 2015)

§ 1443-11. Appeal.

Any party with standing may appeal any decision of the Zoning Hearing Examiner to the Zoning Board of Appeals within 30 days of issuance of the decision. For purposes of the Cincinnati Zoning Code a party with standing will include:

(a) *The Applicant.* Any applicant or owner of property that is the subject of a final decision of the examiner.

(b) *Person Affected.* Any person affected by a final decision on an application made following a public hearing and who expressed in writing a position prior to the hearing, or testified at the hearing, including any owner or occupant of the subject property, any owner or occupant of property abutting or otherwise substantially affected by the decision, any community or neighborhood association or organization whose boundaries include or abut the subject property.

(c) *Community Organization.* A community organization recognized by the Council as representing the area that includes the subject property and that has prepared a community plan accepted by the council, regardless of whether the organization expressed an opinion in writing prior to the hearing or having testified through a representative at the hearing.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

Chapter 1445

VARIANCES, SPECIAL EXCEPTIONS AND CONDITIONAL USES

§ 1445-01. Purpose of Variances.
§ 1445-03. Purpose of Special Exceptions.
§ 1445-05. Purpose of Conditional Uses.
§ 1445-07. Authority to Grant Variances, Special Exceptions and Conditional Uses.
§ 1445-09. Parties Entitled to Seek Variances, Special Exceptions and Conditional Uses.
§ 1445-11. Procedures for Application for Variances, Special Exceptions and Conditional Uses.
§ 1445-13. General Standards; Public Interest.
§ 1445-15. Standards for Variances.
§ 1445-16. Use Variance Standards.
§ 1445-17. Standards for Variances to Accommodate Persons with Disabilities.
§ 1445-19. Standards for Special Exceptions.
§ 1445-21. Standards for Conditional Uses.
§ 1445-23. Conditions of Approval.
§ 1445-25. Effect of Grant of Variance, Special Exception or Conditional Use.
§ 1445-27. Limitations on Variances, Special Exceptions and Conditional Uses.
§ 1445-29. Revocation of Variances, Special Exceptions and Conditional Uses.
§ 1445-30. *De Minimis* Variance.
§ 1445-31. Appeals.

§ 1445-01. Purpose of Variances.

The variance procedures are intended to provide a means by which relief from dimensional, numerical or locational standards may be granted from a particular application of the Cincinnati Zoning Code or the Land Development Code that is unreasonable and creates practical difficulties.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; Emer. Ord. No. 0429-2007, § 1, eff. Nov. 28, 2007; a. Ord. No. 459-2010, § 1, eff. Jan. 23, 2011; Emer. Ord. No. 244-2015, § 2, eff. July 1, 2015)

§ 1445-03. Purpose of Special Exceptions.

Special exceptions are permitted as exceptions to the performance standards of this Code and require a careful review of such factors as location, design, configuration and relation to adjacent uses to determine the desirability of authorizing the exception on any given site. Special exceptions may or may not be appropriate in a particular location depending on the impacts on adjacent uses and how adverse impacts may be minimized through building design, building siting, location of driveway and parking and screening.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1445-05. Purpose of Conditional Uses.

A conditional use is a use that has potential adverse impacts on the immediate neighborhood. Such impacts may interfere with the use and enjoyment of adjacent property and uses. The process for review of conditional use applications is designed to address such adverse impacts and minimize them where possible. A conditional use requires a careful review of its location, design, configuration and special impact to determine, against specific standards, the desirability of permitting its establishment on a particular site.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1445-07. Authority to Grant Variances, Special Exceptions and Conditional Uses.

The Zoning Hearing Examiner may grant variances, special exceptions and conditional uses, in accordance with the procedures and standards enumerated in this Chapter.

(a) *Variances.* The examiner may not grant a variance that is greater than the minimum necessary relief demonstrated by the applicant or authorizes a change in use that would permit a use contrary to the use regulations of the applicable zoning district.

(b) *Special Exceptions.* The examiner may consider applications only for those special exceptions specifically listed in Schedule 1445-07, List of Allowable Special Exceptions.

(c) *Conditional Uses.* The examiner may, in accord with regulations applicable to the district in which the subject property is located, approve uses listed as conditional uses in the schedule of use regulations for a district or for a category of zoning districts. Conditional uses are also subject to the special provisions of the district use regulations in those districts where such conditional uses are authorized.

Schedule 1445-07: List of Allowable Special Exceptions

Standard	*Chapter or § Reference*
Building Placement Requirements	§ 1409-19, 1409-21
Commercial Continuity	§ 1411-17
Ground Floor Transparency	§ 1409-23, 1411-21
Location of Parking	§ 1409-25, 1425-15
Additional Development Regulations	Chapter 1419
Landscaping and Buffer Yards	Chapter 1423
Portable Storage Containers	§ 1419-24
Parking Lot Landscaping	§ 1425-29
Parking Lot Screening	§ 1425-27
UM District Off-Street Parking	§ 1410-09
Front Yard Modifications	§ 1421-21

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 257-2005, eff. July 21, 2005; a. Ord. No. 369-2006, § 1, eff. Jan. 20, 2007; a. Ord. No. 414-2008, § 24, eff. Jan. 4, 2009; a. Ord. No. 300-2009, § 1, eff. Dec. 12, 2009)

§ 1445-09. Parties Entitled to Seek Variances, Special Exceptions and Conditional Uses.

Any property owner or authorized agent of the owner of the property affected may apply for variances, special exceptions and conditional uses. Any City agency or department may apply for a variance or special exception if the strict application of the zoning code or the Land Development Code conflicts with the application of public safety and health requirements.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 258-2005, eff. July 21, 2005; Emer. Ord. No. 244-2015, § 3, eff. July 1, 2015)

§ 1445-11. Procedures for Application for Variances, Special Exceptions and Conditional Uses.

The procedures for the application and application review for variances, special exceptions and conditional uses are as follows:

(a) Application Form and Materials. An application for a variance, special exception or conditional use must be filed in accordance with the provisions of Chapter 1441, Application Procedures, Permits and Certificates.

(b) Application Procedures. The following procedures apply to the review of applications for a variance, special exception or conditional use:

(1) The Director of City Planning has the duty to prepare a staff report on the application and transmit the staff report to the Zoning Hearing Examiner prior to the public hearing.

(2) The examiner has the duty to schedule and hold a public hearing on the completed application in accord with the procedures for conduct of the public hearing set forth in § 1443-05 and § 1443-07.

(3) Staff reports received by the examiner are to be considered at a public hearing. Following the conclusion of the public hearing and within ten working days, the examiner has the duty to take one of the following actions:

(A) Approve the application.

(B) Approve the application subject to specific conditions.

(C) Postpone a decision pending consideration of additional information.

(D) Deny the application.

(c) Coordinated Review and Approval of Applications. Whenever, in addition to a variance, special exception or conditional use pursuant to this chapter, the applicant also requires another decision by the examiner, the applicant must simultaneously file all other required applications. All required notices must include reference to the request for all required examiner approvals.

(d) Public Hearing Waiver.

(1) Property Owner or Authorized Agent. The examiner may waive the public hearing requirement on applications for a variance from side and rear yard and open space requirements and on all other applications for which public hearing waivers are specifically provided in this Code. Applicants requesting a public hearing waiver must submit a site plan of the proposed project, signed by every concerned community organization identified by the Director of City Planning and the owners of every parcel of abutting real property.

(2) City Agency or Department. The examiner may waive the public hearing requirement on applications for a variance or special exception when a City agency or department makes the request where the strict application of the zoning code or the Land Development Code would be detrimental to the public health or safety in writing to the Director of Buildings and Inspections prior to zoning approval being issued. The examiner has the duty to provide notice of the decision to property owners within a 100-foot radius of the subject property and the community organization recognized by Council as representing the area that includes the subject property. This notification shall include the deadline date to file an appeal of the examiner's decision.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 258-2005, eff. July 21, 2005; a. Ord. No. 0059-2008, § 1, eff. March 13, 2008; Emer. Ord. No. 141-2015, § 73, eff. July 1, 2015; Emer. Ord. No. 244-2015, § 5, eff. July 1, 2015)

§ 1445-13. General Standards; Public Interest.

The Zoning Hearing Examiner may grant variances, special exceptions and conditional uses, in accordance with the procedures and standards enumerated in this chapter. The examiner may approve an application for a variance, special exception or conditional use if the proposal conforms with all applicable laws, ordinances and regulations and is in the public interest. In determining whether the work is in the public interest, the examiner has the duty to consider those factors listed below that are relevant to the work and apply them in light of his or her

professional training and experience. The failure of the proposed work to conform to any single factor or guideline is not necessarily a sufficient basis for denial. The examiner has the duty to approve work that maximizes both the public interest and private benefits.

(a) *Zoning.* The proposed work conforms to the underlying zone district regulations and is in harmony with the general purposes and intent of the Cincinnati Zoning Code or the Land Development Code, as applicable.

(b) *Guidelines.* The proposed work conforms to any guidelines adopted or approved by Council for the district in which the proposed work is located.

(c) *Plans.* The proposed work conforms to a comprehensive plan, any applicable urban design or other plan officially adopted by Council, and any applicable community plan approved by the City Planning Commission.

(d) *Traffic.* Streets or other means of access to the proposed development are suitable and adequate to carry anticipated traffic and will not overload the adjacent streets and the internal circulation system is properly designed.

(e) *Buffering.* Appropriate buffering is provided to protect adjacent uses or properties from light, noise and visual impacts.

(f) *Landscaping.* Landscaping meets the requirements of Chapter 1423, Landscaping and Buffer Yards.

(g) *Hours of Operation.* Operating hours are compatible with adjacent land uses.

(h) *Neighborhood Compatibility.* The proposed work is compatible with the predominant or prevailing land use, building and structure patterns of the neighborhood surrounding the proposed development and will not have a material net cumulative adverse impact on the neighborhood.

(i) *Proposed Zoning Amendments.* The proposed work is consistent with any proposed amendment to the zoning code or the Land Development Code then under consideration by the City Planning Commission or Council.

(j) *Adverse Effects.* Any adverse effect on the access to the property by fire, police, or other public services; access to light and air from adjoining properties; traffic conditions; or the development, usefulness or value of neighboring land and buildings.

(k) *Blight.* The elimination or avoidance of blight.

(l) *Economic Benefits.* The promotion of the Cincinnati economy.

(m) *Job Creation.* The creation of jobs both permanently and during construction.

(n) *Tax Valuation.* Any increase in the real property tax duplicate.

(o) *Private Benefits.* The economic and other private benefits to the owner or applicant. (p) *Public Benefits.* The public peace, health, safety or general welfare.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; Emer. Ord. No. 244-2015, § 5, eff. July 1, 2015)

§ 1445-15. Standards for Variances.

Subject to the other provisions of this Chapter, the Zoning Hearing Examiner may grant a variance from the requirements of the Cincinnati Zoning Code or the Land Development Code, provided the condition giving rise to the request for the variance was not created by the owner or any predecessor in title. In order to grant approval, the examiner has to find that requested variance is not contrary to the intent and purpose of this Code or the Land Development Code, as applicable, and the zone district nor detrimental or injurious to the public health, safety and general welfare based on either of the following:

(a) Owing to special circumstances or conditions pertaining to a specific piece of property, the strict application of the provisions or requirements of this Code or the Land Development Code, as applicable, are unreasonable and would result in practical difficulties.

(b) The variance is necessary for the preservation and enjoyment of a substantial property right of the applicant possessed by owners of other properties in the same district or vicinity.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; Emer. Ord. No. 244-2015, § 6, eff. July 1, 2015)

§ 1445-16. Use Variance Standards.

No variance shall be granted to allow a use not permissible under the terms of the Zoning Code or the Land Development Code in the zoning district in which the property is located, unless the Zoning Hearing Examiner finds that the applicant for the use variance has demonstrated that the applicant will suffer unnecessary hardship if strict compliance with the terms of the Code or the Land Development Code is required and such hardship must be demonstrated by clear and convincing evidence as to the following criteria:

(a) The property cannot be put to any economically viable use under any of the permitted uses in the zoning district;

(b) The variance requested stems from a condition that is unique to the property at issue and not ordinarily found in the same zone or district;

(c) The hardship condition is not created by actions of the applicant;

(d) The granting of the variance will not adversely affect the rights of adjacent property owners or residents;

(e) The granting of the variance will not adversely affect the community character, public health, safety or general welfare;

(f) The variance will be consistent with the general spirit and intent of the Zoning Code or the Land Development Code, as applicable; and

(g) The variance sought is the minimum that will afford relief to the applicant.

(Ordained by Ord. No. 360-2010, § 1, eff. Nov. 13, 2010; Emer. Ord. No. 244-2015, § 7, eff. July 1, 2015)

§ 1445-17. Standards for Variances to Accommodate Persons with Disabilities.

The Zoning Hearing Examiner may authorize a variance from provisions of the Cincinnati Zoning Code and the Land Development Code that limit the number of persons who may live together as a single-housekeeping unit in a dwelling unit on finding that all of the following circumstances apply:

(a) The variance is necessary as a reasonable accommodation of persons with disabilities;

(b) The denial of the variance would result in the denial of the equal opportunity of persons with disabilities to use and enjoy occupancy of a dwelling;

(c) The variance is not materially detrimental to the public welfare or injurious to property in the district or vicinity in which the property is located; and

(d) In a residential district, the maximum number persons that the Zoning Hearing Examiner may authorize to live together as a single-housekeeping unit is eight.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; Emer. Ord. No. 141-2015, § 74, eff. July 1, 2015; Emer. Ord. No. 244-2015, § 8, eff. July 1, 2015)

§ 1445-19. Standards for Special Exceptions.

An application for a special exception may not be approved unless the Zoning Hearing Examiner determines that the proposed special exception is appropriate in the location proposed based on the following standards and, where applicable, the special standards for specific special exceptions. A special exception may be granted only if the examiner makes all of the following findings:

(a) *Compliance With Code and District Purposes.* The proposed development will be consistent with the purposes of this Code or the Land Development Code, as applicable, and the district where the use is located.

(b) *No Substantial Impairment of Property Value.* The proposed development will not substantially diminish or impair the value of property within the neighborhood in which it is located.

(c) *No Undue Adverse Impact.* The proposed development will not have an adverse effect on the character of the area or the public health, safety and general welfare. The proposed special exception will be constructed, arranged and operated so as to be compatible with the use and development of neighboring property in accord with applicable district regulations.

(d) *Compliance With Other Standards.* The proposed development complies with all other standards imposed on it by this Code or the Land Development Code, as applicable.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; Emer. Ord. No. 244-2015, § 9, eff. July 1, 2015)

§ 1445-21. Standards for Conditional Uses.

The Zoning Hearing Examiner may approve a conditional use if and only if the conditional use is specifically listed in the applicable zoning district use regulations.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1445-23. Conditions of Approval.

In authorizing a variance, special exception or conditional use, the Zoning Hearing Examiner may impose such conditions that are determined to be in the public interest and necessary to mitigate any harmful effects of the variance, special exception or conditional use. The examiner may require a bond or other acceptable form of surety to insure compliance with the conditions imposed. These conditions must be expressly set forth in the examiner's decision granting the variance, special exception or conditional use.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1445-25. Effect of Grant of Variance, Special Exception or Conditional Use.

The grant of a variance, special exception or conditional use does not authorize the establishment or extension of any use nor the development, construction, reconstruction, alteration or moving of any building or structure but may merely authorize the preparation, filing and processing of applications for any permits and approval that may be required.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1445-27. Limitations on Variances, Special Exceptions and Conditional Uses.

Subject to an extension of time granted under Chapter 1443, Zoning Hearing Examiner Procedures, a variance, special exception or conditional use expires two years after issuance in accordance with § 1443-09.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1445-29. Revocation of Variances, Special Exceptions and Conditional Uses.

Violation of any condition or limitation on the grant of a variance, special exception or conditional use is a violation of this Code or the Land Development Code, as applicable, and constitutes grounds for revocation of the variance, special exception or conditional use pursuant to Chapter 1451, Enforcement.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; Emer. Ord. No. 244-2015, § 10, eff. July 1, 2015)

§ 1445-30. *De Minimis* Variance.

Where a minor or *de minimis* variance could be achieved only at unreasonable expense or inconvenience to an applicant, the Zoning Administrator may grant a *de minimis* variance without a public hearing or written decision upon determining that the *de minimis* variance is in harmony with the general purposes and intent of the Cincinnati Zoning Code, is in the public interest, and would not enlarge a previously granted variance. A *de minimis* variance is defined as the lesser of (a) a ten percent (10%) or (b) a ten foot (10') deviation from the prescribed dimensional requirement or standard. This Section 1445-30 shall operate to permit the Zoning Administrator to grant a *de minimis* variance exclusively from the general site standards set forth in Chapter 1421, the development regulations set forth in Cincinnati Zoning Code Sections 1403-07, 1405-07, 1407-07, 1409-09, 1410-07, 1411-07, 1413-07, 1415-09, 1416-07, 1417-07, and the dimensional and height requirements set forth in Cincinnati Zoning Code Sections 1427-23, 1427-25, 1427-26, 1427-27, 1427-29, 1427-33, 1427-35, 1427-37, and 1427-39, and from no other section of the Cincinnati Zoning Code. The Zoning Administrator shall not be

permitted to grant a *de minimis* variance on any lot or for any structure located in a Hillside Overlay District, Historic Overlay District, or Urban Design Overlay District, or for a floor area ratio or averaged setback. Nothing contained herein shall be construed to in any way affect the authority of the Zoning Administrator to grant a minor amendment to a Concept Plan or a Final Development Plan as provided for in Sections 1429-12 and 1429-21. An applicant for a *de minimis* variance shall apply directly to the Zoning Administrator on forms that are provided and shall pay a fee in connection with such application, the amount of which shall be determined by the Zoning Administrator from time to time. Each applicant shall be required to provide notice by certified mail to each abutting and adjacent property owner within three (3) business days after the date of the filing of the *de minimis* variance application. Such owners shall be identified according to the records on file with the Hamilton County Auditor. An applicant shall only need to provide proof of such mailing for notice to be deemed sufficient. Notwithstanding anything to the contrary contained in Section 1441-03, the Zoning Administrator shall provide written notice to the applicant of his or her decision to grant or deny a *de minimis* variance not later than twenty (20) days of the date of the filing of the application. Such written notice need not include findings of fact or conclusions of law. The Zoning Administrator shall publish notice of the grant of a *de minimis* variance in the next available issue of the "City Bulletin." Any party with standing may appeal the Zoning Administrator's decision regarding an application for a *de minimis* variance to the Zoning Board of Appeals pursuant to Cincinnati Zoning Code Section 1449-09(a).
(Ordained by Ord. No. 364-2010, § 1, eff. Nov. 13, 2010; Emer. Ord. No. 141-2015, § 75, eff. July 1, 2015)

§ 1445-31. Appeals.

Any party with standing may appeal to the Zoning Board of Appeals pursuant to Chapter 1449, Zoning Board of Appeals, within 30 days of the decision of the Zoning Hearing Examiner.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

Chapter 1447

NONCONFORMING USES AND STRUCTURES

§ 1447-01. Purpose.
§ 1447-03. Authority to Continue and Maintain.
§ 1447-05. Nonconforming Structures.
§ 1447-07. Abandonment of Nonconforming Use.
§ 1447-09. Expansion of Nonconforming Use.
§ 1447-11. Substitution of a Nonconforming Use.
§ 1447-13. Nonconforming Residential Buildings.
§ 1447-15. Application Procedures.
§ 1447-17. Standards for the Expansion or Substitution of Nonconforming Uses.
§ 1447-19. Limitations on Expansion or Substitution of Nonconforming Use.
§ 1447-21. Revocation of Expansion or Substitution of Nonconforming Use.
§ 1447-23. Reconstruction of Nonconforming Use and Structure.

§ 1447-01. Purpose.

The purpose of this Chapter is to regulate:

(a) *Nonconforming Uses.* Uses lawfully established prior to the effective date of this Code that do not conform to the use regulations of this Code in the zoning districts in which such uses are located; and

(b) *Nonconforming Structures.* Buildings and structures lawfully constructed prior to the effective date of this Code that do not comply with the applicable bulk regulations of this Code in the zoning districts in which such buildings or structures are located.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1447-03. Authority to Continue and Maintain.

Nonconforming uses and structures may be continued as follows:

(a) *Continuation of Nonconforming Use.* A nonconforming use that lawfully occupies a structure or a land site on the effective date of this Code may be continued so long as it remains otherwise lawful, subject to the standards and limitations in this chapter.

(b) *Continuation of Nonconforming Structure.* A nonconforming structure that lawfully occupies a lot on the effective date of the Cincinnati Zoning Code and that does not conform with the standards for yards, buffers, height, gross floor area of structures, driveways, location of parking or open space for the district in which the structure is located may be used and maintained, subject to the standards and limitations in this chapter.

(c) *Continuation of Nonconforming Accessory Uses and Structures.* The continued existence of nonconforming accessory uses and structures is subject to the provisions governing principal nonconforming uses and structures set forth in this chapter.

(d) *Maintenance, Repair and Structural Safety.* Normal maintenance and incidental repair may be performed on a conforming structure that contains a nonconforming use or on a nonconforming structure.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0346-2007, § 15, eff. Oct. 13, 2007)

§ 1447-05. Nonconforming Structures.

A nonconforming structure may not be moved, expanded or altered, except in the manner provided in this section or unless required by law.

(a) *Repair, Maintenance, and Alterations.* A nonconforming structure may be repaired, maintained, or altered; provided, however, that no such repair, maintenance, or alteration shall either create any new nonconformity or increase the degree of the existing nonconformity of all or any part of such structure without having first obtained a variance pursuant to Chapter 1445.

(b) *Expansion*. A nonconforming structure may be expanded subject to the following standards:

1. The expansion will not create a new nonconformity or increase the degree of an existing nonconformity unless a variance is obtained pursuant to Chapter 1445; or
2. The expansion extends an existing legal non-conforming side yard setback and all of the following conditions are met:
   i. The expansion is a single-story, ground-level addition.
   ii. The expansion complies with rear yard setback requirements.
   iii. The expansion continues along the same plane of the existing wall and does not narrow the existing side yard setback.
   iv. The overall building depth does not exceed 60 feet prior to or after the expansion; and
   v. The expansion has a minimum side yard setback of five feet.

(c) *Moving*. A nonconforming structure, including nonconforming signs, may not be moved, in whole or in part, for any distance whatsoever, to any other location on the same lot or to any other lot unless the entire structure conforms to the regulations of the zoning district in which it is located after being moved.

(d) *Decks and Porches*. A legal non-conforming deck or porch may be reconstructed in the same footprint, height, and opacity provided that no such reconstruction increases the degree of the nonconformity without having first obtained a variance pursuant to Chapter 1445.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 259-2005, eff. July 21, 2005; a. Ord. No. 003-2009, § 1, eff. Feb. 14, 2009; a. Emer. Ord. No. 199-2024, § 2, eff. 7-1-2024)

§ 1447-07. Abandonment of Nonconforming Use.

A nonconforming use of land or of a structure in a district that is abandoned may not be reestablished or resumed. Any subsequent use or occupancy of the structure or land must conform to the regulations for the district in which it is located.

Abandoned means the interruption for a period of 365 consecutive days of active or productive operations of the nonconforming use on the land or within the structure or the removal or destruction of the nonconforming elements. Any period of abandonment caused by government action and without any contributing fault by the nonconforming user is not considered in determining the period of abandonment.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1447-09. Expansion of Nonconforming Use.

On application to the Zoning Hearing Examiner pursuant to the procedures and standards established in this chapter, a nonconforming use may be expanded subject to the standards as follows:

(a) A nonconforming use may be expanded through the entire building, however, expansion of the existing building is prohibited, except as otherwise provided for two-family structures.

(b) A two-family structure in a single family residential district that was legally established as of February 13, 2004 or for which a building permit had been issued as of February 13, 2004, may be expanded or enlarged within the requirements of the district in which the structure is located, provided there is no increase in the number of dwelling units. The Zoning Hearing Examiner may grant a variance for a proposed expansion or enlargement that does not meet the district requirements pursuant to the procedures and criteria of Chapter 1445, Variances, Special Exceptions and Conditional Uses in addition to the standards enumerated in this chapter.

(c) The expansion of the nonconforming uses of land without buildings may not exceed, in all, 50% of the area devoted to the existing nonconforming use of land. Provided further that expansion of a nonconforming use is limited to expansion on the lot currently occupied by the use and may not extend beyond a district boundary line into a more restrictive district.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 100-2006, § 1, eff. May 18, 2006)

§ 1447-11. Substitution of a Nonconforming Use.

The Zoning Hearing Examiner may allow the substitution of a nonconforming use for another nonconforming use permitted in another district as specified in Schedule 1447-11 - Substitution Rights for a Nonconforming Use. Whenever any nonconforming use is changed to a conforming use, such use may not later be changed to a use other than a conforming use.

Schedule 1447-11: Substitution Rights for a Nonconforming Use

Location of Nonconforming Use	*Substitution Rights*	*Location of Nonconforming Use*	*Substitution Rights*	*Location of Nonconforming Use*	*Substitution Rights*
SF-20	None[1]	RM0.7	OL	DD	None
SF-10	None[1]	OL	OG	MA	SF-10
SF-6	None[1]	OG	CN-P, CN-M	ML	MG
SF-4	None[1]	CN-P	CN-M	MG	None
SF-2	None[1]	CN-M	CC-P	RF-R	RF-C
RMX	RM0.7	CC-P	CC-M	RF-C	RF-M
RM-2.0	RM0.7	CC-M	CC-A	RF-M	None
RM-1.2	OL	CC-A	CG-A	I-R	None
UM	ML	CGA	ML		

[1]See § 1447-13

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0221-2007, § 9, eff. July 6, 2007; a. Ord. No. 0060-2008, § 10, eff. March 13, 2008)

§ 1447-13. Nonconforming Residential Buildings.

In the case of a nonconforming residential building, an increase in the number of dwelling units within the existing gross floor area or through an extension of the gross floor area is not permitted. Provided, however, in the case of a building used in part for nonresidential

purposes, if the nonresidential use is relinquished, the number of dwelling units may be increased by one within the existing gross floor area irrespective of the minimum lot area for every dwelling unit requirements of the district in which the building is located.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 0346-2007, § 15, eff. Oct. 13, 2007)

§ 1447-15. Application Procedures.

An application for a substitution of a nonconforming use may be filed with staff for the Zoning Hearing Examiner in accord with the application procedures under Chapter 1441, Application Procedures, Fees, Permits and Certificates. Applications must include a complete description of the proposed use and such other information as the Zoning Hearing Examiner determines is necessary to decide the application, as shown on the application form approved by the Zoning Hearing Examiner. In the review and decision of applications, the following procedures apply:

(a) *Staff Report*. The Director of City Planning has the duty to prepare a staff report on the application and transmit the staff report to the Zoning Hearing Examiner prior to the public hearing.

(b) *Public Hearing*. The examiner has the duty to schedule and hold a public hearing on the completed application in accord with the procedures for conduct of the public hearing set forth in § 1443-07

(c) *Action*. Staff reports received by the examiner are to be considered at a public hearing. Following the conclusion of the public hearing and within ten working days, the examiner has the duty to take one of the following actions:

(1) Approve the application.

(2) Approve the application subject to specific conditions.

(3) Postpone a decision pending consideration of additional information.

(4) Deny the application.

(d) *Coordinated Review and Approval of Applications*. Whenever, in addition to approval of an application for a substitution of a nonconforming use pursuant to this chapter, the applicant also requires a variance or other approval from the examiner, the applicant must simultaneously file all other applications and required applications with the director. All required notices must include reference to the request for all required examiner approvals.

(e) *Conditions*. The Zoning Hearing Examiner may impose such conditions that are determined to be in the public interest and necessary to mitigate any harmful effects of the substitution of the nonconforming use. The examiner may require a bond or other acceptable form of surety to insure compliance with the conditions imposed. These conditions must be expressly set forth in the examiner's decision.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; Emer. Ord. No. 141-2015, § 76, eff. July 1, 2015)

§ 1447-17. Standards for the Expansion or Substitution of Nonconforming Uses.

The Zoning Hearing Examiner may approve, approve with conditions or disapprove an application for expansion or substitution of a nonconforming use as limited in § 1447-09 and § 1447-11 based on written findings of fact in consideration of the following standards. The failure of the proposed work to conform with any single factor or standard may not necessarily be a sufficient basis for denial:

(a) *Consistent.* The proposed use is consistent with the general purposes and intent of the Cincinnati Zoning Code;

(b) *Safety and Efficiency.* The proposed use promotes the safe and efficient use of land;

(c) *Compatibility.* The proposed use is compatible with other adjacent land uses and buildings existing in the surrounding area;

(d) *Neighborhood Compatibility.* The proposed use is consistent with the purposes of the zoning district in which the use is located and does not negatively impact the value of surrounding property; and

(e) *Limited Purpose Building.* The proposed use would be located in a building that is specially equipped or structurally designed for that use.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1447-19. Limitations on Expansion or Substitution of Nonconforming Use.

Subject to an extension of time granted pursuant to Chapter 1445, Zoning Hearing Examiner Procedures, an expansion or substitution of a nonconforming use must be completed within two years of the date of the decision in accordance with the provisions of § 1443-09.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1447-21. Revocation of Expansion or Substitution of Nonconforming Use.

Violation of any condition or limitation on the grant of an approval of an expansion or substitution of a nonconforming use is a violation of the Cincinnati Zoning Code and constitutes grounds for revocation of the approval, pursuant to the provisions of Chapter 1451, Enforcement.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1447-23. Reconstruction of Nonconforming Use and Structure.

(a) A nonconforming use, building or structure, or improvement or one or more of a group of nonconforming buildings or structures related to one use and under one ownership, substantially destroyed by fire, flood, earthquake or other act of God, may not be reconstructed or used as before such calamity.

As used in this section, "substantially destroyed" means that the estimated cost of reconstruction exceeds 150 percent of the assessed improvement value as determined from the records of the Hamilton County Auditor of all the buildings or structures within the group of one or more nonconforming buildings or structures related to one use and under one

ownership. The estimated cost of reconstruction is as submitted in a verified affidavit acceptable to the Zoning Administrator as reasonable. The repairs and reconstruction must be completed within two years of the date of the damage.

If the estimated cost of reconstruction exceeds 150 percent of the assessed improvement value, the use of the property and the reconstruction of the building must be in accordance with the provisions of this Zoning Code.

(b) Regardless of its estimated cost of reconstruction, a legal, nonconforming building or structure located in the DD, "Downtown Development," zoning district may be reconstructed based upon its existing floor area ratio or existing floor area ratio regulations, whichever is more permissive, if it meets both of the following criteria:

(1) It was constructed under a building permit approved on or before February 13, 2004; and

(2) It is involuntarily destroyed on or after the effective date of this provision.

Buildings reconstructed under this provision must conform to all other applicable development regulations, including maximum building height regulations.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; Emer. Ord. No. 141-2015, § 77, eff. July 1, 2015; a. Ord. No. 147-2018, § 1, eff. July 13, 2018)

Chapter 1449

ZONING APPEALS

§ 1449-01. Purpose and Authority.
§ 1449-03. Person Affected.
§ 1449-05. Rules and Regulations.
§ 1449-07. Public Hearing Notice and Procedures.
§ 1449-09. Appeals to the Zoning Board of Appeals.
§ 1449-11. Time Limit for Appeals.
§ 1449-13. Procedures for Appeals from Decisions of the Zoning Administrator, the Director of Buildings and Inspections or the City Planning Commission.
§ 1449-15. Procedures for Appeals from Decisions of the Zoning Hearing Examiner or Historic Conservation Board.
§ 1449-17. Decision.
§ 1449-19. Appeal.

§ 1449-01. Purpose and Authority.

The purpose of this chapter is to establish the process for hearing and deciding on appeals of decisions made under this Code and the Land Development Code. The Zoning Board of Appeals has the duty to hear all appeals arising out of the Cincinnati Zoning Code and the Land Development Code except where appeal to a different forum is expressly provided, including decisions of the Historic Conservation Board pertaining to the grant or denial of a Certificate of Appropriateness.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; Emer. Ord. No. 244-2015, § 11, eff. July 1, 2015; a. Emer. Ord. No. 199-2024, § 2, eff. 7-1-2024)

§ 1449-03. Person Affected.

As used in this chapter "person affected" means:

(a) Any applicant for a permit or owner of property that is the subject of a final decision or order of the Zoning Administrator, the Director of Building and Inspections, the Historic Conservation Board or the Zoning Hearing Examiner.

(b) Any applicant or owner of property that is the subject of a final decision or order of the City Planning Commission concerning the renewal, revision or approval of a final development plan of a Planned Development.

(c) Any owner or occupant of property abutting subject property.

(d) Any other person who is substantially and adversely affected by a final decision of the Historic Conservation Board or the Zoning Hearing Examiner made following a public hearing, who expressed in writing a position prior to the hearing or testified at the hearing.

(e) A community organization recognized by Council as representing the area that includes the subject property and that has prepared a community plan accepted by Council has standing to appeal without regard to having expressed an opinion in writing prior to the hearing or having testified through a representative at the hearing.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; Emer. Ord. No. 141-2015, § 78, eff. July 1, 2015)

§ 1449-05. Rules and Regulations.

The Zoning Board of Appeals may adopt from time to time rules of procedure as the Board deems necessary to carry out the performance of its functions.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1449-07. Public Hearing Notice and Procedures.

The staff for the Zoning Board of Appeals has the duty to give notice of hearings before the Board by publication one time in the "City Bulletin" not less than six days in advance of the hearing. At least three members of the Zoning Board of Appeals must be present at the hearing. At any public hearing of the case before the board, the person affected may be represented by counsel or agent. The appellant's side of the case is heard first and those in

objection follow. Every person who appears before the Board has the duty to abide by the order and direction of the officer presiding over the hearing. The presiding officer may exclude from the hearing any person whose conduct is discourteous or contemptuous.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; Emer. Ord. No. 141-2015, § 79, eff. July 1, 2015)

§ 1449-09. Appeals to the Zoning Board of Appeals.

The following persons may appeal to the Zoning Board of Appeals:

(a) Persons Affected by a Final Decision of the Zoning Administrator, the Director of Buildings and Inspections or the Zoning Hearing Examiner. Any person affected, as defined in § 1449-03, by a final decision of the Zoning Administrator, the Director of Buildings and Inspections or the Zoning Hearing Examiner has standing to appeal to the Zoning Board of Appeals.

(b) Persons Affected by Certain Decisions of the Historic Conservation Board. A person affected by a decision of the Historic Conservation Board pertaining to an Urban Design Overlay District, Planned Development, conditional use, variance, special exception, Downtown Development District or Certificate of Appropriateness may appeal that decision to the Zoning Board of Appeals.

(c) Persons Affected by Certain Decisions of the City Planning Commission. Any person affected as defined in § 1449-03 may appeal the City Planning Commission's approval or denial of a request for renewal, revision or approval of a final development plan of a Planned Development to the Zoning Board of Appeals.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 299-2009, § 2, eff. Dec. 12, 2009; Emer. Ord. No. 141-2015, § 80, eff. July 1, 2015)

§ 1449-11. Time Limit for Appeals.

Notice of appeal must be filed with staff for the Zoning Board of Appeals within 30 days of the date of mailing of the decision below by the decision-making body or official. The staff has the duty to promptly notify the maker of the decision being appealed and the owner of the subject property or permit applicant, if other than the appellant, of the filing of the notice of appeal. In cases where the appeal is to be heard by Council, the notice of appeal must be filed with the Clerk of Council.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; Emer. Ord. No. 141-2015, § 81, eff. July 1, 2015)

§ 1449-13. Procedures for Appeals from Decisions of the Zoning Administrator, the Director of Buildings and Inspections or the City Planning Commission.

The following procedures apply to appeals to the Zoning Board of Appeals from decisions of the Zoning Administrator, the Director of Buildings and Inspections or the City Planning Commission:

(a) *Application*. The application procedure for appeals is as follows:

(1) A person with standing as specified in § 1449-09, Appeals to the Zoning Board of Appeals, must file a notice of appeal on forms prepared and supplied by the staff for the Board.

(2) All appeals must be accompanied by materials specified on the application form.

(3) The Zoning Board of Appeals is authorized to grant all additional forms of relief the Zoning Hearing Examiner is authorized to grant (e.g., variance, conditional use, special exceptions, etc.) in considering an application.

(b) *Remand*. The board may remand a matter to the director in order to cure a deficiency in the record or the proceedings below.

(c) *Hearing*. At the hearing the appellant and any affected person have the right to:

(1) Present their positions, arguments and contentions.

(2) Offer and examine witnesses and present evidence in support of positions, arguments and contentions.

(3) Cross-examine witnesses purporting to refute their position, arguments and contentions. The board may limit the right of cross-examination to persons represented by counsel.

(4) Offer evidence to refute evidence and testimony offered in opposition to their position, arguments and contentions.

(d) *Decision*. The board has the duty to enter a decision in accordance with § 1449-17, Decision.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 299-2009, § 3, eff. Dec. 12, 2009; Emer. Ord. No. 141-2015, § 82, eff. July 1, 2015; a. Emer. Ord. No. 199-2024, § 2, eff. 7-1-2024)

§ 1449-15. Procedures for Appeals from Decisions of the Zoning Hearing Examiner or Historic Conservation Board.

The following procedures apply to appeals to the Zoning Board of Appeals from decisions of the Zoning Hearing Examiner or Historic Conservation Board:

(a) *Application*. The application procedure for appeals is as follows:

(1) A person with standing as specified in § 1449-09, Appeals to the Zoning Board of Appeals, must file a notice of appeal on forms prepared and supplied by the staff for the Board.

(2) All appeals must be accompanied by materials specified on the application form.

(b) *Transcript*. Within 21 days of the filing of the notice of appeal, the appellant has the duty to cause a complete record of the proceedings, including a transcript of all testimony, pertaining to the decision being appealed to be filed with the staff for the board at the appellant's cost.

(c) *Remand*. The board may remand a matter to the examiner in order to cure a deficiency in the record or the proceedings below.

(d) *Hearing*. The appellant and any person who expressed a position in writing or testified in opposition below have an opportunity personally or through counsel to present arguments based on the evidence in the record. No other person has a right to be

heard. The board is confined to consideration of the record and arguments based on the record as filed unless it appears on the face of the record or by affidavit filed by person affected that:

(1) The record does not contain a report of all evidence admitted or proffered below.

(2) The testimony adduced was not given under oath.

(3) The appellant or other person affected was not permitted to be heard in person or by counsel in opposition to the order appealed:

(A) To present the position, arguments and contentions of the appellant or other person affected.

(B) To offer and examine witnesses and present evidence in support thereof.

(C) To cross-examine witnesses purporting to refute the position, arguments and contentions of the appellant or other person affected.

(D) To offer evidence to refute evidence and testimony offered in opposition to the position arguments and contentions of the appellant or other person affected.

(E) To proffer any such evidence into the record, if the admission thereof was denied by the examiner.

The board may remand a matter to the examiner in order to cure any such deficiency or enter such other order as justice may require. Otherwise, the board may not receive any additional testimony or evidence.

(e) *Decision*. The board has the duty to enter a decision in accordance with § 1449-17, Decision.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; Emer. Ord. No. 141-2015, § 83, eff. July 1, 2015)

§ 1449-17. Decision.

The Zoning Board of Appeals may find that the order, adjudication, or decision is illegal, arbitrary, capricious, unreasonable, or unsupported by the preponderance of substantial, reliable, and probative evidence on the whole record. Consistent with its findings, the board may affirm, reverse, vacate, or modify the order, adjudication, or decision, or remand the cause to the officer or body appealed from with instructions to enter an order, adjudication, or decision consistent with the findings or opinion of the Board.

A majority of the members of the board present and voting is required to reverse, vacate or modify the order, adjudication or decision. In the absence of a majority or in the case of a tie vote, the order, adjudication or decision is deemed affirmed.

The board may direct the appellant or other person who appeared at the hearing to propose findings of fact and conclusions of law supporting its decision. The chairman of the board has the duty to cause findings and conclusions to be entered on the record. A decision by the board is effective as of the date of mailing of the findings and conclusions. The staff for the board has the duty to send written notification of the decision to the appellant.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; Emer. Ord. No. 141-2015, § 84, eff. July 1, 2015)

§ 1449-19. Appeal.

Appeals to the Hamilton County Court of Common Pleas may be taken as allowed by Ohio Revised Code Chapter 2506, Appeals from Orders of Administrative Officers and Agencies, or other law.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

Chapter 1451

ENFORCEMENT

§ 1451-01. Enforcement Responsibility.
§ 1451-03. Revocation of Permit.
§ 1451-05. Vacation.
§ 1451-07. Remedies.
§ 1451-09. Violation and Penalties, Criminal and Civil.
§ 1451-11. Historic Conservation Prohibitions.
§ 1451-13. Enforcement of Historic Conservation Regulations.
§ 1451-15. Historic Conservation Penalties.

§ 1451-01. Enforcement Responsibility.

The Director of Buildings and Inspections is responsible for enforcing the Cincinnati Zoning Code. The director may not issue a building permit or certificate of occupancy for any building or use that would violate or fail to comply with the provisions of this Code. The decision to pursue compliance with the Cincinnati Zoning Code through permit revocation, issuance of an order to comply, vacation of a premises found in violation, criminal prosecution, issuance of a notice of civil offense pursuant to Title XV, Code Compliance and Hearings, of the Cincinnati Municipal Code, or application to the City Solicitor to institute proceedings pursuant to § 1451-07, Remedies, is vested in the sound discretion of the Director.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1451-03. Revocation of Permit.

When the conditions of a permit, certificate, covenant to the city or provisions of this Code are not met, the Director of Buildings and Inspections shall initiate action to revoke any permit or certificate issued in reliance of those conditions being satisfied.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1451-05. Vacation.

The Director of Buildings and Inspections, on finding a building, premises or a part of a building or premises used or occupied in violation of any provision of the Cincinnati Zoning Code, has the duty to order such illegal use or occupancy terminated. When in the opinion of the Director of Buildings and Inspections, the termination of the illegal use or occupancy can only be insured through vacation of the building, premises or part thereof, the Director may order the owner or the occupant or both to vacate the building, premises, or part of the building or premises that is being illegally used or occupied.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1451-07. Remedies.

Whenever the Director of Buildings and Inspections or any other officer charged with the enforcement of the Cincinnati Zoning Code is satisfied that any provision of this Code has been violated or is about to be violated in any respect, or that any order or direction made for enforcement of this Code has not been complied with, the Director shall act as follows:

(a) If the director is satisfied that civil proceedings are necessary for the enforcement of the code, the director shall apply to the City Solicitor, who is authorized to institute civil proceedings.

(b) In case any building or structure is or is intended to be erected, constructed, reconstructed, altered, repaired, converted or maintained, or any building, structure or land is or is intended to be used, in violation of this Code, the City Solicitor, in addition to the remedies herein provided for, shall institute any appropriate action in law or equity to prevent such unlawful act, or to restrain, correct or abate such violation.

The actions authorized by this section are in addition to those authorized by § 1451-05 and § 1451-09.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1451-09. Violation and Penalties, Criminal and Civil.

Whoever violates any provision of the Cincinnati Zoning Code or fails to conform to any provision thereof or fails to obey any lawful order of the Director of Buildings and Inspections issued in pursuance thereof, is guilty of a misdemeanor of the third degree on the first offense and guilty of a misdemeanor of the first degree on the second and subsequent offense. Each day's continuation of a violation or failure to comply is a separate offense. This section does not apply to Chapter 1435, Historic Conservation, § 1451-11, Historic Conservation Prohibitions and § 1451-13. Enforcement of Historic Conservation Regulations.

As an alternative to criminal prosecution, the Director of Buildings and Inspections may cite a person who violates any provision of the Cincinnati Zoning Code or fails to conform to any provision thereof or fails to obey any lawful order of the Director of Buildings and Inspections issued in pursuance thereof, for a civil offense pursuant to Title XV, Code Compliance and Hearings, of the Cincinnati Municipal Code.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1451-11. Historic Conservation Prohibitions.

A person may not cause, whether by neglect or willful action or inaction:

(a) *Alteration, Demolition or Environmental Change.* An alteration of or environmental change or demolition affecting a historic structure or a historic site or district without first having obtained a certificate of appropriateness for such alteration, demolition or environmental change.

(b) *Care, Maintenance and Upkeep.* Fail to provide reasonable care, maintenance and upkeep appropriate for the preservation, protection, enhancement, rehabilitation, perpetuation or use in compliance with the terms of this chapter.

(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

§ 1451-13. Enforcement of Historic Conservation Regulations.

The City Solicitor is empowered to bring such civil action, whether equitable or legal, as may be necessary to enforce the provisions of Chapter 1435, Historic Conservation, and § 1451-11, Historic Conservation Prohibitions.

A person who causes, whether by neglect or willful action or inaction, an alteration of or environmental change or demolition affecting a historic landmark or a historic site within a Historic District in violation of this chapter shall be required to restore the structure or property to its appearance as the Historic Conservation Board may approve. The City Solicitor has the duty to bring actions to enforce this section. This civil remedy is in addition to and not in lieu of a criminal prosecution and penalty or civil prosecution and penalty pursuant to Title XV, Code Compliance and Hearings, of the Cincinnati Municipal Code.

Whoever violates any provision of Chapter 1435, Historic Conservation, § 1451-11, Historic Conservation Prohibitions, and § 1451-13, Enforcement of Historic Conservation Regulations, or fails to conform to any provision thereof or fails to obey any lawful order of the Director of City Planning and Buildings issued in pursuance thereof, is guilty of a misdemeanor of the first degree . Each day's continuation of a violation or failure to comply is a separate offense. As an alternative to criminal prosecution, the Director may cite a person who violates any provision

of Chapter 1435, Historic Conservation, § 1451-11, Historic Conservation Prohibitions, or § 1451-13, Enforcement of Historic Conservation Regulations, or fails to conform to any provision thereof or fails to obey any lawful order of the Director issued in pursuance thereof, for a civil offense pursuant to Title XV, Code Compliance and Hearings, of the Cincinnati Municipal Code.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004; a. Ord. No. 221-2011, § 1, eff. July 22, 2011)

§ 1451-15. Historic Conservation Penalties.

A person, being the owner or agent or having control of a historic property or structure located within an historic site or district, who violates a provision of Chapter 1435, Historic Conservation, or § 1451-11, Historic Conservation Prohibitions, is guilty of a misdemeanor of the first degree. Each and every day that a person continues to violate the provisions of this chapter after having once been notified of the violation constitutes a separate offense.
(Ordained by Ord. No. 15-2004, eff. Feb. 13, 2004)

TITLE XV

CODE COMPLIANCE AND HEARINGS*

Sec. 1501-1. Civil Offense.
Sec. 1501-3. Class A Civil Offenses.
Sec. 1501-4. Class A1 Civil Offenses.
Sec. 1501-5. Class B Civil Offenses.
Sec. 1501-6. Class B1 Civil Offenses.
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Sec. 1501-8. Class C1 Civil Offenses.
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Sec. 1501-19. Correction of Violation.
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Sec. 1501-99. Civil Fines.
Sec. 1501-999. Savings.

*__Cross reference—__Hearing examiners, ch. 113.

Sec. 1501-1. Civil Offense.

"Civil Offense" means an offense against the City of Cincinnati set forth in the Cincinnati Municipal Code made subject to a civil fine by this Title. Charging a person with a civil offense is an alternative to criminal prosecution. A person may not be charged with a civil offense if that person has been charged with a misdemeanor for the same offense. A person charged with civil offense may not be arrested for the commission of the offense.
(Ordained by Ord. No. 241-1996, eff. Sept. 6, 1996)

Sec. 1501-3. Class A Civil Offenses.

A person who violates a standard of conduct set forth in a section or chapter of the Cincinnati Municipal Code listed below is liable for the civil fine specified in § 1501-99 for a Class A Civil Offense. If a person has previously been found to have violated the same provision of the Cincinnati Municipal Code within one year that person may be charged as a second offender and on being found to have committed a second or subsequent offense is liable for the civil fine specified in § 1501-99 for the first violation of a Class B Civil Offense.

a.	§ 511-1	Advertising on Vehicles.
b.	§ 511-33	Front Yard Parking.
c.	§ 514-11	Parking Restrictions.
d.	§ 604-17	Unapproved Bird, Fowl or Animal Feeding.
e.	§ 701-19	Order to Muzzle Dogs.
f.	§ 701-27	Loud Dog.
g.	§ 701-30	Dog Excrement Removal.
h.	§ 721-63	Gutter Crossings.
i.	§ 721-65	Obstructing Gutters.
j.	§ 721-93	Temporary Driveway Permits.
k.	§ 723-5	Encumbering Sidewalks.
l.	§ 723-9	Regulations for Wholesale Produce Areas.
m.	§ 723-11	Retail Sidewalk Display.
n.	§ 723-12	Free Standing Business or Identification Signs (Sandwich Boards) on Sidewalk.
o.	§ 723-13	Temporary Encumbrances.
p.	§ 723-17	U.S. Mail Boxes.
q.	§ 723-23	Ground and Debris on Street or Sidewalk.
r.	§ 723-29	Sprinkling Roadways in Congested District.
s.	§ 723-31	Sprinkling Before Sweeping.
t.	§ 723-37	Unloading Heavy Material on Streets or Sidewalks.
u.	§ 723-39	Inscribing Names or Advertising Matter on Sidewalks Unlawful.
v.	§ 723-57	Removal of Snow.
w.	§ 723-59	Ice on Sidewalks.
x.	§ 723-65	Displaying House Numbers.
y.	§ 723-69	Removing House Numbers.
z.	§ 729-7	Setting Out Containers.
aa.	§ 729-15	Containers to be Removed from Collection Points.
bb.	§ 729-37	Street Waste Receptacles.
cc.	§ 729-87(a)	Recyclable Materials - Taking Recyclables.
dd.	§ 729-87(b)	Recyclable Materials - Destruction of Container.
ee.	§ 729-87(c)	Recyclable Materials - Relocation of Container.
ff.	§ 729-87(d)	Recyclable Materials - Failure to Remove Container from Collection Point.
gg.	§ 729-88	Yard Waste Materials.
hh.	§ 729-89(c)	Disposal of Unacceptable Waste.
ii.	§ 911-17	Posting Bills on Streets.
jj.	§ 1123-11(b)	Vacant Foreclosed Property Registration - Failure to maintain accurate information.
kk.	§ 1123-11(c)	Vacant Foreclosed Property Registration - Failure to maintain the property in accordance with the maintenance provisions.
ll.	§ 701-2(B)(1)	Leash Required; Responsibility for Injury (*Leash*).

mm.	§ 856-25(d)	Failure to Provide Registration Number on a Listing Advertising a Short Term Rental.
nn.	§ 874.07(b)	Failure to Maintain Accurate Residential Rental Property Registration.
oo.	§ 1601-57	Enforcement of Emergency Orders.
pp.	§ 1601-59	Enforcement of Health Orders.
qq.	§ 723-34	Skateboard and Other Coasting Devices, Regulation.
rr.	§ 1125-17(2)	Failure to Maintain Accurate Information Once Having Registered a Vacant Building

(Ord. 241-1996, eff. Sept. 6, 1996; a. Ord. No. 393-1996, eff. Dec. 18, 1996; a. Ord. No. 406-1999, eff. Nov. 12, 1999; a. Ord. No. 460-1999, eff. Dec. 24, 1999; a. Ord. No. 219-2000, eff. June 14, 2000; a. Ord. No. 367-2000, eff. Oct. 4, 2000; Emer. Ord. 463-2010, § 59, eff. Dec. 30, 2010; a. Ord. No. 046-2011, § 5, eff. March 16, 2011; a. Ord. No. 394-2011, § 3, eff. Jan. 14, 2012; Emer. Ord. No. 341-2012, § 1, eff. Sept. 19, 2012; a. Ord. No. 062-2015, § 5, eff. April 4, 2015; Emer. Ord. No. 183-2015, § 4, eff. June 17, 2015; a. Ord. No. 311-2014, § 18, eff. July 1, 2015; a. Ord. No. 0125-2019, eff. July 1, 2019; a. Ord. No. 406-2019, §§ 2, 3, eff. October 30, 2019; a. Emer. Ord. No. 142-2020, §§ 2, 3, eff. May 13, 2020; a. Ord. No. 297-2021, §§ 5, 6, eff. June 23, 2021; a. Ord. No. 153-2024, § 2, eff. May 15, 2024; a. Ord. No. 0039-2025, §§ 2, 3, eff. Feb. 16, 2026)

Sec. 1501-4. Class A1 Civil Offenses.

A person who violates a standard of conduct set forth in a section or chapter of the Cincinnati Municipal Code listed below is liable for the civil fine specified in § 1501-99 for a Class A1 Civil Offense. If a person has previously been found to have violated the same provision of the Cincinnati Municipal Code within one year that person may be charged as a second offender and on being found to have committed a second or subsequent offense is liable for the civil fine specified in § 1501-99 for the first violation of a Class B1 Civil Offense.

a.	§ 714-5	Placement of Litter in Receptacles so as to Prevent Scattering.
b.	§ 714-7	Upsetting Public or Private Receptacles.
c.	§ 714-9	Sweeping Litter into Gutters Prohibited.
d.	§ 714-23	Throwing or Distributing Handbills in Public Places.
e.	§ 714-24	Distributing Tobacco or Other Smoking Products in Public Places.
f.	§ 714-29	Prohibiting Distribution of Handbills Where Posted.
g.	§ 714-31	Distributing Handbills at Inhabited Private Premises.
h.	§ 770-3	Unlawfully Obtaining Streetcar Services
i.	§ 770-5	Unlawful Interference with Streetcar Services
j.	§ 802-3	Restrictions on Providing Paper and Plastic Bags
k.	§ 802-5 (except (G))	Regulation of Recycled Content Paper Bags and Reusable Bags

(Ordained by Emer. Ord. 463-2010, § 61, eff. Dec. 30, 2010; Emer. Ord. No. 282-2016, § 3, eff. Aug. 3, 2016; Ord. No. 300-2020, § 2, eff. Sept. 10, 2020)

Sec. 1501-5. Class B Civil Offenses.

A person who violates a standard of conduct set forth in a provision of the Cincinnati Municipal Code listed below is liable for the civil fine specified in § 1501-99 for a Class B Civil Offense. If the provision is listed under paragraph (a) below, the otherwise applicable civil fine is reduced by 50% if the person charged shows in accordance with § 1501-15 that the

violation has been corrected. If a person has previously been found to have violated the same provision of the Cincinnati Municipal Code within one year that person may be charged as a second offender and on being found to have committed a second or subsequent offense is liable for the civil fine for the subsequent offense provided below, the amount of which fine is specified in § 1501-99 and is not subject to reduction for correction of the violation.

			Civil Fine for Subsequent Offense
(1)	§ 720-15	Public [Stormwater] Facilities	Class C
(2)	§ 720-29	[Stormwater] Permits and Plan Review	Class B
(3)	§ 721-83	Street Contractor's License	Class C
(4)	§ 723-3	Unauthorized Wires, etc., in Streets	Class C
(5)	§ 1219-3	Material Subject to Spontaneous Ignition	Class B
(6)	§ 1219-7	Baled Material	Class B
(7)	§ 1219-9	Combustible Containers	Class B
(8)	§ 1219-15	Fire Doors, Shutters and Windows	Class B
(9)	§ 1219-29	Drip Pans	Class B
(10)	§ 1219-41	Exhaust Fans	Class B
(11)	§ 1219-45	Gas Shutoff Valves	Class B
(12)	Chapter 1225	Smoking and the Use of Open Flame	Class B
(13)	§ 1231-11	Obstructing Fire Hydrants	Class B
(14)	§ 718-9	Advertising in the Public Right-of-Way	Class C
(15)	Chapter 765	Special Event Permits	Class B
(16)	§ 1601-7	Early Fire Warning System	Class C

(b) Class B Civil Offenses With Civil Fines Not Subject to 50% Reduction for Correction of Violation:

			Civil Fine for Subsequent Offense
(1)	§ 413-25	Sidewalk or Street Parking	Class C
(2)	§ 503-25	Damaging Street Surface	Class C
(3)	§ 506-63	Driving on Sidewalk Area	Class C
(4)	§ 506-64	Driving Over New Pavement	Class C
(5)	§ 721-25	Sale of Land on Private or Undedicated Streets	Class D
(6)	§ 721-41	Street Opening Without Permit Unlawful	Class D
(7)	§ 721-61	Warning Lights; Barriers	Class D
(8)	§ 721-109	Sidewalk Covering Over Sub-space; Prohibited Materials	Class D
(9)	§ 721-111	Support for Sidewalk Covering Over Sub-space	Class D
(10)	§ 723-1	Street Obstructions	Class C
(11)	§ 723-33	Sweeping Onto Sidewalk or Roadway	Class C
(12)	§ 729-5	Waste Containers; Requirements.	Class D
(13)	§ 729-9	Setting Out Containers on Property Abutting Alleys	Class B
(14)	§ 729-27	Removal of Dead Animals	Class B
(15)	§ 729-41	Disposal of Combustible Garbage	Class B
(16)	§ 729-53	Transporting Putrescible Commercial By-Products	Class B

			Civil Fine for Subsequent Offense
(17)	§ 729-60	Commercial Establishments to Maintain Commercial Waste Collection Contract	Class C
(18)	§ 729-69	Unloading Waste on Sidewalks	Class B
(19)	§ 729-71(c)(1)	Personal Property Left Abandoned on Streets and Sidewalks- 3 or fewer items	Class B
(20)	§ 729-75	Escaping Hot Water or Steam	Class B
(21)	§ 1219-5	Accumulated Waste and Waste Receptacles	Class B
(22)	§ 1219-13	Trap Doors	Class B
(23)	§ 1221-7	Smoking and Use of Open Flame	
(24)	§ 1601-57	Enforcement of Emergency Orders	Class B
(25)	§ 1601-59	Enforcement of Health Orders	Class B

(Ord. 241-1996, eff. Sept. 6, 1996; a. Ord. No. 393-1996, eff. Dec. 18, 1996; a. Ord. No. 394-1997, eff. Dec. 15, 1997; a. Ord. No. 406-1999, eff. Nov. 12, 1999; a. Ord. No. 460-1999, eff. Dec. 24, 1999; a. Ord. No. 219-2000, eff. June 14, 2000; a. Ord. No. 367-2000, eff. Oct. 4, 2000; a. Ord. No. 213-2002, eff. June 19, 2002; a. Ord. No. 0225-2007, § 3, eff. July 6, 2007; Emer. Ord. 292-2010, § 11, eff. June 30, 2010; Emer. Ord. 463-2010, § 62, eff. Dec. 30, 2010; a. Ord. No. 449-2012, § 2, eff. Dec. 28, 2012; Emer. Ord. No. 045-2013, § 3, eff. Feb. 27, 2013; a. Ord. No. 062-2015, § 5, eff. April 4, 2015; Emer. Ord. No. 183-2015, § 4, eff. June 17, 2015; a. Ord. No. 311-2014, § 20, eff. July 1, 2015; a. Ord. No. 405-2019, §§ 2, 3, eff. Sept. 1, 2020; a. Emer. Ord. No. 0100-2020, § 1, eff. April 1, 2020; a. Emer. Ord. No. 142-2020, §§ 4, 5, eff. May 13, 2020; Emer. Ord. No. 232-2022, § 3, eff. June 19, 2022; a. Ord. No. 414-2023, § 2, 4, eff. Dec. 6, 2023)

Sec. 1501-6. Class B1 Civil Offenses.

A person who violates a standard of conduct set forth in a provision of the Cincinnati Municipal Code listed below is liable for the civil fine specified in Section 1501-99 for a Class B1 Civil Offense. If a person has previously been found to have violated the same provision of the Cincinnati Municipal Code within one year that person may be charged as a second offender and on being found to have committed a second or subsequent offense is liable for the civil fine for the subsequent offense provided below, the amount of which fine is specified in Section 1501-99 and is not subject to reduction for correction of the violation.

			Civil Fine for Subsequent Offense
(1)	§ 714-3	Litter in Public Places	Class B1
(2)	§ 714-17	Tracking Mud, Dirt or Other Substances on Streets	Class B1
(3)	§ 714-19	Litter in Parks	Class B1
(4)	§ 714-21	Litter in Lakes and Fountains	Class B1
(5)	§ 714-25	Placing Handbills on Vehicles	Class B1
(6)	§ 714-27	Depositing Handbills on Uninhabited or Vacant Premises	Class B1
(7)	§ 714-33	Posting Notices Prohibited	Class C1

			Civil Fine for Subsequent Offense
(8)	§ 769-3	Sexual Orientation or Gender Identity Change Efforts Prohibited	Class B1

(Ordained by Emer. Ord. 463-2010, § 64, eff. Dec. 30, 2010; Emer. Ord. No. 075-2015, § 7, eff. March 25, 2015; Emer. Ord. No. 007-2016, § 3, eff. Jan. 8, 2016)

Sec. 1501-7. Class C Civil Offenses.

A person who violates a standard of conduct set forth in a provision of the Cincinnati Municipal Code listed below is liable for the civil fine specified in § 1501-99 for a Class C Civil Offense. If the provision is listed under paragraph (a) below, the otherwise applicable civil fine is reduced by 50% if the person charged shows in accordance with § 1501-15 that the violation has been corrected. If a person has previously been found to have violated the same provision of the Cincinnati Municipal Code within one year that person may be charged as a second offender and on being found to have committed a second or subsequent offense is liable for the civil fine for the subsequent offense provided below, the amount of which fine is specified in § 1501-99 and is not subject to reduction for correction of the violation.

(a) Class C Civil Offenses With Civil Fines Subject to 50% Reduction for Correction of Violation:

			Civil Fine for Subsequent Offense
(1)	§ 514-15	Violation and Revocation	Class D
(2)	§ 602-1	Permitting Unclean Habitations	Class D
(3)	§ 602-7	Vacation of Unsanitary Premises	Class D
(4)	§ 604-5	All Improved Premises to be Rat-Proofed	Class D
(5)	§ 606-3	Vaccination of Dogs	Class D
(6)	Chapter 743	Urban Forestry	Class D
(7)	§ 747-3	Limited Franchise Permit Required	Class D
(8)	§ 802-5(G)	Regulation of Recycled Content Paper Bags and Reusable Bags	Class D
(9)	§ 802-7	Reporting on Distribution of Bags and Collection of Charges	Class D
(10)	§ 869-7	Wrecking License Required	Class D
(11)	§ 1201-1	Cincinnati Fire Prevention Code	Class C
(12)	§ 1201-57	Permits	Class C
(13)	Chapter 1203	Motor Equipment in Places of Assembly	Class C
(14)	Chapter 1207	Drills	Class C
(15)	§ 1209-3	Hazardous Existing Electrical Wiring and Equipment	Class C
(16)	Chapter 1211	Fire Extinguishers	Class C
(17)	§ 1219-11	Flameproof Decorations	Class C
(18)	§ 1219-25	Chimneys and Fireplaces	Class C
(19)	§ 1219-31	Air Conditioning	Class C
(20)	§ 1219-35	Residential Storage	Class C
(21)	§ 1219-43	Fire Escapes	Class C

			Civil Fine for Subsequent Offense
(22)	§ 1219-57	Restrictions on Parking Motor Vehicles	Class C
(23)	§ 1219-61	Shaftways	Class C
(24)	§ 1219-63	Inspection, Safety Provisions	Class C
(25)	§ 1219-65	Location of Exits	Class C
(26)	§ 1219-67	Interior Stairway Doors	Class C
(27)	Chapter 1227	Storage, General Requirements	Class C
(28)	§ 1229-3	Water Flow Requirements	Class C
(29)	§ 1229-9	Private Fire Hydrants	Class C
(30)	§§ 723-5, 723-19	Structures in the Public Right-of-Way	Class D
(31)	§§ 723-42	Mobile Food Vending	Class C
(32)	§ 723-24	Bike Share Stations	Class C

(b) Class C Civil Offense With Civil Fines Not Subject to 50% Reduction to Correction for Violation:

			Civil Fine for Subsequent Offense
(1)	Chapter 404	Electricity	Class D
(2)	Chapter 405	Telegraph and Telephone	Class D
(3)	Chapter 414	Valet Parking	Class D
(4)	§ 506-63	Driving on Sidewalk Area	Class D
(5)	§ 506-64	Driving on New Pavement	Class D
(6)	§ 718-23	Unlawful Private Use of Streets	Class D
(7)	§ 721-71	Permits for Sidewalk Construction	Class D
(8)	§ 721-81	Sidewalk Construction Without Permit Unlawful	Class D
(9)	§ 729-73	Discharging Noisome Substances	Class D
(10)	§ 729-83	Refrigerators, Abandoning	Class C
(11)	§ 729-89(d)	Improper Disposal of Construction Debris or Hazardous Waste	Class D
(12)	§ 1215-3	Safe Practices	Class C
(13)	§ 1219-17	Misuse of Fire Protection Equipment	Class C
(14)	§ 1231-9	Tampering with Fire Hydrants	Class C
(15)	§ 1231-13	Unlicensed Use of Fire Hydrants Prohibited	Class C
(16)	§ 701-2(B)(2)	Leash Required; Responsibility for Injury (*Menacing Fashion*)	Class C
(17)	§ 701-2(B)(3)	Leash Required; Responsibility for Injury (*Injury*)	Class C
(18)	§ 856-25(b)	Failure to Obtain a Short Term Rental Registration	Class D
(19)	§ 856-25(e)	Failure of Short Term Rental Housing Platform to Comply with Obligations	Class D

(Ord. 241-1996, eff. Sept. 6, 1996; a. Ord. No. 393-1996, eff. Dec. 18, 1996; a. Ord. No. 351-1997, eff. Oct. 8, 1997; a. Ord. No. 394-1997, eff. Dec. 15, 1997; a. Ord. No. 150-1999, eff. May 28, 1999; a. Ord. No. 406-1999, eff. Nov. 12, 1999; a. Ord. No. 219-2000, eff. June 14, 2000; a. Ord. No. 367-2000, eff. Oct. 4, 2000; a. Ord. No. 213-2002, eff. June 19, 2002; Emer. Ord. 292-2010, § 12, eff. June 30, 2010; Emer. Ord. 463-2010, § 65, eff. Dec. 30, 2010; a. Ord.

No. 394-2011, § 3, eff. Jan. 14, 2012; Emer. Ord. No. 096-2013, § 4, eff. April 17, 2013; Emer. Ord. No. 295-2013, § 4, eff. Sept. 25, 2013; a. Ord. No. 062-2015, § 5, eff. April 4, 2015; Emer. Ord. No. 183-2015, § 4, eff. June 17, 2015; a. Ord. No. 311-2014, § 22, eff. July 1, 2015; a. Ord. No. 0125-2019, eff. July 1, 2019; Ord. No. 300-2020, § 2, eff. Sept. 10, 2020; a. Ord. No. 228-2023, § 1, eff. August 2, 2023)

Sec. 1501-8. Class C1 Civil Offenses.

A person who violates a standard of conduct set forth in a provision of the Cincinnati Municipal Code listed below is liable for the civil fine specified in Section 1501-99 for a Class C1 Civil Offense. If the provision is listed under paragraph (a) below, the otherwise applicable civil fine is reduced by 50% if the person charged shows in accordance with Section 1501-15 that the violation has been corrected. Except that, for occupied property that is in violation of Section 731-3(a), the otherwise applicable civil fine is reduced by 100% if the owner charged shows in accordance with Section 1501-15 that the violation has been corrected and that the owner has not previously received notice of a violation under Section 731-3 at the occupied property. If the provision is listed under paragraphs (a), (b), or (c) below, and if a person has previously been found to have violated the same provision of the Cincinnati Municipal Code within one year, that person may be charged as a second offender and on being found to have committed a second or subsequent offense is liable for the civil fine for the subsequent offense provided below, the amount of which fine is specified in Section 1501-99 and is not subject to reduction for correction of the violation. If the provision is listed under paragraph (d) below, and if a person has previously been found to have violated the same provision of the Cincinnati Municipal Code within two years, that person may be charged as a second offender and on being found to have committed a second or subsequent offense is liable for the civil fine for the subsequent offense provided below, the amount of which fine is specified in Section 1501-99 and is not subject to reduction for correction of the violation. If the provision is listed under paragraph (e) below, the otherwise applicable civil fine is reduced by 100% if the person charged shows in accordance with Section 1501-15 and the rules and regulations of the board of health that the violation has been corrected and that the owner has not previously received notice of a violation under Section 609-9. If the provision is listed under paragraph (e) below, and if a person has previously been found to have violated the same provision of the Cincinnati Municipal Code within two years, that person may be charged as a second offender and on being found to have committed a second or subsequent offense is liable for the civil fine for the subsequent offense provided below, the amount of which fine is specified in Section 1501-99 and is not subject to reduction for correction of the violation.

(a) Class C1 Civil Offenses With Civil Fines Subject to 50% Reduction for Correction of Violation:

			Civil Fine for Subsequent Offense
(1)	§ 714-11	Duty to Keep Sidewalks Free of Litter	Class D
(2)	§ 714-35	Litter on Occupied or Unoccupied Private Property	Class C1
(3)	§ 714-37	Owner or Person in Control to Maintain Premises Free of Litter	Class C1

			Civil Fine for Subsequent Offense
(4)	§ 714-39	Litter on Vacant Lots	Class C1
(5)	§ 731-3	Height Restrictions on Unoccupied Private Property (grass and weed control)	Class C1
(6)	Chapter 313	Outdoor Advertising Sign Excise Tax	Class C1
(7)	Chapter 315	Short Term Rental Excise Tax	Class C1
(8)	Chapter 886	Equitable Restrooms (eff. January 1, 2022)	Class C1
(9)	§ 511-31	Storage of Unlicensed or Inoperable Vehicles in Residence or Commercial Districts	Class C1
(10)	§ 1127-07.99	Rental Property Inspection Program	Class D

(b) Class C1 Civil Offenses With Civil Fines Subject to 100% Reduction for Correction of Violation and a One-Year Period for a Subsequent Offense:

			Civil Fine for Subsequent Offense
(1)	§ 731-3	Height Restrictions on Occupied Private Property (grass and weed control; reduction for first-time offenders only)	Class C1

(c) Class C1 Civil Offenses With Civil Fines Not Subject to 50% Reduction for Correction of Violation and a One-Year Period for a Subsequent Offense:

			Civil Fine for Subsequent Offense
(1)	§ 714-15	Truck and Vehicle Loads Causing Litter or Scattering Debris	Class D
(2)	§ 119-3(a) § 119-3(b)	Acceptance or Retention of a Contribution from a Person Qualifying for the Temporary Prohibition List	Class C-1
(3)	§ 119-7(a)	Failure to Report Financially Interested Persons	Class C-1

(d) Class C1 Civil Offenses With Civil Fines Not Subject to 50% Reduction for Correction of Violation, and a Two-Year Period for a Subsequent Offense:

			Civil Fine for Subsequent Offense
(1)	§ 609-3	Sale of Tobacco Products to Those Under Twenty-One Years of Age Prohibited	Class E
(2)	§ 1601-57	Enforcement of Emergency Orders	Class D
(3)	§ 1601-59	Enforcement of Health Orders	Class D

(e) Class C1 Civil Offenses With Civil Fines Subject to 100% Reduction for Correction of Violation, and a Two-Year Period for a Subsequent Offense:

			Civil Fine for Subsequent Offense
(1)	§ 609-9	Tobacco Retailer Licensing (reduction for first-time offenders only)	Class E

(Ordained by Emer. Ord. 463-2010, § 67, eff. Dec. 30, 2010; Emer. Ord. No. 075-2015, § 7, eff. March 25, 2015; a. Ord. No. 384-2016, § 5, eff. Feb. 11, 2017; Emer. Ord. No. 167-2018, § 3, eff. July 1, 2018; a. Emer. Ord. No. 363-2018, § 19, eff. Dec. 1, 2018; a. Ord. No. 0125-2019, eff. July 1, 2019; a. Emer. Ord. No. 142-2020, §§ 6, 7, eff. May 13, 2020; a. Ord. No. 0348-2021, §§ 2, 3, eff. January 1, 2022; a. Ord. No. 415-2021, §§ 2, 3, eff. October 27, 2021; Emer. Ord. No. 232-2022, § 5, eff. June 19, 2022; a. Ord. No. 414-2023, §§ 3, 4, eff. Dec. 6, 2023)

Editor's note—Ord. No. 0348-2021, § 1, adopted September 2, 2021, shall be take effect and be in force from and after January 1, 2022.

Sec. 1501-9. Class D Civil Offenses.

A person who violates a standard of conduct set forth in a provision of the Cincinnati Municipal Code listed below is liable for the civil fine specified in § 1501-99 for a Class D Civil Offense. If the provision is listed under paragraph (a) below, the otherwise applicable civil fine is reduced by fifty percent if the person charged shows in accordance with § 1501-15 that the violation has been corrected. If a person has previously been found to have violated the same provision of the Cincinnati Municipal Code within one year that person may be charged as a second offender and on being found to have committed a second or subsequent offense is liable for the civil fine for the subsequent offense provided below, which fine is specified in § 1501-99 and is not subject to reduction for correction of the violation.

(a) Class D Civil Offenses With Civil Fines Subject to fifty percent Reduction for Correction of Violation:

			Civil Fine for Subsequent Offense
(1)	§ 720-13	Private Facilities	Class E
(2)	§ 720-45	Notice of Violations	Class E
(3)	§ 720-69	Notice to Correct Drainage	Class E
(4)	Chapter 855	Rooming Houses	Class D
(5)	Chapter 895	Outdoor Advertising Signs	Class D
(6)	Chapter 1101	Administration, Cincinnati Building Code	Class E
(7)	Chapter 1106	General and Specialty Contractors	Class E
(8)	Chapter 1107	Elevator and Conveyer Equipment	Class E
(9)	Chapter 1117	Housing Code	Class E
(10)	Chapter 1119	Building Hazard Abatement Code	Class E
(11)	Chapter 1127	General Inspection Programs Code	Class E
(12)	Title XIV	Zoning Code	Class E
(13)	§ 1201-21	Maintenance	Class D
(14)	§ 1201-33	Evacuation	Class D
(15)	§ 1201-35	Spills and Leaks	Class D
(16)	Chapter 1235	Detectors, Early Fire Warning Systems	Class D
(17)	§ 1123-11(a)	Vacant Foreclosed Property Registration - Failure to register a vacant, foreclosed property.	Class E
(18)	§ 874-07(a)	Failure to Register Residential Rental Property	Class D
(19)	Chapter 1109	Flood Damage Reduction	Class E
(20)	§ 871-14	Landlord's Obligation to Provide Tenant Relocation Assistance	Class D

(b) Class D Civil Offenses With Civil Fines Not Subject to fifty percent Reduction for Correction of Violation:

			Civil Fine for Subsequent Offense
(1)	§ 718-25	Secret Street Uses	Class E
(2)	§ 721-59	Taking Material from Streets	Class E
(3)	§ 729-71(c)(2)	Personal Property Left Abandoned on Streets and Sidewalks - 4 or more items	Class D
(4)	§ 761-14	Eviction or Retaliation by Landlord	Class E
(5)	Chapter 891	Home Improvement	Class E
(6)	§ 1201-47	Failure to Comply with Orders	Class D
(7)	§ 1219-21	Causing Fire Through Negligence	Class D
(8)	Chapter 1251	Fire Starting Apparatus	Class D
(9)	§ 759-4	Use of a Motor Vehicle to Facilitate a Drug Related Crime	Class D
(10)	Chapter 722	Management and Control of the Use of the City Right-of-Way	Class E
(11)	Chapter 730	Commercial Waste Franchises	
(12)	§ 856-25(c)	Violation of Limitations on Operators or Operation of Short Term Rentals	Class D
(13)	§ 1601-57	Enforcement of Emergency Orders	Class D
(14)	§ 1601-59	Enforcement of Health Orders	Class D
(15)	§ 723-79	Failure to Obtain Streetcar Power-Down or Shutdown Work Permit	Class D
(16)	Chapter 811	e-Scooter Rental Franchises	Class D
(17)	§ 915-7	Mandatory Reporting of Loss or Theft of Firearm or Dangerous Ordnance	Class D
(18)	§ 1125-17(1)	Failure to Register a Vacant Building	Class E

(Ord. 241-1996, eff. Sept. 6, 1996; a. Ord. No. 393-1996, eff. Dec. 18, 1996; a. Ord. No. 291-1997, eff. Oct. 3, 1997; a. Ord. No. 219-2000, eff. June 14, 2000; a. Ord. No. 367-2000, eff. Oct. 4, 2000; a. Ord. No. 451-2005, § 3, eff. Dec. 22, 2005; Emer. Ord. No. 0033-2008, § 5, eff. Feb. 6, 2008; a. Ord. No. 328-2011, § 15, eff. Nov. 19, 2011; a. Ord. No. 028-2012, § 1, eff. March 15, 2012; Emer. Ord. No. 341-2012, § 3, eff. Sept. 19, 2012; Emer. Ord. No. 349-2012, § 2, eff. Sept. 26, 2012; a. Ord. No. 489-2012, § 2, eff. Jan. 14, 2013; Emer. Ord. No. 042-2014, § 28, eff. March 19, 2014; Emer. Ord. No. 267-2014, § 2, eff. Sept. 17, 2014; a. Ord. No. 311-2014, § 24, eff. July 1, 2015; Emer. Ord. No. 329-2016, § 7, eff. Oct. 19, 2016; a. Ord. No. 0125-2019, eff. July 1, 2019; a. Ord. No. 406-2019, §§ 2, 3, eff. October 30, 2019; a. Emer. Ord. No. 142-2020, §§ 8, 9, eff. May 13, 2020; a. Ord. No. 297-2021, §§ 7, 8, eff. June 23, 2021; a. Emer. Ord. No. 455-2021, §§ 2, 3, eff. Dec. 8, 2021; a. Emer. Ord. No. 715-2023, § 4, eff. May 24, 2023; a. Ord. No. 415-2023, §§ 4, 5, eff. December 5, 2023; a. Emer. Ord. No. 426-2023, § 2, eff. Dec. 13, 2023; a. Ord. No. 0039-2025, §§ 2, 3, eff. Feb. 16, 2026)

Sec. 1501-11. Class E Civil Offenses.

A person who violates a standard of conduct set forth in a provision of the Cincinnati Municipal Code listed below is liable for the civil fine specified in § 1501-99 for a Class E Civil Offense. If the provision is listed under paragraph (a) below, the otherwise applicable civil

fine is reduced by 50% if the person charged shows in accordance with § 1501-15 that the violation has been corrected. If a person has previously been found to have violated the same provision of the Cincinnati Municipal Code within one year that person may be charged as a second offender and on being found to have committed a second or subsequent offense is liable for the civil fine for the subsequent offense provided below, the amount of which fine is specified in § 1501-99 and is not subject to reduction for correction of the violation.

(a) Class E Civil Offenses With Civil Fines Subject to 50% Reduction for Correction of Violation:

			Civil Fine for Subsequent Offense
(1)	§ 883-3	Public Assembly Permit	See § 883-23
(2)	§ 883-21	Prohibitions	See § 883-23
(3)	§ 1247-15	Material Safety Data Sheets	Class E
(4)	§ 1247-17	Location of Toxic or Hazardous Substance	Class E
(5)	§ 1113-03	Prohibitions of Certain Excavations, Fills or Grades	Class E

(b) Class E Civil Offenses With Civil Fines Not Subject to 50% Reduction for Correction of Violation:

			Civil Fine for Subsequent Offense
(1)	§ 703-1	Blasting Unlawful Without Permit	Class E
(2)	§ 729-30	Dumping	Class E
(3)		Reserved	
(4)	§ 881-19	Prohibitions	Class E
(5)	§ 1247-9	Labeling of Toxic and Hazardous Substances	Class E
(6)	§ 1247-27	Falsification of Information	Class E
(7)	§ 759-3	Use of a Motor Vehicle for Prostitution or Solicitation Prohibited	Class E3
(8)	§ 701-50	Nuisance, Dangerous, and Vicious Dogs	Class E

(Ord. 241-1996, eff. Sept. 6, 1996; a. Ord. No. 393-1996, eff. Dec. 18, 1996; a. Ord. No. 219-2000, eff. June 14, 2000; a. Ord. No. 367-2000, eff. Oct. 4, 2000; a. Ord. No. 059-2012, § 1, eff. March 29, 2012; Emer. Ord. No. 267-2014, § 3, eff. Sept. 17, 2014; a. Ord. No. 309-2014, § 42, eff. Nov. 29, 2014; Emer. Ord. No. 183-2015, § 4, eff. June 17, 2015; a. Ord. No. 311-2014, § 26, eff. July 1, 2015; a. Ord. No. 416-2024, § 2, eff. December 11, 2024)

Sec. 1501-12. Class F Civil Offenses.

(a) A person who violates a standard of conduct set forth in a provision of Cincinnati Municipal Code Chapter 1001, Air Quality, is liable for the civil fine specified in Sec. 1501-99 for a Class F Civil Offense. If the person charged shows in accordance with Sec. 1501-15 that the violation has been corrected, the otherwise applicable civil fine is reduced by 50%. If a person has previously been found to have violated the same provision of the Cincinnati Municipal Code within one year, that person may be charged as a second offender and on being found to have committed a second or subsequent offense is liable for the civil fine for the subsequent offense provided below, the

amount of which fine is specified in Sec. 1501-99 and is not subject to reduction for correction of the violation.

(b) A person who violates Cincinnati Municipal Code Section 701-2(B)(4), "Leash Required; Responsibility for Injury," multiple times is liable for the civil fine specified in Sec. 1501-99 for a Class F Civil Offense.

(c) A person who violates Cincinnati Municipal Code Section 1421-06(l)(1), "Accessory Dwelling Units," is liable for the civil fine specified in Sec. 1501-99 for a Class F Civil Offense.
(Ordained by Ord. No. 158-2004, eff. June 4, 2004; a. Ord. No. 062-2015, § 5, eff. April 4, 2015; a. Ord. No. 266-2023, §§ 14, 15, eff. Oct. 2, 2023)

Sec. 1501-13. Notice of Civil Offense and Civil Fine; Procedures.

(a) A city officer or employee charged with enforcement of the Cincinnati Municipal Code may issue a notice of civil offense and civil fine to a person found to have committed a civil offense.

(b) A notice of civil offense and civil fine must advise the person served:

(1) Unless a written answer is filed or the civil fine paid within 168 hours that the fine will double;

(2) That a hearing will be held if requested;

(3) That failure to appear at a requested hearing will be considered an admission of the civil offense;

(4) That all available collection remedies and costs of collection will be pursued in the event the civil fine and delinquent charges are not timely paid; and

(5) That the civil fine otherwise due may be reduced if the notice is for an offense that is subject to reduction if the offense is corrected.

(c) A notice of civil offense and civil fine:

(1) Must identify the person being charged if known to the issuing officer or employee;

(2) Indicate the offense charged, the civil fine for the offense, and the date, time and location of the offense charged;

(3) Be signed and attested by the issuing officer or employee;

(4) If the person charged is present, the issuing officer or employee may personally serve the person charged with a copy of the notice.

(d) Except as otherwise provided in section (e), the issuing officer or employee must:

(1) Constructively serve the person charged with a copy of the notice by posting a copy of the notice in a conspicuous location on the real property if the person being charged is not present, and the notice involves an offense which occurred on or immediately adjacent to real property owned, occupied, or controlled by the person charged;

(2) Post a copy of the notice on the real property to which it relates, if the identity of the person responsible for the offense is not known to the issuing officer and the offense relates to real property;

(3) Post a copy of the notice on the motor vehicle to which it relates, if the identity of the person responsible for

the offense is not known to the issuing officer and the offense relates to a motor vehicle.

In all cases where a notice is not personally served, the notice must be mailed to the person charged after the identity of that person is determined.

(e) Notwithstanding the service provisions set forth in subsection (d) related to violations that occur on real property, notices for any subsequent violation of Section 731-3, 714-35, 714-37, or 714-39 may be served on the person charged by any of the following methods:

(1) Any of the methods set forth in subsection (d), or

(2) Regular mail to the mailing or owner addresses of the property owner, as indicated in the public record of the Hamilton county auditor.

(f) The original of a notice of civil offense and civil fine issued pursuant to this Section or a true copy of it is a record kept in the ordinary course of business of the city of Cincinnati and is prima-facie evidence of the facts it contains.
(Ord. 241-1996, eff. Sept. 6, 1996; Emer. Ord. No. 075-2015, § 7, eff. March 25, 2015)

Sec. 1501-14. Class E1 Civil Offenses.

A person who violates a standard of conduct set forth in Cincinnati Municipal Code Chapter 413, Section 701-23, Section 318-13(d) or Section 320-11(a) is liable for the civil fine specified in Section 1501-99 for a Class E1 Civil Offense.
(Ordained by Ord. No. 131-2012, § 2, eff. May 25, 2012; a. Ord. No. 282-2012, § 5, eff. July 26, 2012; a. Ord. No. 062-2015, § 5, eff. April 4, 2015; Emer. Ord. No. 248-2024, § 1, eff. June 12, 2024)

Sec. 1501-15. Answer to Notice of Civil Offense.

(a) A person served with a notice charging a civil offense may answer the charge by personal appearance before the hearing examiner or by mail. An answer must be made within seven days of receipt of the notice by the person charged, or such other time as specified on the notice which may not be less than seven days after service. The answer may:

(1) Admit that the person committed the offense by payment of the civil fine specified in the notice;

(2) Admit the facts set forth in the notice and offer an explanation of the circumstances;

(3) Admit that the person committed the offense and, for those offenses that provide for a reduction in civil fine on proof of correction, offer proof that the person has corrected the offense;

(4) Deny that the person committed the offense and request a hearing. If the person desires the presence, at the hearing, of the enforcement officer, inspector or other authorized individual who issued the notice, the person must request same in his or her answer; or

(5) If the person served has taken an administrative appeal authorized by the Cincinnati Municipal Code from an order on which the offense was based, the person may request that the time for answering the notice of civil offense be continued until the appeal has been finally resolved.

(b) (1) A person who admits the commission of the offense for which a notice was issued must pay the civil fine arising out of the offense to the city treasurer.

(2) A person who admits the facts set forth in a notice of civil offense with

an explanation may offer an explanation of the circumstances to the hearing examiner.

(3) A person who admits the commission of the offense with an offer of proof of correction, may offer proof that the person has corrected the offense.

(Ord. 241-1996, eff. Sept. 6, 1996)

Sec. 1501-16. Class E2 Civil Offenses.

A person who violates a standard of conduct set forth in a section or chapter of the Cincinnati Municipal Code listed below is liable for the civil fine specified in § 1501-99 for a Class E2 Civil Offense.

			Civil Fine for Subsequent Offense
(a)	§ 701-2(B)(4)	Leash Required; Responsibility for Serious Injury	Class F

(Ordained by Ord. No. 062-2015, § 7, eff. April 4, 2015; Emer. Ord. No. 183-2015, § 4, eff. June 17, 2015)

Sec. 1501-17. Hearings.

A person may request a hearing before a hearing examiner to contest the commission of a civil offense, to offer an explanation of the circumstances, or to offer proof of correction. The request shall be filed with the office of administrative hearings which shall set a date for the hearing and notify the person, in writing, of the date, time and location of the hearing. The hearing examiner shall conduct a public hearing on all civil violations whenever the person charged requests a hearing. The hearing shall be held within ten days after the filing of the request, unless the delay is agreed to by the person charged and by the city officer or employee who issued the charge or is necessary in the interest of justice.

The hearing examiner shall enter into the record of the proceedings the notice of civil offense and civil fine, the filing of or failure to file an answer, the substance of the answer, a finding of liability, the civil fine due, payments, delinquency and collection charges, and other relevant information.

At the hearing, all testimony shall be under oath. The person charged may:

(a) Present positions, arguments, and contentions;

(b) Offer and examine witnesses and present evidence in support;

(c) Cross-examine witnesses;

(d) Offer evidence to refute evidence and testimony offered in opposition; and

(e) Proffer any such evidence into the record, if the admission of it is denied by the hearing examiner.

The hearing examiner shall issue a decision and make findings of fact from the record and conclusions of law in support of the decision within ten days from the close of the hearing. The findings and conclusions shall demonstrate that the decision is

consistent with applicable laws, ordinances and regulations and the interests of justice. Any unpaid civil fine is due and must be paid within ten days after the determination of the examiner, or the fine is deemed delinquent.

If the person served has taken an administrative appeal authorized by the Cincinnati Municipal Code from an order on which the offense was based, the hearing examiner must extend the time for answering the notice of civil offense until the appeal has been finally resolved.
(Ord. 241-1996, eff. Sept. 6, 1996; a. Ord. No. 393-1996, eff. Dec. 18, 1996; a. Ord. No. 219-2000, eff. June 14, 2000; a. Ord. No. 367-2000, eff. Oct. 4, 2000)

Sec. 1501-18. Class E3 Civil Offenses.

A person who violates a standard of conduct set forth in a section or chapter of the Cincinnati Municipal Code listed below is liable for the civil fine specified in § 1501-99 for a Class E3 Civil Offense.
(Ordained by Emer. Ord. No. 267-2014, § 5, eff. Sept. 17, 2014)

Sec. 1501-19. Correction of Violation.

A person charged with a violation of the Cincinnati Municipal Code and served with a notice of civil offense and civil fine specified as subject to reduction for correction of the violation may offer proof of correction to the hearing examiner. The offer of proof of correction may be submitted in person or, to avoid the necessity of personal appearance, may be submitted as affidavits and other documentary evidence, by mail. The hearing examiner who receives an answer with an offer of proof of correction shall verify whether the violation has been corrected by inquiry to the city department which issued the notice.

For those offenses that provide for a reduction in civil fine on proof of correction, on being satisfied that the offense has been corrected, the examiner shall reduce the otherwise applicable civil fine by 50%. If the civil fine is eliminated or reduced and the person previously paid the civil fine, the amount paid in excess of the revised civil fine shall be returned to the person; if the civil fine is reduced and the person has not previously paid the civil fine, the person must pay only the amount of the civil fine as reduced. An unpaid civil fine is due and must be paid within ten days after the determination of the examiner, or the fine is deemed delinquent.
(Ord. 241-1996, eff. Sept. 6, 1996; a. Ord. No. 393-1996, eff. Dec. 18, 1996; a. Ord. No. 219-2000, eff. June 14, 2000)

Sec. 1501-21. Default.

If a person who is personally or constructively served with a notice of civil offense and civil fine fails to answer within the time provided by § 1501-15, or fails to attend a requested hearing, the person is in default, and the civil fine deemed delinquent. The amount due is as specified by § 1501-99 for the class of the offense charged.
(Ord. 241-1996, eff. Sept. 6, 1996)

Sec. 1501-23. Request to Set Aside Default and Delinquency Charges.

A person subject to a civil fine entered after default may request to have the default set aside. A hearing examiner may set aside a default on a showing that the person had no actual knowledge of the notice of civil offense and civil fine or that the default should be excused in the interest of justice.
(Ord. 241-1996, eff. Sept. 6, 1996)

Sec. 1501-25. Appeals of Hearing Examiner's Decisions.

(a) Hearing Examiner's decisions are considered final orders for cases presented before the Office of Administrative Hearings.

(b) Appeals to the Hamilton County Court of Common Pleas may be taken as allowed by Ohio Revised Code.
(Ord. 241-1996, eff. Sept. 6, 1996; a. Ord. No. 393-1996, eff. Dec. 18, 1996; a. Ord. No. 219-2000, eff. June 14, 2000; a. Ord. No. 367-2000, eff. Oct. 4, 2000; a. Ord. No. 067-2012, § 1, eff. April 7, 2012)

Sec. 1501-27. Civil Proceedings.

(a) Whenever an officer charged with the enforcement of the Cincinnati Municipal Code is satisfied that a provision that officer is charged to enforce, or that an order or direction made in pursuance of the enforcement of this Code has not been complied with, or is being disregarded, or a law in force in the City applicable to the same subject matter, has been violated or is about to be violated, or there exist conditions that adversely affect the health, safety, or welfare of the public, the City Solicitor is authorized to institute civil proceedings. Civil proceedings may be brought in the name of the City, and may include claims for injunction, mandatory relief, restraining orders, damages, the appointment of a receiver, recovery of any reasonable cost incurred by the City abating the condition or enforcement of this Code, and such other relief as may be allowed in law or equity.

(b) Institution of civil proceedings does not exclude criminal proceedings as may be authorized by the Cincinnati Municipal Code or charging a person with a civil offense as authorized by this Title.

(c) Any person found to have violated, attempted to violate, created the imminent threat of a violation, or committed chronic violations of this Code or other law or regulation the City or its officials are charged to enforce shall be enjoined from the violation.

(d) Treble damages and costs as authorized under the CMC may be awarded to the City for any injury or damages suffered by the City if sustained as a consequence of a willful violation, failure, or omission.
(Ord. 241-1996, eff. Sept. 6, 1996; Ord. No. 0096-2025, § 2, eff. April 16, 2025)

Sec. 1501-29. Freedom From Improper Influence.

No member of council, member of the city administration, party to any proceedings before a hearing examiner, or any other person shall interfere with, attempt to interfere with, or improperly influence or attempt to improperly influence a hearing examiner in the performance of the duties of office.

An examiner may not conduct or participate in any hearing or decision in which the examiner or any of the following persons has a direct or substantial financial interest: a spouse, brother, sister, child, parent, or in-law of the examiner, or business firm or organization in which the examiner has a substantial interest. The examiner shall promptly report to the city manager any attempt at interference or improper influence or any actual or potential conflict prior to such hearing.

Wherever it may be shown to the satisfaction of the city manager that an examiner was subjected to improper influence, interference or interest, such improper influence, interference or interest shall be grounds for vacating any decision made by the examiner in such proceedings.
(Ord. 241-1996, eff. Sept. 6, 1996)

Sec. 1501-31. Ex Parte Communications Prohibited.

A person may not communicate with a hearing examiner to influence a decision in a matter pending before an examiner other than at a public hearing or in a writing that

is made a part of the record of the proceeding. This provision shall not prohibit communication between an examiner and any member of the administration assigned to assist or give legal counsel to the examiner in the pending proceeding. Violation of this Section is a misdemeanor of the first degree.
(Ord. 241-1996, eff. Sept. 6, 1996)

Sec. 1501-33. Administrative Regulations.

The city manager may adopt administrative regulations for the conduct of hearings and for the enforcement of the Cincinnati Municipal Code through the issuance of notices of civil offenses.
(Ord. 241-1996, eff. Sept. 6, 1996)

Sec. 1501-35. Fee Schedule For Filing of Appeals at the Office of Administrative Hearings.

The City's administrative hearing officer is authorized to generate a fee schedule associated with the filing of appeals at the office of administrative hearings, which fee schedule shall contain a provision permitting the hearing officer to waive fees in the case of indigency and where justice otherwise requires, and which fee shall not exceed the amount necessary to recover the cost of an appeal brought before the office of administrative hearings.
(Ordained by Emer. Ord. No. 166-2018, § 3, eff. July 1, 2018)

Sec. 1501-99. Civil Fines.

The civil fines for civil offenses are:

Offense	*Initial Civil Fine*	*If Delinquent*	*If Sent For Collection*
Class A	$75.00	$150.00	$175.00
Class A1	$100.00	$200.00	$275.00
Class B	$150.00	$300.00	$350.00
Class B1	$200.00	$400.00	$475.00
Class C	$300.00	$600.00	$650.00
Class C1	$500.00	$1,000.00	$1,250.00
Class D	$750.00	$1,500.00	$1,750.00
Class E	$1,250.00	$2,500.00	$3,000.00
Class E1	$10,000.00	$10,000.00	$10,000.00
Class E2	$5,000.00	$5,000.00	$5,000.00
Class E3	$3,000.00	$3,000.00	$3,000.00
Class F	$15,000.00	$15,000.00	$15,000.00

Neither the City of Cincinnati, the federal government, the State of Ohio, nor any city, federal or state agency or political subdivision is liable for a civil fine imposed pursuant to this Title.
(Ord. 241-1996, eff. Sept. 6, 1996; a. Ord. No. 219-2000, eff. June 14, 2000; a. Ord. No. 367-2000, eff. Oct. 4, 2000; a. Ord. No. 158-2004, eff. June 4, 2004; Emer. Ord. 463-2010, § 68, eff. Dec. 30, 2010; a. Ord. No. 131-2012, § 3, eff. May 25, 2012; Emer. Ord. No. 267-2014, § 4, eff. Sept. 17, 2014; a. Ord. No. 062-2015, § 5, eff. April 4, 2015; a. Ord. No. 075-2015, § 7, eff. June 1, 2015)

Sec. 1501-999. Savings.

This Title does not affect any act done or committed in violation of any former ordinance relating to the same subject, or any suit or proceeding now pending in court for the violation of the provisions of any former ordinance, or any cause or causes of action accrued or existing under such ordinance, but all proceedings or prosecutions now pending shall be conducted to final determination irrespective of this Title.
(Ord. 241-1996, eff. Sept. 6, 1996)

TITLE XVI

NEIGHBORHOOD QUALITY OF LIFE UNIFORM CODE

Sec. 1601-1. General Definitions.
Sec. 1601-3. Accumulated Waste.
Sec. 1601-5. Residential Storage.
Sec. 1601-7. Early Fire Warning System.
Sec. 1601-9. Fire Escapes.
Sec. 1601-11. Obstruction of Means of Egress.
Sec. 1601-13. Maximum Occupancy.
Sec. 1601-15. Unsanitary Structures.
Sec. 1601-17. Vermin Control.
Sec. 1601-19. Mosquito Control.
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Sec. 1601-1. General Definitions.

For the purpose of this chapter, the words and phrases defined in the sections below shall have the meanings therein respectively ascribed to them, without limiting the generalities of the words, unless a different meaning is clearly indicated by the context.

(a) "Garbage" shall mean putrescible animal and vegetable wastes resulting from the handling, preparation, cooking and consumption of food.

(b) "Graffiti" shall mean any inscription, word, figure, marking or design that is marked, etched, scratched, drawn or painted on any premises, including buildings, structures, fixtures or other improvements, whether permanent or temporary, whether public or private, without the consent of the owner of the property or the owner's authorized agent, and which is visible from the public right-of-way or other public or quasi-public location within the city.

(c) "Means of egress" shall mean a continuous and unobstructed way of exit travel from any point in a building or structure to a public way and consists of three separate and distinct parts: the way of exit access, the exit, and the way of exit discharge.

(d) "Neighborhood" shall mean an area of the city comprised of all premises or parcels of land which in whole or in part are located within a radius of 500 feet of any one parcel or lot within the city.

(e) "Person" shall mean an individual, firm, partnership, association, corporation, company or organization of any kind.

(f) "Person in control" shall mean the owner of the freehold estate of the premises; a mortgagee or vendee in possession; a receiver; an executor; a trustee; and any person, public or private entity, lessee or holder of a lesser estate in the premises, and/or its duly authorized agent(s), with the authority to bring a building or premises into compliance with the provisions of this code, including but not limited to any mortgagee that has filed an action in foreclosure on the particular premises at issue, based on breach or default of a mortgage agreement, until title to the premises is transferred to a third party.

(g) "Rubbish" shall mean nonputrescible solid wastes consisting of both combustible and noncombustible wastes, such as paper, wrappings, dirt, cigarettes, cardboard, tin cans, yard clippings, leaves, wood, glass, bedding, crockery and similar materials.

(h) "Owner" shall mean any person, partnership, firm or corporation, who alone or jointly with others shall be in possession of or have control of any property, dwelling or dwelling unit within the City of Cincinnati as owner, employee or agent of the owner, or as executor, administrator, trustee or guardian of the estate of the owner.

(i) "Weeds" shall mean and include any and all grass, weeds and wild plants exceeding ten inches in height.

(j) "Early fire warning system" or "detector" shall mean an approved automatic warning system of one or more devices that detects any of the products of combustion, including visible or invisible particles of combustion, and that produces an audible alarm signal in a building for the purpose of notifying the occupants thereof of the presence of a fire. The primary power for such

system may be either an AC electrical system or a monitored battery. Systems with detectors sensitive to heat only are not included in this definition for purposes of this chapter.

For the purpose of installation and maintenance only, a system shall be deemed approved if listed by the Underwriters' Laboratories, Inc., and conforms to the applicable sections of "NFPA Standard No. 72" (referenced by the Cincinnati Building Code).

(k) "Photoelectric early fire warning system" or "photoelectric detector" shall mean an early fire warning system that only detects the visible particles of smoke that are able to scatter light. "Photoelectric early fire warning system" or "photoelectric detector" shall not include a detector which contains more than one type of sensor.

(l) "Ionization early fire warning system" or "ionization-type detector" shall mean an early fire warning system that only detects the disruption of ionized air by particles of smoke. "Ionization early fire warning system" or "ionization-type detector" shall not include a detector which contains more than one type of sensor.

(m) "Residential rental property" shall mean a parcel of real property in the city of Cincinnati recorded as a deed with the Hamilton County Recorder on which is located one or more dwelling units leased or otherwise rented to tenants solely for residential purposes, or a mobile home park or other permanent or semi-permanent site at which lots are leased or otherwise rented to tenants for the parking of a manufactured home, mobile home, or recreational vehicle that is used solely for residential purposes. "Residential rental property" shall not include a hotel, college, single room occupancy facility, dormitory, group homes, rooming or boarding houses, motels, and bed and breakfast inns or bed and breakfast homes.

(n) "Kitchen area" shall mean a room or part of a room that is designed, built, used or intended to be used for food preparation and dishwashing; but not including a bar, butler's pantry or similar room adjacent to or connected with a kitchen.

(Ordained by Ord. No. 158-2006, § 1, eff. June 1, 2006; a. Ord. No. 418-2010, § 40, eff. Nov. 24, 2010; Emer. Ord. No. 045-2013, § 1, eff. Feb. 27, 2013)

Sec. 1601-3. Accumulated Waste.

No person shall deposit, store or permit to remain in any part of a building, building premises, vacant lot or open space, any accumulation of rubbish, paper, cans, ashes, refuse, garbage or putrescible organic matter, weeds, litter, junk, combustible or noncombustible waste, or miscellaneous debris.

Whoever violates this section is guilty of a fourth degree misdemeanor.

(Ordained by Ord. No. 158-2006, § 1, eff. June 1, 2006)

Sec. 1601-5. Residential Storage.

(a) *Outdoor Storage.* No person shall keep, maintain, or store any items in any yard (as the term "yard" is defined in CMC Section 1401-01-Y) of any property located in a residential zoning district other than those items that were manufactured for outdoor use and storage, or indoor/outdoor use and storage, on a residential property, including, but not limited to, grills, barbeques, outdoor lawn furniture, swimming pool equipment,

residential-size garbage and recycling cans and bins, lawn ornaments, landscape containers, dog houses, decorative benches, children's toys and play sets. Those items that are permitted to be kept outdoors shall be stored only in the rear yard (as the term "rear yard" is defined in CMC Section 1401-01-R1). Outdoor storage shall at all times be orderly and maintained in a safe and sanitary condition. No broken or inoperable items shall be stored in any yard.

(b) *Exceptions.* Notwithstanding the foregoing, this Section 1601-5(a) shall not apply to items stored within lawfully constructed and maintained storage sheds, outbuildings, or garages, but shall apply to carports, covered patios or any other open-air structure. Further notwithstanding the foregoing, building materials, such as lumber, roofing supplies, concrete blocks, and siding, may be temporarily stored in the rear yard of a property located in a residential zoning district for the period in which a valid building permit remains open, or if no building permit is required, for a maximum of sixty (60) consecutive days.

(c) *Aggregate Materials.* In no event shall any aggregate materials, such as gravel, sand, and mulch, be stored in any yard of any property located in a residential zoning district for a period of more than thirty (30) consecutive days, and any such aggregate materials may be covered only by a tarpaulin during such permitted storage period.

(d) *Conflicts.* If any of the provisions of this Section 1601-5 conflict with any of the provisions of Section 1601-23 regarding motor vehicle parking, the provisions of Section 1601-23 shall control. Further, if any of the provisions of this Section 1601-5 conflict with any of the provisions of CMC Section 1419-24 regarding portable storage containers, the provisions of Section 1419-24 shall control.

(e) *Penalties.*

(i) Any person who violates any part of this Section 1601-5 shall have ten (10) calendar days from the date of the written notice of the violation to cure such violation. Whoever fails to cure any such violation within such time period is guilty of a fourth degree misdemeanor.

(ii) Whoever receives three (3) or more citations for violations of this Section 1601-5 during a twelve (12) month period following the first citation is guilty of a third degree misdemeanor.

(iii) Whoever receives six (6) or more citations for violations of this Section 1601-5 during a twenty-four (24) month period following the first citation is guilty of a first degree misdemeanor.

(Ordained by Ord. No. 158-2006, § 1, eff. June 1, 2006; a. Ord. No. 053-2012, § 1, eff. March 29, 2012)

Sec. 1601-7. Early Fire Warning System.

(a) The owner or person in control of a building shall install and maintain an early fire warning system outside of each separate sleeping area in the immediate vicinity of the sleeping areas in each living unit. Each of these detectors shall be audible in each adjacent, separate sleeping area in each living unit when all intervening doors are closed and all household equipment that may be in operation at night are in full operation. An early fire warning system shall also be placed, and maintained, on each additional story without a sleeping area, including basements or cellars but excluding crawl spaces and unfinished attics.

(b) An owner or person in control may not permit a building or dwelling unit to be occupied without an approved and properly operating detector.

(c) No person shall occupy a living unit without an approved and operating detector.

(d) In any residential building in which the owner or person in control is required to have an early fire warning system it shall be the responsibility of the tenant to:

(1) Replace an expired battery with a working battery in all detectors within the living unit when a monthly test or supervisory signal indicates the need for replacement.

(2) Notify the owner or person in control and the Cincinnati Fire Department of an inoperative detector within 24 hours of learning of the inoperative status of the detector. This subsection does not require notice when the only inoperative item is a battery of a detector located within a living unit.

(3) Test, upon initial occupancy and once a month thereafter, each detector with an exterior test device within the tenant's living unit.

(e) In any residential building in which the owner or person in control is required to have an early fire warning system it shall be the responsibility for the owner to:

(1) Replace an expired battery with a working battery in all detectors in common areas when a monthly test or supervisory signal indicates the need for replacement.

(2) Test each common area detector at least once a month to ensure that each detector battery is operational.

(3) Properly repair or replace an inoperative detector within 24 hours of learning of the inoperative status of a detector.

(4) Test, upon purchase of the building and once a month thereafter, each detector with an exterior test device within common areas.

(5) Test each detector in each dwelling unit upon the execution of a new lease or the renewal of a lease. At a minimum, the owner shall test each detector at least once every twelve (12) months.

(6) Replace all detectors once every ten (10) years.

(7) The owner shall fill out a City-issued form documenting each test or replacement of a detector.

(f) Within one hundred eighty (180) days of the effective date of this ordinance, or in the event a new tenant moves into a living unit, whichever is earlier, the owner or person in control of any residential rental property with twelve (12) or fewer living units:

(1) Shall install photoelectric detectors outside of each separate sleeping area in the immediate vicinity of the sleeping areas in each living unit.

(2) May install an ionization detector in the immediate vicinity of the kitchen area of each living unit.

(g) Within seven hundred thirty (730) days of the effective date of this ordinance, or in the event a new tenant moves into a living unit, whichever is earlier, the owner or person in control of any residential rental property with thirteen (13) or greater living units:

(1) Shall install photoelectric detectors outside of each separate sleeping area in the immediate vicinity of the sleeping areas in each living unit.

(2) May install an ionization detector in the immediate vicinity of the kitchen area of each living unit.

Whoever violates this section is guilty of a first degree misdemeanor.

Whoever destroys, disconnects, or tampers with a detector shall be liable for a Class B Civil Fine.
(Ordained by Ord. No. 158-2006, § 1, eff. June 1, 2006; a. Ord. No. 418-2010, § 41, eff. Nov. 24, 2010; Emer. Ord. No. 045-2013, § 1, eff. Feb. 27, 2013)

Sec. 1601-9. Fire Escapes.

All entrances to and exits from fire escapes, and the path of travel along the fire escape, shall be maintained in a serviceable condition and shall be kept free of any obstruction.

No material, object or device shall be placed or stored on any fire escape.

Whoever violates this section is guilty of a first degree misdemeanor.
(Ordained by Ord. No. 158-2006, § 1, eff. June 1, 2006)

Sec. 1601-11. Obstruction of Means of Egress.

No object shall be placed, and no restraining devices shall be installed, so as to interfere with the proper functioning of a required means of egress. Space around required means of egress shall be kept free from obstruction which would interfere with egress from the immediate area.

Whoever violates this section is guilty of a first degree misdemeanor.
(Ordained by Ord. No. 158-2006, § 1, eff. June 1, 2006)

Sec. 1601-13. Maximum Occupancy.

No owner or person in control shall permit premises to be occupied in excess of the maximum number of occupants allowed for said structure or premise as posted by the Fire Chief.

Whoever violates this section is guilty of a first degree misdemeanor. In addition, the premise in question shall be closed until the excess number of persons has been removed therefrom.
(Ordained by Ord. No. 158-2006, § 1, eff. June 1, 2006; a. Ord. No. 418-2010, § 42, eff. Nov. 24, 2010)

Sec. 1601-15. Unsanitary Structures.

No person shall permit or allow any structure or building or any portion thereof used for human habitation to be in an unclean and unsanitary condition by reason of the inhabited portion of the house being damp or wet, or by reason of such lack of repair, or by reason of such accumulation of dirt, filth, litter, fecal matter, refuse or other offensive or dangerous substances or liquids, or by reason of such defects in or lack of repair of or improper use of the drainage, plumbing or ventilation.

Whoever violates this section is guilty of a first degree misdemeanor.
(Ordained by Ord. No. 158-2006, § 1, eff. June 1, 2006)

Sec. 1601-17. Vermin Control.

No owner, person in control, or occupant, shall permit any premises, building or part thereof to harbor an infestation of rodents, fleas, lice, roaches, weevils, bed bugs or other vermin.

Whoever violates this section is guilty of a fourth degree misdemeanor.
(Ordained by Ord. No. 158-2006, § 1, eff. June 1, 2006; a. Ord. No. 0030-2007, eff. Jan. 30, 2008; a. Ord. No. 418-2010, § 43, eff. Nov. 24, 2010)

Sec. 1601-19. Mosquito Control.

No owner, person in control, or occupant, of any lot or vacant land on which pools of water stagnate, shall permit such waters to become a breeding place for mosquitoes; and such owner shall fill or drain the depressions or otherwise abate the condition.

Whoever violates this section is guilty of a fourth degree misdemeanor.
(Ordained by Ord. No. 158-2006, § 1, eff. June 1, 2006; a. Ord. No. 418-2010, § 44, eff. Nov. 24, 2010)

Sec. 1601-21. Parking as a Fire Hazard.

No person shall park a motor vehicle in any part of any yard, court, parking lot or private driveway where such parking creates or tends to create a fire hazard to life or property or where such parking will interfere with the free movement of fire apparatus.

Whoever violates this section is guilty of a first degree misdemeanor.
(Ordained by Ord. No. 158-2006, § 1, eff. June 1, 2006)

Sec. 1601-23. Residential Parking Restrictions.

(a) No person shall park a motor vehicle, or store a boat or watercraft, on an unpaved portion of a front yard of a property used for residential purposes.

(b) No person shall park a motor vehicle, or store a boat or watercraft, on an unpaved portion of a side yard of a property used for residential purposes if that side yards abuts a street or alley.

(c) No person shall store or park for longer than three days any unlicensed or inoperable trailer, semi-trailer, or motor vehicle in any residence district or commercial property other than in a garage or in a place not open to view from any other residential or commercial property or any public street or place. For purposes of this section an unlicensed or inoperable trailer, semi-trailer, or motor vehicle draped by a tarpaulin or similar covering is deemed open to view from another residential property, public street, or place unless it is in a garage or other permanent structure. Each day's violation shall be considered a separate offense.

An "unlicensed" trailer, semi-trailer, or motor vehicle shall mean any vehicle not displaying a current, valid license plate, including any validation sticker, other than a vehicle exempt under Ohio Revised Code Chapter 4503. An "inoperable" trailer, semi-trailer, or motor vehicle shall mean any vehicle missing wheels, tires, windshield, motor, or transmission or which has been so damaged as to appear not safely operable. Any vehicle that remains parked at or near the same location for more than 30 consecutive days shall be presumed to be inoperable.

Whoever violates this section is guilty of a fourth degree misdemeanor.
(Ordained by Ord. No. 158-2006, § 1, eff. June 1, 2006)

Sec. 1601-27. Spitting in a Public Place.

No person shall spit upon any sidewalk, street, highway, alley, the floor of any bus used for public transportation, theater, railway or public transportation depot or platform or the floor of any school house, church or public building of any kind.

Whoever violates this section is guilty of spitting in a public place, a minor misdemeanor.
(Ordained by Ord. No. 158-2006, § 1, eff. June 1, 2006)

Sec. 1601-29. Graffiti.

No person shall place, or cause to be placed, any graffiti upon any property without the consent of the owner or person in control of that property.

Whoever violates this section is guilty of a first degree misdemeanor.
(Ordained by Ord. No. 158-2006, § 1, eff. June 1, 2006; a. Ord. No. 418-2010, § 45, eff. Nov. 24, 2010)

Sec. 1601-31. Litter in Public Places.

No person shall throw or deposit litter in or upon any street, sidewalk or other public place within the city except in public receptacles or in authorized receptacles for collection.

Whoever violates this section is guilty of a minor misdemeanor. Whoever violates this section three or more times within a one-year period is guilty of a fourth degree misdemeanor.
(Ordained by Ord. No. 158-2006, § 1, eff. June 1, 2006)

Sec. 1601-33. Litter on Private Property.

No person shall throw or deposit litter on any private property within the city, whether owned by such person or not, except that the owner or person in control of private property may maintain authorized private receptacles for collection in such a manner that litter will be prevented from being carried or deposited by the elements upon any street, sidewalk or other public place or upon any private property.

Whoever violates this section is guilty of a minor misdemeanor. Whoever violates this section three or more times within a one-year period is guilty of a fourth degree misdemeanor.
(Ordained by Ord. No. 158-2006, § 1, eff. June 1, 2006)

Sec. 1601-35. Placement of Litter in Receptacles so as to Prevent Scattering.

Persons placing litter in public receptacles or in private receptacles shall do so in such a manner as to prevent it from being carried or deposited by the elements upon any street, sidewalk or other public place or upon private property.

Whoever violates this section is guilty of a minor misdemeanor. Whoever violates this section three or more times within a one-year period is guilty of a fourth degree misdemeanor.
(Ordained by Ord. No. 158-2006, § 1, eff. June 1, 2006)

Sec. 1601-37. Failure to Secure Litter in Receptacles so as to Prevent Scattering.

No person shall fail to maintain a litter receptacle in such a manner that its contents cannot be carried or deposited by the elements upon any street, sidewalk or other public or private property.

Whoever violates this section is guilty of a minor misdemeanor. Whoever violates this section three or more times within a one-year period is guilty of a fourth degree misdemeanor.
(Ordained by Ord. No. 158-2006, § 1, eff. June 1, 2006)

Sec. 1601-39. Upsetting Public or Private Receptacles.

No person shall upset a public or private receptacle designed or used for the deposit of litter or cause or permit its contents to be deposited or strewn in or upon public or private property.

Whoever violates this section is guilty of a forth degree misdemeanor.
(Ordained by Ord. No. 158-2006, § 1, eff. June 1, 2006)

Sec. 1601-41. Littering by Operators and Occupants of Motor Vehicles.

(a) No operator or occupant of a motor vehicle shall, regardless of intent, throw, drop, discard or deposit litter from any

motor vehicle in operation upon any street, road, or highway, except into a litter receptacle in a manner that prevents its being carried away or deposited by the elements.

(b) No operator of a motor vehicle in operation upon any street, road, or highway shall allow litter to be thrown, dropped, discarded, or deposited from the motor vehicle, except into a litter receptacle in a manner that prevents its being carried away or deposited by the elements.

(c) As used in this section, "litter" means garbage, trash, waste, rubbish, ashes, cans, bottles, wire, paper, cartons, boxes, automobile parts, furniture, glass, or anything else of an unsightly or unsanitary nature.

Whoever violates this section is guilty of a forth degree misdemeanor.
(Ordained by Ord. No. 158-2006, § 1, eff. June 1, 2006)

Sec. 1601-43. Vehicles Causing Litter or Scattering Debris.

(a) No person shall drive or move any truck or other vehicle within the city unless such vehicle is so constructed and loaded as to prevent any load, contents or litter from being thrown or deposited upon any street, alley or other public place. When a vehicle carries any substance liable to be blown away, the owner, driver or other person in charge thereof shall, before driving or operating it on any street, alley or other public place, cause such substance or substances to be completely covered with a canvas, duck or other substantial covering in such manner that the same cannot fall or be blown from such vehicle.

(b) No person shall operate on any street, alley or other public place a vehicle with mud, dirt, sticky substances, litter or foreign matter on its wheels or other parts if such operation results in the depositing or tracking of such mud, dirt, substances, litter or foreign matter on any street, alley or other public place.

(c) No person being owner or person in control of real property or a prime contractor in charge of a construction site shall maintain such property or construction site so that vehicles upon the property or construction site pick up mud, dirt, sticky substances, litter or foreign matter on the wheels or other parts and deposit or track the mud, dirt, sticky substances, litter or foreign matter onto any street, alley or other public place.

(d) Where mud, dirt, sticky substances, litter or foreign matter has been tracked or deposited on any street, alley or other public place in violation of this section, the city manager is authorized to cause such mud, dirt, substances, litter or foreign matter to be cleaned from such street and to charge the cost thereof to the person or persons responsible. The cost of cleaning shall be collected by civil suit. The term "responsible person" as used in this section shall mean the driver of the vehicle which deposited or tracked the mud, dirt, substances, litter or foreign matter on the street or the driver's employer or the owner or person in control of the real property or prime contractor in charge of a construction site from where the deposited or tracked mud, dirt, substances, litter or foreign matter on the street, alley or other public place originated.

Whoever violates any of the above provisions is guilty of a minor misdemeanor. Whoever violates this section three or more times within a one-year period is guilty of a fourth degree misdemeanor.
(Ordained by Ord. No. 158-2006, § 1, eff. June 1, 2006; a. Ord. No. 418-2010, § 46, eff. Nov. 24, 2010)

Sec. 1601-45. Signs in Public Right-of-Way.

(a) No person shall place, or cause to be placed, any sign, banner, placard, or other similar object in, or above, any public right-of-way without first obtaining a permit.

(b) Items placed in violation of this section shall be deemed a public nuisance and shall be subject to immediate removal by governmental agencies.

Whoever violates this section is guilty of a fourth degree misdemeanor.
(Ordained by Ord. No. 158-2006, § 1, eff. June 1, 2006)

Sec. 1601-46. Repealed.
(Ordained by Ord. No. 192-2008, § 1, eff. July 4, 2008; r. Ord. No. 301-2022, § 1, eff. September 21, 2022)

Sec. 1601-47. Sidewalk Obstructions.

Where land abuts a street, the owner or owners or persons in control of such land shall be jointly and severally responsible for causing the area between the curb, or presumable curb, and the property line to be kept in good order, free from nuisance, weeds, and litter. In addition said owners or persons in control shall:

(a) Keep the line of sight to all traffic signals open and visible to the operators of vehicles for a minimum distance of 150 feet; maintain a clear line of sight of street name signs, traffic control signs and devices.

(b) Maintain a minimum pedestrian overhead clearance of eight feet over the sidewalk space.

(c) Maintain a minimum vehicular overhead clearance of 14 feet above the adjacent roadway.

(d) Keep privately owned trees, growing under a utility wire in the public right-of-way, at a height less than the utility wire.

(e) Keep privately owned trees, shrubs, bushes and plants from substantially interfering with the normal use of the sidewalk.

Whoever violates this section is guilty of a fourth degree misdemeanor.
(Ordained by Ord. No. 158-2006, § 1, eff. June 1, 2006; a. Ord. No. 418-2010, § 47, eff. Nov. 24, 2010)

Sec. 1601-49. Weeds.

No owner or person in control shall allow weeds to grow or remain on any of his/her land or premises.

Whoever violates this section is guilty of a minor misdemeanor. Whoever violates this section three or more times within a one-year period is guilty of a fourth degree misdemeanor.
(Ordained by Ord. No. 158-2006, § 1, eff. June 1, 2006; a. Ord. No. 418-2010, § 48, eff. Nov. 24, 2010)

Sec. 1601-51. Repealed.
(Ordained by Ord. No. 158-2006, § 1, eff. June 1, 2006; r. Ord. No. 289-2010, § 6, eff. July 30, 2010)

Sec. 1601-55. Vacations and Barricades.

No person shall ignore the terms of an order issued by the Departments of Buildings and Inspections, Health or Fire, to vacate, keep vacant, or evacuate property.

Whoever violates this section is guilty of a first degree misdemeanor.
(Ordained by Ord. No. 158-2006, § 1, eff. June 1, 2006)

Sec. 1601-57. Enforcement of Emergency Orders.

No person shall fail to comply with a lawful order issued on the basis of a declaration of public emergency by the governor of the state of Ohio or by the mayor pursuant to Article III, Section 2, of the Charter.

(a) An initial violation of such a lawful order that persists 72 hours after the issuance of notice is a Class A Civil

Offense. Any subsequent violation of this section is a Class B Civil Offense.

(b) Following the issuance of notice, where a violation presents a significant health or safety threat, an initial violation of this section is a Class C1 Civil Offense. Where a violation presents a significant health or safety threat, any subsequent violation of this section is a Class D Civil Offense. Alternatively, whoever violates this section two or more times during the effective periods of such lawful orders is guilty of a first degree misdemeanor where such violations present a significant health or safety threat.

(c) All fine penalties collected under this Section shall be deposited in Fund 416.

(Ordained by Emer. Ord. No. 142-2020, § 1, eff. May 13, 2020)

Sec. 1601-59. Enforcement of Health Orders.

No person shall fail to comply with a lawful order issued by the director of the Ohio department of health, Cincinnati board of health, health commissioner of the City of Cincinnati, or any authorized representative on their behalf.

(a) An initial violation of such a lawful order that persists 72 hours after the issuance of notice is a Class A Civil Offense. Any subsequent violation of this section is a Class B Civil Offense.

(b) Following the issuance of notice, where a violation presents a significant health or safety threat, an initial violation of this section is a Class C1 Civil Offense. Where a violation presents a significant health or safety threat, any subsequent violation of this section is a Class D Civil Offense. Alternatively, whoever violates this section two or more times during the effective periods of such lawful orders is guilty of a first degree misdemeanor where such violations present a significant health or safety threat.

(c) All fine penalties collected under this Section shall be deposited in Fund 416.

(Ordained by Emer. Ord. No. 142-2020, § 1, eff. May 13, 2020)

Sec. 1601-95. Enforcement.

The provisions of this Code section may be enforced by designated members of the Fire, Health, Buildings and Inspections, Police, and Public Service Departments of the City of Cincinnati.

(Ordained by Ord. No. 158-2006, § 1, eff. June 1, 2006)

Sec. 1601-97. Continuing Violations.

Each and every day on which such person continues to violate any provision of this Code shall constitute a separate offense.

(Ordained by Ord. No. 158-2006, § 1, eff. June 1, 2006)

Sec. 1601-99. Cost of Abating a Public Nuisance.

(a) Whenever there exists a public nuisance; a condition or action that adversely affects the health, safety, or welfare of any person; a condition or activity lacking a required or necessary permit or license, the City may recover the total cost associated with obtaining compliance; abating the condition; or enforcement using any method authorized by law from the responsible party including but not limited to one or more of the following methods:

(1) Invoice the party responsible;

(2) Place a lien on the benefitted property in accordance with the process set

forth in Ohio Revised Code Sections 715.26, 715.261, and 731.54 or any successor sections;

(3) Obtain a judgment from the responsible party, property owner, or person in control of the benefitted property at the time the costs were incurred through a civil action;

(4) File a lien against and pursue a foreclosure of the benefitted property in accordance with the process set forth in Ohio Revised Code Sections 323.65 to 323.79, and 715.261(B)(3) or any successor sections; or

(5) Invoice the property owner or person in control of the benefitted property pursuant to the quarterly fee schedule established under Section 1101-85 of the CMC.

(b) For the purposes of this section, the following words and phrases shall have the following meaning:

(1) "Public nuisance" shall mean any premises, property, lot, structure, building, chattel, vehicle, animal, condition, or activity, which is dangerous, hazardous, diseased, dilapidated, decayed, unsafe, or unsanitary; detrimental to the public health, safety, and welfare, or well-being of the surrounding area; or otherwise not in compliance with any building, housing, zoning, fire, safety, air pollution, environmental, health, or sanitation ordinance or statute.

(2) "Responsible party" means any individual, firm, corporation, association, partnership, agent, operator, trust, estate, syndicate, cooperative, or any entity recognized by law, or anyone: (i) in charge or in control of land, a structure, or chattel where there is a public nuisance; (ii) responsible for the creation, existence, commission, and/or maintenance of a condition or action that adversely affects the health, safety, or welfare of any person; or (iii) responsible for the creation, existence, commission, and/or maintenance of a condition or activity lacking a required or necessary permit or license.

(3) "Total cost" means the sum of the following costs incurred or borne by the City: any costs related to the use of employees, materials, or equipment of the City; any accrued quarterly code enforcement monitoring fees resulting from abatement activities associated with Section 1101-64(2)(a)(iv); any costs related to contracts for labor, materials, or equipment; and any costs related to issuance or service of notice or publication required under this chapter. "Total cost" includes, but is not limited to, any attorney's fees, costs of inspection, administrative and support staff fees, property maintenance costs, court costs, title search fees, process server fees, and skip tracing expenses; any costs of police, fire, and medical services provided to respond, abate, prosecute, litigate, obtain compliance, or enforce; any costs of collection or prosecution, including discovery and deposition expenses; and any costs of providing emergency temporary housing authorized by this Code.

(Ordained by Ord. No. 0096-2025, § 1, eff. April 16, 2025)

Editor's note—Ord. No. 0096-2025, § 1, effective April 16, 2025, set out provisions intended for use as 1601-95. To avoid the duplication of section numbers and at the editor's discretion, these provisions have been included as 1601-99.

RULES AND REGULATIONS
OF THE INDEPENDENT BOARDS AND COMMISSIONS

Rules of Council

Rules of the Public Recreation Commission

Regulations of the Board of Park Commissioners

City Planning Commission Rules

Civil Service Commission Rules

City Earnings Tax Rules and Regulations

Board of Health Regulations

Rules of Procedure
City Zoning Hearing Examiner

Rules of Procedure
City Board of Building Appeals

Rules of Procedure
City Board of Housing Appeals

Rules of Procedure
City Historic Conservation Board

Rules of Procedure
City Zoning Board of Appeals

RULES OF COUNCIL*

DEFINITIONS AND RULES OF CONDUCT

1.1	Adoption of Rules.
1.2	Definitions.
1.3	Amendment and Suspension of Council Rules.
1.4	Procedure in Absence of Rule.
1.5	Rules of Courtesy and Decorum.
1.6	Conduct of Visitors.
1.7	Weekly staff meetings.

1.1 Adoption of Rules.

The following Rules of Council are adopted on January 2, 2018 and shall remain in effect upon adoption by Council and until such time as amended, rescinded or the end of the Four year term of Council. These rules are established by Council pursuant to Article II, Section 5a of the Charter for the conduct of the business of Council. Such rules shall be enforceable amongst Members of Council and the Mayor.

1.2 Definitions.

As used in these Rules of Council:

1.2.1 "Charter" means the Charter of the City of Cincinnati as amended from time to time.

1.2.2 "City Bulletin" means the official newspaper of the Council and shall contain official reports of the proceedings of Council as well as items of general interest. The City Bulletin shall be considered a newspaper of general circulation for all purposes.

1.2.3 "City's Website" means the website maintained by the administration of the city, currently www.cincinnati-oh.gov.

1.2.4 "Clerk of Council" means the person appointed by Council pursuant to Article II, Section 5a and the staff of the Clerk of Council.

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*__Editor's note—__Adopted by the Council under the authority of the Charter of the City of Cincinnati.

Subsequently amended to read as herein set out effective April 5, 2006; subsequently amended to read as herein set out effective January 2, 2018; Subsequently amended to read as herein set out effective March 1, 2019.

1.2.5 "Committee" means a standing or special committee of the Members of Council created by the Mayor or by Council for the efficient conduct of the business of Council pursuant to Article II, Section 5a of the Charter.

1.2.6 "Committee Member" means a Member of a Committee.

1.2.7 "Council" means the nine Members elected in the November 5, 2013 election and their duly appointed or elected successor Members.

1.2.8 "Disturbing a Lawful Meeting" has the meaning ascribed in Ohio Revised Code Section 2917.12 as follows: (A) No person, with purpose to prevent or disrupt a lawful meeting, procession, or gathering, shall do either of the following: (1) Do any act which obstructs or interferes with the due conduct of such meeting, procession, or gathering; (2) Make any utterance, gesture, or display which outrages the sensibilities of the group.

1.2.9 "Mayor" means the person elected in the November 5, 2013 election and his duly appointed or elected successor.

1.2.10 "Member" means an individual member of Council.

1.2.11 "Notice of Regular Meeting" means the posting in the office of the Clerk of Council, Room 308, City Hall and on the City's Website of the time and place of a regularly scheduled meeting of Council or a Committee. If Council or a Committee adopts a different day or hour for its regularly scheduled meetings, notice shall be posted in the office of the Clerk of Council, published in the City Bulletin, and posted on the City's Website.

1.2.12 "Notice of Special Meeting" means notice by the Clerk of Council to the Mayor and Members by a written notice delivered to their place of residence or to any location designated by a the Mayor or a Member in writing and filed with the Clerk of Council or by electronic means evidencing receipt; provided, however, that no additional notice need be served on any Member present at a meeting of Council or Committee at which the Presiding Officer gives at least 24 hours oral notice of the time and purpose of the meeting. The news media that have requested notification shall be given at least 24 hours advance notice of the time, place and purpose of the meeting by the Clerk of Council. Notice shall also be posted in the office of the Clerk of Council and posted on the City's Website.

1.2.13 "Parliamentarian" means the Clerk of Council or the Clerk's Designee as assisted by the City Solicitor, or a member of the staff of the City Solicitor in attendance at the meeting of Council or Committee.

1.2.14 "Presiding Officer" means, in the case of a meeting of Council, the Mayor, Vice Mayor, or President Pro Tem presiding at such meeting, and in the case of a meeting of a Committee, the Chair or Vice Chair of that Committee presiding at the Committee meeting.

1.2.15 "Rules" means the Rules of Council as adopted, amended, or rescinded from time to time during the Term.

1.2.16 "Special Meetings of Council" means a meeting called pursuant to Article II, Section 5 of the Charter at the request of the Mayor or any two Members upon 24 hours notice to the Mayor and each Member.

1.2.17 "Special Meetings of Committee" means a meeting called at the request of the Committee Chair or any two Members of a Committee upon 24 hours notice to the Mayor and each Member.

1.2.18 "Term" means the term of Council commencing December 1, 2013 and ending December 1, 2017.

1.3 Amendment and Suspension of Council Rules.

Rules may be amended, rescinded or adopted by the favorable vote of a majority of the Members. The amendment, rescission, or adoption of a new Rule shall go into effect at the next regularly scheduled session of Council. Except where the Charter otherwise provides, any Rule may be suspended at a meeting of Council or a meeting of a Committee by a favorable vote of three-fourths of the Members or the Committee Members, as applicable, without debate.

1.4 Procedure in Absence of Rule.

Council shall give our citizens a courteous and respectful hearing of their views.

Citizens shall be made to feel welcome with an appropriate greeting at the beginning of each Council and Committee meeting.

Council recognizes that citizens make significant personal sacrifices to attend Council and Committee meetings as well as public hearings. Council shall be respectful of the time being given by citizens and shall hear from them in a prompt and timely manner.

Council recognizes that citizens coming before Council may not always agree with the views of Members. All points of view shall be heard respectfully without reproach or admonition. In any debate of public issues, differences of opinion are to be expected and the civil, respectful, and transparent airing of those differences is encouraged in order to test ideas and develop consensus. Debate shall not become a personal attack on the speaker.

Letters to Members deserve serious consideration and a timely, appropriate response. Letters to the Clerk of Council, even those that may be critical, shall be made a part of the record of Council.

Decorum and civility shall be observed at all times by Members of council. This includes prompt and regular attendance at all meetings of Council, including those times dedicated to public comment. During meetings of Council, including during those times dedicated to public comment, neither the Mayor nor Members shall engage in lengthy side conversations. Such conversations shall occur outside Council chambers.

Those attending meetings of Council and Committees shall be respectful of other citizens, staff, the Mayor, and Members.

Members shall hold themselves and each other accountable for complying with these standards.

1.6 Conduct of Visitors.

Council has a significant interest in conducting orderly, efficient, effective, and dignified meetings. All visitors to meetings of Council and Committees must not act in a manner constituting Disturbing a Lawful Meeting.

The Presiding Officer may order the removal of any person Disturbing a Lawful Meeting, or failing to comply with any lawful decision or order by the Presiding Officer. In cases of a person or persons Disturbing a Lawful Meeting, the Presiding Officer may ban such persons from all Council and Committee meetings for a period of 60 days, in addition to any other penalties provided by law. The Clerk of Council shall be responsible for notifying suspended individuals of the duration of their suspension.

In the interest of other speakers and fair enforcement of Council Rules, time limits on speakers at Council and Committee meetings shall be strictly and equally enforced. When a speaker's time has expired, he or she shall promptly conclude his or her sentence and cease speaking.

Signs, placards, posters and other items brought into Council chambers must not exceed 2 ft. × 3 ft. in size. Persons at Council or Committee meetings may not carry or hold signs, placards, posters or other items in a manner that obstructs the view of others.

The use of sticks, poles or supports made of wood, metal, plastic or any rigid material is strictly prohibited in Council chambers.

Any sign, placard, poster, or other item brought into Council chambers containing obscene or profane language, personal attack, libel, defamation, or threat of physical violence, shall be subject to removal at the discretion of the Presiding Officer.

Violators must remove from Council chambers any sign determined by the Presiding Officer to be in violation of this rule. The Presiding Officer has the discretion to order the removal of persons who violate this rule following a warning from the Presiding Officer.

1.7 Weekly staff meetings.

In order to promote a more collegial and collaborative working environment, the offices are encourage to agree upon regular, voluntary meetings among the Members' and Mayor's Chiefs of Staff.

PUBLIC ACCESS

2.1 Meetings Open to the Public.
2.2 Notice of Meeting.
2.3 Journal of Proceedings.
2.4 Copies of Documents.
2.5 City Bulletin.
2.6 Citizens' Forum.
2.7 Public Comments at Committee Meetings.
2.8 Regular Meetings.
2.9 Removal of Disruptive Individuals from Council Chambers.

2.1 Meetings Open to the Public.

All meetings of the Council and Committees shall be open to the public. All meetings of the Council and Committees shall be open to the news media and shall be subject to recording by radio, television and photographic services.

2.2 Notice of Meeting.

The Clerk of Council shall give Notice of Regular Meetings or Notice of Special Meetings of Council and Committees.

To obtain notification of Special Meetings of Council and Committees, a news agency shall submit a written request to the Clerk of Council at 801 Plum Street, Room 308, City Hall, Cincinnati, Ohio 46202. Such request shall include the name and address of the news agency making the request, an email address, a facsimile number, and a telephone number for use by the Clerk of Council. The notification of Special Meetings of Council and Committees shall be made by telephone call or electronic transmission evidencing receipt as provided by the news agency. The responsibility for keeping the required information current shall be that of the news agency making the request.

Any person who wishes to obtain advance notification of all Council or Committee meetings at which any specific type of public business is to be discussed shall submit a written request for such notification to the Clerk of Council at 801 Plum Street, Room 308, City Hall, Cincinnati, Ohio 45202. Such request shall include the name, address, email address, and telephone number of the person making the request and shall be accompanied by a sufficient self-addressed stamped envelope. Notification shall be made by mailing a copy of the agenda or a notice of the time, place and purpose of the meeting to the person requesting notification, except that in the event of Notice of a Special Meeting such notification may be made by telephone call or electronic transmission evidencing receipt. The responsibility for keeping the required information current shall be that of the person making the request.

2.3 Journal of Proceedings.

The journal of proceedings of the Council shall be kept by the Clerk of Council and shall be open to public inspection at all reasonable times. The vote of each Member shall be entered in the journal.

2.4 Copies of Documents.

The Clerk of Council shall make available to the public all records under the clerk's control required to be made available under the Ohio Public Records Law, Ohio Revised Code Section 149.43 et seq. The Clerk of Council may charge a reasonable fee to cover the administrative costs, including personnel costs, of providing such records. Fees for copies, including electronic copies, shall be posted in the office of the Clerk of Council and available on the City's Website.

2.5 City Bulletin.

The City Bulletin may contain a report or statement presented to Council in writing with a request that it be included in the minutes of Council upon the consent of a majority of Council.

2.6 Citizens' Forum.

For a period of not more than 30 minutes immediately prior to the start of each regular meeting of Council, there will be a citizens' forum where persons will be granted the privilege of the floor as follows:

(a) Each citizens' forum will begin with a greeting by the Presiding Officer and a brief summary of the Rules of Council related to courtesy and decorum and speaking before Council, after which persons are granted the privilege of the floor for up to two minutes to discuss any topic(s).

(b) All persons speaking during the citizens' forum are limited to one appearance per citizens' forum.

(c) All persons who wish to speak during the citizens' forum must complete a speaker card and file it with the Clerk of Council by the scheduled start of the citizens' forum on the day the speaker wishes to speak. Speakers may file a speaker card with the office of the Clerk of Council anytime beginning on Monday of the week they wish to speak until the scheduled start of the citizens' forum. Speaker cards will not be accepted by the Clerk of Council after the scheduled start of the citizens' forum, except in the discretion of the Presiding Officer. Speaker cards must be completed with the speaker's name, address, organization (if applicable) and subject, and submitted along with any material or information to be distributed. On the face of each completed speaker card, the Clerk of Council shall indicate the time of receipt and the order in which the speaker cards are received.

(d) The Presiding Officer shall recognize and introduce speakers in the order in which their speaker cards were received by the Clerk of Council. Those speakers who promptly submitted speaker cards but are unable to speak within the half-hour period will have first priority to speak at the next citizens' forum. The Clerk of Council will inform those speakers who will have priority to speak at the next citizens' forum prior to the start of the citizens' forum.

(e) Only the speaker, and the next succeeding speakers are permitted at the speakers' table during the citizens' forum, unless the Presiding Officer or any Member has invited two or more persons to the speakers' table for informational or ceremonial purposes.

(f) The use of obscene or profane language, personal attack, libel, slander, defamation, physical violence or the threat thereof, as determined by the Presiding Officer, shall constitute a Disturbing a Lawful Meeting.

(g) The Presiding Officer may order the removal of any person for Disturbing a Lawful Meeting or for failing to comply with any lawful decision or order by the Presiding Officer for the duration of the citizens' forum or such lesser period as the Presiding Officer may determine. The Presiding Officer may order the removal of persons who are Disturbing a Lawful Meeting from Council chambers for the duration of the meeting or such lesser period as the Presiding Officer may determine. In cases of excessive Disturbing a Lawful Meeting, the Presiding Officer may ban individuals from all Council and Committee meetings for a period of 60 days, in addition to any other penalties provided by law.

The Clerk of Council shall be responsible for notifying suspended individuals of the duration of their suspension.

(h) Beginning at the January 24, 2019 meeting of the Council, the citizen's forum shall be televised. The City Manager is authorized to promulgate and enact rules and regulations necessary to maintain order. The citizens' forum shall not be considered part of the business portion of a Council meeting and will be televised.

(i) If the Mayor is not present to call the citizens' forum to order five minutes after the scheduled starting time, the Vice-Mayor shall call the meeting to order. If neither the Mayor nor the Vice-Mayor is present for a regular meeting of Council, the President Pro Tem shall call the meeting to order. If the Mayor, Vice-Mayor or the President Pro Tem are not present, a Member may call the meeting to order, as long as a quorum is present.

2.7 Public Comments at Committee Meetings.

Members of the public are encouraged to discuss and debate relevant issues during meetings of the various Committees. Each Committee meeting will begin with a greeting by the Presiding Officer and a brief summary of the Rules of Council related to courtesy and decorum and speaking before Council. During Committee meetings, persons may be granted the privilege of the floor as follows:

(a) Persons who wish to speak on any item on a Committee agenda may be granted the privilege of the floor for three minutes, unless in the discretion of the Presiding Officer, circumstances dictate a longer or shorter period for all speakers on a particular item. The length of speaking periods for public comment must be uniform for a particular item.

Further, it is the discretion of the Presiding Officer whether persons speaking on agenda items speak before or after Committee members have had the opportunity to

discuss the item. After the business portion of Committee meetings has concluded, persons who wish to speak on any issue may be granted the privilege of the floor for three minutes.

(b) At the discretion of the Presiding Officer, public comments may be limited to three persons in support and three persons in opposition of any issue. All speakers are limited to one appearance per Committee meeting.

(c) All persons who wish to speak before a Committee must complete a speaker card and file it with the Clerk of Council. Speaker cards must be completed with the speaker's name, organization (if applicable) and subject, and submitted along with any material or information to be distributed. On the face of each completed speaker card, the Clerk of Council shall indicate the time of receipt and the order in which speaker cards are received.

(d) Each Committee's Presiding Officer will recognize and introduce speakers in the order in which their speaker cards were received by the Clerk of Council.

(e) Only the speaker, and the next succeeding speakers are permitted at the speakers' table, when addressing a Committee or a public hearing, unless the Presiding Officer or any member of the Committee has invited two or more persons to the speakers' table for informational or ceremonial purposes.

(f) The Presiding Officer shall provide a warning to a speaker whose comments are not directly relevant to a Committee agenda item. Following a warning, the Presiding Officer may require a speaker who continues to make irrelevant comments to relinquish the remainder of his or her three minutes. Failure to comply will constitute Disturbing a Lawful Meeting.

(g) The use of obscene or profane language, personal attacks, slander, libel, defamation, physical violence or the threat thereof, which the Presiding Officer determines is intended as a disruption of the meeting, shall constitute Disturbing a Lawful Meeting.

(h) The Presiding Officer may order the removal of any person Disturbing a Lawful Meeting or failing to comply with any lawful decision or order by the Presiding Officer for the duration of the public comment period or such lesser period as the Presiding Officer may determine. The Presiding Officer may order the removal of persons who continue to Disturb a Lawful Meeting from council chambers for the duration of the meeting or such lesser period as the Presiding Officer may determine. In cases of excessive Disturbing a Lawful Meeting., the Presiding Officer has the discretion to ban individuals from all Council and Committee meetings for a period of 60 days, in addition to any other penalties provided by law. The Clerk of Council shall be responsible for notifying suspended individuals of the duration of their suspension.

2.8 Regular Meetings.

The purpose of regular Council meetings is to allow the Mayor, Members, and city officials to conduct the city's business. Persons other than the Mayor, Members, city officials, and those invited by the Presiding Officer to provide factual information strictly related to the item under consideration by the Council shall not be recognized by the Presiding Officer to speak to Council during the meeting of Council. When called to provide such information, the

person(s) called shall limit his or her remarks to the provision of the information requested and shall not attempt to offer remarks that are irrelevant to the item under consideration by Council.

The Presiding Officer may grant the privilege of the floor to one or more persons for ceremonial purposes.

2.9 Removal of Disruptive Individuals from Council Chambers.

If an individual is removed for Disturbing a Lawful Meeting of Council or a Committee two times in a 60-day period, that individual shall be prosecuted for violating O.R.C. Section 2917.12, a fourth degree misdemeanor. The Clerk of Council shall document the name, date, time and circumstances of any individual's removal from Council chambers during a Council or Committee meeting.

COUNCIL CHAMBER

3.1	Council Chamber.
3.2	Seating of Members.
3.3	Officers of the Council.
3.4	Clerk of Council and Staff.
3.5	Appointment by the Mayor.
3.6	Allocation of Office Space.
3.7	Ban on Weapons and Items Resembling Weapons.

3.1 Council Chamber.

The Council chamber, and the Committee rooms, shall be under the supervision and control of the Clerk of Council when the Council or Committee is not in session. The Council chamber shall be under the supervision and control of the Presiding Officer when Council or Committee is in session. The Council chamber, and the Committee rooms shall be used solely by the Mayor, Council, and the Committees for the transaction of the business of the city. If not required for such use, the Clerk of Council may permit the use of the Council chamber, and the Committee rooms for the transaction of other public business. Application for such use must be made to the Clerk of Council. Any permission granted may be canceled or revoked by the Clerk of Council.

3.2 Seating of Members.

Except as otherwise directed by a majority of Council, Members shall occupy the seats in the Council chamber assigned to them by the Mayor, but any two or more Members may exchange seats by giving joint written notice to the Mayor.

3.3 Officers of the Council.

A vote of a majority of the Members shall be required to select a President Pro Tem at the first regular meeting in December following the regular municipal election for the choice of Members of Council.

3.4 Clerk of Council and Staff.

Pursuant to Article II, Section Sa of the Charter, the Clerk of Council shall be appointed as an unclassified legislative employee of the city by vote of a majority of the Members and shall serve at the pleasure of Council. The appointment shall be for a four year term coinciding with the Term.

Removal of the Clerk of Council during the Term shall be made only upon an affirmative vote of two-thirds of the Members.

Prior to original appointment the qualifications of the proposed appointee shall be presented to the Members.

The Clerk of Council's staff shall be appointed as unclassified legislative employees of the city by the Members. The Clerk of Council shall have supervision and control of the staff of the office of the Clerk of Council.

3.5 Appointment by the Mayor.

Within the first 30 days of the Term, the Clerk of Council shall provide the Members with a list of those positions appointed by the Mayor with the advice and consent of Council which will expire during the Term.

When the Mayor submits a proposed appointment to Members, the name of the proposed appointee shall be published in the City Bulletin and consideration of the appointment shall be at the next regular meeting of Council. Any member may request an additional week for consideration of the appointment, but requests from all Members may not aggregate to extend the additional consideration period for more than one week. A majority of Members may reject any request for an additional week.

3.6 Allocation of Office Space.

When any office occupied by a Member becomes vacant for any reason, the vacant office space shall be offered to the other Members in order of seniority based upon total consecutive time served on Council, except that Room 356 shall be provided to the Vice Mayor. If two or more Members with equal seniority are requesting the same office, the space shall be granted to the person who received the highest number of votes in the most recent election. The Clerk of Council shall administer the assignment of vacant office space in accordance with this rule.

All allocation of office space shall be done by the Clerk of Council in writing to the Members elected in the most recent election after certification of the election results by the Hamilton County Board of Elections.

3.7 Ban on Weapons and Items Resembling Weapons.

Weapons and any items that the Presiding Officer determines resemble weapons are strictly banned from Council chambers unless wielded by a member of the Cincinnati Police Department. Any person carrying such item will be immediately removed from Council chambers and banned from all Council and Committee meetings for a period of 60 days, in addition to any other penalties provided by law.

MEETINGS OF COUNCIL

4.1 Regular Meetings.
4.2 Special Meetings of Council.
4.3 Adjourned Meetings.

4.1 Regular Meetings.

Regular meetings of the Council shall be held in the Council chamber commencing at 2:00 p.m. on Wednesday of each week except for the first Wednesday of each month when Council shall meet at 6:00 p.m. and during the month of July and August when the Council shall meet on the first Wednesday of the month. The meetings scheduled at 6:00 p.m. shall be effective for twelve months after the first meeting. Whenever a regular meeting falls in a week in which a legal holiday occurs on Monday, Tuesday or Wednesday, the meeting shall be held on Thursday at 2:00 p.m. or 6:00 p.m. Date and time of regular meetings may be changed by affirmative vote of two-thirds of the Members.

The citizens' forum for public comment shall begin 30 minutes prior to the scheduled start of every regular meeting of Council, and will last for up to 30 minutes. A quorum must be present for the citizens' forum to begin.

4.2 Special Meetings of Council.

Special meetings of Council for a specific purpose or purposes may be called by the Clerk of Council at the request of the Mayor or any two Members with Notice of a Special Meeting given as provided in Rule 2.2. The call for the meeting shall state the time, date, location and subjects to be considered at the meeting and be posted on the City's Website. A special meeting may be canceled upon request of the callers of the special meeting. The Clerk of Council shall notify all Members of the proposed cancellation and upon the acquiescence of a majority of Members, the meeting shall be canceled. In the event such majority vote is not obtained, the meeting shall be held as scheduled. The news agencies that requested Notice of the Special Meeting shall be notified of any cancellation. The Clerk of Council shall post cancellation of the special meeting on the City's Website.

4.3 Adjourned Meetings.

Any meeting of Council may be adjourned until a later time, date or location provided that no adjournment shall be for a longer period than until the next regular meeting.

PRESIDING OFFICER

5.1 Presiding Officer.
5.2 Temporary Presiding Officer.
5.3 Preservation of Order.
5.4 Appeals from Decisions of the Presiding Officer.
5.5 Questions Stated.
5.6 Presiding Officer Leaving Chair.
5.7 The Clerk.
5.8 Addressing the Chair.

5.1 Presiding Officer.

The Mayor or, in the Mayor's absence, the Vice-Mayor or, in the absence of both, the President Pro Tem, shall preside over any meeting of Council.

The Committee Chair or, in the absence of the Chair, the Vice Chair, shall preside over any Committee meeting.

5.2 Temporary Presiding Officer.

In case of the absence of the Mayor, the Vice-Mayor and the President Pro Tem at any meeting of Council, the Clerk of Council shall call the Council to order and call the roll of the Members. If a quorum is present, the Members present shall select, by a majority vote, a Presiding Officer of the meeting to act until the Mayor, Vice-Mayor or President Pro Tem appears.

In case of the absence of the Chair and the Vice Chair at any meeting of a Committee, the Clerk of Council shall call the Committee to order and call the roll of the Members of the Committee. If a quorum is present, the Members present shall select, by a majority vote, a Presiding Officer of the meeting to act until the Chair or Vice Chair appears.

5.3 Preservation of Order.

The Presiding Officer shall preserve order and decorum, prevent attacks on personalities or impugning of Members' motives and confine Members in debate to the question under discussion. The Presiding Officer shall exercise final authority to take any measures reasonably necessary to preserve order during meetings and to ensure that the meeting is conducted in an orderly and efficient manner. In discharging these duties, the Presiding Officer may issue directives to any member of the Cincinnati Police Department who shall be deemed a sergeant-at-arms for the Mayor and Council.

Any person entering the Council chambers or any of the Committee rooms while a meeting is in progress, shall render inaudible any device, such as a cell phone, beeper or paging device within such person's control that may beep, buzz or make any noise that may be audible to other persons in the area.

The Parliamentarian shall be present at and assist with the resolution of procedural questions at every Council meeting and Committee meeting.

5.4 Appeals from Decisions of the Presiding Officer.

The Presiding Officer, in consultation with the Parliamentarian, shall decide all questions of order subject to appeal. Upon appeal, the Presiding Officer shall be sustained unless overruled by a majority vote of the Members.

5.5 Questions Stated.

Questions by Members for the city administration, may at the discretion of the Presiding Officer, be directed by the Member directly to the person answering the question. The answers to the questions may be directed to the Member asking the question. The questions may be limited by the Presiding Officer, if the Presiding Officer determines that the city administration has fully answered the question.

5.6 Presiding Officer Leaving Chair.

The Presiding Officer at a meeting may call any other Member to take the Presiding Officer's place in the chair but the substitution shall not extend beyond adjournment.

5.7 The Clerk.

The Clerk of Council and other officers and employees of the Clerk of Council's office shall be under the control and direction of the Presiding Officer during Council and Committee meetings.

5.8 Addressing the Presiding Officer.

Every Member speaking to a question or making a motion shall address the Presiding Officer as "Mister Chairman" or "Madam Chairwoman." The Presiding Officer shall state the name of the Member entitled to the floor. Members addressing Council or a Committee shall confine themselves to the question under debate.

MEMBERS

6.1	Duty to Vote.
6.2	Right to Floor.
6.3	Limitation of Debate.
6.4	Roll Call Vote.
6.5	Tie Vote.
6.6	Change of Vote.
6.7	Personal Privilege and Character Attacks.
6.8	Censure.
6.9	Dissents and Protests.
6.10	Attendance at Meetings.
6.11	Excusal During Meeting.

6.1 Duty to Vote.

Every Member present at a meeting of Council shall vote on all binding motions, resolutions, reports from the administration requiring action and ordinances, unless excused by a majority vote of Council; except that no Member shall vote on any question in which he or she is financially interested or which in any way directly involves the personal or private rights or obligations of a Member or the immediate family of a Member. A Member wishing to be excused or excepted shall state the reason for excusal or exception.

Any Member, who has a personal or professional conflict with any item that appears before a Committee or the Council, shall strictly adhere to the requirements of the Ohio Ethics Commission. This includes, but is not limited to, refraining from all conversations involving the subject matter with all Members, the administration, and the Mayor and absenting oneself from any room or place at which the subject matter is discussed.

6.2 Right to Floor.

When any Member addresses the Council, he or she shall respectfully address the Presiding Officer and, when recognized by the Presiding Officer, shall confine discussion to the question under debate, avoid personal attacks, and refrain from impugning the motives of any other Member's statements, arguments or votes.

When two or more Members ask for recognition at the same time, the Presiding Officer shall name the Member who is first to speak. The exercise of such discretion by the Presiding Officer is not subject to appeal. However, each Member shall be given the opportunity to speak.

6.3 Limitation of Debate.

For meetings of Council, no Member shall be allowed to speak more than once on any one subject until every other Member choosing to speak thereon shall have spoken. Member comments are limited to five minutes at one time. The one primary maker of the motion shall have the right to make a final two-minute summation before the vote. There shall be no remarks on a subject once the matter has been acted upon. The Presiding Officer shall indicate when the speaker is approaching the end of his or her allotted time and when his or her time has ended. The Presiding Officer has the authority to limit debate after all Members have had reasonable opportunity for a full debate of the matter provided that a majority of council may on motion overrule the decision of the Presiding Officer to limit debate.

6.4 Roll Call Vote.

When a roll call vote is required, the Clerk of Council shall call the roll and each Member as his or her name is called shall answer in the affirmative or negative unless excused or excepted from voting. At the Presiding Officer's discretion, the vote may be announced.

Members shall not explain their votes during the call of the roll.

6.5 Tie Vote.

On a tie vote, the matter fails.

6.6 Change of Vote.

A Member may change his or her vote on an item until the outcome of the vote is announced by the Presiding Officer. Once the outcome of the vote is announced, a Member may change his or her vote up to the time the next item of business is commenced, without permission and regardless of whether it changes the outcome of the vote. A Member may request permission to change his or her vote prior to the adjournment of the meeting, as long as it does not change the outcome of the vote. Permission may be given by general consent if no Member objects when the Presiding Officer inquires. If a Member objects, permission shall be granted by a majority vote.

If a Member wishes to explain a vote, a Member may file a statement of intention with the Clerk of Council's office up to two days after a vote is taken, declaring the Member's intention. A copy will be distributed by the Clerk of Council to the Mayor and the other Members and placed on the next council calendar.

6.7 Personal Privilege and Character Attacks.

No Member shall assail, question or impugn the integrity, character or motives of another Member. If the Presiding Officer determines that a Member has violated this rule, the Presiding Officer may withdraw permission to the floor of Council.

If a Member's integrity, character, or motives are assailed, questioned, or impugned by another Member, the Member can request permission from the Presiding Officer to address the Council on a question of personal privilege. A Member shall be granted permission to address Council for up to two minutes, but the Presiding Officer may call that Member out of order if the Presiding Officer determines no grounds exist for the question of personal privilege.

6.8 Censure.

If a Member assails, questions, or impugns the integrity, character, or motives of another Member, a Member may make a motion to censure the Member for the character attack. The motion shall pass if three-fourths of the Members present vote in favor of the motion. If the motion to censure passes, the motion shall be published in the City Bulletin.

6.9 Dissents and Protests.

Any Member shall have the right to express dissent from or protest against any ordinance, motion, or resolution of Council and have the reason therefore entered upon the journal of Council. To be entered upon the journal, such dissent or protest must be filed in writing and presented to Council not later than the end of the next regular meeting following the date of passage of the ordinance, motion, or resolution.

6.10 Attendance at Meetings.

Each Member shall be present within the Council chambers during the entirety of each meeting of Council, including the citizens' forum, unless excused by the Presiding Officer or necessarily prevented from attending.

6.11 Excusal During Meeting.

Any Member desiring to be excused while Council is in session shall obtain such permission from the Presiding Officer.

CONDUCT OF BUSINESS

7.1	Order of Business.
7.2	Call to Order.
7.3	Roll Call.
7.4	Quorum.
7.5	Filing of the Journal.
7.6	New Business.
7.7	Announcements.
7.8	Council Calendar.
7.9	Council Referrals.
7.10	Referrals of State and Federal Joint Proposals.
7.11	Referrals to City Manager.
7.12	Assignment of Agenda Items.
7.13	Deliberative Policymaking.
7.14	Sunset of Prior Legislative Matters.

7.1 Order of Business.

Council shall transact business in the following order at all regular meetings. The order may be altered at special meetings and at any other meeting by consent of a majority of Council.

Council Procedure:

Roll Call

Prayer and Pledge of Allegiance

Filing of Journal

Special Orders (guests, proclamations, resolutions, etc.)

Regular Agenda (action items)

Supplemental Agenda

New Business

Announcements

Adjournment

After the presentations by Members, the business of all regular meetings shall commence at the point where the order of business at the preceding meeting was interrupted by adjournment. At special meetings of Council, the order of business shall be restricted to Roll Call, Prayer and Pledge of Allegiance, discussion and action on the item or items specified in the Notice of Special Meeting.

7.2 Call to Order.

At the time appointed for the Council to meet, the Presiding Officer shall take the chair and immediately call the meeting to order.

7.3 Roll Call.

Before proceeding with the business of the Council, the Clerk of Council shall call the roll, determine the presence of a quorum and enter in the minutes the Members present, absent

and excused. To be recorded as present, a Member of council shall be in the Council chamber at the time of roll call. The Clerk of Council shall publish in the City Bulletin the names of Members present and absent at each meeting.

7.4 Quorum.

A majority of the Members, or appointed to a Committee, as the case may be, shall constitute a quorum and shall be necessary for the transaction of business. If a quorum is not present, those in attendance may adjourn by a majority vote until a later time or date or may recess and direct the Clerk of Council to procure the attendance of absent Members. When a quorum is present, a majority vote of those Members shall be sufficient to transact all business except the enactment of ordinances and as a larger number is required by law or the Rules of Council.

7.5 Filing of the Journal.

At each meeting the journal of the preceding meeting shall be filed as prepared by the Clerk of Council if there is no objection.

7.6 New Business.

No legislative issues may be introduced that are not on the Council calendar. All motions, communications, resolutions, and ordinances must be presented to the Mayor and prior to or at the council meeting to be referred to a Committee for consideration.

Items not appearing on the calendar may be presented by the Mayor at his or her sole discretion in cases of genuine emergency.

A Member may request that an item not appearing on the calendar be immediately considered at the Council meeting. The item must be submitted to the Mayor's office by 1:30 p.m. the day before the meeting to be considered by the Council. The Mayor shall have the authority to place the item on the council agenda for immediate consideration or assign it for normal consideration through the committee process. An affirmative vote of two-thirds of the council shall be required for immediate consideration of an item at the council meeting.

Ceremonial resolutions that celebrate public achievements are restricted to matters of citywide significance as determined by the Mayor. Requests for such must be submitted to the Mayor's office by 11:00 a.m. the day prior to the Council meeting.

7.7 Announcements.

The Mayor and, following the Mayor, each Member upon being recognized by the Mayor, may speak for up to three minutes with regard to any announcements or informational matters.

Time will be on the agenda only for announcements and informational matters.

7.8 Council Calendar.

The Clerk of Council shall prepare a calendar for each meeting. The Clerk of Council shall make copies of the calendar for a regular meeting available in the Clerk of Council's office and

on the City's Website by 4:00 p.m. of the day preceding the meeting. The supplement shall be made available by 11:00 a.m. of the day of the meeting except in the event a committee meeting is held the evening prior or the day of the council meeting.

The supplemental calendar shall contain action agenda items received by the Clerk of Council after the calendar deadline.

Items shall appear on the calendar in substantially the following order:

(a) Reports and communications from the Mayor, Members, the city manager, the city boards and commissions, and department directors.

(b) Second reading of ordinances held from previous meeting.

(c) Third reading of ordinances held from previous meeting.

(d) Other matters received by the Clerk of Council.

(e) Reports of Committees.

Anonymous communications shall not be placed on the agenda or introduced into Council.

7.9 Council Referrals.

Items on the calendar, which have not been previously referred to Committee, shall be referred to the appropriate Committee by the Mayor within two weeks of appearing on the Council calendar. Items shall be referred to the planning commission where required by the Charter or law. Planning commission items shall be initially referred to the commission and to the appropriate Committee. When returned to Council by the planning commission, the items shall be placed on the Committee agenda with the initial referral. Anon-legislative item may be considered immediately without referral to Committee, and then acted upon only upon an affirmative vote of two-thirds of the Members.

7.10 Referrals of State and Federal Joint Proposals.

All proposals for projects which contemplate cooperation with, or financial participation by, the state or federal government, shall be transmitted to Council by the city manager. If a city board or commission desires to propose such a project, the proposal shall be filed with the city manager.

All proposals shall be in approved form and accompanied by proper plans and specifications conforming to the requirements of the respective state or federal government.

The Mayor shall refer all proposals to the appropriate Committee. The Committee shall report its recommendations to Council. If Council approves the proposal, it shall authorize the city manager to make application to the proper authority.

7.11 Referrals to City Manager.

Communications from Members must be directed to the city manager's office for follow-up. Requests for information from Members, other than for the resolution of routine constituent matters, shall go to the city manager instead of directly to the department heads. Basic information that does not involve or require a memorandum or a report may be requested

directly by a Member to the city manager or his or her office. Notwithstanding the above, Committee chairs may have direct contact with department directors or their supervisory staff regarding matters related to the Committee's jurisdiction.

7.12 Assignment of Agenda Items.

The Mayor shall assign all legislative matters to the appropriate Committee for consideration; however, a matter may not be assigned to the Budget and Finance and more than one other committee or a majority of the members may bring the matter back to council with a recommendation for referral by the mayor to a different committee, consistent with Council's approved Committee jurisdictions.

7.13 Deliberative Policymaking.

Council motions calling for administration action, the expenditure of funds or a change in policy direction must be before the public for at least one full week, allowing an opportunity for public comment at no less than one Committee meeting following the Council meeting where the item is publicly introduced except when deemed an emergency by the Mayor, subject to the Rules of Council. This means an item must be presented 1) as a new business item at a Council meeting and then presented in a Committee meeting before advancing to a vote of Council; or 2) presented at a Committee meeting and then held in that Committee for one meeting before advancing to the regular Council meeting.

7.14 Sunset of Prior Legislative Matters.

All remaining legislative matters, including but not limited to resolutions, ordinances and motions, reports and communications pending in Council or Committees at the conclusion of the Term shall lapse. Each new Council shall start with new Council business.

All Council files pending before the City Council, which have failed in Committee, are deemed "received and filed" or "failed." The Clerk of Council is responsible for the administration of this process.

The Clerk of Council administratively closes all received and filed Council files. A letter placed in the file or notice made that the file, and its subject matter, are no longer active. The Council file is deemed closed.

MOTIONS

8.1 Motions; General.
8.2 Motions; New Subject.
8.3 Procedural Motion During Debate.
8.4 Motion to Reconsider.
8.5 Motion to Take Recess.
8.6 Motion to Adjourn.

8.1 Motions; General.

All motions shall require a majority vote of Council for adoption except as otherwise provided in the Charter or the Rules of Council. When a motion is made it shall be stated by the Presiding Officer before debate. The Member introducing the motion may withdraw or amend a motion at any time before passage. All motions are debatable unless specifically stated otherwise.

The Clerk of Council shall prepare and distribute to Members a weekly report of new and existing legislative activities, to include the name of the sponsor, the title, the Committee referral, action taken by Committee, and current status.

A motion, report from the administration, resolution, or ordinance, in its final form, and referred for consideration, shall be introduced and filed with the Clerk of Council's office, which communicates it to the Mayor for referral to Committee.

The Committee shall diligently act on the referred item and shall bring such item to a vote of the Committee within a reasonable time frame.

If approved by a Committee, the item is sent to the Mayor's office to be placed on the Council calendar no later than the second regular meeting of Council after approval by Committee.

8.2 Motions; New Subject.

All motions which bring a new subject before Council shall be in writing and shall be referred by the Mayor to a Committee for report prior to adoption. Such motions may be presented either in the form of a motion or a resolution.

8.3 Procedural Motion During Debate.

When an item is before Council, only the following procedural motions shall be entertained with precedence in the order listed.

(a) *Motion to Refer.* Approval by a majority of Council of a motion to refer sends the pending question to the Mayor to refer to a specific standing committee or to a special committee, the city manager, a board or commission or a department director for investigation, report, and action. The report in response to such referral shall be made to Council or as Council otherwise directs.

(b) *Motion for Vote on Current Item.* Approval by a majority of Council of a motion for vote on the current item shall close debate and Council shall immediately proceed to a vote on the current question. The motion may be made only after each Member has had an opportunity to speak on the matter. The motion is not debatable.

(c) *Motion to Amend.* A motion may only be amended once. An amendment once rejected may not be moved again substantially in the same form.

(d) *Motion to Postpone Indefinitely.* A motion to postpone indefinitely shall be approved only with the affirmative vote of three-fourths of the Members. If a motion to postpone an item carries, the item is considered to have failed without a vote on the merits.

8.4 Motion to Reconsider.

A motion to reconsider a proposal that has been acted upon favorably must be made before adjournment of the meeting of Council or Committee at which the vote was taken. A motion to reconsider any other action taken by Council or Committee may be made at any time at any meeting held within 10 business days after the vote of Council thereon. A motion to reconsider may be made only by a Member who voted with the prevailing side. A majority of Council shall be sufficient for reconsideration of a vote. If a motion to reconsider fails, a further motion for reconsideration shall not be entertained.

8.5 Motion to Take Recess.

Council may move to take a recess to a specified time. The motion is debatable and amendable. At the appointed time the meeting shall be called to order and business will proceed the same as if no recess had been taken.

8.6 Motion to Adjourn.

A motion to adjourn shall be in order at any time, except as follows:

(a) When repeated without intervening business or discussion.

(b) When made as an interruption of a Member while speaking.

(c) When a Motion for vote on the current item has been made.

(d) While a vote is being taken.

A motion to adjourn is debatable only as to the time to which the meeting is adjourned.

ORDINANCES AND RESOLUTIONS

9.1 Ordinances Drafted.
9.2 Reading of Ordinances.
9.3 Suspension of Three Readings.
9.4 Amendments.
9.5 Improper Amendments.
9.6 Adoption of Ordinances.
9.7 Emergency Ordinances.
9.8 Publication of Ordinances.
9.9 Legislative Resolutions.
9.10 Resolutions.
9.11 Adoption of Resolution.

9.1 Ordinances Drafted.

Ordinances shall be drawn by the city solicitor at the request of the Mayor or any other Member, a Committee, the city manager, a board or commission, or a department director.

All legislative matters shall be drafted as ordinances except when required by state law to be in the form of a resolution, in which case all formalities of an ordinance shall be followed in the passage of the resolution. No ordinance shall contain more than one subject which shall be clearly expressed in its title, and no ordinance shall be revived or amended unless the new ordinance contains the entire ordinance revived, or the section or sections amended and the section or sections so amended shall be repealed.

9.2 Reading of Ordinances.

Ordinances must be fully and distinctly read by title on three different days unless three-fourths of the Members dispense with the rule. If the rule has not been suspended, the first reading of the ordinance shall be for information. After the second reading, the ordinance shall be considered to be in final form and not subject to further amendment, except that the form of the ordinance may be reconsidered by a majority vote of Council. The third reading shall be for adoption of the ordinance by a roll call vote.

9.3 Suspension of Three Readings.

Upon motion affirmatively passed by three-fourths of the Members, the rule that an ordinance must be fully and distinctly read on three different days may be suspended at any time after the first reading of the ordinance.

The title of the ordinance shall be read once for information, the motion for suspension of the rule shall be made and, if the motion is acted upon favorably, the ordinance shall be immediately subject to amendment and passage. If the motion does not carry, the ordinance shall be held for a second reading. A motion to suspend the rule may be made after the second reading and, if acted upon favorably, the ordinance shall be immediately subject to passage.

9.4 Amendments.

Any member of Council may propose amendments to ordinances before Council after the first reading. The proposed amendment shall be considered by Council at that meeting. Prior to any vote on a motion to amend, a substantive discussion on the merits of the proposed

amendment has concluded, a vote of Council will be taken on the amendment first before a vote is taken on the matter as a whole. If the amendment passes, Council will then vote on the matter, as amended, before Council.

Amendments to ordinances made on the floor of Council after the first reading shall be indicated by the Clerk of Council on the original ordinance.

When an ordinance is referred to a Committee, it may be reported back with a recommended substitute for the legislation. The Presiding Officer of the appropriate Committee shall state the substitute recommended by the committee.

The Clerk of Council shall note on the document that it is substitute legislation. The original legislation may be placed on the calendar for indefinite postponement.

9.5 Improper Amendments.

An amendment is out of order which is not germane to the question to be amended or is identical to a question previously decided during that Council meeting. No independent new question may be introduced under cover of an amendment. An amendment may not conflict with the spirit of the original legislation and still be in order.

9.6 Adoption of Ordinances.

An ordinance in its final form, after approval by a Committee, shall be immediately transmitted to the Mayor's office to be placed on the Council calendar for a vote no later than the second regular meeting of Council after approval by Committee.

All ordinances shall require for passage the concurrence of no fewer than a majority of the Members.

A vote of six Members is necessary (a) to appropriate property when notice to the owner is only by publication because the owner cannot be found (O.R.C. 719.06), (b) to pass an emergency measure (Art. II, Sec. 3, Charter), (c) to submit to the electorate a proposal to amend the Charter (Art. XVIII, Sec. 9, Constitution of Ohio), or (d) to overrule the failure of the planning commission to approve an amendment of the zoning ordinance or of the zone map or location of a public improvement or other matter on which the Charter requires planning commission advice. An ordinance creating, combining, abolishing or decreasing the powers of any department, division or board, shall require a vote of three-fourths of the Members (Art. II, Sec. 7, Charter).

9.7 Emergency Ordinances.

In order to take immediate effect, an emergency ordinance must receive an affirmative vote of a majority of the Members on the ordinance and an affirmative vote of two-thirds of the Members on the emergency clause. Each vote shall be taken separately by yea and nay vote.

In the event the ordinance receives an affirmative vote of a majority of the Members, but does not receive an affirmative vote of two-thirds of the Members on the emergency clause, the emergency clause shall be stricken and the ordinance shall go into effect as otherwise provided by law.

The journal of the Clerk of Council shall show the yeas and nays of the roll call vote separately on the ordinance and the emergency clause.

9.8 Publication of Ordinances.

Every ordinance shall be published once within fifteen days after its passage in the City Bulletin or another newspaper of general circulation in the city of Cincinnati. In the publication of every ordinance relating to improvements, the advertisement shall contain simply a statement of the title, number and the date of the ordinance and resolution, a concise description of the private property affected, a summary of the nature of the improvements, the rate of any assessment levied or to be levied, and a reference to a copy of the ordinance, which shall be on file in the office of the Clerk of Council. In the publication of all other ordinances the publication shall contain a statement of the title, number and date of the ordinance, the complete text or a brief statement of the nature of the ordinance and a reference to a copy of the ordinance, which shall be on file in the office of the Clerk of Council.

9.9 Legislative Resolutions.

Legislative matters that are required by the constitution or state law to be in resolution form shall be adopted and published in the same manner as ordinances.

9.10 Resolutions.

Resolutions shall be drawn by the city solicitor at the request of the Mayor, any Member, a Committee, the city manager, a board or commission, or a department director.

9.11 Adoption of Resolution.

All resolutions except legislative resolutions shall be adopted by an affirmative vote of a majority of Council. A Member may abstain from voting on non-legislative resolutions upon request of the Member.

COMMITTEES

10.1	Appointment of Committees.
10.2	Standing Committees.
10.3	Special Committee.
10.4	Committee Meetings.
10.5	Secretary to Committees.
10.6	Committee Quorum/Prompt Start of Committee Meetings.
10.7	Reference to Committees.
10.8	Committee Reports.
10.9	Timely Reports.
10.10	Relieving Committee from Further Consideration.
10.11	Public Hearings and Special Meetings.
10.12	Limitation of Debate.
10.13	Committee Agendas.

10.1 Appointment of Committees.

The standing Committees and vice-chairs shall be appointed by a vote of a majority of the Members. The chairs of the standing Committees shall be appointed by the Mayor. There shall be at least three members on each Committee. Every Member shall serve on at least three Committees that meet regularly. Members shall be given the right to serve on Committees of their choosing. So long as a Member serves on at least three Committees that meet regularly, such Member shall not be required to serve on a Committee that the Member has not requested to be a Member of. In cases in which a Committee has fewer than three Members, the Presiding Officer of the Committee shall request other Members to join the Committee. If membership on the Committee remains below three, the Rules and Audit Committee may disband and apportion the responsibilities of the disbanded Committee to the other Standing Committees, subject to the approval of Council.

10.2 Standing Committees.

(a) The Standing Committees of Council, commencing December 1, 2013 shall be:

(1) Budget and Finance Committee;

(2) Economic Growth and Finance;

(3) Education, Innovation and Growth Committee;

(4) Equity, Inclusion, Youth and Arts Committee;

(5) Law and Public Safety Committee;

(6) Major Projects and Smart Government Committee;

(7) Neighborhoods Committee

(b) Appointment of a Member to the Standing Committees shall be for the Term.

10.3 Special Committee.

A special committee of Council may be appointed by the Mayor, or a subcommittee of a Committee may be appointed by a Committee chair, for any special purpose and shall cease to exist upon final report to Council or the Committee on the duty assigned. It may be

discharged by a vote of a majority of Council or the Committee appointing it. A Special Committee of Council, commencing December 1, 2013, appointed by the Mayor, shall be the Streetcar Committee.

10.4 Committee Meetings.

Each Committee shall meet regularly at the time and day specified by the chair of the Committee. Meetings may be canceled by the chair unless a majority of the Committee objects to the cancellation. A schedule of planned Committee meetings will be presented by Committee chairs in January (for February through September) and September (for October through January) - allowing citizens, administration officials and Members to plan and prepare for the meetings in advance. Standing Committees will generally meet every two weeks, or less frequently at the discretion of the Committee chair. The Committee meeting schedule shall be staggered so that there are Committee meetings each week.

A Standing Committee shall not interfere with the schedule of another Standing Committee in the same room. If a Standing Committee runs until the beginning of another Standing Committee, the earlier Committee shall adjourn to another Committee room or adjourn to another time. The chair of the later Committee may waive this rule at his or her sole discretion.

Members shall attend the scheduled standing Committee meeting over the standing Committee meeting that is running over its scheduled time. Failure to attend the scheduled standing Committee at its allotted time shall be recorded as an unexcused absence by the Clerk of Council.

If a Committee member fails to attend a Committee meeting without properly informing the Committee Presiding Officer, the absence will be treated as an unexcused absence and recorded as such by the Clerk of Council. The Clerk of Council shall publish the unexcused absence in the City Bulletin.

Committee chairs shall have the authority to schedule meetings and set the agenda for Committee hearings. Once items have been referred to Committee, the chair shall set the agenda for each meeting. Referred items are not to be placed on Committee agenda without the consent of the chair. However, items referred to Committee shall be placed on the Committee agenda within two regularly scheduled meetings of the Committee. Members may not speak on an item unless it is on the Committee agenda, or upon recognition by the Presiding Officer. The Presiding Officer, in his or her sole and absolute discretion, has the authority to direct security personnel to enforce Council rules for purposes of civility and decorum.

Members may not always agree with the view of some or all of the other Members. All views shall be heard respectfully without reproach, admonition, or interruption. In any debate of public issues, differences of opinion are to be expected and civil airing of those differences is encouraged as it helps to test ideas and develop consensus. Debate, however, should never become a personal attack which criticizes the character of the speaker rather than the wisdom of his or her ideas. Once the Presiding Officer gives a Member the floor, that Member

shall speak without interruption by the Presiding Officer or other Members, unless provided by Section 6.8 of the Rules of Council. Any Member with the floor must yield the floor after five minutes.

If a Committee member requests recognition for the purpose of asking a question, upon recognition of the Presiding Officer, the Member shall ask the question through the Presiding Officer, unless the Presiding Officer allows the Member to ask the question directly.

Any Member of a Committee may propose any amendments or modifications to any matter before the Committee. The proposed amendment or modification shall be considered by the Committee at that meeting. Prior to any vote on a motion to amend, a substantive discussion on the merits of the proposed amendment shall be held. After substantive discussion the merits of the proposed amendment has concluded, a vote of the Committee will be taken on the amendment before a vote is taken on the matter as a whole. If the amendment passes, the Committee will then vote on the matter, as amended, pending before the Committee.

Items not appearing on the agenda may be presented through the Committee chair at his or her sole discretion.

A Committee may consider any matter concerning the city which falls within the area of responsibility assigned to that Committee. A Committee may initiate legislation within its area of responsibility for submission to Council and such legislation, when accompanied by a Committee report, may be acted upon immediately and need not be referred to another Committee.

10.5 Secretary to Committees.

The Clerk of Council or the Clerk of Council's designee shall act as secretary and Parliamentarian, with the assistance of the City Solicitor's office, to each Committee, and keep a record of attendance and business transacted at Committee meetings.

10.6 Committee Quorum/Prompt Start of Committee Meetings.

A majority of the Members appointed to any Committee shall constitute a quorum.

If a quorum is not present at a special or regularly scheduled meeting, the chair or other Presiding Officer may permit persons present to speak on agenda issues; however, no referrals or reports to Council may be made or action taken on any matter in the absence of a quorum, but shall be held in Committee until the next meeting. The chair of the Committee shall report to Council that there was no quorum at its regularly scheduled meeting or that a scheduled meeting was not held. Should action be required on any matter referred to the Committee before the Committee's next scheduled meeting, Council may relieve the Committee from further consideration of the matter.

If a Committee chair is not present five minutes after the scheduled starting time of a Committee meeting, the Committee vice-chair shall call the meeting to order. If neither the chair nor the vice-chair is present, a Committee member shall call the meeting to order.

10.7 Reference to Committees.

Each Committee shall investigate and report on all items on the calendar referred to it and may refer such items to the city manager, city board or commission, or a department director for report to the Committee.

10.8 Committee Reports.

A report in its final form, if approved by the Committee which caused the report to be created, action on the report in the form of a resolution or ordinance shall be sent to the Mayor's office to be placed on the council calendar in a timely fashion.

Any item that was reviewed and considered in Committee on which there was a tie vote; no action could be taken; or other failure to pass out of Committee may be referred by any Member of the Committee to the Mayor for consideration by the Mayor as to whether the item should be placed on the agenda of Council. In addition any legislation properly referred will get a vote in the full Council by a request of any, Member of Council or the Mayor.

The Clerk of Council shall transmit to Council in writing the reports of Committees containing the recommended disposition of matters referred to them. Written indication on the calendars as to a Committee recommendation shall satisfy the requirement that reports of Committees be transmitted in writing to Council.

10.9 Timely Reports.

Administration reports required for review or approval at a Committee or Council meeting shall be distributed at least one day prior to the meeting to allow meaningful Council review and deliberation.

10.10 Relieving Committee from Further Consideration.

Council may by an affirmative vote of two-thirds of the Members, relieve a Committee of further consideration of a matter referred to it and either order the matter placed on the calendar for consideration or send the matter to the Mayor to be referred to a new Committee.

10.11 Public Hearings and Special Meetings.

The Committee chair or any two Members of a Committee may schedule a public hearing or a special meeting of the Committee, with the required public notice.

Any Committee may hold a public hearing or special meeting on any matter pending before the Committee or on any matter of importance to the city within the area of responsibility of the Committee.

In the event such a public hearing or special meeting is called, Notice of a Special Meeting shall be published as provided in these Rules of Council.

In all cases, due care should be taken to avoid scheduling conflicts of Members of the Committee or other previously scheduled hearings or meetings of Council and/or its standing Committees.

10.12 Limitation of Debate.

For Committee meetings, no Member shall be allowed to speak more than once on any one subject until every other Member choosing to speak thereon shall have spoken. No Member may speak on any subject more than five minutes at one time. The one primary maker of the motion shall have the right to make a final two-minute summation before the vote. There shall be no remarks on a subject once the matter has been acted upon. The Presiding Officer shall indicate when the speaker is approaching the end of his or her allotted time and when his or her time has ended. The Presiding Officer has the authority to limit debate in his or her reasonable discretion after each Committee Member has been given the opportunity to speak.

10.13 Committee Agendas.

The Clerk of Council shall prepare an agenda for each committee meeting. The Clerk of Council shall make copies of the agenda for a regular standing committee meeting available in the Clerk of Council's office and on the City's Website by 3:00 p.m. on the Friday preceding such meeting.

LEGAL OPINIONS FOR COUNCIL MEMBERS

11.1 Legal Opinions for Council Members.

11.1 Legal Opinions for Council Members.

Members may, individually or jointly, request legal opinions and legal work from the City Solicitor. When appropriate, the Member(s) may specify that such opinions be delivered confidentially under the attorney-client privilege, and be delivered only to the Member(s) who requested the legal opinions.

If the "Rule 11" legal work the Member requests involves an item to which the administration has already established a position or generated a legal analysis, the Member(s) may request an independent opinion conducted by a city attorney not involved in the prior decision making or analysis.

When the Member has requested a confidential/privileged and independent opinion or analysis, only the Member can disclose the legal opinion to others within or outside the administration. Consistent with Ohio rules of legal ethics, the city attorney must conduct his or her analysis independently and provide a neutral and confidential opinion or analysis to the requesting Member(s).

Members who jointly request a confidential legal opinion or analysis must respect their joint attorney-client privilege for legal opinions given to them in confidence by the City Solicitor's Office or other attorneys of the city.

RULES OF THE PUBLIC RECREATION COMMISSION OF THE CITY OF CINCINNATI*

Rule 1. Public Meetings.
Rule 2. Permits.
Rule 3. Unauthorized or Improper Use of Property.
Rule 4. Priority Use.
Rule 5. Fees.
Rule 6. Sales.
Rule 7. Fires.
Rule 8. Animals.
Rule 9. Refuse and Damages to Property.
Rule 10. Firearms, etc.
Rule 11. Resisting Officer.
Rule 12. Interference.
Rule 13. Disorderly Conduct.
Rule 14. Refusal to Leave.
Rule 15. Gambling.
Rule 16. Intoxicants.
Rule 17. Golf Courses.
Rule 18. Golf Playing.
Rule 19. Bicycle.
Rule 20. Aircraft.
Rule 21. Powered Vehicles, Vehicular Traffic.
Rule 22. Barriers, etc.
Rule 23. Locks.
Rule 24. Charges for Services.
Rule 25. Prohibited Activities.
Rule 26. Plants.
Rule 27. Wildlife.
Rule 28. Speeches, Signs.
Resolution Adopting Rules and Regulations for the Proper Use and Protection of Recreation Property.

Rule 1. Public Meetings.

The use of properties and facilities under the jurisdiction of the commission customarily used for community services and assembly shall be equally available to all lawful organizations for civic, educational, and political assembly and discussion at such times as will not impair municipal services furnished therein and for such rental as will not impair municipal services furnished therein and for such rental as will defray reasonable expenses involved in such use; provided that such meetings shall be open to the public without admission charge.

Rule 2. Permits.

All permits issued by the director of recreation for use of commission property, shall be subject to these rules and regulations, and the person or persons to whom such permits are issued shall be bound by these rules and regulations as fully as if the same were set forth in such permits and shall be liable for any loss, damage, or injury caused through use of said permit.

Rule 3. Unauthorized or Improper Use of Property.

(a) No person or persons may make use of commission property at anytime for activities which are specifically prohibited by posted signs or when such use will cause bodily harm to himself or others, or cause damage to the property.

(b) Swimming Pools: No person or persons shall be permitted in the swimming pools except during operating hours when life guards are on duty.

(c) No person may climb onto any building, baseball backstop, football goal post, fence, or any other structure, located on commission property except on play equipment erected for this purpose.

(d) No person may play with or use a hardball on commission property if signs prohibiting such use are posted.

(e) No person or persons may play with or use a softball on commission property if signs prohibiting such use are posted.

*As adopted by the public recreation commission under the authority of Section 202-5 of The Cincinnati Municipal Code And In Effect September 6, 1979.

(f) No person or persons may make use of commission property after 11:00 p.m. unless such property is lighted and normally scheduled for use at such times or by special permission of the director of recreation.

Rule 4. Priority Use.

All persons who have written permission for the use of commission property shall have prior right for such use except that persons participating in activities sponsored by the commission shall have higher priority upon notification.

Rule 5. Fees.

No person shall participate in any activity sponsored by the commission for which a fee is charged, unless said person has first paid said fee, nor shall any person refuse to pay a fee for a service rendered by an employee of the commission if said fee for such service has been set by the commission.

Rule 6. Sales

No person shall on or within commission property or on any sidewalk bounding such property demonstrate, sell or offer for sale goods, wares, or merchandise except persons properly authorized to do so.

Rule 7. Fires.

No person other than an employee of the commission, except with the written permission of the director of recreation, shall light, make or use any fire within commission property, except in fireplaces constructed or grills installed for this purpose.

Rule 8. Animals.

(a) *Dogs:* No person shall take a dog on any outdoor area of the commission unless it is on a leash or is under his control. Further, no person shall take a dog in any building on commission property except for the purpose of involving said dog in an event sponsored by the commission or if the dog is the seeing eye dog of a blind person. For purpose of this section "control" shall mean that the dog is within sight and hearing and will respond instantly to call or order.

(b) *Horses, Ponies:* Except by written permission of the director of recreation, no person shall lead, ride, or otherwise cause or permit any horse, pony, mule, burro, or any other animal which would in any way cause damage, to enter onto commission property, except that persons may ride or lead any such animal on paths or trails designated by the commission for such purposes.

Rule 9. Refuse and Damages to Property.

(a) No person shall drop or throw refuse or litter of any kind on or within commission property, except in the receptacles designated therefor.

(b) No person shall take, carry away, disturb, molest, destroy, mar, deface, mutilate, mark or damage any commission property.

(c) No person or persons shall use or enter onto any commission property if such use or entry would cause damage to the property or if signs prohibiting such use or entry are posted in conspicuous places.

Rule 10. Firearms, Etc.

No person shall carry or discharge firearms, slings, bows, or any other device by which persons, animals, or birds may be injured or frightened, or throw stones or other missiles within commission property, except under the supervision of an employee of the commission or with the written permission of the director of recreation.

Rule 11. Resisting Officer.

No person shall resist any police officer in the discharge of his duty, or in any way

interfere or hinder or prevent him from discharging his duties, nor offer nor endeavor so to do; nor in any manner assist any person in custody of a police officer to escape.

Rule 12. Interference.

No person or persons shall interfere in any way with employees of the commission while in the performance of their duties and such person or persons when requested must relinquish use of any portion of commission property, if such continued use would interfere with such duties.

Rule 13. Disorderly Conduct.

No person shall willfully conduct himself or herself in a noisy, boisterous, rude, insulting or disorderly manner with the intent to abuse or annoy any person or the citizens of the city or any portion thereof or disturb the peace, good order and quiet of the city by provoking or engaging in a fight or quarrel or permit or suffer such act or acts made unlawful herein to be committed on or about commission property.

Rule 14. Refusal to Leave.

No person shall refuse to leave commission property when ordered by an employee of the commission so to do, if any such person has interfered in any way with any activity conducted.

Rule 15. Gambling.

No person shall gamble or play at any game of chance for stakes on or within commission property.

Rule 16. Intoxicants.

No person may consume or have in his possession any beer or wine or intoxicating liquor on or within commission property, unless with the written permission of the director of recreation, except that persons may make use of any beverage sold on commission property by any properly authorized person.

Rule 17. Golf Courses.

No person shall enter upon or remain upon any golf course operated by the commission unless said person has legitimate business thereon, or unless for the purpose of playing golf, or otherwise participating in activities sponsored by the commission on the area.

Rule 18. Golf Playing.

No person shall drive, putt, or otherwise play with a golf ball on commission property, except on golf courses and driving ranges or within other areas provided by the commission for this purpose.

Rule 19. Bicycle.

No person or persons may ride a bicycle or other such conveyance on commission property in any manner that will endanger the safety of others, create general confusion or interfere with the regular activities on this area or damage the property.

Rule 20. Aircraft.

No person shall fly any aircraft or model thereof, which is powered with any kind of engine, or which is propelled by springs or rubber bands, or any other mechanical force, on commission property which might interrupt activities or endanger participants or spectators.

Rule 21. Powered Vehicles, Vehicular Traffic.

(a) No person or persons except employees of the commission shall operate any powered vehicle on or within commission property except on roadways and parking lots set aside for such purposes, without the written consent of the director of recreation; and no

one shall park any vehicle on commission property except in parking lots and other areas provided for this purpose, and then only in designated lanes.

(b) No person shall park any vehicle on commission property in violation of any sign prohibiting such parking. No person shall park any vehicle or permit any vehicle to remain parked on commission property, except for the purpose of participating actively or as a spectator, in a recreational program or activity sponsored by or approved by the commission.

(c) The operator of a vehicle shall stop in obedience to a stop sign and shall yield the right-of-way to pedestrians and all other vehicles not so obliged to stop.

(d) No person may drive a vehicle over any roadway or parking lot on commission property unless such person has in his possession an operator's license or chauffeur's license, issued to said person and currently in effect, except that a person having a temporary operator's license is prohibited from driving on said roadways or parking lot.

(e) No person shall operate any vehicle on a roadway or a parking lot on commission property at a speed greater than is reasonable and proper under existing conditions, but not to exceed 25 miles per hour, nor operate such vehicle in such a manner as to endanger the life, limb, or property of other persons.

Rule 22. Barriers, Etc.

No person shall move or alter the arrangement of any chain, cable, post, or Barrier of any kind when placed on commission property for the purpose of regulating the use of such property.

Rule 23. Locks.

No person shall open any lock in use on commission property unless authorized so to do.

Rule 24. Charges for Services.

No person may make a charge for a service of any kind rendered on commission property, nor offer to perform a service for a fee on commission property, except persons properly authorized so to do.

Rule 25. Prohibited Activities.

No person may violate the provisions of any sign erected in a conspicuous manner on commission property for the purpose of governing the use and the protection of recreation properties.

Rule 26. Plants.

No person shall cut down, destroy or injure a standing or growing flower, shrub, sapling or tree on commission property.

Rule 27. Wildlife.

No person shall hunt or shoot or otherwise kill or injure any bird or animal or wildlife on any commission property. This shall not apply to the authorized extermination of harmful animals.

Rule 28. Speeches, Signs.

No person shall on or within commission property or on any sidewalk bounding such property make any speech or harangue or display any sign device, information or exhibition in consequence of which there is caused or created such a gathering of persons as to interfere with the usual or specifically authorized recreation or pedestrian use of such property or sidewalks.

RESOLUTION
ADOPTING RULES AND REGULATIONS FOR THE PROPER USE AND PROTECTION
OF RECREATION PROPERTY

WHEREAS, the city charter of the city of Cincinnati in Article VII, Section 14, provides for the establishment of a public recreation commission; and

WHEREAS, Article XIV, Section 3, of the administrative code, establishes the powers of the public recreation commission to equip, operate, supervise, and maintain recreation properties within and without the city limits; and

WHEREAS, Ordinance No. 316, passed by city council of the city of Cincinnati on September 13, 1961, and amended by Ordinance No. 93, passed by city council on March 28, 1962, "Authorizes the public recreation commission to adopt and enforce regulations governing the use and protection of recreation property, and provides a penalty for the violation thereof by ordaining supplementary Section 901-014 of the code of ordinances, certified copies of such rules and regulations to be filed with the clerk of council now, therefore

BE IT RESOLVED by the public recreation commission of the city of Cincinnati that

SECTION I. The term "commission property" as used herein shall signify property owned by the city of Cincinnati and which has been designated or set aside for recreational purposes and any other property under the control of the recreation commission by virtue of a lease, rental basis, or agreement.

SECTION II. For the purpose of this resolution the following words shall be defined and shall have the meanings herein ascribed to them:

(a) *Bicycle.* A two-wheeled vehicle, propelled by human power, having a tandem arrangement of wheels equipped with tires either of which is over 20 inches in diameter.

(b) *Vehicle.* Every device in, upon, or by which any person or property is or may be transported or drawn upon recreation property, except devices other than bicycles moved by human power.

SECTION III. The following rules and regulations be adopted governing the proper use and protection of commission property:

SECTION IV. Enforcement. The enforcement of this regulations, authorized by Ordinance No. 316, like other ordinances of the city of Cincinnati, is within the authority and jurisdiction of the Cincinnati police department.

SECTION V. Penalty. Any person who is convicted of, or pleads guilty to the violation of the foregoing rules and regulations, shall be guilty of a minor misdemeanor, and fined not more than $100.

SECTION VI. Certified copies hereof shall be filed with the clerk of council.

SECTION VII. In the event that any section, or part of a section included within the provisions of this resolution, shall be held by any court to be invalid or unconstitutional, such decision shall not be held to invalidate or impair the validity, force or effect of any other section, or part of a section, of this resolution.

SECTION VIII. This resolution shall take effect and be in force from and after the earliest period allowed by law.

Public Recreation Commission
August 17, 1976

RULES OF THE BOARD OF PARK COMMISSIONERS OF THE CITY OF CINCINNATI*

I. Regulations of the Board of Park Commissioners of the City of Cincinnati

Rule 1. City Parks.
Rule 2. Repealed.
Rule 3. Repealed.
Rule 4. Racing.
Rule 5. Damage.
Rule 6. Refuse.
Rule 7. Ball, Golf and Other Games.
Rule 8. Sales.
Rule 9. Animals.
Rule 10. Weapons.
Rule 11. Use of Alcoholic Beverages.
Rule 12. Sale of Alcoholic Beverages.
Rule 13. Fireworks.
Rule 14. Gambling.
Rule 15. Fires.
Rule 16. Speed.
Rule 17. Vehicles.
Rule 18. Funerals.
Rule 19. Travel.
Rule 20. Vehicle Lights.
Rule 21. Closing Time.
Rule 22. Lakes.
Rule 23. Bicycles, Motorcycles, Skateboards, Rollerblades, and Horses.
Rule 24. Skating, Sledding and Skiing.
Rule 25. Swings.
Rule 26. Clothes Lines.
Rule 27. Disorderly Conduct.
Rule 28. Repealed.
Rule 29. Special Use Permits for Events: Signage and Structures.
Rule 30. Resisting Officer.
Rule 31. Animals and Birds.
Rule 32. Flying Apparatus and Motor Propelled Vehicles.
Rule 33. Noise.
Rule 34. Reservations.
Rule 35. Public Hunting.
Rule 36. Structures.
Rule 37. Lying upon Park Property.
Rule 38. Smoking.
Rule 39. Violation of Park Board Rules.
Rule 40. Glass Bottles or Containers.
Rule 41. Dog Park Rules.
Rule 42. Enclosed Children's Play Areas.
Rule 43. Interactive Fountains and Water Features.

II. Resolution Dated April 6, 1978.

Rule 1. City Parks.

The mission of the park board is to conserve, manage, sustain, and enhance the parks' natural and cultural resources and public greenspace for the enjoyment, enlightenment, and enrichment of all citizens in the Cincinnati community. City parks are open for the lawful use and enjoyment of all citizens.

(PR Rule 1; enacted by Resolution of Feb. 4, 1932; a. Apr. 6, 1978; a. Oct. 20, 2011; a. eff. Dec. 16, 2011)

Rule 2. Repealed.

(PR Rule 2 and Rule 3; enacted by Resolution of Feb. 4, 1932; renumbered to Rule 2, Apr. 6, 1978; r. eff. Dec. 16, 2011)

Rule 3. Repealed.

(PR Rule 4; enacted by Resolution of Feb. 4, 1932; renumbered to Rule 3, Apr. 6, 1978; r. eff. Dec. 16, 2011)

Rule 4. Racing.

No person, except with the written permission of the Park board, shall sponsor, organize or engage in, or in any way be party to, any race of any kind, including but not limited to races between animals, boats, bicycles, motorcycles, or vehicles of any kind or organized foot races on park property.

(PR Rule 5; enacted by Resolution of Feb. 4, 1932; renumbered to Rule 4, Apr. 6. 1978; a. eff. Dec. 16, 2011)

Rule 5. Damage.

No person, except with the written permission of the Park Board, shall take, carry

*As adopted by the board of park commissioners under the authority of Article VII, Section 1 of the Charter of the City of Cincinnati and Section 755.05 of the Ohio Revised Code and in effect September 6, 1979.

away, remove, dig, cut, disturb, molest, destroy, mar, or damage any soil or mineral substance or any form of vegetation whether living or dead, on park property. Nor shall any person, except with written permission of the Park Board, take, carry away, remove, disassemble, destroy, mar, deface, mark or damage or attach anything to any Park Board equipment, building or structure on park property.
(PR Rule 5; enacted by Resolution of Feb. 4, 1932; a. Feb. 5, 1975; renumbered to Rule 5, Apr. 6, 1978; a. eff. Dec. 16, 2011)

Rule 6. Refuse.

No person shall discard or throw paper, lunch boxes, refuse, or litter on any park property, but the same shall be placed in receptacles provided for such purposes. Nor shall any person rummage through or remove items already deposited within the refuse or recycling bins. Nor shall any person bring trash, refuse, litter or similar pollutants onto park property for deposit in the park litter receptacles. Nor shall any person leave containers, boxes, bags, or individual items of clothing or food in any park. Any items left unattended in the park, including clothing or food, shall be considered litter and will be disposed of immediately.
(PR Rule 7; enacted by Resolution of Feb. 4, 1932; renumbered to Rule 6, Apr. 6, 1978; a. eff. Dec. 16, 2011; a. eff. Dec. 15, 2012)

Rule 7. Ball, Golf and Other Games.

No person shall bat a hard ball, drive a golf ball, shoot a bow and arrow, or participate in any formal and pre-scheduled softball, horseshoes, soccer, football or any similar game or activity except at such places as may be set aside by the park Board. The Park Board retains the right to prohibit any casual softball, horseshoes, soccer, football or any similar game or activity when such game or activity presents a clear and present danger or injuring any person or damaging any private or public property.
(PR Rule 8; enacted by Resolution of Feb. 4, 1932; renumbered to Rule 7, Apr. 6, 1978; a. eff. Dec. 16, 2011)

Rule 8. Sales.

No person shall sell or expose or offer anything for sale on park property, except with the written permission of the Park Board, and when permission is granted, subject to such rules and conditions as may be supplied by the Park Board, and except where the vendor has secured all required permits to engage in such sales.
(PR Rule 9; enacted by Resolution of Feb. 4, 1932; renumbered to Rule 8, Apr. 6, 1978; amended by Resolution of Mar. 28, 1990; a. eff. Dec. 16, 2011)

Rule 9. Animals.

Except as provided in Park Board Rule 41, no person shall take or permit a dog on park property unless the dog is held by leash not to exceed twenty (20) feet in length.

No person shall permit animals of any kind, including horses, cattle, goats, swine, and fowl to run at large on park property; nor shall any such animal be tied to any tree or plant or other object on park property except such as may be particularly provided for such purpose by the Park Board; nor shall any person permit a dog to materially damage park property.
(PR Rule 10; enacted by Resolution of Feb. 4, 1932; a. July 17, 1947; renumbered to Rule 9, Apr. 6, 1978; a. eff. Dec. 16, 2011; a. eff. Dec. 15, 2012)

Rule 10. Weapons.

No person shall discharge firearms on park property, except in accordance with Rule 35 herein. No person shall carry or

discharge slings, bows, rockets, missiles, projectiles, explosives, volatile liquids, or other devices by which persons, animals, or birds may be injured or frightened, and no one shall throw stones or other dangerous missiles, devices and objects on park property.
(PR Rule 11; enacted by Resolution of Feb. 4, 1932; renumbered to Rule 10, Apr. 6, 1978; a. Oct. 20, 2011; a. eff. Dec. 16, 2011)

Rule 11. Use of Alcoholic Beverages.

No person shall use, consume or possess with the intention of use or consume alcoholic beverages containing more than one-half of one percent of alcohol by weight in a public place on park property. This section shall not apply to alcoholic beverages used, consumed or possessed on the premises of a rented picnic facility, reserved lodge or other building for which a permit has been issued by the park board, and provided such use, consumption or possession is in accordance with the specified times, places, and other restriction set forth in such permit.
(PR Rule 12-A; enacted by Resolution of Feb. 4, 1932; a. Mar. 6, 1974; renumbered to Rule 11, Apr. 6, 1978; a. eff. Dec. 16, 2011)

Rule 12. Sale of Alcoholic Beverages.

No person shall sell or offer for sale any alcoholic beverage in park property unless he has obtained a proper liquor license and has complied with all requirements of the Ohio Department of Liquor Control and has received written permission from the Park Board.
(PR Rule 12-B; enacted by Resolution of Feb. 4, 1932; a. Mar. 6, 1974; renumbered to Rule 12, Apr. 6, 1978; a. eff. Dec. 16, 2011)

Rule 13. Fireworks.

No person, except with the written permission of the Park Board shall discharge, ignite or explode fireworks or possess fireworks with the intent to discharge, ignite or explode same, on or over park property.
(PR Rule 13; enacted by Resolution of Feb. 4, 1932; a. eff. Dec. 16, 2011)

Rule 14. Gambling.

No person shall gamble or play any game of chance for stakes on or within park property. Nor shall any person conduct any scheme of chance not for profit on park property except with the written permission of the Park Board.
(PR Rule 14; enacted by Resolution of Feb. 4, 1932; a. eff. Dec. 16, 2011)

Rule 15. Fires.

No person, except with the permission of the Park Board, shall light, make or use any fire on park property except at grills and such other places where fires for cooking food are customarily permitted.
(PR Rule 15; enacted by Resolution of Feb. 4, 1932; a. eff. Dec. 16, 2011)

Rule 16. Speed.

No person shall drive any vehicle over park property except on the roadways provided for this purpose and on such roadways only at a reasonable speed in view of all the circumstances and in a careful manner. On roads within parks, speeds in excess of 25 miles per hour, unless otherwise posted, shall be prima facie evidence of reckless driving.
(PR Rule 16; enacted by Resolution of Feb. 4, 1932; a. eff. Dec. 16, 2011)

Rule 17. Vehicles.

Except with the written permission of the Park Board, no person shall give, receive or participate in automobile driver training; nor dust, wash or any way clean any automobile or other vehicle; nor take a truck or other business vehicle of any kind over

park property; nor repair or service any automobile or other vehicle, except emergency repair or service, on park property. This Rule shall be subject to the following exception, to wit: That for the purpose of delivering goods and merchandise to a property owner whose only entrance is on a parkway, and for the purpose of rendering "service and automobile aid" in cases of necessity, a commercial vehicle, equipped with pneumatic tires, may be driven over such parkway or roadway within park property, provided; however, that such vehicle approach and leave park property by the intersecting street nearest to the location at which delivery is made or aid is rendered. This Rule shall also be subject to the provisions of Section 506-66 of the Cincinnati Municipal Code.
(PR Rule 17; enacted by Resolution of Feb. 4, 1932; a. Nov. 3, 1956; a. eff. Dec. 16, 2011)

Rule 18. Funerals.

No one having charge of any hearse or vehicle used for the transportation of dead bodies, shall take or drive the same into or through any park property, except with the written permission of the Park Board.
(PR Rule 19; enacted by Resolution of Feb. 4, 1932; renumbered to Rule 18, Apr. 6, 1978; a. eff. Dec. 16, 2011)

Rule 19. Travel.

No person, by any means whatever, shall impede or obstruct the progress of vehicular or pedestrian travel over park property.
(PR Rule 20; enacted by Resolution of Feb. 4, 1932; renumbered to Rule 19, Apr. 6, 1978; a. eff. Dec. 16, 2011)

Rule 20. Vehicle Lights.

No person shall drive or take any vehicles within park property at night unless head and tail lamps are lighted.
(PR Rule 21; enacted by Resolution of Feb. 4, 1932; a. Mar. 6, 1974; renumbered to Rule 20, Apr. 6, 1978; a. eff. Dec. 16, 2011)

Rule 21. Closing Time.

Except as otherwise provided in this rule, the parks shall be closed to the public between 10:00 p.m. and 6:00 a.m. except for vehicular traffic on through roadways or within public parking garages directly connecting to city streets.

The following parks shall be closed to the public between 11:00 p.m. and 6:00 a.m. except for vehicular traffic on through roadways directly connecting to city streets:

(1) Theodore M. Berry International Friendship Park;

(2) Bicentennial Commons at Sawyer Point;

(3) The Public Landing;

(4) Yeatman's Cove;

(5) Smale Riverfront Park; and

(6) Washington Park.

Upon request of an applicant and provided the applicant complies with all obligations set forth herein, a special use permit may extend the closing time to 1:00 a.m., subject to Rule 29, the noise restrictions in Chapter 909 of the Cincinnati Municipal Code, and any other applicable laws. All persons shall leave the parks at or before closing time.

The park board or its agents may close any section or part of any park property to the public at any time and for any interval of time, either temporarily or at regular and stated intervals, for the purpose of maintenance or for the protection of the public health, safety, and welfare.
(PR Rule 22; enacted by Resolution of Feb. 4, 1932; a. Mar. 6, 1974; renumbered to Rule 21, Apr. 6, 1978; a. Oct. 20, 2011; a. eff. Dec. 16, 2011; a. eff. Dec. 15, 2012)

Rule 22. Lakes.

No one shall bathe, swim, fish, or throw anything into any of the lakes, pools, streams,

or fountains, or in any manner disturb the waterfowl, fish or other aquatic life within park property.

Notwithstanding the above, boating and operation of a toy or model boats shall be permitted at places specifically set aside therefore and under rules and conditions prescribed therefore by the Park Board.

Notwithstanding the above, fishing shall be permitted in designated areas at Burnet Woods Lake by those complying with the rules and conditions prescribed therefore by the Park Board.
(PR Rule 23; enacted by Resolution of Feb. 4, 1932; renumbered to Rule 22, Apr. 6, 1978; a. eff. Aug. 23, 1985; a. eff. Dec. 16, 2011)

Rule 23. Bicycles, Motorcycles, Skateboards, Rollerblades, and Horses.

No person shall use or ride any bicycle, motorcycle, skateboard, rollerblades, or horse on any of the sidewalks or foot-paths within park property, or on walls, steps or railings. No person shall ride a horse within park property except on bridle paths or roads provided for that purpose.
(PR Rule 24; enacted by Resolution of Feb. 4, 1932; renumbered to Rule 23, Apr. 6, 1978; a. eff. Dec. 16, 2011; a. eff. Dec. 15, 2012)

Rule 24. Skating, Sledding and Skiing.

Except by permission of the Park Board, no one shall place or use any boat, skiff, or vessel on the waters of the parks, nor shall anyone walk, skate, sled or coast on the ice until the Park Board or authorized Park Board agent has ascertained the condition of the same and given permission; nor shall anyone sled, coast or ski anywhere on park property except with the permission of the Park Board or authorized Park Board agent.
(PR Rule 25; enacted by Resolution of Feb. 4, 1932; renumbered to Rule 24, Apr. 6, 1978; a. eff. Dec. 16, 2011)

Rule 25. Swings.

No one shall put up or use any swing or hammock in any park except on posts or other placed designated by the Park Board for this purpose.
(PR Rule 26; enacted by Resolution of Feb. 4, 1932; renumbered to Rule 25, Apr. 6, 1978; a. eff. Dec. 16, 2011)

Rule 26. Clothes Lines.

No one shall shake or otherwise cleanse any rugs or other floor coverings, nor fasten to any tree or shrub any clothes line, nor hang up any clothes to dry or bleach on park property.
(PR Rule 27, enacted by Resolution of Feb. 4, 1932; renumbered to Rule 26, Apr. 6, 1978; a. eff. Dec. 16, 2011)

Rule 27. Disorderly Conduct.

(a) No person, on park property, shall recklessly cause inconvenience, annoyance, or alarm to another by doing any of the following:

(1) Engaging in fighting, in threatening harm to persons or property, or in violent or turbulent behavior;

(2) Making unreasonable noise or offensively coarse utterance, gesture, or display, or communicating unwarranted and grossly abusive language to any person;

(3) Insulting, taunting, or challenging another, under circumstances in which such conduct is likely to provoke a violent response;

(4) Hindering or preventing the movement of persons on a public street, highway, or right of way, or to, from, within, or upon public or private property, on as to interfere with the

rights of others, and by any act which serves no lawful and reasonable purpose to the offender;

(5) Creating a condition which is physically offensive to persons or which presents a risk of physical harm to person or property, by any act which serves no lawful and reasonable purpose to the offender.

(b) No person shall, while voluntarily intoxicated shall do either of the following:

(1) On park property and in the presence of two or more persons, engage in conduct likely to be offensive or cause inconvenience, annoyance, or alarm to persons of ordinary sensibilities, which conduct the offender, if were not intoxicated, should know is likely to have such effect on others;

(2) Engage in conduct or create a condition which presents a risk of physical harm to himself or another, or to the property of another.

(c) Violation of any statute or ordinance of which an element is operating a motor vehicle, locomotive, water-craft, aircraft, or other vehicle while under the influence of alcohol or any drug abuse, is not a violation of Paragraph (b) of this section.

(d) When to an ordinary observer a person appears to be intoxicated, it is probable cause to believe such person is voluntarily intoxicated for purposes of Paragraph (b) of this section.
(PR Rule 28; enacted by Resolution of Feb. 4, 1932; renumbered to Rule 27, Apr. 6, 1978; a. eff. Dec. 16, 2011)

Rule 28. Repealed.
(PR Rule 29; enacted by Resolution of Feb. 4, 1932; renumbered to Rule 28, Apr. 6, 1978; a. eff. Dec. 16, 2011; r. eff. Sept. 20, 2012)

Rule 29. Special Use Permits for Events: Signage and Structures.

(a) If a group of 50 or more persons wishes to obtain the exclusive use of an area of park property that has not been designated as an area that may be reserved under Rule 34, that group shall obtain a special use permit.

(b) No signs or structures may be installed, placed, or erected on City park grounds by members of the public except when permitted pursuant to a special use permit issued pursuant to this Rule 29 or a special event permit issued pursuant to Chapter 765 of the Cincinnati Municipal Code.

(c) A person who obtains a special use permit or a special event permit may erect or install a sign or structure on park property, pursuant to the permit. The sign or structure is subject to the following limitations:

(1) The sign or structure may be erected or installed on park property only during the time authorized in the permit for the special event or special use, which time may vary depending on the scope of the event, including but not limited to, expected attendance, length, and physical size of the special use or special event.

(2) The maximum time period that a sign or structure associated with any special event or special use may remain installed and displayed is the following: up to five (5) days prior to the use or event, during the event, and through the end of the authorized time period for "tear down" following the event.

(3) Special event or special use signs or structures are authorized to be displayed only within the same portion of the park premises where the special event or special use has been

permitted to take place, and any signs or structures may pertain only to on-site activity.

(4) The number of signs and structures and their dimensions will be determined by Parks Department staff, subject to approval of the Park Board, based on the size of the special event or special use and the size and location of the park in which the special event or special use will occur.

(5) The Park Board logo may not be used on any signage absent written approval.

(d) Applications for special use permits may be obtained from the park board. All applications must be submitted to the park board.

(e) The park board will issue special use permits on a first come, first served basis provided that the applicant satisfies each of the following objective factors:

(1) The applicant submits a legible, completed application form;

(2) For an event, the requested location, date, and time are available and the size and type of the requested event does not exceed the carrying capacity of the park;

(3) For a structure, the requested location, date, and time are available and the structure does not obstruct entrances, exits, passageways, or the safe movement of pedestrians, complies with the building and inspection guidelines or does not cause any damage to park property.

(4) The applicant agrees to pay the applicable fee set forth in the park board's schedule of fees;

(5) The applicant obtains any applicable permits or licenses required by the Board of Health, the Cincinnati Department of Buildings and Inspections, the Cincinnati Police Department, the Cincinnati Fire Department, the Ohio Department of Commerce Division of Liquor Control, and any other required permits or licenses; and

(6) The applicant agrees to comply with all park board rules and regulations and the terms of the permit.

(f) No person shall interfere with carrying out of the special use authorized by a permit issued pursuant this rule.

(g) The park board or its authorized agent may revoke or suspend any permit upon violation of any provision of these rules and regulations, the Cincinnati Municipal Code, or any other law.

(h) A person or group holding a special event may apply for a Park Board sponsorship in accordance with the Special Events Sponsorship Policy.
(PR Rule 30 and Rule 31; enacted by Resolution of Feb. 4, 1932; renumbered to Rule 29, Apr. 6, 1978; a. Oct. 20, 2011; a. eff. Dec. 16, 2011; a. eff. Dec. 15, 2012; a. eff. Dec. 16, 2017; a. eff. Aug. 16, 2018)

Rule 30. Resisting Officer.

No person shall resist any member of the police force in the discharge of his duty, or in any way interfere or hinder or prevent him or any park employee from discharging his duties, nor attempt so to do; nor in any manner assist any person in custody of any member of the police force to escape.
(PR Rule 32; enacted by Resolution of Feb. 4, 1932; renumbered to Rule 30, Apr. 6, 1978; a. eff. Dec. 16, 2011)

Rule 31. Animals and Birds.

No person shall molest, disturb, injure, trap, hunt, kill or in any way have contact

with or throw anything at or to animals or birds on park property, including the Zoological Gardens; and no person shall feed any animals or birds located on park property, including the Zoological Gardens except where permission to do so is granted by signs or posters.
(PR Rule 33; enacted by Resolution of Feb. 4, 1932; a. July 30, 1936; renumbered to Rule 31, Apr. 6, 1978; a. eff. Dec. 16, 2011)

Rule 32. Flying Apparatus and Motor Propelled Vehicles.

Except as expressly set forth in these regulations, no person shall operate, fly, launch, drive, or use any motor propelled vehicle, or flying apparatus or other vehicle (except motor vehicles driven on roadways designed for that purpose subject to any separate regulation thereof) on or over park property, including but not limited to airplanes, balloons, gliders, hang-gliders, boats, snowmobiles, go-karts, rockets, powered model planes, motorbikes, motorcycles, or automobiles, except with the written permission of the park board and except within such areas as may be designated by the park board and except in compliance with any reasonable safety regulations set by the park board and made a condition of any consent.
(PR Rule 32; enacted by Resolution of Apr. 6, 1978; a. eff. Dec. 16, 2011)

Rule 33. Noise.

No person shall operate or cause to be operated any whistle, rattle, bell, gong, clapper, hammer, drum, horn, radio, phonograph, or other sound-producing or sound-amplifying instrument so as to disturb the peace and quiet of a park or its surrounding neighborhood or to violate Chapter 909 of the Cincinnati Municipal Code.
(PR Rule 32; enacted by Resolution of Apr. 6, 1978; a. eff. Dec. 16, 2011)

Rule 34. Reservations.

The park board has designated various areas and venues that any person or group of persons may reserve for the exclusive use of that person or group of persons. These areas and venues include reservable facilities, group picnic areas, picnic shelters, garden wedding areas, bandstands, and music pavilions.

Any person or group of persons who wishes to make a reservation must contact the park board or its designee to complete the reservation process. The park board will issue reservations on a first come, first served basis provided that the applicant satisfies each of the following objective factors:

(1) The requested location, date, and time are available and the size and type of the requested event does not exceed the carrying capacity of the park;

(2) The applicant pays the applicable fee set forth in the park board's schedule of fees; and

(3) The applicant agrees to comply with all park board rules and regulations and the terms of the permit.

No person shall interfere with the exclusive use of a person or group of persons who hold a valid reservation authorized by this rule.

A reservation is solely for the use of the area or venue. A reservation does not entitle a person or group of persons to the use of electricity, the installation of temporary structures, or the services of park board employees. If a person or group of persons requires any of those services, that person or group of persons must utilize the special use permit process in Rule 29.
(Enacted Oct. 20, 2011; a. eff. Dec. 16, 2011; a. eff. Dec. 15, 2012)

Rule 35. Public Hunting.

The Park Board shall promulgate a form of permitted hunting that will permit the legal use and discharge of weapons allowable under the Cincinnati Municipal Code Sections 708-26 and 708-27 within Cincinnati Parks in compliance with State of Ohio game and hunting laws, in order to control the deer overpopulation that is destroying the urban forest.

The program requires that the following conditions are met:

1. Safety is the top priority of this program. All approved permit holders must have demonstrated that they have:
   (a) Passed the written portion of the Ohio Hunter Education Course;
   (b) Attended a Park Board sponsored orientation and training session;
   (c) Successfully completed a Park Board sponsored shooting skill qualification test; and
   (d) Possesses a current Ohio hunting license and deer permit.
2. All State of Ohio Bow Hunting Regulations must be followed, including:
   (a) All deer harvested must be checked in at a local State of Ohio check station;
   (b) Equipment must conform to the State of Ohio Archery equipment requirements;
   (c) Hunting hours as set forth by the State of Ohio.
3. Hunters are chosen through a lottery system administered by the Cincinnati Park Board. Park Board decision on who is permitted and permitted location is final. Selected hunters will receive written authorization by the Park Board for marked locations only.
4. Whitetail deer are the only animal that will be permitted for hunting. Participants are allowed to take as many deer as allowed by State Law using State of Ohio Urban and Regular Deer permits.
5. All other rules and regulations promulgated by the Park Board.

(Enacted eff. Dec. 16, 2011)

Rule 36. Structures.

No person shall erect or install a structure on park property unless that person obtains a special use permit under Rule 29.
(Enacted eff. Dec. 16, 2011)

Rule 37. Lying upon Park Property.

No person may lie upon any bench or ledge on park property. No person may lie upon the ground in a manner that obstructs entrances, exits, passageways, or the safe movement of pedestrians.
(Enacted eff. Dec. 16, 2011)

Rule 38. Smoking.

No person shall engage in smoking on park property where signs are posted prohibiting such activity. No person shall refuse to immediately discontinue smoking on park property when requested to do so by a police officer or by an employee or designee of the park board. For purposes of this rule, "smoking" has the same definition prescribed in Ohio Revised Code Section 3794.01(A), which defines "smoking" as inhaling, exhaling, burning, or carrying any lighted cigar, cigarette, pipe, or other lighted smoking device for burning tobacco or any other plant.
(Enacted eff. Dec. 15, 2012)

Rule 39. Violation of Park Board Rules.

Any person who is convicted of, or pleads guilty to, the violation of any Park Board Rule shall be guilty of a minor misdemeanor.
(Enacted eff. Dec. 15, 2012)

Rule 40. Glass Bottles or Containers.

No person shall bring glass bottles or containers onto park property where signs are posted prohibiting glass bottles or containers within the designated area.
(Enacted eff. Dec. 15, 2012)

Rule 41. Dog Park Rules.

The Board of Park Commissioners operates dog parks on park property. "Dog park" is defined as any completely enclosed area of a park which has been designated a dog park. Within the dog parks, the following rules apply:

(1) Pursuant to Cincinnati Municipal Code ("C.M.C.") Chapter 701, a person may unleash his or her harmless dog within designated dog parks. All dogs must be leashed while entering and exiting the dog park. No person may bring a dangerous dog or a vicious dog into a dog park. C.M.C. Chapter 701 defines "Harmless Dog," "Dangerous Dog," and "Vicious Dog."

(2) All off-leash dogs must be under complete control of handler and leash must be in hand at all times. If you cannot control your dog, keep your pet leashed at all times for the safety of others.

(3) Handlers must be in the dog park and within view of their dogs at all times.

(4) Aggressive dogs are not permitted and must be removed at first sign of aggression.

(5) Handlers must clean up after their dogs and seal waste in a bag prior to disposing of it in a trash receptacle.

(6) Children under the age of 13 are not permitted in the dog parks unless accompanied by an adult.

(7) Female dogs in heat are prohibited within the dog parks.

(8) Dogs must be current with all shots as recommended by your veterinarian.

(Enacted eff. Dec. 15, 2012)

Rule 42. Enclosed Children's Play Areas.

(1) All adults age 18 or over must be accompanied by a child under the age of 18 in order to be permitted within an enclosed children's play area.

(2) Children must be supervised by an adult at all times.

(3) Dogs are not permitted inside any enclosed children's play area.

(4) Anyone with diarrhea is prohibited from playing in any fountain enclosed within a children's play area.

(5) Anyone with an infectious wound or communicable disease is prohibited from playing in any fountain enclosed within a children's play area.
(Enacted eff. Dec. 15, 2012)

Rule 43. Interactive Fountains and Water Features.

(1) Running and rough play is prohibited within interactive fountains or in or around interactive water features.

(2) Children must be supervised by an adult at all times.

(3) Gum, food, cigarettes, cigars or any tobacco products, are prohibited within interactive fountains or in or around interactive water features.

(4) Dogs are prohibited within interactive fountains or in or around interactive water features.

(5) Anyone with diarrhea is prohibited within interactive fountains or in or around interactive water features.

(6) Anyone with an infectious wound or communicable disease is prohibited from playing within interactive fountains or in or around interactive water features.
(Enacted eff. Dec. 15, 2012)

RESOLUTION
OF THE BOARD OF
PARK COMMISSIONERS OF
THE CITY OF CINCINNATI
April 6, 1978

Adopting rules and regulations for the proper use and protection of the parks of the city of Cincinnati.

WHEREAS, the city charter of the city of Cincinnati, in Article VII, Section 1 provides:

"The board (of park commissioners) shall have the control and management of the parks and parkways of the city and may adopt and enforce regulations as to the proper use and protection of park property, and provide penalties for the violation of such regulations. Such regulations shall not take effect until copies thereof are filed with the city solicitor and with the clerk of council."

and

WHEREAS, the Ohio Revised Code in Section 755.07 provides:

"The board (of park commissioners) may adopt and enforce regulations as to the proper use and protection of all property mentioned in Section 755.05 of the Revised Code and the improvements thereon, and may impose penalties for the violation of such regulations."

and

WHEREAS, the board desires to revise substantially the current rules and regulations, adopted on February 4, 1932 and thereafter amended; now, therefore,

BE IT RESOLVED by the board of park commissioners of the city of Cincinnati:

Section 1. That the following rules be and are hereby adopted as the regulations governing the proper use and protection of park property of the city of Cincinnati:

Section 2. As used herein, "park board" shall mean the board of park commissioners or its authorized agent. Additionally, as used herein, "authorized park board agent" shall mean the director of parks, or the acting director of parks, the chief of the park police or other person so designated or authorized by duly passed park board resolution.

Section 3. None of these rules and regulations shall abrogate the effect of any applicable ordinances or statutes which shall continue to have full force and effect in the parks of the city of Cincinnati.

Section 4. Any person who is convicted of, or pleads guilty to, the violation of the foregoing rules and regulations shall be guilty of a minor misdemeanor, and fined not more than $100.

Section 5. All resolutions heretofore passed establishing rules and regulations for the proper use and protection of park property are hereby repealed.

Section 6. Certified copies hereof shall be filed with the city solicitor and with the clerk of council.

Section 7. In the event that any section, or part of a section included within the provisions of this resolution, shall be held, by any court, to be invalid or unconstitutional, such decision shall not be held to invalidate or impair the validity, force or effect of any other section, or part of a section, or this resolution.

Section 8. This resolution shall take effect and be in force from and after the earliest period allowed by law.

Board of Park Commissioners
April 6, 1978

CITY PLANNING COMMISSION RULES*

Section

1. General Powers.
2. Term; Leadership and Duties; Membership.
3. Applications.
4. Meetings.
5. Meeting Procedures.
6. Planning Staff Conferences.
7. Effective Date; Amendments or Suspension of Rules.

SECTION 1. GENERAL POWERS.

A. Enacting Authority. The City Planning Commission (the "Commission") of the City of Cincinnati, Ohio (the "City") is established pursuant to, and shall exercise all the powers granted by, Art. VII of the City of Cincinnati Charter (the "Charter"), the applicable laws of the State of Ohio, the Cincinnati Municipal Code, and the ordinances of the City.

B. Governance. The Commission is governed by the Charter, the Ohio Revised Code, the applicable laws of the State of Ohio, the Cincinnati Municipal Code, the ordinances of the City, and the rules hereinafter set forth and duly adopted by the Commission.

C. Conflicts of Law. These rules supersede any previously adopted rules in their entirety. Whenever a conflict exists between these rules and the applicable laws of the State of Ohio, the Cincinnati Municipal Code, or ordinances of the City, the applicable laws of the State of Ohio, the Cincinnati Municipal Code, or ordinances of the City shall prevail.

SECTION 2. TERM; LEADERSHIP AND DUTIES; MEMBERSHIP.

A. Term. The term of the Commission is one full calendar year beginning January 1 and ending December 31 ("Commission Term"). The term of each Commission member is in accordance with the Charter.

B. Selection of Commission Leadership. The leadership of the Commission consists of a Chair and a Vice-Chair, which positions are elected by a majority vote of the members of the Commission at the first regularly scheduled meeting of each Commission Term.

C. Duties of the Chair. The duties of the Chair include:

1. To preside at all regularly scheduled and special meetings of the Commission;
2. To decide all points of procedure, unless otherwise directed by a majority vote of the members of the Commission;
3. To sign the meeting minutes of the Commission;
4. To consult with the Secretary, as defined below, concerning meeting agendas; and
5. Those duties otherwise set forth herein.

D. Duties of the Vice-Chair. The Vice-Chair shall assume all the duties of the Chair in the Chair's absence or incapacity.

E. Secretary. The Director of the Department of City Planning and Engagement, or his or her designee, is the secretary of the Commission (the "Secretary"). The Secretary is the point of contact between the Commis-

*Rules and procedures of the city planning commission of the City of Cincinnati as approved by the city planning commission under the authority of Article VII, Section 7 of the Charter of the City of Cincinnati and in effect January 7, 2011 and amended March 3, 2023.

sion and the public and the Commission and planning staff. The Secretary has the specific duties set forth herein.

F. Absence of Commission Leadership. In the absence of the Chair and the Vice-Chair at a meeting, a majority of the members of the Commission present at the meeting must elect a temporary Chair to assume the Chair's role solely for the purposes of that meeting.

G. Membership. Art. VII, § 2 of the Charter governs the composition of Commission membership and Commission member terms.

H. Public Officials. Commission members are public officials and are bound by certain provisions of the Ohio Revised Code, including, but not limited to, the ethics laws contained in Ohio Revised Code Sections 102.03, 102.04, 2921.42 and 2921.43.

I. Committee Appointments. The Chair may appoint standing or special committees of the Commission at their election. Each standing or special committee must consist of at least four members and must have a chair and a vice chair. The Chair appoints the membership and leadership of such committees at their sole discretion. Standing or special committees shall not have any authority to take any action to bind the Commission. All meetings of the standing or special committees of the Commission shall be open to the public except as provided by Ohio law.

J. Review of Department of City Planning and Engagement Work Plans. The Secretary shall present to the Commission the Department of City Planning and Engagement's annual work plan at the first meeting of each term.

K. Adoption of Meeting Calendars. The Commission shall adopt a meeting calendar for the subsequent term before the end of each term.

SECTION 3. APPLICATIONS.

A. Application Forms. Requests for consideration of a petition to, or approval of, the Commission must be made on forms approved by the Commission and furnished by the Secretary in the manner and procedure deemed appropriate by the Secretary and subject to all applicable rules and regulations.

B. Applicant. Any reference herein to the term "applicant" includes an applicant's attorney or an authorized agent.

C. Timeliness and Completeness. All applicants must timely file all applications and supporting documents with the Secretary, detailing all information requested on the form and any additional information requested in writing by the Chair or Secretary. Any deadline for filing applications and supporting documents shall be 4 p.m. Eastern Standard Time on the respective date.

D. Withdrawal. An applicant may request the Secretary to withdraw an application at any time before a motion is pending to determine the outcome of the application. If a motion is pending to determine the outcome of the application, then the motion may only be withdrawn by a motion from the moving Commission member upon a second by another Commission member and an affirmative vote by the Commission members present.

E. Postponements. The Secretary is authorized to grant an applicant's request to postpone consideration of an item so long as the request for postponement is in writing, and the Secretary receives the request to postpone at least one business day in advance of the scheduled meeting. The Secretary shall not consider more than two requests from an applicant to postpone an item.

F. Continuances. Following the expiration of the deadline to make a written request for postponement, an applicant must

request the continuance of the consideration of an item by appearing at the scheduled meeting and making an oral request to the Commission. Upon hearing an oral request for a continuance, the Commission may grant the continuance if it determines the applicant has demonstrated good cause that the consideration of the item should be continued.

SECTION 4. MEETINGS.

A. Open to the Public. All meetings of the Commission shall be open to the public except as provided by applicable law. In accordance with Cincinnati Municipal Code Chapter 121, the Commission may hold and attend meetings and may conduct and attend hearings by means of teleconference, video conference, or any other similar technology. All votes of the Commission shall be taken in open session, recorded by the Secretary, and available for public inspection at the Department of City Planning and Engagement.

B. Notice of Public Meeting. The Secretary shall provide notice of all regularly scheduled and special meetings in accordance with the Cincinnati Municipal Code.

C. Regular Meetings. The Commission shall conduct regularly scheduled meetings on the first and third Friday of each calendar month (unless a Friday is a recognized holiday by the City, in which case the meeting shall take place on the following Friday) at 9:00 a.m. in Cincinnati City Hall, City Council Chambers, 3rd Floor, 801 Plum Street, Cincinnati, Ohio 45202, or other location or by means of teleconference, video conference, or any other similar technology, as determined by the Chair from time to time, in consultation with the Secretary, subject to advance notice in accordance with the Cincinnati Municipal Code. If no official matters are scheduled for a regularly scheduled meeting, then the Commission is not required to conduct a meeting.

D. Special Meetings. The Chair, in consultation with the Secretary, may, at their discretion, convene a special meeting of the Commission. The Secretary shall deliver notice of the time, place, and purpose of all special meetings by telephone or e-mail to the Commission members at least 24 hours in advance of the special meeting. If a special meeting is open to the public, the Secretary shall post notice of the time, place, and purpose of all special meetings for public viewing at the Department of City Planning and Engagement, the office of the Clerk of Council, on the City's website, and by such other methods as are reasonably calculated to provide notice.

E. Agenda. In consultation with the Chair, the Secretary shall prepare an agenda showing items for consideration at each regularly scheduled meeting (the "Agenda"). Items for consideration shall be presented to the Secretary no less than ten (10) calendar days before the regularly scheduled meeting at which they would be considered. The Commission may only consider items not included on the Agenda following a motion, second, and a majority vote of members present to consider such items by leave. In their sole discretion, the Secretary may petition the Commission to add an item to an Agenda by leave.

1. Agenda Composition. The Agenda shall contain consent items and discussion items. The Secretary shall further identify each item as a legislative, quasi-judicial, or administrative item. The Secretary shall appropriately identify other special items, i.e., special presentations to the Commission.
2. Agenda Publication. The Secretary shall mail or otherwise distribute the

Agenda and all materials pertinent to each item thereon to the Commission at least five business days before the regularly scheduled meeting.

F. Staff Report. The Secretary shall prepare a staff report of all new business items, which shall be delivered or otherwise made available to the members of the Commission with the Agenda.

G. Quorum. A quorum for any meeting or any undertaking of official business of the Commission shall consist of no less than four Commission members.

1. Establishing Quorum. The Secretary shall make a reasonable effort to notify an applicant and/or any other known interested parties of a failure to obtain a quorum before the meeting.

2. Absence of Quorum. Failure to obtain a quorum, or the loss of an established quorum, shall postpone the meeting until the next regularly scheduled Commission meeting unless the Chair, in consultation with the Secretary, selects another date.

H. Attendance. Any Commission member unable to attend a meeting shall notify the Secretary by telephone or e-mail at least one business day before the meeting. Three or more consecutive unexcused absences during any Commission Term will result in the Secretary issuing a letter to the Commission member seeking their resignation from the Commission. The resigning Commission member shall submit a resignation letter to the Mayor.

I. Voting.

1. Voting Rights. All members of the Commission shall be voting members. Any member of the Commission may make a motion or second a motion.

2. Official Commission Action. The Commission shall adopt all official acts by a majority vote of the Commission members present at a meeting unless applicable law or these rules require more votes.

3. Motions. All official acts of the Commission shall first require a motion by a member of the Commission seconded by another member of the Commission. All motions shall be stated clearly and shall list any proposed conditions. If another member does not second a motion, it is not eligible for a vote of the Commission, and the motion shall expire. Upon expiration of a motion, the Chair shall entertain further discussion by the Commission until a member makes another motion and another member seconds such motion.

4. Roll Call Vote. The Chair shall take all votes of the Commission by a roll call vote. However, the Chair may permit a straw poll vote of the Commission at their discretion.

5. Majority Vote. As used in these rules, the phrase "majority vote of the members of the Commission" shall mean an affirmative vote by a simple majority of the Commission members present at a meeting.

6. Abstentions. A Commission member may abstain from voting on an item, but an abstention shall not reduce the votes required to take official Commission action.

7. Tie Vote. If the vote on a motion produces a tie, the motion shall have failed as if the Commission had taken no action on the item. Accordingly, the Commission shall require further action to dispose of the item.

8. Record of Vote. The Secretary shall record each Commission member's vote on every question. Alternatively, the Secretary shall indicate if the member is absent, recused, abstains, or otherwise fails to vote.

9. Conflicts of Interest and Ethics. No Commission member shall vote upon, discuss, review, recommend, inspect, investigate, or take any other action on a matter in violation of Ohio ethics law provisions, including, but not limited to, Ohio Revised Code Sections 102.03, 102.04, 2921.42, and 2921.43.

10. Duty to Disclose Conflicts of Interest and Ethics Concerns. Any Commission member who encounters a possible conflict of interest or ethical concern shall disclose that issue to the Secretary and the City Solicitor as soon as practical before a scheduled meeting.

11. Determination of Conflicts of Interest and Ethics Concerns. Commission members are encouraged to consult the City Solicitor or their representative for legal guidance concerning conflicts of interest and ethics concerns.

12. Duty to Recuse. If a member has a conflict of interest or ethical concern, the affected member shall remove themselves from the meeting room during that portion of the meeting involving the matter from which that member is conflicted. The Chair shall deem a member who recuses themselves from consideration of an item due to a conflict of interest or ethical concern as absent for that item, which absence shall reduce the number of Commission members used to calculate quorum and the number of votes required to take official Commission action.

SECTION 5. MEETING PROCEDURES.

A. General Rules.

1. Meeting Procedure. The Chair shall call items in the order set forth on the Agenda unless the Chair, in their sole discretion, determines to dispose of agenda items more efficiently.

2. Appearances. Any person may appear in person at the meeting or may be represented by an attorney or by a duly authorized agent. All persons wishing to appear before the Commission shall sign in on a form or a speaker card furnished by the Secretary and located at the entrance to the meeting room or by other means deemed appropriate by the Secretary. The Commission may exclude the testimony of anyone who has failed to sign in at the meeting.

3. Written Submissions. The Commission may consider timely received written submissions, communications, memoranda, or other written arguments from an applicant or any person.

   a. Submission Deadline. All persons shall submit written narratives, communications, memoranda, arguments, or other materials to the Secretary no later than 48 hours before the meeting date to ensure that the Commission members are fully apprised of the issues, positions, arguments, and contentions concerning an application. If the submission deadline falls on a holiday, then the deadline is 24 hours before the holiday. The Secretary shall

not accept late submissions. The Commission may consider written materials after the filing deadline at the hearing at the sole discretion of the Chair.

4. Applicant's Failure to Appear. If an applicant fails to appear before the Commission on a quasi-judicial item as scheduled and has not requested to postpone or to continue the hearing as provided in Section 3 above, the Commission, at its discretion, may take one of the following actions:

   a. Postpone. Postpone the hearing until the next regularly scheduled Commission meeting; or

   b. Dismiss. Dismiss the application based on the applicant's failure to prosecute; or

   c. Rule. Rule on application's merits provided that each Commission member participating in such a vote acknowledges on the record that they have reviewed all materials in the record, including any written arguments, evidence, or testimony.

5. Decorum. The Chair shall maintain decorum at all times during meetings. Before testifying at a Commission meeting, all persons appearing before the Commission shall clearly state their first and last name and their personal address or business address for the record. All speakers shall speak clearly into the microphone provided on the speaker's table or podium and refrain from speaking over other parties. No one shall be permitted to speak from the audience. The Chair shall have the right to expel from a meeting any person exhibiting a lack of decorum or causing disruptive or combative behavior.

6. Criminal Offenses Against Public Administration. Commission members are public officials whose duties and actions are protected from threats of violence and intimidation, among others. Commission members shall report immediately to the City Solicitor any instances or attempts of bribery, intimidation, retaliation, or obstruction of official business by an applicant or any other party.

B. Consent Items. The Chair shall conduct the disposition of items found on the consent agenda in the following manner:

1. Inquiry. The Chair shall ask the Secretary whether anyone has petitioned to move items from the consent agenda to the discussion agenda and whether any Commissioners wish to move any items from the consent agenda. The Chair shall then entertain a motion to remove items from the consent agenda, if any, and place those items under the applicable quasi-judicial or legislative discussion heading.

2. Action. The Chair shall next entertain a motion to approve the items remaining on the consent agenda.

C. Rules Applicable to Legislative Discussion Items.

1. Ex-Parte Communication. Commission members may discuss legislative items with members of the public outside of regularly scheduled meetings of the Commission but are not required to do so if, at the member's discretion, such discussions or contact would impair the member's professional obligations to the Commission and the public.

2. Legislative Discussion Item Hearing Procedure. The Chair shall conduct the disposition of legislative discussion items in the following manner:

   a. Call Item. The Chair shall call legislative items in the order provided by the Agenda unless the Chair, in their sole discretion, determines to dispose of agenda items more efficiently.

   b. Staff Presentation. The Chair shall call the Department of City Planning and Engagement staff to present its staff report to the Commission.

   c. Questions of Staff. The Chair shall permit Commission members to ask questions of staff.

   d. Applicant's Presentation. The Chair shall provide the applicant an opportunity to make a statement. Presentations for legislative items shall be limited to three (3) minutes per person.

   e. Questions of the Applicant. The Chair shall permit Commission members to ask questions of the applicant.

   f. Public Comment. The Chair shall call any members of the public who have completed a request to speak on an item. Persons providing public comment for legislative items before the Commission shall not be sworn. Comments on legislative items shall be limited to three (3) minutes; provided, however, the Chair may, in their sole discretion, waive such time limitations in the interest of advancing relevant public discourse. Any unused portion of that three-minute allotment is not transferable to another person. The Chair shall permit Commission members to ask questions of the members of the public following their comments.

   g. Affiliated Groups. If a group of affiliated persons speaks on an item, the Chair may also request that one spokesperson from the group address the Commission.

   h. Commission Discussion. The Chair shall entertain discussion among the Commission members, including any requests by a Commission member to ask questions of any person who has spoken or requested to speak on an item. The Chair may end the discussion by calling the question, provided, however, a majority of the members of the Commission may vote to overrule the Chair.

   i. Motion. The Chair shall entertain a motion to dispose of the item.

   j. Vote. If the motion is seconded, the Chair shall request a vote.

D. Rules Applicable to Quasi-Judicial Discussion Items.

1. Ex Parte Communication. Outside of a scheduled quasi-judicial proceeding, Commission members shall not engage in conversation with an applicant, or members of the public, about applications and similar subjects related to matters that will be the subject of deliberation and judicial discretion. Applicants and members of the public may contact the Department of City Planning and Engagement to request access to an application or for clarification of these rules.

2. Directly Affected Persons. For the purposes of these rules, "directly

affected person" means a person who can demonstrate some unique harm distinct from the harm suffered by the community at large. An entity may qualify as a directly affected person, provided that one member of the entity qualifies as a directly affected person.

3. Burden of Proof. With respect to quasi-judicial items, an applicant bears the ultimate burden of proof by a preponderance of the evidence.

4. Sworn Testimony. A city solicitor shall swear all persons providing testimony before the Commission for quasi-judicial items at the beginning of the meeting or before their testimony.

   a. Attorneys. Attorneys may not be sworn unless they are serving as a witness or providing testimony rather than as an advocate and providing argument.

   b. Department of City Planning and Engagement Staff. Department of City Planning and Engagement staff members may not be sworn unless they serve as witnesses in the proceeding.

5. Presentation Time Limits. Parties participating in a quasi-judicial hearing shall limit the presentation of evidence, witnesses, cross-examination, and rebuttal to a reasonable duration. The Chair may, at their sole discretion, extend presentation time pursuant to this Section as necessary to ensure that the parties are fully permitted to present any relevant position, argument, or contention; to refute the positions, arguments, and contentions of opposing parties; to conduct cross-examination; and, to ensure that all non-duplicative evidence and testimony is entered into the record and that the requirements of due process are otherwise satisfied.

6. Quasi-Judicial Discussion Item Hearing Procedure. The Chair shall conduct the disposition of quasi-judicial discussion items in the following manner:

   a. Call Item. The Chair shall call quasi-judicial items in the order provided by the Agenda unless the Chair, in their sole discretion, determines to dispose of agenda items more efficiently.

   b. Staff Presentation. The Chair shall call a staff member from the Department of City Planning and Engagement to present their staff report to the Commission. The staff member's presentation shall be limited to evidence submitted by the parties and found in the public record.

   c. Presentation by the Applicant. The Chair shall call the applicant to present its position, arguments, and contentions, offer and examine witnesses, and present evidence supporting its position. In their discretion, the Chair may limit or restrict the applicant's presentation to the matters relevant to the application.

   d. Cross Examination of the Applicant. If an attorney represents a directly affected person, the Chair shall permit the attorney to cross-examine the witnesses proffered by the applicant.

   e. Presentation by Directly Affected Person. The Chair shall call a

directly affected person to present their position, arguments, and contentions, offer and examine witnesses, and present evidence supporting their position.

i. Multiple Directly Affected Persons. If there are multiple directly affected persons, the Chair shall permit each directly affected person to present their positions, arguments, and contentions, offer and examine witnesses, and present evidence relevant to the application. However, the Chair may limit duplicative and redundant arguments at their discretion.

f. Cross Examination of Directly Affected Persons. If an attorney represents an applicant, the Chair shall permit the attorney to cross-examine the position, arguments, and contentions of witnesses proffered by directly affected persons.

g. Rebuttal. The Chair shall provide the applicant the right to rebut or refute any position, argument, or contention opposing its application.

h. Commission Member Questions. The Chair shall entertain any requests by a Commission member to ask questions of any person who has testified or offered to testify on the item. The Chair shall have the discretion to end questioning by a Commission member by calling the question, provided, however, a majority of the members of the Commission may vote to overrule the Chair.

i. Deliberation. The Chair shall entertain discussion and deliberation. Upon a motion duly made, seconded, and a vote approved by a majority of Commission members, the Commission may deliberate off the record and in private.

j. Vote. Following deliberation, the Chair shall entertain a motion on the record to determine the item, to continue the hearing, or to take any other action permitted by applicable law.

E. Parliamentary Rules. The Commission shall follow the rules and procedures set forth herein in the conduct of its meetings. The Chair may apply Roberts' Rules of Order where these rules and procedures are silent.

SECTION 6. PLANNING STAFF CONFERENCES.

A. Proposed Zone Change, Text Amendment, and Final Development Plan Staff Conferences. The Secretary shall convene a public staff conference for petitions to change the zoning map or to consider final development plans before consideration of such items before the Commission. In their discretion, the Secretary may convene a public staff conference related to an amendment to the text of the City of Cincinnati Zoning Code before considering such text amendment by the Commission. The Secretary shall determine the time and place of all public staff conferences.

B. Notice of Public Staff Conferences. The Secretary shall provide notice of a public staff conference by regular mail and postmarked at least 14 calendar days before a conference on the following:

1. To owners of record of real property within the area proposed for zone

change and to all owners of real property located within a 400-foot radius of the subject property. The Secretary shall also notify the community council(s) representing the citizens in the area of concern and other parties as the Secretary may deem advisable to notify. The Secretary may require an applicant to place signage concerning the proposed change(s) in a form approved by the Commission and furnished by the Secretary at the subject property or in a manner reasonably calculated to afford notice to the citizens of the area of concern.

C. Notice of Public Staff Conference for Text Amendments. The Secretary shall provide notice of a public staff conference for a text amendment by regular mail and postmarked at least 14 calendar days before a conference on the following:

1. The community council(s) representing the citizens in the area of concern; and,
2. To other parties as the Secretary may deem advisable to notify.

D. Conference Procedure. A Department of City Planning and Engagement staff member shall be present at a public staff conference. The procedure for a public staff conference shall be as follows:

1. A staff member shall act as chairperson and shall direct a presentation of the petition and the relevant facts.
2. The chairperson shall call upon the petitioner and opponents, if any, for their presentations.
3. The staff may ask questions of the petitioner, proponents, and opponents and may allow reasonable rebuttals by the proponents and opponents.
4. The staff shall record the statements made at the conference.
5. The staff may request written statements from the petitioner, proponents, and opponents addressed to the Commission.

E. Staff Reports. Following a public staff conference, the staff shall present the petition, staff recommendations, and written statements to the Commission. After the staff has held a public staff conference and made a recommendation, the Secretary shall place the item on the Agenda for a regularly scheduled Commission meeting unless the Commission decides to consider such item at a special meeting. In addition to public notice of a Commission meeting, notices of the date, time, and place of the presentation shall be sent to all persons who indicated at the public staff conference that they wished to be notified of the meeting before the Commission. Copies of the staff report and recommendations will be made available to the applicant or his representative, community council representatives, and interested citizens, limited in number by economic prudence. The interested parties shall indicate at the public staff conference who shall receive the report and recommendation.

SECTION 7. EFFECTIVE DATE; AMENDMENTS OR SUSPENSION OF RULES.

A. Effective Date. These rules shall be made effective upon approval by a majority vote of all the members of the Commission.

B. Amendments. The Commission may amend or revoke these rules by a majority vote of Commission members, provided that written notice of the proposed amendment or revocation is provided to each Commission member at least three business days before such meeting.

C. Suspension. The Commission may suspend these rules at any meeting by a majority vote of the members present.

City Planning Commission

Adopted April 5, 1984
Revised September, 28, 1990
Revised January 7, 2011
Revised November 18, 2011
Revised March 3, 2023

CIVIL SERVICE COMMISSION RULES*

Rule

01. Definitions
02. Organization and Duties
03. Official Records of the Commission
04. Classification
05. Application for Entrance Examination
06. Entrance Examinations
07. Eligible Lists
08. Appointment to the Classified Service
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17. Appeal to the Commission, Hearings and Commission Action
18. Violations of the Civil Service Commission Rules and Penalty
19. Amendments to Rules
20. Public Notice of Regular and Special Meetings

RULE 01. DEFINITIONS†

Section 1.

The term "Civil Service" includes all offices and positions of trust or employment in the service of the City of Cincinnati and the Board of Education.

Section 2.

The term "appointing authority" signifies an officer, board or commission having the power of appointment to or removal from positions in any office or department. Appointing authorities include the following: City Manager, City Solicitor, Director of Human Resources/Civil Service Secretary, Board of Park Commissioners, Board of Health, Board of Education, Mayor and the Cincinnati Recreation Commission.

Section 3.

The term "class" or "classification" refers to a group of positions established under these rules sufficiently similar in respect to duties, responsibilities, and qualifications requirements to be designated by the same descriptive title and equitably compensated within the same salary scale.

Section 4.

The term "new position" means a position created through the authorized addition to an organization unit, or a position not previously existent, or a position created through an authorized change by the Civil Service Commission in a classification.

Section 5.

The term "eligible list" means a list of names of persons who have been found qualified through suitable tests, for employment in positions allocated to a specified class, arranged in the order of merit.

Section 6.

The term "referred list" means the use of the most appropriate list when an eligible list is not available for the position to be filled.

Section 7.

The term "to certify" means to supply from an eligible list the names and rank of the

*As approved on July 25, 2013, and effective retroactively to February 14, 2013.

†**Note—**Every use in these rules of the pronoun "he or "his" refers equivalently to "she" or "her."

highest persons on the list in accordance with Rule 07, Section 7 and Rule 08, Section 1, for each vacancy to be filled.

Section 8.

The term "promotion" means an appointment made in accordance with these rules from a lower class to a higher class involving an increase in responsibilities, a change in classification title and the application of a higher salary scale.

Section 9.

The term "classified service" comprises all of the following types of service in the City and the Board of Education not specifically included in the unclassified service. Classified employees are subject to examination and fitness tests, and appointments in the classified service require approval of the Civil Service Commission.

A. "Permanent employee" means any employee in the civil service who has been regularly appointed after serving a probationary period to a position normally involving continuous year round service.

B. "Temporary employee" means an employee appointed on an interim or temporary basis without regard to the rules of RC 124.01 to 124.64. The temporary appointment may not continue longer than one hundred twenty days, and in no case shall successive temporary appointments be made. A temporary appointment longer than one hundred and twenty days may be made if necessary by reason of sickness or disability of a regular employee. Such temporary appointment shall continue only during such period of sickness or disability or other approved leave of absence. (RC 124.30)

C. "Seasonal employee" signifies any employee in the classified service whose services are required only during certain parts of the year, such a position being intermittent or broken in nature. (Refer to OAC 123:1-25-04)

D. "Provisional employee" means an employee in the classified service that is appointed to a position under section RC 124.3, and either demonstrates merit and fitness for the position by successfully completing the probationary period for the position or remains in the position for six months of continuous service, whichever period is longer, shall become a permanent appointee in the classified service at the conclusion of that period.

Section 10.

The term "unclassified and casual (part-time) service" comprises the following which shall be exempt from examination and do not have appeal rights to the Civil Service Commission:

A. All officers elected by popular vote or persons appointed to fill vacancies in such offices;

B. All election officers and employees and clerks of the Board of Education;

C. Such employees of the City Council as are engaged in legislative duties;

D. The members of all boards and commissions, and the heads of the departments;

E. Employees engaged in library work or in teaching, educational or research work in connection with the public school system;

F. Employees in Community Development and City Planning Departments;

G. Four Administrative Specialists, Administrative Technicians or Clerk Typ-

ist 3's and one Administrative Specialist for elective offices and each of the principal executive officers, boards or commissions, except the Civil Service Commission, authorized to appoint such classifications.

H. The deputies of principal executive officers authorized by law to act for and in place of their principals and holding a fiduciary relationship to such principals;

I. Assistants to the City Solicitor;

J. Student employees of the Board of Education or the City of Cincinnati (co-ops and interns included); and

K. "Temporary employees" appointed for an emergency which requires extra persons without delay. Appointment may be made without regard for an existing list or these rules. Such appointments are unclassified, require Civil Service Commission approval, and are limited to 120 days. A person may not serve consecutive temporary appointments.

Section 11.

The term "employing unit" is a department or division as determined by the Civil Service Commission.

Section 12.

The term "unskilled labor" refers to a group of classifications as determined by the Commission for which there are minimal or no education or experience requirements.

Section 13.

The term "principal appointive officer" or "appointive officer" refers to the Mayor, the City Manager, and the directors of departments and the superintendent of public schools or an authorized designee.

Section 14.

The term "seniority points" refers to additional credit for seniority which is added to an applicant's grade on a promotional examination. Seniority credit for non-uniformed and Police personnel shall equal one point for the first four years of service, and six tenths of one point for each of the fifth through fourteenth years of service. Seniority credit for Fire personnel shall equal one point for each of the first four years of service and six-tenths of a point for each year for the next ten years of service.

Section 15.

The term "retention points" refers to a compound number used for layoff and displacement purposes of classified employees which includes seniority credit for each complete month of service and a base two hundred points, and credit for efficiency or performance (service rating) (refer to Rule 12, Layoff and Recall for further information).

Section 16.

The term "director of administrative services" or "director" as stated in sections of Chapter 124 of the Ohio Revised Code pertains to the Civil Service Commission (refer to Rule 02, Section 4).

Section 17.

The term "lack of funds" means an employing unit has a current or projected deficiency of funding to maintain current, or to sustain projected levels of staffing and operations.

Section 18.

The term "lack of work," for purposes of layoff, means a department has a current or projected temporary decrease in the workload, expected to last less than one year, which requires a reduction of current or projected staffing levels.

Section 19.

The term "job abolishment" means the permanent deletion of a position or positions from the organization or structure of a department for one year or more due to lack of continued need for the position(s). A department may abolish positions as a result of a reorganization for the efficient operation of the employing unit, for reasons of economy or for lack of work.

Section 20.

The City of Cincinnati and the Board of Education each constitute a separate layoff jurisdiction. Each layoff jurisdiction is autonomous and layoff, displacement, reinstatement and reemployment procedures shall apply only within the jurisdiction affected by the layoff.

Section 21.

The term "classification series" refers to a group of classifications through which an employee may reasonably expect to be promoted or which show a logical relationship to each other on the basis of work performed, qualifications and rate of pay. Specific classification series are determined by the Civil Service Commission.

Section 22.

The term "good standing," as it relates to requests for reinstatement to a former classification or restoration to a former eligible list, means no disciplinary action (i.e., written reprimands, suspension, loss of time, demotion, or reduction in pay) within two years of the date of application, and the employee's last annual performance evaluation being acceptable (a "Meets Expectations" rating).

Section 23.

The term "reemployment" means, for purposes of layoff, an appointment to a new appointing authority from a jurisdictional layoff list with retention of seniority, status (i.e., provisional, certified or unclassified) pay step, and time toward step advancement [Refer to Ohio Revised Code Section 124.327 (E) (F)].

Section 24.

The term "reinstatement" means the act of returning a person to service, following a period of separation or a leave of absence, retaining seniority and status (i.e., provisional, classified or unclassified). For purposes of layoff, "reinstatement" means the act of selecting from the appointing authority's layoff list individuals to return to active service with the same appointing authority in the same classification series of layoff [Refer to Ohio Revised Code Section 124.327 (E) (F)].

Section 25.

The term "dismissal" means removal from office as a result of disciplinary action.

Section 26.

The term "separation" means removal from office as a result of resignation, retirement, layoff, death or medical separation.

Section 27.

The term "point of service" means rank seniority, not total length of service in the department. (Refer to RC 124.37)

RULE 02. ORGANIZATION AND DUTIES

Section 1. Officers.

The Civil Service Commission, upon the appointment of a new member or the reappointment of an existing member, at the expiration of a regular term shall proceed to

the election of a Chairman and a Vice Chairman (see Article 5, Section 1 of the Charter of the City of Cincinnati, for term of office).

Section 2. Civil Service Secretary.

The Director of Human Resources functions as the City Human Resources Officer and the Civil Service Secretary pursuant to the provision of Article 5, Section 2 of the Charter of the City of Cincinnati, which states:

The City Manager shall appoint the secretary of the Civil Service Commission, who shall act as the human resources officer of the city government and must be a person experienced in human resources work. He shall also act as chief examiner and superintend the examinations subject to the direction of the Commission. He shall appoint all of his subordinates.

The City Manager may designate some other officer of the City, on a temporary basis, to perform the duties of the Civil Service Secretary in case of the absence or disability of the Director of Human Resources.

The Civil Service Secretary, subject to the approval of the Commission, shall supervise its office and have charge of the preparation of examination schedules, the holding of examinations, the certification of eligibles, the keeping of records, and the preparation of policies and procedures prescribing the detailed proceedings to be followed in the administration of these rules and in carrying on the routine of business. He shall appoint such subordinates as may be necessary and shall recommend the names of special examiners for appointment by the Commission. He shall maintain official records of the acts of the Commission. He shall have such authority to take action on routine civil service matters as is delegated to him by the Commission and recorded in the minutes of the Commission.

Section 3. Official Signatures.

The Chairman of the Commission, or in his absence or incapacity, the Vice Chairman, together with the Secretary, shall sign the minutes of the official acts of the Commission.

Section 4. Powers and Duties of the Commission.

The Commission is required to administer and enforce the State Civil Service Laws and its own rules which sustain the State Civil Service Laws. As an administrative body, it is responsible for the legal advertising of all entrance and promotional civil service examinations; the conduct and grading of these examinations, the determination of rules and regulations governing examination conduct and other matters covered in the State Civil Service Laws; the classification of all positions; and the review of such human resources transactions as transfers, reinstatements, emergency and exceptional appointments for conformity with law.

In addition, it has the appellate function of hearing appeals from certain suspensions, dismissals and demotions.

Whenever the Commission has reason to believe that any officer, Board, Commission, or person concerned with appointments, layoff, suspension, or removal, has abused such power by making or recommending any action in violation of the State Civil Service Laws or these rules, it shall be the duty of the Commission to make an investigation, and if it shall find that such violation of the provisions or intent and the spirit of the law or rules has occurred, it shall make a report thereof to the chief appointing authority involved, who shall have the power to remove forthwith such guilty officer, Board, Commission or person, an opportunity first being

given to such officer, Board, Commission or person of being heard publicly in person or by counsel in his own defense.

Section 5. Appearance before the Commission.

Whenever an individual or group has a matter which requires or might require the consideration or decision of the Commission, such individual or group shall first inform the Secretary in writing, who shall make the necessary arrangements to bring such matters before the Commission in regular session.

RULE 03. OFFICIAL RECORDS OF THE COMMISSION

Section 1. Commission Minutes.

The Secretary shall keep record of such official actions of the Commission as are required under these rules. The Commission's minutes shall record all matters. Examples of such matters are:

A. Appeals from dismissal, separation, demotion, suspension of more than three working days, displacement, layoff, disqualification for promotional exam;

B. Appeals of the results of a classification study, rejection of an application;

C. Reinstatements of former classified employees to their positions and replacements of names on and removal of names from eligible lists;

D. Transfers from one department to another;

E. Temporary promotions;

F. Exemptions from competitive examinations in the case of exceptional appointments, promotion without exam;

G. Changes in the classification of individual employees and/or positions, or changes in the content of the official class specification;

H. Approval of, or changes in, examination schedules, special examiners;

I. Approval of Eligibility lists of examinations; and

J. Notices of personnel actions resulting from collective bargaining agreements between the City or Board of Education with an authorized employee organization under provisions of Ohio Revised Code Section 4117.08.

Section 2. Official Roster.

The Secretary shall maintain an official roster showing the names, titles, and rates of pay of all employees in the classified service.

Section 3. Other Records.

The Secretary shall oversee the maintenance of the official classifications, performance reviews, files of examination papers, correspondence and other data. Such records will be maintained on file for varying periods of time as approved by the Civil Service Commission, the Auditor of the State of Ohio and the Ohio Historical Society.

RULE 04. CLASSIFICATION

Section 1. Classification Plan.

The classes of positions described in the official classification and salary schedules, entitled "Salary Schedule (year), Department of Human Resources" and "Salary Schedule for Civil Service Employees, Cincinnati Public Schools", as published with such modifications as may be made thereto from time to time in accordance with these rules, shall constitute the official classification plan for all positions in the service of the City of

Cincinnati and the Cincinnati Public Schools, respectively (with the exception of teaching, educational, research and library positions). No person shall be employed or regularly assigned to work under any classification not appropriate to the duties to be performed. The official classification and salary schedules as hereby made a part of these rules.

Section 2. Class Specifications.

The Secretary shall maintain in the office a record for each classification established. The record shall contain the classification title, the duties performed, examples of work performed, the knowledge, skills and abilities required and the minimum qualifications required (required education and experience). The official copy of such specifications shall include the date of approval and the signature or initials of the Secretary or any employee authorized by Commission to make such endorsement. Approval of all amendments to the specifications adopted under these rules shall be similarly endorsed. The official class specification shall be open to the public at all times during business hours.

Section 3. Class Specifications Interpreted.

The specifications of classes of positions in the classification plan are hereby declared to have the following force and effect:

A. They are descriptive and explanatory and are not restrictive. The use of a particular expression or illustration as to duties, qualifications, or other attributes shall not exclude others not mentioned if such others are similar in kind or quality, nor to limit the power of appointing authorities to modify or alter the detailed tasks involved in the duties of any position. When a substantial change of duties outside the current classification is made, except for a temporary period or by the addition of duties that are incidental to the main employment, such change shall be reported to the Commission within 60 days with a view to a possible reclassification of the position.

B. In determining the allocation of a given position the specifications shall be considered as a whole. Consideration shall be given to the general duties and responsibilities, the examples of duties cited, the minimum entrance qualifications, and relationships to other classes as affording an inclusive picture of the employment the class is intended to embrace.

Section 4. Distribution of Positions to Classes.

Upon recommendation of the Secretary each position in the civil service (with the exception of teaching, educational, research and library positions) shall be distributed to the appropriate class by the Civil Service Commission. The distribution of any position to its appropriate class shall involve the adoption of the class title for all positions in the class in payroll records, in requests to the Civil Service Commission for the certification of eligibles, and in all similar employment processes and documents.

Section 5. Classification of New Positions.

Whenever a new position is to be established, the appointing authority or principal executive officer shall report such fact to the Civil Service Commission and transmit a comprehensive description of the duties. The Commission shall thereupon investigate the actual or suggested duties and qualification requirements and allocate the position to its appropriate class in accordance with the classification plan.

Section 6. Reclassification of Positions and Incumbents.

Each appointing authority is responsible for maintaining the integrity of the classification plan by assigning employees duties which are appropriate for their class in accordance with these rules and the applicable class specification. No supervisor may knowingly assign substantial higher level duties except for a temporary promotion or temporary transfer situation.

When the duties and responsibilities of existing positions are changed outside of the current classification, the appointing authority or principal executive officer shall report such fact to the Commission within 60 days of such changes, and transmit to the Commission a full statement of the circumstances, a description of the duties and applicable conditions of employment, if any; copies of such notices shall be provided for the affected employee(s). Requests for audits of positions may be initiated by the Commission, the Civil Service Secretary, an appointing authority or principal executive officer, or an employee working in the position.

The Commission staff shall, after investigation and review of job duties, work samples and/or any other appropriate documents or evidence, allocate or reallocate every position to the appropriate class. The appointing authority, principal executive officers and employees concerned shall have the opportunity to comment to Commission on the reclassification study report prior to Commission's approval.

I. When a position is reclassified to a higher or different classification, several resolutions are available:

   A. The agency may request a certified eligible list for the higher classification, and if the incumbent falls within appointing range, the incumbent will be promoted into the higher position. If the position is to be filled through promotion by means other than a promotional list as approved by Commission, and the incumbent is deemed eligible for the promotion, the incumbent will be promoted into the higher position.

   B. If the incumbent is promoted from an existing list, the promotion shall be effective the beginning of the pay period in which the study is approved by Commission. If the incumbent is promoted after a list is created, or by any other method approved by Commission, the promotion shall be effective following normal rules of promotion.

   C. Incumbents holding permanent status in a position reclassified to a different classification with the same top pay step, as approved by the Commission, may be reclassified to the different classification if they meet the qualifications and all rules for transfers are followed.

   D. If the agency determines not to fill the position at the classification approved by Commission, management may remove from the employee the higher level and/or non-conforming duties as identified as a result of the class study and ensure that the employee's assigned duties are within the employee's classification.

   E. If the agency determines to fill the position at the classification approved by Commission and an incumbent is not eligible for the higher level classification, the employee shall be reassigned to a

position in his proper classification. If such a position is not available, see Section C above.

II. When a position is reclassified to a classification having a lower salary range two resolutions are available:

A. Incumbents holding permanent status in a position reclassified to a classification having a lower salary range may be reassigned to a vacant position in their current classification.

B. If the agency determines not to fill the position at the classification approved by Commission, management may add appropriate duties in order to ensure that the employee's assigned duties are within the employee's classification. These new job assignments must be approved by Commission.

Section 7. Amendment of the Classification Plan.

The Commission, and/or the Civil Service Secretary or designee, as deemed necessary and after conference with the appointing authorities and principal executive officers involved, may establish new classes, abolish, merge or divide existing classes and amend the class specifications to meet changing conditions.

Section 8. Dual Classifications (applicable only to the Board of Education).

Where it is determined by the appointing authority, with the approval of the Commission, that it is frequently necessary for an employee to perform duties outside of his classification, such employee may be appointed to a class involving such duties and retain his original classification. Competitive examination shall be the means of selection for dual class if the position is of a higher level than the original classification, except as the Commission shall otherwise determine. Any subsequent full time vacancy in the higher classification shall be filled by the employee holding a dual classification with the highest seniority in that class and in the same employing unit. No employee may be made full time in any higher class unless his last service rating was at least "satisfactory."

RULE 05. APPLICATION FOR ENTRANCE EXAMINATION

Section 1. Notice of Examination.

Notice of competitive examination, open to persons employed in the civil service and to those who have not been so employed, should be given by advertisement and by posting notices electronically on the City of Cincinnati's website not less than two calendar weeks prior to such examination.

Section 2. Application.

Each applicant shall complete a formal application, in which the applicant shall state the applicants' name, address, and such other information as may reasonably be required concerning applicant's education and experience. The completed application which may consist of a formal application, resume, responses to supplemental questions or other documents specified in the job posting will be the sole criteria in determining an applicants' eligibility for any examination. Information showing that an applicant meets all of the minimum qualifications as stated on the job posting must appear on the completed application. Failure of an applicant to indicate the qualifications as to experience or any other requirements described in the job posting will be considered sufficient cause to exclude an applicant from examination. An applicant may correct an incomplete applica-

tion as long as any necessary corrections are made prior to the posting deadline. No inquiry shall be made as to religious or political affiliations or as to racial or ethnic origin of the applicant, except, as necessary to gather equal employment opportunity or other statistics that, when compiled, will not identify any specific individual. (OAC 123:1-11-08)

Section 3. Citizenship.

Applications will be accepted from all persons, however, the Ohio Revised Code in 124.22 states: An applicant for a civil service examination must be a United States citizen or have a valid permanent resident card.

Section 4. Residence.

Applications for City positions will be accepted without any limitation as to residency of applicants. Persons appointed to the positions must comply with the residency regulations of the appointing authority of the jurisdiction in which they seek employment and with the laws of the State of Ohio.

Section 5. Age Requirements.

The Commission may establish maximum and minimum age limits for examinations in such cases where the Commission deems it necessary.

Section 6. Commission to Rule on Educational Requirements.

The Commission may establish educational requirements for only those positions for which educational requirements are expressly imposed by a section of the Revised Code or federal requirements or for which the Commission determines that the educational requirements are job related.

Section 7. Rejection of Application, Refusal to Appoint, Examine or Certify Applicants.

The Secretary may, refuse to appoint or examine an applicant, or after an examination, refuse to certify the applicant as eligible, who is/has

A. found to lack any of the established preliminary requirements for the examination.

B. addicted to the habitual use of intoxicating liquors or drugs to excess.

C. a pattern of poor work habits and performance with previous employers.

D. guilty of infamous or notoriously disgraceful conduct.

E. dismissed from either branch of the civil service for delinquency or misconduct.

F. made false statement of any material fact, or practiced, or attempted to practice, any deception or fraud in the application of examination, in establishing eligibility, or securing an appointment.

G. the applicant was previously employed by the City of Cincinnati or Board of Education and was either dismissed or did not resign in good standing within the past 2 years or failed the probationary period for the classification being applied for within the past 2 years.

H. the applicant, after notification, did not promptly present himself at the time and place designated for the examination.

I. the applicant failed or withdrew from an examination for the same or similar classification within the preceding six months.

Applicants wishing to appeal the rejection of their application to the Commission must submit their appeal in writing no later than fourteen calendar days from the date on the rejection notice.

Section 8. Veterans Preference.

An applicant shall receive veteran credit on an entrance examination for the classified service, provided the applicant has received a passing grade in all phases of the examination and meets all of the following requirements:

A. The applicant must have an honorable discharge from the United States Army, Navy, Marine Corps, Air Force, Coast Guard, National Guard, Air National Guard, Merchant Marine or have transferred to the reserve with evidence of satisfactory service, or have been a Red Cross Nurse (Note: general, medical, convenience of the government, hardship, bad conduct and dishonorable discharges do not apply); and

B. The applicant must be an Ohio resident as of the test application closing date; and

C. The applicant must have served on active duty meaning full-time duty in the active military service of the United States, including duty on the active list, full time training duty, annual training duty, and attendance, while in active military service, at a school designated as a service school by law or by the Secretary of the military department concerned; and

D. The applicant must have completed more than one hundred eighty days of active duty service.

Special provisions for veteran credit with the City of Cincinnati are:

A. A qualified veteran, upon presentation of an official document stating an honorable discharge shall receive additional credit of five points;

B. A qualified disabled veteran, upon presentation of a certificate of honorable discharge and an official statement dated within the last six months from the Veteran's Administration or the Service agency attesting to the existence of a ten percent (10%) or greater service connected disability shall receive additional credit of ten points. However, no credit will be given to an applicant who was discharged by the Army, Navy, Air Force, or Marine Corps for physical disability at the time of his physical examination for entrance into the service.

Veterans must submit the DD-214 and all other documents verifying their status when filing an application or, when permitted by the Secretary, no later than the date of the examination.

Special provisions for veteran credit with the Board of Education are upon presentation of a certificate of service or honorable discharge; a veteran shall receive additional credit of twenty percent (20%) of his total grade given in the regular examination.

Veterans must submit the DD-214 and all other documents verifying their status when filing an application or, when permitted by the Secretary, no later than the date of the examination.

Section 9. Postponement and Cancellation of Examinations.

Any examination may be postponed or canceled at the discretion of the Commission and/or the Secretary. In either case, each applicant shall be notified of the postpone-

ment or cancellation, and the action, together with the cause thereof, reported to the Commission and an entry made in its minutes.

Section 10. Fees.

No fees shall be charged for any examination.

Section 11. Commission to Rule on Work Experience Requirements.

The Commission may establish work experience requirements for each classification, which will be written into the official classification specifications. Furthermore, the specification for each classification shall be considered as an addendum to these Rules. All applicants who meet the qualifications as established by the Civil Service Commission shall be eligible to take open competitive examinations and be considered for the exceptional appointment process. Applicants for open competitive examinations and the exceptional appointment process wishing to appeal the rejection of their application for failure to possess the required work experience time may submit their appeal to the Civil Service Commission in writing no later than fourteen calendar days from the date on the rejection notice.

RULE 06. EXAMINATIONS

Section 1. Examinations.

All applicants for positions and places in the classified service shall be subject to examination. Any examination under this section shall be public and be open to all citizens of the United States and those persons who have legally declared their intentions of becoming a United States citizen. Such examinations may include an evaluation of such factors as education, training, capacity, knowledge, manual dexterity and physical or psychological fitness.

Section 2.

There shall be two types of competitive examinations: Open Competitive and Promotional Competitive.

A. Open competitive examinations shall be open to all applicants who meet the minimum requirements listed in the classification specification for the classification being tested.

B. Promotional competitive examinations shall be limited to current City employees who meet the minimum requirements listed in the classification specification for the classification being tested.

Section 3.

There shall be a Noncompetitive examination that includes an evaluation of the applications to determine if the applicants meet the minimum requirements for the classification being examined. Noncompetitive examinations may also consist of other components, such as qualifying tests, to determine if the applicant can perform the duties of the classification. In the absence of qualifying tests, applicants who meet the minimum requirements shall have their names placed on the appropriate Eligible list. Applicants shall be notified in writing whether they passed the qualifying examination and if their name appears on the eligible list for the classification examined.

Section 4. Contents of Examinations.

Examinations held to establish an eligible list for any class may consist of the following parts. The parts listed below may be given a weight in examinations or may be used in excluding from further examination applicants who do not meet the minimum required standards as outlined in the Examination Announcement/Job Posting.

A. *Written Tests:* This part, when required, shall include a written demon-

stration designed to measure the degree to which an applicant possesses the minimum qualifications, or their education, training and experience as it relates to the minimum qualifications established for the class of positions to which they seek appointment. The Secretary may, in his discretion, verify a competitor's statements as to training and experience and govern his rating accordingly.

B. *Structured Oral Interview:* This part, when required, may be used under the supervision of the Civil Service staff in examinations where a written test is unnecessary, impracticable or insufficient.

C. *Performance Tests:* This part, when required, shall include such tests of performance or trade as will determine the ability and manual skill of competitors to perform the work involved.

D. *Physical Ability Tests:* This part, when required, shall consist of tests of physical condition, muscular strength, agility, and physical fitness of competitors.

E. *Medical/Physical Fitness:* This part, when required, shall include an evaluation conducted by a licensed physician authorized by the Civil Service Commission concerning job-related criteria as determined by the Commission.

F. *Behavior/Psychological Assessment Tests:* This part, when required, shall include written, oral, or performance tests which predict the suitability of candidates to perform the work involved in the classification.

Section 5. Identity of the Examinee Concealed.

Whenever feasible the identity of all persons taking a competitive examination shall be concealed from the examiners by use of an identification number which shall be used on all examination papers and the candidate's application when he presents himself for examination. The number shall be used from the beginning of the examination until the papers have all been rated. Any papers bearing the name of the applicant or any other identification mark, or any candidate who reveals his identification number to any member of the Commission or its staff, directly or indirectly, may be disqualified and the candidate so notified. No candidate shall be permitted to take notes, copy or reproduce any portion of the examination questions or other examination material.

Section 6. Method of Grading Examinations.

Each part of the examination for each classification shall be graded separately. Scores for each part shall be continuous (e.g. 1 to 100) or discrete (e.g. pass/fail). Weighting of the various parts of the examination shall be based upon the results of the job analysis. When supported by the results of the job analysis, part(s) of the exam may be used to determine eligibility to compete on a later part(s) of the exam, and such part(s) may either be weighted or not weighted in the computation of the final score. Passing scores will be determined after the examination by the Civil Service examiner together with the Secretary. Determination of the passing score will be based on the results of the job analysis, analysis of examination results, consultation with subject matter experts, or other professional methods. The final grade for each candidate shall be a single score. If two or more candidates receive the same final grade, a candidate with veteran's preference will be ranked above a non-veteran. Ties between veterans and ties between non-veterans will be broken by priority of filing date on applications as indicated by the time stamp. The names of the applicants receiving

a passing score shall be posted in the Commission's offices and entered on the appropriate eligible list. The grade of any applicant failing to qualify shall not be made public.

Section 7. Minimum Grades on Each Section.

The Secretary may, at his discretion, determine a minimum grade for any part or parts of an examination. Any candidate who fails to attain at least this minimum grade shall be considered to have failed the examination, and shall not be examined on any further parts if any are planned.

Section 8. Examination Monitor.

No persons other than authorized members of the Commission's staff, or in the case of the Board of Education, authorized members of the Civil Service Personnel Office Staff, or other persons approved by the Commission or Secretary, shall act as monitors or spectators while an examination is being conducted.

RULE 07. ELIGIBLE LISTS

Section 1. Posting of Lists.

From the results of each examination, the Commission shall prepare and keep open for public inspection an eligible list of persons who achieve the minimum passing score or better on the examination and are otherwise eligible. Such persons shall be notified and take rank upon the eligible list in the order of their relative grades without reference to priority of time of examination. Whenever it becomes necessary to re-administer an examination in order to obtain additional eligibles, the Commission may consolidate existing lists for the same class by rearranging the eligible names therein according to their grades. Each person whose name appears on the existing list which is to be merged with a new list shall have an opportunity to compete in the second examination, provided he meets the qualifications. Standing on the eligible list then shall be determined by the grade on the subsequent examination. Those eligibles who do not take the second examination will remain on the list according to their grade on the earlier exam and will be removed from the list when the expiration date from the first list is reached.

Section 2. Duration of Eligible Lists.

The term of eligibility of each list shall be fixed by the Commission at not less than one year nor more than two years for the City of Cincinnati and for not less than one year nor more than two years, closing after each appointment and reopening with a full certification for the same classification for the Board of Education.

Section 3. Disqualification of Eligibles and Removal from List.

After the creation of an eligible list, if the Commission has reason to believe that any person whose name appears on a list is disqualified for appointment because of reasons which developed subsequent to his examination; such person shall be notified and given an opportunity to be heard. If such person fails to appear for a hearing, or upon being heard fails to satisfy the Commission, his name shall be removed from the appropriate list. The following are cause for disqualification:

A. Inability to perform the duties of the classification;

B. Errors disclosed in computing scores;

C. False statements made on the application;

D. Any personal activity for which a background investigation demonstrates the likelihood of an adverse effect on his

performance in the position to which he seeks appointment, or activity prohibited by the Ohio Revised Code;

E. Failure to report or arrange within three days after receiving notice of certification (Saturdays, Sundays and holidays excepted) for an interview with an appointing authority;

F. Dismissal from City service within the last two years in the case of a City employee who has competed on an open exam;

G. Any other similar reason.

The name may be reinstated on the eligible list only by a written satisfactory explanation of the circumstances submitted to and approved by the Commission.

Section 4. Change of Address.

Each person on an eligible list shall file with the Commission written notice of any change of address.

Section 5. Revocation of List.

An eligible list may be revoked and another examination ordered only when in the judgment of the Commission such action is deemed advisable due to errors, fraud or obviously inappropriate standards prescribed in connection with any examination. All competitors in the first examination shall be given opportunity to compete and a new eligible list shall be established. No eligible list shall be revoked except upon written notice to all persons whose standing may be affected. The Commission must take action on the reasons for such alteration or revocation and an entry of the action must be made in the minutes of the Commission.

Section 6. Eligible Lists Resulting from an Open and Promotional Examination.

An examination may be given both as open and promotional, for example when an insufficient number of eligibles are available for a full certification. The list of competitors passing the promotional examination shall be prepared separately from the list of competitors passing the open examination. The promotional eligible list shall be used first. When there is an insufficient number of competitors on the list to constitute full certification, the Secretary may authorize the certification of competitors from both the promotional and open eligible lists to constitute a full certification.

RULE 08. APPOINTMENT TO THE CLASSIFIED SERVICE

Section 1. Certification and Appointment Process.

Immediately upon receipt of a request for certification, the Commission shall certify to the appointing authority in which a position in the classified service is to be filled, the names, addresses and rank of the top 25% or a minimum of ten names standing highest on the eligible list for the class or grade to which the position belongs; provided that the Commission may certify less than ten names if ten names are not available. When less than six names are certified to an appointing authority, appointment from the list shall not be mandatory, and a new examination may be secured.

A person certified from an eligible list more than four times to the same appointing authority for the same or similar position may be removed from further consideration.

A. *Certification of Municipal Workers for Permanent Positions:* When an employing unit which employs Municipal Worker has a permanent vacancy in a class in which Unskilled Laborers are employed, this permanent vacancy shall be filled from among the three Municipal Workers of that employing

unit with the highest seniority. When an employing unit has a permanent vacancy and does not employ Municipal Workers in the classification, the ten Municipal Workers with the highest seniority from employing units where Municipal Workers are employed will be certified for consideration.

B. *Cancellation of Certification:* If at any time after eligibles have been certified by the Commission, the appointing authority decides not to fill the vacancy or decides to fill the vacancy by other methods approved by the Commission, the certification shall be canceled.

C. *Employment Interview and Result:* Any appointing authority or his authorized representative shall be privileged to examine the application and test(s) scores of applicants prior to the interview, should this be desired in determining the relative fitness of persons under consideration for appointment.

D. *Appointment Date:* The date on which the appointing authority signs the appointment form is the official appointment date regardless of the actual starting date of employment. All applicable benefits and service credit will be counted from the appointment date.

E. *Appointments in Uniformed Fire and Police Service Resulting from Promotion:* Appointments in a promoted rank within the Fire Department shall be made within ten days following certification. Appointments in a promoted rank within the Police Department shall be made within thirty days following certification.

Section 2. Types of Appointment through Examination and Non Examination.

A. *Permanent Appointments:* Positions should be filled by permanent appointment whenever possible. However, conditions may warrant other appointments listed.

B. *Temporary Appointment:* Use of temporary appointments shall be in accordance with Sections 124.30 (A), of the Ohio Revised Code.

Section 3.

Under special circumstances the following appointments may be made:

A. *Exceptional Appointments:* In case of a vacancy in a position in the classified service where peculiar and exceptional qualifications of a scientific, managerial, professional or educational character are required, and upon satisfactory evidence that for specified reasons competition in such special case is impracticable and that the position can be best filled by a selection of some designated person of high and recognized attainments in such qualities, the Commission may suspend the provisions of the statute requiring competition, but no suspension shall be general in application, and all such cases of suspension shall be recorded in the minutes of the Commission with the reason stated.

B. *Temporary Appointments:* Use of temporary appointments shall be in accordance with Sections 124.30 of the Ohio Revised Code.

Temporary Appointments may be made when there is urgent need to fill a position and Civil Service is unable to certify a list of eligible persons. Temporary appointments may not continue longer than 120 days; except if the temporary appointment is due to sick-

ness, disability, or other approved leave of absence of a regular employee, the temporary appointment may continue as long as the leave. Temporary appointments shall not be made successively. An employee who serves in a temporary appointment for a period of six months of continuous service and who demonstrates merit and fitness for the position shall become a permanent appointee in the classified service at the end of the six months.

Section 4.

Any permanent employee who was separated in good standing may be:

A. Reinstated within one year from the date of such separation to a vacancy in the same or similar classification in the same department, with the approval of the Commission, provided there is no existing promotional eligible list and there are no employees who have been laid off and whose names appear on a layoff list for the class. This section is applicable unless superseded by a collective bargaining agreement. If such separation was due to injury or physical disability, such person shall be reinstated to the same or similar classification he held at the time of his separation, within thirty days after written application for reinstatement and after passing a physical examination made by the City Physician or his designee, showing that he has recovered from such disability or is able to perform the essential duties of the classification with or without accommodation, provided further that such application for reinstatement be filed within two years from the date of separation, and further provided that such application shall not be filed after the date of service eligibility retirement. In the case of requested reinstatements of sworn employees of the Police and Fire Divisions, a copy of the reinstatement request shall be furnished to the appropriate department head or to the Fire Chief or Police Chief as appropriate. (Sworn employees of the Police and Fire Divisions may not be reinstated above the rank of Police Officer and Fire Fighter, and must pass a physical examination disclosing that the person is physically fit to perform the duties of the office of Police Officer or Fire Fighter (ORC 125.50); or

B. Restored to an appropriate eligible list with the approval of the Commission within a period of one year from the date of separation. The employee will be placed on the eligible list in accordance with the grade he received if the list from which he was appointed is still in effect. In the case that the eligible list from which he was appointed has expired, or if an employee requesting to be restored to an eligible list for a classification in which they previously served did not take an examination, the employee will be placed at the bottom of the appropriate eligible list.

Section 5. Transfer of Unclassified Employees.

Whenever, by reason of reorganization of one or more departments, divisions or bureaus of the city service, an employee in the unclassified service is not needed or his position is abolished in such unclassified service, the employee, with the approval of the City Manager or other chief appointing authority and the Civil Service Commission, may be transferred to a vacant position with similar duties in the classified service in the same or other departments, divisions or bureaus. Only

employees who have occupied such unclassified service positions for two or more years may be transferred to the classified service. No such transfer shall be made to a position occupied by a regular appointed employee in the classified service or to a position for which an employee is on a Recall list by reason of layoff.

Section 6. Reassignment within a Given Class.

Nothing herein shall be construed to interfere with the right of the City Manager or other appointing authorities to assign or reassign employees within a given class among the various departments under their control as deemed in the best interest of the service.

Section 7. Coursework, License, Certificate and Registration Validation.

For any classification requiring coursework, license, certificate and/or registration, verification of such must be submitted to the Civil Service Commission prior to any personnel action being taken (i.e. hire, promotion, transfer) This includes new hires, promotions, transfers, voluntary demotions, and reassignments. Individual agencies must verify annually that employees within the agency hold the proper and current license, certificate and/or registration.

RULE 09. PROBATION

Section 1. Probationary Period.

All classified appointments, including temporary appointments, shall be for a probationary period, fixed by the Commission in accordance with Chapter 124 of the Ohio Revised Code. Length of probationary periods for City of Cincinnati classifications is contained in the official classification and salary schedule entitled "Salary Schedule (year), Department of Human Resources," which is hereby made part of these rules. No final appointment or promotion shall be deemed made until the appointee has satisfactorily served his probationary period. In determining the probationary period of a Board of Education seasonal or school year employee, only periods when such employee is on work status shall be counted.

If a probationary employee is absent because of military duty or illness for a substantial portion of his probationary period, the Commission may extend his probationary period by the number of working days not exceeding the length of time he was absent.

Section 2. Probationary Period for Temporary.

Service performed as a temporary shall be included in the probationary period.

Section 3. Removal of Employee.

(Except Fire Fighter - see Ohio Revised Code Section 124.49) A probationary employee may be removed for cause without right to appeal to the Commission at anytime during probation.

Section 4. Probationary Report.

A performance report must be completed by the department not later than ten days prior to the end of the probationary period. The report shall indicate whether the performance of the employee is satisfactory. If a probationary employee is to be separated from employment prior to completion of his probationary period a performance report must be made and included in the separation papers. The performance report shall state the reason for such separation.

Section 5. Ineligibility Due to Probationary Failure.

An employee failing to qualify in his probationary period shall be ineligible for any

civil service examination for a period of one year, unless, in the judgment of the Civil Service Secretary, the cause of his removal will not affect his usefulness in some other type of employment.

Section 6. Demotion to a Former Classification Resulting from Failure of Probation.

A. An employee promoted from the same employing unit who fails to qualify on his probationary period shall be reinstated to the same or similar classification from which he was promoted in the same employing unit.

B. An employee promoted to a position in a different employing unit who fails to qualify on his probationary period may, with the consent of the Commission and the department head of the previous employing unit, be reinstated to the same or similar classification from which he was promoted in the originating employing unit. An employee not so reinstated may be placed on a Recall list for the same or similar classification from which he was promoted, with the consent of the Commission, for a period of one year. An employee on such a list shall have preferential reemployment status in the classification from which the employee was originally promoted or in any lesser-paying classification deemed appropriate by the Commission. Reemployment in a lesser classification shall not be cause to remove the employee from the Recall list for the classification from which the employee was originally promoted.

C. An employee who fails probation while serving in a temporary appointment shall be restored to a position in the classification from which he was temporarily appointed.

RULE 10. PROMOTIONS

Section 1. Commission to Rule on Promotional Examinations.

The term "Promotional Examination" signifies a test to determine the relative standing of applicants for positions in a specified class and is open only to employees in the classified permanent service who, at the time of the examination, are serving actively in other specified classes for such a period as may be prescribed by the Commission, or otherwise meet the qualifications established by the Commission. Vacancies above the lowest grade of any classification series shall be filled whenever practical by the promotion of employees in the classified permanent service. In the event there are no qualified applicants or an insufficient number of qualified applicants to take a promotional examination, or if a promotional examination is given and an insufficient number of applicants pass the examination to satisfy the certification requirements, then an open-to-the-public examination may be announced. The Commission shall determine whether a promotional examination for employees whose experience would be preparation for the higher position shall be held or whether an open-to-the-public examination shall be scheduled. (See Rule 07, Section 6 regarding Eligible Lists Resulting from an Open and promotional examination.)

Promotions in every case shall involve definite permanent changes in duties and an increase in responsibilities and shall not be made merely to increase compensation.

Section 2. Qualifications for Promotional Examinations.

All classified permanent employees who meet the qualifications as established by the Civil Service Commission shall be eligible to take promotional examinations for a higher classification, for an equivalent (but not the same) classification, or for a classification in a lower grade within a different classification series, except:

A. Employees for whom the last annual performance evaluation was less than satisfactory for Police, 7.5 rating points or 6.5 promotion points;

B. Employees for whom two of the last three annual performance evaluations was a "does not meets expectations" (OAC 123:1-23-03);

C. Employees who have been demoted to a lower classification as a result of a disciplinary action in the twelve month period preceding the examination;

D. Employees who fail their probationary period in the twelve month period preceding the examination, unless, in the judgment of the Civil Service Secretary, the failure will not affect their usefulness in some other type of employment.

The Secretary, subject to appeal to the Commission, may reject any application from an employee who had failed or withdrawn from an examination for the same or similar classification within the preceding six months. Temporary transfer and/or temporary promotion time will not be counted for examination eligibility purposes. The Civil Service Commission will consider requests for waiving the time in grade eligibility requirement only from those individuals who are within fifteen days of meeting such requirement. At least one-half of the required work experience must have taken place within the five years immediately preceding the examination, unless specified otherwise on the announcement. Time in grade requirements for examination eligibility shall be established by the Civil Service Commission and shall be those requirements as stated on the official classification specification. Furthermore, the specification for each classification shall be considered as an addendum to these Rules.

Applicants wishing to appeal the rejection of their application to the Commission must submit their appeal in writing no later than fourteen calendar days from the date on the rejection notice.

Section 3. Announcement of Examination and Application for Promotional Examination.

Whenever a promotional examination is ordered, notice of such examination shall be published by the Commission in electronic format and distributed to all departments for distribution to employees. It shall be the duty of the department head or division head to see that employees are notified of the examination. Transmittal of notice may be by electronic or hard copy.

Each applicant must be responsible for the completion of his own application form. All applications shall be filed electronically as specified in the examination announcement (job posting) not later than the date specified in the announcement of examination.

Section 4. Selection of Promotional Examination Date for Police and Fire.

Whenever a vacancy occurs in a promoted rank and no eligible list for such rank exists, the appointing authority shall certify the fact to the Commission, and the Commission shall within sixty days of such vacancy conduct a competitive promotional examination.

In order to compete for promotion in the Police or Fire Divisions, applicants must meet the time-in-grade eligibility requirements at the time of the examination.

Section 5. Contents and Grading of Examinations.

Each promotional examination shall relate directly to the minimum qualifications and duties of the class of positions for which the examination is being held. The names of applicants receiving a passing score on a promotional examination shall be entered on the appropriate eligible list. Official eligible lists will be maintained by the Civil Service Secretary, and will be made available to the

public; provided however that names and scores of competitors who fail to qualify shall not be made public.

A. Examinations held to establish an eligible list for any class may consist of the following components in any combination. Each of these components may be weighted OR may be used in progression such that candidates must pass one component before advancing to the next.

- Written Tests: Uses a written tool to measure the applicant's qualifications for the class of positions being sought.
- Education, Training and Experience Tests: measures the applicant's qualifications for the class of positions using a quantitative evaluation of his documentation of training and experience.
- Oral Interview: Uses a structured oral interview tool to evaluate an applicant's qualifications for a class of positions, where a written test is unnecessary, impracticable or insufficient.
- Practical Tests: includes such tests of performance or trade as will determine the ability and manual skill of competitors to perform the work involved.
- Physical Ability Tests: consists of tests of physical condition, muscular strength, agility, and physical fitness of competitors.
- Medical/Physical Fitness: includes an evaluation conducted by a licensed physician authorized by the Civil Service Commission concerning job-related criteria as determined by the Commission.
- Behavior Assessment Tests: includes written, oral, or performance tests which predict the suitability of candidates to perform the work involved in the classification.
- Background Check/Polygraph Tests.

Each part of the examination for each classification shall be graded separately. Scores for each part shall be continuous (e.g. 1 to 100) or discrete (e.g. pass/fail). Weighting of the various parts of the examination shall be based upon the results of the job analysis. When supported by the results of the job analysis, parts of the exam may be used to determine eligibility to compete on later parts of the exam, and such parts may either be weighted or not weighted in the computation of the final score. Passing scores will be determined after the examination by the Civil Service examiner together with the Secretary. Determination of the passing score will be based on the results of the job analysis, analysis of examination results, consultation with subject matter experts, or other professional methods. The final grade for each candidate shall be a single score. If two or more candidates receive the same final grade, a candidate with veteran's preference will be ranked above a non-veteran. Ties between veterans and ties between non-veterans will be broken by priority of filing date on applications as indicated by the time stamp. The names of the applicants receiving a passing score shall be posted in the Commission's offices and entered on the appropriate eligible list. The grade of any applicant failing to qualify shall not be made public.

The Secretary may designate various subject matter experts as special examiners to assist in preparing and/or grading examinations. Such special examiners are required to maintain strict confidentiality and security with regard to all examination matters.

The identity of all persons taking promotional examinations shall be concealed from the examiners by use of an identification number which shall, whenever feasible, be used on all examination papers and the candidate's application when he presents himself for examination. The number shall be used from the beginning of the examination until the papers have all been rated. Any papers bearing the name of the applicant or any other identification mark, or any candidate who reveals his identification number to any member of the Commission or its staff, directly or indirectly, may be disqualified and the candidate so notified.

All forms of cheating are strictly prohibited. Cheating will result in disqualification from competition.

In promotional examinations, credit for seniority in service shall be added to the examination grade, but no credit for seniority or any other reason shall be added to an examination grade unless the applicant achieves a passing score on the examination without counting such extra credit.

B. Credit for Seniority. For those making a passing score on the examination, additional credit for seniority will be awarded.

1. Seniority credit on promotional examinations consists of credit awarded for continuous service which has not been broken by dismissal, layoff or resignation without reinstatement in the classified service of the City of Cincinnati, Board of Education and the University of Cincinnati (which includes University Hospital), except that credit for service with the University of Cincinnati shall be limited to City of Cincinnati and Board of Education employees in service as of July 1, 1977, and to University of Cincinnati service prior to July 1, 1977 when the University went under state control.

2. Seniority credit is given for service in a provisional, temporary or seasonal appointment, if such service led directly into permanent employment without a break in service. Seniority credit is also given for service in a seasonal appointment if the employee receives a permanent appointment within a year of the most recent layoff. An employee whose city service is interrupted only by military service shall receive credit for seniority on the basis of his combined city and military service.

3. A non-uniformed employee whose city service is interrupted only by a resignation under Rule 8, Section 4a, shall receive credit for his service prior to resignation. However, uniformed police and fire personnel are not entitled to seniority credit for service prior to a resignation. Additionally, in promoted fire ranks, credit is given only for service in the Fire Division. Seniority credit is not given for service as an unclassified, student, temporary, emergency, unclassified casual or federally funded (e.g., Emergency Employment Act, Public Service Employee, Comprehensive Employment Training Act, Model Cities, Pilot Cities, etc.) employee.

4. For non-uniformed employees and uniformed police personnel, credit for seniority shall equal, for the first four years of creditable service, one percent of the total grade

attainable in the promotional examination and for each of the fifth through fourteenth years of creditable service, six-tenths percent of the total grade attainable.

5. For uniformed fire personnel, credit for seniority shall equal, for the first four years of creditable service, one percent of the total grade attainable in the promotional examination and for each of the fifth through tenth years of creditable service six-tenths percent of the total grade attainable. In computing the seniority credit for uniformed fire personnel, half of the credit set forth above will be given for each half year of service.

6. If two or more candidates receive the same final grade on a promotional examination, including any additional credit, the candidate with the greatest seniority will be ranked highest. If two competitors were appointed on the same day, ties will be broken by priority of the filing date on current applications as indicated by time stamp.

Section 6. Inspection of Examination Papers.

A. The Civil Service Secretary shall set forth reasonable regulations to govern the administration of the review period including the setting of dates, times, and location for review. Examination material shall be available for inspection only after the Commission has determined its availability will not threaten the security or reuse of the examination. Inspection shall not be permitted of standardized tests prepared by experts outside the city service, where such inspection is specifically prohibited by the preparer or where such inspection would tend to reduce the validity of the test results.

After the grading of such examination papers, any participant in the examination who deems his examination papers have been erroneously graded shall have the right to appeal to the Commission.

B. Inspection of examination papers for uniformed fire positions are subject to the rules listed above in Section 6(A). However, in the case that the Commission finds an error in the rating key or answer, it shall publish a revised rating key or answer. The revised rating key or answer shall then be available to participants subsequent to such determination of error or errors. In addition, review of promotional examination materials for uniformed fire and police positions is restricted to one visit per day. Each visit is limited to a maximum of two hours. The number of visits during the entire review period shall not exceed a total of two.

Section 7. Duration of Promotional Eligible Lists.

The term of eligibility of each list shall be fixed by the Commission at not less than one year nor more than two years for the City of Cincinnati and for not less than one year nor more than two years, closing after each appointment and reopening with a full certification for the same classification for the Board of Education.

Section 8. Certification of Promotions.

A. *Uniformed Services:* Whenever a vacancy occurs in a promoted rank in the Police or Fire services, except for the rank of Police Chief and Assistant Police Chief or Fire Chief and Assistant Fire Chief, only the person having the highest rating on the appropriate eligible list shall be certified.

B. *Non-Uniformed Services:* Whenever a vacancy occurs and a promotional eligible list exists for the classification in employing units of the city service, the one person (AFSCME), three persons (Non-Represented) or ten persons (CODE) having the highest rating on the eligible list shall be certified. A single eligible list of all passers will be established when city-wide promotional examinations are given. Employing Unit lists will be used unless superseded by a collective bargaining agreement.

Section 9. Promotion Without Examination.

The Commission recognizes the following situations in which it may authorize promotion of an eligible employee without competition:

A. If a vacancy exists in a classification requiring peculiar and exceptional qualifications of a scientific, managerial, professional or educational nature, and the appointing authority establishes in writing to the satisfaction of the Commission that only one employee of the department has such qualifications, promotion may be approved.

B. If a classification has been established with advance approval of the Commission for the purpose of training an employee for promotion to a higher classification, and the selection of the employee has been made with due regard for the requirements of the higher classification, the Commission may, upon recommendation of the appointing authority, approve the promotion without examination upon completion of suitable job training and satisfactory job performance as prescribed in the class specification for the higher classification. With advance approval of the Commission, a classification may be established for the purpose of training an employee for promotion to a higher classification upon completion of suitable job training and satisfactory job performance as prescribe in the class specification for the higher classification. When these qualifications have been met, and upon the recommendation of the agency head, the Commission may approve promotion without examination.

C. If a vacancy exists in a classification other than sworn police and fire classifications in a given employing unit where there is no eligibility list from which a certified appointment may be made, and there is one qualified and interested employee for AFSCME, three or fewer qualified and interested employees for Non Represented or ten or fewer qualified and interested for CODE, the appointing authority may request and the Commission may approve a promotion without examination.

Section 10. Temporary Promotions.

The Civil Service Commission may approve an interim or temporary promotion to a higher classification when requested by a department head. Temporary promotions may be made due to sickness, disability or other absence of a regular employee, or due to a position vacancy pending filling of the position permanently. The employee recommended for temporary promotion must meet the qualification and eligibility requirements of the higher classification. All such temporary promotions shall be recorded in the minutes of the Commission. Temporary promotions may be made for a period not to exceed three pay periods (six weeks), after which the promotion must be rotated among all other interested and qualified eligibles in the employing

unit. The Commission will consider requests for exception to the rotation requirement where it can be shown that a serious operational problem and/or serious inequity would result from the rotation. Requests for temporary promotion shall include:

A. The name of the vacant classification and number of vacancies;

B. Number of qualified and eligible employees for the promotion;

C. The plan for rotation, including designation of pay periods each nominee will serve, or plan against rotation; and

D. Reasons for the plan.

Section 11. Alternative Examination Dates and Special Arrangements.

Whenever, because of illness, injury or religious belief, an applicant for promotional examination is unable to sit for the exam on the scheduled date, time and/or location, he may request from the Commission an alternative schedule or special arrangement. Approval for an alternative schedule or special arrangement shall only be given if the security and/or integrity of the examination can be maintained, and it does not add substantial cost or time to be incurred in the judgment of the Commission.

Section 12. Examination Monitor.

No persons other than authorized members of the Commission's staff or, in the case of the Board of Education, authorized members of the Civil Service Personnel Office staff, or other persons approved by the Commission or Secretary, shall act as monitors or spectators while an examination is being conducted.

Section 13. Twelve Month Rule.

Employees who accept a non-represented position due to promotion or demotion cannot voluntarily or otherwise leave the position for at least twelve months from the first day in the new position.

RULE 11. TRANSFERS

Section 1. Interdepartmental Transfers.

An employee in the classified service who has served the required probationary period in his current classification may be transferred from a position in one department to a position in the same or similar class and same pay (based on top salary steps) for which they are qualified, in another department, with the consent of the employee to be transferred and the director of the department to which the employee is to be transferred, with the approval of the Civil Service Commission. An additional probationary period is not given in such interdepartmental transfers.

Employees of the Board of Education may not transfer to a City position, nor may City employees transfer to a Board position; employees of the City and the Board of Education may apply for open to the public entry-level positions in either jurisdiction for which they are qualified.

Nothing stated here regarding transfers shall be construed to interfere with the right of the city Manager or other appointing authorities to assign or reassign employees within a given class among the various departments under their control as deemed in the best interest of the service (Rule 8, section 6).

Section 2. Assignment to Other Work.

An employee in the classified service may be assigned to work other than that described in the specifications of his classification but of the same general level of respon-

sibility for a period of thirty calendar days without notice to the Commission. Such an assignment shall involve no change in compensation. No person shall be assigned for more than thirty calendar days on other duties than those implied by his class title unless he has qualified through competitive examination and is appointed in accordance with these rules.

Section 3. Transfer of Unclassified Employees.

Whenever, by reason of reorganization of one or more departments, divisions or bureaus of the city service, an employee in the unclassified service is not needed or his position is abolished in such unclassified service, the employee, with the approval of the City Manager or other chief appointing authority and the Civil Service Commission, may be transferred to a vacant position with similar duties in the classified service in the same or other departments, divisions or bureaus. Only employees who have occupied such unclassified service positions for two or more years may be transferred to the classified service. No such transfer shall be made to a position occupied by a regularly appointed employee in the classified service or to a position for which an employee is on an eligible list by reason of layoff or reclassification.

Section 4.

Employees who accept a non-represented position due to transfer cannot voluntarily or otherwise leave the position for at least twelve months from the first day in the new position.

RULE 12. LAYOFF AND RECALL PROCEDURES

The following are the layoff and recall procedures unless superseded by a collective bargaining agreement:

Section 1. Procedure for Layoff in Non-Uniformed Classifications.

Employees may be laid off as a result of lack of funds within an agency. The appointing authority shall determine whether a lack of funds exists. Employees may be laid off as a result of lack of work within an agency. The appointing authority shall determine whether a lack of work exists. Employees may be laid off as a result of abolishment of positions within an agency. The appointing authority shall determine whether any positions should be abolished. Lack of funds, lack of work and abolishment are used here as defined by ORC 124.321. If there is a reduction of the work force, the appointing authority shall follow the procedures for laying off employees within each employing unit, unless otherwise stated, subject to the following modifications:

A. The employee whose position has been abolished shall have the right to fill an available vacancy within the employee's classification;

B. If the employee whose position has been abolished has more retention points than any other employee serving in the same classification, then the employee with the fewest retention points shall be displaced;

C. If the employee whose position has been abolished has the fewest retention points in the classification, the employee shall have the right to fill an available vacancy in a lower classification in the classification series;

D. If the employee whose position has been abolished has the fewest retention points in the classification, the employee shall displace the employee with the fewest retention points in the next or successively lower classification in the classification series;

E. In the event of the four actions described not occurring, the employee shall be laid off.

Section 2. Appointment Categories and Priorities.

Employees shall be laid off in the order set forth in this section within the primary ap-

pointment categories of part time probationary, part time permanent, full time probationary, full time permanent. Whenever a reduction in force is necessary within each of the primary appointment categories, temporary, then permanent employees within the employing unit within the classification series shall be laid off in the following order:

A. Temporary appointed employees;

B. Permanent appointed employees still on probation;

C. Permanent appointed employees who have successfully completed probation;

Within each of the above categories, part time employees (i.e. less than 75 percent work time) must be laid off before full time employees within the employing unit within the classification series.

Section 3. Displacement Procedures.

A laid-off employee has the right to displace the employee with the fewest retention points in the classification from which the employee was laid off or in a lower or equivalent classification, in the following order:

A. Within the classification from which the employee was laid off;

B. Within the classification series from which the employee was laid off.

An employee laid off in the classified service shall displace the employee within the same employing unit in the following manner:

A. Each laid off employee possessing more retention points shall displace the employee with the fewest retention points in the next lower classification or successively lower classification in the same classification series; except that a laid-off provisional employee shall not have the right to displace a certified employee;

B. Any employee displaced by an employee possessing more retention points shall displace the employee with the fewest retention points in the next lower classification or successively lower classification in the same classification series; except that a displaced provisional employee shall not displace a certified employee. This process shall continue, if necessary, until the employee with the fewest retention points in the lowest classification of the classification series of the same layoff jurisdiction or appointing authority has been reached and if necessary, laid off.

The Commission shall presume that any laid off employee will exercise their displacement rights. Employees not wishing to exercise their displacement rights shall notify the principal appointive officer of their department or appointing authority, in writing, of their intention within five working days after receiving notice of layoff. Employees not wishing to exercise their displacement rights will be laid off.

No employee shall displace an employee for whose position or classification there exists special minimum qualifications, as established by a position description, classification specifications, or by bona fide occupation qualification, unless the employee desiring to displace another employee possesses the requisite minimum qualifications for the position or classification.

Section 4. Retention Points.

Retention points need to be calculated for permanent employees only. An employee's total retention points shall be the sum of the base retention points plus the retention points assigned for continuous service and for relative efficiency in service.

A. *Credit for Continuous Service:* Credit for a complete month of service will be

given for any calendar month in which an employee is employed in the layoff jurisdiction as established under these rules. Each employee is to receive 2.175 retention points for each completed month of continuous service in the layoff jurisdiction. Authorized military leave or Family Medical Leave Act (FMLA) shall not be considered as an interruption of continuous service. Retention points will not be given for service in the fire or police forces, nor for service as a student, temporary or emergency employee, nor for service as an Emergency Employment Act or Public Service Employee or other similar type of employee. Service shall be considered to be noncontinuous when an employee:

1. Quits or resigns; however, if resignation is followed by reinstatement within one year, credit for continuous service prior to resignation will be given but no credit will be given for the time between resignation and reinstatement;
2. Is discharged for just cause;
3. Is laid off for a period of more than twelve (12) consecutive months (Non Represented), thirty-six (36) consecutive months (AFSCME) or forty-eight (48) consecutive months (CODE). If an employee is laid off and recalled, credit for continuous service prior to the layoff will be given but no credit will be given for the time the employee was actually laid off;
4. Transfers to the unclassified service and returns to the classified service. Credit for continuous service prior to the transfer to the unclassified service and following return to the classified service will be given but no credit will be given for the time served in the unclassified service.

B. *Base Retention Points:* Two hundred (200) additional points are added to those earned in section A to yield the employee's total seniority points.

C. *Credit for Efficiency:*

CITY OF CINCINNATI	
Performance Evaluation	**Point Value**
Exceptional	2
Exceeds Expectations	1.5
Meets Expectations	1
Needs Improvement	.5
Unacceptable	0

BOARD OF EDUCATION	
Performance Evaluation	**Point Value**
Excellent	20
Very Good	15
Satisfactory	10
Improvement Needed	0
Unsatisfactory	0

Section 5. Recall Procedure for Non-Uniformed Employees (unless superseded by a collective bargaining agreement).

A. Employees who have been laid off or have, by virtue of exercising their displacement rights, been displaced to a lower classification in their classification series, shall be placed on appropriate layoff lists. Those employees with the most retention points shall be placed at the top of the layoff list to be followed by employees ranked in descending total retention order. Laid-off employees shall be placed on layoff lists for each classification in the classification series equal to or lower than the classification in which the employee was employed at the time of layoff.

B. An employee who is laid off retains reinstatement rights in the appointing authority from which he was laid off. Reinstate-

ment rights continue for one year (Non Represented), thirty-six months (AFSCME) and forty-eight months (CODE) from the date of layoff. During this one-year period, thirty-six month period or forty-eight month period, in any layoff jurisdiction in which an appointing authority has an employee on a layoff list, the appointing authority shall not hire or promote anyone into a vacancy in that classification until all laid-off persons on a layoff list for that classification are reinstated or decline the position when it is offered.

C. Each laid off or displaced employee, in addition to reinstatement rights within the employee's appointing authority, shall have the right of service reemployment with other appointing authorities within the layoff jurisdiction but only in the same classification from which the employee was initially laid off or displaced. Layoff lists for each appointing authority must be exhausted before jurisdictional reemployment layoff lists are used.

D. Any employee accepting or declining reinstatement to the same classification and same appointment type from which the employee was laid off or displaced shall be removed from the appointing authority's layoff list.

E. Any employee accepting or declining reemployment to the same classification and the same appointment type from which the employee was laid off or displaced shall be removed from the jurisdictional layoff list.

F. An employee who does not exercise his option to displace under Section 3 of this rule shall only be entitled to reinstatement or reemployment in the classification from which the employee was displaced or laid off.

G. An employee who declines reinstatement to a classification lower in the classification series than the classification from which the employee was laid off or displaced, shall thereafter only be entitled to reinstatement to a classification higher, up to and including the classification from which the employee was laid off or displaced, in the classification series than the classification that was declined.

H. Any employee reinstated or reemployed under this section shall not serve a period upon reinstatement or employment except than an employee laid off during an original or promotional probationary period shall begin a new probationary period.

Section 6. Layoff and Displacement Procedures for Uniformed Police and Fire Personnel.

Shall be in accordance with ORC 124.37 unless otherwise modified by applicable collective bargaining agreements.

Section 7. Appeals.

An employee may appeal a layoff, or displacement which is the result of a layoff, to the Civil Service Commission. The appeal shall be filed or postmarked no later than ten days after receipt of the notice of layoff or after the date the employee is displaced. In cases involving the laying off of classified employees the affected employee may appeal the decision of the Civil Service Commission to the common pleas court within the time allowed by law.

RULE 13. PERFORMANCE RECORDS

Classified employees shall be rated or evaluated with respect to performance once during each calendar year. Each employee shall be evaluated by his immediate supervisor. If an employee receives approximately equal supervision from two persons, both supervisors shall cooperate in and sign the evaluation. All forms and methods for evaluating performance shall be approved by the Civil Service Commission. Each employee shall be informed of his performance rating.

Section 1. Probationary Performance Reports.

A performance evaluation shall be completed ten days prior to the conclusion of the probationary period, unless the employee fails probation, in which case the final evaluation will be made at the time of removal. The final probationary evaluation shall state whether the employee is to be retained or removed.

RULE 14. REDUCTION OR DEMOTION

Section 1. Voluntary Demotion.

An employee may, with the agreement of the department head and the approval of the Civil Service Commission, be reclassified and transferred to a vacant position, which he is qualified to fill, in a class having lower compensation.

Section 2. Involuntary Demotion Resulting from Disability.

When an employee becomes disabled and cannot perform the duties of his classification, he may, upon request of the department head or upon his own request, be reclassified and transferred to a vacant position, which he is able to fill, in a class having lower compensation. He first shall be served with a written notice of such demotion and have a fair chance to file an explanation. Complete facts regarding such a change in classification shall be reported to the Commission in the manner set forth in appeals from dismissals (see Rule 17). The reclassification shall not become effective until approved by the Commission.

An employee demoted as a result of a disability may, or the department head may, at any time after the effective date of a demotion request the Civil Service Commission to reconsider the reclassification of the demoted employee to the classification from which the employee was previously demoted, provided that such appeal shall not be filed after the date of service eligibility retirement. The demoted employee must pass an examination administered by the City Physician, or by a licensed physician designated by the City physician, showing that the employee has recovered from the disability.

Section 3.

Any permanent employee who has been voluntarily demoted and is in good standing may be:

A. Reinstated to a vacancy in his former classification with the agreement of the department head and the approval of the Commission, within a year from the date of the voluntary demotion, provided there is no existing promotional eligible list for the classification and there are no employees who have been laid off and whose names appear on a layoff list for the classification.

B. Restored to the appropriate eligible list with the approval of the Commission within a period of one year from the date of the voluntary demotion. The employee will be placed on the eligible list in accordance with the grade he received if the list from which he was appointed is still in effect. In the case that the eligible list from which he was appointed has expired, or if the employee requesting to be restored to the eligible list for a classification from which they previously served but did not take an examination, the employee will be placed at the bottom of the appropriate eligible list.

RULE 15. SENSITIVE CLASSIFICATIONS/POSITIONS

Section 1. Criteria for Determining that a Classification or Position is Sensitive.

Certain classifications or positions shall be considered sensitive in nature if the duties involve any of the following factors:

1. Access to a private home;
2. Handling of money and/or negotiable instruments;
3. Inspections for granting licenses, approval of work being done, etc.;
4. Contact with children;
5. Access to chemicals, drugs and/or medications;
6. Exposure to possibility of bribery or extortion;
7. Opportunity for pilferage;
8. Concerned with community security (e.g., police and fire protection, water supply, computer programs);
9. Access to sensitive information;
10. Possession of weapons, e.g. firearm, chemical irritant, batons, etc.
11. Any other factor which is determined by the Commission to be a job- related concern sufficient to consider the classification as sensitive.

Section 2. Background Investigations.

The Commission shall maintain a list of sensitive job classifications or positions for which background investigations shall comprise a portion of the selection process. Applicants competing on entrance or promotional examinations for a classification or position which is considered sensitive must submit to a background investigation, after a department has determined that the applicant is qualified and has made a contingent offer of employment. Such rejection or removal shall be accomplished by a written notice from the Secretary, and the applicant shall have the right to appeal such removal or rejection to the Civil Service Commission.

All background investigations for sensitive classifications or positions shall be initiated by the Human Resources Department. The Human Resources Department shall notify the appropriate investigative agency of the need to conduct background investigations for certain applicants. The results of the background investigations shall be transmitted in confidence by the investigative agency to the Human Resources Department. The Secretary may notify the principal appointive officer of the results of such an investigation for the purpose of removing the applicant from the selection process, or if the background investigation results in information which adversely affects the applicants' performance in the classification or position in which he is currently serving.

Classification	Reason Code(s)
Accountant & Senior Accountant	
Administrative Specialist (HR related duties, Health/Vital Records Section)	6,9
Administrative Technician (Human Resources, Health/Vital Records Section)	6,9
Airport Manager	
Assistant City Manager	
Assistant Director of Human Resources	6,9
Assistant Finance Director	
Assistant Fire Alarm Operator and Dispatcher*	8
Assistant Health Laboratory Manager*	
Assistant Operator and Dispatcher	8
Assistant to the City Manager	
Automotive Mechanic	7
Automotive Mechanic Helper	7
Budget & Evaluation Director	
Building Plans and Examiner Analyst	3
Buyer & Senior Buyer	2,6
Case Worker Associate	1,4,7,8
CCA Director	
Chemist & Senior Chemist	5,8
City Solicitor	
City Treasurer & Deputy City Treasurer	2
Clerk/Clerk Typist 2 (Health/Vital Records Section)	6,9
Clerk Typist 3 (Human Resources)	6,9
Clinical Medical Laboratory Technician	5
Community Center Director	4
Contract Compliance Officer	
Contract Compliance Specialist & Senior Contract Compliance Specialist	3,6
Computer Operator*	8
Computer Programmer Analyst	8
Computer Systems Analyst	8
Crime Analyst	1,2,4,5,6,7,8
Customer Relations Representative (Health/Vital Records Section)	6,9
Dental Assistant	5
Dental Hygienist	5
Division Manager	
Economic Development Director	
Emergency 911 Operator	9
Environmental Programs Manager	
Environmental Safety Specialist & Senior Environmental Safety Specialist	
Fire Recruit	2
Health Laboratory Director*	
Home Health Aide	1,5,7
Human Resources Analyst & Senior Human Resources Analyst	
Information Technology Coordinator	
Industrial Waste Inspector & Industrial Waste Investigator	3,6,8
Inspector	1,3,6

Classification	Reason Code(s)
Internal Audit Manager	
Internal Auditor & Senior Internal Auditor	
Laboratory Technician	5
Litter Control Officer	3,6,10
Medical Assistant	5
Nature Education Center Director	4
Nurse Practitioner	1,5
Park Naturalist	4
Parking Attendant*	2
Parking Enforcement Officer*	6,10
Parking Meter Collector*	2
Parking Superintendent	
Pension Fund Manager	
Pharmacist	5
Pharmacy Director	
Pharmacy Technician	5
Plant Operator (Water Works)	5,8
Police Recruit	1,2,3,4,5,6,7,8,10
Public Health Nurse	1,5
Public Vehicle Investigator	6
Radio Operator Technician	6
Reproduction Machine Operator	7,9
Sanitarian in Training, Sanitarian & Senior Sanitarian	1,3,4,5,6,7,8
Senior Computer Programmer Analyst	8
Sewer Construction Inspector	6
Storekeeper	7
Supervising Human Resources Analyst	6,9
Supervising Management Analyst (Internal Audit)	
Technical Systems Analyst	8
Utility Technician	1
Vital Statistics Coordinator	
Water Customer Service Representative	1,2
Water Works Dispatcher	2
Water Works Guard	8,10
Water Works Valve Operator	8

RULE 16. DISCIPLINARY ACTION

Section 1. Reduction, Suspension and Dismissal.

The tenure of every employee shall be during good behavior and efficient service and no such employee shall be reduced in pay or classification, suspended, or dismissed except for incompetency, inefficiency, dishonesty, substance abuse, immoral conduct, insubordination, discourteous treatment of the public, neglect of duty, violation of any policy or work rule of the officer's or employee's appointing authority, violation of the rules of the Commission, or any other failure of good behavior. In any case of reduction, suspension of more than three working days, or dismissal, the appointing authority shall furnish the employee with a copy of the order of reduction, suspension or dismissal, which order shall state the reasons therefore. Such order shall be filed with the Commission. Copies of memoranda and written reprimands which demonstrate the reason(s) for disciplinary action must be maintained. Disciplinary action for inefficiency, failure of good behavior, and/or any other item(s) listed above can result in the following:

A. Reduction - an appointing authority may demote an employee from his classification to a lower related classification for purposes of discipline. An appointing authority may also reduce an employee's pay within the classification he is presently serving for purposes of discipline.

B. Suspension - an appointing authority may terminate an employee's employment and compensation for a fixed period of time for the purpose of discipline.

C. Dismissal - an appointing authority may terminate an employee's employment. Employees may be dismissed as a result of an accumulation of acts of lesser consequences.

Additional grounds for dismissal are:

1. Absence from duty without permission; or
2. Absence from duty by an employee for three consecutive days without any explanation within that period, or his failure to return from leave of absence after the leave has expired or been revoked.

The appropriate department shall immediately notify the employee of the dismissal by certified mail. Notice of such dismissal is sufficient if mailed to the employee's last known address as specified by Personnel Policies and Procedures Policy No. 2.5. The explanation referred to above must be made to the employee's crew leader, supervisor, or other official as specified by the department or division regulations. If within ten days after the last day of actual work prior to the unexplained absence the employee should furnish to the appointing authority a satisfactory explanation of his absence, an entry of dismissal may be set aside by the recommendation of the appointing authority with the approval of the Commission. Furthermore, an employee may request a hearing by his agency, during that same ten day period, to consider the charges against him and allow an opportunity to satisfactorily explain his absence.

The dismissal of an employee will not become effective until the appointing authority has held a hearing at the department/division level to permit the employee to present matters in his defense and has sent written notice of dismissal to the employee. The written notice must contain one or more of the statutory reasons or grounds for dismissal together with specifications and facts

as will enable the employee to be placed fairly upon his defense. A copy of the notice of dismissal, including specifications must be filed with the Commission. Exception to the requirement for such a hearing are dismissals resulting from failure of probation and for reasons outlined in C (2) above.

Section 2. Appeal.

Within ten calendar days following the filing of such order resulting in reduction, suspension of more than three working days, or dismissal, the employee may file an appeal, in writing, with the Commission. In the event such an appeal is filed, the Commission shall forthwith notify the appointing authority and shall hear, or appoint a trial board to hear, such appeal within thirty days from and after its filing with the Commission, or within such reasonable additional time as determined by the Commission and it may affirm, disaffirm, or modify the judgment of the appointing authority.

In cases of dismissal or reduction in pay for disciplinary reasons, either the appointing authority or the officer or the employee may appeal from the decision of the Commission to the court of common pleas of Hamilton County.

In the case of the suspension for any period of time, or demotion, or dismissal of a chief of police or fire chief or any sworn, uniformed member of the Police or Fire Division, the appointing authority shall furnish such chief or member of a division with a copy of the order of suspension, demotion or dismissal, which order shall state the reasons for such action. Such order shall be filed with the Commission. Within ten days following the filing of such order such chief or member of a division may file an appeal, in writing, with the Commission. In the event such appeal is filed, the Commission shall forthwith notify the appointing authority and shall hear, or appoint a trial board to hear, such appeal within thirty days or within such reasonable additional time as determined by the Commission from and after its filing with the Commission, and it may affirm, disaffirm or modify the judgment of the appointing authority. An appeal on questions of law and fact may be had from the decision of the Commission to the court of common pleas for Hamilton County. Such appeal shall be taken within thirty days from the finding of the Commission.

The Commission may appoint a Trial Board, consisting of one, two or three members, providing that at least one of the members shall be a member of the Commission who shall act as Chairperson. The Trial Board may hear appeals of any matter within the jurisdiction of the Commission, and shall recommend its disposition to the Commission. Determination of an appeal is not final until reviewed and acted upon by the full Commission. The Commission may alter, amend, affirm or reverse the recommendation of the Trial Board, or may order a rehearing of the appeal.

Section 3. Felony Conviction.

An employee of the City of Cincinnati convicted of a felony immediately forfeits their status as a classified employee in public employment on and after the date of the conviction for the felony. If an officer or employee is removed under this section as a result of being convicted of a felony or is subsequently convicted of a felony that involves the same conduct that was the basis for removal, the officer or employee is barred from receiving any compensation after the removal notwithstanding any modifications or disaffirmance of the removal, unless the conviction for the felony is subsequently reversed or annulled. Any person removed for conviction of a felony is entitled to a cash

payment for any accrued but unused personal, compensatory time and vacation leave as authorized by law.

As used in the section, "felony" means any of the following: (1) a felony that is an offense of violence as defined by Section 2901.01 of the Ohio Revised Code (ORC); (2) a felony that is a felony drug abuse offense as defined by Section 2925.01 of the ORC; (3) a felony under the laws of this state or the United States that is a crime of moral turpitude; (4) a felony involving dishonest, fraud or theft; or (5) a felony that is a violation of Section 2921.05, 2921.32, 2921.42 of the ORC.

RULE 17. APPEAL TO THE COMMISSION, HEARINGS AND COMMISSION ACTION

Section 1. Appeals to the Commission of Disciplinary Action, Layoff and Displacements, Criminal Background Check, and Minimum Qualifications.

An employee may appeal an order of dismissal, separation, demotion, suspension in excess of three working days, displacements, layoffs, results of a criminal background check or failure to meet the minimum qualifications for an Open Competitive, Non Competitive or Promotional examination by filing a notice of appeal with the Commission.

A. The notice of appeal must be in writing and filed no later than ten calendar days after the order of dismissal, demotion, suspension, displacement, layoff, failure to hire based on the criminal back ground check or failure to meet the minimum qualifications for a classification has been filed by the appointing authority with the Civil Service Commission.

B. Contents of Appeals: All appeals to the Commission shall be written. Notices of appeals should include the following information:

1. The appellant's name, address and telephone number.
2. The name of the appointing authority and/or department/division.
3. A description or summary of the action which is being appealed.

Failure to supply the information listed above may result in dismissal of the appeal. Prior to dismissing the appeal, the Commission shall attempt to obtain the required information from the appellant. Appellants shall notify the Commission, in writing of any change of address during the pendency of the appeal.

C. Upon receipt of such an appeal, the Commission shall forthwith notify the appointing authority and shall hear, or appoint a trial board to hear such appeal within thirty calendar days after the time stamped date of receipt of the written appeal or within such a reasonable additional time as determined by the Commission. Written notice shall be given to the appellant and to the appointing authority of the time and place of hearing of the appeal. The Commission may affirm, disaffirm or modify the judgment of the appointing authority.

D. Notice of Hearing: Parties (the appellant and the department) will be notified by the Commission in writing of the scheduled hearing at least ten working days prior to such hearing. Parties wishing to reschedule a hearing must do so in writing at least five working days prior to the scheduled hearing.

E. Hearing Proceedings: Hearings shall be open to the public; however, no person may take photographs (still or otherwise) during the appeal proceedings. The proceedings shall be as informal as is compatible with the requirements of justice. The Secretary shall furnish to the Commission, as official documents comprising the record of appeal, the Notice of Appeal, a copy of the Notice of Disciplinary Action, Separation or Layoff (Form 32) pertaining to the appellant, and a copy of the appellant's Civil Service employment record, including past disciplinary actions, if any. The Commission shall hear evidence upon the charges and specifications as filed by the appointing authority.

1. Order of Proof - Disciplinary Appeals shall be as follows:

   The appointing authority shall present his evidence in support of the charges. The appellant shall then produce such evidence as he may wish to offer in his defense. The parties in interest may then offer rebuttal evidence. The Commission in its discretion may hear arguments.

2. Order of Proof - All other Appeals shall be the reverse of 1 above.

3. Evidence and Counsel - The admission of the evidence shall be governed by the decision of the Civil Service Commission or trial hearing board. The Commission shall have the power to subpoena and require the attendance of witnesses; to subpoena the production of pertinent documents; and to administer oaths. The appointing authority may be represented by the City Solicitor, assistant city solicitors or other counsel designated by the City Solicitor. The appellant may also be represented by legal counsel.

4. Failure of Parties to Appear - If the employee shall fail to appear at the time fixed for the hearing, the Commission shall hear the evidence and render judgment thereon. If the appointing authority shall fail to appear at the time fixed for the hearing, and if no evidence is offered in support of his charge or charges, the Commission may render judgment as by default or may hear evidence offered by the employee and render judgment thereon. The Commission shall forthwith notify the appointing authority and the employee of its judgment.

5. Decision Rendered - The Commission shall, after due consideration, render its judgment affirming, disaffirming or modifying the action of the appointing authority as appropriate under the facts of the case. The decision rendered shall be officially recorded in the minutes and copies shall be forwarded to the appellant and to the appointing authority.

F. Resignation Before Decision: The acceptance by an appointing authority of the resignation of a person dismissed before final action on the part of the Commission will be considered a withdrawal of the charges, and the separation of the employee concerned shall be recorded as a resignation not in good standing and the proceedings shall be dismissed without judgment.

G. Disqualification for Promotional Examination or for Reappointment: An employee who is demoted for disciplinary reasons is ineligible for a promo-

tional examination within one year of the effective date of his demotion. An employee who is dismissed for misconduct or who resigns while not in good standing shall be disqualified from taking any civil service examination for two years thereafter, and his name shall be removed from all eligible lists, unless, in the judgment of the Commission, the cause of his dismissal or resignation under charges will not affect the possibility of his usefulness in some other type of employment.

Section 2. Appeals to the Commission for All Other Actions.

An employee may appeal the results of a classification study, rejection of application, or the grading of an examination by filing a notice of appeal with the Civil Service Commission. The notice of appeal must be in writing and filed with the Commission not later than fourteen calendar days from the date of notice.

A. *Contents of Appeals:* All appeals to the Commission shall be written. Notices of appeal should include the following information:

1. The appellant's name, address and telephone number;
2. The name of the appointing authority and/or department/division;
3. A description or summary of the action which is being appealed.

Failure to supply the information listed above may result in dismissal of the appeal. Prior to dismissing the appeal, the Commission shall attempt to obtain the required information from the appellant. Appellants shall notify the Commission, in writing, of any change of address during the pendency of the appeal.

B. *Procedure in Classification Appeals:* The parties in appeals of classification studies are the employee who is incumbent in the position, his principal appointive officer, and the authority which conduct the classification study.

The Commission shall conduct a fact-finding hearing to determine the duties which are performed by the incumbent in the affected position. The witnesses shall be limited to the affected employee, his immediate supervisor, a representative of the appointing authority and the designee of the authority who conducted the classification study unless there is substantial disparity in their testimony or other reason to believe their testimony is inaccurate, to be determined by the Commission. Examination of the witnesses shall be conducted by the Commission, subject to further limited examination by the parties.

The Commission shall compare the duties performed by the incumbent employee to the appropriate class specifications and determine the classification which most appropriately describes the duties performed in the affected position.

RULE 18. VIOLATION OF THE CIVIL SERVICE COMMISSION RULES AND PENALTY

Section 1. Violations.

After a rule has been duly established and published by the Civil Service Commission, no person shall make an appointment to an office or select a person from employment contrary to such rule, or willfully refuse or neglect to comply with or conform to such rules, or willfully violate any of such rules unless superseded by provisions of Ohio Revised Code Section 4117 or court orders.

Section 2. Penalty.

Whoever violates Section 1 above shall be fined not less than fifty nor more than five

hundred dollars or be imprisoned not more than six months, or both. If any person who is convicted of violating these rules holds any public office or place of public employment, such office or position shall by virtue of such conviction be rendered vacant. These penalties will be enforced by the appropriate governmental agencies pursuant to state law.

RULE 19. AMENDMENTS TO RULES

A copy of each proposed rule, rescission or amendment to such Rules shall be filed with the Commission at least thirty calendar days prior to any public hearing on the proposed rule. Filing, for purposes of this rule, shall mean the notification to each appointing authority of the particular proposed rule; rescission and amendments shall be made available to any citizen upon request. Notice shall be provided at least thirty calendar days prior to any hearing regarding adoption, rescission or amendment of any rule. Notice of hearing shall be placed in the Commission's minutes and shall run for three weeks. The notice shall contain the date, time and place of the hearing.

RULE 20. PUBLIC NOTICE OF REGULAR AND SPECIAL MEETINGS

Notice of the time and place of regularly scheduled meetings of the Civil Service Commission shall be published in advance of such meeting with the Clerk of Council. Notice of the time, place and purpose of all special meetings shall be posted at the main office of the Civil Service Commission, and outside the office of the Clerk of Council and on the City of Cincinnati's website.

Special meetings of the Civil Service Commission shall not be held unless twenty four hours advance notice is given to the news media that have requested notification. In the event of an emergency requiring immediate official action, the member(s) calling such emergency meeting shall notify the news media that have requested notification immediately of the time, place and purpose of such meeting. To request notification, the news media shall submit a written request to the Civil Service Commission at its office, Centennial Plaza Two, 805 Central Avenue, Suite 200. Such request shall include the name and address of the news media making the request and a telephone number for use by the Civil Service Commission. The notification required by this rule shall be made by telephone call to the number included in the news media request. The responsibility for keeping the required information current shall be that of the news media making the request.

Any person who wishes to obtain advance notification of all meeting at which any specific type of public business is to be discussed shall submit a written request for notification to the Civil Service Commission. Such request shall include the name and address and telephone number of the person making the request and shall be accompanied by payment of a reasonable fee for such notification, as determined by the Civil Service Commission. Notification shall be made by mailing a copy of the agenda or a notice of the time, place and purpose of the meeting to the person requesting notification, except in the event of a special meeting such notification may be made by telephone call. The responsibility for keeping the required information current shall be that of the person making the request.

INCOME TAX RULES AND REGULATIONS*

NUMBER & TITLE

R9-A2 Assessment.
R9-I1 Income.
R15 Exception to the Tax; Exempt Income.
R17 Net Profit; Income Subject to Net Profit Tax; Alternative Apportionment.
R21 Net Operating Loss (NOL).
R23 Collection at Source; Withholding from Qualifying Wages.
R25 Qualifying Wages Withholding Return; List of Employees.
R31 Withholding From Casino, Lottery, and Sports Gaming Winnings.
R47 Credit for Tax Paid to Another Municipality/ Joint Economic Development District.
R51 Returns Must Be Filed; Time of Filing; Payment with Return.
R53 Exception to Filing Requirement; Affidavit.
R55 Extension of Time for Filing.
R59 Consolidated Return.
R61 Determination of Timely Filing and Payment.
R63 Forms for Filing; Documents Required.
R69 Amended Returns; Effect of Federal or State Tax Determination.
R71 Overpayments; Refunds.
R75 Interest, Fees, Charges and Civil Penalties for Tax Years Beginning on or After January 1, 2016.
R79 Audit.
R83 Compromise of Claim and Payment Over Time.
R97 Local Board of Review; Appeal.

Acronyms and Abbreviations Used in Rules & Regulations:

City = City of Cincinnati, Ohio

CMC = Cincinnati Municipal Code

IRC = Internal Revenue Code

MTI = Municipal Taxable Income

NOL = Net Operating Loss

ORC = Ohio Revised Code

Tax Commissioner = Tax Commissioner of the City of Cincinnati

Income Tax Division = Income Tax Division of the City of Cincinnati

R4 = Regulation related to section of Chapter 311 with the same number, e.g. CMC § 311-4

Rules & Regulations:

R9-A2 Assessment.

(a) Amended return is potential response to an assessment. The issuance of an assessment does not prevent a taxpayer from filing an amended return.

(1) For example, a taxpayer is allowed to make a correction or modification to the original return based the information conveyed in an assessment.

(2) If that modification is not sufficient, or the amended return is insufficient for some other reason, the Tax Commissioner may issue a new assessment.

(3) At that point, the taxpayer could agree with the assessment and pay, provide any information required, appeal that Assessment to the Board of Review, or file an amended return.

(4) The only prohibited action with regard to an amended return after an assessment would be for a taxpayer to submit the same return as originally submitted, without actually making substantive changes based on the assessment, and simply label it as an

*These Rules & Regulations are adopted under the authority of Cincinnati Municipal Code §311-103. They are intended to supplement Cincinnati Municipal Code Chapter 311, "City of Cincinnati Income Tax." In the event of any conflict between the rules and regulations and Chapter 311, the language of Chapter 311 controls.

amended return. The ability to make an amended return cannot be used as a delay tactic.

(b) Refund request with return does not require assessment. Under CMC §§ 311-A2 and 311-71(c)(ii), when a taxpayer claims a refund request with his/her originally filed annual income tax return, the Tax Commissioner is not required to issue an assessment.

(1) The taxpayer who receives a denial of a refund request may then request an assessment to enable the taxpayer to appeal the decision to the Board of Review.

(2) But, the Tax Commissioner's initial response to a refund request does not need to be an assessment and need not be sent via certified mail as required for assessments under CMC § 311-95.

(c) Refund request sent separately from original return. When a taxpayer submits a refund request separately from the taxpayer's originally filed annual income tax return, the Tax Commissioner must issue an assessment.

(1) In that case, the initial denial of the refund request is an assessment under CMC §311-9-A2, and it must be labeled as such and sent by certified mail.

(2) The taxpayer can immediately appeal the decision to the Board of Review, if the taxpayer so chooses.

R9-I1 Income.

(a) Income from partnerships. A partner's distributive share of any item or class of items of income, gain, loss, deduction, or credit of the partnership shall be determined by the partnership agreement.

(1) If the partnership agreement does not provide for a proper allocation of income, gain, loss, deduction, or credit (or item thereof) to a partner as defined in IRC §704, the partner's distributive share shall be determined in accordance with such partner's interest in the partnership.

(2) Generally, a partner's interest in a partnership is determined by the profit sharing percentage reported on the Federal Schedule K-1. Taxpayer must include copies of the K-1 when filing the City's individual tax return.

(3) The Tax Commissioner has authority to determine whether a partnership agreement sufficiently explains a partner's distributive share.

(4) The Tax Commissioner also has discretion to determine that a partnership agreement does not fairly represent a partner's distributive share and to decide instead to use the partner's interest in the partnership to determine the partner's distributive share.

(5) In addition to using the Federal Schedule K-1 as the default to determine a partner's interest in a partnership, the Tax Commissioner may refer to the alternatives for determining "distributive share" discussed in the IRC, 26 U.S.C. §704.

(b) Other compensation. Generally, all income received in the form of money, property or services are considered to be taxable income unless specifically excluded in 311-15.

(1) All income earned through the taxpayer's business, as an independent contractor or from informal side jobs is self-employment income, which is fully taxable and reportable on Schedule C.

(2) Independent contractors must report all income as taxable, even if it is less than $600. Even if the taxpayer-contractor does not receive a Form 1099-MISC, the income, whatever the amount, is still reportable by the taxpayer.

(3) Fees received for babysitting, housecleaning and lawn cutting are all examples of taxable income that are reportable on Schedule C.

R15 Exception to the Tax; Exempt Income.

(a) Restricted stock awards. For purposes of CMC §311-15(s), restricted stock awards that vest over a period of time are not considered stock options and are taxable at their fair market value at the time they become vested and included in Medicare wages, as shown on the employee's IRS Form W-2.

R17 Net Profit; Income Subject to Net Profit Tax; Alternative Apportionment.

(a) Approval of alternative apportionment. When a taxpayer requests an alternative apportionment method, the taxpayer may use the apportionment method unless the Tax Commissioner disapproves the alternative method.

(b) Time limit for decision. The Tax Commissioner has a period of three years after the tax was due or after the return was filed (whichever is later) to decide to deny the requested alternative apportionment method.

(1) This time period is that established in §311-99(a), which is the time limit for this action established in §311-17(b)(ii)(2).

(2) The Tax Commissioner is not required to affirmatively approve a requested alternative apportionment method.

(3) The Tax Commissioner's failure to affirmatively approve does not equate to approval, until after the period (at least three years) established in §311-99 have passed.

(c) Ability to submit request directly to Commissioner. To avoid uncertainty, a taxpayer can request to use an alternative apportionment method by submitting the return requesting an alternative apportionment method or a change in the apportionment method directly to the Tax Commissioner.

(1) Despite the clear right of a taxpayer under 311-17(b)(ii)(2) to request an alternative apportionment method by simply accompanying the request with the tax return, if the request is instead sent directly to the Tax Commissioner as a request for an assessment, the taxpayer can expect an answer within 60 days.

(2) When submitting such a request, the taxpayer should use registered mail.

(d) Pre-2016 apportionment methods. For taxpayers who were approved to use an alternative apportionment arrangement prior to 2016, they may continue to use the same method.

(1) The taxpayer or the Tax Commissioner may request a change in accordance with §311-17 of the new Chapter 311 that came into effect January 1, 2016.

(2) However, every taxpayer already using an approved apportionment method is not required to seek re-approval of that alternative apportionment only because the new Chapter 311 has come into effect.

(e) Rental of real estate. Real estate shall include commercial property, residential property, farm property, and any other types of real property.

(1) Residents of Cincinnati are subject to taxation upon the net profits from rentals regardless of the location of the property.

(2) In accordance with CMC §311-47, residents may claim a credit for taxes paid to another municipality on rental income from property located in that other municipality.

(3) Nonresidents of the City are subject to such taxation only if the real property is situated within the City and the rental activity is deemed a business as defined in CMC §311-9-B2.

(4) Businesses owning or managing real estate are taxable only on that portion of the real estate property located in Cincinnati.

i. Taxpayer business must use separate accounting for the purpose of calculating net profit situsedto the City for property located within the City.

ii. If a taxpayer wishes to assert that using separate accounting for real estate located in the City will be unduly burdensome, the taxpayer should submit a request to the Tax Commissioner to use another method. Other methods may include the normal three-step, average ratio apportionment method established in CMC §311-17(a).

(f) Profit threshold. The net profit from rental activity is reportable provided the gross rents from all rental activities exceed $500 per month.

(1) During periods of vacancies the taxpayer must show that the properties could have been rented for more than $500 per month.

(2) In the case of commercial property, when the gross rents are based on a percentage of gross sales or net sales, the $500 requirement is disregarded and the owner is considered to be engaged in a business activity.

(3) In the case of farm rentals, when the owner shares in the crops or the gross rents are based on the receipts derived from the farm, the $500 requirement is disregarded and the owner is considered to be engaged in a business activity.

(4) Rooming houses of five or more rooms are considered businesses activities whether or not the gross rents exceed $500 per month.

R21 Net Operating Loss (NOL).

(a) Basic rule for pre-2017 NOL. A net operating loss ("NOL") sustained in any taxable year that is apportioned to the City may be applied against the net profit of succeeding tax years that is apportioned to the City.

(b) Basic rule for post-2016 NOL. A NOL sustained in any taxable year starting after January 1, 2016 is determined before apportionment of net profit and any deduction of NOL carry-forward from prior years and may be applied against the net profit of succeeding tax years before apportionment.

(c) Additional rules for utilizing the NOL carry-forward:

(1) The NOL from any taxable year may continue to be used in subsequent years until exhausted, but in no event for more than the five taxable years immediately following the year in which the loss occurred.

(2) No portion of a NOL shall be carried back against net profits of any prior year, and no portion of a NOL may offset qualifying wages.

(3) A pre-2017 NOL sustained shall be apportioned to the City in the same manner as provided under §311-17 for apportioning net profits to the City.

(4) Taxpayers cannot start utilizing post-2016 NOL until they have first utilized all pre-2017 NOL.

(d) 50% limitation for tax years 2018 to 2022.For tax years 2018 to 2022, the deduction is limited. Taxpayers are delayed from full utilization of net operating loss until taxable year 2023. This limitation is described in CMC §311-21(h) and required under ORC §718.01(E)(8)(c)(i).

(1) Taxpayers may not deduct more than 50% of the amount of the deduction "otherwise allowed" under the subsection or subdivision that establishes the amount which taxpayers will be able to deduct after 2022. The amount otherwise allowed is described as the amount of NOL necessary to reduce MTI to zero.

(2) Therefore, the City's interpretation is that the deduction is limited to the lesser amount of: 50% of the NOL carry-forward available for that tax year or 50% of the MTI computed after the Post 2016 NOL deduction.

(3) The 50% limitation is on the amount deductible in years 2018 to 2022, not on the amount of NOL that can be carried forward in those tax years.

(4) Pre-2017 NOL is not subject to the 50% limitation. NOL for tax years after 2016 will be calculated and applied on a pre-apportionment basis.

(5) With regard to what taxpayers should declare on their returns for 2018 to 2022, taxpayers will declare 100% of their NOL on their returns. They are not expected to declare only 50% of their NOL.

R23 Collection at Source; Withholding from Qualifying Wages.

(a) All employers within or doing business within the City are required to make the collections and deductions specified in CMC §311-23 for residents of the City whose services were performed outside the City.

(b) Employers who do not maintain a permanent office or place of business in the City, but who are subject to tax on net profits attributable to the City under the business apportionment percentage formula, are considered to be employers within the City and subject to the requirements of withholding specified in CMC §311-23.

(c) Wage continuation plans paid by the employer or third party agent on behalf of the employer for purpose of health, rest, recuperation, or other reward are deemed to have the same tax situs as the primary job assignment or job location of the employee.

(d) Such payments are taxable at the same ratio as the normal earnings of such employee for his primary job assignment.

(e) Severance pay is considered such a payment and is taxable.

(1) To calculate apportionment of severance pay, the Income Tax Division will use the average of the last three years' allocation percentages to determine the percentage of severance pay to be allocated to the City.

(2) This default method of calculating apportionment of severance pay may be inequitable or incorrect in the case of a given taxpayer, for example if the taxpayer spent twenty-seven years

outside of the City and then worked in the City only for the last three years of the career.

(3) Any taxpayer may therefore present to the Tax Commissioner an alternative method of calculating percentage of severance to be apportioned to the City, along with reasons using for that alternative percentage.

R25 Qualifying Wages Withholding Return; List of Employees.

(a) Employers required to file electronic W-2's will submit the file utilizing the format posted on the City's website. The City will generally update the file format by January 15th of the year the W-3 filing is due.

(b) Employers required to file electronic 1099s will submit the file utilizing the format posted on the City's website. The City will generally update the file format by January 15th of the year the W-3 filing is due.

(c) The specifications for file format conform to the Social Security Administration Publication No. 42-007, *Specifications for Filing Forms W2 Electronically (EFW2)*, with some minor changes.

R31 Withholding From Casino, Lottery, and Sports Gaming Winnings.

(a) For purposes of the withholding requirements set forth in Section 311-31, as required by Ohio Revised Code 718.031 and section 6041 of the Internal Revenue Code, as amended, if a person's winnings at a casino facility or sports gaming facility are $600 or more and if the proceeds are at least 300 times as large as the amount wagered, a casino operator, sports gaming proprietor, or video lottery terminal sales agent conducting lottery sports gaming offered in a video lottery terminal facility shall deduct, withhold, and remit municipal income tax from the person's winnings at the tax rate set forth in Section 311-3 and Article VIII Section 6c of the City Charter. The payer, at its option, may reduce the amount of the winnings by the amount of the wager.

R47 Credit for Tax Paid to Another Municipality/Joint Economic Development District.

(a) A taxpayer who claims a credit against tax paid to another municipality is required under CMC §311-47(c) to claim the credit in a timely manner in a form acceptable to the Tax Commissioner.

(b) The form required may be:

(1) A copy of the return which the taxpayer submits to the other municipality, proof that the return was submitted to that municipality such as a certified mail receipt or a certification of electronic filing, and a copy of the method of payment; or

(2) A record of the tax withheld by the municipality during the relevant calendar year.

R51 Returns Must Be Filed; Time of Filing; Payment with Return.

(a) Normal filing deadline. The filing deadline is generally the 15th day of April each year, or the 15th day of the fourth month after the end of the taxable year or period, if not the calendar year. This is the default deadline, absent an extension, under ORC §5747.08(G), CMC §§ 311-41, 311-51, and 311-63.

(b) When April 15th is on a holiday or a weekend. There are some years in which the federal filing deadline is not April 15th, because April 15th falls on a weekend or holiday. For taxpayers who file on a calendar year basis, CMC §311-41(a) states that the deadline is the federal filing deadline, rather than specifying April 15th. For all taxpayers for whom the filing deadline is in April, the

Income Tax Division may choose to allow filing on the same date as the federal filing deadline, in those years in which April 15th falls on a weekend or holiday.

R53 Exception to Filing Requirement; Affidavit.

(a) §311-53(c) requires taxpayers to submit an affidavit if they no longer live or work in the City and do not need to file a tax return or pay municipal taxes to the City.

(b) The taxpayer should also submit his or her last tax return filed with the City, to make clear to the Income Tax Division what is the final return from the taxpayer and the final year in which the taxpayer had any tax liability to the City.

(c) In lieu of filing an affidavit, a taxpayer may indicate on the annual return that the return is a "Final Return" and state the reason that filing obligation will no longer exist. The Income Tax Division will provide appropriate fields on its official return.

R55 Extension of Time for Filing.

(a) The request for an extension does not extend the time to pay the tax due; the request only extends the time to file the final return. A legally filed extension request will result in no late filing penalty being assessed if the final return is filed before the extended due date. All delinquent tax payments are subject to the interest and penalty charges based on the original due date of the return as described in CMC §§ 311-73 and 311-75, regardless of the status of an extension request.

(b) However, if any requirements are not fulfilled within the extension time period, then the taxpayer will have to pay late fees in addition to interest and penalties.

(c) Interest will accrue from the original payment due date, not from the end of the extension deadline.

R59 Consolidated Return.

(a) Taxpayers filing consolidated returns under the pre-2016 method, using separate schedules X and Y, may continue to use that method without requesting permission from the Tax Commissioner to use an alternative method for filing consolidated returns.

(b) For tax years starting with 2016, once a taxpayer elects to file a consolidated return utilizing the method identified in CMC §311-59(b)(ii), they will continue filing using the same method for at least five years.

(1) In order to request a change, the taxpayer must submit the request in writing to the Tax Commissioner before the due date of the return.

(2) The change from a consolidated return is not approved until the taxpayer receives permission in writing from the Tax Commissioner

(c) Upon review of the facts and circumstances, the Tax Commissioner may require the taxpayer to change their method of filing a consolidated return in accordance with CMC 311-59(d)(ii) or disallow any consolidated return method.

R61 Determination of Timely Filing and Payment.

(a) When any municipal income tax payment remitted electronically, such a payment was previously considered to have been made on the date the payment is credited to an account designated by the tax administrator to receive such payments.

(b) Instead, CMC §311-61 now provides that such a payment is considered to have been made on the date of the timestamp

assigned by the first electronic system receiving the payment, also in accordance with ORC 718.05(I)(2).

R63 Forms for Filing; Documents Required.

(a) Net profit tax returns - individuals. To ensure that their returns are considered a complete return, individuals must submit the following documents or copies thereof:

(1) The first page of the applicable federal return, e.g. IRS Form 1040 or 1040A. The fact that any taxpayer is not required to file a federal income tax return does not relieve him or her from filing a municipal return.

(2) A complete copy of Form W-2 or other acceptable wage statement issued by the individual's employer(s) that shows the amount of qualifying wages earned or received by the taxpayer during the tax year.

(3) Copies of IRS Forms 1099 and federal schedules C, E, F, and K-1 to support other income.

(4) Other schedules such as Form 2106, Schedule A and detailed listings are required to support expense items deducted on the federal return.

(b) Net profit tax returns - businesses. To ensure that their returns are considered a complete return, businesses must include the following documents or copies thereof:

(1) Complete copies of federal income tax returns or information returns.

(2) All pertinent schedules, forms and statements required to be submitted to the IRS.

(3) A reconciliation of municipal taxable income with the federal income tax return (Schedule X).

(4) A business apportionment formula (Schedule Y) including a reconciliation of the wages apportioned on the municipal income tax return as earned in Cincinnati with the municipal annual wage reconciliation Form W-3.

(c) All taxpayers must submit statements to certify both of the following:

(1) That the figures used in the municipal income tax return are the figures used in the return for federal income tax, adjusted to set forth only such income as is taxable under the provisions of this chapter.

(2) That the taxpayer has examined the return, including accompanying schedules and statements, and that to the best of the taxpayer's knowledge and belief, it is true, correct, and complete.

R69 Amended Returns; Effect of Federal or State Tax Determination.

(a) Under CMC §311-69(a)(iii), if a taxpayer wishes to file an amended consolidated tax return, or if the taxpayer intends to file a consolidated return after utilizing a change in method used in the prior tax year, the taxpayer must notify the Tax Commissioner in writing and mail the notice to the Tax Commissioner at the address provided on the City Website.

R71 Overpayments; Refunds.

(a) Necessary documentation. A taxpayer claiming an overpayment and requesting a refund must file a complete return providing all documentation to substantiate the claim for a refund.

(1) Such documentation includes schedules, other municipal income tax returns, and any other supporting documentation necessary to verify credits, income, or losses.

(2) If there is documentation to support any other pertinent factors on the return, it must be included as well.

(3) The return requesting refund must be accompanied by appropriate documentation whether it is filed electronically or in paper format.

(b) Interest. Under CMC §311-71(d), interest is due any time the City pays a taxpayer back for the overpayment later than 90 days after the date the taxpayer filed a complete return. If the City repays the taxpayer the overpaid amount within 90 days of receiving the complete return, no interest is due.

R75 Interest, Fees, Charges and Civil Penalties for Tax Years Beginning on or After January 1, 2016.

(a) Unpaid income tax interest rate and penalty. Under CMC §311-75(c)(i), the annual interest rate for any unpaid income tax, estimate income tax, or withholding tax is the federal short-term rate (rounded to nearest whole number) plus 5%, to be imposed and assessed each month.

(1) That short-term rate is established by the federal government in July of each year; the rate established in July of one year will be used for the interest rate for unpaid municipal income tax for the following calendar year (plus 5%).

(2) §311-75 (c)(ii) creates a penalty of 15% of the amount unpaid for income tax and estimated income tax.

(3) For withholding tax, the penalty is 50% of the amount unpaid.

(4) §311-75(c)(v) establishes a penalty of $25 per month for each failure to timely file a return, with a maximum penalty of $150.

(5) ORC 718.27(C)(3) does not allow that penalty to be applied to failure to file estimated income tax returns.

(b) Estimated tax interest rate and penalty. For the purposes of determining the interest and penalty assessed for late payment of *estimated tax due*, all overpayments from prior years will have the receive date of the date the return claiming the overpayment was due unless the return is received after the extended due date. In those cases, the overpayment will have the same receive date as the date the return claiming the overpayment was received. Withholding taxes will be considered to be paid evenly throughout the year. Estimated Tax Payments will be applied to the estimated tax due for the quarter in which they were received. Any unused payment will be applied to the oldest quarterly tax due to reduce the amount of interest assessed. The late payment penalty will be assessed for each quarter the estimated tax due was not paid in full by the quarterly due date.

Example: 2016 Estimated Tax Due = $400 per quarter for a total of $1,600. There is a 2015 overpayment of $500 and a $1,100 estimated payment made October 15, 2016.

	Est. Tax Due	*Est. Tax Paid*	*Date Due*	*Date Paid*	*Interest & Penalty*
Q-1	400	400 (OP)	4/15	4/15/ 2016	0
Q-2	400	100 (OP)	6/15	4/15/ 2016	Penalty = $300*.15 Int. = $300*Monthly rate*4 mos. late
Q-3	400	0	9/15		Penalty = $400*.15 Int. = $400*Monthly rate*1 mo. late
Q-4	400	1100	12/15	10/15/ 2016	0

R79 Audit.

(a) In order to conduct an audit, the Tax Commissioner, or any person acting in his capacity, is authorized to examine any person under oath concerning any taxable income or concerning any transaction tending to affect such income.

(b) The Commissioner is also specifically authorized to order the appearance of the local manager or representative of any taxpayer.

(c) The Tax Commissioner's powers under CMC §311-79 constitute a subpoena power.

(1) The Commissioner may subpoena the production of books, papers, and records.

(2) The Commissioner may subpoena the attendance of all persons before him when he believes such persons have knowledge of the facts concerning any supposed income or supposed transaction of the taxpayer.

(3) Reference CMC §311-999(a)(5) and (a)(6), which penalize refusal to permit the Tax Commissioner to examine books, records, etc., and refusal to appear before the Tax Commissioner if requested to produce records in response to a subpoena.

R83 Compromise of Claim and Payment Over Time.

(a) Payment plan procedures. Installment agreements are offered to taxpayers who have an outstanding balance of taxes, interest, or penalties and have expressed their inability to pay the balance in full. This agreement can only be provided to taxpayers that are current with all filings, including the current year's Declaration of Estimated Tax.

(b) Generally, taxpayers must appear in the offices of the Income Tax Division during regular business hours, review the case with an examiner, sign the plan, and make an initial payment of 10% of the tax due. A taxpayer is normally provided ten months to complete the installment plan and pay off the tax due.

(c) A husband or wife cannot sign for a spouse's liability. If a husband and wife are both on the account, and both had income that resulted in the liability, then both must sign the agreement.

(d) The taxpayer also must agree to remain in compliance with the filing requirements set forth in the Cincinnati Municipal Code for the length of the installment plan agreement. The failure of the taxpayer to timely file all required returns and/or to make required payments by the due dates may result in the entire remaining balance of the installment plan becoming due.

R97 Local Board of Review; Appeal.

(a) Two members appointed by City Council. Regarding the two members of the Board of Review who are appointed by City Council, CMC §311-97(a)(ii) states that they "may not be employees, elected officials, or contractors with the City at any time during their term or in the five (5) years immediately preceding the date of appointment."

(1) The City interprets the phrase "or contractors" to prohibit any member of an accounting or law firm from serving on the Board of Review, if his or her firm has had any contract with the City in the preceding five years.

(2) Although strict in the context of, for example, a firm with 200 or more attorneys, this interpretation is the safest one, in light of the language of §311-97 and the Ohio law which it mirrors.

(b) Member appointed by City Manager. The one member of the Board of Review who is appointed by the City Manager may have been a contractor with the City in the previous five years, or currently, or may be a City employee.

(1) The only explicit prohibition is that the member may not be Finance Direc-

tor, Tax Commissioner, or directly involved in the City's tax work, or a subordinate of one of those employees.

(2) An attorney or accountant from a firm with a contract related directly to tax also would be prohibited based on general conflict of interest principles, but the members of a firm with an unrelated City contract could potentially be appointed to the Board of Review.

BOARD OF HEALTH REGULATIONS*

Regulation

0001. Constitutionality Clause.
0005. Repealed.
0007. Tattooing and Body Piercing.
0009. Establishing Nursing Care and Fees.
00011. Regulating Transient Accommodations.
00013. Repealed.
00015. Repealed.
00017. Repealed.
00021. Repealed.
00025. Repealed.
00029. Repealed.
00041. Repealed.
00047. License Fees for the Operation of Public Swimming Pools and Spas.
00053. General Sanitation.
00054. Repealed.
00055. Regulating and Licensing the Operation of Recreational Vehicle Parks, Recreation Camps and Combined Park/Camps.
00057. Repealed.
00061. Repealed.
00065. Repealed.
00069. Repealed.
00071. Repealed.
00073. Fees for Clinic Services.
00075. Repealed.
00077. Household Sewage Treatment Systems.
00079. Fees Retail Food Establishments; Food Service Operations.
00081. Repealed.
00083. Regulation of Smoking in Public Places.
00084. Licensing of Tobacco Retailers and Prohibiting Tobacco Product Sales to Individuals Under Age Twenty-One (21).
00085. License Fees for Marinas.
00087. Fees for Vital Statistics Functions.
00089. Manufactured Home Parks.
00091. Repealed.
00093. Local Air Pollution Control Regulations.
00099. Penalties.

*Regulations of the Board of Health of the City of Cincinnati updated through March 1, 2002 as approved by the Board of Health under the authority of Article VII, Section 11 of the Charter of the City of Cincinnati.

0001. Constitutionality Clause.

Should any section, paragraph, sentence, clause, or phrase of these regulations be declared unconstitutional or invalid for any reason, the remainder of said regulations shall not be affected thereby.

0005. Repealed.

(Repealed Feb. 12, 2003)

0007. Tattooing and Body Piercing

Ohio Revised Code (ORC) 3730 Tattooing and Body Piercing and Ohio Administrative Code (OAC) 3701-9 Tattooing and Body Piercing are incorporated into this Board of Health Regulation with the following additions.
(Ordained by Res. No. 1999-05, § 1, eff. March 27, 1999)

§ 0007-1. Definitions.

(A) "Body art" means the practice of physical body adornment including tattooing, permanent cosmetics and/or body piercing as those terms are defined by OAC 3701-9-01(I), (T) and (AA), respectively. This definition does not include practices that are considered medical procedures by the state medical board, performed with medical devices that include but are not limited to biopsy or dermal punches and scalpels.

(B) "Board of Health" means the Board of Health of the City of Cincinnati.

(C) "Certificate" and "Certificate of Inspection" means the written approval required to be issued by the Board of Health pursuant to OAC 3701-9-02 as defined in OAC 3701-9-01(B) and (C) indicating that the body art establishment has been inspected by the Board of Health and meets all terms of ORC 3730 and OAC 3701-9.

(D) "Department" means the Health Department of the City of Cincinnati.

(E) "Establishment" means any place within the City of Cincinnati where body art is performed as defined by the OAC 3701-9-01(H).

(F) "Health Commissioner" means the Health Commissioner of the Board of Health of the City of Cincinnati, or the Health Commissioner's authorized representative.

(G) "Operators" means any person, firm, company, corporation or association, including their employees, agents, or contractors, that owns, controls, operates, conducts or manages a body art establishment.
(Ordained by Res. No. 1999-05, § 1, eff. March 27, 1999; a. Res. No. 2014-20, eff. Nov. 28, 2014)

§ 0007-3. Application and Operation.

(A) *Plan Submittal.* Any person seeking approval to operate a business within the boundaries of the City of Cincinnati offering body art services shall submit the "Plan Review Request Form and Application" with all supporting documentation listed on the form. All requests for plan review are to be accompanied by the fee as set forth in this Regulation and shall be submitted before construction of the establishment commences.

(B) *Plan Approval.* The Health Commissioner may issue a Certificate of Inspection for a body art establishment after review of all documentation and a complete inspection. The plan review information is only submitted once, unless the operator extensively alters the establishment that would require the re-submittal of plans.

(C) *Forms Approval.* All forms that are provided to the patron regarding a procedure are to be approved by and include all language specified by the Health Commissioner.

(D) *Safety and Sanitation.* All operators of a body art establishment shall ensure that all persons in the operation follow the requirements in the OAC 3701-9-02 through 3701-9-08.

(E) *Inspection.* A minimum of one Health Department inspection will be required prior to issuance of the Certificate of Inspection. Thereafter, at least one inspection shall be conducted by the Health Department each year.

(F) *Annual Certificate of Inspection.* An annual Certificate of Inspection may be issued to the operator after the department has received a completed application and the fee required by this Regulation and after an inspection by the Health Department.

(G) *Duration of Certificates of Inspection.* Initial Certificates of Inspection granted on or after October 1 shall be effective from the date of issuance until December 31 of the following year, unless suspended or revoked under section 3730.05 of the Revised Code. Renewal applications must be received or postmarked between November 1 and December 31 of each year. Applications received or postmarked after December 31 shall be assessed a penalty.

(H) *Time-Limited Events.* The Health Commissioner may issue a certificate for a time-limited body art establishment (such as a fair or convention) upon application and inspection of the site. Any person or entity who wishes to operate a body art establishment on a time-limited basis must apply for a time-limited certificate by submitting the following at least one week in advance of the event:

(1) An application,

(2) A diagram of the set-up including location of all equipment,

(3) A description of the method of sterilization with a copy of the latest spore testing,

(4) Copies of all forms used,

(5) Applicable fee.

(Ordained by Res. No. 1999-05, § 1, eff. March 27, 1999; a. Res. No. 2014-20, eff. Nov. 28, 2014)

§ 0007-5. Requirements of Operators.

(A) *Compliance.* All operators of body art establishments must comply with all provisions of OAC Chapter 3701-9.

(B) *Training and Education.* All person(s) involved in the operation who have access to the body art equipment shall have annual training of the type required by OAC 3701-9-04(M)(3).

(C) *Operator Responsibility.* The operator shall be responsible for all persons performing body art services within the operator's establishment.

(D) *Other Requirements.* Any additional requirements requested by the Health Commissioner.

(Ordained by Res. No. 1999-05, § 1, eff. March 27, 1999; a. Res. No. 2014-20, eff. Nov. 28, 2014)

§ 0007-7. Fees.

(A) *Permanent Body Art Establishments.*

(1) The fee for plan review of a permanent body art establishment will be $75.00.

(2) The fee for an annual certificate at a permanent body art establishment will be $300.00.

(B) *Time-Limited Approval for a Specific Event.*

(1) There is no fee for plan review of a time-limited body art establishment.

(2) The fee for a time-limited event including, plan review, inspection and daily certificate, will be $50.00 per artist for

the first day and $25.00 per artist per day for each subsequent day of a multi-day limited-time event.

(C) *Late Fees.* The late fee for an annual renewal application received or postmarked after December 31 will be $25.00.
(Ordained by Res. No. 1999-05, § 1, eff. March 27, 1999; a. Res. No. 2014-20, eff. Nov. 28, 2014)

§ 0007-9. Penalties.

(A) Whoever violates a provision of ORC Chapter 3730, Tattooing and Body Piercing, is subject to the penalties set forth in ORC § 3730.99.

(B) Whoever violates a provision of this Regulation 0007 is subject to the penalty set forth in Board of Health Regulation § 00099-3.
(Adopted, June 13, 1973; a. Res. No. 1999-05, § 1, eff. March 27, 1999; a. Res. No. 2014-20, eff. Nov. 28, 2014)

0009. Establishing Nursing Care and Fees.

§ 0009-1. Definitions.

(A) *Nurse* means a registered nurse or a licensed practical nurse as defined in Sections 4723.06 and 4723.15 of the Ohio Revised Code, respectively.

(B) *Home health aide* means a person who performs under the supervision of the registered nurse, physical therapist, occupational therapist, or other appropriate therapist in providing personal care services and performing simple procedures essential to health care at home.

(C) *Physical therapist* means a person as defined in Section 4731.62 of the Ohio Revised Code.

(D) *Nursing care* means curative, restorative, and rehabilitative measures such as direct physical care, supportive emotional care, or patient and family teaching ministered at the direction of a physician to an ill person in his home or elsewhere in the presence of a disease or disabling condition, but does not include such care ministered to a patient or his family aimed primarily at the prevention of the spread of a communicable disease, all as required and defined in Ohio Revised Code 4723.06 and 4723.15.

§ 0009-3. Limits of care.

Subject to maximum number of nurses as fixed by city council, and, within the limits of its physical and financial ability to do so, the board of health may provide nursing care to all persons in the health district in need of such services, provided such services shall be provided only under the direction of a physician.

§ 0009-5. Fees.

(A) Nursing care (home visits) shall be charged for at the rate not greater than the cost of the services rendered, and, as directed by Article XX, Administrative Code, Sections 2, 2(a), 2(b) and 2(c), of the Cincinnati municipal code.

(B) Such fees shall be collected from the patient unless an agreement for providing nursing care services has been entered into between the board of health and a person or a public or private agency whereby payments for such services are made directly to the board of health on a periodic basis.

(C) A receipt shall be written in triplicate at the time of payment of any fee for nursing care by an individual. The original copy shall be issued to the party making payment.

(D) All fees collected for providing nursing care services shall be deposited into the "public health nursing fund" of the health district,

as authorized by Section 3709.15 of the Ohio Revised Code, and shall be used by the board only for defraying the cost of personnel, equipment, supplies, rental of physical facilities including real property, utilities, and administrative costs in providing services.

00011. Regulating Transient Accommodations.

§ 00011-1. Definitions.

The following definitions, plus those definitions in CMC 1401-01-H5 shall apply in the interpretation and enforcement of this regulation.

(A) Accessory sleeping quarters for transients shall mean a space or building which is an accessory to occupancy and which is used as sleeping quarters.

(B) Apartment hotel shall mean a building containing six or more apartments any of which is occupied by transients.

(C) Approved shall mean acceptable to the appropriate regulatory authority based on a determination of conformity with principles, practices, and generally recognized standards that protect public health.

(D) Bathing facilities shall consist of a bathtub and/or shower.

(E) Board of Health shall mean the Cincinnati Health Department.

(F) Connecting baths shall consist of bathing facilities that are shared between two individual private guest rooms that are rented.

(G) Employee shall mean any person working in a transient accommodation.

(H) Extended stay hotel shall mean any structure consisting of one or more buildings, with more than five dwelling units with provisions for living, eating, cooking, sanitation, and sleeping, that is specifically constructed, kept, used, maintained, advertised, and held out to the public to be a place where temporary residence is offered for pay to persons for a minimum stay of more than 30 days and a maximum stay of one year within the dwelling units at the structure, that is approved pursuant to a valid certificate of occupancy issued by the building official having jurisdiction as having all of the required dwelling unit features, and for which such valid certificate of occupancy indicates the specific rooms within the structure that can be used as dwelling units, and that is approved by the fire marshal for extended stay purposes.

(I) Family shall mean one adult occupant plus one or more persons who are legally related to said occupant, or one or more nonpaying guests.

(J) Food service operation or retail food establishment shall be defined as per the Ohio Revised Code Chapter 3717.

(K) Guest shall mean any person who is in the building under consideration for the purpose of sleeping, and any person who rents therein a room which has sleeping facilities.

(L) Guest room when referring to transient accommodations, shall mean a habitable room within a dwelling unit which is used or intended to be used primarily for the purpose of sleeping and may include bath and toilet facilities or any kitchen or dining areas.

(M) Health Commissioner shall mean the Health Commissioner of the City of Cincinnati Health Department or his/her authorized representative, including the administrator, supervisory personnel, sanitarians, and public health nurses.

(N) Hotel and Motel shall mean every structure kept, used, maintained, advertised, or held out to the public to be a place where sleeping accommodations are offered for pay to transient guests, in which six or more rooms are used for the accommodation of such guests, such sleeping accommodations being conducted in the same building or other structure kept, used, maintained, advertised, or held out to the public to be a place where sleeping accommodations are offered for pay to transient guests; or any structure consisting of one or more buildings containing any combination of more than five guestrooms that are each approved by the building code official having jurisdiction and the fire marshal as meeting the requirements for transient sleeping rooms or extended stay dwelling units, or as having features of such sleeping rooms and dwelling units within the same room, and such structure is specifically constructed, kept, used, maintained, advertised, and held out to the public to be a place where transient sleeping accommodations or temporary residence is offered for pay to persons, but such structure does not otherwise meet the definition of the transient hotel or an extended stay hotel as defined in this section. Also Hotel as defined in CMC 1401-01-H5.

(O) Laundered shall mean to wash in water and detergent then tumble dry within a hot air dryer machine.

(P) Laundry facilities shall consist of washing machines, dryers, linen storage areas, folding tables, work space, and shelving located at the transient accommodation for the purpose of laundering.

(Q) Linens shall mean any items such as but not limited to sheets, mattress pads, towels, tablecloths, cloth napkins, and work garments.

(R) Multi-use utensil shall mean any utensil or item that can be used more than once which shall include but not be limited to ice buckets, drinking glasses, pitchers, cups, coffee pots and other equipment coming in contact with water, beverages or solid food during storage, transportation, serving or normal use of drinking water or beverages or eating food.

(S) Operator shall mean any person who has charge, care or control of the transient accommodation.

(T) Permit shall mean a license to operate a transient accommodation issued by the Board of Health.

(U) Private baths shall consist of bathing facilities that are for the guests' use in the rooms or suite of rooms.

(V) Private toilet facilities shall mean those toilet facilities that are for the guests' use in the rooms or suite of rooms.

(W) Public toilet facilities shall mean those toilet facilities that are available to the general public.

(X) Rooming house shall mean any dwelling, or that part of any dwelling containing one or more rooming units, in which space is let by the owner or operator to three or more persons who are not family or owner for living or sleeping but not for cooking or eating purposes; or a building where within

the principal structure a minimum of three and a maximum of five rooms are provided for single occupancy, and where meals may be provided from a central kitchen facility, but in no case is cooking permitted or dining facilities provided within the tenant's room. Any building containing more than five tenant rooms shall be deemed a hotel, and does not include adult care facilities, adult family homes, child and adult group homes, or community alternative homes.

(Y) Single-use item shall mean any utensil or item designed and constructed to be used once and discarded, such as but not limited to cups, plastic utensils, paper napkins, bar soap, and shampoo.

(Z) Soiled laundry shall mean bedding and linens that are not clean.

(AA) Stained shall mean discolored, soiled, or spotted.

(BB) Suite of rooms shall mean two or more rooms which are arranged to be used as a unit and each room of which is accessible from within the unit without the use of a public exit way.

(CC) Transient shall mean an individual who resides in the same building for a period of less than 30 days.

(DD) Transient accommodations shall mean any structure consisting of one or more buildings, with more than five sleeping rooms that is specifically constructed, kept, used, maintained, advertised, or held out to the public to be placed where sleeping accommodations are offered for pay to transient guests for a period of 30 days or less, including, but not limited to, such a structure denoted as a hotel, motel, motor hotel, lodge, rooming house or motor lodge and for a period of more than 30 days, including but not limited to, such a structure denoted as an extended stay hotel.

(EE) Vegetation when referring to a transient accommodation's landscape, shall mean any plant life or total plant cover.

(March 2008)

§ 00011-3. Permits.

(A) No person, directly or indirectly shall construct, operate or maintain a transient accommodation in the Cincinnati Health Department District without first obtaining a permit from the Health Commissioner.

(B) Any person who is contemplating the construction, alteration, or conversion for occupancy or use of a transient accommodation or any portion or facility thereof, or to convert a property for use or occupancy as a transient accommodation shall give notice in writing to the Health Commissioner at least 45 days before the beginning of such construction, alteration, or conversion.

(C) The Health Commissioner shall issue a permit to operate to each operator of a transient accommodation who applies for a permit, upon compliance by the applicant with the provisions of these regulations.

(D) During the month of June of each year, except as here in after provided every operator of a transient accommodations during any part of the licensing year shall apply for a license for that year from the Cincinnati Board of Health. All licenses shall be applied and paid for prior to July first of each year.

(E) Fees for issuing and renewing transient accommodations operations licenses determined by the Cincinnati Board of Health in accordance with section 00011 of the Board of Health regulations may be levied upon each transient accommodations operation.

These fees shall be used solely for paying the expenses of the administration and enforcement of Board of Health regulation 00011.

(F) If a license fee as prescribed under this paragraph is not filed with the licensor or postmarked on or before the date it is due, a late fee of $50.00 shall be imposed and paid.

(G) A permit to operate a transient accommodation shall be valid for the calendar year for which it is issued, provided that such permit shall be renewed before July 1 of the following year. The permit shall not be transferable or assignable and shall automatically become invalid upon change of operator or upon suspension or revocation.

(H) A permit must be conspicuously posted at all times at the transient accommodation for which it was issued during operation and maintenance of said transient accommodation.

(I) In the event of an intended change of operator of a transient accommodation, the new operator shall make written application for a permit to operate to the Health Commissioner at least ten days before the proposed change is effected.

(J) Only those persons who comply with the provisions of these regulations shall be entitled to receive and retain a permit to operate a transient accommodation.

(K) In the event of an intended change of use for a transient accommodation, the operator shall first obtain approval from (including but not limited to) the zoning department having jurisdiction, state fire marshal's office, building department having jurisdiction, and the Cincinnati Health Department.
(March 2008)

§ 00011-5. Application for Permit to Operate.

(A) Application for a permit to operate shall be made to the Health Commissioner in writing signed by the applicant, and shall contain such information as may be requested by the Health Commissioner to enable him to determine whether the proposed or existing transient accommodation will comply with the provisions of this regulation.

(B) Application for a permit to operate a transient accommodation or the renewal thereof shall be made annually to the Health Commissioner, or at least ten days before the proposed commencement of the operation of the transient accommodation.
(March 2008)

§ 00011-7. Permit Fee.

The Board of Health may establish a fee for the application and issuance of permits required by this regulation. Such fee shall not exceed the administration, issuance and inspection costs to the Cincinnati Health Department associated with such application.
(March 2008)

§ 00011-9. Permit Revocation or Suspension.

(A) A permit to operate a transient accommodation may be suspended or revoked by the Health Commissioner upon violation by the permit holder of any terms or requirements of this regulation.

(B) In the case of a proposal to deny, suspend, or revoke a transient accommodation permit the licensor shall provide written notice of the proposed action and the cause for action. The notice shall describe the procedure for appealing the proposed denial, suspension, or revocation.

(C) In the case of a suspension of a license issued for a violation presenting an immediate danger to the public health, the licensor shall provide the license holder with a written notice of the action, the cause for the action, and the effective date of the action. The written notice shall specify the proce-

dure for appealing the suspension and shall list the address to which a hearing request shall be sent or delivered. The license holder may appeal the suspension by mailing or hand-delivering a written request for hearing to the address specified in the notice. If a hearing is requested, it shall be heard not later than five business days after the request is received by the licensor. At the hearing, the license holder shall have the opportunity to present its case orally or in writing and to confront and cross-examine witnesses. The license holder may be represented by counsel and may review the case record before the hearing. At the hearing, the licensor shall determine whether the immediate danger to the public health continues to exist. If the licensor conducts the hearing, the licensor may immediately render a decision denying, suspending, or revoking a license, or render a decision removing or continuing a license suspension.
(March 2008)

§ 00011-11. Inspections.

(A) The Health Commissioner is hereby authorized and directed to make inspections to determine the condition of transient accommodations and premises location within the Cincinnati Health Department District in order that the Health Commissioner may perform their duty of safeguarding the health and safety of transients and of the general public. For the purpose of making such inspections, the Health Commissioner and/or their designee, is hereby authorized to enter, examine and survey at all reasonable times all transient accommodations and premises. The person in charge there of shall grant the Health Commissioner free access to such transient accommodations and its premises at all reasonable times for the purpose of such inspection, examination or survey. Every transient shall give the owner of such transient accommodations, or his agent or employee, access to any part of such transient accommodations, or its premises, at all reasonable times for the purpose of making such repairs or alterations as are necessary to effect compliance with the provisions of this regulation or any lawful rule or regulation adopted or any lawful order issued pursuant to the provisions of this regulation.

(B) The Health Commissioner and/or their designee shall have the authority to inspect and examine the register containing a record of all persons using the facilities at the transient accommodation.
(March 2008)

§ 00011-13. Plan Review.

(A) No person shall construct, extensively alter, or equip a transient accommodation until plans have been submitted to and approved by the Health Commissioner.

(B) The Health Commissioner shall act upon such plans within 45 days of receipt.

(C) Plans and specifications shall clearly show and describe the:

(1) Total area to be used as a transient accommodation;

(2) General layout of the accommodation showing location of building, guest rooms, toilet facilities, solid waste storage, water supply, bathing facilities, laundry facilities, furniture within the guest rooms, and lighting;

(3) Entrances and exits;

(4) Method and plans for drainage of surface and storm water;

(5) Water supply location and development;

(6) Sewage disposal methods;

(7) Methods of solid waste collection, storage, and disposal;

(8) Guest rooms including size and construction data, heating, lighting, ventilation, cooking and eating facilities, and beds and bedding;

(9) Identification of food equipment and drink machines, make and model number (including ice machines) shall be provided before installation, and shall be approved by a recognized food equipment testing agency.

(March 2008)

§ 00011-15. Minimum Sanitation Standards.

(A) *Construction and Development.*

(1) The exterior premises at a transient accommodation site shall be well graded and drained and so located that its drainage will not create a nuisance or a hazard to health.

(2) If public sewer connections are not available to the site, the site shall be suitable as to area, topography, and soil conditions so that a proper sewage disposal system can be provided as required by the Ohio Environmental Protection Agency.

(B) *Exterior Premises.*

(1) Exterior premises shall be kept free of accumulations of refuse, garbage, rubbish, and debris.

(2) Driveways, parking lots, and walkways shall be adequately lighted and maintained in a safe and sanitary condition.

(3) Immediate surroundings and premises shall be kept clean and free from growth of nuisance vegetation, discarded materials, and unsanitary conditions.

(C) *Housing and Structure.*

(1) A transient accommodation shall comply with any state and/or local code applicable to the establishment.

(2) Every transient accommodation building and every part of such building shall be maintained in a state of good repair.

(3) Floors, walls and ceilings shall be of sound construction and shall be maintained clean and in good repair.

(4) Adequate and safe hand railings shall be provided for all stairways, porches, and balconies.

(5) The floors, walls, ceilings, and fixtures in both private and public toilet and bathing facilities shall be constructed of cleanable, non-absorbent materials.

(6) A sufficient number of bathrooms, mop sinks, service sinks and hand sinks shall be provided at all transient accommodations according to local and state building and plumbing code.

(7) All equipment, fixtures, furniture and furnishings shall be kept clean and maintained in good repair, including but not limited to windows, draperies, curtains, and carpets within individual units, corridors, stairways or other areas occupied or used by guests.

(8) Floor and wall-mounted furnishings shall be easily moved to allow for cleaning and pest monitoring or mounted in such a manner as to allow for monitoring for pests and for cleaning around or under such furnishings.

(9) No guest room shall contain less than 100 square feet of floor space excluding toilet and/or bathing facility, and shall have a ceiling height of at least eight feet measured from finished floor to finished ceiling.

(10) No room shall be overcrowded with permanent furniture and fixtures provided by the operator of the establishment. This rule does not apply to roll away beds, pop up cribs, or sofa sleepers.

(11) All rooms shall have sufficient ventilation to keep them free of excessive heat, steam, condensation, vapors, obnoxious odors, smoke and fumes. Ventilation systems shall be installed and operated according to code, and when vented to the outside shall not create an unsightly, harmful, or unlawful discharge.

(12) All transient accommodations shall have sufficient natural and/or artificial lighting to provide for cleaning purposes, safety and normal comfort of guests (recommend 10 to 20 foot candles 30 inches off the floor.)

(13) All transient accommodations used during periods requiring artificial heat shall be provided with a safe and adequate source of heat capable of maintaining room temperature of not less than 72°F (22°C) during the time of occupancy.

(D) *Water Supply.*

(1) Water for new transient accommodations shall be obtained from a community water supply when such is available. If a community water supply is not available, a non-community properly located, constructed, and maintained water supply system of sufficient capacity to meet the needs of the guests and employees of a transient accommodation shall be provided. Such water supply shall meet the standards of the Ohio Environmental Protection Agency ("OEPA"). Existing transient accommodations may continue to use a non-community water supply as long as the quantity and quality of water is maintained.

(2) Drinking fountains, if provided, shall be constructed of impervious materials, shall have an angle-jet nozzle protected by a non-oxidizing guard above the overflow rim of the bowl, and shall be equipped with a pressure regulating valve.

(3) Ice provided for guests shall be produced, stored, and dispensed in a sanitary manner, and shall be protected from becoming contaminated. All open bin type ice machines where a guest could come into direct contact with the ice shall be replaced with a non-direct contact type machine (i.e., prepackaged; dispensed through a protected chute, etc.) when the existing machine becomes non-useable. This rule is not applicable to ice makers within a refrigerator in the guest rooms.

(4) A back siphonage or backflow prevention device installed on a water supply system shall meet American Society of Sanitary Engineering Standards and Table 609 of Rule 4101:2-61-09 of the Ohio Administrative Code for construction, installation, maintenance, inspection, and testing for that specific application and type of device.

(E) *Equipment and Utensils.*

(1) All multi-use utensils and food contact surfaces provided for use to guests shall be constructed of materials as per Ohio Administrative Code 3717-001-04.0. Characteristics of the materials shall not allow the migration of deleterious substances or impart colors, odors, or tastes to food and under normal use conditions shall be:

(a) Safe;

(b) Durable, corrosion-resistant and non-absorbent;

(c) Sufficient in weight and thickness to withstand repeated ware washing;

(d) Finished to have a smooth, easily cleanable surface;

(e) Resistant to pitting, chipping, crazing, scratching, scoring, distortion, and decomposition.

(2) Multi-use utensils shall be washed and sanitized in approved ware washing equipment each day the room is serviced and items used as set forth by Ohio Administrative Code 3717-01-04.4.

(3) All multi-use equipment and utensils shall be washed and sanitized according to procedures set forth in the Ohio Administrative Code 3717-01-04.5 to 04.6,

(4) Cleaned and sanitized equipment, utensils or single-use items shall be handled and stored in such a way as to be protected from contamination. They shall not be stored:

(a) Under sewage lines that are shielded to intercept potential drips;

(b) Under leaking water lines including leaking automatic fire sprinkler heads or under lines in which water has condensed; or

(c) Under other sources of contamination.

(5) After placement in a guest room, cleaned and sanitized equipment, utensils or single-use items shall be individually wrapped or stored on a clean surface in an inverted position or in a manner that prevents contamination of the food contact surfaces.

(6) Single-use items shall not be reused.

(7) A single-used plastic disposable liner may be used in ice buckets in guest rooms.

(F) *Sewage Disposal.*

(1) Sewage shall be discharged into a public sewer system whenever available.

(2) In the event that a public sewer system is not available, sewage shall be disposed of in an approved on-site sewage disposal system. In the event the on-site sewage system fails or a public sewer system becomes available, connection to the public sewer system may be required by the Health Commissioner.

(G) *Toilet and Hand Washing Facilities.*

(1) Both private and public toilet facilities in transient accommodations shall be constructed, located, and maintained so as to prevent any nuisance or public health hazard and shall be kept clean and in good repair.

(2) Flush type toilets, lavatory facilities with hot and cold running water under pressure, and bathing facilities shall be provided at all transient accommodations, and such facilities shall be easily accessible and available to guests at all times.

(3) All toilet and hand washing facilities, public and private, shall be properly provisioned with soap, and approved means of hand drying and toilet tissue. This paragraph does not prohibit the use of multi-use towels provided:

(a) The multi-use towels are for use within guest rooms only; and

(b) The multi-use towels shall be changed before renting the room to a different guest.

(4) At least one hand washing facility shall be provided and conveniently located for use by employees and meet the requirements specified under paragraph (3) of this rule.

(5) All transient accommodations shall provide private toilet and bathing facilities except where existing central toilet facilities are being utilized prior to the effective date of these regulations.

(H) *Solid Waste Disposal.*

(1) Outdoor solid waste receptacles shall be corrosion resistant, easily cleanable, and pest-proof. Containers shall have tight-fitting lids/doors, which are to remain closed during times when the container is not in use. In those containers that have drains, drain plugs shall remain in place at all times, except for cleaning.

(2) At least one waste receptacle shall be provided for each transient accommodation guest room.

(3) Outdoor solid waste receptacles shall be large enough to store the garbage that accumulates on the premises and shall be located on a smooth, nonabsorbent material, such as concrete or machine laid asphalt.

(4) Areas surrounding outdoor solid waste receptacles shall be maintained clean and in good repair.

(5) Outdoor solid waste receptacles shall be cleaned as frequently as necessary to prevent nuisance.

(6) All waste receptacles used in transient accommodations shall be easily cleanable and maintained in good repair.

(7) All waste shall be collected daily from guest rooms and other areas frequently used by guests. The trash shall be stored in larger containers before being taken to outdoor waste receptacles only if the container is of sound construction and easily cleanable.

(8) Solid waste shall be collected from the transient accommodation at least once per week or as frequently as needed. The trash shall be collected, transferred and disposed of in a safe and sanitary manner. The transient accommodation shall follow all local refuse collection regulations that may apply.

(I) *Laundry Facilities.*

(1) Laundry facilities, if provided, shall be kept clean and in good repair and of a sufficient capacity to handle all the laundering needs of the transient accommodation.

(2) Laundry facilities operated in conjunction with, or utilized by a transient accommodation shall:

(a) Provide and use mechanical water connected to a water supply system capable of supplying hot water; and

(b) Provide and use a hot air tumble dryer.

(3) Areas for handling, transporting, and storing of soiled laundry shall be kept separate from clean laundry.

(4) All containers for transporting or storage of soiled and clean laundry shall be of impervious, cleanable construction, or otherwise protected so as to be maintained in a sanitary condition.

(5) All clean linens shall be stored off the floor and in an approved manner.

(6) All dryers shall be properly vented according to state and/or local building code.

(7) Separate laundry facilities may be provided for the use of guests if these are located in a different room or area separate from the main laundry facilities.

(8) The use of the main laundry facilities shall be restricted to the washing and drying of linens, towels, bedding covers, blankets, pillow cases, pillows, shower curtains, and drapes necessary to the transient accommodations. The following exceptions apply:

(a) if the transient accommodation offers laundry services to the guests then the guests' laundry must be washed and dried separately from the above mentioned items and at a separate time; and

(b) If the transient accommodation washes staff uniforms, aprons, or other clothing or laundered items necessary to the operation, then these like items shall be washed and dried separately from the above mentioned items.

(J) *Bedding and Linen.*

(1) All bedding including mattresses, mattress covers, mattress pads, quilts, blankets, pillows, sheets, pillow slips or spreads for the use of guests shall be kept clean and shall not be used after becoming stained or worn so as to be unfit for further use.

(2) Each bed, bunk, cot, and other sleeping place shall be provided with a pillow, a suitable pillow case per pillow, a top and bottom sheet, mattress pad or cover, and a bedspread and/or blanket.

(3) Sheets, pillow cases, towels, and bath mats shall be changed out and/or laundered between guests.

(4) Sheets used by the same guest for more than one day shall be changed at least twice a week or more often if needed, or upon guest request.

(5) Mattress pads, blankets, and bedspreads shall be laundered every month or more often as necessary to be maintained clean.

(K) *Housekeeping and Safety.*

(1) Janitors closets, supply charts, mops, pail, brushes, and other cleaning equipment shall be kept clean and in a state of good repair or shall be replaced as needed.

(2) All original containers of chemicals must bear the manufacturer's label. All working containers of chemicals must be identified with the common name of the chemical contents.

(3) Cleaners used in cleaning bathtubs, showers, lavatories, urinals, and toilet seats shall be comprised of fungicidal or bactericidal contents and shall be capable of disinfecting surfaces.

(4) All chemicals shall be handled and stored so as to prevent contamination of clothing, utensils and linens. Manufacturers' recommendations must be followed for application of chemicals.

(5) Housekeeping carts shall be so arranged that clean replacement supplies, clean linens and cleaned and sanitized equipment and utensils shall be protected from soiled items being removed from each room and other sources of contamination.

(6) Housekeeping carts shall be maintained clean and in good repair.

(L) *Insect and Rodent Control.*

(1) The premises of all transient accommodations shall be kept free of insects, rodents, and other vermin.

(2) Any person, firm, or company performing pest control operations to control insects, rodents, or other vermin shall be licensed, as provided under Section 921.01 to 921.28 of the Ohio Revised Code.

(3) Effective measures intended to minimize the presence, harborage, or breeding of rodents, flies, cockroaches, bed bugs, pests, and other insects on the premise shall be utilized.

(4) All outer openings shall be protected to prevent access to insects, rodents, and other pests by providing tight-fitting outer doors and sealing off all cracks and crevices as deemed necessary.

(M) *Plumbing.*

(1) All plumbing installed in or on the transient accommodation site shall conform to all state and local plumbing code requirements.

(2) Tempered water of at least 85°F (29°C), or at a temperature specified by local and/or state plumbing code, shall be provided at each bathtub, shower, and hand sink within the transient accommodation.

(3) Hot water at a temperature required by local and/or state plumbing code shall be provided for purposes of laundering and ware washing.

(N) *Swimming Facilities.*

(1) All swimming pools, bathing beaches and wading pools of transient accommodations shall comply with Section 3701.31-01 to 3701.31-10 inclusive of the Ohio Administrative Code.

(2) Towels provided by the transient accommodation for guest use within the swimming facilities shall be laundered after being used by the guest.

(O) *Food Service Operations, Retail Food Establishments, or Vending Operations.* All food service and vending operations which are part of or are operated in conjunction with a transient accommodation shall be in compliance with the Ohio Administrative Code.

(P) *Pets.*

(1) The operator of a transient accommodation shall establish and enforce rules designed to prohibit or control pets within a transient accommodation. No guest shall allow his pet to run at large.

(2) The operator of a transient accommodation shall be responsible for cleaning and/or removing of any nuisance created by a pet, if the owner does not take such responsibility.

(March 2008)

§ 00011-17. Variances.

(A) The Health Commissioner may grant a hearing to a person and may authorize, in specific cases, such variance from the requirements of this regulation as will not be contrary to the public interest, and where the person shows that because of practical difficulties or other special conditions the application of this regulation will cause unusual and unnecessary hardship. However, no variance shall be granted that will defeat the spirit and general intent of this regulation, or otherwise not be in the public interest.

(B) Any person objecting to the decision of the Health Commissioner pursuant hereto shall have the right to appeal such decision to the Board of Health.

(March 2008)

§ 00011-19. Invalidity.

Should any section, paragraph, sentence, clause, or phrase of this regulation be de-

clared unconstitutional or invalid for any reason, the remainder of such regulation shall not be affected thereby.
(March 2008)

§ 00011-21. Fee Schedule for Transient Accommodations.

The cost of a license for a Transient Accommodation as defined in section 00011-1 of the Board of Health Regulations shall be determined according to section 00011-7 of the Board of Health Regulations, and shall be as follows:

(A) *Transient Accommodations.*

(1) Up to and including 100 Guest rooms	$150.00
(2) Each additional guest room over 100	1.75

(B) Any such fee or portion of such fee retained by the Board of Health shall be paid into a special fund and used only for the purpose of administering and enforcing Board of Health Regulation 00011.

(C) If a license fee is not received by the Board of Health on or before the date it is due, a penalty of $50.00 shall be imposed and paid as provided in Board of Health Regulation 00011-3.

§ 00011-99. Penalties.

Violation of any provision of this regulation is prohibited by Section 3709.99 of the Ohio Revised Code and is subject to the penalties therein.
(March 25, 2008)

00013. Repealed.
(Amended Nov. 22, 1977; a. July 25, 1983; a. July 26, 1983; a. Aug. 27, 1985; a. Nov. 26, 1985; a. May 27, 1986; a. Oct. 27, 1987; a. Oct. 22, 1995; a. July 23, 1996; r. Oct. 14, 2009)

00015. Repealed.
(Repealed Feb. 12, 2003)

00017. Repealed.
(Adopted Dec. 14, 1995; r. Feb. 28, 2001)

00021. Repealed.
(Repealed Feb. 28, 2001)

00025. Repealed.
(Repealed Feb. 28, 2001)

00029. Repealed.
(Repealed Feb. 28, 2001)

00041. Repealed.
(Repealed Feb. 12, 2003)

[The next page is CDR:163]

00047. License Fees for the Operation of Public Swimming Pools and Spas.

§ 00047-1. Definitions.

(A) "*Additional*" shall mean any additional public swimming pool, spa or special use pool(s) located at the same address as the primary public swimming pool, spa or special use pool.

(B) "*Health Commissioner*" shall mean the commissioner of health of the City of Cincinnati, or any of the commissioner's authorized representatives.

(C) "*Person*" shall mean the state, any political subdivision, special district, public or private corporation, individual, firm, partnership, association, or other entity.

(D) "*Primary*" shall mean the initial or sole public swimming pool, spa or special use pool at a given address.

(E) "*Public swimming pool*" shall mean any indoor or outdoor structure, chamber, or tank containing a body of water for swimming, diving, or bathing that is intended to be used collectively for swimming, diving, or bathing and is operated by any person whether as the owner, lessee, operator, licensee, or concessionaire, regardless of whether or not a fee is charged for use but does not mean any public bathing area or private bathing area or private residential swimming pool.

(F) "*Private residential swimming pool*" shall mean any indoor or outdoor structure, chamber, or tank containing a body of water for swimming, diving, or bathing located at a dwelling housing no more than three families and used exclusively by the residents and their nonpaying guests. For purposes of this paragraph, "dwelling" includes an individual room or individual suite of rooms at a hotel, motel, or other establishment providing temporary lodging.

(G) "*Public spa*" shall mean any public swimming pool that is typically operated as a smaller, higher temperature pool for recreational or non-medical uses.

(1) "Smaller" means less than 5,000 gallons in volume.

(2) "Higher temperature" means greater than 90° F.

(H) "*Public bathing area*" shall mean an impounding reservoir, basin, lake, pond, creek, river, or other similar natural body of water.

(I) "*Special use pool*" shall mean a public swimming pool containing flume slides, wave generating equipment, or other special features that necessitate different design and safety requirement.
(a. Res. No. 2004-28, §§ 1, 2, eff. Dec. 28, 2004; a. Res. No. 2009-04, § 1, eff. April 28, 2009)

§ 00047-3. License to operate a public swimming pool, public spas or special use pool.

(A) No person shall operate or maintain a public swimming pool, public spa, or special use pool without a license issued by the health commissioner. Before a license is issued for a public swimming pool, public spa, or special use pool, such pool shall be in compliance with all board of health regulations, the COBBC, this code, and all other applicable laws of the city and state.

(B) Every person who operates or maintains a public swimming pool, public spa, or special use pool shall, during the month of April of each year, apply to the health commissioner for a license to operate the pool or spa.

(C) Each license issued shall be effective from the date of issuance until the last day of May of the following year.

(D) The health commissioner may refuse to grant a license or may suspend or revoke at any time any license issued to any person for failure to comply with this Regulation and with the requirements of RC Ch. 3749 or the rules adopted thereunder.
(a. Res. No. 2004-28, §§ 1, 2, eff. Dec. 28, 2004)

§ 00047-5. License fees.

(A) Primary Public Pool, Public Spa or Public Special Use Pool $393.00

(B) Additional Public Pool, Public Spa or Public Special Use Pool at a primary location..... $79.00

(C) Primary Public Pool, Public Spa or Public Special Use Pool operated by the federal, state, or local government or by a tax-supported primary or secondary public school $197.00

(D) Additional Public Pool, Public Spa or Public Special Use Pool operated by the federal, state, or local government or by a tax-supported primary or secondary public school $79.00

(E) All license fees collected shall be deposited into a swimming pool fund. The fees shall be used solely for the purpose of administering and enforcing this Regulation and Chapter 3749 of the Ohio Revised Code and the rules adopted thereunder.
(Amended April 14, 1994; a. Nov. 28, 1995; a. Feb. 24, 1998; a. Jan. 26, 1999; a. March 28, 2000; a. Res. No. 2004-28, §§ 1, 2, eff. Dec. 28, 2004; a. Res. No. 2009-04, § 1, eff. April 28, 2009)

§ 00047-7. Operation of a public swimming pool, spa, or special use pool.

(A) The depth of water of a public swimming pool, public spa, or special use pool shall be plainly marked on the adjacent deck surface within two feet of the water's edge and the top of vertical surfaces of a deep public swimming pool in such a manner as to be clearly visible to persons either in or out of the pool. The distance between adjacent markings shall not be greater than 25 feet. The depth of water at a public swimming pool or special use pool shall be marked at maximum and minimum points, at the points of break between the deep and shallow portions, and at intermediate points. A minimum of two depth markings per public spa or wading pool shall be provided.

(B) Any person suspected of having an infectious wound or communicable disease shall not be permitted to use the pool. No person who is observed passing feces, urine, or blood into a pool or spa shall be permitted to use the pool or spa. Any person who has been refused entry to or removed from a pool or spa under this section may be granted such entry upon presentation of a written statement from a physician that the condition is not infectious or communicable.

(C) Life saving equipment shall be mounted in conspicuous places, distributed around the swimming pool deck, readily accessible, its function plainly marked, and kept in good repair and ready condition. No one shall use this equipment for any purpose other than its intended use or shall remove such equipment from its established location.

(D) Pumps, filters, and other mechanical electrical equipment shall be enclosed in such a manner as to be accessible only to authorized persons.

(E) A bathing suit, towel, linen, or similar article supplied by a public swimming pool shall be washed, sanitized, and thoroughly dried after each individual use.

(F) Animals shall not be permitted within the enclosed area of a public swimming pool, public spa, or special use pool.

(G) No drinking glasses or glass containers shall be permitted in the enclosed area of a public swimming pool, public spa, or special use pool.

(H) All public swimming pools, public spas, and special use pools and the surrounding deck area shall be enclosed by a fence or other barrier no less than four feet in height. Such fence or protecting enclosure shall be located not less than five feet from the edge of the pool. All gates shall be self-closing and self-latching with latches placed four feet above the underlying ground or otherwise made inaccessible from the outside to small children. The fence or barrier shall be constructed in such a manner that a sphere with a diameter of four inches cannot be passed through any opening. (Please note: The 5 foot fencing requirement applies to all pools built after January 1, 1991; or existing pools undergoing extensive renovation or modification after January 1, 1991.)

(I) No child under the age of 14 shall be permitted in a public swimming pool, public spa, or special use pool unless the public swimming pool, public spa, or special use pool has a lifeguard or unless the child is accompanied by a responsible adult.

(J) Lighting fixtures shall be so arranged and shaded as to provide uniform illumination and reflect light away from adjoining premises and public streets.

(K) Either area lighting or area and underwater lighting shall be provided at each public swimming pool, public spa, or special use pool when nighttime use is permitted. This lighting shall be sufficient to illuminate adequately the pool or spa bottom. (Amended, Nov. 24, 1992; a. Res. No. 2004-28, §§ 1, 2, eff. Dec. 28, 2004)

§ 00047-9. Disinfection and water quality.

(A) *Disinfectant Residuals.*

(1) The licensee shall ensure that a minimum free chlorine residual of 1.0 ppm or a free bromine residual of at least 2.0 ppm is maintained in each public swimming pool or special use pool.

(2) A minimum free chlorine or bromine residual of 2.0 ppm shall be maintained in all public spas.

(B) *Water Quality.*

(1) The licensee of a public swimming pool, public spa, or special use pool shall maintain the water of the pool or spa in an alkaline condition as indicated by a pH of not less than 7.2 and not over 7.8.

(Adopted, Jan. 26, 1988; a. Oct. 23, 1990; a. Feb. 26, 1991; a. Nov. 24, 1992; a. Res. No. 2004-28, §§ 1, 2, eff. Dec. 28, 2004)

00053. General Sanitation.

§ 00053-1. Definitions.

(A) "Abandonment" shall mean the complete filling with grout of a well in order to seal the aquifer to prevent the contamination of ground water. In the case of a cistern, abandonment includes emptying the cistern and filling it with an inert solid material. In the case of a spring or pond, abandonment shall mean the disconnection of all piping from the source to the point of discharge.

(B) "Backflow" shall mean the flow of water or other liquids, mixtures, or substances into the distributing pipes of a potable water supply from any source other than the intended source of the potable water supply.

(C) "Backflow prevention device" shall mean any device, method or type of construction to prevent backflow of water, liquids, mixtures, or substances into the distributing pipes of a potable supply of water from any source other than its intended use.

(D) "Basement" shall mean a portion of the building located partly underground, but having not more than one-half of its clear floor-to-ceiling height below the average grade of the adjoining ground.

(E) "Cellar" shall mean a portion of a building located partly or wholly underground, and having more than one-half of its clear floor-to-ceiling height below the average grade of the adjoining ground.

(F) "Chemical toilet" shall mean any sanitary, waterless device for the collection and storage of human excreta using deodorizing chemicals including but not limited to lye, caustic soda, chlorinated lime, or copper bisulfate.

(G) "Composting" shall mean the controlled decomposition of organic solid wastes under aerobic conditions to produce a relatively stable, inert material that may be incorporated into the soil without producing any adverse impact to the soil or to the public health.

(H) "Compost Pile" shall mean the place in which composting occurs.

(I) "Compost" (1) shall mean the product of the composting process. (2) compost is characterized as chemically and biologically altered organic material which has become chemically stable, which decomposes slowly and is free from odors.

(J) "Contamination" shall mean to make unfit by the introduction of unwholesome or undesirable matter.

(K) "Cross connection" shall mean any physical connection or arrangement between two otherwise separate piping systems, one of which contains potable water and the other water of unknown or questionable safety, whereby water may flow from one system to the other, the direction of flow depending on the pressure differential between the two systems.

(L) "Dwelling" shall be defined as a building occupied, arranged, intended, or designed to be occupied as an abode for one or more persons. Reference: Cincinnati Municipal Code 1117-03.

(M) "Dwelling Unit" shall be defined as a room or suite of rooms providing complete living facilities for one family, including permanent provisions for living, dining, cooking, sleeping and sanitation. Reference: Cincinnati Municipal Code 1117-03.

(N) "Family" shall be defined as an individual or any number of individuals related by blood or marriage; a group of not more than five individuals not so related; a group of not more than ten members of a religious order who live together in a single dwelling unit; or a group of not more than ten adults, the majority of whom are 60 years of age or older, who live together in a single dwelling unit are all capable of self-preservation without assistance in the event of an emergency, and do not need to live in a supervised environment. Reference: Cincinnati Municipal Code 1117-03.

(O) "Ground water" shall mean any water below the surface of the earth in a zone of saturation.

(P) "Grout" shall mean an approved substance used for sealing wells and dry holes; one of the following materials shall be used:

(1) cement grouts which meet current ASTM standard c150 and NSF standard sixty and include:

(A) type I, general purpose cement;

(B) type II for use in waters with moderate sulfate content, and conditions requiring lower heat of hydration;

(C) type III, for use in conditions requiring high early strength;

(D) type IV, for use in conditions requiring low heat of hydration;

(E) type V, for use in ground waters with a high sulfate content;

(F) concrete grout for special sealing conditions identified in table one.

(2) bentonite based grouts which meet NSF standard sixty and include:

(A) high solids bentonite grout using powdered bentonite-clay or granular bentonite.

(B) coarse grade bentonite

(C) pelletized bentonite

(3) clean clay, sand, or gravel when used in accordance with rule 3701-28-07 I of the Ohio Administrative Code

(4) any other material deemed by the director of the Ohio Department of Health to have permeability and sealing characteristics sufficient to protect groundwater and public health. Reference Ohio Administrative Code 3701-28-07 (I) and appendix A.

(Q) "Hazardous waste" shall include: ignitable waste, corrosive waste, reactive waste, toxicity characteristic waste, acute hazardous waste and toxic waste as referenced in rules 3745-51-30 to 3745-51-35 of the Ohio Administrative Code, unless it has been excluded under 40 CFR sections 260.20 and 260.22.

(R) "Health Commissioner" shall mean the Commissioner of Health of the City of Cincinnati or his/her authorized representative.

(S) "Heat provided by owner" shall mean a heat source that can provide heat to all areas of an occupied residence at least 70°F or 21°C when the outside temperature falls below 60°F or 16°C for 24 hours. The cost of this heat source shall be at the owner's expense. Space heaters do not qualify unless the owner pays for the electricity also.

(T) "Household Composting" shall mean any composting activity conducted by the residents of a single family.

(U) "Household sewage treatment system" shall mean any sewage disposal or treatment system or part thereof for a single family, two family, or three family dwelling, which receives sewage.

(V) "Infectious waste" shall include all of the substances or categories of substances including:

(1) cultures and stocks of infectious agents and associated biologicals;

(2) laboratory wastes that were, or are likely to have been, in contact with infectious agents that may present a substantial threat to public health if improperly managed;

(3) pathological wastes;

(4) waste materials from the rooms of humans, or the enclosures of animals, that have been isolated because of communicable disease that are likely to transmit infectious agents;

(5) human and animal blood specimens and blood products that are being disposed of, provided that, with regard to blood specimens and blood products from animals, the animals were or are likely to have been exposed to a zoonotic or infectious agent,

(6) contaminated carcasses, body parts, and bedding of animals that were intentionally exposed to infectious agents from zoonotic or human diseases;

(7) sharp wastes used in the treatment, diagnosis, or inoculation of human beings or animals or that have, or are

likely to have come in contact with infectious agents in medical, research, or industrial laboratories;

(8) any other waste materials generated in the diagnosis, treatment, or immunization of human beings or animals, in research pertaining thereto, or in the production of testing of biologicals, that the public health council created in section 3701.33 of the Ohio Revised Code;

(9) any other waste materials the generator designates as infectious waste as defined in Chapter 3745-27-01, Section (i) of the Ohio Administrative Code.

(W) "Infestation" shall mean their presence within or around a dwelling or premises of insects, rodents or other pests.

(X) "Insanitary condition" and "unsanitary condition" means any environmental condition that may produce an unhealthy or unsafe condition.

(Y) "Junk vehicle" shall mean any vehicle as defined in the Cincinnati Municipal Code, Section 511-31 including unlicensed and/or inoperable trailers, semi-trailers and motor vehicles.

(Z) "Landlord" shall mean the owner, lessor, or sublessor of residential or commercial premises, their agent, or any other person authorized by them to manage the premises or to receive rent from a tenant under a rental agreement.

(AA) "Mold" shall be defined as a growth of minute fungi forming on plant or animal matter and/or interior building materials and surfaces.

(BB) "Nuisance" shall be defined as anything which is injurious to human health or offensive to the senses and which affects a community, neighborhood, or neighbors.

(CC) "Occupant" shall be defined as any person over one year of age (including owner or operator) living, sleeping, cooking or eating in, or having actual possession of a dwelling unit or room used for rooming occupancy as referenced in the Cincinnati Municipal Code, Section 1117-03.

(DD) "Occupy" shall mean to reside in a dwelling as owner or tenant.

(EE) "Owner" shall be defined as the owner of the freehold (an estate in land, inherited or held for life) of the premises or lesser estate therein, a mortgagee or vendee in possession, assignee of rents, receiver, executor, trustee, lessee, or other person, firm or corporation in control of a building; or their duly authorized agents as referenced in the Cincinnati Municipal Code section 1117-03.

(FF) "Person" shall mean owner, or any person, partnership, firm, corporation, entity or person in possession or control of any property or dwelling, agent or other person who is responsible for the work or violation.

(GG) "Potable water" shall mean water, which is satisfactory for drinking, culinary, and domestic purposes.

(HH) "Premises" shall mean a platted lot or part thereof or unplatted lot or parcel of land or plot of land, either occupied or unoccupied by any dwelling or non-dwelling structure, and includes any such building, accessory structure or other structure thereon.

(II) "Private water supply" shall mean a private water system.

(JJ) "Private water system" shall mean any water system, other than a public water supply system, for the provision of water for human consumption, if the system has fewer than fifteen service connections and does not regularly serve an average of at least twenty-five individuals daily at least sixty

days each year. A private water system includes any well, spring, cistern, pond, or hauled water and any equipment for the collection, distribution, transportation, filtration, disinfection, treatment, or storage of water extending from and including the source of the water to the point of discharge from any pressure tank or other storage vessel; to the point of discharge from the water pump where no pressure tank or other storage vessel is present; to the point where the distribution line enters the foundation of the building or dwelling, where the pressure tank is outside of the building or dwelling; or, in the case of multiple service connections serving more than one dwelling, to the point of discharge from each service connection where the service connection enters the foundation of the dwelling. A private water system does not include the water service line extending from the point of discharge to a structure as defined in Chapter 3701-28-01, Section (V) of the Ohio Administrative Code.

(KK) "Portable toilet" shall mean any sanitary, waterless device for the collection and short term storage of human excreta that may be transported and used at any site where waterborne sewage disposal is impractical or temporarily unavailable.

(LL) "Privy" shall mean any sanitary, waterless device for the collection and storage of human excreta but does not include chemical commodes or other portable receptacles.

(MM) "Property" shall mean thing or things owned, real or personal.

(NN) "Provided" shall mean furnished, supplied, paid for and/or under the control of the owner.

(OO) "Refuse" shall mean all putrescible and nonputrescible solid wastes (except body waste), including garbage, rubbish, ashes, street cleanings, dead animals, abandoned automobiles and solid market and industrial wastes as defined in Cincinnati Municipal Code 714-1-R.

(PP) "Rubbish" shall mean nonputrescible solid wastes consisting of both combustible and noncombustible wastes, such as paper, wrappings, dirt, cigarettes, cardboard, tin cans, yard clippings, leaves, wood, glass, bedding, crockery and similar materials as defined in Cincinnati Municipal Code Section 714-1-R1.

(QQ) "Sanitary" shall mean free from elements, such as filth or pathogens that endanger health. A condition that is clean and free of pest infestations and residues, human and animal waste, mold, wastewater, sewage, rotting material, and uncontained rubbish or garbage.

(RR) "Sanitary landfill" shall be defined as an engineered facility where the final deposition of solid waste on or into the ground is practiced in accordance with Chapter 3745-27, 3745-29 or 3745-30, as appropriate, and 3745-37 of the Administrative Code, and includes the units within the limits of waste placement, all ground water monitoring and control system structures, buildings, explosive gas monitoring, control, and extraction system structures, surface water run-on and runoff control structures, sedimentation - ponds, liner systems, and leachate management system structures. The sanitary landfill facility includes all portions of the facility described above and those areas within three hundred feet of the limits of waste placement unless an alternate setback is deemed acceptable by the director of the Ohio Environmental Protection Agency. If the owner or operator has not obtained approval of a permit to install, which delineates the setback from the limits of waste placement, submitted in accordance with section 3734.05 of the Revised Code, the sanitary landfill facility includes all portions of the facility described above and

those areas within three hundred feet of the limits of waste placement unless the property line of the facility is less than three hundred feet from the limits of waste placement, in which case the sanitary landfill facility includes those areas within the property line as in the Ohio Administrative Code, Section 3745-27-01-(DDD).

(SS) "Sewage" shall mean any liquid waste containing animal or vegetable matter in suspension or solution from water closets (toilets), urinals, lavatories (Sinks), bathtubs, laundry tubs or devices, floor drains, drinking fountains, or other sanitary fixtures, and may include liquids containing chemicals in solution.

(TT) "Soil Incorporation" shall mean the immediate plowing, turning or tilling of organic material into the soil for purposes including, but not limited to, use as a soil amendment, agricultural and horticultural applications, or land reclamation, provided that such land application does not create a nuisance or health hazard.

(UU) "Solid wastes" shall be defined as such unwanted residual solid or semisolid material, including but not limited to, garbage, scrap tires, combustible and noncombustible material, street dirt and debris, as results from industrial, commercial, agricultural, and community operations, excluding earth or material from construction, mining, or demolition operations, or other waste materials of the type that normally would be included in demolition debris, nontoxic fly ash and bottom ash, including at least ash that results from combustion of coal, biomass fuels, and ash that results from the combustion of coal in combination with scrap tires where scrap tires comprise not more than fifty percent of heat input in any month, spent nontoxic foundry sand, and slag and other substances that are not harmful or inimical (unfavorable or harmful) to public health, and includes, but is not limited to, garbage, scrap tires, combustible and noncombustible material, street dirt, and debris. Solid waste does not include any material that is an infectious waste or a hazardous waste as stated in the Ohio Administrative Code, Section 3745-27-01-(III).

(VV) "Vermin" shall mean objectionable insects or animals, including lice and bedbugs.

(WW) "Well" shall mean any excavation regardless of design or method of construction done or used for the purpose of removing ground water from an aquifer, and for the purpose of determining the quality, quantity, or level of ground water.

(XX) "Yard Waste" shall mean the residue generated from lawns, shrubs, gardens, and other such vegetation. "Yard Waste" may include grass clippings, shrub trimmings, brush, garden waste, and tree waste. "Yard Waste" does not include vegetable trimmings, or other such materials that have been cooked or altered for human consumption.
(Amended March 22, 2011, § 1)

§ 00053-3. Sanitation requirements, water supply.

(A) In all dwellings, the owner shall provide an adequate supply of water from the Cincinnati municipal system and make it available to the occupants through suitable plumbing, continuously maintained in good working condition. The owner shall not shut off or cause to be shut off a water supply except while in the process of making repairs. The owner shall not rent or lease dwelling units, unless they are provided with an adequate, approved water supply. When water from the municipal system is not available, the owner shall provide an adequate supply of clean potable water from

an approved private water system, of a quality acceptable to the Health Commissioner.

(B) The potable water distribution system in any building shall be supplied by water from the Cincinnati municipal system. The potable water distribution system in any building shall be entirely independent of any piping system conveying a non-potable water supply. All potable water distributing pipe shall be protected against natural and induced backflow and back-siphonage. All equipment capable of polluting or contaminating the potable water supply system or any part thereof by means of a reversal of flow, pressure drop, pressure loss, induced vacuum or by injection because of any primary or auxiliary pumping system connected thereto must be isolated and contained by means of approved backflow devices or accepted engineering practices, as defined in RULE 3701-28-03 of the Ohio Administrative Code.

(C) Any material added to the water supply for water conditioning or for any other purpose shall be non-toxic, harmless to humans, and subject to the approval of the Health Commissioner.

(D) All water coolers and drinking fountains shall deliver the water without coming in direct contact with ice, foreign material, or cooling devices of any nature whereby the drinking water may become contaminated.

(E) When a cistern or well is necessary as a potable water supply, the owner shall maintain such well or cistern and its accessory apparatus so as to prevent contamination of the water supply.

(F) When the water in any well becomes contaminated, or fails to comply with the quality standards of the Ohio Department of Health, or when a well is abandoned, the owner shall completely fill the well with grout in order to seal the aquifer to prevent contamination of ground water in accordance with Ohio Administrative Code 3701-28-07 (D).

(G) When the water in any cistern becomes contaminated or fails to comply with the quality standards of the Ohio Department of Health, or when a cistern is abandoned, the owner shall empty the cistern and then completely fill it with an inert solid material in accordance with Ohio Administrative Code 3701-28-07 (E).

(H) When water from the municipal system becomes available to any dwelling, the owner shall furnish all potable water from that system and immediately abandon the use of any private supply as provided in paragraphs (F) and (G) of this section as potable water. (Amended March 22, 2011, § 1; a. Res. 2022-03, § 1, eff. October 25, 2022)

§ 00053-5. Toilets, plumbing, sewerage, drainage.

(A) In all dwellings the owner shall provide an adequate number of approved flush toilets as defined in the Cincinnati Municipal Code section 1117-29 and make them readily accessible to the occupants. The occupant or tenant shall keep their toilet compartments and all its fixtures clean.

(B) The owner or person having charge of any dwelling, dwelling unit, multiple dwelling, business building or premises shall not allow any sewer, water closet or drain to leak, to be out of repair, to be inoperable, or to remain clogged or stopped; nor allow sewage or waste or stagnant water or other fluid to remain in any building or upon any land. Every plumbing fixture and all water and waste pipes shall be installed and maintained in good sanitary and safe working condition.

(C) It shall be unlawful for any person to willfully obstruct or damage, or permit to be obstructed or damaged, any toilet or sanitary fixture in any occupied building.

(D) No garbage, ashes, rubbish, hazardous waste, or any other material deemed inappropriate by the Health Commissioner shall be deposited in any privy vault or flush toilet fixture.

(E) The owner of any property shall keep the below-ground space, foundation slab, basement, and/or cellar free from accumulations of water or sewage and shall have any such water or sewage removed immediately and the below-ground space, foundation slab, basement, or cellar treated with chlorinated lime or a product that is labeled as a disinfectant, and have conditions remediated so that further accumulations will be prevented.

(F) The owners of all properties connected to a private sewer not owned or maintained by the Metropolitan Sewer District shall be jointly responsible for the maintenance of that sewer.

(G) When a connection to a public sewer is not possible, no person shall discharge, or permit or cause to be discharged, treated or untreated sewage, the drainage or contents of a sewage tank, or other putrescible or offensive wastes onto the surface of the ground, into any street, road, alley, open excavation, or underground drain as referred to in the Ohio Administrative Code 3701-29-02(F). All drainage pipes shall be installed and maintained in accordance with all applicable state and local standards.

(H) It shall be unlawful for the owner of a tract of land to dispose or allow to be disposed, any kind of material in such a manner as to interfere with existing drains, sewers, or natural watercourses.

(I) No person shall discharge or permit to be discharged the contents of any privy vault, portable toilet, chemical toilet, sewage holding tank, cesspool, or septic tank to the surface of any lot, public sewer, street gutter, or abandoned water supply, well, spring, or cistern or into a natural or artificial well, sink hole, crevice, or other opening extending into limestone, sandstone, shale, or other rock formation, or normal ground water table.
Reference Ohio Administrative Code 3701-29-02.

(J) When a privy vault is in existence, the owner shall maintain the vault and privy house so that flies and/or animals cannot have access to the filth. Disinfectants labeled for such use shall be used if the vault is foul. No roof water, surface water, or sink waste water shall be allowed to flow into any privy vault.

(K) Privy vaults may be ordered cleaned whenever the contents are three feet or less from the ground surface or whenever an unsanitary condition exists. Contents shall be properly disinfected and the vaults shall then be cleaned to the bottom or to a depth of not less than seven feet from the ground surface.

(L) No person shall engage in the cleaning of any privy vault, portable toilet, chemical toilet, sewage holding tank, cesspool, or septic tank without first obtaining a permit from the Health Commissioner.

(M) Removal of contents of privy vaults, sewage holding tanks, cesspools, or septic tanks shall be made in accordance with the Ohio Administrative Code 3701-29-02. Removal shall be made only in approved non-leaking, closed vehicles or vessels. Spillage shall be minimized. Vehicles, tanks or other equipment shall be cleaned and disinfected immediately after each use so that they will not be a nuisance.

(N) Whenever a sewer becomes available, the premises shall be connected to the Metropolitan Sewer District and water-flushed toilets provided. The privy vault or other household sewage treatment system

shall be abandoned, cleaned and filled with suitable material. Reference: Ohio Administrative Code 3701-29-18.

(O) All Household Sewage Treatment Systems shall meet the requirements of the Ohio Administrative Code 3701-29.

The Health Commissioner may grant a variance from the requirements of Regulation 00053-5 (O) if the variance will not be contrary to the public interest and if, because of special conditions, strict application of the regulation will cause unusual and unnecessary hardship. However, no variance shall be granted that will defeat the spirit and general intent of this regulation.
(Amended, Nov. 28, 1978; a. Sept. 24, 1981; a. Res. No. 2007-02, §§ 1, 2, approved Feb. 2007; a. March 22, 2011, § 1)

§ 00053-7. Waste disposal.

(A) It shall be unlawful to store waste containers so that odors, flies, or other pests prevent the use of doors, windows, and other openings for ventilation, or create a nuisance in neighboring premises.

(B) It shall be unlawful to contain combustible or non-combustible waste materials in open cans, barrels, boxes, cartons, crates, or other unapproved containers that may provide a rodent, insect, or other pest harborage.

(C) Lids shall be placed tightly on all rigid waste containers except during the time of depositing waste in the containers.

(D) It shall be unlawful for any person to throw, deposit, let fall, or permit to accumulate any solid, hazardous, or infectious waste, rubbish, paper, cans, ashes, refuse, garbage, or putrescible organic matter, litter, junk, combustible or noncombustible waste, junk vehicles, or miscellaneous debris on any lot, yard, shed, roof, porch, or other such place. Any place used to store such materials must be designated as a "sanitary landfill" or a "licensed solid waste transfer station" as provided in Ohio Revised Code and licensed by the Cincinnati Health Department or zoned as a business to handle such material and operated according to the provisions of the regulations of the Cincinnati Board of Health and the Cincinnati Municipal Code. Stored materials shall be stacked neatly in piles elevated at least eighteen (18) inches above the ground or floor so as not to provide a rodent, insect or other pest harborage.

(E) The owner of lots, yards, or other places littered with rubbish, paper, cans, garbage, ashes, refuse, or waste material of any kind shall cause said material to be removed.

(F) Yard waste shall either be incorporated into the soil, household composted, converted into mulch or removed.

(1) Household compost may consist of ground, shredded, or chopped yard waste, including, but not limited to, grass clippings, shrub trimmings, wood chips, leaves, herbaceous garden waste, brush, and other such plant derived materials.

(2) No person shall create or maintain a household compost pile in such a manner that it becomes a rodent or insect harborage, or that it produces offensive and noxious odors, or that it causes any form of surface or groundwater pollution.

(3) Household compost piles shall be located:

(a) a maximum practical distance from any occupied structure;

(b) five (5) feet from any auxiliary structure;

(c) fifty (50) feet from any private water supply system;

(d) five (5) feet from any lot line;

(e) ten (10) feet from any roadway, alley, or other public right-of-way;

(f) twenty (20) feet from any natural watercourse;

(g) a household compost pile shall not be constructed in a natural wetland.

(4) Household compost piles shall be maintained in a safe and sanitary manner. Household compost piles that produce offensive odors or that harbor insects or rodents shall be removed. Household compost piles shall have adequate natural drainage, such that any liquids generated by the decomposing yard waste shall be absorbed into soil.

(Amended, Mar. 22, 1977; a. Sept. 24, 1981; a. March 22, 2011, § 1)

§ 00053-9. Housing.

(A) In all buildings used or intended to be used for human occupancy, except one-family dwellings, the owner shall maintain the yard, cellar, courts, halls, attics, roofs, sheds, or other portions free from accumulations of dirt, filth, garbage, ashes, rubbish, or other waste materials in order to prevent rodent, insect, or other pest harborage. In all one family dwellings the occupant shall keep his yard, court, roof, cellar, attic, rooms, and all other portions clean and free from accumulations of ashes, rubbish, garbage, refuse, and any other waste materials in order to prevent rodent, insect, or other pest harborage.

(B) The occupant, when moving to another location, shall leave the vacated premises in a reasonably clean condition. The owner shall, before renting a dwelling, place the premises in a reasonably clean condition.

(C) No below-ground space, cellar, basement, or room which is damp, poorly ventilated or otherwise liable to predispose occupants to disease shall be occupied or permitted to be occupied for living or sleeping purposes.

(D) It shall be unlawful for any person to maintain or permit to be maintained any room or rooms, occupied by human beings, in such filthy, dirty, or neglected condition so that the health of the occupant or occupants or the well-being of the community is endangered.

(E) Each occupant shall keep the quarters of which he has sole use, including beds, mattresses, and other accessory objects clean and free from mice, rats, fleas, roaches, or other disease causing vectors.

(F) In all buildings occupied by human beings, in which the use of a substantial part of the furniture or dishes or linens is included in the rental (furnished rooming houses), the person renting the rooms to the occupant shall maintain all rooms, stairs, halls, toilets and bath rooms including all fixtures, in a clean and usable order. The person renting the rooms to the occupant shall maintain the premises and furnishings in a clean condition, shall provide approved containers for all waste material, and shall properly store and remove such waste material.

(G) Ceilings, floors, floor coverings and walls shall be present, intact and sanitary with no water damage or suspected mold.

(H) The interior of appliances and equipment provided by the property owner shall be maintained in good repair, structurally sound and in a sanitary condition.

(I) Occupants shall keep that part of the structure which they occupy or control in a clean and sanitary condition.

(J) Every owner of a structure containing a rooming house, housekeeping units, hotel, a dormitory, two or more dwelling units or two or more nonresidential occupancies, shall maintain, in a clean and sanitary condition, the shared public areas of the structure and exterior property.
(Amended March 22, 2011, § 1)

§ 00053-11. Fowl, animals and vermin.

(A) No live geese, hens, chickens, pigeons, ducks, hogs, goats, cows, mules, horses, dogs, cats, other fowl or any other domestic or non-domestic animals shall be kept in the city so as to create a nuisance, foul odors, or be a menace to the health of occupants or neighboring individuals.

(B) Portions of the floor, ground, or roosts where manure or urine regularly fall, in any structure, enclosure, pen, or run in which fowl or animals are kept, shall be clean and free from odors. All possible means shall be employed to prevent the breeding of flies.

(C) Manure shall be removed at least once each day and placed in fly tight, leakproof, covered containers. Such containers shall be kept clean and shall be disinfected after each emptying.

(D) It shall be unlawful for an owner, agent or person in control to permit any premises, building or part thereof to harbor an infestation of mice, rats, fleas, roaches, or other disease causing vectors. All structures shall be kept free from insect and rodent infestation. All structures in which insects or rodents are found shall be treated by a process that will not be injurious to human health. After treatment, proper precautions shall be taken to minimize reinfestation.

(E) The owner of residential housing unit(s) must utilize an integrated pest management practice that includes identification of pests and conditions that attract pests; prevention techniques such as sanitation, vacuuming, structural repair and sealing; monitoring; education and training; and pre-notification of chemical use. A commercial pest control applicator's license issued by the Ohio Department of Agriculture is required for extermination of rental properties of more than four apartment units at one location. Reference Ohio Revised Code 921.06.

(F) The occupant must maintain the living area in a sanitary manner. The living area must be kept free of clutter and harborage. The premises shall be kept free of obvious food sources for pests. The floors shall be sanitary and dry.

(G) It shall be unlawful for any person to put outdoors, or allow to be put outdoors, any food for the purpose of nourishing birds, fowl, or non-domestic animals where such food shall be available to rats, unless such food shall be in an above-ground level bird-feed container inaccessible to rats. It shall be unlawful for any person to attract "pest" birds by leaving bread or other non-seed type food material on the ground, or by setting out such food in a manner that allows it to be scattered on the ground by squirrels, birds, or other wildlife. Pest birds shall be defined as pigeons, starlings, sparrows, and blackbirds.

(H) No occupied building shall be permitted to be open to the ingress of pigeons or wild animals that shall create a nuisance or menace to the health of the occupants and neighboring individuals.

(I) The owner of any structure shall be responsible for extermination within the structure prior to renting or leasing the structure.

(J) The occupant of a one-family dwelling shall be responsible for extermination on the premises, except where there is a rat infestation due to a structural issue that

allows access to the premises by rodents, in which case extermination will be the responsibility of the owner.

(K) The owner of a structure containing two or more dwelling units, a multiple occupancy, a rooming house or a nonresidential structure shall be responsible for extermination in all interior and exterior areas of the structure and property.
(Amended, Sept. 24, 1981; a. March 22, 2011, § 1)

§ 00053-13. Miscellaneous environmental sanitary regulations.

(A) The use of common towels or common drinking cups in any place frequented by the general public is prohibited, except for a religious ceremony.

(B) It shall be unlawful for any person to spit on the floor of any factory, store, office, or other structure used as a workroom or as a dwelling place.

(C) The owner or operator of any theater, movie theater, stadium, park, amusement resort, factory, workroom, hotel, rooming house, or other place where employees or the public assembles shall maintain such places in a clean and sanitary condition, and shall provide adequate clean handwashing and toilet facilities that include soap, paper towels or hand dryer, toilet paper, and a waste can for each facility.

(D) The owner of any unoccupied building, shed, or other structure shall keep such structure closed at all times to prevent unauthorized entry of persons who may enter and "commit a nuisance" therein.

(E) No person shall urinate, defecate, or "commit any nuisance" whatsoever in any doorway, hall, stairway, alleyway, street, passageway, breezeway, yard, cellar, attic, or other place other than in a regular sanitary toilet fixture.

(F) The owner of any car or vehicle used for the transportation of the public shall maintain such cars or vehicles in a clean, sanitary condition and shall provide good and sufficient ventilation in them.

(G) The owner of any lot or vacant land on which pools of water stagnate, or become a breeding place for mosquitoes, shall fill or drain the depressions or otherwise abate the condition.

(H) No person shall burn or permit to be burned on any lot within the city any garbage, bones, refuse, rubbish, or other substances which give rise to offensive odors or gases.

(I) It shall be unlawful for any person to discharge, or permit to be discharged, any dust, smoke, fumes, steam, vapor, other gas, or volatized material into the air so as to be a menace to the health of the community.

(J) It shall be unlawful for any person to boil, heat, cook, steam, evaporate, dry, render, or reduce any dead animals, bones, fat, grease, feathers, blood, hair, or other organic substance unless sufficient apparatus is employed to contain or destroy odors.

(K) No mat, carpet, rug, cloth, mop, or duster shall be shaken, beaten, agitated, or exposed in the open air so that dust or dirt will pass into any dwelling, house, store, or into any yard where clothes are being dried, or fall upon persons using the public sidewalks or streets.

(L) It shall be the duty of every person who shall have contracted or undertaken to furnish heat for any building or portion thereof, occupied as a home or place of residence of one or more persons, to heat, or to furnish heat for every occupied room in such building, or portion thereof, so that a minimum temperature of 70° F (21°C) may

be maintained as measured at a distance of thirty-six (36)inches above the floor whenever the outer or street temperature shall fall below 60i?1/21/21/21/21/21/21/21/21/21/21/21/ 21/21/21/21/21/21/21/21/21/21/21/21/21/21/21/ 21/21/21/21/21/21/21/21/21/21/21/21/21/21/2F (16i?1/21/21/21/ 21/21/21/21/21/21/21/21/21/21/21/21/21/21/21/21/21/ 21/21/21/21/21/21/21/21/21/21/21/21/21/21/21/21/21/ 21/2C) for twenty-four (24) consecutive hours.

Wherever a building is heated by means of a furnace, boiler or other apparatus under control of the owner, agent or lessee of such building, such owner, agent or lessee, shall be conclusively presumed to have contracted, undertaken, or bound himself or herself to furnish heat in accordance with the provisions of this section.
(Amended, Nov. 27, 1973; a. Jan. 24, 1984; a. March 22, 2011, § 1)

§ 00053-15. Regulating the sale and use of paint containing more than (nine thousandths percent (0.009%) of metallic lead.

(A) Labeling. No person shall sell, hold for sale, transport, or give away a hazardous substance, unless properly labeled. When a hazardous substance is labeled in compliance with applicable state or federal law, this section shall not apply except that if the commissioner finds that the labeling of the substance is inadequate to protect the public health, the labeling of the substance shall, upon the order of the commissioner and written notice to the manufacturer or distributor, contain such additional matter as may be required.

(B) Lead paint.

(1) No person shall possess, sell, hold for sale, give away or leave in any place paint containing more than nine thousandths percent (0.009 %) of metallic lead, based upon total non-volatile content of the paint, unless the labeling bears the following statement: "Contains lead. Harmful if eaten. Do not apply on toys, furniture, interior or exterior surfaces which might be accessible to children." This sub-section does not apply to marine paints, roof cements and coatings, automotive finishes which are not sold at retail, or to paints in residential buildings-other than paints for toys, children's furniture, interior or exterior surfaces which might be accessible to children, which are sold for purposes other than resale, to the city or state or federal government, or a manufacturer, an industrial plant, a public utility or metal structural contractor.

(2) No person shall manufacture, sell or hold for sale children's toys or children's furniture that has paint containing more than nine thousandths percent (0.009 %) of metallic lead based on the non-volatile content of the paint.

(3) No person shall use paint containing more than nine thousandths percent (0.009 %) of metallic lead based on the non-volatile content of the paint on the exterior or interior surfaces of any property accessible to small children.

(4) When the department finds that there is paint or other material containing more than five-tenths percent or 1.0 mg/cm2 or more of metallic lead based on the non-volatile content of the paint on the exterior or interior surfaces of any property, including items other than those with painted surfaces, it may order the removal of the paint or removal of the property, under such safety conditions as it may specify, and the refinishing of

the exterior or interior surfaces with a suitable finish which is not in violation of this section.

(C) Loose and flaking paint/interior and exterior paint surfaces.

(1) Loose and flaking paint containing lead in excess of five-tenths percent or 1.0 mg/cm2 or more on interior or exterior surfaces of any property accessible to small children shall, in a lead-safe manner, be removed or made inaccessible and/or the surfaces recovered with paint or other covering. If paint is used, it shall not contain lead in excess of nine thousandths percent (0.009 %)

(2) Interior and exterior surfaces of property found to have coatings which contain lead in excess of five-tenths percent limit or 1.0 mg/cm2 or more, when said coatings are identified as the probable source of undue lead absorption or lead poisoning in human beings, shall, in a lead-safe manner, have the coatings removed, covered or made inaccessible to small children.

(Amended, Jan. 28, 1973; a. Nov. 23, 1976; a. Oct. 2005; a. March 22, 2011, § 1)

§ 00053-17. Severability clause.

Should any section, paragraph, sentence, clause, or phrase of this Regulation be declared unconstitutional or invalid for any reason, the remainder of said Regulation shall not be affected thereby.

(Amended March 22, 2011, § 1)

§ 00053-19. Penalty.

Violation of any provision of this Regulation shall be a misdemeanor of the first degree. Each and every violation of the provisions of this Regulation shall constitute a separate offense.

(Amended March 22, 2011, § 1)

00054. Repealed.

(Adopted, Nov.20, 1968; r. Mar. 24, 1983)

00055. Regulating And Licensing The Operation Of Recreational Vehicle Parks, Recreation Camps, And Combined Park/Camps.

§ 00055-1. Definitions.

(A) *"Recreational Vehicle Park"* means any tract of land used for parking five or more self-contained recreational vehicle free of charge or for a fee and includes any roadway, building, structure, vehicle, enclosure, drainage system, sewerage system, water supply system, or electric system used or intended for use as part of the park facilities and any tract of land which is subdivided for lease or other contract of the individual lots for the express or implied purpose of occupancy by self-contained recreational vehicles.

(B) *"Recreation Camp"* means any tract of land used for parking two or more portable camping units either free of charge or for a fee and includes any roadway, building, structure, vehicle, enclosure, drainage system, sewerage system, water supply system, or electric system used or intended for use as part of the facilities of such camp. A tract of land which is subdivided for lease or other contract of the individual lots is a recreation camp if two or more portable camping units are placed thereon for temporary habitation.

(C) *"Combined Park/Camp"* means any tract of land used for parking a combination of five or more self-contained recreational vehicles or portable camping units.

(D) *"Temporary Park-Camp"* means any tract of land used for a period not to exceed a total of sixteen (16) days per calendar year for the purpose of parking five (5), but not more than seventy-five (75), recreational

vehicles, or portable camping units, or any combination thereof, for one or more periods of time that do not exceed four (4) consecutive days or parts thereof.

(E) *"Recreational Vehicle"* has the meaning set forth in Section 4501.01 of the Ohio Revised Code.

(F) *"Self Contained Recreational Vehicle"* has the meaning set forth in Section 3729.01 of the Ohio Revised Code.

(G) *"Portable Camping Unit"* has the meaning set forth in Section 3729.01 of the Ohio Revised Code.

(H) *"Health Commissioner"* shall mean the Commissioner of the Health of the City of Cincinnati, or any of the Commissioner's authorized representatives.
(Amended Mar. 27, 1979; a. Oct. 23, 1990; a. Nov. 24-92; a. Feb. 24, 1998; a. Res. No. 2004-29, §§ 1, 2, eff. Dec. 28, 2004)

§ 00055-3. Fees.

(A) On or after the first day of December, but before the first day of January of the next year, every person or governmental entity that intends to operate a recreational vehicle park, recreation camp, or combined park-camp shall procure a license from the licensor to operate such a park or camp for said year.

(B) License Fees:

(1) Less than 50 Sites	$281.00
(2) 50+ Sites	281.00
plus 1.30/site	
(3) Temporary License	52.00

(C) Bacteriological Water Sample 5.00

[(D) Reserved.]

(E) The portion of any fee retained by the Board of Health shall be paid into a special fund and used only for the purpose of admin-

istering and enforcing sections 3729.01 to 3729.13 of the Revised Code and the rules adopted thereunder.
(Amended Mar. 27, 1979; a. Oct. 23, 1990; a. Nov. 24-92; a. Sept. 28, 1993; a. Oct. 25, 1994; a. Nov. 28, 1995; a. Feb. 24, 1998; a. Res. No. 2004-29, §§ 1, 2, eff. Dec. 28, 2004)

§ 00055-5. Requirements.

(A) *Driveways and Walkways:*

(1) No individual lot in a recreational vehicle park, recreation camp, or combined park-camp shall have a direct accessway for vehicles to the public thoroughfare.

(2) Each driveway in a recreational vehicle park, recreation camp, or combined park-camp shall have unobstructed access to a public thoroughfare; and all driveways shall be maintained in a passable and reasonably dustproof condition at all times.

(3) One parking space alongside and parallel in each space in a recreational vehicle park, recreation camp, or combined park-camp shall be provided for the occupants of the trailer.

(4) All entrance and exit two-way streets shall have a minimum width of 35 feet exclusive of any median strip. One-way entrance or exit streets shall have a minimum width of 20 feet.

(5) The operator may permit parking on both sides streets having a minimum width of 35 feet.

(6) The operator may permit parking on both sides of streets having a minimum width of 28 feet which have been designated as "one way."

(7) The operator may permit parking on one side of a "two-way" street having a minimum width of 28 feet.

(8) The operator may permit parking on one side of streets having a minimum width of 20 feet which have been designated as "one way."

(B) *Sites:*

(1) The body of a recreational vehicle or portable camping unit must be more than 10 feet from any public roadway, street, or alley and not less than eight feet from the recreational vehicle park, recreation camp, or combined park-camp property line. A trailer hitch is not considered a part of a trailer; however, it should not extend out onto the driveway or walkway within the park.

(2) Each individual space shall abut on a driveway within the park and shall have an obstructed frontage width of not less than 25 feet.

(C) *Service Buildings:*

(1) A separate laundry room provided with hot and cold running water at all times and not less than one double laundry tray or one automatic washing machine shall be provided for each recreational park where laundering is permitted. Toilet, lavatory, and path fixtures shall not be located in the laundry room.

(2) All windows and doors shall be screened during that period of the year when insects are present.

(3) All buildings shall be rodent proof.

(D) *Domestic Animals:*

(1) No domestic animals or house pets may be allowed to run at large.

(2) All such animals must be vaccinated against rabies and must otherwise conform to Cincinnati Board of Health requirements.

(E) *Records:*

(1) The operator shall keep records and make reports as required by the Board of Health.

(F) *Waste Water Disposal Facilities:*

(1) When waste water disposal facilities are required at a recreational vehicle park, recreation camp, or combined park/camp, as specified in rule 3701-25-60 of the Administrative Code, the licensee shall ensure that the waste water facilities meet the following requirements:

(a) The waste water facility shall be located so that no park or camp site is farther than two hundred (200) feet walking distance from a waste water facility;

(b) The waste water facility shall be easily accessible and provided with a sign indicating that the facility is for liquid waste only;

(c) The waste water facilities shall be designed and constructed to accept liquid waste and maintained to keep the facility and the area around the facility free from any liquid waste nuisances;

(d) Except as provided in paragraphs (e) and (f) of rule, the waste water facility installed in a park or camp after August 17, 1992, shall consist of one of the following:

(1) A plastic or concrete holding tank which is of a watertight design and is capable of holding at least two hundred fifty (250) gallons. The train opening through which waste water is deposited into the holding tank shall be installed in a plastic or concrete riser which shall extend a minimum of twelve (12) inches above the ground surface. The drain opening shall be surrounded by a surface which extends from the opening to the sides of the riser and which slopes to the opening. The drain opening shall be covered by a drain gate and shall be located at least four (4) inches below the top edge of the riser; or

(2) Individual site connections; or

(3) An alternative waste water disposal system approved by the Health Commissioner when it can be demonstrated that the soil conditions are conducive for filtration of liquid waste water.

(e) A park or camp that is in existence and license by August 17, 1992, is not required to comply with paragraph (d) of this rule unless either of the following is the case:

(1) The park or camp is substantially altered or expanded in such a manner that plan approval is required under Rule 3701-25-52 of the Administrative Code; or

(2) The licensor determines that any existing waste water disposal facility is causing a nuisance because its location, installation, or design is not in compliance with paragraph (c) of this rule.

(f) Temporary park/camps shall comply with the requirements of paragraphs (a), (b), and (c) of this rule and shall provide adequate meth-

ods for disposal of waste water from camping units which may include but are not limited to:

(1) On-site waste water disposal facilities which comply with the requirements of paragraph (d) of this rule; or

(2) The services of a sewage or septage hauler that is registered by a local health district.

(Amended, Mar. 27, 1979; a. Oct. 23, 1990; a. Nov. 24-92; a. Feb. 24, 1998; a. Res. No. 2004-29, §§ 1, 2, eff. Dec. 28, 2004)

§ 00055-7. Restrictions.

(A) A recreational vehicle shall be licensed as an over-the-road vehicle by the state of permanent residence.

(B) Recreational vehicles and portable camping units may not remain at one location in Cincinnati in a recreational vehicle park, recreation camp, or combined park/camp for longer than 90 days.

(C) A recreational vehicle park, recreation camp, or combined park/camp must comply with all applicable provisions of the Cincinnati Zoning Code, Building Code, Fire Prevention Code, and all other applicable local codes, regulations, or Ordinances.

(Amended, Mar. 27, 1979; a. Oct. 23, 1990; a. Feb. 24, 1998; a. Res. No. 2004-29, §§ 1, 2, eff. Dec. 28, 2004)

§ 00055-9. Repealed.

(Adopted, June 13, 1973; a. Mar. 27, 1979; a. Oct. 23, 1990; r. Res. No. 2004-29, §§ 1, 2, eff. Dec. 28, 2004)

00057. Repealed.

(Repealed Feb. 12, 2003)

00061. Repealed.

(Repealed Feb. 12, 2003)

00065. Repealed.

(Repealed Feb. 12, 2003)

00069. Repealed.

(Repealed Feb. 12, 2003)

00071. Repealed.

(Repealed Feb. 12, 2003)

00073. Fees for Clinic Services.

This regulation is amended frequently. The current version is on file with the Clerk of the Board of Health, 3101 Burnet Avenue, Cincinnati, Ohio 45229, 352-3197.

Editor's note—The following sections of Regulation 00073 have been amended:

Effective Date	*Section Amended*
1-27-87	00073-1, 00073-5
6-23-87	00073-1, 00073-5
2-23-88	000731, 00073-5.
4-26-88	00073-1
6-28-88	00073-1, 00073-5
1-24-89	00073-1, 00073-5
5-23-89	00073-1, 00073-5
11-28-89	00073-1, 00073-5, 00073-7
6-26-90	00073-1, 00073-5, 00073-7
11-27-90	00073-1, 00073-3, 00073-5, 00073-7, 00073-9, 00073-11
8-24-94	00073-1, 00073-3, 00073-7
6-21-95	00073-1, 00073-3
4-28-98	00073-1
11-28-00	00073-1, 00073-3, 00073-5, 00073-7
9-25-01	00073-1, 00073-3, 00073-5, 00073-7, 00073-9, 00073-11
2-12-03	00073-1, 00073-3, 00073-5, 00073-7, 00073-9, 00073-11
3-24-04	00073-1—00073-11

00075. Repealed.

(Repealed Feb. 12, 2003)

00077. Household Sewage Treatment Systems.

§ 00077-1. Definitions.

A. "Household Sewage Treatment System" means any sewage disposal or treatment system, or part thereof, for any single family, two-family, or three-family dwelling which receives sewage.

B. "Installer" means any person who installs, or is in the business of installing, a household sewage treatment system, or part thereof.

C. "Septage Hauler" means any person who engages in the collection, transportation, disposal, and land application of domestic septage.

D. "Service Provider" means any person who services, but does not install or alter, a sewage treatment system.

E. "Alter" means to change by making substantive replacements of, additions to, or deletions in the design or materials or to change the location of an existing sewage treatment system. For the purposes of this chapter, the terms "alter" or "alteration" shall not include the replacement of an existing sewage treatment system or the repair of a sewage treatment system by making minor corrections to existing components or substituting parts of a component with like parts as would occur during the servicing and maintenance of a sewage treatment system.

(Amend. Res. No. 2007-01, §§ 1, 2, approved Feb. 2007; a. Res. No. 2009-01, approved Feb. 11, 2009)

§ 00077-3. Site Review Application, Installation Permit, Alterations Permit, Operation Permit, Abandonment

A. No person intending to install a new Household Sewage Treatment System or replace an existing Household Sewage Treatment System shall be issued an installation permit without the Cincinnati Board of Health first approving a site review application.

B. A site review application for a Household Sewage Treatment System alteration may be required by the Board of Health, and when required, shall contain all pertinent information and the application fee required by the Board of Health. In the case where an alteration involves the expansion of a soil absorption component, the Board of Health shall determine when a site and soil evaluation shall be conducted or required in compliance with section 3701-29-08 of the Ohio Administrative Code.

C. No person shall install or replace a Household Sewage Treatment System without an approved and valid installation permit issued by the Cincinnati Board of Health. No person shall alter a Household Sewage Treatment System without an approved and valid alteration permit issued by the Board of Health.

D. The owner or his/her designated agent shall obtain an installation permit from the Cincinnati Board of Health for the installation of a "Household Sewage Treatment System" prior to the start of construction of a dwelling.

E. An approved installation permit or alteration permit issued by the Board of Health shall be valid for one year from the date of issuance or until the installation or alteration is completed and approved by the Board of Health within the one year period. The Board of Health may extend the permit period for an additional six months for permits issued pursuant to the Ohio Administrative Code.

F. No person shall maintain or operate a "Household Sewage Treatment *9* System" without an operation permit from the Cincinnati Board of Health.

G. Every operation permit shall expire on December 31 of each year, irrespective of the date of issuance, and shall not be transferable. All operation permits shall be renewed before January 1 of each year.

H. A permit to abandon may be required by the Board of Health for any person who is no longer using a Household Sewage Treatment System or an applicable component of a Household Sewage Treatment System to properly abandon all tanks, dosing tanks, and/or pretreatment components that are no longer in use.
(a. Oct. 25, 1994; a. Res. No. 2007-01, §§ 12, 2 approved Feb. 2007)

§ 00077-5. Installers.

A. No person shall perform the services of an "Installer" of a "Household Sewage Treatment System" unless he/she holds a valid registration issued by the Board of Health.

B. Upon approval of an application for registration, the installer or repairer shall post a surety bond of not less than twenty-five thousand dollars with the Cincinnati Board of Health. The bond shall be contingent upon the registrant's faithful compliance with the household sewage treatment regulations and standards included in Chapter 3701 of the Ohio Administrative Code, and other approved requirements, as they may from time to time be amended and shall be conditioned upon the faithful performance of all work undertaken for installation of HSTS. Such bond shall be submitted to the Cincinnati Board of Health on or before the first day of January of each year.

C. A registered installer shall provide proof of compliance with any training, qualification, or certification conditions required for a component or system, as set forth in Chapter 3701 of the Ohio Administrative Code, and shall comply with any installation instructions accompanying a permit issued by the Board of Health.

D. Every registration certificate shall expire on December 31 of each year, irrespective of the date of issuance, and shall not be transferable. All registration certificates shall be renewed before January 1 of each year.
(a. Oct. 25, 1994; a. Res. No. 2007-01, approved Feb. 2007; a. Res. No. 2009-01, approved Feb. 11, 2009)

§ 00077-7. Septage Haulers.

A. No person shall perform the services of a "Septage Hauler" unless he/she holds a current HSTS Septage Hauler Registration issued by the Cincinnati Board of Health.

B. The application for registration and for renewal of registration shall be in writing on a form provided by the Cincinnati Board of Health and shall contain all pertinent information as required by the Board of Health. The Board of Health may establish by resolution a registration fee and such fee shall accompany the application.

C. A registered septage hauler shall provide proof of compliance with any training, qualification, or certification conditions, as set forth in Chapter 3701 of the Ohio Administrative Code, and shall comply with any instructions accompanying a registration or permit issued by the Board of Health.

D. In addition to the general "HSTS Septage Hauler Registration", "Septage Haulers" shall obtain a Septage Hauler Vehicle Registration from the Cincinnati Board of Health for each vehicle used to haul septage. "Septage Haulers" shall also report tank capacity for each vehicle, and allow each vehicle and its equipment to be inspected.

The applicant shall demonstrate the following before being registered:

1) That each vehicle tank is leak-proof, has a minimum capacity of 1,000 gallons, and is in good condition.

2) That the pumping equipment is capable of removing the accumulated sludge from a sewage tank.

3) That the applicant has access to acceptable locations for the disposal of transported sewage and has made acceptable arrangements for the safe handling of the sewage during the emptying of the vehicle tank.

4) That the company name or logo in characters at least three inches high be displayed on both sides of each truck cab or vehicle tank.

5) That the applicant has the ability to completely clean out all septic tank compartments and filters.

E. Upon approval of an application for registration, the Septage Hauler shall post a surety bond of not less than twenty-five thousand dollars with the City of Cincinnati Health Department. The amount of the bond may be determined from time to time by resolution of the Board of Health. Acceptance of the bond shall be contingent upon the registrant's faithful compliance with the household sewage treatment regulations and standards included in Chapter 3701 of the Ohio Administrative Code, and any other approved manuals as they may from time to time be amended and shall be conditioned upon the faithful performance of all work undertaken for the cleaning of HSTS. Such bond shall be submitted to the City of Cincinnati Health Department.

F. Each and every registrant shall maintain and submit to the Board of Health such data and records as may be required for determining compliance with the requirements in Chapter 3701 of the Ohio Administrative Code.

G. Every registration certificate and permit shall expire on December 31 of each year, irrespective of the date of issuance, and shall not be transferable.
(a. Oct. 25, 1994; a. Res. No. 2007-01, approved Feb. 2007; a. Res. No. 2009-01, approved Feb. 11, 2009)

§ 00077-9. Service Providers.

A. No person shall perform the services of a "Service Provider" unless he/she holds a current registration issued by the Cincinnati Board of Health.

B. The application for registration and for renewal of registration shall be in writing on a form provided by the Cincinnati Board of Health and shall contain all pertinent information as required by the Board of Health. The Board of Health may establish by resolution a registration fee and such fee shall accompany the application.

C. Upon approval of an application for registration, the Service Provider shall post a surety bond of not less than twenty-five thousand dollars with the Cincinnati Board of Health. The bond shall be contingent upon the registrant's faithful compliance with the household sewage treatment regulations and standards included in Chapter 3701 of the Ohio Administrative Code, and other approved requirements, as they may from time to time be amended and shall be conditioned upon the faithful performance of all work undertaken for maintenance, monitoring, and service of HSTS. Such bond shall be submitted to the Cincinnati Board of Health on or before the first day of January of each year.

D. A registered service provider shall provide proof of compliance with any training, qualification, or certification conditions, as set forth in Chapter 3701 of the Ohio Administrative Code, and shall comply with any instructions accompanying a registration or permit issued by the Board of Health.

E. Every registration certificate shall expire on December 31 of each year, irrespective of the date of issuance, and shall not be transferable.
(Ordained by Res. No. 2007-01, approved Feb. 2007; a. Res. No. 2009-01, approved Feb. 11, 2009)

§ 00077-11. Variances.

A. Variances may be granted in accordance with chapter 3701-29-18 of the Ohio Revised Code.

B. All variances shall be considered by the Board of Health on a case-by-case basis. Any variance granted to one set of circumstances will not and does not establish a precedent.
(Added Jan. 1, 1984; a. Jan. 1, 1985; a. Res. No. 2007-01, approved Feb. 2007)

§ 00077-13. Fees.

Fees for the services of the Board of Health in administering this Regulation and any other requirements of state law shall be as follows:

	Fee Category	Fee
1.	General Site Review Application to Install/Replace an HSTS	$250.00
2.	Subdivision Site Review (First Lot)	$125.00
3.	Subdivision Site Review (Each Additional Lot)	$75.00
4.	Property Additions (Rooms, Pools, Garages)	$75.00
5.	Variance Application	$75.00
6.	Permit to Install/Replace an HSTS (Excluding State Fee)	$250.00
7.	Permit to Alter an HSTS	$125.00
8.	Permit to Operate an HSTS	$80.00
9.	Permit to Abandon an HSTS	$50.00
10.	HSTS Installer Registration	$100.00
11.	HSTS Service Provider Registration	$100.00
12.	HSTS Septage Hauler Registration	$100.00
13.	Septage Hauler Vehicle Registration	$50.00
14.	HSTS Installation Re-inspection Fee (Exceeding fifth re-inspection)	$30.00
15.	HSTS Discharge System Sample Collection	$50.00
16.	Late Fee (Permit to Operate): 25% of fee	

(Ordained by Res. No. 2007-01, approved Feb. 2007)

00079. Fees Retail Food Establishments; Food Service Operations.

The cost of a license for a Retail Food Establishment or Food Service Operation as defined in Section 3717.01 of the Ohio Revised Code shall be any amount determined pursuant to Sections 3717.45 and 3717.25 of the Ohio Revised Code, plus the following license fees, based on the risk levels established in Ohio Administrative Code Section 3701-21-02.3 and 901:4-4-05:

(A) Retail Food Establishment/Food Service Operation Fees

1) < 25,000 ft.^{2}

Risk Class Level 1	$292.00
Risk Class Level 2	$330.00
Risk Class Level 3	$635.00
Risk Class Level 4	$805.00

2) ≥ 25,000 ft.^{2}

Risk Class Level 1	$423.00
Risk Class Level 2	$447.00
Risk Class Level 3	$1,596.00
Risk Class Level 4	$1,692.00

(B) Fees for Temporary Food Service Operations (per single event, not to exceed a maximum of five consecutive days) $154.00

(C) Fees for Mobile Food Service Operations $151.00

(D) Fees for Mobile Retail Food Establishments

1) High Risk $151.00

2) Low Risk $75.50

(E) Fees for Vending Food Service Operations $13.44

(F) Facility Review/Equipment Specification Fees For New Construction or Major Changes (for example: structural changes; installation of new equipment; operational changes such as converting the building use or type of food service; or modifying facilities that have not previously been licensed as a food service.

1) < 10,000 ft.^{2}

Risk Class Level 1	$200.00
Risk Class Levels 2, 3 & 4	$400.00

2) ≥ 10,000 ft.^{2}

Risk Class Level 1	$300.00
Risk Class Levels 2, 3 & 4	$600.00

(G) Facility Review/Equipment Specification Fees For Minimal Changes (such as floor layout alteration, equipment placement, or facilities that have not been operated in over a year as a food service operation.

1) < 10,000 ft.^{2}

Risk Class Level 1	$100.00
Risk Class Levels 2, 3 & 4	$200.00

2) ≥ 10,000 ft.^{2}

Risk Class Level 1	$150.00
Risk Class Levels 2, 3 & 4	$300.00

(H) Facility Review/Equipment Specification Fees for Change of Ownership only $100.00

(I) Any such fee or portion of such fee retained by the Board of Health shall be paid into a special fund as provided in Sections 3717.45 and 3717.25 of the Ohio Revised Code and used only for the purpose of administering and enforcing Sections 3717.01 to 3717.99 of the Revised Code.

(J) If a license fee is not received by the Board of Health after March 1 of each year, a penalty of 25 percent of the applicable fee for that year shall be imposed and paid as provided in Sections 901:3-4-02 and 3701-21-02 of the Ohio Administrative Code. This subsection does not apply to Mobile Food Retail Food Establishments, Temporary Retail Food Establishments, or to a new Food Service Operation or Retail Food Establishment that opened for business subsequent to March 1 of that year.

(Ordained by Res. No. 2001-01, § 1, eff. March 1, 2001; a. Res. No. 2003-26, eff. Dec. 9, 2003; a. Res. No. 2005-1, eff. Jan. 25, 2005; a. Res. No. 2006-15, § 1, eff. March 1, 2007; a. eff. Oct. 23, 2007; a. Res. No. 2008-14, § 1, eff. Nov. 18, 2008; a. Res. No. 2009-08, § 1, eff. Nov. 18, 2009; a. Res. No. 2010-07, § 1, eff. Oct. 1, 2010; a. Res. No. 2012-10, § 1, eff. Dec. 1, 2012; a. Res. No. 2013-08, § 1, eff. Dec. 1, 2013; a. Res. No. 2014-19, § 1, eff. March 1, 2015; a. Res. No. 2015-05, § 1, eff. Dec. 1, 2015; a. Res. No. 2016-02, § 1, eff. June 1, 2016; a. Res. No. 2017-01, § 1, eff. March 1, 2018; a. Res. No. 2024-001, § 1, eff. February 12, 2024)

00081. Repealed.

(Repealed Feb. 12, 2003)

00083. Regulation of Smoking in Public Places.

§ 00083-1. Restrictions.

Except as provided in subsection 00083-3(a) through (i), the possession of lighted smoking materials in any form, including but not limited to the possession of lighted cigarettes, cigars, pipes, or other tobacco products, is prohibited in any of the following places used by or open to the public or serving as a place of work:

(a) Any commercial establishment, including but not limited to retail stores, restaurants, banks, office buildings, and offices;

(b) Any vehicle of public transportation, including but not limited to trains, buses, limousines for hire, taxicabs, and ferries;

(c) Elevators;

(d) Restrooms;

(e) Libraries, educational facilities, museums, auditoriums, and art galleries;

(f) Any public area of a health care facility, health clinics, or ambulatory care facilities, including but not limited to laboratories associated with the rendition of health care treatment, hospitals, rest homes, doctors' offices, and dentists' offices;

(g) Any indoor place of entertainment or recreation, including but not limited to gymnasiums, theatres, concert halls, bingo halls, arenas, and swimming pools;

(h) Any other enclosed area used by the public or serving as a place of work, including open office landscaping;

(i) Hospitals will accommodate nonsmokers by providing nonsmoking rooms.

§ 00083-3. Exemptions.

The restrictions of Section 00083-1(a) through (i) shall not apply to:

(a) Areas which are specifically designated as smoking areas in accordance with Section 00083-5 of this regulation;

(b) An entire room or hall which is used for private social functions provided that the seating arrangements are under the control of the sponsor of the function and not of the proprietor or person in charge of the place;

(c) Limousines for hire and taxicabs, where the driver and all passengers affirmatively consent to smoking in such vehicle;

(d) A private, enclosed office occupied exclusively by smokers, even though such office may be visited by nonsmokers, provided that this exception shall not be construed to permit smoking in the reception areas of lobbies or offices;

(e) Factories, warehouses, and similar places of work not usually frequented by the general public, except that the health commissioner shall establish rules to restrict or prohibit smoking in those places of work where proximity of workers or where inadequate ventilation may cause smoke pollution detrimental to the health, comfort, or convenience of nonsmoking employees;

(f) Performers upon the stage, provided that the smoking is part of a theatrical production;

(g) Designated areas of theatre lobbies;

(h) Shopping malls;

(i) Application of variance. The health commissioner may grant a hearing to an operator and may authorize, in specific cases, such variance from the requirements of this regulation as will not be contrary to the public interest, where the operator shows that because of practical difficulties or other special conditions, their strict application will cause unusual and unnecessary hardship. However, no variance shall be granted that will defeat the spirit and general interest of this regulation or which otherwise would not be in the public interest.

§ 00083-5. Designation of smoking areas.

(A) Smoking areas may be designated by proprietors or other persons in charge of places within Section 00083-1(a) through (i), except in places in which smoking is otherwise prohibited by the fire division or by other statute, ordinance, or regulation.

(B) The immediately-preceding subsection shall not be construed to require persons in charge of places within Section 00083-1(a) through (i) to provide smoking areas.

(C) Where smoking areas are designated, existing barriers and functioning ventilation systems shall be used to minimize the irritating and toxic effects of smoke in adjacent non-smoke areas.

(D) No public place within Section 00083-1(a) through (i), other than in a bar, a bar with limited food service, or a bowling establishment shall be designated as a smoking area in its entirety; provided that, if a bar or bowling establishment is designated as a smoking area in its entirety, this designation shall be conspicuously posted on all entrances normally used by the public.

§ 00083-7. Responsibility of proprietors.

The proprietor or other person having control of a place within Section 00083-1 (a) through (i) shall:

(a) Provide a seat in a nonsmoking area in accordance with Section 00083-1 for all persons requesting such a seat;

(b) Prominently post "SMOKING" or "NO SMOKING" signs, whichever are appropriate, with letters of not less than one inch in height, or the international "NO SMOKING" symbol consisting of a pictorial representation of a burning cigarette enclosed in a red circle with a bar across it. The owner, operator, manager, or other person having control of such building or place shall clearly, sufficiently, and conspicuously post in every room, building, or other place where smoking is regulated by this regulation.

(1) Every theatre owner, manager, or operator shall post signs conspicuously in the lobby stating that smoking is prohibited within the theatre or auditorium, and in the case of motion picture theatres, such information shall be shown upon the screen for at least five seconds prior to the showing of each feature motion picture.

(2) Every restaurant will have posted at its entrance a sign clearly stating that a nonsmoking section is available, and every patron shall be asked as to his or her preference.

(3) Every public portion of grocery stores and food markets are required to have posted "NO SMOKING" signs at specific locations throughout each market as follows: Signs must be visible to people entering the market, people at meat and produce counters, and people in all checkout lanes.

(c) Request persons smoking in violation of this act to stop.

(d) In any dispute arising under this regulation, the rights of the nonsmoker shall be given preference.

§ 00083-9. Public education.

The health commissioner shall engage in a continuing program to inform and to educate the public regarding the health consequences of smoking; shall clarify the purposes of this regulation to citizens affected by it; and shall guide owners, operators, and managers in their compliance.

§ 00083-11. Validity or constitutionality.

Each rule and every part thereof is hereby declared to be an independent rule and a part of a rule; and the holding of any rule or part thereof to be unconstitutional, void, or ineffective for any cause shall not affect the validity or constitutionality of any rule or part thereof.

§ 00083-13. Nondiscrimination.

No person or employer shall discharge, refuse to hire, or in any manner discriminate

against any employee or applicant for employment because such employee or applicant exercised any rights afforded by this regulation.
(Added Oct. 1, 1985, eff. Jan.1, 1986)

00084. Licensing of Tobacco Retailers and Prohibiting Tobacco Product Sales to Individuals Under Age Twenty-One (21).

§ 00084-1. Definitions.

All terms not defined in this regulation shall have the meaning set forth in Chapter 609 of the Cincinnati Municipal Code.

(A) "Department" means the Health Department of the City of Cincinnati and its authorized employees and agents.

(B) "Health Commissioner" means the Health Commissioner of the Board of Health of the City of Cincinnati, or the Health Commissioner's authorized representative.

(C) "Licensee" a person that applied for and was issued a retail tobacco sales license or a temporary retail tobacco sales license.

(D) "Temporary Retail Tobacco Sales" means the act of giving, selling, or otherwise distributing tobacco products at an event for not more than five (5) consecutive days.

(E) "Underage Buy Attempt" means a person, authorized by the Department, under the age of twenty-one (21), who requests purchase of tobacco products from a retailer, or a person, authorized by the Department, under age thirty (30) who requests purchase of tobacco products from a retailer without presenting identification.

(Ordained by Res. No. 2019-0723, § 1, eff. July 23, 2019)

§ 00084-2. License Application.

(A) All retailers of tobacco products apply for a valid retail tobacco sales license or a temporary retail tobacco sales license. For the purposes of this Regulation, retailers shall include any person performing retail tobacco product sales or temporary retail tobacco product sales. Retail tobacco sales licenses shall be issued by the Department annually. Temporary retail tobacco sales licenses shall be valid for not longer than five consecutive days. A license shall be required for each location where retail tobacco product sales are conducted and is non-transferable.

(B) Any retailer applying for a retail tobacco sales license or a temporary retail tobacco sales license shall submit a current and valid vendor's license as required by the Ohio Department of Taxation to the Department. Any retailer who distributes, stores, or sells cigarettes shall submit a current and valid Retail Cigarette Dealer's License as required by Ohio Revised Code Chapter 5743 to the Department prior to approval for licensing.

(C) The annual retail tobacco sales license fee shall be $500. The license shall be valid beginning on the first day of December through the last day of November of the following year. A license issued to a new licensee after the first day of August and before the first day of December shall not expire until the last day of November of the following year. A penalty equal to fifteen (15) percent of the applicable license fee shall be assessed by the Department for license fee payments that are not received or postmarked by the first of December.

(D) The temporary retail tobacco product sales license fee shall be $150.00. The license shall be valid for no longer than five (5) days and limited to a single event. The application shall be made at least ten (10) days

prior to the event. For temporary retail tobacco product sales licenses, no late applications will be permitted.

The penalty for late application/fee payment shall be fifteen (15) percent of the license fee.

(E) License fees are due at the time of application and are not refundable.

FEES	*Fee amount*
Tobacco Retail License (TRL) annual license fee	$500.00
Penalty for late TRL application/fee payment	15% of license fee
Temporary TRL (special events)	$150 per tobacco sale/ distribution point

(Ordained by Res. No. 2019-0723, § 1, eff. July 23, 2019)

§ 00084-3. License Application, Renewal, Denial, Suspension, And Revocation

(A) Applications for retail tobacco sales licenses and temporary retail tobacco sales licenses may be denied, and such licenses may be suspended or revoked, for any of the following:

(1) If the applicant has had a license revoked or denied, based on subsections (2) through (5) below, at any point within the previous twelve (12) months;

(2) Observation by the Department or its authorized agent that the licensee or any agent, employee, or representative of said licensee has violated Sections 609-3 or 609-9 of the Cincinnati Municipal Code or any provision of this regulation;

(3) An order by a court of competent jurisdiction that a retail tobacco sales location owned and/or operated by the licensee/applicant constitutes a public nuisance;

(4) Information contained in the application is misleading, inaccurate, or false;

(5) The licensee/applicant fails to comply with applicable U.S. Food and Drug Administration regulations, the Ohio Revised Code, the Ohio Administrative Code, and the Cincinnati Municipal Code including relating to building, health, or fire.

(B) Any tobacco retailer whose retail tobacco sales license or temporary retail tobacco sales license has been proposed to be suspended or revoked, or whose application has been denied, shall be notified in writing by the Department. Appeals of such action may be made to the Health Commissioner or to a designee.
(Ordained by Res. No. 2019-0723, § 1, eff. July 23, 2019)

§ 00084-4. Sign Distribution and Posting.

(A) Every tobacco retailer shall display at all times both the tobacco license, and a printed sign or signs on the premises of any place owned or operated by the tobacco retailer and where tobacco products are sold or distributed to the public stating that tobacco products shall not be sold to anyone under the age of twenty-one.

(B) Upon approval of a license application, the Department will provide to the licensee, in electronic format, the approved license as well as a sign template that can be printed out by the licensee. The license and sign, in electronic format, shall be made available by the Department at the time of license approval or renewal, and upon request by a licensee. The sign shall be printed by the licensee in colored font (when possible) on standard 8.5 inches by 11 white paper.

The license shall be printed by the licensee according to the instructions provided by the Department upon approval of a license application.

The licensee shall prominently and conspicuously post the approved, current license and the printed signage provided by the Department at each point of sale, including at each vending machine.
(Ordained by Res. No. 2019-0723, § 1, eff. July 23, 2019)

§ 00084-5. Illegal Distribution.

(A) No manufacturer, producer, distributor, wholesaler, or retailer of tobacco products, or any agent, employee, or representative of a manufacturer, producer, distributor, wholesaler, or retailer of cigarettes or other tobacco products shall do any of the following:

1. Give, sell, or otherwise distribute tobacco products to any person under twenty-one (21) years of age.

2. Give, sell, or otherwise distribute tobacco products without viewing proof of age demonstrating the recipient is at least twenty-one (21) years of age, except that no such verification is required for a recipient over the age of thirty (30). That a person appeared to be over the age of thirty (30) shall not constitute a defense to a violation of this section. "Proof of age" means a driver's license, a commercial driver's license, a military identification card, a passport, or an identification card issued under Sections 4507.50 to 4507.52 of the Ohio Revised Code demonstrating that the recipient or purchaser is at least 21 years of age.

(Ordained by Res. No. 2019-0723, § 1, eff. July 23, 2019)

§ 00084-6. Enforcement.

(B) The Department shall conduct inspections for compliance with this regulation, at least once every 2 years.

(C) The Department shall conduct an inspection at least once during the event for all temporary retail tobacco sales licenses.
(Ordained by Res. No. 2019-0723, § 1, eff. July 23, 2019)

00085. License Fees for Marinas.

§ 00085-1. Definitions.

"Marina" has the meaning set forth in Section 3733.21 of the Ohio Revised Code.
(a. Res. No. 2004-30, §§ 1, 2, eff. Dec. 28, 2004)

§ 00085-3. Licenses.

(A) During the month of January of each year, every person proposing to operate an existing marina shall apply for a license to operate such marina for such year from the board of health district in which the marina is located.

(B) A person who has received a license, upon sale or disposition of a marina may, upon consent of the licensing authority, have the license transferred to another person.

(C) License fees:

(1) 7 to 24 moorings	$112.50
(2) 25 to 50 moorings	243.50
(3) 60 to 149 moorings	373.50
(4) 150 to 299 moorings	471.50
(5) 300 to 499 moorings	571.50
(6) 500 or more moorings	597.50
(D) Bacteriological water sample	6.00

(E) The portion of any fee retained by the health district shall be paid into a special fund and shall be used only by the board for the purpose of administering and enforcing Sections 3733.21 to 3733.30 of the Ohio Revised Code and the rules adopted thereunder.
(Adopted, Oct. 23, 1990; a. Sept. 28, 1993; a. Oct. 25, 1994; a. Res. No. 2004-30, §§ 1, 2, eff. Dec. 28, 2004)

00087. Fees for Vital Statistics Functions.

The State of Ohio cost of vital statistics shall be any amount determined pursuant to Sections 3705 Vital Statistics; 3709 Health Districts; 3701.74 Patient or representative may request access to medical record; and 3109 Children, plus the following fees:
(Amended March, §§ 12, 2, 2007; a. Feb. 22, 2011, § 1)

§ 00087-1. Fees for Vital Statistic Functions.

(A) Fee for a paper, certified copy of each birth record..... $8.50

(B) Fee for Court-ordered legal change of name for each person $5.00

(C) Non-refundable search fee charged for each record not located $3.00

(D) Fee for signatures of one or both parents on birth certificates (not signed at the hospital and only when certificate has not been filed in Columbus) $5.00

(E) Birth or Death Affidavit . $3.00

(F) Notary Fee $1.00

(G) Supplemental form adding given name within first year.... $2.00

(H) Birth lists, plain paper copies $2.00 first page/$1.00 each additional page

(I) Death lists, plain paper copies $2.00 first page/$1.00 each additional page

(J) Birth lists on electronic media $1.00 per media type plus .10 per name

(K) Death lists on electronic media $1.00 per media type plus .10 per name

(L) Burial transit permit..... $3.00

(M) Overnight delivery charge (per order) Prevailing Rate

(N) Postage Current First Class Mail Rate

(O) Medical records Fees assessed shall be consistent with Ohio Revised Code § 3701.74.

(P) Fee for a paper, certified copy of each death record $13.50
(Adopted April 14, 1994; a. March 30, 1995; a. Nov. 28, 2000; a. June 24, 2002; a. Res. No. 2002-04(1), eff. Feb. 26, 2002; a. Res. No. 2002-04(2), eff. June 25, 2002; a. Res. No. 2003-18, adopted Sept. 23, 2003; Res. No. 2005-12, approved March 22, 2005, amended March 2007; a. Feb. 22, 2011, § 1)

§ 00087-2. Repealed.
(Ordained by Res. No. 2003-18, adopted Sept. 23, 2003; Res. No. 2005-12, approved March 22, 2005; r. Feb. 22, 2011, § 1)

00089. Manufactured Home Parks.

§ 00089-1. Definitions.

(A) *"Manufactured Home Parks"* has the meaning set forth in Section 3733.01(A) of the Ohio Revised Code.
(a. Res. No. 2004-31, §§ 1, 2, eff. Dec. 28, 2004)

§ 00089-3. Licenses.

(A) During the month of December of each year, every person or governmental entity that intends to operate a manufactured home park within the City of Cincinnati during the following year shall procure a license to operate such park for said year from the Cincinnati Board of Health. No such park shall be maintained or operated without a license.

(B) A person or governmental entity that has received a license, upon the sale or disposition of their park may, upon consent of the Health Commissioner, have the license transferred to the new operator. Such licenses may not be transferred more than once.

(C) License Fees

(1) Fewer than 50 lots.....	$246.00
(2) More than 50 lots.....	246.00
plus, per site.....	1.30
(D) Bacteriological Water Sample Fee	5.00

(E) The portion of any fee retained by the Board of Health shall be paid into a special fund and used only for the purpose of administering and enforcing Sections 3733.01 to 3733.08 of the Revised Code and the rules adopted thereunder.
(Adopted, Nov. 27, 1990; a. Sept. 28, 1993; a. Oct. 25, 1994; a. Dec. 28, 1995; a. Feb. 24, 1998; a. Res. No. 2004-31, §§ 1, 2, eff. Dec. 28, 2004)

00091. Repealed.

(Repealed Feb. 12, 2003)

§ 00093. Local Air Pollution Control Regulations.

Ohio Revised Code (ORC) Chapter 3704: Air Pollution Control, Ohio Administrative Code (OAC) Sections 3745-14, 3745-15 through 3745-23, 3745-31, 3745-35, 3745-71, 3745-73 through 3745-75, 3745-76, 3745-77 through 3745-79, and 3745-105 as these Sections may from time to time be amended, are hereby incorporated by reference as the Cincinnati Board of Health's Local Air Pollution Control Regulations.
(Ordained by Res. No. 2004-15, eff. 6-22-04)

00099. Penalties.

§ 00099-1. Definitions.

(A) *"Whoever"* includes all persons, natural and artificial partners; principals, agents and employees; and all officials, public or private. (Section 1.02(A) Revised Code)

(B) *"Person"* includes a private corporation; and, when used to designate the owner of property which is the subject of an offense, includes not only natural persons, but also every other owner of property.
(Section 1.02(B) Revised Code; a. Res. No. 2004-16, eff. 6-22-04)

§ 00099-3. [Penalty].

Whoever violates any regulation of the board of health or any provision thereof or any order made pursuant thereto is subject to prosecution in accordance with the terms and provisions of all applicable provisions of the Cincinnati Municipal Code or the Ohio Revised Code or the Ohio Administrative Code.
(Amended, Mar. 27, 1979; a. Res. No. 2004-16, eff. 6-22-04)

RULES OF PROCEDURE
CITY ZONING HEARING EXAMINER*

Section 1. General Powers.
Section 2. Applications.
Section 3. Hearings.
Section 4. Hearing Procedures.
Section 5. Decisions.
Section 6. Amendments or Suspension of Rules.

*As amended by the city planning commission and effective on November 1, 2013.

Section 1. General Powers.

The Zoning Hearing Examiner (the "ZHE") of the city of Cincinnati, Ohio (the "City") is established pursuant to Cincinnati Administrative Code Article XXV, Section 10 ("Administrative Code"); and shall be governed by Cincinnati Municipal Code Title I, Chapter 113; Cincinnati Municipal Code Title XIV, the Zoning Code ("Zoning Code"); and these Rules of Procedure. Whenever a conflict exists between these rules and the applicable laws of the State of Ohio or ordinances of the City, the applicable laws and ordinances govern. These rules supersede any previously adopted rules in their entirety.

Section 2. Applications.

A. *Application Forms.* Applications shall be made upon forms approved by the ZHE and submitted in the manner prescribed by the ZHE and the procedures set forth in the Zoning Code. An applicant must provide all information requested on an application form and required by the Zoning Code. An application is deemed "complete" when the Department of City Planning and Buildings Director or its designee ("Department Staff") determines this information is provided and all applicable fees are paid.

B. *Perfection of Application.* All applications shall be filed with Department Staff at the City's Business Development and Permit Center located at 3300 Central Parkway, Cincinnati, Ohio 45225 (the "Permit Center"). An application is "perfected" on the date a complete application is received by Department Staff at the Permit Center.

Once perfected, Department Staff shall transmit the application to the ZHE within three business days of its receipt. Following receipt of a perfected application, the ZHE shall schedule a hearing on the application. Notice of the hearing shall be posted on the Department of City Planning and Buildings's online calendar ("Official Calendar") which can be found at www.cincinnati-oh.gov/zoning. Notice shall also be published in the City Bulletin and mailed to all persons entitled to receive it.

C. *Case Files.* All case files are available for review and download through the ProjectDox system (cagisdocs.hamilton-co.org/ProjectDox). Applicants, designated community council representatives, and designated City representatives shall receive automatic access to case files in which they have an interest. All other persons wishing to access a case file must provide the ZHE with the case number and their email address. Upon receiving this information, the ZHE shall provide them access to the case file.

D. *Electronic Submissions.* Following the perfection of an application, all additional application materials submitted by an applicant and all written correspondence or documentation submitted by a person wishing to be heard on an application must be submitted electronically through the ProjectDox system (cagisdocs.hamilton-co.org/ProjectDox). Instructions for using the system are available online or upon request.

All application materials, correspondence, and documentation placed in a folder must be formatted for size 8½" × 11" or larger; must be formatted in .pdf, .tiff, or other read-only format; and must include the name of the person submitting the materials, correspondence, or documentation and their address and telephone number. Conforming application materials, written correspondence, and documents must be placed in the appropriate folder no later than three business days prior to the date of the hearing.

The ZHE shall have the discretion to remove any application materials, correspondence, or documentation submitted in violation of these rules from the case file and strike them from the record.

E. *Withdrawal.* An applicant may request to withdraw its application at any time prior to the issuance of a written decision on the application.

Section 3. Hearings.

A. *Hearings.* The ZHE shall conduct regularly scheduled hearings on each Wednesday of the month at 9:00 a.m. in the Main Conference Room of the Permit Center. If no official matters are scheduled for a particular hearing date, then no hearing will be held. All ZHE hearings shall be open to the public.

B. *Special Hearings.* The ZHE, in its discretion, may conduct special hearings at times and places other than regularly scheduled hearings and upon regular notice to the applicant and all persons entitled to receive it.

C. *Postponements and Continuances.* An applicant may make a request for postponement of a scheduled hearing in writing to the ZHE at least 48 hours in advance of the hearing; provided, however, if the hearing falls on a Monday, the request must received by the ZHE prior to 12:00 p.m. Cincinnati time on the preceding Friday. The ZHE shall have discretion to determine whether to grant the postponement request. The ZHE shall give notification of a postponed hearing by posting a notice on the Official Calendar.

Following the expiration of the deadline to make a written request for postponement, an applicant may request the continuance of a scheduled hearing by appearing at the scheduled hearing and making an oral request to the ZHE. Upon hearing an oral request for continuance, the ZHE may continue the hearing if it determines the applicant has demonstrated good cause that the hearing should be continued.

Section 4. Hearing Procedures.

A. *Appearing at a Hearing.* An applicant may appear in person at a hearing, or may be represented by a duly authorized agent or attorney. Any reference herein to the term "applicant" shall be deemed to be inclusive of applicant's authorized agent or attorney. In the event that an applicant fails to appear at a scheduled hearing and has not requested a postponement as set forth in Section 3(C) above, then the ZHE, in its discretion, shall have the right to (i) continue the case until the next regularly scheduled hearing, or (ii) dismiss the case based on the applicant's failure to prosecute the application.

All parties of record, witnesses, and members of the public wishing to testify before the ZHE shall sign in on a sheet provided by the ZHE and located at the entrance to the hearing room. The ZHE shall have the right to exclude testimony of anyone who has failed to sign in.

B. *Oath.* All persons providing testimony before the ZHE shall be sworn by the ZHE prior to testifying. An attorney shall not be sworn unless the attorney is acting as a witness or providing testimony rather than acting as an advocate and providing argument.

C. *Hearing Etiquette.* Prior to testifying at a hearing before the ZHE, all persons appearing shall clearly state their first and last name and their personal address or business address for the record. All parties shall speak clearly into the microphone provided and shall refrain from speaking over other parties. No person shall be permitted to speak from the audience. It shall be the duty of the ZHE to maintain decorum at all times during the hearing. The ZHE shall have the right to expel any person exhibiting a lack of decorum or causing disruptive behavior from the hearing.

D. *Hearing Procedure.* The order of business at a regularly scheduled hearing shall be as follows:

1. The ZHE will call the item being considered.

2. The ZHE will call the applicant to present its case. The applicant shall have 15 minutes to present its case and to offer evidence and testimony. Upon the expiration of the initial 15 minutes, the ZHE, in its discretion, may grant one extension of up to 15 minutes.

3. If a party of record is represented by an attorney, the attorney for the party of record may cross-examine the applicant and any witnesses offered by the applicant for a period not to exceed the time granted to the applicant for the presentation of its case.

4. If Department Staff has provided a report on the item being considered, the ZHE will call Department Staff to present its report. Department Staff shall have 10 minutes to make its presentation. Neither parties of record nor their attorneys may question or cross-examine Department Staff regarding its presentation.

5. The ZHE will ask whether there are any parties of record or other members of the public who wish to speak on the item being considered. The time limits for each member of the public (and their attorney for those who are represented) shall be a total of five minutes. If the applicant is represented by an attorney, the applicant's attorney shall have the opportunity to question or cross-examine each speaker for a total of five minutes each.

6. The ZHE shall offer the applicant an opportunity to provide any rebuttal or closing argument for a maximum of five minutes.

7. The ZHE will close the hearing on the item.

E. *Parties of Record.* For the purpose of these rules, "parties of record" shall mean the applicant and any concerned person or entity who submits written correspondence or documentation to the ZHE no later than three business days prior to the date of the hearing. Pursuant to Cincinnati Municipal Code 113-11, the right of cross-examination shall be afforded only to attorneys for parties of record.

F. *Ex Parte Communication.* No one may discuss any official matter of the ZHE with the ZHE outside of the regularly scheduled hearing, but applicants and members of the public may contact the ZHE to request access to a case file or clarification of these rules. The ZHE shall immediately report to the City Solicitor any instances or attempts of bribery, intimidation, retaliation, or obstruction of official business (as those terms are defined by Chapter 29 of the Ohio Revised Code), or any other instances or attempts of impermissible *ex parte* communication or influence by an applicant or member of the public.

Section 5. Decisions.

Decisions shall be reduced to writing and disseminated in the manner set forth in the Zoning Code.

Section 6. Amendments or Suspension of Rules.

A. *Effective Date.* These rules shall be made effective as of the effective date set forth above, but they do not govern perfected applications received by Department Staff on or before the effective date.

B. *Amendments.* These rules may be amended or revoked by the ZHE subject to written approval by the city manager.

C. *Suspension.* The ZHE may suspend these rules at any hearing if, in its discretion, suspension of the rules is necessary to serve the interests of due process.

RULES OF PROCEDURE
CITY OF CINCINNATI BOARD OF BUILDING APPEALS*

Section 1. General Powers.
Section 2. Leadership and Governance.
Section 3. Appeals.
Section 4. Meetings.
Section 5. Meeting Procedures.
Section 6. Decisions.
Section 7. Amendments or Suspension of Rules.

*As approved on March 3, 2011, and in effect March 3, 2011; as amended and in effect on December 7, 2017.

Section 1. General Powers.

A. *Enacting Authority*. The Board of Building Appeals (the "Board") of the City of Cincinnati, Ohio (the "City") is established under the applicable laws of the State of Ohio, City of Cincinnati Administrative Code Article XXX, Section 5, and Cincinnati Municipal Code Title XI ("Cincinnati Building Code").

B. *Governance*. The Cincinnati Building Code, Ohio Revised Code ("RC") Chapters 3781 and 3791, as well as the rules promulgated under them, and these Rules of Procedure shall govern the Board.

C. *Conflict of Law*. These Rules of Procedure shall supersede all previously adopted rules and procedures. Whenever a conflict exists between these Rules of Procedure and the applicable laws of the State of Ohio or ordinance of the City, the applicable State laws and City ordinances shall prevail.

Section 2. Leadership and Governance.

A. *Term*. The term of the Board shall be for a full calendar year, beginning on January 1 and ending on December 31 ("Board Term"). RC 3781.20 and Administrative Code Article XXX govern the term and eligibility of each Board member.

B. *Board Leadership*. A majority vote of Board members present at the first regularly scheduled Board meeting of each Board Term shall elect the Board's leadership, or as necessary upon the resignation or removal of the Board's leadership. The Board's leadership shall consist of a Chair and a Vice-Chair.

C. *Duties of the Chair*. The Chair has the following duties and responsibilities:

1. To preside over all regularly scheduled and special Board meetings.
2. To decide all points of procedure, unless otherwise set forth herein.
3. To sign final written decisions issued by the Board.

D. *Duties of the Vice-Chair*. The Vice-Chair shall assume all of the duties of the Chair in his or her absence or incapacity.

E. *Staff Attorney*. Pursuant to Administrative Code Article XXX, an assistant city solicitor shall administer all duties and responsibilities necessary to ensure the administrative and procedural operation of the Board ("Staff Attorney"). The Staff Attorney is the point of contact between the Board and the public and the Board and the Department of Building and Inspections.

F. *Absence of Board Leadership*. In the absence or incapacity of the Chair and the Vice-Chair at a meeting, a member shall present a motion to elect a temporary Vice-Chair who shall preside over the meeting. The motion to elect temporary Board leadership shall require a second and the Board must adopt the motion by a majority of the Board members present at the meeting.

G. *Public Officials*. Board members are public officials and are bound by certain provisions of the Ohio law, including, but not limited to, Ohio Revised Code Sections 102.03, 102.04, and 2921.42.

Section 3. Appeals.

A. *Appeal Forms*. All persons must submit appeals for the Board's consideration on forms, and in the manner, prescribed by the Board.

B. *Completeness*. An appeal must include all information, documents, and fees requested by the appeal form. The Staff Attorney shall determine the completeness of all appeals to the Board.

C. *Parties to an Appeal*. For the purposes of these rules, the following persons are parties to an appeal:

1. *Appellant*. Any reference herein to the term "appellant" includes an appellant, an appellant's attorney, or any other duly authorized agent or representative.
2. *Party of Record*. Any reference herein to the term "party of record" means any concerned person or entity with standing under Ohio law to participate in the proceeding.
3. *Government Official*. Any reference herein to the term "government official" includes any functionary or authorized representative of any department, office, or institution of a political subdivision of the State of Ohio.

D. *Withdrawal*. An appellant may request to withdraw an appeal at any time before the Board votes on the merits of an appeal, except that when a motion is pending to determine the outcome of the appeal, the motion must first be withdrawn by the movant and seconded before the appeal may be withdrawn.

E. *Postponements*. An appellant may submit to the Staff Attorney a written request to postpone a scheduled hearing, but the appellant must make the request at least one business day before the scheduled hearing date. The Staff Attorney has authority to grant one request to postpone, and he or she shall promptly notify all persons entitled to notice of the appeal about the postponement.

1. *Exception*. The Staff Attorney shall have no authority to grant a request to postpone a hearing that concerns appeals from the enforcement of Cincinnati Building Code Section 1101-63, R.C. 3781.06, Ohio Building Code Section 109.4, or any other similar, related, or associated provision alleging unsafe or unsanitary conditions constituting a serious hazard.

F. *Continuances*. An appellant may request to continue a scheduled hearing by submitting a written request to the Board or by appearing at the scheduled hearing and making an oral request to the Board. The Board may continue the hearing if it determines the appellant has demonstrated good cause that the hearing should be continued.

Section 4. Meetings.

A. *Open to Public*. All Board meetings shall be open to the public, except as provided by Ohio law. All votes taken by the Board must be taken in open session, recorded by the Staff Attorney, and included in the Board's written decision.

B. *Notice of Public Meeting*. The Staff Attorney shall provide notice of all regularly scheduled and special meetings pursuant to the Cincinnati Municipal Code.

C. *Regular Meetings*. The Board shall conduct regularly scheduled meetings on the first Thursday of each calendar month, unless that Thursday is a City-recognized holiday. In cases of a City-recognized holiday, the meeting shall take place on the Thursday following the holiday. The Board is not required to hold a regularly scheduled meeting if no official business is scheduled before the Board.

D. *Special Meetings*. The Chair may, at his or her discretion, convene a special Board meeting. Notice of the time, place, and purpose of all special Board meetings shall be provided to all Board members by telephone or e-mail at least 24 hours before the special meeting. Special Board meetings shall be open to the public unless otherwise

permitted by law. If a special meeting is open to the public, the Staff Attorney shall post notice of the time, place, and purpose of the special meeting for public viewing at the Department of Buildings and Inspections, the office of the Clerk of Council, and on the City's website.

E. *Agenda*. The Staff Attorney shall prepare an agenda for each regularly scheduled Board meeting, providing a list of appeals to be heard and business to be discussed ("Agenda"). The Agenda must be published in the City Bulletin at least ten calendar days before the regular meeting date. The Staff Attorney must distribute the Agenda to the Board and make all associated case materials available to the Board at least seven calendar days before the regularly scheduled meeting. Items not listed on the Agenda shall not be considered by the Board, unless a majority of the Board members present vote to consider the item by leave.

F. *Quorum*. A quorum for any meeting, or to undertake any official business, is three Board members. The Staff Attorney shall make a reasonable effort to notify all persons who were entitled to notice of an appeal of the failure to obtain a quorum before the hearing date. Failure to obtain a quorum shall have the effect of postponing a hearing until the next regularly scheduled meeting of the Board, unless the Chair otherwise convenes a special meeting.

G. *Attendance*. Any Board member who is unable to attend a meeting shall notify the Staff Attorney at least 24 hours before the meeting. The Staff Attorney shall make a reasonable effort to fill the temporary vacancy with an alternate Board member of the same appointment. Administrative Code Article XXX, Section 2, governs Board member attendance.

H. *Voting.*

1. *Voting Rights.* All Board members are voting members. Any Board member, including the Chair, may make a motion or second a motion.
2. *Official Board Action.* The Board must adopt all official actions by a majority vote of the Board members participating in the vote at a meeting, unless a greater number of votes are expressly required by law or these rules.
3. *Roll Call Vote.* All votes shall be taken by a roll call vote. However, the Chair may permit a straw poll vote at his or her discretion.
4. *Majority Vote.* As used in these rules, the phrase "majority vote of Board members" shall mean an affirmative vote by a simple majority of the Board members participating in a vote.
5. *Abstentions.* A Board member may abstain from voting on an item. For the purposes of these rules, an abstaining member counts toward satisfying quorum, but is not considered to have participated in the vote.
6. *Tie Vote.* In the event of a tie vote on a motion, the motion shall be deemed to have failed.
7. *Record of Vote.* The Staff Attorney shall record each Board member's vote on every motion.
8. *Conflicts of Interest.* No Board member shall engage in the following conduct:
    a. Taking any official action, including participating in and voting upon, or in any other manner use or attempt to use his or her position to secure the approval of Board services, supplies, property, investments, or other contracts or acquisitions in which he or she, a family member, or anyone with whom he or she has an ongoing business relationship, has an interest.

b. Use his or her position to obtain financial gain or benefit for himself or herself, a family member, or anyone with whom he or she has a business or employment relationship.

9. *Duty to Disclose Conflicts of Interest.* Any Board member who may encounter possible conflicts of interest shall disclose to the Chair his or her possible conflict at least 24 hours in advance of a scheduled meeting. If the Chair has an issue of a possible conflict, he or she shall refer the conflict to the Vice-Chair.

10. *Conflict Determination.* In the event that a Board member has an issue of a possible conflict, the Chair is encouraged to consult the City Solicitor, but the Chair is responsible for making the ultimate conflict determination. However, in those cases where the Chair refers an issue of a possible conflict to the Vice-Chair, the Vice-Chair shall determine whether the Chair has a conflict of interest.

11. *Recusals.* In the event of a conflict of interest, the conflicted member shall remove himself or herself from the meeting room during that portion of the meeting involving the item from which that member is conflicted. A member who recuses himself or herself from consideration of an item due to a conflict of interest does not count toward satisfying quorum.

Section 5. Meeting Procedures.

A. *General Rules*.

1. *Order of Appeals.* Items shall be considered in the order set forth on the Agenda. The Chair may exercise his or her discretion to call items out of the order provided by the Agenda.

2. *Appearances.* Any person may appear in person at a meeting or may be represented by an attorney or by a duly authorized agent. All persons wishing to appear before the Board shall sign in on a form furnished by the Board and located at the meeting room's entrance. The Board shall have the right to exclude testimony of anyone who has failed to sign in at the meeting.

i. *Appellant's Failure to Appear.* If an appellant fails to appear before the Board and has not requested to postpone or to continue the hearing as provided in Section 3 above, then the Board, in its discretion, may take one of the following actions:

a. Postpone the hearing until the next regularly scheduled Board meeting; or

b. Dismiss the appeal based on the appellant's failure to prosecute the appeal; or

c. Rule on the merits of the appeal, provided that each Board member participating in such a vote acknowledges on the record that he or she has reviewed all materials in the record, including any written arguments, evidence, or testimony.

3. *Written Arguments and Evidentiary Submissions at the Hearing.* The Board may consider written motions, memoranda, or other written argument or evidence presented to the Board at the hearing by an appellant, government official, or a party of record.

i. *Preclusion of Evidence*. The Chair, in his or her discretion,

may preclude any written documents or evidence presented at the hearing. The Chair must state his or her reasons for precluding the new evidence, and the Staff Attorney must accept a copy of the precluded evidence into the record as a proffer.

ii. *Motions to Overrule an Evidentiary Ruling*. The Board may overrule the Chair's evidentiary ruling by a majority vote. Any member may present a motion to accept fully the evidence into the record, to adjourn the hearing to evaluate the evidence in private deliberation, or to continue the hearing.

4. *Burden of Proof.* An appellant bears the ultimate burden of proof by the preponderance of the evidence.

5. *Decorum.* The Chair has the duty to maintain decorum at all times during a meeting. All persons appearing before the Board must clearly state their first and last name and their personal address or business address for the record before speaking. All speakers must speak clearly into the microphone provided in front of them and must not speak over other parties. No one shall speak from the audience. The Chair retains the right to expel from a meeting any person exhibiting a lack of decorum or causing disruptive or combative behavior.

6. *Sworn Testimony.* All persons providing testimony at a meeting shall be sworn by the Staff Attorney at the beginning of the meeting or prior to testifying.

7. *Attorneys.* Attorneys shall not be sworn, unless he or she is acting as a witness or providing testimony rather than serving as an advocate and providing argument.

8. *Government Officials.* Government officials shall not be sworn, unless he or she is acting as a witness in the proceeding.

9. *Ex Parte Communication.* Board members must not engage in conversation with any interested party, or members of the public, about appeals and similar subjects related to matters that will be the subject of deliberation and judicial discretion outside of a scheduled hearing.

10. *Criminal Offenses against Public Administration.* Board members are public officials whose duties and actions are protected from threats of violence and intimidation, among others. Board members must report immediately to the City Solicitor any instances or attempts of bribery, intimidation, retaliation or obstruction of official business by an appellant or any other party.

11. *Parliamentary Rules.* The Board shall follow rules and procedures set forth herein in the conduct of its meetings. Where these rules and procedures are silent, Roberts' Rules of Order may be applied by the Chair.

B. *Hearing Procedure.* The Chair shall preside over all hearings as follows; however, the Board may interrupt any speaker to ask questions or to make any comments:

1. *Call Item.* The Chair shall call the agenda item.

2. *Argument by the Appellant.* The Chair shall call the appellant to present its position, arguments, contentions, and to offer and examine witnesses and present evidence in support of its

position. The Chair, in his or her discretion, may limit or restrict the appellant's presentation to those matters that are relevant to the appeal.

3. *Cross Examination of the Appellant.* In those cases where an attorney is representing a party of record, the Chair shall permit the attorney for the party of record to cross-examine the appellant's position, arguments, contentions, and evidence in support of its position immediately following the testimony proffered by the appellant or its witness. In those cases where there is more than one party of record, the Chair shall permit the attorney for each party of record an opportunity to cross-examine the appellant or its witnesses.

4. *Comments from Government Officials*. The Chair shall call upon any government officials to present their position, arguments, contentions and evidence in support of their position.

5. *Presentation by a Party of Record.* If there is a party of record, the Chair shall call the party of record to present its position, arguments, contentions, and to offer and examine witnesses and present evidence in support of its position.

6. *Multiple Parties of Record.* In those cases where there is more than one party of record, the Chair shall permit each party of record to present its position, arguments, contentions, and to offer and examine witnesses and present evidence in support of each position.

7. *Cross Examination of a Party of Record.* If the Appellant is represented by an attorney, the Chair shall permit the appellant's attorney to cross-examine all opposition witnesses purporting to refute the appellant's position, arguments, and contentions.

8. *Rebuttal.* The Chair shall call the appellant to rebut or refute any position, argument, or contention in opposition to its position.

9. *Closing Statements.* The Chair shall offer the appellant and party of record an opportunity to present closing statements. A party of record shall present first, followed by the appellant.

10. *Board Action.* The Chair shall entertain a motion to deliberate, a motion for a determination of the outcome of the appeal, a motion to continue the hearing, or such other action permitted by applicable law.

Section 6. Decisions.

The Staff Attorney shall reduce the Board's decision to writing for the Chair's review and signature within 30 days of the hearing date at which the Board issued its final appealable decision. Any Board member may request to review a written decision before it is issued, but is not required to review a decision before the decision is signed by the Chair. The Staff Attorney shall transmit to the appellant and any party of record the Board's final written decision by certified mail.

Section 7. Amendments or Suspension of Rules.

A. *Effective Date.* These rules shall be made effective upon approval by a majority vote of a quorum of Board members, provided the Staff Attorney provides written notice to all Board members at least seven calendar days before the meeting at which the adoption of these rules are to be discussed.

B. *Amendments.* These rules may be amended or revoked by a majority vote of a quorum of Board members, provided written notice of the proposed amendment or revocation is provided to each Board member at least seven calendar days before the hearing.

C. *Suspension.* The Board may suspend all or a portion of these rules at any hearing by a majority vote of the Board members present at the hearing.

RULES OF PROCEDURE
CITY OF CINCINNATI BOARD OF HOUSING APPEALS*

Section 1. General Powers.
Section 2. Leadership and Governance.
Section 3. Appeals.
Section 4. Meetings.
Section 5. Meeting Procedures.
Section 6. Decisions.
Section 7. Amendments or Suspension of Rules.

*As adopted and approved on and from April 15, 2011; as amended and in effect July 10, 2019.

Section 1. General Powers.

A. *Enacting Authority*. The Board of Housing Appeals (the "Board") of the City of Cincinnati, Ohio (the "City") is established under the applicable laws of the State of Ohio, City of Cincinnati Administrative Code Article XXX, Section 7, and Cincinnati Municipal Code Title XI ("Cincinnati Building Code").

B. *Governance*. The Cincinnati Building Code, Ohio Revised Code ("RC") Chapters 3781, 3791, and 3735, as well as the rules promulgated under them, and these Rules of Procedure shall govern the Board.

C. *Conflict of Law*. These Rules of Procedure shall supersede all previously adopted rules and procedures. Whenever a conflict exists between these Rules of Procedure and the applicable laws of the State of Ohio or ordinance of the City, the applicable State laws and City ordinances shall prevail.

Section 2. Leadership and Governance.

A. *Term*. The term of the Board shall be for a full calendar year, beginning on January 1 and ending on December 31 ("Board Term"). Administrative Code Article XXX governs the term and eligibility of each Board member.

B. *Board Leadership*. A majority vote of Board members present at the first regularly scheduled Board meeting of each Board Term shall elect the Board's leadership, or as necessary upon the resignation or removal of the Board's leadership. The Board's leadership shall consist of a Chair and a Vice-Chair.

C. *Duties of the Chair*. The Chair has the following duties and responsibilities:

1. To preside over all regularly scheduled and special Board meetings.
2. To decide all points of procedure, unless otherwise set forth herein.
3. To sign final written decisions issued by the Board.

D. *Duties of the Vice-Chair*. The Vice-Chair shall assume all duties of the Chair in his or her absence or incapacity.

E. *Staff Attorney*. Pursuant to Administrative Code Article XXX, an assistant city solicitor shall administer all duties and responsibilities necessary to ensure the administrative and procedural operation of the Board ("Staff Attorney"). The Staff Attorney is the point of contact between the Board and the public and the Board and the Department of Building and Inspections.

F. *Absence of Board Leadership*. In the absence or incapacity of the Chair and the Vice-Chair at a meeting, a member shall present a motion to elect a temporary Vice-Chair who shall preside over the meeting. The motion to elect temporary Board leadership shall require a second and the Board must adopt the motion by a majority of the Board members present at the meeting.

G. *Public Officials*. Board members are public officials and are bound by certain provisions of the Ohio law, including, but not limited to, Ohio Revised Code Sections 102.03, 102.04, and 2921.42.

Section 3. Appeals.

A. *Appeal Forms*. All persons must submit appeals for the Board's consideration on forms, and in the manner, prescribed by the Board.

B. *Completeness*. An appeal must include all information, documents, and fees requested by the appeal form. The Staff Attorney shall determine the completeness of all appeals to the Board.

C. *Parties to an Appeal*. For the purposes of these rules, the following persons are parties to an appeal:

1. *Appellant*. Any reference herein to the term "appellant" includes an appellant, an appellant's attorney, or any other duly authorized agent or representative.
2. *Party of Record*. Any reference herein to the term "party of record" means any concerned person or entity with standing under Ohio law to participate in the proceeding.
3. *Government Official*. Any reference herein to the term "government official" includes any functionary or authorized representative of any department, office, or institution of a political subdivision of the State of Ohio.

D. *Withdrawal*. An appellant may request to withdraw an appeal at any time before the Board votes on the merits of an appeal, except that when a motion is pending to determine the outcome of the appeal, the motion must first be withdrawn by the movant and seconded before the appeal may be withdrawn.

E. *Postponements*. An appellant may submit to the Staff Attorney a written request to postpone a scheduled hearing, but the appellant must make the request at least one business day before the scheduled hearing date. The Staff Attorney has authority to grant one request to postpone, and he or she shall promptly notify all persons entitled to notice of the appeal about the postponement.

F. *Continuances*. An appellant may request to continue a scheduled hearing by submitting a written request to the Board or by appearing at the scheduled hearing and making an oral request to the Board. The Board may continue the hearing if it determines the appellant has demonstrated good cause that the hearing should be continued.

Section 4. Meetings.

A. *Open to Public*. All Board meetings shall be open to the public, except as provided by Ohio law. All votes taken by the Board must be taken in open session, recorded by the Staff Attorney, and included in the Board's written decision.

B. *Notice of Public Meeting*. The Staff Attorney shall provide notice of all regularly scheduled and special meetings pursuant to the Cincinnati Municipal Code.

C. *Regular Meetings*. The Board shall conduct regularly scheduled meetings on the first Wednesday of each calendar month, unless that Wednesday is a City-recognized holiday. In cases of a City-recognized holiday, the meeting shall take place on the Wednesday following the holiday. The Board is not required to hold a regularly scheduled meeting if no official business is scheduled before the Board.

D. *Special Meetings*. The Chair may, at his or her discretion, convene a special Board meeting. Notice of the time, place, and purpose of all special Board meetings shall be provided to all Board members by telephone or e-mail at least 24 hours before the special meeting. Special Board meetings shall be open to the public unless otherwise permitted by law. If a special meeting is open to the public, the Staff Attorney shall post notice of the time, place, and purpose of the special meeting for public viewing at the Department of Buildings and Inspections, the office of the Clerk of Council, and on the City's website.

E. *Agenda*. The Staff Attorney shall prepare an agenda for each regularly scheduled Board meeting, providing a list of appeals to be heard and business to be

discussed ("Agenda"). The Agenda must be published in the City Bulletin at least ten calendar days before the regular meeting date. The Staff Attorney must distribute the Agenda to the Board and make all associated case materials available to the Board at least seven calendar days before the regularly scheduled meeting. Items not listed on the Agenda shall not be considered by the Board, unless a majority of the Board members present vote to consider the item by leave.

F. *Quorum*. A quorum for any meeting, or to undertake any official business, is four Board members. The Staff Attorney shall make a reasonable effort to notify all persons who were entitled to notice of an appeal of the failure to obtain a quorum before the hearing date. Failure to obtain a quorum shall have the effect of postponing a hearing until the next regularly scheduled meeting of the Board, unless the Chair otherwise convenes a special meeting.

G. *Attendance*. Any Board member who is unable to attend a meeting shall notify the Staff Attorney at least 24 hours before the meeting. Administrative Code Article XXX, Section 2, governs Board member attendance.

H. *Voting*.

1. *Voting Rights*. All Board members are voting members. Any Board member, including the Chair, may make a motion or second a motion.
2. *Official Board Action*. The Board must adopt all official actions by a majority vote of the Board members participating in the vote at a meeting, unless a greater number of votes are expressly required by law or these rules.
3. *Roll Call Vote*. All votes shall be taken by a roll call vote. However, the Chair may permit a straw poll vote at his or her discretion.
4. *Majority Vote*. As used in these rules, the phrase "majority vote of Board members" shall mean an affirmative vote by a simple majority of the Board members participating in a vote.
5. *Abstentions*. A Board member may abstain from voting on an item. For the purposes of these rules, an abstaining member counts toward satisfying quorum, but is not considered to have participated in the vote.
6. *Tie Vote*. In the event of a tie vote on a motion, the motion shall be deemed to have failed.
7. *Record of Vote*. The Staff Attorney shall record each Board member's vote on every motion.
8. *Conflicts of Interest*. No Board member shall engage in the following conduct:
    i. Taking any official action, including participating in and voting upon, or in any other manner use or attempt to use his or her position to secure the approval of Board services, supplies, property, investments, or other contracts or acquisitions in which he or she, a family member, or anyone with whom he or she has an ongoing business relationship, has an interest.
    ii. Use his or her position to obtain financial gain or benefit for himself or herself, a family member, or anyone with whom he or she has a business or employment relationship.
9. *Duty to Disclose Conflicts of Interest*. Any Board member who may encounter possible conflicts of interest shall disclose to the Chair his or her possible conflict at least 24 hours in advance of a scheduled meeting. If

the Chair has an issue of a possible conflict, he or she shall refer the conflict to the Vice-Chair.

10. *Conflict Determination*. In the event that a Board member has an issue of a possible conflict, the Chair is encouraged to consult the City Solicitor, but the Chair is responsible for making the ultimate conflict determination. However, in those cases where the Chair refers an issue of a possible conflict to the Vice-Chair, the Vice-Chair shall determine whether the Chair has a conflict of interest.

11. *Recusals*. In the event of a conflict of interest, the conflicted member shall remove himself or herself from the meeting room during that portion of the meeting involving the item from which that member is conflicted. A member who recuses himself or herself from consideration of an item due to a conflict of interest does not count toward satisfying quorum.

Section 5. Meeting Procedures.

A. *General Rules*.

1. *Order of Appeals*. Items shall be considered in the order set forth on the Agenda. The Chair may exercise his or her discretion to call items out of the order provided by the Agenda.

2. *Appearances*. Any person may appear in person at a meeting or may be represented by an attorney or by a duly authorized agent. All persons wishing to appear before the Board shall sign in on a form furnished by the Board and located at the meeting room's entrance. The Board shall have the right to exclude testimony of anyone who has failed to sign in at the meeting.

   i. *Appellant's Failure to Appear*. If an appellant fails to appear before the Board and has not requested to postpone or to continue the hearing as provided by these rules, then the Board, in its discretion, may take one of the following actions:

      a. Postpone the hearing until the next regularly scheduled Board meeting; or

      b. Dismiss the appeal based on the appellant's failure to prosecute the appeal; or

      c. Rule on the merits of the appeal, provided that each Board member participating in such a vote acknowledges on the record that he or she has reviewed all materials in the record, including any written arguments, evidence, or testimony.

3. *Written Arguments and Evidentiary Submissions at the Hearing*. The Board may consider written motions, memoranda, or other written argument or evidence presented to the Board at the hearing by an appellant, government official, or a party of record.

   i. *Preclusion of Evidence*. The Chair, in his or her discretion, may preclude any written documents or evidence presented at the hearing. The Chair must state his or her reasons for precluding the new evidence, and the Staff Attorney must accept a copy of the precluded evidence into the record as a proffer.

   ii. *Motions to Overrule an Evidentiary Ruling*. The Board may overrule the Chair's evidentiary ruling by a majority vote. Any

member may present a motion to accept fully the evidence into the record, to adjourn the hearing to evaluate the evidence in private deliberation, or to continue the hearing.

4. *Burden of Proof*. An appellant bears the ultimate burden of proof by the preponderance of the evidence.

5. *Decorum*. The Chair has the duty to maintain decorum at all times during a meeting. All persons appearing before the Board must clearly state their first and last name and their personal address or business address for the record before speaking. All speakers must speak clearly into the microphone provided in front of them and must not speak over other parties. No one shall speak from the audience. The Chair retains the right to expel from a meeting any person exhibiting a lack of decorum or causing disruptive or combative behavior.

6. *Sworn Testimony*. All persons providing testimony at a meeting shall be sworn by the Staff Attorney at the beginning of the meeting or prior to testifying.

7. *Attorneys*. Attorneys shall not be sworn, unless he or she is acting as a witness or providing testimony rather than serving as an advocate and providing argument.

8. *Government Officials*. Government officials shall not be sworn, unless he or she is acting as a witness in the proceeding.

9. *Ex Parte Communication*. Board members must not engage in conversation with any interested party, or members of the public, about appeals and similar subjects related to matters that will be the subject of deliberation and judicial discretion outside of a scheduled hearing.

10. *Criminal Offenses against Public Administration*. Board members are public officials whose duties and actions are protected from threats of violence and intimidation, among others. Board members must report immediately to the City Solicitor any instances or attempts of bribery, intimidation, retaliation or obstruction of official business by an appellant or any other party.

11. *Parliamentary Rules*. The Board shall follow rules and procedures set forth herein in the conduct of its meetings. Where these rules and procedures are silent, Roberts' Rules of Order may be applied by the Chair.

B. *Hearing Procedure*. The Chair shall preside over all hearings as follows; provided, however, the Chair may exercise his or discretion to solicit evidence or testimony from the parties in a different order than set forth below, and the Board may interrupt any speaker to ask questions or to make any comments:

1. *Call Item*. The Chair shall call the agenda item.

2. *Argument by the Appellant*. The Chair shall call the appellant to present its position, arguments, contentions, and to offer and examine witnesses and present evidence in support of its position. The Chair, in his or her discretion, may limit or restrict the appellant's presentation to those matters that are relevant to the appeal.

3. *Cross Examination of the Appellant*. In those cases where an attorney is representing a party of record, the Chair shall permit the attorney for the party of record to cross-examine

the appellant's position, arguments, contentions, and evidence in support of its position immediately following the testimony proffered by the appellant or its witness. In those cases where there is more than one party of record, the Chair shall permit the attorney for each party of record an opportunity to cross-examine the appellant or its witnesses.

4. *Comments from Government Officials*. The Chair shall call upon any government officials to present their position, arguments, contentions and evidence in support of their position.

5. *Presentation by a Party of Record*. If there is a party of record, the Chair shall call the party of record to present its position, arguments, contentions, and to offer and examine witnesses and present evidence in support of its position.

6. *Multiple Parties of Record*. In those cases where there is more than one party of record, the Chair shall permit each party of record to present its position, arguments, contentions, and to offer and examine witnesses and present evidence in support of each position.

7. *Cross Examination of a Party of Record*. If the Appellant is represented by an attorney, the Chair shall permit the appellant's attorney to cross-examine all opposition witnesses purporting to refute the appellant's position, arguments, and contentions.

8. *Rebuttal*. The Chair shall call the appellant to rebut or refute any position, argument, or contention in opposition to its position.

9. *Closing Statements*. The Chair shall offer the appellant and party of record an opportunity to present closing statements. A party of record shall present first, followed by the appellant.

10. *Board Action*. The Chair shall entertain a motion to deliberate, a motion for a determination of the outcome of the appeal, a motion to continue the hearing, or such other action permitted by applicable law.

Section 6. Decisions.

The Staff Attorney shall reduce the Board's decision to writing for the Chair's review and signature in a reasonable time. Any Board member may request to review a written decision before it is issued but is not required to review a decision before the decision is signed by the Chair. The Staff Attorney shall transmit to the appellant the Board's final written decision by certified mail.

Section 7. Amendments or Suspension of Rules.

A. *Effective Date*. These rules shall be made effective upon approval by a majority vote of a quorum of Board members, provided the Staff Attorney provides written notice to all Board members at least seven calendar days before the meeting at which the adoption of these rules is to be discussed.

B. *Amendments*. These rules may be amended or revoked by a majority vote of a quorum of Board members, provided written notice of the proposed amendment or revocation is provided to each Board member at least seven calendar days before the hearing.

C. *Suspension*. The Board may suspend all or a portion of these rules at any hearing by a majority vote of the Board members present at the hearing.

RULES OF PROCEDURE
CITY OF CINCINNATI HISTORIC CONSERVATION BOARD*

Section 1. General Powers.
Section 2. Leadership and Governance.
Section 3. Applications.
Section 4. Meetings.
Section 5. Meeting Procedures.
Section 6 Decisions.
Section 7 Amendments or Suspension of Rules.

Section 1. General Powers.

A. *Enacting Authority*. The Historic Conservation Board (the "Board") of the City of Cincinnati, Ohio ("the City") is established under the applicable laws of the State of Ohio, City of Cincinnati Administrative Code Article XXX, Section 4, and Cincinnati Municipal Code Title XIV ("Cincinnati Zoning Code").

B. *Governance.* The Cincinnati Zoning Code, Chapter 1435, as well as the rules promulgated under it, and these Rules of Procedure shall govern the Board.

C. *Conflict of Law.* These Rules of Procedure shall supersede all previously adopted rules and procedures. Whenever a conflict exists between these Rules of Procedure and the applicable laws of the State of Ohio or ordinance of the City, the applicable State laws and City ordinances shall prevail.

Section 2. Leadership and Governance.

A. *Term.* The term of the Board shall be for a full calendar year, beginning on January 1 and ending on December 31 ("Board Term"). Administrative Code Article XXX governs the term and eligibility of each Board member.

B. *Board Leadership.* A majority vote of Board members present at the first regularly scheduled Board meeting of each Board Term shall elect the Board's leadership, or as necessary upon the resignation or removal of the Board's leadership. The Board's leadership shall consist of a Chair and a Vice-Chair.

C. *Duties of the Chair.* The Chair has the following duties and responsibilities:

1. To preside over all regularly scheduled and special Board meetings.
2. To decide all points of procedure, unless otherwise set forth herein.
3. To sign final written decisions issued by the Board.

D. *Duties of the Vice-Chair.* The Vice-Chair shall assume all duties of the Chair in his or her absence or incapacity.

E. *Staff Attorney.* Pursuant to Administrative Code Article XXX, an assistant city solicitor shall administer all duties and responsibilities necessary to ensure the administrative and procedural operation of the Board ("Staff Attorney"). The Staff Attorney is the point of contact between the Board and the public, and the Board and the Department of Buildings and Inspections.

F. *Absence of Board Leadership.* In the absence or incapacity of the Chair and the Vice-Chair at a meeting, a member shall present a motion to elect a temporary Vice-Chair who shall preside over the meeting. The motion to elect temporary Board leadership shall require a second, and the Board must adopt the motion by majority of Board members present at the meeting.

G. *Public Officials.* Board members are public officials and are bound by certain provisions of Ohio law, including but not limited to Ohio Revised Code Sections 102.03, 102.04, and 2921.42.

***Editor's note—**As adopted and in effect on and from September 26, 2011; as amended on January 23, 2012; amended and effective August 13, 2013; amended and effective March 23, 2015, as amended and effective on March 9, 2020.

Section 3. Applications.

A. *Application Forms.* All persons must submit applications for the Board's consideration on forms, and in the manner, prescribed by the Board.

B. *Completeness.* An application must include all information, documents, and fees requested by the application form. The Staff Attorney shall determine the completeness of all applications to the Board.

C. *Parties to a Proceeding.* For the purposes of these rules, the following persons are parties to a proceeding:

1. *Applicant.* Any reference herein to the term "applicant" includes an applicant, an applicant's attorney, or any other duly authorized agent or representative.
2. *Party of Record.* Any reference herein to the term "party of record" means any concerned person or entity with standing under Ohio law to participate in the proceeding.
3. *Government Official.* Any reference herein to the term "government official" includes any functionary or authorized representative of any department, office, or institution of a political subdivision of the State of Ohio.

D. *Withdrawal.* An applicant may request to withdraw an application at any time before the Board votes on the merits of an application, except that when a motion is pending to determine the outcome of the application, the motion must first be withdrawn by the movant and seconded before the application may be withdrawn.

E. *Postponements.* An applicant may submit to the Staff Attorney a written request to postpone a scheduled hearing, but the applicant must make the request at least one business day before the scheduled hearing date. The Staff Attorney has authority to grant one request to postpone and shall promptly notify all persons entitled to notice of the application concerning the postponement.

F. *Continuances.* An applicant may request to continue a scheduled hearing by submitting a written request to the Board or by appearing at the scheduled hearing and making an oral request for continuance to the Board. The Board may continue the hearing if it determines that the applicant has demonstrated good cause for the requested continuance.

Section 4. Meetings.

A. *Open to Public.* All Board meetings shall be open to the public, except as provided by Ohio law. All votes taking final action on an application by the Board must be taken in open session, recorded by the Staff Attorney, and included in the Board's written decision.

B. *Notice of Public Meeting.* The Staff Attorney shall provide notice of all regularly scheduled and special meetings pursuant to the Cincinnati Municipal Code.

C. *Regular Meetings.* The Board shall conduct regularly scheduled meetings on two Mondays of each calendar month. The Board shall approve the Board's meeting calendar in advance of each Board Term.

D. *Special Meetings.* The Chair may, at his or her discretion, convene a special meeting. Notice of the time, place, and purpose of all special meetings shall be provided to all Board members by telephone or e-mail at least 24 hours before the special meeting. Special meetings shall be open to the public unless otherwise permitted by law. If a special meeting is open to the public, the Staff Attorney shall post notice of the time, place, and purpose of the special meeting for public viewing at the Depart-

ment of Buildings and Inspections, the office of the clerk of Council, and on the City's website.

E. *Agenda*. The Staff Attorney shall prepare an agenda for each regularly scheduled meeting, providing a list of applications to be heard and business to be discussed ("Agenda"). The Staff Attorney shall distribute the Agenda to the Board and make all associated case materials available to the Board in advance of all meetings. Items not listed on the Agenda shall not be considered by the Board, unless a majority of Board members present vote to consider the item by leave.

F. *Quorum*. A quorum for any meeting, or to undertake any official business, is a majority of the Board members. The Staff Attorney shall make a reasonable effort to notify all persons who are entitled to receive notice of the failure to obtain a quorum before the next hearing date. Failure to obtain a quorum shall have the effect of postponing a hearing until the next regularly scheduled meeting of the Board, unless the Chair otherwise convenes a special meeting.

G. *Attendance*. Any Board member who is unable to attend a meeting shall notify the Staff Attorney at least 24 hours before the meeting. Administrative Code Article XXX, Section 2, governs Board member attendance.

H. *Voting*.

1. *Voting Rights*. All Board members are voting members. Any Board member, including the Chair, may make a motion or second a motion.

2. *Official Board Action*. The Board must adopt all official actions by a majority vote of the Board members participating in the vote at a meeting, unless a greater number of votes are expressly required by law or these rules.

3. *Roll Call Vote*. All votes shall be taken by a roll call vote. However, the Chair may permit a straw poll vote at his or her discretion.

4. *Majority Vote*. As used in these rules, the phrase "majority vote of Board members" shall mean an affirmative vote by simple majority of the Board members participating in a vote.

5. *Abstentions*. A Board member may abstain from voting on an item. For the purposes of these rules, an abstaining member counts toward satisfying quorum, but is not considered to have participated in the vote.

6. *Tie Vote*. In the event of a tie vote on a motion, the motion shall be deemed to have failed.

7. *Record of Vote*. The Staff Attorney shall record each Board member's vote on every motion.

8. *Conflicts of Interest*. No Board member shall engage in the following conduct:

   i. Taking any official action, including participating in and voting upon, or in any other manner use or attempt to use his or her position to secure the approval of Board services, supplies, property, investments, or other contracts or acquisitions in which he or she, a family member, or anyone with whom he or she has an ongoing business relationship, has an interest.

   ii. Use his or her position to obtain financial gain or benefit for himself or herself, a family member, or anyone with whom he or she has a business or employment relationship.

9. *Duty to Disclose Conflicts of Interest*. Any Board member who may

encounter possible conflicts of interest shall disclose to the Chair and to the Law Department his or her possible conflict at least 24 hours in advance of a scheduled meeting. If the Chair has an issue of a possible conflict, he or she shall refer the conflict to the Vice-Chair.

10. *Conflict Determination.* In the event that a Board member has an issue of a possible conflict, the Chair is encouraged to consult the City Solicitor, but the member is responsible for making the ultimate conflict determination. However, in those cases where the Chair refers an issue of a possible conflict to the Vice-Chair, the Vice-Chair shall determine whether the Chair has a conflict of interest.

11. *Recusals.* In the event of a conflict of interest, the conflicted member shall remove himself or herself from the meeting room during that portion of the meeting involving the item from which the member is conflicted. A member who recuses himself or herself from consideration of an item due to a conflict of interest does not count toward satisfying quorum.

Section 5. Meeting Procedures.

A. *General Rules.*

1. *Order of Applications.* Items shall be considered in the order set forth on the Agenda. The Chair may exercise his or her discretion to call items out of the order provided in the Agenda.

2. *Appearances.* Any person may appear in person at a meeting or may be represented by an attorney or by a duly authorized agent. All persons wishing to appear before the Board shall sign in on a form furnished by the Board and located at the meeting room's entrance. The Board shall have the right to exclude testimony from anyone who has failed to sign in at the meeting.

   i. *Applicant's Failure to Appear.* If an applicant fails to appear before the Board and has not requested to postpone or to continue the hearing as provided by these rules, then the Board, in its discretion, may take one of the following actions:

      a. Postpone the hearing until the next regularly scheduled Board meeting; or

      b. Dismiss the application for applicant's failure to prosecute its application; or

      c. Rule on the merits of the application, provided that each Board member participating in such a vote acknowledges on the record that he or she has reviewed all materials in the record, including any written arguments, evidence, or testimony.

3. *Written Arguments and Evidentiary Submissions at the Hearing.* The Board may consider written motions, memoranda, or other written argument or evidence presented to it at the hearing by an applicant, government official, or party of record.

   i. *Submission Deadline*. All written materials must be submitted to the Staff Attorney no later than seven calendar days before the hearing date. If the submission deadline falls on a holiday, then the submission deadline is the business day preceding the holiday. The Staff Attorney shall

not accept late submissions. The Board may consider written materials after the filing deadline at the hearing, at the Chair's discretion. The submission deadline shall not apply to quasi-legislative items.

ii. *Preclusion of Evidence*. The Chair, in his or her discretion, may preclude any written documents or evidence presented at the hearing. The Chair must state his or her reasons for precluding the new evidence, and the Staff Attorney must accept a copy of the precluded evidence into the record as a proffer. Evidence preclusion shall not apply to quasi-legislative items.

iii. *Motions to Overrule an Evidentiary Ruling*. The Board may overrule the Chair's evidentiary ruling by a majority vote. Any member may present a motion to fully accept the evidence into the record, to adjourn the hearing to evaluate the evidence in private deliberation, or to continue the hearing.

4. *Burden of Proof.* An applicant bears the ultimate burden of proof by the preponderance of the evidence.

5. *Decorum.* The Chair has the duty to maintain decorum at all times during a meeting. Before addressing the Board, all persons must clearly state their first and last name, and their personal or business address for the record. All speakers must speak clearly into the microphone provided and must not speak over other parties. No one shall speak from the audience. The Chair is authorized to expel from the meeting any person exhibiting a lack of decorum or causing disruptive or combative behavior.

6. *Sworn Testimony.* All persons providing testimony on a quasi-judicial item shall be sworn by the Staff Attorney at the beginning of the meeting or prior to testifying. Persons who wish to provide comments on quasi-legislative items shall not be sworn.

7. *Attorneys.* Attorneys shall not be sworn, unless he or she is acting as a witness or providing testimony rather than acting as an advocate and offering argument.

8. *Government Officials.* Government officials shall not be sworn, unless he or she is acting as a witness in the proceeding.

9. *Ex Parte Communication*. Board members must not engage in conversation with any interested party, or members of the public, concerning applications and similar subjects related to matters that will be the subject of deliberation and judicial discretion outside of a scheduled hearing.

10. *Criminal Offenses against Public Administration.* Board members are public officials whose duties and actions are protected from threats of violence and intimidation, among others. Board members must report immediately to the City Solicitor any instances or attempts of bribery, intimidation, retaliation, or obstruction of official business by an applicant or any other party.

11. *Parliamentary Rules.* The board shall follow rules and procedures set forth herein in the conduct of its meetings. Where these rules and procedures are silent, Roberts' Rules of Order may be invoked by the Chair.

B. *Quasi-Judicial Hearing Procedure*. The Chair shall preside over all quasi-judicial hearings as follows; provided, however, the Chair may exercise his or her discretion to solicit evidence or testimony from the parties in a different order than set forth below, and the Board may interrupt any speaker to ask questions or to make any comments:

1. *Call Item.* The Chair shall call the agenda item.

2. *Comments by Government Officials.* The Chair shall call upon any government officials to make a presentation on the application.

3. *Argument by the Applicant.* The Chair shall call the applicant to present its position, arguments, contentions, and to offer and examine witnesses and present evidence in support of its position. The Chair, in his or her discretion, may limit or restrict the applicant's presentation to those matters that are relevant to the application.

4. *Cross-Examination of Applicant*. In those cases where an attorney represents a party of record, the Chair shall permit the attorney to cross-examine the applicant concerning its arguments, contentions, and evidence supporting its position, immediately following the testimony proffered by the applicant or its witnesses. In those cases where there is more than one party of record, the Chair shall permit the attorney for each party of record an opportunity to cross-examine the applicant or its witnesses.

5. *Presentation by a Party of Record.* If there is a party of record, the Chair shall call the party of record to present its arguments, contentions, and evidence, and to offer and examine witnesses, in support of its positions.

6. *Multiple Parties of Record.* In those cases where there is more than one party of record, the Chair shall permit each party of record to present its arguments, contentions, and evidence, and to offer and examine witnesses, in support of its positions.

7. *Cross-Examination of a Party of Record.* If the applicant is represented by an attorney, the Chair shall permit the applicant's attorney to cross-examine all opposition witnesses purporting to refute the applicant's position, arguments, and contentions.

8. *Public Comment*. If members of the public wish to address the Board concerning the application, the Chair shall offer those persons two (2) minutes to present their arguments, contentions, and evidence in support of their positions. Counsel for the applicant or a party of record shall be permitted to cross-examine members of the public commenting in a quasi-judicial hearing.

9. *Rebuttal.* The Chair shall call the applicant to rebut or refute any argument or contention in opposition to its position.

10. *Closing Statements.* The Chair shall offer the applicant and party of record an opportunity to present closing statements. A party of record shall present first, followed by the applicant.

11. *Board Action.* The Chair shall entertain a motion to deliberate, a motion for a determination of the outcome of the application, a motion to continue or table the application, or such other action permitted by applicable law.

C. *Quasi-Legislative Procedure.* The Chair shall preside over all quasi-legislative hearings as follows; provided, however, the Chair may exercise his or her discretion to solicit evidence or testimony from the parties in a different order than set forth below, and the Board may interrupt any speaker to ask questions or to make any comments:

1. *Call Item*. The Chair shall call the agenda item.

2. *Comments by Government Officials*. The Chair shall call upon any government officials to make a presentation on the application.

3. *Presentation by the Applicant*. The Chair shall call the applicant to present its position, arguments, contentions, and present evidence in support of its position. The Chair, in his or her discretion, may limit or restrict the applicant's presentation to those matters that are relevant to the application.

4. *Public Comment*. If there are members of the public who wish to address the Board concerning the application, the Chair shall offer those persons two (2) minutes to present their arguments, contentions, and evidence in support of their positions.

5. *Board Deliberation.* The Chair shall entertain questions and comments from Board members, or otherwise deliberate on the application in open session.

6. *Board Action*. The Chair shall entertain a motion for a final determination on the outcome of the application, a motion to continue or table the application, or such other action permitted by applicable law.

Section 6 Decisions.

The Staff Attorney shall reduce the Board's decision to writing for the Chair's review and signature in a reasonable time. Any Board member may request to review a written decision before it is issued but is not required to review a decision before the decision is signed by the Chair. The Staff Attorney shall transmit the Board's final written decision to the applicant by certified mail.

Section 7 Amendments or Suspension of Rules.

A. *Effective Date.* These rules shall be made effective upon approval by a majority vote of a quorum of Board members, provided the Staff Attorney furnishes written notice to all Board members at least seven calendar days prior to the meeting at which adoption of these rules is to be discussed.

B. *Amendments.* These rules may be amended or revoked by a majority vote of a quorum of Board members, provided written notice of the proposed amendment or revocation is provided to each Board member at least seven calendar days prior to the hearing.

C. *Suspension.* The Board may suspend all or a portion of these rules at any hearing by a majority vote of the Board members present at the hearing.

RULES OF PROCEDURE
CITY OF CINCINNATI ZONING BOARD OF APPEALS*

Section 1. General Powers.
Section 2. Leadership and Governance.
Section 3. Appeals and UDOD Applications.
Section 4. Meetings.
Section 5. Meeting Procedures.
Section 6. Decisions.
Section 7. Amendments or Suspension of Rules.

Section 1. General powers.

A. *Enacting Authority*. The Zoning Board of Appeals (the "Board") of the City of Cincinnati, Ohio ("City") is established pursuant to Article XXX, Section 6 of the City of Cincinnati Administrative Code ("Administrative Code").

B. *Governance.* The Cincinnati Municipal Code Title XIV, City of Cincinnati Zoning Code ("Zoning Code") and these Rules of Procedure shall govern the Board.

C. *Conflict of Law*. These Rules of Procedure shall supersede all previously adopted rules and procedures. Whenever a conflict exists between these Rules of Procedure and the applicable laws of the State of Ohio or ordinances of the City, the applicable State laws and City ordinances shall prevail.

Section 2. Leadership and governance.

A. *Term.* The term of the Board shall be for a full calendar year beginning on January 1 and ending on December 31 ("Board Term"). Administrative Code Article XXX governs the term and eligibility of each Board member.

B. *Board Leadership*. A majority vote of Board members present at the first regularly scheduled meeting of each Board Term shall elect the Board's leadership, or as necessary upon the resignation or removal of the Board's leadership. The Board's leadership shall consist of a Chair and a Vice-Chair.

C. *Duties of the Chair*. The Chair has the following duties and responsibilities:

1. To preside over all regularly scheduled and special Board meetings.
2. To decide all points of procedure, unless otherwise set forth herein.
3. To sign the final written decisions issued by the Board.

D. *Duties of the Vice-Chair*. The Vice-Chair shall assume all duties of the Chair in his or her absence or incapacity.

E. *Staff Attorney*. An attorney from the City Solicitor's office shall administer all duties and responsibilities necessary to ensure the administrative and procedural operation of the Board pursuant to Administrative Code Article XXX ("Staff Attorney"). The Staff Attorney is the point of contact between the Board and the public and the Board and the City Administration.

F. *Absence of Board Leadership*. In the absence or incapacity of the Chair and the Vice-Chair at a meeting, a majority of the Board members present at the meeting shall elect a temporary Vice-Chair who shall preside over the meeting.

G. *Public Officials*. Board members are public officials and are bound by Ohio ethics law provisions, including, but not limited to, Ohio Revised Code Sections 102.03, 102.04, 2921.42 and 2921.43.

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*Adopted pursuant to Zoning Code § 1449-05 on October 17, 2011; as amended on February 20, 2014, and in effect February 20, 2014; as amended and in effect on May 18, 2017; as amended and in effect on January 17, 2019; as amended and in effect June 16, 2023.

Section 3. Appeals and UDOD Applications.

A. *Appeal Forms*. All persons must submit appeals and Urban Design Overlay District ("UDOD") applications for the Board's consideration on forms, and in the manner, prescribed by the Board.

B. *Completeness*. An appeal or UDOD application must include all information, documents, and fees requested by the appeal or application form. The Staff Attorney shall determine the completeness of all appeals and applications to the Board.

C. *Parties to an Appeal or UDOD Application*. For the purposes of these rules, the following persons are parties to an appeal or UDOD application, as applicable:

1. *Appellant*. Any reference herein to the term "appellant" shall be deemed to be inclusive of an appellant's attorney or authorized agent.
2. *Appellee*. Any person with standing to oppose a notice of appeal under the Zoning Code may appear before the Board in opposition to an appeal; however, any person who seeks to be recognized as an appellee under these rules must file a notice of appearance with the Staff Attorney and provide written notice to the appellant at least seven calendar days before the scheduled hearing date.
3. *Applicant for UDOD Hearing*. Any reference herein to the term "applicant" shall be deemed to be inclusive of applicant's authorized agent or attorney.
4. *Party of Record*. For the purposes of these rules, a "party of record" in a UDOD Application Hearing means:
    a. An owner, occupant, or interest holder in real property that would be uniquely impacted, positively or negatively, by the work proposed for the real property that is the subject of the hearing.
    b. An authorized representative of the community council recognized as having an interest in the area in which the real property that is the subject of the hearing is located.
    c. A person having a valid legal interest in real property, which interest would be substantially or adversely impacted the outcome of the hearing.
5. *City Employees*. The following rules govern the participation of City employees before the Board:
    a. City employees are competent to serve as a witness subject to cross examination in challenges to code enforcement actions initiated by the City. In addition, City attorneys may appear as legal advocates in challenges to code enforcement actions initiated by the City.
    b. City employees are not competent to serve as witnesses subject to cross examination in challenges to administrative decisions issued by the City. The foregoing does not preclude City employees from presenting non-binding reports and recommendations to the Board.

D. *Service of Notice of Appeal*. An appellant shall provide an opposing party or an attorney of record with a copy of a notice of appeal upon the filing of a notice of appeal under the following circumstances:

1. The appellant is not the original applicant in the underlying decision upon which the appeal is based or

owner of the subject property or otherwise is not a party seeking land development permission.

2. An attorney expressed a position in person or in writing on behalf of a party at the record proceeding.

E. *Withdrawal*. An appellant may request to withdraw an appeal or application at any time before the Board votes on the merits of the appeal or application, except that when a motion is pending to determine the outcome of the appeal or application, the motion must first be withdrawn by the movant and seconded by another Board member before the appeal or application may be withdrawn.

F. *Postponements*.

1. *By Appellant or Applicant.* An appellant or applicant may submit to the Staff Attorney a written request to postpone a scheduled hearing, but the appellant or applicant must make the request at least two business days before the scheduled hearing date. The Staff Attorney has authority to grant one request to postpone, and he or she shall promptly notify all persons entitled to notice of the appeal about the postponement.

2. *By Appellee.* An appellee may submit to the Staff Attorney a written request to postpone a scheduled hearing, but the appellee must make the request at least two business days before the scheduled hearing date. The appellee must include with its request to postpone a statement or stipulation from the appellant expressing support or opposition to the appellee's request to postpone. The Staff Attorney has discretion to approve one request to postpone, and he or she shall promptly notify all persons entitled to notice of the appeal about an approved postponement.

G. *Continuances.*

1. *By Appellant or Applicant.* An appellant or applicant may request to continue a scheduled hearing by appearing at the scheduled hearing and making an oral request to the Board. If an appellant or applicant fails to submit a written request to postpone a scheduled hearing before the applicable deadline, the appellant or applicant must make an in-person oral request to continue the scheduled hearing. The Board may continue the hearing if it determines the appellant or applicant has demonstrated good cause that the hearing should be continued.

2. *By Appellee.* An appellee may request to continue a scheduled hearing, but the appellee must submit a written request to the Staff Attorney and the appellant at least two business days before the scheduled hearing and make an appearance at the scheduled hearing to make an oral request to continue the hearing. The Board may continue the hearing if it determines that denial of the appellee's request would constitute a denial of the appellee's right to due process under the law.

Section 4. Meetings.

A. *Open to Public.* All Board meetings shall be open to the public, except as provided by Ohio law. All votes taken by the Board must be taken in open session, recorded by the Staff Attorney, and included in the Board's written decision.

B. *Notice of Public Meeting*. The Staff Attorney shall provide notice of all regularly scheduled and special meetings pursuant to the Cincinnati Municipal Code.

C. *Regular Meetings*. The Board shall conduct regularly scheduled meetings on the third Thursday of each calendar month, unless that Thursday is a City-recognized holiday. In cases of a City-recognized holiday, the meeting shall take place on the Thursday following the holiday. The Board is not required to hold a regularly scheduled meeting if no official matter is scheduled before the Board.

D. *Special Meetings.* The Chair may, at his or her discretion, convene a special Board meeting. Notice of the time, place, and purpose of all special Board meetings shall be provided to all Board members by telephone or e-mail at least 24 hours before the special meeting. Special Board meetings shall be open to the public unless otherwise permitted by law. If a special meeting is open to the public, the Staff Attorney shall post notice of the time, place, and purpose of the special meeting for public viewing at the Department of Buildings and Inspections, the office of the Clerk of Council, and on the City's website.

E. *Agenda*. The Staff Attorney shall prepare an agenda for each regularly scheduled Board meeting, providing a list of appeals to be heard and business to be discussed ("Agenda"). The Agenda must be published in the City Bulletin at least ten calendar days before the regular meeting date. The Staff Attorney must distribute the Agenda to the Board and make all associated case materials available to the Board at least seven calendar days before the regularly scheduled meeting. Items not listed on the Agenda shall not be considered by the Board, unless a majority of the Board members present vote to consider the item by leave.

F. *Quorum*. A quorum for any meeting, or to undertake any official business, is four Board members. The Staff Attorney shall make a reasonable effort to notify all persons who were entitled to notice of an appeal of the failure to obtain a quorum before the hearing date. Failure to obtain a quorum shall have the effect of postponing a hearing until the next regularly scheduled meeting of the Board, unless the Chair otherwise convenes a special meeting.

G. *Attendance*. Any Board member who is unable to attend a meeting shall notify the Staff Attorney at least 24 hours before the meeting. The Staff Attorney shall make a reasonable effort to fill the temporary vacancy with an alternate Board member of the same appointment. Administrative Code Article XXX, Section 2, governs Board member attendance.

H. *Voting.*

1. *Voting Rights.* All Board members are voting members. Any Board member, including the Chair, may make a motion or second a motion.

2. *Official Board Action.* The Board must adopt all official actions by a majority vote of the Board members participating in the vote at a meeting, unless a greater number of votes are expressly required by law or these rules.

3. *Roll Call Vote.* All votes shall be taken by a roll call vote. However, the Chair may permit a straw poll vote at his or her discretion.

4. *Majority Vote.* As used in these rules, the phrase "majority vote of Board members" shall mean an affirmative vote by a simple majority of the Board members participating in a vote.

5. *Abstentions.* A Board member may abstain from voting on an item. For the purposes of these rules, an abstaining member counts toward satisfying quorum, but is not considered to have participated in the vote.

6. *Tie Vote.* In the event of a tie vote on a motion, the motion shall be deemed to have failed.

7. *Record of Vote.* The Staff Attorney shall record each Board member's vote on every motion.

8. *Conflicts of Interest and Ethics Concerns.* No Board member shall vote, or take any official action, in violation of Ohio ethics law provisions including, but not limited to, Ohio Revised Code Sections 102.03, 102.04, 2921.42 and 2921.43.

9. *Duty to Disclose Conflicts of Interest and Ethics Concerns.* Any Board member who suspects his or her consideration of an item presents a possible conflict of interest or ethics concern shall disclose that issue to the City Solicitor, or his or her representative, for legal guidance as soon as practical in advance of a scheduled meeting.

10. *Recusals.* In the event of a conflict of interest or ethics concern, the affected Board member shall recuse himself or herself from consideration of the matter giving rise to the conflict and shall remove himself or herself from the meeting room during that portion of the meeting involving the item. A Board member who recuses himself or herself from consideration of an item due to a conflict of interest does not count toward satisfying quorum.

Section 5. Meeting procedures.

A. *General Rules*.

1. *Order of Agenda Items.* Items shall be considered in the order set forth on the Agenda, unless otherwise ordered by majority vote of Board members present at the meeting.

2. *Appearances.* Any person may appear in person at a meeting or may be represented by an attorney or by a duly authorized agent. All persons wishing to appear before the Board shall sign in on a form furnished by the Staff Attorney and located at the meeting room's entrance. The Board shall have the right to exclude testimony of anyone who has failed to sign in at the meeting.

   a. *Appellant's or Applicant's Failure to Appear.* If an appellant or applicant fails to appear before the Board as scheduled and has not requested to postpone or to continue the hearing as provided in Section 3 above, then the Board, in its discretion, may take one of the following actions:

      i. Postpone the hearing until the next regularly scheduled Board meeting; or

      ii. Dismiss the appeal or application based on the appellant's or applicant's failure to prosecute the appeal; or

      iii. Rule on the merits of the appeal or application, provided that each Board member participating in such a vote acknowledges on the record that he or she has reviewed all materials in the record, including any written arguments, evidence, or testimony.

3. *Written Arguments.* The Board may consider written motions, memoranda, or other written argument from the appellant, an appellee, applicant, or party of record.

   a. *Submission Deadline.* All written materials must be submitted

to the Staff Attorney no later than seven calendar days before the hearing date. If the submission deadline falls on a holiday, then the submission deadline is the business day preceding the holiday. The Staff Attorney shall not accept late submissions. The Board may consider written materials after the filing deadline at the hearing, at the Chair's discretion.

b. *Service on Opposing Party.* An appellant, appellee, applicant, or party of record that files written material with the Board must provide a copy by electronic or ordinary mail to all known parties within 24 hours from the date that those written documents were filed with the Board.

4. *Burden of Proof.* An appellant or applicant bears the ultimate burden of proof by the preponderance of the evidence.

5. *Decorum.* The Chair has the duty to maintain decorum at all times during a meeting. All persons appearing before the Board must clearly state their first and last name and their personal address or business address for the record before speaking. All speakers must speak clearly into the microphone provided in front of them and must not speak over other parties. No one shall speak from the audience. The Chair retains the right to expel from a meeting any person exhibiting a lack of decorum or causing disruptive or combative behavior.

6. *Sworn Testimony.* All persons providing testimony at a meeting shall be sworn by the Staff Attorney at the beginning of the meeting or prior to testifying.

a. *Attorneys.* Attorneys shall not be sworn, unless he or she is acting as a witness or providing testimony rather than serving as an advocate and providing argument.

7. *Ex Parte Communication.* Board members must not engage in conversation with any interested party, or members of the public, about appeals and similar subjects related to matters that will be the subject of deliberation and judicial discretion outside of a scheduled hearing.

8. *Criminal Offenses against Public Administration.* Board members are public officials whose duties and actions are protected from threats of violence and intimidation, among others. Board members must report immediately to the City Solicitor any instances or attempts of bribery, intimidation, retaliation or obstruction of official business by an appellant or any other party.

9. *Parliamentary Rules.* The Board shall follow rules and procedures set forth herein in the conduct of its meetings. Where these rules and procedures are silent, Roberts' Rules of Order may be applied by the Chair.

B. *Record Hearing Procedure*. The following procedures shall apply to an appeal taken from a decision issued by a public official or board following a quasi-judicial hearing on the matter:

1. *Argument.* The Board shall only hear argument from an appellant and an appellee, which argument shall be based on the evidence and testimony received by the decision-maker at the proceeding below, which proceeding is the subject of the appeal. The Chair may limit or exclude any

testimony that the Chair deems, in his or her discretion, to be outside the scope of the record before the Board.

2. *Motion for Additional Evidence.* An appellant or appellee may submit to the Board a motion to hear additional evidence. The Board must approve any such motion by majority vote. An appellant must submit a motion to hear additional evidence within 21 calendar days of filing the notice of appeal. An appellee must file a motion for additional evidence with its notice of appearance.

3. The Chair shall preside over record hearings as follows; however, the Board may interrupt any speaker to ask questions or to make any comments:

   a. *Call Item.* The Chair shall call the agenda item.

   b. *Argument by the Appellant.* The Chair shall call the appellant to present its position, arguments, and contentions.

   c. *Argument by an Appellee.* The Chair shall call the appellee to present its position, arguments, and contentions. In those cases where there is more than one appellee, the Chair shall provide each appellee and opportunity to present; however, the Chair, in his or her discretion, may limit duplicative and redundant arguments.

   d. *Rebuttal.* Upon the appellant's request, the Chair, in his or her discretion, may permit the appellant to rebut or refute any position, argument, or contention presented by an appellee.

   e. *Closing Statements.* The Chair shall offer the appellant and appellee an opportunity to present closing statements. An appellee shall present first, followed by the appellant.

   f. *Board Action.* The Chair shall entertain a motion to deliberate, a motion for a determination of the outcome of the appeal, a motion to continue the hearing, or such other action permitted by applicable law.

C. *De Novo Hearing Procedure*. The following procedures shall apply to an appeal taken from a decision issued by a public official without first conducting a quasi-judicial hearing on the matter.

1. The Chair shall preside over de novo hearings as follows; however, the Board may interrupt any speaker to ask questions or to make any comments:

   a. *Call Item.* The Chair shall call the agenda item.

   b. *Presentation by the Appellant.* The Chair shall call the appellant to present its position, arguments, contentions, and to offer and examine witnesses and present evidence in support of its position. The Chair, in his or her discretion, may limit or restrict the appellant's presentation to those matters that are relevant to the appeal.

   c. *Cross-Examination of the Appellant.* In those cases where an attorney is representing an appellee, the Chair shall permit the attorney for the appellee to cross-examine the applicant's position, arguments, contentions, and evidence in support of its position immediately following the testimony proffered by the appel-

lant or its witness. In those cases where there is more than one appellee, the Chair shall permit the attorney for each appellee an opportunity to cross-examine the appellee or its witnesses.

d. *Presentation by the City Appellee*. In challenges to code enforcement actions initiated by the City, the Chair shall permit the City appellant to present arguments, contentions, evidence, and testimony for appeals concerning the code enforcement action.

e. *Presentation by Appellee.* If there is an appellee, the Chair shall call the appellee to present its position, arguments, contentions, and to offer and examine witnesses and present evidence in support of its position.

f. *Multiple Appellees.* In those cases where there is more than one appellee, the Chair shall permit each appellee to present its position, arguments, contentions, and to offer and examine witnesses and present evidence in support of its position.

g. *Cross-Examination of an Appellee.* If the appellant is represented by an attorney, the Chair shall permit the appellant's attorney to cross-examine all opposition witnesses purporting to refute the appellant's position, arguments, and contentions.

h. *Comments from Persons with Standing.* Any person with standing under the Zoning Code may appear before the Board to speak on the appeal. The Chair shall provide each person two minutes to testify before the Board. The Chair, in his or her discretion, may cut off or extend the time for such testimony. Any Board member may also move to cut off such testimony at any time.

i. *Cross-examination of Persons with Standing.* The Chair shall permit attorneys for the appellant and appellee to cross-examine the position, arguments, and contentions of each person with standing immediately following that person's testimony.

j. *Rebuttal.* Upon the appellant's request, the Chair, in his or her discretion, may permit the appellant to rebut or refute the opposition's position, arguments, and contentions.

k. *Closing Statements.* The Chair shall offer the appellant and appellee an opportunity to present closing statements. An appellee shall present first, followed by the appellant.

l. *Board Action*. The Chair shall entertain a motion to deliberate, a motion for a determination of the outcome of the appeal, a motion to continue the hearing, or such other action permitted by applicable law.

D. *Urban Design Overlay District Application Hearing Procedure*. The following procedures shall apply to a hearing on a UDOD application:

1. The Chair shall preside over the hearing as follows; however, the Board may interrupt any speaker to ask questions or to make any comments:

   a. *Call Item*. The Chair will call the item being considered.

   b. *Presentation by Applicant.* The Chair will call the applicant to

present its position, arguments, contentions, and to offer and examine witnesses and present evidence in support of its position. The Chair, in his or her discretion, may limit or restrict the applicant's presentation to those matters that are relevant to the application.

c. *Cross-Examination of the Applicant.* If a party of record is represented by an attorney, the attorney for the party of record may cross-examine the applicant and any witnesses offered by the applicant. In those cases where there is more than one party of record, the Chair shall permit the attorney for each party of record an opportunity to cross-examine the applicant or its witnesses.

d. *Presentation by Party of Record.* If there are any parties of record, the Chair shall call the parties of record to present their position, arguments, contentions, and to offer and examine witnesses and present evidence in support of their position.

e. *Cross-Examination of a Party of Record.* If an applicant is represented by an attorney, the attorney for the applicant may cross-examine parties of record and any witnesses offered by the parties of record.

f. *Reports from Government Officials.* If Department Staff has provided a report and recommendation on the item being considered, the Chair will call Department Staff to present its report. Neither parties of record nor their attorneys may question or cross-examine Department Staff regarding its presentation.

g. *Comments from the Public.* The Chair will ask whether there are other members of the public who wish to speak on the item being considered. The time limits for each member of the public (and their attorney for those who are represented) shall be a total of two minutes. If the applicant is represented by an attorney, the applicant's attorney shall have the opportunity to question or cross-examine each speaker for a total of two minutes each.

h. *Rebuttal.* Upon the applicant's request, the Chair, in his or her discretion, may permit the applicant an opportunity to rebut or refute any positions arguments, or contentions offered in opposition to the application.

i. *Closing Statements.* The Chair shall offer the applicant and any parties of record an opportunity to present closing statements. Parties of record shall present first, followed by the applicant.

j. *Board Action*. The Chair shall entertain a motion to deliberate, a motion for a determination of the outcome of the application, a motion to continue the hearing, or such other action permitted by applicable law.

Section 6. Decisions.

The Staff Attorney shall reduce the Board's decision to writing for the Chair's review and signature within a reasonable period of time after the hearing. The Staff Attorney shall mail to the appellant, appellee, and the

body or official from which the decision had been appealed, the Board's final written decision by certified mail. The Board may, but is not required, to review and approve a written decision.

Section 7. Amendments or suspension of rules.

A. *Effective Date*. These rules shall be made effective upon approval by a majority vote of a quorum of Board members, provided the Staff Attorney provides written notice to all Board members at least seven calendar days before the meeting at which the adoption of these rules is to be discussed.

B. *Amendments*. These rules may be amended or revoked by a majority vote of a quorum of Board members, provided written notice of the proposed amendment or revocation is provided to each Board member at least seven calendar days before the hearing.

C. *Suspension*. The Board may suspend all or a portion of these rules at any hearing by a majority vote of the Board members present at the hearing.

BUILDING CODE
TABLE OF AMENDMENTS

Ordinance Number	Effective Date		Disposition
67-1996	4- 5-1996	Added	New Building Code
92-1996	4-22-1996	Amnd	1101-103
355-1996	11- 6-1996	Amnd	1101-57, 1101-79, 1101-81, 1101-115
		Rpld	1101-83
404-1996	12-18-1996	Amnd	1101-87, 1101-89, 1101-99, 1101-123, 1107-03, 1107-17
197-1997	7-18-1997	Rpld and Reordained	Ch. 1115
311-1997	9- 4-1997	Amnd	1101-77, 1101-79, 1101-93, 1101-129
357-1998	10-16-1998	Added	1117-73
		Amnd	1101-29, 1101-37, 1101-57, 1101-87, 1101-97, 1103-19, 1105-05, 1105-11, 1105-15, 1107-03, 1117-15, 1117-19, 1117-43, 1117-59, 1119-07
		Rpld	1105-03, 1105-05, 1105-07, 1105-09, 1105-19
128-2000	5-19-2000	Amnd	1101-27, 1101-29, 1101-85, 1101-117
083-2001	4-20-2001	Amnd	1101-17
097-2001	5- 4-2001	Amnd	1109-01, 1109-05, 1109-11, 1109-17
121-2001	5-25-2001	Amnd	1101-85
282-2001	9- 6-2001	Rpld	1115-01, 1115-03, 1115-05, 1115-07, 1115-09, 1115-11, 1115-13
		Added	1115-01, 1115-03, 1115-05, 1115-07, 1115-09, 1115-11, 1115-13, 1115-15, 1115-17, 1115-19, 1115-21, 1115-23
325-2001	11- 9-2001	Amnd	1101-57
343-2001	11-23-2001	Amnd	1101-03, 1113-03
370-2001	12-27-2001	Added	1121-1—1121-17
415-2001	12-19-2001	Amnd	1105-01—1105-39
		Rpld	1105-41—1105-55
416-2001	1-18-2002	Amnd	1101-85, 1101-87, 1101-89, 1101-91, 1101-93, 1101-97, 1101-99, 1101-101, 1101-103, 1101-105, 1101-107, 1101-113, 1101-123

Ordinance Number	Effective Date		Disposition
59-2002	3-28-2002	Amnd	1101-3, 1101-5, 1101-7, 1101-9, 1101-15, 1101-17, 1101-19, 1101-23, 1101-25, 1101-27, 1101-29, 1101-31, 1101-33, 1101-35, 1101-37, 1101-39, 1101-43, 1101-57, 1101-81, 1101-87, 1101-117, 1101-127, 1105-01, 1105-03, 1105-07, 1107-03, 1107-07, 1107-11, 1107-13, 1107-17, 1109-05, 1111-01, 1117-11, 1117-15, 1117-35, 1117-39, 1117-59, 1117-61, 1117-73, 1119-03, 1119-06, 1119-07, 1121-01, 1121-05
		Rpld	1101-95
		Rpld	Ch. 1103
6-2003	2- 7-2003	Amd	1117-39.5
164-2004	5- 5-2004		1109-01 1109-02 1109-03.2 1109-05.1 1109-11.2 1109-13.5 1109-19
404-2004	3- 1-2005		1101-85 1101-97 1101-101 1101-107 1101-111 1101-115 1105-25 1105-29
183-2005	6-17-2005		1101-103
59-2006	4-14-2006		1101-77, 1101-79 1101-129 1101-77 1101-79 1101-129
0406-2007	1- 1-2006	Added	ch. 1106, 1106-1—11-6-37, 1106-99
0032-2008	3- 7-2008		1106-5 1106-7 1106-9 1106-11 1106-13 1106-15 1106-21 1106-23 1106-27
0033-2008(Emer.)	2- 6-2008		1106-31, 1106-99

Ordinance Number	Effective Date		Disposition
		Added	1501-9(a)(7)
		Rnbd	1501-9(a)(7)—(13)
		as	1501-9(a)(8)—(14)
0049-2008	2-13-2008		1101-103
445-2008	1-17-2009		1101-85
			1101-87
0057-2009(Emer.)	3-11-2009		1101-85
355-2009	12-25-2009		1106-21
			1106-23
			Ch. 1106(note)
020-2010	2-27-2010		1106-5
			1106-7
			1106-11
			1106-15
			1106-23
			1106-27
035-2010(Emer.)	2-10-2010		1101-83
		Rpld	1109-1—1109-19
		Added	1109-1—1109-13
212-2013(Emer.)	8- 7-2013		1117-11
			1117-19

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ZONING CODE

TABLE OF AMENDMENTS

This table gives the disposition of ordinances amendatory of the Zoning Code enacted through October 1, 1993.

Ordinance Number	Effective Date		Disposition
318-1993	10- 1-1993		Zoning Code
397-1993	12-10-1993		1423-207
84-1994	4- 8-1994		1459-500, 1459-501, 1459-506
263-1994	7- 7-1994	Amnd	1437-307, 1439-207, 1441-207, 1477-305
291-1994	9- 2-1994	Added	1403-100-D11
		Amnd	1433-201, 1433-301, 1443-201, 1445-201, 1445-301, 1447-201, 1447-301, 1471-211
338-1994	10-14-1994	Amnd	1413-303, 1415-203, 1417-203, 1419-203, 1423-203, 1429-203, 1431-203
349-1994	10-21-1994	Amnd	1401-104, 1403-100-B1, 1403-100-B2, 1403-100-B4, 1403-100-D2, 1403-100-R6, 1413-210, 1413-309, 1413-400, 1415-400, 1417-211, 1417-309, 1417-400, 1419-211, 1419-400, 1423-211, 1425-400, 1427-700, 1427-701, 1429-211, 1429-307, 1429-400, 1431-211, 1431-307, 1431-400, 1433-211, 1435-307, 1437-207, 1439-307, 1443-704, 1455-202, 1465-501, 1467-303, 1467-400, 1467-405, 1467-501, 1469-103, 1469-107, 1469-250, 1469-253, 1469-260, 1469-302, 1469-304, 1469-331, 1469-332, 1469-510, 1469-511, 1471-206, 1471-217, 1471-220, 1477-400

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130-1997	5-30-1997	Amnd	Z.C. 1403-100-W, Z.C. 1403-100-W1, Z.C. 1403-100-W4, Z.C. 1403-100-W5, Z.C. 1405-205, Z.C. 1431-305, Z.C. 1441-305, Z.C. 1443-205, Z.C. 1443-305, Z.C. 1445-205, Z.C. 1445-209, Z.C. 1445-211, Z.C. 1445-305, Z.C. 1445-309, Z.C. 1445-501, Z.C. 1447-207, Z.C. 1447-208, Z.C. 1449-305, Z.C. 1451-305, Z.C. 1453-205, Z.C. 1453-305, Z.C. 1477-417

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73-1998	3-27-1998	Added	Z.C. 1403-100-R10
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9-24-1981	I		00053-5, 00053-7, 00053-11
3-23-1982	I		00071-1
1- 1-1983	I		00073
1- 1-1983	I		00075
2-24-1983	I		00073
3-23-1983	I		00073-1
3-24-1983		Rpld	00054
4-21-1983	I		00073
5-26-1983	I		00073
6-26-1983	I		00073-1
7-26-1983	I		00013-3, 00013-5
9-27-1983	I		00073-1
1- 1-1984	I		00077
1-24-1984	I		00053-13(L)
2-28-1984	I		00041
6-26-1984	I		00073-1, 00073-3, 00073-5, 00073-7, 00073-9, 00073-11
6-26-1984	I		00079-1, 00079-3
10-27-1984	I		00073-1, 00073-3, 00073-5, 00073-7, 00073-9, 00073-11
11-27-1984	I		00081-1, 00081-3
12-18-1984	I		00073-1, 00073-3 00073-5, 00073-7, 00073-9, 00073-11
1- 1-1984	I		00077-1, 00077-3, 00077-5, 00077-7, 00077-9
8-27-1985	I		00013-5(H)
8-27-1985	I		00073-1, 00073-3, 00073-5, 00073-7
11-26-1985	I		00073-1, 00073-5
1- 1-1986	I		00083
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5- 1-1986	I		00013
5-22-1986	I		00073
6-26-1986	I		00013-19
10-28-1986	I		00073-1, 00073-3, 00073-5
1-27-1987	I		00073-1, 00073-5
6-23-1987	I		00073-1, 00073-5
12- 1-1987	I	Amd	00013-3, 00013-25, 00013-29
1-26-1988	I		00047
2-23-1988	I		00073-1, 00073-5
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6-28-1988	I		00073-1, 00073-5
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10-23-1990	I	Amd	00055-1—00055-9
10-23-1990	I	Amd	00083-3
10-23-1990	I	Added	00085-1, 00085-3
10-23-1990	I	Added	00087
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9-28-1993	I	Amd	00085-3
9-28-1993	I	Amd	00089-3
4-14-1994	I	Amd	00047-5
8-24-1994	I	Amd	00073-1, 00073-3, 00073-7
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10-25-1994	I	Amd	00077-3, 00077-5, 00077-7
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3-30-1995	I	Amd	00087-1
6-21-1995	I	Amd	00073-1, 00073-3
11-28-1995	I	Amd	00047-5
11-28-1995	I	Amd	00055-3
12-28-1995	I	Amd	00089-3
1- 1-1996	I	Amd	00013-5
9-30-1996	I	Amd	00013-1—00013-21
		Added	00013-23
2-24-1998	I	Amd	00047-5
2-24-1998	I	Amd	00055-3
2-24-1998	I	Amd	00089-3
4-28-1998		Amd	00073-1
1-26-1999	I	Amd	00047-5
4-27-1999	I	Amd	0007-1—0007-9
3-28-2000	I	Amd	00047-5
11-28-2000	I	Amd	00073-1, 00073-3, 00073-5, 00073-7
11-28-2000	I	Amd	00087-1
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6-24-2002	I	Amd	00087-1
2-26-2002	I	Amd	00087-1
6-25-2002	I	Amd	00087-1
2-12-2003	1	Rpld	0005, 00015, 00041, 00057, 00061, 00065, 00069, 00071, 00075, 00081, 00091
2-13-2003	I	Amd	00073-1
9-23-2003	1	Amd	00087, 00087-1
		Added	00087-2
12- 9-2003	1	Amd	00079
3-23-2004	1	Amd	00073-1—00073-11
6-22-2004	1	Added	00093
6-22-2004	1	Amd	00099-1, 00099-3
12-28-2004	1, 2		00047, 00055, 00085, 00089
1-25-2005	1		00079
3-22-2005	1		00087, 00087-1, 00087-2
Oct. 2005	1		00053-15
3- 1-2007	1		00079(A)—(E)
Feb. 2007	1, 2		00053-5
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March 2007	1, 2		00087
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3-25-2008	1	Added	00011-1—00011-19, 00011-99
3-25-2008	1	Added	00011-21
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CITY OF CINCINNATI ZONING HEARING EXAMINER:

TABLE OF AMENDMENTS

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2-17-2011		Added	1—3
11- 1-2013			1—6

RULES OF PROCEDURE
CITY OF CINCINNATI BOARD OF BUILDING APPEALS:

TABLE OF AMENDMENTS

Effective Date	Section		Rule Amended
3- 3-2011		Added	1—7
12- 7-2017			1—7

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CITY OF CINCINNATI BOARD OF HOUSING APPEALS:

TABLE OF AMENDMENTS

Effective Date	Section		Rule Amended
4-15-2011		Added	1—7
7-10-2019			1—7

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RULES OF PROCEDURE
CITY OF CINCINNATI HISTORIC CONSERVATION BOARD:

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9-26-2011		Added	1—8
1-23-2012			1—8
8-13-2013			1—7
3-23-2015			1—7
3- 9-2020			1—7

RULES OF PROCEDURE
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10-17-2011		Added	1—7
2-20-2014			1—7
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TABLES

Comparative Section Table 1
From 1956 Code of Ordinances to
1980 Cincinnati Municipal Code

Comparative Section Table 2

From 1980 Cincinnati Municipal Code to
1956 Code of Ordinances

Ordinances Modifying the 1956 Code of Ordinances

Ordinances Moditying the 1971 Cincinnati Municipal Code

Ordinances Modifying the 1979 Cincinnati Municipal Code

Abbreviations and symbols used in these tables.

*	Code of Ordinances sections ordained subsequent to 1956 edition, but prior to 1971 edition of Cincinnati Municipal Code.
Ch.	Chapter
C.M.C.	Cincinnati Municipal Code, 1980 edition
C.O.	Code of Ordinances, 1966 edition
R.	Repealed by Ordinance Number
Sec.	Section Number of Code of Ordinance sections ordained subsequent to 1956 edition, but prior to 1971 edition of Cincinnati Municipal Code.
-	No prior reference

COMPARATIVE SECTION TABLE 1: FROM 1956 CODE TO 1980 CINCINNATI MUNICIPAL CODE

The following comparative table indicates the disposition made of and the Cincinnati Municipal Code reference to all ordinances contained in the 1956 edition of the Code of Ordinances.

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101-4	101-7	106-6	108-15
101-5	101-9	106-7	106-16
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101-7	101-13	*106-7b	106-19
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101-10	101-19	106-10	106-7
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101-12	101-23	106-12	106-23
101-13	106-21	*106-13	108-13
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104-1	104-1	107-2	107-3
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104-3	104-5	201-1	R.300-1979
104-4	104-7	201-2	R.300-1979
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104-9	R.249-1979	203-a1	203-1-A
105-1	105-1	203-a2	203-1-A1
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105-4	R.12-1979	203-b1	203-1-B
105-5	R.12-1979	203-b2	203-1-B1
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203-m3	203-1-M3	203-40	203-79
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203-p2	203-1-P1	203-43	203-85
203-p3	203-1-P2	203-44	203-87
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303-9	R.45-1970
303-10	R.45-1970
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*305-3	305-5
*305-5	305-7
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308-24	R.164-1972
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309-14	309-29	401-22	401-22
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309-16	309-99	401-31	401-31
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	312-1-O1	401-37	401-37
	312-1-P	401-38	401-38
	312-1-R	401-39	401-39
	312-1-T	401-41	401-41
	312-1-T1	401-42	401-42
*312-2	312-3	401-43	R.180-1960
*312-3	312-5	401-44	401-43
*312-4	312-7	401-45	401-44
*312-5	312-9	401-46	R.180-1960
*312-6	312-11	401-48	R.374-1967
*312-7	312-13	401-51	401-51
*312-8	312-15	401-52	401-52
*312-9	312-17	401-53	401-53
*312-10	312-19	401-54	401-54
*312-11	312-21	401-55	401-55
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*312-14	312-27	401-59	401-58
*312-15	312-25	*401-60	401-59
401-1	401-1	*401-60a	401-60
401-2	401-2	401-61	401-61
	401-2-S	*401-61a	401-62
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401-12	401-12	*401-81f	401-81
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401-84b	R.263-1966	402-5	402-5
401-84c	R.263-1966	402-6	402-99-A
401-84d	R.263-1966	402-7	402-7
*401-84e	R.263-1966	402-8	402-8
*401-84f	R.263-1966	402-9	402-9
401-85	401-85	402-10	402-10
401-85a	401-85-G	402-11	R.217-1967
401-85b	401-85-E	402-12	R.217-1967
401-85c	401-85-H	402-13	402-13
401-85d	401-85-C	402-14	R.217-1967
401-85e	401-85-S	402-15	R.217-1967
401-86	401-86	402-16	R.217-1967
401-87	401-87	402-17	402-17
401-88	401-88	402-18	402-18
401-89	R.244-1950	402-19	402-19
401-91	401-91	402-20	402-20
401-92	401-92	402-21	402-21
401-93	401-93	402-22	402-22
401-94	401-94	402-23	402-23
*401-95	401-95	402-24	402-24
401-96	401-96	402-25	402-25
*401-97	401-97	402-26	R.217-1967
401-98	401-98	402-27	402-27
401-99	R.374-1967	402-28	R.217-1967
401-101	401-101	402-29	R.217-1967
401-102	R.374-1967	402-30	R.217-1967
401-103	401-103	402-31	R.217-1967
401-104	R.374-1967	402-32	R.217-1967
401-106	R.558-1954	402-33	R.217-1967
*401-106	401-106	402-34	R.217-1967
401-108	R.558-1954	402-35	R.217-1967
401-111	401-111	402-36	R.217-1967
*401-112	401-112	402-37	R.217-1967
401-113	401-113	402-38	402-38
401-114	R.38-1962	402-39	R.217-1967
401-115	R.558-1954	402-40	R.217-1967
401-117	401-117	402-41	402-41
*401-118	401-118	402-42	402-42
*401-125	401-125	402-43	402-43
402-1	402-1-11	402-44	402-44
*402-1a	402-1-11	402-45	R.217-1967
*402-1b	402-1-B1	402-46	402-46
*402-1c	402-1-C	402-47	402-47
*402-1d	402-1-D	402-48	402-48
*402-1e	402-1-S	402-49	402-49
*402-1f	402-1-P1	402-50	402-50
*402-1g	402-1-P	402-51	R.217-1967
*402-1h	402-1-T	402-52	R.217-1967
*402-1i	402-1-B	402-53	402-53

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402-54	R.217-1967	404-20	R.127-1966
402-55	R.217-1967	404-21	R.127-1966
402-56	402-56	404-22	R.127-1966
402-57	R.217-1967	404-23	R.127-1966
402-58	402-58	404-24	R.127-1966
402-59	R.217-1967	404-25	R.127-1966
402-60	402-60	404-26	R.127-1966
402-61	402-61	404-27	R.127-1966
402-62	R.464-1971	404-28	R.127-1966
402-63	402-63	404-29	404-29
402-64	402-64	404-30	R.127-1966
402-65	402-65	404-31	R.127-1966
402-66	R.217-1967	404-32	R.127-1966
402-67	402-67	404-33	404-33
402-68	402-68	404-34	404-34
402-69	R.217-1967	404-35	404-35
402-70	402-70	404-36	R.127-1966
402-71	402-71	404-37	404-37
402-72	402-72	404-38	404-38
402-73	402-73	404-39	R.335-1978
402-74	402-74	404-40	404-40
402-75	402-75	404-41	404-41
402-76	402-76	404-42	405-42
402-77	402-77	404-43	405-43
402-78	402-78	404-44	404-44
402-79	R.217-1967	404-45	404-99
402-80	402-80	404-46	405-46
402-81	402-81	405	405
	402-99-B	406-1	405-1
*402-82	402-82	405-2	405-3
403-1	403-1	405-3	405-5
403-2	403-3	405-4	R.227-1967
403-3	403-5	405-5	R.227-1967
403-4	403-7	405-6	R.392-1966
404	404	406-7	R.392-1966
404-1	404-1	405-8	405-7
404-2	404-2	405 9	R.392-1966
404-3	404-3	405-10	R.392-1966
404-4	404-4	405-11	R.392-1966
404-5	404-5	405-12	405-9
404-6	R.127-1966	405-13	R.392-1966
404-7	R.127-1966	405-14	405-11
404-8	404-8	405-15	405-13
404-9	404-9	405-16	R.227-1967
404-10	404-10	406-17	406-15
404-11	404-11	405-18	405-17
404-12	R.127-1966	405-19	406-19
404-13	404-13	405-20	R.227-1967
404-14	404-14	*405-21	405-21
404-15	404-15	406	406
404-16	R.127-1966	406-1a	406-1-M
404-17	R.127-1966		406-1-P
404-18	R.127-1966	406-1b	406-1-F
404-19	R.127-1966		406-1-R

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406-1c	406-1-D	407-1i	407-1-C
*406-1-D1	406-1-D1	407-1j	407-1-L
406-2	406-3	407-1k	407-1-C1
406-3	406-5	407-11	407-1-B
406-5	406-7	*407-1m	407-1-H
406-6	406-9	407-2	R.500-1956
406-8	406-11	407-3	407-3
406-9	406-13	407-4	R.500-1956
406-10	406-15	407-5	407-5
406-11	406-17	407-6	R.500-1956
406-13	406-19	407-7	407-7
406-14	406-21	407-8	R.500-1956
406-15	406-23	407-9	R.341-1958
406-16	406-25	407-10	R.500-1956
406-17	406-27	407-11	407-11
406-20	406-29	407-12	R.500-1956
406-21	406-31	407-13	407-13
406-23	406-33	407-15	407-15
406-24	406-35	407-16	R.500-1956
406-25	406-37	407-17	R.489-1974
406-26	406-39	407-18	R.500-1956
406-27	406-41	407-19	R.489-1974
406-29	406-43	407-20	R.500-1956
406-30	406-45	407-21	R.489-1974
406-32	406-47	407-22	R.500-1956
406-34	406-49	407-23	R.489-1974
406-35	406-51	407-24	R.500-1956
406-37	406-53	407-25	R.109-1977
406-39	406-55	407-27	407-27
406-40	406-57	407-28	R.500-1956
406-42	406-61	407-29	407-29
406-43	406-63	407-30	R.500-1956
406-44	406-65	407-31	407-31
406-45	406-67	407-32	R.500-1956
406-46	406-69	407-33	407-33
406-47	406-71	407-35	407-35
406-48	406-73	407-36	R.500-1956
	406-99-A	407-37	407-37
406-49	406-75	407-39	407-39
406-50	406-77	407-40	R.600-1956
406-51	406-79	407-41	407-41
406-52	406-99	407-42	R.500-1956
406-53	406-99-B	407-43	407-43
*406-81-109	406-81-109	407-44	R.500-1956
407-1	407-1	407-45	407-45
407-1a	407-1-D	407-46	R.500-1956
	407-1-D1	407-47	407-47
407-1b	407-1-P1	407-48	R.500-1956
407-1c	407-1-T	*407-48	407-49
407-1d	407-1-11	407-49	407-51
407-1e	407-1-A	407-51	407-53
407-1f	407-1-T1	407-52	R.500-1956
407-1g	407-1-O	407-53	407-55
407-1h	407-1-P	407-54	R.500-1956

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407-56	407-57	407-125	407-126
407-56	R.500-1956	407-127	407-127
407-57	407-59	407-129	407-129
407-58	R.500-1956	407-131	407-131
407-59	R.83-1969	407-133	407-133
407-61	407-61	*407-134	407-136
407-62	R.500-1956	407-135	407-999
407-63	R.489-1974		407-999-A
407-65	407-65		407-999-B
407-67	407-67		407-999-C
407-69	407-69	408	408
407-70	R.500-1956	408-1	408-1
407-71	407-71	408-2	408-3
407-72	R.500-1956	408-3	408-5
407-73	407-73	408-4	408-7
407-75	407-75	408-5	408-9
407-76	R.500-1956	408-6	408-11
407-76a	R.500-1956	408-8	408-13
407-77	407-77	408-9	408-15
407-79	407-79	408-10	408-17
407-81	407-81	408-12	408-19
407-82	R.500-1956	408-13	408-21
407-83	407-83	408-15	408-23
407-84	R.500-1956	408-16	408-25
407-85	407-85	408-17	408-27
407-86	R.500-1956	408-18	408-29
407-87	407-87	408-19	408-31
407-88	R.500-1956	408-20	408-33
407-89	407-89	408-21	408-35
407-90	R.500-1956	408-24	408-37
407-91	407-91	408-26	408-39
407-92	R.500-1956	408-28	408-41
407-93	407-93	408-29	408-43
407-94	R.500-1956	408-31	408-45
407-95	407-95	408-32	408-47
407-96	R.500-1956	408-33	408-49
407-97	407-97	408-35	408-51
407-98	R.500-1956	408-36	408-53
407-99	409-99	408-38	408-99
407-100	R.500-1956	Ch. 409	R.69-1967
407-101	407-101	Ch. 410	R.369-1979
407-103	407-103	411-1	411-1
407-104	R.500-1956		411-1-P
407-105	407-105		411-1-R
407-107	407-107	*411-3	411-3
407-109	407-109	411-4	411-6
	407-999-D	411-6	R.432-1947
407-111	407-111	411-6	411-7
407-113	407-113		411-99-A
407-115	407-116	411-7	R.432-1947
407-117	407-117	411-9	411-9
407-119	407-119	*411-9	411-11
407-121	407-121	411-10	R.432-1947
407-123	407-123	411-11	R.41-1969

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411-12	R.432-1947	501-a1	501-1-A
411-13	R.41-1969	501-a2	501-1-A1
411-15	R.41-1969	501-a3	R.109-1968
411-17	R.41-1969	501-b1	501-1-B
*411-17	411-19	501-b2	501-1-B1
411-19	R.41-1969	501-b3	501-1-B2
*411-19	411-21	501-c1	501-1-C
411-20	411-17	501-c2	R.516-1973
411-21	411-23	501-c3	501-1-C2
411-22	R.41-1969	501-c4	501-1-C3
*411-22	411-25	501-c5	501-1-C4
411-23	411-13	501-c6	501-1-C5
	411-99-B	501-d1	501-1-D
411-24	R.41-1969	501-d2	501-1-D1
411-25	411-15	501-e1	501-1-E
Ch. 412	R.163-1972	*501-e2	501-1-E1
413-1	413-1	*501-e3	501-1-E2
413-1a	413-1-D	501-f1	501-1-F
*413-1a	413-1-C	*501-f2	501-1-F1
413-1b	413-1-P	501-g1	501-1-G
413-1c	413-1-P1	501-i1	R.504-1951
413-1d	413-1-0	501-i2	501-1-I
413-1e	413-1-T	501-11	501-1-1
*413-1e	413-1-P2	501-m1	501-1-M
*413-1h	413-1-1	501-m2	501-1-M1
*413-1i	413-1-A	501-o1	501-1-O
413-2	413-3	501-p1	501-1-P
413-3	413-5	501-p2	501-1-P1
413-5	413-7	501-p3	501-1-P2
413-6	413-11	501-p4	501-1-P3
413-7	413-9	501-p5	501-1-P4
413-8	413-15	501-p6	501-1-P5
413-11	413-19	*501-p7	501-1-P6
413-12	412-21	501-r1	501-1-R
413-13	413-23	501-r2	501-1-R1
*413-13	413-13	501-r3	501-1-R2
413-14	R.297-1962	501-r4	501-1-R3
413-15	413-29	501-r5	501-1-R4
413-16	413-27	501-r6	501-1-R5
413-17	413-99	501-s1	501-1-S
*413-17	413-17	501-s2	501-1-S1
413-18	413-43	501-s3	501-1-S2
413-19	413-47	501-s4	501-1-S3
413-20	R.297-1962	501-s5	501-1-S4
*413-25	413-25	501-s6	501-1-S5
*413-31	413-31	501-s7	501-1-S6
*413-33	413-33	501-t1	501-1-T
*413-35	413-35	501-t2	R.47-1971
*413-37	413-37	501-t3	501-1-T2
*413-39	413-39	501-t4	501-1-T3
*413-41	413-41	501-t5	501-1-T4
*413-45	413-45	501-t6	501-1-T5
500	500	501-t7	501-1-T6
501	501-1	501-t8	501-1-T7

C.O.	C.M.C.	C.O.	C.M.C.
*501-t9	501-1-T1	503-43	R.196-1953
501-u1	501-1-U	503-44	503-44
501-v1	501-1-V	*503-44a	503-42
501-v2	501-1-V1	*503-44b	503-43
502-1	502-1	503-45	503-45
502-2	502-2	503-46	R.359-1971
502-4	R.457-1954	503-49	503-49
502-5	R.457-1954	503-51	503-51
502-6	502-6	503-52	503-52
502-8	502-8	503-54	503-54
502-9	502-9	503-55	503-55
502-10	502-10	503-56	503-56
502-11	502-11	503-57	503-57
502-12	502-12	503-58	503-58
502-15	R.457-1954	503-59	503-59
502-16	502-16	*503-60	503-60
502-19	502-19	504-1	504-1
502-20	502-20	504-2	504-2
502-21	502-21	504-3	504-3
502-22	502-22	504-4	504-4
502-23	R.457-1964	504-7	R.360-1959
502-24	502-24	*504-1a	R.22-1964
*502-25	502-25	504-8	R.360-1959
503-1	503-1	504-10	R.360-1969
503-2	503-2	504-12	504-12
503-3	503-3	504-14	504-14
503-4	503-4	504-16	504-16
503-5	503-5	504-17	504-17
503-7	503-7	504-18	504-18
503-9	503-9	504-20	504-20
503-10	503-10	504-22	504-22
503-11	503-11	504-25	512-11
503-14	503-14	505-1	506-1
503-14a	503-13	505-2	505-2
503-15	503-15	505-4	505-4
503-16	503-16	505-5	505-5
503-17	503-17	505-7	505-7
503-18	503-18	505-9	505-9
*503-18a	503-18-A	*505-10	505-10
503-19	503-19	505-11	505-11
503-20	503-20	505-12	505-12
503-21	503-21	505-14	505-14
503-23	503-23	505-16	505-16
503-25	503-25	505-17	505-17
503-26	503-26	505-18	505-18
503-27	503-27	505-19	505-19
503-29	503-29	506-1	R.403-1978
503-31	503-31	506-2	506-2
503-32	503-32	506-4	506-4
503-34	503-34	506-5	506-5
503-38	503-38	506-6	506-6
503-39	503-39	*506-7	506-7
503-40	503-40	506-8	506-8
503-41	503-41	506-10	506-10

C.O.	C.M.C.	C.O.	C.M.C.
506-11	506-11	506-78	R.457-1954
506-12	506-12	506-79	506-79
506-13	506-13	506-80	506-80
506-14	506-14	506-83	506-83
506-15	506-15	506-84	506-84
506-17	506-17	506-86	506-85
506-18	508-18	506-86a	506-85-A
506-19	506-19	506-85b	R.443-1957
506-20	506-20	506-86c	506-85-B
506-21	506-21	506-86d	R.517-1952
506-22	506-22	506-85e	506-85-C
506-23	506-23	506-86f	R.443-1957
506-25	506-25	506-85g	R.517-1952
506-26	506-26	506-85h	R.443-1957
506-27	506-27	506-85i	R.517-1952
506-28	506-28	506-85j	506-85-D
506-30	506-30	506-85k	506-85-E
506-31	506-31	506-86	506-86
506-34	506-34	506-87	506-87
506-35	506-35	506-88	R.457-1954
506-37	506-37	506-90	R.457-1954
506-39	506-39	506-91	R.163-1948
506-40	506-40	506-92	506-92
506-40a	R.403-13	506-92a	506-91
*506-41	506-41	506-93	506-93
506-43	506-43	506-94	506-94
506-44	506-44	506-97	506-97
506-45	506-45	507	507-1
506-46	506-46	507-a1	507-1-A4
506-47	506-47	507-a2	507-1-A3
506-48	506-48	507-a3	507-1-A2
506-49	506-49	507-a4	507-1-A
506-50	R.467-1954	*507-a5	507-1-A1
506-51	506-51	507-b1	507-1-B4
506-52	R.457-1954	507-b2	R.290-1970
506-53	R.457-1964	*507-b2	507-1-B1
506-54	506-54	507-b3	507-1-B11
506-59	506-59	507-b4	507-1-B7
506-60	506-60	507-b5	507-1-B6
506-61	506-61	507-b6	507-1-B2
506-62	506-62	*507-b7	507-1-B3
506-63	506-63	*507-b8	507-1-B5
506-64	506-64	*507-b9	507-1-B8
506-66	506-66	*507-b10	107-1-B9
506-68	R.457-1964	*507-b11	507-1-B
506-70	506-70	*507-b12	507-1-B10
506-71	507-71	507-c1	R.290-1970
506-72	506-72	*507-c1	507-1-C3
506-73	506-73	507-c2	R.19-1964
506-74	506-74	*507-c2	507-1-C
506-75	506-75	507-c3	507-1-C8
506-75a	506-77	507-c4	507-1-C9
506-76	506-76	507-c5	507-1-C10
506-77	R.457-1954	507-c6	507-1-C11

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507-c7	507-1-C12	507-13	507-1-13
507-c8	507-1-C6	507-14	507-1-L
507-c9	507-1-C5	507-15	507-1-11
507-c10	507-1-C2	*507-16	507-1-15
507-c11	507-1-C1	507-m1	507-1-M1
*507-c12	507-1-C7	507-m2	R.240-1970
*507-c13	507-1-C4	*507-m2	507-1-M4
507-d1	R.290-1970	507-m3	507-1-M10
507-d2	507-1-D1	507-m4	507-1-M
507-d3	507-1-D3	507-m5	507-1-M9
507-d4	507-1-D2	507-m6	507-1-M5
*507-d5	R.290-1970	*507-m7	507-1-M11
*507-d6	507-1-D4	*507-m8	507-1-M8
*507-d7	507-1-D	*507-m9	507-1-M2
507-e1	507-3-E2	*507-m10	R.43-1968
507-e2	507-1-E3	*507-m11	507-1-M7
507-e3	507-1-E	507-m12	507-1-M6
507-e4	507-1-E4	*507-m13	507-1-M3
507-e5	507-1-E1	507-n1	507-1-N
*507-e6	507-1-E6	507-n2	507-1-N1
*507-e7	507-1-E5	507-01	507-1-O1
507-f1	507-1-F1	507-02	R.290-1970
507-f2	507-1-F3	507-03	R.377-1958
507-f3	507-1-F2	507-04	507-1-O
507-f4	507-1-F	*507-05	507-1-02
*507-f5	R.290-1970	507-p1	R.416-1958
*507-f6	R.290-1970	507-p2	R.19-1964
*507-f7	507-1-F4	507-p3	507-1-P10
507-g1	R.69-1953	507-p4	507-1-P7
507-g2	507-1-G4	507-p5	507-1-P8
507-g3	507-1-G5	507-p6	507-1-P
507-g4	507-1-G6	507-p7	507-1-P5
507-g5	507-1-G2	507-p8	507-1-P1
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COMPARATIVE SECTION TABLE 2: FROM 1980 CINCINNATI MUNICIPAL CODE TO 1956 CODE

The following comparative table indicates the 1956 Code of Ordinances reference to all ordinances contained in the 1980 edition of the Cincinnati Municipal Code. When prefaced by the abbreviation "Sec.," the section was ordained as a supplement between the publication of the 1956 Code of Ordinances and the 1971 Cincinnati Municipal Code. A hyphen indicates there was no comparable section in the 1956 Code of Ordinances or its supplements.

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401-1957	November 16, 1957	507-1-K
406-1957	October 23, 1957	Adm. Code Art. XV, Sec. 1
407-1957	November 22, 1957	507-1-B3
420-1957	November 29, 1957	Adm. Code Art. II Sec. 6
441-1957	December 20, 1957	Adm. Code Art. V, Sec. 3
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412-1958	February 1, 1958	Adm. Code Art. IV, Sec. 4b
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106-1959	April 8, 1959	901-G1—901-G3
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446-1959	January 3, 1960	306-17
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436-1960	January 28, 1961	203-33, 203-35
437-1960	December 29, 1960	203-49
438-1960	January 28, 1961	306-43
442-1960	January 1, 1961	203-43, 203-46, 203-49, 203-81, 203-85
6-1961	February 4, 1961	203-1-A3
13-1961	February 10, 1961	203-29
14-1961	February 10, 1961	203-111
16-1961	February 1, 1961	203-37
23-1961	February 10, 1961	831-1
28-1961	February 17, 1961	406-73, 406-99-A
52-1961	February 1, 1961	306-39
74-1961	March 25, 1961	507-1-G3
105-1961	April 28, 1961	901-D7
106-1961	April 28, 1961	505-10
107-1961	January 1, 1962	705-1, 705-5—705-13
148-1961	June 2, 1961	401-3, 401-62, 401-69
155-1961	June 9, 1961	905-10
202-1961	July 14, 1961	203-3

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283-1961	October 7, 1961	203-59
316-1961	September 13, 1961	901-P14
340-1961	October 27, 1961	Adm. Code Art. VI, Sec. 13
371-1961	November 24, 1961	512-6
373-1961	November 1, 1961	901-O2a
425-1961	December 29, 1961	507-1-P6
427-1961	January 1, 1962	311-1—311-3-T2, 311-5—311-13, 311-15—311-99
461-1961	December 31, 1961	306-17
462-1961	January 27, 1962	306-19
468-1961	December 28, 1961	203-3, 203-61
473-1961	January 1, 1962	203-33, 203-43, 203-49
476-1961	January 27, 1962	401-80, 401-85-G
18-1962	February 16, 1962	508-11
33-1962	March 2, 1962	507-1-C6
38-1962	March 9, 1962	401-111—401-113, 401-117
79-1962	April 20, 1962	507-1-M7
80-1962	April 20, 1962	507-1-W8
93-1962	March 28, 1962	901-P14
105-1962	May 4, 1962	710-69
110-1962	April 11, 1962	303-9
141-1962	April 25, 1962	302-7, 302-9, 302-11
154-1962	April 25, 1962	725-1-R, 725-1-R2, 725-19
166-1962	June 8, 1962	203-53, 203-55
167-1962	June 8, 1962	203-63
168-1962	June 8, 1962	203-45
169-1962	June 8, 1962	203-49
173-1962	June 8, 1962	511-19
174-1962	June 8, 1962	821-1-C2, 821-3—821-9, 821-13—821-19, 821-23, 821-29, 821-43
236-1962	June 20, 1962	721-149—721-153
245-1962	July 27, 1962	203-33
265-1962	August 4, 1962	101-23, 406-19, 407-3, 407-105, 408-3, 412-1, 503-27, 511-19, 708-21, 709-15, 709-41, 709-99-B, 711-9, 719-7, 721-75, 729-43, 733-5, 735-17, 803-1-A, 803-1-A5, 803-1-B, 803-1-B3, 803-1-C1
265-1962	August 4, 1962	803-1-L, 803-1-12, 803-1-M2, 803-1-M5, 803-1-P5, 803-1-R, 803-1-S2, 805-9, 807-1, 809-5, 811-7, 815-1, 817-5, 819-3, 821-33, 821-39, 825-7, 829-5, 831-1, 833-19, 836-1, 836-3, 836-99, 841-5, 843-5, 845-11, 845-13-A—845-13-C, 846-3, 846-5, 847-5, 849-1, 849-5, 851-5, 853-3, 855-9, 857-19, 861-9, 865-6, 865-7, 865-17, 865-19, 867-7, 869-9
278-1962	August 4, 1962	901-D8
297-1962	August 1, 1962	413-1—413-27, 413-29—413-47, 413-99
323-1962	September 12, 1962	303-15, 303-17
338-1962	September 30, 1962	306-17
341-1962	October 19, 1962	203-49
353-1962	October 26, 1962	723-19
388-1962	November 9, 1962	603-3
467-1962	January 1, 1963	606-3
468-1962	December 12, 1962	601-9, 601-11
469-1962	January 1, 1963	735-15
472-1962	January 11, 1963	203-47, 203-63
495-1962	January 1, 1963	606-3

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73-1963	March 22, 1963	203-11
88-1963	April 5, 1963	511-16-A
110-1963	April 26, 1963	401-84
163-1963	April 24, 1963	723-71
238-1963	July 26, 1963	203-65
241-1963	July 26, 1963	106-3
250-1963	June 30, 1963	306-17
255-1963	July 3, 1963	901-D4
263-1963	September 6, 1963	723-21
271-1963	September 6, 1963	701-29
275-1963	August 7, 1963	303-3
291-1963	September 5, 1963	506-1
294-1963	September 5, 1963	701-29
328-1963	October 2, 1963	843-1-S2, 843-1-S3
331-1963	November 1, 1963	106-5
332-1963	October 2, 1963	413-35
359-1963	November 22, 1963	203-33
392-1963	December 14, 1963	507-1-B3
403-1963	November 20, 1963	501-1-T1, 503-16, 503-23, 503-34, 506-8, 506-40, 506-40-A, 506-41, 506-59, 508-1, 508-1-A, 511-10, 511-11
423-1963	December 11, 1963	402-1, 402-1-T, 402-22—402-25
461-1963	January 25, 1963	308-21
16-1964	February 14, 1964	401-76, 401-78, 401-117
17-1964	February 14, 1964	401-18
21-1964	February 14, 1964	507-1-B, 507-1-O2
22-1964	February 14, 1964	503-42, 512-9
23-1964	January 15, 1964	106-21
38-1964	February 2, 1964	306-17
42-1964	March 6, 1964	507-1-E3, 507-1-F3, 507-1-J2, 507-1-N, 507-1-S1, 507-1-S6, 507-1-W3
55-1964	March 13, 1964	507-1-M6
56-1964	March 13, 1964	506-41
65-1964	February 26, 1964	721-13
98-1964	January 1, 1964	203-1-R, 203-21, 203-23, 203-29, 203-31, 203-81, 203-85, 203-93, 203-101
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119-1964	May 1, 1964	729-71
186-1964	June 5, 1964	901-A8
187-1964	June 5, 1964	407-1-W5
238-1964	July 1, 1964	402-23
268-1964	July 17, 1964	843-1, 843-1-S2, 843-1-S3
294-1964	January 1, 1965	203-33
300-1964	July 1, 1964	402-23, 402-24
364-1964	October 10, 1964	106-21
398-1964	November 6, 1964	902-D9
402-1964	October 7, 1964	402-43
404-1964	November 13, 1964	306-53
424-1964	November 20, 1964	507-1-D
432-1964	November 27, 1964	305—305-9
441-1964	December 4, 1964	729-65
449-1964	December 12, 1964	905-7
456-1964	November 18, 1964	803-1-C3, 803-1-C4, 803-1-D1, 803
470-1964	December 26, 1964	507-1-W4, 507-1-W7
504-1964	January 15, 1965	308-35
512-1964	January 15, 1965	511-19

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515-1964	January 15, 1965	401-52
517-1964	January 15, 1965	401-14
518-1964	January 15, 1965	407-35
22-1965	February 19, 1965	203-7, 203-29
23-1965	February 19, 1965	305-1, 305-3, 305-5
35-1965	February 26, 1965	203-49
80-1965	March 27, 1965	502-25, 408-34
145-1965	May 7, 1965	306-47
147-1965	May 7, 1965	504-22
154-1965	April 14, 1965	308-35
213-1965	May 26, 1965	306-51
215-1965	June 26, 1965	811-5
224-1965	June 3, 1965	601-13
237-1965	June 9, 1965	407-63
304-1965	July 8, 1965	306-51
338-1965	August 1, 1965	306-17
339-1965	August 4, 1965	306-5, 306-23, 306-25, 306-27
360-1965	October 1, 1965	509-4
361-1965	September 1, 1965	505-11
363-1965	September 1, 1965	109-11
380-1965	October 9, 1965	733-25—733-31, 733-35—733-43, 733-99-C
381-1965	October 9, 1965	901-C5
382-1965	October 9, 1965	846-9
383-1965	September 9, 1965	901-U3
384-1965	October 9, 1965	407-35
385-1965	October 9, 1965	401-86
409-1965	October 29, 1965	901-F4
415-1965	November 5, 1965	719-35—719-45, 719-99-A
445-1965	November 3, 1965	Adm. Code Art. X, Sec. 3
455-1965	December 10, 1965	833-19
475-1965	November 24, 1965	901-G15
481-1965	December 31, 1965	837-27
514-1965	December 22, 1965	847-1—847-75, 847-99
528-1965	January 28, 1966	308-51
529-1965	January 2, 1966	306-27
11-1966	February 11, 1966	729-57
16-1966	February 18, 1966	203-33, 203-41, 203-47, 203-63, 203-85, 203-93, 203-101
21-1966	January 19, 1966	901-S22
23-1966	February 25, 1966	Adm. Code Art. IX, Sec. 20
29-1966	February 25, 1966	503-60, 504-125
58-1966	March 11, 1966	106-13
66-1966	February 16, 1966	308-55
67-1966	March 18, 1966	203-43
69-1966	March 18, 1966	511-19
70-1966	March 18, 1966	507-1-R5
71-1966	March 18, 1966	507-1-S3
88-1966	April 1, 1966	106-13
90-1966	March 2, 1966	203-7
116-1966	April 29, 1966	403-3
123-1966	May 6, 1966	301-11
127-1966	May 6, 1968	404, 404-1, 404-9, 404-10, 404-29, 404-33—404-35, 404-38
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183-1966	May 25, 1966	308-35
217-1966	July 22, 1966	507-1-C7
233-1966	June 29, 1966	308-57

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263-1966	January 1, 1968	401-75—401-83, 401-85, 401-85-G, 401-117
264-1966	January 1, 1967	401-79
265-1966	January 1, 1967	401-79
272-1966	August 6, 1966	203-45, 203-47
297-1966	September 2, 1966	308-7
339-1966	October 14, 1966	308-7
352-1966	October 21, 1966	901-T7
361-1966	October 28, 1966	901-P15
376-1966	October 12, 1966	803-1-P38
378-1966	January 1, 1967	705-1—705-13
379-1966	January 1, 1967	Adm. Code Art. V, Sec. 2, 3
392-1966	November 25, 1966	405-21
439-1966	December 30, 1966	109-14
448-1966	January 6, 1967	507-1-E5
7-1967	January 1, 1967	306-29
8-1967	January 1, 1967	306-23
17-1967	February 17, 1967	705-3
29-1967	February 24, 1967	203-49
30-1967	February 24, 1967	847-1—847-75, 847-99
51-1967	February 1, 1967	203-37
52-1967	February 8, 1967	302-7, 302-9, 302-11
86-1967	March 31, 1967	723-35
87-1967	March 8, 1967	306-31
110-1967	April 21, 1967	308-7
119-1967	April 28, 1967	306-53
148-1967	May 1, 1967	308-17
157-1967	April 26, 1967	203-7
200-1967	June 16, 1967	Adm. Code Art. XVII
204-1967	June 16, 1967	203-45, 203-47
205-1967	June 16, 1967	203-111, 203-113
217-1967	June 23, 1967	402-1—402-3, 402-5, 402-7—402-10, 402-13, 402-18—402-25, 402-27, 402-38, 402-43, 402-44, 402-53, 402-58—402-60, 402-61, 402-62, 402-68, 402-76—402-81
246-1967	June 21, 1967	901-P7
330-1967	October 7, 1967	801-5, 801-11, 801-25
331-1967	September 7, 1967	306-37
356-1967	October 13, 1967	303-3, 303-9, 303-13, 303-15, 304-9
358-1967	October 13, 1967	735-1967
360-1967	October 13, 1967	Adm. Code Art. XV, Sec. 1
367-1967	October 13, 1967	507-1-F4
374-1967	October 27, 1967	401-1—401-6, 401-8, 401-13, 401-14, 401-15, 401-33, 401-37, 401-38, 401-39, 401-42, 401-43, 401-51, 401-55, 401-56, 401-62, 401-71, 401-84, 401-91, 401-95, 401-96, 401-97, 401-101, 401-103, 401-999-A
390-1967	December 13, 1967	735-17
391-1967	November 10, 1967	507-1-A1
398-1967	October 19, 1967	901-F6
399-1967	October 19, 1967	901-P15
400-1967	October 19, 1967	901-R2
401-1967	October 19, 1967	901-i9
402-1967	October 19, 1967	901-i6
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83-1967	January 19, 1968	203-53
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6-1968	January 4, 1968	709-39, 709-99-K
7-1968	January 4, 1968	901-F7
14-1968	January 10, 1968	101-29
18-1968	February 16, 1968	203-39
1-1968	January 17, 1968	512-9
31-1968	January 24, 1968	504-3
33-1968	January 24, 1968	203-1-R, 203-21, 203-23, 203-29, 203-31, 203-33, 203-39, 203-41, 203-81
36-1968	March 1, 1968	203-49
43-1968	March 1, 1968	507-1-B6, 507-1-T4
63-1968	February 14, 1968	306-49
82-1968	March 22, 1968	725-15
109-1968	March 13, 1968	501-1-E2, 502-9, 503-7, 503-15, 503-27, 503-38, 503-41, 503-42, 505-2, 506-6, 506-7, 506-14, 506-27, 511-13
110-1968	April 12, 1968	503-1
116-1968	March 20, 1968	711-1
120-1968	April 19, 1968	203-41
127-1968	March 27, 1968	507-1-M3, 507-1-M6
132-1968	May 3, 1968	407-1-H, 407-3, 407-7, 407-17, 407-29, 407-36, 407-45, 407-47, 407-49, 407-57, 407-59, 407-66, 407-67, 407-75, 407-77, 407-83, 407-107, 408, 408-1, 408-17, 408-25, 408-45
147-1968	May 1, 1968	Adm. Code Art. XIX
156-1968	April 10, 1968	Adm. Code Art.
160-1968	April 10, 1968	725-1-P2, 725-1-R, 725-1-S—725-1-U1, 725-5, 725-15, 725-21, 725-25
172-1968	April 17, 1968	Adm. Code Art. XVIII
176-1968	May 17, 1968	203-63
178-1968	April 17, 1968	203-65
193-1968	May 24, 1968	801-5, 801-11, 801-25
273-1968	July 12, 1968	203-29
276-1968	July 12, 1968	511-11
279-1968	July 12, 1968	601-9, 601-11, 601-13, 601-99, 602-19, 603-3, 603-7, 603-51, 605-1—605-13, 605-99, 606-1—606-11, 606-99
282-1968	July 12, 1968	503-21
303-1968	July 26, 1968	719-41
357-1968	September 6, 1968	705-9
366-1968	September 6, 1968	723-13
397-1968	October 11, 1968	507-1-C, 507-1-M4, 507-1-T
412-1968	September 18, 1968	903-6
423-1968	October 25, 1968	507-1-S6
428-1968	November 1, 1968	106-15
443-1968	October 9, 1968	507-1-C, 507-1-M4, 507-1-T
454-1968	November 15, 1968	727—727-23
497-1968	November 27, 1968	407-53
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8-1969	February 7, 1969	308-19
19-1969	January 1, 1969	203-47, 306-23, 308-7, 308-9

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31-1969	January 22, 1969	203-65
41-1969	February 28, 1969	411-1-P, 411-1-R, 411-3, 411-7, 411-9, 411-11, 411-13, 411-15, 411-17, 411-19, 411-21, 411-23, 411-25, 411-99-A, 411-99-B
51-1969	February 5, 1969	843-1—843-7, 843-99
61-1969	March 14, 1969	104-19
72-1969	March 21, 1969	203-31
74-1969	February 19, 1969	508-6, 508-7
82-1969	March 28, 1969	506-1
89-1969	April 1, 1969	312-1—312-99
90-1969	April 1, 1969	101-23, 109-5, 109-35, 208-17, 309-13, 406-19, 407-3, 407-105, 408-3, 412-1, 503-27, 511-19, 601-9, 601-11, 601-13, 603-3, 708-9, 708-21, 709-15, 709-99-B
90-1969	April 1, 1969	729-43, 733-5, 733-15, 735-17, 803-1-A, 803-1-A5, 803-1-B, 803-1-B3, 803-1-C1, 803-1-C3, 803-1-C4, 803-1-D1, 803-1-I, 803-1-11, 803-1-M2, 803-1-M5, 803-1-P3, 803-1-P5, 803-1-R, 803-1-S2, 805-9, 807-1, 809-5, 811-7, 815-1, 817-5, 819-3, 821-33, 821-39, 825-7, 829-5, 831-1, 833-19, 836-1, 836-3, 836-99, 839-7, 841-5, 845-11, 845-13-A—845-13-D, 847-5, 849-1, 849-5, 851-5, 853-3, 855-9, 857-19, 861-9, 865-5, 865-7, 865-17, 865-19, 867-7, 869-9
91-1969	April 1, 1969	109-31
92-1969	April 1, 1969	109-29
93-1969	April 1, 1969	109-25
94-1969	April 1, 1969	109-21
95-1969	April 1, 1969	109-23
96-1969	April 1, 1969	109-27
98-1969	March 1, 1969	512-1
111-1969	March 19, 1969	401-76—401-78, 401-81
136-1969	May 4, 1969	729-3, 729-7—729-17
165-1969	May 30, 1969	401-76
166-1969	May 30, 1969	507-1-P7
177-1969	June 6, 1969	401-38, 401-39
194-1969	June 13, 1969	511-20
195-1969	May 14, 1969	408-1
196-1969	June 13, 1969	507-1-S4, 507-1-T1
199-1969	May 14, 1969	729-7, 729-9
216-1969	June 27, 1969	731-1—731-3, 731-99
247-1969	July 25, 1969	402-24
249-1969	July 25, 1969	709-43
254-1969	July 25, 1969	407-35
283-1969	July 2, 1969	106-25
300-1969	September 5, 1969	507-1-P11
315-1969	September 4, 1969	306-31
365-1969	October 31, 1969	507-1-H2, 507-1-P2, 507-1-P3
416-1969	January 1, 1970	Adm. Code Art. IX, Sec. 21, Art. XV, Sec. 10
420-1969	January 2, 1970	Adm. Code Art. IV, Sec. 2, Art. VI, Sec. 2—13, Art. VII, Sec. 3, Art. XIX, Sec. 6, Art. XX, 407-1-D, 407-1-D1
434-1969	January 15, 1970	846-1—846-9, 846-99
435-1969	January 15, 1970	843-1—843-7, 843-99

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17-1970	January 4, 1970	306-31
18-1970	January 4, 1970	308-17
19-1970	January 4, 1970	306-23
20-1970	January 4, 1970	308-47
21-1970	January 4, 1970	308-37
22-1970	January 4, 1970	306-17
36-1970	February 11, 1970	101-1
38-1970	February 8, 1970	306-23
39-1970	February 8, 1970	308-9
40-1970	January 1, 1971	203-39
42-1970	March 13, 1970	601-15
45-1970	February 18, 1970	Adm. Code Art. IX, Sec. 7, 14, 15, 303-3, 303-11, 303-13, 303-17, 303-19, 303-21, 303-23, 303-25
48-1970	February 18, 1970	503-16, 503-17
88-1970	April 24, 1970	709-41
112-1970	May 15, 1970	901-S20
113-1970	May 16, 1970	501-1-C2
124-1970	April 29, 1970	109-33
125-1970	May 29, 1970	203-63
130-1970	April 29, 1970	511-20
142-1970	May 15, 1970	311-1, 311-5—311-17, 311-31—311-39, 311-71
146-1970	June 19, 1970	507-1-B6, 507-1-C3, 507-1-F1, 507-1-M1, 507-1-P5, 507-1-P8, 507-1-S8, 507-1-V1, 507-1-W1
151-1970	May 27, 1970	511-18, 512-17
152-1970	June 26, 1970	510-1—510-3
150-1970	June 3, 1970	311-1—311-53, 311-63—311-67, 311-71, 311-99
152-1970	June 3, 1970	901-F10
163-1970	July 3, 1970	901-M1
164-1970	July 3, 1970	713-1
189-1970	June 24, 1970	713-29, 713-31
207-1970	July 31, 1970	203-49
220-1970	July 31, 1970	402-23, 402-24
279-1970	October 10, 1970	507-1-B10
290-1970	October 16, 1970	507-1-B1, 507-1-C3, 507-1-C4, 507-1-15, 507-1-M4, 507-1-P2, 507-1-P3, 507-1-Q, 507-1-T2, 507-1-W, 507-1-W6
333-1970	October 28, 1970	101-31
350-1970	December 12, 1970	723-73
363-1970	November 25, 1970	901-T8
380-1970	December 2, 1970	203-65
384-1970	December 16, 1970	901-i2
386-1970	December 16, 1970	901-F1
387-1970	December 16, 1970	901-D3
388-1970	December 16, 1970	708-1, 708-9, 708-13
406-1970	December 23, 1970	713-21—713-27
411-1970	December 23, 1970	402-4
412-1970	December 23, 1970	402-82, 402-99-A
413-1970	December 23, 1970	903-4

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414-1970	December 23, 1970	309-99, 404-99, 406-99-B, 407-999—407-999-D, 408-99, 410-99-A, 410-99-B, 512-1, 602-99, 603-99, 701-99-D, 703-99, 707-99, 709-99-E—709-99-G, 709-99-J, 719-99-A, 719-99-B, 721-999-A, 721-999-B, 721-999-E, 721-999-F, 723-99-B, 723-99-D, 723-99-F, 731-1—731-3, 731-99, 733-99-B, 735-99-A—735-99-C, 801-99, 809-99, 811-99, 811-99-A, 817-99, 827-99, 829-99, 833-99, 836-99-A, 837-99-A—837-99-D, 841-99, 843-99, 845-99, 846-99, 857-99, 862-1, 862-3, 862-99, 863-99, 866-99-B, 867-99, 869-99, 901-A6, 901-A7, 901-B1, 901-B4, 901-B5, 901-C1, 901-C5, 901-D1, 901-D5, 901-D9, 901-El, 901-E2, 901-G1—901-G5, 901-G9—901-G11, 901-i1, 901-i10, 901-12, 901-13, 901-16, 901-N1, 901-01, 901-02, 901-P5, 901-P6, 901-P7, 901-P7a, 901-P9, 901-R1, 901-S1, 901-S2, 901-S7, 901-S16, 901-S17, 901-T1, 901-T3—901-T7, 901-V1, 901-W1, 905-4
415-1970	December 23, 1970	845-3, 845-5
416-1970	January 22, 1970	725-11
427-1970	December 30, 1970	845-69
431-1970	December 30, 1970	306-23
432-1970	December 30, 1970	308-49
433-1970	December 30, 1970	308-47
434-1970	December 30, 1970	308-19
5-1971	January 6, 1971	109-22
6-1971	January 6, 1971	704-1
7-1971	January 6, 1971	902-5
17-1971	February 19, 1971	504-2
24-1971	January 27, 1971	203-43
47-1971	February 10, 1971	406-75, 406-77, 408-3, 408-5, 408-7, 408-19, 501-1-D1, 501-1-M1, 501-1-P, 501-1-R4, 501-1-S6, 501-1-T2, 502-19, 503-34, 503-39, 503-54—503-57, 505-16—505-19, 506-2, 506-8, 506-10, 506-12, 506-17—506-19, 506-21, 506-23, 506-25, 506-28, 506-34, 506-35, 506-37, 506-39, 506-40, 506-43—506-46, 506-49, 506-51, 506-59—506-63, 506-70—506-75, 506-79, 506-80, 506-84, 506-85, 506-86, 508-1, 508-1-A, 508-6, 508-20, 508-21, 508-26, 508-28, 510-4, 511-1, 511-6, 511-10
48-1971	February 10, 1971	412-3
49-1971	February 10, 1971	701-99-B
79-1971	March 10, 1971	306-37
80-1971	February 28, 1971	306-17
81-1971	February 28, 1971	306-23
82-1971	January 1, 1972	203-39
86-1971	April 9, 1971	507-1-M4, 507-1-T, 507-1-W8
98-1971	April 23, 1971	308-59
110-1971	March 24, 1971	511-19
119-1971	April 30, 1971	Chap. 714
126-1971	May 7, 1971	Adm. Code Art. IV, Sec. 2, Art. VII, Sec. 2
127-1971	April 7, 1971	729-57
132-1971	April 14, 1971	507-1-P13
158-1971	June 4, 1971	308-69
168-1971	May 12, 1971	714-99-A

Ord. No.	Effective Date	C.M.C. Section Modified
186-1971	July 3, 1971	203-57
187-1971	July 3, 1971	203-43
198-1971	September 1, 1971	311-31
239-1971	June 30, 1971	308-19
250-1971	June 30, 1971	Adm. Code Art. VI, Sec. 14
265-1971	July 4, 1971	306-23
268-1971	July 8, 1971	714-99-A
301-1971	September 1, 1971	709-49, 709-51, 709-53, 709-56
302-1971	October 1, 1971	406-1-D1, 406-81, 406-83, 406-85, 406-87, 406-89, 406-91, 406-93, 406-95, 406-97, 406-99, 406-101, 406-103, 406-106, 406-107, 406-109
307-1971	October 1, 1971	507-1-J4
321-1971	October 9, 1971	401-125
334-1971	September 22, 1971	203-43
353-1971	November 5, 1971	109-24
361-1971	January 1, 1972	C.M.C. Adopted
371-1971	October 20, 1971	311-5
375-1971	October 28, 1971	510-9
376-1971	October 28, 1971	901-P10, 901-16
393-1971	November 10, 1971	507-1-R8
417-1971	November 24, 1971	306-11
438-1971	January 7, 1972	507-1-R9
440-1971	December 8, 1971	407-27, 407-31
443-1971	December 8, 1971	101-29
462-1971	January 14, 1972	507-1-Q, 507-1-Q1, 507-1-W10
450-1971	December 22, 1971	203-63
463-1971	December 22, 1971	506-40-A
464-1971	January 21, 1972	402-62, 709-1, 709-3, 709-5, 709-7, 709-9, 709-99-A, 709-11, 709-13, 708-31, 708-33, 708-35, 708-99-C, 901-G14, 901-S17, 901-S19
487-1971	December 29, 1971	506-40-A

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TABLE OF ORDINANCES MODIFYING THE 1971 CINCINNATI MUNICIPAL CODE

The following table of ordinances includes in chronological order all ordinances which have ordained supplementary sections or amended or repealed existing sections of the 1971 Cincinnati Municipal Code, except ordinances modifying Chapter 307, Classified Compensation Schedules.

Ord. No.	Effective Date	C.M.C. Section Ordained, Amended or Repealed
24-1972	January 26, 1972	109-24
30-1972	February 2, 1972	Chapter 305, 304-7, 307-9, 304-11, 304-13
50-1972	February 16, 1972	407-45
53-1972	February 24, 1972	109-21
68-1972	March 1, 1972	507-1-P14, 507-1-P15, 507-1-S9, 507-1-O
80-1972	April 7, 1972	507-1-B11
103-1972	January 1, 1972	306-37
105-1972	March 22, 1972	308-45
116-1972	March 1, 1972	203-41, 203-33
123-1972	April 28, 1972	506-1
124-1972	April 28, 1972	901-V1
125-1972	March 29, 1972	309-5
133-1972	May 5, 1972	723-99-C
136-1972	May 5, 1972	723-73
141-1972	April 12, 1972	311-73
142-1972	April 12, 1972	303-13, 303-14
143-1972	May 12, 1972	306-21
163-1972	May 19, 1972	Chapter 827, Chapter 836, Chapter 859, Chapter 412, 803-1-M2
164-1972	May 19, 1972	308-31, 308-33
179-1972	May 26, 1972	507-1-16
198-1972	June 2, 1972	102-9
224-1972	May 24, 1972	501-1-S7, 511-11-A, 511-29, 511-30, 506-9, 501-1-B, 501-1-I, 501-1-M, 501-1-T, 502-21, 503-49, 505-12, 506-8, 506-13, 506-18, 506-19, 506-28, 506-34, 506-40, 506-40-A, 506-45, 506-52, 506-61, 506-71, 506-84, 508-1-A, 508-2, 508-19, 510-4, 901-W4
233-1972	July 1, 1972	901-E3
234-1972	July 1, 1972	865-23, 866-25, 865-27, 865-99-D
235-1972	July 1, 1972	503-46
243-1972	July 7, 1972	306-37
249-1972	July 7, 1972	701-3, 701-6, 701-7, 701-9, 701-31, 701-99-A, 701-99-B
250-1972	July 7, 1972	901-D1, 901-M2, 901-M3
251-1972	July 7, 1972	901-N1
256-1972	July 14, 1972	Adm. Code Art. XX, Sec. 2
259-1972	July 3, 1972	504-3
264-1972	July 14, 1972	407-53
269-1972	June 14, 1972	503-13
322-1972	June 28, 1972	511-19
351-1972	August 5, 1972	Chapter 827
385-1972	August 2, 1972	709-31, 709-99-G
407-1972	September 7, 1972	311-5
408-1972	October 7, 1972	503-27
409-1972	October 7, 1972	401-14
420-1972	October 13, 1972	709-21, 709-23, 709-25, 709-35, 709-47, 709-99-D, 709-99-I, 709-99-L, 709-33, 709-27, 709-37, 709-39, 709-41
421-1972	October 13, 1972	901-F7

Ord. No.	Effective Date	C.M.C. Section Ordained, Amended or Repealed
422-1972	October 13, 1972	721-71
445-1972	September 27, 1972	713-23
450-1972	October 4, 1972	901-17
478-1972	November 17, 1972	Adm. Code Art. IV, Sec. 12
497-1972	November 25, 1972	507-1-R1
528-1972	November 22, 1972	Title X
538-1972	November 29, 1972	Adm. Code Art. VI, Sec. 3; Art. XIX, Sec. 6
544-1972	January 5, 1973	701-29
545-1972	December 6, 1972	901-17
571-1972	December 20, 1972	901-P2
573-1972	January 19, 1973	401-93-A, 403-8, 404-50
6-1973	February 9, 1973	Adm. Code Art. II, Sec. 5; Art. X, Sec. 2, 3
9-1973	January 10, 1973	106-17
10-1973	January 17, 1973	705-15, 705-99, 705-17
14-1973	January 17, 1973	109-21
15-1973	February 16, 1973	308-47
18-1973	January 17, 1973	1003-3, 1007-23, 1009-11, 1011-17, 1011-27, 1017-1, 1017-13, 1019-7, 1017-14
32-1973	January 1, 1973	311-3-N, 311-15, 311-61, 311-63
37-1973	April 1, 1973	311-1, 311-5, 311-17, 311-31, 311-71, 311-73
40-1973	January 31, 1973	Adm. Code Art. IX, Sec. 11
41-1973	March 2, 1973	506-75
56-1973	March 1, 1973	306-61
66-1973	February 14, 1973	408-33, 408-37, 408-4
67-1973	February 14, 1973	408-13, 308-15, 408-21, 408-49, 408-17
68-1973	March 16, 1973	502-2
87-1973	February 28, 1973	Adm. Code, Art. II, Sec. 11
90-1973	March 7, 1973	308-13
91-1973	March 1, 1973	308-7
92-1973	April 6, 1973	203-33
93-1973	March 1, 1973	306-31
94-1973	April 6, 1973	308-19
113-1973	April 13, 1973	1003-7
122-1973	March 21, 1973	109-21
136-1973	March 1, 1973	203-49
140-1973	April 27, 1973	510-6
147-1973	April 4, 1973	310-1, 310-3
156-1973	May 4, 1973	901-P-9
164-1973	May 11, 1973	301-15
172-1973	April 18, 1973	1007-21, 1007-25, 1007-26
181-1973	April 25, 1973	411-3, 411-5, 411-7, 411-9, 411-17, 411-19, 411-25
185-1973	April 25, 1973	1017-14, 1017-4
191-1973	May 2, 1973	109-20
194-1973	June 1, 1973	901-18
195-1973	June 1, 1973	512-1
198-1973	May 9, 1973	308-63
201-1973	June 8, 1973	308-61
236-1973	May 31, 1973	301-5, 301-9
261-1973	July 13, 1973	106-19
296-1973	July 27, 1973	Adm. Code, Art. XXI; Art. VI, Sec. 2-14
314-1973	August 4, 1973	Chapter 871
315-1973	July 5, 1973	705-9
331-1973	August 4, 1973	406-49
332-1973	July 5, 1973	506-92, 510-3
333-1973	July 5, 1973	507-1-E3, 507-1-R
368-1973	August 1, 1973	901-C2

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370-1973	August 1, 1973	901-E4
371-1973	August 31, 1973	507-1-17
388-1973	September 6, 1973	308-65
401-1973	September 6, 1073	508-30
413-1973	October 12, 1973	109-14
414-1973	October 12, 1973	106-27
418-1973	October 12, 1973	901-P7, 901-P7a
420-1973	October 12, 1973	Adm. Code Art. XXI, Sec. 1, 2, 3, 4, 6, 8, 11, 12, 13
427-1973	October 19, 1973	855-17
429-1973	September 19, 1973	845-61
451-1973	October 3, 1973	507-1-F2, 507-1-14
468-1973	October 17, 1973	203-31
475-1973	October 19, 1973	801-99
487-1973	October 31, 1973	203-56
490-1973	November 7, 1973	853-3, 853-5, 853-7, 853-13, 853-17
491-1973	November 7, 1973	106-29
501-1973	November 14, 1973	106-27
502-1973	December 14, 1973	203-45, 203-47, 203-49
504-1973	November 21, 1973	713-29, 713-31
509-1973	November 21, 1973	308-55
512-1973	December 21, 1973	505-5
513-1973	December 21, 1973	803-A5
514-1973	December 21, 1973	843-1-S2
516-1973	December 21, 1973	501-1-S1, 501-1-T5, 501-1-T7, 501-1-T8, 501-1-H1, 501-1-C1
520-1973	November 28, 1973	306-11
523-1973	January 1, 1974	Title IX
533-1973	December 12, 1973	101-29
539-1973	December 12, 1973	203-41
563-1973	December 28, 1973	101-33
7-1974	January 9, 1974	407-53
8-1974	January 9, 1974	308-49
9-1974	January 9, 1974	308-45
10-1974	February 8, 1974	308-47
11-1974	February 8, 1974	308-19
14-1974	January 9, 1974	401-33
18-1974	February 15, 1974	308-9
25-1974	January 16, 1974	203-41
26-1974	January 16, 1974	803-1-B3, 911-21
43-1974	March 1, 1974	311-41
50-1974	March 15, 1974	312-13
78-1974	April 6, 1974	308-67
89-1974	April 12, 1974	308-49
90-1974	March 13, 1974	308-75
92-1974	March 8, 1974	506-8
105-1974	March 27, 1974	504-26, 504-41
115-1974	April 26, 1974	104-23
129-1974	May 3, 1974	907-3
144-1974	April 10, 1974	306-31
173-1974	May 31, 1974	501-1-T7, 508-11
179-1974	June 7, 1974	507-1-J3
239-1974	June 29, 1974	506-4
271-1974	July 12, 1974	507-1-T5
273-1974	June 12, 1974	902-5
278-1974	June 19, 1974	306-37
284-1974	July 19, 1974	401-77

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286-1974	July 19, 1974	501-1-B, 501-1-M
287-1974	June 19, 1974	902-8
319-1974	July 1, 1974	203-1-E
320-1974	August 2, 1974	507-1-W11
321-1974	August 2, 1974	507-1-S10
326-1974	July 3, 1974	709-43
333-1974	August 7, 1974	203-115
369-1974	August 7, 1974	309-5
350-1974	August 7, 1974	409-1, 409-3, 409-5, 409-7, 409-9
389-1974	October 11, 1974	308-19
397-1974	October 18, 1974	401-76, 401-77, 401-78, 401-81
400-1974	October 18, 1974	846-11, 846-13-B, 846-13-C, 845-15
436-1974	October 9, 1974	308-9
447-1974	October 30, 1974	719-41, 719-45, 719-99-A, Chapter 737, Adm. Code Art. VI, Sec. 15
452-1974	October 30, 1974	308-45
457-1974	October 30, 1974	801-1, 803-1-B3, 911-21
464-1974	December 6, 1974	507-1-C13
465-1974	December 6, 1974	507-1-17
474-1974	December 14, 1974	803-1-C3, 803-1-C4, 803-1-D1, 803-1-I
487-1974	December 20, 1974	308-37, 310-7, 312-17, 407-131, 408-9, 408-51, 413-47, 821-43, 869-16
489-1974	January 1, 1975	407-1-A, 407-1-P1, 407-1-T1, 407-3, 407-7, 407-15, 407-17, 407-19, 407-21, 407-23, 407-25, 407-35, 407-39, 407-41, 407-45, 407-47, 407-51, 407-53, 407-57, 407-59, 407-63, 407-65, 407-67, 407-69, 407-71, 407-75, 407-77, 407-83, 407-107, 407-113, 408, 408-1, 408-3, 408-6, 408-7, 408-23, 408-25, 408-27, 408-45
501-1974	December 11, 1974	503-42, 1021-99, 1021-99a
508-1974	December 18, 1974	109-15
528-1974	December 18, 1974	308-57
537-1974	December 26, 1974	504-3, 504-12, 504-38, 504-39, 504-28, 504-33
540-1974	December 26, 1974	711-9, 711-23
6-1975	January 1, 1975	203-1-A3, 203-39
7-1975	January 1, 1975	308-17
16-1975	February 7, 1975	106-33
25-1975	January 1, 1975	203-28
29-1975	January 16, 1975	109-21
38-1975	February 21, 1975	507-1-C3
39-1975	February 21, 1975	871-7, 871-9, 871-11, 871-13, 871-15, 871-17, 871-19, 871-21
42-1975	January 29, 1975	203-47, 203-57
57-1975	February 5, 1975	713-3, 501-1-S2, 721-1-S, 713-1
61-1975	February 12, 1975	308-17
62-1975	March 14, 1975	Adm. Code, Art. VII, Sec. 2; Art. XXI, Sec. 2
68-1975	July 1, 1975	Adm. Code, Art. II, Sec. 4, 6, 7, 8, 9, 10, 11; Art. IX, Sec. 20; Art. II, Sec. 6, 7, 8, 9, 10, 11
75-1975	February 20, 1975	308-19
76-1975	February 20, 1975	308-45
77-1975	February 20, 1975	308-47, 308-49
109-1975	March 12, 1975	308-3, 308-17
128-1975	March 26, 1975	Adm. Code, Art. VI, Sec. 15
142-1975	April 2, 1975	1021-11
147-1975	April 9, 1975	Chapter 310
150-1975	April 9, 1975	Chapter 737

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191-1975	May 23, 1975	506-4
196-1975	April 30, 1975	Chapter 826
204-1975	May 30, 1975	401-96
205-1975	June 6, 1975	507-1-F5, 507-1-V1, 507-1-E7
206-1975	May 7, 1975	204, 204-97, 204-99
207-1975	May 7, 1975	204-1, 204-1-C, 204-1-C1, 204-1-C2, 204-1-C3, 204-1-C4, 204-1-C5, 204-1-E, 204-1-P, 204-1-P1
208-1975	May 7, 1975	204-3, 204-5, 204-7
209-1975	May 7, 1975	204-13
210-1975	May 7, 1975	204-15
211-1975	May 7, 1975	204-17
212-1975	May 7, 1975	911-13, 204-191
226-1975	May 14, 1975	204-11
231-1975	June 13, 1975	401-93
233-1975	May 14, 1975	Adm. Code, Art. XX, Sec. 2
288-1975	July 4, 1975	401-93-A
302-1975	June 17, 1975	204-21
311-1975	June 18, 1975	203-49
316-1975	July 18, 1975	507-1-S10
321-1975	June 25, 1975	Adm. Code, Art. II, Sec. 11
327-1975	September 1, 1975	101-23, 102-9, 109-5, 109-20, 109-24, 109-25, 109-27, 109-29, 109-31, 109-33, 109-35, 208-17, 309-13, 407-3, 407-105, 408-3, 413-9, 503-27, 511-19, 601-9, 601-11, 601-13, 601-15, 603-3, 708-9, 708-21, 709-15, 709-41, 709-43, 709-45, 713-23, 719-55, 721-75, 721-87, 733-5, 735-15, 735-17, 735-19, 803-1A, 803-1-A5, 803-1-B, 803-1-B3, 803-1-C1, 803-1-C3, 803-1-C4, 803-1-D1, 803-1-11, 803-1-12, 803-1-M5, 803-1-P3, 803-1-P5, 803-1-R, 803-1-S2, 805-9, 807-1, 809-5, 811-7, 815-1, 817-5, 819-3, 821-9, 821-33, 821-39, 825-7, 829-5, 831-1, 833-17, 833-19, 839-7, 839-9, 841-5, 843-5, 845-5, 847-5, 849-1, 849-5, 851-5, 853-3, 855-9, 857-17, 857-19, 861-9, 865-5, 865-7, 865-17, 865-19, 867-7, 869-9
340-1975	July 2, 1975	506-40
390-1975	August 6, 1975	501-30
420-1975	October 4, 1975	507-1-I1
421-1975	October 4, 1975	507-1-R3
423-1975	October 4, 1975	507-1-C13
433-1975	September 10, 1975	306-17
435-1975	October 10, 1975	302-21, 401-96
437-1975	September 10, 1975	203-49
442-1975	October 10, 1975	506-1, 506-12, 506-35, 506-39, 506-45, 506-47, 506-61, 506-72, 506-73, 506-74, 506-80, 506-19, 506-53
443-1975	September 10, 1975	911-23
447-1975	September 17, 1975	717-7
457-1975	October 24, 1975	729-1-C2, 729-1-P1, 729-44, 729-5, 729-7, 729-33, 729-39, 729-41, 729-43, 729-45, 729-47, 729-49, 729-51, 729-53, 729-55, 729-59, 729-63, 729-99
459-1975	September 24, 1975	308-35
461-1975	September 24, 1975	826-11
465-1975	October 1, 1975	203-11

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471-1975	October 31, 1975	501-1-P7, 501-1-P, 508-2
493-1975	October 15, 1975	408-3
496-1975	October 15, 1975	Adm. Code, Art. XXI, Sec. 13
514-1975	November 28, 1975	507-1-J2
550-1975	December 19, 1975	507
561-1975	December 26, 1975	507-1-B11
577-1975	December 10, 1975	Chapter 828
608-1975	December 24, 1975	713-7
609-1975	December 24, 1975	504-22, 504-41
632-1975	December 31, 1975	407-3A, 408-3A
10-1976	January 14, 1976	308-9
47-1976	February 4, 1976	402-1-B, 402-1-D, 402-19, 402-20, 402-21, 402-22, 402-23, 402-24, 402-26, 402-27, 402-38, 402-43, 402-60, 402-68, 402-78, 402-81
50-1976	February 4, 1976	506-45, 506-51
52-1976	February 11, 1976	203-11
57-1976	February 11, 1976	Adm. Code, Art. XXI, Sec. 7
58-1976	February 11, 1976	511-19
62-1976	February 19, 1976	729-7
63-1976	January 1, 1976	203-1-A3
72-1976	March 6, 1976	507-Q-2
73-1976	March 6, 1976	507-1-W10
74-1976	March 6, 1976	507-1-Q
76-1976	February 25, 1976	Suppl. Sec. 501-1-A2, Amended 501-1-A1, 501-1-B, 501-1-I, 501-1-T7
77-1976	March 6, 1976	701-43
79-1976	February 25, 1976	725-1-U1
114-1976	March 24, 1976	Adm. Code Art. XV, Sec. 1
116-1976	March 31, 1976	713-7 (See 178-1976)
124-1976	April 20, 1976	308-45
127-1976	June 8, 1976	Charter Art. II, Sec. 4
130-1976	June 8, 1976	Charter Art. V, Sec. 1, Art. VI, Sec. 7
132-1976	April 14, 1976	407-53
146-1976	April 14, 1976	308-9
151-1976	April 21, 1976	906-9
159-1976	May 21, 1976	911-7
178-1976	April 28, 1976	713-7
184-1976	May 5, 1976	309-5
195-1976	June 11, 1976	507-B-12
203-1976	June 11, 1976	718-31
218-1976	May 19, 1976	407-61
221-1976	July 1, 1976	512-22, 512-23, 512-24, 512-25
229-1976	June 25, 1976	406-74, 406-999-A
256-1976	July 9, 1976	855-19, 855-99
257-1976	July 9, 1976	828-3, 828-99
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75-1986	2-26-86		306-65
85-1986	4- 4-86		1127-33
89-1986	4- 4-86		507-1-C16
122-1986	5- 9-86		308-77
123-1986	5- 9-86		731-99, 731-99-A
131-1986	5-16-86		1101-21
132-1986	5-16-86		1105-05
169-1986	5- 7-86		601-30
190-1986	5-14-86		Z.C. 3603.1
194-1986	6-20-86		701-24, 701-99-A
239-1986	7-25-86		843-1-H, 843-11, 843-99-A
248-1986	7-25-86		507-1-H6
251-1986	7- 2-86		839-1-C
304-1986	9- 4-86		Char., Art. V, §§ 5, 6
306-1986	10- 4-86		1101-70—1101-72, 1101-74—1101-77, 1101-91
310-1986	10- 4-86		203-47, 203-50
323-1986	9- 4-86		511-31, 512-26
342-1986	10-10-86		308-43
352-1986	10-17-86		407-1-D, 407-1-D1
353-1986	10-24-86		714-1-C
360-1986	10-24-86		203-65
363-1986	9-24-86		723-11
368-1986	10- 1-86		879-1,879-3, 879-5, 879-7, 879-9, 879-99
373-1986	10-31-86		106-63
376-1986	10- 8-86		910-1
400-1986	10-29-86		513-7
406-1986	11- 5-86		506-67,506-81, 512-2, 512-3, 512-5
413-1986	12-13-86		308-59
439-1986	12-10-86		Z.C. 3402.4, 3406.1
448-1986	1-16-87		807-1, 807-1A, 807-1-A1, 807-1-A2, 807-1-A3, 807-1-C, 807-1-F, 807-1-P, 807-7, 807-9, 807-11, 807-11, 807-13, 807-15, 807-17, 807-19

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2-1987	1- 7-87		311-3-C2, 311-3-O, 311-3-P, 311-3-R, 311-15, 311-16, 311-23, 311-27, 311-31, 311-41, 311-49, 311-99
7-1987	1- 7-87		407-5, 4-7-107
14-1987	1-14-87		106-43
15-1987	1-15-87		308-59
16-1987	1-14-87		506-81
25-1987	1-22-87		304-44
33-1987	2-27-87		203-39
35-1987	2-27-87		507-1-D6
43-1987	1-28-87		701-24
115-1987	4-17-87		410-41
127-1987	5- 1-87		401-92, 401-93
134-1987	5- 1-87		Z.C. 605.3
202-1987	5-20-87		1101-02, 1101-03, 1101-12, 1101-13, 1101-96, 1101-103, 1102-03, 1103-02, 1105-03—1105-05, 1105-07, 1106-02, 1108-02, 1109-03, 1113-02, 1117-02, 1125-02, 1129-01—1129-23, 1131-02, 1156-09
		Rpld	1146-02
222-1987	7-10-87		729-85
229-1987	7-19-87		843-99, 846-99
271-1987	7-31-87		721-35
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289-1987	7-31-87		713-6
295-1987	7- 1-87		Z.C. 2301.12
296-1987	7- 1-87		Z.C. 2101.8
297-1987	7- 1-87		Z.C. 2101.5, 2101.6
298-1987	7- 1-87		Z.C. 1801.15
299-1987	7- 1-87		Z.C. 2101.11
300-1987	7-31-87		Z.C. 1802.4
301-1987	7-31-87		Z.C. 405.2
302-1987	7-31-87		Z.C. 2605.8
303-1987	7-31-87		Z.C. 2301.6.2
304-1987	7-31-87		Z.C. 604.2
305-1987	7-31-87		Z.C. 1202.4
315-1987	9- 4-87		407-125
		Rpld	407-141
316-1987	9- 4-87		407-143
344-1987	9- 4-87		Z.C. 503.1.6
346-1987	9- 4-87		Z.C. 2102.4
348-1987	10- 1-87		Chart. Art. II, § 4a, Art. III, §§ 1, 4, 5, Art. IX, § 8
389-1987	9-16-87		407-53
390-1987	1-15-88		407-27, 407-29, 407-31, 407-32
399-1987	10-23-87		106-71, 106-73
425-1987	11-13-87	Added	Z.C. 2400—2408.11
		Rpld	Z.C. 2401—2405.4, 2501—2505.4
427-1987	11-13-87		Z.C. 102.1, 102.4
428-1987	11-13-87		Z.C. 402.1.1, 402.2.4, 402.2.6, 402.4
429-1987	11-13-87		Z.C. 501.1, 501.4, 503.7, Ch. 5, Table B
		Rpld	Z.C. 503.6
430-1987	11-13-87		Z.C. 604.1,
431-1987	11-13-87		Z.C. 732.1

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432-1987	11-13-87		Z.C. 1101.3
433-1987	11-13-87		Z.C. 1201.2
434-1987	11-13-87		Z.C. 1803.2, 1804.2
435-1987	11-13-87		Z.C. 2701.2
436-1987	11-13-87		Z.C. 3501.8
443-1987	11-13-87		Z.C. Ch. 19 (Title)
		Rpld	Z.C. 1901—1901.3
		Added	Z.C. 1901—1901.10
		Amd	Z.C. 1902.1
447-1987	11-20-87		311-27
455-1987	11-27-87		501-1-H2
468-1987	12-12-87		308-79
469-1987	12-12-87	Rpld	1213-1—1213-13
		Added	1213-1—1213-19
503-1987	12-25-87		1233-9
504-1987	12-25-87		713-2
508-1987	1- 1-88		401-76—401-78, 401-81
525-1987	12-16-87		501-1-S, 506-3
526-1987	12-16-87		807-11
530-1987	12-16-87	Rpld	106-18, 106-34, 106-81, 106-83
536-1987	12-16-87		407-3
552-1987	12-23-87		807-13
553-1987	12-23-87		714-3
12-1988	2-20-88		Adm. Art. III, §§ 7, 9; Adm. Art. IX, § 8
13-1988	1-21-88		714-99, 731-99
14-1988	2-20-88	Rpld	106-21, 107-1, 107-3, 107-5
		Added	107-1, 107-3, 107-5, 107-7, 107-9, 107-11, 107-13, 107-15, 107-17, 107-19, 107-21, 107-23
		Rpld	714-99-A
21-1988	3- 4-88		407-30
27-1988	3- 4-88		1101-18, 1101-77, 1101-92
31-1988	3-11-88		311-13, 311-14, 311-17, 311-25, 311-31, 311-71, 311-73
35-1988	2-10-88		408-23
36-1988	3-11-88		407-105
38-1988	3-17-88		311-2, 311-18, 311-72
39-1988	3-19-88		1156-01—1156-04, 1156-06—1156-09
68-1988	3- 2-88		407-30
82-1988	4-15-88	Rpld	Adm. Art. IX, § 22
		Added	Adm. Art. II, § 17
83-1988	3-16-88		1101-77
87-1988	4-15-88		Z.C. 1104.2
110-1988	4- 6-88	Rpld	601-13
127-1988	4-20-88		708-33
128-1988	4-20-88		708-99-A
132-1988	4-20-88		507-1-R3
133-1988	4-20-88		507-1-E7
136-1988	5-27-88		839-5
143-1988	6-10-88		713-3
157-1988	5-11-88		407-30
158-1988	5-11-88		407-27
159-1988	5-11-88		731-3
161-1988	5-11-88		Z.C. 402.5.2
		Added	Z.C. 402.5.3
		Rnbd	Z.C. 402.5.3, 402.5.4 as 402.5.4, 402.5.5
164-1988	6-17-88		314-1, 314-3, 314-5, 314-7
181-1988	6-17-88		1101-67

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192-1988	6-25-88		1101-67, 1101-103
197-1988	7- 2-88	Rpld	Ch. 1249
224-1988	7-29-88		203-49
238-1988	6-21-88	Amd	703-33
241-1988	6-29-88		Z.C. 1802.2
242-1988	7-29-88		Z.C. 102.1
243-1988	7-29-88		Z.C. 402.5.5, 404.4, 405.3
244-1988	7-29-88		Z.C. 906.3
252-1988	7- 7-88		Z.C. 402.6.1
253-1988	7- 7-88	Rpld	Z.C. 1001.5
254-1988	7- 7-88		Z.C. 1501.4, 1502.3, 1502.3.1, 1502.3.2
256-1988	7- 7-88		Z.C. 1601.5, 1601.5.1, 1601.5.2
256-1988	7- 7-88		Z.C. 1801.2, 1802.5, 1802.5.1, 1802.5.2
		Rpld	Z.C. 1801.6
257-1988	7- 7-88		Z.C. 1901.6
268-1988	7- 7-88		Z.C. 2001.13, 2001.13.1, 2001.13.2
269-1988	7- 7-88		Z.C. 2601.18, 2601.18.1, 2601.18.2
260-1988	7- 1-88		Z.C. 2901.6
263-1988	8- 6-88		203-69
281-1988	8- 6-88	Rpld	407-31, 407-32
287-1988	8- 3-88		111-3
289-1988	8- 3-88		819-3, 829-3
312-1988	8- 3-88		506-40-B
363-1988	9-21-88		301-3, 301-5, 301-11
364-1988	10-21-88		885-1—885-4
380-1988	9-21-88		506-35-A
385-1988	10-28-88		402-23
392-1988	9-28-88		910-7
398-1988	11- 4-88		Adm. Art. XV, § 1
406-1988	10-12-88		203-1-E
410-1988	11-18-88		1207-21
413-1988	10-19-88		847-17
414-1988	11-18-88		107-1, 107-9, 107-17, 107-23
415-1988	11-18-88		Adm. Art. II, § 18, Art. III, § 9
416-1988	10-19-88		Z.C. 204.2.7
417-1988	10-19-88		Z.C. 1601.3
418-1988	10-19-88		Z.C. 1901.4.5
419-1988	10-19-88		Z.C. 2401.2.6, 2401.5
420-1988	10-19-88		Z.C. 2703.8
421-1988	10-19-88		Z.C. 2803.2
429-1988	11- 2-88		714-24
439-1988	12- 9-88		401-76—401-78, 401-81
446-1988	11- 9-88		106-50
448-1988	12-16-88		708-1—708-99-B
452-1988	11-16-88		401-71
459-1988	11-16-88		Z.C. 405.1—405.3
476-1988	1- 6-89		106-1-C1, 106-2, 106-14—106-16
478-1988	1- 6-89		102-9
484-1988	12-14-88		708-1-E
485-1988	12-14-88		708-99-A
486-1988	12-14-88		708-35
487-1988	1-13-89		203-33, 203-43
10-1989	2-10-89	Added	Z.C. 204.2.6
11-1989	2-10-89	Amd	Z.C. 605.10
12-1989	2-13-89	Added	Z.C. 1802.6
13-1989	2-10-89	Added	Z.C. 2302.7
14-1989	2-10-89	Amd	Z.C. 2401.2.6

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41-1989	2-1-89	Amd	306-53
46-1989	2-1-89	Amd	Adm. Art. XV, § 3
63-1989	2-15-89	Amd	401-61
65-1989	3-25-89	Added	Ch. 895
67-1989	2-23-89	Amd	510-3
69-1989	2-23-89	Amd	1201-65
70-1989	2-23-89	Added	1231-29
88-1989	3-1-89	Amd	303-14, 303-23
		Added	303-27
91-1989	3-8-89	Added	507-1-S12
109-1989	3-15-89	Amd	510-3
120-1989	4-21-89	Amd	Z.C. 503.2
121-1989	3-22-89	Amd	Z.C. 902.1, 902.3.3, 902.3.6, 902.4—902.7, 904.1
122-1989	3-22-89	Added	Z.C. Div. 1806
172-1989	5-3-89	Amd	205-5
		Rpld	205-7
186-1989	5-10-89	Amd	301-15
193-1989	5-10-89	Amd	510-3
195-1989	5-10-89	Amd	714-15
208-1989	5-17-89	Added	Title XI
229-1989	- -89	Amd	Z.C. 904.1
252-1989	6-21-89	Amd	510-3
254-1989	7-28-89	Rpld	Ch. 1249
257-1989	6-28-89	Added	1235-13, 1235-15, 1235-17
263-1989	7-28-89	Amd	1101-18
271-1989	8-5-89	Amd	718-9
272-1989	8-5-89	Amd	723-19
		Added	723-20
285-1989	7-6-89	Added	729-87
331-1989	9-7-89	Amd	910-7
360-1989	9-13-89	Amd	714-33
365-1989	9-13-89	Amd	Z.C. 402.2.6
366-1989	9-13-89	Amd	Z.C. 607.1
370-1989	9-20-89	Added	Adm. Art. XXVI, §§ 1-6
380-1989	9-27-89	Added	708-37
398-1989	10-11-89	Added	Ch. 891
404-1989	11-17-89	Added	Z.C. 203.1.5, 203.1.6, 203.1.7
		Rpld	Z.C. 202.4, 221.1
405-1989	11-17-89	Added	Z.C. 605.22, 605.23
		Amd	Z.C. 604.4, 605.4
		Rpld	Z.C. 605.7
406-1989	11-17-89	Added	Z.C. 1002.5
		Amd	Z.C. Div. 1000, 1004.2
407-1989	11-17-89	Amd	Z.C. 1204.2
408-1989	11-17-89	Amd	Z.C. 1302.6, 1303.2
409-1989	11-17-89	Amd	Z.C. 1601.2
410-1989	11-17-89	Added	Z.C. 1702.3
		Amd	Z.C. 1704.2
411-1989	11-17-89	Amd	Z.C. 2001.1
412-1989	11-17-89	Amd	Z.C. 2101.2
435-1989	1-1-90	Amd	401-76, 401-77, 401-78, 401-81
440-1989	11-15-89	Amd	723-5
500-1989	12-20-89	Amd	506-87
17-1990	2-17-90	Amd	1101-92
19-1990	1-16-90	Amd	Ch. 847
27-1990	1-16-90	Amd	1101-77
50-1990	2-22-90	Amd	407-135

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59-1990	2-22-90	Amd	502-9
142-1990	4-25-90	Amd	408
145-1990	4-25-90	Rpld	306-53
150-1990	5-25-90	Amd	1101-02, 1101-03, 1101-11, 1101-16, 1101-23, 1101-41
		Added	1135-05
66-1990	5-16-90	Added	Z.C. Div. 2500—2508
167-1990	5-16-90	Amd	Z.C. 102.1, 102.4
168-1990	5-16-90	Amd	Z.C. 402.2.4
169-1990	5-16-90	Amd	Z.C. 1002.1, 1002.2
170-1990	5-16-90	Amd	Z.C. 1102.3
171-1990	5-16-90	Amd	Z.C. 1201.4
172-1990	5-16-90	Amd	Z.C. 1301.3, 1301.4, 1301.6, 1302.3
173-1990	5-16-90	Amd	Z.C. 1401.3
		Rpld	Z.C. 1402.3
174-1990	5-16-90	Amd	Z.C. 1501.3
175-1990	5-16-90	Amd	Z.C. 1601.3
176-1990	5-16-90	Amd	Z.C. 1701.3
177-1990	5-16-90	Added	Z.C. 1801.16—1801.18
178-1990	5-16-90	Added	Z.C. 1901.11
179-1990	5-16-90	Added	Z.C. 2101.12, 2101.13
180-1990	5-16-90	Rpld	Z.C. 2201.8
181-1990	5-16-90	Rpld	Z.C. 2301.3
203-1990	6-15-90	Amd	1101-85
225-1990	7-2-90	Amd	725, 725-1-B, 725-1-D, 725-1-R, 725-1-R1, 725-1-R2, 725-1-S, 725-1-U, 725-1-U1, 725-1-U2, 725-3, 725-5, 725-7, 725-9, 725-11, 725-13, 725-15, 725-19, 725-21, 725-23, 725-25, 725-27
		Added	725-14
		Rpld	725-1-P
239-1990	6-4-90	Added	Ch. 740
246-1990	7-13-90	Amd	1101-44
255-1990	6-20-90	Amd	401-15
258-1990	6-20-90	Amd	508-22
289-1990	8-6-90	Rpld	101-29
		Added	101-35, 101-37
		Rnbd	101-31, 1101-39
290-1990	7-5-900	Amd	306-37
316-1990	8-1-90	Added	106-75, 106-77
332-1990	8-1-90	Amd	Z.C. 1901.4.5
340-1990	9-16-90	Amd	306-65
342-1990	9-6-90	Amd	Z.C. 3403.3
345-1990	9-6-90	Amd	1101-77
388-1990	9-26-90	Amd	721-145, 721-155
		Added	721-134, 721-999G
411-1990	10-3-90	Amd	308-19
412-1990	10-3-90	Amd	Ch. 743
413-1990	10-3-90	Amd	Adm. Art. XXVII, § 1, § 2
		Rpld	Adm. Art. VI, § 2, § 5
461-1990	12-6-90	Amd	1101-03, 1101-09, 1101-11, 1101-23, 1101-25, 1101-27, 1101-45, 1102-02, 1103-02
		Added	1108-02
474-1990	11-21-90	301-11	
485-1990	1-1-91	Amd	401-76, 401-77, 401-78, 401-81

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509-1990	12-19-90	Added	910-17
540-1990	12-19-90	Amd	203-1, 203-33, 203-35, 203-39, 203-41
20-1991	1-16-91	Amd	301-3
27-1991	2-25-91	Amd	1101-18

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46-1991	3- 8-91	Amd	721-27, 721-83, 721-85, 721-87, 721-91
72-1991	4- 5-91	Amd	308-55
76-1991	3- 6-91	Amd	Z.C. 2001.1
93-1991	4-12-91	Amd	819-7, 829-7
111-1991	4-26-91	Added	106-21, 106-23
		Amd	106-61
133-1991	5-10-91	Amd	829-99
		Added	819-99
134-1991	5-10-91	Amd	Z.C. 405-1
135-1991	4-17-91	Added	Z.C. 2503.3.7
136-1991	5-17-91	Amd	Z.C. 2501.2
149-1991	5-17-91	Amd	723-19, 723-20
		Added	723-41, 723-43
169-1991	6- 7-91	Amd	509-4
180-1991	6-14-91	Rpld	601-15
222-1991	7-12-91	Amd	Z.C. 204.2.7
246-1991	7- 1-91	Amd	203-1-E, 203-3
268-1991	7-26-91	Added	401-40
278-1991	8- 2-91	Added	§ 17, Art. II, Admin. Code
300-1991	9- 6-91	Added	Title X
313-1991	8- 7-91	Amd	401-118
321-1991	8- 7-91	Added	729-89
322-1991	9- 6-91	Amd	Char., Art. VII, § 1
332-1991	10- 4-91	Amd	Char., Art. IX, § 2
		Added	Char., Art IX, 12
372-1991	10-11-91	Amd	721-149, 721-153, 721-167, 721-169
384-1991	10- 1-91	Amd	895-1, 895-1-B, 895-1-C, 895-1-D, 895-1-F, 895-1-G, 895-1-O, 895-1-R, 895-1-S, 895-3, 895-5, 895-19, 895-23, 895-25
396-1991	11- 1-91	Amd	1101-38, 1101-41, 1101-96
	1- 1-92	Added	1101-58, 1101-59, 1101-110, 1101-111
398-1991	11- 1-91	Added	Ch. 1138
419-1991	11-15-91	Added	Z.C. 211.1
420-1991	11-15-91	Amd	Z.C. 1401.3
421-1991	11-15-91	Amd	Z.C. 602.2
		Added	Z.C. 605.24
436-1991	11-25-91	Amd	Adm. Code Art. II, § 5
		Added	Adm. Code Art. II, § 19
460-1991	12-16-91	Added	723-22
464-1991	11-20-91	Added	Ch. 207
475-1991	12-20-91	Amd	Adm. Code Art. XXI, §§ 2, 3
476-1991	12-20-91	Amd	1101-18, 1101-32
481-1991	12-27-91	Amd	Adm. Code Art. XV, § 1
482-1991	1- 3-92	Rpld	910-13
495-1991	1- 1-92	Amd	401-76, 401-77, 401-78, 401-81
506-1991	1-17-92	Amd	407-1-D, 407-1-D1
507-1991	1-17-92	Amd	Adm. Code Art. VI, § 2; Art. VII, § 2
1-1992	1- 8-92	Amd	207-5
5-1992	2- 7-92	Amd	1101-92
7-1992	1- 8-92	Rpld	708-2
8-1992	2- 7-92	Added	708-39
12-1992	2-14-92	Amd	1101-03, 1101-10, 1101-11, 1101-15, 1101-17, 1101-27, 1101-86, 1102-02, 1103-02, 1105-07, 1127-01, 1127-08, 1131-01, 1136-01, 1136-02, 1136-06, 1136-14—1136-26, 1137-02, 1137-06, 1137-07, 1137-32, 1151-54, 1151-65, 1151-69
20-1992	2-14-92	Amd	401-55, 401-59

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34-1992	2-24-92	Amd	513-3
35-1992	2-24-92	Added	513-4
36-1992	2-24-92	Amd	513-1
46-1992	4- 1-92	Amd	1101-18, 1101-77, 1101-78, 1101-79, 1101-80, 1101-81, 1101-85, 1101-86, 1101-91, 1101-96, 1101-98, 1101-100, 1101-101, 1101-102, 1101-108, 1151-74
	3-11-92	Added	1130-05
80-1992	3-27-92	Amd	331-11
84-1992	4- 4-92	Added	Ch. 849
88-1992	4- 3-92	Amd	513-1
89-1992	4- 3-92	Amd	513-3
93-1992	3- 4-92	Amd	Z.C. 1901.4.5
		Added	Z.C. 1902.1.3
		Rpld	Z.C. 1901.4.5
94-1992	3- 4-92	Amd	Z.C. 402.6.2
95-1992	3- 4-92	Amd	Z.C. 204.6.2, 209.0.6
96-1992	3- 4-92	Amd	Z.C. 2401.2.6, 2401.5
97-1992	3- 4-92	Amd	Z.C. 2701.1, 2701.2, 2703.8
98-1992	3- 4-92	Amd	Z.C. 2803.2
99-1992	3- 4-92	Rpld	Z.C. 1802.6
109-1992	4-17-92	Amd	§ 9, Art. XXI, Admin. Code
110-1992	4-17-92	Amd	Z.C. 405.2, 405.3
111-1992	4-17-92	Amd	111-3
112-1992	4-17-92	Amd	§ 12, Art. II, Admin. Code
113-1992	4-17-92	Added	Ch. 113
114-1992	4-17-92	Amd	Z.C. 3405.3
133-1992	5- 4-92	Amd	1101-91, 1126-02
142-1992	5- 8-92	Amd	713-1
146-1992	5- 8-92	Added	508-23
154-1992	5-15-92	Amd	1101-44
160-1992	5-22-92	Amd	1133-01, 1133-03, 1133-06—1133-09
		Rpld	1133-04
184-1992	5-29-92	Added	723-12
186-1992	6- 5-92	Amd	713-3, 713-7
		Added	713-19
199-1992	6- 5-92	Amd	309-1-A1, 309-3
205-1992	5-13-92	Added	Z.C. 3403.5
230-1992	5-20-92	Added	910-13
256-1992	5-28-92	Added	907-5
270-1992	6-29-92	Amd	721-147
280-1992	7- 3-92	Amd	§ 11, Art. II, Admin. Code.
		Rpld	§ 6, Art. II, Admin. Code
292-1992	8-17-92	Amd	301-15
299-1992	8-17-92	Amd	Ch. 740
341-1992	8- 5-92	Amd	306-37
357-1992	8- 5-92	Added	1101-60
		Amd	1101-50, 1101-51, 1101-75, 1101-76
373-1992	9- 2-92	Amd	910-7
377-1992	9- 2-92	Amd	1101-03, 1101-23, 1101-29, 1102-02, 1103-02, 1105-07, 1106-01, 1106-02, 1110-02, 1111-01, 1111-03, 1121-02, 1123-02, 1126-05, 1135-01, 1135-04, 1152-01
		Rpld	1108-02, 1113-01, 1128-02
399-1992	10-12-92	Amd	506-67
400-1992	10-12-92	Amd	506-8
401-1992	10-12-92	Amd	511-31
408-1992	9-16-92	Added	308-83

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		Rpld	Admin. Art. XVII
422-1992	9-16-92	Added	Ch. 515
423-1992	9-16-92	Amd	503-52, 511-22, 511-23, 511-25, 512-1, 512-4, 512-7, 512-23, 513-1, 513-3, 513-4, 513-5, 513-9
		Added	508-25
		Relocated	508-20 to 508-24
426-1992	10-16-92	Added	Ch. 321
		Rpld	Ch. 106
		Relocated	Ch. 107 to Ch. 331
452-1992	10-4-92	Added	203-1-A3
490-1992	11-25-92	Added	Ch. 914
510-1992	12-16-92	Amd	203-33
518-1992	1-1-93	Amd	401-76, 401-77, 401-78, 401-81
16-1993	2-14-93	Added	314-2, 314-4, 314-6, 314-8, 314-9
		Amd	314-1, 314-3, 314-5, 314-7
93-1993	4-16-93	Added	910-11
		Amd	910-7
115-1993	3-24-93	Amd	895-13, 895-15, 895-19, 895-21, 895-23
117-1993	1-1-94	Added	Ch. 607
129-1993	4-14-93	Added	729-90
156-1993	6-4-93	Added	301-15
180-1993	7-1-93	Amd	720-59
190-1993	7-1-93	Amd	910-1
199-1990	7-5-93	Amd	510-3
228-1993	7-23-93	Amd	1101-92
231-1993	6-23-93	Added	1101-112
234-1993	7-23-93	Amd	111-1
243-1993	7-30-93	Amd	§ 17, Art. II, Admin. Code
		Added	§ 22, Art. IX, Admin. Code
250-1993	7-8-93	Amd	829-15
		Added	829-23
286-1993	7-8-93	Amd	1101-03, 1101-09, 1101-45, 1106-02
287-1993	7-8-93	Amd	1101-03, 1101-09, 1101-11, 1101-19, 1101-22, 1101-23, 1101-25, 1101-28, 1101-31, 1106-02
313-1993	8-4-93	Amd	1151-74
314-1993	8-25-93	Added	Chart. Art. XII
318-1993	10-1-93	Added	Z.C. 1401-100—1477-700
343-1993	9-22-93	Added	1101-61, 1101-62, 1101-113
		Rpld	1101-56
354-1993	10-6-93	Amd	713-1, 713-2
356-1993	11-5-93	Amd	301-15
386-1993	11-26-93	Amd	203-65
397-1993	12-10-93	Amd	Z.C. 1423-207

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404-1993	12-10-93	Amd	513-7
407-1993	11-17-93	Amd	729-1
		Added	729-88
418-1993	12-24-93	Amd	401-76, 401-77, 401-78, 401-81
431-1993	1-7-94	Added	401-126
435-1993	1-7-94	Amd	301-15
11-1994	2-11-94	Amd	321-37
46-1994	2-2-94	Amd	1101-50, 1101-62, 1101-81, 1101-113
55-1994	3-18-94	Amd	331-3
		Added	331-4, 331-6
62-1994	2-24-94	Amd	308-83
84-1994	4-8-94	Amd	Z.C. 1459-500
		Added	Z.C. 1459-501, 1459-506
106-1994	5-5-94	Added	Ch. 323
110-1994	5-6-94	Amd	321-13, 321-15, 321-17, 321-137, 321-159
141-1994	6-3-94	Amd	321-37
		Added	321-1-E, 321-1-R-1, 321-22, 321-52, 321-65, 321-109
186-1994	6-24-94	Amd	601-9
192-1994	6-2-94	Amd	895-11, 895-99
193-1994	6-2-94	Added	Ch. 850
205-1994	7-8-94	Added	701-42
208-1994	7-8-94	Amd	301-15
216-1994	7-8-94	Amd	323-25
220-1994	7-15-94	Added	729-91
225-1994	7-2-94	Added	911-27
235-1994	6-29-94	Amd	911-27
263-1994	7-7-94	Amd	Z.C. 1437-307, 1439-207, 1441-207, 1477-305
278-1994	8-8-94	Amd	308-9
279-1994	8-8-94	Added	507-1-E11, 507-1-W17
281-1994	8-8-94	Amd	507-1-H-4
		Rnbd	507-1-H-4 as 507-1-H5, 507-1-H5 as 507-1-H6, 507-1-H6 as 507-1-H7
		Rpld	507-1-C9
283-1994	8-8-94	Amd	1101-03, 1103-02, 1136-01—1136-10
		Added	1136-12, 1136-13, 1136-15, 1136-23, 1136-24, 1136-25
		Rnbd	1136-12 as 1136-14, 1136-13 as 1136-16, 1136-14 as 1136-17, 1136-15 as 1136-18, 1136-16 as 1136-19, 1136-25 as 1136-21, 1136-26 as 1136-22
		Rpld	1136-17, 1136-18, 1136-20—1136-24

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284-1994	7-7-94	Amd	323-1-J, 323-19
285-1994	8-8-94	Rpld	Ch. 889
288-1994	8-8-94	Amd	839-1-I
289-1994	8-8-94	Rpld	Ch. 845
		Added	Ch. 845
290-1994	8-8-94	Amd	910-7
291-1994	9-2-94	Added	Z.C. 1403-100-D11
		Amd	Z.C. 1433-201, 1433-301, 1443-201, 1445-201, 1445-301, 1447-201, 1447-301, 1471-211
292-1994(Emer.)	8-3-94	Amd	Char. Art. II, § 3
318-1994	9-14-94	Extends	911-27
338-1994	10-14-94	Amends	Z.C. 1413-303, 1415-203, 1417-203, 1419-203, 1423-203, 1429-203, 1431-203
339-1994	10-14-94	Rpld	Ch. 849
349-1994	10-21-94	Amd	Z.C. 1401-104, 1403-100-B1, 1403-100-B2, 1403-100-B4, 1403-100-D2, 1403-100-R6, 1413-210, 1413-309, 1413-400, 1415-400, 1417-211, 1417-309, 1417-400, 1419-211, 1419-400, 1423-211, 1425-400, 1427-700, 1427-701, 1429-211, 1429-307, 1429-400, 1431-211, 1431-307, 1431-400, 1433-211, 1435-307, 1437-207, 1439-307, 1443-704, 1455-202, 1465-501, 1467-303, 1467-400, 1467-405, 1467-501, 1469-103, 1469-107, 1469-250, 1469-253, 1469-260, 1469-302, 1469-304, 1469-331, 1469-332, 1469-510, 1469-511, 1471-206, 1471-217, 1471-220, 1477-400

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350-1994	10-21-94	Amd	708-15
354-1994	10-28-94	Amd	713-1
357-1994	10-28-94	Amd	321-31
361-1994	10-28-94	Amd	111-3, 741-17
363-1994	11- 4-94	Amd	708-35
378-1994	10-12-94	Amd	911-27
393-1994	11-25-94	Amd	708-3
400-1994	12- 2-94	Amd	301-15
436-1994	1- 6-95	Amd	301-15
441-1994	1-13-95	Amd	1101-77, 1101-78, 1101-79, 1101-80, 1101-81, 1101-83, 1101-85, 1101-86, 1101-91, 1101-93, 1101-96, 1101-101, 1101-102, 1101-108
450-1994	1-20-95	Amd	Adm. Art. VI, § 2, Adm. Art. VII, 2
451-1994	1-20-95	Amd	Adm. Art. II, § 13
452-1994	1-20-95	Added	Art. XIX, § 7
		Amd	720-1-D, 720-1-U1, 720-1-U2, 720-3
453-1994	1-20-95	Rpld	Adm. Art. XX, § 1; Ch. 733, Ch. 735
454-1994	1-20-95	Amd	401-112
474-1994	12-21-94	Amd	508-34
9-1995	2- 1-95	Added	721-148
		Amd	721-999-G
29-1995	2-21-95	Added	501-1-B3, 506-5-A
32-1995	1-19-95	Amd	601-18
33-1995	6-25-95	Amd	407-5, 407-7, 407-15, 407-53, 407-95, 407-107
		Added	407-6, 407-8, 407-9, 407-106
48-1995	2-15-95	Amd	729-88
66-1995	4- 7-95	Amd	914-1-A2, 914-1-D1, 914-1-R, 914-1-S, 914-3, 914-5
89-1995	3-22-95	Rpld	Ch. 815
117-1995	5- 5-95	Amd	407-9, 407-27, 407-30
143-1995	5-19-95	Amd	Z.C. 1403-100-A2, 1403-100-P1, 1403-100-P4, 1403-100-P9, 1403-100-S10, 1405-211, 1407-211, 1409-211, 1411-211, 1413-211, 1413-309, 1415-211, 1415-309, 1417-211, 1419-211, 1421-211, 1423-207, 1423-211, 1425-211, 1427-700, 1429-211, 1431-206, 1431-207, 1431-211, 1433-211, 1433-308, 1435-207, 1437-206, 1437-207, 1441-203, 1441-308, 1445-202, 1445-204, 1445-205, 1445-209, 1445-309, 1445-501, 1447-203, 1447-207, 1447-208, 1449-207, 1449-208, 1449-308, 1457-400, 1457-405, 1465-700, 1467-700, 1469-121, 1469-234, 1471-201, 1471-207, 1471-211, 1471-217
		Added	Z.C. 1403-100-F6, Z.C. 1403-100-R9, Z.C. 1443-308
		Rnbd	Z.C. 1403-100-F6 as Z.C. 1403-100-F7
153-1995	5-26-95	Amd	910-9
155-1995	6- 2-95	Added	723-76
156-1995	6- 2-95	Added	910-12
159-1995	6- 2-95	Amd	Adm. Art. II, § 5
		Added	Adm. Art. II, § 23—25
165-1995	6- 2-95	Amd	Adm. Art. XXIV, §§ 1, 2
169-1995	6- 2-95	Amd	321-141
183-1995	6-16-95	Added	104-1-1A
188-1995	6-16-95	Amd	701-42

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212-1995	6-	21-95	Amd 729-88
215-1995	6-	21-95	Added 203-52
221-1995	6-	21-95	Amd 413-19
238-1995	7-	6-95	Amd Z.C. 1447-309, 1449-309
259-1995	9-	1-95	Amd 408, 408-1, 408-3, 408-5, 408-7
260-1995	9-	1-95	Amd 407-1-P1, 407-5, 407-15, 407-29, 407-29, 407-35, 407-37, 407-55, 407-69, 407-71, 407-83, 407-107, 407-117-A
			Added 407-1-P2, 407-118
261-1995	8-	2-95	Added Ch. 751
274-1995	9-	1-95	Added 405-22—405-25, 405-99
275-1995	9-	1-95	Amd 207-5, 207-7
24-1995	2-	23-96	Amd Adm. Code. Art., § 9
287-1995	9-	17-95	Added 601-18, Ch. 609
288-1995	9-	7-95	Amd 407-30
291-1995	9-	13-95	Added 717-2, 717-16
			Amd 717-3, 717-5, 717-7, 717-13, 717-99
303-1995	10-	20-95	Rpld 507-1-04
304-1995	10-	20-95	Amd 507-1-J2
309-1995	9-	20-95	Amd 410-99
327-1995	11-	3-95	Added Ch. 1031
328-1995	11-	3-95	Added 1134-06
			Amd 1101-16, 1101-17, 1134-02
341-1995	11-	17-95	Amd 203-11, 203-113
344-1995	11-	17-95	Added 506-16
345-1995	11-	24-95	Added Ch. 1021
358-1995	12-	1-95	Added 801-29
			Amd 801-5, 801-11, 801-25
367-1995	11-	8-95	Amd 723-76
368-1995	11-	8-95	Amd 910-12
373-1995	12-	31-95	Rpld 601-9
383-1995	11-	29-95	Amd 895-11
386-1995	1-	5-96	Added 895-1-P
			Amd 895-11
404-1995	1-	19-96	Added 908-3—908-15
406-1995	12-	20-95	Rpld 401-76, 401-77, 401-81, 401-82, 401-87
	Reordained		
			Added 401-89
2-1996	2-	5-96	Amd 1001-1
			Rnbd 1001-2 as 1001-3, 1001-2-A1 as 1001-3-A1, 1001-2-A2 as 1001-3-A2, 1001-2-A3 as 1001-3-A3, 1001-2-A4 as 1001-3-A4, 1001-2-E1 as 1001-3-E1, 1001-2-E2 as 1001-3-E2, 1001-2-F as 1001-3-F, 1001-2-P as 1001-3-P, 1001-2-S as 1001-3-S, 1003-1 as 1001-5, 1003-3 as 1001-7, 1003-5 as 1001-9, 1005-1 as 1001-11, 1005-3 as 1001-13, 1005-5 as 1001-15, 1005-7 as 1001-17, 1007-1 as 1001-19, 1007-3 as 1001-21, 1007-5 as 1001-23, 1007-7 as 1001-25, 1007-9 as 1001-27, 1007-11 as 1001-29, 1007-13 as 1001-31, 1007-15 as 1001-33
20-1996	2-	23-96	Amd 723-20
21-1996	2-	23-96	Amd 895-19
24-1996	2-	23-96	Amd Adm. Art. XXI, § 9

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34-1996	1-31-96	Adding	Z.C. 1403-100-D12, Z.C. 1403-100-W, Z.C. 1403-100-W1, Z.C. 1403-100-W2, Z.C. 1403-100-W3, Z.C. 1427-507, Z.C. 1431-501, Z.C. 1433-501, Z.C. 1437-505, Z.C. 1439-504, Z.C. 1441-502, Z.C. 1445-504, Z.C. 1447-501, Z.C. 1449-501, Z.C. 1451-508, Z.C. 1453-508
		Amd	Z.C. 1405-211, Z.C. 1407-211, Z.C. 1409-211, Z.C. 1411-211, Z.C. 1413-211, Z.C. 1415-211, Z.C. 1417-211, Z.C. 1419-211, Z.C. 1421-211, Z.C. 1423-211, Z.C. 1425-211, Z.C. 1427-211, Z.C. 1427-311, Z.C. 1429-211, Z.C. 1431-211, Z.C. 1431-311, Z.C. 1431-500, Z.C. 1433-211, Z.C. 1433-311, Z.C. 1433-500, Z.C. 1435-211, Z.C. 1437-211, Z.C. 1437-311, Z.C. 1437-500, Z.C. 1439-211, Z.C. 1439-311, Z.C. 1439-500, Z.C. 1441-209, Z.C. 1441-211, Z.C. 1441-311, Z.C. 1441-500, Z.C. 1445-209, Z.C. 1445-211, Z.C. 1445-309, Z.C. 1445-500, Z.C. 1445-501, Z.C. 1447-209, Z.C. 1447-209, Z.C. 1447-211, Z.C. 1447-309, Z.C. 1447-500, Z.C. 1449-207, Z.C. 1449-208, Z.C. 1449-209, Z.C. 1449-211, Z.C. 1449-308, Z.C. 1449-309, Z.C. 1449-500, Z.C. 1451-500, Z.C. 1453-508, Z.C. 1473-311
37-1996	3- 1-96	Amd	312-25
55-1996	3-25-96	Added	511-33, 512-27
67-1996	4- 5-96	Added	Building Code
68-1996	4- 5-96	Amd	Adm. Art. II, § 4, 19
92-1996	4-22-96	Amd	1101-103
107-1996	4-10-96	Added	507-1-A3
108-1996	5-10-96	Amd	713-1
138-1996	6- 7-96	Added	910-10
167-1996	5-30-96	Added	306-48
186-1996	6-12-96	Amd	895-3, 895-5, 895-7, 895-13, 895-19
		Added	895-18
211-1996	7- 3-96	Added	Z.C. 1403-100-113, Z.C. 1403-100-P10, Z.C. 1403-100-P11, Z.C. 1403-100-W4, Z.C. 1403-100-W5, Z.C. 1443-305

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		Amd	Z.C. 1403-100-P8, Z.C. 1405-205, Z.C. 1405-305, Z.C. 1407-205, Z.C. 1407-305, Z.C. 1409-205, Z.C. 1409-305, Z.C. 1411-205, Z.C. 1411-305, Z.C. 1413-205, Z.C. 1413-305, Z.C. 1415-205, Z.C. 1415-305, Z.C. 1417-205, Z.C. 1417-305, Z.C. 1419-205, Z.C. 1419-305, Z.C. 1421-205, Z.C. 1421-305, Z.C. 1423-205, Z.C. 1423-305, Z.C. 1425-205, Z.C. 1425-305, Z.C. 1427-205, Z.C. 1427-305, Z.C. 1429-205, Z.C. 1429-305, Z.C. 1431-205, Z.C. 1431-305, Z.C. 1433-205, Z.C. 1433-305, Z.C. 1435-205, Z.C. 1435-305, Z.C. 1437-205, Z.C. 1437-305, Z.C. 1439-205, Z.C. 1439-305, Z.C. 1441-205, Z.C. 1441-207, Z.C. 1441-305, Z.C. 1443-205, Z.C. 1443-206, Z.C. 1443-300, Z.C. 1445-205, Z.C. 1445-305, Z.C. 1445-501, Z.C. 1447-205, Z.C. 1447-305, Z.C. 1449-205, Z.C. 1449-305, Z.C. 1451-205, Z.C. 1451-305, Z.C. 1453-205, Z.C. 1453-305, Z.C. 1477-417
		Rpld	1403-100-P9
212-1996	7- 3-96	Amd	Adm. Art. VI, § 2
		Replaced	Adm. Art. VII
		Rpld	Adm. Art. XII
214-1996	8- 2-96	Added	507-1-W18
228-1996	9- 6-96	Added	Ch. 753
229-1996	9- 6-96	Added	Ch. 755
230-1996	9- 6-96	Added	Ch. 899
232-1996	9- 6-96	Added	Ch. 897
233-1996	9- 6-96	Added	Ch. 898
241-1996	9- 6-96	Added	Title XV
243-1996	9- 6-96	Amd	713-1, 713-9
291-1996	10-18-96	Amd	308-7
303-1996	10-25-96	Amd	401-52, 401-59, 401-79, 401-112, 401-113, 401-117, 1231-15
321-1996	10-16-96	Amd	701-24
322-1996	10-16-96	Amd	701-25
323-1996	11-15-96	Amd	845-5, 845-9, 845-11, 845-19
345-1996	11-29-96	Added	911-5
355-1996	11- 6-96	Amd	Adm. Art. XXI, § 7; 1101-57, 1101-79, 1101-81, 1101-115
		Rpld	Adm. Art. XXI, § 10; 1101-83
366-1996	12-20-96	Added	301-20, 301-20-A
372-1996	11-20-96	Added	401-90, 401-102
		Amd	401-73, 401-82, 401-92, 401-93-A, 401-126
393-1996	12-18-96	Amd	1501-3, 1501-5, 1501-7, 1501-9, 1501-11, 1501-17, 1501-19, 1501-25
397-1996	1-17-97	Amd	301-5, 301-11
		Rpld	301-13
404-1996	12-18-96	Amd	1101-87, 1101-89, 1101-99, 1101-123, 1107-03, 1107-17
1-1997	1- 8-97	Added	203-44
20-1997	2-28-97	Added	407-14
	9- 4-97	Amd	407-3
21-1997	1-29-97	Added	751-7, 751-9

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36-1997	3- 6-97	Added	517-1, 517-3, 517-5, 517-7, 517-9, 517-11, 517-13, 517-15, 517-17, 517-19, 517-21, 517-23, 517-25, 517-27, 517-29, 517-31, 517-33, 517-35, 517-37, 517-39, 517-99
		Rpld	503-4, 503-4, 503-13, 503-14, 503-15, 503-16, 503-17, 503-18, 503-18A, 503-19, 503-20, 503-21, 503-23, 503-25, 503-26, 503-27, 503-31, 503-58
38-1997	3-14-97	Amd	708-27
54-1997	3- 6-97	Added	847-1-H4, Ch. 848
68-1997	3- 7-97	Added	Adm. Art. XVIII, § 13
69-1997	4-11-97	Added	911-29
95-1997	5- 9-97	Amd	701-24
96-1997	5- 9-97	Added	331-12
103-1997	4- 9-97	Amd	311-23
108-1997	4-24-97	Amd	311-53, 311-69, 311-80
116-1997	5-23-97	Amd	203-45, 203-47
129-1997	4-30-97	Amd	714-33, 911-17
130-1997	5-30-97	Amd	Z.C. 1403-100-W, Z.C. 1403-100-W1, Z.C. 1403-100-W4, Z.C. 1403-100-W5, Z.C. 1405-205, Z.C. 1431-305, Z.C. 1441-305, Z.C. 1443-205, Z.C. 1443-305, Z.C. 1445-205, Z.C. 1445-209, Z.C. 1445-211, Z.C. 1445-305, Z.C. 1445-309, Z.C. 1445-501, Z.C. 1447-207, Z.C. 1447-208, Z.C. 1449-305, Z.C. 1451-305, Z.C. 1453-205, Z.C. 1453-305, Z.C. 1477-417
151-1997	6-20-97	Added	112-1—112-17
152-1997	6-20-97	Amd	720-13, 720-15, 720-23, 720-81
163-1997	5-29-97	Added	201-1—201-9
206-1997	7-18-97	Added	701-1-D, 701-3, 701-99-A-1
		Amd	701-1-O
207-1997	6-25-97	Added	Z.C. 1403-100-W6, Z.C. 1477-420
		Amd	Z.C. 1427-205, Z.C. 1427-305, Z.C. 1429-205, Z.C. 1429-305, Z.C. 1431-205, Z.C. 1431-305, Z.C. 1433-205, Z.C. 1433-305, Z.C. 1437-205, Z.C. 1437-305, Z.C. 1439-205, Z.C. 1441-205, Z.C. 1441-305, Z.C. 1445-205, Z.C. 1445-305, Z.C. 1447-205, Z.C. 1447-305, Z.C. 1449-205, Z.C. 1449-305, Z.C. 1451-205, Z.C. 1451-305, Z.C. 1453-205, Z.C. 1453-305, Z.C. 1477-417
221-1997	8- 4-97	Added	Adm. Art. II, § 16
		Amd	Adm. Art. II, § 13
222-1997	7- 2-97	Added	757-1—757-17
223-1997	8- 4-97	Amd	865-29, 881-3, 881-5, 883-3, 883-5
225-1997	7- 2-97	Added	Z.C. 1477-407
		Amd	Z.C. 1403-100-H4, Z.C. 1413-203, Z.C. 1415-203, Z.C. 1417-203, Z.C. 1419-203, Z.C. 1419-303, Z.C. 1423-203, Z.C. 1423-303, Z.C. 1429-203, Z.C. 1429-303, Z.C. 1431-203, Z.C. 1431-303, Z.C. 1435-203, Z.C. 1435-303, Z.C. 1437-203, Z.C. 1437-303
266-1997	9- 5-97	Amd	723-33
285-1997	10- 3-97	Amd	910-1
286-1997	9- 4-97	Amd	506-66
290-1997	9- 4-97	Amd	Adm. Art. IV, § 2; Adm. Art. VII, § 2

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291-1997	10- 3-97	Added	1251-1—1251-99
		Amd	1501-09
292-1997	10- 4-97	Added	1235-6
		Amd	1235-1, 1235-3, 1235-5
311-1997	9- 4-97	Amd	1101-77, 1101-79, 1101-93, 1101-129
351-1997	10- 8-97	Added	721-1-S1, 721-999(H)
		Amd	721-149, 721-153, 721-155, 721-161, 721-163, 721-167, 1501-7
		Rnbd	721-1-S1 as 721-1-S2
359-1997	11-14-97	Rpld	Ch. 208
366-1997	11-21-97	Amd	899-5, 899-7
393-1997	11-13-97	Added	839-1-D
		Amd	839-3, 839-13
		Rpld	839-1-C
394-1997	12-15-97	Added	514-5, 514-7, 514-9, 514-17
		Amd	514-1
		Rnbd	514-2 as 514-3, 514-4 as 514-11, 514-4 as 514-13, 514-6 as 514-15, 514-8 as 514-99
		Rpld	514-3, 514-7
397-1997	11-13-97	Amd	203-52
404-1997	12-17-97	Amd	203-63
422-1997	12-17-97	Amd	401-76, 401-77, 401-78, 401-89
432-1997	1-16-97	Amd	721-61
435-1997	1-16-98	Amd	301-3
445-1997	12-17-97	Added	203-1-P2, 203-7-A
1-1998	2- 6-98	Amd	507-1-74
9-1998	1-12-98	Amd	899-1-A1, 899-1-S1, 899-3
30-1998	1-28-98	Amd	Z.C. 1447-207, Z.C. 1449-207, Z.C. 1477-421
31-1998	1-28-98	Added	899-1-A4, 899-1-A6, 899-1-A7, 899-22, 899-24
		Amd	899-1-A, 899-1-A2, 899-1-A3, 899-1-E, 899-1-S1, 899-3, 899-5, 899-7, 899-15, 899-19, 899-29, 899-33
73-1998	3-27-98	Added	Z.C. 1403-100-R10
		Amd	Z.C. 1403-100-C3, Z.C. 1413-211, Z.C. 1415-211, Z.C. 1417-211, Z.C. 1419-211, Z.C. 1421-311, Z.C. 1423-211, Z.C. 1429-211, Z.C. 1431-211, Z.C. 1433-211, Z.C. 1473-301, Z.C. 1473-302, Z.C. 1473-303, Z.C. 1473-304, Z.C. 1473-306, Z.C. 1473-307
77-1998	4- 3-98	Amd	203-1-A3, 203-33
83-1998	4-10-98	Added	1235-2
		Amd	1235-1, 1235-3, 1235-5
84-1998	4-10-98	Amd	721-155
96-1998	4-17-98	Amd	845-71
112-1998	5- 1-98	Amd	507-1-B10
131-1998	4-15-98	Amd	910-1
134-1998	5-15-98	Amd	501-1-E7
135-1998	5-15-98	Amd	Z.C. 1415-203, Z.C. 1417-203, Z.C. 1419-203, Z.C. 1423-203, Z.C. 1429-203, Z.C. 1431-203, Z.C. 1443-303, Z.C. 1447-303, Z.C. 1449-303
161-1998	4-29-98	Amd	911-29
163-1998	5-29-98	Amd	507-1-C3
181-1998	6- 5-98	Amd	321-141
195-1998	6-19-98	Amd	311-3-N, 311-15

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210-1998	6-29-98	Amd	Z.C. 1447-209, Z.C.1447-309, Z.C. 1449-500,
		Rpld	Z.C. 1439-305, Z.C. 1441-305
286-1998	8- 5-98	Amd	910-1
304-1998	9- 2-98	Amd	755-5
305-1998	9- 2-98	Amd	753-5
331-1998	9- 2-98	Added	Adm. Art. IX, § 26
		Amd	Adm. Art. II, §§ 4, 9; Adm. Art. IX, §§ 2, 3-A
340-1998	9-16-98	Amd	101-41
357-1998	10-16-98	Added	1117-73
		Amd	1101-29, 1101-37, 1101-57, 1101-87, 1101-97, 1103-19, 1105-11, 1105-15, 1107-03, 1117-15, 1117-19, 1117-43, 1117-59, 1119-07
359-1998	10-23-98	Amd	506-16
374-1998	11-20-98	Amd	507-1-V1
376-1998	10-21-98	Added	306-50
		Rpld	306-44, 306-45, 306-46
388-1998	11-20-98	Amd	203-47
389-1998	11-20-98	Added	203-56
		Amd	203-47, 203-49
397-1998	10-28-98	Amd	506-66
416-1998	11-18-98	Amd	311-21
417-1998	11-18-98	Amd	311-67
418-1998	11-18-98	Amd	311-63
419-1998	11-18-98	Amd	311-59
431-1998	12-25-98	Amd	1101-17
434-1996	12- 2-98	Added	306-38, 306-42
		Amd	306-37, 308-75
450-1998	1-15-99	Rpld	Chs. 115, 117
11-1999	2-22-99	Added	Adm. Art. II, § 20
22-1999	1- 1-99	Amd	720-59
25-1999	2-22-99	Amd	1101-19, 1101-21, 1101-85
39-1999	3-24-99	Amd	101-37
77-1999	5- 4-99	Added	Char., Art. X, § 4
	6- 1-01	Added	Char., Art. II, §§ 5a, 6a
	9- 1-01	Added	Art. IX, §§ 2a, 2b, 5b
	6- 1-01	Amd	Char., Art. II, §§ 4a, 5, 6, Art. III, §§ 1, 2, 3; Art. IV, §§ 1, 2, 3
	9- 1-01	Amd	Art. IX, §§ 1, 1a, 2, 3, 4, 5, 5a, 6, 7, 8
101-1999	3-24-99	Added	506-88, 512-28
128-1999	5-14-99	Amd	Z.C. 1443-201
130-1999	5-14-99	Added	203-1-A4, 203-32, 203-34
		Amd	203-1-A3, 203-33
139-1999	5-21-99	Amd	723-76
140-199	5-21-99	Amd	910-12
148-1999	5-28-99	Amd	911-29
150-1999	5-28-99	Added	Ch. 414
		Amd	1501-7
173-1999	6- 4-99	Amd	402-23, 402-24, 402-25
181-1999	6-11-99	Added	507-1-K3
182-1999	6-11-99	Amd	507-1-B
189-1999	6-11-99	Amd	714-33
242-1999	7- 9-99	Amd	731-5
249-1999	7-16-99	Amd	7-16-99
254-1999	6-16-99	Amd	203-47
266-1999	7-16-99	Amd	312-3, 312-25
268-1999	6-23-99	Amd	740-1, 740-3, 740-7, 740-11

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		Rpld	740-5, 740-7
		Rnbd	740-7—740-17
275-1999	6-30-99	Amd	899-7
284-1999	6-30-99	Amd	757-5
302-1999	6-30-99	Amd	203-65
331-1999	8- 4-99	Added	Ch. 325
335-1999	8- 4-99	Added	Ch. 323
357-1999	9- 9-99	Amd	301-3
358-1999	9-15-99	Amd	910-1
369-1999	10-22-99	Added	Adm. Art. V, §§ 1, 2
		Amd	Adm. Art. VI, §§ 1, 2
373-1999	10-22-99	Added	311-3-R2, 311-74-B
		Amd	311-3-P
395-1999	11- 5-99	Added	873-33
406-1999	11-12-99	Added	721-1-A, 721-1-D2, 721-132
		Amd	721-1-S, 721-61, 721-65, 721-83, 721-87, 721-93, 721-129, 721-133, 721-147, 721-148, 721-149, 721-159, 721-165, 721-167, 721-169, 1501-3, 1501-5, 1501-7
425-1999	10-27-99	Amd	899-19
431-1999	12-10-99	Amd	839-1-D, 845-5
460-1999	12-24-99	Added	701-1-C1, 701-1-D1, 701-1-H, 701-1-H1, 701-1-I, 701-1-L, 701-1-P, 701-1-S, 701-1-V, 701-2, 701-4, 701-5, 701-6, 701-7, 701-8, 701-9, 701-10, 701-12, 701-14, 701-99A
		Amd	701-1-O, 701-99, 1501-3, 1501-5
		Rpld	701-1-H, 701-24, 701-25, 701-29, 701-45, 701-99-A, 701-99-B
472-1999	12- 8-99	Amd	306-37
473-1999	12-15-99	Amd	910-1
482-1999	12-15-99	Amd	312-3
6-2000	2- 4-00	Amd	1101-75
10-2000	2- 4-00	Amd	508-12
15-2000	2-21-00	Amd	847-1-P3, 847-5, 847-7, 847-9, 847-27, 847-33, 847-37
		Rpld	847-99
47-2000	3-10-00	Amd	Z.C. 1443-201, Z.C. 1443-203, Z.C. 1443-204, Z.C. 1443-205, Z.C. 1443-206, Z.C. 1443-207, Z.C. 1443-211, Z.C. 1443-308, Z.C. 1443-405, Z.C. 1443-406, Z.C. 1443-409
57-2000	2-24-00	Amd	910-1
124-2000	5-19-00	Amd	407-1-P1, 407-1-T2, 407-3, 407-5, 407-15, 407-29, 407-35, 407-37, 407-55, 407-69, 407-71, 407-83, 407-107
128-2000	5-19-00	Amd	1101-27, 1101-29, 1101-85, 1101-117
159-2000	5-10-00	Amd	203-65, 203-66
219-2000	6-14-00	Amd	1501-3, 1501-5, 1501-7, 1501-9, 1501-11, 1501-17, 1501-19, 1501-25, 1501-99
229-2000	7-21-00	Added	714-49
264-2000	6-28-00	Amd	203-0, 203-1-A3, 203-1-A4, 203-1-I, 203-27A, 203-33, 203-85, 203-91, 203-93, 203-103, 203-111, 203-117, 203-119, 203-123, 203-125, 203-127, 203-129, 203-131, 203-133
		Rpld	203-32, 203-34, 203-95
284-2000	8- 2-00	Amd	203-43, 203-44
285-2000	8- 2-00	Amd	506-3

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286-2000	8- 2-00	Added	845-1-C, 845-75
287-2000	8- 2-00	Amd	713-19
288-2000	8- 2-00	Added	839-1-C
		Amd	839-11
344-2000	9-27-00	Rpld	506-88, 512-28
367-2000	10- 4-00	Amd	1501-3, 1501-5, 1501-7, 1501-9, 1501-11, 1501-17, 1501-25, 1501-99
374-2000	11-10-00	Amd	708-1-F, 708-9, 708-99-A
416-2000	12- 6-00	Amd	609-99
428-2000	12-13-00	Amd	401-76, 401-77, 401-89
437-2000	1-19-01	Amd	513-7
001-2001	2- 9-01	Added	311-74-A
072-2001	3-14-01	Amd	839-3, 839-5, 839-11
		Rpld	839-1-C
073-2001	3-14-01	Added	845-2
		Rpld	845-1-C, 845-75
074-2001	3-14-01	Added	117-1, 117-3, 117-5, 117-99
075-2001	3-14-01	Added	840-1, 840-1-E, 840-1-W, 840-3, 840-5, 840-7, 840-9, 840-11, 840-13, 840-99
		Rpld	713-19
083-2001	4-20-01	Amd	1101-17
088-2001	3-28-01	Added	Adm. Art IV, 7
097-2001	5- 4-01	Amd	1109-01, 1109-05, 1109-11, 1109-17
112-2001	5-25-01	Amd	407-53
121-2001	5-25-01	Amd	1101-85
144-2001	5- 9-01	Added	203-121
166-2001	5-31-01	Amd	869-1—869-9
179-2001	6-13-01	Added	910-19
183-2001	6-13-01	Amd	869-13
189-2001	6-20-01	Amd	839-3
201-2001	6-27-01	Amd	Adm. Art. V, § 2, Adm. Art. VII, § 2
226-2001	6-27-01	Amd	407-59
238-2001	11- 6-01	Amd	Chart. Art. V, §§ 3, 5, 6
258-2001	9- 6-01	Added	Chart. Art. XIII
282-2001	9- 6-01	Rpld	1115-01, 1115-03, 1115-05, 1115-07, 1115-09, 1115-11, 1115-13
		Added	1115-01, 1115-03, 1115-05, 1115-07, 1115-09, 1115-11, 1115-13, 1115-15, 1115-17, 1115-19, 1115-21, 1115-23
285-2001	9- 6-01	Amd	507-1-A4
298-2001	9-19-01	Added	311-3-G1, 311-3-I1, 311-3-I2, 311-3-I3, 311-3-O2, 311-3-R2, 311-3-S, 311-36
		Amd	311-3-G2, 311-3-O1, 311-3-R1, 311-5, 311-15, 311-21, 311-23, 311-27, 311-31, 311-45, 311-67, 311-69, 311-73, 311-74A
313-2001	11- 2-01	Rpld	713-21, 713-23, 713-25, 713-27, 713-29, 713-31
325-2001	11- 9-01	Amd	1101-57
343-2001	11-23-01	Amd	1101-03, 1113-03
352-2001	10-31-01	Added	203-1-P3, 203-1-S1, 203-1-S2, 203-8
		Amd	203-1-A, 203-1-A3, 203-1-C2, 203-1-M3, 203-7, 203-7-A, 203-29, 203-33, 203-35, 203-43, 203-44, 203-47, 203-49, 203-57, 203-59, 203-111
356-2001	12-14-01	Amd	899-19
370-2001	12-27-01	Added	1121-1—1121-17
413-2001	1-18-02	Amd	Z.C. 1443-201, Z.C. 1443-207
415-2001	12-19-01	Amd	1105-01—1105-39

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		Rpld	1105-41—1105-55
416-2001	1-18-02	Amd	1101-85, 1101-87, 1101-89, 1101-91, 1101-93, 1101-97, 1101-99, 1101-101, 1101-103, 1101-105, 1101-107, 1101-113, 1101-123
417-2001	1-18-02	Amd	401-75, 401-76, 401-77, 401-78, 401-79, 401-81
418-2001	1-18-02	Amd	Adm. Art. II, § 6, Adm. Art. IV, §§ 1, 2, 2-A, 2-B, 3, 4, 5, 6, 7, 8, 9, 10
419-2001	2- 1-02	Added	Adm. Art. XXIV, §§ 1, 2
		Rpld	Adm. Art. XXIII, §§ 1, 2
8-2002	2-14-03	Rpld	Ch. 848
		Added	848-1, 848-1-A—848-1-A2, 848-1-B, 848-1-C, 848-1-C1, 848-1-D-848-1-D3, 848-1-H—848-1-H3, 848-1-L, 848-1-L1, 848-1-M, 848-1-M1, 848-1-N—848-1-N2, 848-1-O—848-1-O3, 848-1-P, 848-1-P1, 848-1-R—848-1-R4, 848-1-S—848-1-S5, 848-1-U, 848-3, 848-5, 848-7, 848-9, 848-11, 848-13, 848-15, 848-17, 848-19, 848-21, 848-23, 848-25, 848-27, 848-29, 848-31, 848-33, 848-35, 848-37, 848-39, 848-41, 848-43, 848-99
9-2002	2-14-03	Rpld	Ch. 847
		Added	847-1, 847-1-A—8-47-1-A6, 847-1-B—847-1-B2, 847-1-C—847-1-C3, 847-1-D, 847-1-D1, 847-1-F, 847-1-F1, 847-1-H—847-1-H5, 847-1-L, 847-1-L1, 847-1-M—847-1-M2, 847-1-N—847-1-N3, 847-1-O—847-1-O5, 847-1-P—847-1-P7, 847-1-R—847-1-R4, 847-1-S—847-1-S4, 847-1-T, 847-1-V, 847-3, 847-5, 847-7, 847-9, 847-11, 847-13, 847-15, 847-17, 847-19, 847-21, 847-23, 847-25, 847-27, 847-29, 847-31, 847-33, 847-35, 847-37, 847-39, 847-41, 847-43, 847-45, 847-47, 847-49, 847-51, 847-53, 847-55, 847-57, 847-59, 847-61, 847-63, 847-99
34-2002	2- 6-02	Amd	Adm. Art. XXIV, §§ 1, 2
41-2002	2-13-02	Amd	312-3
302-1998	11- 3-98	Amd	Chart. Art. VIII, §§ 6a, 6b, 6c
58-2002	3-28-02	Added	723-81—723-97
59-2002	3-28-02	Amd	1101-3, 1101-5, 1101-7, 1101-9, 1101-15, 1101-17, 1101-19, 1101-23, 1101-25, 1101-27, 1101-29, 1101-31, 1101-33, 1101-35, 1101-37, 1101-39, 1101-43, 1101-57, 1101-81, 1101-87, 1101-117, 1101-127, 1105-01, 1105-03, 1105-07, 1107-03, 1107-07, 1107-11, 1107-13, 1107-17, 1109-05, 1111-01, 1117-11, 1117-15, 1117-35, 1117-39, 1117-59, 1117-61, 1117-73, 1119-03, 1119-06, 1119-07, 1121-01, 1121-05
		Rpld	1101-95
		Rpld	Ch. 1103
68-2002	4- 5-02	Amd	910-12, 910-13
78-2002	3-20-02		203-1-A3
			203-33
149-2002	5-15-02	Added	Adm. Art. XXVIII, §§ 1—6
122-2002	5-16-02	Amd	713-1—713-3, 713-5—713-9
		Added	713-4, 713-99
123-2002	5-16-02	Amd	401-2-U

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211-2002	6-19-02	Amd	731-5, 731-7
		Added	731-6, 731-8
212-2002	6-19-02	Amd	714-41, 714-43
		Added	714-42, 714-44
		Rpld	714-49
213-2002	6-19-02	Amd	1501-5, 1501-7
247-2002	7-25-02	Amd	895-13, 895-19, 895-21
	Rpld		895-18
248-2002	6-26-02	Amd	751-3, 751-5, 751-7, 751-9
		Rpld	751-11
249-2002	6-26-02	Added	Adm. Art. IV, § 4-A
250-2002	6-26-02	Amd	899-1-A, 899-1-A1, 899-1-A2, 899-1-A4, 899-1-A5, 899-1-A7, 899-1-C, 899-1-E, 899-1-O, 899-1-S, 899-1-S1, 899-1-S2, 899-3, 899-5, 899-7, 899-11, 899-13, 899-15, 899-17, 899-22, 899-24, 899-27, 899-33, 899-35
		Added	899-1-A8, 899-26, 899-34
257-2002	6-26-02	Amd	731-5
283-2002	10- 4-02	Rpld	910-17
284-2002	12- 5-02	Amd	Char. art. XIII, § 3
285-2002	9- 5-02	Amd	Adm. Art. II, section 11
297-2002	9-18-02	Added	319-1—319-21
298-2002	9-18-02	Amd	714-33
311-2002	9-30-02		312-3
318-2002(Emer.)	10- 2-02		203-63
328-2002	11- 8-02	Amd	308-15
329-2002	11- 8-02	Added	308-85
362-2002	2- 1-03	Added	317—317-27
378-2002	1-10-03	Rpld	507-1-G6
379-2002	1-10-03	Amd	507-1-V
387-2002	1-17-03	Amd	401-76—401-78, 401-81, 401-90
396-2002	1-17-03	Rpld	911-29
397-2002	1-17-03	Rpld	Adm. Art. II, § 17
398-2002	1-17-03	Rpld	Adm. Art. XXV
399-2002	1-17-03	Rpld	Ch. 1001
434-2002	1-17-03	Amd	311-3-E1, 311-15
435-2002	1-17-03	Amd	323-1-S
436-2002	1-17-03	Amd	323-9
437-2002	1-17-03	Amd	321-5, 321-11, 321-13, 321-15, 321-17
438-2002	1-17-03	Added	323-31
		Rpld	323-27, 323-29
439-2002	1-17-03	Added	321-159
440-2002	1-17-03	Amd	321-45, 321-69, 321-131, 321-137
6-2003	2- 7-03	Amd	1117-39.5
2003-01(Res.)	2-12-03	Rpld	604-3
53-2003	4- 4-03		511-31
54-2003	4- 4-03	Added	501-1-J
		Added	729-93
68-2003	4-25-03		311-69
74-2003	4-25-03		317-1-H
			317-7
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84-2003	4- 2-03		Adm. Code, Art. XXIV, §§ 1, 2
85-2003	4- 2-03		117-3, 117-5, 117-99
100-2003	4- 9-03		331-15
103-2003	4- 9-03	Amd	Adm. Code art. I, §§ 1, 6
			Adm. Code art. II, §§ 5, 7, 11
		Added	Adm. Code art. III, § 10
		Rpld	Adm. Code art. II, §§ 16, 17, 20
107-2003	5-15-03		323-1-S
			323-9
128-2003	4-30-03	Rpld	501-1-J
		Rpld	729-93
129-2003	4-20-03	Added	758-1—758-7
147-2003	6-20-03	Added	807-1-A4
			807-1-F
			807-11
			807-15
152-2003	6-20-03	Added	910-21
158-2003	6-20-03	Added	910-12(f)—(i)
		Rnbd as	910-12(f), (g) 910-12(j), (k)
182-2003	7-17-03		311-69
186-2003	6-18-03		311-69
216-2003	6-25-03		Adm. Code, art. XXIV, § 2
			Adm. Code, art. XIV, § 5
		Added	Adm. Code, art. II, § 21
235-2003	6-25-03		714-99
236-2003	7-24-03	Added	510-1-C3(c)
		Added	501-1-C6
			508-1-A
237-2003	6-25-03		807-1-A4
			807-1-F
			807-11
			807-15
32-2003	3- 4-03		908-3
50-2003	3-25-03	Added	507-1-N3
		Added	507-1-S13
63-2003	3-19-03		840-1-E
255-2003	9- 5-03	Added	101-43
256-2003	9- 5-03		807-1-A4(2)b., c.
272-2003	11- 1-03		701-8
273-2003	11- 1-03		701-6
274-2003	8- 6-03	Added	701-99-J
329-2003	10- 1-03	Added	708-41
345-2003	10-15-03		887-35
346-2003	5- 1-04		505-13
366-2003	12- 4-03		507-1-S8
370-2003	11-13-03		701-6
371-2003	11-13-03		701-7
397-2003	12-25-03		321-141(b)
398-2003	11-26-03		321-37
440-2003	12-17-03		401-76
			401-77
			401-78
			401-81
452-2003	12-17-03		507-1-J2
15-2004	2-13-04	Rpld	Z.C. Title XIV

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28-2004	1- 1-04	Added	311-3-T4

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29-2004	1- 1-2004		Added	311-3-Q
				311-31
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82-2004	4- 9-2004		Rpld	845-11
99-2004	4-23-2004			Adm. Code, art. II, § 15
102-2004	3-31-2004		Added	502-3
				515-1-P1
143-2004	5-27-2004			108-13
153-2004	4-28-2004			601-99
154-2004	4-28-2004			708-41
158-2004	6- 4-2004			1501-12
				1601-99
158-2004	6- 4-2004			1001-1—1001-33
164-2004	5- 5-2004			1109-01
				1109-02
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				1109-05.1
				1109-11.2
				1109-13.5
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177-2004	6-18-2004			321-141
178-2004	5-19-2004			910-12
205-2004	7- 8-2004		Rpld	105-1—105-5
224-2004	6-23-2004			902-5
261-2004	9- 3-2004		Added	501-1-A3,
				501-1-P8
				502-19
			Added	502-19.1
266-2004	8- 4-2004			883-3(a), (b)
				883-3(b)(7), (11)
				883-3(c)
267-2004	8- 4-2004		Rpld	865-29
268-2004(Emer.)	8- 4-2004			Char. art. XII
271-2004(Emer.)	8-30-2004		Rpld	Char. art. XII
314-2004	9-22-2004		Added	306-64
323-2004(Emer.)	10- 6-2004		Rpld	741-1—741-23
326-2004	11- 5-2004			871-13
327-2004	11- 5-2004		Added	872-1—872-13
343-2004(Emer.)	10-27-2004			729-5
344-2004(Emer.)	10-27-2004			714-5
347-2004	12- 8-2004	1	Added	311-8
359-2004	12-16-2004	1		701-14
		2	Added	701-14A, 701-14B
385-2004	12- 8-2004	1		ch. 311
388-2004	1- 7-2005	1		203-65(f), (g)
			Added	203-65(h)
				203-65(i), (j)
399-2004	12-15-2004	1		507-1-M1
400-2004	12-15-2004	1		507-1-W1
403-2004	12-15-2004	1		515-11
404-2004	3- 1-2005	1		1101-85
				1101-97
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406-2004	1-14-2005	1		401-76
		2		401-77
		3		401-78
		4		401-81
14-2005(Emer.)	1-20-2005	1		508-4
36-2005(Emer.)	1-26-2005	1		111-1
53-2005(Emer.)	2-17-2005	1		515-11
		2		515-10
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				508-36
100-2005(Emer.)	3-16-2005	1		Char. Art. II, § 4
125-2005(Emer.)	4- 6-2005	1	Added	117-6
129-2005	5-12-2005	1	Added	611-1—611-99
179-2005(Emer.)	6-10-2005	1		515-11
183-2005	6-17-2005	1		1101-103
196-2005(Emer.)	5-25-2005	1		1201-55
		2		1201-65
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215-2005	7-14-2005	1		ch. 713(tit.)
		2		713-1
				713-3—713-5
235-2005	7-21-2005	1		1401-01-M3
236-2005	7-21-2005	1		1409-07
237-2005	7-21-2005	1		1401-01-B9
238-2005	7-21-2005	1		1401-01-O
239-2005	7-21-2005	1		1403-07
240-2005	7-21-2005	1		1401-01-C17
241-2005	7-21-2005	1		1405-09
242-2005	7-21-2005	1		1409-27(tit.)
243-2005	7-21-2005	1	Added	1401-01-D9
		2	Rnbd	1401-01-D9
			as	1401-01-D10
244-2005	7-21-2005	1		1409-29(a)
245-2005	7-21-2005	1		1401-01-F4
246-2005	7-21-2005	1		1421-01(a), (f)
247-2005	7-21-2005	1		1401-01-H1
248-2005	7-21-2005	1		1421-33(b)
249-2005	7-21-2005	1		1425-33(b)
250-2005	7-21-2005	1		1425-37(b)
			Added	1425-37(d)
251-2005	7-21-2005	1		1427-45
252-2005	7-21-2005	1		1427-39
253-2005	7-21-2005	1		1431-17
		2		1431-19(a)
254-2005	7-21-2005	1		1435-35
255-2005	7-21-2005	1		1441-11(a)(2)
256-2005	7-21-2005	1		1443-05
257-2005	7-21-2005	1		1445-07
258-2005	7-21-2005	1		1445-09
		2		1445-11(d)
259-2005	7-21-2005	1		1447-05(b)
260-2005	7-21-2005	1		1405-05
		2		1405-07
284-2005(Emer.)	7-28-2005	1		301-3
316-2005(Emer.)	8- 3-2005	1		Char. Art. II, § 4
317-2005(Emer.)	8- 3-2005	1		Char. Art. II, § 4
352-2005	10-20-2005	1		401-33(b)

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378-2005	11-11-2005	1		908-9(B)
			Added	908-9(C)
437-2005	12-15-2005	1	Rpld	Ch. 817, 817-1—817-99
451-2005	12-22-2005	1		Ch. 759(tit.)
				759-1, 759-3
			Added	759-4
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		3		1501-9(b)
5-2006	2-10-2006	1		723-20(b)
40-2006	3-17-2006	1		829-3
		2		829-99
59-2006	4-14-2006	1		1101-77, 1101-79 1101-129
		2		1101-77
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65-2006	4-14-2006	1		914-1-D1
		2		914-1-R
		3	Added	914-1-S
		4	Added	914-1-T
		5		914-3
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66-2006	3-22-2006	1		311-5
79-2006	3-29-2006	1	Added	910-23
93-2006	5-18-2006	1		1425-17(a)
94-2006	5-18-2006	1	Added	1401-01-O6
		2	Rnbd	1401-01-O6
			as	1401-01-O7
95-2006	5-18-2006	1		1419-23(a)
96-2006	5-18-2006	1		1425-19-A
97-2006	5-18-2006	1		1401-01-P10
98-2006	5-18-2006	1		1409-07
99-2006	5-18-2006	1		1409-09
100-2006	5-18-2006	1		1447-09
101-2006	5-18-2006	1		1411-13
102-2006	5-18-2006	1	Added	1401-01-O7
		2	Rnbd	1401-01-O7
			as	1401-01-O8
139-2006	5-10-2006	1, 2		759-4
		3, 4		759-5
140-2006	5-10-2006	1		910-12 1.
158-2006	6- 1-2006	1	Added	Title XVI 1601-1—1601-97
169-2006	7- 7-2006	1		414-11(b), (c)
			Added	414-11(f)—(j)
			Rnbd	414-11(f)
			as	414-11(k)
170-2006	7-14-2006	1		1427-01
171-2006	7-14-2006	1	Added	1401-01-A15
		2	Added	1401-01-C
		3	Rnbd	1401-01-C— 1401-01-C22
			as	1401-01-C1— 1401-01-C23

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		4	Added	1401-01-M3
			Rnbd	1401-01-M3—1401-01-M7
			as	1401-01-M4—1401-01-M8
174-2006(Emer.)	6-14-2006	1		713-41
		2		713-43
		3		308-45
		4		312-25
		5		Adm. Code, Art. II, § 5
		6		Adm. Code, Art. IV, § 24
		7	Rpld	308-67
		8	Rpld	Adm. Code, Art. VII
273-2006	10-20-2006	1		1031-9
283-2006(Emer.)	9-27-2006	1		509-2
		2		509-4
		3		509-5
		4		509-7
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284-2006	11- 4-2006	1		1419-21
293-2006	11-11-2006	1		207-5,
295-2006(Emer.)	10-11-2006	1	Added	834-01—834-03
296-2006	11-11-2006	1	Added	Ch. 761, 761-1—761-13
303-2006	11-25-2006			ch. 1427
307-2006	11-25-2006	1		723-76
349-2006(Emer.)	12- 6-2006	1	Rpld	Ch. 611
369-2006	1-20-2007	1		Sched. 1445-07
370-2006	1-20-2007	1		1425-23
371-2006	1-20-2007	1	Added	1401-01-G4
		2	Rnbd	1401-01-G4
			as	1401-01-G5
		3	Rnbd	1401-01-G5
			as	1401-01-G6
372-2006	1-20-2007	1		1401-01-E2
373-2006	1-20-2007	1	Added	Ch. 1410
376-2006	1-20-2007	1	Added	1400-27-S2
386-2006	1-20-2007	1		1101-85, 1101-89
388-2006	1-20-2007	1		517-37
		3		721-87
		5		723-79
		7		723-91
		9		723-93
		11		723-95
387-2006	1-20-2007	1		1101-101
390-2006	1-20-2007	1		401-76
				401-77
				401-78
				401-81
391-2006	1-20-2007	1		720-59
0005-2007	3-11-2007	1	Added	Ch. 763, §§ 763-1, 763-3, 763-5,

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0014-2007	2-18-2007	1		321-11
0015-2007	2-18-2007	1	Added	Ch. 209
				209-1—209-7
		2		207-1
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0020-2007(Emer.)	1- 1-2007	1		203-43
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		3		203-121
0022-2007	2-18-2007	1		1425-19-A
0025-2007	2-18-2007	1		1439-07(c), (d)
			Added	1439-07(e)—(g)
0026-2007	2-18-2007	1		1409-23
0027-2007	2-18-2007	1		1409-07
0028-2007(Emer.)	1-18-2007	1		910-12
0029-2007	2-24-2007	1		308-9(a), (b), (d)
0060-2007	2-14-2007	1		102-9
0067-2007	3-22-2007	1		407-53
0068-2007	3-22-2007	1	Rpld	910-11
0069-2007(Emer.)	2-22-2007	1		515-4(b), (c)
0086-2007	2-28-2007	1		763-3
0100-2007	4-14-2007	1, 2		414-7
		3		414-11(f)
		5, 6		414-13
		7	Added	414-25
0129-2007(Emer.)	3-28-2007	1	Rpld	910-23 3., 4.
0130-2007(Emer.)	4-17-2007	1		510-3
0165-2007	6- 2-2007	1		321-47
0219-2007	7- 6-2007	1		507-3(a), (b)
			Added	507-3(d)
0221-2007	7- 6-2007	1		1400-11
		2		1400-15
		3	Added	1410-11
		4		1419-29(b)
		5		1421-17
		6		1423-13
				(Sch. 1423-13-A)
		7		1425-23(a)
		8		1427-37
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0222-2007	7- 6-2007	1		1427-37
0225-2007	7- 6-2007	1		723-20
		3	Added	1501-5(a)(16)
0226-2007	7- 6-2007	1		895-1-O
		2	Added	895-1-R
		3	Rnbd	895-1-R1
		4		895-3(a), (c)
		5		895-5
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		7		895-13
0230-2007	7-20-2007	1		1101-85
		3		1101-127
0250-2007	7-20-2007	1	Added	843-1-M
			Added	843-1-S4
			Rnbd	843-1-S4
			as	843-1-S5
		3	Added	843-13
		4	Added	843-15
		5	Added	843-99-B

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0253-2007(Emer.)	6-19-2007	1		1421-21
262-2007(Emer.)	6-27-2007	1		Admin. Code, Art. XXIV, § 2
		3		Admin. Code, Art. IX, § 24
257-2007	7-27-2007	1		1400-11
		2		1401-01-P7
		3		Sched. 1423-13-A
		4		1425-27
0259-2007	7-27-2007	1	Added	Ch. 1416, §§ 1416-01—1416-07
0292-2007	9- 1-2007	1	Added	321-4
0300-2008	1-30-2008	1		1601-17
0318-2007	10- 6-2007	1	Added	839-1-SV
0344-2007	10-13-2007	1	Added	1401-01-F6
		2	Rnbd	1401-01-F6
			as	1401-01-F7
		3	Rnbd	1401-01-F7
			as	1401-01-F8
		4	Rnbd	1401-01-F8
			as	1401-01-F9
		5	Rnbd	1401-01-F9
			as	1401-01-F10
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		7	Rnbd	1401-01-F11
			as	1401-01-F12
		8	Rnbd	1401-01-F12
			as	1401-01-F13
		9	Rnbd	1401-01-F13
			as	1401-01-F14
		10	Rnbd	1401-01-F14
			as	1401-01-F15
0345-2007	10-13-2007	1		1409-15
0346-2007	10-13-2007	1		1400-27-F
		2		1401-01-E3
		3		1401-01-F6
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		14		1437-09(f)
		15		1447-03, 1447-13
0361-2007	10-26-2007	1		910-12
0364-2007	11-10-2007	1		401-90
0366-2007(Emer.)	10-10-2007	1		Admin. Code, Art. XV, § 1
0381-2007	11-24-2007	1	Added	111-5

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0383-2007	11-24-2007	1		910-10(A), (D)
			Added	910-10(E)
		3	Added	513-1(10)
			Rnbd	513-1(10)
			as	513-1(11)
0406-2007	1- 1-2008	1	Added	ch. 1106, 1106-1—11-6-37, 1106-99
0420-2007(Emer.)	11-28-2007	1		1445-01
0422-2007(Emer.)	11-28-2007	1		723-20
0434-2007	1- 4-2008	1		717-1
		3		717-2
		5		717-3
		7		717-11
		9	Rpld	717-15
		10		717-16
0450-2007(Emer.)	12-19-2007	1	Added	ch. 415, 415-1—415-11, 415-99
0461-2007(Emer.)	12-19-2007	1		1201-65(a)
0470-2007(Emer.)	12-19-2007	1	Added	Admin. Code, Art. XXV, §§ 1—11
0471-2007(Emer.)	12-19-2007			Admin. Code, Art. XXIV, §§ 1—3
0472-2007(Emer.)	12-19-2007	1	Rpld	Admin. Code, Art. XXI
0021-2008	2-15-2008	1, 2		606-1-D
		3, 4		606-1-I
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		7	Rpld	606-5
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0051-2008	3-13-2008	1		1401-01-T1(e)
0052-2008	3-13-2008	1	Added	1401-01-D9
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106-2008	4-26-2008	1		701-42
117-2008(Emer.)	4- 9-2008	1	Added	308-87
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136-2008	5-23-2008	1	Added	1401-01-M9
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305-2009	12-12-2009	1		1410-05(b)
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239-2010(Emer.)	6-23-2010	3		308-83
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459-2010	1-23-2011	1		1445-01
012-2011	2-26-2011	1		1425-15
042-2011	3-16-2011	1		1106-7
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043-2011	3-16-2011	1		910-12
044-2011	2-16-2011	2	Rpld	727—727-23
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045-2011	2-16-2011	1		1101-57
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046-2011	3-16-2011	1	Added	729-1-C3
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253-2011(Emer.)	8- 3-2011	3		407-3
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283-2011(Emer.)	11- 8-2011	1	Added	Char. Art. XVI, §§ 1—3
291-2011(Emer.)	9-14-2011	1		Admin. Code, Art. XIV, § 2
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347-2011(Emer.)	11-16-2011	2	Rpld	869-13
349-2011	12-23-2011	3	Rpld	725—725-27
		1	Added	725-1—725-23
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388-2011(Emer.)	12-14-2011	1		Admin. Code, Art. II, § 21
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394-2011	1-14-2012	1		514-99
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395-2011	1-14-2012	1		897-29
002-2012	2- 5-2012	1	Added	507-1-S14
028-2012	3-15-2012	1		1501-9
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057-2012	3-29-2012	1		1105-03
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058-2012	3-29-2012	1		1113-03.1
059-2012	3-29-2012	1		1501-11
067-2012	4- 7-2012	1		1501-25
080-2012(Emer.)	3-21-2012	1		1101-57.6
107-2012(Emer.)	4- 4-2012	1	Added	317-1-P1
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110-2012(Emer.)	4- 4-2012	1	Added	708-26A
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131-2012	5-25-2012	1	Added	318-1—318-21
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157-2012(Emer.)	5- 9-2012	1		1101-79.6
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195-2012	7- 6-2012	1	Added	1123-1—1123-19
196-2012(Emer.)	6- 6-2012	1		906-9
201-2012(Emer.)	6- 6-2012	1	Added	407-40
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282-2012	7-26-2012	1	Added	320-1—320-13
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304-2012(Emer.)	8- 1-2012			Char. Art. II, § 4
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314-2012	9- 1-2012	1		729-1-D
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349-2012(Emer.)	9-26-2012	1	Added	722-1—722-6, 722-99
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351-2012(Emer.)	9-26-2012	1	Added	508-37
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363-2012	11-11-2012	1	Added	507-1-T
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435-2012	12-15-2012	1	Added	843-1-S7
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449-2012	12-28-2012	1	Added	765-1—765-99
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463-2012	10- 7-2013	1	Rpld	729-1-C
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489-2012	1-14-2013	1	Added	730-1—730-99
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008-2013(Emer.)	1-16-2013	1		1425-15
020-2013	3- 1-2013	1		895-5
021-2013	3- 1-2013	1		Admin. Code, Art. II, § 14
022-2013	3- 1-2013	1		Admin. Code, Art. XXV, § 11
041-2013(Emer.)	2-20-2013	4		729-1-D1
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077-2013(Emer.)	4-10-2013	1		331-9
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083-2013(Emer.)	4-10-2013	1	Added	203-1-R4
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142-2013(Emer.)	5-30-2013	14		801-5
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146-2013	1- 1-2014	1		401-76
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154-2013(Emer.)	5-30-2013	1	Added	Admin. Code, Art. II, § 22
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155-2013(Emer.)	5-30-2013	1	Added	Admin. Code, Art. II, § 23
157-2013(Emer.)	5-30-2013	1	Rpld	Admin. Code, Art. II, § 21
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193-2013(Emer.)	6-26-2013	1		311-19
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208-2013(Emer.)	6-26-2013	14		801-5
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278-2013	10-11-2013	1	Added	843-98
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296-2013(Emer.)	9-25-2013	1	Added	1219-69, 1219-71
297-2013	10-25-2013	1		843-1-J
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		7	Rpld	843-1-M
			Rpld	843-1-M1
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388-2013	12-20-2013	1		761-1-N
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028-2014(Emer.)	3- 5-2014	1		708-1-B
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			Rpld	708-31
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			Rpld	708-99-B
042-2014(Emer.)	3-19-2014	1	Added	722-1-D
		2	Rnbd	722-1-D
			as	722-1-D2
		4	Rnbd	722-1-D2
			as	722-1-D3
		6	Rnbd	722-1-F3
			as	722-1-F4
		8	Added	722-1-F3
		9		722-1-R3
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		13		722-2

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		21	Added	722-5
		22	Rnbd	722-6
			as	722-9
		24, 25	Added	722-7, 722-8
		26		722-99
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035-2014	4-12-2014	1		1123-1
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			Rpld	1123-3-P-1
				1123-3-P-2
				1123-3-R
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091-2014	6- 7-2014	1		1101-57
		3		1101-115
		5		1101-81
		7		1101-83
		9	Added	1101-116
110-2014	6-29-2014	1	Added	501-1-P10
		2		506-24
		4		508-19
		6		508-21
		8	Added	721-1-P
		9		721-141
114-2014(Emer.)	6- 4-2014	1		1101-85
		2	Rpld	1101-87—1101-93
			Rpld	1101-97—1101-115
			Rpld	1101-119
			Rpld	1101-23—1101-27
		3		1101-17
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				1101-55
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				1107-17
116-2014(Emer.)	7- 1-2014	8		807-1-A2
				807-1-A4
				807-1-F
				807-13
		10	Added	807-1-L
		11	Rpld	807-19
		12		765-5
				765-9
				765-11
		14	Added	765-6
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131-2014(Emer.)	6- 4-2014	1	Added	767-1—767-11
154-2014(Emer.)	6-11-2014	1		401-76
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243-2014	9- 6-2014	1		508-12
252-2014	10- 4-2014	1		513-1
				513-5
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254-2014(Emer.)	11- 4-2014	1		Char. Art. I
				Char. Art. II, §§ 5—7
			Rpld	Char. Art. III, §§ 4, 5
				Char. Art. IV §§ 5, 6
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				Char. Art. V, § 1
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267-2014(Emer.)	9-17-2014	1		759-3
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		3		1501-11
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		5	Added	1501-18
309-2014	11-29-2014	1	Added	407-1-D2
		2	Added	407-1-P3
		3	Added	407-1-S
		4	Added	407-1-T3
		5	Added	407-1-T4
		6	Added	407-1-T5
		7	Added	407-4
		8	Added	407-4-A
		9	Added	407-4-B
		10	Added	407-999-E
		11		407-1-P1
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		44	Rpld	407-6—407-8
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311-2014	7- 1-2015	1	Added	729-1-H
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	3- 1-2015	7		729-5
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		28	Rpld	729-1-O
364-2014(Emer.)	12-17-2014	1		730-1-C2
0006-2015(Emer.)	1-14-2015	1		Admin. Code, Art. I, § 1
		3		308-83
016-2015	2-22-2015	1		908-3
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026-2015(Emer.)	2- 9-2015	4	Added	Admin. Code, Art. XXIX, §§ 1, 2
		5		325-5
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027-2015	3- 4-2015	1		Admin. Code, Art. XV, § 1
044-2015(Emer.)	7- 1-2015	4		Admin. Code, Art. II, § 7

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		6		Admin. Code, Art. XXIV(title)
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		8	Rpld	Admin. Code, Art. XXIV, § 3
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		10		Admin. Code, Art. XXV(title)
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		11		Admin. Code, Art. XXV, § 2
		12	Rpld	Admin. Code, Art. XXV, § 3
		13	Rpld	Admin. Code, Art. XXV, §§ 4—7
			Rpld	Admin. Code, Art. XXV, § 9
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		16	Added	Admin. Code, Art. XXX, §§ 1—7
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		3	Added	701-1-M, 701-1-N
			Added	701-1-P1
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			Added	701-1-60
		4	Rpld	701-1-H1
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		7	Added	1501-16
075-2015(Emer.)	3-25-2015	1	Added	731-1-A
			Added	731-1-A1
			Added	731-1-I

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			Added	731-1-S
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			Added	731-13
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			as	731-1-M
			Rnbd	731-1-A
			as	731-1-T
			Rnbd	731-1-B
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		4	Added	714-1-A
			Added	714-1-A1
			Added	714-1-I
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086-2015	5- 8-2015	1		1235-17
100-2015(Emer.)	4-29-2015	1		887-2
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141-2015(Emer.)	7- 1-2015	1		1400-21
		2	Added	1401-01-D9
		3	Rnbd	1401-01-D9—1401-01-D15
			as	1401-01-D10—1401-01-D16
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		6	Added	1401-01-Z
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167-2015(Emer.)	6-10-2015	1	Added	838-01—838-07
176-2015(Emer.)	6-17-2015	1—3		401-76—401-78
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183-2015(Emer.)	6-17-2015	1		701-1-D-1
				701-2
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185-2015	7-17-2015	1	Rpld	501-1-P9
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236-2015(Emer.)	6-24-2015	1		759-7
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238-2015(Emer.)	7- 1-2015	1		414-7
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244-2015(Emer.)	7- 1-2015	1		1439-11
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255-2015(Emer.)	7- 1-2015	1		509-1
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287-2015(Emer.)	11- 3-2015			Char. Art. IX, § 1a
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288-2015(Emer.)	11- 3-2015			Char. Art. II, §§ 4, 5
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307-2015	1- 1-2016	1		321-1-P
		3	Rpld	323-1—323-99
		4	Added	323-1—323-99
308-2015	1- 1-2016	1	Added	324-1—324-99
342-2015	11-28-2015	1		1201-1
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		3	Added	1201-2
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343-2015	12- 4-2015	1		1123-3-M
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344-2015(Emer.)	11-12-2015	1		708-27
354-2015(Emer.)	11-12-2015	1		Admin. Code, Art. XV, § 1
363-2015(Emer.)	1- 1-2016	1	Rpld	311-1—311-99
		2	Added	311-1—311-999
373-2015	1- 9-2016	2	Added	769-1—769-99
376-2015(Emer.)	1- 1-2016	1	Added	321-1-E6
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397-2015(Emer.)	12-16-2015	2	Added	Admin. Code, Art. II, § 24
007-2016(Emer.)	1- 8-2016	1		769.99
		3	Added	1501-6(8)
022-2016	3- 3-2016	1	Added	326-1, 326-2, 326-2-A1, 326-2-A2, 326-2-C1, 326-2-C2, 326-2-D, 326-2-P1, 326-2-P2, 326-2-S, 326-2-W, 326-5—326-11
		2		321-153
065-2016(Emer.)	3-16-2016	1	Rpld	Admin. Code, Art. II, § 23
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069-2016	4-23-2016	1		723-13
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071-2016	4-23-2016	1	Added	501-1-S8
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091-2016	7- 1-2016	1, 2		317-1-C2, 317-1-C3
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092-2016	8- 1-2016	1		1101-3
		3	Added	1101-40
			Added	1106-16
093-2016	7- 1-2016	1	Added	321-1-D1, 321-1-D2
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112-2016	6- 4-2016	1		1405-05
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156-2016(Emer.)	6-15-2016	1	Added	Admin. Code, Art. VIII, § 3
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271-2016	9- 3-2016	2	Added	324-49
275-2016	9- 3-2016	1		1437-09
282-2016(Emer.)	8- 3-2016	1	Added	723-26
		2	Added	770-0—770-99
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306-2016	10-28-2016	1		301-11
308-2016(Emer.)	9-28-2016	1	Added	719-1—719-99
321-2016(Emer.)	10-12-2016	1—3		401-76—401-78
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325-2016(Emer.)	10-12-2016	1	Added	701-1-T
			Added	701-22
			Added	701-26
			Added	701-99-B
327-2016	11-19-2016	1		723-13(b)
328-2016	11-19-2016	1	Added	765-3(f)
				765-6
				765-9(b)(9)
329-2016(Emer.)	10-19-2016	1	Added	1101-42
			Added	1101-44
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		5	Added	1107-01—1107-23
		6	Added	1127-01—1127-05
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343-2016	12- 2-2016	1	Added	765-3(e)(10)
344-2016(Emer.)	11- 2-2016	1	Added	909-4
357-2016(Emer.)	12- 7-2016	1		324-49
376-2016	1- 7-2017	1	Added	845-1-L
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380-2016	1- 7-2017	1		508-1-A
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384-2016	2-11-2017	1		731-11
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133-2017	7- 7-2017	1	Added	306-69
134-2017	7- 7-2017	1		879-7
137-2017	7-14-2017	1		723-7
152-2017(Emer.)	7- 1-2017	11		515-9
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154-2017	7-21-2017	1		401-76
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185-2017	7-28-2017	1	Added	401-2-D1
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0249-2017(Emer.)	9-13-2017	1		515-11
0258-2017	10-20-2017	1		507-1-M4
0260-2017	10-20-2017	1	Added	507-1-W19
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0281-2017	11- 4-2017	1	Added	1401-01-C19
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304-2017(Emer.)	10-25-2017	1	Added	306-70
319-2017(Emer.)	12- 6-2017	1		401-133
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334-2017	12- 6-2017	1		Ch. 765(tit.)
		2	Added	765-19
337-2017	1- 6-2018	1		723
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		3	Added	723-27
345-2017	1-20-2018	1		1101-79
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357-2017(Emer.)	12-20-2017	2		203-6(a)
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		3	Added	723-28
019-2018	3-22-2018	1		311-9-A1
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055-2018(Emer.)	3-21-2018	1	Added	320-1-P3
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090-2018	6- 2-2018	1		722-3(a), (d)(ii)
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127-2018	7- 6-2018	1		1400-23
		2	Added	1401-01-C15
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		4	Added	1419-12
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131-2018	7- 6-2018	1		14-25-19
147-2018	7-13-2018	1	Added	1447-23(b)
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160-2018	7-20-2018	1	Added	407-1-A, 407-1-A1, 407-1-S1, 407-145, 407-147, 407-149, 407-151, 407-153, 407-155, 407-157, 407-159, 407-161, 407-163, 407-165, 407-167, 407-169, 407-171, 407-173, 407-999-F
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165-2018(Emer.)	7- 1-2018	1		730-17(c)
166-2018(Emer.)	7- 1-2018	3	Added	1501-35
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167-2018(Emer.)	7- 1-2018	1	Added	313-1, 313-1-A, 313-1-A1, 313-1-D, 313-1-G, 313-1-O, 313-1-P, 313-1-R, 313-1-T1, 313-1-T2, 313-3, 313-5, 313-7, 313-9, 313-11, 313-13, 313-15, 313-17, 313-19, 313-21, 313-23, 313-25, 313-27, 313-29, 313-31, 313-33, 313-99
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186-2018	7-27-2018	1	Added	870-01, 870-03, 870-05, 870-07, 870-09, 870-11
219-2018(Emer.)	6-27-2018	1		401-76
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223-2018(Emer.)	6-27-2018	1	Added	320-1-W
226-2018(Emer.)	11- 6-2018	1		Char. Art. II, § 4 Char. Art. II, § 5a Char. Art. III, § 3 Char. Art. IX, §§ 2a, 2b
228-2018(Emer.)	11- 6-2018	1		Char. Art. II, § 5
229-2018(Emer.)	11- 6-2018	1		Char. Art. XIII, §§ 1, 2 Char. Art. XIII, § 4 Char. Art. XIII, § 7
230-2018(Emer.)	11- 6-2018	1		Char. Art. V, § 3

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348-2018	11-30-2018	1	Added	507-1-F7
363-2018(Emer.)	12-12-2018	1	Added	609-9
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0292-2018(Emer.)	9- 9-2018	1	Added	201-1-E3
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		3	Added	Adm. Art. XIV, § 6
		4	Added	Adm. Art. XX, § 3
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0083-2019	3-13-2019	1	Added	804-01—804-09
0093-2019(Emer.)	3-20-2019	1		723-16
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0125-2019	7- 1-2019	1	Added	856-1—856-29
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0175-2019	7-12-2019	1	Added	910-23
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0295-2019(Emer.)	6-26-2019	1, 2		723-15
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0296-2019(Emer.)	11- 5-2019	1		Char. Art. VIII, § 6c
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0359-2019	9-25-2019	1	Rpld	308-21
0378-2019	10- 2-2019	1	Added	Admin. Code, Art. II, § 23
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0402-2019	10-30-2019	1	Added	§ 26, Art. II, Admin. Code
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0406-2019	10-30-2019	1	Added	874-1—874-13
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4028-2019(Emer.)	11-14-2019	1	Added	306-71
0490-2019(Emer.)	12-11-2019	1	Added	723-40
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0100-2020(Emer.)	4- 1-2020	1, 2		1127-07
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0142-2020(Emer.)	5-13-2020	1	Added	1601-57, 1601-59
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0225-2020(Emer.)	6-24-2020	1, 2		869-7
0254-2020(Emer.)	8- 5-2020	1	Added	401-24
0300-2020	9-10-2020	1	Added	802-1—802-11
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0196-2021(Emer.)	5-26-2021	1, 2		Admin. Code, Art. XXV, §§ 1, 2
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0298-2021(Emer.)	6-23-2021	1	Added	121-1—121-5
0335-2021(Emer.)	8- 4-2021	1, 2		719-1—719-3
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